SUPPLEMENT NO. 2
VOLUMES I—IV
November 2025

**TULSA**

**CODE OF ORDINANCES**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 25614, passed June 25, 2025.**

See the Code Comparative Table—Volume IV for further information.

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SUPPLEMENT NO. 1
VOLUMES I—IV
April 2025

**TULSA**

**CODE OF ORDINANCES**

**Looseleaf Supplement**

This Supplement contains all ordinances deemed advisable to be included at this time through:

**Ordinance No. 25427, passed October 16, 2024.**

See the Code Comparative Table—Volume IV for further information.

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Insert and maintain this instruction sheet in front of Volume I. File removed pages for future reference.

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REPUBLICATION
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December 2024

# TULSA

## CODE OF ORDINANCES

### Looseleaf Supplement

This copy of the Tulsa Code of Ordinances is issued as a "replacement" copy and contains all ordinances deemed advisable to be included at this time through Ordinance No. 25330, passed June 5, 2024. See the Code Comparative Table—Volume IV for further information.

This copy replaces all existing copies of the Code as published through Supplement No. 33. Future supplements will commence with "Supplement No. 1."

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## PREFACE

This Code is organized by subject matter under an expandable three-factor decimal numbering system which is designed to facilitate supplementation without disturbing the numbering of existing provisions. Each section number designates, in sequence, the numbers of the Title, chapter, and section. Thus, Section 2.12.040 is Section .040, located in Chapter 2.12 of Title 2. In most instances, sections are numbered by tens (.010, .020, .030, etc.), leaving nine vacant positions between original sections to accommodate future provisions. Similarly, chapters and titles are numbered to provide for internal expansion.

In parentheses following each section is a legislative history identifying the specific sources for the provisions of that section. This legislative history is complemented by an ordinance disposition table, following the text of the Code, listing by number all ordinances, their subjects, and where they appear in the codification; and beginning with the 2011 Republication, legislation can be tracked using the "Code Comparative Table."

A subject-matter index, with complete cross-referencing, locates specific code provisions by individual section numbers.

**This supplement brings the Code up to date through Ordinance 25614, adopted June 25, 2025.**

Municipal Code Corporation
1700 Capital Circle SW
Tallahassee, FL 32310 800-262-2633

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## HOW TO USE YOUR CODE

This code is organized to make the laws of the city as accessible as possible to city officials, city employees and private citizens. Please take a moment to familiarize yourself with some of the important elements of this code.

### Numbering System.

The numbering system is the backbone of a Code of Ordinances; Municipal Code Corporation uses a unique and versatile numbering structure that allows for easy expansion and amendment of this Code. It is based on three tiers, beginning with title, then chapter, and ending with section. Each part is represented in the code section number. For example, Section 2.04.010 is Section .010, in Chapter 2.04 of Title 2.

### Title.

A title is a broad category under which ordinances on a related subject are compiled. This code contains about 15 to 20 titles. For example, the first title is Title 1, General Provisions, which may contain ordinances about the general penalty, code adoption and definitions. The titles in this code are separated by tabbed divider pages for quick reference. Some titles are Reserved for later use.

### Chapter.

Chapters deal with more specific subjects, and are often derived from one ordinance. All of the chapters on a related subject are grouped in one title. The chapters are numbered so that new chapters which should logically be placed near certain existing chapters can be added at a later time without renumbering existing material. For example, Chapter 2.06, City Manager, can be added between 2.04, City Council, and Chapter 2.08, City Attorney.

### Section.

Each section of the code contains substantive ordinance material. The sections are numbered by "tens" to allow for expansion of the code without renumbering.

### Tables of Contents.

There are many tables of contents in this code to assist in locating specific information. At the beginning of the code is the main table of contents listing each title. In addition, each title and chapter has its own table of contents listing the chapters and sections, respectively.

### Ordinance History Note.

At the end of each code section, you will find an "ordinance history note," which lists the underlying ordinances for that section. The ordinances are listed by number, section (if applicable) and year. (Example: (Ord. 272 § 1, 1992).)

Beginning with the 2011 Republication, a secondary ordinance history note will be appended to affected sections. Ordinance history notes will be amended with the most

recent ordinance added to the end. These history notes can be cross referenced to the code comparative table and disposition list appearing at the back of the volume preceding the index.

### Code Comparative Table and Disposition List.

Beginning with the 2011 Republication, a Code Comparative Table has been added for use in tracking legislative history. Located in the back of this volume, this table is a chronological listing of each ordinance considered for codification. The Code Comparative Table specifies the ordinance number, adoption date, description of the ordinance and the disposition within the code of each ordinance. By use of the Code Comparative Table, the reader can locate any section of the code as supplemented, and any subsequent ordinance included herein.

### Index.

If you are not certain where to look for a particular subject in this code, start with the index. This is an alphabetical multi-tier subject index which uses section numbers as the reference, and cross-references where necessary. Look for the main heading of the subject you need, then the appropriate subheadings:

BUSINESS LICENSE

See also BUSINESS TAX
Fee 5.04.030
Required when 5.04.010

The index will be updated as necessary when the code text is amended.

### Instruction Sheet.

Each supplement to the new code will be accompanied by an Instruction Sheet. This guide will tell the code user the date of the most recent supplement and the last ordinance contained in that supplement. It will then list the pages that must be pulled from the code and the new pages that must be inserted. Following these instructions carefully will assure that the code is kept accurate and current. Removed pages should be kept for future reference.

### Electronic Submission.

In the interests of accuracy and speed, we encourage you to submit your ordinances electronically if at all possible. We can accept most any file format, including Word, WordPerfect or text files. If you have a choice, we prefer Word, any version. You can send files to us as an e-mail attachment, by FTP, on a diskette or CD-ROM. Electronic files enable us not only to get you your code more quickly but also ensure that it is error-free. Our e-mail address is: ords@municode.com.

For hard copy, send two copies of all ordinances passed to:

Municipal Code Corporation
P.O. Box 2235
Tallahassee, FL 32316

**Customer Service.**

If you have any questions about this code or our services, please contact Municipal Code Corporation at 1-800-262-2633 or:

Municipal Code Corporation
1700 Capital Circle SW
Tallahassee, FL 32310

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**ORDINANCE NO. 25598**

AN ORDINANCE ADOPTING THE FIRST SUPPLEMENT TO THE EIGHTH REVISION OF THE TULSA REVISED ORDINANCES, CODIFYING ORDINANCES ENACTED BETWEEN JUNE 12, 2024, AND OCTOBER 16, 2024; PROVIDING CERTAIN EXCEPTIONS FOR ORDINANCES EXCLUDED; PROVIDING FOR THE REPEAL OF CERTAIN ORDINANCES; PROTECTING PREEXISTING RIGHTS; PROVIDING FOR COPIES TO BE DEPOSITED WITH THE CITY CLERK; PROVIDING FOR DISTRIBUTION OF COPIES TO CITY DEPARTMENTS AND OTHERS; PROVIDING FOR THE SALE OF COPIES; AND DECLARING AN EMERGENCY.

BE IT ORDAINED BY THE CITY OF TULSA:

**SECTION 1. ADOPTION OF SUPPLEMENT NUMBER 1.** This ordinance shall adopt the First Supplement ("Supplement No. 1") dated November 1, 2024, to the Eighth Edition of the Tulsa Revised Ordinances.

**SECTION 2. EXCEPTIONS.** Ordinance No. 25428, enacted November 3, 2024, and all ordinances enacted subsequent thereto, are not included in Supplement No. 1 to the Tulsa Revised Ordinances; and it is hereby provided that all such subsequently enacted ordinances, and all temporary and special ordinances containing subject matters not subject to codification, shall continue in full force and effect from and after the date hereof until hereafter repealed.

**SECTION 3. REPEAL.** All ordinances or parts of ordinances in effect as of the date of the passage of this ordinance and which are not contained in the Seventh Revision of the Tulsa Revised Ordinances, or as amended by Supplement No. 1, adopted herein, or which are not herein expressly stated to be continued in full force and effect shall be and the same are hereby repealed.

**SECTION 4. SAVING CLAUSE.** Neither the repeal of any ordinances nor any of the provisions herein contained shall be deemed or construed to impair, modify, alter or affect any rights, rights of action or causes of action, whether now pending in any court or not, which are now existing or which may arise or come into existence, before the date when Supplement No. 1, above described, shall take effect.

**SECTION 5. COPIES TO BE DEPOSITED WITH CITY CLERK.** Three (3) printed copies of Supplement No. 1 to the Tulsa Revised Ordinances shall be deposited with the City Clerk of the City of Tulsa.

**SECTION 6. COPIES TO EACH HOLDER OF TULSA REVISED ORDINANCES.** The City Clerk is authorized to transmit to each City employee who has been assigned a set of the Tulsa Revised Ordinances, and to each person and each library which have been presented a complimentary set of the Tulsa Revised Ordinances, copies of Supplement No. 1 to the Tulsa Revised Ordinances at no charge.

**SECTION 7. COPIES AVAILABLE FOR SALE.** The City Clerk is authorized to deliver by U.S. Mail to each person, firm or organization purchasing a set of Tulsa Revised Ordinances, one copy each of Supplement No. 1 to the Tulsa Revised Ordinances with an invoice requiring payment of $102.15 for said supplement.

**SECTION 8. EMERGENCY.** That an emergency is hereby declared to exist for the preservation of the public peace, health and safety, by reason whereof this ordinance shall take effect immediately from and after its passage, approval and publication.

ADOPTED by the Tulsa City Council, this 11th Day of June 2025

ADOPTED as an emergency measure, this 11th Day of June 2025

Phil Lakin, Jr., Chair of the City Council

APPROVED by the Mayor of the City of Tulsa, Oklahoma, this 18th Day of June 2025

Monroe Nichols IV, Mayor

ATTEST: Christina Chappell, City Clerk

APPROVED: Jack Blair, City Attorney

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In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

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## 1989 AMENDED CHARTER

The City of Tulsa was established as a town in 1898 under territorial law while Oklahoma was designated as Indian Territory of the United States. After Oklahoma became the 46th state in 1907, the City of Tulsa adopted its first city charter on July 3, 1908, which was approved by Oklahoma Governor Charles Haskell on January 5, 1909.

The City was governed by a Board of Commissioners comprised of a Mayor and four Commissioners - Police and Fire, Streets and Public Property, Waterworks and Sewerage, and Finance and Revenue. This form of government prevailed until May 8, 1990, when it changed to a Mayor and City Council form.

Under and by the authority of Section 3 of Article XVIII of the Constitution of the State of Oklahoma and pursuant to the laws of the state (11 O.S.1981, §§ 13-111, 13-106, and 13-107; 26 O.S.Supp.1987 § 13-102), a special election (provided by City of Tulsa Ordinance No. 17090) was held on February 14, 1989, and the qualified voters of the City of Tulsa approved the 1989 amended Charter, which was later approved by Oklahoma Governor Henry Bellmon to become effective on May 8, 1990.

An original signed copy was filed with the Oklahoma Secretary of State on March 8, 1989, and with the Tulsa County Clerk on March 15, 1989.

AN AMENDMENT TO THE EXISTING CHARTER OF THE CITY OF TULSA, AS AMENDED, CHANGING FROM A COMMISSION FORM TO A MAYOR-COUNCIL FORM OF GOVERNMENT; PROVIDING, AMONG OTHER THINGS, FOR THE CONTINUATION OF THE CITY OF TULSA AS A BODY POLITIC AND CORPORATE; PRESCRIBING THE POWERS OF THE CITY; PROVIDING FOR A COUNCIL OF NINE (9) MEMBERS NOMINATED AND ELECTED FOR TWO (2) YEAR TERMS FROM NINE (9) ELECTION DISTRICTS; ESTABLISHING THE ELECTION DISTRICTS; PROVIDING FOR THE ADJUSTMENT OF ELECTION DISTRICT BOUNDARIES; PRESCRIBING THE QUALIFICATIONS, POWERS, AND DUTIES OF THE COUNCIL; PROVIDING FOR A MAYOR NOMINATED AND ELECTED AT LARGE FOR A FOUR (4) YEAR TERM, PRESCRIBING THE QUALIFICATIONS, POWERS, AND DUTIES OF THE MAYOR, AND PROVIDING FOR THE MAYOR TO BE THE CHIEF EXECUTIVE AND ADMINISTRATIVE OFFICER OF THE CITY; PROVIDING FOR A CITY AUDITOR NOMINATED AND ELECTED AT LARGE FOR A TWO (2) YEAR TERM; PRESCRIBING THE QUALIFICATIONS, POWERS, AND DUTIES OF THE CITY AUDITOR; PROVIDING FOR A CITY CLERK, A CITY TREASURER, AND A CITY ATTORNEY, AND PRESCRIBING QUALIFICATIONS, POWERS, AND DUTIES FOR EACH; CREATING AN AIRPORT AUTHORITY, PRESCRIBING THE POWERS, FUNCTIONS, AND DUTIES THEREOF, AND PRESCRIBING THE QUALIFICATIONS OF MEMBERS THEREOF; CREATING A UTILITY BOARD, PRESCRIBING THE POWERS, FUNCTIONS, AND DUTIES THEREOF, AND PRESCRIBING THE QUALIFICATIONS OF MEMBERS THEREOF; CREATING A PARK AND RECREATION BOARD, PRESCRIBING THE POWERS, FUNCTIONS, AND DUTIES THEREOF, AND PROVIDING THE QUALIFICATIONS OF MEMBERS THEREOF; PROVIDING FOR THE ELECTION AND REMOVAL OF OFFICERS, AND THE PROCEDURES THEREFOR; PROVIDING FOR THE FILING OF VACANCIES IN OFFICE; PROVIDING FOR THE GRANTING AND REVOCATION OF FRANCHISES AND PERMITS, AND CONVEYANCE OF AERIAL AND SUBSURFACE SPACES; PROVIDING FOR THE OWNERSHIP RIGHT OF CONTROL, AND USE OF STREETS, HIGHWAYS, ALLEYS,

AND OTHER PUBLIC WAYS, PARKS, PUBLIC PLACES, OR OTHER REAL PROPERTY OF THE CITY; PROVIDING FOR THE CONSTRUCTION, MAINTENANCE, AND REPAIR OF STREETS, SIDEWALKS, AND SANITARY SEWERS, AND FOR THE ASSESSMENT OF PROPERTY BENEFITTED THEREBY AND OTHER METHODS OF FINANCING AND RAISING REVENUE THEREFOR; PROVIDING A MERIT SYSTEM FOR OFFICERS AND EMPLOYEES; CREATING A CIVIL SERVICE COMMISSION, AND PRESCRIBING THE POWERS, FUNCTIONS, AND DUTIES THEREOF, AND PRESCRIBING THE QUALIFICATIONS OF MEMBERS THEREOF; CREATING A FIRE DEPARTMENT, AND A PERSONNEL COMMITTEE THEREFOR, PRESCRIBING THE POWERS, FUNCTIONS, AND DUTIES OF THE PERSONNEL COMMITTEE, AND PRESCRIBING THE QUALIFICATIONS OF MEMBERS THEREOF; AND CONTAINING OTHER PROVISIONS PERTAINING TO THE ADMINISTRATION OF CITY GOVERNMENT; PROVIDING FOR THE CONTINUANCE OF ORDINANCES AND CONTRACTS; AND REPEALING ALL PORTIONS OF THE EXISTING CHARTER OF THE CITY OF TULSA NOT INCORPORATED HEREIN NOR CONTINUED IN EFFECT.

The Charter of the City of Tulsa, Oklahoma, as heretofore amended shall be and it is hereby further amended to read as follows:

## PREAMBLE

We, the people of the City of Tulsa, exercising the power of home rule granted to us by the Constitution and laws of Oklahoma, in order to provide for a more representative, efficient, and economical administration of municipal government, do ordain and establish this amended Charter of the City of Tulsa.

## ARTICLE I. CORPORATE POWERS

### Section 1. Incorporation and powers.

All people residing within the corporate limits of the City of Tulsa, as they exist upon the effective date of this amended Charter, or as they may be established hereafter, shall continue to be a body politic and corporate known as the "CITY OF TULSA," and under that name shall have perpetual succession, may use a common corporate seal, may sue and be sued, may enter into contracts, may acquire property within or without the corporate limits of the City of Tulsa for any corporate purpose, in fee simple or lesser interest or estate, by purchase, gift, devise, lease, or by the exercise of the power of eminent domain, and may sell, lease, hold, manage, and control such property as the interests of the City of Tulsa may require. Except as prohibited by this amended Charter, the City of Tulsa shall have and may exercise all powers, functions, rights, privileges, and immunities of every nature to the fullest extent permitted by and subject only to such limitations imposed by the Constitution of Oklahoma, by such laws of Oklahoma binding upon cities adopting charters for their own government under the authority granted by Article XVIII, Section 3, of the Constitution of Oklahoma, and by the Constitution and laws of the United States of America.

### Section 2. Enumerated powers not exclusive.

The enumeration of particular powers by this amended Charter shall not be held or deemed to be exclusive. In addition to the powers enumerated herein, implied hereby, or appropriate to the exercise hereof, the City of Tulsa shall have, and may exercise, all powers which, under the Constitution and laws of Oklahoma, it would be competent for this amended Charter to enumerate, it being the object and purpose of this amended Charter to grant to and bestow upon the City of Tulsa full and complete power of self-government. All powers of the City of Tulsa, whether expressed or implied, shall be exercised as provided by this amended Charter, or if not provided herein, as provided by ordinance or resolution.

### Section 3. General grant of power.

Subject only to such limitations imposed by the Constitution and laws of the United States of America, by the Constitution and such laws of Oklahoma binding upon cities adopting charters for their own government under the authority granted by Article XVIII, Section 3, of the Constitution of Oklahoma, and by the provisions of this amended Charter, the City of Tulsa shall have the power:

**A.** To adopt and enforce all ordinances necessary or proper to protect the public peace, health, order, morals, and safety, and to promote the general welfare of the City of Tulsa and its inhabitants;

**B.** To purchase, construct, maintain, and operate, within or without the city, public utilities, public works, and other facilities of every kind;

**C.** To engage in any public business, enterprise, or activity and to provide any service or facility for the common benefit or in the furtherance of any function performed by the city;

**D.** To provide, levy, assess, and collect taxes and fees of every kind for the support and operation of the city government and its activities; provided, that no sales tax, gross receipts tax, payroll tax, or income tax shall be levied or assessed until such tax shall

have been approved by a majority of the qualified electors of the City of Tulsa voting on the question at an election for the purpose of approving or disapproving of a proposed tax;

**E.** To impose license fees for the purposes of revenue or regulation;

**F.** To levy and collect special assessments for benefits conferred;

**G.** To incur indebtedness and to provide for the payment thereof;

**H.** To make public improvements of every kind;

**I.** To adopt and enforce ordinances and exercise jurisdiction over lands or property owned, leased, controlled, or supervised by the City of Tulsa outside the corporate limits as exercised over lands or property within the corporate limits;

**J.** To exercise jurisdiction over property outside the corporate limits as authorized by the laws of Oklahoma;

**K.** To cooperate and enter into agreements with the State of Oklahoma; with another state or municipality; with any subdivision or agency thereof; with the federal government or any agency thereof; with private corporations, partnerships or individuals, or any combination thereof; and to exercise jointly all powers, privileges, and authority conferred upon the City of Tulsa by this amended Charter or by the laws of Oklahoma;

**L.** To acquire, plan, establish, develop, construct, enlarge, improve, maintain, manage, equip, operate, regulate, and protect waterports, airports, and air navigation facilities within or without the corporate limits;

**M.** To appropriate and expend money for any public purpose;

**N.** To restrict and regulate the use and subdivision of land, to perform planning and zoning, and to establish by ordinance the procedures therefor;

**O.** To abate nuisances of any kind, and summarily to abate any nuisance re-occurring on the same property under the same ownership, within twenty-four (24) months of a previous nuisance abatement on that property, and to assess the expense thereof as a special tax against the land upon which the nuisance is located; and

**P.** To perform all acts or do any other thing necessary or proper to exercise the powers granted in this amended Charter or by law.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017, and approved by the Governor on February 21, 2018. There were 8,291 votes in favor of the amendment and 2,123 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article I, Section 3, "General Grant of Power," paragraph "O" be amended to clarify that the City of Tulsa may summarily abate a nuisance re-occurring on the same property under the same ownership within twenty-four (24) months of a previous nuisance abatement on that property?*

*Prior to this amendment, this section read as follows:*

**Section 3. General grant of power.**

*Subject only to such limitations imposed by the Constitution and laws of the United States of America, by the Constitution and such laws of Oklahoma binding upon cities adopting*

*charters for their own government under the authority granted by Article XVIII, Section 3, of the Constitution of Oklahoma, and by the provisions of this amended Charter, the City of Tulsa shall have the power:*

*A. To adopt and enforce all ordinances necessary or proper to protect the public peace, health, order, morals, and safety, and to promote the general welfare of the City of Tulsa and its inhabitants;*

*B. To purchase, construct, maintain, and operate, within or without the city, public utilities, public works, and other facilities of every kind;*

*C. To engage in any public business, enterprise, or activity and to provide any service or facility for the common benefit or in the furtherance of any function performed by the city;*

*D. To provide, levy, assess, and collect taxes and fees of every kind for the support and operation of the city government and its activities; provided, that no sales tax, gross receipts tax, payroll tax, or income tax shall be levied or assessed until such tax shall have been approved by a majority of the qualified electors of the City of Tulsa voting on the question at an election for the purpose of approving or disapproving of a proposed tax;*

*E. To impose license fees for the purposes of revenue or regulation;*

*F. To levy and collect special assessments for benefits conferred;*

*G. To incur indebtedness and to provide for the payment thereof;*

*H. To make public improvements of every kind;*

*I. To adopt and enforce ordinances and exercise jurisdiction over lands or property owned, leased, controlled, or supervised by the City of Tulsa outside the corporate limits as exercised over lands or property within the corporate limits;*

*J. To exercise jurisdiction over property outside the corporate limits as authorized by the laws of Oklahoma;*

*K. To cooperate and enter into agreements with the State of Oklahoma; with another state or municipality; with any subdivision or agency thereof; with the federal government or any agency thereof; with private corporations, partnerships or individuals, or any combination thereof; and to exercise jointly all powers, privileges, and authority conferred upon the City of Tulsa by this amended Charter or by the laws of Oklahoma;*

*L. To acquire, plan, establish, develop, construct, enlarge, improve, maintain, manage, equip, operate, regulate, and protect waterports, airports, and air navigation facilities within or without the corporate limits;*

*M. To appropriate and expend money for any public purpose;*

*N. To restrict and regulate the use and subdivision of land, to perform planning and zoning, and to establish by ordinance the procedures therefor;*

*O. To abate nuisances of any kind and to assess the expense thereof as a special tax against the land upon which the nuisance is located; and*

*P. To perform all acts or do any other thing necessary or proper to exercise the powers granted in this amended Charter or by law.*

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## ARTICLE II. THE COUNCIL

### Section 1. Creation and functions.

All legislative powers of the City of Tulsa, except for the rights of initiative and referendum reserved to the people of the City of Tulsa by Article XVIII, Section 4, of the Constitution of Oklahoma, shall be vested in and exercised by a Council composed of nine (9) Councilors elected by districts as provided in Article VI of this amended Charter. The Council shall exercise such other powers delegated to the Council by this amended Charter or delegated to the legislative body of a municipality by the Constitution or the laws of Oklahoma.

### Section 2. Salaries.

Each member of the Council shall receive a salary of twenty-four thousand dollars ($24,000.00) per year, commencing December 1, 2014, payable as employees of the city are paid. The City Council shall have no power to change its salary by its own vote. Councilors may be reimbursed for expenses incurred in the performance of their duties.

*NOTE: This section was amended to read as above by an amendment voted November 12, 2013. There were 39,642 votes in favor of the amendment and 31,744 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa be amended to set the salary for members of the City Council at twenty-four thousand dollars ($24,000.00) per year, commencing December 1, 2014; and repealing the Council's power to change its salary by its own vote?*

*Prior to this amendment, this section read as follows:*

**Section 2. Salaries.**

*During the first term of office under this amended Charter, each member of the Council shall receive a salary of twelve thousand dollars ($12,000.00) per year payable as employees of the city are paid; thereafter, the salary to be received by each member of the Council and the Chairman may be changed by a majority vote of the entire membership of the Council; provided, no change in salary shall become effective prior to the commencement of the term of office next succeeding the term in which the change is made and then only in the event such change was approved prior to the general election for the next succeeding term. Councilors may be reimbursed for expenses incurred in the performance of their duties.*

### Section 3.1. Meetings.

The Council shall meet regularly at such times and places as the Council shall fix by ordinance; provided, that the Council shall hold not less than two (2) regular meetings each month at the City Hall. The Mayor, the Chairman of the Council, or one-third (⅓) of the members of the Council may call special meetings of the Council upon written notice electronically transmitted to each member of the Council or served personally on or left at the usual place of residence of each member of the Council, at least twenty-four (24) hours prior to such meeting, and upon such further notice as is required by the laws of Oklahoma. The notice shall state the date, time and place of the meeting and the subjects to be considered. No subjects other than those stated in the notice shall be considered at the special meeting.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017, and approved by the Governor on February 21, 2018. There were 8,829 votes in favor of the amendment and 1,638 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article II, Section 3.1, "Meetings", be amended to allow the required notice of special meetings of the City Council to be delivered to councilors electronically?*

*Prior to this amendment, this section read as follows:*

**Section 3.1. Meetings.**

*The Council shall meet regularly at such times and places as the Council shall fix by ordinance; provided, that the Council shall hold not less than two (2) regular meetings each month at the City Hall. The Mayor, the Chairman of the Council, or one-third (1/3) of the members of the Council may call special meetings of the Council upon written notice served personally on or left at the usual place of residence of each member of the Council at least twenty-four (24) hours prior to such meeting, and upon such further notice as is required by the laws of Oklahoma. The notice shall state the time and place of the meeting and the subjects to be considered. No subjects other than those stated in the notice shall be considered at the special meeting.*

**Section 3.2. Civil emergency.**

After proclamation by the Mayor of a civil emergency by virtue of an armed conflict, civil disorder, or natural disaster, the Council may meet at any place within the corporate limits of the city in special session and without notice and consider such matters as necessary for the preservation of the public health, safety, and welfare during the period of the emergency.

**Section 3.3. Open meetings.**

All meetings of the Council shall be open to the public as provided by the laws of Oklahoma.

**Section 4. Rules.**

The Council shall determine and establish its own rules and order of business. The Council shall employ a Secretary of the Council and may employ such persons as are necessary to assist the Council in the performance of its duties. The Secretary of the Council shall keep a journal of the proceedings of the Council. The Council may punish by fine its members or other persons for disorderly conduct at a Council meeting or for violation of Council rules. Any fine imposed by the Council for a single offense shall not exceed the sum of one hundred dollars ($100.00) and shall be collected in the same manner provided for the collection of other debts owed the city. The vote of two-thirds (2/3) of the entire membership of the Council shall be required to impose a fine on a Councilor.

**Section 5. Chairman.**

The Council shall elect a Chairman and Vice Chairman. The terms of the Chairman and Vice Chairman shall be determined by the Council. The Chairman shall preside at the

meetings of the Council and perform such other duties as provided in this amended Charter, by ordinance, or by rule of the Council. In the absence of the Chairman, the Vice Chairman shall perform the duties of the Chairman.

**Section 6.1. Judge of qualifications.**

The Council shall be the judge of the qualifications of its members and for such purposes shall have the power to subpoena witnesses and require the production of records. The decisions of the Council in such cases shall be subject to review by appropriate actions in courts of competent jurisdiction which shall be commenced within ten (10) days after a final decision by the Council.

**Section 6.2. Quorum and voting.**

A majority of the entire membership of the Council shall constitute a quorum for a meeting of the Council; less than a majority may continue a meeting to a specific date and time. The affirmative vote of a majority of the entire membership of the Council shall be necessary to adopt an ordinance or resolution. All other actions of the Council, unless otherwise specified in this amended Charter, shall be effective upon an affirmative vote of a majority of the quorum.

**Section 6.3. Voting on zoning changes involving protests.**

In the event a protest against a proposed zoning change is filed at least three (3) days prior to the hearing of the Council by the owners of twenty percent (20%) or more of the area of the lots included in such proposed change, or by the owners of fifty percent (50%) or more of the area of the lots within a three hundred foot (300') radius of the exterior boundary of the territory included in a proposed change, such zoning change shall not become effective except by the affirmative vote of three fourths (¾) of the entire membership of the Council. The Council shall establish by ordinance the procedures to be followed in the filing, validation, and acceptance of a protest authorized by this Section.

*NOTE: This section was added by an amendment voted March 7, 2006, and approved by the Governor on June 6, 2006. There were 37,103 votes in favor of the amendment and 21,976 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide the requirement of an affirmative vote of three-fourths (3/4) of the entire membership of the City Council to effect a change of zoning in the event a sufficient protest is filed?*

**Section 7.1. Budgets.**

Prior to the expenditure of general funds, or funds from the sale or issuance of an obligation of the city, or from any other source, the Mayor shall submit to the Council a budget for the expenditure of such funds or amendments to previously adopted budgets. The Council shall adopt budgets or amendments and make appropriations by ordinance, provided, that no revenue derived from the 2017 Public Safety Sales Tax, as set forth in detail in Title 43-I Tulsa Revised Ordinances, shall ever be budgeted, spent or used for any purpose other than public safety as described therein.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017. There were 6,602 votes in favor of the amendment and 3,640 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article II, "The Council" Section 7.1, "Budgets" and Article III, "The Mayor," Section 1.4, "Executive and Administrative Powers and Duties", Sub-Section C, be amended to prohibit any revenues derived from the 2017 Public Safety Sales Tax from ever being used for any purpose other than public safety as described therein, and to revoke the ability to amend any portion of Title 43-I Tulsa Revised Ordinances which could permit such other use?*

*Prior to this amendment, this section read as follows:*

**Section 7.1. Budgets.**

*Prior to the expenditure of general funds, or funds from the sale or issuance of an obligation of the city, or from any other source, the Mayor shall submit to the Council a budget for the expenditure of such funds or amendments to previously adopted budgets. The Council shall adopt budgets or amendments and make appropriations by ordinance.*

**Section 7.2. Action on budgets.**

Upon receipt of budgets from the Mayor, the Council shall hold at least one (1) public hearing thereon, at which time any citizen of the city shall be given an opportunity to be heard on the budgets or any item or program recommended therein. After public hearing, the Council may adopt a budget or amendments. The Council may add, delete, increase, or decrease programs or amounts, except expenditures required by law.

**Section 7.3. Additional procedures.**

The Council may establish by ordinance additional procedures for the preparation, adoption, and amendment of budgets, for the transfer of appropriations, and for supplemental and emergency appropriations which are not in conflict with the provisions of this amended Charter or with the laws of Oklahoma.

**Section 7.4. Economic stabilization reserve created.**

There is hereby created an Economic Stabilization Reserve for the City of Tulsa, Oklahoma. The purpose of the Economic Stabilization Reserve shall be to assist in limiting the amount of reduction required in the general fund budget during times of declining revenues.

*See note following Section 7.10.*

**Section 7.5. Allocations to the economic stabilization reserve.**

If the City Treasurer projects that total General Fund revenues for the upcoming budget year will exceed the total General Fund revenues for the current budget year by more than four percent (4%), the budget submitted by the Mayor and approved by the City Council shall allocate the excess General Fund revenues as follows:

**A.** Fifty percent (50%) of the excess General Fund revenues to the Economic Stabilization Reserve;

**B.** Twenty-five percent (25%) of the excess General Fund revenues may be allocated in whole or in part to capital, other one-time expenditures, or the operating reserve; and,

**C.** Twenty-five percent (25%) of the excess General Fund revenues may be allocated for general use consistent with lawful municipal purposes.

The Mayor and the City Council may, at any time, authorize any other available monies to be added to the Economic Stabilization Reserve; however, total monies in the Economic Stabilization Reserve shall not exceed thirty percent (30%) of actual total General Fund revenues, as stated in the City's most recent independent annual audit. The budget submitted by the Mayor and approved by the City Council shall allocate excess revenues that would otherwise be allocated to the Economic Stabilization Reserve above the thirty percent (30%) cap instead to capital, other one-time expenditures, or the operating reserve in accordance with the provisions of Section 7.5(B).

*See note following Section 7.10.*

**Section 7.6. Use of monies allocated to capital or other one-time expenditures.**

The Mayor and the City Council may, at any time, appropriate monies from the capital and/or other one-time expenditures allocation for capital projects or for expenditures such as, but not limited to, acquisition of equipment or information systems.

*See note following Section 7.10.*

**Section 7.7. Use of monies allocated for general purposes.**

The Mayor and the City Council may, at any time, appropriate monies from the general purpose allocation for any lawful municipal purpose.

*See note following Section 7.10.*

**Section 7.8. Withdrawals from the economic stabilization reserve.**

If the City Treasurer projects that total General Fund revenues for the upcoming budget year will either (a) be less than the current budget year's total General Fund revenues, or (b) be less than the highest of any other previous year's total General Fund revenues, the budget submitted by the Mayor and approved by the Council may appropriate up to fifty percent (50%) of the current balance in the Economic Stabilization Reserve, but no more than the shortfall in total General Fund revenues as determined above, to be used for any lawful municipal purpose in the upcoming budget year. For purposes of calculating any shortfall:

**A.** If the trigger for withdrawals from the reserve was not met in the current budget year, the City Treasurer shall calculate the shortfall for the upcoming budget year by subtracting the total projected General Fund revenues for the upcoming budget year from the total projected General Fund revenues for the current budget year.

**B.** If the trigger for withdrawals from the Economic Stabilization Reserve was met in the current budget year, the shortfall shall be calculated by subtracting the total projected General Fund revenues for the upcoming budget year from the highest of any previous year's total General Fund revenues.

*See note following Section 7.10.*

**Section 7.9. Adjustments to allocations to the economic stabilization reserve, capital, other one-time expenditures, or the operating reserve.**

Adjustments to allocations to the Economic Stabilization Reserve, Capital, Other One-Time Expenditures, or Operating Reserve may be made as follows:

**A.** If the City made appropriations from the Economic Stabilization Reserve in the current budget year and in the immediately preceding budget year pursuant to Section 7.8, the City is not required to allocate any anticipated excess revenues as set forth in Section 7.5 for the upcoming budget year.

**B.** If the City Treasurer projects that the Consumer Price Index for the upcoming budget year will exceed the index for the current budget year by more than five percent (5%), the trigger for as set forth in Section 7.5 above shall instead be the percentage of growth in the index plus two percent (2%). If the City Treasurer projects that the Consumer Price Index for the upcoming budget year will be less than the index for the current budget year, the trigger for withdrawals from the Economic Stabilization Reserve as set forth in Section 7.9 above shall instead be the percentage of negative growth in the index. The City Treasurer shall use for these purposes the All Items Consumer Price Index for All Urban Consumers (CPI-U), or its successor, as reported by the U.S. Department of Labor's Bureau of Labor Statistics.

**C.** If the City Council or the voters take any action that changes the amount of total General Fund revenues in any material manner, including but not limited to reducing a tax or imposing a new fee, the revenue changes caused by that action shall not be counted as part of the trigger for allocations as set forth in Section 7.5 or for withdrawals as set forth in Section 7.8 during the year or years in which the action is first implemented.

**D.** In conjunction with the annual year-end close of the budget, the City Treasurer shall reconcile the revenue projections triggering any budgeted allocations as set forth in Section 7.5 or withdrawals as set forth in Section 7.8 with actual revenue results, as stated in the City's independent annual audit for the budget year(s) in question, and shall, to the extent practicable, rebalance the allocations accordingly.

*See note following Section 7.10.*

**Section 7.10. Transition and implementation.**

For purposes of initial implementation of the provisions found in Sections 7.4 through 7.9, the City shall not be required to make allocations of any anticipated excess revenues under Section 7.5 until the projected revenues initially exceed $250 million.

*Note: Sections 7.4 through 7.10 were added to read as set out above by a special election voted November 2, 2010 and approved by the Governor on March 18, 2011. There were 67,314 votes in favor of the addition and 33,780 against the addition. The title to this addition read:*

*Shall the existing Charter of the City of Tulsa, as heretofore amended, be further amended to provide for the creation and maintenance of an Economic Stabilization Reserve Fund for the City of Tulsa, Oklahoma?*

**Section 8. Procedures on ordinances and resolutions.**

Ordinances and resolutions shall be introduced in the Council in written or printed form. All ordinances or resolutions, except those adopting budgets, making appropriations,

or adopting a code of ordinances, shall be confined to one subject, which shall be clearly expressed in the title. Ordinances adopting budgets and making appropriations shall be confined to budgets and appropriations. No ordinance shall be adopted until the subject thereof has been on the agenda of the Council for two (2) meetings; provided, this requirement may be waived by a vote of not less than two-thirds (⅔) of the entire membership of the Council. A copy of each proposed ordinance shall be furnished to each Councilor or left at the usual place of residence of each Councilor prior to final consideration. The vote of each Councilor shall be taken upon all matters before the Council and entered in the journal of the proceedings of the Council. The enacting clause of all ordinances shall be, "Be it Ordained by the City of Tulsa."

**Section 9. Approval or veto of ordinances and resolutions.**

Every ordinance and resolution adopted by the Council shall be signed by the Chairman and delivered forthwith by the City Clerk to the office of the Mayor for approval. Within fifteen (15) working days following such delivery, the Mayor shall either approve or veto the ordinance or resolution. If vetoed, the ordinance or resolution shall be returned to the Council with a written statement of the objections of the Mayor. If neither approved nor vetoed by the Mayor in the time specified, the ordinance or resolution shall take effect as though approved by the Mayor. A veto by the Mayor shall suspend further action of the Council upon the ordinance or resolution for a period of seven (7) days, after which the Council may override the veto by a vote of two-thirds (⅔) of its entire membership, and the ordinance or resolution shall take effect as though approved by the Mayor. If the veto of the Mayor is sustained, the subject of the ordinance or resolution, except ordinances adopting budgets or making appropriations, shall not be further considered by the Council for a period of ninety (90) days; provided, that the Council by a vote of two-thirds (⅔) of its entire membership may waive the ninety (90) day period. The Mayor may veto or reduce any item of ordinances adopting budgets or making appropriations, except as otherwise provided in this amended Charter, which veto or reduction may be sustained or overridden by the Council as provided in this Section.

**Section 10. Effective date of ordinances and resolutions.**

Ordinances adopting budgets, making appropriations, pertaining to local improvements and assessments, and any ordinance or resolution adopted as an emergency measure shall take effect at the time stated therein. All other ordinances and resolutions shall take effect at the time stated therein, but not less than thirty (30) days from the date of first publication. Ordinances adopted by vote of the electors shall take effect at the time stated therein or, if no time be stated, thirty (30) days after the election. An ordinance or resolution adopted as an emergency measure to provide for the immediate preservation of the public peace, health, welfare, or safety shall describe the emergency in a separate section. The vote of at least two-thirds (⅔) of the entire membership of the Council shall be required to adopt any ordinance or resolution as an emergency measure.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017, and approved by the Governor on February 21, 2018. There were 7,409 votes in favor of the amendment and 2,981 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article II, Section 10, "Effective Date of Ordinances and Resolutions", be amended to clarify that the City of Tulsa may adopt resolutions as emergency measures, and state the effective time thereof, in the same manner as it does ordinances?*

*Prior to this amendment, this section read as follows:*

**Section 10. Effective date of ordinances and resolutions.**

*Ordinances adopting budgets, making appropriations, pertaining to local improvements and assessments, or adopted as an emergency measure shall take effect at the time stated therein. All other ordinances and resolutions shall take effect at the time stated therein, but not less than thirty (30) days from the date of first publication. Ordinances adopted by vote of the electors shall take effect at the time stated therein or, if no time be stated, thirty (30) days after the election. An ordinance or resolution adopted as an emergency measure to provide for the immediate preservation of the public peace, health, welfare, or safety shall describe the emergency in a separate section. The vote of at least two-thirds (⅔) of the entire membership of the Council shall be required to adopt any ordinance or resolution as an emergency measure.*

**Section 11. Recording and publication of ordinances and resolutions.**

Ordinances and resolutions adopted by the Council shall be attested and recorded by the City Clerk. Ordinances and resolutions shall be published in a newspaper of general circulation within the city within ten (10) days after approval. Codifications of ordinances and codes of law adopted by reference need not be published in full unless otherwise provided by the Council.

*NOTE: This section was amended to read as above by an amendment voted April 4, 2006, and approved by the Governor on June 6, 2006. There were 59,513 votes in favor of the amendment and 13,796 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide resolutions approved by the city shall be published?*

*Prior to this amendment, this section read as follows:*

*Section 11. Recording and publication of ordinances and resolutions.*

*Ordinances and resolutions adopted by the Council shall be attested and recorded by the City Clerk. Ordinances shall be published in a newspaper of general circulation within the city within ten (10) days after approval. Codifications of ordinances and codes of law adopted by reference need not be published in full unless otherwise provided by the Council.*

**Section 12. Codification of ordinances.**

The Council shall cause the ordinances to be revised and codified and maintained on a continuing basis. Titles, enacting clauses, emergency sections, and temporary and special ordinances may be omitted from the code. Ordinances and parts of ordinances which are to

be repealed by the adoption of a revised code may be omitted. A revised code may contain new matter. The Council shall cause the code, revisions, and supplements to be printed and the City Clerk shall keep copies of each for sale to the public.

**Section 13. Penalties for violation of ordinances.**

The Council may, subject to the limitations of the Constitution and the laws of Oklahoma, prescribe penalties for the violation of ordinances, including fines and imprisonment.

**Section 14. Charter review.**

The Council shall provide by ordinance for the periodic review of this amended Charter and shall submit to the qualified electors of the city amendments necessary to provide for representative, efficient, and economical administration of city government.

**Section 15. Initiative and referendum.**

All legislative powers vested by this amended Charter in the Council are subordinate and subject to the rights of initiative and referendum reserved to the people by the Constitution of Oklahoma.

**Section 16. Review of administrative actions.**

The Council shall provide by ordinance for the grant, issuance, modification, amendment, or revocation of orders, licenses, permits, certificates, and approvals by the divisions, departments, and agencies of the city. Except when otherwise provided by the laws of Oklahoma, the grant, issuance, modification, amendment, or revocation of orders, licenses, permits, certificates, and approvals shall be subject to review by the Council, upon petition by an aggrieved person, in accord with procedures which the Council shall establish by ordinance. The Council may not abrogate any right of review by a court of competent jurisdiction.

**Section 17. Investigations and hearings.**

The Council may investigate the conduct of the city government and may make appraisals, comments, and recommendations to the Mayor on the efficiency, economy, and effectiveness of administrative practices, methods, systems, and controls. The Council shall hear complaints made by citizens concerning the administration of the city government. The Council may subpoena witnesses, administer oaths, and compel testimony, the production of books, papers, or other evidence necessary for the discharge of the duties of the Council. The Mayor shall designate police officers to serve orders and subpoenas issued by the Council. The Council shall provide by ordinance the penalties for the contempt by any person who refuses to obey a Council order or subpoena.

**Section 18. Delegation of authority to make rules.**

The Council may delegate to the Mayor the authority to make rules, regulations, and orders necessary and proper to implement and administer ordinances.

**Section 19. Interference with appointments or removals.**

Except as authorized by Article X of this amended Charter, or by regulation promulgated by the Civil Service Commission, neither the Council nor Councilors shall

directly or indirectly attempt to dictate, demand, or influence the appointment or removal of any person to or from the classified service; provided, the Council or Councilors may furnish the Mayor information upon the qualification and fitness of any person for office, position, or employment with the city. Except for the purpose of investigation under Article II, Section 17, of this amended Charter, the Council and Councilors shall communicate on matters of city business with the executive and administrative service solely through the Mayor, the heads of each division and department of the City, as well as such other persons as the Mayor shall designate. The Council and Councilors shall not give orders to any subordinate of the Mayor, either publicly or privately; provided, the prohibitions of this sentence shall not apply to the City Clerk and the City Attorney. Violation of this Section by any Councilor shall constitute willful maladministration and be sufficient grounds for removal from office as provided by the laws of Oklahoma.

*NOTE: This section was amended to read as above by an amendment voted March 10, 1998, and approved by the Governor on June 16, 1998. There were 57,059 votes in favor of the amendment and 13,932 votes against the amendment. The title to this amendment read:*

*Shall the existing Charter of the City of Tulsa, as heretofore amended, be further amended to allow the Council and Councilors to communicate on matters of city business with the heads of each division and department of the city?*

*Prior to this amendment, this section read as follows:*

*Section 19. Interference with appointments or removals.*

*Except as authorized by Article X of this amended Charter, or by regulation promulgated by the Civil Service Commission, neither the Council nor Councilors shall directly or indirectly attempt to dictate, demand, or influence the appointment or removal of any person to or from the classified service; provided, the Council or Councilors may furnish the Mayor information upon the qualification and fitness of any person for office, position, or employment with the city. Except for the purpose of investigation under Article II, Section 17, of this amended Charter, the Council and Councilors shall communicate with the executive and administrative service solely through the Mayor and such other persons as the Mayor shall designate. The Council and Councilors shall not give orders to any subordinate of the Mayor, either publicly or privately; provided, the prohibitions of this sentence shall not apply to the City Clerk and the City Attorney. Violation of this Section by any Councilor shall constitute willful maladministration and be sufficient grounds for removal from office as provided by the laws of Oklahoma.*

**Section 20. Settlement of claims of $1 million or more.**

Where a claim is asserted against the City of Tulsa seeking to recover $1 million or more, prior to any settlement of such claim occurring, whether the total dollar amount claimed is comprised of a single claim or multiple claims arising out of a single act, accident, or the same transaction or occurrence, the settlement shall be approved by both the Mayor and by a majority vote of the entire membership of the Council.

*NOTE: This section was added by an amendment voted November 10, 2009, and approved by the Governor on January 5, 2010. There were 41,432 votes in favor of the amendment and 22,727 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to require that before any claim or lawsuit where the demand is equal to or greater than $1 million ($1,000,000) may be settled both the Mayor and City Council must agree to the settlement?*

## ARTICLE III. THE MAYOR

### Section 1.1. Mayor.

The executive and administrative powers of the City of Tulsa and any executive and administrative powers which may be conferred on the city by the Constitution or the laws of Oklahoma shall be vested in and exercised by the Mayor.

### Section 1.2. Salary.

The Mayor shall receive a salary payable as employees of the city are paid. The annual salary received by the mayor shall be as provided by ordinance adopted by a majority vote of the entire membership of the council; provided, no change in salary shall become effective prior to the commencement of the term of office next succeeding the term in which the change is made and then only in the event such change was approved prior to the general election for the next succeeding term.

*(Res. No. 20171, § 2, 3-23-2022, election of 8-23-2022)*

### Section 1.3. Absence, temporary disability, or vacancy.

The Mayor shall file with the City Clerk, from time to time, a designation of one or more officers or employees of the city, other than members of the Council, who shall in the order specified act as Temporary Mayor and perform the duties and exercise the powers of the Mayor during the absence or temporary disability of the Mayor or in the event of a vacancy in the office of the Mayor. The designation by the Mayor shall be subject to confirmation by a majority vote of the entire membership of the Council. Should the Mayor fail to file such designation, the Council shall designate one or more officers or employees of the city, other than members of the Council, who shall in the order specified act as Temporary Mayor.

### Section 1.4. Executive and administrative powers and duties.

The Mayor shall be the chief executive and administrative officer of the city and shall:

**A.** Identify the needs and establish the objectives and priorities of the city and make recommendations to the Council for meeting the needs and achieving the objectives;

**B.** Prepare and file with the Council annually, on or before the 1st day of May, except in the year 1990, a plan of organization for all boards, commissions, authorities, agencies, divisions, and departments created by this amended Charter, ordinance, agreement, executive order, or pursuant to law; in the year 1990 the plan of organization shall be filed with the Council on or before the 1st day of September;

**C.** Prepare and submit to the Council annually, on or before the first day of May, an operating budget, a capital program, and a capital budget; submit recommendations for amending adopted budgets, provided, that no revenue derived from the 2017 Public Safety Sales Tax, as set forth in detail in Title 43-I Tulsa Revised Ordinances, shall ever be budgeted, spent or used for any purpose other than public safety as described therein.

**D.** Expend as provided by law the funds of the city in accord with the adopted operating and capital budgets of the city;

**E.** Preserve the peace and enforce the provisions of this amended Charter and all ordinances, rules, and regulations;

**F.** Appoint, supervise, and remove all officers and employees of the city, except the employees of the City Auditor, who shall be appointed, supervised, and may be removed by the City Auditor, and the employees of the Council, who shall be appointed, supervised, and may be removed by the Council, all subject to the provisions of Articles X and XI of this amended Charter;

**G.** Appoint, subject to confirmation by a majority vote of the entire membership of the Council, the members of all boards, commissions, authorities, and agencies created by this amended Charter, ordinance, agreement, or pursuant to law, and exercise general control and supervision thereof, provided, all appointees shall, as a condition of their appointment and continued service, be qualified electors and maintain their principal residence within the city limits of the City of Tulsa;

**H.** Establish standards of administration and coordinate all administrative services;

**I.** Adopt and implement classification plans, pay plans and agreements, pension plans, and rules and regulations for vacation, sick and other leaves for the different classes, ranks, and grades of officers and employees in the classified and unclassified service; pay plans and agreements, and pension plans shall be subject to the appropriation of funds by the Council;

**J.** Administer and enforce the terms and conditions of all contracts;

**K.** Collect, deposit, invest, and maintain accounts of all revenues, fines, licenses, fees, and funds of the city;

**L.** Establish and supervise a system of general and cost accounting and maintain inventories of the property of the city.

**M.** Purchase equipment, materials, supplies, and services and construct, operate, maintain, and repair public improvements, buildings, and facilities;

**N.** Establish, construct, and maintain streets, sidewalks, alleys, public ways, waterworks, sanitary sewers, sewage disposal systems, storm sewers, storm water drainage systems, waterports, airports, solid waste management systems, transportation systems, and other public improvements and facilities;

**O.** Provide, administer, maintain, and operate all police, fire protection, civil defense, and emergency services and functions;

**P.** Employ, subject to the approval of the Council, independent auditors which are required by law; and

**Q.** Exercise such other powers and perform such other duties as prescribed by this amended Charter, by ordinance, or by law.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017. There were 6,602 votes in favor of the amendment and 3,640 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article II, "The Council" Section 7.1, "Budgets" and Article III, "The Mayor," Section 1.4, "Executive and Administrative Powers and Duties", Sub-Section C, be amended to prohibit any revenues derived from the 2017 Public Safety*

*Sales Tax from ever being used for any purpose other than public safety as described therein, and to revoke the ability to amend any portion of Title 43-I Tulsa Revised Ordinances which could permit such other use?*

*Prior to this amendment, subsection C. read as follows:*

**C.** *Prepare and submit to the Council annually, on or before the first day of May, an operating budget, a capital program, and a capital budget; submit recommendations for amending adopted budgets;*

*NOTE: Subsection G of this section was amended to read as above by an amendment voted April 4, 2006, and approved by the Governor on June 6, 2006. There were 61,864 votes in favor of the amendment and 11,757 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide members of city boards, commissions, authorities, and agencies shall be residents and qualified electors of the City of Tulsa?*

*Prior to this amendment, subsection G read as follows:*

**G.** *Appoint, subject to confirmation by a majority vote of the entire membership of the Council, the members of all boards, commissions, authorities, and agencies created by this amended Charter, ordinance, agreement, or pursuant to law, and exercise general control and supervision thereof;*

**Section 1.5. Powers with respect to council.**

The Mayor may:

**A.** Send messages and recommendations to the Council;

**B.** Attend Council meetings and address the Council;

**C.** Call special sessions of the Council;

**D.** Request the purpose of any decision or action of the Council; and

**E.** Veto ordinances and resolutions as provided in Article II of this amended Charter.

**Section 1.6. Organization of the city.**

The Mayor may by executive order:

**A.** Create or abolish divisions for the management of the departments of the city;

**B.** Create or abolish departments;

**C.** Transfer and assign functions and duties or any part thereof from one division or department to another; and

**D.** Assign new functions or duties to any division or department.

Executive orders creating or abolishing divisions shall be presented to the Council at the next regular meeting for approval or disapproval. Such executive orders shall become effective upon approval of the Council by a majority vote of its entire membership or upon the failure of the Council to act thereon for a period of thirty (30) days following the date of first presentation to the Council.

**Section 2. City clerk.**

There is hereby created the office of the City Clerk. The City Clerk shall:

**A.** Attest and affix the seal of the city to all documents as required;

**B.** Maintain a record of all ordinances and resolutions adopted by the Council;

**C.** Have custody of the seal of the city and of documents, records, and archives as provided by law, ordinance, or order of the Mayor; and

**D.** Perform such other duties as assigned by the Mayor or as prescribed by this amended Charter, by ordinance, or by the laws of Oklahoma.

**Section 3. City treasurer.**

There is hereby created the office of City Treasurer. The City Treasurer shall:

**A.** Deposit and maintain the funds of the city in depositories approved by the Council;

**B.** Invest the funds of the city; and

**C.** Perform such other duties as assigned by the Mayor or as prescribed by this amended Charter, by ordinance, or by the laws of Oklahoma.

**Section 4. City attorney.**

There is hereby created the office of City Attorney. The City Attorney shall be licensed to practice law in Oklahoma. The City Attorney shall be the chief legal advisor and attorney for the city and all offices, divisions, departments, boards, authorities, commissions, and agencies of the city. The City Attorney shall:

**A.** Provide, supervise, and manage all legal services;

**B.** Attend all meetings of the Council and provide legal services and advice;

**C.** Assist and advise the Mayor, the City Auditor, the Council, and Councilors;

**D.** Approve as to form and legality all ordinances and resolutions, or inform the Mayor and Council, in writing if requested, the reasons for not approving them, provided that the absence of any such approval shall not prevent the Mayor and Council from adopting and approving any such ordinance or resolution;

**E.** Initiate with the approval of the Mayor actions, suits, and applications in the name of the city;

**F.** Prosecute or defend all actions, suits, cases, or proceedings to which the city is a party;

**G.** Prosecute violators of the ordinances and of the laws of Oklahoma as is proper or required by law;

**H.** Approve as to form all contracts, bonds, and other instruments to which the city is a party or which are required by the city;

**I.** Perform such other legal duties and services as the Mayor may direct or as the Council may require by ordinance or resolution; and

**J.** Perform any duties imposed by law upon the chief legal officer of a city.

*(Res. No. 20047, Prop. No. 5, 5-20-20/Elec. of 8-25-20)*

## ARTICLE IV. THE CITY AUDITOR

### Section 1. Office of city auditor created.

There is hereby created the office of City Auditor which shall consist of the City Auditor, a Deputy City Auditor, and such assistants as the Council may provide. The City Auditor shall be elected as provided in Article VI of this amended Charter and shall be a Certified Public Accountant or a Certified Internal Auditor at the time of filing for the office of City Auditor and this certification shall be a necessary qualification for the office of City Auditor.

*NOTE: This section was amended to read as above by an amendment voted November 10, 2009, and approved by the Governor on January 5, 2010. There were 54,224 votes in favor of the amendment and 10,442 votes against the amendment. The title to this amendment read:*

*Shall the existing charter of the City of Tulsa, as heretofore amended, be further amended to require that any person filing for an holding the office of City Auditor must be a Certified Public Accountant or Certified Internal Auditor?*

*Prior to this amendment, this section read as follows:*

*Section 1. Office of City Auditor created. There is hereby created the office of City Auditor which shall consist of the City Auditor, a Deputy City Auditor, and such assistants as the Council may provide. The City Auditor shall be elected as provided in Article VI of this amended Charter.*

### Section 2. Salary.

The salary of the City Auditor shall be seventy percent (70%) of the salary of the Mayor payable as employees of the city are paid.

### Section 3. Duties.

The City Auditor shall:

**A.** Examine periodically the accounts of all offices, divisions, departments, boards, authorities, commissions, and agencies of the city charged with the receipt, disbursement, management, or custody of funds of the city and report in writing the results of such examinations to the Mayor and Council;

**B.** Make such other examinations and audits of the financial records, accounts, and inventories of properties of the city at such times as the City Auditor may deem necessary or as the Council shall direct to determine whether the financial records, accounts, and inventories of properties of the city are being kept and maintained in accord with applicable laws and in accord with generally accepted governmental accounting principles;

**C.** Make appraisals, comments, and recommendations to the Mayor and the Council on the systems and procedures for keeping and maintaining the financial records, accounts, and inventories;

**D.** Report to the Mayor and the Council the action taken by any office, employee, division, department, board, authority, commission, or agency on the recommendations of the City Auditor with respect to the systems and procedures for keeping and maintaining the financial records, accounts, and inventories;

**E.** Make available to the appropriate prosecuting attorney the results of any regular or special examination or audit which reveals irregularities or dereliction in the receipt, disbursement, management, or custody of funds or properties of the city which may be grounds for prosecution;

**F.** Conduct such internal audits of city programs, activities, and functions as the Council may require by ordinance or resolution and report in writing the results of such audits to the Mayor and Council; and

**G.** Perform such other duties and services as the Council may require by ordinance or resolution.

*NOTE: This section was amended by adding a new paragraph F to read as above and re-lettering the existing paragraph F as paragraph G by an amendment voted March 1, 1994, and approved by the Governor on May 2, 1994. There were 59,401 votes in favor of the amendment and 8,238 votes against the amendment. The title to this amendment read:*

*Shall the existing Charter of the City of Tulsa, as heretofore amended, be further amended to provide for the City Auditor to conduct such internal audits of city programs, activities, and functions as the Council may require by ordinance or resolution and report in writing the results of such audits to the Mayor and Council?*

**Section 4. Budget.**

The budget as adopted by the Council shall provide sufficient funds for the performance of the duties of the City Auditor. Appropriations for the office of the City Auditor shall not be subject to item veto or reduction by the Mayor.

**Section 5. Production of records and accounts.**

All officers, employees, divisions, departments, boards, authorities, commissions, and agencies of the city shall produce and make available to the City Auditor any records, accounts, personnel, facilities, and inventories which the City Auditor may request or require.

*NOTE: This section was amended to read as above by an amendment voted February 13, 1996, and approved by the Governor on June 21, 1996. There were 49,766 votes in favor of the amendment and 7,834 votes against the amendment. The title to this amendment read:*

*Shall the existing charter of the City of Tulsa, as heretofore amended, be further amended to require all officers, employees, divisions, departments, boards, authorities, commissions, and agencies of the city to produce and make available to the City Auditor any records, accounts, personnel, facilities, and inventories which the City Auditor may request or require?*

*Prior to this amendment, this section read as follows:*

**Section 5. Production of records and accounts.**

*All officers, employees, divisions, departments, boards, authorities, commissions, and agencies of the city shall produce and make available to the City Auditor any records, accounts, and inventories which the City Auditor may request or require.*

## ARTICLE V. BOARDS AND AUTHORITIES

### Section 1.1. Tulsa airport authority created.

There is hereby created an agency of the City of Tulsa to be known as the Tulsa Airport Authority which shall consist of the Mayor and four (4) members appointed by the Mayor, subject to confirmation by a majority vote of the entire membership of the Council.

### Section 1.2. Appointment.

Members of the Tulsa Airport Authority serving as of the effective date of this amended Charter shall continue to serve until the expiration of their respective terms. Upon the expiration of the terms of such members, appointments shall be made for terms of four (4) years. Appointed members of the Tulsa Airport Authority shall be qualified electors of the city, shall serve without compensation, and shall not hold or be candidates for an elective public office.

### Section 1.3. Representative of the mayor.

The Mayor may authorize an officer or employee of the city to attend meetings of the Tulsa Airport Authority as the representative of the Mayor and such officer or employee shall be empowered to act and vote as a member of the Tulsa Airport Authority.

### Section 1.4. Vacancies.

In the event of the death, resignation, or removal from office of a member of the Tulsa Airport Authority other than the Mayor, the Mayor shall appoint a qualified elector of the city to fill the unexpired term of such member, subject to the confirmation by a majority vote of the entire membership of the Council.

### Section 1.5. Removal from office.

Members of the Tulsa Airport Authority shall be removed only for cause as provided in the Constitution and laws of Oklahoma for the removal of municipal elective officers.

### Section 1.6. Organization.

The Tulsa Airport Authority shall adopt rules for conducting its affairs and shall elect a Chairman and Vice Chairman from among its members.

### Section 1.7. Meetings.

The Tulsa Airport Authority shall hold at least one (1) regularly scheduled meeting each month. All meetings shall be open to the public as provided by the laws of Oklahoma.

### Section 1.8. Airport funds.

The Tulsa Airport Authority shall operate any and all airports as a separate utility and may accept funds from any source for or in aid of the acquisition, operation, maintenance, development, and improvement of the airports and air navigation facilities of the city. All such funds and all income and revenue derived from the operation of airports and airport facilities and from property acquired for airport purposes shall be deposited with the City Treasurer to the credit of the Airport Fund and shall be paid out only upon the order of the Tulsa Airport Authority; provided, that nothing herein shall be deemed to prohibit

compliance with requirements made prior or subsequent to the effective date of this amended Charter for airport bond retirement purposes. No funds shall be paid out of the Airport Fund and no funds shall be paid from accounts now or hereafter created from the proceeds of the sale of bonds for airport purposes except on warrants signed by the Chairman or Vice Chairman of the Tulsa Airport Authority and countersigned by the Mayor.

**Section 1.9. Powers.**

The Tulsa Airport Authority may adopt, amend, or repeal rules and regulations for the maintenance and operation of any and all airports belonging to the city and may enter into contracts for the acquisition, establishment, operation, improvement, maintenance, leasing, or other disposition of the airports of the city; provided, all such rules and regulations shall be subject to the approval of the Council and all of such contracts shall be subject to the approval of the Mayor. The Tulsa Airport Authority may employ, engage, or contract for the services of an attorney, auditors, and other special qualification personnel, subject to the approval of the Mayor.

**Section 1.10. Reports.**

The Tulsa Airport Authority shall submit to the Mayor and Council quarterly reports for the calendar quarters of the transactions of the Tulsa Airport Authority.

**Section 2.1. Tulsa utility board created.**

There is hereby created an agency of the City of Tulsa to be known as the Tulsa Utility Board which shall consist of the Mayor and six (6) members appointed by the Mayor, subject to confirmation by a majority vote of the entire membership of the Council.

**Section 2.2. Qualifications.**

Each appointed member of the Tulsa Utility Board shall be a qualified elector of the city. Not more than three (3) of the appointed members of the Tulsa Utility Board shall be members of or affiliated with the same political party. Appointed members of the Tulsa Utility Board shall not hold or be candidates for an elective public office.

**Section 2.3. Representative of the mayor.**

The Mayor may authorize an officer or employee of the city to attend meetings of the Tulsa Utility Board as the representative of the Mayor and such officer or employee shall be empowered to act and vote as a member of the Tulsa Utility Board.

**Section 2.4. Removal from office.**

Members of the Tulsa Utility Board shall be removed only for cause as provided in the Constitution and laws of Oklahoma for the removal of municipal elective officers.

**Section 2.5. Organization.**

The Tulsa Utility Board shall elect a Chairman and Vice Chairman from among its members and shall adopt rules for conducting its meetings.

**Section 2.6. Meetings.**

The Tulsa Utility Board shall hold such regular and special meetings as are necessary; provided, the Tulsa Utility Board shall hold at least one (1) regular meeting each month.

All meetings shall be open to the public as provided by the laws of Oklahoma. No act of the Tulsa Utility Board shall be valid unless such act shall have received the affirmative vote of a majority of all the members of the Tulsa Utility Board.

**Section 2.7. Term of office.**

Members of the Tulsa Utility Board serving as of the effective date of this amended Charter shall continue to serve until the expiration of their respective terms. Upon the expiration of the terms of such members of the Tulsa Utility Board, appointments shall be made for terms of four (4) years.

**Section 2.8. Vacancies.**

In the event of the death, resignation, or removal from office of an appointed member of the Tulsa Utility Board, the Mayor shall appoint a qualified elector of the city to fill the unexpired term of such member, subject to confirmation by a majority vote of the entire membership of the Council.

**Section 2.9. Powers and duties.**

The Tulsa Utility Board may exercise full, complete and exclusive rights, powers, and duties in performing each and all and every of the things to be done and performed in the construction, extension, improvement, operation, management, and maintenance of the waterworks system and system of sanitary sewers and sewage disposal plants of the city. It shall be the mandatory duty of the Tulsa Utility Board to fix and establish rates and prices for services rendered and commodities sold sufficient to meet the mandatory provisions elsewhere provided in this Article and it shall be the mandatory duty of the Council to approve all such rates and prices herein authorized to be fixed and established by the Tulsa Utility Board. The Tulsa Utility Board may enter into such contracts necessary for the performance of its duties and may appoint, employ, and contract for the services of superintendents, attorneys, managers, hydraulic, civil and management engineers, and such employees necessary for the performance of its duties, all subject to the approval of the Mayor.

**Section 2.10. Bond proceeds and appropriations.**

The Tulsa Utility Board shall administer the proceeds of all waterworks, sanitary sewer, and sewage disposal system bonds voted, issued, and sold and over all funds appropriated by the Council for the construction, reconstruction, extension, improvement, repair, maintenance, and operation of the waterworks system and system of sanitary sewers and sewage disposal plants, all subject to the approval of the Mayor.

**Section 2.11. Compensation.**

The appointed members of the Tulsa Utility Board shall receive no salary or other compensation for their services; provided, members of the Tulsa Utility Board may be reimbursed for actual and necessary travel and other expenses incurred in the performance of their duties.

**Section 2.12. Budgets.**

The Tulsa Utility Board, on or before a date specified by the Mayor, shall prepare and recommend to the Mayor an estimate of the needs of the waterworks, sanitary sewers and sewage disposal systems for the next fiscal year.

**Section 2.13. Sinking fund requirements from the operation of the waterworks system and system of sanitary sewers and sewage disposal plants.**

It shall be the mandatory duty of the Council each year to apportion and have credited to the Sinking Fund of the city from the income and earnings of the waterworks, sanitary sewers and sewage disposal systems a sum equal to not less than fifty percent (50%) of the annual amounts required by law and necessary to pay the principal and interest on any waterworks, sanitary sewers or sewage disposal systems bonds voted, issued, and sold on or after January 1, 1948. Such apportionments shall be made monthly in a sum equal to not less than one-twelfth (1/12) of the amount required to be apportioned hereunder during each year and such apportionments shall continue to be made until all of the interest and principal of any such bonds shall have been fully paid or provided for. The provisions of this section shall not be construed as a pledge of the revenues referred to or as authorizing the pledge of the revenues for the payment of the interest and principal of any bonds, but shall be construed as an adopted policy of the city government providing for the apportionment of revenues derived from the operation of the waterworks, sanitary sewers and sewage disposal systems of the city and shall be subject to amendment or repeal as any other provision of this amended Charter.

**Section 2.14. Penalty.**

Failure on the part of any official of the city to perform the mandatory duties required in this Article shall constitute willful maladministration and be sufficient grounds for removal from office as provided by the laws of Oklahoma.

**Section 3.1. Park and recreation board created.**

There is hereby created an agency of the city to be known as the Tulsa Park and Recreation Board which shall consist of the Mayor and four (4) members appointed by the Mayor, subject to confirmation by a majority vote of the entire membership of the Council.

**Section 3.2. Appointment.**

Members of the Tulsa Park and Recreation Board serving as of the effective date of this amended Charter shall continue to serve until the expiration of their respective terms. Upon the expiration of the terms of such members of the Tulsa Park and Recreation Board, appointments shall be made for terms of four (4) years. Appointed members of the Tulsa Park and Recreation Board shall be qualified electors of the city, shall serve without compensation, and shall not hold or be candidates for an elective public office.

**Section 3.3. Representative of the mayor.**

The Mayor may authorize an officer or employee of the city to attend meetings of the Tulsa Park and Recreation Board as the representative of the Mayor and such officer or employee shall be empowered to act and vote as a member of the Tulsa Park and Recreation Board.

**Section 3.4. Vacancies.**

In the event of the death, resignation, or removal from office of a member of the Tulsa Park and Recreation Board, other than the Mayor, the Mayor shall appoint a qualified elector of the city to fill the unexpired term of such member, subject to confirmation by a majority vote of the entire membership of the Council.

**Section 3.5. Removal from office.**

Members of the Tulsa Park and Recreation Board shall be removed only for cause as provided in the Constitution and laws of Oklahoma for the removal of municipal elective officers.

**Section 3.6. Organization.**

The Tulsa Park and Recreation Board shall adopt rules for conducting its meetings and shall elect a Chairman and Vice Chairman from among its members. The Tulsa Park and Recreation Board shall hold at least one (1) regularly scheduled meeting each month. All meetings shall be open to the public as provided by the laws of Oklahoma.

**Section 3.7. Duties.**

The Tulsa Park and Recreation Board shall:

**A.** Advise the Mayor and the Council on the establishment, control, management, operation, improvement, and maintenance of the public parks, playgrounds, museums, boulevards, forests, and other public recreational facilities of the city, herein referred to as the "park and recreational facilities;"

**B.** Adopt rules and regulations for the operation of the park and recreational facilities, subject to the approval of the Council;

**C.** Fix fees and charges for the use of the park and recreational facilities, subject to the approval of the Council;

**D.** Recommend to the Mayor, on or before a date specified by the Mayor, an operating budget, a capital budget, and a capital program for the park and recreational facilities;

**E.** Review and recommend to the Mayor the approval or modification of plans for the construction or improvement of park and recreational facilities;

**F.** Recommend to the Mayor the acceptance of donations for the benefit or improvement of the park and recreational facilities and any restrictions thereon; and

**G.** Perform such other duties as established by ordinance.

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## ARTICLE VI. ELECTION AND QUALIFICATION OF OFFICERS

### Section 1.1. Mayor and councilors—Election.

On the first Tuesday in April in the year 1990, there shall be elected by the qualified electors of the city at a general election a Mayor, a City Auditor, and nine (9) Councilors. The Councilors to be elected from each of the nine (9) election districts shall be designated as Councilor, Election Districts One (1) through Nine (9), respectively.

### Section 1.2. Terms.

**A. Mayor.** The term of office of the Mayor elected in the year 2009 shall commence on the first Monday in December in the year 2009, and shall expire on the first Monday in December in the year 2013; the term of office of the Mayor elected in the year 2013 shall commence on the first Monday in December in the year 2013 and shall expire on the first Monday in December in the year 2016. Thereafter, the Mayor shall serve for a term of four (4) years.

**B. City Auditor.** The City Auditor shall serve a term of two (2) years until the election year 2026. Commencing with the election year 2026 and ever after, the City Auditor shall serve for a term of four (4) years, beginning on the first Monday in December, in the year 2026.

**C. Councilors.** The term of office of the Councilors elected in the year 2009 shall expire on the first Monday in December in the year 2011. The term of office of the Councilors elected in the year 2011 shall commence on the first Monday in December in the year 2011 and shall expire as follows: the term of office for Councilors in Election Districts 1, 4, and 7 shall serve for a term of one (1) year and shall expire on the first Monday in December 2012; thereafter the Councilors in Election Districts 1, 4, and 7 shall serve for a term of two (2) years. The term of office for Councilors in Election Districts 2, 5, and 8 shall be for a term of two (2) years and shall expire on the first Monday in December in the year 2013; thereafter the Councilors in Election Districts 2, 5, and 8 shall serve for a term of one (1) year, expiring on the first Monday in December in the year 2014, and thereafter the Councilors in Election Districts 2, 5 and 8 shall serve for a term of two (2) years. The term of office for Councilors in Election Districts 3, 6, and 9 shall be for a term of three (3) years and shall expire on the first Monday in December in the year 2014; thereafter the Councilors in Election Districts 3, 6, and 9 shall be for a term of two (2) years. All terms of office shall commence and expire at 2:00 o'clock p.m.

**D. Election Year Cycles.** Except as expressly provided herein, all elected officials of the City of Tulsa shall be elected for terms of two (2) years in even-numbered years.

*(Res. No. 20171, § 6, 3-23-2022, election of 8-23-2022)*

*NOTE: This Section was amended to read as above by an amendment voted November 8, 2011, and approved by the Governor on February 21, 2012. There were 18,772 votes in favor of the amendment and 13,491 votes against the amendment. The title to the amendment read:*

*Shall the Tulsa Charter be amended to provide for general elections in November and primary elections in August in even-numbered years; to provide that the term of the Office of the Mayor elected in 2013 shall be for a term of three years and thereafter the term shall be*

*four years; that the term of Office of the Auditor elected in 2013 shall be for a term of one year and thereafter the term shall be two years; and that the term of office for Councilors in Districts 1, 4 and 7 elected in 2012 shall be for a term of two years; for Councilors in Districts 2, 5 and 8 elected in 2013 shall be for a term of one year and thereafter shall be a term of two years and for Councilors in Districts 3, 6 and 9 elected in 2014 shall be a term of two years?*

*Prior to this amendment, this Section read as follows:*

**Section 1.2. Terms.**

*The term of office of the Mayor elected in the year 2009 shall commence on the first Monday in December in the year 2009, and shall expire on the first Monday in December in the year 2009, and shall expire on the first Monday in December in the year 2013; thereafter the Mayor shall serve for a term of four (4) years. The terms of office of the Councilors and the City Auditor elected in the year 2009 shall commence on the first Monday in December in the year 2009, and shall expire on the first Monday in December in the year 2011; thereafter, the City Auditor shall serve for a term of two (2) years. The term of office of the Councilors elected in the year 2009 shall expire on the first Monday in December in the year 2011. The term of office of the Councilors elected in the year 2011 shall commence on the first Monday in December in the year 2011 and shall expire as follows: the term of office for Councilors in Election Districts 1, 4, and 7 shall serve for a term of one (1) year and shall expire on the first Monday in December 2012; thereafter the Councilors in Election Districts 1, 4, and 7 shall serve for a term of three (3) years. The term of office for Councilors in Election Districts 2, 5, and 8 shall be for a term of two (2) years and shall expire on the first Monday in December in the year 2013; thereafter the Councilors in Election District 2, 5, and 8 shall serve for a term of three (3) years. The term of office for Councilors in Election Districts 3, 6, and 9 and shall be for a term of three (3) years and shall expire on the first Monday in December in the year 2014; thereafter the Councilors in Election Districts 3, 6, and 9 shall be for a term of three (3) years. All terms of office shall commence and expire at 2:00 o'clock p.m.*

*NOTE: This Section was amended to read as above by an amendment voted November 10, 2009, and approved by the Governor on January 5, 2010. There were 35,719 votes in favor of the amendment and 28,607 votes against the amendment. The title to the amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide that City Councilors will serve for three-year terms, which shall be staggered so that no more than three council districts will have an election in any one year?*

*Prior to this amendment, this Section read as follows:*

**Section 1.2. Terms.**

*The term of office of the Mayor elected in 2006 shall expire on the first Monday in December 2009. The term of office of the Mayor elected in the year 2009 shall commence on the first Monday in December in the year 2009, and shall expire on the first Monday in December in the year 2013; thereafter, the Mayor shall serve for a term of four (4) years. The terms of office of the Councilors and the City Auditor elected in the year 2008 shall commence on the Monday in April immediately following the general election in the year*

*2008, and shall expire on the first Monday in December in the year 2009; thereafter, the City Auditor and the Councilors shall serve for terms of two (2) years. All terms of office shall commence and expire at 2:00 o'clock p.m.*

*NOTE: This Section was amended to read as above by an amendment voted April 1, 2008, and approved by the Governor on May 1, 2008. There were 10,142 votes in favor of the amendment and 2,843 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide for fall elections in years where an elected officer's term expires by establishing that the declaration of candidacy will be filed starting the second Monday through the next succeeding Wednesday in July 2009 and during the same period every year thereafter that an elected official's term expires; for primary elections to be held in September 2009 on the date established by state law, and every year thereafter that an elected official's term expires; and for general elections to be held in November 2009 on the date established by state law, and every year thereafter that an elected official's term expires?*

*Prior to this amendment, this Section read as follows:*

**Section 1.2. Terms.**

*The term of office of the Mayor elected in the year 2010 shall commence on the Monday in April immediately following the general election in the year 2010 and shall expire on the Monday in April immediately following the general election in the year 2014; thereafter, the Mayor shall serve for a term of four (4) years. The terms of office of the Councilors and the City Auditor elected in the year 2008 shall commence on the Monday in April immediately following the general election in the year 2008 and shall expire on the Monday in April immediately following the general election in the year 2010; thereafter, the City Auditor and the Councilors shall serve for terms of two (2) years. All terms of office shall commence and expire at 2:00 o'clock p.m.*

*NOTE: This Section was amended to read as above by an amendment voted April 4, 2006, and approved by the Governor on June 6, 2006. There were 61,443 votes in favor of the amendment and 10,778 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to establish election dates and terms of office to correspond with state law providing for the conduct of elections by county election boards?*

*Prior to this amendment, this Section read as follows:*

**Section 1.2. Terms.**

*The term of office of the Mayor elected in the year 1990 shall commence on the first Tuesday after the first Monday in May in the year 1990 and shall expire on the first Monday in April in the year 1994; thereafter, the Mayor shall serve for a term of four (4) years. The terms of office of the Councilors and the City Auditor elected in the year 1990 shall commence on the first Tuesday after the first Monday in May in the year 1990 and shall expire on the first Monday in April in the year 1992; thereafter, the City Auditor and the Councilors shall serve for terms of two (2) years. All terms of office shall commence and expire at 2:00 o'clock p.m.*

**Section 1.3. General elections.**

In August in the year 2018, and in August each year thereafter in which an elected officer's term expires, a general election shall be held on the day specified by the laws of Oklahoma for the election of those officers whose terms expire.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017, and approved by the Governor on February 21, 2018. There were 8,179 votes in favor of the amendment and 2,246 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article VI, "Election and Qualification of Officers", be amended to hold elections for city offices in August of an election year, require candidates for city offices to file their candidacy in June, and provide for run-off elections, whenever necessary, in November?*

*Prior to this amendment, this section read as follows:*

**Section 1.3. General elections.**

*In November in the year 2011, and in November each year thereafter in which an elected officer's term expires, a general election shall be held on the day specified by the laws of Oklahoma for the election of those officers whose terms expire*

*NOTE: This section was amended to read as above by an amendment voted November 10, 2009, and approved by the Governor on January 5, 2010. There were 35,719 votes in favor of the amendment and 28,607 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide that City Councilors will serve for three-year terms, which shall be staggered so that no more than three council districts will have an election in any one year?*

*Prior to this amendment, this section read as follows:*

*Section 1.3. General elections.*

*In November in the year 2009, and in November every year thereafter in which an elected officer's term expires, a general election shall be held on the day specified by the laws of Oklahoma for the election of those officers whose terms expire.*

*NOTE: This section was amended to read as above by an amendment voted April 1, 2008, and approved by the Governor on May 1, 2008. There were 10,142 votes in favor of the amendment and 2,843 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide for fall elections in years where an elected officer's term expires by establishing that the declaration of candidacy will be filed starting the second Monday through the next succeeding Wednesday in July 2009 and during the same period every year thereafter that an elected official's term expires; for primary elections to be held in September 2009 on the date established by state law, and every year thereafter that an elected official's term expires; and for general elections to be held in November 2009 on the date established by state law, and every year thereafter that an elected official's term expires?*

*Prior to this amendment, this section read as follows:*

**Section 1.3. General elections.**

*In April in the year 2008 and in April each two (2) years thereafter on the day specified by the laws of Oklahoma, a general election shall be held for the election of those officers whose terms expire.*

*NOTE: This section was amended to read as above by an amendment voted April 4, 2006, and approved by the Governor on June 6, 2006. There were 61,443 votes in favor of the amendment and 10,778 votes against the amendment. The title to this amendment read:*

*Shall the charter of the City of Tulsa be amended to establish election dates and terms of office to correspond with state law providing for the conduct of elections by county election boards?*

*Prior to this amendment, this section read as follows:*

**Section 1.3. General elections.**

*On the second Tuesday in March in the year 1996, and on the same day each two (2) years thereafter, a general election shall be held for the election of those officers whose terms expire.*

*NOTE: This section was amended to read as above by an amendment voted March 1, 1994, and approved by the Governor on May 2, 1994. There were 47,564 votes in favor of the amendment and 19,802 votes against the amendment. The title to this amendment read:*

*Shall the existing Charter of the City of Tulsa, as heretofore amended, be further amended to change the General Elections from the first Tuesday in March to the second Tuesday in March in the year 1996, and on the same day each two (2) years thereafter?*

*Prior to this amendment, this section read as follows:*

**Section 1.3. General elections.**

*On the first Tuesday in March in the year 1992 and each two (2) years thereafter, a general election shall be held for the election of those officers whose terms expire.*

**Section 1.4. Qualification of electors.**

All qualified electors of the city, as determined by Oklahoma law and the rules of the State Election Board, may vote in the election of the Mayor and the City Auditor. Only qualified electors of the city residing in an election district, as determined by Oklahoma law and the rules of the State Election Board, or those who have changed their residency in the city within a period of time which would prevent valid registration to vote in their new election district prior to the current election, may vote in the election of the Councilor for that election district.

*NOTE: This section was amended to read as above by an amendment voted April 1, 2008, and approved by the Governor on May 1, 2008. There were 9,710 votes in favor of the amendment and 3,355 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide that a qualified elector of an election district, as determined by Oklahoma law and the rules of the State Election Board, will still be eligible to vote in an election district if the qualified elector's change in residence is within the period of time which would prevent valid registration in their new election district prior to the current election?*

*Prior to this amendment, this section read as follows:*

**Section 1.4. Qualification of electors.**

*All qualified electors of the city may vote in the election of the Mayor and the City Auditor. Only qualified electors of the city residing in an election district may vote in the election of the Councilor for that election district.*

**Section 2.1. Elections to be non-partisan.**

Beginning in the calendar year following the adoption of this amendment of the Charter, the election of City officers shall be non-partisan, and all candidates shall file without their political party affiliation.

*NOTE: This Section was amended to read as above by an amendment voted November 8, 2011, and approved by the Governor on February 21, 2012. There were 17,795 votes in favor of the amendment and 14,594 votes against the amendment. The title to the amendment read:*

*Shall the Charter of the City of Tulsa, Oklahoma, be amended to provide for the non-partisan election of City Officers?"*

**Section 2.2. Election procedure.**

In the calendar year 2018, and in each year thereafter in which an elected officer's term expires, a general election shall be held in August on the day specified by the laws of Oklahoma, at which time the qualified electors of the city shall fill the the offices of those whose terms expire. Only qualified electors residing in an election district may vote in the election for candidates for the office of Councilor for such election district. All qualified electors residing in the city may vote in the election for candidates for a city-wide office such as Mayor or City Auditor. If a candidate for office is unopposed at the election or becomes unopposed by death, disqualification or withdrawal, such candidate shall be deemed elected. If a candidate for an office receives more than fifty percent (50%) of all votes cast for that office at the election, such candidate shall be deemed elected. If more than two (2) candidates file for an office and no candidate receives more than fifty percent (50%) of all votes cast at the election for that office, the names of the several candidates for the office receiving the greatest number of votes totaling fifty percent (50%) at such elections shall be placed on the ballot at a run-off election in November, on the day specified by the laws of Oklahoma, and the candidate receiving the greatest number of votes cast at said run-off election shall be deemed elected. In the event of a tied vote among the said candidates, the election shall be decided by lot.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017, and approved by the Governor on February 21, 2018. There were 8,179 votes in favor of the amendment and 2,246 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article VI, "Election and Qualification of Officers", be amended to hold elections for city offices in August of an election year, require candidates for city offices to file their candidacy in June, and provide for run-off elections, whenever necessary, in November?*

*Prior to this amendment, this section read as follows:*

**Section 2.2. Primary elections.**

*In the calendar year of the adoption of this amendment of the Charter, and in each year thereafter in which an elected officer's term expires, a primary election shall be held on the day specified by the laws of Oklahoma, at which time the qualified electors of the city shall nominate candidates for the office of those whose terms expire. Only qualified electors residing in an election district may vote in the primary election for candidates for the office of Councilor for such election district. All qualified electors residing in the city may vote in the primary election for candidates for a city-wide office such as Mayor or City Auditor. If a candidate for office is unopposed at the primary election or becomes unopposed by death, disqualification or withdrawal, such candidate shall be deemed elected. If a candidate for an office receives more than fifty percent (50%) of all votes cast for that office at the primary election, such candidate shall be deemed elected. If only two (2) candidates file for an office, there shall be no primary election, and the names of the two (2) candidates shall be placed on the ballot at the general election. If more than two (2) candidates file for an office and no candidate receives more than fifty percent (50%) of all votes cast at the primary election for that office, the two (2) candidates for each office receiving the greatest number of votes at such primary elections shall be deemed nominated and placed on the ballot at the general election, unless the number of votes for such two (2) candidates does not exceed fifty percent (50%) of all votes cast for that office; in that event the several candidates receiving the greatest number of votes and for whom the votes cast at the primary election total at least fifty percent (50%) of all votes cast for that office shall participate in a run-off primary election in which the two (2) candidates for each office receiving the greatest number of votes at such run-off primary election shall be deemed nominated and placed on the ballot at the general election.*

*NOTE: This Section was amended to read as above by an amendment voted June 26, 2012, and approved by the Governor on October 22, 2012. There were 27,134 votes in favor of the amendment and 4,558 votes against the amendment. The title to the amendment read:*

*Shall the Charter of the City of Tulsa, Oklahoma, be amended to conform the schedule for the City's primary elections and the filing of declarations of candidacy to the requirements of state law, and to make the amendment effective in the year adopted?*

*Prior to this amendment, this section read as follows:*

**Section 2.2. Primary elections.**

*In the calendar year following the adoption of this amendment of the Charter, and in September each year thereafter in which an elected officer's term expires, a primary election shall be held on the day specified by the laws of Oklahoma, at which time the qualified electors of the City shall nominate candidates for the office of those whose terms expire. Only qualified electors residing in an election district may vote in the primary election for candidates for the office of Councilor for such election district. All qualified electors residing in the City may vote in the primary election for candidates for a City-wide office such as Mayor or City Auditor. If a candidate for office is unopposed at the primary election or becomes unopposed by death, disqualification or withdrawal, such candidate shall be deemed elected. If a candidate for an office receives more than fifty percent (50%) of all votes cast for that office at the primary election, such candidate shall be deemed elected. If only two (2) candidates file for an office, there shall be no primary election, and the names of the two (2) candidates shall be placed on the ballot at the general election. If more than two (2) candidates file for an office and no candidate receives more than fifty percent (50%) of all*

*votes cast at the primary election for that office, the two (2) candidates for each office receiving the greatest number of votes at such primary elections shall be deemed nominated and placed on the ballot at the general election, unless the number of votes for such two (2) candidates does not exceed fifty percent (50%) of all votes cast for that office; in that event the several candidates receiving the greatest number of votes and for whom the votes cast at the primary election total at least fifty percent (50%) of all votes cast for that office shall participate in a run-off primary election in which the two (2) candidates for each office receiving the greatest number of votes at such run-off primary election shall be deemed nominated and placed on the ballot at the general election.*

*NOTE: This Section was amended to read as above by an amendment voted November 8, 2011, and approved by the Governor on February 21, 2012. There were 18,772 votes in favor of the amendment and 13,491 votes against the amendment. The title to the amendment read:*

*Shall the Charter of the City of Tulsa, Oklahoma, be amended to provide for the non-partisan election of City Officers?"*

**Section 2. Primary elections.**

*In September in odd-numbered years and in August in even-numbered years in each year in which an elected officer's term expires, a primary election shall be held on the day specified by the laws of Oklahoma, at which time the several political parties shall nominate candidates for the office of those whose terms expire. Only qualified electors residing in an election district may vote in the primary election of their political party for candidates for the office of Councilor for such election district. All qualified electors residing in the City may vote in the primary election of their political party for candidates for the office of Mayor and City Auditor. The candidate for each office receiving the greatest number of votes at such primary election shall be deemed nominated.*

*NOTE: This Section was amended to read as above by an amendment voted November 2, 2010, and approved by the Governor on March 18, 2011. There were 56,782 votes in favor of the amendment and 43,087 against the amendment. The title to this amendment read:*

*Shall the existing Charter of the City of Tulsa, as heretofore amended, be further amended to provide for Primary Elections in the City of Tulsa to be held in September in odd-numbered years and in August in even-numbered years, on the dates provided by Oklahoma Law for County Election Boards to conduct elections, in each year in which an elected officer's term expires?*

*Prior to this amendment, this Section read as follows:*

**Section 2. Primary elections.**

*In September in the year 2011, and in September each year thereafter in which on elected officer's term expires, a primary election shall be held on the day specified by the laws of Oklahoma, at which time the several political parties shall nominate candidates for the office of those whose terms expire. Only qualified electors residing in an election district may vote in the primary election of their political party for candidates for the office of Councilor for such election district. All qualified electors residing in the City may vote in the primary*

*election of their political party for candidates for the office of Mayor and City Auditor. The candidate for each office receiving the greatest number of votes at such primary elections shall be deemed nominated.*

*NOTE: This Section was amended to read as above by an amendment voted November 10, 2009, and approved by the Governor on January 5, 2010. There were 35,719 votes in favor of the amendment and 28,607 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide that City Councilors will serve for three-year terms, which shall be staggered so that no more than three council districts will have an election in any one year?*

*Prior to this amendment, this Section read as follows:*

**Section 2. Primary elections.**

*In September in the year 2009, and in September every year thereafter in which an elected officer's term expires, a primary election shall be held on the day specified by the laws of Oklahoma, at which time the several political parties shall nominate candidates for the office of those whose terms expire. Only qualified electors residing in an election district may vote in the primary election of their political party for candidates for the office of Councilor for such election district. All qualified electors residing in the City may vote in the primary election of their political party for candidates for the office of Mayor and City Auditor. The candidate for each office receiving the greatest number of votes at such primary election shall be deemed nominated.*

*NOTE: This Section was amended to read as above by an amendment voted April 1, 2008, and approved by the Governor on May 1, 2008. There were 10,142 votes in favor of the amendment and 2,843 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide for fall elections in years where an elected officer's term expires by establishing that the declaration of candidacy will be filed starting the second Monday through the next succeeding Wednesday in July 2009 and during the same period every year thereafter that an elected official's term expires; for primary elections to be held in September 2009 on the date established by state law, and every year thereafter that an elected official's term expires; and for general elections to be held in November 2009 on the date established by state law, and every year thereafter that an elected official's term expires?*

*Prior to this amendment, this Section read as follows:*

**Section 2. Primary elections.**

*In February in the year 2008 and in February each two (2) years thereafter on the day specified by the laws of Oklahoma, there shall be held in the City a primary election at which time the several political parties shall nominate candidates to fill the office of those whose terms expired. Only qualified electors of an election district may vote in the primary election of their political party for candidates for the office of Councilor for that election district. All qualified electors residing in the City may vote in the primary election of their political party for candidates for the office of Mayor and City Auditor. The candidate for each office receiving the greatest number of votes at such primary election shall be deemed nominated.*

*NOTE: This Section was amended to read as above by an amendment voted April 1, 2008, and approved by the Governor on May 1, 2008. There were 9,710 votes in favor of the amendment and 3,355 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide that a qualified elector of an election district, as determined by Oklahoma law and the rules of the State Election Board, will still be eligible to vote in an election district if the qualified elector's change in residence is within the period of time which would prevent valid registration in their new election district prior to the current election?*

*Prior to this amendment, this Section read as follows:*

**Section 2. Primary elections.**

*In February in the year 2008 and in February each two (2) years thereafter on the day specified by the laws of Oklahoma, there shall be held in the City a primary election at which time the several political parties shall nominate candidates to fill the office of those whose terms expire. Only qualified electors residing in an election district may vote in the primary election of their political party for candidates for the office of Councilor for such election district. All qualified electors residing in the City may vote in the primary election of their political party for candidates for the office of Mayor and City Auditor. The candidate for each office receiving the greatest number of votes at such primary election shall be deemed nominated.*

*NOTE: This Section was amended to read as above by an amendment voted April 4, 2006, and approved by the Governor on June 6, 2006. There were 61,443 votes in favor of the amendment and 10,778 votes against the amendment. The title to this amendment read:*

*Shall the charter of the City of Tulsa be amended to establish election dates and terms of office to correspond with state law providing for the conduct of elections by county election boards?*

*Prior to this amendment, this Section read as follows:*

**Section 2. Primary elections.**

*On the first Tuesday in February in the year 1990, there shall be held in the City a primary election at which time the several political parties shall nominate candidates for the offices of Mayor, City Auditor, and Councilor; thereafter, a primary election for election of candidates to fill the office of those whose terms expire shall be held each two (2) years on the first Tuesday in February. Only qualified electors residing in an election district may vote in the primary election of their political party for candidates for the office of Councilor for such election district. All qualified electors residing in the City may vote in the primary election of their political party for candidates for the office of Mayor and City Auditor. The candidate for each office receiving the greatest number of votes at such primary election shall be deemed nominated.*

**Section 3.1. Filing for office.**

Any person who desires to be a candidate for a City office shall file with the Election Board of Tulsa County or its successor a Declaration of Candidacy which shall contain:

**A.** The name and residence street address of the person as it appears on the voter registration records;

**B.** The name of the office sought; and

**C.** A filing fee in the form of a cashier's check or certified check made payable to the City of Tulsa in the amount of Fifty Dollars ($50.00) for candidates filing for the office of Mayor, Councilor or City Auditor; or, in lieu of the filing fee, a petition supporting a candidate's filing signed by at least three hundred (300) qualified electors from the City at large if the candidate seeks a City-wide office of such as Mayor or City Auditor or from the election district if the candidate seeks the office of Councilor from an election district.

*NOTE: This Section was amended to read as above by an amendment voted November 8, 2011, and approved by the Governor on February 21, 2012. There were 18,772 votes in favor of the amendment and 13,491 votes against the amendment. The title to the amendment read:*

*Shall the Charter of the City of Tulsa, Oklahoma, be amended to provide for the non-partisan election of City Officers?"*

*Prior to this amendment, this Section read as follows:*

**Section 3.1. Filing for office—Political parties.**

*Any person who desires to be nominated by a political party as its candidate for a City office shall file with the Election Board of Tulsa County or its successor a Declaration of Candidacy which shall contain:*

**A.** *The name and residence street address of the person as it appears on the voter registration records;*

**B.** *The name of the office sought;*

**C.** *The name of the political party of which the person desires to become the nominee, which shall be the political party to which the person belongs as shown on the voter registration records; and*

**D.** *A filing fee in the form of a cashier's check or certified check made payable to the City of Tulsa in the amount of Fifty Dollars ($50.00) for candidates filing for the office of Mayor, Councilor or City Auditor; or, in lieu of the filing fee, a petition supporting a candidate's filing signed by at least three hundred (300) qualified electors from the City at large if the candidate seeks the office of Mayor or City Auditor or from the election district if the candidate seeks the office of Councilor from an election district.*

*NOTE: This Section was amended to read as above by an amendment voted March 10, 1998, and approved by the Governor on June 16, 1998. There were 50,460 votes in favor of the amendment and 20,232 votes against the amendment. The title to this amendment read:*

*Shall the existing charter of the City of Tulsa, as heretofore amended, be further amended to require candidates for elected City offices to either pay a filing fee or file an election petition in specified form, with provision for refund of filing fee in certain circumstances?*

*Prior to this amendment, this Section read as follows:*

**Section 3.1. Filing for office—political parties.**

*Any person who desires to be nominated by a political party as its candidate for a City office shall file with the Election Board of Tulsa County or its successor a Declaration of Candidacy which shall state:*

**A.** *The name and residence street address of the person as it appears on the voter registration records;*

**B.** *The name of the office sought; and*

**C.** *The name of the political party of which the person desires to become the nominee, which shall be the political party to which the person belongs as shown on the voter registration records.*

**Section 3.2. Campaigning for office.**

Although all City elections shall be non-partisan, candidates shall not be prohibited from advising voters of their political affiliation and may include their political party affiliation in campaign materials, including without limitation signs, mailers, fliers and brochures.

*NOTE: This Section was amended to read as above by an amendment voted November 8, 2011, and approved by the Governor on February 21, 2012. There were 18,772 votes in favor of the amendment and 13,491 votes against the amendment. The title to the amendment read:*

*Shall the Charter of the City of Tulsa, Oklahoma, be amended to provide for the non-partisan election of City Officers?"*

*Prior to this amendment, this Section read as follows:*

**Section 3.2. Filing for office—independent candidates.**

*Any person who desires to be an independent candidate for a City office shall file with the Election Board of Tulsa County or its successor a Declaration of Candidacy which shall state:*

**A.** *The name and residence street address of the person as it appears on the voter registration records; and*

**B.** *The name of the office sought.*

*The Declaration of Candidacy of the independent candidate shall have attached a supporting petition which shall be signed by at least three hundred (300) qualified electors from the City at large if the independent candidate seeks the office of Mayor or City Auditor or from the election district if the independent candidate seeks the office of Councilor from an election district.*

**Section 3.3. Refund of filing fee.**

A filing fee paid by a candidate who is unopposed at the election, or who receives at the first election wherein their name appears on a ballot more than fifteen percent (15%) of the votes cast for that office, shall be refunded. Otherwise, the filing fee shall be forfeited to the City of Tulsa.

*(Res. No. 20044, Prop. Nos. 1, 2, 5-20-20/Elec. of 8-25-20)*

**Section 3.4. Time of filing.**

Beginning in the calendar year 2018, Declarations of Candidacy shall be filed with the Secretary of the appropriate Election Board no earlier than 8:00 o'clock a.m. on the second Monday in June and no later than 5:00 o'clock p.m. on the next succeeding Wednesday of any year in which an elected officer's term expires.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017, and approved by the Governor on February 21, 2018. There were 8,179 votes in favor of the amendment and 2,246 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article VI, "Election and Qualification of Officers", be amended to hold elections for city offices in August of an election year, require candidates for city offices to file their candidacy in June, and provide for run-off elections, whenever necessary, in November?*

*Prior to this amendment, this section read as follows:*

**Section 3.4. Time of filing.**

*Beginning in the calendar year of the adoption of this amendment of the Charter. Declarations of Candidacy shall be filed with the Secretary of the appropriate Election Board no earlier than 8:00 o'clock a.m. on the second Monday in April and no later than 5:00 o'clock p.m. on the next succeeding Wednesday of any year in which an elected officer's term expires.*

*NOTE: This Section was amended to read as above by an amendment voted June 26, 2012, and approved by the Governor on October 22, 2012. There were 27,134 votes in favor of the amendment and 4,558 votes against the amendment. The title to the amendment read:*

*Shall the Charter of the City of Tulsa, Oklahoma, be amended to conform the schedule for the City's primary elections and the filing of declarations of candidacy to the requirements of state law, and to make the amendment effective in the year adopted?*

*Prior to this amendment, this section read as follows:*

**Section 3.4. Time of filing.**

*Declarations of Candidacy shall be filed no earlier than 8:00 o'clock a.m. on the second Monday in July 2011 and no later than 5:00 o'clock p.m. on the succeeding Wednesday and during the same period each year thereafter in which an elected officer's term expires.*

*NOTE: This section was amended to read as above by an amendment voted November 10, 2009, and approved by the Governor on January 5, 2010. There were 35,719 votes in favor of the amendment and 28,607 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide that City Councilors will serve for three-year terms, which shall be staggered so that no more than three council districts will have an election in any one year?*

**Section 3.4. Time of filing.**

*Declarations of Candidacy shall be filed no earlier than 8:00 o'clock a.m. on the second Monday in July 2009 and no later than 5:00 o'clock p.m. on the next succeeding Wednesday and during the same period every year thereafter in which an elected officer's term expires.*

*NOTE: This section was amended to read as above by an amendment voted April 1, 2008, and approved by the Governor on May 1, 2008. There were 10,142 votes in favor of the amendment and 2,843 votes against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to provide for fall elections in years where an elected officer's term expires by establishing that the declaration of candidacy will be filed starting the second Monday through the next succeeding Wednesday in July 2009 and during the same period every year thereafter that an elected official's term expires; for primary elections to be held in September 2009 on the date established by state law, and every year thereafter that an elected official's term expires; and for general elections to be held in November 2009 on the date established by state law, and every year thereafter that an elected official's term expires?*

*Prior to this amendment, this section read as follows:*

**Section 3.4. Time of filing.**

*Declarations of Candidacy shall be filed no earlier than 8:00 o'clock a.m. on the second Monday in January 1990 and no later than 5:00 o'clock p.m. on the next succeeding Wednesday and during the same period each two (2) years thereafter.*

*NOTE: This section was renumbered from Section 3.3 to Section 3.4 by an amendment voted March 10, 1998, and approved by the Governor on June 16, 1998. There were 50,460 votes in favor of the amendment and 20,232 votes against the amendment. The title to this amendment read:*

*Shall the existing charter of the City of Tulsa, as heretofore amended, be further amended to require candidates for elected city offices to either pay a filing fee or file an election petition in specified form, with provision for refund of filing fee in certain circumstances?*

**Section 4. Calling elections.**

The Mayor shall issue proclamations and notices calling all elections in the city. Election proclamations, notices, and a list of polling places shall be published in a newspaper of general circulation in the city at least ten (10) days prior to the date of each election.

**Section 5. State laws apply to all elections.**

Except as otherwise provided in this amended Charter, all City elections and recounts of votes shall be conducted and the qualifications of electors determined in accord with the laws of Oklahoma, except that election returns shall be canvassed by the Council. In addition to the dates specified by the laws of Oklahoma, any special election of the City of Tulsa may also be called and held on General Election and Run-Off Eelction dates. The Council may by ordinance authorize the casting of absentee ballots in city elections and establish the procedure therefor.

*(Res. No. 20044, Prop. No. 1, 5-20-20/Elec. of 8-25-20)*

**Section 6.1. Election districts.**

The city is hereby divided into nine (9) election districts for the purpose of nominating and electing a Councilor from each election district. The election districts shall be numbered, bounded, and described as set forth in Schedule I, attached to and made a part of this amended Charter.

**Section 6.2. Annexations.**

Upon the annexation of additional territory to the city, the annexing ordinance shall assign the annexed territory to an adjacent election district or districts so as to maintain as nearly as possible equality of population between election districts.

**Section 6.3. Precinct boundaries.**

The Council by ordinance may make minor adjustments in the boundaries of an election district to conform the election district boundaries to changes in precinct boundary lines made pursuant to the laws of Oklahoma.

**Section 7. Qualification of officers.**

No person shall be eligible to hold the office of Mayor or City Auditor unless such person shall have been a qualified elector and resident of the city at least three hundred sixty-five (365) days at the time of filing for the office. In addition, no person shall be eligible to hold the office of City Auditor unless such person is a Certified Public Accountant or Certified Internal Auditor and maintains such certification in good standing during their term of office. No person shall be eligible to hold the office of Councilor for an election district unless such person shall have been a qualified elector and resident of the election district for at least three hundred sixty-five (365) days at the time of filing for the office of Councilor for that election district. The requirement that a person shall have been a qualified elector and resident of an election district for at least three hundred sixty-five (365) days at the time of filing for the office of Councilor for that election district shall not apply to an election or an election district adjusted immediately following the adoption of an Election District Plan which changed a candidate's residency to a different election district; provided persons desiring to become a candidate for the office of Councilor for an election district shall be qualified electors of the election district at the time of filing for the office of Councilor for that district and shall have been a qualified elector and resident within the boundaries of their preexisting election district for at least three hundred sixty-five (365) days at the time of filing.

*(Res. No. 20044, Prop. No. 2, 5-20-20/Elec. of 8-25-20; Res. No. 20171, § 4, 3-23-2022, election of 8-23-2022)*

**Section 8. Filling vacancies in elective offices.**

Vacancies in elective offices whether by death, resignation, removal, or recall shall be filled as follows:

**A.** If a vacancy shall occur in the office of Mayor, City Auditor, or a Councilor more than one (1) year prior to the next general election, the Council shall provide for the calling of a special election at the earliest time allowed under the laws of Oklahoma applicable to special elections to fill the vacancy for the remainder of the unexpired term; the candidate receiving the greatest number of votes at the special election shall be deemed elected;

**B.** If a vacancy shall occur in the office of Mayor less than one (1) year prior to the next general election, the Temporary Mayor shall serve as Mayor for the remainder of the unexpired term;

**C.** If a vacancy shall occur in the office of City Auditor less than one (1) year prior to the next general election, the Mayor shall appoint a qualified elector of the city to fill the vacancy for the remainder of the unexpired term, subject to confirmation by a majority vote of the entire membership of the Council; and

**D.** If a vacancy shall occur in the office of a Councilor less than one (1) year prior to the next general election, the Council, by a majority vote of the remaining membership of the Council shall appoint a qualified elector of the election district in which the vacancy exists to fill the vacancy for the remainder of the unexpired term.

**Section 9. Implementation.**

The Council may adopt ordinances to provide for the holding of special elections and to establish procedures for conducting elections not inconsistent with the provisions of this amended Charter or the laws of Oklahoma.

**Section 10.1. Election district commission.**

There is hereby created an Election District Commission which shall consist of five (5) members, to be appointed by the Mayor subject to confirmation by a majority vote of the entire membership of the Council. Of the five (5) said members, two (2) shall be affiliated with the political party having the largest number of registered voters within the city as of the date of the preceding general election, two (2) shall be affiliated with the political party having the second largest number of such voters, and one (1) shall be an independent voter. Said members shall not have changed their political party affiliation within the last year. All members shall be registered voters and residents of the City of Tulsa. No two (2) of the members shall be residents of the same Council district at the time of their appointment. The appointments shall be made and the Election District Commission shall be organized no later than the 1st day of July, 2021, and no later than the 1st day of July of each tenth year thereafter. In the event the members of the Election District Commission are not appointed within the times herein provided, such appointments shall be made by the Presiding Judge of the District Court of Tulsa County. No City of Tulsa employee, contractor or elected official shall be appointed to serve on the Election District Commission. If a vacancy shall occur in the Election District Commission, a qualified successor shall be appointed within twenty (20) days after the date the vacancy occurs as provided for original appointments.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017, and approved by the Governor on February 21, 2018. There were 6,916 votes in favor of the amendment and 3,493 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article VI, "Election and Qualification of Officers", Section 10.1, "Election District Commission", and Section 10.2, "Adjustment of Election District Boundaries" be amended to provide that the Election District Commission shall consist of five (5) members, to be appointed by the Mayor and confirmed by the City Council; that two (2) members shall be affiliated with the political party having the largest*

*number of registered voters in the city, two (2) members shall be affiliated with the political party having the second largest number of such voters, and one (1) member shall be a registered independent voter; stating the duties of the Election District Commission, namely, to adjust the boundaries of the city's election districts following completion of the Federal Decennial Census?*

*Prior to this amendment, this section read as follows:*

**Section 10.1. Election district commission.**

*There is hereby created an Election District Commission which shall consist of three (3) members. The governing body of the two (2) political parties having the largest number of registered voters within the city as of the date of the preceding general election shall each appoint one (1) member of the Election District Commission. The Mayor shall appoint one (1) member, subject to confirmation by a majority vote of the entire membership of the Council. The appointments shall be made and the Election District Commission shall be organized no later than the 31st day of January, 1991, and no later than the 31st day of January of each tenth year thereafter. In the event the members of the Election District Commission are not appointed within the times herein provided, such appointments shall be made by the Presiding Judge of the District Court of Tulsa County. Persons holding an elected office shall be ineligible for appointment to the Election District Commission. If a vacancy shall occur in the Election District Commission, a qualified successor shall be appointed within twenty (20) days after the date the vacancy occurs as provided for original appointments.*

**Section 10.2. Adjustment of election district boundaries.**

The Election District Commission shall adjust the boundaries of Election Districts each ten (10) years after the completion of the Federal Decennial Census. The Election District Commission shall determine the population of the city and each existing election district according to the preceding Federal Decennial Census and shall prepare a proposed Election District Plan. Each Election District Commission shall consider natural and neighborhood boundaries, shall disregard partisan considerations, and shall avoid diluting minority votes. Each district shall consist of contiguous, compact territory and be as nearly equal in population as possible. The district boundary lines shall conform with precinct boundary lines. The election District Plan shall establish the population and boundaries of each election district. The proposed Election District Plan shall include a map and description of the districts. The election District Commission shall hold at least one (1) public hearing on the proposed Election District Plan. Notice of the hearing shall be published in a newspaper of general circulation in the city at least ten (10) days prior to the date of the hearing. All meetings of the Election District commission shall be open meetings as regulated by the Oklahoma Open Meeting Act, Title 25, Oklahoma Statutes, Section 301 and following.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017, and approved by the Governor on February 21, 2018. There were 6,916 votes in favor of the amendment and 3,493 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article VI, "Election and Qualification of Officers", Section 10.1, "Election District Commission", and Section 10.2, "Adjustment of*

*Election District Boundaries" be amended to provide that the Election District Commission shall consist of five (5) members, to be appointed by the Mayor and confirmed by the City Council; that two (2) members shall be affiliated with the political party having the largest number of registered voters in the city, two (2) members shall be affiliated with the political party having the second largest number of such voters, and one (1) member shall be a registered independent voter; stating the duties of the Election District Commission, namely, to adjust the boundaries of the city's election districts following completion of the Federal Decennial Census?*

*Prior to this amendment, this section read as follows:*

**Section 10.2. Adjustment of election district boundaries.**

*The Election District Commission shall adjust the boundaries of Election Districts each ten (10) years after the completion of the Federal Decennial Census. The Election District Commission shall determine the population of the city and each existing election district according to the preceding Federal Decennial Census and shall prepare a proposed Election District Plan. Each district shall consist of contiguous, compact territory and be as nearly equal in population as possible. The district boundary lines shall conform with precinct boundary lines. The Election District Plan shall establish the population and boundaries of each election district. The proposed Election District Plan shall include a map and description of the districts. The Election District Commission shall hold at least one (1) public hearing on the proposed Election District Plan. Notice of the hearing shall be published in a newspaper of general circulation in the city at least ten (10) days prior to the date of the hearing.*

**Section 10.3. Adoption of election district plan.**

Within six (6) months after the appointment of its members, the Election District Commission shall adopt and file with the City Clerk an Election District Plan which shall supersede Schedule I attached to this amended Charter and subsequently adopted Election District Plans. All members of the Council shall thereafter be elected in accord with the Election District Plan.

**Section 10.4. Duties ministerial.**

The duties of the Election District Commission shall be ministerial and the performance thereof may be compelled by appropriate action. The terms of the office of the members of the Election District Commission shall expire when each Election District Plan becomes final.

**Section 10.5. Judicial review.**

Any qualified elector of the city may seek a review of an adopted Election District Plan by filing a petition for review in the District Court of Tulsa County within thirty (30) days after the filing of the Election District Plan with the City Clerk. If a petition for review is not filed within such time, the Election District Plan shall become final. The District Court shall determine whether the Election District Plan complies with the provisions of this amended Charter. In the event the District Court shall determine that the Election District Plan does not comply, the District Court shall modify the Election District Plan to comply with the provisions of this amended Charter. Appeals from the final decision of the District Court may be taken as provided by law.

## ARTICLE VII. REMOVAL AND RECALL OF ELECTIVE OFFICERS

### Section 1.1. Removal and recall.

Any elected officer may be removed from office for cause as provided by the laws of Oklahoma. Any elected officer may be recalled by the qualified electors of the city as herein provided.

### Section 1.2. Grounds for recall.

Any elected officer may be recalled as provided in this article for any of the following reasons:

**A.** Willful failure or neglect to diligently and faithfully perform any duty enjoined upon such officer by law;

**B.** Intoxication in any public place within the city produced by any substance or combination of substances voluntarily taken;

**C.** Commission of any act constituting a violation of any penal statute involving moral turpitude. Such an act has been committed, within the meaning of this Section, when the officer involved has been convicted thereof by a court of record;

**D.** Habitual or willful neglect of duty;

**E.** Gross partiality in office;

**F.** Oppression in office;

**G.** Corruption in office;

**H.** Extortion or willful overcharge of fees in office;

**I.** Willful maladministration;

**J.** Habitual drunkenness; or

**K.** Failure to produce and account for all public funds and property in their hands, at any settlement or inspection authorized or required by law.

*(Res. No. 20044, Prop. No. 2, 5-20-20/Elec. of 8-25-20)*

### Section 2.1. Procedure for recall.

If the officer sought to be recalled was elected from the city at large, a preliminary petition for recall of the elected officer must contain the signatures of qualified electors residing in the city equal in number to five percent (5%) of all those voting for the affected office in the last preceding general election. If the officer sought to be recalled was elected from an election district, a preliminary petition for recall of the elected officer must contain the signatures of qualified electors residing in the election district involved equal in number to ten percent (10%) of all those voting in that election district for the affected office in the preceding general election. Preliminary petitions for recall shall be filed with the City Clerk and shall state the reasons for the proposed recall in not more than two hundred (200) words so that the officer sought to be recalled may be informed of the grounds upon which recall is sought. No petition for recall shall include more than one (1) elected officer. The City Clerk shall serve a copy of the preliminary petition by personal service upon the officer sought to be recalled, who shall have five (5) days thereafter within which to file with

the City Clerk an answer to the preliminary petition for recall in not more than two hundred (200) words. If such officer does not file an answer in the time specified, no answer of the officer shall appear upon the supporting petition.

**Section 2.2. Form of supporting petition.**

Within fifteen (15) days after the expiration of the time for filing an answer, the City Clerk shall prepare and issue a form of a supporting petition, which shall be approved by the City Attorney, reciting the filing of a preliminary petition for the recall of the officer sought to be recalled, stating the reasons for the recall of the officer exactly as they appeared in the preliminary petition, together with the exact answer, if any, of the officer sought to be recalled, and if no answer thereto was filed stating such fact. The supporting petition shall further state:

"We, the undersigned qualified electors of the City of Tulsa, hereby petition that an election be called on the following question:

"Shall (name of person) be recalled from the office of (name of office)?"

The form of the supporting petition shall provide for no more than fifty (50) signatures and shall contain a form for verification of the signatures by the circulator and for verification that the circulator is a qualified elector residing in the election district.

*NOTE: This section was amended to read as above by an amendment voted April 4, 2006, and approved by the Governor on June 6, 2006. There were 49,638 in favor of the amendment and 22,480 against the amendment. The title to this amendment read:*

*Shall the Charter of the City of Tulsa be amended to specify grounds for which elected officers may be recalled; to require that only qualified electors residing in an election district may circulate a supporting petition for recall; to provide that the signature of each petitioner on a supporting petition for recall shall correspond with the name of the petitioner appearing in the voter registration books; and to provide that a valid contact telephone number of each petitioner shall be specified on the supporting petition; and to provide that supporting petitions for recall must contain the signatures equal in number to twenty-five percent (25%) of those voting in the election district for the affected office in the preceding mayoral general election?*

*Prior to this amendment, this section read as follows:*

**Section 2.2. Form of supporting petition.**

*Within fifteen (15) days after the expiration of the time for filing an answer, the City Clerk shall prepare and issue a form of a supporting petition, which shall be approved by the City Attorney, reciting the filing of a preliminary petition for the recall of the officer sought to be recalled, stating the reasons for the recall of the officer exactly as they appeared in the preliminary petition, together with the exact answer, if any, of the officer sought to be recalled, and if no answer thereto was filed stating such fact. The supporting petition shall further state:*

*"We, the undersigned qualified electors of the City of Tulsa, hereby petition that an election be called on the following question:*

*"Shall (name of person) be recalled from the office of (name of office)?"*

*The form of the supporting petition shall provide for no more than fifty (50) signatures and shall contain a form for verification of the signatures by the circulator.*

**Section 3. Sufficiency of supporting petitions.**

Supporting petitions shall be filed with the City Clerk within sixty (60) days after issuance of the form. If the officer sought to be recalled was elected from the city at large, supporting petitions to be sufficient must contain the signatures of qualified electors residing in the city equal in number to twenty-five percent (25%) of all those voting for the affected office in the preceding general election. If the officer sought to be recalled was elected from an election district, supporting petitions to be sufficient must contain the signatures of qualified electors residing in the election district involved equal in number to twenty-five percent (25%) of all those voting in that election district for the affected office in the preceding mayoral general election. Each circulator shall verify that they are a qualified elector residing in the election district.

The signature of each petitioner on the supporting petitions shall correspond with the name of each petitioner appearing on the official voter registration books applicable to the city. The residence street address and a valid contact telephone number of each petitioner and the date on which the petition was signed shall be specified on the supporting petitions. Each petition shall be verified by the circulator.

*NOTE: This section was amended to read as above by an amendment voted April 4, 2006, and approved by the Governor on June 6, 2006. There were 49,638 in favor of the amendment and 22,480 against the amendment. The title to this amendment read:*

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*The signature of each petitioner on the supporting petitions shall correspond with that appearing on the official voter registration books applicable to the city. The residence street address of each petitioner and the date on which the petition was signed shall be specified on the supporting petitions. Each petition shall be verified by the circulator.*

**Section 4. Examination of petitions.**

Within twenty (20) days after the expiration of the time for filing supporting petitions, the City Clerk shall examine the filed supporting petitions and determine whether each petition and the signatures thereon comply with the requirements of this Article. If the number of valid signatures is not equal to the number required, the City Clerk shall submit to the Council the reasons for such finding and the circulators of the supporting petitions shall have ten (10) days within which to file additional supporting petitions. Within five (5) days thereafter, the City Clerk shall determine and submit to the Council a written report as to whether the requirements of this Article have been met. If the City Clerk finds the petitions are insufficient, the reasons for such finding shall be specified. If the City Clerk finds the petitions are sufficient and the requirements of this Article have been met, and such finding is affirmed by the Council, or if the Council shall reverse the finding of the City Clerk that the petitions are insufficient, or that the requirements of this Article have been met, then the Council shall call an election at the earliest time allowed under the laws of Oklahoma. If the City Clerk shall find the supporting petitions are insufficient and such finding is affirmed by the Council, no election shall be called and the elected officer sought to be recalled shall remain in office.

**Section 5. Election.**

If the officer sought to be removed was elected from the city at large, any qualified elector of the city may vote at the recall election. If the officer sought to be removed was elected from an election district, only qualified electors of that election district may vote at the recall election. The ballot at a recall election, with respect to each person whose recall is sought, shall be in the following form:

"Shall (name of person) be recalled from the office of (name of office)?

For
Against."

If a majority of the votes cast at a recall election be against the recall of the elected officer, such elected officer shall remain in office. If a majority of the votes cast at a recall election shall be for the recall of the officer, such officer shall be deemed removed from office regardless of any technical defects in the preliminary or supporting petitions which might thereafter be determined to exist.

**Section 6. Canvass of election.**

The Council shall canvass the returns of the recall elections and declare the results. If the canvass of a recall election shows a majority of votes cast to be for recall, the affected office shall be declared vacant, the recalled officer shall be deemed removed from office, and shall be entitled to no further salary or benefits of office.

## ARTICLE VIII. USE OF PUBLIC PROPERTY

### Section 1. Public property inalienable.

The ownership, right of control, and use of the streets, highways, alleys, public ways, public places, or other real property of the city shall be inalienable by the city, except as provided by this amended Charter. No right to use the streets, highways, alleys, public ways, public places, or other real property of the city, either along, across, over, or under the same shall be valid unless granted and exercised as provided by this amended Charter. No act or omission of the Council, officers, or agents of the city shall be construed to confer or extend any right not expressly granted.

### Section 2. Franchises authorized.

The Council by ordinance may grant to a person or corporation the franchise to use the property of the city for the purpose of furnishing to the public for compensation to be paid to the grantee any general public service, including heat, light, power, refrigeration, steam, cable television, or transportation when the right to use the streets, highways or other property of the city for a term of years is necessary or proper for the general public service or purpose of the grantee.

### Section 3. Prohibitions.

No exclusive franchise shall be granted. No franchise shall be granted to commence more than six (6) months after the adoption of the ordinance granting it. No franchise shall be extended directly or indirectly beyond the term originally fixed by the ordinance granting it. No franchise shall authorize the grantee to acquire the physical property, rights, or franchise of another person or corporation holding a franchise granted by the city, so that the rights and properties held under an earlier franchise are assigned to the holder of a franchise extending beyond the expiration of the earlier franchise.

### Section 4. All franchises to be submitted to people.

No franchise shall be granted, extended, or renewed without the approval of a majority of the qualified electors of the city who vote thereon at a special or general election. No franchise shall be granted, extended, or renewed for a term longer than twenty-five (25) years. All election expenses attributable to the submission of a franchise shall be borne by the proposed grantee.

### Section 5. Initiative procedure for franchise.

Whenever a petition signed by a number of qualified electors of the city equal to twenty-five percent (25%) of the total number of votes cast for the office of Mayor at the preceding general election demanding that a franchise be granted, extended, or renewed shall be filed with the City Clerk, and is determined by the City Clerk to meet the requirements of this Section, the Mayor shall within ten (10) days thereafter call a special election at which the question of whether such franchise shall be granted, extended, or renewed shall be submitted to the qualified electors of the city.

### Section 6. Compensation for franchises.

The grantee of a franchise approved after the effective date of this amended Charter shall, as compensation for the rights and privileges enjoyed thereunder, pay monthly to the

City a sum of not less than one percent (1%) and not more than four percent (4%) of the gross receipts from the service provided by the grantee within the corporate limits of the city. Such compensation shall be exclusive of and in addition to ad valorem taxes upon the property of the grantee and assessments for special improvements made upon real property. Such compensation shall be in lieu of all city occupation taxes imposed upon the occupation or business of the grantee and in lieu of any vehicle or license tax. The franchise may provide that no compensation shall be payable for not more than the first five (5) years thereof. If the ordinance granting a franchise provides for the waiver of compensation, the city may further waive the requirement for compensation for the remaining period of the franchise by amending the ordinance granting the franchise, subject to the approval thereof by a majority of the qualified electors of the city who shall vote thereon at a general or special election. For all sums due as such compensation, the city shall have a lien which may be enforced by appropriate action against the property of the grantee within the city.

**Section 7. Ascertainment of compensation.**

In order to ascertain the amount of the gross receipts of the grantee of a franchise and to determine the amount of the compensation due the city and for any other purpose relating to the business of the city, the Council may examine the books, papers, and records of franchise holders. The Council may hear testimony and compel the attendance of witnesses under such rules and regulations as the Council may adopt. Should any franchise holder refuse to permit the inspection of its books, papers, or records when lawfully required by the Council or should any officer, agent, or employee of a franchise holder refuse to give testimony before the Council, the Council may by ordinance terminate the franchise.

**Section 8. Exercise of power of public utility regulation.**

Subject to the provisions of the Constitution of the United States of America, and the Constitution and laws of Oklahoma, the Council may regulate and fix the charges, fares, or rates of the grantee of a franchise and prescribe the services to be furnished by such grantee and the manner in which services shall be rendered. No rules, regulations, fares, or rates shall be adopted or changed except after notice to the public and to the grantee of the franchise and after a public hearing. The Council may inspect books and records and compel attendance of witnesses and may by ordinance terminate the franchise for a failure or refusal of a franchise holder or any officer, employee, or agent thereof to testify or to produce books or records.

**Section 9. Right to purchase to be reserved.**

No franchise shall be granted except upon condition that the city shall have the right at anytime after fifteen (15) years after the granting thereof to purchase the physical property of the franchise holder and to terminate the franchise, if approved by a majority of the qualified electors of the city voting thereon at a special or general election. At any time when a purchase option shall have accrued under the terms of a franchise, the question of the purchase of such property may be submitted by the Council to the qualified electors for approval. The question of the purchase of such property shall be submitted at the next succeeding election in the city upon the petition to the city of twenty-five percent (25%) of the qualified electors of the city. The franchise holder shall be compensated for the value of the property with such value to be determined by the majority of three (3) appraisers, one

(1) to be selected by the Mayor, one (1) by the franchise holder and the third by the first two appraisers. If the franchise holder shall refuse for thirty (30) days to select an appraiser, the value of such property shall be fixed by the vote of a majority of the Council.

**Section 10. Termination for violation.**

Ordinances granting franchises shall be subject to the terms of this amended Charter and may contain further terms and conditions imposed by the Council. All franchises shall be exercised in compliance with the terms of this amended Charter and of the franchise ordinance. If a franchise shall not be exercised in substantial compliance with the terms of this amended Charter and of the franchise ordinance, the franchise may be terminated by the Council after notice to the franchise holder and a public hearing.

**Section 11. Common use of tracks, poles, and wires.**

The Council may require any permit or franchise holder to allow the use of its tracks, poles, conduits, and wires by any other permit or franchise holder upon the payment of a reasonable rental therefor to be fixed by the Council. The Council may regulate, locate, and prohibit the placing of telegraph, telephone, cable television, electric or other wires, systems, and facilities within the property of the city and may require and regulate the placing of any such wires, systems, and facilities underground.

**Section 12. Railway and transit permits.**

The Council may authorize railways and other transit facilities operating from the city to other cities to lay tracks and facilities on and over the streets and other property of the city, subject to conditions imposed by the Council.

**Section 13. Permits.**

The Council may grant a permit to any person or corporation to occupy or use portions of the streets, highways, alleys, public ways, public places, or any other real property of the city under such terms and conditions as the Council shall impose; provided, such use does not unreasonably interfere with the public use thereof. Permits may be revoked by the Council at will. Upon the revocation of a permit, the holder of such permit shall remove within a reasonable time any encroachment on the property of the city and pay the cost thereof.

**Section 14. Conveyance of aerial and subsurface spaces.**

The Council may vacate and close streets, alleys, and easements and sell, lease, or otherwise convey any areas or spaces above or below the surface of any street, highway, alley, public place, or any other real property of the city for buildings, structures, or for other uses and purposes and such appurtenant surface rights necessary or desirable for such buildings or structures; provided, the Council shall first determine that any such areas or spaces are not necessary for public use or purposes.

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## ARTICLE IX. PUBLIC IMPROVEMENTS

### Section 1.1. Street improvement districts.

When the Council shall deem it necessary to grade, pave, curb, gutter, drain, or otherwise improve any street, sidewalk, alley, or public right-of-way, or any part thereof, within the corporate limits of the city, for which a special tax is to be levied, the Council shall by resolution declare such work or improvement necessary to be done which resolution shall be adopted by a majority vote of the entire membership of the Council. The passage of a resolution shall be conclusive of the public necessity for the improvement and the benefit thereof. Such resolution shall describe the nature and extent of the improvements to be made; the sections of the public street, sidewalk, alley, or public right-of-way to be improved; the materials which are to be used; and the method of payment of the costs. Upon the passage of a resolution, the Mayor shall prepare and submit to the Council for approval specifications for the improvements.

### Section 1.2. Change of grade—compensation for.

The Council may establish and change the grade of a street, sidewalk, alley, or other rights-of-way in the city; provided, that no material change of a legally established grade shall be made without due compensation to the owners of abutting property with permanent improvements erected with reference to the established grade. The Council shall prescribe by ordinance the method of ascertaining the compensation due to a property owner.

### Section 1.3. Resolution to allocate costs—railroads.

The costs of grading, paving, curbing, guttering, draining, or otherwise improving any street, sidewalk, alley, or public right-of-way may be paid in part by the city and in part by the owners of the property benefited by such improvement. The resolution adopted by the Council declaring the necessity for such construction shall provide what part, if any, of the costs of the improvements shall be paid by the city and the part of the costs that shall be paid by the owners of the property abutting on such street, sidewalk, alley, or right-of-way. The owner of a railroad in or crossing a street shall pay the whole costs of the improvement between the rails and tracks and for two (2) feet on each side of the rails, except as ordered by the Council. The share of the costs of such improvements payable by the owner of a railroad, together with all costs of collecting the same, shall be assessed by the Council as a special tax against and secured by a lien upon the property of the railroad within the city.

The owner of a railroad shall bear the entire expense of laying sidewalks across the full width of the railroad right-of-way when a sidewalk is ordered improved hereunder.

### Section 1.4. Contract procedure.

When specifications for improvements have been approved by the Council, the City Clerk shall advertise in a daily paper of general circulation in the City for bids for the construction of such improvements. The advertisement shall state the time for submitting bids, which shall be not less than ten (10) days from the date of the advertisement. Bids shall be filed with the City Clerk and shall be opened and read at a meeting of the Council. The Council shall award the contract to the most advantageous and the lowest secure bidder, or the Council may reject all bids. No bid shall be amended, revised, or changed

after having been filed. All bids shall be secured in the amount of five percent (5%) of the bid as a penalty if the successful bidder fails to enter into a contract and furnish bonds as required.

### Section 1.5. Assessment procedure.

After assessing the share of the costs of an improvement payable by a railroad, the Council shall assess the remaining costs of construction, reconstruction, and repairing any sidewalk, curbing, guttering, and paving any street, sidewalk, alley, or right-of-way, or making any other improvements ordered hereunder against the property abutting upon the street, sidewalk, alley, or right-of-way upon which the improvements are to be constructed. The Council shall impose a lien against the property to secure the payment of the share of the costs assessed against the property. In apportioning the costs of improvements against abutting property, the lots and parcels in each quarter block shall be charged with a due share of the cost of paving the front and side streets on such quarter block, the alleys therein, and the area of the street intersection, according to the benefit to each lot or parcel. If any part of the abutting property is not platted, the Council shall include such part in proper quarter block districts for the purpose of assessment. The costs assessed against property shall be in proportion to the frontage of the property to the whole frontage of property in the quarter block. The Council shall assess and apportion the costs so as to produce a substantial equality of benefits received by and burdens imposed upon each property.

### Section 1.6. Notice to property owners—hearing.

The Mayor shall prepare and submit to the Council a statement which shall contain the names of the owners of property abutting upon the streets, sidewalks, or alleys to be improved and the description of the property and number of front feet owned by each. The statement shall include an estimate of the total costs of the improvements, and amount of such costs proposed to be assessed against abutting property. The Council shall hold a hearing on the proposed assessments. Notices of the hearing on assessments shall be given by publication for five (5) consecutive issues in a daily newspaper of general circulation in the city and by registered or certified mail to the owners at their last known address. The notice shall be published and mailed ten (10) days or more prior to the date set for the assessment hearing. The notice shall state the time and place of the assessment hearing, the general character of the improvements approved by the Council, the streets, sidewalks, or alleys to be improved, and the part of the total cost of the improvements proposed to be assessed against the abutting property. At the assessment hearing, the Council shall hear the objections of any owner of property which is proposed to be assessed for a part of the cost of the improvements. The Council shall determine the special benefits to the property from the improvements and shall by ordinance assess against each property or railroad within or abutting upon the street, sidewalk, or alley ordered improved, a part of the cost of the improvements as provided herein. The ordinance shall impose a lien upon each property for the amounts assessed and shall state the time and manner of payment of the assessment. The Council may order that the assessments shall be payable in installments and prescribe the amount, time, and manner of payment of installments, which shall not exceed ten (10) years from the completion and acceptance of the improvements. The Council shall prescribe the rate of interest to be paid upon deferred installments, the penalty upon delinquent installments, and provide for collection of delinquent installments, with the

reasonable cost of collection including attorney fees. Any owner of property assessed may pay the full assessment without interest within thirty (30) days from date of adoption of the assessing ordinance and may pay any unmatured installment by paying the installment together with interest to the next installment due date.

**Section 1.7. Power to exclude property not subject to assessment.**

When the Council determines that any property is exempt from special assessment, the Council may order that the improvements shall not be made in front of or abutting upon such property unless the owner shall pay the part of the cost which would be assessed against such property.

**Section 1.8. Petitions for improvements.**

When the owners of two-thirds (⅔) of the front feet of property abutting upon any street, sidewalk, alley, or right-of-way petition the Council for the improvement thereof pursuant to the provisions of this Article, the Council shall order the improvements to be made as provided herein. The petition may specify the materials to be used and the maximum cost per front foot, and no contract shall be awarded at a cost greater than specified. When improvements are ordered to be made upon a petition, the improvements shall be made and the full cost thereof shall be assessed against abutting property and railroads in accord with the provisions of this Article.

**Section 1.9. Tax bills.**

The assessments and liens imposed by the Council against property abutting upon any street, sidewalk, alley, or right-of-way shall be evidenced by assignable tax bills to be issued to the contractor by the city in payment of the cost of the improvements. The Council shall prescribe the form and terms of the tax bills. A recital in the tax bill that the proceedings with reference to making the improvements and imposing the assessments and liens have been in accord with the provisions of this Article shall be prima facie evidence of the facts, and such proceedings shall be presumed to have been in accord with the provisions hereof. The adoption by the Council of an ordinance making an assessment and imposing a lien against property shall operate as notice of the assessment and lien to all creditors of the owners of the property and any purchaser thereof.

**Section 1.10. Delinquent installments.**

The cost of improvements assessed against property, together with reasonable cost of collection including reasonable attorney fees shall be a lien upon the property superior to all other liens, claims, or title, except city, school, county, and state taxes and as to city, school, county, and state taxes, the lien shall be coequal.

When the payment of an installment of an assessment is delinquent under the terms of the assessing ordinance, the Mayor shall, upon request of the holder of the tax bill, certify the delinquent installment, interest, and penalty then due to the County Treasurer of the county in which the property is located. The delinquent installment and interest shall be placed by the County Treasurer upon the delinquent tax list of the county for the current year and collected as other delinquent taxes are collected and upon collection be paid to the city for disbursement to the holder of the tax bill. If the property subject to such assessment is sold by the County Treasurer, the certificate or deed therefor shall be executed and

delivered as provided by law for the sale of property for unpaid ad valorem taxes. Such liens may be enforced by the holder of the tax bill by action in any court of competent jurisdiction. Upon the filing of an action for foreclosure of an installment of an assessment, all remaining installments of an assessment shall become due and payable and the lien thereof may be foreclosed in such action. The Council may by ordinance make other rules and regulations, not inconsistent with this Article, for the collection of assessments for improvements. Any error or omission in selling property or designating the names of owners or any other error or omission may be corrected at any time by the Council or by the County Treasurer as provided by law for the correction of mistakes in sales of property for unpaid ad valorem taxes.

**Section 2.1. Sidewalk improvement districts.**

The Council may construct, reconstruct, or repair any sidewalk, driveway return, or curb in the city when the public necessity requires such improvements. No change of grade previously established by the city shall be made without the payment of compensation to the owner of abutting property for any damage caused to permanent improvements erected with reference to the established grade; provided, the failure to pay such compensation shall not prevent the construction, repair, or improvement of sidewalks, driveway returns, or curbs, or invalidate any assessment against the property for the cost of such construction, reconstruction, or repair.

**Section 2.2. Resolution of necessity.**

When the Council shall deem it necessary to construct, reconstruct, or repair any sidewalk, driveway return, or curb fronting on or along any street, alley, or right-of-way, the Council shall declare by resolution the necessity for such improvements and direct the Mayor to prepare specifications and estimates of the cost of such improvements. Any number of sidewalks, driveway returns, or curbs may be included in a resolution. The Mayor shall prepare and submit to the Council specifications, estimates of cost, and a statement of the names of the owners and the description of the property liable to assessment for the cost of the improvements.

**Section 2.3. Notice to property owners.**

The Council shall approve the specifications and the statement. The Council shall notify the owners of the property liable to assessment for the cost of the improvements that the improvements have been ordered, constructed, reconstructed, or repaired and that specifications and estimates of cost have been approved by the Council and filed with the City Clerk. The Council shall notify the owners of the property liable to assessment to construct, reconstruct, or repair the improvements in accord with the approved specifications within thirty (30) days after the publication of the notice, or the city shall contract for the construction, reconstruction, or repair thereof. The notice shall be published in a daily newspaper of general circulation in the city for three (3) consecutive issues and shall be mailed to the owners of the property liable to assessment at their last known address.

**Section 2.4. Contract procedure.**

If the improvements have not been constructed within thirty (30) days by the owners of the property liable to assessment, the Council shall declare by resolution that the improvements shall be constructed, reconstructed, or repaired, and advertise in a daily

newspaper of general circulation in the city for bids for the construction, reconstruction, or repair in accord with the approved specifications. The resolution shall provide that payment for the cost of the construction, reconstruction, or repairs, an engineering fee of not to exceed five percent (5%) of the cost of construction, and other expenses incurred by the city will be made by the issuance of tax bills. The advertisement shall state the time for submitting bids which shall be not less than ten (10) days from the date of the advertisement. The Council shall award the contract to the most advantageous and the lowest secure bidder, or the Council may reject all bids.

**Section 2.5. Hearing on assessments.**

After the execution of a contract, the Mayor shall submit to the Council a statement of the cost of such improvements, including the engineering fee of not to exceed five percent (5%) of the cost of construction and the other expenses incurred by the city, together with the proposed assessments of those costs against abutting property.

The Council shall hold a hearing on the proposed assessments. Notice of the hearing on assessments shall be given by publication in a daily newspaper of general circulation in the city for three (3) consecutive issues and by registered or certified mail to the owners of the property liable to assessment at their last known address. The notice of assessment hearing shall be mailed and published not less than ten (10) days before the date of the hearing.

The Council shall hear objections of any owner of property liable to assessment and may raise or lower proposed assessments and shall assess by ordinance the total cost of the improvements against the property liable therefor.

**Section 2.6. Payment of contractor.**

The ordinance assessing the cost of the improvements against the property benefited by the improvements shall provide that the assessments shall be payable in three (3) equal annual installments with interest at the rate established by the Council from the date of the adoption of the assessing ordinance. The owner of property assessed with the cost of improvements may pay the full assessment without interest within thirty (30) days from the date of the adoption of the assessing ordinance, or may pay any unmatured installment of an assessment by paying the same together with interest to the next installment due date. Such assessments shall constitute liens against the property until paid.

After the completion and acceptance of the improvements, the Council shall deliver to the contractor any payments of assessments and shall issue and deliver to the contractor in payment of the balance of the total cost of the improvements special sidewalk, driveway return, and curb tax bills. The contractor shall pay to the city the engineering fee and other expenses incurred by the city. The form of the tax bill shall be established by the Council.

**Section 2.7. Delinquent assessments.**

The Mayor after twenty (20) days from the due date of an installment of an assessment shall, upon the request of the holder of an unpaid and delinquent sidewalk, driveway return, or curb tax bill, certify to the County Treasurer of the county in which the property is located, the delinquent installment, interest, and penalty. The County Treasurer shall place the delinquent installment, interest and penalty upon the delinquent tax list of the

county to be collected as other delinquent taxes are collected. Delinquent installment assessments shall bear the penalty established by the Council from the due date of each installment until paid. The County Treasurer shall advertise such delinquent assessments upon the delinquent tax list and sell the property liable for the assessment as provided by law for the sale of property for unpaid ad valorem taxes. Collected delinquent assessments shall be paid to the city for disbursement to the holder of the tax bill.

**Section 2.8. Foreclosure.**

The holder of a special sidewalk, driveway return, and curb tax bill may foreclose the lien of the tax bill when any assessment shall remain delinquent for a period of one (1) year by an action in a court of competent jurisdiction. Upon the filing of an action for foreclosure of an installment of an assessment, all remaining installments of an assessment shall become due and payable and the lien thereof may be foreclosed in such action.

**Section 2.9. Emergency procedure.**

When the Council shall determine it necessary for the public safety to immediately repair any sidewalk, driveway return, or curb, the Council may declare by resolution an emergency and make such repairs. The Council shall order the owner or occupant of the property abutting the sidewalk, driveway, or curb to make such emergency repairs within three (3) days after the service of the order. If the owner or occupant cannot be found, the order may be served by posting a copy thereof upon the property abutting the sidewalk, driveway, or curb to be repaired. If the repairs are not made in accord with the order, the city may repair the sidewalk, driveway return, or curb or award a contract for the repair without advertisement. The cost of the repairs shall be assessed against the abutting property as provided by this Article for sidewalk assessments; provided, assessments of three hundred dollars ($300.00) or less shall be payable in one (1) installment.

**Section 3.1. Sanitary sewer districts.**

The Council may establish by ordinance districts for the construction, reconstruction, repair, or extension of sanitary sewers. The Council shall establish a district when the owners of more than one-half (½) the area of the land liable to assessment for a sanitary sewer shall petition therefor. Sewer districts may be changed, enlarged, or extended and shall include all necessary sewers, laterals, inlets, catch-basins, manholes, and other appurtenances necessary to serve the property within the district.

**Section 3.2. Payment for public sewers.**

Except as herein otherwise provided, the cost of construction, reconstruction, repair, and extension of public sanitary sewers shall be paid as follows:

**A.** The cost of mains and submains shall be paid by the city; except, upon a petition signed by the owners of more than one-half (½) in area of the land that will be drained or benefited by the construction of mains or submains, the Council may create a district and order the construction of mains and submains and assess the cost of construction against property included within the district and benefited by the mains and submains as provided in Section 3.4 of this Article; and

**B.** The cost of district sewers and laterals shall be paid by the owners of the property abutting on and served by the district sewers and laterals; provided, where a main

or submain serves the purpose of a district sewer or a lateral for the property abutting thereon, the abutting property shall be assessed an amount equal to the assessment which would have been made for a district sewer or lateral.

**Section 3.3. Construction of district sewers.**

The Mayor shall prepare and submit to the Council plans and specifications for the construction of sanitary sewers within a sewer district and an estimate of the cost of construction. Upon approval by the Council, the City Clerk shall advertise in a daily newspaper of general circulation in the city for bids for the construction of the sewers. The advertisement shall state the time for submitting bids which shall not be less than ten (10) days from the date of the advertisement. Bids shall be filed with the City Clerk and shall be opened at a meeting of the Council. The Council shall award the contract to the most advantageous and lowest secure bidder, or the council may reject all bids.

**Section 3.4. Assessments and hearing.**

After the execution of a contract, the Mayor shall submit to the Council a statement of the cost of construction which shall include an engineering fee not exceeding five percent (5%) of the cost of construction and other expenses incurred by the city, together with the proposed assessments of those costs against property included within the sewer district and benefited by the construction of the sewers. The cost shall be assessed against each property in the sewer district in the proportion of the area of each property to the area of the entire district, excluding public streets. The Council shall hold a hearing on the proposed assessments. Notice of the hearing on assessments shall be given by publication in a daily newspaper of general circulation in the city for three (3) consecutive issues and by registered or certified mail to the owners of the property liable to assessment at their last known address. The notice of the assessment hearing shall be mailed and published not less than ten (10) days before the date of the hearing. The Council shall hear the objections of any owner of property liable to assessment and correct the assessments to conform to the provisions of this Section.

**Section 3.5. Tax bills.**

The Council shall assess by ordinance the total cost of construction against the property within the district. The assessing ordinance shall state the assessment against each lot or parcel within the district, the time and manner of payment, the rate of interest to be charged upon deferred installments, the penalty upon delinquent installments, and that each assessment shall be payable in five (5) equal annual installments commencing one (l) year after the date of the adoption of the assessing ordinance. The owner of property assessed with the cost of improvements may pay the full assessment without interest within thirty (30) days from the date of the adoption of the assessing ordinance, or may pay any unmatured installment of an assessment by paying the same together with interest to the next installment due date. Such assessments shall constitute liens against the property until paid.

**Section 3.6. Payment of contractor.**

After completion and acceptance of the sewers, the Council shall deliver to the contractor any payments of assessments and shall issue and deliver to the contractor sewer

tax bills in payment of the balance of the total costs. The contractor shall pay to the city the engineering fee and other expenses incurred by the city. The form of the sewer tax bill shall be established by the Council.

**Section 3.7. Assessments a lien—delinquencies.**

Sewer tax bills, and the interest and penalty thereon, shall be a lien until paid against the lots and parcels of land assessed from the date of the adoption of the assessing ordinance coequal with the lien of ad valorem taxes and all other taxes and special assessments and prior and superior to all other titles and liens against such lots or parcels of land. The Mayor after twenty (20) days from the due date of an installment of an assessment shall, upon the request of the holder of an unpaid and delinquent sewer tax bill, certify to the County Treasurer of the county in which the property is located the delinquent installment, interest, and penalty. The County Treasurer shall place the delinquent installment, interest, and penalty upon the delinquent tax list of the county to be collected as other delinquent taxes are collected. Delinquent assessments shall bear the penalty established by the Council from the due date of each installment until paid. The County Treasurer shall advertise such delinquent assessments upon the delinquent tax list and sell the property liable for the assessment as provided by law for the sale of property for unpaid ad valorem taxes. Collected delinquent assessments shall be paid to the city for disbursement to the holder of the sewer tax bill.

**Section 3.8. Foreclosure.**

The holder of a sewer tax bill may foreclose the lien of the tax bill when any assessment shall remain delinquent for a period of one (1) year by an action in a court of competent jurisdiction. Upon the filing of an action for foreclosure of an installment of an assessment, all remaining installments of an assessment shall become due and payable and the lien thereof may be foreclosed in such action.

**Section 4. Resort to courts.**

No action shall be commenced or maintained to set aside a tax bill issued pursuant to this Article, or to enjoin the Council from making improvements under this Article unless commenced within twenty (20) days after the adoption of the ordinance making such assessments; provided, that if a tax bill or assessment shall be declared invalid in whole or in part, the Council may make a new assessment as provided herein for original assessments.

# ARTICLE X. CIVIL SERVICE COMMISSION AND MERIT SYSTEM

## Section 1.1. Purpose.

A merit system is hereby created. Appointments and promotions in the classified service of the city shall be made solely on the basis of merit and fitness, determined by competitive procedures.

## Section 1.2. Removals.

Suspensions, removals, and demotions shall be made solely for cause and the good of the service.

## Section 1.3. Firefighters excluded.

The provisions of this Article shall not apply to sworn firefighters of the city.

## Section 2.1. Civil service commission.

There is hereby created a Civil Service Commission which shall consist of five (5) members appointed for five (5) year terms by the Mayor, subject to confirmation by a majority vote of the entire membership of the Council. Members of the Civil Service Commission serving as of the effective date of this amended Charter shall continue to serve until the expiration of their respective terms. In the event of death, resignation, or removal from office of a member of the Civil Service Commission, the Mayor shall appoint a successor to fill the unexpired term of such member, subject to confirmation by a majority vote of the entire membership of the Council. Members shall be qualified electors of the city and shall not be or become candidates for any public office or hold any public or political office during their tenure as members of the Civil Service Commission. Any member may be removed for cause after a public hearing by an affirmative vote of two-thirds (2/3) of the entire membership of the Council.

## Section 2.2. Chairman and vice chairman.

The Civil Service Commission shall elect a Chairman and Vice Chairman and shall hold a minimum of one (1) regular meeting each month. The Chairman or any two (2) Commission members may call special meetings of the Civil Service Commission. Members shall serve without compensation. The Civil Service Commission may summon and compel the attendance and testimony of witnesses, the production of books, papers, or other evidence, and may impose penalties established by rule for refusal to obey an order or a subpoena. All meetings shall be open to the public as provided by the laws of Oklahoma.

## Section 3. Rules and regulations.

The Civil Service Commission shall adopt rules and regulations governing the merit system which shall be submitted to the Council for approval or disapproval. The personnel rules and regulations shall become effective upon approval by the Council, or if the Council fails to act, the rules and regulations shall become effective twenty-one (21) days after the date of submission to the Council. The personnel rules and regulations shall be made available to any employee upon request. The personnel rules and regulations shall particularly provide for:

**A.** The classification of all positions in the classified service;

**B.** The qualifications, standards, and procedures for entrance and promotion procedures, and methods of certification of eligibility to the appointing authority;

**C.** The preparation of reemployment, promotion and seniority lists;

**D.** Transfers, promotions, demotions, and dismissals;

**E.** The grounds for disciplinary action;

**F.** Appeals of classified personnel;

**G.** Procedures for the Civil Service Commission to hear appeals, grievances, and recommendations of employees pertaining to the merit system; and

**H.** Probationary periods not exceeding one (1) year for original appointees and promotees.

The Civil Service Commission shall recommend to the Mayor a pay plan for the different classes, ranks, and grades and rules for vacation, sick, and other leaves for all officers and employees in the classified service which may be approved, disapproved, or revised by the Mayor.

### Section 4. Personnel director.

There is hereby created the position of Personnel Director. The Personnel Director shall be recommended by the Civil Service Commission and shall be appointed by the Mayor, subject to confirmation by a majority vote of the entire membership of the Council. The Personnel Director, under the direction of the Civil Service Commission, shall administer the merit system established by this Article. The Personnel Director shall be a person experienced in personnel administration and familiar with its principles and methods. The Personnel Director shall be subject to dismissal for cause by the Civil Service Commission.

### Section 4.1. City Attorney appointment.

The person appointed to the office of City Attorney created by Article III, Section 4 of this amended City Charter shall be appointed to the classified service of the City of Tulsa; notwithstanding the provisions of Article II, Section 19, the Mayor's appointment of the City Attorney shall be subject to confirmation by a majority vote of the entire membership of the Council.

*(Res. No. 20046, Prop. No. 4, 5-20-20/Elec. of 8-25-20)*

### Section 5. Classified and unclassified service.

All officers and employees whose salaries are wholly paid by the city shall be in the classified service, except the following:

**A.** Elective officers;

**B.** Not more than sixteen (16) positions on the staff of the Mayor to be designated by the Mayor, which positions shall include the heads of any divisions;

**C.** One (1) position on the staff of the City Auditor to be designated by the City Auditor;

**D.** Members of boards and authorities;

**E.** Temporary, emergency, and special qualification personnel employed or under contract for temporary periods, as defined by the Civil Service Commission; and

**F.** Municipal judges.

No officers and employees other than those listed above as exceptions shall be in the unclassified service.

**Section 6.1. Appointments and promotions.**

All original appointments and promotions to positions in the classified service shall be based upon competitive procedures. The Personnel Director shall certify to the appointing authority for original appointment or promotion the names of at least three (3) persons making passing grades and scoring highest, if at least three (3) apply and are qualified.

**Section 6.2. Probationary periods.**

Probationary periods as established by rule shall be served by original appointees and promotees during which the appointing authority may terminate the service of an original appointee or restore the former position of a promotee.

**Section 6.3. Veterans.**

Every honorably discharged veteran of the Armed Services of the United States, with six (6) months or more of active duty service during a period of war or armed conflict, passing the examination shall have five percent (5%) added to the grade for an original appointment examination.

**Section 6.4. Promotions.**

Qualified persons in the classified service may take promotion examinations in any department, except for sworn police officer positions; provided, if no classified person qualifies, then other qualified persons shall be eligible to take the examination.

**Section 6.5. Police officer promotions.**

Only sworn police officers of the City may take promotion examinations for sworn police officer positions.

**Section 7. Reduction for economy or abolition of position.**

Whenever the number of employees in any department is reduced for economy reasons, when a position is abolished, or when a position on the staff of the Mayor is removed from the classified service by designation of the Mayor, the persons with the least seniority in the affected classifications shall be reduced to the next lower classification for which qualified in that department and in like manner with the persons of least seniority in the lowest classification in that department being removed. Any person removed who makes written request to the Personnel Director within thirty (30) days shall be placed upon a reemployment list with priority for reemployment in their classification in any department of the city according to their seniority.

**Section 8.1. Suspension, removal, and demotion.**

All officers and employees in the classified service shall hold their respective positions regardless of changes of city officials or city administrations and shall be suspended without pay, demoted, or removed only for good and sufficient cause.

**Section 8.2. Notice.**

Persons in the classified service who are suspended without pay, removed, or demoted shall be notified in writing of the specific cause thereof within five (5) days following such action. A copy of such statement of cause shall be filed with the Personnel Director. Within ten (10) days from the receipt of such notice, the person affected may file a written request with the Personnel Director for a hearing before the Civil Service Commission. If such person shall fail to request a hearing before the Civil Service Commission as provided herein, the suspension without pay, removal, or demotion shall be final. The Civil Service Commission shall hold a public hearing within sixty (60) days after the filing of the request.

*NOTE: This section was amended to read as above by an amendment voted February 13, 1996, and approved by the Governor on June 21, 1996. There were 47,394 votes in favor of the amendment and 9,530 votes against the amendment. The title to this amendment read:*

*Shall the existing charter of the City of Tulsa, as heretofore amended, be further amended to provide that employees must file appeals of a suspension, demotion, or termination within ten (10) days of notification and to provide hearings may be held within sixty (60) days of the notice of appeal?*

*Prior to this amendment, this section read as follows:*

**Section 8.2. Notice.**

*Persons in the classified service who are suspended without pay, removed, or demoted shall be notified in writing of the specific cause thereof within five (5) days following such action. A copy of such statement of cause shall be filed with the Personnel Director. Within ten (10) days from the receipt of such notice, the person affected may file a written request with the Personnel Director for a hearing before the Civil Service Commission. The Civil Service Commission shall hold a public hearing within thirty (30) days after the filing of the request. If such person shall fail to request a hearing before the Civil Service Commission as provided herein, the suspension without pay, removal, or demotion shall be final.*

**Section 8.3. Hearing.**

Not less than three (3) members of the Civil Service Commission shall be required to hold a hearing on a suspension, removal, or demotion. A majority vote of the members holding the hearing shall be required for a decision. The City Attorney shall present the charges upon which the suspension, removal, or demotion is based. The Civil Service Commission shall rule upon the question of admissibility of evidence, competency of witnesses, and any other question of law. The employee may be represented by counsel or another person. The hearing shall be informal and shall be conducted in accord with the rules of evidence generally followed before administrative tribunals and without formal or technical adherence to those rules which prevail in a court of law. The burden of proof shall be upon the appointing authority whose action is the subject of the hearing. No suspension, removal, or demotion shall be affirmed unless sustained by a preponderance of the evidence.

*NOTE: This section was amended to read as above by an amendment voted February 13, 1996, and approved by the Governor on June 21, 1996. There were 40,464 votes in favor of the amendment and 13,924 votes against the amendment. The title to this amendment read:*

*Shall the existing Charter of the City of Tulsa, as heretofore amended, be further amended to allow Civil Service Commission appeals to be heard by three commissioners?*

*Prior to this amendment, this section read as follows:*

**Section 8.3. Hearing.**

*Not less than four (4) members of the Civil Service Commission shall be required to hold a hearing on a suspension, removal, or demotion. A vote of three (3) members shall be required for a decision. The City Attorney shall present the charges upon which the suspension, removal, or demotion is based. The Civil Service Commission shall rule upon the question of admissibility of evidence, competency of witnesses, and any other question of law. The employee may be represented by counsel or another person. The hearing shall be informal and shall be conducted in accord with the rules of evidence generally followed before administrative tribunals and without formal or technical adherence to those rules which prevail in a court of law. The burden of proof shall be upon the appointing authority whose action is the subject of the hearing. No suspension, removal, or demotion shall be affirmed unless sustained by a preponderance of the evidence.*

**Section 8.4. Action.**

If after the hearing before the Civil Service Commission the employee is found to be suspended, removed, or demoted without adequate cause, the position of the employee shall be restored without loss of pay. If the Civil Service Commission shall find cause, it may approve or modify the action taken by the appointing authority; provided, any right of appeal to the courts shall not be abrogated. The Civil Service Commission shall make written decisions with findings of fact.

**Section 8.5. Discrimination prohibited.**

No person in the classified service shall be suspended, removed, or demoted because of race, creed, color, sex, age, national origin, religion, political beliefs or affiliations, except when such person advocates the overthrow of the government by force or violence.

**Section 9. Compensation.**

All persons having the same classification in the classified service shall receive a rate of pay within the limits of compensation for that classification. The Personnel Director shall certify to the Mayor the pay rate of each employee entering the classified service of the city.

**Section 10.1. Political activities permitted.**

Municipal employees in the classified service may attend and express their views at city council meetings, or any other public meetings of municipal entities.

Any municipal employee in the classified service may actively participate in partisan and nonpartisan political activities. Provided, the political activity in which the employee participates shall be exercised only during off-duty hours and while not in uniform. Any federal statutes restricting the political activities of certain municipal employees shall supersede the provisions of this section as to such employees.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017. There were 6,968 votes in favor of the amendment and 3,312 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article X, "Civil Service Commission and Merit System", Section 10.1, "Political Activities Prohibited", and Article XI, "Fire Department",*

*Section 5.1 "Political Activities Prohibited", be amended to permit municipal employees, including firefighters, to attend public meetings and express their views, and to permit political activities by municipal employees, including firefighters, when off duty and not in uniform?*

*Prior to this amendment, this section read as follows:*

**Section 10.1. Political activities prohibited.**

*No person in the classified service shall take an active part in any campaign for the election of officers of the city, except to vote and privately state a personal opinion.*

**Section 10.2. Solicitations prohibited.**

No contributions for a candidate for a city office shall be solicited by or from persons in the classified service.

**Section 10.3. Voting threats prohibited.**

A Mayor, Councilor, City Auditor, officer, or employee of the city who threatens, intimidates, or coerces, or attempts to threaten, intimidate, or coerce, an employee in the classified service in the exercise of a vote shall be guilty of willful maladministration and shall be subject to removal from office or position as provided in this Article or by the laws of Oklahoma.

## ARTICLE XI. FIRE DEPARTMENT

### Section 1. Fire department created.

The Fire Department of the city is hereby created.

### Section 2. Fire chief—How appointed—Qualifications.

The Chief of the Fire Department shall be appointed by the Mayor. The Chief shall have had at least ten (10) years of experience as a firefighter in the city.

### Section 3. Firefighters—How appointed.

The sworn members of the Fire Department shall, upon the approval and recommendation of the Fire Chief, be appointed by the Mayor; provided, all persons so appointed shall serve on probation for a period of twelve (12) months from the time of such appointment, during which time the Personnel Committee of the Fire Department may terminate the appointment of such probationary firefighter if upon observation, investigation, or consideration of the performance of duty they deem that probationary firefighter unsatisfactory or unfit for the service.

*(Res. No. 20044, Prop. No. 2, 5-20-20/Elec. of 8-25-20)*

### Section 4.1. Tenure of office and retention of rank.

The sworn members of the Fire Department, including the Chief of the Fire Department, shall hold their respective positions during good behavior regardless of changes of city officials or city administrations, unless removed for good and sufficient cause. No sworn member of the Fire Department shall be removed, suspended, demoted, or discharged except for good and sufficient cause and then only upon written charges filed by the Mayor or the Chief of the Fire Department. A written statement of charges in clear and concise language shall be served upon the person charged, and such person shall be summarily demoted or suspended from service, as requested in such charges, pending trial thereon.

### Section 4.2. Trial.

Any person against whom written charges are filed, requesting removal, suspension, demotion, or discharge, may within ten (10) days from the date of service of the charges upon the person file with the City Clerk a demand for an open trial before the Council. At the trial the person charged shall have the right to be represented by legal counsel. The Council shall, within ten (10) days after demand, give the person charged an open hearing upon the charges.

### Section 4.3. Decision.

If after hearing the Council shall find that good and sufficient cause has not been shown for the removal, suspension, demotion, or discharge, the Council shall order the person charged to be reinstated and shall compensate them for the time of such removal, demotion, or suspension. If the Council by a majority vote shall find that good and sufficient cause has been shown by a preponderance of evidence, the Council may order the

removal, suspension, demotion, or discharge of such person, or may discipline such person by suspension for a period of not more than ninety (90) days or by fine in an amount not to exceed fifty dollars ($50.00), or both.

*(Res. No. 20044, Prop. No. 1, 5-20-20/Elec. of 8-25-20)*

**Section 4.4. Transfers.**

No sworn member of the Fire Department shall be transferred out of the Fire Department without the written consent of the firefighter.

**Section 4.5. Appeals.**

No act of the Council shall be construed to deny a sworn member of the Fire Department the right to file an action for hearing before any court of general jurisdiction.

**Section 5.1. Political activities permitted.**

Any chief, officer, or sworn members of the Fire Department may attend and express their views at city council meetings, or any other public meetings of municipal entities.

Any chief, officer, or sworn member of the Fire Department may actively participate in partisan and nonpartisan political activities. Provided, the political activity in which the employee participates shall be exercised only during off-duty hours and while not in uniform. Any federal statutes restricting the political activities of certain municipal employees shall supersede the provisions of this section as to such employees.

*NOTE: This section was amended to read as above by an amendment voted November 14, 2017. There were 6,968 votes in favor of the amendment and 3,312 votes against the amendment. The title to this amendment read:*

*Shall the City Charter of the City of Tulsa, Article X, "Civil Service Commission and Merit System", Section 10.1, "Political Activities Prohibited", and Article XI, "Fire Department", Section 5.1 "Political Activities Prohibited", be amended to permit municipal employees, including firefighters, to attend public meetings and express their views, and to permit political activities by municipal employees, including firefighters, when off duty and not in uniform?*

*Prior to this amendment, this section read as follows:*

**Section 5.1. Political activities prohibited.**

*No chief, officer, or sworn member of the Fire Department shall take an active part in any campaign for the election of officers of the city, except to vote and privately state a personal opinion.*

**Section 5.2. Political contributions.**

No contributions for a candidate for a city office shall be solicited by or from a sworn member of the Fire Department.

**Section 5.3. Voting.**

A Mayor, Councilor, City Auditor, officer, or employee of the city, or chief or sworn member of the Fire Department who threatens, intimidates, or coerces, or attempts to

threaten, intimidate, or coerce, a sworn member of the Fire Department in the exercise of a vote shall be guilty of willful maladministration and be subject to removal from office or position as provided by this Article or by the laws of Oklahoma.

**Section 6. Reduction of force, curtailment of expenditures.**

Nothing herein shall be construed to prohibit the Mayor from reducing the number of the force of the Fire Department because of curtailment of expenditures or like causes; provided, the persons discharged for such reasons shall be those of least seniority in period of time of service in the Fire Department; and provided further, each person so discharged for such causes shall be at the head of the list of eligibles for appointment and first employed in the order of such seniority.

**Section 7. Promotion.**

All promotions shall be made by the Mayor upon the written recommendation of the Personnel Committee. All promotions shall be made solely on merit, efficiency, and fitness, which shall be ascertained by competitive examination and impartial investigation by the Personnel Committee.

**Section 8. Applicants.**

An applicant for initial appointment or reappointment on the Fire Department shall meet the qualifications established by the rules and regulations of the Fire Department and by the laws of Oklahoma. Such rules and regulations shall be approved by the Council.

**Section 9. Personnel committee.**

The Personnel Committee of the Fire Department shall be composed of seven (7) members as follows:

**A.** The Chief of the Fire Department;

**B.** One (1) Chief Officer selected by the Mayor;

**C.** The Chief Officer in charge of training;

**D.** One (1) Chief Officer selected by the Fire Chief;

**E.** One (1) Fire Captain elected by the Fire Captains;

**F.** One (1) Fire Equipment Operator elected by the Fire Equipment Operators; and

**G.** One (1) firefighter elected by the firefighters below the rank of Fire Equipment Operator.

Four (4) members of the Personnel Committee shall constitute a majority and have power to act. The elected members of the Personnel Committee shall be elected only by the sworn members of the Fire Department who are of the classes designated in subsections E., F., and G. of this Section.

**Section 10. Discrimination prohibited.**

No chief, officer, or sworn member of the Fire Department shall be suspended, removed, or demoted because of race, creed, color, sex, national origin, religion, political beliefs or affiliations, except when such person advocates the overthrow of the government by force or violence.

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## ARTICLE XII. MISCELLANEOUS PROVISIONS

### Section 1. Definition of officer and qualified elector.

The term "officer" as used in this amended Charter shall apply only to those officers who are elected, appointed by the Mayor and confirmed by the Council, or who hold an office created by this amended Charter. The term "qualified elector" as used in this amended Charter shall mean a registered voter of the City of Tulsa, registered to vote as provided by the laws of Oklahoma.

*NOTE: This section was amended to read as above by an amendment voted March 1, 1994, and approved by the Governor on May 2, 1994. There were 59,574 votes in favor of the amendment and 7,964 votes against the amendment. The title to this amendment read:*

*Shall the existing Charter of the City of Tulsa, as heretofore amended, be further amended to define the term "qualified elector" to mean a registered voter of the City of Tulsa, registered to vote as provided by the laws of Oklahoma?*

*Prior to this amendment, this section read as follows:*

**Section 1. Definition of officer.**

*The term "officer" as used in this amended Charter shall apply only to those officers who are elected, appointed by the Mayor and confirmed by the Council, or who hold an office created by this amended Charter.*

### Section 2. All property subject to special assessment.

No property of any kind in the city shall be exempt from any of the special taxes and assessments authorized by this amended Charter for local improvements.

### Section 3. Execution of instruments.

All bonds, contracts, or other instruments requiring the approval of the city shall, unless otherwise provided by ordinance, by signed by the Mayor, or the Temporary Mayor and attested by the City Clerk; provided, however, that those contracts evidencing a settlement of claims where $1 million or more is claimed, whether a single claim or multiple claims arising out of a single act, accident, or the same transaction or occurrence, such contracts shall be signed by the Mayor, or the Temporary Mayor, and by the Chairman of the Council and attested by the City Clerk.

*NOTE: This section was amended to read as above by an amendments voted November 10, 2009, and approved by the Governor on January 5, 2010. There were 41,432 votes in favor of the amendment and 22,727 votes against the amendment. The title to this amendments read:*

*Shall the Charter of the City of Tulsa be amended to require that before any claim or lawsuit where the demand is equal to or greater than $1 million ($1,000,000) may be settled both the Mayor and the City Council must agree to the settlement?*

*Prior to the amendment, this section read as follows:*

**Section 3. Execution of instruments.**

*All bonds, contracts, or other instruments requiring the approval of the city shall, unless otherwise provided by ordinance, be signed by the Mayor, or the Temporary Mayor and attested by the City Clerk.*

**Section 4. Creation of advisory boards and commissions.**

Boards and commissions may be created by ordinance to serve and function in an advisory capacity. Members of boards and commissions created by ordinance shall serve until the expiration of their terms, unless disqualified and removed by the Mayor and City Council, prior to the expiration of their terms, as prescribed by ordinance. The members of boards and commissions shall serve without compensation.

*(Res. No. 20045, Prop. No. 3, 5-20-20/Elec. of 8-25-20)*

**Section 5. Exemption of city property from execution or assignment.**

The property, real and personal, of the city shall not be subject to sale or appropriation under any writ of execution. The city shall not accept or honor an assignment of the wages of any officer or employee of the city, whether earned or unearned, except as specifically provided by the laws of Oklahoma. No lien of any kind shall exist against any property of the city.

**Section 6. Bonds of officers and employees.**

City officers and employees shall enter into bonds for the faithful performance of their duties as required by ordinance.

**Section 7. Waiver of fines, penalties, fees, and charges.**

The Council, for good cause shown, may waive, in whole or in part, any fine, penalty, fee, or charge imposed under any ordinance.

**Section 8. Bonds required from contractors.**

Prior to commencement of performance of a contract for a public improvement, good and sufficient corporate surety bonds shall be given as required by the laws of Oklahoma.

**Section 9. Applicability of state law.**

The provisions of this amended Charter, and the provisions of any ordinance adopted by the Council in the exercise of a power granted, conferred, or reserved by the people of the city shall prevail over the provisions of a conflicting law of Oklahoma with respect to matters of purely local concern. Any matter pertaining to the government of the city not provided for in this amended Charter or by ordinance shall be governed by the laws of Oklahoma.

**Section 10. Oaths of office.**

Every person elected or appointed to an office in the city shall take the oath prescribed by the Constitution of Oklahoma.

**Section 11. Expiration of terms and appointments.**

**A.** All elected and appointed officers, and members of boards, commissions, authorities, and agencies created by this amended Charter, ordinance, agreement, or pursuant to law shall serve until the expiration of their terms and until their successors are elected and qualified or appointed as provided in this amended Charter.

**B.** All mayoral appointments to boards, commissions, authorities, and agencies created by this amended Charter, ordinance, agreement, or pursuant to law and requiring Council confirmation shall be made within sixty (60) days from the creation of the vacancy or expiration of an existing term, or within such additional time as may be authorized by the Council, for good cause shown. Upon omission of the Mayor to timely appoint any such member, such appointment shall be made by the Council.

**C.** Members of boards, commissions, authorities, and agencies created by this amended Charter, ordinance, agreement, or pursuant to law may be disqualified and removed by the Mayor and City Council prior to the expiration of their terms, as prescribed by ordinance.

*(Res. No. 20045, Prop. No. 3, 5-20-20/Elec. of 8-25-20)*

**Section 12.1. Public safety officers.**

All regularly employed sworn police officers and sworn firefighters are hereby designated collectively as Public Safety Officers.

**Section 12.2. Service pay.**

In order to provide continuity of service and to induce Public Safety Officers to remain in the service of the city and thereby improve the proficiency of those departments of the city charged with the responsibility of the public safety and in recognition of the hazardous nature of the duties performed by such Public Safety Officers and the special training and experience required and the peculiar working conditions of such officers, there is hereby established a longevity service pay allowance to be paid to such officers meeting the requirements herein set out. Such longevity service pay allowance shall be in addition to their regular salaries, merit raises, allowances, and other benefits established by proper authority.

**Section 12.3. Amount of service pay.**

Each Public Safety Officer who has completed three (3) years of service as a Public Safety Officer employee of the City shall receive seven and 50/100 dollars ($7.50) per month as a longevity pay allowance to commence the first day of the month following the month in which the third anniversary of employment occurs; and in like manner thereafter an additional two and 50/100 dollars ($2.50) per month for each successive year of regular employment as a Public Safety Officer until a Public Safety Officer shall have completed twenty (20) years of service. The longevity pay allowance shall not be increased after twenty (20) years of service.

**Section 13. Conflicts of interest.**

A violation of this Section shall render vacant the position held by the person in violation hereof. In the event the Mayor, a Councilor, the City Auditor, an officer, or employee of the city has a financial interest, directly or indirectly, in a proposed ordinance or resolution, or in any work, business, or contract, the cost of which is paid by the city or by any assessment levied by ordinance or resolution of the Council, such person shall disclose the interest to the Council and shall not participate in proceedings or vote thereon; provided, after a disclosure of an interest by the Mayor, contracts may be awarded upon

competitive bids with the approval of the Council by a majority vote of its entire membership. Contracts awarded or executed in violation of this Section shall be voidable by the Council.

*NOTE: This section was amended to read as above by an amendment voted February 13, 1996, and approved by the Governor on June 21, 1996. There were 30,419 votes in favor of the amendment and 24,985 votes against the amendment. The title to this amendment read:*

*Shall the existing Charter of the City of Tulsa, as heretofore amended, be further amended to delete the prohibition that the Mayor, Councilors, City Auditor, officers, employees, and members of boards and commissions shall not be in the employ of a person, company or corporation holding a franchise of the City of Tulsa?*

*Prior to this amendment, this section read as follows:*

**Section 13. Conflicts of interest.**

*The Mayor, Councilors, City Auditor, officers, employees, and members of boards and commissions shall not be in the employ of any person, company, or corporation holding or seeking any franchise of the city. A violation of this Section shall render vacant the position held by the person in violation hereof. In the event the Mayor, a Councilor, the City Auditor, an officer, or employee of the city has a financial interest, directly or indirectly, in a proposed ordinance or resolution, or in any work, business, or contract, the cost of which is paid by the city or by any assessment levied by ordinance or resolution of the Council, such person shall disclose the interest to the Council and shall not participate in proceedings or vote thereon; provided, after a disclosure of an interest by the Mayor, contracts may be awarded upon competitive bids with the approval of the Council by a majority vote of its entire membership. Contracts awarded or executed in violation of this Section shall be voidable by the Council.*

**Section 14. Contracts and purchases—competitive bids and procedures.**

Except as otherwise provided in this amended Charter, all contracts of whatever character pertaining to public improvements or the maintenance of property of the city requiring an expenditure of more than seven thousand five hundred dollars ($7,500.00), unless such amount is established otherwise by ordinance, shall be based upon specifications approved by the Mayor. An advertisement for the proposed contract inviting competitive bids shall be published in a daily newspaper of general circulation in the city not less than five (5) times. Specifications for the contract shall be filed with the City Clerk for inspection by parties desiring to bid. All bids shall be sealed and be opened publicly at the time and place specified in the notice. All bids shall be open to the public for inspection for at least forty-eight (48) hours before the award of the contract is made. The Mayor shall:

**A.** Accept and enter into a contract with the party submitting the lowest secure bid; or

**B.** Enter into a contract with a party other than the lowest secure bidder, with the approval of the Council, if the Mayor determines such bid to be the most advantageous bid for the city; or

**C.** Reject all bids, if the Mayor determines that none of the bids are satisfactory, in which event the Mayor may readvertise for bids or, with the approval of the Council, enter into a negotiated contract for the performance of the work.

All expenditures for supplies, materials, equipment, or services, other than those of a professional nature, requiring an expenditure of more than seven thousand five hundred

dollars ($7,500.00), unless such amount is established otherwise by ordinance, shall be made upon written contract after such competition prescribed by ordinance. The provisions of this Section may be waived by a majority vote of the entire membership of the Council upon the declaration of an emergency, whereby the immediate award of a contract is determined by the Council to be necessary for the preservation or protection of the public peace, health, safety, or welfare.

**Section 15. Vacation of office.**

When any officer, employee, or member of a board or commission ceases to possess any required qualification for election, appointment, or service, the Council after public hearing may declare such office or position vacant and the vacancy shall be filled as provided by this amended Charter. When an elected officer or an officer appointed by the Mayor and confirmed by the Council is charged with the commission of a felony, such officer shall be deemed suspended pending the trial or other disposition of the charge and shall receive no compensation from the city for the time of the suspension unless found innocent of such charge. Upon conviction of the officer in the trial court, the office or position held by such officer shall be deemed vacated as of the date of the indictment or filing of the charge and the vacancy shall be filled as provided in this amended Charter.

**Section 16. Records open to inspection.**

All records of the city and of boards, authorities, and commissions shall be open to inspection by citizens as provided by the laws of Oklahoma.

**Section 17. Powers granted by state.**

When the Constitution or the laws of Oklahoma applicable to cities which have adopted a charter impose a duty or confer a power upon a commission, city council, board of trustees, governing body, or other legislative body of a city, such duty imposed or power conferred shall be performed or exercised by the Council. When the Constitution or the laws of Oklahoma applicable to cities which have adopted a charter impose a duty or confer a power upon a mayor, chief executive or administrative officer of a city, such duty imposed or power conferred shall be performed or exercised by the Mayor.

**Section 18. Charter powers cumulative.**

When a power, authority, or right is conferred upon the city or upon the Council and different provisions are incorporated herein for the exercise thereof, each of such provisions shall be held and construed to be cumulative of the other pertaining to the same subject and the Council shall determine which of such powers it shall exercise.

**Section 19. Administration of oaths.**

The Mayor, Councilors, the City Clerk, and the City Attorney may administer oaths in the performance of their duties.

**Section 20. Amendments.**

Amendments to this amended Charter shall be submitted to the qualified electors of the city in the manner prescribed by the Constitution and by the laws of Oklahoma.

**Section 21. Continuance of officers and employees.**

All members of boards, commissions, authorities, and agencies created by ordinance at the effective date of this amended Charter shall continue to hold their offices and shall continue to perform their duties until their terms expire or until other provisions are made by ordinance. All employees of the city at the effective date of this amended Charter shall continue to hold their positions, subject to the provisions of Articles X and XI hereof.

**Section 22. Continuance of ordinances.**

All ordinances, resolutions, rules, and regulations of the city adopted prior to the effective date of this amended Charter shall remain in full force and effect until repealed or amended as provided in this amended Charter or by ordinance, or resolution.

**Section 23. Continuance of contracts.**

No existing right, action, suit, proceeding, or contract shall be affected by this amended Charter. All debts, claims, penalties, and forfeitures which have accrued or which may hereafter accrue to the city by virtue of anything heretofore done or existing shall inure to the benefit of the city and may be sued for and recovered as though this amended Charter had not been adopted. Nothing herein shall affect the collection of special assessments or levies of any kind or proceedings to enforce the payment thereof. All contracts heretofore entered into by the city shall remain in full force and effect and be completed under the Charter provision or ordinance existing prior to the adoption of this amended Charter.

**Section 24. Continuance of municipal criminal court.**

The Municipal Criminal Court of Record of the City of Tulsa is hereby continued as a court of record pursuant to the provisions of the laws of Oklahoma.

**Section 25. Superior law—Provisions to be severable.**

The provisions of this amended Charter and of any ordinance shall be construed not to conflict with any provisions of the Constitution of the United States of America or of the Constitution of Oklahoma or of the laws of Oklahoma which are applicable to cities which have adopted a charter in accord with Article XVIII, Section 3, of the Constitution of Oklahoma.

If any article, section, or part of this amended Charter shall be held unconstitutional or invalid for any reason by the Attorney General of Oklahoma in the review of this amended Charter as required by Article XVIII, Section 3, of the Constitution of Oklahoma or by a court of competent jurisdiction, such holding shall not be construed to invalidate or impair the remainder of this amended Charter which shall continue in full force and effect. If any article, section, or part of this amended Charter shall be unconstitutional or invalid in its application to a particular person or matter, such article, section, or part shall continue in full force and effect as to all other persons or matters to which it may be constitutionally or legally applied. Should any constitutional provision or law which may operate to bar the effectiveness of any provision of this amended Charter cease to operate by repeal, amendment, or otherwise, such Charter provision shall become fully effective and operative without re-enactment or subsequent adoption.

**Section 26. Repeal.**

All portions of the Charter of the City of Tulsa, as amended, in effect prior to the adoption of this amended Charter, not incorporated herein nor continued in effect, are hereby repealed.

**Section 27. Continuance of government.**

This amended Charter shall take effect at twelve o'clock noon on the 8th day of May, 1990, except Article VI pertaining to elections hereunder shall take effect on the 2nd day of January, 1990, and after approval by the Governor of the State of Oklahoma. The Board of Commissioners under the government existing in the City prior to the 8th day of May, 1990, shall take such acts and adopt such ordinances as are necessary to provide for the election of officers as provided in Article VI of this amended Charter and to provide for the implementation of the provisions of this amended Charter and the orderly transition to the form of government provided herein.

We, the undersigned, constituting a majority of the legislative body of the City of Tulsa, to wit: The Mayor and Board of Commissioners of the City of Tulsa, duly and regularly elected, qualified, and acting, do hereby subscribe our names to the above and foregoing amended Charter of the City of Tulsa, as proposed by Ordinance No. 17090 for submission to the qualified electors of the City of Tulsa for approval or rejection at a special election to be held February 14, 1989, and do hereby submit the proposed amended Charter to the City Auditor of the City of Tulsa for filing more than sixty (60) days prior to the date of the election and for publication for twenty-one (21) consecutive times in the Tulsa Daily Business Journal & Legal Record, Tulsa, Oklahoma.

/s/ Rodger A. Randle
Mayor

/s/ J. D. Metcalfe
Commissioner of Streets and Public Property

/s/ Robert N. Dick
Commissioner of Police and Fire

/s/ Gary L. Watts
Commissioner of Finance and Revenue

/s/ Charlie L. King
Commissioner of Waterworks and Sewerage

(Seal)

ATTEST:

/s/ Phillip W. Wood
City Auditor

APPROVED:

/s/ Neal E. McNeill
City Attorney

## SCHEDULE I

### CHARTER ELECTION DISTRICT NO. 1

Charter Election District No. 1 being described by metes and bounds as follows, to wit:

Beginning at the centerline of South Utica Avenue and the centerline of I-244 in Section 6, Township 19 North, Range 13 East, Tulsa County, Oklahoma; thence west along the centerline of I-244 to the interchange with the Inner Dispersal Loop; thence west along the centerline of the North leg of the Inner Dispersal Loop (I-244) to the interchange with the West leg of the Inner Dispersal Loop (I-244); thence in a southerly direction along the centerline of the West leg of said Inner Dispersal Loop to the interchange of said Inner Dispersal Loop and the Red Fork Expressway; thence southwest along the centerline of the southbound lanes of the Red Fork Expressway to the center of the Arkansas River; thence in a northwesterly direction along the center of the Arkansas River to the West line of said Section 11; thence north along the West line of Sections 11 and 2, Township 19 North, Range 12 East, Tulsa County, Oklahoma, to the Meander Line on the East bank of the Arkansas River; thence in a northwesterly direction along said Meander Line and across Sections 3, 4, and 9, Township 19 North, Range 12 East, Tulsa County, Oklahoma, to a point on the East line of said Section 8, Township 19 North, Range 12 East, Tulsa County, Oklahoma; thence south along said East line and continuing south along the East line of Vern Subdivision No. 2 to the Southeast Corner of said Addition; thence west along the South line of said Addition to the Southwest Corner thereof; thence north along the West line of said Vern Subdivision No. 2 to its intersection with the South line of Cunningham Addition to the County of Tulsa, Oklahoma; thence southwest along the South line of said Cunningham Addition to the Southwest Corner of Block 2, of said Addition; thence south along the projected West line of Blocks 5 and 2 of said Cunningham Addition to a point on the Meander Line of the North bank of the Arkansas River; thence Southwest along the said Meander Line to the Southeast Corner of Government Lot 3 in Section 8, Township 19 North, Range 12 East; thence North along the East line of said Government Lot 3 to the Northeast Corner thereof; thence west along the North line of said Government Lot 3 to a point on the West line of said Section 8; thence north along the West line of said Section 8 to a point 340.00 feet south of the North line of said Section 8; thence east parallel with the North line of said Section 8 to the Southwest Corner of Lot 12, Block 2, Lawnwood Addition to Tulsa, Oklahoma; thence north along the West line of Lots 12 and 11 of said Block 2 to a point on the North line of said Section 8; thence east along the North line of said Section 8 to a point 325.00 feet west of the East line of the SW/4 SW/4 of Section 5, Township 19 North, Range 12 East, Tulsa County, Oklahoma; thence north parallel to the East line of the said SW/4 SW/4 to its intersection with the South right-of-way line of the Old M.K.&T. Railroad; thence east along said right-of-way to its intersection with the West line of Ownwell Addition to Tulsa County, Oklahoma; thence north along the northerly projection of the West line of said Ownwell Addition to the north right-of-way of the Old M.K.&T. Railroad; thence east along said right-of-way line to a point on the South line of Mayfair Addition to Tulsa County, Oklahoma, said point being a point of curvature of a curve located 18.20 feet easterly of the Southwest Corner of Lot 3, Block 3 of said Mayfair Addition; thence Northwesterly along the South and West lines of said Mayfair Addition and continuing north along the West line of Lot 19, Block 2, Orf's Tracts Addition to Tulsa County, Oklahoma, to the North line of said

Orf's Tracts Addition; thence east along the said North line of Orf's Tracts Addition to a point 60.00 feet west of the East line of Section 5, Township 19 North, Range 12 East, Tulsa County, Oklahoma; thence north parallel with and 60.00 feet west of the East line of said Section 5 to a point on the North line of said Section 5; thence north 40.00 feet to a point; thence continuing west parallel with the South line of Sections 32 and 31 to a point 16.50 feet east of the West line of said Section 31, Township 20 North, Range 12 East, Osage County, Oklahoma; thence north parallel with and 16.50 feet east of the West line of Sections 31, 30, and 19 to a point 16.50 feet east of the Northwest Corner of the SW/4 of said Section 19; thence east to the Northeast Corner of the SE/4 of Section 19; thence continuing east to the Southeast Corner of the SW/4 NW/4 of Section 20, Township 20 North, Range 12 East; thence north along the East line of said SW/4 NW/4 to the Northeast Corner thereof; thence west along the North line of said SW/4 NW/4 to the Northwest Corner thereof; thence north to the North line of said Section 20; thence east along the North line of Section 20, Township 20 North, Range 12 East, Osage County, Oklahoma, to a point 16.50 feet east of the Northeast Corner thereof; thence south parallel with the West line of Section 21 to a point on the South line of the N/2 NW/4; thence east along said South line a distance of 2,623.50 feet to the Southeast Corner of said N/2 NW/4; thence north along the East line of said N/2 NW/4 a distance of 1,320.00 feet to the Northeast Corner of said N/2 NW/4 of Section 21; thence east along the North line of Sections 21 and 22, Township 20 North, Range 12 East, Osage County, Oklahoma, to a point, said point being the Northwest Corner of the NE/4 of said Section 22; thence north along the West line of the SE/4 of Section 15, Township 20 North, Range 12 East, Osage County, Oklahoma, a distance of 200.00 feet to a point; thence east parallel with the South line of said Section 15 to a point 1,000.00 feet west of the East line of said Section 15; thence northeast along a straight line to a point on the East line of said Section 15, 660.00 feet north of the Southeast Corner thereof; thence north along the East line of Section 15 to a point, said point being 100.00 feet north of the Westerly projection of the South line of Lot 8 of Section 14; thence east parallel with said Westerly projection of the South line of Lot 8 to a point on the West line of said Lot 8, said point being the 96 Meridian and also being the Osage—Tulsa County boundary; thence north along the 96 Meridian to a point 300.00 feet north of the Southwest Corner of Lot 6, Section 14; thence southeast along a straight line to a point 600.00 feet north and 623.00 feet west of the Southeast Corner of said Section 14; thence east and parallel with the South line of said Section 14 a distance of 573.00 feet to a point 50.00 feet west of the East line of said Section 14; thence north parallel with the East line of said Section 14 a distance of 603.00 feet; thence north parallel with the centerline of North Cincinnati Avenue and 50.00 feet perpendicular distance to said centerline to its intersection with the Easterly projection of the South line of Lot 1, Block 30, Valley View Acres Addition to Tulsa County, Oklahoma; thence west along the South line of Blocks 30 and 28 of said Addition to the Southwest Corner of said Block 28; thence north along the West line of Block 28 to a point 30.00 feet north of the North line of said Section 14; thence west and parallel to the North line of said Section 14 to a point on the West line of Section 11, said point also being the 96 Meridian; thence north along the 96 Meridian also being the West line of Valley View Acres Addition to Tulsa County, Oklahoma, to a point 25.00 feet west of the Northwest Corner of Lot 13, Block 12 of said Addition; thence east along the North line of Lots 13 through 9, Block 12 of said Addition to the Northeast Corner of said Lot 9;

thence north along the West line of Blocks 12 and 7 of said Addition to the Northwest Corner of said Block 7; thence east along the North line of Blocks 7 and 2 of said Valley View Acres Addition to a point 40.00 feet west of the East line of Section 11; thence north parallel with and 40.00 feet west of the East line of Section 11, Township 20 North, Range 12 East, Tulsa County, Oklahoma, a distance of 724.71 feet; thence west a distance of 710.0 feet; thence north a distance of 1,908.00 feet to the North line thereof; thence east along said North line a distance of 700.00 fee to a point 50.00 feet west of the East line of Section 11; thence continuing north parallel with and 50.00 feet west of the East line of Section 2, Township 20 North, Range 12 East, Tulsa County, Oklahoma, to the Southeast Corner of Block 1, Northgate Center Addition to Tulsa County, Oklahoma; thence west along the South Line of said Block 1, and continuing west along the South line of Block 1, Northgate Addition to the County of Tulsa and the South line of Blocks 6 and 8, Northgate Third Addition to Tulsa County, Oklahoma, to a point 5.00 feet east of the West line of said Block 8; thence north parallel with and 5.00 feet east of the West line of Blocks 8, 5, and 4 of said Northgate Third Addition to a point 16.50 feet south of the North line of said Block 4; thence east parallel with and 16.50 feet south of the North line of Blocks 4 and 1, and continuing east parallel with and 16.50 feet south of the North line of Blocks 2 and 1 of Northgate Second Addition to the County of Tulsa, Oklahoma, to the East line of said Block 1; thence south along the East line of Blocks 1 and 3 of said Northgate Second Addition to the Northeast Corner of Lot 1, Block 4 of said Addition; thence east to a point on the West line of Section 1, Township 20 North, Range 12 East, said point being 627.59 feet south of the Northwest Corner of said Section 1; thence continuing east a distance of 40.00 feet; thence south and parallel with and 40.00 feet east of the West line of said Section 1, to a point 30.00 feet south of the North line of the SW/4 of said Section 1; thence east parallel with and 30.00 feet south of the North line of said SW/4 to the East line thereof; thence continuing east 70.00 feet to a point; thence south parallel with and 70.00 feet east of the West line of the SE/4 of said Section 1 to a point 16.50 feet north of the South line of said Section 1; thence east parallel with and 16.50 feet north of the South line of said Section 1 to its intersection with the West line of the right-of-way of the Midland Valley Railroad; thence southwest along said right-of-way to a point 50.00 feet perpendicular distance from the North line of Section 12, Township 20 North, Range 12 East, Tulsa County, Oklahoma; thence east parallel with and 50.00 feet south of the North line of said Section 12 to the East Section Line thereof; thence continuing east and parallel with and 50.00 feet south of the North lines of Sections 7 and 8, Township 20 North, Range 13 East, Tulsa County, Oklahoma, to a point that intersects with the centerline of the Cherokee Expressway; thence south along the centerline of said Expressway to the centerline of East 36th Street North; thence west along the centerline of East 36th Street North to the centerline of North Lewis Avenue; thence south along the centerline of North Lewis Avenue to the centerline of Mohawk Boulevard; thence southwest along the centerline of Mohawk Boulevard to the centerline of North Peoria Avenue; thence south along the centerline of North Peoria Avenue to the centerline of East Pine Street; thence east along the centerline of East Pine Street to the centerline of North Utica Avenue; thence south along the center of North Utica Avenue to the point of beginning;

Less the following four (4) described parcels of land, to wit:

**A.** Beginning at a point on the North line of Hale Subdivision in the S/2 of Section 3, Township 19 North, Range 12 East to the City of Tulsa, Tulsa County, Oklahoma,

according to the official recorded plat thereof, said point of beginning being 25.00 feet east of the Northwest Corner of said Hale Subdivision; thence east along the North line of said Subdivision a distance of 2,609.20 feet to a point marking the Northeast Corner of said Subdivision; thence south along the East line of said Subdivision a distance of 970.80 feet to a point marking the intersection of the northeasterly prolongation of the North line of the alley in Block 13, of said Subdivision, with the East line of said Subdivision; thence southwesterly along a line coincident with the North line of the alley in Blocks 13, 12, and 11, a distance of 2,191.40 feet to a point marking the Southeasterly Corner of Lot 9, Block 11 in said Subdivision; thence northwesterly along a line coincident with the East lines of Lot 9, Block 11, Lots 23 and 9, Block 10, and Lot 21, Block 5, all in said Subdivision, a distance of 700.00 feet to a point marking the Southeasterly Corner of Lot 9, Block 5, of said Subdivision; thence southwesterly along the North line of the alley in Block 5, of said Subdivision, a distance of 330.00 feet to a point on the East line of South 33rd West Avenue in the City of Tulsa; thence north along the East line of said South 33rd West Avenue a distance of 744.50 feet to the point of beginning; and

**B.** Beginning at a point marking the intersection of the West line of South 33rd West Avenue in the City of Tulsa, with the South line of West Fifth Street; thence south along said West line of South 33rd West Avenue to a point on the North line of the Sand Springs Railroad; thence southwesterly along said North line to the East line of Shell Place, a Subdivision in the SW/4 SE/4 of Section 4, Township 19 North, Range 12 East, Tulsa County, Oklahoma; thence north along said East line to a point on the South line of East Fifth Street to the East; thence along said South line of Fifth Street northeasterly to the point of beginning; and

**C.** Beginning at a point 177.50 feet south and 335.00 feet S 79° 08' 00" W of the Northeast Corner of Lot 6, Section 3, Township 19 North, Range 12 East, Tulsa County, Oklahoma, said point being a point on the Southerly right-of-way line of the Sand Springs Railway Company; thence S 79° 08' 00" W on said Southerly right-of-way line a distance of 781.00 feet; thence southeasterly at right angles to said Southerly right-of-way line a distance of 115.40 feet to a point on a line parallel with and 8.50 feet perpendicularly distant in a northerly direction from the centerline of Tulsa Sand Company Track of Sand Springs Railway Company; thence northeasterly on a line parallel to the centerline of said Tulsa Sand Company Track a distance of 786.70 feet; thence northwesterly on a line perpendicular to the Southerly right-of-way line of said Railway Company a distance of 98.30 feet to the point of beginning; and

**D.** Beginning at a point 567.60 feet north and 418.18 feet N 79° 10' 00" E of the Meander Corner of the Left bank of the Arkansas River between Sections 3 and 4, Township 19 North, Range 12 East, Tulsa County, Oklahoma; thence N 79° 10' 00" E along the Southerly line of Charles Page Boulevard a distance of 870.50 feet; thence south a distance 216.00 feet to a point on the Northerly right-of-way line of Sand Springs Railway Company; thence southwesterly along said Northerly right-of-way line a distance of 871.36 feet; thence north a distance 223.20 feet to the point of beginning.

## FENCE LINE

Together with the east 70.00 feet of the west 86.50 feet of the N/2 of Section 19, Township 20 North, Range 12 East in Osage County, Oklahoma; and together with the east 70.00 feet of the west 86.50 feet of Sections 18, 7, and 6, Township 20 North, Range 12 East, Osage County, Oklahoma; together with the south 70.00 feet of the north 86.50 feet of Section 6 less the west 16.50 feet thereof; together with the south 70.00 feet of the north 86.50 feet of Sections 5, 4, 3, and 2, Township 20 North, Range 12 East, Osage County, Oklahoma; together with the south 70.00 feet of the north 86.50 feet of Section 2, Township 20 North, Range 12 East, Tulsa County, Oklahoma, beginning at the East line of Northgate Second Addition and continuing to the East line of said Section 2; together with the south 70.00 feet of the north 86.50 feet of Section 1, Township 20 North, Range 12 East; together with the south 70.00 feet of the north 86.50 feet of Sections 6 and 5, Township 20 North, Range 13 East, Tulsa County, Oklahoma; together with the south 70.00 feet of the north 86.50 feet of the west 904.90 feet of Section 4, Township 20 North, Range 13 East, Tulsa County, Oklahoma; together with the east 70.00 feet of the west 86.50 feet of Sections 33, 28, 21, 16, 9, and 4, Township 21 North, Range 13 East, Tulsa County, Oklahoma; together with the south 70.00 feet of the north 86.50 feet, less the west 16.50 feet thereof, of said Section 4 lying west of the centerline of Cherokee Expressway (U.S. Hwy. 75); together with the south 70.00 feet of the north 86.50 feet of the E/2 of Section 7, Township 19 North, Range 12 East, and the west 70.00 feet of the north 16.50 feet of the E/2 of said Section 7; the west 70.00 feet of the E/2 of Section 6, Township 19 North, Range 12 East; and the north 70.00 feet of the west 254.14 feet of the E/2 of said Section 6.

## CHARTER ELECTION DISTRICT NO. 2

Charter Election District No. 2 being entirely in Tulsa County, Oklahoma, and further described by metes and bounds as follows, to wit:

Beginning at a point on the centerline of the West 21st Street Bridge and the center of the Arkansas River; thence south along the center of the Arkansas River to the centerline of East 61st Street South; thence east along the centerline of East 61st Street South to the centerline of South Harvard Avenue; thence south along the centerline of South Harvard Avenue to the centerline of East 91st Street South, said point also being the Northwest Corner of Section 21, Township 18 North, Range 13 East; thence continuing south along the centerline of South Harvard Avenue and extending south along the West line of said Section 21 to the center of the Vensel Creek Channel; thence south along the center of the Vensel Creek Channel to a point on the Meander Line on the East bank of the Arkansas River; thence northwest along said Meander Line across Sections 32, 29, 20, and 17, Township 18 North, Range 13 East, to a point 24.75 feet north of the South line of said Section 17; thence west parallel with and 24.75 feet north of the South line of said Sections 17 and 18 to the Meander Line on the West bank of the Arkansas River; thence north and west along said Meander Line to its intersection with the North line of the S/2 NW/4 of said Section 18; thence west along said North line and continuing west along the North line of the S/2 NE/4 of Section 13, Township 18 North, Range 12 East, a distance of 24.75 feet to a point; thence south parallel with and 24.75 feet west of the East line of Section 13, Township 18 North, Range 12 East, to a point 24.75 feet north of the South line of said Section 13; thence west parallel with and 24.75 feet north of the South line of Sections 13, 14, and

15 to a point 24.75 feet east of the West line of said Section 15; thence north parallel with and 24.75 feet east of the West line of Sections 15, 10, and 3, Township 18 North, Range 12 East, to a point on the North line of said Section 3; thence west 24.75 feet to the Southeast Corner of Section 33, Township 19 North, Range 12 East; thence west along the South line of Section 33, also being the centerline of West 61st Street South, a distance of 222.50 feet to a point; thence north 35.00 feet; thence east parallel with the centerline of West 61st Street South a distance of 62.50 feet; thence north parallel with the East line of said Section 33 a distance of 670.00 feet to a point; thence west 210.00 feet to a point; thence north parallel with the East line of said Section 33 a distance of 568.50 feet to a point; thence east 34.20 feet to a point; thence north 25.00 feet to the Southwest Corner of 33rd Self Storage, a resubdivision of Campbell Hills Addition; thence north along the West line of AREAS "B" AND "C", BLOCK 1 of said 33rd Self Storage and continuing north along the Northerly projection of the West line of said AREA "B" a distance of 50.00 feet to a point on the South line of Country Oaks, a Resubdivision of said Campbell Hills; thence west 25.00 feet to the Southwest Corner of Lot 1, Block 1, Country Oaks; thence north along the West line of Lot 1, Block 1, Country Oaks to the Northwest Corner thereof; thence west along the North line of said Campbell Hills Addition to the Northwest Corner of Lot 1; thence south along the West line of Lots 1 and 8 to the Southwest Corner of Lot 8 of said Addition; thence continuing South a distance of 25.00 feet; thence west a distance of 25.00 feet to the Southeast Corner of the N/2 N/2 NW/4 SE/4 of said Section 33; thence west along the South line of said N/2 N/2 NW/4 SE/4 to a point 40.00 feet west of the East line of the NE/4 SW/4; thence south a distance of 25.00 feet to the Northeast Corner of Block 7, Doctor Carver Addition; thence south along the East line of Blocks 7 and 12 of said Addition to the Southeast Corner of Block 12; thence west along the South line of Blocks 12, 11, and 10 of said Addition to the Southwest Corner of Block 10; thence north along the West line of said Block 10 a distance of 227.15 feet to the East line of the right-of-way of the Oklahoma Union Railway; thence northeast along said right-of-way to its intersection with the North line of Block 16 of the Amended Plat of South Haven Addition; thence east along the North line of Blocks 16 and 3 of said Addition to the Northeast Corner of Block 3; thence east 25.00 feet to the West line of the E/2 NE/4 of Section 33, Township 19 North, Range 12 East; thence north along the West line to the South line of the NE/4 of Section 28, said point being the Southeast Corner of Allyn Faye Addition; thence west along the South line of said Block 3 to the Southwest Corner of Lot 15 of Block 3, of said Allyn Faye Addition; thence north along the West line of said Lot 15 and continuing north along the Northerly projection thereof a distance of 663.20 feet to a point 50.00 feet west of the Northwest Corner of Block 1 of said Allyn Faye Addition; thence west along the Westerly projection of the North line of said Block 1 and the North line of Block 1, Vera Faye Addition, to a point on the West line of the NE/4 of said Section 28; thence west 25.00 feet to a point; thence north parallel with the East line of the NW/4 of said Section 28 to a point on the North line thereof; thence continuing north 24.75 feet to a point, said point being 24.75 feet north and 25.00 feet west of the Southeast Corner of the SW/4 of Section 21, Township 19 North, Range 12 East; thence east parallel with the South line of said Section 21 to the West line of the E/2 W/2 SW/4 SE/4 of said Section 21; thence north along said West line to the Northwest Corner of said E/2 W/2 SW/4 SE/4; thence east along the North line of the SW/4 SE/4 a distance of 660.00 feet; thence south to a point 24.75 feet north of the South line of said Section

21; thence east parallel and 24.75 feet north of said South line of Section 21 a distance of 330.00 feet; thence north to the Northwest Corner of Block 3 of the Yargee Addition; thence continuing east along the North line of Blocks 3, 2, and 1 of said Addition to the Northeast Corner of Block 1 of said Addition; thence north parallel to and 30.00 feet west of the East line of said Section 21 to a point 900.00 feet south and 30.00 feet west of the Northeast Corner of the SE/4 of said Section; thence west parallel to the North boundary of said SE/4 a distance of 940.00 feet; thence north parallel with the East line of said Section 21 a distance of 600.00 feet; thence east parallel with the North boundary of said SE/4 a distance of 303.47 feet to a point on the West line of the NE/4 NE/4 SE/4; thence north along the West line of said NE/4 NE/4 SE/4 a distance of 300.00 feet to the Northwest Corner thereof; thence east along the North line of the SE/4 a distance of 666.53 feet to the Northeast Corner of the SE/4; thence continuing east along the North line of the original Townsite of Red Fork Addition to the Northeast Corner thereof; thence south along the East line of said Addition to its intersection with the North line of the right-of-way to the St. Louis and San Francisco Railroad; thence northeast along said Railroad right-of-way to its intersection with the West line of Interurban Addition; thence north along said Addition line to the Northwest Corner of said Addition; thence east along the North line of said Interurban Addition to its intersection with the East line of the right-of-way of the St. Louis and San Francisco Railroad; thence north along said right-of-way to its intersection with the North line of Section 22, Township 19 North, Range 12 East; thence east along said North line to the Northeast Corner of said Section 22; thence continuing east along the South line of Section 14, Township 19 North, Range 12 East, to the West line of the right-of-way of the Red Fork Expressway; thence north along said West right-of-way to its intersection with the North line of the SW/4 of said Section 14; thence west along said North line to its intersection with the East line of the right-of-way of the St. Louis and San Francisco Railroad; thence north along said right-of-way to a point 25.00 feet south of the North line of said Section 14; thence west parallel with and 25.00 feet south of the North line of said Section 14 to a point 50.00 feet west of the East line of the NW/4 NE/4 of Section 15, Township 19 North, Range 12 East; thence south parallel with said East line 875.00 feet; thence west parallel with the North line of said Section 15 a distance of 1,035.00 feet; thence north parallel with the East line of said Section 15 a distance of 900.00 feet to a point on the North line of said Section 15; thence continuing north to a point 25.00 feet north of the South line of Section 10, Township 19 North, Range 12 East; thence east parallel with and 25.00 feet north of said South line a distance of 2,410.21 feet to a point on the East line of said Section 10; thence north along the East line of said Section 10 to a point 220.00 feet north of the Southeast Corner of the NE/4 SE/4 of said Section 10; thence east along the North line of the right-of-way of West 17th Street South 635.00 feet; thence north 300.00 feet; thence east 25.00 feet; thence north 30.00 feet; thence east 150.50 feet to the West right-of-way line of the St. Louis and San Francisco Railroad; thence northeast along said Railroad right-of-way approximately 714.91 feet to a point, said point being 1,000.00 feet east and 81.00 feet south of the Northwest Corner of the SW/4 of said Section 11; thence west 60.00 feet; thence northeast and parallel to said Railroad right-of-way approximately 438.00 feet to a point, said point being 100.00 feet southwest and perpendicular to the Meander Line of the Arkansas River; thence northwest and parallel with said Meander Line a distance of 125.00 feet; thence northeast and perpendicular to the last described course 100.00

feet; thence north 57° 0' 00" west along said Meander Line a distance of 494.50 feet; thence north 80° 0' 00" west along said Meander Line approximately 693.00 feet to the intersection of the West line of said Section 11, Township 19 North, Range 12 East; thence north along the West line of said Section 11, Township 19 North, Range 12 East, to the center of the Arkansas River; thence southeast along the center of said Arkansas River to its intersection with the Southwest Leg of the I-244 Inner Dispersal Loop; thence continuing in a southeasterly direction to the centerline of the West 21st Street Bridge to the point of beginning;

Less the following described parcel of land, to wit:

Beginning at the Northwest Corner of the E/2 SW/4 of Section 14, Township 19 North, Range 12 East; thence south along the West line of the E/2 SW/4 and continuing south along the West line of the E/2 NW/4 of Section 23, Township 19 North, Range 12 East, to a point on the South line of the NW/4 of Section 23; thence east along the South line of the NE/4 of said Section 23 to the East line thereof; thence south along the East line of the SE/4 of Section 23 to the Southeast Corner of the NE/4 SE/4; thence east along the South line of the NW/4 SW/4 to the Meander Line on the West bank of the Arkansas River; thence northwest along said Meander Line across said Sections 24 and 13 to the North line of the SW/4 of Section 13, Township 19 North, Range 12 East; thence west along the North line of the S/2 of said Sections 13 and 14 to the Northwest Corner of the E/2 SW/4 of Section 14, which is the point of beginning.

## CHARTER ELECTION DISTRICT NO. 3

Charter Election District No. 3 being entirely in Tulsa County, Oklahoma, and further described by metes and bounds as follows, to wit:

Beginning at the centerline of South Utica Avenue and the centerline of East 1st Street South, in Section 6, Township 19 North, Range 13 East; thence north along the centerline of South Utica Avenue to the centerline of East Pine Street; thence west along the centerline of East Pine Street to the centerline of North Peoria Avenue; thence north along the centerline of North Peoria Avenue to the centerline of Mohawk Boulevard; thence northeast along the centerline of Mohawk Boulevard to the centerline of North Lewis Avenue; thence north along the centerline of North Lewis Avenue to the centerline of East 36th Street North; thence east along the centerline of East 36th Street North to the centerline of the Cherokee Expressway; thence north along the centerline of the Cherokee Expressway to a point 50.00 feet south of the centerline of East 56th Street North; thence east parallel with and 50.00 feet south of the North line of Sections 8, 9, 10, 11, and 12, Township 20 North, Range 13 East, and Sections 7, 8, and 9, Township 20 North, Range 14 East, to the East line of Section 9; thence south along the East line of Sections 9 and 16, said line also being the centerline of North 145th East Avenue, to the South line of Section 16, said line also being the centerline of East 36th Street North; thence west along the South line of Sections 16, 17, and 18 to the Southwest Corner of Section 18, said point also being the intersection of the centerlines of North Mingo Road and East 36th Street North; thence south along the centerline of North Mingo Road and the East line of Sections 24, 25, and 36, Township 20 North, Range 13 East, to the centerline of I-244; thence west along the centerline of I-244 to the centerline of North Memorial Drive; thence south along the centerline of North Memorial Drive to the Southeast Corner of Section 2, Township 19

North, Range 13 East, said point also being the centerline of East 11th Street South; thence west along the centerline of East 11th Street South to the centerline of South Sheridan Road, said point also being the Southwest Corner of Section 2, Township 19 North, Range 13 East; thence north along the centerline of South Sheridan Road to the centerline of I-244; thence west along the centerline of I-244, across Section 3, Township 19 North, Range 13 East, to the centerline of South Yale Avenue; thence north along the centerline of South Yale Avenue to the centerline of East Admiral Place; thence west along the centerline of East Admiral Place to the centerline of South Harvard Avenue; thence south along the centerline of South Harvard Avenue to the centerline of East 1st Street South; thence west along the centerline of East 1st Street South to the centerline of East Admiral Boulevard; thence west along the centerline of East Admiral Boulevard to the centerline of South Delaware Avenue; thence north along the centerline of South Delaware Avenue to the centerline of East Admiral Boulevard; thence west along the centerline of East Admiral Boulevard to the centerline of South Zunis Avenue; thence south along the centerline of South Zunis Avenue to the centerline of East 1st Street South; thence west along the centerline of East 1st Street South to the centerline of South Utica Avenue, which is the point of beginning;

Less the following parcels being more particularly described as follows, to wit:

**A.** That portion of Section 25, Township 20 North, Range 13 East, lying north of the North line of the St. Louis and San Francisco Railroad less the west and east 50.00 feet thereof; Section 23, Township 20 North, Range 13 East, less the north, south, and west 50.00 feet thereof; Section 24, Township 20 North, Range 13 East, less the east 50.00 feet thereof; and the S/2 of Section 13, Township 20 North, Range 13 East, less the north, west, and east 50.00 feet thereof; and

**B.** Beginning at a point 50.00 feet west and 35.00 feet north of the Southeast Corner of Section 28, Township 20 North, Range 13 East; thence north parallel with the East line of said Section 28 to a point on the North line of the SE/4 NE/4 of said Section 28; thence west along said North line to the Northeast Corner of Lot 1, Block 13, Amended Plat of BLOCKS 10 THRU 16 Oak Ridge Addition; thence south along the East line of said Block 13 and continuing south along the East line of Blocks 15 and 16 of said Addition to the Southeast Corner of said Block 16; thence west along the South line of Block 16 of the Oak Ridge Addition continuing west along the South line of Blocks 14, 7, and 8 of said Addition to a point on the East line of the SW/4 SW/4 NE/4 of said Section 28; thence south along said East line and continuing south along the East line of the NW/4 NW/4 SE/4 to the Southeast Corner thereof; thence west along the South line of said NW/4 NW/4 SE/4 to the West line of the SE/4 of said Section 28; thence south along said West line to the Southeast Corner of Lot 2, Block 28, Louisville Heights Addition; thence west along the South line of Lot 2, Block 28 of said Addition to the Northeast Corner of Lot 3 of said Block 28; thence south along the East line of Lot 3 of said Block 28, to the Southeast Corner thereof; thence west along the South line of Lots 4 and 5 of said Block 28, to its intersection with the East line of Lot 8 of said Block 28; thence south along the East line of Lots 8 through 17, both inclusive, to the Southeast Corner of Lot 17 of said Block 28; thence continuing south along the Southerly projection of the East line of Lots 8 through 17, both inclusive, of said Block 28, of

said Addition to a point 35.00 feet north of the South line of said Section 28; thence east parallel with and 35.00 feet north of the South line of said Section 28 to a point on the intersection with the centerline of North Vandalia Avenue; thence north along the centerline of North Vandalia Avenue to a point of intersection with the Westerly projection of the North line of Lot 3, Block 3 of Wee Rancho Addition; thence east along the North line of Lot 3 to the Northeast Corner thereof; thence south along the East line of said Lot 3 to the Northwest Corner of Lot 2 of said Addition; thence east along the North line of Lots 2 and 1 of said Block 3 a distance of 310.00 feet to a point; thence south along the East line of Wee Rancho Addition to a point 35.00 feet north of the South line of Section 28; thence east parallel with the South line of said Section 28 a distance of 293.16 feet to the point of beginning.

**FENCE LINE**

Together with a 70.00 feet Fence Line in Tulsa and Rogers Counties and being more particularly described as follows, to wit:

Tulsa County, Oklahoma, only; The south 70.00 feet of the north 86.50 feet of Section 4, Township 21 North, Range 13 East, lying east of the centerline of the Cherokee Expressway (U.S. Hwy. 75); and the south 70.00 feet of the north 86.50 feet of Sections 2 and 3, Township 21 North, Range 13 East, less the east 50.00 feet of said Section 2; the west 70.00 feet of the east 120.00 feet of Sections 2, 11, 14, and 23, Township 21 North, Range 13 East, less the north 50.00 feet of said Section 2, and less the south 50.00 feet of said Section 23; the north 70.00 feet of the south 120.00 feet, less the east 50.00 feet of said Section 23; the north 70.00 feet of the south 120.00 feet of the east 120.00 feet of Section 22, Township 21 North, Range 13 East, and the south 50.00 feet of the west 70.00 feet of the east 120.00 feet of said Section 22; the west 70.00 feet of the east 120.00 feet of Section 27; the west 70.00 feet of the east 120.00 feet of the north 50.00 feet of Section 34, Township 21 North, Range 13 East, and the south 70.00 feet of the north 120.00 feet of the east 120.00 feet of said Section 34; the south 70.00 feet of the north 120.00 feet of Section 35, Township 21 North, Range 13 East; the south 70.00 feet of the north 120.00 feet of the west 662.26 feet of Section 36, Township 21 North, Range 13 East; and the East 70.00 feet of the West 662.26 feet of said Section 36, Township 21 North, Range 13 East; the south 70.00 feet of the north 120.00 feet of Section 1, Township 20 North, Range 13 East, less the west 592.26 feet thereof;

Tulsa County, Oklahoma, only to wit: Together with the south 70.00 feet of the north 120.00 feet of Section 6, Township 20 North, Range 14 East; the south 70.00 feet of the north 120.00 feet of the NW/4 NW/4 of Section 5, Township 20 North, Range 14 East; and the east 70.00 feet of said NW/4 NW/4, less the north 50.00 feet thereof; the north 70.00 feet of the east 70.00 feet of the SW/4 NW/4 of said Section 5; the north 70.00 feet of the SE/4 NW/4 and the north 70.00 feet of the west 70.00 feet of the SW/4 NE/4 and the west 70.00 feet of the NW/4 NE/4, less the north 50.00 feet thereof; and the south 70.00 feet of the north 120.00 feet of the NE/4, all being a part of said Section 5; the west 70.00 feet of the N/2 NW/4 of Section 4, Township 20 North, Range 14 East, less the north 50.00 feet thereof; the south 70.00 feet of the N/2 NW/4 of said Section 4; the east 70.00 feet of the N/2 NW/4 of said Section 4, less the north 50.00 feet thereof; the south 70.00 feet of the north 120.00 feet of the NE/4 of said Section 4; and the east 24.75 feet of Sections 4 and 9, Township 20 North, Range 14 East;

Tulsa County, Oklahoma, or Rogers County, Oklahoma, as indicated: The north 70.00 feet of the north 245.00 feet of the W/2 SW/4 of Section 10 lying parallel with and on the north side of the centerline of the right-of-way of the Port Road in Township 20 North, Range 14 East, Rogers County, Oklahoma; together with the west 70.00 feet of the E/2 SW/4 of said Section 10, lying between a line 245.00 feet north and 245.00 feet south of the centerline of the right-of-way of the Port Road; together with the south 70.00 feet of a strip of land 245.00 feet in width being adjacent to and on the south side of the centerline of the right-of-way of the Port Road in and across Sections 10, 11, and 12, Township 20 North, Range 14 East, Rogers County, Oklahoma, to a point on the East line of the W/2 E/2 NE/4 of said Section 12; together with the east 70.00 feet of the said W/2 E/2 NE/4, lying between a line 175.00 feet south a perpendicular distance from the centerline of the right-of-way of the Port Road and the North line of said Section 12; together with the south 70.00 feet of the east 70.00 feet of the W/2 E/2 SE/4 of Section 1, Township 20 North, Range 14 East, Rogers County, Oklahoma; together with the south 70.00 feet of the E/2 E/2 SE/4 of said Section 1; together with the south 70.00 feet of Section 6, Township 20 North, Range 15 East, Rogers County, Oklahoma, lying west of a line 70.00 feet east of the East right-of-way of the County Road; together with the west 70.00 feet of the Port of Catoosa Industrial Park lying in the W/2 of Section 7, Township 20 North, Range 15 East, Rogers County, Oklahoma; together with the east 70.00 feet of the west 620.20 feet of the north 171.10 feet of the NW/4 of Section 18, Township 20 North, Range 15 East, Rogers County, Oklahoma, and the south 70.00 feet of the north 171.10 feet of the east 200.00 feet of the west 752.20 feet of said Section 18, and the east 70.00 feet of the south 170.00 feet of the north 271.10 feet of the west 752.20 feet of said Section 18, and the south 70.00 feet of the north 441.10 feet of the east 130.00 feet of the west 682.20 feet in said Section 18; together with the west 70.00 feet of the east 330.00 feet of Lot 1, lying East of the County Road in said Section 18, less the north 341.10 feet thereof; together with the west 70.00 feet of the east 330.00 feet of Lots 2 and 3, lying East of the County Road in said Section 18; together with the south 70.00 feet of the East 330.00 feet of said Lot 3 of said Section 18; together with the south 70.00 feet of the west 79.92 feet of the NE/4 SW/4 of said Section 18; together with the west 70.00 feet lying adjacent to the East right-of-way of the Port Road in the SE/4 SW/4 of said Section 18, less the south 16.50 feet thereof; together with the north 70.00 feet of the south 86.50 feet of the said SE/4 SW/4 lying east of the East right-of-way of the Port Road; together with the north 70.00 feet of the south 86.50 feet of the SW/4 SE/4 of said Section 18; and the north 70.00 feet of the south 86.50 feet of the SW/4 SE/4 SE/4 of said Section 18, less the south 16.50 feet thereof; together with the south 70.00 feet of the east 70.00 feet of the NW/4 SE/4 SE/4 of said Section 18; together with the south 70.00 feet of the NE/4 SE/4 SE/4 of said Section 18, lying west of the center of Bird Creek; together with the east 70.00 feet of that part of the said NE/4 SE/4 SE/4 lying west of the center of Bird Creek in said Section 18; together with the south 70.00 feet of the east 70.00 feet of the NE/4 SE/4 of said Section 18 lying west of the center of Bird Creek; together with the south 70.00 feet of that part of the NE/4 SE/4 lying east of the center of Bird Creek in said Section 18; together with the south 70.00 feet of the west 70.00 feet of the NW/4 SW/4 of Section 17, Township 20 North, Range 15 East, Rogers County, Oklahoma; together with the west 70.00 feet of the SW/4 of said Section 17, less the south 16.50 feet thereof; together with the north 70.00 feet of the south 86.50 feet of the SW/4 SW/4 SW/4 of said Section 17; together with the

east 70.00 feet of said SW/4 SW/4 SW/4, less the south 16.50 feet thereof; together with the south 70.00 feet of the east 70.00 feet of the NW/4 SW/4 SW/4 of said Section 17; together with the south 70.00 feet of the NE/4 SW/4 SW/4 of said Section 17; together with the south 70.00 feet of the west 70.00 feet of the NW/4 SE/4 SW/4 of said Section 17; together with the west 70.00 feet of the SW/4 SE/4 SW/4, less the south 16.50 feet thereof of said Section 17; together with the north 70.00 feet of the south 86.50 feet of the SE/4 SW/4 of said Section 17; together with the west 70.00 feet of the said SE/4 SW/4, less the south 16.50 feet thereof; together with the east 70.00 feet of the said SE/4 SW/4, less the south 16.50 feet thereof; together with the east 70.00 feet of the SE/4 NE/4 SW/4, and the south 70.00 feet of the east 70.00 feet of the NE/4 NE/4 SW/4 of said Section 17; together with the south and east 70.00 feet of the N/2 NW/4 SE/4 of said Section 17; together with the south 70.00 feet of the east 70.00 feet of the SW/4 NE/4 of said Section 17; together with the south 70.00 feet of Lot 3 lying west of the East bank of the Verdigris River in said Section 17; together with the east 70.00 feet of Lots 3 and 2 lying adjacent to the East bank of the Verdigris River in said Section 17; together with the 70.00 feet lying adjacent to the East bank of the Verdigris River located in Sections 8, 9, 4, and 5, Township 20 North, Range 15 East, Rogers County, Oklahoma, less the north 50.00 feet lying adjacent to the said Section 5; together with the south 70.00 feet of the north 120.00 feet of said Section 5 lying west of the East bank of the Verdigris River; together with the south 70.00 feet of the north 120.00 feet of Section 6, Township 20 North, Range 15 East, Rogers County, Oklahoma, lying east of the East right-of-way line of the Port Road; together with a strip of land 70.00 feet in width lying adjacent to the East right-of-way line of said Port Road, and between a line 50.00 feet south of the North line of said Section 6, and a point 70.00 feet south of the North line of the SW/4 NE/4 of said Section 6, together with the north 70.00 feet of said SW/4 NE/4 lying west of the East right-of-way of said Port Road; together with the west 70.00 feet of the N/2 NW/4 SW/4 NE/4, and the north 70.00 feet of the west 70.00 feet of the S/2 NW/4 SW/4 NE/4 of said Section 6; together with the north 70.00 feet of the S/2 NE/4 SE/4 NW/4 of said Section 6; together with the north 70.00 feet of the east 70.00 feet of the S/2 NW/4 SE/4 NW/4 of said Section 6; together with the east 70.00 feet of the N/2 NW/4 SE/4 NW/4 of said Section 6; together with the north 70.00 feet of the NW/4 SE/4 NW/4 and the north 70.00 feet of the E/2 NE/4 SW/4 NW/4 of said Section 6; together with the north 70.00 feet of the east 70.00 feet of the W/2 NE/4 SW/4 NW/4 of said Section 6, together with the east 70.00 feet of the W/2 E/2 NW/4 NW/4 of said Section 6, less the north 50.00 feet thereof; together with the south 70.00 feet of the north 120.00 feet of the W/2 E/2 NW/4 NW/4, and the south 70.00 feet of the north 120.00 feet of the W/2 NW/4 NW/4 of said Section 6; together with the west 70.00 feet of the south 100.00 feet of the north 220.00 feet of said Section 6; together with the south 70.00 feet of the north 220.00 feet of Sections 1, 2, and 3, Township 20 North, Range 14 East, Rogers County, Oklahoma; together with the south 100.00 feet of the north 220.00 feet of the west 70.00 feet of said Section 3.

## CHARTER ELECTION DISTRICT NO. 4

Charter Election District No. 4 being entirely in Tulsa County, Oklahoma, and further described by metes and bounds as follows, to wit:

Beginning at the Southeast Corner of Section 3, Township 19 North, Range 13 East, also being the intersection of the centerlines of East 11th Street South and South

Sheridan Road; thence south along the centerline of South Sheridan Road to the centerline of East 25th Place South; thence west along the centerline of East 25th Place South to the centerline of South Hudson Avenue; thence south along the centerline of South Hudson Avenue to the centerline of East 27th Street South; thence east along the centerline of East 27th Street South to the centerline of South Hudson Place; thence south along the centerline of South Hudson Place to the centerline of East 30th Street South; thence west along the centerline of East 30th Street South to the centerline of South Hudson Avenue; thence south along the centerline of South Hudson Avenue to the centerline of East 31st Street South; thence west along the centerline of East 31st Street South to the centerline of the westbound lanes of the Broken Arrow Expressway; thence northwest along the centerline of the westbound lanes of the Broken Arrow Expressway to the centerline of South Harvard Avenue; thence north along the centerline of South Harvard Avenue to the Southwest Corner of Section 9, Township 19 North, Range 13 East, also being the centerline of East 21st Street South; thence west along the centerline of East 21st Street South to the centerline of South Boulder Park Drive; thence southwest along the centerline of the West 21st Street Bridge to the center of the Arkansas River; thence northwest along the center of the Arkansas River to the centerline of the southbound lanes of the Red Fork Expressway; thence northeast along the centerline of the southbound lanes of the Red Fork Expressway to the interchange of Red Fork Expressway and the Inner Dispersal Loop; thence in a northerly direction along the centerline of the West leg of the Inner Dispersal Loop (I-244) to the interchange with the North leg of the Inner Dispersal Loop (I-244); thence east along the centerline of the North leg of the Inner Dispersal Loop (I-244); thence continuing east along the centerline of I-244 to the centerline of South Utica Avenue; thence south along the centerline of South Utica Avenue to the centerline of East 1st Street South; thence east along the centerline of East 1st Street South to the centerline of South Zunis Avenue; thence north along the centerline of South Zunis Avenue to the centerline of East Admiral Boulevard; thence east along the centerline of East Admiral Boulevard to the centerline of South Delaware Avenue; thence south along the centerline of South Delaware Avenue to the centerline of East 1st Street South; thence east along the centerline of East 1st Street South to the centerline of South Harvard Avenue; thence north along the centerline of South Harvard Avenue to the centerline of East Admiral Place; thence east along the centerline of East Admiral Place to the centerline of South Yale Avenue; thence south along the centerline of South Yale Avenue to the centerline of I-244; thence east along the centerline of I-244 to the centerline of South Sheridan Road; thence south along the centerline of South Sheridan Road to the centerline of East 11th Street South, which is the point of beginning;

Less the following parcel being more particularly described as follows, to wit:

Beginning at a point 30.00 feet north and 50.00 feet west of the Southeast Corner of Section 9, Township 19 North, Range 13 East; thence west parallel with and 30.00 feet north of the South line of said Section 9 to a point 230.00 feet east of the West line of the E/2 SW/4; thence north 5.00 feet to a point; thence east 25.00 feet; thence along a curve to the left having a radius of 270.00 feet a distance of 283.14 feet to a point; thence northeast 74.60 feet to a point 526.23 feet east and 235.00 feet north of the Southwest Corner of said E/2 SW/4; thence west parallel with the South line of said E/2 SW/4 a distance of 491.23 feet to a point 35.00 feet east of the West line of the E/2 SW/4 of said Section 9; thence north parallel with and 35.00 feet east of the West line of said

E/2 SW/4 to a point 30.00 feet south of the North line of said E/2 SW/4; thence east parallel with and 30.00 feet south of the North line of the S/2 of Section 9 to a point 50.00 feet west of the East line thereof; thence south parallel with the East line of said Section 9 to a point 30.00 feet north of the South line thereof which is the point of beginning.

## CHARTER ELECTION DISTRICT NO. 5

Charter Election District No. 5 being entirely in Tulsa County, Oklahoma, and further described by metes and bounds as follows, to wit:

Beginning at the Southeast Corner of Section 19, Township 19 North, Range 14 East, said point also being the intersection of the centerlines of East 41st Street South and South Garnett Road; thence west along the centerline of East 41st Street South to the centerline of South 104th East Avenue; thence south along the centerline of South 104th East Avenue to the centerline of the Mingo Creek Channel; thence southeasterly along the centerline of the Mingo Creek Channel to the centerline of the Broken Arrow Expressway (SH51); thence northwest along the centerline of the Broken Arrow Expressway (SH51) to the centerline of South Mingo Road; thence south along the centerline of South Mingo Road to the centerline of East 51st Street South; thence west along the centerline of East 51st Street South to the centerline of South Sheridan Road; thence north along the centerline of South Sheridan Road to the centerline of I-44; thence southwest along the centerline of I-44 to the centerline of South Yale Avenue; thence north along the centerline of South Yale Avenue to the centerline of East 31st Street South; thence east along the centerline of East 31st Street South to the centerline of South Hudson Avenue; thence north along the centerline of South Hudson Avenue to the centerline of East 30th Street South; thence east along the centerline of East 30th Street South to the centerline of South Hudson Place; thence north along the centerline of South Hudson Place to the centerline of East 27th Street South; thence west along the centerline of East 27th Street South to the centerline of South Hudson Avenue; thence north along the centerline of South Hudson Avenue to the centerline of East 25th Place South; thence east along the centerline of East 25th Place South to the centerline of South Sheridan Road; thence north along the centerline of South Sheridan Road to the centerline of East 11th Street South, said point also being the Northwest Corner of Section 11, Township 19 North, Range 13 East; thence east along the centerline of East 11th Street South to the centerline of South Memorial Drive; thence north along the centerline of South Memorial Drive to the centerline of I-244; thence east along the centerline of I-244 to the centerline of South Mingo Road; thence south along the centerline of South Mingo Road to the centerline of East 11th Street South; thence east along the centerline of East 11th Street South to the centerline of South Garnett Road; thence south along the centerline of South Garnett Road to the centerline of East 41st Street South which is the point of beginning.

## CHARTER ELECTION DISTRICT NO. 6

Charter Election District No. 6 being described by metes and bounds as follows to wit:

Beginning at the Southwest Corner of Section 33, Township 19 North, Range 14 East, Tulsa County, Oklahoma, also being the intersection of the centerlines of East 61st Street South and South 129th East Avenue; thence west along the centerline of East 61st Street South to the centerline of South Mingo Road; thence north along the

centerline of South Mingo Road to the centerline of East 41st Street South; thence east along the centerline of East 41st Street South to the centerline of the Broken Arrow Expressway (SH51); thence southeast along the centerline of the Broken Arrow Expressway (SH51) to the centerline of the Mingo Creek Channel; thence northwesterly to the centerline of South 104th East Avenue; thence north along the centerline of South 104th East Avenue to the centerline of East 41st Street South; thence east along the centerline of East 41st Street South to the centerline of South Garnett Road; thence north along the centerline of South Garnett Road to the centerline of East 11th Street South; thence west along the centerline of East 11th Street South to the centerline of South Mingo Road, also being the Southwest Corner of Section 6, Township 19 North, Range 14 East, Tulsa County, Oklahoma; thence north along the West line of Section 6, Township 19 North, Range 14 East in Tulsa County, Oklahoma, and continuing north along the West line of Sections 31, 30, and 19 (North Mingo Road), Township 20 North, Range 14 East in Tulsa County, Oklahoma, to the Northwest Corner of said Section 19, being the intersection of the centerlines of North Mingo Road and 36th Street North; thence east along the centerline of 36th Street North to a point 24.75 feet west of the East line of Section 21, Township 20 North, Range 14 East, Tulsa County, Oklahoma; thence south parallel with the East line of Sections 21, 28, and 33, Township 20 North, Range 14 East, Tulsa County, Oklahoma; thence continuing south 24.75 feet west of the East line of Section 4, Township 19 North, Range 14 East, Tulsa County, Oklahoma, to a point on the South line of the right-of-way of I-44; thence east along the South right-of-way of I-44 across Sections 4, 3, 2, and 1, Township 19 North, Range 14 East, Tulsa County, Oklahoma, to a point 100.00 feet west of the East line of said Section 1; thence south parallel with the East line of said Section 1 to the South line of the NE/4 NE/4 SE/4 of said Section 1; thence east along said South line across the Tulsa County - Wagoner County Line and continuing east along the South line of the N/2 N/2 SW/4 of Section 6, Township 19 North, Range 15 East, Wagoner County, Oklahoma, to the East line of the SW/4 of said Section 6; thence north along said East line of the SW/4 to the Northeast Corner of the SW/4 of said Section 6; thence east along the South line of the NE/4 of said Section 6 to the Southeast Corner of the NE/4 of said Section 6; thence north along the East line of the NE/4 of said Section 6 to the Southeast Corner of the NE/4 NE/4 NE/4 of said Section 6; thence east along the South line of the N/2 N/2 NW/4 of Section 5, Township 19 North, Range 15 East, Wagoner County, Oklahoma, and continuing east along the South line of the N/2 N/2 NE/4 to the Southwest Corner of the NE/4 NW/4 NE/4 of said Section 5; thence north along the West line of said NE/4 NW/4 NE/4 to the North line of Section 5, said Section line also being the Wagoner County - Rogers County Line; thence east along said North Section line and continuing east along the North Section line of Sections 5, 4, and 3, Township 19 North, Range 15 East, Wagoner County, Oklahoma, to a point 70.00 feet west of the Northeast Corner of said Section 3; thence south and parallel with the East line of said Section 3 to a point on the South line of the N/2 of said Section 3; thence east along the South line of the N/2 of said Section 3 to the East line of said Section 3; thence south along the East line of said Section 3 to a point 70.00 feet north of the Southeast Corner of said Section 3; thence west and parallel with the South line of said Section 3 to a point 70.00 feet west and 70.00 feet north of Southeast Corner of the SW/4 of said Section 3; thence south and parallel with the East line of the SW/4 of said Section 3 and continuing south and parallel with the East line of the NW/4 of Section 10, Township 19 North, Range 15

East, Wagoner County, Oklahoma, to a point 70.00 feet south and 70.00 feet west of the Northeast Corner of the SW/4 of said Section 10; thence east and parallel with the North line of the said SW/4 and continuing east and parallel with the North line of the SE/4 of said Section 10 to a point 70.00 feet west of the East line of said Section 10; thence south and parallel with the East line of said Section 10 to the South line of said Section 10 and continuing south and parallel with the East line of Section 15, Township 19 North, Range 15 East, Wagoner County, Oklahoma, to a point 70.00 feet west and 70.00 feet south of the Northeast Corner of the SE/4 of said Section 15; thence east and parallel with the North line of the SE/4 of said Section 15 and continuing east and parallel with the North line of the SW/4 of Section 14, Township 19 North, Range 15 East, Wagoner County, Oklahoma, to a point 70.00 feet west and 70.00 feet south of the Northeast Corner of the SW/4 of said Section 14; thence south and parallel with the East line of the SW/4 of said Section 14 to the South line of Section 14 and continuing south and parallel with the East line of the NW/4 of Section 23, Township 19 North, Range 15 East, Wagoner County, Oklahoma, to a point 50.00 feet north and 70.00 feet west of the Southeast Corner of the NW/4 of said Section 23; thence west and parallel with the South line of the NW/4 of said Section 23 a distance of 55.00 feet; thence south and parallel with the East line of the NW/4 of said Section 23 to the South line of the NW/4 of said Section 23 and continuing south and parallel with the East line of the SW/4 of said Section 23 to a point 125.00 feet north of the South line of said Section 23; thence west and parallel with the South line of Section 23 to the West line of Section 23 and continuing west and parallel with the South line of Section 22, Township 19 North, Range 15 East, Wagoner County, Oklahoma, to a point 125.00 feet west and 125.00 feet north of the Southeast Corner of said Section 22; thence south and parallel with the East line of said Section 22 to the South line of said Section 22; thence west along the South line of said Section 22 and continuing west along the South line of Section 21, Township 19 North, Range 15 East, Wagoner County, Oklahoma, to the Southwest Corner of said Section 21; thence north along the West line of said Section 21 to the Southeast Corner of the NE/4 of Section 20, Township 19 North, Range 15 East, Wagoner County, Oklahoma; thence west along the South line of the NE/4 of said Section 20 to the Southwest Corner of the NE/4 of said Section 20; thence north along the West line of the NE/4 of said Section 20 to the North line of said Section 20; thence west along the North line of said Section 20 to the Northwest Corner of said Section 20 and continuing west along the North line of Section 19, Township 19 North, Range 15 East, Wagoner County, Oklahoma, and continuing west along the North line of Section 24, Township 19 North, Range 14 East, Tulsa County, Oklahoma, to a point 100.00 feet west of the East line of said Section 24; thence south parallel with the East line of Sections 24 and 25, Township 19 North, Range 14 East, Tulsa County, Oklahoma, to a point 24.75 feet north of the South line of said Section 25; thence west parallel with the South line of Sections 25 and 26, to a point on the East line of Section 27; thence north along the East line of Section 27 to the Northeast Corner of the S/2 of said Section; thence west along the North line of the S/2 of said Section to the Southeast Corner of the NW/4; thence north along the East line of the NW/4 of said Section to the Northeast Corner thereof; thence west along the North line of the NW/4 of said Section to a point 24.75 feet west of the Northwest Corner thereof; thence south parallel with and 24.75 feet west of the East line of said Section 28 to a point on the South line of said Section 28, being the North line of Section 33, Township 19 North, Range 14 East; thence west

along said North line to the Northwest Corner of the E/2 NE/4; thence south along the West line of the E/2 NE/4 to the South line thereof; thence west along said South line to the South right-of-way line of the Broken Arrow Expressway; thence northwest along said right-of-way line to the West line of said NE/4; thence south along the said West line of the NE/4 and continuing south along the West line of the SE/4 to the South line of said Section 33, said line also being the centerline of East 61st Street South; thence west along the South line of said Section 33 to the Southwest Corner which is the point of beginning;

Less and except the following described two (2) tracts, to wit:

**A.** The N/2 SW/4 and the SE/4 SW/4 of Section 5, Township 19 North, Range 15 East, Wagoner County, Oklahoma.

**B.** The south 10.00 feet of the N/2 and the north 10.00 feet of the S/2 less the east 70.00 feet of Section 15, Township 19 North, Range 15 East, Wagoner County, Oklahoma; together with the south 10.00 feet of the NE/4 and the north 10.00 feet of the SE/4 of Section 16, Township 19 North, Range 15 East, Wagoner County, Oklahoma; together with the south 10.00 feet of the east 10.00 feet of the NW/4 of said Section 16; together with the west 10.00 feet of the W/2 NW/4 SE/4 and the NW/4 SW4 of said Section 16; together with the east 10.00 feet of the E/2 NE/4 SW/4 and the NE/4 SW/4 of said Section 16; together with the S/2 SW/4 SE/4 and the S/2 SW/4 SW/4 of Section 16, Township 19 North, Range 15 East, Wagoner County, Oklahoma; together with the N/2 NE/4 SW/4 and the N/2 NW/4 of Section 21, Township 19 North, Range 15 East, Wagoner County, Oklahoma.

## CHARTER ELECTION DISTRICT NO. 7

Charter Election District No. 7 being entirely in Tulsa County, Oklahoma, and further described by metes and bounds as follows, to wit:

Beginning at the Northeast Corner of Section 1, Township 18 North, Range 13 East, said point also being the intersection of the centerlines of East 61st Street South and South Mingo Road; thence east along the centerline of East 61st Street South to the centerline of South Garnett Road; thence south along the centerline of South Garnett Road to the centerline of East 81st Street South; thence west along the centerline of East 81st Street South to the centerline of South Memorial Drive; thence north along the centerline of South Memorial Drive to the centerline of East 71st Street South; thence west along the centerline of East 71st Street South to the centerline of South Sheridan Road; thence south along the centerline of South Sheridan Road to the centerline of East 77th Street South; thence west along the centerline of East 77th Street South to the centerline of South Norwood Avenue; thence north along the centerline of South Norwood Avenue curving northwest and changing into the centerline of East 76th Street South; thence continuing northwest along the centerline of East 76th Street South to the intersection of the centerline of South Kingston Avenue; thence southwest along the centerline of East 76th Street South to the centerline of South Hudson Avenue; thence continuing in a northwest direction along the centerline of East 76th Street South to the centerline of South Erie Avenue; thence southwest along the centerline of South Erie Avenue to the South line of the N/2 of Section 10, Township 18 North, Range 13 East; thence west along said South line of the N/2 of Section 10 to the centerline of South Yale Avenue; thence north along the

centerline of South Yale Avenue to the centerline of East 71st Street South; thence west along the centerline of East 71st Street South to the centerline of South Oswego Avenue; thence north along the centerline of South Oswego Avenue to the intersection of the centerline of East 67th Street South; thence northwest along the centerline of East 67th Street South to the centerline of South New Haven Avenue; thence northerly along the centerline of South New Haven Avenue to the centerline of East 66th Street South; thence west along the centerline of East 66th Street South to the centerline of South Harvard Avenue; thence north along the centerline of South Harvard Avenue to the centerline of the East 61st Street South; thence west along the centerline of East 61st Street South to the centerline of South Evanston Avenue; thence north along the centerline of South Evanston Avenue to the centerline of East 58th Street South; thence east along the centerline of East 58th Street South to the centerline of South Evanston Place; thence north along the centerline of South Evanston Place to the centerline of East 57th Street South; thence east along the centerline of East 57th Street South to the centerline of South Harvard Avenue; thence north along the centerline of South Harvard Avenue to the centerline of East 47th Place South; thence east along the centerline of East 47th Place South to the centerline of South Pittsburg Avenue; thence north along the centerline of South Pittsburg Avenue to the centerline of East 45th Street South; thence east along the centerline of East 45th Street South to the centerline of South Yale Avenue; thence south along the centerline of South Yale Avenue to the centerline of I-44; thence east along the centerline of I-44 to the centerline of South Sheridan Road; thence south along the centerline of South Sheridan Road to the centerline of East 51st Street South; thence east along the centerline of East 51st Street South to the centerline of South Mingo Road; thence south along the centerline of South Mingo Road to the centerline of East 61st Street South which is the point of beginning.

## CHARTER ELECTION DISTRICT NO. 8

Charter Election District No. 8 being entirely in Tulsa County, Oklahoma, and further described by metes and bounds as follows, to wit:

Beginning at a point on the Meander Line on the East bank of the Arkansas River, 24.75 feet west of the East line of Section 10, Township 17 North, Range 13 East; thence north parallel with and 24.75 feet west of the East line of Sections 10 and 3, Township 17 North, Range 13 East, to the North line of said Section 3; thence continuing north parallel with the East line of Sections 34 and 27, Township 18 North, Range 13 East, to a point 24.75 feet north of the South line of said Section 27; thence east parallel with and 24.75 feet north of the South line of Sections 27 and 26, Township 18 North, Range 13 East, to a point 24.75 feet west of the East line of said Section 26; thence north parallel with and 24.75 feet west of the East line of Sections 26 and 23, Township 18 North, Range 13 East, to a point 24.75 feet north of the South line of said Section 23; thence east parallel with and 24.75 feet north of the South line of Sections 23 and 24, Township 18 North, Range 13 East, and continuing east parallel with and 24.75 feet north of the South line of Section 19, Township 18 North, Range 14 East, to a point 24.75 feet west of the East line of said Section 19; thence north parallel with and 24.75 feet west of the East line of Sections 19 and 18, Township 18 North, Range 14 East, to a point on the North line of said Section 18, said point also being the centerline of East 81st Street South; thence west along the centerline of East 81st Street South to the

centerline of South Memorial Drive; thence north along the centerline of South Memorial Drive to the centerline of East 71st Street South; thence west along the centerline of East 71st Street South to the centerline of South Sheridan Road; thence south along the centerline of South Sheridan Road to the centerline of East 77th Street South; thence west along the centerline of East 77th Street South to the centerline of South Norwood Avenue; thence north along the centerline of South Norwood Avenue curving northwest and changing to the centerline of East 76th Street South; thence continuing northwest along the centerline of East 76th Street South to the intersection of the centerline of South Kingston Avenue; thence southwest along the centerline of East 76th Street South to the centerline of South Hudson Avenue; thence continuing in a northwest direction along the centerline of East 76th Street South to the centerline of South Erie Avenue; thence southwest along the centerline of South Erie Avenue to the South line of the N/2 of Section 10, Township 18 North, Range 13 East; thence west along said South line of the N/2 of Section 10 to the centerline of South Yale Avenue; thence north along the centerline of South Yale Avenue to the centerline of East 71st Street South; thence west along the centerline of East 71st Street South to the centerline of South Oswego Avenue; thence north along the centerline of South Oswego Avenue to the intersection of the centerline of East 67th Street South; thence northwest along the centerline of East 67th Street South to the centerline of South New Haven Avenue; thence northerly along the centerline of South New Haven Avenue to the centerline of East 66th Street South; thence west along the centerline of East 66th Street South to the centerline of South Harvard Avenue; thence south along the centerline of South Harvard Avenue to the centerline of East 91st Street South, said point also being the Northwest Corner of Section 21, Township 18 North, Range 13 East; thence continuing south along the centerline of South Harvard Avenue and extending south along the West line of said Sections 21 and 28, Township 18 North, Range 13 East, to the center of the Vensel Creek Channel; thence south along the center of the Vensel Creek Channel to a point on the Meander Line on the East bank of the Arkansas River; thence southeast along said Meander Line to a point 24.75 feet west of the East line of Section 10, Township 17 North, Range 13 East, Tulsa County, Oklahoma, which is the point of beginning.

## CHARTER ELECTION DISTRICT NO. 9

Charter Election District No. 9 being entirely in Tulsa County, Oklahoma, and further described by metes and bounds as follows, to wit:

Beginning at the Northeast Corner of Section 17, Township 19 North, Range 13 East, said Corner also being the intersection of the centerlines of South Harvard Avenue and East 21st Street South; thence south along the centerline of South Harvard Avenue to the centerline of the westbound lanes of the Broken Arrow Expressway; thence southeast along the centerline of the westbound lanes of the Broken Arrow Expressway to the centerline of East 31st Street South; thence west along the centerline of East 31st Street South to the centerline of South Yale Avenue; thence south along the centerline of South Yale Avenue to the centerline of East 45th Street South; thence west along the centerline of East 45th Street South to the centerline of South Pittsburg Avenue; thence south along the centerline of South Pittsburg Avenue to the centerline of East 47th Place South; thence west along the centerline of East 47th Place South to the centerline of South Harvard Avenue; thence south along the centerline of South

Harvard Avenue to the centerline of East 57th Street South; thence west along the centerline of East 57th Street South to the centerline of South Evanston Place; thence south along the centerline of South Evanston Place to the centerline of East 58th Street South; thence west along the centerline of East 58th Street South to the centerline of South Evanston Avenue; thence south along the centerline of South Evanston Avenue to the centerline of East 61st Street South; thence west along the centerline of East 61st Street South to the center of the Arkansas River; thence north along the center of the Arkansas River to the centerline of the West 21st Street Bridge; thence northeast along the centerline of the West 21st Street Bridge to the centerline of East 21st Street South, also being the North line of Section 13, Township 19 North, Range 12 East; thence east along the centerline of East 21st Street South to the centerline of South Harvard Avenue which is the point of beginning.

## SCHEDULE II. LIST OF ELECTION DISTRICT PLAN AMENDMENTS

The following is a list of the various changes made to the original Election District Plan of May 8, 1990, by reason of annexation, disannexation, other minor adjustments in the boundaries of Election Districts, and operation of the Election District Commission to adjust the boundaries of Election Districts each ten years after the completion of the Federal Decennial Census.

| Date | Document | Summary |
|---|---|---|
| May 8, 1990 | Amended Charter | Original Election District Plan for Nine Council Districts |
| July 29, 1991 | Amended Election District Plan of 1991 | Election District Commission filed its Election District Plan with the City Clerk, which became final on August 28, 1991 |
| July 24, 1992 | Ordinance No. 17749 | Amended the Election District Plan filed on July 29, 1991, by making minor adjustments in the boundary line between Election District No. 2 and Election District No. 8 to conform to the precinct and Senate boundary; and in Election District No. 1, Election District No. 3, and Election District No. 6 to avoid split precincts |
| June 1, 1994 | Ordinance No. 18208 | Disannexed property in Election District No. 6 |
| November 1, 1999 | Ordinance No. 19668 | Annexed property in Election District No. 7 |
| July 20, 2001 | Amended Election District Plan of 2001 | Election District Commission filed its Election District Plan with the City Clerk, which became final on August 19, 2001 |
| December 20, 2001 | Ordinance No. 20244 | Annexed property in Election District No. 6 |
| January 4, 2002 | Ordinance No. 20267 | Amended and corrected legal description as contained in Ordinance No. 20244 |
| August 22, 2003 | Ordinance No. 20652 | Amendment of Amended Election District Plan 2001 as authorized by Article VI, Section 6.3, of the Amended Charter |
| April 6, 2022 | Ordinance No. 24801 | Amendment of Election District Nos. 1—9 as authorized by Article VI, Section 6.3 of the amended Charter |

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## SCHEDULE III. LIST OF CHARTER AMENDMENTS

All amendments to this amended Charter are set forth in the text according to the section or article amended. The amendments, as presented to the voters, were numbered for that particular Charter election, but all amendments herein are listed showing sequential numbers for purposes of reference, only. Also listed is the date of approval by the Governor of the State of Oklahoma, substance, and the place in the text where the amendment is quoted.

| No. | Date | Substance | Art. | Sec. | Par. |
|---|---|---|---|---|---|
| 1. | May 2, 1994 | General Election Dates | VI | 1.3 | |
| 2. | May 2, 1994 | Qualified Elector | XII | 1 | |
| 3. | May 2, 1994 | Internal Audits | IV | 3 | F, G |
| 4. | June 21, 1996 | Records, Accounts, Personnel, Facilities, and Inventories Available to City Auditor | IV | 5 | |
| 5. | June 21, 1996 | Civil Service Appeal Time Frames | X | 8.2 | |
| 6. | June 21, 1996 | Civil Service Appeals | X | 8.3 | |
| 7. | June 21, 1996 | Firefighters' Probation Period | XI | 3 | |
| 8. | June 21, 1996 | Elected Officials in the Employ of Franchise Holders | XII | 13 | |
| 9. | June 21, 1996 | Special Election Dates | VI | 5 | |
| 10. | June 16, 1998 | Candidates for Elected City Offices to Either Pay a Filing Fee or File an Election Petition | VI | 3.1, 3.3 3.4 | D |
| 11. | June 16, 1998 | Council and Councilors May Communicate with Heads of Each Division and Department of the City | II | 19 | |
| 12. | June 6, 2006 | Affirmative Vote of Three-fourths of Entire Council Membership Required to Effect a Protested Change of Zoning | II | 6.3 | |
| 13. | June 6, 2006 | Resolutions Approved by the City Shall be Published | II | 11 | |
| 14. | June 6, 2006 | Residency Requirements for Members of City Boards, Commissions, Authorities, and Agencies | III | 1.4 | G |
| 15. | June 6, 2006 | Election Dates and Terms of Office to Correspond with State Law | VI | 1.2, 1.3, & 2 | |
| 16. | June 6, 2006 | Grounds for Recall of Elected Officers; Provisions for Petitions for Recall | VII | 1.1, 1.2, 2.2, & 3 | |
| 17. | June 6, 2006 | Mayor to Make Appointments Within Sixty Days or Council May Make Appointments, Should the Mayor Fail to do so | XII | 11 | |

| No. | Date | Substance | Art. | Sec. | Par. |
|---|---|---|---|---|---|
| 18. | May 1, 2008 | Fall Election Dates, Terms of Office, and Time of Filing | VI | 1.2, 1.3, 2, & 3.4 | |
| 19. | May 1, 2008 | Change of address of qualified elector will not prevent voting if within period of time which would prevent valid registration in their new election district | VI | 1.4, 2, & 7 | |
| 20. | January 5, 2010 | City Auditor shall be a certified Public Accountant or a Certified Internal Auditor at the time of filing for the office of City Auditor. | IV<br>VI | 1<br>7 | |
| 21. | January 5, 2010 | Staggered three-year terms for City Council elections | VI | 1.2, 1.3, 2, & 3.4 | |
| 22. | January 5, 2010 | Both Mayor and Council shall approve settlement of all claims equal or greater than $1 million ($1,000,000) | II<br>XII | 20<br>3 | |
| 23. | March 18, 2011 | Creation and maintenance of an Economic Stabilization Reserve Fund for the City of Tulsa, Oklahoma | II | 7.4—7.10 | |
| 24. | March 18, 2011 | Primary Election Dates provided by Oklahoma for County Election Board to conduct elections | VI | 2 | |
| 25. | February 21, 2012 | Election and Qualification of Officers; Terms | VI | 1.2 | |
| 26. | February 21, 2012 | Election and Qualification of Officers; Primary Elections; Filing for Office-Political Parties; Campaigning for Office | VI | 2.1, 2.2, 3.1., 3.2 | |
| 27. | June 26, 2012 | Establishing election dates, terms of office, and time of filing | VI | 2.2, 3.4 | |
| 28. | November 12, 2013 | Setting salaries | II | 2 | |
| 29. | November 14, 2017 | Budgets, prohibiting diversion of public safety sales tax revenues to any other purpose; Prohibiting expenditure of public safety sales tax revenues for any other purpose | II<br>III | 7.1<br>1.4 | C. |
| 30. | November 14, 2017 | Civil Service Commission - Political activities permitted; Fire Department - Political activities permitted | X<br>XI | 10.1<br>5.1 | |

| No. | Date | Substance | Art. | Sec. | Par. |
|---|---|---|---|---|---|
| 31. | November 14, 2017 | General grant of power; Council meetings; Effective date of ordinances and resolution; General elections; Election procedure; Time of filing; Election District Commission; Adjustment of election district boundaries | I<br>II<br><br><br>VI | 3<br>3.1<br>10<br>1.3<br>2.2<br>3.4<br>10.1,<br>10.2 | O. |

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## CHARTER COMPARATIVE TABLE

| Res. No./Ord. No. | Election Date | Proposition Number | Charter Article | Charter Section |
|---|---|---|---|---|
| 20044 | 8-25-2020 | 1 | VI | 3.3 |
| | | | VI | 5 |
| | | 2 | VI | 3.3 |
| | | | VI | 7 |
| | | | VII | 1.2 |
| | | | XI | 3 |
| | | | XI | 4.3 |
| 20045 | 8-25-2020 | 3 | XII | 4 |
| | | Added | XII | 11 C. |
| 20046 | 8-25-2020 | 4 Added | X | 4.1 |
| 20047 | 8-25-2020 | 5 | III | 4 |
| 24801(Ord.) | 4- 6-2022 | | | Sch. II |
| 20171 | 8-23-2022 | 1 | III | 1.2 |
| | | 2 | VI | 7 |
| | | 3 | VI | 1.2 B. |

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# TITLE 1 AIRPORTS AND AIRCRAFT*

**Chapter 1. Definitions**
**Chapter 2. General Regulations**
**Chapter 3. Operational Rules and Regulations**
**Chapter 4. Aviation Fuel Flow Fee**
**Chapter 5. Airport Commercial Business Exterior Sign Policy**
**Chapter 6. Fine Schedule**

*__Editor's note—__Ord. No. 22550, § 1, adopted October 20, 2011, amended Title 1, in its entirety, to read as herein set out in Chapters 1 through 6. Prior to inclusion of said ordinance, Title 1 pertained to similar subject matter. See also the Code Comparative Table and Disposition List.

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## CHAPTER 1. DEFINITIONS

Section 100. Purpose.
Section 101. Words and phrases defined.
Section 102. Words and phrases not defined.
Section 103. Present and future tense, singular and plural references.
Section 104. Gender.

### Section 100. Purpose.

As authorized by the Amended Charter of the City of Tulsa, Oklahoma, the Tulsa Airport Authority may adopt, amend or repeal rules and regulations for the maintenance and operation of any and all airports belonging to the City, subject to the approval of the City Council. This title shall be known, and may be cited as, the "Airports Ordinance" or "Title 1."

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 101. Words and phrases defined.

Words relating to aeronautical practices, processes and equipment, which are not otherwise defined herein, shall be construed according to their general usage in the aviation industry. The following words and phrases when used in this title shall, for the purpose of this title, have the meanings respectively ascribed to them in this chapter:

**A.** **Accident** shall mean a collision or similar incident involving a motor vehicle or an unplanned and unfortunate event, resulting in property damage, personal injury, or death.

**B.** **Aircraft** shall mean any contrivance used or designed for navigation or flight in the air.

**C.** **Airport and Airport Property** shall mean any and all real property held by the City and/or the Tulsa Airports Improvement Trust which is used, or intended to be used, for aircraft loading, unloading, landing, and taking off, together with all buildings, facilities and improvements thereto within the exterior boundaries of such airport as it now exists on the Airport Layout Plan or as it may hereafter be extended, enlarged or modified.

**D.** **Airport Operations Area (AOA)** shall mean that portion of the airport designed and used primarily for landing, taking off, and taxiing, including a runway, taxiway, ramp, apron, and the airport grounds enclosed by security fencing.

**E.** **Airport Operations Division** shall mean the law enforcement organization established by the Tulsa Airport Authority and the City of Tulsa to provide operational oversight, safety and security for the Tulsa International Airport.

**F.** **Airport Rules and Regulations** shall mean the provisions of this title, as may be amended from time to time.

**G.** **Air Traffic Control Tower (ATCT)** shall mean the facility operated by the FAA for air/ground communications, which provides air traffic control services to aircraft operations on or in the vicinity of the airport.

**H.** **Apron** or **Ramp** shall mean those areas of the airport within the airport operations area designated for the maneuvering, loading, unloading, servicing or parking of aircraft while on the ground.

**I.** **Authority** shall mean the Tulsa Airport Authority (TAA), a charter agency of the City of Tulsa.

**J.** **Authorized Representative of the Director** shall mean a person or persons who is an employee of the Authority and designated by the Airports Director to act on his behalf.

**K.** **City** shall mean the City of Tulsa, a municipal corporation of the state of Oklahoma.

**L.** **Commercial Activity** shall mean the conduct of any aspect of a business or concession on an airport for revenue.

**M.** **Cruise** shall mean the operation of any taxicab or paratransit vehicle on the roadways of the passenger terminal complex without a valid reservation from a pre-reserved customer for the time and place of said operation.

**N.** **Director** shall mean the individual appointed by the Mayor to serve as the chief administrative officer of the airport.

**O.** **Motor Vehicle** shall mean any ground vehicle propelled by an internal combustion or electric motor.

**P.** **Movement Area** shall mean the runways, taxiways, and other areas of the airport which are used for taxiing or hover-taxiing, air taxiing, takeoff, and landing of aircraft and under direct control of the ATCT.

**Q.** **Object-Free Area (OFA)** shall mean the area on the ground centered on a runway, taxiway, or taxilane centerline provided to enhance the safety of aircraft operations by having the area free of objects, except for objects that need to be located in the OFA for air navigation or aircraft ground maneuvering purposes.

**R.** **Offense.** The doing of any of the acts or things which are prohibited by any provisions of this Title 1, or the failure or refusal to do any act which is commanded to be done as more fully specified and set forth in this Title 1, is hereby declared to be an offense against the good order, public peace, morals, public justice, health and safety of the City of Tulsa, Oklahoma. Every act which is declared to be unlawful is also hereby declared to be an offense.

**S.** **Owner,** when referring to vehicles or aircraft, shall mean:

**1.** A person who holds the registration to an aircraft;

**2.** A person who holds the title to a motor vehicle;

**3.** A person who owns improvements on a leasehold at the airport.

**4.** A conditional vendee or lessee, in the event the motor vehicle or aircraft is the subject of an agreement for the conditional sale or lease thereof with a right of purchase upon performance of the conditions stated in the agreement and with immediate right of possession; or

**5.** A mortgagor of a motor vehicle or aircraft vested with an immediate right of possession of the motor vehicle or aircraft.

**T.** **Park** shall mean the standing of a motor vehicle or aircraft whether occupied or not, otherwise than temporarily for the purpose of, and while actually engaged in, loading or unloading merchandise or passengers.

**U.** **Passenger Terminal Complex** shall mean the passenger terminal facilities at Tulsa International Airport, including all levels of the landside buildings and the airport operations area buildings, the parking garage, service buildings, surface parking facilities and all streets and non-public roads associated therewith.

**V.** **Pedestrian** shall mean any person traveling afoot within the borders of the airport.

**W.** **Person** or **Entity** shall mean any individual, firm, partnership, corporation, company, association, joint stock association, limited liability company or body politic; and includes any trustee, receiver, committee, assignee or other representative or employee thereof.

**X.** **Picketing** shall mean participating in a picket line as a picket or taking part in any labor or other form of demonstration or protest.

**Y.** **Public Areas** shall include the areas of the passenger terminal complex to which access is not restricted by governmental regulations.

**Z.** **Secured Area** shall mean any area of the airport which requires security access procedures consistent with the Transportation Security Administration's security requirements.

**AA.** **Service Animals** shall mean animals that are individually trained to perform tasks for people with disabilities as defined by the Americans with Disabilities Act, or to perform other special tasks which are certified by the Transportation Security Administration. For the purposes of this section, service animals are working animals and are not considered domestic pets.

**BB.** **Solicit** or **Solicitation** shall mean to request an immediate donation of money or other thing of value from another person, regardless of the solicitor's purpose or intended use of the money or other thing of value. The solicitation may be, without limitation, by the spoken, written or printed word, or by other means of communication.

**CC.** **Street** shall mean the whole width between boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular traffic.

**DD.** **Taxilane** shall mean the portion of the aircraft parking area used for access between taxiways and aircraft parking positions.

**EE.** **Taxiway** shall mean a defined path established for the taxiing of aircraft from one part of an airport to another.

**FF.** **Transportation Security Administration (TSA)** shall mean the agency of the United States Department of Homeland Security that regulates airport and aircraft security or its successor agency.

**GG.** **Tulsa Airports Improvement Trust (TAIT)** shall mean the trust created and established for the benefit of the City of Tulsa, Oklahoma, under the authority of, and pursuant to 60 O.S. § 176, *et seq.,* as amended from time to time.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 102. Words and phrases not defined.

Other than as set forth in Section 100, terms not defined in this title shall have their ordinarily accepted meanings or such as the context may imply.

*(Ord. No. 22550, § 1, 10-20-2011)*

## Section 103. Present and future tense, singular and plural references.

**A.** Words used in the present tense include the future; the singular number includes the plural, and the plural the singular when used in this title.

**B.** Shall when used in this title is always mandatory and never permissive.

*(Ord. No. 22550, § 1, 10-20-2011)*

## Section 104. Gender.

Words used in the masculine gender comprehend, as well, the feminine gender and neuter.

*(Ord. No. 22550, § 1, 10-20-2011)*

## CHAPTER 2. GENERAL REGULATIONS

Section 200. Accident reports.
Section 201. Advertising and display of commercial speech.
Section 202. Airport administration.
Section 203. Animals.
Section 204. Compliance with rules and regulations.
Section 205. Damage to airport property.
Section 206. Disposition of waste material.
Section 207. Firearms and archery equipment.
Section 208. Lost and abandoned property.
Section 209. Maintenance and usage.
Section 210. Public use of airport premises.
Section 211. Penalty.

### Section 200. Accident reports.

At the request of the Airports Director, witnesses of, and participants in, accidents on or within the Airports shall make a full report thereof to the Airport Operations Division at Tulsa International Airport (TUL) or to the authorized representative of the Director at Richard L. Jones, Jr. Airport (RVS) as soon after the accident as possible. The report shall include a statement of the accident and names, addresses, and appropriate contact information.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 201. Advertising and display of commercial speech.

No person shall post, distribute, or display signs, advertisements, circulars, pictures, sketches, or drawings, or engage in any commercial speech at the airport or on airport property without first complying with Section 210.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 202. Airport administration.

**A.** When an emergency exists, the Director or his authorized representative(s) shall, as authorized by the laws of the state of Oklahoma and Title 14, Code of Federal Regulations, take action as necessary, in his discretion and judgment, to protect the health, welfare and safety of persons and property and to facilitate operations of the airport including the authority to suspend or restrict any or all aeronautical, vehicular and pedestrian operations at the airport.

**B.** In the event the Director, or his authorized representative, determines the condition of the airport or any part thereof is unsafe for taxiing, landings or takeoffs, the Director shall issue, or cause to be issued, a Notice to Airmen (NOTAM) closing the airport or any part thereof.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 203. Animals.

**A.** No person other than a disabled person with a service animal or a law enforcement officer with a specially trained animal or dog used for law enforcement purposes shall enter the airport terminal building or adjacent areas within the airport boundaries at

Tulsa International Airport with a domestic animal unless such animal is confined within a cage, carried in a person's arms, or restrained by a leash so that such person retains complete control of the animal.

**B.** No person shall, either willfully or through failure to exercise due care, permit any animal to urinate or defecate upon the sidewalks at Tulsa International Airport or within the airport terminal building, parking facility or roadways within the jurisdiction of the airport without removing evidence of the event.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 204. Compliance with rules and regulations.

**A.** All activities at the airports shall be conducted in conformity with the current pertinent provisions of regulations and advisory circulars issued by the Federal Aviation Administration, authorized orders issued by the Director, and the provisions of the Airport Rules and Regulations which are not in conflict with the Federal Aviation Regulations or advisory circulars.

**B.** Any permission granted by the Director, Authority or TAIT, expressed or by implication, to any person to enter or to use the airport(s) or any improvements, facilities or equipment is conditioned upon compliance by that person with all pertinent federal, state and local laws.

**C.** The Authority may prohibit any conduct that violates any requirement for, or condition of, the receipt of federal grant-in-aid funds, the approval of the imposition of passenger facility charges, or any other governmental program in which the Authority participates to obtain funds for use at an airport.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 205. Damage to airport property.

Any person damaging, injuring or destroying airport property, either by accident or otherwise, shall be liable for the reasonable value of the property so damaged or destroyed.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 206. Disposition of waste material.

Garbage, trash, paper, refuse and other waste material at the airports shall be placed in receptacles provided for that purpose.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 207. Firearms and archery equipment.

**A.** The prohibitions and offenses set forth in Title 27, Chapter 15, Tulsa Revised Ordinances as may be amended from time to time, are specifically applicable to Airport Property including but not limited to Tulsa International Airport and R.L. Jones, Jr. (RVS) Airport.

**B.** In addition thereto, it shall be unlawful and an offense for any person to engage in archery target practice or any other active use of archery equipment consisting of bows or crossbows and arrows on airport property.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 208. Lost and abandoned property.

Any person finding lost, mislaid, or abandoned personal property on or in the airport or airport-sponsored ground transportation shall immediately deliver such property to the Airport Operations Division, if found at Tulsa International Airport, or to an employee of the Authority at the maintenance building if found at Richard L. Jones, Jr. Airport, subject to the provisions of Oklahoma Statutes, Title 11, § 34-104G, as the same may be amended from time to time. Nothing in this section shall be construed to prohibit scheduled air carriers or other tenants from maintaining "lost and found" services for the property of patrons, invitees or employees of such air carriers or tenants.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 209. Maintenance and usage.

**A.** No person (who leases airport property from TAIT) shall:

**1.** Permit grass or ground cover vegetation on leased airport property to reach a height in excess of six (6) inches;

**2.** Allow trees or shrubbery on leased airport property to limit visibility for motor vehicle or aircraft movement;

**3.** Deposit, store, keep or permit to be deposited, stored or kept, in the open on leased airport property any aircraft service vehicles, tugs, fuel trucks, fork lifts, mobile equipment, cargo, trailers, motor homes, boats, or other items of personal property unless such property is in common use in a business activity licensed by TAIT;

**4.** Deposit, store, keep or permit to be deposited, stored or kept on open areas of leased airport property, aircraft in non-airworthy condition or disabled, disassembled, or partially assembled aircraft, parts, or other aircraft components;

**5.** Allow the accumulation of rubbish, trash or other waste material on airport property.

**B.** No person shall use or permit others to use hangars on leased airport property for non-aeronautical commercial activity.

**C.** No person shall use or permit others to use hangars for storage of non-aeronautical personal property or vehicles except such storage as may be strictly incidental to the primary aeronautical use of the hangar.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 210. Public use of airport premises.

**A.** The airport is not a public forum.

**B.** Picketing or the distribution of printed or written materials ("leafletting") shall only be conducted in designated areas of the airport and only after receipt of written authorization from the Director or his designee.

**C.** No person shall solicit on the airport.

**D.** No person shall conduct any polls or surveys on the airport without first obtaining written permission from the Director.

**E.** No person shall take still, video or motion pictures and/or sound recordings of voices or people on the airport for commercial purposes without written permission from, and as authorized by, the Authority or TAIT; provided, however, the Director may deny

permission to any person to take pictures of any nature where such denial is in the interest of public safety or national security. This section does not apply to bona fide coverage by the news media conducting business in areas authorized by the Director.

*(Ord. No. 22550, § 1, 10-20-2011)*

## Section 211. Penalty.

**A.** Unless otherwise provided for in this chapter, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments. Each day shall constitute a separate offense.

*(Ord. No. 22550, § 1, 10-20-2011)*

## CHAPTER 3. OPERATIONAL RULES AND REGULATIONS

Section 300. Airport operations area, movement area, and secured area restrictions.
Section 301. Vehicle operations in public areas.
Section 302. Unattended aircraft; disabled aircraft and aircraft parts.
Section 303. Adoption of Section 42.10, *et seq.*, of the NFPA1, Fire Code, 2009 Edition.
Section 304. Penalty.

### Section 300. Airport operations area, movement area, and secured area restrictions.

**A. Restrictions on persons.**

**1.** No person may, without an airport security badge issued in accordance with TSA Regulations, enter the air operations area, movement area, or any secured area(s) at Tulsa International Airport except persons escorted by a person displaying an appropriately-issued airport security badge and passengers who, under appropriate supervision, enter upon the apron for the purpose of enplaning or deplaning an aircraft.

**2.** No person (including a person operating a motor vehicle or an aircraft) shall enter a movement area at the airport during the hours of operation of the air traffic control tower unless the person is in direct communication with the ATCT or is being directly escorted by authorized airport personnel.

**3.** A person towing an aircraft from non-movement areas through movement areas at an airport shall establish, gain approval, and maintain contact with the ATCT and comply with the ATCT's directions.

**4.** Operators of motor vehicles and aircraft shall not park motor vehicles or aircraft within the boundaries of a movement area, unless approved by ATCT.

**5.** Parking of motor vehicles and aircraft on taxiways, taxilanes or object-free areas at the airport for loading or unloading activities shall be considered a secondary usage of such taxiways, taxilanes and object-free areas. Persons shall conduct such activities so that primary usage as a taxiway, taxilane or object-free area shall remain unimpaired and only for such period of time as is absolutely required to accomplish such activities.

**B. Operation of aircraft and helicopter engines.**

**1.** No aircraft engine shall be operated unless a licensed pilot or aircraft mechanic is attending the controls.

**2.** Aircraft shall be started and run up to full power at an airport only in places designated for such purposes by the Director or as expressly authorized by the ATCT.

**3.** While running up aircraft engines, pilots/mechanics shall not allow the propeller wash or jet stream to come into contact with buildings, airplanes, parking areas, or areas reserved for spectators.

**4.** No person shall start the engine of any aircraft when there is gasoline or other flammable material on the ground under such aircraft.

**5.** Helicopters operated at the airport shall have braking devices or rotor mooring blocks applied to the rotor blades.

**C. Taxiing aircraft or helicopter.**

**1.** No person shall taxi an aircraft except on areas designated for taxiing.

**2.** Taxiing aircraft shall have the right-of-way at an airport over all self-propelled ground vehicles.

**3.** Helicopters shall not be taxied, towed or otherwise moved at the airport, with rotors turning, unless there is a clear area of at least fifty (50) feet from the outer tip of each rotor and any other aircraft, movable object, or structure.

**D. Operation of motor vehicles.**

**1.** All operators of motor vehicles and all pedestrians shall obey traffic-control devices located on airport property which shall include all signs, all curbing, all mechanical signage, all paint marks placed on the surface of streets, ramps, aprons, taxiways, taxilanes, object-free areas, and all electrically controlled traffic signals or gates.

**2.** The Director is authorized to establish motor vehicle speed limits and place traffic-control devices on areas of airport property other than streets which are dedicated for public use.

**3.** Motor vehicles shall only be operated in designated streets, taxiways, taxilanes and marked ramp areas at the airport.

**4.** No person shall drive any motor vehicle on airport property in excess of posted speed limits.

**5.** All operators of motor vehicles operating within an object-free area shall give right-of-way to oncoming aircraft by either maintaining a safe distance ahead or behind the aircraft or by exiting the object-free area to let the aircraft pass.

*(Ord. No. 22550, § 1, 10-20-2011)*

## Section 301. Vehicle operations in public areas.

**A.** No person shall cruise the passenger terminal complex for the purpose of soliciting business or fares.

**B.** No person shall make repairs to a vehicle in the passenger terminal complex unless such repairs are for an emergency, i.e. flat tire or dead battery.

**C.** No person shall park to load or unload passengers in the passenger terminal complex in any areas other than those designated by appropriately installed signage.

**D.** No person shall fail to obey promptly any lawful command by any Airport Officer, Airport Parking Inspector, City Police Officer, or other duly authorized representative of the Director or the City, when so identified.

**E.** No person shall operate a commercial ground transportation service vehicle within the boundaries of the Tulsa International Airport without holding a current and valid permit issued by TAIT in accordance with TAIT's Ground Transportation Services Policy, as it may be amended and in effect from time to time, and agreeing to comply with such policy.

*(Ord. No. 22550, § 1, 10-20-2011; Ord. No. 23891, § 1, 4-4-2018)*

## Section 302. Unattended aircraft; disabled aircraft and aircraft parts.

**A.** No aircraft shall be left unattended on the airport unless properly secured or within a hangar. Owners of aircraft shall be held responsible for any damage resulting from failure to comply with this section.

**B.** Aircraft owners, their pilots or agents, shall be responsible for the prompt removal of disabled aircraft and parts thereof located on airport property, unless required or directed by the FAA or National Transportation Safety Board to delay such action pending an investigation of an accident.

**C.** Authority is authorized to remove to the nearest location designated or maintained by authority or the City of Tulsa, or cause to be removed by reasonable means, any motor vehicle or aircraft in violation of the provisions of this title; provided that such impounded motor vehicle or aircraft shall be surrendered to the duly registered owner or lessee upon payment to the City of Tulsa of all reasonable costs of removal and storage which shall have accrued to such vehicle or aircraft in compliance with Section 305, Title 24 of the Tulsa Revised Ordinances.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 303. Adoption of Section 42.10, *et seq.*, of the NFPA1, Fire Code, 2009 Edition.

A certain document, three (3) copies of which are on file in each of the offices of the City Clerk of the City of Tulsa, Oklahoma, the Tulsa Airport Authority and the Superintendent of R.L. Jones, Jr. Airport, being marked and designated as NFPA1, *Fire Code,* 2009 Edition or as prescribed in the most current revision thereof, *Aircraft Fuel Servicing,* Section 42.10, *et seq.*, which applies to the fuel servicing of all types of aircraft using liquid petroleum fuel in accordance with NFPA 407, *Standard for Aircraft Fuel Servicing,* 2007 Edition or as prescribed in the most current revision thereof, as published by the National Fire Protection Association, hereinafter the *"Aircraft Fuel Servicing Code,"* is hereby adopted for the purpose of safeguarding life and property at the airports from fire and explosion hazards by regulating aircraft fuel service, as herein provided. Each and all of the regulations, provisions, penalties, terms and conditions of the NFPA1, *Fire Code,* 2009 Edition or as prescribed in the most current revision thereof, Section 42.10, *et seq.*, and NFPA 407, *Standard for Aircraft Fuel Servicing,* 2007 Edition or as prescribed in the most current revision thereof, are hereby referred to, adopted and made a part hereof as if fully set out in this chapter.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 304. Penalty.

Unless otherwise provided for in this chapter, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments. Each violation shall constitute a separate offense.

*(Ord. No. 22550, § 1, 10-20-2011)*

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## CHAPTER 4. AVIATION FUEL FLOW FEE

Section 400. Purpose.
Section 401. Fuel flow fee established.
Section 402. Exemption from fuel flow fee.
Section 403. Accounting and reporting.
Section 404. Payment.
Section 405. Auditing.

### Section 400. Purpose.

The Tulsa Airport Authority, as a charter agency of the City of Tulsa with responsibility for the operation, administration, maintenance and improvement of Tulsa International Airport and Richard Lloyd Jones, Jr. Airport (collectively called "airport"), shall assess a fuel flow fee ("fuel flow fee") on all aviation fuel, jet fuel, propellant, or any other fuel used for aircraft operation ("fuel") sold, consumed or dispensed at the airport as hereinafter described except as otherwise provided in Section 402.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 401. Fuel flow fee established.

Subject to the exception provided herein, every person at the airport (including but not limited to fixed base operators [as defined by the Schedule of Minimum Standards for Commercial Operators approved by the Tulsa Airports Improvement Trust from time to time], lessees and licensees at the airport) which sells, consumes or dispenses fuel directly or indirectly for consumption, shall pay to the Authority, for the use and benefit of the Authority, a fuel flow fee for each gallon of fuel sold, consumed or dispensed during any calendar month. The amount of the fuel flow fee shall be established by the Authority and may be changed at any time as shall be in the best interests of the airport. Current fuel flow fees will be published and available in the Airport Director's office.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 402. Exemption from fuel flow fee.

The fuel flow fee shall not apply to fuel delivered to be sold or dispensed to, or consumed by, air carriers or cargo carriers with scheduled service and a license to operate at the airport.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 403. Accounting and reporting.

Every person described herein shall provide to the Authority, on or before the last day of the calendar month, a verified report ("fuel flow report") in a form provided by Authority of all fuel received from a fuel supplier, as well as fuel consumed, sold or dispensed by the person at the airport, including fuel which is exempt from the fuel flow fee, during the preceding calendar month. A late fee of Fifty Dollars ($50.00) will be assessed for fuel flow reports not received by Authority by the due date.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 404. Payment.

Every person described herein shall provide, with the monthly verified fuel flow report required by Section 403, a payment to the Authority of the fuel flow fee for each gallon of

fuel sold, consumed or dispensed on the airport during the preceding calendar month at the rate and in the amount then currently approved in the airport schedule of rates and charges. Fuel flow fee payments received by the Authority after the due date will be charged (assessed) interest equal to eighteen percent (18%) per annum (one and one-half percent (1½%) per month) of the amount due (or the amount allowed by Oklahoma law if less than eighteen percent (18%)), accruing monthly until full payment is made to Authority.

*(Ord. No. 22550, § 1, 10-20-2011)*

## Section 405. Auditing.

Each person described herein shall maintain an acceptable cost accounting system in accordance with generally accepted accounting practices and principles and shall maintain all books, records and fuel flow reports required under this section within the City of Tulsa for a period of three (3) years from the due date of a fuel flow report. Authority and/or the City of Tulsa, the FAA, the Comptroller General of the United States, and any of their duly authorized representatives (including a firm of certified public accountants satisfactory to the Authority and City) shall have the right, during ordinary business hours, to access any books, documents, papers and/or records which are directly pertinent to fuel transactions and reporting requirements hereunder for the purpose of making audit examination of such records and books of account.

*(Ord. No. 22550, § 1, 10-20-2011)*

## CHAPTER 5. AIRPORT COMMERCIAL BUSINESS EXTERIOR SIGN POLICY

Section 500. Purpose.
Section 501. Interpretation.
Section 502. General requirements.
Section 503. Display surface area.
Section 504. Fuel facilities.
Section 505. Flags, banners, pennants and other advertising.
Section 506. Variances and exceptions.
Section 507. Conflict with ordinances or statutes.
Section 508. Penalty.

### Section 500. Purpose.

As authorized by the Amended Charter of the City of Tulsa, Oklahoma, the Tulsa Airport Authority may adopt, amend or repeal rules and regulations for the maintenance and operation of any and all airports belonging to the City, subject to the approval of the City Council. The following Airport Commercial Business Exterior Sign Policy, Tulsa International Airport and R.L. Jones, Jr. Airport, was approved by the Tulsa Airports Improvement Trust and the Tulsa Airport Authority on August 11, 2005, and approved by the Tulsa City Council on September 29, 2005.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 501. Interpretation.

The provisions of Tulsa Revised Ordinances, Title 42, § 1221, Use Unit 21, Business Signs and Outdoor Advertising, Section C, "General Use Conditions for Business Signs;" and Section E, "CG, CH, CBD, IL, IM and IH Use Conditions for Business Signs;" and Tulsa Revised Ordinances, Title 42, § 1800, "Definitions," are hereby incorporated by this reference. The more restrictive provisions of the Tulsa International Airport and R.L. Jones Jr. Airport Commercial Business Exterior Sign Policy shall control in case of a conflict.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 502. General requirements.

**A.** Before any business sign is erected on Tulsa International Airport or R.L. Jones Jr. Airport, a tenant or subtenant shall obtain a City of Tulsa Sign Permit and approval from the Tulsa Airport Authority ("Authority"). Authority will only grant approval to businesses licensed with the Tulsa Airports Improvement Trust. Off-leasehold signage or advertising on other airport land by a tenant or subtenant is prohibited. Signs shall meet all local and state building and zoning codes and all federal requirements.

**B.** An airport "tenant construction or alteration application" form shall be completed with tenant's or subtenant's business name, contact person and phone number, and submitted to the Director along with a copy of the City of Tulsa Sign Permit; one (1) set of plans showing the type of sign with dimensions; whether the sign is illuminated; a plot plan showing sign location; structural details; and means of permanent attachment. All signs shall be permanently affixed to a building, fuel dispensing facility, fuel truck or the ground within the boundaries of a leasehold area. If the sign is a ground

sign, the application must also show footing plans and height of the sign. If the sign is a projecting sign, the application must also show means of attachment and height of the sign.

**C.** Wall signs are signs affixed to a building wall; canopy, awning, marquee or parapet wall, or a sign displayed in or on a window or door which does not extend horizontally more than fifteen (15) inches from the wall, canopy, awning, marquee, parapet wall, window or door, nor extend above the parapet wall. A sign attached to the wall of a building that extends more than fifteen (15) inches from the wall is a projecting sign. Ground signs are any sign which is part of a self-supporting structure, other than a building or part of a building, and may include various types of pole signs or monument signs. Roof signs are prohibited.

**D.** All permanent signs shall be made from metals or polymers; no wooden signs, fabric or vinyl banners, and no paper or cardboard signs will be allowed. All electrical signs must comply with the National Electric Code.

**E.** Illuminated signs must be internally lit in a manner that creates no hazard or distraction to air traffic. Flashing signs, external lighting (flood lights), signs with movement, and brilliantly lit signs are prohibited.

**F.** Ground signs and projecting signs shall be installed so that their maximum height is no greater than thirty-five (35) feet. Ground signs and projecting signs shall not restrict line of sight from the air traffic control tower to any taxiway or runway; interfere with aircraft traffic, service vehicle traffic, or existing utilities; and shall meet the requirements of Federal Aviation Regulations, Part 77 (Objects Affecting Navigable Airspace).

**G.** Installation and maintenance of all signs, including but not limited to painted finishes, lettering and electrical service is the sole responsibility of the tenant or subtenant who shall be responsible for maintenance of the sign and upkeep of the immediate premises occupied by the sign in a clean, sanitary, and healthful condition. Obsolete messages are to be removed by tenant within thirty (30) days of obsolescence. Damaged signs are to be repaired or removed by tenant within thirty (30) days of occurrence.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 503. Display surface area.

**A.** The aggregate display surface area of wall signs shall not exceed three (3) square feet, for each lineal foot of building wall to which the sign or signs are affixed, including doors and windows. Signs are not permitted to extend above or beyond the ends of the wall of any building.

**B.** The aggregate display surface area of a ground sign or projecting sign shall not exceed fifty (50) square feet per side, back to back per building. Tenants (including subtenants) leasing an aggregate leasehold area of at least two (2) acres are permitted a total of three (3) ground signs or projecting signs, or any combination thereof, on tenant's total leased premises per airport (TUL or RVS).

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 504. Fuel facilities.

**A. Fuel pump facilities.** Signs on fuel pump facility areas (installed pumps and adjacent area) are limited to signs painted on fuel pumps plus a permanently mounted sign with

an aggregate (total) display surface not to exceed four (4) square feet per side on two (2) sides of the fuel pump facility area. The additional, permanently mounted sign may be constructed to allow messages that are easily changeable.

**B. Fuel trucks.** Signs on fuel trucks are limited to signs painted on truck tanks and cab doors plus an additional sign that is permanently mounted on any two (2) sides, which could include the front or back of the truck not to extend beyond the normal fuel truck tank and chassis. The additional, permanently mounted sign shall not exceed four (4) square feet per sign and may be constructed to allow messages that are easily changeable.

**C. Fuel storage facilities.** Signs on fuel storage facilities shall be limited to one (1) sign not exceeding one (1) square foot.

**D. Safety markings.** Standardized safety markings for fuel pump facilities, fuel trucks and fuel storage facilities shall be displayed in accordance with the NFPA standards and shall not be measured in the aggregate (total) display surface allowed.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 505. Flags, banners, pennants and other advertising.

**A.** Tenant or subtenant may display any combination of one (1) corporate flag, one (1) City of Tulsa flag, one (1) Oklahoma State flag, and one (1) American flag on either the public side or the air side of one (1) of its buildings. For aggregate leasehold areas up to thirty (30) acres, flag size (per flag) may not exceed sixty (60) square feet and flagpoles may not exceed thirty-five (35) feet in height. Flagpoles may not restrict the line of sight from the air traffic control tower to any taxiway or runway; may not interfere with aircraft traffic, service vehicle traffic or existing utilities; and must meet the requirements of Federal Aviation Regulations, Part 77 (Objects Affecting Navigable Airspace).

**B.** Any other type of permanent exterior signage not included in this policy (including promotional business signs, banners, pennants, flags, streamers or similar promotional devices) is not allowed; provided, however this shall not restrict placement of any signs of warning, directive, or instructional nature erected by a public utility, franchised transportation company or governmental agency; signs, not exceeding three (3) square feet of display surface area of a warning, directive, or instructional nature, including entrance, exit and restroom signs; or legal notices and street numbers.

**C.** Temporary promotional banners will be allowed twice a year for ten (10) days, requiring a six-month space between the two (2) ten-day periods. No City permit will be required for a single banner up to thirty-two (32) square feet, subject to approval by the Authority.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 506. Variances and exceptions.

**A.** Requests for variances (exceptions) to this sign policy shall be submitted in writing to the Director and shall state the reasons for the requested variance along with detailed drawings identifying the variance, if appropriate. Requests for variances will be considered for approval by the Authority.

**B.** Any permanent wall sign, projecting sign, or ground sign installed before January 1, 2005, shall be considered to meet the size requirements of previously approved sign policy guidelines and will be allowed until any modification of any type, occurs, i.e. changed wording or logo; different tenant; color change; etc., at which time a new tenant construction alteration application must be approved by the Authority and a City of Tulsa Sign Permit secured, if applicable. Repainting an existing painted sign to the original lettering, logo, and colors does not require Authority approval.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 507. Conflict with ordinances or statutes.

No provision herein shall be held to deprive any federal, state or municipal agency having jurisdiction of any power or authority which it had on the effective date hereof or of any remedy then existing for enforcement of its orders.

*(Ord. No. 22550, § 1, 10-20-2011)*

### Section 508. Penalty.

Unless otherwise provided for in this chapter, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments. Each day shall constitute a separate offense.

*(Ord. No. 22550, § 1, 10-20-2011)*

## CHAPTER 6. FINE SCHEDULE

Section 600. Fine schedule.

### Section 600. Fine schedule.

In lieu of an appearance before the Municipal Court, the City may designate, by ordinance, the penalties to be paid for the offenses which may be satisfied by payment at the Court. Bail, in the form of a "preset fine," is authorized by 11 O.S. 2010, § 28-113(c). The amount of bail for the designated offenses hereinafter described shall be the amount of fines and costs, including any penalty assessments and/or fees, provided for in Oklahoma Statutes and City Ordinances. This section establishes preset fines only for those offenses where the violator signs a written promise to appear and no court appearance is scheduled by the issuing officer. This section shall not apply to those offenses that cause the violator to be arrested.

**VIOLATION**
**GENERAL REGULATIONS**

| § Ref | | Fine/ Penalty |
|---|---|---|
| | | |
| 203.A | Unrestrained Animal | $ 75.00 |
| 203.B | Failure to Clean Up After Animal | $ 75.00 |
| 206 | Failure to Properly Dispose of Waste Material | $ 75.00 |
| 207.B. | Active Use of Archery Equipment on Airport Property | $150.00 |
| 209.A.1-5 | Failure to Properly Maintain Airport Property | $150.00 |
| 209.B. | Use of Hangar for Non-Aeronautical Commercial Activity | $150.00 |
| 209.C | Storage of Non-Aeronautical Property | $150.00 |
| 210.B | Picketing or Material Distribution without Authorization | $150.00 |
| 210.C | Solicitation on Airport Property | $150.00 |
| 210.D | Conduct of Poll or Survey | $150.00 |
| 210.E | Taking Pictures for Commercial Purposes | $150.00 |
| | | |
| **OPERATIONAL RULES AND REGULATIONS** | | |
| | | |
| 300.A.1 | Unauthorized Entry into Secure Area | $150.00 |
| 300.A.2 | Unauthorized Entry into Movement Area | $150.00 |
| 300.A.3 | Failure to Properly Tow Aircraft | $150.00 |
| 300.A.4 | Unauthorized Parking in Movement Area | $150.00 |
| 300.A.5 | Excessive Time for Loading & Unloading Activities | $150.00 |
| 300.B.1 | Operation of Engine without Attendant | $150.00 |
| 300.B.2 | Improper Location or No Authorization for Full Power Runup | $150.00 |
| 300.B.3 | Failure to Restrict Propeller Wash or Jet Stream | $150.00 |
| 300.B.4 | Flammable Material in Proximity When Starting Engine | $150.00 |
| 300.B.5 | Failure to Comply with Helicopter Braking Requirements | $150.00 |
| 300.C.1 | Taxiing Aircraft in Undesignated Area | $150.00 |
| 300.C.2 | Failure to Yield to Taxiing Aircraft | $150.00 |
| 300.C.3 | Movement of Helicopter without Appropriate Clear Area | $150.00 |

| § Ref | | Fine/ Penalty |
|---|---|---|
| 300.D.1 | Failure to Obey Traffic Control Devices | $150.00 |
| 300.D.3 | Operation of Motor Vehicle Outside Designated Areas | $150.00 |
| 300.D.4 | Exceeding Posted Speed Limits | $150.00 |
| 300.D.5 | Improper Motor Vehicle Operation in Object-Free Area | $150.00 |
| 301.A | Cruising Passenger Terminal Complex for Soliciting Fare | $150.00 |
| 301.B | Vehicle Repair Other than for Emergency in Terminal Complex | $150.00 |
| 301.C | Parking in an Undesignated Area | $150.00 |
| 301.D | Failure to Obey Lawful Command | $150.00 |
| 301.E | Operating a Commercial Ground Transportation Vehicle without a Permit | $150.00 |
| 302.A | Failure to Properly Secure Unattended Aircraft | $150.00 |
| 302.B | Failure to Promptly Remove Disabled Aircraft | $150.00 |
| | | |
| **COMMERCIAL BUSINESS EXTERIOR SIGN POLICY** | | |
| | | |
| 502.A | Failure to Secure Sign Permit and TAA Approval | $150.00 |
| 502.C | Improper Display or Installation of Wall Sign, Ground Sign, or Roof Sign | $150.00 |
| 502.D | Use of Impermissible Sign Material | $150.00 |
| 502.E | Illuminated Sign Fails to Meet Established Requirements | $150.00 |
| 502.F | Sign in Excess of Height and Sight Restrictions | $150.00 |
| 502.G | Failure to Properly Maintain Installed Signage | $150.00 |
| 503.A | Excess Display Surface for Wall Sign | $150.00 |
| 503.B | Excess Display Surface for Ground Sign or Projecting Sign | $150.00 |
| | or excess number of signs | $150.00 |
| 504.A | Improper Signage on Fuel Pump Facilities | $150.00 |
| 504.B | Improper Signage on Fuel Trucks | $150.00 |
| 504.C | Improper Signage on Fuel Storage Facilities | $150.00 |
| 504.D | Failure to Display NFPA Signage on Fuel Trucks & Facilities | $150.00 |
| 505.A | Exceeding Permitted Display of Flags and Banners | $150.00 |
| 505.B | Display of Unauthorized Signage | $150.00 |
| 505.C | Exceeding Authorized Use of Promotional Banners | $150.00 |

*(Ord. No. 22550, § 1, 10-20-2011; Ord. No. 23891, § 2, 4-4-2018)*

# TITLE 2 ANIMALS*

**Chapter 1. Definitions; Regulation Generally**
**Chapter 2. Agricultural Animals**
**Chapter 3. Animals in Streets**
**Chapter 4. Miscellaneous Provisions**
**Chapter 5. Dead Animals**
**Chapter 6. Dangerous Dogs**
**Chapter 7. Reptiles**
**Chapter 8. Penalty**

*__Editor's note—__Ord. No. 24607, § 3, adopted April 28, 2021, amended Title 2, Chapters 1—7 in its entirety to read as herein set out. Former Title 2, Chs. 1—7, pertained to similar subject matter. See Code Comparative Table for complete derivation.

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## CHAPTER 1. DEFINITIONS; REGULATION GENERALLY

Section 100. Definitions.
Section 101. Offenses.
Section 102. Rabies and inoculation.
Section 103. Veterinarian records and reports; reporting animal bites; animal under quarantine; rabies suspected.
Section 104. License fees.
Section 105. Proclamation of rabies.
Section 106. Rabies suspect.
Section 107. Dangerous animal.
Section 108. Animal nuisance.
Section 109. Notice of impoundment; reclaiming; disposal of animals; and fees.
Section 110. Commercial animal establishments.
Section 111. Issuance of citations; collection of fines.
Section 112. Police dogs and dogs trained to guide the blind and hearing impaired and support service dogs for people with disabilities.
Section 113. Outside agencies and nonresidents; euthanasia services prohibited—Mayoral exception.
Section 114. Records; funds.
Section 115. Unlawful removal.
Section 116. Entering property.
Section 117. Exemption permits.
Section 118. Penalty.

### Section 100. Definitions.

For purposes of this title, each word and phrase shall have the following meaning:

**Abandon** or **Abandoned** shall mean the leaving of an animal without making reasonable arrangements for assumption of custody by another person.

**Animal** shall mean any living creature, except human beings, and include (without limiting the generality) mammals, birds, reptiles, fish, amphibians and invertebrates, except in Section 106 of this chapter the word "animal" shall mean only mammals when referring specifically to the control of rabies and rabies-suspected animals.

**A.** A large animal is any agricultural animal, excluding poultry and rabbits. It includes but is not limited to horses; dwarf, miniature, or dwarf variety horses; cattle; goats; donkeys; mules; sheep; and swine. It also includes reptiles over fifty (50) pounds.

**B.** A small animal is any non-agricultural animal, including but not limited to dogs, cats, and ferrets, and the following agricultural animals: poultry and rabbits.

**Animal bite** shall mean any penetration of the skin by the teeth of an animal but shall exclude scratches by the claws of dogs or cats.

**Animal Welfare Authority** means a local government entity acting alone or in concert with other local governmental units for enforcement of the animal welfare laws of the city, county and state and the shelter and welfare of animals.

**Animal Welfare Center** means the shelter at 3031 North Erie Avenue in Tulsa, Oklahoma.

**Animal Welfare Officer** means any individual employed, contracted with, or appointed by Animal Welfare Authority for the purpose of aiding the enforcement of any law or ordinance relating to the licensure of animals, control of animals, or seizure and impoundment of animals, and includes any state or local law enforcement officer or other employee whose duties in whole or in part include assignments that involve the seizure and impoundment of any animal

**Animal Wild by Nature** shall mean and include any animal, except reptiles defined in Chapter 7, which, because of its potentially dangerous physical features, or its great size, or its potentially dangerous nature presents a clear and proven danger to human beings, and shall include:

**A.** The following members of the Class Aves: Order Falconiformes (hawks, eagles, falcons and vultures) which are not kept pursuant to federal or state permit, and Order Ratites (ostriches, rheas, cassowaries and emus); or birds native to the continental United States and Alaska and all birds covered under the Lacey Act and Migratory Bird Act.

**B.** The following members of the Class Mammalia: Order Carnivora, Family Felidae (ocelots, margays, tigers, lions, panthers, jaguars, leopards and cougars, bobcat, lynx, cheetah, serval), except commonly accepted domesticated cats; the Family Canidae (wolves, foxes, dingoes, coyotes and jackals), except domesticated dogs; Family Mustelidae (weasels, martins, minks and badgers); Family Procyonidae (raccoon); Family Ursidae (bears); Order Chiroptera (bats); Order Edentata (sloths, anteaters and armadillos); Order Marsupialia (kangaroos and common opossums); Order Proboscidea (elephants); Order Primate (monkeys, chimpanzees and gorillas); Order Rodentia (beaver, muskrat and porcupines); Order Artiodactyla (antelope, deer, bison and camels); and Order Perissodactyla (horse-like animals); and any hybrid or cross-breed of any of the above-listed animals.

**C.** Any species of animal which is venomous to human beings, whether its venom is transmitted by bite, sting, touch or other means, except for venomous aquarium specimens. Venomous aquarium specimens which cannot survive outside the confines of an aquarium and which cannot survive in the lakes, ponds, rivers or streams of northeast Oklahoma shall not be prohibited.

**D.** Any species of animal when kept, maintained or harbored in such numbers or in such manner as to constitute the likelihood of danger to the animals themselves, to human beings or to the property of human beings.

**E.** Except as expressly provided in this title, the term "animal wild by nature" shall not include nonpoisonous aquatic or amphibious animals, gerbils, hedgehogs, hamsters, guinea pigs, mice, rabbits, birds except for those listed in this section, domestic rats, chinchillas, domestic honey bees, ferrets, and those reptiles described in Chapter 7 as not prohibited.

**At Large** shall mean:

**A.** An animal not confined on the premises of its Owner; or

**B.** A dog not under leash or not in the physical control of its owner.

**C.** A cat not in the physical control of its owner.

**Cat** shall mean a member of the species Felis domesticus.

**Cattle** shall mean large domesticated ungulates of the subfamily Bovinae, a species of the genus Bos, commonly classified collectively as Bos Taurus.

**Chief of Police** shall mean the duly appointed, qualified or acting Chief of Police of Tulsa or the Chief's authorized representative.

**Commercial Animal Establishment (Type A)** shall mean any stable or boarding facility, grooming or bathing facility, veterinarian clinic or boarding facility, carriage horse or pony service, or sentry or guard dog service.

**Commercial Animal Establishment (Type B)** shall mean any business keeping animals in stock for retail or wholesale trade, excluding Type A Commercial Animal Establishments, which shall include, but not limited to, wholesale distributors, pet stores, stockyards, slaughterhouses and hatcheries.

**Confined on the Premises** shall mean that condition in which an animal is securely and physically confined and restrained on and within the premises of the owner by means of walls, fences or leash. Confinement shall be of such strength and size as to prevent such animal from leaving the premise. Confinement shall keep the animal from extending its head through an enclosure so as to constitute a threat to any person or animal in the areas adjoining the enclosure. A leash used to confine an animal shall not be of a length that would allow the dog access to public property or to sidewalks or rights-of-way or to adjacent property owned or leased by persons other than the owner of the animal.

**Dangerous Animal** shall mean any animal which, without provocation, has:

**A.** Killed or inflicted serious bodily injury upon any person, requiring hospitalization, medical treatment at medical facility, or rehabilitative treatment; or

**B.** Bitten two (2) or more human beings during one (1) or more encounters; or

**C.** Bitten one (1) human being two (2) or more times during two (2) or more encounters; or

**D.** Evidenced a propensity, tendency or disposition to:

**1.** Attack without provocation; or

**2.** Cause injury to, or otherwise endanger the safety of human beings or domestic animals.

**Dangerous Dog** means any dog that has:

**A.** Inflicted severe injury on a human being without provocation on public or private property,

**B.** Been previously found to be potentially dangerous, the owner having received notice of such by an animal welfare authority in writing and the dog thereafter aggressively bites, attacks, or endangers the safety of humans, dogs or domestic animals.

**C.** Been previously found to be potentially dangerous, the owner having received notice of such by an animal welfare authority in writing and the dog thereafter attacks a dog or domestic animal, which results in the death of said dog or domestic animal either on public of private property.

**Director of Finance** shall mean the duly appointed Director of the Finance Department of the City of Tulsa or the Director of Finance's authorized representative.

**Director of TCCHD** shall mean the Director of the Tulsa City-County Health Department or the Director's authorized representative.

**Director of WIN** shall mean the Director of the Working in Neighborhoods Department of the City of Tulsa or the Director's authorized representative or designee.

**Dog** shall mean and include any animal of the species canis familaris.

**Domestic Animal** shall mean all domestic animals including, but not limited to, cattle, bison, hogs, sheep, goats, equidae, chickens or other poultry and exotic livestock. The term "domestic animal" shall not include dogs and cats.

**Exemption Permit** shall mean a permit issued under Section 117 allowing the ownership of animals which are exempt from animal count and/or spay/neuter ordinances.

**Foster** shall mean the providing of care or rehabilitation for dogs or cats through an affiliation with a Rescuer Organization.

**Hive** shall mean a manmade home for bees which includes one (1) or more boxes containing removable frames for rearing young bees, a queen excluder, one (1) or more boxes with removable frames for honey storage, an inner cover and a top cover, all of which are set on a hive stand.

**Hobbyist** shall mean any person so registered with the Director of Finance as having met the requirements for the hobbyist exemption in Section 117 of this title.

**Immediate Family** shall mean a spouse, mother, father, sibling or child, including stepchildren.

**Intact Animal** shall mean an animal that has not been sexually sterilized.

**Leash**, when used to confine an animal, shall mean any rope, cable, chain or other material attached to a permanent object used to confine a dog to its owner's property.

**Mammal** shall mean any of the class Mammalia or any subclass of all animals that nourish their young with milk secreted by mammary glands and have their skin more or less covered with hair.

**Miniature Pig** shall mean a pig which, at maturity, is less than twenty-two (22) inches high at the shoulder, less than thirty-two (32) inches long, weighing less than one hundred twenty-five (125) pounds, and which is registered with the North American Pot-Bellied Pig Association.

**Nuisance** shall mean any animal, which habitually commits any one (1) or a combination of the following acts:

**A.** Scratches or digs into any flower bed, garden, tilled soil, vines, shrubbery or small plants and in so doing injures the same;

**B.** Overturns any garbage can or other vessel for waste products or scatters the contents of same;

**C.** Kills any domestic animal;

**D.** Barks, howls, brays, crows, or makes any other loud or offensive noise common to its species or peculiar to itself, so as to disturb the inhabitants of the community;

**E.** Is at large.

**Owner** shall mean any person, firm or corporation having the care or maintenance of, keeping or harboring, or in possession and control or custody of any dog, cat, animal or domestic animal.

**Pigeon** or **Dove** shall mean any bird in the family Columbidae, and shall include any exotic dove (ringneck, white, diamond, fruit, cape, laceneck, etc.) and any fancy pigeon, racing pigeon, or common pigeon.

**Potentially Dangerous Dog** means any dog that when unprovoked:

**A.** Inflicts bites on a human either on public or private property, or

**B.** Attacks a dog, cat or domestic animal which results in the death of said dog, cat or domestic animal either on public or private property;

**Poultry** shall mean any bird of the species Gallus or Meleagris gallipavo (domestic turkey), generally, any type of chicken.

**Proof of ownership** means adoption contract, bill of sale, veterinary records or photographs (including digital) which shows ownership. Animals without a bill of sale or identifiable marking (tattoo, microchip, brand, etc.) shall be released only after the WIN Director or the WIN Director's designee is satisfied the person is the rightful owner of the animal.

**Proper Enclosure of a Dangerous Dog** means, while on the owner's property, a dangerous dog shall be securely confined indoors or in a securely enclosed and locked pen or structure with at least one hundred fifty (150) square feet of space for each dog kept therein which is over six (6) months of age, and which is suitable to prevent the entry of children and designed to prevent the animal from escaping. Such pen or structure shall have secure sides and a secure top and shall also provide protection from the elements for the dog.

**Rabies-Suspected Animal** shall mean any animal which has bitten a human being, or which has been bitten by any animal suspected of having rabies.

**Releasing Agency** shall mean any municipal shelter, humane society organization, or any other agency or group that has an ongoing adoption program and/or rescues animals for placement, whether to the public or private.

**Rescue Organization** means an organization that regularly harbors dogs or cats which have no readily identifiable owner. A rescue organization shall be incorporated as a non-profit corporation in the United States.

**Rescuer** shall mean an individual who regularly harbors dogs or cats which have no readily identifiable owner. An individual rescuer shall be named as such on a roster of recognized rescuers furnished by a Rescue Organization or animal welfare organization to the Director of Finance and to the Director of WIN.

**Severe Injury** means any physical injury that results in broken bones or lacerations requiring multiple sutures or cosmetic surgery.

**Under Leash** shall mean and include the condition of a dog being securely held, restrained and confined by its owner, member of family or agent by means of a strap, chain, rope, cord or other material, and in such manner as to prevent the dog from attacking any person or animal.

**WIN** shall mean the City of Tulsa Working in Neighborhoods Department, any authorized representative thereof, or any City department designated by the Mayor to succeed to or share the responsibilities of WIN as provided in this title.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 101. Offenses.

**A.** It shall be unlawful and an offense under the terms of this title for any person within the corporate limits of the City of Tulsa to:

**1.** Own, keep, possess, harbor or allow to remain on premises under that person's control any dog or cat over four (4) months old, unless such dog or cat has a current license and a current vaccination against rabies as required in this title.

**2.** Fail to prevent any dog or cat owned, possessed, kept or harbored by that person from running or being at large, whether such dog or cat is licensed or unlicensed; provided, however, that it shall be permissible for:

**a.** A dog to be led off the premises of its owner when under leash;

**b.** For a police dog not to be under leash while being utilized as a police dog in the performance of police duties and when accompanied by a police officer; or

**c.** For a dog to not be under leash within an Off-Leash Park Area designated by the Park and Recreation Board of the City of Tulsa.

**3.** Deposit any live dog, cat or domestic animal along any private or public roadway or in any other private or public place with the intention of abandoning the dog, cat or domestic animal.

**4.** Harbor, keep or have possession of any dangerous animal, except as provided in Chapter 6 of this title. Every person violating subparagraph 101.A.4 shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City Jail for a period of not exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00) excluding costs, fees and assessments, or both such fine and imprisonment.

**5.** Harbor, keep or have possession of any animal which is a nuisance. Every person violating subparagraph 101.A.5 shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments. Provided that, if at the trial of a case it is proven that the defendant has been once before convicted of this same offense, the defendant shall, upon the defendant's second or subsequent conviction, be punished by imprisonment in the City Jail for a period not exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or by both such fine and imprisonment.

**6.** Fail or refuse to deliver to WIN or to the Chief of Police upon demand any unlicensed dog or cat, dangerous animal, animal which is a nuisance, rabies-suspected animal, dog or cat found at large, or any animal the keeping or harboring of which is declared to be an offense. Every person violating subparagraph 101.A.6 shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City Jail for a period of not exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or both such fine and imprisonment.

**7.** Remove or fail to affix or attach to collars or harnesses worn by dogs or cats a current license tag as provided in this chapter, unless the dog or cat is permanently and uniquely identified with a microchip implant or tattoo.

**8.** Keep, possess, own, harbor or exhibit any animal wild by nature except as an exhibition complying with all aspects of federal laws and regulations and Oklahoma laws and regulations applicable to exhibition of animals wild by nature.

**9.** Fail or refuse to keep every female dog or cat "in heat" confined in a building or secure enclosure or in a veterinary hospital or boarding kennel in such a manner that another dog or cat cannot come into contact with it except for controlled breeding purposes.

**10.** Interfere or hinder WIN, the Director of Finance, Chief of Police, or Director of Health from performing their official duties as set forth herein. Every person violating subparagraph 101.A.10 shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City Jail for a period of not exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00) excluding costs, fees and assessments, or both such fine and imprisonment.

**11.** Release, other than by the Owner, any animal from its confinement at any exhibition or sporting event; or release any animal from their home housing or yard.

**12.** Allow an animal to defecate (without the Owner, keeper or harborer removing the excreta deposited) on public or private property other than that of the owner.

**13.** Permit an animal to destroy or damage property of any kind, other than the Owner's property, or to commit a similar prohibited act on the private property of another person or the property of the City, including its parks and playgrounds. Every person violating subparagraph 101.A.13 shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City Jail for a period of not exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00) excluding costs, fees and assessments, or both such fine and imprisonment.

**14.** Own or harbor any animal or poultry primarily or in part for the purpose of fighting, or any animal or poultry trained for such; or any person to place or attempt to place an animal or poultry in an enclosure or in any other place for the purpose of fighting or combat; or any person to promote, stage, hold, manage, conduct, be umpire, judge or spectator at any game, exhibition, contest or fight in which an animal or poultry is used for the purpose of fighting, injuring, killing, maiming or destroying any other animal or poultry. Every person violating subparagraph 101.A.14 shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City Jail for a period of not exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00) excluding costs, fees and assessments, or both such fine and imprisonment.

**15.** Harbor, keep or possess in any one household more than a combined total of five (5) dogs and cats over the age of four (4) months. It is specifically provided a household

may keep or possess more dogs and/or cats than permitted by this subparagraph so long as the household or an individual in the household has secured a Hobbyist Exemption permit as required by this title.

**16.** Harbor, keep or possess domestic honeybees otherwise permitted by this chapter unless the bees are maintained as follows:

**a.** No more than four (4) hives shall be maintained for each one-quarter (¼) acre or less of lot size on any lot; and

**b.** No hive shall be maintained within twenty (20) feet of any lot line of the lot on which said hive is located; and

**c.** Between each hive and the neighboring lot in the direction of the hive entrance the hive owner shall maintain a hedge or a screening fence of at least six (6) feet in height, to be located within twenty (20) feet of such lot line, and to extend the entire length of such lot line; and

**d.** A supply of clean water must be furnished within twenty (20) feet of each hive between March 1 and October 31 of each year; and

**e.** Hive owners shall inspect each hive not less than four (4) times between March 1 and October 31 of each year. A written record including the date of each such inspection shall be maintained by the owner and shall be made available to WIN upon request.

**f.** Any commercial use of the property on which bees are maintained shall be conducted in accordance with Title 42.

**17.** Violate any of the provisions of Section 110 of this title.

**18.** Harbor, keep or possess a dog or cat over the age of six (6) months, other than a dog owned and used by the Police Department of the City as a police dog, which has not been spayed or neutered, unless the owner has secured a Hobbyist Exemption Permit as required in this title, and has continuously maintained such license. In the event an owner of a dog or cat over the age of six (6) months is unable to produce a current license or license tag for that owner's dog or cat as required by this chapter, a rebuttable presumption is created that the dog or cat has not been spayed or neutered.

**19.** Harbor, keep or possess any animal which, while not confined on the premises of its Owner, does bite, chase, or attack any person or animal without provocation. Provided, this section shall not apply to any police dog while being utilized in the performance of police duties and accompanied by a police officer. Every person violating subparagraph 101.A.19 shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City Jail for a period of not exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00) excluding costs, fees and assessments, or both such fine and imprisonment.

**B.** It further shall be unlawful and an offense under the terms of this chapter for a Releasing Agency within the corporate limits of the City of Tulsa to release for adoption an animal that has not been surgically spayed or neutered, unless the adopting party signs an agreement to have the animal sterilized, and deposits funds with the Releasing Agency to ensure that the adopted animal will be spayed or neutered.

*(Ord. No. 24607, § 3, 4-28-2021)*

## Section 102. Rabies and inoculation.

**A.** It shall be the duty of every resident owning or having in that resident's charge or possession within the corporate limits of the City of Tulsa any dog or cat four (4) months or more of age to cause such dog or cat to be registered with the Director of Finance and pay the license fees herein required; provided, however, that the requirements for a license fee for registration shall not apply to any dog or cat which may follow or be led by any nonresident or traveler through the City while the dog or cat is with its owner or keeper.

**B.** It shall be the further duty of every person owning or having in that person's charge or possession within the corporate limits of the City of Tulsa any dog or cat four (4) months or more of age to cause such dog or cat within thirty (30) days after the dog or cat, reaches the age of four (4) months, to be inoculated as set forth below.

**1.** Inoculation must be by a person licensed to practice veterinary medicine in the state of Oklahoma or other states.

**2.** Inoculation must be with a prophylactic vaccine approved by the United States Department of Agriculture to prevent rabies. Rabies vaccine currently licensed by the United States Department of Agriculture will be recognized in the City of Tulsa for either a one (1) year or a three (3) year immunization period as follows:

**a. Three-year immunity.** Modified live virus Flury strain rabies vaccine or killed strain vaccine, as licensed by the United States Department of Agriculture (USDA), will be recognized for three (3) years in dogs, provided that the dog is at least one (1) year of age at the time of the vaccination; if dogs under one (1) year of age are vaccinated with this type of vaccine, immunity will be recognized for a period of one (1) year; or

**b. One-year immunity.** All other rabies vaccines currently licensed by the United States Department of Agriculture are recognized for a one (1) year period.

**3.** Cats must be inoculated with vaccines specifically for cats. The vaccines must be recognized by the United States Department of Agriculture.

**C.** Thirty (30) days shall be permitted for an owner to secure revaccination of that owner's dog, cat or ferret after the duration of immunity has lapsed.

**D.** Every veterinarian, after vaccinating a dog or cat, for rabies, shall complete in triplicate a computer-generated certificate or a legible certificate furnished by the Director of Finance. Two (2) copies shall be retained by the veterinarian, one (1) as a permanent record and one as an expiration notice, and the third copy shall be retained by the animal owner to be shown to WIN upon request, and to be used to secure the license tag. Such certificate shall include the following information:

**1.** Owner's full name, address, zip code, home telephone number, daytime and/or emergency contact telephone number.

**2.** Breed, date of birth, sex and color or marking of the dog or cat.

**3.** Type of vaccine and duration of immunity.

**4.** Signature of the veterinarian administering the vaccine.

**5.** Name of the animal, if applicable; and

**6.** Permanent ID information, if any; and

**7.** Whether the animal is spayed, neutered or unaltered.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 103. Veterinarian records and reports; reporting animal bites; animal under quarantine; rabies suspected.

**A.** It shall be the duty of every veterinarian practicing in the City of Tulsa to keep a record of every dog or cat vaccinated, which record shall be made available to WIN, the Chief of Police, Director of Finance, or their designated agents at any reasonable time and upon proper demand.

**B.** It shall be the duty of every physician or other medical practitioner to report to WIN or the Chief of Police the names and addresses of persons treated for bites inflicted by animals, together with such information as is pertinent to rabies control. It shall be the duty of any person having the knowledge of an animal bite to notify WIN or the Chief of Police of the incident and to provide such information upon request of the Director of WIN as is pertinent to rabies control.

**C.** It shall be the duty of every veterinarian having an animal quarantined for a biting incident to submit a written report to WIN, in the event the animal shows positive signs of rabies, dies or is disposed of for any reason. The veterinarian shall report to WIN on the tenth day of observation as to the condition of any rabies-suspected animal and when the veterinarian has released any animal quarantined for a biting incident.

**D.** It shall be the duty of every veterinarian to report immediately to WIN the veterinarian's diagnosis of any animal observed by the veterinarian as a rabies suspect.

**E.** WIN shall notify the Director of TCCHD of all animal bites.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 104. License fees.

The annual license fee for each dog or cat shall be recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council. The owner of a dog or cat permanently identified by tattoo or microchip may license the animal for a period of three (3) years upon payment of a license fee recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council. No fee will be required for the registration of a dog that is used as a guide for the blind, used as a guide for the auditory impaired, used as a support service dog for persons with disabilities, or actively involved in law enforcement activities.

Except in cases in which three-year immunization has been performed, licenses for one-year rabies vaccinations shall expire and must be renewed on the last day of the twelfth month from when the rabies vaccination was administered as specified in this chapter. In cases of a three-year immunity, the license shall expire and must be renewed on the last day of the thirty-sixth ($36^{th}$) month as specified in this chapter. No dog or cat may be licensed without a current valid rabies immunization certificate and, unless the owner has secured an Intact Animal exemption permit as required in this chapter, proof of sterilization.

Individuals may remit to the administering veterinarian licensing fees required by this title at the time the dog or cat is vaccinated for rabies; or individuals may obtain a license directly from and pay the required fee directly to the Director of Finance upon demonstra-

tion that the animal has been properly vaccinated against rabies and, unless the Owner has secured an Intact Animal exemption permit as required in this chapter, has been spayed or neutered. There shall be no prorating for partial years.

Veterinarians who voluntarily collect the licensing fee at the time of administering the rabies vaccine shall be required to remit to the Director of Finance on a monthly basis all fees collected, along with a copy of the registration certificate furnished by the Director of Finance for the animals licensed. Veterinarians shall be permitted to keep twenty-five percent (25%) of the licensing fees collected as a handling fee. No special reporting requirements of those clients choosing to license directly with the Director of Finance shall be placed upon the veterinarians.

Animals permanently identified by means of tattoo or microchip implant may be licensed for a three-year period in conjunction with a three-year vaccination for the price of one (1) annual fee, provided that the tattoo number or the microchip code is recorded on the rabies certificate completed by the veterinarian at the time of vaccination.

Upon registration, there shall be delivered to the owner metallic tags, stamped with the license number. Such tags shall at all times be attached to the collar or harness worn by the dog or cat for which the certificate was issued. If such tag is lost or destroyed, the owner shall apply in writing or in person for a new tag by presentation of the applicable registration ticket, accompanied by a fee recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council.

*(Ord. No. 24607, § 3, 4-28-2021)*

**Section 105. Proclamation of rabies.**

If at any time the Director of WIN shall find that there is an epidemic of rabies among the dogs within the City of Tulsa, or any part thereof, then the Director of WIN shall certify that fact to the Mayor and specifically recommend a period, fixing the dates thereof, during which period all dogs in the City of Tulsa shall be confined on the premises of their owners or under leash as herein defined. Upon the receipt by the Mayor of written recommendation from the Director of WIN certifying the existence of any epidemic of rabies, the Mayor shall issue a proclamation, based upon recommendation of the Director of WIN, proclaiming the existence of an epidemic of rabies and fixing the dates and duration of the epidemic, which proclamation shall be published one (1) time in a newspaper of general circulation and printed and published in the City of Tulsa.

During the time of the epidemic, all dogs and cats within the City of Tulsa shall be confined on the premises of the owners or kept under leash as herein defined. The existence of an unusual number of rabid dogs and cats in the City of Tulsa shall be deemed an epidemic of rabies under this chapter, and the finding as to an epidemic of rabies by the Director of WIN shall be *prima facie* evidence of that fact.

*(Ord. No. 24607, § 3, 4-28-2021)*

**Section 106. Rabies suspect.**

**A.** Any rabies-suspected animal shall be securely and separately confined for observation for a period of ten (10) days from the date of the bite. The Owner shall immediately

surrender the rabies-suspected animal to the Director of Animal Welfare, or his or her designee, for confinement and observation at the Tulsa Animal Welfare Center, except in the following circumstances:

**1.** At the discretion of the Owner, the animal may be confined in a veterinary hospital at the Owner's expense, provided that boarding kennels shall not be considered proper confinement facilities. In the event the Owner wishes to have the animal held for observation at a veterinary hospital, the animal will be transported to the veterinary hospital of the Owner's choice (provided the hospital is within the city limits of the City of Tulsa) by a representative of Tulsa Animal Welfare. The veterinarian must regularly examine the biting animal and immediately report any changes in condition of the animal to the Tulsa City-County Health Department and Tulsa Animal Welfare.

**2.** If the animal is currently vaccinated against rabies, the animal has not inflicted a severe injury, and the Owner was not present at the time of the bite, the animal shall be placed in a home quarantine until the end of the ten-day period from inflicting the bite. In the event of a home quarantine, the Owner shall notify a licensed veterinarian and follow all veterinarian care recommendations at the Owner's sole expense and liability. The Owner must regularly examine the biting animal and immediately report any changes in condition of the animal to the Tulsa City-County Health Department and Tulsa Animal Welfare.

**B.** Any person failing to surrender a rabies-suspect animal, except when home quarantine is permitted under Section 106(A)(2), or any person removing the rabies-suspect animal from the city limits of Tulsa, is guilty of an offense, and upon conviction thereof, shall be punished by a fine of not more than One Thousand, Two Hundred Dollars and No Cents ($1,200.00), excluding costs, fees, and assessments, or by imprisonment in the City jail for a period of not more than one hundred eighty (180) days, or both.

**C.** Regardless of where the confinement takes place, the rabies-suspect animal must be examined by a licensed veterinarian on the tenth day. If, upon examination by a veterinarian, the animal has no signs of rabies at the end of the confinement period, it may be released to the Owner or, in case of a stray, it shall be disposed of in accordance with applicable laws. In either event, the veterinarian shall make a written report of the disposition of the animal to the Director of Animal Welfare. At the end of the ten-day observation period, the Director of Animal Welfare shall notify any person bitten by a rabies-suspect animal whether such animal exhibited symptoms or indications of rabies; such notice shall be in the same manner as provided for service of notice under Section 109 of this chapter.

**D.** Any person failing to abide by the home quarantine requirements in this Section, including but not limited to the requirement to have the rabies-suspect animal examined by a licensed veterinarian at the end of the confinement period, shall be guilty of an offense, and upon conviction thereof, shall be punished by a fine of not more than One Thousand, Two Hundred Dollars and No Cents ($1,200.00), excluding costs, fees, and assessments, or by imprisonment in the City jail for a period of not more than one hundred eighty (180) days, or both.

**E.** If within the period of confinement, the animal dies or exhibits symptoms or indications of rabies, it shall be examined by a veterinarian for clinical diagnosis and then properly euthanized by a veterinarian. The head of any rabies-suspected animal

which dies shall be submitted to the State Health Department Laboratory for confirmation of diagnosis. In this event, the Department of City Experience shall immediately notify any person bitten of the diagnosis; such notice shall be in the same manner as provided for service of notice under Section 109 of this chapter.

**F.** Dogs owned and used by the Police Department that bite a person during the course of duty shall be under the supervision of a licensed veterinarian. The type and amount of supervision is left to the professional opinion of the supervising veterinarian who assumes responsibility for the biting animal.

**1.** The dog must be under the control of an authorized agent of the Police Department or the veterinarian at all times during the observation period.

**G.** In the case of a bite inflicted by a non-immunized animal upon the head, face, neck or upper extremities, resulting in deep lacerations or multiple wounds, the Director of Animal Welfare may require immediate euthanasia of the animal in order to perform tests for diagnosis of rabies.

**H.** Any dog or cat which is not effectively immunized against rabies virus encephalitis and is exposed to rabies through a rabid animal shall be euthanized immediately by the veterinarian in charge, an animal welfare officer or a designated agent in a manner which will preserve the head for analysis; or such non-immunized, rabies-exposed dog or cat shall be strictly quarantined and observed in a veterinary hospital for a period of not less than six (6) months, and such animal shall be immunized against rabies at least thirty (30) days prior to release. Expenses for quarantine and immunization shall be borne by the Owner or other person responsible for the animal.

**I.** The Owner of any non-immunized domestic animal other than a dog or cat which has been exposed to a rabid animal shall immediately report with such domestic animal to the Director of Animal Welfare for instruction concerning the disposition of that animal.

**J.** Any effectively immunized domestic animal, dog or cat which is exposed to a rabid animal shall be immediately re-immunized and restrained by leashing and/or confined on the premises of its Owner or in a veterinary hospital for a period of forty-five (45) days.

*(Ord. No. 24607, § 3, 4-28-2021; Ord. No. 25219, § 1, 1-24-2024)*

## Section 107. Dangerous animal.

**A.** It shall be the duty of WIN and the Chief of Police to investigate any proper claim that an animal is dangerous within the meaning of this chapter. Should the investigating official determine that a dangerous animal poses an immediate threat to the public health or safety, that official shall immediately seize and impound the animal, or otherwise seek an order from the court that the animal be impounded. The official shall also refer the matter to the City Attorney for approval of a verified complaint requesting a finding by the court that the impounded animal is dangerous and aid in the proceedings instituted in the Municipal Criminal Court against any person for harboring a dangerous animal.

**B.** If the court shall fail to find, upon a preponderance of the evidence presented in an evidentiary hearing, that the animal seized and impounded is a dangerous animal,

then the court shall order WIN to return the animal to its Owner. If such animal is found by the court to be a dangerous animal, the court shall order WIN to euthanize the animal.

**C.** At the option of the Owner, but subject to the approval of WIN, an animal impounded pursuant to this section may be confined in a private kennel or veterinary clinic during the pendency of the dangerous animal action. The operators of the facility shall then assume full liability for the confinement and maintenance of such animal and shall not release it without first being authorized by WIN or the court. All fees for such impoundment shall be the responsibility of the Owner. In no event shall the City of Tulsa be liable for costs or fees charged by the private facility. Further, the City may assess to the Owner the cost of transporting the animal to the privately-operated impoundment facility.

*(Ord. No. 24607, § 3, 4-28-2021)*

**Section 108. Animal nuisance.**

**A.** It shall be the duty of WIN and the Chief of Police to investigate any proper claim that an animal is a nuisance within the meaning of this chapter. Should the investigating official determine that a nuisance exists and it is necessary to abate the nuisance or should the official have reason to believe a threat to public health or safety exists, that official shall refer the matter to the City Attorney for approval of a verified complaint and an order from the court that the animal be impounded. Following the filing of such verified complaint and an evidentiary hearing, if the court finds upon a preponderance of the evidence that a nuisance existed, the court may order the animal euthanized as in the case of a dangerous animal. In lieu of ordering the animal euthanized, the court shall, at the request of the animal Owner, require that the Owner abate and prevent such nuisance and give a good and sufficient bond within three (3) days, in an amount not greater than Five Hundred Dollars ($500.00), satisfactory for a period not exceeding one (1) year. In this event, the court may order the return of such animal to the Owner. However, during the pendency of such bond, upon a finding of the court that the nuisance has recurred, the court shall order the animal be impounded, euthanized and the Owner's bond be forfeited. If the court shall find that no nuisance existed, the court shall order the animal be surrendered to the Owner.

**B.** At the option of the Owner, but subject to the approval of WIN, an animal impounded pursuant to this section may be confined in a private kennel or veterinary clinic during the pendency of the nuisance action. The operators of the facility shall then assume full liability for the confinement and maintenance of such animal and shall not release it without first being authorized by WIN or the court. All fees for such impoundment shall be the responsibility of the Owner. In no event shall the City of Tulsa be liable for costs or fees charged by the private facility. Further, the City may assess to the Owner the cost of transporting the animal to the privately-operated impoundment facility.

**C.** Nothing in this section shall be construed to permit the release from impoundment of any animal not properly licensed and vaccinated, or a threat to public health or safety.

*(Ord. No. 24607, § 3, 4-28-2021)*

**Section 109. Notice of impoundment; reclaiming; disposal of animals; and fees.**

**A.** *Notice of impoundment.* WIN is authorized to impound any animal which is in violation of any section of this chapter or which may be donated to the Tulsa Animal Welfare

Center for disposition. When the Owner of the animal is known, they shall be notified of the impoundment. Notice shall be attempted by telephone within a forty-eight-hour period from the initiation of the impoundment. Without regard to the success in giving notice by telephone, a certified letter is to be mailed to the Owner's or keeper's address within the same forty-eight-hour period. Licensing records, including the Owner's name, address, telephone number and daytime telephone number or an emergency telephone number shall be readily accessible to the official responsible for such notifications.

**B. Time for reclaiming animals.** An animal may be reclaimed within the following times: Within five (5) days from the initial impoundment, if the animal is licensed and the Owner is readily identifiable, or three (3) days from notice of impoundment, whichever is longer. If the Owner is not known, the animal shall be held for three (3) days before it becomes the property of the City of Tulsa and is disposed of as provided herein.

**C. Requirements for reclaiming animals.** An animal may be reclaimed by meeting the following requirements:

**1.** If an animal is not licensed and this chapter requires licensing, after the payment of the licensing fees and penalties as set forth herein and satisfying all other requirements of this section;

**2.** If the animal is licensed, or if a license is not required by this chapter, by paying the impoundment fees and satisfying all other requirements as set forth herein; and

**3.** If the animal is not spayed or neutered and this chapter requires spaying or neutering, after signing an agreement to spay or neuter the animal within sixty (60) days or forfeit a deposit in an amount recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council, payable at the time of reclaiming; and

**4.** If the animal must be vaccinated for rabies before release, the person reclaiming the animal shall pay all fees for the vaccination.

**D. Fees.** Fees to reclaim an animal shall be recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council.

No animal shall be released without the payment of the fees and charges listed above and without satisfactory proof of ownership. The payment of these fees and charges shall not constitute a defense to any prosecution that may be instituted for the violations of the terms of this title.

Provided, however, no fees shall be charged for any licensed animal surrendered to the Owner on acquittal or dismissal of charges of keeping, possessing, owning or harboring such animal as a nuisance or as a dangerous animal.

Provided, further, no person shall be entitled to reclaim any animal found to be a nuisance, rabid, rabies suspected, or dangerous, except as provided herein.

**E. Animals not reclaimed within time limits.** Animals not reclaimed within the time limits set forth in this section shall, at the option of WIN, be euthanized or disposed of in one of the following manners.

**1. Animals reclaimed by Owners.** Animals may be reclaimed by the Owner upon payment of all fees and charges established by this section.

2. **Adoption of dogs and cats.** Dogs and cats may be released for adoption, provided that the adopting party pays required fees and charges as set forth herein, and further provided that:
   a. There shall be established at the City Animal Welfare Center an on-site facility for the purpose of spaying and neutering all animals adopted through the Center which have not previously been surgically spayed or neutered; this facility will be staffed by a licensed veterinarian and be under WIN; if the City of Tulsa staff does not include a licensed veterinarian and if WIN determines it is not feasible to staff the facility through donated service, a bid process shall be used to select veterinary professionals to perform the on-site sterilizations of the adopted animals;
   b. If the licensed veterinarian described in subparagraph 109.E.2.a. or, in the absence of such veterinarian, WIN determines that the animal cannot be sterilized at the time of adoption, the adopting party shall sign an agreement to have the animal sterilized pursuant to the Dog and Cat Sterilization Act, 4 O.S. 2011, Sections 499, *et seq.*, or as the same may be amended, and shall deposit with WIN an amount recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council, to ensure that the animal will be sterilized. The adopting party shall provide the Animal Welfare Center documentation from a licensed veterinarian of the animal's sterilization within one hundred twenty (120) days of adoption.
3. **Fees and charges.** Before an animal may be adopted, all required fees and charges must be paid according to a schedule recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council, in addition to the following costs:

| | |
|---|---|
| Rabies vaccination, required for all dogs and cats over four (4) months of age | Actual Reasonable Cost |
| Rabies vaccination and sterilization, if provided by the City of Tulsa | Actual Reasonable Cost |

   WIN, subject to City Council approval, shall establish policies and implement administration procedures for either the refund of adoption fees or an exchange for adopted animals which are returned.
4. **Animals wild by nature.** All animals wild by nature and not authorized by subparagraph 101.A.8 of this title shall be euthanized or donated to a zoo or a museum, except that, at the discretion of WIN, certain animals wild by nature which are native to Oklahoma and which in their natural habitats do not present a danger to human beings or to property may be released to their natural habitats.
5. **Public sale.** At the option of WIN, animals, other than dogs, cats, puppies, kittens and animals wild by nature, may be sold at a public sale pursuant to procedures set forth in this section, or donated to a zoo or museum.
6. **Release to veterinarian.** WIN may, at its discretion, release animals to a licensed veterinarian if the animal is in need of veterinary care. The veterinarian must agree in writing to accept responsibility for the animal and give the animal proper veterinary care in lieu of paying fees to receive the animal. If the animal is a dog or cat, the veterinarian must sterilize the animal before releasing the animal to any subsequent Owner.

7. **Release to Animal Welfare Organizations.** WIN may, at its discretion, release animals to a Rescue Organization or nonprofit animal welfare organization incorporated as such in the United States. If an animal so released is a dog or cat, an authorized representative of the organization must agree in writing to have the animal sterilized before releasing it to a subsequent Owner and provide the Animal Welfare Center documentation from a licensed veterinarian of the animal's sterilization within one hundred twenty (120) days of the animal's release.
8. **Release for experiments or research.** No animal shall be released for experimental or research purposes.

**F. Procedures for public sale of animals.** If an animal is to be sold at public sale, WIN shall give ten (10) days' notice of the time and place of such sale by causing notices to be posted in at least three (3) public places in the City; by publishing in a newspaper of record in the City; by serving a copy of such notice upon the Owner, if known; and by providing such other notice as the Mayor may direct. The notices shall be substantially in the following form:

"The following animals (describing them), having been taken up and impounded in the Animal Shelter of the City of Tulsa for violations of the provisions of the ordinances of the City of Tulsa, will, unless reclaimed within ten (10) days from this date, be sold for cash to the highest bidder at public auction at the Animal Shelter at _____o'clock, _____.m. on the _____ day of_____, A.D._____ (giving hour and date of sale).

Dated this _____ day of_____, A.D.

/s/_____
Director of WIN
City of Tulsa, Oklahoma"

The Owner may reclaim any animal prior to the sale by payment of all fees and charges set forth in this section.

**G. Fees for treatment of sick animals.** In addition to all other fees, the Owner of a sick or injured animal impounded by WIN shall reimburse the City of Tulsa or a veterinarian for any fees incurred in treating the animal.

**H. Destruction of animals.** WIN may euthanize any animal if it has been surrendered to the Animal Welfare Center or if the animal is so sick or injured that its cure is considered by WIN to be impracticable or if death is imminent, and in either of such events, such destruction may be done immediately without notice or any waiting period. Anyone surrendering an animal shall provide proof of that person's identity before the animal will be accepted.

**I. Disposal fee.** For Each animal disposed of by WIN, a disposal fee recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council may be charged.

*(Ord. No. 24607, § 3, 4-28-2021)*

## Section 110. Commercial animal establishments.

**A.** Each commercial animal establishment, of any type, shall keep and maintain its animals and all pens, cages, tanks or other holding facilities in which animals are kept

in such a manner as to prevent a nuisance or health hazard to humans and to avoid injury and minimize illness to such animals. All holding areas shall be disinfected periodically to reduce disease pathogens.

**B.** All animals housed in any commercial animal establishment shall have a wholesome, adequate diet and potable water consistent with the requirements and habits of the animal's species, type, size, age and condition and available shelter with adequate ventilation and protection from the elements. Such animal showing evidence of disease or injury shall be immediately isolated and shall receive treatment by a licensed veterinarian or euthanized by same. Euthanasia of any dog, cat or domestic animal shall be performed by a licensed veterinarian. The reason and the procedure used for such euthanasia shall be documented. Upon receipt of a signed report or complaint alleging animal abuse or other conditions not in compliance with this section at any commercial animal establishment, an investigation shall be made by the City's Animal Welfare Authority. Its findings shall be documented, and appropriate action taken.

**C. Commercial animal establishments (Type B).** No registration papers for animals not on the premises may be kept on the premises, except those when attached to a contract of sale. Vaccination and other medical care of such animals shall be current, and the purchaser shall receive complete health records. The establishment shall provide written documentation of each animal's origin, including the breeder's name and the state where the animal was born, to the purchaser at the time of sale. All operators of a Type B commercial animal establishment shall apply to the Director of Finance for a permit to operate such establishment in the City of Tulsa. No Type B commercial animal establishment shall sell animals in the City without the permit. The Director of Finance shall perform a background check encompassing the past ten (10) years, to ascertain if the applicant has been convicted of animal abuse or cruelty charges in that time. Conviction of animal abuse or cruelty shall be grounds for denial or revocation of a commercial animal establishment permit. The permit fee shall be recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council. An application processing fee recommended by the Animal Welfare Commission, subject to the discretion approval of the City Council shall be assessed for the first application.

*(Ord. No. 24607, § 3, 4-28-2021)*

## Section 111. Issuance of citations; collection of fines.

**A. Municipal Court Clerk to assist.** The Municipal Court Clerk of the City of Tulsa is hereby authorized to work in conjunction with WIN and the Chief of Police and to assist the Municipal Criminal Court in the clerical work involved in the expedient disposition of violations.

**B. Penalties established by judge.** The judge of the Municipal Criminal Court shall designate the penalties to be paid for the violations of this chapter which may be satisfied by payment at the Office of the Municipal Court Clerk, provided that penalties are within the limits herein established for such violations.

**C. Citations.** There shall be authorized by the Municipal Judge and provided by the Municipal Court Clerk suitable serially-numbered forms for the notification of

violators to appear and answer charges for violating this title, which forms shall be issued and receipted by the Clerk of the Municipal Criminal Court or by duly authorized persons acting for the Clerk.

Upon the commission of any violation of this title, WIN shall take the violator's name, address, and place of employment and issue to the violator in writing a notice on the form authorized by the Municipal Judge and provided by the Clerk of Municipal Criminal Court, commanding the violator to answer the charge against them within ten (10) days at the place specified in the notice. The notice shall contain a description of the animal found in violation and shall specify the fine for the violation in accordance with the order issued by the Judge of the Municipal Criminal Court. The issuance of a citation may be in addition to or in lieu of impoundment of the offending animal.

**D. Failure to answer.** Failure to give the required information or answer the notice provided for in this section shall authorize the Chief of Police to immediately place the violator under arrest and in custody. Whenever WIN or the Chief of Police deems it necessary, they may follow the procedure set out herein.

*(Ord. No. 24607, § 3, 4-28-2021)*

## Section 112. Police dogs and dogs trained to guide the blind and hearing impaired and support service dogs for people with disabilities.

If the dog is vaccinated as herein provided, it shall be lawful for any dog trained to guide any blind or hearing-impaired person, or for any support service dog for people with disabilities, or for any police dog owned and used by the Police Department of the City as a police dog to be admitted to any public place or vehicle when actually accompanying a blind or hearing-impaired person or person with a disability, or when utilized as a police dog, when the blind, hearing-impaired or disabled person, or the officer accompanying the dog might have the lawful right to entry.

*(Ord. No. 24607, § 3, 4-28-2021)*

## Section 113. Outside agencies and nonresidents; euthanasia services prohibited—Mayoral exception.

**A.** Outside agency shall be defined as:

**1.** Any municipality or other political subdivision of the state of Oklahoma.

**2.** Any animal welfare service (shelter, rescue organization, etc.), public or private, which operates solely outside the corporate limits of the City of Tulsa.

**B.** The City's Animal Welfare Center may not accept from a nonresident nor from any outside agency any animal for the purpose of euthanasia unless upon the express, written authorization of the Mayor or Mayor Pro Tem.

**1.** If authorized as provided in Subsection B hereof, a fee per animal, recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council, shall be charged a nonresident or an outside agency for euthanasia, unless otherwise established by contract.

**2.** In negotiating any contract relating to a charge for euthanizing animals from outside agencies or nonresidents, consideration shall be given to the above-stated fee, but in no event shall the fee established by contract be lower than the City's actual direct cost for euthanizing the animal.

*(Ord. No. 24607, § 3, 4-28-2021)*

## Section 114. Records; funds.

It shall be the duty of WIN to maintain records at the Animal Welfare Center containing the description and date of the seizure of all animals taken under the provisions of this title, the place where impounded, the name of the Owner if known, and if unknown, the date of the notice given, and all subsequent proceedings relating to the sale of the animal and the amount realized. All fees collected by WIN and the proceeds of all sales shall be paid to the Director of Finance. Any amount in excess of the fees due shall be held subject to the claim of the person entitled to them who may apply in writing to the Director of Finance within six (6) months. If such excess is unclaimed after six (6) months, it shall be paid into the General Fund.

*(Ord. No. 24607, § 3, 4-28-2021)*

## Section 115. Unlawful removal.

Every person who shall take out or attempt to take out of the Animal Shelter or any Animal Shelter property any animals located therein without paying the fees prescribed by this chapter shall be deemed guilty of an offense.

*(Ord. No. 24607, § 3, 4-28-2021)*

## Section 116. Entering property.

**A.** WIN may impound animals which are deemed to be at large within the meaning of this title, and which are found off the immediate premises of their Owners.

**B.** In multi-family residential complexes, when the property manager or agent grants access to an Animal Welfare Officer or Tulsa Police Officer, at large animals may be removed from common areas, including but is not limited to playgrounds, parking lots and walkways.

**C. Impoundment by judicial order.**

**1.** If an animal subject to impoundment has not been impounded, a Judge of the Municipal Court, upon the presentment of a complaint verified by an Animal Welfare Officer or any law enforcement officer, shall determine whether probable cause exists to believe a violation of the provisions of this title has occurred.

**2.** If the Municipal Judge determines that probable cause exists, the Judge may issue an order of the Municipal Court describing the animal with particularity, setting forth the approximate date, time, place and actions giving rise to the alleged violation of the provisions of this title, and specifying with particularity the location of the animal in the City of Tulsa.

**3.** The Judge may direct the Animal Welfare Officer or law enforcement officer to serve a certified copy of the order upon a person age eighteen (18) or older who is a resident at the property where such animal is located. Any such person, upon the service of a certified copy of the court's order, shall immediately deliver the animal to the Animal Welfare Officer or law enforcement officer.

**4.** A copy of the order shall be posted at the property in a manner easily discovered by the Owner, occupant, or tenant and a copy shall be sent to the Owner, occupant, or tenant by certified mail, return receipt requested.

*(Ord. No. 24607, § 3, 4-28-2021)*

## Section 117. Exemption permits.

**Exemption Permits.** The Director of Finance shall maintain a register of qualified Exemption Permit holders. Applications shall be submitted in writing to the Director of Finance, who shall notify the applicant in writing of the acceptance or denial within thirty (30) days of the application date. Upon approval of any Exemption Permit, the Director of Finance or the Finance Director's designee shall issue an Exemption Permit only upon payment of all required fees, recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council. If an Exemption Permit is approved, the holder of the permit shall be deemed to consent to and give permission for an Animal Welfare Officer to enter the property at any reasonable time after the holder of an Exemption Permit is given written notice by certified mail.

If an Exemption Permit is denied, the applicant shall be notified in writing of the reason(s) for the denial. Upon receipt of a signed report or complaint against an Exemption Permit holder alleging animal abuse or other conditions not in compliance with this title, an investigation shall be made by Tulsa's Animal Welfare Authority.

**A. Hobbyist Exemption Permit.** The Director of Finance shall maintain a register of qualified Hobbyist Exemption Permit holders. Application shall be submitted in writing to the Director of Finance, who shall notify the applicant of the acceptance or denial within thirty (30) days of the application date. If the exemption permit is denied, the applicant shall be notified of the reason for the denial. A fee recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council will be charged for the first animal with an additional fee for each subsequent animal.

The holder of a Hobbyist Exemption Permit will be permitted to own and keep, at a single-family dwelling, a number of dogs and cats that would otherwise constitute an offense under paragraph 101.A.15. of this chapter; provided, that a permit holder other than an Owner of hunting dogs shall allow outside the residence at any one time no more than the number of cats and dogs permitted by paragraph 101.A.15. A holder of a Hobbyist Exemption Permit shall not be required to comply with paragraph 101.A.18. of this chapter.

**1. Permit qualifications.** Any individual or organization, not a commercial breeder, that:

**a.** Is actively involved in any nationally recognized, organized animal sport or hobby for a period of at least one (1) year prior to making application for a hobbyist exemption; or

**b.** A one (1) year temporary Exemption Permit may be issued for a fee while an animal is in training for approved activities;

**c.** Participates in field trials, owns nationally recognized breeds used specifically as hunting dogs, participates in hunting activities, and has held and continues to hold a current, valid state of Oklahoma hunting license for a period of at least one (1) year prior to making application for a hobbyist exemption;

**d.** Is training animals to be actively involved in one of the activities referenced in subparagraphs 117.A.1.a. and 117.A.1.b.; and

**e.** Has not been convicted in the past ten (10) years of any offense related to: illegal commercial breeding, brokering, dog fighting, a nuisance offense under

this chapter, a cruelty offense or a neglect offense under applicable law, a violation of the Oklahoma Wildlife Conservation Code or regulations, or two (2) or more violations of paragraph 101.A.2. of this chapter prohibiting at-large dogs and cats shall qualify for a Hobbyist Exemption Permit.

2. **Application documents.** An applicant for a hobbyist exemption permit shall submit to the Director of Finance one (1) of the following:

   **a.** Certificates of completion of at least two (2) training classes, dated within the twelve (12) months immediately preceding the date of application; or

   **b.** A show catalog including the applicant's name as an exhibitor dated within the twelve (12) months immediately preceding the date of application, or a medical statement for Owner or animal restricting participation, dated within the twelve (12) months immediately preceding the date of application; or

   **c.** Proof of Military deployment for renewal only of a previously issued permit;

   **d.** A certificate of title(s), not a certificate of registration, from a national registry for a dog or cat owned by the applicant; or

   **e.** For an Owner of hunting dogs, proof that the Owner holds or is exempt from holding a current and valid state of Oklahoma hunting license.

   Any activity involving the fighting or physical contact between animals or any activity otherwise illegal or dangerous to animals shall not be considered an organized sport or hobby for purposes of this section.

3. **Renewal.** A permit holder must reapply for the exemption permit every year. To make application, the permit holder must furnish to the Director of Finance one (1) or more of the items listed in Subsection 117.C. that are dated within the previous year.

4. **Revocation.** A permit holder shall have the holder's Hobbyist Exemption Permit or the right to serve as a rescuer under an organization's permit revoked if the holder has been convicted of an offense of: illegal commercial breeding; brokering; dog fighting; a nuisance under this chapter; cruelty or neglect under applicable law; violation of the Oklahoma Wildlife Conservation Code or regulations; or two (2) or more violations of paragraph 101.A.2. of this chapter prohibiting at-large dogs and cats.

**B. Animal count exemption permit.** A holder of an Animal Count Exemption permit will be permitted to own and keep, at a single-family dwelling, a number of dogs and cats in excess of the number that would otherwise constitute an offense under subparagraph 101.A.15. of this title; provided that the maximum number of dogs and cats allowed under the Animal Count Exemption permit shall not exceed a total of ten (10) animals per one (1) acre (forty-three thousand five hundred sixty (43,560) square feet) of land including the space covered by the single-family dwelling. Holders of an Animal Count Exemption Permit shall be subject to requirements imposed under subparagraph 101.A.18 of this title.

An Animal Count Exemption permit is only for the household listed on the permit and the permit holder shall not allow more than the number of cats and dogs permitted by subparagraph 101.A.15. outside the residence at any one time.

A fee recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council will be charged for the first animal with an additional fee, recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council for each subsequent animal.

1. **Permit qualifications.** An individual, not a commercial breeder, who:

   **a.** Except as provided in subparagraph 117(A)(2)(c), takes on the care of a cat or dog owned by an immediate family member who is unable to care for the animal because of military deployment, admission to a facility that does not permit animals (e.g., jail, nursing home), physical or mental illness or infirmity, or has died, and

   **b.** Has not been convicted in the past ten (10) years of any offense related to illegal commercial breeding, dog fighting, a nuisance offense under this title, a cruelty offense or a neglect offense under applicable law, a violation of the Oklahoma Wildlife Conservation Code or regulations, or two (2) or more violations of subparagraph 101A.2. of this title, or two (2) or more violations of Title 27, Chapter 14 of the Tulsa Revised Ordinances governing Disturbing the Peace.

2. **Application Documents.** An applicant for an Animal Count Exemption permit shall submit to the Director of Finance the Exemption Permit application form, the name(s), descriptions and photo(s) of each animal at the residence for which the application is being made, and for the immediate family member exemption under subparagraph 117.A.1.c, copies of military deployment orders, official record of incarceration, or death certificate. For mental or physical illness or infirmity exemption under subparagraph 117.B.1.a, a letter from the family member's physician or case worker stating why the family member is no longer able to care for the animal. The letter shall be signed by a physician or case worker.

**C. Intact animal exemption permit.** A holder of an Intact Animal Exemption permit may be permitted to own and keep at a single-family dwelling dogs and cats that have not been spayed or neutered but shall not be allowed to own or keep more than a combined total of five (5) dogs and cats as prohibited by subparagraph 101.A.15. This exemption shall not permit breeding.

A fee recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council will be charged for the first animal and for each subsequent animal.

1. **Permit qualifications.** An individual, not a commercial breeder, who:

   **a.** Has a veterinarian statement for a medical exemption related to the health of the dog or cat dated within the previous six (6) months; and

   **b.** Has not been convicted in the past ten (10) years of any offense related to illegal commercial breeding, dog fighting, a nuisance offense under this title, a cruelty offense or a neglect offense under applicable law, a violation of the Oklahoma Wildlife Conservation Code or regulations, or two (2) or more violations of subparagraph 101A.2. of this chapter prohibiting at-large dogs and cats, or two (2) or more violations of Title 27 Chapter 14 of the Tulsa Revised Ordinances governing disturbing the peace.

2. **Application documents.** An applicant for an Intact Animal Exemption permit shall submit to the Director of Finance a statement from an Oklahoma board certified veterinarian stating the nature of the health issue as it relates to the dog or cat, the name(s) and no less than photo(s), one front view, and one for each side view, of each animal at the residence for which the application is being made.
3. **Renewal.** A permit holder must reapply for the exemption permit every year for any ongoing health issue. To make application, the permit holder must furnish to the Director of Finance the items listed in Subsection 117.C.2 that are dated within the previous six (6) months.

**D. Animal rescuer permit.** An Animal Rescuer Permit may be granted to a non-profit animal welfare organization. To qualify to receive an Animal Rescuer permit, a person must be an authorized rescuer or foster home for a recognized, non-profit animal welfare organization.

A holder of an Animal Rescuer permit may be permitted to own and keep, at a single family dwelling, more than a combined total of five (5) dogs and cats as prohibited by subparagraph 101.A.15, provided the maximum number of dogs and cats allowed under the Animal Rescuer exemption permit shall not exceed a combined total of ten (10) dogs or cats over the age of six (6) months per one (1) acre (forty-three thousand five hundred sixty (43,560) square feet) of land including the space covered by the single family dwelling.

A holder of an Animal Rescuer permit may be permitted to own and keep Intact Animals at a single-family residence. However, an individual rescuer must comply with subparagraphs 101.A.15 and 101.A.18. as to those dogs and cats owned by the rescuer on a permanent basis.

A fee recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council will be charged for each Animal Rescuer permit.

1. **Permit qualifications.** An organization, not a commercial breeder, that is incorporated as a non-profit organization and utilizes private homes to care for unowned animals that are available for adoption.
2. **Application documents.** An applicant for an Animal Rescuer permit shall submit to the WIN/Animal Welfare Center the completed Animal Rescuer permit application and the following:
   - **a.** Copy of the organization's Articles of Incorporation signed by the Secretary of State;
   - **b.** List of the organization's Board of Directors;
   - **c.** Proof that animals in their care are being presented to the public for adoption;
   - **d.** Letter of recommendation from a licensed veterinarian with whom the organization has a professional relationship; and
   - **e.** List with the name(s) and address(s) of each residence which houses and cares for animals in its program. This list shall be updated quarterly and provided to WIN.
3. **Limitations.** An Animal Rescuer may harbor dogs and cats in accordance with Section 117. Provided, however, that cats and dogs may be kept or harbored for no longer than one hundred twenty (120) days each while the Animal Rescuer

attempts to locate the animal's home or a new home. If an Animal Rescuer needs to keep or harbor an animal for longer than one hundred twenty (120) days because of an animal's medical condition or behavior, the Animal Rescuer shall so notify the Director of WIN of the need for an extension.

4. **Revocation.** An Animal Rescue permit holder shall have that holder's Exemption Permit or the right to serve as an Animal Rescuer under an organization's Exemption Permit revoked if the holder has been convicted of: illegal commercial breeding; dog fighting; a nuisance under this chapter; cruelty or neglect under applicable law; violating the Oklahoma Wildlife Conservation Code or regulations; or two (2) or more violations of subparagraph 101A.2. of this title, or two (2) or more violations of Title 27, Chapter 14 of the Tulsa Revised Ordinances governing disturbing the peace.

**E. Renewal.** A permit holder must reapply for the exemption permit every year. The annual fee for each renewal permit shall be the same as the original permit. To make application, the permit holder must furnish to the Director of Finance one (1) or more of the items listed in subparagraphs 117.A.l.b or 117A.2.b. which are dated within the twelve (12) months immediately preceding the date of the application.

**F. Inspections.** Any holder of any Exemption Permit shall be subject to inspection, consistent with Subsection 117(A), at any reasonable time by an Animal Welfare Officer to determine compliance with the provisions of this title. It shall be unlawful and an offense, and grounds for suspension or revocation of the permit, for any person to refuse to allow such inspections.

*(Ord. No. 24607, § 3, 4-28-2021)*

## Section 118. Penalty.

Unless otherwise provided, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. No. 24607, § 3, 4-28-2021)*

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## CHAPTER 2. AGRICULTURAL ANIMALS

Section 200. Agricultural animals—Cattle, goats, sheep, hogs, horses, poultry and rabbits.
Section 201. Pigeons and doves.
Section 202. Keeping of miniature pigs as pets.
Section 203. Offense.
Section 204. Animals running at large.
Section 205. Penalty.

### Section 200. Agricultural animals—Cattle, goats, sheep, hogs, horses, poultry and rabbits.

It shall be unlawful and an offense for any person to keep, maintain or permit any cattle, goats, sheep, hogs, horses, poultry, rabbits or any miniature or dwarf variety of agricultural animal upon any property or premises within the corporate limits of the City of Tulsa, except under the supervision of the City of Tulsa's Animal Welfare or as otherwise provided by law. The keeping of agricultural animals, including miniature or dwarf varieties, in violation of the terms of this section is hereby declared to be a nuisance against the public health of the City of Tulsa and such nuisance shall be subject to abatement as provided by law.

**A.** Cattle shall be kept in areas zoned for agriculture (AG) use. Cattle must be kept in a pen, lot or enclosure that is maintained in sanitary condition not offensive or dangerous to the public. The pen, lot or enclosure must provide an area of at least one (1) acre (forty-three thousand five hundred sixty (43,560) square feet)) for each animal kept therein, including the space covered by a barn, but excluding any residential building and its adjacent yard.

**B.** Horses shall be kept in areas zoned for agriculture (AG), or agricultural residential (AG-R) use, subject to the following conditions:

**1.** The enclosure in which such animal is kept shall be maintained in a sanitary condition and shall not be offensive or dangerous to the public health;

**2.** The enclosure where such animal is kept shall not be less than one (1) acre (forty-three thousand five hundred sixty (43,560) square feet) in area for each such animal maintained, including the space covered by a barn, but excluding any residential building and its adjacent yard;

**3.** The enclosure where such animal is kept shall not be, at its nearest point, closer than fifty (50) feet to any building used or occupied for human habitation, and the barn shall not be closer than seventy-five (75) feet, at its nearest point, to any building used or occupied for human habitation;

**4.** The enclosure where such an animal is kept fenced shall be maintained in good repair;

**5.** Horses may be kept on properties not zoned for agriculture (AG) or agricultural residential (AG-R) use, provided that:

**a.** Immediately prior to effective date of this subsection, the horse(s) were kept on the property, and

**b.** The horse(s) are registered with WIN, or the Owner can show proof of Ownership at the time of effective date of this subsection.

**C.** Poultry kept in areas zoned for agriculture (AG) must be in pens or buildings located at least one hundred (100) feet from an adjoining property line.

**D.** Poultry kept in areas not zoned for agriculture shall not exceed six (6) adults and fourteen (14) chicks under the age of eight (8) weeks, and must be kept under the following conditions:

**1.** The fowl must be kept in a building which at its nearest point is no closer than fifty (50) feet to any adjoining residence;

**2.** The floors of such building shall be of easily cleanable construction, and shall be maintained in a sanitary condition not offensive or dangerous to the public health by routinely cleaning and properly disposing of the droppings; and

**3.** The outside openings of the building shall be screened to prevent the spread of disease by flies and vermin.

**E.** Rabbits.

**1.** Rabbits kept in areas zoned for agriculture (AG) or agricultural residential (AG-R) use must be in pens or buildings located at least one hundred (100) feet from an adjoining property line.

**2.** Rabbits kept in areas not zoned for agriculture (AG) or agricultural residential (AG-R) shall not exceed six (6) adults and fourteen (14) young under the age of eight (8) weeks and shall be kept under the following minimum standards:

**a.** The rabbits must be kept in a building which at its nearest point is no closer than fifty (50) feet to any adjoining residence;

**b.** The floors of such building shall be of easily cleanable construction, and shall be maintained in a sanitary condition not offensive or dangerous to the public health by routinely cleaning and properly disposing of the droppings; and

**c.** The outside openings of the building shall be screened to prevent the spread of disease by flies and vermin.

**F.** Except as otherwise set forth in this Section 200, agricultural animals may be kept only in areas zoned for agriculture (AG). The enclosure where such an animal is kept fenced shall be maintained in good repair.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 201. Pigeons and doves.

**A.** Housing shall be sized to allow one (1) square foot of floor space and a minimum of one (1) cubic foot of volume per animal housed with a maximum of twenty-five (25) birds allowed.

**B.** The structure shall not be located nearer than fifty (50) feet from any adjoining residence.

**C.** Pigeons shall be confined to the loft except for limited periods for exercise. At no time shall pigeons be allowed to perch on property other than that on which they are maintained pursuant to this chapter.

**D. Racing pigeons exemption permit.**

**1. Racing pigeons exemption permit.** The Director of Finance shall maintain a register of qualified racing pigeon exemption permit holders and shall make this register available to WIN and the Chief of Police and the Director of the Tulsa

City-County Health Department. Application shall be submitted in writing to the Director of Finance, who shall notify the applicant of the acceptance or denial within thirty (30) days of the application date. If the exemption permit is denied, the applicant shall be notified of the reason for denial. A fee recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council shall be charged for the initial permit. Each subsequent renewal shall be charged a fee recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council.

A holder of a racing pigeons exemption permit will be permitted to own and keep a maximum of two hundred (200) racing pigeons on the holder's property provided the Owner meets all other provisions and conditions imposed by law. A racing pigeons exemption permit holder shall not be permitted to own and keep or house any other pigeons or doves on the holder's property.

A conviction for a violation of this Section 201 or noncompliance with the provisions of the racing pigeons exemption permit shall be grounds for a denial of an application for a racing pigeons exemption permit.

2. **Racing pigeons defined.** A racing pigeon (also, commonly known as Racing Homer, Homing Pigeon or Carrier Pigeon) means a pigeon which, through selective past breeding, has developed the distinctive physical and mental characteristics as to enable it to return to its home after having been released a considerable distance therefrom, and which is accepted as such by the American racing pigeon Union, Inc., or the International Federation of American Homing Pigeon Fanciers, Inc. Racing pigeons shall be banded and registered with one of the national pigeon associations/registries identified above.
3. **Application documents.** An applicant for a racing pigeons exemption permit shall submit to the Director of Finance:
   - **a.** A full and complete application using the form supplied by the Director of Finance;
   - **b.** Appropriate certificates and documentation evidencing the racing pigeons have been banded and registered with the American racing pigeon Union, Inc., or the International Federation of American Homing Pigeon Fanciers, Inc.;
   - **c.** Appropriate certificates and documentation evidencing the applicant's membership in a local racing pigeons club chartered by either the American racing pigeon Union, Inc., or the International Federation of American Homing Pigeon Fanciers, Inc.; and
   - **d.** Any required application fees.
4. **Renewal.** A racing pigeons exemption permit holder must reapply for the exemption permit every year on or before the anniversary date of the issuance of the initial permit.
5. **Conditions of racing pigeons exemption permit.** The keeping, breeding, maintenance and flying of racing pigeons under the racing pigeons exemption permit shall be permitted on the following conditions:
   - **a.** The housing shall be sized to allow one (1) square foot of floor space and a minimum of one (1) cubic foot of volume per bird housed with a maximum of two hundred (200) birds allowed.

**b.** The housing shall be of such size and design, and constructed of such material, that it can be maintained in a clean and sanitary condition. The structure shall be constructed of building materials compatible with the neighborhood. It shall have a roof and be enclosed on all sides. The floor, bird's roost and nesting cubicles shall be constructed of a nonporous material or plywood covered with a nonporous covering that is impermeable to fluids. The structure shall have sufficient crossflow ventilation to control odors and humidity, with the ventilation openings covered in screening to prevent the entry of flies. The structure shall be constructed on piers or concrete blocks to allow a minimum of eighteen (18) inches between the floor and the ground. The ground area beneath the structure shall be covered with a concrete pad and apron that extends past the building edges a minimum of twenty-four (24) inches.

**c.** The construction and location of the housing shall not conflict with the requirements of any Building Code or Zoning Code of the City of Tulsa.

**d.** The housing structure shall not be located nearer than fifty (50) feet from any adjoining residence.

**e.** All feed and other edible substances for the pigeons shall be stored in steel galvanized containers with tightly securing lids to protect against intrusion by rodents and other vermin.

**f.** The housing shall be maintained in a sanitary condition, in compliance with all applicable health regulations of the City of Tulsa and in a manner which does not unlawfully annoy, injure or endanger the environment or the health, safety, comfort or repose of any person or animal. All bird droppings shall be removed from the floor, bird's roost and nesting cubicles frequently enough to prevent an accumulation of droppings (recommended a minimum of every other day). The droppings shall be bagged in plastic garbage bags and deposited in the next trash pickup.

**g.** All pigeons shall be confined to the housing except for limited periods necessary for exercise, training and competition; and at no time shall pigeons be allowed to perch or linger on the buildings or property of others.

**h.** All pigeons shall be fed within the confines of the housing.

**i.** No one shall release pigeons to fly for exercise, training or competition except in compliance with the following rule: Pigeons shall not be released for flying if they have been fed within the previous four (4) hours.

**6. Right of entry for inspections.** The Director of WIN, the Chief of Police or the Director of the Tulsa City/County Health Department may enter and inspect any property or housing at any reasonable time for the purpose of investigating either an actual or suspected violation or to ascertain compliance or noncompliance with this section.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 202. Keeping of miniature pigs as pets.

**A.** It shall be unlawful and an offense to harbor, keep or possess a miniature pig, except has provided in this section.

**B.** A miniature pig may be kept as normal merchandise in commercially zoned property, or may be kept as a household pet in single-family residential property under the following conditions:

**1.** Each such miniature pig shall be a pet which is kept for personal enjoyment, and not raised for human consumption;

**2.** There shall not be more than one (1) miniature pig in excess of six (6) months of age at any residence;

**3.** The miniature pig shall be kept by its Owner in a manner which does not violate other ordinances of the city nor create a nuisance to the neighborhood;

**4.** A miniature pig shall be kept confined within the building in which it is housed or within any associated fenced yards or held by a harness and leash under the control of the Owner or the Owner's representative; and

**5.** Every miniature pig shall be vaccinated for rabies at four (4) months of age, with a booster in one (1) year. Thereafter, it shall be re-vaccinated every three (3) years.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 203. Offense.

It shall be unlawful and an offense for any person to keep or maintain or permit to be kept or maintained any cattle, horse, poultry, pigeons, doves, rabbits, or miniature pigs except as herein provided. It shall be unlawful and an offense for any person to maintain such animals or poultry in a manner as to trespass upon the premises of another.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 204. Animals running at large.

No horse, mule, donkey, cattle, swine, sheep or goats of any kind shall be permitted to run at large within the limits of this City or to be staked out in any public place in the City at any time; and it is declared to be unlawful and an offense for the Owner or person in charge of any such animals to permit them to run at large or to be staked in any public place within the limits of this City contrary to the provisions of this title.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 205. Penalty.

Unless otherwise provided, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. No. 24607, § 3, 4-28-2021)*

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## CHAPTER 3. ANIMALS IN STREETS

Section 300. Training animals.
Section 301. Animals unhitched.
Section 302. Racing animals.
Section 303. Hitching.
Section 304. Turning animals loose.
Section 305. Penalty.

### Section 300. Training animals.

It shall be unlawful and an offense for any person to break or train any dog, cat, horse, mule, donkey or other domestic animal, upon any public highway, street or alley within the City.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 301. Animals unhitched.

It shall be unlawful and an offense for any person to leave any horse, mule, donkey or other animal attached to any vehicle or conveyance in any place within the City without being securely held or tied to an object of sufficient size to prevent such animal from straying or running away.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 302. Racing animals.

It shall be unlawful and an offense for any person to engage in any fast or reckless driving, riding or racing of any horse or mule on or across any street, alley or other public grounds in the City. Any rate of speed faster than twelve (12) miles per hour shall be held to be reckless driving, riding or racing under this section.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 303. Hitching.

It shall be unlawful and an offense for any person to hitch, tie or place any horse, donkey, mule, sheep, goat, cattle or any animal of bovine kind or any domestic animal to any light, telephone or telegraph pole within the City or on a sidewalk or parking area in the City except at the regular street, avenue, alley or driveway crossings.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 304. Turning animals loose.

It shall be unlawful and an offense for any person to turn any animal loose on any street or public place in the City of Tulsa.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 305. Penalty.

Unless otherwise provided, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. No. 24607, § 3, 4-28-2021)*

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## CHAPTER 4. MISCELLANEOUS PROVISIONS

Section 400. Diseased animals and sale of diseased animals.
Section 401. Standards of humane care and treatment.
Section 402. Destruction of animals.
Section 403. Euthanasia.
Section 404. Locking or tying wings of poultry prohibited.
Section 405. Distribution of baby poultry or rabbits as pets or novelties prohibited.
Section 406. Reserved.
Section 407. Penalty.

### Section 400. Diseased animals and sale of diseased animals.

It shall be unlawful and an offense for any person to procure or knowingly distribute diseased animals without complete disclosure for the purpose of transferring Ownership, whether such animal is sold or given away.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 401. Standards of humane care and treatment.

It shall be unlawful and an offense under the terms of this section, Section 401, for any person within the corporate limits of the City of Tulsa to own, keep, possess, harbor or allow to remain on premises under that person's control any animal, and fail under circumstances not amounting to animal cruelty, to provide humane care and treatment of said animal evidenced by violation of any of the following:

**A.** Every owner or keeper of an animal kept within the corporate limits of the City of Tulsa shall see that such animal:

**1.** Is kept in a clean, sanitary and healthy manner and is not confined so as to be forced to stand, sit or lie in its own excrement or waste; the person(s) responsible for animal(s) shall regularly and as often as necessary to prevent odor or health and sanitation problems, maintain all animal areas or areas of animal contact;

**2.** Has food that is appropriate for the species in adequate amounts to maintain good health, fresh potable drinking water where appropriate, shelter and ventilation, including quarters that are protected from excessive heat and cold and are of sufficient size to permit the animal to exercise and move about freely;

**3.** Is maintained in compliance with all applicable federal, state and local laws and all regulations respecting animal care and control as are adopted by the enforcing department and in effect at the time.

**B.** It shall be unlawful to tether any animal by use of a choke collar, or on any collar too small for the size and age of the animal, or by any rope, chain, or cord directly attached to the animal's neck, or by a leash less than twelve (12) feet in length, or by any tether or leash without swivels on both ends, or of such unreasonable weight as to prevent the animal from moving about freely.

**C.** It shall be unlawful for any animal to be tethered between the hours of 11:00 p.m. and 6:00 a.m.; or to tether any un-sterilized dog for any period of time or to tether or confine an animal at a vacant structure or premises for any purpose or time when it is not monitored by a competent adult who is present at the property for the duration of such tethering or confinement.

**D.** In addition to the general requirements for animal care and treatment in this article, every owner or keeper of a dog kept within the corporate limits of the City of Tulsa shall see that such dog when confined outside:

**1.** Has access to a shelter constructed of solid wood or other weather resistant material, consisting of a structure with solid walls on all sides, a dry floor raised above the ground, and a solid roof sloped away from the entrance to protect the dog from weather and extreme cold. During winter and any day when the temperature is at or below 40°F, the shelter must be just large enough for the dog to stand up and turn around, the entrance covered by a flexible wind-proofing material or self-closing door, and must contain clean, dry bedding, which must consist of an insulating material that does not retain moisture, such as straw, of sufficient depth for the dog to burrow. On any day when the temperature is at or above 85°F or a heat advisory or more severe heat-related warning has been issued by a local, state or national authority, the shelter must be shaded by trees, a tarp, or a tarp-like device and provided with natural ventilation or supplemental ventilation or cooling device including but not limited to a fan, mister or like device.

**2.** Must be provided access to a temperature controlled facility when the temperature is at or below 25°F or when a wind chill warning has been issued by local, state or national authority. When under a tornado warning issued by a local, state or national authority all animals must be brought into a building anchored to a foundation.

**3.** Has adequate space for exercise when confined in an enclosure or pen, which shall consist of no less than one hundred (100) square feet. A dog over eighty (80) pounds must be provided with an additional fifty (50) square feet. For each additional dog inside the enclosure, fifty (50) square feet of space for exercise must be added per dog.

**4.** Is treated so that there are no open lesions on the dog's skin due to insect bites or other parasitic infections.

**5.** Shall not be tethered except when all of the following conditions are met:

**a.** The tether is not attached to a motorized vehicle, such as an automobile, truck, or motorcycle;

*Exception - Motorized wheelchair is exempt from this requirement as long as the wheelchair is actively being used and in motion.*

**b.** The dog is at least six (6) months of age and is not sick or injured;

**c.** The tethered dog has access to water, shelter, and dry ground. If there are multiple tethered dogs, each dog must be tethered separately in a manner that prevents the tethers from becoming entangled with each other or any other object, and each dog must have separate water and shelter;

**d.** The tether is attached to the dog by a properly fitting buckle-type collar, or a collar that will not break under pressure, with a rotating toggle or attachment. Pinch, prong, or choke collars shall not be used. The tether shall not wrap directly around the dog's neck.

**e.** The tether is not of such unreasonable weight as to prevent the dog from moving about freely, is free of tangles, cannot be entangled with another animal or object, and is at least twelve (12) feet in length.

**f.** If the dog is attached to a trolley system, the running line must be at least twelve (12) feet in length and the tether length must be greater than the height of the running line.

**g.** The tether is located so as not to allow the dog to trespass on public or private property nor in such a manner as to cause harm or danger to persons or other animals.

**E.** In the discretion of an enforcement officer, a person who violates any provision of this section for the first time may be given written notice of the practices or conditions which constitute the violation, and the enforcement officer shall in such instance direct remedies to such person where appropriate and provide a time period of no longer than thirty (30) days within which to correct the violation(s). Failure of the person to correct the violations within the specified time period shall constitute a violation of this section and result in impoundment of the animal for protective care.

**F.** Whenever an enforcement officer finds any animal is without humane care or treatment as evidenced by a violation of this section, they may, at the owner's expense, impound the animal for protective care due to the exigent circumstance. In the event of sickness or injury of the animal and upon the advice of a licensed veterinarian or veterinarian technician, the enforcement officer may take appropriate action to relieve pain and suffering; this shall include the option of immediate humane euthanasia of the animal. Upon impoundment of an animal for protective care, the enforcement officer shall refer the matter to the City Attorney for approval of a verified complaint and an order from the court that the animal be impounded indefinitely pending an evidentiary hearing. Following the filing of such verified complaint and an evidentiary hearing, if the court finds upon a preponderance of the evidence that an animal was kept without humane care or treatment as evidenced by a violation of this section, the court shall order the animal to be surrendered to the City of Tulsa. In such an event, the owner shall be required to pay all costs of impounding the animal. If the court does not find upon a preponderance of the evidence that an animal was kept without humane care or treatment, then the animal shall be released to its owner. In such an event, the owner may not be required to pay the costs of impoundment.

**G.** The enforcement officer may issue a citation to the owner for a violation of this section, and/or may specify the terms and conditions under which the owner may regain or maintain custody of the animal, which terms and conditions statement shall be signed by the owner. Violation of the terms and conditions by the owner is an offense against the City and shall be cause for the issuance of a citation and may result in the impoundment of the animal. If the owner refuses to sign the terms and conditions statement, then the enforcement officer shall refer the matter to the City Attorney for approval of a verified complaint and an order from the court that the animal be impounded indefinitely pending an evidentiary hearing and the procedure in Section F. shall be followed.

**H.** Every person violating any provision of this section, shall be guilty of an offense and, upon conviction, shall be punished by a graduated schedule for which the maximum punishment is imprisonment in the city jail for a period of not more than six (6) months and/or a fine of not more than One Thousand, Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments. The punishment imposed for any such violation shall be as follows:

**1.** For the first violation, a fine not less than One Hundred Dollars ($100.00); and

**2.** For the second violation, a fine not less than Five Hundred Dollars ($500.00), and the court upon request shall order forfeiture or other disposition of the animal involved. A judgment by the court which orders forfeiture or other disposition of the animal by the city or any third party shall include as a part of such judgment adequate provisions for the collection of costs of forfeiture or impoundment from the person found in violation.

**3.** For the third, or subsequent violation, imprisonment in the city jail for a period of not more than six (6) months and/or a fine of not more than One Thousand, Two Hundred Dollars ($1,200.00), and the court upon request shall order forfeiture or other disposition of the animal involved. A judgment by the court which orders forfeiture or other disposition of the animal by the city or any third party shall include as a part of such judgment adequate provisions for the collection of costs of forfeiture or impoundment from the person found in violation.

**I.** For purposes of this section, the following terms have the following meanings:

**1.** *"Confined outside"* means confined outside the house, mobile home, apartment or other structure where the owner is living. Confined outside would include in the yard, or in a garage, shed, or barn without heating or air-conditioning. Access to a garage, shed, or barn maintained between 40°F and 80°F would not be considered confined outside.

**2.** *"Temperature controlled facility"* means a structure capable of being maintained between 40°F and 80°F.

*(Ord. No. 25186, § 3, 11-29-2023)*

### Section 402. Destruction of animals.

When any animal within the corporate limits of the City of Tulsa shall be so wounded, maimed, sick, diseased or injured as to render its recovery hopeless in the opinion of WIN or a licensed veterinarian, then it shall become the duty of WIN to kill or euthanize or cause to be killed or euthanized such animal as soon as practicable, in such manner as deemed the least painful and shall then cause the carcass to be removed and disposed of as provided in this title.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 403. Euthanasia.

**A.** It shall be unlawful and an offense for any person, except a licensed veterinarian, or a person trained to euthanize and who is approved and supervised by a licensed veterinarian, or a person certified by the Oklahoma State Board of Veterinary Medical Examiners as a euthanasia technician, to euthanize any animal.

**B.** Any dog, cat or any other animal which is kept for pleasure rather than utility in or about a household, held by or in the custody of a private or public animal shelter or agency and not reclaimed by the Owner, may be disposed of only by adoption as a pet in a suitable home, or euthanized by any method approved by the Veterinary Division of the State Department of Agriculture, with the exception of curariform derivative drugs and provided that the following requirements are met to ensure the euthanasia agent is humane:

**1.** The method should be as painless as possible to the animal as determined by the best available medical and scientific knowledge and technology.

**2.** The animal should be kept as free from anxiety and fear as possible.

**3.** The technique should be simple enough to be used by relatively unskilled personnel and be legally available to animal shelters and humane societies. It should be mechanically simple and maintenance free as possible within reasonable cost.

**4.** It should be physically safe for personnel using it.

**5.** It should conform with all other requirements set forth for euthanasia in 4 O.S. 2011, Sections 501, *et seq*.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 404. Locking or tying wings of poultry prohibited.

It shall be unlawful and an offense for any person to lock or tie the wings of any chicken, turkey, goose, duck or other domestic poultry for the purpose of weighing or handling, or cause the same to be done.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 405. Distribution of baby poultry or rabbits as pets or novelties prohibited.

It shall be unlawful and an offense for any person, firm or corporation to sell, or offer for sale, barter or give away baby chicks, ducklings or other poultry less than four (4) weeks old in groups of less than twelve (12) each, or rabbits less than six (6) weeks old as pets or novelties, whether or not dyed, colored or otherwise artificially treated. This section shall not be construed to prohibit the sale or display of natural chicks or ducklings in proper brood facilities by hatcheries or stores engaged in the business of selling them to be raised for commercial purposes. Every person violating this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 406. Reserved.

**Editor's note—**Ord. No. 25186, §§ 1, 2, adopted November 29, 2023, repealed § 406, which pertained to outdoor shelter requirements and derived from Ord. No. 24607, § 3, 4-28-2021.

### Section 407. Penalty.

Unless otherwise provided, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. No. 24607, § 3, 4-28-2021)*

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## CHAPTER 5. DEAD ANIMALS

Section 500. Dead animals—Unlawful disposal; burial in AG-zoned land.
Section 501. Dead animals—Lawful disposal.
Section 502. Dead animals—Strays.
Section 503. Dead animals—Residential fees.
Section 504. Dead animals collected for disposal from commercial animal establishments of any type.
Section 505. Retrieving I.D. from dead animals.
Section 506. Penalty.

### Section 500. Dead animals—Unlawful disposal; burial in AG-zoned land.

It shall be unlawful and an offense for any person to throw any dead animal or poultry in or upon any street, alley or public place within the City of Tulsa or to bury any dead animal or poultry within the City of Tulsa; provided, a dead large agricultural animal, as defined in Section 100 of this Title, may be buried on an AG-zoned parcel of land eighty (80) acres or larger, if in compliance with the Carcass Disposal Options published by the Oklahoma Department of Agriculture, Food and Forestry (https://ag.ok.gov/divisions/agricultural-environmental-management/ and https://ag.ok.gov/wp-content/uploads/2020/11/carcassdisposaloptions.pdf).

*(Ord. No. 24607, § 3, 4-28-2021; Ord. No. 25151, § 1, 10-25-2023)*

### Section 501. Dead animals—Lawful disposal.

**A.** It shall be the duty of the owner of any dead animal, or the person in lawful possession of any dead animal, to notify the Director of Public Works or the Director's designee, who shall dispose of it in a sanitary manner; provided that private persons may operate services for the removal and disposal of dead animals subject to the approval of the Director of Public Works or the Director's designee. The Director of Public Works or the Director's designee may prescribe appropriate rules and regulations for the operation of private services involved in the removal and disposition of dead animals.

**B.** It shall be the duty of the Owner or person in lawful possession of a dead dog, cat, poultry or other small animal to put such animal in a box, sack or other receptacle before collection by the Director of Public Works or the Director's designee, or by an operator of a private animal removal and disposal service.

*(Ord. No. 24607, § 3, 4-28-2021; Ord. No. 25151, § 2, 10-25-2023)*

### Section 502. Dead animals—Strays.

It shall be the duty of any person upon whose premises a stray dead animal is found to notify the Director of Public Works or the Director's designee. Such person shall not be liable for any fees for removal.

*(Ord. No. 24607, § 3, 4-28-2021; Ord. No. 25151, § 2, 10-25-2023)*

### Section 503. Dead animals—Residential fees.

The Owner or person in lawful possession of any dead animal or poultry shall pay to the Director of Finance a fee to cover the costs of removing the same.

Fees for the removal of dead animals shall be recommended by the Animal Welfare Commission and approved by the City Council for domestic farm animals such as horses, cattle, hogs, sheep, goats or animals of like or larger size. There shall be no charge for the removal of dogs, cats, poultry or other similarly sized animals.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 504. Dead animals collected for disposal from commercial animal establishments of any type.

Notwithstanding Section 503, any dead animal collected for disposal from commercial animal establishments of any type shall be disposed of in the manner prescribed in this title and upon payment of fees recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 505. Retrieving I.D. from dead animals.

A good faith attempt shall be made by the Director of Streets and Stormwater or the Director's designee to retrieve any City license pet tags and/or any microchip information on every dead dog and cat picked up by the City of Tulsa.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 506. Penalty.

Unless otherwise provided, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. No. 24607, § 3, 4-28-2021)*

## CHAPTER 6. DANGEROUS DOGS

Section 600. Certificate of registration for certain dogs required—Exemptions—Fee.
Section 601. Muzzle and restraint of certain dogs.
Section 602. Dogs not to be declared dangerous.
Section 603. Confiscation of a dangerous dog.
Section 604. Fines.
Section 605. Purpose.
Section 606. Penalty.

### Section 600. Certificate of registration for certain dogs required—Exemptions—Fee.

**A.** Certificate of registration for certain dogs required. It shall be unlawful and an offense for an Owner to have a dangerous dog without a certificate of registration issued according to this chapter. This chapter shall not apply to dogs used by law enforcement officials for police work.

**B. Exemptions.** WIN shall issue a certificate of registration to the Owner of such animal if the Owner presents to the animal control unit sufficient evidence of:

**1.** A proper enclosure to confine a dangerous dog and the posting of the premises with a clearly visible warning sign that there is a dangerous dog on the property. In addition, the Owner shall conspicuously display a sign with a warning symbol that informs children of the presence of a dangerous dog; and

**2.** A policy of liability insurance, such as homeOwner's insurance, or surety bond used by an insurer qualified under Title 36 of the Oklahoma Statutes in the amount of not less than Fifty Thousand Dollars ($50,000.00) insuring the Owner for any personal injuries inflicted by the dangerous dog.

**C. Fee.** A fee as recommended by the Animal Welfare Commission, subject to the discretion and approval of the City Council shall be remitted to the Director of Finance for the certificate of registration.

*(Ord. No. 24607, §§ 1, 3, 4-28-2021)*

### Section 601. Muzzle and restraint of certain dogs.

It shall be unlawful and an offense for an Owner of a dangerous dog to permit the dog to be outside the proper enclosure unless the dog is muzzled and restrained by a substantial chain or leash and under physical restraining of a responsible person over sixteen (16) years of age. The muzzle shall be made in a manner that will not cause injury to the dog or interfere with its vision or respiration but shall prevent it from biting any person or animal.

*(Ord. No. 24607, §§ 1, 3, 4-28-2021)*

### Section 602. Dogs not to be declared dangerous.

Dogs shall not be declared dangerous if the threat, injury or damage was sustained by a person who, at the time, was committing a willful trespass or other tort upon the premises occupied by the Owner of the dog, or was tormenting, abusing or assaulting the dog or has, in the past, been observed or reported to have tormented, abused or assaulted the dog or was committing or attempting to commit a crime.

*(Ord. No. 24607, §§ 1, 3, 4-28-2021)*

### Section 603. Confiscation of a dangerous dog.

Any dangerous dog shall be immediately confiscated by WIN's Animal Welfare Center if:

**A.** The dog is not validly registered according to this chapter;

**B.** The Owner does not secure the liability insurance coverage or surety bond required by this chapter;

**C.** The dog is not maintained in the proper enclosure; and

**D.** The dog is outside of the dwelling of the Owner or outside the proper enclosure and not under physical restraint of the responsible person.

Any dangerous dog confiscated pursuant to this section and not reclaimed by its Owner under the requirements of this chapter within thirty (30) days from the date of notice of confiscation shall be deemed abandoned and, at the discretion of WIN's Animal Welfare Center, euthanized pursuant to procedures provided in Section 109 of this title.

*(Ord. No. 24607, §§ 1, 3, 4-28-2021)*

### Section 604. Fines.

Any fine imposed as a result of a violation of this chapter, at the discretion of the court, may be offset by payments made by the dog Owner to any victim of an attack by the dog. However, insurance payments may not be considered as an offset.

*(Ord. No. 24607, §§ 1, 3, 4-28-2021)*

### Section 605. Purpose.

It is the purpose of this chapter to provide additional and cumulative remedies to control dangerous and potentially dangerous dogs. Nothing in this chapter shall be construed to abridge or alter rights of action or remedies of victims under the common law or statutory law, criminal or civil.

*(Ord. No. 24607, §§ 1, 3, 4-28-2021)*

### Section 606. Penalty.

Unless otherwise provided, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period of not exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments or both such fine and imprisonment.

*(Ord. No. 24607, §§ 1, 3, 4-28-2021)*

## CHAPTER 7. REPTILES

Section 700. Habitat.
Section 701. Transport and handling.
Section 702. Release of reptiles.
Section 703. Prohibited reptiles.
Section 704. Zoo excluded.
Section 705. Penalty.

### Section 700. Habitat.

All reptiles held as pets or specimens must be contained within secure habitats designed to prevent escape.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 701. Transport and handling.

**A.** Reptiles being transported shall be contained within escape-proof containers.

**B.** Reptiles shall not be handled openly in public places unless the handler is conducting an educational meeting or is demonstrating a reptile for sale within a commercial animal establishment.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 702. Release of reptiles.

**A.** Reptiles not indigenous to Oklahoma shall not be released or abandoned.

**B.** Any species of reptile not indigenous to Oklahoma that is secured by or forfeited to Animal Welfare shall be released to the Tulsa Zoo or to a reptile rescue organization for proper disposition or euthanized if deemed necessary by Animal Welfare.

**C.** Any species of reptile indigenous to Oklahoma that is secured by or forfeited to Animal Welfare may be released to the wild within the discretion of Animal Welfare.

*(Ord. No. 24607, § 3, 4-28-2021)*

### Section 703. Prohibited reptiles.

The families and species of reptiles listed in this paragraph are prohibited, as they pose distinct hazards to humans:

**A.** The following families of the Order Crocodylia (all families).

**B.** Order Squamata; suborder Sauria, Family Helodermatidae (beaded lizards and gila monsters); Order Squamata, suborder Ophidia; Family Elapidae (Cobras); Family Hydrophiidae (sea snakes); Family Viperidae (vipers and pit vipers); species in the Family Colubridae, sub family Disadomorphinae (rear-fang-snakes), Dispholidus typus (the Boomslang); Thelotornis kirklandi (African bird eating snake); and Boiga dendrophilia (the Mangrove snake).

*(Ord. No. 24607, §§ 2, 3, 4-28-2021)*

### Section 704. Zoo excluded.

The City of Tulsa Zoo shall not be subject to any of the provisions in this chapter.

*(Ord. No. 24607, §§ 2, 3, 4-28-2021)*

## Section 705. Penalty.

Unless otherwise provided, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. No. 24607, §§ 2, 3, 4-28-2021)*

## CHAPTER 8. PENALTY

Section 800. Penalty.

### Section 800. Penalty.

Unless otherwise provided, every person violating any of the provisions of this title shall be guilty of an offense and, upon conviction, thereof shall be punished by imprisonment in the City jail for a period of not more than ninety (90) days and/or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments provided that no violation of any provision of Chapter 4 shall carry a fine of less than One Hundred Dollars ($100.00).

*(Ord. Nos. 19038, 19143; Ord. No. 21979, § 1, 12-18-2008)*

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# TITLE 3 PUBLIC PROPERTY, RECORDS, FLAG, SEAL

**Chapter 1. Public Property and Records**
**Chapter 2. Corporate Seal, Council Seal and City Flag**
**Chapter 3. Facsimile Signatures Authorized**

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## CHAPTER 1. PUBLIC PROPERTY AND RECORDS

Section 100. Use of public property.
Section 101. Cemetery register.
Section 102. Certified copies.
Section 103. Correspondence file.
Section 104. Depository of public records.
Section 105. Employee records.
Section 106. Termination and leave records for employees of Police and Fire Department.
Section 107. Date of filing and index.
Section 108. Notice records.
Section 109. Ordinance records.
Section 110. Petition records.
Section 111. Withdrawal of records.
Section 112. City Clerk to sell copies of criminal code.
Section 113. City Clerk and Municipal Court Clerk to sell copies of traffic code.
Section 114. Correspondence files.
Section 115. Permit records.
Section 116. Motor vehicle records.
Section 117. Motor vehicle identification and numbering.
Section 118. Motor vehicle use.
Section 119. Vehicle transfers.
Section 120. The City Council of the City of Tulsa and all boards, commissions, trusts and authorities of the City of Tulsa must file copies of their agendas and minutes with Tulsa City-County Library.

### Section 100. Use of public property.

No City official or employee shall lend or rent any City property to any person, corporation or individual and all such property shall remain in the possession of the official or employee charged with it until the property is returned to the proper municipal authority.

### Section 101. Cemetery register.

The City Clerk shall keep and maintain a cemetery register in which shall be entered in a systematic method, the number of each and every lot and the block in which it is located. The cemetery register shall show the name of the owner of each lot, by whom purchased, the date of purchase, the amount charged for the lot and the amount paid.

### Section 102. Certified copies.

It shall be the duty of the City Clerk to furnish certified copies of any ordinance or other public document or any official act of the City to any person upon application. For such services, the City Clerk shall charge and collect the fees established in accordance with the Open Records Act Fee Schedule as established by the Mayor through Executive Order and in compliance with the Oklahoma Open Records Act, Title 51, Oklahoma Statutes, Sections 24A.1 and following.

*(Ord. No. 23985, § 1, 8-29-2018)*

### Section 103. Correspondence file.

The City Clerk shall keep a suitable file for all correspondence and communications on matters pertaining to the City's affairs coming into his possession.

### Section 104. Depository of public records.

The City Clerk shall be the depository for surety bonds, insurance policies, deeds, contracts, franchises and all records which are the property of the City and for which no other provision is made by charter or ordinance. The City Clerk shall, upon receipt of any notice or process asserting that ad valorem taxes are due on any real property of the City, forward a copy thereof to the Mayor and to the Chairman of the Council in addition to such other parties as may be now or hereafter required to receive such copies.

*(Ord. No. 17659)*

### Section 105. Employee records.

The Mayor shall cause to be prepared, kept, preserved and maintained records showing the name, address, department, salary or wage paid to each and every employee of the City of Tulsa. Such records shall show any and all deductions from the amount paid or to be paid to the employee, together with a statement showing the purpose of such deduction and the date thereof.

*(Ord. No. 4780)*

### Section 106. Termination and leave records for employees of Police and Fire Department.

In the event of the termination of employment of any members of the Fire or Police Departments of the City of Tulsa or the granting of a leave of absence to any member of the Fire or Police Departments, the condition and circumstances of such termination or leave of absence shall be stated on the records provided in Section 105 herein.

*(Ord. No. 4780)*

### Section 107. Date of filing and index.

The City Clerk shall endorse the date of filing upon every paper or document filed in his office. All books and records kept by him shall be fully and properly indexed.

### Section 108. Notice records.

The City Clerk shall keep a copy of all notices required to be published or posted by the City Clerk, by order of the Council or under the general ordinances of the City. Attached to such notices shall be the printer's affidavit of publication for notices which are required to be published or the City Clerk's certificate under seal of the City for notices which are required to be posted, mailed or served in any other manner. Such certificate shall show that the document is a true and correct copy of the notices posted, published or delivered by him, the number of the notice issued, the date of issuance, whether done by special order of the Council or by general ordinance, and that the fact of publication shall be a matter of record. Such attachments shall be kept in connection with the documents to which they refer.

### Section 109. Ordinance records.

The City Clerk shall keep all enacted ordinances in their original form in a manner prescribed by the Council. He shall keep printed copies of all ordinances, resolutions, notices and other publications with the printer's certificate of publication attached thereto. He shall index the ordinances under their respective numbers or titles. All old ordinances, records or other documents shall be carefully preserved in a manner approved by the Council.

**Section 110. Petition records.**

The City Clerk shall keep a complete record of all petitions and communications under which the Council shall order public work to be done at the expense of property fronting thereon, together with all resolutions and ordinances relating to the same, and they shall be filed with the other documents to which they pertain.

**Section 111. Withdrawal of records.**

Any officer or employee of the City of Tulsa may withdraw for a period not to exceed fifteen (15) days any papers, files, records, property, matters and things belonging to the City which are public in their nature by leaving with the City Clerk an itemized receipt therefor; provided, however, that if any such document, instrument or other property is or shall be withdrawn to be used as evidence in any action or proceedings in which the City of Tulsa is interested as a party or in which any of its officers, agents or employees in their official capacity are interested as parties or otherwise, such records or other property shall be returned within fifteen (15) days from the final termination of such action or proceeding.

**Section 112. City Clerk to sell copies of criminal code.**

Upon presentation of a receipt for payment from the Department of Finance, the City Clerk is authorized to provide and distribute to the public copies of the amended criminal code at a cost of Four Dollars ($4.00) per copy.

*(Ord. Nos. 13086, 18654)*

**Section 113. City Clerk and Municipal Court Clerk to sell copies of traffic code.**

Upon presentation of a receipt for payment from the Department of Finance, the City Clerk and the Municipal Court Clerk are authorized to provide and distribute to the public copies of the amended traffic code at a cost of Four Dollars ($4.00) each.

*(Ord. Nos. 13560, 18654)*

**Section 114. Correspondence files.**

Each head of a department and other officer whose duties involve correspondence, the filing of documents and the maintaining of records shall preserve a complete file of all correspondence, documents and records pertaining to the affairs of the City and shall, upon termination of his employment or retirement, deliver such correspondence, files and documents to his successor.

**Section 115. Permit records.**

It shall be the duty of each officer issuing permits to maintain a file of duplicate permits.

**Section 116. Motor vehicle records.**

It shall be the duty of the Mayor to compile records concerning each motor vehicle used by employees of the City, which records shall show the make and type of each motor vehicle, the engine number, factory or serial number, number of the official certificate of title and the state registration or license number for the current year, the person from whom the

vehicle was purchased, the original cost and the purpose for which the motor vehicle is used. Such records shall be filed in the Office of the City Clerk. All certificates of title shall be deposited with the City Clerk.

*(Ord. No. 3964)*

### Section 117. Motor vehicle identification and numbering.

It shall be the duty of the Mayor to cause to be clearly identified, as provided in this section, all motor vehicles currently owned and operated by the City of Tulsa, its agencies, authorities, boards, and commissions, within thirty (30) days of the effective date of this ordinance or within thirty (30) days of receipt of a vehicle.

**A. Logo, Seal and Entity Name.**

1. On each side of the vehicle shall be placed a logo or seal at least nine and three-fourths (9¾) inches in height, with a design and wording approved in writing by the Mayor, with the words, "City of Tulsa," in letters at least one-half (½) inch in height, and the name of the City entity in letters at least one (1) inch in height.
2. In lieu of a logo or seal as specified above, the words "City of Tulsa," along with the name of the City entity may be placed on each side of a vehicle in letters of at least two (2) inches in height.

**B. Asset Number.** The vehicle asset number shall be affixed to the vehicle, using two (2) inch or larger figures; the placement of the City asset number must ensure that the number is clearly visible. A separate vehicle asset number shall be assigned to each motor vehicle.

**C. Exceptions.**

1. A vehicle may be operated without identification markings as provided in this section, if approved in writing, for a valid reason, by the Mayor.
2. Vehicles operated by the Tulsa Police Department and the Tulsa Fire Department may be marked or left unmarked in a manner as approved in writing by the Mayor.
3. Vehicles operated by the Park Department may be marked in a manner as approved in writing by the Mayor.
4. Vehicles owned by public trusts created pursuant to Title 60, Section 176, of the Oklahoma Statutes are exempt from this ordinance.

*(Ord. No. 20438)*

### Section 118. Motor vehicle use.

Policies and procedures governing the use of motor vehicles shall be developed by the Mayor.

### Section 119. Vehicle transfers.

When any new or additional motor vehicles are provided for any department of the City of Tulsa and when any motor vehicle is disposed of or ceases to be the property of the City of Tulsa, a full report and record as above mentioned shall be made thereof, and a copy of such report delivered to the Office of the City Clerk to become a permanent record. Such report shall also show the disposition made of the motor vehicle and the amount of money or credit received therefor.

*(Ord. No. 3964)*

## Section 120. The City Council of the City of Tulsa and all boards, commissions, trusts and authorities of the City of Tulsa must file copies of their agendas and minutes with Tulsa City-County Library.

**A. General provision.** The City Council of the City of Tulsa shall file copies of its meeting agendas and minutes of meetings, posted or kept in compliance with the Oklahoma "Open Meeting Act," with the Tulsa City-County Library. All boards, commissions, trusts and authorities of the City of Tulsa, whether created by the City Charter, by ordinance, by trust indenture or by other legal instrument, shall file with the Tulsa City-County Library copies of all meeting agendas and minutes of meetings of the respective board, commission, trust or authority, which are posted and kept in compliance with the Oklahoma "Open Meeting Act."

**B. Time requirements for filing.** All agendas of the City Council or of a board, commission, trust or authority of the City of Tulsa shall be filed with the Tulsa City-County Library within twenty-four (24) hours of the posting of the agenda pursuant to the Oklahoma "Open Meeting Act." All minutes of meetings kept by the City Council or by a board, commission, trust or authority of the City of Tulsa in compliance with the Oklahoma "Open Meeting Act" shall be filed with the Tulsa City-County Library within five (5) days (excluding Saturdays and Sundays and holidays legally declared by the State of Oklahoma) after approval of the minutes by the Council or by the respective board, commission, trust or authority.

**C. Filing defined.** An agenda or minutes of meeting shall be deemed filed when the Council or the respective board, commission, trust or authority of the City of Tulsa has mailed, by first class United States mail, delivered or faxed a copy of the agenda or minutes to the Government Documents Librarian, Tulsa City-County Library, 400 Civic Center, Tulsa, Oklahoma, 74103-3830.

*(Ord. No. 18149)*

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## CHAPTER 2. CORPORATE SEAL, COUNCIL SEAL AND CITY FLAG

Section 200. Corporate seal.
Section 201. Clerk as custodian.
Section 202. Seal of the Tulsa City Council.
Section 203. Authorized use of City and Council seals—Penalty.
Section 204. City flag.

### Section 200. Corporate seal.

The Corporate Seal of the City of Tulsa is the official seal of the City of Tulsa. It shall be in the shape of a modified vertical ellipse. The ellipse is defined by the blue (Pantone 289C or CMYK/RGB equivalent) curved border that circumscribes the three (3) color divided sections of the seal. Superimposed upon the upper half of the curved border there shall appear two (2) rows of five-pointed white stars, forty-six (46) in number. Superimposed and circumscribing the lower half of the seal in sans-serif type shall be the words "CITY OF TULSA OKLAHOMA" in white capital letters.

The upper one-third (⅓) of this ellipse shall be a gold field (Pantone 130C or CMYK/RGB equivalent). Superimposed on this field, in the optical center and pointing upward shall be a Native American projectile point (arrowhead) of the Snyder variety composed of the numbers 1836, denoting Tulsa's founding year and Native American heritage. To the left of this arrowhead there shall be the numerals "1" and "8". To the right of this arrowhead there shall be the numerals "9" and "8", together representing the year 1898, the year the City of Tulsa was incorporated.

The lower left one-third (⅓) of the seal shall be a black field with a stylized white oil derrick superimposed upon and centered in the field.

The lower right one-third (⅓) of the seal shall be a light blue field (Pantone 653C or CMYK/RGB equivalent) with parallel horizontal white lines. Each line shall be composed of a series of arcs to suggest a wave form.

The upper gold field, the lower left black one-third (⅓) and the lower right blue one-third (⅓) shall be separated from each other to form the letter "T" in white.

Any reproduction of the corporate seal shall be substantially as described herein.

*(Ord. Nos. 11022, 21025; Ord. No. 22311, § 1, 9-16-2010; Ord. No. 25190, § 1, 11-29-2023)*

### Section 201. Clerk as custodian.

The City Clerk shall be the lawful custodian of the Corporate Seal for the City of Tulsa, and he shall affix the same to all documents requiring the seal.

*(Ord. No. 21025)*

### Section 202. Seal of the Tulsa City Council.

The Seal of the Tulsa City Council shall be in the shape of a modified vertical ellipse. The upper one-third (⅓) of this ellipse shall be a field. Superimposed on the upper one-third (⅓), in the optical center and pointing upward shall be an Indian projectile point (arrowhead) of the Snyder variety. To the left and adjacent to the base of this arrowhead there shall be the numerals "1" and "9". To the right and adjacent to the base of this

arrowhead there shall be the numerals "9" and "0", together representing the year 1990. Superimposed upon and circumscribing the curved edge of the upper one-third (⅓) there shall appear one (1) row of five-pointed stars, nine (9) in number.

The lower left quadrant of the seal shall be a field with a stylized oil derrick superimposed upon and centered in the field.

The lower right quadrant of the seal shall be a field with parallel horizontal lines. Each line shall be composed of a series of arcs to suggest a wave form.

The upper field, the lower left quadrant and the lower right quadrant shall be separated from each other to form the letter "T". Circumscribing the lower half of the seal shall be the words "TULSA CITY COUNCIL" in capital letters.

Any reproduction of the Seal of the Tulsa City Council shall be substantially as described herein.

*(Ord. No. 21025)*

**Section 203. Authorized use of City and Council seals—Penalty.**

**A. Seal deemed property of City; authorized use.** The Corporate Seal of the City of Tulsa, as described in Section 200, and the Seal of the Tulsa City Council, as described in Section 202, are the property of the City of Tulsa. The Corporate Seal of the City of Tulsa, the Seal of the Tulsa City Council, and/or any other depiction of such substantial similarity so as to create a likelihood a reasonable individual could construe the depiction as either seal shall only be used in furtherance of a governmental purpose by employees of the City of Tulsa, the state of Oklahoma, any political subdivision of the state of Oklahoma, or the federal government.

**B.** Any use of the Corporate Seal of the City of Tulsa, the Seal of the Tulsa City Council, or any other depiction of such substantial similarity so as to create a likelihood a reasonable individual could construe the depiction as either seal, not allowed under this section or otherwise allowed by law, shall be deemed an unauthorized use and a misdemeanor offense.

**C.** It shall be a defense to Subsection 203.B, if the use of the Corporate Seal of the City of Tulsa, or any facsimile or representation of the Corporate Seal of the City of Tulsa is authorized by law or the Mayor or his designee.

**D.** It shall be a defense to Subsection 203.B, if the use of the Seal of the Tulsa City Council or any facsimile or representation of the Seal of the Tulsa City Council is authorized by law, City Council Rules, or by the City Council of the City of Tulsa.

**E. Penalty.** Any person convicted of a violation of any of the provisions of this section shall be guilty of a misdemeanor offense and, upon conviction, thereof shall be punished by imprisonment in the City jail for a period not exceeding thirty (30) days or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees, and assessments, or by both such fine and imprisonment.

*(Ord. No. 21025)*

**Section 204. City flag.**

**A.** The flag design described herein is hereby accepted as the official flag of the City of Tulsa, Oklahoma.

**B.** The flag design shall be as follows: It shall be in a 2 x 3 aspect ratio. The flag shall contain the following features:

**1.** The top half of the flag shall be a blue field.

**2.** The bottom half of the flag shall be a beige field.

**3.** The flag is divided in half with a gold bar, running horizontally the full length of the flag with its height sized to 3/40$^{th}$ of the flag height.

**4.** Superimposed on the horizontal gold dividing bar, one-third (⅓) the width of the flag from the left, is a gold circle, representing a Native American shield. The circle of the shield shall be sized to 13/20$^{th}$ of the flag height; the width of the circle's outline shall be the same width as the gold dividing bar. Hanging from the shield's circle are three pointed gold bars representing three gold feathers, sized to the same width as the gold dividing bar. These are spaced out equally and align to every other one-seventh of the flag. The outer feathers will hang below the circle the same length as the width of the outline, with the center feather hanging below at twice the length of the width of the outline.

**5.** At the center of the shield emblem shall be a red circle, sized to 3/8$^{th}$ of the flag height.

**6.** Centered inside the red circle shall be a beige six-pointed, Art Deco star, sized to half the height of the circle.

**C.** The colors used in production of the Tulsa flag shall be:

**1.** Upper field: National Flag Blue
PMS: 289 C
Hex: #162B49
CMYK: 96/83/44/43
RGB: 22/43/73

**2.** Gold line, shield: Mustard
PMS: 130 C
Hex: #EBAD21
CMYK: 7/33/100/0
RGB: 235/173/33

**3.** Lower field, star: Bone
PMS: 468 C
Hex: #F8F1E0
CMYK: 2/3/11/0
RGB: 248/241/224

**4.** Circle: Bright Red
PMS: 032 C
Hex: #C6202E
CMYK: 15/100/91/5
RGB: 198/32/46

**D.** Any reproduction of the flag shall be substantially as described above.
*(Ord. Nos. 12916, 21025; Ord. No. 24012, § 1, 10-3-2018)*

## CHAPTER 3. FACSIMILE SIGNATURES AUTHORIZED

Section 300. Use of facsimile signatures authorized.
Section 301. Certificates as to compliance with this chapter authorized.
Section 302. Certificate of compliance to be included in transcript.

### Section 300. Use of facsimile signatures authorized.

Subject to the restrictions hereinafter provided, the Mayor and City Clerk are authorized to use facsimile signatures in signing all tax bills, paving certificates, street improvement bonds, special sidewalk warrants and district sewer bonds, and other documents as authorized by law.

*(Ord. No. 7215)*

### Section 301. Certificates as to compliance with this chapter authorized.

The Mayor and City Clerk are directed to execute certificates under their own signatures certifying that the tax bills, street improvement bonds, paving certificates, special sidewalk warrants and district sewer bonds specified in the transcript of the proceedings were duly executed.

*(Ord. No. 7215)*

### Section 302. Certificate of compliance to be included in transcript.

A duly executed duplicate of such certificates shall be included in each transcript covering the proceedings had by the Council.

*(Ord. No. 7215)*

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# TITLE 4 MAYOR, AUDITOR AND COUNCIL

**Chapter 1. Mayor**
**Chapter 2. Auditor**
**Chapter 3. Council**
**Chapter 4. Capital Improvement Plan and Capital Budget**

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## CHAPTER 1. MAYOR

Section 100. Salary of mayor and participation in deferred compensation plan.
Section 101. Absence, temporary disability or vacancy.
Section 102. Appointment of officers.

### Section 100. Salary of Mayor and participation in deferred compensation plan.

**A. Salary.** The Mayor of the City of Tulsa shall be paid, effective with the term of office commencing December 2, 2024, at 2:00 p.m., an annual salary of One Hundred Ninety Thousand Dollars ($190,000.00), payable as employees of the City are paid. Thereafter any adjustment to the Mayor's salary shall be as certified by the City Treasurer to the City Council. Any adjustment, up or down, if any, certified by the Treasurer shall be approved by the Council as adopted by ordinance every four (4) years, to coincide with the start of a new mayoral term. The salary certified by the Treasurer shall be commensurate with the most local consumer price index for all urban consumers (CPI-U) published by the U.S. Department of Labor, Bureau of Labor Statistics, over immediately preceding four-year period. No change in the Mayor's salary shall become effective prior to the commencement of the term of office next succeeding term in which the change is made and then only in the event such change was approved by ordinance prior to the general election for the next succeeding term.

**B. Deferred compensation.** The Mayor shall be eligible to participate in any deferred compensation plan offered to City employees by the City of Tulsa. In lieu of pension plan contributions, the City shall contribute to the Mayor's deferred compensation account a percentage of the Mayor's salary to equal to one-half (½) of the Employer contributions to the Municipal Employees' Retirement Plan, as provided in Title 28 of Tulsa's Revised Ordinances, Section 300.

*(Ord. No. 20190; Ord. No. 25276, § 1, 4-17-2024)*

### Section 101. Absence, temporary disability or vacancy.

The Mayor shall file with the City Clerk, from time to time, a designation of one or more officers or employees of the City, other than members of the Council, who shall in the order specified act as Temporary Mayor and perform the duties and exercise the powers of the Mayor during the absence or temporary disability of the Mayor or in the event of a vacancy in the office of the Mayor. The designation by the Mayor shall be subject to confirmation by a majority vote of the entire membership of the Council. Should the Mayor fail to file such designation, the Council shall designate one or more officers or employees of the City, other than members of the Council, who shall in the order specified act as Temporary Mayor.

*(Amended Charter, Article III, Section 1.3)*

### Section 102. Appointment of officers.

**A.** The Mayor shall appoint, as required under Article III, Section 1.4(G), of the Tulsa City Charter, an individual to a position where the existing officer's term has expired or a vacant position of a board, commission, authority or agency created by the Tulsa City Charter, ordinance, agreement or pursuant to law, within sixty (60) days from the creation of the vacancy or expiration of the existing officer's term.

**B.** The Mayor shall appoint, as required under Article III, Section 1.4(G), of the Tulsa City Charter, an individual to a position where the existing officer's term has expired or a

vacant position of a board, commission, authority or agency created by the Tulsa City Charter, ordinance, agreement or pursuant to law, within sixty (60) days from the failure of a Council motion to confirm the Mayor's previous appointment or the passage of a Council motion to deny confirmation to the Mayor's previous appointment.

**C.** Prior to the expiration of the time period for appointment, and for good cause shown, the Mayor may request the Council for an extension of the time period within which to make an appointment.

*(Ord. No. 20964)*

## CHAPTER 2. AUDITOR

Section 200. Salary of Auditor and participation in deferred compensation plan.
Section 201. Auditing Department.
Section 202. Duties of the Auditor.
Section 203. Responding to City Auditor requests.
Section 204. Officials to assist.
Section 205. Failure to comply.
Section 206. Disclosure statement to accompany.
Section 207. Additional duties.

### Section 200. Salary of Auditor and participation in deferred compensation plan.

**A. Salary.** The Auditor of the City of Tulsa shall receive an annual salary as prescribed in Tulsa Charter Article IV, Section 2, payable as employees of the City are paid.

**B. Deferred compensation.** The Auditor shall be eligible to participate in any deferred compensation plan offered to City employees by the City of Tulsa. In lieu of pension plan contributions, the City shall contribute to the Auditor's deferred compensation account a percentage of the Auditor's salary to equal to one-half (½) of the Employer contributions to the Municipal Employees' Retirement Plan, as provided in Title 28 of Tulsa's Revised Ordinances, Section 300.

*(Ord. No. 25276, § 2, 4-17-2024)*

### Section 201. Auditing Department.

The Auditing Department shall consist of the City Auditor, Deputy City Auditor and such assistants as the Council may provide.

### Section 202. Duties of the Auditor.

The City Auditor shall perform the duties as set forth in Article IV, Section 3, of the Charter of the City of Tulsa.

### Section 203. Responding to City Auditor requests.

It is the policy of the City of Tulsa that every City of Tulsa elected official, officer or employee; member appointed by the City of Tulsa to a board, authority, commission or committee; or Trustee appointed by the City to a public trust with the City of Tulsa as a beneficiary; or member appointed by the City of Tulsa to the Tulsa Development Authority (collectively referred to as "official") shall respond fully and truthfully to lawful inquiries made in the course of an official investigation, audit, or inquiry of the City Auditor, or his office, when such investigation, audit or inquiry is conducted within the scope of his duties.

*(Ord. No. 22156, § 1, 10-15-2009)*

### Section 204. Officials to assist.

It is the policy of the City of Tulsa that every City of Tulsa elected official, officer or employee; member appointed by the City of Tulsa to a board, authority, commission or committee; or Trustee appointed by the City to a public trust with the City of Tulsa as a beneficiary; or member appointed by the City of Tulsa to the Tulsa Development Authority (collectively referred to as "official") shall provide documents or records, or acceptable

copies thereof, pursuant to any lawful request made in the course of an official investigation, audit or inquiry of the City Auditor, or his office, when such investigation, audit or inquiry is conducted within the scope of his duties.

*(Ord. No. 22156, § 2, 10-15-2009)*

### Section 205. Failure to comply.

Any unjustified failure to comply with a lawful request from the City Auditor's Office as provided in this chapter shall constitute a breach of the official City policy herein established, and may constitute sufficient grounds for the discipline of such official, up to and including termination or removal from office.

The City Auditor's Office shall advise the appropriate appointing authority of the failure of any employee to comply with such a request, and shall advise the Mayor of the failure of a member of any board, authority, commission, trust or the Tulsa Development Authority to comply with such a request, and shall provide as much information as necessary for the appointing authority to determine appropriate action. Any action taken shall be consistent with applicable law, where such law prescribes the manner and reasons for removal as a member of a board, authority, commission, trust or Tulsa Development Authority.

*(Ord. No. 22156, § 3, 10-15-2009)*

### Section 206. Disclosure statement to accompany.

Any summary or other record of the response of an official, whether recorded by print, electronic or other means, given as part of an investigation by the City Auditor's Office as provided for herein shall include a statement disclosing that the response was given pursuant to this chapter.

*(Ord. No. 22156, § 4, 10-15-2009)*

### Section 207. Additional duties.

The City Auditor shall examine periodically the City of Tulsa's performance, governance processes, risk management processes and systems of internal controls, and report in writing the results of such examinations to the Mayor and the City Council.

*(Ord. No. 23162, § 1, 8-21-2014)*

## CHAPTER 3. COUNCIL

Section 300. Council meetings.
Section 301. Presiding officer.
Section 302. Rules for the transaction of business.
Section 303. Ordinances—Subject.
Section 304. Ordinances—On agenda for two meetings.
Section 305. Effective date of ordinances; resolutions.
Section 306. Journal of proceedings.
Section 307. Certification of minutes.
Section 308. Charter review.
Section 309. Salary of councilors and participation in deferred compensation plan.
Section 310. Disorderly conduct in Council or Committee, or violation of Council Rules.
Section 311. Contempt of Council.
Section 312. Ordinance and resolution delivery by City Clerk.
Section 313. Donations.

### Section 300. Council meetings.

**A. Regularly scheduled meetings.** The Council of the City of Tulsa shall have no less than two (2) regularly scheduled meetings each month at City Hall and such other regularly scheduled meetings as the Council shall deem necessary.

**B. Special meetings.** The Council, the Mayor or one-third (1/3) of the members of the Council may call special meetings of the Council according to the provisions of the Amended Charter of the City of Tulsa.

**C. Open Meeting Act.** All meetings of the Council, both regularly scheduled and special, shall be in conformance with the Oklahoma Open Meeting Act.

*(Ord. No. 17581)*

### Section 301. Presiding officer.

The Chairman shall preside over the sessions of the Council, preserve order and decorum and officially proclaim the will of the Council in all matters in which any action has been taken.

### Section 302. Rules for the transaction of business.

The Council shall adopt and file with the City Clerk rules for the transaction of its business. In the absence of a rule to the contrary, the Council shall be guided by Robert's Rules of Order.

### Section 303. Ordinances—Subject.

Ordinances and resolutions shall be introduced in the Council in written or printed form. All ordinances or resolutions, except those adopting budgets, making appropriations or adopting a code of ordinances, shall be confined to one (1) subject, which shall be clearly expressed in the title. Ordinances adopting budgets and making appropriations shall be confined to budgets and appropriations.

### Section 304. Ordinances—On agenda for two meetings.

No ordinance shall be adopted until the subject thereof has been on the agenda of the Council for two (2) meetings; provided, this requirement may be waived by a vote of not less than two-thirds (2/3) of the entire membership of the Council.

## Section 305. Effective date of ordinances; resolutions.

Ordinances adopting budgets, making appropriations, pertaining to local improvements and assessments or adopted as an emergency measure shall take effect at the time stated therein. All other ordinances and resolutions shall take effect at the time stated therein, but not less than thirty (30) days from the date of first publication. Ordinances adopted by a vote of the electors shall take effect at the time stated therein or, if no time be stated, thirty (30) days after the election. An ordinance or resolution adopted as an emergency measure to provide for the immediate preservation of the public peace, health, welfare or safety shall describe the emergency in a separate section. The vote of at least two-thirds (2/3) of the entire membership of the Council shall be required to adopt any ordinance or resolution as an emergency measure.

*(Amended Charter, Article III, Section 10)*

## Section 306. Journal of proceedings.

The final action of the Council in each and every matter brought to its attention shall appear in a Journal of Proceedings of the Council. All motions together with seconds, postponements and other action taken which affect the progress, status or the final action taken on any matter presented to the Council for its consideration shall be recorded in the Journal of Proceedings kept by the Secretary of the Council.

## Section 307. Certification of minutes.

It shall be the duty of the Secretary of the Council to certify that the minutes of the previous meeting as they thus appear are true and correct entries on any and all acts taken by the Council at its previous meeting.

## Section 308. Charter review.

Pursuant to Article II, Amended Charter, Section 14, the Council shall provide for the periodic review of the amended Charter of the City of Tulsa and for the submission to the qualified electors of the City such amendments as are necessary to provide for representative, efficient and economical administration of City government as follows:

**A. City Attorney to provide schedule.** On or before October 15 of every odd-numbered year, the City Attorney shall provide to the Council a schedule for soliciting and considering proposed amendments to the amended Charter of the City of Tulsa. The Council may adopt, amend or reject the schedule. Any schedule adopted by the Council shall be filed in the Office of the City Clerk and shall be available for public inspection on or before November 15 of each odd-numbered year.

**B. Council to submit necessary amendments to qualified electors.** The City Council shall submit to the qualified voters of the City proposed Charter amendments necessary to provide for representative, efficient and economical administration of city government. Proposed Charter amendments shall be submitted for approval or rejection by the qualified voters of the City as provided by the Oklahoma Constitution and laws of Oklahoma.

*(Ord. Nos. 17476, 18054, 21900; Ord. No. 21900, § 1, 7-31-2008; Ord. No. 23831, § 1, 12-13-2017)*

## Section 309. Salary of Councilors and participation in deferred compensation plan.

**A. Salary.** Each of the nine (9) City Councilors of the City of Tulsa, shall receive an annual salary as prescribed in Tulsa Charter Article II, Section 2, payable as employees of the City are paid.

**B. Deferred compensation.** City Councilors shall be eligible to participate in any deferred compensation plan offered to City employees by the City of Tulsa. In lieu of pension plan contributions, the City shall contribute to a City Councilor's deferred compensation account a percentage of the City Councilor's salary to equal to one-half (½) of the Employer contributions to the Municipal Employees' Retirement Plan, as provided in Title 28 of Tulsa's Revised Ordinances, Section 300.

*(Ord. No. 20191; Ord. No. 24776, § 1, 2-9-22; Ord. No. 25276, § 3, 4-17-2024)*

## Section 310. Disorderly conduct in Council or Committee, or violation of Council Rules.

**A. Definition.** "Disorderly Conduct in Council or Committee" shall mean and include:

**1.** Disruptive, obstructive or insolent behavior that is unruly, tumultuous, insulting or disrespectful, committed during any meeting of the City Council or any meeting of a duly created committee of the City Council;

**2.** Any breach of the peace, noise or disturbance, so near to the Council or committee as to interrupt proceedings;

**3.** Wilful refusal to be sworn as a witness; or

**4.** Wilful refusal to answer any legal or proper question after being sworn as a witness.

**B. Finding.** A finding of disorderly conduct in Council or Committee, or of a violation of Council Rules, shall be made upon an affirmative vote of the majority of the quorum of the Council, except that a vote of two-thirds (⅔) of the entire membership of the Council shall be required to impose a fine on a Council member.

**C. Disorderly conduct—observation and intent.** The Council may impose a sanction for disorderly conduct in Council or Committee only if the conduct at issue occurred in the immediate view and presence of the Council or Committee, or so near to it as to interrupt its proceedings; and

**1.** It is clear from the identity of the offender and the character of his or her acts that the disorderly conduct is wilfully contemptuous; or

**2.** The conduct warranting sanction is preceded by a clear warning that the conduct is impermissible and that specified sanctions may be imposed for its repetition.

**D. Notice and hearing.** Before imposing any punishment for disorderly conduct or violation of Council Rules, the Council shall give the alleged offender notice of the charges and an opportunity to present evidence or argument relevant to guilt or punishment.

**E. Penalties.** Every person found guilty of disorderly conduct in Council or Committee, or of a violation of Council Rules, shall be punished by a fine of not more than One Hundred Dollars ($100.00) for each offense, which shall be collected in the same

manner provided for the collection of other debts owed to the City, and/or removal from the Council or Committee meeting or from the area so near to it as to allow interruption of its proceedings.

*(Ord. No. 20891)*

### Section 311. Contempt of Council.

**A. Definition.** Contempt of Council shall mean and include:

**1.** Wilful disobedience of any process or order lawfully issued or made by the City Council, or

**2.** Wilful resistance to the execution of a lawful process or order of the City Council, in the course or scope of an investigation or hearing conducted under Article II, Section 17 of the Tulsa City Charter.

**B. Finding and referral.** Upon an affirmative vote of a majority of the quorum of the Council, allegations of contempt of Council shall be referred to the City Attorney for review and, if appropriate, the filing of a charge of contempt of Council in the Municipal Criminal Court of the City of Tulsa.

**C. Penalties.** Every person found in contempt of Council is guilty of a misdemeanor offense and shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period of not more than six (6) months, or by both such fine and imprisonment.

*(Ord. No. 20890)*

### Section 312. Ordinance and resolution delivery by City Clerk.

The City Clerk shall, unless otherwise directed by the Council or law, deliver an ordinance or resolution adopted by the Council by 5:00 p.m. of the second full business day after the City Clerk receives the adopted ordinance or resolution to the office of the Mayor in a manner sufficient to begin the time frame for the Mayor to either approve or veto the ordinance or resolution as set forth in the City Charter.

*(Ord. No. 21540)*

### Section 313. Donations.

**A.** The City Council is the sole authority of the City of Tulsa authorized to accept upon behalf of the City of Tulsa, any gift, testamentary or otherwise, whether unconditional or conditional, of any property, whether real or personal or both, or service to the City of Tulsa or any of its boards, commissions, or agencies thereof; and, in such instances, the property, or, in the case of real property or intangible personal property, the muniments of title thereto, shall be delivered to, and any necessary receipts therefor shall be executed by the City Council. Any such gifts not expressly accepted by the City Council shall not be deemed accepted through any action or inaction by the City of Tulsa, its officers, employees, authorities, boards, or commissions.

**B.** The City Council may approve such rules and regulations necessary to carry out the purposes and intents of this section, including authorizations of acceptance within defined parameters.

*(Ord. No. 22304, § 1, 8-19-2010)*

## CHAPTER 4. CAPITAL IMPROVEMENT PLAN AND CAPITAL BUDGET

Section 400. Definitions.
Section 401. Preparation and submission of Capital Improvements Plan to Council.
Section 402. Preparation and submission of Capital Budget to Council.
Section 403. Approval of Capital Improvement Plan and Capital Budget.

### Section 400. Definitions.

For the purposes of this chapter, each of the following words and phrases shall have the meanings given herein:

**A. Capital Improvement** shall mean any significant physical acquisition, construction, replacement or improvement to a city service delivery system that has a minimum useful life of five (5) years.

**B. Capital Improvements Plan** shall mean the adopted five-year schedule of specific capital improvement projects and accompanying revenue allocations which shall be updated annually.

**C. Capital budget** shall mean the first year of the capital plan, i.e., the budget for capital projects in the upcoming fiscal year.

*(Ord. No. 18148)*

### Section 401. Preparation and submission of Capital Improvements Plan to Council.

The Mayor shall prepare and submit to the Council annually, on or before the first day of May, a Capital Improvements Plan ("Plan") for the City of Tulsa. In addition to the form and content requirements imposed by the statutes of the state of Oklahoma, the City Charter and the Revised Ordinances of the City of Tulsa, the Plan shall specifically list each capital improvement project for the next five (5) fiscal years by City department. The Plan shall include specifically: the estimated cost of each capital improvement project in dollars rounded to the nearest thousand, the Council District or Council Districts served by each capital improvement project, the priority of each capital improvement project in relationship to the City's overall Capital Improvements Plan, a statement as to whether there has been a change in priority with respect to the listed project since the adoption of the last Capital Improvements Plan, a brief explanation supporting the priority given to each listed project and a brief explanation supporting any designated change in priority given to a particular listed project.

*(Ord. No. 18148)*

### Section 402. Preparation and submission of Capital Budget to Council.

The Mayor shall prepare and submit to the Council annually, on or before the first day of May, a Capital Budget. The Capital Budget shall be submitted to the Council in the form as required by the statutes of the state of Oklahoma, the City Charter and the Revised Ordinances of the City of Tulsa.

*(Ord. No. 18148)*

## Section 403. Approval of Capital Improvement Plan and Capital Budget.

The Capital Improvement Plan and Capital Budget shall be approved in compliance with the procedure established by the statutes of the state of Oklahoma, the City Charter and the Revised Ordinances of the City of Tulsa.

*(Ord. No. 18148)*

# TITLE 5 BOARDS, COMMISSIONS AND COMMITTEES

**Chapter 1. Human Rights Commission**
**Chapter 2. Commission on Concerns of the Disabled (Repealed)**
**Chapter 3. Arts Commission of the City of Tulsa**
**Chapter 4. Economic Development Commission of the City of Tulsa (Repealed)**
**Chapter 5. Greater Tulsa Area Indian Affairs Commission**
**Chapter 6. Greater Tulsa Area Hispanic/Latinx Affairs Commission**
**Chapter 7. Tulsa Women's Commission**
**Chapter 8. Asian Affairs Commission**
**Chapter 9. Disqualification and Removal of Appointees**
**Chapter 10. Tulsa Youth Council**
**Chapter 11. Audit Committee**
**Chapter 12. Greater Tulsa Area African-American Affairs Commission**
**Chapter 13. Animal Welfare Commission**
**Chapter 14. Tulsa Route 66 Commission**

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## CHAPTER 1. HUMAN RIGHTS COMMISSION*

Section 100. Declaration of policy.
Section 101. Definitions.
Section 102. Human Rights Commission.
Section 103. Mayor to provide staff to assist the Commission and to implement the provisions of this chapter.
Section 104. Discrimination in housing prohibited.
Section 105. Discrimination in public accommodations prohibited.
Section 106. Other prohibited acts.
Section 107. Enforcement procedures.
Section 108. Notices.
Section 109. Penalties.
Section 110. Nondiscriminatory employment requirements for persons who contract with the City.
Section 111. Discrimination against qualified persons with disabilities prohibited.
Section 112. Municipal offices, personnel and agencies to assist.

### Section 100. Declaration of policy.

**A.** It is the policy of the City of Tulsa that all persons shall have an equal opportunity commensurate with their economic capacity to purchase, rent, lease or occupy housing and that all persons shall have an equal opportunity to avail themselves of public accommodations without regard to race, color, religion, sex, national origin, ancestry, marital status, familial status, sexual orientation, gender identity or disability;

**B.** It is the policy of the City of Tulsa that all persons shall have an equal opportunity for employment and to participate in the social and economic life of the City without regard to race, color, religion, sex, national origin, ancestry, age, disability or medical condition due to pregnancy;

**C.** It is the policy of the City of Tulsa that all programs, services and activities of the City or any of its instrumentalities or agencies shall be accessible to individuals with disabilities as required by law;

**D.** It is the policy of the City of Tulsa to encourage the utilization of small business enterprises by persons who contract with the City;

**E.** It is the policy of the City of Tulsa to not grant preferential treatment to, or discriminate against, any individual or group who contracts with the City on the basis of race, color, sex, ethnicity, or national origin; and

**F.** It is the policy of the City of Tulsa to encourage the employment of residents of the City and the Metropolitan Statistical Area ("MSA") in public improvement contracts.

*(Ord. No. 23280, § 1, 4-16-2015)*

***Editor's note—**Ord. 23160, § 1, adopted August 14, 2014, Chapter 1 in its entirety to read as herein set out. Prior to inclusion of said ordinance, Chapter 1 pertained to similar subject matter and derived from Ord. Nos. 16963, 16986, 17132, 17807, Ord. 22325, §§ 1—3, 10-28-2010, Ord. 22650, § 1, 4-12-2012. See also the Code Comparative Table and Disposition List.

## Section 101. Definitions.

Unless otherwise provided, for the purposes of this chapter, the following words and phrases shall have the meanings given herein:

**A.** **City** shall mean the City of Tulsa, Oklahoma, a municipal corporation.

**B.** **Commission** shall mean the Human Rights Commission of the City of Tulsa.

**C.** **Compliance Official** shall mean the Mayor of the City of Tulsa or the person or persons designated by the Mayor to enforce the provisions of this chapter.

**D.** **Council** shall mean the legislative body of the City of Tulsa.

**E.** **Disability** shall refer to an individual who has a physical or mental impairment which substantially limits one (1) or more of his major life activities, who has a record of having such an impairment or who is regarded as having such an impairment. Disability shall not mean or include the current illegal use of a controlled substance as defined in Section 102 of the United States Controlled Substance Act, 21 U.S.C. § 812, transvestism, transsexualism, pedophilia, exhibitionism, voyeurism, gender identity disorders not resulting from physical impairment, other sexual behavior disorders, compulsive gambling, kleptomania, pyromania and psychoactive substance use disorders resulting from the illegal use of drugs.

**F.** **Discriminate** or **discrimination** shall mean segregation or difference in treatment.

**G.** **Mayor** shall mean the Mayor of the City of Tulsa or his designated representative.

**H.** **Person** shall mean any individual, firm, company, association, partnership or group, their agents, servants or employees. As applied to partnerships or other associations, person shall include their members, officers and directors. As applied to corporations, person shall include their officers and directors. The term person shall also include a fiduciary, whether or not appointed by the court, and shall include owner.

## Section 102. Human Rights Commission.

**A.** **Membership.** The Human Rights Commission of the City of Tulsa shall consist of no more than fifteen (15) nor fewer than twelve (12) members appointed by the Mayor, subject to confirmation by a majority vote of the entire membership of the Council. All members shall, as a condition of their appointment and continued service, be qualified electors and maintain their principal residence within the city limits of the City of Tulsa. The membership shall be constituted as follows: one (1) member who is serving on the African-American Affairs Commission; one (1) member who is serving on the Hispanic Affairs Commission; one (1) member who is serving on the Indian Affairs Commission; one (1) member who is serving on the Tulsa Women's Commission; one (1) member who is an advocate for the rights of individuals with disabilities or the provision of services to them, but it is not necessary that this member have a disability as defined in Subsection 101.E. herein; one (1) member who is an advocate for the rights of the lesbian, gay, bisexual, transgender, and queer communities; one (1) member who is an advocate for issues uniquely impacting Tulsa's community of veterans; and the remaining members at large. All members shall serve without compensation.

**B.** **Vacancies.** In the event of the death, resignation, or disqualification of a member, or if a member ceases to be a member of a represented commission or council listed in Subparagraph A. of this section, or if a member is otherwise unable to serve, the

position becomes immediately vacant, and the Mayor shall appoint, subject to confirmation by the Council, a qualifying individual to fill the unexpired membership term provided in Subparagraph C. of this section.

**C. Terms.** The terms of all four (4) members representing a commission or council listed in Subparagraph A. of this section shall be calculated as beginning on and from July 1, 2019, regardless of their date of appointment and confirmation, and such members shall serve one-year terms. The remaining members, each of whom are currently serving terms on the Human Rights Commission, shall continue serving the remainder of their appointed terms. Thereafter, the terms of such members shall be three (3) years commencing from July 1 of the year the prior term expired. All appointees, except those who create a vacancy pursuant to Paragraph B. of this section, shall hold their offices until their successors have been appointed and confirmed.

**D. Meetings, quorum, voting.** All meetings of the Commission shall be open to the public as provided by the laws of Oklahoma. Not less than one-half of the duly appointed members of the Commission shall constitute a quorum. All decisions of the Commission shall require a majority vote of those present and shall be made only at meetings at which at least a quorum of its members is in attendance.

**E. Powers, duties, responsibilities.** The Commission shall:

**1.** Promulgate rules and regulations governing the conduct of its meetings;

**2.** Conduct such activities or hearings necessary to implement the provisions of this chapter;

**3.** Plan annually to set priorities and objectives for accomplishing the policies stated herein;

**4.** Develop an annual budget;

**5.** Plan and conduct meetings, surveys, educational and other programs concerning human and civil rights;

**6.** Utilize the resources of individuals and groups within the community to improve intergroup relations;

**7.** Identify and enlist community resources to secure and extend democratic rights, opportunities and practices and to encourage community support for human and civil rights programs;

**8.** Issue such publications and reports which will tend to promote good will and reduce discrimination;

**9.** Cooperate with local, state and federal agencies to effect equal opportunity in the social and economic life of the community; and

**10.** Report to the Mayor and Council annually on the disposition of all complaints referred to the Commission and on other matters appropriate to be brought before the Council, including recommendations necessary or desirable to carry out the purposes of this chapter.

*(Ord. No. 24196, § 1, 7-31-2019; Ord. No. 25114, § 4, 8-23-2023)*

## Section 103. Mayor to provide staff to assist the Commission and to implement the provisions of this chapter.

**A.** The Mayor shall designate such City employees as may be necessary to assist the Commission and to accomplish the duties set forth in this chapter or hereafter assigned. The persons so designated shall:

**1.** Conduct compliance reviews to determine whether or not persons who contract with the City are complying with the terms of Section 110 herein;

**2.** Conduct such other compliance reviews as are required for the acceptance of grants from the state or federal governments; and

**3.** Receive or initiate and investigate complaints of discrimination and other acts and practices prohibited by this chapter, enter into conciliation agreements when appropriate, and refer complaints to the Manager of the Criminal Division of the Legal Department when appropriate.

**B.** The compliance official shall have the right, power and authority subject to the approval of the Commission, the Mayor and the Council, to promulgate rules and regulations necessary for the implementation and administration of this chapter. A copy of such rules and regulations, if promulgated and approved, shall be on file in the Office of the City Clerk.

**C.** In conducting investigations pursuant to the provisions of this chapter, the compliance official shall have access at all reasonable times to premises, records, documents and other possible sources of evidence. The compliance official may examine and copy records and may take testimony or statements from such persons as may be reasonably necessary in conducting such investigations.

**D.** The Mayor may direct, from time to time, such other activities as may be necessary to implement the provisions of this chapter.

## Section 104. Discrimination in housing prohibited.

**A. Definitions.** For the purposes of this section, the following words and phrases shall have the meanings given herein:

**1. Familial status** shall refer to one (1) or more individuals who have not attained the age of eighteen (18) years who are domiciled with (a) a parent or other person having legal custody of such individual or individuals, or (b) the designee of a parent or other person having legal custody with the written permission of such parent or person having legal custody.

**2. Gender identity** shall mean a person's identity, expression, or physical characteristics, whether or not traditionally associated with one's biological sex or one's sex at birth, including transsexual, transvestite, and transgendered, and including a person's attitudes, preferences, beliefs, and practices pertaining thereto.

**3. Housing unit** shall mean any single-family or multi-family dwelling located in the City of Tulsa, including a mobile home trailer, which is designed to be used and is used or occupied as the home, homesite, residence or sleeping place of one (1) or more human beings.

4. **Lending institution** shall mean any bank, mortgage company, insurance company, savings and loan association, credit union or any other person or organization regularly engaged in the business of lending money or guaranteeing loans.
5. **Owner** shall mean owner, lessee, sublessee, assignee, agent or any other person having the right of ownership or possession or the right to sell, rent or lease any real property.
6. **Real property** shall mean any parcel or parcels of land, whether or not contiguous, owned or otherwise subject to the control of one (1) or more persons, containing or available for the building of one (1) or more housing units.
7. **Sexual orientation** shall mean the actual or perceived state of heterosexuality, homosexuality or bisexuality.

**B. Prohibited acts.** The following acts shall be unlawful and an offense:

1. For any person to discriminate in publishing, circulating, displaying, issuing or posting any written or printed communication or advertisement, lease or sublease, assignment, transfer or listing of real property which indicates any preference, limitation, specification or discrimination based on race, color, religion, disability, national origin, ancestry, sex, marital status, familial status, sexual orientation, or gender identity;
2. For any person to induce or solicit or attempt to induce or solicit any real property listings, sale or transaction by representing that the presence or anticipated presence of persons of any race, color, religion, disability, national origin, ancestry, sex, marital status, familial status, sexual orientation, or gender identity in the block, neighborhood or area in which the property is located will or may have results such as the following:
   a. Lowering property values,
   b. A change in the racial, religious or ethnic composition of the block, neighborhood or area,
   c. Increase in criminal or anti-social behavior in the area, or
   d. Decline in the quality of schools in the area;
3. For any person to fail or refuse to sell, rent, lease, sublease, assign or offer for inspection any real property because a person associates with persons of a particular race, color, religion, disability, national origin, ancestry, sex, marital status, familial status, sexual orientation or gender identity;
4. For any lending institution to discriminate against any person because of race, color, religion, disability, national origin, ancestry, sex, marital status, sexual orientation or gender identity in lending, appraising, guaranteeing loans, accepting mortgages or otherwise making available funds for the purchase, acquisition, construction, rehabilitation, repair or maintenance of any real property; or
5. For any lending institution to fail or refuse to lend, guarantee loans, accept mortgages or otherwise make available funds for the purchase, acquisition, construction, rehabilitation, repair or maintenance of any real or personal property in an area because the area is composed of members of a particular race, color, religion, disability, national origin, ancestry, sex, marital status, sexual orientation or gender identity or to give less favorable loan terms for the purchase, acquisition,

construction, rehabilitation, repair or maintenance of real or personal property in an area if such practices have a discriminatory effect against a particular class, the members of which consist of persons of a particular race, color, religion, disability, national origin, ancestry, sex, marital status, sexual orientation or gender identity.

**C. Exempt practices and acts.** Nothing in this section shall:

**1.** Apply to the rental of rooms or units in any owner-occupied house or dwelling used exclusively as a rooming house; or

**2.** Bar any religious institution or organization, or any charitable or educational organization which is operated, supervised or controlled by a religious organization from limiting admission to or giving preference in housing accommodations to persons of the same religion.

*(Ord. No. 23280, § 1, 4-16-2015)*

## Section 105. Discrimination in public accommodations prohibited.

**A. Place of public accommodation defined.** For the purposes of this section, place of public accommodation shall mean any place, either licensed or unlicensed, which is open to or accepts or solicits the patronage of the general public, which supplies goods or services to the general public, and shall include but not be limited to the following types of services or facilities: hotels, inns or other establishments which provide lodging to transient guests; restaurants, cafeterias, lunchrooms, lunch counters, soda fountains or other facilities principally engaged in selling or offering for sale food for consumption on the premises; child care facilities; motion picture houses, theaters, concert halls, sports arenas, stadiums or other places of exhibition or entertainment; bowling alleys and amusement parks; retail establishments; lending institutions; learning institutions; transportation carriers, mobile home parks; barber shops; beauty shops, bars, clubs, taverns or other facilities engaged in selling or offering for sale alcoholic beverages for consumption upon the premises; and public burial facilities when such facilities are owned or operated by any cemetery corporation or burial association; except that a private club is not a place of public accommodation if its policies are determined by its members and its facilities or services are available only to its members and their bona fide guests.

**B. Prohibited acts.**

**1.** It shall be unlawful and an offense for any owner, manager, proprietor, concessionaire, custodian, lessee, agent, employee or association of a place of public accommodation, because of a person's race, color, religion, ancestry, national origin, sex, age or disability:

**a.** To deny or refuse any privilege, facility, goods, services, merchandise, commodity or accommodation; or

**b.** To segregate or require the placing of any person in any separate section or area of the premises or facility of a place of public accommodation.

**2.** It shall be unlawful and an offense for any person to print, circulate, post, maintain or display or cause to be printed, circulated, posted, maintained or displayed any advertisement, notice or sign to the effect that any of the accommodations,

facilities, privileges, goods, services or merchandise of a place of public accommodation will be withheld from or refused or denied to any person based on race, color, religion, national origin, ancestry, disability, sex or age.

**C. Exemptions.** Nothing in this section shall be construed to:

**1.** Grant any person a right to enter upon the premises of a place of public accommodation for any purpose other than the express and obvious purpose or purposes for which the place of public accommodation typically provides to the general public;

**2.** Grant any person a right to enter upon the premises of a place of public accommodations except during its normal hours of operation;

**3.** Grant a right to enter upon the premises of a place of public accommodation to any person who is intoxicated, disorderly, vagrant, loitering, begging. disturbing the peace, soliciting, selling, advertising, vending goods or presenting himself in any manner, state, dress, demeanor or condition for which the general public, regardless of race, color, religion, disability, national origin, ancestry, sex or age, would be excluded; or

**4.** Grant a right to enter upon the premises of a place of public accommodation to any person who is excluded by law because such person is under the legal age.

**5.** Prevent any place of public accommodation from maintaining separate restrooms or dressing rooms for men and women.

### Section 106. Other prohibited acts.

It shall be unlawful and an offense for any person:

**A.** To retaliate or discriminate in any manner against a person because he has opposed a practice declared an offense by this chapter or because he has filed a complaint, made a charge, testified, assisted or participated in any investigation, proceeding or hearing authorized by this chapter;

**B.** To aid, abet, incite, compel or coerce or attempt to aid, abet, incite, compel or coerce a person to engage in any of the acts or practices declared an offense by this chapter;

**C.** To obstruct or prevent or attempt to obstruct or prevent a person from complying with the provisions of this chapter or any conciliation agreement issued under the provisions of this chapter;

**D.** To resist, prevent, impede or interfere with the Commission or any of its members, the compliance official or any City employee in the lawful performance of his or her duties under this chapter;

**E.** As a party to any conciliation agreement made pursuant to the provisions of this chapter, to violate the terms of such agreement; or

**F.** To conspire with any other person or persons to perform any of the acts declared unlawful by this section.

### Section 107. Enforcement procedures.

**A. Complaint.** Any person claiming to be aggrieved by any act declared unlawful and an offense by Sections l04, l05 and l06 (hereinafter "complainant") or the compliance official may file a verified complaint, setting forth the particulars of the alleged offense

and such other information as may be required by the compliance official. Such complaints must be filed with the City Clerk and the compliance official within one hundred eighty (180) days after the alleged offense has been committed.

**B. Notice and answer.** The person against whom a complaint has been filed (hereinafter "respondent") shall be notified and served with a copy of the complaint. Such notice shall advise that the respondent may file a verified answer to the complaint with the compliance official within ten (10) days of receiving such notification.

**C. Investigation and resolution.** Within sixty (60) days after the filing of any complaint, the compliance official shall make an investigation of the complaint.

**1.** If, after investigation, the compliance official determines that an offense has not been committed, the compliance official shall issue an order setting forth the findings of the investigation and dismissing the complaint. The order shall be sent to the complainant and respondent.

**2. Probable cause, notice, conciliation.** If, after investigation, the compliance official determines that there is probable cause to believe that an offense has occurred, the compliance official shall notify both the complainant and respondent, and shall attempt to negotiate a conciliation agreement between the parties.

**3. Conciliation agreement.** The terms of any conciliation agreement shall require the respondent to refrain from committing the unlawful discriminatory act in the future and may include damages to the complainant and such other provisions as may be agreed upon by the complainant, the respondent and compliance official. A conciliation agreement must be in writing, signed by the complainant, respondent and compliance official.

**4. Referral of complaints to state or federal agencies or to Manager of Criminal Division of the Legal Department.** If the compliance official determines that a conciliation agreement cannot be reached, he may refer the findings of the investigation to appropriate state or federal agencies or he may transmit his findings to the Manager of the Criminal Division of the Legal Department.

## Section 108. Notices.

Unless otherwise specifically provided herein, all notices required by the provisions of this chapter shall be served by mailing each notice to the addressee's last known address, by United States mail, certified, return receipt requested.

## Section 109. Penalties.

Unless otherwise provided herein, any person violating any of the provisions of Sections 104, 105 and 106 herein shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00) excluding costs, and each day such a violation occurs shall be deemed a separate offense.

## Section 110. Nondiscriminatory employment requirements for persons who contract with the City.

**A. Definitions.** For the purposes of this section, the following words and phrases shall have the meanings given herein:

**1. Age** shall mean the age of individuals who are over forty (40) years of age.

2. **Contractor** shall mean any person, including a depository, who bids or supplies labor, materials, goods or services, including professional services, to the City of Tulsa or any subcontractor of a contractor.

3. **Disability** shall mean an individual who has a physical or mental impairment which substantially limits one (1) or more of his major life activities, who has a record of such an impairment, or who is regarded as having such an impairment. Disability shall not mean or include the current illegal use of a controlled substance as defined in Section 102 of the United States Controlled Substance Act, 21 U.S.C. § 812, transvestism, transsexualism, pedophilia, exhibitionism, voyeurism, gender identity disorders not resulting from physical impairment, other sexual behavior disorders, compulsive gambling, kleptomania, pyromania and psychoactive substance use disorders resulting from the illegal use of drugs.

4. **Person** shall mean an individual, partnership, association, corporation, legal representative or a combination thereof and any labor organization furnishing or referring employee applicants to any employer or contractor doing business with the City of Tulsa.

5. **Subcontractor** shall mean any person who undertakes, by a separate agreement with a contractor, to fulfill all or a part of the latter's contractual obligation with the City of Tulsa.

6. **Unlawful employment practice** shall mean, because of race, religion, color, national origin, ancestry, sex, age, disability or medical condition due to pregnancy:

   **a.** To fail or refuse to hire, discharge or otherwise to discriminate against any individual with respect to compensation, terms conditions or privileges of employment;

   **b.** To fail or refuse to admit or employ any individual in an organization, apprenticeship, joint labor management or other training or retraining program;

   **c.** To limit, segregate or classify employees or applicants for employment in a way which deprives the individual of employment opportunities; or

   **d.** To retaliate or discriminate against an individual because the individual has made a charge, testified, assisted or participated in an investigation, proceeding or hearing pursuant to this section; provided, however, it shall not be an unlawful employment practice to do any of the foregoing if the act is based upon a bona fide occupational qualification, reasonably necessary to the normal operation of the particular business or enterprise, or, in the event of disability, if a reasonable accommodation cannot be accomplished without undue hardship. "Reasonable accommodation" and "undue hardship" shall have the meanings given in Title 5, Section 111, Tulsa Revised Ordinances.

**B. Requirements of City contractor.**

1. No contractor shall engage in any unlawful employment practices.

2. No bid proposals shall be considered, no purchase order issued, no contract awarded nor payment made by the City of Tulsa unless the contractor agrees:

   **a.** That he shall not engage in any unlawful employment practice;

**b.** That he shall post notices of nondiscrimination in conspicuous places open to employees and applicants, such notices to be obtained from the compliance official;

**c.** That he shall state, in solicitations or advertisements for employees, that applicants will receive consideration for employment without regard to race, color, religion, national origin, ancestry, sex, age or disability;

**d.** That he shall obtain from any labor union or organization furnishing labor or services to the contractor a written statement that the union or organization will not engage in an unlawful employment practice;

**e.** That he shall cooperate with the City of Tulsa and the compliance official in any investigation, compliance review or conciliation effort made to insure that no unlawful employment practice occurs;

**f.** That he shall require any subcontractor to comply with this section;

**g.** That he shall refrain from knowingly contracting with any person declared by the City of Tulsa to be ineligible to do business with it;

**h.** That he shall indemnify the City for any liability incurred by the City as a result of the contractor's discriminatory acts;

**i.** That in the performance of any contract with the City of Tulsa, he shall be in compliance with the Americans with Disabilities Act, 42 U.S.C. § 12101, et seq.; and

**j.** That he shall comply with the terms of any conciliation agreement made with the compliance official of the City of Tulsa.

**k.** That he shall comply with any additional requirements imposed on a particular contract or project as the result of State or federal funding.

**3.** A contractor shall furnish, within ten (10) working days, information required by the compliance official to determine compliance with this section, and shall permit reasonable access by the compliance official to contractor's facilities, employees and to books, papers, records, reports or accounts in the possession or under control of the contractor which are necessary to determine compliance.

**C. Jurisdiction and powers of the Compliance Official and Human Rights Commission.**

**1.** The compliance official shall receive, review, investigate and, whenever possible, conciliate complaints of any unlawful employment practice or any other violation of this section.

**2.** The compliance official shall have the power to initiate and conduct investigations and compliance reviews of contractors and potential contractors. The compliance official and Commission shall have the power to take such action with respect thereto as will, in their judgment, ensure compliance with the provisions of this section and with its rules and regulations.

**D. Complaint and conciliation procedure.**

**1.** Any person claiming to be aggrieved by an unlawful employment practice or other violation of this section (hereinafter "complainant") shall, within one hundred eighty (180) days of the alleged act of discrimination, file with the compliance official a verified complaint setting forth the particulars of the alleged act of

discrimination or other violation of this section and containing such other information as may be required by the compliance official. The compliance official may also initiate a complaint alleging a violation of this section.

**2.** Within sixty (60) days after the filing of such complaint, the compliance official shall initiate or cause to be initiated an investigation of the complaint.

**3.** If, after investigation the compliance official determines that an offense has not been committed, the compliance official shall issue an order setting forth the findings of the investigation, dismissing the complaint and so notifying the complainant and the respondent.

**4.** If, after investigation, the compliance official determines that there is probable cause to believe that there has been a violation of this section, the compliance official shall immediately endeavor to eliminate or correct the practice or the violation by conciliation.

**E. Public hearings.**

**1.** In the event a conciliation attempt fails to correct or eliminate the complained of practice or violation, or if a conciliation agreement is violated, the Commission shall, upon reasonable notice to the parties, hold a public hearing. A hearing panel, comprised of no fewer than three (3) members of the Commission, may be appointed to conduct the hearing.

**2.** If a hearing panel is appointed and, after hearing, determines that there has been a violation of this section, it shall make written findings of fact and conclusions of law and shall forward them, together with its recommendations, to the parties involved and to the Commission.

**3.** If the Commission determines that there has been a violation of this section, it shall make written findings of fact and conclusions of law and forward them, together with its recommendations, to the parties and to the Mayor.

**F. Cancellation, termination, suspension, ineligibility and appeal.**

**1.** Upon receiving recommendations from the Commission, the Mayor may cancel, terminate or suspend all or a part of a contract and/or may declare the contractor ineligible for further business with the City of Tulsa for a period not to exceed one (1) year.

**2.** After the expiration of the period of ineligibility, a contractor may be reinstated upon written application to the Commission and completion of a compliance review. The Commission may recommend approval or denial of reinstatement to the Mayor who may adopt or reject the Commission's recommendation.

**G. Appeal.** Within ten (10) days following the Mayor's action, any party adversely affected by the Mayor's action may appeal to the City Council by filing a notice of appeal in the office of the City Clerk and providing notice to the other party and the compliance official. The appeal shall be heard by the City Council at its next available meeting after the filing of the notice of appeal.

**H. Council action.** The Council may uphold, reverse or modify the action of the Mayor.

## Section 111. Discrimination against qualified persons with disabilities prohibited.

**A. Policy.** It is the policy of the City of Tulsa to be in full compliance with the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, et seq.

**B. Definitions.** For the purposes of this section, the following words and phrases shall have the meanings given herein.

**1. Qualified individual with a disability** shall mean:

**a.** With respect to hiring practices: anyone who, with or without reasonable accommodation, can perform the essential functions of the job for which a person is applying; and

**b.** With respect to participation in or receiving benefits of the services, programs or activities of the City of Tulsa: an individual with a disability who, with or without reasonable modifications to rules, policies or practices, the removal of architectural, communication or transportation barriers, or the provision of auxiliary aids and services, meets the essential eligibility requirements for the receipt of services or the participation in programs or activities provided by a City.

**2. Disability** shall mean a physical or mental impairment that substantially limits one (1) or more of the major life activities of such individual, a record of such an impairment or being regarded as having such an impairment.

**3. Major use activity** shall include but not be limited to functions, such as caring for one's self, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning and working.

**4. Facility** shall mean all or any portion of buildings, structures, sites, complexes, equipment, rolling stock or other conveyances, roads, walks, passageways, parking lots or other real or personal property, including the site where the building, property, structure or equipment is located.

**5. Discriminate, discrimination** or **discriminatory act or practice** shall mean and include:

**a.** Limiting, classifying or segregating an applicant in a manner which adversely impacts his opportunities because of a disability;

**b.** Entering into a contract which subjects a qualified individual with a disability to prohibited discrimination, including but not limited to labor contracts, benefits contracts and training and apprenticeship programs;

**c.** Utilizing standards, criteria or methods of administration which have the effect of discriminating or perpetuate the discrimination of co-workers on the basis of a disability;

**d.** Denying equal job and benefit opportunities to a qualified individual who is a friend or associate of a person with a disability;

**e.** Not making a reasonable accommodation, unless it creates an undue hardship;

**f.** Using any job description or employment test or qualification standard to screen out a qualified individual with a disability; or

**g.** Failure to select and administer employment tests which reflect skills and abilities rather than reflecting a qualified individual's disability.

**6. Reasonable accommodation** shall include:

**a.** Making existing facilities accessible to and usable by individuals with disabilities; and

**b.** Restructuring of jobs, modifying work schedules, reassignment, acquisition or modification of equipment, modification or training and examinations, provisions of qualified readers and interpreters or similar accommodations.

**7. Undue hardship** shall mean a significant difficulty or expense in light of the following factors:

**a.** The nature and cost of accommodation;

**b.** The financial resources of City; and

**c.** The type of operation or operations of the City.

**8. Physical or mental impairment** shall mean:

**a.** Any physiological disorder or condition, cosmetic disfigurement or anatomical loss affecting one (1) or more of the following body systems: neurological; musculoskeletal; special sense organs; respiratory, including speech organs; cardiovascular; reproductive; digestive; genito-urinary; hemic and lymphatic; skin; and endocrine; or

**b.** Any mental or psychological disorder, such as mental retardation, organic brain syndrome, emotional or mental illness and specific learning disabilities. The term physical or mental impairment includes but is not limited to such diseases and conditions as orthopedic, visual, speech and hearing impairment, cerebral palsy, epilepsy, muscular dystrophy, multiple sclerosis, cancer, heart disease, diabetes, mental retardation, emotional illness and drug addiction and alcoholism.

**9. Qualified mediator** shall mean a recognized trained mediator independent of control by any officer or employee of the City of Tulsa.

**10. Employee** shall mean and include any individual employed by the City, whether full-time, part-time, temporary or pursuant to contract.

**11. Applicant for employment with the City of Tulsa** shall mean anyone seeking information about applying for employment or actually applying for employment with the City.

**12. Americus with Disabilities Act (ADA)** shall mean the provisions of 42 U.S.C. § 12101, et seq., or as it may be amended.

**13. ADA Compliance Official** shall mean the Mayor of the City of Tulsa or the person or persons designated by the Mayor to enforce the provisions of the ADA or the provisions of this section.

**14. Respondent** shall be the director of the department or departments within the City of Tulsa against whom a complaint has been filed under the provisions of this section or his designated representative.

**C. Scope.** The provisions of this section shall apply to any qualified individual with a disability who is an applicant for employment with the City of Tulsa or who, with or without reasonable modifications to rules, policies or practices, the removal of architectural, communication or transportation barriers, or the provision of auxiliary aids and services, meets the essential eligibility requirements for the receipt of services or the participation in programs or activities provided by a City.

**D. Discriminatory act or practice prohibited.**

1. **In hiring practices.** No officer or employee of the City of Tulsa shall discriminate against a qualified individual with a disability because of such disability in job application or hiring procedures.
2. **In City services, programs, activities.** No qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs or activities of the City of Tulsa or be subjected to discrimination by the City or any of its boards, authorities, agencies or instrumentalities, officers or employees.

**E. Grievance procedure.**

1. **Complaint.** Any person claiming to be aggrieved by a discriminatory act or practice prohibited or the provisions of this section (hereinafter "complainant") may within ten (10) days following the discriminatory act or practice file with the ADA compliance official a written complaint setting forth with particularity the complainant's disability, the alleged discriminatory act or practice, and such other information as the ADA compliance official may reasonably require.
2. **Answer.** Within five (5) days of receipt of any complaint alleging discrimination prohibited by this section, the ADA compliance official shall notify the respondent and shall attach a copy of the complaint with the notice. Within five (5) days after the receipt of the notice and complaint, the respondent shall file a written answer with the ADA compliance official.
3. **ADA compliance official's recommendation.** Within seven (7) days after the receipt of the respondent's answer, the ADA compliance official shall issue a written recommendation to both the complainant and respondent. If, within five (5) days after the receipt of the ADA compliance official's recommendation, neither party requests mediation, the ADA compliance official's recommendation shall be deemed to be agreed upon by all parties and the matter settled. If the ADA compliance official's recommendation requires action by the respondent, such recommendation shall be implemented with due diligence and the respondent shall notify the ADA compliance official when the implementation is complete.
4. **Mediation.** If, within five (5) days of the receipt of the ADA compliance official's recommendation, either party feels aggrieved by the recommendation, that party may, by written notice to the ADA compliance official, request that the matter be referred to a qualified mediator. Within five (5) days of receipt of the request for mediation, the ADA compliance official shall request a conference with a qualified mediator. Notice of the date, time and place of the mediation conference shall be provided to the complainant, respondent and ADA compliance official. If the parties to the mediation reach an agreement which requires action by the respondent, such recommendation shall be implemented with all diligence and the respondent shall notify the ADA compliance official when the implementation is complete.
5. **ADA compliance official's post mediation recommendation.** If the parties to the mediation are unable to reach agreement, the ADA compliance official may either affirm, modify or revise his recommendation and shall notify both parties in writing of his recommendation. If neither party appeals the ADA compliance

official's post-mediation recommendation, the recommendation shall be deemed to have been agreed upon by all parties and the matter settled. If the ADA compliance official's recommendation requires action by the respondent, such recommendation shall be implemented with all diligence and the respondent shall notify the ADA compliance official when the implementation is complete.

6. **Appeal to the Council.** If either party feels aggrieved by the ADA compliance official's post-mediation recommendation, that party may, within five (5) days of receipt of such recommendation, appeal to the Council by filing a notice of appeal in the office of the City Clerk and providing written notice to the other party and to the ADA compliance official. The Council shall, within ten (10) days of the receipt of the notice of appeal, set the matter for hearing. The Council's decision shall be final.
7. **Notices.** All notices under this section shall be by U.S. mail, certified, return receipt requested.

## Section 112. Municipal offices, personnel and agencies to assist.

The facilities, personnel, elected officials and agencies of the municipal government are directed to be available and to cooperate with the Department of Human Rights and Human Rights Commission to accomplish the objectives and purposes herein set forth.

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# CHAPTER 2. COMMISSION ON CONCERNS OF THE DISABLED (REPEALED)*

*__Editor's note—__Ord. No. 22649, § 1, adopted February 2, 2012 and Ord. No. 22650, § 2, adopted April 12, 2012, repealed Ch. 2, §§ 200—202, which pertained to Commission on Concerns of the Disabled. Ord. No. 22650, § 2, adopted April 12, 2012, also repealed Ch. 2, §§ 200—202. See also the Code Comparative Table and Disposition List.

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## CHAPTER 3. ARTS COMMISSION OF THE CITY OF TULSA

Section 300. Arts Commission created.
Section 301. Membership.
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Section 303. Cooperation with others.
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Section 305. Expenditures.
Section 306. Offices, meetings.
Section 307. Municipal personnel and agencies to assist.
Section 308. Budget policy.

### Section 300. Arts Commission created.

The Arts Commission of the City of Tulsa is created for the purposes of:

**A.** Providing for the government of the City of Tulsa and for its citizens a continuing source of respected and talented opinion and advice concerning public matters having aesthetic implications in order to ensure that the City of Tulsa will grow more beautiful as it expands;

**B.** Emphasizing positive measures for the pursuit of beauty and thus avoiding undue reliance upon prohibitions and restrictions;

**C.** Stimulating superior aesthetic quality in all phases of the physical development of the community; and

**D.** Assuming such other duties as the Mayor and Council may from time to time assign.

*(Ord. No. 16527)*

### Section 301. Membership.

The Commission shall be composed of thirteen (13) members appointed by the Mayor, subject to the approval of the Council. Four (4) members shall be a broad representation of professionals, artists, or adjacent professionals with experience in a variety of fields including, but not limited to, technical or digital art, curation, sculpture, finance, or law. These members may also include individuals with demonstrated affinity for the arts, and/or with experience in any of the fields listed for the remaining members in this section. The remaining members shall include at least one (1) musician, one (1) performing artist, two (2) architects, one (1) landscape architect, two (2) visual artists, one (1) arts educator or arts administrator, and one (1) representative of an arts and cultural organization serving and situated within the City of Tulsa. The Chairperson of the Tulsa Metropolitan Area Planning Commission, the City-County Library Board, and the Tulsa Park and Recreation Board or their designees shall be advisory members of the Commission. In instances where matters within the purview of the Commission fall within the jurisdiction of any governmental entity or agency not a part of the government of the City of Tulsa, such as an Independent School District, the chief administrative officer of the affected entity or agency shall be added to the membership of the Commission during consideration of the individual project in which his agency is concerned. Such temporary membership shall not entitle the member to vote. Members shall be appointed for three (3) year terms; provided, however, that all members shall hold office until their successors are appointed and qualified.

Members of the Commission shall serve without compensation and no member shall receive any compensation from the City or from any trust, donation or legacy for any service relating to membership on the Commission.

*(Ord. No. 24299, § 1, 2-5-2020; Ord. No. 25385, § 1, 8-21-2024)*

**Section 302. Duties.**

**A.** No work of art shall be contracted for, commissioned, placed or erected on property of the City, or become the property of the City by purchase, gift or otherwise, except for any museum or gallery, unless such work of art, or a design or model of the same as required by the Arts Commission, together with proposed location of such work of art, shall first have been submitted to the Arts Commission, and the written recommendations and comments of the Arts Commission shall have been received and considered by the Mayor. The term "work of art" as used in this instance shall include paintings, mural decorations, stained glass, statues, bas-reliefs or other sculptures, monuments, fountains, arches or other structures of a permanent or temporary character intended for ornament or commemoration. No existing work of art in the possession of the City shall be removed, relocated or altered in any way without the approval of the Arts Commission, except as otherwise provided herein.

Nothing herein contained shall be construed to limit or abridge the legal powers and duties of the governing body of the Gilcrease Institute of American History and Art.

**B.** The aesthetic design of any new buildings or revisions or renovations to existing buildings or any new or renovated elements of the City's infrastructures or amenities to be erected upon lands belonging to the City of Tulsa and costing in excess of Five Hundred Thousand Dollars ($500,000.00) shall be reviewed by the Arts Commission within sixty (60) days of submittal, and the written recommendations of the Commission shall be received and considered by the board or agency responsible for such design.

**C.** All monuments, sculpture and paintings belonging to the City may periodically be examined by the Arts Commission, and detailed recommendations for their cleaning, maintenance and repair shall be made to the Mayor; provided, however, this provision shall not apply to the Gilcrease Institute of American History and Art.

**D.** No permanent commercial enterprise shall be placed or erected in any building owned by the City or on property of the City unless such commercial enterprise, or a design or model of the same as required by the Arts Commission, together with a proposed location of such commercial enterprise, has been submitted to the Arts Commission, and the written recommendations and comments of the Arts Commission shall have been received and considered by the Mayor. In the event a policy for the location and design of commercial enterprises for a specific building or property has been reviewed by the Arts Commission and approved by the Mayor, review and approval by the Arts Commission and Mayor of individual commercial enterprises shall not be required. The term "commercial enterprise" as used in this instance shall include concessions, refreshment and gift stands, book stands, advertising promotions, displays and exhibits of any kind.

**E.** The Arts Commission shall review, at least once a year, allocations made pursuant to this chapter and shall make recommendations on whether or not to expend appropriations and for which projects.

**F.** The Commission shall design a Program for the budgeted Tulsa Arts Commission funding identified in Ordinance No. 23425, hereinafter "Vision Arts funds". Program is defined as the application, application process, selection and weighted score criteria, and award distribution structure. The Program must include eligibility requirements, a competitive application process, and establish selection criteria that ensures a broad distribution of funds to various sizes of arts organizations based on the organization's prior fiscal year donations received. Eligible program applicants must be local (i.e. principally located or residing within the Tulsa city limits) and propose discrete projects that initiate, encourage or expand economic development opportunities in the City of Tulsa.

On or before July 31 of each year, the Commission shall submit to the City Council the proposed Program for Vision Arts funds. The Council, on or before September 15, shall by an affirmative vote of the Council either: (i) approve the Program, or (ii) amend and approve the Program and cause its decision to be delivered to the Chair of the Arts Commission. Upon receipt of an approved unamended Program the Commission shall solicit applications. In the event the Council approves the Program with amendments, the Commission may proceed in soliciting applications in accordance with the Council's amendments or submit a revised Program for Council consideration within thirty (30) days of the Commission Chair receiving notice of the Council's vote. In any event, revised Programs must be submitted no later than December 15. The Council shall consider and vote on timely submitted revised Programs within thirty (30) days of receipt in accordance with the approval procedures set forth in this paragraph. The Council, for good cause, may by affirmative vote of the Council, amend the listed deadlines in this subsection. The Council shall state its justification for good cause in its motion.

The Commission shall utilize an Independent Review Panel consisting of two (2) City Councilors approved by the City Council, one (1) member selected by the Tulsa Authority for Economic Opportunity, two (2) community members selected by the Arts Commission with skills or experience in the fields listed as qualifications for Arts Commission members outlined in Section 301, and one (1) representative of the Tulsa Office of Film, Music, Arts and Culture (FMAC) or similar entity with tourism or marketing experience that is serving and situated within the City of Tulsa. The Independent Review Panel shall evaluate and score the proposals submitted by program applicants according to Program criteria agreed on by the Arts Commission and approved by the City Council. Members must be selected by each respective organization within thirty (30) days of the Program's approval by the Council. Arts Commissioners are not eligible to serve on the Independent Review Panel. However, the Arts Commission shall designate from its membership one (1) Chair to serve as a non-voting facilitator for the Independent Review Panel.

The Arts Commission shall evaluate and give due consideration to the recommendations of the Independent Review Panel pursuant to the established Program and shall make formal recommendations to the Mayor for the award of such funding, the amounts of such funding, and other necessary details for the Mayor's review and recommendation. In the event there is a tie vote of the Arts Commission, the final scores shall be submitted to the Mayor for review and recommendation.

Annually, the Arts Commission shall evaluate the expenditure of the previous year's awarded monies to ensure that expenditures have advanced a public purpose by benefitting the citizens of Tulsa and growing Tulsa's economy. The Arts Commission shall report their annual assessment to the Mayor and City Council.

*(Ord. No. 16527; Ord. No. 24299; Ord. No. 24351, § 1, 4-29-2020; Ord. No. 24639, § 1, 7-21-2021; Ord. No. 25385, § 2, 8-21-2024)*

### Section 303. Cooperation with others.

The Arts Commission shall:

**A.** Work with public boards, agencies and authorities in establishing environmental goals for projects and shall assist the City of Tulsa in the evaluation of redevelopment proposals;

**B.** Work closely with the Tulsa Metropolitan Area Planning Commission in ensuring aesthetic quality and design in Planning Commission projects, and in developing high quality visual environment; the periphery of publicly-owned property shall receive the particular attention of the Arts Commission;

**C.** Work closely with the Tulsa Park and Recreation Department in developing a program of beautification along public thoroughfares with appropriate landscape treatment, plantings maintenance and design of amenities, all intended to promote beauty, to preserve and enhance property values on existing streets and public spaces and to stimulate similar private efforts;

**D.** Offer advice or suggestions to the owners of private property in relation to the beautification of the property; any person planning to erect any building or make any improvement may submit the plans and designs or sketches thereof to the Arts Commission for advice and suggestions, for which no charge shall be made by the Arts Commission;

**E.** Advise the Mayor of such other proposals for the use and preservation of buildings and objects of historical, architectural or cultural significance;

**F.** Make to the Mayor such other proposals as it deems constructive toward the preservation and improvement of the physical beauty of the City;

**G.** Make application for grants in the name of the City of Tulsa, as appropriate and with the approval of the Mayor, for art-related purposes in keeping with the purposes of the Arts Commission; and

**H.** Offer advice and suggestions to any City department, agency or trust which requests advice and counsel.

*(Ord. No. 16527)*

### Section 304. Time for review.

The Arts Commission shall develop its comments and recommendations upon any matter submitted to it involving an expenditure of less than One Thousand Dollars ($1,000.00) within fifteen (15) days after submission and upon any other matter within thirty (30) days after submission. If such comments and recommendations are not completed within the times herein established, consideration thereof shall be unnecessary.

### Section 305. Expenditures.

Unless otherwise restricted, appropriations designated for expenditures on the recommendation of the Arts Commission shall be integrated and held in escrow by the City until expended. The Arts Commission shall oversee the expenditure of all appropriations made by the Council to the Commission for the advancement of visual and performing arts. Any interest accrued on unexpended funds may be used by the City upon recommendation by the Arts Commission for art-related purposes. "Art-related purposes" shall be construed so as to include such items other than those listed in Subsection 302.A. of this chapter.

*(Ord. No. 16527)*

### Section 306. Offices, meetings.

The Arts Commission shall create and fill such offices as it may determine are necessary for the performance of its functions. It shall hold at least one (1) regular meeting in each month. It shall adopt rules for the transaction of business and shall keep a record of its resolutions, transactions, findings and determinations.

### Section 307. Municipal personnel and agencies to assist.

The facilities, personnel and agencies of the municipal government are directed to be made available to the Commission, and at all times such personnel, agencies and officers shall cooperate with the Arts Commission to accomplish the objectives and purposes herein set forth.

### Section 308. Budget policy.

**A.** No less than one percent (1%) of the total cost of any new buildings or major revisions to existing buildings to be constructed or erected on property owned by the City, utilizing public funds, shall be budgeted and expended for works of art as defined in Subsection 302.A., above. Such works of art shall be reviewed and approved by the Arts Commission as provided herein.

**B.** Consideration shall be given to the location, quality and character of works of art to be utilized in connection with new buildings or major revisions to existing buildings used for the proposed juvenile detention facility at 315 South Gilcrease Museum Road or the adult detention facility at 1727 Charles Page Boulevard, in such a way as to lessen the negative impact such facilities may have to the neighborhoods in which they are located. Nothing herein, however, shall require that said work of art be located at the facility.

*(Ord. Nos. 16527, 17691)*

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# CHAPTER 4. ECONOMIC DEVELOPMENT COMMISSION OF THE CITY OF TULSA (REPEALED)*

*__Editor's note—__Ord. No. 24642, § 1, adopted July 21, 2021, repealed chapter 4, §§ 400—403, which pertained to Economic Development Commission of the City of Tulsa and derived from Ord. No. 13289; Ord. No. 16943; Ord. No. 16990; Ord. No. 22618, §§ 1, 2, 1-5-2012; Ord. No. 22798, § 1, 12-20-2012.

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## CHAPTER 5. GREATER TULSA AREA INDIAN AFFAIRS COMMISSION

Section 500. Membership.
Section 501. Powers, duties and responsibilities.
Section 502. Municipal personnel and agencies to assist.

### Section 500. Membership.

There is hereby created the Greater Tulsa Area Indian Affairs Commission ("Commission") which shall consist of eight (8) individual members and fifteen (15) member organizations.

**A. Individual members.** Individual members shall be of American Indian ancestry. Five (5) individual members, residents of the City of Tulsa, shall be appointed by the Mayor of the City of Tulsa, subject to confirmation of the City Council, and three (3) may be appointed by the Board of County Commissioners.

1. **City of Tulsa appointees.** On or before January 15, 1991, one (1) City of Tulsa appointment shall be made for a term of one (1) year, two (2) for terms of two (2) years and two (2) for terms of three (3) years. Thereafter, all City of Tulsa appointments shall be for terms of three (3) years; provided, however, that all such appointees shall hold their offices until their successors have been appointed and approved.

   In the event of the death or resignation of a City of Tulsa appointee or if such appointee is otherwise unable to serve, the Commission may recommend to the Mayor one (1) or several individuals to fill the unexpired term and the Mayor shall appoint, subject to confirmation of the City Council, an individual to fill the unexpired term.

2. **Tulsa County appointees.** Tulsa County appointees may be appointed pursuant to a resolution adopted by the Board of County Commissioners.

**B. Member organizations.** The fifteen (15) member organizations shall be organizations whose primary missions are the advancement of American Indian culture and heritage and/or the provision of services to American Indians. Ten (10) member organizations shall be appointed by the Mayor of the City of Tulsa, subject to the confirmation by the City Council, and five (5) may be appointed by the Board of County Commissioners. Existing Indian organizations within the Greater Tulsa Area, including new organizations, may request membership on the Commission by letter addressed to the Chairman of the Commission.

1. **City of Tulsa appointees.** On or before February 1, 1991, the individual members of the Commission may recommend to the Mayor in writing Indian organizations for membership to the Commission. On or before March 1, 1991, the Mayor shall appoint, subject to confirmation by the City Council, ten (10) Indian organizations for membership to the Commission. In making such appointments the Mayor shall consider Indian organizations which represent the greatest number of Native Americans within the Greater Tulsa Area or bring greater diversity to the Commission. The Mayor shall further consider and give preference to the Indian organizations which are represented on the Commission at the time such appointments are made.

2. **Tulsa County appointees.** Five (5) organizations may be appointed by Tulsa County pursuant to a resolution adopted by the Board of County Commissioners.

3. **Representatives and alternate representatives from the member organizations.** Prior to April 1 of each year, the governing body of each member organization shall appoint one (1) representative and one (1) alternate representative to the Commission and shall certify such appointments in writing to the Chairman of the Commission.

4. **Vacancies among member organizations.** No member organization in good standing shall be displaced by another Indian organization. A member organization shall be in good standing so long as the member organization continues to function in the community for the purposes for which it was organized, so long as it appoints and certifies its representative and alternate representative to the Commission as herein provided so long as its representative or alternate representative attends at least nine (9) meetings of the Commission within each calendar year.

   In the event a vacancy occurs among the member organizations, the Chairman of the Commission shall notify the Mayor, if the vacancy has occurred among the mayoral appointments, or the Board of County Commissioners, if the vacancy has occurred among the Tulsa County appointees. An appointment of an Indian organization to fill such vacancy shall be made by the appointing authority which made the initial appointment in accordance with the provisions covering initial appointments of member organizations.

**C. Chairman of the Commission.** The Chairman of the Commission shall be chosen by the members of the Commission, from among the eight (8) individual members and the representatives of the member organizations.

*(Ord. Nos. 17467, 18851, 20909)*

**Section 501. Powers, duties and responsibilities.**

**A.** The Commission shall have power to promulgate rules and regulations governing the conduct of its meetings and the performances of its duties and shall elect a chairman from among its members. The Commission shall hold at least one (1) regular meeting in each month. A majority vote of the members present, who must constitute a quorum as determined by the bylaws of the Commission, shall be required for official action by the Commission.

**B.** The Commission shall act in an advisory capacity to the City of Tulsa and Tulsa County to encourage and promote unity, purpose and understanding among the Indian people of the Greater Tulsa Area; to encourage and promote cooperation between Indian people, governmental agencies and committees of the City of Tulsa, Tulsa County and the state of Oklahoma; to assist Indian people to develop their talents and abilities to the fullest; to aid in the Indian community's fullest realization of its human resources; to encourage a better understanding and appreciation of Indian people and the Indian community; to aid in the preservation of the cultures of Indian people; to assist in the enhancement and promotion of educational opportunities among Indian people; and otherwise to promote the general welfare of Indian people in the Greater Tulsa Area.

**C.** In order to accomplish the objectives enumerated herein, the Commission shall advise the Mayor, the City Council and the County Commissioners. It shall make and conduct studies and surveys to provide accurate and pertinent data for orderly and constructive community development and for the advancement of the Indian people. It shall

formulate and conduct comprehensive educational programs. It shall consult and cooperate with allied and member organizations and agencies, both public and private. It shall utilize the resources of individuals and groups in the community in the improvement of intergroup relations and in an effort to secure and extend democratic, educational and cultural rights and opportunities. It shall encourage community support and involvement in the pursuit of the goals and objectives set forth herein for the benefit of the Indian people and the public at large.

**D.** The Commission shall submit an annual report and such interim reports as it may desire to the Mayor, the City Council and the Board of County Commissioners. The Commission may make recommendations for policies or legislation which may be necessary to effect the goals stated herein. The Commission shall cooperate fully with the officers of the City and County of Tulsa when it is called upon to do so.

*(Ord. No. 17467)*

### Section 502. Municipal personnel and agencies to assist.

The facilities of the municipal government shall be made available to the Commission; and city officers, personnel and agencies shall cooperate with the Commission in accomplishing the purposes and objectives set forth herein.

*(Ord. No. 17467)*

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# CHAPTER 6. GREATER TULSA AREA HISPANIC/LATINX AFFAIRS COMMISSION

Section 600. Membership.
Section 601. Powers, duties and responsibilities.
Section 602. Municipal personnel and agencies to assist.

## Section 600. Membership.

The Greater Tulsa Area Hispanic/Latinx Affairs Commission (the "Commission") shall consist of fifteen (15) members of Hispanic/Latinx extraction, nine (9) of whom shall be appointed by the Mayor, subject to the confirmation of the Council, and six (6) of whom shall be appointed by the Board of Tulsa County Commissioners.

**A. Additional members.** Additional representatives may be added to the Commission by the Mayor upon recommendation by the Commission when the Mayor determines that an increase in the Hispanic/Latinx population warrants additional representation.

**B. Terms.** Mayoral appointments shall serve until December 31, 1990. Subsequently, three (3) of such appointments shall be for terms of one (1) year, three (3) for terms of two (2) years and three (3) for terms of three (3) years. Thereafter, Mayoral appointments shall be for terms of three (3) years; provided, however, that all members shall hold office until their successors are appointed and qualified.

**C. Removal from office.** The appointing authorities may each remove members of the Commission appointed by them who have more than three (3) consecutive unexcused absences.

*(Ord. No. 16410; Ord. No. 24477, § 2, 11-4-2020)*

## Section 601. Powers, duties and responsibilities.

**A.** The Commission shall have power to promulgate rules and regulations governing the conduct of its meetings and the performance of its duties and shall elect a chairman from among its members. The Commission shall hold at least one (1) regular meeting in each month and a majority of members of the Commission shall constitute a quorum for the transaction of business. A majority vote of the quorum shall be required for official action by the Commission.

**B.** The Commission shall act in an advisory and advocacy capacity to the greater Tulsa area to encourage and promote unity, purpose and understanding among the Hispanic/Latinx people of the greater Tulsa area; to encourage and promote cooperation between the Hispanic/Latinx people of the greater Tulsa area and the local, state and federal governments for the general benefit and welfare of the Hispanic/Latinx people of the greater Tulsa area; to assist in making it possible for the Hispanic/Latinx people of the greater Tulsa area to develop their talents and abilities without limitations; to make recommendations of Hispanic/Latinx persons for appointment to boards, councils and commissions of the local, state and federal governments; to aid in permitting the Hispanic/Latinx community to benefit from the fullest realization of its human resources; to encourage a better understanding of the Hispanic/Latinx people and the Hispanic/Latinx community; to aid in the preservation of the cultures of the Hispanic/Latinx people; to assist in the enhancement and promotion of education and opportunity among the Hispanic/Latinx people; and, otherwise, to promote the general welfare of the Hispanic/Latinx people of the greater Tulsa area.

**C.** In order to accomplish these objectives, the Commission shall advise the elected officials of the City of Tulsa and Tulsa County; make and conduct studies, surveys and investigations to provide accurate and pertinent data for orderly and constructive community development and advancement of the Hispanic/Latinx people; formulate and conduct comprehensive educational, advisory and other programs; consult and cooperate with allied organizations and agencies, both public and private; utilize the resources of individuals and groups toward improvement of intergroup relations; use all potential community forces in an effort to make more secure and extend democratic educational and cultural rights, opportunities and practices; and influence and encourage community support and involvement in pursuit of the goals and objectives as set forth herein for the benefit of the Hispanic/Latinx people of the greater Tulsa area and the general public.

**D.** The Commission shall submit an annual report and such interim reports as it may desire to the Mayor and County Commission. The Commission shall make recommendations for improvements or legislation which may be necessary to effect the policies of the participating governmental units. It shall cooperate fully with the elected officials and officers of the City of Tulsa and Tulsa County when it is called upon to do so.

*(Ord. No. 24477, § 2, 11-4-2020)*

### Section 602. Municipal personnel and agencies to assist.

The facilities of the participating governmental units shall be made available to the Commission; and at all times the personnel, agencies and elected officials shall cooperate with the Commission to accomplish the purposes and objectives set forth herein.

*(Ord. No. 14439; Ord. No. 24477, § 2, 11-4-2020)*

## CHAPTER 7. TULSA WOMEN'S COMMISSION

Section 700. Membership.
Section 701. Powers, duties and responsibilities.
Section 702. Appointments and representation.
Section 703. Rules, regulations and meetings.
Section 704. Cooperation with citizens and agencies.
Section 705. Staff support.

### Section 700. Membership.

The Tulsa Women's Commission shall consist of no more than fifteen (15) nor fewer than twelve (12) members. Members shall be appointed for terms of three (3) years; provided, however, that all members shall hold office until their successors are appointed and qualified. All members shall serve without compensation. Decisions of the Commission shall be made only at meetings or hearings at which a quorum is in attendance and by a majority vote of the quorum. A quorum shall consist of a majority of the then-existing membership of the Commission.

*(Ord. No. 16834; Ord. No. 25114, § 2, 8-23-2023)*

### Section 701. Powers, duties and responsibilities.

**A.** The Commission shall serve as an advisory body to the Mayor concerning the needs and problems of women in the Tulsa area, and it shall recommend programs and policies designed to alleviate inequities confronting women in social, economic and vocational pursuits. It shall develop goals and shall coordinate research, planning and programming relating to opportunities, needs, problems and contributions of women in Tulsa.

**B.** The Commission shall act as the central clearing house and coordinating agency for activities and information relating to the status of women in the Tulsa community. It shall stimulate research in the area of women's legal rights. It shall educate the community on the status of women by publicizing, in all appropriate ways, information on women's rights and obligations. It shall review the range of services available to women to enable them to fully contribute to society through their homes and participation in community life. It shall take responsibility for strengthening existing services, and it shall assist public, commercial, cooperative or voluntary agencies in pursuing needed services.

**C.** The Commission shall stimulate an awareness, among men and women in the public and private sectors, of women's full potential and of the importance of the contribution of women to the development of the community. It shall establish and maintain a human resource file of women's organizations and individual women.

**D.** The Commission shall prepare for the Mayor a report of its stated goals and objectives no later than the first of September of each year and shall submit an annual report to the Mayor no later than the first of May, describing the accomplishment of its stated goals and objectives.

*(Ord. No. 16834)*

### Section 702. Appointments and representation.

All members of the Commission shall be appointed by the Mayor, subject to approval of the Council. The Mayor shall appoint a member from each of the fields of medicine, law,

education, the media, corporations, homemaking and retired workers. The remaining members shall be appointed at large. The members of the Commission shall elect a chairperson and vice-chairperson from their membership and may elect such other officers and committees as they may, from time to time, deem necessary for the proper performance of their duties. The chairperson shall appoint standing committees to deal with the concerns of education, families, day care and community resources.

*(Ord. No. 16834)*

### Section 703. Rules, regulations and meetings.

The Commission shall adopt and file with the City Clerk such rules, regulations and bylaws as it deems best to govern its actions, subject to the general laws of the city, state and nation. The Commission shall meet no less often than once each month.

*(Ord. No. 16834)*

### Section 704. Cooperation with citizens and agencies.

The Commission shall at all times seek to promote close cooperation between the City of Tulsa and all private citizens, institutions and agencies interested in or conducting programs which aid women, to the end that all such activities within Tulsa may be coordinated to secure the greatest public welfare.

*(Ord. No. 16834)*

### Section 705. Staff support.

The Mayor may designate City Personnel assigned the responsibility of furthering the goals and objectives of the Tulsa Women's Commission, and who shall provide staff support to the Commission.

*(Ord. No. 16834; Ord. No. 25114, § 3, 8-23-2023)*

## CHAPTER 8. ASIAN AFFAIRS COMMISSION

Section 800. Asian Affairs Commission created.
Section 801. Membership.
Section 802. Powers, duties and responsibilities.

### Section 800. Asian Affairs Commission created.

The Asian Affairs Commission is created as an advisory commission to the Mayor and Council of the City of Tulsa pursuant to Article XII, Section 4 of the Amended Charter of the City of Tulsa.

*(Ord. No. 25145, § 1, 9-27-2023)*

### Section 801. Membership.

**A.** Asian Affairs Commission shall be composed of fifteen (15) members of Asian American ancestry appointed by the Mayor and confirmed by a majority vote of the entire membership of the Council. One (1) member shall be a member of the largest Asian American community in the City of Tulsa at the time of appointment. One (1) member shall be a member of the second largest Asian American community in the City of Tulsa at the time of appointment. One (1) member shall be a member of the third largest Asian American community in the City of Tulsa at the time of appointment. One (1) member shall have extensive experience in K-12 or higher educational institutions. One (1) member shall be a Tulsa area community leader. One (1) member shall own a majority interest in a business enterprise or hold a position as a Tulsa area business leader. One (1) member shall have extensive experience in the field of public policy or immigration law. One (1) member shall be a public health advocate. Seven (7) members shall be members at large appointed at the Mayor's sole discretion.

**B.** Pursuant to the Amended Charter of the City of Tulsa, Article III, Section 1.4(G), each of the fifteen members of the Commission shall, as a condition of their appointment, and continued service, be qualified electors and maintain their principal residence within the city limits of the City of Tulsa.

**C.** In the event of the death or resignation of a member or if a member is otherwise unable to serve or disqualified from serving, the member's position immediately becomes vacant and the Mayor shall appoint, subject to confirmation of the City Council, an individual to fill the unexpired term.

**D.** The terms of the initial fifteen (15) members of the Commission shall be calculated as beginning on and from January 1, 2024, regardless of their date of appointment and confirmation. The three (3) members representing the three largest Asian American communities shall serve two-year terms. The five (5) members having other special qualifications shall serve four-year-terms. The seven (7) at large members shall serve three-year terms. Thereafter all appointments shall be for terms of three years. Unless an appointment is created by a vacancy under subsection B., appointees shall serve until the expiration of their terms or until their successors have been confirmed.

*(Ord. No. 25145, § 1, 9-27-2023)*

### Section 802. Powers, duties and responsibilities.

**A.** The Commission shall have the power to promulgate rules governing the conduct of its meetings and the performance of its duties and shall elect a person to serve as

chairperson from among its members. Only members of the Commission shall serve as chairs on any subcommittees created by the Commission, but nonmembers may serve as non-voting members when needed. The Commission shall schedule one (1) regular meeting each month and shall conduct at least ten (10) regular meetings a year at which a majority of the then serving members of the Commission shall constitute a quorum for the transaction of business. A majority of the quorum shall be required for official action by the Commission. All meetings of the Commission shall be conducted in compliance with the Oklahoma Open Meeting Act, Title 25 Oklahoma Statutes, Sections 301—314.

**B.** The Commission shall act in an advisory capacity to the Mayor, City Council, and City Officials on matters of: (1) advocating for the employment needs of and professional opportunities for Tulsa's Asian American communities; (2) preservation of the culture and traditions of Asian American communities through culturally relevant programs, events, recognitions, and services; (3) building bridges between City, State, and Federal government leadership and Asian American communities; (4) monitoring the status of education, partnering with educational institutions, and recommendations concerning best educational practices; and (5) collaboration between public and private entities to stimulate research to benefit Asian American communities.

**C.** The Commission shall submit an annual report, as well as such interim reports as the Mayor or City Council shall request, at regularly scheduled Council Committee meetings. The Commission shall cooperate fully with the elected officials of the City of Tulsa.

*(Ord. No. 25145, § 1, 9-27-2023)*

## CHAPTER 9. DISQUALIFICATION AND REMOVAL OF APPOINTEES

Section 900. Purpose.
Section 901. Conditions for disqualification and removal.
Section 902. Procedures for disqualification and removal.
Section 903. Exemptions and limitations.

### Section 900. Purpose.

Authorities, boards, commissions, and committees of the City of Tulsa, whether created by Charter, ordinance, agreement or pursuant to law are established to provide for representative, efficient, economical, just, and honest administration of City Government. Failure to maintain the standards prescribed in this chapter shall be grounds for removal, as authorized by Tulsa Amended Charter, Article XII, Section 4 and Subsection 11.C. "Appointing authority", as used in this chapter, shall mean either the Mayor or the City Council, which by Charter, ordinance, agreement, or pursuant to law has the power and duty to appoint an individual to serve as a member of any authority, board, commission, or committee.

*(Ord. No. 24882, § 1, 8-10-2022)*

### Section 901. Conditions for disqualification and removal.

Any appointed member of a City of Tulsa authority, board, commission, or committee may be disqualified and removed from the member's appointed position for cause upon the occurrence of any of the following conditions:

**A.** If such member has failed to attend three (3) consecutive meetings or has failed to attend more than fifty percent (50%) of the meetings held during any twelve (12) consecutive months during their current term, unless such failure is excused by the appointing authority, or the appointing authority's designee, for good cause shown.

**B.** If the member shall cease to be a qualified elector and maintain their principal residence within the City limits of the City of Tulsa, as required in Tulsa Amended Charter, Article III, Subsection I.4.G.

**C.** Upon a finding that the member, upon a preponderance of the evidence, has committed any of the following:

**1.** Habitual or willful failure or neglect to diligently and faithfully perform any duty required by law of such member;

**2.** Extortion, oppression, corruption, or maladministration in the performance of the responsibilities of their appointed position;

**3.** Failure to produce and account for all public funds or property in their possession or under their control;

**4.** Commission of any public offense constituting a felony or in which an element of such offense includes fraud, deceit, trickery, an unlawful taking, or embezzlement, regardless of whether it is prosecuted, or a conviction is obtained;

**5.** Willful partiality in the performance of the responsibilities of their appointed position, or acting in violation of the City's Ethics Code, Title 12, Tulsa Revised Ordinances, Chapter 6;

**6.** Discrimination against or harassment of anyone on the basis of race, color, sex, age, religion, national origin, disability, political beliefs, sexual orientation, gender identity, or gender expression, or conduct which would constitute a violation of the City's Respectful Workplace Policy, Personnel Policies and Procedures, Section 822, as amended from time to time; or

**7.** Intoxication in any public place produced by any substance or combination of substances voluntarily taken.

**D.** Upon the appointed member's:

**1.** Death;

**2.** Inability to perform the responsibilities of their appointed position; or

**3.** Written resignation submitted to the appointing authority; provided that such a resignation may be withdrawn in writing at any time prior to the effective date stated in the resignation, but if no effective date is stated, the resignation shall be effective immediately. Acceptance by the appointing authority shall not be required for the resignation to be effective.

*(Ord. No. 24882, § 1, 8-10-2022)*

### Section 902. Procedures for disqualification and removal.

**A.** Except in the event of death or receipt of an unsolicited written resignation, upon an appointing authority's receipt of credible information that a City member of an authority, board, commission, or committee meets any condition of disqualification prescribed in this chapter for removal from their appointed position, the appointing authority or their designee shall contact that member to inquire as to the alleged condition and, if appropriate, ask if they wish to resign. The purpose of this contact with an appointee is to provide the appointee an opportunity to present any reason why they should not be disqualified from serving in their appointed position.

**B.** If an appointing authority or their designee is unable to make person-to-person contact with the appointed member within three (3) working days of the initial effort to make contact, they shall transmit a written statement to the appointee, inquiring as to the alleged condition, requiring that they contact them within twenty-four (24) hours of receipt, and asking if they wish to resign their position, if they deem it appropriate, or desire an opportunity to present to the appointing authority or their designee any reason why they should not be disqualified from serving in their appointed position. This communication shall also state a time when the appointing authority or their designee intends to decide on the appointee's disqualification and removal, regardless of whether the appointee responds to their communication. Receipt of this statement to the appointee shall be deemed to have been achieved at the end of three (3) working days following the date of transmission, either by U.S. mail, via electronic mail, or other electronic means.

**C.** An appointee may resign from their appointed position effective immediately upon receipt by submitting it in writing to the appointee's appointing authority at any time prior to an appointing authority's decision to remove them becomes final. Upon receipt of a written resignation by the appointing authority, that person's appointed position shall be deemed vacant.

**D.** Once an appointing authority determines that an appointed member is disqualified from serving in their appointed position and should be removed, if the appointing authority is the Mayor, the Mayor shall transmit that determination to the City Council for its confirmation or denial. If the City Council is the appointing authority, it shall transmit its determination to the Mayor for confirmation or denial. After confirmation of a disqualification and removal, or if the appointing authority's determination is not acted upon by the Mayor or Council within fifteen (15) working days of receipt, then the appointee's removal shall be final, and the appointed position shall immediately be deemed vacant. If the appointing authority's determination is denied, the appointee shall continue to serve.

*(Ord. No. 24882, § 1, 8-10-2022)*

## Section 903. Exemptions and limitations.

Application of the provisions of this chapter shall be subject to the following exemptions and limitations:

**A.** Members of the following authorities, boards, commissions, and committees shall be exempt from the provisions of this chapter:

**1.** Public trusts created pursuant to Title 60, Oklahoma Statutes, Section 176, et seq. in which the City of Tulsa is identified as a beneficiary;

**2.** The Tulsa Airport Authority, the Tulsa Utility Board, and the Tulsa Park and Recreation Board which are created within Tulsa Amended Charter, Article V;

**3.** The Tulsa Fire Department Personnel Committee;

**4.** Members of the City Council appointed to fill a vacancy on the Council, and members of City Council committees and subcommittees; and

**5.** Ex officio members of any authority, board, commission, or committee who serve as a result of their membership, office, status, or another position which they hold.

**B.** Certain disqualifications and removals from an appointed position shall be subject to the following limitations:

**1.** Only members of City of Tulsa-Rogers County Port Authority Board of Directors appointed by the Mayor pursuant to Title 82, Oklahoma Statutes, Section 1103 and Title 22, Tulsa Revised Ordinance, Chapter 1, Appendix A, shall be subject to the provisions of this chapter; provided that their removal may only be for misfeasance, nonfeasance, or malfeasance and if removed a director shall have the right of appeal to the district court of the county from which they were appointed.

**2.** Only members of the Tulsa Metropolitan Area Planning Commission, appointed by the Mayor pursuant to Title 19, Oklahoma Statutes, Section 863.5 shall be subject to the provisions of this chapter; provided that their removal shall only be after a hearing held before the City Council.

**3.** Only members of the Tulsa City-County Board of Health appointed by the City of Tulsa pursuant to Title 63, Oklahoma Statutes, Section 1-210, shall be subject to the provisions of this chapter.

**4.** Only members of the Tulsa City-County Library Commission, appointed by the Mayor pursuant to the Oklahoma City-County Library Act, Title 65, Oklahoma Statutes, Section 151, et seq., shall be subject to the provisions of this chapter.

**5.** Members of the Tulsa Development Authority appointed by the Mayor pursuant to Title 11, Oklahoma Statutes, Section 38-107, shall be removed only for inefficiency or neglect of duty or misconduct in office by a two-thirds (⅔) majority vote of the City Council after a hearing based on written charges, a copy of which must be delivered to such Commission member at least ten (10) days before such hearing.

**6.** Appointed members of any other authority, board, commission, or committee established pursuant to law, who are authorized to be appointed by the Mayor or the City Council, provided that their disqualification and removal shall be subject to any requirements imposed by laws authorizing their appointment.

*(Ord. No. 24882, § 1, 8-10-2022)*

## CHAPTER 10. TULSA YOUTH COUNCIL*

Section 1000. Tulsa Youth Council created.
Section 1001. Membership.
Section 1002. Powers, duties, and responsibilities.
Section 1003. Offices, meetings and review.
Section 1004. Municipal personnel and agencies to assist.

### Section 1000. Tulsa Youth Council created.

A commission on the concerns of Tulsa youth (the "Tulsa Youth Council") is hereby created for the purposes of:

**A.** Establishing a youth council to foster youth participation in public service; and

**B.** Providing an identity and voice for Tulsa's diverse youth to positively influence the municipal government and local community.

*(Ord. No. 19818; Ord. No. 22067, § 1, 2-5-2009)*

### Section 1001. Membership.

**A.** The Tulsa Youth Council shall consist of twenty-one (21) members, two (2) members from each City Council district within the City and three (3) members from the City at-large to be appointed by the Mayor, subject to confirmation by a majority vote of the entire membership of the Council. Youth Councilors must be legal residents of the Council District for which he or she is appointed, or if at-large, a legal resident of the City of Tulsa. All members shall serve without compensation, and no members shall receive any form of payment from the City or from any trust, donation or legacy for any service relating to membership on the Tulsa Youth Council. Members shall neither hold nor be candidates for a City of Tulsa public office.

**B.** A City Council Staff Liaison shall be an ex-officio member of the Tulsa Youth Council. Members of the Tulsa Youth Council shall be appointed for terms of one (1) year; however, all members shall hold office until their successors are appointed and qualified.

*(Ord. Nos. 19818, 20604, 20700; Ord. No. 22067, § 1, 2-5-2009)*

### Section 1002. Powers, duties, and responsibilities.

The powers, duties, and responsibilities of the Tulsa Youth Council shall be as follows:

**A.** The Tulsa Youth Council shall have the power to draft legislation and ordinance amendments for the Tulsa City Council to consider. The Tulsa Youth Council shall draft legislation only under the sponsorship and mentorship of a City Councilor. No proposed legislation shall have effect until approved as an ordinance as provided in the Tulsa City Charter.

**B.** The Tulsa Youth Council shall serve in an advisory capacity to the Tulsa City Council and the City of Tulsa administration concerning the needs of youth in the City of Tulsa. It shall recommend programs and policies designed to alleviate the concerns and promote the beneficial ideas of today's youth.

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***Editor's note—**Ord. No. 22067, § 1, adopted February 5, 2009, amended Ch. 10, in its entirety, to read as herein set out. See also the Code Comparative Table and Disposition List.

**C.** The Tulsa Youth Council shall respond to all requests for comment and recommendation on matters referred to them by the Office of the Mayor, the City Council and all City agencies, boards and commissions.

**D.** The Tulsa Youth Council shall sponsor and hold an annual Youth Summit, focusing upon access to political officials, professional opportunities and positive development of Tulsa's youth.

**E.** The Tulsa Youth Council shall ensure a strong and diverse organization composed of a representative cross-section of the Tulsa community; to develop a public profile and increase awareness of the Tulsa Youth Council within Tulsa and surrounding areas; and to leverage the efforts of other youth organizations where appropriate through collaboration and partnering.

**F.** The Tulsa Youth Council shall report quarterly to the Tulsa City Council at a regularly scheduled Council committee meeting on the goals, accomplishments, activities and developments of the Tulsa Youth Council.

*(Ord. Nos. 19818, 20604; Ord. No. 22067, § 1, 2-5-2009)*

### Section 1003. Offices, meetings and review.

**A.** The Tulsa Youth Council shall elect a chairperson and a vice-chairperson from its membership, and shall create such other offices or committees as it may determine are necessary. The Tulsa Youth Council shall hold at least two (2) meetings per month, in accordance with the Oklahoma Open Meetings Law. It shall make quarterly reports to the Tulsa City Council of its activities and business at a regularly scheduled meeting of the City Council. It shall maintain and file with the City Clerk such rules, regulations and bylaws as it deems best to govern its actions, subject to local, state and federal law; and a record of its resolutions, transactions, findings and determinations.

**B.** The Tulsa Youth Council shall hold a strategic planning session every three (3) years to revise its vision statement and establish new goals and objectives, beginning in September 2011. The strategic plan shall be officially presented to and reviewed by the Tulsa City Council.

*(Ord. Nos. 19818, 20604; Ord. No. 22067, § 1, 2-5-2009)*

### Section 1004. Municipal personnel and agencies to assist.

The facilities of the municipal government shall be made available to the Tulsa Youth Council; and City officers, personnel and agencies shall cooperate with the Tulsa Youth Council in accomplishing the objectives and purposes set forth herein to the fullest extent allowed by City ordinance and state and federal law.

*(Ord. No. 19818; Ord. No. 22067, § 1, 2-5-2009)*

## CHAPTER 11. AUDIT COMMITTEE

Section 1100. Audit Committee created.
Section 1101. Membership.
Section 1102. Duties.
Section 1103. Offices, meetings.
Section 1104. Report.

### Section 1100. Audit Committee created.

An Audit Committee is hereby created for the purposes of:

**A.** Providing advice on financial, accounting, and auditing matters to the Mayor, the City Auditor and the City Council.

**B.** Providing review of, and recommendations concerning, City audit activities.

**C.** Monitoring corrective action taken on audit recommendations.

*(Ord. 23163, § 1, 8-21-2014)*

### Section 1101. Membership.

**A.** The Audit Committee shall consist of seven (7) members, to-wit: the Mayor, or his or her designee, the City Auditor, or his or her designee, the current Chair of the City Council, or his or her designee, and four (4) citizens at-large who shall be appointed by the Mayor, subject to the approval of the Council. Of the four (4) citizen appointees, the Mayor shall select individuals who are qualified due to experience with financial or auditing matters and who are not employees of the City of Tulsa. No members shall receive any form of payment from the City or from any trust, donation or legacy for any service relating to membership on the Committee.

**B.** The Mayor, the City Auditor, and the current Chair of the City Council shall be *ex officio* members of the Audit Committee.

**C.** The at-large committee members shall be appointed for terms of three (3) years ending December thirty-first (31st) of the third year following, provided, however, that all members shall hold office until their successors are appointed and qualified.

*(Ord. 23163, § 1, 8-21-2014)*

### Section 1102. Duties.

The duties of the Audit Committee shall be as follows:

**A.** Advise the Mayor and City Council on selection of the independent external auditors to conduct the annual financial statement audits of the City.

**B.** Meet with independent external auditors to discuss the scope of the annual financial statement audits of the City, and other matters related to such audits.

**C.** Review, and advise the City Auditor on, the annual internal audit plan.

**D.** Review, and advise the Mayor and City Council on, all internal audit reports issued by the City Auditor.

**E.** Review, and advise the Mayor and City Council on, the annual financial statement audit reports, regulatory audit reports, and other types of audit reports.

**F.** Advise the Mayor and City Council on significant matters and trends reported in internal, external, regulatory, and other types of audits.

**G.** Advise the Mayor and City Council on other financial or auditing matters.

*(Ord. 23163, § 1, 8-21-2014)*

### Section 1103. Offices, meetings.

**A.** The members of the Audit Committee shall elect a chairperson by majority vote.

**B.** The Audit Committee shall maintain and file with the City Clerk a record of its rules, resolutions, transactions, determinations, and minutes of meetings.

**C.** The Audit Committee shall be subject to the provisions of the Oklahoma Open Meeting Act, Title 25, Oklahoma Statutes Sections 301 through 314.

**D.** The facilities of the municipal government shall be made available to the Audit Committee; and City officers, personnel and agencies shall cooperate with the Audit Committee in accomplishing the objectives and purposes set forth herein to the fullest extent allowed by City ordinance and state and federal law.

*(Ord. 23163, § 1, 8-21-2014)*

### Section 1104. Report.

The Audit Committee shall make a report to the Mayor and City Council annually of its activities for the preceding year.

*(Ord. 23163, § 1, 8-21-2014)*

## CHAPTER 12. GREATER TULSA AREA AFRICAN-AMERICAN AFFAIRS COMMISSION*

Section 1200. Membership.
Section 1201. Powers, duties and responsibilities.

### Section 1200. Membership.

**A.** Pursuant to the Amended Charter of the City of Tulsa Article XII, Section 4, there is hereby created an advisory commission to the Mayor and City Council of the City of Tulsa, a municipal corporation, to be known as the Greater Tulsa Area African-American Affairs Commission, which shall be composed of twenty-three (23) members appointed by the Mayor and confirmed by a majority vote of the entire membership of the Council. Twelve (12) of the twenty-three (23) members shall each be the sole member representative of twelve (12) separate organizations, such organizations to be determined by the Mayor and submitted to, and approved by majority vote of the entire membership of the Council. Such twelve (12) organizations must have as their primary mission either the advancement of African-American culture and heritage, or the provision of services to the African-American community in Tulsa County. If the duly appointed member representative of an approved organization ceases to be an active member in good standing of such organization, the member position immediately becomes vacant and the vacancy shall be filled for completion of the term of the vacating member, all as provided in this Section.

**B.** In the event of the death or resignation of a member or if such member is otherwise unable to serve, the position immediately becomes vacant and the Mayor shall appoint, subject to confirmation of the City Council, an individual to fill the unexpired term, all as provided in this Section.

1. **Charter requirement.** Pursuant to the Amended Charter of the City of Tulsa, Article III, Section 1.4 (G), each of the twenty-three members of the Commission shall, as a condition of their appointment, and continued service, be qualified electors and maintain their principal residence within the city limits of the City of Tulsa.

2. **Members recommended by Tulsa County.** The Board of Tulsa County Commissioners may, by adoption of a resolution, recommend to the Mayor four (4) candidates for membership, such members not to be among the members representing organizations and, the appointment to be determined and made by the Mayor and subsequently confirmed by the Council as provided in the Amended City Charter and this Section.

3. **Terms of Members.** The terms of the initial twenty-three (23) members of the Commission shall be calculated as beginning on and from May 1, 2017, regardless of their date of appointment and confirmation. All members representing organizations shall serve two-year terms, and the remaining eleven (11) members shall serve terms, as follows: Three (3) member appointments, including one (1) appointment arising from County Commission recommendation, shall serve for

*__Editor's note—__Ord. No. 23639, § 1, adopted February 22, 2017, set out provisions intended for use as chapter 11. As there were already provisions so designated, the provisions have been redesignated as chapter 12, at the editor's discretion.

terms of one (1) year; three (3) member appointments, including one (1) appointment arising from County Commission recommendation, shall serve terms of two (2) years and five (5) member appointments, including two (2) appointments arising from County Commission recommendation, shall serve terms of three (3) years. Thereafter, all appointments shall be for terms of three (3) years, all terms expiring on the anniversary date of their initial appointments; provided, however, that all such appointees, except those appointees who create a vacancy pursuant to this Section, shall hold their offices until their successors have been appointed and confirmed.

4. **Represented organizations.** No represented organization duly determined and approved, and in good standing, shall be displaced by another African-American organization. A represented organization shall be in good standing so long as that organization continues to function in the community for the purposes for which it was organized, and its representative attends at least eight (8) meetings of the Commission within each calendar year.

   If a represented organization is no longer in good standing, the position of appointed member of that represented organization shall be declared vacant and the Chair of the Commission shall notify the Mayor and a determination and approval of another African-American organization to fill such vacancy shall be made as provided herein for organizations. Any question as to an organization's good standing shall be decided by the Mayor.

5. **Mayoral Appointment of Members Representing Organizations.** Each organization to be represented by a member appointed by the Mayor and confirmed by the Council, shall recommend to the Mayor at least three (3) candidates for mayoral appointment from the official roll of such organization's membership. The Mayor, in his sole discretion, may choose to appoint from such candidates so recommended, or may determine to appoint any qualified member of such organization from its official membership roll, as a Commission member, all subject to Council confirmation.

*(Ord. No. 23639, § 1, 2-22-2017)*

**Section 1201. Powers, duties and responsibilities.**

**A.** The Commission shall have power to promulgate rules and regulations governing the conduct of its meetings and the performance of its duties, and shall elect a chairman from among its members. Only members of the Commission shall serve on any Sub-committee created by the Commission. Non-members are not qualified to serve on a Sub-committee, other than as non-voting consultants, when needed. The Commission shall schedule at least one (1) regular meeting in each month and shall conduct at least eight (8) regular meetings a year at which a majority of the then serving members of the Commission shall constitute a quorum for the transaction of business. A majority vote of the quorum shall be required for official action by the Commission. All meetings of the Commission shall be conducted in compliance with the Oklahoma Open Meeting Act, Title 25 Oklahoma Statutes, Sections 301—314.

**B.** The Commission shall act in an advisory capacity to the Mayor and the City Council on matters of: 1) encouraging and promoting unity, purpose and understanding among the African-American people of the greater Tulsa area; 2) encouraging and promoting

cooperation between the African-American people of the greater Tulsa area and the local, state and federal governments for the general benefit and welfare of African-American people residing in or visiting the City and County of Tulsa; 3) identifying means to assist the African-American residents of the City and County of Tulsa to develop their talents and abilities without limitations; 4) assisting the African-American community to benefit from the fullest realization of its human resources; 5) ensuring a better understanding of the African-American people and the African-American community; 6) aiding the preservation of the cultures of the African-American people; 7) developing programs and initiatives promoting and enhancing education and employment opportunity among the African-American people; and, 8) protecting the general welfare of the African-American people of the City and County of Tulsa.

**C.** In order to advance these objectives, the Commission shall identify, advise and recommend to the elected officials of the City of Tulsa and Tulsa County: 1) to conduct specifically-identified targeted studies, surveys and inquiries to provide accurate and pertinent data for orderly and constructive community development and advancement of the African-American population; 2) to consult and cooperate with organizations represented on the Commission, as well as other organizations and agencies, both public and private, 3) regarding the utilization of the resources of certain individuals and groups to fund such specifically targeted studies, surveys and inquiries; 4) regarding means of improving intergroup relations; 5) potential community resources that would secure and extend democratic, educational, and cultural rights, opportunities and practices; and 6) regarding means of encouraging and mobilizing community support and involvement in pursuit of the goals and objectives as set forth herein for the benefit of the African-American residents and visitors and the general public in the City and County of Tulsa.

**D.** The Commission shall submit an annual report, as well as such interim reports as the Mayor and/or the City Council shall request. Such reports shall be made at a regularly scheduled Council Committee meeting. The Commission in its advisory capacity may make recommendations for improvements and legislation which the Commission finds necessary to affect the policies of the participating governmental units. It shall cooperate fully with the elected officials and officers of the City of Tulsa and Tulsa County.

*(Ord. No. 23639, § 1, 2-22-2017)*

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## CHAPTER 13. ANIMAL WELFARE COMMISSION

Section 1300. Membership.
Section 1301. Powers and duties.
Section 1302. Municipal personnel and agencies to assist.

### Section 1300. Membership.

There is hereby created an Animal Welfare Commission (the "Commission"), which shall consist of five (5) members appointed by the Mayor, subject to the confirmation of the City Council. The Mayor shall designate one (1) initial appointee as Chair of the Commission, subject to City Council confirmation. Subsequent to the initial term described in Section 1300(A), below, the Commission shall elect a Chair from among its members.

**A. Terms.** Initial Mayoral appointments shall serve until December 31,2020. Subsequently, one (1) of such appointments shall be for a term of one (1) year, two (2) for terms of two (2) years and two (2) for terms of three (3) years. Thereafter, Mayoral appointments shall be for terms of three (3) years; provided, however, that all members shall hold office until their successors are appointed and qualified.

**B. Removal from office.** The appointing authority may remove members of the Commission who have three (3) or more consecutive absences.

*(Ord. No. 24045, § 1, 11-28-2018)*

### Section 1301. Powers and duties.

**A.** The Commission shall have power to promulgate rules and regulations governing the conduct of its meetings and the performance of its duties. The Commission shall hold at least two (2) regular meetings in each calendar quarter and a majority of members of the Commission shall constitute a quorum for the transaction of business. A majority vote of the quorum shall be required for official action by the Commission.

**B.** The Commission shall provide advice and advocacy to improve the care of animals at Tulsa Animal Welfare facilities; support animal control efforts; increase opportunities for animal adoption; address pet overpopulation; educate the public on the obligations of responsible pet ownership and the importance of spaying and neutering; and advise the public and City staff to ensure that neighborhoods and residents are safe from the dangers and nuisances of stray animals.

**C.** To accomplish these objectives, the Commission shall advise and recommend to the Mayor and City Council programs and best practices designed to promote public safety and protect animals and citizens; make and conduct studies, surveys, and investigations to ensure that Animal Welfare facilities are operated humanely and effectively; consult and cooperate with allied organizations and agencies, both public and private; and utilize the resources of individuals and groups in pursuit of the purposes and objectives as set forth herein.

**D.** The Commission shall submit an annual report and such interim reports as it may desire to the Mayor and City Council.

*(Ord. No. 24045, § 1, 11-28-2018)*

## Section 1302. Municipal personnel and agencies to assist.

The facilities of the participating governmental units shall be made available to the Commission; and at all times the personnel and agencies of the City of Tulsa shall cooperate with and assist the Commission to accomplish the purposes and objectives set forth herein, as directed by the Mayor.

*(Ord. No. 24045, § 1, 11-28-2018)*

## CHAPTER 14. TULSA ROUTE 66 COMMISSION

Section 1400. Tulsa Route 66 Commission created.
Section 1401. Membership.
Section 1402. Duties.
Section 1403. Cooperation with others.
Section 1404. Offices, meetings.

### Section 1400. Tulsa Route 66 Commission created.

The Tulsa Route 66 Commission is created for the purposes of advising the Mayor and Council:

**A.** On research and identification of best practices or examples of successful community revitalization and building effective strategies for leveraging tourism for economic development along historic Route 66 in the City of Tulsa.

**B.** On ideas and proposals to develop a comprehensive marketing and communications strategy to promote the road that leverages social media and provides a cohesive website and a clearinghouse for information.

**C.** On ideas and proposals on strategies to educate the public, tour operators, communities, entrepreneurs, governments and the next generation about the history, cultural importance, economic value, attractions, and business opportunities along historic Route 66 in the City of Tulsa.

**D.** As to the Commission's identification of efforts and case studies that demonstrate the effectiveness of leveraging Route 66 tourism for economic development purposes to draw support and increase involvement of Route 66 stakeholders.

**E.** Providing for the government of the City of Tulsa and for its citizens a continuing source of respected and talented opinion and advice regarding that portion of historic U.S. Route 66 which is in or around the city limits, including but not limited to public efforts to maintain, redevelop, beautify and enhance it as an economic development engine for the City of Tulsa.

*(Ord. No. 25321, § 1, 5-22-2024)*

### Section 1401. Membership.

The Commission shall be composed of nineteen (19) members appointed by the Mayor and confirmed by the Council. The members shall be thirteen members representing a diverse array of Route 66 street alignments, Council districts, and industries, and the following individuals or their designees: the Tulsa City Councilors for Districts 1, 2, 3, 4, 5 and 6. However, no more than four (4) individuals holding the office of City Councilor shall personally hold the Commission seat at any time.

Beginning July 1, 2024, one-third (⅓) of the members shall be appointed for terms of one (1) year; one-third (⅓) for terms of two (2) years; and one-third (⅓) for terms of three (3) years. Thereafter, members shall be appointed for three (3) year terms; provided, however, that all members shall hold office until their successors are appointed and qualified. Members of the Commission shall serve without compensation and no member shall receive any compensation from the City or from any trust, donation or legacy for any service relating to membership on the Commission.

*(Ord. No. 25321, § 1, 5-22-2024)*

## Section 1402. Duties.

The duties of the Route 66 Commission shall be as follows:

**A.** Pursue accomplishment of the purposes of the Commission set forth in Section 1400, herein.

**B.** Support and assist the efforts of the City of Tulsa, state of Oklahoma, local development corporations, industrial committees, chambers of commerce and other similar public and private agencies in promoting Route 66 in and around the City of Tulsa;

**C.** Maintain a continuing evaluation of sources available for formulating advice and recommendations as to financing the development and expansion of facilities in and around Route 66;

**D.** Develop and recommend the adoption and implementation of plans, policies and programs to encourage the economic development of the City of Tulsa;

**E.** Provide oversight for the Roadside Attraction Program, the Neon Sign Grant Program, the Special Events Grant Program, the Façade Grant Program, or any other Route 66 initiative assigned by the City.

**F.** Provide advice as to strategies for encouraging and promoting, through advertising and the use of Route 66, develop the City of Tulsa as a convention and tourist center; and

**G.** Prepare and submit to the Mayor an annual budget and performance report.

**H.** The Commission shall also provide an annual report to the Mayor and City Council on or before December 31 of each year. The Commission shall also provide updates to the Mayor and City Council as requested; and

**I.** Assume such other duties regarding Route 66 matters as the Mayor may from time to time assign.

*(Ord. No. 25321, § 1, 5-22-2024)*

## Section 1403. Cooperation with others.

The Tulsa Route 66 Commission shall:

**A.** Work with public boards, agencies and authorities in establishing goals for projects and shall assist the City of Tulsa in the evaluation of redevelopment proposals;

**B.** Work closely with the Tulsa Metropolitan Area Planning Commission in ensuring future development, rezoning and/or planning decisions are consistent with the City's vision of Route 66 development;

**C.** Work closely with the Department of City Experience and other City departments in developing a program of beautification along public thoroughfares with appropriate landscape treatment, plantings maintenance and design of amenities, all intended to promote beauty, to preserve and enhance property values on existing streets and public spaces and to stimulate similar private efforts;

**D.** Advise the Mayor and Council of such other proposals for the use and preservation of buildings and objects of historical, architectural or cultural significance;

**E.** Identify and advise the Mayor and Council of potential grants to provide funding for related purposes in keeping with the purposes of the Route 66 Commission;

**F.** Upon specific request from the owners of private property in relation to their property or to any person, group or entity planning to erect any building or make any improvement to private property, provide advice or suggestions regarding matters solely related to Route 66 and the Commission's purposes or duties.

**G.** Upon specific request from any department or agency of the City, or public trust having the City of Tulsa as a beneficiary, provide advice and suggestions regarding matters related to Route 66 and the Commission's purposes or duties.

*(Ord. No. 25321, § 1, 5-22-2024)*

### Section 1404. Offices, meetings.

The Tulsa Route 66 Commission shall create and fill such offices as it may determine are necessary for the performance of its functions. It shall hold at least one (1) regular meeting in each month. It shall adopt rules for the transaction of business such as election of officers and subcommittee structure and shall keep a record of its resolutions, transactions, findings and determinations.

*(Ord. No. 25321, § 1, 5-22-2024)*

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# TITLE 6 FINANCE DEPARTMENT

**Chapter 1. Organization and Duties**
**Chapter 2. Budget**
**Chapter 3. Treasury**
**Chapter 4. Purchasing**
**Chapter 5. Accounting**
**Chapter 6. Revenue Collection**

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## CHAPTER 1. ORGANIZATION AND DUTIES

Section 100. Finance Department.
Section 101. Director of Finance.

### Section 100. Finance Department.

The Finance Department shall include Budget, Treasury, Purchasing, Accounting and Revenue Collection.

### Section 101. Director of Finance.

The Director of Finance shall be the executive head of the Finance Department. Under the direction of the Mayor, he shall be responsible for the direction, operation and administration of the various activities within the Finance Department and shall perform such other duties as may be assigned by the Mayor.

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## CHAPTER 2. BUDGET

Section 200. Budget requests—Filing.
Section 201. Itemization of budget requests.
Section 202. Approval of budget.
Section 203. Emergency operations reserve.
Section 204. Reserved.
Section 205. Annual transfer from enterprise utilities to general fund.
Section 206. Economic Development Incentive Policy.

### Section 200. Budget requests—Filing.

It shall be the duty of all departments, agencies, boards and commissions of the City of Tulsa to annually file with the Mayor the budget requests for each such department, agency, board or commission in accordance with the statutes of the state of Oklahoma, the Charter and Revised Ordinances of the City of Tulsa on forms designed and approved by the Mayor.

### Section 201. Itemization of budget requests.

The classification of proposed expenditures included within the budget requests shall be uniform for all departments, agencies, boards and commissions of the City of Tulsa, shall be reviewed by the Finance Department, and shall include such information as required by the Department, which may include the following:

**A.** An itemized estimate of the total expenditures for the next fiscal year, segregated according to basic objects of expenditures;

**B.** An itemized estimate of the expenditures for the remainder of the current fiscal year, segregated according to basic objects of expenditures;

**C.** A schedule in detail of positions and compensation, showing any increase or decrease in any department or office;

**D.** The reason for proposed increase or decrease of positions, if any, as compared with the current fiscal year; and

**E.** A detailed schedule of new equipment or other items involving capital outlay, including a justification of the same.

### Section 202. Approval of budget.

The annual budget appropriation shall be approved in compliance with the procedure established by the statutes of the state of Oklahoma, the Charter and Revised Ordinances of the City of Tulsa.

### Section 203. Emergency operations reserve.

There is hereby created, within the General Fund, an Emergency Operations Reserve, to be maintained for the purpose of sustaining General Fund operations in the case of natural or man-made disaster.

**A.** It is the objective of this ordinance that the Emergency Operations Reserve shall be maintained at a minimum of ten percent (10%) of the total General Fund budget

unless, during the annual budget process, the Mayor declares to the satisfaction of the City Council the reasons that the Emergency Operations Reserve cannot prudently be maintained at said ten percent (10%).

**B.** Funds in the Emergency Operations Reserve may be appropriated to respond to a natural or man-made disaster. If the response results in the need for additional appropriations, a budget amendment shall be submitted to the City Council as soon as total costs are determined.

**C.** Whenever funds from the Emergency Operations Reserve are used to respond to such a disaster, an effort will be made to replenish the shortfall within a reasonable time. Disaster relief reimbursements and grants received from other sources shall be used to replenish the Emergency Operations Reserve.

**D.** The Emergency Operations Reserve funds shall not be used to fund new programs, wage increases or new personnel costs.

*(Ord. No. 23062, § 1, 3-6-2014)*

### Section 204. Reserved.

**Editor's note—**Ord. No. 24392, § 1, adopted June 17, 2020, repealed § 204, which pertained to post-employment healthcare benefit reserve and derived from Ord. No. 23062, § 1, 3-6-2014.

### Section 205. Annual transfer from enterprise utilities to general fund.

**A.** In lieu of fees and taxes assessed on other public service utilities, a portion of the income derived from water service, sanitary sewer user charges, stormwater drainage system service charges, and refuse collection, shall be transferred to the City General Fund.

**B.** The amount of said portion shall be calculated thus: the average rate of all franchise fees paid by public utilities as of July 1 of a given year PLUS the City of Tulsa sales tax as of July 1 of said year.

**C.** In lieu of the provision of water and sewer services for municipal purposes described in Article III(B) of the Water System Lease Agreement and Operation and Maintenance Contract, dated February 1, 1984, and the Wastewater System Lease Agreement and Operation and Maintenance Contract, dated July 1, 1989, by and between the City of Tulsa, the Tulsa Utility Board, and the Tulsa Metropolitan Utility Authority, as those agreements may be amended or extended from time to time, an additional increment of seventy-five one hundredths of one percent (0.75%) of water service income will be transferred from the TMUA-Water Operating Fund to the General Fund.

*(Ord. No. 23742, § 1, 7-26-2017; Ord. No. 24106, § 1, 4-3-2019)*

### Section 206. Economic Development Incentive Policy.

**A. Scope.** This section shall apply to the appropriation of funds derived from sales tax ordinances and offered to third parties for the purpose of incentivizing economic development. This includes but is not limited to the Downtown Development and Redevelopment Fund, Economic Development Infrastructure Fund, Retail Incentive Policy, Retail Revolving Loan Fund, Affordable Housing Trust Fund, and any changes thereto, as well as any new economic incentive programs developed for the purpose of incentivizing economic development or similar purposes that are supported in whole or

in part by City of Tulsa funds. This section shall apply regardless of whether the economic incentive policies are administered by the City of Tulsa or contracted through an outside entity. Economic incentive programs facilitated by the Route 66 Commission or governed by a more specific ordinance are not within the scope of this section.

**B. Procedure.**

**1.** Prior to the expiration of ninety days after the effective date of this ordinance, the City shall adopt by Resolution an Economic Development Incentive Policy for the funds described in Subsection 206.A of this section.

**2.** The Economic Development Incentive Policy shall include the policies, processes, and review procedures for economic development incentives.

**3.** Any subsequent amendments to the policies, processes, and review procedures shall be approved by the Mayor and Council through Resolution.

*(Ord. No. 25080, § 1, 6-28-2023)*

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## CHAPTER 3. TREASURY

Section 300. City Treasurer.
Section 301. Treasurer's bond.
Section 302. Bond records.
Section 303. Deposits and collateral.
Section 304. Designation of fiscal agent for the City.
Section 305. Disbursement of funds.
Section 306. Registration of warrants.
Section 307. Cancellation and storage of warrants and checks.

### Section 300. City Treasurer.

The City Treasurer shall:

**A.** Deposit and maintain the funds of the City in depositories approved by the Council;

**B.** Invest the funds of the City; and

**C.** Perform such other duties as assigned by the Mayor or as prescribed by the Charter, the Revised Ordinances of the City of Tulsa or by the laws of Oklahoma.

### Section 301. Treasurer's bond.

The City Treasurer shall be required to execute and file with the City Clerk a good and sufficient bond in a sum not less than One Hundred Thousand Dollars ($100,000.00) to be fixed by resolution of the Council; and the Council may from time to time, when deemed necessary, require him to give a new bond or additional bond, or may increase or decrease the amount of the bond.

### Section 302. Bond records.

The Treasurer shall keep or cause to be kept separate records for each issue of bonds outstanding against the City, whether such bonds are registered, in bearer form or in book entry form. Nothing herein shall prevent the appointment and compensation by the City of a registrar and/or a transfer and paying agent to effect the transfer of ownership or change of payee of any bonds issued by the City and to maintain books and records relating thereto.

### Section 303. Deposits and collateral.

The City Treasurer shall deposit all monies of the City of Tulsa with such institutions in the City as shall have been named as City depositories by the Council of the City of Tulsa. It shall be the responsibility of the City Treasurer to make certain that all such deposits, as well as all surety bonds, are fully collateralized as required by the City Charter, the Revised Ordinances of the City of Tulsa, the statutes of the state of Oklahoma, and/or by policies adopted by the City Council.

### Section 304. Designation of fiscal agent for the City.

Upon recommendation by the Director of Finance, following the request for and receipt of competitive bids, the Mayor shall designate a financial institution to serve as registrar or transfer and paying agent for City of Tulsa bond issues. Such designation shall be subject to any requirements as set forth in the Charter of the City of Tulsa and the statutes of the state of Oklahoma.

*(Ord. No. 17605)*

### Section 305. Disbursement of funds.

Monies may be drawn from the municipal treasury only upon a proper warrant or check as provided by law, the Charter or Revised Ordinances of the City of Tulsa; provided, however, that the Director of Finance may also authorize payments from the municipal treasury by wire transfer, direct payroll deposit or other instrument or method of disbursement through the Federal Reserve System.

*(Ord. No. 17605)*

### Section 306. Registration of warrants.

In the event that the City issues "no-fund" warrants, the Director of Finance shall keep a record of such warrants in numerical order and shall note thereon the number of the warrant, the date of its issuance, to whom issued, the date of registration, the amount of warrant and the date of payment.

*(Ord. No. 17605)*

### Section 307. Cancellation and storage of warrants and checks.

All warrants and checks paid by the City shall be canceled and stored for reproduction purposes by the Finance Department in a method deemed reliable by the Director of Finance and industry standards for a period of five (5) years.

*(Ord. Nos. 17605, 20249)*

## CHAPTER 4. PURCHASING*

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### Section 400. Definitions.

**A.** Unless otherwise provided herein, for the purpose of this chapter, the following terms, phrases, words and their derivations shall have the meanings given herein.

**1.** **Architectural and Engineering Services** means professional services of an architectural or engineering nature which require professional training and/or licensing. This may include services related to landscape architecture and surveying, mapping, testing, value engineering, construction project management, and the creation of plans and specifications related to public construction projects.

**2.** **Auction** means a public sale in which items are sold to the highest bidder.

**3.** **Bid** means a response to a competitive process.

**4.** **Bidder** means a company or individual submitting a response to a competitive process.

**5.** **City** refers to the City of Tulsa, Oklahoma, and means the City government in all its forms, including not only all City departments but also any commission or board of the City acting for or on behalf of the City of Tulsa provided, however, that any improvement district created pursuant to 11 O.S. 1991 §§ 39-101, *et seq.*, or any public trust created pursuant to 60 O.S. § 176, *et seq.*, shall not be included in this definition thereby exempting such improvement districts or trusts from the provisions of this chapter.

**6.** **City's Objectives** include: a) procuring supplies, services, and information technology systems that meet the needs of the using departments, at the least

*__Editor's note—__Ord. No. 22529, § 1, adopted September 29, 2011, amended Ch. 4, in its entirety, to read as herein set out in Sections 400 through 416. Prior to inclusion of said ordinance, Ch. 4 pertained to similar subject matter. See also the Code Comparative Table and Disposition List.

expense to the City by utilizing as full and open a competitive process as practical; and b) obtaining the greatest benefit to the City in the disposition of surplus supplies by utilizing as full and open a competitive process as practical.

7. **City Purchasing Agent,** or **Agent,** is the employee holding the position of Purchasing Agent of the City of Tulsa, Oklahoma.
8. **Competitive Process** means the process by which offers are solicited, and includes: Request for quote, invitation for sealed bid, two-step sealed bid, competitive sealed proposal, request for proposal, auction, and reverse auction.
9. **Contractual Services** means services which are predominantly physical or manual in nature, and involve the furnishing of labor, any materials or supplies necessary to perform the service, time, and effort by a supplier to perform an identifiable task, not typically involving delivery of a specific end product, and includes but is not limited to: landscaping, mowing, cleaning, sweeping, hauling, pest control, security, wrecker services, and repairs and maintenance of equipment, machinery, and other City-owned property or facilities; and communication services including but not limited to telephone, long distance, cell phone, internet, and video services. The term shall not include: Professional services; insurance; employee benefit plans; financial services; architectural and engineering services; services involved in public construction projects; nor shall it include services or maintenance authorized and provided for an improvement district pursuant to 11 O.S.1991, § 39-103.1.
10. **Cooperative Purchasing Plan** shall mean an arrangement entered into between two (2) or more entities of government for acquisitions pursuant to a cooperative agreement obtained through competition.
11. **Council** is the legislative body of the City of Tulsa, Oklahoma.
12. **Electronic** means in digital, electrical, or optical form, as utilized in computer and document processing equipment.
13. **Financial Interest** means ownership by the Agent, an officer or employee of the City, or members of the immediate family of such Agent, officer or employee, individually or in combination, of five percent (5%) or more of a company or business when the value of such ownership interest exceeds Five Thousand Dollars ($5,000.00).
14. **Financial Services** means and includes, but is not limited to, banking, credit card processing, collection, auditing, debt management, investment, and arbitrage services.
15. **Immediate Family** has the meaning set forth in the City's Ethics Ordinance, 12 TRO Section 601.
16. **Information Technology System** means and includes computer equipment, software, and services necessary to provide an integrated system for communicating, processing, storing, and retrieving information electronically, the acquisition of which is governed by this chapter.
17. **Mayor** shall mean the chief executive officer of the City of Tulsa or his designee.
18. **Online** means utilizing the Internet.

19. **Performance-Based Efficiency Contracts** shall have the meaning as set forth in Title 62 Section 318 of the Oklahoma Statutes, as amended from time to time.
20. **Price** means the individual price(s) of an item, or group of items, submitted by the bidder.
21. **Professional Services** means services which are predominantly mental or intellectual in nature, rather than physical or manual, and which do not typically involve the supply of products. Professional services include: Consulting; computer programming and consulting; services to support decision making, policy development, management, administration, or the operation of management systems; and do not include architectural and engineering services, or legal services.
22. **Public** means available to and accessible by the general population. Activities conducted online are generally considered public, so long as reasonable electronic access is available to all interested parties.
23. **Public Construction Project** means construction, alteration, repair, improvement, moving, wrecking or demolition of property owned by the City. Public construction project does not include the routine maintenance of City facilities or property, the repair or improvement of personal property, or the direct purchase or lease by City of materials, equipment, supplies or other personal property. Public construction project also does not include the following personal property as set forth in paragraphs 1 through 4 of section 430.1B of Title 62 of the Oklahoma Statutes:
    **a.** Portable, or otherwise moveable, buildings and structures;
    **b.** Prefabricated metal buildings and structures, along with necessary utility services for such buildings or structures;
    **c.** Roofs placed over existing roof structures where total payments, including total payments of principal and interest under lease-purchase contracts, are not expected to exceed Twenty-Five Thousand Dollars ($25,000.00);
    **d.** Other structures or property that can be disassembled after installation and removed without permanent physical damage to existing property.
24. **Purchasing** means the functional area governed by this chapter within the Finance Department.
25. **Purchasing Card** means and includes the commercial credit card issued to authorized City employees for the purchase of supplies and services.
26. **Reverse Auction** means a public offer to buy supplies, services, and information technology systems from the lowest secure bidder.
27. **Services** means and includes contractual, professional, and financial services, the acquisition of which is governed by this chapter.
28. **Sole Brand Acquisition** means an acquisition which, by specification, restricts the acquisition to one (1) manufacturer or brand of product which can be acquired through a competitive process.
29. **Solicitation** means the document(s) used to solicit offers in a competitive process.
30. **Sole Source Acquisition** means an acquisition which, by specification, restricts the acquisition to one (1) manufacturer, or brand, of product which can only be provided by one (1) source.

31. **Supplies** means and includes, but is not limited to, all office supplies, cleaning supplies, safety supplies, materials, commodities, parts, fuel, equipment, and standard computer hardware, standard communications equipment, and standard software.

32. **Using Department** is any department, board, commission, department subdivision, section, or other unit in the City government using supplies, services, or information technology systems as herein provided, except as otherwise exempted by 11 O.S. 1991 §§ 39-101, *et seq.*, or 60 O.S. § 176, *et seq*.

**B.** When not inconsistent with the context, the masculine, feminine, and neuter genders may be used interchangeably, words used in the present tense include the future, words in the plural number include the singular number, and words in the singular number include the plural number. The word "shall" is always mandatory.

*(Ord. No. 22529, § 1, 9-29-2011)*

## Section 401. City Purchasing Agent.

The Agent shall have the powers and duties prescribed herein.

**A. Bond.** The Agent shall be bonded in the sum of One Hundred Thousand Dollars ($100,000.00).

**B. Scope of Purchasing Authority.**

1. The Agent shall have the power and it shall be the Agent's duty to purchase or contract for all supplies, services, and information technology systems needed by any using department of the City in accordance with:

   **a.** This chapter;

   **b.** Such written rules and regulations as the Agent shall adopt for the internal management and operation of purchasing, including rules and regulations concerning the receipt and disposal of supplies determined to be surplus in accordance with Section 411 of this chapter; and,

   **c.** Such other written rules and regulations as shall be prescribed by the Charter and Revised Ordinances of the City of Tulsa.

2. **Rules and Regulations.** All rules and regulations for the internal management and operation of purchasing, including rules and regulations concerning the receipt and disposal of supplies determined to be surplus in accordance with Section 411 of this chapter, shall be formulated, adopted and revised by the Agent and shall be approved by the Council and filed in the office of the City Clerk.

3. **Exception Prohibited.** The Agent when using his authority to procure supplies, services, and information technology systems for all using departments shall not exclude any particular using department.

4. **Unlawful Purchases.** Except as herein provided, it shall be unlawful for any City officer or employee to order the purchase of any supplies, services, and information technology systems or make any contract within the purview of this chapter, other than through the Agent, or his designee, and any such purchase ordered or any contract made contrary to the provisions herein shall not be approved by City officers, and the City shall not be bound thereby.

**C. Additional Powers and Duties.** In addition to the purchasing authority conferred in Subsection B. above and in addition to any other powers and duties conferred by this chapter, the Agent, or his designee, shall perform the following duties:

1. **Minimum Expenditure.** The Agent shall act to procure for the City supplies, services, and information technology systems that meet the needs of the using departments at least expense to the City.
2. **Encourage Competition.** The Agent shall endeavor to obtain as full and open competition as possible on all purchases and sales.
3. **Purchasing Analysis.** The Agent shall keep informed of current developments in purchasing, prices, market conditions and new products, and shall secure for the City the benefits of research done in the field of purchasing by other governmental jurisdictions, national technical societies, trade associations having national recognition and by private businesses and organizations.
4. **Bidder Database.** The Agent shall maintain a database of interested bidders with information including, but not limited to, the supplies, services, and information technology systems potential bidders are interested in providing to the City and the surplus supplies they may be interested in purchasing from the City.
5. **Bulk Purchases.** The Agent shall explore opportunities for buying in bulk so as to take full advantage of discounts.
6. **Federal and State Tax Exemptions.** The Agent shall act so as to procure for the City all federal and state tax exemptions to which it is entitled.
7. **Disqualification of Bidders.** The Agent shall have the authority to declare that bidders who default on their bids, purchase orders, or contracts are not secure bidders, as defined in Section 407.D., and to disqualify them from submitting bids or being awarded contracts or purchase orders from the City for a stated period of time.
8. **Written Specifications.** The Agent shall adopt and enforce written specifications as required to procure all supplies, services, and information technology systems.
9. **Standardization.** The Agent shall adopt a minimum number of standard qualities, sizes and varieties of supplies consistent with the successful operation of the City government.
10. **Effects of Adoption.** After its adoption, each standard specification shall, until revised or rescinded, apply to every future purchase and contract for the supply described in such specification.
11. **Laboratory Facilities.** The Agent shall have the authority to make use of the laboratory and engineering facilities of the City and the technical staffs thereof in preparing and adopting standards and written specifications and evaluating bids for compliance with standards and specifications.
12. **Pre-Bid Conference.** The Agent shall have the authority to conduct pre-bid conferences and make attendance mandatory for bidders wishing to submit a bid.
13. The Agent shall have the authority to establish committees to assist, as needed, in the development of specifications and requirements for bids, the development of evaluation criteria and in the evaluation of bids submitted.

*(Ord. No. 22529, § 1, 9-29-2011)*

## Section 402. Requisitions and estimates.

All using departments, with the authorization of the head of that department, shall file with the Agent, or his designee, detailed requisitions or estimates of their requirements for supplies, services, and information technology systems in such manner as the Agent shall prescribe.

**A. Unforeseen Requirements.** A using department shall not be prevented from filing with the Agent, or his designee, in the same manner, at any time, a requisition or estimate for any supplies, services, and information technology systems, the need for which was not foreseen when the detailed estimates were filed.

**B. Revisory Power in Agent.** The Agent, or his designee, shall examine such requisition or estimate and shall have the authority to revise it as to quantity, quality or estimated cost; but revision as to quality shall be in accordance with the standards and specifications established pursuant to this chapter.

**C.** The Agent, or his designee, shall have the authority to consolidate requisitions from two (2) or more using departments to take full advantage of bulk purchasing discounts.

*(Ord. No. 22529, § 1, 9-29-2011)*

## Section 403. Encumbrance of funds.

Except in cases of emergency, the Agent, or his designee, shall not issue a purchase order or present a contract for approval until the Director of Finance certifies that there is to the credit of the using department a sufficient unencumbered appropriation balance to cover the amount of such purchase order or contract.

*(Ord. No. 22529, § 1, 9-29-2011)*

## Section 404. Prohibition of financial interest.

**A. Disclosure.** The Agent, or any officer or employee of the City shall disclose in writing a financial interest in any company or business submitting a bid for a purchase order or contract within the purview of this chapter. Such disclosure shall be filed with the City Clerk immediately upon the Agent, employee or officer having knowledge that a bid will be or has been submitted to the City. Such disclosure shall reference the company or business in which the financial interest exists and shall identify the bid submitted or to be submitted. Upon receipt, the City Clerk shall forward copies of all such disclosures to the Agent, or if the disclosure is from the Agent, the City Clerk shall forward copies of all such disclosures to the Director of Finance.

**B. Prohibition.** No award shall be made to an individual, company or business in which the Agent, or any officer or employee of the City has a financial interest; provided, however, that, subject to the provisions of the Charter of the City of Tulsa, the Mayor, in any case where such disclosure has been filed, may after examination of all the facts and circumstances, award a purchase order or contract to such individual, company or business where the City will receive extraordinary benefits by virtue of such purchase order or contract. Under no circumstance shall an award be made to a company or business in which the Agent has a financial interest. Any contract or purchase order entered into in violation of this section is voidable by the City.

*(Ord. No. 22529, § 1, 9-29-2011)*

**Section 405. Petty expenditures.**

**A. Cash.** There is hereby created an account maintained, supervised, and controlled by the Director of Finance of the City for the purpose of making purchases or expenditures in cash by City officers or employees in any City department for supplies and services related to City business, which do not exceed the sum of One Hundred Dollars ($100.00). Such expenditures may be reimbursed from the account upon a signed request from the department head authorizing such purchases or expenditures.

**B. Purchasing Card.** Any City officer or employee in any City department who is an authorized user of a purchasing card may utilize the purchasing card to access the account for supplies and services related to City business, the total cost of which does not exceed the sum of Two Thousand Four Hundred Ninety-Nine Dollars and Ninety-Nine Cents ($2,499.99).

**C. Amount of Fund.** The amount to be placed in the account and the allocation of the account among the various City departments shall be determined by the Mayor or his designee.

**D. Rules and Regulations.** The Director of Finance shall promulgate written rules and regulations for the use of the account, which shall be approved by the Council and filed with the City Clerk.

*(Ord. No. 22529, § 1, 9-29-2011)*

**Section 406. Competitive process required.**

All purchases of and contracts for supplies, services, and information technology systems, except for petty expenditures covered by Section 405 and sole source acquisitions covered by Section 414, shall be made using a competitive process as defined herein. The most stringent competitive process that will achieve the City's objectives shall be used as determined by the Purchasing Agent. For all competitive processes except for the request for quote, a written statement of the reasons for not using a more stringent competitive process in a particular acquisition shall be approved by the Agent, and filed with the office of the City Clerk.

**A. Request for Quote.** The request for quote process may be used for the acquisition of supplies or services when the City's objectives will be achieved by use of such process.

**1. Criteria.** The value of the supplies or services to be obtained through this process must have an estimated cost of less than Twenty-Five Thousand Dollars ($25,000.00).

**2. Procedure.** A request for quote shall be based on competitive quotations as set forth below, and shall be awarded to the lowest secure bidder, as defined herein. The request for quote is informal, and can be made without newspaper advertisement and without the requirement for the execution of a formal contract. Upon approval by the Agent, or his designee, a purchase order shall be issued for these purchases.

**a. Minimum Number of Bids.** The Agent, or his designee, shall make at least four (4) requests by e-mail, fax, telephone or online inquiry for competitive quotations with at least one (1) such request to be made to an individual or company in the bidder database that is registered with the City as a minority owned, women owned, or disadvantaged business enterprise for the commodity code or item being purchased, if such individual or company exists in the database.

**b. Recording.** The Agent, or his designee, shall keep a record of all requests for quotes and the quotes submitted in response thereto, and such records shall be open to public inspection at all reasonable times.

**B. Invitation for Sealed Bid.** The invitation for sealed bid process shall be used for each acquisition in which the City's objectives will be achieved by such process. Supplies and contractual services are generally acquired through the sealed bid process.

**1. Criteria.** The following conditions typically warrant utilization of an invitation for sealed bid.

**a.** Specifications for the supplies and contractual services can be adequately detailed in advance, in the invitation for bid.

**b.** A satisfactory number of potential bidders exist in the market which can comply with these specifications.

**c.** It is not necessary to negotiate with a selected bidder in order for the City's objectives to be met.

**2. Procedure.** Competitive sealed bids shall be solicited from all prospective bidders who have registered in the bidder database for the items included in the acquisition. The requirements for competitive processes set forth in Section 407 shall apply to invitations for sealed bid.

**a.** The following restrictions shall apply to an invitation for sealed bid:

(1) No negotiation of material aspects of a bid is allowed.

(2) Except in the case where a valid basis for such correction is evident from the bid submitted, no alteration or correction of the bid shall be allowed.

(3) Bids shall be evaluated based on the specifications set forth in the invitation for sealed bids.

**C. Two-Step Sealed Bid.** If the City's objectives will not be achieved through an invitation for sealed bid process, then a two-step sealed bid process shall be used for the acquisition, if the use of such process will achieve the City's objectives. The two-step sealed bid process may be used for acquisitions including, but not limited to, information technology systems and contractual services.

**1. Criteria.** The following conditions typically warrant utilization of a two-step sealed bid process:

**a.** It is advantageous to the City to prequalify potential bidders and/or it is difficult for the City to develop adequate specifications for the acquisition or to specify the best method for achieving the desired result without the input of potential bidders.

**b.** It is advantageous to the City to evaluate technical offers to determine their acceptability to fulfill the procurement specifications before soliciting sealed priced bids.

**c.** It is advantageous to the City to conduct discussions for the purpose of facilitating understanding of the technical offers and procurement specifications and, where appropriate, to obtain supplemental information, permit amendments to technical offers and/or to amend the procurement specifications.

2. **Procedure.** Except as provided herein, the requirements for competitive processes set forth in Section 407 shall apply to the two-step sealed bidding process:

   **a.** The two-step invitation for bid shall state:

   (1) That unpriced technical offers are requested;

   (2) That it is a two-step sealed bid procurement, and priced bids will be considered only in the second step and only from those bidders whose unpriced technical offers are found acceptable in the first step;

   (3) The criteria to be used in the evaluation of the unpriced technical offers;

   (4) That the City may conduct oral or written discussions with bidders; and

   (5) That priced bids must be submitted at the time they are requested by the Agent, or his designee.

   **b.** After receipt of the unpriced technical offers, amendments to the invitation for bids shall be distributed only to bidders who submitted acceptable unpriced technical offers, and they shall be permitted to submit new unpriced offers or to amend those unpriced offers previously submitted.

   **c.** Unpriced technical offers shall not be disclosed publicly but shall be opened in front of at least two (2) City employees, one (1) of whom shall be the Agent, or his designee. Notwithstanding the foregoing, bidders names may be announced at a public bid opening meeting.

   **d.** The unpriced technical offers submitted by bidders shall be evaluated solely in accordance with the criteria set forth in the invitation for bids.

   **e.** The Agent, or his designee, may initiate step two of the process if, in the Agent's opinion, there are sufficient acceptable unpriced technical offers to assure effective price competition in the second step without technical discussions. If not, the Agent, or his designee, may issue an amendment to the invitation for bids or may conduct discussions, including requesting supplemental information, with any bidder submitting an acceptable technical offer.

   **f.** Upon completion of the technical discussions, if any, the evaluation of any supplemental information submitted and the final determination of the acceptable bidders, the Agent, or his designee, shall invite each acceptable bidder to submit a priced bid. No public notice of this invitation to submit bids shall be required because notice was previously given.

**D. Competitive Sealed Proposal.** If the City's objectives will not be achieved through an invitation for sealed bid or a two-step sealed bid process, then a competitive sealed proposal process shall be used for the acquisition, if the use of such process will achieve the City's objectives. The competitive sealed proposal process may be used for acquisitions including, but not limited to, information technology systems, professional services, and financial services.

1. **Criteria.** The following conditions typically warrant utilization of a competitive sealed proposal:

   **a.** It is advantageous to the City to conduct oral or written discussions with bidders, after proposals are received, concerning technical and price aspects of the proposals and/or to allow bidders to revise their proposals, including price;

**b.** It is advantageous to the City to evaluate, after proposals are received, the relative abilities of bidders to perform, including their technical or professional experience and/or expertise;

**c.** It is advantageous to the City to conduct a comparative evaluation, after proposals are received, of the differing price, service, quality, contractual factors, technical content and/or technical and performance capability of the proposals;

**d.** It is advantageous to the City to negotiate mutually agreeable terms in a contract;

**e.** It is advantageous to the City to conduct a comparative evaluation of the artistic and aesthetic merits of the proposals with price being a secondary consideration.

**2. Procedure.** Except as provided herein, the requirements for competitive processes set forth in Section 407 shall apply.

**a.** In addition to describing the specifications of the proposal, the solicitation shall state the relative importance of price and other evaluation factors.

**b.** The solicitation shall notify potential bidders that discussion may, or may not, be conducted with responsible bidders who submit proposals determined to have a reasonable probability of being selected for award for the purpose of clarification to assure full understanding of, and responsiveness to, the solicitation requirements.

**c.** Revisions to the proposals may be permitted after submissions and prior to the award for the purpose of obtaining best and final offers.

**d.** There shall be no disclosure of any information derived from proposals submitted by competing bidders until an award has been made and a contract executed.

**e.** Negotiation with the selected bidder to arrive at mutually agreeable contract terms, except for price, is allowed.

**E. Request for Proposal.** If the City's objectives will not be achieved through an invitation for sealed bid, a two-step sealed bid, or a competitive sealed proposal process, then a request for proposal process shall be used for the acquisition, if the use of such process will achieve the City's objectives. The request for proposal process may be used for acquisitions including, but not limited to professional services and financial services.

**1. Criteria.** The following conditions typically warrant utilization of a request for proposal:

**a.** If the ability to consider proposals with a variety of different proposed solutions and pricing models is the most likely way to meet the City's objectives.

**b.** Where qualitative factors overall outweigh cost in terms of importance. Qualitative factors include but are not limited to: Bidder qualifications and experience; creativity of the approach proposed; and availability of resources and capabilities to meet the specifications of the request for proposal.

**c.** Where the ability to select a bidder based on these qualitative factors, and then to negotiate contract terms including price with the selected bidder is necessary to meet the City's objectives.

**2. Procedure.** Except as provided herein, the requirements for competitive processes set forth in Section 407 shall apply.

**a.** The content of proposals shall not be disclosed until a contract with the selected bidder is executed.

**b.** The Agent, or his designee, may negotiate with the selected bidder on price and other contract terms, in order to meet the City's objectives.

**F. Auction and Reverse Auction.** Each competitive process set forth herein may include an auction, or reverse auction, as a step in the process.

*(Ord. No. 22529, § 1, 9-29-2011)*

## Section 407. Formal contract and purchase order; general requirements for competitive process.

**A.** Supplies, services, and information technology systems shall be purchased by formal written contract when: 1. the expected cost of the acquisition is greater than One Hundred Thousand Dollars ($100,000.00); and 2. the best interests of the City will be served and the City's objectives will be met by requiring contractual provisions which address critical issues including, but not limited to: detailed performance requirements; insurance requirements; bonding requirements; warranty requirements; indemnity obligations, compliance with law requirements; contract renewal options; awards to primary and secondary suppliers; price escalation; audit rights; and termination.

**B.** Supplies, services, and information technology systems may be purchased by formal written contract when: 1. the expected cost of the acquisition is less than One Hundred Thousand Dollars ($100,000.00); and 2. the best interests of the City will be served and the City's objectives will be met by requiring contractual provisions which address critical issues including, but not limited to: detailed performance requirements; insurance requirements; bonding requirements; warranty requirements; indemnity obligations, compliance with law requirements; contract renewal options; awards to primary and secondary suppliers; price escalation; audit rights; and termination.

**C.** When a contract is not required as detailed herein, a purchase order may be used in lieu of, or in addition to, a formal written contract, when the best interests of the City will be met.

**D.** General requirements for a competitive process are as follows.

**1. Notice Inviting Bids.**

**a. Advertisement.** For all competitive processes, except the request for quote, the Agent, or his designee, shall cause to be published notice inviting bids in at least one (1) newspaper or publication of general circulation in the City of Tulsa, and shall post such notice online at least five (5) days preceding the last day set for the receipt of bids or the auction. Nothing in this section shall be a limitation on advertising through additional methods, including but not limited to other relevant publications or websites, when the Agent, or his designee, determines that it is advantageous to do so. The notice required herein shall include a general description of the services required or the

articles to be purchased or sold and shall state where bid forms and specifications may be obtained and the time and place for opening bids or the public auction.

**b. Bidder Database.** The Agent, or his designee, shall also notify all prospective bidders who have requested their names to be added to the bidder database, and who have expressed interest in the commodity code(s) or items being purchased by sending a copy of such notice to acquaint them with the proposed purchase or sale.

**2. Bid Deposits.** When deemed necessary by the Agent, or his designee. Bid deposits shall be prescribed in the public notices inviting bids. Unsuccessful bidders shall be entitled to return of surety where it has been required; provided, that City may hold the bid deposit of the second lowest bidder for up to ten (10) days after the contract award to the lowest bidder.

**3. Bid Opening Procedures.** The procedures in this section apply to all competitive processes except for the informal request for quote.

**a. Sealed.** Except in the case of public auctions or competitive processes conducted online, bids shall be submitted sealed to the office of the City Clerk and shall be identified as bids. Bids submitted online shall be kept confidential, secure, and "unopened" until the time and date of the public bid opening, at which time the contents of such bids will be revealed as if they were hard-copy bids.

**b. Opening.** Bids for supplies, services, and information technology systems shall be opened in public at the time and place stated in the public notices.

**c. Tabulation.** A tabulation of all bids received shall be made by the Agent, or his designee, and the tabulation shall be available for public inspection in the office of the City Clerk, or online, at all reasonable times. For invitations for sealed bid, these tabulations shall include price information from each bid. For other competitive processes, tabulations shall only be required to include the bidders' company names.

**4. Rejection of Bids.** The Mayor shall have the authority to reject any and all bids and parts of any or all bids when in the best interest of the City.

**5. Nonresponsive Bid.** Bids which are nonresponsive to the specifications shall not be considered for recommendation of award of a contract. Reasons for a bid to be nonresponsive to the specifications include, but are not limited to:

**a.** Bid is not signed;

**b.** Bid does not include a bid deposit, if required;

**c.** Bid does not include an executed non-collusion affidavit; or

**d.** Bid does not meet specifications and requirements in some material way.

**6. Award of Contract.**

**a. Authority in the Mayor.** The Mayor shall have the authority to award contracts and/or purchase orders within the purview of this chapter. No award shall be made to a bidder if:

(1) Bidder is currently disqualified from awards by the Agent;

(2) Bidder is in default on a contract and/or purchase order with the City;

(3) Bidder is in default on the payment of taxes, assessments, license fees or other monies due the City;

(4) Bidder did not attend a mandatory pre-bid conference;

**b. Revocation of Award.** The Mayor may revoke the award of a bid for reasons including but not limited to:

(1) A properly signed contract is not submitted to the City within the time specified in the notice of recommendation of award by the Agent, or his designee;

(2) Bonds, proof of insurance, affidavits or other documents as required by the written specifications are not submitted to the City within the time specified in the notice of recommendation of award by the Agent, or his designee;

(3) Bidder fails to submit, upon request, written agreement to comply with the provisions of Title 5 of the Tulsa Revised Ordinances relating to equal employment opportunity and the utilization of minority owned, female owned, and disadvantaged business enterprises.

**c. Forfeit of Bid Deposit.** The bid deposit, if required, shall be forfeited when an award is revoked by the Mayor pursuant to this section.

**d. Lowest Secure Bidder.** Contracts or purchase orders by competitive process shall be awarded to the lowest secure bidder meeting specifications. Bid specifications may include a point system for evaluating the lowest secure bid. In determining "lowest secure bidder," in addition to price, the following factors may be considered:

(1) The ability, capacity and skill of the bidder to perform the contract or provide the service required,

(2) Whether the bidder can perform the contract or provide the service promptly or within the time specified, without delay or interference,

(3) The character, integrity, reputation, judgment, experience and efficiency of the bidder,

(4) The quality of performance by bidder of previous contracts or services,

(5) The previous and existing compliance by the bidder with laws and ordinances relating to the contract or service,

(6) The sufficiency of the financial resources and ability of the bidder to perform the contract or provide the service,

(7) The quality, availability and adaptability of the supplies, services, and information technology systems offered by bidder to the particular use required,

(8) The ability of the bidder to provide future maintenance, support and service related to bidder's offer,

(9) Where an earlier delivery date would be of great benefit to the using department, the date and terms of delivery may be considered in the bid award,

(10) The degree to which the bid submitted is complete, clear, and addresses the requirements in the bid specifications,

(11) If a point system has been utilized in the bid specifications, the number of points earned by the bidder.

(12) The total cost of ownership, including the costs of supplies, materials, maintenance, and support necessary to perform the item's intended function.

(13) If an evaluation committee performs the evaluation, the recommendation of such committee.

**e. Award to Other than Lowest Secure Bidder.** For all competitive processes except for the informal request for quote, when the bid award is not given to the lowest secure bidder meeting specifications, such award must be approved by the Council and a full and complete statement of reasons for awarding to one (1) other than the lowest secure bidder shall be entered in the minutes of the Council.

**f. Tie Bids.** If two (2) or more bids are received which are equal in the amount bid, quality and service, the contract shall be awarded to one (1) of the equal bidders as follows:

(1) To the bidder with an office within the City limits of the City of Tulsa if only one (1) bidder maintains an office within the City limits of the City of Tulsa;

(2) If no bidder maintains an office within the City limits of the City of Tulsa, to the bidder with an office in the state of Oklahoma if only one (1) bidder maintains an office in the state of Oklahoma;

(3) If neither section above is determinative, by the drawing of lots in a public meeting.

**g. Bonds.** The Agent, or his designee, shall have the authority to require that the successful bidder provide a performance bond, and/or other types of bonds, in such amount as he shall find reasonably necessary to protect the best interests of the City which requirement, if any, shall be included in the written specifications.

**h. Insurance.** The Agent, or his designee, shall have the authority to require that the successful bidder submit proof of insurance in such amount as he shall find reasonably necessary to protect the best interest of the City, which requirement, if any, shall be included in the written specifications.

**i. Splitting Acquisitions.** No acquisition shall be made upon a requisition, or petty expenditure, which divides a known quantity or fails to consolidate a known quantity for the purpose of evading the requirement of a competitive process.

*(Ord. No. 22529, § 1, 9-29-2011)*

## Section 408. Central warehousing.

The Agent may, in his discretion, establish central storerooms and warehouses for the safe storage of all supplies common to more than one (1) using department. The Agent, or his

designee, shall be responsible for the supervision and control of such storerooms and warehouses and the supplies contained therein, and shall keep at all times a current inventory of such supplies along with complete records as to the acquisition and disposition of such supplies. With respect to supplies of a type peculiar to a using department, the Agent may permit them to be stored in storerooms or warehouses under the supervision of the head of that department, provided that such individual shall be required to maintain a current inventory of all such supplies and shall furnish the Agent, or his designee, with periodic reports showing the current inventory acquisition and disposition of all such supplies. The Agent, or his designee, shall be empowered to inspect such storerooms or warehouses at any time for the purpose of verifying the correctness of the inventory furnished, and for all other purposes connected with the performance of his duties under the terms of this chapter.

*(Ord. No. 22529, § 1, 9-29-2011)*

**Section 409. Emergency purchases.**

**A. By Agent.** In case of an emergency which requires the immediate purchase of supplies or services, the Mayor shall be empowered to grant written authorization to the Agent, or his designee, to secure by an informal request for quotes procedure, as herein set forth, at the lowest obtainable price, any supplies or services, regardless of the amount of the expenditure, subject to all the terms and provisions of the Charter of the City of Tulsa. A full report of the circumstances of the emergency purchase shall be filed by the Agent, or his designee, with the City Clerk and shall be open to public inspection.

**B. By Department Head.** In case of an emergency occurring outside normal office hours, or where a disaster event has been declared by the Mayor, the head of any using department may, with the consent of the Agent and the approval of the Mayor, purchase directly any supplies or services whose immediate procurement is essential to prevent delays in the work of the using department which may vitally affect the life, health or convenience of the citizens.

*(Ord. No. 22529, § 1, 9-29-2011)*

**Section 410. Inspection and testing.**

The Agent, or his designee, shall inspect or supervise the inspection of all deliveries of supplies, services, and information technology systems to determine their conformance with the specifications set forth in the order or contract.

**A. Inspection by Using Department.** The Agent shall have the authority to authorize using departments having the staff and facilities for adequate inspection to inspect all deliveries made to such departments under rules and regulations which the Agent shall prescribe.

**B. Tests.** The Agent shall have the authority to require chemical and physical tests of samples submitted with bids and samples of deliveries which are necessary to determine their quality and conformance with the specifications. In the performance of such tests, the Agent, or his designee, shall have the authority to make use of laboratory facilities of any department of the City or of any outside laboratory.

*(Ord. No. 22529, § 1, 9-29-2011)*

## Section 411. Surplus supplies.

All using departments shall submit to the Agent, or his designee, at such times and in such form as he shall prescribe, reports showing stocks of all supplies which are no longer used or which have become obsolete, worn out or scrapped. All sales of supplies which are no longer needed for a public purpose, and personal property which has become obsolete and unusable shall, when the estimated value exceeds One Thousand Dollars ($1,000.00), be sold by a competitive process to the highest secure bidder, after due notice inviting bids.

Dispositions of any structures, fixtures and other improvements on real property, other than dispositions by sale, are excluded from the provisions of this chapter and shall be handled as a matter of site clearance under policies and procedures to be adopted by the Mayor.

**A. Transfers.** The Agent shall have the authority to transfer surplus supplies to other using departments.

**B. Sales.** The Agent, or his designee, shall have the authority to:

**1.** Sell by a competitive process all City supplies which are no longer needed, have become unusable or obsolete; or

**2.** Upon approval of the Mayor, to exchange or trade such supplies for new or reconditioned supplies which have an equal or greater market value, or to exchange such supplies for services which have an equal or greater market value and that will have a direct benefit to the City. A statement of the reasons for such exchange shall be recorded with the office of the City Clerk.

*(Ord. No. 22529, § 1, 9-29-2011)*

## Section 412. Cooperative purchasing.

Notwithstanding the foregoing limitations, a competitive process shall not be required and the Agent shall have the authority, instead, to make purchases from a cooperative purchasing plan or under contracts let by the state of Oklahoma, where such cooperative purchasing plans or state of Oklahoma contracts were obtained through prior competition, when the best interests of the City would be served.

*(Ord. No. 22529, § 1, 9-29-2011)*

## Section 413. Performance-based efficiency contracts.

**A. Criteria.** The performance-based energy efficiency contract procedure may be utilized when the best interest of the City will be served, and the City's objectives will be met.

**B.** *Procedure.* All performance-based efficiency contracts pertaining to supplies, materials, equipment or services shall be governed by Title 62 Section 318 of the Oklahoma Statutes, as may be amended from time to time, including limitations, if any, on the expenditures for such supplies, materials, equipment or services.

*(Ord. No. 22529, § 1, 9-29-2011)*

## Section 414. Sole source and sole brand acquisitions.

**A. Sole Source.**

**1. Criteria.** The Mayor may waive the requirement for a competitive process for the purchase of supplies or services when some material feature or characteristic of the

supply or service sought to be purchased is unique and the Agent has certified that to the best of his knowledge, after diligent inquiry, the supply or service is available from only one (1) source. The Agent may also waive this requirement for a competitive process but only where the expected cost for the supply or service is less than Twenty-Five Thousand Dollars ($25,000.00).

2. **Procedure.** The Agent may require the department head or official requesting the bid waiver to submit an affidavit identifying the unique and material features or characteristics of the supply or service. A full and complete statement of the reasons for approving each waiver of the competitive process shall be filed with the City Clerk.

**B. Sole Brand.**

1. **Criteria.** Where some material feature of one (1) manufacturer, or brand, of supply or service is unique, but the supply or service is available from more than one (1) supplier, a sole brand competitive process limiting bids to that manufacturer, or brand, can be approved.

2. **Procedure.** The Agent may require the department head or official requesting the sole brand to submit an affidavit identifying the unique and material features or characteristics of the brand, or manufacturer, of the supply or service. A competitive process which limits, by specification, acceptable bids to one (1) manufacturer or brand of item, shall be used. Except as provided herein, the requirements for competitive processes set forth in Section 407 shall apply.

*(Ord. No. 22529, § 1, 9-29-2011)*

### Section 415. Auction and reverse auction.

**A. Criteria.** When it is practicable and advantageous for the City to utilize an auction to sell surplus supplies, or a reverse auction to buy supplies, services, or information technology systems, and when it meets the City's objectives to do so, the Agent, or his designee, may employ an auction or reverse auction process.

**B. Procedure.** Auctions or reverse auctions may be conducted online, in-person, or both at the same time. Auctions or reverse auctions may be conducted live, with bidders competing in real time. Bidders' participation in an auction or a reverse auction may be required as a step in another competitive process.

*(Ord. No. 22529, § 1, 9-29-2011)*

### Section 416. Penalty.

All City officers and employees shall comply with the provisions of this chapter. Noncompliance shall be sufficient grounds for dismissal from the service of the City, whether the offender be in the classified or unclassified service.

*(Ord. No. 22529, § 1, 9-29-2011)*

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## CHAPTER 5. ACCOUNTING

Section 500. Duties of Director.
Section 501. Payment for salaries, purchases and claims against the City.
Section 502. Director to report fee schedule.

### Section 500. Duties of Director.

The Director of Finance shall maintain accounts of all revenues, fines, licenses, fees and funds of the City, shall establish and supervise a system of general and cost accounting and shall maintain inventories of the property of the City.

### Section 501. Payment for salaries, purchases and claims against the City.

**A. Payment.** All payments for salaries, purchases and claims against the City may be made by proper warrant or check signed by the Mayor, countersigned by the Director of Finance, drawn upon the City Treasury and charged to the proper account; provided, however, that the Director of Finance may also direct payments from the municipal treasury by wire transfer, direct payroll deposit or other instrument or method of disbursement through the Federal Reserve System. No disbursement shall be made unless proper funds are available for the payment of same.

**B. Internal control structure established.** Warrants, checks or other instruments of disbursement from the municipal treasury shall be prepared and issued strictly in accordance with an internal control structure developed and maintained by the Director of Finance which, at a minimum, shall include the following requirements.

**1. Segregation of duties and responsibilities.**

**a.** Responsibilities for requisitioning, purchasing and receiving functions shall be segregated from those for invoice processing, accounts payable and general ledger functions.

**b.** Responsibilities for the purchasing function shall be segregated from those for requisitioning and receiving functions.

**c.** Responsibilities for invoice processing and accounts payable functions shall be segregated from those for the general ledger functions.

**d.** Responsibilities for the disbursement preparation and approval functions shall be segregated from those for the recording of cash disbursements and general ledger entries.

**e.** Responsibilities for entries in the cash disbursement records shall be segregated from those for general ledger entries.

**2. Procedural controls - requisitioning.**

**a.** Purchases of goods and services shall be initiated only by properly authorized requisitions bearing the approval of officials designated to authorize requisitions.

**b.** The person requesting the purchase shall indicate the particular appropriation to be charged on each purchase requisition.

**c.** Before issuance of a purchase order or contract, the Director of Finance or his designee shall verify that there are sufficient unobligated funds remaining under the designated appropriation to meet the proposed expenditure.

**d.** Competitive bidding procedures shall be utilized in accordance with state statutes, the Charter and Revised Ordinances of the City of Tulsa.

**e.** Policies regarding conflicts of interest and business practice shall be established and distributed.

**f.** The awarding of personal service or construction contracts shall be in accordance with predetermined selection criteria and shall require adequate documentation of the award process.

**g.** Changes to contracts or purchase orders shall be subjected to the same controls and approvals as the original agreement.

**h.** Receiving reports for all purchased goods shall be prepared and transmitted to the Purchasing and Accounting Divisions of the Finance Department.

**3. Procedural controls - invoice processing.**

**a.** Invoice processing procedures established by the Director of Finance shall provide for:

(1) Obtaining copies of purchase orders and receiving reports,

(2) Comparison of invoice quantities, prices and terms with those indicated on the purchase order,

(3) Comparison of invoice quantities with those indicated on the receiving reports, and

(4) Checking the accuracy of calculations.

**b.** Procedures shall be developed and maintained ensuring accurate account distribution of all entries resulting from invoice processing.

**c.** Changes to the electronic data processing master vendor file shall be made only by employees authorized by the Director of Finance to make such changes.

**d.** The Accounting Division of the Finance Department shall maintain a current list of those authorized to approve expenditures.

**e.** Procedures shall be developed and maintained for the submission and approval of reimbursements to employees for travel and other expenses.

**f.** Steps shall be taken to ensure a new supplier actually exists if an invoice is received from a supplier not previously dealt with.

**g.** Payments shall be made on the basis of original invoices which have been approved by the individual (or his designee) responsible for the appropriation to which the expenditure will be charged.

**h.** Differences in invoice and purchase order prices, terms, shipping arrangements or quantities shall be referred to the Purchasing Agent for review and approval.

**4. Disbursements - procedural controls.**

**a.** Both the Mayor and the Director of Finance shall be required to sign checks and warrants approved to be issued.

**b.** Banks will be promptly notified when a new signer is authorized or a previous signer leaves the employ of the City of Tulsa.

**c.** Signature plates, when not in use, shall be maintained in the custody of the City Controller.

**d.** Signature plates shall be used only under the signer's control and the signer or his designee shall record all machine readings to ensure that all signed checks and warrants are properly accounted for.

**e.** Signed checks and warrants shall be delivered directly to the mail room, to the individual designated for payment, or to an individual approved by the Director of Finance.

**f.** Procedures shall be established and maintained for control of and accounting for all checks and warrants with specific safeguards over unused and voided checks and warrants.

**g.** Responsibilities for preparation of checks and warrants shall be separated within the Finance Department from the distribution of checks and warrants.

*(Ord. No. 17605)*

## Section 502. Director to report fee schedule.

Beginning in the year 2015 and every five (5) years thereafter, the Director of Finance in his or her capacity as City Clerk, or his or her designee, shall report to the City Council the current fee schedule for permits, licenses and accounts, and all other fees and charges made by the City.

*(Ord. No. 22816, § 1, 2-7-2013)*

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## CHAPTER 6. REVENUE COLLECTION

Section 600. Collection of revenues.
Section 601. Demand for money.
Section 602. Receipt of revenues.
Section 603. Record of collections.
Section 604. Collection of an administrative service charge on dishonored and returned checks or other payments.
Section 605. Additional fee for a debt which is referred for collection pursuant to contract.
Section 606. Contracts with persons having delinquent accounts.

### Section 600. Collection of revenues.

It shall be the duty of the Director of Finance ("Director") to collect all taxes, assessments, permit and license fees as provided by ordinances in addition to all revenues which are required by the Charter to be collected by the City.

### Section 601. Demand for money.

The Director shall make demands and receive from the County Treasurer or other persons all monies received by them for the use of the City. Whenever any person is indebted to the City in any manner, and the means of collection of the debt is not otherwise provided for by law or ordinance, the Director shall be authorized and it shall be his duty to demand and receive payment. When any claim is not collected, he shall report this fact to the City Attorney. He shall maintain a continuous inspection of all taxes, assessments, licenses and fees and other revenues due the City in order to effectuate their collection.

### Section 602. Receipt of revenues.

It shall be the duty of the Director to give receipts for all moneys collected by him on behalf of the City, copies of which shall be retained in the Finance Department for the time required by law. The receipt shall show the date of issue, to whom issued, the amount collected, the nature of the collection and the fund and account to be credited.

### Section 603. Record of collections.

It shall be the duty of the Director to keep records of all monies received by him, the source of the monies, the funds and accounts to which they are applied and the date of collection.

### Section 604. Collection of an administrative service charge on dishonored and returned checks or other payments.

The Director shall levy and collect an administrative service charge for each payment issued to and received on account by the City of Tulsa, regardless of the method or form of payment, e.g., check, credit card, debit card, electronic transfer or any other attempted payment of value, whenever the payment fails or is dishonored and returned for any reason. The administrative service charge shall be Twenty-five Dollars ($25.00); provided, however, that the charge may be waived by the Director upon the drawer's showing of reasonable and extenuating circumstances beyond the drawer's control.

*(Ord. Nos. 17703, 20591)*

## Section 605. Additional fee for a debt which is referred for collection pursuant to contract.

**A.** Subject to the provisions of the Amended Charter and the Tulsa Revised Ordinances, and as provided in 11 O.S. Section 22-138.A.1., the Mayor, on behalf of the City, shall be authorized to enter into a contract with a collection agency for the provision of collection services for debts and accounts receivable including but not limited to unpaid charges, fees, penalties, interest and other sums due the City.

**B.** Upon the City entering into a contract with a collection agency as authorized in Subsection A. of this section, an additional sum may be added to the original amount of the indebtedness to reimburse the City the actual and contracted collection fee arising from the contract with the collection agency in an amount not to exceed thirty-five percent (35%) of the original indebtedness.

*(Ord. No. 22157, § 1, 11-12-2009)*

## Section 606. Contracts with persons having delinquent accounts.

The Mayor shall not execute any new contract with, or issue any new permit or license to, any person against whom there is an unsatisfied claim for previous services or any unpaid, past due fees, assessments, or charges of any kind; provided, however, that the Mayor may execute a new contract or issue a new permit or license, in unusual circumstances, upon agreement to pay such claim by installments. For the purposes of this section, a "Person" is defined as a human being, a corporation, limited liability company, partnership, unincorporated association, trust, trustee, legal representative, or any other entity or organization.

*(Ord. No. 25049, § 1, 5-24-2023)*

# TITLE 7 CEMETERIES

**Chapter 1. Cemeteries**
**Chapter 2. Unclaimed Bodies**

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## CHAPTER 1. CEMETERIES

Section 100. Oak Lawn Cemetery.
Section 101. Supervision.
Section 102. Cemetery Sexton.
Section 103. Sale of lots.
Section 104. Grave regulations.
Section 105. Shrubbery regulations.
Section 106. Monuments.
Section 107. Dogs prohibited.
Section 108. Potter's Field.
Section 109. Previous acts ratified.
Section 110. Penalty.

### Section 100. Oak Lawn Cemetery.

The following tract of real estate owned by the City of Tulsa, as successor to the Incorporated Town of Tulsa, Indian Territory, Oklahoma, to-wit:

The South half of the Southeast Quarter of the Southeast Quarter of Section One (1), Township Nineteen (19) North, Range Twelve (12) East, and all of Block Four (4) except lots One (1) and Two (2); all in Oak Lawn Addition to the City of Tulsa as shown by the recorded plat thereof, shall be known as Oak Lawn Cemetery.

### Section 101. Supervision.

Oak Lawn Cemetery and any other cemeteries now owned or hereafter acquired by the City shall be under the supervision and control of the Mayor who shall have the power to adopt and enforce such rules and regulations for the maintenance and care of those cemeteries as to him shall seem necessary and proper and not in conflict with the Revised Ordinances of the City of Tulsa. The subdividing of lots and the laying out, defining and establishing of drives, walks and public ways in the City shall be by the City Engineer.

### Section 102. Cemetery Sexton.

The Cemetery Sexton shall keep City cemeteries in a good state of repair, shall keep the weeds mowed in the cemeteries and in a space of three (3) feet on the outside of cemetery fences. He shall dig all graves and fill them at the time of burials.

*(Ord. Nos. 113, 4503)*

### Section 103. Sale of lots.

All lots sold in City cemeteries shall be sold, subject to the provisions of this section.

**A. Paid in full before interment.** Persons desiring to acquire lots in cemeteries or to have interments made upon lots already owned shall obtain from the City Clerk the correct description and cost of such lot or grave, and shall pay the entire amount of the cost of such lot or grave into the Office of the Director of Finance. It shall be the duty of the Director of Finance to issue receipts in triplicate for such payment. The original receipt shall be delivered to the purchaser of the lot, the duplicate of the receipt shall be given to the City Clerk, and the triplicate of the receipt shall be retained by the Director of Finance. No lot or parcel of lot or any interest therein shall be sold to any

person other than the City until the provisions of this section shall have been complied with, and no interment shall be made by any person until the lot wherein the interment is to be made shall have been paid for in full, in cash. The price of lots shall be prescribed by ordinance.

**B. Mayor executes deed.** Any person holding a receipt for the payment of any lot in City cemeteries shall be entitled to a deed for the lot, and it shall be the duty of the Mayor to execute the deed and have it attested by the City Clerk; provided that all deeds, when executed, shall be construed as granting the right only to use the lot or lots for burial purposes for the interment of the grantee, or his relatives, descendants and such other persons as may be permitted by the grantee. Such burial right shall not be transferable by either voluntary or involuntary conveyance without the express consent of the Mayor.

**C. City may repurchase - other sales invalid.** No owner of any lot or parcel of lot shall sell the whole or any part thereof, except that the City of Tulsa may repurchase the lot or parcel of lot whenever the Mayor shall, after investigation of a particular case, agree to repurchase a lot formerly sold. No money, except One Dollar ($1.00), shall be repaid to the original purchaser until the lot has been resold by the City, and the original purchaser shall receive, upon reconveyance by him of the lot or lots, only the amount of money which shall be received from such resale, less One Dollar ($1.00). No interment shall be allowed until full payment for the lot or lots or any part thereof has been made.

*(Ord. Nos. 1500, 4503)*

### Section 104. Grave regulations.

All graves shall be dug by employees of the City. A reasonable charge will be made in an amount to be prescribed by ordinance, and shall be uniform in all cases. The graves of adults must be at least four and one-half (4½) feet deep, and those of children under the age of fifteen (15) years of age, not less than four (4) feet deep. In case of contagious diseases, the Mayor shall have the power to prescribe the kind of casket and depth of grave. All graves shall be sodded over by the City at its own expense with mounds not to exceed four (4) inches of elevation in the center with rounded sides and ends. The graves shall be cared for by the City. No curbing or fence shall be allowed or upon any grave or lot; nor shall any lot or grave be raised except as provided in this section.

*(Ord. No. 669)*

### Section 105. Shrubbery regulations.

No person shall plant any trees, shrubbery, flowers or plants of any description within City cemeteries except by direction of the Mayor.

*(Ord. No. 1500)*

### Section 106. Monuments.

The proprietor of each lot shall have the right to erect stone markers or monuments lying flush with the ground, so as not to interfere with proper care of the grass. He shall have no right to erect any mausoleum, stone monuments or other structure not lying flush with the surface; provided, however, that the Mayor, upon application particularly describing the mausoleum, monument or other structure desired to be erected, may grant a special permit

in writing, particularly describing the structure to be erected, if the Mayor finds that the structure will be in harmony with structures already in the cemetery and will not interfere with the care thereof.

### Section 107. Dogs prohibited.

No dogs shall be allowed within cemetery grounds.

*(Ord No. 669)*

### Section 108. Potter's Field.

It shall be the duty of the Mayor to set apart a certain portion of the cemetery grounds for the use and benefit of the poor, which shall be known as the "Potter's Field," where all persons who are unable to purchase lots shall have the right to inter their dead free of charge; provided, however, that all persons who wish to inter their dead in the Potter's Field shall first procure a permit from the Director of the Tulsa City-County Health Department, which permit shall give them the right to bury in the Potter's Field only.

*(Ord. No. 113)*

### Section 109. Previous acts ratified.

All acts of any nature or kind which have been performed by any Cemetery Board, heretofore appointed by the Mayor of the Incorporated City or its governing body, pertaining to the selection, purchase, surveying, fencing and platting of the cemetery ground, or in any other way appertaining to the same, is hereby ratified.

*(Ord. No. 113)*

### Section 110. Penalty.

Any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Hundred Dollars ($100.00), including costs.

*(Ord. No. 16530)*

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## CHAPTER 2. UNCLAIMED BODIES

Section 200. Dead on arrival procedure.
Section 201. Rotation schedule among funeral establishments for bodies with no placement instructions.

### Section 200. Dead on arrival procedure.

All operators and certified personnel shall comply with the provisions of 63 O.S. § 931, *et seq.*, when the subject of the call is dead upon the arrival of emergency or medical personnel at the scene. Determination of one's death shall be made in accordance with applicable state statutes and established protocols, referenced in part in Title 37-A, Tulsa Revised Ordinances.

*(Ord. No. 21932, § 1, 10-23-2008)*

### Section 201. Rotation schedule among funeral establishments for bodies with no placement instructions.

In the event of a "dead on arrival" or a body which is available to be released under State law and is located at a hospital or other medical facility, if the next of kin, or other responsible person, gives no instruction to the facility operator and/or individual providing ambulance service directing the place where the body shall be taken, the body shall be delivered to the funeral establishment of a licensed funeral director of the City on a rotational basis established as follows:

**A.** Each interested funeral establishment certified by the Oklahoma State Funeral Board as doing business in the City shall notify the City Clerk of the City of Tulsa of its intent to participate in the rotation schedule. Such participation may be withdrawn with at least thirty (30) days' written notice to the City Clerk for the City of Tulsa, otherwise, it remains effective as long as the funeral establishment legally remains in business in the City. If the license to do business in the City of Tulsa is suspended or revoked, the funeral establishment shall immediately notify the City Clerk, and the funeral establishment shall be removed from the rotation schedule for the period of the suspension or revocation.

**B.** The City Clerk shall list the participating funeral establishments on a schedule in the order of receipt of their notification. This schedule shall be distributed to the Emergency Medical Services Authority (EMSA), the Telecommunications/Dispatch department of the City of Tulsa, each funeral establishment participating in the rotation and any other person or entity requesting a copy of the schedule.

**C.** Each funeral establishment listed on the schedule shall receive bodies under their rotation schedule for a period of one (1) week, after which, the next funeral establishment so listed shall receive all such bodies for one (1) week, until all funeral establishments comprising the total list have participated, at which time the rotation schedule shall repeat itself. Each week shall start at 6:00 a.m. on Monday morning and continue until 6:00 a.m. the following Monday morning. The date and time of the call shall be determined as of the date and time the body has been released by all appropriate authorities as determined by the entity then in possession of the body.

**D.** If a funeral establishment cannot take possession of the body, as soon as practicable, it shall notify and explain the situation to the City, either orally or in writing, and request another funeral establishment be authorized to take possession of the body.

If a funeral establishment does not take possession of a body within twenty-four (24) hours after the call requesting transport service is made and has not notified the City as provided herein, the City may authorize the next funeral establishment in the rotation to take possession of the body. In such event, the funeral establishment shall submit a written explanation for the failure to the City Clerk within ten (10) calendar days.

**E.** The City Clerk shall review participation requests, conduct hearings and make the determinations required for the proper and efficient implementation and enforcement of the requirements of this chapter.

*(Ord. No. 21932; Ord. No. 21932, § 1, 10-23-2008)*

# TITLE 7-A DEPARTMENT OF CITY DEVELOPMENT (REPEALED)*

*__Editor's note—__Executive Order 92-03, dated January 24, 1992, abolished the Department of City Development, thereby effectively repealing Title 7-A.

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# TITLE 8 CIVIL DEFENSE AND CIVIL EMERGENCY

**Chapter 1. Definitions**
**Chapter 2. Civil Emergency**
**Chapter 3. Penalty and Severability**

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## CHAPTER 1. DEFINITIONS

Section 100. Definitions.

### Section 100. Definitions.

**A. Civil emergency.** A civil emergency is:

**1.** A riot or unlawful assembly characterized by the use of actual force or violence or any threat to use force if accompanied by immediate power to execute by three (3) or more persons acting together without authority of law; or

**2.** Any natural disaster or man-made calamity including flood, conflagration, cyclone, tornado, earthquake or explosion within the corporate limits of the City of Tulsa resulting in the death or injury of persons or the destruction of property to such an extent that extraordinary measures must be taken to protect the public health, safety and welfare.

**B. Curfew.** A curfew is a prohibition against any person or persons walking, running, loitering, standing or motoring upon any alley, street, highway, public property or vacant premises within the corporate limits of the City of Tulsa, except persons officially designated to duty with reference to a civil emergency.

*(Ord. No. 10889)*

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## CHAPTER 2. CIVIL EMERGENCY

Section 200. Proclamation by Mayor.
Section 201. Curfew.
Section 202. Powers of Mayor.

### Section 200. Proclamation by Mayor.

When, in the judgment of the Mayor, a civil emergency as defined herein is deemed to exist, he shall proclaim in writing the existence of a civil emergency.

*(Ord. No. 10889)*

### Section 201. Curfew.

After proclaiming a civil emergency, the Mayor may order a general curfew applicable to such geographical areas of the City or to the City as a whole as he deems advisable and applicable during such hours of the day or night as he deems necessary in the interest of the public safety and welfare.

*(Ord. No. 10889)*

### Section 202. Powers of Mayor.

After proclaiming a civil emergency, the Mayor may also, in the interest of public safety and welfare, make any or all of the following orders:

**A.** The closing of all retail liquor stores;

**B.** The closing of all beer taverns;

**C.** The closing of all private clubs or portions thereof wherein the consumption of intoxicating liquor or beer is permitted;

**D.** The discontinuance of the sale of beer;

**E.** The discontinuance of selling, distributing or giving away gasoline or other liquid, flammable or combustible products in any container other than a gasoline tank properly affixed to a motor vehicle;

**F.** The closing of gasoline stations and other establishments, the chief activity of which is the sale, distribution or dispensing of liquid, flammable or combustible products;

**G.** Such other orders as are imminently necessary for the protection of life and property.

*(Ord. No. 10889; Ord. No. 23101, § 2, 5-1-2014)*

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## CHAPTER 3. PENALTY AND SEVERABILITY

Section 300. Penalty.

### Section 300. Penalty.

Any person violating the provisions of this title or of an Executive Order issued pursuant to it shall be guilty of an offense, and upon conviction thereof, shall be punished by imprisonment in the City jail for a period not to exceed ninety (90) days and/or by a fine of not more than One Hundred Dollars ($100.00), excluding costs.

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# Title 8-A TULSA NINE-ONE-ONE EMERGENCY NUMBER

## Chapter 1. Tulsa Nine-One-One Emergency Number

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## CHAPTER 1. TULSA NINE-ONE-ONE EMERGENCY NUMBER

Section 100. Short title.
Section 101. Emergency telephone service.
Section 102. Emergency telephone number.
Section 103. Definitions.
Section 104. Emergency telephone fee.
Section 105. Collection of fee.
Section 106. Failure to remit fee.
Section 107. False reporting.
Section 108. Fee for excessive nonemergency use.

### Section 100. Short title.

This chapter shall be known and may be cited as the Tulsa Nine-One-One Emergency Number Ordinance.

*(Ord. No. 22025, § 3, 3-5-2009)*

### Section 101. Emergency telephone service.

The City shall provide for the operation of emergency telephone services and enhanced 9-1-1 emergency services including services for 9-1-1 calls received from interconnected Voice over Internet Protocol (VoIP) service users.

*(Ord. No. 22025, § 3, 3-5-2009)*

### Section 102. Emergency telephone number.

The number 9-1-1 is hereby established as the primary emergency telephone number for use throughout the City in order to expedite the response of law enforcement, fire, medical, rescue, and other emergency services to any person requiring such assistance.

*(Ord. No. 22025, § 3, 3-5-2009)*

### Section 103. Definitions.

As used in this chapter, the following words and phrases shall have the meanings given herein.

**City** shall mean the City of Tulsa, Oklahoma, a municipal corporation.

**Emergency telephone fee** shall mean a fee used to finance the operation of the emergency telephone service.

**Emergency telephone service** shall mean any telephone or other communication system utilizing a three-digit number, nine-one-one (9-1-1), for reporting an emergency to the appropriate public agency providing law enforcement, fire, medical, rescue, or other emergency services, including ancillary communications systems and personnel necessary to pass a reported emergency to the appropriate emergency service personnel.

**Governing body** shall mean the Council of the City of Tulsa.

**Local exchange telephone company** shall mean any person providing exchange telephone service to any service user within the corporate limits of the City of Tulsa.

**Person** shall include, but not be limited to, any individual, firm, partnership, copartnership, joint venture, association, cooperative organization, private corporation, whether organized for profit or not, fraternal organization, nonprofit organization, estate, trust, business or common law trust, receiver, assignee for the benefit of creditors, trustee or trustee in bankruptcy, the United States of America, the state, political subdivisions of the state, or any federal or state agencies, departments, commissions, boards or bureaus within the corporate limits of the City of Tulsa.

**Service user** shall mean any person who is provided emergency telephone service within the corporate limits of the City of Tulsa.

**Tariff rate** shall mean the rate or rates billed by the local exchange telephone company and stated in tariffs applicable to such company as approved by the Oklahoma Corporation Commission, which represents the recurring charges of the local exchange telephone company for exchange telephone service or its equivalent, exclusive of all taxes, fees, licenses or other similar charges.

**Telephone company** shall mean any person providing telephone service or other communications service capable of accessing the emergency telephone system to any service user.

**VoIP** shall mean voice over internet protocol.

**VoIP carrier** shall mean a person who offers a dial tone telephone service to a customer under authority of the Federal Communications Commission and who is required to collect a fee for funding of emergency telephone service.

**Wireless carrier** shall mean a person who offers a wireless telephone service and who is required to collect a fee for funding of emergency telephone service.

*(Ord. No. 22025, § 3, 3-5-2009)*

## Section 104. Emergency telephone fee.

**A. Emergency Telephone Fee 1989—1991.** Pursuant to the Nine-One-One Emergency Number Act, 63 O.S.1991, §§ 2811, *et seq.*, and the enactment of City of Tulsa Ordinance No. 17058, which became operative January 1, 1989, there was levied upon all service users subject to the jurisdiction of the City of Tulsa for whom emergency telephone service was contracted, an emergency telephone fee in the amount of five percent (5%) of the tariff rate in the first year of the fee and in the amount of three percent (3%) of the tariff rate for the following two (2) years, expiring at midnight on December 31, 1991.

**B. Emergency Telephone Fee 1992—1994.** Pursuant to the Nine-One-One Emergency Number Act, 63 O.S.1991, §§ 2811, *et seq.*, to be operative from January 1, 1992, through midnight, December 31, 1994, there is hereby levied upon all service users subject to the jurisdiction of the City of Tulsa for whom emergency telephone service has been contracted, an emergency telephone fee in the amount of three percent (3%) of the tariff rate; provided, however, that the electors of the City may impose a fee not to exceed five percent (5%) of the tariff rate according to the provisions of 63 O.S. Supp. 1996, § 2814. Amounts collected in excess of those necessary for operation of the emergency telephone service within any given year shall be carried forward to subsequent years. No such fee shall be imposed upon more than one hundred (100)

exchange access lines or their equivalent per person per location. The governing body of the City may renew the levy of the emergency telephone fee, by amendment hereto, for periods no longer than three (3) years at a time.

**C. Emergency Telephone Fee Effective May 1, 1994, to the Effective Date of this Ordinance.** Pursuant to the Nine-One-One Emergency Number Act, 63 O.S.Supp.1991, §§ 2811 *et seq.*, the governing body of the City finds that there exists a need for ancillary communications systems, inclusive of mobile data communications systems, necessary to pass a reported emergency to the appropriate emergency service and personnel. In fulfillment of this need, unless made subject to an election as provided in 63 O.S.Supp.1996, § 2814, effective May 1, 1994 and for such additional time as is needed to purchase said ancillary communications systems and equipment, there is hereby levied upon all service users subject to the jurisdiction of the City of Tulsa for whom emergency telephone service has been contracted, an emergency telephone fee in the amount of five percent (5%) of the tariff rate. This five percent (5%) emergency telephone fee shall be in lieu of the three percent (3%) emergency telephone fee provided in Subsection B herein. The continued need to purchase said ancillary communications systems and equipment shall be reviewed at least once each calendar year as provided in Subsection D herein.

**D. Emergency Telephone Fees Effective upon the Effective Date of this Ordinance.**

**1.** Pursuant to the Nine-One-One Emergency Number Act, 63 O.S. Supp. 2007, §§ 2811 *et seq.*, the governing body of the City finds that a need continues to exist for ancillary communications systems, inclusive of mobile data communications systems, necessary to pass a reported emergency to the appropriate emergency service and personnel. In fulfillment of this need, unless made subject to an election as provided in 63 O.S.Supp.1996, § 2814, effective upon the effective date of this ordinance and for such additional time as is needed to purchase said ancillary communications systems and equipment, there is hereby levied upon all local exchange telephone company service users subject to the jurisdiction of the City of Tulsa for whom emergency telephone service has been contracted, an emergency telephone fee in the amount of five percent (5%) of the tariff rate. This five percent (5%) emergency telephone fee shall be in lieu of the three percent (3%) emergency telephone fee provided in Subsection B herein. The continued need to purchase said ancillary communications systems and equipment shall be reviewed at least once each calendar year as provided in Subsection D.1.a. herein.

**a. Annual Review of Fee Rate.** Notwithstanding the provisions in Subsection D.1 herein, at least once each calendar year before September 1 of each year, the governing body of the City shall review and, if necessary, adjust the fee rate set forth in Subsection D.1 so that, together with any surplus revenues carried forward from previous years, the fee rate shall not exceed an amount necessary to fund authorized expenditures for operation of the emergency telephone service; provided, however, that the fee rate so adjusted shall not exceed an amount authorized by state law. Any such adjustment in the fee rate shall take effect commencing with the first billing period of each service user on or after the following January 1.

**b. Notice.** At least ninety (90) days before any new rate shall become effective, the City shall provide notice of the new rates by certified mail to each Local exchange telephone company providing emergency telephone service to areas within the jurisdiction of the City of Tulsa.

**2.** Pursuant to the Nine-One-One Voice over Internet Protocol (VoIP) Emergency Service Act, 63 O.S. §§ 2851 *et seq.*, a fee is hereby levied upon VoIP service users whose businesses or residences are located within the City at the rate of Fifty Cents ($0.50) per month per endpoint Internet Protocol Device.

*(Ord. No. 22025, § 3, 3-5-2009)*

**Section 105. Collection of fee.**

**A. Collection.** The emergency telephone fee shall be collected monthly by each telephone company at the same time charges for telephone services are collected and in accordance with the regular billing practices of the company. In the event any service user tenders a payment in an amount insufficient to satisfy all charges, tariffs, fees and taxes, the amount tendered shall be first credited to the emergency telephone fee.

**B. Remittance.** Unless required by state law to remit otherwise, all fees collected by a telephone company pursuant to this chapter shall be remitted to the City, together with any accumulated interest, no later than thirty (30) days after the end of the month in which the fees were collected. Such remittance shall be submitted with a return on a form acceptable to the City.

**C. Administrative Fee.** For every remittance of the collected fee to City on or before the date same becomes due, the local exchange telephone company and the VoIP carrier required to remit the fee shall be entitled to deduct and retain for administrative costs, two percent (2%) of the emergency telephone fee. No administrative fee shall be deducted and retained by the local exchange telephone company and the VoIP carrier for collected fees which are not remitted to the City by the due date as set forth in Subsection B, above.

**D. Records.**

**1.** The telephone company shall maintain a complete and accurate set of records on the amount of all fees collected. Such records shall be maintained for a period of three (3) years from the end of any fiscal year in which such fees were collected unless a shorter holding period is authorized by state law. The City may, at its own expense, conduct an annual audit of such records.

**2.** All telephone companies having customers within the City shall provide an annual census of customers to the City no later than sixty (60) days after the first day of each calendar year unless such companies are required by state law to provide such annual census to another entity.

*(Ord. No. 22025, § 3, 3-5-2009)*

**Section 106. Failure to remit fee.**

Any service user willfully failing or refusing to remit or pay any emergency telephone fee or portion thereof duly authorized in this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine not to exceed Five Hundred Dollars ($500.00) excluding costs, fees and assessments. Each separate failure or refusal to remit or pay the emergency telephone fee hereof shall be deemed a separate offense.

*(Ord. No. 17058; Ord. No. 22025, § 3, 3-5-2009)*

**Section 107. False reporting.**

No person shall call the number nine-one-one (9-1-1) for the purpose of making a false alarm or complaint or reporting false information which could result in the dispatching of

emergency services from any public agency. Any person violating the provisions of this section shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00) excluding costs, fees and assessments.

*(Ord. No. 22025, § 3, 3-5-2009)*

## Section 108. Fee for excessive nonemergency use.

Any person who owns a telephone or who is charged line or rental charges from a telephone utility and who uses the nine-one-one (9-1-1) number for nonemergency calls or who allows minor children to use the nine-one-one (9-1-1) number for nonemergency purposes, after notification, may be assessed a fee of Fifteen Dollars ($15.00) for the eleventh and each subsequent abuse. Such fee shall be used for maintenance and any other expense of the emergency telephone service system.

*(Ord. No. 17058; Ord. No. 22025, § 3, 3-5-2009)*

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# TITLE 9 CORPORATION LIMITS

**Chapter 1. City Boundaries**
**Chapter 2. Annexation Procedure**

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## CHAPTER 1. CITY BOUNDARIES

Section 100. City boundaries.
Section 101. Ordinances continued in effect.
Section 102. Records and maps.

### Section 100. City boundaries.

The boundaries of the City of Tulsa shall be as heretofore established by the enactment of ordinances annexing and disannexing territory, and shall be hereafter extended or limited only by ordinances duly enacted by the Council of the City of Tulsa.

### Section 101. Ordinances continued in effect.

All ordinances heretofore passed by the City of Tulsa annexing or disannexing any additions, parts of additions or tracts of land and in force and effect upon the date of the adoption of these Revised Ordinances are continued in full force and effect the same as if these Revised Ordinances had never been adopted.

### Section 102. Records and maps.

Annexation and disannexation records are available in the Office of the City Clerk. Maps are available in the Office of the Director of Public Works.

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## CHAPTER 2. ANNEXATION PROCEDURE

Section 200. Application.
Section 201. Minimum requirements.
Section 202. Studies, surveys, investigation, relevant factors.
Section 203. Water lines.
Section 204. Annexation by City.

### Section 200. Application.

Whenever any subdivision, unplatted tract or parcel of land is proposed to be annexed to the City of Tulsa, the owner or owners petitioning for annexation shall file with the Clerk of the City of Tulsa three (3) copies of the plat of the subdivision, unplatted tract or parcel of land proposed to be annexed, which plat shall be at a scale of one (1) inch equivalent to one hundred (100) feet, and upon which the contours of the natural ground are delineated in five (5) foot intervals. There shall also be filed with the Clerk of the City of Tulsa profiles of all streets in and along the area to be annexed, showing the existing ground elevations along each block line and the center lines of the streets. Profiles shall be drawn on tracing cloth, shall have a vertical scale of one (1) inch equal to four (4) feet and a horizontal scale of one (1) inch equal to forty (40) feet, and shall designate the proposed street grades as approved by the City Engineer.

*(Ord. No. 4482)*

### Section 201. Minimum requirements.

The Clerk of the City of Tulsa shall refer the petition to the Mayor for his examination and recommendations in writing to the Council, which recommendation shall affirmatively determine the following minimum requirements for annexation:

**A.** That the area contains a minimum of approximately fifty percent (50%) development;

**B.** That all streets in the area have been graded to within at least six (6) inches of the proposed grade line of the street, and that such grading extends over the entire width of the dedicated street; that is, from property line to property line;

**C.** That all streets have been well oiled or graveled;

**D.** That permanent culverts or other drainage structures of sufficient capacity and conforming to the standards and requirements of the City of Tulsa have been installed under and across all streets; that all creeks, ditches or waterways across private property shall have been opened, straightened, cleaned and otherwise improved; and that proper easements have been submitted covering the location of all creeks, ditches or waterways and granting to the City of Tulsa or to the public ingress and egress for the maintenance and operation of the creeks, ditches or waterways; and

**E.** That all sanitary sewers have been installed or that a proper petition for their installation has accompanied the petition for annexation, unless the installation of sanitary sewers is not feasible.

*(Ord. No. 4482)*

### Section 202. Studies, surveys, investigation, relevant factors.

The Mayor may make studies, surveys and investigations, and hold public hearings to provide accurate data for orderly and constructive community annexation programs.

In addition to the minimum standards contained in Section 201 herein, the Mayor and Council shall consider other factors which are relevant to the acquisition of land areas by the City through the process of annexation, including police protection, fire protection, water and sewer services, street maintenance, traffic control, land development, schools, transportation facilities, economic impact, taxation, parks and recreational areas, refuse collection and disposal, utility location and relocation services, drainage facilities, and public lands and zoning so that the public health, welfare and safety may be properly served and benefited.

### Section 203. Water lines.

In no event shall the Public Works Department be required to extend mains in excess of one hundred (100) feet per service into the area, unless the costs of the extension are paid by the owners in advance of construction. When water services have been previously made to properties in the area and the services and meters do not conform to City specifications, the owners shall make application to the City to procure water services which shall meet City specifications, and the owners shall pay for such work.

*(Ord. No. 4482)*

### Section 204. Annexation by City.

Nothing contained in this chapter shall deprive the City of Tulsa of any of its rights under existing or future general laws or statutes of the state of Oklahoma, or ordinances of the City of Tulsa to initiate proceedings for the annexation to the City of Tulsa of any subdivision, platted or unplatted land, or parcel of land, whether improved or not, without conforming to the requirements herein contained for annexation by petition.

*(Ord. No. 4482)*

# TITLE 10 ELECTIONS

**Chapter 1. Absentee Ballots and Expenses**
**Chapter 2. Filling Vacancies in Elective Offices**
**Chapter 3. Elections on Funding of Riverside Drive and/or Houston Avenue Improvements**

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## CHAPTER 1. ABSENTEE BALLOTS AND EXPENSES

Section 100. Absentee ballots.
Section 101. Expenses.

### Section 100. Absentee ballots.

Absentee ballots shall be provided in all primary, general or special elections conducted in the City of Tulsa in the manner and in accordance with the provisions now established or hereinafter established by the laws of the state of Oklahoma.

*(Ord. No. 15169)*

### Section 101. Expenses.

All expenses incurred in the conduct of any election for the City of Tulsa shall be paid by the City. Expenses shall include, but shall not be limited to compensation for members of each precinct election board, per diem and mileage for the chairman and vice chairman of the county election boards, the cost of supplies and ballots and the rental of polling places.

*(Ord. No. 15169)*

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## CHAPTER 2. FILLING VACANCIES IN ELECTIVE OFFICES

Section 200. Filling vacancies in elective offices.
Section 201. Conduct of special election.
Section 202. Partisan election.
Section 203. Filing declaration of candidacy.
Section 204. Filing as a partisan candidate.
Section 205. Filing as an independent candidate.
Section 206. Resolution directing the calling of special election.
Section 207. Election and taking office.

### Section 200. Filling vacancies in elective offices.

If a vacancy shall occur in the office of Mayor, City Auditor or a Councilor more than one (1) year prior to the next general election for City offices, the Council shall by resolution direct the calling of a special municipal election at the earliest time allowed under the laws of Oklahoma applicable to special municipal elections to fill the vacancy for the remainder of the unexpired term.

*(Ord. No. 17729)*

### Section 201. Conduct of special election.

When the office of a municipal elected official is to be filled under the provisions of this Chapter, the resolution directing the calling of the special election shall specify:

**A.** A filing period of three (3) days, on a Monday, Tuesday and Wednesday, which shall not be less than fifteen (15) days from the date of the resolution; and

**B.** The date of the special municipal election, which shall not be less than thirty (30) days after the close of the filing period.

*(Ord. No. 17729)*

### Section 202. Partisan election.

The election shall be partisan by placing on the ballot the name of the political party to which the candidate belongs next to the name of the candidate, as shown on the voter registration records, or by placing the name "Independent" next to the name of the candidate who files as independent under Article VI, Section 3.2, of the Amended Charter of the City of Tulsa.

*(Ord. No. 17729)*

### Section 203. Filing declaration of candidacy.

When the office of a municipal elected official is to be filled under the provisions of this chapter, any person who desires to be a candidate for such office shall file with the Election Board of Tulsa County a Declaration of Candidacy within the time period for filing as specified by the Council in its resolution directing the calling of the special municipal election.

*(Ord. No. 17729)*

### Section 204. Filing as a partisan candidate.

Any person who desires to be a partisan candidate under the provisions of this chapter shall state in the Declaration of Candidacy:

**A.** The name and residence street address of the person as it appears on the voter registration records;

**B.** The name of the office sought; and

**C.** The name of the political party to which the candidate belongs as shown by the voter registration records.

*(Ord. No. 17729)*

### Section 205. Filing as an independent candidate.

Any person who desires to be an independent candidate under the provisions of this chapter shall comply with all requirements contained in Article VI, Section 3.2, of the Amended Charter of the City of Tulsa, Oklahoma.

*(Ord. No. 17729)*

### Section 206. Resolution directing the calling of special election.

The resolution directing the calling of the special election under this chapter shall contain the following facts:

**A.** The date of the special municipal election;

**B.** The offices to be filled at the special municipal election;

**C.** Qualifications for the offices;

**D.** Designation of which offices shall be filled by voting by district and which offices shall be filled by voting at large;

**E.** That the election will be partisan by placing on the ballot the name of the political party to which the candidate belongs next to the name of the candidate, as shown by the voter registration records, or by placing the name "Independent" next to the name of the candidate who files as independent under Article VI, Section 3.2, of the Amended Charter of the City of Tulsa;

**F.** A statement that the special municipal election shall be conducted according to the laws of Oklahoma, unless specifically otherwise provided by the Charter or ordinances of the City of Tulsa, Oklahoma; and

**G.** Any other information necessary for conducting said election.

*(Ord. No. 17729)*

### Section 207. Election and taking office.

The candidate receiving the greatest number of votes at the special municipal election held under this chapter shall be deemed elected and shall take office at 2:00 o'clock p.m., the next business day following the filing with the City Clerk of a Certificate of Election by the County Election Board.

*(Ord. No. 17729)*

## CHAPTER 3. ELECTIONS ON FUNDING OF RIVERSIDE DRIVE AND/OR HOUSTON AVENUE IMPROVEMENTS

Section 300. Elections on funding of Riverside Drive and/or Houston Avenue Improvements.

### Section 300. Elections on funding of Riverside Drive and/or Houston Avenue Improvements.

**A.** Subject to the provisions of Subsection B of this Section, at any election upon the question of financing, in whole or in part, any improvements to Riverside Drive and/or Houston Avenue as contemplated by the "1993 Conceptual Plan for Riverside Drive and Houston Avenue," the Resolutions amending Districts 6, 7, and 18 Plans and the Resolution amending the Major Street and Highway Plan, approved by the Council on November 9, 1993, the ordinance authorizing and directing the calling of such an election shall set forth such project as a separate proposition to be voted upon separately by the voters of the City.

**B.** The provisions of Subsection A of this Section shall not apply to any election upon the question of financing the following:

**1.** Acquisition of any right-of-way which has been identified in the "1993 Conceptual Plan for Riverside Drive and Houston Avenue" as necessary for the future improvement of Riverside Drive and/or Houston Avenue;

**2.** The engineering design and construction of all side street tie-offs and culs-de-sac as identified in the "1993 Conceptual Plan for Riverside Drive and Houston Avenue";

**3.** The necessary relocation of all utility lines associated with the side street tie-offs and construction of the culs-de-sac as identified in the "1993 Conceptual Plan for Riverside Drive and Houston Avenue";

**4.** The improvements to the Midland Valley Pedestrian overpass and River Parks at approximately 29th Street and Riverside Drive and the related realignment of the roadway underneath as identified in the "1993 Conceptual Plan for Riverside Drive and Houston Avenue"; or

**5.** The improvements to Riverside Drive between the 2300 and 3400 Blocks South, associated with the development referred to as "The Gathering Place" as conceptually represented on the drawing marked Exhibit A and attached.

*(Ord. No. 18117; Ord. No. 22923, § 1, 8-8-2013)*

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# TITLE 11 PUBLIC WORKS DEPARTMENT

**Chapter 1. Public Works Department and Duties**
**Chapter 2. Protective Inspections**
**Chapter 3. Traffic Engineering**
**Chapter 4. Public Improvements**
**Chapter 5. Street, Block and House Numbering**
**Chapter 6. Grades of Streets and Alleys**
**Chapter 7. Closing of Public Ways and Easements**
**Chapter 8. Construction On or Over Storm Sewer Easements**
**Chapter 9. Street Maintenance**
**Chapter 10. Standard Specifications for Highway Construction**
**Chapter 11. Prequalification of Contractors**
**Chapter 12. Rights-of-Way Occupancy Management**
**Chapter 13. Blasting Regulations**
**Chapter 14. Licensing of Signs Within the Central Business District Rights-of-Way**
**Chapter 15. Sidewalk Cafe and Table and Chair Permits in the Right-of-Way**
**Chapter 16. Small Wireless Communications Facilities**
**Chapter 17. Parklet Permits in the Right-of-way**

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## CHAPTER 1. PUBLIC WORKS DEPARTMENT AND DUTIES

Section 100. Definitions.
Section 101. Public Works Department.
Section 102. Office of Director of Public Works.
Section 103. Duties of the Director of Public Works.
Section 104. Records.
Section 105. Monuments and bench marks.
Section 106. Interference with public works functions.
Section 107. Duties in laying tracks.
Section 108. Right of entry.
Section 109. Penalty.

### Section 100. Definitions.

**A. Director.** Unless otherwise specified, for purposes of this title "Director" shall mean the duly appointed Director of Public Works and/or his designated representative.

**B. City Engineer.** For all purposes of the Revised Ordinances of the City of Tulsa, "City Engineer" shall mean the duly appointed Director of Public Works and/or his designated representative; and the Director of Public Works or his designated representative shall perform the duties assigned to the City Engineer in the Revised Ordinances of the City of Tulsa and in the statutes of the state of Oklahoma.

*(Ord. No. 17285)*

### Section 101. Public Works Department.

There is hereby created a Public Works Department of the City of Tulsa whose responsibilities shall include engineering, management of waterworks and sewerage, stormwater management, solid waste management, transportation, street maintenance, traffic engineering, protective inspections, facilities maintenance and such other responsibilities as may be assigned to the department.

*(Ord. No. 17285)*

### Section 102. Office of Director of Public Works.

The Director of Public Works shall be a registered professional engineer under the laws of the state of Oklahoma and qualified to practice the profession of engineering within the state. The Director shall be appointed by the Mayor and shall be in charge of the Public Works Department with the power and authority to hire such assistants as he may deem necessary for the efficient operation of the Department and to suspend or discharge any such assistants, all subject to the provisions of the Charter of the City of Tulsa.

*(Ord. Nos. 3967, 17285)*

### Section 103. Duties of the Director of Public Works.

The Director of Public Works shall perform such duties as may be required of him by the laws of the state of Oklahoma and the Charter and Revised Ordinances of the City of Tulsa, and he shall perform such other duties in the various departments of the City government as may be assigned to him. It shall be the duty of the Director to inform himself concerning all provisions of the Charter and Revised Ordinances of the City of Tulsa directly affecting

the operation and duties of the Public Works Department; the repair and improvement of all streets, alleys and public grounds; the maintenance and operation of public buildings and grounds; the building, electrical, plumbing, boiler, mechanical and other codes and regulations governing private construction and operation; the street lighting system; the design and construction of storm sewers; the design, construction, extension, improvement, management, maintenance and operation of the waterworks and sewerage systems; the management of solid waste; and the management of stormwater drainage, as specified in the Revised Ordinances of the City of Tulsa.

It shall be the duty of the Director of Public Works to establish all street, sidewalk and alley grades; to prepare the plans, estimates and specifications for all public improvements and to supervise their construction, except where such duties are otherwise designated by Charter or Ordinance; to inspect the installation of all sidewalks, driveways and other improvements upon public streets and alleys and property; to supervise the management of stormwater drainage, solid waste and the waterworks and sewerage systems of the City as specified in the Revised Ordinances of the City of Tulsa; to make such investigations, studies and reports as may be authorized; to give technical advice and assistance to all departments of the City government; and to make records in his office available for information to the public.

*(Ord. Nos. 5735, 17285)*

### Section 104. Records.

It shall be the duty of the Director to provide in his office and make available for public information the following records:

**A.** A map or maps with supporting documents showing the location, size, elevations and other pertinent data relative to the existing storm sewer system of the City;

**B.** Copies of the survey, plans, profiles, specifications and estimates of all public improvements under his jurisdiction; and

**C.** The record of all datum planes, street grades, sidewalk grades, elevations and the surveys of all streets, alleys, avenues and other real estate belonging to the City.

*(Ord. Nos. 5735, 17285)*

### Section 105. Monuments and bench marks.

In the course of establishing land lines and elevations in the construction of public works, and at such other times as he may deem advisable, the Director shall install permanent monuments accurately marking or referencing the location of land lines and intersections thereof, construct permanent bench marks accurately determining the elevations thereof, and record and make available in his office for information to the public all data relative to such monuments and bench marks.

*(Ord. No. 17285)*

### Section 106. Interference with public works functions.

It shall be unlawful for any person or persons to interfere or to permit any person or thing to interfere in any way whatsoever with the Director or his assistants while they are engaged in work pertaining to their offices, or to remove, tear down, obliterate or permit the

removal, tearing down or obliteration of any stakes, markers, corner stones, bench marks, monuments or other things placed within the corporate limits of the City by the Director or his representatives.

*(Ord. Nos. 204, 17285)*

### Section 107. Duties in laying tracks.

No street car, interurban or railway track shall be laid upon, over or across any street, alley or public place in the City, and no portion of any street, alley or public place, which is traversed or crossed by any track or tracks which is required by law, franchise or grant to be paved by the owner or owners of such track or tracks, shall be paved, except under the supervision and direction of the Director and in accordance with plans and specifications of the City.

*(Ord. No. 17285)*

### Section 108. Right of entry.

The Director and his assistants shall have the right, as allowed by law, to enter in and upon any grounds or premises within the City for the purpose of investigating any matter within the scope of the duties of the department.

*(Ord. Nos. 47, 17285)*

### Section 109. Penalty.

Unless otherwise provided herein, any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), including costs, for each and every separate offense. Each day a violation is continued shall constitute a separate offense.

*(Ord. Nos. 16530, 17285)*

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## CHAPTER 2. PROTECTIVE INSPECTIONS

Section 200. Duties of the Director of Public Works.
Section 201. Waiver of permit and inspection fees.

### Section 200. Duties of the Director of Public Works.

The Director of Public Works shall discharge the duties imposed by the provisions of the protective codes and Revised Ordinances of the City of Tulsa, including those duties enumerated herein. He shall:

**A.** Supervise and direct the protective inspections programs of the City;

**B.** Supervise and direct the administration of the building, property maintenance, plumbing, electrical, mechanical and sign codes of the City;

**C.** Supervise, coordinate and direct inspectors and their assistants in the enforcement of the codes which relate to protective inspections;

**D.** Supervise and direct the interpretation by the inspectors of the protective codes and the Revised Ordinances of the City of Tulsa;

**E.** Recommend, from time to time, revisions of and amendments to the protective codes which are necessary and desirable for protection of the public health and safety; and

**F.** Develop and administer public information programs to inform citizens of the provisions of the protective codes of the City of Tulsa.

*(Ord. No. 17285)*

### Section 201. Waiver of permit and inspection fees.

Fees for zoning clearance, building, electrical, mechanical or plumbing permits or inspections on any building or construction done in accordance with the provisions of the Home Investment Partnership Act ("HOME"), 42 U.S.C. §§ 12701, *et seq.*, shall not be collected if:

**A.** The building or construction is performed by certified Community Housing Development Organizations ("CHDOs"); and

**B.** Urban Development Department ("UDD") certifies:

**1.** The applicant for fee waiver is a City designated CHDO; and

**2.** The waiver of fees will generate matches under the provisions of HOME; and

**3.** The building or construction is a HOME-assisted project in conformance with the City's Consolidated Plan.

Waiver of fees as described above shall not constitute a waiver of any provision in these Revised Ordinances which requires the issuance of such permits or the performance of specified inspections.

*(Ord. No. 18847)*

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## CHAPTER 3. TRAFFIC ENGINEERING

Section 300. Traffic Engineering duties.
Section 301. Appeals.
Section 302. Parking investigators.
Section 303. Temporary restricted parking.

### Section 300. Traffic Engineering duties.

The Director of Public Works is authorized and empowered to:

**A.** Place and maintain traffic control devices;

**B.** Designate cross-walks, safety zones and traffic lanes as may be deemed necessary to protect the safety and welfare of the citizens of the City;

**C.** Determine those intersections at which drivers of vehicles shall not make a right or left turn, place proper signs at such intersections and, when appropriate, place marks, buttons or signs within or adjacent to intersections indicating the course to be traveled by vehicles turning at such intersections;

**D.** Determine the location of passenger zones and freight-loading zones, and place and maintain appropriate signs or markings indicating such zones and stating the hours during which the provisions of this section are applicable;

**E.** Determine the necessity for and the most feasible location of taxicab stands;

**F.** Determine the necessity for and the most feasible location for bus stops;

**G.** Determine and establish passenger common carrier stands in such places and in such numbers as shall be of the greatest benefit and convenience to the public;

**H.** Determine and establish "No Parking Zones" upon any street adjacent to school property when parking in such zones would interfere with traffic or create a hazardous situation;

**I.** Determine, designate and establish one-way streets, avenues and roadways within the City and erect appropriate signs providing notice thereof;

**J.** Administer all phases of a comprehensive program of street lighting;

**K.** Make regulations necessary to enforce the provisions of the Revised Ordinances of the City of Tulsa pertaining to traffic control, and make and enforce temporary regulations to cover emergency or special conditions;

**L.** Make temporary experimental rules regulating traffic or testing traffic control devices under actual conditions of traffic; provided, however, that no such experimental rule regulating traffic shall remain in effect for more than ninety (90) days; and

**M.** Enforce the provisions of Stopping, Standing and Parking Regulations of the Traffic Code of the City.

*(Ord. Nos. 14297, 17285)*

### Section 301. Appeals.

Any person, firm or corporation aggrieved by any regulation, rule or order issued under authority of the Director may appeal to the governing body of the City, and upon proper hearing the governing body of the City, as it deems necessary and for good cause, may nullify or modify any regulation, rule or order issued by the Director.

*(Ord. Nos. 6181, 17285)*

## Section 302. Parking investigators.

**A.** Traffic citations for violations of the penal provisions of the Stopping, Standing and Parking Regulations of the Traffic Code of the City may be issued by those employees of the Public Works Department classified as Parking Investigators. Police power is conferred upon Parking Investigators subject to the limitations herein prescribed.

**B.** The citations shall be of such form and substance to be acceptable to invoke the jurisdiction of the Municipal Court, and shall contain sufficient information to advise the person so charged of the title and section of the Revised Ordinances of the City of Tulsa which is alleged to have been violated and how the alleged violation may be contested.

**C.** Parking Investigators shall carry, at all times during the performance of their duties, identification of their authority; and they shall exhibit such identification upon request when conducting their duties of code enforcement.

**D.** Parking Investigators shall wear such uniforms as may be approved by the Director.

**E.** Parking Investigators are not authorized to physically subdue nor take into custody any alleged violator unless accompanied by a regular police officer or peace officer.

**F.** Parking Investigators are not authorized to carry any type of firearm in the performance of their duties.

**G.** Parking Investigators are not authorized, under any circumstances, to accept money, cash, checks, money orders or anything of value in payment of a fine.

**H.** Nothing contained in this section shall in any way detract from nor diminish the powers and authority of the Tulsa Police Department to enforce the provisions of the Tulsa Revised Ordinances.

*(Ord. Nos. 14298, 17285)*

## Section 303. Temporary restricted parking.

Any person, firm or corporation desiring to have a regulated on-street parking space temporarily restricted shall submit the Temporary Restricted Parking form to the Parking Manager or their designee stating the location of the parking spaces requested, the purpose and the duration of the request. If the Director of Public Works Parking Manager or Special Events Coordinator determines that the requested restriction is justified, he/she shall temporarily restrict the requested parking spaces upon payment of the fee in advance by the applicant. The fee to restrict a regulated parking space is based on the rates pursuant to Title 37, Chapter 5, Section 503B.

The Director of Public Works, Special Events Coordinator or Parking Manager shall consider the following factors in determining whether restricting a regulated parking space is justified:

**A.** Whether the restriction will benefit the orderly control of traffic on the public streets;

**B.** Whether the restriction is required to temporarily provide increased access to adjacent property; and

**C.** Whether the restriction is required to temporarily accommodate special uses of the public right-of-way which are of general benefit to the public at large.

Any person who objects to the grant or denial by the Director of Public Works, Special Events Coordinator or Parking Manager of an application for restricting a parking space may file a written protest with the governing body of the City setting forth the reasons for the objection. Each protest will be promptly reviewed by the governing body of the City at its next available meeting to determine whether restricting the parking space is justified.

Nothing in this Section shall be construed to prohibit the Director of Public Works, Special Events Coordinator or Parking Manager from restricting a parking space when he/she determines that such restriction is in the best interest of the public safety or convenience, nor shall it prevent the restriction of a parking space by licensed funeral directors in accordance with Title 37, Chapter 9, Section 910.

*(Ord. No. 24089, § 1, 3-6-2019)*

**Editor's note—**Ord. No. 24089, § 1, adopted March 6, 2019, amended § 303 in its entirety to read as herein set out. Former § 303, pertained to meter hoods, and derived from Ord. Nos. 14571, 16103, 17285; Ord. No. 23584, § 1, 10-26-2016.

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## CHAPTER 4. PUBLIC IMPROVEMENTS

Section 400. Fees and charges included in estimates.
Section 401. Payment to contractor.
Section 402. Obtaining plans.
Section 403. Permit and inspection fees waived.

### Section 400. Fees and charges included in estimates.

The Director of Public Works shall include in all estimates of cost for public improvements all charges in connection therewith, including but not limited to the costs of advertising, printing, easement, legal, abstracting and engineering. The construction cost, together with these additional fees and charges, shall constitute the total cost of the project or contract.

*(Ord. Nos. 5319, 17285)*

### Section 401. Payment to contractor.

When the cost of a public improvement contract is to be paid in special tax bills, improvement bonds or tax warrants, the contractor shall be paid the total amount of the cost of the contract by the delivery of the tax bills, improvement bonds or tax warrants to the contractor; provided, however, that before the delivery of such bills, bonds or warrants, the contractor shall pay to the City, in cash, an amount equal to the sum of the costs and fees paid or to be paid by the City which are chargeable to that improvement.

*(Ord. No. 17285)*

### Section 402. Obtaining plans.

The Director shall supply to any person requesting them copies of the plans, estimates, specifications, form of contract and bond and proposals for all public improvement projects assigned to his jurisdiction, provided that the person requesting such copies deposits with the City the estimated cost of reproduction, which deposit shall be refunded to the depositor upon the return of all plans, estimates and specifications.

*(Ord. No. 17285)*

### Section 403. Permit and inspection fees waived.

No fee for zoning clearance, building, electrical, mechanical or plumbing permit or inspection shall be collected by the City on any public work or improvement performed by or for any city, county, state or federal governmental entity; provided, however, that this exemption shall apply only to such permits or certificates issued directly to the governmental entity involved, and it shall not constitute a waiver of any provision in these Revised Ordinances which requires the issuance of such permits or the performance of specified inspections.

*(Ord. Nos. 13639, 17285)*

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## CHAPTER 5. STREET, BLOCK AND HOUSE NUMBERING

Section 500. Block numbering.
Section 501. House and building numbering.
Section 502. Assignment of building numbers.
Section 503. Use of numbers.
Section 504. Naming of streets.
Section 505. Maps and records.
Section 506. Penalty.

### Section 500. Block numbering.

**A. North-south streets.** Main Street in the City of Tulsa, and its northerly and southerly projections, shall be the dividing line between the eastern and western portions of the City. The blocks east and west of Main Street, starting with the Main Street dividing line as zero, shall be numbered as follows:

Each of the basic streets west of Main Street shall be designated as Avenues, and the hundred number assigned to each shall designate the block number of the succeeding block, and such numbers shall be designated as numbers "West"; and each of the basic streets east of Main Street shall be designated as Avenues and the hundred number assigned to each shall designate the block number of the succeeding block, and such numbers shall be designated as numbers "East." *(Ord. No. 2065)*

**B. East-west streets.** The dividing line between the northern and southern portions of the City shall be along Admiral Boulevard running east from the western limits of the City to its intersection with the St. Louis and San Francisco Railroad; then in an easterly direction along that railroad to the intersection with Admiral Boulevard; and then east along Admiral Boulevard to the eastern limits of the City. The blocks north and south of such dividing line, starting with the dividing line as zero, shall be numbered as follows:

Each of the basic streets north of the dividing line, whether designated by name or number, shall be numbered successively by hundreds and the number designated shall determine the succeeding block number, such as Cameron Street, 300 Block, and Davenport Street, 400 Block, and such numbers shall be designated as numbers "North"; and each basic street south of the dividing line shall be numbered successively by hundreds and the numbers, likewise, shall determine the succeeding block numbers, and such numbers shall be designated as numbers "South."

**C. Intermediate streets.** Streets intervening between basic streets, by reason of platting or topography, shall be designated as "Places," "Courts," "Drives," "Boulevards" or "Roads," and shall bear the same hundred number as the basic street or avenue, such as Columbia Avenue, 2700 Block; Columbia Place, 2700 Block; provided that winding intermediate streets which change alignment and direction at intervals may, at the Director's discretion, be assigned proper hundred numbers in order to conform to the system of block numbering as established.

The Director of Public Works shall determine which streets shall be the dividing line between numbered blocks. He shall assign proper block numbers to blocks and shall see that the block numbering system is systematically followed as outlined above.

*(Ord. Nos. 2065, 17285)*

## Section 501. House and building numbering.

All houses and buildings on the south side of all streets running in an easterly or westerly direction and on the west side of all streets running in a northerly or southerly direction shall be given even numbers; and all houses and buildings on the north side of all streets running in an easterly or westerly direction and on the east side of all streets running in a northerly or southerly direction shall be given odd numbers.

*(Ord. No. 17285)*

## Section 502. Assignment of building numbers.

Each twenty-five (25) feet of frontage on each block of each street or avenue shall be entitled to a separate number, except where the lots or parcels of land have less than twenty-five (25) feet of frontage, in which case each separate lot or parcel of land shall be entitled to a separate number. It shall be the duty of the Director to assign a separate number to each twenty-five (25) feet of frontage on any street, or to a separate lot of less width. Where any building is placed on a lot larger than twenty-five (25) feet in width, the Director shall designate the proper number to be used. A building on the rear of a lot shall bear the same number as the building on the front except that the suffix "R" shall be added. Upstairs entrances shall use the number assigned for the frontage with the suffix "½" added.

Apartments, offices and rooms having a common building entrance shall use the assigned entrance number. No person other than the Director, or his assistants, shall undertake to furnish house numbers or numbers for any premise.

*(Ord. No. 17285)*

## Section 503. Use of numbers.

The block and building numbers assigned by the Director shall be the official numbers, and it shall be unlawful for any person to use any building or block numbers except those assigned by the Director. It shall be the duty of all persons owning, occupying or using any building to place the number assigned by the Director in a conspicuous place at the front of the building. No fees shall be charged by the Director for such assignment. When a number is once assigned to any place or building, it shall not be changed without the consent of the Director.

It shall be the duty of all persons owning, occupying or using any building having more than one (1) business therein to place in a conspicuous place on the rear of the building a building number or numbers corresponding to the building number or numbers assigned by the Director for use on the front of the building.

It shall be the duty of all persons owning, occupying or using any building which does not have side yards providing access to the rear of the building, to place in a conspicuous place on the rear of the building a building number or numbers corresponding to the number or numbers assigned by the Director for use on the front of the building.

*(Ord. Nos. 8611, 17285)*

## Section 504. Naming of streets.

The names of any streets opened or established shall be designated by the Director in conformity with the existing street naming system. The names of existing streets shall be

changed only by ordinance; provided, however, that whenever any territory is annexed to the City of Tulsa, the Director shall change any names of streets in the territory so annexed which do not conform to the existing street naming system.

*(Ord. No. 17285)*

### Section 505. Maps and records.

The Director shall maintain and make available for public use an official map and record showing all officially designated names of streets and all assigned street, building and house numbers.

*(Ord. No. 17285)*

### Section 506. Penalty.

Any person who uses any house, building or block number other than the official number designated by the Director or who refuses to use the official number designated by the Director after ten (10) days written notice, or who changes any number without the permission of the Director shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs.

*(Ord. Nos. 16530, 17285)*

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## CHAPTER 6. GRADES OF STREETS AND ALLEYS

Section 600. Streets previously paved.
Section 601. Adoption of profiles.
Section 602. Records.

### Section 600. Streets previously paved.

In particular instances when no ordinances establishing grades have been passed and approved by the governing body of the City, but when particular streets, avenues or alleys have been previously paved, the grades shall be deemed to have been established on the plane indicated by the profiles of the Director which have been adopted and approved for the purpose of the paving of the particular streets, avenues or alleys.

*(Ord. No. 17285)*

### Section 601. Adoption of profiles.

The grade on any street, avenue or alley indicated on any profile prepared by the Director of Public Works for the purpose of paving the street, avenue or alley shall be deemed to be established by the profile when it shall have been duly approved even without a specific ordinance approving the grade; provided, however, that the City shall not be precluded by the provisions herein from re-establishing grades either by ordinance or by the adoption and approval of an amended profile, subject to such liability for the re-establishing of any grade as may be provided by the laws of the state of Oklahoma and the Charter of the City of Tulsa.

*(Ord. No. 17285)*

### Section 602. Records.

The Director shall prepare on linen in ink all profiles of any street, avenue or alley where paving is to be constructed, clearly indicating the grade of such street, avenue or alley. After such profiles are adopted and marked so as to designate the portion of street, avenue or alley on which the grade is approved, the Director shall keep such profiles on record in his office, labeled and indexed so that they may be readily found.

*(Ord. Nos. 1784, 17285)*

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## CHAPTER 7. CLOSING OF PUBLIC WAYS AND EASEMENTS

Section 700. Definitions.
Section 701. Application for closing easements or public ways.
Section 702. Processing applications.
Section 703. Reservation of rights upon closing.
Section 704. Fees.

### Section 700. Definitions.

**A.** **Close** means a legislative act of the City discontinuing the public use of a public way or easement without affecting title to such real property.

**B.** **Public way** means a street, avenue, boulevard, alley, lane or thoroughfare established or open for public use.

**C.** **Easement** means a right in real property as established by the laws of the state of Oklahoma.

*(Ord. No. 17285)*

### Section 701. Application for closing easements or public ways.

All applications for closing easements or public ways located within the corporate limits of the City shall be filed with the Director of Public Works on forms furnished by the Director; and the applicant shall furnish the following information:

**A.** A plot, plan or other representative sketch or drawing depicting distances and points of the compass and showing the location and area of the public way or easement;

**B.** The legal description of the public way or easement to be closed;

**C.** If an easement is being closed, the purpose for which the easement was originally given;

**D.** If the easement or public way was established by any instrument (other than a subdivision plat) filed in the Office of the County Clerk, a copy of such instrument duly certified by the County Clerk;

**E.** If the easement or public way was established by statutory dedication pursuant to a recorded subdivision plat, the name of the subdivision and plat number;

**F.** If the applicant seeks to close a public way, the application shall state whether or not such public way has been open for public use within the five (5) year period immediately preceding the date of the filing of such application; if such public way has been open for public use within that period of time, the applicant shall furnish a list, certified by a bonded abstractor, containing the names and addresses of all owners of record, as shown by the current year's tax rolls in the Office of the County Treasurer, of property abutting the public way and such other owners of record whose property is within three hundred (300) feet in any direction from the public way sought to be closed; and

**G.** Such additional information as may be determined by the Director to be necessary for evaluating the application.

*(Ord. No. 17285)*

## Section 702. Processing applications.

Upon receipt of a properly completed application and the payment of all required fees, the application for the closing of easements or public ways shall be processed as set forth herein.

**A.** The Director shall give written notice of the pending application to all City departments who use public ways or easements and to all companies whose franchises with the City entitle them to the use of public ways or easements, as applicable to such application. Such notice shall require that all comments on the application shall be made in writing to the Director within thirty (30) days from the date of the written notice.

**B.** Within a reasonable period of time after the expiration of the thirty (30) day notice period, the Director shall recommend to the governing body of the City action to be taken upon the application.

**C.** Upon receipt of the report and recommendation of the Director, the governing body of the City may, without giving further notice to any third party, approve or deny, either in whole or in part, any application seeking to vacate an easement or close a public way which has not been open for public use for more than five (5) years immediately preceding the date of the filing of such application. If the application seeks to close a public way which has been open for public use within the five (5) year period immediately preceding the date of the filing such application, the governing body of the City shall set a date for public hearing thereon and direct notice to be given by certified mail to all property owners shown on the list furnished by the applicant. Such notice shall be given at least ten (10) calendar days prior to the scheduled public hearing, shall identify the nature of the pending proceeding and shall direct that any person having an objection to the pending application must appear at the public hearing to advise the governing body of the City of the nature of his objection. On the date of the scheduled public hearing, the governing body of the City shall inquire into the merits of the application and, upon determination of all issues, shall approve or deny, either in whole or in part, the proposed closing.

**D.** Upon approval of any application, the City Attorney shall be directed to prepare a proper ordinance closing the public way or easement; upon its adoption, the costs for publication of such ordinance shall be determined and, upon the payment of such costs to the City of Tulsa by the applicant, the City shall have the ordinance published.

*(Ord. No. 17285)*

## Section 703. Reservation of rights upon closing.

The City shall retain the absolute right to reopen any closed public way or easement without expense to the City. The closing of any public way or easement shall not affect the right to maintain, repair, reconstruct, operate or remove utility, public service corporation or transmission company facilities existing therein, nor shall such closing affect private ways existing by operation of law.

*(Ord. No. 17285)*

## Section 704. Fees.

A non-refundable filing fee of One Thousand Dollars ($1,000.00) shall accompany each application to close a public way or easement. In addition to such filing fee, if the

application seeks to close a public way which has been open to public use within the five (5) years preceding the date of the application, the applicant at time of filing shall pay an additional mailing fee of the actual cost of a registered letter deposited in the U.S. Mail for each property owner who is entitled to receive notice of the proceeding. In the event the application is withdrawn prior to the mailing of notices, the mailing fee shall be refunded to the applicant.

*(Ord. Nos. 17285, 17304; Ord. No. 24599, § 1, 4-14-2021)*

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## CHAPTER 8. CONSTRUCTION ON OR OVER STORM SEWER EASEMENTS

Section 800. Construction permitted over storm sewer easements.
Section 801. Permit required.
Section 802. Agreement required.
Section 803. Application for permit.
Section 804. Restrictions and conditions.
Section 805. Fee.

### Section 800. Construction permitted over storm sewer easements.

The construction of buildings or structures shall be permitted over, upon and in storm sewer easements inuring to the benefit of the City or within the corporate limits of the City and inuring to the benefit of the public.

*(Ord. Nos. 10913, 17285)*

### Section 801. Permit required.

Any person desiring to construct a building or structure over, upon or in a storm sewer easement, or a portion thereof, shall, prior to construction, obtain a permit from the Director of Public Works, the issuance of which shall be the condition precedent to such construction.

*(Ord. Nos. 10913, 17285)*

### Section 802. Agreement required.

Any person desiring to construct a building or structure upon a storm sewer easement inuring to the benefit of the City, and located within the City limits of the City of Tulsa, shall execute an agreement with the City, subject to approval by the Mayor, setting forth such terms, conditions and provisions as may be prescribed by the Mayor to whom authority is delegated to execute such agreements in behalf of the City. The agreement shall be in writing and shall restrict the use of the storm sewer easement substantially in accordance with the restrictions and conditions as herein set forth; and the agreement shall, upon execution, be recorded in the Office of the County Clerk of the County in which that property is located, with the recording cost to be paid by the property owner.

*(Ord. Nos. 10913, 17285)*

### Section 803. Application for permit.

Any person desiring to construct a building or structure upon, over or in a storm sewer easement, inuring to the benefit of the City and located within the City limits of the City of Tulsa, may make application to the Director. All applications shall be accompanied by the fee required herein for processing and handling and shall include such information, data, surveys, engineering drawings, sketches, plans, as required by the Director, including, but not limited to the following:

**A.** A plat plan or other representative sketch or drawing, showing lineal measurements and directions of the compass, which depicts the area proposed for use; and

**B.** The legal description of the area proposed for use.

*(Ord. Nos. 10913, 17285)*

## Section 804. Restrictions and conditions.

The following restrictions and conditions shall be made a part of the grant of use of the storm sewer easement inuring to the benefit of the City for construction of a building or structure over, upon or in a storm sewer easement:

**A.** No building or structure shall be constructed upon a storm sewer easement so as to interfere with pedestrian or vehicular traffic along public rights-of-way, streets, alleys or sidewalks;

**B.** No maintenance costs shall be paid by the City of Tulsa; and the City shall bear no cost of future maintenance of that portion of the storm sewer easement upon which a building or structure is constructed; such maintenance shall be the exclusive responsibility of the property owner;

**C.** No liability for property damage or personal injury arising out of the construction, installation or maintenance of the building or structure constructed upon, over or in the storm sewer easement shall attach to the City as a municipal corporation;

**D.** Permission for the construction of a building or structure shall be authorized as herein provided without waiving any privileges or rights in favor of the City in, to or under the storm sewer easement land, nor shall there be a waiver of any privileges or rights previously acquired by any of the agents, servants or employees of the City, including utility companies;

**E.** In the event it becomes necessary for any public purpose, including construction, installation, maintenance, repair or discontinuance of utilities over, upon or in the storm sewer easement land occupied by a building or structure, to remove the building or structure for the reason that it interferes with the private privileges or rights of the City, its agents, servants and employees, including utility companies, the building or structure shall be removed by the owner of the building or structure; in the event the removal is not accomplished as herein provided, the building or structure may be removed by the City, its agents, servants or employees, including utility companies or independent contractors, at the expense of the person who is the owner of the building or structure;

**F.** The owner of the building or structure shall agree to defend any and all claims, liabilities, suits at law or equity brought against the City of Tulsa resulting from the operation, construction, installation or maintenance of such building or structure by the property owner or third parties, and shall further agree to indemnify the City for any damages suffered as a result thereof;

**G.** Any agreement entered into by the Director, as herein provided, for the construction of a building or structure over a public storm sewer easement, shall run with the land and be binding on the grantees, assigns, successors and heirs, and shall be recorded in the Office of the County Clerk of the county in which the property is located, with all recording costs to be borne by the property owner; and

**H.** The Director shall, as a condition of any such agreement, make such reasonable requirements as will protect the safety, health and welfare of the public, including requirements relating to the construction, installation, maintenance or discontinuance of any existing or contemplated storm sewers to be located in the area to be used and further including any and all requirements established by ordinance.

*(Ord. Nos. 10913, 17285)*

## Section 805. Fee.

The fee for processing and handling of all applications for construction of a building or structure upon a public storm sewer easement shall be Twenty-Five Dollars ($25.00) to reimburse the City for any necessary legal or engineering services or for other costs. Fifteen Dollars ($15.00) of the fee shall be refunded to the applicant in the event of the refusal by the Director of the applicant's request or in the event of abandonment by the applicant prior to the construction of any building or structure.

*(Ord. Nos. 10913, 17285)*

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## CHAPTER 9. STREET MAINTENANCE

Section 900. Duties of the Director of Public Works.
Section 901. Special revenue fund for maintenance and repair of public ways.

### Section 900. Duties of the Director of Public Works.

The Director of Public Works is authorized and empowered to:

**A.** Administer all phases of a comprehensive program of street maintenance;

**B.** Analyze the maintenance and construction needs for City streets;

**C.** Develop effective plans for the efficient utilization of personnel, equipment and materials in connection with the maintenance and construction of City streets;

**D.** Determine priorities for street maintenance and construction projects;

**E.** Administer a preventive maintenance program for heavy equipment and rolling stock used in street maintenance and construction;

**F.** Develop specifications for equipment and materials used in street maintenance and construction;

**G.** Make recommendations for new and improved methods and materials used in street maintenance and construction; and

**H.** Perform such other duties as may be assigned.

*(Ord. Nos. 13085, 17285)*

### Section 901. Special revenue fund for maintenance and repair of public ways.

**A.** There is hereby created a Special Revenue Fund for the Maintenance and Repair of Public Ways, to be financed by the one percent (1%) of gross revenues to be paid to City of Tulsa by Public Service Company of Oklahoma (PSO) pursuant to Section 411.B. of Franchise Ordinance No. 24695 approved by the voters of the City of Tulsa at a special election on February 8, 2022.

**B.** As described in the Franchise Ordinance, this Special Revenue Fund may be expended by the City of Tulsa only for the maintenance and repair of public ways, including but not limited to right-of-way and median maintenance and enhancement; street and highway lighting maintenance, repair, and replacement; and underground installation cost reimbursement as provided for in Subsections 406.C and 408.H of the PSO franchise ordinance.

**C.** It is estimated that the Special Revenue Fund will receive approximately $76,404,000 over the course of the fifteen (15) year term of the Franchise. The programs and purposes for which expenditures of proceeds from the Special Revenue Fund for the Maintenance and Repair of Public Ways may lawfully be made are as follows:

| | |
|---|---|
| Citywide Utility Line Burial Program | $45,492,000 |
| Street and Highway Lighting and Corridor Enhancement | $16,500,000 |
| Medians and Rights-of-Way Rehabilitation and Maintenance | $7,621,000 |
| Inspector-Manager and Inspector-Crew Workers | $5,876,000 |
| Vehicles, Equipment, Materials, and Supplies | $915,000 |
| Estimated 15-Year Total | $76,404,000 |

**D.** While the cost estimates shown above are believed to be accurate, the exact cost of each program may vary from the estimate shown.

**E.** The Mayor and the City Council shall determine program priority on an annual basis through the budget process.

**F.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the Special Revenue Fund for the Maintenance and Repair of Public Ways, and having enacted this section to establish the official City policy with regard to such revenue, hereby pledges that this section shall remain in force during the entire period of collection and expenditure of the revenues generated by the Special Revenue Fund for the programs herein enumerated.

Any attempt to amend or repeal this section can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this section on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements has been made.

**1.** The Secretary shall forthwith (within twenty-four (24) hours) notify all major newspapers, all major television stations and all major radio stations then located within the City of Tulsa of the request for amendment or repeal of this section.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at City Hall, to which local newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be published in one newspaper maintaining a general subscription in the City of Tulsa, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication requested for such notice. The Secretary shall request that the notice be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**G.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this section until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 103.A above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days

apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this section as above provided.

*(Ord. No. 24721, § 1, 11-17-2021)*

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# CHAPTER 10. STANDARD SPECIFICATIONS FOR HIGHWAY CONSTRUCTION

Section 1000. Adoption of state standard specifications.
Section 1001. Additions, revisions, deletions and exceptions.

## Section 1000. Adoption of state standard specifications.

That certain document, a bound copy and electronic copy of which has been filed in the Office of the City Clerk of the City of Tulsa, being marked and designated as Standard Specifications for Highway Construction, 2019 Edition, as published by the Oklahoma Department of Transportation, is hereby adopted as the standard specifications for public improvement projects for the City of Tulsa with the additions, revisions, deletions and exceptions as set forth in Section 1001 of this chapter.

*(Ord. Nos. 17285, 17472, 19955; Ord. No. 22597, § 1, 1-5-2012; Ord. No. 23427, § 1, 1-14-2016; Ord. No. 24616, § 1, 6-2-2021)*

## Section 1001. Additions, revisions, deletions and exceptions.

**1001.A.** The following definitions, listed as numbered in the 2019 Edition of the Standard Specifications for Highway Construction, are hereby revised and amended for all sections of this chapter as follows:

**101.03. Abbreviations and Acronyms.** In Table 101:1, add the following abbreviations and expressions:

- ADA American with Disabilities Act, excluding Chapter 500
- ADA Adjusted Daily Average, when used in Chapter 500
- ADAAG American with Disability Act Accessibility Guidelines
- COT City of Tulsa
- PROWAG Public Rights-of-Way Accessibility Guidelines

**101.05. Definitions.** Add the following subsections:

- "**101.05.CY. City of Tulsa (COT).** The City of Tulsa, Oklahoma, a municipal corporation acting by and through its duly authorized officers and agents."
- "**101.05.CZ. Non-Collusive Bidding Certificate.** Replace all references to 'Non-Collusive Bidding Certificate' with 'Non-Collusion Affidavit'."
- "**101.05.DA. Qualified Products List (QPL).** All references to 'ODOT Traffic Engineering Division Qualified Products List (QPL)' or 'QPL' shall mean 'the City of Tulsa, Traffic Engineering Division Approved Products List'."
- "**101.05.DB. State Construction Engineer.** The City Engineer of the City of Tulsa or authorized designee."

**101.05.A. Acceptance Date.** Delete section.

**101.05.V. Commission.** Replace definition with "The City of Tulsa, Oklahoma, a municipal corporation acting by and through its duly authorized officers and agents."

**101.05.Y. Contract.** Replace definition with "The written agreement between the City of Tulsa and the Contractor setting forth obligations of the parties thereunder, including, but not limited to, the performance of the work, the furnishing of labor and materials, and the basis of payment.

The Contract includes the Notice to Bidders, Proposal, Contract Form, all Contract Bonds, Specifications, Special Specifications, Special Provisions, all Plans, Work Orders and Change Orders that are required to complete the construction of the work in an acceptable manner, including authorized extensions."

**101.05.AG. Department.** Replace definition with "The City of Tulsa, Oklahoma, a municipal corporation acting by and through its duly authorized officers and agents."

**101.05.AI. Director.** Replace definition with "The Director of the Engineering Services Department or the Director of any successor department which has the responsibility for general engineering services for the City of Tulsa."

**101.05.AL. Engineer.** Replace definition with "The City Engineer of the City of Tulsa or authorized designee."

**101.05.AO. FAST Guide.** Replace definition and all references to "FAST Guide" with "City of Tulsa Acceptance Sampling/Testing Standard Specifications."

**101.05. AT. Holiday.** Replace definition with "Days declared to be holidays for regular Civil Service employees of the City of Tulsa."

**101.05.AV. Inspector.** Replace definition with "The City of Tulsa's authorized representative assigned to inspect the work."

**101.05.BF. Materials Division.** Replace definition with "The Director of the Engineering Services Department or the Director of any successor department which has the responsibility for general engineering services for the City of Tulsa."

**101.05.BG. Materials Engineer.** Replace definition with "The City Engineer of the City of Tulsa or authorized designee."

**101.05.CC. Right-of-Way.** Replace definition with "Right-of-Way or ROW shall mean the surface, the airspace above ground, and the area below the surface of any public street, highway, parkway, lane, path, alley, sidewalk, boulevard, drive, bridge, tunnel, stormwater drainage system, easement, park, or similar property in which the City of Tulsa now or hereafter holds a property interest and/or a maintenance responsibility which, consistent with the purposes for which it was granted or dedicated, may be used to install, operate and maintain facilities."

**101.05.CD.(16). Sidewalk/Bicycle Path.** Add the following sentence to the existing definition: "Refer to the Revised Ordinances of the City of Tulsa, Title 37 - Tulsa Traffic Code, Chapter 1 and Chapter 10 for definition of bicycle."

**101.05.CH. State.** Replace definition with "The City of Tulsa, Oklahoma, a municipal corporation acting by and through its duly authorized officers and agents."

**101.05.CS. Traffic Engineering Division.** Replace definition with "The City of Tulsa Traffic Engineering Division or any successor division which has the responsibility for traffic engineering services for the City of Tulsa."

**1001.B.** City of Tulsa exceptions and amendments to the following provisions, listed as numbered in the 2019 Edition of the Standard Specifications for Highway Construction, are hereby revised, amended and described as follows:

**102.01. Pre-Qualification.** Delete text of section, and replace with "The City of Tulsa requires General/Prime Contractors to be Prequalified according to Title 11, Chapter 11 of the Revised Ordinances of the City of Tulsa."

**102.04. Refusal of Proposals.** At the end of the bulleted list, add the following bulleted list item: "The bidder has failed to comply with Small Business Enterprise requirements of a previous City of Tulsa contract."

**102.06. Examination of Plans, Specifications, Special Provisions, and the Work Site.** Replace the fourth paragraph with "The City of Tulsa may have boring logs and subsurface reports used in determining design criteria. Bidders may request to inspect these documents, relevant to the currently advertised project, by contacting the Contract Administrator at the following address during normal business hours:

City of Tulsa
Engineering Services Department
2317 S Jackson Ave
Tulsa, OK 74107

**102.08. Nonresponsive Proposals.** At the end of the bulleted list, add the following bulleted statement: "The bidder does not properly comply with Small Business Enterprise requirements in accordance with the Proposal Forms."

**102.10. Delivery of Proposal.** Delete text of section, and replace with the following:

"Each bid Proposal shall be completed electronically on the electronic media provided, then printed, signed and submitted along with the electronic media and the complete bound copy of the contract documents or as instructed in the Notice to Bidders. In the event of a discrepancy between the pricing on the electronic media and the hard copy of a Proposal, the hard copy pricing will govern. If an electronic media is not provided, and the bid Proposal is manual, the bid Proposal shall be submitted in ink. The written words shall govern over the figures. Erroneous entries shall be lined out, initialed by the bidder, and the correct entry inserted. The unit price bid must cover all expense for furnishing the labor, materials, tools, equipment, and apparatus of every description to construct, erect, and furnish all work required by and in conformance with the Plans and Specifications.

Each bid shall be enclosed in a sealed envelope addressed to

City Clerk's Office
The City of Tulsa
One Technology Center
175 E. 2nd Street, Suite 260
Tulsa, Oklahoma 74103

or as otherwise instructed in the Notice to Bidders, and identified on the outside with the words:

'PROJECT NO. _____,

Pre-qualification Certificate Number _____,'

All addenda to the contract documents shall accompany the bid when submitted.

Any bid received more than ninety-six (96) hours excluding Saturdays, Sundays and holidays before the time set for the opening of bids, or any bid received after the time set for opening of bids, shall be considered "non-responsive" and shall be returned unopened to the bidder."

**102.13. Public Opening of Proposals.** Delete text of section, and replace with "Proposals shall be publicly opened and read on the date and at the hour and place set forth in the advertisement and Notice to Bidders in the manner established by the City of Tulsa."

**102.16. Non-Collusive Bidding Certification.**

- Replace the Non-Collusion Bidding Certification form with the following City of Tulsa Non-Collusion Affidavit form:

**NON-COLLUSION AFFIDAVIT**

STATE OF )
) ss:
COUNTY OF )

_____, of lawful age, being first duly sworn, says that:

1. I am the duly authorized agent of the bidder submitting the competitive bid associated with this sworn statement for the purpose of certifying facts pertaining to the existence of collusion among bidders and between bidders and municipal officers or employees, as well as facts pertaining to the giving or offering of things of value to governmental personnel in return for special consideration in the letting of any contract pursuant to the bid;

2. I am fully aware of the facts and circumstances surrounding the making of the bid and have been personally and directly involved in the proceedings leading to the submission of such bid;

3. Neither the bidder nor anyone subject to the bidder's direction or control has been a party:
   a. to any collusion among bidders in restraint of freedom of competition by agreement to bid at a fixed price or to refrain from bidding;
   b. to any collusion with any municipal official or employee as to quantity, quality or price in the prospective contract, or as to any other terms of such prospective contract; nor
   c. in any discussions between bidders and any municipal official concerning exchange of money or other things of value for special consideration in the letting of a contract.

4. If awarded the contract, neither the bidder nor anyone subject to the bidder's direction or control has paid, given or donated or agreed to pay, give or donate to any officer or employee of the City of Tulsa or of any public trust where the City of Tulsa is a beneficiary, any money or other thing of value, either directly or indirectly, in procuring the contract for which the bid is submitted.

_____ _____
BIDDER (Company Name) Signed

_____
Title

SUBSCRIBED and SWORN to before me this _____ day of _____, 20___.

_____
NOTARY PUBLIC

MY COMMISSION EXPIRES:
_____, ___.
COMMISSION NO.:
_____

- In the fourth paragraph, revise the phrase proceeding the bulleted list to recite, "The following do not constitute collusion within the scope of the Non-Collusion Affidavit:"

**103.07. Execution of Contract.** Revise the first paragraph as follows:

- Revise the first sentence to recite "The Contract shall be signed in black or blue ink

by the individual, all members/partners of a general partnership or joint venture, a general partner of a limited partnership, a duly authorized officer of the corporation, or a duly authorized manager, managing member or authorized officer of the limited liability company, to whom the Contract was awarded.

- In the last sentence delete "The Department will execute the Contract", and replace with "The Department will endeavor to execute the Contract, in proper form,".

**103.08. Approval of Contract.** Delete text of section, and replace with "The Contract shall not be binding upon the City of Tulsa until it has been executed and approved in the manner set forth in the Tulsa City Charter."

**104.01. Purpose of Contract.** After the first two (2) sentences, delete the rest of the section.

**104.07. Maintenance of Traffic.** Revise the first sentence to recite "Keep all roads, sidewalks, and bicycle paths open to all traffic as shown on the plans."

**105.17. Project Completion and Acceptance.** At the beginning of the section add, "This section does not apply to Infrastructure Development Projects (IPDs). For IDPs, refer to Title 35 of the Revised Ordinances of the City of Tulsa."

**105.17.B. Project Completion.** In the first sentence of the last paragraph, replace "The Resident Engineer will" with "The Resident Engineer may".

**105.17.C. Final Acceptance.** Delete text of section, and replace with "Final Acceptance is the date on which the Request for Action (RFA) for final payment has been signed by the Mayor of the City of Tulsa."

**106.01.A. Material Acceptance.** At the end of this section, add the following paragraph: "For conflicts among ODOT Standard Specifications, ODOT Standard Materials Test Methods, and City of Tulsa Acceptance Sampling/Testing Standard Specifications, the City of Tulsa Acceptance Sampling/Testing Standard Specifications shall take precedence."

**106.01.B. Buy America.** Delete Section.

**106.04.D. Distribution of Certifications.** Delete text of section, and replace with "The Contractor shall submit certifications to the Engineer with another copy mailed to:

Field Engineering
City of Tulsa
Engineering Services Department
2317 S Jackson Ave
Tulsa, OK 74107"

**106.05. Plant Inspection.** In this section, replace all references to "Oklahoma City" with "Tulsa."

**106.11. Guarantees and Warranties.** In the first paragraph replace "six months" with "twelve months" and "six-month" with "twelve-month".

**107.01. Laws, Rules, and Regulations to be Observed.** At the end of this section add the following:

"The contractor shall certify that it and all of its Subcontractors to be used in the performance of the Contract are in compliance with 25 O.S. Sec. 1313 and participate

in the Status Verification System. The Status Verification System is defined in 25 O.S. Sec. 1312 and includes but is not limited to the free Employee Verification Program (E-Verify) available at https://www.e-verify.gov/.

The Contractor shall take the necessary actions to ensure its facilities are in compliance with the requirements of the Americans With Disabilities Act (ADA). It is understood that the Contractor's internal ADA program is not a program or activity of the City of Tulsa. The Contractor agrees that its program or activity will comply with the requirements of the ADA. Any costs of such compliance will be the responsibility of the Contractor. Under no circumstances will Contractor conduct any activity which is not in compliance with the ADA."

**107.06. Barriers, Barricades, and Warning Signs.** Before the first paragraph, add "In this section, the term "traffic" includes vehicular, pedestrian and bicycle traffic."

**107.14. No Waiver of Legal Rights.** Delete section.

**107.19. Regulated Floodways.** At the end of the section, add "The Contractor shall also follow the requirements of Title 11A of the Revised Ordinances of the City of Tulsa."

**107.20. Stormwater Management.** After the first sentence, add "The Contractor shall also follow the requirements of Title 11A of the Revised Ordinances of the City of Tulsa."

**108.01. Subletting of Contract.** Delete the last sentence of the first paragraph.

**108.02. Notice to Proceed and Preconstruction Conference.** Delete the first sentence in the second paragraph, and replace with "After the Contractor and Resident Engineer hold a preconstruction conference, the Contractor shall receive a Notice to Proceed before the start of construction."

**108.07.B.(1) Extensions for Adverse Weather.** After the first sentence in the second paragraph, add "Extensions of Contract Time will not be granted if conditions exist such that the Contractor could work at least 4 hours."

**108.07.B.(3). Winter Time Suspension.** Delete section.

**108.08. Incentive/Disincentive for Early/Late Completion.** Delete section.

**108.09. Failure to Complete on Time.**

- In the first sentence, delete "in accordance with Table 108:1, 'Schedule of Liquidated Damages.'"
- Delete Table 108:1.

**109.04.B.(3). Equipment.**

- In first paragraph, delete the last two sentences, and replace with the following:

  "The Department will determine the maximum allowable rate as listed in the most current edition of the Heavy Construction Costs with RSMeans data, published by The Gordian Group. The Department will calculate the hourly rental rate in accordance with the following equation:

  H = [(M x R)/176] + O

  Where:

  H = Hourly rental rate,

M = Monthly rental rate,

R = City cost index/100, and

O = Hourly operating cost.

- In the second paragraph, delete the last two sentences.

**109.04.B.(4)(f). Employee Fringe Benefits.** Delete text of section, and replace with "The City of Tulsa will not pay for the additional costs of employee fringe benefits incurred by the Contractor for labor during the period the disputed work was in progress."

**109.06. Progress Payments.** Revise the first sentence of the second paragraph to recite "The Resident Engineer will make monthly progressive estimates."

**109.08. Final Payment.** Delete last paragraph, and replace with "If the Contractor does not sign and return the Final Estimate within 90 days of receipt, the Engineer may start action to administratively close the project."

**109.10.A. Recoverable Costs.** Delete section.

**201.04.A. Clearing.** Delete the fourth sentence of the first paragraph, and replace with "Remove branches that overhang the roadway to at least 20 ft [6 m] above the road surface and at least 35 ft [11 m] above the road surface at traffic signals."

**201.06. Basis of Payment.** In this section, delete all references to "Lump Sum", and replace with "Square Yard [Square Meter]".

**202.04. Construction Methods.** In the second paragraph delete, "If the contract requires ground disturbance greater than one acre total."

**202.04.D.(2). Mandatory Sources Designated on the Plans.** Delete sentence, and replace with "If the Plans show the source of selective subgrade topping, excavate the material at the specified source, haul to the specified location, and place."

**202.05.A. Unclassified Excavation.** Delete the second sentence of the first paragraph.

**209.04. Construction Methods.** At the end of the second paragraph, add the following: "Clean inlet and outlet channels within the right-of-way."

**220.04.C. Contractor Responsibilities for SWPPP.** In the first sentence of the second paragraph, replace "recommended" with "required".

**220.04.H.(3). Earthwork Operations.** Delete first paragraph, and replace with "Protect excavation or embankment slopes as construction progresses with placement of temporary (e.g. seeding, mulching, soil retention blankets, or other approved soil stability), or permanent (e.g. seeding, sprigging, or sodding) erosion control measures. Obtain approval from the Resident Engineer in the preconstruction schedule for any increase or decrease in the amount of the area exposed by construction operations. No exposed area shall remain unprotected without being stabilized. Install temporary or permanent erosion or sediment control measures on excavation or embankment slopes as work progresses in vertical increments of not more than 10 ft [3 m] unless otherwise directed by the Resident Engineer."

**220.05. Method of Measurement.** In the bulleted list, delete the sixth bulleted item.

**221.01. Description.** In the last sentence, replace "OOPDES" with "OPDES".

**221.02.D. Temporary Sediment Filter.** Revise the first sentence to recite "Provide fiber log for Type I-A and I-B sediment filter in accordance with Subsection 221.02.H, 'Temporary Fiber Log.' Provide material for Type I-C sediment filter in accordance with Subsection 221.02.C, 'Temporary Silt Fence.'"

**228.02. Materials.** For the first item listed in the table, delete "Nylon".

**230.01. Description.** Delete "Bermuda".

**230.02. Materials.** Delete all references to "Bermuda" from this section.

**231.04.C.(1). Planting Seasons and Weather Restrictions.** In the first sentence of the second paragraph, replace "suspend" with "Suspend".

**317.04.A. Mix Design and Proportioning.** In the bulleted list, insert "•" before "Compressive strength at 7 days".

**317.04.F. Acceptance.**

- Delete the first paragraph.
- At the end of the second paragraph add "Failure to reach strength between 600 psi [4,150 kPa] and 2,000 psi [13,800 kPa] will result in rejection of the work."

**317.06. Basis of Payment.** Delete the third and fourth paragraphs and Table 317:1. Replace with the following: "ODOT Acceptance and Strength Pay Factors shall not be used. Failure to meet criteria in Subsection 317.04.F will result in rejection of the work."

**401.04.A.(1). Surface Elevation and Smoothness.** Delete paragraph, and replace with "Refer to the City of Tulsa Standard Specifications for Pavement and Bridge Deck Smoothness."

**403.04.A.(2). Seasonal Limitations.** Delete paragraph and Table 403:1, and replace with "The Department will evaluate claims for extension of Contract Time in accordance with Subsection 108.07, when temperature and weather limitations in Table 403:2 are not met."

**405.04.G. Spreading and Finishing.** In the last paragraph, replace "ODOT Bridge Division" with "Department".

**406.04.F. Weather and Seasonal Limitations.** Delete the second paragraph.

**410.04.E. Aggregate Application Rate.** Delete the third and fourth sentences, and replace with "The Contractor shall overlay the deficient area at no additional cost to the Department."

**410.05. Method of Measurement.** Delete text of section, and replace with "The Resident Engineer will measure completed Micro Surfacing by the square yard [square meter]."

**410.06. Basis of Payment.** Delete all Pay Items and Pay Units in the table and replace with the following Pay Item and Pay Unit: "MICRO SURFACING, Square Yard [Square Meter]".

**411.03.C. Pavers.** After the first paragraph add the following paragraph and Table 411.03.C:1. "Pavers shall be capable of placing a minimum paving width in one (1) lift as shown in Table 411.03.C:1. Longitudinal joints in the surface layer shall correspond with the locations indicated in Table 411.03.C:1."

| Table 411.03.C:1 Minimum Paving Widths | | |
|---|---|---|
| **Roadway Classification** | **Minimum Paving Width** | **Location of Longitudinal Joints** |
| Arterials | one (1) full lane width | At edges of traffic lanes |
| Non-Arterials | one-half (½) road width | At centerline of road |
| Trails and bike lanes | full width of trail/bike lane | At edges of trail/bike lane |

**411.03.F. Material Transfer Vehicle.**

- In the fourth paragraph, replace "Bridge Division" with "Department".
- In the seventh paragraph, replace "500 ton [450 metric ton]" with "100 ton [90 metric ton]".

**411.04. Construction Methods.** At the beginning of this section, add the following:

"Prior to paving operations, submit a paving plan indicating the sequence of paving passes, pass widths, pass thicknesses, and requested temporary street closures.

The contractor shall not drive empty or loaded trucks or equipment across newly paved areas for the construction period."

**411.04.D. Control Strip Requirements.**

- Delete the first paragraph.
- In the second paragraph, replace "500 ton [450 metric ton]" with "100 ton [90 metric ton]".
- Delete the last paragraph, and replace with "If the initial asphalt control strip produces failing results, make adjustments to production and placement procedures, and repeat the test process for a second control strip. If required, create additional asphalt control strips on the shoulder until an acceptable mixture is produced."

**411.04.1. Spreading and Finishing.**

- After the second sentence in the fourth paragraph, add "Once paving begins the Contractor should have sufficient trucks available to deliver asphalt materials in a continuous operation."
- After the fourth paragraph, add the following paragraph: "A leveling or "wedge" course may be required to establish the required cross-slope for the finished overlay. Adequate transitions to side streets and driveways must be provided. Paving shall extend to the returns of all side streets. Special consideration should be given to prevent ponding at side street intersections."

**411.04.J.(1). General.**

- Delete the second paragraph, and replace with the following:

  "Ensure longitudinal joints in the surface layer correspond with locations indicated in Table 411.03.C:1.

  Transverse joints shall be kept to a minimum. At a minimum, each lane shall be continuously laid without cold joints either from intersection to intersection or a length of 500 ft."
- Delete the last sentence in the last paragraph.

**411.04.K.(2). Acceptance.** Delete the second sentence in the third paragraph.

**411.04.K.(2).(a). Layers At Least 1½ in [38 mm] Thick.**

- In the second paragraph, delete the first sentence, and replace with "Asphalt density tests for each lot will be performed at random sample locations."
- Delete Table 411:2 and the last paragraph in the section, and replace with the following:

  "ODOT Pay Adjustments for Lot Density shall not be used. Failure of any sample within the lot to reach density within 92.0 to 97.0 percent of the Maximum Theoretical Density will result in rejection of the entire lot. The Contractor shall remove and replace unacceptable lots at no additional cost to the Department."

**411.04.K.(2).(b). Layers Less Than 1½ in [40mm] Thick.** In the second paragraph, replace "500 $yd^2$ [500 $m^2$]" with "400 $yd^2$ [330 $m^2$]".

**411.04.N.(2).(a). Basis of Acceptance and Payment.**

- In the first paragraph,
  - In the first sentence, delete "and payment";
  - After the first sentence, add the following: "The Resident Engineer may also consider other characteristics, including but not limited to, pavement smoothness."
- In the second paragraph, delete the second through the last sentence.
- Delete the fifth through the last paragraph, and replace with "ODOT pay factors for density, asphalt cement content, and air voids shall not be used. Failure to reach density of 92.0 to 97.0 percent of the Maximum Theoretical Density, asphalt cement content of +/- 0.40 of job mix formula, air voids greater than 1.5 deviation from target, or specified thickness of asphalt will result in rejection of the entire lot. The Contractor shall remove and replace unacceptable lots at no additional cost to the Department.

**411.04.N.(2).(b). Resident Engineer's Acceptance Procedures.** Delete the second paragraph, the bulleted list, and Table 411:4; replace with "The Resident Engineer may perform varying amounts of sampling and testing per lot in accordance with the City of Tulsa Acceptance Sampling/Testing Standard Specifications."

**411.06.B.(2). Asphalt Binder Price Adjustment (ABPA).** Delete the last paragraph, and replace with "ODOT will establish the Monthly Asphalt Binder Price Index each month and post the information to the ODOT website at http://www.okladot.state.ok.us/contractadmin/pdfs/binder-index.pdf."

**414.02. Materials.**

- Delete "Fly Ash" from Table.
- At the end of the section, add the following:

  "Fly Ash is not allowed in any concrete mixture unless otherwise specified in the Plans or Special Provisions."

**414.03.B. Placing and Finishing Equipment.** After the first sentence, add the following: "If paving is not performed by a slip form paver, a hand vibrator shall be required."

**414.04.R. Acceptance of Pavement.** Delete text of section, and replace with the following: "ODOT pay factors shall not be used. Failure to reach the gradation specified, air content of 4.5% to 7.5%, or target strength of the mix design will result in rejection of the entire lot. Failure to provide pavement thickness equal to or greater than what is specified will result in rejection of the entire lot."

**414.04.R.(a). Engineer's Acceptance Procedures.** Delete text of section and Table 414:2. Replace with "Refer to City of Tulsa Acceptance Sampling/Testing Standard Specifications."

**414.06. Basis of Payment.** Delete the last sentence in this section.

**509.06. Basis of Payment.**

- Delete the second through the fifth paragraph and Table 509:7. Replace with the following: "ODOT pay factors for strength and air content shall not be used. Failure to reach the specified strength or the target air content within a deviation of 1.5% will result in rejection of the work. Check any outlying concrete cylinder breaks and air entrainment tests in accordance with ASTM E 178 Table 1, Upper 10% Significance Level."
- In the sixth paragraph, revise the first sentence to recite "If the concrete is rejected by the Engineer, the Contractor may elect to core the represented concrete at no additional cost to the Department."

**515.04.C. Sampling and Testing of Bridge Decks and Approaches.** Delete the first paragraph and bulleted list. Replace with "Refer to City of Tulsa Acceptance Sampling/ Testing Standard Specifications for lot size."

**515.04.D.(2). Bridge Decks and Approach Slab Surfaces.**

- In the first paragraph, delete the third sentence.
- Delete sections (a), (b) and (c).
- Add the following:
  "The percentage of absorption (using test results from OHD L39 shall be less than or equal to 1.0. The depth of penetration (using test results from OHD L 40) shall be greater than or equal to 0.15 inches. If absorption and penetration requirements are not met, reapply penetrating water repellent at no additional cost to the Department until requirements are met."

**516.02.C. Casings.**

- In the first sentence of the third paragraph, add the word "licensed" after "Registered Professional Engineer".
- In the fourth paragraph, delete the second sentence, and replace with "Use permanent interior casings in accordance with ASTM A760 and AASHTO M36."

**516.04.C.(7). Concrete Acceptance.** Delete the second and third sentence. Replace with the following: "ODOT pay factors for concrete strength shall not be used. Failure to reach the specified strength will result in rejection of the work."

**610.04.F. Tactile Warning Device.** Delete text of section, and replace with the following:
"Install tactile warning devices in accordance with the manufacturer's specifications and the City of Tulsa Standard Drawings. Tactile Warning Devices shall consist of Cast-In-Place Tactile Panels in accordance with 733.1, "Tactile Warning Device Material".

Tactile panels shall be cast into the wet concrete. Surface applied products shall not be allowed. The panels shall extend the full width of the ramp or landing area and shall extend a minimum of two (2) feet in the direction of pedestrian travel. Panels shall be placed perpendicular to the direction of travel unless specifically noted otherwise or approved by the Engineer prior to installation.

All construction shall meet current ADAAG and PROWAG Guidelines."

**611.01. Description.** In the first sentence, delete ", brick masonry,".

**611.02.A. General.**

- Delete "Clay Brick" and "Concrete Brick" from the table of materials.
- In the second paragraph, delete "brick masonry or".

**611.04.B. Clay Brick or Concrete Brick.** Delete section.

**615. Sanitary Sewer Pipe Conduits.** Delete section.

**616. Water Pipe and Fittings.** Delete section.

**623. Guardrail and End Treatments.** Revise the section title to recite "Guardrail, End Treatments, and Impact Attenuators".

**623.01. Description.**

- In bulleted list, add the item, "Guardrail Impact Attenuators".
- In the last sentence of the last paragraph, after "Ensure the GETs", add "and Guardrail Impact Attenuators".

**623.04. Construction Methods.** Add the following subsection:

"**623.04 H. Guardrail Impact Attenuators**

Ensure experienced workers fabricate and install guardrail impact attenuators as shown on the Plans.

Construct guardrail impact attenuators with certified, crash tested hardware. Ensure NCHRP 350 TL-3 certification for substituted hardware and that the product appears on the Traffic Engineering Division's Qualified Product List (QPL). Obtain the Resident Engineer's approval of substitutions before installation."

**623.06. Basis of Payment.** Add Pay Item "(J) Guardrail Impact Attenuator" with a Pay Unit of "Each".

**624.01. Description.** In the bulleted list, add the bulleted item, "Fence, Other (Like Kind),".

**624.02. Materials.** In the table, add the Material, "Fence, Other (Like Kind)" with Section or Subsection of "732.10".

**624.06. Basis of Payment.** Add Pay Item, "(H) Fence, Other (Like Kind)" with a Pay Unit of "Linear Foot [Meter]".

**642.06. Basis of Payment.** In the table, for both Pay Items, delete the Pay Unit of "Lump Sum", and replace with "Each".

**701.01.B. Cement Substitution.** Delete text of section, Table 701:2, and Table 701:3. Replace with "Cement substitutions shall not be used in concrete mixtures."

**701.19.A. General.** Controlled Low-Strength Material (CLSM). In the first sentence, delete "fly ash,".

**701.19.B. Mix Design.** In the table, delete the Material, "Fly Ash".

**702.01.A. General.** In the second paragraph

- Delete the first sentence, and
- In the last sentence, delete "PCC from one source (power plant) and".

**702.01.B. Requirements for Portland Cement Concrete Use.** Delete section.

**702.02. Slag Cement.** Delete section.

**702.03. Cement Kiln Dust.** Delete section.

**702.04. Silica Fume.** Delete section.

**708.04. Composition of Mixtures.** In Table 708:6, under "Other Mixture Requirements", add a row as follows:

| | S2 | S3 | S4 | S5/RIL | S6 |
|---|---|---|---|---|---|
| Asphalt Cement (for Non-Arterial pavements only) % of mix mass | | ≥ 5.0 | ≥ 6.0 | ≥ 6.0/NA | |

**711.06.D.(1). Acrylic Emulsion Polymer.** In the second sentence, after "44 percent by", delete "weight [mass]", and replace with "total weight of the acrylic emulsion polymer."

**719.04.A. Description.** In the second sentence, after "Type III" add ", Type IV, or Type IX".

**719.05.C. Material and Application.** In the first sentence, delete "baking screen enamel or".

**719.05.E. Tests.** In the first sentence revise "Ensure screening enamel, stencil pastes, and process inks" to recite "Ensure stencil pastes and process inks".

**726.02. Flexible Conduits.** In Table 726:3, under Nonmetallic conduits—culverts, for Corrugated Polypropylene Pipe, delete the requirement for "AASHTO M330", and replace with "COT 215".

**732. Materials for Guardrail, Guide Posts, Bridge Rail, Miscellaneous Railing, and Fences.** Add the following subsection:

"**732.10 Fence, Other (Like Kind)**

Provide fence, other (like kind), in accordance with contract documents."

**733. Miscellaneous Materials.** Add the following subsection:

"**733.1 Tactile Warning Device Material**

Provide cast-in-place tactile panels to be embedded into wet concrete. Surface applied products are not allowed. The panels shall meet the size and spacing requirements shown in the plans or the City of Tulsa Standard Drawings.

The tactile panels shall be composed of cast iron or vitrified polymer composite material. The color of the tactile panels shall comply with ADAAG and PROWAG color

contrast requirements. Vitrified polymer composite panels shall be yellow and conform to Federal Color No. 33538. The color shall be homogeneous throughout the product. Any variations in color shall be approved by the Engineer prior to installation.

Tactile panels shall meet current ADAAG and PROWAG Guidelines."

**735.01. Sodding and Sprigging Materials.** Within subsections A, B and C, delete the word "Bermuda".

**735.01.B.(1). Solid Slab Sod.** At the end of the first paragraph add "Nylon mesh shall not be allowed in solid slab sod."

**740.01. Materials.**

- Delete the first three paragraphs.
- In fourth paragraph, delete "aluminum sheet material". Replace with "louvered aluminum backplates".
- At the end of the fifth paragraph, add "Retroreflective sheeting shall be 2 inches wide and attached to the front perimeter of the backplate. Retroreflective sheeting shall be fluorescent yellow."

**740.02. Finish.** After "Ensure the backplate is" add "flat".

**801.01. Description.** Delete the second paragraph. Replace with the following:

"The contractor shall obtain the necessary permits for electrical inspection on all signal and lighting work. Electrical inspections shall include all electrical equipment, enclosures, devices, cables, conductors and raceways as defined by the NEC. High or low voltage shall be installed, maintained, connected or removed by a State of Oklahoma licensed Electrical contractor. All work shall meet the requirements of the NEC. The City of Tulsa shall reserve the right to define workmanlike manner. Proof of license shall be carried on person at all times and be available to City of Tulsa personnel upon request per Title 158- Construction Industries Board Chapter -40 Subchapter 11-2(a)(9). The Contractor shall contact City of Tulsa Traffic Operations to obtain the address needed to obtain the permit."

**801.04.A. General.** Replace all references to "60-cycle" with "60 hertz".

**802. Electrical Conduit.** Delete section.

**803. Pull Boxes and Ground Boxes.** Delete section.

**804. Concrete Footings.** Delete section.

**805. Removal of Traffic Items.** Delete section.

**806. Poles and Mast Arms.** Delete section.

**807.02. Materials.** In the second sentence of the second paragraph, replace "plastic" with "hardened, tamper-proof".

**807.06. Basis of Payment.** In the last paragraph, replace "plastic" with "hardened, tamper-proof".

**809. Luminaires.** Delete section.

**810. Power Supplies.** Delete section.

**811. Electrical Conductors Highway Lighting.** Delete section.

**813.02. Materials.** In the first two sentences of the first paragraph, after "(2) hardcopies" add "and one (1) electronic (pdf) copy".

**813.02.A. Structural Design.**

- In the second sentence of the first paragraph, delete "corrosion-resistant (stainless or galvanized steel, or aluminum)". Replace with "galvanized steel".
- In the eighth paragraph, after "Provide the following luminaire ring suspensions as required by the Contract:", add "(Only top latching systems are allowed.)".

**813.04. Construction Methods.** In the first paragraph, delete the third sentence and replace with "Submit to the Resident Engineer one (1) electronic (pdf) copy and at least five (5) hardcopies per project or one (1) copy per device."

**825. Traffic Signal Controller Assembly.** Delete section.

**827. Solid-State Flashing Controller.** Delete section.

**828. Vehicle Loop Detector and Loop Detector Wire.** Delete section.

**830. Pedestrian Push Button.** Delete section.

**831. Traffic Signal Heads.** Delete section.

**832. Optically Programmed Adjustable Traffic Signal Heads.** Delete section.

**833. Traffic Signal Backplates.** Delete section.

**834. Electrical Conductors for Traffic Signals.** Delete section.

**850. Signs.** Delete section.

**851. Galvanized Steel Sign Posts.** Delete section.

**855.04.B. Application of Markings.** At the end of the first paragraph, add "Remove temporary markings and reflective tabs prior to installing permanent markings."

**856. Traffic Stripe (Multi-Polymer).** Delete section.

**858.04. Construction Methods.** At the end of the second sentence of the first paragraph, delete "maker", and replace with "marker".

**880.02.B.(5). Warning Lights.** In the first sentence, delete "6F-7OF", and replace with "6F.83".

**880.05.B. Lump Sum Pay Item.** At the beginning of the second paragraph, revise "If additional and compensation" to recite "If additional compensation".

*(Ord. Nos. 17285, 17472, 19955; Ord. No. 22597, § 1, 1-5-2012; Ord. No. 23427, § I, 1-14-2016; Ord. No. 24616, § 1, 6-2-2021)*

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## CHAPTER 11. PREQUALIFICATION OF CONTRACTORS

Section 1100. Definitions.
Section 1101. Powers and duties of the Director.
Section 1102. Certificates of prequalification.
Section 1103. Rejection of bids.
Section 1104. Re-examination of qualifications.
Section 1105. Prior certificates.

### Section 1100. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purposes of this chapter be defined as set forth in this section.

**A. Public Improvement** shall mean any building, street, alley, pavement, sanitary sewer, storm sewer, water line or any other improvement or structure which is constructed under contract with the City of Tulsa, Oklahoma, or as a part of a privately funded public improvement.

**B. Director** shall mean the Director of the Public Works Department, his authorized representative or any person, board or committee assigned the duties prescribed herein by executive order of the Mayor of the City of Tulsa.

**C. Person** shall mean any individual, firm, corporation, association, partnership, joint venture or other contracting entity.

**D. Contractor** shall mean any person who submits a bid for the construction of a public improvement.

*(Ord. No. 17285)*

### Section 1101. Powers and duties of the Director.

**A.** It shall be the duty of the Director to investigate and examine the qualifications of all contractors applying for a prequalification certificate and, upon determining that an applicant meets the requirements of this chapter and is in all respects responsible, qualified and competent for the class, character and magnitude of the work which the applicant proposes or intends to perform under contract with the City of Tulsa, to issue a certificate of prequalification to such contractor.

In determining the acceptability of an applicant for the purpose of prequalifications, the Director shall, among other things, investigate and consider the following:

**1.** Financial responsibility;

**2.** The character, quality and availability of the contractor's equipment, machinery and experienced personnel;

**3.** The performance record of the applicant in the performance of other contracts for public or private improvements;

**4.** The nature and extent of other contract commitments involving the use of the applicant's machinery, equipment and personnel;

**5.** Reputation for reliability and integrity;

**6.** The recommendation of the construction manager for the public improvement when the City is the general contractor and has contracted with a construction manager for the public improvement; and

**7.** Any other fact which would materially affect the ability of the applicant to properly, adequately, expeditiously and satisfactorily perform such work as might be awarded to such contractor.

**B.** If the Director, after investigation and examination of the applicant, determines that the applicant is qualified to perform contracts with the City of Tulsa, he shall issue a certificate of prequalification for the class and type of work which the applicant proposes or intends to perform under contracts with the City of Tulsa.

**C.** Such prequalification certificate shall certify that the applicant is qualified to bid upon one (1) or more of the following classes or categories of public improvements.

**1. Class A - General.** The Class A General Certificate shall entitle the holder to bid upon any and all contracts, without limitations.

**2. Class B - Building Construction.** The Class B Building Construction Certificate shall entitle the holder to bid upon all proposed contracts for the construction, erection and installation of buildings, warehouses and all other public improvements and public structures, except those described as Class C and Class D.

**3. Class C - Paving and Bridge Construction.** The Class C Paving and Bridge Construction Certificate shall entitle the holder to bid upon the grading, paving, surfacing, resurfacing, draining, guttering, bridging and other work involved in the construction or reconstruction of streets, alleys and private ways.

**4. Class D - Utility Construction.** The Class D Utility Construction Certificate shall entitle the holder to bid upon the installation and construction of all public utilities, such as waterworks, water lines, sanitary sewers, storm sewers and related facilities.

**5. Class E - Prime Contractor Construction.** The Class E Prime Contractor Construction Certificate shall entitle the holder to bid upon proposed contracts involved in the construction of a public building improvement, except those described as Class A, Class C and Class D, when the City is the general contractor and has contracted with a construction manager to oversee the public building improvement. The certificate shall identify one (1) of the following subclasses representing the maximum amount of a proposed contract upon which the holder will be entitled to bid, based upon the estimated cost of the proposed contract, as determined by the Director:

| | | |
|---|---|---|
| E1 | - | Proposed contracts with an estimated cost not exceeding One Million Dollars ($1,000,000.00) |
| E2 | - | Proposed contracts with an estimated cost not exceeding Five Million Dollars ($5,000,000.00) |
| E3 | - | Proposed contracts with an estimated cost not exceeding Ten Million Dollars ($10,000,000.00) |
| E4 | - | Proposed contracts in any amount. |

**6. Class S - General/Specialty Construction.** The Class S Construction Certificate shall entitle the holder to bid upon any public improvement not classified above, the estimated cost of which exceeds the sum of Six Hundred Thousand Dollars ($600,000.00).

**D.** The Director shall have the power to revoke or temporarily suspend a prequalification certificate of any contractor, subject to express conditions for reinstatement, when such contractor has:

**1.** Misrepresented any material fact in his application for prequalification certificate;

**2.** Defaulted in the performance of a contract with the City of Tulsa;

**3.** Failed to complete satisfactorily the performance of a contract with the City of Tulsa;

**4.** Failed to execute a contract awarded by the City of Tulsa; or

**5.** Ceased to possess any of the qualifications necessary hereunder for issuance of a prequalification certificate.

*(Ord. Nos. 17285, 21207)*

**Section 1102. Certificates of prequalification.**

**A. Application.** All applications for prequalification shall be filed with the City Clerk. Such application shall be upon forms containing the information prescribed by the Director and shall be verified before a notary public. Such application shall be accompanied by the following:

**1.** An audited financial statement by new applicants, except when application is for a Class E Prime Contractor Construction Certificate, in which case a reviewed financial statement from a Certified Public Account indicating a current asset-to-debt ratio of not less than 1.5 may be substituted for an audited financial statement;

**2.** A statement from a surety that the applicant is qualified and, if the applicant is the successful bidder, that the surety will furnish bonds as required by the contracting agency; and

**3.** Authorization for applicant's bank to release credit history to the Director.

The City Clerk shall immediately transmit, upon receiving and filing, such application and information to the Director for consideration as provided herein.

**B. Application Fees.** At the time of filing, each applicant shall pay to the City a filing fee according to the following schedule for an original application and for the filing of renewal or reinstatement applications.

| Filing Fee | | |
|---|---|---|
| Class | Original Application | Renewal Or Reinstatement |
| A | $225.00 | $25.00 |
| B | $225.00 | $25.00 |
| C | $225.00 | $25.00 |
| D | $225.00 | $25.00 |
| E | $225.00 | $25.00 |
| S | $225.00 | $25.00 |

In the event an applicant applies for or is qualified to bid upon one (1) or more of the above classes or categories of public improvements, only one (1) fee for the original

application or renewal or reinstatement shall be paid, which fee shall be that provided for the highest classification or category for which application is made or prequalification certificate issued.

**C. Issuance and Recordation.** Upon the receipt of an application and the completion of the investigation called for in Section 1101, the Director shall approve or disapprove the application. Such approval or disapproval shall be entered by the City Clerk in a prequalification record to be kept as part of the public records of the City of Tulsa. If the application is approved, the City Clerk shall issue or cause to be issued to the applicant a certificate setting forth the fact of prequalification and the class of certificate for which such applicant has been approved. The contractor's prequalification record kept by the City Clerk shall contain the name and business address of the applicant, the date of issuance of the certificate of prequalification and the class of certificate issued, together with any change, modification, revocation or suspension of such certificate.

**D. Revocation or Suspension of Prequalifications.** In the event the Director determines that a Contractor's certificate of prequalification should be revoked or temporarily suspended as herein provided, the Director shall notify the Contractor and shall afford the Contractor an opportunity to be heard. Such notice of revocation or suspension shall give the reasons therefore and shall state the date, time and place of the hearing before the Director. After the hearing, or in the event the Contractor fails to appear at such hearing, the Director shall, within five (5) days, issue his order revoking or temporarily suspending the certificate of prequalification, allowing the certificate to remain in effect or amending the certificate. In the event that the Contractor's certificate of prequalification is revoked or temporarily suspended, such revocation or suspension shall be subject to express conditions for reinstatement.

**E. Appeal.** An appeal from the Director's decision to revoke, suspend or modify a prequalification certificate may be taken to the Council by the filing of a notice of appeal with the City Clerk within ten (10) days of date of the order of revocation, suspension or modification of the certificate.

**F. Expiration.** All certificates of prequalification shall expire on the 90th day following the end of the fiscal year of the certificate holder except that a certificate shall be automatically extended pending approval by the Director of a timely filed renewal application. All certificates of prequalification must be renewed annually by filing an application for renewal on forms containing the information prescribed by the Director, and by paying the renewal application fees as above provided. All such renewals shall be for a period of one (1) year from the expiration date. If the renewal application is not received within ten (10) days after the expiration date of a certificate, the applicant must file an original application. An extension of ninety (90) days in which to file a renewal application shall be granted upon the filing of a request with the City Clerk within ten (10) days of the expiration of the current certificate of prequalification.

**G. Special Requirements for Certification.** No certification of prequalification shall be issued to any applicant unless and until, in addition to establishing qualification to the satisfaction of the Director in accordance with the provisions contained herein, the applicant establishes:

**1.** If an individual, that he has been actively engaged in supervising construction work in the category and classification for which certification is required, continuously for an uninterrupted period of at least two (2) years within the five (5) years next preceding the date of application; or

**2.** If a partnership, individual, joint venture or other bidding entity except a corporation, that at least one (1) of the partners, joint venturers, members or employees of such association or bidding entity has been engaged in a supervisory capacity in the category and classification for which certification is requested, continuously for an uninterrupted period of at least two (2) of the five (5) years immediately preceding the date of application; providing that such partner, joint venturer, member or employee shall remain in the employ of the Contractor during the period of the prequalification certificate and during the performance of any contract with the City of Tulsa; or

**3.** If a corporation, that either the chief executive officer or the officer having the responsibility for the management, supervision, control and conduct of any work to be done by the corporation under the certificate of prequalification, has been actively engaged in a supervisory capacity in the category or classification of work for which the certificate is requested, continuously for an uninterrupted period of at least two (2) of the five (5) years immediately preceding the date of application; provided, however, that a certificate of prequalification may be awarded upon establishing that the employee, servant or agent who shall be named in the application as having direct personal supervision and control over any work to be performed under the certificate of prequalification has had the experience above required, and provided that such person shall remain in the employ of the corporation during the period of the prequalification certificate and during the performance of any contract with the City of Tulsa.

**H. Service Agent Required for Nonresident Applicants.** In the case of applicants who are not residents of Tulsa County, Oklahoma, or who do not have their principal place of business in Tulsa County, Oklahoma, no certificates of prequalification shall be issued unless such applicant shall designate, as a part of its application, an individual resident of Tulsa County, Oklahoma, as a service agent upon whom service of process may be made by the City of Tulsa in any action against the applicant arising from the performance of or involving any contract that may be awarded to the applicant under a certificate of prequalification.

**I. Construction Manager Recommendation.** The recommendation of the construction manager for Class E applications will be based on the construction manager's investigation and evaluation of the applicant's capabilities, past experience, safety record, current work load, bonding capacity and other criteria set forth in this chapter.

*(Ord. Nos. 17106, 17285, 17473, 17990, 21207; Ord. No. 22910, § 1, 7-18-2013)*

**Section 1103. Rejection of bids.**

**A.** No bid for the construction of any public improvement, the estimated cost of which exceeds Two Hundred Fifty Thousand Dollars ($250,000.00), or in the case of Class S construction, Six Hundred Thousand Dollars ($600,000.00), shall be received and filed by the City Clerk of the City of Tulsa unless the person submitting the bid has prequalified as provided herein and is the holder of a current certificate of prequalification in full force and effect on the date such bid is submitted and filed in a Certificate Class required by the bid documents.

**B.** The City Clerk shall return unopened all bids of any bidder who is not shown by the records of the City Clerk to be the holder of a current prequalification certificate, and unless the certificate number and the statement of no change of condition as herein provided are endorsed upon and accompanied by the submission of such bid.

*(Ord. Nos. 17285, 17990, 21207)*

### Section 1104. Re-examination of qualifications.

The Director, the Mayor and the administrative departments of the City of Tulsa are hereby authorized to reexamine the qualifications of any Contractor whose qualifications have changed in any way since this issuance of a prequalification certificate, and to take into consideration any change of qualifications in determining the lowest and most secure bid for the construction of any public improvement.

*(Ord. No. 17285)*

### Section 1105. Prior certificates.

After the effective date of this ordinance, the holder of any valid certificate of prequalification, granted pursuant to a prior ordinance, shall be deemed to be prequalified for all work within that class without regard to any limitations as to the estimated construction cost of a project through and including the 90th day following the end of the fiscal year for which the certificate holder has been issued a prequalification certificate.

*(Ord. Nos. 17285, 17990)*

## CHAPTER 12. RIGHTS-OF-WAY OCCUPANCY MANAGEMENT

Section 1200. Intent and purpose.
Section 1201. Name and scope.
Section 1202. Definitions.
Section 1203. Administration.
Section 1204. Authority to occupy the rights-of-way.
Section 1205. Occupancy permits.
Section 1206. Occupancy fees or inspection fee and service charge.
Section 1207. Emergency telephone service requirements.
Section 1208. Rights-of-way construction permits.
Section 1209. Appeals.
Section 1210. Engineering standards.
Section 1211. Insurance.
Section 1212. Indemnification.
Section 1213. No limits on liability.
Section 1214. Record maintenance.
Section 1215. Relocation of equipment and facilities.
Section 1216. Pre-excavation location of equipment.
Section 1217. Damage to other facilities.
Section 1218. Abandoned and unusable facilities.
Section 1219. Rights-of-way vacation.
Section 1220. Cable and open video system provisions.
Section 1221. Thermal service row usage fee.
Section 1222. Reservation of regulatory and police powers.
Section 1223. Severability.
Section 1224. Revocation.
Section 1225. Transfers.
Section 1226. Exemptions.
Section 1227. Enforcement.
Section 1228. Penalties.
Schedule A.

### Section 1200. Intent and purpose.

**A.** In order to provide for the public health, safety and welfare of the citizens of the City of Tulsa, as well as to ensure the structural integrity of the City's streets and related infrastructures; to minimize the disruption to the traveling public; and to ensure costs incurred by the City to acquire, maintain and manage the rights-of-way are properly allocated among the various users of the rights-of-way, the City hereby establishes standards for authorizing and managing the placement of facilities in rights-of-way; performing installation, maintenance and other work in the rights-of-way; and appropriately recovering costs incurred by the City related to such activities.

**B.** It is the intent of this chapter to charge those persons that own, manage, operate or control the facilities located in the rights-of-way a fee based upon the proportion of facilities they have in the rights-of-way to the amount of costs the City of Tulsa incurs in acquiring and maintaining the rights-of-way. It is not the intent of this chapter to collect fees from resellers, even though they may use facilities in the rights-of-way. It is

not the intent of this chapter to prohibit those persons that own, manage, operate or control the facilities in the rights-of-way from passing the fees they pay pursuant to this chapter along to their customers and others, including resellers.

**C.** It is the intent of this chapter that all trunk, mainline, area or system-wide facilities, unless otherwise authorized by a special use permit, franchise or otherwise, shall only be located within arterial rights-of-way as defined by this chapter. It is intended that local or individual distribution lines directly attaching to individual customer service lines shall usually be located in a rights-of-way which is not an arterial rights-of-way. In any instance where the classification of a line as a trunk or local line is not clear due to specific fact circumstances pertaining to said line, the classification determination shall be made by the rights-of-way occupant with due regard to the primary function and purpose being served by the line.

*(Ord. No. 19945)*

### Section 1201. Name and scope.

**A.** Title 11, Tulsa Revised Ordinances, Chapter 12, shall be known and may be cited as, "The Rights-of-Way Occupancy Management Ordinance." Except as otherwise provided herein or prohibited by applicable law, this chapter shall apply to all rights-of-way occupants, whether under the authority of a franchise, permit, license or any other type of grant.

**B.** This chapter shall not apply to any ownership, installation, operation or maintenance of the plants and systems of Public Service Company of Oklahoma (PSO) or Oklahoma Natural Gas Company, a division of ONEOK, Inc. (ONG) on, in or upon the rights-of-way of the City which is performed and carried out in accordance with the terms and provisions of the grant or franchises between the City and PSO (Title 15, Chapter 4, Tulsa Revised Ordinances) and ONG (Title 15, Chapter 3, Tulsa Revised Ordinances), and their successors and assigns.

**C.** This chapter shall not apply to the transportation, distribution or sale of natural gas or electricity.

*(Ord. Nos. 19945, 21393)*

### Section 1202. Definitions.

For the purposes of this chapter, the following terms, phrases, words and abbreviations shall have the meanings given herein, unless otherwise expressly stated. When not inconsistent with the context, words used in the present tense include the future tense; words in the plural number include the singular number; words in the singular number include the plural number; and words defined in upper and lower case shall have the same meaning as words in all lower case. Words used in the masculine gender comprehend, as well, the feminine gender and neuter. The words "and" and "or" may be read conjunctively or disjunctively. The words "shall" and "will" are mandatory, and "may" is permissive. Unless otherwise expressly stated, words not defined in this chapter shall be given the meaning set forth in Title 47 of the United States Code, and, if not defined therein, their common and ordinary meaning. References to governmental entities (whether persons or entities) refer to those entities or their successors in authority. References to laws, ordinances or regulations shall be interpreted broadly to cover government actions, however nominated, and include laws, ordinances and regulations now in force or hereinafter enacted or amended.

**Affiliate** means a person that directly or indirectly, or through one or more intermediaries, owns or controls, is owned or controlled by (in whole or in part), or is under common ownership or control of, another person.

**Arterial rights-of-way** means the vehicle traffic lanes under the control and maintenance jurisdiction of the City of Tulsa, including the strips of land on each side thereof, on freeways, parkways, special traffic ways primary, secondary and urban arterial streets, all as defined and established by the adopted and currently effective Tulsa City-County Major Street and Highway Plan. The term shall also apply and have reference to the street system within Tulsa's Central Business District, as defined in the City of Tulsa's adopted Comprehensive Plan, and more particularly described as the street network bounded on the east by the east leg of the inner dispersal loop, the west by I-244, north by I-244 and on the south by the Broken Arrow Expressway. The rights-of-way administrator shall maintain copies of the referenced plan maps for the convenient reference by rights-of way occupants.

**Basic local service** means a terrestrial telecommunications service that employs an access line and dial tone (or the equivalent thereof) to provide access from the premises of residential or business customers to other lines for the transmission of, among other things, two-way switched or voice or data communication in the local calling area without additional, usage-sensitive charges, including:

**A.** Voice grade access to the public switched network, with the ability to place or receive calls;

**B.** A primary directory listing;

**C.** Dual-tone multi-frequency (DTMF) signaling or its functional equivalent, also known as touch tone service;

**D.** Single-party service;

**E.** Access to operator services;

**F.** Access to directory assistance services;

**G.** Access to telecommunications relay services for the deaf or hard-of-hearing;

**H.** Access to nine-one-one service where provided by a local governmental authority or multi-jurisdictional authority;

**I.** Access to interexchange long distance services;

**J.** Data communications via a modern attached to a voice line with access to the public switched telephone network; and

**K.** Provision of services or facilities to resellers of any of these services.

This definition does not include the resale of services to subscribers, or the provision of wireless telephone service.

**Cable service.** The one-way transmission to subscribers of video and audio programming or other programming services and subscriber interaction, if any, which is required for the selection or use of video and audio programming or other programming services provided through electric or electronic signals, or which utilizes a cable system, an open video system or any other facility designed to provided video and audio programming services to subscribers, but excluding IP video service. By the exclusion of IP video service from this definition of cable service, the City shall not be deemed to have waived any of its rights to assert that any ROW occupant providing IP video service is providing cable service.

**Cable television system** or **cable system** or **system.** Facilities consisting of antennae, coaxial cables, fiber optic cables, wave guides, conductors or other closed transmission paths and associated signal generation, reception and control equipment, and other equipment designed to provide cable service or cable service and communications service to subscribers and users.

**Channel** means a portion of the electromagnetic frequency spectrum which is used to provide cable service and which is capable of transmitting a television channel as defined by the Federal Communications Commission.

**City** means the City of Tulsa.

**Communications service** means the offering of telecommunications for a fee directly to the public, or to such classes of users as to the effectively available directly to the public, regardless of the facilities used. Communication service shall also include, but not necessarily be limited to, basic local service, enhanced service, digital transmission service and non digital point to point or private line service. Communication service does not include cable service.

**Communications service gross revenues** means all revenues received from or in respect of subscribers to or users of communication services exclusive of revenues received from the imposition of City, state or federal taxes or fees.

**Digital transmission service** means digital transmission services, including but not limited to the following:

**A.** Digital subscriber line (DSL);

**B.** Asynchronous transfer mode (ATM);

**C.** Packet switched data;

**D.** Frame relay;

**E.** Integrated services digital network (ISDN);

**F.** Dedicated digital or switched digital connections, including but not limited to fractional T-I, T-1 and higher capacity offerings (i.e., OC-3); and

**G.** Virtual private networks provided by LEC's within the City of Tulsa.

**Emergency** means a condition that poses a clear and immediate danger to life or health, of a significant loss of property, or requires immediate repair or replacement in order to restore service to the public or a customer.

**Elevation view** means the product of the equipment's maximum height and width utilizing the largest side of the equipment. (For example, an equipment cabinet with exterior dimensions of three (3) feet × four (4) feet × two (2) feet would have an elevation view of twelve (12) square feet; a generator with exterior dimensions of four (4) feet × four (4) feet × five (5) feet would have an elevation view of twenty (20) square feet; and, a traffic control box with exterior dimensions of seven (7) feet × two (2) feet × four (4) feet would have an elevation view of twenty-eight (28) square feet.

**Enhanced service** means a service that is delivered over communications transmission facilities (whether owned or leased), including but not limited to:

**A.** That which changes the content, format, code or protocol of transmitted information;

**B.** Provides the customer new or restructured information;

**C.** Involves end-user interaction with information stored in a computer;

**D.** Service enhancements and features, including but not limited to call forwarding, call waiting, caller ID, automatic call back, call return, three-way calling, speed dialing or assisted dialing; and

**E.** Provision of services or facilities to resellers of any of these services.

This definition does not include the resale of services to subscribers, or the provision of wireless telephone service.

**Excavate** means to dig into, around or under, or in any way remove or physically disturb or penetrate any part of the rights-of-way, including but not limited to boring, blasting, pushing and drilling holes for the installation of poles or conduit.

**Facility** or **facilities** means all or any part of a collective system of tangible things, including but not limited to pipelines, conduits, copper or fiber optic cabling, pedestals, guy wires, anchors, vaults, junction boxes, utility poles and electrical wiring, that is partly or entirely located in the rights-of-way and is used for the transmission of goods or services, including but not limited to natural gas, steam, chilled or potable water, electricity, video service or telecommunications service, regardless of whether the services are provided for a fee, or provided to the general public, to a limited group of private users, or solely for the benefit of the owner of the system.

**Franchise holder** means a holder of an approved public service franchise.

**IP video service, internet protocol video service** or **internet protocol (IP)-enabled video service** means the provision of video programming over an IP video system. This term shall not include any video programming provided as part of a service that enables users to access content, information, e-mail or other services offered over the public Internet. By identifying itself as a provider of IP video service as provided in this definition, a ROW occupant shall not be deemed to have waived any of its rights to assert that the provision of IP video service is not subject to regulations provided in this chapter.

**IP video system** means any facility using a switched (point-to-point) network architecture and using an internet protocol (IP) platform to provide IP video service to multiple subscribers within the City.

**Local exchange carrier (LEC)** means any person that is engaged in the provision of telephone exchange service or exchange access over facilities located in the rights-of-way. This definition includes incumbent carriers, competitive access carriers, alternative carriers and integrated telecommunications service providers. This definition also includes subsidiaries of LEC's and carriers providing only or mainly specialized and broadband telecommunications services.

If an LEC employs a mix of terrestrial or guided media and wireless technologies, such as last mile radio or optical access, that LEC is not considered a wireless telephone service provider.

**Major project** means projects that exceed five hundred (500) feet in length, or require boring under an arterial rights-of-way, or the cutting of any pavement in an arterial rights-of-way, or involve the installation of an additional transmission pole, or the blockage of any traveling lane in any arterial rights-of-way, for any amount of time.

**Mayor** means the Mayor of the City of Tulsa as established by the Charter of the City of Tulsa.

**Non-digital point to point or private line service** means service over facilities dedicated for the use of a particular subscriber or carrying transmissions solely between specified points on behalf of such a subscriber, including but not limited to the following:

**A.** E and M tie trunks; and

**B.** Other lines or circuits for telemetry, signaling or other uses.

This definition does not include the resale of services to subscribers, or the provision of wireless telephone service.

**Obstruct** means to place any tangible object or material in the rights-of-way in a manner that stops, hinders, disrupts or otherwise interferes with free and open passage over a specific area or part of the rights-of-way. The term does not include the otherwise legal parking of a vehicle subject to all the current parking regulations of Title 37, Tulsa Revised Ordinances.

**Occupancy permit** means a grant of authority from the City to occupy the rights-of-way for the purposes of placing, owning, operating or managing facilities in the rights-of-way.

**Occupancy permit holder** means any person holding an occupancy permit.

**Open video system (OVS)** means any facility consisting of a set of transmission paths and associated signal generation, reception and control equipment that is designed to provide cable service which includes video programming and which is provided to multiple subscribers within the City, provided that the Federal Communications Commission (FCC) has certified that such system complies with Title 47 United States Code, Section 573 and Title 47 Code of Federal Regulations, Subpart S, as amended.

**Permittee** means any person to whom a ROW construction permit has been issued.

**Person** means any natural or corporate person, business association or other business entity, including, but not limited to, a partnership, a sole proprietorship, a corporation, a limited liability company, a political subdivision, a public or private agency or authority of any kind, a utility, or a successor or assign of any of the foregoing or any other legal entity, but not the City.

**Professional liability insurance** means liability insurance including those requirements commonly defined as malpractice insurance, which provides protection from loss sustained because of error or oversight in advice given or expertise relied upon as integral to the project.

**Public service franchise** means the authorization granted by the City, and approved by a vote of the people, giving the grantee the nonexclusive right to provide, through public facilities maintained or operated upon, across, beneath or over any rights-of-way in the City, any general public service, including heat, light, power, refrigeration or steam, but not including telecommunications services or cable television service, within a defined franchise area.

**Rights-of-way occupancy fee** means an annual charge that recovers an apportioned share of the actual costs to the City of acquiring and maintaining the arterial rights-of-way.

**Rights-of-way construction permit** or **ROW construction permit** means an authorization to excavate in or obstruct rights-of-way at a specific place and time, for the purposes of installing, constructing or maintaining facilities within a specified portion of rights-of-way.

**Rights-of-way occupant** or **ROW occupant** means a person that owns, manages, operates, controls or has the ability to directly affect the facilities located in the rights-of-way.

**Rights-of-way** or **ROW** means the surface, the airspace above ground and the area below the surface of any public street, highway, parkway, lane, path, alley, sidewalk, boulevard, drive, bridge, tunnel, adjacent easement or similar property in which the City now or hereafter holds a property interest and/or a maintenance responsibility which, consistent with the purposes for which it was dedicated, may be used for the purpose of constructing, installing, operating and maintaining facilities of any kind, including but not limited to conduits, pipelines, cables, utility poles, junction boxes and duct banks. Rights-of-way does not include buildings, parks or other property owned or leased by the City, its trusts or authorities, but does include all arterial rights-of-way as defined by this chapter. No reference herein, or in any franchise agreement or occupancy permit yet to be negotiated, to any rights-of-way, shall be deemed to be a representation or guarantee by the City that its interest or other right to control the use of such property is sufficient to permit its use for such purposes, and a franchise holder or occupancy permit holder shall be deemed to gain only those rights to use as are properly in the City and as the City may have the right and power to give.

Should the ROW occupant desire the City to investigate whether the City can make a representation or guarantee that its interest or other right to control the use of such property is sufficient to permit the ROW occupant's use for such purposes, then the ROW occupant shall submit, in advance, sufficient funds to cover all costs associated with such an investigation by the City including but not limited to, attorney fees, surveyor fees, title examination fees and title insurance fees.

**Telecommunications** means the transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received, as defined in the Communications Act of 1934, as amended.

**Thermal service** means the sale of chilled water and steam.

**Thermal service gross revenues** means all revenues received from or in respect of thermal service exclusive of revenues received form the imposition of City, state or federal taxes or fees.

**Transfer** means any transaction in which:

**A.** All or a portion of a ROW occupant's facilities is sold or assigned;

**B.** There is any change, acquisition, direct or indirect transfer of control of the ROW occupant; or

**C.** The rights or obligations held by the ROW occupant are transferred, sold, assigned, or leased, in whole or in part, directly or indirectly, to another party.

**Traveling surface** means that portion of the arterial rights-of-way, paved with either asphalt or concrete, or other material designed to support vehicular traffic, lying between those portions of the arterial rights-of-way that are unpaved.

**Video programming** means programming provided by, or generally considered comparable to programming provided by, a television broadcast station, as set forth in Section 522(20) of Title 47 of the United States Code.

**Video service** means any cable service, IP video service, internet protocol video service or internet protocol (IP)-enabled video programming service provided through facilities that are partly or entirely located in the rights-of-way, without regard to delivery technology.

**Video service gross revenue** means all revenues derived by a ROW occupant, its affiliates, and its successors or assigns, that are attributable to, or are in any way derived from, the operations of the ROW occupant's facilities to provide video services within the City, including but not limited to recurring charges for video services; event based charges for video services, including but not limited to pay-per-view and video on demand charges; rental of set top boxes and other video services equipment; service charges related to the provision of video services, including, but not limited to, activation, installation, and repair; administrative charges related to the provision of video services, including, but not limited to, service order and service termination charges; late fees, insufficient fund fees (NSF), FCC regulatory fees, and amounts billed to video service subscribers to recover the franchise fees and capital contribution fees authorized by this chapter; a pro rata portion of all revenue collected by the video service provider pursuant to compensation arrangements for advertising (less any commissions received from any third parties for advertising) and home-shopping sales derived from the operation of the video service within the City. Advertising commissions paid to third parties (excluding any refunds, rebates or discounts the video services provider may make to advertisers) shall not be deducted from advertising revenue included in gross revenue. The allocation of advertising and home-shopping revenue referred to above shall be based on the number of subscribers within the City, divided by the total number of subscribers in relation to the relevant regional or national compensation arrangement associated with each ad campaign. Service charges shall not be deducted from the gross revenue reported to the City when the ROW occupant chooses to issue subscriber credits for those services. Video service gross revenues shall not include:

**A.** Uncollectible fees, provided that all or part of uncollectible fees which is written off as bad debt but subsequently collected, less expenses of collection, shall be included in gross revenues in the period collected;

**B.** Revenues from contracts for in-home maintenance service unless they relate solely to maintenance on equipment used only for the provisioning of video services and not for the provisioning of any other service;

**C.** Amounts billed to video service subscribers to recover taxes, fees or surcharges imposed upon video service subscribers in connection with the provision of video services, other than the video services provider fee authorized by this chapter;

**D.** Revenue from the sale of capital assets or surplus equipment; or

**E.** Charges, other than those described in the opening paragraph of this definition, that are non-video-related but are aggregated or bundled with amounts billed to video service subscribers.

*(Ord. Nos. 19945, 20956, 21282, 21393; Ord. No. 22146, § 1, 10-15-2009; Ord. No. 25464, §§ 1—3, 11-6-2024)*

**Section 1203. Administration.**

**A. General.** Under the direction of the Mayor, the ROW Administrator of the Telecommunications/ISD Department, the Public Works Director and the Director of Finance shall be jointly responsible for the administration and enforcement of this chapter.

**B. ROW Administrator.** The ROW Administrator shall be the principal City official responsible for the administration of the registration of ROW occupants, issuance of occupancy permits, calculation of and invoicing for ROW occupancy fees, maintenance of facilities information, administration records and all other duties related to the maintenance of records on ROW occupants.

**C. Public Works Director.** The Public Works Director shall be the principal City official responsible for administration and enforcement of matters related to rights-of-way construction permits and the enforcement of engineering standards as outlined in this chapter.

**D. Director of Finance.** The Director of Finance (or designee of the Mayor) shall be the primary City official responsible for administration and enforcement of all insurance requirements and collection activities provided for in this chapter.

*(Ord. No. 19945)*

**Section 1204. Authority to occupy the rights-of-way.**

**A. General.** Any person subject to this chapter wishing to construct, install, operate or maintain any facilities in the rights-of-way shall first obtain proper authorization, as described in this section.

**B. Occupancy Permit.** Every ROW occupant with more than one hundred (100) linear feet of facilities, including any City department and any City trust or authority, regardless of the authority under which the person occupies the rights-of-way, must register with the Public Works Director, and apply for an occupancy permit, no later than January 3, 2001, pursuant to Section 1205. Thereafter, all new ROW occupants with more than one hundred (100) linear feet of facilities shall register and apply for an occupancy permit, upon completion of a new facility installation, or April 15, whichever is sooner.

**C. Rights-of-Way Construction Permits.** No person shall obstruct the traveling surface or construct more than one hundred (100) linear feet of new facilities or do maintenance work on more than five hundred (500) feet of facilities or cut the pavement or put facilities under the pavement or any new pole installation of any defined rights-of-way without first obtaining a rights-of-way construction permit pursuant to Section 1208. This section does not apply to any governmental unit or entity engaged in the official act of maintaining any element of its transportation system, including but not limited to the state of Oklahoma, the City of Tulsa, or the U.S. Government.

*(Ord. No. 19945)*

## Section 1205. Occupancy permits.

**A. Application for Occupancy Permit.** Each ROW occupant with more than one hundred (100) linear feet of facilities shall apply for an occupancy permit. The Public Works Director shall provide an application and may require, in the Public Works Director's sole discretion, any of the following information:

**1.** The name, address, telephone number and form of business of the applicant, and the names and addresses of all persons authorized to act on behalf of the applicant with respect to the application;

**2.** The name, address and telephone number of a responsible person whom the City may notify or contact at any time concerning the applicant's facilities;

**3.** Evidence of compliance with the provisions of 63 O.S. 1991, §§ 142.1, *et seq.*, "Oklahoma Underground Facilities Damage Prevention Act," as amended;

**4.** Identification of the ROW occupant's authority to occupy the rights-of-way, if already obtained, or evidence that the ROW occupant has applied for such authority; documentation of the location of existing facilities owned, operated, managed or leased by the ROW occupant, including as-built maps and all other information required by Section 1214;

**5.** Demonstration of the applicant's technical ability to construct and operate the proposed or existing facilities, including identification of key personnel;

**6.** A demonstration of the applicant's legal qualifications to construct and operate any proposed or existing facilities, including but not limited to a demonstration that the applicant has the necessary authority under Oklahoma law to construct a facility. The applicant shall not be issued an occupancy permit if it files materially misleading information in its application or intentionally withholds information that the applicant lawfully is required to provide;

**7.** A demonstration of the financial qualifications of the applicant, including but not limited to a certified statement prepared by a certified public accountant regarding the applicant's financial ability to complete any construction proposed, and to meet any time frame proposed. If an applicant is a joint venture or partnership, the same information shall be provided for each participant in the joint venture or partnership;

**8.** A description of the applicant's prior experience in facility ownership and construction, and an identification of each locality in which the applicant or any of its principals have, or have had, a license, franchise or other authorization or any interest therein, including the name, address and phone number of each local authority, and references from each authority;

**9.** To the extent an applicant is in any respect relying on the financial or technical resources of another person, including an affiliate, the proofs required under paragraphs 5 and 7 above, shall be provided for that person;

**10.** Copies of any agreements which the applicant has entered into or proposes to enter into with any other person relating to any facilities installed, to be owned, operated, managed or leased by the applicant;

Applicant may present a copy of a "Certificate of Convenience and Necessity" issued pursuant to OAC 165:55, in lieu of paragraphs 1 through 10 above;

**11.** A declaration that the applicant agrees to comply with this chapter, as it may be amended from time to time;

**12.** A statement of the number of linear feet of the arterial rights-of way occupied by facilities owned, operated, managed or leased by the ROW occupant as of the end of the City's most recent fiscal year, including the total linear feet of arterial rights-of-way occupied and the number of linear feet of rights-of-way occupied;

**13.** The technical standards that the applicant proposes to follow in constructing the facilities;

**14.** A detailed description of the physical facilities proposed to be installed within the City, including but not limited to an engineering site plan showing the proposed locations of the applicant's facilities, including any manholes or overhead poles, the size, type and proposed depth of any conduit or other enclosures, and the relationship of the system to all existing poles, utilities, sidewalks, pavement, telecommunication facilities and other improvements within the rights-of-way;

**15.** An affidavit or declaration of the applicant or an authorized officer certifying the truth and accuracy of the information in the application, acknowledging the enforceability of application commitments and certifying that the application meets all federal and state law requirements, in as much as the information exceeds that which is required by OAC 165:55;

**16.** For those ROW occupants who are eligible to make inspection fee and service charge payments as set forth in Subsection 1206.B, an election of whether to make inspection fee and service charge payments as set forth in Subsection 1206.B or occupancy fee payments as set forth in Subsection 1206.A; and

**17.** Any additional information the City may require, which is reasonably necessary for ROW management.

Applications for occupancy permits shall be submitted in writing to the Public Works Director. To be accepted, a fully completed, signed and original application shall be submitted as provided for in this section. If the application is incomplete, the application shall be returned within three (3) working days as unacceptable. To the extent permitted by law, an application for an occupancy permit shall be accompanied by the required fee, the amount of which shall be fixed from time to time by ordinance.

**B. Review of Application.** If the information provided in an application for occupancy permit is complete and meets all the requirements of this chapter, the Public Works Director shall evaluate the application within fifteen (15) working days of submission. In evaluating an application, the Public Works Director shall consider:

**1.** The applicant's technical, financial and legal qualifications to construct or operate the proposed facilities;

**2.** The nature of the proposed facilities and equipment; and

**3.** The effects of a grant of an occupancy permit on the present and future public use of the rights-of-way, including any foreclosure of future uses of the rights-of-way.

**C. Review by Council.** After the Public Works Director has evaluated the application pursuant to Subsection 1205.B, the Director shall present the application and the Director's recommendation regarding approval to the City Council. The City Council, after reviewing any information the Council deems appropriate, shall either approve or deny the application.

**D. Term and Renewal.** Pursuant to Article VIII, Section 13, of the Charter of the City of Tulsa, the Council may revoke any occupancy permit at will. In addition to any other provision in the Charter, the City of Tulsa ordinances, or this chapter revoking or rendering invalid an occupancy permit, an occupancy permit shall be rendered invalid and revoked by the Public Works Director if:

**1.** ROW occupant fails to timely pay any fees due to the City, including but not limited to fees required to be paid under this chapter; or

**2.** ROW occupant fails to provide the City with the name, address and telephone number of a responsible person whom the City may notify or contact at any time concerning the occupant's facilities.

*(Ord. No. 19945)*

**Section 1206. Occupancy fees or inspection fee and service charge.**

**A. Occupancy Fees.** Except as provided in this section, every occupancy permit holder shall pay an occupancy fee to reimburse the City for the cost of acquiring, maintaining and managing the arterial rights-of-way. The occupancy fee shall be computed in accordance with this section.

**1.** No later than February 15th of each year, each occupancy permit holder shall submit to the ROW administrator a certified statement of the number of linear feet of arterial rights-of-way occupied by facilities by the ROW occupant as of January 1st of that same year.

**2.** No later than February 15th of each year, those ROW occupants who are eligible to make inspection fee and service charge payments as set forth in Subsection 1206.B. May select by filing a written statement of selection with the City Clerk whether to make inspection fee and service charge payments as set forth in Subsection 1206.B. or occupancy fee payments as set forth below. A ROW occupant who does not file a written statement during that time period, and who has not previously filed a written statement with the City Clerk during that time period in a previous year electing a computation method, shall be deemed to have chosen to make occupancy fee payments. A ROW occupant who, in a previous year, has chosen a particular method and has not filed a written statement of selection with the City Clerk in the current year, shall be deemed to have chosen to continue to utilize that computation method utilized in the previous year.

**3.** Each occupancy permit holder shall be notified of the amount of the fee and the basis on which it was calculated no later than ten (10) working days from the date the statement of linear feet is received by the ROW administrator. Unless otherwise authorized by the Director of Finance, one-twelfth (1/12) of the occupancy fee shall be due and payable monthly, on or before the 25th day of each month, commencing on the first day of the calendar month commencing after the date this chapter goes into effect. The payment shall be made to the Director of Finance when due and shall be paid into and appropriated and expended from the General Revenue Fund of the City of Tulsa. Upon failure or refusal to pay such fee, the City may, in addition to any other remedies provided herein, maintain an action against

such person, firm or corporation for the amount of such fee and all expenses of collecting same, including reasonable attorney's fees. That occupancy fee is set out as follows:

**a.** The Occupancy Fee shall be computed by multiplying the Occupancy Permit Holder's pro rata share of the burden on the Arterial Rights-of-Way by the applicable recovery rate. This pro rata share shall be equivalent to the linear feet occupied in the Arterial Rights-of-Way, and shall be calculated as follows: For each linear foot of space less than one (1) foot wide, the recovery rate shall be Three and 69/100 Dollars ($3.69). For each linear foot of space more than one (1) foot but less than two (2) feet wide, the recovery rate shall be Seven and 38/100 Dollars ($7.38). For each linear foot of space two (2) feet wide or more, the recovery rate shall be Eleven and 07/100 Dollars ($11.07). This Occupancy Fee does not include manholes or junction boxes.

**b.** The recovery rate per linear foot amount of the occupancy fee will be reviewed by the Mayor at least annually using a floating five-year average of the City's cost to provide rights-of-way, and adjusted based on the CPI-U index. The purpose of this review is to examine whether the occupancy fee is under or over recovering costs associated with ROW use. The Mayor shall file the review with the City Clerk. In addition to any material the Mayor deems relevant in establishing the recovery rate per linear foot amount of the occupancy fee, the Mayor shall file a calculation of the recovery rate per linear foot amount of the occupancy fee in the form set forth in "Exhibit A."

**B. Inspection Fee and Service Charge.** Those ROW occupants which provide Thermal service and/or communications service may, in lieu of the occupancy fee set forth in Subsection 1206.A, pay an inspection fee and service charge as follows:

**1.** An amount equal to two percent (2%) of the thermal service gross revenues from within the corporate limits of the City of Tulsa, Oklahoma, for each current year, if any; and

**2.** An amount equal to two percent (2%) of the communications service gross revenues from within the corporate limits of the City of Tulsa, Oklahoma, for each current year, if any.

This inspection fee and service charge is to compensate the City for the expenses incurred and services rendered incident to the exercise of its power, supervision, police regulation and police control of the construction and maintenance of lines and equipment in the City of Tulsa. Unless otherwise authorized by the Director of Finance, this inspection fee and charge shall be due and payable monthly, on or before the 25th day of each month, on the gross revenues of the preceding month, commencing on the first day of the calendar month commencing after the date this chapter goes into effect, and shall include a complete and accurate verified statement of all gross receipts from sales, for thermal service and/or communications service, as applicable, within the City of Tulsa during the period for which the monthly payment is made. The statement and payment shall be made to the Director of Finance when due and shall be paid into and appropriated and expended from the General Revenue Fund of the City of Tulsa. Upon failure or refusal to pay such fee, the City may, in addition to any other remedies

provided herein, maintain an action against such person, firm or corporation for the amount of such fee and all expenses of collecting same, including reasonable attorney's fees.

**C. Inspection Fee and Service Charge Between January 1, 2001, and March 31, 2001.** [The text of Subsection 1206.C was repealed because it was no longer applicable after March 31, 2001.]

**D. Records Inspection.** The City shall have the right to audit the ROW occupant's records required to be kept by this chapter. The City shall also have the right to audit and to recompute any amounts determined to be payable under this section. If it is determined that the occupancy permit holder has paid less than ninety-five percent (95%) of the amount due to the City, then the City's expenses related to such audit shall be borne by the occupancy permit holder. Any additional amounts due to the City as a result of the audit shall be paid within thirty (30) days following written notice, which shall include a copy of the audit report, to the occupancy permit holder by the City of the underpayment. If recomputation results in additional revenue to be paid to the City, such amount shall be subject to the interest charge described in Subsection E, below. If the audit determines that there has been an overpayment by the occupancy permit holder, the occupancy permit holder shall credit any overpayment against its next quarterly payment.

**E. Late Fees and Interest on Late Payments.**

**1.** If any occupancy fee payment is not made on or before the required date, the occupancy permit holder shall pay interest computed from such due date at an annual rate equal to one and one-half percent (1½%) interest per month on the total amount of fees due from the last day of the month such was due, plus a penalty of ten percent (10%) of the total amount of the fee due.

**2.** If any monthly inspection fee and service charge for thermal service or communications service within the City of Tulsa is not made on or before the required date, the ROW occupant will be charged a penalty of ten percent (10%) of the total amount of the fee due. In addition, the ROW occupant shall pay interest computed from such due date at an annual rate equal to one and one-half percent (1½%) interest per month on the total amount of fees due from the last day of the month such was due.

**a.** If a complete and accurate verified statement of all gross receipts from sales for thermal service or communications service within the City of Tulsa during the period for which the monthly payment was due is provided within thirty (30) days of the original due date, the interest and penalty will be computed based on that actual amount.

**b.** If a complete and accurate verified statement of all gross receipts from sales for thermal service or communications service within the City of Tulsa during the period for which the monthly payment was due is NOT provided within thirty (30) days of the original due date, the amount of the monthly inspection fee and charge will be estimated and billed.

**c.** Adjustments to estimates after receipt of complete and accurate verified statements of all gross receipts will be made at the discretion of the Director of Finance.

**F. No Deduction or Credit Against Taxes.** The payments required by this section shall be in addition to any and all taxes of a general nature or other fees or charges which an occupancy permit holder shall be required to pay to the City or to any local, state, or federal agency or authority, as required herein or by law, all of which shall be separate and distinct obligations of the occupancy permit holder. The occupancy permit holder shall neither apply nor seek to apply all or any part of the amount of these payments as a deduction or other credit from or against any City taxes or other fees or charges, except as expressly permitted by law. The occupancy permit holder shall not apply or seek to apply all or any part of the amount of any taxes or other fees or charges as a deduction or other credit from or against any of its fee obligations herein, except as expressly permitted by law.

*(Ord. Nos. 19945, 20170, 20233, 20381, 20382, 20392, 20597, 20855, 21270; Ord. No. 22146, § 2, 10-15-2009; Ord. No. 22154, § 1, 11-5-2009; Ord. No. 22741, § 1, 8-30-2012; Ord. No. 23116, § 1, 5-8-2014; Ord. No. 23286, § 1, 5-7-2015; Ord. No. 23487, § 1, 5-19-2016; Ord. No. 23681, § 1, 4-26-2017; Ord. No. 23931, § 1, 6-6-2018; Ord. No. 24266, § 1, 11-20-2019; Ord. No. 24429, § 1, 8-19-2020; Ord. No. 24734, § 1, 12-1-2021; Ord. No. 24980, § 1, 1-25-2023; Ord. No. 25599, § 1, 6-11-2025)*

## Section 1207. Emergency telephone service requirements.

All Local Exchange Carriers and resellers of the offerings of the LEC, who provide voice services that can be completed in the Public Switched Network, shall comply with the provisions of the Oklahoma Nine-One-One Emergency Number Act, 63 O.S.1991, § 2811 (State 911 Act), and Title 29, Chapter 9, Section 902, Tulsa Revised Ordinances, (Tulsa Nine-One-One Emergency Number Ordinance). A separate 911 agreement with the City of Tulsa is required to provide for the delivery of E-911 calls to the Public Safety Answering Point, collection and remittance of the E-911 fee, delivery of location and number identification and master street address guide information.

*(Ord. No. 19945)*

## Section 1208. Rights-of-way construction permits.

**A. Permit Requirement.** To apply for a rights-of-way construction permit, an applicant shall furnish the following:

**1.** Name of the owner or operator of the facility; and

**2.** A sketch or drawing of the project; and

**3.** Dates of the construction activity, the proposed start and stop times and any proposal to temporarily reopen any roadway for any "peak hour" period; and

**4.** The names of any known subcontractors working on the proposed project under the applicant's responsibility and authority; and

**5.** Proof of payment of all money due the City for occupancy fees, rights-of-way construction permit fees, cable service fee, thermal service ROW usage fee and any invoiced cost, loss, damage or expense suffered by the City as a result of the applicant's prior construction activity, including but not limited to any emergency action taken by the City; and

**6.** Evidence that the applicant has obtained the insurance coverage required by Section 1211 of this title; and

**7.** A traffic control plan in compliance with Subsection 1210.F of this title; and

**8.** A list of the applicant's emergency providers, including name of company, local contact person, mailing and e-mail address, 24-hour emergency phone number and pager or fax number. This information shall be kept current by written notice to the Public Works Director; and

**9.** For Major Projects, as defined by Section 1202 of this title, the following may be required:

**a.** *Detailed engineering plans.* The plans shall show the location and area of the proposed project, the locations of all existing and proposed equipment and facilities, the height and/or depth of the proposed equipment and existing facilities and the spatial relationship with any adjacent infrastructure, rights-of-way line, easement, utility and/or other physical features. The plans shall be prepared under the direction of and signed by a registered professional engineer, and shall meet the size and scale as set forth in the Department of Public Works' Standard Design Criteria Manual; and

**b.** A copy of the engineering plans in an electronic format acceptable to the Public Works Director; and

**c.** The applicant shall meet with the Public Works Director for a pre-work conference prior to issuance of rights-of-way permits.

**B. Application and Permit Fees.** Rights-of-way occupants shall be required to pay both application and/or permit fees, as applicable, unless otherwise exempted. Upon submission of a permit application, an application fee as specified in Title 49 TRO, Chapter 9, Section 906.A shall be paid to the Public Works Director. This fee is nonrefundable and must be collected before review of the application begins. Upon approval of the rights-of-way construction permit, the applicant shall remit to the Public Works Director a permit fee. This fee shall be calculated based on the following components:

**1. Traffic Disruption Fee.** An arterial street traffic disruption fee shall be charged whenever either the time estimated for project completion indicates a planned arterial street traffic disruption more than five (5) consecutive calendar days in duration or the actual project time has exceeded five (5) consecutive calendar days, as determined by the date from when an arterial street roadway excavation is commenced until the date when the Public Works Director is notified that the ROW excavation has been closed. In the event a disruption fee is payable, its amount shall be determined by multiplying the estimated or actual number of days in excess of five (5) by the traffic count number of vehicles, calculated at eighteen cents ($0.18) per vehicle, and the length of the obstruction measured in one thousand (1,000) foot increments. (Fee = days x length x # of vehicles x .18). The number of vehicles shall be equal to the number of same lane direction vehicles as measured closest to the excavation location and on the same arterial roadway by the current traffic count map published by the City Traffic Engineer.

**2. Parking Meter Fee.** A parking meter fee, if applicable, shall be charged and shall be computed as set forth in Title 37, Chapter 5, Section 503.B.

3. **Degradation Cost.** The permit fee for any project, whether a major project or not, that involves excavation shall also include:

   A degradation cost that is calculated as follows:

   Area of construction + 1' around perimeter of site,

   multiplied by City's actual cost per square foot to restore pavement,

   multiplied by Depreciation Value (20%),

   multiplied by Degradation Percentage as shown in the Pavement Condition Index (PCI), which is kept and updated by the Engineering Services Department of the City of Tulsa.

   ROW occupants which do not have an occupancy permit shall have the following components added to the application and permit fees:

4. **Permit and Licensing System Maintenance Fee.** A surcharge as specified in Title 49 TRO Section 103 shall be charged for each permit to maintain the permit and licensing system; and

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5. **Record Retention Fee.** A surcharge per page as specified in Title 49 TRO, Section 111 shall be charged for each permit for retention of permits and associated data by microfilming, computer imaging or other method of storage of records; and
6. **Inspection Fee.** A charge as specified in Title 49 TRO, Section 108 shall be charged as an inspection fee; and
7. **Project Plans Review Fee.** A permit fee for a major project shall also consist of a plans review fee of Fifty Dollars ($50.00) per sheet. The minimum plan review fee is One Hundred Fifty Dollars ($150.00).

**C. Permit Terms and Conditions.** Each rights-of-way construction permit shall describe the general location of the permitted project, the size of the obstructed area, the duration of the permit, which shall be based on the amount of time estimated for completion of the permitted activity and any special conditions or other information deemed relevant by the Public Works Director. A rights-of-way construction permit shall be issued or denied within fifteen (15) days of submission of a completed application and payment of all required fees. In the event of denial, the Public Works Director shall advise the applicant of all steps necessary to secure approval of the permit.

**D. Emergency Permits.**

1. An emergency rights-of-way construction permit is available for projects. Any emergency excavation required to maintain the safety and well being of the general public should be commenced without delay. Notification must be provided to the Public Works Director within two (2) hours of the commencement of the project. This notification shall consist of the following:
   - **a.** Anticipated date, duration, start and stop time, location (site address if possible), including nearest cross street; and
   - **b.** Size of the obstruction and work area less any normal traffic control in advance; and
   - **c.** Applicant's company name; and
   - **d.** Facility owner's name; and
   - **e.** Local contact information; and
   - **f.** General description of the type of construction activity and/or facilities installed.
2. Holders of emergency ROW construction permits shall notify the Public Works Director upon the completion of the project. All persons, including franchisees, engaged in an activity within the arterial rights-of-way not specifically exempt in this section, must notify the Public Works Director that an obstruction will occur.
3. In order to qualify for an emergency ROW construction permit, a permittee must possess a current occupancy permit.

**E. Permit Conditions.** A permittee shall adhere to the following requirements:

1. All current engineering requirements and construction standards as described in Section 1210 of this chapter; and
2. All current rights-of-way construction permits shall be maintained on each work site. All rights-of-way construction permits shall be presented upon request to any representative of the Public Works Director; and

3. Excavation projects are subject to the requirements of Section 1210 of this chapter; and

4. All restoration work required of any roadway pavement by any permit holder shall be performed by the City's Public Works paving cut contractor unless exempted by the Public Works Director. Upon completion of the work and the subsequent removal of the obstruction, the permittee shall be obligated to notify the Public Works Director that the obstruction has been removed.

**F. Failure to Apply.** Any person failing to comply with this section shall be precluded from obtaining any rights-of-way construction permit or performing any further construction within the City's arterial rights-of-way for up to twelve (12) months from the date of notification, in addition to any monetary penalty imposed pursuant to Section 1226 of this chapter.

**G. Renewal.** In the event that a permitted project does not conclude prior to expiration of the rights-of-way construction permit under which it is being performed, the permittee shall apply to the Director for an extension of the permit. The following information shall be submitted:

1. Statement from the permittee indicating the reason for the delay in completion of the project; and

2. Date that the permittee anticipated the project to be completed; and

3. Any applicable permit fees established at the time of issuance of the original permit.

*(Ord. No. 19945; Ord. No. 25069, § 1, 6-14-2023; Ord. No. 25307, § 1, 5-8-2024)*

## Section 1209. Appeals.

An appeal may be taken to the Mayor, or his/her designee, by any person aggrieved, where it is alleged there is an error in any order, requirement, decision or determination made by any person in the enforcement of this chapter. The appeal must be presented upon written request to the Mayor, or his/her designee. The Mayor, or his/her designee, shall render a decision within ten (10) working days. A response from the Mayor, or his/her designee, shall be made in writing, and shall be supported by written findings establishing the reasonableness of the decision. Appeal of any decisions made by the Mayor, or his/her designee, shall be made to the City Council.

*(Ord. No. 19945)*

## Section 1210. Engineering standards.

**A. Allocation of Space in the Rights-of-Way.** The Public Works Director shall have the power to establish reasonable limitations on the placement of new or additional facilities within specific congested segments of the rights-of-way if there is insufficient space to accommodate all of the requests of ROW occupants. In making such decisions, the Public Works Director shall strive to the extent possible to accommodate all existing and potential users of the rights-of-way, but shall be guided primarily by considerations of the public interest, the public's needs for the particular utility service, the width and physical condition of the rights-of-way, the protection of existing facilities in the rights-of-way and future City plans for public improvements and development projects which have been determined to be in the public's interest.

**B. Underground Policy.** Facilities may be installed above ground in areas where existing utility facilities are above ground and shall, unless otherwise approved by the Public Works Director, be installed underground in areas where existing facilities are installed underground, subject to all applicable safety codes. The City encourages the sharing of underground and overhead facilities. Leasing of excess space in ducts, conduits and on poles is a matter between interested parties; however, lessees of such physical facilities must still comply with the terms of this chapter, unless otherwise expressly exempted by the Director of Public Works. Underground facilities shall be placed in such a manner so they can be located by the owner of the facilities or his representative.

**C. Location Criteria.**

1. **Corridors.** The Director of Public Works shall assign specific corridors within the rights-of-way, or any particular segment thereof as may be necessary, for each type of facility that is now or as the Director of Public Works concludes may in the future be located within the rights-of-way. The Director of Public Works shall establish an ideal cross section identifying the lateral and vertical position of each class of potential user. ROW occupants shall have the right to occupy only one corridor or section of each rights-of-way within the vertical zone established for the applicable class of user, as established by the Public Works Department. Additional corridors in the same portion of the rights-of-way may be granted only upon consideration of future utility uses and a demonstration by the requesting party that its current corridor does not afford sufficient space to install its facilities. All permits issued by the ROW Administrator involving the installation or replacement of equipment shall be reviewed as to the proper corridor for the facility.
2. **Variance.** Any ROW occupant whose facility is located in the rights-of-way in a position at variance with the corridors established by the Director of Public Works shall move said facility at its own expense to its assigned position within the arterial rights-of-way no later than at the time of the next reconstruction of the facility or roadway reconstruction which requires utility relocation by the Department of Public Works of the area where the facility is located. This requirement may be waived by the Director of Public Works for good cause shown, upon a written request submitted through the ROW Administrator giving due consideration of such factors as the remaining economic life of the facilities, public safety, customer service needs or hardship to the ROW occupant.
3. **Interference.** A ROW occupant shall not place any fixtures or equipment where the same will interfere with any existing facility. A ROW occupant shall locate its lines and equipment in such a manner as not to interfere unnecessarily with the usual traffic patterns (vehicular or pedestrian) or with the rights or reasonable convenience of owners of property that abuts any rights-of-way.
4. **Utility Pole Location Standards.** New utility poles requested to be placed within rights-of-way, whether in areas where existing utility facilities are located above ground or underground, including, but not limited to, utility poles installed for the purpose of supporting small wireless facilities, shall not be installed if there is an existing utility pole in proximity to the requested utility pole location, where collocation of facilities is possible. New or replacement utility pole installations shall, at a minimum, be consistent visually and as constructed, with existing

utility poles within the immediate vicinity (within three hundred (300) feet) of the planned installation, including pole material, color and location as approved by the Director of the Streets and Stormwater Department or other person designated by the Mayor to enforce the provisions of this chapter. Pole material shall be equivalent to, or of better quality or durability than, existing utility poles (when installed as new poles) in the immediate vicinity of the planned installation. Such poles shall blend into the surrounding environment to the greatest extent practicable. Permitted utility pole installations within rights-of-way shall be located on side lot lines (extended), unless otherwise approved by the Director of the Streets and Stormwater Department or other person designated by the Mayor to enforce the provisions of this chapter, and shall not be located within the perpendicular extension of the primary street-facing wall plane of any single-family residence or duplex. For the purposes of this Section, the definition of "side lot line" shall be as set forth in the Zoning Code of the City of Tulsa, as amended from time to time.

**D. Construction Standards.**

1. **Depth.** Unless agreed to in writing in advance by the Director of Public Works, the depth of installed facilities shall be, at a minimum, as follows:
   - **a.** Twenty-four (24) inches in soil,
   - **b.** Twenty-four (24) inches below a projected slope from the flowline of a ditch at a three (3) horizontal and one (1) vertical slope,
   - **c.** Forty-eight (48) inches under a roadway measured from the surface of said roadway to the top of the installation,
   - **d.** Forty-eight (48) inches under a stormwater or creek channel design flowline, and
   - **e.** Cross under all water and natural gas lines at a depth of twenty-four (24) inches.
2. **Backfilling/Testing.** Excavations shall be promptly backfilled according to standards on file with the Director of Public Works and the earth shall be restored to original grade to assure no hazard to vehicular, animal or pedestrian traffic. The permittee shall perform all necessary compaction tests in accordance with the latest design and construction specifications approved and disseminated by the Director of Public Works setting forth requirements for backfill and paving cut repairs (e.g., standard concrete pavement cut and repair; standard asphalt pavement cut and repair, etc.). All test reports shall be submitted to the Public Works Director.
3. **Pavement Cutting.** All ROW occupants shall comply with the terms and conditions of Title 35, Chapter 3, Tulsa Revised Ordinances prior to cutting any pavement.
4. **Replacement.** The replacement of any sidewalk, any driving surface and the base of any roadway shall comply with Public Works Engineering Standards, pursuant to engineering plans on file with the Public Works Department and may require additional removal to the nearest joint in all directions. Unless a privately financed public improvement application is filed complying with all the requirements of Title 35, Chapter 4, Tulsa Revised Ordinances, this removal and all

pavement restoration shall be the responsibility of the Public Works Department or its assigned contractor at the expense of the ROW occupant as set forth in Title 35, Chapter 3, Tulsa Revised Ordinances.

5. **Trenching.** A permittee shall not proceed with additional trench work exceeding a maximum of five hundred (500) feet of open trench without the approval of a City inspector.

6. **Crossings.** All underground crossings of paved roadways and stormwater and creek channels shall be made by a bore method approved by the Director of Public Works. Any alternate method shall be approved by Field Engineering, then submitted to the ROW administrator and Traffic Operations. Voids and all holes shall be properly grouted. Crossings shall be at approximately right angles to the roadway and in no case shall any facility be placed in any culvert or drainage pipe or within ten (10) feet of a culvert or storm sewer.

7. **Erosion.** Erosion prevention measures shall be incorporated into all work within the public way as described in the Stormwater Management Manual. All gutters, ditches and other drainage features shall be maintained free and unobstructed of sediment, dirt and debris. The handling, grading, excavating or moving of excess construction materials or the movement or cleaning of construction vehicles or equipment shall be conducted in such a manner that materials and washout will not be deposited into catch basins, gutters, ditches or areas where runoff may carry materials into any public or private stormwater system.

8. **Utility Pole, Equipment, and Antenna Concealment Standards.** For new utility poles permitted to be installed within non-arterial rights-of-way and in areas where existing facilities are located underground, including, but not limited to, utility poles installed for the purpose of supporting small wireless facilities, and for collocation of facilities on existing utility poles, all equipment and antennas, except for the electric meter, shall be mounted at least twelve (12) feet above the ground level, as measured to the lowest point of installation. To the extent technically feasible, antennas shall be designed and installed to appear hidden within the utility pole or appear to be an original part of the utility pole. Unless otherwise approved by the Director of the Streets and Stormwater Department or other person designated by the Mayor to enforce the provisions of this chapter, antennas not hidden within a utility pole shall be located entirely within a shroud enclosure not more than six (6) cubic feet in volume, which is capable of accepting paint to match the approved color of the utility pole. Top-mounted antennas, equipment and their enclosures shall be mounted directly above the utility pole and shall not extend beyond the diameter of the utility pole at the level of the antenna attachment, unless otherwise approved by the Director of the Streets and Stormwater Department or other person designated by the Mayor to enforce the provisions of this chapter. The use of stealth technology in the location and construction of utility poles is required whenever and wherever possible. "Stealth technology" means the least visually and physically intrusive design, equipment, and installation methods that are not technologically or commercially impractical, and which blend into the surrounding environment to the greatest extent possible. All antennas and shrouds, mounting brackets and hardware, shall be of a color identical to the utility pole. The Director of the Streets and Stormwater Depart-

ment or other person designated by the Mayor to enforce the provisions of this chapter, shall adopt design guidelines for new utility poles consistent with this chapter, subject to City Council approval.

9. **Utility Pole Sizing Standards.** Unless otherwise approved by the Director of the Streets and Stormwater Department or other person designated by the Mayor to enforce the provisions of this chapter, new or replacement utility poles, including utility poles to be installed for the purpose of providing small wireless communications facilities, which are permitted to be installed within non-arterial rights-of-way shall not exceed eighteen (18) inches in diameter at the base thereof, the "base" being the diameter of the utility pole measured at twelve (12) inches above ground level, not including any structural components necessary to support the utility pole, such as a pier, footing, or other approved structural element. Applicants requesting approval to install a utility pole with a diameter larger than permitted herein shall provide documentation evidencing that a larger pole diameter is necessary to support the pole, all attachments, equipment, and antennae, as applicable.

**E. Dimension and Location Criteria.** Maximum dimensions and location of associated, aboveground equipment, including but not limited to junction boxes, duct banks, electric generators, repeaters, antennas, satellite dishes or equipment cabinets, shall meet the following criteria:

1. The "elevation view" shall not exceed thirty (30) square feet without written approval of the Public Works Director.

2. Associated equipment shall not be installed in such a manner so as to obstruct the view of drivers upon or entering a public street. Equipment, excluding poles, exceeding a height of twenty-four (24) inches shall not be placed within any intersection "sight-distance triangle" as defined in Title 24, Section 103, Tulsa Revised Ordinances.

3. No equipment, including poles, cables and guy wires, shall be placed so as to obstruct, block, obscure or otherwise interfere with any traffic-control device, fire hydrant, wheelchair ramp or other safety device. Locations with existing or potential traffic signals shall have the overhead vehicle signal face display zones kept clear from wires and cables below a height of twenty-two (22) feet above the pavement grade. Power lines which require a ten (10) foot separation from other facilities shall be suspended no lower that thirty-two (32) feet above the pavement grade around intersections with existing or potential traffic signals. This minimum clearance shall not be violated by sagging due to cable elongation.

4. No equipment, including poles and guy wires, shall be placed so as to obstruct the flow of pedestrian traffic, and in no case result in less than four (4) feet of clear sidewalk, without the approval of the Director of Public Works.

**F. Traffic Control and Safety.**

1. Any permittee occupying any portion of rights-of-way shall erect a barrier around the perimeter of any excavation and provide any and all traffic-control devices, signs and lights appropriate to the level of complexity of the activity in order to protect, warn and guide the public (vehicular and pedestrian) through the work

zone. The manner and use of these devices shall be described within a traffic-control plan in accordance with the Uniform Manual of Traffic Control Devices and approved by the Traffic Engineer as provided for in this chapter.

**2.** Permittees shall implement each traffic-control plan. All permittees shall be in compliance at all times with all applicable city, state and federal requirements and maintain all devices in good repair. Permittees with open excavations awaiting final restoration shall maintain all devices until the Public Works Department notifies the permittee in writing that the City or the City's designated contractor is assuming responsibility for traffic control for the paving cut restoration or the permittee has completed his City-approved PFPI and it has been accepted by the City.

**3.** Each ROW occupant shall designate a safety officer. The safety officer shall be responsible for safety-related issues affecting both the public and the ROW occupant's field employees and contractors for all job sites within the rights-of-way.

**G. Miscellaneous Standards.**

**1. Nuisance.** Two (2) years after the passage of this chapter, any equipment found in the arterial rights-of-way that has not been registered shall be deemed to be a nuisance. If the owner can be ascertained by the appearance of the equipment, then upon thirty (30) days' notice to the owner, or, where the owner cannot be ascertained by markings on the equipment, upon thirty (30) days' public notice published in a newspaper of general circulation, the City may exercise any remedies or rights it has at law or in equity, including but not limited to abating the nuisance by taking possession of the facilities and restoring the rights-of-way.

**2. Notice to the Public of an Approved Utility Pole Installation Location.** An applicant or ROW occupant approved for the installation of a utility pole within a non-arterial right-of-way, including a utility pole to be installed for the purpose of providing small wireless communications facilities, shall post a sign with minimum dimensions of twenty-four (24) inches wide (horizontal orientation) by thirty-six (36) inches in height (vertical orientation), providing notice to the public at the location of the approved installation. The required notice to the public shall be placed no fewer than twenty (20) continuous days prior to the anticipated date of the commencement of installation of the utility pole, shall be placed parallel to the street abutting the approved utility pole location, shall be plainly legible to passers-by and shall provide, at a minimum, the following information:

**a.** The type(s) of facilities and utility or other services to be provided by the utility pole installation.

**b.** The height of the utility pole as measured from the ground level at the location of the installation to the top of the pole and any attachments, and the diameter of the base of the utility pole measured at twelve (12) inches above ground level.

**c.** The non-abbreviated name of the person, entity or entities installing the utility pole and a telephone number for each such entity.

**d.** The non-abbreviated name of each person or entity which will initially utilize the utility pole to install facilities and/or provide services.

**e.** The anticipated date of the commencement of installation of the utility pole.

**f.** A website address and/or e-mail address, and telephone number for each person or entity which will be utilizing the utility pole to install facilities and/or provide services so that the public may obtain additional information about the planned installation.

**g.** Each sign shall contain the words "Public Notice" at the top of the sign with lettering in a larger size than the rest of the text of the sign.

**3. Identification.** The ROW administrator, at his discretion, may require any new facility (aerial or underground) installed, replaced or repaired by or for a ROW occupant, after the effective date of this chapter be permanently identified with the name or logo of the ROW occupant on but not limited to manhole covers, tags, poles, posts and signs. The maximum spacing shall be no less than five hundred (500) feet for paved roadways and walkways. All ROW occupants shall make all reasonable efforts to ensure that all existing facilities shall be marked during the normal course of business.

**4. Construction Zone Identification.** Any permittee excavating or obstructing any portion of the ROW shall erect a temporary sign displaying either:

**a.** The names of the ROW occupant, any contractors and/or subcontractors involved in the project and the City permit number authorizing said activity; or

**b.** The names of the ROW occupant and a local telephone number or tollfree number manned during regular business hours by a person who is knowledgeable about the construction project.

The sign shall be visible from any adjacent traffic lane and shall be maintained throughout the duration of the project.

**5. Vehicle Identification.** All vehicles used, parked or stored by or on behalf of a ROW occupant or permittee within a permitted construction zone shall be clearly marked, providing the name of the facility's owner, the permittee, the contractor or subcontractor. Any unmarked vehicles shall be subject to all moving and parking ordinances. Private vehicles shall not be permitted to be parked or stored within any permitted work zone at any time.

**6. Permit.** A current rights-of-way construction permit shall be maintained on each work site. The rights-of-way construction permit shall be presented upon request to any City of Tulsa representative.

**7. Tree Trimming.** A ROW occupant shall have the authority to trim trees upon or overhanging streets, alleys, sidewalks and arterial rights-of-way so as to prevent the branches of such trees from coming into contact with the wires and cables of the ROW occupant in compliance with Title 35, Chapter 9, Tulsa Revised Ordinances, Trees; and Title 24, Nuisances (regulating trees).

**8. Moving Permit.** A ROW occupant shall, at the request of any person holding a City or state moving permit, temporarily raise or lower its aerial wires to permit the moving of an over-height vehicle. The expense of such temporary removal or raising and lowering of wires shall be paid by the person requesting same and the ROW occupant shall have the authority to require such payment in advance. A ROW occupant shall be given not less than forty-eight (48) hours' advance notice to arrange for such temporary wire changes.

**9. Due Care.** A ROW occupant shall at all times employ due care during the installation and maintenance process and use commonly accepted standards, methods and devices including but not limited to safety standards of OSHA, NEC, FCC and the City of Tulsa for preventing failures and accidents which are likely to cause damages, injuries or nuisances to the public. All structures and all lines, equipment and connections in, over, under and upon the streets of the City, wherever situated or located, shall at all times be kept and maintained in a safe, suitable and substantial condition, and in good order and repair.

*(Ord. No. 19945; Ord. No. 24950, §§ 1—3, 11-2-2022)*

**Section 1211. Insurance.**

**A. Insurance Required.** Each ROW occupant and permittee shall carry and furnish proof of insurance of such kinds and with such limits of liability as set forth below:

**1. Owner's and Contractor's Protective Insurance.**

**a.** An owner's and contractor's protective policy shall be carried, with the City as the named insured and issued by the same insurance company which provides the ROW occupant's or permittee's liability coverage in amounts not less than:

| | |
|---|---|
| Each occurrence (combined single limit for bodily injury and property damage) | $1,000,000.00 |
| Annual aggregate | $1,000,000.00 |

**b. Statutory Liability Limits.** It shall be permissible to endorse limits of liability to conform to the limits of the City's statutory liability as provided in 51 O.S.2001, § 154, as amended, but in no event be less than: (a) Twenty-five Thousand Dollars ($25,000.00) for any claim or to any claimant who has more than one claim for loss of property arising out of a single act, accident or occurrence; b) One Hundred Twenty-Five Thousand Dollars ($125,000.00) to any claimant for a claim for any other loss arising out of a single act, accident or occurrence; and c) One Million Dollars ($1,000,000.00) for any number of claims arising out of a single occurrence or accident.

**c. Punitive or Exemplary Damages.** It shall be permissible to exclude coverage for punitive or exemplary damages as pertains to the liability of the City.

**d. Same Insurance Company Requirement.** An exception to the "same insurance company requirement" above may be made only if both the owner's and contractor's protective policy and the ROW occupant's or permittee's commercial general liability policy are endorsed with "Waiver of Transfer of Rights of Recovery Against Others to Us," or equivalent, endorsements. Waiver under the ROW occupant's or Permittee's policy shall be in favor of the City and waiver under the owner's and contractor's protective policy shall be in favor of the ROW occupant or permittee.

**e. Coverage for Multiple Projects.** It shall be permissible for a ROW occupant or permittee with more than one (1) permit or project to provide a single owner's and contractor's protective policy to the City of Tulsa that contains wording confirming it is applicable to all projects performed by the ROW occupant or permittee in the City's rights-of-way. However, if the amount of the

annual aggregate of the owner's and contractor's protective policy is reduced for any reason below One Million Dollars ($1,000,000.00), the City may require an additional owner's and contractor's protective policy or an increase in coverage to any existing policy to supplement coverage to the City in reasonable response to the City's exposure created or influenced by the activities of the ROW occupant or permittee.

**f. Coverage in Lieu of Owner's and Contractor's Protective Policy.** In lieu of the requirements of the owner's and contractor's protective policy above, the ROW occupant or permittee shall carry total liability limits of Three Million Dollars ($3,000,000.00) per occurrence and Three Million Dollars ($3,000,000.00) annual aggregate through any combination of primary liability policies and excess liability or umbrella liability policies. All liability policies, except workers' compensation, shall provide that the City's elected and appointed officials, officers, boards, commissions, commissioners, agents and employees shall be additional insureds. Insurance limits required herein shall satisfy the limits of insurance required under subsection A.2, below.

**2. Commercial General Liability Insurance:**

| | **Limits** |
|---|---|
| Each occurrence (combined bodily injury and property damage) | $1,000,000.00 |
| Fire damage (any one (1) fire) | No requirement |
| Medical expense (any one (1) person) | No requirement |
| Personal and advertising injury | No requirement |
| General aggregate | $1,000,000.00 |
| Products-completed operations aggregate | No requirement |

**3. Automobile Liability Insurance (Owned, Hired and Non-owned Vehicles).**

| | |
|---|---|
| Each Occurrence (combined single limit for bodily injury and property damage) | $1,000,000.00 |

**4. Professional Liability Insurance.** A ROW occupant or permittee shall furnish proof of a professional liability insurance policy for its architects, engineers, consultants and other contractors with professional liability exposure and in such kinds and with such limits of liability as set forth below:

| **Project Category** | **Minimum Insurance Coverage** |
|---|---|
| *Studies and reports* | *$100,000.00 each claim* |
| | $100,000.00 annual aggregate |
| Construction projects | |
| Less than $500,000 cost | $100,000.00 each claim |
| | $100,000.00 annual aggregate |
| $500,000 to $1,000,000 cost | $250,000.00 each claim |
| | $250,000.00 annual aggregate |
| More than $1,000,000 cost | $500,000.00 each claim |
| | $500,000.00 annual aggregate |

Insurance written on a "Claims Made" policy form shall be carried for a minimum of two (2) years after the completion of ROW work or for such additional period as may be required by the permit granted. "Tail" coverage may be carried in lieu of ongoing policies.

**5.** Workers' Compensation Insurance shall be carried of such kinds and with such limits as required by law.

**B. Self Insurance.** A certificate of self-insurance may be presented to the City in lieu of the foregoing insurance requirements. A certificate of self-insurance may be in lieu of a particular insurance requirement or for the insurance requirements as a whole. Self-insurance for workers' compensation obligations must have been approved by the Oklahoma Workers' Compensation Court and self-insurance for automobile liability obligations must have been approved by the Oklahoma Department of Public Safety, Financial Responsibility Division.

**C. Endorsement.** All insurance policies and certificates maintained pursuant to this chapter shall contain the following endorsement:

"It is hereby understood and agreed that this insurance coverage may not be canceled by the insurance company nor the intention not to renew be stated by the insurance company until thirty (30) days after receipt by the ROW administrator, by certified mail, return receipt requested, of a written notice of such intention to cancel or not to renew. If cancellation is for nonpayment of premium, then such notice shall not be less than ten (10) days, or as otherwise required by law."

For those companies that do not comply with the "Endorsement" requirement set forth above, the City shall require a valid certificate of insurance be delivered to the ROW administrator every thirty (30) days to prove that the required insurance has not been canceled.

**D. Qualifications of Insurance Companies.** All insurance policies required to be maintained by a ROW occupant or permittee shall be with an insurance company qualified to do business in the state of Oklahoma, with a B++VII or better rating of insurance by Best's Key Rating Guide, Property/Casualty Edition.

**E. Approval.** All certificates of insurance, indemnification agreements and bonds executed to the City shall be provided to the ROW administrator, who shall ascertain whether the insurance company or surety is authorized to do business in the state of Oklahoma, then submitted to the City Attorney for approval as to form, then submitted to the Mayor for approval.

**F. Additional Insured.** All liability insurance policies, except workers' compensation, shall name the City, its elected and appointed officials, officers, boards, commissions, commissioners, agents and employees as additional insured. The owner's and contractor's protective liability insurance shall insure the City of Tulsa against any and all actions, claims, judgments or demands arising from damages and/or injuries of any kind and character sustained by any person or persons because of work performed by the contractor.

**G. Cancellation and Penalty.** No ROW occupant or permittee shall cancel or reduce coverage of any insurance required herein without first delivering proof to the ROW administrator of alternative insurance which complies with this chapter. Failure to

satisfy the insurance requirements herein shall subject the ROW occupant or permittee to an administrative penalty not to exceed Five Hundred Dollars ($500.00) per each uninsured day.

*(Ord. Nos. 19945, 20956)*

**Section 1212. Indemnification.**

**A.** Each ROW occupant and permittee shall, at their sole cost and expense, indemnify, hold harmless and defend the City, its elected and appointed officials, officers, boards, commissions, commissioners, agents, employees and volunteers against any and all claims, suits, causes of action (whether frivolous or otherwise), proceedings and judgments for damages or equitable relief arising out of the installation, construction, maintenance or operation of facilities by the ROW occupant or permittee; the conduct of the ROW occupant's business in the City; or in any way arising out of the ROW occupant's enjoyment or exercise of the privileges granted by the City or applicable law, regardless of whether the act or omission complained of is authorized, allowed or prohibited by the City, other applicable law, or the terms of any grant to occupy the arterial rights-of-way.

**B.** Each ROW occupant and permittee shall indemnify and hold harmless the City and its elected and appointed officers, officials, boards, commissions, commissioners, employees, agents and volunteers from and against any and all claims, demands, suits or causes of action (whether frivolous or otherwise) of any kind or nature, and the resulting losses, costs, expenses, reasonable attorneys' fees, liabilities, damages, orders, judgments or decrees sustained by the City arising out of, or by reason of, or resulting from or of the acts, errors or omissions of the ROW occupant or permittee, or its agents, independent contractors or employees related to or in any way arising out of the construction, operation or repair of the facilities in question.

**C.** The indemnity provision of this Section 1212 includes, but is not limited to, the City's reasonable attorneys' fees incurred in defending against any such action, claim, suit (whether frivolous or otherwise) or proceeding, as well as the reasonable value of any services rendered by the City Attorney or City staff or employees.

**D.** Nothing in this chapter shall be construed to waive any immunity the City enjoys under applicable law or the Oklahoma Constitution.

**E.** Acceptance of the provisions of this section shall be a condition of all occupancy permits and rights-of-way construction permits.

*(Ord. No. 19945)*

**Section 1213. No limits on liability.**

Neither the provisions of this chapter nor any damages recovered by the City shall be construed to limit the liability of a ROW occupant or permittee for damages to the City, its elected and appointed officials, officers, boards, commissions, commissioners, agents, employees, volunteers and/or any other person or persons.

*(Ord. No. 19945)*

**Section 1214. Record maintenance.**

**A. Access to Records.** ROW occupants shall keep books and records for periods of time reasonably established by the City to determine compliance with this chapter. City,

after reasonable notice, shall have the right to review the books and records, including any complaints, of ROW occupants during normal business hours as is reasonably necessary to monitor compliance with this chapter. Such records shall include, but shall not be limited to, any public records required to be kept by ROW occupants pursuant to the rules and regulations of the FCC or any other federal or state regulatory commission or agency having jurisdiction over the ROW occupant. ROW occupants shall not be required to disclose information which it reasonably deems to be proprietary or confidential in nature; provided this exception shall not be construed to include financial records necessary to enable the City to determine compliance with ROW occupants' fee payment obligations; provided further this exception shall not be construed to include system maps as set forth in Section 1214.B, below. Subject to open meeting and record disclosure laws of the state of Oklahoma, City agrees to treat any information disclosed by ROW occupants to it on a confidential basis and only to disclose it to employees, representatives and agents thereof that have a need to know or in order to enforce the provisions hereof. The Council may inspect the books and records of ROW occupants as necessary to determine compliance with the terms of this chapter and may compel attendance of witnesses.

Copies of all petitions, applications and communications submitted by ROW occupants to the FCC or any other federal or state regulatory commission or agency having jurisdiction in respect to any matters affecting the ROW occupants operations shall be submitted to the City Clerk upon request.

**B. System Mapping.** Each ROW occupant shall maintain accurate maps and improvement plans showing the location, size and a general description of all facilities, equipment and service drops installed in the arterial rights-of-way and any power supply sources (including voltages and connections). Facilities and equipment shown shall include, but not be limited to, cables, conduits, electric lines, pipelines, fiber optic cables, electric transformers, gas meters and junction boxes. The ROW occupant shall provide a system map to the ROW administrator showing the approximate location of its facilities located along the arterial rights-of-way. Maps shall be submitted in a digital format acceptable to the City, unless otherwise exempted.

**C. As-Built Plans.** Preliminary plans shall be submitted for each new construction project at the time of application for a rights-of-way construction permit. After completion of construction on each project, final as-built construction and acquisition facility maps shall be submitted to the Public Works Department. Such as-built maps shall be based upon post-construction inspections to verify location. Copies of as-built maps in a digital format acceptable to the City shall be submitted to the ROW administrator, unless otherwise exempted.

**D. Initial Plan Submittal.** Each person occupying the rights-of-way as of the effective date of this chapter shall submit a plan to the ROW administrator as part of its initial registration pursuant to Section 1205.A, specifying in detail the steps it will take to comply with the requirements of this section to document existing facilities. The plan shall provide for the submission of all mapping data for existing facilities along or within:

**1.** The downtown business district (within the Inner Dispersal Loop) within six (6) months after the effective date of this chapter; and

**2.** The major arterial street system within twelve (12) months after the effective date of this chapter; and

**3.** The remainder of the City within twenty-four (24) months after the effective date of this chapter.

The City may grant extensions of the time periods described above for good cause shown. Notwithstanding the foregoing, new facility mapping submissions shall commence for all new projects immediately after the effective date of this chapter. In lieu of submitting a plan, anyone occupying the arterial rights-of-way that already has the required mapping information may submit such information at the time of initial registration.

**E. New ROW Occupants.** New ROW occupants shall submit complete accurate mapping data for all their equipment at the earlier of initial registration or the time any rights-of-way construction permits are sought under this chapter.

*(Ord. No. 19945)*

## Section 1215. Relocation of equipment and facilities.

A ROW occupant or permittee must promptly and at its own expense, with due regard for seasonal working conditions, permanently relocate its equipment and facilities in the arterial rights-of-way upon written notification by the Director of Public Works. The ROW administrator shall forward a recommendation upon careful determination of the best interest of the health, safety and welfare of the public regarding any such relocation. Such relocation shall include restoring the arterial rights-of-way to the same condition it was in prior to said relocation, in accordance with the terms of this chapter. A ROW occupant shall, within six (6) months, at its own expense, protect or modify any part of its facility when required by the City by reason of traffic safety, public safety, road construction, change of street grade, installation of water, stormwater or sanitary pipes, traffic-signal devices or any other types of City improvement projects. The ROW administrator may recommend such actions in order to prevent interference by the ROW occupant's facilities with: a present or future City use of the arterial rights-of-way; or a capital improvement project funded and scheduled to be undertaken by the City; or an economic development project in which the City has an interest or investment. The ROW administrator may also recommend such actions: when the public health, safety and welfare require it; or when necessary to prevent interference with the safety and convenience of ordinary travel over the arterial rights-of-way, both vehicular and pedestrian; or when aboveground equipment is located in such a manner as to create an obstruction to a driver's line of sight. The ROW occupant may for due cause make application to the Public Works Director for an extension to complete such relocation as required by this section.

The foregoing does not alter a ROW occupant's prior rights or obligations within an existing easement established prior to the dedication of rights-of-way in establishing the party responsible for the expense of any required relocation of equipment.

*(Ord. No. 19945)*

## Section 1216. Pre-excavation location of equipment.

Before a ROW occupant or permittee shall commence to excavate in a roadway, street, alley or other rights-of-way as defined in this chapter, such ROW occupant or permittee, unless

otherwise exempt by state statute, shall first notify all operators in the City who are on file with the county clerk as to having underground facilities within the county, pursuant to the Underground Facilities Damage Prevention Act, 63 O.S.1991, §§ 142.1, *et seq.*, as supplemented; said notice shall be either directly or by notice to the statutory "Okie" One-call notification center. Each ROW occupant served with notice in accordance with 63 O.S.1991, § 142.6, shall locate and mark or otherwise provide the location of the underground facilities of the operator in such a manner as to enable the excavator to determine the precise location of the underground facilities in advance of excavation. In any event, should the excavator in the course of excavation discover and damage an unmarked utility, the City of Tulsa shall be indemnified from liability for any damage that should occur due to the failure on the part of either the excavator or the ROW occupant.

*(Ord. No. 19945)*

**Section 1217. Damage to other facilities.**

Each ROW occupant shall comply fully with the Underground Facilities Damage Prevention Act, 63 O.S.1991, §§ 142.1, *et seq.*, as amended.

*(Ord. No. 19945)*

**Section 1218. Abandoned and unusable facilities.**

**A. Discontinuing operations.** A ROW occupant that has determined to discontinue its operations in the City must either:

**1.** Obtain the consent of the City to transfer ownership control of its facilities pursuant to Section 1223 and ensure that the new owner or controlling entity has applied for registration prior to closing; or

**2.** Submit to the City, within ninety (90) days of the planned date for discontinuance of operation, a proposal and instruments for transferring ownership of its facilities to the City. If a ROW occupant proceeds under this clause, the City may at its option:

**a.** Purchase the facilities; or

**b.** Require the ROW occupant, at its own expense, to remove the facilities.

**B. Abandonment.** Facilities of a ROW occupant who fails to comply with the preceding paragraph and which for twelve (12) months remain unused, shall be deemed to be abandoned. Abandoned facilities are deemed to be a nuisance. Upon thirty (30) days' notice to the occupant, the City may exercise any remedies or rights it has at law or in equity, including but not limited to:

**1.** Abating the nuisance;

**2.** Taking possession of the facilities and restoring them to a useable condition;

**3.** Requiring removal of the facilities at the expense of the ROW occupant; or

**4.** Removing abandoned facilities in any arterial rights-of-way in conjunction with a proposed construction project.

*(Ord. No. 19945)*

## Section 1219. Rights-of-way vacation.

In the event that application of any provision of this chapter requires the vacation of a street or other public way, such vacation shall be accomplished in accordance with 11 O.S.1991, §§ 42-101, *et seq.*, as amended, and Title 11, Chapter 7, Tulsa Revised Ordinances, as amended.

*(Ord. No. 19945)*

## Section 1220. Cable and open video system provisions.

ROW occupants who provide video service shall abide by the following provisions:

**A. Video Service Fee.**

**1.** A video service fee shall be paid in an amount equal to five percent (5%) of the video service gross revenues from within the corporate limits of the City of Tulsa, Oklahoma, for each current year. This video service fee shall be in lieu of any applicable occupancy fee or the inspection fee and service charge paid for the provision of video service pursuant to Subsection 1206.A. or 1206.B. of this chapter. The video service fee, together with any accumulated interest, shall be payable monthly on or before the 25th day after the end of each month on video service gross operating revenues received for that month, beginning no later than August 2009. If the payment is not timely made, interest upon any unpaid portion shall accrue at the rate of one and one-half percent (1½%) per month until paid. ROW occupants shall file a complete and accurate verified statement of all video service gross operating revenues within the corporate limits of the City of Tulsa, Oklahoma, during the period for which the monthly payment is made and an annual statement of such video service gross operating revenues, verified by the ROW occupant's external certified public accountant, within sixty (60) days after the end of each calendar year. ROW occupant's first annual statement shall include the months of the calendar year that preceded the first month in which the occupancy permit is effective. If ROW occupant fails or refuses to pay such fee, City may maintain an action against ROW occupant for the amount of such fee and interest and all expenses of collecting same, including reasonable attorney's fees.

**2.** Any person leasing video service capacity from a ROW occupant, other than a person whose revenues are included in the payment made under paragraph A.1. of this section, shall pay the City a fee in lieu of the occupancy permit fee of five percent (5%) of the video service gross revenues of such person. Such payment shall be subject to the terms and be made in the same manner as prescribed in paragraph A.1. of this section. Notwithstanding the foregoing, where a ROW occupant charges any person, other than an affiliate, to use its system and that person recovers those use payments through charges to its subscribers that are included in that person's video service gross revenues and that person fully recovers its use payments through charges to its subscribers and pays a fee on those charges pursuant to paragraph A.1. of this section, then the ROW occupant may deduct from its video service gross revenues the use payments it receives from that person.

**3.** In addition to the fees payable hereunder, consistent with 47 U.S.C. § 542(g)(2)(C), City may, at any time, by action of a majority of the City Council, establish a capital

contribution fee for educational and governmental access channels, video streams and facilities. ROW occupants providing video and audio originations pursuant to paragraphs 1220.G.3.a.—c. shall pay the City a capital contribution fee for educational and governmental programming support. The amount of the capital contribution fee shall be determined by City Council, but in no event shall exceed one-half of one percent (0.5%) of the ROW occupant's video service gross revenues within the City. The City shall determine the amount of the capital contribution fee in its sole discretion, but may use it only as allowed by federal law to support educational and governmental access channel facilities. The City shall provide the ROW occupant written notice at least forty-five (45) days in advance of the date on which the City seeks to start collecting the capital contribution fee, setting forth the percentage it seeks to collect. The capital contribution fee shall not be offset, deducted or chargeable as a credit against the video service fee required by this section. The capital contribution fee shall be administered, collected and paid in the same manner as prescribed in this Subsection 1220.A. and may be added by a ROW occupant as a separate line item on each regular bill of each subscriber.

The payment of the capital contribution fee shall be in lieu of any other monetary payment, or in-kind compensation or grants, to the City for educational and governmental support. Examples of educational and governmental support include providing and maintaining of transmitter encoders and any data transport necessary to transport educational and governmental signals from any video or audio origination point identified in paragraphs 1220.G.3.a.—c. to the ROW occupant's network, as well as providing technical assistance required for the use of channels or video streams for governmental and educational use. At the ROW occupant's option, however, the ROW occupant may provide "in-kind" educational and governmental support to the City in lieu of paying the capital contribution fee or a portion thereof to the City. Any ROW occupant that elects to provide "in-kind" educational and governmental support in lieu of all or a portion of the capital contribution fee shall, upon written request, advise the City of the estimated fair value of such in-kind support. The City shall have the right to challenge such estimate.

**4.** The provisions of this chapter contained in Subsection 1206.D., titled "Records Inspection"; Subsection 1206.E., titled "Late Fees and Interest on Late Payments"; and Subsection 1206.F., titled "No Deduction or Credit Against Taxes", which are applicable to ROW occupants paying occupancy fees or inspection fee and services charges shall also be applicable to ROW occupants required to pay video service fees.

**B. Service standards.** ROW occupants shall maintain and operate their facilities and render efficient video service in accordance with such rules and regulations as shall be promulgated by the FCC. Wherever it is necessary to interrupt video service for the purpose of making repairs, adjustments or installments, ROW occupants shall do so at such time as will cause the least inconvenience to subscribers, and unless such interruption is unforeseen and immediately necessary, ROW occupants shall give reasonable notice to subscribers.

**C. Regulation by City.**

**1.** ROW occupants in the installation, maintenance and operation of facilities providing video service shall, at all times, be subject to the terms and provisions of the general ordinances of the City and to the lawful exercise of the police power of the City.

**2.** ROW occupants shall be subject to the lawful exercise by City of all other powers, functions, rights, privileges and immunities of regulation of video service, or any other service granted or delegated to City by the Charter, by the Constitution and laws of Oklahoma or the laws and regulations of the United States of America.

**D. Provision of video service.** City council reserves the right to require ROW occupants to provide for video service, or services substantially similar thereto, to all residences and properties in developed areas within the corporate limits of the City, subject to limitations related to distance from current facilities or other technical limitations. In the event that the City Council exercises this right, ROW occupants may charge for extension of video service facilities based upon the cost of labor, materials, acquisition of property rights, as well as for the services provided.

**E. Operational standards.**

**1.** ROW occupants shall maintain and operate facilities so as to provide video, audio and other signals to be delivered with signal strength and quality levels which meet the parameters specified by the FCC and any other normally accepted industry standards. ROW occupants shall construct facilities providing video service and operate and maintain them in a manner consistent with all ordinary care and all applicable laws, ordinances, construction standards and FCC technical standards. Upon request, ROW occupants shall provide City a report of the results of any FCC required proof of performance test conducted by ROW occupants.

**2.** City shall notify ROW occupants in writing of any complaint from subscribers or of any failure of ROW occupants to comply with the terms and conditions of this permit. ROW occupants, upon receipt of such notice, shall promptly investigate the complaint and take such action as is necessary to provide video service to subscribers and to operate as required.

**F. Services to subscribers.** ROW occupants shall provide to subscribers as a part of its video service local television broadcast signals as required by federal law and FCC regulations subject to obtaining the consent of the local broadcast stations as required by law, and educational and public affairs programming including local educational and governmental programs.

**G. Governmental and educational uses.**

**1. Governmental and educational channels or video streams.** Within one hundred twenty (120) days of a request from the City, ROW occupants offering video service shall provide for governmental and educational use only, at no cost to such users, the following:

**a.** One (1) channel or video stream on any facility providing video service, for the exclusive use of Independent School District Number One of Tulsa County, Oklahoma (Tulsa Public Schools), provided Tulsa Public Schools develops, staffs and operates facilities and other equipment to provide educational and similar public service programming on such channel or video stream on a continuing basis and cooperates with other public elementary and secondary schools intending to provide such programming within the ROW occupant's video service area, within the City;

**b.** One (1) channel or video stream on any facility providing video service, for the exclusive use of Tulsa Community College, in cooperation with other institu-

tions of higher learning within the service area and service areas of other video service facilities owned by a ROW occupant and interconnected with a video service facility within the City, which develop, staff and operate facilities and equipment to provide educational programming on a continuing basis; and

**c.** One (1) channel or video stream on any facility providing video service, for the exclusive use of the City.

**d.** Each channel or video stream referenced in subparagraphs G.1(a), (b) and (c), above, may be made available via a single channel, video stream or tier which serves as a gateway to multiple governmental and educational channels or video streams.

If potential users are unable to agree on the allocation of channels or video streams provided in these subparagraphs G.1.a., b. and c. of this section, the Council may promulgate rules, regulations and procedures governing the use of governmental and educational channels or video streams. The Council shall resolve any disputes between any user of the channels or video streams and shall approve all allocations of educational and governmental channels provided in these subparagraphs G.1.a., b. and c.

Any content to be carried on such channel or video stream must be delivered to the ROW occupant at a point of presence agreed to by the ROW occupant and the user, in a format compatible with that ROW occupant's technology. The user will be solely and individually responsible for its own programming content.

**2. Service Outlets.** Upon request:

**a.** Subject to the provisions of paragraph G.2.b.:

(1) ROW occupants which provide video services within two hundred fifty (250) feet of a state accredited elementary and secondary school, including but not limited to all buildings and other facilities designated by the named public schools, or an institution of higher learning, in coordination with the City and all other video service providers, shall be obligated to provide one (1) free installation and monthly video service package, not including services offered on a premium or pay per view basis, to each state accredited school site and to each campus of each institution of higher learning.

(2) ROW occupants which provide video services within two hundred fifty (250) feet of City Hall, the Jack Purdie Police/Municipal Courts Building, the Tulsa Regional Convention and Event Center, the Fire Department Training Center, fire stations, the Performing Arts Center, the City-County Health Department, International Airport, Police Detention Center, Police Training Center, Police Stations, recreation centers and maintenance facilities, in coordination with the City and all other video service providers, shall be obligated to provide one (1) free installation and monthly video service package, not including services offered on a premium or pay per view basis, to each location listed above.

**b.** After any such request, unless the entity requesting service specifies the ROW occupant that is to provide service, the City will confer with all ROW occupants obligated to provide service pursuant to subparagraph G.2.a., to determine

assignments in a reasonable manner. No more than one (1) ROW occupant shall be required to provide the service required by this paragraph G.2. to any given location. If another ROW occupant is providing such service as of May 31, 2009, an entity covered by this paragraph G.2. may request service at no cost, as provided in subparagraph G.2.a., but shall be required to bear all installation costs. Additional installations as at any particular location set forth in subparagraph G.2.a. shall be at the cost of labor and installation to the entity receiving the service.

**c.** In compliance with this paragraph G.2.:

(1) No ROW occupant shall be required to provide inside wiring.

(2) No ROW occupant shall seek to offset recurring costs associated with the requirements of this paragraph G.2. against fees payable pursuant to this chapter, nor shall a ROW occupant impose such costs on the City, accredited school or institution of higher learning receiving such free installations and service.

(3) No ROW occupant shall offset any nonrecurring installation and nonrecurring repair of service costs provided pursuant to this paragraph G.2. against any fees payable under this chapter.

**d.** After a service outlet or connection is provided to any governmental or educational facility pursuant to this paragraph G.2., the services and connection shall not be discontinued or removed by a ROW occupant without the prior, express consent of the City Council.

**3. Video and audio originations.** Upon request:

**a.** ROW occupants providing video services within two hundred fifty (250) feet of the Tulsa Education Service Center shall work with the proper authorities to provide, at no cost, connections for video and audio originations from the Tulsa Education Service Center;

**b.** ROW occupants providing video services within two hundred fifty (250) feet of the Tulsa Community College Metro Campus shall work with the proper authorities to provide, at no cost, connections for video and audio originations from the Tulsa Community College Metro Campus; and

**c.** ROW occupants providing video services within two hundred fifty (250) feet of one (1) location designated by the City shall work with the proper authorities to provide, at no cost, connections for governmental video and audio originations from that location.

Upon request from a governmental or educational user, ROW occupants shall provide, at the direct cost to the ROW occupants of labor and materials, additional connections for video and audio originations from other points. ROW occupants providing "in-kind" educational and governmental support pursuant to paragraph 1220.A.3. of this title shall, at no cost, provide technical assistance required for the use of channels or video streams for governmental and educational use.

If potential users are unable to agree upon the use of the channels or video streams for video and audio originations from the locations to serve state accredited elementary and secondary schools and institutions of higher learning provided in subparagraphs G.3.a. and b., the Council may promulgate rules, regulations and

procedures governing the use of the channels or video streams for video and audio originations for state accredited elementary and secondary schools and institutions of higher learning. The Council shall resolve any disputes between any user of the educational channels or video streams.

**4.** ROW occupants shall not make any separate or premium charge to a subscriber for access to educational or governmental channels or video streams.

**5.** All channels or video streams allocated for governmental and educational use shall be of the same quality as any other channel or video stream for video service. All channels or video streams allocated for educational use shall be available to subscribers in the service area and the service areas of other video service facilities interconnected with it.

**6.** When a channel or video stream allocated for governmental or educational use has been assigned a channel number or position by the ROW occupants, such channel number or position shall not be changed until at least six (6) months' written notice has been given to the user of such channel.

**H. Emergency alert services to City.** If requested by the City, ROW occupants providing video service shall carry all federal, state and local alerts provided over the "Federal Emergency Alert System" in the event of a public safety emergency.

**I. Nondiscrimination.**

**1.** ROW occupants shall not deny any person or group of potential video service subscribers access to video service because of race, color, religion, national origin, age, gender, physical handicap or the income of residents in the local area in which a person or group resides.

**2.** ROW occupants shall not discriminate in the rates or charges for video services or in making available video services or facilities of the system. ROW occupants shall not extend any preference or advantage to any subscriber or potential subscriber to the system or to any user or potential user of the system.

**3.** ROW occupants shall not discriminate against any employee or applicant for employment because of race, color, religion, age, gender or national origin. ROW occupants shall comply with all applicable laws and regulations of the United States and of Oklahoma with respect to employment and personnel practices.

**J. Certain rights regarding IP video and cable service not waived.** In the enactment of provisions in this section that are applicable to IP video service, the City acknowledges that certain ROW occupants providing IP video service have asserted and may assert that they are not required to obtain a ROW occupant permit from the City in order to provide IP video service. Regardless of this position, in consideration of the forbearance of litigation by the City in relation to the provision of IP video service by such ROW occupants within the City and the City's adherence to permitting practices with respect to the installation of facilities that may be used to provide IP video services, certain ROW occupants are willing to operate within the regulations provided in this section and to pay the IP video service fee specified in this section. The City, by enactment of provisions in this section applicable to IP video service and any ROW occupant providing IP video services pursuant to this chapter agree that neither shall be deemed to have waived any of it rights, which may be contrary to the definitions, regulations and actions established in this chapter.

**K. Change or clarification of law.** In the event a court or federal agency or any governmental legislative body with jurisdiction rules or declares that IP video service is a cable service, or that IP video service is subject to the same laws and regulations as a cable service provider or cable television system, and if the ruling or declaration is effective and binding upon either the City or the ROW occupant providing IP Video service within the City of Tulsa, then the ROW occupant shall be subject to the provisions of section.

*(Ord. Nos. 19945, 21282, 21393; Ord. No. 22146, § 3, 10-15-2009; Ord. No. 22169, §§ 1, 2, 12-10-2009)*

## Section 1221. Thermal service row usage fee.

All providers of thermal service shall pay a thermal service ROW usage fee in the amount of three percent (3%) of the gross revenues from the sale of chilled water and steam. The thermal service ROW usage fee shall be in addition to the occupancy fee. The thermal service ROW usage fee shall be payable monthly on or before the 25th day of each month, on the cash receipts of the preceding calendar month. If the monthly payment is not timely made, interest upon any unpaid portion shall accrue at the rate of one and one-half percent (1.5%) per month until paid. Those providing thermal service shall furnish with each monthly payment a complete and accurate, verified statement of all gross revenues from sales within the City of Tulsa during the month for which said payment is made. Such statement and payment shall be made to the Director of Finance. If the provider of thermal service fails or refuses to pay such fee, the City may maintain an action against the thermal service provider for the amount of such fee and interest and all expenses of collecting same, including reasonable attorneys' fees. The fee and interest imposed hereunder shall constitute a first and prior lien upon all of the assets of the thermal service provider located within the City of Tulsa, Oklahoma.

*(Ord. No. 19945)*

## Section 1222. Reservation of regulatory and police powers.

No provision of this chapter, nor any action taken by the City pursuant to this chapter, shall be deemed to surrender, waive, impair, or lessen the lawful powers and rights to regulate the use or occupancy of the rights-of-way that now or may be hereafter vested in the City under the Constitution and statutes of the state of Oklahoma or under the Amended Charter of the City of Tulsa. By accepting an occupancy permit or a rights-of-way construction permit, a permittee or ROW occupant is deemed to acknowledge that its rights are subject to the regulatory and police powers of the City as exist under applicable law to adopt and enforce general ordinances necessary for the safety and welfare of the public and is deemed to agree to comply with all applicable general laws and ordinances enacted by the City pursuant to such powers. Unless otherwise expressly provided in an occupancy permit or rights-of-way construction permit, any conflict between the provisions of any such authorization and any other present or future lawful exercise of the City's regulatory or police powers shall be resolved in favor of the City.

*(Ord. No. 19945)*

**Section 1223. Severability.**

If any section, sentence, clause or phrase of this Ordinance or any part thereof is for any reason found to be invalid by a court of competent jurisdiction, such decision shall not affect the validity of the remainder of this Ordinance or any part thereof.

*(Ord. No. 19945)*

**Section 1224. Revocation.**

If a regulatory body or a court of competent jurisdiction should determine by a final, nonappealable order that any franchise, permit, right or registration issued under this chapter or any portion of this chapter is illegal or unenforceable, then any such franchise, permit, right or registration granted or deemed to exist hereunder shall be considered as a revocable permit with a mutual right of either party to terminate without cause upon giving sixty (60) days' written notice to the other. The requirements and conditions of such a revocable permit shall be the same requirements and conditions as set forth in the franchise, permit, right or registration, respectively, except for conditions relating to the term of the permit and the right of termination. If a franchise, permit, right or registration shall be considered a revocable permit as provided herein, the permittee must acknowledge the authority of the City Council to issue such revocable permit and the power to revoke it.

*(Ord. No. 19945)*

**Section 1225. Transfers.**

**A. Notification required.** No transfer shall occur without prior notice to the Public Works Director. Notice of the transfer must meet the requirements of Section 1205, as applicable, and provide complete information on the proposed transaction, including the legal, financial, technical and other pertinent qualifications of the transferee as deemed necessary by the Public Works Director.

**B. No waiver or release.** A transfer of an occupancy permit or a rights-of-way construction permit shall not constitute a waiver or release of any of the rights of the City.

**C. Recovery of costs.** The City may impose a charge, in addition to any occupancy fee or other compensation authorized by this chapter or applicable law, to cover the City's costs in excess of the filing fee in considering an application for a transfer of an occupancy permit or a rights-of-way construction permit.

*(Ord. No. 19945)*

**Section 1226. Exemptions.**

This chapter applies, to the greatest extent permissible under applicable law, to all ROW occupants. If, on the effective date of this chapter, a person holds a franchise, or has prior rights under a contract, and the terms of this chapter conflict with or impose additional requirements or obligations not contained in the franchise or contract, that person is exempted from such terms of this chapter and the terms of the franchise shall control, to the extent required by the franchise or contract and applicable law.

*(Ord. No. 19945)*

## Section 1227. Enforcement.

**A. Remedies for violations.** If a ROW occupant violates any provision of this chapter, the Director of Finance may, after providing notice to the ROW occupant at the address provided in the occupancy permit and a hearing in which the ROW occupant may appear and be heard, take one (1) or more of the following actions:

**1.** Impose liquidated damages in the amount, if any, provided in the occupancy permit or rights-of-way construction permit, whether per day, incident or other measure of violation. Payment of liquidated damages by the ROW occupant does not relieve the ROW occupant of its obligation to meet the requirements of this chapter;

**2.** Impose penalties pursuant to Section 1228;

**3.** Reduce the duration of the occupancy permit or rights-of-way construction permit on any basis the City determines is reasonable and affords the ROW occupant reasonable due process; and/or

**4.** Revoke the occupancy permit or rights-of-way construction permit pursuant to its terms or applicable law.

**B. Director of Finance's discretion.** In determining which remedy or remedies are appropriate under Subsection 1227.A, the Director of Finance shall consider the nature of the violation, the person or persons bearing the impact of the violation, the nature of the remedy required in order to prevent further violations and any other matters the Director of Finance determines are appropriate. In addition to or instead of these remedies, the Director of Finance may seek legal or equitable relief from any court of competent jurisdiction.

**C. Opportunity to cure.** Before initiating a remedy under this section, other than revocation of the occupancy permit or rights-of-way construction permit, the City shall give the ROW occupant written notice of the violations claimed and at least twenty (20) working days to correct the violations.

*(Ord. No. 19945)*

## Section 1228. Penalties.

The Director of Finance shall have the authority to assess penalties against a ROW occupant for failure to comply with the terms of its occupancy permit or rights-of-way construction permit or any other portions of this chapter. Any such assessment must be provided to the ROW occupant in writing with a notice of violation and provide for a reasonable opportunity to cure the violation, provided that the violation is not a result of inclement weather. If the ROW occupant fails to remedy the deficiency by the end of the twenty (20) day period provided in Section 1227.C, the penalty amounts shall begin to accrue and shall continue to accrue until the date that the deficiency is corrected.

**A.** For effecting or attempting to effect a transfer without approval: Two Thousand Dollars ($2,000.00) a day for each violation for each day the violation continues;

**B.** For failure to supply information, reports or filings lawfully required under the terms of an occupancy permit or ROW construction permit or applicable law or by the City: Five Hundred Dollars ($500.00) a day for each violation for each day the violation continues;

**C.** For failure to pay occupancy fees, inspection fees, service charges or other fees imposed by this chapter: One Thousand Dollars ($1,000.00) per day;

**D.** For failure to restore or repair damages to private property: Two Hundred Dollars ($200.00) per day, in addition to the cost of the restoration;

**E.** For any other violations of the City code, occupancy permit, rights-of-way construction permit or other applicable law: Five Hundred Dollars ($500.00) a day for each violation for each day the violation continues.

*(Ord. No. 19945)*

## SCHEDULE A.

**PART 1.** Refer to Title 35, Tulsa Revised Ordinances, Section 302, for fee schedule currently in effect.

**PART 2.** Schedule of Degradation Values

| PC Concrete | | (Design life = 30 years) |
|---|---|---|
| | Years | Depreciation Value |
| New Concrete | 0—5 | 98% |
| Good Concrete | 5—1<br>5 | 78% |
| Fair Concrete | 1—2<br>5 5 | 44% |
| Poor Concrete | > 2<br>5 | 15% |

| Asphalt Concrete | (Design life = 20 years) | |
|---|---|---|
| | Years | Depreciation Value |
| New Asphalt | 0—3 | 99% |
| Good Asphalt | 3—1<br>1 | 78% |
| Fair Asphalt | 1—2<br>1 0 | 34% |
| Poor Asphalt | > 2<br>0 | 11% |

| Asphalt Over PCC | (Design life = 20 years) | |
|---|---|---|
| | Years | Depreciation Value |
| New APC | 0—2 | 99% |
| Good APC | 2—7 | 77% |
| Fair APC | 7—1<br>2 | 33% |
| Poor APC | > 1<br>2 | 11% |

Degradation percentage:

Paving Cut = 20%

The following formula shall be used to calculate the degradation cost:

Area of construction + 1' around perimeter of site; times

Cost $10.00 per square foot of paving; times

Depreciation Value; times

Degradation Percentage

# RIGHT-OF-WAY FEE
# ALLOCATED EXPENSES WORKSHEET

| | | Historical Expenses | | | | | | Allocated Expenses | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| *Section No.* | *Section Description* | *1994/1995* | *1995/1996* | *1996/1997* | *1997/1998* | *1998/1999* | *% of Allocation to Fee Structure* | *1994/1995* | *1995/1996* | *1996/1997* | *1997/1998* | *1998/1999* |
| 40711 | Public Facilities Maintenance/Operations Administration | $121,473 | $103,809 | $103,088 | $105,825 | $116,507 | 20% | $24,295 | $20,762 | $20,618 | $21,165 | 23,301 |
| 40713 | Office Support-Public Facilities | $63,064 | $64,550 | $66,317 | $68,475 | $38,881 | 20% | $12,613 | $12,910 | $13,263 | $13,695 | $7,776 |
| 40735 | Vegetation - ROW | $ 1,019,172 | $ 1,194,257 | $ 1,220,100 | $ 1,520,658 | $ 1,609,713 | 75% | $ 764,379 | $ 895,693 | $ 915,075 | $ 1,140,494 | $ 1,207,285 |
| 40737 | Tree Removal - ROW | $ 280,150 | $ 354,867 | $ 358,618 | $ 417,513 | $ 476,064 | 75% | $ 210,113 | $ 266,150 | $ 268,964 | $ 313,135 | $ 357,048 |
| 40715 | Roadside Cleanup | | | | $ 296,219 | $ 430,731 | 75% | | | | $ 222,164 | $ 323,048 |
| 40738 | Illegal Dumping | $ 328,702 | $ 387,430 | $ 530,156 | $ 435,196 | $ 290,990 | 75% | $ 246,527 | $ 290,573 | $ 397,617 | $ 326,397 | $ 218,243 |
| 40734 | Roadside Ditching and Maintenance | $ 377,801 | $ 413,952 | $ 382,260 | $ 762,011 | $ 647,253 | 30% | $ 113,340 | $ 124,186 | $ 114,678 | $ 228,603 | $ 194,176 |
| 40744 | Street Cleaning | $ 289,112 | $ 532,794 | $ 663,129 | $ 833,375 | $ 934,459 | 30% | $ 86,734 | $ 159,838 | $ 198,939 | $ 250,013 | $ 280,338 |
| 40011 & 40211 | Public Works Director & Asst. public Works Director | $ 415,514 | $ 513,765 | $ 489,762 | $ 505,935 | $ 539,495 | 5% | $ 20,776 | $ 25,688 | $ 24,488 | $ 25,297 | $ 26,975 |
| 40511 | Engineering Services - Administrative | $ 350,070 | $ 360,169 | $ 428,859 | $ 727,803 | $ 672,562 | 10% | $ 35,007 | $ 36,017 | $ 42,886 | $ 72,780 | $ 67,256 |
| 40521 | Design Services - Administrative | $ 118,707 | $ 121,683 | $ 127,088 | $ 138,138 | $ 185,366 | 10% | $ 11,871 | $ 12,168 | $ 12,709 | $ 13,814 | $ 18,537 |
| 40524 | Graphics/CADDS | $ 404,447 | $ 413,607 | $ 790,333 | $ 499,730 | $ 584,288 | 20% | $ 80,889 | $ 82,721 | $ 158,067 | $ 99,946 | $ 116,858 |
| 40526 | Reproduction Records | $ 307,406 | $ 319,982 | $ 326,478 | $ 348,932 | $ 414,109 | 20% | $ 61,481 | $ 63,996 | $ 65,296 | $ 69,786 | $ 82,822 |
| 40531 | Field Engineering | $ 155,970 | $ 159,299 | $ 215,054 | $ 223,594 | $ 212,333 | 20% | $ 31,194 | $ 31,860 | $ 43,011 | $ 44,719 | $ 42,467 |
| 40532 | Construction Inspection | $ 1,205,475 | $ 1,229,339 | $ 1,253,923 | $ 1,286,324 | $ 1,339,949 | 20% | $ 241,095 | $ 245,868 | $ 250,785 | $ 257,265 | $ 267,990 |
| 40533 | Call Okie | $ 115,264 | $ 117,049 | $ 97,290 | $ 110,357 | $ 126,697 | 30% | $ 34,579 | $ 35,115 | $ 29,187 | $ 33,107 | $ 38,009 |
| 40534 | Field Surveys | $ 611,163 | $ 627,293 | $ 661,445 | $ 696,288 | $ 722,683 | 50% | $ 305,582 | $ 313,647 | $ 330,723 | $ 348,144 | $ 361,342 |
| 40751 | Traffic Control | $ 656,991 | $ 752,400 | $ 730,460 | $ 809,823 | $ 812,457 | 20% | $ 131,398 | $ 150,480 | $ 146,092 | $ 161,965 | $ 162,491 |
| | TOTAL | | | | | | | 2,411,871.00 | 2,767,671.00 | 3,032,395.00 | 3,642,488.00 | 3,795,960.00 |
| | | | | | | | | | | | | |
| | Indirects and Overheads x 1.20 | | | | | | | $ 2,894,245.44 | $ 3,321,205.38 | $ 3,638,874.12 | $ 4,370,985.42 | $ 4,555,152.06 |
| | | | | | | | | | | | | |
| | CPI Factor (Jan.) | | | | | | | 150.3 | 154.4 | 159.1 | 161.6 | 164.3 |
| | | | | | | | | | | | | |
| | Jan. (current year) Factor | 168.7 | | | | Adjusted CPI for Jan. 2000 | | 1.1224 | 1.0926 | 1.0603 | 1.0439 | 1.0268 |
| | | | | | | | | | | | | |
| | GRAND TOTAL | | | | | | | 3,248,564.24 | 3,628,804.06 | 3,858,441.63 | 4,563,027.48 | 4,677,140.31 |
| | | | | | | | | | | | | |
| | FIVE YEAR AVERAGE | $ 3,995,135.55 | | | | | | | | | | |

## CAPITAL COSTS

| *Section No.* | *Section Description* | *1994/1995* | *1995/1996* | *1996/1997* | *1997/1998* | *1998/1999* | *% of Allocation to Fee Structure* | *1994/1995* | *1995/1996* | *1996/1997* | *1997/1998* | *1998/1999* |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 541 & 5451 | Capital Costs | $6,308,415.00 | $8,060,154.00 | $7,006,494.00 | $8,683,432.00 | $7,841,350.00 | 87.50% | $5,519,863.13 | $7,052,634.75 | $6,130,682.25 | $7,598,003.00 | $6,861,181.25 |
| | | | | | | | | | | | | |
| | PRESENT DAY VALUE | | | | | | | $6,195,614.83 | $7,705,825.66 | $6,500,603.99 | $7,931,826.15 | $7,044,925.60 |
| | | | | | | | | | | | | |
| | 5-Year Average = | | | | | | $7,075,759.25 | | | | | |
| | Engineering - 15% | | | | | | $1,061,363.89 | | | | | |
| | | | | | | | | | | | | |
| | Total Capital | | | | | | $8,137,123.14 | | | | | |

## MISCELLANEOUS COSTS

| *Section No.* | *Section Description* | *1994/1995* | *1995/1996* | *1996/1997* | *1997/1998* | *1998/1999* | *% of Allocation to Fee Structure* | *1994/1995* | *1995/1996* | *1996/1997* | *1997/1998* | *1998/1999* |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 34011 | Telecommunications | 90% | | | | | | | | | | $250,048.00 |
| | Legal | | | | | | | | | | | $ 100,000.00 |
| | Degradation Costs of Boring | | | | | | | | | | | $ 100,000.00 |

## TOTAL LINEAR FEET OCCUPIED

| Right-of-Way Occupants | Linear Feet | |
|---|---|---|
| | 1 Foot or less | Greater than 1 Foot |
| Southwestern Bell | 488,011 | 659,721 |
| Valor | 91,270 | 130,000 |
| Bixby | 54,300 | 41,600 |
| ONG | 1,300,000 | |
| PSO | 200,000 | 1,800,000 |
| City of Tulsa - Water Lines | 1,425,000 | 608,000 |
| City of Tulsa - Stormwater | | 200,000 |
| City of Tulsa - Sanitary Sewer | 30,000 | 60,000 |
| Cox Communications | 1,700,000 | |
| Trigen | | 13,000 |
| Brooks Fiber | 510,000 | |
| AT&T | 102,000 | |
| ACSI | 10,000 | |
| MCI | 49,000 | |
| IXC | 5,000 | |
| Mapco | 200 | |
| Sprint | 25,800 | |
| To be installed | 200,000 | |
| TOTALS | 6,190,581 | 3,512,321 |

## OCCUPANCY FEE CALCULATIONS

| | |
|---|---|
| Right-of-Way Management and Operations | $ 3,995,195.55 |
| Capital Costs | $ 8,137,123.14 |
| Telecommunications | $ 250,048.00 |
| Legal | $ 100,000.00 |
| Degradation costs of Boring | $ 100,000.00 |
| **Total Yearly Right-of-Way Costs** | **$ 12,582,366.69** |

Fee Calculation = (x) $3,512,321.00 + (0.5)(x) $6,190,581.00 = $12,582,366.68

1.90
x = $ 1.90 per foot
0.5 x = $ 0.95 per foot

*(Ord. No. 25069, § 2, 6-14-2023)*

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## CHAPTER 13. BLASTING REGULATIONS

Section 1300. Purpose.
Section 1301. Definitions.
Section 1302. Scope.
Section 1303. Blasting permits.
Section 1304. Administrative procedures.
Section 1305. Standards for blasting permits.
Section 1306. Permit suspension and revocation.
Section 1307. Appeals and variances.
Section 1308. Penalties.
Section 1309. Warning and disclaimer of liability.

### Section 1300. Purpose.

To protect the general health, safety and welfare of residents of the City of Tulsa from unnecessary and excessive air blasts, ground vibrations and dust which are physically harmful and otherwise detrimental to individuals and the community in the enjoyment of life, property and conduct of business, the City shall:

**A.** Regulate the detonation of explosives used to demolish structures, fragment rock and excavate for development within the City; and

**B.** Inform those who are reasonably calculated to be affected by any blasting.

Development shall not create a public hazard upon any property within the City due to the use of explosives. The detonation of explosives shall not result in identifiable damage to property other than the blasting site.

*(Ord. No. 19947)*

### Section 1301. Definitions.

For purposes of this chapter, the following words and phrases shall have the meanings given herein.

**Appeal** shall mean a request for a review of the Director's interpretation of any provision of this chapter or a request for a variance.

**Blasting Area** shall mean the area within three hundred (300) feet of the proposed blasting site as described by the most applicable blasting project scenario listed below:

**A.** Three hundred (300) feet perpendicular and on each side of the line of the proposed blasting, i.e., blasting performed down the center of a street; or

**B.** Three hundred (300) feet from each exterior boundary or property line, whichever is greater, of the proposed blasting.

The Director may require a larger area than that described herein if he finds that strict adherence to the distance requirements does not result in a logical boundary. Consideration should be given to proximity of structures to each other, geology or topography of the area, density of development and sensitivity of structures.

**Certified Blaster** shall mean a person who has certified blaster status pursuant to the State of Oklahoma Explosives and Blasting Regulation Act and implementing regulations thereof.

**Department** shall mean the Public Works Department of the City of Tulsa.

**Department of Mines** shall mean the state of Oklahoma agency responsible for the administration, regulation and enforcement of the state of Oklahoma laws and regulations regarding blasting operations.

**Development** shall mean any manmade changes to improved or unimproved real estate, including but not limited to buildings or other structures, mining, excavation and construction.

**Director** shall mean the duly appointed Director of the Public Works Department of the City of Tulsa or his designated representative.

**Explosives** shall mean any substance, chemical compound or mechanical mixture that is commonly used for the purpose of producing an explosion to demolish a structure or to fragment rock for excavation or construction, including initiating devices.

**Flyrock** shall mean any dirt, mud, stone, fragmented rock or other material that is displaced from the blasting area by being thrown in the air or cast along the ground.

**Oklahoma Mining Commission** shall mean the state of Oklahoma commission having jurisdiction over mining operations in Oklahoma.

**Person** shall mean any individual, partnership, firm, association, public or private corporation or institution, municipal corporation, any trust estate or any other legal entity, and any successor, representative, agent or agency of the foregoing.

**Underground facility** shall mean any underground line, facility, system and appurtenances thereto, for producing, storing, conveying, transmitting or distributing communication, electricity, power, light, heat, gas, oil, petroleum products, water (including storm water), steam, sewage and other commodities.

**Variance** shall mean a grant of relief to a person from the requirements herein when specific enforcement would result in unnecessary hardship, permitting the use of explosives in a manner otherwise prohibited by this chapter.

**Violation** shall mean the failure to be in full compliance with any of the provisions of this chapter.

*(Ord. No. 19947)*

## Section 1302. Scope.

The provisions of this chapter shall apply to and be binding upon every person who seeks to use explosives on lands within the City unless exempted herein. The provisions of this chapter are intended to be consistent with the requirements pertaining to explosives in the most current BOCA National Fire Prevention Code ("Fire Prevention Code"), published by the Building Officials and Code Administrators International, Inc.; the State of Oklahoma Explosives and Blasting Regulation Act, 63 O.S.Supp.1999, §§ 122.1, *et seq.*, amendments thereto, and implementing regulations thereof; and the Oklahoma Underground Facilities Damage Prevention Act, 63 O.S.1991, §§ 142.1, *et seq.*, and amendments thereto.

Unless specifically exempted, a blasting permit as required by this chapter shall be obtained prior to any person detonating explosives within the City. A blasting permit shall not be required for bona fide quarries or mining operations which constitute the principal

use of any lot or tract of ground in the City and which meet the requirements of the Oklahoma Mining Commission and the Zoning Code of the City of Tulsa. Additionally, entities exempt from state of Oklahoma regulation pursuant to Section 123.8 of the Oklahoma Explosives and Blasting Regulation Act are exempt from the requirements of this chapter; provided, however, that all contractors using explosives in the performance of work for the City must obtain a blasting permit and comply with the provisions of this chapter.

*(Ord. No. 19947)*

**Section 1303. Blasting permits.**

**A. General Requirements.** Application for a blasting permit required under this chapter shall be submitted to the Director of Public Works. The application shall be on a form furnished by the Director, and shall include the following information:

**1.** A written description of the purpose of the proposed blasting; and

**2.** Current blasting permit issued by the Oklahoma Department of Mines and applicable to the project for which application is being made; and

**3.** A copy of the blasting plan submitted with the current blasting permit issued by the Oklahoma Department of Mines; and

**4.** A current copy of the state of Oklahoma blaster's certification which discloses the blaster's certification number and date of expiration for the blaster who will supervise all blasting operations; and

**5.** A development site plan consisting of the following:

**a.** A project map or aerial photo to scale which depicts the site to be blasted and all real property within seven hundred (700) feet of the blasting area as calculated pursuant to the requirements of this chapter; and

**b.** Proposed location of seismographic instruments. Two seismographic instruments are required. Their proposed location shall be shown on the project map. The seismographs shall have a frequency response from 2 to 250 hertz, within -3 dB at 2 hertz. The accuracy shall be +/-5 or +/-0.02 in./sec., whichever is larger, between 4 and 125 hertz; and

**6.** Proposed blasting schedule; and

**7.** A copy of the City Fire Marshal permit issued for the blasting project for which application is being made, together with the proof of insurance required in support of such permit; and

**8.** A certificate of blasting liability insurance coverage as required by the Oklahoma Explosives and Blasting Regulation Act and implementing regulations thereof. The amount shall not be less than One Million Dollars ($1,000,000.00) per occurrence to become available for the payment of all damages to persons or property which may arise from, or be caused by, the conduct of any act of blasting. The insurance certificate must be executed by a company licensed to do business in the state of Oklahoma and name the City of Tulsa as an additional insured; and

**9.** A Fifty Dollar ($50.00) non-refundable application fee. This requirement shall be waived for a contractor who is performing blasting work pursuant to a contract with the City.

**10.** A statement that the applicant has complied with the Oklahoma Underground Facilities Damage Prevention Act, 63 O.S.1991, §§ 142.1, *et seq.*, and amendments thereto. This statement shall specifically verify that any notice required by Section 142.6 of that Act has been mailed to all operators of Underground Facilities having Underground Facilities located within three hundred (300) feet of the blasting site at least three (3) days before the permit application was submitted to the Director.

**B. Inactive Permit Application Denial.** Failure of an applicant to provide all the information required by this section within sixty (60) days of beginning the application process shall result in denial of the application unless an extension is granted in writing by the Director.

**C. Permit Issuance.** Once the application has been approved and the permit fee paid, the Director shall issue the blasting permit. The permit shall be signed by the Director and shall expire thirty (30) days after the projected completion date.

**D. Denial.** Denial of a blasting permit shall be accompanied by a statement of the reasons for the denial.

**E. Transfer.** A blasting permit shall not be transferable either from one location to another, or from one person to another.

*(Ord. No. 19947)*

**Section 1304. Administrative procedures.**

**A. Permit Fees.** Permits authorized by the provisions of this chapter shall be effective only upon payment of a fee of Fifty Dollars ($50.00) for each day of blasting projected in the permit application. This requirement shall be waived for a contractor who is performing blasting work pursuant to a contract with the City.

**B. Blasting Permit Duration.** The blasting permit shall show on its face the expiration date, which shall be thirty (30) days after the estimated time of completion provided by the permittee in his application. A blasting permit shall automatically expire if the authorized work is not commenced within six (6) months after issuance of the permit or if the authorized work is suspended or abandoned for a period of six (6) months after the time of commencing the work, unless an extension has been granted in writing by the Director. One six (6) month extension will be routinely granted upon written application by the permittee.

*(Ord. No. 19947)*

**Section 1305. Standards for blasting permits.**

The requirements established within this section apply to the blasting area as depicted in the site plan submitted by the permittee as part of his application. A permittee shall perform both pre-blast and post-blast surveys upon request. A holder of a blasting permit shall adhere to the following:

**A.** Permittees shall perform pre-blast surveys upon the request of the affected property owner or his representative. The pre-blast survey shall consist of conducting or providing for inspections on structures within the blasting area. The pre-blast survey shall document any damage to and other physical factors of the structure that could reasonably be affected by the blasting.

**B.** The post-blast survey shall consist of conducting or providing for inspections of structures within the pre-blast survey area. The post-blast survey shall document any changes to or differences in the surveyed structure from the pre-blast survey. Permittees shall perform post-blast surveys when requested by persons previously having had a pre-blast survey performed under the same blasting permit. The post-blast survey shall be requested within thirty (30) days after blasting has been completed.

**C.** The cost of the pre-blast and post-blast surveys shall be paid by the permittee directly to the individual or organization which is hired to perform the surveys. Pre-blast and post-blast surveys shall be performed by an individual or organization who has expertise in the assessment of the impact of blasting on structures. The Director shall develop administrative regulations for the approval of inspectors and maintain a list of all such approved inspectors.

**D.** At the beginning of each blasting project the permittee shall perform test blasting to determine the amount of blasting charge required to limit the peak particle velocity to two (2.0) inches per second at the closest structure.

**E.** The permittee shall abide by the standards required in the most current BOCA National Fire Prevention Code ("Fire Prevention Code") published by the Building Officials and Code Administrators International, Inc.

**F.** The permittee shall abide by the State of Oklahoma Explosives and Blasting Regulation Act and implementing regulations thereof.

**G.** Except as otherwise authorized herein, the allowable ground vibration and airblast levels resulting from the detonation of explosives are:

1. **Ground Vibration.** Maximum peak particle velocity for ground vibration shall not exceed two (2.0) inches per second at the closest structure. A seismograph record shall be required for each blast. The maximum peak particle velocity shall be the largest peak particle velocity exhibited by three (3) mutually perpendicular components.

2. **Airblast.** Levels shall not exceed, at anytime, the prescribed limits of the Oklahoma Explosives and Blasting Regulation Act and implementing regulations thereof.

**H. Flyrock.** When blasting operations are performed pursuant to a permit issued under this chapter within three hundred (300) feet of any structure, railway or highway, the blast shall be designed to prevent flyrock from being thrown onto the structure, railway or highway. The blaster shall comply with the Oklahoma Explosives and Blasting Regulation Act and implementing regulations thereof regarding flyrock.

**I.** A certified blaster and the Director shall be present during the firing of all blasts.

**J.** The permittee shall notify all property owners in the blasting area that a pre-blast survey is available to them. This notice shall be sent by certified mail, return receipt requested, at least ten (10) working days prior to the anticipated start of the blasting. The notice shall explain that a pre-blast survey is available, and give instructions for scheduling the survey. The notice shall state the anticipated dates of the blasting and specify the blasting location. The certified mail receipts stamped by the U.S. Postal Service or an affidavit wherein the permittee swears that the notification required by

this section has been made and the list of property owners in the blasting area from County tax records shall be furnished to the Director as proof of compliance with this requirement.

**1.** If the dates of blasting are changed following the notice required by this section, then a notice which specifies the revised dates of blasting shall be mailed to property owners in the blasting area in sufficient time to provide them forty-eight (48) hours notice of the blasting.

**2.** The permittee shall also give notice of his intent to blast by posting a notice at the blasting site at least seven (7) calendar days before the date of the proposed blasting. The notice shall state:

**a.** The dates and anticipated duration of blasting, and place of the proposed blasting; and

**b.** Who will conduct the proposed blasting, identified by the name of a contact person, a physical address and a telephone number; and

**c.** Instructions on how the reader can contact the blaster and the Director, including a physical address and a telephone number.

**K.** Except as otherwise authorized by the Director for good cause shown, all blasting activities shall be limited to daylight hours, but no later than 7:00 p.m., Monday through Saturday.

**L.** The permittee shall monitor any blasting that occurs within the blasting area. Such monitoring must be overseen by a certified blaster and shall measure blast-induced vibration by means of an instrument that senses and records particle velocity in three (3) mutually perpendicular axes. Sound levels shall also be recorded. Violation of the ground vibrations or airblast levels shall be reported to the Director immediately.

**M.** The Director may conduct tests and shall observe any authorized blasting operations.

**N.** The permittee shall maintain a record of each blast. All records shall be maintained in conformance with the Oklahoma Explosives and Blasting Regulation Act and implementing regulations thereof. In addition, the permittee shall maintain evidence of the notifications required by this section. These records shall be available for inspection by the Director for a period of three (3) years following expiration of the blasting permit.

**O.** The permittee shall keep the blasting permit under file at the site or on display at all times where the blasting operation is located and shall make such permit readily available for inspection by the Director.

*(Ord. No. 19947)*

### Section 1306. Permit suspension and revocation.

A blasting permit may be revoked or suspended immediately upon occurrence of any of the following events:

**A.** A violation of any condition of the permit; or

**B.** A violation of any provision of this chapter or any other applicable law, ordinance, rule or regulation pertaining to the blasting project for which the permit is issued; or

**C.** The existence of any condition or doing of any act constituting fraud, or creating a nuisance or hazard, or endangering human life or the property of others.

**D. Notice and Order of Revocation or Suspension.** Upon the occurrence of any of the events above listed, the Director may cause to be served upon the permit holder a notice and order immediately suspending or revoking the permit, specifying the grounds for the suspension or revocation, and advising the holder that he is entitled to a hearing before the Director at a time, place and date specified in the notice and order, and further advising the holder that if the holder fails to appear at the time, place and date therein specified, the Director's order for suspension or revocation of the holder's permit shall be final. The date of the hearing shall be no later than five (5) working days from the date of suspension or revocation.

**E. Hearing Before the Director.** At the hearing before the Director, the permit holder shall be afforded the opportunity to respond to the charges of the Director and to present information to show why his permit should not be revoked or suspended. After such hearing, the Director may either affirm, modify or reverse his order for suspension or revocation of the holder's permit, and shall notify the holder in writing of his decision within five (5) working days of the date of the hearing. The Director's decision shall be final unless the permit holder appeals the decision to the City Council as provided herein.

**F. Appeals.** An appeal shall be made by written notice filed with the City Clerk within ten (10) days of the decision of the Director. If no appeal is taken to the City Council as herein provided, the decision of the Director shall be final.

**G. Service.** Notices and orders required by this subsection shall be served upon each party concerned, either personally or by certified mail, addressed to the individual contracting party or permit holder at the address given on the permit application filed with the Director.

**H. Stop Work Order.** Upon the suspension or revocation of a blasting permit by the Director, the Director may issue a stop work order on all construction activity on the subject property which is related to the blasting and which is being performed pursuant to the suspended or revoked blasting permit.

**I. Future Eligibility.** Any permittee who has had his blasting permit revoked pursuant to this chapter shall not be eligible for another blasting permit for a period of one (1) year following such revocation.

*(Ord. No. 19947)*

## Section 1307. Appeals and variances.

**A. Appeals.** Any person who is aggrieved by a decision, requirement, ruling or interpretation of this chapter may request review thereof by the Director. The determination of the Director may be appealed to the City Council by written notice of appeal filed with the Office of the City Clerk within ten (10) days of decision by the Director.

**B. Variances.** The Director may grant one (1) or more variances from the terms of this chapter upon application and good cause shown by an applicant or permittee. A variance will only be granted if it will not cause detriment to the public good, safety or welfare, nor be contrary to the spirit, purposes and intent of this chapter where by

reason of unique and exceptional physical circumstance or condition of a particular property, the literal enforcement of the requirements of this chapter will result in an unreasonable hardship.

**1.** Application for a variance shall be made by the filing of a written request with the Director. Variances shall be granted only upon:

**a.** Showing of good and sufficient cause; and

**b.** A finding that failure to grant the variance would result in unreasonable hardship to the applicant or permittee; and

**c.** A finding that the granting of a variance would not result in additional threats to public safety, extraordinary public expense, creation of a nuisance, fraud or victimization of the public or conflict with existing local laws or ordinances.

Upon consideration of these factors, the Director may attach such conditions to the granting of a variance as he deems necessary to ensure compliance with the purpose and objectives of this chapter.

**C. Appeal and Variance Process.** Upon accepting a notice of appeal or an application for a variance, the Director shall:

**1.** Require the appellant or applicant to furnish the names and mailing addresses of all owners of the blasting site property and of all owners of the property within the blasting area as shown by County tax records; and

**2.** Schedule a hearing date before the Director within thirty (30) days of the application; and

**3.** Mail written notices to all owners of the blasting site property and to all owners of the property within the blasting area indicating that an appeal or variance has been requested and when a hearing will be held.

*(Ord. No. 19947)*

### Section 1308. Penalties.

**A. Penalty.** Unless otherwise provided herein, every person, firm, corporation or other legal entity violating any of the provisions of this chapter or conditions made pursuant thereto shall be guilty of an offense and, upon conviction, thereof shall be punished by imprisonment in the City jail for a period of not more than ninety (90) days and/or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs.

**B. Fine or Imprisonment not Exclusive Remedies.** In addition to fine or imprisonment, the City may institute appropriate actions or proceedings at law or equity to enforce the provisions of this chapter to correct violations thereof. The conviction and punishment of any person hereunder shall not relieve the person of the responsibility to correct prohibited conditions or to remove prohibited buildings, structures, obstructions or improvements nor prevent the enforcement, correction or removal thereof.

*(Ord. No. 19947)*

### Section 1309. Warning and disclaimer of liability.

The City recognizes that, although the degree of control on explosive detonation required by this chapter is considered reasonable for regulatory purposes and is based on scientific and engineering considerations, on rare occasions excessive airblast overpressures, ground

vibrations and dust can and will occur. These provisions do not imply that land outside the blasting areas or that uses permitted within such areas will be free from damages. These provisions shall not create liability on the part of the City or any officer or employee thereof for any blasting damages that result from reliance on this chapter or any administrative decision lawfully made thereunder.

*(Ord. No. 19947)*

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# CHAPTER 14. LICENSING OF SIGNS WITHIN THE CENTRAL BUSINESS DISTRICT RIGHTS-OF-WAY

Section 1400. Grant of license for signs within Central Business District rights-of-way.
Section 1401. Definitions.
Section 1402. Application.
Section 1403. Restrictions and conditions.

## Section 1400. Grant of license for signs within Central Business District rights-of-way.

Any sign as defined in this chapter shall, subject to the provisions of this chapter, be licensed and permitted by the City to be installed, used and maintained within public rights-of-way located in the Central Business District, without entering into a separate license and removal agreement with the City. The provisions of this chapter are enacted by the City Council consistent with the authority granted by the City's 1989 Amended Charter and Amendments, Article VIII, Section 13, "Permits". As such, the license issued pursuant to this ordinance shall be revocable by the Council at will.

*(Ord. No. 22419, § 1, 4-21-2011)*

## Section 1401. Definitions.

As used in this chapter:

**Central Business District:** Central Business District shall mean that area of land lying within the Inner Dispersal Loop (IDL), Tulsa, Oklahoma, bounded by a street network on the east by the east leg of the IDL, part of U.S. Highway 75 South/ Interstate Highway 444 (I-444); on the west by U.S. Highway 64 West/ Oklahoma State Highway 51 West/ Interstate Highway 244 (I-244); on the north by U.S. Highway 412 East/ I-244; and on the south by the Broken Arrow Expressway, U.S. Highway 64 West/U.S. Highway 75 South/ Oklahoma State Highway 51 West, part of I-444.

**Rights-of-way:** Rights-of-way shall mean the surface, the airspace above ground, and the area below the surface of any public street, highway, parkway, lane, path, alley, sidewalk, boulevard, drive, bridge, tunnel, adjacent easement, or similar property in which the city now or hereafter holds a property interest or a maintenance responsibility.

**Sign:** Sign shall mean only a "projecting sign", a "roof sign", or a "wall sign" as defined in Title 42 Tulsa Revised Ordinances, "Zoning and Property Restrictions".

*(Ord. No. 22419, § 1, 4-21-2011)*

## Section 1402. Application.

Any person requiring a license to permit a sign in rights-of-way located within the Central Business District shall make application for a sign permit as required in Title 51 Tulsa Revised Ordinances, "Building Code", Section 3107 *et seq*.

*(Ord. No. 22419, § 1, 4-21-2011)*

## Section 1403. Restrictions and conditions.

The following restrictions and conditions shall apply and be made a part of the permit authorizing the use of Central Business District rights-of-way for placement of a sign:

**A.** No sign shall be placed so as to interfere with pedestrian or vehicular traffic along any rights-of-way;

**B.** No maintenance costs associated with the sign shall be paid by the City;

**C.** The City shall bear no cost of future maintenance of that portion of the rights-of-way impacted by the placement of a sign and such maintenance shall be the exclusive responsibility of the owner of the land to which the sign is attached, or on which the sign is located;

**D.** No liability for property damage or personal injury arising out of the installation or maintenance of the sign placed in the rights-of-way shall attach to the City, but shall be the exclusive responsibility of the owner of the land to which the sign is attached, or on which the sign is located;

**E.** Permission for the placement of a sign as authorized in this chapter does not waive any privileges or rights in favor of the City, public utilities or franchise holders, their agents, servants and employees in, to or under the subject rights-of-way;

**F.** In the event it becomes necessary for any public purpose, including but not limited to construction, installation, maintenance, repair or discontinuance of utilities over, upon or in the rights-of-way occupied or impacted by a sign, in whole or in part, to remove the sign for the reason that it interferes with the privileges or rights of the City, its agents, servants and employees, including public utilities companies or franchise holders, the sign shall be timely removed by the owner of the land to which the sign is attached, or on which the sign is located. In the event the removal is not accomplished as required in this subsection, the sign may be removed by the City, its agents, servants or employees, including public utility companies, franchise holders, or their independent contractors, at the expense of the person who is the owner of the land to which the sign is attached, or on which the sign is located;

**G.** The owner of the land to which the sign is attached, or on which the sign is located, shall defend any and all claims, liabilities, suits at law or equity brought against the City, its agents, servants or employees, including public utility companies or franchise holders, resulting from the operation, construction, installation or maintenance of such sign by the owner or third parties, and shall further indemnify the City, its agents, servants or employees, including public utility companies and franchise holders, for any damages suffered as a result thereof.

*(Ord. No. 22419, § 1, 4-21-2011)*

## CHAPTER 15. SIDEWALK CAFE AND TABLE AND CHAIR PERMITS IN THE RIGHT-OF-WAY

Section 1500. Purpose and intent of this chapter.
Section 1501. Delegation of authority to grant licenses for sidewalk cafes and table and chair area seating.
Section 1502. Definitions.
Section 1503. Permit required.
Section 1504. Permit application.
Section 1505. Site plan requirements.
Section 1506. Operations.
Section 1507. Proof of insurance and indemnity.
Section 1508. Permit administration and issuance.
Section 1509. Appeal.
Section 1510. Temporary sidewalk café.

### Section 1500. Purpose and intent of this chapter.

It is the purpose and intent of this chapter to protect public safety, to maintain safe and ready availability of City rights-of-way to the general public, and to permit local eating and drinking establishments to provide sidewalk seating for their customers and others, thereby contributing to a vital, walkable, healthy city, while setting policies, articulating safeguards, and streamlining procedures for the issuance of permits by Staff.

*(Ord. No. 23920, § 1, 5-23-2018; Ord. No. 24436, § 1, 9-2-2020)*

### Section 1501. Delegation of authority to grant licenses for sidewalk cafes and table and chair area seating.

The City Council hereby delegates to staff the authority to permit a sidewalk café, or table and chair area to be installed, used and maintained within a public right-of-way, as provided in City Charter, Article VIII, Section 13, "Permits", without the need for a prolonged separate license and removal contract with the City, so long as it conforms to policies and safeguards established by this chapter, and does not unreasonably interfere with the public's use of the public right-of-way. Any license issued pursuant to this chapter shall be revocable by the City at will.

*(Ord. No. 23920, § 1, 5-23-2018; Ord. No. 24436, § 1, 9-2-2020)*

### Section 1502. Definitions.

**A. ABLE Commission** means the Alcoholic Beverage Laws Enforcement Commission, an agency of the State of Oklahoma.

**B. Health Department** means the Tulsa Health Department.

**C. Manual** is a booklet of policies, specifications and requirements, prepared by staff, which must be complied with before a sidewalk café or table and chair permit can be issued.

**D. Permit (also known as a license)** is written authorization by the Tulsa Planning Office, or its successor, to a business or individual, to occupy or use portions of the right-of-way for a private purpose; provided such use does not unreasonably interfere with the public use thereof. Permits shall be revocable at the will of the City.

**E. Right-of-way (or rights-of-way)** means the surface, the airspace above ground, and the area below the surface of any public street, highway, parkway, lane, path, alley, sidewalk, boulevard, drive, bridge, tunnel, adjacent easement, public place or similar property which is open for public use and in which the City of Tulsa now or hereafter holds a property interest or a maintenance responsibility.

**F. Sidewalk café** means an open-air seating area located on a sidewalk directly adjacent to a business. A sidewalk café is operated by the adjacent business and allows for food and beverages to be served outside of the establishment through seating that is restricted to patrons of the establishment exclusively. A sidewalk café can be surrounded by a fence or other perimeter to define and separate it from the pedestrian zone as permitted or required by ordinance, state law and the regulations of the ABLE Commission. A sidewalk cafe operator that desires to serve alcohol must be in compliance with all ABLE requirements. The sidewalk café and its furnishings are maintained by the establishment.

**G. Staff:** Personnel of the Tulsa Planning Office and/or City of Tulsa whose duties include reviewing sidewalk café and table and chair permit applications and all required documentation to ensure compliance with the programs.

**H. Table and chair (or table and chair area)** means a type of outdoor seating located on the City's right-of-way and permitted by the City of Tulsa. Table and chair area does not offer table service to users, it is not separated by a fence or other perimeter from the pedestrian zone, and the furniture is available for use by the general public. The furniture comprising the table and chair area is maintained by the establishment.

**I. Temporary sidewalk café** means open-air seating located on a sidewalk directly adjacent to a business on a short-term basis. A temporary sidewalk café is operated by the adjacent business and allows for food and beverages to be served outside of the establishment through seating that is restricted to patrons of the establishment exclusively. Temporary sidewalk café permits shall not be issued for more than a one hundred twenty-day period per applicant. In the event the Mayor declares a civil emergency, the Council may waive or extend the one hundred twenty-day time limitation only for the duration of the civil emergency declaration.

**J. Tulsa Planning Office** means department of the Indian Nations Council of Governments (INCOG) which administers the zoning and land-use planning processes for the City of Tulsa and staffs the Tulsa Metropolitan Area Planning Commission and the City of Tulsa Board of Adjustment. The Tulsa Planning Office is located within the offices of INCOG.

*(Ord. No. 23920, § 1, 5-23-2018; Ord. No. 24436, § 1, 9-2-2020)*

## Section 1503. Permit required.

No person shall operate or maintain a sidewalk café, or table and chair area, without first obtaining a permit from the Tulsa Planning Office, or through the self-certification process for a temporary sidewalk café. Staff shall produce, and shall distribute to permit applicants, a manual of parameters, terms and conditions which must be satisfied by applicants before a permit may issue. Sidewalk café permits and table and chair permits may not be transferred or assigned.

*(Ord. No. 23920, § 1, 5-23-2018; Ord. No. 24436, § 1, 9-2-2020)*

## Section 1504. Permit application.

An individual or business seeking a sidewalk café permit or table and chair permit shall submit to the Tulsa Planning Office the following documents, as determined by staff:

**A.** Application form.

**B.** Responsible party agreement.

**C.** Property owner consent.

**D.** Site plan (per Section 1505, below), with photographs (three (3) minimum).

**E.** Current certificate of insurance and endorsement.

**F.** Authorization from the Health Department (for outdoor food service).

**G.** Application fee, as provided in Title 49 Tulsa Revised Ordinances (see Fee Chart in Manual).

**H.** Extension of premises drawing to ABLE (if serving alcohol).

**I.** Pictures or brochures of proposed furniture.

An individual or business seeking a temporary sidewalk café permit shall complete a self-certification form and submit items C., E., F., G., and H. of Section 1504, as well as at least three (3) photographs of the proposed temporary sidewalk café location, with at least one (1) photograph showing the view from the street directly in front of the proposed location, and one (1) photograph from each side of the proposed temporary sidewalk café location showing the sidewalk view each direction.

*(Ord. No. 23920, § 1, 5-23-2018; Ord. No. 24436, § 1, 9-2-2020)*

## Section 1505. Site plan requirements.

Each application, with the exception of temporary sidewalk cafés, shall be accompanied by a site plan, containing the information below. The purpose of the site plan is to demonstrate compliance with all layout requirements. All standards must be met, for an application to be approved. The site plan must show:

**A.** Location of existing street fixtures and utilities (e.g., utility poles, vaults, manholes, parking pay stations, bus shelters, sign posts, tree pits) and their distance from the nearest edge of the proposed area of operation. Contact with OKIE811 or other underground utility location service may be necessary.

**B.** Width of the adjacent sidewalk (from face of building to back of curb).

**C.** Distance from the proposed area of operation to the nearest intersection. Area must be in compliance with "sight-distance triangle" requirements found in Title 24 TRO, "Nuisances" Section 103.

**D.** Name and location of adjoining streets and alleys.

**E.** North arrow and scale.

**F.** Proposed location of all associated elements including tables, fencing, umbrellas, planters, chairs and signage, and shall demonstrate that such elements do not impair pedestrian passage.

**G.** An unobstructed corner-curb-radius area, unless the Traffic Engineer determines that the area outside of the pedestrian zone is not required to facilitate pedestrian movement.

**H.** A pedestrian zone at least five (5) feet wide is required. Staff may require a larger pedestrian zone as conditions warrant.

**I.** Distances, which shall provide: Five (5) feet from bus stop, handicapped parking, commercial loading zone, parking meter, pay station, traffic sign, utility pole, bike rack, and other street fixture, and curb ramp. Fire hydrants must comply with Title 13 TRO, "Fire Department" Section 202.

**J.** Area of operation (shown with dashed line around sidewalk cafe or table and chair area).

**K.** Adjacent building façade and door swing (including name labels and dimensions for both).

**L.** The clear path of travel from a building exit, which shall be at least three (3) feet wide or the width of the building exit door, whichever is wider. The path of travel from the building exit door to the sidewalk shall be free of obstructions.

**M.** ABLE requirements, if applicable (sidewalk café only).

**N.** Pictures or brochures of proposed furniture.

**O.** Seating platforms are not encouraged. Sidewalk sites that require leveling due to site topography shall be considered on a case-by-case basis, and additional permitting may be required. Any platform must comply with Federal ADA Design Standards.

*(Ord. No. 23920, § 1, 5-23-2018; Ord. No. 24436, § 1, 9-2-2020)*

**Section 1506. Operations.**

**A.** The proposed sidewalk café or table and chair area activity shall not violate the Americans with Disabilities Act.

**B.** Amplified sound may not exceed sixty-five (65) decibels within the area of operation. Sound equipment must be installed temporarily within the area of operation and may not encroach into any path of travel.

**C.** The permittee shall not locate electrical lines overhead or on the ground surface where the public has access to the public place.

**D.** Staff may, as deemed appropriate, condition the sidewalk café permit or table and chair permit to address the:

**1.** Fencing and/or furniture, which shall be kept in good repair, and in a clean and safe condition.

**2.** Hours of operation and days of use.

**3.** Impacts associated with the sidewalk café or table and chair area activity from: Lighting, noise, or the placement of signage, furniture, or equipment.

**4.** Need for repairs or improvements to the public place in order to accommodate the sidewalk café or table and chair area to ensure access to the use complies with the Americans with Disabilities Act; or

**E.** Unless expressly authorized by the staff, no public place surface shall be broken or disturbed, and no permanent fixture of any kind shall be installed in or on the public place in connection with a sidewalk café or table and chair area.

*(Ord. No. 23920, § 1, 5-23-2018; Ord. No. 24436, § 1, 9-2-2020)*

## Section 1507. Proof of insurance and indemnity.

The applicant shall provide a certificate of insurance evidencing at least One Million Dollars ($1,000,000.00) of commercial general liability insurance coverage, per occurrence, while the permit is in effect, including potential claims for bodily injury, death, or disability and property damage which could occur at or be related to either the sidewalk café or table and chair area. The insurance policy shall be issued by an insurance company licensed to do business in the State of Oklahoma. Each policy shall provide by endorsement that thirty (30) days' prior written notice of cancellation shall be delivered by the insurer to the City of Tulsa, except that ten (10) days' prior written notice of cancellation shall be provided by the insurer to the City of Tulsa for nonpayment of premium. All certificates of insurance submitted must be approved by the Tulsa Planning Office. Any deficient certificates of insurance must be corrected as required by the Tulsa Planning Office. If any issue arises as to insurance coverage submitted which cannot be resolved by the Tulsa Planning Office, the matter shall be referred to the Office of the City Attorney for review and further requirements.

The applicant shall agree to indemnify and hold the City of Tulsa, its officials, officers, employees, and agents harmless against any liability, claims, causes of action, judgments, or expenses, including reasonable attorney fees, resulting directly or indirectly from any act or omission of the permittee, its subcontractors, anyone directly or indirectly employed by them, and anyone for whose acts or omissions they may be liable, arising out of the applicant's use or occupancy of the public place.

*(Ord. No. 23920, § 1, 5-23-2018; Ord. No. 24436, § 1, 9-2-2020)*

## Section 1508. Permit administration and issuance.

Staff shall review the application and may request correction, clarification or further information. Staff shall visit the site to ensure the layout meets standards. After review is complete, Staff will either:

Approve the application;

Approve the application with modifications. Modifications could include dimensional changes or repair of existing sidewalks in advance of café installation; or

Deny the application.

The sidewalk café or table and chair area cannot be installed until all applicable fees have been collected and an approved sidewalk café permit or table and chair permit has been issued, or until a temporary sidewalk café self-certification form has been submitted to the Tulsa Planning Office together with all other documentation required by Section 1504 of this chapter. Businesses applying for a temporary sidewalk café permit may commence operations on a provisional basis upon submission of a complete self-certification form to the Tulsa Planning Office and all other documentation required by this chapter or the manual, including insurance certificate. Upon staff review and approval of the self-certification form, insurance certificate, photographs of the proposed temporary sidewalk cafe location, payment of required fees, and any other requirements set forth in this chapter or the manual, staff may issue a temporary sidewalk cafe permit. The applicant shall also submit photographs of the temporary sidewalk cafe location from each side of the sidewalk cafe to the Tulsa Planning Office within five (5) calendar days after installation of the same. A temporary sidewalk cafe permit may be suspended or revoked by the Tulsa Planning

Office if a temporary sidewalk cafe is not in compliance with this chapter or the manual, and such compliance is not achieved within twenty-four (24) hours after notice of such deficiency is delivered by the Tulsa Planning Office to the operator of the temporary sidewalk cafe. Staff will make a visit to the self-certified temporary sidewalk cafe site to view existing site conditions and can require changes to ensure compliance with program requirements.

A decision will be made no later than thirty (30) days after application submission for a sidewalk café and/or table and chair area annual permit. Upon approval, a post-approval inspection will be made by staff within sixty (60) days after approval. The permit must be kept on-site and made available to be viewed upon request.

A sidewalk café permit or table and chair permit expires if: The business changes ownership; if the permit duration expires; any terms or conditions of the permit are violated, or permit fees are not paid as required. All permit-related furniture shall be removed from the public right-of-way when the permit expires.

All sidewalk café permits or table and chair permits authorized by this chapter are of a temporary nature, vest no permanent rights, and are revocable as provided for in Article VIII, Section 13 of the City Charter. Staff may suspend any sidewalk café permit or table and chair permit for transportation mobility or public safety purposes; or to coordinate with: Permitted special events, parade permits or any other permitted activity.

*(Ord. No. 23920, § 1, 5-23-2018; Ord. No. 24436, § 1, 9-2-2020)*

**Section 1509. Appeal.**

Any aggrieved party ("aggrieved party" being an adjacent business or property owner within three hundred (300) feet of the proposed sidewalk café or table and chair location, or an applicant whose sidewalk café or table and chair application was denied and referred to in this subsection as "appellant") may request a review or reconsideration of a permit decision. A request for reconsideration of a permit decision shall be made to the Tulsa Planning Office, by submitting a reconsideration application in such form as approved by the Tulsa Planning Office within ten (10) calendar days after the date of the original permit decision or the appeal will not be acted upon. The appellant must: (1) identify the Permit application that is requested for reconsideration by the Permit number and the address of the sidewalk café or table and chair area as set forth in the permit application; (2) the specific objections to the original decision of the Tulsa Planning Office; and (3) the specific actions being proposed by the applicant/appellant that could change the permit decision. A decision concerning the reconsideration of a permit decision shall be made within fifteen (15) business days by the Director of the Tulsa Planning Office, or their designee, after the application for reconsideration is received. The Director of the Tulsa Planning Office, or their designee, shall either affirm the original permit decision or shall reverse the original permit decision. If the original permit decision is affirmed after reconsideration, the appellant may appeal the permit decision to the City Council by submitting a complete appeal application in such form as is approved by the City of Tulsa to both the Tulsa Planning Office and the Office of the City Clerk. The appeal of reconsideration of a permit decision must be submitted in writing within ten (10) calendar days of the date of the reconsideration decision, or such appeal will not be heard by the City Council. The appellant must: (1) identify the permit application that is the subject of the appeal by the

permit number and the address of the sidewalk café/table and chair area as set forth in the permit application; (2) the specific objections to the original decision of the Tulsa Planning Office; and (3) if applicable, the specific actions being proposed by the applicant/appellant that could change the permit decision. The City Council will schedule the appeal within thirty (30) calendar days after the appeal is received by the City Clerk.

*(Ord. No. 23920, § 1, 5-23-2018; Ord. No. 24436, § 1, 9-2-2020)*

## Section 1510. Temporary sidewalk café.

Temporary sidewalk cafés shall be in strict compliance with the requirements set forth for temporary sidewalk cafés in this chapter, as well as other requirements or restrictions set forth in the manual. An Applicant shall prepare and submit a complete temporary sidewalk café self-certification form and shall attest and affirm that the applicant meets all requirements and is responsible for and will adhere to these requirements for the duration of the temporary sidewalk café permit. Staff will make a visit to the self-certified temporary sidewalk cafe to view existing site conditions and can require changes to ensure compliance with this chapter and the manual. A temporary sidewalk café permit may be suspended or revoked by the Tulsa Planning Office if a temporary sidewalk café is not in compliance with this chapter and the manual, and such compliance is not achieved within twenty-four (24) hours after notice of such deficiency is delivered to the applicant or permit holder by the Tulsa Planning Office.

*(Ord. No. 23920, § 1, 5-23-2018; Ord. No. 24436, § 1, 9-2-2020)*

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## CHAPTER 16. SMALL WIRELESS COMMUNICATIONS FACILITIES*

Section 1600. Purpose.
Section 1601. Definitions; equivalent terms.
Section 1602. State law governs; City of Tulsa Permitting Authority.
Section 1603. Fees.
Section 1604. City of Tulsa's right-of-way occupancy.
Section 1605. Small wireless communications facilities mounted on City of Tulsa poles.
Section 1606. Small wireless communications facilities subject to City Zoning, when.
Section 1607. Underground placement.
Section 1608. Underground damage prevention.
Section 1609. Repair and restore.
Section 1610. Historic districts.
Section 1611. Processing of permit; time limits.
Section 1612. Denial of permit; reasons for denial.
Section 1613. Rescission after approval.
Section 1614. Emergency.
Section 1615. Duty to indemnify, defend and hold harmless.
Section 1616. Insurance.
Section 1617. Identification on pole or other structure.
Section 1618. Abandoned facilities.
Section 1619. Change in ownership.
Section 1620. Reference not exclusive.
Section 1621. Waiver of underground requirements.
Section 1622. Appeal to the City Council.

### Section 1600. Purpose.

The purpose of this chapter is to provide for the efficient, fair and safe placement and regulation of small wireless communications facilities within the City of Tulsa, in accordance with the Oklahoma Small Wireless Facilities Deployment Act, Title 11 Oklahoma Statutes, Sections 36-501 through 36-512, as amended from time to time (herein referred to as the "State Act"), and Final Rules of the Federal Communications Commission ("FCC"), adopted September 26, 2018.

*(Ord. No. 24060, § 1, 12-5-2018)*

### Section 1601. Definitions; equivalent terms.

The City of Tulsa adopts the definitions as set forth in Section 36-502 of the State Act, with the following exceptions: the term "small wireless communications", when used herein, shall have equivalent meaning to "small wireless" used in the State Act. The terms "locate", "attach" and "install", when used in this chapter, shall have equivalent meaning to "collocate" used in the State Act.

*(Ord. No. 24060, § 1, 12-5-2018)*

### Section 1602. State law governs; City of Tulsa Permitting Authority.

The City of Tulsa hereby adopts the State Act as governing small wireless communications facilities within the City of Tulsa. The City of Tulsa reserves the right to require providers

***Editor's note—**Ordinance No. 24060, § 1, adopted December 5, 2018, added a new chapter 15. However, such chapter has been designated as herein set out in this Title 11. Therefore, such ordinance has been redesignated as chapter 16.

of small wireless communications (that is, infrastructure providers and services providers) to obtain all applicable permits, including, but not limited to, zoning approval per Section 36-509, and building, right-of-way occupancy, and electrical permits, as authorized in subsections D. and E. of Section 36-504 and elsewhere in the State Act.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1603. Fees.**

As provided in Section 36-506 of the State Act, the application and permit fees for attachment of small wireless communications facilities to an existing or replacement City-owned pole shall be Two Hundred Dollars ($200.00) each for the first five small wireless communications facilities on the same application and One Hundred Dollars ($100.00) for each additional small wireless communications facility on the same application. The application and permit fees for the installation, modification or replacement of a utility pole and the attachment of an associated small wireless communications facility thereto shall be Three Hundred Fifty Dollars ($350.00) per pole for access to the right-of-way. The annual rate for occupancy of the right-of-way, including attachment of small wireless communications facilities to City-owned poles, shall be Twenty Dollars ($20.00) per small wireless communications facility. There shall be no rate charged for the installation, placement, maintenance, operation or replacement of micro wireless communications facilities that are strung on cables between existing utility poles, in compliance with the National Electrical Safety Code. Rates provided in this Section do not include any applicable charges for electric power; a wireless communications provider must pay separately for such services. The City may adjust the fees and rates it adopts under this Section by not more than ten percent (10%) every five (5) years, rounded to the nearest dollar.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1604. City of Tulsa's right-of-way occupancy.**

Any construction, installation, maintenance and/or replacement of facilities, as defined in Title 11 TRO Chapter 12, in City of Tulsa rights-of-way, including any damage to infrastructure, or disruption of traffic, shall require a Right-of-Way Occupancy Permit pursuant to Title 11 TRO Chapter 12, and the payment of all associated fees. This includes, but is not limited to, above- and below-ground structures and the stringing, hanging or burying of wires, cables, fiber optic cables, wireless communications facilities and micro wireless communications facilities, in or above the City of Tulsa's rights-of-way. The said Right-of-Way Occupancy Permit shall be in addition to any other permit required by this chapter or other law.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1605. Small wireless communications facilities mounted on City of Tulsa poles.**

Every small wireless communications provider wishing to install its facilities on a City of Tulsa-owned pole or "Authority pole" as defined in paragraph 6 of Section 36-502 of the State act, shall apply for the appropriate permit from the City of Tulsa, pursuant to Section 36-505 of the State Act. Said provider shall at its own expense obtain, and tender to the City of Tulsa as part of its application, a certificate from a professional engineer, stating

that the pole is ready to accept the increased loads caused by said facilities, or, in the alternative, that the pole can be made ready to accept such loads with modification or replacement, as determined by the engineer. The engineer shall also certify that the facilities will cause no interference with City of Tulsa traffic or systems. Said provider shall make ready the said pole and install said facilities at its own expense, and said engineer shall certify that the installation is acceptable. Any pole replacing a City of Tulsa-owned pole shall become the property of the City of Tulsa. The engineer shall be licensed to practice in the State of Oklahoma. See subsection D. of Section 36-504 of the State Act.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1606. Small wireless communications facilities subject to City Zoning, when.**

As provided in Sections 36-503, 36-504 and 36-509 of the State Act, proposed small wireless communications facilities and utility poles shall be subject to City of Tulsa's zoning ordinance review and approval/disapproval if they do not comply with the height restrictions in subsection E. of Section 36-503, or if they are proposed to be located on private property, zoned exclusively for residential single-family or duplex use.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1607. Underground placement.**

The City of Tulsa reserves the right to require small wireless communications providers to install their facilities underground, in accord with subsection H. of Section 36-503 of the State Act, and as further determined by Title 11 TRO Chapter 12, "Rights-of-Way Occupancy Management".

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1608. Underground damage prevention.**

All small wireless communications providers shall register and comply with the Oklahoma Underground Facilities Damage Prevention Act, Title 63 Oklahoma Statutes, Section 142.1 et seq., as applicable.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1609. Repair and restore.**

Pursuant to subsection K. of Section 36-503 of the State Act, small wireless communications providers shall repair all damage caused by their activities in the right-of-way, and shall restore the right-of-way to its previous state. If such a provider fails to make such repairs within a reasonable time, the City of Tulsa may perform said repairs and charge the provider the reasonable, documented cost of such repairs.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1610. Historic districts.**

Placement of small wireless communications facilities, wireless support structures or utility poles in designated City of Tulsa historic districts shall comply with subsection I. of Section 36-503 of the State Act.

*(Ord. No. 24060, § 1, 12-5-2018)*

## Section 1611. Processing of permit; time limits.

As found in FCC Final Rule Part 1, Subpart U, Section 1.6003 (d), City staff shall review for completeness any permit application to deploy small wireless communications facilities, and shall notify the applicant on or before the tenth ($10^{th}$) day after submission if the application is materially incomplete, and shall clearly and specifically identify the missing document or information, and the specific rule or regulation requiring such document or information. The ten-day limit (above) shall restart at zero on the date on which the applicant submits all the documents and information identified by City staff to render the application complete. As required by Section 36-504.D.7. of the State Act, an application shall be processed on a nondiscriminatory basis and deemed approved if the City fails to approve or deny the application within seventy-five (75) days of receipt of the application. Upon issuance of a City permit, a small wireless communications provider shall install its facilities and commence operation within one (1) year, as explained in subsection D. of Section 36-504, paragraphs 5 and 11.

*(Ord. No. 24060, § 1, 12-5-2018)*

## Section 1612. Denial of permit; reasons for denial.

As provided in Section 36-504 of the State Act, the City of Tulsa may deny a proposed installation/location of a small wireless communications facility or installation, modification or replacement of a utility pole that meets the height requirements in subsection E. of Section 36-503 of the State Act if the proposed installation/location:

**A.** Materially interferes with the safe operation of traffic control equipment or emergency management systems or devices;

**B.** Materially interferes with sight lines or clear zones for transportation or pedestrians;

**C.** Materially interferes with compliance with the Americans with Disabilities Act or similar federal or state standards regarding pedestrian access or movement;

**D.** Materially interferes with Federal Aviation Administration requirements or the operation of an airport or air traffic;

**E.** Fails to comply with reasonable and nondiscriminatory spacing requirements of general application adopted by ordinance that concern the location of new utility poles. Such spacing requirements shall not prevent a wireless provider from serving any location;

**F.** With respect to ground-mounted equipment, fails to comply with reasonable and nondiscriminatory requirements of general application adopted by ordinance that concern spacing of the ground-mounted equipment; interference with sight lines, clear zones or pedestrian access or movement; unhindered use of the right-of-way by other right-of-way occupants, including the authority; or design or concealment measures in a historic district;

**G.** Fails to comply with applicable codes, including without limitation the most recent version of the National Electrical Safety Code;

**H.** Causes the utility pole or wireless support structure to become structurally unsound, unless the applicant demonstrates that it will address the problem adequately, such as by modifying or replacing the structure; or

**I.** Materially interferes with the intended use of a City of Tulsa-owned pole.

**J.** Fails to comply with existing underground policy codified in Chapter 12, Section 1210 of this Title, which requires that facilities shall be installed underground in locations where existing utility facilities are installed underground, unless a waiver is approved by the Streets and Stormwater Director or other person designated by the Mayor to enforce the provisions of this chapter, as provided in Section 1621 of this chapter.

The City of Tulsa shall process any denial, and the provider's cure of any deficiency, as stated in subsection D.9. of Section 36-504 of the State Act. Deadlines shall be tolled as provided in subsections D.6. and D.7. of Section 36-504 of the State Act.

*(Ord. No. 24060, § 1, 12-5-2018; Ord. No. 24949, § 1, 11-2-2022)*

**Section 1613. Rescission after approval.**

The City of Tulsa reserves the right to rescind a duly issued permit, and/or order relocation of a small wireless communications facility or structure at the sole expense of the provider, for any of the reasons listed in Section 1612 (above) if discovered after the issuance of the permit, or if other unforeseen conditions occur which affect public safety or City of Tulsa operations. The City of Tulsa shall give reasonable notice to a provider, of any such rescission or order.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1614. Emergency.**

In an emergency, the City of Tulsa shall take action necessary to protect life, property, public safety and public services, and shall notify a wireless communications provider of such action at the earliest opportunity. "Emergency" as used herein shall mean a condition that poses a clear and immediate danger to life or health, or of a significant loss of property, or requires immediate repair or replacement in order to restore service to the public or a customer.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1615. Duty to indemnify, defend and hold harmless.**

As allowed by Section 36-512 of the State Act, the City of Tulsa shall require a small wireless communications provider to defend, indemnify and hold harmless the City of Tulsa and its officers, agents and employees against any claims, demands, damages, lawsuits, judgments, costs, liens, losses, expenses and attorney fees resulting from the installation, construction, repair, replacement, operation or maintenance of small wireless communications facilities, wireless support structures or utility poles to the extent caused by the provider, its contractors, subcontractors and their officers, employees or agents. The provider shall have no obligation to defend, indemnify or hold harmless the City of Tulsa, its officers, agents or employees against any liabilities or losses due to or caused by the sole negligence of the City of Tulsa or its employees or agents.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1616. Insurance.**

Providers shall obtain insurance coverage, and shall maintain same during the term of any permit authorized herein. Said insurance policy shall be issued by an insurer licensed to do business in the State of Oklahoma, and shall name the City of Tulsa as additional insured. The amount of such insurance coverage shall be as set forth in Titles 35 and 49 TRO.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1617. Identification on pole or other structure.**

Every small wireless communications provider within the City of Tulsa shall identify itself on any pole or other structure used in its small wireless communications business, including said provider's full legal name and emergency contact information. Such identification shall be placed in a conspicuous place on the pole or other structure, in a permanent, all-weather medium and readily visible to the naked eye. Any small wireless communications provider who purchases or leases, or otherwise succeeds to ownership or control of, such a pole or other structure, shall keep said identification accurate and current. Placement of the required identification on a pole or other structure shall be at a height of five (5) feet, measured from ground level. Any deviation from the required height of identification must be approved by the City of Tulsa.

*(Ord. No. 24060, § 1, 12-5-2018; Ord. No. 24949, § 2, 11-2-2022)*

**Section 1618. Abandoned facilities.**

Pursuant to subsection L. of Section 36-503 of the State Act, any small wireless communications provider, owning a utility pole or wireless support structure located in the City of Tulsa, shall remove said utility pole or wireless support structure, and any associated equipment, upon abandonment or discontinuance of use, and shall notify the City of Tulsa of said discontinuance and removal. The City of Tulsa may notify the small wireless communications provider of suspected abandonment, and may demand such removal. If the small wireless communications provider neither removes the utility pole or wireless support structure, nor notifies the City of Tulsa that the utility pole or wireless support structure has not been abandoned, the City of Tulsa may remove the utility pole or wireless support structure, take ownership of the small wireless facility and assess the cost of removal to the provider.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1619. Change in ownership.**

Any small wireless communications provider who sells or leases out any small wireless communications facility, utility pole or wireless support structure, and any person or entity who purchases, or otherwise succeeds to ownership or control of, such facility, pole or other structure, shall forthwith notify the City of Tulsa of said sale, purchase or other transaction.

*(Ord. No. 24060, § 1, 12-5-2018)*

**Section 1620. Reference not exclusive.**

In any section of this chapter, a citation to one or more provisions of the State Act shall not be construed as to exclude any other applicable provisions of the State Act.

*(Ord. No. 24060, § 1, 12-5-2018)*

## Section 1621. Waiver of underground requirements.

Small wireless communications facilities providers may seek a waiver of the underground requirements, if applicable, for the placement and installation of a new utility pole to support small wireless communications facilities, by submitting to the Director of the Streets and Stormwater Department, or other person designated by the Mayor to enforce the provisions of this chapter, a properly-completed application for waiver of underground requirements for a specific location, together the following documentation:

**A.** A report from a professional engineer licensed in the State of Oklahoma, demonstrating or evidencing the following:

**1.** That installation of the small wireless communications facilities at the specified location is necessary to provide wireless communications service in that area, and that moving the small wireless communications facilities to a different location would materially prohibit wireless communications services to that area;

**2.** The specific conditions that would make an underground small wireless communications facility at the specified location unsafe, impractical, or technically infeasible; and

**3.** That collocation of small wireless communications facilities on any other utility poles in the area would be technically infeasible, even with replacing an existing utility pole, or that collocation is not possible; and

**B.** A design or plan prepared by a professional engineer licensed in the State of Oklahoma evidencing that the installation of a new utility pole to support small wireless communications facilities is in compliance with location, material, design and concealment criteria applicable to utility poles as set forth in Section 1210, Titled "Engineering Standards" of Chapter 12, in Title 11, TRO.

Upon review of the waiver application and all supporting documentation submitted by the small wireless communications provider, the Director of the Streets and Stormwater Department or other person designated by the Mayor to enforce the provisions of this chapter shall determine if a waiver of the requirement to install facilities underground for the specified location should be granted or denied. If a waiver is to be granted, the Director shall specify design, setback, concealment, notification, and any other required conditions of the waiver. Written notice of the Director's decision shall be provided to the applicant. If the waiver application is denied, the applicant may within ten (10) business days after the date of denial submit a written Notice of Appeal to the City Council. The written Notice of Appeal must state the basis of the appeal.

*(Ord. No. 24949, § 3, 11-2-2022)*

## Section 1622. Appeal to the City Council.

**A.** An applicant whose request for a waiver of the underground requirement has been denied by the Director of the Streets and Stormwater Department or other person designated by the Mayor to enforce the provisions of this chapter may appeal such denial to the City Council by filing two (2) copies of a written Notice of Appeal with the City Clerk, stating the basis of the appeal. A hearing on the appeal shall be heard by the City Council no later than thirty (30) calendar days from the date of filing of the appeal unless such later date is agreed to by the appellant. Notice of the date, time, and place of the hearing of the appeal shall be mailed to the appellant at the address listed

in the Notice of Appeal. Only the issues raised as the basis of the appeal and the documents submitted to and considered by the Director of the Streets and Stormwater Department or other person designated by the Mayor to enforce the provisions of this chapter shall be reviewed and heard by the City Council.

**B.** The Council shall hold a hearing on the applicant's appeal and may then affirm the denial or grant the waiver requested, subject to any lawful conditions the Council may require.

*(Ord. No. 24949, § 4, 11-2-2022)*

## CHAPTER 17. PARKLET PERMITS IN THE RIGHT-OF-WAY

Section 1700. Title; overview and purpose.
Section 1701. Delegation of authority to grant permits for the construction and use of parklets.
Section 1702. Definitions.
Section 1703. Parklet permit required.

### Section 1700. Title; overview and purpose.

**A. Title.** This chapter may be cited as the "Parklet Permit Program."

**B. Overview and purpose.** The purpose and intent of this chapter is to protect public safety, to maintain safe and ready availability of City rights-of-way to the general public, and to permit local establishments to provide additional seating for their customers and others by way of the construction of platforms in one or more on-street parking spaces, where appropriate, which extend to the sidewalk (a "Parklet") to provide additional space for tables, seats and other public amenities. The utilization of parklets will offer residents and visitors to Tulsa the opportunity to stop, sit and enjoy the surrounding neighborhood street life, thereby contributing to a vibrant, active and walkable City as well as to encourage economic development. The Parklet Permit Program (the "Parklet Program") is hereby implemented to allow the use of parklets, both public and private, while setting policies and requirements, providing safeguards, and a procedure for the issuance of parklet permits by staff.

*(Ord. No. 24399, § 1, 6-17-2020; Ord. No. 24437, § 1, 9-2-2020)*

### Section 1701. Delegation of authority to grant permits for the construction and use of parklets.

The City Council hereby delegates to staff the authority to issue permits for parklets to be constructed, installed, used and maintained within a public right-of-way, as provided in Article VIII, Section 13 of the Tulsa City Charter, so long as the proposed parklet conforms to the policies and safeguards established by this chapter, and does not unreasonably interfere with the public's use of the public right-of-way. Any permit issued pursuant to the Parklet Program shall be revocable by the City at will.

*(Ord. No. 24399, § 1, 6-17-2020; Ord. No. 24437, § 1, 9-2-2020)*

### Section 1702. Definitions.

For the purposes of this chapter, the following words and terms have the meanings ascribed to them by this section; words and terms not defined here have the meanings given to them, first in Tulsa Revised Ordinances, next, the applicable laws of the State of Oklahoma, and lastly, by common and ordinary usage and understanding:

**A. Applicant:** A person, firm, corporation, or other legal entity who is requesting formal approval to construct, install, use and maintain a parklet.

**B. Director:** The Director of the Tulsa Planning Office, or the successor to such Director.

**C. Fee:** The charge to applicants for a parklet permit or other authorizations issued by the City of Tulsa as provided in the Revised Ordinances of the City of Tulsa.

**D. Manual:** The document approved by the Tulsa Planning Office and the Tulsa City Council detailing the processes, duties, responsibilities and compliance requirements related to the Parklet Program.

**E. Ordinance:** A legislative act of the City Council of the City of Tulsa which has become effective in accordance with the Amended Charter of the City of Tulsa.

**F. Owner:** The owner of the real property which is adjacent to the location of a parklet.

**G. Parklet:** A small platform which occupies one or more on-street parking spaces, and which extends from the edge of the sidewalk to provide space for seating, tables, or other amenities. A parklet may also act as a sidewalk extension beyond the curb line to be used as a pedestrian thoroughfare. Parklets must be located adjacent to an operating business and cannot operate as a stand-alone business.

**H. Parklet permit program:** The processes outlined in Chapter 17 of Title 11 and the manual for the purposes of issuance of a permit for the construction, installation, operation and maintenance of a parklet.

**I. Permit:** Written authorization from the Tulsa Planning Office, or its successor, approving the construction, installation, operation and maintenance of a parklet in accordance with this chapter and the manual. A permit is effective from the date of approval through March 31st of the year of issuance of the permit or the next year, whichever is first, unless earlier revoked by the City of Tulsa. A permit may be issued for either a private parklet or a public parklet.

**J. Permit holder:** A person or entity who has been issued a valid permit.

**K. Private parklet:** A parklet which is solely utilized by a business during its operating hours and is open to the public during its non-operating hours. A private parklet permit allows the holder to provide table service of food, non-alcoholic beverages, and alcoholic beverages as permitted by ordinance, state law and the regulations of the Alcoholic Beverage Laws Enforcement Commission (ABLE Commission). Cooking and preparation of food or beverages within a private parklet is not permitted.

**L. Public parklet:** A parklet that is a public space at all times and cannot be utilized by an adjacent business. Table service of food or beverage is not permitted within a public parklet. Any parklet that is used as a pedestrian thoroughfare must be a public parklet.

**M. Staff:** Personnel of the Tulsa Planning Office and/or the City of Tulsa whose duties include reviewing parklet permit applications and all required documentation, reviewing site conditions, parklet design review, and ensuring compliance with the Parklet Permit Program.

**N. Temporary parklet:** One or more on-street parking spaces which provide space for seating, tables, or other amenities on a short-term basis. Temporary parklets must be located adjacent to an operating business and cannot operate as a stand-alone business. Temporary parklet permits shall not be issued for more than a 120-day period, and only one temporary parklet permit may be issued to an applicant for each location. In the event the Mayor declares a civil emergency, the City Council may waive or extend this time restriction only for the duration of the civil emergency declaration.

**O. TRO:** The Revised Ordinances of the City of Tulsa.

**P. Tulsa Planning Office:** The department of the Indian Nations Council of Governments (INCOG) which administers the zoning and land-use planning processes for the City of Tulsa and staffs the Tulsa Metropolitan Area Planning Commission and the City of Tulsa Board of Adjustment. The Tulsa Planning Office is located within the offices of INCOG.

*(Ord. No. 24399, § 1, 6-17-2020; Ord. No. 24437, § 1, 9-2-2020)*

## Section 1703. Parklet permit required.

No person shall construct, install, operate or maintain a parklet without first obtaining a permit from the City of Tulsa, through the Tulsa Planning Office at the Indian Nations Council of Governments (INCOG) or through the self-certification process for temporary parklets set forth herein. The Tulsa Planning Office shall receive, review, consult with applicable departments of the City of Tulsa and either approve or deny all parklet permit applications. The Tulsa Planning Office shall develop and distribute to parklet permit applicants, a Parklet Permit Manual which shall set forth the terms and conditions which must be satisfied by applicants before a permit may be issued.

**A. Parklet requirements.** A person or entity seeking to construct, install, operate and maintain a parklet within the City of Tulsa, as well as a permit holder shall comply with the following:

**1.** An applicant requesting approval for the placement of a parklet shall complete an application form or self-certification form in the case of a temporary parklet and shall provide all information and other forms required as set forth in the manual, and as may be reasonably required by the Tulsa Planning Office.

**2.** A parklet may only be located within the following zoning districts: MX1, MX2, MX3, CS, CG, CH, CBD, IMX, and MPD.

**3.** The proposed location of a parklet must be within a City of Tulsa street which has a speed limit of twenty-five (25) miles per hour or less.

**4.** A parklet must be placed directly in front of and adjacent to an applicant's business or property.

**5.** The parklet must have at least four (4) linear feet of unobstructed horizontal clearance from any parklet edge to above-ground utilities, including pedestals, transformers and other surface-mounted facilities, loading zones or handicapped parking spaces.

**6.** Maintain unobstructed clearance to any overhead power line as required by the National Electric Safety Code (NESC), Table 234-1.

**7.** A parklet must be located within an on-street, full-time legal parallel or angled parking space. A parklet may be located within more than one (1) parking space.

**8.** A parklet must be located at least fifteen (15) feet from any fire hydrant and shall not be located within a fire lane.

**9.** A parklet must be located at least twenty (20) feet from any marked crosswalk, or thirty-five (35) feet from any block corner at any intersection without a marked crosswalk.

**10.** A parklet shall not block access to any above-ground or surface-mounted utility facilities, including, but not limited to, manholes, sewer grates, storm drains, gas meters, valve boxes, electric meters, signal boxes, or other fixtures and appurtenances necessary for the operation of a utility system, unless prompt access can be provided without removal of the parklet (e.g., a hatch or access door).

**11.** A parklet cannot be located within a travel lane.

**12.** A parklet must allow for a two-foot space between the outside edge of the parklet and any adjacent parallel parking space. A parklet must allow for two (2) feet of space between the outside edge of the parklet and any adjacent angled parking space.

**13.** A maximum horizontal gap of one-half (½) inch is permitted between the sidewalk and the parklet platform.

**14.** The outer edge of a parklet, being the street-side edge, must be set back a minimum of twelve (12) inches from the travel lane.

**15.** The parklet platform must be designed and constructed so that the parklet becomes an extension of the sidewalk.

**16.** The parklet platform must be designed and constructed to support one hundred (100) pounds per square foot.

**17.** The weight of the parklet platform should weigh no more than two hundred (200) pounds per square foot.

**18.** The parklet platform cannot exceed a two percent (2%) cross-slope.

**19.** All walking surfaces within a parklet and the entrance into a parklet must be a non-slip surface and must be weather-resistant to ensure pedestrian safety and accessibility.

**20.** The parklet platform and frame must be designed to allow rainwater to flow along the curb without obstruction. A minimum six-inch horizontal gap between the curb and the base of the parklet frame and a minimum two-inch vertical gap between the street surface and the bottom of the parklet decking material is required.

**21.** Parklets must be designed to provide access under the platform to allow for maintenance, repairs, and debris removal, by means of access panels, removable decking, or other means as approved by staff.

**22.** A three-foot wheel stop as approved by the Planning Office must be installed one foot from the curb at the edge of the front and back of the parklet in a parallel parking space.

**23.** The outside edge of the parklet closest to the street is required to contain a beam with a minimum cross section of 6" × 6", or equivalent.

**24.** The parklet is required to have reflective elements at all outside corners.

**25.** Parklets may be utilized year-round, but must be kept clean and clear of all leaves, snow, ice, trash, and debris.

**26.** Only the sidewalk-facing side of a parklet can be open to pedestrian access.

**27.** A parklet must have some form of a buffer on all non-sidewalk facing edges. Buffers must be between thirty-six (36) and forty-two (42) inches in height, measured from the adjacent sidewalk grade, and must be able to withstand a two hundred-pound horizontal force. A buffer cannot substantially impede the visibility of the street from the parklet. The buffer type and installation must be approved by the Tulsa Planning Office before installation, and may be planters, railings, cabling, or other approved structure.

**28.** Heating elements are allowed within a parklet but must not encroach on the street or sidewalk. Heating elements must be of the type permitted by the City of Tulsa Fire Marshal and must be temporary in nature and able to be quickly removed.

**29.** Free-standing umbrellas are permitted within a parklet and above the sidewalk if the opened portion of the umbrella is located at least eight (8) feet above sidewalk grade, the use of the umbrella is within the parklet area, the umbrella does not

impede or impair the visibility of all traffic control devices, and the umbrella meets the sight triangle requirements of intersections required by ordinance. The base of the umbrella must be located within the parklet unless otherwise approved by the Tulsa Planning Office.

**30.** Overhead design elements are permitted only when there are no overhead facilities in proximity to the parklet and may require additional review and compliance with all applicable building codes.

**31.** The use of corded speakers or other amplified sound equipment is prohibited within parklets. The use of wireless speakers and amplified sound from an adjacent building are permitted, but the volume may not exceed sixty-five (65) decibels within the parklet. All parklets are subject to all applicable noise ordinances of the City of Tulsa, including Section 1400 of Chapter 14, Title 27, TRO.

**32.** Alcoholic beverages are not permitted within private or public parklets, except as permitted by local ordinance, state law, and the regulations of the Alcoholic Beverage Laws Enforcement Commission (ABLE Commission).

**33.** A parklet, including a sidewalk extension, must comply with the Americans with Disabilities Act of 1990, as amended ("ADA") as well as the ADA accessibility requirements set forth in the Manual.

**34.** If a parklet is used as a sidewalk extension, at no point may the parklet be less than five (5) feet wide.

**35.** If for any reason a parklet which is serving as a sidewalk extension is taken out of use, the adjacent sidewalk shall immediately be cleared by the permit holder to accommodate pedestrian traffic.

**36.** An applicant shall provide an initial site plan as required in the manual.

**37.** An applicant shall provide documentation of community support from property owners adjacent on each side of the applicant's property and two (2) letters of support from property owners or business owners on the same or an adjacent block, whether a new permit application or a permit renewal.

**38.** An applicant shall provide a certificate of insurance evidencing current insurance general liability coverages provided by an insurer authorized to transact insurance business in Oklahoma, at the time of submission of a new application or at the time of submission of a renewal application, with the following requirements:

**a.** Commercial General Liability Insurance with policy limits of not less than One Million Dollars ($1,000,000.00) of coverage, per occurrence, covering claims for bodily injury, death, or property damage, including claims related to the parklet area and the operation and use thereof.

**b.** Each required insurance policy shall provide by endorsement that thirty (30) days' prior written notice of cancellation shall be delivered by the insurer to the City, except that ten (10) days' written notice of cancellation shall be provided by the insurer due to non-payment of premium.

**c.** Permit holders shall furnish a replacement Certificate of Insurance to the Tulsa Planning Office when any required insurance policy expires or is canceled, so that insurance coverage is continuous.

**d.** All Certificates of Insurance submitted must be approved by the Tulsa Planning Office. Any deficient Certificates of Insurance must be corrected as required by the Tulsa Planning Office. If any issue arises as to insurance coverage submitted by an applicant or permit holder which cannot be resolved by the Tulsa Planning Office, the matter shall be referred to the Office of the City Attorney for review and further requirements.

**e.** The holder of a permit shall not cause or allow the required insurance policy to be canceled or to lapse without securing replacement insurance coverage so that there is no gap in coverage, and a parklet permit holder shall notify the Tulsa Planning Office of any change in insurance coverage within fifteen (15) days of such change. Failure by a parklet permit holder to maintain the required insurance coverage(s) is a violation of the conditions of approval of the parklet permit and may result in consequences up to and including revocation of the parklet permit.

**39.** An applicant shall indemnify and hold the City of Tulsa, its officials, officers, employees and agents harmless as to any liability, claims, causes of action, judgments or expenses, including reasonable attorney's fees, resulting directly or indirectly from any act or omission of the permit holder, its subcontractors, any person or entity directly or indirectly employed by them, and any person or entity for whose acts or omissions they may be liable, arising out of the permit holder's use or occupancy of the public place.

**40.** An applicant/permit holder must comply with any other requirements or restrictions set forth in the manual, including payment of required fees.

**B. Initial parklet permit application.** An applicant, with the exception of an applicant utilizing the self-certification process for a temporary parklet, shall prepare and submit an initial parklet application, together with the documentation required in the manual, including an initial site plan and applicable fees. Staff will review the application and will make a visit to the location of the proposed parklet to view existing site conditions.

**C. Parklet design development.** Upon review of a completed initial parklet permit application by the staff of the Tulsa Planning Office and the City of Tulsa and written approval of the application, the applicant may begin the design development of the parklet. The applicant is required to submit sealed and stamped drawings and plans for the parklet from an engineer licensed in the State of Oklahoma. Compliance with all technical standards, including, but not limited to, structural integrity, design requirements imposed by this chapter or the manual, ADA compliance, and stormwater requirements are the responsibility of the designing professional. In addition, the applicant must provide all documents and information required by the manual concerning parklet design development, including required final site design documents. The applicant must display a written notice to the public in a window or other conspicuous place facing the location of the proposed parklet for at least ten (10) days after the design review by staff has been initiated, and within five (5) days after being directed to do so. The form of the notice must be approved by the Director of the Tulsa Planning Office, or their designee. Staff will provide notification to the Mayor and the City Councilor for the City Council district where the parklet is proposed to be located. Staff will review the application and all required information, plans, drawings and

design documents to ensure compliance with applicable standards required by this chapter and the manual. If the application is in compliance with the standards required by this chapter and the manual, the application shall be approved. If the application is not in compliance with the standards required by this chapter and the manual, the application shall be denied. If the parklet application is approved, the applicant may begin construction, fabrication and installation of the parklet in accordance with subsection "D" below. A decision will be made within thirty (30) days after submission of a complete permit application and all required plans, drawings, documents and information. A permit must be kept and displayed on permit holder's premises at all times.

**D. Fabrication and installation.** The fabrication and installation of the parklet shall be in strict compliance with the approved design and the requirements and standards as set forth in this chapter and the manual. The parklet must have the ability to be installed and removed in one twenty-four-hour period. In addition, a parklet shall not be attached to or damage the street. Any repair or restoration to the street right-of-way due to the installation or removal of a parklet shall be made by the City of Tulsa at the sole expense of the parklet permit holder. The City of Tulsa will inspect the completed parklet for compliance with submitted and approved plans, structural integrity and compliance with all other applicable requirements, regulations and restrictions. All deficiencies noted during an inspection must be corrected prior to use of the parklet or the permit may be revoked. The permit holder must also obtain any required City permits that may be required to allow for construction of the parklet.

**E. Renewal applications.** A person or entity that was issued a permit in the preceding year and is in good standing as a permit holder shall submit a renewal application in such form as is approved by the Tulsa Planning Office together with the renewal fee. Each permit expires at 12:00 a.m. on April 1 of each year. A permit cannot be assigned or transferred. In the event of a change of ownership of the parklet, a new permit must be obtained. Written evidence of a transfer of parklet ownership shall be required for the issuance of a new permit.

**F. Temporary parklets.** An Applicant may prepare and submit a temporary parklet self-certification form to attest they meet all requirements as set forth in this chapter and the Manual and are responsible for and will adhere to these requirements for the duration of the temporary parklet authorization. Businesses applying for a temporary parklet permit may commence operations on a provisional basis upon submission of the self-certification form to the Tulsa Planning Office, submission of photographs of the proposed temporary parklet location from the street facing the proposed temporary parklet location as well as each side of the proposed temporary parklet location parallel to the street, and the required valid certificate of insurance. Staff will make a visit to the self-certified temporary parklet site to view existing site conditions and can require changes to ensure compliance with program requirements. Temporary parklets shall be in strict compliance with the approved design and the requirements and standards as set forth in Section 1704(A), numerical paragraphs 1—12, 14, 24—35 and 37—40 of this chapter, as well as all other requirements or restrictions as set forth in the Manual. Upon Staff review and approval of the self-certification form, insurance certificate, photographs of the proposed temporary parklet location as required, payment of required fees, and any other requirements set forth in this chapter or the Manual, Staff

may issue a temporary parklet permit. The Applicant shall also submit photographs of the temporary parklet location from each side of the parklet to the Tulsa Planning Office within five (5) calendar days after installation of the same. A temporary parklet permit may be suspended or revoked by the Tulsa Planning Office if a temporary parklet is not in compliance with this chapter and the Manual, and such compliance is not achieved within twenty-four (24) hours after notice of such deficiency is delivered to the Applicant/Permit Holder by the Tulsa Planning Office.

**G. Permit Conditions and Revocation.** The issuance of a Permit does not create a property right in the Permit Holder beyond what is specified in this chapter. A Permit is temporary in nature and can be revoked by the City of Tulsa at will, for any reason. Parklets must be maintained within the confines of the parklet location shown on the approved plans at all times. The City of Tulsa may deny, restrict, or revoke a Permit at any time for a violation of this chapter in the event that the issuance or continuation of a Permit does not provide a public benefit, or the parklet is impeding or blocking access to public facilities, including utilities. The Fire Marshal, City personnel, utility franchise holders and right-of-way occupants my request the revocation of a Permit due to instances where the parklet is a hazard or fire danger or interferes with utilities. An encroachment placed, allowed or maintained within the public right-of-way by a Permit Holder which is contrary to the terms of the Permit, this chapter or the Manual shall constitute a public nuisance, to be enforced in accordance with Title 24, TRO. Upon notice, the Permit Holder shall remove the encroachment or the Permit may be revoked. In the event of a revocation of a Permit, the parklet must be removed by the Permit Holder within twenty-four (24) hours after receipt of the notice of such revocation, at the sole expense of the Permit Holder. If a Permit Holder desires to make any changes to a parklet after a Permit has issued, a Parklet Amendment form must be submitted with applicable fees. Approval of the requested amendment must be obtained before any alteration or modification of the parklet.

**H. Removal of parklet.** The City of Tulsa will endeavor to provide advance notice to Permit Holders when possible in the event that a parklet must be removed from the right-of-way for an event, construction, utility maintenance or access, or any other reason. A date for removal of the parklet will be provided, and if the parklet is not removed by the stated date, the City of Tulsa will remove the parklet at the expense of the Permit Holder. If the event of an emergency, the City of Tulsa may move or remove the parklet to preserve public health and safety. If the City of Tulsa moves or removes a parklet in the event of an emergency or if the Permit Holder fails to remove the parklet after notice to do so, the City of Tulsa will incur no liability for damage to the parklet, loss of revenue or liability for any other reason.

**I. Request for Reconsideration; Appeal.** An aggrieved party ("aggrieved party" being an adjacent business or property owner within three hundred (300) feet of the proposed parklet, or an Applicant whose parklet application was denied, and referred to in this subsection as "appellant") may request a reconsideration of a Permit decision. A request for reconsideration of a Permit decision shall be made to the Tulsa Planning Office, by submitting a reconsideration application in such form as approved by the Tulsa Planning Office within ten (10) calendar days after the date of the original Permit decision or the appeal will not be acted upon. The appellant must: (1) identify the Permit application that is requested for reconsideration by the Permit number and

the address of the parklet as set forth in the Permit application; (2) the specific objections to the original decision of the City of Tulsa; and (3) the specific actions being proposed by the applicant/appellant that could change the Permit decision. A decision concerning the reconsideration of a Permit decision shall be made within fifteen (15) business days by the Director of the Tulsa Planning Office, or their designee, after the application for reconsideration is received. The Director of the Tulsa Planning Office, or their designee, shall either affirm the original Permit decision or shall reverse the original Permit decision. If the original Permit Decision is affirmed after reconsideration, the appellant may appeal the Permit Decision to the City Council by submitting a complete appeal application in such form as is approved by the City of Tulsa to both the Tulsa Planning Office and the Office of the City Clerk. The appeal of reconsideration of a Permit decision must be submitted in writing within ten (10) calendar days of the date of the reconsideration decision, or such appeal will not be heard by the City Council. The appellant must: (1) identify the Permit application that is the subject of the Appeal by the Permit number and the address of the parklet as set forth in the Permit application; (2) the specific objections to the original decision of the City of Tulsa; and (3) if applicable, the specific actions being proposed by the applicant/appellant that could change the Permit decision. The City Council will schedule the appeal within thirty (30) calendar days after the appeal is received by the City Clerk.

**J. Approval of the Manual and Amendments.** The Parklet Permit Program Manual, dated June 2020, is hereby approved. The Director of the Tulsa Planning Office is authorized to revise the Manual to ensure compliance with amendments to this chapter and to make such amendments to the Manual that the Director deems is beneficial to the administration of the Parklet Permit Program which do not conflict with this chapter, without amending this chapter by ordinance. The Manual shall be re-dated as of the date of any amendments, and a current copy of the Manual shall be maintained by the Director in the Tulsa Planning Office and in the Office of the Tulsa City Clerk.

*(Ord. No. 24399, § 1, 6-17-2020; Ord. No. 24437, § 1, 9-2-2020)*

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# TITLE 11-A STORMWATER MANAGEMENT AND HAZARD MITIGATION PROGRAM

**Chapter 1. Stormwater Management and Hazard Mitigation Program**
**Chapter 2. Stormwater Drainage System Service Charge**
**Chapter 3. Watershed Development Regulations**
**Chapter 4. Public Involvement Process**
**Chapter 5. Pollution**

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## CHAPTER 1. STORMWATER MANAGEMENT AND HAZARD MITIGATION PROGRAM

Section 100. Findings of fact.
Section 101. Purpose.
Section 102. Definitions.
Section 103. Duties of the Director of Public Works.
Section 104. Stormwater Drainage and Hazard Mitigation Advisory Board.
Section 105. Purposes and duties of Stormwater Drainage and Hazard Mitigation Advisory Board.
Section 106. Meetings of Stormwater Drainage and Hazard Mitigation Advisory Board.
Section 107. Hazards to be considered.
Section 108. Municipal personnel and agencies to assist.
Section 109. Cooperation with others.
Section 110. Stormwater drainage and hazard mitigation funds.

### Section 100. Findings of fact.

The City of Tulsa makes the following findings of fact:

**A.** Because of its physical terrain and geographical location, the City is particularly subject to damage from stormwaters which, from time to time, overflow from existing watercourses and drainage facilities;

**B.** The presently existing stormwater drainage facilities of the City require continuous operation, maintenance, renewal and replacement;

**C.** A comprehensive approach to managing stormwater runoff is required to address existing and future needs;

**D.** Previous regulations addressing drainage requirements for new land development must be replaced by a comprehensive approach; and

**E.** Natural and manmade hazards exist and present a threat to the City.

*(Ord. Nos. 17285, 21661)*

### Section 101. Purpose.

It is the purpose of this chapter to promote public health, safety and welfare by providing for operating, constructing, equipping, maintaining, acquiring and owning within the City a stormwater drainage system and hazard mitigation program. The establishment of a stormwater drainage system and hazard mitigation program will:

**A.** Minimize flood and storm losses and inconveniences from uncontrolled stormwater run-off in the City;

**B.** Assure that the movement of emergency vehicles is not prohibited nor inhibited during storm or flood periods;

**C.** Preserve the City's watercourses, improve and preserve purity of water, minimize water quality degradation and otherwise facilitate urban water resource management techniques, including both the reduction of pollution and the enhancement of the urban environment; and

**D.** Mitigate other natural and manmade hazards.

*(Ord. Nos. 17285, 21661)*

## Section 102. Definitions.

Unless otherwise provided in this title, for the purposes of this title, the following words and phrases shall have the meanings given herein.

**A.** **Department** means the Public Works Department of the City of Tulsa.

**B.** **Director** means the duly appointed Director of the Public Works Department of the City of Tulsa and/or his designated representative.

**C.** **Stormwater management and hazard mitigation program** means the overall strategy and framework for the stormwater management and hazard mitigation activities of the City.

**D.** **Stormwater run-off** means that portion of the rainfall that is drained into the stormwater drainage system.

**E.** **Stormwater drainage system** means any facility, structure, improvement, development, equipment, property or interest therein, or other structural or nonstructural element made, constructed, used or acquired for the purpose of collecting, containing, storing, conveying and controlling stormwater wherever located including, but not limited to, storm sewers, conduits, natural and manmade channels, pipes, culverts and detention ponds whether public or private.

*(Ord. Nos. 17285, 21661)*

## Section 103. Duties of the Director of Public Works.

The Director shall exercise all lawful powers necessary and appropriate to administer the City of Tulsa's Stormwater Management and Hazard Mitigation Program.

The Director shall have the authority to:

**A.** Develop and administer all phases of a comprehensive program of stormwater management and hazard mitigation, including planning, designing, establishing, acquiring, constructing, developing, installing, administering, maintaining, operating, improving, repairing, replacing and reconstructing the stormwater drainage system of the City; and planning for the mitigation of natural and manmade hazards;

**B.** Administer the accounting, budgeting, record keeping and support personnel necessary for the efficient operation of the stormwater management and hazard mitigation program;

**C.** Administer the regulations contained in this title;

**D.** Perform studies and analyses required to establish or modify the stormwater management and hazard mitigation program;

**E.** Provide for public information and awareness that will improve stormwater management and hazard mitigation and reduce hazards to life and property;

**F.** Establish a flood alert and early warning system as a joint effort with emergency response agencies;

**G.** Coordinate enforcement of the regulations contained in this title with other City departments; and

**H.** Seek the cooperation of counties and municipalities within the area in minimizing the contribution of all storm drainage systems to flooding and, in particular, cooperate with other affected political jurisdictions in preparing and implementing master drainage plans and hazard mitigation plans.

*(Ord. Nos. 17285, 21661)*

### Section 104. Stormwater Drainage and Hazard Mitigation Advisory Board.

The City of Tulsa's current Stormwater Drainage Advisory Board is hereby reconstituted and renamed the Stormwater Drainage and Hazard Mitigation Advisory Board (the "Board"), with the same members, and additional duties as set forth below. The Board shall comprise five (5) members appointed by the Mayor, subject to confirmation by the Council, for terms of five (5) years from and after their appointment. If a vacancy shall occur otherwise than by expiration of a term, it shall be filled by the Mayor by appointment for the unexpired term, subject to confirmation by the Council. The Board shall elect its officers from its membership.

*(Ord. Nos. 17285, 21661)*

### Section 105. Purposes and duties of Stormwater Drainage and Hazard Mitigation Advisory Board.

The purposes and duties of the City of Tulsa Stormwater Drainage and Hazard Mitigation Advisory Board are:

**A.** To provide policy guidance to the Mayor, to City departments, to associated entities and to the public;

**B.** To coordinate and share information between the public, City departments and other entities on flooding, stormwater drainage and other hazards in the City;

**C.** To cause studies to be made of matters concerning stormwater drainage and other hazards; and to recommend to the Mayor, City departments, associated entities and the public a comprehensive stormwater management and hazard mitigation program;

**D.** To propose cooperative studies and plans for coordinated stormwater drainage and hazard mitigation services in the City and surrounding areas;

**E.** To recommend from time to time to the Mayor, City departments, associated entities and the public, policies for establishing new kinds of stormwater drainage and hazard mitigation services, preserving and expanding existing services and making changes in services for the benefit of the public;

**F.** To hear and consider applications for variances and appeals from decisions of the Director as provided herein; and

**G.** To review the City of Tulsa's plans for hazard and disaster preparedness, mitigation, response and recovery, for both natural and manmade hazards and disasters.

*(Ord. No. 21661)*

## Section 106. Meetings of Stormwater Drainage and Hazard Mitigation Advisory Board.

The Stormwater Drainage and Hazard Mitigation Advisory Board shall hold regular meetings, in accordance with the Oklahoma Open Meeting Act (25 O.S., §§301, *et seq.*). The Board may establish convenient rules for the conduct of its meetings.

*(Ord. No. 21661)*

## Section 107. Hazards to be considered.

The Stormwater Drainage and Hazard Mitigation Advisory Board's attentions shall include, but not be limited to:

dam failure
drought
earthquake
expansive soils
extreme heat
floods
hail storm
hazardous material event
high winds
levee failure
lightning
severe winter storm
terrorism
tornado
transportation event
urban fires
wildfire
other natural or man-made disasters.

*(Ord. No. 21661)*

## Section 108. Municipal personnel and agencies to assist.

The facilities, personnel and agencies of the municipal government are directed to be made available to the Stormwater Drainage and Hazard Mitigation Advisory Board, and at all times such personnel, agencies and officers shall cooperate with the Board to accomplish the objectives and purposes herein set forth. The Board shall, at its first meeting, prepare a list of needed personnel and agencies, and shall from time to time review and update the list and add or delete personnel and agencies.

*(Ord. No. 21661)*

## Section 109. Cooperation with others.

The Stormwater Drainage and Hazard Mitigation Advisory Board shall:

**A.** Work closely with the Mayor and City Council, and with City staff and other boards, commissions, authorities and committees of the City of Tulsa;

**B.** Coordinate efforts and communicate with public safety officials; emergency responders; and federal, state, regional, county and local public health and safety and law enforcement authorities;

**C.** Stay apprised of, and share appropriate public safety information with, members of the public, civic organizations, news media, and neighborhood groups.

*(Ord. No. 21661)*

## Section 110. Stormwater drainage and hazard mitigation funds.

**A.** A special fund or funds, shall be maintained for the purpose of identifying and controlling all revenues and expenses attributable to stormwater drainage or hazard mitigation services. All loans, grants or funds received for the administration, operation, construction and improvement of stormwater drainage or hazard mitigation services shall be deposited into such fund or funds. Disbursements for costs of data collection, planning, maintaining, operating and improving drainage or hazard mitigation services and facilities shall be made from the appropriate fund or funds.

**B.** A special stormwater management enterprise fund shall be established to receive all service charges for the use of the City's stormwater drainage system.

**C.** A special hazard mitigation fund shall be established to receive all monies for hazard mitigation.

*(Ord. Nos. 17285, 21661)*

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## CHAPTER 2. STORMWATER DRAINAGE SYSTEM SERVICE CHARGE

Section 200. Definitions.
Section 201. Service charge and exemptions.
Section 202. Rate schedule.
Section 203. Collection of service charge.
Section 204. Adjustments of charge, appeal.

### Section 200. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings given herein:

**A.** **City** shall mean the City of Tulsa.

**B.** **Developed real estate** shall mean real property altered from its natural state by the addition to or construction of any impervious surface such that the hydrology of the property is affected.

**C.** **Equivalent service unit** shall mean two thousand six hundred fifty (2,650) square feet of impervious surface.

**D.** **Impervious surface** shall mean any hard surfaced area which prevents or retards the entry of water into the soil in the manner and to the extent that such water entered the soil under natural conditions, causing water to run off the surface in greater quantities or at an increased rate of flow than was present under natural conditions, such as but not limited to rooftops, asphalt or concrete sidewalks, paving, driveways and parking lots, walkways, patio areas, storage areas, and oiled macadam or other surfaces which similarly affect the natural infiltration or run-off patterns of real property in its natural state.

**E.** **Drainage basin plan** shall mean the plan adopted by the City for managing surface and stormwater facilities and features within an individual drainage basin.

**F.** **Service charge** shall mean the fee levied within the boundaries of the City for the use of the City's stormwater drainage facilities.

**G.** **Undeveloped real estate** shall mean real estate unaltered by the construction or addition of any impervious surface which would change the hydrology of the property from its natural state.

**H.** **Retention** or **detention facilities** shall mean facilities designed to hold stormwater for a short period and then to release it to the natural watercourse or to hold stormwater for a sufficient length of time to provide for it to be consumed by evaporation, infiltration into the soil or other natural means.

**I.** **Residential property** shall mean any property designed and used principally for residential single-family or duplex purposes and developed according to and meeting the bulk and area requirements for residential single-family or duplex zoned property as set forth in the Tulsa Zoning Code at the time of development of such property.

**J.** **Gravel** shall mean aggregate, or a mix of rock fragments and granular material, used as surfacing.

*(Ord. Nos. 16589, 17285; Ord. No. 22917, § 1, 8-1-2013)*

## Section 201. Service charge and exemptions.

**A.** There is hereby established a service charge for the use of the City's stormwater drainage system at rates hereinafter established; provided, however, that the service charge shall not be imposed on the following types of property:

**1.** City streets, rights-of-way, parks and open space;

**2.** State of Oklahoma highway rights-of-way;

**3.** Railroad rights-of-way; or

**4.** Undeveloped parcels of land.

**B.** All proceeds from the service charge established herein shall be deposited to the Stormwater Management Enterprises Fund established in Chapter 1 of this title.

*(Ord. Nos. 16589, 17285)*

## Section 202. Rate schedule.

The monthly service charge rate shall be established at Thirteen and 69/100 Dollars ($13.69) for each equivalent service unit assigned to a lot, tract or parcel of real estate as provided in this section.

**A. Residential property.** Residential property within the corporate limits of the City shall be assigned one (1) equivalent service unit for each developed lot, tract, or parcel of record with the county clerk. However, in the case of duplex development with two (2) dwelling units on the same lot, tract or parcel, a service charge of two (2) equivalent service units shall be charged.

**B. All Other Real Estate.** The impervious surface and gravel surface of all other lots, tracts, or parcels of developed real estate within the corporate limits of the City shall be measured to determine the number of equivalent service units to be assigned to such lots, tracts, or parcels.

**C. Effective Date.** The rates established in this section shall become effective on October 1, 2025, for all billing areas provided for in Title 11-C, Tulsa Revised Ordinances, Chapter 9, Section 900.

**D. Gravel Surfaces.** Any non-residential property that has gravel surfaces may apply for and receive an adjustment in the equivalent service unit for that portion of the property covered by gravel. The Director shall adjust the service charge by an amount equal to a forty percent (40%) reduction in equivalent service units applied to the surface area covered by gravel.

**E. Applicability.** The adjustment provided in subsection D (above) shall apply only to the Stormwater Drainage Utility Fee; for hydraulic & hydrologic studies, Fee in Lieu of Detention and all other design purposes, gravel surface shall be considered one hundred percent (100%) impervious. The above credit is not retroactive.

*(Ord. Nos. 16589, 17285, 17737, 17957, 18220, 18728, 19291, 19869, 20606, 21316, 21575; Ord. No. 21857, § 1, 6-17-2008; Ord. No. 22087, § 1, 6-18-2009; Ord. No. 22917, § 2, 8-1-2013; Ord. No. 23132, § 1, 6-19-2014; Ord. No. 23314, § 1, 6-18-2015; Ord. No. 23740, § 1, 7-26-2017; Ord. No. 23938, § 1, 6-13-2018; Ord. No. 24149, § 1, 6-19-2019; Ord. No. 24391, § 1, 6-17-2020; Ord. No. 24630, § 1, 6-16-2021; Ord. No. 24847, § 1, 6-15-2022; Ord. No. 25067, § 1, 6-14-2023; Ord. No. 25341, § 1, 6-12-2024; Ord. No. 25590, § 1, 6-11-2025)*

## Section 203. Collection of service charge.

The service charges herein established for the use of the City's stormwater drainage system shall be billed to each user monthly, along with a bill for water or other utility services and such penalties as are now or may hereafter be established for water service bills, and shall carry the same due date as now or may hereafter be established for water service bills. In the event any person, firm or corporation shall tender as payment of water service, Medical Service Program, sanitary sewer nuisance abatement fees, sanitary sewer service, collection of solid waste service and/or service charge for the use of the City's stormwater drainage system an amount insufficient to pay in full all of the charges so billed, credit shall be given first to the charges for deposit, second to the service charge for the use of the City's stormwater drainage system, third to the charges for collection of solid waste, fourth to the charge for sanitary sewer service, fifth to any sanitary sewer nuisance abatement fees, sixth to the charge for the Medical Service Program, seventh to the charges for water service and lastly to fees and penalties, except that any subsidies received by the City from another governmental entity, pursuant to an agreement with such entity for payment of specific utility service charges for benefit of a "residential service unit," as that term is defined in Section 101 of Chapter 1 of Title 11-B, Tulsa Revised Ordinances, or a residential utility customer of the City shall be accepted by the City and applied to the utility service charges so designated. In addition, any funds of the City applied to specific utility service charges for a residential service unit or residential utility customer of the City pursuant to an approved program for payment of such charges shall be applied to the utility service charges so designated.

The City shall have the right and privilege of discontinuing water service to any premises for insufficient payment.

In the event any utility account shall become delinquent, water service may be terminated by the City until all delinquent charges shall be paid in full. The provisions for collection of charges provided herein shall be in addition to any rights or remedies which the City may have under the laws of the State of Oklahoma.

In the case of users of real estate who are not billed for water, sanitary sewer or collection of solid waste, the owner of the real estate or agent of the owner shall be billed monthly for the service charges herein established.

The invalidity of any provision, clause or portion of this section or the invalidity of the application thereof to any person or circumstance shall not affect the validity of the remainder of this section or the validity of its application to other persons or circumstances.

*(Ord. Nos. 16589, 17285, 20386, 21525; Ord. No. 25090, § 1, 7-26-2023)*

## Section 204. Adjustments of charge, appeal.

Any person who considers the charges applicable to his parcel to be inaccurate or erroneous may request review thereof by the Director. The determination by the Director may be appealed to the Stormwater Drainage Advisory Board by written notice of appeal filed with the Director within ten (10) days of the Director's determination. The decision of the Board may be appealed to the governing body of the City by such person or by the Director by written notice of appeal filed with the City Clerk within ten (10) days of decision by the Board.

*(Ord. Nos. 16589, 17285)*

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## CHAPTER 3. WATERSHED DEVELOPMENT REGULATIONS

Section 300. Purpose.
Section 301. Scope and definitions.
Section 302. Watershed development permits.
Section 303. Subdivision plats, re-plats, lot-splits and building permit approval.
Section 304. Policies and standards for approval of watershed development permits, subdivision plats, lot-splits and building permits.
Section 305. Responsibilities of the Director of Public Works.
Section 306. Administrative procedures.
Section 307. Enforcement and penalties.
Section 308. Warning and disclaimer of liability.

### Section 300. Purpose.

To protect the general health, safety and welfare of the residents of the City of Tulsa from the hazards and danger of stormwater run-off, the City shall:

**A.** Regulate the methods for handling and disposing of stormwater run-off in the watersheds of the jurisdictional area of the City and further regulate the design, construction and maintenance of the stormwater drainage system;

**B.** Regulate the development, excavation, grading, regrading, paving, landfilling, berming and diking of land within the watersheds of the City;

**C.** Regulate development within flood plains in order to assure that development is not dangerous to health, safety or property due to stormwater run-off, and does not increase flood heights or velocities, and to comply with the regulations of the National Flood Insurance Program;

**D.** Inform individuals of lands which are identified as subject to hazard from the regulatory flood; and

**E.** Regulate the connection to and use of the stormwater drainage system.

*(Ord. Nos. 16959, 17285)*

### Section 301. Scope and definitions.

**A. Scope.** The provisions of this chapter shall apply to and be binding upon every person, firm, agency, institution or corporation, and every entity which seeks to develop, redevelop, grade, regrade, excavate, landfill, berm or dike land subject to the jurisdiction of the City.

**B. Definitions.** For purposes of this chapter, the following words and phrases shall have the meanings given herein:

1. **Alter or alteration of a watercourse** means any change to the stormwater drainage system or to the land surface which changes the conveyance capacity of the stormwater drainage system.
2. **Appeal** means a request for a review of the Director's interpretation of any provision of this chapter or a request for a variance.
3. **Area of shallow flooding** means a designated AO, AH or VO zone on the City's Flood Insurance Rate Map (FIRM) with a one percent (1%) or greater annual chance of flooding to an average depth of one (1) to three (3) feet where a clearly

defined channel does not exist, where the path of flooding is unpredictable and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

4. **Area of special flood hazard** is the land in the floodplain within the City subject to a one percent (1%) or greater chance of flooding in any given year. The area may be designated as Zone A on the Flood Hazard Boundary Map (FHBM). After detailed rate making has been completed in preparation for publication of the FIRM, Zone A usually is refined into Zones A, AE, AH, AO, A1-99, VO, V1-30, VE or V. (See Flood Hazard Area)
5. **Base flood** means the flood having a one percent (1%) chance of being equaled or exceeded in any given year and is the regulatory flood.
6. **Base flood elevation** means the elevation shown on the Flood Insurance Rate Map (FIRM) and found in the accompanying Flood Insurance Study (FIS) for Zones A, AE, AH, A1-30 and AR that indicates the water surface elevation resulting from the flood that has a one percent (1%) chance of equaling or exceeding in any given year - also called the base flood.
7. **City Drainage Standards** are the criteria, standards and specifications for stormwater drainage, earth change and floodplain development adopted by the City by resolution.
8. **Critical feature** means an integral and readily identifiable part of a flood protection system, without which the flood protection provided by the entire system would be compromised.
9. **Detention** means the temporary storage and controlled release of stormwater run-off.
10. **Detention facility** means a facility that provides temporary storage of stormwater run-off and controlled release of this run-off.
11. **Development** means any man-made change to improved or unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, berming, diking, excavating or drilling operations.
12. **Drainage Sensitive Area (DSA)** is the area outside the designated FEMA Special Flood Hazard Area and outside the designated regulatory floodplain which is subject to flooding during the one percent (1%) or greater annual chance storm to calculated depth of six (6) inches or greater where a clearly defined channel does not exist, where the path of overland flow is unpredictable and where velocity flow may not be evident. Such areas are characterized by ponding and sheet flow.
13. **Earth change** means excavating, grading, regrading, landfilling, berming or diking of land within the City.
14. **Elevated building** means a non-basement building:
    a. Built, in the case of a building in Zones A1-30, AE, A, A99, AO, AH, B, C, X and D, to have the top of the elevated floor, or in the case of a building in Zones V1-30, VE or V, to have the bottom of the lowest horizontal structure member of the elevated floor elevated above the ground level by means of pilings, columns (posts and piers) or shear walls parallel to the flow of the water, and

**b.** Adequately anchored so as not to impair the structural integrity of the building during a flood of up to the magnitude of the base flood.

In the case of Zones A1-30, AE, A, A99, AO, AH, B, C, X, D, "elevated building" also includes a building elevated by means of fill or solid foundation perimeter walls with openings sufficient to facilitate the unimpeded movement of floodwaters. In the case of Zones V1-30, VE or V, "elevated building" also includes a building otherwise meeting the definition of "elevated building," even though the lower area is enclosed by means of breakaway walls if the breakaway walls meet the standards of Section 60.3(e)(5) of the National Flood Insurance Program regulations.

15. **Existing construction** or **existing structures** means, for the purpose of determining flood insurance rates, structures for which the "start of construction" commenced before the effective date of the FIRM or before January 1, 1975, for FIRMs effective before that date.
16. **Existing manufactured home park or subdivision** means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before the effective date of the floodplain management regulations adopted by a community.
17. **Expansion to an existing manufactured home park or subdivision** means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).
18. **Federal Emergency Management Agency (FEMA)** means the federal agency responsible for administering the National Flood Insurance Program.
19. **Flood** or **flooding** means a general and temporary condition for partial or complete inundation of normally dry land areas from:
    **a.** The overflow of inland waters, or
    **b.** The unusual and rapid accumulation or run-off of surface waters from any source.
20. **Flood hazard area** means an area of special flood hazard.
21. **Flood Insurance Rate Map (FIRM)** means an official map of a community on which the Federal Emergency Management Agency has delineated both the areas of special flood hazards and the risk premium zones applicable to the community.
22. **Flood Insurance Study** is the official report provided by the Federal Emergency Management Agency. The report contains flood profiles, water surface elevation of the base flood and the Flood Boundary-Floodway Map.
23. **Floodplain** means any land area susceptible to being inundated by water from any source. (See definition of flooding.)
24. **Flood proofing** means any combination of structural and non-structural additions, changes, or adjustments to structures that reduce or eliminate flood damage to real estate or improve real property, water, and sanitary facilities, structures, and their contents.

25. **Flood protection system** means those physical structural works for which funds have been authorized, appropriated and expended and which have been constructed specifically to modify flooding in order to reduce the extent of the areas within a community subject to a "special flood hazard" and the extent of the depths of associated flooding. Such a system typically includes hurricane tidal barriers, dams, reservoirs, levees or dikes. These specialized flood-modifying works are those constructed in conformance with sound engineering standards.
26. **Floodway** is that portion of the flood hazard area identified by the Federal Emergency Management Agency as the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the regulatory flood without cumulatively increasing the water surface elevation more than one (1) foot.
27. **Full development/full urbanization** is full potential urbanization of the contributing watershed considering the Comprehensive Plan and land use regulations.
28. **Full development flood fringe** is that portion of the floodplain area between the outer boundary of the floodplain and the outer boundary of the flood hazard area. This area reflects the effects of full development of the watershed and extends to where the contributory drainage area is forty (40) acres or more.
29. **Functionally dependent use** means a use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities.
30. **Highest adjacent grade** means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.
31. **Historic structure** means any structure that is:
    - **a.** Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;
    - **b.** Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;
    - **c.** Individually listed on a state inventory of historic places in states with historic preservation programs that have been approved by the Secretary of the Interior; or
    - **d.** Individually listed on a local inventory or historic places in communities with historic preservation programs that have been certified either:
        - (1) By an approved state program as determined by the Secretary of the Interior; or
        - (2) Directly by the Secretary of the Interior in states without approved programs.

32. **Levee** means a man-made structure, usually an earthen embankment, designed and constructed in accordance with sound engineering practices to contain, control or divert the flow of water so as to provide protection from temporary flooding.
33. **Levee system** means a flood protection system which consists of a levee, or levees, and associated structures, such as closure and drainage devices, which are constructed and operated in accordance with sound engineering practices.
34. **Lowest floor** means the lowest floor of the lowest enclosed area (including basement). An unfinished or flood-resistant enclosure, usable solely for parking of vehicles, building access or storage in an area other than a basement area is not considered a building's lowest floor, provided that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirement of Section 60.3 of the National Flood Insurance Program regulations.
35. **Manufactured home** means a structure transportable in one (1) or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities. For floodplain management purposes, the term "manufactured home" also includes park trailers, travel trailers and other similar vehicles placed on a site for greater than one hundred eighty (180) consecutive days. For insurance purposes, the term "manufactured home" does not include park trailers, travel trailers or other similar vehicles.
36. **Manufactured home park or subdivision** means a parcel (or contiguous parcels) of land divided into two (2) or more manufactured home lots for rent or sale.
37. **New manufactured home park or subdivision** means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain management regulations adopted by a community.
38. **Mean sea level** means the National Geodetic Vertical Datum (NGVD) of 1929, or other datum, to which base flood elevations are shown.
39. **Natural state** means the cover and topography of land before any development or, in areas where there has already been development, the state of the area and topography of land on the date of December 22, 1977.
40. **New construction** means, for floodplain management purposes, structures for which the "start of construction" commenced on or after the effective date of a floodplain management regulation adopted by the City.
41. **One hundred year frequency rainstorm** is the rainstorm having an average statistical frequency of occurrence in the order of once in one hundred (100) years, although the rainstorm may actually occur in any year.
42. **Recreational vehicle** means a vehicle which is: (i) built on a single chassis; (ii) 400 square feet or less when measured at the largest horizontal projections; (iii) designed to be self-propelled or permanently towable by a light duty truck; and (iv) designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

43. **Regulatory flood** is the flood having a one percent (1%) chance of being equaled or exceeded in any given year.
44. **Regulatory floodplain** is the area subject to flooding by the regulatory flood based on the full development of the watershed and where the contributing drainage area is forty (40) acres or more as designated by the City.
45. **Sedimentation facilities** include debris basins, sedimentation traps, berms, interceptor ditches, land terraces, hay bales and vegetation ground cover.
46. **Special flood hazard area.** See "area of special flood hazard."
47. **Start of construction** includes substantial improvement and means the date the building permit was issued, provided that the actual start of construction, repair, reconstruction, placement or other improvement was within one hundred eighty (180) days of the permit date. The actual start means either the first placement of permanent construction or a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets or walkways; nor does it include excavation for basement, footing, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure.
48. **Stormwater Drainage and Hazard Mitigation Advisory Board** is the Advisory Board established in Chapter 1, Section 104 of this title.
49. **Stormwater Technical Advisory Group** is the Technical Advisory Group established by the Stormwater Drainage and Hazard Mitigation Advisory Board (SDHMAB) for the purpose of reviewing and recommending to the SDHMAB on issues pertaining to drainage standards, Watershed Development Permit appeals and requests for variances.
50. **Stormwater run-off** is that portion of the rainfall that is drained into the stormwater drainage system.
51. **Structure** means a walled and roofed building that is principally above ground, including a gas or liquid storage tank, as well as a manufactured home.
52. **Substantial damage** means damage of any origin sustained by a structure whereby the cost of restoring the structure to its before damaged condition would equal or exceed fifty percent (50%) of the market value of the structure before the damage occurred.
53. **Substantial improvement** means any repair, reconstruction or improvement of a structure, the cost of which equals or exceeds fifty percent (50%) of the market value of the structure, either before the improvement or repair is started or, if the structure has been damaged and is being restored, before the damage occurred. For purposes of this definition, "substantial improvement" is considered to occur when the first alteration of any wall, ceiling, floor or other structural part of the building commences, whether or not that alteration affects the external dimensions of the structure. The term does not, however, include any projects for improvement of a structure to comply with existing state or local health, sanitary or safety code

specifications which are solely necessary to assure safe living conditions, or any alterations of a structure listed on the National Register of Historic Places or State Inventory of Historic Places.

54. **Variance** means a grant of relief to a person from the requirements herein when specific enforcement would result in unnecessary hardship. A variance, therefore, permits construction or development in a manner otherwise prohibited by this chapter. (For full requirements, see Section 60.6 of the National Flood Insurance Program regulation.)

55. **Violation** means the failure of a structure or other development to be in full compliance with the City's floodplain management regulations. A structure or other development without the elevation certificate, other certifications or other evidence of the compliance required in Section 60.3(b)(5), (c)(4), (c)(10), (d)(3), (e)(2), (e)(4) or (e)(5) of the National Flood Program regulations is presumed to be in violation until such time as that documentation is provided.

56. **Watercourse** means any depression serving to give direction to a current of stormwater where the drainage area above the same is five (5) acres or more.

57. **Watershed** means the physical area from which water drains into a creek.

58. **Water surface elevation** means the height, in relation to the National Geodetic Vertical Datum (NGVD) of 1929 (or other datum, where specified) of floods of various magnitudes and frequencies in the floodplains of coastal or riverine areas.

*(Ord. Nos. 16959, 17285; Ord. No. 25244, § 1, 1-31-2024; Ord. No. 25399, § 1, 9-18-2024)*

**Section 302. Watershed development permits.**

**A. Watershed Development Permits.** Unless specifically exempted, a Watershed Development Permit, as required by this chapter, shall be obtained prior to the commencement of any development, redevelopment, building, excavating, grading, regrading, paving, landfilling, berming or diking of any property within the City.

**B. Permit Classification and Requirements.** Watershed Development Permit requirements shall be determined by the magnitude of the effects the proposed development could have on the stormwater drainage system in accordance with the following classifications.

1. **Floodway Watershed Development Permit (FW).** A Floodway Watershed Development Permit shall be obtained prior to any development or earth change where the same is located in the floodway.

2. **Flood Plain Watershed Development Permit (FP).** A Flood Plain Watershed Development Permit shall be obtained prior to any development or earth change where the same is located in the regulatory flood plain.

3. **Stormwater Drainage Watershed Development Permit (SD).** A Stormwater Drainage Watershed Development Permit shall be obtained prior to any development whose discharge at the point it leaves the site is greater than that which can be conveyed in a fifteen (15) inch diameter conduit.

4. **Stormwater Connection Watershed Development Permit (SC).** All other development being more than an earth change and not exempted herein shall be required to obtain a Stormwater Connection Watershed Development Permit.

**5. Earth Change Watershed Development Permit (EC).** An Earth Change Watershed Development Permit shall be obtained prior to any earth change.

**C. Exemptions.** A Watershed Development Permit shall not be required for the following activities:

**1.** Bona fide agricultural and farming operations which constitute the principal use of any lot or tract of ground in the City and which meet the requirement of the Zoning Code of the City of Tulsa;

**2.** Customary and incidental routine grounds maintenance, landscaping, and home gardening which does not require a special exception or a variance under the Zoning Code, or a building permit, and which does not affect stormwater drainage entering or leaving any public right-of-way;

**3.** Emergency repairs of a temporary nature made on public or private property which are necessary for the preservation of life, health or property, and which are made under such circumstances where it would be impossible or impracticable to obtain a Watershed Development Permit;

**4.** Temporary excavation for the purpose of repairing or maintaining any public street, public utility facility or any service lines related thereto; and

**5.** Routine maintenance of the stormwater drainage system that does not alter the initial design capacity of an improved drainage system or does not alter the conveyance capacity of a natural channel that is in a well-maintained condition.

**D. Application for Watershed Development Permit.**

**1. General Requirements.** Applications for a development permit required under this section shall be submitted to the Development Services Division of the Economic Development Department and shall be accompanied by a development site plan. The Director of Development Services shall review the information furnished by the applicant and determine whether a Floodway Watershed Development Permit (FW), Flood Plain Watershed Development Permit (FP), Stormwater Drainage Watershed Development Permit (SD), Stormwater Connection Watershed Development Permit (SC) or an Earth Change Watershed Development Permit (EC) is required or whether the activity is exempt.

**2. Permit Application.** The application and development site plan shall contain such information as required in City Drainage Standards.

**3. Inactive Permit Application Denial.** Failure of an applicant to provide all the information required by the Development Services Division of the Economic Development Department within sixty (60) days of receipt by the applicant of the request for the information shall result in the application's being denied unless an extension is granted in writing by the Development Services Division of the Economic Development Department.

*(Ord. Nos. 16959, 17285; Ord. No. 22250, § 1, 6-10-2010)*

## Section 303. Subdivision plats, re-plats, lot-splits and building permit approval.

All subdivision plats, re-plats, lot-splits and building permits shall be approved by the Public Works Department. The review and approval of any plat, re-plat, lot-split or building permit by the Public Works Department shall require the submittal and acceptance of drainage plans as required in City drainage standards or in the Plumbing Code.

*(Ord. Nos. 16959, 17285)*

## Section 304. Policies and standards for approval of watershed development permits, subdivision plats, lot-splits and building permits.

**A. General policies.** The issuance of watershed development permits and approval of subdivision plats, lot-splits and building permits shall be governed by the following general policies of the City:

**1.** The development shall not create a public hazard upon any property within the City or in immediately adjacent areas through the obstruction, impairment, sedimentation, blockage or alteration of the stormwater drainage system;

**2.** The development shall provide a sufficient stormwater drainage system for the conveyance of stormwater run-off received from upstream and from the subject property in a one hundred (100) year frequency rainstorm with due allowance having been made for full urbanization of the watershed when the quantity of stormwater may be increased; and

**3.** The development shall not result in additional identifiable adverse flooding of other property.

**B. Specific policies and standards.** The decision to deny a watershed development permit or to reject drainage plans for a subdivision plat, lot-split or building permit shall be accompanied by a statement of the reasons for such action. A development permit shall be issued if, upon review of the application therefor, it is found that the development meets and complies with the policies and standards hereinafter set out and duly adopted by the City by resolution.

**C. Drainage policies and standards.**

**1. Policies.**

**a.** The stormwater drainage system shall be designed to pass the stormwater run-off received from upstream and from the subject property in a one hundred (100) year frequency rainstorm under full urbanization.

**b.** Development shall be constructed so that it will not increase the frequency of flooding or the depth of inundation of structures.

**c.** Peak flows shall not be increased at any location for any storm, up to and including the one hundred (100) year storm, which will result in the inundation of unprotected structures not previously subject to inundation as a result of that same frequency storm.

**d.** Regulation of peak flows to allowable levels, as determined by subparagraphs (b) and (c) herein, shall be achieved by on-site or off-site storage as provided in the City drainage standards.

**e.** Subject to requirements for watershed development permits and of the City drainage standards, downstream conveyance may be improved to compensate for increased flows if such improvements comply with the policies of this chapter.

**f.** Dumping of any material into the stormwater drainage system is prohibited.

**2. Standards.**

**a.** The Director shall prepare standards for stormwater drainage facilities which shall become City drainage standards after approval by resolution by the governing body of the City.

**b.** All roofs, paved areas, yards, courts and courtyards, other than for one-family or two-family residential structures, shall drain into a separate storm sewer system or to an approved place of disposal.

**c.** In the case of one-family and two-family residential structures, stormwater may be discharged onto flat areas such as streets or lawns if drainage is provided so that the stormwater will flow away from the building.

**D. Erosion and sediment control policies and standards.**

**1. Policies.**

**a.** All developments shall be designed, constructed and completed in a manner which minimizes the exposure of bare earth to precipitation.

**b.** Development shall be constructed only if appropriate sedimentation facilities are installed and maintained throughout the construction period.

**2. Standards.** The policies governing watershed development, as it affects erosion and sediment control, shall be implemented by City drainage standards which shall specifically regulate the design, installation, maintenance and removal of sedimentation and erosion control facilities and structures and shall establish acceptable methods and practices for controlling soil sedimentation and erosion.

**E. Regulatory flood plain area policies and standards.** The Director shall, from time to time, prepare maps defining the one hundred (100) year, fully urbanized flood plains within the City. When adopted as official Regulatory Flood Plain Maps by the governing body of the City, the maps shall be made available to the public.

The provisions of this subsection shall apply to development within the identified regulatory flood plain areas graphically shown by the maps adopted by the City of Tulsa Resolution No. 13729, dated December 22, 1977, and amendments thereto.

**1. Regulatory flood plain area policies.**

**a.** Development which is dangerous to health, safety or property in times of flood or which would cause excessive increases in flood heights or velocities shall be restricted or prohibited.

**b.** Uses vulnerable to floods, including facilities which serve such uses, shall be protected against flood damage at the time of initial construction.

**c.** The alteration of natural flood plains, stream channels and watercourses shall be controlled.

**d.** Filling, grading, dredging and other development which may increase flood damage shall be controlled.

**e.** The construction of flood barriers which will unnaturally divert flood waters or which may increase flood hazards to other lands in and outside the City shall be prevented or regulated.

**f.** The approval or denial of a Floodway Watershed Development Permit or a Flood Plain Watershed Development Permit by the Director shall be based on the provisions of this chapter and the following relevant factors:

(1) the danger to life and property due to flooding or erosion damage;

(2) the susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

(3) the danger that materials may be swept onto other lands to the injury of others;

(4) the compatibility of the proposed use with existing and anticipated development;

(5) the safety of access to the property in times of flood for ordinary and emergency vehicles;

(6) the costs of providing governmental services during and after flood conditions, including maintenance and repair of streets and bridges, and public utilities and facilities such as sewer, gas, electrical and water systems;

(7) the expected heights, velocity, duration, rate of rise and sediment transport of the floodwaters expected at the site;

(8) the availability of alternative locations not subject to flooding or erosion damage for the proposed use; and

(9) the relationship of the proposed use to the comprehensive plan for that area.

**2. Regulatory flood plain area standards.**

**a. General requirements within regulatory flood plain areas.**

(1) All new construction and substantial improvements including placement of prefabricated buildings and manufactured homes shall be designed (or modified) and adequately elevated and anchored to prevent flotation, collapse or lateral movement of the structure.

(2) All new construction or substantial improvements shall be by methods and practices that minimize or eliminate flood damage.

(3) All new construction or substantial improvements shall utilize materials and utility equipment resistant to flood damage.

(4) All new and replacement water supply systems shall be floodproofed.

(5) New and replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of flood waters into the systems and discharges from the systems into flood waters.

(6) On-site waste disposal systems shall be located to avoid impairment to them or contamination from them during flooding.

(7) New structures shall be placed with their longitudinal axis parallel to the predicted direction of flow of flood waters or be placed so that their longitudinal axis are on lines parallel to those of adjoining structures.

(8) Filling or development which diminishes the flood storage capacity of any regulatory flood plain area shall be compensated for as specified in the City drainage standards.

**b. Development requirements in the regulatory flood plain areas.**

(1) All new construction and substantial improvements of any residential structure shall have the lowest floor, including basement, all electrical and mechanical equipment and ductwork, elevated at least one (1) foot above the regulatory flood elevation with full urbanization. A registered professional engineer or land surveyor shall submit a certification to the Director that the elevation requirement has been met.

(2) All new construction and substantial improvements of any commercial, industrial or other non-residential structure shall either have the lowest floor, including basement, all electrical and mechanical equipment and ductwork, elevated at least one (1) foot above the regulatory flood

elevation with full urbanization, or together with attendant utility and sanitary facilities, be floodproofed so that at least below one (1) foot above the regulatory flood level with full urbanization, the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer shall submit certification to the Director that this standard regarding floodproofing has been satisfied. A registered professional engineer or land surveyor shall submit a certification to the Director that the elevation requirement has been met.

(3) All new construction and substantial improvements of any structures that contain essential facilities and services necessary for emergency response and recovery, or that pose a substantial risk to the community at large in the event of failure, disruption of function, or damage by flooding, as defined in ASCE 24-14, shall have the lowest floor, including basement, all electrical and mechanical equipment and ductwork, elevated at least two (2) feet above the regulatory flood elevation with full urbanization or to the 0.2% (500-year) level of flooding whichever is higher. Alternatively the structure together with attendant utility and sanitary facilities, can be flood proofed so that at least below two (2) feet above the regulatory flood level with full urbanization or to the 0.2% (500-year) level of flooding whichever is higher, the structure is watertight with walls substantially impermeable to the passage of water. All structural components shall have the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer shall submit certification to the Director that this standard regarding floodproofing has been satisfied. A registered professional engineer or land surveyor shall submit a certification to the Director that the elevation requirement has been met

(4) All manufactured homes shall be elevated and anchored to prevent flotation, collapse or lateral movement from the regulatory flood with full urbanization. Acceptable methods of elevating and anchoring shall be set out in the City drainage standards. Methods of anchoring may include but are not limited to use of over-the-top or frame ties to ground anchors. This requirement is in addition to applicable state and local anchoring requirements for resisting wind forces.

(5) All manufactured homes to be placed in the regulatory flood plain shall have the bottom of the lowest horizontal framing member, all ductwork, electrical and mechanical equipment, elevated at least one (1) foot above the regulatory flood with full urbanization. A registered professional engineer land surveyor shall submit a certification to the Director that the elevation requirement has been met.

(6) An evacuation plan indicating vehicular access and escape routes for manufactured home parks and subdivisions located in or surrounded by regulatory flood plain areas shall be filed with the Public Works Department and the Tulsa Area Emergency Management Agency. The owner of the manufactured home park or subdivision shall be responsible for filing

vehicular access and escape routes with the Public Works Department and the Tulsa Area Emergency Management Agency and shall see that each tenant thereof has received an evacuation plan prior to the tenant's moving into the manufactured home park or subdivision.

(7) Placement of manufactured homes within the adopted regulatory floodway is prohibited except in a legally pre-existing manufactured home park or subdivision.

(8) All new construction and substantial improvements, with fully enclosed areas below the lowest floor that are subject to flooding, shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either be certified by a registered professional engineer or meet or exceed the following minimum criteria:

(a) A minimum of two (2) openings having a total net area of not less than one (1) square inch for every square foot of enclosed area subject to flooding shall be provided,

(b) The bottom of all openings shall be no higher than one (1) foot above grade; and

(c) Openings may be equipped with screens, louvers, valves or other coverings or devices, provided that they permit the automatic entry and exit of flood waters.

**c. Standards for subdivision proposals in regulatory flood plain areas.**

(1) All subdivision proposals shall have adequate drainage provided to reduce exposure to flood effects and shall comply with the provisions of this chapter and the City drainage standards.

(2) All subdivision proposals shall have public utilities and facilities such as sewer, gas, electrical and water systems located and constructed to minimize flood damage.

(3) Regulatory Flood Plain area delineation shall be clearly shown on all preliminary plats and final plats submitted for approval.

(4) All subdivision proposals, including manufactured home parks greater than fifty (50) lots or five (5) acres, whichever is lesser, shall show the water surface elevation of the base flood with full urbanization. When the fully urbanized base flood elevation data has not been provided, the Director shall obtain, review and reasonably utilize any base flood elevation data and floodway data available from a federal, state or other source in order to administer this provision.

**d. Standards for areas of shallow flooding (AO/AH Zones).**

(1) All new construction and substantial improvements of residential structures shall have the lowest floor (including basement, all electrical, mechanical, and ductwork equipment) elevated at least one (1) foot above the City determined Base Flood Elevation (BFE) or one (1) foot above the City regulatory elevation whichever is higher. Alternatively the structure together with attendant utility and sanitary facilities be designed so that

below the base flood elevation the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer shall submit a certification to the Director that the standards are satisfied. There shall be adequate drainage paths around structures on slopes to guide flood waters around and away from the proposed structures.

(2) The foregoing requirements of this subparagraph are minimal requirements and shall not relieve any new construction or substantial improvements from meeting and complying with additional requirements and provisions of this chapter.

**3. Area of special flood hazard, policies, and standards.** In all special flood hazard areas, the following policies and standards shall apply.

**a.** New construction, substantial improvements, or other development (including fill) shall not be approved in a special flood hazard area if it:

(1) Adversely affects the capacity of channels or floodways of any watercourse in the floodplain area to convey the regulatory flood or any flood of more frequent occurrence,

(2) Would measurably increase flood flows or flood heights or increase flood damage upon off-site properties during the occurrence of the regulatory flood or any flood of more frequent occurrence,

(3) Would individually or cumulatively, when combined with all other existing and anticipated development assuming an equal degree of encroachment for a significant reach on both sides of the stream or watercourse, increase flood levels or expose additional upstream, downstream or adjacent properties to adverse flood effects that would otherwise not be exposed to such effects due to flooding during the regulatory flood or any flood of more frequent occurrence,

(4) Increases velocities or volumes of flood waters to the extent that significant erosion of floodplain soils would occur either on the subject property or on some other property upstream or downstream, or

(5) Does not provide compensatory storage for any measurable loss of flood storage capacity.

**b.** Encroachments in all special flood hazard areas including fill, new construction, substantial improvements, and other development are prohibited unless the encroachments will not result in any increase of flood levels for the regulatory flood or any flood of more frequent occurrence.

**c.** Encroachments in the floodways including fill, new construction, substantial improvements and other development are prohibited unless the encroachments will not result in any increase of flood levels for the regulatory flood or any flood of more frequent occurrence, and certification demonstrating that the encroachments will not result in such increase in flood levels is provided by a professional registered engineer or architect.

**4. Special flood hazard area notice.**

**a.** Every owner of real property, any part of which is located in a special flood hazard area as depicted and shown on a Flood Insurance Rate Map adopted by the City, is hereby required to notify in writing every tenant of the real property of the location of the property in a designated special flood hazard area and to obtain and keep for inspection upon request by the Director or his authorized representative written acknowledgment of the receipt of the notice signed by each of the tenants.

The notice shall be given and the acknowledgment thereof obtained prior to any of the tenants taking possession of or occupying the real property or, in the case of property already rented or leased prior to the effective date of this provision, within sixty (60) days after its adoption and publication. The notice and acknowledgment shall be in a separate document and not a part of any other document, such as a lease, and it shall be substantially in the following form:

**NOTICE TO TENANT OF LOCATION IN FLOOD HAZARD AREA**

Notice is hereby given that the following-described real property is located within a flood hazard area as graphically shown on flood insurance rate maps as reviewed and adopted by the City of Tulsa:

(Put in legal description and address of property being leased or rented.)

Further information may be obtained from the Public Works Department of the City of Tulsa.

Dated this _____ day of _____, A.D._____.

_____
(Signature of Owner or Agent of Owner)

**ACKNOWLEDGMENT OF TENANT**

The undersigned tenants of the above-described real property hereby acknowledge receipt of notice that such property is located within a flood hazard area, as graphically shown on the Flood Insurance Rate Maps adopted by the City of Tulsa.

Dated this _____ day of _____, A.D._____.
(Signature of all tenants required)

I, _____ (name) the tenant _____ (address) acknowledge that I have received an Evacuation Plan for _____ manufactured home park.

_____
(Signature of Tenant)

**b.** All departments, agencies, boards, commissions and employees of the City, charged with the responsibilities of issuing permits for manufactured homes or modular homes in a special flood hazard area, including the issuance of permits for hook-up of utilities to the same, shall refrain and be prohibited from issuing any such permit unless the applicant for such permit provides a copy of the notice and acknowledgment properly signed by an owner and all tenants as required herein.

**c.** Every owner of real property, any part of which is located in a special flood hazard area as shown on Flood Insurance Rate Maps as reviewed and adopted by the City, is required to notify in writing every purchaser of the real property of the location of the property in a designated special flood hazard area. The notice shall be given at least ten (10) days prior to closing of sale and prior to any purchaser taking possession of or occupying the real property.

**5. Special flood hazard maps.**

**a. Establishing the areas of special flood hazard.** The areas of special flood hazard identified by the Federal Emergency Management Agency in a scientific and engineering report entitled "The Flood Insurance Study for City of Tulsa, Oklahoma," dated April 15, 1982, with accompanying Flood Insurance Rate Maps and Flood Boundary-Floodway Maps (FIRM and FBFM) and any revisions thereto are adopted by reference and declared to be a part of this chapter.

(NOTE: FEMA has designated flood hazard areas [A Zones] for the City of Tulsa by the publication of Flood Boundary and Floodway Maps and by publishing a notice of final flood elevations for flood hazard areas on Flood Insurance Rate Maps. The City must adopt regulations meeting the FEMA minimum requirements for adequate flood plain management for these flood hazard areas in order to qualify for the sale of federally-subsidized flood insurance. Risk premium rates for flood insurance are charged based on the FEMA flood hazard area and flood elevation determinations. Banks, savings and loan associations, or similar institutions regulated, supervised or insured by a federal instrumentality are required by Federal law as a condition of making a loan in a flood hazard area to notify the purchaser of such flood hazards, in writing, a reasonable period of time in advance of the signing of the purchase agreement, lease or other documents involved in the transaction.)

**b. FEMA map corrections and amendments.**

(NOTE: The Flood Boundary and Floodway Maps and Flood Insurance Rate Maps are revised by FEMA when there is a change of community regulatory flood elevations due to changed physical conditions or where the flood elevations are technically incorrect. FEMA also issues letters of map amendment to owners or lessees of property which have been inadvertently included in a flood hazard area [A Zone].)

The Public Works Department shall review and comment on all proposed revisions to FEMA flood hazard areas and flood elevations within the City of Tulsa prior to action by FEMA on those proposals.

The Public Works Department shall submit technical data to FEMA in order to maintain the Flood Boundary and Floodway Maps and Flood Insurance Rate Maps with current data.

The revised FEMA Flood Insurance Rate Maps shall be adopted biannually after public notice by the City. Subsequent to such adoption, the Clerk shall cause copies of the FEMA maps to be delivered to and acknowledgment of receipt of such delivery to be obtained from the Mayor's Office, the Public Works Department, the Tulsa Metropolitan Area Planning Commission, the

Indian Nations Council of Governments, the City-County Library, and its branches and to County Clerks in Tulsa, Osage and Rogers counties. Additional copies of the maps shall be provided to these County Clerks for distribution as information to County Engineers and Hydrologists and County Tax Assessors.

Notice shall be sent by the Public Works Department to appraisers, surveyors, realtors and lending institutions informing them that revised maps have been adopted and explaining where copies of the revised FEMA maps are located or where they may be obtained.

**6. Flood plain area notice.** The Public Works Department shall mail annually a notice to owners or occupants of structures within or touched by the regulatory flood plain areas, to provide information as to the status of the flood hazard for each property.

**F. Drainage Sensitive Area (DSA) policies and standards.** The Director shall, from time to time, prepare maps defining the one hundred (100) year, fully urbanized Drainage Sensitive Areas (DSAs) within the City. When DSAs are mapped and adopted by the governing body of the City, the maps shall be made available to the public for risk information in existing developed areas and elevation requirements for new developments.

The provisions of this subsection shall apply to development within the identified DSAs graphically shown by the maps adopted by the City of Tulsa.

**1. Drainage Sensitive Area policies.**

**a.** Development which is dangerous to health, safety or property in times of flooding or which would cause excessive increases in DSA elevations shall be restricted or prohibited.

**b.** Uses vulnerable to floods, including facilities which serve such uses, shall be protected against flood damage at the time of initial construction.

**c.** The alteration of natural DSAs and any overland flow paths shall be controlled.

**d.** Filling, grading, dredging and other development which may increase flood damage shall be controlled.

**e.** The construction of barriers which will unnaturally divert runoff waters or which may increase flood hazards to other lands in and outside the City shall be prevented or regulated.

**f.** The approval or denial of a Drainage Sensitive Area Watershed Development Permit by the Director shall be based on the provisions of this chapter and the following relevant factors:

(1) The danger to life and property due to flooding damage;

(2) The susceptibility of the proposed facility and its contents to flood and the effect of such damage on the individual owner;

(3) The compatibility of the proposed use with existing and anticipated development;

(4) The safety of access to the property in times of flooding for ordinary and emergency vehicles;

(5) The costs of providing governmental services during and after flood conditions, including maintenance and repair of streets and bridges, and public utilities and facilities such as sewer, gas, electrical and water systems;

(6) The expected heights, duration, and rate of rise of the floodwaters within the DSA expected at the site;

(7) The availability of alternative locations not subject to flooding damage for the proposed use; and

(8) The relationship of the proposed use to the comprehensive plan for that area.

**2. Drainage Sensitive Areas standards.**

**a. General requirements within Drainage Sensitive Areas.**

(1) All new construction including placement of prefabricated buildings and manufactured homes shall be designed (or modified) and adequately elevated and anchored to prevent flotation, collapse or lateral movement of the structure.

(2) All new construction shall be by methods and practices that minimize or eliminate flood damage.

(3) All new construction shall utilize materials and utility equipment resistant to flood damage.

(4) All new and replacement water supply systems shall be floodproofed.

(5) New and replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of stormwater into the systems and discharges from the systems into the DSA.

(6) On-site waste disposal systems shall be located to avoid impairment to them or contamination from them during flooding.

(7) Filling or development which diminishes the flood storage capacity of any DSA shall be compensated for as specified in the City drainage standards.

Compensatory storage calculations for DSAs shall be determined for all flood depths.

**b. Development requirements in the Drainage Sensitive Areas.**

(1) All new construction of any residential structure shall have the lowest floor, including basement, all electrical and mechanical equipment and ductwork, elevated at least one (1) foot above the DSA elevation with full urbanization. A registered professional engineer or land surveyor shall submit a certification to the Director that the elevation requirement has been met.

(2) All new construction of any commercial, industrial or other non-residential structure shall either have the lowest floor, including basement, all electrical and mechanical equipment and ductwork, elevated at least one (1) foot above the DSA elevation with full urbanization, or together with attendant utility and sanitary facilities, be floodproofed so that at least below one (1) foot above the DSA elevation with full

urbanization, the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer shall submit certification to the Director that this standard regarding floodproofing has been satisfied. A registered professional engineer or land surveyor shall submit a certification to the Director that the elevation requirement has been met.

(3) All new construction of any structures that contain essential facilities and services necessary for emergency response and recovery, or that pose a substantial risk to the community at large in the event of failure, disruption of function, or damage by flooding, as defined in ASCE 24-14, shall have the lowest floor, including basement, all electrical and mechanical equipment and ductwork, elevated at least two (2) feet above the DSA elevation with full urbanization. Alternatively the structure together with attendant utility and sanitary facilities, can be flood proofed so that at least below two (2) feet above the regulatory flood DSA elevation with full urbanization, the structure is watertight with walls substantially impermeable to the passage of water. All structural components shall have the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer shall submit certification to the Director that this standard regarding floodproofing has been satisfied. A registered professional engineer or land surveyor shall submit a certification to the Director that the elevation requirement has been met.

(4) All manufactured homes shall be elevated and anchored to prevent flotation, collapse or lateral movement from the DSA elevation with full urbanization. Acceptable methods of elevating and anchoring shall be set out in the City drainage standards. Methods of anchoring may include but are not limited to use of over-the-top or frame ties to ground anchors. This requirement is in addition to applicable state and local anchoring requirements for resisting wind forces.

(5) All manufactured homes to be placed in the DSA shall have the bottom of the lowest horizontal framing member, all ductwork, electrical and mechanical equipment, elevated at least one (1) foot above the DSA elevation with full urbanization. A registered professional engineer or land surveyor shall submit a certification to the Director that the elevation requirement has been met.

(6) Placement of manufactured homes within the DSA is prohibited except in a legally pre-existing manufactured home park or subdivision.

(7) All new construction and substantial improvements, with fully enclosed areas below the lowest floor that are subject to flooding, shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either be certified by a registered professional engineer or meet or exceed the following minimum criteria:

(a) A minimum of two (2) openings having a total net area of not less than one (1) square inch for every square foot of enclosed area subject to flooding shall be provided,

(b) The bottom of all openings shall be no higher than one (1) foot above grade; and

(c) Openings may be equipped with screens, louvers, valves or other coverings or devices, provided that they permit the automatic entry and exit of floodwaters.

**c. Standards for subdivision proposals in Drainage Sensitive Areas.**

(1) All subdivision proposals shall have adequate drainage provided to reduce exposure to flood effects and shall comply with the provisions of this chapter and the City drainage standards.

(2) All subdivision proposals shall have public utilities and facilities such as sewer, gas, electrical and water systems located and constructed to minimize flood.

(3) DSA delineation shall be clearly shown on all preliminary plats and final plats submitted for approval.

(4) All subdivision proposals, including manufactured home parks greater than fifty (50) lots or five (5) acres, whichever is lesser, shall show the water surface elevation of the DSA with full urbanization.

**3. Drainage Sensitive Area notice.**

**a.** Every owner of real property, any part of which is located in a DSA as depicted and shown on the City of Tulsa regulatory flood map adopted by the City, is hereby required to notify in writing every tenant of the real property of the location of the property in a designated DSA and to obtain and keep for inspection upon request by the Director or his authorized representative written acknowledgment of the receipt of the notice signed by each of the tenants.

The notice shall be given, and the acknowledgment thereof obtained prior to any of the tenants taking possession of or occupying the real property or, in the case of property already rented or leased prior to the effective date of this provision, within sixty (60) days after its adoption and publication. The notice and acknowledgment shall be in a separate document and not a part of any other document, such as a lease, and it shall be substantially in the form described in Section 304.E.4:

*(Ord. Nos. 16959, 17173, 17285, 17466, 18838; Ord. No. 23924, § 1, 6-6-2018; Ord. No. 25244, § 2, 1-31-2024; Ord. No. 25399, §§ 2, 3, 9-18-2024)*

## Section 305. Responsibilities of the Director of Public Works.

The responsibilities of the Director in administering the requirements of Subsection 304.E, Regulatory Flood Plain Area Policies and Standards, shall include:

**A.** Maintaining and holding open for public inspection all records pertaining to the provisions of this chapter, including the actual elevation of the lowest floor (including basement) of all new and substantially improved structures in the regulatory flood plain and, for structures that have been floodproofed, the elevation to which the structure was floodproofed;

**B.** Reviewing, approving or denying all applications for development permits required by Section 302 of this chapter;

**C.** Reviewing permits for proposed development to assure that all necessary permits have been obtained from those federal, state or local government agencies from which prior approval is required;

**D.** Making the necessary interpretation where interpretation is needed as to the exact location of the boundaries of the special flood hazard area (for example, where there appears to be a conflict between a mapped boundary and actual field conditions);

**E.** Notifying, in riverine situations, adjacent communities and the Oklahoma Water Resources Board prior to any alteration or relocation of a watercourse, and submitting evidence of such notification to the Federal Emergency Management Agency;

**F.** Assuring that the flood-carrying capacity within the altered or relocated portion of any watercourse is maintained;

**G.** When regulatory flood elevation data has not been provided by the Federal Emergency Management Agency, obtaining, reviewing and reasonably utilizing any base flood elevation data available from a federal, state, city or other source; and

**H.** Redefining within one hundred-eighty (180) days prior to the expected completion date of construction of any flood control protective works, the regulatory flood plain area as altered by the works; and submitting the new special flood hazard area definition and new regulatory flood elevation to FEMA for revision of the Flood Insurance Rate Maps.

*(Ord. Nos. 16959, 17285)*

### Section 306. Administrative procedures.

**A. Watershed development permit administrative criteria.**

1. **Permit fees.** Permits authorized by the provisions of this chapter shall be effective only upon payment of the appropriate fee as set out in the duly adopted drainage standards. Fees are payable:
   - **a.** Prior to the time the permit is issued by the Public Works Department if the watershed development permit is applied for through direct application to the Public Works Department, or
   - **b.** Prior to the time the building permit is issued if the watershed development permit application was made in connection with a building permit application.
2. **Effective date and expiration of watershed development permit.** The watershed development permit effective date shall be the date as stamped in the approval box of the permit and permits shall be valid only when signed by an authorized representative of the City.

   Any watershed development permit issued shall become invalid if the authorized work is not commenced within six (6) months after issuance of the permit or, if the authorized work is suspended or abandoned, for a period of six (6) months after the time of commencing the work, unless an extension has been granted in writing by the Public Works Department. One six (6) month extension will be routinely granted by the Public Works Department if requested by the applicant in writing.

**B. Appeals.** Any person who is aggrieved by a decision, requirement, ruling or interpretation of this chapter or of the City drainage standards may request review thereof by the

Director. The determination of the Director may be appealed by such person to the Stormwater Drainage Advisory Board by written notice of appeal filed with the Director within ten (10) days of his determination. The decision of the Stormwater Drainage Advisory Board may be appealed to the governing body of the City of Tulsa by such person or by the Director by written notice of appeal filed with the Office of the City Clerk within ten (10) days of decision by the Stormwater Drainage Advisory Board.

**C. Variances.** The Stormwater Drainage Advisory Board upon application, after hearing and subject to the procedural and substantive standards hereinafter set forth, may grant such variances from the terms of this chapter as will not cause detriment to the public good, safety or welfare nor be contrary to the spirit, purposes and intent of this chapter where by reason of unique and exceptional physical circumstance or condition of a particular property, the literal enforcement of the requirements of this chapter will result in an unreasonable hardship.

**1.** Applications for variance from the provisions of the Flood Plain Area Standards shall be made by the filing of a written request with the Public Works Department.

**2.** The following additional prerequisites are required for variances as to requirements of Subsection 304.E, Regulatory Flood Plain Area Policies and Standards:

**a.** A variance shall be granted only upon a determination that the variance is the minimum necessary to afford relief, considering the flood hazard;

**b.** Variances shall be granted only upon (1) showing of good and sufficient cause, (2) a finding that failure to grant the variance would result in exceptional hardship to the applicant, and (3) a finding that the granting of a variance would not result in increased flood heights, additional threats to public safety or extraordinary public expense, nor create nuisances, cause fraud on or victimization of the public nor conflict with existing local laws or ordinances;

**c.** Any applicant to whom a variance is granted shall be given written notice that the structure will be permitted to be built with a lowest floor elevation no more than a specified number of feet below the regulatory flood elevation and that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced lowest floor elevation;

**d.** A variance may be granted for the reconstruction, rehabilitation or restoration of structures listed on the National Register of Historic Places or the State Inventory of Historic Places without regard to the procedures set forth in Section 304 of this chapter;

**e.** Upon consideration of the factors noted above and the intent of this chapter, the Stormwater Drainage Advisory Board may attach such conditions to the granting of variances as it deems necessary to further the purpose and objectives herein; and

**f.** A variance shall not be granted within any designated floodway if any increase in flood levels during the regulatory flood discharge would result.

**D. Appeal and variance process.** Upon accepting a notice of appeal or an application for a variance, the Public Works Department shall:

**1.** Require the appellant or applicant to furnish the names and mailing addresses of all owners of the subject property and of all owners of property within a three-hundred (300) foot radius of the exterior boundary of the property as shown by County tax records;

**2.** Schedule a hearing date before the Stormwater Drainage Advisory Board;

**3.** Mail written notice to all owners of the subject property and to all owners of property within a three-hundred (300) foot radius of the exterior boundary of the subject property indicating that an appeal or variance has been requested and when a hearing will be held; and

**4.** Refer the notice of appeal or application for variance to the Stormwater Technical Advisory Group for review and recommendation to the Stormwater Drainage Advisory Board.

*(Ord. Nos. 16959, 17285, 17303)*

## Section 307. Enforcement and penalties.

**A. Notification of noncompliance.** If, at any time, a development occurs which is not in accordance with the provisions of this chapter or a watershed development permit, including conditions and approved modifications thereof, a written notice to comply shall be given by the City which shall state the nature and location of the alleged noncompliance, and shall specify remedial steps necessary to bring the project into compliance. The responsible parties shall have such time as may be allowed in the written notice to correct all noted deficiencies. The time allowed shall be reasonable and shall be determined by the nature of the deficiency and whether or not it creates a nuisance or hazard.

**B. Revocation or suspension of watershed development permit.** A watershed development permit may be revoked or suspended according to the provisions given herein.

**1. Grounds for revocation or suspension.** A watershed development permit may be revoked or suspended upon the occurrence of any one of the following events:

**a.** A violation of any condition of the permit;

**b.** A violation of any provision of this chapter or any other applicable law, ordinance, rule or regulation pertaining to the watershed development permit; or

**c.** The existence of any condition or the doing of any act constituting fraud, or creating a nuisance or hazard, or endangering human life or the property of others.

**2. Notice and order of revocation or suspension.** Upon the occurrence of any of the events above listed, the Director may cause to be served upon the permit holder a notice and order suspending or revoking the permit, specifying the grounds for the suspension or revocation and advising the holder that he is entitled to a hearing before the Director at a time, place and date specified in the notice and order, and further advising the holder that if the holder fails to appear at the time, place and date therein specified, the Director's order for suspension or revocation of the holder's permit shall be final.

**3. Hearing before the Director.** At the hearing before the Director, the permit holder shall be afforded the opportunity to respond to the charges of the Director and to present information to show why his permit should not be revoked or suspended. After such hearing, the Director may either affirm, modify or reverse his order for suspension or revocation of the holder's permit, and shall notify the

holder in writing of his decision within five (5) days of the date of the hearing. The Director's decision shall be final, unless the permit holder appeals the decision to the Stormwater Drainage Advisory Board as provided herein.

4. **Appeals.** An appeal from the Director's decision to the Stormwater Drainage Advisory Board ("Board") shall be by written notice of appeal filed with the Director within ten (10) days of the receipt of the Director's decision. The Director shall place the appeal on the agenda of the next regular or special meeting of the Board and shall notify the permit holder of the time, place and date of such meeting. The decision of the Board may be appealed to the governing body of the City by the permit holder or the Director by written notice of appeal filed with the City Clerk within ten (10) days of the decision of the Board. If no appeal is taken to the governing body as herein provided, the decision of the Board shall be final.

5. **Service.** Notices and orders required by this subsection shall be served upon each party concerned, either personally or by certified mail, addressed to the individual contracting party or permit holder at the address given on the contract document or permit application filed with the City.

6. **Stop work order.** Upon the suspension or revocation of a watershed development permit by the Director, the Director may issue a stop work order on all construction activity on the subject property which may be directly or indirectly related to site drainage and which is being performed pursuant to any permits, licenses, franchises or contracts issued or approved by the City. Such stop work order may order a work stoppage on all construction activity on buildings or structures and appurtenances thereto, including building, electrical, plumbing, mechanical and street work, storm sewers, sanitary sewers, gas lines and all utilities including gas, electric, telephone and cable television.

**C. Penalty.** Unless otherwise provided herein, every person, firm, corporation or other legal entity violating any of the provisions of this chapter or conditions made pursuant thereto shall be guilty of an offense and, upon conviction thereof, shall be punished by imprisonment in the City jail for a period of not more than ninety (90) days and/or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs.

**D. Fine or imprisonment not exclusive remedies.** In addition to fine or imprisonment, the City may institute appropriate actions or proceedings at law or equity to enforce the provisions of this chapter or City drainage standards or to correct violations thereof. The conviction and punishment of any person hereunder shall not relieve the person of the responsibility to correct prohibited conditions or to remove prohibited buildings, structures, obstructions or improvements nor prevent the enforcement, correction or removal thereof.

## Section 308. Warning and disclaimer of liability.

The City recognizes that, although the degree of flood protection required by this chapter is considered reasonable for regulatory purposes and is based on scientific and engineering considerations, on rare occasions greater floods can and will occur, and flood heights may be increased by man-made or natural causes. These provisions do not imply that land outside the flood plain areas or that uses permitted within such areas will be free from flooding or

flood damages. These provisions shall not create liability on the part of the City of Tulsa or any officer or employee thereof for any flood damages that result from reliance on this chapter or any administrative decision lawfully made thereunder.

*(Ord. Nos. 16959, 17285)*

## CHAPTER 4. PUBLIC INVOLVEMENT PROCESS

Section 400. Adoption of Stormwater Drainage Advisory Board public involvement process.
Section 401. Effective date.

### Section 400. Adoption of Stormwater Drainage Advisory Board public involvement process.

The recommended public involvement process for stormwater capital plans and major projects adopted by the Stormwater Advisory Board on August 13, 1990, as amended, and attached hereto as "Attachment A" be and the same is hereby adopted as the policy for public involvement for stormwater capital plans and major projects for the City of Tulsa.

*(Ord. Nos. 17285, 17387)*

### Section 401. Effective date.

The effective date of this ordinance shall be upon is passage, approval and publication and shall not apply to funded capital plans and major projects in existence on the effective date of this ordinance.

*(Ord. Nos. 17285, 17387)*

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## ATTACHMENT A

## RECOMMENDED PUBLIC INVOLVEMENT PROCESS FOR STORMWATER CAPITAL PLANS AND MAJOR PROJECTS

**I** BASIN DRAINAGE PLANS

- Notification of public meetings.
- Initial public meeting to inform residents and interested parties of the study and solicit input on problems and concerns.
- One or more interim meetings to discuss options and proposed solutions.
- Final meeting to present recommended plan and answer questions.

**II** CITYWIDE MASTER DRAINAGE PLAN

- Stormwater Drainage Advisory Board hosts meetings, as requested, with interested groups, including district councilors and affected boards and authorities.
- Public hearing(s) by Tulsa Metropolitan Area Planning Commission.
- Public hearing(s) by City Council, before adoption as part of Tulsa Comprehensive Plan.

**III** FUNDING OF CAPITAL PROJECTS

- Meetings throughout city to discuss citywide service and capital needs and options such as bond issues and sales tax proposals—hosted by Mayor and City Council, who develop recommended list to submit to voters.
- Meetings with interested groups, including district councilors, to discuss proposals and specific projects, upon requests.
- Voter approval.

**IV** DESIGN OF CAPITAL PROJECTS

- Public workshop with interested individuals and groups, including district councilor, boards and authorities, interested neighbors, etc., to address design issues and concerns, for projects costing One Million Dollars ($1,000,000.00) or more.

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## CHAPTER 5. POLLUTION

Section 500. Scope.
Section 501. Definitions and abbreviations.
Section 502. Discharge requirements.
Section 503. Spills.
Section 504. Pavement wash waters.
Section 505. Construction activities.
Section 506. Record keeping.
Section 507. Reporting requirements.
Section 508. Compliance monitoring requirements.
Section 509. Requirements for best management practices.
Section 510. Inspections and sampling.
Section 511. Administrative enforcement remedies.
Section 512. Violations, injunction and criminal prosecution.
Section 513. Confidential information.

### Section 500. Scope.

This chapter establishes methods to regulate the introduction of pollutants to the City of Tulsa's municipal separate storm sewer system and enables the City to comply with all applicable state and federal laws and regulations, including the federal Clean Water Act, 33 U.S.C. §§ 1251, *et seq.*, the Oklahoma Environmental Quality Act, 27A O.S.2001, §§ 1-1-101, *et seq.*, and stormwater regulations contained in 40 CFR Part 122, EPA Administered Permit Programs: the National Pollutant Discharge Elimination System (NPDES). The objectives of this chapter shall permit the City of Tulsa to:

**A.** Regulate the contribution of pollutants into the municipal separate storm sewer system through the stormwater discharges of any user;

**B.** Control the introduction into the municipal separate storm sewer system of spills, dumping or the disposal of materials other than stormwater;

**C.** Prohibit illicit discharges into the municipal separate storm sewer system;

**D.** Carry out inspections, surveillance and monitoring procedures necessary to determine compliance and noncompliance with this chapter; and

**E.** Comply with its OPDES Municipal Storm Water Discharge Permit conditions and any other federal or state law or regulation pertaining to stormwater quality.

*(Ord. Nos. 18588, 21383)*

### Section 501. Definitions and abbreviations.

**A.** As used in this chapter, the following terms, phrases and words shall have the meanings given below:

**Act or "the Act"** shall mean the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. §§ 1251, *et seq*.

**Best management practice** or **BMP** shall mean the best available practices or devices that, when used singly or in combination, eliminate or reduce the contamination of surface waters, ground waters or both. BMPs shall be divided into the following categories:

**1. Nonstructural best management practices,** which shall mean those which require modified or additional operational or behavior practices, such as sweeping a parking lot or having spill response equipment on site; and

2. **Structural best management practices,** which shall mean those which require the construction of a structure or other physical modification on the site.

**City** shall mean the City of Tulsa, Oklahoma, a municipal corporation, and its duly authorized officers, agents and employees.

**Composite sample** shall mean a sample of stormwater run-off, resulting from the combination of individual samples taken at selected intervals, based on an increment of either flow or time.

**Director** shall mean the Director of Public Works and Development, or the person succeeding to this person's duties and functions, by whatever name known, or this person's duly authorized representative.

**Discharge** shall mean any addition or introduction of any pollutant, stormwater or any other substance whatsoever into the municipal separate storm sewer system (MS4) or into waters of the United States.

**Environmental Protection Agency** or **EPA** shall mean the United States Environmental Protection Agency or, where appropriate, the term may also be used as a designation for the Regional Water Management Division Director or other duly authorized official of the EPA.

**Floatable** shall mean any buoyant or semi-buoyant, organic or inorganic, water-borne waste material such as litter, paper, Styrofoam, grass, leaf litter, cigarette butts and other debris.

**Garbage** shall mean trash, with reference to collections of pollutants at floatable collection sites.

**Grab sample** shall mean a sample of stormwater run-off which is taken on a one-time basis, without regard to the flow and consideration of time.

**Illicit discharge** shall mean any intentional discharge to the municipal separate storm sewer system (MS4) that is not composed entirely of stormwater, except discharges pursuant to Subsection 502.A. of this chapter, or discharges resulting from fire fighting activities.

**Industrial activity** shall mean any activity which is directly related to manufacturing, processing or raw materials storage areas at an industrial facility. The term includes, but is not limited to, industrial plant yards; immediate access roads and rail lines used or traveled by carriers of raw materials, manufactured products, waste material or by-products used or created by the industrial facility; sites where material handling activities are performed; refuse sites; sites used for the applications or disposal of process waste waters; sites used for the storage and maintenance of material handling equipment; sites used for residual treatment, storage or disposal; shipping and receiving areas; manufacturing buildings; storage areas, including tank farms, for raw materials, and intermediate and finished products.

**Industrial facility or industry** shall mean any premises whose function is classified in the latest edition of the Standard Industrial Classification Manual, also known as the SIC code manual, prepared by the Executive Office of the President, Office of Management and Budget.

**Material handling activities** shall mean the storage, loading and unloading, transportation or conveyance of any raw material, intermediate product, finished product, by-product or waste product.

**Monitoring** shall mean the performance of stormwater flow measurements, stormwater sampling, sample analysis and like procedures necessary to determine compliance with stormwater discharge activity.

**Municipal separate storm sewer system or MS4** shall mean a conveyance or system of conveyances, including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels and storm drains that are owned or operated by the City and are designed or used for collecting or conveying stormwater.

**OPDES Storm Water Discharge Permit** shall mean the most current "Multi-Sector General Permit for Storm Water Discharge Associated with Industrial Activities for the State of Oklahoma," or the most current "General Permit for Storm Water Discharge Associates with Construction Activities within the State of Oklahoma," with provisions under the Oklahoma Administrative Code (OAC), § 252:606, incorporating by reference 40 CFR Part 122.26, as issued by the Oklahoma Department of Environmental Quality (ODEQ).

**Outfall** shall mean a point source as defined in this chapter.

**Person** shall mean an individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity, or their lawful representatives, agents or assignees. This definition shall include all federal, state and local governments.

**Point source** shall mean any discernible, confined and discrete conveyance, including but not limited to any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, rolling stock, concentrated animal feeding operation, landfill leachate collection system, vessel or other floating craft from which pollutants are or may be discharged.

**Pollutant** shall mean any dredge spoil, solid waste, incinerator residue, oil, grease, sewage, garbage, sewage sludge, munitions, medical waste, chemical waste, industrial waste, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt, agriculture waste, industrial waste, municipal waste and the characteristics of the wastewater including but not limited to, pH, temperature, TSS, turbidity, color, BOD, COD, toxicity and odor.

**Premises** shall mean any plot or tract of ground, regardless of size or plat, owned by a person or used by a person and any contiguous plots.

**Significant materials** shall mean any raw materials, fuels, materials such as solvents, detergents and plastic pellets, finished materials such as metallic products, raw materials used in food processing or production, hazardous substances.

**Spills** shall mean any release that has negatively or has the potential to negatively impact the quality of water within, or discharges from the City's municipal separate storm sewer system (MS4) or causes damaging or deleterious effects to the City's MS4, including all structures or appurtenances, or creates any violation of this chapter.

**Stormwater** shall mean any rainwater run-off, surface run-off and drainage related to storm events or snow melt.

**Stormwater discharge associated with industrial activity** shall mean stormwater from areas of industrial activity or areas where industrial activity has taken place in the past and significant materials remain and are exposed to stormwater.

**User** shall mean any source of direct or indirect discharge into the City's municipal separate storm sewer system (MS4).

**B.** As used in this chapter the following abbreviations shall have the meanings given below:

| | | |
|---|---|---|
| BMP | - | Best Management Practices |
| BOD | - | Biochemical Oxygen Demand |
| CFR | - | Code of Federal Regulations |
| COD | - | Chemical Oxygen Demand |
| EPA | - | United States Environmental Protection Agency |
| gpd | - | Gallons per Day |
| l | - | Liter |
| mg | - | Milligrams |
| mg/l | - | Milligrams per Liter |
| MS4 | - | Municipal Separate Storm Sewer System |
| OAC | - | Oklahoma Administrative Code |
| NOI | - | Notice of Intent |
| NOV | - | Notice of Violation |
| NPDES | - | National Pollutant Discharge Elimination System |
| ODEQ | - | Oklahoma Department of Environmental Quality |
| OPDES | - | Oklahoma Pollutant Discharge Elimination Discharge System (See Oklahoma Administrative Code (OAC), Title 252, Chapter 606, §§ 252:606-1-1 *et seq.*, as amended) |
| RCRA | - | Resource Conservation and Recovery Act of 1976 (Pub.L. 94-580, Oct. 21, 1976, 90 Stat. 2795, as amended) |
| SARA | - | Superfund Amendments and Reauthorization Act of 1986 (Pub.L. 99-499, Oct. 17, 1986, 100 Stat. 1613, as amended) |
| SWDA | - | Solid Waste Disposal Act (Pub.L. 89-272, Title II, Oct. 20, 1965, 79 Stat. 997, 42 U.S.C. §§ 6901, *et seq.* as amended) |
| TSD | - | Treatment, Storage and Disposal Facilities |
| TSS | - | Total Suspended Solids |
| USC | - | United States Code |

*(Ord. Nos. 18588, 21383)*

**Section 502. Discharge requirements.**

**A. Allowable discharges.**

**1.** The following types of discharges shall not be prohibited discharges unless the Director determines that the type of discharge, whether singly or in combination with others, causes contamination of surface water, stormwater or groundwater; causes overload or damage to the MS4 or has the potential to endanger public health and safety; or causes the City to violate its OPDES Municipal Storm Water Discharge Permit:

**a.** Potable water discharges;

**b.** Potable water line flushing;

**c.** Diverted stream flows;

**d.** Rising groundwater;

**e.** Uncontaminated groundwater infiltration;

**f.** Uncontaminated pumped groundwater;

**g.** Uncontaminated water from crawl space and footing drains;

**h.** Air conditioner condensations;

**i.** Irrigation water;

**j.** Springs;

**k.** Residential car washing (including charity car washes);

**l.** Flows from riparian habitats and wetlands;

**m.** Swimming pool discharges (e.g. discharges without significant amounts of chlorine); or

**n.** Municipal street washing waters.

**2.** Dye testing shall be an allowable discharge, but shall require verbal notification to the Director prior to testing. The City shall be exempt from this requirement.

**3.** Any discharge that has a current NPDES discharge permit with the EPA or has a current OPDES discharge permit with the ODEQ shall be an allowable discharge, with the following exceptions:

**a.** A discharge that results in the City violating its OPDES Municipal Storm Water Discharge Permit;

**b.** A discharge the Director determines causes contamination of surface water, stormwater or groundwater within the City; or

**c.** A discharge that could block or damage the MS4.

**4.** Stormwater that is not commingled with stormwater associated with industrial activity and required to obtain an OPDES Storm Water Discharge Permit before it may lawfully create a point source discharge into the MS4.

**5.** Any stormwater that is associated with industrial activity and has had pollutants removed by structural or nonstructural BMPs, to a level considered satisfactory by the Director shall be an allowable discharge.

**6.** Other types of discharges determined allowable by the Director.

**B. Prohibited discharges.**

**1.** It shall be unlawful and a misdemeanor offense to discharge or allow the discharge of any of the following into the City's MS4:

**a.** All non-stormwater except those classified as an allowable discharge in Subsection 502.A. of this chapter;

**b.** Any stormwater from any activity required to obtain an OPDES Storm Water Discharge Permit, unless the discharge is authorized by a valid OPDES Storm Water Discharge Permit;

**c.** Any spilled pollutants, unless it can be demonstrated that failure to allow the discharge will result in a greater imminent peril or hazard to the life, health, welfare or safety of the public; or

**d.** Any material that is disposed of or dumped in such a manner that causes pollutants to be discharged.

**2.** It shall be unlawful and a misdemeanor offense for any person to place, store or locate any material in such a manner that causes pollutants to be transported by wind, rain or other atmospheric conditions into the City's MS4.

**3.** Any point source discharge into the City's MS4 that either singly or in conjunction with other discharges causes the City to violate its OPDES Municipal Storm Water Discharge Permit shall be prohibited.

**4.** It shall be unlawful and a misdemeanor offense for any person to dispose of grass, dirt, leaves, trash or other pollutants into the City's MS4.

**5.** Any illicit discharge, except those allowable pursuant to Subsection 502.A. of this chapter, shall be prohibited.

*(Ord. Nos. 18588, 21383)*

## Section 503. Spills.

Spills that have the potential to enter or have entered the City's MS4 shall be contained, and remediation activity shall be commenced, as soon as possible. Any person identified as the source of any spill into the City's MS4 shall be required to remediate, remove and properly dispose of spilled materials. Remediation activities shall only be considered complete when the clean-up is deemed satisfactory by the Director. The required reporting or notification for such spills shall be completed as specified in Subsection 507.C of this chapter.

*(Ord. Nos. 18588, 21383)*

## Section 504. Pavement wash waters.

Discharges to the City's MS4, resulting from the cleaning of driveways, parking lots and other paved surfaces shall be deemed allowable upon the fulfillment of the following requirements:

**A.** The person conducting the cleaning shall employ BMPs, including but not limited to absorbent materials, which prevent the discharge of pollutants into the City's storm sewer;

**B.** Prior to any washing, floatables shall be removed from the surface that is about to be cleaned.

**C.** The discharge shall not result in a violation of the City's OPDES Municipal Storm Water Discharge Permit; and

**D.** The discharge, based upon the determination of the Director, shall not cause contamination of surface water, stormwater or groundwater within the City.

*(Ord. Nos. 18588, 21383)*

**Section 505. Construction activities.**

**A. Construction.** All construction activities, including the development, excavation, grading, regrading, paving, landfilling, berming and diking of land shall be conducted in such a manner as to minimize erosion and prevent the discharge of pollutants, including but not limited to rock, sand and soil into the City's MS4. Persons conducting the construction shall implement and maintain adequate structural and/or nonstructural BMPs for controlling the discharge of pollutants. The adequacy of any BMP shall be based upon the fulfillment of the following requirements:

**1.** The discharge shall not result in a violation of the City's OPDES Municipal Storm Water Discharge Permit;

**2.** The discharge, based upon the determination of the Director, shall not cause contamination of surface water, stormwater or groundwater within the City; and

**3.** The discharge, based upon the determination of the Director, does not transport sediment into the City's MS4.

**B. Responsible person.**

**1.** Any person with overall responsibility for the construction, such as the general contractor, shall be jointly responsible with the person at whose direction the construction is conducted, for purpose of compliance with Subsection 505.A of this chapter.

**2.** If construction on a particular site requires that a "Notice of Intent (NOI) for Storm Water Discharges Associated with Construction Activity Under the OPDES General Permit" be filed with the ODEQ, then the Facility Operator listed on the notice shall be responsible for compliance with Subsection 505.A of this chapter.

*(Ord. Nos. 18588, 21383)*

**Section 506. Record keeping.**

**A. Duration.** Every person and industry shall retain and make available to the Director for inspection and copying, all records and information required to be retained under this chapter, or order issued hereunder. The person or industry shall retain these records for a period of no less than five (5) years after an initial request by the Director. This retention period shall be automatically extended for the duration of any litigation concerning compliance with this chapter, or where the industry or person has been specifically notified of a longer retention period by the Director.

**B. Fraud and false statements.** Reports and other documents required to be submitted or maintained under this chapter, or order issued hereunder, shall be subject to the provisions of 18 U.S.C. § 1001, regarding fraud or false statements and the provisions of § 309c(4) of the Act, as amended, governing false statements, representations or certification.

*(Ord. Nos. 18588, 21383)*

## Section 507. Reporting requirements.

**A. Submission of correspondence.** Any industry that performs an industrial activity that is required under OPDES, OAC 252:606, to obtain an OPDES Storm Water Discharge Permit from ODEQ or to obtain an NPDES Storm Water Discharge Permit from the EPA, under 40 CFR Part 122.26, shall submit a copy of that application and permit, as well as any written correspondence with any federal, state or local agency regarding the permit, to the Director within fifteen (15) days of a request.

**B. Availability.** Any permits, pollution prevention plans or other documents regarding an industry's or construction site's OPDES Storm Water Discharge Permit shall be made available to the Director upon request.

**C. Spills.** Any person or industry shall, at the earliest possible time but, in any case, no later than one (1) hour from discovery, orally report to the Director a spill, release, dumping or other situation that has contributed or is likely to contribute pollutants into the MS4. This notification shall include the location, type, concentration and volume, if known, and corrective actions taken. Written notification shall also be made to the Quality Assurance Section of the Public Works and Development Department of the City within five (5) days of the discovery of the spill. This notification shall include all the notification requirements specified within this section. These reporting requirements shall be in addition to and not in lieu of any other reporting requirements imposed under federal, state and local laws or regulations.

**D.** All persons or industrial facilities may be required to provide other reports deemed necessary by the Director to monitor, maintain and ensure compliance with this chapter.

**E. Timing.** Reports required to be submitted pursuant to this chapter, or orders issued by the Director, shall be deemed to have been submitted on the date postmarked. For reports that are not deposited, postage prepaid, into a mail facility serviced by the United States Postal Service, or reports whose postmark is illegible, the actual date of receipt shall govern.

*(Ord. Nos. 18588, 21383)*

## Section 508. Compliance monitoring requirements.

**A. Stormwater sampling event criteria.** When the Director requires that a sample of a storm event shall be obtained, the following criteria shall be met:

**1.** The depth of the rainfall shall be greater than one-tenth (0.1) inch or its equivalent;

**2.** The sample storm event shall be preceded by at least seventy-two (72) hours of less than one-tenth (0.1) inch of rainfall; and

**3.** All point sources from the premises or industry required to sample must be sampled, unless otherwise specified, in accord with Subsection 508.E. of this chapter.

**B. Sampling.** When the Director has cause to believe that any person or industrial facility is violating the provisions of this chapter or in order to comply with the City's MS4 permit, a person or industrial facility may be required to obtain either a grab or composite sample and analyze any discharge, stormwater, groundwater or sediment and provide a copy of the analysis to the Director for review.

**C. Illicit discharge sampling.** When the Director has cause to believe that any discharge is an illicit discharge, the Director may obtain either a grab or composite sample and analyze the discharge. If the Director determines that the discharge is an illicit discharge, then the Director may fully recover all cost of the sampling and analysis from the person or industrial facility. When the discharge is likely to contain illicit discharges on a recurring basis, the person or industrial facility may be required by the Director to conduct monitoring activities at its expense.

**D. Chain-of-custody.** Upon completion of sample collections and documentation, a written record of the chain-of-custody shall be completed. The chain-of-custody record shall be an accurate step-by-step documentation of the sampling path, from origin through analysis. It shall contain the following information:

**1.** Name of the person(s) collecting the sample;

**2.** Sample ID numbers;

**3.** Date and time of sample collection;

**4.** Location of sample collection;

**5.** Name(s) and signature(s) of all persons handling the sample in the field and in the laboratory;

**6.** Type of sampling equipment used;

**7.** Type of preservation; and

**8.** Certification of sample authenticity.

A copy of the chain-of-custody shall remain with all sample analyses sent to the City for review.

**E. Substitution of substantially identical effluents.** When a person or industry is required to sample a storm event and that person or industry has two (2) or more outfalls, with substantially identical effluents, based on similarities of the industrial activities, significant materials and storm water management practices occurring within the outfalls' drainage areas, examination of only one (1) of the outfalls shall be required, provided the report shall state the examination applies to substantially identical outfall(s). For this to be permissible, the person or industry shall petition the Director to allow the sampling of only one (1) outfall and report that the data applies to substantially identical outfall(s). This petition shall include: locations of outfalls, why the outfalls are expected to discharge substantially identical effluents and estimates of the size of the drainage area of each outfall, in square feet.

**F. Monitoring methods.** Monitoring shall be conducted according to test procedures approved under 40 CFR Part 136. If 40 CFR Part 136 does not contain test procedures for the pollutant in question, analyses shall be conducted in accordance with procedures approved by the EPA.

*(Ord. Nos. 18588, 21383)*

## Section 509. Requirements for best management practices.

**A. Implementation.** If the Director determines that a stormwater discharge into the MS4 is, or has the potential of, contributing to water quality degradation, has potential to cause any violation of this chapter or, causes a violation of the City's OPDES Municipal Storm Water Discharge Permit, a BMP shall be implemented. The type and

number of BMPs shall be addressed individually, with the initial implementation of nonstructural BMPs, followed by structural BMPs. The Director may require additional BMPs to be implemented for any discharge from a commercial, residential and industrial source.

**B. Spill BMPs.** All persons and industrial facilities shall take measures to prevent spills or any other accidental introduction of pollutants into the MS4. These measures shall take the form of BMPs.

*(Ord. Nos. 18588, 21383)*

### Section 510. Inspections and sampling.

**A. Right of access.** The Director or the Director's authorized representative bearing credentials, shall be permitted to gain access to such premises as may be necessary for the purpose of inspecting, observing, measuring, sampling and testing, as often as may be necessary, to determine compliance with the provisions of this chapter.

**B. Inspections.** The Director or the Director's authorized representative bearing credentials, retains the right to perform inspections at any industrial facility or any other premises that discharges or has the potential to discharge stormwater into the MS4. Whenever an inspection of such premises is made, the findings shall be recorded and a copy of the inspection report made available to the owner or person in charge of such premises, after finalization of the inspection report.

*(Ord. Nos. 18588, 21383)*

### Section 511. Administrative enforcement remedies.

The following enforcement provisions are intended to encourage compliance with this chapter.

**A. Notice of violations.** Whenever the Director determines that a violation of this chapter has occurred or is occurring, the Director may issue a notice of violation (NOV) to the person or industry. This NOV shall include the nature of the violation and provide a reasonable time for correction. The Director may require, within fifteen (15) days of the receipt of this NOV, an explanation of the violation and a plan for the satisfactory correction and prevention, including specific required actions. The explanation and plan shall be submitted by the violator to the Director in writing. Submission of this plan shall in no way relieve the person or industry of liability for any violation(s) occurring before or after receipt of the NOV. Issuance of a NOV shall not preclude any other enforcement action.

**B. Administrative orders.**

1. **Consent orders.** The Director is empowered to enter consent orders, assurances of voluntary compliance or other similar documents establishing a consensus with any person or industry for noncompliance. Such an order shall include specific action to be taken by the violator to correct the noncompliance within a time period specified in the order. Consent orders shall be judicially enforceable.

2. **Compliance orders.** When the Director finds that a person or industry has violated or continues to violate this, chapter or orders issued hereunder, the Director may issue an order to the violator directing that compliance be obtained within a specified time period. If compliance is not achieved within the time period,

water service or sewer service, or both services may be discontinued, unless adequate BMPs or other related appurtenances are installed and properly operated. Compliance orders may also contain other requirements addressing noncompliance, including additional self-monitoring. A compliance order shall not extend the deadline for compliance established by a federal standard or requirement, nor shall a compliance order release the violator from liability for any violation, including any continuing violation. Issuance of a compliance order shall not preclude any other enforcement action.

3. **Cease and desist orders.** When the Director finds that a person or industry is violating provisions of this chapter, or any order issued hereunder, or that past violations are likely to recur, the Director may issue an order directing the violator to cease and desist all such violations or activities likely to cause a recurrence, and to:

   **a.** Immediately comply with all requirements, and

   **b.** Take such appropriate remedial or preventive actions as may be necessary to properly address a continuing or threatened violation, including halting operations or terminating the discharge.

4. Issuance of a cease and desist order shall not preclude other action against the violator.

5. Administrative orders may be revised by the Director at anytime in order to insure compliance with this chapter.

**C. Administrative fines.**

1. When the Director finds that a user has violated or continues to violate any provision of the chapter, or order issued hereunder, the Director, upon good cause shown, may impose an administrative fine against such user in an amount not to exceed One Thousand Dollars ($1,000.00). Such fines may be assessed on a per violation, per day basis.

2. Notice of an administrative fine shall be served personally on the user or by certified mail, return receipt requested. Payment of the fine shall be received by the Director within fifteen (15) days after such notice is served.

3. Failure to submit payment for an administrative fine within fifteen (15) days shall be considered a violation of this chapter.

4. Issuance of an administrative fine shall not preclude any other action against the user.

**D. Cost recovery of expenses incurred for violation of this chapter.** Notwithstanding any other provision of this chapter, the Director may require any person and or industry found to have violated any provision of this chapter, or orders issued hereunder, to reimburse the City for any goods or services used to remove pollutants from the City's MS4, prevent further discharge of pollutants into the MS4, and shall become liable to the City for any expense, loss or damages experienced by the City as a result of a violation. The City may pursue its right of action to recover all such costs, by utilizing any and all reasonable methods, including installment payment administered by the Finance Department. The City may recover the costs incurred by adding them to the utility bill of the violator or filing a lien on the subject property.

**E. Mitigation of pollutant discharge to the MS4.** Whenever it has been determined or in the opinion of the Director, a discharge of pollutants(s) to the MS4 has the potential to negatively impact water quality or public safety, the person responsible for the discharge may be required by the Director to mitigate and or remove such pollutants from the MS4. Removal and or mitigation of the pollutant must occur with in a reasonable time period, as determined by the Director. Removal and or mitigation shall be considered complete at the discretion of the Director. Failure to comply with this requirement shall be a violation of this chapter.

**F. Water supply severance.** Whenever a person has violated, or continues to violate any provision of this chapter, or orders issued hereunder, water service may be severed. Service shall only recommence at the violator's expense, after the violator has satisfactorily demonstrated an ability to comply, and actual compliance.

**G. Appeals.** Any person aggrieved by any NOV, administrative fine or order issued by the Director pursuant to Section 511 of this chapter may appeal the action as provided in this subsection.

**1.** The initiation of an appeal shall be in writing and filed with the Director no later than fifteen (15) days after service of notice of the action appealed from. The written notice of appeal shall specify the action appealed, detail why the action is in error and specify provision of ordinances or statutes supporting the person's appeal.

**2.** Upon receipt of a notice of appeal by the Director, the Director shall conduct any necessary investigation into the basis of the appeal and hold a hearing within thirty (30) days of receipt. However, upon review of the notice of appeal, if the Director determines that the basis of the appeal is patently frivolous or filed only for purposes of delay, then the Director may deny the appeal without a hearing. Upon the Director's denial without a hearing, the appellant shall be notified in writing of the denial and the grounds for denial.

**3.** At the conclusion of a hearing on an appeal, if the appeal is sustained in favor of the appellant, the Director may modify or withdraw the notice, fine or order.

If the Director fails to act on the appeal within thirty (30) days of concluding the hearing, the appeal shall be deemed denied. Any ruling, requirements, decisions or actions of the Director on appeal shall be final and binding, unless appealed to the City Council.

**4.** Any person aggrieved by an appeal decision of the Director may perfect an appeal to the City Council by filing a written notice of appeal with the City Clerk and the Director within fifteen (15) days from the date of the action by the Director. Such notice shall specify grounds for the appeal. A hearing on the appeal shall be commenced by the Council no later that thirty (30) days from the date the notice of appeal was filed with the City Clerk. The City Council shall have jurisdiction to affirm, modify, reverse or remand the action of the Director upon good cause shown. Any rulings, requirements or decision of the Council shall be final and binding, provided that any right of appeal to the courts shall not be abrogated.

*(Ord. Nos. 18588, 21383)*

## Section 512. Violations, injunction and criminal prosecution.

**A. Injunctive relief.** Whenever a person or industrial facility has violated or continues to violate the provisions of this chapter, or orders issued hereunder, the Director, with the

advice and counsel of the City Attorney and the approval of the Mayor, may petition the district court for the issuance of an injunction, which restrains or compels the activities on the part of the person or industry. A petition for injunctive relief shall not preclude any other action against a person or industrial facility.

**B. Criminal prosecution.** It shall be unlawful and a misdemeanor offense for any person to violate any of the provisions of this chapter, or any order issued hereunder. Any person convicted of a violation of this chapter, or any order issued pursuant to this chapter, shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Dollars ($1,000.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, continued or permitted shall be deemed a separate offense.

**C. Remedies nonexclusive.**

**1.** The provisions of Sections 511 and 512 of this chapter shall not be exclusive remedies. The City reserves the right to take any combination of actions against a violator of this chapter. These actions may be taken concurrently.

**2.** The City may recover reasonable attorney's fees, court costs and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by the City.

*(Ord. Nos. 18588, 21383)*

## Section 513. Confidential information.

Information and data regarding a person, industrial facility or industrial activity obtained from reports, surveys, OPDES stormwater discharge permit applications or permits, monitoring programs, inspections and sampling activities may be available to the public in accordance with the Oklahoma Open Records Act, (51 O.S.2001, §§ 24.A.1, *et seq.*) or to other government agencies unless the industrial facility or industrial activity can demonstrate to the Director's satisfaction that the release of such information would divulge information regarding trade secrets which is entitled to protection under applicable state law. If, in the opinion of the Director, that information and data requested may disclose trade secrets or secret processes, then the information or data will not be made available.

*(Ord. Nos. 18588, 21383)*

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# TITLE 11-B SOLID WASTE MANAGEMENT*

**Chapter 1. General**
**Chapter 2. Residential Solid Waste**
**Chapter 3. Solid Waste Disposal Facilities**
**Chapter 4. Commercial Solid Waste**
**Chapter 5. Solid Waste Rates and Deposits**
**Chapter 6. Licensing Solid Waste Collectors**
**Chapter 7. Penalty**
**Chapter 8. Enforcement and Penalties**

*__Editor's note—__Ord. No. 24035, § 1, adopted November 7, 2018, amended Title 11-B in its entirety to read as herein set out. Former Title 11-B, Chs. 1—8, pertained to similar subject matter. See Code Comparative Table for complete derivation.

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## CHAPTER 1. GENERAL

Section 100. Purpose.
Section 101. Definitions.
Section 102. Duties of Mayor or designee.
Section 103. Delegation of powers to the authority.
Section 104. Rules and regulations.
Section 105. Unlawful dumping.
Section 106. Unlawful storage of solid waste.
Section 107. Presumptions.
Section 108. Scavenging prohibited.

### Section 100. Purpose.

Pursuant to the provisions of the Oklahoma Solid Waste Management Act, 63 O.S., §§ 2251 et seq., as amended and renumbered to 27A O.S. §§ 2-10-101 et seq., the City of Tulsa, Oklahoma, does hereby adopt the ordinances governing the system for the management of solid waste within the municipal corporate limits of the City.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 101. Definitions.

Unless otherwise provided herein, for the purposes of this title and any rules or regulations adopted pursuant to its provisions, the following terms shall have the meanings given herein.

**Acceptable solid waste** shall mean solid waste which is not unacceptable waste and which is collected within the City of Tulsa.

**Authority** shall mean the Tulsa Authority for the Recovery of Energy, an Oklahoma public trust, and shall include the Tulsa Authority for the Recovery of Energy's appointed officials, officers, employees, and agents.

**Backyard collection service** shall mean collection of all residential solid waste and program recyclable materials at the following location:

**A.** A location at the front, side or rear of a residential service unit;

**B.** A location greater than four (4) feet but not in excess of one hundred (100) feet from the curb of such residential service unit or traveled portion of any roadway;

**C.** A location acceptable to both the resident and contractor for collection of residential solid waste and program recyclable materials; and

**D.** Bulky waste and/or curbside yard waste are not collected from a backyard location.

**Bag** shall mean a container of flexible material designed or intended to store acceptable solid waste with sufficient wall strength to maintain physical integrity when lifted at the top. Bags placed outside of the cart shall not exceed forty (40) pounds in weight. All bags must be closed or sealed.

**Bulky waste** shall mean acceptable solid waste composed of materials not easily fitting into a cart such as, but not limited to, green waste, furniture, large electronics, and large appliances. Bulky waste includes:

**A.** Items such as appliances including washers, dryers or stoves; furniture including couches, recliners, mattresses, or box springs; other large household items including pianos, grills, televisions and computers.

**B.** Residential solid waste in a bag but without an extra refuse sticker.

**C.** Bags or bundles of curbside yard waste.

**D.** Tree limbs and brush that are larger in size than curbside yard waste.

**E.** Refrigerators, freezers, dehumidifiers, air-conditioning units and other appliances which contain chlorofluorocarbons (CFCs) or hydrochlorofluorocarbons (HCFCs).

As respects green waste, the term "bulky waste" shall include tree stumps having a diameter at two (2) feet or more.

**Cart** shall mean a receptacle provided by the authority, equipped with wheels, a bar, and a radio frequency identification (RFID) tag (UHF), with a capacity of approximately ninety-six (96) gallons, sixty-four (64) gallons, forty-eight (48) gallons or thirty-two (32) gallons, designed to be dumped into a loader-packer type truck.

**City** shall mean the City of Tulsa, Oklahoma in its capacity as a duly constituted and organized municipality under and pursuant to its Charter and the laws of the State and shall include City's officers, elected officials, employees and agents.

**Collections contractor** shall mean a person contracted by the authority to collect residential solid waste, program recyclable materials and/or curbside yard waste.

**Commercial establishment** shall mean an establishment which is not a residential service unit where the operation or establishment may be characterized as commercial, industrial or institutional in nature. Commercial establishments include mobile home parks and other multifamily structures or complexes having four (4) or more units where the solid waste collection container or containers are used jointly by the occupants of such structures so that no single occupant has exclusive use thereof and/or where no individual family unit within the multifamily structure or complex is serviced or billed directly through an individual water meter.

**Commercial solid waste** shall mean all solid waste resulting from any operation or generated within or emanating from any commercial establishment.

**Commercial waste container** shall mean any receptacle from which or in which commercial solid waste is collected by commercial waste collectors.

**Construction and demolition waste** shall mean wastes from construction and demolition operations and shall include, but shall not be limited to concrete, bricks, plumbing fixtures, plastics, lumber, trees and tree trimmings.

**Contract administrator** shall mean the City's refuse and recycling systems manager, or designee, or such other person(s) designated by the authority, which shall represent the authority in the administration and supervision of the authority's agreements with its vendors, contractors and suppliers.

**Curb** shall mean the edge of a traversable roadway marked or understood as such.

**Curbside** shall mean a location within four (4) feet of the curb or traveled portion of any roadway and outside any fence.

**Curbside collection service** shall mean collection at curbside of all residential solid waste, program recyclable materials, curbside yard waste and bulky waste.

**Curbside yard waste** shall mean grass clippings, vegetation trimmings, leaves, branches and limbs collected from residential service units and placed in clear bags or tied in bundles placed curbside for collection. Bags or bundles shall not exceed forty (40) pounds in weight per item and tied bundles shall not exceed four (4) feet in length and two (2) feet in diameter.

**Director** shall mean the director of the streets and stormwater department of the city.

**Disposal site** shall mean the location where any final treatment, utilization, processing or developing of solid waste occurs, but does not include incineration.

**Extended backyard collection service** shall mean collection of all residential solid waste and program recyclable materials at the following location:

**A.** A location at the front, side or rear of a residential service unit;

**B.** A location greater than one hundred (100) feet from the curb of such residential service unit or traveled portion of any roadway;

**C.** A location acceptable to both the resident and collections contractor for collection of residential solid waste and program recyclable materials; and

**D.** Bulky waste and/or curbside yard waste are not collected from an extended backyard location.

**Extra acceptable solid waste** shall mean residential solid waste exceeding the quantity that can be contained in solid waste cart(s) at the residential service unit which must be placed in bags with an extra refuse sticker affixed.

**Extra refuse sticker** shall mean a self-adhesive sticker purchased from the city, the authority, or authorized agents which must be affixed to all bags outside the cart which contain extra acceptable solid waste.

**Garbage** shall mean all putrescible wastes from any place where meats, fish, fowl, fruits or vegetables are prepared for food for immediate consumption and shall include all household waste containing organic matter that has been prepared for or was intended to be used as food or has resulted from the preparation of food. Garbage shall include cigarette butts, ashes, dead animals, animal excreta or any article or substances soiled by human or animal excreta or any other bodily fluid.

**Green waste** shall mean burnable debris as defined by the Federal Emergency Management Agency, including, but not limited to, grass clippings; leaves; damaged and disturbed trees, bushes and shrubs; broken, partially broken, and severed tree limbs, processed or unprocessed; tree stumps (limited to those less than two (2) feet in diameter), and bushes. Burnable debris consists predominately of trees and vegetation.

**Green waste disposal site** shall mean any City-operated land reclamation site(s).

**Hazardous waste** shall have the meaning set forth in 27A O.S. § 2-7-103, as amended from time to time.

**Health department** shall mean the Tulsa City-County Health Department, sometimes referred to as the "Tulsa Health Department;" should it cease to exist, the term shall mean the Oklahoma State Department of Health or any other governmental agency having jurisdiction over public health in the City of Tulsa.

**Household pollutants** shall mean residential solid waste that consists of substances and materials that are identified as "household hazardous waste" as defined in the regulations of the Oklahoma Department of Environmental Quality at Section 252:515-1-2 of the Oklahoma Administrative Code.

**Once per week collection service** shall mean collection of residential solid waste, program recyclable materials, and curbside yard waste once per week at a residential service unit.

**Person** shall mean any individual, firm, corporation, organization, government or governmental subdivision or agency, business trust, partnership, association, or any other legal entity, where appropriate in the context.

**Physically limited services** shall mean once per week backyard collection service or extended backyard collection service at any residence where the person responsible for the payment of the utility services and every person residing at the residence suffers from certain infirmities of health, or physical limitations which make them unable to place their residential solid waste and program recyclable materials at the curb as certified by a licensed physician or, if appropriate, a doctor of optometry.

**Program recyclable materials** shall mean materials determined by the authority to be accepted for collection as recyclable material to be collected in the City's voluntary residential recycling program and processed for recycling pursuant to this title. A current list of program recyclable materials is published by the City and available online at http://www.tulsarecycles.com.

**Recyclable material** shall mean material that has reached the end of its useful life which can be processed into material utilized in the production of new products.

**Recycling** shall mean a series of activities by which material that has reached the end of its useful life is processed into materials utilized in the production of new products.

**Residential service unit** shall mean the following occupied dwellings within the City of Tulsa:

**A.** Single family houses;

**B.** Duplexes;

**C.** Triplexes; and

**D.** Other residential establishments utilizing carts for collection of residential solid waste and designated as a residential service unit by the contract administrator.

A residential service unit shall be deemed occupied when either water or domestic light and power services are being supplied thereto.

**Residential services** shall mean collection of residential solid waste, program recyclable materials, curbside yard waste, and bulky waste from residential service units.

**Residential solid waste** shall mean all acceptable solid waste resulting from any operation or generated within or from any residential service unit.

**Roadway** shall mean that portion of a street improved, designed and ordinarily used for vehicular travel.

**Solid waste** shall mean all putrescible and non-putrescible refuse in solid, semisolid, or liquid form including, but not limited to, garbage, rubbish, ashes or incinerator residue, street refuse, dead animals, construction and demolition waste, solid or semisolid commercial and industrial wastes including explosives, biomedical wastes, chemical wastes, herbicide and pesticide wastes. The term "solid waste" shall not include:

**A.** Scrap materials which are source separated for collection and processing as industrial raw materials, except when contained in the waste collected by or on behalf of a solid waste management system;

**B.** Used motor oil, which shall not be considered to be a solid waste but shall be considered a deleterious substance.

**State** shall mean the State of Oklahoma.

**Twice per week collection service** shall mean once per week collection service plus one additional residential solid waste collection per week.

**Unacceptable waste** shall mean disaster debris; hazardous waste; construction and demolition waste; poisons; acids; caustics; explosives; medical wastes; body wastes; bio-hazardous wastes; automobile frames; petroleum products and materials which may cause damage to collection equipment or personal injury to collectors; animal excreta or any article or substances soiled by human or animal excreta that has not been tightly sealed in a plastic bag prior to placement for collection; refuse which has been combined or mixed with any of the above-mentioned items; and any materials which would have a reasonable possibility of causing injury to health, safety, or property, which is collected from residential service units.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 102. Duties of Mayor or designee.

Pursuant to the provisions of the Charter and Revised Ordinances of the City of Tulsa, the Mayor or designee shall exercise all lawful powers necessary and appropriate for the management of all Solid Waste within the jurisdiction and control of the City.

The unauthorized or unlawful collection, transportation and disposal of Solid Wastes within the City of Tulsa are hereby declared to be a nuisance and a violation of this title.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 103. Delegation of powers to the authority.

The authority is hereby directed to take such steps as are necessary to assure the collection, removal, transportation, and disposal of all solid waste, program recyclable materials, curbside yard waste, bulky waste, household pollutants, and green waste. The authority shall operate or cause to be operated a collection, recycling, processing and disposal system for the City and for neighboring areas in the event an appropriate contractual relationship can be developed with those neighboring areas for the equitable sharing of costs.

**A.** Residential services shall at all times be in compliance with all provisions of this title and the rules and regulation established pursuant thereto.

**B.** No billing or collection of fees or charges or any functions connected with billing or collection of fees or charges may be performed by any contractor supplying labor and management services to the authority for the operation of any portion of the system. This prohibition shall not apply to the City.

**C.** The authority may solicit contractors licensed under the provision of this title for supplying labor and equipment for the operation of residential services. Such solicitations shall be made using good procurement techniques, consistent with sound business procedure and in compliance with all applicable laws. In addition, the authority may contract with the City on such terms as it deems best for the operation of all or any part of the system; provided however, that in an emergency wherein the public health or safety is threatened from a sudden, unexpected happening or an unforeseen occurrence, condition or situation, the authority may operate the residential services, cause the system to be operated by the City, or contract with such persons as it deems appropriate, using funds supplied by the authority from revenues provided for in Chapter 5.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 104. Rules and regulations.

The Director shall formulate operational rules and regulations applicable to solid waste service providers and may adopt or amend such rules and regulations not inconsistent with this title as needed for the management of all solid waste within the jurisdiction and control of the City. Such operational rules and regulations thereafter shall be kept on file in the Office of the City Clerk.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 105. Unlawful dumping.

It shall be unlawful and an offense for any person to deliberately place, drop, dump, deposit, throw, or discard any garbage, trash, waste, rubbish, refuse, debris or other deleterious substance on any public property or private property owned by another, including but not limited to any street, road, or park, without the consent of the property owner. This does not apply to the lawful deposit of solid waste in facilities that have permits issued by the State to accept such waste. In addition to the penalty as prescribed in the ordinance, the court may direct the person to make restitution to the property owner affected.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 106. Unlawful storage of solid waste.

It shall be unlawful and an offense for any person to store or to accumulate solid waste in a manner which allows the solid waste to be carried by wind, rain, or other atmospheric condition from property owned or controlled by that person onto the property of another person or onto public property.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 107. Presumptions.

The discovery of two (2) or more items of solid waste which have been dropped, dumped, deposited, discarded, placed, or thrown at one location and which bear a common address in a form which tends to identify the latest owner of the items shall create a rebuttable presumption that any competent person residing at such address committed the unlawful act.

*(Ord. No. 24035, § 1, 11-7-2018)*

## Section 108. Scavenging prohibited.

It shall be unlawful for any person not authorized by the City or the authority to remove, collect or disturb the solid waste, program recyclable materials or bulky waste set out for collection and disposal by the authority. This prohibition does not apply to law enforcement officers acting within the scope of their official duties.

*(Ord. No. 24035, § 1, 11-7-2018)*

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## CHAPTER 2. RESIDENTIAL SOLID WASTE

Section 200. Residential solid waste collection.
Section 201. Residential carts required.
Section 202. Maintenance and storage of carts.
Section 203. Preparation of residential solid waste for collection.
Section 204. Preparation of program recyclable materials for collection.
Section 205. Preparation of curbside yard waste for collection.
Section 206. Preparation of bulky waste for collection.
Section 207. Curbside collection service.
Section 208. Backyard collection service.
Section 209. Extended backyard collection service.
Section 210. Physically limited services.
Section 211. Missed collection.
Section 212. Household pollutants collection facility.
Section 213. Pilot collection programs.

### Section 200. Residential solid waste collection.

**A.** All residential solid waste shall be removed, transported and/or disposed of under the exclusive control and regulation of the authority subject to the provisions of this title and to such rules and regulations adopted pursuant to the provisions of this title.

**B.** Residential solid waste shall be collected, removed, transported, and disposed of only by the authority, its agents, employees, or persons with whom it shall contract. All other persons are prohibited from all such activities except as may be provided in the rules and regulations adopted pursuant to the provisions of this title. Every person occupying or having control of the occupancy of any residential service unit shall be deemed to have entered into an implied contract with the authority providing for the payment by such person for residential solid waste collection, recycling, processing and disposal service at the rate and manner specified in this title. The charges for the first and last billing for such service shall be prorated according to the number of calendar days within the billing periods, based on a thirty (30) day billing period for one month's service. The contract shall give the name and the official address of the person to whom the service is to be rendered and shall reserve to the authority the rate to be charged and collected for the collection, processing and disposal of residential solid waste. The contract shall provide that rates may be changed at any time by ordinance and shall specify that the contract is subject to all provisions of this title, rules and regulations adopted pursuant thereto, and any City ordinance relating to this subject hereinafter enacted.

**C.** Subject to TARE's existing collection and disposal contracts with its contractors and to rules and regulations promulgated by the Director, each residential service unit may choose between curbside, backyard collection service, extended backyard collection service, and physically limited services for collection of residential solid waste and program recyclable materials. Subject to TARE's existing collection and disposal contracts with its contractors, rules and regulations promulgated by the Director, and other applicable restrictions, the residential service unit may also choose between once per week or twice per week collection service and may choose to receive a solid waste cart with a capacity of ninety-six (96) gallons, sixty-four (64) gallons, or thirty-two (32)

gallons. Residential service units choosing a solid waste cart with a capacity of ninety-six (96) gallons may elect to receive additional ninety-six (96) gallon solid waste carts. The authority shall have the authority to designate the location for collection, with consideration for such factors as: convenience for the collector; convenience for customers; hazardous condition such as cables, utility poles, equipment clearance, animals; and collection costs.

**D.** The authority shall charge a fee for each service or level of service in an amount fixed by the authority and approved by the City Council.

**E.** A person requesting physically limited services shall submit an application to the authority for approval. Such application shall be in a form prescribed by the Director or designee. The application shall be certified by a licensed physician, or licensed physicians, stating that the applicant suffers from certain infirmities of health, physical disability or age which makes him or her unable to place residential solid waste and program recyclable materials at curbside. A certification may also be made by a doctor of optometry where an applicant's disability is eye-related. The applicant shall certify that each person residing at the residence suffers from certain infirmities of health, physical disability or age which make them unable to place residential solid waste and program recyclable materials at curbside. Approved applicants will be reviewed through field verifications on an annual basis.

**F.** In the event a multi-family structure or complex is comprised of individually metered family units and that structure or complex is located on roads or streets not owned or maintained by the City and the individual family units or owners are parties to acceptable covenants of common maintenance, upon application, the structure or complex may be designated as commercial by the Director.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 201. Residential carts required.

**A.** Every occupant of a residential service unit shall only use solid waste cart(s) provided by the authority of sufficient number and size to hold the residential solid waste that accumulates at the residential service unit between regular collection days. Every occupant of a residential service unit shall only use recycling cart(s) provided by the authority to hold program recyclable materials. This requirement does not prohibit temporary containers larger than two (2) cubic yards in size utilized for cleanouts, construction and special projects in accordance with the Director's rules and regulations. Carts shall be maintained in good condition by the customer in control of the residential service unit allowing for normal wear and tear.

**B.** Residential solid waste carts and recycling carts shall be kept secure with lids closed or covers in place when stored or placed for collection to prevent access to their contents by insects, rodents, and other animals, to minimize fire hazard, and to prevent accumulation of water and scattering of litter. When carts deteriorate so as to become non-leakproof or otherwise hazardous to persons or property, they shall be replaced. The owner or person in control of a residential service unit may request a replacement cart by contacting the City.

**C.** Carts placed for collection shall not exceed the following weights when loaded:

32-gallon cart—80 pounds.

48-gallon cart—120 pounds.

64-gallon cart—160 pounds.

96-gallon Cart—240 pounds.

*(Ord. No. 24035, § 1, 11-7-2018)*

**Section 202. Maintenance and storage of carts.**

**A.** A solid waste or recycling cart supplied to a residential service unit by the authority remains the property of the authority. It is assigned to a specific address and must not be removed from the residential service unit unless authorized by the Director or the collections contractor.

**B.** The customer in control of the residential service unit shall keep each cart clean.

**C.** The customer in control of the residential service unit shall not alter, mark, decorate or modify a cart.

**D.** Carts must not be abused or mutilated. A fee is charged for replacement of a cart damaged by negligence or abuse.

**E.** The customer in control of the residential service unit shall promptly notify the City of the theft of a solid waste or recycling cart or of a need for repair or replacement of a solid waste or recycling cart.

**F.** When not placed for collection, carts shall be stored by the residential service unit in a secure place at that residential service unit. The carts shall be stored behind the front building line of the residential service unit (for corner properties, behind the front and side building lines) and either: (1) on the side of the residential service unit within three feet of the residential service unit; or (2) hidden from sight so as not to be visible to a person standing in front of the residential service unit. Residents who use physically limited services are not required to store their carts behind the front building line of the residential service unit.

*(Ord. No. 24035, § 1, 11-7-2018)*

**Section 203. Preparation of residential solid waste for collection.**

**A.** Except as provided in subsection (B), residential solid waste shall be placed for collection only in carts provided by the authority and in a manner that does not impede the free flow of materials from the cart when it is being emptied. In order to keep carts clean, substantially all residential solid waste shall be contained in bags as defined in Chapter 1 of this title. Residential solid waste placed for collection at a residential service unit shall consist only of residential solid waste generated at the location of such residential service unit.

**B.** Residential solid waste may be placed outside of a cart for collection only under the following circumstances:

**1.** Residential solid waste must be contained in a bag and the bag must be securely tied.

**2.** The bag and contents of the bag weigh no more than forty (40) pounds.

**3.** Adhered to the bag is an extra refuse sticker issued by the authority.

**4.** A maximum of fifteen (15) items placed outside the cart(s) shall be set out for collection each week. The collection limit applies to any combination of bags affixed with an extra refuse sticker, clear bags containing curbside yard waste and/or bundles of curbside yard waste.

**C.** Materials which would have a reasonable possibility of causing injury to the health, safety or property of the collectors or others such as broken glass, hypodermic needles, sawdust, animal excrement, shall only be placed for collection as permitted by, and prepared in accordance with, the standards set forth in the rules and regulations adopted pursuant to the provisions of this title.

**D.** All containers of liquids and all residential solid waste that is mixed with liquids shall be drained before being placed in carts for collection.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 204. Preparation of program recyclable materials for collection.

**A.** Program recyclable materials shall be placed loosely in recycling carts provided by the authority and in a manner that does not impede the free flow of materials from the cart when it is being emptied.

**B.** Program recyclable materials placed outside of a recycling cart will not be serviced. The lid to the cart must close completely.

**C.** Placing any item or substance that is not a program recyclable material in a recycling cart is prohibited. The collections contractor will not collect anything from a recycling cart in which a non-program recyclable material has been placed.

**D.** Recycling carts that are continuously or repeatedly contaminated by items or substances that are not program recyclable materials will be removed from the residential service unit according to standards established by the director's rules and regulations.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 205. Preparation of curbside yard waste for collection.

**A.** Curbside yard waste may be placed in the solid waste cart only when it fits in the primary solid waste cart, on the primary service day, with the lid closed and does not impede the free flow of materials from the cart when it is being emptied. Grass clippings, weeds and leaves must be placed in a bag before being placed in the solid waste cart. All other curbside yard waste may be placed loosely in the solid waste cart. Curbside yard waste shall not be placed in the recycling cart. Curbside yard waste placed for collection at a residential service unit shall consist only of curbside yard waste generated at the location of such residential service unit.

**B.** Curbside yard waste bags or bundles shall be placed for collection curbside under the following circumstances:

**1.** Bags are clear and are securely tied. The bag and contents of the bag must weigh no more than forty (40) pounds.

**2.** Each bundle must not exceed four (4) feet in length by two (2) feet in diameter and must be securely tied with twine or string. Each bundle must weigh no more than forty (40) pounds.

**3.** A maximum of fifteen (15) items placed outside the cart(s) shall be set out for collection each week. The collection limit applies to any combination of bags affixed with an extra refuse sticker, clear bags containing curbside yard waste and/or bundles of curbside yard waste.

*(Ord. No. 24035, § 1, 11-7-2018)*

**Section 206. Preparation of bulky waste for collection.**

**A.** A person must contact the city to request that a bulky waste collection be scheduled for a residential service unit. A fee is charged for a bulky waste collection.

**B.** Bulky waste placed for collection shall not exceed eight (8) cubic yards in volume.

**C.** Bulky waste must be separated and placed a minimum of three (3) feet away from carts and extra acceptable solid waste bag(s) and curbside yard waste bag(s).

**D.** Bulky waste placed for collection at a residential service unit shall consist only of bulky waste generated at the location of such residential service unit. Bulky waste shall be placed for collection as follows:

**1.** Materials shall be placed neatly and tightly stacked at a point adjacent to the curb. Materials shall be stacked a minimum of three (3) feet away from utility poles, water and gas meters, fences, mail boxes, fire hydrants, trees, parked cars, power lines, and other obstructions to prevent damage by collection equipment and to allow the safe collection of the materials. Small items must be properly contained. Materials strewn about or not neatly or tightly placed or stacked will not be picked up.

**2.** Materials shall not be placed in the street, in an alley, on a sidewalk, or on a vacant lot, unless approved by the Director.

*(Ord. No. 24035, § 1, 11-7-2018)*

**Section 207. Curbside collection service.**

**A.** Solid waste carts, recycling carts, bags with an extra refuse sticker, curbside yard waste and bulky waste shall be placed curbside no earlier than 5:00 p.m. on the day preceding the scheduled collection day, and no later than 6:00 a.m. on the scheduled collection day.

All carts and bags shall be removed from curbside by 6:00 a.m. of the following day unless a missed collection is reported to the City in accordance with Section 211.

**B.** Solid waste carts, recycling carts, bags with an extra refuse sticker, curbside yard waste, and bulky waste shall not be placed in the street, in an alley, on a sidewalk, or on a vacant lot, unless approved by the Director.

**C.** Carts shall be placed curbside for collection:

**1.** With the lids securely closed;

**2.** With the hinges facing away from the street;

**3.** With a minimum clearance of three (3) feet on all sides of the cart from any fence, gas or water meter, fire hydrant, utility pole, utility box, container, bulky waste item, or other obstruction; and

**4.** Where trees or other vegetation overhang the curbside area, carts shall not be placed underneath such overhanging trees or other vegetation.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 208. Backyard collection service.

**A.** Cart(s) containing residential solid waste and bag(s) outside the cart(s) each with an extra refuse sticker shall be placed adjacent to the residential service unit. The lid of each cart shall be securely closed. A maximum of three (3) bags each with an extra refuse sticker may be set out for collection.

**B.** Cart(s) containing program recyclable materials shall be placed adjacent to the residential service unit. The lid of each cart shall be securely closed.

**C.** On the day of collection, backyard customers may place their cart(s) and bags tagged with an extra refuse sticker up to one hundred (100) feet from the traveled part of the roadway.

**D.** Curbside yard waste is not collected from a backyard location. Bags or bundles of curbside yard waste shall be placed within four (4) feet of the curb or traveled portion of any roadway and outside any fence.

**E.** Bulky waste is not collected from a backyard location. Bulky waste shall be placed within four (4) feet of the curb or traveled portion of any roadway and outside any fence.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 209. Extended backyard collection service.

**A.** Cart(s) containing residential solid waste and bag(s) outside the cart(s) each with an extra refuse sticker shall be placed adjacent to the residential service unit. The lid of each cart shall be securely closed. A maximum of three (3) bags each with an extra refuse sticker may be set out for collection.

**B.** Cart(s) containing program recyclable materials shall be placed adjacent to the residential service unit. The lid of each cart shall be securely closed.

**C.** On the day of collection, extended backyard customers may place their cart(s) and bag(s) tagged with an extra refuse sticker more than one hundred (100) feet from the traveled portion of the roadway.

**D.** Curbside yard waste is not collected from an extended backyard location. Bags or bundles of curbside yard waste shall be placed within four (4) feet of the curb or traveled portion of any roadway and outside any fence.

**E.** Bulky waste is not collected from an extended backyard location. Bulky waste shall be placed within four (4) feet of the curb or traveled portion of any roadway and outside any fence.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 210. Physically limited services.

**A.** Cart(s) containing residential solid waste and bag(s) outside the cart(s) each with an extra refuse sticker shall be placed adjacent to the residential service unit. The lid of each cart shall be securely closed. A maximum of three (3) bags each with an extra refuse sticker may be set out for collection.

**B.** Cart(s) containing program recyclable materials shall be placed adjacent to the residential service unit. The lid of each cart shall be securely closed.

**C.** Physically limited services customers may place their cart(s) and bag(s) tagged with an extra refuse sticker more than one hundred (100) feet from the traveled portion of the roadway.

**D.** Curbside yard waste is not collected from a backyard location. Bags or bundles of curbside yard waste shall be placed within four (4) feet of the curb or traveled portion of any roadway and outside any fence.

**E.** Bulky waste is not collected from a backyard location. Bulky waste shall be placed within four (4) feet of the curb or traveled portion of any roadway and outside any fence.

**F.** Physically limited services are available only upon application to and approval by the authority. Such application shall be in a form prescribed by the Director or designee. The application shall be certified by a licensed physician, or licensed physicians, stating that the applicant suffers from certain infirmities of health, physical disability or age which makes him or her unable to place residential solid waste and program recyclable materials at curbside. A certification may also be made by a doctor of optometry where an applicant's disability is eye-related. The applicant shall certify that each person residing at the residence suffers from certain infirmities of health, physical disability or age which make them unable to place residential solid waste and program recyclable materials at curbside. Approved applicants will be reviewed through field verifications on an annual basis.

*(Ord. No. 24035, § 1, 11-7-2018)*

**Section 211. Missed collection.**

In the event the collections contractor fails to perform a regularly scheduled collection of residential solid waste, program recyclable materials, curbside yard waste, or bulky waste, the owner and/or person in control of a residential service unit must call the City to report such missed pick-up after 8:00 p.m. on their service day and before 5:00 p.m. of the working day following the collection day.

An owner or person in control of a residential service unit who fails to report a missed collection by the time stated above must properly store all carts or bags until the next regularly scheduled collection day for that residential service unit.

*(Ord. No. 24035, § 1, 11-7-2018)*

**Section 212. Household pollutants collection facility.**

The City shall administer, maintain and operate a facility for the collection and disposal of household pollutants delivered by residents of the City of Tulsa and by residents of surrounding municipalities and unincorporated areas, all in accordance with the Director's rules and regulations. The City shall provide TARE regular periodic reports on the operation of such facility.

*(Ord. No. 24035, § 1, 11-7-2018)*

**Section 213. Pilot collection programs.**

Pilot programs to test and evaluate the advisability and customer acceptance of revised service levels in the City of Tulsa may from time to time be executed as recommended by authority and implemented by Director. Such an alternative service level program may not include participation by customers in excess of three percent (3%) of authority's total customer base, nor extend for a period of time greater than twelve (12) months from the first date the pilot program provides the alternative service level. A pilot program may include adjusting charges to reflect the scheduled service selected by individual customers.

Any neighborhood which has participated in the initial pilot program for a period of not less than six (6) months may elect to terminate its participation in the program. Such election shall be deemed to have occurred when twenty-four and three-quarters percent (24¾%) of the residences in the neighborhood submit to the City Clerk a signed statement declaring their desire for the program to terminate. When an election to terminate a program has occurred, the program will terminate on the last day of the month next following the month in which the election is submitted to the City Clerk.

*(Ord. No. 24035, § 1, 11-7-2018)*

## CHAPTER 3. SOLID WASTE DISPOSAL FACILITIES

Section 300. Scope of regulations.
Section 301. Definitions.
Section 302. Sanitary landfill permit required.
Section 303. Requirements for sanitary landfill permit.
Section 304. Maintenance bond for sanitary landfill permit.
Section 305. Sanitary landfill permit restrictions and fees.
Section 306. Construction and demolition landfill permit required.
Section 307. Requirements for construction and demolition landfill permit.
Section 308. Maintenance bond for construction and demolition landfill permit.
Section 309. Construction and demolition landfill permit restriction and fees.
Section 310. Exemption.
Section 311. Construction, operation, closure.
Section 312. Conflict with other ordinances or statutes.
Section 313. Validity of other laws.

### Section 300. Scope of regulations.

For the protection of public safety, health and welfare of the residents of the City of Tulsa, the operation of Construction and Demolition Landfills and Sanitary Landfills shall be regulated in accordance with provisions of this chapter.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 301. Definitions.

In addition to the definitions in Section 101, for the purpose of this chapter, the following terms, phrases, words and their derivations shall have the meanings given herein:

**A.** **Construction and demolition landfill** shall mean a landfill that accepts construction and demolition waste.

**B.** **Salvage** shall mean reclaimable solid waste such as paper, metal, bottles or other similar objects saved for the purpose of sale, in addition to electronic waste such as televisions, computers, monitors, etc., and items constituting bulky waste such as white goods and other household appliances, and furniture.

**C.** **Sanitary landfill** shall mean the method of disposing of solid waste on land without creating nuisances or hazards to public health or safety, utilizing the principles of engineering to confine the solid waste to the smallest practical area, to reduce it to the smallest practical volume and to cover it with an adequate layer of approved daily cover at the end of each day's operation or at such more frequent intervals as may be necessary.

**E.** **Fifty (50)-year flood plain** shall mean the area inundated by a flood or rain storm having an average statistical frequency of occurrence in the order of once every fifty (50) years, although the flood or rain storm may actually occur in any year.

**F.** **One hundred (100)-year flood plain** shall mean the area inundated by a flood or rain storm having an average statistical frequency of occurrence in the order of once in one hundred (100) years, although the flood or rain storm may actually occur in any year.

*(Ord. No. 24035, § 1, 11-7-2018)*

**Section 302. Sanitary landfill permit required.**

**A.** It shall be unlawful for any person to operate a sanitary landfill unless that person possesses a valid sanitary landfill permit from the City.

**B.** No permit shall be issued until the applicant has published the fact that he has made application for a sanitary landfill site in a manner reasonably calculated to inform that portion of the public which is most likely to be affected by the operation of the proposed landfill, provided, however, that this requirement is not necessary for permit renewals. At a minimum, publication shall be made at least once by advertisement in a daily or weekly newspaper of general circulation in the locality where the proposed site is to be located. The contents of the public notice of an application for a sanitary landfill shall include the following:

**1.** The name and address of the applicant;

**2.** A brief description of the activity for which the permit is being sought;

**3.** A description of the proposed location;

**4.** The name and address of the Health Department; and

**5.** The statement, "Any person who may be aggrieved by the issuance of a permit for this proposed landfill may file with the Health Department a verified petition which sets forth the grounds whereby he may be injured and requests that a hearing be held."

**C.** No permit shall be issued until at least thirty (30) days have expired following publication of the notice of application. The applicant for a permit must establish the date of publication by a verified affidavit from the newspaper which published the notice. If a hearing is held, no permit shall be issued prior to that hearing.

**D.** The permittee shall submit a written request to the Health Department for approval of changes to the original plans, specifications, reports and method of operation submitted with the original engineering report. No such change shall be initiated until the written approval of the Director has been obtained.

*(Ord. No. 24035, § 1, 11-7-2018)*

**Section 303. Requirements for sanitary landfill permit.**

**A.** Each applicant for a sanitary landfill permit as required herein, shall submit a written application to the Director of the Health Department. If the Health Department approves the application, the Health Department's certification of such approval of the application shall be provided to the Department of Finance of the City of Tulsa for issuance of a license.

**B.** An amended engineering report may be required, if a permit is revoked or suspended or if permit renewal is refused, before a landfill may be allowed to reopen.

**C.** Each application shall contain four (4) copies of the engineering report prepared, signed and sealed by a registered professional engineer licensed in the State, and such engineering report shall set forth the plan of operation, design, method and the type and amount of equipment for operation of a sanitary landfill. A copy of the engineering report shall be submitted to the Director for review.

**D.** The engineering report shall include, but not be limited to, the following information:

**1.** The location, zoning and boundaries of the site; the proposed location of all utilities and appurtenances for the landfill, including access, Roadways and fencing; a topographical map of the area on vertical contour intervals of three (3) feet or less;

**2.** An aerial photograph showing land use and a description of all structures, including dwellings, schools, churches, commercial buildings and parks, and of all zoning within one-half (½) mile of such installation, and airports and airfields within two (2) miles; a map may be submitted in addition to the aerial photograph for the purpose of describing the land use; the map or aerial photograph shall be of sufficient scale to show all applicable details; and the boundaries of the site shall be clearly indicated on the aerial photograph;

**3.** An engineering evaluation describing the proposed method of operation, including cross-sections and the progression of filling the site; an estimate of the duration of the landfill site; a topographic map showing the contours of the completed site; the methods of compaction of Solid Waste, types and sources of daily, intermediate and final cover to be used;

**4.** An engineering report which shall include types of waste to be received and an estimate of the daily quantity of waste to be received;

**5.** The proposed ultimate use of the site;

**6.** The design, which shall provide for the diversion of surface runoff from the active areas where wastes are being deposited; as filling continues to completion, the surface shall be sloped so that water is diverted away from the area where solid waste has been or is being deposited; the design shall include methods of keeping surface water out of the area where solid waste is deposited;

**7.** If salvaging is proposed on the site, a detailed method of the salvage operation, including types of material to be salvaged, as well as the method of storage;

**8.** A soil report with borings extending at least three (3) feet below the lowest level of the proposed excavation and other geological data locating all strata and water tables and accompanied by a soil classification; when borings are drilled to obtain data, information showing the number of plugging or sealing of such holes;

**9.** An engineering report which includes a flow diagram of any groundwater which may be potentially contaminated; and

**10.** Such additional information as deemed necessary by the Director.

**E.** The requirements set out in this section, where appropriate, may be waived by the Director of the Health Department.

**F.** The Health Department may require the landfill manager and equipment operators to complete a course of instruction and/or to make a passing grade on an examination offered by the Health Department in the principles of sanitary landfill operation.

*(Ord. No. 24035, § 1, 11-7-2018)*

## Section 304. Maintenance bond for sanitary landfill permit.

Prior to the issuance of a permit for a sanitary landfill, an applicant shall submit to the Department of Finance of the City of Tulsa a maintenance bond in the basic sum of Two Thousand Dollars ($2,000.00) per acre of landfill site. Such bond shall be conditioned on the landfill site's being operated in compliance with the provisions of this chapter and shall be kept in full force and effect during the term of the permit and for three (3) years following the completion of operation of the landfill. The bond shall inure to the benefit of the City. Surety on a maintenance bond shall be a company authorized to do business in the State.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 305. Sanitary landfill permit restrictions and fees.

**A.** Any person approved to operate a sanitary landfill shall pay a permit fee of One Hundred Dollars ($100.00) per year for each and every site to be operated.

**B.** A permit shall be granted only to the person in whose name it is issued and shall not be transferrable to any other person or location other than the original permittee or location.

**C.** No permit shall be reissued where open burning, uncontrolled dumping or uncontrolled burial is performed or where water may be polluted.

**D.** Applications for permit renewal shall be made at least thirty (30) days prior to the expiration date of an existing permit.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 306. Construction and demolition landfill permit required.

Any person operating a construction and demolition landfill shall possess a valid permit to operate such landfill.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 307. Requirements for construction and demolition landfill permit.

**A.** Each applicant for a construction and demolition landfill permit as required herein shall submit a written application to the Health Department. If the Health Department approves the application, the Health Department's certification of such approval of the application shall be provided to the Department of Finance of the City of Tulsa for issuance of a license.

**B.** Each application shall contain four (4) copies of an engineering report prepared, signed and sealed by a registered professional engineer licensed in the State, and such engineering report shall set forth the plan of operation, the design, the method for operations and the amount and type of equipment for operating a construction and demolition Landfill, along with an aerial photograph of the proposed site. A copy of the engineering report shall be submitted to the Director for review.

**C.** The engineering report shall include the following:

**1.** The location, zoning and boundaries of the site; the proposed location of all utilities and appurtenances for the landfill, including access, Roadways and fencing; a topographical map of the area on vertical contour intervals of two (2) feet; and the location and description of all structures including dwellings, schools, churches, commercial buildings, parks within six hundred (600) feet; and airports and airfields within two (2) miles;

**2.** An engineering evaluation covering the proposed method of operation; a pertinent cross-section and plans for the progressive filling the site; an estimate of the duration of the operations of the landfill site; an indication of the contours when the landfill is completed and the proposed ultimate use of the site; if salvaging is proposed on the site, a detailed method of the salvage operation, including types of materials to be salvaged, as well as the method of storage; a soil report with borings extending at least three (3) feet below the lowest level of the proposed excavation and other geological data locating all strata and water tables and accompanied by a soil classification;

**3.** A map of the flood plain; and

**4.** Such additional information as shall be deemed necessary by the Health Department.

**D.** If a construction and demolition landfill is located in the one hundred (100)-year flood plain, it shall be protected to at least the one hundred (100)-year flood design by impervious dikes and other appropriate means to prevent the flood waters from contacting solid waste. An evaluation must be provided of the potential problems created by restrictions of the flood flow due to the location of the construction and demolition landfill. No construction and demolition landfill shall be allowed within the fifty (50)-year flood plain.

**E.** The requirements set out in this section, where appropriate, may be waived by the Health Department.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 308. Maintenance bond for construction and demolition landfill permit.

Prior to the issuance of a construction and demolition landfill permit, the applicant shall submit to the Department of Finance of the City of Tulsa a maintenance bond in the basic sum of One Thousand Dollars ($1,000.00) per acre of the landfill site. Such bond shall be conditioned on the landfill site's being operated in compliance with the provisions of this chapter. It shall be kept in full force and effect during the term of the permit and for two (2) years following the completion of the operation of the construction and demolition landfill site. It shall inure to the benefit of the City. Surety on the maintenance bond shall be a company authorized to do business in the State.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 309. Construction and demolition landfill permit restriction and fees.

**A.** Any person approved to operate a construction and demolition landfill site shall pay a permit fee of One Hundred Dollars ($100.00) per year for each and every site to be operated.

**B.** A permit shall be granted only to the person in whose name it is issued and shall not be transferrable to any other person or location.

**C.** No permit shall be issued for a construction and demolition landfill where open burning, uncontrolled dumping or uncontrolled burial is performed or where water may be polluted.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 310. Exemption.

**A. Governmental units.** A county or municipal government, agency of the State or agency of the federal government shall not be required to pay a permit fee or to obtain a maintenance bond.

**B. City or town lot.** A small area covering less than seven thousand five hundred (7,500) square feet, commonly known as a city or town lot, shall not be required to secure a permit or maintenance bond. However, such area shall be subject to the standards of these regulations and shall be governed thereby.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 311. Construction, operation, closure.

The construction, operation and closure requirements for all landfill operations shall be governed by state law, specifically the Oklahoma Solid Waste Management Act, found at 27A O.S. §§ 2-10-101 et seq., as amended, and those rules and regulations promulgated by the State Board of Health in furtherance of the enforcement of the Act.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 312. Conflict with other ordinances or statutes.

No provisions of this chapter shall be held to deprive any Federal or State agency or any municipal authority having jurisdiction, of any power or authority which it had on the effective date of this chapter or of any remedy then existing for the enforcement of its orders.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 313. Validity of other laws.

Nothing in this chapter shall be construed to prevent the enforcement of other laws which prescribe more restrictive limitations.

*(Ord. No. 24035, § 1, 11-7-2018)*

## CHAPTER 4. COMMERCIAL SOLID WASTE

Section 400. Collection of commercial solid waste.
Section 401. Receptacles to be provided for the public.
Section 402. Receptacles to be provided for employees and for vendors, suppliers and contractors.
Section 403. Commercial waste containers required.

### Section 400. Collection of commercial solid waste.

Every person occupying or having control of the occupancy of any commercial establishment shall either obtain a waste collector license or enter into a contract with a waste collector licensed pursuant to the provisions of this title, providing for sufficient solid waste collection service to remove from such premises the solid waste generated thereby and to prevent any premises from becoming a hazard or nuisance to the health, safety and welfare of the citizens of Tulsa.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 401. Receptacles to be provided for the public.

It shall be unlawful and an offense for any person owning, operating, managing or having supervisory control of any commercial establishment or place of business open to the public, or any operation, to fail to provide in the area of the establishment or operation open to the public sufficient receptacles for the deposit and containment of the solid waste generated in connection with the operation of the establishment.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 402. Receptacles to be provided for employees and for vendors, suppliers and contractors.

**A.** It shall be unlawful and an offense for any person serving in the capacity of an employer to fail to provide such person's employees, at any location within the City of Tulsa where such person carries on any portion of a business through employees, with sufficient receptacles for the deposit and containment of the solid waste generated by the employees incidental to the employment.

**B.** It shall be unlawful and an offense for any person owning, operating, managing or having supervisory control of any commercial establishment or place of business or any operation to fail to provide in the area of the establishment or operation sufficient receptacles for the deposit and containment of the solid waste generated by vendors, suppliers or contractors of the establishment.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 403. Commercial waste containers required.

Every owner, occupant or tenant occupying or using any commercial establishment shall utilize commercial waste containers of sufficient number and size to hold the solid waste that accumulates at the commercial establishment between regular collection days. Commercial waste containers shall be leakproof, constructed of substantial material, have a tight-fitting lid or cover, and be maintained in good condition. If stored outdoors, they shall also be weatherproof.

Commercial waste containers shall be kept secure with lids closed or covers in place when stored or placed for collection to prevent access to their contents by insects, rodents, and other animals, to minimize fire hazard, and to prevent accumulation of water and scattering of litter. When containers deteriorate so as to become non-leakproof or otherwise hazardous to persons or property, they shall be replaced.

*(Ord. No. 24035, § 1, 11-7-2018)*

## CHAPTER 5. SOLID WASTE RATES AND DEPOSITS

Section 500. Residential services rate structure.
Section 501. Commercial solid waste rate structure.
Section 502. Green waste disposal and rate.
Section 503. Allocation of insufficient payment.
Section 504. Adjustments to charge.

### Section 500. Residential services rate structure.

**A. Scope and purpose.** This section includes the rates of charges per month for collection and disposal of residential solid waste, the procedure for the determination of such charges and the allocation of insufficient payments. The purpose of this section is to provide for the protection of the health, safety and welfare of the residents of the City and to prevent the unlawful collection and disposal of solid waste contrary to the statutes of the State and the Charter and Revised Ordinances of the City. This section includes the rates of charges per month for collection of residential solid waste, the procedure for the determination of such charges and the allocation of insufficient payments. The purpose for the charges established by this section is to provide funds for the operation of that portion of a system of solid waste management developed under the provisions of 63 O.S. § 2251 et seq., as amended and renumbered to 27A O.S. § 2-10-101 et seq., providing for regulation, collection and disposal of acceptable residential solid waste.

**B. Rates for Collection and Disposal.** For the purpose of providing funds for the operation of the system of solid waste management providing for collection of residential solid waste and its disposal, program recyclable materials and their processing and marketing, curbside yard waste and its processing, and bulky waste and its disposal, and for the acquisition, construction, equipping, operation and maintenance of solid waste disposal sites or facilities and for the provisions of other services, the need for which the City shall from time to time determine, there is hereby levied, imposed and established the following monthly collection service charges ("user fees"):

| **Standard Services (Once per week)** | |
|---|---|
| Curbside - 96 gallon | $24.33 |
| Curbside - 64 gallon | $21.97 |
| Curbside - 32 gallon | $19.60 |

**Premium services**

Backyard collection: Add $10.26 monthly to standard services.

Extended backyard: Add $20.51 monthly to standard services.

Twice a week collection: Add $15.78 monthly to standard services.

Additional 96-gallon cart: Add $9.47 monthly to standard services.

**Example calculation of premium services**

- 96-gallon cart ($24.33) plus backyard ($10.26) = $34.59
- 96-gallon cart ($24.33) plus backyard ($10.26) plus additional cart ($9.47) = $44.06

- 96-gallon cart ($24.33) plus backyard ($10.26) plus additional cart ($9.47) plus twice per week ($15.78) = $59.84
- 64-gallon cart ($21.97) plus extended backyard ($20.51) = $42.48
- 64-gallon cart ($21.97) plus twice per week ($15.78) = $37.75

| **Physically limited services (includes backyard or extended backyard)** | |
|---|---|
| 96 gallon—Once per week | $24.33 |
| 64 gallon—Once per week | $21.97 |
| 32 gallon—Once per week | $19.60 |
| Other charges: | |
| Cart replacement (each instance) | $71.00 |
| Change cart size (each instance) | $13.92 |
| Bulky waste collection fee (per eight (8) cubic yards) | $10.00 |
| Extra refuse sticker (1 per bag) | $0.50 |
| Recycling cart | No charge |

If in any fiscal year, the revenues collected are not sufficient to provide for needs, as determined by the authority, the Mayor shall submit recommendations as to the revision of the schedule of user fees and other rates, fees and charges then in effect, and upon receipt of such recommendations, such schedule of user fees, rates, fees and charges shall be revised and enacted to the extent recommended by the Mayor and approved by the Authority and the City Council of the City of Tulsa and permitted by law; and thereafter user fees, rates, fees and charges shall be charged and collected in accordance with such schedule or any subsequent revision of such schedule as shall thereafter be recommended or approved by the Mayor with such revisions as the Authority and the City Council of the City of Tulsa deem appropriate.

*(Ord. No. 24899, § 1, 9-21-2022; Ord. No. 25068, § 1, 6-14-2023; Ord. No. 25342, § 1, 6-12-2024; Ord. No. 25591, § 1, 6-11-2025)*

## Section 501. Commercial solid waste rate structure.

**A. Scope and purpose.** This section includes the definitions of certain terms, the rates per month attributable to acceptable commercial solid waste, the procedure for the determination of such rates and the allocation of insufficient payments. The purpose of this section is to provide for the protection of the health, safety and welfare of the citizens of the City of Tulsa and to prevent the unlawful disposal of solid waste contrary to the statutes of the State and the Charter and Revised Ordinances of the City of Tulsa. The purpose of the rates established by this section is to provide funds for the operation of that portion of a system of solid waste management developed under the provisions of 63 O.S. § 2251 et seq., as amended and renumbered to 27A O.S. § 2-10-101 et seq., providing for the regulation, collection, and disposal of acceptable solid waste.

**B. Definitions.** In addition to the definitions in Sections 101 and 301, for the purpose of this section, the following terms, phrases, words and their derivations shall have the meanings given herein:

**Compaction factor (CF)** shall mean an empirical multiplier applied to those accounts serviced by mechanical compactor type containers. The purpose of this factor

is to equate the yards of compacted material to yards of non-compacted material. The compaction factor for loose or non-compacted material is equal to one (1), the compaction factor for stationary compacted material is three (3) and the compaction factor for self-contained compacted material is four (4).

**Container yard** shall mean one (1) cubic yard of commercial waste container capacity.

**Disposal service unit (DSU)** shall mean a unit equal to one (1) container yard.

**DSU rate** shall mean that rate per DSU utilized in calculating non-residential fees.

**Serviced Container Yards (SCY)** shall mean the actual monthly container yards serviced by a licensed commercial hauler.

SCY for a container with no weekly collection frequency shall equal:

$V \times CF \times N$

Where:

V = Container volume in cubic yards

CF = Compaction Factor

N = Number of times container is serviced in the billing period

SCY for a container with a weekly collection frequency shall equal:

$(V \times CF \times WCF \times 4.33) + (V \times CF \times NES)$

Where:

V = Container volume in cubic yards

CF = Compaction Factor

WCF = Weekly collection frequency

4.33 = Monthly conversion factor

NES = Number of extra services in the billing period

**C. Rates for commercial solid waste.**

1. **Serviced billing rates.** Commercial establishments serviced by licensed commercial waste collectors shall be billed a monthly solid waste fee calculated in accordance with the following formula:

   SCY × DSU Rate = Charge

2. **DSU Rate.** Effective July 1, 2007 and until such time as it may be amended, the DSU rate for the monthly solid waste fee shall be Fifty-Five Cents ($.55).

*(Ord. No. 24035, § 1, 11-7-2018)*

## Section 502. Green waste disposal and rate.

**A. Scope and purpose.** This section includes the definitions of certain terms and charges for disposal of green waste at City owned and operated green waste disposal sites. The purpose of this section is to provide for environmentally efficient disposal of green waste and to prevent the unlawful collection and disposal of green waste contrary to the statutes of the State and the Charter and Revised Ordinances of the City. The purpose of the rates established by this section is to provide funds for the operation of that portion of a system of solid waste management developed under the provisions of 63 O.S. §§ 2251 et seq., as amended and renumbered to 27A O.S. §§ 2-10-101 et seq., providing for the regulation, collection and disposal of acceptable solid waste.

**B. Green waste disposal site rate.** For the purpose of providing funds for the acquisition, construction, equipping, operation, and maintenance of such other green waste disposal sites or facilities and for the provision of other services, the need for which the City shall from time to time determine, there is hereby levied, imposed, and established the following green waste disposal fee for non-residents and commercial customers, and other governmental agencies or entities: Five Dollars and Twenty-Eight Cents ($5.28) per cubic yard of green waste disposed of at any City owned or operated green waste disposal site.

*(Ord. No. 24035, § 1, 11-7-2018; Ord. No. 25342, § 2, 6-12-2024; Ord. No. 25557, § 1, 4-2-2025)*

**Section 503. Allocation of insufficient payment.**

**A.** The charges established herein for residential services or the monthly commercial solid waste fee, respectively, shall be billed to each residential service unit or commercial establishment monthly, along with the bill for water and other City services, and shall be subject to those penalties as may be established for City utility service bills. No charges shall be made for residential services during periods when premises which normally receive water service are turned off or disconnected from water service due to a vacancy of the premise longer than one (1) full billing period. Charges shall be made for services during periods when the premises which normally receive water service are turned off or disconnected due to credit delinquency or health or safety reasons. In those cases where water service is obtained from a source other than directly from the City, no allowance shall be made for vacancy or non-use until after sworn notification of such vacancy on forms prescribed by the City shall have been received by the Director, and then only when such vacancy is longer than one (1) full billing period.

**B.** In the event any residential service unit shall tender as payment of water service, medical service program, sanitary sewer nuisance abatement fees, sanitary sewer service, residential services under this title and/or service charge for the use of the City's stormwater drainage system an amount insufficient to pay in full all of the charges so billed, credit shall be given first to the charges for deposit, second to the service charge for the use of the City's stormwater drainage system, third to the charges for residential services under this title, fourth to the charge for sanitary sewer service, fifth to any sanitary sewer nuisance abatement fees, sixth to the charge for the medical service program, seventh to the charges for water service and lastly to fees and penalties, except that any subsidies received by the City from another governmental entity, pursuant to an agreement with such entity for payment of specific utility service charges for benefit of a residential service unit or residential utility customer of the City shall be accepted by the City and applied to the utility service charges so designated. In addition, any funds of the City applied to specific utility service charges for a residential service unit or residential utility customer of the City pursuant to an approved program for payment of such charges shall be applied to the utility service charges so designated.

**C.** If a commercial establishment has no existing City water and sanitary sewer account, a commercial refuse only account shall be established for such generator. If such established account becomes over sixty (60) days in arrears, the City may pursue any and all lawful and appropriate collection remedies, including but not be limited to a civil action against the delinquent generator seeking monetary relief for the amounts owed.

**D.** In the event of the failure of any residential service unit to make payment in full for the amount of charges assessed against it on or before the due date indicated on the bill, there shall be mailed to such unit within ten (10) days after such due date a notice of delinquency. The notice shall inform the customer that, unless payment is received by the City by the date indicated on the notice which shall be not less than ten (10) days from the date of the notice, water service may be terminated without further notice until all delinquent charges shall be paid in full. If water service is not present at the property, provision of residential services will be terminated.

**E.** The provisions for collection of charges provided herein shall be in addition to any rights or remedies which the City or the authority may have under the laws of the State.

*(Ord. No. 24035, § 1, 11-7-2018; Ord. No. 25090, § 2, 7-26-2023)*

**Section 504. Adjustments to charge.**

**A.** Any person, firm or corporation who is billed for charges outlined in this chapter and who, after contacting City of Tulsa Customer Care and Utility Services Division for review and explanation, considers such charges to be inaccurate, erroneous or inconsistent with the provisions of this chapter, shall have the right to appeal the disputed charges by making a formal verbal or written request to the refuse and recycling systems manager who will, within ten (10) days, provide to the appellant a written decision on the appeal which contains the reasons for the decision. Initiating and pursuing the appeal process shall not excuse the appellant from making full payment of the disputed billing. Credit or a refund of the overpayment will be provided the appellant where overcharges are determined.

**B.** The appellant may appeal the decision of the refuse and recycling systems manager by filing a written request with the Director within ten (10) days of the date of mailing of the refuse and recycling systems manager's decision. Within ten (10) days following receipt of the request for the review, the Director shall provide the appellant a written decision on the appeal which contains the reasons for the decision.

**C.** The appellant may appeal the Director's decision to the authority by filing a written request with the authority within ten (10) days of the date of mailing of the Director's decision. The authority shall conduct a hearing on the appellant's request for review of the Director's decision not less than ten (10) days and not more than fifteen (15) days from the date of receipt of the appellant's request, unless the authority, at its discretion, finds that the hearing should be deferred. The hearing before the authority shall be held in an informal manner and shall be restricted to a review of the decision made by the Director. At the conclusion of the hearing, the authority, by motion, shall render its decision upholding or modifying the Director's decision, or remanding the issue to the Director for further consideration.

*(Ord. No. 24035, § 1, 11-7-2018)*

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## CHAPTER 6. LICENSING SOLID WASTE COLLECTORS

Section 600. Waste collectors license required, penalty.
Section 601. Exemptions from license requirement.
Section 602. License expirations.
Section 603. Impoundment and confiscation of vehicles and commercial waste containers.
Section 604. Reporting requirements.
Section 605. Licensing requirements.
Section 606. Solid waste management requirements.

### Section 600. Waste collectors license required, penalty.

**A.** No person, except as otherwise provided in this chapter, shall be granted the privilege of collecting, removing or transporting solid waste within the jurisdiction and control of the City unless such person possesses a valid waste collector's license issued pursuant to the provisions of this chapter. Waste collector licenses are not transferrable.

**B.** Except as provided in Section 601, it shall be unlawful and an offense for any person or entity to collect, remove or transport solid waste collected within the City without first being in possession of a valid waste collector's license issued by the City. Collecting, transporting and disposing of solid waste with any vehicle used temporarily or any newly-acquired or loaned vehicles for which the waste collector has no license will be allowed only if prior approval is obtained from the refuse and recycling systems manager in accordance with the rules and regulations.

**C.** Every person convicted of a violation of this section shall be subject to the penalty provisions in Chapter 7.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 601. Exemptions from license requirement.

**A.** The following are hereby exempted from the licensing requirements of this chapter:

**1.** The United States, the State, political subdivisions of the State and the City, including their employees while acting in their official capacity;

**2.** The authority, including its employees while acting in their official capacity;

**3.** Natural persons who, in an individual and private capacity, collect, remove, transport or dispose of solid waste not for hire, profit, consideration or advantage; and

**4.** Satellite vehicles listed as satellite vehicles on the application of the licensed vehicle(s) with which they are associated and insured as provided in the rules and regulations.

**B.** Certain satellite vehicles, specifically defined as self-propelled or motor-driven cycles modified for the purpose of waste collection and used in conjunction with a vehicle licensed to a waste collector, are exempt from the provisions of Title 37, Tulsa Revised Ordinances, Chapter 4, Sections 409 and 410, and Chapter 7.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 602. License expirations.

Every waste collector's license shall be issued for a period not to exceed one (1) year and shall expire at midnight each year on the 31st day of March. All completed applications

with payment must be received prior to the first day of March of each calendar year. Each license may be renewable upon application and the payment of the required fees. The City shall act on applications for renewal or the initial issuance of a license within twenty (20) calendar days of the date of application. There is no pro-ration for partial year licensing.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 603. Impoundment and confiscation of vehicles and commercial waste containers.

**A.** It shall be unlawful and a public nuisance for any person to park, drive or permit to be parked or driven any vehicle on any public way, street, avenue, alley, road or other public property while engaging in the collection, removal, transportation or disposal of solid waste without first having been issued a waste collector's license or while such a waste collector's license is suspended or revoked. Any vehicle used in violation of the provisions of this section is hereby declared to be a public nuisance and may be immediately impounded or caused to be impounded by any police officer pursuant to this section. It shall be unlawful for a waste collector to allow any commercial waste container to be placed at a collection site without first being issued a waste collector's license or to allow a commercial waste container to remain at a collection site while such a waste collector's license is suspended or revoked. Commercial waste containers used in violation of the provisions of this section are hereby declared to be a public nuisance and may be immediately impounded or caused to be impounded by any police officer or authorized personnel in the Streets and Stormwater Department.

**B.** Any vehicle or commercial waste container impounded under this section shall be taken to a garage or storage facility which has been designated or is maintained by the City for the storage of impounded vehicles or commercial waste containers. Before taking the impounded vehicle or commercial waste container to the garage or facility, the police officer, with the assistance of authorized personnel in the Streets and Stormwater Department, Refuse and Recycling section, shall drive the vehicle or have the vehicle or container towed to an appropriate site for disposal of the Solid Waste in the vehicle or container.

**C.** The charge for towing or removal of any vehicle or commercial waste container under this section, including storage charges, shall be based upon the actual expenses incurred in such towing and storage. The charge for disposing of the solid waste under this section shall be based upon the actual incurred expenses.

**D.** Any vehicle or commercial waste container impounded pursuant to this section shall be released if the waste collector license required by this title is obtained or upon the execution of a written assurance that the vehicle or container will not be used in violation of this title and upon the payment of all towing and storage charges and all solid waste disposal charges.

**E.** Any vehicle or commercial waste container impounded and stored under the terms of this chapter which is not claimed and removed by the owner thereof within sixty (60) days of impoundment may be sold at public auction and the proceeds applied to towing, storage and the solid waste disposal costs. Such sale shall be conducted in a manner described by 42 O.S. § 91.

**F.** Upon a second violation and conviction of any person under this section, the vehicle used in violation of this section may be ordered by a Judge of the Municipal Court to be

held pending a hearing on a date set by the Judge to determine whether such vehicle has been used in violation of the Tulsa Revised Ordinances and should be confiscated. Any vehicle used in violation of this section is hereby declared to be contraband, subject to seizure and confiscation. Any person known to the Refuse and Recycling Systems Manager to be claiming an interest in such vehicle shall be notified in writing of the hearing at least five (5) days prior to the sale; provided that notice given in open court to the person operating the vehicle shall be sufficient to serve as notice to such person. Upon such hearing, the Court may order the vehicle sold unless it appears to the Court that the owner thereof did not participate in or have knowledge of such violation or of the intended use of the vehicle. The vehicle, if ordered sold, shall be sold at a public auction to the highest bidder for cash by the City and the proceeds shall be disposed of as provided by law.

*(Ord. No. 24035, § 1, 11-7-2018; Ord. No. 24589, § 1, 3-24-2021)*

### Section 604. Reporting requirements.

Commercial solid waste collectors shall submit information to the Refuse and Recycling Systems Manager regarding solid waste collections and recyclable materials collections in accordance with the rules and regulations.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 605. Licensing requirements.

The following license requirements shall be in accordance with and governed by the Director's rules and regulations authorized by this title:

**A.** License application;

**B.** Approval for license issuance, insurance required;

**C.** License types and fees;

**D.** License denial, cancellation, suspension or revocation; and

**E.** Procedure for license denial, cancellation, suspension or revocation and appeal.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 606. Solid waste management requirements.

Other miscellaneous waste collector requirements covered in the Director's rules and regulations authorized by this title shall include but not be limited to:

**A.** Container identification;

**B.** Hours of collection;

**C.** Commingling of solid waste;

**D.** Vehicle requirements;

**E.** Maintenance of customer records;

**F.** Vehicle inspections;

**G.** Waste spills;

**H.** Removal of commercial solid waste collector's containers;

**I.** Dual generation of solid waste;

**J.** Types of waste required to be reported.

*(Ord. No. 24035, § 1, 11-7-2018)*

## CHAPTER 7. PENALTY

Section 700. Violation, penalty.
Section 701. Fine not exclusive penalty.

### Section 700. Violation, penalty.

Unless otherwise provided herein, any person violating any of the provisions of this title or any provisions of the rules and regulations promulgated by the Director hereunder, shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days. Each day of such violation shall constitute a separate offense.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 701. Fine not exclusive penalty.

The penalties herein prescribed shall not be construed as exclusive and shall not prevent the City or its authorized officials from taking other action authorized by law to remedy the violation.

*(Ord. No. 24035, § 1, 11-7-2018)*

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## CHAPTER 8. ENFORCEMENT AND PENALTIES

Section 800. Scope.
Section 801. Citation authority.
Section 802. Penalty system.
Section 803. License denial, cancellation, suspension or revocation.

### Section 800. Scope.

Duly authorized inspectors of the City's Department of Streets and Stormwater shall have the authority to enforce the provisions of this title, the rules and regulations authorized by this title, and in addition, the provisions of Title 24 (Nuisances) which are pertinent to the proper management of solid waste.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 801. Citation authority.

With respect to the enforcement of the above provisions, titles and rules and regulations, the duly authorized inspectors shall be empowered with Code Citation Authority under and in accordance with the provisions of Title 29, Sections 500 through 514, inclusive, of the Tulsa Revised Ordinances.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 802. Penalty system.

A penalty system shall be established in the Director's rules and regulations authorized by this title. Assessment of a specified penalty to a hauler as provided in the rules and regulations may result in license denial, cancellation, suspension or revocation.

*(Ord. No. 24035, § 1, 11-7-2018)*

### Section 803. License denial, cancellation, suspension or revocation.

Provisions for the Director to deny, cancel, suspend or revoke a hauler's license and provisions for hauler appeals of such actions shall be established in the rules and regulations authorized by this title.

*(Ord. No. 24035, § 1, 11-7-2018)*

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# TITLE 11-C WATERWORKS AND SEWERAGE

**Chapter 1. Director of Public Works**
**Chapter 2. Requirements for Water Services**
**Chapter 3. Water Rates**
**Chapter 4. Spavinaw Water District**
**Chapter 5. Requirements for Use of Sanitary Sewerage System**
**Chapter 6. Private Sewer Districts**
**Chapter 7. Sanitary Sewer User Charge System**
**Chapter 8. Special Funds and Trust Funds**
**Chapter 9. Billing and Collections**
**Chapter 10. Approval of Water Line and Sewer Line Extensions or Improvements**
**Chapter 11. Penalties**
**Chapter 12. Sewer Use**
**Chapter 13. Restricted Use of Water in Times of Shortages**
**Chapter 14. Grease Handling and Hauling**
**Chapter 15. Net-Zero Water Projects**

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## CHAPTER 1. DIRECTOR OF PUBLIC WORKS

Section 100. Definitions.
Section 101. Duties of the Director of Public Works.
Section 102. Right to enter.
Section 103. Fluoridation of water supply authorized.
Section 104. Approval of State Health Department.
Section 105. Testing standards.

### Section 100. Definitions.

**A. Director.** Unless otherwise specified, for purposes of this title, "Director" shall mean the duly appointed Director of Public Works and/or his designated representative.

**B. Superintendent of waterworks and sewerage.** For all purposes of the Revised Ordinances of the City of Tulsa, "Superintendent of Waterworks and Sewerage," "Director of Water and Sewer" and other terms of similar import, shall mean the duly appointed Director of Public Works or his designated representative. The Director of Public Works or his designated representative shall perform the duties assigned to the Superintendent of Waterworks and Sewerage or Director of Water and Sewer in the Revised Ordinances of the City of Tulsa or the statutes of the State of Oklahoma.

*(Ord. No. 17301)*

### Section 101. Duties of the Director of Public Works.

The Director shall be responsible for the supervision and control of the construction, extension, improvement, management, maintenance and operation of the waterworks and sewerage systems of the City of Tulsa. Pursuant to the Charter of the City of Tulsa, the Director shall discharge such duties under the supervision, authority and control of the Utility Board, subject to the approval of the Mayor. He shall inspect all water system installations, all sanitary sewers and all sewage disposal plants to insure that they are properly maintained and operated. He shall keep a record of all inspection reports in connection with the construction, operation and maintenance of the water and sanitary sewer systems and the sewage disposal plants of the City of Tulsa.

It shall be the duty of the Director to supervise all construction work and to inspect all sanitary sewer work installed or to be installed in the City of Tulsa. He shall exercise a general supervision over all connections made to the sanitary sewerage system. He shall inspect all sanitary sewer connections to private or public property, up to and including the place where such sanitary sewer work connects with the soil pipe; and the use of such connection shall not be allowed without his approval. It shall be his duty to see that all excavations are properly restored to a safe condition and usage. He shall, upon completion of any new sanitary sewer mains, branches or laterals, make final inspection and report to the Utility Board and Mayor as to whether or not they conform in all respects with any contract relating thereto.

It shall be the duty of the Director to keep a plat book upon which shall be shown the district number, size and location of all sanitary sewer mains, wye connections, manholes and other appurtenances.

It shall be the duty of the Director to make reports to the Mayor of any sanitary sewers which are inadequate to supply proper drainage for their respective areas.

The Director is hereby empowered to make rules, regulations and specifications necessary to make effective the provisions of this title, which rules, regulations and specifications when approved by the Council and placed on file in the office of the City Clerk, shall have the force and effect of law. In making such rules, regulations and specifications and in applying them to particular cases, the Director shall consider the future needs and requirements, topography, present and future population, changes in population densities within the City's corporate limits, economy of operation and maintenance and all things necessary, convenient or expedient for the preservation of health and safety of the City of Tulsa as related to the facilities under his jurisdiction. In addition to this general authority, he shall have the authority to create, designate and determine all things dealing with the supply of water and the provisions for sewage disposal from the City of Tulsa not in conflict with the Charter or Revised Ordinances of the City of Tulsa.

**Section 102. Right to enter.**

As provided by law, the Director, or any designated employee, shall have the right to enter in and upon any grounds or premises served by the waterworks system and sanitary sewer system of the City of Tulsa for the purpose of maintaining and operating the waterworks system, the sanitary sewerage system and the sewage treatment plants.

**Section 103. Fluoridation of water supply authorized.**

The Director is hereby authorized and directed to institute fluoridation of the water supply of the City of Tulsa, the maximum content of fluoride to be not more than seven-tenths (0.7) parts per million.

*(Ord. No. 6565; Ord. No. 23291, § 1, 5-14-2015)*

**Section 104. Approval of State Health Department.**

The application of fluorides to the City water supply shall be started only after the Oklahoma State Health Department has:

**A.** Received plans and specifications as required by law;

**B.** Approved the type of chemical feeding equipment to be installed and used;

**C.** Approved the installation of equipment, plant layout and methods of handling the fluoride compounds to assure the safety of employees;

**D.** Approved the methods of analysis and control to be used in determining the fluoride content of the water before and after the addition of fluorides; and

**E.** Appraised and approved the qualifications of the personnel who will make the necessary analyses to control the application of fluorides.

*(Ord. No. 6565)*

**Section 105. Testing standards.**

The control and testing of the water before and after fluoridation, the method of determining the fluoride content of the water and the test for the purity of the fluoride chemical shall, in all respects, comply with the rules and standards set up by the Oklahoma State Department of Health.

*(Ord. No. 6565)*

## CHAPTER 2. REQUIREMENTS FOR WATER SERVICES

Section 200. Scope.
Section 201. Definitions.
Section 202. Application.
Section 203. Service contract.
Section 204. Service connections.
Section 205. Abandoned connections.
Section 206. Unlawful connections, operation or tampering.
Section 207. Meter rules.
Section 208. Meter changes.
Section 209. Fire protection service.
Section 210. Duct meters and irrigation meters.
Section 211. Owner's duty to repair.

### Section 200. Scope.

This chapter shall include all general requirements and restrictions in respect to the connection, use, protection and maintenance of all water lines forming a part of the waterworks system of the City of Tulsa.

### Section 201. Definitions.

As used in this title, the following terms shall have the meanings given herein.

**A.** **Premise** shall mean any plat or tract of ground, regardless of size or plat, under individual ownership and/or individual use and occupancy where the water service is metered independently of any other use.

**B.** **Service connection** shall include the following:

1. **House service or house service line** shall include all water lines receiving water from any meter, regardless of size, supplied by mains of the City of Tulsa to a single premise; and
2. **Fire protection service** shall mean any water line constructed with the objective of furnishing an auxiliary supply of water for fire fighting purposes within a single premise.

**C.** **Meter** shall mean an apparatus installed between the main and the service connection for measuring and recording the quantity of water used by any premise during any interval of time.

**D.** **Master meter** shall mean an apparatus installed at the point of supply for more than one (1) premise as defined by contract for measuring and recording the quantity of water used during any interval of time by the party contracting with the City.

**E.** **City** shall mean the City of Tulsa, Oklahoma, a municipal corporation acting through the Utility Board and the City's duly authorized officers or agents.

**F.** **City's service** shall mean that part of the waterworks system extending from the water main to the meter, including the meter and appurtenances, for the purpose of supplying any water from any main of the City of Tulsa.

**G.** **City main** shall mean any water line of whatever size or extent for which the City of Tulsa is responsible for the operation, repair and maintenance.

**H. Deduct irrigation meter** shall mean an apparatus installed on the service connection for measuring and recording the quantity of water used by a lawn irrigation system.

**I. Irrigation meter** shall mean an apparatus installed between the main and service connection for measuring and recording the quantity of water used by a lawn irrigation system.

*(Ord. No. 19501)*

### Section 202. Application.

Any person desiring to have premises connected with the water supply of the City of Tulsa shall present at the office of the Director an application on a form to be provided by the Director containing the name of the applicant, a description of the lot, block and addition, and the official house number of the premises on which the water is desired. The application shall be signed by the applicant or his duly authorized agent and shall be filed with the Director. At the time of filing, the applicant shall pay to the Director the fees for installation of water service as hereinafter provided, and the applicant shall be issued a receipt therefor.

### Section 203. Service contract.

The application required herein shall contain a contract requiring the applicant to pay for the water supplied at the rate and in the manner specified in such contract and shall reserve to the City of Tulsa the right to charge and collect the rates and enforce the penalties provided for in this title in the manner herein provided, to change the rates at any time by ordinance, to temporarily discontinue the service at any time without notice to the consumer and to install a meter or meters to register the water consumed. The contract shall recite that it is subject to all the provisions of this title and of any ordinance of the City of Tulsa relating to the subject, hereafter passed, and shall provide that the City of Tulsa shall not be held responsible for any damages, by water or other cause, resulting from defective plumbing or appliances on the premises installed by the owner or occupants of the premises; and that the fact that agents of the City have inspected the plumbing and appliances shall not be pleaded as a basis of recovery in case of damage to premises from defective plumbing or appliances installed by the owner or occupant of such premises. The contract shall further provide that, in case the supply of water shall be interrupted or shall fail by reason of accident or any other causes whatsoever, the City shall not be liable for damages for such interruption or failure, nor shall such failure or interruption for any reasonable period be held to constitute a breach of contract on the part of the City or in any way relieve the consumer from performing the obligations of his contract.

No contract shall be entered into which will render or continue to render any service to any person against whom there is any unsatisfied claim for previous services or any unpaid charges of any kind; provided, however, that the City may for good cause shown enter into agreement with such person to render service upon the payment of such claim in installments.

### Section 204. Service connections.

No premise shall be allowed to have more than one (1) service connection unless a special permit therefor is given by the Director. The granting of such permit shall be subject to such conditions as the Director shall impose, and such permit may be revoked at any time

the Director may elect. Every separate premise supplied by City mains shall have its own separate service connection with the City main, and the premise so supplied will not be allowed to supply water to any other premise. The Director shall keep a record of the date when water is turned on for each premise.

**A. Connection within or outside the corporate limits.**

1. **Permanent service connection.** When application is made for water service for a premise abutting upon a street upon which there is a main, after payment of the connection fees and execution of a contract, the owner shall employ a City certified service installation contractor for the service installation. The service shall be connected to the main by extending the piping at right angles from the main toward the property line to a point designated by the Director. The City's service installation contractor shall be responsible for workmanship and materials associated with the service installation for a period of one (1) year, after which it shall be maintained by the City of Tulsa.
2. **Temporary service connection.** When application is made for water service to property not abutting upon a street upon which there is a main, the owner shall pay the connection fee and all other applicable City fees, shall execute a contract, and shall employ a City certified service installation contractor to install the City's service. A temporary service connection shall be permitted only for an existing house or building or where a City of Tulsa building permit has been issued for the location. Such service shall be subject to all the restrictions imposed upon any other service, whether permanent or temporary. From the point of service connection, any temporary house service shall be extended at the applicant's expense to serve the property described in the application; provided, however, that the applicant shall obtain all necessary rights-of-way and easements for the house service in such manner that the house service shall not be in conflict with the physical extension of a future main, shall be responsible at all times for the operation, repair and maintenance of the house service and shall hold the City of Tulsa harmless against any and all claims for damage by reason of the construction, removal, operation or repair of the house service.

**B. Adjustments in service and service connections.**

1. **Adjustments due to street paving or grading.** All service pipe shall be laid not less than thirty (30) inches from the surface of the ground where the street grade is already established. In the event that the street grade has not been established, all service pipe shall be laid, insofar as can be determined, in such manner as to avoid its being damaged or displaced upon the grading and paving of the street. The Director shall readjust all service connections in conflict with such future grading and paving and shall have such access on private property as shall be necessary to maintain such pipe during construction. Owners of premises shall readjust their house service from the end of the City's service or meter.
2. **Cutting pavement.** Where it becomes necessary within the corporate limits to excavate or cut any paved street or road to install a service connection, the water service installation contractor shall secure a permit for such cut as required by the Revised Ordinances of the City of Tulsa. If such cut is made outside the corporate limits, then the water service installation contractor shall secure such a permit as required by the jurisdiction having authority.

3. **Transferring temporary service connections.** When a main is subsequently constructed in front of any premise served by a temporary service connection, the Director shall, after notifying the owner or tenant thereof, transfer the service connection to the new main without charge and, at the same time, shall eliminate the temporary service connection, and the owner shall arrange his house service pipes and connect same to the permanent service at his own expense.
4. **Transferring service connections from master meter contracts.** Whenever a new main is laid in any street, owners of premises on such street or within one-half (½) block on side streets, who are being supplied with City water from a master meter contract, shall make application for a tap and, with a separate service connection, shall connect to the main in front of the premises at the applicant's own expense. Should the applicant fail to make application and payment for the service connection within thirty (30) days after written notice, the Director may notify the owner of the master meter to discontinue water service to any such premise. Should the owner of the master meter fail to discontinue water service to any such premise after thirty (30) days' notice in writing, the Director may discontinue water service to such master meter and cause the same to be disconnected from the City main.

**Section 205. Abandoned connections.**

Whenever a service connection is to be abandoned or no longer used, the Director may cut out or remove such service connection. Thereafter, should a service connection be required to the premises, a new service shall be placed only if the owner makes an application and pays for a new service connection in the manner specified herein.

**Section 206. Unlawful connections, operation or tampering.**

**A. Unlawful connections.** It shall be unlawful for any person to make any connections with any service, or to make any repairs, additions or alterations of any pipe, stop cock, stop and waste cock or any other fixture connected with or designed to be connected with the waterworks system, except in compliance with this title, and all such work must pass inspection by the plumbing inspector before being covered. A licensed plumber may have a service key which he shall keep in his possession with which he may shut off the water at the curb cock for the purpose of making repairs within the premises. No person other than licensed plumbers shall use such key, and plumbers doing work thereon shall leave the water shut off at the curb cock on all premises which are newly connected. On all other premises, the plumber shall leave the curb cock in the condition in which it was found when such work was commenced.

**B. Permission to connect.** It shall be unlawful for any person to make any connection with any fixture or to connect any pipe with any main or water pipe of the City's waterworks system without first obtaining permission to do so from the Director.

**C. Hydrant offense.** It shall be unlawful for any person, except a member of the Fire Department of the City of Tulsa or a person authorized by the Director or by the provisions of this title, to open, operate, close, turn on, turn off, interfere with, attach any pipe or hose to or connect anything to any gate valve, stop cock or fire hydrant belonging to the City of Tulsa, whether on private property or not.

**D. Obstructing fire hydrants.** It shall be unlawful for any person to obstruct the access to any fire hydrant by placing around or upon such fire hydrant any stone, brick, lumber, dirt or other material.

**E. Damage to system.** It shall be unlawful for any person, unless duly authorized by the Director or the provisions of this title, to disturb, displace, interfere with, cover up, damage or destroy any water mains, water pipe, meter, meter box, machinery, tools, building, fire hydrants, curb cocks, curb box or any other property belonging to, or under the control of the City of Tulsa. It shall be unlawful to enclose by fencing, a water meter or fire hydrant which is located within the public right-of-way.

## Section 207. Meter rules.

All water meters connected to the City's service shall be furnished by the City of Tulsa. All such meters shall be under the exclusive control of the City and shall not be removed or tampered with except by duly authorized representatives of the City of Tulsa. In all cases where meters are lost, injured, destroyed or damaged by the negligence of the occupant of the premises served through such meters or by his agents or contractors, such meters shall be replaced or repaired by or under the direction of the Director, and the cost shall be charged against the occupant of the premises. If the cost of making such repairs is not paid upon the date next following for the payment of water service, the service to such premises shall be discontinued.

The size of the water meter to be used on any service connection shall be designated by the Director. If at any time a meter is found to be of unsuitable size for the quantity of water to be measured, the Director may so notify the water customer who shall then make application for a meter of the proper size and pay for the new water meter and connection as provided herein. In the event any meter shall fail to register properly, the consumer shall be charged by an estimate made by the Director on the basis of the average monthly consumption during the three (3) month period immediately preceding, or otherwise from the most reliable and accurate data available.

Premises shall be metered as follows:

**A.** Each single family residence shall be considered a premise and shall be separately metered;

**B.** Each tenant space of a duplex shall be considered a premise and shall be separately metered;

**C.** Each apartment building shall be considered a premise and shall be separately metered, provided however that a cluster of apartment buildings on the same tract of land and not separated by a street, alley or parking lot may be metered with a common meter. Each tenant space of an apartment building may be separately metered;

**D.** Each condominium building shall be considered a premise and shall be separately metered, provided however that a cluster of condominium buildings on the same tract of land and not separated by a street, alley or parking lot may be metered with a common meter. Each tenant space of a condominium building may be separately metered;

**E.** Each mobile home in a mobile home subdivision shall be considered a premise and shall be separately metered;

**F.** Each shopping center building or other commercial development building shall be considered a premise and shall be separately metered; provided, however, that a cluster

of buildings on the same tract of land and not separated by a street, alley or parking lot may be metered with a common meter. Each tenant space of a shopping center or other commercial development may be separately metered;

**G.** Each school or campus shall be considered a premise and shall be metered separately, provided, however, that each building may be separately metered;

**H.** Each hotel or motel building shall be separately metered; provided, however, that a cluster of buildings on the same tract of land may be metered with a common meter if the buildings are not separated by a street, alley or parking lot. If the hotel or motel restaurant is housed in a separate building, it shall be metered separately;

**I.** Each industrial facility shall be considered a premise and shall be separately metered; provided, however, that each separate building may be separately metered; and

**J.** Each rental mobile home park shall be considered a premise and shall be separately metered; provided, however, that each separate building may be separately metered.

*(Ord. Nos. 19405, 21481)*

### Section 208. Meter changes.

Whenever the occupant of any premise requests any alteration to, change in or removal of meter, service connections or any appurtenances attached to the waterworks system not otherwise provided for herein, such applicant shall pay to the Director the cost of such change, plus twenty-five percent (25%) for overhead.

*(Ord. No. 21481)*

### Section 209. Fire protection service.

From and after the effective date of this chapter, no connection for a private fire line system or service shall be permitted without a backflow preventer with bypass meter in accordance with the Plumbing Code of the City of Tulsa, Title 56, Tulsa Revised Ordinances; provided, however, that this provision shall not apply to combination service to facilities served by a fire flow or fire service meter installed in accordance with the provisions contained herein.

Persons desiring such fire service connection shall apply to the Director as for other service connections. Installation shall be accomplished by a qualified contractor on behalf of the owner and the City of Tulsa. No meter security deposit shall be required for such fire services. Such fire service connections shall serve no more than one (1) building. In no instance shall any connection be made with any sprinkler or fire service without the prior written consent of the Director. In the event that any unauthorized connection has been made, that any water has been used from a sprinkler or fire service for any other purpose than extinguishing a fire, or that waste of water is permitted from such connection through leaks in the pipes or fixtures, or should seals be willfully broken on previously constructed water service, the Director shall notify the owner or lessee of the premises so served to install a fire flow or fire service water meter on such fire lines or hydrants at the expense of the owner or lessee. Should the owner or lessee of any such premises refuse or fail to make proper application for the installation of such meter within forty-eight (48) hours after notice has been given, or refuse to pay the fees required therefor, the Director shall have the water serving the fire lines or hydrants turned off at the main until such application shall have been made and fees paid.

All valves and hydrants required to be sealed under the provisions of this title shall be frequently inspected under the direction of the Director, who shall have access on private property as shall be necessary to inspect services and hydrants. In the event that any such seal shall be broken, displaced or removed for any cause, either inadvertently or for firefighting purposes, it shall be the duty of the owner and occupant of the premises where such valve or hydrant is located to notify the Director, without delay, so that the same may be resealed.

*(Ord. Nos. 18163, 21481)*

**Section 210. Duct meters and irrigation meters.**

**A.** For all irrigation systems on accounts installed prior to March 16, 1999, other than a single residential living unit served by a single water service connection, the installation of a deduct irrigation meter is permissible. The location of the deduct irrigation meter shall be determined by the Public Works Director or his authorized representative.

**B.** On and after March 16, 1999, no water connection to a commercial lawn irrigation system shall be permitted unless it has an irrigation meter and a backflow preventer in accordance with the Plumbing Code of the City of Tulsa, Title 56, Tulsa Revised Ordinances. Residential irrigation water connections may connect to the water system after the service meter or may connect with a new service connection with an irrigation meter. All residential irrigation systems must have a backflow preventer in accordance with the Plumbing Code of the City of Tulsa, Title 56, Tulsa Revised Ordinances. Deduct irrigation meters shall not be allowed off of residential water services.

*(Ord. Nos. 19501, 20406, 21481)*

**Section 211. Owner's duty to repair.**

The service pipes, connections and other appurtenances within any private premises shall be kept in good repair and protected from freezing by the owner at his expense, or by his occupant in cases where service is contracted for by the occupant; and such owner or occupant shall be responsible for all damages resulting from leaks and breaks. In case such owner or occupant of such premises neglects to promptly repair any such service or fixture or neglects to make any changes or alterations which are required by this title, the Director shall have authority to shut off the water from such premises or, when deemed necessary, to go on the premises and make or cause to be made such changes, alterations or repairs, and to charge the same against the premises and the owner thereof, which charge shall be collected as are other charges.

*(Ord. Nos. 19501, 21481)*

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## CHAPTER 3. WATER RATES

Section 300. Scope.
Section 301. Definitions.
Section 302. Treated water rates inside City.
Section 303. Treated water rates for out-of-City water sales.
Section 304. Private fire protection service charges.
Section 305. Sale of treated water to municipal corporations, nonprofit water corporations, water improvement districts, public trusts, public utilities, and persons engaged in the water business.
Section 306. Untreated water sales from Spavinaw Flow Lines and Oologah Lake, Outlet Structure, and Flow Line.
Section 307. Untreated water sales directly from Lake Eucha and Lake Spavinaw.
Section 308. Operative date of rates.

### Section 300. Scope.

This chapter includes the rates per month for water, either treated or untreated, whether within or outside the corporate limits; master meter water rates; and private fire protection service.

### Section 301. Definitions.

For the purposes of this chapter, the following terms, phrases, words and their derivations shall have the meanings given herein:

**A.** **Single-family residential** shall mean one (1) residential living unit served solely by one (1) water service connection.

**B.** **Multi-family residential** shall mean two (2) or more residential living units contained within one (1) building or structure and served solely by one (1) service connection.

**C.** **Commercial** shall mean general business, school, church, governmental office, medical facility or other type or kind of nonresidential user of water not otherwise classified.

**D.** **Industrial** shall mean light industrial and warehousing, and heavy industrial, as established by Class Codes of the Tulsa County Assessor, which are given herein.

**1.** **Light industrial and warehousing** shall mean:

**a.** Light manufacturing, assembly and storage,

**b.** Industrial and wholesale warehouses,

**c.** Refrigerated warehousing,

**d.** Mini-storage,

**e.** Truck terminals,

**f.** Research labs, and

**g.** Lumber companies.

**2.** **Heavy industrial** shall mean:

**a.** Conventional production and assembly facilities,

**b.** Special use heavy duty facilities,

**c.** Foundries, and

**d.** Refineries.

**E. Large industrial** shall mean heavy industrial customers, using two hundred fifty million (250,000,000) or more gallons of water per year for industrial purposes at one geographically contiguous location, documented by water billing records for the prior twelve (12) consecutive calendar month period.

**F. Night watering** shall mean the use of water by parks, cemeteries and golf courses between the hours of 10:00 p.m. and 5:00 a.m. for common outdoor areas of lawn and landscape. To be eligible for night watering rates, parks, cemeteries and golf courses shall use a verifiable, automatic pre-set water irrigation system for outdoor night watering; and night watering rates shall apply only to such outdoor irrigation systems.

**G. Parks, cemeteries and golf courses** shall mean those customers who use water for common areas of lawn and landscape, for irrigation and/or for other outdoor activities. Such customers may also use water in separately-metered buildings and structures, which use shall not be considered night watering.

### Section 302. Treated water rates inside City.

**A. Monthly Meter Service Charge.** The minimum monthly charge for all metered, treated water service to single-family residential, multi-family residential, commercial, industrial, large industrial, parks, cemeteries, golf course, and night watering customers, including irrigation meters and deduct irrigation meters, which are either within the corporate limits of the City of Tulsa or on property owned by the City of Tulsa shall be as follows:

| | |
|---|---|
| Meters of ¾ inch or less in size and all deduct irrigation meters | $7.36 |
| Meters of 1 inch in size | $10.57 |
| Meters of 1½ inches in size | $16.68 |
| Meters of 2 inches in size | $32.49 |
| Meters of 3 inches in size | $66.43 |
| Meters of 4 inches in size | $91.06 |
| Meters of 6 inches in size | $137.63 |
| Meters of 8 inches in size | $189.59 |
| Meters of 10 inches in size | $251.72 |
| Meters of 20 or more inches in size | $263.88 |

**B. Monthly Quantity Charge.** The rates per month for treated water supplied to single-family residential, multi-family residential, commercial, industrial, large industrial, parks, cemeteries, golf course, and night watering customers, including irrigation meters and deduct irrigation meters, through meters to locations either within the corporate limits of the City of Tulsa or on property owned by the City of Tulsa shall be as follows:

| | Rate Per Thousand Gallons |
|---|---|
| Single-Family Residential | $4.57 |
| Multi-Family Residential | $4.00 |

| | |
|---|---|
| Commercial | $4.17 |
| Industrial | $3.32 |
| Large Industrial | $2.21 |
| Parks/Cemeteries/Golf Courses | $6.47 |
| Night Watering | $5.50 |
| Special Contract | $1.58 |

*(Ord. Nos. 17738, 17958, 18221, 18485, 18720, 19501, 19842, 19867, 20622, 20670, 21317; Ord. No. 21843, § 1, 6-26-2008; Ord. No. 22085, § 1, 6-18-2009; Ord. No. 22263, § 1, 6-17-2010; Ord. No. 22461, § 1, 6-23-2011, eff. 10-1-2011; Ord. No. 22699, § 1, 6-14-2012, eff. 10-1-2012; Ord. No. 22895, § 1, 6-20-2013, eff. 10-1-2013; Ord. No. 23124, § 1, 6-12-2014, eff. 10-1-2014; Ord. No. 23306, § 1, 6-11-2015, eff. 10-1-2015; Ord. No. 23499, § 1, 6-9-2016, eff. 10-1-2016; Ord. No. 23704, § 1, 6-7-2017; Ord. No. 23942, § 1, 6-13-2018, eff. 10-1-2018; Ord. No. 24150, § 1, 6-19-2019, eff. 10-1-2019; Ord. No. 25074, § 1, 6-14-2023, eff. 10-1-2023; Ord. No. 25348, § 1, 6-12-2024; Ord. No. 25600, § 1, 6-11-2025)*

## Section 303. Treated water rates for out-of-City water sales.

**A.** The Tulsa Utility Board, upon the recommendation of the Director, is authorized to enter into contracts, subject to the approval of the Mayor, for the sale of treated water to be supplied through meters to persons, firms, or corporations for consumption outside the corporate limits of the City of Tulsa and not for redistribution or resale. The charges per month for such water shall be the charges set out in the following schedules:

**1. Monthly Meter Service Charge.** The minimum monthly charge for all metered, treated water service to single-family residential, multi-family residential, commercial, industrial, large industrial, parks, cemeteries, golf course and night watering customers through meters to locations outside the corporate limits of the City of Tulsa, but excluding property owned by the City of Tulsa, shall be as follows:

| | |
|---|---|
| Meters of ¾ inch or less in size and all deduct irrigation meters | $9.17 |
| Meters of 1 inch in size | $11.34 |
| Meters of 1½ inches in size | $17.25 |
| Meters of 2 inches in size | $35.08 |
| Meters of 3 inches in size | $76.06 |
| Meters of 4 inches in size | $99.35 |
| Meters of 6 inches in size | $147.27 |
| Meters of 8 inches in size | $205.25 |
| Meters of 10 or more inches in size | $279.50 |

**2. Monthly Quantity Charge.** The rates per month for treated water supplied to single-family residential, multi-family residential, commercial, industrial, large industrial, parks, cemeteries, golf course and night watering customers through meters to locations outside the corporate limits of the City of Tulsa, but excluding property owned by the City of Tulsa, shall be as follows:

| Rate Per Thousand Gallons | |
|---|---|
| Single-Family Residential | $5.61 |
| Multi-Family Residential | $5.06 |
| Commercial | $5.31 |
| Industrial | $3.96 |
| Large Industrial | $2.70 |
| Parks/Cemeteries/Golf Courses | $8.08 |
| Night Watering | $6.87 |

**B.** The Director is authorized and directed to estimate and establish the amount of probable use of water by a large industrial customer by the size of meter requested, the type of use and amount of water requested, the number of persons proposed to be served, and other appropriate information where the amount is not established by prior use.

**C.** All sales of water outside the corporate limits of the City of Tulsa shall be by separate contracts with each customer. Each contract shall expressly reserve to the City the right to discontinue or suspend such service at any time if one of the following events occurs:

**1.** The failure of the customer to pay charges when they shall become due and owing;

**2.** The failure of the customer to curtail water use in the same manner and method as required of customers within the corporate limits of the City in the event of a drought or an emergency requiring water conservation; or

**3.** The customer's breach of any of the terms or conditions of the contract.

*(Ord. Nos. 17738, 17958, 18221, 18485, 18720, 19867, 20359, 20670, 21317; Ord. No. 21843, § 1, 6-26-2008; Ord. No. 22085, § 1, 6-18-2009; Ord. No. 22263, § 2, 6-17-2010; Ord. No. 22461, § 2, 6-23-2011, eff. 10-1-2011; Ord. No. 22699, § 2, 6-14-2012, eff. 10-1-2012; Ord. No. 22895, § 2, 6-20-2013, eff. 10-1-2013; Ord. No. 23124, § 2, 6-12-2014, eff. 10-1-2014; Ord. No. 23306, § 2, 6-11-2015, eff. 10-1-2015; Ord. No. 23499, § 1, 6-9-2016, eff. 10-1-2016; Ord. No. 23704, § 2, 6-7-2017; Ord. No. 23942, § 2, 6-13-2018, eff. 10-1-2018; Ord. No. 24150, § 2, 6-19-2019, eff. 10-1-2019; Ord. No. 25074, § 2, 6-14-2023, eff. 10-1-2023; Ord. No. 25348, § 2, 6-12-2024; Ord. No. 25600, § 2, 6-11-2025)*

## Section 304. Private fire protection service charges.

The rates for water supplied for private fire protection service, within or outside the corporate limits of the City, shall be as provided in this section.

**Private Fire Protection.** The charge to customers with installed private fire protection service, within or outside the corporate limits of the City of Tulsa, shall be as follows:

| Private Fire Protection Service Within the City Limits or on City-Owned Property | |
|---|---|
| Meters of 4 inches or less in size, per month | $9.51 |
| Meters of 6 inches in size, per month | $27.63 |
| Meters of 8 inches in size, per month | $58.87 |
| Meters of 10 or more inches in size, per month | $105.87 |

**Private Fire Protection Service Outside City Limits, Excluding City-Owned Property**

| | |
|---|---|
| Meters of 4 inches or less in size, per month | $12.79 |
| Meters of 6 inches in size, per month | $37.13 |
| Meters of 8 inches in size, per month | $79.14 |
| Meters of 10 or more inches in size, per month | $142.31 |

If any water delivered from a system pursuant to this section is used for any purpose other than for the purpose specified here, the charge for such water shall be billed at the appropriate inside or outside treated water rate based upon the quantity used as determined by the Director.

*(Ord. Nos. 17738, 17958, 18221, 18485, 18720, 20670, 21317; Ord. No. 22085, § 1, 6-18-2009; Ord. No. 22263, § 3, 6-17-2010; Ord. No. 22699, § 3, 6-14-2012, eff. 10-1-2012; Ord. No. 22895, § 3, 6-20-2013, eff. 10-1-2013; Ord. No. 23124, § 3, 6-12-2014, eff. 10-1-2014; Ord. No. 23306, § 3, 6-11-2015, eff. 10-1-2015; Ord. No. 23499, § 1, 6-9-2016, eff. 10-1-2016; Ord. No. 23704, § 3, 6-7-2017; Ord. No. 23942, § 3, 6-13-2018, eff. 10-1-2018; Ord. No. 24150, § 3, 6-19-2019, eff. 10-1-2019; Ord. No. 25074, § 3, 6-14-2023, eff. 10-1-2023; Ord. No. 25348, § 3, 6-12-2024; Ord. No. 25600, § 3, 6-11-2025)*

## Section 305. Sale of treated water to municipal corporations, nonprofit water corporations, water improvement districts, public trusts, public utilities, and persons engaged in the water business.

**A.** No water shall be sold or delivered to any municipal corporation; nonprofit water corporation; water improvement district; public trust; public utility; or person, firm or corporation engaged in the water business, except under current written contract as required by law. The City, upon the recommendation of the Utility Board, is authorized to enter into contracts, subject to the approval of the Mayor, for the sale of treated water to be supplied through master meters for redistribution or resale to municipal corporations, nonprofit water corporations, water improvement districts, public trusts, public utilities, persons, firms, or corporations for consumption outside the corporate limits of the City of Tulsa. The charges per month for such water shall be the charges set out herein.

**1. Monthly Meter Service Charge.** The minimum monthly charge for all metered, treated water service provided on a permanent, limited term, or emergency basis shall be as follows:

| | |
|---|---|
| Meters of ¾ inch or less in size | $9.17 |
| Meters of 1 inch in size | $11.34 |
| Meters of 1½ inches in size | $17.25 |
| Meters of 2 inches in size | $35.08 |
| Meters of 3 inches in size | $76.06 |
| Meters of 4 inches in size | $99.35 |
| Meters of 6 inches in size | $147.27 |
| Meters of 8 inches in size | $205.25 |
| Meters of 10 or more inches in size | $279.50 |

**2. Monthly Quantity Charge.** Additional rates per month for treated water supplied on a permanent, limited term, or emergency basis shall be as follows:

| | Rate per Thousand Gallons |
|---|---|
| Permanent Service | $3.50 |
| Limited Term Service | $6.50 |
| Emergency Service | $11.53 |

**B. Discontinuance or Suspension of Service.** Each contract shall expressly reserve to the City the right to discontinue or suspend water service at any time if one (1) of the following occurs:

**1.** The failure of the customer to pay charges when they shall become due and owing;

**2.** The failure of the customer to curtail water use in the same manner and method as required of customers within the corporate limits of the City in the event of a drought or an emergency requiring water conservation; or

**3.** The customer's breach of any of the terms or conditions of the contract.

**C. Protection Against Contamination.** Each contract required under this section shall contain such provisions as the Director may require to protect the water and the water supply of the City against contamination. No water shall be furnished under any such contract except upon the express condition that all plumbing and connections shall be installed in accordance with the requirements of the Plumbing Code of the City. Such contract shall reserve to the City the right to make house-to-house inspections of all plumbing connections, with the cost of such inspections to be borne by such municipal corporations, nonprofit water corporations, water improvement districts, public trusts, public utilities, and persons engaged in the water business, or by their individual customers.

**D. Right to Acquire.** Each contract under this section shall expressly provide to the City the right to acquire any of the water lines of the customers that are or shall become within the corporate limits of the City. When the City takes or acquires a customer's water system or portions of a customer's water system, the purchase price to be paid by the City shall be the unpaid portion of the indebtedness of such customer, if any, allocable to that portion of the customer's water lines and appurtenances taken by the City, in the same proportion as the water lines and appurtenances taken by the City bear to the entire system of such customer and shall not include any anticipated revenue or profit.

**E. Right to Furnish Water.** Each contract under this section shall expressly provide to the City the right to furnish water within the customer's area of service or boundaries, whether within or outside the corporate limits of the City of Tulsa. The remuneration or other considerations which the customer may receive, if any, when the City furnishes water within the customer's area of service or boundaries shall be mutually agreed upon by the customer and the City prior to the City's furnishing such water.

**F. Master Meters Prohibited—Exceptions.** Water shall not be sold or delivered through any master meter or under any contract providing for a master meter or upon the payment for water on the measurements thereof, with the following exceptions:

**1.** Incorporated municipalities;

**2.** Areas served through master meters on September 1, 1947;

**3.** Public trusts, wherein an incorporated municipality is the sole beneficiary;

**4.** Rural Water Improvement Districts; and

**5.** Nonprofit water corporations.

**G. Conflicts.** In event of any conflict or inconsistency between the provisions of this section and other provisions of this chapter, the provisions of this section shall control as to all contracts for sale of water to municipal corporations, nonprofit water corporations, water improvement districts, public trusts, public utilities, and persons engaged in the water business.

**H. General.** Nothing herein contained shall be construed to impose any duty or obligation upon the City to sell or furnish water to any municipal corporation, nonprofit water corporation, water improvement district, public trust, public utility, or person engaged in the water business outside the City of Tulsa corporate limits, except as the City may expressly undertake by the terms of a written contract. All water sold and furnished to persons or to public or private entities outside the corporate limits of the City shall be sold and furnished upon written contracts, expressly stating that the contract may be abrogated by the City at any time the governing body thereof or the board, commission, or public trust operating and controlling the waterworks shall declare by resolution that the water being furnished pursuant to the contract is required by the City for its own use or the use of its inhabitants. This provision pertaining to abrogation of contracts may be waived upon the express written agreement of the contracting parties.

*(Ord. Nos. 17738, 17958, 18221, 18485, 18720, 19867, 20359, 21317; Ord. No. 22085, § 1, 6-18-2009; Ord. No. 22263, § 4, 6-17-2010; Ord. No. 22461, § 3, 6-23-2011, eff. 10-1-2011; Ord. No. 22699, § 4, 6-14-2012, eff. 10-1-2012; Ord. No. 22895, § 4, 6-20-2013, eff. 10-1-2013; Ord. No. 23124, § 4, 6-12-2014, eff. 10-1-2014; Ord. No. 23306, § 4, 6-11-2015, eff. 10-1-2015; Ord. No. 23499, § 1, 6-9-2016, eff. 10-1-2016; Ord. No. 23704, § 4, 6-7-2017; Ord. No. 23942, § 4, 6-13-2018, eff. 10-1-2018; Ord. No. 24150, § 4, 6-19-2019, eff. 10-1-2019; Ord. No. 25074, § 4, 6-14-2023, eff. 10-1-2023; Ord. No. 25348, § 4, 6-12-2024; Ord. No. 25600, § 4, 6-11-2025)*

## Section 306. Untreated water sales from Spavinaw Flow Lines and Oologah Lake, Outlet Structure, and Flow Line.

**A. Water from Spavinaw Flow Lines.** Water shall not be sold or delivered from the Spavinaw Flow Lines, except through service connections that were in place on August 1, 1981. No existing service shall be enlarged or increased to provide additional water through such service. In the event that use of any service is abandoned or discontinued for a period of one (1) year, such service shall be disconnected from the flow lines; and no new service shall be made available at any point on the flow lines. The charges per month for untreated water shall be as set out in the schedule given herein.

**1. Monthly Meter Service Charge.** The minimum monthly charge for all metered, untreated water service from the Spavinaw Flow Lines shall be as follows:

| | |
|---|---|
| Meters of ¾ inch or less in size and all deduct irrigation meters | $9.17 |
| Meters of 1 inch in size | $11.34 |
| Meters of 1½ inches in size | $17.25 |

| | |
|---|---|
| Meters of 2 inches in size | $35.08 |
| Meters of 3 inches in size | $76.06 |
| Meters of 4 inches in size | $99.35 |
| Meters of 6 inches in size | $147.27 |
| Meters of 8 inches in size | $205.25 |
| Meters of 10 or more inches in size | $279.50 |

2. **Monthly Quantity Charge.** Additional rates per month for untreated water supplied through meters to all places from the Spavinaw Flow Lines shall be as follows:

| | |
|---|---|
| All usage, per thousand gallons | $0.69 |

**B. Water from Oologah Lake, Outlet Structure or Flow Line.** The City of Tulsa, upon recommendation of the Utility Board, is authorized to enter into contracts, subject to the approval of the Mayor, for the sale of untreated water to be supplied from Oologah Lake, the Oologah outlet structure or the Oologah flow line to persons, firms, or corporations for use outside the corporate limits of the City of Tulsa. The charges per month for such untreated water shall be as set out in the schedule given herein.

1. **Monthly Meter Service Charge.** The minimum monthly charge for all metered, untreated water service from the Oologah Lake or the Oologah flow line shall be as follows:

| | |
|---|---|
| Meters of ¾ inch or less in size and all deduct irrigation meters | $9.17 |
| Meters of 1 inch in size | $11.34 |
| Meters of 1½ inches in size | $17.25 |
| Meters of 2 inches in size | $35.08 |
| Meters of 3 inches in size | $76.06 |
| Meters of 4 inches in size | $99.35 |
| Meters of 6 inches in size | $147.27 |
| Meters of 8 inches in size | $205.25 |
| Meters of 10 or more inches in size | $279.50 |

2. **Monthly Quantity Charge.** Additional rates per month for untreated water supplied through meters to all places from the Oologah Lake or the Oologah flow line shall be as follows:

| | |
|---|---|
| All usage, per thousand gallons | $0.69 |

3. **Monthly Quantity Charge.** Rates per month for untreated water supplied to all places, where the City does not provide a meter, from Oologah Lake or the Oologah outlet structure shall be as follows:

| | |
|---|---|
| All usage, per thousand gallons | $0.69 |

**C. General.** Nothing herein contained shall be construed to impose any duty or obligation upon the City of Tulsa to sell or furnish water to any municipal corporation, nonprofit water corporation, water improvement district, public trust, public utility or person engaged in the water business within or outside the City of Tulsa corporate limits, except as the City of Tulsa may expressly undertake by the terms of a written contract. All water sold and furnished to persons or to public or private entities outside the

corporate limits of the City shall be sold and furnished upon written contracts expressly stating that the contract may be abrogated by the City at any time the governing body thereof, or the board, commission or public trust operating and controlling the waterworks shall declare, by resolution, that the water being furnished pursuant to the contract is required by the City for its own use and the use of its inhabitants. This provision pertaining to abrogation of contracts may be waived upon the express written agreement of the contracting parties.

*(Ord. Nos. 17738, 17958, 18221, 18485, 18720, 19867, 20359, 20405, 21317; Ord. No. 21843, § 2, 6-26-2008; Ord. No. 22085, § 2, 6-18-2009; Ord. No. 22263, § 5, 6-17-2010; Ord. No. 22461, § 4, 6-23-2011, eff. 10-1-2011; Ord. No. 22699, § 5, 6-14-2012, eff. 10-1-2012; Ord. No. 22895, § 5, 6-20-2013, eff. 10-1-2013; Ord. No. 23124, § 5, 6-12-2014, eff. 10-1-2014; Ord. No. 23306, § 5, 6-11-2015, eff. 10-1-2015; Ord. No. 23499, § 1, 6-9-2016, eff. 10-1-2016; Ord. No. 23704, § 5, 6-7-2017; Ord. No. 23942, § 5, 6-13-2018, eff. 10-1-2018; Ord. No. 24150, § 5, 6-19-2019, eff. 10-1-2019; Ord. No. 25074, § 5, 6-14-2023, eff. 10-1-2023; Ord. No. 25348, § 5, 6-12-2024; Ord. No. 25600, § 5, 6-11-2025)*

## Section 307. Untreated water sales directly from Lake Eucha and Lake Spavinaw.

**A.** No water shall be sold or delivered directly from Lake Eucha or Lake Spavinaw to any municipal corporation; nonprofit water corporation; water improvement district; public trust; public utility; or person, firm, or corporation engaged in the water business, except under current written contract as required by law. The City, upon the recommendation of the Utility Board, is authorized to enter into contracts, subject to the approval of the Mayor, for the sale of untreated water to be supplied through meters for treatment and redistribution or resale to municipal corporations, nonprofit water corporations, water improvement districts, public trusts, public utilities, persons, firms, or corporations for use outside the corporate limits of the City of Tulsa. The charges per month for such untreated water shall be set out in the following schedules:

**1. Monthly Meter Service Charge.** The minimum monthly charge for all metered, untreated water service outside the corporate limits of the City of Tulsa from Lake Eucha or Lake Spavinaw shall be as follows:

| | |
|---|---|
| Meters of ¾ inch or less in size and all deduct irrigation meters | $9.17 |
| Meters of 1 inch in size | $11.34 |
| Meters of 1½ inches in size | $17.25 |
| Meters of 2 inches in size | $35.08 |
| Meters of 3 inches in size | $76.06 |
| Meters of 4 inches in size | $99.35 |
| Meters of 6 inches in size | $147.27 |
| Meters of 8 inches in size | $205.25 |
| Meters of 10 or more inches in size | $279.50 |

**2. Monthly Quantity Charge.** Additional rates per month for untreated water supplied through meters to all places outside the corporate limits of the City of Tulsa from Lake Eucha or Lake Spavinaw shall be as follows:

| | |
|---|---|
| All usage, per thousand gallons | $0.12 |

**B. General.** Nothing herein contained shall be construed to impose any duty or obligation upon the City of Tulsa to sell or furnish water to any municipal corporation, nonprofit water corporation, water improvement district, public trust, public utility, or person engaged in the water business outside the City of Tulsa corporate limits, except as the City of Tulsa may expressly undertake by the terms of a written contract. All water sold and furnished to persons or to public or private entities outside the corporate limits of the City shall be sold and furnished upon written contracts expressly stating that the contract may be abrogated by the City at any time the governing body thereof, or the board, commission, or public trust operating and controlling the waterworks shall declare by resolution that the water being furnished pursuant to the contract is required by the City for its own use or the use of its inhabitants. This provision pertaining to abrogation of contracts may be waived upon express written agreement of the contracting parties.

*(Ord. Nos. 17738, 17958, 18221, 18485, 18720, 19867, 20359, 21317; Ord. No. 21843, § 2, 6-26-2008; Ord. No. 22085, § 2, 6-18-2009; Ord. No. 22263, § 6, 6-17-2010; Ord. No. 22461, § 5, 6-23-2011, eff. 10-1-2011; Ord. No. 22699, § 6, 6-14-2012, eff. 10-1-2012; Ord. No. 22895, § 6, 6-20-2013, eff. 10-1-2013; Ord. No. 23124, § 6, 6-12-2014, eff. 10-1-2014; Ord. No. 23306, § 6, 6-11-2015, eff. 10-1-2015; Ord. No. 23499, § 1, 6-9-2016, eff. 10-1-2016; Ord. No. 23704, § 6, 6-7-2017; Ord. No. 23942, § 6, 6-13-2018, eff. 10-1-2018; Ord. No. 24150, § 6, 6-19-2019, eff. 10-1-2019; Ord. No. 25074, § 6, 6-14-2023, eff. 10-1-2023; Ord. No. 25348, § 6, 6-12-2024; Ord. No. 25600, § 6, 6-11-2025)*

## Section 308. Operative date of rates.

The rates established herein shall become operative on October 1, 2025, for all billing cycles provided in this title with a "service from date" on or after October 1, 2025.

*(Ord. Nos. 17738, 17958, 18221, 18485, 18720, 19867, 20359; Ord. No. 23124, § 7, 6-12-2014; Ord. No. 23306, § 7, 6-11-2015, eff. 10-1-2015; Ord. No. 23499, § 1, 6-9-2016, eff. 10-1-2016; Ord. No. 23704, § 7, 6-7-2017; Ord. No. 23942, § 7, 6-13-2018, eff. 10-1-2018; Ord. No. 24150, § 7, 6-19-2019, eff. 10-1-2019; Ord. No. 25074, § 7, 6-14-2023, eff. 10-1-2023; Ord. No. 25348, § 7, 6-12-2024; Ord. No. 25600, § 7, 6-11-2025)*

## CHAPTER 4. SPAVINAW WATER DISTRICT

Section 400. District created.
Section 401. Health rules.
Section 402. Spavinaw Dam and Lake.
Section 403. Eucha Dam and Lake.
Section 404. Spavinaw Reservoir Area.
Section 405. Authority and responsibility for reservoir area.
Section 406. Prohibited acts.
Section 407. Activities permitted.
Section 408. Restricted areas.
Section 409. Fishing.
Section 410. Boats.
Section 411. Waiver of fees.
Section 412. Boating rules.
Section 413. Boat storage.
Section 414. Hunting.
Section 415. Swimming and diving.
Section 416. Camping.
Section 417. Hiking and inspections.
Section 418. Contamination of reservoir area.
Section 419. Regulations.
Section 420. Penalty.
Section 421. Arrest.
Section 422. Arrest by warrant.

### Section 400. District created.

Whereas the City of Tulsa, Oklahoma, has constructed a certain storage reservoir in Mayes and Delaware Counties, Oklahoma, by building a dam across Spavinaw Creek at a point where Spavinaw Creek crosses or traverses Section 15, Township 22 North, Range 21 East, Mayes County, Oklahoma, such Reservoir to be used by the City of Tulsa as a source of water supply for the inhabitants of the City; and

Whereas, it is necessary for the protection of the public health and safety that a water district be established, created and designated, such district to embrace certain lands in Mayes and Delaware Counties, Oklahoma, draining, flowing or shedding water directly or indirectly into such reservoir; and

Whereas, it is necessary that the waters impounded in such reservoir be protected from contamination and pollution, in order that the public health be protected and conserved;

Now, there is hereby created and established in Mayes and Delaware Counties, Oklahoma, a water district to be known and designated as the "Spavinaw Water District," such district to cover and include the lands draining, flowing or shedding water directly or indirectly into the Spavinaw Lake or reservoir and to include the following described lands, to-wit:

> Beginning at a point on the north boundary of the SE¼ of NE¼ of Sec. 15, Twn. 22, R 21, approximately 825' W of the NE corner of SE¼ of NE¼ of Sec. 15, Twn. 22, R 21; thence in a northeasterly direction approximately 1560' to the NE corner of Sec. 15, Twn. 22, R 21; thence E ¼ mile to the SW corner of the SE¼ of SW¼ of Sec. 11, Twn. 22, R 21;

Thence N ¼ mile to the NW corner of the SE¼ of SW¼ of Sec. 11, Twn. 22, R 21;

Thence E ¼ mile to the NE corner of the SE¼ of SW¼ of Sec. 11, Twn. 22, R 21;

Thence N ¼ mile to the center of Sec. 11, Twn. 22, R 21;

Thence E ½ mile to the E¼ corner of Sec. 11, Twn. 22, R 21;

Thence N along section line to the NW corner of the S½ of SW¼ of NW¼ of Sec. 12, Twn. 22, R 21;

Thence E ¼ mile to the NE corner of the S½ of SW¼ of NW¼ of Sec. 12, Twn. 22, R. 21;

Thence N ¼ mile to the NW corner of the SE¼ of NW¼ of Sec. 12, Twn. 22, R 21;

Thence E ¼ mile to the NE corner of the SE¼ of NW¼ of Sec. 12, Twn. 22, R 21;

Thence N along quarter line to the N¼ corner of Sec. 12, Twn. 22, R 21;

Thence E ¼ mile to the SW corner of the SE¼ of SE¼ of Sec. 1, Twn. 22, R 21;

Thence N ¼ mile to the NW corner of the SE¼ of SE¼ of Sec. 1, Twn. 22, R 21;

Thence E ¾ mile to the NE corner of the SE¼ of SW¼ of Sec. 6, Twn. 22, R 22;

Thence N ¼ mile to the center of Sec. 6, Twn. 22, R 22;

Thence E ¼ mile to the SW corner of the SE¼ of NE¼ of Sec. 6, Twn. 22, R 22;

Thence N ¼ mile to the NW corner of the SE¼ of NE¼ of Sec. 6, Twn. 22, R 22;

Thence E ½ mile to the NE corner of the SE¼ of NW¼ of Sec. 5, Twn. 22, R 22;

Thence S ¼ mile to the SE corner of the SW¼ of NW¼ of Sec. 5, Twn. 22, R 22;

Thence E ½ mile to the SW corner of the SE¼ of NE¼ of Sec. 5, Twn. 22, R 22;

Thence N ¼ mile to the NW corner of the SE¼ of NE¼ of Sec. 5, Twn. 22, R 22;

Thence E ½ mile to the SW corner of the NE¼ of NW¼ of Sec. 4, Twn. 22, R 22;

Thence N ¼ mile to the NW corner of the NE¼ of NW¼ of Sec. 4, Twn. 22, R 22;

Thence E ¾ mile to the NE corner of Sec. 4, Twn. 22, R 22; thence S ½ mile to the E ¼ corner of Sec. 4, Twn. 22, R 22;

Thence E ¾ mile to the NE corner of the NW¼ of SE¼ of Sec. 3, Twn. 22, R 22;

Thence S ¼ mile to the SE corner of the NW¼ of SE¼ of Sec. 3, Twn. 22, R 22;

Thence E ½ mile to the NE corner of the SW¼ of SW¼ of Sec. 2, Twn. 22, R 22;

Thence S ¾ mile to the SW corner of the SE¼ of NW¼ of Sec. 11, Twn. 22, R 22;

Thence E ½ mile to the NE corner of the NW¼ of SE¼ of Sec. 11, Twn. 22, R 22;

Thence S ¼ mile to the SW corner of the NE¼ of SE¼ of Sec. 11, Twn. 22, R 22;

Thence E ¾ mile to the NE corner of the SE¼ of SW¼ of Sec. 12, Twn. 22, R 22;

Thence S ½ mile to the SW corner of the NW¼ of NE¼ of Sec. 12, Twn. 22, R 22;

Thence E ¾ mile to the NE corner of the SW¼ of NW¼ of Sec. 18, Twn. 22, R 23;

Thence S ¼ mile to the SE corner of the SW¼ of NW¼ of Sec. 18, Twn. 22, R 23;

Thence E ½ mile to the SW corner of the SE¼ of NE¼ of Sec. 18, Twn. 22, R 23;

Thence N ¼ mile to the NW corner of the SE¼ of NE¼ of Sec. 18, Twn. 22, R 23;

Thence E 1 mile to the SW corner of the NE¼ of NE¼ of Sec. 17, Twn. 22, R 23;

Thence N 1 mile to the NW corner of the SE¼ of NE¼ of Sec. 8, Twn. 22, R 23;

Thence E 1¼ miles to the NE corner of the SE¼ of NE¼ of Sec. 9, Twn. 22, R 23;
Thence S 5¾ miles to the SE corner of Sec. 4, Twn. 21, R 23;
Thence W 2 miles to the SW corner of Sec. 5, Twn. 21, R 23;
Thence N ½ mile to the W¼ corner of Sec. 5, Twn. 21, R 23;
Thence W 1 mile to the W¼ corner of Sec. 6, Twn. 21, R 23;
Thence N along township line ½ mile to the NW corner of Sec. 6, Twn. 21, R 23;
Thence W along township line 2 miles to the SW corner of Sec. 35, Twn. 22, R 22;
Thence N 1 mile to the NW corner of Sec. 35, Twn. 22, R 22;
Thence W 1 mile to the SW corner of Sec. 27, Twn. 22, R 22;
Thence N ½ mile to the E¼ corner of Sec. 28, Twn. 22, R 22;
Thence W ½ mile to the center of Sec. 28, Twn. 22, R 22;
Thence S ½ mile to the S¼ corner of Sec. 28, Twn. 22, R 22;
Thence W 2¾ miles to the NW corner of the NE¼ of NE¼ of Sec. 36, Twn. 22, R 21;
Thence S ½ mile to the SE corner of the SW¼ of NE¼ of Sec. 36, Twn. 22, R 21;
Thence W ½ mile to the SW corner of the SE¼ of NW¼ of Sec. 36, Twn. 22, R 21;
Thence N 1 mile to the NW corner of the NE¼ of SW¼ of Sec. 25, Twn. 22, R 21;
Thence W ¾ mile to the center of Sec. 26, Twn. 22, R 21;
Thence S ¼ mile to the SE corner of the NE¼ of SW¼ of Sec. 26, Twn. 22, R 21;
Thence W ¼ mile to the NE corner of the SW¼ of SW¼ of Sec. 26, Twn. 22, R 21;
Thence S ¼ mile to the SE corner of the SW¼ of SW¼ of Sec. 26, Twn. 22, R 21;
Thence W ¼ mile to the SW corner of Sec. 26, Twn. 22, R 21;
Thence S ¼ mile to the SE corner of the NE¼ of NE¼ of Sec. 34, Twn. 22, R 21;
Thence W ½ mile to the SW corner of the NW¼ of NE¼ of Sec. 34, Twn. 22, R 21;
Thence N ¼ mile to the N¼ corner of Sec. 34, Twn. 22, R 21; thence W½ mile to the SW corner of Sec. 27, Twn. 22, R 21;
Thence N ¼ mile to the SE corner of the NE¼ of SE¼ of Sec. 28, Twn. 22, R 21;
Thence W ¼ mile to the SW corner of the NE¼ of SE¼ of Sec. 28, Twn. 22, R 21;
Thence N 1 mile to the NW corner of the SE¼ of SE¼ of Sec. 21, Twn. 22, R 21;
Thence E ½ mile to the NE corner of the SW¼ of SW¼ of Sec. 22, Twn. 22, R 21;
Thence N ¼ mile to the NW corner of the NE¼ of SW¼ of Sec. 22, Twn. 22, R 21;
Thence E 315' to a point on the E and W¼ line of Sec. 22, Twn. 22, R 21;
Thence N 21°, 20 minutes E 1330';
Thence N 44°, 26 minutes E, 680';
Thence N no degrees, 36 minutes W, 720';
Thence N 54°, 53 minutes E, 400';
Thence N 34°, 22 minutes E, 450';

Thence N 65°, 11 minutes E, 150' to a point on the center line of the dam as constructed; thence N 6°, 28 minutes W, 98' to the zero station of the center line of the dam as constructed; thence along the center line of the dam as it meanders to the point of beginning.

*(Ord. No. 2585; Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

**Section 401. Health rules.**

(Note: On February 14, 1989, the citizens of Tulsa approved an Amended Charter of the City of Tulsa to take effect at twelve o'clock noon on the 8th day of May, 1990. Pursuant to the provisions of the Amended Charter, references in this section to Water Commissioner shall mean Mayor of the City of Tulsa and references to Water Department shall mean Water and Sewer Department of the City of Tulsa.)

Whereas the Commissioner of Health of the State of Oklahoma has, for the preservation of the public health, promulgated, adopted and put in force and effect in the Spavinaw Water District, the rules and regulations given herein.

**A. Definition of reservoir.** That the term "reservoir," heretofore used in these regulations, is intended to mean and refer to the Spavinaw Lake or Reservoir or to any tributary which serves as a source of the Spavinaw Reservoir.

**B. Definition of the water course.** That wherever the term "Water Course" is used in these rules and regulations it is intended to mean and include every spring, pond, stream, ditch, gutter or other channel of every kind, the waters of which when running, whether continuously or occasionally, eventually flow or may flow into the said Spavinaw Reservoir.

**C. Meaning of linear distance.** Whenever a linear distance of a structure or object from the reservoir, or from a water course, is mentioned in these regulations, it is intended to mean the shortest horizontal distance from the nearest water line of said reservoir or water course.

**D. High water line.** Whenever the term "high water line" is used in these rules and regulations, it shall be taken and construed to mean elevation, in feet above sea level, of six hundred ninety (690) for margin of said Spavinaw Reservoir, and seven hundred eighty (780) feet for margin of said Lake Eucha, according to the United States government plat thereof.

**E. Refuse matters not to be discharged in Spavinaw Reservoir.**

**1.** No human excrement shall be deposited or discharged into the Spavinaw Reservoir or into any watercourse, as hereinbefore defined in Paragraph B; and no cesspool, privy or other receptacle for the deposit of human excrement shall be located, constructed or maintained within said Spavinaw Water District, unless such cesspool, privy or other receptacle be so constructed that no portion of its contents can escape or be washed into such waters, and shall not be located closer than six hundred sixty (660) feet to water's edge.

**2.** No human excrement, or compost containing human excrement or contents of any privy, cesspool, sewer or other receptacle for the reception or storage of human excrement shall be deposited or discharged within said Spavinaw Water District or

upon or into the ground at a place from which any such excrement, compost or contents or particles thereof, may flow or be washed or carried into the Spavinaw Reservoir, or into any water course as hereinabove defined in Paragraph B.

**3.** No house slops, sink waste, water which has been used for washing or cooking or other polluted water shall be discharged into the said Spavinaw Reservoir, or into any water course within said Spavinaw Water District; and no house slops, sink waste, water which has been used for washing or cooking or other polluted water shall be discharged into or upon any ground in said Spavinaw Water District within six hundred sixty (660) feet of the high water line of said Spavinaw Reservoir, or of any water course as hereinabove described in Paragraph B.

**4.** No garbage, manure or putrescible matter whatsoever shall be put into the said Spavinaw Reservoir, or into any water course as hereinabove described in Paragraph B; and no garbage, manure or putrescible matter whatsoever shall be put upon the ground in said Spavinaw Water District within six hundred sixty (660) feet of the high water line of said Spavinaw Reservoir or of the high water line of any watercourse, as herein above defined in Paragraph B; or within any such greater distance as may from time to time be established either by the State Health Department or by the City of Tulsa.

**5.** No stable, pigsty, henhouse, barnyard, hog yard, hitching or standing place for horses, cattle or other animals, or other place where animal manure is deposited or accumulated, shall be located, constructed or maintained in said Spavinaw Water District, any part of which is within six hundred sixty (660) feet of the high water line of any water course, as hereinabove defined in Paragraph B.

**6.** No refuse, industrial wastes or other waste products or polluting liquids or other substance of a nature poisonous or injurious either to human beings or animals, or of such nature as would impart an objectionable taste or odor to any water into which it might be discharged, and no putrescible matter whatsoever shall be discharged directly into or at any place from which it may flow or be washed or carried into such Spavinaw Reservoir or into any water course, as hereinabove defined in Paragraph B.

**F. Approval State Department of Health; when.** No system of sewers or other works for the collection, conveyance, disposal or purification of domestic or manufacturing sewage, wastes or drainage, or any other putrescible matters whatsoever shall, except in accordance with plans first approved in writing by the State Department of Health, be constructed or maintained at any place within the Spavinaw Water District so called. No private or separate sewer shall be constructed or maintained in said Spavinaw Water District having an outlet upon or in the ground within six hundred sixty (660) feet of the high water line of such Spavinaw Reservoir or of the high water line of any water course, as hereinabove defined in Paragraph B.

**G. Hospitals prohibited unless approved by the State Board of Health.** No public or private hospital, or other place intended for the reception or treatment of persons afflicted with a contagious or infectious disease, shall, until the location and construction thereof have been approved in writing by the State Board of Health, be located or constructed at any place within the Spavinaw Water District. No public or private hospital, or other place intended for the reception or treatment of persons afflicted with a contagious or infectious disease, shall be maintained at any place within such water

district unless all the provisions required by the State Board of Health for the purification or disposal of sewage, drainage or other polluting or organic matter which may be discharged therefrom, are fully complied with.

**H. Permits required.** No person shall bathe in and no person shall, unless permitted by a special regulation or by written permit of the Mayor of the City of Tulsa, fish in or send, drive or put any animal into said Spavinaw lake or reservoir, or bathe or fish in, or send, drive or put any animal into any water course as hereinabove defined in Paragraph B. No person other than a member of said Water Department of the City of Tulsa, its officers, agents or employees, or public officer, whose duties may so require, shall, unless so permitted by regulations or permit of said Mayor enter or go in any boat, motor boat, skiff, raft or other contrivance, on or upon water of said Spavinaw Reservoir, or on or upon the water of any water course as hereinabove defined in Paragraph B.

**I. No buildings permitted.** No human habitation, cottage, tent, camp site or residence of any kind, either temporary or permanent, shall be hereafter built, set up or constructed upon any lands within six hundred sixty (660) feet of the high water line of the Spavinaw Reservoir or of any water course in said Spavinaw Water District, except upon such or any part of such lands the natural drainage of which is not into such reservoir or water courses; provided, however, that the City of Tulsa may construct and maintain such structure within such prohibited territory as may be necessary in the furtherance of the protection of such reservoir from contamination and pollution.

**J. Reports of contagious or infectious diseases.** All reports which may be made to any board of health, or to any health officer of any town or county, of cases of contagious or infectious diseases occurring within the water shed of said Spavinaw Water District, shall be open to the inspection of the Mayor of the City of Tulsa, his officers or agents, at all reasonable times.

**K. Physicians to give notice.** It shall be the duty of all physicians practicing their profession in said Spavinaw Water District to give notice immediately to the Mayor of the City of Tulsa, Oklahoma and to the Commissioner of Health of the State of Oklahoma of any case of contagious or infectious disease in said Spavinaw Water District coming to the knowledge of such physician, or known or suspected by such physician to exist within such Spavinaw Water District; such notices shall be upon such forms as the Mayor shall provide, and said physician shall be entitled to receive for such services a reasonable compensation to be fixed by resolution by the Mayor.

**L.** That from and after this date, no more burials or interments shall be made in the Spavinaw cemetery or at any other place within such Spavinaw Water District.

(Note: Promulgated by the Commissioner of Health of Oklahoma, Apr. 2, 1924)

Therefore, these Rules and Regulations are hereby adopted and made a part of this chapter.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013; Ord. No. 24254, §§ 1—3, 10-30-19)*

### Section 402. Spavinaw Dam and Lake.

The dam across Spavinaw Creek in Section 15, Township 22 North, Range 21 East in Mayes County is hereby designated and shall be known as "Spavinaw Dam." The waters impounded thereby are hereby designated and shall be known as "Lake Spavinaw."

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

## Section 403. Eucha Dam and Lake.

The dam across Spavinaw Creek in Sections 22 and 23, Township 22 North, Range 22 East in Delaware County is hereby designated and shall be known as "Eucha Dam." The water impounded thereby are hereby designated and shall be known as "Lake Eucha."

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

## Section 404. Spavinaw Reservoir Area.

The lands upon which Lake Spavinaw, Spavinaw Dam, Lake Eucha and Eucha Dam and the adjacent grounds owned or controlled by the City of Tulsa, Oklahoma, all of which are more particularly described as:

The NW¼ NW¼ NE¼, S½ NW¼ NE¼, S½ SW¼, NW¼ SW¼, S½ NE¼ SW¼ NW¼ NE¼ SW¼, in Section 30 and N½ N½ NW¼, E½ SE¼ NW¼, SE¼ NE¼ NW¼ in Section 31, all in Township 22 North, Range 24 East, Delaware County, Oklahoma.

AND

The S½ SW¼ SW¼ in Section 24 and W½ NW¼, W½ SE¼ NW¼ SW¼ SE¼ in Section 25 and N½ N½ NE¼, N½ NW¼ in Section 36 and all of Section 26 except N½ NW¼ SE¼ and N½ NW¼, N½ NE¼, N½ SW¼ NW¼ N½ N½ SE¼ NW¼ in Section 35 and S½ SE¼, S½ N½ SE¼, S½ S½ SW¼ in Section 27 and NW¼, NE¼ except SE¼ SE¼ NE¼; N½ NW¼ SE¼, NW¼ NE¼ SE¼, SW¼, in Section 34 and SW¼, SE¼ NE¼ except W 660 feet of N 990 feet, NE¼ NW¼ except N 900 feet S½ NW¼, S½ NW¼ NW¼ in Section 33 and S½ NW¼, NW¼ N½ SW¼ in Section 28 and all of Section 32 and SW¼, S½ SE¼, NE¼ SE¼, S½ NW¼ SE¼, E 165 feet of N 495 feet of NE¼ NW¼ SE¼, E 165 feet of North 330 feet of NE¼ NW¼ SE¼, S 165 feet NE¼ NW¼ SE¼ W½ NW¼ less E½ E½ SE¼ SW¼ NW¼ and less 2 acres in SE corner NW¼ NW¼, S½ SE¼ NE¼ in Section 29 and S½ SE¼ SW¼, W½ SW¼ SW¼, S½ NW¼ SW¼, NE¼, SW¼, SE¼ NW¼ in Section 20 and S½, SW¼ NW¼, SW¼, N½ SW¼ SE¼, SW¼ SW¼ SE¼, E 990 feet of SE¼ SE¼, S½ SE¼ NE¼ SE¼ in Section 19 and NW¼, SW¼ except SW¼ SE¼ SW¼, SE¼ NE¼ except the N 330 feet of E 990 feet of W 1650 feet in Section 30 and W½ NW¼ except NE¼ NW¼ NW¼, S½ NE¼ NW¼, NE¼ NE¼ NW¼, S½ NW¼ NE¼, NW¼ NW¼ NE¼, N½ NE¼ NE¼, E 990 feet of S½ NE¼ NE¼, SW¼ NW¼ SW¼ in Section 31, all in Township 22 North, Range 23 East, Delaware County, Oklahoma.

AND

The NW¼ NW¼, N½ NE¼ NW¼, NW¼ NW¼, NW¼ SE¼ NW¼ SE¼ SE¼ NW¼, SW¼ SE¼ NW¼ except SW¼ SW¼ SE¼ NW¼, W½ SW¼ W½ NE¼ SW¼, NW¼ SW¼ SE¼ in Section 3, NE¼ Section 5, all of Section 4, all in Township 21 North, Range 23 East, Delaware County, Oklahoma.

AND

The SW¼, SE¼, SW¼ NW¼, E½ NW¼, SW¼ NE¼, SW¼ SE¼ NE¼ in Section 24 and NW¼, NE¼, NW¼ SW¼, W½ NE¼ SW¼, NE¼ NE¼ SW¼, N½ SE¼, SE¼ SE¼, E½ SW¼ SE¼ in Section 25 and W½ NW¼ NW¼, NW¼ SW¼ NW¼ in Section 36 and N½ NW¼ NE¼, N½ S½ NW¼ NE¼, NE¼ NE¼, NE¼ SE¼ NE¼, NE diagonal 5 acres NW¼ SE¼ NE¼, in Section 35 and SE¼, NE¼ SW¼, NE diagonal 20 acres of SE¼ SW¼, NE¼ except NW¼ SW¼ NE¼, N½ NE¼ NW¼, SE¼ NE¼ NW¼ in Section 26 and SW¼ except SW diagonal 5 acres, SE¼, NW¼, W½ SW¼ NE¼, SE¼

SW¼ NE¼, SE¼ SE¼ NE¼, SW¼ NW¼ NE¼ in Section 23 and N½ NE¼ SE¼, SE¼ NE¼ SE¼, NE diagonal 5 acres of SW¼ NE¼ SE¼, NE diagonal 5 acres of NE¼ SE¼ SE¼, SE¼ NE¼, all that part of the NE¼ NE¼ described as follows: Beginning at the Southeast corner of said Northeast Quarter (NE¼) of the Northeast Quarter (NE¼), thence in a Westerly direction along the South boundary of said NE¼ of the NE¼ a distance of 870 feet; thence in a Northwesterly direction a distance of 1,058.3 feet to a point 1,055.2 feet North and 950 feet West of said Southeast corner; thence on a curve to the right with a radius of 409.3 feet a distance of 121.9 feet to a point 1,086.1 feet North and 832.5 feet West of said Southeast corner; thence in a Northeasterly direction a distance of 559.9 feet to a point 1,146.5 feet North and 275.8 feet West of such Southeast corner; thence on a curve to the left with a radius of 309.3 feet a distance of 315.8 feet to a point in the North boundary of said NE¼ of the NE¼ 29.6 feet West of the Northeast corner thereof; thence in an Easterly direction along such North boundary a distance of 29.6 feet to said Northeast corner; thence in a Southerly direction along the East boundary of said NE¼ of the NE¼ to the point of beginning, containing 23.6 acres, more or less in Section 22, all in Township 22 North, Range 22 East, Delaware County, Oklahoma.

AND

S½ S½, S½ NW¼ SE¼, S½ N½ SW¼ in Section 5 and SE¼ NE¼ SE¼, S½ SE¼ less NW 10 acres N½ SW¼ SE¼, South 630 feet SE¼ SW¼ in Section 6 and N½, N½ SW¼, SW¼ SW¼, S½ SE¼ SW¼, NW¼ SE¼ SW¼, NW¼ SE¼, N½ N½ NE¼ SE¼ Section 7 and N½ NE¼, N½ S½ NE¼, N½ NW¼, SW¼ NW¼, N½ SE¼ NW¼, NW¼ S½ SE¼ NW¼, NW¼ NW¼ SW¼ Section 8 and W½ SE¼, NE¼, E½ NW¼ SW¼, S½ SE¼ NW¼ NW¼ SE¼ NW¼, SW¼ NE¼ SE¼ NW¼, E½ SW¼ NW¼ NE¼ S½ SW¼ SW¼ NW¼, N½ SW¼ SW¼ NW¼, S½ NW¼ NW¼, NW¼ NW¼ NW¼, SW½ NE¼ NW¼ NW¼, SW½ SW¼ NE¼ NW¼ Section 9 and NE¼ NE¼ Section 16, and SW¼ NW¼, W½ NW¼ NW¼, SE¼ NW¼ NW¼ Section 19 all in Township 22 North, Range 22 East, Delaware County, Oklahoma.

AND

S½ SE¼, E½ SW¼ SW¼, SW¼ SW¼ SW¼ SW¼ Section 11 and E½, SW¼, SE¼ NW¼, SW¼ NE¼ NW¼, S½ SW¼ NW¼ Section 12 and NE¼, NW¼, SE¼, N½ SW¼, E½ SE¼ SW¼, NW¼ SE¼ SW¼, NE½ SW¼ SE¼ SW¼, NE½ NE¼ SW¼ SW¼ Section 13 and N½, N½ S½, SE¼ SE¼, E½ SW¼ SE¼, NW¼ SW¼ SE¼, SW¼ SW¼, W½ SE¼ SW¼, NE¼ SE¼ SW¼, N½ SE¼ SE¼ SW¼ Section 14 and E½ SE¼, NW¼ SE¼, N½ SW¼ SE¼, beginning at NE corner of the S½ SW¼ SE¼ thence E 1320 feet thence S 260 feet thence NW to point of beginning, NE¼ NE¼ SW¼, S½ SW¼ NE¼, E½ SE¼ NE¼, SW¼ SE¼ NE¼, SE½ NW¼ SE¼ NE¼ Section 15 and E½ W½ NE¼, E½ NW¼ SE¼, NE¼ NE¼, W½ SE¼ NE¼, NW½ S 920 feet E½ SE¼ NE¼, N 400 feet NE¼ SE¼ NE¼ Section 22 and S½ SE¼ NE¼ Section 23 and E½ NE¼, NW¼ NE¼ Section 24 all in Township 22 North, Range 21 East, Mayes County, Oklahoma; in Mayes and Delaware Counties, State of Oklahoma, are hereby designated and may be collectively referred to as the Spavinaw Reservoir Area.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

### Section 405. Authority and responsibility for reservoir area.

The operation, management, supervision and control of the Spavinaw Reservoir Area shall be the authority and responsibility of the Mayor, the Tulsa Utility Board and the duly

appointed employees and agents of the City of Tulsa acting by, through and under them. Whenever, in this chapter, reference is made to "the Mayor," such term shall mean the Mayor of the City of Tulsa or his duly authorized subordinates.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013; Ord. No. 24254, § 4, 10-30-19)*

**Section 406. Prohibited acts.**

No person, except officers, employees, agents, contractors and their employees, concessionaires or franchisees of the City of Tulsa in the performance of their duties, shall enter upon any part of the Spavinaw Reservoir Area, except as may be expressly authorized by the provisions of this chapter.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

**Section 407. Activities permitted.**

Fishing, boating, hiking, camping, underwater diving and the patronizing of authorized concessions shall be permitted in the Spavinaw Reservoir Area in accordance with the provisions of this chapter. It shall be unlawful and an offense for any person to enter the reservoir area for such purposes without complying with the provisions of this chapter, or for any purpose not herein expressly authorized.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

**Section 408. Restricted areas.**

**A.** The Mayor shall, for the purpose of public health or safety, the security of the City's dams and other works, the propagation of fish, the privacy of the City's employees required to reside in residences furnished them, the efficient management of the City's reservoirs, and other lawful purposes, have the authority to designate, within the reservoir area, restricted areas. When an area has been so designated and signs erected bearing the words "No Trespassing," "Keep Out," "Restricted Area - Do Not Enter" or words of like import, it shall be unlawful and an offense for any person, except duly authorized officials, employees or agents of the City, to enter such restricted area for any purpose.

**B.** The operation of off-road vehicles, including, but not limited to motorcycles, minibikes, trail bikes, dune buggies, all-terrain vehicles, and other motor vehicles designed for or capable of cross-country travel on natural terrain, when operated off the roadways of area, is prohibited at locations and at times designated by the Mayor and marked by the posting of appropriate signs.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013; Ord. No. 24254, § 5, 10-30-19)*

**Section 409. Fishing.**

**A.** Fishing shall be permitted in the reservoir area, except in restricted areas, in accordance with the laws of the State of Oklahoma and upon obtaining a City of Tulsa fishing permit and paying a fee therefore as follows:

| Per Day | Per Year |
|---|---|
| $1.00 | $10.00 |
| Purchased after June 30 - $5.00 | |

All permits shall be issued for the current calendar year and shall expire on December 31st of the year issued.

**B.** No person over the age of fifteen (15) years shall fish in the reservoir area without first obtaining and having in his possession the required permit; provided, however, that double permit fees shall be charged and collected for failure to obtain a permit in advance of the use of the facilities.

**C.** All persons fishing in the waters of the Spavinaw Reservoir Area shall at all times comply with other laws of the State of Oklahoma and the Rules and Regulations of the Oklahoma Wildlife Conservation Commission. Netting of any kind, with the exception of landing nets, shall be prohibited in the Spavinaw Reservoir Area except by duly authorized City of Tulsa employees.

*(Ord. No. 16160; Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013; Ord. No. 24254, § 6, 10-30-19)*

## Section 410. Boats.

**A.** Boats may be placed on the waters of the reservoir area; and the operation of boats shall be permitted in accordance with the provisions of this chapter and upon the payment of a fee for each boat, whether a motorboat, rowboat or other craft, of:

One Dollar ($1.00) per day, (any 24-hour period), or

Ten Dollars ($10.00) per year.

**B.** No person shall place any boat upon the Spavinaw Reservoir Area without first obtaining a permit therefore and paying the fee required by this section; provided, however, that double permit fees shall be charged and collected for failure to obtain a permit in advance of the use of the facilities.

*(Ord. Nos. 15754, 16160; Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013; Ord. No. 24254, § 7, 10-30-19)*

## Section 411. Waiver of fees.

**A.** Retired and current City of Tulsa personnel and their immediate family members, upon exhibiting a certificate from the personnel office of the City of Tulsa or City ID, shall be permitted to fish and operate his/her private boat in the reservoir area without paying the permit fees required by this chapter. Persons exhibiting such certificates to the Water Supply Section Permit Office personnel (Spavinaw Lake or Lake Eucha) shall be issued fishing and boating permits for each trip, and such permits shall be marked "City Employees" and shall be deducted from the total value of permit books.

**B.** Persons 65 years and older, and disabled veterans of the Armed Forces of the United States, certified by the Veterans Administration to be at least sixty percent (60%) disabled, and active members of the Armed Forces of the United States, upon exhibiting a disability certification or an armed forces military identification card indicating current active service, will be permitted to fish and operate their boats without paying the permit fee as required by this chapter.

*(Ord. No. 16160; Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013; Ord. No. 24254, § 8, 10-30-19)*

## Section 412. Boating rules.

In addition to any rules of the road or other regulations provided by the laws of the State of Oklahoma, the following rules shall apply to all boats operated upon the waters of the Spavinaw Reservoir Area:

**A.** No boat, except as herein otherwise expressly provided, shall be permitted upon the waters of the reservoir area unless it is not less than twelve (12) feet in length, fifteen (15) inches in depth and with a beam of forty-four (44) inches, having flotation compartments, and is, in the opinion of the Mayor, seaworthy.

**B.** No boat shall be powered by an outboard motor of greater horsepower than is recommended by the manufacturer of the boat; if the manufacturer's specification in such regard is not set forth on a boat, the Director shall assign a maximum horsepower rating for such boat;

**C.** All boats shall be equipped with all the safety equipment required by the laws of the State of Oklahoma;

**D.** No boat or craft equipped with a toilet with overboard discharge shall be permitted;

**E.** No person under sixteen (16) years of age shall operate any boat except under the direct supervision of a qualified operator over the age of sixteen (16) years;

**F.** No person who is under the influence of any intoxicating beverage or drug shall operate any boat;

**G.** No person shall operate any boat in a reckless or careless manner;

**H.** No person shall be towed behind any boat on water skis, aquaplane, surfboard or other similar device;

**I.** No sailboat or jet ski shall be permitted;

**J.** Kayaks, canoes and punts may be permitted by the Mayor in the shallow areas of the lakes, provided that they are in his opinion seaworthy, and the persons operating such boats are skilled in the operation thereof;

**K.** Rowboats shall have the right of way at all times, and motor propelled boats shall keep a safe distance from them; motorboats, while cruising, shall stay not less than three hundred (300) feet from any bank or anchored fisherman; in all hollows of the lakes, travel by motor-propelled boats shall be as near to the middle of the hollow as practicable and at a speed not to exceed five (5) miles per hour;

**L.** No motor-propelled boats shall travel at a speed greater than eighteen (18) miles per hour within a distance of one thousand (1,000) feet from any shore line; in all cases the lighter and slower craft shall have the right of way, and speedboats shall be operated at the owner's risk; and

**M.** Special caution shall be used while trolling with a motor-propelled boat in any hollow or cove or around points to show proper consideration to the rights of anchored fishermen, bank fishermen or boat fishermen fishing toward the bank.

**N.** No boat shall be permitted upon the waters of the reservoir area that has evidence of zebra or quagga mussels present.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013; Ord. No. 24254, § 9, 10-30-19)*

## Section 413. Boat storage.

**A.** The City of Tulsa may provide for storage of private boats and other water craft, and shall charge the following fees:

**1.** Open dockage, per month ..... $35.00

**2.** Boathouse stall rental without electric boat lift, per month ..... $40.00

**3.** Boathouse stall rental with electric boat lift, per month..... $45.00

**B.** Only privately owned boathouses, which are physically in existence and located on the Spavinaw Reservoir Area, pursuant to a valid permit, held by the original permitees or their assigns, as of July 5, 1983, are authorized to be located thereon. The owner of each such privately owned boathouse shall pay to the City of Tulsa, as rental, a fee of Twenty-Four Dollars ($24.00) per year, per stall, which shall be due on or before January 1 of each year. An annual boathouse permit shall be issued by the City upon payment of such fee. No privately owned boathouse shall be placed or erected upon such waters after July 5, 1983, except as provided in subparagraph C. of this section.

**C.** In addition to those existing privately owned boathouses identified in subparagraph B. of this section, owners or assigns of an existing valid boathouse permit, who do not presently have an existing boathouse, may, construct a boathouse on the Spavinaw Reservoir Area that meets the applicable written standards established by the City of Tulsa, on or before, but no later than June 1, 2020. If owners or assigns of an existing boathouse permit, who do not have an existing boathouse, fail to construct a boathouse on the Spavinaw Reservoir Area that meets the applicable written standards established by the City of Tulsa, by June 1, 2020, that permit will lapse, will be revoked, will not be renewed, and cannot be transferred. No other privately owned boathouses shall be constructed on the Spavinaw Reservoir Area.

**D.** All privately owned docks and boathouses shall be maintained in good condition in accordance with the written standards established by the City. The Director is authorized and empowered to make, adopt and amend written rules, regulations and standards to carry out the purposes of this section, subject to the approval of the Mayor. Any dock or boathouse which becomes dilapidated or fails to meet the written standards established by the City, or for which the annual fee for boathouses has not been paid, may, upon sixty (60) days' written notice to the owner by registered mail, be removed from the lake area by the City and the costs thereof shall be assessed against the owner after sixty (60) days from the date a Notice to Cure is sent to the owner by registered mail. Further, such permit will lapse, will be revoked, will not be renewed and cannot be transferred.

**E.** All privately owned boathouse permits are revocable licenses not existing in perpetuity, irrespective of whether such license or permit existed as of July 1983. The City of Tulsa maintains the right, by action of the TMUA, upon sixty (60) days written notice to all persons subject to this section, to revoke Title 11 C TRO Section 413 in its entirety, and thus, revoke the permit program and all privately owned boathouse permits. Should the City of Tulsa revoke this section, all privately owned boathouses shall be immediately and permanently removed from the Spavinaw Reservoir Area, at each owner's expense.

**F.** No privately owned boathouse, except those permitted as of July 5, 1983, shall be kept, offered for rent or rented.

*(Ord. No. 15754; Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013; Ord. No. 23906, § 1, 4-11-2018)*

## Section 414. Hunting.

Hunting, in accordance with all State of Oklahoma hunting regulations, may be permitted in the Spavinaw Reservoir Area, except in restricted areas, parks, campgrounds, picnic areas, developed areas and other public use areas.

*(Ord. No. 16160; Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013; Ord. No. 24254, § 10, 10-30-19)*

## Section 415. Swimming and diving.

**A.** No person shall swim, bathe, wade or dive in the waters of the reservoir area, except as permitted by the express terms of this section.

**B.** Underwater diving in Lakes Spavinaw and Eucha shall be permitted for the recovery of lost property.

**C.** The Mayor may make such rules and regulations as may be required to insure safety of persons and property in connection with such diving, and may issue diving permits subject to such rules and regulations.

**D.** All persons requesting permission to dive in such lakes shall first satisfy the Mayor of their skill and qualifications and show proof of SCUBA certification.

**E.** All persons requesting permission to dive in such lakes shall first execute a full and unconditional release of all liability for injury and damages. Such release shall run to the City of Tulsa, its agents and employees.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013; Ord. No. 24254, § 11, 10-30-19)*

## Section 416. Camping.

**A.** No person shall camp or place a tent, trailer or other form of mobile residence within the Spavinaw Reservoir Area, except in a camping area designated by the City of Tulsa.

**B.** The rental fee for each tent, trailer, campsite or shelter house utilizing electricity furnished by the City of Tulsa shall be as follows:

**Developed Campground**

Full day rental (any twenty-four-hour period)..... $18.00

**Undeveloped Campground**

Full day rental (any twenty-four-hour period)..... $6.00

**C.** Camping equipment or other property left unattended at a camp site for purpose of holding the site for future occupancy is prohibited and such equipment or other property may be removed and impounded by authorized agents of the Mayor.

**Shelter Houses**

Full day rental (any twelve-hour period)..... $25.00

**D.** Senior Citizens, sixty-five (65) years or older, shall be charged two-thirds (⅔) the rate of the established "site" rental fee and shall be present during the stay.

**E.** Totally disabled veterans shall be charged two-thirds (⅔) the rate of the established "site" rental fee and shall be present during the stay.

**F.** The maximum length of stay within any designated camping area in the Spavinaw Reservoir Area (Spavinaw Water District) shall be fourteen (14) consecutive days, provided the campgrounds are near full.

**G.** The developed campground at Lake Eucha will open April 15 of each season and close November 1 of each season.

**H.** All pets shall be restrained in any of the designated camping, park or picnic areas within the Spavinaw Water District. Persons with pets shall be responsible for proper removal and disposal of any waste produced by animals.

*(Ord. No. 16586; Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013; Ord. No. 24254, § 12, 10-30-19)*

**Section 417. Hiking and inspections.**

**A.** The grounds of the Spavinaw Reservoir Area shall be available to all persons for the purpose of hiking and inspecting the lakes, dams and other works of the reservoir area, provided that no person shall enter upon or remain in any restricted area without the express permission of the officer, agent or employee of the City of Tulsa in charge of such area.

**B.** No officer, agent or employee of the City of Tulsa shall permit any person to enter any restricted area in the Spavinaw Reservoir Area, except in accordance with the express provisions of the regulations promulgated by the Mayor with respect to such area.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

**Section 418. Contamination of reservoir area.**

No person shall place, throw or otherwise discharge any human excrement, animal excrement, trash, waste or garbage into the waters of or upon the grounds of the Spavinaw Reservoir Area, except in such places or containers as may be expressly provided and designated for such purposes by the City of Tulsa or any duly authorized franchisee or concessionaire.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

**Section 419. Regulations.**

The Mayor is authorized to promulgate such additional regulations not inconsistent with this chapter for the purpose of carrying the provisions herein into force and effect. When such regulations have been so promulgated and approved by the Tulsa Utility Board and the City Council, they shall have the same force and effect as the provisions of this chapter.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

**Section 420. Penalty.**

Any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine not to exceed Three Hundred Dollars ($300.00), excluding costs.

*(Ord. No. 15754; Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

**Section 421. Arrest.**

Any police officer of the City of Tulsa is authorized to arrest any person committing any act hereby prohibited in his presence, and to transport him to the Municipal Criminal Court of

the City of Tulsa or any other court of proper jurisdiction, where such person shall be informed against, arraigned, tried, and, if found guilty, punished as by law in such cases made and provided.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

**Section 422. Arrest by warrant.**

Any person duly informed against for the commission of any act prohibited by this chapter may be arrested by any police officer of the City of Tulsa, Oklahoma, upon a warrant issued by a judge of the Municipal Criminal Court of the City of Tulsa, or other judge duly authorized to issue such warrant, whereupon he shall be transported to the Municipal Criminal Court of the City of Tulsa or any other court of proper jurisdiction, where such person shall be informed against, arraigned, tried, and, if found guilty, punished as by law in such cases made and provided.

*(Ord. No. 22850, § 1, 3-28-2013, eff. 4-1-2013)*

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## CHAPTER 5. REQUIREMENTS FOR USE OF SANITARY SEWERAGE SYSTEM

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Section 520. Reconstruction of public sanitary sewers.

### Section 500. Scope.

This chapter shall include all general requirements, prohibitions and regulations with respect to the connection, use, protection and maintenance of all sewers forming a part of the sanitary sewerage system of the City of Tulsa and limiting the discharge of all wastes into the sanitary sewer system which could or would cause damage or obstruction of the sewage collection system, damage or interfere with the operation of the sewage treatment plants or be detrimental to the quality of the effluent or sludge, or cause unreasonable maintenance, attention and expense to either the collection system or the treatment facilities, and shall provide penalties for violations.

### Section 501. Definitions.

For the purposes of this chapter, the following terms, phrases, words and their derivations shall have the meaning given herein.

**A. B.O.D. (biochemical oxygen demand)** shall mean the quantity of oxygen expressed in milligrams per liter, utilized in the biochemical oxidation of organic matter under standard laboratory conditions for five (5) days at a temperature of twenty degrees (20°) centigrade. The laboratory determinations of B.O.D. shall be made in accordance with procedures set forth in Standard Methods.

**B. Building drain** shall mean that part of the lowest horizontal piping of a drainage system which receives the discharge from soil, waste and other drainage pipes of the building and conveys such discharge to the building sewer, beginning five (5) feet outside the inner face of the building wall.

**C. Building sewer, house sewer or house sewer line** shall mean the extension from the building drain to the sanitary sewer or other place of disposal.

**D. City** shall mean the City of Tulsa, Oklahoma, a municipal corporation, acting through the Tulsa Utility Board and the City's duly authorized officers or agents.

**E. Director** shall mean the Director of Public Works, or the person succeeding to his duties and functions by whatever name known, or his duly authorized deputy, agent or representative.

**F. Domestic sewage** shall mean water-carried wastes normally discharging into the sanitary sewers of dwellings (including apartment houses and hotels), office buildings, factories and institutions, free from storm surface water and industrial wastes.

**G. Garbage** shall mean solid wastes and residue from the preparation, cooking and dispensing of food, and from the handling, storage and sale of food products and produce.

**H. Industrial user or industry** shall mean:

**1.** Any user of a publicly owned treatment works which discharges more than the equivalent of twenty-five thousand (25,000) gallons per day (gpd) of sanitary wastes and which is identified in the latest edition of Standard Industrial Classification Manual, Office of Management and Budget, as amended and supplemented, under one of the following divisions:

| | |
|---|---|
| Division A. | Agriculture, Forestry and Fishing, |
| Division B. | Mining, |
| Division D. | Manufacturing, |
| Division E. | Transportation, Communications, Electric, Gas and Sanitary Services, or |
| Division I. | Services; |

provided, however, that a user in the divisions listed shall be excluded if it is determined by the Tulsa Utility Board that it will introduce only segregated domestic wastes or wastes from sanitary conveniences;

**2.** Any user of a publicly owned treatment works which discharges wastewater to the treatment works which contains toxic pollutants or poisonous solids, liquids or gases in sufficient quantity, either singly or by interaction with other wastes, to contaminate the sludge of any municipal systems, or to interfere with any sewage treatment process, or which constitutes a hazard to humans or animals, creates a public nuisance, or creates any hazard in or has an adverse effect on the waters receiving any discharge from the treatment works; and

**3.** Any user for which Federal Categorical Standards apply.

**I. Industrial waste** shall mean all water-carried solids, liquids and gaseous wastes resulting from any industrial, manufacturing or food processing operation or process, or from the development of any natural resource, or any mixture of these with water or domestic sewage and which is distinct from normal domestic sewage.

**J. Milligrams per liter (mg/l)** shall mean a weight to volume ratio; the milligrams per liter value multiplied by the factor 8.34 shall be equivalent to pounds per million gallons of water.

**K. Normal domestic sewage** shall mean sewage of the City of Tulsa in which the average concentration of suspended materials and five-day B.O.D. is established at two hundred fifty milligrams per liter (250 mg/l).

**L. Person, establishment or owner** shall mean any individual, firm, company, association, society, corporation, partnership or group, their agents, servants or employees.

**M. pH** shall mean the logarithm (Base 10) of the reciprocal of the hydrogen ion concentration expressed in moles per liter. It shall be determined by one (1) of the procedures outlined in Standard Methods.

**N. Premise** shall mean any plot or tract of ground, regardless of size or plat, under individual ownership and/or individual use and occupancy where the water service is metered independently of any other use.

**O. Properly shredded garbage** shall mean the wastes from the preparation, cooking and dispensing of foods, exclusive of egg shells, bones and like objects, that have been shredded to such degree that all particles will be carried freely under the flow conditions normally prevailing in public Sanitary sewers, with no particles greater than one-half (½) inch in any dimension.

**P. Public sanitary sewer** shall mean:

**1.** All sanitary sewers, of whatever size or extent, for which the City of Tulsa is responsible for operation, repair and maintenance;

**2.** Any sanitary sewer, of whatever size or extent, the construction cost of which has been paid from public funds in accordance with the City Charter or Title 11, Oklahoma Statutes;

**3.** An Assessment District Sewer, which is any sanitary sewer constructed within a legally constituted district as provided in the City Charter or Title 11, Oklahoma Statutes;

**4.** A Nonassessment District Sewer, which is any sanitary sewer constructed within a legally constituted district as provided by special ordinance wherein the property owners petition to construct same by cash as provided in the City Charter or Title 11, Oklahoma Statutes; and

**5.** An Outside Sewer District, which is any system of one (1) or more sanitary sewers other than house sewers constructed outside the corporate limits of the City of Tulsa, and connected to the sewerage system of the City of Tulsa, the physical boundaries of which shall be established and defined by legal description, setting forth the actual tracts of land served thereby, whether platted or unplatted; upon annexation to the City of Tulsa, such tracts of land as described shall be exempt from subsequent assessment for sanitary sewer construction, except as may be provided by the City Charter or the Oklahoma Statutes.

**Q. Sanitary sewer** shall mean a sewer that conveys sewage or wastewater, and into which storm, surface and ground waters or unpolluted industrial wastes are not intentionally admitted.

**R. Sewer service charge** shall mean the charge made on all users of the sanitary sewer system whose wastes do not exceed in strength the concentration values established in this chapter.

**S.** **Sewer system** shall mean all facilities for collecting, pumping, treating and disposing of wastewaters and shall include wastewater treatment facilities.

**T.** **Slug** shall mean any discharge of water, sewage or industrial waste, other than toxic materials, which, in concentration of any given constituent or in quantity or flow, exceeds for any period of duration longer than fifteen (15) minutes more than five (5) times the average twenty-four (24) hour concentration or flows during normal operation.

**U.** **Standard Methods** shall mean the examination and analytical procedures set forth in the latest edition at the time of analysis of Standard Methods for the Examination of Water and Wastewater as prepared, approved and published jointly by the American Water Works Association, the American Public Health Association and the Water Pollution Control Federation.

**V.** **Storm water runoff** shall mean that portion of the rainfall that is drained into the storm sewers.

**W.** **Surcharge** shall mean the charge in addition to the sewer service charge which is made on those persons whose wastes are greater in strength than the concentration values established as representative of normal discharges.

**X.** **Suspended solids** shall mean solids that either float on the surface of, or are in suspension in water, sewage or other liquids, and which are removable by a laboratory filtration device. Quantitative determination of suspended solids shall be made in accordance with procedures set forth in Standard Methods.

**Y.** **Wastewater or sewage** shall mean a combination of the water-carried waste from residences, business establishments, institutions and industrial establishments, together with such ground, surface and storm water as may be present.

**Z.** **Wastewater plant** shall mean any City-owned facility, device and structure used for receiving and treating wastewater from the City sanitary sewer system.

**AA.** **Act** or **the Act** shall mean the Federal Water Pollution Control Act, also known as the Clean Water Act or 1977, as amended, 33 U.S.C. 1251, *et seq*.

**BB.** **Authorized representative of industrial user** may be:

**1.** A principal executive officer of at least the level of vice-president, if the industrial user is a corporation;

**2.** A general partner or proprietor if the industrial user is a partnership or proprietorship respectively; or

**3.** A duly authorized representative of the individual designated above if such representative is responsible for the overall operation of the facilities from which the indirect discharge originates.

**CC.** **Code of Federal Regulations (CFR)** refers to documents published by the Office of Federal Register, National Archives and Records Service, General Services Administration, codifying general and permanent rules published in the Federal Register by the executive departments and agencies of the Federal Government.

**DD.** **Composite sample** shall mean a sample of wastewater composed of samples collected at equal intervals, not exceeding one (1) hour, throughout the operational day of a user which are representative of the discharge of the facility.

**EE. Federal Categorical Pretreatment or Categorical Standard** shall mean any regulation containing pollutant discharge limits promulgated by the Environmental Protection Agency in accordance with Section 307(b) and (c) of the Act (33 U.S.C. 1317) which applies to specific industrial users.

**FF. Grab samples** shall mean a sample which is taken from a waste stream on a one-time basis with no regard to the flow in the waste stream and without consideration of time.

**GG. Interference** shall mean the inhibition or disruption of the City of Tulsa treatment process or operations which contributes to a violation of any requirement of the City's NPDES Permit. The term includes prevention of sewage sludge use or disposal by the City of Tulsa in accordance with Section 405 of Act, (33 U.S.C. 1345) or any criteria, guidelines or regulations developed pursuant to the Solid Waste Disposal Act (SWDA), the Clean Water Act, the Toxic Substance Control Act or more stringent State of Oklahoma criteria (including those contained in any State of Oklahoma Sludge Management Plan prepared pursuant to Title VI of SWDA) applicable to the method of disposal or use employed by the City.

**HH. Monitoring** shall mean the performance of wastewater flow measurements, wastewater sampling, sample analysis and like procedures necessary to determine wastewater discharge compliance and/or to verify the flow or strength of wastewater.

**II. New source** shall mean any source, the construction of which is commenced after the publication of proposed regulations prescribing a Section 307(c) (33 U.S.C. 1317) Federal Categorical Pretreatment Standard which will be applicable to such source, if such standard is thereafter promulgated within one hundred twenty (120) days of proposal in the Federal Register. Where the standard is promulgated later than one hundred twenty (120) days after proposal, a new source shall mean any source the construction of which is commenced after the date of promulgation of the standard.

**JJ. Operational day** shall mean that period of time during a twenty-four (24) hour period during which the facility is operating and consequently discharging wastewater.

**KK. Pretreatment** shall mean the reduction of the amount of pollutants, the elimination of pollutants or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into the public sanitary sewer. The reduction or alteration can be obtained by physical, chemical or biological processes or process changes or other means, except as prohibited herein.

### Section 502. License and revocation.

**A. License.** No person shall engage in the construction, repair or cleansing of house sewers, or in making house sewer connections to the sanitary sewer system of the City of Tulsa unless such person shall have been licensed by the State Board of Health as a plumbing contractor or journeyman plumber.

**B. License revocation.** Any license required under this section shall be subject to revocation in accordance with the general provisions of the Revised Ordinances of the City of Tulsa for the revocation or suspension of licenses.

### Section 503. Bond and deposit.

Every person engaging in sanitary sewer work of any kind as defined in this chapter shall maintain such bonds and deposits as required by either the Plumbing Code of the City of

Tulsa or the standard specifications of the City of Tulsa for the construction, reconstruction or relocation of public or district sanitary sewers. All sanitary sewer bonds or deposits shall be conditioned to cover all obligations of the principal as incurred in connection with all specific work undertaken under this title, and shall indemnify and save harmless the City of Tulsa from any expense or liability of any kind that may be imposed by law from any act of the principal. Such bonds or deposits shall have prior approval of the Director.

**Section 504. Permit to connect house sewer.**

It shall be unlawful for any person to proceed with any house sewer connected with or to be connected with any public sanitary sewer system, until a permit for such work shall have been obtained from the Director; provided however, that no permit shall be required for the making of minor repairs, unless a portion or a section of the house sewer line is removed or replaced, or a hole is made in any section of the house sewer line.

**Section 505. Use of other name.**

No person shall allow his name or his license to be used by any other person to obtain any permit or certificate of inspection required by this chapter. The penalty for violating this provision shall be the suspension of the person's license.

**Section 506. Inspection required.**

All sanitary sewer work from the building line installed under the Plumbing Code outward to the public sanitary sewer shall be done in accordance with the provisions of this chapter and the standard specifications for house sewers and shall be inspected by the Director and a certificate of inspection issued therefor before such work may be used as a connection to any public sanitary sewer line or to any sanitary sewer line connected with a public sanitary sewer line.

**Section 507. Inspection fees.**

The Director shall charge inspection fees for house sewers based on the following schedule:

**A. Inside corporate limits of City.**

1. **Minimum fee.** A minimum fee of Forty-two Dollars ($42.00) shall apply to any permit for which the fee charged would otherwise be less than Forty-two Dollars ($42.00).
2. **Sewer work.** The inspection fee for any sewer work conducted shall be Thirty-two Dollars ($32.00).
3. **Concealment fee.** Work that is covered or concealed without the approval of the code official is in violation of the code and shall be subject to a civil penalty in an amount not exceeding Fifty-two and 50/100 Dollars ($52.50) for each occurrence. The assessment or payment of this penalty shall not relieve any person from fully complying with all the requirements of this title nor shall such payment exempt the person from further penalty provided by law.
4. **Failed inspections fee.** Failed inspections due to faulty work, work not completed or otherwise not ready for inspection when the code official, Plumbing Inspector or Assistant Plumbing Inspector is notified to make such inspection, shall be assessed

an additional fee or fees at a rate of Thirty-Two Dollars ($32.00) per inspection, unless otherwise provided for in this chapter. All failed inspection fees shall be paid prior to the commencement of any reinspection.

**B. Outside corporate limits of City.**

1. **Sewer work.** The inspection fee for any sewer work conducted shall be Forty-five Dollars ($45.00).
2. **Outside of City inspection fee.** All inspections requiring a Plumbing Inspector to travel outside the corporate limits of the City of Tulsa to perform an inspection shall be subject to an inspection fee equal to one and one-half (1½) times the regular inspection fee (Thirty-two Dollars [$32.00]), Forty-eight Dollars ($48.00).
3. **Failed inspections fee.** Failed inspections due to faulty work, work not completed or otherwise not ready for inspection when the code official, Plumbing Inspector or Assistant Plumbing Inspector is notified to make such inspection, shall be assessed an additional fee or fees at a rate of Thirty-two Dollars ($32.00) per inspection, unless otherwise provided for in this chapter. All failed inspection fees shall be paid prior to the commencement of any reinspection.

**C. Additional fees to be charged.** In addition to the inspection fees, the following fees shall be charged:

1. **Permit and licensing system maintenance fee.** A surcharge of Four Dollars ($4.00) shall be charged for each initial inspection to maintain the Permit and Licensing System.
2. **Record retention fee.** A surcharge of One and 30/100 Dollars ($1.30) per page shall be charged for each initial inspection for retention of permits and associated data by microfilming, computer imaging or other method of storage of records.

**D. Temporary sanitary sewer plug security deposit.** Before the owner of any house or structure shall be issued a temporary, sanitary sewer plug permit, as provided for in Section 519 of this title, the owner shall deposit with the City of Tulsa the sum of Ten Thousand Dollars ($10,000.00) as a security deposit. This security deposit shall be expended by the City to permanently plug the connection, if the sanitary sewer connection is not used or permanently plugged within ninety (90) days from the date a temporary, sanitary sewer plug permit is issued.

*(Ord. Nos. 16868, 18857, 20624)*

### Section 508. Report of work—Approval.

Any person doing any sanitary sewer work must notify the Director as soon as the pipe work has been completed and is ready for inspection, and must keep the trench open and the pipe fully exposed for inspection until the inspection is completed. If such work is approved, a certificate of satisfactory inspection shall be issued to the contractor.

### Section 509. Time of inspection.

It shall be the duty of the Director, in all cases when notified, to inspect all house sewers within forty-eight (48) hours after receipt of notice from the licensed contractor, licensed plumber or person in charge that such work is ready for inspection. Holidays and Sundays shall not be computed in the forty-eight (48) hours.

### Section 510. Altering after inspection.

It is hereby declared to be unlawful for any person to alter or change any sewer pipe or to remove any material after inspection has been made without obtaining a permit from the Director to do so. The Director shall reinspect all work altered or changed and the same fee shall be charged as for the original inspection.

### Section 511. Sanitary sewer—Plumbing connections.

The connection outside of buildings and underground between soil and waste pipes and the concrete or vitrified tile sanitary sewer shall be made with such jointing material as may be approved by the Director. However, these connections shall not be made until the work in the building has been tested and approved by the Plumbing Inspector.

### Section 512. Private repairs.

It shall be the duty of all persons owning any property upon which there is a house sewer line connecting with the public sanitary sewer system, to keep such house sewer line in a sufficiently good State of repair that it does not constitute a health nuisance nor interfere with the operation and maintenance of the public sanitary sewer system. It shall be the duty of such owner to have the proper repairs made by a licensed contractor or licensed plumber to such house sewer line within five (5) days after written notice to make such repairs is given by the Director.

### Section 513. Separate sanitary sewers—Each premise.

Each premise shall have a separate sanitary sewer connection. If, after the public sanitary sewer has been constructed, the adjacent property has been platted, replatted or if buildings have been relocated in such a manner that one or more are separated from the public sanitary sewer, the Director may require an extension of the main or lateral of the public sanitary sewer system so that the public sanitary sewer can serve directly any building that has been separated from the existing public sanitary sewer, provided that such other requirements are met as to size of pipe, construction and use as the Director may deem necessary, and that easements are granted to the public, covering the location of the extended public sanitary sewers across intervening lots or tracts of ground.

### Section 514. Connections outside of district.

If any person owning or in charge of property within the City limits which is not included in any duly established public sanitary sewer district desires to connect such property with the nearest public sanitary sewer, and the public sanitary sewer to which the connection will be made has not been constructed from the public funds, and the sanitary sewer is neither directly abutting nor located directly upon such property, and a sufficient public sanitary sewer can ultimately be constructed to serve the property in a normal manner, such person shall file a written application with the Director who shall investigate the same and make his recommendation to the Utility Board and the Mayor. If such application is approved by the Utility Board and the Mayor, then the City shall enter into an agreement with such applicant for a connection into the existing public sanitary sewer system. The applicant, as consideration for the connection, shall agree to waive any protest against the levying of any assessments thereafter made against the property for the installation of any public sanitary sewers in any district in which the property may be included, and to pay a

Sixty Dollar ($60.00) connection fee, plus the fee for filing such agreement. In the event the property covered by this agreement is subsequently subdivided into additional premises, new agreements shall be entered into covering each of the new premises, and each premise shall have a separate connection with the public sanitary sewer.

*(Ord. No. 16868)*

**Section 515. Property not assessed.**

Whenever publicly financed sanitary sewers shall be constructed in any alley or other place where otherwise a district sanitary sewer would have been constructed, and whenever such publicly financed sanitary sewer served the purpose of a district sanitary sewer for the abutting property or crosses the property, and the owner of such abutting property or property being crossed makes application for a permit to connect with such sanitary sewer, no permit shall be issued unless the owner shall have entered into a written agreement with the City of Tulsa and paid to the City of Tulsa an amount equal to that which he would have been required to pay for a sufficient district lateral sanitary sewer so constructed. The amounts to be charged for connections with publicly financed sanitary sewers shall be ascertained by the Director and approved by the Utility Board and the Mayor. In the event the property covered by the agreement is subsequently subdivided into additional premises, new agreements shall be entered into covering each of the new premises, and each of the premises shall have a separate connection with the public sanitary sewer.

**Section 516. Mobile home parks.**

Before any permit shall be issued allowing connection to the public sanitary sewer system for any space to be occupied by one (1) or more mobile homes, a plan of the area showing the proposed layout of water service pipes, house sewers and a profile of the water and sanitary sewer system shall be approved by the Director.

**Section 517. Approval of plans for all sanitary sewer service lines eight inches in diameter or over.**

Plans for all sanitary sewer service lines eight (8) inches or larger in diameter shall be designed in accordance with Oklahoma State Department of Health standards and shall be approved by the Director before the initiation of any construction.

*(Ord. No. 17549)*

**Section 518. Miscellaneous rules.**

**A.** No permit shall be issued nor a connection permitted to a public sanitary sewer under construction until such sanitary sewer has been approved by the Director.

**B.** The City of Tulsa shall be under no obligation to maintain or repair any house sewer as defined in this chapter.

**Section 519. Plugging of abandoned building sewers, house sewers or house sewer line connections to public sanitary sewers.**

**A.** Any person, firm, company, partnership or corporation owning any house or other structure connected to any public sanitary sewer shall, before demolition of such house or other structure or before removal of such house or other structure from its situs, cause such line connection to any public sanitary sewer to be adequately and properly plugged.

**B.** Such plugging shall be done only by a licensed plumber or a licensed contractor.

**C.** Before any line connection to the public sanitary sewer shall be plugged, the licensed plumber or licensed contractor who is to perform such work shall secure a permit from the Director for the plugging of such line connection to the public sanitary sewer.

**D.** After the permit has been obtained and the plugging has been completed, it shall be the responsibility of the Director to inspect such sanitary sewer plug to ascertain that it is proper and adequate.

**E.** No permit shall be issued for the removal or demolition of any such structure until the Director shall have approved the sewer plug.

## Section 520. Reconstruction of public sanitary sewers.

No building, structure, wall or other above-ground obstruction, including additional fill material, shall be placed, erected, installed or permitted directly over any public sanitary sewer. In the event any such obstructions are to occupy the ground immediately above a public sanitary sewer, it shall be necessary to first re-route the public sanitary sewer at the property owner's expense in order to comply with this provision; provided, however, that if there is not sufficient grade available to perform the re-routing, the property owner shall present a proposed plan to the Director for his approval, setting forth the necessary construction to safeguard the public sanitary sewer. Either the re-routing of the sanitary sewer or the reconstruction, as approved by the Director, shall be carried out through proper contracts and bonds with the City of Tulsa.

## CHAPTER 6. PRIVATE SEWER DISTRICTS

Section 600. Definitions.
Section 601. Private sewerage systems connecting to sewerage systems of the City.
Section 602. Outside connections.
Section 603. Records.
Section 604. Disclosure of facts.
Section 605. Refusal to furnish information.
Section 606. Other sewers.

### Section 600. Definitions.

As used in this chapter, the following words and phrases shall have the meanings given herein:

**A.** **House sewer** shall include all sewer lines carrying sewage from individual dwellings or places of business to the lateral lines.

**B.** **Lateral sewer** shall include all gathering sewer lines carrying sewage from the house sewer lines to the sub-main or main sewer lines. No lateral sewer shall be less than eight (8) inches in diameter, except as approved by the Director.

**C.** **Adequate lateral** shall mean any sewer constructed as an "excess capacity main" when it is utilized as a lateral by the property abutting thereon. The value of the benefit to such abutting property shall be defined as the amount equal to the proportionate cost of an eight (8) inch sewer to that of the sewer constructed as an "excess capacity main." This amount shall be equal to four (4) times the cost of the "excess capacity sewer" per inch of diameter per foot of length that it abuts the property along either side of the sewer, and shall be in addition to the "allowable recovery per thousand gallons per day capacity" for each thousand gallons of capacity utilized by the abutting property.

**D.** **Sub-main sewer** shall include all sewers eight (8) inches, ten (10) inches or twelve (12) inches in diameter, which serve to convey sewage from lateral sewers to a main sewer.

**E.** **Main sewer** shall include all sewers carrying sewage gathered from a number of lateral sewers or sub-main sewers to a central plant for treatment.

**F.** **Entire drainage area** shall mean that area as determined by the City of Tulsa and as established from any point on any existing sewer of the sewerage system of the City of Tulsa such that sewers flowing by gravity may be extended from such point to collect sewage originating from each and every tract of land within such area.

**G.** **Required capacity** shall mean the millions of gallons per day capacity required for any sewer to serve the entire drainage area as determined by the City of Tulsa. The required capacity in millions of gallons per day shall be equal to the product of the drainage area in acres raised to the exponent 0.8169 multiplied by the constant number 0.01467. ($Qm = A^{0.8169} \times 0.01467$), where Qm equals capacity in millions of gallons per day and A equals area in acres.

**H.** **Sewer capacity** shall mean the quantity of sewage in thousands of gallons per day that can be conveyed through a given sewer flowing full on a predetermined grade. This capacity shall be equal to the product of the constant number 23,000 multiplied by the diameter of the sewer in feet raised to the exponent 2.667, and that product multiplied by the square root of the grade of the sewer in feet per thousand feet.

**I.** **Excess capacity main sewer** shall include any privately financed sewer, larger than twelve (12) inches in diameter, required to serve an entire drainage area and having capacity in excess of the capacity actually required to meet the needs of the owner.

**J.** **Excess capacity system** shall include any system of sewers containing one (1) or more excess capacity mains whose network of sewers corresponds roughly but not necessarily coincidental with the natural surface drainage area.

**K.** **Excess capacity contract** shall include any contract covering the construction, use and reimbursement of excess capacity mains.

**L.** **Excess capacity fee** shall mean the amount of money to be paid by the user of any excess capacity main to the City of Tulsa for the use and benefit of the owner of an excess capacity main. Such fee shall be based upon the cost of providing within the excess capacity sewer the thousands of gallons per day capacity required by any user and shall be equal to the amount as determined by the "allowable recovery per thousand gallons per day capacity" for each and every one thousand (1,000) gallons per day capacity required by the following:

**1.** Each lot or parcel of land on which a single residence is located or is to be located shall require one thousand two hundred (1,200) gallons per day capacity;

**2.** Each motel unit, hotel unit or other transient living unit shall require six hundred (600) gallons per day capacity;

**3.** Each trailer space or apartment living unit shall require eight hundred (800) gallons per day capacity;

**4.** Each school shall require a capacity equal to four hundred (400) gallons per day for each student;

**5.** Each church shall require a capacity equal to two hundred (200) gallons per person, per day, based on the number of persons its main assembly hall will accommodate;

**6.** Each hospital shall require a capacity of seven hundred fifty (750) gallons per day for each bed; and

**7.** Any other use not specified herein shall require a sewer capacity equal to five and two tenths (5.2) times its average water use for sewage disposal purposes.

**M.** **Allowable cost** shall mean the aggregate cost of any excess capacity main in accordance with the following:

**1.** The owner's actual cost of construction as determined in the manner of any public contract providing for the advertisement of bids, award of contracts and compliance with the terms of contract as required by the City of Tulsa, but, if not awarded to the low bidder, limited to the amount of cost as calculated according to the bid of the low bidder;

**2.** Engineering fees of five percent (5%) of construction costs;

**3.** City inspection and flushing fees; and

**4.** The actual cost of advertising and recording.

**N.** **Allowable cost per thousand gallons per day capacity** shall mean that unit cost as determined by dividing the "allowable cost" by the "required capacity."

**O.** **Theoretical collection factor** shall mean the percentage that the theoretically required capacity of any sewer bears to the volume of sewage which would result if each

acre within the entire drainage area served by the sewer contributed four thousand (4,000) gallons per day simultaneously. The "theoretical collection factor" shall equal 0.8005 - 0.2164 Log 10X expressed as a percentage, wherein X is the drainage area in thousand of acres.

**P. Actual collection factor** shall have the same meaning as the "theoretical collection factor," except that the actual capacity of the sewer as constructed may vary within limits of acceptable tolerance as approved and as predicated by available grades, pipe sizes and other considerations.

**Q. Recovery factor** shall mean the factor to be applied to the allowable cost on any "excess capacity contract" of the capacity to be utilized by users other than the owner. The "recovery factor" shall be equal to the following: R equals 1.5790454 - 0.5790454 C, wherein R equals Recovery Factor and C equals Theoretical Collection Factor.

**R. Allowable recovery** shall mean that amount of money established by the product of the "allowable cost" multiplied by the "recovery factor."

**S. Allowable recovery per thousand gallons per day capacity** shall mean that unit cost as determined by dividing the "allowable recovery" by the "required capacity," and that quotient multiplied by the "actual collection factor." The "actual collection factor" may not exceed the "theoretical collection factor" in any computation.

**T. Private sewer districts** shall mean any system of one (1) or more sanitary sewers, other than house sewers, constructed within or outside the corporate limits of the City of Tulsa, which includes any excess capacity sewer and is connected to the sewerage system of the City of Tulsa. The physical boundaries of such "private sewer district" shall be as established and defined by legal description, setting forth the actual tracts of land served thereby, whether platted or unplatted. Such tracts of land as described shall be exempt from subsequent assessment for sewer construction. Off-site excess capacity sewers shall not be included within the boundaries of the district.

*(Ord. Nos. 10629, 20623)*

## Section 601. Private sewerage systems connecting to sewerage systems of the City.

**A. Private districts.** Whenever it is the desire of the owner or owners of properties within or outside the corporate limits of the City of Tulsa to install a sewerage system, which may or may not require the construction of an excess capacity sewer, and to connect such sewerage system to the City's system of sanitary sewers, the owner or owners shall first apply to the City of Tulsa, through its duly authorized representatives for permission in the form to be prescribed, setting forth the legal description and the record owners of the property to be sewered. If such petition is approved, the applicant shall have prepared by a registered engineer, plans, specifications and estimates of cost which shall be submitted to the City for its approval. Upon approval of the application, the owner and the City shall enter into a contract covering the construction, operation and maintenance of such sewers, which contract shall provide in substance the following provisions.

**1.** Upon completion and acceptance of such sewers, the sewage collecting system therein, with the exception of "excess capacity mains" as herein defined, shall become the property of the City. Excess capacity mains shall remain the property

of the owner until the owner shall have received his full allowable recovery or until the excess capacity contract has expired, whichever occurs first; thereafter the excess capacity mains shall become the property of the City.

**2.** The owner shall deposit with the City a sum equal to the engineering inspection fee and other amounts which may be due the City, including an administrative charge of two and one-half percent (2½%) of any sums paid to the City for the benefit of the owner of any excess capacity main; provided, however, that upon completion of the work, the amount finally paid to the City shall be adjusted in accordance with actual City expenditures.

**3.** The owner shall pay to the City, for the benefit of the owner of any excess capacity main through which sewage emanating within the proposed system must flow to reach a treatment plant, an amount equal to the "excess capacity fee" for such connection, the aggregate of which shall, in no event, be less than the allowable recovery for four thousand (4,000) gallons per day capacity for each acre served.

**4.** The owner shall pay to the City, for the benefit of the owner of any excess capacity main, an amount equal to the equivalent cost of an adequate lateral in the event any excess capacity main is so utilized.

**5.** All sanitary sewer and plumbing work upon the properties involved shall be done in accordance with the Revised Ordinances of the City of Tulsa governing properties within its corporate limits.

**6.** The contractor for such work shall file with the City of Tulsa a performance bond in the amount of one hundred percent (100%) of the contract, guaranteeing completion of the work and a maintenance bond in the amount of fifty percent (50%) of the amount of the contract, guaranteeing the work for a period of one (1) year after its completion and approval by the City.

**7.** The City shall be at no expense in the construction, repairing or cleaning of any excess capacity sewer for so long as it remains private property.

**B. Excess capacity contracts.** The City of Tulsa may require any sewers so situated as to subsequently serve an entire drainage area to be constructed with a capacity and at such depths as to permit future extensions thereto throughout the entire natural contributing drainage area, without subsequently exceeding the capacity available. The capacity required under the circumstances is defined herein. Whenever and wherever any sewer larger than twelve (12) inches in internal diameter is required, the owner may be reimbursed for the costs of providing such capacity over and above the capacity utilized by himself and over and above the use he makes of the sewer as an adequate lateral, subject to the following conditions.

**1.** The owner shall enter into a standard form of contract with the City of Tulsa in accordance with the procedures and in a manner prescribed for public contracts.

**2.** The City's determination of the entire drainage area, amounts of allowable cost, collection factor and recovery factor to establish the total allowable recovery and the allowable recovery per thousand gallons per day as defined herein shall be final and binding upon all parties; and the City shall not be liable for errors made therein.

**3.** After completion and acceptance of the owner's sewers, constructed pursuant hereto, and payment to City and to other owners all amounts required herein, and

upon connection of owner's sewers to the sewerage system of the City of Tulsa, the owner's sewers shall be and become a part of the sewerage system of the City, under its exclusive control and operation, subject only to the specific rights reserved to the owner as herein set forth. The City shall have the right to make such connection and cross-connection as it may deem necessary for the proper management and utilization of owner's sewers as an integrated part of the sewerage system of the City of Tulsa.

**4.** Unless sooner terminated by the provisions of the contract, the term of any excess capacity contract shall run from the date of acceptance by the City of the owner's sewer for a period of twenty (20) years.

**5.** The owner shall not be entitled to receive any payment from persons utilizing the excess capacity of any sewer he may construct until the owners of all excess capacity of elevations lower than his in the drainage area have recovered that proportionate part of the full amount of their allowable cost applicable to that segment served by himself.

**6.** The sole and only obligation of City to the owner hereunder, after the sewers have been constructed and have become a part of City's system, shall be to require the payment of the sums to be paid by others.

**7.** The City of Tulsa shall, during the term of any excess capacity contract, require any persons who desire to connect to or to extend any excess capacity system to pay to the City, for the benefit of the owners of all excess capacity mains within the system, that portion of the allowable recovery for each excess capacity main within the system applicable to the property to be served, including the use made of any excess capacity main as an adequate lateral.

**8.** The City of Tulsa shall make all reimbursements for multiple excess capacity contracts within any excess capacity system only in the order and sequence constructed so that contracts for excess capacity sewers of higher elevation in the drainage area shall not be entitled to reimbursement until the contracts of excess capacity sewers of lower elevation have been reimbursed the full amount of the allowable recovery applicable to that particular contributing segment. Subsequent reimbursements shall be made for the next succeeding contract in order until all contributing areas are developed.

**C. Restrictions and reservations.** The following restrictions and reservations are placed upon all connections to the sewerage system of the City of Tulsa:

**1.** Diversion of sewage flow from one drainage area or excess capacity system to another by gravity shall be limited to such minor areas as may be approved; but in no event shall such diversion cause the capacity of any eight (8) inch sewer under gravity flow to exceed four hundred sixty thousand (460,000) gallons per day. In the event an excess capacity main is under contract within the drainage area or excess capacity system from which diversion is made and such drainage area or excess capacity system is defined by public land description, the excess capacity fee shall be paid to the excess capacity system from which diverted. Correspondingly, the size requirement for subsequent sewers within the system from which diverted shall be reduced to provide for the reduction in capacity required.

**2.** Diversion of sewage flow from one drainage area or excess capacity system to another by pumping shall be limited to the City's unobligated available capacity within any excess capacity main receiving the pumped sewage, and then only with the concurrence in writing from the owners of all excess capacity contracts then in force within the receiving excess capacity system. Reimbursement shall be made for all excess capacity contracts then in force within both systems, including the system pumped from and the system pumped into, on the basis of the allowable recovery per thousand gallons per day for each thousand gallons capacity required. In addition to the above, a sum shall be escrowed with the City of Tulsa by any person, persons, firm, corporation or trust desiring to pump sewage from one drainage area to another or to pump downstream within the same drainage area. Such sum shall be sufficient to cover the estimated proportionate cost, based on thousands of gallons capacity, to subsequently eliminate the pump station. The escrow shall be conditioned that it shall be payable to and to the extent that any qualified builder, including the City of Tulsa, contributes to the elimination of the pump station.

**3.** Nothing herein shall be construed to obligate the City to give or continue to give sewer service to any person, firm or corporation, or to any particular tract of land, other than pursuant to its ordinances, regulations and sewer service charges as are now in effect or may hereafter be adopted.

*(Ord. No. 10629)*

### Section 602. Outside connections.

Any person owning property or in charge of property outside of the corporate limits of the City of Tulsa, who desires to connect a house sewer to serve such property with the nearest sanitary sewer, shall file a written application with the City. If such application is approved, the City shall enter into an agreement with such applicant to supply sanitary sewage collection and disposal services. The applicant, as consideration thereof, shall agree to pay, in addition to all filing fees, a connection fee of Forty-Five Dollars ($45.00) plus the following:

**A.** Fifteen Dollars ($15.00) for each lot or parcel of land on which a single residence is located;

**B.** Nine Dollars ($9.00) for each motel unit, hotel unit or other transient living unit;

**C.** Twelve Dollars ($12.00) for each trailer space or apartment living unit;

**D.** Sixty cents ($.60) per student for designed enrollment at each school;

**E.** Thirty cents ($.30) for each member of the congregation of each church (to be based upon the seating capacity of the main assembly hall);

**F.** Twelve Dollars ($12.00) for each hospital bed; and

**G.** Sixty Dollars ($60.00) for each one thousand (1,000) gallons per day of any anticipated average water use for sewage disposal purposes which are not specified herein.

*(Ord. No. 16868)*

### Section 603. Records.

The Director shall prepare a record of all users, as herein defined, whose property outside of the corporate limits of the City of Tulsa is served by any sanitary sewer. Such record

shall describe the location of each such property, the name and address of the user, the number of persons employed or housed on such premises and such other pertinent information as the Utility Board may from time to time require. The Director shall classify each user as required by the terms of this chapter and shall indicate in his records the connection charge or amount due to the City of Tulsa from such user under the terms of this chapter.

**Section 604. Disclosure of facts.**

It shall be the duty of each user, as herein defined, to disclose to the Director all facts necessary to properly determine the sewage load to be imposed from any connection and to correctly classify the type of use in computing connection charges and fees under the terms of this chapter.

**Section 605. Refusal to furnish information.**

In the event of the refusal of any such user on demand to furnish all required information to the Director or to permit access to the plumbing system on his property, the Director shall certify such fact to the Mayor through the Utility Board. Upon any such certificate, the Mayor, at his option, may order such sanitary sewer service disconnected and discontinued until the necessary information is submitted for proper classification and the correct connection charges and fees are paid by the user.

**Section 606. Other sewers.**

Nothing herein provided shall be construed to take away the jurisdiction, control and supervision of the Director of Public Works over the operation, construction and maintenance of storm sewers or sewers other than sanitary sewers of the City of Tulsa.

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## CHAPTER 7. SANITARY SEWER USER CHARGE SYSTEM

Section 700. Scope.
Section 701. Definitions.
Section 702. Rates of user charge.
Section 703. Determination of sewer service charge.
Section 704. Determination of industrial user waste charge.
Section 705. Collection.
Section 706. Annual review of user charge system and record retention.
Section 707. Adoption of the Standard Industrial Classification Manual 1972.
Section 708. Rate for dumping septic waste.

### Section 700. Scope.

This chapter includes the rates of user charge per month for sanitary sewer services rendered, whether within or outside the corporate limits of the City, and the methods of determination and collection of sewer service charges and industrial user waste charges.

### Section 701. Definitions.

For the purposes of this chapter, the following terms, phrases, words and their derivations shall have the meanings given herein.

**A. Base use** shall mean either:

**1.** The actual water use for the period to be billed; or

**2.** Where the user has established water service for the premises during the prior sixty (60) billing periods and the user is not an industrial user, the average monthly gallons of water billed to the user for either the previous billing periods ending in December, January and February, or the prior sixty (60) billing periods, whichever is lower. Fractional parts of the billing period shall not be considered.

**B. B.O.D. (biochemical oxygen demand)** shall mean the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory conditions for five (5) days at a temperature of twenty degrees (20°) centigrade. The laboratory determinations of B.O.D. shall be made in accordance with procedures set forth in Standard Methods.

**C. Building sewer, house sewer or house sewer line** shall mean the extension from the building drain to the sanitary sewer or other place of disposal.

**D. City** shall mean the City of Tulsa, Oklahoma, a municipal corporation, acting through the Tulsa Utility Board ("Utility Board") and the City's duly authorized officers or agents.

**E. C.O.D. (chemical oxygen demand)** shall mean a measure of oxygen use equivalent to the portion of organic matter that is susceptible to oxidation by a strong chemical oxidizing agent utilizing procedures approved by 40 CFR 136.

**F. Director** shall mean the Director of Public Works or the person succeeding to his duties and functions by whatever name known and his duly authorized deputy, agent or representative.

**G. Domestic sewage** shall mean water-carried wastes normally discharging into the sanitary sewers of dwellings (including apartment houses and hotels), office buildings, factories and institutions, free from storm surface water and industrial wastes.

**H. Industrial user** shall mean:

**1.** Any user of publicly owned treatment works which discharges more than the equivalent of twenty-five thousand (25,000) gallons per day (gpd) of sanitary wastes and which is identified in the Standard Industrial Classification Manual, 1972, Office of Management and Budget, as amended and supplemented, under one (1) of the following divisions:

| | |
|---|---|
| Division A. | Agriculture, Forestry and Fishing |
| Division B. | Mining |
| Division D. | Manufacturing |
| Division E. | Transportation, Communications, Electric, Gas and Sanitary Services |
| Division I. | Services; |

provided, however, that a user in the divisions listed shall be excluded if it is determined by the Utility Board that such user will introduce only segregated domestic wastes or wastes from sanitary conveniences;

**2.** Any user of a publicly owned treatment works which discharges wastewater to such treatment works which contains toxic pollutants or poisonous solids, liquids or gases in sufficient quantity, either singly or by interaction with other wastes, to contaminate the sludge of any municipal systems, or to interfere with any sewage treatment process, or which constitutes a hazard to humans or animals, creates a public nuisance or creates any hazard in or has an adverse effect on the waters receiving any discharge from such treatment works; and

**3.** Any user for which Federal Categorical Standards apply.

**I. Industrial waste** shall mean all water-carried solids, liquids and gaseous wastes resulting from any industrial, manufacturing or food processing operation or process, or from the development of any natural resource, or any mixture of these with water or domestic sewage, and distinct from normal domestic sewage.

**J. Milligrams per liter (mg/l)** shall mean a weight to volume ratio. The milligrams per liter value multiplied by the factor 8.34 shall be equivalent to pounds per million gallons of water.

**K. Normal domestic sewage** shall mean sewage of the City of Tulsa in which the average concentration of suspended materials and five (5) -day B.O.D. is established at two hundred fifty milligrams per liter (250 mg/l).

**L. Person, establishment or owner** shall mean any individual, firm, company, association, society, corporation, partnership or group, or their agents, servants or employees.

**M. Premise** shall mean any plat or tract of ground, regardless of size or plat, under individual ownership and/or individual use and occupancy where the water service is metered independently of any other use.

**N. Public sanitary sewer** shall include the following:

**1.** All sanitary sewers, of whatever size or extent, the operation, repair and maintenance of which the City of Tulsa is responsible;

**2.** Any sanitary sewer, of whatever size or extent, the construction cost of which has been paid from public funds in accordance with the City Charter or the statutes of the State of Oklahoma;

**3.** An assessment district sewer, which is any sanitary sewer constructed within a legally constituted district as provided under the City Charter or the statutes of the State of Oklahoma;

**4.** A nonassessment district sewer, which is any sanitary sewer constructed within a legally constituted district as provided by special ordinance wherein the property owners petition to construct same by cash, as provided under the City Charter or the statutes of the State of Oklahoma; and

**5.** An outside sewer district, which is any system of one (1) or more sanitary sewers, other than house sewers, constructed outside the corporate limits of the City of Tulsa, and connected to the sewerage system of the City of Tulsa. The physical boundaries of the outside sewer district shall be as established and defined by legal description, setting forth the actual tracts of land served thereby, whether platted or unplatted. Upon annexation to the City of Tulsa, such tracts of land as described shall be exempt from subsequent assessment for sanitary sewer construction, except as may be provided by the City Charter or the statutes of the State of Oklahoma.

**O. Sanitary sewer** shall mean a sewer that conveys sewage or wastewater, and into which storm, surface and ground waters or unpolluted industrial wastes are not intentionally admitted.

**P. Sanitary sewer service available** shall mean that a public sanitary sewer is adjacent to or abuts a premise.

**Q. Sewer service charge** shall mean the charge made on all users of the sanitary sewer system who are not industrial users and whose wastes do not exceed in strength the concentration values established in this title.

**R. Industrial user waste charge** shall mean the charge made on all industrial users of the sanitary sewer system.

**S. Sewer system** shall mean all facilities for collecting, pumping, treating and disposing of wastewaters and shall include the wastewater treatment facilities.

**T. Standard Methods** shall mean the examination and analytical procedures set forth in the latest edition at the time of analysis of Standard Methods for the Examination of Water and Wastewater as prepared, approved and published jointly by the American Water Works Association, the American Public Health Association, and the Water Pollution Control Federation.

**U. Suspended solids** shall mean solids that either float on the surface of, or are in suspension in water, sewage or other liquids, and which are removable by a laboratory filtration device. Quantitative determination of suspended solids shall be made in accordance with procedures set forth in Standard Methods.

**V. User or sanitary sewer user** shall mean any person, establishment or owner who discharges any domestic sewage or industrial waste into the sanitary sewer system of the City or into any sanitary sewer system connected thereto which ultimately reaches and discharges into the sanitary sewer system of the City.

**W. User charge** shall mean a charge levied on users of treatment works for the cost of improvements, extensions, operation, maintenance and replacement of such works.

**X. Wastewater** shall mean a combination of the water-carried waste from residences, business establishments, institutions and industrial establishments, together with such ground, surface and storm water as may be present.

**Y. Wastewater plant** shall mean any device or structure used for receiving and testing wastewater from the City sanitary sewer system.

**Z. Operational day** shall mean that period of time during a twenty-four (24) hour period during which a facility is operating and consequently discharging wastewater.

**AA. Composite sample** shall mean a sample of wastewater composed of samples collected at equal intervals, not exceeding one (1) hour, throughout the operational day of a user, and representative of the discharge of the facility.

**BB. Monitoring** shall mean the performance of procedures (wastewater flow measurements, wastewater sampling, sample analysis, etc.) necessary to determine wastewater discharge compliance and/or to verify the flow and/or the strength of wastewater.

*(Ord. Nos. 18721, 21584; Ord. No. 22698, § 1, 6-14-2012, eff. 10-1-2012)*

## Section 702. Rates of user charge.

For the purpose of providing funds for the maintenance, repair, operation, expansion, replacement, or reconstruction of the sanitary sewer system of the City or other sanitary sewer systems of which the City has accepted or shall accept a beneficial interest and for other purposes, sewer service charges and industrial user waste charges shall be established as provided in this section. The rates so established shall become operative on October 1, 2025, for all billing cycles provided in this title with "service from date" on or after October 1, 2025.

**A. Inside the Corporate Limits of City or on City-Owned Property, Per Monthly Billing Period:**

**1. Sewer Service Charge.**

**Monthly Service Charge**

| Water Meter Size | Charge |
|---|---|
| ¾ inch or less in size | $12.00 |
| 1 inch in size | $14.25 |
| 1½ inches in size | $18.50 |
| 2 inches in size | $37.00 |
| 3 inches in size | $50.00 |
| 4 inches in size | $61.00 |
| 6 inches in size | $77.00 |
| 8 inches in size | $103.00 |
| 10 or more inches in size | $121.00 |

**Quantity Charge**

| Monthly Quantity | Charge |
|---|---|
| All Use-Each thousand gallons | $10.82 |

**2. Industrial User Waste Charge.**

**Monthly Service Charge**

| Water Meter Size | Charge |
|---|---|
| ¾ inch or less in size | $12.00 |
| 1 inch in size | $14.25 |
| 1½ inches in size | $18.50 |
| 2 inches in size | $37.00 |
| 3 inches in size | $50.00 |
| 4 inches in size | $61.00 |
| 6 inches in size | $77.00 |
| 8 inches in size | $103.00 |
| 10 or more inches in size | $121.00 |

**Additional Quantity Charge**

| Monthly Quantity | Charge |
|---|---|
| Volume per thousand gallons | $7.48 |
| COD/BOD per pound | $0.8525 |
| Suspended solids per pound | $0.4375 |
| Monitoring | Actual Cost to the City |

**B. Outside the Corporate Limits of City, but Excluding City-Owned Property, Per Monthly Billing Period:**

**1. Sewer Service Charge.**

**Monthly Service Charge**

| Water Meter Size | Charge |
|---|---|
| ¾ inch or less in size | $19.86 |
| 1 inch in size | $20.10 |
| 1½ inches in size | $20.95 |
| 2 inches in size | $42.78 |
| 3 inches in size | $56.00 |
| 4 inches in size | $61.00 |
| 6 inches in size | $78.00 |
| 8 inches in size | $104.00 |
| 10 or more inches in size | $122.50 |

**Quantity Charge**

| Monthly Quantity | Charge |
|---|---|
| All Use-Each thousand gallons | $13.38 |

**2. Industrial User Waste Charge.**

**Monthly Service Charge**

| Water Meter Size | Charge |
|---|---|
| ¾ inch or less in size | $19.86 |
| 1 inch in size | $20.10 |
| 1½ inches in size | $20.95 |
| 2 inches in size | $42.78 |
| 3 inches in size | $56.00 |
| 4 inches in size | $61.00 |
| 6 inches in size | $78.00 |
| 8 inches in size | $104.00 |
| 10 or more inches in size | $122.50 |

**Additional Quantity Charge**

| Monthly Quantity | Charge |
|---|---|
| Volume per thousand gallons | $9.10 |
| COD/BOD per pound | $1.2798 |
| Suspended solids per pound | $0.6380 |
| Monitoring | Actual Cost to the City |

**3. Wholesale User Waste Charge.**

| Monthly Quantity | Charge |
|---|---|
| Transportation and Treatment-Each thousand gallons | $9.10 |
| Treatment Only-Each thousand gallons | $6.38 |

*(Ord. Nos. 17739, 17959, 18222, 18483, 18721, 19292, 19863, 20606, 20670, 21317, 21573; Ord. No. 21842, § 1, 6-26-2008; Ord. No. 22086, § 1, 6-18-2009; Ord. No. 22264, § 1, 6-17-2010; Ord. No. 22462, § 1, 6-23-2011; Ord. No. 22698, § 2, 6-14-2012, eff. 10-1-2012; Ord. No. 22896, § 2, 6-20-2013, eff. 10-1-2013; Ord. No. 23124, § 8, 6-12-2014, eff. 10-1-2014; Ord. No. 23306, § 8, 6-11-2015, eff. 10-1-2015; Ord. No. 23499, § 2, 6-9-2016, eff. 10-1-2016; Ord. No. 23704, § 8, 6-7-2017; Ord. No. 23942, § 8, 6-13-2018; Ord. No. 24150, § 8, 6-19-2019; Ord. No. 24402, § 1, 6-17-2020; Ord. No. 24624, § 1, 6-9-2021; Ord. No. 24853, § 1, 6-15-2022; Ord. No. 25074, § 8, 6-14-2023, eff. 10-1-2023; Ord. No. 25348, § 8, 6-12-2024; Ord. No. 25600, § 8, 6-11-2025)*

## Section 703. Determination of sewer service charge.

The City of Tulsa finds that in most instances it is impractical to measure the volume of domestic sewage discharged into the sanitary sewer system for the purpose of billing under this chapter. Therefore, the volume of domestic sewage, upon which the sewer service charges shall be calculated, shall prima facie be the amount of water which is metered to the user of both water service and sanitary sewer service, except in cases where treatment facilities are furnished by others in which cases sanitary sewer service and sewer service charges therefor shall be rendered pursuant to contract. The following provisions shall

apply to the determination of sewer service charges, and the rates established in this section shall become operative on October 1, 2022, for all billing cycles provided in this title with "service from date" on or after October 1, 2022.

**A.** All sanitary sewer service billing periods shall coincide with the billing periods of water service to the same user or premises.

**B.** The monthly sewer service charge or industrial user waste charge to each user shall be calculated by applying the rates of user charge as established by the applicable provisions of this chapter, to the base use for each user.

**C.** In the event sanitary sewer service is commenced to a new user after annual sewer base uses have been established and such user was a water customer of the City for more than twelve (12) months, but less than sixty (60) months, the base use shall be calculated on the average monthly gallons of water billed to the user for all periods ending in December, January and February.

**D.** In the event sanitary sewer service is commenced to a new user after annual sewer base uses have been established and such user was not a water customer of the City during the previous twelve (12) months, the Director shall establish a temporary base use for such customer which shall be predicated upon actual use, adjusted for seasonal variation, and shall remain in effect until a new base use is established.

**E.** In the event a customer transfers from one service address to another, the base use of such customer at the billing address from which transferred may be the base use for the customer at the new location until a new base use is established.

**F.** If in the opinion of the Director the base use established in accordance with the applicable provisions of this chapter does not reasonably approximate the actual discharge of wastewater into the public sanitary sewer system by such user, the Director shall determine the average monthly discharge of such user based upon actual consumption of water, less the water consumed but not discharged into the sanitary sewer system. The average so established shall be reviewed by the Director at least annually.

**G.** Any sanitary sewer user who is not also a water customer of the City shall pay a flat charge of Sixty-Nine and 07/100$^{th}$ Dollars ($69.07) per month if the user is within the City limits, and Eighty-One and 41/100$^{th}$ Dollars ($81.41) per month if the user is outside the City limits. However, if such charge does not, in the opinion of the Director, fully compensate the City for the transporting and treating of sewage discharged by such user at the rates of user charges established by applicable provisions of this chapter, the Director shall determine, from such information as may be available to him, the average monthly discharge from such user. The average so established shall be the base use for such customer. The base use so established shall be reviewed by the Director at least annually.

**H.** The determination of base use made in accordance with the provisions of this chapter shall be final and binding upon all users, provided, that any user may, at the user's own expense, install metering or measuring devices of a type and installed in a manner approved by the Director. Billings after installation of a meter or measuring device shall be based upon actual usage measured in accordance with the schedule or rates of user charges set forth in the applicable provisions of this chapter.

**I.** Every water customer of the City to whom sanitary sewer service is available, except purchasers of water for resale, shall be deemed a user or sanitary sewer user unless the water customer produces evidence to the contrary.

**J.** The user charges provided in this section shall take precedence over any terms or conditions of agreements or contracts between the City and users (including industrial users, special districts, other municipalities, or federal agencies or installations) which are inconsistent with this chapter.

*(Ord. Nos. 17739, 17959, 18721, 19292, 19863, 20606, 21317, 21573, 21584; Ord. No. 21842, § 1, 6-26-2008; Ord. No. 22086, § 1, 6-18-2009; Ord. No. 22264, § 2, 6-17-2010; Ord. No. 22462, § 2, 6-23-2011; Ord. No. 22698, § 3, 6-14-2012, eff. 10-1-2012; Ord. No. 22896, § 3, 6-20-2013, eff. 10-1-2013; Ord. No. 23124, § 9, 6-12-2014, eff. 10-1-2014; Ord. No. 23306, § 9, 6-11-2015, eff. 10-1-2015; Ord. No. 23499, § 2, 6-9-2016, eff. 10-1-2016; Ord. No. 23704, § 9, 6-7-2017; Ord. No. 23942, § 9, 6-13-2018; Ord. No. 24402, § 2, 6-17-2020; Ord. No. 24853, § 2, 6-15-2022; Ord. No. 25074, § 9, 6-14-2023, eff. 10-1-2023; Ord. No. 25348, § 9, 6-12-2024; Ord. No. 25600, § 9, 6-11-2025)*

## Section 704. Determination of industrial user waste charge.

**A.** Persons, establishments or owners discharging industrial wastes which exhibit none of the characteristics of wastes prohibited in Chapter 5 of this title, other than excessive B.O.D. or suspended solids, and which have, during a twenty-four (24) hour period, an average concentration of B.O.D. or suspended solids content in excess of normal domestic sewage, shall be required to pretreat the industrial wastes to meet the requirements of normal domestic sewage, provided, however, that such wastes may be accepted for treatment if all the following requirements are met:

**1.** The wastes will not cause damage to the collection system;

**2.** The wastes will not impair the treatment process; and

**3.** The discharger of the wastes enters into a contract with the City of Tulsa providing for an industrial user waste charge rate.

**B.** The volume of wastes shall be determined by the same methods used to calculate the regular sewer service charge. For establishments discharging less than twenty thousand (20,000) gallons per day, the B.O.D. and suspended solids values may be determined from standard values for various industries established by the Director. As a minimum, industrial user waste charges shall be established utilizing B.O.D. and suspended solids concentrations of normal domestic waste, unless otherwise approved. In cases where the discharger desires to determine accurate values of B.O.D. and suspended solids, the discharger shall install, at his own expense, a sampling point at a location near the outlet of each building drain or connection with any sanitary sewer of the City, as approved by the Director. B.O.D. and suspended solids values, determined from samples collected from any establishment, shall be established by certification of an independent testing laboratory employed by the discharger and approved by the Director. Such report shall contain a statement that the samples collected and values determined are based on a twenty-four (24) hour composite sample which is representative of the establishment's flow. Each sampling point shall be installed and shall be maintained by the discharger so that any authorized representative of the City may readily and safely obtain samples of the flow at any time.

**C.** All flow rates, B.O.D. and suspended solids values used in determination of the industrial user waste charge shall be reevaluated on an annual basis; provided however, that if there is a major change in the operation to cause changes in value, the values may be increased or decreased based on a study of changes or actual measurements. The basis for determining the charge shall be reviewed annually and shall be adjusted to reflect any increase or decrease in wastewater treatment costs based on the previous year's experience. Each industrial user is subject to being monitored annually, at a minimum, and subsequently assessed a monitoring charge.

**D.** Each user which discharges any toxic pollutants which cause an increase in the cost of managing the effluent, the sludge or the City's treatment works shall pay for such increased cost and shall become liable to the City for any expense, loss or damage experienced by the City by reason of such discharge.

## Section 705. Collection.

**A.** The charges established herein for the use of the sanitary sewer system of the City shall be billed to each user monthly, along with the bill for water and other utility services, and shall carry the same due date as now or may hereafter be established for water service bills. No charge shall be made for sanitary sewer service during periods when the premises is disconnected from water service; except that, in those cases where water service is obtained from a source other than directly from the City of Tulsa, no allowance shall be made for vacancy or nonuse until sworn notification of such vacancy, on forms prescribed by the City, shall have been received by the authorized agent of the City and then only when such vacancy is longer than one (1) full billing period.

**B.** In the event any person, firm or corporation shall tender as payment of water service, medical service program, sanitary sewer nuisance abatement fees, sanitary sewer service, collection of solid waste service and/or service charge for the use of the City's stormwater drainage system an amount insufficient to pay in full all of the charges so billed, credit shall be given first to the charges for deposit, second to the service charge for the use of the City's stormwater drainage system, third to the charges for collection of solid waste, fourth to the charge for sanitary sewer service, fifth to any sanitary sewer nuisance abatement fees, sixth to the charge for the medical service program, seventh to the charges for water service and lastly to fees and penalties, except that any subsidies received by the City from another governmental entity, pursuant to an agreement with such entity for payment of specific utility service charges for benefit of a "residential service unit", as that term is defined in Section 101 of Chapter 1 of Title 11-B, Tulsa Revised Ordinances, or a residential utility customer of the City shall be accepted by the City and applied to the utility service charges so designated. In addition, any funds of the City applied to specific utility service charges for a residential service unit or residential utility customer of the City pursuant to an approved program for payment of such charges shall be applied to the utility service charges so designated.

**C.** In the event of nonpayment of the sewer service charges or industrial user waste charges established herein, the City shall have the right to make an actual physical disconnection of the house sewer from the public sanitary sewer or other sanitary sewer connecting to the public sanitary sewers, and the costs of disconnecting and reconnecting shall be paid by the customer then using or thereafter desiring to use such sanitary sewer for such premises.

**D.** In the event that any utility account shall become delinquent, water services may be terminated by the City until all delinquent charges shall be paid in full.

**E.** No sanitary sewer service connection shall be made to any premises not receiving water service directly from the City until and unless the lawful owner or agent of the premises to be furnished sanitary sewer service has executed a sanitary sewer service contract, wherein the owner of the premises to be served agrees to pay all user charges made and provided by the Revised Ordinances of the City of Tulsa and grants to the City a right-of-way and easement over, under and across the premises to be served for the purpose of inspecting the construction of the house sewer or sewers and for disconnecting the same in the event the user charges imposed herein are not paid.

**F.** Each user shall be notified, at least annually, in conjunction with a regular bill, of the rate and that portion of the user charges which are attributable to operation and maintenance of the wastewater treatment services.

*(Ord. Nos. 20384, 21527; Ord. No. 25090, § 3, 7-26-2023)*

### Section 706. Annual review of user charge system and record retention.

**A.** The Director shall review not less often than every one (1) year the wastewater contribution of users and user classes and the total costs of operation and maintenance of the treatment works and the user charge system, and shall recommend to the Utility Board revisions in the charges for users or user classes to accomplish the following:

**1.** To maintain the proportionate distribution of operation and maintenance costs among users and user classes;

**2.** To generate sufficient revenue to pay the total operation and maintenance costs necessary for the proper operation and maintenance (including replacement) of the treatment works and pretreatment program; and

**3.** To apply excess revenues collected from a class of users to the costs of operation and maintenance attributable to that class for the next year and to adjust the rates of that class of users accordingly.

**B.** The City shall maintain such records as are necessary to document compliance with federal regulations for such period as required by Oklahoma Statutes.

*(Ord. No. 17649)*

### Section 707. Adoption of the Standard Industrial Classification Manual 1972.

That certain document, three (3) copies of which are on file in the office of the City Clerk of the City of Tulsa, and one (1) copy of which is on file in the office of the Director, being marked and designated as the Standard Industrial Classification Manual, 1972, prepared by the Statistical Policy Division of the Executive Office of the President, Office of Management and Budget, is hereby adopted as a part of this chapter for the purpose of defining industrial users as found herein.

### Section 708. Rate for dumping septic waste.

**A.** The rate for dumping or discharging septic waste, Monday through Friday, 7:00 a.m. to 7:00 p.m., originating from inside or outside the corporate limits of the City of Tulsa shall be One Hundred Sixty and 00/100 Dollars ($160.00) for each one thousand (1,000) gallons and each overage or fraction less than one thousand (1,000) gallons. The rate

for dumping or discharging septic waste at all other times shall be Two Hundred Six and 34/100 Dollars ($206.34) for each one thousand (1,000) gallons and each overage or fraction less than one thousand (1,000) gallons.

**B.** Septic waste shall be discharged only at facilities designated and approved by the Utility Board and the Mayor. No septic waste shall be discharged in the sanitary sewer system of the City except as provided in this title.

*(Ord. Nos. 16861, 17739, 17959, 18721, 19292, 19863, 20606, 21317, 21573; Ord. No. 21842, § 2, 6-26-2008; Ord. No. 22086, § 2, 6-18-2009; Ord. No. 22264, § 3, 6-17-2010; Ord. No. 22462, § 3, 6-23-2011, eff. 10-1-2011; Ord. No. 22698, § 4, 6-14-2012, eff. 10-1-2012; Ord. No. 22896, § 4, 6-20-2013; Ord. No. 22896, § 4, 6-20-2013, eff. 10-1-2013; Ord. No. 23124, § 10, 6-12-2014, eff. 10-1-2014; Ord. No. 23306, § 10, 6-11-2015, eff. 10-1-2015; Ord. No. 23499, § 2, 6-9-2016, eff. 10-1-2016; Ord. No. 23704, § 10, 6-7-2017; Ord. No. 23942, § 10, 6-13-2018; Ord. No. 24402, § 3, 6-17-2020; Ord. No. 25427, § 1, 10-16-2024; Ord. No. 25600, § 10, 6-11-2025)*

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## CHAPTER 8. SPECIAL FUNDS AND TRUST FUNDS

Section 800. Pump Stations Trust Fund.

### Section 800. Pump Stations Trust Fund.

**A.** The Mayor of the City of Tulsa is hereby authorized and directed to establish a special trust fund, which shall be nonfiscal and known as the Pump Stations Trust Fund ("the Fund"), and to record therein sums of money to be held in escrow by the City of Tulsa for construction or elimination of pump stations in accordance with contracts between the City and third persons concerning such pump stations.

**B.** The money recorded in the fund shall be disbursed by warrant only for expenditures authorized by the Mayor and the Utility Board for the purposes set forth in this title. The Treasurer is authorized and directed to invest such funds in accordance with and to the extent permitted by the laws of the State of Oklahoma, and to credit the interest received therefrom to the fund.

*(Ord. No. 14169)*

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## CHAPTER 9. BILLING AND COLLECTIONS

Section 900. Billing of utility customers; cycles; reading of meters.
Section 901. Collection and deposit of funds.
Section 902. Time of payment; procedure for disputing charges; discontinuance of service; fees for customer service.
Section 903. Deposits for utility service.
Section 904. Additional fee for delinquent accounts.
Section 905. Contracts with persons having delinquent accounts.
Section 906. Utility deposits upon termination of service.
Section 907. Change of rates upon annexation.

### Section 900. Billing of utility customers; cycles; reading of meters.

For the purpose of fixing the date and regulating the payment of all service charges and water bills, the Mayor shall divide the City into billing areas and shall assign billing cycles to such areas. Such billing cycles shall be designated by letters of the alphabet.

All meters shall be read monthly and all service charges and water bills shall be due and payable monthly at the Utilities Collection Office in the City of Tulsa not later than the date specified in the water bill.

The Mayor shall prescribe a date for the payment of the service charges and water bills in each cycle, and all the bills in a cycle shall be due on the same date. The water bills in each cycle shall be mailed or delivered to the customers therein not later than ten (10) days prior to the due date of the water bills in that cycle.

A schedule showing the division of the City into billing areas and cycles shall be available in the office of the Director.

*(Ord. No. 15584)*

### Section 901. Collection and deposit of funds.

In accordance with the provisions of the Charter of the City of Tulsa, the Mayor is hereby authorized and directed to cause to be collected and deposited all funds due the City of Tulsa for water and sewer services.

### Section 902. Time of payment; procedure for disputing charges; discontinuance of service; fees for customer service.

In the event of the failure of any customer to make payment in full for the amount of charges assessed against him on or before the due date indicated on the bill, there shall be mailed to him within ten (10) days after such due date a notice of delinquency.

**A.** The notice shall inform the customer that, unless payment is received by the City by the date indicated on the notice which shall be not less than ten (10) days from the date of the notice, water service may be terminated without further notice.

**B.** The notice shall inform the customer that he may dispute the correctness of all or part of the amount shown on such notice and shall describe the following procedure for contesting such amount.

**1.** Before the date of termination shown on the notice, the customer may notify the Director or his designated representative ("Director") whose telephone number and

business hours shall be listed in the notice, that he disputes all or any part of the amount shown. The customer shall state as completely as possible the basis for the dispute.

**2.** If the Director determines that the customer has previously disputed the correctness of all or part of the subject amount, the customer shall be mailed a response stating that the dispute is invalid and the Director may proceed as if he had not been notified of a dispute.

**3.** If the Director determines that the dispute is valid, he shall determine whether it is in the best interest of both the City and the customer that the dispute be settled at the administrative level or by the Tulsa Utility Board.

**4.** If the Director determines that it is in the best interest of both the City and the customer that the dispute be determined at the administrative level, he shall, within three (3) working days after receiving notice of the dispute, arrange a meeting with the customer, which meeting shall be no more than ten (10) days from the date of the customer's notice of dispute. The Director shall give the customer a written confirmation showing the time, date and place of the meeting. At the meeting, the Director shall resolve the dispute in a fair and equitable manner based on the records of the City, the customer's information and all other relevant information reasonably available to him. The Director shall notify the customer in writing of his decision within five (5) days after the date of the meeting.

**5.** Within five (5) days of receipt of the Director's decision, the customer may request, in writing, a hearing before the Tulsa Utility Board. If the deposit required in this title is not sufficient to cover the amount in dispute, the Director shall notify the customer who shall have five (5) days from receipt of such notice to post additional deposit sufficient to cover the amount in dispute.

**6.** If the customer fails to request a hearing before the Utility Board within the time provided above or if the customer fails to post any additional deposit which may be required, the Director shall proceed as if no dispute had occurred. Should the customer request a hearing before the Utility Board or should the Director determine that it is in the best interest of both the City and the customer to have the dispute heard by the Board, the matter shall be set before the Board at its first regular meeting occurring more than ten (10) days after the determination by the Director or the request for hearing by the customer. At least ten (10) days prior to the hearing, the customer shall be notified in writing of the time, date and place that the Utility Board shall hear the matter. At the hearing the customer shall be entitled to present all evidence which is relevant and material to the dispute. The Board shall, within five (5) days from the date of its hearing, issue a written decision formally resolving the dispute, which decision shall be binding upon the Director and the customer. [If] a decision of the Utility Board is adverse to the customer as to any amount in dispute, the customer shall also be mailed a notice that unless payment of the amount determined by the Board to be due is made by a date not less than ten (10) days from the date of such notice, water service may be terminated without further notice.

**C.** The Director shall prescribe reasonable customer service fees as appropriate for service calls and other similar services provided in connection with utility service. A schedule of fees shall be recommended by the Director and approved by the Utility Board and the City Council.

*(Ord. No. 18722)*

**Section 903. Deposits for utility service.**

**A. Deposit required.** Any person, firm or corporation desiring to obtain from the City of Tulsa one (1) or more utility services for water, sanitary sewer, solid waste collection and/or disposal, or stormwater drainage management shall make application for such utility services. Each user shall be required to make a security deposit to guarantee payment for utility service to each premise served, unless such deposit is waived pursuant to Subsection B. of this Section 903, or is otherwise exempted by law. The amount of such security deposit shall be equal to the charges for two (2) months' utility service as estimated at the date of first service. All or part of the deposit may be applied to the payment of the account of the applicant at any time the account may thereafter become delinquent.

**B. Waiver of deposit.** Upon approval of a written application to the Director or his designee, the security deposit required herein may be waived in the opening of accounts with:

**1.** Public, private or parochial schools;

**2.** Bona fide, established and organized charitable, eleemosynary or welfare organizations;

**3.** The federal government, State of Oklahoma and governmental subdivisions thereof, specifically including the City of Tulsa, Oklahoma, a municipal corporation;

**4.** Industrial, large industrial and commercial customers as defined in Chapter 3, Section 301 of this title, whose monthly charge for services exceeds Two Hundred Dollars ($200.00) per month and who have submitted a payment bond in a form acceptable to the City Attorney and in an amount equal to twice the charges for two (2) months' utility services as estimated at the date of the first service;

**5.** Industrial, large industrial and commercial customers as hereinabove defined, who have on file with the City of Tulsa an irrevocable letter of credit in a form acceptable to the City Attorney and in an amount equal to twice the charges for two (2) months' utility services as estimated at the date of the first service;

**6.** Residential customers who, during the past two (2) years, have an established credit history and are in good standing with the City of Tulsa and who are opening an additional account, provided that the additional account has approximately the equivalent monthly charge as the account upon which the established credit history was built;

**7.** Residential customers who, during the past two (2) years, have an established credit history and are in good standing with the City of Tulsa and who are opening a new account due to divorce or the death of a spouse. In determining the good standing of the customer's account, consideration may be given to the payment record of the customer's former spouse;

**8.** Customers desiring to reinstate an account who, for two (2) or more years immediately preceding the termination of their prior account, had an established credit history and were, at the time of termination of their prior account, in good standing with the City of Tulsa; and

**9.** Customers for whom a security deposit is exempted or waived pursuant to state or federal law.

The waiver of deposit with any legal entity enumerated in the foregoing paragraphs 1. through 8., inclusive, is conditioned upon continuing prompt monthly payment of all charges for utility service and may be withdrawn at any time.

**C. Monthly payment required.** The security deposits shall be only a guarantee of the payment of the customer's utility service account and shall not relieve the consumer of the obligation of prompt monthly payment of utility service charges. If at any time it is determined that the security deposit is substantially less than the current amount of the total charges for two (2) months' utility service, the deposit of an additional sum may be required to make the security deposit equal to the current estimated charges for two (2) months' utility service.

**D. Refunding and reinstatement of deposits.** Security deposits shall be refunded and payment bonds and irrevocable letters of credit shall be released if they are no longer required for customers who have an established credit history for two (2) consecutive years and are currently in good standing with the City of Tulsa. Refunds for security deposits originally made with cash or cash equivalents shall be credited on monthly utility bills. No cash or cash equivalent deposit balance shall be refunded upon the closing of an account of any person, firm or corporation against whom there is any unsatisfied claim for previous utility services at that location or another or any unpaid charges of any kind due and owing to the City of Tulsa. If at any time after having received such a release or credit of the customer's security deposit, it is determined continued prompt payment of all charges for utility services is not being made, a security deposit may be required in an amount equal to the charge for the immediately preceding two (2) month's utility service charges. Reinstatement of such a security deposit shall be effected by billing such security deposit on a customer's monthly utility bills.

*(Ord. Nos. 17289, 17427; Ord. No. 25090, § 4, 7-26-2023)*

## Section 904. Additional fee for delinquent accounts.

**A. Late fee.** Any amount due on any utility bill issued by the City (including, but not limited to water, sanitary sewer, solid waste collection and/or disposal or storm water drainage management) not paid by the due date shall be considered delinquent. An additional charge of one and one-half percent (1½%) of the delinquent amount per month shall be assessed on all delinquent amounts for so long as the amounts remain delinquent.

**B. Waiver.** The Director or his designee may waive the late fee when assessed in error, when the delinquency is legally excusable or when the account debtor completes an installment payment agreement. Interest will be charged as stated herein upon failure to complete the installment payment agreement.

*(Ord. No. 21499)*

### Section 905. Contracts with persons having delinquent accounts.

The Mayor shall not enter into any contract with, render any service to or continue to render any service to any person against whom there is an unsatisfied claim for previous services or any unpaid charges of any kind; provided, however, that the Mayor may in unusual cases enter into an agreement with such person to render service upon the payment of such claim by installments.

*(Ord. No. 21499)*

### Section 906. Utility deposits upon termination of service.

Unless otherwise provided herein, money in the possession of the City which has been acquired as a utility deposit from a utility customer shall be refunded or credited to the customer upon termination of all utility services and payment of all charges due and connected with the service. If the deposit has not been claimed by or refunded to a customer within one (1) year following termination of the utility service to the customer, the City shall send written notice to the customer at his last-known address stating that the deposit will be paid over to the City unless it is claimed by the customer within ninety (90) days of the date the notice is mailed by the City. If the money is not claimed or refunded within the ninety (90) days, the amount of the deposit shall be charged against the customer's account. No customer shall have a right to any claim or refund on the deposit after written notice and expiration of the ninety-day period in accordance with 11 O.S.1991, § 35-107.

*(Ord. No. 21499)*

### Section 907. Change of rates upon annexation.

Upon annexation to the City of Tulsa of any place outside of the City limits supplied with treated water through meters, and not redistributed to individual customers, the rate and amount of security deposits applicable inside of the City shall become effective immediately after the meter reading date next preceding the date of annexation.

*(Ord. Nos. 10012, 21499)*

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# CHAPTER 10. APPROVAL OF WATER LINE AND SEWER LINE EXTENSIONS OR IMPROVEMENTS

Section 1000. Definitions.
Section 1001. Water distribution line—Construction permit exemption.
Section 1002. Compliance with standards.
Section 1003. Municipal sewer/wastewater systems—State permit exemption.
Section 1004. Requirements for small sewage treatment systems.
Section 1005. Variances.
Section 1006. Permit transfer and cancellation.
Section 1007. Fee schedule.
Section 1008. Inspection required.
Section 1009. Rules and regulations.

## Section 1000. Definitions.

For the purpose of this chapter, the following terms, words, phrases and their derivations shall have the following meanings.

**A.** **City** shall mean the City of Tulsa, Oklahoma, a municipal corporation, acting through the Utility Board and the City's duly authorized officer or agents.

**B.** **DEQ** shall mean the Oklahoma State Department of Environmental Quality, its successors, designees and assigns.

**C.** **Director** shall mean the Director of Public Works of the City of Tulsa, or any person succeeding to the Director's duties and functions.

**D.** **Engineer** shall mean the professional engineer of the City of Tulsa who:

**1.** Is in responsible charge of the reviewing staff of the City;

**2.** Is responsible for reviewing applications for water line and sewer line extensions or improvements for the City;

**3.** Is duly licensed as a professional engineer in the State of Oklahoma; and

**4.** Has passed an examination on the contents of the Standards for Water Pollution Control Facilities and Standards for Public Water Supply Facilities.

**E.** **Licensed Engineer** shall mean a person licensed as a professional engineer in the State of Oklahoma.

**F.** **Water distribution lines** shall mean water mains not larger than twelve (12) inches in diameter and except systems constructed in whole or in part with funds from EPA and/or administered by DEQ.

**G.** **Municipal sewer/wastewater system** shall mean sanitary sewage collection systems constructed, operated or maintained by a municipality or trust for the benefit of such a municipality.

**H.** **Municipal water system** shall mean a public water supply distribution system constructed, operated and maintained by a municipality or trust for the benefit of such a municipality.

**I.** **Permit** shall mean the City's written approval of the application for water line or sewer line extensions or improvements which connect to the water or sewer system of the City.

**J.** **Person** shall mean any natural individual, corporation, company, firm, partnership, association or trust, including any state agency, governmental subdivision, instrumentality, and agency, county, city and town.

**K.** **Premise** shall mean any plot or tract of ground, regardless of size or plat, under individual ownership or individual use or occupancy.

**L.** **Sewage collection system** shall mean and include gravity sewage collection lines not larger than twelve (12) inches in diameter, except for systems constructed in whole or in part with funds from EPA and/or administered by DEQ.

**M.** **Small commercial sewage treatment system** shall mean a sewage treatment system which serves a public or commercial establishment which exhibits a flow of not greater than five thousand (5,000) gallons per day. This includes such establishments as small restaurants, retail stores and commercial office buildings, but does not include residential systems, alternative systems, lift stations, discharging systems or land treatment systems.

*(Ord. Nos. 16384, 20781)*

### Section 1001. Water distribution line—Construction permit exemption.

**A.** **Purpose.** The purpose of this section is to qualify for exemptions from the Department of Environmental Quality (DEQ) construction permit requirement for water systems, pursuant to Chapter 625 of the Oklahoma Administrative Code, entitled "Public Water Supply Construction Standards," adopted by the Board of Environmental Quality on May 26, 1994. Water distribution lines not larger than twelve (12) inches in diameter are the only mains eligible for the exemption from the requirements of issuance of state construction permits. All water distribution lines/systems constructed in whole or in part with funds from the United States EPA and/or with funds administered by the DEQ shall not be exempted from the requirement of obtaining a state construction permit.

**B.** **Systems and connection requirements.** The municipal water systems and any water distribution line or connection thereto shall be constructed in compliance with the applicable regulations, rules and requirements of the DEQ or the ordinances, regulations, rules and requirements of the City, whichever standard is more stringent.

**C.** **Approval required.** All water distribution lines to be connected to the municipal water system shall be approved by the Director prior to actual construction.

**D.** **Approval withheld.** Approval shall be withheld if the water treatment plant, pump station or distribution main to which the water distribution line is to attach has reached or, with the addition of the proposed water distribution line, would reach treatment or hydraulic capacities. Further, approval shall also be withheld if the water distribution line does not meet or exceed the standards of the DEQ and the City, or may be withheld for any other reason.

**E.** Review and approval of plans and specifications for connection to systems. Prior to construction, plans and specifications for water distribution line shall be reviewed, approved and signed by a professional engineer licensed by the State of Oklahoma and designated by the Director as being in responsible charge of such connections to the municipal water systems. All approved plans and specifications shall be signed by the designated professional engineer, in responsible charge, indicating approval to proceed

with construction in accordance with the approved plans and specifications. No water distribution line construction shall proceed until plans and specifications have been reviewed and approved in this manner.

**F. Listing of projects.** The Director or his designated representative shall supply DEQ with one (1) copy of all such approved plans and specifications together with a listing of all approved water distribution line projects monthly, on or before the fifteenth of each month following approval of the plans and specifications for each project. The listing shall include the name, location and date of approval of each such project.

**G. Inspection.** The Director or his designated representative shall inspect each approved project and shall prohibit commencement of any water distribution line construction or connection prior to approval of plans and specifications in accordance with this chapter.

**H. System operation.** The City shall operate its municipal water system in compliance with the applicable rules of DEQ.

**I. System capacity exception.** Should the City declare a moratorium on water distribution line construction or should any proposed water distribution line bring the municipal water system, a connected pump station, distribution main or water treatment plant to its design capacity, the construction or connection of the proposed water distribution line may still be allowed, to the extent approved by DEQ, under the following circumstances:

**1.** The City shall apply, in writing, to the DEQ for a variance allowing the specified construction to proceed within the area;

**2.** The application shall detail what the City will do to ensure that the construction or connection will not worsen any existing problems;

**3.** The application shall include timetables for correcting any stated problems, prior to the connection of any additional users, demands or flows as a result of the construction of which approval is sought;

**4.** The application, if approved, shall become a condition of any permit issued for such construction by the DEQ;

**5.** Approval of construction in an area under moratorium or at design capacity which has not received such a variance from the DEQ may result in revocation of the City's overall water permit exemption status, as provided by the rules and regulations of DEQ.

*(Ord. No. 20781)*

## Section 1002. Compliance with standards.

**A.** All municipal water systems, facilities and connections shall be constructed in compliance with the "Public Water Supply Construction Standards" established by the Oklahoma Department of Environmental Quality or City standards, whichever is more stringent.

**B.** No municipal water system or water distribution line shall be constructed until plans and specifications meeting the criteria in Subsection A, above, are reviewed, approved and signed by the responsible licensed professional engineer in charge of the project.

*(Ord. No. 20781)*

## Section 1003. Municipal sewer/wastewater systems—State permit exemption.

**A. Purpose.** The purpose of this section is to qualify for exemptions from the Department of Environmental Quality construction permit requirement for wastewater collection systems, pursuant to Chapter 655 of the Oklahoma Administrative Code, entitled "Water Pollution Control Construction Standards," adopted by the Board of Environmental Quality on November 24, 1993. Gravity sewage construction lines not larger than twelve (12) inches in diameter are the only systems eligible for the exemption from the requirements of issuance of state construction permits, provided all systems which are constructed in whole or in part with funds from the United States EPA and/or with funds administered by the DEQ shall not be exempt from the requirement of obtaining a state construction permit.

**B. System and connection requirement.** All municipal sewer/wastewater systems and any connection thereto shall be constructed in compliance with the applicable regulations, rules and requirements of the DEQ or the applicable regulations, rules and requirements of the City, whichever standard is more stringent.

**C. Approval required.** All sewer line extensions to sewage treatment plants, lift stations and interceptor lines shall be approved by the Director prior to actual construction.

**D. Approval withheld.** Approval shall be withheld if the sewage treatment plant, lift station or interceptor line to which the sewer line extension is to attach has reached or, with the addition of the proposed sewer line extension, would reach treatment or hydraulic capacities. Further, approval shall also be withheld if the sewer line extension does not meet or exceed the standards of the DEQ and the City, or may be withheld for any other reason.

**E. Review and approval of plans and specifications for sewage collection systems.** Prior to construction, plans and specifications for sewage collection systems shall be reviewed, approved and signed by a professional engineer licensed by the State of Oklahoma and designated by the Director as being the responsible professional engineer in charge of connections to the sewage collection systems for the municipality. All approved plans and specifications shall be signed by the designated professional engineer indicating approval to proceed with construction in accordance with the approved plans and specifications. No sewage collection system construction shall proceed until plans and specifications have been reviewed and approved in this manner.

**F. Listing of projects.** The Director or his designated representative shall supply DEQ with one (1) copy of all such approved plans and specifications together with a listing of all approved projects monthly, on or before the fifteenth of each month following approval of the plans and specifications for each project. The listing shall include the name, location and date of approval of each such project.

**G. Inspection.** The Director or his designated representative shall inspect each approved project and shall prohibit commencement of any sewage collection system construction or connection prior to approval of plans and specifications in accordance with this chapter.

**H. System operation.** The City shall operate its sewer/wastewater systems in compliance with the applicable rules of DEQ.

**I. System capacity exception.** Should any proposed City sewer line extension bring a connected lift station, interceptor line or sewage treatment plant to its design capacity, the construction or connection of the proposed sewer line extension may still be allowed, to the extent approved by DEQ, under the following circumstances:

**1.** The City shall apply in writing to the DEQ for a variance allowing the specified construction to proceed within the area;

**2.** The application shall detail what the City will do to ensure that the construction or connection will not worsen any problems or treatment capacity, flow or bypassing of sewage;

**3.** The application shall include timetables for correcting any stated problems, prior to the connection of any additional loadings or flows, as a result of the construction for which approval is sought;

**4.** The application, if approved, shall become a condition of any permit issued for such construction by the DEQ;

**5.** Approval of construction in an area at design capacity which has not received such a variance from the DEQ may result in revocation of the City's overall sewer line permit exemption status, as provided by the rules and regulations of DEQ.

*(Ord. No. 20781)*

### Section 1004. Requirements for small sewage treatment systems.

Small sewage treatment systems may be installed under the following circumstances:

**A.** Small sewage treatment systems shall be constructed in accordance with Title 17, Tulsa Revised Ordinances, Chapter 9, Septic Tanks; and

**B.** A permit shall be obtained from the Tulsa City-County Health Department; and

**C.** If a subsurface system is to be installed, a soil percolation test shall be required. The soil percolation test shall follow the procedure set forth by ODH Bulletin No. 600 and shall be performed by a registered professional sanitarian, registered professional engineer or registered land surveyor, and submitted to the Tulsa City-County Health Department; and

**D.** Prior to backfilling a subsurface system or placing a lagoon into service, a final inspection shall be performed and approval obtained from the Tulsa City-County Health Department, or persons certified by the Oklahoma State Department of Health.

*(Ord. No. 20781)*

### Section 1005. Variances.

Whenever the City has declared a moratorium on water or sewer line extensions, improvements or modifications in a portion of the City, construction may be allowed in that portion to the extent approved by the Commissioner of Health of the State of Oklahoma.

*(Ord. Nos. 16384, 20781)*

### Section 1006. Permit transfer and cancellation.

A permit shall not be assigned, transferred or sold to any other person and shall not be valid for construction at a premise or location different from the premise or location contained in the application. A permit shall be void if construction is not commenced within

one (1) year of the date of its issuance. If a permit becomes void by reason of failure to commence construction within the required period, a new application for a permit shall be filed with the City prior to construction, and all regulations and standards in effect at the time of the new application shall be in force and effect.

*(Ord. Nos. 16384, 20781)*

### Section 1007. Fee schedule.

The following fees shall be charged by the City for the review and approval of plans and specifications for a permit pursuant to this chapter:

| | |
|---|---|
| Line extensions or improvements | $5.00/100 feet |
| (rounded to the nearest 100 feet) | ($50.00 minimum) |

*(Ord. Nos. 16384, 20781)*

### Section 1008. Inspection required.

Before they are placed into service, all extensions or improvements of the water and sewer lines of the City shall be inspected, tested and approved by the inspection staff of the City to ensure that construction is in accordance with approved plans and specifications.

*(Ord. Nos. 16384, 20781)*

### Section 1009. Rules and regulations.

The Director shall develop such standards, rules and regulations which are deemed necessary to protect the public peace, health and safety and for the administration and enforcement of this chapter, which shall be approved by the Utility Board and Council of the City before they become effective.

*(Ord. Nos. 16384, 20781)*

## CHAPTER 11. PENALTIES

Section 1100. Penalties.

### Section 1100. Penalties.

**A.** Unless otherwise specifically provided in this title, any person violating any of the provisions of this title shall be guilty of an offense and, upon conviction thereof, shall be punished by imprisonment in the City jail for a period of not more than ninety (90) days and/or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs; provided, however, that anyone found guilty of violating any of the provisions of Chapter 12 of this title shall be punished by imprisonment in the City jail for a period of not more than ninety (90) days and/or by a fine of not more than One Thousand Dollars ($1,000.00), excluding costs. Each day of such violation shall constitute a separate offense.

**B.** Any person who shall violate any of the provisions of this title with respect to obtaining water or sewer service through connection to any water or sewer line under the jurisdiction of the City of Tulsa for its operation, repair and maintenance, upon substantiation of the facts, shall be denied water or sewer service until such violation is abated.

*(Ord. No. 17420)*

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## CHAPTER 12. SEWER USE*

Section 1200. General provisions.
Section 1201. General sewer use requirements.
Section 1202. Pretreatment of wastewater.
Section 1203. Wastewater discharge permit application.
Section 1204. Wastewater discharge permit issuance process.
Section 1205. Reporting requirements.
Section 1206. Compliance monitoring.
Section 1207. Confidential information.
Section 1208. Publication of users in significant noncompliance.
Section 1209. Administrative enforcement remedies.
Section 1210. Judicial enforcement remedies.
Section 1211. Supplemental enforcement action.
Section 1212. Affirmative defenses to discharge violations.
Section 1213. Permit fees.

### Section 1200. General provisions.

**A. Purpose and Policy.** This chapter sets forth uniform requirements for Users of the Publicly Owned Treatment Works for the City of Tulsa and enables the City of Tulsa to comply with all applicable state and federal laws, including the Clean Water Act, 33 U.S.C., Section 1251, *et seq.*; and the General Pretreatment Regulations, Title 40 *Code of Federal Regulations* (C.F.R.) Part 403. The objectives of this chapter are:

**1.** To prevent the introduction of pollutants into the Publicly Owned Treatment Works (POTW) that will interfere with its operation;

**2.** To prevent the introduction of pollutants into the POTW that will pass through the POTW, inadequately treated, into receiving waters, or otherwise be incompatible with the POTW;

**3.** To protect both POTW personnel who may be affected by wastewater and biosolids in the course of their employment and the general public;

**4.** To promote reuse and recycling of industrial wastewater and biosolids from the POTW;

**5.** To promote the use of pollution prevention practices; and

**6.** To enable the City of Tulsa, the Tulsa Metropolitan Utility Authority and the Regional Metropolitan Utility Authority to comply with its Oklahoma Pollutant Discharge Elimination System permit conditions, sludge use and disposal requirements, and any other federal or state laws to which the POTW is subject.

This chapter shall apply to all Users of the POTW. The chapter authorizes the issuance of wastewater discharge permits; provides for monitoring, compliance, and enforcement activities; establishes administrative review procedures; requires User reporting; provides for the setting of fees for the equitable distribution of costs resulting from the program established in this chapter and encourages the use of pollution prevention practices.

***Editor's note—**Ord. No. 22851, § 1, adopted March 28, 2013, amended Ch. 12, in its entirety, to read as herein set out. Prior to inclusion of said ordinance, Ch. 12 pertained to similar subject matter. See also the Code Comparative Table.

**B. Administration.** Except as otherwise provided in this chapter, the Water and Sewer Director of the City of Tulsa shall administer, implement, and enforce the provisions of this chapter. Any powers granted to or duties imposed upon the Director may be delegated by the Director to a duly authorized employee of the City of Tulsa.

**C. Abbreviations.** The following abbreviations, when used in this chapter, shall have the designated meanings:

| | |
|---|---|
| **BMP** | Best Management Practice |
| **BOD** | Biochemical Oxygen Demand |
| **CFR** | Code of Federal Regulations |
| **COD** | Chemical Oxygen Demand |
| **EPA** | U.S. Environmental Protection Agency |
| **gpd** | gallons per day |
| **mg/l** | milligrams per liter |
| **NPDES** | National Pollutant Discharge Elimination System |
| **ODEQ** | Oklahoma Department of Environmental Quality |
| **OPDES** | Oklahoma Pollutant Discharge Elimination System |
| **POTW** | Publicly Owned Treatment Works |
| **RCRA** | Resource Conservation and Recovery Act |
| **SIU** | Significant Industrial User |
| **TSS** | Total Suspended Solids |
| **U.S.C.** | United States Code |
| **WWTP** | Wastewater Treatment Plant |

**D. Definitions.** Unless a provision explicitly states otherwise, the following terms and phrases, as used in this chapter, shall have the meanings hereinafter designated.

**Act** or "**the Act.**" The Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C., Sections 1251, *et seq*.

**Approval Authority.** The State of Oklahoma Department of Environmental Quality.

**Authorized Representative of the User.**

**1.** If the User is a corporation:

**a.** The president, secretary, treasurer, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation, or;

**b.** The manager of one or more manufacturing, production, or operating facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for control mechanism requirements; and where authority has been assigned or delegated to the manager in accordance with corporate procedures.

**2.** If the User is a partnership or sole proprietorship: a general partner or proprietor, respectively.

**3.** If the User is a federal, state, or local governmental facility: a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or their designee.

The individuals described in paragraphs 1. through 3., above, may designate a duly authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the City of Tulsa.

**Available Cyanide.** Available cyanide consists of cyanide ion (CN), hydrogen cyanide in water ($HCN_{aq}$), and the cyano-complexes of zinc, copper, cadmium, mercury, nickel, and silver, as measured by EPA Method OIA-1677: Available Cyanide by Flow Injection, Ligand Exchange, and Amperometry.

**Best Management Practices** or **BMPs.** Schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in Section 1201 of this chapter. BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

**Biochemical Oxygen Demand** or **BOD.** The quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures for five (5) days at 20° Centigrade usually expressed as a concentration (e.g., mg/l).

**Categorical Pretreatment Standard** or **Categorical Standard.** Any regulation containing pollutant discharge limits promulgated by the EPA in accordance with Sections 307(b) and (c) of the Act (33 U.S.C., Section 1317) which apply to a specific category of Users and which appear in 40 C.F.R. Chapter I, Subchapter N, Parts 405—471, and amendments.

**Categorical Industrial User.** An Industrial User subject to a Categorical Pretreatment Standard or Categorical Standard.

**Chemical Oxygen Demand** or **COD.** A measure of oxygen use equivalent to the portion of organic matter that is susceptible to oxidation by a strong chemical oxidizing agent utilizing procedures approved by 40 CFR Part 136.

**City** or **Control Authority.** The City of Tulsa, Oklahoma, a municipal corporation, acting through the Tulsa Metropolitan Utility Authority, the Regional Metropolitan Utility Authority, and duly authorized agents of the City of Tulsa.

**Director.** The Director of the City of Tulsa's Water and Sewer Department or the person succeeding to this person's duties and functions by whatever name known, or this person's duly authorized representative.

**Domestic Wastewater.** Wastewater from kitchens, laundry rooms, lavatories, bathrooms, toilets and similar facilities discharging into the sanitary sewers from dwellings (including apartment buildings and houses), office buildings, factories and institutions. The term does not include storm water, surface water, groundwater, boiler and cooling tower wastewater, wastewater from health care facilities, hauled wastes, or wastewater generated by commercial or industrial processes.

**Environmental Protection Agency** or **EPA.** The U.S. Environmental Protection Agency or, where appropriate, the Regional Water Management Division Director, or other duly authorized official of said agency.

**Existing Source.** Any source of discharge that is not a "New Source."

**Flow-Proportional Composite Sample.** A sample of wastewater composed of samples collected at equal intervals, throughout the operational day of a user with the volume of each sample being proportional to the flowrate of the discharge. A minimum of four (4) samples must be taken. The samples must be representative of the discharge of the facility.

**Grab Sample.** An individual sample which is taken from a waste stream on a one-time basis without regard to the flow in the waste stream and over a period of time not exceeding fifteen (15) minutes.

**Grease Interceptor, Grease Separator or Grease Trap.** Plumbing devices designed to intercept greases and solids before they enter the sanitary system.

**Hauled Wastewater.** Any wastes delivered by truck or railcar.

**Haikey Creek WWTP.** Wastewater treatment facility located at approximately: N ½ of NW ¼ of Section 20, Township 17 North, Range 14 East of Indian Meridian, Tulsa County, state of Oklahoma. The Haikey Creek WWTP is owned by the Regional Metropolitan Utility Authority.

**Indirect Discharge** or **Discharge.** The introduction of pollutants into the POTW from any non-domestic source.

**Instantaneous Maximum Allowable Discharge Limit.** The maximum concentration of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composite sample collected, independent of the industrial flow rate and the duration of the sampling event.

**Interference.** A discharge, which alone or in conjunction with a discharge or discharges from other sources, inhibits or disrupts the POTW, its treatment processes or operations or its sludge processes, use or disposal; and therefore, is a cause of a violation of one of the City's NPDES or OPDES permits or of the prevention of sewage sludge use or disposal in compliance with any of the following statutory/regulatory provisions or permits issued thereunder, or any more stringent state or local regulations: Section 405 of the Act; the Solid Waste Disposal Act, including Title II commonly referred to as the Resource Conservation and Recovery Act (RCRA); any state regulations contained in any state sludge management plan prepared pursuant to Subtitle D of the Solid Waste Disposal Act; the Clean Air Act; the Toxic Substances Control Act; and the Marine Protection, Research, and Sanctuaries Act.

**Local Limits.** Specific discharge limits developed and enforced by the City upon industrial or commercial facilities to implement the general and specific discharge prohibitions listed in 40 CFR §403.5(a)(1) and (b).

**Lower Bird Creek WWTP.** Wastewater treatment facility located at approximately: SW ¼ of SW ¼ of Section 17, Township 20 North, Range 15 East of Indian Meridian, Rogers County, state of Oklahoma. The Lower Bird Creek WWTP is owned by the Tulsa Metropolitan Utility Authority.

**Medical Waste.** Isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

**New Source.**

1. Any building, structure, facility, or installation from which there is (or may be) a discharge of pollutants, the construction of which commenced after the publication of proposed Pretreatment Standards under Section 307(c) of the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:
   a. The building, structure, facility, or installation is constructed at a site at which no other source is located;
   b. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or
   c. The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.
2. Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of subparagraphs 1.b or 1.c, of this definition, but otherwise alters, replaces, or adds to existing process or production equipment.
3. Construction of a New Source as defined under this definition has commenced if the owner or operator has:
   a. Begun, or caused to begin, as part of a continuous onsite construction program,
      (1) Any placement, assembly, or installation of facilities or equipment; or
      (2) Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities, which is necessary for the placement, assembly, or installation of new source facilities or equipment; or
   b. Entered into a binding contractual obligation for the purchase of facilities or equipment that is intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this definition.

**Non-contact Cooling Water.** Water used for cooling, which does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

**Northside WWTP.** A Wastewater treatment facility located at approximately: S ½ of SE ¼ of Section 6, Township 20 North, Range 14 East of Indian Meridian, Tulsa County, state of Oklahoma. The Northside WWTP is owned by the Tulsa Metropolitan Utility Authority.

**Pass Through.** A discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the POTW's, NPDES or OPDES permit, including an increase in the magnitude or duration of a violation.

**Person.** Any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity; or their legal representatives, agents, or assigns. This definition includes all federal, state, and local governmental entities.

**pH.** A measure of the acidity or alkalinity of a solution, expressed in standard units.

**Pollutant.** Dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, Medical Wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, municipal, agricultural and industrial wastes, and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, or odor).

**Pollution Prevention.** The use of materials, procedures or practices that reduce or eliminate the concentration of pollutants or waste at the source. The hierarchy for the management of wastes is: Source Reduction, Recycling, Treatment, and Disposal. Source Reduction is considered to be the most desirable and Disposal the least desirable waste management practice.

**Pretreatment.** The reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to, or in lieu of, introducing such pollutants into the POTW. This reduction or alteration can be obtained by physical, chemical, or biological processes; by process changes; or by other means, except by diluting the concentration of the pollutants unless allowed by an applicable Pretreatment Standard.

**Pretreatment Requirements.** Any substantive or procedural requirement related to Pretreatment imposed on a User, other than a Pretreatment Standard.

**Pretreatment Standards** or **Standards.** Pretreatment Standards shall mean prohibited discharge standards, Categorical Pretreatment Standards, and Local Limits.

**Prohibited Discharge Standards** or **Prohibited Discharges.** Absolute prohibitions against the discharge of certain substances; these prohibitions appear in Section 1201.A of this chapter.

**Publicly Owned Treatment Works** or **POTW.** A treatment works, as defined by Section 212 of the Act (33 U.S.C., Section 1292), which is owned or operated by the City. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of sewage or industrial wastes of a liquid nature and any conveyances which convey wastewater to a treatment plant.

**Septic Tank Waste.** Liquid or solid material removed from a septic tank, cesspool, portable toilet, Type III marine sanitation device, or similar treatment works that receives only domestic waste.

**Sewage.** Human excrement and gray water (household showers, dishwashing operations, etc.).

**Significant Industrial User.** Except as provided in paragraphs 3. and 4. of this definition, a Significant Industrial User is:

**1.** A User subject to Categorical Pretreatment Standards.

**2.** A User that:

**a.** Discharges an average of twenty-five thousand (25,000) gpd or more of process wastewater to the POTW (excluding domestic, non-contact cooling, and boiler blowdown wastewater);

**b.** Contributes a process wastestream which makes up five percent (5%) or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or

**c.** Is designated as such by the City on the basis that it has a reasonable potential for adversely affecting the POTW's operation or for violating any Pretreatment Standard or requirement.

**3.** Upon a finding that a User meeting the criteria in paragraph 2. of this definition, has no reasonable potential for adversely affecting the POTW's operation or for violating any Pretreatment Standard or requirement, the City may at any time, on its own initiative or in response to a petition received from a User, and in accordance with procedures in 40 C.F.R. § 403.8(f)(6), determine that such User should not be considered a Significant Industrial User.

**4.** The Director may determine that an Industrial User subject to Categorical Pretreatment Standards is a Non-Significant Categorical Industrial User rather than a Significant Industrial User, on a finding that the Industrial User never discharges more than 100 gallons per day (gpd) of total Categorical wastewater (excluding domestic, non-contact cooling and boiler blowdown wastewater, unless specifically included in the Pretreatment Standard) and the following conditions are met:

**a.** The Industrial User, prior to City's finding, has consistently complied with all applicable Categorical Pretreatment Standards and requirements;

**b.** The Industrial User annually submits the certification statement required in paragraph 1205.N.2 of this chapter, together with any additional information necessary to support the certification statement; and

**c.** The Industrial User never discharges any untreated concentrated wastewater.

**Slug Load** or **Slug Discharge.** Any discharge at a flow rate or concentration, which could cause a violation of the prohibited discharge standards in Section 1201 of this chapter. A Slug Discharge is any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge, which has a reasonable potential to cause Interference or Pass Through, or in any other way violate the POTW's regulations, Local Limits or permit conditions.

**Southside WWTP.** Wastewater treatment facility located at approximately: W ½ of NW ¼ of Section 36, Township 19 North, Range 12 East of Indian Meridian, Tulsa County, State of Oklahoma. The Southside WWTP is owned by the Tulsa Metropolitan Utility Authority.

**Storm Water.** Any flow occurring during or following any form of natural precipitation, and resulting from such precipitation, including snowmelt.

**Total Suspended Solids** or **Suspended Solids.** The total suspended matter that floats on the surface of, or is suspended in, water, wastewater, or other liquid, and which is removable by laboratory filtering.

**Time-Proportional Composite Sample.** A sample of wastewater composed of samples collected at equal intervals, throughout the operational day of a User. The volume of each sample so collected must be equal. A minimum of four (4) samples must be taken. The samples must be representative of the discharge of the facility.

**User** or **Industrial User.** A source of indirect discharge.

**Utility Authority.** For discharges to the Northside, Southside, and Lower Bird Creek wastewater treatment plants, utility authority shall mean Tulsa Metropolitan Utility Authority, or TMUA. For discharges to the Haikey Creek Wastewater Treatment Plant, utility authority shall mean Regional Metropolitan Utility Authority, or RMUA.

**UV Transmittance.** Fraction of ultraviolet light at a 254 nanometer (NM) wavelength that passes through a water sample.

**Wastewater.** Liquid and water-carried industrial wastes and sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated, which are contributed to the POTW.

**Wastewater Treatment Plant** or **Treatment Plant** or **WWTP.** That portion of the POTW that is designed to provide treatment of municipal sewage and industrial waste.

**E. Computation of Time.** In computing any period of time prescribed or allowed by this chapter, the day of the act, event, or default from which the designated period of time begins to run shall not be included. The last day of the period computed shall be included, unless it is a legal holiday as recognized by the City of Tulsa, or any other day when the office of the City Clerk does not remain open for public business until its regularly scheduled closing time, in which event the period shall run until the end of the next day which is not a legal holiday or a day when the office of the City Clerk does not remain open for public business until its regularly scheduled closing time. Unless the context of a period of time clearly indicates otherwise, a period of time prescribed in days shall be calendar days, including holidays and any other day when the office of the City Clerk is not open for public business until its regularly scheduled closing time.

*(Ord. Nos. 17419, 19991; Ord. No. 22851, § 1, 3-28-2013; Ord. No. 23214, § 1, 11-6-2014)*

## Section 1201. General sewer use requirements.

### A. Prohibited Discharge Standards.

1. **General Prohibitions.** No User shall introduce or cause to be introduced into the POTW any Pollutant or Wastewater that causes Pass Through or interference. These general prohibitions apply to all Users of the POTW whether or not they are subject to Categorical Pretreatment Standards or any other federal, state, or local Pretreatment Standards or requirements.
2. **Specific Prohibitions.** No User shall introduce or cause to be introduced into the POTW the following Pollutants, substances, or Wastewater:
   **a.** Pollutants which create a fire or explosive hazard in the POTW, including, but not limited to, wastestreams with a closed-cup flashpoint of less than 140F° (60°C) using the test methods specified in 40 C.F.R. §261.21;

**b.** Wastewater having a pH less than 5.0 or greater than 11.0, or otherwise causing corrosive structural damage to the POTW or equipment;

**c.** Solid or viscous substances in amounts which will cause obstruction of the flow in the POTW or interference;

**d.** Pollutants, including oxygen-demanding Pollutants (BOD, etc.), released in a discharge at a flow rate and/or Pollutant concentration which, either singly or by interaction with other Pollutants, will cause interference with the POTW;

**e.** Wastewater or vapor having heat in amounts which will inhibit biological activity in the Treatment Plant or cause Interference, but in no case Wastewater or vapor which causes the temperature at the introduction into the Treatment Plant to exceed 104°F (40°C);

**f.** Petroleum oil, non-biodegradable cutting oil, or products of mineral oil origin, in amounts that will cause Interference or Pass Through;

**g.** Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems;

**h.** Trucked or hauled Pollutants, except at discharge points designated by the Director in accordance with Subsection 1201.F. of this chapter;

**i.** Noxious or malodorous liquids, gases, solids, or other wastewater which, either singly or by interaction with other wastes, are sufficient to create a public nuisance or a hazard to life, or to prevent entry into the sewers for maintenance or repair;

**j.** Wastewater which imparts color which cannot be removed by the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions, which consequently imparts color to the treatment plant's effluent, thereby violating one (1) of the City's OPDES permits;

**k.** Wastewater containing any radioactive wastes or isotopes except in compliance with applicable state or federal regulations;

**l.** Storm water, surface water, ground water, artesian well water, roof runoff, subsurface drainage, unless specifically authorized by the Director;

**m.** Sludge, screenings, or other residues from the Pretreatment of industrial wastes;

**n.** Medical wastes, except as specifically authorized by the Director in a wastewater discharge permit;

**o.** Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail a toxicity test;

**p.** Detergents, surface-active agents, or other substances which may cause excessive foaming in the POTW; or

**q.** The use of hot water, enzymes, chemicals, or other agents or devices causing improperly treated Pollutants such as oil and grease to pass into the POTW, is prohibited.

**r.** Materials that inhibit UV transmittance as measured at the wastewater treatment plants and impact the ability of the wastewater treatment plants' treatment processes to achieve compliance with disinfection permit requirements.

Pollutants, substances, or Wastewater prohibited by this section shall not be processed or stored in such a manner that they could be discharged to the POTW.

**B. National Categorical Pretreatment Standards.** The Categorical Pretreatment Standards found in 40 C.F.R. Chapter I, Subchapter N, Parts 405—471, are hereby incorporated.

**1.** Where a Categorical Pretreatment Standard is expressed only in terms of either the mass or the concentration of a Pollutant in Wastewater, the Director may impose equivalent concentration or mass limits in accordance with 40 C.F.R. § 403.6(c).

**2.** When the limits in a Categorical Pretreatment Standard are expressed only in terms of mass of Pollutant per unit of production, the Director may convert the limits to equivalent limitations expressed either as mass of Pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual Industrial Users.

**3.** When Wastewater subject to a Categorical Pretreatment Standard is mixed with wastewater not regulated by the same standard, the Director shall impose an alternate limit using the combined wastestream formula in 40 C.F.R. § 403.6(e).

**4.** A User may obtain a variance from a Categorical Pretreatment Standard if the Users can prove, pursuant to the procedural and substantive provisions in 40 C.F.R. § 403.13, that factors relating to its discharge are fundamentally different from the factors considered by EPA when developing the Categorical Pretreatment Standard.

**5.** The Director may convert the mass limits of the Categorical Pretreatment Standards of 40 CFR Parts 414, 419, and 455 to concentration limits for purposes of calculating limitations applicable to individual Industrial Users. The conversion is at the discretion of the Director.

**6.** Once included in its permit, the Industrial User must comply with the equivalent limitations developed in this section in lieu of the promulgated Categorical Standards from which the equivalent limitations were derived.

**7.** Many Categorical Pretreatment Standards specify one (1) limit for calculating maximum daily discharge limitations and a second limit for calculating maximum monthly average, or four-day average, limitations. Where such Standards are being applied, the same production or flow figure shall be used in calculating both the average and the maximum equivalent limitation.

**8.** Any Industrial User operating under a permit incorporating equivalent mass or concentration limits calculated from a production-based Standard shall notify the Director within two (2) business days after the User has a reasonable basis to know that the production level will significantly change within the next calendar month. Any User not notifying the Director of such anticipated change will be required to meet the mass or concentration limits in its permit that were based on the original estimate of the long term average production rate.

**C. Local Limits.** Except as provided for in Subsections 1201.G and 1201.N of this chapter, no person shall discharge Wastewater to the POTW containing in excess of the following instantaneous maximum allowable discharge limits as measured by procedures set out in 40 C.F.R. Part 136:

| POLLUTANT | WWTP WHERE WASTEWATER IS PROCESSED PRIOR TO DISCHARGE INTO THE ENVIRONMENT | | | |
|---|---|---|---|---|
| | Southside | Northside | Haikey Creek | Lower Bird Creek |
| Arsenic | 1.5 mg/l | 0.3 mg/l | 2.0 mg/l | 5.0 mg/l |
| Cadmium | 0.2 mg/l | 0.09 mg/l | 0.5 mg/l | 0.5 mg/l |
| Chromium | 5.0 mg/l | 5.0 mg/l | 2.8 mg/l | 5.0 mg/l |
| Copper | 1.7 mg/l | 1.7 mg/l | 4.0 mg/l | 0.9 mg/l |
| Cyanide | 3.2 mg/l | 3.2 mg/l | 0.8 mg/l | 0.5 mg/l |
| Lead | 1.2 mg/l | 1.2 mg/l | 1.5 mg/l | 1.7 mg/l |
| Mercury | 0.04 mg/l | 0.0002 mg/l | 0.43 mg/l | 0.05 mg/l |
| Molybdenum | 2.7 mg/l | 2.7 mg/l | 33.8 mg/l | 2.75 mg/l |
| Nickel | 2.7 mg/l | 2.7 mg/l | 5.0 mg/l | 3.25 mg/l |
| Silver | 1.6 mg/l | 1.6 mg/l | 0.5 mg/l | 2.1 mg/l |
| Zinc | 6.0 mg/l | 6.0 mg/l | 5.0 mg/l | 4.1 mg/l |
| Oil & Grease-polar | 100 mg/l | 100 mg/l | 100 mg/l | 100 mg/l |
| Oil & Grease-nonpolar | 100 mg/l | 100 mg/l | 100 mg/l | 100 mg/l |

Except as set forth by paragraph 1202.B.4.d of this chapter, the above limits apply at the point where the wastewater is discharged to the POTW. All concentrations for metallic substances are for "total" metal, unless indicated otherwise. Compliance with the cyanide limitation may be demonstrated by measuring for either total cyanide or available cyanide. Compliance with Oil & Grease - polar and Oil & Grease - nonpolar limitations may be demonstrated by measuring for Oil & Grease - Hexane Extractable Materials (HEM).

The Director may impose mass limitations in addition to or in place of the concentration-based limits above.

**D.** The Director may develop Best Management Practices (BMPs), by ordinance or in individual wastewater discharge permits or general permits, to implement Local Limits and the requirements of Subsection 1201.A.

**E. Dilution.** No User shall increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance with a discharge limitation unless expressly authorized by an applicable Pretreatment Standard or requirement. No User shall discharge, without justification, large volumes of non-industrial process Wastewater. The Director may impose mass limitations on Users who commingle Wastewater with different Pollutant or chemical characteristics or in other cases when the imposition of mass limitations is appropriate.

**F. Hauled Wastewater.** Hauled Wastewater may be introduced into the POTW only at locations designated by the Director, and at such times as are established by the Director. The Director may require waste haulers to obtain Wastewater discharge permits. The Director may require the waste hauler to provide a representative sample and/or an analysis of any load prior to discharge. Waste haulers must provide a

waste-tracking form for every load. This form shall include, at a minimum, the name and address of the waste hauler, permit number, truck identification, names and addresses of sources of waste, date and time the waste hauler received the waste, and volume and characteristics of waste. Waste haulers must comply with all applicable ODEQ licensing requirements. The Director reserves the right to reject any load of hauled waste.

**G. Application of Best Management Practices.** Upon petition to and approval by the Director, Users may, in lieu of monitoring for one (1) or more Local Limits set forth in Subsection 1201.C, develop and implement a Best Management Practice policy. Once approved by the Director, a facility's BMP becomes a fully enforceable local limit. After approval of a BMP, the Director shall issue the facility a Certificate of BMP Approval. Facilities failing to abide by an approved BMP will be subject to: the Local Limits set forth in Subsection 1201.C; enforcement actions set out in Sections 1209, 1210, and 1211; or obtaining a permit as set forth in Sections 1203 and 1204 of this chapter.

1. **BMP Policy Components.** The minimum components of an approved BMP include the following:
   - **a.** A description of the facility's industrial processes;
   - **b.** A detailed description of the facility's Wastewater treatment operations;
   - **c.** A list and description of the chemicals used or stored at the facility;
   - **d.** Policies and procedures for employee training;
   - **e.** A detailed description of the facility's pollution prevention policies and procedures including a description of the methods used for minimizing, to the greatest practical extent, adverse environmental impact; and
   - **f.** Other information as required by the Director.
2. **Certificate of BMP Approval.** Upon approval of a BMP, the Director will issue the facility a Certificate of BMP Approval. Until the issuance of a Certificate of BMP Approval, facilities are subject to the Local Limits set out in Subsection 1201.C. A Certificate of BMP Approval shall be issued for a specified period of time, not to exceed five (5) years from the effective date of the certificate. A Certificate of BMP Approval may be issued for a period less than five (5) years, at the discretion of the Director.
3. **Transfer of BMP Approval.** A certificate of BMP approval may be transferred to a new owner or operator only after at least thirty-day advance notice is given to the Director. The notice to the Director must include a written certification by the new owner or operator which:
   - **a.** States that the new owner and/or operator has no immediate intent to change the facility's operations;
   - **b.** Identifies the specific date on which the transfer is to occur; and
   - **c.** Acknowledges full responsibility for complying with the existing certificate of BMP approval.
4. **Revocation of BMP Approval.** The Director may revoke a Certificate of BMP Approval for good cause, including but not limited to the following reasons:
   - **a.** A violation of any of the prohibited discharge standards set forth in Subsection 1201.A;

**b.** Failure to notify the Director of significant changes to the facility or the type of Wastewater discharged from the facility;

**c.** Misrepresentation or failure to fully disclose all relevant facts in the request for certificate of BMP approval;

**d.** Failure to update and revise a facility's BMP as needed, and submit such changes to the Director within thirty (30) days of such change(s);

**e.** Refusing to allow the Director timely access to the facility premises and records;

**f.** Failure to comply with an enforcement action;

**g.** Failure to complete a Wastewater survey;

**h.** A change in operation or process, which would require the facility to obtain a wastewater discharge permit;

**i.** Failure to provide advance notice of the transfer of business ownership; or

**j.** Failure to comply with the provisions and intent of an approved BMP.

**H. Approval Required.** The Director may require review and acceptance prior to discharge into the POTW of Wastewater with any of the following properties:

**1.** A BOD concentration greater than two hundred fifty (250) milligrams per liter;

**2.** A COD concentration greater than five hundred (500) milligrams per liter;

**3.** A TSS concentration greater than two hundred fifty (250) milligrams per liter; or

**4.** The potential to be a prohibited discharge.

**I. Wastewater with Excessive BOD or Suspended Solids.** Users discharging wastewater into the POTW which exhibit none of the characteristics prohibited by this chapter, other than BOD or TSS concentrations in excess of that found in typical domestic wastewater (less than two hundred fifty (250) mg/l for either BOD or TSS or five hundred (500) mg/l for COD), may be subject to the following requirement(s):

**1.** Pretreat the Wastewater to the BOD, COD and TSS concentrations found in typical domestic Wastewater; or

**2.** These wastes may be discharged into the POTW provided the following requirements are met:

**a.** The Wastewater will not cause damage to the POTW.

**b.** The Wastewater will not impair the Wastewater treatment process.

**c.** The User possesses an industrial wastewater discharge permit, if required by the Director.

**d.** The User is assessed a surcharge over and above the published sewer rates, if deemed appropriate by the Director.

**J. Jurisdictional and Multi-Jurisdictional Procedures.** Any Industrial User desiring to utilize the City of Tulsa sanitary sewer system, whether within or outside the corporate limits of the City, by use of or discharge into the system, shall agree to the provisions set forth in this chapter and shall agree to accept any and all penalty provisions and enforcement actions provided herein.

**K. City's Right of Revision.** The City reserves the right to establish by ordinance, wastewater discharge permit; or order, more stringent standards or requirements on discharges to the POTW.

**L. Deny or Condition.** The Director may deny or condition new or increased contributions of Pollutants, or changes in the nature of Pollutants, to the POTW by Industrial Users where such contributions may not meet applicable Pretreatment Standards or requirements or where such contributions may cause the POTW to violate an OPDES permit.

**M. Special Agreement.** The Director reserves the right to enter into special agreements with Users setting out special terms under which they may discharge to the POTW. In no case will a special agreement waive compliance with a Categorical Pretreatment Standard or federal Pretreatment requirement.

**N. Sapulpa.** Users whose wastewater enters the sanitary sewer system owned by the City of Sapulpa, Oklahoma must comply with all applicable discharge restrictions set forth in the City of Sapulpa's sewer use ordinances.

*(Ord. Nos. 17419, 19991, 21538; Ord. No. 22851, § 1, 3-28-2013; Ord. No. 23214, § 2, 11-6-2014)*

**Section 1202. Pretreatment of wastewater.**

**A. Pretreatment Facilities.** Users shall provide Wastewater treatment as necessary to comply with this chapter and shall achieve compliance with all Categorical Pretreatment Standards, Local Limits, and the prohibitions set out in Section 1201 of this chapter within the time limitations specified by EPA, the state, or the Director, whichever is more stringent. Any facilities necessary for compliance shall be provided, operated, and maintained at the User's expense. Detailed plans describing such facilities and operating procedures shall be submitted to the Director for review, and shall be acceptable to the Director before such facilities are constructed. The review of such plans and operating procedures shall in no way relieve the User from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to the City under the provisions of this chapter.

**B. Additional Pretreatment Measures.**

**1.** Whenever deemed necessary, the Director may require Users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage wastestreams from industrial wastestreams, and alter such other conditions as may be necessary to protect the POTW and to determine the User's compliance with the requirements of this chapter.

**2.** The Director may require any person discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. A wastewater discharge permit may be issued solely for flow equalization.

**3.** Grease, oil, and sand interceptors shall be provided when, in the opinion of the Director, they are necessary for the proper handling of Wastewater containing excessive amounts of grease, oil or solids. Installation of interceptor systems shall be of the type and capacity approved by the Director and shall comply with

guidelines set forth in the adopted City of Tulsa Plumbing Code. All interceptors shall be located to be easily accessible for cleaning and inspection. Such interceptors shall be inspected, cleaned, and repaired regularly, as needed, by the User at their expense.

**4. Grease Interceptor Maintenance Requirements.**

**a.** Grease interceptors shall be cleaned and serviced by entities in possession of valid Grease Handling and Hauling Permits pursuant to the requirements of Chapter 14 of this title. Any User allowing a non-permitted person or entity to clean and service their grease interceptor will be in violation of this chapter.

**b.** Grease interceptors shall be pumped and cleaned at a frequency sufficient to maintain compliance with the requirements of Section 1201 of this chapter. At a minimum a grease interceptor shall be cleaned and pumped whenever the combined thickness of the floating greases and settled solids is equal to or greater than twenty-five percent (25%) of the contents of the interceptor. If repairs are required, they shall be performed within seven (7) days.

**c.** When required by the Director, Grease interceptors shall be pumped and cleaned within forty-eight (48) hours. When in the opinion of the Director the environment is threatened, the Director may require a facility to immediately cease operations until the facility's grease interceptor is cleaned and pumped.

**d.** Grease interceptors shall have monitoring locations adequate for obtaining representative effluent samples. Unless otherwise stated in an Industrial Wastewater Discharge Permit, the Local Limits set forth in Subsection 1201.C shall apply at these monitoring locations.

**e.** Users shall document all cleaning and maintenance activities performed on their Grease interceptors. Copies of Grease Hauling and Handling manifests shall be maintained on site. These records shall be maintained for a minimum of three (3) years and be available for inspection and copying by the Director.

**5.** Users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter.

**C. Accidental Discharge/Slug Control Plan.** The Director may require any User to develop, submit for approval, and implement such a plan or take such other action that may be necessary to control Slug Discharges. Alternatively, the Director may develop such a plan for any User. An accidental discharge/Slug Discharge control plan shall address, at a minimum, the following:

**1.** Description of discharge practices, including non-routine batch discharges;

**2.** Description of stored chemicals;

**3.** Procedures for immediately notifying the City of any accidental or Slug Discharges, as required by Subsection 1205.F of this chapter; and

**4.** Procedures to prevent adverse impact from any accidental Slug Discharges. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site run-off, worker training, building of containment structures or equipment, measures for containing toxic organic Pollutants (including solvents, and/or measures and equipment for emergency response).

*(Ord. Nos. 17419, 19991; Ord. No. 22851, § 1, 3-28-2013)*

## Section 1203. Wastewater discharge permit application.

**A. Wastewater Analysis.** When requested by the Director, a User must submit information on the nature, volume, and characteristics of its Wastewater within a time frame specified by the Director. The Director is authorized to prepare a form for this purpose and may periodically require Users to update this information.

**B. Wastewater Discharge Permit Requirements.**

**1.** All Significant Industrial Users are required to possess a wastewater discharge permit.

**2.** The Director may require other Users to obtain wastewater discharge permits as necessary to carry out the purposes of this chapter.

**3.** The Director may also require owners or operators of nondischarging facilities to obtain Wastewater permits. These permits require owners or operators of these facilities to have management plans in place that minimizes the potential for accidental discharges.

**4.** Any violation of the terms and conditions of a wastewater discharge permit shall be deemed a violation of this chapter and subjects the wastewater discharge permittee to the sanctions set out in Sections 1209 through 1211 of this chapter. Obtaining a wastewater discharge permit does not relieve a permittee of its obligation to comply with all federal and state Pretreatment Standards or requirements or with any other requirements of federal, state, and local law.

**5.** An application for a wastewater discharge permit must have been properly filed, and a permit issued, prior to the date upon which any User begins or recommences any discharge.

**C. Wastewater Discharge Permit Application Contents.** All Users required to obtain a wastewater discharge permit must submit a permit application. The Director may require a User to submit, as part of an application, the following information:

**1.** All information required by paragraphs 1205A.1. through 8. of this chapter;

**2.** Description of activities, facilities, and plant processes on the premises, including a list of all raw materials and chemicals used or stored at the facility;

**3.** Number and type of employees, days and hours of operation, and proposed or actual hours of operation;

**4.** Each product produced by type, amount, process or processes, rate of production, and the average and maximum flow rates for each type of discharge;

**5.** Water use and disposal information for each industrial process including maximum and average daily flow rates;

**6.** Type and amount of raw materials processed (average and maximum per day);

**7.** Site plans, floor plans, mechanical and plumbing plans, and details to show all sewers, floor drains, and appurtenances by size, location, and elevation, and all points of discharge;

**8.** Plans, drawings and descriptions of Wastewater treatment processes;

**9.** Time and duration of discharges; and

**10.** Any other information as may be deemed necessary by the Director to evaluate the wastewater discharge permit application.

Incomplete or inaccurate applications will not be processed and will be returned to the User for revision.

**D. Application Signatories and Certification.**

**1.** All wastewater discharge permit applications and User reports must be signed by an authorized representative of the User, as defined by paragraph 1200.D, and contain the certification statement required by in paragraph 1205.N.1 of this chapter.

**2.** If a designation of an authorized representative is no longer accurate because a different individual or position has responsibility for the overall operation of the facility or overall responsibility for environmental matters for the company, a new written authorization satisfying the requirements of this section must be submitted to the Director prior to or together with any reports to be signed by an authorized representative.

**3.** A facility determined to be a Non-Significant Categorical Industrial User by the Director, pursuant to the definition of Significant Categorical Industrial User, paragraph 4, in Subsection 1200.D of this chapter, must annually submit the signed certification statement as provided in paragraph 1205.N.2 of this chapter.

**E. Wastewater Discharge Permit Decision.** The Director will evaluate the data furnished by the User and may require additional information. The Director may deny any application for a wastewater discharge permit.

*(Ord. Nos. 17419, 19991; Ord. No. 22851, § 1, 3-28-2013)*

**Section 1204. Wastewater discharge permit issuance process.**

**A. Wastewater Discharge Permit Duration.** A wastewater discharge permit shall be issued for a specified time period, not to exceed five (5) years from the effective date of the permit. A wastewater discharge permit may be issued for a period less than five (5) years, at the discretion of the Director. A wastewater discharge permit will remain in effect until the issuance of a new wastewater discharge permit, or a decision is made by the Director not to issue a permit.

**B. Wastewater Discharge Permit Contents.** A wastewater discharge permit shall include such conditions as are deemed reasonably necessary by the Director to prevent pass through or interference, protect the quality of the water body receiving the treatment plant's effluent, ensure worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW,

**1.** Wastewater discharge permits contain:

**a.** A statement that indicates wastewater discharge permit issuance date, expiration date and effective date;

**b.** A statement that the wastewater discharge permit is nontransferable without prior notification to the City in accordance with Subsection 1204.D of this chapter, and provisions for furnishing the new owner or operator with a copy of the existing wastewater discharge permit;

**c.** Wastewater discharge limits, including Best Management Practices, based on applicable Pretreatment Standards;

**d.** Self-monitoring, sampling, reporting, notification, and record-keeping requirements. These requirements shall include an identification of Pollutants (or Best Management Practice) to be monitored, sampling location, sampling frequency, and sample type based on federal, state, and local law; and

**e.** A statement of applicable civil and criminal penalties for violation of Pretreatment Standards and requirements, and any applicable compliance schedule. Such schedule may not extend the time for compliance beyond that required by applicable federal, state, or local law.

**f.** Requirement for the development and impletation of a spill control plan as required by Subsection 1202.C of this chapter.

**g.** Requirement for the user to notify the Director of any changes at the facility affecting its potential for a slug discharge.

**2.** Wastewater discharge permits may contain, but need not be limited to, the following conditions:

**a.** Limits on the average and/or maximum rate of discharge, time of discharge, and/or requirements for flow regulation and equalization;

**b.** Requirements for the installation of Pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of Pollutants into the POTW;

**c.** Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the POTW;

**d.** Requirements for installation and maintenance of inspection and sampling facilities and equipment including flow measurement devices;

**e.** A statement that compliance with the wastewater discharge permit does not relieve the permittee of responsibility for compliance with all applicable federal and state Pretreatment Standards, including those which become effective during the term of the wastewater discharge permit;

**f.** A requirement for the User to meter the facility's water service independently of any other use; and

**g.** Other conditions as deemed appropriate by the Director to ensure compliance with this chapter, and state and federal laws, rules, and regulations.

**C. Wastewater Discharge Permit Modifications.** The Director may modify a wastewater discharge permit for good cause, including but not limited to the following reasons:

**1.** To incorporate any new or revised federal, state, or local Pretreatment Standards or requirements;

**2.** To address significant alterations or additions to the User's operation, processes, or Wastewater volume or character since the time of wastewater discharge permit issuance;

**3.** To require either a temporary or permanent reduction or elimination of the authorized discharge, due to a change in the POTW;

**4.** Information indicating that the permitted discharge poses a threat to the POTW, City personnel, or the receiving waters;

**5.** Violation of any terms or conditions of the wastewater discharge permit;

**6.** Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge permit application or in any required reporting;

**7.** Revision of or a grant of variance from Categorical Pretreatment Standards pursuant to 40 C.F.R. § 403.13;

**8.** To correct typographical or other errors in the wastewater discharge permit; or

**9.** To reflect a transfer of the facility ownership or operation to a new owner or operator.

**D. Wastewater Discharge Permit Transfer.** Wastewater discharge permits shall be issued to a User for a designated facility or facilities. A wastewater discharge permit shall not be reassigned, transferred, or sold to a new owner or new User, nor may it be used on different premises or for new or changed operations, unless the Director specifically gives approval.

**E. Wastewater Discharge Permit Revocation.** The Director may revoke a wastewater discharge permit for good cause, including but not limited to the following reasons:

**1.** Failure to provide prior notification to the Director of changed conditions pursuant to Subsection 1205.E of this chapter;

**2.** Misrepresentation or failure to fully disclose all relevant facts in the wastewater discharge permit application;

**3.** Falsifying self-monitoring reports;

**4.** Tampering with monitoring equipment;

**5.** Refusing to allow the Director timely access to the facility premises and records;

**6.** Failure to meet effluent limitations;

**7.** Failure to pay fines;

**8.** Failure to pay sewer charges;

**9.** Failure to meet compliance schedules;

**10.** Failure to complete a Wastewater survey or the wastewater discharge permit application;

**11.** Failure to provide advance notice of the transfer of business ownership of a permitted facility; or

**12.** Violation of any Pretreatment Standard or requirement, or any terms of the wastewater discharge permit or this chapter.

Wastewater discharge permits shall be voidable upon cessation of operations or transfer of business ownership. All wastewater discharge permits issued to a particular User are void upon the issuance of a new wastewater discharge permit to that User.

**F. Wastewater Discharge Permit Renewal.** A User with an expiring wastewater discharge permit shall apply for a wastewater discharge permit renewal by submitting a complete permit application, in accordance with Subsection 1203.C of this chapter, prior to the expiration of the User's existing wastewater discharge permit.

**G. Wastewater Discharge Permit Appeal.** Persons desiring to dispute the conditions of a wastewater discharge permit issued hereunder must file a written request for the Director to reconsider the action taken within fifteen (15) days of permit receipt. Where a request has merit, the Director may convene a hearing on the matter. In the event the User's appeal is successful, the Director may withdraw or modify the permit. If the

Director fails to act within thirty (30) days of notice of an appeal, a request for reconsideration shall be deemed to be denied. The Director's decisions whether to withdraw or modify the disputed permit shall be considered final, unless a written notice for an appeal to the applicable Utility Authority is filed with the City Clerk's office within fifteen (15) days after service on the petitioner of the Director's decision. Within fifteen (15) days following the Utility Authority's action, any party desiring to dispute the Utility Authority's action may appeal to the City Council by filing a notice of appeal in the office of the City Clerk and providing notice to the other party (if applicable) and the Director. The appeal shall be heard by the City Council at its next available meeting after the filing of the notice of appeal. Permits issued by the Director shall remain in full effect throughout the appeal process.

*(Ord. Nos. 17419, 19991; Ord. No. 22851, § 1, 3-28-2013)*

**Section 1205. Reporting requirements.**

**A. Baseline Monitoring Report.** Within either one hundred eighty (180) days after the effective date of a Categorical Pretreatment Standard, or the final administrative decision on a category determination under 40 C.F.R. §403.6(a)(4), whichever is later, existing affected categorical Users currently discharging to or scheduled to discharge to the POTW shall submit to the Director a report which contains the information listed in paragraph 5.b, below. At least ninety (90) days prior to commencement of their discharge, New Sources, and sources that become Categorical Users subsequent to the promulgation of an applicable Categorical Standard, shall submit to the Director a report which contains the information listed in paragraph 5.b, below. A New Source shall report the method of Pretreatment it intends to use to meet applicable Categorical Standards. A new source also shall give estimates of its anticipated flow and quantity of Pollutants to be discharged. Users described above shall submit the information set forth below:

1. **Identifying Information.** The name and address of the facility, including the name of the operator and owner;
2. **Environmental Permits.** A list of any environmental control permits held by or for the facility;
3. **Description of Operations.** A brief description of the nature, average rate of production, and standard industrial classifications of the operation(s) carried out by such User. This description should include a schematic process diagram that indicates points of discharge to the POTW from the regulated processes;
4. **Flow Measurement.** Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined wastestream formula set out in 40 C.F.R. § 403.6(e). The Director may allow for verifiable estimates of these flows where justified by cost or feasibility considerations;
5. **Measurement of Pollutants.**
   - **a.** The Categorical Pretreatment Standards applicable to each regulated process;
   - **b.** The results of sampling and analysis identifying the nature and concentration, and/or mass (where required by the standard or by the Director) of regulated pollutants in the discharge from each regulated process. Instantaneous, daily

maximum, and long-term average concentrations, or mass, where required, shall be reported. The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in Subsection 1205.J of this chapter; and

**c.** Sampling must be performed in accordance with procedures set out in Subsection 1205.K of this chapter.

**6. Certification.** A statement, reviewed by the User's authorized representative and certified by a qualified professional, indicating whether Pretreatment Standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional Pretreatment is required to meet the Pretreatment Standards and requirements, where required;

**7. Compliance Schedule.** If additional pretreatment and/or O&M will be required to meet the Pretreatment Standards; the shortest schedule by which the User will provide such additional Pretreatment and/or O&M. The completion date in this schedule shall not be later than the compliance date established for the applicable Pretreatment Standard. A compliance schedule pursuant to this section must meet the requirements set out in Subsection 1205.B of this chapter; and

**8. Signature and Certification.** All baseline-monitoring reports must be signed and certified in accordance with Subsection 1205.N of this chapter.

**B. Compliance Schedule Progress Reports.** The following conditions shall apply to the compliance schedule required by paragraph 1205.A.7 of this chapter:

**1.** The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional Pretreatment required for the User to meet the applicable Pretreatment Standards (such events include, but are not limited to, hiring an engineer, completing preliminary and final plans, executing contracts for major components, commencing and completing construction, and beginning and conducting routine operation);

**2.** No time increment referred to above shall exceed nine (9) months; and

**3.** The User shall submit a progress report to the Director no later than fourteen (14) days following each date in the schedule and the final date of compliance including, as a minimum, whether or not it complied with the increment of progress; the reason for any delay; and, if appropriate, the steps being taken by the User to return to the established schedule. In no event shall more than nine (9) months elapse between such progress reports to the Director.

**C. Reports on Compliance with Categorical Pretreatment Standard Deadline —90 Day Reports.** Within ninety (90) days following the date for final compliance with applicable Categorical Pretreatment Standards, or in the case of a New Source following commencement of the introduction of Wastewater into the POTW, any User subject to such Pretreatment Standards and requirements shall submit to the Director a report containing the information described in paragraphs 1205.A.4 through 1205.A.6 of this chapter. For Users subject to equivalent mass or concentration limits established in accordance with the procedures in 40 C.F.R. § 403.6(c), this report shall contain a reasonable measure of the User's long-term production rate. For all other Users subject to Categorical Pretreatment Standards expressed in terms of allowable

Pollutant discharge per unit of production (or other measure of operation), this report shall include the User's actual production during the appropriate sampling period. All compliance reports must be signed and certified in accordance with Subsection 1203.D of this chapter. All sampling and analyses shall be performed in conformance with Subsections 1205.J and 1205.K.

**D. Periodic Compliance Reports.**

**1.** All Significant Industrial Users shall submit, at a frequency determined by the Director but in no case less than twice per year, a report indicating the nature and concentration of pollutants in the discharge which are limited by Pretreatment Standards and the measured or estimated average and maximum daily flows for the reporting period. In cases where the Pretreatment Standard requires compliance with a Best Management Practice (BMP) or pollution prevention alternative, the User must submit documentation required by the Director or the Pretreatment Standard necessary to determine the compliance status of the User. In addition, the User shall fulfill the self-monitoring requirements specified in the facility's wastewater discharge permit. All periodic compliance reports must be signed and certified in accordance with Subsection 1203.D of this chapter.

**2.** All Wastewater samples must be representative of the User's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a User to keep its monitoring facility in good working order shall not be grounds for the User to claim that sample results are unrepresentative of its discharge.

**3.** If a User subject to the reporting requirement in this section monitors any pollutant more frequently than required by the Director, using the procedures prescribed in Subsections 1205.J and 1205.K of this chapter, the results of this monitoring shall be included in the report.

**E. Report of Changed Conditions.** Each User must notify the Director of any planned significant changes to the User's operations or system which might alter the nature, quality, or volume of its Wastewater at least thirty (30) days before the change. For purposes of this requirement, significant changes include, but are not limited to, flow increases of twenty-five percent (25%) or greater, and the discharge of any previously unreported Pollutants. The Director may require the User to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of a wastewater discharge permit application under Subsection 1203.C of this chapter. The Director may issue a wastewater discharge permit under Subsection 1203.E of this chapter or modify an existing wastewater discharge permit under Subsection 1204.C of this chapter in response to changed conditions or anticipated changed conditions.

**F. Report of Potential Problems.**

**1.** In the case of any discharge, including, but not limited to, accidental discharges, discharges of a non-routine, episodic nature, a non-customary batch discharge, a Slug Discharge or Slug Load, that may cause potential problems for the POTW, the User shall immediately telephone and notify the Director of the incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the User.

**2.** The Director may require the User to submit a detailed, written report describing the cause(s) of the discharge and the measures to be taken by the User to prevent similar future occurrences. Such notification shall not relieve the User of any expense, loss, damage, or other liability, which may be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the User of any fines, penalties, or other liability which may be imposed pursuant to this chapter.

**3.** A notice shall be permanently posted on the User's bulletin board or other prominent place advising employees who to call in the event of a discharge described in paragraph 1205.F.1 in this chapter. Employers shall ensure that all employees, who could cause such a discharge to occur, are advised of the emergency notification procedure.

**4.** Significant Industrial Users are required to notify the Director immediately of any changes at its facility affecting the potential for a Slug Discharge.

**G. Reports from Unpermitted Users.** All Users not required to obtain a wastewater discharge permit shall provide appropriate reports to the Director as the Director may require.

**H. Notice of Violation/Repeat Sampling and Reporting.** If sampling performed by a User indicates a violation, the User must notify the Director within twenty-four (24) hours of becoming aware of the violation. The User shall also repeat the sampling and analysis and submit the results of the repeat analysis to the Director within thirty (30) days after becoming aware of the violation. The User is not required to resample if the City monitors at the User's facility at least once a month, or if the City samples between the User's initial sampling and when the User receives the results of this sampling.

**I. Notification of the Discharge of Hazardous Waste.**

**1.** Any User who commences the discharge of hazardous waste shall notify the Director, in writing, of any discharge into the POTW of a substance which, if otherwise disposed of, would be a hazardous waste under 40 C.F.R. Part 261. Such notification must include the name of the hazardous waste as set forth in 40 C.F.R. Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). If the User discharges more than one hundred (100) kilograms of such waste per calendar month to the POTW, the notification also shall contain the following information to the extent such information is known and readily available to the User: an identification of the hazardous constituents contained in the wastes, an estimation of the mass and concentration of such constituents in the wastestream discharged during that calendar month, and an estimation of the mass of constituents in the wastestream expected to be discharged during the following twelve (12) months. All notifications must take place no later than one hundred and eighty (180) days after the discharge commences. Any notification under this paragraph need be submitted only once for each hazardous waste discharged. However, notifications of changed conditions must be submitted under Subsection 1205.E of this chapter. The notification requirement in this section does not apply to pollutants already reported by Users subject to Categorical Pretreatment Standards under the self-monitoring requirements of Subsections 1205.A, 1205.C, and 1205.D of this chapter.

**2.** Dischargers are exempt from the requirements of paragraph 1205.1.1 of this chapter, during a calendar month in which they discharge no more than fifteen (15) kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 C.F.R. §§ 261.30(d) and 261.33(e). Discharge of more than fifteen (15) kilograms of non-acute hazardous wastes in a calendar month, or of any quantity of acute hazardous wastes as specified in 40 C.F.R. §§ 261.30(d) and 261.33(e), requires a one-time notification. Subsequent months during which the User discharges more than such quantities of any hazardous waste do not require additional notification.

**3.** In the case of any new regulations under Section 3001 of RCRA identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the User must notify the Director, the EPA Regional Waste Management Waste Division Director, and state hazardous waste authorities of the discharge of such substance within ninety (90) days of the effective date of such regulations.

**4.** In the case of any notification made under this section, the User shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practicable.

**5.** This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this chapter, a permit issued thereunder, or any applicable federal or state law.

**J. Analytical Requirements.** All Pollutant sampling and analyses, the results of which are required to be submitted to the City, shall be performed in accordance with the techniques set forth in 40 C.F.R. Part 136, as amended, unless otherwise specified in an applicable Categorical Pretreatment Standard. If 40 C.F.R. Part 136 does not contain sampling or analytical techniques for the Pollutant in question, sampling and analyses shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the Director or other parties approved by EPA. Each Pollutant analysis shall be performed by a laboratory certified by the Oklahoma Department of Environmental Quality or equivalent unless otherwise stated by the Director.

**K. Sample Collection.**

**1.** Except as indicated in paragraph 2., below, the User must collect Wastewater samples using flow proportional composite collection techniques, unless time proportional composite sampling or grab sampling is authorized by the Director. Where time proportional composite sampling or grab sampling is authorized by the Director, the samples must be representative of the discharge. Using protocols (including appropriate preservation) specified in 40 C.F.R. Part 136 and appropriate EPA guidance, multiple Grab Samples collected during a twenty-four (24) hour period may be composited prior to the analysis as follows: for cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures, as documented in approved EPA methodologies, may be authorized by the Director, as appropriate. In addition, grab samples may be required to show compliance with instantaneous discharge limits.

**2.** Samples for oil and grease, temperature, pH, cyanide, phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques.

**3.** For sampling required in support of baseline monitoring and ninety (90) day compliance reports required in Subsections 1205.A and 1205.C of this chapter, a minimum of four (4) Grab Samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist. For facilities for which historical sampling data are available, the Director may authorize a lower minimum. For the reports required by Subsection 1205.D of this chapter, the Industrial User is required to collect the number of Grab Samples necessary to assess and assure compliance with applicable Pretreatment Standards and requirements.

**L. Timing.** Reports required to be submitted by this chapter, wastewater discharge permits, or orders issued by the Director, will be deemed to have been submitted on the date postmarked. For reports which are not mailed, postage prepaid, into a mail facility serviced by the United States Postal Service, or reports whose postmark is unreadable, the date of receipt of the report shall govern.

**M. Record Keeping.** Users subject to the reporting requirements of this chapter shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this chapter and any additional records of information obtained pursuant to monitoring activities undertaken by the User independent of such requirements, and documentation associated with Best Management Practices established under Section 1201.D and 1201.G. Records shall include the date, exact place, method, and time of sampling, and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. All other records required to be kept pursuant to a wastewater discharge permit requirement shall be retained by the User and made available for copying and inspection by the Director. These records shall remain available for a period of at least three (3) years. This period shall be automatically extended for the duration of any litigation concerning the User or the City, or where the Director has specifically notified the User of a longer retention period.

**N. Certification Statements.**

**1. Certification of Permit Applications and User Reports.** The following certification statement is required to be signed by an Authorized Representative as defined in Subsection 1200.D of this chapter and presented by Users which submit: (a) permit applications in accordance with Subsection 1202.D of this chapter; (b) baseline monitoring reports under Subsection 1205.A of this chapter; (c) reports on compliance with the Categorical Pretreatment Standard deadlines under Subsection 1205.B of this chapter; and (d) periodic compliance reports required by Subsection 1205.D of this chapter:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and

complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

**2. Annual Certification for Non-Significant Categorical Industrial Users.** A facility determined to be a Non-Significant Categorical Industrial User by the Director, pursuant to the definition of Significant Industrial User, in paragraph 4 of Subsection 1200.D of this chapter and paragraph 1203.D.3 of this chapter, must annually submit the following certification statement signed in accordance with the signatory requirements contained in the definition of Authorized Representative of the User, as defined in Subsection 1200.D of this chapter. This certification must accompany an alternative report required by the Director:

"Based on my inquiry of the person or persons directly responsible for managing compliance with the Categorical Pretreatment Standards under 40 CFR _____, I certify that, to the best of my knowledge and belief that during the period from _____, _____ to _____, _____ [months, days, year]:

**a.** The facility described as _____ [facility name] met the requirements of a Non-Significant Categorical Industrial User pursuant to paragraph 4, in the definition of Significant Industrial User, found in Title 11-C Tulsa Revised Ordinances, Subsection 1200.D;

**b.** The facility complied with all applicable Pretreatment Standards and requirements during this reporting period; and

**c.** The facility never discharged more than one hundred (100) gallons of total Categorical wastewater on any given day during this reporting period.

This compliance certification is based on the attached information:"

**O. Fraud and False Statements.** Reports and other documents required to be submitted or maintained under this chapter shall be subject to:

**1.** The provisions of 18 U.S.C. § 1001 relating to fraud and false statements;

**2.** The provisions of Section 309(c)(4) of the Act, as amended, governing false statements, representation or certification; and

**3.** The provisions of Section 309(c)(6) of the Act regarding responsible corporate officers.

*(Ord Nos. 17419, 19991; Ord. No. 22851, § 1, 3-28-2013)*

### Section 1206. Compliance monitoring.

**A. Right of Entry.** The Director shall have the right to enter the premises of any User or potential User to determine whether the User is complying with all requirements of this chapter and any wastewater discharge permit or order issued hereunder. Users shall allow the Director ready access to all parts of the premises for the purposes of inspection, sampling, records examination and copying, and the performance of any additional duties.

**1.** Where a User has security measures in force which require proper identification and clearance before entry into its premises, the User shall make necessary

arrangements with its security guards so that, upon presentation of suitable identification, the Director will be permitted to enter without delay for the purposes of performing specific responsibilities.

**2.** The Director shall have the right to set up on the User's property, or require installation of, such devices as are necessary to conduct sampling and/or metering of the User's operations.

**3.** The Director may require the User to install monitoring equipment as necessary. The facility's sampling and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the User at its own expense.

**4.** Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the User at the written or verbal request of the Director and shall not be replaced. The costs of clearing such access shall be borne by the User.

**5.** Unreasonable delays in allowing the Director access to the User's premises shall be a violation of this chapter.

**B. Search Warrants.** If the Director has been refused access to a building, structure, or property, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this chapter, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program of the City designed to verify compliance with this Chapter, or any permit or order issued hereunder, or to protect the overall public health, safety and welfare of the community, then the Director may seek issuance of a search warrant from the Municipal Court of the City of Tulsa.

*(Ord. Nos. 17419, 19991; Ord. No. 22851, § 1, 3-28-2013)*

### Section 1207. Confidential information.

The User may claim information submitted to the City pursuant to this chapter as confidential. Any such claim must be asserted at the time of submission by conspicuously marking the words "confidential business information" on each page containing such information. If no claim is made at the time of submission, the City may make the information available to the public without further notice. If a claim is asserted, the information will be treated in accordance with the procedures specified in 40 C.F.R. Part 2. Wastewater constituents and characteristics and other effluent data as defined by 40 C.F.R. §2.302 will not be recognized as confidential information and will be available to the public without restriction.

*(Ord. Nos. 17419, 19991; Ord. No. 22851, § 1, 3-28-2013)*

### Section 1208. Publication of users in significant noncompliance.

**A.** The Director shall publish annually, in the largest daily newspaper published in the City of Tulsa, a list of the Users, which, during the previous twelve (12) months, were in significant noncompliance with applicable Pretreatment Standards and requirements. The term significant noncompliance shall be applicable to all Significant Industrial Users (or any other Industrial User that violates paragraphs (3), (4), or (8), of this section) and shall mean:

**1.** Chronic violations of Wastewater discharge limits, defined here as those in which sixty-six percent (66%) or more of Wastewater measurements taken for the same

pollutant parameter during a six-month period exceed (by any magnitude) a numeric Pretreatment Standard or Requirement, including Local Limits as defined in Section 1201;

**2.** Technical Review Criteria (TRC) violations, defined here as those in which thirty-three percent (33%) or more of Wastewater measurements taken for each Pollutant parameter during a six-month period equals or exceeds the product of the numeric Pretreatment Standard or requirement including Instantaneous Limits, as defined by Section 1201, or the average limit multiplied by the applicable criteria (1.4 for BOD, TSS, fats, oils, and grease, and 1.2 for all other Pollutants except pH);

**3.** Any other violation of a Pretreatment Standard or Requirement as defined by Section 1201 (Daily Maximum, long term average, Instantaneous Limit, or narrative standard) that the Director determines has caused, alone or in combination with other discharges, Interference or Pass Through, or endangering the health of POTW personnel or the general public;

**4.** Any discharge of a Pollutant that has caused imminent endangerment to the public or to the environment, or has resulted in the Director's exercise of its emergency authority to halt or prevent such a discharge;

**5.** Failure to meet within ninety (90) days of the scheduled date a compliance schedule milestone contained in a wastewater discharge permit or enforcement order for starting construction, completing construction, or attaining final compliance;

**6.** Failure to provide within forty-five (45) days after the due date any required reports, including baseline monitoring reports, reports on compliance with Categorical Pretreatment Standard deadlines, periodic self-monitoring reports, and reports on compliance with compliance schedules;

**7.** Failure to accurately report noncompliance; or

**8.** Any other violation(s), which may include a violation of Best Management Practices, that the Director determines will adversely affect the operation or implementation of the local Pretreatment program.

*(Ord. Nos. 17419, 19991; Ord. No. 22851, § 1, 3-28-2013)*

**Section 1209. Administrative enforcement remedies.**

**A. Notice of Violation.** When the Director finds that a User has violated or continues to violate any provision of this chapter, a wastewater discharge permit, or order issued hereunder, or any other Pretreatment Standard or requirement, the Director may serve upon that User a written Notice of Violation. The Director may require the submission of a written explanation of the violation and a plan for the satisfactory correction and prevention thereof, within a time frame specified by the Director. Submission of this plan in no way relieves the User of liability for any violations occurring before or after receipt of the Notice of Violation. Nothing in this section may limit the authority of the Director to take any action, including emergency actions or any other enforcement action, without first issuing a Notice of Violation.

**B. Administrative Fines.**

**1.** When the Director finds that a User has violated or continues to violate any provision of this chapter, a wastewater discharge permit or order issued hereunder,

or any other Pretreatment Standard or requirement, the Director may fine such User in an amount not to exceed One Thousand Dollars ($1,000.00) per day. Such fines may be assessed on a per violation, per day basis. In the case of monthly or other long-term average discharge limits, fines may be assessed for each day during the period of violation.

**2.** Notice of an administrative fine shall be served personally on the User or by certified mail (return receipt requested). Payment of the fine is to be received, by the Director, within fifteen (15) days after such notice is served.

**3.** Failure to submit payment of an administrative fine within fifteen (15) days shall be considered a violation of this chapter.

**4. Penalties for Late Submittals.** Reports, payments and other information required by this chapter, permits or orders issued hereunder shall be submitted in a timely manner. Submittals received fifteen (15) days after required submittal dates, may result in the assessment of admistrative penalties of three hundred dollars ($300.00). An administrative penalty of one hundred dollars ($100.00) per day may be assessed for each additional day the required submittal is late. Actions taken by the Director to collect late submittal penalties shall not limit the Director's authority to initiate other enforcement actions that may include penalties for late submittal violations. Users who repeatedly submit late submittals may be assessed additional penalties consistent with the City of Tulsa's Enforcement Response Plan.

**5.** Issuance of an administrative fine shall not be a bar against or a prerequisite for taking any other action against the User.

**C. Administrative Orders.** When the Director finds that a User has violated or continues to violate any provision of this chapter, a wastewater discharge permit or order issued hereunder, or any other Pretreatment Standard or requirement, the Director may issue an administrative order to the User responsible for the discharge directing that the User come into compliance within a specified time. If the User does not come into compliance within the time provided, sewer service may be discontinued unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operating. Administrative orders also may contain other requirements to address the noncompliance, including additional self-monitoring and management practices designed to minimize the amount of pollutants discharged to the sewer. An administrative order may not extend a federally established deadline for compliance with a Pretreatment Standard or requirement, nor does an administrative order relieve the User of liability for any violation, including any continuing violation. Issuance of an administrative order shall not be a bar against or a prerequisite for taking any other action against the User.

**D. Appeals.** Users may dispute any Notice of Violation or Administrative Fine or Administrative Order issued by the Director pursuant to Subsections 1209.A, 1209.B, or 1209.C. Persons desiring to dispute such actions must file a written request for the Director to reconsider the action taken within fifteen (15) days of being notified of the action. Where a request has merit, the Director may convene a hearing on the matter. In the event the User's appeal is successful, the Director may modify or withdraw the notice or fine. If the Director fails to act within thirty (30) days of notice of an appeal, a request for reconsideration shall be deemed to be denied. The Director's decisions

whether to withdraw or modify such enforcement action shall be considered final, unless a written notice for an appeal to the applicable Utility Authority is filed with the City Clerk's office within fifteen (15) days after service on the petitioner of the Director's decision. Within fifteen (15) days following the Utility Authority's action, any party adversely affected by the Utility Authority's action may appeal to the City Council by filing a notice of appeal in the office of the City Clerk and providing notice to the other party and the Director. The appeal shall be heard by the City Council at its next available meeting after the filing of the notice of appeal.

**E. Consent Orders.** The Director may enter into Consent Orders, assurances of compliance, or other similar documents establishing an agreement with any User responsible for noncompliance. Such documents will include specific action to be taken by the User to correct the noncompliance within a time period specified by the document. Such documents shall have the same force and effect as the orders issued pursuant to Subsections 1209.C and 1209.G of this chapter and shall be judicially enforceable.

**F. Show Cause Hearing.** The Director may order a User which has violated or continues to violate any provision of this chapter, a wastewater discharge permit or order issued hereunder, or any other Pretreatment Standard or requirement, to appear before the Director and show cause why the proposed enforcement action should not be taken. Notice shall be served on the User specifying the time and place for the meeting, the proposed enforcement action, the reasons for such action, and a request that the User show cause why the proposed enforcement action should not be taken. The notice of the meeting shall be served personally or by registered or certified mail (return receipt requested). Such notice may be served on any authorized representative of the User. A show cause hearing shall not be a bar against or prerequisite for taking any other action against the User.

**G. Cease and Desist Orders.** When the Director finds that a User has violated or continues to violate any provision of this chapter, a wastewater discharge permit or order issued hereunder, or any other Pretreatment Standard or requirement, or that the User's past violations are likely to recur, the Director may issue an order to the User directing it to cease and desist all such violations and directing the User to:

**1.** Immediately comply with all requirements; and

**2.** Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge.

Issuance of a cease and desist order shall not be a bar against or a prerequisite for taking any other action against the User.

**H. Emergency Suspensions.** The Director may immediately suspend a User's discharge, after informal notice to the User, whenever such suspension is necessary to stop an actual or threatened discharge that reasonably appears to present or cause an imminent or substantial endangerment to the health or welfare of persons. The Director may also immediately suspend a User's discharge, after notice and opportunity to respond, that threatens to interfere with the operation of the POTW, or which presents or may present an endangerment to the environment.

**1.** Any User notified of a suspension of its discharge shall immediately stop or eliminate its contribution. In the event of a User's failure to immediately comply

voluntarily with the suspension order, the Director may take such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the POTW, the environment, or endangerment to any individuals. The Director may allow the User to recommence its discharge when the User has demonstrated to the satisfaction of the Director that the period of endangerment has passed, unless the termination proceedings in Subsection 1209.I of this chapter are initiated against the User.

**2.** A User that is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit to the Director, prior to the date of any show-cause or termination hearing under Subsections 1209.F or 1209.I of this chapter, a detailed written statement, describing the causes of the harmful contribution and the measures taken to prevent any future occurrence.

**3.** Nothing in this section shall be interpreted as requiring a hearing prior to any emergency suspension under this section.

**I. Termination of Discharge.** In addition to the provisions in Subsection 1204.E of this chapter, any User who violates the following conditions is subject to discharge termination:

**1.** Violation of wastewater discharge permit conditions;

**2.** Failure to accurately report the Wastewater constituents and characteristics of its discharge;

**3.** Failure to report significant changes in operations or Wastewater volume, constituents, and characteristics prior to discharge;

**4.** Refusal of reasonable access to the User's premises for the purpose of inspection, monitoring, or sampling; or

**5.** Violation of any Pretreatment Standard in Section 1201 of this chapter.

Such User will be notified of the proposed termination of its discharge and be offered an opportunity to show cause under Subsection 1209.F of this chapter why the proposed action should not be taken. Exercise of this option by the Director shall not be a bar to or a prerequisite for taking any other action against the User.

*(Ord. Nos. 17419, 19991; Ord. No. 22851, § 1, 3-28-2013)*

## Section 1210. Judicial enforcement remedies.

**A. Injunctive Relief.** When the Director finds that a User has violated or continues to violate any provision of this chapter, a wastewater discharge permit, or order issued hereunder, or any other Pretreatment Standard or requirement, the Director may petition the District Court for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the wastewater discharge permit, order, or other requirement imposed by this chapter on activities of the User. The Director may also seek such other action as is appropriate for legal and/or equitable relief, including a requirement for the User to conduct environmental remediation. A petition for injunctive relief shall not be a bar against or a prerequisite for taking any other action against a User.

**B. Criminal Prosecution.**

**1.** A User who willfully or negligently violates any provision of this chapter, a wastewater discharge permit, or order issued hereunder, or any other Pretreat-

ment standard or requirement shall, upon conviction, be guilty of a misdemeanor, punishable by a fine and/or imprisonment in the manner set forth in Title 11-C, Subsection 1100.A of Tulsa's Revised Ordinances.

**2.** A User who willfully or negligently introduces any substance into the POTW which causes personal injury or property damage shall, upon conviction, be guilty of a misdemeanor and be subject to a penalty of up to the maximum set forth in Title 11-C, Subsection 1100.A of Tulsa's Revised Ordinances. This penalty shall be in addition to any other causes of action for personal injury or property damage available under state law.

**3.** A User who knowingly makes any false statements, representations, or certifications in any application, record, report, plan, or other documentation filed, or required to be maintained, pursuant to this chapter, wastewater discharge permit, or order issued hereunder, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this chapter shall, upon conviction, be subject to fine and/or imprisonment in the manner set forth in Title 11-C, Subsection 1100.A of Tulsa's Revised Ordinances.

**C. Remedies Nonexclusive.** The remedies provided for in this chapter are not exclusive. The Director may take any, all, or any combination of these actions against a non-compliant User. Enforcement of Pretreatment provisions will be generally in accordance with the City's enforcement response plan. However, the Director may take other action against any User when the circumstances warrant. Further, the Director is empowered to take more than one (1) enforcement action against any noncompliant User.

*(Ord. Nos. 17419, 19991; Ord. No. 22851, § 1, 3-28-2013)*

**Section 1211. Supplemental enforcement action.**

**A. Reimbursement of Costs for Noncompliance.** The Director shall assess, to any User that the Director has determined to be in violation of any provision of this chapter, wastewater discharge permit or order issued hereunder, costs incurred by the City for such violation.

**B. Performance Bonds.** The Director may decline to issue or reissue a wastewater discharge permit to any User who has failed to comply with any provision of this chapter, a previous wastewater discharge permit, or order issued hereunder, or any other Pretreatment standard or requirement, unless such User first files a satisfactory bond, payable to the City of Tulsa, in a sum not to exceed a value determined by the Director to be necessary to achieve consistent compliance.

**C. Liability Insurance.** The Director may decline to issue or reissue a wastewater discharge permit to any User who has failed to comply with any provision of this chapter, a previous wastewater discharge permit, or order issued hereunder, or any other Pretreatment Standard or requirement, unless the User first submits proof that it has obtained financial assurances sufficient to restore or repair damage to the POTW caused by its discharge.

**D. Water Supply Termination.** Whenever a User has violated or continues to violate any provision of this chapter, a wastewater discharge permit, or order issued

hereunder, or any other Pretreatment Standard or requirement, water service to the User may be terminated. Service to User will be reinstated at the User's expense and only after it has demonstrated to the Director's satisfaction its ability to comply.

**E. Sewer Service Termination.** Whenever a User has violated or continues to violate any provision of this chapter, a wastewater discharge permit, or order issued hereunder, or any other Pretreatment Standard or requirement, sewer service to the User may be terminated. Service to User will be reinstated at the User's expense and only after it has demonstrated to the Director's satisfaction its ability to comply with such provisions.

**F. Contractor Listing.** Users that have not achieved compliance with applicable Pretreatment Standards and requirements may not be eligible to receive a contractual award for the sale of goods or services to the City. Existing contracts for the sale of goods or services with the City held by the User found to be in significant noncompliance with Pretreatment Standards or requirements may be terminated at the discretion of the Director.

**G. Decline Permit Issuance.** The Director may decline to issue or reissue an individual wastewater discharge permit to any User who has failed to pay any outstanding fees, fines or penalties incurred as a result of any provision of this ordinance, a previous individual wastewater discharge permit, or order issued hereunder.

*(Ord. No. 19991; Ord. No. 22851, § 1, 3-28-2013)*

**Section 1212. Affirmative defenses to discharge violations.**

**A. Upset.** For the purposes of this section, upset means an exceptional incident in which there is unintentional and temporary noncompliance with Pretreatment Standards because of factors beyond the reasonable control of the User. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

**1.** An upset shall constitute an affirmative defense to an action brought for noncompliance with Pretreatment Standards if the requirements of paragraph 1212.A.2 of this section are met.

**2.** A User who wishes to establish the affirmative defense of upset shall demonstrate through properly signed, contemporaneous operating logs or other relevant evidence that:

**a.** An upset occurred and the User can identify the cause(s) of the upset;

**b.** The facility was at the time being operated in a prudent and workmanlike manner and in compliance with applicable operation and maintenance procedures; and

**c.** The User has submitted the following information to the Director within twenty-four (24) hours of becoming aware of the upset (if this information is provided orally, a written submission must be provided within five (5) days):

(1) A description of the indirect discharge and cause of noncompliance;

(2) The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue; and

(3) Steps being taken and/or planned to reduce, eliminate, and prevent recurrence of the noncompliance.

**3.** In any enforcement proceeding, the User seeking to establish the occurrence of an upset shall have the burden of proof.

**4.** Users will have the opportunity for a judicial determination on any claim of upset only in an enforcement action brought for noncompliance with Pretreatment Standards.

**5.** Users shall control production of all discharges to the extent necessary to maintain compliance with Pretreatment Standards upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.

**B. Bypass.** For the purposes of this section, bypass means the intentional diversion of wastestreams from any portion of a User's treatment facility. Severe property damage means substantial physical damage to property, damage to the treatment facilities, which causes them to become inoperable, or substantial and permanent loss of natural resources, which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

Users may allow any bypass to occur which does not cause Pretreatment Standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions of paragraphs (1) and (2) of this section.

**1. Notification of Bypass.**

**a.** If a User knows in advance of the need for a bypass, it shall submit prior notice to the Director, at least ten (10) days before the date of the bypass, if possible.

**b.** A User shall submit oral notice to the Director of an unanticipated bypass that exceeds applicable Pretreatment Standards, which notice shall be within twenty-four (24) hours from the time the User becomes aware of the bypass. A written submission shall also be provided within five (5) days of the time the User becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent recurrence of the bypass. The Director may waive the written report on a case-by-case basis, if the oral report has been received within twenty-four (24) hours.

**2. Prohibition of Bypass.**

**a.** Bypass is prohibited, and the Director may take enforcement action against a User for a bypass, unless:

(1) Bypass was unavoidable in order to prevent loss of life, personal injury, or severe property damage;

(2) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance

during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and

(3) The User submitted notices as required under paragraph 1212.B.1. of this section.

**b.** The Director may approve an anticipated bypass, after considering its adverse effects, if the Director determines that it will meet the three (3) conditions listed in paragraph 1212.B.2.a of this section.

*(Ord. No. 19991; Ord. No. 22851, § 1, 3-28-2013)*

## Section 1213. Permit fees.

Except as superseded by fees established in Title 49 Tulsa Revised Ordinances, the Director shall assess fees for the issuance and renewal of Wastewater Discharge Permits not to exceed the amounts stated in the following schedules.

**A.** For users inside the corporate limits of the City of Tulsa:

| | | |
|---|---|---|
| **1.** | Initial permit | $500.00 |
| **2.** | Permit renewal | $250.00 |

**B.** For users outside the corporate limits of the City of Tulsa:

| | | |
|---|---|---|
| **1.** | Initial permit | $750.00 |
| **2.** | Permit renewal | $375.00 |

*(Ord. No. 19991; Ord. No. 22851, § 1, 3-28-2013)*

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## CHAPTER 13. RESTRICTED USE OF WATER IN TIMES OF SHORTAGES

Section 1300. Definitions.
Section 1301. Mayor authorized to implement water conservation measures.
Section 1302. Property identified by street address numbers.
Section 1303. Deliverability filed in the Office of the City Clerk.
Section 1304. Conditions for imposing restrictions.
Section 1305. Stage 1—Voluntary restrictions.
Section 1306. Stage 2—Mandatory restriction of outside watering to every other day.
Section 1307. Stage 3—Mandatory restrictions of outside watering to every other day with a hand-held hose.
Section 1308. Stage 4—Mandatory curtailment of outside watering.
Section 1309. Permitted exceptions.
Section 1310. Civil emergency.
Section 1311. Penalty.

### Section 1300. Definitions.

The following terms, whenever used or referred to in this chapter shall be construed to have the meanings given herein, unless a different intent clearly appears from the context.

**A.** **Clerk** shall mean the Clerk of the City of Tulsa.

**B.** **Council** shall mean the Council of the City of Tulsa.

**C.** **City** shall mean the City of Tulsa, Oklahoma, a municipal corporation.

**D.** **Civil emergency** shall mean an armed conflict, civil disorder, natural disaster or any other act, event or occurrence which may affect the public health, safety and welfare during the period of the emergency.

**E.** **Deliverability** shall mean the ability of the City of Tulsa to deliver potable water to its water customers by means of its water system and shall be expressed in millions of gallons per day (mgd).

**F.** **Director of Public Works** shall mean the duly appointed Director of Public Works of the City of Tulsa or his authorized representative.

**G.** **Mayor** shall mean the Mayor of the City of Tulsa or his authorized representative.

**H.** **Outside watering** shall mean any use of City water outside a structure or building and shall include the washing or sprinkling of streets, driveways, parking lots or service station aprons.

**I.** **Utility Board** shall mean the Tulsa Utility Board.

**J.** **Water, watering or water usage** shall mean and refer to water furnished by the City of Tulsa.

**K.** **Water system** shall include the City of Tulsa's water supply and shall mean the entire means of capturing, storing, transporting, treating and distributing water owned by the City of Tulsa.

*(Ord. No. 17439)*

### Section 1301. Mayor authorized to implement water conservation measures.

The Mayor is hereby authorized to restrict or prohibit the use of water for certain purposes under the circumstances and in the manner as hereinafter set forth by filing an order in the

office of the City Clerk. Each such order shall be accompanied by a written report which shall set out the criteria utilized and the data relied upon in issuing the order. The Clerk shall immediately transmit the order to the Council and the Utility Board and shall make the same available for public inspection. Each such order shall be published in at least one (1) newspaper of general circulation within the City and shall be effective from and after publication. The Mayor may give such other notice of the order to the public as he determines necessary or desirable. Each such order shall have the force and effect of law until terminated by the Mayor or by affirmative vote of the Council.

*(Ord. No. 17439)*

**Section 1302. Property identified by street address numbers.**

For the purposes of implementing restrictions on outside watering, all property within the City shall be identified by street address numbers. Apartments, office building complexes or other property containing multiple street addresses shall be identified by the lowest street address number contained therein. Where there are no address numbers or where it is not feasible to use an address number, the Mayor shall assign an address number.

When outside watering is restricted to every other day, those customers whose street address ends with an odd number shall be permitted such water usage on odd numbered calendar days and those customers whose street address ends with an even number shall be permitted such water usage on even numbered calendar days.

*(Ord. No. 17439)*

**Section 1303. Deliverability filed in the Office of the City Clerk.**

The Director of Public Works shall file with the City Clerk the current deliverability of the City's water system expressed in millions of gallons per day (mgd). In the event of a change of the water system's deliverability, the Director shall file with the Clerk the then current deliverability.

*(Ord. No. 17439)*

**Section 1304. Conditions for imposing restrictions.**

Upon a determination by the Mayor of the existence of the conditions described herein, the Mayor shall take action necessary as hereinafter provided to protect the public health, safety and welfare.

*(Ord. No. 17439)*

**Section 1305. Stage 1—Voluntary restrictions.**

**A. Conditions.** The conditions for Stage 1 shall exist when water usage reaches ninety-four percent (94%) of deliverability each day for two (2) consecutive days.

**B. Voluntary conservation.** Upon the occurrence of the conditions for Stage 1, the Mayor may, through appropriate means, call upon the general population to conserve water voluntarily by limiting outside watering to the hours between midnight and noon every other day.

**C. Termination.** Stage 1 shall terminate when the Mayor shall file an order with the City Clerk, finding that the conditions for Stage 1 no longer exist.

*(Ord. No. 17439)*

**Section 1306. Stage 2—Mandatory restriction of outside watering to every other day.**

**A. Conditions.** The conditions for Stage 2 shall exist when water usage reaches ninety-seven percent (97%) of deliverability each day for two (2) consecutive days.

**B. Mandatory restrictions.** Upon the occurrence of the conditions for Stage 2, the Mayor may order the mandatory restriction of outside watering to the hours between midnight and noon every other day.

**C. Termination.** Stage 2 shall terminate when the Mayor shall file an order with the City Clerk and cause the same to be published in a newspaper of general circulation within the City, finding that the conditions for Stage 2 no longer exist; provided, however, that the Mayor may in such order call upon the general population to voluntarily conserve water as provided in Stage 1 herein.

*(Ord. No. 17439)*

**Section 1307. Stage 3—Mandatory restrictions of outside watering to every other day with a hand-held hose.**

**A. Conditions.** The conditions of Stage 3 shall exist when water usage reaches one hundred percent (100%) of deliverability each day for two (2) consecutive days.

**B. Mandatory restrictions.** Upon the occurrence of the conditions for Stage 3, the Mayor may order the mandatory restriction of outside watering to the hours between midnight and noon every other day by hand-held hose only.

**C. Termination.** Stage 3 shall terminate when the Mayor shall file an order with the City Clerk and cause the same to be published in a newspaper of general circulation with the City, finding that the conditions for Stage 3 no longer exist; providing, however, that the Mayor may in such order impose the restrictions of Stage 2 or may call upon the general population to voluntarily conserve water as provided in Stage 1 herein.

*(Ord. No. 17439)*

**Section 1308. Stage 4—Mandatory curtailment of outside watering.**

**A. Conditions.** The conditions of Stage 4 shall exist when water usage exceeds deliverability each day for two (2) consecutive days.

**B. Mandatory curtailment.** Upon the occurrence of the conditions for Stage 4, the Mayor may prohibit all outside watering.

**C. Termination.** Stage 4 shall terminate when the Mayor shall file an order with the City Clerk and cause the same to be published in a newspaper of general circulation within the City, finding that the conditions for Stage 4 no longer exist; provided, however, that the Mayor may in such order impose the restrictions of Stage 3 or Stage 2 or may call upon the general population to voluntarily conserve water as provided in Stage 1 herein.

*(Ord. No. 17439)*

**Section 1309. Permitted exceptions.**

**A.** In the mandatory restrictions of water usage in Stages 2, 3 and 4 as provided herein, the Mayor may allow the following:

**1.** Outdoor watering between the hours of midnight and noon by a bucket not exceeding a capacity of five (5) gallons, filled without the use of a hose;

**2.** The use of water for construction, commercial or processing purposes;

**3.** The use of water for golf greens;

**4.** The use of water by the person, firm or corporation installing or repairing sprinkler or irrigation systems for the purposes of testing such installation or repair; provided, however, that such test shall not exceed two (2) minutes in duration;

**5.** Any watering or sprinkling with water obtained from a well, provided that the premises have posted in a conspicuous location upon the premises a sign stating that well water is being so used; it shall be a violation of this ordinance for any person to post a sign which states or implies that well water is being used when water is obtained from the water system of the City;

**6.** The washing of automobiles, trucks, trailers, boats, airplanes or other types of mobile equipment upon the immediate premises of commercial car washes, commercial service stations and the washing of commercial motor vehicles used in the transportation of food, food products and perishables, and the washing of commercial garbage pickup motor vehicles;

**7.** The watering by commercial nurseries, commercial landscaping companies and commercial sod farmers with water obtained from their own immediate premises;

**8.** The watering or sprinkling of foundations of homes or apartments; and

**9.** The use of water to alleviate immediate fire, health or safety hazards.

**B.** In the mandatory restrictions of water usage in Stages 2, 3 and 4 as provided herein, the watering for the installation of shrubbery, trees, lawns, grass, plants or other vegetation by commercial nurseries, commercial landscaping companies and commercial sod farmers may be allowed during installation and for a period of ten (10) days following the completion of the installation as follows:

**1.** The commercial nursery, commercial landscaping company or commercial sod farmer responsible for the installation shall make an application for a permit to the Director of Public Works upon a form provided therefor.

**2.** The application shall state:

**a.** The name of the persons or company making the installation,

**b.** The name of the owner of the premises on which the installation shall occur,

**c.** The address of the premises on which the installation shall occur,

**d.** A description of the type, number or nature of the vegetation installed, and

**e.** The date on which the installation shall commence and the date on which the installation shall be completed, which dates shall be no more than five (5) calendar days apart.

**3.** The Director of Public Works shall charge and receive a fee of Thirty-Five Dollars ($35.00) to cover the cost of processing and issuing the permit.

If it shall be determined by the Director of Public Works that the facts stated in the application are correct, he shall cause to be issued a permit of a size and composition sufficient to allow the permit to be placed or posted in a conspicuous place on the premises. The permit shall show the date of issue, the date the installation is to

commence, the date the installation is to be completed, the date of expiration of the permit, the address for which the permit is issued and the nature, number and type of the new vegetation being installed.

*(Ord. No. 17439)*

**Section 1310. Civil emergency.**

In the event of a civil emergency as herein defined, the Mayor may order such restrictions or curtailment of the use of water as necessary to preserve and protect the public health, safety and welfare and shall cause his order to be published in a newspaper of general circulation within the City; provided, however, that in the event the Mayor shall order measures more restrictive than those contained in the provisions for Stage 4 herein, the Mayor shall immediately call a special meeting of the Council. The Mayor's emergency order shall be effective when issued and shall remain in effect until the Council has met and has taken appropriate action.

*(Ord. No. 17439)*

**Section 1311. Penalty.**

Any individual, person, firm, corporation, association or other individual using City water in violation of any portion of this ordinance or in violation of any order of the Mayor as authorized herein shall be deemed guilty of an offense, and upon conviction thereof, shall be punished by a fine of not less than One Hundred Dollars ($100.00) nor more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than thirty (30) days. The violation of each provision and each separate violation shall be deemed a separate offense and shall be punished accordingly.

*(Ord. No. 17439)*

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## CHAPTER 14. GREASE HANDLING AND HAULING

Section 1400. General provisions.
Section 1401. Definitions.
Section 1402. Grease hauler permit application procedures.
Section 1403. Grease hauler permits.
Section 1404. Grease hauler and servicing requirements.
Section 1405. Reporting and record keeping requirements.
Section 1406. Compliance inspections and monitoring.
Section 1407. Permit termination.
Section 1408. Enforcement remedies.
Section 1409. Permit fees

### Section 1400. General provisions.

**A. Purpose and policy.** This chapter sets forth uniform requirements for grease haulers that provide services to establishments within the City of Tulsa's Publicly Owned Treatment Works (POTW) service area. The objectives of this chapter are:

**1.** To minimize the introduction of pollutants, especially fats, oil and grease (FOG), into the City of Tulsa's POTW that could potentially interfere with its operation.

**2.** To minimize the occurrence of Sanitary Sewer Overflows (SSOs) due to FOG buildup in the POTW's collection system.

**3.** To promote the proper maintenance of grease traps and the proper handling, disposal and tracking of related waste.

**4.** To promote the use of pollution prevention and related best management practices in the food handling and related waste hauling businesses.

This chapter shall apply to all grease trap servicing, grease trap waste hauling and related waste disposal entities operating or performing services within the POTW service area, except where those services are performed at facilities that possess a valid industrial wastewater discharge permit pursuant to Chapter 12 of this title. This chapter authorizes the issuance of grease hauler permits; provides for inspections, compliance and enforcement activities; establishes administrative review procedures; requires hauler reporting; provides for the setting of grease trap waste hauler permit fees; and encourages the use of pollution prevention practices.

**B. Administration.** Except as otherwise provided in this chapter, the Director of the Public Works and Development Department of the City of Tulsa shall administer, implement and enforce the provisions of this chapter. Any powers granted to or duties imposed upon the Director may be delegated by the Director to other personnel of the Public Works and Development Department.

*(Ord. Nos. 20910, 21392)*

### Section 1401. Definitions.

Unless a provision explicitly states otherwise, the following terms and phrases, as used in this chapter, shall have the meanings ascribed below:

**Authorized representative of the business** shall mean:

**A.** If the business is a corporation:

**1.** The president, secretary, treasurer or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation.

**2.** The manager of one (1) or more manufacturing, production or operating facilities, provided the manager is authorized to make management decisions governing the operation of the regulated facility.

**B.** If the business is a partnership or sole proprietorship: a general partner or proprietor, respectively.

**C.** If the business is a limited liability company: any managing member.

**D.** If the business is a federal, state or local governmental facility: a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or their designee.

The individuals described in paragraphs A through D, above, may designate another authorized representative using protocols required by the Director.

**City or Approval Authority.** The City of Tulsa, Oklahoma, a municipal corporation or the Tulsa Metropolitan Utility Authority.

**Director** shall mean the Director of the City of Tulsa's Public Works and Development Department or the person succeeding to the Director's duties and functions, by whatever name known, or the Director's designated representative.

**Fats, oil and grease or FOG** shall mean any material either liquid or solid composed primarily of fat, oil and grease from animal or vegetable sources. For purposes of this chapter, the terms FOG and grease may be used interchangeably.

**Grease trap** shall mean any device designed to collect, contain or remove food wastes and fatty oil and grease from the wastewater prior to discharge into the POTW. These devices shall include but not be limited to grease interceptors, large containment boxes commonly outside of a facility and smaller containment boxes commonly inside a facility and under sinks.

**Grease trap waste hauler, or grease hauler, or hauler** shall mean any person or entity involved in the routine servicing, cleaning or removal of food waste, fatty oil, grease or FOG from a grease trap.

**Indirect discharge or discharge** shall mean the introduction of wastewater into the POTW.

**Person or entity** shall mean any individual, partnership, co-partnership, firm, limited liability company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity; or their legal representatives, agents or assigns. This definition shall include all federal, state and local governmental entities.

**Publicly owned treatment works or POTW** shall mean any treatment works, as defined by Section 212 of the Clean Water Act (33 U.S.C., § 1292), which is owned or operated by the City. This definition shall include any devices or systems used in the collection, storage, treatment, recycling and reclamation of sewage or industrial wastes of a liquid nature and any conveyances of wastewater to a treatment plant.

**Sanitary sewer overflow or SSO** shall mean any unintentional discharge or bypass of raw sewage from a municipal sanitary sewer.

**Sewage** shall mean any human excrement or gray water, including but not limited to showers, dishwashing operations and similar wastewater.

**Storm sewer system** shall mean any conveyance or system of conveyances, including but not limited to roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels or storm drains that are owned or operated by the City and are designed or used for collecting or conveying stormwater.

**Wastewater** shall mean any liquid and water-carried wastes and sewage from residential dwellings, commercial buildings and manufacturing facilities, and institutions, whether treated or untreated, which are discharged into the POTW.

*(Ord. Nos. 20910, 21392)*

**Section 1402. Grease hauler permit application procedures.**

**A. Application required.** All persons required to have a grease hauler permit shall apply for the permit before collecting or transporting FOG waste originating within the POTW service area for disposal at an approved disposal site.

**B. Permit application components and procedures.** The components and procedures for a grease hauler's permit shall include, but not be limited to, the following requirements before a permit shall be issued:

**1.** Submission of a completed permit application on a form provided by the Director.

**2.** Submission of a permit application fee and additional vehicle fees as provided in Section 1409 of this chapter.

**3.** A statement of the person's or company's name, address, telephone number and date of application; provided that the Director may require additional information regarding officers, general partners or other controlling participants in a business.

**4.** Identification of the individual providing the information, submission date and the individual's title and telephone number.

**5.** A description of activities and processes performed in the servicing and hauling of FOG, related equipment and any facilities related to these activities or processes.

**6.** Identification of all hauling vehicles owned or operated by the applicant, including the vehicle identification number (VIN), registration license plate number, make, model, model year and tank holding capacity.

**7.** A list of all approved treatment or disposal sites the hauler anticipates using. An amended list shall be provided to the Director or the Director's designated representative prior to a hauler using any additional approved treatment or disposal facilities.

**8.** A listing of all types of wastes that will be hauled.

**9.** The applicant shall demonstrate to the Director that the applicant and applicant's drivers have sufficient knowledge of the vehicles they operate, procedures required for client service, materials to be handled and other requirements to assure the proper servicing and handling of applicable wastes.

**10.** A certification statement signed by an authorized representative of the business that all of the information provided on the application is true and correct.

**11.** Any other information deemed necessary by the Director to satisfy the purposes and policies of this chapter.

**C. Denial of permit application.** The Director will evaluate the information furnished by the applicant and may require additional information deemed necessary to satisfy the purposes and policies of this chapter. The Director shall have the authority to deny any application for a grease hauler permit that is insufficient.

**D. Permit renewal application.** A grease hauler permit shall be valid for a period of one (1) year from the date issued. A grease hauler shall apply for a permit renewal, at least thirty (30) days prior to an existing permit's expiration. Permit renewal shall be in a form and manner prescribed by the Director and may contain all or any portion of the original permit application requirements.

*(Ord. Nos. 20910, 21392)*

**Section 1403. Grease hauler permits.**

**A. Grease hauler permit required.** It shall be unlawful and an offense for any person to collect or dispose of grease trap wastes within the POTW service area unless such person possesses a valid grease hauler's permit as provided for in this chapter. Possession of a grease hauler's permit shall not relieve the permit holder of any obligations to comply with all federal, state and local laws and regulations including but not limited to applicable pretreatment standards and stormwater regulations.

**B. Grease hauler permit contents.** In addition to other requirements provided by law, a grease hauler permit may include, but shall not be limited to the following:

**1.** The effective and expiration date of the permit.

**2.** Permit holder's name, address, contact names and other information that may facilitate contact with the permit holder.

**3.** Applicable legal authority.

**4.** A statement of non-transferability.

**5.** Permit renewal requirements.

**6.** Definitions.

**7.** A listing of authorized vehicles for grease hauling or servicing.

**8.** Specific prohibitions and procedures for grease hauling and servicing.

**9.** A statement of applicable civil and criminal penalties for permit violations.

**10.** Any requirements, limitations or conditions deemed necessary by the Director to satisfy the purposes and policies of this chapter.

**11.** A statement of the authority and criteria for the Director to modify, cancel, suspend or revoke a permit.

**12.** Reporting and record keeping requirements.

**13.** Discharge prohibitions.

**14.** The signature of Approval Authority.

**C. Grease hauler permit transfer.** A grease hauler permit shall not be reassigned, transferred, sold, traded or sublet by a permit holder.

**D. Grease hauler permit modification.** The Director may modify a grease hauler permit for good cause, including but not limited to the following:

**1.** Violation of any terms or conditions of the grease hauler permit.

**2.** Misrepresentations or failure to fully disclose all relevant facts in the permit application or in any required reporting.

**3.** To correct typographical or other errors in the permit.

**4.** To respond to requests of the permit holder for modifications.

**E. Grease hauler permit denial, cancellation, suspension or revocation.** The Director may deny, cancel, suspend or revoke a grease hauler permit for good cause, including but not limited to the following:

**1.** Violation of any requirement, term or condition of this chapter, a grease hauler permit or any order issued by the Director.

**2.** Obtaining a permit by misrepresentation or failure to fully disclose all relevant facts in either the permit application or any required report.

**3.** Falsification by the permit holder of any permit, report, manifest information or records required by the permit or this chapter.

**4.** Failure to supply information required pursuant to Section 1405 of this chapter.

**5.** Cessation of operations, transfer of business ownership or the issuance of a new permit.

**6.** Refusing to allow the Director reasonable access to the permit holder's operations and equipment.

**7.** Failure to complete a grease hauler permit renewal application or manifest, as required.

**8.** Violation of any terms of a grease hauler permit or this chapter.

**9.** Failure to provide information requested by the Director.

**F.** As used in this chapter, the cancellation, suspension or revocation of a permit shall have the meaning ascribed as follows:

**1.** Cancellation shall render a permit holder's permit null and void from the date of issuance and a permit may only then be issued upon the submission of a new application accompanied by all appropriate fees.

**2.** Suspension shall bar a permit holder from the privilege of engaging in the business of a grease hauler during the period of suspension. Following the expiration of a suspension period a permit holder may resume grease hauler privileges.

**3.** Revocation shall withdraw and nullify the permit holder's privilege to engage in the business of a grease hauler for the period of revocation. Following the expiration of a revocation period, a permit holder may resume grease hauler privileges only upon the submission of a new application, accompanied by all appropriate fees, and the subsequent issuance of a new permit.

*(Ord. Nos. 20910, 21392)*

### Section 1404. Grease hauler and servicing requirements.

Every grease hauler shall comply with the following hauling and servicing requirements:

**A.** All vehicle operators, equipment and vehicles operated by or utilized to transport or dispose of grease trap wastes shall comply with all current federal, state and local laws and licenses.

**B.** Before accepting a load of liquid waste, a grease hauler shall determine the nature of the liquid waste and whether the hauler's equipment is sufficient to properly handle its transportation without spillage, leaks or release of toxic, odorous or harmful gasses.

**C.** A grease hauler shall ultimately remove all contents from the grease trap upon the completion of servicing.

**D.** A grease hauler shall not empty liquid wastes into a generator's solid waste receptacles.

**E.** A grease hauler shall maintain tanks, pumps, valves, hoses, racks, cylinders, diaphragms, pipes, connections and other appurtenances on a vehicle in good repair and free from leaks.

**F.** A plug or cap shall be in place for each tank of a grease-hauling vehicle.

**G.** A grease hauler shall immediately remediate all spillages.

**H.** It shall be unlawful and an offense for any grease hauler to discharge any FOG, sewage or other grease trap waste into the POTW or the storm sewer system.

**I.** Grease haulers should inspect a grease trap for defects and notify the generator, if found.

**J.** All wastes collected by a grease hauler shall be disposed of at a facility permitted, licensed, certified or approved for receipt of such wastes.

*(Ord. Nos. 20910, 21392)*

### Section 1405. Reporting and record keeping requirements.

**A. General reporting requirements.**

**1.** A grease hauler shall immediately report to the Director any violation of this chapter, any grease hauler permit or any order issued by the Director.

**2.** A grease hauler shall report any changes in company contact names or phone numbers to the Director.

**3.** A grease hauler shall maintain a summary log of hauling services the contents and frequency of which shall determined by the Director.

**4.** All required reporting shall be accurate, complete and consistent with the corresponding manifests.

**B. Grease hauling and servicing manifests required.** Every grease hauler shall maintain a grease hauler's manifest, which shall be purchased from the City of Tulsa. A grease hauler shall turn in a properly completed manifest book prior to issuance of a new book. A manifest book shall be assigned to a specific vehicle and shall be used exclusively for that vehicle. A limited number of books will be distributed for each vehicle, as determined by the Director.

**1.** Manifest contents and requirements shall be determined by the Director, but at a minimum shall include an itemized listing of each distinct point of service, the date and time services were rendered and the location, date and time of disposal.

**2.** A grease hauler shall complete one (1) manifest trip ticket for each individual collection.

**3.** Manifests shall be distributed as follows:

**a.** The original page shall be given to the generator after cleaning of the grease trap(s) has been completed and the generator and the hauler have signed it.

**b.** The first copy shall be given to the disposal facility at the time of waste delivery and after the disposal facility's representative has signed it.

**c.** The second copy shall be retained by the grease hauler after disposal.

**d.** The third copy shall be returned to the generator by the grease hauler within fifteen (15) days after the waste was received at the disposal facility.

**e.** The fourth (last) copy shall be retained in the grease hauler's manifest book.

**4.** It shall be unlawful and an offense for grease hauler to collect any grease trap waste from a generator without the proper completion of a manifest.

**5.** The grease hauler shall note any obvious grease trap defects or problems on the manifest.

**C. Record keeping.** All records required pursuant to this chapter shall be retained by a grease hauler for five (5) years. All records shall be available for copying and inspection by the Director.

*(Ord. Nos. 20910, 21392)*

**Section 1406. Compliance inspections and monitoring.**

**A. Right of access.**

**1.** The Director shall have the right to reasonable access for inspecting the operations, equipment or service vehicles owned or operated by a permitted grease hauler.

**2.** The Director shall have the right to reasonable access for the taking of any samples of fluids related to a permitted grease hauler's business.

**3.** Unreasonable delays in allowing the Director access to the items above shall be a violation of this chapter.

**B. Inspections.** All permitted service vehicles shall be subject to reasonable periodic inspections.

*(Ord. Nos. 20910, 21392)*

**Section 1407. Permit termination.**

**A.** A permit holder shall immediately notify the Director in writing when the grease hauler's business is sold or ceases to operate.

**B.** In addition to written notification, the permit holder shall make available all original's of completed manifests.

**C.** Every grease hauler's permit shall be invalid upon the sale or cessation of operation of the grease hauler's business.

*(Ord. Nos. 20910, 21392)*

**Section 1408. Enforcement remedies.**

**A. Notice of violation.** When the Director finds that a grease hauler has violated or continues to violate any provision of this chapter, a grease hauler permit or order

issued hereunder, the Director may serve upon that hauler a written notice of violation. The Director may require the submission of a written explanation of the violation and a plan for its satisfactory correction and prevention, within a time frame specified by the Director. Submission of this plan shall in no way relieve the hauler of liability for any violations occurring before or after receipt of the notice of violation. Nothing in this section shall limit the authority of the Director to take any action, including emergency actions or any other enforcement action, without first issuing a notice of violation.

**B. Administrative fines.**

**1.** Whenever the Director shall find that a grease hauler has violated or continues to violate any provision of this chapter, a grease hauler's permit or order issued hereunder, the Director, in the Director's discretion, may impose upon such hauler a civil fine in an amount not to exceed Five Hundred Dollars ($500.00) per day. Such fines may be assessed on a per violation basis.

**2.** Notice of an administrative fine shall be served personally on the grease hauler or by certified mail, return receipt requested. Payment of the fine shall be to the City of Tulsa and shall be received by the Director within fifteen (15) days after notice is served.

**3.** Failure to submit payment of an administrative fine within fifteen (15) days shall be considered a violation of this chapter, unless the assessment of the fine has been properly appealed prior to the payment date.

**4.** Issuance of an administrative fine shall not be a bar against or a prerequisite for taking any other action against the hauler.

**C. Appeals.** A grease hauler may appeal any notice of violation, administrative fine, permit denial, cancellation, suspension or revocation, or Contractor De-Listing Order issued by the Director pursuant to Subsections 1403.E, 1408.A, 1408.B and 1408.G.

**1.** Persons desiring to appeal such actions shall file a written request stating the grounds for the Director to reconsider the action taken within fifteen (15) days of being notified of the action. Upon receipt of an appeal request, the Director shall convene a hearing on the matter. In the event the hauler's appeal is successful, the Director may modify or withdraw the notice or fine.

**2.** The Director's decisions to deny an appeal or to withdraw or modify an enforcement action shall be considered final, unless a written notice for an appeal to the Tulsa Metropolitan Utility Authority is filed with the City Clerk's office within fifteen (15) days after service on the appellant of the Director's decision or the denial of the appeal due to the Director's failure to act. A hearing on the appeal shall be conducted by the Authority no later than thirty (30) days from the date the notice of appeal was filed with the City Clerk. The Authority shall have jurisdiction to affirm, modify, reverse or remand the action of the Director.

**3.** Within fifteen (15) days following the Utility Authority's action, any party adversely affected by the Utility Authority's action may appeal to the City Council by filing a notice of appeal in the office of the City Clerk and mailing notice to other interested parties and the Director. Such notice shall specify the grounds for the appeal.

4. A hearing on the appeal shall be conducted by the Council no later than thirty (30) days from the date the notice of appeal was filed with the City Clerk. The City Council shall have jurisdiction to affirm, modify, reverse or remand the action of the Director.
5. The enforcement of any notice of violation, administrative fine, permit denial, cancellation, suspension or revocation, or Contractor De-Listing Order issued by the Director shall be automatically stayed during the pendency of an appeal until the Director's action becomes final or the City Council has rendered a final decision.

**D. Injunctive relief.** When the Director finds that a hauler has violated or continues to violate any provision of this chapter, a grease hauler permit or order issued hereunder, the Director may, as authorized by the Mayor, seek injunctive relief, which restrains or compels the specific performance of the grease hauler permit, order or other requirement imposed by this chapter. The Director may also seek such other action as is appropriate for legal or equitable relief.

**E. Criminal prosecution.**

1. It shall be unlawful and a misdemeanor offense for any person to violate any of the provisions of this chapter, a grease hauler permit or an order issued pursuant to this chapter. Any person, convicted of such a violation shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period not exceeding ninety (90) days, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, continued or permitted shall be deemed a separate offense.
2. It shall be unlawful and a misdemeanor offense regarding the pretreatment of wastewater for any grease hauler to willfully or negligently discharge any substance into the POTW. Any grease hauler, convicted of such a violation shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Dollars ($1,000.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period not exceeding ninety (90) days, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, continued or permitted shall be deemed a separate offense. This penalty shall be in addition to any other causes of action for personal injury or property damage available under law.
3. It shall be unlawful and a misdemeanor offense for any grease hauler to knowingly make any false statements, representations or certifications in any application, record, report, plan or other documentation filed, or required to be maintained, pursuant to this chapter, a grease hauler's permit, or an order issued hereunder, or for any grease hauler to falsify, tamper with or knowingly render inaccurate any monitoring device or method required under this chapter. Any grease hauler, convicted of such a violation shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period not exceeding ninety (90) days, or by both such fine and imprisonment.

**F. Remedies nonexclusive.** The remedies provided for in this chapter are not exclusive. The Director may take any, all or any combination of these actions against a non-compliant hauler.

**G. Contractor de-listing.** Grease haulers that fail to comply with provisions of this chapter, or conditions of a grease hauler's permit may, pursuant to a De-Listing Order issued by the Director, be designated as ineligible to receive a contractual award for the sale of goods or services to the City. Existing contracts for the sale of goods or services with the City held by the hauler found to be in significant noncompliance with provisions of this chapter, or conditions of a grease hauler permit may be terminated at the discretion of the Mayor.

*(Ord. Nos. 20910, 21392)*

## Section 1409. Permit fees

The Director shall assess fees for the issuance and renewal of grease hauler permits in the amounts stated in the following schedule:

Initial Permit.....$100.00 (including one vehicle)

Permit Renewal .....$100.00 (including one vehicle)

Hauler Vehicle Approval.....$35.00 for each additional vehicle

*(Ord. Nos. 20910, 21392)*

## CHAPTER 15. NET-ZERO WATER PROJECTS

Section 1500. Title; overview and purpose.
Section 1501. Definitions.
Section 1502. Net-zero water projects.

### Section 1500. Title; overview and purpose.

**A. Title.** This chapter may be cited as the "Net-Zero Water Projects Ordinance."

**B. Overview and purpose.** The Net-Zero Water Projects Ordinance is hereby adopted to establish an alternative method of providing potable water other than by connection to the City of Tulsa or other municipal water supply, and for an alternative method of treating and disposing of wastewater other than by connection to the sanitary sewer system of the City of Tulsa or other municipal sanitary sewer system, for particular projects authorized and approved as herein provided.

*(Ord. No. 24169, § 1, 7-10-2019)*

### Section 1501. Definitions.

For the purposes of this chapter, the following words and terms have the meanings ascribed to them by this section; words and terms not defined in this section shall have the meanings given to them if defined elsewhere in the Revised Ordinances of the City of Tulsa, and if not defined elsewhere in the Revised Ordinances of the City of Tulsa, then words or terms not defined herein shall have the meanings given to them by the laws and administrative regulations of the State of Oklahoma, and by common and ordinary usage:

**A. Aerobic sewage treatment system:** A private on-site sewage treatment system approved by the Oklahoma Department of Environmental Quality that uses forced air to treat gray water and sewage and which utilizes surface application or drip irrigation to disperse treated gray water and sewage.

**B. Applicant:** A person, firm, corporation, or other legal entity, acting personally or as an agent, seeking approval of a Net-Zero Water Project.

**C. Building permit:** Formal written permission by the City of Tulsa to perform construction, alteration, repair or related activities within the municipal limits of the City of Tulsa or within its jurisdictional control, as required by Ordinance.

**D. City:** The City of Tulsa, Oklahoma, acting through its authorized officers, employees and agents and including the Tulsa Metropolitan Utility Authority.

**E. Composting toilet:** A type of toilet that treats human excreta by a biological process utilizing oxygen, heat and moisture called composting, leading to the decomposition of organic matter that turns human excreta into compost.

**F. DEQ:** The Oklahoma Department of Environmental Quality, or its successor.

**G. Development Services Department:** The department of the City of Tulsa having jurisdiction and control over the issuance of building permits, occupancy permits, and similar permits and approvals for the construction of buildings and improvements.

**H. Domestic sewage lagoon:** A total retention domestic sewage treatment pond, approved in accordance with Chapter 10 of Title 17 of TRO.

**I. Gray water:** Untreated household wastewater that has not come into contact with toilet waste and includes wastewater from bathtubs, showers, washbasins, lavatories, clothes washing machines and laundry tubs, kitchen sinks and dishwashing machines, but excludes wastewater containing human excreta.

**J. Health Department:** The Tulsa City-County Health Department, or its successor.

**K. Human excreta:** The bowel and kidney discharges of human beings.

**L. Net-zero water project:** A project that is designed to utilize water generated or collected on-site to be treated on-site to produce potable water for all water needs at the project location; and to treat and dispose of all wastewater (gray water and sewage) at the Project location without use of a public sanitary sewer system.

**M. On-site water collection and treatment system:** A private system of capturing, generating and storing water at the site of the net-zero water project, together with an engineered system of filtration and treatment to provide potable water, and excluding water that is piped or imported to the project site.

**N. On-site wastewater treatment and disposal system:** A private engineered system receiving, storing, treating and disposing of wastewater produced at the site of the net-zero water project, without connection to a public sanitary sewer.

**O. Ordinance:** A legislative act of the City Council of the City of Tulsa which has become effective in accordance with the Amended Charter of the City of Tulsa.

**P. Potable water:** Water that is treated by filtration and other processes, and is safe for human consumption in compliance with the Safe Drinking Water Act, 42 U.S.C. § 300(f), *et seq.*, and the regulations of DEQ.

**Q. Project:** An organized undertaking at a specific location to complete pre-determined objectives for the planning, design, construction, repair, improvement or expansion of buildings or facilities, as detailed in construction plans, specifications and other related documents.

**R. Property owner:** The record owner of the real property upon which a net-zero water project is planned, has commenced or is completed.

**S. Sanitary sewer:** An underground pipe system that conveys wastewater to a public wastewater treatment facility for treatment and discharge and/or disposal.

**T. Septic tank system:** All or any portion of any structure or system receiving wastewater by pipe from any residence, business or industrial plant, other than those connected directly to an approved sanitary sewer and other than a private sewage lagoon. The term "septic tank system" shall include aerobic sewage treatment systems approved by DEQ.

**U. Sewage:** Water-carried wastes normally discharged into a sanitary sewer system which contains human excreta, free of stormwater and industrial wastes.

**V. TRO:** The Revised Ordinances of the City of Tulsa.

**W. Wastewater:** Gray water and/or sewage.

*(Ord. No. 24169, § 1, 7-10-2019)*

**Section 1502. Net-zero water projects.**

**A. Application for approval of a net-zero water project.** An applicant seeking approval of a net-zero water project shall submit the following to the Development Services Department:

**1.** Properly completed application for a building permit together with all construction plans, specifications and other documents as required by the Development Services Department. If a valid building permit has already been issued, a copy of the building permit previously issued and still valid shall be submitted. The application for a building permit shall indicate that the project is proposed to be a net-zero water project.

**2.** All prerequisite permits and approvals which may be required to obtain a building permit, including, but not limited to, a zoning clearance permit, a water/sewer/drainage-storm-water permit, infrastructure development process approval, floodplain development approval, and Health Department approval.

**3.** Plans and specifications for the proposed on-site water collection and treatment system to provide potable water, prepared or approved by a registered professional engineer in the State of Oklahoma. The manufacturer's specifications and installation instructions for the water filtration and treatment system shall be provided as well.

**4.** Plans and specifications for the proposed on-site wastewater treatment and disposal system, prepared or approved by a registered professional engineer in the State of Oklahoma. If one or more composting toilets are to be installed, the applicant shall provide the specific model(s) to be installed together with the manufacturer's specifications and installation instructions. A septic tank system which is planned to be utilized as the wastewater treatment and disposal system must be in compliance with the requirements and regulations of the Health Department, DEQ, and City.

**5.** Approvals and/or permits for the design and installation of the water collection and treatment system and wastewater treatment and disposal system as may be required by the Health Department and DEQ.

**6.** Payment of all permit and application fees as required in Title 49 of TRO.

**B. Required approvals of the City of Tulsa.** Before approval of a net-zero water project by the Development Services Department and the issuance of a building permit, the Director of the Water and Sewer Department, the Engineering Services Department and the Director of the Development Services Department must approve the proposed design and installation of the on-site water collection and treatment system and the on-site wastewater treatment and disposal system, including any composting toilet(s).

**C. Approval of net-zero water project and issuance of a building permit.** Once the Applicant has fully complied with Subsections A. and B. of this Section 1503, and all required approvals have been obtained, the Development Services Department may approve the net-zero water project and issue a building permit.

**D. Miscellaneous requirements, restrictions and provisions.** The following requirements, restrictions and provisions are applicable to all net-zero water projects:

**1.** A net-zero water project is limited to a detached single-family residential dwelling unit or a residential duplex dwelling unit.

**2.** A net-zero water project shall be assigned a separate street address to distinguish the dwelling unit from any other structure.

**3.** A net-zero water project shall include the provision of a capped service line for a future connection to a municipal water supply and a sanitary sewer service for a future connection to a public sanitary sewer system, as approved by the Development Services Department.

**4.** Prior to issuance of a certificate of occupancy, the on-site water collection and treatment system shall be tested by a testing method approved by the Health Department, at the expense of the applicant/property owner to evidence that the water treated and produced on-site is potable water. Such test results shall be furnished to the Health Department for review and approval. If the test results indicate that the water produced by the on-site water collection and treatment system is not potable, then a certificate of occupancy shall not be issued until the test results show that the water is potable and such results are approved by the Health Department.

**5.** Annual testing of water produced by the on-site water collection and treatment system shall be required no more than twenty (20) days prior to July 1 of each year following the completion of the Net-Zero Water Project, at the sole expense of the property owner. The method of testing the water treated and produced must be approved by the Health Department, and the results of such testing shall be immediately provided to the Health Department. If the water tested is shown to be non-potable water, then the City or Health Department may order that the on-site water collection and treatment system cannot be used until the water produced is potable water, as evidenced by further testing by a date certain as set by the Health Department. If such water is not shown to be potable water by the date established by the Health Department, then the property owner shall be required to discontinue the use of the on-site water collection and treatment system, and shall connect to the water supply of the City of Tulsa, or other public water supply if City of Tulsa water is not available to serve the property, at the sole expense of the property owner, within thirty (30) days. If a property owner is required to connect to a public water supply, the provisions of subsection (D)(7) of this section shall apply with respect to the requirement of connection to the public sanitary sewer system of the City of Tulsa.

**6.** If after completion of a net-zero water project, the property owner begins utilizing a sanitary sewer system to discharge wastewater, the property owner shall be required to connect to the water supply of the City of Tulsa or other public water supply, if available, within sixty (60) days from the date of notification in writing by the City of Tulsa, at the expense of the property owner.

**7.** If after completion of a net-zero water project, the property owner begins utilizing a source for potable water other than the approved on-site water collection and treatment system, including, but not limited to, the water supply of the City of Tulsa or bulk water, the property owner shall be required to connect to the public sanitary sewer system of the City of Tulsa at the expense of the property owner, if such sanitary sewer service is available and required pursuant to TRO, within sixty (60) days from the date of notification by the City of Tulsa, in accordance with TRO and duly-adopted regulations of the City of Tulsa.

**8.** Except as authorized by this chapter, a net-zero water project shall comply with the various building and construction codes adopted by the City from time to time and codified in TRO, including, without limitation, the Building Code prescribed by Title 51, the Electrical Code prescribed by Title 52, the Property Maintenance Code prescribed by Title 55, the Plumbing Code prescribed by Title 56, the Mechanical Code prescribed by Title 59, and any applicable Building Codes of the State of Oklahoma which have been adopted by the City of Tulsa.

**9.** With respect to a net-zero water project, the property owner shall ensure that the on-site water collection and treatment system and the on-site wastewater treatment and disposal system are operating properly, safely, and in accordance with the requirements and provisions of this chapter at all times.

**10.** The City or Health Department may inspect the on-site water collection and treatment system and the on-site wastewater treatment and disposal system upon reasonable notice to the property owner to ensure that the systems are functioning properly. If the City or Health Department determines at any time that the on-site water collection and treatment system and/or the on-site wastewater treatment and disposal system are not functioning properly and are hazardous to the health, safety and welfare of the occupants of the premises, and such systems are not functioning properly within ten (10) days after notice deficiency by the City or Health Department is given, then the City may require that the property owner connect to the water supply of the City of Tulsa or other public water supply and the public sanitary sewer system of the City of Tulsa.

**11.** With respect to the sale, transfer, rental or lease of real property and any dwelling thereon which utilizes or will utilize a net-zero water project for on-site water collection and treatment and on-site wastewater treatment and disposal, the property owner shall disclose, in writing, the existence and usage of such systems to any purchaser, transferee, renter or lessee prior to entering into any contract for sale, conveyance agreement, rental agreement or lease. The property owner's written disclosure shall be conspicuous, in all capital letters and underlined, in the contract for sale, conveyance agreement, rental agreement or lease, and in the residential property condition disclosure statement.

**12.** Prior to the issuance of a certificate of occupancy, the property owner shall record, at the property owner's expense, a notice to the public of the use of a net-zero water project for on-site water collection and treatment and on-site wastewater treatment and disposal. Such notice shall state that the subject property is not connected to a public water supply or public sanitary sewer system and shall recite the legal description and street address of the real property where the net-zero water project was installed. Such notice shall be approved by the Legal Department of the City of Tulsa prior to recording in the office of the County Clerk of the county where the net-zero water project is located.

*(Ord. No. 24169, § 1, 7-10-2019)*

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# TITLE 12 INTERNAL POLICIES

**Chapter 1. Energy Policy (Repealed)**
**Chapter 2. Public Safety Policy: Security at City-Owned or Operated Facilities (Repealed)**
**Chapter 3. City of Tulsa Vehicle Policy (Repealed)**
**Chapter 4. Wireless Phone Policy**
**Chapter 5. Travel Policy**
**Chapter 6. Ethics Code**
**Chapter 7. Tulsa Government Television**
**Chapter 8. U.S. Department of Housing and Urban Development Grants**

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# CHAPTER 1. ENERGY POLICY (REPEALED)*

*__Editor's note—__Ord. No. 24631, § 1, adopted June 16, 2021, repealed Chapter 1, §§ 100—103, which pertained to Energy Policy and derived from Ord. Nos. 20188, 20546.

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# CHAPTER 2. PUBLIC SAFETY POLICY: SECURITY AT CITY-OWNED OR OPERATED FACILITIES (REPEALED)*

*__Editor's note—__Ord. No. 24631, § 1, adopted June 16, 2021, repealed Chapter 2, §§ 200—203, which pertained to Public Safety Policy: Security at City-Owned or Operated Facilities and derived from Ord. No. 20189.

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# CHAPTER 3. CITY OF TULSA VEHICLE POLICY (REPEALED)*

*__Editor's note—__Ord. No. 24631, § 1, adopted June 16, 2021, repealed Chapter 3, §§ 300—304, which pertained to City of Tulsa Vehicle Policy and derived from Ord. Nos. 20525, 21587, 21588; 21631; Ord. No. 23315, § 1, 6-11-2015.

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## CHAPTER 4. WIRELESS PHONE POLICY

Section 400. Purpose.
Section 401. Definitions.
Section 402. Statement of policy.
Section 403. General policy guidelines governing the appropriate use of municipal wireless phone equipment and services.
Section 404. Specific policy guidelines governing the appropriate use of municipal wireless phone equipment and services.

### Section 400. Purpose.

Advancements in wireless communications technology and lower costs resulting from increased use and competition in the marketplace have made wireless phones an effective way to improve communications and delivery of municipal services. To ensure continued effective use of these technologies, it is necessary to provide policies and policy guidelines regarding the responsibilities of members of the City of Tulsa government when making decisions on use of municipal wireless phone equipment and services. In many ways the operation and use of wireless phone equipment and services is different from the use and operation of traditional landline telephones in use by the City. As with landline phones and any other public resource, wireless phones demand those entrusted with their use to be accountable. Therefore, this chapter provides policies and policy guidelines governing the appropriate use of municipal wireless phone equipment and services provided with public funds.

*(Ord. No. 20776)*

### Section 401. Definitions.

**A. Mayor** shall mean the Mayor or his/her designee.

**B. Wireless phone equipment and services** are commercially available radio technology that enables paid subscribers, through use of either a car-mounted, transportable or hand-held portable phone, to make and receive local and long distance phone calls through what are commonly referred to as "wireless services," similar to equipment and service provided by cellular phones, personal communications services (PCS) phones, eight hundred (800) megahertz radios and pagers.

**C. Department** shall include all traditional City departments as well as public trusts which have as their beneficiary the City of Tulsa and/or agencies which utilize City employees under agreement with the City of Tulsa, including, but not limited to, the Tulsa Airport Authority and the Tulsa Airport Improvements Trust.

**D. Personal call** shall mean any phone call made by a user for purposes other than conducting official City business in direct support of their assigned duties and responsibilities. Phone calls made by users to notify home or family of a change in work schedule resulting from unexpected duties or assignments, or calls to report or respond to an emergency situation shall not be considered personal calls.

*(Ord. No. 20776)*

### Section 402. Statement of policy.

Use of wireless phone equipment and services provided with public funds must be in direct support of the assigned duties and responsibilities of the user and support policy guidelines

on the delivery of municipal services. At all times, use shall be consistent with specific requirements set forth in this statement of policy to ensure appropriate, efficient, ethical and legal use of wireless phones.

*(Ord. No. 20776)*

**Section 403. General policy guidelines governing the appropriate use of municipal wireless phone equipment and services.**

**A.** The Mayor, as the City's chief administrative and executive officer, shall be responsible for developing and maintaining the required procedures to determine qualifications for obtaining wireless phone equipment and services as well as reviewing usage on a random basis. Such procedures and guidelines shall conform to this ordinance.

**B.** Departmental requests for wireless phone equipment and services shall be made in accordance with procedures established by the Mayor. The Mayor will maintain a register of all City wireless phones, which includes account numbers, phone number, department and employee name to whom the phone is issued.

**C.** The Mayor shall ensure that the register is updated at least once per month. The department should return equipment no longer needed, in accordance with procedures established by the Mayor.

**D.** Any contract between the City of Tulsa and a wireless phone equipment or service vendor, beginning no later than July 1, 2004, shall include a provision requiring the contracted vendor to conduct a rate analysis at least twice per contract year which will determine whether or not users are using the most cost effective rate plan. The Mayor should review the results of these studies with the City department directors to determine if any plan changes should be made within their departments that will reduce costs to the City. As soon as practicable, the Mayor shall present the results of the rate analysis and departmental review to the Council for on-going budget analysis.

**E.** The Mayor is responsible for establishing criteria for assigning wireless phones within each department, for periodically evaluating use of these services and equipment, for ensuring equipment and services are properly contracted for under the established current City contract, and for selecting the most economical rate plan which best meets the requirements for the job.

**F.** All City employees are responsible for ensuring compliance with this chapter and communicating to employees the consequences of noncompliance. City employees who are assigned wireless phones and their respective departmental management are jointly responsible for understanding the terms of this chapter and monitoring the continued applicability of the assigned wireless phone equipment and services to the assigned duties and responsibilities of the City employee who has been assigned a wireless phone.

**G.** City employees who have been assigned a wireless phone are responsible for all calls logged (made and received) from the phone assigned to them, and for reviewing and approving cell phone bills to detect unusual calls. Any concerns must be reported immediately to the Mayor.

**H.** The Mayor, and the department director and supervisor of the City employee who has been assigned a wireless phone are jointly responsible for taking action to remove access to wireless phone equipment and services and instituting appropriate disciplinary action in cases of unacceptable or inappropriate use.

**I.** The Mayor, as the City's chief executive and administrative officer, shall be responsible for administering the wireless phones contract after a competitive bid process determines the best service and equipment provider.

**J.** The Mayor shall be responsible for providing a means by which to track payment to City for personal cell phone use.

*(Ord. No. 20776)*

## Section 404. Specific policy guidelines governing the appropriate use of municipal wireless phone equipment and services.

**A.** Use of municipal wireless phones must be supportive of organizational objectives and be consistent with the mission of the City of Tulsa. All wireless equipment purchased or leased by the City is made available to users by their respective departments for the purpose of conducting City business and is considered City property.

**B.** Use of City provided wireless phones for individual commercial profit or secondary employment not associated with the City of Tulsa is prohibited.

**C.** New wireless phones require department director approval in accordance with procedures established by the Mayor. Effective July 1, 2004, costs for wireless phone equipment and service are to be funded by the requesting department as part of the budget process and billed directly to that department.

**D.** Wireless phones should not be used when a less costly alternative is safe, convenient and readily available. In some cases convenient land line phones or paging systems may be a more effective alternative.

**E.** Wireless phone calls are charged on a per minute basis for both outgoing and incoming calls therefore, calls should be brief and to the point.

**F.** Conversations over wireless phones are not confidential, and can be monitored by outsiders; therefore, users must use appropriate discretion when discussing legal, financial and human resource topics on wireless phones.

**G.** The Mayor may impose additional requirements which extend beyond those set forth in this ordinance. This chapter shall not apply to any collective bargaining agreement which is in effect on July 1, 2004, and which covers public safety officers.

*(Ord. No. 20776)*

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## CHAPTER 5. TRAVEL POLICY

Section 500. Purpose.
Section 501. Definitions.
Section 502. Statement of policy.
Section 503. Standards governing travel authorization.
Section 504. Reimbursement of travel expenses.
Section 505. Donation of travel expenses.
Section 506. Mayor's authority to promulgate rules.

### Section 500. Purpose.

To positively enhance efficiency and accountability in use of public funds relating to travel for official City business and professional development by establishing uniform standards for travel authorization and reimbursement of employee travel expenses.

*(Ord. No. 20892)*

### Section 501. Definitions.

**A. Appointing Authority.**

**1.** For the Mayor and all employees appointed, supervised or removed by the Mayor under Art. III, Section 1.4(F) of Tulsa Revised Charter, the term "appointing authority" means the Mayor of the City of Tulsa or designee;

**2.** For the City Auditor and all individuals appointed, supervised or removed by the City Auditor under Art. III, Section 1.4(F) of Tulsa Revised Charter, the term "appointing authority" means the City Auditor or designee; and

**3.** For City Councilors and all individuals appointed, supervised or removed by the City Council under Art. III, Section 1.4(F) of Tulsa Revised Charter, the term "appointing authority" means the City Council or designee.

**B. Local transportation** means taxicabs, rental cars, buses, shuttles and all vehicles hired based upon a rate per mile or increment of time.

**C. Personal vehicle** means any vehicle not owned by the City of Tulsa or an authority, board, commission or trust of the City of Tulsa.

**D. Travel expense donation** means any travel-related expense paid in whole or in part by any person, firm or corporation other than the City of Tulsa and shall include all contributions, proceeds or honoraria received in connection with travel for official City business or professional development. Discounts and/or waivers of travel-related expenses shall not be considered donations.

*(Ord. No. 20892)*

### Section 502. Statement of policy.

Subject to prior approval by the relevant appointing authority, City employees may travel to participate in official meetings, conferences, seminars, workshops, examinations and related activities necessary and proper to the conduct of City business or directly related to the employee's professional job development.

*(Ord. No. 20892)*

## Section 503. Standards governing travel authorization.

**A.** A request for travel authorization shall be submitted to the relevant appointing authority for approval in advance of the departure date and shall include the names of all City employees attending or seeking to attend the scheduled event.

**B.** Employee travel shall be approved only when necessary and proper and only when one (1) or more of the following criteria is met:

**1.** The travel is necessary to achieve operational and service objectives of the City.

**2.** The travel is required to support state or federal efforts deemed beneficial to the City.

**3.** The travel is mandated by applicable rules or regulations of the state or federal government.

**4.** The travel is for specific training to improve the employee's performance of municipal functions, or to acquire or maintain required certifications.

**5.** The travel is for specific training which will result in a significant cost savings or cost avoidance to the City. Anticipated cost savings or avoidance shall be described in the request for travel authorization.

**6.** The travel is required to attend a national or state board, committee meeting or conference as a municipal representative and the exchange of information or participation will result in an economic or functional benefit to the City. Anticipated economic or functional benefit shall be described in the request for travel authorization.

**C.** Absent special circumstances, travel by more than one (1) employee to the same meeting or location at the City's expense shall not be approved. Where travel authorization is requested for more than one (1) employee, special circumstances justifying the request shall be clearly set forth in the request for travel authorization. Factors to be considered when travel authorization is requested for more than one (1) employee include, but are not limited to: cost, size of the event, relative importance of the event and additional benefit to the City of attendance by more than one (1) employee.

*(Ord. No. 20892)*

## Section 504. Reimbursement of travel expenses.

**A.** Subject to limitations provided in Title 25, Chapter 3, Tulsa Revised Ordinances, City employees may be reimbursed for reasonable expenses incurred while engaged in authorized travel. Allowances for travel and associated expenses shall be those established by ordinance with the following limitations:

**1.** Only business telephone charges will be reimbursed.

**2.** Reimbursement will be made for the expense of laundry and/or dry cleaning only if the trip exceeds five (5) days.

**3.** Reimbursement for per diem allowance shall be limited to the published dates of the event plus the day prior to and the day following the published dates, unless authorized by the appointing authority.

4. Expense of local transportation while traveling out of the City of Tulsa shall be reimbursed. Claims for such expense shall require a receipt only if the amount, including tip, is Fifteen Dollars ($15.00) or more for each conveyance.
5. Local transportation expenses shall be limited to the published dates of the event plus one (1) day prior to and the day following the published event.
6. Airport parking of the traveler's private vehicle will be reimbursed.
7. Travel using a personal vehicle shall be reimbursed at a rate established by the Mayor, which shall not exceed reimbursable mileage expenses established by the United States Internal Revenue Service. Parking and toll fees may also be reimbursed. Travel expenses incurred while using a personal vehicle in lieu of commercial transportation, including additional lodging and per diem, shall not exceed the amount which would have reasonably been incurred if the employee(s) traveled round trip by commercial airline.
8. Employees making an out-of-town trip not requiring an overnight stay, shall be reimbursed only for actual reasonable expenditures for meals, tips, local transportation and other miscellaneous items of travel expense.

**B.** Unless otherwise specified herein, all claims for reimbursement of travel expenses shall be accompanied by receipts for expenditures. The relevant appointing authority must approve all reimbursement of travel expenses.

*(Ord. No. 20892)*

### Section 505. Donation of travel expenses.

All travel expense donations shall be approved by the City Council except those made by governmental entities or agencies, which shall be approved by the Mayor or his designee. Approved travel expense donations shall be documented and accounted for as provided by law.

*(Ord. Nos. 20892, 21029)*

### Section 506. Mayor's authority to promulgate rules.

Except as otherwise required herein, the Mayor of the City of Tulsa is hereby authorized to promulgate rules, regulations and orders necessary and proper to implement and administer the requirements of this chapter.

*(Ord. No. 20892)*

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## CHAPTER 6. ETHICS CODE*

Section 600. Definitions.
Section 601. Prohibitions.
Section 602. Disclosure of financial or organizational interest.
Section 603. Complaints.
Section 604. Investigations.
Section 605. Violations.
Section 606. Supplemental policies and guidance.
Section 607. Ethics Advisory Committee.

### Section 600. Definitions.

For purposes of this chapter, the following words and phrases shall have the meanings given herein:

**Appointing Authority** means the office or entity with authority to appoint an individual to a position or office, regulate official conduct, and/or impose discipline or sanctions for violations of this chapter. For purposes of initiating investigations and receiving findings of fact under this chapter, the City Council shall act as the appointing authority for the City Auditor, individual City Councilors, and City Council staff; and the City Auditor shall act as the appointing authority for the Mayor and City Auditor staff.

**City Official** means every currently serving City of Tulsa elected official, officer, employee, or member of a City of Tulsa board, commission, or committee.

**Financial Interest** in an official action exists when the action may result directly or indirectly in a financial gain or loss accruing to the City Official and/or the Official's Immediate Family to a greater extent than could reasonably be expected to accrue to the general public.

**Immediate Family** means any family members within two degrees of affinity or consanguinity, including a City Official's spouse, parent, child, brother, sister, grandparent, grandchild, mother-in-law, father-in-law, son-in-law, daughter-in-law, stepparent, stepchild, brother-in-law, sister-in-law, grandparent of the Official's spouse, grandchild of the Official's spouse, spouse of the Official's grandparent, or spouse of the Official's grandchild. Brother- and sister-in-law means both the sibling of the Official's spouse and spouse of the Official's sibling.

**Investigating Authority** means the office or person authorized to investigate complaints of violations of this chapter and issue confidential findings of fact. For purposes of this chapter, the City Council shall act as the Investigating Authority for the City Auditor, and the City Auditor shall act as the Investigating Authority for the Mayor and individual City Councilors.

**Organizational Interest** in a company, business, organization, or other entity exists when the City Official is a director or a member of a board which establishes policy and/or makes budgetary decisions for the entity.

*(Ord. No. 25449, § 1, 11-6-2024)*

***Editor's note—**Ord. No. 25449, § 1, adopted November 6, 2024, amended chapter 6 in its entirety to read as herein set out. Former chapter 6, §§ 600—610, pertained to similar provisions, and derived from Ord. No. 21084.

**Section 601. Prohibitions.**

**A. Using or receiving City funds or resources for personal or private purposes.**

**1.** City Officials shall not receive, directly or indirectly, any financial or pecuniary interest, profit, or privilege arising from the use or loan of public funds or monies raised for City purposes, to a greater extent than could reasonably be expected to accrue to the general public, if the City Official also exercises control by appropriating, encumbering, or expending the funds.

**2.** City Officials shall not use or permit the use of City resources for personal or private purposes, except as provided by rules adopted by the appropriate Appointing Authority to address minor or incidental uses common to an ordinary workplace.

**B. Participating on Items of Financial or Organizational Interest.** Except as otherwise permitted under applicable law, City Officials shall not participate in any City business in which they have a related Financial or Organizational Interest. Such City Official shall not discuss the matter with any City Official who is participating in the action other than to state his or her disqualification. A donation to the City will not conflict with a Financial or Organizational Interest unless the donation requires more than nominal consideration from the City or is intended to influence City policy or operations for the benefit of the donor.

**C. Soliciting or Receiving Gifts and Favors.**

**1.** City Officials and their Immediate Family shall not, directly or indirectly, solicit or receive gifts, entertainment, or other favors, which may influence or be reasonably perceived as influencing a City Official in the performance of the Official's duties.

**2.** This subsection does not preclude a City Official from accepting a gift when the gift will not influence or be reasonably perceived as influencing a City Official in the performance of the Official's duties, such as when there are no pending or reasonably foreseeable matters of City business involving the party offering the gift, the City Official has no control or influence over the item of City business involving the party offering the gift, or the gift offered has a value less than $50, individually, or less than $250, collectively with other gifts from the same or related parties, in a calendar year.

**3.** Campaign contributions shall be permitted as provided by law.

**D. Using or Disclosing Confidential Information.** City Officials shall not disclose or offer to disclose information not an open record or otherwise available to the public and acquired by reason of the Official's position with the City, to any party not entitled to receive such information, nor shall a City Official use such information to benefit the Official's Financial or Organizational Interest.

*(Ord. No. 25449, § 1, 11-6-2024)*

**Section 602. Disclosure of financial or organizational interest.**

**A.** A City Official who is required to refrain from participation in City business pursuant to Section 602.B of this chapter shall disclose the disqualifying interest.

**B.** The disclosure required by this section shall be accomplished by filing a written statement describing the interest being disclosed with the Appointing Authority or the Appointing Authority's designee; the board, commission, or committee on which the

Official serves, if applicable; and the City Clerk. A City Official may file a single written disclosure describing the Financial or Organizational Interest and is not required to file a separate written disclosure for each individual circumstance in which the Official states a disqualification.

*(Ord. No. 25449, § 1, 11-6-2024)*

### Section 603. Complaints.

**A.** A complaint asserting a violation of this chapter against a City Official shall be filed in writing with the City Clerk. The City Clerk shall forward the verified complaint to the appropriate Appointing Authority.

**B.** Unless a complaint meets the requirement for an anonymous complaint in subsection C below, a complaint must be signed and show the home or business address of the person who submitted it. The complaint shall include a statement:

**1.** Declaring that, to the best of the complainant's or inquirer's knowledge, information, and belief; formed after reasonable reflection; the information in the complaint is true;

**2.** Containing reliable and credible facts, which are independently verifiable, to establish a prima facia case of the violation of this chapter; and

**3.** Declaring that the complaint is not submitted for any retaliatory, political, or other improper purpose.

**C.** The City Clerk may accept and refer anonymous complaints if, in addition to the statements required in subsection B, the complaint includes a statement describing a reasonable basis for requiring anonymity, such as a reasonable fear of reprisal from the City Official, who is in a position of authority relative to the complainant.

**D.** No complaint shall be accepted or considered which relates to actions alleged to have occurred more than two years prior to the date of filing.

*(Ord. No. 25449, § 1, 11-6-2024)*

### Section 604. Investigations.

**A.** Upon receipt of a complaint, the Appointing Authority shall refer the matter to the appropriate Investigating Authority for prompt, confidential investigation and a report of findings of fact to the Appointing Authority. The Investigating Authority will not make recommendations to the Appointing Authority regarding sanction, disciplinary action, or removal from office.

**B.** The Investigating Authority may recommend summary dismissal of a complaint if the alleged violation, if true, would not constitute a violation of this chapter; if the complaint does not contain reliable and credible facts, which are independently verifiable, to establish a prima facia case of a violation of this chapter; if the complaint is submitted for any retaliatory, political, or other improper purpose; or if the Ethics Advisory Committee has issued an advisory opinion determining that the conduct does not constitute a violation.

**C.** City Officials shall not participate in investigations of their own actions, except to provide information or testimony.

**D.** The appropriate office or agency, including but not limited to the Human Resources Department, Police Department, City Auditor's Office and/or the City Attorney's Office, may assist and participate in investigations involving City Officials.

**E.** City Officials shall respond promptly, fully, and truthfully to inquiries made in the course of official investigations of alleged or potential violations of this chapter.

**F.** All records generated or compiled in response to a complaint, including the initial complaint, shall be released to the public only as required by law or court order.

*(Ord. No. 25449, § 1, 11-6-2024)*

### Section 605. Violations.

Intentional violation of this chapter by a City Official shall be grounds for sanction, disciplinary action up to and including dismissal, or removal from office, as may be provided by applicable policies, rules, or law.

*(Ord. No. 25449, § 1, 11-6-2024)*

### Section 606. Supplemental policies and guidance.

Appointing Authorities shall create and maintain policies and supplemental guidance for City Officials consistent with the provisions of this chapter and Tulsa's Revised Charter.

*(Ord. No. 25449, § 1, 11-6-2024)*

### Section 607. Ethics Advisory Committee.

**A.** There shall be created an Ethics Advisory Committee which shall act as a recommending body to the City of Tulsa on ethical issues that may arise under this chapter.

**B.** The committee shall consist of seven (7) individuals, appointed by the Mayor and confirmed by the City Council. A committee member shall not be a City Official, nor shall a Committee member be Immediate Family of a City Official. Every committee member shall be a resident of the City of Tulsa. Initially, two (2) of the members shall be appointed for a term of office of one (1) year; two (2) members for a term of office of two (2) years; and three (3) for a term of office of three (3) years. Thereafter, terms of office shall be for three (3) years; provided, however, that all members shall hold office until their successors are appointed and qualified. All members shall serve without compensation. Members shall not hold public office nor be candidates for public office. A member who has served three (3) successive terms shall not be eligible for reappointment for a period of two (2) years.

**C.** Any elected official; Charter division or department head; or member of a City of Tulsa board, commission, or committee may request an opinion from the Ethics Advisory Committee on a hypothetical ethical issue arising under this chapter. The Ethics Advisory Committee is not an Investigating Authority and shall not issue findings or opinions on pending complaints.

**D.** The Ethics Advisory Committee may provide recommendations for ethics policies, procedures, or guidelines.

*(Ord. No. 25449, § 1, 11-6-2024)*

## CHAPTER 7. TULSA GOVERNMENT TELEVISION

Section 700. Objectives.
Section 701. TGOV policies.
Section 702. Programming priorities.
Section 703. Coordination and management.
Section 704. Programming restrictions.
Section 705. Copyright of programs.
Section 706. General broadcast approach and schedule.
Section 707. TGOV broadcast channel.
Section 708. Operational framework.

### Section 700. Objectives.

**A.** There is hereby created a Tulsa government access channel (herein referred to as Tulsa Government Television ("TGOV")) to provide citizens of Tulsa with valuable local government information and promote a more informed citizenry by providing a greater opportunity for individuals to view government meetings and information. TGOV may operate through government access channels as provided for by ordinance or otherwise. It may operate through the internet, and/or any other media which may further the dissemination of information to the citizens of Tulsa and create a more open government for Tulsa.

**B.** TGOV's specific objectives include:

**1.** Providing information about programs and services offered by City of Tulsa departments, Tulsa City Council, authorities, boards, commissions and government-supported agencies, including live broadcasts of a variety of such meetings.

**2.** Expanding citizen's awareness of government and its decision-making processes by exposing them to live and tape delayed government meetings and civic events.

**3.** Enhancing existing public information materials by using cable television and other video mediums as a public information tool.

**4.** Providing and distributing programming of interest to Tulsa residents that will inform, educate and enlighten, as well as encourage participation in government services, activities and decision-making.

**5.** Increasing the cost efficiency of service delivery by City departments and agencies.

*(Ord. No. 22305, § 1, 7-29-2010)*

### Section 701. TGOV policies.

TGOV shall be guided by the following policies:

**A. Non-Editorial:** The channel shall provide direct, non-editorial information concerning the operations, services and deliberations of government to the citizens of Tulsa.

**B. Non-Political:**

**1.** The channel is not intended as a mechanism for building support for a particular ballot issue, candidate for public office, a particular vote of the City Council or that of any authority, board or commission. This provision does not preclude the video-casting of non-partisan programs intended to inform the citizens of ballot issues.

2. Declared candidates for any elective office and persons advocating any cause, viewpoint, or proposed policy of a partisan nature will not be eligible to appear prior to an election unless they appear as part of a forum in which all candidates or sides of an issues are given equal time.
3. For purposes of this policy, a person is considered to be a candidate from the time of announcing publicly for any public office until the election has been held. This policy does not apply to persons who receive incidental air time as part of a public meeting being video-cast on the channel, nor to officials acting as part of their regular duties when such actions do not involve partisan policies.

**C. Neutrality:** In any programming concerning subjects that may be interpreted to be materially controversial, TGOV will maintain a position of neutrality, providing unbiased information.

**D. Non-Commercial:** TGOV will not video-cast paid advertising or any program that depicts a product, business and/or service that has the purpose of benefiting a profit-making enterprise.

**E. Non-Discriminatory:** TGOV shall not discriminate in the delivery of its services on the basis of race, color, creed, national origination, sex, sexual orientation or physical ability.

**F. Non-Sectarian Programming:** TGOV will not video-cast any programming that exposes or promotes any particular religious group or belief.

**G. Live Coverage:** TGOV will give priority to live coverage of meetings as resources permit.

**H. Acquired or Pre-Produced Programming:** To maximize resources, TGOV will seek out high quality pre-produced programming that addresses the needs and interests of the citizens of Tulsa and that meets established priorities. All pre-produced programming shall be recommended by the TGOV Programming Advisory Committee and subsequently approved by the TGOV Coordinating Committee.

*(Ord. No. 22305, § 1, 7-29-2010)*

### Section 702. Programming priorities.

**A.** In the event of an emergency, TGOV will be made available as needed; emergency information shall have priority over all other programming. TGOV will work with the Director of Emergency Services to coordinate the use and programming of the channel during emergencies.

**B.** Live and taped coverage of public meetings including those of the City Council, mayoral and councilor press conferences, and various City boards, authorities and commissions.

**C.** The dissemination of information generated by the programs, services and functions of City departments and other governmental agencies, including Homeland Security, citizen education, and related programming.

**D.** Meetings and programs sponsored by regional, state and federal agencies dealing with governmental topics pertaining to the City of Tulsa and of general interest to the citizens of Tulsa.

**E.** Coverage of programs, forums and conferences on issues directly affecting the citizens of Tulsa.

**F.** Reoccurring programs, information series and special reports or one-time special or non-regular informational programs.

**G.** Public Service announcements for City of Tulsa services and programs.

*(Ord. No. 22305, § 1, 7-29-2010)*

### Section 703. Coordination and management.

**A.** There is hereby established a TGOV Coordinating Committee which will be comprised of a designated representative from the Office of the Mayor, a designated representative of the Information Technology (IT) Department, the City Council Communications Director, and the City Council Administrator, who shall serve as Chairman of the TGOV Coordinating Committee.

**B.** The TGOV Coordinating Committee shall approve all policies and approve and coordinate all major operating decisions. The TGOV Coordinating Committee shall meet periodically or as the situation warrants; in the case of a vote taken by the Committee, all ties shall be broken by the Chairman of the TGOV Coordinating Committee who shall also make day-to-day, operating decisions as required. No expenditure shall be made in excess of appropriated funds dedicated to TGOV either directly or indirectly through various City departments.

**C.** A TGOV Programming Advisory Committee is hereby established with invited representation by all City of Tulsa departments and the Director of Emergency Services (or the Public Information Officer for the Emergency Operations Center) or their designee. The Programming Advisory Committee shall make recommendations to the TGOV Coordinating Committee. The City Council's Communications Director shall serve as Chairman of TGOV's Programming Advisory Committee.

*(Ord. No. 22305, § 1, 7-29-2010)*

### Section 704. Programming restrictions.

The following material shall not be broadcast by TGOV:

**A.** Any obscene or salacious material as determined, if necessary, by the Chairman of the TGOV Coordinating Committee;

**B.** Any partisan, political material; or

**C.** Any material which violates Federal, State or local law.

*(Ord. No. 22305, § 1, 7-29-2010)*

### Section 705. Copyright of programs.

Programs containing copyrighted materials will be used only if copyright clearance has been obtained. The ownership and copyright for any program produced by the City of Tulsa, Tulsa City Council, or any City of Tulsa department, authority, board or commission shall be held by the City of Tulsa.

*(Ord. No. 22305, § 1, 7-29-2010)*

### Section 706. General broadcast approach and schedule.

TGOV shall use and broadcast a variety of techniques to fulfill its established objectives, including:

**A.** Live, original programming;

**B.** Tape delayed, original programming;

**C.** Electronic bulletin boards;

**D.** Original, pre-produced programming;

**E.** Acquired, pre-produced programming;

**F.** Live, video streaming; and

**G.** On-Demand, taped delays.

TGOV shall broadcast twenty-four (24) hours a day, seven (7) days a week. Broadcasts shall be repeated daily or as appropriate (e.g., every four (4), six (6) or eight (8) hours), depending upon programming availability and perceived public interest.

*(Ord. No. 22305, § 1, 7-29-2010)*

### Section 707. TGOV broadcast channel.

TGOV shall broadcast on Cox Cable Channel 24 and other video outlets as made available by other cable or wireless providers of video services, and approved by the TGOV Coordinating Committee.

*(Ord. No. 22305, § 1, 7-29-2010)*

### Section 708. Operational framework.

The two (2) key operational entities in the on-going TGOV initiative are the Information Technology ("IT") Department which shall be primarily responsible for technical support, equipment and services and the Tulsa City Council Office which shall be primarily responsible for programming and scheduling support and services.

*(Ord. No. 22305, § 1, 7-29-2010)*

# CHAPTER 8. U.S. DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT GRANTS*

Section 800. Scope.
Section 801. Definitions.
Section 802. HUD Community Development Committee Membership.
Section 803. HUD Community Development Committee duties.
Section 804. Grant processes.
Section 805. Timeliness.
Section 806. Quarterly reports.
Section 807. Off cycle awards and allocations.
Section 808. Appeals.
Section 809. Waiver in a declared emergency.

## Section 800. Scope.

This chapter shall apply to the City of Tulsa's receipt and allocation of all block grant program funds received from the U.S. Department of Housing and Urban Development Department, including, but not limited to, the Community Development Block Grants (CDBG), Home Investment Partnerships Program (HOME), Emergency Shelter or Emergency Solutions Grants (ESG), and Housing Opportunities for Persons with AIDS (HOPWA) programs and any changes thereto, as well as any new programs added by the U.S. Department of Housing and Urban Development.

*(Ord. No. 22813, § 1, 1-31-2013; Ord. No. 23362, § 1, 9-10-2015)*

## Section 801. Definitions.

As used in this chapter, the following terms shall have the meaning set forth below:

**A.** **Annual action plan** shall mean a written plan that specifies the HUD funded activities and allocations for the City of Tulsa for a specific HUD grant period.

**B.** **Annual calendar** shall mean the calendar prepared annually by Grants Administration and posted on the City of Tulsa website (Community Programs - Grants) stating the specific HUD dates and deadlines for submission of HUD plans and reports.

**C.** **CDBG** means Community Development Block Grant, a HUD grant program.

**D.** **CDBG Physical Projects** shall mean those projects which are not classified as public service or economic development.

**E.** **Citizen participation plan** shall mean a written plan that invites public input and citizen participation in the needs for and use of HUD funds, and which is available on the City of Tulsa website (Community Program - Grants).

**F.** **Continuum of Care** or **CoC** shall mean the City of Tulsa Continuum of Care, which considers policies designed to address the critical problem of homelessness, including a coordinated community-based process of identifying needs and building a system to address those needs.

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***Editor's note—**Ord. No. 22813, § 1, adopted January 31, 2013, amended Ch. 8, in its entirety, to read as herein set out. Prior to inclusion of said ordinance, Ch. 8 pertained to Housing and Urban Development Grants. See also the Code Comparative Table.

**G. Consolidated Annual Performance and Evaluation Report (CAPER)** shall mean the annual written report submitted to HUD by the City of Tulsa, which details the performance of funded activities, including expenditures and number and type of beneficiaries served.

**H. Consolidated plan** shall mean the document written by the City of Tulsa describing the housing needs of low- and moderate-income residents, outlining strategies to meet the needs and listing all resources available to implement the strategies. This document is required by HUD for the City to receive HUD Community Planning and Development funds and shall be in conformance with the City of Tulsa's Comprehensive Plan.

**I. Hearing Officer** shall mean the Mayor's designee, who shall hear appeals regarding HUD processes.

**J. HUD** shall mean the U. S. Department of Housing and Urban Development.

**K. HUD Community Development Committee (Development Committee)** shall mean the committee that solicits input regarding community needs and funding priorities, develops the Priority Needs Statement, and recommends funding allocations, including off cycle awards and allocations as set forth in Section 802 and 803 of this chapter.

**L. HUD Grant Funding** shall mean funding for CDBG, HOME, ESG, HOPWA and any revisions thereof, as well as any new programs implemented by the U.S. Department of Housing and Urban Development, established by federal law or regulation.

**M. Needs Assessment Public Hearing** shall mean a public hearing at which public input is heard regarding community needs, as set forth in Section 804 of this chapter.

**N. Off Cycle Awards and Allocations** shall mean those awards, allocations and re-allocations which occur during a HUD grant period and outside of the regular allocation process outlined in this chapter, for the Consolidated Plan, Annual Action Plan, or any amendments thereto.

**O. Priority Needs Statement** shall mean the statement encompassing input from the community, regarding the priority of essential services needed by the citizens of the City of Tulsa and which will guide the grant award and funding selection as set forth in Section 804 of this chapter.

**P. Submission date** shall mean the date established by the HUD for timely submission of the Consolidated Plan, Annual Action Plan, Consolidated Annual Performance and Evaluation Report (CAPER), and any other submissions required by federal law or regulation.

*(Ord. No. 22813, § 1, 1-31-2013; Ord. No. 23362, § 1, 9-10-2015)*

## Section 802. HUD Community Development Committee Membership.

The HUD Community Development Committee (Development Committee) is hereby established to perform the duties set forth in Section 803 below:

**A.** Membership of the Development Committee shall consist of:

**1.** All Tulsa City councilors, who shall serve ex-officio and not be counted for purposes of establishing a quorum;

**2.** One (1) representative of the Indian Nations Council of Governments (INCOG) designated by the Director of INCOG;

**3.** Five (5) residents of the City of Tulsa, designated by the City Council, three (3) of whom reside in a low- to moderate-income census Tract; however, no more than one (1) citizen so appointed shall reside in any one (1) City Council district;

**4.** One (1) representative from a financial institution, designated by the Mayor;

**5.** One (1) representative from the Continuum of Care, designated by the Mayor;

**6.** One (1) representative with grant allocation experience, designated by the Mayor; and

**7.** One (1) representative from the City of Tulsa Planning and Development Department, designated by the Planning Director.

The terms of the members described in A.2, 4, 5, 6, and 7 above, who were appointed in the year 2015, shall expire on June 30, 2016. The terms of the five (5) members who are residents of the City of Tulsa as described in A.3 above, who were appointed in the year 2015, shall expire on June 30, 2017. All members shall be appointed to a two (2)-year term commencing on July 1 of the year of their appointment.

No members shall be affiliated with any agency that is requesting or has received funding for a City administered HUD funded project.

*(Ord. No. 22813, § 1, 1-31-2013; Ord. No. 23362, § 1, 9-10-2015)*

### Section 803. HUD Community Development Committee duties.

**A.** The Development Committee shall:

**1.** Actively solicit public input regarding the long-term and short-term needs of the community, including homeless needs, and shall develop funding priorities for the Consolidated Plan and Annual Action Plan. The Committee shall also evaluate the performance of funded projects and programs. Meetings of the Development Committee shall comply with the Oklahoma Open Meetings Act, and shall be broadcast on TGOV, the City of Tulsa's government access network.

**2.** Conduct all required public hearings as set forth in Section 804(E).

**3.** Receive input from the CoC regarding homeless needs, priorities, goals, outcomes, and evaluation measures.

**4.** Consult with the CoC regarding allocation of funds, developing performance standards, and evaluating outcomes of ESG assisted projects;

**5.** Adopt objective standards for the evaluation and scoring for the HUD Grant Funding;

**B.** The Human Rights Department shall continue to perform its functions as assigned by Executive Order 2009-08, as long as such Executive Order remains in force and effect.

*(Ord. No. 22813, § 1, 1-31-2013; Ord. No. 23362, § 1, 9-10-2015)*

### Section 804. Grant processes.

**A. City of Tulsa Departments.** If the Development Committee identifies needs that are to be managed by City departments, these projects will not be subject to the proposal review. However, City departments should submit project information including budget

information, program description and project goals and measurable outcomes. HUD funds may not be used to replace local general government funds on City projects or services, unless, the City department can document that the services to be provided represent an increase in services beyond the services provided with government funds in the previous year. If a non-profit agency located in the City of Tulsa can provide or perform services which could be performed by a City department, the City's RFP process must be followed to allow non-profit agencies to be considered for the services needed.

**B. Applicant workshops.** Grants Administration staff shall conduct at least three (3) workshops for potential applicants seeking federal grant funds. One (1) workshop shall be conducted for those applicants who have not participated in prior HUD funding processes or have not received funding in the past two (2) years. All workshops will be free and open to the public. All potential applicants are required to attend at least one (1) workshop or their proposal will not be considered.

**C. Proposal deadline.**

**1.** All proposals shall be submitted no later than 5:00 p.m. on the date and location set forth in the applicable Request for Proposal (RFP). The proposal deadline will be no less than forty-five (45) days after the final applicant workshop.

**2.** An applicant will be allowed one opportunity within a five-year period to submit a proposal within one (1) business day after a proposal deadline. Such late applicants will also have an additional three (3) business days to submit missing documentation, as provided in Section 804(D)(5). An application accepted pursuant to this provision will be identified as late in Development Committee recommendations, and will receive a reduction of one percent (1%) from the applicant's overall average score.

**D. Proposal review.** Grants Administration shall:

**1.** Procure a professional facilitator to manage and maintain the integrity of the evaluation process.

**2.** Select a minimum of five (5) reviewers for each application expected to be received. Every application shall be reviewed by no more than one (1) employee from Grants Administration.

**3.** A list of the reviewers selected to review the RFP must be provided to the Development Committee for review prior to commencement of proposal reviews.

**4.** Provide training for the reviewers on the application and criteria to be used to score the proposals prior to commencement of the proposal reviews.

**5.** Pre-screen the applications for missing documentation. Applicants will have three (3) business days to submit the missing documentation. Applicants who do not submit the minimum required documentation as specified in the RFP will not be considered for funding.

**6.** Pre-screen proposed rehabilitation and new construction projects, excluding homeowner minor repairs, emergency repairs, and rehabilitation loans, for the following required information and documentation:

**a.** Demonstrated financial capacity of the applying agency;

**b.** Documentation of funding sources committed toward the total cost of the project, excluding HUD grant request;

**c.** Documentation of site control, proper zoning, and a map showing whether the proposed project is located in a flood plain;

**d.** Architectural/engineering design for the entire project;

**e.** Cost estimate provided by a licensed Professional Engineer (PE) licensed in the State of Oklahoma and authorized to sign and seal plans, drawings, and costs that will be submitted to a public authority for approval;

**f.** Timeline and certification that the project will commence within six (6) months from the date of the grant award and that all HUD grant funds will be spent within two (2) years; and

**g.** Proof that the project will meet a HUD national objective within two (2) years from completion.

Applicants who do not submit the required documentation will not be considered for funding.

**7.** Transmit final scores from the reviewers to the Development Committee. The Development Committee will be responsible for making the funding recommendation to the City Council.

**E. Public hearings.** The Development Committee shall hold public hearings in accordance with the City's Citizen Participation Plan and as required by HUD regulations. The public hearings will be scheduled to meet statutory deadlines for the submission of the Consolidated or Annual Action Plan and the Consolidated Annual Performance and Evaluation Report (CAPER). A minimum of three (3) public hearings will be held annually to receive public comments regarding:

**1.** The needs of the community;

**2.** The Consolidated or Annual Action Plan and funding allocations; and

**3.** The CAPER.

Additional public hearings shall be held as required, including but not limited to:

**1.** Section 108 loan applications; and

**2.** Substantial amendments to the Consolidated Plan.

**F. Policies for allocation of HUD Grant Funding.**

**1.** On or before February 1 or each calendar year, Grants Administration shall publish a calendar showing the dates of all activities related to the development of the Consolidated Plan, Annual Action Plan, CAPER, and other related documents and activities.

**2.** The annual calendar and the following documents shall be posted on the City of Tulsa website (Community Programs - Grants):

**a.** The current Citizen Participation Plan; and

**b.** The City of Tulsa Policies and Procedures Manual related to the administration of HUD Grant Funds.

**3.** Each year, subsequent to the final Needs Assessment Public Hearing, the Development Committee shall draft a Priority Needs Statement for the allocation

of HUD Grant Funds in accordance with HUD statutes and regulations and shall submit it to the Mayor for review and recommendation, who shall forward it to the City Council for approval.

**4.** Upon approval, the Priority Needs Statement shall be incorporated into the Request for Proposals.

**5.** Within fifteen (15) days of receipt of the final scores from the reviewers, the Development Committee shall make funding recommendations based upon the tabulated scores and in accordance with the priorities of the Consolidated Plan and the Annual Action Plan. The Development Committee must submit funding recommendations to the Mayor for review and recommendation.

**6.** In the event there is a tie vote of the Development Committee, the final scores of the reviewers shall be submitted to the Mayor for review and recommendation.

**7.** Within ten (10) business days of being placed on the Mayor's agenda, the Mayor (i) may review the recommendations and submit them to the City Council, or (ii) may recommend changes and submit them to the City Council. Recommended changes to funding recommendations submitted by the Mayor must meet at least one (1) of the annual priorities set by the Development Committee for the program year being approved and provide a written justification for the change.

**8.** After receipt of the recommendations from the Development Committee and the Mayor, the City Council (i) may approve the recommendations or (ii) change and approve the recommendations, and submit them to the Mayor for signature no later than the second Thursday in April. Changes to the recommended allocations of the Development Committee or the Mayor must meet at least one (1) of the annual priorities set by the Development Committee for the program year being approved and provide a written justification for the change.

**9.** This process shall meet the date and time requirements set forth in the Annual Calendar.

**G. Final resolution on consolidated plan and use of funds.** The City Council will take action in accordance with the Annual Calendar to approve the Consolidated and Annual Action Plans and projected use of funds. The Council shall forward the final resolution to the Mayor on the first business day following the Council action for approval and signature.

**H. Submission to HUD.** The Mayor shall be responsible for submitting completed federal grant applications and required annual reports to the appropriate federal offices in a timely manner.

*(Ord. No. 22813, § 1, 1-31-2013; Ord. No. 23362, § 1, 9-10-2015; Ord. No. 23595, § 1, 11-16-2016; Ord. No. 23598, § 1, 11-30-2016)*

### Section 805. Timeliness.

HUD funds are time sensitive and shall be contracted and expended within a reasonable period of time after approval of the Annual Action Plan by HUD. The following conditions shall apply:

**A.** CDBG Public Service and the "Shelter" category of Emergency Solutions Grant projects shall expend all funds within the HUD grant period set forth in the contract. No funds shall be carried forward.

**B.** CDBG Physical projects must provide documentation required by the City of Tulsa, setting forth detailed information that assures the commencement of the project within six (6) months of the approval of the Annual Action Plan pursuant to which the funds were allocated. Required documentation includes, but is not limited to, documentation of all committed financing, timeline, firm development budget, approved procurement and other policies and procedures related to the project. Projects that do not begin within this timeframe or which provide no or inadequate explanation and documentation, will not be awarded funds. A new application may be submitted for the project during the next funding period.

**C.** CDBG Physical and Economic Development projects shall expend all funds within the contract term. Unexpended funds shall not be carried forward, provided however, Grants Administration may extend the contract term by written amendment to the contract if project activities initiated before the end of the contract term can be completed within a reasonable period of time as determined by Grants Administration. Documentation acceptable to Grants Administration must be provided as verification that the activities were commenced prior to the end of the contract term and can be completed within a reasonable period of time acceptable to Grants Administration.

**D.** HOME projects shall be contracted and funds committed within one (1) year of the Annual Action Plan pursuant to which the project was submitted. Projects that cannot be contracted within this time frame must provide to Grants Administration the documentation required by the City of Tulsa setting forth detailed information that assures the commencement of the project within a time period acceptable to Grants Administration. If the required documentation is not provided or such documentation is inadequate, the project will not be awarded funds. A new application may be submitted for the project during the next funding cycle.

*(Ord. No. 22813, § 1, 1-31-2013; Ord. No. 23362, § 1, 9-10-2015)*

### Section 806. Quarterly reports.

Grants Administration shall submit written quarterly reports, within forty-five (45) days after the end of the quarter, to the Development Committee and City Council, summarizing the status of appropriations, fund disbursements, program income, other funds available for allocation, and subrecipient contracts, and describing any outstanding documentation requirements for all projects and programs allocated funding in the current program year.

*(Ord. No. 22813, § 1, 1-31-2013; Ord. No. 23362, § 1, 9-10-2015)*

### Section 807. Off cycle awards and allocations.

Recommendations for allocations and awards outside of the regular annual funding cycle shall be made as follows:

**A.** If available funding can be carried over to the next HUD Program Year, off-cycle awards will generally not be considered in amounts less than one percent (1%) of the current Program Year's HUD Grant Funding.

**B.** If the available funds comprise less than ten percent (10%) of the Program Year's HUD Grant Funding, the Community Development Committee may initiate off-cycle award(s) by making a recommendation to the Mayor, prioritizing currently funded agencies that have expended at least 90% of their project allocation or current program year

applicants whose applications were unfunded, where additional funding would address priority needs identified in the Consolidated Plan and Annual Action Plan. The Development Committee's recommendation will include a list of all departments and agencies requesting or considered for funding and written justification for the recommendation. Within ten (10) business days of the recommendation being placed on the Mayor's agenda, the Mayor will make a recommendation to the City Council, and within fifteen (15) business days of the Mayor's recommendation, the City Council will consider a resolution to allocate the identified funds.

**C.** If the available funds comprise ten percent (10%) or more of the Program Year's HUD Grant Funding, Grants Administration may initiate off-cycle award(s) by notifying the Development Committee and potential applicants of available funds, and proceeding in accordance with the proposals procedure established in Section 804 B through D.

**D.** If Grants Administration determines that the process set forth in Section 807B. or C. above for off-cycle awards cannot meet HUD's fund commitment deadline or will exceed HUD's timeliness standards and if these funds cannot be carried forward to the next grant year, rather than having the funds recaptured by HUD, the Development Committee may initiate an off-cycle award by making a recommendation to the Mayor to disperse the unused grant funds to one or more of the funded grant recipients in the grant category for which funding is available. The Development Committee's recommendation will include a list of all funded grant recipients within the grant category and written justification for the recommendation. Within ten (10) business days of the recommendation being placed on the Mayor's agenda, the Mayor will make a recommendation to the City Council, and within fifteen (15) business days of the Mayor's recommendation, the City Council will consider a resolution to allocate the identified funds.

*(Ord. No. 22813, § 1, 1-31-2013; Ord. No. 23362, § 1, 9-10-2015; Ord. No. 23595, § 1, 11-16-2016; Ord. No. 23598, § 2, 11-30-2016)*

**Section 808. Appeals.**

**A. Right to appeal.** An appeal to a Hearing Officer may be taken by any person or organization aggrieved, where it is alleged there is an error in any order, requirement, decision, determination, or action made by the city official or employee in the allocation, disbursement, accounting, or payment of funds to an applicant awarded funds as provided for in this chapter.

**B. Hearing Officer.** There is hereby appointed a Hearing Officer and alternate Hearing Officers who shall conduct the hearings and perform the duties set forth herein. The Municipal Court Administrator (Municipal Court Clerk) is hereby appointed and shall serve as the Hearing Officer. The Hearing Officer shall appoint and designate one (1) alternate to serve in his or her absence from one (1) of the division head positions in the Municipal Court. The City Council shall appoint and designate a second alternate Hearing Officer from the classified service to serve in the absence of the Hearing Officer and the first alternate.

**C. Right to appeal to Council.** An appeal to the Council may be taken by any person or organization aggrieved where it is alleged there is an error in any order, requirement, decision or determination made by the Hearing Officer.

**D. Notice of appeal.** An appeal from any order, requirement, decision or determination made by the Hearing Officer shall be taken within ten (10) days from the date of the issuance of the notice of the decision of the Hearing Officer by filing with the City Clerk a notice of appeal, specifying the name and mailing address of the Appellant and specifying the grounds thereof.

**E. Council action.** The Council shall hold a hearing and may reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination appealed from and may make such order, requirement, decision or determination as ought to be made.

*(Ord. No. 22813, § 1, 1-31-2013; Ord. No. 23362, § 1, 9-10-2015)*

## Section 809. Waiver in a declared emergency.

**A.** In the event the Mayor declares a civil emergency, the Council may waive this chapter in its entirety as it relates to HUD Grant Funding allocated to the City for purposes related to the civil emergency. Grants Administration shall continue to comply with all applicable federal rules and regulations applicable to HUD Grant Funding. The Council can withdraw such waiver, at any time, in which case, the provisions of Title 12, Chapter 8 shall reinstate.

*(Ord. No. 24334, § 1, 4-1-2020; Ord. No. 24356, § 1, 5-6-2020)*

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# TITLE 13 FIRE DEPARTMENT

**Chapter 1. Fire Department Organization**
**Chapter 2. Protection From Fires**
**Chapter 3. Firefighter's Pension and Retirement System**
**Chapter 4. Hazardous Materials Incident Response**

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## CHAPTER 1. FIRE DEPARTMENT ORGANIZATION

Section 100. Fire Department.
Section 101. Qualifications.
Section 102. Tenure of office and retention of rank.
Section 103. Removal.
Section 104. Chief of Fire Department.
Section 105. Deputy Chief.
Section 106. Rules and regulations.
Section 107. Members of Personnel Committee.
Section 108. Organization of Personnel Committee.
Section 109. Meetings of Personnel Committee.
Section 110. Substitute members.

### Section 100. Fire Department.

The Fire Department of the City of Tulsa ("Fire Department") shall be composed of those officers and members appointed according to the provisions of the Charter of the City of Tulsa.

The Fire Department shall be under the control and supervision of the Chief of the Fire Department ("Chief").

### Section 101. Qualifications.

Every officer and member of the Department, and every applicant for a position therein must:

**A.** Be able to read and write the English language;

**B.** Be in good health and a person of good moral character and temperate and industrious habits;

**C.** Be physically and mentally qualified to discharge all of the duties of a fire fighter in active service;

**D.** Meet the qualifications of the laws of the state of Oklahoma; and

**E.** Shall not be engaged in any business, either within or outside the City, which would interfere with their services in the Fire Department or tend to interfere with their efficiency as a member of the Fire Department; provided, however, that the term "business" as used here does not mean a membership in any fraternal or social order.

*(Ord. No. 14092; Ord. No. 24678, § 1, 9-22-2021; Ord. No. 24805, § 1, 4-20-2022)*

### Section 102. Tenure of office and retention of rank.

The sworn members of the Fire Department, including the Chief, shall hold their respective positions during good behavior and shall be removed, suspended, demoted or discharged only for good and sufficient cause according to the provisions of the Charter of the City of Tulsa.

### Section 103. Removal.

Every officer and member of the Fire Department shall be subject to removal for good and sufficient cause which shall include any violation of his duty, drunkenness, any conduct

unbecoming a fireman, disability of any kind, violation of the rules and regulations for the governance of the Tulsa Fire Department, or residing in an area in excess of twenty-five (25) miles from the Tulsa City Central Fire Station located at Fourth and Frankfort Streets, Tulsa, Tulsa County, Oklahoma; provided, however, that the Council may waive for good cause shown, the twenty-five (25) mile residency limitation.

## Section 104. Chief of Fire Department.

The Chief shall, at all times, have the superintending control of all members of the Department and of all fire apparatus and buildings belonging to the City; he shall have the police powers of a member of the Police Department. He shall take into consideration and report to the Mayor all matters relating to the Fire Department, and to the City property under his supervision. He shall annually make to the Mayor a full and complete report in writing of the condition of the Department, giving in such report a list of the fires in the City for the preceding year, the number of false alarms, the estimated amount of property destroyed and such other statistics in relation to losses, insurance and the causes of fires, as he may be able to procure, and such other information and suggestions in relation to the Fire Department as may be necessary.

It shall be the duty of the Chief to detail one (1) or more firemen in uniform to be on duty on the stage or any other part of any opera house, theater or other building within the City where a public gathering is held, when deemed necessary by him.

All disputes and controversies between officers or members on duty concerning any matter connected with the Department shall be summarily decided by the Chief or, in his absence, by the officer of the highest rank in command. The Chief shall attend all fires that may occur in the City, as far as practicable, and all orders given by him to any member or members of the Fire Department shall be promptly obeyed. It shall be his special duty to see that the provisions of all Revised Ordinances of the City of Tulsa relating to the Fire Department are regularly and strictly enforced.

He shall establish an office which shall be kept open at all hours of the day and night.

*(Ord. No. 111)*

## Section 105. Deputy Chief.

There is hereby created the position of Deputy Chief of the Fire Department of the City of Tulsa. The Deputy Chief shall rank next below the Chief and shall perform such duties and exercise such authority as shall be assigned to him by the Chief.

In case of illness, inability to serve or absence of the Chief, the Deputy Chief shall be in command and shall direct the activities of the Department. In such event, the Deputy Chief shall assume all the duties, functions and responsibilities, and shall have all of the authority of the Chief.

In case of the absence, inability to serve or illness of the Deputy Chief during the absence, inability to serve or illness of the Chief, the Chief Officer designated by the Chief shall be in command and shall direct the activities of the Department.

*(Ord. No. 8609)*

**Section 106. Rules and regulations.**

The Chief, in conjunction with the Mayor, shall make such rules and regulations governing and defining the duties and authority of the other officers and members of the Fire Department as may be necessary or deemed expedient. Such rules and regulations shall receive the approval of the Council before becoming effective and when so approved, shall be deemed the rules and regulations governing the conduct, authority and duties of the officers and members of the Fire Department of the City; provided, however, that no rule and regulation shall be promulgated or enforced which is in conflict with the Charter or Revised Ordinances of the City of Tulsa, or the laws of the state of Oklahoma.

**Section 107. Members of Personnel Committee.**

Elected members of the Personnel Committee, created by the Charter of the City of Tulsa, shall be elected only by those members of the Department who are of the particular class designated by the Charter. Members shall serve for a term of one (1) year after their election. Elections shall be by secret ballot and held on the second Monday in the month of February at each of the fire stations and the fire alarm office of the City. The ballots cast shall be counted by the designated members of the Personnel Committee, and the result declared by the Chief not later than nine o'clock (9:00 p.m.) on the day of election.

*(Ord. No. 4444)*

**Section 108. Organization of Personnel Committee.**

The Chief shall be Chairman of the Personnel Committee and shall, within ten (10) days after the election of its members, call a meeting of the Committee for the purpose of electing a Secretary from among its members, and for the adoption of such rules and regulations for the conduct of the Committee as may be necessary to discharge the duties for which the Personnel Committee was created. It shall be the duty of the members of the Committee to adopt, subject to the approval of the Mayor, such standards of tests, examinations and ratings as will in an impartial manner determine the merit, efficiency and fitness of all applicants for promotion in the Department.

*(Ord. No. 4444)*

**Section 109. Meetings of Personnel Committee.**

The Personnel Committee shall meet at least four (4) times in each calendar year, upon dates to be selected by a majority of the Committee, and at such other times as the Mayor may order. All meetings shall be held at the Central Fire Station in Tulsa.

The secretary shall keep a written record of all meetings of the Personnel Committee.

*(Ord. No. 13057)*

**Section 110. Substitute members.**

In the event an elected member of the Personnel Committee is an applicant for promotion, a substitute shall be selected from the class which he represents at least thirty (30) days before the examination. The substitute shall be elected by the members of his class and shall serve only for the time necessary for the originally elected member to take an examination.

*(Ord. No. 4444)*

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## CHAPTER 2. PROTECTION FROM FIRES

Section 200. Protection of private property.
Section 201. False alarms.
Section 202. Fire hydrants protected.
Section 202.1. Decorated fire hydrants within Destination Districts.
Section 203. Duty of Police.
Section 204. Protection of fire alarm communication system.
Section 205. Penalty.
Section 206. Outside the City.
Section 207. Contract for protection.
Section 208. Outside fire calls authorized.
Section 209. Governmental capacity.

### Section 200. Protection of private property.

The Chief shall place some member of the Department in charge of all buildings, goods and wares damaged by any fire to which the Department has been called, and such member shall remain in charge until the Chief shall have placed the property in the custody of the owner or under guard by a policeman.

*(Ord. No. 139)*

### Section 201. False alarms.

It shall be unlawful for any person or persons to knowingly give or cause to be given any false alarm of fire by means of any alarm box connected with the fire alarm system of the City or by telephone, radio or otherwise.

### Section 202. Fire hydrants protected.

It shall be unlawful for any person to place any permanent or temporary obstruction within eight (8) feet of any fire hydrant, or place any obstruction in any outlet, or in any way to tamper with City fire hydrants.

### Section 202.1. Decorated fire hydrants within Destination Districts.

Fire hydrants within the City's official Destination Districts may be decorated or painted as permitted by this section.

**A.** Representatives of the Destination District, in consultation with City personnel and the City Councilor representing the district, may develop decorative colors and designs to paint on fire hydrants, for the purpose of identifying the Destination District, stimulating tourism and public interest in the district, and fostering community pride and engagement.

**B.** Representatives of the Destination District shall be responsible for the decorating of the fire hydrants according to an agreed-upon plan, and for maintenance of the decoration. Destination Districts shall provide the funding for the painting; no City funds shall be used.

**C.** No decorative color or design shall be painted on a fire hydrant until approval of same be obtained from the Fire Department, the Water and Sewer Department, the City of Tulsa Arts Commission, and the City Council. An operational permit shall be required per Section 105.6.49 of Title 14 TRO.

**D.** No message, slogan, or political or religious symbol shall be applied to a fire hydrant. No fire hydrant shall be painted to look like any human being, fictional character, animal or other creature. Nothing herein shall qualify a fire hydrant as a public forum.

**E.** This section shall apply only to fire hydrants within the official Destination Districts of the City of Tulsa, namely: East Tulsa Main Street, Historic Greenwood, Kendall-Whittier and Route 66, and not to fire hydrants throughout the rest of the City. This section may be amended to add new destination districts as they are created.

**F.** Pertinent ordinances, including Section 202, above, Title 11-C TRO Section 206, Title 27 TRO Sections 1302, 1800 and 1805, and Title 37 TRO Section 522, among others, shall continue in full force and effect, except for the provisions of this Section 202.1. Nothing herein shall be allowed to impair public safety or interfere with the operation and maintenance function of a fire hydrant.

**G.** The City of Tulsa may revoke this permission at any time, for good cause shown. Upon such revocation, the fire hydrant shall be restored to its previous condition and appearance.

*(Ord. No. 24875, § 1, 7-20-2022)*

### Section 203. Duty of Police.

It is hereby made a duty of all policemen in whose area a fire occurs, to watch the hose while strung out for fires and to see that no person shall drive over or across it.

*(Ord. No. 111)*

### Section 204. Protection of fire alarm communication system.

It shall be unlawful for any person, firm or corporation to attach any auditing or recording equipment or any kind of fire alarm warning device to the City fire alarm communications system without first having obtained permission from the Chief or his designee.

*(Ord. No. 11557)*

### Section 205. Penalty.

Every person violating any of the provisions of Sections 201, 202 and 204 of this chapter shall be guilty of an offense, and upon conviction thereof, shall be punished by imprisonment in the City jail for a period of not more than ninety (90) days and/or by a fine of not more than One Hundred Dollars ($100.00), excluding costs.

### Section 206. Outside the City.

The City of Tulsa is authorized and empowered to enter into contracts and agreements with individuals, firms, private corporations or associations for fire protection outside the corporate limits of the City, and to contract to provide fire protection separately or jointly with other organizations and municipal subdivisions of the state by furnishing, maintaining and operating fire equipment for outside aid or mutual aid and upon such terms and conditions as is in the best interest of the contracting parties.

*(Ord. No. 4387)*

### Section 207. Contract for protection.

Any contract entered into by the City with an individual owner, firm, private corporation or association for fire protection outside the corporate limits of the City, shall provide for payment to the City, as follows:

**A.** For the attendance of the company first to report to the fire, Five Hundred Dollars ($500.00) for the first hour or any portion thereof and, thereafter, at the rate of Four Hundred Dollars ($400.00) per hour; and

**B.** For the attendance of any additional company, at the rate of Four Hundred Dollars ($400.00) per hour.

The total amount shall be paid to the Director of Finance of the City of Tulsa.

*(Ord. No. 15036)*

### Section 208. Outside fire calls authorized.

The Fire Department is authorized and directed to make all outside calls within a distance of five (5) miles from the nearest fire station unless, in the opinion of the Fire Chief or the Operations Chief on duty, it is not expedient to do so because of another fire in the City or another physical circumstance. Nothing herein shall prohibit the Chief or his designee from dispatching fire or other emergency equipment outside the corporate limits of the City.

*(Ord. No. 9018)*

### Section 209. Governmental capacity.

The Fire Department, answering any fire alarm or performing any fire prevention services outside the corporate limits of the City, shall be considered an agent of the state of Oklahoma acting solely in a governmental capacity, and the City shall not be liable in damages for any act of commission, omission or negligence while answering or returning from any fire, or reported fire, or doing or performing any fire prevention work authorized by this chapter.

*(Ord. No. 4387)*

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## CHAPTER 3. FIREFIGHTER'S PENSION AND RETIREMENT SYSTEM

Section 300. Local Firefighter's Pension and Retirement Board.
Section 301. Fire runs outside of City.
Section 302. Contributions by the City.
Section 303. Reports.
Section 304. Evidence.

### Section 300. Local Firefighter's Pension and Retirement Board.

There is created the Tulsa Local Firefighter's Pension and Retirement Board ("Board"). The members of the Board shall be the Mayor, as ex officio chairman, the City Clerk, as ex officio secretary, the City Treasurer, as ex officio treasurer, and three (3) members of the Fire Department who shall be elected in the manner prescribed by the laws of the state of Oklahoma. The Board shall have full power and authority to perform all duties required by the laws of the state of Oklahoma relative to the Firefighter's Pension and Retirement System.

The provisions of the Firefighter's Pension and Retirement System of the state of Oklahoma and all amendments thereto are adopted.

### Section 301. Fire runs outside of City.

All firemen of the City of Tulsa attending and serving at fires or doing fire prevention work outside the corporate limits of the City of Tulsa shall be considered as serving in their regular line of duty, and they shall receive no additional compensation but shall be entitled to all the benefits of the Firefighter's Pension and Retirement System in the same manner as if the fire fighting or fire prevention work was being done within the corporate limits of the City.

*(Ord. No. 4387)*

### Section 302. Contributions by the City.

To comply with the laws of the state of Oklahoma and to receive its share of the Motor Fuel Excise Tax, the City shall deposit monthly in the Oklahoma Firefighter's Pension and Retirement System an amount equal to ten percent (10%) of the total actual paid gross salaries of the members of the Fire Department. The City elects not to pay any part of the contribution required by state law to be made by the members of the Fire Department.

### Section 303. Reports.

It is hereby made the duty of the City Clerk to record with the Oklahoma Firefighter's Pension and Retirement Board on December 31 of each year on the Fire Department Report the name of the Fire Department, the number of pieces of fire apparatus, the number of fire stations and organized companies, the system of water supply in use in the department and the number of fire fighters having served that calendar year with their names, birthdates, dates of appointment and dates of expiration of term of service.

### Section 304. Evidence.

The records of the Clerk and the Fire Department shall be the best evidence as to the term of years applicants for a service pension have served as members of the Fire Department.

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## CHAPTER 4. HAZARDOUS MATERIALS INCIDENT RESPONSE

Section 400. Definitions.
Section 401. Nuisance.
Section 402. Response.
Section 403. Responsibility.
Section 404. Exemptions.
Section 405. Annual fee in lieu of costs.
Section 406. Annual fee in lieu of costs for persons outside the City of Tulsa.
Section 407. Service limits.
Section 408. Appeal.

### Section 400. Definitions.

**A.** For purposes of this chapter, "hazardous substance" means any substance that, because of its quantity, concentration or physical or chemical characteristics, poses a significant present or potential hazard, according to federal, state and/or local standards and regulations, to human health and safety or to the environment if released from its intended container.

**B.** For purposes of this chapter, a hazardous materials incident is defined as any incident involving the release, abandonment, discharge or deposit of any hazardous material from its intended container which, unless otherwise provided herein, has the potential to harm persons, property or the environment.

**C.** Business entity or person means any corporation, sole proprietorship, partnership, limited partnership, person, firm or other similar entity engaged in any commercial, business or industrial transaction of any nature.

**D.** Hazardous materials response team means the hazardous materials response team of the City's Fire Department.

**E.** Responsible party means, jointly and severally, all persons involved in the possession, ownership or transportation of any hazardous material that is released, abandoned, discharged or deposited.

*(Ord. Nos. 20646, 20721, 21148)*

### Section 401. Nuisance.

Due to the harmful effects of hazardous substances, a hazardous materials incident is hereby declared to be a nuisance.

*(Ord. Nos. 20646, 21148)*

### Section 402. Response.

The Mayor, or his designee, is authorized to respond in such manner as he deems appropriate, but shall not be obligated by any provision of this chapter to respond, to any hazardous materials incident within or outside the City of Tulsa in order to mitigate the effects of any hazardous substance or waste unlawfully, accidentally or negligently released, abandoned, discharged or deposited.

*(Ord. Nos. 20646, 21148)*

## Section 403. Responsibility.

**A.** Any of the following described persons shall be liable to the City for the payment of costs incurred by the City as provided herein:

**1.** The person or persons whose accidental, negligent or willful act or omission proximately caused such release, abandonment, discharge or deposit; or

**2.** The person or persons who owned or had custody or control of the hazardous substance or waste at the time of such release, abandonment, discharge or deposit without regard to fault or proximate cause; or

**3.** The person or persons who owned or had custody or control of the container that held such hazardous waste or substance at the time or immediately prior to such release, abandonment, discharge or deposit without regard to fault or proximate cause.

**B.** The costs for responding to a hazardous materials incident by the City shall be computed as follows:

**1.** For response at a hazardous materials incident, when the response team expends resources to mitigate an incident, the rate shall be One Thousand Eight Hundred Dollars ($1,800.00) per hour or any portion thereof; and

**2.** The actual costs of equipment, supplies, materials consumed in the response to the hazardous materials incident and any contract labor utilized in the mitigation efforts.

*(Ord. Nos. 20646, 21148)*

## Section 404. Exemptions.

**A.** Notwithstanding any other provision of this chapter, any individual who constitutes a responsible party as defined in Section 400 shall not be required to pay charges authorized under Subsection 403.B for the release, abandonment, discharge or deposit of any hazardous material if any one (1) of the following conditions is met:

**1.** The individual otherwise responsible or liable for the hazardous materials incident is not involved in the possession, ownership, or transportation of the hazardous materials as the employee, agent or servant of any business entity or person; or

**2.** The individual involved in the lawful possession, ownership or transportation of the hazardous materials released, abandoned, discharged or deposited is involved solely for private, noncommercial purposes related to the individual's own residential property, real property or private personal property, and the individual receives or is to receive no compensation for any services involving the hazardous materials, provided the hazardous materials possessed, owned or being transported by the individual are in forms, quantities and containers ordinarily and lawfully available for sale as consumer products to members of the general public.

**3.** The hazardous material giving rise to the hazardous materials incident was used for the sole purpose of providing power to the vehicle involved in the incident.

**B.** The Mayor and his designee may by contract enter into mutual aid agreements for hazardous materials response services with various persons. No charge shall apply where a contract calls for reciprocal service or supplies without charge.

**C.** None of these exemptions apply if the hazardous materials incident is caused by an act which would constitute a felony, independent of any charge arising from the release, abandonment, discharge or deposit of the hazardous materials.

*(Ord. Nos. 20646, 20721, 21148)*

## Section 405. Annual fee in lieu of costs.

Any entity or person whose principle place of business is within the city limits of Tulsa, may pay an annual fee calculated as set forth hereafter. The fee shall be due on March 1 of each year.

If this fee is paid and is current before a response is made to any hazardous materials incident, the entity or person shall be exempt from any charges pursuant to Section 403.

This fee-in-lieu exemption shall not apply to a hazardous materials incident resulting from an intentional act.

**A.** For businesses according to the number of employees at each fixed facility, the fee per facility shall be:

| | |
|---|---|
| 1—5 employees | $100.00 |
| 6—10 employees | $250.00 |
| More than 10 employees | $500.00 |

**B.** For trucking firms, a fee, in addition to the appropriate fee for fixed facilities set out in Subsection A, above, shall be required according to the number of trucks operated as follows:

| | |
|---|---|
| 1—5 trucks | $100.00 |
| 6—10 trucks | $250.00 |
| More than 10 trucks | $500.00 |

**C.** For railroad companies, a fee, in addition to the appropriate contribution for fixed facilities set out in Subsection A, above, shall be required as follows:

| | |
|---|---|
| For each railroad company | $500.00 |

**D.** For pipeline companies, a fee, in addition to the appropriate fee for fixed facilities set out in Subsection A, above, shall be required as follows:

| | |
|---|---|
| For each pipeline company | $500.00 |

**E.** For barge companies, a fee, in addition to the appropriate fee for fixed facilities set out in Subsection A, above, shall be required according to the number of barges utilized as follows:

| | |
|---|---|
| 1—5 barges | $100.00 |
| 6—10 barges | $250.00 |
| More than 10 barges | $500.00 |

**F.** No single business entity or person shall be required to pay more than Five Thousand Dollars ($5,000.00) per year as a fee in lieu of costs.

**G.** For any other business, entity or person, an annual fee of Twenty-Five Dollars ($25.00).

*(Ord. Nos. 20646, 20712, 21148)*

## Section 406. Annual fee in lieu of costs for persons outside the City of Tulsa.

Any entity or person whose principle place of business is outside the city limits of Tulsa, may pay an annual fee calculated as set forth hereafter. The fee shall be due on March 1 of each year.

If this fee is paid and is current before a response is made to any hazardous materials incident, the entity or person shall be exempt from any charges pursuant to Section 403.

This fee-in-lieu exemption shall not apply to a hazardous materials incident resulting from an intentional act.

**A.** For businesses according to the number of employees at each fixed facility, the fee per facility shall be:

| | |
|---|---|
| 1—5 employees | $200.00 |
| 6—10 employees | $500.00 |
| More than 10 employees | $1,000.00 |

**B.** For trucking firms, a fee, in addition to the appropriate fee for fixed facilities set out in Subsection A, above, shall be required according to the number of trucks operated as follows:

| | |
|---|---|
| 1—5 trucks | $200.00 |
| 6—10 trucks | $500.00 |
| More than 10 trucks | $1,000.00 |

**C.** For railroad companies, a fee, in addition to the appropriate contribution for fixed facilities set out in Subsection A, above, shall be required as follows:

| | |
|---|---|
| For each railroad company | $1,000.00 |

**D.** For pipeline companies, a fee, in addition to the appropriate fee for fixed facilities set out in Subsection A, above, shall be required as follows:

| | |
|---|---|
| For each pipeline company | $1,000.00 |

**E.** For barge companies, a fee, in addition to the appropriate fee for fixed facilities set out in Subsection A, above, shall be required according to the number of barges utilized as follows:

| | |
|---|---|
| 1—5 barges | $100.00 |
| 6—10 barges | $500.00 |
| More than 10 barges | $1,000.00 |

**F.** No single business entity or person shall be required to pay more than Ten Thousand Dollars ($10,000.00) per year as a fee in lieu of costs.

**G.** For any other business, entity or person, an annual fee of Twenty-Five Dollars ($25.00).

*(Ord. Nos. 20646, 20712, 20735, 21148)*

## Section 407. Service limits.

The service provided by the hazardous materials response team is limited to the initial emergency response to a hazardous materials release, abandonment, discharge or deposit

incident and includes only those stabilization and protective measures deemed necessary and feasible by the incident commander to initially address the immediate threat to the public health and safety. Deployment of the team beyond the scope of the team's resources and capabilities for such an initial response is not contemplated under this title and the City reserves the right to terminate the services of the team at any time after arrival at the site. Protective and stabilization requirements continuing beyond the cessation of service, along with the cleaning up, removal or disposal of hazardous materials, and any testing, monitoring or long-term care of the site of the hazardous materials incident shall remain the duty of the responsible party. The provisions of this chapter shall not be construed to excuse or exempt any responsible party from any legal duties, liabilities or costs associated with the hazardous materials release, abandonment, discharge or deposit other than the costs for the services of the hazardous materials response team for the duration of the service call.

*(Ord. Nos. 20646, 21148)*

## Section 408. Appeal.

Anyone assessed the costs of mitigating a hazardous materials incident may appeal the assessment to the City Council by notifying the Council Secretary within thirty (30) days of the date of the notification of the assessment or invoice, whichever is first, said notification of assessment or invoice shall contain language advising the recipient of the time requirements and location at which an appeal must be filed.

*(Ord. Nos. 20646, 21148)*

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# TITLE 14 FIRE PREVENTION CODE

## Chapter 1. ICC International Fire Code, 2018 Edition, Adopted

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## CHAPTER 1. ICC INTERNATIONAL FIRE CODE, 2018 EDITION, ADOPTED

Section 100. Adoption of the ICC International Fire Code, 2018 Edition.
Section 101. Amendments to the ICC International Fire Code, 2018 Edition.

### Section 100. Adoption of the ICC International Fire Code, 2018 Edition.

A certain document, three (3) copies of which are on file in the office of the City Clerk of the City of Tulsa, Oklahoma, being marked and designated as the *ICC International Fire Code*, 2018 Edition, as published by the International Code Council, Inc., hereinafter the "Fire Code" or the "Fire Prevention Code" is hereby adopted for the purpose of safeguarding life and property from fire and explosion hazards by regulating the storage, handling and use of hazardous substances, materials and devices and conditions related to the occupancy of buildings and premises in the City of Tulsa, as herein provided. Each and all of the regulations, provisions, penalties, terms and conditions of the *ICC International Fire Code*, 2018 Edition, are hereby referred to, adopted and made a part hereof as if fully set out in this chapter with the amendments thereto, prescribed in Section 101 of this chapter.

*(Ord. No. 20044, 20824, 21805; Ord. No. 22759, § 1, 9-20-2012; Ord. No. 23013, § 1, 12-12-2013; Ord. No. 23435, § 1, 2-11-2016; Ord. No. 24871, § 1, 7-20-2022)*

### Section 101. Amendments to the *ICC International Fire Code*, 2018 Edition.

The following sections of the *ICC International Fire Code*, 2018 Edition are hereby added, deleted or amended to read as follows:

**101.1 Title-Amendatory.** These regulations shall be known and may be cited as the "Fire Prevention Code of the City of Tulsa," hereinafter referred to as the "Fire Code" the "Fire Prevention Code" or "this code."

**102.13 Buildings Owned by the City of Tulsa-Added.** Buildings and structures owned by the City of Tulsa which are located inside or outside the corporate limits of the City, shall comply with the requirements of this code.

**103.1 Enforcement Agency-Amendatory.** The term "department of fire prevention," as used within the *ICC International Fire Code* shall mean the Office of the Fire Marshal of the Fire Department of the City of Tulsa. The "fire code official" as used in this code shall be the Fire Marshal. It shall be the duty and responsibility of the Fire Marshal to implement, administer and enforce the provisions of this code.

**103.2 Appointment-Amendatory.** The Office of the Fire Marshal shall be appointed in the manner specified in Article X1 of the Charter of the City of Tulsa.

**103.2.1 Peace Officer-Added.** The fire code official and the official's designated assistants may be deemed peace officers with full power to execute legal process, administer oaths, subpoena witnesses, and make arrests within the City of Tulsa, to the same extent that police officers of the City of Tulsa are authorized to do so under the ordinances of the City and the laws of the state of Oklahoma.

**104.12 Fires and Explosions, Entering Premises-Added.** The fire code official shall have the authority, when necessary, in the performance of duties imposed by this code, to enter any building, or any connected premises, where any fire or explosion has recently occurred, to examine it. The fire code official may also enter other buildings

and premises adjoining or in close proximity, to investigate any such fire or explosion, provided that all entries shall be conducted consistent with the constitution and laws of the state of Oklahoma and the United States.

**104.13 Suspicious Fires or Explosions-Added.** The fire code official, in the course of any investigation of a fire or explosion, may cause to be taken the sworn testimony of any person cognizant of any relevant facts and have it reduced to writing. If the fire code official shall determine that there is probable cause to charge any person with the crime of arson, attempted arson, or of causing or attempting to cause any unlawful fire, or should the fire code official have probable cause to believe that any person has committed a criminal offense in connection with any fire, then it shall be the fire code official's duty to cause such person to be arrested and charged with any such offenses. The fire code official shall furnish to the prosecuting authority all evidence, facts, and circumstances, together with the identity of all material witnesses and any sworn testimony, which was discovered during the investigation.

**105.1.6 Annual Permit-Amendatory.** An annual permit is a yearly permit which represents a group of individual permits for each alteration to an already approved electrical, gas, mechanical or plumbing installation. The building official is authorized to issue an annual permit upon application therefor to any person, firm or corporation regularly employing one or more qualified tradespersons in the building, structure or on the premises owned or operated by the applicant for the permit.

**105.1.6.1 Annual permit records-Amendatory.** The person to whom an annual permit is issued shall keep a detailed record of alterations made under such annual permit. The building official shall have access to such detailed records of alterations at all times. At the completion of the entity's annual permit term, the applicant shall file such detailed records of alterations with the building official. Pursuant to the authority of 59 O.S. § 1000.25, the building official shall collect fees for each individual permit which is part of the annual permit once the detailed records are submitted and remit such fees to the OUBCC.

**105.2.5 Payment of Permit Fees-Added.** Upon acceptance of application for a permit, an application fee shall be paid. Upon approval, the applicant shall be notified the permit is ready and advised of what remaining fees are due. In order for the permit to be valid, all fees shall have been paid in full and the permit posted at the job site prior to beginning construction. Payments for permits are due upon notification to the applicant that the permit is approved and is ready for issuance. Any permit not paid for within thirty (30) days after notification may be deemed void by the code official and the application fee shall then be forfeited.

**105.2.6 Alarm Industry Act Adopted and Incorporated by Reference-Added.** The Alarm Industry Act, Title 59 O.S. § 1800.1 et seq. as amended is hereby adopted by reference and incorporated into this code as if set out at-length here, save and except any portions which may be added, deleted, or amended in this title.

**105.2.6.1 Fire Extinguisher Industry Act Adopted and Incorporated by Reference-Added.** The Fire Extinguisher Industry Act, Title 59 O.S. Supp. 2007, § 1820.1 et seq. as amended is hereby adopted by reference and incorporated into this code as if set out at-length here, save and except any portions which may be added, deleted, or amended in this title.

**105.2.6.2 Fire Sprinkler Permit-Added.** The code official shall not issue a permit for the installation, alteration, or repair of fire sprinkler systems, and related equipment, including standpipes, and hose connections to fire sprinkler systems, air line systems used in connection with fire sprinkler systems, and connected tanks and pumps, until the person, firm, corporation, or limited liability company installing the same shall have on file with the City of Tulsa a surety bond in the amount of Two Thousand Five Hundred Dollars and No Cents ($2,500.00). Such bond shall be on a form satisfactory to the City, guaranteeing payment of all obligations and guaranteeing the work to be installed in accordance with the provisions of this code. No person, firm, corporation, or limited liability company shall install automatic fire sprinkler systems unless licensed as provided in Title 59 O.S. § 1800.1 et seq., as amended, and related rules, and regulations.

**105.2.6.3 Licensing-Added.** All fire alarm and fire sprinkler systems governed by this code shall be installed, inspected and repaired by licensed firms and technicians in compliance with occupational licensing laws and regulations promulgated by the Oklahoma Department of Labor, and published in the Oklahoma Administrative Code (OAC), § 380:75. All fire extinguisher systems governed by this code shall be installed, inspected and repaired by licensed firms and technicians in compliance with occupational licensing laws and regulations promulgated by the Oklahoma State Fire Marshal Commission, and published in the Oklahoma Administrative Code(OAC), § 265:50.

**105.2.6.4 Fire Protection System Design Requirements-Added.** All fire suppression and fire alarm system designs submitted to the fire code official for approval, shall be designed and/or reviewed by individuals who have achieved National Institute for Certification in Engineering Technologies (NICET), Level III or IV certification or are a professional engineer. The system designer or reviewer shall include their name, NICET Level, certification number, or professional engineer seal and signature on all drawings submitted to the fire code official for review.

**105.6 Required Operational Permits-Amendatory.** The fire code official is authorized to issue operational permits for the operations set forth in Sections 105.6.1 through 105.6.56 of this code. For each operational permit issued pursuant to Sections 105.6.1 through 105.6.56 of this code, the permit fee(s) shall be as provided in Title 49, Tulsa Revised Ordinances, Chapter 14.

**105.6.16.1 Flammable and Combustible Liquids Storage Tank Removal or Closure-Added.** An operational permit shall be required for the removal or closure of any flammable or combustible liquid, above or below ground storage tank.

**105.6.32 Open Burning-Amendatory.** It shall be unlawful and a misdemeanor offense for any person to kindle or maintain an open fire or a fire on any public street, alley, road, or other public or private ground within the corporate limits of the City of Tulsa, without first having procured an operational permit from the fire code official. Instructions and stipulations prescribed in the permit shall be strictly adhered to.

**Exception:** Recreational fires and portable outdoor fireplaces in use on privately-owned property, which do not require an operational permit. Recreational fires and portable outdoor fireplaces on any public street, alley, road, park, or right-of-way or any other public land are considered to be open burning and a violation of this subsection and shall require an operational permit.

**105.6.37.1 Places of Assembly-Amendatory.** An operational permit shall be required to operate a building, which is otherwise permitted as a place of assembly, in a manner which it was not designed. This includes but is not limited to: operating as a temporary special assembly, a temporary special amusement including seasonal decorations exceeding the allowances in the *International Fire Code*, and/or temporarily exceeding the number of occupants for which the building was designed.

**105.6.49 Decorative Hydrant Permit.** An operational permit is required to alter the color, decorate, or otherwise modify the appearance or view of a fire hydrant. Decorative hydrant permits are limited to specifically approved hydrants within areas approved by the Tulsa City Council. Within a Destination District, all hydrants will be of the same decorative specification. Multiple hydrants in a Destination District may be approved under one permit.

**105.6.51 Energy Storage Systems-Added.** An operational permit is required for stationary and mobile energy storage systems regulated by Section 1206.

**105.6.52 Security Gates-Added.** An operational permit shall be required for all security gates installed across a fire apparatus access road and regulated by Section 503.6 of this code.

**105.6.53 Key Boxes Where Immediate Access Necessary-Added.** An operational permit shall be required for each key box required and regulated by Section 506 and Section 607 of this code.

**105.6.54 Fire Protection System Installation Licenses-Added.** For each firm or individual fire protection system license applied for pursuant to Section 105.2.6.3 of this code, the applicant shall pay all required fees provided in Title 49, Tulsa Revised Ordinances, Chapter 14.

**105.6.55 State or Federal License Inspection-Added.** Any inspection performed by the fire code official pursuant to state or federal licensing requirements shall be subject to the payment of all applicable fees provided in Title 49, Tulsa Revised Ordinances, Chapter 14.

**105.6.56 Training for Employees in Private Enterprises-Added.** All fire safety and fire protection training provided by the Tulsa Fire Department to employees working for a private business entity shall be subject to a fee assessed as provided in Title 49, Tulsa Revised Ordinances, Chapter 14.

**105.7 Required Construction Permits-Amendatory.** The fire code official is authorized to issue construction permits for work as set forth in Sections 105.7.1 through 105.7.25 of this code. For each construction permit issued pursuant to Sections 105.7.1 through 105.7.25 of this code, the permit fee(s) shall be as provided in Title 49, Tulsa Revised Ordinances, Chapter 14.

**105.7.1 Automatic Fire-extinguishing Systems-Amendatory.** A construction permit is required for installation of or modification to an automatic fire-extinguishing system. Maintenance performed in accordance with this code is not considered a modification and does not require a permit.

**Exception:** Maintenance requiring the replacement of over 20 heads will require a construction permit.

**105.7.2 Energy Storage Systems-Amendatory.** A construction permit is required to install energy storage system regulated by Section 1206.

**105.7.3 Capacitor Energy Storage Systems-Deleted.** This section has been stricken from the code per OUBCC rules Section 748:20-4-6(7).

**105.7.7 Fire Alarm and Detection Systems and Related Equipment-Amendatory.** A construction permit shall be required for the installation of or modification to fire alarm and detection systems and related equipment. Maintenance performed in accordance with this code shall not be considered a modification and shall not require a permit.

**Exception:** Maintenance requiring the replacement of over 20 fire alarm devices, or the replacement of the fire alarm panel shall require a construction permit.

**108.6 Overcrowding Unlawful and an Offense-Amendatory.**

1. It shall be unlawful and a misdemeanor offense for any owner, occupant, or the owner or occupant's managing agent or employee to allow the overcrowding or admittance of any person beyond the approved occupant capacity of a building or a portion thereof. The fire code official, upon finding any overcrowding conditions or obstructions in aisles, passageways or other means of egress, or upon finding any condition, which constitutes a life safety hazard, shall be authorized to cause the event or occupancy to cease and desist until such condition or obstruction is corrected.
2. Any person, firm, corporation, or limited liability company convicted of a violation of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each person present in the building or a portion thereof in excess of the posted or genuine calculated maximum occupant load shall be deemed a separate offense.

**109.1 Appeals to the Board of Appeals-Amendatory.** In order to hear and decide appeals of orders, decisions or determinations made by the fire code official relative to the application and interpretation of this code, there shall be a Board of Appeals as created and regulated in the Building Code of the City of Tulsa, Title 51, Chapter 1, Tulsa Revised Ordinances. The fire code official shall be an ex officio member of the Board but shall have no vote on any matter before it.

**109.3 Qualifications-Deleted.** Section 108.3 of the *ICC International Fire Code* is intentionally deleted from this code.

**109.4 Appeals to the Board of Appeals-Added.** The Board of Appeals as established by Title 51, Chapter 1, Tulsa Revised Ordinances, shall hear all appeals from decisions of the fire code official and shall interpret the provisions of this code whenever a dispute arises as to the meaning or intent of any provision. Appeals to the Board shall be governed by Title 51, Chapter 1, Tulsa Revised Ordinances, provided that for any appeal filed regarding the application or interpretation of this code, wherever the term "code official" is used, it shall mean the "fire code official" as used in this code.

**110.2.1 Transfer of Ownership-Added.** It shall be unlawful for the owner of any dwelling unit or structure who has received a compliance order or upon whom a notice of violation has been served to sell, transfer, mortgage, lease or otherwise dispose of such dwelling unit or structure to another until the provisions of the compliance order or notice of violation have been complied with, or until such owner or the owner's

authorized agent shall first furnish the grantee, transferee, mortgagee or lessee a true copy of any compliance order or notice of violation issued by the Code official and shall furnish to the Code official a signed and notarized statement from the grantee, transferee, mortgagee or lessee, acknowledging the receipt of such compliance order or notice of violation and fully accepting the responsibility without condition for making the corrections or repairs required by such compliance order or notice of violation.

**110.3.2.1 Failure to Comply with Notice of Violation-Added.** It shall be unlawful and a misdemeanor offense for any owner, operator, occupant, or other person responsible for the condition or violation to fail to comply with any notice of violation. Any person, firm, corporation, or limited liability company convicted of a violation of this Section 110.3.2.1 of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or by imprisonment fora period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which the failure to comply with the notice of violation is allowed to continue shall be deemed a separate offense.

**110.3.2.2 Nuisance Fire Alarm-Added.** It shall be a misdemeanor offense for any owner, operator, occupant, or other person responsible for a fire alarm system to cause or allow a Nuisance Alarm to be activated on property owned, managed, or occupied by him/her, more than five (5) times in any thirty (30) day period, or more than thirty-six (36) times in any twelve (12) month period. Any person, owner, operator, or occupant convicted of a violation of this Section 110.3.2.2 of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or by imprisonment fora period not exceeding six (6) months, or by both such fine and imprisonment. "Nuisance Alarm" is defined in Chapter 2 of the currently adopted version of the *International Fire Code*.

**110.4 Violation of Fire Code Penalty-Amendatory.** It shall be unlawful and a misdemeanor offense for any person, firm, corporation, or limited liability company to violate any of the provisions of this code, fail to comply with any of the requirements thereof, or to erect, install, repair, alter or do any work in violation of approved construction documents or the directive of the fire code official, or of a permit or certificate issued under provisions of this code. Any person, firm, corporation, or limited liability company convicted of a violation of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, continued, or permitted shall be deemed a separate offense.

**112.4 Failure to Comply-Amendatory.** It shall be unlawful and a misdemeanor offense for any person, firm, corporation, or limited liability company to continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition. Any person, firm, corporation, or limited liability company convicted of a violation of this section shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or

by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, continued, or permitted shall be deemed a separate offense.

**202 General Definitions**

**[BG] Accessory Storage Spaces-Added.** A room or space used for storage purposes that is accessory to another occupancy shall be classified as part of that occupancy.

**Authority Having Jurisdiction-Added.** Means an organization, office, or individual responsible for enforcing the requirements of the State Adopted Building Codes, including the prior authorization or approval of any equipment, materials, installations, or procedures used in all or in part of the construction of a new or alteration or renovation of an existing building or structure, including integral finishes, fixtures and building system therein.

**Battery System, Stationary Storage-Amendatory.** A rechargeable energy storage system consisting of electro-chemical storage batteries, battery chargers, controls and associated electrical equipment designed to provide electrical power to a building. The system is typically used to provide standby or emergency power, an uninterruptable power supply, load shedding, load sharing or similar capabilities.

**BATTERY TYPES.**

**(A) Flow battery.** A type of storage battery that includes chemical components dissolved in two different liquids. Ion exchange, which provides the flow of electrical current, occurs through the membrane while both liquids circulate in their respective spaces.

**(B) Lead-acid battery.** A storage battery that is comprised of lead electrodes immersed in sulphuric acid electrolyte.

**(C) Lithium metal polymer battery.** A storage battery that is similar to the lithium-ion battery except that it has a lithium metal anode in the place of the traditional carbon or graphite anode.

**(D) Lithium-ion battery.** A storage battery with lithium ions serving as the charge carriers of the battery. The electrolyte is a polymer mixture of carbonates with an inorganic salt and can be in a liquid or a gelled polymer form. Lithiated metal oxide is typically a cathode and forms of carbon or graphite typically form the anode.

**(E) Nickel-cadmium (Ni-Cd) battery.** An alkaline storage battery in which the positive active material is nickel oxide, the negative contains cadmium, and the electrolyte is potassium hydroxide.

**(F) Nickle metal hydride (Ni-MH) battery.** An alkaline storage battery in which the positive active material is nickel oxide, the negative electrodes is an intermetallic compound and the electrolyte is usually potassium hydroxide.

**(G) Stationary storage battery.** A group of electrochemical cells interconnected to supply a nominal voltage of DC power to a suitably connected electrical load, designed for service in a permanent location.

**Capacitor Energy Storage System-Amendatory.** A stationary, rechargeable energy storage system consisting of capacitors, chargers, controls and associated electrical

equipment designed to provide electrical power to a building or facility. The system is typically used to provide standby or emergency power, an uninterruptable power supply, load shedding, load sharing or similar capabilities.

**(A)** The definition of a "Preengineered stationary storage battery system" has been stricken from the code.

**(B)** The definition of a "Prepackaged stationary storage battery system" has been stricken from the code.

**Capacitor Array-Amendatory.** Has been stricken from the code.

**Dispensing Area-Amendatory.** The appropriate hazardous (classified) locations for the fuel being dispensed in accordance with the National Electrical Code®-NFPA® 70.

**Energy Storage Management System-Amendatory.** An electronic system that protects energy storage systems from operating outside their safe operating parameters and disconnects electrical power to the energy storage system or places it in a safe condition if potentially hazardous temperatures or other conditions are detected.

**Energy Storage System (ESS)-Added.** One or more devices, assembled together, capable of storing energy in order to supply electrical energy at a future time.

**Energy Storage System Cabinet-Added.** A cabinet containing components of the energy storage system that is included in the UL 9540 listing for the system. Personnel are not able to enter the enclosure, other than reaching in to access components for maintenance purposes.

**Energy Storage System Commissioning-Added.** A systematic process that provides documented confirmation that an energy storage system functions according to the intended design criteria and complies with applicable code requirements.

**Energy Storage System, Electrochemical-Added.** An energy storage system that stores energy and produces electricity using chemical reactions. It includes, among others, battery energy storage systems and capacitor energy storage systems.

**Energy Storage System, Mobile-Added.** An energy storage system capable of being moved and utilized for temporary energy storage applications, and not installed as fixed or stationary electrical equipment. The system can include integral wheels for transportation or be loaded on a trailer and unloaded for charging, storage, and deployment.

**Energy Storage System, Stationary-Added.** An energy system installed as fixed or stationary electrical equipment in a permanent location.

**Energy Storage System, Walk-in Unit-Added.** A prefabricated building that contains energy storage systems. It includes doors that provide walk-in access for personnel to maintain, test and service the equipment, and is typically used in outdoor and mobile energy storage system applications.

**Main Railroad Track-Added.** That part of the railway, exclusive of switch tracks, branches, yards, and terminals upon which trains are operated by timetable or train order or both.

**[BG] Residential Group R-3-Amendatory.** Residential Group R-3 occupancies where the occupants are primarily permanent in nature and not classified as Group R-1, R-2, R-4 or I, including:

Boarding houses (nontransient) with 16 or fewer occupants.

Boarding houses (transient) with 10 or fewer occupants.

Buildings that do not contain more than two dwelling units.

Care facilities that provide accommodations for five or fewer persons receiving care.

Congregate living facilities (nontransient) with 16 or fewer occupants.

Congregate living facilities (transient) with 10 or fewer occupants.

Lodging houses with four or fewer guest rooms and no more than 2 persons per room.

**(A)** [BG] Care facilities within a dwelling. Care facilities for five or fewer persons receiving care that are within a single-family dwelling are permitted to comply with the International Residential Code® provided an automatic sprinkler system is installed in accordance with Section 903.3.1.3 or Section P2904 of the International Residential Code®.

**(B)** [BG] Lodginghouses. Owner-occupied lodging houses with four or fewer guest rooms and no more than 2 persons per room, shall be permitted to be constructed in accordance with the International Residential Code®.

**[BG] Miscellaneous Group U-Amendatory.** Buildings and structures of an accessory character and miscellaneous structures not classified in any specific occupancy shall be constructed, equipped and maintained to conform to the requirements of this code commensurate with the fire and life hazard incidental to their occupancy. Group U shall include, but not be limited to, the following:

**(A)** Agricultural buildings.

**(B)** Aircraft hangar, accessory to a one- or two-family residence (see Section 412.4 of the International Building Code®).

**(C)** Barns.

**(D)** Carports.

**(E)** Communication equipment structures with a gross floor area of less than 1,500 square feet (139 square meters).

**(F)** Fences more than 6 feet (1829 mm) high.

**(G)** Grain silos, accessory to a residential occupancy.

**(H)** Livestock shelters.

**(I)** Private garages.

**(J)** Retaining walls.

**(K)** Sheds.

**(L)** Stables.

**(M)** Tanks.

**(N)** Towers.

**(O)** [BG] GREENHOUSES. Greenhouses not classified as another occupancy shall be classified as Use Group U.

**SELF-SERVICE STORAGE FACILITY-Added.** Real property designed and used for the purpose of renting or leasing individual storage spaces to customers for the purpose of storing and removing personal property on a self-service basis.

**301.1 Scope-Amendatory.** The provisions of this chapter shall govern the occupancy and maintenance of all structures and premises for precautions against fire and the spread of fire and general requirements of fire and life safety.

**305.6 Attempted Burning-Added.** It shall be unlawful to attempt to set fire to or attempt to cause the burning of combustible material in such a manner as to endanger the safety of persons or property. Any person, firm, corporation, or limited liability company convicted of a violation of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment.

**308.1.4 Outdoor Cooking and Open Flame Devices-Amendatory.** It shall be unlawful and a misdemeanor offense for any person to operate any charcoal, electric or gas grill, or any other electric or open flame device, on combustible balconies, or within 10 feet of combustible construction.

**Exceptions:**

1. One- and two-family dwellings.
2. Where buildings, balconies and decks are protected by an automatic sprinkler system.
3. LP-gas cooking devices having LP-gas container with a water capacity not greater than 2½ pounds [nominal 1 pound (0.454 kg) LP-gas capacity].

**308.1.6.3 Sky Lanterns-Amendatory.** A person shall not release or cause to be released a sky lantern in the state of Oklahoma per Title 68 O.S. § 1624.1.

Table 315.7.6(1) Refer to OUBCC Rules Title 748:20-4-8(5).

**SECTION 320 STORM SHELTERS-Added.** Refer to OUBCC Rules Title 748:20-4-8 (6, 7, 8, 9, 10, 11, 12, and 13).

**507.4 Water Supply Test-Amendatory.** The City of Tulsa Water and Sewer Department, Distribution Systems Section shall be notified prior to the water supply test. Water supply tests shall be witnessed by a representative of the City of Tulsa Water and Sewer Department; Distribution Systems Section or approved documentation of the test shall be provided to the fire code official prior to final approval of the water supply system.

**507.5.1.2 Fire Hydrant Installation-Added.** Fire hydrants shall be installed according to specifications required by City of Tulsa Water and Sewer Department.

**507.5.1.3-Fire Hydrant Color.** All fire hydrants on the public water distribution system shall be federal yellow in color. All other fire hydrants shall be red in color. **Exception:** Hydrants on the public water distribution system with an approved Decorative Hydrant Permit per Title 14 Section 105.6.49 and Title 13 Section 202.1.

**507.5.1.4 Decorating or Painting of Fire Hydrants Without a Permit.** It shall constitute a violation of this code for any person, firm, corporation, or limited liability company to alter the color, decorate, or otherwise modify the appearance or view of a fire hydrant without an approved Decorative Hydrant Permit in accordance with Section 105.6.49 and Title 13 Section 202.1.

**508.1.3 Size-Amendatory.** The fire command center shall be not less than 0.015 percent of the total building area of the facility served or 200 square feet (19 square meters) in area, whichever is greater, with a minimum dimension of 0.7 times the square root of the room area or 10 feet (3048 mm), whichever is greater.

**Exception:** When approved by the fire code official the fire command center can be reduced in size to not less than 96 square feet (9 $m^2$) in area with a minimum dimension of 8 feet (2438 mm).

**606.7.1 Fire-Fighter Service Keys-Added.** Fire-fighter service keys shall be kept in a lock box at an approved location in the elevator lobby, not more than 10 feet from any elevator and shall be available for immediate use by firefighting and rescue personnel. Keys shall be clearly marked as elevator keys and shall be identified for the specific elevator for which they work. Instructions for the operation of the elevator(s) shall be type-set on a plastic encased card and kept with the elevator keys.

**Exception:** Fire-fighter service keys shall be kept in a lock box at an approved location on the exterior and not more than 10 feet from the main entrance to a building provided that prominently marked keys or access codes to the building are also provided.

**606.9 Elevator Maintenance-Added.** In buildings equipped with passenger elevators, at least one elevator shall be maintained in operation at all times the building is occupied.

**Exception:** Buildings equipped with only one (1) elevator shall be permitted to have the elevator temporarily out of service for testing or servicing.

**[M] 607.2 Where Required-Modified.** Refer to OUBCC Rules Title 748:20-4-1 1(1).

**608.1 General-Modified.** Refer to OUBCC Rules Title 748:20-4-11(2).

**901.6.4 Backflow Prevention Assemblies-Added.** All backflow preventers installed in fire protection systems piping shall be tested in accordance with Section 13.6 of NFPA 25. The forward flow and backflow shall be tested annually. A certified backflow prevention assembly tester must perform the specific testing procedures required to verify the proper function of reduced pressure principle assemblies and double check valve assemblies. Certification is obtained by successfully passing both a comprehensive written and a hands-on performance examination provided by either the American Backflow Prevention Association (ABPA) or the American Society of Sanitary Engineering (ASSE). The certification must be kept current by completing the requirements of the certifying organizations.

**903.2.1.2 Group A-2-Amendatory.** An automatic sprinkler system shall be provided throughout stories containing Group A-2 occupancies and throughout all stories from the Group A-2 occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

**1.** The fire area exceeds 5,000 square feet (465.5 $m^2$).

**2.** The fire area has an occupant load of 100 or more.

**3.** The fire area is located on a floor other than the level of exit discharge serving such occupancies.

**4.** A fire area with nightclub occupancy regardless of occupant load, where the total overall occupant load density is denser than 10 square feet (.93 $m^2$) per occupant.

**5.** Existing nightclubs not undergoing a change in fire area in alteration work shall be provided with an automatic sprinkler system in accordance with Section 1103.5.4 of the *International Fire Code*, 2015 Edition, as adopted by the City of Tulsa.

**Table 903.2.11.6 Additional Required Fire Suppression Systems-Amendatory.** Refer to OUBCC Rules Title 748:20-4-14(2).

**903.4.2 Alarms-Amendatory.** Approved audible and visual devices shall be connected to every automatic sprinkler system. Such sprinkler water-flow alarm devices shall be activated by water-flow equivalent to the flow of a single sprinkler of the smallest orifice size installed in the system. Alarm devices shall be provided on the address side of the exterior of the building above the fire department connection (FDC) or in an approved location. Where a fire alarm system is installed, actuation of the automatic sprinkler system shall actuate the building fire alarm system.

**905.3 Required Installations-Amendatory.** Standpipe systems shall be installed where required by Sections 905.3.1 through 905.3.8 and in locations indicated in Sections 905.4 through 905.11. Standpipe systems are allowed to be combined with automatic sprinkler systems.

**Exceptions:**

**1.** Standpipe systems are not required in Group R-3 occupancies.

**2.** Hose nozzles and hose storage devices may be removed with the approval of the fire code official.

**907.2.10.8 Responsibility for Installation, Maintenance and Repair of Smoke Alarms-Added.** Single and multi-station smoke alarms shall be installed, maintained, and repaired by the designated responsible party as follows:

**1.** Property owners shall provide and install replacement batteries as shall be necessary to keep smoke alarms fully functional.

**2.** Property owners shall provide tenants with instructions regarding testing and maintenance of smoke alarms.

**3.** Tenants shall be responsible for testing smoke alarms within their living unit at least once a month.

**4.** A tenant shall notify the owner in writing of any deficiencies or repairs necessary to keep smoke alarms fully functional.

**5.** Property owners shall replace or repair inoperative smoke alarms within 24 hours of receipt of a written notification by a tenant.

**Exception:** Occupancy use Group R-2 shall conform to the following requirements:

**1.** Property owners shall provide and install replacement batteries as shall be necessary to keep smoke alarms fully functional.

**2.** Property owners shall perform necessary maintenance on all smoke alarm defects found during inspections or upon written notification by the tenant.

**3.** Property owners shall replace or repair an inoperative smoke alarm within 24 hours of receipt of written notification by a tenant.

**4.** Property owners shall provide tenants with instructions regarding testing and maintenance of smoke alarms.

**5.** Tenants shall be responsible for testing battery-powered smoke alarms within their living unit weekly and, if the smoke alarm is other than battery-powered smoke alarm, monthly.

**6.** Tenants shall notify the owner in writing of any deficiencies or repairs necessary to keep smoke alarms fully functional.

**7.** Owners shall provide a signed lease or rental agreement addendum specifying the responsibilities of the owner and the tenant regarding smoke alarm maintenance and testing. Upon request by the fire code official, an owner shall make this lease or rental addendum available for inspection.

**907.2.22 Energy storage systems-Amendatory.** Refer to OUBCC Rules Title 748:20-4-14(4).

**907.2.23 Capacitor energy storage systems.** This section has been stricken from the code. Refer to OUBCC Rules Title 748:20-4-14(5).

**Table 911.1 Explosion Control Requirements-Amendatory.** Refer to OUBCC Rules Title 748:20-4-14(6).

**912.1 Installation-Amendatory.** Fire department connections shall be installed in accordance with the NFPA standard applicable to the system design and shall comply with Sections 912.1.1 through 912.7.

**912.1.1 Fire Department Connection Inlet Size-Added.** The fire department connection shall be a 5" (130 mm) Quick-Connect Connection with a 30° angle elbow for risers larger than 3" (78 mm) in size. A single 2½" (65 mm) NH Standard Thread inlet is permitted for risers 3" and smaller. Fire department connections on NFPA 13R systems shall be a minimum of a single 2½" (65 mm) NH Standard Thread inlet.

**1003.4 Floor Surface-Modified.** Refer to OUBCC Rules Title 748:20-4-15(1).

**1008.2.3 Exit Discharge-Modified.** Refer to OUBCC Rules Title 748:20-4-15(2).

**1010.1.9.3 Locks and Latches-Amendatory.** Locks and latches shall be permitted to prevent the operation of doors where any of the following conditions exist:

**1.** Places of detention or restraint.

**2.** In buildings in occupancy Group A having an occupant load of 49 or less, Groups B, F, M and S, and in places of religious worship, the main door or doors are permitted to be equipped with key-operated locking devices from the egress side, provided:

**2.1** The locking device is readily distinguishable as locked.

**2.2** A readily visible durable sign is posted on the egress side, on or adjacent to the door, stating: THIS DOOR TO REMAIN UNLOCKED WHEN THIS SPACE IS OCCUPIED. The sign shall be in letters 1 inch (25 mm) high on a contrasting background.

**2.3** The use of the key-operated locking device shall be revocable by the fire code official for due cause.

**3.** Where egress doors are used in pairs, approved automatic flush bolts shall be permitted to be used, provided that the door leaf having the automatic flush bolts does not have a doorknob or surface-mounted hardware.

**4.** Doors from individual dwelling or sleeping units of Group R occupancies having an occupant load of 10 or less are permitted to be equipped with a night latch, dead bolt or security chain, provided such devices may be opened from the inside without the use of a key or tool.

**5.** Fire doors after the minimum elevated temperature has disabled the unlatching mechanism in accordance with listed fire door test procedures.

**6.** Doors serving roofs not intended to be occupied shall be permitted to be locked, preventing entry to the building from the roof.

**1010.1.9.8.1 Electrical Locking System-Added.** Buildings permitted prior to 1999 that are not in compliance with Section 1010.1.9.7 of this code shall be permitted to utilize an electrical locking system with the following conditions, provided, the building is equipped throughout with an automatic sprinkler system in accordance with Section 903 of this code, and an approved automatic smoke or heat detection system installed in accordance with Section 907 of this code:

**1.** The electrical locking system shall be interconnected with the automatic sprinkler system and automatic fire detection system such that it unlocks upon actuation of the automatic sprinkler system or automatic fire detection system.

**2.** The electrical locking system shall unlock upon loss of power controlling the lock or locking mechanism. The door locks shall not be connected to an emergency power system.

**3.** A constantly and internally lit button with ¾" (19.1 mm) minimum surface dimension shall be provided 48" above the floor and within 12" (305 mm) of the door on the latch side, together with an immediately adjacent sign reading "PRESS BUTTON IF EMERGENCY DOOR OPERATION IS NEEDED" of 2" (50 mm) high letters in contrasting color to the sign surface. Equivalent Braille signage shall be provided on the sign surface, mounted 48" (1219 mm) minimum from the floor to the bottom of Braille text. Activation of the button by pressing under a force not exceeding ½ pound (2.23 N) will immediately operate a voice communication system connected to a central control point that is constantly attended that is not required to be within the building, with the ability for the central control point to immediately contact another person to respond to the emergency.

**4.** Emergency lighting and exit light fixture shall be provided.

**5.** Electrical Locking System locks provided under this section shall be required to be tested annually by an Electronic Access Control Hardware company during the annual fire alarm inspection to assure they function as required in items 1 and 2 of this section.

**6.** An occupant within the building shall be provided with at least one direct access to an exit without being required to pass through a door equipped with such electrical locking system.

**7.** An occupant within the building shall not be required to pass through more than one door equipped with such electrical locking system before entering an exit.

**1010.1.9.12 Stairway Doors-Amendatory.** Interior stairway means of egress doors shall be openable from both sides without the use of a key or special knowledge or effort.

**Exceptions:**

**1.** Stairway discharge doors shall be openable from the egress side and shall only be locked from the opposite side.

**2.** This section shall not apply to doors arranged according to Section 403.5.3 of the *International Building Code*.

**3.** In stairways serving not more than four stories, doors are permitted to be locked from the side opposite the egress side, provided they are openable from the egress side and are capable of being unlocked simultaneously without unlatching upon a signal from the fire command center, if present, or a signal from emergency personnel from a single location inside the main entrance to the building.

**4.** Stairways exit doors shall be openable from the egress side and shall only be locked from the opposite side in Group B, F, M and S occupancies where only interior access to the tenant space is from a single exit stairway where permitted in Section 1006.3.2.

**5.** Stairways exit doors shall be openable from the egress side and shall only be locked from the opposite side in Group R-2 occupancies where only interior access to the dwelling unit is from a single exit stairway where permitted in Section 1006.3.2.

**6.** Doors on stair enclosures shall be permitted to be equipped with hardware that prevents re-entry into the interior of the building, provided that:

**6.1** There are at least 2 levels where it is possible to leave the stair enclosure, and

**6.2** There shall be not more than 4 floors intervening between floors where it is possible to leave the stair enclosure, and

**6.3** Re-entry is possible on the top or next to the top floor permitting access to another exit, and

**6.4** Doors permitting re-entry are identified as such on the stair side of the door.

**1010.1.9.13 Fail-safe Electronic Locks-Added.** Except for Group A, E and H occupancies, approved fail-safe electronic locks shall be permitted to be installed on doors serving any occupancy in buildings that are equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1 and an approved automatic smoke or heat detection system installed in elevator lobbies and machine rooms as required for elevators with recall capabilities, provided that the fail-safe electronic locks comply with all the conditions in paragraphs 1 through 6 below, to access a required exit other than the first required exit.

**1.** The fail-safe electronic lock shall unlock upon actuation of the automatic fire sprinkler system, or automatic smoke or heat detection system.

**2.** The fail-safe electronic lock shall unlock upon loss of power to the electronic locking system.

**3.** The fail-safe electronic lock shall unlock upon loss of power to the building.

**4.** The fail-safe electronic lock shall not be supplied with emergency and/or back-up power.

**5.** The fail-safe electronic lock when unlocked shall not be reset until after the emergency no longer exists.

**6.** Fail-safe electronic locks provided under this section shall be required to be tested annually by an Electronic Access Control Hardware company during the annual fire alarm inspection to assure they function as required in items 1 thru 5 of this section.

**Exceptions:**

**1.** In addition to the above requirements, where fail-safe electronic locks in accordance with this section are used to secure elevator or stair lobbies that are not provided with direct access to an exit, the lobbies shall be provided with a 2-way communication system with a central station that can be located anywhere inside or outside of the building, provided it is manned 24 hours, 7 days a week. The communication system shall be tested monthly to ensure operational condition. The lobby shall also be provided with a location sign that indicates its location in the building. Direction to exits shall be provided with exit lights as required by this code.

**2.** In addition to the above requirements, where fail-safe electronic locks in accordance with this section are used to secure elevator or stair lobbies that are not provided with direct access to an exit in buildings that are not equipped with a sprinkler system in accordance with Section 903.3.1.1 of the *International Building Code*, the lobbies shall have a manual fire alarm pull station tied into the building fire alarm system, in addition to a 2-Way communication system with a central station that can be located anywhere inside or outside of the building. The central station shall also be manned 24 hours, 7 days a week, and shall be tested monthly to ensure operational condition. The lobby shall also be provided with a location sign that indicates its location in the building. Direction to exits shall be provided with exit lights as required by this code. An informational sign is not required for the manual fire alarm pull station.

**3.** In addition to the above requirements, where fail-safe electronic locks in accordance with this section are installed on stairway doors and its operation requires a primary release from the egress side to release the locking mechanism which is not integral to the latch, a secondary push-button release shall be required to be installed on the egress side, as a back-up unlocking operation, in the event of failure of the primary release mechanism.

**1010.1.10 Panic and fire exit hardware-Amendatory.** Refer to OUBCC Rules Title 748:20-4-15 (3, 4, and 5).

**1011.1 General-Amendatory.** Stairways serving occupied portions of a building, and exterior stairways traversed by human traffic, shall comply with the requirements of Sections 1011.2 through 1011.13, notwithstanding the general scoping provisions of Section 1001.1. Alternating tread devices shall comply with Section 1011.14. Ships ladders shall comply with Section 1011.15. Ladders shall comply with Section 1011.16. These requirements shall not be applicable to stairs or steps in swimming and wading pools; play structures; building systems equipment; and similar structures.

**Exception:** Within rooms or spaces used for assembly purposes, stepped aisles shall comply with Section 1029.

**1015.4 Opening Limitations-Modified.** Refer to OUBCC Rules Title 748:20-4-15(6).

**1015.6 Mechanical equipment, systems and devices-Modified.** Refer to OUBCC Rules Title 748:20-4-15(7).

**1015.6.1 Roof Edge-Added.** Refer to OUBCC Rules Title 748:20-4-15(8).

**1015.6.2 Skylights-Added.** Refer to OUBCC Rules Title 748:20-4-15(9).

**1015.6.3 Roof Hatch-Added.** Refer to OUBCC Rules Title 748:20-4-15(10).

**1015.7 Roof Access-Modified.** Refer to OUBCC Rules Title 748:20-4-15(11).

**1016.2.1 Multiple Tenants-Amendatory.** Where more than one tenant occupies any one floor of a building or structure, each tenant space, dwelling unit and sleeping unit shall be provided with access to the required exits without passing through adjacent tenant spaces, dwelling units, and sleeping units.

**Exceptions:**

1. The means of egress from a smaller tenant space shall not be prohibited from passing through a larger adjoining tenant space where such rooms or spaces occupy less than 10 percent of the area of the larger tenant space through which they pass, are the same or similar occupancy group, a discernible path of egress travel to an exit is provided, and the means of egress into the adjoining space is not subject to locking from the egress side. A required means of egress serving the larger tenant space shall not pass through the smaller tenant space or spaces.
2. Means of egress to the required second exit through another tenant space shall not be prohibited in buildings permitted prior to October 27, 1972.
3. Existing means of egress through another tenant space, approved on or after October 27, 1972 and prior to January 1, 2008, shall be permitted to remain. Newly created means of egress through another tenant space shall not be permitted in buildings permitted on or after October 27, 1972.

**1101.1 Scope-Amendatory.** The provisions of this chapter shall apply to existing buildings constructed prior to the adoption of this code.

**Exception:** Buildings or portions of a building that comply with the latest edition of the *International Existing Building Code*, 2018 Edition, or the edition that was adopted at the time a remodel occurred.

**1103.5.6 Existing College Dormitories-Added.** An approved automatic sprinkler system shall be provided in existing college dormitories that are not incompliance with the *ICC International Building Code*.

**1103.5.7 Existing College Fraternities and Sororities-Added.** An approved automatic sprinkler system shall be provided in existing college fraternities and sororities that are not in compliance with the *ICC International Building Code*.

**1103.5.8 Existing High-rise Buildings-Amended.** An approved automatic sprinkler system shall be provided by January 1, 2010 in all existing high-rise buildings that are not in compliance with the *ICC International Building Code*, 2006 Edition, as adopted by the City of Tulsa.

**Exceptions:**

1. All apartment and condominium high-rise buildings or structures having a Residential Group R-2 occupancy classification existing prior to January 1,

2006, with no more than ten percent (10%) of the useable floor area utilized for other occupancy classifications, shall be exempt in their entirety, until such time as more than ten percent (10%) of the useable floor area is utilized for other occupancy classifications. For purposes of this Exception, apartment and condominium high-rise buildings and structures shall include buildings and structures, or portions thereof which are accessory to such apartment and condominium high-rise buildings, including parking structures.

**2.** Existing high-rise buildings with a Business Group B occupancy classification shall be equipped with an automatic sprinkler system pursuant to Option 1 or 2 of this Exception. Sprinkler system and automatic fire alarm system installations shall not be required for vacant buildings and for vacant floors in occupied buildings that are secured and kept free of storage and combustibles. Such vacant floors shall not be included in calculating the percentage of area to be sprinkled. Implementation of Option 1 or Option 2 in accordance with this Exception shall constitute a sufficient equivalency to the vertical-openings requirements set forth in Section 1103.4 of this code. For the purpose of permitting remodel work, if there exists a written City of Tulsa Fire Sprinkler Agreement Form requested by the owner and approved by the building official and fire code official and signed by the Mayor, recorded in land records maintained by the Tulsa County Clerk, the building shall receive equivalent consideration as fully equipped with a sprinkler system during the interim period leading to the completion of conditions of the agreement.

Option 1: A building owner may choose to sprinkle ninety percent (90%) of the gross floor area as defined in Section 1002 of the *ICC International Building Code*, 2006 Edition, as adopted by the City of Tulsa, [in general terms this is consistent with Building Owners and Managers Association International (BOMA) definition of net rentable space, except it also include - stairways and parking garages] where the remaining non-sprinkled area of up to ten percent (10%) of the gross floor area is not concentrated in a single area of a size greater than five percent (5%) of the gross floor area. All common exit access and exits shall be protected with sprinklers or a fire/smoke separation, pursuant to the *ICC International Building Code*, 2006 Edition, as adopted by the City of Tulsa. An automatic fire alarm system shall be installed pursuant to National Fire Protection Association (NFPA) Standard Reference Number 72 (NFPA72) in the following locations: in all common corridors throughout the building, all designated unsprinkled spaces and pursuant to Section 907.2.13.1 of this code. The owner shall comply with the following sprinkler completion schedule:

a. A building undergoing a change of use or occupancy of more than ten percent (10%) of the gross floor area shall comply with Option 1 no later than January 1, 2010.

b. A building undergoing a change of use or occupancy of more than ten percent (10%) of the gross floor area after January 1, 2010, shall comply with Option 1 by the completion of the change of use or occupancy.

c. Once exempted space(s) are designated that, taken alone or in the aggregate, will comprise the ten percent (10%) which is exempt from any

sprinkling requirement, the Owner shall sign a City of Tulsa Fire Sprinkler Agreement Form requested by the owner and approved by the building official and fire code official and signed by the Mayor, recorded in land records maintained by the Tulsa County Clerk, evidencing that the owner has selected Option 1 and will provide a schedule for equipping of the building with an automatic fire alarm system to be completed within three (3) years, or the year 2020, whichever is sooner.

The building owner shall maintain a record keeping process to account for what areas are to be sprinkled and non-sprinkled pursuant to Option 1. Owner signed documentation of the totals of this accounting shall be submitted to the Permit Office with each application for a remodel permit or a certificate of occupancy. As long as the total non-sprinkled space remains at ten percent (10%) or less the owner may choose to substitute one space for another for providing a sprinkler system, provided it meets the other provisions of this section.

d. Unless exempted pursuant to the Owner's designation of exempted space(s), any floor alteration and adjoining non-rated common corridors permitted after the year 2006 shall be equipped with a sprinkler system as required by the *ICC International Building Code*, 2006 Edition, as adopted by the City of Tulsa. The remaining area of a partially sprinkled floor shall be sprinkled pursuant to paragraph (e) of this section or in accordance with a City of Tulsa Fire Sprinkler Agreement Form requested by the owner and approved by the building official and fire code official and signed by the Mayor, recorded in land records maintained by the Tulsa County Clerk.

e. All occupied floors shall, at a minimum, be equipped with an automatic sprinkler system to provide automatic sprinkler protection to one-third of the gross floor area and the entire egress lobby space at the required and designated levels of exit discharge by the year 2014; two-thirds by the year 2017; and nine-tenths by the year 2020.

Exception: A designated egress lobby space at the level of exit discharge in buildings permitted prior to October 27, 1972, may not have to be sprinkled or separated when the building official and fire code official approves an alternative life-safety system.

f. Any vacant floor which becomes either partially or fully occupied after the year 2020 shall be fully equipped with a sprinkler system, unless exempted pursuant to the owner's designation of exempted space(s).

Option 2: A building owner may choose to equip a building with a fully automatic sprinkler system throughout. In such an event, an owner shall comply with the following time schedule, except where the work area or change in use shall be equipped with a sprinkler system in accordance with the Code:

a. A building undergoing a change of use or occupancy of more than ten percent (10%) of the gross floor area shall be fully equipped with an automatic sprinkler system throughout the building no later than the year 2010.

b. A building undergoing a change of use or occupancy of more than ten percent (10%) of the gross floor area after the year 2010 shall be fully equipped with an automatic sprinkler system throughout the building by the completion of the change of use or occupancy.

c. Any floor alteration and adjoining non-rated common corridors permitted after the year 2006 shall be equipped with a sprinkler system as required by the *ICC International Building Code*, 2006 Edition, as adopted by the City of Tulsa. The remaining area of a partially sprinkled floor shall be sprinkled pursuant to paragraph (d) of this section or in accordance with a signed City of Tulsa Fire Sprinkler Agreement Form requested by the owner and approved by the building official and fire code official and signed by the Mayor, and recorded in land records maintained by the Tulsa County Clerk.

d. All occupied floors shall, at a minimum, be equipped with an automatic sprinkler system to provide automatic sprinkler protection to one-third of the building and the entire lobby space at the level of exit discharge by the year 2014; two-thirds of the building by the year 2017; and totally by the year 2020.

e. Any Vacant floor either partially or fully occupied after the year 2020 shall be fully equipped with an automatic sprinkler system.

**1103.5.8.1 Sprinkler Protection-Added.** Where an Owner chooses to sprinkle any building as a means to provide the protection required by Section 1103.4 of this code, the Owner shall comply with the following schedule for installation of an automatic sprinkler system:

**1.** On or before July 1, 2017 the Owner(s), or the Owner's authorized agent, shall provide the code official with written plans for compliance with this section and sign a "Fire Sprinkler Agreement Form" which, when approved by the building official and fire code official and signed by the Mayor shall be recorded in land records maintained by the Tulsa County Clerk.

**2.** All occupied floors shall be equipped with an automatic sprinkler system which shall, at a minimum, provide automatic sprinkler protection to one-third of the building and the entire lobby spaces at the level of exit discharge by the year 2014; two-thirds of the building by the year 2017; and totally by the year 2020.

**Exception:** Where a building is being equipped with an automatic sprinkler system in accordance with Section 1103.5.8 Option 1 of this code.

**3.** Any new or existing high-rise sprinkler agreement shall be extended until such time as these conditions are met: A change of use of any part of a floor is made or any remodel of a floor or floors that require a building permit. When any of the above conditions are met the owner will be required to install an approved automatic fire sprinkler system for the entire floor or floors affected by those conditions.

**1003.7.6 Group R-2- Modified.** Refer to OUBCC Rules Title 748:20-4-16(2).

**1104.1 General-Amendatory.** Means of egress in existing buildings shall comply with the minimum egress requirements when specified in Table 1103.1 as further enumerated in Sections 1104.2 through 1104.25, or the building code that applied at the time

of construction, if, in the opinions of the building official and the fire code official, they do not constitute a distinct hazard to life. Existing buildings that were not required to comply with a building code at the time of construction shall comply with the minimum egress requirements when specified in Table 1103.1 as further enumerated in Sections 1104.2 through 1104.25.

**1104.5 Illumination Emergency Power-Amendatory.** Where means of egress illumination is provided, the power supply for means of egress illumination shall normally be provided by the premises' electrical supply. In the event of power supply failure, illumination shall be automatically provided from an emergency system for the following occupancies where such occupancies require two or more means of egress:

**1.** Group A having 50 or more occupants.

**2.** Group B buildings three or more stories in height, buildings with 100 or more occupants above or below the level of exit discharge serving the occupants or buildings with 1,000 or more total occupants.

**3.** Group E in interior exit access and exit stairs and ramps, corridors, windowless areas with student occupancy, shops and laboratories.

**4.** Group F having more than 100 occupants.

**Exception:** Buildings used only during daylight hours which are provided with windows for natural light according to the *International Building Code*.

**5.** Group I.

**6.** Group M.

**Exception:** Buildings less than 3,000 square feet (279 $m^2$) in gross sales area on one (1) story only, excluding mezzanines.

**7.** Group R-1.

**Exception:** Where each sleeping unit has direct access to the outside of the building at grade.

**8.** Group R-2.

**Exception:** Where each dwelling unit or sleeping unit has direct access to the outside of the building at grade.

**9.** Group R-4.

**Exception:** Where each sleeping unit has direct access to the outside of the building at ground level.

**1104.18 Dead Ends-Amendatory.** Where more than one exit or exit access doorway is required, the exit access shall be arranged such that dead ends do not exceed the limits specified in Table 1104.18. Ingroup 1-2, in smoke compartments containing patient sleeping rooms and treatment rooms, dead-end corridors shall be in accordance with section 1105.6.5.

**Exceptions:**

**1.** A dead-end passageway or corridor shall not be limited in length where the length of the dead-end passageway or corridor is less than 2.5 times the least width of the dead-end passageway or corridor.

**2.** In existing buildings, existing dead-end corridors shall be permitted to comply with lengths established in Section 805.6 of the *International Existing Building Code*. Any newly constructed dead-end corridors within an existing building shall be limited to the lengths allowed by the *International Building Code*.

**1104.25 Egress path markings-Deleted.** Refer to OUBCC Rules Title 748:20-4-16(3).

**IFC 2018 Chapter 12 Energy Systems.** Refer to OUBCC Rules Title 748:20-4-17(1 thru 223).

**2301.7 Liquid Natural Gas(LNG) Motor Fuel-Dispensing Facilities-Added.** Refer to OUBCC Rules Title 748:20-4-28(1).

**2302 Definitions-Modified.** Refer to OUBCC Rules Title 748:20-4-28(2).

**2303.1 Location of Dispensing Devices-Modified.** Refer to OUBCC Rules Title 748:20-4-28(3).

**2303.2.2 Local Emergency Disconnect Switches-Added.** Refer to OUBCC Rules Title 748:20-4-28(4).

**2303.2.3 Emergency Disconnect Switch Lighting-Added.** Refer to OUBCC Rules Title 748:20-4-28(5).

**2304.3.7 Quantity Limits-Modified.** Refer to OUBCC Rules Title 748:20-4-28(6).

**2307.3 Attendants-Modified.** Refer to OUBCC Rules Title 748:20-4-28(7).

**2307.4.1 Low Emission Transfer-Added.** Refer to OUBCC Rules Title 748:20-4-28(8).

**2307.7 Public Fueling of Motor Vehicles-Modified.** Refer to OUBCC Rules Title 748:20-4-28(9).

**2308.3.2 Warning Signs-Added.** Refer to OUBCC Rules Title 748:20-4-28(10).

**2308.4 Private Fueling of Motor Vehicles-Modified.** Refer to OUBCC Rules Title 748:20-4-28(11).

**2308.7 Emergency Shutdown Control-Modified.** Refer to OUBCC Rules Title 748:20-4-28(12).

**2308.7.1 Remote Emergency Shutdown Device-Added.** Refer to OUBCC Rules Title 748:20-1-28(13).

**2308.7.2 Local Emergency Shutdown Device-Added.** Refer to OUBCC Rules Title 748:20-4-28(14).

**2311.4.3 Ventilation-Modified.** Refer to OUBCC Rules Title 748:20-4-28(15).

**2311.8.1 Preparation of Vehicle for Repair-Modified.** Refer to OUBCC Rules Title 748:20-4-28(16).

**2311.8.1.1 Liquefied Natural Gas (LNG)-Added.** Refer to OUBCC Rules Title 748:20-4-28(17).

**3903.2 Prohibited Occupancies-Modified.** Refer to OUBCC Rules Title 748:20-4-44(1).

**3903.3 Location-Modified.** Refer to OUBCC Rules Title 748:20-4-44(2).

**3903.4 Post-process Purification and Winterization-Modified.** Refer to OUBCC Rules Title 748:20-4-44(3).

**3903.4.2 Refrigerators, Freezers, and Other Cooling Equipment-Added.** Refer to OUBCC Rules Title 748:20-4-44(4).

**3903.4.3 Post-Processing-Added.** Refer to OUBCC Rules Title 748:20-4-44(5).

**3903.5 Use of Flammable and Combustible Liquids-Modified.** Refer to OUBCC Rules Title 748:20-4-44(6).

**3903.6 Liquified Petroleum Gas-Modified.** Refer to OUBCC Rules Title 748:20-4-44(7).

**3903.6.1 Release of Gas-Added.** Refer to OUBCC Rules Title 748:20-4-44(8).

**3903.6.2 Exhaust-Added.** Refer to OUBCC Rules Title 748:20-4-44(9).

**3903.6.3 Electrical-Added.** Refer to OUBCC Rules Title 748:20-4-44(10).

**3903.6.4 Automatic Fire-Extinguishing System-Added.** Refer to OUBCC Rules Title 748:20-1-44(11).

**3903.7 Carbon Dioxide Extraction-Added.** Refer to OUBCC Rules Title 748:20-4-44(12).

**3903.7.1 Storage and Handling-Added.** Refer to OUBCC Rules Title 748:20-1-44(13).

**3903.7.2 Gas Detection System-Added.** Refer to OUBCC Rules Title 748:20-4-44(14).

**3903.7.3 Carbon Dioxide Discharge-Added.** Refer to OUBCC Rules Title 748:20-4-44(15).

**3905.3 Emergency Power System-Added.** Refer to OUBCC Rules Title 748:20-4-44(16).

**5301.1 Scope-Modified.** Refer to OUBCC Rules Title 748:20-4-58(1—6).

**5302.1 Definitions-Modified.** Refer to OUBCC Rules Title 748:20-4-58(7).

**5306.2.2 One-hour Interior Room-Modified.** Refer to OUBCC Rules Title 748:20-4-58(8).

**5501.1 Scope-Modified.** Refer to OUBCC Rules Title 748:20-4-60.

**5601.1.3 Fireworks-Amendatory.** It shall be unlawful and a misdemeanor offense for any person to possess, manufacture, store, sell, handle or use any fireworks within the corporate limits of the City of Tulsa, without first having procured an operational permit from the fire code official, as required by Section 5601.2 of this code. The operational permit fee shall be as provided in Title 49, Tulsa Revised Ordinances, Chapter 14.

**5601.2.4 Financial Responsibility-Amendatory.** Before an operational permit is issued, as required by Section 5601.2 of this code, the applicant shall file with the City Clerk of the City of Tulsa a corporate surety bond in the principal sum of $3,000,000 or certificate of insurance evidencing a public liability insurance policy for the same amount, for the purpose of the payment of all damages to persons or property which arise from, or are caused by, the conduct of any act authorized by the permit upon which any judicial judgment results. The fire code official is authorized to specify a greater or lesser amount when, in the fire code official's opinion, conditions at the location of use indicate a greater or lesser amount is required. Government entities shall be exempt from this bond requirement.

**5705.5 Alcohol-based hand rubs classified as Class I or II liquids-Modified.** Refer to OUBCC Rules Title 748:20-4-62.

**6106.1 Attendants-Modified.** Refer to OUBCC Rules Title 748:20-4-66(1).

**6106.2 Overfilling-Modified.** Refer to OUBCC Rules Title 748:20-4-66(2).

**6201.1 Scope-Amendatory.** The storage and use of organic peroxides shall be in accordance with this chapter, Chapter 50 and National Fire Protection Association (NFPA) Standard Reference Number 432 listed in Chapter 80 of this code. Unclassified detonable organic peroxides that are capable of detonation in their normal shipping containers under conditions of fire exposure shall be stored in accordance with Chapter 56 of this code.

**Chapter 80 Referenced Standards-Modified.** Refer to OUBCC Rules Title 748:20-4-85(1—13).

**Appendix A-Deleted.** Appendix A of the *International Fire Code* entitled "Board of Appeals" is intentionally deleted from this code.

**Appendices B through I-Added.** The following appendices of the *International Fire Code* are specifically referred to, adopted and made a part of this code, as if fully set out in this chapter, with the amendments thereto:

| | |
|---|---|
| APPENDIX B | FIRE-FLOW REQUIREMENTS FOR BUILDINGS |
| APPENDIX C | FIRE HYDRANT LOCATIONS AND DISTRIBUTION |
| APPENDIX D | FIRE APPARATUS ACCESS ROADS |
| APPENDIX E | HAZARD CATEGORIES |
| APPENDIX F | HAZARD RANKING |
| APPENDIX G | CRYOGENIC FLUIDS-WEIGHT AND VOLUME EQUIVALENTS |
| APPENDIX H | HAZARD MATERIALS MANAGEMENT PLAN (HMMP) AND HAZARDOUS MATERIALS INVENTORY STATEMENT(HMIS) INSTRUCTIONS |
| APPENDIX I | FIRE PROTECTION SYSTEMS-NONCOMPLIANT CONDITIONS |

**Appendix D-Amendatory.** Appendix D of the *International Fire Code* entitled *Fire Apparatus Access Roads*, Section D 102 *Required Access* is amended in this code as follows:

**D102.1 Access and Loading-Amendatory.** Facilities, buildings, or portions of buildings hereafter constructed shall be accessible to fire department apparatus by way of an approved fire apparatus access road with an asphalt, concrete, or other approved driving surface capable of supporting the imposed load of fire apparatus weighing at least 88,000 pounds (39 916 kg).

*(Ord. No. 20044, 20625, 20824, 21281, 21805; Ord. No. 22441, §§ 1, 2, 6-11-2011; Ord. No. 22759, § 1, 9-20-2012; Ord. No. 23013, § 1, 12-12-2013; Ord. No. 23435, § 1, 2-11-2016; Ord. No. 23867, § 1, 2-28-2018; Ord. No. 24606, §§ 1—5, 4-28-2021; Ord. No. 24871, § 1, 7-20-2022; Ord. No. 24889, §§ 1—3, 8-10-2022)*

# TITLE 15 FRANCHISES AND GRANTS

**Chapter 1. Franchise Cancellation Procedure**
**Chapter 2. Tax On Non-Franchise Holders**
**Chapter 3. 2011 Oklahoma Natural Gas Company Franchise**
**Chapter 4. Public Service Company Franchise**
**Chapter 5. Telephone Inspection Fee and Service Charge (Repealed)**
**Chapter 6. Miscellaneous Grants**
**Chapter 7. Thermal Systems, Inc. Grant (Repealed)**
**Chapter 8. Tulsa Cable Television Permit (Repealed)**
**Chapter 9. Fiber Optic Cable Systems Grants (Repealed)**
**Chapter 10. Tulsa Basic Cable Television Service Rate Regulations**

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## CHAPTER 1. FRANCHISE CANCELLATION PROCEDURE

Section 100. Terms defined.
Section 101. Notice and hearing.
Section 102. Resolution of non-compliance.
Section 103. Date for hearing.
Section 104. Service of notice.
Section 105. Continuance of hearing.
Section 106. Default.
Section 107. Quorum; power to act.
Section 108. Issuance of subpoenas.
Section 109. Failure or refusal to testify.
Section 110. Duties of the City Attorney.
Section 111. Transcript.
Section 112. Cancellation.
Section 113. Penalty.

### Section 100. Terms defined.

The words or term "franchise holder" when used in this title shall mean any person, firm, corporation or association holding a franchise in the City of Tulsa.

*(Ord. No. 4125)*

### Section 101. Notice and hearing.

When it shall appear to the Council that the holder of any franchise in the City of Tulsa has failed, neglected or refused to exercise a franchise in substantial accordance with the terms of the Charter of the City of Tulsa or the ordinance granting the franchise, it shall be the duty of the Council to give notice to the franchise holder and set a definite date for a hearing as provided herein.

*(Ord. No. 4125)*

### Section 102. Resolution of non-compliance.

The Council shall first by resolution set forth in general terms the manner and form in which the franchise holder has failed, neglected or refused to exercise the franchise in accordance with the terms of the Charter or the ordinance granting the franchise.

*(Ord. No. 4125)*

### Section 103. Date for hearing.

The Council shall, in its resolution, set a date for a hearing on the charges contained therein, at which time the franchise holder shall have the right to show cause why the franchise should not be annulled or canceled. The hearing shall be set on a date not less than ten (10) days nor more than twenty (20) days after the passage of the resolution, and may be held at a regular meeting of the Council or at a special meeting called in the manner provided by the Charter.

*(Ord. No. 4125)*

### Section 104. Service of notice.

A notice of the hearing, together with a certified copy of the resolution setting forth the manner and form in which it may appear to the Council that the franchise holder has failed,

neglected or refused to exercise the franchise in accordance with the terms of the Charter or the ordinance granting it, shall be served upon the franchise holder by the Chief of Police or other officer authorized by the Mayor. Service and return of service shall be in the manner provided by law for the service of summons in a civil action. A written return of service shall be filed in the Office of the City Clerk.

*(Ord. No. 4125)*

### Section 105. Continuance of hearing.

The hearing may be continued from time to time by the Council upon good cause shown; provided, however, that no continuance shall be made except by the Council at the meeting regularly set for the hearing. The hearing may be continued from one (1) meeting to another.

*(Ord. No. 4125)*

### Section 106. Default.

In the event the franchise holder shall fail, neglect or refuse to appear before the Council in response to the notice provided herein, the franchise holder shall be adjudged in default and the Council may proceed with the hearing on the annulment or cancellation of the franchise under consideration.

*(Ord. No. 4125)*

### Section 107. Quorum; power to act.

The City and the franchise holder shall have the right to compel the attendance of witnesses and the production of books, papers and records, as provided in the Charter of the City of Tulsa, and to introduce evidence pertaining to the questions involved. A majority of the members of the Council shall constitute a quorum with power to act on all matters coming before it at the hearing pertaining to the proceedings and to the cancellation and annulment of the franchise.

*(Ord. No. 4125)*

### Section 108. Issuance of subpoenas.

Subpoenas for witnesses and for the production of books, records and papers shall be issued by the City Clerk. All subpoenas and process in the matter shall be issued as provided by the Charter and Revised Ordinances of the City of Tulsa, and shall be served and returned by the Chief of Police or other officer authorized by the Mayor, as provided by law in civil actions. The Mayor, any member of the Council, the City Attorney, any special counsel acting for the City, the franchise holder and the attorney for the franchise holder shall have the right to request the issuance of subpoenas by the City Clerk for witnesses and for the production of books, papers and records; and subpoenas shall forthwith be issued and served in the manner provided herein for all witnesses named in such subpoenas.

*(Ord. No. 4125)*

### Section 109. Failure or refusal to testify.

Any person, firm or corporation who shall fail, neglect or refuse to appear before the Council in response to any subpoena duly served or shall fail, neglect or refuse to produce

any books, records or papers in response to a subpoena duly served, or who shall refuse to be sworn or affirmed as a witness or to testify before the Council at any hearing shall be guilty of an offense, and shall be punishable in the manner provided by law; provided, however, that no testimony received by the Council in any hearing provided for herein shall be used in a criminal prosecution against such witness.

*(Ord. No. 4125)*

### Section 110. Duties of the City Attorney.

It shall be the duty of the City Attorney to diligently prosecute before the Council all charges of non-compliance with the terms of any franchise or the ordinance granting the franchise before the Council, and the Council may, in its discretion, employ special counsel for the prosecution of the charges or to assist in the prosecution.

*(Ord. No. 4125)*

### Section 111. Transcript.

At the hearing, a complete transcript of all proceedings shall be made and a copy thereof filed in the Office of the City Clerk.

*(Ord. No. 4125)*

### Section 112. Cancellation.

At the conclusion of the hearing, if it be determined by the Council that such franchise has not been or is not being exercised in substantial accordance with the terms of the Charter or the ordinance granting the franchise, it shall be the duty of the Council to enter an order by resolution canceling and annulling the franchise and to repeal the ordinance granting the franchise.

*(Ord. No. 4125)*

### Section 113. Penalty.

Any person, firm or corporation violating any of the terms or provisions of this chapter shall be guilty of an offense and upon conviction thereof shall be fined any sum not exceeding One Hundred Dollars ($100.00), including costs.

*(Ord. No. 16530)*

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## CHAPTER 2. TAX ON NON-FRANCHISE HOLDERS

Section 200. Tax levied.
Section 201. Payment.
Section 202. Failure to pay.
Section 203. Lien of tax.

### Section 200. Tax levied.

After the 1st day of August, 1935, there is levied and assessed an annual tax in the amount of two percent (2%) of the gross receipts from sales of power, light, heat, gas and electricity in the City of Tulsa from residential and commercial sales, which tax shall be in lieu of any other franchise, license, occupation or excise tax; provided, however, that the provisions herein shall not apply to any person, firm, association or corporation operating under a valid franchise in the City.

*(Ord. No. 4108)*

### Section 201. Payment.

The annual tax levied herein shall be payable quarterly beginning November 1, 1935, and placed in the general revenue fund of the City of Tulsa. Every person, firm, association or corporation subject to these provisions shall with each quarterly payment furnish a complete and accurate verified statement of all gross receipts from residential and commercial sales within the City during the period for which the quarterly payment is made. The statement and payment shall be made to the Director of Finance not later than twenty (20) days after the quarter when it is due.

*(Ord. No. 4108)*

### Section 202. Failure to pay.

Any person, firm or corporation failing or refusing to pay such tax shall be regarded as a trespasser and may be ousted from the City of Tulsa; and in addition, an action may be maintained against such person, firm or corporation for the amount of the tax and all expenses of collecting same, including reasonable attorney's fees.

*(Ord. No. 4108)*

### Section 203. Lien of tax.

The tax imposed herein shall constitute a first and prior lien upon all of the assets located within the City of Tulsa of any person, firm or corporation engaged in the business of selling power, light, heat, gas or electricity therein.

*(Ord. No. 4108)*

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## CHAPTER 3. 2011 OKLAHOMA NATURAL GAS COMPANY FRANCHISE*

Section 300. Definitions.
Section 301. Grant of Franchise.
Section 302. Franchise assignment, sale or lease.
Section 303. Use and repair of rights-of-way.
Section 304. Rights-of-way construction permits.
Section 305. Appeals.
Section 306. Regulation of service.
Section 307. Engineering standards.
Section 308. Duty to move or alter facilities.
Section 309. Indemnification of the City.
Section 310. Grantee's rules and regulations.
Section 311. Maintenance and inspection of records.
Section 312. Consideration for Franchise: Franchise and volumetric rate fees.
Section 313. Right to renegotiate Franchise (reopener).
Section 314. Election required.
Section 315. Severability.
Section 316. Acceptance and effective date.
Section 317. Repealer.

### Section 300. Definitions.

As used in this Ordinance, the following words and phrases shall have the following meanings:

"**Arterial rights-of-way**" shall mean the vehicle traffic lanes under the control and maintenance jurisdiction of the City of Tulsa, including the strips of land on each side thereof, on freeways, parkways, special traffic ways primary, secondary and urban arterial streets, all as defined and established by the adopted and currently effective Tulsa City-County Major Street and Highway Plan, as it may be amended from time to time. The terms shall also apply and have reference to the street system within Tulsa's Central Business District, as defined in the City of Tulsa's adopted Comprehensive Plan, and more particularly described as the street network bounded on the East by the east leg of the inner dispersal loop, the west by I-244, north by I-244, and on the south by the Broken Arrow Expressway.

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*(NOTE 1: The sections in this chapter have been assigned new numbers for the purpose of codification. Otherwise, the contents of the sections of this chapter are identical to Sections 61 through 75 of Ordinance No. 16620.)

(NOTE 2: On February 14, 1989, the citizens of Tulsa approved an Amended Charter of the City of Tulsa to take effect at twelve o'clock noon [12:00 p.m.] on the 8th day of May, 1990. Pursuant to the provisions of the Amended Charter, all references in this chapter to the City Auditor shall mean City Clerk, and all references to the Board of Commissioners shall mean the legislative body of the City. The City's right to terminate any franchise and to purchase the physical property of the franchise holder is contained in Section 9, Article VIII of the Amended Charter.)

**Editor's note—**Ord. No. 22415, § 1, adopted May 19, 2011, amended Ch. 3, in its entirety, to read as herein set out in §§ 300—317. See also the Code Comparative Table and Disposition List for a detailed analysis of inclusion.

"**City**" shall mean the City of Tulsa, Oklahoma, a municipal corporation.

"**Construct", "construct", "constructed" or "construction**" shall mean "install, operate and maintain".

"**Consumer**" shall mean any person located within the corporate limits of the City of Tulsa and served by the Grantee through any use of any part of the Grantee's Facilities located in the Rights-of-Way.

"**Dekatherm**" or "**Dth**" shall mean a measurement of natural gas equal to one million (1,000,000) British Thermal Units ("Btu"), or one (1) MMBtu, on a dry basis. Btu shall be computed on a temperature base of 60° Fahrenheit and a pressure base of 14.73 PSIA.

"**Director**" shall mean the executive head or such executive's designee, who is the primary City official responsible for administration and enforcement of matters related to rights-of-way construction permits, the enforcement of engineering standards as outlined in this franchise, and any other administrative matters related to this franchise.

"**Director of Finance**" or "**Finance Director**" shall mean the executive head of the Finance Department of the City of Tulsa responsible for the direction, operation and administration of the Finance Department, or such Director's designee. Regardless of changes in organization of the City, the Director of Finance or Finance Director, as used in this franchise, shall be the primary City official responsible for administration, enforcement and collection activities provided for in this franchise.

"**Distribution system**" or "**distribution system**" shall mean a system of Facilities necessary for the transportation, distribution or sale of natural gas.

"**Elevation View**" shall mean the product of the equipment's maximum height and maximum width or length dimension utilizing the largest side of the equipment. (For example, an equipment cabinet with exterior dimensions of three (3) feet height, by two (2) feet width, by two (2) feet length (three (3) feet h × four (4) feet w × two (2) feet l) would have an elevation view of twelve (12) square feet; a generator with exterior dimensions of four (4) feet height, by four (4) feet width, by five (5) feet length (four (4) feet h × four (4) feet w × five (5) feet l) would have an elevation view of twenty (20) square feet; and, a traffic control box with exterior dimensions of seven (7) feet height, by two (2) feet width, by four (4) feet length (seven (7) feet h × two (2) feet w × four (4) feet l) would have an elevation view of twenty-eight (28) square feet.

"**Emergency**" or "**emergency**" shall mean a condition that poses a clear and immediate danger to life or health, of a significant loss of property, or requires immediate repair or replacement in order to restore service to the public or a customer.

"**Facility**" or "**Facilities**" shall mean all or any part of Grantee's collective system of tangible things, including but not limited to pipelines, conduits, meters, apparatus, structures and appurtenances that are partly or entirely located in the rights-of-way in the City of Tulsa, Oklahoma for the purpose of transporting, distributing and selling gas within the City and to the public generally for domestic, commercial and industrial use.

"**Franchise**" or "**franchise**" shall mean the rights and privileges granted by the City to Grantee under Sections 301 *et seq.* of this Ordinance.

"**Franchise fee**" or "**franchise fees**" shall mean the sum of the fees to be paid to the City by Grantee under Section 312 of this Ordinance as consideration for the use of the rights-of-way.

"**Grantee**" shall mean the Oklahoma Natural Gas Company, a division of ONEOK Inc., a corporation, its successors and assigns.

"**Grantee's agent**" or "**agent**" shall mean any contractor, subcontractor, person or entity, other than an employee of the Grantee, which is the under the direction, control or authorization of Oklahoma Natural Gas Company to affect, install, operate and maintain Facilities owned, managed or operated by Grantee in the rights-of-way.

"**Install, operate and maintain**" or "**installation, operation and maintenance**" shall mean to acquire, erect, construct, install, extend, repair, remove, relocate, replace, restore or otherwise operate and maintain.

"**Major project**" shall mean projects that exceed five hundred (500) feet in length, or require boring under any rights-of-way, or the cutting of any pavement in an arterial rights-of-way, or the blockage of any traveling lane in any rights-of-way, for any amount of time. The subdivision of a project into multiple projects individually not exceeding five hundred (500) feet in length shall not exclude them from cumulatively being included within this definition.

"**Natural gas**" or "**natural gas**" shall mean a gaseous substance predominantly composed of methane.

"**Obstruct**" or "**obstruct**" shall mean to place any tangible object or material in the rights-of-way in a manner that stops, hinders, disrupts, or otherwise interferes with free and open passage over a specific area or part of the rights-of-way. The term does not include the otherwise legal parking of a vehicle subject to all the current parking regulations of Title 37, Tulsa Revised Ordinances.

"**Person**" or "**person**" shall mean any individual human being or natural person, firm, company, corporation, partnership, association, trust, trustees, trustees in bankruptcy, or receivers, or any other organization or legal entity of any kind or nature, whether public, private or governmental.

"**Private easement**" shall mean the right to enter or use certain described real property, and install facilities in said real property, when said right belongs to Grantee exclusively, and is not held by the general public or City.

"**Rights-of-way**" or "**ROW**" shall mean the surface, the airspace above ground, and the area below the surface of any public street, highway, parkway, lane, path, alley, sidewalk, boulevard, drive, bridge, tunnel, stormwater drainage system, easement, or similar property in which the City now or hereafter holds a property interest and/or a maintenance responsibility which, consistent with the purposes for which it was granted or dedicated, may be used to install, operate and maintain facilities. Rights-of-way shall not include buildings, parks, or other property owned or leased by the City, its trusts, or authorities, but does include all rights-of-way as defined by this franchise.

Should the Grantee desire the City to investigate whether the City can make a representation or guarantee that its interest or other right to control the use of such property is sufficient to permit the Grantee's use for such purposes, then the Grantee shall

submit, in advance, sufficient funds to cover all costs associated with such an investigation by the City, including but not limited to, attorney fees, surveyor fees, title examination fees, and title insurance fees.

"**Rights-of-way construction permit**" or "**ROW construction permit**" shall mean an authorization to excavate in or obstruct rights-of-way at a specific place and time, to install, operate and maintain facilities within a specified portion of rights-of-way.

"**Settlement prices**" shall mean the settlement prices for natural gas futures contracts traded on the New York Mercantile Exchange (NYMEX), or any successor exchange or index, on the 15th day of each month as published daily in the Wall Street Journal (WSJ) on the following business day (or the next day in which a settlement price is published) for each month of the twelve-month period immediately following.

"**Transport customer**" shall mean any consumer who receives Transport gas pursuant to a Transportation Tariff Arrangement.

"**Transport gas**" shall mean all natural gas transported and/or distributed by Grantee or by any other person, but not sold by Grantee, through the use of any part of Grantee's distribution system located in the rights-of-way.

"**Transportation Tariff Arrangement**" shall mean any arrangement by tariff and/or contract pursuant to which Grantee uses its facilities or allows its distribution system to be used by any other person for delivery of transport gas to any transport customer.

"**Volumetric rate**" shall mean that sum measured in cents per Dth (or other successor standard of measurement as agreed by the City and Grantee) as determined by Grantee in accordance with the provisions of this definition. The Volumetric Rate Calculation Form incorporated herein as Exhibit "A" shall be used for the calculation of the Volumetric Rate; provided, the three percent (3%) multiplier labeled "three percent (3%) Bundled Franchise Fee Rate" set forth on Exhibit "A" shall increase as provided in Subsection 312.B of this franchise. The calculation shall be completed by Grantee and filed with the City Clerk of the City upon Grantee's acceptance of this franchise and annually by each July 31 following acceptance. The calculation filed upon Grantee's acceptance of this franchise shall be effective from the date of such filing through and including December 31 of the next succeeding calendar year. The calculation filed by Grantee on July 31 in years following the year of acceptance of this franchise shall be effective on January 1 of the next succeeding calendar year through and including December 31 of such calendar year. The calculation shall be subject to review by the City for mathematical correctness and the City shall notify Grantee in writing within forty-five (45) calendar days after submission if the City deems such calculation to be incorrect. The volumetric rate calculation shall be based on the average of the average settlement prices for the twelve-month period beginning in July of the immediately preceding year and ending in June immediately preceding the July 31 calculation. The average settlement prices for each month during said twelve-month period shall be calculated by adding the settlement prices for such month and the previous eleven (11) months as published and dividing by twelve (12). The average settlement prices for each of the twelve (12) months shall then be summed and divided by twelve (12) to determine the average of the average settlement prices and then multiplied by three percent (3%) to obtain the volumetric rate; provided the three percent (3%) multiplier used to obtain the volumetric rate shall increase as provided in Subsection 312.B of this

franchise; provided, in the event the then-current average of the average settlement prices as calculated above and entered on the Volumetric Rate Calculation Form, attached as Exhibit A (see line designated on Exhibit "A" as "settlement price average"), exceeds the Index price for ONEOK Gas Transportation, L.L.C., that is listed in the issue of Platt's "Inside FERC's Gas Market Report" published on the first business day of the respective month ("Platt's Index price"), then the Platt's Index price shall be used to calculate the volumetric rate for that delivery month in lieu of the average of the average settlement prices entered on the Volumetric Rate Calculation Form (Exhibit A) (i.e. for that respective delivery month, the volumetric rate shall be determined by taking the Platt's Index price and multiplying that price by three percent (3%) or the then applicable increased percentage determined in the same manner set out in Subsection 312.B of this franchise).

"**Volumetric rate fee**" or "**volumetric rate fees**" shall mean the franchise fee or franchise fees based on the volumetric rate to be paid to the City by Grantee as required by Section 312 of this franchise.

*(Ord. No. 22415, § 1, 5-19-2011)*

### Section 301. Grant of Franchise.

**A.** The City hereby grants to Grantee, Oklahoma Natural Gas Company, a division of ONEOK Inc., a corporation, for the term of fifteen (15) years from the passage of this Ordinance and the filing of a written acceptance by the Grantee, the right to enter upon the rights-of-way to install, operate and maintain a distribution system along, across, over and under the rights-of-way for the privilege of transporting, distributing and selling natural gas to consumers and the public generally within the corporate limits of the City of Tulsa.

**B.** No main natural gas line shall be laid in any park without special permission, designating the location of such line, from the City.

**C.** This Ordinance shall have the effect of and shall be a contract between City and Grantee and shall be the measure of the rights and liabilities of the City as well as Grantee.

**D.** The franchise granted by this Ordinance is not exclusive and nothing in this Ordinance shall be construed to divest the City of its control and regulation of the rights-of-way.

*(Ord. No. 22415, § 1, 5-19-2011)*

### Section 302. Franchise assignment, sale or lease.

Grantee shall not have the right to assign, sell, lease, or otherwise transfer in any manner whatsoever either the rights or privileges granted under this franchise, or the distribution system installed, operated and maintained under this Ordinance, except as hereinafter provided. Any assignment, sale, lease, or other transfer by the Grantee of the franchise granted herein or the distribution system installed, operated and maintained hereunder shall be deemed a breach of this franchise by the Grantee and shall be ineffective and void unless all of the following conditions are met:

**A.** The proposed assignment, sale, lease or transfer shall be in writing and filed with the City Clerk of the City; and

**B.** The prospective assignee, buyer, lessee or other transferee shall have agreed in writing as part of the proposed assignment, sale, lease or transfer to accept and become

responsible to the City for full performance of all conditions, covenants, obligations, and liabilities contained in this Ordinance and such agreement shall have been filed with the City Clerk of the City; and

**C.** In the event of a proposed partial assignment, sale, lease or transfer, the proposed partial assignment, sale, lease or transfer shall have been submitted to the City Clerk and approved by the governing body of the City of Tulsa; provided, approval of a proposed partial assignment, sale, lease or transfer shall not be unreasonably delayed or unreasonably withheld by City.

In the event all the conditions set forth above are met, then such assignment, sale, lease or transfer shall be effective to grant the assignee, purchaser, lessee or transferee the rights in this franchise or the system so assigned, sold, leased or transferred, subject, however, to the continuing compliance by such assignee, purchaser, lessee or transferee with all the provisions of this Ordinance.

This Subsection 302.C shall not apply to the use of any portion of Grantee's system for the transportation, distribution or sale of natural gas to any person outside the corporate limits of the City of Tulsa.

*(Ord. No. 22415, § 1, 5-19-2011)*

### Section 303. Use and repair of rights-of-way.

**A.** Grantee's distribution system and particularly Grantee's pipes and pipelines shall be erected, placed, laid, or otherwise installed, operated and maintained in such a manner as will least interfere with other public uses of the rights-of-way, including stormwater drainage systems.

**B.** Grantee shall apply for and receive a rights-of-way construction permit, as provided in Subsection 304.A, before Grantee shall obstruct, excavate, cut pavement, bore, bore under or otherwise disturb the surface of any rights-of-way, except in the case of emergency. After such excavation or disturbance the Grantee shall, with due diligence and dispatch place the rights-of-way in a condition in compliance with the City's standards and specifications.

**C.** Upon Grantee's failure to commence, work continuously, or complete any installation, operation and maintenance or restoration work required by this franchise with due diligence and dispatch, the City may cause such work to be done after written notice to Grantee, given so as to afford Grantee an opportunity to commence and complete such work within a reasonable time. The cost of such installation, operation and maintenance or restoration incurred by the City upon Grantee's failure shall then be charged and collected from the Grantee.

*(Ord. No. 22415, § 1, 5-19-2011)*

### Section 304. Rights-of-way construction permits.

**A. Rights-of-Way Construction Permits.** Grantee or grantee's agent shall not obstruct the rights-of-way or construct new facilities or do maintenance work on more than one hundred (100) linear feet of facilities or cut the pavement or put facilities under the pavement of any defined rights-of-way without first obtaining a rights-of-way construction permit.

**B. Permit Requirements.** To apply for a rights-of-way construction permit, Grantee or grantee's agent shall furnish in writing or electronically the following:

**1.** Grantee's name, as the owner or operator of the facility; and

**2.** A sketch or drawing of the project; and

**3.** Dates of the construction activity, the proposed start and stop times, and any proposal to temporarily reopen any roadway for any "peak hour" period; and

**4.** The names of any known agents working on the proposed project under the Grantee's responsibility and authority; and

**5.** Acknowledgement of a traffic control plan in compliance with the following traffic control and safety standards and specifications:

**a.** Whenever Grantee is occupying any portion of rights-of-way, Grantee or Grantee's agent shall erect a barrier around the perimeter of any excavation and provide any and all traffic-control devices, signs, and lights appropriate to the level of complexity of the activity in order to protect, warn, and guide the public (vehicular and pedestrian) through the work zone. The manner and use of these devices shall be described within a traffic-control plan in accordance with the Manual on Uniform Traffic Control Devices.

**b.** Grantee shall designate a safety officer. The safety officer shall be responsible for safety-related issues affecting both the public and the Grantee's field employees and contractors for all job sites within the rights-of-way.

**6.** A list of the Grantee's emergency providers, including name of company, local contact person, mailing and e-mail address, twenty-four-hour emergency phone number, and pager or fax number. This information shall be kept current by written notice to the Director.

**7.** For major projects, the following may be required:

**a.** Detailed construction plans. These plans shall show the location and area of the proposed project, the locations of all existing and proposed equipment and facilities, the height and/or depth of the proposed equipment and existing facilities, and the spatial relationship with any adjacent infrastructure, rights-of-way line, easement, utility, and/or other physical features; and

**b.** A copy of the construction plans in an electronic format acceptable to the Director; and

**c.** Grantee may meet with the Director for a pre-work conference.

**C. Permit Terms and Conditions.** Each rights-of-way construction permit shall describe the general location of the permitted project, the size of the obstructed area, the duration of the permit, which shall be based on the amount of time estimated for completion of the permitted activity, and any special conditions or other information deemed relevant by the Director. A rights-of-way construction permit for major projects shall be issued or denied within fifteen (15) calendar days of submission of a completed application. All other rights-of-way construction permits shall be issued or denied within two (2) business days of submission of a completed application. In the event of denial, the Director shall advise the applicant of all steps necessary to secure approval of the permit.

**D. Emergency Permits.**

**1.** An emergency rights-of-way construction permit is available for projects. Any emergency excavation required to maintain the safety and well being of the general public should be commenced without delay. Notification must be provided to the Director within two (2) hours of the commencement of the project. This notification shall consist of the following:

**a.** Anticipated date, duration, start and stop time, location (site address if possible), including nearest cross street; and

**b.** Size of the obstruction and work area less any normal traffic control in advance; and

**c.** The name of any agent performing work on behalf of the Grantee; and

**d.** Grantee's name; and

**e.** Local contact information; and

**f.** General description of the type of construction activity and/or facilities installed.

**2.** Grantee shall notify the Director upon the completion of the project. Grantee and any agents engaged in an activity within the rights-of-way, must notify the Director that an obstruction will occur.

**3.** Whenever the Grantee performs any work under an emergency rights-of-way construction permit, the Grantee shall apply for a standard rights-of-way construction permit as soon as possible, but in any event no later than two (2) business days following the date of notification.

**E. Permit Conditions.** As a condition of any rights-of-way construction permit, Grantee shall adhere to the following requirements:

**1.** All engineering requirements and construction standards imposed by this franchise; and

**2.** All current rights-of-way construction permits shall be maintained on each work site. All rights-of-way construction permits shall be presented upon request to any representative of the Director; and

**3.** Excavation projects are subject to the requirements imposed by this franchise.

**F. Failure to Comply.** In the event Grantee's agent fails to comply with requirements of this section, Grantee's agent shall be precluded from obtaining any rights-of-way construction permit or performing any further construction within the City's rights-of-way for up to twelve (12) months from the date of notification.

**G. Renewal.** In the event that a permitted project is not concluded prior to expiration of the rights-of-way construction permit under which it is being performed, the Grantee shall apply to the Director for an extension of the permit. In such case, the following information shall be submitted:

**1.** Statement from the Grantee indicating the reason for the delay in completion of the project; and

**2.** Date that the Grantee anticipates the project to be completed.

*(Ord. No. 22415, § 1, 5-19-2011)*

**Section 305. Appeals.**

Whenever the Grantee is aggrieved and it is alleged there is an error in any order, requirement, decision, or determination made by any person in the enforcement of any provision of this franchise, an appeal may be taken by the Grantee to the Director or the Director's designee. The Director or Director's designee shall provide Grantee with a hearing prior to issuing a written decision in the matter. The hearing shall take place no less than ten (10) business days after written notice of the date and time of the hearing has been provided to Grantee. The appeal must be presented upon written request to the Director, or the Director's designee. The Director, or the Director's designee, shall render a decision within ten (10) business days after affording Grantee a hearing as described herein-above. A decision from the Director, or the Director's designee, shall be made in writing, and shall be supported by written findings establishing the reasonableness of the decision. Appeal of any decisions made by the Director, or the Director's designee, shall be made to the governing body, and the governing body of City shall afford Grantee a hearing on the matter (upon ten (10) business days advance notice) before rendering a decision. Appeal of any decision made by the governing body shall be made to the District Court of Tulsa County, Oklahoma, and an appeal from any decision of the District Court shall be as in all other civil actions.

*(Ord. No. 22415, § 1, 5-19-2011)*

**Section 306. Regulation of service.**

**A.** The distribution system of the Grantee shall at all times be installed, operated and maintained in such condition as will enable the Grantee to furnish adequate and continuous service in accordance with (1) good and accepted practice; (2) as required by the regulatory orders, rules and regulations of the Corporation Commission of Oklahoma; and (3) all federal laws and regulations.

**B.** In the event that the Corporation Commission of Oklahoma or other state regulatory authority should be deprived of the authority to regulate Grantee, then the City shall have the authority to set rates, terms and conditions of service for transportation, distribution or sale of natural gas by Grantee within the corporate limits of the City of Tulsa.

*(Ord. No. 22415, § 1, 5-19-2011)*

**Section 307. Engineering standards.**

**A. Allocation of Space in the Rights-of-Way.** The Director shall have the power to establish limitations on the placement of new or additional facilities within specific congested segments of the rights-of-way if there is insufficient space to accommodate all of the requests of entities to occupy the rights-of-way. In making such decisions, the Director shall strive, to the extent possible, to accommodate all existing and potential users of the rights-of-way, but shall be guided primarily by considerations of the public interest, the public's needs for the particular utility service, the width and physical condition of the rights-of-way, the protection of existing utilities and improvements in the rights-of-way, and future City plans for public improvements and development projects which have been determined to be in the public's interest.

**B. Location Criteria.**

**1. Corridors.** The Director shall assign specific corridors within the rights-of-way, or any particular segment thereof as may be necessary, for each type of facility that is

now or as the Director concludes may in the future be located within the rights-of-way. The Director shall establish an ideal cross section identifying the lateral and vertical position of each class of potential user. All permits issued by the City involving the installation or replacement of facilities shall be reviewed as to the proper corridor for the facility.

2. **Variance.** Any Grantee facility which is located in the rights-of-way in a position at variance with the corridors established by the Director shall move the facility at its own expense to its assigned position within the rights-of-way no later than at the time of the next reconstruction of the facility or roadway reconstruction which requires utility relocation by the City of the area where the facility is located. This requirement may be waived by the Director for good cause shown, upon a written request giving due consideration of such factors as the remaining economic life of the facilities, public safety, customer service needs or hardship to the Grantee.

3. **Interference.** Grantee shall not place any fixtures or equipment where the same will interfere with any existing utility or improvement. Grantee shall locate its facilities in such a manner as not to interfere unnecessarily with the usual traffic patterns (vehicular or pedestrian) or with the rights or reasonable convenience of owners of property that abut any rights-of-way.

**C. Construction Standards.**

1. **Depth.**

   **a.** After the operative date of this franchise, Grantee's facilities installed or replaced in rights-of-way shall be installed or replaced at depths which comply with all applicable state and federal rules and regulations establishing minimum safety standards for the design, construction, maintenance and operation of pipelines. Depth shall be measured from the lower of existing grade or proposed future grade as set forth on plans or other specifications existing at the time such lines are installed or replaced. In connection with such installation or replacement, fill and/or backfill materials and methods shall conform to the latest City standards.

   **b.** Unless agreed to in writing in advance by the Director, the local requirements for depth of installed facilities shall be, at a minimum, as follows:

      (1) Twenty-four (24) inches in green areas,

      (2) Twenty-four (24) inches below a projected slope from the flowline of a ditch at a three (3) horizontal and one (1) vertical slope,

      (3) Forty-eight (48) inches under a roadway measured from the surface of said roadway to the top of the installation,

      (4) Forty-eight (48) inches under a stormwater or creek channel design flowline, and

      (5) Cross under all water lines at a minimum separation of twenty-four (24) inches.

      (6) The City may require Grantee's facilities be placed at a greater depth than minimum depths as defined by local, state, or federal standards to facilitate known projects or to correct deficiencies.

      (7) Existing facilities shall be exempt from these depth requirements.

2. **Backfilling/testing.** Excavations shall be promptly backfilled according to standards on file with the Director and the earth shall be restored to original grade to assure no hazard to vehicular, animal, or pedestrian traffic. Upon request by the City, Grantee shall perform all necessary compaction tests in accordance with the latest design and construction specifications approved and disseminated by the Director setting forth requirements for backfill and paving cut repairs (e.g., standard concrete pavement cut and repair; standard asphalt pavement cut and repair, etc.). All test reports shall be submitted to the Director.
3. **Pavement Cutting.** Grantee shall comply with the latest pavement cut standards followed by the City.
4. **Replacement.** The replacement of any sidewalk, any driving surface, and the base of any roadway shall be the responsibility of the City's paving cut contractor, unless otherwise approved by the Director. All repairs and replacements shall comply with the City's Engineering Standards, pursuant to engineering plans on file with the City and may require additional removal to the nearest joint in all directions. Surface replacements shall be completed no later than ten (10) calendar days from completion of the underlying construction project. Specialty pavement sections must be constructed to restore the pavement to its original or an improved condition.
5. **Trenching.** Grantee shall not proceed with additional trench work exceeding a maximum of five hundred (500) feet of open trench without the approval of a City inspector.
6. **Crossings.** All underground crossings of paved roadways and stormwater and creek channels shall be made by a bore method approved by the Director. Any alternate method shall be approved by the Director, and then submitted to the ROW Administrator and Traffic Operations. Voids and all holes shall be properly grouted. Crossings shall be at approximately right angles, when possible, to the roadway and in no case shall any facility be placed in any culvert or drainage pipe.
7. **Erosion.** Erosion prevention measures shall be incorporated into all work within the rights-of-way as described in the City's Stormwater Criteria Manual. All gutters, ditches, and other drainage features shall be maintained free and unobstructed of sediment, dirt, and debris. The handling, grading, excavating, or moving of excess construction materials or the movement or cleaning of construction vehicles or equipment shall be conducted in such a manner that materials and washout will not be deposited into catch basins, gutters, ditches, or areas where runoff may carry materials into any public or private stormwater system.
8. **Obsolete or Abandoned Facilities.** Whenever Grantee's facilities are no longer used by Grantee and Grantee has no plans for any future use of those facilities, then Grantee shall remove those facilities that are at or above grade and restore the area in accordance with City standards.

D. **Dimension and Location Criteria.** Maximum dimensions and location of associated, above ground Facilities, including but not limited to junction boxes, duct banks, electric generators, repeaters, antennas, satellite dishes, or equipment cabinets, shall meet the following criteria:

1. The "Elevation View" shall not exceed thirty (30) square feet without written approval of the Director.

**2.** Associated equipment shall not be installed in such a manner so as to obstruct the view of drivers upon or entering a public street. Equipment, excluding poles, exceeding a height of twenty-four (24) inches shall not be placed within any intersection "sight-distance triangle" as defined in Title 24, Section 103, Tulsa Revised Ordinances.

**3.** No Facilities shall be placed so as to obstruct the flow of pedestrian traffic, and in no case result in less than four (4) feet of clear sidewalk, without the approval of the Director.

**4.** Grantee's Facilities shall comply with the latest design guidelines and regulations associated with the Americans with Disabilities Act. Grantee's non-compliant Facilities shall be relocated in accordance with the terms of this franchise.

**E. Miscellaneous Standards.**

**1. Construction Zone Identification.** Whenever the Grantee or Grantee's agent excavates or obstructs any portion of the rights-of-way, Grantee shall erect a temporary sign displaying either:

**a.** The name of the Grantee or Grantee's agent involved in the project, and the City permit number authorizing the activity; or

**b.** The name of the Grantee and a local telephone number or toll free number manned during regular business hours by a person who is knowledgeable about the construction project.

The sign shall be visible from any adjacent traffic lane and shall be maintained throughout the duration of the project.

**2. Vehicle Identification.** All vehicles used, parked, or stored by or on behalf of Grantee within a permitted construction zone shall be clearly marked, providing the name of the Grantee or Grantee's agent. Any unmarked vehicles shall be subject to all moving and parking ordinances. Private vehicles shall not be allowed to be parked or stored within any permitted work zone at any time.

**3. Due Care.** All Facilities and connections in, over, under, and upon the streets of the City, wherever situated or located, shall at all times be kept and maintained in a safe, suitable, and substantial condition, and in good order and repair.

*(Ord. No. 22415, § 1, 5-19-2011; Ord. No. 22852, § 1, 4-4-2013)*

## Section 308. Duty to move or alter facilities.

**A.** City reserves the right to construct or permit to be constructed cables, electric conduits, water, sewer, stormwater drainage system, gas or other pipelines and to do or permit to be done any underground work deemed necessary and proper by the City, along, across, over or under the rights-of-way. In doing or permitting such work to be done, the City shall not be liable to the Grantee for any damages to Grantee, willful and grossly negligent acts excepted.

**B.** Whenever by reason of establishing a grade or changes in the grade of any rights-of-way and/or public easements, or in the location or manner of construction of any, cables, electric conduits, water, sewer, stormwater drainage system, gas or other pipelines, it shall be deemed necessary by the City to alter or change Grantee's distribution system,

Grantee shall make such alterations or changes within a reasonable time, not to exceed six (6) months, as ordered in writing by the City, without claim for reimbursement or compensation for damages against City.

**C.** If City shall require the Grantee to adapt or conform its facilities, or to in any way alter, relocate or change its property to enable any other person, firm, corporation or entity (whether public or private), other than the City, to use the rights-of-way or public easements, the Grantee shall be reimbursed by the person, firm corporation or entity desiring or occasioning such change, alteration or relocation. Grantee shall make such alterations, relocations or changes within a reasonable time, not to exceed six (6) months, as ordered in writing by the City.

**D.** If the City shall require the Grantee to adapt or conform its facilities, or to in any way alter, relocate or change its property, and then for design changes within City's control and not due to unforeseen conditions, which require Grantee to adapt or conform the same facilities again for the same improvement, Grantee shall be reimbursed by the City for such alteration, relocation or change.

**E.** If City shall require Grantee to in any way alter, relocate or change its facilities from a private easement, then Grantee shall be reimbursed by the City for such alteration, relocation or change. Reimbursable costs shall be limited to facilities of like size.

**F.** "Person," "firm," "corporation," and "entity" as used in the preceding Subsection 308.C shall not include regular departments of the City, or any trust or authority formed by or for the benefit of City, for public utility purposes, or whose revenues are subsidized by or contribute to the general funds of the City, but shall include any other agency, whether acting in a governmental or non-governmental capacity, including, but not limited to, any urban renewal authority, or any other agency or authority, which as a part of its program clears whole tracts of land within the City limits and relocates citizens for the purpose of eliminating urban blight or similar aims.

**G.** The foregoing shall not alter the Grantee's prior rights or obligations within a pre-existing, private easement established prior to the dedication of rights-of-way in establishing the party responsible for the expense of any City required alteration, relocation or change of facilities. The Grantee shall maintain its prior rights when Grantee is requested by City to alter, relocate or change its facilities previously in a private easement.

*(Ord. No. 22415, § 1, 5-19-2011)*

## Section 309. Indemnification of the City.

**A.** Except as provided herein, Grantee shall, at its sole cost and expense, indemnify, hold harmless, and defend the City, its elected and appointed officials, officers, boards, commissions, commissioners, agents, employees, and volunteers against any and all claims, suits, causes of action (whether frivolous or otherwise), proceedings, and judgments for damages or equitable relief arising out of the installation, construction, maintenance, or operation of facilities by Grantee; or in any way arising out of Grantee's enjoyment or exercise of the privileges granted by the City or applicable law, regardless of whether the act or omission complained of is authorized, allowed, or prohibited by the City, other applicable law, or the terms of any grant to occupy the

rights-of-way, except to the extent such damages were caused by the negligence or intentional conduct of the City or its officers, agents or authorized contractors and subcontractors.

**B.** This indemnity provision includes, but is not limited to, the City's reasonable attorneys' fees incurred in defending against any such action, claim, suit (whether frivolous or otherwise), or proceeding, as well as the reasonable value of any services rendered by the City Attorney or City staff or employees.

**C.** Nothing in this franchise shall be construed to waive any immunity the City enjoys under applicable law or the Oklahoma Constitution.

**D.** Acceptance of the provisions of this section shall be a condition of all rights-of-way construction permits.

*(Ord. No. 22415, § 1, 5-19-2011)*

### Section 310. Grantee's rules and regulations.

The Grantee shall have the right to make and enforce such reasonable rules and regulations as it may deem necessary for the extension of its facilities, the sale of its natural gas and the prudent conduct of its business, provided that such rules and regulations shall neither be in conflict with the laws of the state of Oklahoma, the orders, rules or regulations of the Corporation Commission of Oklahoma or other regulatory authority, nor with the ordinances and regulations of the City insofar as they are consistent with the jurisdiction of the Corporation Commission of Oklahoma or other regulatory authority.

*(Ord. No. 22415, § 1, 5-19-2011)*

### Section 311. Maintenance and inspection of records.

**A.** Grantee shall at all times make and keep full and complete plats, maps and other records showing the location and size of all facilities comprising Grantee's system within the corporate limits of the City of Tulsa. Such plats, maps and any other records shall show the location and nature of all other works, structures, equipment and appurtenances comprising Grantee's system within the corporate limits of the City of Tulsa. Grantee shall further permit the City to inspect and audit during regular business hours the relevant books and records by Grantee in the ordinary course of business.

**B.** After completion of construction on each project, Grantee shall provide final as-recorded construction and acquisition Facility maps, which shall be submitted to the City. Such as-recorded maps shall be based upon post-construction inspections to verify location. Copies of as-recorded maps in a digital format acceptable to the City shall be submitted to the City, unless otherwise exempted.

**C.** Grantee agrees to make available within the corporate limits of the City of Tulsa all books, papers and records pertaining to its business carried on by it in or through the City of Tulsa, for the purpose of affording the City the opportunity to enforce the terms of this franchise and particularly to collect its franchise fee. Grantee shall further permit the City to inspect and audit during regular business hours the relevant books and records kept by Grantee in the ordinary course of business. City shall promptly

notify Grantee in writing of areas newly annexed into or deannexed from the corporate limits of the City, and Grantee shall update its records for the purpose of payment of franchise fees as soon as reasonably practicable after receiving such notice.

*(Ord. No. 22415, § 1, 5-19-2011)*

**Section 312. Consideration for Franchise: Franchise and volumetric rate fees.**

**A.** In consideration for the rights and privileges enjoyed under this franchise, Grantee agrees to pay the City, as a franchise fee, a sum equal to three percent (3%) of Grantee's gross cash receipts from the transportation, distribution or sale of natural gas for domestic, commercial or industrial consumption within the corporate limits of the City of Tulsa. All sums due from Grantee shall be in lieu of all other franchise, license, or occupation taxes or fees, which may be levied or attempted to be levied on Grantee by the City

**B.** Beginning November 1, 2015 and continuing through and including October 31, 2020 the franchise fee provided in Subsection 312.A shall be adjusted and Grantee shall pay the City a sum equal to three and five one-hundredths percent (3.05%) of its gross cash receipts from the transportation, distribution or sale of natural gas for domestic, commercial, and industrial consumption within the City. Beginning November 1, 2020 the franchise fee provided in Subsection 312.A shall be adjusted and Grantee shall pay the City a sum equal to three and one-tenth percent (3.10%) of its gross cash receipts from the transportation, distribution or sale of natural gas for domestic, commercial, and industrial consumption within the City.

**C.** For the purpose of determining Grantee's franchise fee for transport gas, Grantee shall pay the City a Volumetric Rate fee, which shall be the sum equal to the then-current Volumetric Rate multiplied by the number of Dth of transport gas transported or distributed through Grantee's facilities within the corporate limits of the City by Grantee or by any third-party to transport customers for consumption within the City.

**D.** In the event a customer of Grantee does not pay a monthly bill from Grantee in full, Grantee shall prorate its payments of remissions to the City for sums due on that particular bill so that the amount actually paid by the customer to Grantee on the bill is distributed to Grantee for the natural gas commodity and transportation or distribution service and to the City for sums due on the bill in proportion to the percentage of the total bill actually paid by the customer. In the event Grantee actually collects any outstanding amounts due on a past due, unpaid or partially paid monthly bill to a customer, then Grantee shall pay Grantor its proportionate share of sums due to the City on such bill.

**E.** All sums due from Grantee under Section 312 above shall be payable monthly on or before the 25th day of each month for the preceding calendar month, which sums shall be in lieu of all other franchise, license, or occupation taxes or fees, which may be levied or attempted to be levied on Grantee by the City.

**F.** Grantee shall have the right to seek from the City a waiver by the City of the payment of the Volumetric Rate fee due under this franchise as follows:

**1.** The Volumetric Rate fee may be waived by the City only on a case-by-case basis as to specific transport customers and only when the specific transport customer meets all of the criteria for the waiver specified in this Subsection 312.F; and

**2.** To seek the waiver, Grantee shall file an application for the waiver with the Director of Finance on a form to be provided by the Director of Finance; and

**3.** Documentary evidence shall be attached to the application as required by the Director of Finance or as deemed necessary by Grantee; and

**4.** The Director of Finance shall review and investigate the application and advise the Grantee in writing of the Finance Director's proposed recommendation thereon within fifteen (15) business days after the filing of the application. After advising Grantee of the proposed recommendation, the Finance Director shall make a final recommendation on the application no later than twenty (20) business days after issuing the Finance Director's proposed recommendation, unless Grantee otherwise requests, with the final recommendation to be filed with the City Clerk of City and mailed to Grantee; provided, as part of the review and investigation process, the Director of Finance may request additional information or documents from Grantee as reasonably deemed necessary for Finance Director's evaluation of and recommendation on the application. When such a request is made, the Grantee shall reasonably cooperate and comply with such request and upon the failure of the Grantee to so reasonably cooperate or comply, the Finance Director may delay the processing of the recommendation until such cooperation or compliance is given; provided further, the Grantee may extend the time lines set forth in this paragraph 312.F.4; and

**5.** At the same time the Finance Director's recommendation is filed with the City Clerk under paragraph 312.F.4 above, the Director shall notify Grantee of the date of a proposed public hearing before the governing body on the application, which hearing shall be held within fifteen (15) business days after the recommendation of the Director of Finance is filed with the City Clerk, as provided for by paragraph 312.F.4 above. The governing body of the City shall then hold the public hearing to determine whether the waiver application shall be approved or disapproved; and

**6.** At the public hearing provided for in paragraph 312.F.5 above, the governing body shall review and consider the application for a waiver of the Volumetric Rate fee for Grantee in regard to transport gas delivered to the transport customer mentioned in the application and may hear additional evidence and arguments for or against the application from the Finance Director, Grantee, and/or others and shall then determine whether or not all of the following criteria have been established by Grantee:

   **a.** That the transport customer has access to a lawful, economically feasible alternative through interstate commerce for the transportation of an adequate supply of natural gas to the transport customer by way of interstate gas pipelines owned and/or operated by an interstate pipeline company (the "alternative interstate gas transportation service"); and

   **b.** That Grantee has not played any role whatever in obtaining the alternative interstate gas transportation service for the transport customer; and

   **c.** That the alternative interstate gas transportation service would be provided to the transport customer by the interstate pipeline company at a cost less than the combined cost of Grantee's transportation fee plus the Volumetric Rate fee that Grantee would pay to City under this Ordinance for natural gas or transport gas provided or delivered to the transport customer; and

**d.** That due to the factors listed under subparagraphs 312.F.6.a and c above, the Grantee would lose the transport customer's business unless the Volumetric Rate fee due under this Ordinance is waived by the City; and

**e.** That due to the factors listed in subparagraphs 312.F.6.a, c and d above, the City would lose all sums due and payable to it under this Ordinance by Grantee for natural gas or transport gas provided or delivered to the transport customer unless the Volumetric Rate fee due under this Ordinance is waived by the City; and

**f.** That due to the factors listed in subparagraph 312.F.6.e above and/or other material factors, the granting of a waiver of the Volumetric Rate fee for Grantee in regard to Transport Gas delivered to the Transport Customer is in the best interests of the City.

**7.** Following the hearing and determination required by paragraphs 312.F.5 and 312.F.6 above, the governing body of City shall either approve or disapprove the application for a waiver. If all criteria set forth above in subparagraphs 312.F.6.a through f, inclusive, have been established by Grantee, then the governing body shall approve the waiver application; but otherwise the application shall be denied. If the application is denied, the governing body shall make specific findings of fact and conclusions of law based on such criteria. The final decision of the governing body on the waiver application, including the findings of fact and conclusions of law for a denial, shall be reduced to writing by the City Clerk and signed by the presiding officer of the governing body within ten (10) days of the date of the decision by the governing body, and immediately upon such signature by the presiding officer, the City Clerk shall mail a copy of the written decision to Grantee.

**8.** A waiver of the Volumetric Rate fee approved under this section shall be retroactive to the date of the filing of the application for waiver by Grantee, and the date of such filing shall be considered to be the effective date of the waiver for all purposes of this franchise.

**9.** A waiver of the Volumetric Rate fee approved hereunder shall be valid for a term of one (1) year, after which it shall lapse unless the Grantee seeks, and the governing body approves, an extension of the waiver for an additional one-year period in accordance with the terms of this Subsection 312.F.

**10.** Any denial by the governing body of City of an application for a waiver of the Volumetric Rate fee under this Subsection 312.F may be appealed to the district court by Grantee as provided for in Title 12 Oklahoma Statutes, Section 951.

*(Ord. No. 22415, § 1, 5-19-2011)*

## Section 313. Right to renegotiate Franchise (reopener).

**A.** If, after acceptance of this Ordinance, any legislation, rule, regulation, or regulatory order is enacted that significantly restructures the natural gas utility industry in a manner that affects the compensation provided to the City or paid by Grantee or rights granted to Grantee or the City, then either party, on the sixtieth month anniversary of the effective date of this franchise and every sixtieth month anniversary thereafter, may request renegotiation of the franchise by giving thirty (30) calendar days written notice to the other.

**B.** Upon receipt of such notice to renegotiate, the parties shall endeavor to address the issue of a revised franchise and make reasonable efforts to resolve the issue. If after a period of six (6) months from receipt of said notice, the parties are unable to reach an agreement on a revised franchise, either party shall have the option, for a period of six (6) months thereafter, to terminate the franchise upon giving twelve (12) months advance written notice.

**C.** If agreement is reached on a revised franchise between the City and Grantee, the issue of revision of the franchise shall be submitted for election by the qualified electors of the City of Tulsa in accordance with applicable laws. If a majority of the qualified electors of the City of Tulsa vote against the revision of the franchise, the franchise then in effect will continue in full force and effect until the end of the term provided for herein.

**D.** An unsuccessful election held pursuant to the provisions of this Section shall not prevent either party from subsequently requesting renegotiation of the franchise under Subsection 313.A above if, after the unsuccessful election, any additional legislation, rule, regulation, or regulatory order is enacted that significantly restructures the natural gas utility industry in a manner that affects the compensation provided to the City or paid by Grantee or rights granted to Grantee or the City.

*(Ord. No. 22415, § 1, 5-19-2011)*

**Section 314. Election required.**

This franchise shall not become effective until it shall be approved by a majority of the qualified electors voting thereon residing within the corporate limits of the City of Tulsa at an election called for that purpose, and a special election is hereby called for the purpose of submitting to the qualified electors residing in the City of Tulsa, the question of approval or disapproval of this Ordinance, which election shall be held on the 9th day of August 2011, between the hours prescribed by law. The Mayor of the City of Tulsa is hereby authorized and directed to issue a proper and lawful call and proclamation of such special election to be held on such date for such purpose and the executive officers of said City are hereby directed to give due and lawful notice of such election and submission of said question to the electors of said City, prescribing in the proclamation and notice of the proposition to be voted upon, the time of opening and closing the polls, the number and location of the polling places, and all other things prescribed by law, or the Ordinances of the City of Tulsa, Oklahoma.

*(Ord. No. 22415, § 1, 5-19-2011)*

**Section 315. Severability.**

If any section, sentence, clause or phrase of this Ordinance or any part thereof is for any reason found to be invalid by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance or any part thereof.

*(Ord. No. 22415, § 1, 5-19-2011)*

**Section 316. Acceptance and effective date.**

In the event this Ordinance is approved by a majority vote of said electors voting hereon at said special election, the Grantee shall file with the City Clerk of the City of Tulsa, within

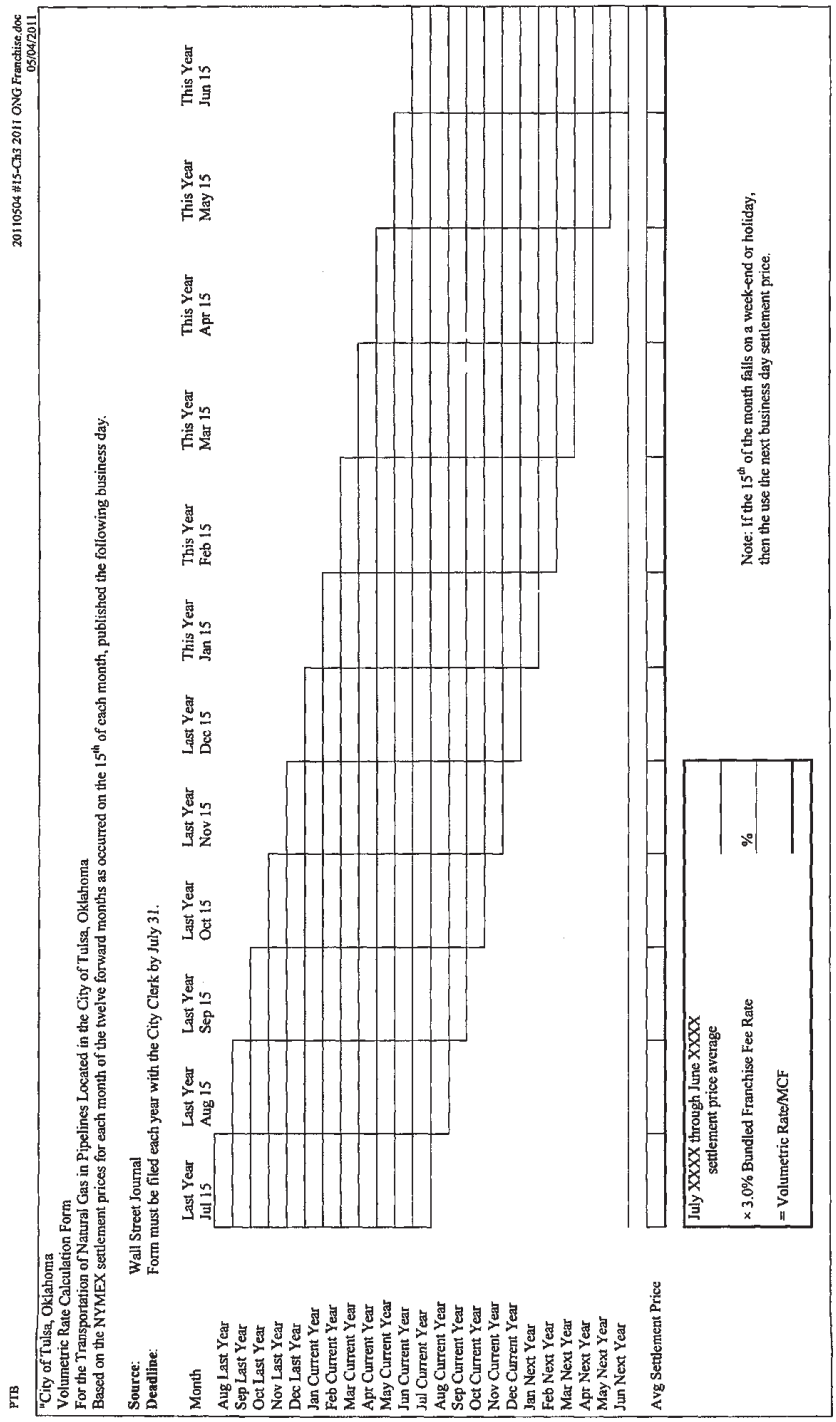
ten (10) business days after the official canvass of the votes and declaration by the governing body of the results thereof, a written acceptance of this franchise. This Ordinance shall become effective and operative on the date of filing of such acceptance.

*(Ord. No. 22415, § 1, 5-19-2011)*

**Section 317. Repealer.**

Ordinance No. 16620 is hereby repealed; and all ordinances and parts of ordinances in conflict herewith are hereby repealed.

*(Ord. No. 22415, § 1, 5-19-2011)*



PTB

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05/04/2011

"City of Tulsa, Oklahoma
Volumetric Rate Calculation Form
For the Transportation of Natural Gas in Pipelines Located in the City of Tulsa, Oklahoma
Based on the NYMEX settlement prices for each month of the twelve forward months as occurred on the 15th of each month, published the following business day.

**Source:** Wall Street Journal
**Deadline:** Form must be filed each year with the City Clerk by July 31.

| Month | Last Year Jul 15 | Last Year Aug 15 | Last Year Sep 15 | Last Year Oct 15 | Last Year Nov 15 | Last Year Dec 15 | This Year Jan 15 | This Year Feb 15 | This Year Mar 15 | This Year Apr 15 | This Year May 15 | This Year Jun 15 |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| Aug Last Year | | | | | | | | | | | | |
| Sep Last Year | | | | | | | | | | | | |
| Oct Last Year | | | | | | | | | | | | |
| Nov Last Year | | | | | | | | | | | | |
| Dec Last Year | | | | | | | | | | | | |
| Jan Current Year | | | | | | | | | | | | |
| Feb Current Year | | | | | | | | | | | | |
| Mar Current Year | | | | | | | | | | | | |
| Apr Current Year | | | | | | | | | | | | |
| May Current Year | | | | | | | | | | | | |
| Jun Current Year | | | | | | | | | | | | |
| Jul Current Year | | | | | | | | | | | | |
| Aug Current Year | | | | | | | | | | | | |
| Sep Current Year | | | | | | | | | | | | |
| Oct Current Year | | | | | | | | | | | | |
| Nov Current Year | | | | | | | | | | | | |
| Dec Current Year | | | | | | | | | | | | |
| Jan Next Year | | | | | | | | | | | | |
| Feb Next Year | | | | | | | | | | | | |
| Mar Next Year | | | | | | | | | | | | |
| Apr Next Year | | | | | | | | | | | | |
| May Next Year | | | | | | | | | | | | |
| Jun Next Year | | | | | | | | | | | | |
| Avg Settlement Price | | | | | | | | | | | | |

July XXXX through June XXXX settlement price average ____

× 3.0% Bundled Franchise Fee Rate %

= Volumetric Rate/MCF ____

Note: If the 15th of the month falls on a week-end or holiday, then the use the next business day settlement price.

**2011 OKLAHOMA NATURAL GAS FRANCHISE — EXHIBIT "A"**

## CHAPTER 4. PUBLIC SERVICE COMPANY FRANCHISE*

Section 400. Definitions.
Section 401. Grant of franchise.
Section 402. Term of franchise.
Section 403. Assignment, sale or lease.
Section 404. Enforceability of rules and regulations of Grantee.
Section 405. Standard of service—Indemnification of City.
Section 406. Duty to move or alter lines.
Section 407. Location of plants and systems and transmission of energy and related services.
Section 408. Use and repair of the public ways.
Section 409. Reasonable rates authorized.
Section 410. Sale of power to City.
Section 411. Fees.
Section 412. Maintenance and inspection of records.
Section 413. Right of City to purchase property.
Section 414. Election required—Acceptance by Grantee.
Section 415. Repeal of previous franchise agreement.
Section 416. Emergency clause.

### Section 400. Definitions.

As used in this Ordinance and franchise, the following words and phrases shall have the meanings ascribed below:

**A.** **Cable service** shall mean the one-way transmission to subscribers of video and audio programming or other programming services and subscriber interaction, if any, which is required for the selection or use of video and audio programming or other programming services provided through electric or electronic signals, or which utilizes a cable system, an open video system or any other Facility designed to provide video and audio programming services to subscribers, but excluding IP video service. By the exclusion of IP video service from this definition of Cable Service, the City shall not be deemed to have waived any of its rights to assert that any ROW occupant providing IP video service is providing Cable Service.

**B.** **Consumer** shall mean any individual person, corporation, company, partnership, firm, unincorporated association, trust, municipality or public corporation served by the Grantee through any use of the Public Ways.

**C.** **Control of electricity** shall mean regulation of the current and/or voltage or use of such electricity.

**D.** **Facility** or **facilities** shall mean all or any part of a collective system of tangible things, including but not limited to pipelines, conduits, copper or fiber optic cabling, pedestals, guy wires, anchors, vaults, junction boxes, utility poles and electrical wiring, that is partly or entirely located in the Public Ways and is used for the transmission of goods or services, including but not limited to natural gas, steam, chilled or potable

*__Editor's note—__Ord. No. 24695, § 1, adopted November 17, 2021, amended Chapter 4 in its entirety to read as herein set out. Former Chapter 4, §§ 400—416, pertained to similar subject matter, and derived from Ord. Nos. 4004, 6201, 13304, 18968.

water, electricity, video service or Telecommunications service, regardless of whether the services are provided for a fee, or provided to the general public, to a limited group of private users, or solely for the benefit of the owner of the system.

**E. Franchise** shall mean the rights, privileges and duties granted by Grantor to Grantee under this Ordinance and franchise agreement.

**F. Grantee** shall mean Public Service Company of Oklahoma, an Oklahoma corporation, its successors and assigns.

**G. Grantor** shall mean the City of Tulsa, a municipal corporation of the state of Oklahoma.

**H. Gross receipts** shall mean any and all compensation derived and received by Grantee from the sale, distribution and/or transportation of electricity within the corporate limits of the City of Tulsa. Gross Receipts shall include but not be limited to the franchise fee reimbursement and the following specific miscellaneous fees or charges received by the Grantee: trip (collection/not home), account research, late payment, duplicate bill, reconnect, customer account history, service initiation, master summary, temporary disconnect, tampering/unauthorized use, insufficient funds, return check, meter test, equipment damage, no access, special meter reading, temporary service, any fees or payments received by Grantee for the lease or use of its Plants and Systems, and any other fees or charges approved by the Oklahoma Corporation Commission.

**I. Information service** shall mean the offering of a capability for generating, acquiring, storing, transforming, processing, retrieving, utilizing or making available information via Telecommunications.

**J. Install, operate and maintain** (and other forms of such words) shall mean to acquire, erect, build, construct, install, extend, repair, remove, relocate, replace or otherwise operate and maintain.

**K. Major project** shall mean any installation, operation or maintenance work, which:

**1.** Is in or adjacent to an arterial street, and which will require more than ten (10) business days to complete;

**2.** Will interfere with or redirect vehicular or pedestrian traffic for more than five (5) business days;

**3.** Will require excavation of or into a public street; or

**4.** Will require construction of new plants or systems, or relocation of existing plants or systems, in a public sidewalk.

**L. Plants and systems** shall mean plants, systems, poles, wires, conduits, substations, meters, structures, equipment, Facilities, appliances and apparatus as are reasonably necessary for the control, transmission, distribution and sale in and to Grantor and to the public, generally.

**M. Public ways** shall mean the public rights-of-way, including streets, alleys, avenues, boulevards, parkways, lanes, thoroughfares and public utility easements within the corporate limits of the City of Tulsa as now constituted or as may be added to hereafter.

**N. Telecommunications** shall mean the transmission between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received.

**O. Ultimate consumer** shall mean a consumer (as defined in this chapter) which receives electric energy other than for resale to another consumer.

**P. Underground installation** shall mean the installation, operation and maintenance or replacement of any portion of Grantee's Plants and Systems underground or beneath the surface of any Public Way.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 401. Grant of franchise.**

Upon approval of this Ordinance and acceptance by the Grantee, the Grantor grants to Grantee, its successors and assigns, the right, power and authority to use the Public Ways of Grantor for the purpose of owning, installing, operating and maintaining Plants and Systems for the control, transmission, distribution and sale in and to the Grantor and to the public, generally, of electricity for lighting, heating, cooling and power purposes as well as for such other purposes as electric energy may be put, and to transmit and provide electric energy and related services, over distribution and transmission lines throughout the City and to connections and systems in other localities, with Plants and Systems upon, across, over and under each and any of Grantor's Public Ways. The rights and privileges granted by this Ordinance shall include the right, power and authority for Grantee to Install, Operate and Maintain the Plants and Systems described in this chapter for the purpose of providing Telecommunications, Telecommunications services, Cable Services and Information Services to the extent that such are related to and used solely in connection with Grantee's manufacture, control, transmission, distribution and sale of electric energy and related services, and not for the purpose of selling or providing such Telecommunications, Telecommunications services, Cable Services and Information Services to the public, generally. Sale or provision of such Telecommunications, Telecommunications services, Cable Services or Information Services to the public, by Grantee or any other entity, shall be considered separate and distinct use and occupancy of the Public Way, subject to the permit, fee, and other requirements of City ordinances governing rights-of-way occupancy management, currently codified by Title 11, Chapter 12 of Tulsa's Revised Ordinances, as may be amended from time-to-time.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 402. Term of franchise.**

All rights and privileges granted by this Ordinance shall extend and be in force between Grantor and Grantee for a term of fifteen (15) years from and after the date of acceptance of this Ordinance, except as otherwise provided in this chapter.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 403. Assignment, sale or lease.**

**A.** All provisions of this Ordinance and franchise which are obligatory upon or which inure to the benefit of the Grantee shall also be obligatory upon and shall inure to the benefit of its successors and assigns, and the word "Grantee" as used in this Ordinance shall include and be taken to mean not only Public Service Company of Oklahoma, but also its successors and assigns. Subject to the provisions of this subsection and Subsection 403.B below, Grantee may assign all or a portion of its rights and/or obligations under the provisions of this Ordinance and franchise. Any assignment by Grantee shall be in

writing, and the assignee shall agree in writing to accept and become responsible for full performance of all conditions, covenants, obligations and liabilities contained in this Ordinance and franchise to the extent such are the subject of such assignment. Upon notifying Grantor of any such assignment or proposed assignment, Grantee and/or the assignee shall provide Grantor with such information as is reasonably necessary to enable Grantor to make an informed determination of such assignee's financial status and capabilities. Any such assignment shall be deemed approved by Grantor unless within thirty (30) days of receiving written notice of such assignment Grantor notifies Grantee in writing that it objects to such assignment on the ground that the assignee is not financially able to perform the conditions, covenants, obligations and liabilities in this Ordinance and franchise which the assignee will be responsible for as a result of such assignment. Any such objection by Grantor must be based upon reasonable and generally recognized financial standards, and upon the information provided by Grantee and/or the assignee or verified by another generally recognized source of financial information. In the event such an objection is timely made by Grantor, Grantee and the assignee shall have a reasonable opportunity to address and, if necessary, provide appropriate remedies with respect to the grounds for such objection. Any assignments by Grantee of a portion of its rights and/or obligations established in this franchise, shall, unless provided otherwise in such assignment, be effective until the end of the term provided in Section 402, above, notwithstanding the termination of any other rights and obligations under the provisions of this Ordinance and franchise prior to the end of such term.

**B.** If, by reason of law or otherwise, a person or entity other than Grantee ("Third Party") shall lease or otherwise make use of Grantee's Plants and Systems for the distribution and/or transmission of electric energy which is to be sold to an Ultimate Consumer within the City of Tulsa, the following requirements shall apply:

**1.** Prior to permitting such use of Grantee's Plants and Systems, Grantee shall make reasonable efforts to ensure that such Third Party has secured any applicable permits to furnish electric energy to Ultimate Consumers within the City of Tulsa.

**2.** The parties understand that Grantor may require, as a condition of any such permit, that such Third Party pay applicable permit fees to Grantor. In such cases, if requested by Grantor, Grantee agrees to act as Grantor's agent, at cost, for the collection and remittance of such fees to Grantor.

**3.** On a monthly basis, Grantee shall report to Grantor estimates of electric energy distributed and/or transmitted by and through Grantee's Plants and Systems for sale to Ultimate Consumers within the City of Tulsa.

This Subsection 403.B shall not apply to any use of Grantee's Plants and Systems for the distribution and/or transmission of electric energy to any party purchasing, receiving and using such electric energy outside the corporate limits of the City of Tulsa.

*(Ord. No. 24695, § 1, 11-17-2021)*

## Section 404. Enforceability of rules and regulations of Grantee.

Grantor shall not adopt any ordinance or regulation which has the effect of prohibiting Grantee from making and enforcing reasonable rules and regulations for the sale, delivery, control and metering of its electric energy and related services and the conduct of its

business, including rules and regulations which reserve in Grantee the right to disconnect service to customers where any portion of Grantee's Plants and Systems are found to have been tampered with, or who have failed to pay for electricity or services, and to enter upon the premises of its customers at all reasonable times for the purpose of inspecting, repairing or reading meters or for removing any portion of its Plants and Systems. Provided that any such rules and regulations of Grantee shall not be in conflict with law or the rules and regulations from time to time adopted by the Corporation Commission of the state of Oklahoma, the Federal Energy Regulatory Commission, or by any other regularly constituted regulatory authority.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 405. Standard of service—Indemnification of City.**

**A.** Grantee covenants and agrees that, in consideration or granting this franchise, it will maintain electric service in and to Grantor under the rules and regulations imposed upon it by the Corporation Commission of the state of Oklahoma or by any other regularly constituted regulatory authority. But, in accepting this franchise and contract, Grantee does not guarantee continuous service at all times and shall be relieved temporarily from its obligation to furnish such services in case of any disability caused by an act of God or by the elements, or terrorism, or strikes, or lock-outs, or by any temporary breakdown or failure of its Plants and Systems, or any portion of them, or by any other causes beyond the control of Grantee; provided Grantee does agree in such cases to exercise due diligence in repair of such Plants and Systems, and to resume operation of same without unnecessary delay.

**B.** The Grantee covenants and agrees that it will indemnify and hold the City of Tulsa free and clear of any claims for damages or otherwise caused by the negligence of Grantee in the installation, operation or maintenance carried on under this franchise. But it is understood and agreed that in the event of claims being presented or prosecuted against the City of Tulsa which are alleged by the claimant or Grantor to have resulted from the negligence of Grantee, the Grantee shall have the right to defend against the same and to settle and discharge same in such manner as it may see fit. And to this end the City of Tulsa agrees to notify the Grantee of such claims and to furnish to it such information and assistance as may be necessary to mount a defense.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 406. Duty to move or alter lines.**

**A.** Grantor reserves the right to lay or permit to be laid cables, electric conduits, water, sewer, gas or other pipelines and to do or permit to be done any underground work deemed necessary and proper by Grantor, along, across, over or under the Public Ways. If Grantor determines that any such work may cause damage to Grantee's Plants and Systems, or their installation, operation and maintenance, Grantor shall, except in the case of emergency, provide Grantee with written notice that such work is to be performed before it is commenced. In permitting such work to be done and in doing such work, Grantor shall not be liable to Grantee for any damages unless they are negligently, willfully or unnecessarily occasioned by Grantor.

**B.** Whenever by reason of establishing a grade or changes in the grade of any street, or in the location or manner of construction of any Public Way, cables, electric conduits,

water, sewer, gas or other underground structures, it shall be deemed necessary by Grantor to alter, change, adapt or conform the Plants and Systems of Grantee, or any part of them, such alterations or changes shall be made within a reasonable time by Grantee, as directed in writing by Grantor, without any claim for reimbursement or compensation for damages against Grantor, or any agency, trust or authority formed for, by, or for the benefit of Grantor.

**C.** Grantor may require Underground Installation at a cost that would exceed Grantee's current urban installation, operation and maintenance or replacement procedures. In such case, Grantor shall pay and reimburse Grantee the difference between the reasonable cost of such required procedures and the reasonable cost of Grantee's current procedures plus the salvage value of any Plants and Systems being replaced, provided that Grantor shall not be required to reimburse Grantee for such expenses to the extent that Grantee is allowed to recover such expenses by the Corporation Commission of Oklahoma or other regularly constituted regulatory authority in establishing the rates which Grantee may charge its Ultimate Consumers.

**D.** If Grantor shall require Grantee to adapt or conform its Plants and Systems, or any part of them, or to in any way alter, relocate or change its property to enable any other person, firm, corporation or entity (whether public or private), other than Grantor, to use the Public Ways, Grantee shall be entitled to reimbursement by the person, firm, corporation or entity desiring or occasioning such change, alteration or relocation. "Person," "firm," "corporation" and "entity," as used in this section, shall not include regular departments of Grantor, or any trust or authority formed by or for the benefit of Grantor, for public utility purposes, or whose revenues are subsidized by or contribute to the general funds of Grantor, but shall include any other agency or authority of the City of Tulsa, whether acting in a governmental or non-governmental capacity, including, but not limited to any agency or authority which as a part of its program clears whole tracts of land within the city limits and relocates citizens for the purpose of urban development or similar aims.

**E.** Grantee will notify Grantor in writing within ten (10) business days in the event Grantee ceases completely to use its Plants or Systems, or any portion of them, for any of the purposes for which this franchise is granted. If Grantee is not required by law or by provisions of a legally-imposed contract to make the use of such Plants and Systems available to any other person or entity, Grantee will, within ninety (90) calendar days of the date when it and any other such persons or entities cease all such use, remove any such Plants and Systems located upon the Public Ways of Grantor.

*(Ord. No. 24695, § 1, 11-17-2021)*

## Section 407. Location of plants and systems and transmission of energy and related services.

In performing the terms and provisions of this Ordinance, franchise and contract, Grantee is granted the continuing right, privilege and option to manufacture, control and store electric energy within the corporate limits of Grantor, and/or to transmit such electric energy over transmission lines from other plants and wholesale suppliers and to distribute same from some central location or locations at proper voltage; together with the right to transmit electric energy from any source to, from and through the City of Tulsa to other localities. Grantee is also given the continuing right to use its Plants and Systems to

provide transmission and distribution services to other wholesale suppliers of electrical energy as Grantee is authorized or required to provide under applicable law. Grantee is also authorized to allow others, having a permitted right granted by the City of Tulsa, or as may otherwise be authorized or required by applicable law, to attach Telecommunications and cable Facilities to its poles and structures or to place such Telecommunications and cable Facilities within, upon or adjacent to its underground ducts and conduits, on such conditions as it deems just and reasonable and in compliance with applicable law, including but not limited to City ordinances governing rights-of-way occupancy management, currently codified at Title 11, Chapter 12, of Tulsa's Revised Ordinances, as may be amended from time-to-time; provided, to the extent that applicable law does not establish such conditions and should the parties be unable to agree to such conditions, the City Council of the City of Tulsa shall determine such conditions as are just and reasonable, which shall be binding upon all parties. Grantee shall not prohibit or deny attachment or shared placement of Telecommunications or cable Facilities solely on the basis that Grantee or a related entity provides or plans to provide such services to the public. Grantee herewith grants and sets aside for Grantor's exclusive use the duct or ducts in Grantee's existing downtown Tulsa underground distribution system as transferred to Grantor pursuant to written Lease Agreement dated October 25, 1974, and, further, Grantee agrees that in the event it hereafter builds ducts for its own use and service in downtown Tulsa's underground network distribution system, in such event, it will install at its expense one (1) separate duct of equal length and size for City's exclusive use, including connections for manholes, laterals and outlets.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 408. Use and repair of the public ways.**

**A.** Grantee's Plants and Systems shall be installed, operated and maintained in compliance with the standards prescribed in the Americans with Disabilities Act (42 U.S.C. § 12101, et seq.), and in such a manner as will, consistent with reasonable necessity, least interfere with other public uses of the Public Ways.

**B.** With regard to any installation, operation or maintenance work which may interfere with normal use of a Public Way, Grantee shall:

**1.** Identify at the work site and on vehicles that the work is being conducted by or on behalf of Public Service Company Oklahoma (or its successors and assigns), in a manner that is clearly legible to passing motorists and pedestrians;

**2.** Perform all required underground utility locations and notifications;

**3.** Avoid, where possible, temporarily restricting sidewalks and ADA access ways, and if sidewalks are closed, provide a temporary ADA access path or an appropriate detour;

**4.** Safely barricade excavation sites;

**5.** Follow all applicable traffic diversion requirements and remove all temporary traffic diversion equipment within 48 hours of completion;

**6.** Provide to Grantor regularly updated contact information for a representative of Grantee authorized and available to provide timely information and address concerns.

Any work which may interfere with normal use of a Public Way shall be conducted as expeditiously as possible to minimize such interference. After such work is completed, Grantee shall, with due diligence and reasonable dispatch, place the Public Ways where such work was performed in a condition in compliance with Grantor's reasonable standards and specifications; provided, that Grantor shall not impose standards and specifications which are in conflict with any standards and specifications of the Corporation Commission of the state of Oklahoma or by any other regularly constituted regulatory authority, which are applicable to Grantee.

**C.** In addition to the requirements of Subsection B above, before Grantee commences work on a Major Project, except in the case of emergency, Grantee shall first obtain a permit, pursuant to reasonable standards and regulations required by the Grantor.

**D.** An emergency Major Project required to protect the immediate safety and well-being of the general public should be commenced without delay. Grantee must provide notice to the person designated in writing by Grantor to receive such notice, as soon as possible, to include:

**1.** General description of the activity and any emergency traffic control measures;

**2.** Location (site address if possible), including nearest cross streets;

**3.** Start date and time, anticipated duration, and anticipated daily start and stop times; and

**4.** Name and contact information of any agents or contractors performing work on Grantee's behalf.

**E.** When Grantee commences a Major Project on an emergency basis, Grantee shall apply for a standard Major Project permit as soon as reasonably possible, but in any event no later than two business days following the date of notification, and shall notify Grantor upon completion of the work.

**F.** In the event Grantee fails to commence or complete any construction, maintenance, installation, restoration or repair work required by this Ordinance or the terms of any permit with due diligence and reasonable dispatch and in accordance with any mutually agreed upon schedule of activity, Grantor may cause such work to be performed after written notice to Grantee, given so as to afford Grantee an opportunity to commence and complete such work within a reasonable time. The cost of such work incurred by Grantor upon Grantee's failure to perform shall then be charged and collected from Grantee.

**G.** The provisions of this Section may be supplemented by mutual agreement of Grantor and Grantee, memorialized in a separate memorandum of understanding, and Grantor reserves the right to make and enforce reasonable regulations concerning the installation, operation and maintenance of Grantee's Plants and Systems located along, across, over or under the Public Ways of Grantor and to reasonably designate where such Plants and Systems shall be placed.

**H.** Grantor agrees that in the event it requires installation of any portion of Grantee's Plants and Systems contrary to Grantee's current urban installation, operation and maintenance or replacement procedures, Grantor shall pay and reimburse Grantee for the difference between the reasonable cost of such required procedures and the reasonable cost of Grantee's current procedures plus the salvage value of any Plants and Systems being replaced. Provided, however, that Grantor shall not be required to

reimburse Grantee for such expenses to the extent that Grantee is allowed recover such expenses by the Corporation Commission of Oklahoma or other regularly constituted regulatory authority in establishing the rates which Grantee may charge its Ultimate Consumers.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 409. Reasonable rates authorized.**

During the term of this franchise and for and in consideration of its acceptance by Grantee, it is agreed that Grantee may charge and collect from Grantor, its inhabitants and the consumers therein, a rate or rates, which shall at all times be compensatory and reasonable, subject to such rules, regulations and orders as are now in effect or that may hereafter be lawfully made by the Corporation Commission of the state of Oklahoma, or by any other regularly constituted regulatory authority.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 410. Sale of power to City.**

During the term of this franchise, Grantee shall provide Plants and Systems for all electric energy required by Grantor for municipal purposes, including wastewater treatment, water and stormwater pumping, and lighting of its streets, and shall sell and deliver to Grantor, and Grantor shall purchase and receive from Grantee, all electric energy requested by Grantor for municipal purposes.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 411. Fees.**

**A.** From and after the date of acceptance of this Ordinance, as consideration of the granting of this franchise, for use of the Public Ways, and as a compensation for the rights and privileges enjoyed hereunder, Grantee agrees to pay to Grantor a sum of two percent (2%) of Gross Receipts.

**B.** In addition to the sum provided for in Subsection 411.A above, Grantee shall also pay to Grantor an additional sum of one percent (1%) of Gross Receipts, to be deposited by Grantor into a special revenue fund for the maintenance and repair of Public Ways, including but not limited to right-of-way and median maintenance and enhancement; street and highway lighting maintenance, repair, and replacement; and Underground Installation cost reimbursement as provided for in Subsections 406.C and 408.H.

**C.** The sums described above shall be payable monthly on or before the 20th day of each month, on receipts of Grantee for the preceding calendar month, and shall be in lieu of all concessions, charges, excise, franchise, licenses, occupation, privilege and permit fees, or taxes, except assessments for special improvements and ad valorem taxes.

**D.** Should Grantee accept a franchise from any other city or town in which it agrees to pay a higher percentage of Gross Receipts than the percentage provided for in Subsection 411.A above, then and in that event Grantee shall immediately and without demand inform Grantor's governing body of such occurrence. Thereafter, at the sole discretion of Grantor's governing body and pursuant to such process as it deems appropriate, Grantee may be directed by Grantor's governing body to increase the percentage of Gross Receipts to be paid to Grantor hereunder to such higher percentage to the extent such increase is allowed by the Charter of the City of Tulsa and other applicable law.

**E** Grantor agrees that the total of the percentage rates used to calculate the fee paid by Grantee to Grantor, including any revision of such fee, shall in no event exceed the percentage rate used to calculate any fee or tax paid to Grantor by any other person or entity if such fee or tax is based in any way on the amount of revenues from sales of electric energy by such other person or entity to Ultimate Consumers within the City of Tulsa.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 412. Maintenance and inspection of records.**

**A.** Grantee shall at all times make and keep full and complete plats, maps and other records showing the location, nature and size of all of Grantee's Plants and Systems within the corporate limits of the City of Tulsa.

**B.** Grantee shall maintain and provide to Grantor a regularly updated catalogue of street and highway lighting pole and fixture standards and costs, including electricity costs.

**C.** For the purpose of affording Grantor the opportunity to enforce and collect the franchise fee imposed by this Ordinance and franchise, Grantee shall further permit Grantor to inspect and audit, during regular business hours and at Grantor's expense, the relevant books and records kept by Grantee in the ordinary course of business.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 413. Right of City to purchase property.**

**A.** Grantor shall have the right at any time after fifteen (15) years after the date of acceptance of this franchise to purchase all, but not less than all, of the properties of Grantee which comprise the Plants and Systems of Grantee that are used for or related to the manufacture, transmission, distribution, sale and Control of Electricity which are located within the corporate limits of the City of Tulsa at the time such right to purchase is exercised, and to terminate this franchise if such purchase and termination are approved by a majority of the qualified electors of the City of Tulsa voting at a special or general election held in accordance with the provisions of this Section 413. At any time after the right to purchase such properties of Grantee shall have accrued under the terms of this Subsection 413.A and the fair market value of such properties has been determined in accordance with Subsection 413.B below, the question of the purchase of such properties and termination of this franchise may be submitted by the City Council of the City of Tulsa to the qualified electors of the City for approval. The question of the acquisition of such properties and the termination of this franchise shall also be submitted to the qualified electors of the City of Tulsa upon the petition to the City of twenty-five percent (25%) of the qualified electors of the City presented after the right to purchase such properties of Grantee shall have accrued under this Subsection 413.A. In the event such a petition is so presented, the question of the acquisition of such properties and the termination of the franchise shall be submitted at the next succeeding election in the City of Tulsa after the fair market value of such properties has been determined in accordance with Subsection 413.B below.

**B.** Grantee shall be compensated by Grantor for the purchase of the above-described properties by payment to Grantee of the fair market value of such properties located within the City of Tulsa, which shall include consideration of the services provided by means of such properties and any legal obligations or commitments which Grantee has

which are directly related to such properties. Such value shall be determined by the majority of three (3) appraisers, one (1) to be selected by the Mayor of the City of Tulsa, one (1) by Grantee, and the third by the first two appraisers. The appraisers shall be persons of recognized skill, ability and experience with respect to the appraisal and evaluation of properties of the character and type which City is entitled to purchase pursuant to this section and of services provided by means of such properties. If Grantee shall refuse to select an appraiser for thirty (30) days after an appraiser has been selected by the Mayor, the fair market value of the properties described above, taking into consideration the services provided by means of such properties, shall be fixed by the vote of a majority of the City Council. If the two (2) appraisers appointed by the Mayor and by Grantee shall fail to agree upon the third appraiser within thirty (30) days after their appointment, the third appraiser, upon the application of either Grantor or Grantee, shall be appointed by the Presiding Judge of the District Court of Tulsa County, Oklahoma, or if such Judge shall fail or refuse to make such appointment for any reason, then the Corporation Commission of Oklahoma, upon ten (10) days' notice to the adverse party, may appoint such third appraiser. The fair market value of the properties described above shall be determined by the appraisers within ninety (90) days after the appointment of the third appraiser.

**C.** After the fair market value of the properties described above has been determined by the appraisers in accordance with the provisions of Subsection 413.B above, the question of the acquisition of such properties by payment to Grantee of the fair market value of such properties as so determined and termination of this franchise shall be submitted to the qualified electors of the City of Tulsa at the next succeeding special or general election. In the event a majority of such qualified electors approve the question of such acquisition and termination, Grantor shall have ninety (90) days from its receipt of the official results of such election within which to pay Grantee in cash the fair market value of all of such properties as determined by the appraisers and submitted to the qualified electors at the election. Until such payment, Grantee may continue to operate its Plants and Systems and provide services pursuant to the terms of this franchise; provided, that if between the date of the appraisal of such properties and the date of payment therefor, reasonable and necessary additions, betterments and replacements shall have been made by Grantee to its Plants and Systems or services within the City of Tulsa, Grantor shall pay in addition to the value established by the appraisers, the reasonable cost of such additions, betterments and replacements. If Grantor fails to pay the appraised amount plus any additions, betterments and replacements as provided for here to Grantee within the ninety (90) day period prescribed above, then the right of purchase granted to Grantor by this section shall expire and become void.

**D.** For the purpose of aiding the appraisers in determining the fair market value of the properties described above, including consideration of the services provided by means of, and obligations and commitments directly related to such properties, all of the relevant books, records, contracts and other information in the possession of the Grantee shall be open and accessible to the appraisers during the time their appraisal is being made, and the appraisers may take into consideration any other factors appropriately presented to them in determining the fair market value.

**E.** In the event City purchases properties of Grantee pursuant to this section, City agrees that it will, for a reasonable fee, make the use of such properties available to Grantee

as is necessary for the efficient operation by Grantee of the remaining portions of its Plants and Systems for the transmission, distribution, provision and sale of electric energy and related services.

**F.** In the event the provisions concerning rights of purchase contained in Article VIII, Section 9 of the Amended Charter of the City of Tulsa, as in effect on the operative date of this Ordinance, shall be repealed or substantially revised during the term of the franchise granted here so as to remove the requirement that the right of purchase prescribed in this Section 413 be included as a condition of franchises granted by the City of Tulsa, the provisions of this Section 413 by which Grantor is given the right to purchase Plants and Systems of Grantee shall become null, void and of no further effect.

*(Ord. No. 24695, § 1, 11-17-2021)*

### Section 414. Election required—Acceptance by Grantee.

This Ordinance and franchise shall be in full force and effect from and after the date of its acceptance, upon its passage and approval by a vote of a majority of the qualified electors residing within the City of Tulsa, who shall vote on it at a special election called under or pursuant to the provisions of this Ordinance; and if this Ordinance fails to be so approved at that election, it shall be wholly void and of no effect.

The Mayor of the City of Tulsa is authorized and instructed to call by proclamation such election in the manner and form provided by the laws of the state of Oklahoma for the calling of special elections, to be held on February 8, 2022, giving such notice and preparing such proclamation, ballot title and call as provided by law, for the purpose of submission to the qualified electors residing within the City of Tulsa the proposition of approval or refusal of this Ordinance and the franchise granted by it; and the proper officers of the City are hereby directed to do all things that may be necessary for the holding of such election and for the submission of the question, and shall, in all things, comply with the laws of the state of Oklahoma, in designating February 8, 2022, as the day, month and year of this election, the hours of opening and closing the polls, the voting places within the City in which this election shall be held and the proper persons within the respective precincts of the City for the purpose of holding this election.

It is understood and agreed that in the event this franchise is approved at such election the Grantee shall within thirty (30) days after the result of such election is declared as provided by law, file with the City Clerk of the City of Tulsa an acceptance in writing duly executed according to law, accepting this Ordinance and franchise.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Note—**On February 28, 2022, Public Service Company of Oklahoma, an Oklahoma corporation, being the grantee mentioned in Ord. No. 24695, does hereby, in writing, in all things, accept the said Ordinance, franchise and contracts, and all of the terms and provisions thereof

### Section 415. Repeal of previous franchise agreement.

Upon the filing by the Grantee of the acceptance of this Ordinance as provided, all rights, privileges and obligations of any other ordinance and franchises, or portions of them, under which the Grantee may now be exercising its privileges of use of the Public Ways in the City

of Tulsa and particularly Ordinance No. 18968 of the City of Tulsa, codified as Title 15, Sections 400 through 416, both inclusive, of the Tulsa Revised Ordinances and all other ordinances and parts of ordinances in conflict, shall be and remain canceled, annulled and repealed.

*(Ord. No. 24695, § 1, 11-17-2021)*

**Section 416. Emergency clause.**

Because an immediate necessity exists in order that the inhabitants of Grantor may be provided an adequate supply of electricity for heating, lighting, cooling and power purposes and for the purpose of providing light, heat, cooling and power for the streets, alleys, public grounds, parks and other public places and institutions of Grantor, as well as for the preservation of the public health, peace and safety, an emergency is declared to exist by reason of which this Ordinance shall be in full force and effect from and after its passage, approval and publication; and same shall be submitted at a special election.

*(Ord. No. 24695, § 1, 11-17-2021)*

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# CHAPTER 5. TELEPHONE INSPECTION FEE AND SERVICE CHARGE (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 19945, effective January 1, 2001.

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## CHAPTER 6. MISCELLANEOUS GRANTS*

Section 600. Atchison, Topeka and Santa Fe Railway Grants.
Section 601. Board of Education for City of Tulsa Grant.
Section 602. Continental Supply Company Grant.
Section 603. Coynco Products, Inc., Grant.
Section 604. Gulf Pipeline Company Grant.
Section 605. Happy Company Grant.
Section 606. Kraft Foods Company Grant.
Section 607. Linde Air Products Company Grant.
Section 608. Mackay Telegraph Cable Company Grant.
Section 609. Midland Valley Railroad Company Grants.
Section 610. Missouri, Kansas and Texas Railway Company Grants.
Section 611. St. Louis-San Francisco Railway Company Grants.
Section 612. Sand Springs Railway Company Grants.
Section 613. Sinclair-Cudahy Pipeline Grant.
Section 614. Standard Paving Company Grant.
Section 615. Texas Company Grants.
Section 616. Tulsa Boiler and Machinery Company Grant.
Section 617. Tulsa Warehouse and Distributing Company Grant.
Section 618. Grant to record owners of Lot 1, Block 2, Giddings Resubdivision.
Section 619. Southwestern Bell Telephone Company Grant.
Section 620. Public Service Company Grants.
Section 621. Grants continued in force only according to their terms.
Section 622. Kentube Company Grant.
Section 623. Williams Center Plant, Inc., Grant.

### Section 600. Atchison, Topeka and Santa Fe Railway Grants.

The following ordinances granting rights-of-way across City streets to Atchison, Topeka and Santa Fe Railway Company are continued in force according to their terms:

| Ordinance No. | Streets |
|---|---|
| 1839 | Frankfort, Greenwood and Iroquois Avenues and the alleys in Blocks 52, 84 and 85, Original Town of Tulsa. |
| 1840 | Archer, Hartford, Elgin, First and Second Streets and the alleys in Blocks 51 and 110, Original Town of Tulsa. |
| 3054 | First Street. |
| 4202 | Third Street and the alley in Block 114, Original Town of Tulsa. |
| 6345 | Lewis Place. |
| 6446 | Hartford Avenue. |
| 11327 | 31st Street North. |

### Section 601. Board of Education for City of Tulsa Grant.

Ordinance No. 5633 granting the Board of Education for Tulsa the right to use, for public school purposes, certain portions of Norfolk Avenue and Eighth Street is continued in force according to its terms.

*(NOTE: The ordinances referenced in this chapter are on file in the Office of the City Clerk.)

### Section 602. Continental Supply Company Grant.

Ordinance No. 1992 granting Continental Supply Company a right-of-way across Cheyenne and Boulder Avenues is continued in force according to its terms.

### Section 603. Coynco Products, Inc., Grant.

Ordinance No. 7231 granting Coynco Products, Inc., the right to construct and maintain a spur track across Dawson Road is continued in force according to its terms.

### Section 604. Gulf Pipeline Company Grant.

Ordinance No. 314 granting Gulf Pipeline Company, a telephone and telegraph line right-of-way over Lawton, West Third Street, South Main, East Third, Boston and East Second Streets, is continued in force and according to its terms.

### Section 605. Happy Company Grant.

Ordinance No. 6147 granting Happy Company a right-of-way in the alley adjacent to Lot 5, Block 198, Original Town of Tulsa, is continued in force according to its terms.

### Section 606. Kraft Foods Company Grant.

Ordinance No. 5220 granting the Kraft Foods Company a right-of-way across Xanthus Avenue, is continued in force according to its terms.

### Section 607. Linde Air Products Company Grant.

Ordinance No. 6130 granting Linde Air Products Company a pipeline right-of-way along the North Line of King Street is continued in force according to its terms.

### Section 608. Mackay Telegraph Cable Company Grant.

Ordinance No. 1212 granting the Mackay Telegraph Cable Company a telegraph line right-of-way across Kenosha, Peoria, Fifth Street, and the alleys in Block 119 and 136, Original Town of Tulsa, is continued in force according to its terms.

### Section 609. Midland Valley Railroad Company Grants.

The following ordinances granting rights-of-way across City streets to Midland Valley Railroad Company, are continued in force according to their terms.

| Ordinance No. | Streets |
|---|---|
| 75 | Archer, Greenwood, Hartford, Iroquois, Kenosha, Lansing, First through Eighth Streets, and alleys in Blocks 48, 51, 83, 111, 113, 141, 143, 168, 169, 185, Original Town of Tulsa, and Block 5, Hodge Addition. |
| 81 | Elgin, Frankfort, Greenwood, First Street, and alleys in Blocks 75, 76, 77, Original Town of Tulsa. |
| 1484 | Greenwood Avenue. |
| 1613 | Sixteenth Street, Sixteenth Place, Seventeenth Street, Seventeenth Place, Eighteenth Street, Nineteenth Street, Twentieth Street, Twenty-First Street, Olympia and Quanah Streets, and alleys in Blocks 9 and 13, West Tulsa, and Blocks 1, 2, 3 and 6, Riverside Addition. |

## Section 610. Missouri, Kansas and Texas Railway Company Grants.

The following ordinances granting rights-of-way across City streets to the Missouri, Kansas and Texas Railway Company, are continued in force according to their terms:

| Ordinance No. | Streets |
|---|---|
| 35 | First Street, Greenwood, Frankfort, Brady, Elgin, Cameron, Detroit, Davenport, Frisco, Elwood, Denver, Boulder, Boston and Cincinnati Avenues, and certain alleys, more particularly described in the ordinance. |
| 1624 | Boston, Cincinnati, Detroit, Elgin Avenues, and the alleys in Blocks 25, 26, 27 and 28, Original Town of Tulsa. |
| 1769 | Elgin, Frankfort, Greenwood Avenues, and alleys in Blocks 54, 55 and 56, Original Town of Tulsa. |
| 1806 | Alley between Block 9, Abdo Addition, and Block 6, Glass Factory Addition. |
| 1807 | Troost Avenue, and the alleys in Block 5, Factory Addition, and Blocks 3 and 4, Glass Factory Addition, Original Town of Tulsa. |
| 1892 | Main Street. |
| 1901 | Madison Street. |
| 5264 | Cincinnati Avenue. |
| 6145 | First Street. |
| 12076 | 38th Street South. |
| 12822 | East 55th Place South. |
| 12876 | 70th East Avenue. |
| 13066 | Ute Street. |
| 13191 | East 55th Place South. |
| 11629 | East 51st Street. |

## Section 611. St. Louis-San Francisco Railway Company Grants.

The following ordinances granting rights-of-way across City streets to their St. Louis-San Francisco Railway Company are continued in force according to their terms:

| Ordinance No. | Streets |
|---|---|
| 1023, 3962, 6315 | Madison Avenue. |
| 1158, 4011, 6661 & 12824 | Norfolk, Admiral Place, Owasso Avenue and Fourth Street |
| 1879 | Denver Avenue. |
| 2213 | Frankfort and Greenwood Avenues and the alley in Block 77, Original Town of Tulsa. |
| 3369 | Alley in Block 8, Auto Heights Addition, Original Town of Tulsa. |
| 805, 4967 | Quanah, Phoenix, Olympia, Sixteenth Street, Sixteenth Place, Maybelle, Seventeenth Street, and alley in Block 13, West Tulsa Addition, Original Town of Tulsa. |
| 6415 | West Twenty-First Street. |
| 6632 | Sixteenth Street between Olympia and Phoenix Avenues. |
| 7274 | Archer Street and Admiral Place. |

| Ordinance No. | Streets |
|---|---|
| 9521 | Dawson Road. |
| 10094 | Dawson Road. |
| 10154 | West Tulsa. |
| 10431 | West Tulsa, Quanah, Phoenix, Olympia, Maybelle, 16th Street, 16th Place, and alley in Block 13. |
| 12133 | Frisco Avenue and West First Street. |
| 12182 | Frisco Avenue and West First Street. |
| 13904 | Tecumseh Street. |
| 14392 | North 93rd East Avenue. |

### Section 612. Sand Springs Railway Company Grants.

The following ordinances granting rights-of-way across City streets to the Sand Springs Railway Company are continued in force according to their terms:

| Ordinance No. | Streets |
|---|---|
| 4441 | Various Streets in the City of Tulsa, Oklahoma. |
| 4598 | West Fifth Street and South Thirty-Third West Avenue. |
| 6103 | Alley in Block 11, and Thirty-First West Avenue, all in Hale Subdivision to the City of Tulsa, Tulsa County, Oklahoma. |
| 7156 | Alley in Block 12, Hale Subdivision to the City of Tulsa, Tulsa County, Oklahoma. |
| 17102 | Twenty-Fifth West Avenue, West 5th Street, 33rd West Avenue, 38th West Avenue, 39th West Avenue, 40th West Avenue, 41st West Avenue, 43rd West Avenue, 45th West Avenue, 49th West Avenue, 51st West Avenue, 61st West Avenue, and 65th West Avenue. |

### Section 613. Sinclair-Cudahy Pipeline Grant.

Ordinance No. 1900, granting Sinclair-Cudahy Pipeline Company a telephone and telegraph right-of-way for twenty-five (25) years, across Fifth Street, West Seventh Street, West Eleventh Street, Lawton, Phoenix, Twenty-First Street and over the Arkansas River Bridge, is continued in force according to its terms.

### Section 614. Standard Paving Company Grant.

Ordinance No. 5078 granting Standard Paving Company a right-of-way across King Street is continued in force according to its terms.

### Section 615. Texas Company Grants.

Ordinances No. 415 and 504 granting the Texas Company a telephone and telegraph line across West Second Street, West Third Street, West Fourth Street, Peoria Avenue, Frankfort Avenue, Kenosha Avenue, East Sixth Street and Seventh Street, and the alleys in Blocks 90, 104, 120, Original Town of Tulsa, are continued in force according to their terms.

### Section 616. Tulsa Boiler and Machinery Company Grant.

Ordinance No. 5212 granting the Tulsa Boiler and Machinery Company right-of-way across Union Avenue and West Twenty-First Street is continued in force according to its terms.

### Section 617. Tulsa Warehouse and Distributing Company Grant.

Ordinance No. 1833 granting Tulsa Warehouse and Distributing Company an industrial track right-of-way across Cheyenne Avenue between Blocks 61 and 62 of the Original Townsite of Tulsa, is continued in force according to its terms.

### Section 618. Grant to record owners of Lot 1, Block 2, Giddings Resubdivision.

Ordinance No. 9077 granting the record owners of Lot 1, Block 2, Giddings Resubdivision of parts of Sieg and Boston Additions the right to maintain a pier over the storm sewer under the surface of Eighteenth Street opposite the northwest corner of Lot 1, Block 2, of said Giddings Resubdivision, is hereby continued in force according to its terms.

### Section 619. Southwestern Bell Telephone Company Grant.

Ordinance No. 9481 granting Southwestern Bell Telephone Company an easement and right-of-way thirty feet (30') in width and sixty feet (60') in length in Newblock Park in the City of Tulsa, is continued in force according to its terms.

### Section 620. Public Service Company Grants.

Ordinance No. 9346 granting Public Service Company an easement and right-of-way covering a part of Block 131 of the Original Townsite of Tulsa, Oklahoma, is continued in force according to its terms.

Ordinance No. 13985 granting Public Service Company an easement and right-of-way over, under, across and through the following described property situated in the City of Tulsa, Tulsa County, state of Oklahoma, is continued in force according to its terms:

A portion of the Southwest 1/4 of Section 25, Township 20 North, Range 13 East, Tulsa County, Oklahoma, and more particularly described as follows: The East 20 feet of the South 435 feet of the Southwest 1/4, Southeast 1/4, Section 25; Township 20 North; Range 13 East, said tract containing .20 acres more or less.

### Section 621. Grants continued in force only according to their terms.

All ordinances of the City of Tulsa set forth in this chapter and which were in force and effect at the time of the adoption of these Revised Ordinances are continued in full force and effect. Those ordinances named in this chapter which have expired by their own terms shall not be construed to have been re-enacted, nor the rights granted thereunder renewed by the adoption of these Revised Ordinances.

### Section 622. Kentube Company Grant.

Ordinance No. 10090 granting the Kentube Company, its successors and assigns, the right to construct, operate and maintain a spur track in, on, over and across Elwood Avenue south of West 41st Street in the City of Tulsa, Oklahoma, and to extend across Elwood Avenue approximately seven-hundred seventy (770') feet south of the center line of West 41st Street, more particularly shown on the plat thereof on file in the Office of the City Clerk is continued in force according to its terms.

### Section 623. Williams Center Plant, Inc., Grant.

Ordinances No. 13624 and 14955 granting Williams Center Plant, Inc., the right to construct, erect, install, repair, remove, relocate, replace, operate and maintain a system of

pipes, conduits, apparatus and appurtenances for the transportation of chilled water, steam and steam condensate, under a certain designated section of South Boulder and West Second Street in the City of Tulsa, more particularly located by the legal description and plat approved by the Tulsa Director of Public Works filed in the Office of the City Clerk, are continued in force according to their terms.

# CHAPTER 7. THERMAL SYSTEMS, INC. GRANT (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 19945, effective January 1, 2001.

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# CHAPTER 8. TULSA CABLE TELEVISION PERMIT (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 19945, effective January 1, 2001.

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# CHAPTER 9. FIBER OPTIC CABLE SYSTEMS GRANTS (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 19945, effective January 1, 2001.

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# CHAPTER 10. TULSA BASIC CABLE TELEVISION SERVICE RATE REGULATIONS

Section 1000. Short title.
Section 1001. Definitions.
Section 1002. Initial review of basic cable service rates.
Section 1003. Review of request for increase in Basic Cable Service Rates.
Section 1004. Cable operator information.
Section 1005. Automatic rate adjustments.
Section 1006. Enforcement.
Section 1007. Review of annual requests for an adjustment in Basic Cable Service Rates.

## Section 1000. Short title.

This Chapter shall be known and may be cited as the "Tulsa Basic Cable Television Service Rate Regulation Ordinance."

*(Ord. No. 18125)*

## Section 1001. Definitions.

For the purposes of this Chapter, the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future tense, words in plural include the singular and words in the singular include the plural. The word "shall" is always mandatory and not directory.

**A. Basic Cable Service Rates.** Monthly charges for a subscription to the Basic Cable Service Tier, including charges for associated equipment.

**B. Basic Cable Service Tier.** Any category of separately available cable service provided by a Cable Operator to which subscription is required for access to any other tier of service and which includes the retransmission of local television broadcast signals, any public, educational and governmental programming and any additional video programming signals added by a Cable Operator.

**C. Benchmark.** The per Channel rate of charge for cable television service and associated equipment which the FCC has determined to be reasonable.

**D. Cable Act.** The Communications Act of 1934, as amended by the Cable Television Consumer Protection and Competition Act (Public Law No. 102-385, 1992) and as the same may hereafter be amended.

**E. Cable Operator.** Any person or group of persons granted a permit or franchise by the City to construct, operate or maintain a cable television system utilizing public ways within the corporate limits of the City and:

**1.** Who provides cable television service over a cable system and directly, or through one (1) or more affiliates, owns a significant interest in such a cable system; or

**2.** Who otherwise controls or is responsible for, through any arrangement, the management and operation of such a cable television system.

**F. Channel.** A portion of the electromagnetic frequency spectrum which is used as a unit of cable television service identified and selected by a number or similar designation.

**G. City.** The City of Tulsa, Oklahoma, a municipal corporation in its present incorporated form or in any other reorganized or changed form.

**H. Cost-of-Service Showing.** A filing in which a Cable Operator attempts to show that the Benchmark rate or the Price Cap is not sufficient to allow the Cable Operator to fully recover the costs of providing the Basic Cable Service Tier and to continue to attract capital.

**I. Council.** The City Council of the City or any body constituting in the future the legislative body of the City.

**J. FCC.** The Federal Communications Commission or its successor.

**K. Initial Basic Cable Service Rates.** The rates that a Cable Operator is charging for the Basic Cable Service Tier, including charges for associated equipment, in accordance with applicable federal law, at the time the City notifies the Cable Operator of the City's qualification and intent to regulate Basic Cable Service Rates.

**L. Person.** An individual, corporation, partnership, association, joint stock company, trust corporation or governmental entity.

**M. Price Cap.** The ceiling set by the FCC on future increases in Basic Cable Service Rates regulated by the City, based on a formula using the Gross National Product fixed weight price index, reflecting general increases in the cost of doing business and changes in overall inflation.

**N. Reasonable Rate Standard.** Any per Channel rate that is at, or below, the Benchmark or Price Cap level.

*(Ord. No. 18125)*

**Section 1002. Initial review of basic cable service rates.**

**A. Notice.** Upon the effective date of the Ordinance adopting this Chapter and certification of the City by the FCC to regulate Basic Cable Service Rates, the City shall immediately notify any Cable Operator in the City, by certified mail, return receipt requested, that the City intends to regulate Basic Cable Service Rates as authorized by the Cable Act.

**B. Cable operator response.** Within thirty (30) days of receiving notice from the City a Cable Operator shall file with the City its current Basic Cable Service Rates and any supporting material concerning the reasonableness of those rates.

**C. Expedited determination and public hearing.**

**1.** If the City Council is able to determine that the Cable Operator's Basic Cable Service Rates are within the FCC's Reasonable Rate Standard, as determined by the applicable Benchmark, the City Council shall:

**a.** Hold a public hearing at which interested persons may express their views; and

**b.** Act to approve the current Basic Cable Service Rates within thirty (30) days from the date the Cable Operator filed its Basic Cable Service Rates with the City.

**2.** If the City Council takes no action within thirty (30) days from the date the Cable Operator filed its Basic Cable Service Rates with the City, the current rates shall continue in effect.

**D. Extended review period.**

**1.** If the City Council is unable to determine within thirty (30) days from the date the Cable Operator filed its Basic Cable Service Rates with the City whether the Cable Operator's Basic Cable Service Rates are within the FCC's Reasonable Rate Standard based on the material before it, or if the Cable Operator submits a Cost-of-Service Showing, the City Council may, by adoption of a formal resolution, invoke the following additional periods of time, as applicable, to make a final determination:

**a.** Ninety (90) days, if the City Council needs more time to ensure that a rate is within the FCC's Reasonable Rate Standard; or

**b.** One hundred fifty (150) days, if the Cable Operator has submitted a Cost-of-Service Showing seeking to justify a rate above the applicable Benchmark.

**2.** If the City Council has not made a decision within the ninety (90) or one hundred fifty (150) day period, the City Council shall issue a brief written order at the end of the period requesting the Cable Operator to keep accurate account of all amounts received by reason of the rate and on whose behalf the amounts are paid.

**E. Public Hearing.** Before taking action on the current Basic Cable Service Rate, the City Council shall hold at least one (1) public hearing at which interested persons may express their views and record objections.

**F. Objections.** An interested person who wishes to make an objection to the current Basic Cable Service Rate may request the Council Secretary record the objection during the public hearing or may submit the objection in writing anytime before the decision resolution is adopted. In order for an objection to be made part of the record, the objector shall provide the Council Secretary with the objector's name and address.

**G. Benchmark analysis.** If a Cable Operator submits its current Basic Cable Service Rate schedule as being in compliance with the FCC's Reasonable Rate Standard, the City Council shall review the rates using the Benchmark analysis, in accordance with the standard form authorized by the FCC. Based on the City Council's findings, the Initial Basic Cable Service Rates shall be established as follows:

**1.** If the current Basic Cable Service Rates are equal to or below the Benchmark, those rates shall become the Initial Basic Cable Service Rates and the Cable Operator's rates shall be capped at that level.

**2.** If the current Basic Cable Service Rates exceed the Benchmark, the rates shall be the greater of the Cable Operator's per Channel rate on September 30, 1992, reduced by ten percent (10%), or the applicable Benchmark, adjusted for inflation and any change in the number of Channels occurring between September 30, 1992, and the initial date of regulation.

**3.** If the current Basic Cable Service Rates exceed the Benchmark, but the Cable Operator's per Channel rate was below the Benchmark on September 30, 1992, the Initial Basic Cable Service Rate shall be the Benchmark, adjusted for inflation.

**H. Cost-of-service showings.** If a Cable Operator does not wish to reduce the rates to the permitted level, the Cable Operator shall have the opportunity to submit a Cost-of-Service Showing in an attempt to justify an Initial Basic Cable Service Rates above the FCC's Reasonable Rate Standard. The City Council shall review a Cost-of-Service submission pursuant to FCC standards for review. The City Council

may approve Initial Basic Cable Service Rates above the Benchmark if the Cable Operator makes the necessary showing; however, a Cost-of-Service determination resulting in rates below the Benchmark or below the Cable Operator's September 30, 1992, rates minus ten percent (10%), shall prescribe the Cable Operator's new rates.

**I. Decision.**

1. **By formal resolution.** After completion of its review of the Cable Operator's current rates, the City Council shall adopt its decision by formal resolution. The decision shall include one (1) of the following:

   **a.** If the proposal is within the FCC's Reasonable Rate Standard or is justified by a Cost-of-Service analysis, the City Council shall approve the Initial Basic Cable Service Rates proposed by the Cable Operator; or

   **b.** If the proposal is not within the FCC's Reasonable Rate Standard and the Cost-of-Service analysis, if any, does not justify the current rates, the City Council shall establish Initial Basic Cable Service Rates that are within the FCC's Reasonable Rate Standard or that are justified by a Cost-of-Service analysis.

2. **Rollbacks and refunds.** If the City Council determines that the current Basic Cable Service Rates, as submitted, exceed the Reasonable Rate Standard or that the Cable Operator's Cost-of-Service Showing justifies lower rates, the City Council may order the rates reduced in accordance with subsection G. or H. above, as applicable. In addition, the City Council may order the Cable Operator to pay to subscribers refunds of the excessive portion of the rates, with interest (computed at applicable rates published by the Internal Revenue Service for tax refunds and additional tax payments), retroactive to September 1, 1993. The method for paying any refund and the interest rate shall be in accordance with FCC regulations as directed in the City Council's decision resolution.

3. **Statement of reasons for decision and public notice.** If current Basic Cable Service Rates of a Cable Operator are disapproved in whole or in part, or if there were objections made by other parties to the current rates, the resolution shall state the reasons for the decision and the City Council shall give public notice of its decision by publication of the Council's resolution, once, in a newspaper of general circulation within the corporate limits of the City.

**J. Appeal.** The City Council's decision concerning rates for the Basic Cable Service Tier or associated equipment, may be appealed to the FCC in accordance with applicable federal regulations.

*(Ord. No. 18125)*

### Section 1003. Review of request for increase in Basic Cable Service Rates.

**A. Notice.** A Cable Operator in the City who wishes to increase the rates for the Basic Cable Service Tier or associated equipment shall file a request with the City and notify all subscribers at least thirty (30) days before the Cable Operator desires the increase to take effect. This notice may not be given more often than quarterly, to the extent consistent with federal law, and not until at least one (1) year after the determination of the Initial Basic Cable Service Rates.

**B. Expedited determination and public hearing.**

**1.** If the City Council is able to expeditiously determine that the Cable Operator's rate increase request for basic cable service is within the FCC's Reasonable Rate Standard, as determined by the applicable Price Cap, the City Council shall:

**a.** Hold a public hearing at which interested persons may express their views; and

**b.** Act to approve the rate increase within thirty (30) days from the date the Cable Operator filed its request with the City.

**2.** If the City Council takes no action within thirty (30) days from the date the Cable Operator filed its request with the City, the proposed rates shall go into effect.

**C. Extended review period.**

**1.** If the City Council is unable to determine whether the proposed rate increase is within the FCC's Reasonable Rate Standard based on the material before it, or if the Cable Operator submits a Cost-of-Service Showing, the City Council, by adoption of a formal resolution, may invoke the following additional periods of time, as applicable, to make a final determination:

**a.** Ninety (90) days, if the City Council needs more time to ensure that the proposed increase is within the FCC's Reasonable Rate Standard as determined by the applicable Price Cap; and

**b.** One hundred-fifty (150) days, if the Cable Operator has submitted a Cost-of-Service Showing seeking to justify a rate increase above the applicable Price Cap.

**2.** A proposed rate increase shall be tolled during any extended review period.

**3.** If the City Council has not made a decision within the ninety (90) or one hundred fifty (150) day period, the City Council shall issue a brief written order at the end of the period requesting the Cable Operator to keep accurate account of all amounts received by reason of the proposed rate increase and on whose behalf the amounts are paid.

**D. Public hearing.** Before taking action on the proposed rate increase, the City Council shall hold at least one (1) public hearing at which interested persons may express their views and record objections.

**E. Objections.** An interested person who wishes to make an objection to the proposed rate increase may request the Council Secretary to record the objection during the public hearing or may submit the objection in writing anytime before the decision resolution is adopted. In order for an objection to be made part of the record, the objector shall provide the Council Secretary with the objector's name and address.

**F. Delayed determination.** If the City Council is unable to make a final determination concerning a proposed rate increase within the extended time period, the Cable Operator may put the increase into effect, subject to subsequent refund if the City Council later issues a decision disapproving any portion of the increase.

**G. Price Cap analysis.** If a Cable Operator presents its request for a rate increase as being in compliance with the FCC's Price Cap, the City Council shall review the rate

using the Price Cap analysis in accordance with the standard form authorized by the FCC. Based on the City Council's findings, Basic Cable Service Rates shall be established as follows:

**1.** If the proposed Basic Cable Service Rate increase is within the Price Cap established by the FCC, the proposed rates shall become the new Basic Cable Service Rates.

**2.** If the proposed Basic Cable Service Rate increase exceeds the Price Cap established by the FCC, the City Council shall disapprove the proposed rate increase and order a Basic Cable Service Rate that is in compliance with the Price Cap.

**H. Cost-of-service showings.** If a Cable Operator submits a Cost-of-Service Showing in an attempt to justify a rate increase above the Price Cap, the City Council shall review the submission pursuant to the FCC standards for Cost-of-Service review. The City Council may approve a rate increase above the Price Cap if the Cable Operator makes the necessary showing; however, a Cost-of-Service determination resulting in a rate below the Price Cap or below the Cable Operator's then current Basic Cable Service Rate shall prescribe the Cable Operator's new rate.

**I. Decision.** The City Council's decision concerning the proposed rate increase, shall be adopted by formal resolution. If a rate increase proposed by a Cable Operator is disapproved in whole or in part, or if objections were made by other parties to the proposed rate increase, the resolution shall state the reasons for the decision. Objections may be made at the public hearing by a person requesting the Council Secretary record the objection or may be submitted in writing at anytime before the decision resolution is adopted.

**J. Refunds.**

**1.** The City Council may order refunds of subscribers' Basic Cable Service Rate payments, with interest, if:

**a.** The City Council was unable to make a decision within the extended time period as described in subsection C. above; and

**b.** The Cable Operator implemented the rate increase at the end of the extended review period; and

**c.** The City Council determines that the rate increase as submitted exceeds the applicable Price Cap or that the Cable Operator failed to justify the rate increase by a Cost-of-Service Showing, and the City Council disapproves any portion of the rate increase.

**2.** The method for paying any refund and the interest rate shall be in accordance with FCC regulations as directed in the City Council's decision resolution.

**K. Appeal.** The City Council's decision concerning Basic Cable Service Rates may be appealed to the FCC in accordance with applicable federal regulations.

*(Ord. No. 18125)*

### Section 1004. Cable operator information.

**A. City may require.**

**1.** In those cases when a Cable Operator has submitted initial rates or proposed an increase that exceeds the Reasonable Rate Standard, the City Council may require

the Cable Operator to produce information, to the extent consistent with applicable federal law, in addition to that submitted, including proprietary information, if needed to make a rate determination. In these cases, a Cable Operator may request the information be kept confidential in accordance with this Section.

**2.** In cases where initial or proposed rates comply with the Reasonable Rate Standard, the City Council may request additional information only in order to document that the Cable Operator's rates are in accord with the Reasonable Rate Standard.

**B. Request for confidentiality.**

**1.** A Cable Operator submitting information to the City Council may request in writing that the information not be made routinely available for public inspection. A copy of the request shall be attached to and cover all of the information and all copies of the information to which it applies.

**2.** If feasible, the information to which the request applies shall be physically separated from any information to which the request does not apply. If this is not feasible, the portion of the information to which the request applies shall be identified.

**3.** Each request shall contain a statement of the reasons for withholding inspection and a statement of the facts upon which those reasons are based.

**4.** Informal requests which do not comply with the requirements of this subsection, shall not be considered.

**C. City Council action.** Requests which comply with the requirements of Subsection B. shall be acted upon by the City Council. The City Council shall grant the request if the Cable Operator presents, by a preponderance of the evidence, a case for nondisclosure consistent with applicable federal regulations. If the request is granted, the ruling shall be placed in a public file in lieu of the information withheld from public inspection. If the Cable Operator does not establish a case for nondisclosure and the City Council denies the request, the City Council shall take one (1) of the following actions:

**1.** If the information has been submitted voluntarily without any direction from the City, the Cable Operator may request that the City return the information without considering it. Ordinarily, the City will comply with such a request; however, when the public interest so requires, the information shall be made available for public inspection.

**2.** If the information was required to be submitted by the City Council, the information shall be made available for public inspection.

**D. Appeal.** If the City Council denies the request for confidentiality, the Cable Operator may seek review of that decision from the FCC within five (5) working days of the City Council's decision, and the release of the information shall be stayed pending review.

*(Ord. No. 18125)*

**Section 1005. Automatic rate adjustments.**

**A. Annual inflation adjustment.** In accordance with FCC regulations, the Cable Operator may adjust its capped base per Channel rate for the Basic Cable Service Tier annually by the final Gross National Product Price Index.

**B. Other external costs.**

**1.** FCC regulations allow the Cable Operator to increase its Basic Cable Service Rates automatically to reflect certain external cost factors to the extent that the increase in cost of those factors exceeds the Gross National Product Price Index. These factors include retransmission consent fees, programming costs, state and local taxes applicable to the provision of cable television service and costs of permit or franchise requirements. The total cost of an increase in a permit or franchise fee may be automatically added to the permitted per Channel charge for the Basic Cable Service Tier, without regard to its relation to the Gross National Product Price Index.

**2.** For all categories of external costs other than retransmission consent and permit or franchise fees, the starting date for measuring changes in external costs for which the basic service per Channel rate may be adjusted shall be the date on which the Basic Cable Service Tier becomes subject to regulation or February 28, 1994, whichever occurs first. The permitted per channel charge may not be adjusted for costs of retransmission consent fees or changes in those fees incurred before October 6, 1994.

**C. Notification and review.** The Cable Operator shall notify the City at least thirty (30) days in advance of a rate increase based on automatic adjustment items. The City shall review the increase to determine whether the item or items qualify as automatic adjustments. If the City makes no objection within thirty (30) days of receiving notice of the increase, the increase may go into effect.

*(Ord. No. 18125)*

**Section 1006. Enforcement.**

**A. Refunds.** The City may order the Cable Operator to refund to subscribers a portion of previously paid rates under the following circumstances:

**1.** A portion of the previously paid rates have been determined to be in excess of the permitted tier charge or above the actual cost of equipment; or

**2.** The Cable Operator has failed to comply with a valid rate order issued by the City.

**B. Default.** Failure of the Cable Operator to comply with a final rate decision or refund order shall constitute a default under provisions of the permit or franchise of the Cable Operator.

*(Ord. No. 18125)*

**Section 1007. Review of annual requests for an adjustment in Basic Cable Service Rates.**

**A. Selection of the annual rate adjustment method.** A Cable Operator in the City who elects to increase the rates for the Basic Cable Service Tier or associated equipment not more than annually shall notify the City of their proposed annual filing date prior to filing. If the City Council rejects the filing date chosen by a Cable Operator for good cause, the City and the Cable Operator shall negotiate in good faith to reach a mutually acceptable date. If no agreement can be reached, the City Council may set the filing date up to sixty (60) days later than the date chosen by the Cable

Operator. A Cable Operator may elect to change its annual filing date from year-to-year, provided that at least twelve (12) months shall pass before a Cable Operator can implement its next annual adjustment.

**B. Notice.** A Cable Operator in the City who elects to increase the rates for the Basic Cable Service Tier or associated equipment annually shall file a request with the City at least ninety (90) days before the Cable Operator desires the increase to take effect. A Cable Operator may give subscribers notice of its proposed rate changes at the time it files its request with the City; provided such notice states that the proposed changes are subject to approval by the City Council. Regardless, a Cable Operator shall notify all subscribers of any proposed increase at least thirty (30) days before the Cable Operator desires the increase to take effect.

**C. Expedited determination and public hearing.**

**1.** Within ninety (90) days from the date a Cable Operator files its request with the City and before taking action on the requested rate increase, the City Council shall hold at least one public hearing at which interested persons may express their views and record objections.

**2.** An interested person who wishes to make an objection to the proposed rate increase may request the Council Secretary to record the objection during the public hearing or may submit the objection in writing anytime before the decision resolution is adopted. In order for an objection to be made part of the record, the objector shall provide the Council Secretary with the objector's name and address.

**3.** If the City Council is able to expeditiously determine that the Cable Operator's rate increase request for basic cable service is within the FCC's Reasonable Rate Standard, as determined by the applicable Price Cap, the City Council shall act to approve the rate increase within ninety (90) days from the date the Cable Operator filed its request with the City. However, if the City Council or its designee concludes that the Cable Operator submitted a facially incomplete filing, the City Council's deadline for issuing a decision, the date on which rates may go into effect if no decision is issued, and the period for which refunds are payable shall be tolled while the City Council is waiting for the information, provided that, in order to toll the effective dates, the City Council or its designee shall notify the Cable Operator of the incomplete filing within forty-five (45) days of the date the filing is made.

**D. Extended review period.** If the City Council takes no action within ninety (90) days from the date the Cable Operator filed its request with the City, the proposed rates shall go into effect at the end of the review period, subject to a prospective rate reduction and refund, upon the City Council subsequently issuing a decision disapproving such rates. However, in order for such a prospective rate reduction and refund to be valid, if the Cable Operator inquires whether the City intends to issue a rate order after the ninety (90) day review period, the City Council or its designee shall notify the Cable Operator of its intent in this regard within fifteen (15) days of the Cable Operator's inquiry. If the proposed rate goes into effect before the City Council issues a rate order, the City shall have twelve (12) months from the date the Cable Operator filed for the rate adjustment to issue its order. In the event the City Council does not act within the twelve (12) month period, it may not order a refund or a prospective rate reduction with respect to the rate filing.

**E. Price Cap analysis.** If a Cable Operator presents its request for a rate increase as being in compliance with the FCC's Price Cap, the City Council shall review the rate, using the Price Cap analysis in accordance with the standard form authorized by the FCC. Based on the City Council's findings, Basic Cable Service Rates shall be established as follows:

**1.** If the proposed Basic Cable Service Rate increase is within the Price Cap established by the FCC, the proposed rates shall become the new Basic Cable Service Rates.

**2.** If the proposed Basic Cable Service Rate increase exceeds the Price Cap established by the FCC, the City Council shall disapprove the proposed rate increase and order a Basic Cable Service Rate that is in compliance with the Price Cap.

**F. Decision.** The City Council's decision concerning the requested rate increase, shall be adopted by formal resolution. If a rate increase proposed by a Cable Operator is disapproved in whole or in part, or if objections were made by other parties to the proposed rate increase, the resolution shall state the reasons for the decision. If the Cable Operator is only permitted a smaller increase than was provided for in its notice, the Cable Operator must provide an explanation to subscribers on the bill in which the rate adjustment is implemented. If the Cable Operator is not permitted any of the rate increase provided for in its notice, the operator shall provide an explanation to subscribers within sixty (60) days of the date of the City Council's decision. Additional advance notice shall only be required in the event that the rate exceeds the previously noticed rate.

**G. Refunds.**

**1.** The City Council may order refunds of subscribers' Basic Cable Service Rate payments, with interest, if:

**a.** The City Council was unable to make a decision within the original ninety (90) day review period as described in Subsection C., above; and

**b.** The Cable Operator implemented the rate increase at the end of the original ninety (90) day review period; and

**c.** The City Council determines that the rate increase as submitted exceeds the applicable Price Cap and disapproves any portion of the rate increase.

**2.** The method for paying any refund and the interest rate shall be in accordance with FCC regulations as directed in the City Council's decision resolution.

**H. Appeal.** The City Council's decision concerning Basic Cable Service Rates may be appealed to the FCC in accordance with applicable federal regulations.

*(Ord. No. 19187)*

# TITLE 16 GENERAL SERVICES DEPARTMENT (REPEALED)*

*NOTE: This title was repealed by Ordinance No. 19169, effective January 22, 1998.

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# TITLE 17 HEALTH REGULATIONS

**Chapter 1. City-County Health Department**
**Chapter 2. Venereal Diseases**
**Chapter 3. Sanitary Toilets**
**Chapter 4. Food Code**
**Chapter 5. Meat Inspection (Repealed)**
**Chapter 6. Frozen Desserts (Repealed)**
**Chapter 7. Clean Air Code**
**Chapter 8. Miscellaneous Sanitary Regulations**
**Chapter 9. Septic Tanks**
**Chapter 10. Regulation of Privately Operated Domestic Sewage Lagoons**
**Chapter 11. Child Care Facilities**
**Chapter 12. Public Bathing Place Code**
**Chapter 13. Penalty**

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## CHAPTER 1. CITY-COUNTY HEALTH DEPARTMENT

Section 100. City-County Health Department.
Section 101. Operation of City-County Health Department.
Section 102. Board meetings—Powers.
Section 103. Environmental Advisory Council.
Section 104. Health Officers defined—Powers—Duties.
Section 105. Health enforcement.
Section 106. Nuisances.
Section 107. Obstructing health officers.
Section 108. Definitions.

### Section 100. City-County Health Department.

The City-County Health Department, as authorized by Oklahoma statutes, shall consist of a City-County Board of Health, a Director of the City-County Health Department and such employees as shall be appointed in the Department.

### Section 101. Operation of City-County Health Department.

The City-County Health Department shall be operated in accordance with the rules, regulations, policies, stipulations and agreements contained in the various agreements entered into by the City of Tulsa and the County of Tulsa under the dates of February 6, 1950, May 26, 1952, October 24, 1955, December 19, 1961, and January 20, 1970, copies of which are on file in the office of the City Clerk.

### Section 102. Board meetings—Powers.

The Board of Health ("Board") shall meet at regular monthly intervals and at such other times as the Board deems necessary. It shall act in an advisory capacity to the Director of Health. It shall determine with the Director of Health the general policies of the Department and shall have the power to promulgate regulations to safeguard and promote the health of the City which are not in conflict with the state laws, the City Charter or the Revised Ordinances of the City of Tulsa.

### Section 103. Environmental Advisory Council.

There is hereby created an Environmental Advisory Council ("Council") to act in an advisory capacity to the Board in the development, formulation, alteration and administration of ordinances and resolutions for the control and abatement of environmental pollution. All members shall serve without compensation.

**A.** The Council shall consist of eight (8) members, all of whom shall be appointed by the Board as follows: Two (2) members knowledgeable in the field of environmental matters to be selected at large from industry; four (4) members knowledgeable in the field of environmental matters to be selected from the public at large with due consideration to be given to an individual with a background in medicine, law, planning, agriculture, ecology, biology, engineering or other environmentally related field; two (2) members to be selected from the public at large.

**B.** The appointed members of the Council shall serve two-year terms of office, but all members shall hold office until their successors are appointed.

**C.** The Council shall select annually a Chairman from among its members. The Council shall hold at least four (4) regular meetings each year and such additional meetings as the Chairman deems desirable. Special meetings shall be called by the Chairman upon written request by the Director. Four (4) members of the Council shall constitute a quorum.

### Section 104. Health Officers defined—Powers—Duties.

The words "Health Officer" or "Director of Health" as used in this title shall mean the Director of the City-County Health Department.

The Director of Health shall be the executive head of the Health Department. He shall have the administrative duties of the Department and shall have full power in the matter of selecting and discharging subordinate personnel in accordance with the Department Personnel Rules and Regulations. He shall have the power, with the consent of the Board of Health, the Personnel Board and the City of Tulsa Civil Service Commission, to establish qualifications for the various positions in the Health Department in keeping with those recommended by the State Department of Health. He and his assistants shall have the authority of police officers in the enforcement of the health codes and regulations.

It shall be the duty of the Director of Health to keep informed to the extent possible of the appearance of any potential pestilential, infectious or contagious disease at any place within the City of Tulsa or within five (5) miles thereof which may endanger the sanitary condition and the health of the inhabitants of the City of Tulsa and to take whatever action he may deem advisable for the prevention and removal of same. He shall declare a quarantine against any infected place and prescribe rules and regulations for the conduct of the quarantine not inconsistent with the laws of the state of Oklahoma and the City of Tulsa. He shall keep reports of births, deaths, disease and nuisances, as prescribed by the state laws.

### Section 105. Health enforcement.

The Director of Health, or any person acting under his orders, shall have the authority, with warrant where necessary, to enter into and examine at any and all times all buildings, lots and places of all descriptions within the City for the purpose of ascertaining the sanitary condition thereof. He shall have the power, jurisdiction and authority to give directions and adopt such measures for cleansing and purifying such buildings, lots and places which in his opinion shall be necessary in the interest of public health. He shall have the power to order the owner or occupant of any private premises, at the expense of the owner or occupant, to remove any nuisance, source of filth or cause of sickness found therein within twenty-four (24) hours or such time as may be reasonable; and the neglect, failure or refusal to do so by such person shall constitute an offense and each day thereof shall constitute a separate offense.

### Section 106. Nuisances.

The Board of Health or Director of Health shall proceed to abate any health nuisance existing under the laws of the state of Oklahoma or under the Revised Ordinances of the City of Tulsa in the manner specified by law for the abatement of such nuisances.

### Section 107. Obstructing health officers.

It shall be unlawful and an offense for any person to willfully obstruct or interfere with the Director of Health or his assistants in the enforcement of any health laws or rules.

## Section 108. Definitions.

**Shall.** The term "shall," as used in this title, expresses that which is mandatory.
*(Ord. No. 12608)*

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## CHAPTER 2. VENEREAL DISEASES

Section 200. Diseases named.
Section 201. Doctors' and laboratory reports.
Section 202. Treatment required.
Section 203. Reports confidential.
Section 204. Prevention measures.
Section 205. Investigations.
Section 206. Special duties of Director.
Section 207. Quarantine.
Section 208. Exposure.
Section 209. Police duties.
Section 210. Arrested suspects.

### Section 200. Diseases named.

Syphilis, gonococcus infection and chancroid, granuloma inguinale and lymphogranuloma venereum are hereby and hereinafter recognized and declared to be contagious and infectious, communicable and dangerous to the public health. The term "venereal disease" as used in this chapter shall include all such diseases.

### Section 201. Doctors' and laboratory reports.

Each and every physician, laboratory, facility or other practitioner of the healing arts practicing in the City of Tulsa or any superintendent or manager of a hospital, dispensary or laboratory who treats or examines any person or persons, or performs any test or procedures which indicates the presence of, or suspicion of the presence of any venereal disease in any stage or manifestation shall report such positive tests or procedures to the Director of Health. Such reports shall be made in such form and manner as determined by the Director of Health.

### Section 202. Treatment required.

It shall be unlawful for any person afflicted with any venereal disease to knowingly refuse, fail or neglect to report such fact to and submit to examination and treatment by some reputable physician.

### Section 203. Reports confidential.

All information and reports concerning persons infected with venereal diseases shall be confidential and shall be inaccessible to the public, except insofar as publicity may attend the performance of the duty imposed upon the Director of Health by this chapter or any other regulations hereafter promulgated and put into effect or by the rules of the state of Oklahoma; provided that statistics may be published without giving names.

### Section 204. Prevention measures.

Upon receipt of a report of a case of venereal disease, it shall be the duty of the Director of Health to institute such measures for the protection of other persons from infection by such venereally diseased persons as the Director is already empowered to use to prevent the spread of other contagious, infectious or communicable diseases.

### Section 205. Investigations.

In all suspected cases of venereal diseases in the infectious stages, the Director of Health shall immediately use every available means to determine whether the person or persons suspected of being infected are suffering from such diseases, or any of them, and wherever such diseases are found to exist, the Director of Health shall whenever possible ascertain the sources of the infection. In such investigation, the Director of Health is vested with full powers of inspection, examination, isolation and disinfection of all persons, places and things as provided herein.

### Section 206. Special duties of Director.

The Director of Health ("Director") is directed and empowered to perform the duties enumerated herein.

**A. Examinations.** The Director shall make examinations of persons reasonably suspected of having syphilis in the infectious stages, or gonococcus infection. Because of the prevalence of such diseases among prostitutes, their associations may be within the class of persons reasonably suspected.

**B. Isolation.** The Director shall isolate persons infected with any such diseases whenever isolation is necessary to protect the public health. In establishing isolation, the Director of Health shall define the limits of the area in which the persons reasonably suspected or known to have syphilis or gonococcus infection and his or her immediate attendants are to be isolated; and no person, other than the attending physician, shall enter or leave the area of isolation without the permission of the Director of Health.

**C. Examination of women.** In making examinations and inspections of women for the purpose of ascertaining the existence of syphilis or gonococcus infection, the Director shall appoint a woman physician for the purpose if the service of a woman physician is requested or demanded by the person examined.

**D. Quarantine.** In case of quarantine or isolation, the Director shall not terminate the quarantine until the cases have become noninfectious.

**E. Smears taken.** Cases of gonococcus infection are to be regarded as infectious until at least two (2) successive smears, taken not less than forty-eight (48) hours apart, fail to show gonococci.

**F. Confidential reports.** The Director shall keep all reports of such inspections and examinations from public inspection and make every reasonable effort to keep secret the identity of those affected by venereal diseases.

### Section 207. Quarantine.

Whenever it is necessary for the protection of the public health that the persons infected with venereal diseases be quarantined, the Director of Health shall quarantine such diseased person in a detention hospital or other suitable place, and cause to be administered to such person a proper course of treatment.

### Section 208. Exposure.

No person suffering from or infected with the communicable form of a venereal disease shall engage in any occupation involving intimate contact with children, or in the occupation of a nurse, domestic servant, barber, hair-dresser, chiropodist, manicurist, bath attendant, masseur or foot handler.

### Section 209. Police duties.

It shall be the duty of the Chief of Police of the City of Tulsa and all peace officers to apprehend all persons coming within the provisions of this chapter and to aid and assist in every way possible the Director of Health in enforcing each and every provision contained in this chapter.

### Section 210. Arrested suspects.

It shall be the duty of the Chief of Police and police officers of the City of Tulsa, whenever a person is arrested and charged with adultery, lewd conduct or occupying a room for immoral purposes, if they believe that the person is infected with one of the above-named venereal diseases, to immediately report the same to the Director of Health.

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## CHAPTER 3. SANITARY TOILETS

Section 300. Definitions.
Section 301. Disposal of excreta.
Section 302. Privies unlawful.
Section 303. Privies—A nuisance.
Section 304. Sanitary pit privies.
Section 305. Temporary privies—Construction work.

### Section 300. Definitions.

**A. Human excreta** shall mean the bowel and kidney discharges of human beings.

**B. Sanitary water closet** shall mean the flush-type toilet which is connected to a sewer line of sufficient capacity and so constructed as to carry away the contents at all times.

**C. Composting toilet** shall mean a toilet that treats human excreta by composting, a biological process utilizing oxygen, heat and moisture, which leads to the decomposition of organic matter and turns human excreta into compost.

**D. Sanitary pit privy** shall mean a privy which is built, rebuilt or constructed so as to conform to the specifications approved by the State Department of Health and does not include septic tanks.

*(Ord. No. 24169, § 2, 7-10-2019)*

### Section 301. Disposal of excreta.

It shall be unlawful for any person to dispose of human excreta or to permit the disposal of human excreta on property under his control, except in a sanitary water closet or closets, septic tanks or sanitary privy or privies, or a composting toilet or toilets of sufficient capacity to accommodate the occupants thereof at all times. A composting toilet shall only be installed and used as part of an approved and permitted Net-Zero Water Project as authorized by Chapter 15 of Title 11-C of the Revised Ordinances of the City of Tulsa. The compost/waste remaining after the composting process is complete shall be disposed of at a solid waste disposal facility permitted by the Oklahoma Department of Environmental Quality, or its successor agency.

*(Ord. No. 24169, § 2, 7-10-2019)*

### Section 302. Privies unlawful.

It is unlawful and a nuisance for any person in possession or control of any premises within the corporate limits of the City to construct or maintain thereon any privy, privy vault or dry closet if such property now or hereafter abuts on any lateral sewer or if such property is located in any sewer district already or hereafter established or is within two hundred fifty (250) feet of any public, district or lateral sanitary sewer line. It shall be the duty of every property owner who owns property abutting to or along the sewer lines to connect or cause to be connected his or their toilet or toilets with the sanitary sewer of the City and to make each and every connection so that each and all toilets are properly connected with such sewer system in such a manner that the refuse therefrom will be delivered to the sanitary sewer, except for toilet(s) installed and used as part of an approved and permitted net-zero water project as authorized by Chapter 15 of Title 11-C of the Revised Ordinances of the City of Tulsa.

*(Ord. No. 24169, § 2, 7-10-2019)*

### Section 303. Privies - a nuisance.

All privies on any premises within the corporate limits of the City of Tulsa not located, constructed or maintained in conformity with the provisions of this chapter are hereby declared to be a nuisance and a menace to public health and shall be abated in the manner provided for abatement of nuisances.

### Section 304. Sanitary pit privies.

Wherever it is necessary for any person residing on any lot or premises in the City of Tulsa which is not located within two hundred fifty (250) feet of any sanitary sewer to have privies or closets not connected with the sanitary sewer, such person shall construct and maintain sanitary pit privies in accordance with the following rules:

**A.** The privy shall be completely boarded up at the rear and all sides except the doorway;

**B.** No sanitary pit privy shall be located within twenty (20) feet of any residence nor shall it be located within two (2) feet of any abutting property, either public or private;

**C.** All sanitary pit privies shall be kept clean at all times; the cover of the seat of the privies shall be kept closed at all times when the privy is not being used; no wash water, kitchen slop or anything other than human excreta and toilet paper shall be emptied in the privy; provided, however, that in addition to these requirements all sanitary pit privies shall conform to the specifications approved by the State Health Department; and

**D.** The maintenance of any sanitary pit privy which does not comply with the provisions of this chapter shall constitute a misdemeanor and a violation of this chapter.

### Section 305. Temporary privies - construction work.

All employers of workmen engaged in construction operations shall provide on-site toilet facilities for the workmen, which facilities shall be weather tight and shall be maintained in a sanitary condition, completely fly proof and odorless, with a tight-fitting door on the toilet seat and a screened vent. Such facilities shall, in addition, consist of a water-flushed toilet, a temporary chemical toilet, or a sanitary pit-type privy approved by the Tulsa City-County Health Department as to the manner of construction and operation. If a pit-type privy is provided, the waste matter in the pit shall be covered with at least eighteen (18) inches of earth at the time the privy is moved.

## CHAPTER 4. FOOD CODE

Section 400. Food Code adopted.
Section 401. Addendum to Food Code; City-County—Specific licensing, permitting, compliance and enforcement requirements.

### Section 400. Food Code adopted.

A certain document, three (3) copies of which are on file in the office of the City Clerk, being marked and designated as Title 310, Oklahoma State Department of Health, Chapter 257, Food Service Establishments (OAC 310:257), as published in the Oklahoma Administrative Code (OAC) and as amended, revised and supplemented by the Tulsa City-County Health Department (TCCHD) is hereby adopted by the City of Tulsa, Oklahoma, to set standards for the management of food personnel, operations, equipment and facilities in the City of Tulsa. Each and all of the terms, conditions, regulations and provisions of OAC 310:257 published by the Oklahoma State Department of Health, as amended, on file in the office of the City Clerk of the City of Tulsa are hereby referred to, adopted and made a part of the Tulsa Revised Ordinances, as if fully set out in this Chapter, with its amendments, as prescribed in Section 401 of this Chapter and, as used in this Chapter, may be referred to as the "Food Code".

*(Ord. Nos. 18138, 20145; Ord. No. 22675, § 1, 4-12-2012)*

### Section 401. Addendum to Food Code; City-County—Specific licensing, permitting, compliance and enforcement requirements.

This section enacts as an addendum to Oklahoma Administrative Code, Title 310, Oklahoma State Department of Health, Chapter 257, Food Service Establishments (OAC 310:257), the following provisions which were adopted by the Tulsa City-County Health Department and are hereby incorporated into the Food Code of the City of Tulsa:

**A. Definitions.** The following words and terms, when used in this Chapter, shall have the following meaning, unless the context clearly indicates otherwise:

**1.** Code shall mean 310:257 of the Food Service Establishment Regulations of the Oklahoma State Department of Health.

**2.** Department shall mean the duly-appointed representative of the Tulsa City-County Health Department.

**3.** Director shall mean the Director of the Tulsa City-County Health Department or the Director's designated representative.

**4.** Chief Operating Officer hereinafter shall mean the Chief Operating Officer of the Tulsa City-County Health Department or such person's designated representative.

**B. Establishment licenses.** Food Service Establishments, as defined in 310:257-1-1 of the Code, operating in the City shall not operate without valid City and State food establishment licenses. It shall be unlawful and a misdemeanor offense for any person to operate a food service establishment in the City without a valid City and State food establishment license.

**1. License requirements:**

**a.** City license requirements are outlined in Subsections 401.B.1 through 401.B.7 of this section.

**b.** State license requirements are outlined in Section 310:257-15-12, 13, & 14 of the Food Service Establishment Regulations of the Oklahoma State Department of Health.

**2. Affidavit required.** At the time of application to the Department, an individual owner of a food service establishment must submit an affidavit stating legal status in the country.

**3. Issuance of license.** The City shall issue a food establishment license when:

**a.** Applicant submits Department original and unaltered application for the license, and

**b.** Pays applicable fee as provided in Subsections 401.B.5 or 401.B.7 of this section.

**4. Effective dates and renewal of City Food License.**

**a.** The food establishment license shall expire on the last day of June each year except for seasonal food service establishments as provided for in Subsection 401.B.4.c of this section.

**b.** Renewal applications shall be presented by the Department on or before the first day of July each year except for seasonal food service establishments provided for in Subsection 401.B.4.c of this section. Applicant must meet requirements in Subsection 401.B.3 of this section.

**c.** The license for seasonal food service establishments shall expire one hundred eighty (180) days from the date of its issuance per year unless canceled or revoked prior to its expiration.

**5. City Food License Fees.**

**a.** A processing fee of Five Dollars ($5.00) shall be collected for the initial application only. No processing fee shall be collected for renewal of any license.

**b.** The full and non-prorated fee for food service establishment licenses, including food processing plants, is One Hundred Fifty-Five Dollars ($155.00).

**c.** The prorated license fee shall be one-half (½) of the amount set out above if application is made during the period between January first and June thirtieth; otherwise the full and non-prorated fee shall be made. Seasonal food service establishment license fees shall not be prorated.

**d.** Fees paid directly to and collected by the Tulsa City-County Health Department shall be retained by the Tulsa City-County Health Department. All fees relating to food establishments that are paid directly to the City shall have seventy percent (70%) of said fee remitted to the Tulsa City-County Health Department.

**e.** Penalty fees shall be assessed as follows:

(1) **New Establishments.** If an application is not presented to the City and license fee paid within thirty (30) days after application is issued by the Department, a penalty of fifty percent (50%) of the fee shall be paid in addition to the license fee.

(2) **Existing establishments.** If a renewal application is presented to the City and the license fee is paid after the first day of August, a penalty of fifty percent (50%) of the fee shall be paid in addition to the license fee.

**6.** The following establishments shall be fee exempt:

**a.** Schools with food operations run by school staff. Private companies operating food service establishments within a school must pay the license fee.

**b.** Religious and charitable organizations with food operations run by volunteer staff.

**c.** Non-profit concession stands operating seasonally with volunteer staff.

**7.** The Department shall collect fees and issue the license for the following food service operations as outlined.

**a.** Water and ice vending machines that meet applicable requirements of this Code:

(1) Shall be charged an application, inspection and license fee of Twenty-five Dollars ($25.00) per each machine per year.

(2) Shall expire on the last day of June each year after which license holder must make application and pay fee in Subsection 401.B.7.a.1 above for a renewal license.

(3) The prorated license fee shall be one-half (½) of the amount set out above if application is made during the period between January first and June thirtieth; otherwise the full and non-prorated fee shall be made.

(4) Penalty fees shall apply under Subsection 401.B.5.e of this section except the Department shall collect fees and issue license.

**b.** Temporary food establishments:

(1) Shall be charged an application, inspection and license fee of Twenty-Five Dollars ($25.00) plus Five Dollars ($5.00) per each day in excess of three (3) days.

(2) Shall expire at the end of the event, grand opening, fair, etc. for which it was issued, unless canceled or revoked prior to its expiration.

## C. Certified Food Protection Manager.

### 1. Required.

**a.** Except as provided in Subsection 401.C.6 of this section, it shall be unlawful and a misdemeanor offense for any person owning, operating, or managing any food establishment within the City to fail to employ at least one (1) certified food protection manager.

(1) Such person shall be in a supervisory position at said establishment and have a valid and current certificate, which satisfies the requirements of Subsection 401.C.2 of this section.

(2) The certified manager must be an active employee of the licensed establishment who is present a majority of the operating hours and who has the responsibility of directly observing, supervising, and training food establishment personnel in proper food and equipment handling, sanitation, and personal hygiene.

(3) In the event the certified manager is temporarily absent, the person in charge shall conform to Section 310:257-3-2 of the Code.

**b.** The Department may require additional certified managers in sufficient numbers to ensure all food preparation and service is performed under the direction of certified supervisory personnel. It shall be unlawful and a misdemeanor offense for any person owning, operating, or managing a food establishment to allow the food establishment to be operated with less than the required number of certified managers.

**c.** Whenever the person holding the Food Protection Manager Certification terminates employment or is terminated or transferred to another food establishment, the person owning, operating, or managing the food establishment shall be allowed thirty (30) days from the date of termination or transfer of the certificate holder to comply with Subsection 401.C.1.a of this section. The Department may grant an extension of time in the event instruction and testing is not available within the thirty (30) day period.

**2. Issuance, Expiration and Renewal.**

**a.** The Department shall issue a Food Protection Manager Certificate when the applicant:

(1) Provides documentation of successfully passing an accredited test,

(2) Submits an affidavit stating legal status in the country, and

(3) Pays the applicable certification fee at the time application is made.

**b.** The certification expiration date shall match the expiration date on the ANSI-accredited certification; after which the certification must be renewed.

**c.** Renewal requirements shall not be in excess of the initial certification outlined in Subsection 401.C.2.a of this section.

**3. Certification Fees.**

**a.** The fee for obtaining a Food Protection Manager Certificate from the Department shall be Twenty-five Dollars ($25.00), and the fee is non-refundable.

**b.** The same fee of Twenty-five Dollars ($25.00) will apply for all renewals of the certificate.

**c.** The fee for obtaining a duplicate of a non-expired and non-revoked Food Protection Manager Certificate shall be Five Dollars ($5.00).

**4. Proof of Certification.** Each certified food protection manager shall display the certificate in a prominent location in the establishment.

**5. Certification Non-Transferable.** A Food Protection Manager Certificate is not transferable from one (1) person to another person. A certified manager may not act in said capacity in more than one (1) establishment or location at the same time. Unofficial copies of the certificate are not recognized by the Department.

**6. Exemption from Requirements:**

**a.** Food establishments that serve, sell, or distribute only prepackaged food.

**b.** Food establishments that do not serve, sell, or distribute foods that are Time/Temperature Control for Safety (TCS) foods.

**c.** Temporary food establishments, special facilities, and/or events.

**D. Food Employee Permits.**

**1. Permit Required.**

**a.** It shall be unlawful and a misdemeanor offense for any person to operate a food service establishment in the City to employ staff to serve food, prepare food, or handle food utensils without ensuring that they possess a current and unrevoked permit issued by the Department.

**b.** It shall be unlawful and a misdemeanor offense for any person to serve, prepare food, or handle food utensils in a food service establishment, who cannot immediately exhibit a current and unrevoked permit issued by the Department.

**c.** Exemptions from requirements. Food service establishments and employees of food service establishments outlined below are exempt from this requirement:

(1) Food establishments that serve, sell, or distribute only prepackaged food.

(2) Temporary food establishments, special facilities, and/or events.

**d.** Affidavit Required. At the time of application to the Department, applicant for permits in Subsection 401.D.3 of this section must submit an affidavit stating legal status in the country.

**2. Permit Fees.**

**a.** The fee for obtaining a permit from the Department outlined in Subsection 401.D.3.a., b., c., or d. of this section shall be Twenty Dollars ($20.00).

**b.** The same fee of Twenty Dollars ($20.00) will apply for all renewals of the permit.

**c.** The fee for obtaining a duplicate of a non-expired and non-revoked permit shall be Five Dollars ($5.00).

**3. Permit Types and Requirements.**

**a. Food Employee Permit:**

(1) Is issued by the Department when applicant attends a training course regarding the practice of sanitary food preparation, food service, and personal hygiene, and passes course test.

(2) Applicant must pay the permit fee in Subsection 401.D.2.a of this section at the time application is made.

(3) Applicant may waive the training course in Subsection 401.D.3.a(1) of this section and demonstrate knowledge by passing a Department test.

(4) Allows the permit holder work in licensed food service establishment with unpackaged food, food equipment or utensils, or food-contact surfaces. This permit may also be used to satisfy the requirements of any of the permit types outlined in Subsection 401.D.3.b through Subsection 401.D.3.f of this section.

**b. Temporary Food Employee Permit:**

(1) Is issued by the Department when the applicant pays fee in Subsection 401.D.2.a of this section.

(2) Allows the permit holder to work only temporarily in a food service establishment.

**c. Food Service Support Staff Permit:**

(1) Is issued by the Department when an applicant attends a course of instruction outlined in Subsection 401.D.3.a(1) of this section, but does not pass the course test.

(2) Applicant must pay fee outlined in Subsection 401.D.2.a of this section at the time application is made.

(3) Allows the permit holder to work in a licensed food service establishment with the following restrictions:

(a) Food Service Support Staff may work only under the direct supervision of a certified manager or a job coach, and

(b) Only in food activities that do not pose a potential health threat.

**d. Manufacturing Worker Permit:**

(1) Is issued by the Department when the applicant attends approved training that is provided by a licensed manufacturing facility regarding the type of food processing duties performed in the facility and passes Department test.

(2) Applicant must pay fee required in Subsection 401.D.2.a of this section.

(3) Allows the permit holder to work only in the facility where they successfully completed the training.

**e. Community Service Worker Permit:**

(1) Is issued by the Department when the applicant attends a course of instruction and passes the test as outlined as in Subsection 401.D.3.a(1) of this section.

(2) Applicant is not required to pay a fee for the training or permit.

(3) Allows permit holder to volunteer work for a licensed non-profit organization having year-round full-service food preparation.

**f. Seasonal Volunteer Permit:**

(1) Is issued when an applicant attends a one-hour course of instruction provided by the Department.

(2) Applicant is not required to pay a fee for the training or permit.

(3) Allows permit holder to volunteer at non-profit seasonally-operated establishments (such as sports and school concession stands, religious organizations, school home room, etc.) that have limited food preparation.

**4. Permits Non-Transferable and Fee Non-Refundable.** Any permit issued as outlined in Subsection 401.D.3 of this section is not transferable from one (1) person to another person. Any fee paid to attend the course of instruction taught by the Department is nonrefundable. Unofficial copies of permits are not recognized by the Department.

**5. Expiration and Renewal.**

**a.** Permits in Subsection 401.D.3 of this section shall expire three (3) years from date of issuance by the Department, except:

(1) Temporary Food Employee Permit shall expire one (1) week from the date of issuance or the next available date of a course of instruction or testing date. Expiration date will be on the permit.

(2) Seasonal Volunteer Permit shall expire one (1) year from the date of issuance.

**b.** Permits in Subsection 401.D.3 of this section are not renewable. After expiration of permit, holder must meet requirements in one (1) of the items in Subsection 401.D.3 of this section, except:

Only one (1) Temporary Food Employee Permit may be issued to an applicant, after which they must complete the requirements in Subsection 401.D.3.a of this section before working in a licensed food service establishment.

**E. Tulsa Food Advisory Council.**

**1. Creation of Advisory Council.** There is hereby created the Tulsa Food Advisory Council (within this section referred to as "Council") to assist the Tulsa City-County Board of Health in the following: Code Revisions, clarifications and interpretations of the Code, liaison between the food industry, the Department and the consumer.

**a.** The Council shall consist of fifteen (15) members appointed by the Director and approved by the Board of Health. Membership shall include representation from the following three (3) categories:

(1) Five (5) members widely representative of the food industry with due consideration being given to experience and position.

(2) Five (5) members with professional training in health matters; e.g. Pharmacists, veterinarians, dentists, bacteriologists, physicians, nurses.

(3) Five (5) members representing other consumers with due consideration being given to architects, engineers, lawyers and consumers at large.

**b.** The Council members shall be appointed to serve a one (1) year term of office, but all members shall hold office until their successor is qualified and appointed.

**c.** The Council shall elect annually a Chairperson from among its members. The Council shall hold at least one (1) meeting annually and such additional meetings as the Chairperson or the Director shall deem desirable.

**2.** The Council shall develop rules, subject to approval by the Board of Health, relating to matters which shall be considered by the Council and procedures for submission of such items to the Council.

**F. License Suspension and Revocation.** The Department may summarily suspend, permanently revoke, or temporarily suspend a license, permit, or certification for failure of the holder to comply with the requirements of the Code:

**1. Summary Suspension.**

**a.** Notwithstanding other provisions of the Code, if an authorized representative of the Department finds insanitary or other conditions in the operation of a food establishment, which constitute an imminent hazard to the public health (as defined in 310:257-1-2 under "Imminent health hazard"), the establishment may be closed summarily without prior notice or hearing.

**b.** If an imminent hazard to the public health is found to exist, the Department shall summarily suspend food operations by issuing a written notice to the license, permit or certificate holder or operator stating specifically the following:

(1) The conditions which cause the imminent hazard to the public health;

(2) The corrective action that must be taken to abate the hazard;

(3) The period of time within which corrective action must be taken;

(4) That the license, permit or certification holder has the right to:

(a) Request in writing a re-inspection within twenty-four (24) hours, and if the reasons for the suspension no longer exist, request immediate reinstatement of the license or permit, and to have the name, address and telephone number for the license, permit or certification holder to contact to initiate a request for re-inspection, or

(b) Request in writing a hearing within twenty-four (24) hours before the Director of the Department to determine if the summary suspension was warranted. The written request shall be mailed or hand delivered to: Director, Tulsa City-County Health Department, 5051 South 129th East Avenue, Tulsa, Oklahoma 74134.

(c) Hearings with the Director will be held within five (5) business days after receiving the written request.

**2. Revocation and Temporary Suspension.**

**a.** For serious or repented violations of any of the requirements of the Code, or for willfully obstructing the Department in the performance of duties, a license, permit or certificate may be revoked permanently or temporarily suspended after opportunity for a hearing.

**b.** The Department shall serve upon the license, permit or certificate holder or operator written notice stating specifically:

(1) That the license, permit or certificate will be either (1) revoked entirely, or (2) temporarily suspended for a specified number of days.

(2) The reasons for which the license, permit or certificate will be revoked or temporarily suspended.

(3) That the license, permit or certification holder has the right to:

(a) Request in writing a hearing within ten (10) days before the Director of the Department to determine if the revocation or temporary suspension was warranted. The written request shall be mailed or hand delivered to: Director, Tulsa City-County Health Department, 5051 South 129th East Avenue, Tulsa, Oklahoma 74134.

(b) Hearings with the Director will be held within five (5) business days after receiving the written request.

**c.** A notice is properly served when it is delivered to the license, permit or certificate holder, or to the person in charge of the food establishment, or if

such personal service cannot reasonably be made, when it is sent certified mail, return receipt requested, to the last known address of the license, permit or certificate holder.

**G. Appeal Procedures (Civil or Administrative Appeals only).**

**1. Appeal to the Tulsa Food Advisory Council.**

**a.** Any person alleging there is error in any order, requirement, decision, or determination made by the Department in the enforcement of this Code, or any person aggrieved by the final determination of the Director may appeal such decision to the Tulsa Food Advisory Council within ten (10) days of receiving the Director's decision.

**b.** The appeal shall be in writing and shall specify the reasons for the appeal, and shall be mailed or hand delivered to: Legal Counsel, Tulsa City-County Health Department, 5051 South 129th East Avenue, Tulsa, Oklahoma 74134.

(1) The Legal Counsel shall forward the request for appeal along with all documentation from the initial action of the Department and the hearing with the Director to the Tulsa Food Advisory Council.

(2) The Tulsa Food Advisory Council shall appoint a three (3) person Hearing Panel which shall consist of one (1) member of the Tulsa City-County Board of Health and two (2) members from the Tulsa Food Advisory Council.

(3) The Hearing Panel shall hold a hearing and may reverse, affirm or modify the action of the Department. The decisions of the Hearing Panel are deemed to be those of the Tulsa Food Advisory Council.

**c.** This appellate procedure shall not apply to any violation for which a criminal citation has been issued.

**2. Appeal to the City Council.**

**a.** The Department or any aggrieved party may appeal the decision of the Hearing Panel of the Tulsa Food Advisory Council to the City Council.

**b.** An appeal to the City Council shall be taken by filing with the City and with the Chairperson of the Tulsa Food Advisory Council within ten (10) days from the date of such action, a notice of appeal, which notice shall specify the grounds of such appeal. Upon filing of the notice of appeal, the Tulsa Food Advisory Council shall forthwith transmit to the City copies of all the papers constituting the record in the case, together with the order, decision or ruling of the Tulsa Food Advisory Council Hearing Panel.

**c.** The City Council shall hold a hearing and may reverse, affirm or modify the decision or determination of the Tulsa Food Advisory Council Hearing Panel.

**d.** An appeal stays all proceedings in furtherance of the action appealed from, unless the Department certifies that by reason of facts stated in the certificate, a stay would cause an imminent hazard to the public health. In such case, proceedings shall not be stayed other than by a restraining order.

**H. Criminal Penalty.** Unless otherwise provided herein, any person violating any provision of this chapter shall be guilty of a misdemeanor and upon conviction shall be

punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, and/or by imprisonment in the City Jail for not more than six (6) months.

*(Ord. Nos. 18138, 20145; Ord. No. 22675, § 2, 4-12-2012; Ord. No. 23872, §§ 1, 2, 2-28-2018; Ord. No. 24267, §§ 1—5, 12-4-19)*

# CHAPTER 5. MEAT INSPECTION (REPEALED)*

*__Editor's note—__Ord. No. 22675, § 3, adopted April 12, 2012, repealed Ch. 5, §§ 500—518, which pertained to meat inspection. See also the Code Comparative Table and Disposition List.

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# CHAPTER 6. FROZEN DESSERTS (REPEALED)*

*__Editor's note—__Ord. No. 22675, § 3, adopted April 12, 2012, repealed Ch. 6, §§ 600—613, which pertained to frozen desserts. See also the Code Comparative Table and Disposition List.

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## CHAPTER 7. CLEAN AIR CODE

Section 700. Definitions.
Section 701. Zoning and planning.
Section 702. Building permits.
Section 703. Nuisance.
Section 704. Listing of devices and equipment.
Section 705. Inspection.
Section 706. Rules and regulations.
Section 707. Control of open burning.
Section 708. Incinerators.
Section 709. Control of visible emissions.
Section 710. Control of particulate emissions from specific activities.
Section 711. Malfunction of equipment and emergency conditions.
Section 712. Permit to construct and operate required.
Section 713. Control of fugitive dust.
Section 714. Control of emissions of organic material.
Section 715. Control of air pollution from sulfur compounds.
Section 716. Continuous monitoring of emissions, recording and reporting.
Section 717. Sampling, testing and reporting.
Section 718. Right of review and exceptions.
Section 719. Variances.
Section 720. Penalties.
Section 721. Limitations.

### Section 700. Definitions.

For the purpose of this chapter, the following terms, phrases and words have the meanings given herein.

**A. Agricultural wastes** means the waste generated from the production of crops or livestock for food or for fiber.

**B. Air contaminant** means the presence in the outdoor atmosphere of fumes, aerosol, mist, gas, smoke, vapor, particulate matter or any combination thereof, which creates a condition of air pollution.

**C. Air pollution** means the presence in the outdoor atmosphere of one (1) or more air contaminants in sufficient quantities and of such characteristics and duration as tends to or may be injurious to human, plant or animal life or to property, or which interferes with the comfortable enjoyment of life and property.

**D. Applicant** means any person who owns, leases, operates, controls or supervises a source.

**E. Atmosphere** means the air that envelopes or surrounds the earth.

**F. Begin construction** means initiation of permanent, physical, on-site construction activities for a source or facilities associated with the source.

**G. Best Available Control Technology (BACT)** means the control technology to be applied which is the best available, determined on a case-by-case basis, considering environment, energy, economic impact and costs.

**H. Board** means the Tulsa City-County Board of Health.

**I.** **Certified visible emissions evaluator** means a person who has completed a course conducted by the Tulsa City-County Health Department or other such appropriate agency and has met the requirements for evaluating visible emissions as set forth by criteria approved by the Oklahoma Air Quality Council and the Tulsa City-County Health Department.

**J.** **Complete application** means all information necessary for evaluation of the proposed new, modified, reconstructed relocated or existing source including, but not limited to, completed forms provided by the Director, fees, test data, plans and specifications.

**K.** **Demolition** means the wrecking or taking out of any load supporting, structural member of a facility, together with any related handling operation.

**L.** **Department** means the Tulsa City-County Health Department.

**M.** **Director or Director of Health** means the Medical Director of the Tulsa City-County Health Department or his duly designated representative.

**N.** **Dust** means solid particulate matter released into or carried in the air by natural forces by any fuel-burning, combustion, process equipment or device, construction work or mechanical or industrial processes.

**O.** **Emergency** means a condition created from the emission of a pollutant or pollutants that may or will be an immediate or substantial endangerment to human health or welfare.

**P.** **Equipment malfunction** means any departure from normal operating procedures which results in the temporary emissions of a pollutant, or pollutants above the standards set forth in this ordinance.

**Q.** **Existing source** means an air contaminant source which is in being on the effective date of this code.

**R.** **Facility** means all of the pollutant-emitting activities which belong to the same industrial grouping, are located on one (1) or more contiguous or adjacent properties, excluding right of way, and are under the control of the same person or persons under common control. Pollutant-emitting activities shall be considered as part of the same industrial grouping if they belong to the same "Major Group" (i.e., which have the same four-digit code) as described in the Standard Industrial Classification Manual, 1972, as amended by the 1987 Supplement.

**S.** **Fuel-burning equipment** means any equipment, device or contrivance and all appurtenances thereto, including ducts, breachings, fuel-feeding equipment, ash removal equipment, combustion controls, stacks and chimneys used primarily to burn any fuel for the purpose of indirect heating in which the material being heated is not contacted by and adds no substance to the products of combustion.

**T.** **Fugitive dust** means solid airborne particulate matter emitted from any source other than a stack or chimney.

**U.** **Fume** means minute solid particulates generated by the condensation of vapors to solid matter after volatilization from the molten state, or generated by sublimation, distillation, calcination or chemical reaction when these processes create airborne particles.

**V. Gasoline transports** means trailers with fuel tanks attached. Volumes are five thousand (5,000) gallons to twelve thousand (12,000) gallons.

**W. Gasoline vapors** means the gases that are naturally generated from liquid gasoline during loading, transporting or unloading.

**X. In being,** as used in the definition of existing source, means that an owner or operator has undertaken a continuous program of construction, reconstruction or modification, or that the owner or operator has entered into a binding agreement or contractual obligation to undertake and complete within a reasonable time, a continuous program of construction, reconstruction or modification prior to the compliance date for the applicable ordinance.

**Y. Incinerator** means a combustion device specifically designed for the destruction, by high temperature burning, of solid, semi-solid, liquid or gaseous combustible wastes and from which the solid residues contain little or no combustible material.

**Z. Mist** means a suspension of any finely divided liquid in any gas or atmosphere, excepting uncombined water.

**AA. Modification** means any physical change or change in the method of operation of a source which changes the emissions.

**BB. Multiple chamber incinerator** means any article, machine, equipment or contrivance or part of a structure used to dispose of refuse by burning, which consists of three (3) or more refractory-lines combustion chambers in series, physically separated by refractory walls, interconnected by gas passage ports or ducts, and adequately designed for maximum combustion of the material to be burned.

**CC. New source** means any source which is constructed, modified, reconstructed or altered after the effective date of this ordinance.

**DD. Opacity** means the degree to which an emission of air contaminants obstruct the transmission of light expressed as the percentage to which the vision is obstructed as measured by a certified Visible Emissions Evaluator.

**EE. Open burning** means the burning of combustible materials in such a manner that the products of combustion are emitted directly to the outside atmosphere.

**FF. Organic materials** means chemical compounds of carbon, excluding carbon monoxide, carbon dioxide, carbonic acid, metallic carbides, metallic carbonates and ammonium carbonate.

**GG. Paper mill** means a plant in which paper, paper board, cardboard, paper felt or similar material is produced from waste paper products, wood chips and/or pulp slurry including, but not limited to mixers, forming screens, suction boxes, dryers, filters, paper rolls and other auxiliary equipment pertinent to the process.

**HH. Particulate matter** means any material, except uncombined water, that exists in a finely divided form as a liquid or solid.

**II. Person** means an individual or partnership, corporation, association, firm, company, organization, local or state governmental agency or any other legal entity, or its representative, officer, agent or assigns.

**JJ. Portable source** means a source designed to allow periodic disassembly and/or relocation and which is relocated at least once each twenty-four (24) months.

**KK. Potential emissions** means the quantity of an air contaminant that would occur in the absence of air pollution control equipment. Potential emissions shall be determined at maximum design capacity, but operating hours may be limited by permit conditions.

**LL. Pretest plan** means a detailed document to supply the Director with sufficient information and specifications to determine if a proposed format of stack testing procedures is adequate to accurately measure the emissions from a point source.

**MM. Process equipment** means any equipment, device or contrivance for changing any material or for the storing or handling of any materials, the use or existence of which may cause any discharge of air contaminants into the open air, but not including that equipment specifically defined as fuel-burning equipment.

**NN. Process weight** means the weight of all materials introduced in a source operation, including solid fuels but excluding liquids and gases used solely as fuel, and excluding air introduced for the purposes of combustion. Process weight rate means a rate established as follows:

**1.** For continuous or long-run, steady-state operations, the total process weight for the entire period of continuous operation, or for a typical portion thereof, divided by the number of hours of such a period or portion thereof;

**2.** For cyclical or batch source operations, the total process weight for a period which covers a complete or an integral number of cycles, divided by the hours of actual process operation during such period; and

**3.** In any situation in which the nature of any process or operation or the design of any equipment is such as to permit more than one (1) interpretation of this definition, that interpretation which results in the minimum value for allowable emission shall apply.

**OO. Products of combustion** means all particulate and gaseous contaminants emitted as a result of the burning of refuse and combustible materials.

**PP. Pulp mill** means the process equipment used in production of pulp from wood chips or bolts which may include, but are not limited to debarker, chipper digester, blow tank, washers, condensers, evaporators, recovery furnace, lime kiln, smelt-dissolving tank, mixers, heat exchangers, gas scrubbers and other auxiliaries pertinent to the process.

**QQ. Reconstruction** means a change of a source in which the replacement costs of proposed depreciable components exceeds fifty percent (50%) of the replacement costs of all depreciable components.

**RR. Refuse** means the inclusive term for solid, liquid or gaseous waste products which are composed wholly or partly of such materials as garbage, sweepings, cleanings, trash, rubbish, litter, trade waste, agricultural waste, industrial, commercial and domestic solid, liquid or gaseous waste; trees or shrubs; tree or shrub trimmings, grass clippings; brick, plaster, lumber or other waste resulting from the demolition, alteration or construction of buildings or structures; accumulated waste material, cans, containers, tires, junk or other such substances.

**SS. Renovation** means altering in any way one (1) or more facility components. Operations in which load supporting structural members are wrecked or taken out are excluded.

**TT. Ringelmann Chart** means the chart published and described in the U.S. Bureau of Mines Information Circular Number 8333, or as it may be amended.

**UU. Salvage operation** means any business, trade, industry or other activity, conducted in whole or in part for the purpose of salvaging or reclaiming any product or materials.

**VV. Smoke** means any gasborne or airborne particles resulting from combustion operations and consisting of carbon, ash and other products of combustion, any or all of which is present in sufficient quantity to be observable.

**WW. Source** means any individual process or activity capable of emitting an air contaminant.

**XX. Standard temperature and pressure** means twenty degrees (20°) Centigrade and seven hundred sixty (760) millimeters of mercury.

**YY. Submerged fill pipe (drop tube)** means any fill pipe or discharge nozzle which meets any one (1) of the following conditions:

**1.** The bottom of the discharge pipe or nozzle is below the surface of liquid in receiving vessel for at least ninety-five percent (95%) of the volume filled;

**2.** The bottom of the discharge pipe or nozzle is less than six (6) inches from the bottom of the receiving vessel;

**3.** The bottom of the discharge pipe or nozzle is less than two (2) pipe or nozzle diameters from the bottom of the receiving vessel; or

**4.** Other conditions acceptable to the Director.

**ZZ. Terminals** means loading facilities with throughputs greater than forty thousand (40,000) U.S. gallons per day.

**AAA. Tight fill** means the manner in which organic materials are transferred from the delivery vessel into a storage vessel so that vapor and liquid loss of organic materials is eliminated.

**BBB. Trade waste** means solid, liquid or gaseous material resulting from construction, the operation of any business, trade or industry, or any demolition operation including, but not limited to, plastics, cartons, grease, oil, chemicals and cinders.

**CCC. Transport service company** means any company that sells parts for transports and also services them. Such company must be qualified to repair transports.

**DDD. Vessel** means tanks used for transportation of organic compounds.

**EEE. Visible emissions** means any air contaminant, vapor or gas stream which contains or may contain an air contaminant which is passed into the atmosphere and which is perceptible to the human eye.

*(Ord. No. 17168)*

## Section 701. Zoning and planning.

The Director of Health shall gather and supply to the Tulsa Metropolitan Area Planning Commission facts concerning air pollution in the City and County of Tulsa, pertaining to zoning and planning, as requested by the Planning Commission or deemed pertinent by the Director of Health. Notice of all proposed zoning changes shall be given to the Director of Health by the Tulsa Metropolitan Area Planning Commission at least ten (10) days prior to any public hearing or planning commission meeting in which a change is to be considered.

Before making a report, the Director of Health shall study such changes, considering the effects they may have on the community's atmosphere. The Director of Health shall consider factors such as meteorology, topography, the nature of the zoning change, the area in which the change is to be made and any other pertinent facts regarding pollution of the community's atmosphere. A report and recommendation of the Director of Health may be given in writing to the Planning Commission with a copy to the applicant, or at any public hearing in which the application is considered.

### Section 702. Building permits.

The Building Inspector's Office shall not issue a permit for occupancy, erection, construction, reconstruction, alteration of any commercial, industrial or apartment house structure as defined in the zoning code of the City of Tulsa when the plans and specifications for such structure or occupancy include any fuel-burning or refuse-burning equipment, or any chimney or smoke stack, until such plans and specifications have been submitted to the Director of Health for approval. Use of AGA-approved equipment for heating or cooling shall be deemed to comply with provisions of this section. No building permit shall be issued if the Director of Health finds that emissions from the building or structure will violate the provisions of this code. Failure of the Director of Health to approve or reject such plans or specifications within ten (10) days shall be deemed approval.

### Section 703. Nuisance.

No person shall cause or allow the discharge, emission or release into the atmosphere from any source whatsoever of such quantities of air contaminant or other material as may cause injury, endanger health, damage property, or affect public health, well being or safety. Such quantities shall be deemed a public nuisance and subject to penalty as hereinafter provided.

### Section 704. Listing of devices and equipment.

Upon written request of the Director of Health, all persons constructing or operating any article, machine, device, equipment or other contrivance or facility capable of causing or permitting emission or air contaminants into the atmosphere shall list equipment set out above with the Director of Health. Such list shall include information as to the ownership, location, design, construction, installation, operation, alteration of any article, machine, device, equipment, contrivance or facility and information concerning the general composition and such other pertinent information deemed necessary by the Director of Health.

### Section 705. Inspection.

The Director of Health, after proper identification, shall not be denied access at reasonable times in or upon any private or public property, except private residences, for the purposes of inspection and investigating any condition which the Director shall have reasonable cause to believe to be an air pollution source.

### Section 706. Rules and regulations.

The Board may prepare standards, rules and regulations which it deems necessary to protect the public health and safety and to carry out the requirements of the Clean Air Code. Such standards, rules and regulations shall be recommended to the City Council and the County Commission for their adoption.

## Section 707. Control of open burning.

**A. Purpose.** It is the purpose of this regulation to establish controls in the open burning of combustible material to prevent undesirable levels of air contaminants in the atmosphere.

**B. Open burning restrictions.** No person shall cause, suffer, allow or permit the open burning of refuse, trade waste, salvage waste, agricultural waste or other combustible material except as may be allowed in compliance with Subsection C herein.

**C. Exceptions to restriction against open burning.**

**1.** Regardless of provisions of Subsection B, in areas of low population density in which no private or municipal refuse service is available, the open burning on residential premises of refuse originating in dwelling units on the same premises shall not be a violation of this code. The Director of Health, after consultation with public agencies and private facilities concerned with refuse collection and disposal, shall select and publish the specific boundaries of areas in which such open burning of refuse will not be in violation of this code. In selecting such areas, he shall issue a density of one (1) dwelling unit per ten (10) acres as an approximate definition of areas of low population density. The Director of Health shall select and publish revised boundaries of such areas at least once every two (2) years to reflect changes in population density and available refuse service.

**2.** Outdoor burning in connection with the preparation of food shall be permitted.

**3.** Campfires and fires used solely for recreational purposes or for ceremonial occasions shall be permitted.

**4.** Fires set for purpose of training public or private fire-fighting personnel shall be permitted with the approval of the Director.

**5.** Fires set or required by a public officer for the abatement of nuisances and which are necessary in carrying out public health functions shall be permitted with the approval of the Director.

**6.** The burning of trees, brush and shrubs in a properly designed, operated and maintained open pit incinerator is permitted on the premise from which the trees, brush and shrubs originated if approval prior to burning has been granted by the Director.

**7.** The open burning of trade wastes may be permitted when it can be shown that such open burning is necessary and in the interest of public health. Any person intending to engage in open burning of trade wastes shall file a request with the Director of Health. The request shall be made on forms provided by the Tulsa City-County Health Department. The Director shall respond to the request within three (3) working days after receipt of request.

**8.** The open burning of plant life grown on the premises in the course of any agricultural operation may be permitted when it can be shown that such open burning is necessary and in the interest of public health. Any person intending to dispose of plant life by open burning shall file a request to do so with the Director of Health on forms provided by the Director.

**9.** Any open burning permitted under provisions of paragraphs 1, 6, 7 and 8 shall be begun only during the following time period: from three (3) hours after sunrise until three (3) hours before sunset. Additional fuel may not be intentionally added to the fire except during the time period prescribed herein.

## Section 708. Incinerators.

**A. Purpose.** It is the purpose of this regulation to control the emissions of air contaminants from incinerators in the City of Tulsa.

**B. General provisions.**

**1.** No person shall burn refuse in any incinerator, except in a multiple chambered incinerator or in equipment determined by the Director to be equally effective for the purpose of air pollution control. These incinerating devices shall make full and proper use of components and appurtenances thereof to ensure the most efficient and complete combustion.

**2.** No person shall cause, suffer, allow or permit the emission into the open air from any incinerator equipment fly ash or other particulate in quantities greater than the allowable emissions as determined by the use of the formula:

$$"Y" = 0.01221X^{0.7577}$$

where "X" is the charge rate (lbs. per hour) and "Y" is the allowable emissions. Solid fuels charged will be considered as part of the refuse waste, but No. 1 and 2 fuel oil and gaseous fuels and combustion air will not be so considered.

**3.** No person shall cause, suffer, allow or permit the discharge from an incinerator of any air contaminant in quantities detrimental to health or property or adversely affecting the use or enjoyment of property.

**C. Multiple chambered incinerators.**

**1.** No person shall cause, suffer or allow the operation of a multiple chambered incinerator unless:

**a.** It is provided with an auxiliary burner for the purpose of maintaining a temperature of at least eight hundred degrees (800°) F. in the primary combustion chamber; and

**b.** It is provided with a secondary burner for use when necessary to eliminate smoke.

**2.** No person shall cause, suffer, allow or permit the discharge into the outdoor atmosphere:

**a.** From any incinerator burning less than two hundred (200) pounds of refuse per hour, particulate matter to exceed three tenths (0.3) grains per standard cubic foot of dry flue gas, adjusted to twelve percent (12%) carbon dioxide and calculated as if no auxiliary fuel had been added; or

**b.** From any incinerator burning two hundred (200) or more pounds of refuse per hour, particulate matter to exceed two tenths (0.2) grains per standard cubic foot of dry flue gas adjusted to twelve percent (12%) carbon dioxide and calculated as if no auxiliary fuel had been used.

## Section 709. Control of visible emissions.

**A. Purpose.** It is the purpose of this regulation to prevent undesirable ambient concentrations of smoke and particulate matter through regulation of visible emissions.

**B. Control of smoke and visible emissions.**

**1. General prohibition.** No person owning, leasing or controlling the operation of any air contaminant source shall willfully, negligently or through failure to provide necessary equipment or facilities or through failure to take necessary precaution, permit the emission from the contaminant source of such quantities of air contamination as will cause a condition of air pollution.

**2. Visible emissions.**

**a.** No person shall cause, suffer, allow or permit the discharge of any fumes, aerosol, mist, gas, smoke, vapor, particulate matter or any combination thereof of a shade or density equal to or darker than a number one (1) on the Ringelmann Chart or twenty percent (20%) equivalent opacity.

**b.** Subparagraph 2a shall not apply to:

(1) Smoke or visible emissions emitted during the cleaning of a fire, the building of a new fire or short-term occurrence, the shade or density of which is not darker than Number two and one-half (2½) of the Ringlemann Chart or fifty percent (50%) opacity for a period aggregating no more than five (5) minutes in any sixty (60) consecutive minutes or more than twenty (20) minutes in any twenty-four (24) hour period;

(2) Smoke resulting from fires covered by the exception outlined in Section 707; or

(3) An emission where the presence of uncombined water is the only reason for failure to meet the requirements of Subparagraph 2a.

**3. Method of measurement.** The Ringelmann Chart and its opacity equivalents shall be used in grading the shade or opacity of visible air contaminant emissions. The Director of Health may specify other means of measurement which give comparable result or results of greater accuracy.

## Section 710. Control of particulate emissions from specific activities.

**A.** It is the purpose of this regulation to prevent undesirable ambient concentrations of particulate matter originating from specific industrial activities in the City of Tulsa.

**B. General prohibition.** No person owning, leasing or controlling the operation of any air contaminant source shall willfully, negligently or through failure to provide necessary equipment or facilities or through failure to take necessary precaution, permit the emission from the air contaminant source of such quantities of air contamination as will cause a condition of air pollution.

**C. Emission of particulate matter from industrial processes.**

**1. General provisions.**

**a.** This section applies to any operation, process or activity, except:

(1) The burning of fuel for indirect heating in which the products of combustion do not come directly into contact with process material;

(2) The burning of refuse; and

(3) The processing of salvageable refuse by burning.

**b.** The process weight per hour, referred to in this section, shall be based on the normal operation of maximum capacity of the equipment; and if such normal

maximum capacity should be increased by process or equipment changes, the new normal maximum capacity shall be used as the process weight in determining the allowable emissions.

2. **Emission limitations.** No person shall cause, suffer, allow or permit the emission of particulate matter from any source in excess of:

   **a.** The amount shown in Table 1 for the process weight allocated to such source; and

   **b.** A concentration of thirty hundredths (0.30) grains per standard dry cubic foot of exhaust gases.

**D. Emission of particulate matter from fuel burning equipment.**

1. No person shall cause, suffer, allow or permit particulate matter caused by the combustion of fuel to be discharged from any stack or chimney into the atmosphere, in excess of the hourly rates set forth in the following Table I:

**TABLE I**

| Heat Input Per Hour<br>British Thermal Units | Maximum Allowable Emissions<br>of Particulate Matter<br>Pounds Per Million BTU |
|---|---|
| less than or equal to 10 | 0.60 |
| 100 | 0.35 |
| 1,000 | 0.20 |
| 10,000 and greater | 0.12<br>0.10<br>(CNTY) |

| Heat Input Per Hour<br>Kilocalories | Maximum Allowable Emissions<br>of Particulate Matter<br>Grams Per Million |
|---|---|
| less than or equal to 2.52 | 1.08 |
| 2.52 | 0.63 |
| 252 | 0.34 |
| 2,520 | 0.18 |

2. For heat input between any two (2) consecutive heat inputs stated in the preceding table, maximum allowable emissions of particulate matter are shown in Table II below.

3. For the purposes hereof, heat input shall be calculated using the aggregate heat content of all fuels (using the upper limits of the range heating value) whose products of combustion pass through the stack or chimney.

4. When two (2) or more fuel burning units are connected to a single stack, the combined heat input of all units connected to the stack shall be used to determine the allowable emission from the stack.

**5.** When a single fuel burning unit is connected to two (2) or more stacks, the allowable emission from all the stacks combined shall not exceed that allowable for the same unit connected to a single stack.

**TABLE II**

| Process Weight Rate | | Rate of Emission | Process Weight Rate | | Rate of Emission |
|---|---|---|---|---|---|
| Lb/Hr | Tons/Hr | Lb/Hr | Lb/Hr | Tons/Hr | Lb/Hr |
| 100 | 0.05 | 0.551 | 16,000 | 8.00 | 16.5 |
| 200 | 0.10 | 0.877 | 18,000 | 9.00 | 17.9 |
| 400 | 0.20 | 1.40 | 20,000 | 10.00 | 19.2 |
| 600 | 0.30 | 1.83 | 30,000 | 15.00 | 25.2 |
| 800 | 0.40 | 2.22 | 40,000 | 20.00 | 30.2 |
| 1,000 | 0.50 | 2.58 | 50,000 | 25.00 | 35.4 |
| 1,500 | 0.75 | 3.38 | 60,000 | 30.00 | 40.0 |
| 2,000 | 1.00 | 4.10 | 70,000 | 35.00 | 41.3 |
| 2,500 | 1.25 | 4.76 | 80,000 | 40.00 | 42.5 |
| 3,000 | 1.50 | 5.38 | 90,000 | 45.00 | 43.6 |
| 3,500 | 1.75 | 5.96 | 100,000 | 50.00 | 44.6 |
| 4,000 | 2.00 | 6.52 | 120,000 | 60.00 | 46.3 |
| 5,000 | 2.50 | 7.58 | 140,000 | 70.00 | 47.8 |
| 6,000 | 3.00 | 8.56 | 160,000 | 80.00 | 49.0 |
| 7,000 | 3.50 | 9.49 | 200,000 | 100.00 | 51.2 |
| 8,000 | 4.00 | 10.4 | 1,000,000 | 500.00 | 69.0 |
| 9,000 | 4.50 | 11.2 | 2,000,000 | 1,000.00 | 77.6 |
| 10,000 | 5.00 | 12.0 | 6,000,000 | 3,000.00 | 92.7 |

Interpolation of the data in this table for process weight rates up to 60,000 lb/hr shall be accomplished by use of the equation:

$$E = 4.10\ (p^{0.67})$$

and interpolation and extrapolation of the data for process weight rates in excess of 60,000 lb/hr shall be accomplished by use of the equation:

$$E = [55.0\ (p^{0.11})]\ -40$$

where E = rate of emission in lb/hr and P = process weight rate in tons/hr.

## Section 711. Malfunction of equipment and emergency conditions.

**A. Purpose.** It is the purpose of this regulation to control air pollution during irregularities and malfunction of equipment and during emergency conditions.

**B. Scheduled maintenance.** In the case of a shutdown of air pollution control equipment for necessary scheduled maintenance, the person responsible for this equipment shall report the intent to shut down such equipment to the Director at least twenty-four (24) hours prior to the planned shutdown. Such prior notice shall include, but is not limited to, the following:

**1.** Identification of the specific facility to be taken out of service as well as its location and permit number;

**2.** The expected length of time that the air pollution control equipment will be out of service;

**3.** The nature and quantity of emissions of air contaminants likely to occur during the shutdown period;

**4.** Measures, such as the use of off-shift labor and equipment, that will be taken to minimize the length of the shutdown period;

**5.** The reasons that it would be impossible or impractical to shutdown the source operation during the maintenance period; and

**6.** If the estimated or actual duration is greater than seventy-two (72) hours, application shall be made for a variance.

**C. Equipment malfunction.** In the event that any emission source, air pollution control equipment or related facility malfunctions in such a manner as to cause the emission of air contaminants in violation of this code, the person responsible for such equipment shall immediately notify the Director of such failure or breakdown and provide a statement giving all pertinent facts, including the estimated duration of the breakdown. The Director shall be notified when the condition causing the failure or breakdown has been corrected and the equipment is again in operation. If the estimated or actual duration is greater than seventy-two (72) hours, application shall be made for a variance.

**D. Emergency provisions.** In the event that an air pollution emergency exists, the person in charge of the facility shall notify the Director immediately. Notwithstanding any other provisions of this code, upon receipt of evidence that a source of pollution or a combination of sources of pollution present an air pollution emergency, the Director shall take such action as may be necessary to abate the alleged pollution.

## Section 712. Permit to construct and operate required.

**A. Scope and purpose.** This regulation is adopted to define Air Resource Management Requirements, to protect and enhance Air Resources of the City of Tulsa and to assure attainment and maintenance of the ambient air quality through the use of a construction and operation permit system.

**B. General requirements for permits to construct.** No person shall cause or permit the construction of a new source or the modification, reconstruction or relocation of a source, without first obtaining a permit to construct from the Director, approving the location and the design of such source and assuring compliance with applicable rules, regulations and ambient air quality standards. Any person who violates the requirements of this section shall be deemed to be creating a public nuisance.

**C. Application for permits to construct.**

**1.** A separate application is required for each source described in Subsection B which has the potential of emitting pollutants to the atmosphere.

**2.** Each application shall be signed by the applicant. The signature of the applicant shall constitute an agreement that the applicant assumes responsibility for the construction, modification, reconstruction, relocation and use of the proposed source in accordance with this code.

**D. Information required for permits to construct.** Each application for a permit to construct shall be accompanied by two (2) complete copies of plans and specifications showing how the proposed source is designed and will be operated and how air pollutants will be controlled.

**E. Standards for granting permits to construct.**

**1.** No permit to construct shall be granted unless the applicant demonstrates that:

**a.** The source is designed and will be constructed to operate without causing a violation of federal, state and local air pollution laws;

**b.** The source is designed, built and equipped in accordance with the best available control technology (BACT);

**c.** The source will not endanger maintenance nor attainment of any applicable ambient air quality standard; and

**d.** The source will provide reasonable, practical and available control measures for those air contaminants not controlled by the above regulations if the Director determines such controls are necessary and in the interest of public health, welfare and property.

**2.** The Director may establish special conditions if it appears likely from all of the information submitted that, as a result of the conditions, the source will satisfy the requirements of this subsection.

**F. Action on applications for permits to construct.**

**1.** The application shall be acted upon within thirty (30) days of receipt of a complete application for a permit to construct. The Director shall notify the applicant in writing of his approval, conditional approval or denial of the application.

**2.** If any application is denied, the Director shall set forth his objections in the notice of denial. If the objection cannot be resolved by conference and conciliation, the applicant may appeal pursuant to the provisions of this chapter.

**G. Cancellation of a permit to construct.**

**1.** The Director shall cancel a permit to construct if the construction has not begun within eighteen (18) months from the date of issuance, or if the work involved in the construction is suspended for eighteen (18) months or more.

**2.** An applicant may secure an extension of the expiration date by written request to the Director stating the reasons for the extension. Extensions may be granted for a period of not more than eighteen (18) additional months.

**H. General requirements for permits to operate.** No person shall cause, suffer or allow the operation of a source constructed after October 1, 1972, without a state or City permit to operate.

**1.** Within sixty (60) days of startup of a new, modified or reconstructed source, an application for a permit to operate must be filed with the Director.

**2.** No owner or operator shall cause or permit the operation of a new, modified or reconstructed source if the Director denies or revokes a permit to operate.

**3.** Sources existing on the effective date of this ordinance shall have sixty (60) days in which to secure a permit to operate.

**I. Applications for permits to operate.** Applications for a permit to operate shall include two (2) signed application forms. Plans and specifications need not be submitted unless changes have been made since issuance of permit to construct.

**J. Asbestos permits required.** A permit shall be required prior to commencing any asbestos renovation or demolition project at any facility.

For the purposes of this subsection, the terms "project" and "facility" shall be defined as follows: "project" shall mean any renovation or demolition operation at any one (1) facility submitted under separate notification; "facility" shall mean any institutional, commercial or industrial structure, installation or building (excluding apartment buildings having no more than four (4) dwelling units).

**K. Standards for granting permits to operate.** No permit to operate a source shall be granted unless the applicant shows that the source has satisfied the requirements of the applicable rules, regulations, and has been constructed, modified or reconstructed in accordance with the requirements and conditions contained in the permit to construct.

**L. Performance testing for permits to operate.** Before a permit to operate a source is granted, the applicant may be required to conduct performance tests in accordance with Section 717 herein. The test will be made at the expense of the applicant. The Director shall monitor performance tests conducted by the applicant and may also conduct performance tests.

**M. Action on applications for permits to operate.**

**1.** The Director shall act within a seventy-five (75) day period on an application for a permit to operate and shall notify the applicant in writing of his approval, conditional approval or denial of the application. The seventy-five (75) day period shall begin when all test data, plans and specifications are received. The source may operate during this review period.

**2.** If any application is denied, the Director shall set forth his objections in the notice of denial. If the objection cannot be resolved by conference and conciliation, the applicant may appeal pursuant to Section 718.

**N. Conditional permits to operate.** The holder of a permit to operate shall comply with the conditions contained in his permit as well as with all applicable delegated federal, state and local laws.

**O. Suspension or revocation of permits to operate.**

**1.** A permit may be revoked or suspended for willful or continued violation of code or permit conditions.

**2.** Suspension or revocation of a permit to operate shall become final thirty (30) days after service of notice on the holder of the certificate unless the violation is corrected or appealed to the review board pursuant to Section 718.

**3.** A permit to operate which has been revoked pursuant to these provisions shall be surrendered forthwith.

**P. Transfer of permit.** A permit to operate shall not be transferred to another person or location. If a transfer of ownership or location occurs, a new permit to operate is

necessary, but the cost of the new permit shall be one-half (½) the amount provided in Subsection Q. Transfer of stock does not constitute change of ownership unless such transfer results in a change of the controlling fifty percent (50%) interest.

**Q. Permit fees required.**

**1. Definitions.** For the purpose of this subsection, the following words and phrases shall have the meanings given herein.

**a. Major source** means any new or modified stationary source which directly emits or has the capability at maximum design capacity, and if appropriately permitted, authority to emit one hundred (100) tons per year or more of a given pollutant.

**b. Minor source** means any source for which a permit is required but is not a major source.

**c. Permit renewal** means the process whereby operating permits are extended for another one-year term. In no case shall the term "permit renewal" be construed to allow the imposition of additional permit requirements not otherwise required or authorized by law or ordinance.

**d. Relocate** means to move a source from one (1) geographical location to another. The term shall not include *de minimis* moves within the proximity of the original site, or contiguous areas when such moves are readily observable by inspectors.

**e. Annual permit renewal fee equivalent** means the annual fee assessed on facilities which, because of the date of startup or construction, are exempt from the requirements to have a permit.

**2. Construction and operating permit fees - new sources.** All new permits, the construction permit application for which is received after the effective date of this section, will be assessed a fee which must accompany the application, in accordance with the following schedule.

**a. Major source.**

| | |
|---|---|
| (1) Construction permit | $2,000.00 |
| (2) Operating permit | $1,500.00 |

**b.** Minor source (actually emitting twenty-five (25) tons, but less than one hundred (100) tons per year of any one (1) pollutant and minor NSPS sources)

| | |
|---|---|
| (1) Construction permit | $1,000.00 |
| (2) Operating permit | $250.00 |

**c.** Minor source (emitting more than one (1) pound per hour, but less than twenty-five (25) tons per year of any one (1) pollutant)

| | |
|---|---|
| (1) Construction permit | $200.00 |
| (2) Operating permit | $100.00 |
| (3) Asbestos renovation/demolition permit | $50.00 |

**3. Review to determine applicability - new sources.** Upon submittal of a written request, a One Hundred Dollar ($100.00) determination fee and any relevant

information needed to make a permit determination, the Tulsa City-County Health Department will make a determination of whether or not a permit is required. If a determination is made that a permit is required, the One Hundred Dollar ($100.00) fee will be credited against the construction and operation permit fees. If it is determined that a permit is not required, the One Hundred Dollar ($100.00) fee will be retained by the Tulsa City-County Health Department to cover the cost of making the determination.

**4. Permit renewal and renewal equivalents.**

**a. Applicability.**

(1) The Tulsa City-County Health Department shall annually assess and collect a permit renewal fee or permit renewal fee equivalent from all facilities in the County according to their classification as set forth in Table III below. Assessments for existing facilities grandfathered from permit requirements (i.e., permit renewal fee equivalents) shall be made in the same manner and on the same basis as a new facility of the same type (permit renewal fees).

(2) New facilities shall not be subject to a permit renewal fee until a minimum of one (1) year shall have elapsed from the operating permit application due date.

**b. Facility classification.**

(1) Any new facility for which an appropriate classification does not exist shall be assigned a classification and class number in Table III as a permit condition.

(2) Any existing facility for which an appropriate classification does not exist shall be assigned a facility classification and class number in the same manner as (b)(1) above except that:

(a) Such assignment shall be made in writing, setting forth the reasons why the facility has been assigned to any particular category; and

(b) Any person aggrieved by such assignment shall be entitled to a hearing on the reasonableness of the assignment.

**c. *De Minimis*.**

(1) A permit renewal fee or renewal fee equivalent shall not be required, regardless of the requirement to have a permit, provided that total emissions from the facility do not exceed ten (10) tons per year for any one (1) criteria pollutant.

(2) Exceptions to the ten (10) ton *de minimis* facilities are the service station industry and the dry cleaning industry.

**d. Assessments.**

(1) Fees established under this section shall be assessed and paid on the basis of facility classification as identified in Table III. The annual fee collected for a facility in any class shall be determined by multiplying the class number for the facility, as determined by Table III, by Fifty Dollars

($50.00). In no case shall more than one (1) fee per source be assessed, unless such source shall constitute two (2) or more facilities as defined herein.

(2) On or before the first working day of each year, the Tulsa City-County Health Department will mail fee assessments to all facilities subject to this regulation. Such assessments shall be made pursuant to data contained in the emissions inventory and shall set forth:

(a) The facility classification;

(b) The class number assigned to the facility; and

(c) The amount of the fee that is to be remitted to the Tulsa City-County Health Department.

(3) Service stations and dry cleaners shall be assessed on an annual renewal fee of Twenty-Five Dollars ($25.00).

(4) For the calendar year 1989, fee assessments will be mailed on or about the effective date of this regulation and shall be due in the Offices of the Tulsa City-County Health Department, Air Quality Control, thirty (30) days from the date of receipt of the assessment.

**e. Exemption.** Fees set out herein shall not apply to oil and gas wells and their associated facilities or oil and gas pipelines and their associated facilities involved in the production (prior to custody transfer) of oil and gas. This exemption does not apply to storage facilities with greater than ten thousand (10,000) BBL. total capacity, compressor facilities on transmission lines and gas processing facilities.

**f. Fees.** Fees will be paid by check or money order made payable to the reviewing agency, Tulsa City-County Health Department. No cash will be accepted. Fees shall be due in the Offices of the Tulsa City-County Health Department thirty (30) days from the date of postmark. A ten (10) calendar day grace period will be given before any enforcement action will be taken. Upon the expiration of the ten-day grace period, notices of violation (NOV) may be issued. Further action will be in accordance with Sections 718 and 720 of this chapter.

**g. No pre-emption.** The fee provisions set forth herein shall apply to those permits, renewals and renewal fee equivalents processed by the Tulsa City-County Health Department and are not intended to preempt any state fee program.

**R. Exemptions.** Permits to construct or operate shall not be required for:

**1.** The installation or alteration of an air contaminant detector, air contaminant recorder, combustion controller or combustion shut-off device;

**2.** An air conditioning or ventilating system not designed to remove air contaminants generated by or released from process equipment;

**3.** Fuel-burning equipment which uses natural gas as a fuel for space heating, air conditioning or heated water, or which is used in a private dwelling or which has a BTU input of less than five hundred thousand (500,000) BTU per hour;

**4.** Stationary internal combustion engines smaller than two hundred forty (240) cubic inches per cylinder;

**5.** Laboratory equipment used exclusively for chemical or physical analyses; and

**6.** Changes which do not increase or change the characteristics of the emissions.

**S. Opportunity for public review and comment.**

**1.** The permit application and Tulsa City-County Health Department review for sources with potential emissions greater than one hundred (100) tons per year or one thousand (1,000) pounds per day of any air contaminant must be available for review in a suitable public building in the geographical area affected by the proposed source, project or facility. The letter of intent of the Director to approve or disapprove the application shall accompany the review package.

**2.** The Director will advertise in a prominent local newspaper the availability and location of all items described above. The format of the announcement will be adequate to ensure that the public is aware that an air pollution source is to be constructed. The notice shall be published once per week for a five (5) week period. The cost of publication will be borne by the applicant.

**3.** The Director may cause a public hearing to be held if interested persons show all pertinent air pollution data were not considered or if an error can be shown in the application or agency review. Requests for public hearing must be made within seven (7) days of final publication.

**TABLE III**
**Industrial Classification Table**
**for Annual Permit Renewal and Equivalent Fees**

| Class Number | Facility Type |
|---|---|
| 10 | Electric Power Generation: Coal |
| | Industrial Steam Generation: Coal |
| | Petroleum Refinery |
| | Portland Cement Plants |
| | Sulfuric Acid Manufacturing |
| | Nitric Acid Manufacturing |
| | Fertilizer Manufacturing |
| | Municipal Incinerators |
| | Paper Products |
| | Carbon Black |
| | Secondary Steel Production |
| | New Source Performance Standard |
| | (NSPS) Sources |
| | Explosives |
| | |
| 9 | Gasoline Terminals |
| | Natural Gas Processing and Transportation: |
| | >=10,000 hp/facility |
| | Grain Elevators: |

| Class Number | Facility Type |
|---|---|
| | >=10 million bushels storage capacity |
| | Industrial Chemical Manufacturing |
| | Commercial Pathological Incinerators |
| | Electric Power Generation: Gas Turbines |
| | Felt Asphalt Coating and Other Roofing |
| | Manufacturing |
| | Gypsum Process and Wallboard Manufacturing |
| | Automotive Assembly Plants |
| | Asphalt Pipe Coating |
| | |
| 8 | Non-Metallic Quarrying and Processing: |
| | >=150 tons/hour rated capacity |
| | Tile and Floor Products Manufacturing: |
| | other than ceramic |
| | Electronics and Related Products Manufacturing |
| | Commercial Printers |
| | Glass Manufacturing |
| | Brick Manufacturing |
| | Ceramic Tile Manufacturing |
| | Magnetic Tape Manufacturing |
| | Gasohol Plants |
| | Secondary Aluminum Processing |
| | Gray Iron Foundries |
| | Coal Crushing Plants |
| | Wood Related Products |
| | Tire Manufacturing |
| | |
| 7 | Asphalt Concrete Plants: |
| | >=200 tons/hour rated capacity |
| | Natural Gas Processing and Transportation: |
| | 1,000 - 10,000 hp/facility |
| | Fiberglass Processing |
| | Paint and Related Products |
| | Alfalfa Drying |
| | Roofing Granules |
| | Cement Bulk Terminals |
| | Flour and Grain Mills |
| | Research and Development Labs |
| | Plastics Processing |
| | Petroleum Storage Facilities |
| | Hospital Incinerators |

| Class Number | Facility Type |
|---|---|
| | |
| 6 | Grain Elevators: |
| | 2.5 - 10 million bushels storage capacity |
| | Electric Power Generation: |
| | other than coal |
| | Industrial Steam Generation: |
| | >=10 MMBTU/hr rated capacity, other than coal |
| | Lubricant, Blending and Waste Oil Refining |
| | Vermiculite and Perlite Production |
| | Meat Packing Plants |
| | Drilling Mud Manufacturing |
| | Aircraft and Auxiliary Equipment |
| | Prepared Foods |
| | Canned Pet Food |
| | Canneries |
| | |
| 5 | Natural Gas Processing and Transportation: |
| | 450 - 1,000 hp/facility |
| | Non-metallic Quarrying and Processing: |
| | <150 tons/hour rated capacity |
| | Paper Box Manufacturing |
| | Metal Dross Processing |
| | Non-Metallic General Manufacturing |
| | Salt and Brine Extraction |
| | Tire Retreaders |
| | |
| 4 | Asphalt Concrete Plants: |
| | <200 tons/hour rated capacity |
| | Ready-Mix Concrete Plants: |
| | >=100 cubic yards/hour capacity |
| | Millwork and Wood Furniture Manufacturing |
| | Charcoal Manufacturing |
| | Non-Ferrous Foundry |
| | Forging and Metal Stamping |
| | Valves and Pipe Fitting |
| | Feed and Feed Ingredients |
| | Micro-Nutrient Manufacturing |
| | Fertilizer Terminals |
| | Metallic General Manufacturing |
| | Metal Plating |
| | Barrel and Drum Reconditioning |

| Class Number | Facility Type |
|---|---|
| | Steel Foundry |
| | Rendering Plants |
| | |
| 3 | Fabricated Structural Metal Products |
| | Farm Machinery and Equipment Manufacturing |
| | General Industrial Machinery and Equipment Manufacturing |
| | Motor Vehicle Parts and Accessories |
| | Fabricated Rubber Products |
| | Metal Furniture and Appliance Manufacturing |
| | Sand Plants |
| | Signs |
| | |
| 2 | Ready-Mix Concrete Plants: |
| | <100 cubic yards/hour capacity |
| | Grain Elevators: |
| | 875,000 - 2.5 million bushels storage capacity |
| | Coal Loadout |
| | Concrete Block Plants |
| | Sawmill and Planing Mills |
| | Metal Shredders |
| | Insulation Manufacturing |
| | |
| 1 | Wire Recovery Incinerator and Burnout Ovens |
| | Cotton Gins |

*(Ord. No. 17168)*

## Section 713. Control of fugitive dust.

**A. Purpose.** It is the purpose of this regulation to control air pollution which results from fugitive dust in the City of Tulsa.

**B. Fugitive dust.** No person shall cause or permit the handling, transporting or disposition of any substance or material which is likely to be scattered by the air or wind, or is susceptible to being airborne or windborne or to operate or maintain or cause to be operated or maintained any premise, open area, right-of-way, storage pile of materials, vehicle or construction, alteration, demolition or wrecking operation or any other enterprise, which involves any material or substance likely to be scattered by the wind or air, or susceptible to being windborne or airborne that would be classified as air pollution without taking reasonable precautions or measures to minimize atmospheric pollution.

**C. Precautions.** The Director may require such reasonable precautions and shall include, where applicable, but shall not be limited to the following:

**1.** Use, where possible, of water or chemicals for control of dust in the demolition of existing buildings or structures, construction operations, the grading of roads, driveways and parking lots or the clearing of land;

**2.** Application and maintenance of asphalt, road oil, water or suitable chemicals on dirt roads, driveways and parking lots, materials stockpiles and other surfaces which can be the source of airborne dust;

**3.** Installation and use of hoods, fans and dust collectors to enclose and vent the handling of dusty materials or the use of water sprays or other acceptable measures to suppress the dust emission during handling; adequate containment methods shall be employed during sandblasting or other similar operations;

**4.** Covering, at all times, when in motion, open-bodied trucks transporting materials likely to become airborne;

**5.** The prompt removal of earth or other material from paved roads, driveways and parking lots on which earth or other material has been deposited by trucking, earth moving equipment or erosion by water; and

**6.** The planting and maintenance of vegetative ground cover.

**D. Damage to adjacent properties.** No person shall cause or permit the discharge of any visible fugitive dust emissions beyond the property line on which the emissions originate in such a manner as to damage or to interfere with the use of adjacent properties or the maintenance, or attainment of ambient air quality standards.

## Section 714. Control of emissions of organic material.

**A. Purpose.** It is the purpose of this regulation to control the emissions of organic vapors during the storage, transport or dispensing of organic materials.

**B. Storage of volatile organic compounds - four hundred (400)—forty thousand (40,000) gallons (nine and one-half (9.5)—nine hundred fifty-three (953) bbls).**

**1.** No person shall store or permit the storage of gasoline or other volatile organic compounds in any stationary storage container with a nominal capacity greater than four hundred (400) gallons (nine and one-half (9.5) bbls) and less than forty thousand (40,000) gallons (nine hundred fifty-two and four-tenths (952.4) bbls) unless such container is equipped with a submerged fill pipe or is bottom filled. No person shall store or permit the storage of gasoline or other volatile organic compounds in any stationary storage container with a nominal capacity greater than two thousand (2,000) gallons (forty-seven and one-half (47.5) bbls) and less than forty thousand (40,000) gallons (nine hundred fifty-two and four-tenths (952.4) bbls) unless such container is equipped with a vapor control system that has an efficiency of no less than ninety (90) percent by weight of the volatile organic compounds contained in the displaced vapors and is equipped with a pressure relief valve in the atmospheric vent system which maintains a pressure of sixteen (16) ounces per square inch and one-half (½) ounce per square inch vacuum.

**2.** The vapor recovery system shall include the following:

**a.** A vapor-light return line from the storage container to the delivery vessel and a system that will ensure that the vapor return line is connected before gasoline or volatile organic compounds can be transferred into the container (i.e., poppeted connectors from the storage container to the delivery vessel);

**b.** A float vent valve assembly must be installed in the vapor return/vent line on new and existing dual point installations; however, for coaxial installations on

existing stations, a vent sleeve extending six (6) inches below the top of the tank will be allowed; sleeves may be equipped with a one-sixteenth (1/16)-inch air bleed hole;

**c.** The cross sectional area of the vapor recovery line must be at least half of the cross sectional area of the liquid delivery line; and

**d.** Other equipment that has a total collection efficiency no less than ninety percent (90%) by weight of the total hydrocarbon compounds in the displaced vapor, provided that approval of the proposed design, installation and operation is obtained from the Director prior to start of construction.

**3.** Exemptions to this regulation may be granted, provided that the owner or operator shows to the satisfaction of the Director that the container is used exclusively for agricultural purposes or that the facility, based on the most current twelve (12) months' data, dispenses one hundred twenty thousand (120,000) gallons per year or less.

**4.** Compliance with this subsection must be accomplished by the affected owner or operator by October 1, 1987.

**C. Emission of gasoline vapors from gasoline transport vessels.**

**1.** The vapor-laden vessels shall meet the following requirements:

**a.** The transport vessel must be maintained so as to be vapor tight except during sampling, gauging or inspection; these activities shall not be done while loading or unloading; and

**b.** The transport vessel must be equipped, operated and maintained to receive vapors from the gasoline service stations and retain these vapors until they are delivered to an authorized vapor recovery or disposal system.

**2.** Compliance with this subsection must be accomplished by the affected owner or operator by October 1, 1987.

**D. Compliance for vapor tightness.**

**1.** Each gasoline transport vessels delivering or receiving gasoline in the City of Tulsa and Tulsa County must be tested one (1) time per year for vapor tightness. The test must be consistent with Appendix "A," EPA Guidelines Series Document, "Control of Volatile Organic Compound Leaks from Gasoline Tank Trucks and Vapor Collection Systems," EPA 450/2-78-051, or an equivalent method as determined by the Director.

**a.** Tests shall be performed by the owner or a reputable transport service company. Service companies methods and procedures must be certified by Tulsa City-County Health Department.

**b.** A tag showing the date of pressure test and date of certification must be posted on the rear panel of tank. These tags will be supplied by the Tulsa City-County Health Department.

**c.** Terminal owners or operators shall not knowingly allow the gasoline transport to be filled at the terminal if the certification tag is out of date or missing.

**2.** To ensure the integrity of the program outlined in C.1, the Tulsa City-County Health Department will conduct periodic vapor leak testing. This testing must be

consistent with Appendix "B," EPA Guidelines Series Document, "Control of Volatile Organic Compound Leaks from Gasoline Tank Trucks and Vapor Collection Systems," EPA 450/2-78-051.

**a.** Vessels with defective equipment such as boots, seals, hoses and leaky pressure or vacuum relief valves must be repaired within five (5) days.

**b.** Vessels which fail the vapor test by having leaks that exceed five thousand (5,000) ppm must be repaired within ten (10) days.

**c.** Repairs must be made by the owner or a supplier certified by Tulsa City-County Health Department.

**d.** Letters from the vessel owner certifying compliance, with proof of repair attached, must be sent to the Tulsa City-County Health Department within five (5) days.

**e.** Failure to comply with any provision of this subsection will subject the vessel to sanctions which may include removal from service.

**3.** Compliance with this subsection must be accomplished by the affected owner or operator by October 1, 1987.

**E. Loading.** All loading of the above organic material storage tanks shall be conducted by tight fill.

**F. Exemptions:**

**1.** Methane ($CH_4$).

**2.** Any organic material with a vapor pressure less than one and one-half (1.5) psia under actual storage temperatures and pressures.

**3.** Crude oil defined as follows: produced, non-refined hydrocarbon which has a gravity equal to or less than fifty (50) API gravity at sixty degrees (60°) Fahrenheit, as measured in the stock tank and when flashed to the atmospheric stock tank from the final release separator and/or treating facility, loses no more than one and one-half (1.5) percent of the stock tank volume or twenty-five (25) standard cubic feet per barrel of stock tank oil.

**4.** The storage and/or loading of organic materials used for agricultural purposes on farms or ranches.

*(Ord. No. 16838)*

## Section 715. Control of air pollution from sulfur compounds.

**A. Purpose.** It is the purpose of this regulation to control emission of sulfur compounds from stationary sources in the City of Tulsa and thereby to promote and protect the health and welfare of its residents.

**B. Limitation of ambient conditions.** No person shall cause, suffer, allow or permit the emission of sulfur compounds from any premise in such a manner and amounts that the concentrations attributable to such emissions exceed the following at any place beyond the boundary of the property on which the source is located:

$SO_2$

1350 ug/$m^3$ - Three-minute average

1200 ug/$m^3$ - One-hour average

650 ug/$m^3$ - Three-hour average

130 ug/$m^3$ (.05 ppm) Twenty-four-hour average

$H_2SO_4$ and/or $SO_3$ calculated as $H_2SO_4$ 10 ug/$m^3$ (2.45 x $10^{-3}$ ppm)

$H_2S$ 70 ug/$m^3$ (.05 ppm)

Determination of violations may be made either by ambient air monitoring at the property line on which the source is located or by atmospheric diffusion modeling. Testing procedures, diffusion models and equipment to determine whether or not emissions standards required by this subsection are met shall be approved by the Director.

**C. Emission limitation from point sources.** No person shall cause, suffer, allow or permit the discharge into the atmosphere of sulfur compounds from any stack, vent or other such exhaust system, in excess of the following:

**1. Existing installation:**

$SO_2$ 5.32 g/$m^3$ (2,000 ppm)

$H_2SO_4$ and/or $SO_3$ in any combination calculated as $H_2SO_4$

70 mg/$m^3$ (17 ppm) $H_2S$ 140 mg/$m^3$ (100 ppm)

**2. New installations:**

$SO_2$ 1.3 g/$m^3$ (500 ppm)

$H_2SO_4$ and/or $SO_3$ in any combination calculated as $H_2SO_4$ 50 mg/$m^3$ (12.3 ppm)

$H_2S$ 140 mg/$m^3$ (100 ppm)

Where:

g = grams

mg = milligrams

ug = micrograms

ppm = parts per million

Testing procedures and equipment to determine whether or not emissions standards required by this subsection are met shall be approved by the Director.

**D. Specific new source process weights limitations.** No person shall cause, suffer, allow or permit the emission of sulfur compounds into the atmosphere from the following specific new sources in excess of the amounts shown below.

**1. Sulfuric acid plants.**

**a.** $SO_2$ - Two (2) kgm per metric ton (four (4) pounds per ton) of $H_2SO_4$ produced, the total production being expressed as one hundred percent (100%) $H_2SO_4$.

**b.** $H_2SO_4$ - .075 kgm per metric ton (0.15 pounds per ton) of acid produced, the production being expressed as one hundred percent (100%) $H_2SO_4$.

**c.** Visible emission of ¼ Ringelmann (five percent (5%) opacity).

**2. Fuel burning equipment.**

**a.** $SO_x$ measured as $SO_2$ - .36 gm/106 calories (0.2 pounds/$10^6$ BTU), heat input derived from gaseous fossil fuel.

**b.** $SO_x$ measured as $SO_2$ - 1.4 gm/$10^6$ calories (0.8 pounds/$10^6$ BTU), heat input derived from liquid fossil fuel.

**c.** $SO_x$ measured as $SO_2$ - 2.2 gm/$10^6$ calories (1.2 pounds/$10^6$ BTU), heat input derived from solid fossil fuel.

**d.** Where different states of fuels are burned simultaneously, the following formula will apply:

$$[x(.36) + y(1.4) + z(2.2)] / (x + y + z) = \text{Total Heat Input}$$

Where "x" is the percent of total heat input derived from gaseous fuels, "y" is the percent of total heat input derived from liquid fuels; "z" is the percent of total heat input derived from solid fuels.

**3. Nonferrous smelters.** The emission of sulfur oxides, calculated as sulfur dioxide, from new nonferrous smelters is restricted according to the following equations as a maximum two-hour average:

**a.** Copper Smelters: $Y = 0.2X$

**b.** Zinc Smelters: $Y = 0.564X^{0.85}$

**c.** Lead Smelters: $Y = 0.98X^{0.77}$

Where X - Total sulfur fed to smelter (one (1) lb/hr)

Where Y - Sulfur dioxide emissions (one (1) lb/hr)

**4. Paper pulp mill.** The emission of sulfur oxides, calculated as sulfur dioxide, from the blow pits, washer vents, storage tanks, digester, relief and recovery furnace of any new paper pulp mill shall not exceed eighteen (18) pounds per air dried ton of pulp produced, maximum two-hour average.

**E. Hydrogen sulfide emission limit from new petroleum or natural gas processing equipment.** No person shall cause, suffer or allow the discharge into the atmosphere of hydrogen sulfide from any new petroleum or natural gas processing equipment without removal of the hydrogen sulfide from the exhaust gas or oxidizing it to sulfur dioxide in a system which ensures at all times complete combustion of the hydrogen sulfide with the exhaust gas then being emitted from a stack at least fifty (50) feet in height. Efficiency of these removal or oxidation systems shall not allow emission of more than three tenths (0.3) pounds per hour of hydrogen sulfide as a two-hour maximum, with a maximum efficiency required of ninety-five percent (95%) and a minimum efficiency required of ninety percent (90%) of the hydrogen sulfide in the exhaust gas.

**F. Applicability.** In any situation in which more than one (1) requirement of this regulation is applicable, the more restrictive provision shall govern.

*(Ord. No. 13740)*

## Section 716. Continuous monitoring of emissions, recording and reporting.

**A. Purpose.** It is the purpose of this regulation to provide for continuous monitoring of sources of air pollution, thereby maintaining a continuous record of pollutant emission.

**B. General provisions.** The Director may require the owner or operator of any air contaminant source to:

**1.** Install, use and maintain continuous monitoring equipment, in situ, the design, method and calibration of which the Director shall approve;

**2.** Sample and report emissions in accordance with methods which the Director shall prescribe;

**3.** Establish and maintain records of monitoring and data which shall be prepared and calculated daily, in units approved by the Director; and

**4.** Make records and data available to the Director at any reasonable time.

### Section 717. Sampling, testing and reporting.

**A.** The Director may conduct tests of emissions of air contaminants of any source. Upon request of the Department, the person responsible for the source to be tested shall provide necessary ports in stocks or ducts to provide compliance with procedures approved by the Director and such other safe and proper sampling and testing facilities including, but not limited to, scaffolding and access, but exclusive of instruments and sampling devices as may be necessary for proper determination of the emission of air contaminants.

**B.** The Director may require the owner or operator responsible for emissions of air contaminants to conduct tests of such emissions. Such tests shall be conducted, performed and reported in accordance with methods as the Director shall prescribe.

**1.** A pre-test plan shall be submitted to the Director of Health twenty (20) working days prior to the proposed test date. Written approval or disapproval of a pre-test plan shall be completed within not more than ten (10) working days after receipt of the plan.

**2.** The Director will furnish self-duplicating data sheets to the person responsible for performing each test. These data sheets must be completed during the sample and the duplicate copy given to the Director's on-site representative immediately upon completion of each test run.

### Section 718. Right of review and exceptions.

There is hereby created an Environmental Review Board ("Review Board") composed of five (5) members. One member shall be selected by the Environmental Advisory Council from its membership. Four (4) members shall be appointed by the Board. The Review Board shall select annually a Chairman from among its members. Meetings shall be called by the Chairman. Three (3) members shall constitute a quorum.

**A.** When, in the opinion of the Director, a violation of this Clean Air Code ("the Code") exists, he may by conference, conciliation and persuasion, endeavor to the fullest extent possible to eliminate such violation. In case of the failure by conference, conciliation and persuasion to correct or remedy any claimed violation, the Director may cause to have issued and served personally or by certified mail a written order upon the person complained against. The order shall specify the provisions of the Code alleged to constitute a violation thereof and shall order that the necessary corrective action be taken within a reasonable time to be prescribed in such order. Any such order shall become final and enforceable, unless the person or persons named therein request in writing a hearing before the Review Board no later than fifteen (15) days after the date such order is served. The notice of hearing shall be delivered in person or by certified mail to the alleged violator or violators not less than ten (10) days before the time set for hearing. Provided, however, that the aforementioned right of review shall not preclude the issuing of code citations or the filing of criminal charges.

**B.** The respondent to the order may file a written answer thereto and may appear at such hearing in person or by representative, with or without counsel, and may make oral

argument, offer testimony or cross examine witnesses in support of the complaint, or take any combination of such actions. In all proceedings before the Review Board, with respect to any alleged violation of the Code, the burden of proof shall be upon the Director.

**C.** The Review Board shall make such final determination as it shall deem appropriate under the circumstances and it shall request the Director of Health to issue a final order in accordance with its findings. The Director shall notify the respondent thereof in writing by certified mail.

**D.** The Review Board may appoint such hearing officers, review panels or technical advisers as it deems necessary to assist it in the hearings herein authorized; provided, however, that if a hearing officer or review panel is appointed to take testimony and evidence, a written transcript of the record shall be made and the hearing officer or review panel shall make written findings of fact, conclusions of law and recommended action to the Review Board. The review panel shall be confined to the factual record made at the hearing. The Review Board shall reverse or remand the order of the Director only if it finds that the order is not supported by reliable probative and substantial evidence in the whole record or that the order is legally incorrect. The final determination of the Board shall be in writing and shall contain findings of fact and conclusions of law.

**E.** Either party may appeal an adverse ruling by the Review Board to the City Council of the City of Tulsa by filing a written notice of appeal with the City Clerk within forty-eight (48) hours. Such appeal shall be heard by the City Council at the next available meeting following the filing of such appeal. Any appeal heard by the City Council shall be confined to the factual record made at the hearing of the Review Board or hearing officer.

## Section 719. Variances.

Any person seeking a variance from the Clean Air Code shall do so by filing a petition for variance with the Director of Health. The Director shall promptly investigate such petition and make a recommendation to the Review Board as to the disposition thereof. Upon receiving the recommendation of the Director, the Review Board shall set a date for public hearing thereon and shall prescribe the length and type of notice to be given by the petitioner. Such hearing shall be held as provided above, except the burden of proof shall be on the petitioner. The Review Board may grant individual variances beyond the limitations prescribed in this code.

## Section 720. Penalties.

Any person who violates any provision of the Clean Air Code or any final order issued by the Director of Health pursuant to the provisions of this code and fails to permanently cease such violation of such order within ten (10) days after receipt of notice from the Department of Health specifying such violation shall be deemed to be guilty of a misdemeanor and upon conviction thereof shall be punished by imprisonment in the City jail for not more than ninety (90) days and/or by a fine of not more than Three Hundred Dollars ($300.00), excluding costs. Each day of violation shall be considered a separate offense.

*(Ord. No. 13740)*

## Section 721. Limitations.

Nothing in this code shall be construed to:

**A.** Abridge, limit, impair, create, enlarge or otherwise affect substantially or procedurally the right of any person to damages or other relief on account of injury to persons or property and to maintain any action or other appropriate proceeding therefor;

**B.** Grant to the Board any jurisdiction or authority with respect to air contamination existing solely within commercial and industrial plants, works or shops;

**C.** Affect the relations between employers and employees with respect to or arising out of any condition or air contamination or air pollution; or

**D.** Supersede or limit the applicability of any law or ordinance relating to sanitation, industrial health or safety.

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## CHAPTER 8. MISCELLANEOUS SANITARY REGULATIONS

Section 800. Inspection—Rest rooms.
Section 801. Inspection—Industrial plants and factories.
Section 802. Offensive trades.

### Section 800. Inspection—Rest rooms.

All rest rooms, comfort stations and public lavatories situated in hotels, depots, stations, public buildings and other public places are hereby placed under the direct supervision and control of the Director of Health. To prevent the spread of disease from such places, the Director shall prescribe such rules of sanitation and shall require proper ventilation, heating, seating, construction, maintenance, operation and use.

### Section 801. Inspection—Industrial plants and factories.

It shall be the duty of the Director of Health to require proper and adequate lighting, ventilation and sanitation in all industrial plants or factories within the City in which human beings are employed to work. He shall require that proper heating, drinking water, toilets and working conditions be provided as may be necessary to protect the health and safety of such employees.

### Section 802. Offensive trades.

No person shall boil, heat, dry, keep, store or manufacture any offal, swill, bones, fat, tallow or lard, or skin any skunk or other wild animal having an offensive odor, or slaughter any hog, sheep, horse or other domestic animal within the corporate limits of the City of Tulsa, except as otherwise expressly provided by the Revised Ordinances of the City of Tulsa. No business of rendering, bone boiling, bone burning, gut cleaning, skinning or making glue from any part of dead animals, drying, storing any blood, scrap, fat, grease, dried skunk hides or green skunk hides, or the conducting of any business or occupation that will or does generate any unwholesome, offensive or deleterious odors, gas, smoke, or exhalation, or that is or would be dangerous or detrimental to life or health, shall be carried on anywhere in the City of Tulsa without a permit from the Director of Health.

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## CHAPTER 9. SEPTIC TANKS

Section 900. Definitions.
Section 901. License required.
Section 902. Permit required.
Section 903. Percolation test required.
Section 904. Permit and inspection fee.
Section 905. Collection and deposit of fees.
Section 906. Prohibited locations.
Section 907. Construction regulations.
Section 908. Hook-up to public sanitary sewer system required.

### Section 900. Definitions.

The following definitions shall apply in the interpretation and the enforcement of this chapter:

**A.** **Septic tank installer** means any person, firm or corporation which engages in the business of installing or repairing septic tank systems;

**B.** **Septic tank system** means all or any portion of any structure or system receiving waste products by pipe from any residence, business or industrial plant, other than those connected directly to an approved sanitary sewer; and

**C.** **Director** means the Director of the City-County Health Department or his authorized representative.

### Section 901. License required.

Any person who installs or repairs a septic tank system or systems shall obtain a license from the Director. A knowledge of plumbing shall not be required for a license but all such applicants shall show a knowledge of the construction, installation, operation and use of septic tank systems. Upon satisfactory proof of having the required knowledge in construction of septic tank systems, the Director shall, upon the payment of an annual fee of Fifty Dollars ($50.00), issue a license to install and repair septic tank systems; provided that such person shall first file a bond unto the City of Tulsa with the Director in the sum of Two Thousand Dollars ($2,000.00) with a surety company authorized to do business in the state of Oklahoma, as surety thereon to the effect and on the conditions that he, the principal, the surety or either of them shall pay damages to any person resulting from the faulty or improper construction of any septic tank system constructed or repaired by him and that he shall faithfully perform the duties relating to such trade and shall comply with all conditions of the Revised Ordinances of the City of Tulsa relating to the same. In addition to the bond hereinabove required, the applicant shall also deposit with the Director the sum of Two Hundred Dollars ($200.00) as a security deposit which will guarantee the payment of permit inspection fees. Such deposit shall be used to cover any delinquent or unpaid permit inspection fees and such may be deducted therefrom, as hereinafter provided. Violation of any of the provisions of this chapter or any condition of term of such license shall be deemed grounds for revocation or suspension of such license. A hearing regarding the suspension or revocation of such license shall be conducted by the Environmental Review Board as created in Section 718 of this title.

Prior to such action, the Director shall notify the license holder in writing, stating the reasons for which the license is subject to revocation and advising that the license shall be revoked or suspended at the end of five (5) days following the service of such notice, unless a written request for a hearing is filed with the Director, by the license holder, within such five (5) day period. The notice of hearing shall be delivered in person or by certified mail to the license holder not less than ten (10) days before the time set for hearing.

Notwithstanding the provisions contained herein, an owner may install a septic tank system on his own property, without a license, provided that he takes out the necessary permits and meets all other requirements as outlined in this chapter. Payment shall be made for the permit upon application.

**Section 902. Permit required.**

Before any person shall construct, repair or install any septic tank system within the corporate limits of the City of Tulsa wherever the plumbing system is connected directly or indirectly with the waterworks systems of the City of Tulsa, he shall obtain a permit therefor from the Tulsa City-County Health Department. The refusal, failure or neglect to obtain such a permit before commencing such construction, repair or installation shall be unlawful, and each day thereafter in which such work shall be unlawful and a separate offense.

It shall be unlawful for any owner or agent in charge of any premises in the City of Tulsa or any premises outside the City, wherever the plumbing system is connected directly or indirectly with the waterworks system of the City of Tulsa, to install or allow to be installed any septic tank system without meeting the requirements of this chapter for proper permit and inspection by the City-County Health Department.

**Section 903. Percolation test required.**

A percolation test shall be required to determine the acceptability of soil before any person shall construct or install any septic tank system within the corporate limits of the City of Tulsa. Such percolation test shall be conducted in accordance with ODH Bulletin No. 600 and shall be performed by the Tulsa City-County Health Department, or persons certified by the Oklahoma State Department of Health.

**Section 904. Permit and inspection fee.**

An inspection fee of Twenty-Five Dollars ($25.00) shall be paid to the Director of the Tulsa City-County Health Department upon the issuance of each permit to build, repair or install a septic tank system. Upon the payment of the inspection fee, it shall be the duty of the Director to inspect the plans of the proposed construction, the location and actual construction. Upon the completion of the work, the Director shall approve the septic tank system before any connection or use of the system is made. Any reinspection of a septic tank system shall be made only at an additional fee of Twenty-Five Dollars ($25.00) for each reinspection.

All permit and inspection fees herein enumerated shall be paid to the Director of the Tulsa City-County Health Department and shall be charged to the licensed septic tank system installer on a monthly basis; and they shall be billed by the Tulsa City-County Health Department on the first of each month for all permit and inspection fees assessed during

the preceding month. Such fees shall then be due and payable at once and if not paid in full by the 10th of the month in which billed, the total amount due and unpaid shall be deducted from the cash deposit of the licensed septic tank system installer in payment of such fees, at which time the issuance of permits to the particular licensed septic tank system installer shall be suspended until and unless the cash deposit is supplemented to bring it up to the required amount.

*(Ord. No. 15666)*

### Section 905. Collection and deposit of fees.

All fees collected by the Tulsa City-County Health Department under authority of these regulations shall be deposited with the County Treasurer of Tulsa County pursuant to 19 O.S.1991, § 681, and shall be transferred and added to the Health Department's appropriations pursuant to 63 O.S.Supp.1996, § 1-206.1.

### Section 906. Prohibited locations.

**A.** It shall be unlawful for any person to install, maintain, operate or use any septic tank system within the boundaries of any sewer district or where such system is upon any premises which abut upon any public district or public lateral sewer line, or which is within two hundred fifty (250) feet of such line. All septic tank systems hereafter constructed in violation of this section are hereby declared to be a public nuisance and shall be abated, except for septic tank systems installed as part of an approved and permitted Net-Zero Water Project authorized by Chapter 15 of Title 11-C of the Revised Ordinances of the City of Tulsa.

**B.** It shall be unlawful for any person to construct, install or maintain any drive, paving, surfacing, swimming pool, lawn sprinkler system, building or other structure on or over the part of a lot or parcel of land containing septic tank system lateral lines.

*(Ord. No. 17025; Ord. No. 24169, § 3, 7-10-2019)*

### Section 907. Construction regulations.

No private sewage disposal system shall be constructed, repaired or installed unless it shall comply with the minimum requirements prescribed by the State Board of Health of the state of Oklahoma for such disposal systems.

*(Ord. No. 13666)*

### Section 908. Hook-up to public sanitary sewer system required.

The owner of a lot served by a septic tank system, in a subdivision also having a public sanitary sewer system, shall within ninety (90) days from the date of notification in writing by the City of Tulsa, at such owner's expense, disconnect from the septic tank system, and connect the building sewer line to the public sanitary sewer system, all in accordance with the Revised Ordinances and duly adopted regulations of the City of Tulsa. This Section shall not apply to a septic tank system installed as part of an approved and permitted Net-Zero Water Project authorized by Chapter 15 of Title 11-C of the Revised Ordinances of the City of Tulsa.

*(Ord. No. 17025; Ord. No. 24169, § 4, 7-10-2019)*

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# CHAPTER 10. REGULATION OF PRIVATELY OPERATED DOMESTIC SEWAGE LAGOONS

Section 1000. Scope.
Section 1001. Definitions.
Section 1002. Restrictions on privately operated domestic sewage lagoons.
Section 1003. Variances.
Section 1004. Privately operated domestic sewage lagoons.
Section 1005. Permit required.
Section 1006. Permit and inspection fee.

## Section 1000. Scope.

This chapter shall include all general requirements and prohibitions in respect to the construction, use, operation and maintenance of all privately operated domestic sewage lagoons.

## Section 1001. Definitions.

For the purpose of this chapter, the following terms, phrases, words and their derivations shall have the meaning given herein:

**A.** **Underground wastewater disposal systems** shall be the same as "septic tank system," defined in Subsection 900.B of this title, as all or any portion of any structure or system receiving waste products by pipe from any residence business or industrial plant, other than those connected directly to an approved sanitary sewer.

**B.** **Oklahoma State Department of Health (O.S.D.H.) Standards** shall mean those standards for Water Pollution Control Facilities and for Public Water Supply Facilities adopted by the State Board of Health under authority of the statutes of the state of Oklahoma as they are now written and may be hereafter amended.

**C.** **City** shall mean the City of Tulsa, a municipal corporation.

**D.** **Domestic sewage** shall mean water-carried wastes normally discharging into the sanitary sewers of dwellings (including apartment houses and hotels), office buildings, factories and institutions, free from storm surface water and industrial wastes.

**E.** **Sanitary sewer** shall mean a sewer that conveys sewage or wastewater, and into which storm, surface and ground waters or unpolluted industrial wastes are not admitted intentionally.

**F.** **Domestic sewage lagoon** shall mean a total retention domestic sewage treatment pond.

## Section 1002. Restrictions on privately operated domestic sewage lagoons.

Privately operated domestic sewage lagoons shall not be permitted, except those in operation prior to the effective date of these provisions or as otherwise provided herein.

## Section 1003. Variances.

Variance may be granted by the City permitting the use of a privately operated domestic sewage lagoon to replace a failed existing septic tank system, provided that the existing septic tank system is located on a tract of land two and one-half (2.5) acres or larger.

## Section 1004. Privately operated domestic sewage lagoons.

A privately operated domestic sewage lagoon shall be allowed only under the following conditions:

**A.** Documentation shall be provided showing that the property failed to pass percolation tests required for a septic tank system and does not have a publicly operated sanitary sewer system within one thousand (1,000) feet;

**B.** The City shall determine that the installation of a domestic sewage lagoon is necessary for the protection of the health and welfare of the public and is in compliance with the most recent O.S.D.H. Standards;

**C.** The domestic sewage lagoon shall be located entirely on the property to be served, and the center line of the closest lagoon dike must be located a distance of three hundred (300) feet from the adjoining property lines and six hundred (600) feet from the closest house on adjacent property;

**D.** A septic tank, or some other form of pretreatment to remove floating and settleable solids shall be installed through which domestic sewage is discharged into the lagoon;

**E.** The lagoon shall be surrounded by a chain link fence at least six (6) feet high with climb guard, or a fence of equivalent design to prevent entry by unauthorized personnel; an access gate of sufficient width to accommodate mowing equipment shall be provided; and all access gates shall be secured with locks;

**F.** Warning signs shall be posted on the fence on each side of the lagoon; the sign shall state, "Warning! Sanitary SEWAGE Lagoon. KEEP OUT!" in letters at least one (1) inch tall;

**G.** The lagoon shall be operated and maintained in accordance with the O.S.D.H. Standards; and

**H.** If the owner fails to maintain such lagoon, the City shall be empowered to provide the necessary maintenance and to recover the costs thereof against the owner or operator.

## Section 1005. Permit required.

Before any person shall construct, repair or install any privately-operated sewage lagoon within the corporate limits of the City of Tulsa, he shall obtain a permit from the City; the refusal, failure or neglect to obtain such a permit before commencing such construction, repair or installation shall be unlawful, and each day thereafter in which such work shall be done shall be unlawful and a separate offense.

## Section 1006. Permit and inspection fee.

An inspection fee of Two Hundred Dollars ($200.00) shall be paid for the issuance of each permit to build, repair or install a privately operated domestic sewage lagoon. Upon the payment of the inspection fee, it shall be the duty of the City to inspect the plans of the proposed construction, the location and actual construction. Upon the completion of the work, the City shall approve the sewage lagoon before any connection or use of the sewage lagoon is made.

*(Ord. No. 16324)*

## CHAPTER 11. CHILD CARE FACILITIES

Section 1100. Definitions.
Section 1101. Medications, administration, labeling, storage.
Section 1102. Immunization certificate, procedures, exemptions.
Section 1103. Exceptions.

### Section 1100. Definitions.

The following definitions shall apply in the interpretation and the enforcement of this chapter:

**A.** **Child care facility** shall mean any public or private institution, child care center or family day care home providing either full-time or part-time care for six (6) or more children away from their own homes, and which is owned or controlled by a political subdivision, a corporation, an unincorporated organization or association or an individual; and

**B.** **Director** means the Director of the Tulsa City-County Health Department or his authorized representative.

### Section 1101. Medications, administration, labeling, storage.

It shall be unlawful for any person, firm, corporation or legal entity to cause or permit any medication to be administered in a child care facility unless the following requirements are met:

**A.** Written request signed by the parent or legal guardian, must be on file at the child care facility and shall be available to the Health Department for inspection; the request is to include the child's name, the date and the name of the medication to be administered and is to become a part of the child's records;

**B.** All medications must be properly labeled with the child's full name, name of drug, dosage and time to be given; and

**C.** All medications are to be kept in a locked cabinet or stored in a safe manner approved by the Director.

### Section 1102. Immunization certificate, procedures, exemptions.

**A.** No person, firm, corporation, partnership or other legal entity shall cause or permit a minor child to be admitted to any child care facility operating within the City of Tulsa unless the parents or guardians of the child can present certification from a licensed physician or authorized representative of any state or local department of public health that such child has received or is in the process of receiving recommended immunizations as herein specified appropriate for the child's age or that the child is likely to be immune as a result of the disease.

**B.** Immunizations required, and the manner and frequency of their administration, shall be in compliance with the current immunization recommendations of the Oklahoma State Department of Health and shall conform to recognized standard medical practices in the State. The Tulsa City-County Health Department shall supervise and secure the enforcement of the required immunization program.

**C.** The parents, guardian or person having legal custody of any child may claim an exemption from the immunization on medical, religious or personal grounds. The

exemption may be claimed by completing forms provided to the child care facility by the Director, which forms must be kept on file at the child care facility and be made available to the Director upon inspection.

**D.** If the parents or guardians are unable to pay, the Tulsa City-County Health Department shall provide, without charge, the immunizations required by this chapter.

### Section 1103. Exceptions.

This section shall not be applicable to a person or persons receiving, keeping, caring for or boarding children under the following conditions:

**A.** When a child is related within three (3) degrees, either by blood or marriage, to the person caring for such child;

**B.** When a child is being cared for by its natural parents or by a person who has adopted or made a bona fide application to proper authorities for the adoption of the child being cared for;

**C.** When a child is being cared for by the legal guardian or is a bona fide foster parent of such child; and

**D.** When fewer than six (6) children are cared for away from their home.

*(Ord. No. 14168)*

## CHAPTER 12. PUBLIC BATHING PLACE CODE

Section 1200. Adoption of "Design Standards and Operational Criteria for Public Bathing Places."
Section 1201. Additions, insertions, deletions, and changes to the "Design Standards and Operational Criteria for Public Bathing Places," adopted by the Oklahoma Board of Health, March 27, 1986, and codified as Chapters 315 and 320 of the Oklahoma Administrative Code.
Section 1202. Collection and deposit of fees.
Section 1203. Penalty.

### Section 1200. Adoption of "Design Standards and Operational Criteria for Public Bathing Places."

That certain document, three (3) copies of which are on file in the Office of the City Clerk, Tulsa, Oklahoma, being marked and designated "Design Standards and Operational Criteria for Public Bathing Places," adopted by the Oklahoma Board of Health on March 27, 1986, codified December 31, 1991, as Chapter 315 and Chapter 320, Title 310, Oklahoma Administrative Code, is adopted as the "Public Bathing Code" of the City of Tulsa, Oklahoma, for the control of public bathing places as herein provided; and each and all of the rules and regulations, provisions, penalties, conditions and terms contained therein are adopted and made a part hereof of this code.

*(Ord. Nos. 17222, 19359)*

### Section 1201. Additions, insertions, deletions, and changes to the "Design Standards and Operational Criteria for Public Bathing Places," adopted by the Oklahoma Board of Health, March 27, 1986, and codified as Chapters 315 and 320 of the Oklahoma Administrative Code.

The following sections of the "Design Standards and Operational Criteria for Public Bathing Places" are revised as follows:

**A. Definitions.** For the purpose of this code, the following terms, phrases, words and their derivations shall have the meaning given herein; and words used in the masculine gender comprehend as well the feminine gender and neuter:

1. **Person** shall mean any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, municipality or other legal entity or their representative, agent or assigns.
2. **Department** shall mean the Oklahoma State Department of Health and shall include the Tulsa City-County Health Department.
3. **State Commissioner of Health or Commissioner** shall also include the Director of the Tulsa City-County Health Department, or his authorized representative.
4. **Director** shall mean the Director of the Tulsa City-County Health Department, or his authorized representative.
5. **Manager** of operations shall mean an individual responsible for water chemistry and water temperatures, recirculation efficiency and maintenance of filtration system, safety and environmental hazards, adequate and proper signs and current records of operation.

6. **Seasonal public bathing place** shall mean one which is operated only during six (6) calendar months of each year; those operating during the entire year are nonseasonal.

**B. Operating a public bathing place.**

1. **License required.** It shall be unlawful for any person to operate or maintain a public bathing place unless he has obtained a license to operate a public bathing place from the Director. Only persons who comply with the provisions of this code shall be entitled to receive and retain such a license. The license shall be posted in a conspicuous place within the confines of the public bathing place.
2. **Procedure for obtaining license.**
   a. Any person desiring to operate a public bathing place shall make written application for a license to the Director on forms provided by the Director, and shall pay a fee for the license of One Hundred Dollars ($100.00) for each seasonal public bathing place or One Hundred Fifty Dollars ($150.00) for a nonseasonal public bathing place.
   b. Upon receipt of such an application and fee, the Director shall make an inspection of the facility to determine compliance with the provisions of this code.
   c. When the inspection reveals that applicable requirements have been met, a license shall be issued to the applicant by the Director.
   d. The Director may, for good cause shown, waive the fee required herein for any governmental agency supported in whole or in part by public funds, but such agency is not exempt from qualifying for and obtaining a license as required by this code.
   e. Renewal applications for a license shall be made on or before the first day of July of each year. If a renewal application is not made or if the fee is not paid on or before the first day of August, an additional charge of ten percent (10%) of the fee shall be paid.
   f. Applications to operate a new public bathing place shall be made in the same manner as set forth above, excepting that the application, inspection and license fee shall be reduced by one-half (½) if application is made during the period between January 1 and June 30.
3. **Duration and non-transferability of license.** The license to operate a public bathing place shall not be transferable to other persons or other locations. All licenses, unless otherwise suspended or revoked as provided herein, shall be valid for either the period stated for a seasonal public bathing place or twelve (12) months for a nonseasonal public bathing place.
4. **Suspension or revocation of license.** The license to operate a public bathing place may be temporarily suspended by the Director without prior warning, notice or hearing, if he has cause to believe that, in his opinion, an imminent public health hazard exists. Any person whose license to operate has been suspended may make written request to the Director within twenty-four (24) hours to determine if the imminent health hazard has been corrected. The Director may permanently revoke the license for serious or repeated violations of this code after the opportunity for a hearing has been provided.

5. **License revocation hearing procedure.** The license holder shall be served notice in writing by the Director, stating the reasons for which the license shall be permanently revoked at the end of five (5) days following service of such notice, unless a written request for hearing is filed with the Director by the permit holder within such five-day period. Any license holder whose license has been revoked may appeal to the Council of the City of Tulsa, by written notice, postmarked within forty-eight (48) hours after the hearing.

**C. Certified manager of operations for a public bathing place.**

1. **Certification required.** It shall be unlawful for any person owning, operating or managing a public bathing place to fail to employ or fail to retain on site at least one (1) certified manager of operations who is full-time supervisory personnel of such establishment and who holds a valid manager of operations certificate issued by the Director. A certified manager of operations must use his certificate only at the site, unless the Director, for good cause shown, grants a waiver of such requirement.
2. **Procedure for obtaining certification.**
   - **a.** Any person desiring to obtain certification as a manager of operations of a public bathing place shall make written application on forms provided by the Director, shall attend and successfully complete either a one-day training course conducted by the Director or another course of instruction approved by the Director. If a person designated by an owner as manager of operations is not certified, he shall attend and successfully complete the next training course conducted after his designation.
   - **b.** The certification of a manager of operation shall expire five (5) years from the date of certification, and the manager must repeat and complete the training course to maintain certification. The fee for attending a training course for the purpose of becoming a manager of operations of a public bathing place shall be Forty Dollars ($40.00) and shall be paid to the Director.
   - **c.** An administrative fee of Ten Dollars ($10.00) shall be paid for each duplication of a lost certificate.

*(Ord. Nos. 17222, 19359)*

### Section 1202. Collection and deposit of fees.

All fees collected by the Tulsa City-County Health Department under authority of this code shall be deposited with the Tulsa County Treasurer, pursuant to 19 O.S.1991, § 681, and shall be transferred and added to the Health Department's appropriations pursuant to 63 O.S.Supp.1997, § 1-206.1.

*(Ord. Nos. 17222, 19359)*

### Section 1203. Penalty.

Every person convicted of a violation of this code shall be guilty of an offense and upon conviction shall be punished by imprisonment in the City jail for a period not exceeding ninety (90) days or by a fine not exceeding Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or both such fine and imprisonment.

*(Ord. Nos. 17222, 19359)*

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## CHAPTER 13. PENALTY

Section 1300. Penalty.
Section 1301. Collection and deposit of fees.

### Section 1300. Penalty.

Unless otherwise expressly provided in this title, every person convicted of a violation of any provision of this title and the sections thereunder shall be guilty of a misdemeanor offense, and upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

*(Ord. Nos. 13370, 20669)*

### Section 1301. Collection and deposit of fees.

All fees paid directly to and collected by the Tulsa City-County Health Department under the authority of this title shall be retained by the Tulsa City-County Health Department as consideration for and to defray the cost of providing the services generating such fees, and shall be deposited with the County Treasurer of Tulsa County pursuant to 19 O.S.1991, § 681, and shall be transferred and added to the Health Department's appropriations pursuant to 63 O.S.Supp.2000, § 1-206.1.

All fees paid directly to and collected by the Finance Officer of the City of Tulsa under the authority of this title shall be retained by the City of Tulsa; provided, however, that seventy percent (70%) of all fees collected under authority of the Food Code relating to food establishments shall be paid by the City to the Tulsa City-County Health Department as consideration for and to defray the cost of supplying the services to process applications and inspect such establishments.

*(Ord. Nos. 14084, 20146)*

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# TITLE 17-A DEPARTMENT OF INFORMATION AND COMMUNICATIONS SERVICES (REPEALED)*

*NOTE: This title was repealed by Ordinance No. 18363, effective January 18, 1995.

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# TITLE 18 INSURANCE AND BONDS

## Chapter 1. Insurance and Bonds

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## CHAPTER 1. INSURANCE AND BONDS

Section 100. Contractor's insurance and bonds.
Section 101. Liability insurance.
Section 102. Contractor's bonds.
Section 103. Official bonds.
Section 104. Professional liability insurance for architectural and engineering firms.
Section 105. Approval.
Section 106. Records.

### Section 100. Contractor's insurance and bonds.

Any and all persons, firms or corporations awarded a contract by the City of Tulsa for the doing of any public construction work shall, before such work is commenced and before such contract is executed and approved by the City, procure a contractor's performance bond, a statutory labor and materialmen's payment bond and a maintenance bond, the latter of which shall run for one (1) year from the date of acceptance of the work by the City. The contractor shall also procure general liability insurance, worker's compensation insurance and an owner's protective liability insurance policy as prescribed in Section 101 herein.

### Section 101. Liability insurance.

Public contractor's liability insurance policies shall name the contractor as assured and shall contain an agreement upon the part of the insurer to indemnify the contractor against any and all actions, claims, judgments or demands for damages from injuries of any kind and character, sustained by any person or persons because of such public work. The amount of indemnity shall be in such sums as the Mayor may determine but shall in no event be less than Five Thousand Dollars ($5,000.00) for damages or injuries to any single person, shall be not less than Ten Thousand Dollars ($10,000.00) for damages or injuries to more than one person arising from a single accident and shall be not less than One Thousand Dollars ($1,000.00) for any damages to property of one or more persons. Such policy of insurance shall be written by a solvent insurance or bonding corporation, mutual association or reciprocal or inter-insurance association in good standing and duly licensed to transact business within the state of Oklahoma. The contractor shall also furnish an owner's protective liability insurance policy with the City of Tulsa as the named insured, issued by the same insurance company as the contractor's general liability insurance and indemnifying the City of Tulsa against any and all actions, claims, judgments or demands arising from injuries of any kind and character sustained by any person or persons because of work performed by the contractor.

*(Ord. No. 9230)*

### Section 102. Contractor's bonds.

Contractor's bonds required herein shall be executed by a corporate surety authorized to do business in the state of Oklahoma. They shall be in favor of the City of Tulsa, shall be in a sum not less than the amount of the contract; and they shall provide that the contractor shall pay all indebtedness incurred for labor or materials furnished in the construction of the public building or in the making of the public improvements and that any person to whom there is due any moneys for furnishing labor or materials upon the public building or improvement shall have a right of action upon the bond against the makers of the bond.

## Section 103. Official bonds.

Each officer and employee of the City of Tulsa required to give an official bond shall execute the bond on such forms and in such sums as the Council may require except as otherwise provided by the Charter of the City of Tulsa. Such bonds shall be executed by a corporate surety authorized to do business in the state of Oklahoma, shall be in favor of the City of Tulsa and shall be conditioned to secure the faithful discharge of the official duties of the person and to lawfully account for all funds and property of the City coming into the possession of the person. It shall be the duty of the person to keep such bonds in good standing. The City of Tulsa shall pay all premiums on such bonds.

## Section 104. Professional liability insurance for architectural and engineering firms.

**A.** Every architectural or engineering firm entering into a contract with the City of Tulsa or with any department of the City of Tulsa shall carry professional liability insurance coverage in the following amounts:

| Project Category | Minimum Insurance Coverage |
|---|---|
| Studies and Reports | $100,000.00 |
| Construction Projects | |
| Less than $500,000 cost | $100,000.00 |
| $500,000 to $1,000,000 cost | $250,000.00 |
| More than $1,000,000 cost | $500,000.00 |

**B.** The City of Tulsa may require professional liability insurance coverage in a greater amount if it is in the best interest of the public and the greater amount is approved by the Council.

**C.** The duration of professional liability insurance coverage for construction projects shall extend for two (2) years from the date of the City's acceptance of the completed construction project.

## Section 105. Approval.

All policies of insurance, indemnification agreements and bonds executed to the City of Tulsa shall be filed with the City Clerk who shall ascertain whether the surety is authorized to do business in the state of Oklahoma, then submitted to the City Attorney for his approval as to form and then submitted to the Mayor for approval.

## Section 106. Records.

It shall be the duty of the City Clerk to keep and preserve a file of all insurance policies and bonds in which the City has an interest. Records shall be kept showing the name of the insurer, the insured, the nature of the policy or bond, the date and expiration, the amount and the amount of premium paid. The City Clerk shall call the attention of the Mayor to the approaching expiration date of any policy or bond in such time as is reasonably necessary to provide for the renewal or extension of the policy or bond.

# TITLE 19 LEGAL DEPARTMENT

## Chapter 1. Organization and Duties

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## CHAPTER 1. ORGANIZATION AND DUTIES

Section 100. Organization.
Section 101. City Attorney as legal adviser.
Section 102. Keep docket.
Section 103. Custody of legal papers.
Section 104. Prepare ordinances.
Section 105. Council meeting.
Section 106. Examine records.
Section 107. Contract obligations.
Section 108. Inventory.
Section 109. Opinions.
Section 110. Publication.
Section 111. City Investigator.
Section 112. Reserved.

### Section 100. Organization.

A Legal Department shall consist of the City Attorney, and such assistant city attorneys as may be necessary to accomplish the duties required by the Amended Charter and Revised Ordinances of the City of Tulsa. The City Attorney shall be appointed by the Mayor in accordance with the provisions of Article X of the Amended Charter of the City. Such assistants shall perform duties assigned by the City Attorney who shall be executive head of the Legal Department.

### Section 101. City Attorney as legal adviser.

The City Attorney shall be the legal adviser of the Mayor, the Council and all City departments and he shall represent the City as attorney and counsel in all proceedings in which the City is a party before any court or any governmental commission.

### Section 102. Keep docket.

The City Attorney shall preserve in his office a record of all cases in any court in which the City is interested. He shall preserve in his office copies of all written opinions furnished by him to the Council or to any City officer or employee. Such docket, copies and papers shall be the property of the City, and the City Attorney shall, on retiring from office, deliver them together with all accounts, vouchers and necessary information pertaining thereto to his successor in office.

### Section 103. Custody of legal papers.

The City Attorney shall have a right to receive any and all legal papers, books or documents belonging to the City upon leaving a receipt therefor. He may demand and receive from any officer or employee of the City, any book, paper or document necessary to be used in any suit, or which he may desire for his examination.

### Section 104. Prepare ordinances.

The City Attorney shall, upon request, prepare all ordinances, resolutions, contracts, bonds and other written instruments in which the City is concerned.

**Section 105. Council meeting.**

The City Attorney shall be present in person at all meetings of the Council to provide legal advice to the Council; provided that the City Attorney may designate an assistant to be present at Council meetings when it is impossible or impracticable for the City Attorney to attend in person.

**Section 106. Examine records.**

It shall be the duty of the City Attorney, upon the request of the Council, to examine the records of the different City officers, to give legal advice in connection with such records, and to make reports to the Council as the condition may warrant.

**Section 107. Contract obligations.**

When an obligation or contract made on behalf of the City of Tulsa granting a right, or easement, or creating a public duty is being evaded or violated, the City Attorney may apply for and seek to obtain such relief as the case may warrant.

**Section 108. Inventory.**

It shall be the duty of the City Attorney to prepare and keep a current, complete inventory of all books, fixtures or other property belonging to the Legal Department. He shall file a copy of the inventory with the Mayor. He shall not permit any of the property in his possession to be removed from the premises in his charge, except by officers or employees of the City in which case he shall take a receipt and require the return of the property within a reasonable time.

**Section 109. Opinions.**

Whenever the Mayor, Council, any Inspector, the head of any department or other proper officer of the City shall desire legal advice or a written opinion from the City Attorney's office on any legal question, such question shall be submitted to the City Attorney in writing, and the City Attorney or an assistant to whom the question may be referred by the City Attorney, shall within a reasonable time render to the person a written opinion. No written opinion prepared by any assistant city attorney shall be delivered to or received by the officer seeking such advice, unless it has been approved in writing by the City Attorney.

**Section 110. Publication.**

No opinions or statements shall be given for publication by any person in the Legal Department except by the City Attorney.

**Section 111. City Investigator.**

With the approval of the Mayor, and subject to the appropriation of funds by the Council, the City Attorney shall have the authority to employ competent persons to investigate cases and other matters in his charge, and he shall have authority to require such persons to perform such services as he may require in connection with the investigation of matters affecting the City. All costs arising from such service, or by virtue of any investigation herein authorized, shall be paid out of the general fund.

**Section 112. Reserved.**

**Editor's note—**Ord. No. 22817, § 1, adopted February 7, 2013, repealed § 112, which pertained to license to use City property. See also the Code Comparative Table.

# TITLE 20 CITY-COUNTY LIBRARY SYSTEM

**Chapter 1. City-County Library System Established**
**Chapter 2. Conduct and Property**

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## CHAPTER 1. CITY-COUNTY LIBRARY SYSTEM ESTABLISHED

Section 100. City-County Library established.
Section 101. Agreement between City and County.

### Section 100. City-County Library established.

There is hereby created a Tulsa City-County Library System as authorized by the Metropolitan Library Act, 65 O.S.1981, §§ 551, *et seq.*, as amended, to consist of a City-County Library Commission, a Librarian and such other employees as may be appointed to carry out the functions of the Tulsa City-County Library System.

### Section 101. Agreement between City and County.

The Tulsa City-County Library System shall be operated pursuant to a library contract executed by the City of Tulsa, Oklahoma, and the County of Tulsa, Oklahoma, on the second day of June, 1961, and any amendments thereto.

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## CHAPTER 2. CONDUCT AND PROPERTY

Section 200. Defacing property.
Section 201. Books taken without consent.
Section 202. Boisterous conduct.
Section 203. Penalty.

### Section 200. Defacing property.

It shall be unlawful for any person to mutilate, mark upon, scratch or willfully injure the Tulsa City-County Public Library buildings or to smear upon such buildings, furniture, fixtures or appurtenances any paint, chalk marks or other substance which in any manner injures or defaces the appearance of such buildings, furniture, fixtures or appurtenances.

*(Ord. No. 1507)*

### Section 201. Books taken without consent.

It shall be unlawful to carry from libraries any book, periodical, paper, magazine or any other article belonging to the Tulsa City-County Library System without the consent of the Librarian or his designee.

### Section 202. Boisterous conduct.

It shall be unlawful for any person to conduct himself in a loud and boisterous manner or to throw articles at any other person or to make or cause to be made any loud or unusual noises of any kind whatsoever within library buildings or on the premises adjacent thereto.

*(Ord. No. 1507)*

### Section 203. Penalty.

Any person who shall violate any section of this chapter shall be guilty of an offense and upon conviction thereof shall be punished by a fine in any sum not exceeding One Hundred Dollars ($100.00), including costs.

*(Ord. No. 16530)*

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# TITLE 21 LICENSES

**Chapter 1. General Provisions**
**Chapter 2. Adult Book Stores**
**Chapter 3. Alcoholic Beverage Control**
**Chapter 4. Auctioneers Repealed - Ord. No. 17391**
**Chapter 5. Auto Wreckers Repealed - Ord. No. 17391**
**Chapter 6. Bank Trucks Repealed - Ord. No. 17391**
**Chapter 7. Beer**
**Chapter 8. Billiards - Bowling Repealed - Ord. No. 17391**
**Chapter 9. Miniature Golf Course Repealed - Ord. No. 17391**
**Chapter 10. Coin Operated Devices**
**Chapter 11. Pawnbrokers**
**Chapter 12. Shooting Galleries Repealed - Ord. No. 17391**
**Chapter 13. Massage Business Repealed - Ord. No. 23522**
**Chapter 14. Family Recreation Centers and Adult Recreation Centers**
**Chapter 15. Youth Recreational Facility**
**Chapter 16. Hotels**
**Chapter 17. Sexually Oriented Businesses**
**Chapter 18. Penalty**
**Chapter 19. Intrusion Alarm Certification**
**Chapter 20. Outdoor Sellers**
**Chapter 21. Special Residential Housing Facilities**
**Chapter 22. Entertainment Club After Hours Permit**
**Chapter 23. Mobile Vendors**
**Chapter 24. Utility Vehicles**
**Chapter 25. Shared Active Transportation**
**Chapter 26. Short-Term Rental**

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## CHAPTER 1. GENERAL PROVISIONS

Section 100. License defined.
Section 101. Duties of the Mayor.
Section 102. License required.
Section 103. Issuance.
Section 104. License record.
Section 105. Denial, appeal.
Section 106. License period.
Section 107. Payment of fees; prorations; refunds; penalty for late renewal.
Section 108. Transfer.
Section 109. Lost license or permit; change of business name or address.
Section 110. License display.
Section 111. Revocation or suspension of license; appeal.
Section 112. Rules and regulations.
Section 113. Restricted peddling area.
Section 114. Sales tax permit number required.
Section 115. Suspension and revocation of license for failure to remit sales tax.

### Section 100. License defined.

A license is the written authority of the City issued by its duly authorized agent, employee or officer, conferring permission on some person to pursue and exercise a trade, occupation or business for a definite period of time within the City of Tulsa, under the conditions prescribed by the Revised Ordinances of the City of Tulsa.

### Section 101. Duties of the Mayor.

The issuance of all licenses, collection of all license fees, inspection of all licenses, enforcement of license conditions and revocation of license shall be under the jurisdiction of the Mayor, except where such duties are placed elsewhere by the provision prescribing the particular license. The Mayor may delegate these responsibilities to the Director of Finance or other duly authorized representative.

*(Ord. No. 16226)*

### Section 102. License required.

It shall be unlawful for any person, firm or corporation, either as principal, officer, agent, servant or employee to engage in any of the callings, trades, professions or occupations for which a license is required without first paying to the City of Tulsa the fee or tax required and procuring from the City a license.

### Section 103. Issuance.

Any applicant for a license as provided by this title shall make application on forms provided by the Director of Finance; and all such licenses shall be issued by the Director of Finance. No license shall be issued until all conditions prescribed by the Revised Ordinance of the City of Tulsa have been met. It shall be unlawful for any person to falsify information in such application.

### Section 104. License record.

The Director of Finance shall keep a record of all licenses issued by him showing the date issued, to whom issued, the period for which the license was issued, the amount paid, the receipt number and the nature of the license.

### Section 105. Denial, appeal.

Any person whose application for a license is denied shall have the right to appeal the denial to the Council. Such appeal, unless another procedure is prescribed herein, shall be taken within ten (10) days from the date of refusal by filing with the City Clerk a written request for such appeal, and the Council shall hear the appeal at its next available meeting.

### Section 106. License period.

All licenses shall expire one (1) year from date of issuance, unless a different date is provided herein. Any license purchased for a quarter or quarters of a year shall expire at the end of the quarter or quarters for which issued.

### Section 107. Payment of fees; prorations; refunds; penalty for late renewal.

**A.** All license or permit fees shall be paid in advance for the license or permit period for which issued. The form of payment for a particular license, whether cash, check or otherwise, shall be in the discretion of the Director of Finance. A license or permit may be prorated on a quarterly basis, unless otherwise provided by ordinance; provided, however, that the prorated license or permit fee shall not be less than Five Dollars ($5.00). There shall be no refund of license or permit fees paid, unless otherwise provided by ordinance.

**B.** If a license expires and is not renewed within fourteen (14) days after the expiration date, the licensee shall pay a penalty of Five Dollars ($5.00) for each thirty (30) day period or fraction thereof thereafter until the license is renewed; provided, however, that the penalty shall not exceed twice the cost of the license fee. No penalty shall be prorated. No penalty shall be assessed if the license fee is regulated by Oklahoma statutes.

*(Ord. No. 16228)*

### Section 108. Transfer.

Unless otherwise specified by ordinance, no license shall be sold or otherwise transferred.

### Section 109. Lost license or permit; change of business name or address.

Unless otherwise specified by ordinance, whenever any original license shall have been lost or destroyed, it shall be the duty of the Director of Finance, upon written application by the owner thereof, to issue a duplicate of the same, provided that the license has not been lost or destroyed by any act of connivance on the part of the licensee and that the licensee has made diligent search for the original license and has not been able to find it. A service charge of Five Dollars ($5.00) shall be made for each replacement license, and a service charge of Two Dollars ($2.00) shall be made for each copy. If a licensee wishes to change the name of the business and/or moves to a new location, he must return the original license and pay a service charge of Five Dollars ($5.00) for a new license reflecting such change, unless otherwise provided by ordinance.

*(Ord. No. 16228)*

### Section 110. License display.

It shall be the duty of any person having obtained a license for any authorized purpose, to have the license placed or posted in a secure manner in some public place on the premises

occupied and used for such purpose where the license may be readily seen at any time by any person entering such premises. Any licensee who does not occupy any certain premises for the conduct of such licensed business shall carry his license on his person and shall display it whenever requested. Any person required by ordinance to have a license shall be required upon request to exhibit such license to any duly authorized license inspector or police officer of the City of Tulsa.

**Section 111. Revocation or suspension of license; appeal.**

All licenses issued by the City of Tulsa shall be subject to revocation by the duly authorized officer upon any breach of any condition prescribed by ordinance or rules adopted pursuant to ordinance for the regulation of such licensed occupation, or if such licensee operates such licensed occupation or business in violation of the laws of the City of Tulsa or the state of Oklahoma or in violation of any law or regulation of the United States government. The duly authorized officer shall mean the Mayor or his authorized representative, except when some other person or board is given the authority by ordinance to revoke or suspend the particular license. The duly authorized officer shall give written notice by personal service or by mail to the licensee, at the address given on the application or license, of the suspension or revocation of his license. Such license shall stand suspended or revoked from the time of the giving of the notice; provided, however, that any licensee may appeal to the Council from such decision within ten (10) days after the notice, by filing a written notice of appeal with the City Clerk. Upon the timely filing of a notice of appeal, a hearing shall be held by the Council at its next regular meeting. The licensee may be represented by counsel. Upon a preponderance of the evidence, the Council may affirm, modify or vacate the order of revocation or suspension. No suspension shall be in excess of sixty (60) days.

**Section 112. Rules and regulations.**

Subject to approval by the Council, the Mayor shall adopt rules and regulations to implement and enforce the provisions of this title. Such rules and regulations shall be filed in the Office of the City Clerk and shall be enforced to the same extent as if set out in this title.

**Section 113. Restricted peddling area.**

No person shall sell or attempt to sell any goods, wares and merchandise of any kind, character or description from any stand, vehicle or otherwise on any street, alley or sidewalk within that part of the City of Tulsa bounded on the north by the north line of First Street, on the south by the north line of Seventh Street, on the east by the east line of Detroit and on the west by the west line of Cheyenne.

The payment or collection of any license fee charged or collected by the City of Tulsa shall not constitute a defense for the violation of any of the provisions of this section.

The Central Tulsa Pedestrian Mall as defined in the Revised Ordinances of the City of Tulsa, shall be excluded from the operation of this section, provided that all permits required by ordinance shall be obtained.

*(Ord. No. 14792)*

**Section 114. Sales tax permit number required.**

Any applicant who shall be required to collect and remit sales tax pursuant to the sales tax codes of the state of Oklahoma and the City of Tulsa when engaging in any calling, trade,

avocation, profession, business or occupation for which a license is required by the City of Tulsa, shall, as a condition precedent to the issuance of such license, submit proof that a valid sales tax number has been issued by the state of Oklahoma. In the alternative, if a license applicant has an application for a sales tax permit pending before the state of Oklahoma, but one has not yet been issued, then an applicant, as a condition precedent to the issue of a license, shall submit proof satisfactory to the Director of Finance that a sales tax permit has been requested; and thereafter, the licensee shall, within thirty (30) days, submit proof that a valid sales tax permit has been issued.

## Section 115. Suspension and revocation of license for failure to remit sales tax.

Any license issued by the City of Tulsa to any person, firm or corporation engaging in any of the callings, trades, avocations, businesses, professions or occupations for which a license is required may be suspended or revoked for failure to collect and remit sales tax if and as required by the sales tax codes of the state of Oklahoma or the City of Tulsa.

*(Ord. No. 16299)*

## CHAPTER 2. ADULT BOOK STORES

Section 200. Definition, license, processing fee.

### Section 200. Definition, license, processing fee.

**A. Definition.** Adult book store is defined as an establishment having as a significant or substantial portion of its stock in trade, or an establishment having as a significant or substantial aspect of its business, books, films, videos, magazines, periodicals, games, novelties or other materials which are distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas; or an establishment with a significant or substantial section or segment devoted to the sale or display of such materials.

**1. Sexual conduct** includes the following:

**a.** The fondling or other touching of human genitals, pubic region, buttocks or female breasts;

**b.** Ultimate sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation, sodomy;

**c.** Masturbation; and

**d.** Excretory functions as part of or in connection with any of the activities set forth in subparagraphs "a" through "c," above.

**2. Specified anatomical areas** include the following:

**a.** Human genitals, pubic region, buttocks and female breasts below a point immediately above the top of the areola; and

**b.** Human male genitals in a discernibly turgid state, even if completely and opaquely covered.

**B. License and Processing Fee.** The license fee for an adult book store, shall be Two Hundred Dollars ($200.00) per year, payable in advance on or before September 1 of each year. In addition, a processing fee of Five Dollars ($5.00) shall be paid for the initial application.

*(Ord. No. 17391)*

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## CHAPTER 3. ALCOHOLIC BEVERAGE CONTROL

Section 300. Purpose.
Section 301. Definitions.
Section 302. Annual occupation tax.
Section 303. Director of finance to collect tax, issue receipt and provide prorated refund.
Section 304. Penalty for failure to pay tax.
Section 305. Suit authorized.
Section 306. Revocation of occupational privilege.
Section 307. Zoning laws applicable.
Section 308. Location to conform to State law.
Section 309. Prohibition of nudity or sexual acts.
Section 310. Certificate of zoning and certificate of compliance with fire, safety and health codes.
Section 311. Offense and penalty.

### Section 300. Purpose.

This chapter is enacted as an exercise of the police power of the City of Tulsa, a municipal corporation, to preserve the public peace, safety, health and good order thereof, to aid the enforcement of the policy of the state of Oklahoma as established by the Oklahoma Alcoholic Beverage Control Act, and to create and establish annual occupation taxes upon all persons engaged in the manufacture, sale or distribution of alcoholic beverages.

### Section 301. Definitions.

The definitions contained in the Oklahoma Alcoholic Beverage Control Act, 37 O.S.Supp.1996, § 506, are hereby adopted and the terms and phrases defined therein shall have the same meanings for the purposes of this chapter.

### Section 302. Annual occupation tax.

**A.** There is hereby levied an annual tax upon the following occupations in the amount set out opposite the name of such occupation:

| | | | |
|---|---|---|---|
| **1.** | **a.** | Brewer | $1,250.00 |
| | **b.** | Brewer Self Dist. | 750.00 |
| | **c.** | Brew Pub | 1,005.00 |
| | **d.** | Brew Pub Self Dist. | 750.00 |
| **2.** | | Oklahoma Brewer | 125.00 |
| **3.** | | Distiller | 3,125.00 |
| **4.** | **a.** | Wine Maker | 625.00 |
| | **b.** | Wine Self Dist. | 750.00 |
| **5.** | | Oklahoma Wine Maker | 75.00 |
| **6.** | | Rectifier | 3,125.00 |
| **7.** | | Wine and Spirits Wholesaler | 3,000.00 |
| **8.** | | Beer Distributor | 750.00 |
| **9.** | | Package Store | 905.00 |

**10.** Mixed Beverage
(initial)..... 1,005.00
(renewal)..... 905.00
**11.** Mixed Beverage/Caterer Combo..... 1,250.00
**12.** **a.** Beer and Wine
(initial)..... 500.00
(renewal)..... 450.00
**b.** Retail Beer ..... 500.00
**c.** Retail Wine..... 1,000.00
**13.** Caterer
(initial)..... 1,005.00
(renewal)..... 905.00
**14.** Special Event - Tax per day..... 55.00

**B.** The tax for service organizations which are exempt under Section 501(c)(8)(10) and (19) of the Internal Revenue Code for mixed beverage licenses shall be Five Hundred Dollars ($500.00) per year.

**C.** The tax on any type or class of occupation due during the fiscal year shall be prorated on a monthly basis.

**D.** If a license is required by the state of Oklahoma for any of the above occupations, and if the state fails or refuses to issue or renew such license, the annual tax paid to the City of Tulsa under this chapter may be refunded on a prorated basis upon written proof, satisfactory to the Mayor or his designee, that the state license has been denied.

*(Ord. Nos. 16992, 21638; Ord. No. 23885, § 1, 3-28-2018, eff. 10-1-2018; Ord. No. 24411, § 1, 7-22-2020)*

## Section 303. Director of finance to collect tax, issue receipt and provide prorated refund.

**A.** Any state licensee originally entering any occupation listed herein shall pay the tax therefor at the office of the Director of Finance on or before the date of entering into the occupation. The licensee shall provide a copy of a current state license before the payment of an occupation tax will be accepted. Thereafter, the licensee shall pay the tax annually on or before June 30. The tax due shall be prorated on a monthly basis, but in no event shall the tax due be less than the full month's amount.

**B.** Any state licensee carrying on such occupation in more than one (1) location within the incorporated limits of the City of Tulsa shall be subject to a tax for each location, provided, that no additional tax shall be levied upon a licensee for moving the location from one place to another within the incorporated limits of the City of Tulsa.

**C.** Upon payment of the occupation tax, the Director of Finance shall issue a receipt to the state licensee. The receipt shall be posted in a conspicuous place on the premises where the occupation is conducted. The Director of Finance shall keep the name of the licensee and the occupational business address in the permanent files for at least three (3) years. Thereafter, upon resolution by the governing body of the City of Tulsa, the records may be destroyed.

**D.** Should a Package Store, a Beer and Wine Establishment, a Mixed Beverage Establishment or a Caterer cease that occupation or business, a prorated refund of the occupation tax may be granted under the following conditions:

**1.** The state licensee must have completely ceased the occupation or business of a Package Store, a Beer and Wine Establishment, Mixed Beverage Establishment or a Caterer;

**2.** All taxes or monies due the City of Tulsa from the state licensee or the business must have been paid; and

**3.** The original occupation tax receipt issued for the current year must be surrendered.

**E.** Upon written notification, and satisfaction of these conditions for a refund, the following schedule will determine the amount of refund.

| Date request received by Director of Finance | Refund Amount |
|---|---|
| July 1 through September 30 | 75% |
| October 1 through December 31 | 50% |
| January 1 through March 31 | 25% |
| April 1 through June 30 | No Refund |

**F.** Any recipient of a prorated refund shall be a new applicant upon return to business.

*(Ord. Nos. 16652, 19226, 21638)*

### Section 304. Penalty for failure to pay tax.

Any person who engages in any of the occupations taxed by this chapter and fails to pay the occupation tax imposed therefor in advance of such operation, is guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand Dollars ($1,000.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days. Each day of such violation shall constitute a separate offense.

### Section 305. Suit authorized.

All sums due from any person by reason of occupation taxes imposed by this chapter shall be recoverable at the suit of the City of Tulsa brought against such person in any court of competent jurisdiction. In such suit, in addition to the tax, the City shall be allowed to recover interest at the rate of ten percent (10%) per annum upon all sums due, from the date of accrual thereof, and all costs of collection, judicial or otherwise, including reasonable attorneys' fees which shall be paid to the attorney representing the City if such suit is not conducted by the legal staff of the City of Tulsa. Prosecution for an offense against the City of Tulsa arising out of the failure to pay a tax levied by this chapter, regardless of the outcome or its pendency, shall not constitute a defense nor a bar to the collection of any tax and penalties due as herein provided.

### Section 306. Revocation of occupational privilege.

Any state licensee who violates the Oklahoma Alcoholic Beverage Control Act, shall be in violation of the provisions of this chapter, and his occupational privilege hereunder shall be subject to revocation without refund.

### Section 307. Zoning laws applicable.

No retail alcoholic beverage establishment and no wholesale alcoholic beverage store, warehouse, brewery, distillery, winery or any other place, however described, for the sale, manufacture, production or bottling of alcoholic beverages of any kind shall be located, maintained or operated by any person, at any place within the City of Tulsa, except at a location at which such an establishment is permitted or authorized by the zoning code of the City of Tulsa.

### Section 308. Location to conform to State law.

No person shall own, operate, maintain or have an interest in any retail alcoholic beverage establishment within the City of Tulsa which is located at a place which is in violation of, or forbidden as a location for such establishment, by the laws of the state of Oklahoma.

### Section 309. Prohibition of nudity or sexual acts.

It shall be unlawful for any person to do or permit to be done any of the following acts on or about the premises of any establishment licensed pursuant to the provisions of the Oklahoma Alcoholic Beverage Control Act:

**A.** Any acts, or simulated acts of sexual intercourse, masturbation, sodomy, bestiality, oral copulation, flagellation or any sexual acts which are prohibited by law;

**B.** The actual or simulated touching, caressing or fondling of the breasts, buttocks, anus or genitals;

**C.** The actual or simulated displaying of the pubic hair, anus, vulva or genitals;

**D.** The permitting by a licensee of any person to remain in or upon the licensed premises who exposes to public view any portion of his or her genitals or anus;

**E.** The actual or simulated exposure, exhibition, display or revelation, either continually or intermittently, of the nipple or the pigmented portion adjacent thereto, otherwise defined as the areola, of any female person, including but not limited to the wearing of any costume or garment which by virtue of construction or transparency of the material permits such exposure; or

**F.** The displaying of films or pictures depicting acts, a live performance of which is prohibited by this section.

### Section 310. Certificate of zoning and certificate of compliance with fire, safety and health codes.

**A. Requirement of Certificate.** Every applicant for an original or renewal license, as required under the Oklahoma Alcoholic Beverage Control Act, except applicants for an employee, special event, airline beverage, or railroad beverage license, shall be required to furnish the Alcoholic Beverage Laws Enforcement Commission the following:

**1.** A certificate of zoning issued by the City of Tulsa, certifying that the applicant's proposed location and use thereof comply with all municipal zoning ordinances; and

**2.** A certificate issued by the City of Tulsa, verifying that the applicant's existing or proposed operations under the license comply with all municipal fire codes, safety codes or health codes.

**B. Application and Fee.** The certificates required herein must be approved and signed by the Director of Finance of the City of Tulsa prior to issuance. Each applicant for the required certificates shall pay at the time of filing his application a certification fee of Thirty-Five Dollars ($35.00). Applications for such certificates shall be in writing on a form approved by the Director of Finance and shall have attached thereto the following:

**1.** A zoning clearance permit issued by the City of Tulsa; and

**2.** Certificates from the City Protective Inspections, the City Fire Marshall and the Tulsa City-County Health Department stating that the proposed location meets the building, electrical, plumbing, mechanical, fire prevention and health codes of the City of Tulsa, or, in the alternative, a current certificate of occupancy issued by the City of Tulsa within ninety (90) days prior to the date of application.

The Director of Finance shall be required to act on all applications for such certificates within twenty (20) days of receipt of the written application in proper form.

## Section 311. Offense and penalty.

Unless otherwise provided herein, any person violating the provisions contained in this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand Dollars ($1,000.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

*(Ord. No. 16354)*

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# CHAPTER 4. AUCTIONEERS (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 17391, effective October 19, 1990.

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# CHAPTER 5. AUTO WRECKERS (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 17391, effective October 19, 1990.

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# CHAPTER 6. BANK TRUCKS (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 17391, effective October 19, 1990.

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## CHAPTER 7. BEER

Section 700. Definitions.
Section 701. License required.
Section 702. License fees.
Section 703. License issuance.
Section 704. Sale, barter or gift to persons under twenty-one (21) years of age unlawful.
Section 705. Misrepresentation of age.
Section 706. Hours of sale.
Section 707. Penalty.
Section 708. Effective date and repealer.

### Section 700. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meaning given herein.

**A. Nonintoxicating Beverages** means beverages containing more than one-half of one percent (½ of 1%) alcohol measured by volume, and not more than three and two-tenths percent (3.2%) alcohol measured by weight.

**B. Retail Dealers** means any person who sells nonintoxicating beverages as defined herein at retail for consumption or use, and such definition includes, but is not limited to, state and county fair associations, concessionaires, rodeos, picnics, organized temporary assemblies of people and all other dispensers of such beverages at retail.

*(Ord. Nos. 4801, 5318)*

### Section 701. License required.

It shall be unlawful and an offense for any retail dealer to sell within the corporate limits of the City of Tulsa any nonintoxicating beverages without first having procured a license to do so from the Director of Finance of the City of Tulsa ("Director").

*(Ord. No. 4801)*

### Section 702. License fees.

There is levied on each retail dealer dealing in nonintoxicating beverages within the City of Tulsa who sells the same for consumption on the premises a license fee of Seven Dollars and 50 cents ($7.50), and for each such retail dealer dealing in nonintoxicating beverages within the City of Tulsa who sells the same for consumption off the premises, a license fee of Five Dollars ($5.00). The fee shall be payable to the Director at the time the license is issued.

*(Ord. Nos. 5318, 20469; Ord. No. 23884, § 1, 3-28-2018)*

### Section 703. License issuance.

Upon a showing that the applicant has obtained a county permit from the District Court Clerk, and has paid the required license fee to the City of Tulsa, such license shall be issued. Any license issued or renewed after the effective date of this ordinance shall expire on September 30, 2018. The license fee due shall be prorated on a monthly basis, but in no event shall the fee due be less than a full month's amount. The license shall be

nontransferable. Whenever the place of business for which a license is issued is sold or such business is moved to a new location, the holder of the license shall immediately notify the Director, and provide the name of the new owner or the new place of business.

*(Ord. Nos. 16228, 19225; Ord. No. 23884, § 1, 3-28-2018)*

### Section 704. Sale, barter or gift to persons under twenty-one (21) years of age unlawful.

It shall be unlawful for any person who holds a retail dealer's license or for any agent, servant or employee of such licensee to sell, barter or give to any person under twenty-one (21) years of age any beverage containing more than one-half of one percent (½ of 1%) of alcohol measured by volume and not more than three and two-tenths percent (3.2%) of alcohol measured by weight.

*(Ord. No. 15824)*

### Section 705. Misrepresentation of age.

It shall be unlawful for any person to misrepresent his age to any retail dealer for the purpose of instituting the sale of beer.

*(Ord. No. 13749)*

### Section 706. Hours of sale.

It shall be unlawful and an offense for any retail dealer to sell, within the corporate limits of the City of Tulsa, any beverages containing more than one-half of one percent (½ of 1%) of alcohol by volume and not more than three and two-tenths percent (3.2%) of alcohol by weight, for consumption on the premises between the hours of 2:00 a.m. and 7:00 a.m. of any day; and such beverages may not be sold between the hours of 2:00 a.m. and 12:00 noon on Sundays.

*(Ord. No. 16401)*

### Section 707. Penalty.

Every person convicted of a violation of this chapter, shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

*(Ord. No. 20659)*

### Section 708. Effective date and repealer.

This chapter shall take effect on July 1, 2018 and shall automatically cease to be effective at Midnight, September 30, 2018.

*(Ord. No. 23884, § 2, 3-28-2018)*

# CHAPTER 8. BILLIARDS - BOWLING (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 17391, effective October 19, 1990.

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# CHAPTER 9. MINIATURE GOLF COURSE (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 17391, effective October 19, 1990.

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## CHAPTER 10. COIN OPERATED DEVICES

Section 1000. Definitions.
Section 1001. Possession of unlicensed device unlawful.
Section 1002. Licensing.
Section 1003. Fees and special licenses
Section 1004. License date.
Section 1005. Seizure of device.
Section 1006. Gambling prohibited.
Section 1007. Enforcement of provisions.
Section 1008. Penalties for violation.
Section 1009. Remedies cumulative.

### Section 1000. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings given herein:

**A.** **Person** means any individual, partnership, association or corporation.

**B.** **Music device** means any and all mechanical devices which render, cause to sound, or release music which may be heard by one (1) or more public patrons, and each separate loudspeaker, phonograph, juke box or outlet from which such music emits; except that, if music emits from more than one (1) speaker transmitting from the same music producing mechanism, the several outlets or speakers in each place of business shall be collectively considered one (1) such music device.

**C.** **Coin-operated music device** means any music device which is operated, motivated, released or played by or upon insertion of a coin, token or similar object. Coin-operated radio or television receiving sets in hotels, motels or tourist rooms or cabins shall be included in such definition.

**D.** **Coin-operated amusement device** means any and all non-gambling mechanical or electronic machines which, upon insertion of a coin, token or similar object, provide music or entertainment, including but not limited to such games as pool, phonographs, video television, shooting galleries, pinball, foosball, bowling and shuffleboard, with or without a replay feature, which can be legally shipped interstate according to federal law.

**E.** **Coin-operated vending device** means any and all machines or devices which, upon payment or insertion of a coin, token or similar object, dispense tangible personal property, including but not limited to cigarettes, candies, gum, cold drinks, hot drinks, sandwiches and chips, but shall not mean vending machines or devices used exclusively for the purpose of selling services, such as pay telephone booths, parking meters, gas and electric meters or other devices providing needed services.

**F.** **Coin-operated bulk vending device** means a machine or device which, upon the payment or insertion of a coin, token or similar object, dispenses to the purchaser ballpoint pens, combs, cigarette lighters, prophylactics, filled capsules, peanuts, gum balls, mints, perfume or novelties.

**G.** **Coin-operated devices** means coin-operated music devices, coin-operated amusement devices, coin-operated vending devices and coin-operated bulk vending devices.

*(Ord. No. 16991)*

### Section 1001. Possession of unlicensed device unlawful.

It shall be unlawful for any person to have in his possession within the corporate limits of the City of Tulsa any coin-operated device unless such coin-operated device has been licensed as herein provided, the license fee has been paid and the tag or sticker provided for herein has been firmly attached to the device and is plainly visible.

*(Ord. No. 16991)*

### Section 1002. Licensing.

It shall be the duty of every person having in his possession any coin-operated device within the corporate limits of the City of Tulsa to license the device with the Director of Finance of the City of Tulsa ("Director") and to pay the license fee herein specified. It shall be the duty of the Director, upon payment of the license fee, to record the name of the owner or operator and to issue for each such device a numbered tag or sticker showing the year for which the license is issued. It shall be the duty of the possessor of each device for which a license has been issued to keep such tag or sticker firmly upon the device and plainly visible at all times.

*(Ord. No. 16991)*

### Section 1003. Fees and special licenses

**A. Fees.** The following license fees shall be paid annually to the Director:

| | | |
|---|---|---|
| **1.** | For each coin-operated music device or coin-operated amusement device ..... | $56.25 |
| **2.** | For each coin-operated vending device or coin-operated amusement device requiring a coin or thing of value of Twenty-Five Cents ($0.25) or more ..... | $56.25 |
| **3.** | For each coin-operated vending device requiring a coin or thing of value of less than Twenty-Five Cents ($0.25) ..... | No Fee |
| **4.** | For each coin-operated bulk vending device ..... | No Fee |

Upon satisfactory proof that a coin operated device has not been in service within the current licensing period, the Director shall prorate the license fee for such device on a quarterly basis of such fee year.

**B. Special Licenses.** In those instances where it is shown to the satisfaction of the Director that a coin-operated device will be available for use by the public for a definite but limited period of time less than one (1) year, such as when displayed in connection with fairs, carnivals and places of amusement that operate only during certain seasons of the year, the Director may issue a special license therefor. Such special license may be issued for any number of thirty (30) day periods, shall state the precise dates for which issued and shall not be transferred from one machine to another. The license fee shall be computed and paid on the basis of one-tenth (1/10) of the annual rate for the type of device licensed for each thirty (30) day period for which such special license is issued. In the event the mechanical device is made available to the public for a period beyond that for which a special license has been issued, then a full year's license fee shall be due and payable.

*(Ord. No. 16991; Ord. No. 23006, § 1, 1-9-2014)*

**Section 1004. License date.**

Each license, except such special licenses as provided in Subsection 1003.B shall be issued for a period of one (1) year and shall expire at midnight on the 30th day of September of the year for which such license was issued.

*(Ord. No. 16991)*

**Section 1005. Seizure of device.**

The Director shall seize any coin-operated device operated in violation of the provisions of this chapter together with any cash contained therein. The device and cash seized for nonpayment of license fee shall not be released and returned until and unless there has been paid the license fee, the penalty herein provided, and the cost of seizure and storage of such device.

In all cases where seizure of a coin-operated device has been made for the nonpayment of license fee, the Director shall notify the owner or operator that the device is being retained under the provisions of this chapter and that the owner or operator may, within ninety (90) days, regain possession of the device by payment of the license fee, penalty, seizure and storage costs.

After the expiration of the ninety (90) day period, the Director may sell any such coin-operated device upon which the license fee, penalty and charges have not been paid, upon ten (10) days written notice to the owner or operator, if he can be found, or if not, then after advertisement in a newspaper of general circulation in the City of Tulsa, Oklahoma, for one (1) week.

The license fee, penalty, seizure and storage costs shall be paid from the proceeds of the sale and from the cash seized, and any cash remaining shall be retained in a fund in the possession of the City for a period of one (1) year to enable the owner of the device to apply for the remaining cash, in which event such cash remaining shall be paid to him. After the expiration of one (1) year, any cash remaining from the sale of the device and/or the cash within the device shall be transferred to the general fund of the City of Tulsa.

*(Ord. No. 16991)*

**Section 1006. Gambling prohibited.**

Nothing herein contained shall authorize any music device or amusement device to be used or operated for the purpose of gambling.

*(Ord. No. 16991)*

**Section 1007. Enforcement of provisions.**

It shall be the duty of the Director, his authorized inspectors and the police officers of the City of Tulsa to enforce the provisions of this chapter requiring persons operating or offering coin-operated devices for amusement or entertainment purposes to have affixed to each such device a current, valid sticker as herein required.

All coin-operated devices shall be open to inspection by police officers and the inspectors of the Finance Department, and such police officers and inspectors shall be admitted to all premises where such devices are located at all reasonable hours for the purpose of making such inspections.

*(Ord. No. 16991)*

## Section 1008. Penalties for violation.

Any person, firm or corporation violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine not to exceed Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period not exceeding thirty (30) days.

*(Ord. Nos. 16645, 16991)*

## Section 1009. Remedies cumulative.

The conviction and punishment of any person for operating a place of amusement without a license shall not relieve such person from paying the license fee due and unpaid at the time of such conviction, nor shall the payment of any license fee prevent a criminal prosecution for the violation of any of the provisions of this chapter. All remedies prescribed hereunder shall be cumulative and the use of one (1) or more remedies by the City shall not bar the use of any other remedy for the purpose of enforcing the provisions hereof.

*(Ord. Nos. 5689, 16991)*

## CHAPTER 11. PAWNBROKERS

Section 1100. Definitions.
Section 1101. Required regulatory permit and fee.
Section 1102. Place of business.
Section 1103. Examination and inspection.
Section 1104. Required reports.
Section 1105. Prohibited practices.
Section 1106. Penalty.

### Section 1100. Definitions.

The following words and phrases shall have the meanings given herein:

**A. Pawnbroker** means a person engaged in the business of making pawn transactions.

**B. Pawnshop** means the location at which or premises in which a pawnbroker regularly conducts business.

**C. Pawn transaction** means the act of lending money on the security of pledged goods or the act of purchasing tangible personal property on condition that it be redeemed or repurchased by the seller for a fixed price within a fixed period of time.

**D. Person** means an individual, partnership, corporation, joint venture, trust, association or other legal entity however organized.

**E. Pledged goods** means tangible personal property, other than choses in action, securities or printed evidences of indebtedness, which is deposited with or otherwise actually in the possession of a pawnbroker in connection with a pawn transaction.

### Section 1101. Required regulatory permit and fee.

Each person operating a pawnbroker's business shall obtain a permit for a fee of Fifty Dollars ($50.00) per annum for each such business, payable in advance to the Director of Finance on or before October 1. The Director shall issue the permit.

### Section 1102. Place of business.

The place of business of a pawnbroker shall be construed to mean and include the entire room, building, place, space or establishment in which such business is conducted or carried on, including basements and balconies, which is not separated entirely from any adjoining room or place of business by an unpierced solid wall. Every place having one (1) principal entrance or exit, wherein such business is conducted, shall be considered a pawnshop, regardless of whether another business is also conducted therein.

### Section 1103. Examination and inspection.

All sworn police officers of the City of Tulsa are hereby authorized to inspect the books, accounts, papers, correspondence, records and property taken, purchased or received. Such inspection shall be permitted without the need of judicial writ or other process. A police officer shall have free access to the office, place of business, files, safes and vaults of pawnshops and shall have the right to make copies of any books, accounts, papers, correspondence and records insofar as they pertain to the business regulated by this chapter or by the Oklahoma Pawnshop Act. The information obtained in the course of any

examination or inspection shall be confidential, except in civil or administrative proceedings conducted by the Oklahoma Administrator of Consumer Affairs, or in criminal proceedings instituted by the state or city.

### Section 1104. Required reports.

**A.** Any pawnbroker shall make available a copy or report within two (2) days of any buy or pawn transaction to the local law enforcement agency of the municipality or other political subdivision in which the pawnshop is located; provided, merchandise bought on invoice from a manufacturer or wholesaler with an established place of business is exempt from this reporting requirement. However, such invoice shall be shown upon request to the Administrator or his duly authorized representative or any authorized peace officer. The pawnbroker may provide the transaction report to the local law enforcement agency by either electronically reporting the information in the transaction report to an electronic database accessible only by law enforcement agencies or by reporting a physical copy of the transaction report directly to the law enforcement agency. The transaction report shall include:

**1.** The name and address of the pawnshop;

**2.** The name, address, weight, height, date of birth and identification number of the seller or pledgor, as verified by either a state-issued identification card, or federal government-issued identification card or driver's license or by readable fingerprint of right or left index finger on the back of the pawn or buy transaction copy to be retained for the pawnbroker's record;

**3.** The buy or pawn transaction number;

**4.** The date and time of the transaction;

**5.** The manufacturer of the item;

**6.** A description of the item; and

**7.** The serial number and model number of the item, where available and any other identifying marking.

**B.** Items bought, except on invoice from a manufacturer or wholesaler with an established place of business, shall be held for a period of ten (10) days before being disposed of or sold.

**C.** The pawnbroker shall obtain a written declaration of ownership from the seller or pledgor on all buy transactions and pawn transactions, except refinance pawn transactions or merchandise bought from a manufacturer or wholesaler with an established place of business. The seller or pledgor shall be required to state how long he has owned the property involved in the transaction. The declaration of ownership shall appear on the bill of sale or pawn ticket, to be completed by the seller or the pledgor at the time of transaction.

*(Ord. No. 25306, § 1, 5-8-2024)*

### Section 1105. Prohibited practices.

A pawnbroker shall not:

**A.** Accept a pledge or purchase property from a person under the age of eighteen (18) years; or

**B.** Accept any waiver, in writing or otherwise, of any right or protection accorded a customer under this act;

**C.** Fail to exercise reasonable care to protect pledged goods from loss or damage;

**D.** Fail to return pledged goods to a customer upon payment of the full amount due the pawnbroker on the pawn transaction, unless a hold order has been placed on the pledged goods by an authorized peace officer or the pledged goods are in the custody of law enforcement;

**E.** Make any charge for insurance in connection with a pawn transaction, except as provided in subsection F. of this section;

**F.** Enter any pawn transaction which has a maturity date more than one (1) month after the date of the transaction; or

**G.** Accept collateral or buy merchandise from a person unable to supply verification of identity by photo I.D. by either a state-issued identification card, driver's license or federal government-issued identification card or by readable fingerprint of right or left index finger on the back of the pawn or buy transaction copy to be retained for the pawnbroker's record.

*(Ord. No. 25306, § 2, 5-8-2024)*

**Section 1106. Penalty.**

**A.** Any person who uses false or altered identification or a false declaration of ownership when selling or pledging property to a pawnbroker as related to the provisions of this chapter where the value of the property is less than One Thousand Dollars ($1,000.00), shall, upon conviction, be guilty of a misdemeanor punishable by imprisonment in the City jail for a term not to exceed six (6) months, or by a fine not to exceed Five Hundred Dollars ($500.00), or by both such imprisonment and fine.

**B.** Any person who fails to repay a pawnbroker the full amount received from a pawn or buy transaction after being officially notified by a peace officer that the goods he or she pledged or sold in that transaction were stolen or embezzled shall, upon conviction, be guilty of a misdemeanor punishable by imprisonment in the City jail for a term not to exceed six (6) months, or a fine not to exceed Five Hundred Dollars ($500.00), or by both such fine and imprisonment.

**C.** Any person who engages in the business of operating a pawnshop without first securing a license under the Oklahoma Pawnshop Act shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand Dollars ($1,000.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than six (6) months.

**D.** Any person who shall violate any other provisions of this chapter for which no criminal penalty is listed, either by doing anything which is prohibited or by failure or refusal to do anything which is commanded, shall be reported to the Oklahoma Administrator of Consumer Credit and any other appropriate law enforcement agency or prosecution office."

*(Ord. No. 25306, § 3, 5-8-2024)*

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# CHAPTER 12. SHOOTING GALLERIES (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 17391, effective October 19, 1990.

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# CHAPTER 13. MASSAGE BUSINESS (REPEALED)*

*__Editor's note—__This chapter was repealed by Ordinance No. 23522, adopted July 21, 2016.

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# CHAPTER 14. FAMILY RECREATION CENTERS AND ADULT RECREATION CENTERS

Section 1400. Definitions.
Section 1401. License and permit required.
Section 1402. Application for license.
Section 1403. Application for permit.
Section 1404. Investigation.
Section 1405. Issuance of license or permit.
Section 1406. Denial of license or permit.
Section 1407. Appeal from denial of license or permit.
Section 1408. License and permit fees.
Section 1409. Expiration of license and permit.
Section 1410. Regulations for operations.
Section 1411. Display of license or permit.
Section 1412. Unlawful acts.
Section 1413. Suspension or revocation of license or permit.
Section 1414. Separate license for each establishment, dual operation.
Section 1415. Penalty.
Section 1416. Other laws applicable.

## Section 1400. Definitions.

**A. Family Recreation Center** shall mean a room or place where persons of all ages and either sex are permitted to play or operate coin-operated amusement devices.

**B. Adult Recreation Center** shall mean a room or place where persons of either sex eighteen (18) years of age or older or, if under eighteen (18) years of age when accompanied by a parent or legal guardian, are permitted to operate coin-operated amusement devices.

Provided however, that the definitions contained in subsections A and B shall not apply to the following:

**1.** Any room or place or establishment which derives less than twenty-five percent (25%) of its gross receipts from coin-operated amusement devices; or

**2.** Any room or place operated or maintained in whole or in part by public funds.

**C. Gross Receipts** shall mean the total amount of consideration for the sale of tangible personal property and services offered at such establishment, including the total amount of consideration which is paid or inserted into the coin-operated amusement devices, without any deduction therefrom for cost of the property sold, labor services performed, interest paid, lease or equipment rental or any other expense.

**D. Coin-Operated Amusement Device** shall mean and include any and all mechanical, electrical or electronic devices, including pool tables, billiard tables and snooker tables, which the payment or insertion of a coin, token or similar object, causes, permits or propels any ball, image, marble or other gadget or object to produce or create, or make possible the production or creation of a game of skill, amusement, entertainment or test of strength, including, but not limited to shuffle boards, coin-operated devices utilizing tables, television screens, boards or cases of any size, balls, sticks, cues, pegs, images or marbles and whether or not any motivating force involved is furnished by the player of the device.

**E.** **Adults** shall mean persons eighteen (18) years of age or older.

**F.** **Recreation Center Operator Permit** shall mean a current, valid photo-identification permit approved and issued hereunder by the Director of Finance.

**G.** **Director** shall mean the Director of Finance of the City of Tulsa or his duly authorized representative.

### Section 1401. License and permit required.

**A.** It shall constitute a nuisance and be unlawful for any person, firm, corporation, association, partnership or joint venture to maintain, operate or manage within the corporate limits of the City of Tulsa a family recreation center or adult recreation center without first obtaining a license therefor as provided hereunder.

**B.** It shall be unlawful for any person who is not an adult possessing a recreation center operator permit to manage such recreation center or to serve as supervisory personnel.

### Section 1402. Application for license.

**A.** Application for a license for a family recreation center or adult recreation center shall be made to the Director on the forms made available by the Director and shall include:

**1.** The name of the owner of the real estate and fixtures for which the license is to be issued and the description of such real estate;

**2.** If the applicant is not the owner of such real estate and fixtures, a copy of the lease or other arrangement under which such applicant holds possession thereof;

**3.** The full name, age, residence, present and previous employment record of the applicant, or if the applicant is an association, partnership, joint venture or corporation, such information concerning the operators, partners, principal backers, officers, directors, and, if a corporation, the stockholders of twenty-five percent (25%) or more of the outstanding stock;

**4.** The length of time the applicant or operators, partners, principal backers, officers, directors and stockholders of twenty-five percent (25%) or more of the outstanding stock have been bona fide residents of the state of Oklahoma immediately preceding the filing of the application; and the previous addresses for the last ten (10) years of each of the above;

**5.** In the case of a corporation, association, partnership or joint venture, the date of formation and the date when the same was authorized to do business in the state of Oklahoma, if applicable; and

**6.** Such other information as the Director shall find reasonably necessary to enforce the provisions of this chapter and to make a fair determination of the moral qualifications of the applicant, principal backers, managers and supervisory personnel.

**B.** Every application for a family recreation center or adult recreation center license shall be accompanied by a nonrefundable application fee of Twenty-Five Dollars ($25.00) for each person named in the application.

**C.** Applicants for family recreation center or adult recreation center licenses shall execute an agreement that the premises covered by the application may be inspected by any officer of the Police Department of the City of Tulsa at any time such premises are

occupied. Failure or refusal to permit immediate inspection of the premises of each facility shall constitute grounds for suspension or revocation of a license issued hereunder.

**Section 1403. Application for permit.**

**A.** Application for a recreation center operator permit shall be made to the Director on forms prepared and made available by the Director and shall provide the following:

**1.** The applicant's full name, date of birth, citizenship and personal description;

**2.** A statement of any arrests or convictions;

**3.** The applicant's address and employment for last five (5) years;

**4.** The employer's signature verifying the employment of the applicant;

**5.** A signed affidavit that applicant has not made any untruthful statements nor omitted any requested information; and

**6.** Such other information as the Director deems necessary to enforce the provisions of this chapter and to make a determination of the fitness and moral qualifications of the applicant.

**B.** Every application for a permit shall be accompanied by a nonrefundable application fee of Twenty Dollars ($20.00).

**Section 1404. Investigation.**

**A.** Upon receipt of an application for license for the operation of a family recreation center or adult recreation center or an application for a recreation center operator permit, the Director shall forward the same to the Chief of Police who shall promptly cause an investigation to be made of the applicant and all persons named in the application.

**B.** No license for a family recreation center or adult recreation center shall be issued until it shall be found by inspection that such facility complies with and conforms to all sections of this and other ordinances and health and fire regulations of the City, that it is properly ventilated and supplied with sufficient toilet conveniences, that it is adequately lighted and is a safe and proper place for the purpose for which it is used.

**Section 1405. Issuance of license or permit.**

**A.** The Director shall authorize the issuance of a family recreation center or adult recreation center license for the operation of such facility hereunder, or recreation center operator permit, when he finds after investigation:

**1.** That all persons named on the application are adults; and

**a.** Have not been convicted of any felony unless such person has received a full pardon; and

**b.** Have not been convicted of a misdemeanor concerning prostitution, gambling, larceny, embezzlement, drugs, marijuana, assault and battery, contributing to the delinquency of a minor, causing a juvenile to come within the purview of the juvenile court or any crime concerning this chapter unless five (5) years have passed since such last conviction;

**2.** That the manner in which the applicant proposes to operate the family recreation center or adult recreation center does not violate any provisions of the statutes and regulations of the state of Oklahoma, nor the ordinances of the City of Tulsa; and

**3.** That no person named on the application holds a federal gambling tax stamp.

**B.** A misstatement of material fact made in any application shall be grounds for denial of issuance of license or permit and revocation of any license or permit issued hereunder.

### Section 1406. Denial of license or permit.

The Director shall act upon the application for the license or permit within fifteen (15) days after the filing thereof. If the Director denies the application, he shall notify the applicant in writing within five (5) days after the denial, giving the reasons for the denial.

### Section 1407. Appeal from denial of license or permit.

Any person, firm, corporation, association partnership or joint venture whose application for a license or permit is denied, shall have the right to appeal to the Council. Notice of the appeal, stating the grounds therefor, shall be filed with the Director and the City Clerk within five (5) days after receipt of the notice of denial. At its next available meeting, the Council shall hold a public hearing upon the appeal at which hearing the applicant, the Director and other interested parties may present evidence. The Council shall affirm or reverse the denial of the license or permit.

### Section 1408. License and permit fees.

**A.** A license shall be issued by the Director to a qualified applicant upon payment of an annual license fee of Two Hundred Dollars ($200.00).

**B.** A recreation center operator permit shall be issued to a qualified applicant by the Director upon payment of an annual permit fee of Fifteen Dollars ($15.00).

**C.** Upon the expiration of a license or permit issued hereunder, and upon payment of the annual license or permit fee, the Director shall issue a renewal license or permit to those whose licenses or permits have not been revoked and who have complied with the provisions of this chapter; provided, however, that no license or permit shall be renewed which is more than sixty (60) days past its expiration date. Any licensee or permittee whose application for renewal is made more than sixty (60) days following the expiration date of such license or permit must reapply as a new applicant.

**D.** In the event of loss of permit, a replacement permit shall be used to the permittee by the Director upon payment by the permittee of a Five Dollar ($5.00) fee. The replacement permit shall be valid for the unexpired period of the original permit.

### Section 1409. Expiration of license and permit.

A license or permit issued hereunder shall expire on December 31 of each year. The full annual renewal fee shall be collected regardless of the issuance date of the original license or permit. Licenses or permits hereunder shall not be transferable.

### Section 1410. Regulations for operations.

**A. Family Recreation Center.** It shall be an offense, punishable as hereinafter set forth, and grounds for the revocation or suspension of the license or permit issued hereunder for any family recreation center operator, manager, person having supervisory control thereof, or employee to do or permit to be done any of the following:

**1.** Violate any of the provisions of this chapter;

**2.** Violate any of the statutes of the state of Oklahoma;

**3.** Operate or be open for operation during hours other than:

**a.** Monday, Tuesday, Wednesday and Thursday from 8:00 a.m. to 12:00 midnight,

**b.** Friday from 8:00 a.m. to 1:00 a.m. the following Saturday morning,

**c.** Saturday from 8:00 a.m. to 1:00 a.m. the following Sunday morning, and

**d.** Sunday from 12:00 noon to 12:00 midnight;

Provided, however, that on any day preceding a day when Tulsa Public Schools are not in session, closing hours are extended from midnight to 1:00 a.m.;

**4.** Permit any person who is not an employee to be or remain on the licensed premises or in that portion of the premises wherein the recreation activities take place more than fifteen (15) minutes after closing time;

**5.** Operate without having at least one (1) person possessing a recreation center operator permit present on the licensed premises during hours of operation;

**6.** Permit on the premises any beer, intoxicating alcoholic beverage or any intoxicated person;

**7.** Permit on the premises any person under the age of sixteen (16) years during a public school day prior to 3:00 p.m., except when accompanied by a parent or legal guardian or as part of a recognized school sponsored activity;

**8.** Operate without having the entrance of such family recreation center plainly marked "Family Recreation Center"; or

**9.** Permit dancing on the licensed premises.

**B. Adult Recreation Center.** It shall constitute an offense, punishable as hereinafter set forth, and grounds for the revocation or suspension of the license or permit issued herein for any adult recreation center operator, employee, manager or person having supervisory control thereof, to do or permit to be done any of the following:

**1.** Violate any of the provisions of this chapter or any provisions of any other ordinance under which a license has been issued covering the same premises;

**2.** Violate any of the statutes of the state of Oklahoma;

**3.** Operate without having at least one (1) person possessing a recreation center operator permit present on the licensed premises during hours of operation;

**4.** Permit on the premises any person under the age of eighteen (18) years unless such person is accompanied by his or her parent or legal guardian; or

**5.** Operate without having the entrance of the adult recreation center plainly marked "Adult Recreation Center - Persons Under 18 Years of Age Not Admitted Unless Accompanied by Parent or Legal Guardian."

## Section 1411. Display of license or permit.

**A.** Every family recreation center or adult recreation center issued a license hereunder shall place and exhibit the license at all times while such license is in force in a conspicuous place upon the licensed premises.

**B.** Every person issued a recreation center operator permit, while on duty, shall have the permit on his or her person or within the premises, and shall present the permit upon demand by any enforcement officer.

### Section 1412. Unlawful acts.

**A.** It shall be unlawful for any person to work in a licensed recreation center in the capacity of a manager, operator or person having supervisory control over the premises without possessing a valid permit issue by the Director.

**B.** It shall be unlawful for any person to work in a licensed recreation center in a capacity which requires a permit and fail to display the required permit upon demand by any enforcement officer.

**C.** It shall be unlawful for any person to use or possess any false or falsified permit issued or purporting on its face to have been issued under the provisions of this chapter.

**D.** It shall be unlawful for any person to alter, reproduce or falsify a permit issued or purporting on its face to have been issued under the provisions of this chapter or to give, lend, sell or otherwise provide to any person an altered, reproduced or falsified permit.

**E.** It shall be unlawful for any permittee to give, lend, sell or otherwise provide such permit to any other person, or for any person not the lawful holder of such permit to use or represent the same to be his own.

### Section 1413. Suspension or revocation of license or permit.

The Director may suspend for not more than fifteen (15) days, or may revoke a license or permit issued hereunder, if after notice and hearing, as herein provided, the Director finds that the holder of the license or permit has made a material misstatement in the application or the renewal thereof, or that any manager, operator or supervisory personnel has violated any of the provisions of this chapter.

The Chief of Police shall investigate complaints concerning family recreation centers and adult recreation centers, and if he finds that a violation of the provisions hereof has been committed, he shall file a complaint with the Director setting forth the alleged violation. Upon the filing of such a complaint, the Director shall fix a date for hearing of the complaint and shall cause to be served upon the licensee or permittee a copy of the complaint and notice of the time and place of the hearing. The complaint and notice of hearing shall be served upon the co-partner, manager, operator or person having supervisory control over the premises of the family recreation center or adult recreation center, or if such person cannot be found, by mailing the same by registered mail addressed to such person at the licensed premises.

The Director shall conduct a hearing on the complaint no less than five (5) nor more than twenty (20) days after service of the complaint. At the hearing, the complainant, the licensee or permittee or any interested person may be present and present such evidence as may be relevant and material. If at the conclusion of such hearing the Director finds the licensee or permittee has made a material misstatement in the application for a license or permit, or has violated any of the provisions of this chapter, the Director shall suspend, for not more than fifteen (15) days, or revoke the license or permit issued hereunder. Under suspension or revocation, the licensee shall immediately cease operation as a family recreation center or adult recreation center, lock the doors to the licensed premises and bar the public therefrom; and the permittee shall immediately surrender his or her permit to the Director.

### Section 1414. Separate license for each establishment, dual operation.

**A.** A separate license must be obtained for each branch establishment of any family recreation center or adult recreation center, and each license shall authorize the operation of such facility only at the location described in such license.

**B.** Any licensee wishing to operate both as a family recreation center and as an adult recreation center shall purchase both licenses for that location and shall sign a dual operation affidavit.

### Section 1415. Penalty.

Any person, firm, corporation, association, partnership or joint venture, or operator, co-operator, manager, employee or member thereof who shall violate any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Three Hundred Dollars ($300.00) and/or by imprisonment in the City jail for not more than ninety (90) days. Each day of violation shall constitute a separate offense.

### Section 1416. Other laws applicable.

The provisions of this chapter shall not be construed to exempt any person, firm, corporation, association, partnership or joint venture operating a family recreation center or adult recreation center from compliance with any other applicable ordinance of the City of Tulsa not in conflict herewith, unless specifically excluded herein.

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## CHAPTER 15. YOUTH RECREATIONAL FACILITY

Section 1500. Definitions.
Section 1501. License and permit required.
Section 1502. Occasional dances authorized.
Section 1503. Application for license.
Section 1504. Application for permit.
Section 1505. Investigation.
Section 1506. Issuance of license or permit.
Section 1507. Denial of license or permit.
Section 1508. Appeal from denial of license or permit.
Section 1509. License and permit fees, renewals, replacements.
Section 1510. Expiration of license or permit.
Section 1511. Regulations.
Section 1512. Display of license or permit.
Section 1513. Unlawful acts.
Section 1514. Suspension or revocation of license or permit.
Section 1515. License for each establishment.
Section 1516. Penalty.
Section 1517. Other laws applicable.

### Section 1500. Definitions.

**A. Youth Recreational Facility** shall mean a room or place open to the public where persons at least thirteen (13) years of age and no more than twenty-one (21) years of age may engage in recreational activities, including dancing, for a fee or other consideration, including the sale of foods, soft drinks and other nonalcoholic refreshments. The term Youth Recreational Facility shall include dance clubs but shall not apply to the following:

**1.** Any school offering a prescribed course of instruction in dancing where only regularly scheduled classes are maintained;

**2.** Any room or place operated or maintained in whole or in part by public funds; or

**3.** Any dance sponsored by an accredited public or private educational institution.

**B. Adults** shall mean persons twenty-one (21) years of age or older.

**C. Youth Recreational Facility Operator Permit** shall mean a current, valid photo-identification permit approved and issued hereunder by the Director of Finance of the City of Tulsa.

**D. Director** shall mean the Director of Finance of the City of Tulsa or his duly authorized representative.

**E. Mayor** shall mean the Mayor of the City of Tulsa or his duly authorized representative.

*(Ord. No. 16281)*

### Section 1501. License and permit required.

**A.** It shall constitute a nuisance and shall be unlawful for any person, firm, corporation, association, partnership or joint venture to maintain, operate or manage within the corporate limits of the City of Tulsa a youth recreational facility without first obtaining a license therefor as provided herein.

**B.** It shall be unlawful for any person to manage or serve as supervisory personnel who is not an adult possessing a youth recreational facility operator permit.

### Section 1502. Occasional dances authorized.

Notwithstanding the provisions of Section 1501, any person, firm, corporation, association, partnership or joint venture not licensed under this chapter which desires to sponsor a dance to which minors are admitted, may make application in writing to the Mayor, setting forth the pertinent details including the time, place and manner of operation of the proposed dance. If, in the opinion of the Mayor, the public peace, health and welfare will not be endangered, he may issue his written permission to hold such dance, which permission shall contain such terms and conditions as are, in the opinion of the Mayor, necessary for the protection of the public peace, health and welfare; and such person, firm, corporation, association, partnership or joint venture shall not be subject to the terms and conditions of this chapter. No such person, firm, corporation, association, partnership or joint venture shall receive more than three (3) such permissions during any calendar year.

### Section 1503. Application for license.

**A.** Application for a license for a youth recreation center shall be made upon the forms made available by the Director and shall include:

**1.** The name of the owner of the real estate and fixtures for which the license is to be issued and the description of such real estate;

**2.** If the applicant is not the owner of such real estate and fixtures, a copy of the lease or other arrangement under which such applicant holds possession thereof;

**3.** The full name, age, residence, present and previous employment record of the applicant, or if the applicant is an association, partnership, joint venture or corporation, such information concerning the operators, partners, principal backers, officers and directors, and, if a corporation, the stockholders of twenty-five percent (25%) or more of the outstanding stock;

**4.** The length of time the applicant or operators, partners, principal backers, officers and directors, and, if a corporation, the stockholders of twenty-five percent (25%) or more of the outstanding stock, have been bona fide residents of the state of Oklahoma immediately preceding the filing of the application, and the previous addresses for the last ten (10) years of each of the above; and

**5.** Such other information as the Director shall find reasonably necessary to enforce the provisions of this chapter and to make a fair determination of the moral qualifications of the applicant and principal backers.

**B.** Applicants for youth recreational facility licenses shall execute an agreement that the premises covered by the application may be inspected by any officer of the Police Department of the City of Tulsa at any time the premises are occupied. Failure or refusal to permit immediate inspection of the premises of each facility shall constitute grounds for suspension or revocation of a license issued hereunder.

**C.** Every application for a youth recreational facility license shall be accompanied by a nonrefundable application fee of Twenty-Five Dollars ($25.00) for each person named in the application.

**Section 1504. Application for permit.**

**A.** Application for a youth recreational facility operator permit shall be made upon the forms made available by the Director and shall provide the following:

**1.** The applicant's full name, date of birth, citizenship and personal description;

**2.** A statement of any arrests or convictions;

**3.** The applicant's address and employment for last five (5) years;

**4.** The employer's signature verifying the employment of the applicant;

**5.** A signed affidavit that applicant has not made any untruthful statements nor omitted any requested information; and

**6.** Such other information as the Director shall find reasonably necessary to enforce the provisions of this chapter and make a fair determination of the fitness and moral qualifications of the applicant.

**B.** Every application for a permit shall be accompanied by a nonrefundable application fee of Twenty Dollars ($20.00).

**Section 1505. Investigation.**

**A.** Upon receipt of an application for license for the operation of a youth recreational facility or an application for a youth recreational facility operator permit, the Director shall forward the same to the Chief of Police who shall promptly cause an investigation to be made of the applicant and all persons named in the application.

**B.** No license for a youth recreational facility shall be issued until it shall be found by inspection that the facility complies with and conforms to all sections of this and other ordinances and health and fire regulations of the City, that it is properly ventilated and supplied with sufficient toilet conveniences, that it is adequately lighted, and is a safe and proper place for the purpose intended.

**Section 1506. Issuance of license or permit.**

**A.** The Director shall authorize the issuance of a youth recreational facility license or a youth recreational facility operator permit when he finds after investigation:

**1.** That the persons named on the application are adults and have not been convicted of:

**a.** Any felony, unless such person has received a full pardon; or

**b.** Any misdemeanor concerning prostitution, gambling, larceny, embezzlement, drugs, marijuana, assault and battery, contributing to the delinquency of a minor, causing a juvenile to come within the purview of the juvenile court or any crime concerning this chapter, unless five (5) years have passed since such last conviction;

**2.** That the manner in which the applicant proposed to operate the youth recreational facility does not violate any provisions of the statutes and regulations of the state of Oklahoma nor the ordinances of the City of Tulsa; and

**3.** That no person named on the application holds a federal gambling tax stamp.

**B.** A misstatement of material fact in any application shall be grounds for denial of issuance of license or permit or revocation of any license or permit issued hereunder.

### Section 1507. Denial of license or permit.

The Director shall act upon the application for the license or permit within fifteen (15) days after the filing thereof. If the Director disapproves and denies the application, he shall notify the applicant in writing within five (5) days after the denial, giving the reasons for the denial.

### Section 1508. Appeal from denial of license or permit.

Any person, firm, corporation, association partnership or joint venture whose application for a license or permit is denied, shall have the right to appeal to the Council. Notice of the appeal, stating the grounds therefor, shall be filed with the Director and the City Clerk within five (5) days after receipt of the notice of denial. At its next available meeting, the Council shall hold a public hearing upon the appeal at which hearing the applicant, the Director and other interested parties may present such evidence as they deem advisable. The Council shall affirm or reverse the denial of the license or permit.

### Section 1509. License and permit fees, renewals, replacements.

**A.** A license shall be issued by the Director to a qualified applicant upon payment of an annual fee of Two Hundred Dollars ($200.00).

**B.** A youth recreational facility operator permit shall be issued by the Director to a qualified applicant upon payment of an annual fee of Fifteen Dollars ($15.00).

**C.** Upon the expiration of a license or permit issued hereunder, and upon the payment of the annual license or permit fee, the Director shall issue a renewal license or permit to those whose licenses or permits have not been revoked, and who have otherwise complied with the provisions of this chapter. Any licensee or permittee whose application for renewal is more than sixty (60) days past the expiration date, must reapply as a new applicant.

**D.** In the event of loss of permit, a duplicate permit shall be issued to the permittee by the Director upon payment by the permittee of a Five Dollar ($5.00) fee. The duplicate permit shall be valid for the unexpired period of the original permit.

### Section 1510. Expiration of license or permit.

A license or permit issued hereunder shall expire on December 31 of each year. The full annual renewal fee shall be collected, regardless of the issuance date, of the original license or permit. Licenses or permits hereunder shall not be transferable.

### Section 1511. Regulations.

It shall be unlawful and constitute an offense punishable as hereinafter set forth and grounds for the revocation or suspension of the license or permit issued hereunder for any youth recreational facility operator, manager or person having supervisory control thereof, or employee, to do or permit to be done any of the following:

**A.** Violate any of the provisions of this chapter;

**B.** Violate any of the statutes of the state of Oklahoma;

**C.** Operate or be open for operation during hours other than:

**1.** Monday, Tuesday, Wednesday and Thursday from 8:00 p.m. to 12 midnight,

**2.** Friday from 6:00 p.m. to 1:00 a.m.,

**3.** Saturday from 12 noon to 1:00 a.m., and

**4.** Sunday from 12 noon to 12 midnight;

Provided, however that on any day preceding a day when Tulsa Public Schools are not in session, closing hours are extended to 1:00 a.m. on the following day;

Provided further, that on special occasions, for good cause shown, and if in the opinion of the Mayor the public peace, health or welfare will not be endangered, such hours may be enlarged for special events by obtaining prior written permission from the Mayor;

**D.** Permit any person not an employee to be or remain on the licensed premises for more than fifteen (15) minutes after closing time;

**E.** Operate without having at least two (2) adult persons possessing valid permits issued under this chapter on the premises; provided, however, that this requirement may be met by having one (1) adult who possesses a valid permit present and one (1) adult who is licensed as a security guard by the state of Oklahoma.

**F.** Permit any person who has reached his twenty-first birthday, other than a parent or legal guardian of a youth on the premises, to be present on the premises or to engage in the recreational activities, except as provided herein;

**G.** Permit any person who has not reached his thirteenth birthday to be present on the premises or to engage in the recreational activities;

**H.** Permit or allow to occur upon the licensed premises repeated public disturbances and breaches of the peace;

**I.** Permit on the premises any beer or intoxicating beverages, or any intoxicated person; provided that if, in the opinion of the Chief of Police, the public peace, health and welfare will not be endangered, nor the intent of this chapter thwarted, permission in writing may be given to have beer or intoxicating beverages upon the premises if the same are in a separate portion of the premises which shall be locked and not accessible to the general public;

**J.** Operate without having the entrance of such youth recreation center plainly marked "Youth Recreational Facility - Persons Under 13 Years of Age and Persons 21 Years of Age or Older Prohibited"; or

**K.** Operate such facilities when they do not comply and conform to the provisions of Subsection 1505.B, above.

*(Ord. Nos. 16281, 17005)*

### Section 1512. Display of license or permit.

**A.** Every youth recreational facility holding a license issued hereunder shall place and exhibit the same at all times in some conspicuous place upon the licensed premises.

**B.** Every person issued a recreation center operator permit, while on duty, shall have the permit on his or her person or within the premises, and shall present the permit upon demand by any law enforcement officer.

### Section 1513. Unlawful acts.

**A.** It shall be unlawful for any person to work in a licensed youth recreational facility in the capacity of a manager, operator or person having supervisory control over the premises without possessing a valid permit issued by the Director.

**B.** It shall be unlawful for any person to work in a licensed youth recreational center in a capacity which requires a permit to fail to display the required permit upon demand by any law enforcement officer.

**C.** It shall be unlawful for any person to use or possess any false or falsified permit issued or purporting to have been issued under the provisions of this chapter.

**D.** It shall be unlawful for any person to alter, reproduce or falsify a permit issued or purporting to have been issued under the provisions of this chapter or to give, lend, sell or otherwise provide to any person an altered, reproduced or falsified permit.

**E.** It shall be unlawful for any permittee to give, lend, sell or otherwise provide such permit to any other person, or for any person not the lawful holder of such permit to use or represent the same to be his own.

### Section 1514. Suspension or revocation of license or permit.

The Director may suspend for not more than fifteen (15) days, or may revoke a license or permit issued hereunder, if after notice and hearing, as herein provided, the Director finds that the holder of the license or permit has made a material misstatement in the application or the renewal thereof, or that any manager, operator or supervisory personnel has violated any of the provisions of this chapter.

The Chief of Police shall investigate complaints concerning youth recreational facilities and if he finds a violation of the provisions of this chapter, he shall file a complaint with the Director setting forth the alleged violation. Upon the filing of such a complaint, the Director shall fix a date for hearing of the complaint and shall cause to be served upon the licensee or permittee a copy of the complaint and notice of the time and place of the hearing. The complaint and notice of hearing shall be served upon the co-partner, manager, operator or person having supervisory control over the premises of the youth recreation center, or if such person cannot be found, by mailing the same by registered mail addressed to such person at the licensed premises.

The Director shall conduct a hearing on the complaint no less than five (5) nor more than twenty (20) days after the service of the complaint. At the hearing, the complainant, the licensee or permittee or any interested person may be present and present such evidence as may be relevant and material. If at the conclusion of such hearing, the Director finds that the licensee or permittee has made a material misstatement in the application for a license or permit or the renewal thereof, or has violated any of the provisions of this chapter, the Director shall suspend for not more than fifteen (15) days, or revoke the license or permit issued hereunder. Under suspension or revocation, the licensee shall immediately cease operation as a youth recreation center, shall lock the doors to the licensed premises and bar the public therefrom, and the permittee shall immediately surrender his or her permit to the Director.

### Section 1515. License for each establishment.

**A.** A separate license must be obtained for each branch establishment of any youth recreational facility and each license shall authorize the operation of such facility only at the location described in such license.

### Section 1516. Penalty.

Any person, firm, corporation, association, partnership or joint venture, or operator, co-operator, manager, employee or member thereof who shall violate any of the provisions

of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Three Hundred Dollars ($300.00) and/or by imprisonment in the City jail for not more than ninety (90) days. Each day of violation shall constitute a separate offense.

### Section 1517. Other laws applicable.

The provisions of this chapter shall not be construed to exempt any person, firm, corporation, association, partnership or joint venture operating a youth recreation center from compliance with any other applicable ordinance of the City of Tulsa not in conflict herewith, unless specifically excluded herein.

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## CHAPTER 16. HOTELS

Section 1600. Definitions.
Section 1601. Application and issuance of license.
Section 1602. Basis for suspension or revocation.
Section 1603. Hearing on denial, renewal or suspension of a license.
Section 1604. Lost license.
Section 1605. Penalties.

### Section 1600. Definitions.

Unless a different meaning appears from the context, for the purposes of this chapter the following words shall have the meaning given herein.

**A.** **Hotel** shall mean any building or buildings, trailer or other facility in which the public may, for consideration, obtain sleeping accommodations and in which five (5) or more rooms are used for the accommodation of such guests, whether such rooms are in one (1) or several structures. The term shall include hotels, motels, tourist homes, inns, trailer motels, dormitory space where bed space is rented to individuals or groups, apartments not occupied by permanent residents and all other facilities where rooms or sleeping facilities or space are furnished for a consideration. As defined herein, Hotel shall not include hospitals, sanatoriums or nursing homes.

**B.** **Person** shall be construed to include persons, partnerships, firms, companies, corporations, tenants, owners, lessees or licensees, their agents, heirs or assigns.

**C.** **Owner or Operator** shall mean the owner, manager, tenant or any person owning or in charge of the hotel and shall include natural persons, firms or corporations.

**D.** **Shall,** as used in this chapter, is always mandatory and not merely directory.

**E.** **Unit** shall mean a room or suite of rooms in a hotel occupied or designed for occupation for living or sleeping purposes.

**F.** **Suspension** shall mean the suspension of an owner's license to operate a hotel within the City of Tulsa.

### Section 1601. Application and issuance of license.

**A.** It shall be unlawful for any person to establish, operate, maintain or permit to be established, operated or maintained upon any property owned or controlled by him, a hotel within the limits of the City of Tulsa without having first secured a license for each such hotel from the Director of Finance. Such license shall expire on December 31 of each year but may be renewed under the provisions of this chapter for additional periods of one (1) year. Licenses shall not be transferable from one person to another.

**B.** The application for such license or the renewal thereof shall be filed with the Director of Finance. It shall be accompanied by a processing fee of Five Dollars ($5.00) and an annual license fee of Seventy-five Dollars ($75.00) for each existing or proposed hotel. The processing fee of Five Dollars ($5.00) shall accompany initial applications only. The application for a license or a renewal thereof shall be made on printed forms furnished by the Director of Finance and shall include, but not be limited to the name and address of the owner in fee of the tract and a legal description of the premises upon which the hotel is or will be located. If ownership in fee is vested in some person other than the

applicant, the Director shall require a duly verified statement from the owner that the applicant is authorized by him to construct or maintain the hotel and to make the application.

*(Ord. No. 20469)*

**Section 1602. Basis for suspension or revocation.**

The Director of Finance is hereby authorized to deny the application for renewal or to suspend or revoke any license issued pursuant to the provisions of this chapter, if after due investigation he determines that the applicant or holder has failed, for over thirty (30) days, to pay any sales tax due to the state of Oklahoma, any rooming or lodging tax or any City sales tax pursuant to the Tulsa Revised Ordinances. It shall also be grounds for suspension or revocation if the licensee has failed to pay any penalties or interest for delinquent rooming and lodging taxes, or has failed to post a surety bond pursuant to the Revised Ordinances of the City of Tulsa.

**Section 1603. Hearing on denial, renewal or suspension of a license.**

Prior to the denial of an application or the revocation or suspension of a license, the Director shall give written notice, either by personal service or by mail to the licensee of a hearing on the denial, suspension or revocation of his license. Such notice, if mailed, shall be mailed to the address given on the application for a license and shall advise the applicant or licensee of the date, time and place of the hearing. The hearing shall be held by the Director within ten (10) days following the service of the notice. The licensee may be represented by counsel at the hearing. The hearing shall be conducted in an informal manner and no license shall be denied, suspended or revoked except upon a preponderance of the evidence.

**Section 1604. Lost license.**

Unless otherwise specified by ordinance, whenever any license shall have been lost or destroyed it shall be the duty of the Director of Finance, upon application in writing by the owner thereof, to issue a duplicate of the license, provided that the license has not been lost or destroyed by any act of connivance on the part of the licensee and that the licensee has made diligent search for the license and has been unable to find it. A service charge of Five Dollars ($5.00) shall be made and collected for each duplicate license.

**Section 1605. Penalties.**

**A.** Any person, firm, corporation, association, operator, partner, manager, employee or member thereof who shall violate any of the provisions of this chapter requiring the licensing of a hotel, shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period not to exceed ninety (90) days. Each day of violation shall constitute a separate offense.

**B.** In addition to the criminal penalty provided herein, any person, firm, corporation, association, operator, partner, manager, employee or member thereof who violates this chapter shall cease to operate the hotel until such time a license is obtained from the City of Tulsa, and the City Attorney may apply for a court order restraining the operating of a hotel until such time as a license is obtained.

*(Ord. No. 16505)*

## CHAPTER 17. SEXUALLY ORIENTED BUSINESSES

Section 1700. Purpose and intent.
Section 1701. Definitions.
Section 1702. Classification.
Section 1703. License required.
Section 1704. Issuance of license.
Section 1705. Fees.
Section 1706. Inspection.
Section 1707. Expiration of license.
Section 1708. Suspension.
Section 1709. Revocation.
Section 1710. License denials for existing businesses; suspension and revocation procedure: hearing officer.
Section 1711. Denials of new licenses; appeals.
Section 1712. Transfer of license.
Section 1713. Location of sexually oriented businesses.
Section 1714. Additional regulations for adult motion picture arcades.
Section 1715. Penalty.

### Section 1700. Purpose and intent.

It is the purpose of this chapter to regulate sexually oriented businesses to promote the health, safety, morals and general welfare of the citizens of the City, and to establish reasonable and uniform regulations to prevent the secondary affects of such businesses on surrounding and nearby properties. The City of Tulsa finds from studies it has done, as well as from studies conducted in other cities, these regulations are necessary in order to protect property values, eliminate blight, prevent further deterioration of City neighborhoods, promote the return of residents and businesses to City neighborhoods and decrease the incidence of crime and juvenile delinquency. Further, the City finds that such businesses tend to attract an undesirable quantity and quality of clientele and have an undesirable effect on surrounding and nearby properties.

### Section 1701. Definitions.

In this chapter the following words and phrases shall have the meanings given herein.

**A. Chief of Police** means the Chief of Police of the City of Tulsa or his designated agent.

**B. Establishment** means and includes:

**1.** The opening or commencement of any sexually oriented business as a new business;

**2.** The conversion of an existing business, whether or not a sexually oriented business, to any sexually oriented business;

**3.** The addition of any sexually oriented business to any other existing sexually oriented business; or

**4.** The relocation of any sexually oriented business.

**C. Licensee** means a person in whose name a license to operate a sexually oriented business has been issued, as well as the individual listed as an applicant on the application for a license.

**D. Operates or Causes to be Operated** means to cause to function or to put or keep in operation. A person may be found to be operating or causing to be operated a sexually oriented business whether or not that person is an owner, part owner or licensee of the business.

**E. Person** means an individual, proprietorship, partnership, corporation, association or other legal entity.

**F. Premises** means the grounds and all buildings and appurtenances pertaining to the grounds including any adjacent premises if under the direct or indirect control of the licensee, and the rooms and equipment under the control of the licensee and in connection with or in furtherance of the business covered by a license.

**G. Sexually Oriented Businesses** are defined as follows:

1. **Adult Amusement or Entertainment:** Amusement or entertainment which is distinguished or characterized by an emphasis on acts or material depicting, describing or relating to Sexual Conduct or Specified Anatomical Areas, as defined herein, including, but not limited to topless or bottomless dancers, exotic dancers, strippers, male or female impersonators or similar entertainment;
2. **Adult Bookstore:** An establishment having a significant or substantial portion of its stock in trade, or an establishment having as a significant or substantial aspect of its business, books, films, videos, magazines, periodicals, games, novelties or other materials which are distinguished or characterized by an emphasis on depicting or describing Sexual Conduct or Specified Anatomical Areas; or an establishment with a significant or substantial section or segment devoted to the sale or display of such materials;
3. **Adult Mini Motion Picture Theater:** An enclosed building with a capacity of less than fifty (50) persons used for presenting material distinguished or characterized by an emphasis on depicting or describing Sexual Conduct or Specified Anatomical Areas;
4. **Adult Motel:** A motel wherein material is presented, as part of the motel services, via closed circuit T.V. or otherwise, which is distinguished or characterized by an emphasis on depicting or describing Sexual Conduct or Specified Anatomical Areas;
5. **Adult Motion Picture Arcade:** Any place to which the public is permitted or invited wherein coin or slug-operated or electronically, electrically or mechanically controlled still or motion picture machines, projectors or other image-producing devices are maintained to show images to five (5) or fewer persons per machine at any one (1) time, and where the images so displayed are distinguished or characterized by an emphasis on depicting or describing Sexual Conduct or Specified Anatomical Areas;
6. **Adult Motion Picture Theater:** An enclosed building with a capacity of fifty (50) or more persons used for presenting material distinguished or characterized by an emphasis on depicting or describing Sexual Conduct or Specified Anatomical Areas;
7. **Model Studio:** Any place other than university or college art classes where, for any form of consideration or gratuity, figure models who display Specific Anatomi-

cal Areas are provided to be observed, sketched, drawn, painted, sculptured, photographed or similarly depicted by persons paying such consideration or gratuity; and

8. **Sexual Encounter Center:** Any building or structure which contains, or is used for commercial entertainment where the patron directly or indirectly is charged a fee to engage in personal contact with or to allow personal contact by, employees, devices or equipment or by personnel provided by the establishment which appeals to the prurient interest of the patron.

**H. Specified Anatomical Areas** mean:

1. Human genitals, pubic region, buttocks and female breasts below a point immediately above the top of the areola; or
2. Human male genitals in a discernible turgid state, even if completely and opaquely covered.

**I. Sexual Conduct** means:

1. The fondling or other touching of human genitals, pubic region, buttocks or female breasts;
2. Ultimate sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation and sodomy;
3. Masturbation; or
4. Excretory functions as part of or in connection with any of the activities set forth in 1 through 3, above.

### Section 1702. Classification.

Sexually oriented businesses are classified as follows:

**A.** Adult amusement or entertainment;
**B.** Adult bookstore;
**C.** Adult mini motion picture theater;
**D.** Adult motel;
**E.** Adult motion picture arcade;
**F.** Adult motion picture theater;
**G.** Model studio; or
**H.** Sexual encounter center.

### Section 1703. License required.

**A.** A person commits an offense if he operates or causes to be operated a sexually oriented business without a valid license issued by the City for the particular type of business.

Provided, however, it shall not be an offense to operate or cause to be operated an otherwise lawfully existing sexually oriented business without a license if an appeal is pending under the provisions of Section 1710 herein.

**B.** An application for a license must be made on a form provided by the Director of Finance. The application must be accompanied by a sketch or diagram showing the configuration of the premises, including a statement of total floor space occupied by the business. The sketch or diagram need not be professionally prepared but must be

drawn to a designated scale or drawn with marked dimensions of the interior of the premises to an accuracy of plus or minus six (6) inches. Applicants who must comply with Section 1714 of this chapter shall submit a diagram meeting the requirements of Section 1714.

**C.** The applicant must be qualified according to the provisions of this chapter.

**D.** If a person who wishes to operate a sexually oriented business is an individual, he must sign the application for a license as applicant. If a person who wishes to operate a sexually oriented business is other than an individual, each individual who has a twenty percent (20%) or greater interest in the business must sign the application for a license as applicant. Each applicant must be qualified under Section 1704 and each applicant shall be considered a licensee if a license is granted.

**E.** All sexually oriented businesses must be licensed on or before the expiration of sixty (60) days from the effective date of this ordinance.

*(Ord. No. 17675)*

### Section 1704. Issuance of license.

**A.** The Director of Finance shall issue a license to an applicant within thirty (30) days after receipt of an application unless the Chief of Police finds one or more of the following to be true:

**1.** An applicant is under eighteen (18) years of age;

**2.** An applicant is overdue in payment to the City of taxes, fees, fines or penalties assessed against or imposed upon the applicant in relation to a sexually oriented business;

**3.** An applicant has failed to provide information required for issuance of the license or has falsely answered a question on the application form;

**4.** An applicant has been convicted of a violation of a provision of this chapter, other than the offense of operating a sexually oriented business without a license, within two (2) years immediately preceding the application. The fact that a conviction is being appealed shall have no effect;

**5.** The license fee required by this chapter has not been paid;

**6.** An applicant has been employed in a sexually oriented business in a managerial capacity within the preceding twelve (12) months and has demonstrated that he is unable to operate or manage a sexually oriented business premises in a peaceful and law-abiding manner, thus necessitating action by law enforcement officers;

**7.** An applicant or the proposed establishment is in violation of or is not in compliance with Section 1706, 1712, 1713 or 1714; or

**8.** An applicant has been convicted of a crime:

**a.** Involving:

(1) Any of the offenses as described in Title 21, Chapters 39, 42 and 45 of the Oklahoma Statutes,

(2) Any of the following offenses as described in Title 27 of the Tulsa Revised Ordinances:

(a) Aiding, abetting or harboring a runaway child;

(b) Outraging public decency;

(c) Operating a place of prostitution;

(d) Receiving or transporting for the purpose of prostitution;

(e) Procuring or soliciting for the purpose of prostitution;

(f) Engaging in prostitution;

(g) Engaging in lewdness;

(h) Exposing minors to harmful materials; or

(i) Criminal attempt, conspiracy or solicitation to commit any of the foregoing offenses listed in (1) or (2), above;

**b.** For which:

(1) Less than two (2) years have elapsed since the date of conviction or the date of release from confinement imposed for the conviction, whichever is the later date, if the conviction is of a misdemeanor offense;

(2) Less than five (5) years have elapsed since the date of conviction or the date of release from confinement for the conviction, whichever is the later date, if the conviction is of a felony offense; or

(3) Less than five (5) years have elapsed since the date of the last conviction or the date of release from confinement for the last conviction, whichever is the later date, if the convictions are of two (2) or more misdemeanor offenses or combination of misdemeanor offenses occurring within any twenty-four (24) month period.

**B.** The fact that a conviction is being appealed shall have no effect on the disqualification of the applicant.

**C.** An applicant who has been convicted of an offense listed in paragraph 1704.A.8 may qualify for a sexually oriented business license only when the time period required therein has elapsed.

**D.** The license, if granted, shall state on its face the name of the person or persons to whom it is granted, the expiration date and the address of the sexually oriented business. The license shall be posted in a conspicuous place at or near the entrance to the sexually oriented business so that it may be easily read at any time.

*(Ord. No. 17675)*

### Section 1705. Fees.

**A.** The annual fee for an adult motion picture arcade business license is Five Hundred Dollars ($500.00).

**B.** The annual fee for all other sexually oriented business licenses is Four Hundred Dollars ($400.00).

### Section 1706. Inspection.

**A.** An applicant or licensee shall permit representatives of the Police Department, Health Department, Fire Department, Code Enforcement and Protective Inspection Division to inspect the premises of a sexually oriented business for the purpose of insuring compliance with the law at any time it is occupied or open for business.

**B.** A person who operates a sexually oriented business, or his agent or employee, commits an offense if he refuses to permit a lawful inspection of the premises by a representative of the police department at any time it is occupied or open for business.

### Section 1707. Expiration of license.

Each license shall expire on August 31 of each year and may be renewed only by making application as provided in Section 1703. Application for renewal should be made at least thirty (30) days before the expiration date, and when made less than thirty (30) days before the expiration date, the expiration of the license will not be affected.

### Section 1708. Suspension.

The Chief of Police shall recommend suspension of a license for a period not to exceed thirty (30) days if he determines that a licensee or an employee who exercises supervisory control of, or manages or operates a sexually oriented business, has:

**A.** Violated or is not in compliance with Section 1706, 1712 or 1714 of this chapter;

**B.** Refused to allow an inspection of the sexually oriented business premises as authorized by this chapter;

**C.** Knowingly permitted gambling by any person on the sexually oriented business premises;

**D.** Demonstrated inability to operate or manage a sexually oriented business in a peaceful and law-abiding manner, thus necessitating action by law enforcement officers;

**E.** Permitted on the premises low-point beer as defined in 37 O.S.Supp.1996, § 163.2, in violation of 37 O.S. Supp. 1996, §§ 213.1 or 213.2;

**F.** Permitted on the premises alcoholic beverages as defined in 37 O.S.Supp.1996, § 506, in violation of 37 O.S. Supp. 1996, § 537.2; or

**G.** Permitted on the premises low-point beer, as defined in 37 O.S.Supp.1996, § 163.2, without a valid permit to sell low-point beer as set forth in 37 O.S. Supp. 1996, § 163.7.

*(Ord. No. 18671)*

### Section 1709. Revocation.

**A.** The Chief of Police shall recommend revocation of a license if a cause of suspension in Section 1708 occurs and the license has been suspended within the preceding twelve (12) months.

**B.** The Chief of Police shall recommend revocation of a license if he determines that:

**1.** A licensee gave false or misleading information in the material submitted to the Chief of Police during the application process;

**2.** A licensee or an employee who exercises supervisory control of, or manages or operates a sexually oriented business, has knowingly allowed possession, use or sale of controlled substances on the premises;

**3.** A licensee or an employee who exercises supervisory control of, or manages or operates a sexually oriented business, has knowingly allowed prostitution on the premises;

**4.** A licensee or an employee who exercises supervisory control of, or manages or operates a sexually oriented business, knowingly operated the sexually oriented business during a period of time when the licensee's license was suspended;

**5.** A licensee has been convicted of an offense listed in paragraph 1704.A.8 for which the time period required therein has not elapsed;

**6.** On two (2) or more occasions within a twelve-month (12) period, a person committed an offense occurring in or on the licensed premises of a crime listed in paragraph 1704.A.8 for which a conviction has been obtained, and the person was an employee of the sexually oriented business at the time the offenses were committed; provided, however, the Chief of Police shall notify the licensee of any such arrests and convictions within ten (10) days of their occurrence, and such notification shall be a condition precedent to the revocation of a license under this paragraph;

**7.** A licensee or an employee who exercises supervisory control of, or manages or operates a sexually oriented business, has knowingly allowed any act of sexual intercourse, sodomy, oral copulation or masturbation to occur in or on the licensed premises; or

**8.** A licensee is delinquent in payment to the City for hotel occupancy taxes, ad valorem taxes or sales taxes related to the sexually oriented business.

**C.** The fact that a conviction is being appealed shall have no effect on the revocation of the license.

**D.** When the hearing officer revokes a license, the revocation shall continue for one (1) year and the licensee shall not be issued a sexually oriented business license for one (1) year from the date revocation became effective. If, subsequent to revocation, the hearing officer finds that the basis for the revocation has been corrected or abated, the applicant may be granted a license if at least ninety (90) days have elapsed since the date the revocation became effective. If the license was revoked under paragraph B.5, an applicant may not be granted another license until the appropriate number of years required under paragraph 1704.A.8 has elapsed.

## Section 1710. License denials for existing businesses; suspension and revocation procedure: hearing officer.

**A.** A hearing officer, appointed by the Mayor and confirmed by the Council, shall hear all matters pertaining to the suspension and revocation of licenses, denials of licenses for sexually oriented businesses lawfully existing on the effective date of this ordinance and denials of applications to renew licenses.

**B.** Within ten (10) days of the receipt of a written recommendation for the denial of a license specified in Subsection 1710.A herein, or recommendation for the suspension or revocation of a license, the Director of Finance shall serve written notice of the same upon the applicant or licensee. The notice shall be served upon the applicant or licensee or any employee exercising supervisory control over, or who manages or operates the premises, either in person or by certified mail, return receipt requested. The notice shall be served at least ten (10) days prior to the date set for hearing and shall include:

**1.** A statement of the date, time, place and nature of the hearing;

**2.** A reference to the particular sections of this chapter alleged to be violated;

**3.** A short, plain statement of the complaint and a statement of the issues;

**4.** A statement that the hearing will be an inquiry into the recommendation at which time the Chief of Police and the applicant or licensee will be afforded an opportunity to present testimony of witnesses and documentary evidence;

**5.** A statement that the applicant or licensee has a right to be represented by legal counsel; and

**6.** A statement that, based upon the evidence presented, the hearing officer shall decide either to reverse the recommendation or to suspend, revoke or deny the license.

**C.** If any ruling or decision of the hearing officer is appealed to the Council, enforcement of such ruling or decision shall be stayed until the Council has rendered its decision.

*(Ord. No. 17675)*

### Section 1711. Denials of new licenses; appeals.

If the Director of Finance denies the issuance of a license for a new sexually oriented business or the hearing officer denies a license for a sexually oriented business lawfully existing at the effective date of this ordinance or denies an application for a renewal license, or suspends or revokes a license, the Director of Finance shall send to the applicant or licensee, by certified mail, return receipt requested, written notice of the action and the right to an appeal. Upon receipt of written notice of the denial, suspension or revocation, the licensee whose application for a license has been denied or whose license has been suspended or revoked shall have the right to appeal to the City Council. An appeal to the City Council must be filed within ten (10) days after the receipt of notice of the decision of the Director of Finance or the hearing officer. All appeals shall be heard by the Council within fourteen (14) days of receipt of the appeal. Appeals from the Council shall be as provided by the laws of the state of Oklahoma.

*(Ord. No. 17675)*

### Section 1712. Transfer of license.

A licensee shall not transfer his license to another, nor shall a licensee operate a sexually oriented business under the authority of a license at any place other than the address designated in the application.

### Section 1713. Location of sexually oriented businesses.

Sexually oriented businesses shall be located only in accordance with the zoning and spacing requirements of the Zoning Code, Title 42, Tulsa Revised Ordinances, Chapter 7.

### Section 1714. Additional regulations for adult motion picture arcades.

**A.** It has been established that the operation of an adult motion picture arcade can result in unlawful public sexual conduct, unsanitary conditions in and around the premises and the transmission of sexually-related diseases such as Acquired Immune Deficiency Syndrome (AIDS), syphilis and other similar ailments unless the manner of such operation is properly regulated. The purpose of this section is to regulate the manner of operation of adult motion picture arcades in order to deter such hazards to the public health, safety and welfare and to facilitate their detection and prevention.

**B.** A person who operates or causes to be operated an adult motion picture arcade which exhibits on the premises in viewing rooms of less than one hundred fifty (150) square feet of floor space, still pictures, motion pictures, video pictures or other images distinguished or characterized by an emphasis on depicting sexual conduct or specified anatomical areas, shall be subject to the following additional requirements:

**1.** Upon application for a sexually oriented business license, the application shall be accompanied by a diagram of the premises showing a plan thereof specifying the location of one (1) or more manager's stations and the location of all overhead lighting fixtures and designating any portion of the premises in which patrons will not be permitted. A manager's station may not exceed thirty-two (32) square feet of floor area. The diagram shall also designate the place at which the permit will be conspicuously posted, if granted. A professionally prepared diagram in the nature of an engineer's or architect's blueprint shall not be required; however, each diagram should be oriented to the north or to some designated street or object and should be drawn to a designated scale or with marked dimensions sufficient to show the various internal dimensions of all areas of the interior of the premises to an accuracy of plus or minus six (6) inches. The Chief of Police may waive the foregoing diagram for renewal applications if the applicant adopts a diagram that was previously submitted and certifies that the configuration of the premises has not been altered since it was prepared.

**2.** The application shall be sworn to be true and correct by the applicant.

**3.** No alteration in the configuration or location of a manager's station may be made without the prior approval of the Chief of Police or his designee.

**4.** It is the duty of the owners and operator of the premises to ensure that at least one (1) employee is on duty and situated in each manager's station at all times that any patron is present inside the premises.

**5.** The interior of the premises shall be configured in such a manner that there is an unobstructed view from a manager's station of every area of the interior of the premises to which a patron is permitted access for any purpose, excluding restrooms. Restrooms may not contain video reproduction equipment. If the premises has two (2) or more manager's stations designated, then the interior of the premises shall be configured in such a manner that there is an unobstructed view of each area of the premises to which any patron is permitted access for any purpose from at least one (1) of the manager's stations. The view required in this subsection must be by direct line of sight from the manager's station.

**6.** It shall be the duty of the owners and operator, and it shall also be the duty of any agents and employees present in the premises to ensure that the view area specified in paragraph 5 remains unobstructed by any doors, walls, merchandise, display racks or other materials at all times that any patron is present in the premises and to ensure that no patron is permitted access to any area of the premises which has been designated as an area in which patrons will not be permitted in the application filed pursuant to paragraph 1 of this section.

**7.** The premises shall be equipped with overhead lighting fixtures of sufficient intensity to illuminate every place to which patrons are permitted access at an illumination of not less than one (1) footcandle as measured at the floor level.

**8.** It shall be the duty of the owners and operator and it shall also be the duty of any agents and employees present in the premises to ensure that the illumination described above is maintained at all times that any patron is present in the premises.

**9.** It shall be the duty of the operator and it shall also be the duty of any agents and employees present to ensure that no viewing area is occupied by more than one (1) patron or customer at a time.

**10.** It shall be the duty of the operator and it shall also be the duty of any agents and employees present to ensure that no viewing area shall have any hole or opening into an adjacent viewing area.

**C.** A person having a duty under paragraphs 1 through 10 of Subsection A, above, commits an offense if he knowingly fails to fulfill that duty.

### Section 1715. Penalty.

**A.** Any person who shall violate any of the provisions of this chapter, either by doing anything which is prohibited or by failure or refusal to do anything which is commanded, shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period not exceeding ninety (90) days. Each day that a violation is committed or permitted to continue shall constitute a separate offense.

**B.** A person who operates or causes to be operated a sexually oriented business without a valid license or in violation of this chapter, is subject to a suit for injunction as well as prosecution for criminal violations.

## CHAPTER 18. PENALTY

Section 1800. Penalty.

### Section 1800. Penalty.

Unless otherwise provided in this title, any person who shall violate any of the provisions of this title, either by doing anything which is prohibited or by failure or refusal to do anything which is commanded, shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period not exceeding thirty (30) days. Each day such violation is committed or permitted to continue shall constitute a separate offense.

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## CHAPTER 19. INTRUSION ALARM CERTIFICATION

Section 1900. Title.
Section 1901. Purpose.
Section 1902. Definitions.
Section 1903. Alarm user choice.
Section 1904. First response certificate issuance.
Section 1905. First response certificate renewal.
Section 1906. Intrusion alarm dispatch request
Section 1907. First response certificate cancellation.
Section 1908. Exclusions.

### Section 1900. Title.

This chapter may be cited as the "Intrusion Alarm Certification Ordinance."

*(Ord. Nos. 18188, 19721; Ord. No. 23129, § 1, 6-9-2014)*

### Section 1901. Purpose.

**A.** The purpose of this chapter is to encourage residential and commercial alarm users to assume increased responsibility for maintaining the mechanical reliability and the proper use of intrusion alarm systems, to prevent unnecessary police emergency response to false alarms and protect the emergency response capability of the City. A study of alarm responses for the City of Tulsa indicated that false alarms are caused almost exclusively by either human failure to use the system properly or mechanical failure resulting from malfunction or poor design. By coming to the understanding that, other than actual criminal activity, there is no valid reason for an alarm to activate, the police can better target responses to crime.

**B.** This chapter draws a distinction between police response to requests by individual persons and police response to requests made by mechanical devices. It is the policy of the City of Tulsa Police Department to respond to valid requests for service. Nothing in this chapter lessens or increases that responsibility. It is also understood that many requests for service to mechanical activations are not valid calls for service and the resident does not want the police to respond.

*(Ord. Nos. 18188, 19721; Ord. No. 23129, § 1, 6-9-2014)*

### Section 1902. Definitions.

**A.** Terms which are not defined in this chapter shall have their ordinarily accepted meanings or such as the context may imply.

**B.** When not inconsistent with the context, words used in the present tense include the future tense, words in plural include the singular and words in the singular include the plural. The word "shall" is always mandatory and not directory.

**C.** For the purpose of this chapter, each of the following words and phrases shall have the meanings given below.

**1. Alarm Certificate Administrator** means a person supervised and designated by the Director of Finance to administer, control and review intrusion alarm applications, certificates and alarm dispatch requests.

2. **Alarm Industry Business** means any entity having obtained a license pursuant to the provisions of the Alarm Industry Act of the state of Oklahoma who sells, leases, maintains, services, repairs, alters, replaces, moves, installs or monitors any intrusion alarm system.
3. **Intrusion Alarm Dispatch Request** means a notification to the police of the City of Tulsa from an alarm industry business that an intrusion alarm system has activated.
4. **Intrusion Alarm Response** shall mean an actual police response to the location of an intrusion alarm system resulting from an intrusion alarm dispatch request.
5. **Alarm Site** means a single premise or location served by a single intrusion alarm system.
6. **Intrusion Alarm System** shall mean any single assembly of equipment, mechanical or electrical, arranged to signal the occurrence of an entry or attempted entry into the area protected by the system. A single intrusion alarm system shall be contained at one (1) physical address and able to be activated independently of any other system.

   This definition shall not be construed as to apply to:

   **a.** Duress alarms,

   **b.** Vehicle alarms,

   **c.** Any alarm designed to alert only the inhabitants of a premise that does not have a sounding device that can be heard on the exterior of the premise,

   **d.** Or personal alarms.
7. **Residential Alarm User** shall mean and include the person or persons, over the age of eighteen (18), owning or leasing the residential property where an intrusion alarm system is located.
8. **Commercial Alarm User** shall mean and include the person or persons, over the age of eighteen (18) owning, leasing, or managing the commercial property where an alarm system is located.
9. **Chief of Police** shall mean the duly appointed, qualified or acting Chief of Police of the City of Tulsa or his authorized representative.
10. **Director of Finance** shall mean the duly appointed, qualified or acting Director of the Finance Department of the City of Tulsa or his authorized representative.
11. **Duress Alarm** means a silent alarm signal generated by the manual activation of a device intended to signal a crisis situation requiring police response.
12. **False Alarm Dispatch** means an intrusion alarm dispatch request when the responding officer finds no evidence of criminal activity after having completed an investigation of the location. An intrusion alarm dispatch request that is canceled by the alarm user or the alarm industry business prior to the time an officer reaches the location shall not be considered a false alarm dispatch. Any intrusion alarm response that is first designated as a false alarm dispatch but where the alarm user later shows convincing evidence of criminal activity to the alarm certificate administrator and files a police report, shall, subject to the judgment of the alarm certificate administrator, be amended to not be recorded as a false alarm dispatch.

13. **First Response** means the police receive an intrusion alarm dispatch request and elect to provide intrusion alarm response.
14. **First Response Certificate** shall mean a certificate issued to an alarm user who has met all requirements of this chapter. Issuance shall not create any property right in the renewal, reinstatement or continued unsuspended or unrevoked status of a certificate.
15. **Holdup Alarm** means a silent alarm signal generated by the manual activation of a device intended to signal a robbery in progress.
16. **Monitoring** means the process by which an alarm industry business receives signals from intrusion alarm systems and relays an intrusion alarm dispatch request to the City of Tulsa for the purpose of summoning police response to the alarm site.
17. **Person** shall mean every natural person, firm, partnership, association or corporation.
18. **Certificate** shall mean a valid first response certificate that is not under suspension or revocation.
19. **Certificate Year** shall mean one (1) year from the date of issuance of a first response certificate.
20. **Police** shall mean any or all sworn officers of the City of Tulsa Police Department.
21. **Secondary Response** means the police receive an intrusion alarm dispatch request but elect not to provide intrusion alarm response until after the alarm industry business has provided its own alarm response to the alarm site and has determined evidence of actual or attempted criminal activity.
22. **Verify** means an attempt by an alarm industry business to contact the alarm site by telephonic or other electronic means, whether or not actual contact with a person is made, prior to an intrusion alarm dispatch request, in an attempt to avoid a false alarm dispatch.

*(Ord. Nos. 18188, 18781, 19421, 19721; Ord. No. 23129, § 1, 6-9-2014)*

**Section 1903. Alarm user choice.**

At the inception of this ordinance or following the installation of an intrusion alarm system, every residential or commercial alarm user shall be responsible for choosing to request the police provide first response or secondary response to their intrusion alarm system. Should a person elect the police to act as secondary response, the residential or commercial alarm user shall not be required to obtain a certificate or comply with any further provisions of this chapter.

*(Ord. Nos. 18188, 19721; Ord. No. 23129, § 1, 6-9-2014)*

**Section 1904. First response certificate issuance.**

**A.** A residential alarm user may obtain a first response certificate by payment of a $35.00 fee and demonstrating the following qualifications to the satisfaction of the alarm certificate administrator:

1. That the residential alarm user has been trained in the use of their intrusion alarm system by their alarm industry business representative:
2. That a set of written operating instructions for the intrusion alarm system, including written guidelines on how to avoid false intrusion alarms, is available at the alarm site;

3. That the residential alarm user has not had any first response certificate issued in their name revoked within the previous twelve (12) month period preceding the application date;
4. That there are no other active certificates issued for that residence.

**B.** A commercial alarm user may obtain a first response certificate by payment of a seventy five dollar ($75.00) fee and demonstrating the following qualifications to the satisfaction of the alarm certificate administrator:

1. That the commercial alarm user has been trained in the use of their intrusion alarm system by their alarm industry business representative;
2. That a set of written operating instructions for the intrusion alarm system, including written guidelines on how to avoid false intrusion alarms, is available at the alarm site;
3. That the commercial alarm user has not had any first response certificate issued in their name revoked within the previous twelve (12) month period preceding the application date;
4. That there are no other active certificates issued for that commercial property.

**C.** Each certificate application must include the following information:

1. The name, address and telephone numbers of the alarm user(s);
2. The name, address and telephone numbers of other persons who may be contacted concerning the intrusion alarm system;
3. The business name of where the intrusion alarm system is located, if it is a commercial location;
4. The name, Oklahoma alarm industry license number, business address and telephone number of the alarm industry business performing the monitoring service.

**D.** Any false statement made by an applicant for the purpose of obtaining an alarm certificate shall be sufficient cause for refusal to issue a certificate or for the immediate revocation of an already issued certificate.

**E.** A first response certificate shall not be transferable to any other residential or commercial alarm user or alarm site.

**F.** Each certificate shall expire one (1) year from the date of issuance.

**G.** Any residential or commercial burglary alarm user's permit issued pursuant to the previous enactment of this chapter shall operate as a valid certificate pursuant to this chapter, through the anniversary date of the user permit's issuance. Thereafter the permit shall expire and the residential or commercial alarm user may apply for a first response certificate under the requirements of this chapter.

*(Ord. Nos. 18188, 18781, 19721, 20469; Ord. No. 23129, § 1, 6-9-2014)*

### Section 1905. First response certificate renewal.

On the expiration date or up to thirty (30) days prior to the expiration date, if the residential or commercial alarm user continues to meet the requirements of Section 1904, a first response certificate may be renewed upon the submission of an updated application and the payment of a renewal fee. The renewal fee shall be thirty-five ($35.00) for a

residential alarm user and seventy-five ($75.00) for a commercial alarm user. Late fees will be charged in accordance with Chapter 1 of this Title. It is the responsibility of the alarm user to submit an application prior to the expiration date and to promptly notify the alarm certificate administrator when they change residence or their certificate is no longer required. A first response certificate that is not renewed within ninety (90) days after its expiration shall not be renewed.

*(Ord. Nos. 18188, 19721, 20469, 20959, 21214; Ord. No. 23129, § 1, 6-9-2014)*

**Section 1906. Intrusion alarm dispatch request**

**A.** When an intrusion alarm dispatch request is made, it will first be determined if the alarm site has a valid first response certificate. In the event the alarm site does not have a certificate, the alarm industry business will be immediately notified that the police will be the secondary response for this intrusion alarm dispatch request.

**B.** The police will provide intrusion alarm response as soon as practical to all calls for service when the alarm user holds a certificate. The responding officer will respond to the alarm site and investigate whether the alarm dispatch request was due to criminal activity or a false alarm dispatch. The results of this investigation shall be reported back to the alarm certificate administrator for recording and follow-up. When the investigation indicates a false alarm dispatch, the responding officer shall, in every instance it is feasible, leave a written notification of the false alarm dispatch.

**C.** The City of Tulsa, its elected officials, officers, employees and agents shall not be liable for any loss or claim resulting from any failure to respond to an alarm site or the failure to investigate whether an intrusion alarm dispatch request was due to criminal activity or a false alarm dispatch. This chapter shall create absolutely no duty or liability upon the City of Tulsa, its elected officials, officers, employees and agents.

*(Ord. Nos. 18188, 18344, 18635, 19421, 19721; Ord. No. 23129, § 1, 6-9-2014)*

**Section 1907. First response certificate cancellation.**

**A.** Every false alarm dispatch to an alarm site where a residential or commercial alarm user holds a first response certificate shall be tracked individually. Any residential or commercial alarm user who accumulates two (2) or more false alarm dispatches at one (1) alarm site within their certificate year shall have their first response certificate for that alarm site cancelled.

**B.** No cancellation under the provisions of this section shall be effective until the alarm certificate administrator shall mail, by first class U.S. mail, a notice of cancellation to the residential or commercial alarm user. The notice of cancellation, shall inform the residential or commercial alarm user of the right to appeal the validity of the cancellation. The notice of cancellation shall inform the residential or commercial alarm user that his or her certificate shall be cancelled effective ten (10) days from the date of determination by the alarm certificate administrator unless an appeal has been made pursuant to Subsection D of this section.

**C.** Upon cancellation, any residential or commercial alarm user may submit application to the Director of Finance for a new First Response Alarm certificate in accordance with Section 1904 of this title.

**D.** The alarm certificate administrator shall have the authority to determine whether a first response certificate shall be issued, cancelled, or renewed. Determinations of the

alarm certificate administrator shall be final; provided, any right of appeal shall not be abrogated. Any appeal to the City Council mandated by Charter shall be initiated by filing a petition with the City Clerk within ten (10) days from the date of determination by the alarm certificate administrator. An appeal stays all proceedings in furtherance of the action appealed from.

*(Ord. Nos. 18188, 19333, 19421, 19721, 20192; Ord. No. 23129, § 1, 6-9-2014)*

**Section 1908. Exclusions.**

**A.** No provision within this chapter shall be construed as to apply to duress or holdup alarms, manually activated buttons or robbery alarm systems that elicit an immediate police response to their activation.

**B.** No provision within this chapter shall be construed as to apply to any building, structure or facility owned, controlled or occupied by the United States of America, the state of Oklahoma or any governmental subdivision of the state of Oklahoma.

*(Ord. Nos. 18188, 19721; Ord. No. 23129, § 1, 6-9-2014)*

## CHAPTER 20. OUTDOOR SELLERS

Section 2000. General words and phrases defined.
Section 2001. Outdoor selling without a license prohibited.
Section 2002. Penalty.
Section 2003. License required.
Section 2004. Application procedure.
Section 2005. Application fee.
Section 2006. Review and investigation; issuance or denial.
Section 2007. Appeal of denial by Director.
Section 2008. License for outdoor sellers; fixed outdoor location of business to be specified.
Section 2009. Compliance with site plan required by outdoor seller; amended site plans; fee.
Section 2010. Display.
Section 2011. Revocation.
Section 2012. Surrender upon expiration or revocation.
Section 2013. Renewal of license.

### Section 2000. General words and phrases defined.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this chapter, except where the context clearly indicates a different meaning:

**A. Outdoor seller** means any person offering or exposing for retail sale, or making retail sales of, any goods, products, wares or merchandise or other personal property of any type, at any outdoor business location; provided, however, that this definition shall not include merchants who ordinarily and regularly offer such items for retail sale within permanent structures located on the same premises; provided further that this definition shall not include those sales commonly known as a garage sale, porch sale, backyard sale, patio sale, lawn sale, yard sale, attic sale, estate sale, moving sale or any similar sale of tangible personal property held out for sale to the public and conducted from or on any lot in a residential zoning district conducted by an individual who owns, leases or has the permission of the owner of the structure located on the same premises.

**B. Retail sale or sales** means any sale or sales transactions of goods, products, wares, merchandise or other personal property, except as made by a person engaged in selling such personal property at wholesale to dealers in such property.

**C. Director** shall mean the Director of Finance or such other person designated by the Mayor to enforce the provisions of this chapter or that person's designee.

*(Ord. No. 18984)*

### Section 2001. Outdoor selling without a license prohibited.

No outdoor seller shall engage in retail sales without a license as set forth in this chapter.

*(Ord. No. 18984)*

## Section 2002. Penalty.

Any person violating any provision of this chapter shall be, upon conviction, subject to a fine in an amount not to exceed Five Hundred Dollars ($500.00), plus costs. Every sale of an outdoor seller without a license or otherwise in violation of this chapter shall constitute a separate offense.

*(Ord. No. 18984)*

## Section 2003. License required.

No outdoor seller shall engage in business within the corporate limits of the City of Tulsa without first obtaining a license from the Director.

*(Ord. No. 18984)*

## Section 2004. Application procedure.

Applicants for a license pursuant to this chapter shall file with the Director a verified application on a form to be furnished by the Director, which shall contain the following information:

**A.** The full name, description, birth date and social security number of the applicant;

**B.** The applicant's address, both legal and local;

**C.** A brief description of the business to be conducted, items to be sold and the legal description and address of any fixed outdoor location desired for business;

**D.** The time period for which the applicant desires to do business;

**E.** The license number and description of any vehicle to be used (if applicable);

**F.** A verification that the applicant or the applicant's employer is a vendor registered with the Oklahoma Tax Commission, or other proof that sales tax has been or is being paid on the items sold or to be sold; or proof that the applicant or the applicant's employer is exempt from the payment of sales tax;

**G.** The content of any signs to be used;

**H.** A site plan depicting the fixed outdoor location desired, if any, and the location of any structure, vehicle, sign or display to be used while conducting the business at such fixed location;

**I.** A written, notarized statement by the legal owner of the land upon which any fixed outdoor business location shall be located authorizing the use of the land for the purposes desired by the applicant;

**J.** If employed by another, the name and address of the applicant's employer, together with a brief description of credentials showing the exact relationship;

**K.** A statement of whether the applicant has been convicted within the previous five (5) years of a felony or misdemeanor involving dishonesty or fraud, and the punishment or penalty assessed.

*(Ord. No. 18984)*

**Section 2005. Application fee.**

Any person making application for a license required by the provisions of this chapter shall pay to the Director an application fee. The amount of such fee shall be Fifteen Dollars ($15.00).

*(Ord. No. 18984)*

**Section 2006. Review and investigation; issuance or denial.**

**A.** Upon receipt of an application for a license pursuant to this chapter, the Director shall make or cause to be made any inquiry or investigation that may be necessary to determine whether the applicant is in compliance with the provisions of all laws and ordinances applicable to outdoor selling as well as other applicable provisions of this code.

**B.** Upon completion of any investigation as provided for by this chapter, the Director shall review the application to ensure:

**1.** That the applicant or the applicant's employer is a vendor registered with the Oklahoma Tax Commission for the payment of sales tax, or that he or she has otherwise demonstrated that sales tax has been or is being paid on the items sold, or that the applicant or the applicant's employer is exempt from payment of such tax;

**2.** That the applicant or the applicant's employer is aware of the responsibility to collect and pay sales tax, unless tax exempt;

**3.** That the site chosen for any fixed outdoor business location is appropriately zoned for such a land use, is otherwise in full compliance with Title 42, Tulsa Revised Ordinances (Tulsa's Zoning Code), and that the said location does not extend onto any portion of the public right-of-way;

**4.** That the applicant's character or business responsibility is not "unsatisfactory" (as defined in Subsection D, below);

**5.** That the applicant's proposed signs and locations comply with all of the provisions of Title 42, Tulsa Revised Ordinances (Tulsa's Zoning Code); and

**6.** That the application otherwise complies with all of the provisions of the Tulsa Revised Ordinances.

**C.** Within seven (7) business days after receipt of the application, the Director shall either approve or disapprove of the application. Grounds for disapproval shall be the following:

**1.** A finding that the application is incomplete;

**2.** Nonpayment of the application fee;

**3.** Failure of the applicant to verify that he or she, or the applicant's employer, is a vendor registered with the Oklahoma Tax Commission for the payment of sales tax; or that sales tax has been or is being paid on the items sold; or that he or she, or the applicant's employer, is otherwise exempt from payment of sales tax;

**4.** A finding that the site chosen for a fixed outdoor business location is not properly zoned for the proposed land use or that said site extends onto a portion of the public right-of-way;

**5.** A finding that the applicant's proposed signs and locations therefor are not in compliance with Title 42, Tulsa Revised Ordinances (Tulsa's Zoning Code);

**6.** A finding that the application is not in conformance with any other applicable provisions of the Tulsa Revised Ordinances; or

**7.** A finding that the applicant's character or business responsibility for an outdoor seller license is "unsatisfactory" (as defined in Subsection D, below); or if the application is approved, the Director shall issue the permit. If the application is disapproved, the Director shall state in writing and with specificity the reason(s) for disapproval. The Director shall immediately notify the applicant of such disapproval. Mailing a copy of the letter of disapproval to the address shown on the application shall be deemed to be adequate notification of the applicant.

**D.** For the purposes of this chapter, "unsatisfactory character or business responsibility" of an applicant shall be defined as follows:

**1.** A finding that the applicant has been convicted of two (2) or more violations of the provisions of this chapter within the preceding twelve (12) months; or

**2.** A finding that a previous license held by the applicant pursuant to the provisions of this chapter was revoked within the previous twelve (12) months; or

**3.** A conviction, within the previous five (5) years, of either a felony or misdemeanor offense involving fraud or dishonesty, including but not limited to larceny, burglary, robbery, embezzlement or crimes involving fraud.

*(Ord. No. 18984)*

### Section 2007. Appeal of denial by Director.

An applicant who has been denied a license under this chapter may appeal the denial to the City Council. Such appeal must be filed with the Council Secretary no later than ten (10) days after denial.

*(Ord. No. 18984)*

### Section 2008. License for outdoor sellers; fixed outdoor location of business to be specified.

The Director shall specify on the face of the license the legal description and address of the fixed outdoor location desired for business by any outdoor seller. The Director shall specify on the face of the license the expiration date. No license may be issued for any length of time longer than one hundred fifty (150) days from the date of the application. The outdoor seller shall engage in business only at the fixed outdoor location specified on the face of the license.

*(Ord. No. 18984)*

### Section 2009. Compliance with site plan required by outdoor seller; amended site plans; fee.

**A.** All outdoor sellers shall comply with the site plan submitted pursuant to the provisions of this chapter in regard to the fixed outdoor location specified therein, and in regard to the location of any structure, vehicle, sign or display to be used while conducting business at such fixed outdoor location.

**B.** An outdoor seller who desires a different fixed outdoor location for conducting business, or who desires to otherwise amend the submitted site plan, shall file an amended site plan prior to deviating from the site plan then on file with the Director.

**C.** Upon the filing of an amended site plan, the Director shall review it to ensure compliance with the provisions of this chapter and all other applicable provisions of this code. If the amended site plan is approved, the Director shall amend the license to indicate any new fixed outdoor location for the conduct of the business.

**D.** Failure of an outdoor seller to comply with the original or amended site plan on file with the Director shall constitute a violation of this chapter subject to the penalty specified in this chapter.

*(Ord. No. 18984)*

### Section 2010. Display.

Outdoor sellers are hereby required to exhibit and display their licenses or authorized evidence thereof at all times whenever they are engaged in outdoor selling.

*(Ord. No. 18984)*

### Section 2011. Revocation.

Licenses issued under the provisions of this chapter may be revoked. Grounds for revocation shall include but not be limited to the following:

**A.** Fraud, misrepresentation or any false statement contained in the application for the license;

**B.** Conviction of the licensee of a felony;

**C.** Conviction of a misdemeanor involving fraud or dishonesty, including but not limited to fraud, larceny, burglary, robbery or embezzlement;

**D.** A conviction of the licensee for two (2) or more violations of the provisions of this chapter within the preceding twelve (12) months;

**E.** A finding that the licensee has conducted the business for which the license was issued in an unlawful manner or in such manner as to constitute a breach of the peace.

*(Ord. No. 18984)*

### Section 2012. Surrender upon expiration or revocation.

When a license issued pursuant to the provisions of this chapter expires, or is revoked, its holder shall surrender it to the Director and the license shall become the property of the City.

*(Ord. No. 18984)*

### Section 2013. Renewal of license.

The holder of any expiring license, issued under this chapter, who desires a new license, shall file a written application for renewal with the Director. The application for renewal shall contain the information required in Section 2004 of this chapter. The Director, in determining whether to approve or disapprove an application for renewal of a license, shall be guided by the provisions in Section 2006 of this chapter.

*(Ord. No. 18984)*

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## CHAPTER 21. SPECIAL RESIDENTIAL HOUSING FACILITIES

Section 2100. Definition.
Section 2101. Permit required.
Section 2102. Location properly zoned.
Section 2103. Fee.

### Section 2100. Definition.

Special Residential Housing Facilities shall include those uses identified by the Tulsa Zoning Code as detention/correctional facilities, homeless centers, transitional living centers and residential treatment centers.

*(Ord. Nos. 19499, 19821)*

### Section 2101. Permit required.

Every person who locates, constructs, maintains or operates any special residential housing facility within the City of Tulsa shall first procure a permit for such location, erection or construction from the Director of Finance of the City of Tulsa and procure a permit for the operation and maintenance thereof from the Director. The permit shall not be transferable to any other person or location. Each permit shall bear the signature of the Director of Finance and shall be valid for a five (5) year period immediately following issuance of the permit.

*(Ord. Nos. 19499, 19821)*

### Section 2102. Location properly zoned.

Before a special residential housing facility permit shall issue for the purposes herein enumerated, the applicant shall be required to exhibit a zoning clearance permit showing the location of the special residential housing facility is on property properly zoned for such use.

*(Ord. Nos. 19499, 19821)*

### Section 2103. Fee.

The permit fee established for the issuance of a special residential housing facility permit shall be Twenty Dollars ($20.00). The permit fee after expiration of the special residential housing facility permit shall be Twenty Dollars ($20.00).

*(Ord. Nos. 19499, 19821)*

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## CHAPTER 22. ENTERTAINMENT CLUB AFTER HOURS PERMIT

Section 2200. Purpose.
Section 2201. Definitions.
Section 2202. Permit required.
Section 2203. Application for permit.
Section 2204. Investigation.
Section 2205. Issuance of permit.
Section 2206. Denial of permit.
Section 2207. Appeal from denial of permit.
Section 2208. Display of permit.
Section 2209. Penalty.
Section 2210. Other laws applicable.

### Section 2200. Purpose.

It is the purpose of this chapter to regulate dances or events sponsored or operated by a non-profit political, educational, religious or fraternal organization held on the premises of an entertainment club between the hours of 2:00 a.m. and 7:00 a.m. The City of Tulsa regulates such dances or events to establish reasonable and uniform regulations to promote the health, safety and general welfare of those persons attending such dances or events and the general public. The regulation also seeks to prevent the secondary affects of such dances or events on surrounding and nearby properties. The City of Tulsa finds from studies it has done these regulations are necessary to protect property values, to prevent further deterioration of City neighborhoods, promote the return of residents and businesses to City neighborhoods and decrease the incidence of crime and juvenile delinquency. Further, the City finds that such events or dances tend to attract an undesirable quantity and quality of clientele and have an undesirable effect on surrounding and nearby properties.

*(Ord. No. 21776)*

### Section 2201. Definitions.

**A. Chief of Police** shall mean the Chief of the Police of the City of Tulsa, Oklahoma or his duly authorized representative.

**B. Director** shall mean the Director of Finance of the City of Tulsa or his duly authorized representative.

**C. Entertainment Club** shall mean an entertainment club as defined in Title 27, Tulsa Revised Ordinances, Section 2209.

*(Ord. No. 21776)*

### Section 2202. Permit required.

It shall constitute a nuisance and be unlawful for any non-profit political, educational, religious or fraternal organization to operate or sponsor a dance or event on the premises of an entertainment club between the hours of 2:00 a.m. and 7:00 a.m. without first obtaining a permit as required by this chapter.

*(Ord. No. 21776)*

## Section 2203. Application for permit.

**A.** Application for an entertainment club after hours permit shall be made to the Director on forms prepared and made available by the Director and shall provide the following:

**1.** The legal name of the non-profit organization making the application;

**2.** The legal address of the non-profit organization making the application;

**3.** The telephone number for the principal office of the non-profit organization making the application;

**4.** Proof of the non-profit legal status of the organization making the application;

**5.** The date of the formation of the organization and the state of formation of the organization making the application;

**6.** Proof that the non-profit organization making the application is authorized or licensed to do business or operate within the state of Oklahoma;

**7.** The legal name of the person making the application for the non-profit organization, his title with the non-profit organization, proof that he is authorized to sign the application on behalf of the organization and his telephone number;

**8.** The full names, addresses and phone numbers of the officers or agents of the non-profit organization who will remain on-site during the dance or event and will be overseeing, supervising and managing the dance or event on behalf of the non-profit organization making the application;

**9.** A written statement setting forth the safety and security plan for those persons attending the dance or event and all measures proposed to ensure that adequate crowd control, crowd protection and security, both inside and outside the premises of the entertainment club, will be maintained during the dance or event;

**10.** Type of dance or event to be operated or sponsored by the non-profit organization making application and the number of attendees anticipated to participate in the dance or event;

**11.** The date the event or dance will be held and the scheduled times that the event or dance will begin and end;

**12.** Such other information as the Director deems necessary to enforce the provisions of this chapter.

**B.** An application for an entertainment club after hours permit shall be made to the Director at least thirty (30) days, but no more than one (1) year prior to the scheduled date of the dance or event to be sponsored or operated by the non-profit political, educational, religious or fraternal organization. A separate application must be submitted for each date an event or dance is to be sponsored or operated by the non-profit political, educational, religious or fraternal organization.

**C.** Each application for a permit shall be accompanied by a non-refundable application fee of One Hundred Fifty Dollars ($150.00).

*(Ord. No. 21776)*

## Section 2204. Investigation.

**A.** Upon receipt of an application for a permit, the Director shall forward the completed application to the Chief of Police who shall promptly cause an investigation and review of the application made by the applicant.

**B.** No permit shall be issued until it shall be found by the Chief of Police that the dance or event, as proposed, will be operated or sponsored by the non-profit organization making the application in a manner in conformance with all sections of this chapter, the Tulsa Revised Ordinances, state and federal law and, in particular, all health, safety and fire regulations of the City.

*(Ord. No. 21776)*

**Section 2205. Issuance of permit.**

**A.** The Director shall authorize the issuance of a entertainment club after hours permit when he finds after investigation:

**1.** That the persons named on the application as the officers or agents of the non-profit organization who will remain on-site during the dance or event and will be overseeing, supervising and managing the dance or event on behalf of the non-profit organization making the application are:

**a.** eighteen (18) years of age or older;

**b.** have not been convicted of any felony, unless such person has received a full pardon, or convicted of any misdemeanor concerning prostitution, gambling, larceny, embezzlement, drugs, marijuana, assault and battery, contributing to the delinquency of a minor, knowingly permitting or allowing a juvenile to remain upon the premises of an establishment during curfew hours, unless five (5) years have passed since such last conviction; and

**c.** not holders of a federal gambling tax stamp.

**2.** That the manner in which the applicant proposed to sponsor or operate the dance or event after hours does not violate any provisions of federal law, the statutes and regulations of the state of Oklahoma or the ordinances of the City of Tulsa.

**B.** A misstatement of material fact in any application shall be grounds for denial of issuance of a permit hereunder.

**C.** Each permit issued by the Director shall be valid for one (1) dance or event for the date and times stated within the permit.

*(Ord. No. 21776)*

**Section 2206. Denial of permit.**

The Director shall act upon the application for the permit within ten days (10) days after the filing thereof. If the Director denies the application, he shall notify the applicant in writing within five (5) days after the denial, giving the reasons for the denial.

*(Ord. No. 21776)*

**Section 2207. Appeal from denial of permit.**

Any non-profit organization whose application for a permit is denied shall have the right to appeal to the Council. Notice of the appeal, stating the grounds therefor, shall be filed with the Director and the Council Secretary within five (5) days after receipt of the notice of denial. Appeals to the Council from any adverse decision of the Director, when timely and properly filed, shall be heard by the Council within eight (8) days. The Council shall receive any evidence it deems appropriate and shall either affirm, reverse or modify the Director's decision.

*(Ord. No. 21776)*

### Section 2208. Display of permit.

**A.** The holder of the permit issued hereunder shall place and exhibit the same at all times during the dance or event in some conspicuous place upon the premises of the entertainment club.

**B.** At least one (1) officer or agent of the non-profit organization sponsoring or operating the dance or event shall have a copy of the permit on his or her person on the premises of the entertainment club during the dance or event. The officer or agent shall present a copy of the permit upon demand by any law enforcement officer.

*(Ord. No. 21776)*

### Section 2209. Penalty.

Any person who shall violate any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00) and/or by imprisonment in the City jail for not more than six (6) months, excluding costs, fees and assessments. Each day of violation shall constitute a separate offense.

*(Ord. No. 21776)*

### Section 2210. Other laws applicable.

The provisions of this chapter shall not be construed to exempt any person or non-profit political, educational, religious or fraternal organization from compliance with any other applicable ordinance of the City of Tulsa not in conflict herewith, unless specifically excluded herein.

*(Ord. No. 21776)*

## CHAPTER 23. MOBILE VENDORS

Section 2300. Purpose.
Section 2301. Definitions.
Section 2302. License—Required.
Section 2303. Types of mobile vendors.
Section 2304. Operations and requirements.
Section 2305. Exemptions.
Section 2306. License application process.
Section 2307. Review and investigation—Issuance or denial.
Section 2308. License fee.
Section 2309. Expiration of license.
Section 2310. Exhibition of license—Transfer.
Section 2311. Renewal of license.
Section 2312. Site plan submission and approval—Site permit required.
Section 2313. Site permit fee.
Section 2314. Expiration of site permit.
Section 2315. Exhibition of site permit—Transfer.
Section 2316. Health regulations.
Section 2317. Mobile vendor standards.
Section 2318. Revocation of license.
Section 2319. Surrender upon expiration or revocation.
Section 2320. Appeal.
Section 2321. Violations—Penalties.

### Section 2300. Purpose.

The purpose of this ordinance is to regulate the actions of mobile vendors. It has been determined that the public health, safety, good order and general welfare of the residents of Tulsa require the regulation and management of such enterprises. The receipt of a mobile vendor license is a privilege which may be suspended, limited or revoked for violating the intent and letter of this ordinance.

*(Ord. No. 23072, § 1, 3-27-2014)*

### Section 2301. Definitions.

**Use of Words and Phrases.** As used in this chapter, unless the context or subject matter clearly requires otherwise, the words or phrases defined in this section shall have the indicated meanings.

**A. Commissary** shall mean an approved facility that provides support services for specific required functions of a mobile vendor. Any food establishment permitted or licensed by a regulatory agency, such as a catering operation, restaurant, grocery store or similar establishment or any otherwise approved facility in which food, containers or supplies are kept, handled, prepared, packaged or stored can be considered a commissary. When not required at the mobile vendor, commissaries may provide a three (3) compartment sink for washing, rinsing and sanitization of equipments/utensils in addition to hand wash and rest room facilities. Services required of the commissary will be based on the food sold and the mobile vendor type and capabilities. A private residence may not be used as a commissary.

**B. Concessionaire** means a person engaged in the sale of food or other goods or services in a city park or on city property, including without limitation those who operate or maintain a concession stand, in accordance with a written agreement or franchise therefore as lawfully approved in writing by the City.

**C. Food** has its usual and ordinary meaning, and includes all items designed for human consumption, including but not limited to ice cream, candy, gum, popcorn, hotdogs, sandwiches, peanuts, soft drinks, coffee and dairy products.

**D. Director** shall mean the Director of Finance for the City of Tulsa or such other person designated by the Mayor to enforce the provisions of this chapter or that person's designee.

**E. Mobile vendor** shall mean an outdoor seller, as defined herein, and any business operator or vendor who conducts business from or through use of a motor vehicle as defined herein.

**F. Vehicle** in this chapter shall mean a push cart, a trailer, a three-wheeled pedal carrier or like device or a motorized vehicle that is registered and licensed by the Oklahoma State Department of Motor Vehicles.

**G. Outdoor seller** means any person offering or exposing for retail sale, or making retail sales of, any goods, products, wares or merchandise or other personal property of any type, other than food at any outdoor business location; provided, however, that this definition shall not include merchants who ordinarily and regularly offer such items for retail sale within permanent structures located on the same premises; provided further that this definition shall not include those sales commonly known as a garage sale, porch sale, backyard sale, patio sale, lawn sale, yard sale, attic sale, estate sale, moving sale or any similar sale of tangible personal property held out for sale to the public and conducted from or on any lot in a residential zoning district conducted by an individual who owns, leases or has the permission of the owner of the structure located on the same premises.

*(Ord. No. 23072, § 1, 3-27-2014)*

### Section 2302. License—Required.

It is unlawful for a mobile vendor to engage in sales business within the City except when licensed as a mobile vendor in compliance with the provisions of this chapter. A separate mobile vendor site permit may be required for each location as provided hereinafter.

*(Ord. No. 23072, § 1, 3-27-2014)*

### Section 2303. Types of mobile vendors.

The following mobile vendor operations shall be licensed as set forth in this chapter:

**A. Seasonal Food Service Establishment:**

**1.** These are seasonal food services described by the City Health Code as type 45 Class S operations.

**a.** The seasonal food service establishment is limited to serving coffee, and snow cones with use of liquid milk, raw fruits, raw vegetables, nuts in the shell, and commercially bottled syrup, sorghum, honey, sweet cider, and other non-time/temperature control for safety foods.

**b.** These operations shall be restricted to a maximum annual operation of one hundred eighty (180) consecutive days.

**c.** These operations are restricted to commercial, industrial, business and parking zoning districts.

**d.** The Director shall specify on the face of the business license the expiration date. No license may be issued for any length of time longer than one hundred eighty (180) days from the date of the application.

**B. Mobile Food Service Establishment:**

**1.** These are referred to as mobile food service establishments and are classified by the Tulsa Health Code as type 45 Class MI. "Mobile food service establishment" means a facility that prepares food and is vehicle mounted (is Department of Transportation road approved, including wheels and axles), is readily moveable and remains at one (1) physical address for no more than twelve (12) hours at one (1) time.

**a.** These operations include all types of food preparation operations as identified and permitted by the Tulsa City-County Health Department.

**b.** These operations must physically return to their commissaries daily for Health Department compliance, including but not limited to wastewater disposal, maintenance, cleaning, etc.

**c.** These operations must notify the City, in writing, as part of the application for license process, the following information:

(1) A schedule of times and locations for their operations;

(2) Location, street address, of their commissary;

**d.** These operations are restricted to commercial, industrial, business and parking zoning districts.

**e.** Private property locations:

If this service is to be located on private property for any time, prior written approval of the operation from the private property owner must be submitted to the City along with the application, and such written permission must be posted on the carrier.

**C. Mobile Retail Food Service Establishment:**

**1.** These operations include the sale of packaged foods from a stationary display as approved by the Tulsa City-County Health Department prior to the issuance of a license by the City as provided herein.

**2.** Private property locations:

If this service is to be located on private property for any time, prior written approval of the operation from the private property owner must be submitted to the City along with the application, and such written permission must be posted on the carrier at the site.

**3.** These operations are restricted to commercial, industrial, business and parking zoning districts.

**D. Mobile Push Cart Food Services:**

**1.** "Mobile push cart" means a non-self propelled food unit that can be manually moved.

**2.** These operations shall relocate at intervals not to exceed every four (4) hours if located in public right-of-way.

**3.** These services may operate in locations including, but not limited to City right-of-way.

**4.** Private property locations:

If this service is to be located on private property for any time, prior written approval of the operation from the private property owner must be submitted to the City along with the application, and such written permission must be posted on the carrier at the site.

**5.** These operations are restricted to commercial, industrial, business or parking zoning districts.

**6.** These operations performed inside commercial businesses such as hospitals, mall shopping centers, etc. are exempt.

**E. Seasonal Outdoor Sellers (non-food):**

**1.** These operations include sales of all types of goods and wares as specified in the definition of "outdoor sellers" provided herein.

**2.** These operations are restricted to commercial, industrial, business or parking zoning districts.

**3.** The Director shall specify on the face of the license the expiration date. No license may be issued for any length of time longer than one hundred eighty (180) days from the date of the application.

**4.** Private property locations:

If this service is to be located on private property for any time, prior written approval of the operation from the private property owner must be submitted to the City along with the application, and such written permission must be posted on the carrier.

*(Ord. No. 23072, § 1, 3-27-2014)*

**Section 2304. Operations and requirements.**

In addition to the business license described herein, mobile vendors must meet all other applicable legal requirements, such as:

**A.** Qualify for and obtain food license from the Tulsa City-County Health Department;

**B.** Satisfactory participation in the Mobile Food Vending Best Business Practice Program administered by the City of Tulsa in conjunction with the Tulsa City-County Health Department, if applicable;

**C.** Qualify for and obtain a mobile vendor site permit, if applicable;

**D.** Qualify for and obtain temporary building permit, if applicable;

**E.** Qualify for and obtain temporary tent permit, if applicable; and

**F.** Satisfy all other unspecified but applicable legal requirements.

*(Ord. No. 23072, § 1, 3-27-2014)*

**Section 2305. Exemptions.**

The following activities, businesses and/or persons, as such are commonly known, shall be exempt from coverage of this chapter, but this exemption shall not be construed to limit or restrict the application of other laws and regulations pertaining to such activities, businesses and/or persons:

**A.** Newspaper couriers;

**B.** Traditional neighborhood lemonade stands;

**C.** Stands used to sell or distribute flowers, fruit, vegetables, produce or plants grown on the property where the stand is located;

**D.** Delivery or distribution of food, goods or products ordered or purchased by customers from a source or point of sale other than a mobile vehicle operated for the purpose of soliciting customers while traveling or while located on city streets or property;

**E.** Delivery or distribution of food by or for any not-for-profit organization, governmental agency or other charitable organization, including without limitation Meals on Wheels and the Food Bank; and

**F.** Concessionaires as defined in this chapter, except that concession agreements with the City shall include health, sanitation and insurance requirements generally conforming to those established for similar businesses and vendors covered by this chapter.

**G. Farmers Markets:**

"Farmers market" means a designated area in which farmers, growers or producers from a defined region gather on a regularly scheduled basis to sell at retail non-potentially hazardous farm food products and whole shell eggs to the public. A portion of the raw food ingredients used by the individual vendor to produce a product must have been grown or raised by the vendor. A farmers market must have written operational guidelines and a minimum of six (6) vendors along with a designated market manager or advisory board who will be responsible for distribution of a copy of the guidelines to the vendors. Farmers markets must be registered by the Oklahoma Department of Agriculture, Food and Forestry. This definition does not include individual farmers who grow and sell unprocessed fruit and/or vegetables from the farm, roadside or truck.

**H.** Tulsa State Fair.

**I.** Special events that have been permitted and approved by the Council.

*(Ord. No. 23072, § 1, 3-27-2014)*

**Section 2306. License application process.**

**A. Application.** Applicants for a license pursuant to this chapter, shall file with the Director a verified application on a form to be furnished by the Director, which shall contain the following information:

**1.** The name or names, birth date, social security number, and address (street and mailing, if different) of the applicant;

**2.** Vehicle license number and description of all vehicles from which the applicant proposes to conduct business;

**3.** Description of the general type of food or non-food items to be sold if applicable;

**4.** The place or places where the applicant proposes to engage in business for more than thirty (30) minute intervals and a schedule of dates, hours, etc.

**5.** The identity of the Commissary, if applicable, its proprietor, its street and mailing address and phone number;

**6.** A Business License Application from the Tulsa City-County Health Department, certifying that the mobile vending business has complied with all applicable state and local Health Department regulations;

**7.** A letter from the appropriate City of Tulsa office certifying that the applicant has successfully completed the Mobile Food Vending Best Business Practice Program.

**8.** A verification that the applicant or the applicant's employer is a vendor register with the Oklahoma Tax Commission, or other proof that sales tax has been or is being paid on the items sold or to be sold; or proof that the applicant or the applicant's employer is exempt from the payment of sales tax.

**9.** A written, notarized statement by the legal owner of any private land upon which any outdoor business operation shall be located authorizing the use of the land for the purposes desired by the applicant.

**10.** The content of any signs to be used and their location.

**11.** Such other information as the City may require and as requested in said application form.

*(Ord. No. 23072, § 1, 3-27-2014)*

### Section 2307. Review and investigation—Issuance or denial.

**A.** Upon receipt of an application for a license pursuant to this chapter, the Director shall make or cause to be made any inquiry or investigation that may be necessary to determine whether the applicant is in compliance with the provisions of all applicable laws and ordinances as well as other applicable provisions of this code.

**B.** Upon completion of any investigation as provided for by this chapter, the Director shall review the application to ensure:

**1.** That the applicant or the applicant's employer is a vendor registered with the Oklahoma Tax Commission for the payment of sales tax, or that he or she has otherwise demonstrated that sales tax has been or is being paid on the items sold, or that the applicant or the applicant's employer is exempt from payment of such tax;

**2.** That the applicant or the applicant's employer is aware of the responsibility to collect and pay sales tax, unless tax exempt;

**3.** That the business operation described shall not endanger property, public or · private; shall not obstruct pedestrian or vehicular traffic and shall not increase risks to public safety;

**C.** Within fifteen (15) business days after receipt of the application, the Director shall either approve or disapprove of the application. Grounds for disapproval shall be the following:

**1.** A finding that the application is incomplete;

**2.** Nonpayment of all applicable fees;

**3.** Failure of the applicant to verify that he, she or it, is a vendor registered with the Oklahoma Tax Commission for the payment of sales tax; or that sales tax has been or is being paid on the items sold; or that he, she, or it, is otherwise exempt from payment of sales tax;

**4.** A finding that the application is not in conformance with any other applicable provisions of the Tulsa Revised Ordinances;

**5.** The applicant is a person required to be registered pursuant to the Oklahoma Sex Offenders Registration Act (57 OS § 581 *et seq.*), as amended; and

**6.** The applicant shall not be subject to any outstanding warrants for arrest.

*(Ord. No. 23072, § 1, 3-27-2014)*

**Section 2308. License fee.**

**A.** Applications for a license shall be accompanied by a nonrefundable processing fee of Twenty Dollars ($20.00).

**B.** The annual license fees of Thirty Dollars ($30.00) shall be due and payable by the applicant at the time the license is issued and may be prorated quarterly.

*(Ord. No. 23072, § 1, 3-27-2014)*

**Section 2309. Expiration of license.**

**A.** A license issued under this chapter shall expire June 30 each year, except for seasonal food service establishment and seasonal outdoor sellers, which shall expire one hundred eighty (180) days from the date of issuance.

**B.** Each licensee shall reapply for a license annually. Upon the submission of an updated application and the payment of the annual license fee, the license shall be renewed, provided that he continues to meet the requirements of this chapter.

**C.** In the event that the licensee shall cease operation, either voluntarily or involuntarily, before the end of the period for which a license is issued, no part of the license fee shall be refunded.

*(Ord. No. 23072, § 1, 3-27-2014)*

**Section 2310. Exhibition of license—Transfer.**

A license issued under this chapter shall be posted conspicuously at the place of business. Licenses issued under this chapter are not transferable.

*(Ord. No. 23072, § 1, 3-27-2014)*

**Section 2311. Renewal of license.**

The holder of any expiring license, issued under this chapter, who desires a new license, shall file a written application for renewal with the Director. The application for renewal shall contain the information required in Section 2012 of this chapter. The Director, in determining whether to approve or disapprove an application for renewal of a license, shall be guided by the provisions in Section 2307 of this chapter.

*(Ord. No. 23072, § 1, 3-27-2014)*

**Section 2312. Site plan submission and approval—Site permit required.**

**A.** It is unlawful for a mobile vendor licensed herein as a seasonal food service establishment, a mobile food service establishment, a mobile retail food service establishment or as a seasonal outdoor seller (non-food) to engage in sales business within the City except after being issued a site permit in compliance with the provision of this chapter.

**B.** A mobile vendor licensed as a seasonal food service establishment, a mobile food service establishment, a mobile retail food service establishment or as a seasonal outdoor seller (non-food) shall submit a site plan depicting the fixed outdoor location desired, including the design and make-up of any structure, vehicle, sign or display to be used while conducting business at such fixed location.

**C.** If either a seasonal food service establishment, a mobile food service establishment, a mobile retail food service establishment or a seasonal outdoor seller desires a different fixed outdoor location for conducting business, or desires to otherwise amend the submitted site plan, he shall file an amended site plan prior to deviating from the site plan then on file with the Mayor or his designee.

**D.** Upon the filing of an amended site plan as herein provided, the Mayor or his designee shall review it to ensure compliance with the provisions of this chapter and all other applicable provisions of this code. If the amended site plan is approved, the Director shall amend the business license to indicate any new fixed outdoor location for the conduct of the business.

**E.** Failure of a seasonal food service establishment, a mobile food service establishment or a seasonal outdoor seller to comply with the original or amended site plan on file with the Director shall constitute a violation of this chapter subject to the penalty specified in this chapter.

*(Ord. No. 23072, § 1, 3-27-2014)*

**Section 2313. Site permit fee.**

Applications for a site permit shall be accompanied by a nonrefundable processing fee of Eighty-five and 50/100 Dollars ($85.50).

*(Ord. No. 23072, § 1, 3-27-2014)*

**Section 2314. Expiration of site permit.**

**A.** A site permit issued under this chapter shall expire June 30 each year, except for a seasonal food service establishment and seasonal outdoor sellers, which shall expire one hundred eighty (180) days from the date of issuance.

**B.** Each site permittee shall reapply for a site permit annually. Upon the submission of an updated application and the payment of the annual fee, the permit shall be renewed, provided continued compliance with the requirements of this chapter.

**C.** In the event that the site permittee shall cease operation, either voluntarily or involuntarily, before the end of the period for which a site permit is issued, no part of the fee shall be refunded.

*(Ord. No. 23072, § 1, 3-27-2014)*

### Section 2315. Exhibition of site permit—Transfer.

A site permit issued under this chapter shall be posted conspicuously at the place of business. Site permits issued under this chapter are not transferable.

*(Ord. No. 23072, § 1, 3-27-2014)*

### Section 2316. Health regulations.

All mobile vendors shall comply with all laws, rules and regulations regarding food handling, and all vehicles, equipment and devices used for the handling, storage, transportation and/or sale of food shall comply with all applicable laws, rules and regulations, as presently worded and as may be amended by law, in addition to any other rules and regulations respecting such vehicles, equipment, devices as may be established by the Tulsa City-County Health Department.

*(Ord. No. 23072, § 1, 3-27-2014)*

### Section 2317. Mobile vendor standards.

All mobile vendors licensed under this chapter shall conform to the following standards unless otherwise approved by the Council:

**A.** Geographical Restrictions. No mobile vendor shall sell or vend from his or her vehicle or conveyance when:

**1.** Within one hundred fifty (150) feet of a public or private school grounds during the hours of regular school session, classes or school-related events in said public or private school, except when authorized in writing by said school; or

**2.** Within one hundred fifty (150) feet of the entrance to a business establishment which is open for business and is offering for sale the same or similar product as an item offered for sale by the mobile vendor unless authorized in writing by the stationary business establishment; or

**3.** Within one hundred fifty (150) feet of a restaurant, cafe or eating establishment which is open for business unless authorized in writing by the stationary business establishment; or

**4.** Within one hundred fifty (150) feet of a public park of the City where a City authorized concession stand is located during times other than during the course of a public celebration except as approved by the City; or

**5.** Within one hundred fifty (150) feet of City property where a City authorized concession stand is located during the course of a public celebration when nonprofit organizations are permitted to engage in the sale of merchandise and food at such property; or

**6.** Within one hundred fifty (150) feet of the location for which a special event permit has been issued during the time specified from the start through completion of the special event.

**B.** No mobile vendor shall conduct business so as to violate any ordinances of the City regulating traffic and rights-of-way, as now in effect or hereafter amended.

**C.** No mobile vendor shall obstruct or cause to be obstructed the passage of a sidewalk, street, avenue, alley or any other public place by causing people to congregate at or near the place where food or other items are being sold or offered for sale.

**D.** No customer shall be served on the street side of the mobile unit. All service must be on the curb side when the mobile unit is on or abutting a public street.

**E.** Absolutely no seating shall be provided or permitted as part of a mobile vendor business as contemplated in this chapter.

**F.** No drive thru or drive by customer service shall be provided or permitted as part of a mobile vendor business as contemplated in this chapter.

**G.** All mobile vendors shall provide garbage receptacles for customer use.

**H.** No mobile vendor shall locate his or her vehicle or other conveyance in such a manner as to cause a traffic hazard.

**I.** At the conclusion of business activities at a given location the mobile vendor shall clean all the public way surrounding his or her vehicle of all debris, trash and litter generated by the vendor's business activities.

**J.** All mobile vendors preparing food by cooking, frying or other means shall be equipped with at least one (1) fire extinguisher with a minimum rating of 2A-40-BC.

**K.** Applicants for licenses issued pursuant to this chapter should be prepared to meet all additional requirements and conditions to operate in certain restricted areas of the City such as the Main Mall, the Civic Center Plaza, property under the jurisdiction of the River Parks Authority, the BOK Center area, Tulsa Park property and others.

**L.** All electrical connections by mobile vendors shall fully comply with requirements of the National Electrical Code (NEC).

*(Ord. No. 23072, § 1, 3-27-2014)*

### Section 2318. Revocation of license.

A license issued pursuant to this chapter may be revoked, in writing, by the Director or his designee for any of the following reasons:

**A.** Any fraud, misrepresentation or false statement contained in the application for license;

**B.** Any fraud, misrepresentation or false statement made in connection with the selling of products;

**C.** Any violation of this chapter;

**D.** Conducting the business licensed under this chapter in an unlawful manner or in such a manner as to constitute a breach of the peace or to constitute a menace to the health, safety or general welfare of the public.

*(Ord. No. 23072, § 1, 3-27-2014)*

### Section 2319. Surrender upon expiration or revocation.

When a license issued pursuant to the provisions of this chapter expires, or is revoked, its holder shall surrender it to the Director and the license shall become the property of the City.

*(Ord. No. 23072, § 1, 3-27-2014)*

### Section 2320. Appeal.

**A. Notice of Adverse Action.** If the Director or his authorized representative proposes to take any action adverse to an applicant, licensee or permittee, he shall establish a

time, date and place for an administrative hearing and shall notify such person (hereinafter "respondent") of the pending action at the respondent's address contained on his most recent application. The notice shall be served on the respondent personally or by United States Mail, certified, return receipt requested. The notice shall be served or postmarked no more than ten (10) days preceding the date of the administrative hearing and shall:

**1.** Set forth in detail the proposed action and the reasons therefor;

**2.** Designate any section of this chapter, any statute, ordinance or other authority which requires or supports the proposed action;

**3.** Set forth the date, time and place of the administrative hearing;

**4.** Advise the respondent that he may be present at such hearing to provide reasons why the proposed action should not be taken; and

**5.** Advise the respondent that if he fails to appear at the administrative hearing, action may be taken in his absence.

Copies of such notice shall also be sent to the complaining party, if applicable.

**B. Administrative Hearing.** An administrative hearing shall be held on the date and time and at the place contained in the notice described above.

**1.** If the respondent appears, he shall be afforded an opportunity to be heard. Following the hearing, the Director may take or refrain from taking the proposed action or may modify the same by placing reasonable conditions on the respondent, or otherwise, according to the provisions of this chapter.

**2.** If the respondent fails to appear, notice of the decision made or action taken shall be given to the respondent and unless appealed to the City Council as hereinafter provided, such decision shall be final and binding ten (10) working days from and after the date of the decision.

**3.** Notice of the action taken or decision made shall be given by certified mail, return receipt requested or by personal delivery to the respondent, at the address given in the respondent's most recent application.

**4.** The respondent shall be advised of his right to appeal the action or decision to the City Council.

**C. Appeals to the Council.** Any person aggrieved by a decision of the Director may file an appeal to the Council by filing a written notice of appeal with the Council Secretary and the Director within ten (10) working days of the date of the decision complained of. Such notice shall specify the grounds for the appeal. A hearing on the appeal shall be heard by the Council not later than thirty (30) days from the date of filing the notice of appeal unless further delay is reasonable. If an appeal is filed, the Director shall notify the complaining party, if applicable.

**D. Enforcement Stayed.** If an appeal of the Director's decision is made to the Council, enforcement of such decision shall be stayed until the Council has rendered its decision, unless the Director certifies to the Council that a stay would cause imminent danger to life or property.

**E. Administrative Costs.** Any determination by the Director regarding whether or not an applicant, licensee or permittee has failed to comply with any of the provisions of

this chapter may also include the requirement that the applicant, licensee or permittee pay a sum not to exceed Five Hundred Dollars ($500.00) to defray administrative costs associated with the investigative and administrative hearing process.

*(Ord. No. 23072, § 1, 3-27-2014)*

### Section 2321. Violations—Penalties.

It shall be unlawful and a misdemeanor offense for any person, firm, corporation, limited liability company or other entity to violate any of the provisions of this chapter. Any such entity convicted of a violation of this chapter shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, continued or permitted shall be deemed a separate offense.

*(Ord. No. 23072, § 1, 3-27-2014)*

## CHAPTER 24. UTILITY VEHICLES

Section 2400. Intent and purposes.
Section 2401. Definitions.
Section 2402. Operation of utility vehicles allowed; exceptions.
Section 2403. License required.
Section 2404. Registration of utility vehicles.
Section 2405. Manner of operations.
Section 2406. Disclaimer and liability.
Section 2407. Penalties for violation.

### Section 2400. Intent and purposes.

**A.** The purpose of this chapter is to provide a means of travel that is not only convenient and safe but conserves resources and protects the environment. Utility vehicles, if properly used, can be an effective way to travel for short distances within the City. However, to ensure the public safety and welfare, the operation of utility vehicles must not only comply with normal regulations regarding vehicles but should comply with special safety regulations intended to protect the operator and passengers in a vehicle that is primarily designed for operation off-road or for recreational purposes.

**B.** This Chapter establishes the basic, minimum standards of care to be used by the operators of utility vehicles on public roads, streets and highways as provided hereafter. Likewise, the public safety requires that utility vehicles, when used as a means of transportation, must also meet certain minimum safety standards that can only be assured through a system of regulation and inspection.

*(Ord. No. 23482, § 1, 4-28-2016)*

### Section 2401. Definitions.

**A.** For purposes of this Chapter, the definition set out in 47 O.S. §1102 (38) shall also apply throughout this Chapter. A utility vehicle is defined as a vehicle that is powered by an internal combustion engine, manufactured and used exclusively for off-highway use, equipped with seating for two or more people and a steering wheel, traveling on four or more wheels. This definition is republished here for convenience only, and the definition set out in 47 O.S. § 1102 (38), as amended from time to time, is controlling for all purposes.

**B.** A utility vehicle for hire is one driven for commercial reasons or when money or anything of value is paid to the driver or to the holder of the utility vehicle for hire certificate in exchange for the transportation of a person as a passenger.

*(Ord. No. 23482, § 1, 4-28-2016)*

### Section 2402. Operation of utility vehicles allowed; exceptions.

**A. Allowed.** The operation of utility vehicles on the public streets, roads and highways within the City and on property controlled by the City shall be permitted in compliance with the provisions of this Chapter; however, it shall be unlawful to operate any utility vehicle that is not properly registered with the City or to operate any utility vehicle at any place or in any manner not authorized therein.

**B. Exceptions.** The operation of utility vehicles is not subject to the provisions of this Chapter under the following circumstances:

**1.** The operation of utility vehicles at golf courses, private clubs or on private property, with the consent of the owner, or

**2.** The operation of utility vehicles on private streets within gated or limited access communities, or

**3.** The operation of utility vehicles in connection with a parade, festival, or other special event provided the consent of the event sponsor is obtained and provided such use only occurs during the event, or

**4.** The use of utility vehicles by the Tulsa Police Department on official police business or by other City personnel for official business on City controlled property, including cemeteries, parks and greenways.

*(Ord. No. 23482, § 1, 4-28-2016)*

**Section 2403. License required.**

No person who is less than 16 years of age or who does not have a valid driver's license issued under or granted by the laws of Oklahoma or some other state may operate a utility vehicle on any public street, road or highway within the City or on any property controlled by the City. For purposes of this section, a learner's permit shall not be considered as a valid driver's license nor shall any license that has been revoked, temporarily or otherwise, or suspended for any reason be considered as a valid driver's license during the period of revocation or suspension.

*(Ord. No. 23482, § 1, 4-28-2016)*

**Section 2404. Registration of utility vehicles.**

**A. Required.** No utility vehicle may be operated on any public street, road and highway within the City or on property controlled by the City unless the utility vehicle has first been registered with the City. The registration shall be renewed on a biennial basis thereafter in accordance with the provisions of this section. To evidence the registration, the owner shall be issued a biennial permit that shall be displayed in a prominent, visible place on the rear fender of the utility vehicle or at such other place on the vehicle as may be approved by the City. The permit may contain a registration number assigned for the particular utility vehicle and may contain an expiration date.

**B. Registration fee.** A registration fee in an amount as may be established and published in the Schedule of Fees and Charges adopted from time to time by the City Council shall be paid to the City at the time the application for registration is issued and for any renewal of the registration.

**C. Application.** The application for registration shall be filed with the Director of Finance; or with his/her designee, on forms provided by the City. The application may, among other things, require the following information: owner's name; street address, mailing address, and telephone number; make, model, and identification or serial number of the utility vehicle; proof of insurance and such other information as may be reasonably required, as well as a release or disclaimer of any liability of the City for accidents involving the registered utility vehicle.

**D. Procedures.** The City may establish written procedures, consistent with this chapter, setting out the process and the procedure for registration, including the form of the application, the check list for items to be inspected, and the type of sticker or other device evidencing the issuance of the registration permit.

**E. Inspection.** Prior to issuing the initial registration permit or any renewal thereof, the utility vehicle shall be inspected to determine that:

**1.** The utility vehicle is equipped with a rear vision mirror and at least two (2) red rear reflectors at least three (3) inches in height and width; and

**2.** The utility vehicle is equipped with a reflective "slow moving" sign or flag on the rear of the vehicle; and

**3.** The brakes provided by the manufacturer of the utility vehicle are in proper working order; and

**4.** The utility vehicle has all of the standard safety features provided by the manufacturer and has not been modified to exceed a speed of 25 miles per hour nor otherwise modified in any way that creates a hazard; and

**5.** The utility vehicle is equipped with all mechanical systems and safety equipment required by the statutes of the state of Oklahoma and by this Chapter.

**F. Denial and revocation.** The initial registration of a utility vehicle may be denied or subsequently revoked by the City if it is determined that:

**1.** The application contains any material misrepresentation; or

**2.** Financial responsibility requirements (liability insurance) of the state of Oklahoma have not been met; or

**3.** The utility vehicle is not in compliance with the requirements set out herein; or

**4.** The utility vehicle has been altered or customized and no longer meets the definition of a utility vehicle; or

**5.** Equipment supplied by the manufacturer, especially safety equipment, as been altered or removed from the utility vehicle or the vehicle identification or serial number has been removed; or

**6.** Other good cause shown, including violation of this Chapter.

**G. Financial responsibility.** The owner of a utility vehicle required to be registered with the City for use on public streets, roads and highways shall maintain, in full force and effect and continuously throughout any period of registration, the financial responsibility in the minimum amounts and in the manner defined and described in Statutes of Oklahoma, as amended, or any other law of the state of Oklahoma requiring financial responsibility for the registration and/or operation of a motor vehicle.

*(Ord. No. 23482, § 1, 4-28-2016)*

### Section 2405. Manner of operations.

Utility Vehicles shall not be operated on the public streets, roads and highways of the City except in full compliance with the provisions of this section.

**A. Hours of operation.** Utility vehicles may be driven on approved public roads, streets and highways day or night. Utility vehicles may not be operated when fog, smog, smoke, or other conditions reduce visibility so that the utility vehicle is not visible for a minimum distance of 250 feet.

**B. Streets.** Utility vehicles may not be operated on any street where the posted speed limit is more than 30 miles per hour, except for the sole purpose of crossing such street either at a signalized intersection or at a perpendicular crossing at a through intersection.

**C. Motor vehicle laws.** All laws regarding the use of motor vehicles in the State of Oklahoma and all ordinances regarding the use of motor vehicles in the City, not inconsistent therewith, shall be observed, except that no utility vehicle may be operated at a speed in excess of twenty-five (25) miles per hour.

**D. Right-of-Way.** The operator of a utility vehicle shall yield the right-of-way to overtaking motor vehicles.

**E. City property and sidewalks.** Utility vehicles shall not be operated on any sidewalk, pedestrian walkway, jogging path, greenway, park, or trail except for official police business or by City personnel on City business.

**F. Utility vehicle capacity.** The seating capacity, normally no more than four (4) passengers, or as otherwise specified by the manufacturer, shall not be exceeded nor shall the operator or any passenger be permitted to stand while the utility vehicle is in operation.

**G. Parking.** Utility vehicles may only be parked in the same manner and at the same places designated for the parking of motor vehicles. The stopping, standing, or parking of utility vehicles in areas where parking is not allowed, or in any place that impedes the flow of traffic, pedestrian walkways, or a passageway is prohibited.

**H. Towing.** Utility vehicles may not be used for the purpose of towing another utility vehicle, trailer, vehicle of any kind, including a person on roller skates, skateboard, or bicycle.

**I. Alcohol use.** No person under the influence of an alcoholic beverage shall operate or be in control of any utility vehicle operated within the City. No utility vehicle shall have an open alcoholic beverage container aboard while in operation.

*(Ord. No. 23482, § 1, 4-28-2016)*

### Section 2406. Disclaimer and liability.

**A. Disclaimer.** Utility vehicles are not designed for, nor manufactured to be used on public streets, and the City neither advocates nor endorses the utility vehicle as a safe means of travel on public streets, roads, and highways. The City in no way shall be liable for accidents, injuries, or death involving the operation of a utility vehicle.

**B. Assumption of risk.** Any person who owns, operates, or rides upon a utility vehicle on a public street, road or highway within the City does so at his/her own risk and peril and assumes all liability resulting from the operation of the utility vehicle.

*(Ord. No. 23482, § 1, 4-28-2016)*

### Section 2407. Penalties for violation.

**A.** Unless otherwise specifically provided herein, any person violating any of the provisions of this chapter shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by imprisonment in the City jail for a period of not more than ninety (90) days and/or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, or both fine and imprisonment. Each day in which a violation occurs shall be deemed a separate offense.

**B.** Prosecution for an offense under this chapter shall not prevent the application of other remedies provided by law.

*(Ord. No. 23482, § 1, 4-28-2016)*

## CHAPTER 25. SHARED ACTIVE TRANSPORTATION*

Section 2500. Purpose.
Section 2501. Definitions.
Section 2502. Permit required; permit term and fees.
Section 2503. Shared active transportation procedure.
Section 2504. Operations and maintenance.
Section 2505. Fleet size requirements.
Section 2506. Small vehicle parking.
Section 2507. Safety requirements.
Section 2508. Distribution.
Section 2509. Data, statistics, reporting.
Section 2510. Insurance and indemnification.
Section 2511. Termination.
Section 2512. Appeal.

### Section 2500. Purpose.

The availability of small vehicles and new funding models have attracted numerous vendors to the shared active transportation business. While there are a number of benefits for communities in attracting small vehicles, some cities have experienced public safety challenges and concerns over clutter in the public right-of-way when small vehicles are placed on streets and sidewalks without the benefit of permits or agreements, or when small vehicles are abandoned outside of the service area. To mitigate these challenges, minimize risk and liability, and maximize the public benefits of shared active transportation, this ordinance creates a permit process which provides a clear path for shared active transportation companies and takes advantage of their expertise and motivation to implement this emerging mobility option.

*(Ord. No. 24019, § 1, 10-24-2018)*

### Section 2501. Definitions.

For the purposes of this chapter, the following words, terms, and phrases shall have the meanings prescribed in this section, unless otherwise expressly written:

**Bicycle** means a human-powered or electric bicycle, as defined in Title 37, Tulsa Revised Ordinances, Chapter 1, Section 100.

**City** means the City of Tulsa.

**Docked small vehicle sharing system** means a shared active transportation program in which companies distribute small vehicles via a stationary location and the small vehicles must be returned at specific stationary locations. Small vehicles are tracked via GPS.

**Dockless small vehicle sharing system** means a small vehicle share program in which companies distribute small vehicles throughout a city to be rented per trip. The small vehicles can be locked at any lawful location, and not at a set location, subject to Section 2506 of this chapter. Small vehicles are tracked via GPS and can be located by users.

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***Editor's note—**Ordinance No. 24019, § 1, adopted October 24, 2018, added a new chapter 24. However, such chapter has been designated as herein set out in this Title 21. Therefore, such ordinance has been redesignated as chapter 25.

**Electric scooter** means a device designed to be stood upon, is powered by an electric motor, and is propelled at no more than fifteen (15) miles per hour, as further defined in Title 37, Tulsa Revised Ordinances, Chapter 1, Section 100.

**Free operator** means a company, person, or philanthropic organization that engages in or operates a shared active transportation program but does not charge for the use of their program.

**Geo-fencing** means the use of Global Positioning System ('GPS') or Radio Frequency Identification ('RFID') technology to create a virtual geographic boundary, enabling software to trigger a response when a mobile device enters or leaves a particular area.

**Operator** means a company or person that engages in or operates a shared active transportation program business or enterprise.

**Shared active transportation permit** means a permit issued by the City of Tulsa as provided in this chapter.

**Shared active transportation program** means a transportation program ideal for short distance, point-to-point trips providing users the ability to pick up a Small Vehicle from one location and leave it at another within a system's service area. The system provides users unencumbered access to Small Vehicles within a defined system area. Small Vehicles can be remotely accessed via a smart phone application or other credentials and do not need to be attended by the operator.

**Small vehicle** means bicycles, electric bicycles, and electric scooters as defined in Title 37, Tulsa Revised Ordinances, Chapter 1, Section 100.

*(Ord. No. 24019, § 1, 10-24-2018; Ord. No. 24244, § 1, 10-30-19)*

**Section 2502. Permit required; permit term and fees.**

**A.** All operators wishing to operate a shared active transportation program within the City of Tulsa shall secure a shared active transportation permit, as issued by the City of Tulsa Finance Department. The decision to issue a permit is at the sole discretion of the City.

**B.** Each permit shall be active for one (1) year from the date of issuance.

**C.** The initial permit fee, and subsequent permit renewal fees, shall be as provided in Title 49 of the Tulsa Revised Ordinances. The fee shall include the appropriate application fee, an inspection fee, and other fees as applicable.

**D.** All operators shall pay the City a public property repair and maintenance fee of Twenty Dollars ($20.00) per small vehicle, per year, calculated based upon the maximum fleet size requested and approved in the permit application. Should an increase in fleet size be approved in accordance with Section 2505 of this ordinance, this fee amount shall also be increased to reflect the new maximum fleet size. The public property repair and maintenance fee shall pay the cost of installation, maintenance and repair of City's infrastructure related to or necessitated by the shared active transportation program.

**E.** All operators shall also pay the City a public infrastructure and education fee of Thirty Dollars ($30.00) per small vehicle, per year, calculated based upon the maximum fleet size requested and approved in the permit application. Should an increase in fleet size be approved in accordance with Section 2505 of this chapter, this fee amount shall also

be increased to reflect the new maximum fleet size. This fee is to provide funding for capital costs associated with the implementation of the City's bicycle and pedestrian master plan and for educating the public regarding related provisions of the Tulsa Revised Ordinances.

**F.** Shared active transportation programs that are:

**1.** Managed by free operators, or

**2.** Are incorporated as a nonprofit organization and receive public financial assistance,

shall be exempt from the fees required in Subsections D. and E. of this section for each fiscal year in which the shared active transportation program continues to meet these criteria. Furthermore, Free Operators and the Shared Active Transportation Programs operated by Free Operators shall be exempt from Subsections 2504A., B. and C., Subsections 2505A. and B., Subsection 2506.G., Subsections 2507A., D. and E., Section 2508 and Section 2509 of this chapter.

*(Ord. No. 24019, § 1, 10-24-2018; Ord. No. 24244, § 2, 10-30-19)*

**Section 2503. Shared active transportation procedure.**

**A.** Docked small vehicle sharing systems may be located on stations or racks on private property, or on public right-of-way or other public property pursuant to receiving a license agreement or public property use/occupancy permit issued by the City.

**B.** Dockless small vehicle sharing systems may be located on public right-of-way or other public property so long as they do not obstruct or interfere with the public's use of said right-of-way or property. A user, having activated and used the small vehicle in accordance with the operator's rules, may leave the small vehicle at any designated lawful location, subject to Section 2506 of this ordinance, within the system's service area. The small vehicle is then available for another's use.

*(Ord. No. 24019, § 1, 10-24-2018)*

**Section 2504. Operations and maintenance.**

**A.** All operators shall have staffed operations located within the City of Tulsa for the purpose of small vehicle maintenance and rebalancing.

**B.** All operators shall have a twenty-four (24) hour customer service phone number for customers to report safety concerns, maintenance issues, complaints, or ask questions.

**C.** Every small vehicle shall have the operator's name, phone number and a unique identifier for each small vehicle that is clearly displayed and visible to the user on the small vehicle.

**D.** Any inoperable or unsafe small vehicles shall be removed from the right-of-way within twenty-four (24) hours of notice by any means to the operator by any individual or entity, and shall be repaired to full working order before being placed back into the City right-of-way.

**E.** The City may, in its sole discretion and without prior notice, remove small vehicles from the public right-of-way if it is a matter of public safety or some other public purpose. In such instances, the City will attempt to notify the permitted operator as soon as reasonably practicable thereafter. The City will not be liable for any damages that occur as a result of this removal. The operator shall pay for the cost of such removal.

*(Ord. No. 24019, § 1, 10-24-2018)*

### Section 2505. Fleet size requirements.

**A.** Permitted bicycle operators for both bicycles and electric bicycles shall have a minimum fleet size of fifty (50) bicycles, and a maximum bicycle fleet size of four hundred (400) bicycles.

**B.** Permitted electric scooter operators shall have a minimum fleet size of fifty (50) electric scooters, and a maximum fleet size of four hundred (400) electric scooters.

**C.** All applicants shall include their fleet size in their application for a shared active transportation permit.

**D.** The City may increase the maximum number of small vehicles in an operator's fleet at its sole discretion, and will consider doing so on a permit-by-permit basis. In order to increase the maximum number of small vehicles, an operator must demonstrate that, on average, each small vehicle in their fleet is being used more than three (3) times per day. Operators may request an increase to their fleet size above the maximum amount up to one time per month, provided that at least two (2) months have elapsed after their initial permit issuance. Each request will be subject to an application renewal fee, as provided in Title 49 of the Tulsa Revised Ordinances.

*(Ord. No. 24019, § 1, 10-24-2018)*

### Section 2506. Small vehicle parking.

**A.** Small vehicles shall be parked on a sidewalk or other hard surface, and shall be parked within the landscape/furniture zone of the sidewalk as described in the City's bicycle and pedestrian master plan.

**B.** Small vehicles may not be parked in a manner that would impede normal and reasonable pedestrian access on a sidewalk, or in any manner that would impede the pedestrian zone of a sidewalk to less than five (5) feet.

**C.** The City reserves the right to determine certain block faces where small vehicle parking is prohibited.

**D.** Small vehicles may not be parked in a manner that would impede vehicular traffic on a street or alley.

**E.** Small vehicles shall not be parked in the landscape/furniture zone directly adjacent to or within, such that access to the following is impeded:

**1.** ADA Handicap parking zones;

**2.** Street furniture that requires pedestrian access (i.e., benches, parking pay stations, bus shelters, etc.);

**3.** Curb ramps;

**4.** Entryways; and

**5.** Driveways.

**F.** Small vehicles shall not be parked in the landscape/furniture zone within:

**1.** Sidewalk cafes or parklets;

**2.** Transit zones, including bus stops, shelters, passenger waiting areas and bus staging zones, except at existing bicycle racks;

**3.** Loading zones; and

**4.** Landscape planting beds or other landscape materials.

**G.** The City reserves the right to create geo-fenced stations within certain areas where small vehicles shall be parked.

**H.** Incorrectly parked small vehicles shall be moved within twenty-four (24) hours of notice to the operator by any means, and by any individual or entity, unless the small vehicle is creating a public safety hazard.

**I.** Small vehicles creating a public safety hazard shall be removed within two (2) hours of notice of the operator by any means, and by any individual or entity. An eight (8) hour response time is permitted on weekends and on evenings between the hours of 10:00 p.m. and 6:00 a.m.

**J.** The City may remove a small vehicle from the City's right-of-way if it violates Subsections H. and I. of this section. The operator shall pay for the cost of such removal.

**K.** Any small vehicle, removed by the City from public right-of-way pursuant to subsection J. above, which is not claimed by the operator, and remains unclaimed with the City for sixty (60) days, shall be considered abandoned, and the City may assert ownership of same, and keep or dispose of said small vehicle as City sees fit, including public sale in accordance with Title 6, Section 411, "Surplus Supplies," of the Tulsa Revised Ordinances. The proceeds of any such sale shall belong to City and shall be deposited into City's general fund.

*(Ord. No. 24019, § 1, 10-24-2018)*

**Section 2507. Safety requirements.**

**A.** All bicycles used in systems issued a permit under this ordinance shall meet the standards outlined in the Code of Federal Regulations (CFR) under Title 16, Chapter II, Subchapter C, Part 1512-Requirements for bicycles. Additionally, permitted systems shall meet the safety standards outlined in ISO 43.150-Cycles, subsection 4210.

**B.** All electric bicycles used in systems issued a permit under this ordinance shall meet the Consumer Product Safety Act definition of low-speed electric bicycles; and shall be subject to the same requirements as ordinary bicycles described in Subsection A. This means, among other requirements, that electric bicycles shall have fully operable pedals, an electric motor of less than seven hundred fifty (750) watts, and a top motor-powered speed of less than twenty (20) miles per hour when operated by a rider weighing one hundred seventy (170) pounds. Additionally, the City may terminate any permit issued under this program if the battery or motor on an electric bicycle is determined by the City to be unsafe for public use.

**C.** All electric scooters used in systems issued a permit under this program shall meet the Consumer Product Safety Act definition of electric scooters, in addition to requirements provided by the City's definition for electric scooters as defined in Section 2501.

**D.** All small vehicles shall meet City of Tulsa's requirements for lights during hours of darkness, including a front light that emits white light and a rear red light as described in Title 37, Chapter 10, Section 1010, of the Tulsa Revised Ordinances, and all other applicable requirements of City and State law.

**E.** All permitted shared active transportation programs shall have visible language that notifies the user that:

**1.** Helmet use is encouraged while riding a small vehicle;

**2.** Users of class 2 electric bicycles and electric scooters shall yield to bicycles in bike lanes;

**3.** Users of small vehicles shall follow Title 37, Chapter 10, Section 1009, with regards to riding on a sidewalk:

**a.** No person shall operate a small vehicle upon a sidewalk within a business district, or where otherwise identified as prohibited;

**b.** Whenever any person is riding a small vehicle upon a sidewalk, such person shall yield the right-of-way to any pedestrian and shall give an audible signal before overtaking and passing such pedestrian;

**4.** Users of small vehicles shall yield to pedestrians when riding on a sidewalk; and

**5.** When riding on-street, small vehicles shall follow Title 37, Chapter 10.

*(Ord. No. 24019, § 1, 10-24-2018)*

### Section 2508. Distribution.

**A.** If an operator has over one hundred fifty (150) small vehicles, at least twenty percent (20%) shall be rebalanced once per day to be located in underserved communities of the City, as determined by City staff.

**B.** All operators shall provide the City with a plan for equitable small vehicle sharing service, including: Education of, marketing to, and engagement with low-income, minority, non-English speaking, and zero-car populations. The plan should address such topics as how to use shared active transportation programs, small vehicle safety, and small vehicle laws and regulations.

**C.** All operators shall provide information on how users can use the shared active transportation program without: 1) a smartphone, and/or 2) a credit or debit card.

*(Ord. No. 24019, § 1, 10-24-2018)*

### Section 2509. Data, statistics, reporting.

**A.** All operators must include active GPS location tracking capabilities on each small vehicle to ensure the easy location of damaged small vehicles or small vehicles in disrepair, as well as to facilitate data collection and data sharing as outlined in this section.

**B.** All operators will provide users with a privacy policy that safeguards users' personal, financial and travel information and usage, including but not limited to trip origination and destination data.

**C.** All operators shall maintain a record of maintenance activities, including but not limited to small vehicle identification number and maintenance records. These records shall be made available to the City upon request.

**D.** All operators shall provide the City, or a third-party researcher designated by the City, the following data on a monthly basis in a format approved by the City:

**1.** Aggregated breakdown of users by gender and age;

**2.** The number of small vehicles in circulation;

**3.** Daily, weekly and monthly active users;

**4.** Small vehicle usage, including:

**a.** Total user miles, broken out daily, monthly, quarterly, and annually;

**b.** The number and duration of rides per user per day, as well as the number of rides per small vehicle per day;

**5.** Anonymized aggregated data taken by the operator's small vehicles in the form of heat maps showing routes, trends, origins, and destinations;

**6.** Anonymized trip data taken by the operator's small vehicles that includes the origin and destination, trip duration, and date and time of trip;

**7.** Customer comments/complaints and resolution, theft/vandalism, and average repair times; and

**8.** Reported collisions.

**E.** All operators shall provide the City with anonymous real-time data (information that is delivered immediately after collection) on the availability and location of the entire Tulsa fleet upon request.

**F.** All operators shall conduct qualitative surveys, developed collaboratively between the City and operator, every six months.

*(Ord. No. 24019, § 1, 10-24-2018)*

### Section 2510. Insurance and indemnification.

**A.** All operators shall continuously maintain throughout the entire term of the permit general commercial liability insurance with a minimum liability limit of One Million Dollars ($1,000,000.00), listing the City as additionally insured, and issued by an insurance company licensed to do business in the State of Oklahoma.

**B.** Prior to the permit being issued, all applicants shall sign an agreement indemnifying and holding harmless the City as outlined in the shared active transportation permit.

**C.** All operators shall agree that the City is not responsible for educating users regarding safety requirements and other laws, nor is the City responsible for educating users on how to ride or operate a small vehicle. Operators agree to educate users regarding laws applicable to riding and operating a small vehicle in the City of Tulsa and to instruct users to comply with applicable laws pertaining to small vehicles in Title 37, Chapter 10.

*(Ord. No. 24019, § 1, 10-24-2018)*

### Section 2511. Termination.

The City reserves the right to terminate a shared active transportation permit at any time, and require that the entire fleet of small vehicles be removed from City right-of-way. Such notice of termination shall be delivered to the operator as outlined in the permit. The termination shall be completed within thirty (30) days unless a different time period is determined by the City.

*(Ord. No. 24019, § 1, 10-24-2018)*

### Section 2512. Appeal.

Any applicant who is denied a permit, or an operator whose permit is terminated as outlined in Section 2411, may appeal, or request a review or reconsideration of, that permit

decision. An appeal of a shared active transportation permit decision may be made to the City Council by submitting the decision letter, as well as a request for the appeal, in writing, within ten (10) calendar days of the original permit decision. The request must identify:

**A.** The permit application that is up for review or reconsideration. The permit may be identified by its identification number and the permit application address;

**B.** The specific objections to the original City decision; and

**C.** The specific actions being proposed by the business that could change the permit decision.

*(Ord. No. 24019, § 1, 10-24-2018)*

## CHAPTER 26. SHORT-TERM RENTAL

Section 2600. Definitions.
Section 2601. License required.
Section 2602. Application required.
Section 2603. Operator's responsibilities.
Section 2604. Annual fees.
Section 2605. Revocation.
Section 2606. Penalty.

### Section 2600. Definitions.

**A. Short-term rental defined.**

1. **Short-term rental (principal use).** A dwelling unit which is not the primary residence of a household, in which temporary lodging in all or part of the dwelling unit is offered for compensation, limited to a maximum occupancy of eight (8) persons at any one time.
2. **Short-term rental (accessory use).** A dwelling unit which is the primary residence of a household, in which temporary lodging in all or part of the dwelling unit is offered for compensation, limited to a maximum occupancy of eight (8) persons—including the dwelling's residents, if present—at any one time.

**B. Other definitions.**

1. **Dwelling unit.** A room or group of rooms arranged, intended, or designed as a habitable unit, containing kitchen, bath and sleeping facilities, for not more than one household living independently of any other household.
2. **Household.** One or more persons who inhabit a single dwelling unit, as a single housekeeping unit, that is: (1) traditionally characterized by matrimonial or parent-child relationship, provided that all such persons are related by blood, marriage, adoption, fosterage, or guardianship and no more than two (2) unrelated inhabitants are included in the housekeeping unit; or (2) predominantly characterized by voluntary associational, communal relationships, provided that no more than eight (8) inhabitants are included in the housekeeping unit.
3. **Local contact person.** A resident of the City or County of Tulsa (can include the Operator if a resident) to be contacted by the City regarding violations by the short-term rental property or the guests.
4. **Operator.** A person or entity that offers a dwelling unit or portion thereof for rent as a short-term rental. An operator may be owner of, or person authorized by the owner of the dwelling unit.
5. **Temporary lodging.** Rental of a dwelling unit for a period of less than thirty (30) consecutive days, where rents are charged by the day or by the week.

*(Ord. No. 24323, § 1, 3-11-2020)*

### Section 2601. License required.

**A.** No dwelling unit or portion thereof shall be rented, advertised or offered for rent as a short-term rental unless the City has first issued a short-term rental license to the operator.

**B.** A short-term rental license shall expire June 30 of each year. Annual renewal of said license is possible upon application. Application fees shall be pro-rated for a first-time applicant that applies after July 2.

**C.** A short-term rental license is granted to a specific operator for a specific dwelling unit or portion thereof and the license shall not be sold or otherwise transferred. A new short-term rental license is required when the dwelling unit is sold or conveyed or when the operator ceases to have a legal right to occupy the dwelling unit.

**D.** A short-term rental license is not required for operation of a "bed and breakfast," which is a separate use category in the City of Tulsa zoning code.

*(Ord. No. 24323, § 1, 3-11-2020)*

### Section 2602. Application required.

The application for a short-term rental license shall be on a form to be supplied by the Finance Department, which shall contain, at a minimum, the following information:

**A.** Information about the dwelling unit:

**1.** Address.

**2.** Legal description.

**3.** Dwelling unit details (list the number and type of rooms).

**4.** Type of Short-Term Rental (principal use or accessory use).

**B.** Information about the operator of the short-term rental:

**1.** Name, address, phone number and email address of the operator of the short-term rental.

**2.** Name, address, phone number and email address of the owner of the dwelling unit.

**3.** Written consent to the license by the owner of the dwelling unit, if the operator is not the owner.

**C.** Information about the local contact person:

**1.** Name, address, phone number and email address of the local contact person.

**D.** Information regarding the website address for any and all platforms or advertisements in which the property will be offered for rent.

**E.** The operator and the owner of the dwelling unit shall acknowledge in writing that the short-term rental is subject to all short-term rental regulations and policies of the City of Tulsa.

*(Ord. No. 24323, § 1, 3-11-2020)*

### Section 2603. Operator's responsibilities.

**A.** The operator shall include the City-issued short-term rental license number in a visible location on all material (including but not limited to print, digital, electronic) advertising a short-term rental (principal use or accessory use) or offering it for rent.

**B.** The operator shall display the short-term rental license within the premises near the main entry in a noticeable location so that the license may be readily seen at any time by a person entering the premises.

**C.** The operator shall cause the short-term rental to comply with the laws of the State of Oklahoma, federal laws and regulations, and the ordinances and policies of the City of Tulsa, including but not limited to Tulsa Revised Ordinances Title 24 "Nuisances", Title 42 "Zoning Code", and Title 44 "City of Tulsa Hotel Tax".

**D.** The operator shall cause the local contact person to be available to be contacted by the City at all times, twenty-four (24) hours per day, seven days per week. Failure of the local contact person to be available at all times for contact by the City constitutes an instance of non-compliance as described in Section 2605. When the local contact person is notified by the City by phone or email that the guests at a short-term rental are violating City ordinances or policies, the local contact person shall communicate with the operator within the hour, and the operator shall immediately commence remedial action and cause the violation(s) to cease.

**E.** The operator of a short-term rental must update information in the City's license records throughout the year regarding: (1) the websites on which the short-term rental is offered for rent; and (2) the name, address, phone number and email address of the local contact person.

**F.** Whether the dwelling unit offered for rent is principal use, accessory use or a combination thereof, the operator shall ensure that the short-term rental does not exceed a maximum occupancy of eight (8) persons at any one time.

*(Ord. No. 24323, § 1, 3-11-2020)*

**Section 2604. Annual fees.**

**A.** The application for a short-term rental license or the annual renewal thereof shall be filed with the Finance Department. It shall be accompanied by a license fee of Seventy-Five Dollars ($75.00).

**B.** At the time of application for, or renewal of, a short-term rental license, an operator shall also pay the City an annual implementation and compliance fee of Three Hundred Dollars ($300.00). The implementation and compliance fee is intended to provide funding to defray costs associated with monitoring or compliance with City ordinances governing short-term rental license, short-term rental use and nuisances.

*(Ord. No. 24323, § 1, 3-11-2020)*

**Section 2605. Revocation.**

A short-term rental license shall be subject to revocation by the duly authorized officer upon the occurrence during twelve consecutive months of three (3) or more instances of non-compliance by the operator or the short term rental with any ordinance or policy of the City of Tulsa, including, but not limited to, Tulsa Revised Ordinances Title 21 "Licenses" Chapter 26 "Short-Term Rental"; Title 24 "Nuisances", Title 42 "Zoning Code", and Title 44 "City of Tulsa Hotel Tax". The duly authorized officer shall mean the Mayor or the Mayor's authorized representative. The duly authorized officer shall give notice of each instance of non-compliance by personal service on or by mail to the Operator at the address given on the application or license.

Notwithstanding the above, the short-term rental license may be subject to immediate revocation if the short-term rental is operated in violation of the laws of the State of Oklahoma or in violation of any federal law or regulation.

The duly authorized officer shall give, by personal service or by mail to the operator at the address given on the application or license, notice of the revocation of the license. Such license shall stand revoked from the time of giving of the notice. The operator may appeal to the City Council from such decision within ten days after the giving of the notice, by filing a written notice of appeal with the City Clerk.

Upon the timely filing of a notice of appeal, a hearing shall be held by City Council at its next regular meeting. Upon a preponderance of the evidence, the Council may affirm, modify or vacate the order of revocation.

*(Ord. No. 24323, § 1, 3-11-2020)*

**Section 2606. Penalty.**

**A.** Any operator, person, firm, corporation, association, partner, manager, employee, or member thereof who shall violate any of the provisions of this chapter requiring the licensing of a short-term rental, shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine, excluding costs, and/or by imprisonment in the City jail. For a first offense, the punishment shall be a fine of not more than Two Hundred Fifty Dollars ($250.00), excluding costs. For second and subsequent offenses, the punishment shall be a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period not to exceed ninety (90) days. Each day of violation shall constitute a separate offense.

**B.** In addition to the criminal penalty provided herein, any operator, person, firm, corporation, association, partner, manager, employee, or member thereof who violates this chapter shall cease to operate the short-term rental until such time there is a valid short-term rental license for that dwelling unit, and the City Attorney may apply for a court order restraining the operation of the short-term rental until such time as a valid license is obtained.

*(Ord. No. 24323, § 1, 3-11-2020)*

# TULSA

# CODE OF

# ORDINANCES

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# VOLUME II

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**Chapter 4. Procedures for Holding Public Hearings**

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## CHAPTER 1. CITY OF TULSA-ROGERS COUNTY PORT AUTHORITY*

Section 100. Port Authority created.
Section 101. Name of authority.
Section 102. Agreement with Rogers County approved.
Appendix A. Agreement between City of Tulsa and Rogers County forming Joint Port Authority.

### Section 100. Port Authority created.

The City finds that there is a need for an authority as created by Enrolled Senate Bill 333, enacted by the 1963 Oklahoma Legislature and hereby declares its intent to utilize the terms and provisions of the Port Authorities Act, 82 O.S.1961, §§ 1101, *et seq.*, as the same may be from time to time amended.

### Section 101. Name of authority.

The Port Authority of the City of Tulsa shall be combined with the Port Authority of Rogers County, Oklahoma to form a joint Port Authority to be known as the "City of Tulsa-Rogers County Port Authority."

### Section 102. Agreement with Rogers County approved.

The written agreement between the City of Tulsa and Rogers County, dated the 4th day of October, 1963, forming the joint Port Authority, is adopted and approved; and the Mayor and City Auditor of the City of Tulsa are hereby authorized and empowered to execute such agreement.

*(Ord. No. 9753)*

### Appendix A. Agreement between City of Tulsa and Rogers County forming Joint Port Authority.

**I.** That the City of Tulsa Port Authority and the Rogers County Port Authority, as created by Senate Bill 333 of the 1963 Oklahoma Legislature, are hereby combined to form a joint Port Authority, which shall be known and designated as the "City of Tulsa-Rogers County Port Authority," which shall have exclusive jurisdiction under the "Port Authorities Act" covering all of the City of Tulsa and Rogers County.

The City and the County agree to adopt an appropriate ordinance or resolution to declare the intention of each to avail itself of the provisions of 82 O.S.1961, §§ 1101, *et seq.*, as the same may be from time to time amended, and to form a cooperative Port Authority and to authorize by said ordinance or resolution the execution of this Agreement by their appropriate officers.

**II.** The Port Authority shall exercise the power and duties and have the territorial jurisdiction of port authorities established and created by the provisions of 82 O.S.1961, §§1101, *et seq.*, as amended by the 1963 Oklahoma Legislature, or as the same may be from time to time amended.

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***NOTE:** On February 14, 1989, the citizens of Tulsa approved an amended Charter of the City of Tulsa to take effect at twelve o'clock (12:00) noon on the 8th day of May, 1990. Pursuant to the provisions of the amended Charter, all references in this chapter to the City Auditor shall mean City Clerk and all references to the Board of Commissioners shall mean the legislative body of the City.

**III.** The Port Authority shall be governed by a Board of Directors who shall possess the qualifications and serve the terms as provided by the Port Authority Act. Six (6) members of the Board of Directors shall be appointed by the Mayor of the City with the advice and consent of its Board of Commissioners. Three (3) members of the Board of Directors shall be appointed by the County Commissioners of Rogers County, Oklahoma.

**IV.** The Board of Directors of the Port Authority shall have the powers and shall perform the duties as provided for Directors by the Port Authority Act. The Board shall make and adopt, from time to time, such bylaws, rules and regulations for its own guidance, and for the government of the Port Authority, as it deems necessary, not inconsistent with the provisions of the Port Authority Act.

**V.** The activities, functions and operations of the Port Authority shall be supported by contributions of funds by the City and the County and by such other sources of funds as are or may hereafter be authorized by said Port Authorities Act. On or before the 1st day of June of each year the Board of Directors of the Port Authority shall prepare an estimate of needs and proposed budget for capital expenditures and operating expenses and submit the same to the governing boards of the City and of the County for their review and approval. At the beginning of each fiscal year, or as soon thereafter as may be practicable, the City and the County shall agree upon contributions and appropriate funds for the amounts necessary to meet the approved estimate of needs of the Port Authority. Contributions to the Port Authority by the City and the County for capital improvements shall be determined by agreement of the City and the County. It is the intent hereof that expenditures made by the City or the County from local funds for the installation of public facilities or improvements which directly or indirectly contribute to the operation of the Port Authority shall be considered by the Port Authority in the preparation of the capital expenditures budget.

The City and the County shall contribute the funds appropriated to a common fund, as may be agreed upon, upon a claim being filed by the Port Authority with the respective Boards of the City and the County. The contribution shall be made by warrant drawn by the appropriate officer, after approval of the claim, payable to the Port Authority. Said common fund shall be maintained by the Port Authority and shall be disbursed upon vouchers drawn by such officer as may be agreed upon by the Boards of the City and the County. Vouchers shall be issued only in payment of claims which have been executed in the manner prescribed by law for claims against the City or the County, and after such claims have been approved by the Boards of the City and the County. The officer designated by the Boards of the City and the County shall be bonded in an amount as may be required by the Boards of the City and the County but not less than Twenty Thousand Dollars ($20,000.00). Nothing contained herein shall be construed as exempting the contributions of the City and the County to this common fund from the application of the general statutes relating to appropriations.

**VI.** This Agreement shall continue in full force and effect until amended or superseded by written agreement of the parties hereto.

## CHAPTER 2. ORDINANCES CONTINUED IN FORCE

Section 200. Ordinances continued in force.

### Section 200. Ordinances continued in force.

All ordinances dealing with the subjects listed below which are in effect at the time of the adoption of these Revised Ordinances are hereby continued in full force and effect in the same manner and to the same extent as if set forth in full herein.

Annexation and Disannexation.

Approving Urban Renewal Plans and Projects.

Authorizing Railroad-Street Crossing Contracts.

Authorizing Sale, Lease or Exchange of Land.

Authorizing Water and Sewer Lines across RR Crossings.

Calling Elections.

Creating Sidewalk, Sewer and Street Improvement Districts and Levying Assessments thereon.

Dedication of Land or Refusing Dedication of Land.

Designating Limited Access Facilities.

Designating Major Streets.

Designating One-Way Streets.

Establishing Grades at Streets and Alleys.

Naming or Renaming Streets.

Opening or Widening Streets.

Releasing or Vacating Easements.

Rezoning Land.

Vacating Alleys and Streets.

Waiving Set-back Restrictions.

Copies of the special ordinances above named or information pertaining thereto may be obtained from the Office of the City Clerk. Reference is also made to the Office of the Director of Public Works and Office of the Tulsa Metropolitan Area Planning Commission.

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## CHAPTER 3. MISCELLANEOUS PROVISIONS

Section 300. Police station vending stand authorized.
Section 301. Rebate.

### Section 300. Police station vending stand authorized.

The Oklahoma Commission for Adult Blind is hereby granted the privilege of installing, operating and maintaining a vending stand in Police Stations of the City of Tulsa, Oklahoma, pursuant to the provisions of Articles IV and V, Chapter XXIV, Sessions Laws of 1936-37, for a rental of two and one-half percent (2½%) of the gross sales; provided, however, that the privilege may be terminated by mutual consent, or by thirty (30) days' written notice by either party.

For the privilege of installing such vending stand the Oklahoma Commission for Adult Blind agrees to furnish all fixtures and equipment and to provide the initial stock for the operation of the vending stand, and to put in charge thereof a thoroughly qualified resident of the City of Tulsa, Oklahoma, with less than ten percent (10%) vision.

*(Ord. No. 4418)*

### Section 301. Rebate.

**A.** For the purposes of this section only, the following words and terms shall be defined as follows:

**1.** **City** shall mean the City of Tulsa, Oklahoma.

**2.** **Director** shall mean the Director of Finance of the City.

**3.** **Dependent** shall mean every person who is a member of the household of the applicant and for whom applicant is entitled to claim a personal exemption under and pursuant to the Federal Income Tax Laws.

**4.** **Family** shall mean one (1) or more persons living in the same household who pool their various sources of income into one (1) budget to achieve the effect of sharing the cost of providing for support of the group.

**5.** **Household** includes all persons who occupy a group of rooms or single room which is regarded as a housing unit when it is occupied as a separate living quarters, and when there is either:

**i.** Direct access from outside of the building or through a common wall; or

**ii.** Complete kitchen facilities for the exclusive use of the occupants.

**6.** **Income** includes all money received during the year and available to be used to provide support for the family or household.

**7.** **Person** shall mean an individual, but shall not include a company, partnership, joint venture, joint agreement, association (mutual or otherwise), corporation, limited liability company, enterprise, estate, trust, business trust, receiver or trustee appointed by State or Federal Court or otherwise, syndicate, the state of Oklahoma, any court, city, municipality, school district or any other political subdivision of the state of Oklahoma or group or combination acting as a unit, in the plural or singular number.

**8.** **Resident** shall mean any person who has resided in the corporate limits of the City for the entire calendar year for which the rebate is sought.

**B.** Every person desiring to make a claim for a tax rebate must submit to the City a written application, on forms to be provided by the City, between January 1 and April 15 of the year following the year for which the rebate is being sought, beginning with the year 2011, for a rebate claimed for calendar year 2010.

**C.** The qualifications for the senior rebate are:

**1.** The person must be a resident of the City.

**2.** The person must be sixty-five (65) years of age or older during a portion of the year for which the rebate is sought.

**3.** The person may claim a rebate only as a family member who contributed the greatest share of the family income and for members of the household who are residents of the City and who are dependent upon the applicant.

**4.** No person who may be claimed as a member of the household on another resident's application shall be entitled to a rebate. If a rebate is claimed on more than one (1) application for the same person, the Director shall determine the person entitled to claim the rebate provided herein.

**D.** The qualifications for low-income rebate are:

**1.** The person must meet the eligibility criteria for the Oklahoma Sales Tax Relief Act pursuant to 68 O.S. § 5011 or the Oklahoma Earned Income Tax Credit pursuant to 68 O.S. § 2357.43 and must timely file for such with the Oklahoma Tax Commission.

**2.** The person must be a resident of the City.

**3.** The person may claim a rebate only as a family member who contributed the greatest share of the family income and for members of the household who are residents of the City and who are dependent upon the applicant.

**4.** No person who may be claimed as a member of the household on another resident's application shall be entitled to a rebate. If a rebate is claimed on more than one (1) application for the same person, the director shall determine the person entitled to receive the rebate provided herein.

**E.** If the applicant meets the requirements to qualify for a senior rebate, the City shall rebate the sum of Twenty-Five Dollars ($25.00). If the applicant meets the requirements to qualify for a low-income rebate, the City shall rebate the sum of Twenty-Five Dollars ($25.00). A person may claim and shall be entitled to only one (1) rebate, either the senior rebate or the low-income rebate, but not both.

**F.** The Director is to administer the rebate program established in this section. The Director is authorized to prepare a form for application for claiming the rebate and may adopt rules and regulations as long as the same are not inconsistent with the provisions of this section, and shall audit and check the applications. The amount of rebate above set forth shall apply to each year of the program.

**G.** The burden is on the applicant to establish he or she is entitled to the rebate claimed. The Director is authorized to require reasonable supporting information which shall be uniformly required of all applicants. Upon an audit of the application, the director may require all reasonable written and other information necessary to satisfy him that the application is valid.

Should any application be denied, the director shall state the reasons for denying the application in writing to the applicant and indicate whether all or a portion of the

application is being denied. Such determination by the director shall be final unless the applicant, within thirty (30) days after such notice of determination, shall apply in writing to the City Council of the City for a hearing. After such hearing, the City Council of the City shall give written notice of the determination to the applicant.

An applicant shall not be entitled to a rebate when he or she has been denied by the City Council of the City or when the applicant has had an opportunity for a hearing as provided herein and has failed to avail himself or herself of the remedies provided.

*(Ord. No. 21913, § 1, 10-9-2008)*

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## CHAPTER 4. PROCEDURES FOR HOLDING PUBLIC HEARINGS

Section 400. Purpose.
Section 401. Definitions.
Section 402. Procedures.

### Section 400. Purpose.

This chapter is intended to provide a procedural method for holding hearings so Tulsa may determine whether a proposed project seeking an allocation of tax credits under the Low Income Tax Credit Program administered by the Oklahoma Housing Finance Agency promotes Tulsa's best interests which include, but are not necessarily limited to, support of housing linked to economic development activity, mixed income housing, housing which addresses the special needs of the elderly, disabled and homeless; and rehabilitation of existing housing. Further, this chapter is intended to work in conjunction with the current, applicable housing and zoning codes as well as Tulsa's comprehensive plan.

*(Ord. Nos. 18672, 20744)*

### Section 401. Definitions.

**A. Allocation.** A tax credit awarded by OHFA to Developers and/or Owners of Developments which are selected by OHFA pursuant to OHFA's Low Income Housing Tax Credit Program Rules.

**B. Applicant.** An individual, a nonprofit organization or a profit-motivated individual, partnership, limited partnership, limited liability company or corporation, joint venture or other legal entity and its successors in interest that submits or proposes to submit an application to OHFA for an allocation pursuant to OHFA's Low Income Housing Tax Credit Program Rules.

**C. Applicant Notice.** The notification by applicant of their intent to file an application for an allocation. To be considered an applicant notice, the notice must be sent by certified mail, return receipt requested, to the Mayor not less than thirty (30) days prior to submission of an application for a development with OHFA; and the notice must contain at least:

**1.** The name and the legal description or street address of the proposed Development;

**2.** The names, business addresses and telephone numbers of the applicant and the applicant's designated contact person in regard to the proposed development;

**3.** Whether the development is new construction, acquisition and rehabilitation and/or substantial rehabilitation;

**4.** The maximum number of units proposed and their characteristics;

**5.** The amount of credits requested;

**6.** The cycle and year in which the application may be considered by the OHFA Trustees for an award of a tax credit allocation;

**7.** The month in which the applicant reasonably expects the application to be heard by the OHFA Trustees;

**8.** The name, business address, telephone number and extension number of the contact person at OHFA to whom all inquiries about the hearing on the application and the proposed development should be directed.

**D. Application.** An application in the form prescribed by OHFA's Low Income Housing Tax Credit Program Rules including all agreements, certificates, affidavits, exhibits or similar instruments and other supporting materials which are included in the OHFA Notice.

**E. Contact Person.** The person designated and authorized by the applicant and developer to receive, on behalf of the applicant and developer, all communications, correspondence and notices required by, or authorized by, OHFA's Low Income Housing Tax Credit Program Rules.

**F. Developer.** The person or entity with the responsibility of ensuring the effective construction or rehabilitation of the development, which may also be the applicant and/or the owner of the development.

**G. Development.** The residential rental property for which an application for an allocation is submitted to OHFA.

**H. OHFA.** The Oklahoma Housing Finance Agency.

**I. OHFA Notice.** The notification by OHFA that an applicant has made application for an allocation. To be considered an OHFA Notice, the notice must be sent by certified mail to the Mayor within ten (10) working days of OHFA's receipt of the application, and not less than sixty (60) days prior to the consideration of the application by the trustees.

**J. Owner.** The legal owner of record of the development.

*(Ord. Nos. 18672, 20744)*

**Section 402. Procedures.**

**A.** Upon receipt of the applicant notice, the Mayor shall cause the City Clerk to promptly give written notice to the contact person for the applicant and for the developer, if the developer is someone other than the applicant. The written notice shall be by certified mail, return receipt requested, and shall be deposited in the United States Mail within seven (7) business days of the receipt by the Mayor. The written notice shall contain no less than the following information:

**1.** The date, time and place of the public hearing to be held before the City Council; and

**2.** A copy of the ordinance establishing and adopting the procedure to be followed by the City Council in the public hearing.

**B.** In addition to the written notice to the contact person as required by Subsection 402.A., above, at least ten (10) days prior to the date of the public hearing, the City Clerk shall cause to be published at least one time in a newspaper of general circulation within the county in which the related proposal or project is to be located, a notice of the date, time and place of such public hearing, including a statement that the purpose of the public hearing is for consideration of the proposed development for eventual allocation pursuant to OHFA's Low Income Housing Tax Credit Program Rules.

**C.** The proceedings shall be held in accordance with due process of law, including the following:

**1.** At the public hearing before the City Council, the applicant and developer may appear and be represented by counsel and shall be afforded an opportunity to

present evidence and argument in support of the development. The applicant and developer shall be afforded an opportunity to respond to any opposing evidence; and

**2.** At the conclusion of the applicant's evidence, other interested parties who are unconnected with the application and the related proposal or project may appear to present evidence and argument in favor of or in opposition to the application and related proposal or project, including an opportunity to respond to any evidence or argument in opposition to the positions asserted by other interested parties; to expedite this process, the City Council shall provide an opportunity for the persons or entities desiring to participate in the hearing process to be identified at the start of the public hearing.

**D.** The public hearing shall be electronically recorded in accordance with the requirements of the Oklahoma Open Meetings Act and made available in accordance with the requirements of the Oklahoma Open Records Act. Should the applicant, a protestant or another participant require transcription by a licensed court reporter, the requesting party shall make all arrangements and pay for the court reporter.

**E.** Copies of all documentary evidence received by and to be considered by the City Council, or which evidence is in the possession of the City, shall be made available to the applicant at least two (2) full working days prior to the public hearing.

**F.** At the conclusion of the presentation of evidence and arguments, the City Council may debate the matter and shall thereafter determine whether or not to support the development as determined by a majority vote of the City Council's total membership. The City Council's determination of whether or not to support the development shall consider the following:

**1.** Whether the proposal meets the adopted locational policy for the City of Tulsa; and

**2.** Whether the maximum request for Low Income Housing Tax Credits exceeds Three Hundred Thousand Dollars ($300,000.00) per development or ten percent (10%) of the total allocation for the state of Oklahoma, whichever is lower; and

**3.** Whether the proposal meets identified needs, priorities, policies and objectives found in the City of Tulsa's Consolidated Plan; and

**4.** Whether the market study accompanying the application contains gross errors or omissions; and

**5.** Whether the applicant or developer has shown evidence of a commitment to use the tax credits, if allocated, through a syndication commitment, financing commitment or other similar agreement; and

**6.** Whether the applicant or developer has shown evidence of neighborhood and community involvement and participation in the planning of the project; and

**7.** Whether the applicant or developer has shown evidence of site control and appropriate zoning; and

**8.** Whether the applicant or developer has shown evidence of site plan approval if required; and

**9.** Whether the applicant or developer has shown evidence of the availability of adequate public facilities/services for the development; and

**10.** Whether the applicant or developer has shown evidence that the proposal supports housing linked to economic development; and

**11.** Whether the applicant or developer has shown evidence that the proposal serves mixed income tenants (low/moderate/middle income); and

**12.** Whether the applicant or developer has shown evidence that the proposal either addresses the needs of the elderly, the disabled and/or the homeless; and

**13.** Whether the applicant or developer has shown evidence that the proposal rehabilitates existing housing.

**G.** The determination made pursuant to Subsection 402.F., above, shall be reduced to writing in a resolution, which shall be formally submitted for adoption by the City Council, and upon adoption, the resolution shall be transmitted by certified mail, return receipt requested, to the applicant and to the developer if the developer is someone other than the applicant.

**H.** Upon receipt of the OHFA Notice, the City shall determine if any significant or substantial changes have been made in the application necessitating comment to be made to OHFA and to make such comment pursuant to OHFA's Low Income Housing Tax Credit Program Rules.

*(Ord. Nos. 18672, 19860, 20744)*

# TITLE 23 MUNICIPAL CRIMINAL COURT

**Chapter 1. Municipal Court - Procedure**
**Chapter 2. Professional Bondsmen (Repealed)**

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## CHAPTER 1. MUNICIPAL COURT - PROCEDURE

Section 100. Municipal Criminal Court.
Section 101. Additional jurisdiction.
Section 102. Bonds.
Section 103. Release before trial.
Section 104. Clerk of the Municipal Court and Deputy Clerks.
Section 105. Bailiffs.
Section 106. Official bonds and reports.
Section 107. Assessment of court costs.
Section 108. Schedule of costs, penalties and assessments.
Section 109. Fees for reproduction of public records.
Section 110. Probationary fee.
Section 111. Appointment, term, qualifications of Municipal Judges, duties of presiding judge.
Section 112. Reserved.
Section 113. Reserved.
Section 114. Compensation.
Section 115. Review of compensation of Judges and alternate Judges of the Municipal Criminal Court.
Section 116. Collection services for court penalties, costs, fines and fees in cases in Municipal Court in which the accused/defendant has failed to appear or otherwise failed to satisfy a monetary obligation ordered by the court.

### Section 100. Municipal Criminal Court.

The Municipal Criminal Court of the City of Tulsa shall remain established and vested with all jurisdiction and powers and shall be charged with all the duties and responsibilities as are provided for the Court by state law, the Charter and the Revised Ordinances of the City of Tulsa.

### Section 101. Additional jurisdiction.

The jurisdiction conferred upon municipal courts of cities and towns of the state of Oklahoma by 11 O.S.Supp.1996, § 28-102, is hereby accepted and adopted by the City of Tulsa, Oklahoma. The Municipal Criminal Court of the City of Tulsa shall have and possess original jurisdiction to hear and determine all offenses against the traffic ordinances of the City of Tulsa without previous proceedings being had in juvenile court in cases where the person informed against has attained the age of sixteen (16) years or where the person informed against is between the ages of fourteen (14) years and sixteen (16) years and is the holder of a special or restricted operator's license issued by the Commissioner of Public Safety of the state of Oklahoma authorizing such person to operate a motor vehicle.

All such actions shall be heard and determined by the Municipal Criminal Court of the City of Tulsa in the manner provided by law for the trial of all other offenses against the ordinances of the City of Tulsa.

### Section 102. Bonds.

The Municipal Judge shall fix the type and amount of all bonds for the appearance of person or persons charged with violation of the Revised Ordinances of the City of Tulsa.

All cash appearance bond deposits made with the Clerk of the Court shall be placed to the credit of the Bond Trust Fund and shall be disbursed only as provided in this chapter.

*(Ord. No. 12369)*

**Section 103. Release before trial.**

No prisoner arrested shall be discharged or released before trial unless he shall give good and sufficient bond for his appearance in the Municipal Court at a time stated in such bond, except upon order of the Municipal Judge.

**Section 104. Clerk of the Municipal Court and Deputy Clerks.**

**A. Clerk of the Municipal Court.** The Court Administrator shall be the Clerk of the Municipal Court and shall perform or cause to be performed the duties of Clerk of Municipal Court or Court Clerk assigned by the statutes of the state of Oklahoma or the Revised Ordinances of the City of Tulsa, including but not limited to the keeping and preserving of the records of all proceedings heard in the court, the keeping of a docket, the collection, receiving and delivering to the Director of Finance all fines, costs, bond forfeitures and other monies properly receivable by the Court Clerk and accounting for same to the City governing body.

**B. Deputy Clerks.** Upon the recommendation of the Court Clerk, the Mayor may appoint City personnel, including personnel of the Police Department, to serve as Deputy Clerks. Whether appointed permanently or temporarily to such positions, such persons shall thereafter be Deputy Clerks of the Municipal Court of the City of Tulsa, and when directed to do so by the Court Clerk, shall have the power to administer oaths and affidavits, make certificates, affix the seal of the court, collect and receive fines, costs and bond forfeitures and other monies properly receivable by the Court Clerk and generally to do and perform all things and acts usual or necessary to be performed by the Clerk of the Court in issuing the process of the court and in conducting the business thereof; provided, however, that such persons above named shall be under the direct supervision of the Court Clerk when performing the duties of Deputy Clerk and shall not receive any additional or further compensation for performing the duties of Deputy Clerk.

*(Ord. No. 17564)*

**Section 105. Bailiffs.**

It shall be the duty of the Court Clerk to designate personnel of the department to attend all sessions of the City Court to act as bailiff.

**Section 106. Official bonds and reports.**

The Clerk of the Municipal Court, his deputies and clerical assistants, shall give bond with sufficient sureties to be approved by the City Attorney for the faithful performance of their duties and the proper accounting of all fines, forfeitures and funds of the City of Tulsa coming into their custody or possession. Daily reports shall be made to the Director of Finance of all cash appearance bond deposits and of all fines, costs, forfeitures and funds collected by any of the officers or persons named herein. All such cash appearance bond deposits, fines, forfeitures and funds shall be paid daily to the Director of Finance who shall give a receipt therefor. If any of such officers or persons shall fail, refuse or neglect to pay

to the Director of Finance all cash appearance bond deposits, fines, costs, forfeitures and funds collected, such failure shall be sufficient cause for the removal of such person, and the City of Tulsa shall have the right and it shall be its duty to bring action upon the bond of such person for the recovery of such fine and forfeiture.

It shall be the duty of the Clerk of the Municipal Court to make all refunds or remittances of cash appearance bond deposits by issuing checks drawn upon the Bond Trust Fund. Each check so issued shall be signed by the Clerk of the Municipal Court. In the absence of the Clerk, two (2) deputies authorized by resolution may jointly issue checks, provided that each check shall bear the signatures of both deputies.

*(Ord. No. 15733)*

**Section 107. Assessment of court costs.**

Each Judge of the Municipal Court shall have sole authority to assess court costs against any party appearing before him who is convicted in the Municipal Court of a violation of an ordinance of the City of Tulsa, who enters a plea of guilty to such a violation, or who enters a plea of nolo contendere to such a violation. The Judge imposing judgment and sentence may, at his discretion, modify, reduce suspend or defer the collection of court costs.

*(Ord. No. 15016)*

**Section 108. Schedule of costs, penalties and assessments.**

**A.** In addition to all costs in criminal actions provided by the laws of the state of Oklahoma and the Revised Ordinances of the City of Tulsa, Oklahoma, the court costs, penalties and assessments given herein shall be assessed against and collected by the Clerk of the Municipal Court or the appropriate finance official of the City from all parties convicted of violations of the Revised Ordinances of the City of Tulsa and from all parties ordered to pay court costs in those crimes described in Subsections E., F. and G. herein. Conviction as defined in this Section includes any final adjudication of guilt, including all parties pleading guilty to such violations, all parties pleading *nolo contendere* and parties entering a plea on a suspended or deferred judgment, unless otherwise stated or unless such costs are suspended by a Judge of the Municipal Court.

| | | |
|---|---|---|
| **1.** | Arraignment | $46.00 |
| **2.** | Non-jury trial | $60.00 |
| **3.** | First time a jury is requested | $60.00 |
| **4.** | Non-jury trial from jury setting | $100.00 |
| **5.** | Disposition setting from jury setting | $200.00 |
| **6.** | Issuing warrants of arrest for failure to appear | $60.00 |
| **7.** | Probation fee (monthly) | $40.00 |
| **8.** | For continuance or each conference and/or disposition setting (including continued arraignments) requested by and granted to defendant | $40.00 |
| **9.** | A late fee on payments made beyond the allowed and specified time period | $30.00 |
| **10.** | A witness fee cost in those cases where witnesses are subpoenaed | |

and appear ..... $10.00 +Mileage

**11.** An off-duty, overtime Tulsa Police Officer witness fee cost in those cases where the witnesses are subpoenaed and appear ..... $35.00

**12.** Services of a court reporter at each trial of case ..... $20.00

**13.** Dismissal fee (unless otherwise stated) ..... $50.00

**14.** Hearings (if subpoenas issued) ..... $30.00

**15.** Each subsequent time jury is requested ..... $30.00

**16.** Pre-sentence interview ..... $25.00

**17.** Preparation and transmittal of record on appeal ..... $100.00

**18.** Filing fee for any bond (as "Bond" is defined within 59 O.S. 2001 § 1301) filed with the Clerk of the Municipal Court ..... $10.00

**19.** Warrant issuance fee-execution only (failure to pay costs, fines, fees or assessments) ..... $20.00

**B.** Upon conviction, and in addition to fines and/or costs, a Ten Dollars ($10.00) Council on Law Enforcement Education and Training (CLEET) penalty assessment shall be collected on offenses punishable by a fine of Ten Dollars ($10.00) or more or by incarceration, excluding parking or standing violations, and on bond forfeitures.

**C.** Upon conviction, and in addition to fines and/or costs, an Automated Fingerprinting Identification System (AFIS) penalty assessment in the amount of Ten Dollars ($10.00) shall be collected on offenses punishable by a fine of Ten Dollars ($10.00) or more or by incarceration, excluding parking or standing violations, and on bond forfeitures.

**D.** Upon conviction, and in addition to fines and/or costs, a Forensic Science Improvement (FSI) penalty assessment in the amount of Ten Dollars ($10.00) shall be collected on offenses punishable by a fine of Ten Dollars ($10.00) or more by incarceration, excluding parking or standing violations, and on bond forfeitures.

**E.** In addition to fines and/or costs, a Thirty-Five Dollar ($35.00) victim's compensation assessment shall be levied by the Court against any defendant ordered to pay court costs as a result of a crime involving violence, the threat of violence, or sexual assault.

**F.** In addition to fines and/or costs, a Twenty-Five Dollar ($25.00) victim's compensation assessment shall be levied by the Court against any defendant ordered to pay court costs as a result of driving under the influence of alcohol or other intoxicating substance, or both alcohol and other intoxicating substance.

**G.** In addition to fines and/or costs, a Fifteen Dollar ($15.00) assessment known as the Oklahoma Impaired Driver Database Revolving Fund assessment shall be levied by the Court against any defendant ordered to pay fines and/or court costs as a result of driving under the influence of alcohol or other intoxicating substance.

**H.** Upon conviction, and in addition to fines and/or costs, the City assesses a Technology Fee Assessment ("TFA") of Twenty-Five Dollars ($25.00) to fund and maintain, in part, a new court records management system which shall include a city prosecutor's records management system and to enhance the public access to court records on-line under the Oklahoma Open Records Act (Title 51 Oklahoma Statutes Sections 24A.1 et seq). The Technology Fee Assessment of Twenty-Five Dollars ($25.00) shall be assessed as court costs in each and every case resulting in a conviction, excluding parking or

standing violations and on bond forfeitures. The Technology Fee Assessment shall not be assessed as court costs on any offense where the Technology Fee Assessment would cause the court costs assessed to exceed the maximum limit on assessment of court costs under Oklahoma law. All costs assessed under this section shall be placed in a Special Fund entitled "Technology Fee Assessment Fund" to be used only for the purposes set forth above which shall be maintained by the Director of Finance of the City of Tulsa, Oklahoma, and appropriations from the Fund shall be approved in compliance with the procedures established by the statutes of the State of Oklahoma, the Charter and Revised Ordinances of the City of Tulsa.

**I.** Upon conviction, and in addition to fines and/or costs, the City assesses a Technology Fee Assessment ("TFA") of Five Dollars ($5.00) on all offenses enumerated in Chapter Five (5) of Title 37, Tulsa Revised Ordinances, entitled "Stopping, Standing and Parking Regulations" to fund and maintain, in part, a new court records management system which shall include a city prosecutor's records management system and to enhance the public access to court records on-line under the Oklahoma Open Records Act (Title 51 Oklahoma Statutes Sections 24A.1 et seq.). The Technology Fee Assessment of Five Dollars ($5.00) shall be assessed as court costs in each and every case resulting in a conviction for any "Stopping, Standing and Parking Regulation" offense. All costs assessed under this section shall be placed in a Special Fund entitled "Technology Fee Assessment Fund" to be used only for the purposes set forth above and which shall be maintained by the Director of Finance of the City of Tulsa, Oklahoma, and appropriations from the Fund shall be approved in compliance with the procedures established by the statutes of the State of Oklahoma, the Charter and Revised Ordinances of the City of Tulsa.

*(Ord. Nos. 17602, 18213, 19954, 20239, 20265, 20875; Ord. No. 21935, §§ 1, 2, 10-30-2008; Ord. No. 23125, § 1, 6-19-2014; Ord. No. 23661, § 1, 3-8-2017; Ord. No. 23869, § 1, 2-28-2018)*

### Section 109. Fees for reproduction of public records.

The Clerk of the Municipal Court shall collect fees for the reproduction of public records maintained in his custody. A reproduction fee of One Dollar ($1.00) per page shall be collected for each record reproduced; provided, however, that no fee shall be collected from any of the Armed Services of the United States of America, or from law enforcement or other governmental agencies. The fees collected by the Court Clerk shall be deposited daily with the Director of Finance.

*(Ord. No. 17001)*

### Section 110. Probationary fee.

A court granting probation shall fix a monthly probation fee as set forth in Section 108 ("Schedule of Costs, Penalties and Assessments") of this chapter to be paid by the probationer to the Municipal Court Clerk to be collected as court costs during the probationary period; provided, however, that this mandatory fee will not pertain if, in the judgment of the Court, such a fee would impose an unnecessary hardship on the probationer. In such hardship cases, the Court shall expressly waive the fee. The Court shall make payment of the fee a condition of granting or continuing the probation. Such condition shall be imposed whether the probation is incident to the suspending of execution

of the sentence, the suspending of imposition of a sentence, the continuing of a sentence or the continuing of proceedings after a verdict of plea of guilty, but such condition shall not be imposed unless supervisory probationary services are made available to the defendant.

*(Ord. No. 17001; Ord. No. 21935, § 3, 10-30-2008)*

**Section 111. Appointment, term, qualifications of Municipal Judges, duties of presiding judge.**

**A. Appointment.** The City Council shall appoint a minimum of eight (8) and not more than thirteen (13) judges who shall serve as judges of the Municipal Criminal Court of the City of Tulsa. Three (3) of the judges shall be designated Judge of the Municipal Criminal Court. The remaining judges shall be designated Associate Judge of the Municipal Criminal Court. The Council shall designate one (1) Judge of the Municipal Criminal Court to serve as Presiding Judge.

**B. Term.** Each judge shall be appointed to office for a designated term of two (2) years and shall serve until his or her successor is appointed and qualified. The first designated term of office under this ordinance shall commence on July 1, 1993, and expire on June 30, 1995. Thereafter, the term shall commence the first day of July immediately following the expiration of the preceding designated term. Each judge serving on the effective date of this ordinance shall serve until his or her successor is appointed and qualified. Any appointment to fill a vacancy shall be for the unexpired designated term of office; provided, however, that the designated term of any judge appointed to fill a vacancy between July 1, 1992, and June 30, 1993, shall expire on June 30, 1993.

**C. Qualifications.** A person appointed as a Judge of the Municipal Criminal Court must be a resident and a registered voter of the City of Tulsa at the time he or she takes the oath of office and assumes the duties thereof and shall possess the qualifications required by law to be appointed Associate Judge of the District Court of the state of Oklahoma.

**D. Duties of Presiding Judge.** The Presiding Judge shall assign cases and have overall supervisory responsibility for the administration of the Municipal Criminal Court. The Presiding Judge shall exercise general administrative authority and supervision over all judicial personnel and court officials.

*(Ord. Nos. 17658, 21639; Ord. No. 23277, § 1, 4-9-2015)*

**Section 112. Reserved.**

**Editor's note—**Ord. No. 22434, § 1, adopted March 31, 2011, repealed § 112, which pertained to creation of Judicial Nominating Committee, purpose, membership, appointment, term. See also the Code Comparative Table.

**Section 113. Reserved.**

**Editor's note—**Ord. No. 22434, § 2, adopted March 21, 2011, repealed § 113, which pertained to procedure for selection of Judges. See also the Code Comparative Table.

**Section 114. Compensation.**

Compensation for the Judges and Associate Judges shall be set by the Council. In setting the compensation for the three (3) Judges of the Municipal Criminal Court, the Council shall give consideration to the compensation paid to Special District Judges serving Tulsa

County, Oklahoma, and other judges serving municipal courts of record within the state of Oklahoma. Compensation for Associate Judges shall be on a per diem basis which shall not be less than the compensation paid to Judges of the Municipal Criminal Court at the time of appointment using a twenty-two (22) day month for purposes of calculation.

*(Ord. Nos. 17658, 21639)*

### Section 115. Review of compensation of Judges and alternate Judges of the Municipal Criminal Court.

Not more than one hundred eighty (180) days nor less than thirty (30) days prior to the expiration of the regular designated terms of the Judges and Associate Judges of the Municipal Criminal Court, the Council shall conduct a review of the compensation of the Judges and Associate Judges pursuant to Section 114 of this title. After completion of the review, the Council shall set the compensation to be paid to the Judges and Associate Judges for the new term commencing July 1. No increase or decrease in compensation shall be effective prior to the new term commencing July 1.

*(Ord. Nos. 19502, 19637, 21639)*

### Section 116. Collection services for court penalties, costs, fines and fees in cases in Municipal Court in which the accused/defendant has failed to appear or otherwise failed to satisfy a monetary obligation ordered by the court.

**A.** Subject to the provisions of the Amended Charter and the Tulsa Revised Ordinances, the Mayor, on behalf of the City, shall be authorized to enter into a contract with a collection agency for the provision of collection services for court penalties, costs, fines and fees in cases in Municipal Court in which the accused/defendant has failed to appear or otherwise failed to satisfy a monetary obligation ordered by a Judge of the Municipal Court.

**B.** Upon the City entering into a contract with a collection agency as authorized in Subsection A. of this section and upon a Judge of the Municipal Court entering an order finding an accused/defendant has amounts past due and owing to the Municipal Court for court penalties, costs, fines and fees in a case or cases filed in Municipal Court, the Clerk of the Municipal Court or the appropriate finance official of the City may refer the indebtedness of the accused/defendant to the collection agency for collection. In addition to the original amount of the indebtedness to the Municipal Court, the Judge of the Municipal Court shall order the accused/defendant to reimburse the actual and contracted collection fee arising from the City's contract with the collection agency authorized by this section in an amount not to exceed thirty percent (30%) of the original indebtedness.

**C.** Any collection agency performing collection services on behalf of the City shall:

**1.** Advise defendants, who have not previously appeared in Municipal Court and entered a plea with respect to the debt the agency is seeking to collect, that such defendants are waiving their trial rights and entering a plea of guilty or no contest by electing to make payment on the debt through the collections agency;

**2.** Advise defendants of City programs that seek to support court appearances, payment plans, and financial health and reduce the impact of fines and fees; and

**3.** Advise defendants that they may contact the court for hearings related to their ability to pay.

*(Ord. No. 22160, § 1, 11-12-2009; Ord. No. 25608, § 1, 6-18-2025)*

## CHAPTER 2. PROFESSIONAL BONDSMEN (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 19188, effective February 9, 1998.

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# TITLE 24 NUISANCES

**Chapter 1. Nuisances Classified**
**Chapter 2. Procedure for Abatement**
**Chapter 3. Abandoned or Junked Vehicles as a Nuisance**
**Chapter 4. Dilapidated and/or Unsecured Buildings as a Nuisance**

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## CHAPTER 1. NUISANCES CLASSIFIED

Section 100. Nuisances defined.
Section 101. Nuisances affecting health.
Section 102. Nuisances offending decency.
Section 103. Nuisances affecting peace and safety.
Section 104. Rule of construction.
Section 105. Reporting requirement.
Section 106. Criminal penalty.
Section 107. Application to private property abutting a right-of-way.

### Section 100. Nuisances defined.

A public nuisance consists of unlawfully doing an act or omitting to perform a duty, which act or omission:

**A.** Annoys, injures or endangers the safety, health, comfort or repose of others;

**B.** Offends public decency;

**C.** Unlawfully interferes with, obstructs or tends to obstruct, or renders dangerous for passage a lake or basin or any public park, square, alley, highway or street; or

**D.** In any way renders other persons insecure in life or in the use of property.

*(Ord. No. 17942)*

### Section 101. Nuisances affecting health.

**A. Definitions.** The following terms, wherever used or referred to in this title shall, unless different intent clearly appears from the context, be construed to have the meanings given herein:

1. **Industrial Wastes** shall mean all liquid and water-borne solid, liquid or gaseous wastes resulting from industrial manufacturing, food processing operation, processing any natural resource or any mixture of these with water or domestic sewage as distinct from normal domestic sewage.
2. **Storm Drainage System** (sometimes termed "Storm Sewer System") shall mean any stream, creek, ditch, watercourse, drainage conduit, sewer, pond, lake, drainage easement or topographical configuration which acts to channel the course of water flow; or any combination of the above; or all other natural outlets which empty into any of the above which carry storm and surface water and drainage.
3. **Sewage** shall mean a combination of the water-carried wastes from residences, business buildings, institutions and industrial establishments, together with such ground, surface and storm waters as may be present.

**B. Health Nuisances.** The following are hereby declared to be health nuisances affecting public health:

1. All decayed or unwholesome food offered for sale to the public;
2. All pools of water or vessels holding stagnant water in which mosquitoes can breed;
3. Carcasses of animals not disposed of within twenty-four (24) hours after death in accordance with Title 2 TRO, "Animals", Chapter 5, "Dead Animals";

**4.** Accumulations of trash which includes manure, rubbish, litter, rubble, refuse, debris, paper, combustible materials, offal or waste, or matter of any kind or form which is uncared for, discarded, or abandoned, or improperly stacked building materials which are potential breeding places for flies, mosquitoes or vermin;

**5.** Improperly constructed privy vaults, leaking septic tanks or sewer lines or other sewage existing in an unsanitary manner and which could cause disease transmission;

**6.** Weeds and other rank growths of vegetation upon private property or adjoining parking, including but not limited to poison ivy, poison oak or poison sumac and all vegetation at any state of maturity which:

**a.** Exceeds twelve (12) inches in height, except healthy trees, shrubs or produce for human consumption grown in a tended and cultivated garden unless such trees and shrubbery by their density or location constitute a detriment to the health, benefit and welfare of the public and community or a hazard to traffic or create a fire hazard to the property or otherwise interfere with the mowing of said weeds;

**b.** Regardless of height, harbors, conceals or invites deposits or accumulation of refuse or trash;

**c.** Harbors rodents or vermin;

**d.** Gives off unpleasant or noxious odors;

**e.** Constitutes a fire or traffic hazard; or

**f.** Is dead or diseased;

**7.** All buildings, walls and other structures which have been damaged by fire, decay or otherwise, and which endanger the health, peace and safety of the public;

**8.** Offensive trades and businesses not authorized by the Board of Health as provided by law;

**9.** All public exposure of persons having contagious or infectious diseases;

**10.** The use of a common or public drinking cup or roller towel;

**11.** The distribution of free samples of medicine or drugs;

**12.** Any solid or industrial waste, including but not limited to garbage, tin cans, bottles, rubbish, refuse, trash, construction waste or demolition waste, tree trimmings, manufacturing waste or industrial waste dumped, thrown, burned, spilled or abandoned, unless required permits have been obtained;

**13.** Dense smoke, strong odors, noxious fumes, gas, soot, dust, dirt or fly ash in such quantities as to be disturbing or offensive to a person of ordinary sensibilities or to render the occupancy of property uncomfortable to a person of ordinary sensibilities;

**14.** Accumulated or blowing trash as defined in paragraph 101.B.4., building materials or other waste material from the construction, remodeling or repair of buildings, or from the operation of any industrial, commercial or manufacturing facility;

**15.** Trees damaged or dead to the extent that a limb, tree or part could fall;

**16.** Garbage cans or any trash containers which are not fly tight or are contrary to the ordinances relating thereto; or which are kept or stored within twelve (12) feet of a curb, or edge of paving where there is no curb, in excess of twenty-four (24) hours;

**17.** Any animal kept or maintained in an unsanitary condition or surroundings; and

**18.** Discharge into any storm drainage system of any:

**a.** Untreated sewage, sewage solids, process wastewater, refuse, explosive or combustible liquid, solid or gas, oils, greases, industrial waste or other polluted waters except where a federal, state or local permit for connections, discharge or disposal has been obtained;

**b.** Waters or wastes containing toxic or poisonous solids, liquids or gases in sufficient quantity, either singly or by interaction with other wastes to constitute a hazard to humans or animals or to cause corrosion, discoloration or deposition on structures and equipment; or

**c.** Any solid or viscous substances in such quantities or of such size capable of causing obstruction to the flow in the stormwater drainage system or other interference with the proper operation of the drainage system of the City of Tulsa.

**19.** Any place of public accommodation, public setting, or educational institution as defined in Title 27 Ordinance No. 24408, that has not made efforts to comply with the defined measures prescribed in Title 27 Ordinance Nos. 24408, 24490 and amendments thereto including face covering, social distancing, separation, event or gathering requirements, or other mandates. This paragraph may be enforced by Tulsa Police Department, the Nuisance Enforcement Official as provided in Sections 201 or 204, below, and the Director of Health and persons acting under his or her orders, as provided in Sections 201 or 204, herein, and Sections 104, 105 and 106 of Title 17 TRO, "Health Regulations."

**20.** Any event or gathering held on or after December 11, 2020, that exceeds the number of attendees set forth in Ordinance No. 24490, Section 412, at which the organizers, or other persons or entities responsible for conducting, producing or hosting such event or gathering have failed to obtain, or which is not in compliance with, the requirements of the COVID-19 safety plan approved by the Tulsa Health Department a minimum of fourteen (14) calendar days prior to the event or gathering as required in Title 27 Ordinance No. 24490, Section 412. This paragraph may be enforced by Tulsa Police Department, the Nuisance Enforcement Official as provided in Sections 201 or 204, below, and the Director of Health and persons acting under his or her orders, as provided in Sections 201 or 204, herein, and Sections 104, 105 and 106 of Title 17 TRO, "Health Regulations."

**21.** Paragraphs 19 and 20 of this subsection 101.B shall remain in force and effect only so long as the provisions of Title 27 Tulsa Revised Ordinances, Sections 409 and 413, as amended, remain in effect.

*(Ord. No. 17942; Ord. No. 24491, § 1, 11-24-2020; Ord. No. 24517, § 1, 1-13-2021; Ord. No. 25152, § 1, 10-25-2023; Ord. No. 25490, § 1, 12-11-2024)*

## Section 102. Nuisances offending decency.

The following are hereby declared to be public nuisances affecting public morals and decency:

**A.** All houses, buildings or places where gambling devices, slot machines, punch boards and other such contrivances of similar character involving any elements of chance as a consideration or any type of gambling, bookmaking, wagering or betting is carried on, and all gambling equipment;

**B.** Bawdy houses and all houses, buildings or places kept for the purposes of prostitution or promiscuous sexual intercourse;

**C.** All buildings or places where intoxicating liquors are manufactured, sold, bartered or given away in violation of law or where persons are permitted to resort for the purpose of drinking intoxicating liquors kept for sale, barter or distribution in violation of law, and all liquors, bottles, kegs, pumps, bars and other property kept at and used for maintaining such a place;

**D.** Any vehicle used for any immoral purpose;

**E.** All indecent or obscene pictures, books, pamphlets, magazines and newspapers; and

**F.** Places used for holding of public dances conducted for the profit of the person operating the same unless such dance is conducted as provided by law.

*(Ord. No. 17942)*

## Section 103. Nuisances affecting peace and safety.

The following are declared to be public nuisances affecting public peace and safety:

**A.** All trees, hedges, signs or other obstructions, or any portion of the same, located within a sight-distance triangle which prevent persons driving vehicles approaching an intersection of streets from having a clear view of traffic approaching such intersection. Sight-distance triangle shall mean the area within an imaginary triangle formed at a street corner as follows: Extend the curb lines (or the edge of the pavement where no curbs exist) into the street to a point where those lines intersect; from that point of intersection, measure along both curb lines (or edges of pavement) to two (2) points, each of which is thirty-five (35) feet from the point of intersection; the connecting of these three (3) points shall form the sight-distance triangle;

**B.** All limbs of trees which project over a public sidewalk or street and which are less than eight (8) feet above the surface of the public sidewalk and nine (9) feet above the surface of the street;

**C.** All wires over streets, alleys or public grounds which are not licensed by the City or which are strung so that the lowest portion is less than fifteen (15) feet above the surface of the ground;

**D.** Any usage of land, and/or the structures upon it, which violates any City ordinances; all buildings, walls and other structures which have been damaged by fire, decay or otherwise and which are so situated as to endanger the safety of the public, or which are otherwise built, erected or maintained in violation of any ordinance;

**E.** All explosives, inflammable liquids and other dangerous substances stored in any manner, in any amount other than that provided by ordinance;

**F.** All noises, sounds or vibrations of such a character or duration so as to be unreasonably loud or disturbing to the peace and quiet of persons of ordinary sensibilities, including but not limited to those persons inside a building or structure used in whole or in part as a domicile, residence or dwelling;

**G.** All buildings and all alterations to buildings made or erected, within the City of Tulsa fire protection limits as established by ordinance, which are in violation of any ordinance concerning the manner and materials of construction;

**H.** Obstructions and excavations affecting the ordinary use by the public of the streets, alleys, sidewalks or public ground except under such conditions as are provided by ordinance;

**I.** Any use of the public streets or sidewalks which causes large crowds of people to gather, obstructing the flow of traffic and the free use of the streets or sidewalks;

**J.** All hanging signs, awnings, canopies and other similar structures over the streets or sidewalks so situated or constructed as to endanger public safety or to be contrary to ordinance;

**K.** The allowing of rainwater, ice or snow, to fall from any building or structure upon any sidewalk or the causing of water to flow across a sidewalk, or allowing a lawn water sprinkler or irrigation system to operate when the outside temperature is thirty-two (32) degrees Fahrenheit or below;

**L.** All barbed wire fences which are located within three (3) feet of any public sidewalk or are otherwise erected in violation of the zoning ordinances of the City of Tulsa;

**M.** The keeping of any animal or reptile, wild by nature or dangerous, except when kept by a licensed circus or show, in a zoo or in an accredited school;

**N.** The repeated use of any real property or structure to commit acts which result in a felony conviction under the Oklahoma Uniform Controlled Dangerous Substances Act;

**O.** Any privately-owned sign (including a poster, banner, flyer or other device) placed in or on an existing public street or sidewalk; or in or on a right-of-way or within twelve (12) feet of a curb or road edge, whichever is less; or affixed to any tree, utility pole or other structure located in or on a public street or sidewalk; or in or on a right-of-way or within twelve (12) feet of a curb or road edge, whichever is less, without permission from the City of Tulsa, as provided in Title 42 Tulsa Revised Ordinances, Subsections 60.020.E. and H. Any such sign so placed or affixed shall be considered both litter and abandoned and may be summarily removed;

**P.** Except as authorized in Title 42 Tulsa Revised Ordinances, Chapter 60, "Signs" and Chapter 67, "Outdoor Lighting", or exempt from regulation pursuant to Title 42 Tulsa Revised Ordinances, Subsections 67.020.B.—J., any light, lamp, filament, laser or similar device which is of such a character or duration so as to be unreasonably infringing, or disturbing to persons of ordinary sensibilities, including but not limited to those persons inside a building or structure used in whole or in part as a domicile, residence or dwelling. These devices may include, but shall not be limited to a strobe, flash, twinkle, chase, or any other lighting feature which creates an illusion of motion and is visible from another property or the right-of-way; or which due to positioning, location or lighting intensity is capable of causing temporary blindness to or otherwise obstruct or limit the view of any motorist, bicyclist, or pedestrian traffic;

**Q.** Allowing a vehicle, equipment, or other obstruction to impede or deny access to public utility facilities, including, but not limited to, utility meters, valves, utility lines, or manholes located within a right-of-way or a utility easement. For the purposes of this subsection, "utility facilities" shall refer to any of the constituent parts of any system distributing, transmitting, conveying, or delivering electrical current and other forms of energy, potable water, sanitary sewer waste, storm sewer waste, natural gas, telephone service, communications, or data. Sections 304 and 305 of this Title, regarding the removal of vehicles and the procedure for regaining possession of removed vehicles, shall apply to the abatement of nuisances under this subsection;

**R.** Allowing occupancy of a structure or building without a valid certificate of occupancy issued by the City of Tulsa or occupying a structure inconsistent with the approved certificate of occupancy;

**S.** Using a vehicle primarily for the storage of items, materials, or trash;

**T.** Any private use, occupancy, or development within the public right-of-way without a license agreement, permit, and/or other required approval from the City of Tulsa or in violation of the terms or conditions of a license agreement, permit, or other approval from the City of Tulsa;

**U.** The failure to remove graffiti from the exterior surface of a building, structure, fixture, or other improvement on one's property. "Graffiti" is defined as any unauthorized inscription, word, figure, marking, or design that is affixed, marked, etched, scratched, drawn, or painted on any building, structure, fixture, or other improvement, without the consent of the owner of the property, and which is visible from a public street or right-of-way; and

**V.** Commercial driveways, privately maintained streets, service roads, access roads, and similar areas, which are open to the public, and which present a driving hazard, endanger the safety of the public, or are otherwise constructed or maintained in violation of any ordinance.

*(Ord. Nos. 17942, 19446, 19820, 20950, 21596; Ord. No. 22751, § 1, 9-20-2012; Ord. No. 23875, § 1, 3-7-2018; Ord. No. 24809, § 1, 4-27-2022; Ord. No. 25220, § 1, 1-24-2024; Ord. No. 25614, § 1, 6-25-2025)*

### Section 104. Rule of construction.

The fact that certain acts or conditions are in Sections 101, 102 and 103 herein specifically declared to be a nuisance shall not be construed that any other act, fact, condition or thing shall not be a nuisance if such other act, fact, condition or thing would have been a nuisance under Section 101 herein or under any other law of the City of Tulsa. Nothing in this title shall be construed to be a limitation upon the definition of or the provisions for the abatement of or punishment of any nuisance specified in any other part of these Revised Ordinances.

*(Ord. No. 17942)*

### Section 105. Reporting requirement.

Any person, firm, corporation, partnership or other legal entity who commits or who permits the creation or continuation of a nuisance as above defined which poses a potential emergency threat to the public health or the environment shall immediately report the

incident to the Director of the Tulsa City-County Health Department and shall provide any information requested by the Director needed to investigate or abate the potential emergency.

*(Ord. No. 17942)*

### Section 106. Criminal penalty.

Any person, firm or corporation, partnership or other legal entity who anywhere within the City of Tulsa commits any nuisance, either as principal or accessory, or who knowingly permits the creation or continuation of any nuisance on any property owned or occupied by himself as the same has been defined in this chapter shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand, Two Hundred Dollars and No Cents ($1,200.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period of not more than one hundred eighty (180) days, or by both such fine and imprisonment. Each day of such violation shall constitute a separate offense.

*(Ord. Nos. 17942, 21596; Ord. No. 21954, § 2, 12-4-2008; Ord. No. 24197, § 1, 7-31-2019)*

### Section 107. Application to private property abutting a right-of-way.

Whenever private property abuts a public right-of-way and there exists in such right-of-way a tree lawn or grassy area between the lot line of that private property and the pavement of said right-of-way, the owner of the private property shall maintain this tree lawn or grassy area in such a way as to avoid the creation or continuation of any nuisance, including but not limited to removing weeds and other rank growths of vegetation that exceed twelve (12) inches in height pursuant to Section 101.B.6. of this chapter; removing any dead tree or any part of a tree that is damaged or dead to the extent that a limb, tree, or part could fall; and removing all trash and debris that is not properly gathered for disposal or contained for waste collection services.

*(Ord. No. 25221, § 1, 1-24-2024)*

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## CHAPTER 2. PROCEDURE FOR ABATEMENT

Section 200. General.
Section 201. Abatement.
Section 202. Nuisance abatement volunteers.
Section 203. Remedial civil penalties.
Section 204. Emergencies.
Section 205. Appeals from the Enforcement Official.
Section 206. Nuisance Hearing Officer's authority.
Section 207. Appeals to the Council.
Section 208. Damages.
Section 209. Liability for costs.
Section 210. Summary abatement.
Section 211. Reports, investigations and notices by the Police Department.

### Section 200. General.

The procedure provided in this chapter for abatement of nuisances shall apply to all nuisances arising under the laws of the City of Tulsa, except in those instances where the specific procedure for the abatement of the nuisance is otherwise provided. Nothing herein shall prevent the City from exercising other legal remedies to abate nuisances including, but not limited to, the procedures provided by state and federal law.

*(Ord. Nos. 17942, 18205, 21596)*

### Section 201. Abatement.

**A.** Unless a different procedure is provided in this title, in all cases of nuisances the Enforcement Official, acting at his discretion or upon order of the Mayor, shall cause a written notice to be served upon the person or entity who maintains, operates or permits a nuisance.

**B.** Written notice shall be given to the owner of the property by mail at the address shown by the current year's tax rolls in the County Treasurer office before the Enforcement Official takes any action to abate the nuisance. The notice shall order the property owner to abate the nuisance and shall further state that unless such abatement is performed within ten (10) business days of the date on the notice, the work shall be done by the City of Tulsa and a notice of lien shall be filed with the County Clerk against the property for the costs due and owing the City of Tulsa. At the time of mailing of the notice to the property owner, the City shall obtain a receipt of mailing from the postal service, which receipt shall indicate the name and address of the mailee, and the date of mailing, which shall be on or before the date on the notice. As used in this title, "owner" shall mean the owner as shown by the most current tax rolls of the County Treasurer.

**C.** For the purposes of this title, the phrase "business days" shall refer to days of the week, excluding Saturdays, Sundays, official state holidays as provided in Title 25 O.S. Section 82.1, and official federal holidays as provided in Title 5 U.S.C.A Section 6103. The word "days" and the phrase "calendar days" shall refer to sequential days of the week, including Saturdays, Sundays, and holidays.

**D.** If such person or entity cannot be found, then a copy of the notice may be served by posting a copy in some conspicuous place on the premises described in the notice at least ten (10) business days prior to any abatement action by the Enforcement Official of the City of Tulsa.

**E.** The Enforcement Official is authorized to abate the nuisance after expiration of the ten (10) business day period unless an extension is granted as provided hereafter or an appeal has been filed as provided herein.

**F.** An extension of fourteen (14) days in which to self-abate the nuisance may be applied for by paying the nuisance abatement extension fee as set forth in Section 122, in Chapter 1 of Title 49, TRO, per extension. To qualify for the extension, the applicant shall:

**1.** Be eighteen (18) years of age or older;

**2.** Not be in default on any debt to the City of Tulsa; and

**3.** State the need for the extension of time for which a hardship prevents prompt compliance.

Instructions for receiving this enlargement of time to abate the nuisance shall be included in the original notice. The Enforcement Official shall not grant an extension if to do so poses imminent threat to life or property. No extension shall be granted without prior payment of the nuisance abatement extension fee. No more than two (2) extensions shall be granted, except where necessary concerning dilapidated structures as contemplated in Section 402 hereof.

*(Ord. Nos. 17942, 18205, 21169, 21596; Ord. No. 22995, § 1, 12-12-2013; Ord. No. 24197, § 2, 7-31-2019; Ord. No. 24926, § 1, 9-21-2022)*

**Section 202. Nuisance abatement volunteers.**

**A.** For the purpose of assisting the City of Tulsa in collecting and disposing of abandoned and unlawfully discarded litter placed upon the public rights-of-way there is hereby established a plan allowing private citizens, after training and under the direction of the Mayor or Mayor's designee, to serve as a nuisance abatement volunteer.

**B.** Persons serving as a nuisance abatement volunteer are under the direction, coordination and supervision of the Mayor or Mayor's designee.

**C.** Before serving as a nuisance abatement volunteer each volunteer shall:

**1.** Complete and submit the appropriate registration form as provided by the City of Tulsa;

**2.** Submit to a background check;

**3.** Provide a signed statement that he or she understands the City of Tulsa will not be furnishing worker's compensation coverage if he or she is injured while performing tasks relating to nuisance abatement volunteer activities; and

**4.** Successfully complete a training course provided by the City of Tulsa which will include procedures, responsibilities, safety awareness and other instructional training deemed necessary or beneficial by the Mayor or Mayor's designee.

**D.** The Mayor or Mayor's designee shall have authority and sole discretion to appoint and remove persons serving as nuisance abatement volunteers.

**E.** Nuisance abatement volunteers shall not receive any form of compensation from the City of Tulsa.

**F.** The City of Tulsa will assign each nuisance abatement volunteer an identification number and, as may be deemed necessary by the Mayor or Mayor's designee, provide equipment, supplies and materials.

**G.** A nuisance abatement volunteer shall not have authority to enforce ordinances of the City of Tulsa.

*(Ord. No. 21596)*

### Section 203. Remedial civil penalties.

**A.** In all cases of nuisances as described in this title, where one (1) or more of the following conditions exist: (1) the nuisance impacts, directly or indirectly, more than one-half (½) acre; (2) the estimate to abate the nuisance exceeds One Thousand Dollars ($1,000.00); (3) the person/entity responsible for the nuisance has been identified as having been notified to abate two (2) or more nuisances in the immediately preceding twenty-four (24) months; or (4) the person responsible for the nuisance has demonstrated a lack of cooperation or has interfered with the Enforcement Official's duties; the Enforcement Official, acting at his discretion or upon order of the Mayor, in lieu of the notice provided for in Section 201 hereof, may notify the person and/or entity who maintains, operates or permits the nuisance, together with the owner of the property, if applicable, that a hearing to abate the nuisance has been scheduled before the Nuisance Hearing Official.

**B.** At least ten (10) business days' notice of the hearing shall be given to the person and/or entity who maintains, operates or permits a nuisance and to the owner of the property by mail at the address shown by the current year's tax rolls in the County Treasurer's office.

**C.** If such person or entity cannot be found, then a copy of the notice of hearing may be served by posting a copy in some conspicuous place on the premises described in the notice at least ten (10) business days before the hearing.

**D.** The notice shall advise the responsible party that should the Nuisance Hearing Officer, after the hearing, find that a nuisance exists, that unless the nuisance is abated as directed by the Nuisance Hearing Officer, a remedial civil penalty not to exceed One Thousand Dollars ($1,000.00) per day for each day the nuisance remains unabated may be imposed.

**E.** All remedial civil penalties shall be separate from and in addition to the City's expenses incurred to abate the nuisance as provided in Section 209 hereof.

*(Ord. No. 21596; Ord. No. 22995, § 2, 12-12-2013)*

### Section 204. Emergencies.

If such nuisance exists in a condition which will cause imminent peril to life or property, or in such a condition so menacing to the public health, peace or safety, the enforcement official may proceed to abate the nuisance immediately without prior notice; provided, however, that notice and an opportunity to be heard shall be afforded the property owner as soon as possible after abatement.

*(Ord. Nos. 17942, 18205, 21596)*

### Section 205. Appeals from the Enforcement Official.

**A. Right to Appeal.** An appeal to the Hearing Officer may be taken by any person aggrieved (hereinafter "Appellant") where it is alleged there is error in any order, requirement, decision or determination made by the Enforcement Official.

**B. Notice of Appeal.** An appeal from a Section 201 abatement shall be taken within ten (10) business days from the date of the issuance of the notice provided for in Section 201, by filing with the City Clerk at 175 E. 2nd St., Room 260, Tulsa, OK 74103 a Notice of Appeal, specifying the name and mailing address of the Appellant and specifying the grounds thereof. An appeal from a Section 210 or 403 summary abatement shall be taken within ten (10) business days from the date of the issuance of the notice provided for in each section, by filing with the City Clerk at 175 E. 2nd St., Room 260, Tulsa, OK 74103 a Notice of Appeal, specifying the name and mailing address of the Appellant and specifying the grounds thereof. The Enforcement Official, upon receipt of notice from the City Clerk, shall forthwith transmit to the Nuisance Hearing Officer a summary of the matter and copies of all the papers constituting the record. Upon receipt of the record, the Nuisance Hearing Officer shall set the matter for hearing not less than seven (7) business days nor more than thirty (30) calendar days from receipt of said record. Notice of the date, time and place of said hearing shall be mailed by the Enforcement Official by first class mail to Appellant at the address shown in the Notice of Appeal.

**C. Hearing Officer.** There is hereby appointed a Hearing Officer and alternate Hearing Officers who shall conduct the hearings and perform the duties set forth herein. The Municipal Court Administrator (Municipal Court Clerk) is hereby appointed and shall serve as the Hearing Officer. The Hearing Officer shall appoint and designate one alternate to serve in his or her absence from one of the division head positions in the Municipal Court. The Mayor shall appoint and designate a second alternate Hearing Officer from the Mayor's staff to serve in the absence of the Hearing Officer and the first alternate.

**D. Stay of Proceedings.** An appeal stays all proceedings in furtherance of the action appealed from.

*(Ord. Nos. 17942, 18205, 19147, 21596; Ord. No. 22271, § 1, 7-15-2010; Ord. No. 22995, § 3, 12-12-2013; Ord. No. 23524, § 1, 7-21-2016)*

## Section 206. Nuisance Hearing Officer's authority.

At a hearing before a Nuisance Hearing Officer, pursuant to any section of this title, should the Nuisance Hearing Officer find that a nuisance, as defined by City Ordinances exists, an Order to Abate shall be entered. Such an order shall authorize standard abatement procedures to be executed which, may include, among other reasonable responses, the following:

**A.** Immediate abatement by the City when the immediate welfare of life or property is at risk.

**B.** Self-abatement by any responsible party pursuant to a written work schedule prepared by the enforcement official.

**C.** Should the responsible party not appear at a scheduled hearing, after being notified as herein provided, or fail to make other curative arrangements acceptable to the Nuisance Hearing Officer, an order may be entered which allows to a date certain for the nuisance to be abated by any responsible party.

**D.** If a responsible party fails to abate the nuisance as ordered, without just cause, the Nuisance Hearing Officer shall be authorized to impose a remedial civil penalty against

the responsible party in an amount not to exceed One Thousand Dollars ($1,000.00) per day for each day beyond the scheduled completion date that the nuisance remains unabated.

**E.** If just cause, as determined by the enforcement official, prevents the responsible party from abating the nuisance, the order shall authorize the enforcement official to allow up to two (2) fourteen (14) day extensions to abate any nuisance upon pre-payment of the extension fees.

**F.** The Nuisance Hearing Officer is authorized to summarily order a remedial civil penalty against the responsible party in an amount not to exceed One Thousand Dollars ($1,000.00) per day for each day the enforcement official documents that a recurring violation of this title by the same responsible party exists within the twenty-four (24) months following the issuance of the order.

*(Ord. No. 21596)*

**Section 207. Appeals to the Council.**

**A. Right to Appeal.** An appeal to the Council may be taken by any person aggrieved where it is alleged there is error in any order, requirement, decision or determination made by the hearing officer.

**B. Notice of Appeal.** Any person aggrieved by a decision of the Nuisance Hearing Officer may file an appeal to the Council by filing two copies of a written Notice of Appeal, specifying the name and address of the Appellant and the grounds for appeal, with the City Clerk at 175 E. 2nd Street, Room 260, Tulsa, OK 74103, within ten (10) business days of the date of the decision complained of. The Appellant shall obtain a form from the office of Council Secretary or the City Clerk, entitled "Notice of Appeal to Council of Nuisance Hearing Officer Decision" and file two copies of the completed Notice of Appeal with the City Clerk. A hearing on the appeal shall be heard by the Council not later than thirty (30) calendar days from the date of filing the Notice of Appeal unless a later date is agreed to by Appellant. Notice of the date, time and place of the appeal hearing shall be mailed by the Council Secretary by first class mail to the Appellant at the address shown in the Notice of Appeal.

**C. Council Action.** The Council shall hold a hearing and may reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination appealed from and may make such order, requirement, decision or determination as ought to be made.

**D. Stay of Proceedings.** An appeal stays all proceedings in furtherance of the action appealed from.

*(Ord. Nos. 17942, 18205, 21596; Ord. No. 22271, § 2, 7-15-2010; Ord. No. 22995, § 4, 12-12-2013; Ord. No. 23525, § 1, 7-21-2016; Ord. No. 24999, § 1, 2-22-2023)*

**Section 208. Damages.**

The fact that the City has caused a nuisance to be abated after proper procedure and default, failure or refusal of the party to abate the nuisance shall in no way excuse the party from any damages which may have resulted prior thereto to any person.

*(Ord. Nos. 17942, 18205, 21596)*

**Section 209. Liability for costs.**

**A.** Any person or entity who fails to abate any nuisance after proper notice shall be liable to the City for all expenses incurred in the abatement of the nuisance. The City may

pursue its right of action to recover all such costs following any and all reasonable legal methods, including installment payment contracts, administered by the Finance Department, as hereinafter provided. The City may recover the costs incurred in abating a sanitary sewer nuisance by adding the same to the utility bill of any person found to be liable for the nuisance. To recover the costs incurred in abating any type of nuisance, the City may impose a lien on the subject property to secure payment of such costs. The procedure for establishing such lien may include, but is not limited to, that set forth in 11 O.S. 2001, § 22-111, as amended. The procedure for establishing such lien for demolition of a building may include, but is not limited to, that set forth in 11 O.S. 2001, § 22-112, as amended. The procedure for establishing such lien for boarding and securing a building may include, but is not limited to, that set forth in 11 O.S. 2001, § 22-112.1, as amended.

**B.** Criteria for citizen participation in this program of installment payments of nuisance abatement costs are as follows:

Each applicant shall:

**1.** Own legal title to the real property from which the nuisance was abated;

**2.** Occupy the subject property as his or her homestead;

**3.** Have no other abatement procedure pending on any property owned by the applicant;

**4.** Have no other debts to the City of Tulsa in default status;

**5.** Have no outstanding arrest warrants; and

**6.** Have no other active installment payment contract with the City of Tulsa.

**C.** The Finance Department is hereby authorized to verify the applicant's qualifications under the criteria listed above, and thereafter process an installment payment contract in conformity with these provisions.

**D.** Should the Finance Department conclude that the applicant does not qualify for the installment payment program, a letter shall be mailed to the applicant identifying the reasons for denial.

**E.** Any citizen who applies for the installment payment program described herein and is denied participation may appeal his or her denial by filing with the Council Secretary, within ten (10) business days from the date the denial letter was mailed, a written request for a hearing before the Council which details the basis for the appeal and demonstrates why he or she should be allowed to make installment payments as contemplated herein.

**F.** Upon hearing the appeal, the Council may waive all or a part of the criteria set forth in Subsection B, above.

**G.** In addition to the City's right to recover its expenses for abating a nuisance as provided in Subsections A through F hereof, the City may pursue an action in District Court to recover a judgment for all remedial civil penalties imposed herein.

**H.** Administrative fees chargeable for nuisance abatement shall be as follows:

| | |
|---|---|
| Initial nuisance | $300.00 |
| Summary abatement | $300.00 |
| Demolition | $500.00 |

Said fees shall be recoverable against the party maintaining, operating or permitting a nuisance.

*(Ord. Nos. 17942, 18205, 20383, 20495, 21596; Ord. No. 22995, § 5, 12-12-2013; Ord. No. 24197, § 3, 7-31-2019)*

**Section 210. Summary abatement.**

**A.** If a notice to abate a nuisance is issued to a property owner in accordance with the procedures provided for in this title, and if the notice to abate provides that the same nuisance re-occurring on the same property under the same ownership within twenty-four (24) months after the abatement may be summarily abated by the City, and that the costs of such summary abatement shall be assessed against the property owner, and that a lien may be imposed on the property to secure such payment, all without further prior notice to the property owner, then each subsequent nuisance constitutes a public nuisance and may be summarily abated without further prior notice to the property owner.

**B.** Any summary abatement within said twenty-four (24) month period by the City automatically extends the period for summary abatements as outlined herein by the City an additional twenty-four (24) months.

**C.** At the time of each such summary abatement, the City shall notify the property owner of the summary abatement and the costs thereof. The notice shall state that the property owner may file an appeal within ten (10) business days after the date said notice was mailed by filing a notice of appeal in writing with the Enforcement Official and with the City Clerk. The appeal shall be in accordance with the procedure outlined in Section 205 herein.

**D.** Unless otherwise determined on appeal, the costs of such abatement shall be determined and collected, together with all remedial civil penalties imposed, as provided for in Section 203 herein; provided, however, that this section shall not apply if the records of the County Clerk show that the property was transferred after notice was given pursuant to Section 201 herein.

*(Ord. Nos. 17942, 18205, 19147, 21596; Ord. No. 22271, § 3, 7-15-2010; Ord. No. 22995, § 6, 12-12-2013; Ord. No. 25535, § 1, 2-26-2025)*

**Section 211. Reports, investigations and notices by the Police Department.**

**A.** A complaint or report of suspected illegal activities constituting a felony violation of the Oklahoma Uniform Controlled Dangerous Substances Act by tenants, occupants and/or visitors, guests or invitees as observed by the lessor, third persons such as other tenants of the property, or persons residing or working in the vicinity of the property, or city officials, and/or representatives of agencies and/or departments of the City of Tulsa shall be submitted to the Tulsa Police Department.

**B.** Upon receipt of any report or complaint of such suspected illegal activities on real estate premises, a determination shall be made by the City of Tulsa as to the need and nature of any further investigation including, but not limited to, the necessity for surveillance by the Tulsa Police Department of such real estate premises.

**C.** Upon completion of criminal investigation by the Tulsa Police Department or other law enforcement agency revealing that repeated felony violations of the Oklahoma Uniform Controlled Dangerous Substances Act have taken place at a particular premises, a

warning letter shall be sent by the City of Tulsa to the owner, the owner's agent, and/or tenant of the real estate whose premises is the subject of the investigation, by certified mail, return receipt requested, informing the owner and/or tenant of the illegal activity constituting a public nuisance. The warning letter shall inform the owner and/or tenant of their choice to take action to abate such illegal activity and of the intent of the City of Tulsa to take further action if the nuisance is not abated within thirty (30) calendar days.

*(Ord. Nos. 19446, 19729, 21596; Ord. No. 22995, § 7, 12-12-2013)*

## CHAPTER 3. ABANDONED OR JUNKED VEHICLES AS A NUISANCE

Section 300. Definitions.
Section 301. Certain vehicles prohibited.
Section 302. Nuisance declared.
Section 303. Abatement.
Section 304. Order of abatement.
Section 305. Owner may regain.
Section 306. Appeal.
Section 307. Penalty.

### Section 300. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings given herein.

**A. Person** shall mean any person, firm, partnership, association, corporation, company or organization of any kind.

**B. Vehicle** shall mean any motor vehicle, automobile, truck, trailer, motorcycle, tractor, buggy, wagon or self-propelled farm or construction equipment.

**C. Public Property** shall mean any property owned or controlled in the City limits by the City of Tulsa, Tulsa County, the state of Oklahoma or United States government, and shall include all streets and highways.

**D. Private Property** shall mean any real property in the City of Tulsa which is not public property.

**E. Dismantled, Junked, Abandoned or Inoperable Vehicles** shall be deemed to include the major parts thereof, including bodies, engine, transmissions, frames and rear ends.

*(Ord. No. 17942)*

### Section 301. Certain vehicles prohibited.

No person shall deposit, store, keep or permit to be deposited, stored or kept in the open upon public or private property a dismantled, unserviceable, inoperable, junked or abandoned vehicle or any vehicle legally or physically incapable of being operated, for a period exceeding forty-eight (48) hours, unless such vehicle or the parts thereof is completely enclosed within a building or stored in connection with a business lawfully established pursuant to the zoning ordinances of the City of Tulsa, or is stored on property lawfully designated under the zoning ordinances of the City of Tulsa as a place where such vehicles may be stored.

*(Ord. No. 17942)*

### Section 302. Nuisance declared.

The accumulation or storage of one (1) or more vehicles or parts thereof as described in Section 301 shall constitute a nuisance detrimental to the health, safety and welfare of the inhabitants of the City of Tulsa. It shall be the duty of the owner of such vehicle or the parts thereof, or the owner of the private property or the lessee or other person in possession or control of the property upon which such vehicle is located, to remove the vehicle from such property or have the vehicle housed in a building where it will not be visible from the street

or from other private property. The removal or enclosure shall be made within ten (10) business days after notice has been given to the owner of the vehicle or the owner, lessee or person in control of the property upon which such vehicle is located. The time may be extended by the enforcement official in the case of an obvious hardship.

*(Ord. No. 17942; Ord. No. 22995, § 8, 12-12-2013)*

**Section 303. Abatement.**

Unless otherwise provided herein, the abatement, notice, hearing and procedures thereof, for nuisances arising under this chapter shall be as provided in Chapter 2 of this title.

*(Ord. No. 17942)*

**Section 304. Order of abatement.**

In all cases where it shall have been determined that any nuisance shall be abated, and the nuisance is not abated within the time specified in the notice, an Order of Abatement shall be forwarded to the Chief of Police or his designee who shall certify the sale value and cause the vehicle or its parts to be removed and stored in a proper place.

*(Ord. Nos. 17942, 18206)*

**Section 305. Owner may regain.**

The owner of any vehicle so removed may regain possession thereof by making application to the Police Department within thirty (30) calendar days after its removal and upon payment to the City of Tulsa all reasonable costs of removal and storage which shall have accrued to such vehicle. If the vehicle is not reclaimed within thirty (30) calendar days, it may be sold without further notice and, after payment of towing and storage costs, all funds remaining shall become the property of the City of Tulsa to defray the remaining costs of abatement.

*(Ord. No. 17942; Ord. No. 22995, § 9, 12-12-2013)*

**Section 306. Appeal.**

An appeal to the City Council, as provided in Section 207 of this title, may be taken by any person aggrieved by the Hearing Officer's order, requirement, decision or determination.

*(Ord. Nos. 17942, 21596)*

**Section 307. Criminal penalty.**

Any person required by the provisions of this chapter to remove a dismantled, junked or abandoned vehicle who shall fail to do so in compliance with notice as provided herein, shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand, Two Hundred Dollars and No Cents ($1,200.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period of not more than one hundred eighty (180) days, or both. Each and every violation and each day of such violation shall be a separate offense.

*(Ord. Nos. 17942, 18206; Ord. No. 24197, § 4, 7-31-2019)*

# CHAPTER 4. DILAPIDATED AND/OR UNSECURED BUILDINGS AS A NUISANCE

Section 400. Application.
Section 401. Definitions.
Section 402. Abatement.
Section 403. Summary abatement.
Section 404. Condemnation of dilapidated buildings.
Section 405. Criminal penalty.

## Section 400. Application.

The procedures provided in this chapter shall apply to all nuisances relating to the tearing down and removal of a dilapidated building or structure and to the securing or boarding of an unsecured building or structure.

*(Ord. No. 17942)*

## Section 401. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meaning given herein.

**A. Dilapidated building or structure** means:

**1.** A building or structure which through neglect or injury lacks necessary repairs or otherwise is in a state of decay or partial ruin to such an extent that the building or structure is a hazard to the health, safety and welfare of the general public;

**2.** A building or structure which is unfit for human occupancy due to the lack of necessary repairs and is considered uninhabitable or is a hazard to the health, safety and welfare of the general public;

**3.** A building or structure which is determined by the Council or an administrative officer of the City under the abatement, notice, hearing and procedures provisions in Chapter 2 of this title to be an unsecured building or structure as defined by this chapter, more than three (3) times within any twelve (12) month period;

**4.** A building or structure which has been boarded and secured, as defined by this chapter, for more than eighteen (18) consecutive months; or

**5.** A building or structure declared by the Council to constitute a public nuisance.

**B. Boarding and securing or boarded and secured** means the closing, boarding or locking of any or all exterior openings so as to prevent entry into the building or structure.

**C. Property owner or owner** means the owner of record as shown by the most current tax rolls of the County Treasurer.

**D. Unsecured building or structure** means any building or structure which is not occupied by a legal or equitable owner thereof, or by a lessee of a legal or equitable owner, and into which there are one (1) or more unsecured openings such as broken windows, unlocked windows, broken doors, unlocked doors, holes in exterior walls, holes in the roof, broken basement or cellar hatchways or other similar unsecured openings which would facilitate an unauthorized entry into the building or structure.

*(Ord. Nos. 17942, 19772; Ord. No. 22995, § 10, 12-12-2013)*

## Section 402. Abatement.

The enforcement official acting at his discretion or upon order of the Mayor shall cause dilapidated and/or unsecured buildings or structures to be torn down and removed or boarded and secured in accordance with the abatement, notice, hearing and procedures provided in Chapter 2 of this title, and the cost of such abatement, and the remedial civil penalties imposed, shall be recoverable by the City as provided in Section 209 of this title.

*(Ord. Nos. 17942, 21596)*

## Section 403. Summary abatement.

If the City of Tulsa causes a building or structure to be boarded or secured in accordance with the procedures provided for in this title, and if the notice to abate as provided in Section 201 provides that any subsequent need for boarding or securing the building within a twenty-four (24) month period after the initial boarding of the building may be summarily boarded or secured by the City, and the costs of such summary boarding or securing shall be assessed against the owner, and that a lien may be imposed on the property to secure such payment, all without further prior notice to the property owner or mortgage holder, then any subsequent need for boarding or securing within said twenty-four (24) month period may be done summarily without any further prior notice to the property owner or mortgage holder. Any summary abatement within said twenty-four (24) month period by the City automatically extends the period for summary abatements as outlined herein by the City an additional twenty-four (24) months. At the time of each summary boarding or securing, the City shall notify the property owner and mortgage holder of the boarding or securing and the costs thereof. The notice shall state that the property owner or mortgage holder may file an appeal within ten (10) business days after the date said notice was mailed by filing a Notice of Appeal in writing with the Enforcement Official and with the City Clerk. The appeal shall be in accordance with the procedure outlined in Section 205 of this title. Unless otherwise determined on appeal, the costs of such abatement shall be determined and collected, together with all remedial civil penalties imposed, as provided in Section 209 of this title; provided, however, that this section shall not apply if the records of the County Clerk show that the property was transferred after notice was given pursuant to Section 201 herein.

*(Ord. Nos. 17942, 21596; Ord. No. 22271, § 4, 7-15-2010; Ord. No. 22995, § 11, 12-12-2013)*

## Section 404. Condemnation of dilapidated buildings.

**A.** A dilapidated building within the municipal limits of the City of Tulsa, Oklahoma may be torn down and/or removed in accordance with the following procedures:

**1.** At least ten (10) business days' notice shall be given to the owner of the property before a hearing shall be held by the City to determine if the property is dilapidated and has become detrimental to the health, safety or welfare of the general public and the community, or if the property creates a fire hazard which is dangerous to other property. A copy of the notice shall be posted on the property to be affected. In addition, a copy of the notice shall be sent by mail to the property owner at the address shown by the current year's tax rolls in the office of the County Treasurer. Written notice shall also be mailed to any mortgage holder as shown by the records in the office of the County Clerk to the last-known address of the mortgage holder. At the time of mailing of notice to any property owner or

mortgage holder, the Enforcement Official shall obtain a receipt of mailing from the postal service, which receipt shall indicate the date of mailing and the name and address of the addressee. However, if neither the property owner nor mortgage holder can be located, notice may be given by posting a copy of the notice on the property or by publication as defined in 11 O.S.1991, § 1-102, and any and all amendments thereto. The notice may be published once not less than ten (10) business days prior to any hearing or action by the City pursuant to the provisions of this chapter.

**2.** A hearing shall be held by a Hearing Officer to determine if the property is dilapidated and has become detrimental to the health, safety or welfare of the general public and the community, or if the property creates a fire hazard which is dangerous to other property. The Hearing Officer shall be appointed and designated, in writing, by the Mayor.

**3.** Pursuant to a finding that the condition of the property constitutes a detriment or a hazard and that the property would be benefited by the removal of such conditions, the Hearing Officer may cause the dilapidated building to be torn down and removed. The Hearing Officer shall fix reasonable dates for the commencement and completion of the work. The City Clerk shall immediately file a notice of dilapidation and lien with the County Clerk describing the property, the findings of the City (Hearing Officer) at the hearing, and stating that the City claims a lien on the property for the destruction and removal costs and that such costs are the personal obligation of the property owner from and after the date of the filing of the notice. The agents of the City are granted the right of entry on the property for the performance of the necessary duties as a governmental function of the municipality if the property owner does not perform the work within the dates fixed by the Hearing Officer.

**4.** The Enforcement Official shall determine the actual cost of the dismantling and removal of dilapidated buildings and any other expenses that may be necessary in conjunction with the dismantling and removal of the buildings, including the cost of notice and mailing. The City Clerk shall forward a statement of the actual cost attributable to the dismantling and removal of the building and a demand for payment of such costs, by mail to the property owner. In addition, a copy of the statement shall be mailed to any mortgage holder at the last-known address for the mortgagee. At the time of mailing of the statement of costs to any property owner or mortgage holder, the City shall obtain a receipt of mailing from the postal service, which receipt shall indicate the date of mailing and the name and address of the addressee. If the City dismantles or removes any dilapidated buildings, the cost to the property owner shall not exceed the actual cost of the labor, maintenance and equipment required for the dismantling and removal of the dilapidated buildings and the cost of notice and mailing. If dismantling and removal of the dilapidated buildings is done on a private contract basis, the contract shall be awarded to the lowest and best bidder.

**5.** When payment is made to the City for costs incurred, the City Clerk shall file a release of lien, but if payment attributable to the actual cost of dismantling and removal of the buildings is not made within six (6) months from the date of the mailing of the statement to the owner of such property, the City Clerk shall forward

a certified statement of the amount of the cost to the County Treasurer of the county in which the property is located. The costs shall be levied on the property and collected by the County Treasurer as are other taxes authorized by law. Until finally paid, the costs and the interest thereon shall be the personal obligation of the property owner from and after the date of the notice of dilapidation and lien is filed with the County Clerk. In addition the cost and the interest thereon shall be a lien against the property from the date the notice of the lien is filed with the county clerk. The lien shall continue until the cost is fully paid. The lien shall be coequal with the lien of *ad valorem* taxes and all other taxes and special assessments and shall be prior and superior to all other titles and liens against the property as provided for in 11 O.S.Supp.1998, § 22-112, and any and all amendments thereto.

**B.** Any property owner may take an appeal to the City Council where it is alleged there is error in any order, requirement, decision or determination by the Hearing Officer. Such appeal shall be taken by filing written notice of appeal with the City Clerk within ten (10) business days after the administrative order, requirement, decision or determination has been rendered. The Council shall hold a hearing and may reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination appealed from and may make such order, requirement, decision or determination as ought to be made. An appeal stays all proceedings in furtherance of the action appealed from.

**C.** The provisions of this section shall not apply to any property zoned and used for agricultural purposes.

*(Ord. No. 19772; Ord. No. 22995, § 12, 12-12-2013)*

### Section 405. Criminal penalty.

Notwithstanding any other remedies provided for herein, any person, firm or corporation, partnership or other legal entity who fails to tear down and remove a dilapidated building or structure, or who fails to board or secure an unsecured structure within the time provided in order of abatement, or within the time provided by the City Council on appeal from an order of abatement in the event of such appeal, shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand, Two Hundred Dollars and No Cents ($1,200.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period of not more than one hundred eighty (180) days, or both fine and imprisonment. Each day of such violation shall constitute a separate offense.

*(Ord. No. 17942, 21596; Ord. No. 24197, § 5, 7-31-2019)*

# TITLE 24-A NEGLECTED VACANT BUILDINGS REGISTRY AND MAINTENANCE

**Chapter 1. Findings and Purpose**
**Chapter 2. Registration and Inspection of Neglected Vacant Building**

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## CHAPTER 1. FINDINGS AND PURPOSE

Section 100. Findings and Purpose.
Section 101. Definitions.

### Section 100. Findings and Purpose.

It is the finding of the City of Tulsa that neglected vacant buildings and residential structures are unsightly, unsafe, and have a negative effect on the community. If left unoccupied and unmonitored, these buildings and residential structures will fall into a state of disrepair, become a haven for criminal activity, and create a blight on the area. The purpose of this title is to protect the health, safety, morals and welfare of the citizens of Tulsa by establishing a program for identifying and registering neglected vacant buildings and residential structures, to set forth the responsibilities of owners of such properties, and to speed the rehabilitation or demolition of neglected vacant buildings and residential structures.

*(Ord. No. 22269, § 1, 7-15-2010)*

### Section 101. Definitions.

Unless otherwise expressly stated, the following terms will, for the purpose of this Ordinance, have the meanings indicated in this section:

**A.** **Emergency** means that the condition of a building, structure, or any part thereof is an imminent, immediate, and substantial danger to the health or safety of occupants, emergency responders, and/or the general public. Such conditions include but are not limited to fire hazards; failing or dilapidated buildings, structures, or any part thereof; loss of significant water, heat, or ventilation; or lack of sanitary conditions.

**B.** **Enforcement Officer** means any duly authorized City of Tulsa employee of the Working in Neighborhoods Department, the Tulsa Fire Department/Fire Marshal's Office, or the Tulsa Police Department.

**C.** **Owner** means the person, persons, or entity shown to be the owner or owners of record as listed by the current year's tax rolls of the Tulsa County Treasurer; those identified as the owner or owners on a vacant buildings and residential structures registration form; a mortgagee in possession, a mortgagor in possession, assignee of rents, receiver, executor, administrator, trustee, or lessee; or other person, firm, or corporation in control of the premises. Any such person or entity will have joint and several obligations for compliance with the provisions of this title.

**D.** **Secured by Other Than Normal Means** shall mean that condition when a building or residential structure is secured by means other than those used in the design and approved plans for the building.

**E.** **Unoccupied** means that condition when a building or residential structure or a portion thereof lacks the habitual presence of human beings who have a legal right to be on the premises, including buildings or residential structures ordered vacated by an Enforcement Officer. In determining whether a building or residential structure is unoccupied, the Enforcement Officer may consider these factors, among others:

**1.** Whether lawful residential or business activity has ceased;

**2.** The percentage of the overall square footage of the occupied to unoccupied space or the overall number of occupied and unoccupied units and their proximity to each other;

**3.** The building or residential structure is substantially devoid of contents or the fixtures or personal property located in the building or residential structure are of a minimal value;

**4.** The building or residential structure lacks utility services;

**5.** The building or residential structure is the subject of a foreclosure action;

**6.** Duration of vacancy; and/or

**7.** The presence or reoccurrence of code violations.

**F. Unsecured** means that condition when a building or residential structure or portion of a building or residential structure is open to entry by unauthorized persons without the use of tools or ladders.

**G. Neglected Vacant Building/Residential Structure** means a building, regardless of the use, the square footage or the presence of more than one (1) living unit, a portion of a building, residential structure, or a structure which is any one (1) or more of the following:

**1.** Unoccupied and unsecured;

**2.** Unoccupied and secured by other than normal means;

**3.** Unoccupied and an unsafe building or residential structure with suspected code violations as determined by an Enforcement Officer;

**4.** Unoccupied and an Enforcement Officer has issued an order to correct code violations.

**Exemptions:** For the purposes of this title, only the following properties are exempt:

**a.** All properties owned by the federal government, the state of Oklahoma, and all political subdivisions thereof.

**b.** All secondary residential structures, i.e., garage apartments, etc., located on or contiguous to property with an occupied principle residence, as long as they do not violate Title 24 TRO, are secured and meet all applicable code requirements, are exempt from both the Fifty Dollars ($50.00) annual registration fee and the Five Hundred Dollar ($500.00) annual vacant building/structures fee.

*(Ord. No. 22269, § 1, 7-15-2010)*

## CHAPTER 2. REGISTRATION AND INSPECTION OF NEGLECTED VACANT BUILDING

Section 200. Neglected vacant building and residential structure registration and plan.
Section 201. Neglected vacant building and residential structure registration fees.
Section 202. Insurance.
Section 203. Maintenance.
Section 204. Exemption.
Section 205. Inspections.
Section 206. Annual reports.
Section 207. Penalty.

### Section 200. Neglected vacant building and residential structure registration and plan.

**A.** The owner of a neglected vacant building or residential structure shall register with the Working in Neighborhoods/Neighborhood Inspector's Office no later than thirty (30) days after any building or residential structure becomes a "neglected vacant building/residential structure," as defined herein, or not later than thirty (30) days after the date of mailing by an Enforcement Officer of notice of the requirement to register. An Enforcement Officer may identify neglected vacant buildings or residential structures through his/her routine inspection process as well as through notification by residents, neighborhood associations, community groups, and others that a building or residential structure may be eligible for inclusion on the registry. Notice may be sent by first class mail to the owner at the address shown by the current year's tax rolls in the Tulsa County Treasurer's Office. At the time of mailing of the notice to the owner, the City shall obtain a receipt of mailing from the postal service, which receipt shall indicate the date of mailing and the name and address of the addressee. Notice will be deemed received by the owner or any other addressee, as the case may be, upon personal delivery or three (3) days after the date the notice is placed in United States mail with proper postage. The City of Tulsa may also post notices on the subject property. However, the City's failure to post notices will not constitute a defense to any enforcement proceeding or collection of fines.

**B.** If the owner fails to register the subject property within thirty (30) days following the date of mailing of the notice required in A above, the City may prepare and file in the office of the County Clerk of the county wherein the property is located a notice describing the property, the reason it is deemed a neglected vacant structure in accordance with this title and placing the owner and his or her successors on notice of the requirement to comply with this title.

**C.** The registration will be submitted on forms provided by the Working in Neighborhoods Department or Tulsa Fire Department's Fire Marshal's Office and will include the following information:

**1.** A description of the premises, i.e., square footage, number of stories, age of the building, and most recent use of the building or residential structure;

**2.** The names, addresses, and telephone numbers of the owner or owners. If the owner is a corporation, limited liability company, or partnership, the address for each director, manager, member, or partner, as the case may be. The address must include a street address; a post office box is not acceptable;

**3.** The names and addresses of all known lien holders and all other parties with an ownership interest in the building. Each address must include a street address; a post office box is not acceptable;

**4.** A name, address, and telephone number of an authorized, responsible natural person (not a corporation, partnership, or limited liability company) who is authorized to act for the owner and is a local resident who can be reached at all times during business and non-business hours in case of an emergency. The address must include a street address; a post office box is not acceptable;

**5.** A neglected vacant building or residential structure plan as described in Subsection 200.D hereof; and

**6.** Insurance verifications per Section 202 hereof.

**D.** The owner will submit a neglected vacant building/residential structure plan which must meet the approval of the Working in Neighborhoods/Neighborhood Inspector's Office. The Working in Neighborhoods/Neighborhood Inspector's Office may consult with the Tulsa Fire Department/Fire Marshal's Office, and/or the Development Services Department, as the case may be, to determine the appropriate plan. The plan, at a minimum, must include one (1) of the following three (3) proposals for the property:

**1.** If the building or residential structure is to be demolished, a demolition plan indicating the proposed time frame for demolition;

**2.** If the building or residential structure is to remain unoccupied, a plan for the securing of the building in accordance with standards approved by the Working in Neighborhoods/Neighborhood Inspectors, along with the procedure that will be used to maintain the property as code compliant, and a statement of the reason(s) why the building or residential structure should be left unoccupied; or

**3.** If the building or residential structure is to be returned to appropriate occupancy or use, rehabilitation plans for the building or residential structure. The rehabilitation plans will not exceed three hundred sixty-five (365) days from the date of submission and will include progress benchmarks at least every four (4) months, unless the Working in Neighborhoods/Neighborhood Inspector's Office grants an extension. Any repairs, improvements, or alterations to the property must comply with any applicable zoning, housing, historic preservation, and all applicable building codes. The building must be secured in accordance with the requirements of this title during the rehabilitation.

**4.** Should the owner elect option 2 (structure to remain unoccupied) or 3 (structure to be rehabilitated) then, in addition to the written plan the owner must (1) submit the insurance as described in Section 202 hereafter or (2) deposit with the City to be held in escrow, an amount of cash sufficient to cover the costs of demolition of the subject structure in the event the owner fails to perform as promised in the plan.

**E.** If the plan is approved, a written Notice prepared by the City's Working in Neighborhoods Department will be recorded in the office of the Tulsa County Clerk containing information regarding the registration of the subject property pursuant to this title and the plan selected by the owners.

**F.** If the plan is approved, the owner will comply with all applicable laws and codes. The owner will notify the Working in Neighborhoods/Neighborhood Inspector's Office of any

changes in the plan at least thirty (30) days prior to the change. If the plan or timetable for the vacant building/residential structure is revised in any way, the revisions must be in writing and must meet the approval of the Enforcement Officer.

**G.** The owner and any subsequent owner will keep the building secured and safe and the building and grounds properly maintained as provided hereafter.

**H.** Failure of the owner or any subsequent owner to maintain the building or residential structure and premises as required herein will be grounds for the City to do any or all of the following:

**1.** Cause the building or residential structure to comply with this title and bill the costs of same to the owner as provided hereafter in Section 203, Maintenance of Property;

**2.** Revoke the rehabilitation plans; and

**3.** Subject the owner to fees and penalties as provided herein.

**I.** The owner will notify the Working in Neighborhoods/Neighborhood Inspector's Office of any transfer of ownership a minimum of fifteen (15) days prior to the transfer. Before taking title, the new owner must agree in writing to comply with the approved plan and timetable submitted by the previous owner until any proposed changes are submitted in writing to and approved by the Working in Neighborhoods/Neighborhood Inspector's Office.

*(Ord. No. 22269, § 1, 7-15-2010)*

### Section 201. Neglected vacant building and residential structure registration fees.

**A.** The owner of a neglected vacant building or residential structure will pay a registration fee of Fifty Dollars ($50.00) per year for each such structure he/she owns. The Fifty Dollars ($50.00) registration fee is due and payable upon registration no later than thirty (30) days after any building or structure becomes a "neglected vacant building or residential structure," as defined herein, or no later than thirty (30) days after being notified by an Enforcement Officer of the requirement to register.

**B.** If the building or structure is to remain unoccupied pursuant to paragraph 200.D.2, above, then the owner will also pay an annual neglected vacant building or residential structure fee of Five Hundred Dollars ($500.00) for each such building or structure that has received a notice of code violation within the previous twenty-four (24) months until the building is properly demolished or rehabilitated for lawful occupancy. The Five Hundred Dollar ($500.00) annual neglected vacant building or residential structure fee is due and payable together with the Fifty Dollars ($50.00) registration fee and on each anniversary thereafter until the building or residential structure is demolished or rehabilitated for lawful occupancy.

**C.** If the building or structure is to be returned to a permitted use pursuant to paragraph 200.D.3, above, the rehabilitation plan will not exceed three hundred sixty-five (365) days and will include progress benchmarks at least every four (4) months, unless the Enforcement Officer grants an extension. If the rehabilitation has not been completed in accordance with the plan, then the owner will pay an annual neglected vacant building or residential structure fee of Five Hundred Dollars ($500.00) until the building or residential structure is properly demolished or rehabilitated for lawful

occupancy. The Five Hundred Dollar ($500.00) annual neglected vacant building or residential fee is payable either on each anniversary of the payment of the Fifty Dollars ($50.00) registration fee in Subsection A, above, or no later than fifteen (15) days after being notified by an Enforcement Officer that the owner has failed to meet a required benchmark, whichever date is earlier, and on each anniversary thereafter until the building or residential structure is demolished or rehabilitated for lawful occupancy.

**D.** If the owner of a neglected vacant building or residential structure fails to register and pay the fees in a timely manner, then the owner will be subject to the penalty set forth in Section 207.

**E.** All required fees and other charges noted herein shall be paid by the owner prior to any transfer of an ownership interest in any neglected vacant building or residential structure. The owner shall give a purchaser written notice that the building or residential structure in question is a neglected vacant building or residential structure required to be registered under this section.

**F.** The neglected vacant building or residential structure registration fees and annual vacant building or residential structure fees as set forth herein are to be delivered, by mail or in person, to the Finance/Treasury Office, City Hall, 175 E. 2nd Street, Tulsa, Oklahoma 74103. A late fee of one and one-half (1½) percent per month or any part thereof will be assessed on any invoice which is unpaid after thirty (30) days from the date of the demand for payment of an invoice. A Thirty-Five Dollar ($35.00) processing fee will be charged for each check returned by the bank due to insufficient funds or other reason. A replacement payment must be made in cash, money order, or bank or certified check and must include the Thirty-Five Dollar ($35.00) fee and any applicable late fees.

*(Ord. No. 22269, § 1, 7-15-2010)*

**Section 202. Insurance.**

**A.** As required in Section 200(D)(4), the owner shall procure and keep in full force and effect at all times during the registration term, commercial general liability insurance coverage (including, but not limited to, premises/operations and personal injury) or like coverage, protecting the City of Tulsa against any and all claims for damages to persons or property as a result of, or arising out of, the registrant's operation, maintenance, or use of the vacant building, with minimum combined bodily injury (including death) and property damage limits of not less than Three Hundred Thousand Dollars ($300,000.00).

**B.** The insurance policy must be written by an insurance company authorized to do business in Oklahoma, acceptable to the City and issued in a standard form approved by the Oklahoma Department of Insurance. All provisions of the policy must be acceptable to the City and must name the City and its officers and employees as additional insureds and provide for thirty (30) days' prior written notice to the City of cancellation, non-renewal, or material change to the insurance policy.

**C.** An owner shall provide to the Working in Neighborhoods Department an updated certificate of insurance for the neglected vacant building or structure every six (6) months that the building is required to be registered under this title.

*(Ord. No. 22269, § 1, 7-15-2010)*

## Section 203. Maintenance.

**A.** The owner of any neglected vacant building or residential structure shall take such steps and perform such acts as may be required of him or her from time to time to ensure that the building and its grounds remain safe and secure and do not present a hazard to the adjoining property or the public. Owners will be responsible for maintaining their buildings and structures so that they comply with all applicable building codes and do not deteriorate into nuisances as defined in Title 24 TRO.

**B.** The owner will protect and maintain the exterior of the building or residential structure as follows:

**1.** Exterior walls, including foundations, will be maintained so that water does not penetrate into basements, cellars, or other interior areas. All exterior walls and foundations must be free of holes and crevices;

**2.** Exterior doors, windows, skylights, and similar openings will be maintained weather tight;

**3.** Exterior stairs, porches, entrance platforms, fire escapes, and the railings thereon shall be maintained in a safe and sound condition;

**4.** Roofs shall be maintained in weather tight condition;

**5.** Exterior surfaces shall be maintained in good condition. Surfaces not inherently resistant to deterioration shall be treated with a protective coating of paint or other suitable preservative;

**6.** The coverings for windows and doors with glass may not consist of any substance sprayed onto the glass doors or windows. All enclosures shall be properly fitted and be of such material and surface that they are neither unsightly nor will materially detract from the general appearance of the building or the neighborhood and, when possible, secured by normal means;

**7.** The coverings for broken doors and cracked or broken windows may consist of replacement glass, plexiglass, boards, plywood, or similar materials finished and maintained in compliance with applicable building codes, Title 24 TRO, and Title 55 TRO. The materials will be designed and of such color so as to blend in with the finish of the building;

**8.** The premises shall be kept free of insects and vermin and will be treated if necessary;

**9.** Any excavation, swimming pools, or other attractive nuisance must be filled in or properly closed in compliance with applicable building codes, Title 24 TRO, and Title 55 TRO; and

**10.** All combustible items must be removed and swept clean from the premises within the first thirty (30) days of registration.

**C.** In addition to the standards prescribed above, vacant commercial and retail buildings shall comply with the following standards:

**1.** The coverings for broken doors and cracked or broken windows may consist of replacement glass, plexiglass, boards, plywood, or similar materials finished and maintained in compliance with applicable codes, Title 24 TRO, and Title 55 TRO. The material shall be designed and of such color so as to blend in with the finish of the buildings.

**2.** All exterior signs, awnings, and lighting systems, if not removed, shall be maintained in a non-deteriorated and safe condition.

**D.** The owner will protect and maintain the interior of the building as follows:

**1.** Structural members will be maintained to resist and prevent deterioration;

**2.** Unheated attics, spaces below flat roofs, and crawl spaces will be ventilated to minimize deterioration; and

**3.** Ceilings, walls, floors, and stairways will be maintained in a non-deteriorated and safe condition.

**E.** The owner will maintain the premises as follows:

**1.** The owner will not permit garbage and refuse to accumulate;

**2.** The owner will maintain yards and vacant lots trimmed and mowed, with the height of grass and weeds being no more than twelve (12) inches, and clean and free of physical hazards, and rodent harborage and infestation as required by Title 24 TRO;

**3.** Buildings and structures will be maintained free of insects, vermin, and rodent harborage and infestation;

**4.** Refrigerators and similar equipment with locking mechanisms will not be discarded, abandoned, or stored at the premises;

**5.** Junked vehicles as defined in Title 24 TRO and other illegal equipment or materials will not be stored at the premises;

**6.** Chimneys, smokestacks, flues, gas vents, smoke pipes, and connectors will be maintained structurally safe and smoke tight;

**7.** If the building or residential structure is to be demolished or remain vacant, then, within ten (10) days of registering the building/residential structure as a vacant building or residential structure, all fuel gas, water, and utilities must be disconnected at the mains and the water pipes drained. If the building or residential structure is going to be rehabilitated, then the building or residential structure must be heated to avoid freezing pipes, fuel gas pipe systems must be maintained gastight, safe, and in working condition, and water pipes must be maintained to avoid leaks and/or breakage;

**8.** Fuel tanks will be maintained so as not to be a hazard or will be disconnected in a manner consistent with the International Fire Code;

**9.** The domestic water supply system of the building will be connected to an approved source, will not be subject to contamination, and will not be connected to unsafe water supplies, or the system will be disconnected at the main and completely drained;

**10.** Storm water drainage systems will be maintained so as to function properly and be kept free from obstructions, leaks, and defects. Sewage systems will be similarly maintained or will be sealed so as to prevent accumulation of sewage gases in buildings;

**11.** Electrical fixings, devices, wiring, and systems will be maintained in safe working condition in a manner which will avoid a potential source of ignition or shock or service will be discontinued; and

**12.** Elevators, dumbwaiters, and escalators will be maintained or taken out of service in accordance with applicable provisions of the building code.

**F.** Whenever the owner of a neglected vacant building or residential structure fails to comply with a notice from an Enforcement Officer to take steps and perform acts as are required of him or her to ensure that a building or residential structure and its adjoining yards remain safe and secure and do not present a hazard to adjoining property, the City may, pursuant to an emergency, enter into the building or residential structure and the property and take steps and perform acts to render the building or residential structure and its adjoining yards safe, secure, and free from hazards to adjoining property and the public. These acts will include but not be limited to removal of dangerous conditions; properly replacing or boarding up windows and doors; shutting off utilities; capping plumbing to prevent leakage of water or sewer gas; or removing flammable or otherwise hazardous material or debris; and mowing. A bill for the expenses incurred above will be presented to the owners of the building or residential structure consistent with the provisions outlined in this title.

*(Ord. No. 22269, § 1, 7-15-2010)*

**Section 204. Exemption.**

A building which has suffered fire damage or damage caused by extreme weather conditions will be exempt from the registration requirement for a period of ninety (90) days after the date of the fire or extreme weather event, if the property owner submits a request for exemption in writing to the Working in Neighborhoods/Neighborhood Inspector's Office. This request must include the following information supplied by the owner:

**1.** A description of the premises;

**2.** The reason for an exemption;

**3.** The names and addresses of the owner or owners. A post office box is not acceptable; and

**4.** A statement of intent to repair and reoccupy the building in an expedient manner, or the intent to demolish the building.

*(Ord. No. 22269, § 1, 7-15-2010)*

**Section 205. Inspections.**

By registering a neglected vacant building, an owner may consent to an Enforcement Officer inspecting the premises for the purpose of enforcing and assuring compliance with the provisions of this title. Upon the request of the Enforcement Officer, an owner may provide access to all interior portions of a vacant building in order to permit a compete inspection. Nothing contained herein, however, will diminish the owner's right to insist upon the procurement of a search warrant from a court of competent jurisdiction by the Enforcement Officer or his or her designee in order to enable such inspection, and the Enforcement Officer will be required to obtain a search warrant whenever an owner refuses to permit a warrantless inspection of the premises after having been advised of his or her constitutional right to refuse entry without a warrant being obtained. In the case of an emergency, as defined herein, a warrantless entry/search is permitted.

*(Ord. No. 22269, § 1, 7-15-2010)*

## Section 206. Annual reports.

Once a year, the Working in Neighborhoods Department will send to the Mayor and to the City Council a list of all registered neglected vacant buildings and residential structures in the City, as well as a list of all previously registered neglected vacant buildings and residential structures which are no longer subject to the provisions of this title.

*(Ord. No. 22269, § 1, 7-15-2010)*

## Section 207. Penalty.

Any person violating any provisions of this title, including but not limited to failure to register, or providing false information to the Enforcement Officer, will be subject to the following penalties:

**A.** Such person will be subject to a fine of up to, but not more than, One Thousand Dollars ($1,000.00) or imprisonment not exceeding six (6) months, or both such fine and imprisonment.

**B.** The term "person" as used in this section will include the owner, occupant, mortgagee or vendee in possession, assignee of rents, receiver, executor, administrator, trustee, lessee, agent, or any other person, firm, or corporation directly or indirectly in control of the building or residential structure or part thereof.

**C.** Each day of violation will be deemed to constitute a separate offense.

*(Ord. No. 22269, § 1, 7-15-2010)*

# TITLE 25 OFFICERS AND EMPLOYEES

**Chapter 1. Workers' Compensation Benefits**
**Chapter 2. Employment Conditions**
**Chapter 3. Expense Allowances**
**Chapter 4. Municipal Labor-Management Relations**
**Chapter 5. Employee Rights**

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## CHAPTER 1. WORKERS' COMPENSATION BENEFITS

Section 100. Workers' Compensation Benefits.
Section 101. Workers' Compensation Policy.

### Section 100. Workers' Compensation Benefits.

**A. City to Carry Own Risk.** The City of Tulsa shall assume and become its own risk carrier of and for workers' compensation benefits, as provided by the Workers' Compensation Act of Oklahoma, for all City employees or covered persons; the Legal Department and the Mayor of the City of Tulsa are hereby authorized and directed to make application for permission to carry the City's own risk and to secure certificate of authorization from the state Workers' Compensation Court.

**B. Appropriation Mandatory.** It is hereby made mandatory on the part of the Council of the City of Tulsa to appropriate such funds each fiscal year as may be necessary to take care of all workers' compensation benefits due or awarded under the laws of Oklahoma and for the necessary expenses incurred to administer same.

**C. Compensation Claims Attorney Duties.** The City Attorney shall be responsible for providing, supervising and managing all legal services necessary in order to represent the City in compensation claims. Any attorney representing the City in compensation claims shall have expertise in handling workers' compensation claims in the state of Oklahoma. The duties of any attorney providing these legal services, under the guidance and direction of the City Attorney, shall be:

**1.** To represent and defend the interests of the City of Tulsa before the Workers' Compensation Court of the state of Oklahoma;

**2.** To provide legal advice and counsel; and

**3.** To recommend to the Mayor appropriate action to be taken upon settlements made or awards entered against the City arising from workers' compensation proceedings or claims.

**D. Claims Section Created - Duties.** There is hereby created within the Personnel Department a Claims Division. The duties of this division, which may be performed by City personnel, outside contractors or a combination of both at the discretion of the Mayor, shall be:

**1.** To review all reports of injury to ascertain whether the employee was injured in the course of his employment and whether the injury arose out of his employment;

**2.** To insure that medical benefits are made available to all injured employees who are entitled to receive them as a workers' compensation entitlement;

**3.** To pay or cause to be paid, as appropriate, temporary total disability compensation payments to those employees who are unable to work by reason of a work-related accident or occupational disease when such disability is supported by adequate medical evidence or for which the City becomes legally obligated;

**4.** To request termination of temporary total disability compensation payments when any employee is no longer entitled by law to receive such payments;

**5.** To review medical evidence and other appropriate sources of information relevant to determining the nature, extent and severity of any injury for the purpose of

evaluating the City's liability and the existence of any permanent disability, whether partial or total, and thereupon to negotiate for settlement of those disability claims for which the City has legal responsibility;

**6.** To make the initial determinations regarding the appropriateness and extent of injury leave payments made pursuant to the City of Tulsa's policy on injury leave;

**7.** To pay or cause to be paid, as appropriate, all medical bills, investigative costs, expert witness fees, rehabilitative costs, travel, per diem and all other expenses relating to the administration and defense of workers' compensation costs; and

**8.** To keep records documenting the payment of benefits, including identification of expenditures made, amounts paid and the type and character of same.

**E. Workers' Compensation Imprest Account.** The Personnel Department is authorized to open a workers' compensation imprest account or accounts out of which the medical expenses, rehabilitative costs, special investigation costs, temporary disability compensation payments, expert witness fees, travel and per diem and all other incidental expenses relating to the administration and defense of workers' compensation claims shall be paid when due and owing. Such account or accounts shall be established as separate checking account(s) in a bank to be designated by the Treasurer of the City of Tulsa and shall be subject to audits, both announced and unannounced, by the City Auditor or other properly authorized person. Such account or accounts shall be maintained by charging items paid out to the appropriate expense or disability appropriation and by the issuance of a warrant to reimburse such account or accounts.

**F. Specific Excess Workers' Compensation Liability Insurance Authorized.** The Mayor is hereby authorized to procure and purchase a specific excess workers' compensation insurance policy with respect to workers' compensation claims and/or employer's liability claims, providing for the City to pay up to Two Hundred Fifty Thousand Dollars ($250,000.00) in any one (1) case and the balance up to a limit of Three Million Dollars ($3,000,000.00) to be paid by such insurance carrier contracting for such policy, and further providing that this policy will be applicable to any one (1) accidental occurrence and likewise applicable to all claims arising within one (1) policy year of twelve (12) months, with the premium for such specific excess compensation policy to be paid out of the aforesaid workers' compensation appropriation.

*(Ord. Nos. 16435, 21783)*

## Section 101. Workers' Compensation Policy.

It shall be the policy of the City of Tulsa to:

**A.** Align the compensation paid to injured employees with the compensation required by state law, including the amount of Temporary Total Disability or Temporary Partial Disability compensation paid, the length of time allowed for any Temporary Total Disability or Temporary Partial Disability payments, and modify other work-injury related requirements to reflect state workers' compensation law;

**B.** In cases of job-related injuries, the City of Tulsa shall establish a policy allowing the employee excused time from work assignments while they are recovering from their injuries, as required by state law; and

**C.** The City of Tulsa shall implement an effective light duty program, measured by when it brings the employee back to the workplace in any capacity allowed by their medical

care provider, which reduces the number of days an employee is absent from their normal work assignment by providing a positive environment which assists the employee in returning to their regular duty position as soon as possible.

**D.** No Repeal of Collective Bargaining Agreements. Nothing in this Section shall be applied to repeal the provisions of the collective bargaining agreement between the City of Tulsa and the Fraternal Order of Police, effective from July 1, 2007, through June 30, 2008; or between the City of Tulsa and the International Association of Firefighters, Local 176, effective from July 1, 2007, through June 30, 2008; or between the City of Tulsa and the American Federation of State County and Municipal Employees, Local 1180, effective from July 1, 2008 until June 30, 2009.

*(Ord. No. 21784)*

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## CHAPTER 2. EMPLOYMENT CONDITIONS

Section 200. Appointment of officers and employees.
Section 201. Conditions of employment.
Section 202. Violation.
Section 203. Disciplinary action against members of the Fire Department.
Section 204. Disciplinary action against officers and employees other than members of the Fire Department.

### Section 200. Appointment of officers and employees.

The Mayor shall appoint all officers and employees of the City except the employees of the City Auditor, who shall be appointed by the Auditor, and employees of the Council, who shall be appointed by the Council, all subject to the provisions of the Charter of the City of Tulsa.

### Section 201. Conditions of employment.

The policies and procedures governing employment in the classified service of the City of Tulsa shall be in compliance with Article X of the Charter of the City of Tulsa.

### Section 202. Violation.

Any officer or any department head who employs any person or persons in violation of the provisions of the Personnel Policies and Procedures Manual of the Personnel Department or of this chapter shall be liable on his official bond for the compensation earned or paid such person or persons.

*(Ord. No. 4034)*

### Section 203. Disciplinary action against members of the Fire Department.

**A. Procedures.** The procedures for the taking of disciplinary action against members of the Fire Department shall be the procedures set forth in Article XI of the Charter of the City of Tulsa, in the Rules and Regulations of the Fire Department, and in collective bargaining agreements.

**B. Election of a Trial before the Council.**

**1.** Should any member of the Fire Department against whom a charge is made elect a trial before the Council, that person shall, within ten (10) days from the date of service of the charges, file with the City Clerk an election for an open trial before the Council.

**2.** The Council shall, at its first available meeting after such an election for a trial, set the time and place of the trial, which time shall be no less than three (3) nor more than ten (10) days following the election. The person complained against shall be served with a written notice of the time and place of the trial by the City Clerk.

**3.** The person charged shall have the right to have witnesses called on his behalf by delivering a list of the witnesses to the City Clerk.

**4.** The City Attorney shall prosecute such charges and the Council shall designate a judge of a Tulsa Court or some disinterested member of the Tulsa Bar to act as legal adviser to the Council. The legal adviser shall rule upon the question of admissibility of evidence, competency of witnesses and any other questions of law

where his ruling is requested, and such rulings of law shall be adopted by the Council. The hearing shall be conducted in accordance with the Oklahoma Rules of Evidence. No person shall be found guilty of a charge except by a preponderance of the evidence.

**5.** At the conclusion of the trial before the Council, the Council shall issue a decision with findings of fact and conclusions of law.

## Section 204. Disciplinary action against officers and employees other than members of the Fire Department.

The procedure for the taking of disciplinary action against officers and employees of the City other than members of the Fire Department shall be the procedures set forth in Article X of the Charter of the City of Tulsa, the Personnel Policies and Procedures Manual promulgated by the Civil Service Commission of the City, and such collective bargaining agreements which are applicable to such employee.

## CHAPTER 3. EXPENSE ALLOWANCES

Section 300. Expense claims.
Section 301. Travel authorization and travel allowance.
Section 302. City cars—Expenses.
Section 303. Private cars—Expenses.

### Section 300. Expense claims.

Any officer or employee of the City of Tulsa who shall file an expense claim against the City of Tulsa must file a complete itemized statement thereof, with proper documentation for any money expended by him or her; and any officer or employee who files or allows any claim against any fund, unless the same complies with the provisions of this chapter, shall be liable on his or her official bond in double the amount of such claim or claims so filed or allowed.

*(Ord. Nos. 6720, 20391)*

### Section 301. Travel authorization and travel allowance.

**A.** For the purposes of this section, "Mayor" shall mean the Mayor of the City of Tulsa, or the Mayor's designee.

**B. Travel Authorization.**

**1.** A request for travel authorization shall be submitted to the Mayor two (2) weeks in advance of the date of departure, unless this time cannot be met because of unforeseen circumstances. The Mayor shall receive and expedite the request to meet the other provisions and conditions of this chapter. In all instances, approval of travel authorization requests shall be obtained prior to reimbursement for travel expenditures.

**2.** The Mayor shall review the request for travel authorization to ascertain the availability of funds.

**C. Travel Allowance.** The claims of officers and employees of the City for reimbursement of allowable travel expenses incurred while traveling on official business of the City of Tulsa shall be submitted by verified claim or statement, shall be computed in the following manner, and shall not exceed the guidelines stated herein.

**1.** Lodging bills incurred shall not exceed the single room rate when the lodging bill covers more than the expense of the individual officer or employee.

**2.** Transportation by public conveyance shall be reimbursed at the actual amount expended for such transportation, including tip. Commercial airfare cost is restricted to coach class, unless favorable scheduling or routing requires another class. When City-owned vehicles are used, only parking, toll fees and gasoline expenses will be reimbursed.

**3.** Travel by private means of transportation shall be reimbursed at the same rate per mile established by the Internal Revenue Service as the standard mileage rate for use by taxpayers, plus parking and toll fees; however, this reimbursement shall not exceed the cost of coach airfare, if available. The mileage guide on file in the Accounts Payable Section of the City Finance Department shall be used to determine reimbursable mileage expenses. In instances where more than one (1) officer or employee is transported in the same private means of transportation,

only one (1) mileage reimbursement will be allowed. Per diem and lodging expenses shall not exceed the amount which would have been incurred for those expenses had the officer or employee traveled round trip by commercial airline, where commercial flights are available to the proposed destination.

**4.** Trip duration and associated expenses will be limited to a maximum of one (1) day before and one (1) day after a scheduled event and only as necessitated by reasonable scheduling considerations or unless the additional stay results in cost savings for the City and is approved on the travel expense voucher.

**5.** A per diem allowance will be provided for meals and incidental expenses (M&IE), including tips, pursuant to Internal Revenue Service guidelines. Travel of insufficient duration to qualify for per diem shall be reimbursed only for actual reasonable expenditures for meals, tips, taxicab fare and other miscellaneous items of travel expense. Reimbursement claims for such expenses shall be accompanied by proper documentation. Incidental expenses covered by per diem shall not include the cost of telephone calls which may be reimbursed in accordance with current Accounts Payable Policies and Procedures.

**6.** When an officer or employee is required to travel on official business away from the City, that officer or employee may receive a travel advance to cover reasonable and expected expenses. In determining whether to issue a travel advance, expenses considered shall not include the cost of air travel or registration fee. A request for travel advance shall be included on the travel authorization form which is to be submitted at least two (2) weeks prior to the day of departure from the City. When a travel advance request is approved pursuant to the provisions of this chapter, a travel advance authorization shall be presented to the Mayor for issuance of a check.

**7.** Within two (2) weeks of completion of any trip, a completed travel expense voucher, certifying final expenses, along with all documentation required in accordance with travel policies and procedures established by the Mayor, shall be filed with the Accounts Payable Section of the Finance Department. Should the total of the authorized expenses be less than any travel advance, the employee shall forthwith reimburse the City the difference. Where the total of the authorized travel expense is in excess of any travel advance, claims for such difference shall be filed pursuant to the provisions of this section.

**8.** Travel policies and procedures for meeting the requirements of this section will be established and maintained by the Mayor and kept on file in the Accounts Payable Section of the Finance Department. The Mayor, based on appropriate documentation indicating a scheduling necessity or cost reduction as a result of an exception, can authorize exceptions to any written policy or procedure.

**9.** Specific approval by the Mayor or the Mayor's designee must be obtained before reimbursement will be made for entertainment expenses.

**10.** All claims for travel expenses while on official business are subject to review by the Mayor for payment.

*(Ord. Nos. 13696, 14534, 14581, 16280, 17390, 19115, 20391)*

## Section 302. City cars—Expenses.

When any officer or employee of the City shall use a City-owned automobile for transportation, the license number and make of the car so used shall be given and no claim for other fare shall be made against the City.

*(Ord. No. 4392)*

## Section 303. Private cars—Expenses.

No claim for gas, oil or repairs shall be allowed to any officer or employee of the City upon a privately-owned automobile used on City business, unless specifically authorized in advance.

*(Ord. No. 4392)*

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## CHAPTER 4. MUNICIPAL LABOR-MANAGEMENT RELATIONS

Section 400. Findings and purpose.
Section 401. Definitions.
Section 402. Continuation of existing collective bargaining authorized.
Section 403. Collective bargaining rights extended.
Section 404. Retention of municipal management authority.

### Section 400. Findings and purpose.

**A. Findings.**

**1.** Experiences in both private and public employment indicate that the extension of the right of employees to organize, bargain collectively and participate through labor organizations of their own choosing in decisions which affect them safeguards the public interest, contributes to the effective conduct of public business and facilitates and encourages the amicable settlement of disputes between employees and employers on issues involving conditions of employment.

**2.** Public interests demand the highest standards of employee performance and the continued development and implementation of modern and progressive work practices, to facilitate and improve employee performance and the efficient accomplishment of the operation and administration of Tulsa's municipal government.

**3.** Labor organizations and the extension of certain rights of collective bargaining to specified classified employees in the civil service are in the public interest and should be granted to the extent provided in this chapter.

**B. Purpose.** It is the purpose of this chapter to prescribe certain rights and obligations of classified employees of the City of Tulsa, consistent with the obligations of the Mayor of the City of Tulsa. Accordingly, the provisions of this chapter are designed to meet the special needs and requirements of the City of Tulsa and shall be interpreted in a manner consistent with the requirements of an effective and efficient government.

*(Ord. No. 17193)*

### Section 401. Definitions.

The following words and phrases used in this chapter shall have the meanings respectively ascribed herein, except where the context clearly indicates otherwise:

**A. Collective Bargaining** shall mean the performance of the mutual obligation of the representative of the City of Tulsa and the exclusive representative of classified employees in an appropriate governmental unit of the City to meet at reasonable times and confer in a good faith effort to reach agreement with respect to the conditions of employment affecting such employees and to execute, if requested by either party, a written document incorporating any collective bargaining agreement reached, except that such obligation shall not compel either party to agree to any proposal or to make any concession.

**B. Confidential Employee** shall mean any employee who acts in a confidential capacity with respect to an individual who formulates or effectuates personnel or labor-management policies or decisions, or who is responsible for, maintains or has access to confidential personnel files and records and who is designated as such by the Mayor.

**C. Employee** shall mean all regular and part-time permanent, nonsupervisory employees within the classified civil service of the City of Tulsa, whose job classification and pay grade is identified by the Artistic and Creative (AC), Airport Safety Officer (AO), Administrative and Technical (AT), Emergency Communications (EC), Information Systems (IS), Information Technical (IT), Labor/Trades (LT), and Office/Technical (OT) designator, but shall not include:

**1.** Confidential and temporary employees;

**2.** Exempt (EX), Police Sworn (PD), Fire Sworn (FD), City Attorney (CA), Unclassified (UC), Seasonal (SE), and School Crossing Escort (SX) employees; or

**3.** Employees who participate in any strike, work stoppage or work slow-down, of any kind whatsoever against the City of Tulsa.

**D. Labor Organization** shall mean any lawful organization, association, federation or council recognized by the City of Tulsa as the exclusive representative of employees in an appropriate governmental unit, composed in whole or in part of classified employees, in which classified employees participate, and which has a purpose dealing with the City of Tulsa concerning conditions of employment, but shall not include:

**1.** Any organization which, by its constitution, bylaws, tacit agreement among its members, or otherwise, denies membership because of race, color, creed, national origin, sex, age, political affiliation, marital status or handicapping condition; or

**2.** Any organization which participates in the conduct of a strike, work stoppage, or work slow-down, of any kind whatsoever, against the City of Tulsa or imposes a duty or obligation to conduct, assist or participate in such a strike, work stoppage or work slow down.

**E. Mayor** shall mean the duly elected Mayor of the City of Tulsa or his authorized representative, whose duty it is to promulgate rules and regulations governing classified employees in the Civil Service.

**F. Strike** shall mean the concerted failure to report for duty, the willful absence from one's position, unauthorized holidays, sickness unsubstantiated by a physician's statement, the stoppage of work, or the abstinence, in whole or in part, from the full, faithful and proper performance of the duties of employment for the purpose of inducing, influencing or coercing a change in the conditions, compensation, rights, privileges or obligations of employment. Nothing contained in this definition or the application thereof shall be construed to limit, impair or affect the right of any employee to the expression or communication of a view, grievance, complaint or opinion on any matter related to conditions of employment or their betterment, so long as the same does not interfere with the full, faithful and proper performance of the duties of employment.

*(Ord. Nos. 17193, 21048; Ord. No. 22361, § 1, 1-13-2011)*

## Section 402. Continuation of existing collective bargaining authorized.

Nothing contained in this chapter shall preclude the renewal or continued recognition of any labor organization or any lawful agreement between the City of Tulsa and any labor organizations recognized prior to the effective date of this Municipal Labor-Management Relations Chapter.

*(Ord. No. 17193)*

## Section 403. Collective bargaining rights extended.

**A.** The City of Tulsa hereby grants to each employee the right to form, join or assist any labor organization, or to refrain from any such activity, freely and without fear of penalty or reprisal; and each employee shall be protected in the exercise of such right. Except as otherwise provided by law or under this chapter, such rights shall include the right:

**1.** To act for a labor organization in the capacity of a representative and the right, in that capacity, to present the views of the labor organization to appointed or elected officials, the heads of departments or agencies and other appropriate authorities of the City of Tulsa; and

**2.** To engage in collective bargaining with respect to conditions of employment through representatives chosen in a manner provided for in rules and regulations promulgated by the Mayor.

**B.** Those collective bargaining rights granted by this chapter shall not include the right to strike nor the right to engage in any work stoppage or slow down. Participation in any strike, work stoppage or work slow down shall be unlawful and grounds for removal from employment in the classified service.

**C.** With the extension of collective bargaining rights provided in this chapter, it is hereafter the responsibility of the Mayor to promulgate rules and regulations further prescribing those policies and procedures to be followed in the implementation of collective bargaining within Tulsa's municipal government.

*(Ord. No. 17193)*

## Section 404. Retention of municipal management authority.

All rights, powers and authority of the City of Tulsa regarding classified employees shall be governed by the Charter of the City of Tulsa.

*(Ord. No. 17193)*

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## CHAPTER 5. EMPLOYEE RIGHTS

Section 500. Communication with City Council on certain matters.

### Section 500. Communication with City Council on certain matters.

Pursuant to the authority given to the Council by Section 17, Article II of the City Charter as amended in 1989, employees and officers of the City of Tulsa may initiate communication with any Council member or members about the efficiency, economy and effectiveness of administrative practices, methods, systems and controls of the City of Tulsa.

*(Ord. No. 17841)*

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# TITLE 26 PARKS, MALL AND PLAZA

**Chapter 1. Parks**
**Chapter 2. Mall and Plaza**
**Chapter 3. Detention Facilities and Recreational Areas Supervised by Public Works**

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## CHAPTER 1. PARKS

Section 100. Definitions.
Section 101. Limitation of activities.
Section 102. Rules and regulations.
Section 103. Prohibited acts.
Section 104. Curfew.
Section 105. Animals.
Section 106. Acts requiring permits.
Section 107. Permits.
Section 108. Museums.
Section 109. Golf courses.
Section 110. Tulsa Zoological Park.
Section 111. Oxley Nature Center and Redbud Valley Nature Preserve.
Section 112. Arkansas River Lakes.
Section 113. Penalty.

### Section 100. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings given herein:

**A.** **Park areas and facilities** shall mean any park, playground, recreation area, sports field, garden, land, building, museum or other structure designated by legal instrument, formal acceptance or custom under the jurisdiction of the Park and Recreation Board of the City of Tulsa, the Board of Trustees of the Thomas Gilcrease Institute of American History and Art or the River Parks Authority.

**B.** **Board** shall mean the Park and Recreation Board of the City of Tulsa, the Board of Trustees of the River Parks Authority or the Board of Trustees of the Thomas Gilcrease Institute of American History and Art.

**C.** **Director** shall mean the Director of the Park and Recreation Department of the City of Tulsa, the Director of the Thomas Gilcrease Institute of American History and Art or the Executive Director of the River Parks Authority, and any of their authorized representatives.

**D.** **Animal** shall mean any mammal, bird, reptile, amphibian, fish and invertebrate.

**E.** **Council** shall mean the governing body of the City of Tulsa.

**F.** **Permit** shall mean any written license issued by or under the authority of any Board as defined herein.

**G.** **Employee** shall mean any person employed by any Board as defined herein or by the City of Tulsa.

**H.** **Person** shall mean any natural person, corporation, company, association, firm or partnership.

### Section 101. Limitation of activities.

The appropriate Board, or Director when authorized by the Board, may designate particular locations within park areas and facilities for specific activities and may limit such activities by issuance of permits. The Board may establish operating hours during

which park areas and facilities shall be open to the public by the enactment of specific rules and regulations, provided that such hours shall be posted at the entrances of the affected park area and facility.

### Section 102. Rules and regulations.

Subject to the approval of the Council the appropriate Board shall adopt such rules, regulations and policies as it deems best for the safety and convenience of the public and for the operation of its park areas and facilities. When such rules and regulations have been adopted and approved, they shall be filed in the Office of the City Clerk. Any person found guilty of violating such rules and regulations shall be subject to the penalties set forth in this chapter.

### Section 103. Prohibited acts.

**A.** No person shall mark, deface, disfigure, tamper with or displace or remove any buildings, bridges, tables, benches, fireplaces, decorative structures, railings, pavings or paving materials, water lines or other public utilities or parts or appurtenances thereof, signs, notices or place cards, whether temporary or permanent, monuments, stakes, posts or other boundary markers, other structures or equipment, facilities or park property or appurtenances whatsoever, either real or personal.

**B.** No person shall damage, cut, carve, mark, transplant or remove any plant or injure the bark; pick flowers or seed of any tree or plant; dig in or otherwise disturb grass areas; or in any other way injure the natural beauty or usefulness of any area.

**C.** No person shall cut any tree, dead or alive, whether erect or felled, or collect leaves, bark, wood chips, mulch or other organic material, or soil for any purpose without the written permission of the appropriate Board or Director.

**D.** No person shall handle or disturb plants or flowers or any other object or thing in any conservatory, greenhouse, propagating house or nursery; or remove any flowers, either cut or uncut, or plants or property of any park area or facility, propagating area or greenhouse; or plant, set out or otherwise place any plant material, tree, shrub or flower within any park area or facility without the written permission or the appropriate Board or Director.

**E.** No person shall hunt, molest, harm, frighten, kill, trap, pursue, chase, tease, shoot or throw missiles at any animal, wildlife, reptile or bird or give or attempt to give any such animal noxious substance or anything disagreeable to any such animal, or have in one's possession any wild animal or its young, or the eggs, nest or young of any bird or reptile. Any person convicted of violating any of the provisions of this subsection shall be guilty of an offense, and upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and imprisonment in the City jail for a period of not less than ten (10) days nor more than ninety (90) days.

**F.** No person shall skate, glide or coast by means of ice skates, shoe or snowmobile in any park area or facility except those that may be designated for such use by the appropriate Board or Director.

**G.** No person shall discharge or otherwise place or cause to be placed in the waters of any fountain, pond, lake, stream or other body of water in or adjacent to any park area or facility, or in any stream, storm sewer or drain flowing into such water any substance, matter, thing, liquid or solid which will or may result in the pollution of the waters.

**H.** No person shall start the water flowing from any water supply or spigot, other than at a drinking fountain or place provided as a watering place for people or animals, or disregard or fail to comply with any rule or regulation posted or displayed at any swimming pool, wading pool or bathing beach.

**I.** No person shall make a fire in any park area or facility except in affixed fireplaces, fire pits, or grills provided by the appropriate Board or Director for such purposes. Any fire shall be under the continuous care and supervision of a competent person from the time it is kindled until it is extinguished. No person shall throw away or discard any lighted match, cigar, cigarette, tobacco, paper or other material or ignite or set off any model rockets in any park area or facility.

**J.** No person shall ride, drive or allow a horse in any park area or facility, except for those trails or facilities specifically designated for equestrian use. At no time shall any horse be left unattended or be fastened to anything other than a post or rail specifically provided and designated for such use.

**K.** No person shall use any portion of any park or facility for toilet purposes, except the public restrooms or comfort stations provided.

**L.** No person shall seine for minnows or other aquatic animals or use a seine for any purpose within any body of water in any park area or facility. No person shall catch or take or attempt to catch or take in any manner within any park area or facility any fish for commercial purposes except that this shall not apply to anyone acting pursuant to a valid contract for the taking of rough fish. Bow fishing and fishing by set (bank) lines, trotlines, float (jug) lines, gigs or spears are prohibited in all park areas and facilities unless such area is specifically designated and posted for such activity.

**M.** No person shall offer or expose for sale for a profit any article without first having obtained a concessionaire's license.

**N.** No person shall enter upon or use any park area or facility without paying an admission, rental or membership fee when such fee has been established or has been approved by the Board by contract. No person shall enter into any park area or facility by other than the approved means of access or remove or disturb any barrier intended to prevent access, entry or occupancy. No person shall go into any shrubbery or enclosure or upon any lawn, slope or other area where there is a sign prohibiting such ingress.

**O.** No person shall drive upon or park in any park area or facility, except upon a parkway or parking lot; provided, however, the appropriate Board may designate certain other park areas or facilities where driving and parking shall be allowed in conjunction with special events identified by said Board and upon such terms and conditions, including the payment of a parking fee, as fixed by said Board. The Board may delegate the administration and enforcement of this provision to the appropriate Director. No vehicle shall be operated in a park at a speed in excess of the posted speed limit, or if no speed limit is posted, in excess of twenty-five (25) miles per hour. No vehicle designed for the purpose of transporting freight, merchandise or bulk materials of any kind, shall enter into any park area or facility, without having first obtained a permit to do so from the Director; provided, this restriction shall not apply to short-term or momentary entry of delivery vehicles in conjunction with any special event referred to above.

**P.** No person shall disregard any rule or regulation promulgated by any Board, including rules of conduct, covering the use of any park area of facility.

**Q.** No person shall bring into or have in his possession in any park area or facility any BB gun, air pistol, bow and arrow, crossbow, slingshot, knife or other weapon capable of inflicting injury to persons, animals or public property, whether or not such weapons are loaded, unless such park area or facility has been specifically designated and posted for such use or unless the use is in conjunction with an approved program; except this section shall not prohibit and is not intended to regulate or touch in any way pistols, rifles or other firearms, their components, ammunition or supplies, in deference to the state of Oklahoma's preemption of this subject matter pursuant to Title 21, Oklahoma Statutes, Section 1289.24, and the state of Oklahoma's regulation and prohibitions applicable to the possession, carrying or bearing of firearms, whether concealed or unconcealed, in Title 21, Oklahoma Statutes, Chapter 53, Sections 1271, et seq., including the Oklahoma Self Defense Act.

**R.** No person shall swim or wade in any lagoon, lake, fountain or other waters in any park area or facility, without the written consent of the appropriate Board or its representative, except in swimming, wading or spray pools constructed for such activities or areas specifically designated for such activities. Further, no person shall swim or wade in any pool at any time when the pool is not open to the public.

**S.** No person shall disturb any tree in any park area or facility. For purposes of this subsection, disturbing shall include but not be limited to clubbing, flailing, thrashing, shaking, throwing objects into, ramming, shooting or climbing into any tree. Any person convicted of violating any of the provisions of this subsection shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and imprisonment in the City jail for a period of not less than five (5) days nor more than ninety (90) days.

**T.** No person shall interfere with, disobey or ignore any lawful order of an employee while in the performance of his duties in any park area or facility.

**U.** No person shall attach any rope, cable or other contrivance, or post, paint, erect or place any sign, banner or advertisement to any tree, fence, railing, bridge, bench or other structure, provided that hammocks shall be allowed in locations and subject to rules promulgated by the appropriate Board or Director, with equipment that is not affixed by nails or screws and which does not otherwise cause damage to any tree or structure.

**V.** No person shall consume any beverage containing alcohol on a road or parking lot within any park area or facility or in any other park area or facility at which a sign is posted prohibiting alcohol consumption.

**W.** No person shall practice golf in any park area or facility not specifically designated for such uses.

**X.** No person shall stand, wade, swim or boat in areas of the Arkansas River where buoys or signage prohibit such activities.

**Y.** No person shall camp, erect a tent, build a fire or park an automobile or other vehicle for the purpose of sleeping therein or under cover projecting therefrom within any park area or facility other than those designated and set aside for such purposes.

**Z.** No person shall fly a kite in any portion of the area designated as Mohawk Park.

**AA.** No person shall bring into any park, have in his/her possession, serve, sell or give to another, or use while in a park, any glassware, including but not limited to bottles, jars, containers, drinking vessels and tableware; provided, this prohibition shall not apply in park areas in the Tulsa Zoo and the Garden Center, around the Gilcrease Museum, or on any park areas which are commercially leased for food and beverage sales.

**BB.** No person shall use any portion of the walking surface or structure of the Pedestrian Bridge across the Arkansas River, or any portion of the recreational flume at the east side of the Zink Dam, from which to conduct fishing or related activities.

*(Ord. Nos. 17059, 17108, 17192, 17309, 19119, 19539, 20496, 20946; Ord. No. 23099, § 1, 5-1-2014; Ord. No. 25373, § 1, 7-31-2024)*

### Section 104. Curfew.

No person shall enter into or remain upon nor shall any vehicle be left unattended in any park areas or facility between the hours of 11:00 p.m. and 5:00 a.m., unless an earlier curfew is approved by the Board or Director and posted at the park area or facility; provided, however, that use of such park area or facility may be allowed during these hours when a permit has been obtained in accordance with the procedures set forth in this chapter.

### Section 105. Animals.

Except for horses as provided in Section 103, Subsection J. above, it shall be unlawful for anyone to possess, allow or permit any animal of whatever nature into any park area or facility unless the animal shall be on a leash not exceeding six (6) feet in length, provided that dogs shall be allowed off-leash in those areas designated by the City as "dog parks" and on Watercraft on an Arkansas River Lake, if authorized by the appropriate Board or Director. No animal, except seeing eye dogs or other service animals as defined in the Americans with Disabilities Act (Title 42 USCA, Chapter 126, etc.) under control of their owners, shall be allowed within any building or swimming pool area unless it is in conjunction with a program approved by the Director. Any handler of an animal which is creating a disturbance or which is not being properly supervised may be evicted from the park area or facility. No exotic animal wild by nature shall be brought or allowed into any park area or facility, except as approved by the director. It shall be unlawful for any person to abandon any animal of any nature in any park area or facility.

*(Ord. No. 24195, § 1, 7-31-2019; Ord. No. 25373, § 1, 7-31-2024)*

### Section 106. Acts requiring permits.

It shall be an offense for any person to perform any of the following acts within any park area or facility without having first obtained a permit from the appropriate Board or Director:

**A.** Give any theatrical entertainment, moving picture show, parade, procession or public gathering, festival, concert, recreational program, event or other outdoor presentation, whether or not an admission fee is charged;

**B.** Use a loud speaker, public address system, amplifier or any other device to amplify and direct sound;

**C.** Dig, bury, erect, build, uncover, place or remove any object or store any materials or equipment of any kind;

**D.** Sell, offer for sale or give away to the public without charge any food, drink, merchandise, service or any other article;

**E.** Use any park area or facility for any commercial purpose including the production of films, photographs or advertisements, whether for sale to individuals or groups;

**F.** Tie or fasten to any pier, stake, beach or store any boat, launch or other vessel used or intended to be used for transportation on water except in those specifically designated for such use;

**G.** Take off, ascend, land, attempt to take off, ascend or land an airplane, helicopter, hydroplane, airship, balloon, hang glider, glider, sailplane or other aircraft intended for travel in the air with an operator or passenger. Any person applying for a permit to conduct such activities, shall submit with the application, evidence that all other applicable permits have been issued, including, but not limited to those issued by the Federal Aviation Administration and the Tulsa International or Jones Airport. No such aircraft shall be operated at an altitude of less than two thousand (2,000) feet from the earth unless engaged in an activity for which a permit has been issued or engaged in normal takeoff and landing procedures at an approved airport. No person shall engage in any trick or acrobatic flying, drop or throw any object in a parachute, or drop, throw or permit to be dropped or thrown any object from any aircraft. Provided, however, this paragraph shall not apply to emergency situations when such acts are necessary for the protection of human life;

**H.** Parachute from any aircraft. Any person applying for a permit to parachute from any aircraft, shall submit with the application, a Certificate of Insurance in an amount no less than One Million Dollars ($1,000,000.00) aggregate, as well as evidence that all other applicable permits have been issued, including, but not limited to Certificate of Waiver or Authorization issued by the Federal Aviation Administration, other permits issued by the Federal Aviation Administration and the Tulsa International or Jones Airport. Any person applying for a permit to parachute must hold a USPA class C or D license, or, in the alternative, be members of a DOD-sanctioned parachute demonstration team. Provided, however, this paragraph shall not apply to emergency situations when such acts are necessary for the protection of human life; and

**I.** Ignite or set off any fireworks of any kind whether for a personal, private or public display. Any person wishing to conduct a fireworks display shall first obtain permission from the City of Tulsa Park and Recreation Department or the River Parks Authority, as the case may be, and from the Fire Marshal, in accordance with the City of Tulsa Fire Prevention Code (Title 14, Tulsa Revised Ordinances) and any amendments thereto.

*(Ord. Nos. 18491, 19539; Ord. No. 25373, § 1, 7-31-2024)*

## Section 107. Permits.

Permits for special events in all park areas and facilities shall be obtained by application to the appropriate Board or Director in accordance with the following procedures.

**A.** A person seeking issuance of a permit hereunder shall pay a fee established by the appropriate Board for that purpose and file an application stating:

**1.** The name and address of the applicant;

**2.** The name and address of the person, persons, corporation or association sponsoring the activity;

**3.** The day and hours for which the permit is desired;

**4.** The park area or facility for which the permit is desired;

**5.** The nature and purpose of the activity for which the permit is desired;

**6.** Variances required from the park rules and regulations or ordinances;

**7.** Any other information required by the appropriate Board or Director or reasonably necessary to a determination as to whether a permit should be issued hereunder; and

**8.** That all local, state and federal laws and regulations will be complied with.

**B.** Standards for issuance of a use permit shall include the following findings:

**1.** That the proposed activity or use will not unreasonably interfere with or detract from the general public's enjoyment of the park area or facility;

**2.** That the proposed activity and use will not unreasonably interfere with or detract from the promotion of public health, welfare, safety and recreation;

**3.** That the proposed activity or use will not include violence, crime or disorderly conduct;

**4.** That the proposed activity will not entail extraordinary or burdensome expense or police operation by the City;

**5.** That the park area or facility desired has not been reserved for other use on the requested date and hour;

**6.** That the sponsor will abide by the rules and regulations promulgated by the Board; and

**7.** That the sponsor will comply with all Health Department rules and regulations.

**C.** Within ten (10) days after the receipt of an application, the Director shall notify the applicant in writing of his decision to grant or deny a permit. Any aggrieved person shall have the right to appeal to the Council by filing with the City Clerk a notice of appeal within ten (10) working days of the Director's decision. The Council shall hear the appeal at its next available meeting and decide whether the permit shall be issued. In the case of an event sponsored by the River Parks Authority, the appeal shall be to the River Parks Authority Board of Directors which shall decide at its next regularly scheduled meeting whether the permit shall be issued.

**D.** The applicant shall be required to submit evidence of liability insurance, with the City of Tulsa and/or Tulsa County and the River Parks Authority as an additional insured, in an amount equal to the liability limits of the Oklahoma Governmental Tort Claims Act.

*(Ord. No. 25373, § 1, 7-31-2024)*

### Section 108. Museums.

It shall be unlawful for any person, without the written permission of the appropriate Board or Director, to open any display case or handle any contents therein or to remove from any building or in any way disturb any collection of art, articles, artifacts, specimens, whether live or inanimate, books or documents contained in such park area or facility.

## Section 109. Golf courses.

It is hereby declared to be unlawful and an offense for any person to do any of the following acts within the boundaries of a public golf course; provided, however, that such prohibitions shall not apply to City employees or agents when necessary for the performance of their duties or contractual obligations.

**A.** No person shall enter for the purpose of picnicking, picking any fruits or nuts or any other purpose except to play golf, after having paid a green fee, or to caddy for a golfer who has paid a green fee, unless permission has been obtained from the Director of the Tulsa Park and Recreation Department.

**B.** No person shall fish or ride in a boat or canoe in the lagoons or other waters, except in boats rented from an authorized concessionaire.

**C.** No person shall enter the lagoons or other waters for the purpose of recovering golf balls.

**D.** No person shall disobey any posted instructional, prohibitive or directional signs posted on the golf course or any rule or regulation adopted by the Board, posted in the clubhouse area or printed on scorecards or carts.

**E.** No person shall ride any animal or drive any wheeled vehicle other than golf carts rented at the golf course clubhouse.

**F.** No person shall operate a golf cart in any manner which endangers any person or property or in violation of any posted rules.

## Section 110. Tulsa Zoological Park.

**A.** It shall be unlawful to do any of the following acts within the Tulsa Zoological Park, except that such prohibitions shall not apply to employees when necessary for the performance of their duties.

**1.** No person shall bring, possess or allow any animal onto the Zoo grounds without the permission of the appropriate Board, Director or the Zoo Director.

**2.** No person shall annoy or in any manner injure, annoy, harm, molest, chase, shoot or interfere with any animals, fish or fowl kept for public exhibition, in storage or in a wild state within any park area or facility. Such prohibition shall include the throwing of any food or object into any animal enclosure, cage, pen, pound, tank or aquarium, except in those areas where the feeding of animals is allowed and is so posted.

**B.** Any person convicted of violating any of the provisions of this section shall be guilty of an offense and, upon the conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and imprisonment in the City jail for a period of not less than ten (10) days nor more than ninety (90) days.

## Section 111. Oxley Nature Center and Redbud Valley Nature Preserve.

All trails and footpaths are restricted for pedestrian and wheelchair traffic. No one shall launch or operate a boat of any kind in any body of water within the boundaries of the Oxley Nature Center or Redbud Valley Nature Preserve. No animal, except seeing eye dogs or other service animals as defined in the Americans with Disabilities Act (Title 42 USCA

Chapter 126) under control of their owners, shall be allowed within the Oxley Nature Center or Redbud Valley Nature Preserve. All horses are specifically prohibited from the trails of the Oxley Nature Center and Redbud Valley Nature Preserve.

*(Ord. No. 24195, § 2, 7-31-2019)*

**Section 112. Arkansas River Lakes.**

The following regulations shall apply to waters of the Arkansas River impounded by low-water dams known as Zink Lake and South Tulsa Lake, as well as fixtures, appurtenant structures, and adjacent banks. "Zink Lake" means the body of water and riverbed between Zink Dam and the southernmost edge of the Southwest Boulevard/U.S. Route 66 bridge. "South Tulsa Lake" means the body of water and riverbed between the South Tulsa Dam, when constructed, and the southernmost edge of the 71st Street bridge.

**A. Watercraft.**

**1.** "Watercraft" means any boat or vessel designed for water flotation or travel, including but not limited to any power boat or motorboat, rowboat, canoe, kayak, standup paddle board, paddle boat, sail craft, air boat, personal watercraft, innertube, raft, or inflatable or flotation device of any type.

**2.** It shall be unlawful and an offense for any person to leave unattended any tow vehicles or trailers at any loading ramp or dock or to fail to remove such when the loading of Watercraft, passengers, and/or equipment is completed.

**3.** It shall be unlawful and an offense for any person to operate any Watercraft that does not consistently float (rest or move on or near the surface of the water without sinking), accounting for the weight of all passengers and equipment.

**4.** Except for emergency Watercraft, Watercraft-owned and operated by an authorized state or federal agency, and Watercraft authorized by the appropriate Board or Director, it shall be unlawful and an offense for any person to operate any Watercraft with a combustion engine or motor. Watercraft may be propelled by an electric motor. A combustion engine may be attached to a Watercraft, but may not be used.

**5.** Except for emergency Watercraft and Watercraft authorized by the appropriate Board or Director, it shall be unlawful and an offense for any person to create a wake, defined as waves larger than the natural waves in the immediate area of the Watercraft, waves which are cresting and showing white water, or waves which may cause injury or damage to any person or property.

**6.** It shall be unlawful and an offense for any person to operate Watercraft except in compliance with the Oklahoma Boating Safety Regulation Act (Title 63, Oklahoma Statutes, Section 4200, et seq.), as amended. If a provision of this section and a provision of state law are in conflict, the more restrictive provision shall apply.

**7.** If an authorized representative of the appropriate Director determines the presence of conditions that make navigation or other activities on the water significantly dangerous to the public, the representative is authorized to issue an order closing the river lake to the public.

**8.** Except for authorized representatives of the appropriate Director, it shall be unlawful and an offense for any person to enter onto or operate any Watercraft in

or upon the water during any time in which a closure order is in effect. When a closure order is in effect, a notice of closure shall be posted at the lake entrances.

**9.** An authorized representative of the appropriate Director may establish operating hours during which lake areas and activities shall be open to the public, provided that such hours shall be posted at the lake entrances.

**10.** It shall be unlawful and an offense for any person to refuse an order to dock a Watercraft when signaled to do so by a uniformed law enforcement officer or an authorized representative of the appropriate Director.

**B. Other Prohibited Acts.**

**1.** It shall be unlawful and an offense for any person to be on or use any part of any low-water dam or any bridge abutment, column, or footing structure unless authorized by the appropriate Board or Director.

**2.** It shall be unlawful and an offense for any person to jump, dive, or otherwise enter into the water from any Watercraft, low-water dam, bridge, bridge abutment, column, or footing structure.

*(Ord. No. 25373, § 1, 7-31-2024)*

### Section 113. Penalty.

Unless otherwise provided herein, any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

*(Ord. No. 25373, § 1, 7-31-2024)*

# CHAPTER 3. DETENTION FACILITIES AND RECREATIONAL AREAS SUPERVISED BY PUBLIC WORKS

Section 300. Definitions.
Section 301. Limitation of activities.
Section 302. Rules and regulations.
Section 303. Prohibited acts.
Section 304. Curfew.
Section 305. Animals.
Section 306. Acts requiring permits.
Section 307. Permits.
Section 308. Penalty.

## Section 300. Definitions.

For the purpose of this chapter, the following words shall have the meanings given herein:

**A. Detention areas and recreational facilities or facilities** shall mean any park, recreation area, sports field, garden, land, building or other structure other than those areas defined in Subsection 100.A. of this title, that are posted and designated as belonging to the City of Tulsa.

**B. Director** shall mean the Director of Public Works of the City of Tulsa or his authorized representative.

**C. Animal** shall mean any mammal, bird, reptile, amphibian, fish or invertebrate.

**D. Council** shall mean the governing body of the City of Tulsa.

**E. Permit** shall mean any written license issued by or under the authority of the Director as defined herein.

**F. Employee** shall mean any person employed by the City of Tulsa.

**G. Person** shall mean any natural person, corporation, company, association, firm or partnership.

*(Ord. No. 17964)*

## Section 301. Limitation of activities.

The Director may designate particular locations within detention areas and recreational facilities for specific activities and may limit such activities by issuance of permits. The Director may establish operating hours during which facilities shall be open to the public by the enactment of specific rules and regulations, provided that such hours shall be posted at the entrances of the affected facility.

*(Ord. No. 17964)*

## Section 302. Rules and regulations.

Subject to the approval of the Council, the Director shall adopt such rules, regulations and policies as he deems best for the safety and convenience of the public and for the operation of the facilities. When such rules and regulations have been adopted and approved, they shall be filed in the Office of the City Clerk. Any person found guilty of violating such rules and regulations shall be subject to the penalties set forth in this chapter.

*(Ord. No. 17964)*

## Section 303. Prohibited acts.

**A.** No person shall mark, deface, disfigure, tamper with or displace or remove any buildings, bridges, tables, benches, fireplaces, decorative structures, railings, pavings or paving materials, water lines or other public utilities or parts or appurtenances thereof, signs, notices or place cards, whether temporary or permanent, monuments, stakes, posts or other boundary markers, other structures or equipment, facilities or property or appurtenances whatsoever, either real or personal.

**B.** No person shall damage, cut, carve, mark, transplant or remove any plant or injure the bark; pick flowers or seed of any tree or plant; dig in or otherwise disturb grass areas; or in any other way injure the natural beauty or usefulness of any area.

**C.** No person shall cut any tree, dead or alive, whether erect or felled, or collect leaves, bark, wood chips, mulch, or other organic material, or soil for any purpose without the written permission of the Director.

**D.** No person shall handle or disturb plants or flowers or any other object or thing in any conservatory, greenhouse, propagating house or nursery; or remove any flowers, either cut or uncut, or plants or property of any facility, propagating area or greenhouse; or plant, set out or otherwise place any plant material, tree, shrub or flower within any facility without the written permission of the Director.

**E.** No person shall hunt, molest, harm, frighten, kill, trap, pursue, chase, tease, shoot or throw missiles at any animal, wildlife, reptile or bird or give or attempt to give any such animal any noxious substance or anything disagreeable to any such animal, or have in one's possession any wild animal or its young, or the eggs, nest or young of any bird or reptile. Any person convicted of violating any of the provisions of this subsection shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and imprisonment in the City jail for a period of not less than ten (10) days nor more than ninety (90) days.

**F.** No person shall skate, glide or coast by means of ice skates, shoe or snowmobile in any facility except those that may be designated for such use by the Director.

**G.** No person shall discharge or otherwise place or cause to be placed in the waters of any fountain, pond, lake, stream or other body of water in or adjacent to any facility, or in any stream, storm sewer or drain flowing into such facility any substance, matter, thing, liquid or solid which will or may result in the pollution of the waters.

**H.** No person shall start the water flowing from any water supply or spigot, other than at a drinking fountain or place provided as a watering place for people or animals, or disregard or fail to comply with any rule or regulation posted or displayed at any swimming pool, wading pool or bathing beach.

**I.** No person shall make a fire in any facility except in places provided for such purposes. Any fire shall be under the continuous care and supervision of a competent person from the time it is kindled until it is extinguished. No person shall throw away or discard any lighted match, cigar, cigarette, tobacco, paper or other material or ignite or set off any fireworks, model rockets or other incendiary device in any facility.

**J.** No person shall ride, drive or allow a horse in any facility, except for those trails or facilities specifically designated for equestrian use. At no time shall any horse be left unattended or be fastened to anything other than a post or rail specifically provided and designated for such use.

**K.** No person shall use any portion of any facility for toilet purposes, except the public restrooms or comfort stations provided.

**L.** No person shall seine for minnows or other aquatic animals or use a seine for any purpose within any body of water in any facility. No person shall catch or take or attempt to catch or take in any manner within any facility any fish for commercial purposes, except that this shall not apply to anyone acting pursuant to a valid contract for the taking of rough fish. Bow fishing is prohibited in all facilities unless such area is specifically designated and posted for such activity.

**M.** No person shall offer or expose for sale for a profit any article without first having obtained a concessionaire's license.

**N.** No person shall enter upon or use any facility without paying an admission, rental or membership fee when such fee has been established or has been approved by the Director by contract. No person shall enter into any facility by other than the approved means of access or remove or disturb any barrier intended to prevent access, entry or occupancy. No person shall go into any shrubbery or enclosure or upon any lawn, slope or other area where there is a sign prohibiting such ingress.

**O.** No person shall drive upon or park in any facility, except upon a parkway or parking lot. No vehicle shall be operated at a speed in excess of twenty-five (25) miles per hour. Under no circumstances shall any vehicle designed for the purpose of transporting freight, merchandise or bulk materials of any kind, enter into any facility.

**P.** No person shall disregard any rule or regulation promulgated by the Director, including rules of conduct, covering the use of any facility.

**Q.** No person shall bring into or have in his possession in any facility any BB gun, air pistol, bow and arrow, crossbow, slingshot, knife or other weapon capable of inflicting injury to persons, animals or public property, whether or not such weapons are loaded, unless such facility has been specifically designated and posted for such use or unless the use is in conjunction with an approved program; except this section shall not prohibit and is not intended to regulate or touch in any way pistols, rifles or other firearms, their components, ammunition or supplies, in deference to the state of Oklahoma's preemption of this subject matter pursuant to Title 21, Oklahoma Statutes, Section 1289.24, and the state of Oklahoma's regulation and prohibitions applicable to the possession, carrying or bearing of firearms, whether concealed or unconcealed, in Title 21, Oklahoma Statutes, Chapter 53, Sections 1271, *et seq.,* including the Oklahoma Self Defense Act.

**R.** No person shall swim or wade in any lagoon, lake, fountain or other waters in any facility, without the written consent of the Director, except in swimming, wading or spray pools constructed for such activities or areas specifically designated for such activities. Further, no person shall swim or wade in any pool at any time when the pool is not open to the public.

**S.** No person shall disturb any tree in any park area or facility. For purposes of this subsection, disturbing shall include but not be limited to clubbing, flailing, thrashing, shaking, throwing objects into, ramming, shooting or climbing into any tree. Any person convicted of violating any of the provisions of this subsection shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and imprisonment in the City jail for a period of not less than five (5) days nor more than ninety (90) days.

**T.** No person shall interfere with, disobey or ignore any lawful order of an employee while in the performance of his duties in any facility.

**U.** No person shall attach any rope, cable or other contrivance, or post, paint, erect or place any sign, banner or advertisement to any tree, fence, railing, bridge, bench or other structure.

**V.** No person shall consume any beverage containing alcohol on a road or parking lot within any facility.

**W.** No person shall practice golf in any facility not specifically designated for such uses.

**X.** No person shall camp, erect a tent, build a fire or park an automobile or other vehicle for the purpose of sleeping therein or under cover projecting therefrom within any facility other than those designated and set aside for such purposes.

*(Ord. No. 17964; Ord. No. 23099, § 2, 5-1-2014)*

### Section 304. Curfew.

No person shall enter into or remain upon nor shall any vehicle be left unattended in any facility between the hours of 11:00 p.m. and 5:00 a.m., unless an earlier curfew is approved by the Director and posted at the facility; provided, however, that use of such facility may be allowed during these hours when a permit has been obtained in accordance with the procedures set forth in this chapter.

*(Ord. No. 17964)*

### Section 305. Animals.

Except for horses as provided in Section 303, Subsection J. above, it shall be unlawful for anyone to possess, allow or permit any animal of whatever nature into any facility unless the animal shall be on a leash not exceeding six (6) feet in length, provided that dogs shall be allowed off-leash in those areas designated by the City as "dog parks". No animal, except seeing eye dogs or other service animals as defined in the Americans with Disabilities Act (Title 42 USCA, Chapter 126 etc.) under control of their owners, shall be allowed within any building or swimming pool area unless it is in conjunction with a program approved by the Director. Any handler of an animal which is creating a disturbance or which is not being properly supervised may be evicted from the facility. No exotic animal wild by nature shall be brought or allowed into any facility except as approved by the Director. It shall be unlawful for any person to abandon any animal of any nature in any facility.

*(Ord. No. 17964; Ord. No. 24195, § 3, 7-31-2019)*

### Section 306. Acts requiring permits.

It shall be an offense for any person to perform any of the following acts within any park area or facility without having first obtained a permit from the appropriate Board or Director:

**A.** Give any theatrical entertainment, moving picture show, parade, procession or public gathering, festival, concert, recreational program, event or other outdoor presentation, whether or not an admission fee is charged;

**B.** Use a loud speaker, public address system, amplifier or any other device to amplify and direct sound;

**C.** Dig, bury, erect, build, uncover, place or remove any object or store any materials or equipment of any kind;

**D.** Sell, offer for sale or give away without charge any food, drink, merchandise, service or any other article;

**E.** Use any park area or facility for any commercial purpose including the production of films, photographs or advertisements, whether for sale to individuals or groups;

**F.** Tie or fasten to any pier, stake, beach or store any boat, launch or other vessel used or intended to be used for transportation on water except in those specifically designated for such use; and

**G.** Take off, ascend, land, attempt to take off, ascend or land an airplane, helicopter, hydroplane, airship, balloon, hang glider, glider, sailplane or other aircraft intended for travel in the air with an operator or passenger. Any person applying for a permit to conduct such activities, shall submit with the application, evidence that all other applicable permits have been issued, including, but not limited to those issued by the Federal Aviation Administration and the Tulsa International or Jones Airport. No such aircraft shall be operated at an altitude of less than two thousand (2,000) feet from the earth unless engaged in an activity for which a permit has been issued or engaged in normal takeoff and landing procedures at an approved airport. No person shall engage in any trick or acrobatic flying, drop or throw any object in a parachute, or drop, throw or permit to be dropped or thrown any object from any aircraft. Provided, however, this paragraph shall not apply to emergency situations when such acts are necessary for the protection of human life.

**H.** Parachute from any aircraft. Any person applying for a permit to parachute from any aircraft shall submit with the application, a Certificate of Insurance in an amount no less than One Million Dollars ($1,000,000.00) aggregate, as well as evidence that all other applicable permits have been issued, including, but not limited to Certificate of Waiver or Authorization issued by the Federal Aviation Administration, other permits issued by the Federal Aviation Administration and the Tulsa International or Jones Airport. Any person applying for a permit to parachute must hold a USPA class C or D license, or, in the alternative, be members of a DOD-sanctioned parachute demonstration team. Provided, however, this paragraph shall not apply to emergency situations when such acts are necessary for the protection of human life.

*(Ord. Nos. 17964, 18491)*

## Section 307. Permits.

Permits for special events in all facilities shall be obtained by application to the Director in accordance with the following procedures:

**A.** A person seeking issuance of a permit hereunder shall file an application stating:

**1.** The name and address of the applicant;

**2.** The name and address of the person, persons, corporation or association sponsoring the activity;

**3.** The day and hours for which the permit is desired;

**4.** The facility for which the permit is desired;

**5.** The nature and purpose of the activity for which the permit is desired;

**6.** Variances required from the facilities rules and regulations or ordinances;

**7.** Any other information reasonably necessary to a determination as to whether a permit should be issued hereunder; and

**8.** That all local, state and federal laws and regulations will be complied with.

**B.** Standards for issuance of a use permit shall include the following findings:

**1.** That the proposed activity or use will not unreasonably interfere with or detract from the general public's enjoyment of the facility;

**2.** That the proposed activity and use will not unreasonably interfere with or detract from the promotion of public health, welfare, safety and recreation;

**3.** That the proposed activity or use will not include violence, crime or disorderly conduct;

**4.** That the proposed activity will not entail extraordinary or burdensome expense or police operation by the City;

**5.** That the facility desired has not been reserved for other use on the requested date and hour;

**6.** That the sponsor will abide by the rules and regulations promulgated by the Director; and

**7.** That the sponsor will comply with all Health Department rules and regulations.

**C.** Within ten (10) days after the receipt of an application, the Director shall notify the applicant in writing of his decision to grant or deny a permit. Any aggrieved person shall have the right to appeal to the Council by filing with the City Clerk a notice of appeal within ten (10) working days of the Director's decision. The Council shall hear the appeal at its next available meeting and decide whether the permit shall be issued.

**D.** The applicant shall be required to submit evidence of liability insurance, with the City of Tulsa as an additional insured, in an amount equal to the liability limits of the Oklahoma Governmental Tort Claims Act.

*(Ord. No. 17964)*

## Section 308. Penalty.

Unless otherwise provided herein, any person violating any provision of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

*(Ord. No. 17964)*

# TITLE 27 PENAL CODE

**Chapter 1. Words and Phrases**
**Chapter 2. General Provisions**
**Chapter 3. Offenses Against Public Justice**
**Chapter 4. Offenses Against the Person**
**Chapter 5. Outraging Public Decency**
**Chapter 5-A. Adult Motion Picture Arcades—Manner of Operation**
**Chapter 6. Prostitution**
**Chapter 7. Public Intoxication**
**Chapter 8. Gambling**
**Chapter 9. Intoxicating Liquors**
**Chapter 10. Junk Dealers (Repealed - Ord. No. 17650)**
**Chapter 11. Railroads**
**Chapter 12. Streets and Sidewalks**
**Chapter 12-A. Street Performers**
**Chapter 13. Distribution of Handbills and Circulars**
**Chapter 14. Disturbing the Peace**
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**Chapter 17. Picketing**
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**Chapter 19. False Pretenses and Frauds**
**Chapter 20. Larceny**
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**Chapter 27. Precious Metal and Gem Dealers**
**Chapter 28. Curfew Hours for Juveniles**
**Chapter 29. Door to Door Solicitation**
**Chapter 30. Secondhand Merchandise Dealers**
**Chapter 31. Scrap Metal Dealers**

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## CHAPTER 1. WORDS AND PHRASES

Section 100. Penal Code.
Section 101. Terms to have meanings specified unless different meaning appears.
Section 102. General words and phrases defined.
Section 103. Gender.
Section 104. Person as designating party whose property may be subject of offense.
Section 105. Present and future tense; singular and plural references.
Section 106. Writing includes printing.

### Section 100. Penal Code.

This title may be cited as the "Penal Code of the City of Tulsa, Oklahoma."

### Section 101. Terms to have meanings specified unless different meaning appears.

The terms defined in this code shall, for the purposes of this code, have the meanings respectively ascribed to them except when a different sense plainly appears.

Terms which are not defined in this code shall have their ordinarily accepted meanings or such as the context may imply.

### Section 102. General words and phrases defined.

**A. Knowingly.** The term "knowingly," when employed, imports only a knowledge that the facts exist which bring the act or omission within the provisions of this code; it does not require any knowledge of the unlawfulness of such act or omission.

**B. Negligence.** The terms "neglect," "negligence" and "negligently," when employed, import a want of such attention to the nature or probable consequences of the act or omission as a prudent man ordinarily bestows in acting in his own concerns.

**C. Offense.** The doing of any of the acts or things which are prohibited by any provisions of this code or the failure or refusal to do any act which is commanded to be done as more fully specified and set forth in this code is hereby declared to be an offense against the good order, public peace, morals, public justice, health and safety of the City of Tulsa, Oklahoma. Every act which is declared to be unlawful is also hereby declared to be an offense.

**D. Peace Officer.** The term "peace officer" signifies any sheriff, health officer, constable, policeman or fire marshal or any other officers whose duty it is to enforce and preserve the public peace, safety and welfare.

**E. Person.** The word "person" signifies every natural person, firm, partnership, association or corporation.

**F. Personal Property.** The term "personal property" includes every description of money, goods, chattels, effects, evidences of right in action and written instruments by which any pecuniary obligation, right or title to personal property is created or acknowledged, transferred, increased, defeated, discharged or diminished.

**G. Property.** The term "property" includes both real and personal property.

**H. Real Property.** The term "real property" includes every estate, interest and right in lands, tenements and hereditaments.

**I. Signature.** The term "signature" includes any name, mark or sign, written with the intent to authenticate any instrument or writing.

**J. Willfully.** The term "willfully" when applied to the intent with which an act is done or omitted, implies simply a purpose or willingness to commit the act or the omission referred to.

### Section 103. Gender.

Words used in the masculine gender comprehend as well as the feminine gender and neuter.

### Section 104. Person as designating party whose property may be subject of offense.

Where the term "person" is used in this code to designate the party whose property may be the subject of any offense, it includes this City, the state of Oklahoma or any other state, government or country which may lawfully own any property within the City of Tulsa and all public and private corporations or joint associations, as well as individuals.

### Section 105. Present and future tense; singular and plural references.

Words used in the present tense include the future; the singular number includes the plural, and the plural includes the singular when used in this code.

### Section 106. Writing includes printing.

The term "writing" includes printing.

## CHAPTER 2. GENERAL PROVISIONS

Section 200. General penalty.
Section 201. Fines though not prescribed.
Section 202. Persons liable to punishment.
Section 203. Aiding and abetting.
Section 204. Conspiracy.
Section 205. Limitations of actions.

### Section 200. General penalty.

The intent of this section is to provide a punishment for the commission of any offense as herein defined. Each and every person who shall commit an offense, as defined in this code shall, upon each and every conviction thereof, be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and imprisonment in the City jail for a period of not more than ninety (90) days. The provisions of this section shall not apply where a different penalty is prescribed fully and adequately.

*(Ord. No. 15821)*

### Section 201. Fines though not prescribed.

Upon a conviction for any offense punishable by imprisonment in the City jail, in relation to which no fine is herein prescribed, the Judge of the Municipal Court may impose a fine on the offender not exceeding Five Hundred Dollars ($500.00), excluding costs, in addition to the imprisonment prescribed.

*(Ord. No. 15821)*

### Section 202. Persons liable to punishment.

**A.** All persons who commit, in whole or in part, any violation of this code or aid or abet in the commission of any violation of the same are liable to punishment under this code, except those persons belonging to any of the following classes, to-wit:

**1.** Children under the age of seven (7) years;

**2.** Children over the age of seven (7) years but under the age of fourteen (14) years, in the absence of proof that at the time of committing the act of neglect charged against them, they knew of its wrongfulness;

**3.** Persons who are impaired by reason of intellectual disability upon proof that at the time of committing the act charged against them they were incapable of knowing its wrongfulness;

**4.** Mentally ill persons, and all persons of unsound mind, including persons temporarily or partially deprived of reason, upon proof that at the time of committing the act charged against them they were incapable of knowing its wrongfulness;

**5.** Persons who commit an offense under ignorance or mistake of fact, which disproves any criminal intent; however, ignorance of the Revised Ordinances of the City of Tulsa shall not excuse any person from punishment for his violation;

**6.** Persons who commit the act charged without being conscious thereof; and

**7.** Persons who commit an offense while under involuntary subjection to the power of superiors.

**B.** No act committed by any person while in a state of voluntary intoxication, either from liquors or drugs, shall be deemed less of an offense by reason of his being in such condition.

*(Ord. No. 24066, § 1, 1-9-2019)*

### Section 203. Aiding and abetting.

All persons who shall give aid, comfort or refuge to any person in the commission of an offense, whether they directly commit the same or not and whether present or not, shall be guilty of an offense.

### Section 204. Conspiracy.

Any two (2) or more persons assembled or who shall assemble with the intent to mutually agree to do any unlawful act with force or violence and shall make any movement therefor against the property of the City of Tulsa or the person or property of another person shall be guilty of an offense.

### Section 205. Limitations of actions.

Amended and recodified as Title 33, Chapter 1, Section 107, TRO by Ordinance No. 17471.

## CHAPTER 3. OFFENSES AGAINST PUBLIC JUSTICE

Section 300. Resisting officers.
Section 301. Impersonating officers.
Section 302. Failure to assist officers.
Section 303. Abusing police dogs or police mounts.
Section 304. Contempt—Direct and indirect.
Section 305. Setting prisoners free.
Section 306. Escapes.
Section 307. Conveying instrument for escape.
Section 308. Communicating with prisoners.
Section 309. Penalty.
Section 310. False statements to the City Council.
Section 311. Unlawful bypass of a security checkpoint.
Section 312. Willfully disturbing or interfering with City business, operations, or employees.

### Section 300. Resisting officers.

It shall be unlawful and an offense for any person to willfully obstruct, resist, oppose, delay or interfere with any peace officer, member of the Police Department of the City of Tulsa, any special police officer of the City of Tulsa, any person called to the assistance of any member of the Police Department, or other person having such police powers, while in the discharge or attempted discharge of any duty of their respective offices, by means including but not limited to the following:

**A.** Physically, by act or omission;

**B.** Refusing to stop at the command of an officer attempting to effect an arrest of the person commanded to stop;

**C.** Vocalizing or otherwise making loud noise, which repeatedly delays an officer in the performance of any official duty, after first being warned that continuing the conduct constitutes an offense under the substance of this section;

**D.** Communicating or causing to be communicated any false or intentionally misleading statement or information, regardless of form, to an officer investigating any offense or attempting service of a warrant or other process;

**E.** Providing false or intentionally misleading information identifying oneself after being arrested, while a warrant for one's arrest is outstanding, or while wanted and subject to arrest on probable cause for the commission of any offense;

**F.** Refusing or failing to provide a current, full, true and correct name, date of birth and residence address for the issuance of a citation or after being arrested;

**G.** Words or conduct which create a clear and present danger of unlawful physical harm to any person or which tends to incite an immediate breach of the peace.

It shall constitute an affirmative defense to a violation of this section if the conduct of the defendant constituted solely protected speech, including criticism, dissent or protests directed at an officer or any manifestation of government.

*(Ord. No. 19605)*

### Section 301. Impersonating officers.

**A. Impersonating officers.** It shall be an offense for any person to impersonate or falsely represent himself to be a peace officer of the City of Tulsa or to exercise or attempt to exercise any of the duties, functions or powers of a peace officer without being duly and legally authorized.

**B. Unauthorized wearing of insignia prohibited.** No person other than a duly authorized enforcement officer shall wear the official badge, insignia or uniform of the Tulsa Police Department or shall bear firearms or assume the authority of a duly authorized enforcement officer.

**C. Wearing of similar uniform or insignia prohibited.** No person shall impersonate an officer of the Tulsa Police Department by wearing an insignia, badge or uniform which is likely to be confused with the official uniform of the Tulsa Police Department.

**D. Penalty.** Every person convicted of violation of any of the provisions of this section shall be guilty of an offense and, upon conviction thereof, shall be punished by imprisonment in the City jail for a period of not more than thirty (30) days and/or by a fine of not more than One Hundred Dollars ($100.00), excluding costs.

*(Ord. No. 7188)*

### Section 302. Failure to assist officers.

It shall be an offense for any person to refuse or neglect to assist any peace officer in making an arrest, when so requested by such officer, to help preserve the peace or prevent the escape of a person charged with an offense.

### Section 303. Abusing police dogs or police mounts.

**A.** It shall be an offense for any person to willfully or maliciously torture, torment, beat, kick, strike, mutilate, injure, disable, harass, tantalize or kill any dog used by the Police Department in the performance of any of the functions or duties of the Department or of any officer or member thereof.

**B.** "Police mount" is defined as a horse used by the Police Department in the performance of any of the duties or functions of the Department or of any officer or member thereof. It shall be an offense for any person to willfully or maliciously, kill, torture, torment, beat, kick, strike, mutilate, injure, disable, harass, release a secured mount, take control or ride a police mount used by the Police Department in the performance of any of the duties or functions of the Department or of any officer or member thereof.

**C.** Any person who shall commit a violation of any of the provisions of this section shall be guilty of an offense and, upon conviction thereof, be punished by a fine or not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City/County jail for ninety (90) days.

*(Ord. No. 16808)*

### Section 304. Contempt—Direct and indirect.

**A.** Contempt of Court shall be divided into direct and indirect contempt.

**1.** Direct contempt shall consist of:

**a.** Disorderly or insolent behavior committed during the session of the Court and in its immediate view and presence;

**b.** The unlawful and willful refusal of any person to be sworn as a witness;

**c.** The refusal of any person to answer any legal or proper question; or

**d.** Any breach of the peace, noise or disturbance so near to the Court as to interrupt its proceedings.

**2.** Indirect contempt of Court shall consist of:

**a.** Willful disobedience of any process or order lawfully issued or made by Court; or

**b.** Resistance willfully offered by any person to the execution of a lawful order or process of a Court.

In all cases of indirect contempt, the party charged with contempt shall be notified in writing of the accusation and shall have a reasonable time for defense. The party so charged, upon demand, shall have a trial by jury.

**B.** Every person convicted of violating this section shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments or by imprisonment in the City jail for a period of not more than six (6) months, or by both such fine and imprisonment.

*(Ord. Nos. 15821, 19605)*

### Section 305. Setting prisoners free.

It shall be an offense for any person by the use of force, fraud, deception or diversion to set or attempt to set at liberty any prisoner or prisoners while in the lawful custody of police or court authorities.

### Section 306. Escapes.

It shall be unlawful and an offense for any person, after being lawfully arrested or detained by a peace officer, to escape or attempt to escape from such peace officer, or for any person lawfully confined in any capacity whatsoever by the Tulsa Police Department or in custody of a court official by the direction of a Judge of the Municipal Court to escape or attempt to escape such custody.

*(Ord. No. 24828, § 3, 5-18-2022)*

### Section 307. Conveying instrument for escape.

It shall be an offense for any person to convey or attempt to convey to any other person in custody of the Tulsa Police Department or in custody of a court official by the direction of a Judge of the Municipal Court any instrument or anything suitable or useful to facilitate the escape of such confined person, whether such escape be effected or not.

### Section 308. Communicating with prisoners.

It shall be an offense for any person to communicate with or to visit any person confined in the City jail or to attempt to communicate with or to visit such person without the permission of the Chief of Police, City Jailer or Municipal Judge.

### Section 309. Penalty.

Unless otherwise provided for in this chapter, every person convicted of violating any provision of this chapter, excluding Sections 300 and 302, shall be punished by a fine of not

more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments or imprisonment in the City jail for a period of not more than ninety (90) days, or by both such fine and imprisonment. Any person found guilty of violating Sections 300 and 302 shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

*(Ord. Nos. 15821, 19605)*

**Section 310. False statements to the City Council.**

It shall be an offense for any person, in any manner to knowingly and willfully falsify, conceal or cover-up by any trick, scheme or device a material fact, make any false, fictitious or fraudulent statement or representation, or make or use any false writing or document knowing the same to contain any false, fictitious or fraudulent statement or entry to the City Council during a Council meeting or Committee meeting. Any person violating the provisions of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than One Hundred Dollars ($100.00), excluding costs and assessments, or by imprisonment in the City jail for a period of not more than ten (10) days or by both such fine and imprisonment.

*(Ord. Nos. 18761, 21746)*

**Section 311. Unlawful bypass of a security checkpoint.**

Any building, facility, or outdoor area enclosed by a fence or other similar barrier requiring persons to pass through a security check point used to screen people and their belongings prior to entering and submit to inspection or screening shall post notice stating this requirement and, at a clearly identified checkpoint, informing them that persons and their belongings are subject to search prior to entry. All persons approaching a security checkpoint established in compliance with requirements of this paragraph shall, prior to entering, obey the instructions and orders of security staff conducting inspections and screenings and may otherwise be subject to the commission of the following offenses:

**A.** It shall be unlawful and an offense for any person, without authorization, to willfully bypass or go around a security checkpoint when entering any building, facility, or enclosed outdoor area requiring persons to pass through a security checkpoint used for inspecting or screening persons or their belongings prior to entry.

**B.** It shall be unlawful and an offense for any person, without authorization, to aid or assist any person or persons in bypassing a security checkpoint to any building, facility, or enclosed outdoor area requiring persons to pass through a security checkpoint used for inspecting or screening persons or their belongings prior to entry by opening, holding open, or propping open any otherwise secured door, entryway, window, or any other avenue of entry.

**C.** It shall be unlawful and an offense for any person, without authorization, to aid or assist any person in bypassing or avoiding a security checkpoint requiring persons to pass through a security checkpoint used for inspecting or screening persons or their belongings prior to entry by passing uninspected or unscreened items or belongings, or receiving them, through an otherwise secured door, entryway, window, loading dock, or any other avenue of entry.

**D.** Every person committing an offense prescribed in this section shall, upon conviction, be punished by imprisonment in the City Jail for a period of not exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or both such fine and imprisonment.

*(Ord. No. 24966, § 1, 12-7-2022)*

## Section 312. Willfully disturbing or interfering with City business, operations, or employees.

**A.** It shall be unlawful and an offense for any person, alone or in concert with others and without authorization, to willfully disturb, interfere with, or disrupt the business of the City of Tulsa, including but not limited to publicly posted meetings, or the operations of any employee, agent, official or representative of the City of Tulsa; provided that as a precondition to any such offense affecting a public hearing required by law or an open meeting, a presiding official has warned the person or persons to stop disturbing, interfering with, or disrupting the meeting.

**B.** It shall be unlawful and an offense for any person who is without authority and willfully causing any disturbance, interference or disruption in violation of this section to refuse to disperse or leave any property, building or structure owned, leased or occupied by City of Tulsa officials or employees, agents or representatives or used in any manner to conduct City business or any City operations, after notice by a peace officer, or other security personnel directing them to disperse or leave.

**C.** Any person violating any provision of this section shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period of not more than six (6) months, by a fine not exceeding One Thousand Dollars ($1,000.00), excluding costs, fees, and assessments, or by both such fine and imprisonment.

**D.** For purposes of this section, "disturb, interfere or disrupt" shall mean any conduct that is violent, threatening, abusive, obscene, or that jeopardizes the safety of self or others.

*(Ord. No. 24978, § 1, 1-25-2023)*

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## CHAPTER 4. OFFENSES AGAINST THE PERSON

Section 400. Assault defined.
Section 401. Battery defined.
Section 402. Assault, assault and battery and domestic assault and battery—Punishment.
Section 403. Use of force when lawful.
Section 404. Aggravated assault and battery defined—Penalty.
Section 405. Reserved.
Section 406. Aiding, abetting or harboring a runaway child.
Section 407. Assault and battery upon City of Tulsa employee—Penalty.
Section 408. Assault with bodily waste, fluids or excretions—Penalty.
Section 409. Face covering and social distancing during COVID-19 pandemic civil emergency.
Section 410. Malicious harassment based on race, color, religion, ancestry, sex, sexual orientation, gender identity and expression, national origin, or disability.
Section 411. Separation and operational requirements concerning restaurants, bars certain other places of public accommodation and public settings during COVID-19 pandemic civil emergency.
Section 412. Restrictions on events and gatherings.
Section 413. Expiration of ordinance.
Section 414. Threatening an act of violence.

### Section 400. Assault defined.

An assault is any willful and unlawful attempt or offer, with force or violence, to do a corporeal hurt to another person.

### Section 401. Battery defined.

A battery is any willful and unlawful use of force or violence upon the person of another.

### Section 402. Assault, assault and battery and domestic assault and battery—Punishment.

**A.** Any person who shall commit an assault shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period not exceeding thirty (30) days or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by both such fine and imprisonment.

**B.** Any person who shall commit an assault and battery shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period not exceeding ninety (90) days or by a fine of not more than One Thousand Dollars ($1,000.00), excluding costs, fees and assessments, or by both such fine and imprisonment.

**C.** Any person who shall commit an assault and battery against a current or former spouse, a present spouse of a former spouse, parents, a foster parent, a child, a person otherwise related by blood or marriage, a person with whom the defendant is in a dating relationship as defined by Section 60.1 of Title 22 of the Oklahoma Statutes, an individual with whom the defendant has had a child or a person who formerly lived in the same household as the defendant shall be guilty of domestic abuse and, upon conviction, shall be punished by imprisonment in the City jail for a period not

exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or by both such fine and imprisonment.

*(Ord. Nos. 18064, 19128, 19605, 20184)*

### Section 403. Use of force when lawful.

To use or attempt to offer to use force or violence upon or toward the person of another is lawful in the following cases:

**A.** When necessarily committed by a public officer in the performance of any legal duty or by any other person assisting him or acting by his direction;

**B.** When necessarily committed by any person in arresting one who has committed any felony or in delivering him to a public officer competent to receive him in custody;

**C.** When committed either by the party about to be injured or by any other person in his aid or defense, in preventing or attempting to prevent an offense against his person or any trespass or other unlawful interference with real or personal property in his lawful possession, provided the force or violence used is not more than sufficient to prevent such offense;

**D.** When committed by a parent or the authorized agent of any parent or by any guardian, master or teacher in the exercise of lawful authority to restrain or correct his child, ward, apprentice or scholar, provided restraint or correction has been rendered necessary by the misconduct of such child, ward, apprentice or scholar or by his refusal to obey the lawful command of such parent, authorized agent, guardian, master, or teacher and the force or violence is reasonable in manner and moderate in degree;

**E.** When committed by any person in preventing an idiot, lunatic, insane person or other person of unsound mind, including persons temporarily or partially deprived of reason, from committing an act dangerous to himself or to another or enforcing such restraint as is necessary for the protection of the person or for his restoration to health, during such period only as shall be necessary to obtain legal authority for the restraint or custody of the person.

### Section 404. Aggravated assault and battery defined—Penalty.

**A.** An assault and battery becomes aggravated when committed under any of the following circumstances:

**1.** When great bodily injury is inflicted upon the person assaulted and battered; or

**2.** When committed by a person of robust health or strength upon one who is aged, decrepit or incapacitated.

**B.** Any person who shall commit an aggravated assault and battery shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period not exceeding six (6) months or by a fine not exceeding Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or both such fine and imprisonment.

*(Ord. Nos. 15821, 19128)*

### Section 405. Reserved.

**Editor's note—**Ord. No. 22113, § 1, adopted August 27, 2009, repealed § 405, which pertained to assault and battery upon police or other law officer—penalty. See also the Code Comparative Table.

**Section 406. Aiding, abetting, or harboring a runaway child.**

**A.** The term "runaway child" as used in this section shall mean any child less than the age of eighteen (18) years who has left the custody of his parents or legal guardian without permission to do so and who has been reported to the Police Department or other authority as a runaway child.

**B.** Every person who shall knowingly and willfully aid, abet or harbor a runaway child shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments or by imprisonment in the City jail for a period of not more than ninety (90) days, or by both such fine and imprisonment.

*(Ord. Nos. 15821, 19128)*

**Section 407. Assault and battery upon City of Tulsa employee—Penalty.**

Every person who commits any assault, battery or assault and battery upon the person of an employee of the City of Tulsa while in the performance of his duties as an employee enforcing the ordinances of the City of Tulsa, shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period not exceeding six (6) months or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by both such fine and imprisonment.

*(Ord. Nos. 16209, 19128)*

**Section 408. Assault with bodily waste, fluids or excretions—Penalty.**

Every person who willfully and knowingly throws, transfers or in any manner places feces, urine, semen, saliva or blood upon the person of another, without the person's consent, whether expressed or implied, shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period not exceeding ninety (90) days or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by both such fine and imprisonment.

*(Ord. No. 19128)*

**Section 409. Face covering and social distancing during COVID-19 pandemic civil emergency.**

**A. Findings of fact.**

WHEREAS, the City of Tulsa is charged with the solemn responsibility of protecting the public peace, health, order, morals, and safety, and promoting the general welfare of the City of Tulsa and its inhabitants;

WHEREAS, on March 15, 2020, the Governor of the State of declared an emergency caused by the impending threat of COVID-19 to the people of this State and the public's peace, health and safety which remains in effect today; and

WHEREAS, on Tuesday, March 17, 2020, the Mayor of the City of Tulsa, issued Executive Order 2020-02 declaring a civil emergency in response to the COVID-19 pandemic, which poses an imminent threat to health, safety and welfare in the City of Tulsa; and

WHEREAS, on Thursday, July 2, 2020, the Mayor of the City of Tulsa, issued Executive Order 2020-13 extending the civil emergency, requiring a safety plan for all events and gatherings with 500 or more attendees, and requiring bar and restaurant employees to wear face coverings while working; and

WHEREAS, as of the 14th day of July, 2020, there were 1,099 active cases (5,448 total cases diagnosed) of COVID-19 in Tulsa County; and

WHEREAS, as of the 14th day of July, 2020, there were 117 COVID-19 positive patients in the hospital, 81 of those persons in the Intensive Care Unit (ICU), with an additional 11 cases in the ICU still under investigation for suspected COVID-19, and only 45 adult ICU beds still available in Tulsa County. One hundred thirty-five patients were treated the same day in acute care clinical settings; and

WHEREAS, as of the 14th day of July, 2020, the State of Oklahoma is not meeting the White House Opening Up America Again gating criteria for downward trajectory of cases or the downward trajectory of positive tests as a percentage of total tests, nor is Tulsa County meeting the 14 day trend of such downward trajectory.

WHEREAS, the Mayor of the City of Tulsa, issued multiple executive orders in response to COVID-19 using the least restrictive means available to protect public health, safety and welfare in the City of Tulsa and ensure an effective response to this disaster; and

WHEREAS, as the City of Tulsa reopened in the midst of COVID-19, increased spread is to be expected, and the key to controlling the spread and keeping the City of Tulsa safe is for all people to consistently follow good hygiene and social-distancing practices; and

WHEREAS, the United States Centers for Disease Control and Prevention (CDC) recommends that people wear cloth face coverings in public settings, particularly when other social distancing measures are difficult to maintain, and when around people who do not live in the same household; and

WHEREAS, the Mayor of the City of Tulsa, joined with the Executive Director of the Tulsa Health Department, and other public health officials in consistently encouraging people to use face coverings, and health authorities have repeatedly emphasized that wearing face coverings is one of the most important and effective tools for reducing the spread of COVID-19; and

WHEREAS, given the current status of COVID-19 in the City of Tulsa, requiring the use of face coverings is a targeted response that can combat the threat to public health using the least restrictive means, and if people follow this requirement, more extreme measures may be avoided; and

WHEREAS, wearing a face covering is important not only to protect oneself, but also to avoid unknowingly harming fellow Tulsans and others with whom they may come into contact, especially given that many people who go into public may have COVID-19 without knowing it because they have no symptoms; and

WHEREAS, due to recent substantial increases in COVID-19 positive cases, and increases in the COVID-19 positivity rate and hospitalizations resulting from COVID-19, further measures are needed to achieve the least restrictive means for reducing the growing spread of COVID-19, and to avoid a need for more extreme measures; and

WHEREAS, it is deemed necessary for the protection of the public health and safety of the City of Tulsa and its inhabitants to prevent the introduction and spread of the contagious disease COVID-19 preserve the peace, and to provide civil defense and emergency functions; and

Therefore, pursuant to Title 11, Oklahoma Statutes, Section 22-120(A), the City enacts this ordinance mandating that:

**B. Definitions.**

"**Educational institution**" means any building or facility used for academic or athletic purposes on public school campuses, and any private school or preschool. This term excludes the playing surface of any athletic facility during organized activities and practices.

"**Face covering**" means a covering that fully covers a person's nose and mouth. The term "face covering" includes, but is not limited to, cloth face masks, towels, scarves, and bandanas as recommended by the CDC or OSDH, an N95, KN95, or other mask that would be appropriate for a health care setting, or a surgical mask. The face covering should fit snuggly on a person's face but allow the person to breathe easily and worn consistent with the guidance provided by the CDC or OSDH.

"**Place of public accommodation**" means all places offering items, goods or services for purchase or rent, including without limitation retail businesses, personal services and spas, entertainment venues, food service facilities, restaurants and bars, hotels, motels and travel related services, professional offices and services, banks and financial services, repair facilities, motor vehicle dealerships.

"**Public service area**" means areas of a place of public accommodation or an educational institution wherein employees interact with the public in the normal course of business.

"**Public setting**" means any public place where persons congregate which is not a place of public accommodation including without limitation offices, workplaces, houses of worship and ancillary facilities, child care facilities, hospitals and health facilities, gymnasiums and physical fitness facilities, adult and youth sports facilities, communal outdoor spaces such as sidewalks, trails, and parks, and food trucks and other outdoor retail entities.

"**Social**" or "**physical distancing**" means maintaining six (6) feet of distance between persons who are not part of the same household while in a public accommodation, educational building, or public setting.

**C. Face coverings mandate under certain circumstances.** Except as otherwise provided herein, persons located within public service areas of places of public accommodation or an educational building are required to wear face coverings at all times when present therein. Except as otherwise provided herein, persons in any public setting wherein social or physical distancing cannot be maintained are required to wear face coverings. The following persons, locations and activities are exempt from this requirement:

**1.** Persons who fall into the U.S. Centers for Disease Control and Prevention's guidance for those who should not wear face coverings due to a medical or mental health condition or developmental disability;

**2.** Children under ten years of age;

**3.** Restaurant patrons while they are eating or drinking;

**4.** Persons exercising in communal outdoor spaces, or persons walking or exercising with other persons from the same household in communal outdoor spaces, as long

as physical distancing is maintained. Persons congregating in communal outdoor spaces with other persons not in their same household are required to wear face coverings when physical distancing is not maintained;

**5.** Settings where it is not practical or feasible to wear a face covering, such as dental services, medical treatments, while swimming, or when engaged in athletic team activities where the level of exertion makes wearing a face covering impractical;

**6.** Occupants in a personal vehicle, personal office, or similarly private space while other persons outside of the person's household are not present;

**7.** Private homes; and

**8.** Offices and workplaces that are not public service areas where physical distancing between employees and other occupants can be consistently maintained during hours of operation.

**D. Penalty for violation of subsection C.** There is no specific penalty for violation of this chapter. However, persons refusing to wear a face covering into a place of public accommodation, educational institution, or public setting as defined herein shall be subject to prosecution under criminal trespass, disturbing the peace, disorderly conduct or similar offenses as circumstances warrant.

**E. Expiration of Ordinance.** This Section 409 shall expire the earlier of midnight, April 30, 2021; the expiration of all Civil Emergency Orders related to COVID-19 issued by the Mayor; or repeal, modification or extension by the City Council through a subsequent ordinance.

*(Ord. No. 24408, § 1, 7-15-2020; Ord. No. 24446, §§ 1, 2, 9-30-2020; Ord. No. 24516, § 1, 1-13-2021)*

## Section 410. Malicious harassment based on race, color, religion, ancestry, sex, sexual orientation, gender identity and expression, national origin, or disability.

**A.** It shall be unlawful and an offense for any person to maliciously and with the specific intent to intimidate or harass another person because of that person's race, color, religion, ancestry, sex, sexual orientation, gender identity, gender expression, national origin, or disability, commit any of the following acts:

**1.** Assault, batter, assault and batter, or assault with bodily waste, fluids or excretions another person;

**2.** Damage, destroy, vandalize, deface, trespass upon, or steal any real or personal property of another person; or

**3.** Threaten, by word or act, to do any act prohibited by subparagraph 1. or 2. of this subsection if there is reasonable cause to believe that such act will occur.

**B.** It shall be unlawful and an offense for any person to maliciously and with specific intent to incite or produce, and which is likely to incite or produce, imminent violence, which violence would be directed against another person because of that person's race, color, religion, ancestry, sex, sexual orientation, gender identity, gender expression, national origin or disability, make or transmit, cause or allow to be transmitted, any telephonic, computerized, or electronic message.

**C.** It shall be unlawful and an offense for any person to maliciously and with specific intent to incite or produce, and which is likely to incite or produce, imminent violence, which violence would be directed against another person because of that person's race, color, religion, ancestry, sex, sexual orientation, gender identity, gender expression, national origin or disability, broadcast, publish, or distribute, cause or allow to be broadcast, published or distributed, any message or material.

**D.** Any person violating any provision of subsection A., B. or C. of this section shall be guilty of a misdemeanor on a first offense and, upon conviction, shall be punished by imprisonment in the City jail for a period not exceeding six (6) months or by a fine not exceeding One Thousand Dollars ($1,000.00), excluding costs, fees and assessments, or by both such fine and imprisonment.

*(Ord. No. 24440, § 1, 9-16-2020)*

## Section 411. Separation and operational requirements concerning restaurants, bars certain other places of public accommodation and public settings during COVID-19 pandemic civil emergency.

### A. Definitions.

**Bar** shall be defined as any location or premises which has as its main purpose the sale or distribution of alcoholic beverages for on-premises consumption, notwithstanding that as an incidental service, meals or short-order foods are made available therein. Determination of the 'main purpose' of a location or premises is that determined by the Oklahoma Alcoholic Beverage Laws Enforcement Commission pursuant to Title 37A, Section 6-114, of the Oklahoma Statutes. For purposes of this Section, the term 'Bar' shall also include taverns, brew pubs, breweries, microbreweries, distilleries, wineries, tasting rooms and other places of public accommodation offering alcoholic beverages for on-premises consumption, and shall also include hookah bars, cigar bars, and vaping lounges offering their products for on-premises consumption, whether or not such businesses offer food or beverages for sale.

**Restaurant** shall be defined as any location or premises which has as its main purpose the sale of food to customers for on-premises consumption and shall include and encompass food courts, cafes, and coffeehouses.

### B. Separation and Operational Requirements Concerning Restaurants, Bars, other Places of Public Accommodation and Public Settings.

**1.** Restaurants and bars serving, selling, or permitting on premises consumption of food and/or beverages shall ensure a minimum of six (6) feet of separation between parties or groups at different tables, booths, or bar tops, unless the tables or booths are separated by properly sanitized glass or plexiglass.

**2.** All Places of Public Accommodation serving, selling, or permitting on premises consumption of food and/or beverages shall ensure a minimum of six (6) feet of separation between parties or groups at different tables, booths, or bar tops, unless the tables or booths are separated by properly sanitized glass or plexiglass.

**3.** All Places of Public Accommodation and all Public Settings, as defined in Title 27, Chapter 4, Section 409, except child care facilities and places where children under the age of ten (10) congregate or play, shall consistently take measures to ensure a

minimum of six (6) feet of separation between customers, clients, attendees, and similarly situated individuals who are unassociated or do not reside in the same household.

**4.** All Places of Public Accommodation and all Public Settings, as defined in Title 27, Chapter 4, Section 409, shall take measures to implement a sanitation protocol that protects employees and customers, clients, attendees, and similarly situated individuals.

*(Ord. No. 24490, § 1, 11-24-2020)*

### Section 412. Restrictions on events and gatherings.

All events and gatherings with one hundred fifty (150) attendees or more are required to submit a COVID-19 safety plan for approval by the Tulsa Health Department a minimum of fourteen (14) calendar days prior to the event or gathering. Safety plans should be submitted by email to covid19plans@tulsa-health.org. No events or gatherings with one hundred fifty (150) attendees or more taking place on or after December 11, 2020, may be in held in the City of Tulsa without such safety plan approved by the Tulsa Health Department.

*(Ord. No. 24490, § 2, 11-24-2020)*

### Section 413. Expiration of ordinance.

Sections 411 and 412 of this Chapter 4 shall expire the earlier of midnight, April 30, 2021; the expiration of all Civil Emergency Orders related to COVID-19 issued by the Mayor; or repeal, modification or extension by the City Council through a subsequent ordinance.

*(Ord. No. 24490, § 2, 11-24-2020; Ord. No. 24516, § 2, 1-13-2021)*

### Section 414. Threatening an act of violence.

It shall be unlawful and an offense for any person to threaten to perform an act of violence involving or intended to involve serious bodily harm or death of another person. Any person violating the provisions of this section shall, upon conviction, be punished by imprisonment in the City Jail for a period of not more than six (6) months, a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or by both such fine and imprisonment.

*(Ord. No. 24828, § 1, 5-18-2022)*

## CHAPTER 5. OUTRAGING PUBLIC DECENCY

Section 500. Outraging public decency.
Section 501. Definition of nude breast.
Section 502. Exposure of nude breast.
Section 503. Assistance in exposure of nude breast.
Section 504. Penalty.
Section 505. Open urination or defecation—Penalty.

### Section 500. Outraging public decency.

Every person who willfully and wrongfully commits any act which grossly injures the person or property of another or which grossly disturbs the public peace or health or which openly outrages public decency and is injurious to public morals is guilty of an offense. Any person violating the provisions of this section shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period not exceeding six (6) months or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by both such fine and imprisonment.

*(Ord. No. 19605)*

### Section 501. Definition of nude breast.

The term "nude breast" is hereby defined for the purposes of this chapter as the nipple, including the pigmented areola portion adjacent thereto of the human body, as viewed by any other person.

*(Ord. No. 14002)*

### Section 502. Exposure of nude breast.

It is unlawful and an offense for any person to willfully expose, exhibit, display or reveal his or her nude breast, either unadorned or through transparent material, while serving food or beverage at any public place or in any establishment licensed pursuant to the provisions of the Oklahoma Alcoholic Beverage Control Act.

*(Ord. No. 16354)*

### Section 503. Assistance in exposure of nude breast.

It is unlawful and an offense for any person to willfully aid, assist or procure any person in violating Section 502 herein.

### Section 504. Penalty.

Any person convicted of a violation of this chapter shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or imprisonment in the City jail for a period of not more than ninety (90) days. The violation of each provision and each separate violation thereof shall be deemed a separate offense and shall be punished accordingly.

*(Ord. No. 15821)*

### Section 505. Open urination or defecation—Penalty.

**A.** Any person who shall willfully urinate or defecate in or upon any roadway, street, highway, turnpike, parking lot, park or other place accessible to the public or open to

being viewed by others, shall be guilty of an offense and, upon conviction, shall be punished by a fine not exceeding Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

**B.** It shall not be a violation of this section for any person to urinate or defecate within an enclosed toilet, restroom or urinal facility designed for that purpose and not generally open to public view by members of the opposite gender, whether such facility is accessible to the public or not.

**C.** Nothing in this section shall be construed to prohibit the filing of a charge pursuant to Section 500 of this chapter, when the facts warrant.

*(Ord. No. 19128)*

## CHAPTER 5-A. ADULT MOTION PICTURE ARCADES—MANNER OF OPERATION

Section 100. Purpose.
Section 200. Definitions.
Section 300. Adult motion picture arcade—Manner of operation.
Section 400. Violations and penalty.

### Section 100. Purpose.

It has been established that the operation of an adult motion picture arcade can result in unlawful public sexual conduct, unsanitary conditions in and around the premises and the transmission of sexually-related diseases such as Acquired Immune Deficiency Syndrome (AIDS), syphilis and other similar ailments unless the manner of such operation is properly regulated. The purpose of this chapter is to regulate the manner of operation of adult motion picture arcades in order to deter such hazards to the public health, safety and welfare and to facilitate their detection and prevention.

*(Ord. No. 17089)*

### Section 200. Definitions.

For the purposes of this chapter, the following terms or phrases shall have the meanings given herein.

**A. Adult motion picture arcade or arcade** shall mean any commercial establishment which meets the following criteria:

**1.** The establishment contains one (1) or more electrically or mechanically-operated machines, projectors, records or other image-producing devices of any kind which are used to exhibit still pictures, motion pictures, video pictures or other images distinguished or characterized by an emphasis on depicting "sexual conduct" or "specified anatomical areas"; and

**2.** The establishment contains one (1) or more viewing areas of one hundred fifty (150) square feet or less per image-producing device.

**B. Sexual conduct** shall include the following:

**1.** The fondling or other touching of human genitals, pubic region, buttocks or female breasts;

**2.** Ultimate sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation or sodomy;

**3.** Masturbation; and

**4.** Excretory function as part of or in connection with any of the activities set forth in paragraphs one (1) through three (3) above.

**C. Specified anatomical areas** shall include the following:

**1.** Human genitals, pubic region, buttocks and female breasts below a point immediately above the top of the areola;

**2.** Human male genitals in a discernible turgid state, even if completely and opaquely covered.

**D. Viewing areas** shall mean any area where a patron or customer of an "adult motion picture arcade" would ordinarily be positioned while watching an image-producing device.

*(Ord. No. 17089)*

### Section 300. Adult motion picture arcade—Manner of operation.

An "adult motion picture arcade" shall be operated in compliance with the following regulations.

**A.** The arcade shall have a manager's station on the premises.

**B.** The arcade shall have at least one (1) employee situated in the manager's station at all times when any patron or customer is present on the premises.

**C.** The interior of the arcade shall be designed in such a manner that all portions of all viewing areas are visible from the manager's station.

**D.** The view from the manager's station into the viewing areas shall at all times be unobscured by any curtain, door, wall, merchandise, display, rack or any other materials of any kind.

**E.** No viewing area may be occupied by more than one (1) patron or customer at any time.

**F.** The arcade shall be equipped with overhead lighting fixtures of sufficient intensity to illuminate all portions of all viewing areas at not less than one (1) footcandle as measured at floor level.

**G.** No viewing area shall have any hole or opening into an adjacent viewing area.

### Section 400. Violations and penalty.

**A. Violations.** It shall be unlawful for any person to operate or cause to be operated any "adult motion picture arcade" in violation of any of the regulations set forth herein. Every day that a violation exists shall constitute a separate offense subject to the full penalty set forth herein.

**B. Penalty.** Any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

*(Ord. No. 17089)*

## CHAPTER 6. PROSTITUTION

Section 600. Prostitution and lewdness defined.
Section 601. Place of prostitution.
Section 602. Receiving or transporting for purpose of prostitution.
Section 603. Procuring and soliciting.
Section 604. Engaging in prostitution or lewdness.
Section 605. Aiding, abetting or participating in prostitution, lewdness or other prohibited acts.
Section 606. Penalty.

### Section 600. Prostitution and lewdness defined.

**A. Prostitution.** The term "prostitution" as used in this code shall be construed to include:

**1.** The giving or receiving of the body for sexual intercourse, fellatio, cunnilingus, masturbation, anal intercourse or lewdness with any person not his or her spouse, in exchange for money or any other thing of value; or

**2.** The making of any appointment or engagement for sexual intercourse, fellatio, cunnilingus, masturbation, anal intercourse or lewdness with any person not his or her spouse, in exchange for money or any other thing of value.

**B. Lewdness.** The term "lewdness" as used in this code shall be construed to include:

**1.** Any lascivious, lustful or licentious conduct; or

**2.** The giving or receiving of the body for indiscriminate sexual intercourse, fellatio, cunnilingus, masturbation, anal intercourse or lascivious, lustful or licentious conduct with any person not his or her spouse; or

**3.** Any act in furtherance of such conduct or any appointment or engagement for prostitution.

*(Ord. No. 18065)*

### Section 601. Place of prostitution.

It shall be an offense for any person to:

**A.** Keep, set up, maintain or operate any house, place, building, other structure or part thereof, vehicle, trailer or other conveyance with the intent of committing an act of prostitution or lewdness; or

**B.** Knowingly own any house, place, building, other structure or part thereof, or vehicle, trailer or other conveyance used with the intent of committing an act of lewdness or prostitution; or to let, lease or rent or contract to let, lease or rent any such place, premises or conveyance, or part thereof, to another with knowledge or reasonable cause to believe that the intention of the lessee or renter is to use such place, premises or conveyance for prostitution or lewdness.

*(Ord. Nos. 18065, 19128)*

### Section 602. Receiving or transporting for purpose of prostitution.

It shall be an offense for any person to:

**A.** Receive, or to offer or agree to receive, any person into any house, place, building, other structure, vehicle, trailer or other conveyance, with the intent of committing an act of prostitution or lewdness, or to permit any person to remain there with such intent;

**B.** Direct, take or transport, or offer to or agree to take or transport, or aid or assist in transporting, any person to any house, place, building, other structure, vehicle, trailer or other conveyance, or to any other person with knowledge or having reasonable cause to believe that the intent of such directing, taking or transporting is prostitution or lewdness.

*(Ord. No. 19128)*

### Section 603. Procuring and soliciting.

It shall be an offense for any person to:

**A.** Offer or to offer to secure another with the intent of having such person commit an act of prostitution or with the intent of having such person commit any other lewd or indecent act; or

**B.** Solicit, induce, entice or procure another to commit an act of lewdness or prostitution with himself or herself; or

**C.** Reside in, enter or remain in any house, place, building or other structure, or to enter or remain in any vehicle, trailer or other conveyance with the intent of committing an act of prostitution or lewdness; or

**D.** Knowingly accept, receive, levy or appropriate any money or other thing of value without consideration from a prostitute or from the proceeds of any woman or man engaged in prostitution.

*(Ord. No. 18065, 19128)*

### Section 604. Engaging in prostitution or lewdness.

It shall be an offense for any person to engage in prostitution or lewdness.

*(Ord. No. 19128)*

### Section 605. Aiding, abetting or participating in prostitution, lewdness or other prohibited acts.

It shall be an offense for any person to aid, abet or participate in the doing of any of the acts herein prohibited.

### Section 606. Penalty.

Every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period of not less than thirty (30) days nor more than six (6) months, excluding costs, fees and assessments.

*(Ord. Nos. 15451, 19128)*

## CHAPTER 7. PUBLIC INTOXICATION

Section 700. Illegal intoxication—Penalty.

### Section 700. Illegal intoxication—Penalty.

**A.** Any person who shall, in any public place or in any vehicle, drink or otherwise consume any intoxicating liquor containing more than three and two-tenths percent (3.2%) alcohol measured by weight, except as authorized by the Oklahoma Beverage Control Act, or any other intoxicating substance, or intoxicating compound of any kind or inhale glue, paint or other intoxicating substance, shall be guilty of an offense.

**B.** Any person who shall be drunk or intoxicated in or upon any public or private road, in any vehicle, any public place or building, at any public gathering, place accessible to the public or open to being viewed by others, from drinking or consuming such intoxicating liquor, intoxicating substance or intoxicating compound or from the inhalation of glue, paint or other intoxicating substances, shall be guilty of an offense.

**C.** Any person who shall be drunk or intoxicated from any cause and who disturbs the peace of any person, shall be guilty of an offense.

**D.** It shall not be a violation of Subsection B of this section for any person to be intoxicated on the premises of a private residence with the prior express consent of the owner or any bona fide resident.

**E.** Any person found guilty of violating any offense included in this section shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

*(Ord. Nos. 16354, 19128, 19605)*

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## CHAPTER 8. GAMBLING*

Section 800. Betting on or playing prohibited game.
Section 801. Permitting gambling game.
Section 802. Betting on races.
Section 803. Paraphernalia—Procedure upon confiscation.

### Section 800. Betting on or playing prohibited game.

Except as provided in the Oklahoma Charity Games Act (Title 3A, O.S.2001, §§ 401, *et seq.*), as amended, it shall be an offense for any person to bet or play at any game whatsoever for money, property, checks, credits or other representatives of value with cards, dice or any other device which may be adapted to or used in playing any game of chance or in which chance is a material element. Any person convicted of a violation of this section shall be punished by a fine of not less than Twenty-Five Dollars ($25.00) nor more than One Hundred Dollars ($100.00), excluding costs, fees and assessments, and/or by imprisonment in the City jail for a period of not less than one (1) day nor more than thirty (30) days.

*(Ord. No. 21975, § 2, 12-18-2008)*

### Section 801. Permitting gambling game.

It shall be an offense for any person to permit any gaming table, bank or gaming device to be installed or used for the purpose of gambling in any house, building, shed, shelter, booth, lot or other premises to him belonging or by him occupied or which he has possession of or control at the time. Any person convicted of a violation of this section shall be punished by a fine of not less than One Hundred Dollars ($100.00) nor more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments, and/or by imprisonment in the City jail for a period of not less than thirty (30) days nor more than six (6) months.

*(Ord. No. 21975, § 3, 12-18-2008)*

### Section 802. Betting on races.

Except as provided for in the Oklahoma Horse Racing Act (Title 3A, O.S.2001, §§ 200, *et seq.*), as amended, it shall be a misdemeanor offense for any person to bet or wager upon the result of any trial of speed or power of endurance of animals or beasts. Any person convicted of a violation of this section shall be punished by a fine of not less than Two Hundred Dollars ($200.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and by imprisonment in the City jail for a period not more than ninety (90) days.

*(Ord. No. 21975, § 5, 12-18-2008)*

**Editor's note—**Ord. No. 21975, § 4, adopted December 18, 2008, repealed former §§ 802—808, 810, which pertained to gambling paraphernalia—possession; bookmaking; bookmaking places; bookmaking paraphernalia; receiving bets; telephone and telegraph usage; loitering—bookmaking places and penalty. Section 5 of said ordinance added provisions designated as a new § 802 to read as herein set out. See also the Code Comparative Table.

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***Editor's note—**Ord. No. 21975, § 1, adopted December 18, 2008, amended the title of Ch. 8 to read as herein set out. Prior to inclusion of said ordinance, Ch. 8 was entitled, "Gambling and Bookmaking." See also the Code Comparative Table.

## Section 803. Paraphernalia—Procedure upon confiscation.

**A.** Each and every table, cloth, box, gaming, gambling, betting or wagering device, apparatus, equipment, furniture or money which is used, kept or intended to be used for the purpose of gaming, gambling, betting or wagering in violation of this chapter shall be and they are hereby declared to be contraband, subject to seizure and confiscation.

**B.** The Chief of Police or any officer of the Police Department shall be and they are hereby authorized and directed to summarily abate by seizure and destruction any of the contraband described herein which is found upon the premises where any such violation is being or has been committed or which is found in the possession or under the control of any person who is violating any ordinance of the City of Tulsa on gaming, gambling, betting or wagering; provided, however, when any furniture, equipment or apparatus, the nature of which would permit its use for purposes other than gambling or bookmaking be seized by such officers, it shall not be destroyed but shall be stored by the officers and a full descriptive list of same shall be filed in the Municipal Court of the City of Tulsa, together with a sworn statement of the officer as to the facts surrounding its seizure and storage. It shall thereupon be the duty of the Municipal Court to cause notice to be given to the person from whom the contraband was seized or to the person who possesses such premises whereon the contraband was seized. If the names of any such persons be unknown to the Court, notice shall be given by posting notice upon the outer door of the premises. In all cases, such notice shall be directed to the person or persons named therein or to any person claiming an interest in the property or money, shall contain a descriptive list of all contraband seized and shall notify the person to appear at a hearing on a certain date, not less than three (3) days from the date of such notice, and to show cause, if any, why the contraband should not be sold at public auction or, in the case of moneys, paid into the General Fund of the City of Tulsa.

**C.** At such hearing, the Court shall determine if the furniture, fixtures, equipment and money sought to be classified as contraband is in fact contraband as defined herein. If classified as contraband, the Court shall order the furniture, fixtures and equipment sold by the Police Department of the City of Tulsa at a public auction to the highest bidder for cash and the proceeds therefrom paid into the General Fund of the City of Tulsa. If determined by the court that any of the money seized was at the time of the seizure being kept, used or intended to be used by the persons named in the notice or by any other person in violation of this chapter, the Court shall order it confiscated as contraband and forfeited to the General Fund of the City of Tulsa.

**D.** The confiscations and forfeitures as provided by this section shall be in addition to any and all fines and/or other penalties or sentences imposed upon the owners of the confiscated contraband.

*(Ord. No. 21975, § 6, 12-18-2008)*

## CHAPTER 9. INTOXICATING LIQUORS

Section 900. Definitions.
Section 901. Permitting intoxicated persons to remain in cafe, restaurant or place of recreation.
Section 902. Possession of alcoholic beverage by a minor.
Section 903. Misrepresentation of age.
Section 904. Consumption or possession of nonintoxicating alcoholic beverage in a public place by a person under twenty-one years of age.
Section 905. Social host for persons under twenty-one years of age.

### Section 900. Definitions.

When used in this chapter, the following words and phrases shall have the meanings given herein:

**A. Alcohol.** The term "alcohol" shall mean and include hydrated oxide of ethyl, ethyl alcohol, ethanol or spirits of wine from whatever source or by whatever process produced. It does not include wood alcohol or alcohol which has been denatured or produced as denatured in accordance with acts of Congress and regulations promulgated thereunder.

**B. Alcoholic beverage.** The term "alcoholic beverage" shall mean and include alcohol, spirits, beer and wine as those terms are defined herein and also includes every liquid or solid, patented or not, containing alcohol, spirits, wine or beer and capable of being consumed as a beverage by human beings, which contains more than three and two-tenths percent (3.2%) alcohol measured by weight.

**C. Beer.** The term "beer" shall mean and include any malt, hops or grain-fermented beverage containing three and two-tenths percent (3.2%) or less but more than one-hundredth percent (.01%) of alcohol by weight. Beer in excess of three and two-tenths percent (3.2%) shall be considered an alcoholic beverage.

**D. Licensee.** The term "licensee" shall mean and include any person holding a license as required by the Oklahoma Alcoholic Beverage Control Act, and any agent, servant or employee of such licensee while in the performance of any act or duty in connection with the licensed business or on the licensed premises.

**E. Original package.** The term "original package" shall mean and include any container of alcoholic beverage filled and stamped or sealed by the manufacturer.

**F. Premises.** The term "premises" shall mean and include the building, room and equipment under the control of the licensee and used in connection with or in the furtherance of the business covered by the license.

**G. Sale.** The term "sale" shall mean and include any transfer, exchange or barter in any manner or by any means whatsoever and includes and means all sales made by any person, whether as principal, proprietor, agent, servant or employee.

**H. Spirits.** The term "spirits" shall mean and include any beverage other than wine or beer which contains more than three and two-tenths percent (3.2%) alcohol measured by weight and obtained by distillation, whether or not mixed with other substances and solutions. The term "spirits" includes those products known as whiskey, brandy, rum,

gin, vodka, liqueurs, cordials, fortified wine and similar compounds but shall not include any alcoholic liquid completely denatured in accordance with acts of Congress and regulations pursuant thereto.

### Section 901. Permitting intoxicated persons to remain in cafe, restaurant or place of recreation.

It shall be an offense for any person operating a cafe or restaurant or any place of recreation to permit any person to be drunk or intoxicated in such place of business. Any person convicted of a violation of this section shall be punished by a fine of not more than One Hundred Dollars ($100.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than thirty (30) days.

### Section 902. Possession of alcoholic beverage by a minor.

It shall be an offense for any person under the age of twenty-one (21) years to be in possession of any intoxicating alcoholic beverage in any public place. Any person convicted of a violation of this section shall be punished by a fine of not more than One Hundred Dollars ($100.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than thirty (30) days.

### Section 903. Misrepresentation of age.

Any person under twenty-one (21) years who shall misrepresent his age in writing or by presenting false documentation of age for the purpose of inducing any person to sell or serve him alcoholic beverage shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not less than Two Hundred Fifty Dollars ($250.00) nor more than Five Hundred Dollars ($500.00), excluding costs.

### Section 904. Consumption or possession of nonintoxicating alcoholic beverage in a public place by a person under twenty-one years of age.

It shall be an offense for any person under twenty-one (21) years of age to consume or possess with the intention to consume non-intoxicating alcoholic beverage or beer containing more than one-half of one percent (½ of 1%) of alcohol measured by volume and not more than three and two-tenths percent (3.2%) of alcohol measured by weight. Any person convicted of a violation of this section shall be punished by a fine of not more than One Hundred Dollars ($100.00), excluding costs, or by appropriate community service not to exceed twenty (20) hours. Provided, the provisions of this section shall not apply when such person is under the direct supervision of his parent or guardian, but in no instance shall this exception be interpreted to allow such person to consume such beverage in any place licensed to dispense non-intoxicating alcoholic beverage as provided in 37 O.S. § 163.11.

*(Ord. Nos. 16462, 20184)*

### Section 905. Social host for persons under twenty-one years of age.

**A.** No person shall knowingly and willfully permit any individual under twenty-one (21) years of age who is an invitee to the person's residence, any building, structure or room owned, occupied, leased or otherwise procured by the person or on any land owned, occupied, leased or otherwise procured by the person, to possess or consume any

alcoholic beverage as defined by Section 506 of Title 37 of the Oklahoma Statutes, any Low-Point Beer as that term is defined in Section 163.2 of Title 37 of the Oklahoma Statutes, any controlled dangerous substance as defined in the Uniform Controlled Dangerous Substances Act, or any combination thereof, in such place.

**B.** It shall be a defense to this section if the individual under twenty-one (21) years of age is within three (3) degrees of affinity or consanguinity of the person, or the person is the legal guardian of the individual under twenty-one (21) years of age.

**C.** Any person violating any of the provisions of this section shall be guilty of an offense and, upon conviction thereof, shall be punished by imprisonment in the City jail for a period not exceeding six (6) months or by a fine of not less than Two Hundred Fifty Dollars ($250.00) nor more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or both such fine and imprisonment.

*(Ord. No. 21686)*

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# CHAPTER 10. JUNK DEALERS (REPEALED)*

*NOTE: This chapter was repealed by Ordinance No. 17650, effective January 17, 1992.

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## CHAPTER 11. RAILROADS

Section 1100. Trains blocking streets.
Section 1101. Climbing on train in motion.
Section 1102. Trespassing.
Section 1103. Loitering.
Section 1104. Penalty.

### Section 1100. Trains blocking streets.

It shall be an offense for any person to obstruct any portion of a street by stopping or standing any cars or train of cars of any kind or any locomotive engine so as to prevent the free passage of pedestrians or vehicles of any kind for more than five (5) minutes at any time. It shall be an offense for any person to obstruct any freeway, primary arterial or secondary arterial street as designated on the Tulsa City-County Major Street and Highway Plan between the hours of 7:00 a.m. to 8:30 a.m. or 4:30 p.m. to 6:00 p.m., except on Saturdays, Sundays or holidays observed by the City of Tulsa, by stopping, standing, marshaling or switching any cars or train of cars of any kind or any locomotive engine so as to prevent the free passage of pedestrians or vehicles of any kind. Any conductor, engineer, fireman or other person who shall operate or assist to operate any cars or engine which shall so obstruct any of such streets or who shall make a flying switch shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Hundred Dollars ($100.00), including costs.

*(Ord. No. 16127)*

### Section 1101. Climbing on train in motion.

It shall be an offense for any person, other than a railroad employee, to climb upon, hold onto or in any manner attach himself to any locomotive engine or car upon a railroad track while such locomotive engine or car is in motion.

### Section 1102. Trespassing.

It shall be an offense for any person, other than a railroad employee, to stand, walk, sit, run or recline upon a railroad track or right-of-way.

### Section 1103. Loitering.

It shall be an offense for any person, without right, to loiter or remain within a railroad station building, upon a railroad station platform or upon a railroad right-of-way after being requested to leave the railroad station, building, railroad platform, railroad ground or railroad right-of-way by an employee of the person operating such railroad.

### Section 1104. Penalty.

Unless otherwise provided for in this chapter, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

*(Ord. Nos. 15523, 19605)*

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## CHAPTER 12. STREETS AND SIDEWALKS

Section 1200. Games on streets.
Section 1201. Skates; toy vehicles.
Section 1202. Children on street.
Section 1203. Peddling.
Section 1204. Sidewalk photographers.
Section 1205. Shows or exhibitions.
Section 1206. Obstructing free passage.
Section 1207. Cleaning streets.
Section 1208. Trash.
Section 1209. Excavations.
Section 1210. Hazardous opening.
Section 1211. Drainage.
Section 1212. Snow on walks.
Section 1213. Spitting.
Section 1214. Penalty.

### Section 1200. Games on streets.

It shall be an offense for any person to engage in any game, sport, amusement or exercise in the street which is likely to impede the passage of vehicles in the streets or to injure passersby.

### Section 1201. Skates; toy vehicles.

It shall be an offense for any person to travel or skate upon any sidewalk by means of any rollers skates; or travel or coast upon any sidewalk by means of any toy wagon, coaster, tricycle, velocipede or other toy vehicle when the same may endanger the life of any pedestrian or become an inconvenience to his free use of the sidewalk.

### Section 1202. Children on street.

It shall be an offense for any parent or guardian of a child under the age of twelve (12) years to permit such child to play, run or loiter on the public streets.

### Section 1203. Peddling.

It shall be an offense for any person to display, sell or offer for sale any goods, wares or merchandise of any description from any stand, parked vehicle or other stationery position upon any street or alley.

### Section 1204. Sidewalk photographers.

It shall be an offense for any person to take pictures of persons upon the streets or sidewalks and offer for sale or peddle the picture to the person whose picture is taken; or to hand to the person a token, paper or other object to be exchanged at another place for the picture.

### Section 1205. Shows or exhibitions.

It shall be an offense for any person to use or cause to be used any portion of any sidewalk, street or alley for the maintaining or holding of any exhibition, entertainment, musical or dancing show for any purpose whatsoever.

### Section 1206. Obstructing free passage.

**A.** It shall be unlawful and an offense for any person to knowingly obstruct any street, alley, crosswalk, sidewalk, driveway, or trail used for the passage of pedestrians, as defined by Title 37, Section 100, vehicles, or bicycles to which the public or a substantial group of the public has access, unless allowed by the terms of a license or permit issued by the City.

**B.** It shall be unlawful and an offense for any person to knowingly obstruct any curb ramp, accessibility ramp, doorway, or similar point of access or egress for the locations listed in Subsection A.

**C.** As used in this section, "obstruct" means to interfere with the use for the intended purpose or to block, impede, interfere with, hinder, or delay the reasonable movement of vehicular or pedestrian traffic, including the reasonable movement of persons with disabilities, whether the obstruction arises from a person's acts alone or from a person's acts combined with the acts of others, and whether the obstruction is caused by a person's body, materials, or equipment in the possession of or used by the person, or any combination of these.

**D.** Any person violating the provisions of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than One Hundred Dollars ($100.00), excluding costs, fees and assessments. If an obstruction arises solely from materials, objects, or equipment, each day such violation is committed or permitted to continue shall constitute a separate offense.

**E.** It shall constitute an affirmative defense to a violation of this section if the obstruction caused by a person is as a result of an injury or equipment failure for which the person must be rendered aid to clear the obstruction and a person accepts aid when offered by a peace office or other city official.

*(Ord. No. 25317, § 1, 5-15-2024)*

### Section 1207. Cleaning streets.

It shall be an offense for any person to fail, refuse or neglect to clean off the sidewalk and gutter in front of the premises of such person or the alley in the rear of such premises when notified to do so by a peace officer of the City of Tulsa.

### Section 1208. Trash.

It shall be an offense for any person to deposit, throw, scatter or place or cause to be deposited, thrown, scattered or placed on any street, alley, sidewalk, gutter or other public place any filth, refuse, garbage, ashes, rubbish, grass, weeds, paper or any animal or vegetable matter, or permit an animal to defecate on such places, without immediately removing such.

### Section 1209. Excavations.

It shall be an offense for any person to make any excavation or cutting in any street, sidewalk, alley or public grounds or to remove any earth or construction material therefrom, except when authorized to do so by the City of Tulsa.

### Section 1210. Hazardous opening.

It shall be an offense for any person to permit to be open or leave open any cellar door, manhole or grating of any kind in or upon any street, sidewalk or alley.

### Section 1211. Drainage.

It shall be an offense for any person to permit any liquids, other than water, to drain into any street, alley or onto any sidewalk.

### Section 1212. Snow on walks.

It shall be an offense for any property owner or person in possession of any real property to fail to clear or have cleared within twenty-four (24) hours after any snowfall, sleet or ice storm, the public sidewalks on the property. Snow, sleet or other elements of nature shall be cleared from the sidewalks and piled along the outer edge of the walks adjacent thereto or removed entirely; but in no event shall such pilings exceed two (2) feet in height.

### Section 1213. Spitting.

It shall be an offense for any person to spit upon sidewalks, crosswalks or other public places.

### Section 1214. Penalty.

Unless otherwise provided for in this chapter, any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than One Hundred Dollars ($100.00), excluding costs, fees and assessments. Each day such violation is committed or permitted to continue shall constitute a separate offense.

*(Ord. Nos. 15523, 19605)*

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## CHAPTER 12-A. STREET PERFORMERS

Section 100. Purpose.
Section 200. Definitions.
Section 300. Rules and regulations.
Section 400. Exclusion of public areas.
Section 500. Penalty.

### Section 100. Purpose.

Street performers provide a public amenity that enhances the character of the City. The City seeks to encourage such performances in a manner consistent with the overall public interest. The City also recognizes that street performers seek to and do draw crowds to their performances. This can create serious safety problems by impacting the ability of pedestrians to move safely on sidewalks and through crosswalks by impeding the response time of safety personnel. It can also impact access to and egress from businesses. Cognizant that street performers are engaged in First Amendment activities, this chapter imposes reasonable time, place and manner restrictions on street performers to the extent necessary to ensure the safety of performers, their audiences and the general public and to prevent unreasonable interference with residents' enjoyment of peace and quiet in their homes or the ability of businesses to conduct business.

*(Ord. No. 23818, § 1, 1-24-2018)*

### Section 200. Definitions.

As used in this chapter:

**A.** **Special event** means a City-authorized street fair or other authorized and licensed public event.

**B.** **Perform/Performance** means live, public presentation or exhibition which includes, but is not limited to, the following activities: acting, singing, playing musical instruments, pantomime, juggling, magic, dancing, reading aloud, puppetry, sidewalk art, reciting, and performing of any sort.

**C.** **Performer** means a person conducting activities defined as a Performance under this Chapter.

**D.** **Public areas** mean public sidewalks, parks, playgrounds and other pedestrian areas.

**E.** **I.D.L.** means the "Inner Dispersal Loop" (Downtown Tulsa) which is the area of the City of Tulsa bounded on the East by U.S. Highway 75 on the West and North by Interstate Highway 1-244 and on the South by the Broken Arrow Expressway, State Highway S.H. 51.

*(Ord. No. 23818, § 1, 1-24-2018)*

### Section 300. Rules and regulations.

**A.** **Locations.** Performances may take place in the following locations:

**1.** In public areas, except within one hundred (100) feet of an elementary and/or secondary school, library, or church while in session, a hospital at any time, and except public areas excluded by the Mayor or his or her designee in the case of an emergency.

**2.** In public areas where a City-authorized special event, street fair, public festival, farmer's market or event is being conducted, with the permission of the event organizer. Otherwise, at least three hundred (300) feet away from such special event, street fair or public festival, farmer's market or event.

**B. Contributions.** A performer may request contributions or money or property at a performance. Contributions may be received in any receptacle, such as an open musical instrument case, box or hat.

**C. Prohibitions.** No performer shall:

**1.** Perform within ten (10) feet of:

**a.** Any bus stop or street corner or a marked pedestrian crosswalk or

**b.** The outer edge of any entrance of any business, including, but not limited to doors, vestibules, driveways, outdoor dining area entries and emergency exits during the hours that any business on the premises is open to the public or to persons having or conducting lawful business within those premises; provided, the owner or manager of any such business may invite the performer to perform within ten (10) feet of such business, and may revoke said invitation.

**2.** Perform less than fifty (50) feet from another performer or group of performers.

**3.** Perform in any area excluded by the City Council.

**4.** Perform in any area prohibited by the Mayor or his or her designee in the case of an emergency.

**5.** Use:

**a.** Any knife, sword, torch, flame, axe, saw, animal or other object, thing or being that can cause serious bodily injury to any person, or engage in any activity, such as, acrobatics, tumbling or cycling that can cause serious bodily injury to any person.

**b.** Any generator, wet cell battery with removable fill caps, or any other power source that poses a fire or public safety hazard.

**c.** Any connection to or maintenance of an electrical cord to an adjacent building or to a City power source.

**6.** Litter his or her performance site. The performer shall be responsible for clean-up of all litter at the performance site.

**7.** Prevent the public from utilizing any public benches, waste receptacles, or other street furniture during the performance.

**8.** Cause less than a five (5) foot contiguous sidewalk width being kept clear for pedestrian passage.

**9.** Perform with more instruments, props, equipment, merchandise or other items than the performer can reasonably transport or remove at one time.

**10.** Leave his or her instruments, props, equipment, merchandise or other items unattended.

**11.** Offer for sale or make available for a price or donation any items without having first procured a license as an "Outdoor Seller" as provided in Title 21 TRO, "Licenses", Chapter 23, "Mobile Vendors".

**12.** Perform in contravention of the allowable noise levels established in Title 27 TRO, Chapter 14, "Disturbing the Peace", Section 1400, "Noises."

**13.** Block or obstruct a curb cut.

**14.** Block or obstruct the free and safe movement of pedestrians. If a sufficient crowd gathers to observe a performer such that the passage of the public through a public area is blocked or obstructed, a police officer or fire official may disperse that portion of the crowd that is blocking or obstructing the passage of the public. If a performer cannot conduct a performance in a location without blocking or obstructing the passage of the public, a police officer or fire official may cause the performer to leave the location, but shall not prevent the performer from occupying another location in compliance with this Chapter.

*(Ord. No. 23818, § 1, 1-24-2018)*

**Section 400. Exclusion of public areas.**

**A. Specific Areas.** The following specific public areas are excluded from performances by decision of the City Council based upon evidence presented to the City Council during its deliberations on the adoption of this chapter

**1.** Due to pedestrian and traffic congestion and other safety issues "location"[1] except for performances in conjunction with a festival.

**2.** Due to pedestrian and traffic congestion and other safety issues, bridges, parking areas and parking facilities.

**B. Other Areas.** The City Council may by resolution exclude other specific areas from performances upon a determination that exclusion is necessary to protect the public health, safety, and welfare.

**C. Emergency designation.** A public area may be temporarily excluded from performances by the City Mayor or his or her designee in the case of an emergency. The area shall be excluded from performance for the duration of the emergency.

*(Ord. No. 23818, § 1, 1-24-2018)*

**Section 500. Penalty.**

**A.** Unless otherwise provided for herein, any person violating any provisions of this ordinance shall be guilty of a misdemeanor, and upon conviction, shall be punished by a fine of not more than Fifty Dollars ($50.00), excluding costs, fees and assessments. Authorized officers of the City of Tulsa may issue a citation for any such violation. Each day in which a violation occurs shall be deemed as a separate offense.

**B.** Any person convicted of a second violation of this ordinance shall be guilty of a misdemeanor and shall be punished by a fine of not more than One Hundred Dollars ($100.00), and/or by imprisonment in the City Jail for not more than thirty (30) days, excluding costs, fees and assessments. Each day in which violation occurs shall be deemed a separate offense.

*(Ord. No. 23818, § 1, 1-24-2018)*

[1] Council may want to exclude certain areas in the I.D.L. from access by street performers. Those areas should be itemized here.

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## CHAPTER 13. DISTRIBUTION OF HANDBILLS AND CIRCULARS

Section 1300. Intent and purposes.
Section 1301. Definitions.
Section 1302. Prohibited postings.
Section 1303. Throwing material in public places.
Section 1304. Placing material in or upon vehicles.
Section 1305. Distribution of material on uninhabited or vacant premises.
Section 1306. Distribution of material where prohibition is posted.
Section 1307. Distributing material at private premises—Exceptions.
Section 1308. Material depicting certain subject matter prohibited.
Section 1309. Public utility and government postings exempted.
Section 1310. Penalty.

### Section 1300. Intent and purposes.

The City of Tulsa is committed to protecting the public from the nuisance of the promiscuous distribution of handbills and circulars, with the resulting detriment and danger to public health, safety and welfare. Public interest, convenience and necessity require the regulation of the distribution of handbills and circulars, and to this end the purposes of this chapter are declared as follows:

**A.** To protect local residents against trespassing by solicitors, canvassers or handbill distributors upon the private property of such residents if they have given reasonable notice that they do not wish to be solicited by such persons or do not desire to receive handbills or advertising material;

**B.** To protect the people against the health and safety menace and expense incident to the littering of the streets and public places by the promiscuous and uncontrolled distribution of advertising material and commercial and noncommercial handbills; and

**C.** To preserve the people's constitutional right to receive and disseminate information.

### Section 1301. Definitions.

The following words, terms and phrases when used in this chapter shall have the meanings ascribed in this section, except where their context clearly indicates a different meaning:

**Commercial handbill** shall mean any printed or written material, any sample or device, circular, leaflet, pamphlet, paper, booklet or any other printed or otherwise reproduced original or copy of any material or literature which:

**1.** Advertises for sale any merchandise, product, commodity, thing or service;

**2.** Directs attention to any business, mercantile or commercial establishment, or other activity for the purpose of directly or indirectly promoting an interest in sales;

**3.** Directs attention to or advertises any meeting, theatrical performance, exhibition or event of any kind for which admission is charged, with the purpose of private gain or profit. This definition shall not apply where an admission fee is charged or a collection is taken up for the purpose of defraying the expenses incident to such meeting, theatrical performance, exhibition or event when it is held, given or takes place in connection with the dissemination of information which is not restricted under laws governing obscene material, or for the preservation of public peace, health, safety and welfare. Nothing contained in this definition shall authorize the holding of any

meeting, theatrical performance, exhibition or event of any kind without a license, where such license is required by any law of the United States, this state or any ordinance of this City; or

4. While containing reading material other than advertising material, is predominantly and essentially an advertisement, and is distributed or circulated for advertising purposes, or for the private benefit and gain of any person engaged as advertiser or distributor.

**Newspaper** shall mean any newspaper of general circulation as defined by the laws of Oklahoma, any newspaper duly entered with the United States Postal Service in accordance with federal statute or regulation, and any periodical or current magazine regularly published with not less than four (4) issues per year and sold to the public.

**Noncommercial handbill** shall mean any printed or written material, any sample or device, circular, leaflet, pamphlet, newspaper, magazine, paper booklet or any other printed or otherwise reproduced original or copy of any material or literature not included in the definitions of a commercial handbill or newspaper.

**Obscene** shall mean and include any material which depicts or describes sexual conduct that is objectionable or offensive to accepted standards of decency which the average person applying contemporary community standards would find, taken as a whole, appeals to prurient interests, or material which depicts or describes in a patently offensive way sexual conduct specifically defined by applicable state law, and which, taken as a whole, lacks serious literary, artistic, political or scientific value.

**Person** shall mean any natural person, firm, partnership, association, corporation, company or organization of any kind.

**Private premises** shall mean any dwelling, house, building or other structure designed or used either wholly or in part for private residential purposes, whether inhabited, uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps, vestibule or mailbox belonging or appurtenant to such dwelling, house, building, or other structure.

**Public place** shall mean any and all streets, boulevards, avenues, lanes, alleys or other public ways, and any and all public parks, squares, spaces, plazas, grounds and buildings.

### Section 1302. Prohibited postings.

It shall be unlawful and an offense for any person to post, stick, stamp, paint or otherwise affix, or cause the same to be done by any person, any notice, placard, bill, card, poster, advertisement or other paper or device calculated to attract the attention of the public, to, upon, over or across any sidewalk, crosswalk, curb or curbstone, flagstone or any other portion or part of any public way or public place; or upon any lamp post, electric light, telegraph or telephone pole, or railway structure, hydrant, shade tree or tree-box; or upon the piers, columns, trusses, girders, railings, gates or other parts of any public bridge or viaduct, or other public structure or building; or upon any pole, box or fixture of any fire alarm, except as such may be authorized or required by the laws of the United States, the state of Oklahoma or ordinances of the City.

### Section 1303. Throwing material in public places.

It shall be unlawful and an offense for any person to deposit, place, throw, scatter or cast any commercial or noncommercial handbill in or upon any public place within the City. Provided, that it shall not be unlawful or an offense for any person to hand out or distribute without charge to the receiver any commercial or noncommercial handbill in any public place to any person willing to accept such handbill.

### Section 1304. Placing material in or upon vehicles.

It shall be unlawful and an offense for any person to distribute, deposit, place, throw, scatter or cast any commercial or noncommercial handbill in or upon any vehicle within a parking area which is posted in a conspicuous position near each entrance with a sign bearing the words: "No Trespassing," "No Peddlers or Agents," "No Solicitors," "No Advertisements," "No Handbills" or any similar notice, indicating in any manner that the owner, lessor, renter or other responsible occupant of the premises does not desire to have vehicles present molested or disturbed, or to have any such commercial or noncommercial handbills left upon such premises. The provisions of this section shall not be deemed to prohibit the handing, transmitting or distributing of any commercial or noncommercial handbill to the owner, operator or other occupant of any vehicle who is willing to accept the same.

### Section 1305. Distribution of material on uninhabited or vacant premises.

It shall be unlawful and an offense for any person to distribute, deposit, place, throw, scatter or cast any commercial or noncommercial handbill in or upon any private premises which are uninhabited or vacant.

### Section 1306. Distribution of material where prohibition is posted.

It shall be unlawful and an offense for any person to distribute, deposit, place, throw, scatter or cast any commercial or noncommercial handbill upon any premises if requested by any owner, lessor, renter or other responsible occupant not to do so, or if there is placed on the premises in a conspicuous position near the entrance a sign bearing the words: "No Trespassing," "No Peddlers or Agents," "No Solicitors," "No Advertisements," "No Handbills" or any similar notice indicating in any manner that the occupants of the premises do not desire to be molested or to have their right of privacy disturbed or to have any such commercial or noncommercial handbills left upon such premises.

### Section 1307. Distributing material at private premises—Exceptions.

**A.** It shall be unlawful and an offense for any person to throw, deposit or distribute any commercial or noncommercial handbill in or upon private premises, except by handing or transmitting any such handbill directly to the owner, occupant or other person present. Provided that, except where prohibited by Sections 1304, 1305 and 1306 of this chapter, a person may place or deposit a commercial or noncommercial handbill in or upon such private premises if it is contained in a plastic bag ventilated with airholes throughout the surface of the bag, or in an unventilated plastic bag no greater than six (6) inches in width, or if such handbill is so placed or deposited as to secure or prevent such handbill from being blown or drifted about such premises or sidewalks, streets or other public places.

**B.** The provisions of this section shall not apply to the distribution of mail by the United States or to newspapers; provided that newspapers shall be placed on private property in such a manner as to prevent their being carried, scattered or deposited by the elements upon any street, sidewalk or other public place or upon private property.

### Section 1308. Material depicting certain subject matter prohibited.

It shall be unlawful and an offense for any person to post, hand out, distribute or transmit any sign or handbill which is:

**A.** Reasonably likely to create a clear and present danger of unlawful physical harm to any person or which tends to incite an immediate breach of the peace; or

**B.** Obscene or otherwise unlawful.

### Section 1309. Public utility and government postings exempted.

It shall not be an offense or violation of any provision of this chapter if the printed or written material, sample or device, notice, circular, leaflet, pamphlet, paper, booklet or any other printed or reproduced material or literature is posted, stamped, painted or otherwise affixed on any property by an officer, employee or agent of any public utility, the City of Tulsa, the United States Government, the state of Oklahoma or any of their political subdivisions, or as otherwise authorized by law or the order of a court with lawful jurisdiction.

### Section 1310. Penalty.

Unless otherwise provided for in this chapter, any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments. Each day such violation is committed or permitted to continue shall constitute a separate offense.

*(Ord. Nos. 15523, 19605, 21318)*

## CHAPTER 14. DISTURBING THE PEACE

Section 1400. Noises.
Section 1401. Discharging firearms.
Section 1402. Disorderly conduct.
Section 1403. Assembling unlawfully.
Section 1404. Obscene, threatening or harassing telephone calls.
Section 1405. Abusive and violent language.
Section 1406. Intimidating or combative conduct.
Section 1407. Aggressive begging prohibited.
Section 1408. Penalty.

### Section 1400. Noises.

It shall be an offense for any person to willfully or maliciously disturb the public peace or quietude or the life, health or safety of a reasonable person of normal sensitivities in any manner, by creating any noise of such character or duration so as to be unreasonably loud or disturbing, including but not limited to the following:

**A.** The sounding of a horn or signal device on any vehicle, except as a danger signal;

**B.** The playing of any musical instrument or amplified music in any manner or in such volume, so as to unreasonably disturb the quiet, comfort or repose of any person in any dwelling, hotel or other type of residence;

**C.** Singing, chanting, whistling, shouting, yelling, use of bullhorns, auto horns, sound amplification equipment or other sound equipment at a volume that can be heard inside any building or structure located on property occupied by a school, church, hospital or medical clinic during the regular business hours of such school, church, hospital or medical clinic, provided that such school, church, hospital or medical clinic posts a "Quiet Zone" sign on any public right-of-way or similar public access area in front of or adjacent to any such building or structure, and posts the hours of operation near a public entrance of any such building or structure. This prohibition does not apply to activities conducted by any such school, church, hospital or medical clinic. Hospitals and medical clinics which operate on a twenty-four (24) hour basis are not required to post regular business hours;

**D.** The allowing of habitual howling, yelping or barking of any dog or animal by its owner, keeper or possessor;

**E.** The discharge of the exhaust of any internal combustion or motor vehicle, except through a muffler or other device which will effectively prevent unreasonably loud or explosive noises therefrom;

**F.** The use of any mechanical device operated by compressed air, unless same is effectively muffled and reduced; and

**G.** The playing of musical instruments upon any street or public place without a written permit from the Mayor or his designee.

*(Ord. Nos. 20494, 20520, 20825; Ord. No. 25381, § 1, 8-7-2024)*

### Section 1401. Discharging firearms.

It shall be an offense for any person at any time to willfully or maliciously disturb the public peace or quietude or the life, health or safety of any individual in any manner by

discharging any firearm of any description except while acting in the defense of any person or any property; while acting as a peace officer or authorized watchman; or upon special authorization of the Chief of Police.

### Section 1402. Disorderly conduct.

**A.** It shall be an offense for any person at any time to willfully or maliciously disturb the public peace or quietude or the life, health or safety of any individual in any manner by making unnecessary or inappropriate noise; by any disorderly conduct thereby interrupting, disquieting or disrupting any lawful congregation or assembly of people; by keeping, maintaining or operating any place of public resort wherein loud or disturbing noises are made by drunken, disorderly or noisy persons congregating therein; or by failing to expel or restrain such persons when they are so acting.

**B.** Any person who is convicted of violating the provisions of this section shall be punished by a fine of not more than One Hundred Dollars ($100.00), excluding costs, and/or imprisonment in the City jail for a period of not more than thirty (30) days.

*(Ord. No. 17559)*

### Section 1403. Assembling unlawfully.

It shall be an offense for any person at any time to willfully or maliciously disturb the public peace or quietude or the life, health or safety of any individual in any manner by the assembling or the acting in concert of two (2) or more people to do any unlawful act with force or violence against public or private property or the person of another or against the peace or to the terror of others. Each such person who shall make any movement or preparation therefor shall severally be guilty of an offense. The intent of this provision is to include each and every person present at such meeting or assembly who shall remain present after being lawfully warned to leave.

### Section 1404. Obscene, threatening or harassing telephone calls.

**A.** It shall be unlawful and an offense for any person, by means of a telephone, to willfully:

**1.** Make any comment, request, suggestion or proposal which is obscene, lewd, lascivious, filthy or indecent;

**2.** Make a telephone call, whether or not conversation ensues, with intent to annoy, abuse, threaten or harass any person at the called number;

**3.** Knowingly permit any telephone under his control to be used for any purpose prohibited by this subsection; or

**4.** In conspiracy or concerted action with another person or persons, make repeated calls or simultaneous calls solely to harass any person at the called number.

**B.** Use of a telephone facility under this section shall include all use made of such facility between the points of origin and reception. Any offense under this section is a continuing offense and shall be deemed to have been committed at either the place of origin or the place of reception.

**C.** Any person who is convicted of violating the provisions of Subsection A of this section shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding

costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days. Each day such violation is committed or permitted to continue shall constitute a separate offense.

*(Ord. No. 18066)*

**Section 1405. Abusive and violent language.**

It shall be an offense for any person at any time to willfully or maliciously disturb the public peace or quietude or the life, health or safety of any individual in any manner by abusive or violent language, whether addressed to the party so disturbed or to some other person or persons.

**Section 1406. Intimidating or combative conduct.**

It shall be an offense for any person at any time to willfully or maliciously disturb the public peace or quietude or the life, health or safety of any individual, whether addressed to the individual disturbed or some other person, by threatening to kill, fight, do bodily harm or injury, destroy property, challenging to fight or fighting.

*(Ord. Nos. 19128, 19605)*

**Section 1407. Aggressive begging prohibited.**

**A.** For the purpose of this section the following words and phrases shall have the meanings given herein.

**1.** **Beg** means to stop or accost another or direct persons or animals to stop or accost another or direct persons or animals to stop or accost another, and to ask for money or other thing of value, either by words, bodily gestures, signs or other devices.

**2.** **Public place** is an area open to the general public, including but not limited to streets, sidewalks, bridges, alleys, plazas, parks, driveways, parking lots and buildings open to the general public, and the doorways and entrances to buildings or dwellings and the grounds enclosing them.

**3.** **Hinder or obstruct** means to walk, stand, sit or lie in such a manner as to block or attempt to block or restrict passage by another or to a require person approaching to take evasive action to avoid physical contact.

**4.** **Repeatedly** means two (2) or more times within a period of one (1) hour.

**B.** It shall be unlawful and an offense for any person to aggressively beg as defined by this section. A person is guilty of aggressive begging if he or she:

**1.** Repeatedly begs in a manner that hinders or obstructs the free passage of any person in a public place; or

**2.** By physical action while in the act of begging, intentionally causes or attempts to cause another person to reasonably fear imminent force or violence upon his person or upon property in his immediate possession, or commission of any criminal act upon his person or upon property in his immediate possession.

*(Ord. No. 17023)*

## Section 1408. Penalty.

Unless otherwise provided for in this chapter, any person convicted of violating any of the provisions of this chapter shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments. Each day such violation is committed or permitted to continue shall constitute a separate offense.

*(Ord. No. 19605)*

## CHAPTER 15. WEAPONS

Section 1500. Pistol defined.
Section 1501. Rifle defined.
Section 1502. Shotgun defined.
Section 1503. Air rifle defined.
Section 1504. Firearm defined.
Section 1505. Shooting range defined.
Section 1506. Regulation of shooting ranges.
Section 1507. Discharging firearms prohibited.
Section 1508. Discharging a firearm within one thousand feet of a school, church or other similar facilities.
Section 1509. Discharging a firearm under the influence of alcohol or drugs.
Section 1510. Recklessly discharging a firearm.
Section 1511. Negligently discharging a firearm.
Section 1512. Maliciously discharging a firearm with intent to intimidate or harass.
Section 1513. Certain discharges of firearms, air rifles or slingshots lawful.
Section 1514. Weapons—Carrying—Exceptions.
Section 1515. Weapons—Selling to minors.
Section 1516. Penalty.
Section 1517. Air rifles and slingshots—Discharging prohibited—Transportation.
Section 1518. Each discharge a separate offense.
Section 1519. Weapons confiscation.
Section 1520. Slingshot defined.

### Section 1500. Pistol defined.

The term "pistol" as used in this chapter shall mean and include any firearm with a barrel or barrels less than sixteen (16) inches in length and using either gunpowder, gas or any means of rocket propulsion, capable of discharging a projectile composed of any material which may reasonably be expected to cause lethal injury, but shall not include flare guns or blank pistols.

*(Ord. No. 19156)*

### Section 1501. Rifle defined.

The term "rifle" as used in this chapter shall mean and include any firearm with a barrel or barrels more than sixteen (16) inches in length and using either gunpowder, gas or any means of rocket propulsion, capable of discharging a projectile composed of any material which may reasonably be expected to cause lethal injury, but shall not include archery equipment, flare guns or underwater fishing guns. In addition, any rifle capable of firing shot but primarily designed to fire single projectiles will be regarded as a rifle.

*(Ord. No. 19156)*

### Section 1502. Shotgun defined.

The term "shotgun" as used in this chapter shall mean and include any firearm with a barrel or barrels more than eighteen (18) inches in length and using either gunpowder, gas or any means of rocket propulsion, capable of discharging a series of projectiles of any

material which may reasonably be expected to cause lethal injury. Any shotgun capable of firing single projectiles but primarily designed to fire multiple projectiles such as shot will be regarded as a shotgun.

*(Ord. No. 19156)*

**Section 1503. Air rifle defined.**

The term "air rifle" as used in this chapter shall mean and include any instrument in which the propelling force is a spring or air.

*(Ord. No. 19156)*

**Section 1504. Firearm defined.**

The term "firearm" as used in this chapter shall mean and include any pistol, rifle, shotgun or other instrument using either gunpowder, gas or any means of rocket propulsion, capable of discharging a projectile composed of any material which may reasonably be expected to cause lethal injury, but shall not include archery equipment, underwater fishing guns, air rifles, flare guns or blank pistols.

*(Ord. Nos. 18067, 19156)*

**Section 1505. Shooting range defined.**

The term "shooting range" as used in this chapter shall mean and include any place specifically designed or subsequently modified for providing a location for the discharge of firearms for purposes of test firing firearms, teaching, practicing or competition in marksmanship.

*(Ord. No. 19156)*

**Section 1506. Regulation of shooting ranges.**

**A.** Shooting ranges shall have walls, ceilings and floors that are impenetrable to the bullets of the firearms being used within it, or have internal baffling built so that the bullets cannot hit the walls or ceiling. Doors and windows which are in front of the firing points must be bolted from the inside and must comply with this subsection as a part of the building walls at all times the facility is in use. Gas projectiles and incendiary devices shall not be used in such facilities. Protective stalls shall be built between each firing point used for the discharge of a pistol.

**B.** Shooting ranges shall be so constructed and insulated from noise that the discharge of firearms within the facility shall not disturb the peace of other persons. Hearing protectors which fully cover the shooter's ears shall be provided by the shooting range and made available for all shooters or other persons in the firing area. No gas or incendiary projectiles shall be allowed.

**C.** Nothing in this section shall be construed to exempt any shooting range, its construction, remodeling or operation from any applicable City, state, or federal law, rule or regulation.

**D.** All instructors at any shooting range shall be certified by the National Rifle Association or by the state of Oklahoma.

**E.** It shall be unlawful and an offense for any owner, manager, operator or employee of a shooting range to permit any person or persons to bring any intoxicating liquor,

intoxicating substance or intoxicating compound on the premises of any shooting range; to permit the consumption of same on the premises; or to permit them to be left at any place on the premises. It shall be unlawful and an offense for any person operating a range to permit any intoxicated person to be or remain on the premises.

**F.** It shall be unlawful and an offense for any person to discharge any firearm within a shooting range in a manner that violates any provision of this chapter or so that the shot, projectile, bullet or fragments will avoid the backstop and other safety precautions and escape the confines of any shooting range, or cause bodily injury to a person on the premises. An owner, manager, operator, employee or agent of a shooting range shall supervise the users of the facility and shall remove and bar from the premises any person who refuses to comply with generally accepted safety practices, with the provisions of this chapter, or with the rules and regulations concerning safety imposed by the operator.

**G.** It shall be unlawful and an offense for any person to manage or operate any shooting range in any manner which violates the requirements of this section.

**H.** Every person violating this section shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period not exceeding ninety (90) days or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by both such fine and imprisonment.

*(Ord. No. 19156)*

### Section 1507. Discharging firearms prohibited.

**A.** Any person who shall willfully discharge any firearm within the corporate limits of the City shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period not exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or by both such fine and imprisonment.

**B.** It shall not be a violation of this section if a firearm is discharged within a shooting range operated consistent with Section 1506 of this chapter and all other ordinances, rules and regulations of the City.

*(Ord. No. 19156)*

### Section 1508. Discharging a firearm within one thousand feet of a school, church or other similar facilities.

**A.** It shall be unlawful and an offense for any person to willfully discharge any firearm at any location in the direct line of sight or within one thousand (1,000) feet of the following:

**1.** Any child care, preschool, kindergarten, elementary, secondary or vocation-technical school property;

**2.** Any church, synagogue, temple or similar religious establishment;

**3.** Any public park, playground or recreational area designated as such by the City, any county, the state or any public trust;

**4.** Any outdoor sports, concert, amusement or other entertainment stadium, arena, complex, auditorium, amphitheater or other similar facility;

**5.** Any prison, jail, detention facility or any facility used to process, hold or house arrested persons, prisoners or persons alleged delinquent or adjudicated delinquent.

**B.** It shall not be a violation of this section if a firearm is discharged within a shooting range continuously operated consistent with Section 1506 of this chapter and all other ordinances, rules and regulations of the city prior to the establishment of any facility identified in Subsection A of this section.

**C.** Every person violating this section shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period of not less than thirty (30) days nor more than six (6) months and by a fine of not less than Three Hundred Dollars ($300.00) nor more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments.

*(Ord. No. 19156)*

### Section 1509. Discharging a firearm under the influence of alcohol or drugs.

Any person who shall discharge any firearm in any circumstance while intoxicated, under the influence of or impaired to any discernable degree by the consumption of any intoxicating liquor, intoxicating substance, intoxicating compound, hallucinogenic or from the inhalation of glue, paint or other intoxicating substances shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period of not less than ten (10) days nor more than six (6) months and by a fine of not less than Fifty Dollars ($50.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. No. 19156)*

### Section 1510. Recklessly discharging a firearm.

Any person who shall discharge any firearm in any circumstance creating a situation of unreasonable risk and probability of death or great bodily harm to any person and demonstrating a conscious disregard for the safety of others shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period of not less than ten (10) days nor more than six (6) months and by a fine of not less than Fifty Dollars ($50.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. No. 19156)*

### Section 1511. Negligently discharging a firearm.

Any person who shall discharge any firearm while failing to exercise the care which a reasonable and prudent person would use under the same or similar circumstances to avoid injury to any person or property shall be guilty of an offense and, upon conviction, shall be punished by imprisonment in the City jail for a period not exceeding thirty (30) days or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by both such fine, and imprisonment.

*(Ord. No. 19156)*

### Section 1512. Maliciously discharging a firearm with intent to intimidate or harass.

Any person who shall maliciously discharge any firearm with the specific intent to intimidate or harass another person shall be guilty of an offense and, upon conviction, shall

be punished by imprisonment in the City jail for a period of not less than thirty (30) days nor more than six (6) months and by a fine of not less than Three Hundred Dollars ($300.00) nor more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments.

*(Ord. No. 19156)*

### Section 1513. Certain discharges of firearms, air rifles or slingshots lawful.

It shall not be a violation of any provision of this chapter to discharge a firearm, air rifle or slingshot:

**A.** When done by any peace officer in the performance of any legal duty or by any person assisting such officer or acting at such officer's direction;

**B.** When resisting any attempt to murder or to commit any felony upon any person or upon any dwelling occupied by any person;

**C.** When discharged in the lawful defense of any person when there is reasonable grounds to apprehend a design to commit a felony or to do some great personal injury and there is imminent danger of such design or injury being accomplished;

**D.** When necessarily discharged in an attempt, by lawful means, to arrest any person for any felony committed, in the suppression of any riot, or lawfully keeping or preserving the peace;

**E.** When discharged by an unforeseeable accident or misfortune, while doing any lawful act, by lawful means, using ordinary care, without unlawful intent.

**F.** When done by military personnel in the performance of any lawful duty at a military function of federal or state armed forces, including but not limited to the Oklahoma Army or Air National Guard, Federal Military Reserve or other active military forces; and

**G.** When discharged in the lawful defense of any person or property and there is reasonable grounds to apprehend a great injury from the presence of a vicious, dangerous or deadly animal.

*(Ord. Nos. 15821, 19156, 20524)*

### Section 1514. Weapons—Carrying—Exceptions.

It shall be unlawful and an offense for any person to carry upon or about his or her person, or in a purse or other container, a sword cane, blackjack, loaded cane, billy, hand chain, metal knuckles or any other offensive weapon, whether such weapon is concealed or unconcealed; except this section shall not prohibit, and is not intended to:

**1.** Regulate or touch in any way pistols, rifles or other firearms, knives, their components, ammunition or supplies, in deference to state preemption of this subject matter, pursuant to 21 O.S. § 1289.24;

**2.** The carrying or any use of any weapons in a manner otherwise permitted by statute or authorized by the Oklahoma Self-Defense Act, 21 O.S. §§ 1290.1, *et seq.*; or

**3.** The carrying, possession or use of any weapon by a peace officer in the performance of official duties and in compliance with the rules of the employing agency.

*(Ord. Nos. 18067, 19128; Ord. No. 23100, § 1, 5-1-2014; Ord. No. 23697, § 1, 5-24-2017)*

### Section 1515. Weapons—Selling to minors.

It shall be unlawful and an offense for any person within the City to sell or give to any minor any of the weapons designated in Section 1514 of this chapter; provided this section shall not in any manner regulate or pertain to pistols, rifles or other firearms, knives, their components, ammunition and supplies, in deference to state preemption of this subject matter, pursuant to 21 O.S. § 1289.24.

*(Ord. Nos. 18067, 19128; Ord. No. 23100, § 2, 5-1-2014; Ord. No. 23697, § 2, 5-24-2017)*

### Section 1516. Penalty.

Any person violating the provisions of Sections 1514 or 1515 shall be guilty of an offense and, upon the first conviction, shall be punished by a fine of not less than One Hundred Dollars ($100.00) nor more than Two Hundred Fifty Dollars ($250.00), excluding costs, fees and assessments or imprisonment in the City jail not exceeding thirty (30) days, or both such fine and imprisonment. On the second and every subsequent conviction, the party offending shall be fined not less than Two Hundred Fifty Dollars ($250.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments or by imprisonment in the City jail not less than thirty (30) days nor more than ninety (90) days, or both such fine and imprisonment.

*(Ord. No. 19128)*

### Section 1517. Air rifles and slingshots—Discharging prohibited—Transportation.

**A. Discharging air rifles and slingshots.** It shall be unlawful for any person to fire or discharge any loaded air rifle or slingshot within the corporate limits of the City. Every person violating this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments. The Chief of Police or any officer under the Chief's command is authorized to seize and confiscate any air rifle or slingshot used in violation of this section.

It shall not be a violation of this section if an air rifle or slingshot is discharged within a shooting range operated consistent with Section 1506 of this chapter and all other ordinances, rules and regulations of the City.

**B. Transporting air rifles and slingshots.** Except as otherwise provided by the provisions of the Oklahoma Self-Defense Act, 21 O.S.2001, §§ 1290.1, *et seq.*, or another provision of state statute, it shall be unlawful to transport a loaded air rifle or slingshot in a landborne motor vehicle over a public highway or roadway. However, an air rifle may be transported when a clip or magazine is loaded and not chamber loaded when transported in an exterior locked compartment of the vehicle or trunk of the vehicle.

*(Ord. Nos. 19156, 20524)*

### Section 1518. Each discharge a separate offense.

Each separate discharge of a firearm or air rifle made unlawful under any provision of this chapter shall constitute and be punishable as a separate offense under the provisions of this chapter.

*(Ord. Nos. 16482, 19156)*

### Section 1519. Weapons confiscation.

**A.** In addition to the penalty provided in this chapter, the Judge of the Municipal Court may order and adjudge any weapon, air rifle or firearm to be an instrument used in violation of the Revised Ordinances of the City of Tulsa and may order the same to be destroyed by the Chief of Police if such article has no value for a lawful purpose; but if it has any value for a lawful purpose, it may be ordered by the Judge to be held pending a hearing on a date set by the Judge to determine whether such weapon, air rifle or firearm shall be confiscated. Any person known to the Chief of Police to be claiming an interest in such weapon, air rifle or firearm shall be notified in writing of the hearing at least five (5) days prior thereto; provided, that notice given in open court to the person in whose possession the weapon, air rifle or firearm is found shall be sufficient as to him. Upon such hearing, the Court may order such weapon, air rifle or firearm sold unless it appears to the Court that the owner thereof did not participate in or have knowledge of such violation or of the intended use of such weapon, air rifle or firearm. The weapon, air rifle or firearm, if ordered sold, shall be sold at public auction by the Chief of Police upon the posting of a notice at the police station three (3) days prior thereto, and the proceeds shall be paid into the General Fund of the City of Tulsa.

**B.** Whenever a person under eighteen (18) years of age is detained or arrested by a law enforcement officer and is carrying any weapon, air rifle or firearm prohibited by Section 1514 of this chapter, every prohibited weapon, air rifle and firearm may be confiscated and forfeited to the confiscating authority. Such confiscation and forfeiture shall not require that criminal charges be filed against the minor. However, when a weapon, air rifle or firearm, confiscated pursuant to the provisions of this chapter, has been taken by a minor without the permission of the owner, the weapon, air rifle or firearm shall be returned to the owner, provided the possession of such weapon, air rifle or firearm by an adult is not otherwise prohibited by law.

*(Ord. Nos. 18067, 19156, 20524)*

### Section 1520. Slingshot defined.

The term "slingshot" as used in this chapter shall mean and include any instrument which propels an object through the air by means of an elastic band of material. A slingshot shall be also defined as a "weapon" as that term is used in this chapter. A slungshot shall not be considered a slingshot for the purposes of this chapter.

*(Ord. No. 20524)*

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## CHAPTER 16. HOTELS, MOTELS AND ROOMING HOUSES

Section 1600. Numbering of rooms.
Section 1601. Persons refused.
Section 1602. Registration of guests.
Section 1603. False registration.
Section 1604. Registration records preserved.
Section 1605. Minor guests—Reports.
Section 1606. Resistance to police.
Section 1607. Inspection of records.
Section 1608. Penalty.

### Section 1600. Numbering of rooms.

Any person engaged in the operation of any hotel, motel or rooming house shall cause each and every room and apartment or suite which is rented or let in such building to be numbered in a plain and conspicuous manner by some approved system of numbering, in such a manner that no two (2) rooms shall have the same number and so that the numbers shall increase or decrease, uniformly from one (1) room to the succeeding room or rooms and from one (1) floor to the succeeding floor or floors.

### Section 1601. Persons refused.

It shall be an offense for any operator, owner, manager or employee of any hotel, motel or rooming house to knowingly receive any person as a guest or to permit any person to remain as a guest or employee who comes within any of the following classifications.

**1.** A prostitute; or

**2.** Any person who solicits or arranges for immoral, illicit or licentious acts.

### Section 1602. Registration of guests.

Each and every person owning, conducting or operating a hotel, motel or rooming house is hereby required to keep a book or file in which the name, post office address, date of arrival and registration and date of departure shall be entered in the handwriting of the guest; provided, that the room assignment shall be added by the proprietor of the establishment. No person shall be received as a guest of any hotel, motel or rooming house who shall refuse to register as required by this chapter.

### Section 1603. False registration.

It shall be an offense for any person to falsely register or write or cause to be written in any hotel, motel or rooming house record or file any other than his true and full name by which he is known to the public.

### Section 1604. Registration records preserved.

Each and every person owning or operating any hotel, motel or rooming house shall faithfully keep and preserve all such registers and file records for each and every person entering the hotel, motel or rooming house as a guest for a period of not less than three (3) years from the date of the last registration made therein. It is the intent of this section that the register or file shall show at any time upon inspection a complete and full list of all registrations made within the last three (3) years with their respective dates.

### Section 1605. Minor guests—Reports.

Every person owning, conducting or operating a hotel, motel or rooming house is hereby required to report immediately the registration of any minor, under the age of eighteen (18) years, unaccompanied by his or her parent or guardian, to the Chief of Police. The report shall contain the name, age and place of residence of the minor.

### Section 1606. Resistance to police.

It shall be an offense for any person to refuse or obstruct admittance or offer resistance to any member of the Tulsa Police Department into the hallways, lobby, office, toilets, cooking apartments or any other apartment of any hotel, motel or rooming house, except such room or apartment as may be actually occupied by a person as a private room, which such peace officer would otherwise have a right to enter under the law or the Revised Ordinances of the City of Tulsa.

### Section 1607. Inspection of records.

Records of guests which are required by this chapter to be kept by proprietors of hotels, motels and rooming houses shall at all times be subject to the inspection of any police officer.

### Section 1608. Penalty.

Unless otherwise provided for in this chapter, any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments. Each day such violation is committed or permitted to continue shall constitute a separate offense.

*(Ord. Nos. 15523, 19605)*

## CHAPTER 17. PICKETING

Section 1700. Definitions.
Section 1701. Picketing unlawful because of manner in which conducted.
Section 1702. Picketing unlawful because of place at which conducted.
Section 1703. Conspiring to cause unlawful picketing.
Section 1704. Picket line an offense where picketing unlawful.
Section 1705. Penalty.

### Section 1700. Definitions.

As used in this chapter, the following terms shall be construed to include the meanings embraced in popular usage and also specifically the meanings given herein.

**A.** **Armed picketing** shall mean and include the carrying of any weapon or any instrument capable of being adapted for use as a weapon or means of intimidation by any person engaged or participating in picketing.

**B.** **Labor dispute** shall mean and include any and all disputes between an employer and his or its employees, and also all negotiations or efforts of trade unions and labor organizations of every kind to enter into or to continue any contract or contracts with an employer with reference to the terms or conditions of labor or the selection or recognition of a bargaining agent, regardless of whether there is any actual dispute between such employer and his or its then employees.

**C.** **Mass picketing** shall mean and include the congregation of persons engaged in picketing as herein defined in such numbers as to prevent or interfere with the free and unobstructed passage of traffic or pedestrians along any street, sidewalk, alley, railroad right-of-way or entrance into any place of business, factory or yard.

**D.** **Picketing** shall mean and include any method or device used to publicize grievances; particularly the walking, standing or loitering of a person upon or along any sidewalk, street or alley while engaged in the act of displaying any signs, placards or banners or verbally dissuading or attempting to dissuade persons from patronizing or entering a place of business.

**E.** **Picket line** shall mean and include the act of picketing by one (1) or more persons under such circumstances or with such banners, placards or other notices as, under then existing bylaws or obligations of any trade union or labor organization in the City of Tulsa, would expose any member of any of the organization to disciplinary action by such trade union or labor organization if such member should enter the place of business then being picketed.

### Section 1701. Picketing unlawful because of manner in which conducted.

It is an offense for any person to engage or participate in mass picketing, armed picketing or any picketing in which resort is had to violence, threats or acts of intimidation or physical coercion.

### Section 1702. Picketing unlawful because of place at which conducted.

It shall be an offense for any person in furtherance of or in connection with any labor dispute to engage in the act of picketing any of the following described places:

**A.** Any building, property, yard or other place belonging to, used by or occupied by the City of Tulsa;

**B.** Any public school;

**C.** Any charitable hospital;

**D.** Any private residence or domicile;

**E.** Any property of the employer except that plant, office, yard or place of business concerning employment in which such labor dispute exists; or

**F.** The property of any person other than the employer with whom such labor dispute exists.

### Section 1703. Conspiring to cause unlawful picketing.

It shall be an offense for any person or persons to combine, conspire to cause or procure to be done any picketing of any of the kinds declared herein to be an offense.

### Section 1704. Picket line an offense where picketing unlawful.

It shall be an offense for any person to advise, counsel, be a part of or otherwise participate in any picket line at any place at which picketing is unlawful or at any time when picketing is being conducted in an unlawful manner.

### Section 1705. Penalty.

Unless otherwise provided for in this chapter, any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

*(Ord. Nos. 15523, 19605)*

## CHAPTER 18. PUBLIC PROPERTY

Section 1800. Public property—Restrictions.
Section 1801. Trees and shrubs in public places.
Section 1802. Birds and animals—Protection.
Section 1803. Public grounds.
Section 1804. Tulsa Convention Center curfew.
Section 1805. Fire hydrants.
Section 1806. Penalty.

### Section 1800. Public property—Restrictions.

**A.** It shall be an offense for any person to do any of the following acts upon any public street, highway, alley, public place or upon or to any other public property, real, personal or mixed, belonging to the City of Tulsa or located within the city limits of the City of Tulsa, regardless of the purpose for which such property was dedicated, acquired or purchased, without the consent of the Council of the City of Tulsa:

**1.** To take or attempt to take possession of any of the property in any manner;

**2.** To take up one's abode upon the property;

**3.** To build any structure of any kind upon any of the property;

**4.** To fence in or cultivate any of the property;

**5.** To dump boxes, trash, litter, paper, refuse matter, tin cans, garbage or other forms of solid waste on any of the property; or

**6.** To drive any vehicle of any kind, regardless of the means of powering the same, upon or across any of such property, except where the streets, highways, alleys or roadways have been properly laid out and open to the public.

**B.** It shall be an offense for any person to do any of the following acts upon any public park, mall, civic center or other public property, including any and all realty and improvements thereon owned or leased by the City of Tulsa or wherein the City is the beneficiary of the use and benefit of the realty and improvements for the use, benefit and enjoyment of its citizens:

**1.** To be drunk or intoxicated in or upon the property from drinking or consuming intoxicating liquor, intoxicating substance or intoxicating compound or from the inhalation of glue, paint or other intoxicating substances; or

**2.** To be drunk or intoxicated in or upon the property from any cause and to disturb the peace of any person.

**C.** It shall be an offense for any person to maliciously or willfully deface, injure, destroy, besmear or bedaub any building, sidewalk, street, pavement, curbing, water or sewer line or other real or personal property of the City of Tulsa.

**D.** It shall be an offense for any person to lodge in, on or about any automobile, truck, trailer, camper or similar vehicle in any public street, highway, alley, public park area, public way, public right-of-way, public parking lot or any other public property owned or leased by the City of Tulsa or wherein the City is the beneficiary of the use and benefit of the realty and improvement for the use, benefit and enjoyment of its citizens without the express permission of the governmental authority controlling the property.

**E.** Any person violating any of the provisions of this section shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Hundred Dollars ($100.00), excluding costs, and/or by imprisonment in the City jail for a period of not less than five (5) days nor more than thirty (30) days.

*(Ord. Nos. 15107, 17979; Ord. No. 23918, § 1, 5-23-2018)*

### Section 1801. Trees and shrubs in public places.

It shall be an offense for any person to maliciously or willfully cut down or destroy or in any manner injure any tree, shrubbery or flower planted or growing in or on any street, park, alley or public grounds.

### Section 1802. Birds and animals—Protection.

It shall be an offense for any person to kill, wound, maim, injure or harm in any manner any bird or animal; or to throw, fire or shoot any gun, pistol or other deadly weapon or any stone, arrow or other missile at such bird or animal; or to break, tear down or destroy any bird's nest or the eggs or other contents of their nests.

### Section 1803. Public grounds.

It shall be an offense for any person to maintain, erect or permit the erection of any building, hut, hotel, shanty, tent or other structure under his control upon any street, sidewalk, alley or other public grounds.

### Section 1804. Tulsa Convention Center curfew.

The curfew time for the Tulsa Convention Center is 2:00 a.m., and it shall be an offense for any person to enter upon or remain upon the premises in disregard of posted curfew hours, between the hours of 2:00 a.m. and 5:00 a.m., provided that the provisions of this section shall not apply to employees of the Tulsa Convention Center, permittees of the Tulsa Convention Center or other persons whose presence upon the premises is authorized by the Tulsa Convention Center Manager. For the purposes of this section, the term "Tulsa Convention Center" shall be that property owned by the City of Tulsa which is located within fifty (50) feet from the outside walls of the building, except for property dedicated as public street right-of-way.

*(Ord. No. 15836)*

### Section 1805. Fire hydrants.

It shall be an offense for any person to place or cause to be placed upon or about any fire hydrant any paint, rubbish, building material, fence or other obstruction of any character; to hitch or cause to be hitched to any fire hydrant any animal; to fasten on to any fire hydrant any guy rope or brace; or to place any vehicle against any hydrant. Any fence or obstruction now standing in violation of this section shall, within one (1) day after notice has been served by the Fire Department, be removed by the owner of the adjoining premises or the occupant of the premises to a distance which will provide clearance of the fire hydrant.

*(Ord. No. 15836)*

### Section 1806. Penalty.

Unless otherwise provided for in this chapter, any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine

of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments. Each day such violation is committed or permitted to continue shall constitute a separate offense.

*(Ord. Nos. 15836, 19605)*

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## CHAPTER 19. FALSE PRETENSES AND FRAUDS

Section 1900. Obtaining or attempting to obtain property by trick or deception, false statement or pretenses, confidence game.
Section 1901. Definitions.
Section 1902. Unauthorized use of credit and debit cards.
Section 1903. False weights and measures.
Section 1904. Reserved.
Section 1905. Reserved.
Section 1906. Reserved.
Section 1907. Slugs—Tokens.
Section 1908. False reporting of crime or police misconduct.
Section 1909. Intent to defraud.
Section 1910. Defrauding restaurants, hotels.
Section 1911. Embezzlement.
Section 1912. Sale, delivery or receipt of forged notes or instruments.
Section 1913. Possession of forged notes or instruments.

### Section 1900. Obtaining or attempting to obtain property by trick or deception, false statement or pretenses, confidence game.

It shall be unlawful and an offense for any person with the intent to cheat or defraud to obtain or attempt to obtain from any person any money, property or valuable thing, of the value of less than One Thousand Dollars ($1,000.00) by means or use of any trick or deception; false or fraudulent representation, statement or pretense; or by any other means, instrument or device, commonly called the "confidence game"; or by means or use of any or bogus check; or by any other written, printed or engraved instrument or spurious coin. Any person violating any of the provisions of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than One Thousand Dollars ($1,000.00), excluding costs, fees, and assessments, imprisonment in the City Jail for a period of not more than six (6) months, or by both such fine and imprisonment.

*(Ord. No. 22617, § 1, 1-12-2012; Ord. No. 22856, § 1, 4-18-2013; Ord. No. 24826, § 6, 5-18-2022)*

### Section 1901. Definitions.

When used in this chapter, the following words and phrases shall have the meanings given herein:

**A.** **Actual Notice** shall mean and include either notice given in person or in writing, Such actual notice in writing shall be presumed to have been given when deposited as registered or certified mail in the United States Mail and addressed to such person at his last known address.

**B.** **Cardholder** shall mean the person or organization named on the face of a credit card or a debit card to whom or for whose benefit the credit card or debit card is issued.

**C.** **Credit** shall mean an arrangement or understanding with the bank, depository or seller of goods or livestock for the payment of such check, draft or order.

**D.** **Credit Card** shall mean any instrument or device, whether known as a credit card, credit plate, charge plate or by any other name, issued with or without fee by an issuer

for the use of the cardholder in obtaining money, goods, services or anything else of value on credit and all such credit cards lawfully issued shall be considered the property of the cardholders or issuer for all purposes.

**E. Coin-operated machine** shall mean and include any parking meter, vending machine, service meter, coin box telephone or other receptacle designed to receive or be operated by lawful coin of the United States of America.

**F. Debit Card** shall mean any instrument or device, whether known as a debit card or by any other name, issued with or without fee by an issuer for the use of the cardholder in depositing, obtaining or transferring funds from a consumer banking electronic facility.

**G. False or bogus check** or **checks** shall mean checks or orders, including those converted to electronic fund transfer, which are not honored on account of insufficient funds of the maker to pay same or because the check or order was drawn on a closed account or on a non-existent account when such checks or orders are given:

**1.** In exchange for money or property;

**2.** In exchange for any benefit or thing of value; or

**3.** As a down payment for the purchase of any item of which the purchaser is taking immediate possession, as against the maker or drawer thereof.

The making, drawing, uttering or delivering of a check, draft, or order, payment of which is refused by the drawee, shall be *prima facie* evidence of intent to defraud and the knowledge of insufficient funds in, or credit with, such bank or other depository; provided such maker or drawer shall not have paid the drawee thereof the amount due thereon, together with the protest fees, within five (5) days from the date the same is presented for payment; and provided, further, that said check or order is presented for payment within thirty (30) days after same is delivered and accepted.

A check offered for the purchase of goods or livestock that is refused by a drawee shall not be considered to be an extension of credit by the seller of goods or livestock to maker or drawer of the check.

**H. Spurious coin** shall mean and include any token, disk, blank, slug, washer, sweated, mutilated, false or counterfeited coin or other device, whether solid or otherwise used in substitution for lawful coin of the United States of America in the operation, use or enjoyment of any coin-operated machine.

*(Ord. No. 22856, § 2, 4-18-2013)*

### Section 1902. Unauthorized use of credit and debit cards.

Any person who knowingly uses or attempts to use in person, by telephone or by the Internet, for the purpose of obtaining credit, or for the purchase of goods, property or services, or for the purpose of obtaining cash advances in lieu of these items, or to deposit, obtain or transfer funds, either a credit card or a debit card which has not been issued to such person or which is not used with the consent of the person to whom issued or a credit card or a debit card which has been revoked or cancelled by the issuer of such card and actual notice has been given to such person, or a credit card or a debit card which is false, counterfeit or nonexistent shall be guilty of an unlawful offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees, and assessments, imprisonment in the City Jail for a period of not more thirty (30)

days, or both such fine and imprisonment, if the amount of the credit or purchase or funds deposited, obtained or transferred by such use does not exceed One Thousand Dollars ($1,000.00).

*(Ord. No. 22856, § 3, 4-18-2013; Ord. No. 24826, § 7, 5-18-2022)*

**Section 1903. False weights and measures.**

If any person with intent to defraud, use a false balance, weight or measure, in the weighting or measuring of anything whatever that is purchased, sold, bartered, shipped or delivered, for sale or barter, or that is pledged, or given in payment, he shall be guilty of a misdemeanor offense and be punished by a fine not exceeding One Hundred Dollars ($100.00) nor less than Five Dollars ($5.00), excluding costs, fees and assessments, and/or by imprisonment in the City Jail for a period not more than thirty (30) days.

*(Ord. No. 22856, § 4, 4-18-2013)*

**Section 1904. Reserved.**

**Editor's note—**Ord. No. 22856, § 5, adopted April 18, 2013, repealed § 1904, which pertained to fraudulent impersonation. See also the Code Comparative Table.

**Section 1905. Reserved.**

**Editor's note—**Ord. No. 22856, § 5, adopted April 18, 2013, repealed § 1905, which pertained to falsely obtaining signature. See also the Code Comparative Table.

**Section 1906. Reserved.**

**Editor's note—**Ord. No. 22856, § 5, adopted April 18, 2013, repealed §1906, which pertained to falsely collecting for charity. See also the Code Comparative Table.

**Section 1907. Slugs—Tokens.**

It shall be unlawful for any person by means of any spurious coin or by any other means, method, trick or device whatsoever not lawfully authorized by the owner, lessee, or licensee of any coin-operated machine operated in furtherance of or connection with the sale, use or enjoyment of any service, facility or privilege, knowingly shall operate or cause to be operated, or shall attempt to operate any such coin-operated machine or whoever shall take, obtain, accept or receive from or by means of any such coin-operated machine any article of value or service or the use or enjoyment of any service, facility or privilege by use of any spurious coin shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by a fine of not more than One Hundred Dollars ($100.00), excluding costs, fees and assessments, and/or by imprisonment in the City Jail for a period not more than thirty (30) days.

*(Ord. No. 22856, § 6, 4-18-2013)*

**Section 1908. False reporting of crime or police misconduct.**

**A.** It shall be unlawful to willfully, knowingly and without probable cause make a false report to any person of any crime or circumstances indicating the possibility of crime having been committed, including the unlawful taking of personal property, which report causes or encourages the exercise of police action or investigation.

**B.** It shall be unlawful for any person to willfully, knowingly and without probable cause make a report to any municipal officer or employee alleging misconduct by any sworn police officer while in the performance of his or her official duties, if such report is made falsely and with either:

**1.** Actual malice toward the person who is the subject of the report; or

**2.** With reckless disregard for the truth of the incident contained in the report.

**C.** Any person convicted of violating this section shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by a fine not exceeding Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and/or imprisonment in the City Jail for a period not more than ninety (90) days.

*(Ord. Nos. 16336, 16636; Ord. No. 22856, § 7, 4-18-2013)*

### Section 1909. Intent to defraud.

Whenever, by any of the provisions of this chapter, an intent to defraud is required in order to constitute any offense, it is sufficient if an intent appears to defraud any person.

*(Ord. No. 22856, § 8, 4-18-2013)*

### Section 1910. Defrauding restaurants, hotels.

It shall be unlawful and an offense for any person to obtain food, lodging, services or other accommodations at any hotel, inn, restaurant, boarding house, rooming house, motel, or auto camp, with intent to defraud the owner or keeper thereof, if the value of such food, lodging, services, or other accommodations is One Thousand Dollars ($1,000.00) or less. Any person violating any of the provisions of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine not exceeding Five Hundred Dollars ($500.00), excluding costs, fees, and assessments, imprisonment in the City Jail for a period not exceeding ninety (90) days, or both such fine and imprisonment.

*(Ord. No. 22617, § 2, 1-12-2012; Ord. No. 22856, § 9, 4-18-2013; Ord. No. 24826, § 8, 5-18-2022)*

### Section 1911. Embezzlement.

**A.** Embezzlement is the fraudulent appropriation of property with a value of less than One Thousand Dollars ($1,000.00) of any person or legal entity, legally obtained, to any use or purpose not intended or authorized by its owner, or the secretion of the property with the fraudulent intent to appropriate it to such use or purpose, under any of the following circumstances:

**1.** Where the property was obtained by being entrusted to that person for a specific purpose, use, or disposition and shall include, but not be limited to, any funds "held in trust" for any purpose;

**2.** Where the property was obtained by virtue of a power of attorney being granted for the sale or transfer of the property;

**3.** Where the property is possessed or controlled for the use of another person;

**4.** Where the property is to be used for a public or benevolent purpose;

**5.** Where any person diverts any money appropriated by law from the purpose and object of the appropriation;

**6.** Where any person fails or refuses to pay over to the City of Tulsa, or other appropriate authority, any tax or other monies collected in accordance with state law or municipal ordinance, and who appropriates the tax or monies to the use of that person, or to the use of any other person not entitled to the tax or monies;

**7.** Where the property is possessed for the purpose of transportation, without regard to whether packages containing the property have been broken;

**8.** Where any person removes crops from any leased or rented premises with the intent to deprive the owner or landlord interested in the land of any of the rent due from that land, or who fraudulently appropriates the rent to that person or any other person; or

**9.** Where the property is possessed or controlled by virtue of a lease or rental agreement, and the property is willfully or intentionally not returned within ten (10) days after the expiration of the agreement.

Embezzlement does not require a distinct act of taking, but only a fraudulent appropriation, conversion, or use of property.

**B.** Embezzlement shall be punished as follows: Any person convicted of violating this section shall be guilty of an unlawful offense and, upon conviction, shall be punished by a fine not exceeding One Thousand Dollars ($1,000.00), excluding costs, fees and assessments, imprisonment in the City Jail for a period of not more than six (6) months, or by both such fine and imprisonment.

**C.** Upon any prosecution for embezzlement it is a sufficient defense that the property was appropriated openly and avowedly, and under a claim of title preferred in good faith even though such claim is untenable. But this provision shall not excuse the retention of the property of another, to offset or pay demand held against such person.

**D.** The fact that the accused intended to restore the property embezzled is no ground of defense, or of mitigation of punishment, if it has not been restored before an information has been laid before a judge or magistrate, charging the commission of the offense.

*(Ord. No. 15821; Ord. No. 22856, § 10, 4-18-2013; Ord. No. 24826, § 9, 5-18-2022)*

**Section 1912. Sale, delivery or receipt of forged notes or instruments.**

Every person who sells, exchanges or delivers for any consideration any forged or counterfeited promissory note, check, bill, draft, or other evidence of debt, or engagement for the payment of money absolutely, or upon any contingency, knowing the same to be forged or counterfeited, with intent to have the same uttered or passed, or who offers any such note or other instrument for sale, exchange or delivery for any consideration, with the like knowledge and intent, or who receives any such note or other instrument upon a sale, exchange or delivery for any consideration with the like knowledge and intent, if the value of the instrument is less than One Thousand Dollars ($1,000.00), the person shall, upon conviction, be guilty of the unlawful offense of forgery punishable by imprisonment for a term not to exceed six (6) months, a fine not to exceed One Thousand Dollars ($1,000.00), or by both such imprisonment and fine.

*(Ord. No. 24826, § 10, 5-18-2022)*

**Section 1913. Possession of forged notes or instruments.**

Every person who, with intent to defraud, has in their possession any forged, altered or counterfeit negotiable note, bill, draft or other evidence of debt issued or purporting to have

been issued by any corporation or company duly authorized for that purpose by the laws of this state or of any other state, government or country, the forgery of which has previously been declared to be punishable, knowing the same to be forged, altered or counterfeited, with intent to utter the same as true or as false, or to cause the same to be so uttered, if the value of the instrument is less than One Thousand Dollars ($1,000.00), the person shall be guilty of the unlawful offense of forgery punishable by imprisonment for a term not to exceed six (6) months, a fine not to exceed One Thousand Dollars ($1,000.00), or by both such imprisonment and fine.

*(Ord. No. 24826, § 11, 5-18-2022)*

## CHAPTER 20. LARCENY

Section 2000. Petit larceny.
Section 2001. Larceny of lost property.
Section 2002. Larceny of electric current, gas and water.
Section 2003. Larceny of merchandise from retailer or wholesaler—First offense.
Section 2004. Larceny of cable television signals.
Section 2005. Larceny of merchandise from retailer or wholesaler—Punishment—Second or subsequent offense.
Section 2006. Penalty.
Section 2007. Receiving stolen property—Reasonable inquiry required.

### Section 2000. Petit larceny.

Petit larceny shall be unlawful and an offense and shall be defined as the taking, by fraud or stealth, of personal property with the intent to deprive another thereof, when such property is of value not exceeding One Thousand Dollars ($1,000.00). The definition of personal property shall have the meaning normally ascribed to it and shall include the instruments, items or things described in this section.

**A. Written Instruments.** When the personal property consists of any evidence of debt, its value shall be determined by:

**1.** The amount of money which is due thereon or secured to be paid and remaining unsatisfied or which in any contingency might be collected thereon;

**2.** The value of the property, the title to which is shown thereby; or

**3.** The sum which might be recovered in the absence thereof.

**B. Passage Ticket.** When the personal property consists of any ticket or other paper or writing entitling the holder or proprietor thereof to passage upon any railroad, vessel or other public conveyance, the value of such ticket shall be the price at which tickets entitling a person to like passage are usually sold by the proprietor of such conveyance.

**C. Fixtures.** Any fixtures or part of realty, the instant it is severed from the realty, shall be deemed personal property.

**D. Securities Not Issued.** Instruments for the payment of money, evidence of debt, public security, or passage ticket, completed and ready to be issued or delivered, although the same have never been issued or delivered by the makers thereof to any person as a purchaser or owner, shall be deemed personal property.

*(Ord. Nos. 17470, 20184; Ord. No. 24826, § 1, 5-18-2022)*

### Section 2001. Larceny of lost property.

One who finds lost property of value not exceeding One Thousand Dollars ($1,000.00), under circumstances which gives the person knowledge or means of inquiry as to the true owner, and who appropriates such property to their own use or to the use of another person who is not entitled to it, without having first made such effort to find and restore the property to the owner as the circumstances render reasonable and just, shall be guilty of petit larceny.

*(Ord. Nos. 17470, 20184; Ord. No. 24826, § 2, 5-18-2022)*

**Section 2002. Larceny of electric current, gas and water.**

Any person who, with intent to defraud, connects or causes to be connected any pipe, wire or other instrument or contrivance or who uses a connection with any pipe provided for the purpose of conducting water or gas or with any wire or other electrical conductor provided for the purpose of conducting electricity so as to conduct such gas, water or electrical current to a point where the gas, water or electrical current may be consumed without its passing through meters provided for registering the quantity consumed or in any manner so as to evade payment therefor, whether the gas, water or electrical current is furnished through a meter or not, shall be guilty of an offense. Every person who with like intent injures or alters any gas, electric or water meter or obstructs its action is guilty of an offense.

**Section 2003. Larceny of merchandise from retailer or wholesaler—First offense.**

Any person convicted of larceny involving merchandise held for sale in a retail or wholesale establishment wherein the value of the goods or property of any kind is taken is less than One Thousand Dollars ($1,000.00), shall be punished for the first conviction by imprisonment in the City Jail for a period of not more than thirty (30) days and by a fine of not less than Ten Dollars ($10.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees, and assessments.

*(Ord. Nos. 19605, 20328; Ord. No. 24826, § 3, 5-18-2022)*

**Section 2004. Larceny of cable television signals.**

It shall be an offense for any person:

**A.** To make or use any unauthorized connection, whether physically, electrically, acoustically, inductively or otherwise, with any part of a cable television system for the purpose of enabling himself or others to receive any television signals, radio signals, pictures, programs, sounds or any other information or intelligence transmitted over a cable television system without payment for the same to the owner or operator of the cable television system; or

**B.** With intent to defraud, to receive, intercept, view or use television signals, radio signals, pictures, programs, sounds or any other information or intelligence transmitted over a cable television system without payment for the same to the owner or operator of the cable television system.

**Section 2005. Larceny of merchandise from retailer or wholesaler—Punishment—Second or subsequent offense.**

Larceny of merchandise held for sale in a retail or wholesale establishment shall be punishable as follows: If it be shown, in the trial of a case in which the value of the goods or property of any kind is taken is of value not exceeding One Thousand Dollars ($1,000.00), that the defendant has been once before convicted of the same offense, the defendant shall, upon a second or subsequent conviction, be punished by imprisonment in the City Jail for not less than thirty (30) days nor more than six (6) months, and by a fine not exceeding One Thousand Dollars ($1,000.00), excluding costs, fees and assessments.

*(Ord. Nos. 17470, 19605, 20184; Ord. No. 24826, § 4, 5-18-2022)*

**Section 2006. Penalty.**

Unless otherwise provided for herein, any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a

fine of not less than Ten Dollars ($10.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and/or by imprisonment in the City jail for a period of not more than six (6) months.

*(Ord. Nos. 15499, 20328)*

**Section 2007. Receiving stolen property—Reasonable inquiry required.**

Every person who buys or receives, in any manner, upon any consideration, personal property of a value of less than One Thousand Dollars ($1,000.00) that has been stolen, embezzled, obtained by false pretense or robbery, knowing or having reasonable cause to believe the same to have been stolen, embezzled, obtained by false pretense, or robbery, or who conceals, withholds, or aids in concealing or withholding such property from the owner shall, upon conviction, be guilty of an unlawful offense punishable pursuant to Section 2006 of this Chapter."

*(Ord. No. 24826, § 5, 5-18-2022)*

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## CHAPTER 21. PRIVATE PROPERTY

Section 2100. Entering buildings or structures with certain intent.
Section 2101. Interference with electrical wires and current.
Section 2102. Malicious mischief.
Section 2103. Injury to poles.
Section 2104. Destruction of trees and vegetation.
Section 2105. Tampering with vehicles.
Section 2106. Trespassing.
Section 2107. Removal of real estate signs.
Section 2108. Tampering with cable television system.
Section 2109. Penalty.

### Section 2100. Entering buildings or structures with certain intent.

**A.** It shall be an offense for any person under circumstances not amounting to any burglary, to enter any building or part of any building, booth, tent, warehouse, railroad car, vessel or other structure or erection with intent to commit any felony, larceny or malicious mischief.

**B.** It shall be an offense for any person, without intention to commit any crime within, to willfully and intentionally break and enter into any building, trailer, vessel or other premises used as a dwelling, without the permission of the owner or occupant, except in the case and manner allowed by law.

**C.** Any person convicted of violating this section shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period of not more than six (6) months, or by both such fine and imprisonment.

*(Ord. Nos. 17160, 19605)*

### Section 2101. Interference with electrical wires and current.

It shall be an offense for any person to:

**A.** Interfere with, change, modify, move or obstruct any electrical wiring being installed in or on any building, pole or fixture without lawful authority or the consent of the owner thereof;

**B.** In any manner prevent electrical current from passing through any meter or meters belonging to any person engaged in the manufacture or sale of electricity for light, power or other purposes without proper or lawful authority from such person; or

**C.** In any manner divert any electrical current from any wiring belonging to any person engaged in the manufacture or sale of electricity for light, power or other purposes without the consent in writing of such person.

### Section 2102. Malicious mischief.

It shall be a misdemeanor offense for any person to maliciously or willfully injure, deface or destroy any real or personal property not his own, the damage, defacement or destruction of which causes a loss which is valued at less than One Thousand Dollars ($1,000.00). Any person convicted of violating this section shall be punished by a fine of not more than Five

Hundred Dollars ($500.00), excluding costs, fees and assessments or by imprisonment in the City jail for a period of not more than six (6) months, or by both such fine and imprisonment.

*(Ord. Nos. 15821, 19605; Ord. No. 23054, § 1, 2-20-2014)*

**Section 2103. Injury to poles.**

It shall be an offense for any person to throw any missile at any electrical light pole, telegraph pole, telephone pole or any pole used for the purpose of traffic control, either by casting such missile with the hand or by projecting such missile with any device, sling, pistol, air gun or other gun, or to throw or project such missile at any fixtures, lamps, attachments, wires, cables or braces used with such pole.

**Section 2104. Destruction of trees and vegetation.**

It shall be an offense for any person to willfully, maliciously or without lawful authority, cut down, root up, sever, injure or destroy any fruit tree, shade or ornamental tree, cultivated root or plant, grape or strawberry vine, shrub or bush whatsoever which is the property of another; or to pick, destroy or carry away therefrom or in any way interfere with any part of the fruit thereof; or to trespass upon the premises of another without lawful intent and authority.

**Section 2105. Tampering with vehicles.**

It shall be unlawful and an offense for any person to:

**A.** With intent and without right, injure or tamper with any vehicle or in any manner damage any part or portion of a vehicle or any accessories, appurtenances or attachments to such vehicle; or

**B.** With intent and without right, climb into or upon a vehicle, whether in motion or at rest; attempt to manipulate any of the levers, starting mechanism, brakes or other mechanism or device of a vehicle while it is at rest and unattended; or set in motion any vehicle while it is at rest and unattended.

**C.** Drive or attempt to drive any automobile, for joyriding or any other purpose, or to manipulate or meddle with any of its machinery or appliances without the consent of the owner of such automobile or motor vehicle.

Any person convicted of a violation of any of the provisions of this section shall be punished by a fine of not more than One Thousand Dollars ($1,000.00), excluding costs, fees, and assessments, by imprisonment in the City Jail for a period of not more than thirty (30) days, or both such fine and imprisonment.

*(Ord. No. 24828, § 2, 5-18-2022)*

**Section 2106. Trespassing.**

**A.** Trespassing is hereby declared to be an offense and shall be defined as follows:

**1.** Each and every actual entry upon the premises of another person's real property, public or private, without the owner's or occupant's consent thereof, whether expressed or implied;

**2.** Each and every entry upon any public or private premises which is posted or where warning has been published to stay out of and off the premises;

**3.** Each and every entry in or upon any public property, except at times and upon conditions when it is subject to public use;

**4.** The use of any public building, except for the purpose of transacting business with a public corporation, unless the manner, purpose and extent of its use is first presented to and the consent given by the City of Tulsa;

**5.** Remaining upon the premises of another, whether public or private, and refusing to leave the premises forthwith after demand by the owner or occupant;

**6.** Remaining upon any property owned by or in the possession of the Tulsa Public School System or any parochial school in the City of Tulsa after such person has been requested to leave and vacate such school premises by any faculty member, principal, duly licensed security guard or police officer unless permission has been given by a faculty member, principal or designated school employee;

**7.** Remaining on private property at any time other than during posted hours of business operation after having been directed to vacate such premises by a police officer; provided, however, that the provisions to this subsection shall not apply to persons, including employees, whose presence upon such premises is authorized by the owner or by a person in lawful possession of such premises; nor shall the provisions of this subsection apply unless hours of business operation are posted upon such premises; or

**8.** Returning to private property before the posted time of opening for business operation on the next business day after having been directed to vacate such premises under the terms of Subsection 2106.A.7.

**B. Penalty.**

**1.** Any person, upon conviction for a first violation of this section, shall be punished by a fine not to exceed Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

**2.** Any person, upon conviction for a second violation of this section, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by confinement in the City jail for a period of not more than ten (10) days or by both such fine and imprisonment.

**3.** Each day such violation is committed shall constitute a separate offense.

**4.** Prior to accepting a plea for this section, the Court shall inquire as to whether the defendant would like to be considered for diversion or specialty court programs available at the Tulsa Municipal Court.

*(Ord. No. 15046; Ord. No. 25185, § 1, 11-29-2023; Ord. No. 25272, § 1, 3-27-2024)*

## Section 2107. Removal of real estate signs.

It shall be an offense for any person to take, carry away or remove any sign posted on property, which sign is designed to be used by real estate brokers in and for the sale or rental of real property, without permission from the owner or the real estate broker whose name appears on the sign.

### Section 2108. Tampering with cable television system.

It shall be an offense for any person, without the consent of the owner or operator thereof, to willfully tamper with, remove or injure any cable, wires or other equipment used for the distribution of television signals, radio signals, pictures, programs, sounds or any other information or intelligence transmitted over a cable television system.

*(Ord. No. 13538)*

### Section 2109. Penalty.

Unless otherwise provided for in this chapter, any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

*(Ord. Nos. 15523, 19605)*

## CHAPTER 22. PUBLIC PROTECTIONS

Section 2200. Exposing minors to harmful materials—Penalty ("Anti-Display Ordinance").
Section 2201. Drilling and mining prohibited.
Section 2202. Public nuisance.
Section 2203. Penalty.
Section 2204. Fire escapes.
Section 2205. Fortune telling, phrenology, palmistry and faking.
Section 2206. Abandonment of refrigerators and iceboxes in places accessible to children—Penalty.
Section 2207. Penalty.
Section 2208. Use of tobacco products and vapor products in certain places prohibited.
Section 2209. Business hours for entertainment clubs.
Section 2210. Definitions.
Section 2211. Furnishing or sale of tobacco, nicotine, or vapor products to minors.
Section 2212. Reserved.
Section 2213. Distribution of tobacco product, nicotine product or vapor product samples.
Section 2214. Sale of tobacco products except in original, sealed package.
Section 2215. Signs in retail establishments required.
Section 2216. Notice to retail employees.
Section 2217. Vending machines sales restricted.
Section 2218. Display or sale of tobacco, nicotine, or vapor products.
Section 2219. Restrictions on manner of enforcement.

### Section 2200. Exposing minors to harmful materials—Penalty ("Anti-Display Ordinance").

**A. Definitions.**

**1. Minor** means any unmarried person under the age of eighteen (18) years.

**2. Harmful to minors** means that quality of any description, exhibition, presentation or representation in whatever form of nudity, sexual conduct, sexual excitement or sado-masochist abuse when the material or performance, taken as a whole, has the following characteristics:

**a.** The average adult person applying contemporary community standards would find that the material or performance has a predominant tendency to appeal to a prurient interest in sex to minors;

**b.** The average adult person applying contemporary community standards would find that the material or performance depicts or describes nudity, sexual conduct, sexual excitement or sado-masochistic abuse in a manner that is patently offensive to prevailing standards in the adult community with respect to what is suitable for minors; and

**c.** The material or performance lacks serious literary, scientific, artistic or political value for minors.

**3. Nudity** means the showing of the human male or female genitals, pubic area or buttocks with less than full opaque covering; the showing of the female breast with less than a full opaque covering of any portion thereof below the top of the nipple; or the depiction of covered male genitals in a discernibly turgid state.

4. **Sexual conduct** means acts of masturbation, homosexuality, sexual intercourse or physical contact with a person's clothed or unclothed genitals, pubic area, buttocks or if such person be a female, breast.
5. **Sexual excitement** means the condition of human male or female genitals when in a state of sexual stimulation or arousal.
6. **Sado-masochistic abuse** means flagellation or torture by or upon a person clad in undergarments, a mask or bizarre costume or the condition of being fettered, bound or otherwise physically restrained on the part of one so clothed.
7. **Material** means any book, magazine, newspaper, pamphlet, poster, print, picture, figure, image, description, motion picture film, record, recording tape, CD-ROM disk, Magnetic Disk Memory, Magnetic Tape Memory, video tape, computer software or video game.
8. **Performance** means any motion picture, film, video tape, played record, phonograph or tape, preview, trailer, play, show, skit, dance or other exhibition performed or presented to or before an audience of one (1) or more with or without consideration.
9. **Knowingly** means having general knowledge of, or reason to know, or a belief of grounds for belief which warrants further inspection or inquiry of both:
   a. The character and content of any material or performance which is reasonably susceptible of examination by the defendant; and
   b. The age of the minor; however, an honest mistake shall constitute an excuse from liability hereunder if the defendant makes a reasonable, bona fide attempt to ascertain the true age of such minor.
10. **Person** means any individual, partnership, association, corporation or other legal entity of any kind.
11. **A reasonable, bona fide attempt** means an attempt to ascertain the true age of the minor by requiring production of a driver's license, marriage license, birth certificate or other governmental or educational identification card or paper and not relying solely on the oral allegations or apparent age of the minor.

**B. Offenses.** No person having custody, control or supervision of any commercial establishment shall knowingly:

1. Display material which is harmful to minors in such a way that minors as a part of the invited general public will be exposed to view such material; provided, however, that a person shall be deemed not to have "displayed" material harmful to minors if the material is kept behind devices commonly known as "blinder racks" so that the lower two-thirds (⅔) of the material is not exposed to view;
2. Sell, furnish, present, distribute, allow to view or otherwise disseminate to a minor, with or without consideration, any material which is harmful to minors; or
3. Present to a minor or participate in the presenting to a minor, with or without consideration, any performance which is harmful to a minor.

**C. Defenses.** It shall be an affirmative defense to any prosecution under this section that the material or performance involved was displayed, presented or disseminated to a minor at a recognized and established school, church, museum, medical clinic, hospital, public library, governmental agency or quasi-governmental agency; and persons acting

in their capacity as employees or agents of such persons, organizations or institutions present or disseminate such material or performance for a bona fide governmental, educational or scientific purpose.

**D. Penalty.** Any person violating any provisions of this section shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00) and/or by imprisonment in the City jail for not more than ninety (90) days, excluding costs.

*(Ord. Nos. 16635, 20184)*

### Section 2201. Drilling and mining prohibited.

It shall be an offense for any person or his agent, servant or employee to hereafter drill, mine or produce or cause to be drilled, mined or produced any oil, gas, coal or other mineral, or to perform any work or labor of any kind upon or in connection with the drilling, mining or producing of oil, gas, coal or other products; however, it shall not be an offense to do any of the above under the following conditions:

**A.** When the operation or maintenance of any oil, gas or mining operation was being lawfully carried on before the effective date of this ordinance; or

**B.** When the cleaning out or plugging of oil and gas wells has been determined necessary, by resolution or ordinance of the City of Tulsa, to be in the best interest of the public health, safety and welfare.

*(Ord. No. 128)*

### Section 2202. Public nuisance.

It shall be an offense for any person to commit any public nuisance, the punishment for which is not otherwise prescribed, or willfully to omit to perform any legal duty relating to the removal of a public nuisance.

### Section 2203. Penalty.

Any person convicted of a violation of Sections 2201 or 2202 hereof shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs. Each day such violation is committed or permitted to continue shall constitute a separate offense.

*(Ord. No. 15821)*

### Section 2204. Fire escapes.

It shall be an offense for any person, except the owner or occupant of the premises, a policeman or member of the Fire Department, to enter upon or stand upon any fire escape or use the same in any manner except for the purpose of escaping from fire.

### Section 2205. Fortune telling, phrenology, palmistry and faking.

It shall be an offense for any person to practice in fortune telling, phrenology, palmistry or reading or to be a fakir for a fee or valuable consideration of any kind.

### Section 2206. Abandonment of refrigerators and iceboxes in places accessible to children—Penalty.

Any person, firm or corporation who abandons or discards in any place accessible to children any refrigerator, icebox or ice chest of a capacity of one and one-half (1½) cubic feet

or more and which has an attached lid or door which may be opened or fastened shut by means of an attached latch or magnetic seal or who, being the owner, lessee or manager of such place, knowingly permits such abandoned or discarded refrigerator, icebox or ice chest to remain in such condition shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for not more than ninety (90) days.

*(Ord. No. 15821)*

**Section 2207. Penalty.**

Any person convicted of violating Section 2204 or Section 2205 of this chapter shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments. Each day such violation is committed or permitted to continue shall constitute a separate offense.

*(Ord. Nos. 15523, 19605)*

**Section 2208. Use of tobacco products and vapor products in certain places prohibited.**

It is the intent of the City of Tulsa, in enacting this section, to provide for the public health, safety, and welfare by discouraging the inherently dangerous behavior of tobacco product and vapor product use around non-users, especially children; by protecting the public from exposure to secondhand smoke where people work, play, and learn; by reducing the potential for children to wrongly associate tobacco product and vapor product use with a healthy lifestyle; and by affirming and promoting a healthy environment in the City.

**A. Definitions.** The following words and phrases, whenever used in this Section, shall have the meanings defined in this section unless the context clearly requires otherwise:

**Indoor area** means any enclosed area used or visited by employees or the public, at all times, regardless of whether work is being performed. Indoor Area includes work areas, employee lounges, restrooms, conference rooms, classrooms, employee cafeterias, hallways, any other spaces used or visited by employees, as well as all space between a floor and ceiling that is predominantly or totally enclosed by walls or windows, regardless of doors, doorways, open or closed windows, stairways, or the like.

**Municipal property** means all buildings, indoor areas, and outdoor areas, including but not limited to recreational areas, and other property, or portions thereof, owned or operated by the City of Tulsa, including but not limited to vehicles and equipment owned by the municipality. For purposes of this Ordinance, "Municipal Property" shall not include streets or sidewalks.

**Outdoor area** means any area that is not an indoor area, and includes outdoor recreational areas.

**Smoking** means the carrying by a person of a lighted cigar, cigarette, pipe, or other lighted smoking device.

**Tobacco product** means any product that contains tobacco and is intended for human consumption. Tobacco Product does not include any product approved by the United States Food and Drug Administration for sale as a tobacco cessation product.

**Vapor product** means any noncombustible product, that may or may not contain nicotine, that employs a mechanical heating element, battery, electronic circuit, or

other mechanism, regardless of shape or size, that can be used to produce a vapor in a solution or other form. Vapor product shall include any vapor cartridge or other container with or without nicotine or other form that is intended to be used with an electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or similar product or device and any vapor cartridge or other container of a solution, that may or may not contain nicotine, that is intended to be used with or in an electronic cigarette, electronic cigar, electronic cigarillo, or electronic device.

**B. Prohibited conduct.**

**1.** Smoking tobacco products is prohibited in all places in which smoking tobacco products is prohibited by Oklahoma state law.

**2.** Using tobacco products and vapor products is prohibited on all municipal property, indoor and outdoor, including parks and recreational areas.

**3.** Nothing in this section prohibits any person or entity from prohibiting the use of tobacco products or vapor products on their property, even if the use of tobacco products or vapor products is not otherwise prohibited in that area.

**4.** No person or entity shall knowingly permit the use of tobacco products or vapor products in an area that is under the control of that person or entity and in which the use of tobacco products or vapor products is prohibited by law.

**5.** No person or entity shall permit the placement of ash receptacles, such as ash trays or ash cans, within an area under the control of that person or entity and in which smoking is prohibited by law. However, the presence of ash receptacles shall not be a defense to a charge of the use of tobacco products or vapor products in violation of any provision of this section.

**6.** No person shall dispose of tobacco product or vapor product waste within an area in which the use of tobacco products or vapor products is prohibited.

**7.** No person or entity shall intimidate, threaten, or otherwise retaliate against another person or entity that seeks to attain compliance with this section.

**C. Required signs.**

**1.** The person or entity that has legal or de facto control of an area in which the use of tobacco products or vapor products is prohibited by this section shall post a clear, conspicuous, and unambiguous sign at each point of entry to the area, and in at least one (1) other conspicuous point within the area.

**2.** For restrictions on the use of tobacco products or vapor products in indoor areas, the sign or decal shall be at least four (4) inches by two (2) inches in size and shall clearly state that smoking or tobacco use is prohibited or that a tobacco-free environment is provided. For restrictions on the use of tobacco products or vapor products in outdoor areas, signs shall be weather-resistant, at least fifteen (15) inches by fifteen (15) inches in size, with lettering of at least 1 inch, and shall clearly state that smoking or tobacco use is prohibited or that a tobacco-free environment is provided.

**3.** For purposes of this section, the Mayor or his/her designee shall be responsible for the posting of signs on municipal property, both indoor and outdoor.

4. Notwithstanding this provision, the presence or absence of signs shall not be a defense to a charge of the use of tobacco products or vapor products in violation of any other provision of this section.

**D. Penalties and enforcement.**

1. Enforcement of this section shall be the responsibility of the City of Tulsa. In addition, any peace officer or code enforcement official may enforce this chapter.
2. Any person who knowingly violates this Section shall be punished by a citation and fine of not less than Ten Dollars ($10.00) and not more than One Hundred Dollars ($100.00) in accordance with the City of Tulsa Penal Code.
3. The possession of a lighted tobacco product in violation of this section is a nuisance.
4. The remedies provided by this section are cumulative and in addition to any other remedies available at law or in equity.
5. Each instance of tobacco product or vapor product use in violation of this section shall constitute a separate violation.
6. The use of a vapor product in violation of this section is a nuisance.
7. Causing, permitting, aiding, abetting, or concealing a violation of any provision of this section regarding tobacco product or vapor product use shall also constitute a violation of this section.
8. In addition to other remedies provided by this section or by other law, any violation of this section regarding tobacco product or vapor product use may be remedied by the City Attorney, including, but not limited to, administrative or judicial nuisance abatement proceedings, criminal code enforcement proceedings, and suits for injunctive relief.

**E. Statutory construction and severability.** It is the intent of the City of Tulsa to supplement applicable state and federal law and not to duplicate or contradict such law. The provisions of this ordinance are severable, and the invalidity of any provision of the ordinance shall not affect other provisions of the ordinance, which can be given effect without the invalid provision.

*(Ord. Nos. 13506, 20736; Ord. No. 23780, § 1, 9-13-2017)*

**Section 2209. Business hours for entertainment clubs.**

**A.** It shall be unlawful for any person to operate or cause to be operated any entertainment club, as herein defined, between the hours of 2:00 a.m. and 7:00 a.m.

**B. Entertainment club** shall mean a commercial establishment which meets the following conditions:

1. A person is licensed by the state of Oklahoma to sell and serve low-point beer or alcoholic beverages for consumption on the premises of the entertainment club; or
2. Patrons or customers are permitted to dance on the premises of the entertainment club.

**C.** The term "entertainment club" does not include the following:

1. A "principal use restaurant," as defined herein, where the only entertainment consists of background music which is incidental to the primary function of serving food; or

2. A banquet, party or celebration consisting of invited guests and which is not open to the public; or
3. A dance or event sponsored or operated by a non-profit political, educational, religious or fraternal organization which has been granted an entertainment club after hours permit by the Director of Finance pursuant to the provisions of Title 21, Tulsa Revised Ordinances, Chapter 22.

**D. Principal use restaurant** shall mean an eating establishment which employs at least one (1) full-time cook, has a menu, a fully-equipped kitchen for cooking and preparation of meals and which eating establishment, including the kitchen area but excluding the bar area, occupies at least seventy-five percent (75%) of the total floor area, as defined herein, of the business.

**E. Floor area** shall mean the sum of the gross horizontal areas of the several floors, including basements, of a building measured from the exterior faces of the exterior walls or from the centerline of walls separating two buildings. Provided that for the purpose of determining compliance with the permitted floor area, the floor area of enclosed required off-street parking areas shall not be included.

**F. Penalty.** Any person violating any of the provisions of this section shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00) and/or by imprisonment in the City jail for not more than six (6) months, excluding costs, fees and assessments.

*(Ord. No. 17934, 21728, 21775)*

## Section 2210. Definitions.

For the purposes Sections 2210 through 2219 of this chapter, the following terms or phrases shall have the following meanings:

**Nicotine product** means any product that contains nicotine extracted or isolated from plants, vegetables, fruit, herbs, weeds, genetically modified organic matter, or that is synthetic in origin and is intended for human consumption; provided this term shall not include products approved by the United States Food and Drug Administration for smoking cessation.

**Person** means any individual, firm, fiduciary, partnership, corporation, trust or association, however formed.

**Proof of age** means a driver's license, license for identification only or other generally accepted means of identification that describes the individual as twenty-one (21) years of age or older and contains a photograph or other likeness of the individual and appears on its face to be valid.

**Sample** means a tobacco product, nicotine product or vapor product distributed to members of the public at no cost for the purpose of promoting the product.

**Tobacco product** means any product that contains tobacco and is intended for human consumption.

**Transaction scan** means the process by which a seller checks, by means of a transaction scan device, the validity of a driver's license or other government-issued photo identification.

**Transaction scan device** means any commercial device or combination of devices used at a point of sale or entry that is capable of deciphering in an electronically readable format the information encoded on the magnetic strip or bar code of a driver's license or other government-issued photo identification.

**Vapor product** shall mean noncombustible products, that may or may not contain nicotine, that employ a mechanical heating element, battery, electronic circuit, or other mechanism, regardless of shape or size, that can be used to produce a vapor in a solution or other form. 'Vapor products' shall include any vapor cartridge or other container with or without nicotine or other form that is intended to be used with an electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or similar product or device and any vapor cartridge or other container of a solution, that may or may not contain nicotine, that is intended to be used with or in an electronic cigarette, electronic cigar, electronic cigarillo, or electronic device. 'Vapor products' do not include any products regulated by the United States Food and Drug Administration under Chapter V of the Food, Drug, and Cosmetic Act.

*(Ord. Nos. 18882, 21357, 21419; Ord. No. 24916, § 2, 9-21-2022)*

## Section 2211. Furnishing or sale of tobacco, nicotine, or vapor products to minors.

**A.** It shall be unlawful and an offense for any person to sell, give or furnish in any manner any tobacco product, nicotine product or vapor product to another person who is under twenty-one (21) years of age or to purchase in any manner a tobacco product, nicotine product or vapor product on behalf of any such person. It shall not be unlawful for an employee under twenty-one (21) years of age to handle tobacco products when required in the performance of employee duties.

**B.** Any person engaged in the sale or distribution of tobacco products, nicotine products or vapor products shall demand proof of age from a prospective purchaser or recipient if an ordinary person would conclude on the basis of appearance that the prospective purchaser may be under twenty-one (21) years of age.

If an individual engaged in the sale or distribution of tobacco products, nicotine products or vapor products has demanded and was shown proof of age from a prospective purchaser or recipient who is not under twenty-one (21) years of age, the failure to subsequently require proof of age shall not constitute a violation of Subsection B of this section.

**C. Penalty.** Any person violating the provisions of Subsection A or B of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of:

**1.** Not more than One Hundred Dollars ($100.00), excluding costs, fees, and assessments, for the first offense;

**2.** Not more than Two Hundred Dollars ($200.00), excluding costs, fees, and assessments, for the second offense within a two (2) year period following the first offense;

**3.** Not more than Three Hundred Dollars ($300.00), excluding costs, fees, and assessments for a third or subsequent offense within a two (2) year period following the first offense. In addition to any other penalty, the store's license to sell tobacco products or nicotine products or the store's sales tax permit for a store that is

predominantly engaged in the sale of vapor products in which the sale of other products is merely incidental may be suspended for a period not exceeding thirty (30) days; or

**4.** Not more than Three Hundred Dollars ($300.00), excluding costs, fees, and assessments for a fourth or subsequent offense within a two-year period following the first offense. In addition to any other penalty, the store's license to sell tobacco products or nicotine products or the store's sales tax permit for a store that is predominantly engaged in the sale of vapor products in which the sale of other products is merely incidental may be suspended for a period not exceeding sixty (60) days.

**D. Record to be sent to the Alcoholic Beverage Laws Enforcement Commission (ABLE).** Upon conviction for violating the provisions of Subsection A or B of this section, a report of the conviction shall be forwarded by the Municipal Court Clerk of the City of Tulsa to the Alcoholic Beverage Laws Enforcement (ABLE) Commission for possible suspension of the store's license to sell tobacco products or nicotine products or the store's sales tax permit for a store that is predominantly engaged in the sale of vapor products in which the sale of other products is merely incidental at the location where the offense occurred for the period of time prescribed by the ABLE Commission.

**E. Defenses.** Proof that the defendant demanded, was shown and reasonably relied upon proof of age shall be a defense to prosecution under Subsection A or B of this section. A person cited for violation of this section shall be deemed to have reasonably relied upon proof of age, and such person shall not be found guilty of such violation, if such person proves that:

**1.** The individual who purchased or received the tobacco product, nicotine product or vapor product presented a driver's license or other government-issued photo identification purporting to establish that such individual was twenty-one (21) years of age or older; or

**2.** The person cited for the violation confirmed the validity of the driver's license or other government-issued photo identification presented by such individual by performing a transaction scan by means of a transaction scan device.

**3.** Provided, that these defenses shall not relieve from liability any person cited for a violation of this section if such person failed to exercise reasonable diligence to determine whether the physical description and picture appearing on the driver's license or other government-issued photo identification was that of the individual who presented it. The availability of the defense described in this subsection does not affect the availability of any other defense under any other provision of law.

*(Ord. Nos. 18882, 19128, 21357, 21419, 21524; Ord. No. 24916, § 2, 9-21-2022)*

## Section 2212. Reserved.

**Editor's note—**Ord. No. 24916, § 2, adopted September 21, 2022, effective November 1, 2022, repealed § 2212, which pertained to receipt of tobacco products by minors and derived from Ord. Nos. 18882, 19128, 21357, 21419.

## Section 2213. Distribution of tobacco product, nicotine product or vapor product samples.

**A.** It shall be unlawful and an offense for any person to distribute tobacco, nicotine products, vapor products or product samples to any person under twenty-one (21) years of age.

**B.** No person shall distribute tobacco products, nicotine products, vapor products or product samples in or on any public street, sidewalk or park that is within three hundred (300) feet of any playground, school or other facility when the facility is being used primarily by persons under twenty-one (21) years of age.

**C. Penalty.** Any person violating the provisions of Subsection A or B of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of:

**1.** Not more than One Hundred Dollars ($100.00), excluding costs, fees, and assessments, for the first offense;

**2.** Not more than Two Hundred Dollars ($200.00), excluding costs, fees, and assessments, for the second offense; and

**3.** Not more than Three Hundred Dollars ($300.00), excluding costs, fees, and assessments, for a third or subsequent offense.

*(Ord. Nos. 18882, 19128, 21357, 21419; Ord. No. 24916, § 2, 9-21-2022)*

### Section 2214. Sale of tobacco products except in original, sealed package.

**A.** It is unlawful and an offense for any person to sell cigarettes except in the original, sealed package in which they were placed by the manufacturer.

**B.** Any person violating the provisions of Subsection A of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees, and assessments, for each offense.

*(Ord. Nos. 18882, 19128, 21357, 21419; Ord. No. 24916, § 2, 9-21-2022)*

### Section 2215. Signs in retail establishments required.

**A.** Every person who sells or displays tobacco products, nicotine products or vapor products at retail shall post conspicuously and keep so posted at the place of business a sign, as specified by the Alcoholic Beverage Laws Enforcement (ABLE) Commission, stating the following: "IT'S THE LAW. WE DO NOT SELL TOBACCO PRODUCTS, NICOTINE PRODUCTS OR VAPOR PRODUCTS TO PERSONS UNDER 21 YEARS OF AGE." The sign shall also provide the toll-free number operated by the Alcoholic Beverage Laws Enforcement (ABLE) Commission for the purpose of reporting violations of the Prevention of Youth Access to Tobacco Act.

**B.** Any person violating the provisions of Subsection A of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Fifty Dollars ($50.00), excluding costs, fees, and assessments, for each day a violation occurs. Each day a violation is continuing shall constitute a separate offense. The notice required by Subsection A of this section shall be the only notice required to be posted or maintained in any store that sells tobacco products at retail.

*(Ord. Nos. 21357, 21419; Ord. No. 24916, § 2, 9-21-2022)*

### Section 2216. Notice to retail employees.

**A.** Every person engaged in the business of selling tobacco products, nicotine products or vapor products at retail shall notify each individual employed by that person as a retail sales clerk that state law:

**1.** Prohibits the sale or distribution of tobacco products, nicotine products or vapor products to any person under twenty-one (21) years of age and the purchase or receipt of tobacco products by any person under twenty-one (21) years of age; and

**2.** Requires that proof of age be demanded from a prospective purchaser or recipient if an ordinary person would conclude on the basis of appearance that the prospective purchaser or recipient may be under twenty-one (21) years of age.

**B.** This notice shall be provided before the individual commences work as a retail sales clerk. The individual shall signify that he or she has received the notice required by this section by signing a form stating as follows:

"I understand that state law prohibits the sale or distribution of tobacco products, nicotine products or vapor products to persons under twenty-one (21) years of age and out-of-package sales, and requires proof of age of purchaser or recipient if an ordinary person would conclude on the basis of appearance that the prospective purchaser or recipient may be under twenty-one (21) years of age. I promise, as a condition of my employment, to obey the law. I understand that violations by me may be punishable by fines, suspension, or non-issuance of my driver's license. In addition, I understand that violations by me may subject the store owner to fines or license suspension."

*(Ord. Nos. 21357, 21419; Ord. No. 24916, § 2, 9-21-2022)*

**Section 2217. Vending machines sales restricted.**

**A.** It shall be unlawful for any person to sell tobacco products, nicotine products or vapor products through a vending machine unless the vending machine is located:

**1.** In areas of factories, businesses, offices or other places that are not open to the public; or

**2.** In places that are open to the public, but to which persons under twenty-one (21) years of age are not admitted.

**B.** Any person violating the provisions of Subsection A of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees, and assessments, for each offense.

*(Ord. Nos. 21357, 21419; Ord. No. 24916, § 2, 9-21-2022)*

**Section 2218. Display or sale of tobacco, nicotine, or vapor products.**

**A.** It is unlawful for any person or retail store to display or offer for sale tobacco products, nicotine products or vapor products in any manner that allows public access to the tobacco product without assistance from the person displaying the tobacco products, nicotine products or vapor products or an employee or the owner of the store. The provisions of this subsection shall not apply to retail stores which do not admit into the store persons under twenty-one (21) years of age.

**B.** Any person violating the provisions of Subsection A of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees, and assessments, for each offense.

*(Ord. Nos. 21357, 21419; Ord. No. 24916, § 2, 9-21-2022)*

**Section 2219. Restrictions on manner of enforcement.**

**A.** Any conviction for violation of Sections 2211 through 2219 of this chapter and any compliance checks conducted by the City pursuant to subsection B of this section shall be reported in writing to the Alcoholic Beverage Laws Enforcement (ABLE) Commission within thirty (30) days of the conviction or compliance check. Such reports shall be compiled in the manner prescribed by the ABLE Commission.

**B.** Persons under twenty-one (21) years of age may be enlisted by the City to assist in enforcement of Sections 2211 through 2219 of this chapter; provided, such persons may be used to test compliance only if written parental consent has been provided and the testing is conducted under the direct supervision of the Alcoholic Beverage Laws Enforcement (ABLE) Commission or conducted by another law enforcement agency if such agency has given written notice to the ABLE Commission in the manner prescribed by the ABLE Commission. The City may conduct, pursuant to rules of the ABLE Commission, compliance checks without prior notification to the ABLE Commission and shall be exempt from the written notice requirement of this subsection. This subsection shall not apply to the use of persons under twenty-one (21) years of age to test compliance if the compliance test is being conducted by or on behalf of a retailer of cigarettes, as defined in Title 68 Oklahoma Statutes, Section 301, at any location the retailer of cigarettes is authorized to sell cigarettes.

**C.** For the purpose of determining second or subsequent violations, both the offenses penalized by the ABLE Commission as administrative fines and the offenses penalized by municipalities and towns and reported to the ABLE Commission, shall be considered together in such determination.

*(Ord. Nos. 18882, 19128, 21357, 21419; Ord. No. 24916, § 2, 9-21-2022)*

# CHAPTER 23. RESTRICTED USE OF WATER IN TIMES OF SHORTAGE*

*__Note—__Restricted Use of Water in Times of Shortages Amended and Codified as Title 11-C, TRO, Chapter 13 by Ord. No. 17439.

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## CHAPTER 24. CORPORATE DEFENDANTS

Section 2400. Information against corporation—Summons.
Section 2401. Form of summons.
Section 2402. Service of summons.
Section 2403. Return of officer.
Section 2404. Appearance and plea by corporation.
Section 2405. Appearance bond.
Section 2406. Failure to appear for trial.

### Section 2400. Information against corporation—Summons.

Upon an information against the corporation being filed in the Municipal Court, a magistrate of the Court may issue a summons, signed by him with his name of office, requiring the corporation to appear before him at a specified time and place to answer the charge, the time to be not less than ten (10) days after the issuing of the summons.

### Section 2401. Form of summons.

The summons must be in substantially the following form:

IN THE MUNICIPAL COURT
OF TULSA, OKLAHOMA

| | | |
|---|---|---|
| CITY OF TULSA, OKLAHOMA, a Municipal Corporation, | ) | |
| Plaintiff, | ) | |
| v. | ) | No._____ |
| _____ | ) | |
| _____ | ) | |
| Defendant. | ) | |

IN THE NAME OF THE CITY OF TULSA, STATE OF OKLAHOMA, TO:

(name of corporation):

YOU ARE HEREBY SUMMONED to appear before me at the Municipal Court of Tulsa, Oklahoma, on the _____ day of _____, A.D. _____, at ____.m., to answer the charge made against you, upon the information of _____ for the offense of _____

_____

_____

DATED, this _____ day of _____, A.D. _____, at Tulsa, Oklahoma.

_____
Judge

**Section 2402. Service of summons.**

The summons shall be served at least five (5) days before the day of appearance fixed therein, by delivering a copy thereof and showing the original to the president or other head of the corporation or to the secretary, cashier or managing agent thereof.

**Section 2403. Return of officer.**

The officer to whom the summons is directed for service shall make return upon the same, not more than three (3) days after service, showing the date he received the summons, the date he served the summons and the person upon whom the summons was served. The return of service shall be filed in the Office of the Court Clerk of the Municipal Court.

**Section 2404. Appearance and plea by corporation.**

At the time and date set for appearance in the summons, the corporate defendant may appear by counsel or by one (1) of its officers and will be arraigned as in the case of a natural person. If a plea of guilty is entered, the judge before whom such plea is entered shall impose a fine as prescribed for the offense. If a plea of not guilty is entered, the judge before whom such plea is entered shall set the amount of an appearance bond to be paid in cash to the Clerk of the Court and a receipt shall issue and the cause shall be set for trial.

**Section 2405. Appearance bond.**

The appearance bond provided for herein shall be in an amount sufficient to cover the maximum fine that could be levied by the Court and all costs of the action. The bond shall be refunded to the corporate defendant if the cause terminates without the imposition of a fine or costs against the defendant. In the event the defendant shall be found guilty, the Clerk shall refund to the defendant all sums in excess of the fine imposed and the court costs accrued.

**Section 2406. Failure to appear for trial.**

In the event that the corporate defendant should fail to appear for trial, the appearance bond required herein shall be forfeited, and no further proceedings shall be had in the cause unless the corporate defendant shall deposit a second or subsequent bond in the amount of the original bond with the Court Clerk and request the Court to set a date for trial of the action.

## CHAPTER 25. DANGEROUS SUBSTANCES*

Section 2500. Definitions.
Section 2501. Possession of marijuana.
Section 2502. Delivery of a simulated drug or simulated controlled dangerous substance.
Section 2503. Possession of controlled dangerous substances.
Section 2504. Possession of drug paraphernalia.
Section 2505. Penalty.

### Section 2500. Definitions.

The following words and phrases used in this chapter shall have the meanings defined in this Section except when the context clearly and unambiguously requires a different meaning. Terms which are not defined in this section shall have their common and ordinarily accepted meanings or such as the context may imply.

**A.** **Marijuana** shall have the same definition as found in 63 O.S. § 2-101.

**B.** **Drug** means:

**1.** Substances recognized as drugs in the official United States Pharmacopoeia, official Homeopathic Pharmacopoeia of the United States or official National Formulary or any supplement to any of them;

**2.** Substances intended for use in the diagnosis, cure, mitigation, treatment, or prevention of disease in man or animals;

**3.** Substances, other than food, intended to affect the structure or any function of the body of man or other animals; and

**4.** Substances intended for use as a component of any article specified in this definition. It does not include any devices or their components, parts or accessories.

**C.** **Controlled dangerous substance** means any drug or substance included in Schedules I through V of the Uniform Controlled Dangerous Substances Act found in Title 63, Chapter 2 of the Oklahoma Statutes.

**D.** **Simulated drugs** or **simulated controlled dangerous substances** means any product which identifies itself by using a common name or slang term associated with a controlled substance and which indicates on its label or accompanying promotional material or is represented to simulate the effect of a controlled dangerous substance.

**E.** **Deliver** or **delivery** means the actual, constructive, or attempted transfer from one (1) person to another of a simulated drug or simulated controlled dangerous substance, whether or not there is an agency relationship.

**F.** **Drug paraphernalia** means all equipment, products and materials of any kind which are used, intended for use, or fashioned specifically for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, ingesting, inhaling or otherwise introducing into the human body,

*__Editor's note—__Ord. No. 24827, §§ 1, 2, adopted May 18, 2022, repealed the former Ch. 25, §§ 2500—2503, and enacted a new Ch. 25 as set out herein. The former Ch. 25 pertained to similar subject matter and derived from Ord. Nos. 15821, 19128, 19605.

a controlled dangerous substance in violation of the Uniform Controlled Dangerous Substances Act including, but not limited to those items listed in 63 O.S. § 2-101(36).

In determining whether an object is "drug paraphernalia", a court or jury shall consider, in addition to all other logically relevant factors, the following:

**1.** Statements by an owner or by anyone in control of the object concerning its use;

**2.** The proximity of the object, in time and space, to a direct violation of the Uniform Controlled Dangerous Substances Act;

**3.** The proximity of the object to controlled dangerous substances;

**4.** The existence of any residue of controlled dangerous substances on the object;

**5.** Direct or circumstantial evidence of the intent of an owner, or of anyone in control of the object, to deliver it to any person who intends to use the object to facilitate a violation of the Uniform Controlled Dangerous Substances Act. The innocence of an owner, or of anyone in control of the object, as to a direct violation of this act shall not prevent a finding that the object is intended for use, or fashioned specifically for use, as drug paraphernalia;

**6.** Instructions, oral or written, provided with the object which either state directly or imply that the object is to be used for the consumption of controlled dangerous substances;

**7.** Descriptive materials accompanying the object which explain or depict its use as an object for the consumption of controlled dangerous substances;

**8.** The manner in which the object is displayed for sale;

**9.** Whether the owner, or anyone in control of the object, is a legitimate supplier of like or related items to the community, such as a licensed distributor or dealer of tobacco products;

**10.** Direct or circumstantial evidence of the ratio of sales of the object or objects to the total sales of the business enterprise;

**11.** The existence and scope of legitimate uses for the object in the community; and

**12.** Expert testimony concerning its use, including, but not limited to, testimony from a law enforcement officer.

Provided, nothing in this section shall apply to objects in the possession of harm-reduction services providers as authorized by 63 O.S. § 2-1101 and 63 O.S. § 2-101(48).

*(Ord. No. 24827, § 2, 5-18-2022)*

### Section 2501. Possession of marijuana.

**A.** It shall be unlawful and an offense for any person knowingly or intentionally to possess marijuana without a valid Oklahoma medical marijuana license issued pursuant to 63 O.S. §§ 420 et seq. Every person violating this provision shall be guilty of an offense, and:

**1.** If the person does not have a valid medical marijuana license on their person but states a medical condition; and

**a.** If the amount of marijuana in the person's possession is less than one and one-half (1.5) ounces, upon conviction, the punishment shall be by a fine not exceeding Four Hundred Dollars ($400.00), excluding costs, fees and assess-

ments; in such situations, if a law enforcement officer who comes in contact with a person in violation of this subsection and is satisfied as to the identity of the person, as well as any other pertinent information the law enforcement officer deems necessary, the officer shall issue to the person a written citation containing a notice to answer the charge against the person in the appropriate court. Upon receiving the written promise of the alleged violator to answer as specified in the citation, the law enforcement officer shall release the person upon personal recognizance unless there has been a violation of another provision of law; or

**b.** If the amount of marijuana in the person's possession is one and one-half (1.5) ounces or more, upon conviction, the punishment shall be by a fine not exceeding One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, by imprisonment in the City jail for a period of not more than six (6) months, or by both such fine and imprisonment.

**2.** If the person does not have a valid medical marijuana license on their person and does not state a medical condition, upon conviction, the punishment shall be by a fine not exceeding One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, by imprisonment in the City jail for a period of not more than six (6) months, or by both such fine and imprisonment.

**3.** If the person does have a valid medical marijuana license but is in possession of more than the maximum allowable possession amounts based on the person's license type as dictated under 63 O.S. §§ 420 et seq., upon conviction, the person shall be punished by a fine not exceeding One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, by imprisonment in the City jail for a period of not more than six (6) months, or by both such fine and imprisonment.

**B.** It is unlawful for any person, whether licensed or not, to smoke tobacco or marijuana or use a vaporizer to ingest marijuana in violation of the Oklahoma Smoking in Public Places and Indoor Workplaces Act, 63 O.S. § 1-1521 et seq. Upon conviction, the punishment for a violation of this section shall be by a fine not exceeding Four Hundred Dollars ($400.00), excluding costs, fees, and assessments, provided that in such situations, if a law enforcement officer who comes in contact with a person in violation of this subsection and is satisfied as to the identity of the person, as well as any other pertinent information the law enforcement officer deems necessary, the officer shall issue to the person a written citation containing a notice to answer the charge against the person in the appropriate court. Upon receiving the written promise of the alleged violator to answer as specified in the citation, the law enforcement officer shall release the person upon personal recognizance unless there has been a violation of another provision of law.

**C.** Nothing in this section shall be construed as prohibiting the Tulsa Police Department from seeking criminal charges in State, tribal, or federal courts against an offender who is in violation of State, tribal, or federal laws regarding possession, possession with intent to distribute, distribution, trafficking, or any other law proscribing activity related to controlled dangerous substances and/or marijuana nor from treating the odor or sight of marijuana as probable cause in compliance with applicable law and court decisions.

*(Ord. No. 24827, § 2, 5-18-2022)*

**Section 2502. Delivery of a simulated drug or simulated controlled dangerous substance.**

It shall be unlawful and an offense for any person to deliver any simulated drug or simulated controlled dangerous substance to another person.

*(Ord. No. 24827, § 2, 5-18-2022)*

**Section 2503. Possession of controlled dangerous substances.**

**A.** Unless otherwise expressly provided for elsewhere in this chapter, it shall be unlawful and an offense for any person knowingly or intentionally to possess any amount of any Schedule I controlled dangerous substance or to possess a controlled dangerous substance in Schedules II through V unless such substance was obtained directly from, or pursuant to a valid prescription or order from a licensed practitioner.

**B.** For purposes of this section only, Practitioner means:

**1.** A physician, dentist, podiatrist, an optometrist, veterinarian, an advanced practice nurse recognized to prescribe by the Oklahoma Board of Nursing as an advanced registered nurse practitioner, clinical nurse specialist or certified nurse-midwife, subject to the medical direction of a supervising physician, pursuant to 59 O.S. § 567.3a, scientific investigator or other person licensed, registered or otherwise permitted to prescribe, distribute, dispense, conduct research with respect to, use for scientific purposes or administer a controlled dangerous substance in the course of professional practice or research in this state; or

**2.** A pharmacy, hospital, laboratory or other institution licensed, registered or otherwise permitted to distribute, dispense, conduct research with respect to, use for scientific purposes or administer a controlled dangerous substance in the course of professional practice or research in this state.

**C.** For purposes of this section, controlled dangerous substance means a drug, substance, or immediate precursor in Schedules I through V of the State of Oklahoma Uniform Controlled Dangerous Substances Act, 63 O.S. §§ 2-101 et seq., or any drug, substance or immediate precursor listed either temporarily or permanently as a federally controlled substance. Any conflict between state and federal law with regard to the particular schedule in which a substance is listed shall be resolved in favor of state law.

*(Ord. No. 24827, § 2, 5-18-2022)*

**Section 2504. Possession of drug paraphernalia.**

No person shall use drug paraphernalia to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, process, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale or otherwise introduce into the human body a controlled dangerous substance in violation of the Uniform Controlled Dangerous Substances Act, except those persons holding an unrevoked license in the professions of podiatry, dentistry, medicine, nursing, optometry, osteopathy, veterinary medicine or pharmacy or those individuals holding a medical marijuana license pursuant to 63 O.S. §§ 420 et seq.

*(Ord. No. 24827, § 2, 5-18-2022)*

**Section 2505. Penalty.**

Unless otherwise expressly provided for in this chapter, every person violating any provision of this chapter shall be guilty of an offense and, upon conviction, shall be

punished by a fine of not less than One Hundred Fifty Dollars ($150.00), and not more than, One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period of not more than six (6) months, or by both such fine and imprisonment.

*(Ord. No. 24827, § 2, 5-18-2022)*

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## CHAPTER 26. FALSE ALARMS

Section 2600. False alarms defined.
Section 2601. Notice of false alarms.
Section 2602. Chronic false alarm system defined.
Section 2603. Corrective action and penalty.
Section 2604. Restrictions on use of automatic telephone dialing systems and 911 system.
Section 2605. Police inspection of alarm systems.
Section 2606. Prompt response of agents or employees.
Section 2607. False alarms.
Section 2608. Alarm user responsibilities.
Section 2609. Penalty.

### Section 2600. False alarms defined.

Repealed by Ord. No. 18190

### Section 2601. Notice of false alarms.

Repealed by Ord. No. 18190

### Section 2602. Chronic false alarm system defined.

Repealed by Ord. No. 18190

### Section 2603. Corrective action and penalty.

Repealed by Ord. No. 18190

### Section 2604. Restrictions on use of automatic telephone dialing systems and 911 system.

**A.** No person, company or other entity, with the exception of the City of Tulsa Departments, shall use or operate, attempt to use or operate or cause to be used or operated, or arrange, adjust, program or otherwise provide or install any device or combination of devices that will automatically or upon activation either mechanically, electronically or by any other means, initiate a telephonic, recorded or programmed message to the emergency number 911 or any telephone number assigned to the City of Tulsa Police Department.

**B.** This section shall not be construed to prohibit any person from manually calling the emergency number 911 or any telephone number assigned to the City of Tulsa Police Department.

**C.** Each violation of the provisions of this section shall constitute a separate offense.

*(Ord. No. 17468)*

### Section 2605. Police inspection of alarm systems.

Repealed by Ord. No. 18190

### Section 2606. Prompt response of agents or employees.

**A.** A central station, answering service or other remote monitoring service shall, upon the request of the Tulsa Police Department, make every possible attempt to dispatch an agent or employee to an alarm reported to the Tulsa Police Department for police response.

**B.** Upon notification, such agent or employee shall promptly respond to the location of an alarm reported to the Tulsa Police Department for police response and render all necessary service and assistance to restore the alarm to normal condition. Failure to so respond within sixty (60) minutes from the time of notification is an offense.

**C.** Unless an actual emergency is determined to have occurred at the location of an alarm responded to by the Tulsa Police Department, a police officer shall be under no obligation to remain at the location of the alarm to wait for an alarm agent or employee to arrive.

*(Ord. No. 17469)*

### Section 2607. False alarms.

It shall be an offense for any person:

**A.** To turn on, send in or otherwise cause or permit any false call or alarm for the purpose of attracting the attention of the Police or Fire Department;

**B.** To use any other similar type emergency equipment used by the Police or Fire Department without express permission from the Chief of the Police Department of the City of Tulsa;

**C.** To molest or tamper with any police or fire alarm box, telephone, radio or other instrument used in communicating or signaling either the Police or Fire Department; or

**D.** To turn in any type false alarm to any City official or department.

### Section 2608. Alarm user responsibilities.

**A.** All alarm users, except vehicles alarm users, within the City of Tulsa are required to have alarm system back-up power supplies that will become effective in the event of a power failure or outage in the source of electricity from the utility company and which will allow the alarm to maintain an armed condition and communication capacity for a minimum of four (4) hours when not in an alarm condition. Within one hundred eighty (180) days after the effective date of this provision, all alarm users shall comply with this section.

**B.** All alarm users within the City of Tulsa having a local/audible alarm, except financial institutions with Underwriters Laboratory approved local/audible alarms, shall have the alarm adjusted in a manner that will allow it to sound for not longer than fifteen (15) minutes before resetting and silencing itself. A local/audible alarm shall be allowed to have the alarm sound for no longer than thirty (30) minutes. Within ninety (90) days after the effective date of this provision, all alarm users shall comply with this section.

### Section 2609. Penalty.

Unless otherwise provided herein, any person found guilty of violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period of up to ninety (90) days.

*(Ord. No. 16520)*

## CHAPTER 27. PRECIOUS METAL AND GEM DEALERS

Section 2700. Definitions.
Section 2701. Examination and inspection.
Section 2702. Required report.
Section 2703. Certain goods to be kept by dealer, time period, procedure.
Section 2704. Penalty.

### Section 2700. Definitions.

**A. Dealer** means any person, partnership, sole proprietorship, corporation or association which in the regular course of business, takes, receives, pays for or transfers used precious metals or gems. "Dealer" shall not mean any supervised financial institution, as defined by the Oklahoma Consumer Credit Code, a pawnshop licensed under the Oklahoma Pawnshop Act and jewelers whose principal business is the sale of items purchased directly from the original manufacturer, wholesaler or their authorized representative and who in the regular course of such business, accept trade-in of items defined in this chapter as precious metals or gems, so long as the item or items to be traded are not greater in value than the item or items to be purchased. For purposes of this exception, retail jewelers may not buy used precious metals or gems for cash consideration only.

**B. Employee** means any person working for a dealer, whether or not the person is in the direct employment of the dealer or works full time or part time, who handles used precious metals or gems for the dealer. Employee shall not mean a person employed by a bank, armored car company or other business entity acting in the sole capacity of bailee-for-hire relationship with a dealer.

**C. Gem** means any precious or semiprecious stone or item containing a precious or semiprecious stone customarily used in jewelry or ornamentation.

**D. Precious metal** means platinum, gold or silver, but shall not mean any ingot or bar manufactured by a commercial mint nor shall it mean any or all coins.

**E. Used** means previously sold or traded.

*(Ord. No. 17084)*

### Section 2701. Examination and inspection.

**A.** Every dealer shall keep a permanently bound book, not loose leaf, with pages numbered in sequence, in which there shall be legibly written at the time of any transaction with any person involving the purchasing of any used item made or containing in whole or in part any precious metal or gem, the following information:

**1.** An account and description of the item purchased, including if applicable, the manufacturer's name, the model, the model number, the serial number and any engraved marking;

**2.** The amount of money involved in the transaction;

**3.** The date;

**4.** The name, address and driver's license number of the person involved in the transaction with the dealer; if the person has no driver's license, then the date of birth and general physical description, including hair color and approximate height and weight of that person; and

**5.** The signature of the seller;

**B.** The book required by this section shall be a permanent record to be kept available for inspection at all times on the premises of the business of the licensed dealer. Such book shall be made available during regular business hours for inspection by any Tulsa Police Officer. Every entry in such book shall be made in ink and shall not in any manner be obliterated or erased.

**C.** No dealer shall be required to furnish the description of any new property purchased from manufacturers or wholesale dealers at an established place of business or of any goods purchased from any bankrupt stock. Such goods shall be accompanied by a bill of sale or other evidence of open and legitimate purchase. The bill of sale shall also be available for inspection during regular business hours.

**D.** No dealer shall be required to furnish a description of property purchased from another licensed dealer or to meet the holding period provided in Section 2703 of this chapter if that dealer has met the requirements provided for in Subsection A of this section and Section 2703 of this chapter upon the initial purchase of the property; provided, however, that each dealer shall record the license number of the other dealer and the amount of the transaction.

*(Ord. No. 17084)*

### Section 2702. Required report.

**A.** A dealer shall cause to be delivered to the Chief of Police or his designee, either by delivery to the Main Police Station or deposit in the United States Mail, a copy or report of any transaction involving the purchasing of any used item made of or containing in whole or in part any precious metal; provided that such copy or report shall be in the possession of the appropriate Police personnel within three (3) days of the transaction; and provided further, that such copy or report shall be on a form supplied or approved by the Chief of Police. Such copy or report shall contain, at a minimum, the following information:

**1.** The name and address of the dealer;

**2.** The name, address and driver's license number of the person involved in the transaction with the dealer; if the person has no driver's license, the date of birth and general physical description, including hair color and approximate height and weight of that person;

**3.** The buy transaction number;

**4.** The date of the transaction; and

**5.** An account and description of the item purchased, including if applicable, the manufacturer's name, the model, the model number, the serial number and any engraved marking.

*(Ord. No. 17084)*

### Section 2703. Certain goods to be kept by dealer, time period, procedure.

**A.** Every dealer must keep at the business location designated in the license application required by the State all used articles made in whole or in part of precious metals or gems, for inspection by any Tulsa Police Officer at reasonable times for a period of ten (10) days or until the articles have been released by written authorization of any Tulsa

Police Officer, except as provided for in Subsection 2701.C. of this chapter. During this period, the appearance of such articles shall not be altered in any way. A dealer is not prohibited from selling or arranging to sell such articles during this ten (10) day period so long as such articles remain in his possession as required by this section.

**B.** A dealer may also designate an additional location for storage of items required to be held under the provisions of this chapter. This location shall be either a vault or a bank. The designated additional location shall be available for inspection by any Tulsa Police Officer.

*(Ord. No. 17084)*

### Section 2704. Penalty.

Any person violating any provision of this chapter, either by doing anything which is prohibited or by failure or refusal to do anything which is commanded, shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days. Each day of such violation shall be deemed a separate offense.

*(Ord. No. 17084)*

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## CHAPTER 28. CURFEW HOURS FOR JUVENILES

Section 2800. Title.
Section 2801. Purpose and intent.
Section 2802. Definitions.
Section 2803. Offenses.
Section 2804. Defenses.
Section 2805. Enforcement.
Section 2806. Penalties.

### Section 2800. Title.

This chapter shall be known as the "Curfew Hours for Juveniles" Ordinance.

*(Ord. No. 18331; Ord. No. 25612, § 1, 6-25-2025)*

### Section 2801. Purpose and intent.

The public purpose of this chapter is to protect juveniles from nocturnal dangers, enhance parental supervision and responsibility for juveniles, reduce juvenile criminal activity and protect the public at large.

*(Ord. No. 18331; Ord. No. 25612, § 1, 6-25-2025)*

### Section 2802. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

**A.** **Central Business District** shall mean that area of land lying within the Inner Dispersal Loop (IDL), Tulsa, Oklahoma, bounded by a street network on the east by the east leg of the IDL, part of U.S. Highway 75 South/Interstate Highway 444 (I-444); on the west by U.S. Highway 64 West/Oklahoma State Highway 51 West/Interstate Highway 244 (I-244); on the north by U.S. Highway 412 East/I-244; and on the south by the Broken Arrow Expressway, U.S. Highway 64 West/U.S. Highway 75 South/ Oklahoma State Highway 51 West, part of I-444.

Ordinance No. 25612, § 2, adopted June 25, 2025 states, "The definition of "Central Business District" in Subsection 2802, as well as internal references to these provisions, shall expire on October 22, 2025, unless extended by the City Council through a subsequent ordinance.

**B.** **Curfew Hours** shall mean:

**1.** 11:00 p.m. on any Sunday, Monday, Tuesday, Wednesday or Thursday until 6:00 a.m. of the following day; and

**2.** 12:01 a.m. until 6:00 a.m. on any Saturday or Sunday.

**C.** **Downtown Curfew Hours** shall mean:

9:00 p.m. on any Thursday, Friday, or Saturday until 6:00 a.m. of the following day.

**D.** Emergency shall mean an unforeseen combination of circumstances or the resulting state that calls for immediate action. The term indicates, but is not limited to, a fire, a natural disaster, an automobile accident or any situation requiring immediate action to prevent serious bodily injury or loss of life.

Ordinance No. 25612, § 2, adopted June 25, 2025 states, "The definition of "Downtown Curfew Hours" in Subsection 2802, as well as internal references to these provisions, shall expire on October 22, 2025, unless extended by the City Council through a subsequent ordinance.

**E. Establishment** shall mean any privately-owned place of business operated for a profit to which the public is invited, including but not limited to any place of amusement or entertainment.

**F. Guardian** shall mean:

**1.** A person who, under court order, is the guardian of the person of a juvenile; or

**2.** A public or private agency with whom a juvenile has been placed by a court.

**G. Juvenile** shall mean any person under eighteen (18) years of age.

**H. Knowingly permit** shall mean the parent, other responsible adult and/or operator, as defined herein, is aware of the fact the juvenile is in violation of the curfew hours or that said person by exercise of reasonable care would have known that the juvenile is in violation of the curfew hours.

**I. Operator** shall mean any individual, firm, association, partnership or corporation operating, managing or conducting any establishment. The term includes the members or partners of an association or partnership and the officers of a corporation.

**J. Parent** shall mean a person who is a natural parent, adoptive parent or step-parent of another person.

**K. Public place** shall mean any place to which the public or a substantial group of the public has access and includes, but is not limited to streets, highways, roads, alleys, sidewalks, curb areas, parks, playgrounds, or other public grounds, and the common areas of schools, hospitals, apartment houses, office buildings, transport facilities and retail establishments.

**L. Remain** shall mean to:

**1.** Linger or stay; or

**2.** Fail to leave premises when requested to do so by a police officer or the owner, operator or other person in control of the premises.

**M. Responsible adult** shall mean any person having, assuming or charged with permanent and/or temporary care and/or custody of a juvenile, including, but not limited to:

**1.** Any legal guardian or adult exercising legal guardianship over a juvenile;

**2.** Any adult who stands in loco parentis to a juvenile;

**3.** Any person to whom legal custody of a juvenile has been given by order of a court;

**4.** Any adult who has, assumes or is charged with the care and/or custody of a juvenile at the request of or on behalf of a parent, guardian, loco parentis or person to whom legal custody has been given by order of a court; and/or

**5.** Any adult who has, assumes or is charged with the care and/or custody of a juvenile at the requests of or on behalf of another parent.

*(Ord. No. 18331; Ord. No. 25612, § 1, 6-25-2025)*

**Section 2803. Offenses.**

**A. Citywide Curfew Hours Offenses:**

**1.** A juvenile commits an offense if he/she remains in any public place or on the premises of any establishment within the corporate city limits of the City of Tulsa during Curfew Hours.

**2.** A parent and/or other responsible adult of a juvenile commits an offense if he/she knowingly permits or allows the juvenile to remain in any public place or on the premises of any establishment within the corporate city limits of the City during Curfew Hours.

**3.** The owner, operator or any employee of an establishment commits an offense if he/she knowingly permits or allows a juvenile to remain upon the premises of the establishment during Curfew Hours.

**B. Downtown Curfew Hours Offenses:**

**1.** A juvenile commits an offense if he/she remains in any public place or in a privately owned parking area within the Central Business District during Downtown Curfew Hours.

**2.** A parent and/or other responsible adult of a juvenile commits an offense if he/she knowingly permits or allows the juvenile to remain in any public place or in a privately owned parking area within the Central Business District during Downtown Curfew Hours.

**3.** The owner, operator or any employee of a privately owned parking area commits an offense if he/she knowingly permits or allows a juvenile to remain upon the premises of the privately owned parking area within the Central Business District during Downtown Curfew Hours.

Ordinance No. 25612, § 2, adopted June 25, 2025 states, "The Downtown Curfew Hours Offences in Subsection 2803B., as well as internal references to these provisions, shall expire on October 22, 2025, unless extended by the City Council through a subsequent ordinance.

*(Ord. No. 18331; Ord. No. 25612, § 1, 6-25-2025)*

**Section 2804. Defenses.**

**A.** It is a defense to prosecution under Section 2803 that the juvenile was at the time in question:

**1.** Accompanied by the juvenile's parent or responsible adult;

**2.** On an errand at the direction of the juvenile's parent or responsible adult, without any detour or stop;

**3.** In a motor vehicle involved in interstate travel;

**4.** Engaged in an employment activity, or going to or returning home from an employment activity, without any detour or stop;

**5.** Involved in an emergency;

**6.** On the sidewalk abutting the juvenile's residence or abutting the residence of a next-door neighbor if the neighbor did not complain to the Police Department about the juveniles presence;

**7.** Attending, going to or returning home, without any detour or stop, from an official school, religious or other recreational activity supervised by adults, or an event sponsored by the City of Tulsa, a civic organization or another similar entity that takes responsibility for the juvenile;

**8.** Exercising First Amendment rights protected by the United States Constitution, such as the free exercise of religion, freedom of speech and the right of assembly or other rights protected by the United States or the Oklahoma Constitution; or

**9.** Married or had been married or had disabilities of minority removed in accordance with state law.

**B.** It is a defense to prosecution under Subsections 2803(A)(3) and 2803(B)(3), that the owner, operator or employee of an establishment promptly notified the Police Department that a juvenile was present on the premises of the establishment during curfew hours and refused to leave.

*(Ord. No. 18331; Ord. No. 25612, § 1, 6-25-2025)*

### Section 2805. Enforcement.

Before taking any enforcement action under this chapter, a police officer shall ask the apparent offender's age and reason for being in the public place. The officer shall not issue a citation or make an arrest under this chapter unless the officer has probable cause to believe that an offense has occurred and that, based on any response and other circumstances, no defense in Section 2804 is present.

Absent a resolution filed with the district court or an interlocal agreement with the District Court for the Municipal Court to exercise jurisdiction over juveniles under 18 years of age under Section 2802 pursuant to 10A O.S. § 2-2-103, the Municipal Court must refer all alleged juvenile violations to the Juvenile Bureau of the District Attorney's Office.

*(Ord. No. 18331; Ord. No. 25612, § 1, 6-25-2025)*

### Section 2806. Penalties.

**A.** A person who violates a provision of this chapter is guilty of a separate offense for each day or part of a day during which the violation is committed, continued or permitted. Each offense, upon conviction, is punishable by a fine not to exceed Two Hundred Dollars ($200.00), excluding costs, fees and assessments. The Court may require community service work prescribed by the Court in lieu of a fine if the product of multiplying the number of hours of community service work by the prevailing minimum wage does not result in a number which exceeds the maximum fine authorized by law.

**B.** The Municipal Court's jurisdiction over a juvenile who violates Section 2803 of this chapter shall be expressly subject to 10A O.S. § 2-2-103.

*(Ord. No. 18331; Ord. No. 19605; Ord. No. 25612, § 1, 6-25-2025)*

## CHAPTER 29. DOOR TO DOOR SOLICITATION

Section 2900. Title.
Section 2901. Purpose and intent.
Section 2902. Definitions.
Section 2903. Offenses.
Section 2904. Penalty.

### Section 2900. Title.

This Chapter shall be known as the "Door to Door Solicitation" Ordinance.

*(Ord. No. 26660, § 1, 3-15-2012)*

### Section 2901. Purpose and intent.

The public purpose of this Ordinance is to protect the health, safety and welfare of the citizens of the City of Tulsa, Oklahoma and the public at large by regulating door to door solicitation in residential zoning districts. The City has promulgated reasonable time, place and manner restrictions on door to door solicitations occurring within residential zoning districts in order to reduce crimes such as fraud, identity theft, larceny, burglary, and home invasion; to protect its citizens from annoying, intrusive or dangerous solicitations; and to assist law enforcement personnel in the performance of their duties.

*(Ord. No. 26660, § 1, 3-15-2012)*

### Section 2902. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings given herein:

**A.** **Residential zoning district** shall mean a residential district as defined in Title 42 of the Tulsa Revised Ordinances.

**B.** **Soliciting or solicitation** shall mean the act of asking, bartering, or communicating in any other such manner, whether orally or in writing, hand signing, or any other method, either directly or by implication, for the purpose of receiving or obtaining money, alms, gifts, or other items of value, or taking orders for any goods, merchandise or services, whether or not an actual employment relationship is created, a transaction is completed, or an exchange of money, goods or services actually takes place.

*(Ord. No. 26660, § 1, 3-15-2012)*

### Section 2903. Offenses.

**A.** It shall be unlawful and an offense for any person to go from house to house or door to door within a residential zoning district for the purpose of soliciting the occupant thereof, except between the hours of 8:00 a.m. and 7:00 p.m., in the absence of a specific invitation or appointment from the occupant of the residence.

**B.** It shall be unlawful and an offense for any person to engage in solicitation within a residential zoning district to go from house to house or door to door and ring the doorbell, rap, or knock upon the door, or create any sound in a manner calculated to attract the attention of the occupant thereof for the purpose of engaging in solicitation, except between the hours of 8:00 a.m. and 7:00 p.m., in the absence of a specific invitation or appointment from the occupant of the residence.

**C.** It shall be unlawful and an offense for any person engaged in solicitation within a residential zoning district to remain in a private residence or upon the premises of a private residence after the owner or occupant has requested that person to leave.

**D.** It shall be unlawful and an offense for any person to engage in solicitation within a residential zoning district at a private residence that has a posted sign indicating that the resident or occupant does not want such activities upon their private premises. Examples of such a sign include, but shall not be limited to, "No Soliciting," "No Solicitation," "No Trespassing," or "Keep Out."

*(Ord. No. 26660, § 1, 3-15-2012)*

## Section 2904. Penalty.

Any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00) and/or by imprisonment in the City Jail for not more than six (6) months, excluding costs, fees and assessments.

*(Ord. No. 26660, § 1, 3-15-2012)*

## CHAPTER 30. SECONDHAND MERCHANDISE DEALERS

Section 3000. Definitions.
Section 3001. Prohibited practices.
Section 3002. Required records—Examination and inspection.
Section 3003. Required report.
Section 3004. Certain goods to be kept by dealer, time period, procedure.
Section 3005. Penalty.

### Section 3000. Definitions.

The following words and phrases shall have the meanings given herein:

**A.** **Secondhand Dealer** means any person, partnership, sole proprietorship, corporation or association whose principal business is purchasing and selling used items and used merchandise. "Dealer" shall not mean any supervised financial institution, as defined by the Oklahoma Consumer Credit Code, a pawnshop licensed under the Oklahoma Pawnshop Act, a "Dealer" of used precious metals or gems as defined in Tulsa Revised Ordinances, Title 27, Chapter 27, Section 2700, and jewelers whose principal business is the sale of items purchased directly from the original manufacturer, wholesaler or their authorized representative. For purposes of this exception, retail jewelers may not buy used precious metals or gems for cash consideration only.

**B.** **Used** means previously owned, sold or traded.

**C.** **Items and merchandise** specifically does not include office furniture, pianos, books, clothing, organs, coins, motor vehicles, costume jewelry, cardiovascular and strength training or conditioning equipment designed primarily for indoor use, and secondhand sports equipment that is not permanently labeled with a serial number. "Secondhand sports equipment" does not include golf clubs, which are *items and merchandise*.

*(Ord. 23153, § 1, 8-7-2014)*

### Section 3001. Prohibited practices.

A Secondhand Dealer shall not:

**A.** Purchase property from a person under the age of eighteen (18) years; or

**B.** Buy used items or merchandise from a person unable to supply verification of his identity by photo identification by a state-issued or federal government-issue identification card, or a valid state driver's license or federal government-issued identification card.

*(Ord. 23153, § 1, 8-7-2014)*

### Section 3002. Required records—Examination and inspection.

**A.** Every Secondhand Dealer shall keep a permanent record, created at the time of any purchase of any used item or merchandise, and containing the following information:

**1.** An account and description of the used item or merchandise purchased, including if applicable, the manufacturer's name, the model, the model number, the serial number and any engraved marking;

**2.** The amount of money involved in the transaction;

**3.** The date;

**4.** The name, address and identification number of the seller, as verified by either a state or federal identification card or driver's license provided that all such forms of identification shall include the photo of the person so identified; and

**5.** A declaration, in a form approved by the Tulsa Police Department, that the seller is the bona fide owner of the used item or merchandise, how long he/she has owned the used item or merchandise, and that he/she is fully authorized to sell it, and containing a space for the seller's thumb-print, and the seller shall impress his inked thumb-print on said declaration;

**6.** The signature of the seller;

**B.** The permanent record required by this section shall be kept available for inspection at all times on the premises of the business of the Secondhand Dealer, and shall be made available during regular business hours for inspection by any Tulsa Police Department Officer. The permanent record shall not in any manner be obliterated or erased.

**C.** No Secondhand Dealer shall be required to furnish the description of any new property purchased from manufacturers or wholesale dealers at an established place of business or of any goods purchased from any bankrupt stock. Such goods shall be accompanied by a bill of sale or other evidence of open and legitimate purchase. The bill of sale shall also be available for inspection during regular business hours.

*(Ord. 23153, § 1, 8-7-2014)*

### Section 3003. Required report.

A Secondhand Dealer shall cause to be delivered to the Chief of Police or his designee, either by delivery to the Main Police Station or deposit in the United States Mail, or (at the option of the Chief of Police) by electronic information transfer, a copy or report of any transaction involving the purchasing of any used item or merchandise; provided that such copy or report shall be in the possession of the appropriate Police personnel within three (3) days of the transaction; and provided further, that such copy or report shall be on a form supplied or approved by the Chief of Police. Such copy or report provided to the Chief of Police or his designee shall contain the name and address of the Secondhand Dealer, and the information stated in "Required Records-Examination and Inspection" Section 3002 (above).

*(Ord. 23153, § 1, 8-7-2014)*

### Section 3004. Certain goods to be kept by dealer, time period, procedure.

Every Secondhand Dealer must keep at the business location or premises all used items or merchandise purchased, for inspection by any Tulsa Police Officer at reasonable times for a period of ten (10) days. During this period, such articles shall not be altered in any way. A dealer is not prohibited from selling or arranging to sell such articles during this ten (10) day period so long as such articles remain in his possession as required by this section.

*(Ord. 23153, § 1, 8-7-2014)*

### Section 3005. Penalty.

Any person violating any provision of this chapter, either by doing anything which is prohibited or by failure or refusal to do anything which is commanded or required, shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more

than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days. Each day of such violation shall be deemed a separate offense.

*(Ord. 23153, § 1, 8-7-2014)*

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## CHAPTER 31. SCRAP METAL DEALERS

Section 3100. Intent and purpose.
Section 3101. Definitions.
Section 3102. Property register required.
Section 3103. Purchase restrictions.
Section 3104. Penalty.

### Section 3100. Intent and purpose.

The City of Tulsa is committed to protecting its residents and the general public from the scourge of scrap metal theft and to providing law enforcement with the tools to enforce municipal and state laws to combat scrap metal theft in the City. This chapter shall regulate "Scrap Metal Dealers".

*(Ord. No. 23559, § 1, 9-14-2016)*

### Section 3101. Definitions.

As used in the Act:

**A.** **Aluminum material** means the metal aluminum or aluminum alloy or anything made of either aluminum or aluminum alloy, except aluminum beverage cans;

**B.** **Copper material** means the metal copper or copper alloy or anything made of either copper or copper alloy;

**C.** **City** means the City of Tulsa, an Oklahoma municipal corporation;

**D.** **Exempted Seller** means any person, firm, corporation or municipal corporation which constructs, operates or maintains electric distribution and transmission or communications facilities; or any person, firm or corporation that produces or otherwise acquires any scrap metal regulated by the provisions of this chapter or the Oklahoma Scrap Metal Dealers Act, 2 O.S. §§ 11-90 *et seq.*, as amended, in the normal course of business as:

**1.** Mechanical, electrical or plumbing contractor licensed to do business in this state,

**2.** Scrap metal dealer (Standard Industrial Classification Codes 5051 or 5093), licensed pursuant to the provisions of the Oklahoma Scrap Metal Dealers Act,

**3.** Holder of a farm-use tax permit,

**4.** Manufacturer,

**5.** Distributor, or

**6.** Retailer;

**E.** **Scrap metal** means any copper material or aluminum material or any item listed in Section 3104 B. of this chapter, offered for sale or resale or purchased by any person, firm or corporation;

**F.** **Scrap metal dealer** means any person, firm or corporation being an owner, keeper or proprietor of a retail or wholesale business which buys, sells, salvages, processes or otherwise handles scrap metal materials regulated by the provisions of the Oklahoma Scrap Metal Dealers Act; and

**G. Yard** means the place where any scrap metal dealer stores scrap metal materials or keeps such materials for purpose of sale.

*(Ord. No. 23559, § 2, 9-14-2016)*

### Section 3102. Property register required.

**A.** Every scrap metal dealer shall keep a separate book, record or other electronic system as authorized by this chapter to record and maintain the following data from any seller of any amount of scrap metal:

**1.** A legible photocopy of the seller's driver license or government provided photo identification, issued by the United States government, State of Oklahoma, or any other state of the United States, that contains his or her name, address, date of birth, weight and height;

**2.** Vehicle description and license tag number of the seller if the vehicle was used to transport the material being sold;

**3.** Date and place of the transaction and the transaction number as provided by the scrap metal dealer;

**4.** Description of the items sold and weight of the items as required by this chapter;

**5.** Whether the scrap metal is in wire, cable, bar, rod, sheet or tube form;

**6.** If any insulation is on the scrap metal, the names and addresses of the persons, groups or corporations from whom seller purchased or obtained the materials; and

**7.** If apparent on the scrap metal, the name of the manufacturer and serial number of each item of scrap metal.

**B.** A scrap metal dealer shall report to the Tulsa Police Department all purchases of scrap metal within forty-eight (48) hours following such purchase. The report shall contain all the information required by this chapter and shall be reported electronically using the LeadsOnline program.

**C.** Records required by this section shall be available for inspection during the regular business hours of a scrap metal dealer by any person authorized by law to make inspection. No scrap metal dealer shall purchase, take or receive from any person any scrap metal between the hours of 9:00 p.m. and 6:00 a.m.

**D.** Purchases of thirty-five (35) pounds or more of scrap metal containing a manufacturer's serial number or other unique label or mark shall be held by the scrap metal dealer, separate and apart from all other purchases so that the purchased scrap metal may be readily identifiable, for a period of not less than ten (10) days from the date of purchase. During the holding period the scrap metal dealer may not change the form of the purchased scrap metal and shall permit inspection by any person authorized by law to make inspection of such materials.

**E.** Purchases of thirty-five (35) pounds or more of scrap metal which does not contain a manufacturer's serial number or other unique label or mark shall either be held for the same time and in the same manner as required by subsection D. of this section; or in the alternative, the scrap metal dealer shall be required to obtain a digital image of the items purchased, the seller of the items, a copy of the bill of sale and a copy of the seller's photo identification. The digital image shall contain a depiction that clearly identifies the seller and the items sold, and is captured in the common JPEG format.

The digital image shall be retained by the purchaser for a minimum of ninety (90) days from the date of purchase. For the purpose of this section a "digital image" means a raster-based two-dimensional, rectangular array of static data elements called pixels, intended for display on a computer monitor or for transformation into another format, such as a printed page.

**F.** No purchase of any amount of scrap metal from an Exempted Seller shall be subject to any holding period or digital imaging identification required by subsection D. or E. of this section.

**G.** It shall be an offense for any scrap metal dealer or any person to sell or purchase copper material or copper wire from which the actual or apparent insulation or other coating has been burned, melted or exposed to heat or fire resulting in melting some or all of the insulation or coating. It shall be an offense for any person to sell or purchase copper wire that is four-gauge or larger in size. This subsection shall not apply to sales by or purchases from an Exempted Seller as defined in Section 3102 D. of this title. Documentation of exempt seller status shall be provided to the scrap metal dealer and, if requested by a law enforcement agency where the purchase was made, shall be transmitted to the law enforcement agency and may be kept as a permanent record and made available for public inspection.

**H.** It shall be an offense for any scrap metal dealer to purchase any scrap metal item from a person under the age of 18 years without having first obtained the consent, in writing, of a parent or guardian of such person. Such written consent shall be kept with the book, record or other electronic recording system required by subsection A. of this section and, if requested by a person authorized by law to make inspection where the purchase was made, shall be transmitted to the Tulsa Police Department and may be kept as a permanent record and made available for public inspection.

**I.** A scrap metal dealer shall obtain from each seller of scrap metal, including a parent or guardian on behalf of a person under the age of 18 years who sells scrap metal to a scrap metal dealer, a written declaration of ownership containing a legible signature of the seller. The declaration of ownership shall be in the following form and shall appear on the bill of sale or transaction ticket to be completed by the seller in the presence of the purchaser at the time of the transaction:

"I hereby affirm under penalty of prosecution that I am the rightful owner of the herein described merchandise; or I am an authorized representative of the rightful owner and affirm that I have been given authority by the rightful owner to sell the herein described merchandise.

_____
Signature"

**J.** A scrap metal dealer purchasing a vehicle from any person shall be required to record the information required in subsection A. of this section as well as the make, model, license tag number and vehicle identification number of the purchased vehicle. A person selling a vehicle to a scrap metal dealer shall be required to present to the scrap metal dealer a clear title of the vehicle or a verified bill of sale from the owner of the vehicle or other proof of ownership in addition to signing a declaration of ownership as required by subsection I. of this section. The provisions of this subsection shall not apply to sales, purchases or other transfer of vehicles between scrap metal dealers and licensed automotive dismantlers and parts recyclers.

**K.** The provisions of this Act shall not apply to the sale or purchase of aluminum beverage cans for recycling purposes.

**L.** A scrap metal dealer shall not enter into any cash transactions in excess of One Thousand Dollars ($1,000.00) in payment for the purchase of scrap metal that is listed in subsection B. of Section 3104 of this chapter unless the transaction is made with an exempted seller. Payment by check from a scrap metal dealer shall be issued and made payable only to the seller of the scrap metal whose identification information has been obtained pursuant to the provisions of this section.

*(Ord. No. 23559, § 3, 9-14-2016; Ord. No. 24047, §§ 1—3, 11-28-2018)*

**Section 3103. Purchase restrictions.**

**A.** Scrap metal dealers permitted to do business as provided by this chapter or by the Oklahoma Scrap Metal Dealers Act shall not purchase any item listed in subsection B. of this section without:

**1.** Obtaining a proof that the seller owns or is authorized to sell the property, by evidence of a receipt of purchase or a bill of sale for the property; and

**2.** Requiring the seller to sign a written declaration in the form required by subsection I. of Section 3103 of this chapter; or

**3.** Obtaining proof that the seller is an exempted seller or an employee of an exempted seller, as defined in Section 3102 of this chapter.

**B.** The following items are regulated by the provisions of this chapter:

**1.** Manhole covers, street signs, traffic signs, traffic signals including their fixtures and hardware, or any other identifiable public property;

**2.** Electric light poles, including their fixtures and hardware, electric transmission or distribution cable and wires, and any other hardware associated with electric utility or telecommunication systems;

**3.** Highway guard rails;

**4.** Funeral markers, plaques or funeral vases;

**5.** Historical markers or public artifacts;

**6.** Railroad equipment;

**7.** Any metal item marked with any form of the name, initials or logo of a governmental entity, utility, cemetery or railroad;

**8.** Condensing or evaporating coil from a heating or air conditioning unit;

**9.** Aluminum or stainless steel containers or bottles designed to contain fuel;

**10.** Metal beer kegs that are clearly marked as being the property of the beer manufacturer;

**11.** Metal bleachers or other seating facilities used in recreational areas or sporting arenas;

**12.** Automotive catalytic converters;

**13.** Plumbing or electrical fixtures;

**14.** Tools;

**15.** Machinery or supplies commonly used in the drilling, completing, operating or repairing of oil or gas wells; and

**16.** Stainless steel fittings and fixtures commonly used in the operation of car wash facilities.

*(Ord. No. 23559, § 4, 9-14-2016)*

**Section 3104. Penalty.**

**A.** Unless otherwise provided for herein, any person violating any provisions of this chapter shall be guilty of a misdemeanor, and upon conviction, shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments. Each day in which a violation occurs shall be deemed a separate offense.

**B.** Any person convicted of a second violation of this chapter shall be guilty of a misdemeanor and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), and/or by imprisonment in the City Jail for not more than six (6) months, excluding costs, fees and assessments. Each day in which a violation occurs shall be deemed a separate offense.

*(Ord. No. 23559, § 5, 9-14-2016)*

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# TITLE 27-A SOLID WASTE (REPEALED)*

*__Note—__This title was repealed effective May 8, 1990. Remaining provisions appear in Title 11-B.

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# TITLE 28 THE MUNICIPAL EMPLOYEES' RETIREMENT PLAN

**Chapter 1. Introduction and Definitions**
**Chapter 2. Participation**
**Chapter 3. Contributions**
**Chapter 4. Eligibility for Vesting**
**Chapter 5. Measurement of Years of Credited Service**
**Chapter 6. Eligibility for and Calculation of Various Types of Retirement Income**
**Chapter 7. Forms of Pension Retirement Income**
**Chapter 8. Death Benefits**
**Chapter 9. Benefit Restrictions**
**Chapter 10. Administration of Plan**
**Chapter 11. Administration of the Trust Fund**
**Chapter 12. Amendment and Termination**
**Chapter 13. Miscellaneous**

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## CHAPTER 1. INTRODUCTION AND DEFINITIONS

Section 100. Introduction.
Section 101. Definitions.
Section 102. Construction.

### Section 100. Introduction.

The City of Tulsa, Oklahoma, a municipal corporation, pursuant to Oklahoma statutory enabling legislation then codified as 11 O.S.Supp.1957, §§ 1531, *et seq.,* and now codified as 11 O.S.1991, §§ 48-101, *et seq.*, as amended, adopted an ordinance to provide a pension and retirement system for eligible employees of the City and related governmental entities effective May 1, 1960, which has been amended from time to time. This title shall be operative retroactive to January 1, 1989, except as may thereafter be amended, and shall be named "The Municipal Employees' Retirement Plan."

All rights and benefits of an employee whose Termination of Employment, as herein defined, occurred prior to January 1, 1989, shall be determined solely by the provisions in effect at the time of that Termination of Employment, including the benefit rate in effect at the time of such Termination of Employment, unless otherwise specifically provided herein.

*(Ord. No. 17300)*

### Section 101. Definitions.

For the purpose of this title, the following words and phrases shall have the meanings stated in this section:

**A. Actuarial accrued liability.** The portion of the present value of fully projected benefits accrued as of the valuation date.

**B. Actuarial equivalent.** The benefit of equivalent value, computed on the basis of an appropriate Mortality Table as approved by the Board of Trustees. The mortality table used for purposes of adjusting any benefit or limitation under Subsection 415(b)(2)(B), (C) or (D) of the Internal Revenue Code of 1986, as amended, is the table prescribed in Rev. Rul. 2001-62.

**C. Actuarially Determined Employer Contribution (ADEC).** The Employers periodic required contribution, expressed as a percentage of earnings of all participating employees, as determined by adding the normal cost to the amortization of the unfunded actuarial accrued liability, and as reported in the annual actuarial examination required by Section 1005 hereof.

**D. Actuary.** An independent, qualified actuary selected by the Board of Trustees.

**E. Basic employee contributions.** The mandatory contributions described in Section 301 hereof.

**F. Board of Trustees.** The Board of Trustees of The Municipal Employees' Retirement Plan provided for in Section 1000 hereof.

**G. Closed amortization schedule.** Beginning January 1, 2016, the Employer's total unfunded actuarial accrued liability will be amortized as a level percent of the total earnings of Employees in the Plan, over a closed period of thirty (30) years. At the beginning of each plan year thereafter, the amortization schedule will decrease by one year, so that the projected unfunded actuarial accrued liability for December 31, 2046,

will be no greater than zero dollars. The closed amortization schedule will continue beyond December 31, 2046 so long as the Plan has an actuarial accrued liability greater than zero dollars.

**H. Continuous employment.** A period or periods of employment by an Employee while making Basic Employee Contributions to the Plan, plus periods of employment by an Employee during which the Employee is not allowed to make Basic Employee Contributions to the Plan because the Employee does not satisfy the Plan's minimum service requirements or (prior to September 1, 1990) the Plan's minimum age requirements.

**I. Credited interest.**

1. **Basic employee contributions.** Credited interest on Basic Employee Contributions shall mean interest at an annual percentage rate of three and one-half percent (3.5%) for the period May 1, 1960, through December 31, 1972; four percent (4%) for the period January 1, 1973, through December 31, 1974; and five percent (5%) for periods on and after January 1, 1975, or such other rate as may be established from time to time by the Board of Trustees.
2. **Reserved.**
3. **Computation of interest.** Computation of credited interest for any given year shall be based on the total amount of each Participant's Basic Employee Contributions and previously credited interest, if any, on deposit in the fund immediately before the first day of the preceding calendar year. Such credited interest shall be computed monthly and credited annually. The credited interest shall be applied as that prior year's interest, except that in the event of a Participant's termination of employment or death on any day other than December 31st, credited interest shall be computed to include only credit for all full months Participant's funds were on deposit with the Plan.

**J. Credited service.** A period which is included in the calculation of the amount of a Participant's retirement income. A Participant's credited service shall be determined in accordance with Chapter 5 herein.

**K. Earnings.** The monthly base earnings payable to a Participant by the Employer, excluding payments for overtime, reimbursement for travel or other expenses, service pay or other special payments. On and after January 1, 1989, such Earnings shall include any amounts defined as Basic Employee Contributions. Earnings shall also include amounts which would be payable as base earnings but for election by the Participant to defer such earnings under a plan deemed to be a qualified plan described in Sections 125, 401, 403 or 457 of the Internal Revenue Code of 1986, as amended. Effective January 1, 1989, earnings for any plan year will be limited to the first Two Hundred Thousand Dollars ($200,000.00) of Earnings (or such other amount determined in accordance with Code Section 415(d)). Effective January 1996, for each Participant who first becomes a Participant in the Plan after 1995 earnings for any plan year will be limited to the first One Hundred Fifty Thousand Dollars ($150,000.00) of earnings (or such other amount determined in accordance with Code Section 401(a)(17)). For purposes of calculating Earnings received on or after January 1, 2002, the limitation under Section 401(a)(17) of the Code is increased to Two Hundred Thousand Dollars ($200,000.00), as adjusted.

**L. Employee.** A permanent and full time, classified or unclassified employee of the Employer. Employees shall be considered full time if their positions are typically scheduled for a normal work week of forty (40) hours or more. However, employees who were participating in the Plan and required to work less than forty (40) hours per week on January 1, 1974, shall be eligible to continue such participation in the Plan so long as they are otherwise eligible.

**M. Employer.** The City of Tulsa, Oklahoma; the Indian Nations Council of Governments; the City of Tulsa-Rogers County Port Authority; the Tulsa Airport Improvement Trust; the Tulsa City-County Library; the Metropolitan Tulsa Transit Authority; the Tulsa River Parks Authority; and the Tulsa Authority for Economic Opportunity.

**N. Final average earnings.**

**1.** General: Final Average Earnings are the average monthly earnings of a Participant during the thirty (30) months, whether consecutive or not, in which Participant's aggregate earnings shall have been highest, selected from the last sixty (60) months prior to the Participant's Termination of Employment. This calculation excludes any period of employment during which an Employee has no earnings payable, and excludes months where an Employee has less than seventy-five percent (75%) of the normal hours worked. When the last sixty (60) months prior to Termination of Employment contain any excluded months as described in the preceding sentence, the sixty (60) month period is not extended to include additional months immediately preceding the sixty (60) month period. Instead, the highest thirty (30) months used in the average are taken from such period which has fewer than sixty (60) months.

**2.** If the Participant has fewer than thirty (30) months of earnings during such sixty (60)-month period, the thirty (30)-month average shall be taken over such fewer months of Earnings during such sixty (60)-month period, excluding any months during which no Earnings were paid to the Participant.

**3.** If the Participant shall have been employed for fewer than thirty (30) complete months, all of the complete months during the total period of employment shall be used for the purpose of determining final average earnings. For purposes of this section, a 'complete month' is defined as 75 percent (75%) or more of the workdays in the given month.

**4.** For purposes of computing final average earnings of a Participant who retires after July 1, 2002, and whose earnings were reduced by the fiscal year 2002-2003 temporary, general wage rollback of approximately two and seven-tenths percent (2.7%), the Participants earnings for the month of June 2002 shall be the Participant's earnings during months within fiscal year 2002-2003 for which the Participants earnings were so reduced, unless the Participant has attained higher earnings, in which event, the higher monthly earnings shall be used.

**O. Funded ratio.** The ratio of the Plan's current assets to the present value of earned benefits, as determined by the Plan's actuary, by any method acceptable to the Governmental Accounting Standards Board (GASB).

**P. Legislative body.** The governing body of the City of Tulsa, Tulsa, Oklahoma, a municipal corporation, as established by the currently existing or any subsequently amended Charter of the City of Tulsa, Oklahoma.

**Q Long-term disability.** Disability of a Participant which results in such Participant's becoming qualified for and receiving long-term disability benefits under the terms of an insurance program, then available through the Employer to its Employees, or which disability results in such Participant's receiving disability benefits under the provisions of the Social Security Act.

**R. Normal cost.** The portion of the cost of projected benefits allocated to the current plan year. The normal cost for which the Employer is responsible equals the total normal cost for the Plan reduced by Employee Contributions.

**S. Normal retirement date.** The first day of the month after a person reaches sixty-five (65) years of age or on the sixty-fifth birthday, if that is the first day of the month.

**T. Reserved**

**U. Participant.** An Employee who has met all the requirements for eligibility to participate in the Plan, has become included in the Plan, as provided in Chapter 2 herein, and who continues to have rights or contingent rights to benefits payable under the Plan.

**V. Plan.** The Municipal Employees' Retirement Plan as established by the provisions of this title.

**W. Plan improvement.** Any change made to the Plan which results in a richer benefit to Participants.

**X. Plan year.** The calendar year.

**Y. Present value of fully projected benefits.** The total future benefit cash flows from the Plan projected using actuarial assumptions, and then discounted to the valuation date using the valuation interest rate.

**Z. Retirement fund or fund.** The Employee Retirement Fund described in Section 1100 hereof held in trust and established to provide the benefits and administrative costs required by the Plan.

**AA. Staff Member.** The City personnel who assist the Board of Trustees in carrying out the duties and responsibilities of the Municipal Employees' Retirement Plan.

**BB. Termination of employment.** The retirement, resignation or other voluntary or involuntary cessation of an Employee's employment with the Employer.

**CC. Unfunded actuarial accrued liability.** The excess, if any of the actuarial accrued liability over the actuarial value of assets.

*(Ord. Nos. 17199, 17389, 17981, 18364, 18513, 19320, 19899, 19988, 20420, 20497, 20812, 21204, 21401; Ord. No. 23382, § 1, 10-1-2015; Ord. No. 24621, § 1, 6-2-2021; Ord. No. 25547, § 1, 3-26-2025)*

### Section 102. Construction.

Whenever herein used, the masculine gender shall include the feminine gender and, if applicable, the singular shall include the plural. The words "hereof," "herein," "hereunder" or any other compounding of the word "here" shall mean and refer to the entire Plan rather than to any particular provision or section of this title, unless specifically delineated as such.

## CHAPTER 2. PARTICIPATION

Section 200. Commencement of participation.
Section 201. Termination of contributing participation.
Section 202. Reinstatement of participation.

### Section 200. Commencement of participation.

Any Employee as defined by Subsection 101.L. (except Excluded Employees as defined hereinafter) shall become a Participant according to the following provisions:

**A. Service requirement.** Each Employee shall become a Participant in the Plan on the first day of the month coinciding with or next following such Employee's satisfaction of the following eligibility requirements:

**1. General Rule.**

**a.** Employees initially employed by the Employer on or after September 1, 1990, shall have satisfied eligibility requirements upon the completion of twelve (12) consecutive months of employment with the Employer, regardless of the age of the Employee.

**b.** Employees initially employed by the Employer on or after January 1, 1996, shall have satisfied eligibility requirements effective January 1, 1997, regardless of the age of the Employee.

**c.** Employees initially employed by the Employer on or after January 1, 1997, shall have satisfied eligibility requirements on the first day of the month coinciding with or next following their first day of employment by the Employer, regardless of the age of the Employee.

**2. Retroactive application of the General Rule.**

**a.** Employees employed by the Employer prior to September 1, 1999, who were still actively employed by the Employer or who were on an authorized Leave of Absence under the provisions of Section 504 hereof on September 1, 1999, and who entered the Plan on the first date they became eligible to enter the Plan under then existing Participation requirements, shall be deemed to have satisfied eligibility requirements the first day of the month coinciding with or next following their first day of employment with the Employer. Such Employees shall receive Credited Service and/or Continuous Employment for periods of Employment as an Employee (other than as an Excluded Employee as defined hereinafter) before September 1, 1999, as if Basic Employee Contributions had begun upon the first day of the month coinciding with or next following the first day of Employee's employment.

**b.** Employees employed by the Employer prior to January 1, 2002, who were still actively employed by the Employer or who were on an authorized Leave of Absence under the provisions of Section 504 hereof on January 1, 2002, and who entered the Plan on a date other than the first date they became eligible to do so shall receive Credited Service and/or Continuous Employment for periods of Employment as an Employee (other than as an Excluded Employee as defined hereinafter) before January 1, 2002, as if Basic Employee Contributions had begun one year prior to the date that such employees actually entered the Plan; provided, however, that such Credited Service and/or

Continuous Employment shall begin no earlier than the first day of the month coinciding with or next following the employee's first day of employment by the Employer.

**c.** No retroactive Basic Employee Contribution shall be required of Employees who gain additional Continuous Employment and/or Credited Service for Past Service or Future Service as the result of this retroactive application of the General Rule.

**3. Rules for Participants no longer employed on September 1, 1990.** Participants who were employed by the Employer prior to September 1, 1990, but who were neither employed by the Employer nor on an authorized Leave of Absence under Section 504 hereof on September 1, 1990, shall be subject to the Participation, Continuous Employment and Credited Service requirements which were in effect at the time such Participants originally became eligible to participate in the Plan as follows:

**a. Past Service.** Employees who were hired prior to May 1, 1960 (the original Effective Date of the Plan) and who entered the Plan on May 1, 1960, received Credited Service for those full years and/or calendar months employed prior to May 1, 1960, only after such Employees attained thirty (30) years of age and completed three (3) years of Employment.

**b. Future Service.**

(1) Between May 1, 1960, and July 1, 1967, an Employee employed by the Employer (regardless of when such Employee was hired) became eligible for Participation in the Plan after attainment of twenty-five (25) years of age and completion of three (3) years of Continuous Employment with the Employer.

(2) Between July 1, 1967, and September 1, 1990, an Employee employed by the Employer (regardless of when such Employee was hired) became eligible for Participation in the Plan after attainment of twenty-five (25) years of age and completion of twelve (12) consecutive months of employment with the Employer.

**B. Excluded Employees.** The following Employees are excluded from becoming Participants in the Plan:

**1.** Employees of the Police and Fire Departments of the City of Tulsa, Oklahoma, who are eligible to participate in the "Oklahoma Police Pension and Retirement System" or the "Oklahoma Firefighter's Pension and Retirement System" established by the state of Oklahoma;

**2.** Employees of the Metropolitan Tulsa Transit Authority who are eligible to participate in the retirement program negotiated by the bargaining unit which represents all employees of such authority other than administrative and clerical employees; and

**3.** Elected officials of the City of Tulsa, Oklahoma.

*(Ord. Nos. 17389, 18782, 19633, 20273; Ord. No. 25547, § 2, 3-26-2025)*

## Section 201. Termination of contributing participation.

A Participant shall cease to be a contributing Participant hereunder on the day of the Participant's Termination of Employment as an Employee, or the Participant's commencement of employment as an Employee excluded from Participation under Subsection 200.B hereof, or the Participant's cessation of qualification as an Employee as defined in Subsection 101.L hereof.

*(Ord. No. 25547, § 3, 3-26-2025)*

## Section 202. Reinstatement of participation.

An Employee who ceases to be a contributing Participant according to Section 201 hereof and who subsequently returns to employment as an Employee not excluded from participation under Subsection 200.B hereof shall resume participation and Basic Employee Contributions as of the first day of the month following such return as an Employee.

*(Ord. No. 25547, § 4, 3-26-2025)*

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## CHAPTER 3. CONTRIBUTIONS*

Section 300. Contributions by the Employer.
Section 301. Contributions by Participants.
Section 302. Mandatory duty of Secretary of Council.

### Section 300. Contributions by the Employer.

**A. No amendment or repeal.** The Employer funding requirements set forth in this Section shall remain in force unless and until the requirements set forth in Section 302 for amendment or repeal are met.

**B. Plan years prior to January 1, 2016.**

**1.** For Plan Years prior to January 1, 2016, the Employer shall make contributions to the Fund in such amounts and at such times as shall be necessary to provide the benefits set forth herein and in accordance with the provisions of any law applicable to the Plan.

**2.** Subject to the provisions of Section 302 hereof, all contributions made by the Employer to the Fund shall be irrevocable and shall be used solely for the exclusive benefit of Participants and their beneficiaries and to defray reasonable expenses of the Plan or Fund. Forfeitures arising because of death or Termination of Employment before a Participant becomes eligible for a benefit from the Plan or arising for any other reason shall be applied to reduce the cost of the Plan, not to increase the benefits otherwise payable to Participants. Employer contributions shall be deposited in the Fund no later than five (5) calendar days following each payday, and in such amounts as the Board of Trustees in conjunction with the annual actuarial examination shall determine necessary to keep the Fund actuarially sound, subject to the appropriation of funds by the Employer.

**C. Plan years beginning January 1, 2016.**

**1.** For all Plan Years beginning with the Plan Year beginning January 1, 2016, the Employer shall make contributions to the Fund in amounts not less than eleven and one-half percent (11.5%) of the total Earnings of its Participants in the Plan, or in the amount of the Actuarially Determined Employer Contribution for that Plan Year, whichever is greater and in accordance with the provisions of any law applicable to the Plan.

**2.** If the Funded Ratio, as determined in the annual actuarial study required by Section 1005 herein, equals or exceeds one hundred twenty percent (120%), then the Employer is eligible to reduce the Employer contribution below the amount required by this paragraph for the next Plan Year. In the event that the Employer contribution is so reduced, the Employer must continue to make contributions that are equal to or greater than the Normal Cost, plus any remaining obligations under the Closed Amortization Schedule. In no event will the Employer contribution decrease by more than one percent (1.00%) between a Plan Year and the immediately subsequent Plan Year.

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***Editor's note—**Ord. No. 24476, § 1, adopted November 4, 2020, repealed the former Ch. 3, §§ 300—302, and enacted a new Ch. 3 as set out herein. The former Ch. 3 pertained to similar subject matter and derived from Ord. Nos. 17199, 20812; Ord. No. 22425, § 1, 4-28-2011, eff. 10-1-2011; Ord. No. 23058, § 1, 2-13-2014; Ord. No. 23382, § 2, 10-1-15.

**3.** If the annual actuarial study shall at any time result in a finding that the Funded Ratio is less than one hundred and twenty percent (120%), the Employer shall resume making the minimum Employer contribution required by this paragraph no later than the next Plan Year after such finding.

**4.** Subject to the provisions of Section 302 hereof, all contributions made by the Employer to the Fund shall be irrevocable and shall be used solely for the exclusive benefit of Participants and their beneficiaries and to defray reasonable expenses of the Plan or Fund. Forfeitures arising because of death or Termination of Employment before a Participant becomes eligible for a benefit from the Plan or arising for any other reason shall be applied to reduce the cost of the Plan, not to increase the benefits otherwise payable to Participants. Employer contributions shall be deposited in the Fund no later than five (5) calendar days following each pay day, in such amounts as are described herein.

**D. Plan years beginning January 1, 2025.**

**1.** For all Plan Years beginning with January 1, 2025, the Employer shall make contributions to the Fund in amounts not less than seventeen percent (17%) of the total Earnings of its Participants in the Plan, or in the amount of the Actuarially Determined Employer Contribution for that Plan Year, whichever is greater and in accordance with the provisions of any law applicable to the Plan. In determining the Actuarially Determined Employer Contribution, both Employer and Basic Employee Contributions will be taken into account.

**2.** Once the Funded Ratio, as determined in the annual actuarial study required by Section 1005 herein, equals or exceeds one hundred percent (100%), the Employer is eligible to reduce the Employer contribution below the amount required by paragraph D.1. for the next Plan Year. However, in the event of a reduction, the Employer must continue to contribute an amount equal to or greater than the Normal Cost, plus any remaining obligations under the Closed Amortization Schedule.

**3.** In a Plan Year following a Plan Year in which the funded ratio was at least one hundred percent (100%), if the annual actuarial study determines that the funded ratio falls below one hundred percent (100%), the Employer shall resume making the Employer contribution required by paragraph D.1. no later than the next Plan Year following such a finding, except that the Employer contribution shall not increase more than two percent (2%) each year.

**4.** In no event shall the Employer's contribution decrease by more than one percent (1%) between a Plan Year and the immediately subsequent Plan Year.

**5.** Subject to the provisions of Section 302 hereof, all contributions made by the Employer to the Fund shall be irrevocable and shall be used solely for the exclusive benefit of Participants and their beneficiaries and to defray reasonable expenses of the Plan or Fund. Forfeitures arising because of death or Termination of Employment before a Participant becomes eligible for a benefit from the Plan or arising for any other reason shall be applied to reduce the cost of the Plan, not to increase the benefits otherwise payable to Participants. Employer contributions shall be deposited in the Fund no later than five (5) calendar days following each pay day, in such amounts as are described herein.

*(Ord. No. 24476, § 1, 11-4-2020; Ord. No. 25547, § 5, 3-26-2025)*

## Section 301. Contributions by Participants.

**A. No amendment or repeal.** The Participants funding requirements set forth in this Section shall remain in force unless and until the requirements set forth in Section 302 for amendment or repeal are met.

**B. Basic employee contributions.** Each Participant shall be required to contribute toward the cost of the Plan an amount equal to two percent (2%) of Earnings. This contribution rate shall increase to the percentages as follows:

| Effective Date | Amount of Contribution |
|---|---|
| 8/1/89 | 3.00% of Earnings |
| 7/1/90 | 4.00% of Earnings |
| 7/1/11 | 5.00% of Earnings |
| 7/1/12 | 6.00% of Earnings |
| 7/1/14 | 6.50% of Earnings |
| 1/3/21 | 7.5% of Earnings |
| 9/25/22 | 8.00% of Earnings |

The Participant's first contribution, following their entry date into the Plan as determined by Chapter 2, Section 200, will be calculated based on Earnings for the entire payroll period during which their entry date falls. Contributions shall be made by each Participant on each payroll date to the Retirement Fund and shall be designated as Employer contributions pursuant to Section 414(h)(2) of the Internal Revenue Code of 1986. Such designation is contingent upon the contributions being excluded from the Participant's gross income for federal income tax purposes. For all other purposes of the Plan, such contributions shall be considered to be employee contributions. Credited Interest shall be earned on Basic Employee Contributions.

**C. General provisions.**

**1.** The contributions of each Participant shall be deducted from the Participants pay. The contributions shall be paid to the Treasurer of the City of Tulsa, Oklahoma, within five (5) calendar days of each pay period for deposit in the retirement fund.

**2.** On and after January 1, 1989, any amounts deducted from earnings of a Participant as Basic Employee Contributions must be accounted for separately from amounts deducted prior to such date.

*(Ord. No. 24476, § 1, 11-4-2020; Ord. No. 24872, § 1, 7-20-2022; Ord. No. 25547, § 6, 3-26-2025)*

## Section 302. Mandatory duty of Secretary of Council.

**A.** Any attempt to amend or repeal this Chapter can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

**B.** In the event a request is ever made by any party to place the issue of the amendment or repeal of this Chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements have been made.

**C.** The Secretary shall forthwith (within twenty-four (24) hours) notify the Board of Trustees, and all major newspapers, all television stations and all radio stations then located within the City of Tulsa of the request for amendment or repeal of this Chapter.

**1.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at the City Hall, to which the Board of Trustees, and all of the below-named newspapers, radio and television stations shall be invited.

**2.** The Secretary shall forthwith cause a public notice to be given in the Tulsa World and in all other appropriate media outlets, as determined by the City's Communication staff, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication of such notice. The notice shall be published once a week for two (2) consecutive weeks.

**3.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**D.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 302.C above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this Chapter as above provided.

*(Ord. No. 24476, § 1, 11-4-2020)*

## CHAPTER 4. ELIGIBILITY FOR VESTING

Section 400. Attainment of sixty-five (65) years of age while a Participant.
Section 401. Termination of employment prior to sixty-five (65) years of age.
Section 402. Non-vested termination.

### Section 400. Attainment of sixty-five (65) years of age while a Participant.

A Participant who attains sixty-five (65) years of age while making contributions to the Plan shall be one hundred percent (100%) vested in a retirement income regardless of the number of years of Continuous Employment and shall be eligible to receive a retirement income calculated according to Chapter 6 hereof, unless payment of the benefit is suspended during employment according to Section 707 hereof.

*(Ord. No. 25547, § 7, 3-26-2025)*

### Section 401. Termination of employment prior to sixty-five (65) years of age.

**A.** A Participant whose Termination of Employment occurs prior to sixty-five (65) years of age and before January 1, 1995, shall be eligible to receive a vested retirement income equal in value to the following percent of the Participant's retirement income as determined in Section 600 hereof.

| Years of Continuous Employment | Percent Vested |
|---|---|
| Less than 5 | 0% |
| 5 | 50% |
| 6 | 60% |
| 7 | 70% |
| 8 | 80% |
| 9 | 90% |
| 10 | 100% |

For each completed month in excess of completed Years of Continuous Employment, an additional .833 shall be added to the above Percent Vested, provided no Participant shall be vested in excess of one hundred percent (100%).

**B.** A Participant whose Termination of Employment occurs prior to sixty-five (65) years of age and after December 31, 1994, shall be eligible to receive a vested retirement income equal in value to the following percent of the Participant's retirement income as determined in Section 600 hereof.

| Years of Continuous Employment | Percent Vested |
|---|---|
| Less than 5 | 0% |
| 5 or more | 100% |

**C.** A Participant who shall have attained fifty-five (55) years of age on or before July 15, 1983, and who was a Participant as of July 15, 1983, shall be one hundred percent

(100%) vested in the Participant's Early Retirement Income, including an Early Retirement Income, as calculated in Subsection 601.B hereof and a Normal Retirement Income as calculated in Section 600 hereof.

*(Ord. Nos. 17980, 18364)*

### Section 402. Non-vested termination.

Participants whose Continuous Employment terminates before the Participant shall have acquired a vested interest, as provided in Sections 400 or 401 hereof, shall receive a return of their Basic Employee Contributions with Credited Interest thereon upon their request.

**A. Mandatory Cashout of Small Amounts.** If the Participant does not request a return of their Basic Employee Contributions with Credited Interest within three years of Termination of Employment, then the Plan shall make an automatic refund as follows as soon as administratively feasible.

**1.** If the amount of Basic Employee Contributions with Credited Interest is less than One Thousand Dollars ($1,000.00), the Plan will refund such Basic Employee Contributions with Credited Interest directly to the Participant unless the Participant directs otherwise within the notice period described below in Subsection 3.

**2.** If the amount of Basic Employee Contributions with Credited Interest is One Thousand Dollars ($1,000.00) or more but less than Seven Thousand Dollars ($7,000.00), the Plan will roll over such Basic Employee Contributions with Credited Interest into an IRA unless the Participant directs otherwise within the notice period described below in Subsection 3.

**3.** In accordance with Code Section 401(a)(31)(B), all Participants who are subject to this automatic refund shall be provided with notice of the automatic refund and provided at least thirty (30) days to direct the distribution prior to the automatic refund being made as directed above.

**B.** If a Participant who is not subject to the mandatory cashout above, does not request a return of their Basic Employee Contributions plus Credited Interest before the Participant's required beginning date as determined by Code Section 401(a)(9)(C)(v), the Plan shall pay such return of their Basic Employee Contributions with Credited Interest thereon no later than the Participant's required beginning date.

Upon Participant's receipt of a refund either upon request or as part of the mandatory cashouts noted above, the Participants Continuous Employment shall be canceled for all periods before the payment or rollover. The Continuous Employment may be reactivated only pursuant to Section 504.C.3 or Section 504.E hereof.

*(Ord. No. 18513; Ord. No. 22626, § 1, 2-2-2012; Ord. No. 25547, § 8, 3-26-2025)*

## CHAPTER 5. MEASUREMENT OF YEARS OF CREDITED SERVICE

Section 500. General rule.
Section 501. Past service.
Section 502. Future service.
Section 503. Excluded periods.
Section 504. Temporary breaks in credited service.

### Section 500. General rule.

Years of Credited Service, for purposes of calculating a Participant's retirement income according to Chapter 6 hereof, shall equal the sum of the Participant's Past Service and Future Service as defined in Sections 501 and 502 hereof, except for periods excluded according to Section 503 hereof. Credited Service shall be measured in years and completed calendar months, disregarding fractions of calendar months and counting each completed calendar month as eight hundred thirty-three ten thousandths (.0833) of a year.

For all Terminations of Employment on or after April 1, 2025, years of Credited Service, for purposes of calculating a Participant's retirement income according to Chapter 6 hereof shall equal the sum of the Participant's Past Service and Future Service as defined in Sections 501 and 502 hereof, except for periods excluded according to Section 503 hereof. Credited Service shall be measured in years and completed calendar months, disregarding fractions of calendar months that have less than seventy-five percent (75%) of the normal hours worked unless it is a Leave of Absence as described in Subsection 504.A. Each completed calendar month is counted as eight hundred thirty-three ten thousandths (.0833) of a year.

*(Ord. No. 25547, § 9, 3-26-2025)*

### Section 501. Past service.

Past Service shall be the number of full years and/or calendar months of employment prior to May 1, 1960, following the completion of twelve (12) months of employment, applicable only to a Participant who entered the Plan on May 1, 1960, or on the date the Participant first became eligible thereafter, provided that the Participant was a Contributing Participant on September 1, 1990. For Participants employed prior to May 1, 1960, who experienced a Termination of Employment prior to September 1, 1990, Past Service shall be limited to full years and completed months of employment prior to May 1, 1960, following the completion of the age and service requirements described in paragraph 200.A.3.

*(Ord. No. 17389)*

### Section 502. Future service.

Future Service shall be the number of full years and/or calendar months of Continuous Employment on and after May 1, 1960, during which time an Employee was a contributing Participant in the Plan, or otherwise received Credited Service under Subsection 200.A, or during periods of absence for which Credited Service is granted according to Section 504 hereof.

*(Ord. No. 17389)*

## Section 503. Excluded periods.

Years of Credited Service shall exclude the following periods:

**A.** Any period credited for a similar purpose under any other retirement system of the Employer shall not be included in years of Credited Service, except that this exclusion shall not apply if the other retirement system is a Plan maintained under Sections 403 or 457 of the Internal Revenue Code;

**B.** If a Participant withdraws his Basic Employee Contributions as described in Section 706 hereof, the Participant's Credited Service for all periods before the withdrawal shall be canceled; and

**C.** If a Participant has no vested interest at the time of Termination of Employment and receives a return of his Basic Employee Contributions in accordance with Section 402 hereof, the Participant's Credited Service for all periods before the payment shall be canceled.

*(Ord. No. 25547, § 10, 3-26-2025)*

## Section 504. Temporary breaks in credited service.

**A. Leave of Absence generally.** A Participant's absences from work other than as set forth in Subsections B, C or D of this Section 504 shall be Leaves of Absence if authorized by the Employer. During such Leaves of Absence, a Participant shall continue to accrue Credited Service and Continuous Employment through the end of the month in which the Participant's Earnings cease and for a period of thirty (30) days immediately following cessation of payment of Earnings.

Beginning April 1, 2025, all absences from work other than as set forth in Subsections B, C or D of this Section 504 shall be Leaves of Absence if authorized by the Employer and consisting of one hundred sixty (160) hours or more of consecutive leave. During such Leaves of Absence, a Participant shall continue to accrue Credited Service and Continuous Employment through the end of the month in which the Participants Earnings cease. Upon a Participants return to work after a Leave of Absence, Credited Service and Continuous Employment will resume accruing on the first day of the month in which one hundred twenty (120) hours of consecutive work is completed.

**B. Layoffs.** Credited Service shall be preserved during layoffs authorized by the Employer, unless the Participant elects to withdraw contributions as described in Sections 402 or 706 hereof. Time while on such leave or while so laid off shall not be deemed to be Credited Service for the purposes of the Plan if thirty (30) days or more in duration but temporary absence for which pay is received during a Leave of Absence or Layoff of less than thirty (30) days shall be counted, as Credited Service.

**C. Military Service.** Effective on and after December 12, 1994, notwithstanding any provision of this Plan to the contrary, contributions, benefits and service credit with respect to qualified military service will be provided in accordance with Section 414(u) of the Internal Revenue Code of 1986, as amended. A Participant who returns to employment with the Employer from qualified military service during the period within which reemployment rights are guaranteed by law will receive service credit with respect to the Participant's period of qualified military service (within the

meaning of Section 414(u)(1) of the Internal Revenue Code) in accordance with Section 414(u) of the Internal Revenue Code and applicable regulations, and as described in Subsections 1, 2 and 3 below.

1. **Crediting Military Service for Vesting.** The Participant's qualified military service counts toward the Years of Continuous Employment used to determine if vested as described in Section 401.
2. **Crediting Military Service for All Purposes Other than Vesting.** For purposes other than vesting as described in Subsection 504.C.1 above, a Participant's qualified military service counts only to the extent the Participant elects to make contributions to the Fund for all or part of the period of qualified military service, as described in Subsection 504.C.3 below.
3. **Contributions for Periods of Qualified Military Service.** This Subsection 504.C.3 applies to a Participant who returns to employment with the Employer from qualified military service during the period within which reemployment rights are guaranteed by law. The Participant may elect to contribute to the Fund all or a part of the contributions the Participant would have made according to Section 301.A if the Participant had remained continuously employed by the Employer throughout the period of the Participant's qualified military service. The amount of contributions the Participant may make according to this Subsection 504.C.3 shall be determined on the basis of the Participant's Earnings in effect immediately before the qualified military service and the terms of the Plan at that time. A Participant may make such contributions during a period beginning on the Participant's reemployment with the Employer and lasting for the shorter of five (5) years or three (3) times the Participant's period of qualified military service. To the extent the Participant makes contributions permitted by this Subsection, the Participant will receive Credited Service described in Chapter 5 for the period of qualified military service to which the contributions relate.
4. **Survivor Benefits for Deaths During Military Service.** Effective January 1, 2007, if a Participant dies while performing qualified military service (within the meaning of Section 414(u)(1) of the Internal Revenue Code), the Participant shall be treated as having a Termination of Employment with the Employer due to his death for purposes of any additional benefits (other than benefit accruals relating to the period of qualified military service) provided under the Plan.

**D. Long-Term Disability.**

1. A Participant who has a Leave of Absence or Termination of Employment due to disability, regardless of when the disability is determined to be a Long-Term Disability, will cease accrual of Credited Service at the end of the month in which the Participant ceased receiving Earnings, except as otherwise provided in Subsection 504.D.2 below.
2. The following rules shall apply to a Participant who, before January 1, 2017 has a Leave of Absence or Termination of Employment due to a disability that is subsequently determined to be a Long-Term Disability and who has five (5) or more years of Continuous Employment at the time of such Leave of Absence or Termination of Employment:
   a. The Participant shall continue to accrue Credited Service during such disability retroactively to the last day the Participant received Earnings.

**b.** If the Participant later becomes fifty-five (55) years of age while still receiving benefits for Long-Term Disability or during the period pending approval of benefits for Long-Term Disability after proper application thereof, the Participant may become eligible for the special joint and survivor's income option as defined in paragraph 701.A.3 hereof upon proper application.

**c.** If the Participant dies during a period of Long-Term Disability or, if fifty-five (55) years of age or older, dies after having made proper application for Long-Term Disability benefits but prior to approval of such benefits, such Participant shall, for the purposes of computing any survivor's benefits in this title (including the Automatic Spouse's Death Benefit in Section 801 hereof), receive Credited Service for all time spent on such Long-Term Disability up to the first day of the month in which the Participant died, if the Board of Trustees determines the applicant would have been determined eligible for Long-Term Disability.

**d.** The Participant shall receive Credited Service toward calculation of benefits for all time spent on such Long-Term Disability if the Participant:

(1) Subsequently recovers from a Long-Term Disability or ceases to be eligible for benefits for Long-Term Disability and does not return to active employment for the Employer within thirty (30) days immediately following such cessation of benefits, or

(2) Attains fifty-five (55) years of age while on Long-Term Disability and elects to take early retirement while still on Long-Term Disability or within the thirty (30) days immediately following a cessation of benefits for Long-Term Disability.

**E. Reemployment after Termination.**

**1.** A Participant who experiences a Termination of Employment, receives a refund of their Basic Employee Contributions in accordance with Section 402 or Section 706 and who subsequently returns to employment shall be eligible to repurchase the Credited Service and Continuous Employment from that Participant's initial term of employment. If an Employee is a Participant on July 1, 1995, that Participant must make the repurchase prior to July 1, 1996. Otherwise, such a purchase must be made within twelve months of the Employee's resumption of Basic Employee Contributions to the Plan. The Employee may not repurchase portions of the Credited Service and Continuous Employment; it must be repurchased in its entirety. The repurchase is made pursuant to actuarial determinations based on the age of the Employee and the period of Credited Service subject to repurchase. Credited Service and Continuous Employment can only be reactivated pursuant to this provision.

**2.** A Participant who has terminated employment after becoming vested as described in Section 401 hereof and who has not withdrawn his Employee Contributions and who subsequently returns to employment will resume accrual of Credited Service upon his resumption of contributions to the Plan.

**3.** A Participant whose Employment began prior to July 1, 2018, and who has terminated Employment after becoming vested as described in Section 401 hereof, and who has not withdrawn his Employee contributions, and who returns to

Employment within one (1) year of such termination, will resume accrual of Credited Service upon his resumption of contributions to the Plan, and will remain eligible for the benefits set forth in this title for Participants whose Employment began prior to July 1, 2018.

*(Ord. Nos. 18103, 18364, 18513, 19988, 20908; Ord. No. 22626, § 2, 2-2-2012; Ord. No. 23575, § 1, 10-26-2016; Ord. No. 23848, § 1, 1-24-2018; Ord. No. 25547, § 11, 3-26-2025)*

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## CHAPTER 6. ELIGIBILITY FOR AND CALCULATION OF VARIOUS TYPES OF RETIREMENT INCOME

Section 600. Normal retirement income.
Section 601. Early retirement income.
Section 602. Reserved.
Section 603. Vested deferred retirement income.
Section 604. Vested deferred supplemental retirement income.
Section 605. Cost-of-living increases.
Section 606. Forfeiture of benefits.

### Section 600. Normal retirement income.

**A. Eligibility.** Each Participant whose Continuous Employment terminates at sixty-five (65) years of age or later, shall thereupon become entitled to receive a Normal Retirement Income payable monthly for life.

**B. Benefit Formula.** For Participants whose Employment began prior to July 1, 2018, the amount of Normal Retirement Income payable monthly as a life annuity shall equal two and thirty-five one hundredths percent (2.35%) times Final Average Earnings times years and monthly fractions thereof of Credited Service. For Participants whose Employment began on or after July 1, 2018, the amount of Normal Retirement Income payable monthly as a life annuity shall equal two percent (2.00%) times Final Average Earnings times years and monthly fractions thereof of Credited Service.

**C. Pre-1974 Minimum Benefit.** Nothing in Subsection B of this section shall cause a Participant in the Plan prior to January 1, 1974, to receive a lesser amount of retirement income for service on or after May 1, 1960, than such Participant would have received under the formula used to calculate such retirement income prior to January 1, 1974, such guarantee utilizing the assumption that such Participant's monthly Earnings effective December 31, 1973, will remain constant until retirement and the maximum annual Earnings counted for Social Security purposes in effect December 31, 1973, shall also remain constant until such Participant's retirement.

*(Ord. Nos. 17758, 18782, 19320, 20175, 20404, 20908; Ord. No. 23848, § 2, 1-24-2018)*

### Section 601. Early retirement income.

**A. Eligibility.** For Participants whose Employment began prior to July 1, 2018, a Participant, who attains fifty-five (55) years of age while making Basic Employee Contributions or while on Long-Term Disability, shall be entitled to receive the vested portion of that Participant's Early Retirement Income, as calculated in accordance with Subsection 601.B below and in accordance with the vesting rules in Section 401 hereof. For Participants whose Employment began on or after July 1, 2018, a Participant, who attains sixty (60) years of age while making Basic Employee Contributions or while on Long-Term Disability, shall be entitled to receive the vested portion of that Participant's Early Retirement Income, as calculated in accordance with Subsection 601.B below and in accordance with the vesting rules in Section 401 hereof.

For Participants whose Employment began prior to July 1, 2018, a Participant, who does not attain fifty-five (55) years of age while making Basic Employee Contributions or while on Long-Term Disability, shall be entitled to an early retirement income which is actuarially reduced according to the interest and mortality assumptions described in

the definition of Actuarial Equivalent, instead of the applicable percentage reduction provided in Section 601.B hereof. For Participants whose Employment began on or after July 1, 2018, a Participant, who does not attain sixty (60) years of age while making Basic Employee Contributions or while on Long-Term Disability, shall be entitled to an early retirement income which is actuarially reduced according to the interest and mortality assumptions described in the definition of Actuarial Equivalent, instead of the applicable percentage reduction provided in Section 601.B hereof.

**B. Benefit Formula.** For Participants whose Employment began prior to July 1, 2018 and who attain age fifty-five (55) years of age while making Basic Employee Contributions, the amount of Early Retirement Income shall be calculated by the formula for computing a Normal Retirement Income as described in Section 600 hereof, except the calculations of Normal Retirement Income in accordance with Section 600 hereof shall be reduced by two and one-half percent (2.5%) for each year which the early retirement date precedes the otherwise Normal Retirement Date of the Participant, with a proportionate reduction for each month of early retirement which is less than a full year. For Participants whose Employment began on or after July 1, 2018 and who attain age sixty (60) years of age while making Basic Employee Contributions, the amount of Early Retirement Income shall be calculated by the formula for computing a Normal Retirement Income as described in Section 600 hereof, except the calculations of Normal Retirement Income in accordance with Section 600 hereof shall be reduced by six percent (6.0%) for each year which the early retirement date precedes the otherwise Normal Retirement Date of the Participant, with a proportionate reduction for each month of early retirement which is less than a full year.

**C. Rule of Eighty (80).** Effective on and after August 1, 1996, any Participant whose years of Continuous Employment, measured in full years and completed months, when added to the Participants age, measured in full years and completed months, equals or exceeds eighty (80) while making Basic Employee Contributions, shall be entitled to receive an Early Retirement Income without the reduction described in Subsection 601.B hereof. This provision applies only to Participants who began Employment prior to July 1, 2018.

**D. Rule of Ninety (90).** Any Participant whose Employment began on or after July 1, 2018, and whose years of Continuous Employment, measured in full years and completed months, when added to the Participant's age, measured in full years and completed months, equals or exceeds ninety (90) while making Basic Employee Contributions, shall be entitled to receive an Early Retirement Income without the reduction described in Subsection 601.B hereof.

*(Ord. Nos. 18103, 18782; Ord. No. 23848, § 2, 1-24-2018; Ord. No. 25547, § 12, 3-26-2025)*

### Section 602. Reserved.

**Editor's note—**Ord. No. 25547, § 13, adopted March 26, 2025, repealed § 602, which pertained to supplemental retirement income from optional employee contributions and derived from Ord. No. 23848, § 2, 1-24-2018.

### Section 603. Vested deferred retirement income.

**A. Deferred to Normal Retirement Date.** A Participant who incurs a Termination of Employment for any reason other than death, shall be entitled to receive the vested

portion of the Normal Retirement Income commencing on the Participant's Normal Retirement Date, if the Participant elects to leave his Basic Employee Contributions in the Retirement Fund. Such benefit is called a Vested Deferred Retirement Income. Effective with all terminations on or after July 15, 1983, for reasons other than death, the Vested Deferred Retirement Income payable at the Normal Retirement Date shall be determined according to the appropriate benefit formula on the basis of the Participant's Credited Service, Final Average Earnings and benefit formula in effect at the time of Termination of Employment and the vested portion determined according to Section 401 hereof.

**B. Early Retirement Income.** A Participant entitled to a Vested Deferred Normal Retirement Income as provided in Subsection 603.A hereof may elect to receive an Early Retirement Income as provided in Section 601 hereof with the exception that such Vested Deferred Early Retirement Income shall be actuarially reduced according to the interest and mortality assumptions described in the definition of Actuarial Equivalent, instead of the applicable percentage reduction provided in Section 601.B hereof.

Notwithstanding the foregoing, if the Participant reached age 55 (if employment began before July 1, 2018) or age 60 (if employment began on or after July 1, 2018) while making Basic Employee Contributions then the applicable percentage reduction provided in Section 601.B shall apply.

**C. Rule of Eighty (80) or Rule of Ninety (90).** A Participant entitled to a Vested Deferred Retirement Income is only eligible to take a Rule of 80 or Rule of 90 Retirement Income as provided in Sections 601(C) and (D) if the rule was met while making Basic Employee Contributions.

**D. Optional Benefit Forms.** A Participant entitled to a Vested Deferred Normal Retirement Income as provided in Section 603 hereof may elect an optional form of benefit as provided in Section 701 hereof, subject to all of the terms and conditions of such optional form of retirement income provided in this title. Such a Participant may not elect a special joint and survivor benefit, as provided in paragraph 701.A.3 hereof, nor shall such Participant's surviving spouse be eligible to receive an Automatic Spouse's Benefit as provided in Section 801 hereof.

*(Ord. No. 20908; Ord. No. 23848, § 2, 1-24-2018; Ord. No. 25547, § 14, 3-26-2025)*

## Section 604. Vested deferred supplemental retirement income.

If a Participant incurs a Termination of Employment after the Participant is eligible for a Vested Deferred Normal or Early Retirement Income as provided in Section 603 hereof, the Participant shall have the right to withdraw the Participant's Optional Employee Contributions, together with Credited Interest thereon, in a single sum, without prejudice to the Participant's remaining rights under the Plan with respect to Vested Deferred Normal or Early Retirement Income if the Participant has not withdrawn the Participant's Basic Employee Contributions, or if the Participant so desires, the Participant may leave such Optional Employee Contributions in the Fund, in which case the Participant shall be entitled to the full value of the benefits at retirement which can be provided from such Optional Employee Contributions.

*(Ord. No. 23848, § 2, 1-24-2018)*

## Section 605. Cost-of-living increases.

The Board of Trustees is authorized to recommend to the Mayor of the City of Tulsa, Oklahoma, the granting of cost-of-living increases to retired Participants in accordance with Section 1001 hereof.

**A. Amounts.** The following are the effective dates and amounts of each increase:

| Effective Date of Increase (To be paid initially in the check received one month later) | Amount of Increase |
|---|---|
| January 1, 1975 | 3.0% |
| September 1, 1976 | 3.0% |
| September 1, 1977 | 6.0% |
| August 1, 1978 | 6.5% |
| September 1, 1979 | 6.5% |
| September 1, 1980 | 2.0% |
| September 1, 1981 | 3.0% |
| September 1, 1982 | 2% or $5.00, if greater |
| September 1, 1983 | 2.0% |
| October 1, 1984 | 3.0% |
| September 1, 1985 | 3.7% |
| September 1, 1986 | 1.7% or $5.00, if greater |
| September 1, 1987 | 3.7% or $5.00, if greater |
| July 1, 1989 | 3.0% |
| September 1, 1990 | 3.0% |
| September 1, 1991 | 3.0% |
| April 1, 1994 | 4.0% |
| August 1, 1996 | 2.5% |
| August 1, 1998 | 2.5% |
| September 1, 1999 | 2% or $5.00, if greater |
| October 1, 2000 | 2.25% |
| August 1, 2001 | 2.0% |
| August 1, 2002 | 1.5% |
| September 1, 2004 | 1.5% |
| January 1, 2006 | 2.0% |
| January 1, 2007 | 1.8% |

**B. Application.** The increases are granted to each retired Participant or beneficiary of a Participant then receiving an income from the Fund and the resulting increased retirement income shall be paid monthly from the Fund. Provided, however:

**1.** That the increase effective January 1, 2006, is granted only to retired Participants with a retirement date prior to January 1, 2005, or to the beneficiaries of such retired Participants; and

**2.** That the increase effective January 1, 2007, is granted only to retired Participants with a retirement date prior to January 1, 2006, or to the beneficiaries of such retired Participants.

*(Ord. Nos. 17389, 17592, 18189, 18782, 19320, 19633, 19914, 20175, 20404, 20908, 21173, 21390)*

### Section 606. Forfeiture of benefits.

**A.** Pursuant to the provisions of 11 O.S. Supp. 2012, § 1-110, as amended, a Participant, upon final conviction of, or pleading guilty or nolo contendere to, a felony for bribery, corruption, forgery or perjury or any other crime related to the duties of his or her employment in a state or federal court of competent jurisdiction shall forfeit the benefits provided by the Plan. The forfeiture of retirement benefits shall not occur if any such Participant received a deferred sentence, but retirement benefits shall not commence prior to completion of the deferred sentence. The forfeiture of retirement benefits required by this section shall not include the Participant's contributions to the Plan or Plan benefits that were vested as of August 26, 2011, the effective date of 11 O.S. Supp. 2012, § 1-110.

**B.** The forfeiture of Plan benefits as provided by Subsection A of this section shall also apply to any such Participant who, after leaving his or her employment, is convicted of, or pleads guilty or nolo contendere to, in a state or federal court of competent jurisdiction, a felony committed during such employment, where the felony is for bribery, corruption, forgery or perjury or any other crime related to the duties of his or her employment.

**C.** The forfeiture shall continue until such time as the conviction or guilty plea is reversed by the highest appellate court to which the Participant may appeal.

**D.** Upon receipt of the notice of forfeiture prescribed by 11 O.S. Supp. 2012, § 1-111, as amended, the Plan shall immediately suspend all benefits of the Participant, and shall notify the officer or employee of his or her right to a hearing to review whether the conviction or plea qualifies for forfeiture of benefits under this section. If the conviction or plea occurs in federal court or the notice of forfeiture is not forthcoming from the state prosecutor, the Plan may investigate and gather court documents and contact prosecutors to determine whether the conviction or plea qualifies under this section. Upon obtaining sufficient documentation of the conviction or plea, the Plan shall immediately suspend all benefits of the Participant, and notify the Participant of his or her right to a hearing to review whether the conviction or plea qualifies for forfeiture of benefits under this section.

**E.** All such hearings will be conducted according to the rules and regulations adopted by the Board of Trustees pursuant to its authority under Section 1001 hereof.

*(Ord. No. 22626, § 3, 2-2-2012)*

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## CHAPTER 7. FORMS OF PENSION RETIREMENT INCOME

Section 700. Normal forms of retirement income.
Section 701. Optional forms of retirement income.
Section 702. Conditions relative to forms of retirement benefits.
Section 703. Conditions relative to optional benefits.
Section 704. Level income option.
Section 705. General requirements.
Section 706. Withdrawal of contributions by vested deferred participant.
Section 707. Reemployment of a retired participant.
Section 708. Small payment.
Section 709. Direct rollover.
Section 710. Distribution to individual retirement account of non-spouse beneficiary.
Appendix A. City of Tulsa Municipal Employees' Retirement Plan—Partial Lump Sum Distribution Option Factors

### Section 700. Normal forms of retirement income.

**A. Joint and Survivor Form for Married Participants.** Subject to Section 708, the normal form of retirement income payable under the Plan to a Participant who is married at the time payments commence shall be a joint and survivor income which shall be the Actuarial Equivalent of the Participant's benefit calculated as a life annuity form of payment. The joint and survivor income shall be payable monthly for the Participant's life and shall continue after the Participant's death at one-half (½) the Participant's then current monthly rate, payable to the surviving spouse, subject to the death benefits payable according to Chapter 8 hereof.

**B. Life Annuity Form for Unmarried Participants.** Subject to Section 708, the normal form of retirement income payable under the Plan to a Participant who is not married at the time payments commence shall be a life annuity, payable monthly for the Participant's life, subject to the death benefits payable according to Chapter 8 hereof.

*(Ord. No. 17981; Ord. No. 25547, § 15, 3-26-2025)*

### Section 701. Optional forms of retirement income.

Subject to Section 708, in lieu of the normal form of retirement income payable to a Participant under the terms of the Plan, such Participant may elect to receive a retirement income of Actuarial Equivalent in any one (1) of the following forms:

**A. Joint and Survivor Income Options.**

**1. Regular Form.** The regular form of a joint and survivor income option shall be a regular joint and survivor income to continue during the lifetime of the retired Participant and further to continue after the retired Participant's death at three-fourths (¾), two-thirds (⅔) or one-half (½) rate, according to the election of the Participant to a surviving spouse or other designated contingent annuitant during the lifetime of such annuitant. The Normal Retirement Income of a Participant who elects the regular joint and survivor income option shall be an Actuarial Equivalent to the life annuity form of payment.

**2. Regular Form with Pop-Up.** The regular form of a joint and survivor with pop-up income option shall be available only where the contingent annuitant is the

spouse of the Participant. The regular form of a joint and survivor with pop-up income option shall be the regular joint and survivor income described in the previous paragraph, provided further that if the spouse dies on or after the date that the joint and survivor income benefit has commenced and before the death of the Participant, the Participant's benefit shall convert to a life annuity benefit following the death of the spouse. Such conversion shall be effective on the first day of the month following the spouse's death. The regular form of a joint and survivor with pop-up income shall be available for election by the Participant regardless of whether the Participant elects the three-fourths (¾), two-thirds (⅔) or one-half (½) rate. The Normal Retirement Income of a Participant who elects the regular joint and survivor with pop-up income option shall be an Actuarial Equivalent to the life annuity form of payment.

3. **Special Form.** A special form of a joint and survivor income option shall be a special joint and survivor income formally elected in writing by a Participant on or after the Participant has acquired a vested interest, as provided in Sections 400 or 401 hereof, naming the Participant's spouse as contingent annuitant, to be paid at three-fourths (¾) or two-thirds (⅔) rate, according to the election of the Participant, to the Participant's surviving spouse in the event Participant dies after having attained fifty-five (55) years of age (if the Participant's Employment began before July 1, 2018) or sixty (60) years of age (if the Participant's Employment started on or after July 1, 2018) but prior to start of retirement income payments from the Plan. The benefits resulting from this election are in lieu of the automatic spouse benefit described in Section 801 hereof and are as described below. This benefit shall be effective on the first day of the month following the Participant's death.

   **a.** The surviving spouse of a Participant who has elected this special option and dies while it is in effect shall receive three-fourths (¾) or two-thirds (⅔) of the monthly benefit that would have been paid to the Participant in the form of a life annuity starting the first of the month in which the Participant died. This amount shall be reduced by seventy-five hundredths of one percent (.75%) for each full year in excess of five (5) years by which the age of the spouse is less than the age of the deceased Participant.

   **b.** If the Participant lives to receive retirement income payments from the Plan, the life annuity form of such payments shall be reduced as follows:

| Reduced Income to be Paid to Surviving Spouse Under Option Elected | Percentage Reduction in Retirement Income for Each Full Twelve-Month Period the Election was in Effect |
|---|---|
| ⅔ | .32% |
| ¾ | .48% |

   **c.** The election of this special joint and survivor income shall also be considered an election of a regular joint and survivor's income in the event the Participant survives until actual retirement, unless specifically revoked by the Participant prior to death or start of retirement income payments, in accordance with the provisions of Section 703 hereof.

**B. Reserved.**

**C. Partial Lump Sum Payment.**

1. **Eligibility.** A Participant whose benefit payments begin on or after March 1, 2000, and who is eligible for a Normal Retirement Income according to Section 600 or an Early Retirement Income according to Section 601 is eligible to elect a partial lump sum payment. Also, the surviving spouse of a Participant who is eligible for a benefit under Section 801 and whose benefit payments begin on or after March 1, 2000, is eligible to elect a partial lump sum payment.
2. **Amount of Lump Sum Payment.** An eligible Participant or surviving spouse may elect a partial lump sum payment equal to one (1), two (2) or three (3) times the annual benefit the Participant or surviving spouse would otherwise receive from the Plan in the form of a life annuity. The lump sum will be paid at the same time as the first annuity payment.
3. **Amount of Annuity Payment.** For an eligible Participant whose benefit payments begin on or after March 1, 2000 but before November 1, 2017, the factors in Appendix A will apply to determine the reduced percentage of the life annuity benefit payable to a Participant or surviving spouse who elects a partial lump sum benefit, based on the age of the Participant or surviving spouse when benefit payments begin and the number of years of annuity benefits paid as a partial lump sum. For an eligible Participant whose benefit payments begin on or after November 1, 2017, the appropriate Mortality Table, as adopted by the Board of Trustees, shall be used to determine the reduced percentage of the life annuity benefit payable to a Participant or surviving spouse who elects a partial lump sum benefit, based on the age of the Participant or surviving spouse when benefit payments begin and the number of years of annuity benefits paid as a partial lump sum.

*(Ord. Nos. 17300, 19730, 20908; Ord. No. 23748, § 1, 8-2-2017; Ord. No. 25547, § 15, 3-26-2025)*

## Section 702. Conditions relative to forms of retirement benefits.

**A. Election Deadline.** To become effective, an election of any form of retirement income must be made formally and in writing on a form provided for that purpose prior to the start of payment of such retirement income. A Participant may elect an optional form of retirement income or change the contingent annuitant at any time prior to the start of benefit payments.

**B. Change in Election.** The election of a form of retirement income shall become irrevocable upon commencement of benefit payments from the Plan.

*(Ord. No. 25547, § 15, 3-26-2025)*

## Section 703. Conditions relative to optional benefits.

**A. Spouse Consent.** If a Participant is married at the time benefits commence, the Participant's election of a partial lump sum payment or a form of retirement income other than a joint and survivor income payable to the Participant and spouse shall not be effective unless the spouse consents in writing to the partial lump sum, to the form of retirement income and to the contingent annuitant or beneficiary the Participant elects for that form of retirement income. The spouse's written consent must acknowledge the effect of the election and must be witnessed by a Plan representative

or a notary public. The spouse's written consent shall not be required if it is established to the satisfaction of a Plan representative that there is no spouse or the spouse cannot be located. Any consent by a spouse obtained under this provision shall be effective only with respect to such spouse.

**B. Death.** If a Participant shall have elected an optional form of retirement income; and

**1.** If the contingent annuitant shall die and the Participant shall notify the Plan Administrator of the death before the start of Participant's retirement income payments, the election shall be void;

**2.** Except as provided in paragraph 701A.3. hereof if the Participant shall die before the start of the Participant's retirement income payments, the election shall be void and the contingent annuitant shall not be entitled to an income under such option; or

**3.** If the contingent annuitant shall die after commencement of an optional form of retirement income but before the death of the retired Participant, such Participant shall continue to receive the income payable to that Participant in accordance with such election.

*(Ord. Nos. 17300, 17981, 19730, 20908; Ord. No. 25547, § 15, 3-26-2025)*

## Section 704. Level income option.

Participants who begin to receive a life annuity or joint and survivor annuity before their receipt of Social Security Normal Retirement Age (SSNRA) benefits as determined by Social Security may elect to have their retirement income adjusted to an Actuarial Equivalent so that the Participants will receive increased monthly amounts prior to SSNRA and reduced monthly amounts thereafter. The SSNRA elected must be rounded to a whole number value. This adjustment shall enable Participants to receive, pursuant to both the Plan and the Social Security Act, total monthly retirement income benefits in approximately level amounts for life. The adjustment shall be made according to tables prepared by the Actuary and approved by the Board of Trustees.

*(Ord. No. 25547, § 15, 3-26-2025)*

## Section 705. General requirements.

Notwithstanding any other provision of this title to the contrary, a form of retirement income payable from the plan shall satisfy the conditions given in this section.

**A. Latest Starting Date.** Payment of retirement income shall commence not later than April 1 of the calendar year following the later of:

**1.** The calendar year in which the Participant attains the applicable age as defined in Code section 401(a)(9)(C)(v); or

**2.** The calendar year in which Participant incurs a Termination of Employment.

**B. Minimum Required Distributions.** Effective January 1, 2003, all distributions from the Plan shall be made in accordance with the requirements of Internal Revenue Code Section 401(a)(9) as applicable to governmental plans, including the minimum incidental death benefit requirement of Internal Revenue Code Section 401(a)(9)(G).

*(Ord. No. 21971; Ord. No. 21971, § 1, 12-11-2008; Ord. No. 25189, § 1, 11-29-2023; Ord. No. 25547, § 15, 3-26-2025)*

**Section 706. Withdrawal of contributions by vested deferred participant.**

Any Participant entitled to a Vested Deferred Normal Retirement Income as provided in Section 603 hereof may withdraw their Basic Employee Contributions, with Credited Interest thereon, at any time prior to commencement of payment of the Participant's retirement income and shall thereupon cease to have any further rights under the Plan. Notwithstanding the foregoing, any Participant entitled to a payout of accrued sick leave who took payment of that leave shall not be eligible to withdraw their Basic Employee Contributions, with Credited Interest thereon.

*(Ord. No. 25547, § 15, 3-26-2025)*

**Section 707. Reemployment of a retired participant.**

**A. Benefits Cease.** The retirement income payable from the Fund to any retired Participant shall cease as of the first date of reemployment, if such Participant is reemployed as an Employee. Retirement income shall resume as of the first day of the month following Termination of Employment subject to the provisions of Subsection 707.C hereof. Such cessation or suspension of retirement income payable shall not affect the payment of retirement income after the death of a reemployed Participant under any optional form of benefit which shall at that time be in effect.

**B. Partial Lump Sum Recipients Not Eligible.** A retired Participant who has received a partial lump sum payment is not eligible for reemployment as an Employee.

**C. Contributions Resume.** Upon the reemployment of a retired Participant as an Employee, such Participant shall be required to make Basic Employee Contributions toward a retirement income in accordance with the provisions of Section 301 hereof.

**D. Benefits Redetermined.** The amount of the retirement income to be paid on the subsequent Termination of Employment of a Participant described in Subsection A shall be redetermined as the sum of 1. and 2. where:

**1.** Is the benefit in receipt at the time of reemployment that was suspended due to such reemployment, and if such benefit has been reduced on account of early retirement, the amount of the retirement, the income to be paid on the subsequent Termination of Employment shall be adjusted so that the amount of reduction made for early retirement on the previous retirement date will be adjusted to reflect the duration of the period for which benefits are suspended; and

**2.** Is the benefit accrued following reemployment based on the service and age from the date of reemployment to the date of subsequent retirement, where the benefits accrued will be based on the Plan's formula for computing retirement income and early retirement benefits at the time of the final Termination of Employment.

*(Ord. No. 20903; Ord. No. 25547, § 15, 3-26-2025)*

**Section 708. Small payment.**

In the event any benefit provided under the Plan is payable in an amount less than One Hundred Dollars ($100.00) monthly, the Participant may not elect a form of retirement income and instead a lump-sum settlement of Actuarial Equivalent shall be paid in full discharge of all liability in respect of such benefit. Distributions shall be made in accordance with Internal Revenue Code Section 401(a)(9), including Section 1.401(a)(9)-2 of the Federal Income Tax Regulations.

*(Ord. No. 25547, § 15, 3-26-2025)*

## Section 709. Direct rollover.

For eligible rollover distributions, a distributee may elect, at the time and in the manner prescribed by the Board of Trustees, to have any portion of the distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover. For purposes of applying this section, the following definitions shall apply:

**A. Eligible Retirement Plan.** An eligible retirement plan is an individual retirement account described in Section 408(a) of the Internal Revenue Code of 1986, as amended, an individual retirement annuity described in Section 408(b) of the Code, an annuity plan described in Section 403(a) of the Code or a qualified trust described in Section 401(a) of the Code, that accepts the distributee's eligible rollover distribution. Effective January 1, 2002, an eligible retirement plan shall also mean an annuity contract described in Code Section 403(b) and an eligible plan under Code Section 457(b) which is maintained by a state, political subdivision of a state or agency or instrumentality of a state or political subdivision of a state and which agrees to separately account for amounts transferred into such plan from this Plan. The definition of eligible retirement plan shall also apply in the case of a distribution to a surviving spouse, or to a spouse or former spouse who is the alternate payee under a qualified domestic relation order, as defined in Code Section 414(p). Effective January 1, 2008, an eligible retirement plan shall also mean a Roth IRA described in Section 408A(b) of the Internal Revenue Code, subject to any applicable limits described in Section 408A(c) of the Internal Revenue Code.

**B. Distributee.** A distributee includes an Employee or former Employee. In addition, the Employee's or former Employee's surviving spouse and the Employee's or former Employee's spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Code, are distributees with regard to the interest of the spouse or former spouse.

**C. Direct Rollover.** A direct rollover is a payment by the plan to the eligible retirement plan specified by the distributee.

**D. Eligible Rollover Distribution.** Any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include: any distribution that is one (1) of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten (10) years or more; any distribution to the extent such distribution is required under Section 401(a)(9) of the Code; and the portion of any distribution that is not includable in gross income. For distributions made after December 31, 2007, a portion of a distribution shall not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions which are not includable in gross income. However, such portion may be transferred only to an individual retirement account or annuity described in Section 408(a) or (b) of the Internal Revenue Code, or in a direct trustee-to-trustee transfer to a qualified trust described in Section 401(a) of the Internal Revenue Code which is exempt from tax under Section 501(a) of the Internal Revenue Code or to an annuity contract described in Section 403(b) of the Internal Revenue Code, provided such trust or contract provides for separate accounting for

amounts so transferred (and earnings thereon), including separate accounting for the portion of such distribution which is includable in gross income and the portion of such distribution which is not so includable.

*(Ord. Nos. 18364, 20497; Ord. No. 21971, § 2, 12-11-2008; Ord. No. 22626, § 4, 2-2-2012; Ord. No. 25547, § 15, 3-26-2025)*

### Section 710. Distribution to individual retirement account of non-spouse beneficiary.

A Participant's non-spouse beneficiary may elect to have any portion of an eligible Plan distribution paid in a direct trustee-to-trustee transfer to an individual retirement account or annuity described in Section 401(c)(8)(B)(i) or (ii) of the Internal Revenue Code that is established to receive the Plan distribution on behalf of the beneficiary. For purposes of this section a trust maintained for the benefit of one (1) or more designated beneficiaries may be the beneficiary to the extent provided in rules prescribed by the Secretary of Treasury. If the Participant dies after the Participants required beginning date as defined in Section 704.A hereof, the required minimum distribution in the year of death may not be transferred according to this section. The requirements of Internal Revenue Code Section 402(c)(11) apply to distributions under this section.

*(Ord. No. 21971, § 3, 12-11-2008; Ord. No. 25547, § 15, 3-26-2025)*

### Appendix A. City of Tulsa Municipal Employees' Retirement Plan—Partial Lump Sum Distribution Option Factors

| Commencement | Years of Annual Pension Benefit Elected as Payable in Lump Sum | | |
|---|---|---|---|
| Age | 1 | 2 | 3 |
| 30 | 0.9271 | 0.8542 | 0.7812 |
| 31 | 0.9268 | 0.8535 | 0.7803 |
| 32 | 0.9264 | 0.8528 | 0.7792 |
| 33 | 0.9260 | 0.8520 | 0.7780 |
| 34 | 0.9256 | 0.8512 | 0.7768 |
| | | | |
| 35 | 0.9252 | 0.8503 | 0.7755 |
| 36 | 0.9247 | 0.8494 | 0.7741 |
| 37 | 0.9242 | 0.8484 | 0.7726 |
| 38 | 0.9237 | 0.8473 | 0.7710 |
| 39 | 0.9231 | 0.8462 | 0.7693 |
| | | | |
| 40 | 0.9225 | 0.8450 | 0.7675 |
| 41 | 0.9219 | 0.8437 | 0.7656 |
| 42 | 0.9212 | 0.8424 | 0.7635 |
| 43 | 0.9205 | 0.8409 | 0.7614 |
| 44 | 0.9197 | 0.8394 | 0.7590 |
| | | | |

| Commencement | Years of Annual Pension Benefit Elected as Payable in Lump Sum | | |
|---|---|---|---|
| Age | 1 | 2 | 3 |
| 45 | 0.9189 | 0.8377 | 0.7566 |
| 46 | 0.9180 | 0.8360 | 0.7539 |
| 47 | 0.9170 | 0.8341 | 0.7511 |
| 48 | 0.9161 | 0.8321 | 0.7482 |
| 49 | 0.9150 | 0.8300 | 0.7450 |
| | | | |
| 50 | 0.9139 | 0.8278 | 0.7417 |
| 51 | 0.9127 | 0.8254 | 0.7381 |
| 52 | 0.9115 | 0.8229 | 0.7344 |
| 53 | 0.9101 | 0.8202 | 0.7304 |
| 54 | 0.9087 | 0.8174 | 0.7261 |
| | | | |
| 55 | 0.9072 | 0.8144 | 0.7216 |
| 56 | 0.9056 | 0.8112 | 0.7168 |
| 57 | 0.9039 | 0.8078 | 0.7116 |
| 58 | 0.9021 | 0.8041 | 0.7062 |
| 59 | 0.9001 | 0.8002 | 0.7003 |
| | | | |
| 60 | 0.8980 | 0.7961 | 0.6941 |
| 61 | 0.8958 | 0.7916 | 0.6875 |
| 62 | 0.8935 | 0.7869 | 0.6804 |
| 63 | 0.8909 | 0.7819 | 0.6728 |
| 64 | 0.8883 | 0.7765 | 0.6648 |
| | | | |
| 65 | 0.8854 | 0.7708 | 0.6563 |
| 66 | 0.8824 | 0.7648 | 0.6472 |
| 67 | 0.8792 | 0.7584 | 0.6376 |
| 68 | 0.8758 | 0.7516 | 0.6275 |
| 69 | 0.8722 | 0.7444 | 0.6166 |
| | | | |
| 70 | 0.8683 | 0.7366 | 0.6049 |
| 71 | 0.8641 | 0.7283 | 0.5924 |
| 72 | 0.8596 | 0.7192 | 0.5789 |
| 73 | 0.8548 | 0.7095 | 0.5643 |
| 74 | 0.8495 | 0.6991 | 0.5486 |
| | | | |
| 75 | 0.8439 | 0.6879 | 0.5318 |
| 76 | 0.8379 | 0.6759 | 0.5138 |
| 77 | 0.8315 | 0.6630 | 0.4945 |
| 78 | 0.8246 | 0.6493 | 0.4739 |

| Commencement | Years of Annual Pension Benefit Elected as Payable in Lump Sum | | |
|---|---|---|---|
| Age | 1 | 2 | 3 |
| 79 | 0.8172 | 0.6345 | 0.4517 |
| | | | |
| 80 | 0.8093 | 0.6186 | 0.4279 |
| 81 | 0.8008 | 0.6015 | 0.4023 |
| 82 | 0.7916 | 0.5833 | 0.3749 |
| 83 | 0.7818 | 0.5637 | 0.3455 |
| 84 | 0.7713 | 0.5426 | 0.3138 |
| | | | |
| 85 | 0.7598 | 0.5196 | 0.2794 |
| 86 | 0.7473 | 0.4947 | 0.2420 |
| 87 | 0.7338 | 0.4675 | 0.2013 |
| 88 | 0.7189 | 0.4379 | 0.1568 |
| 89 | 0.7028 | 0.4055 | 0.1083 |
| | | | |
| 90 | 0.6851 | 0.3702 | 0.0552 |
| 91 | 0.6658 | 0.3315 | * |
| 92 | 0.6446 | 0.2892 | * |
| 93 | 0.6216 | 0.2432 | * |
| 94 | 0.5962 | 0.1924 | * |
| | | | |
| 95 | 0.5682 | 0.1364 | * |
| 96 | 0.5372 | 0.0745 | * |
| 97 | 0.5030 | 0.0060 | * |
| 98 | 0.4653 | * | * |
| 99 | 0.4232 | * | * |
| | | | |
| 100 | 0.3761 | * | * |

*Option cannot be offered due to insufficient present value of retirement benefit.

*(Ord. Nos. 19730, 19899; Ord. No. 25547, § 15, 3-26-2025)*

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## CHAPTER 8. DEATH BENEFITS

Section 800. Minimum death benefit.
Section 801. Automatic spouse's benefit.
Section 802. Designation of beneficiary.

### Section 800. Minimum death benefit.

The total retirement income paid to a Participant, a contingent annuitant or other beneficiary, including an alternate payee under a domestic relations order, from the Plan on behalf of a Participant, shall at least equal the sum of the Participant's Basic Contributions with Credited Interest. The amount by which such retirement income payments are less than the sum of the Participant's Basic Contributions and Credited Interest shall be paid in a lump sum at the death of the last recipient of the form of retirement income paid according to Chapter 7 or Section 801 thereof; including payments to an alternate payee pursuant to a domestic relations order. This minimum death benefit shall be paid to the beneficiary determined according to Section 802 hereof.

*(Ord. No. 25547, § 16, 3-26-2025)*

### Section 801. Automatic spouse's benefit.

**A. Death After At Least Five (5) Years of Continuous Employment But While Employed.** Effective on and after September 1, 1992, for Participants whose Employment began prior to July 1, 2018, upon the death of a Participant prior to Termination of Employment but after completion of at least five (5) Years of Continuous Employment, the Participant's spouse shall receive a death benefit paid monthly for the rest of the life of the spouse, provided that such spouse has been legally married to such Participant for a period of at least one (1) year immediately preceding the Participant's death. If the Participant died after attaining age fifty-five (55), the spouse's death benefit shall be one-half (½) of the monthly benefit that would have been paid to the Participant in the form of a life annuity starting the first of the month in which the Participant died. If the Participant died before age fifty-five (55), the spouse's death benefit shall be one-half (½) of the monthly benefit that would have been paid to the Participant in the form of a life annuity starting the fist of the month after the Participant would have reached age sixty-five (65), minus a twenty-five percent (25%) early retirement reduction factor. The early retirement reduction factor will not apply if the Participant met Rule of 80 (as described in Section 601C.) prior to the first of the month in which the Participant died. The spouse's death benefit amount shall be reduced by seventy-five hundredths of one percent (0.75%) for each full year in excess of five (5) years by which the age of the spouse is less than the age of the deceased Participant. For Participants whose Employment began on or after July 1, 2018, upon the death of a Participant prior to Termination of Employment but after completion of at least five (5) Years of Continuous Employment, the Participant's spouse shall receive a death benefit paid monthly for the rest of the life of the spouse, provided that such spouse has been legally married to such Participant for a period of at least one (1) year immediately preceding the Participant's death. If the Participant died after attaining age sixty (60), the spouse's death benefit shall be one-half (½) of the monthly benefit that would have been paid to the Participant in the form of a life annuity starting the first of the month in which the Participant died. If the Participant died before age sixty

(60), the spouse's death benefit shall be one-half (½) of the monthly benefit that would have been paid to the Participant in the form of a life annuity starting the first of the month after the Participant would have reached age sixty-five (65), minus a twenty-five percent (25%) early retirement reduction factor. The early retirement reduction factor will not apply if the Participant met Rule of 90 (as described in Section 601.D) prior to the first of the month in which the Participant died. The spouse's death benefit amount shall be reduced by seventy-five hundredths of one percent (.75%) for each full year in excess of five (5) years by which the age of the spouse is less than the age of the deceased Participant. This benefit shall be effective on the first day of the month following the Participant's death.

**B. No Cost to Participant.** In no event shall the retirement income payable to a Participant or contingent annuitant be reduced due to this death benefit.

**C. Vesting.** The automatic spouse's benefit is subject to the same rules of vesting as are recited in Chapter 4 hereof.

*(Ord. No. 18103; Ord. No. 23848, § 3, 1-24-2018; Ord. No. 25547, § 16, 3-26-2025)*

### Section 802. Designation of beneficiary.

Each Participant shall have the right to designate a beneficiary(ies) and successor beneficiary(ies) and, from time to time, to change beneficiary(ies), successor beneficiary(ies) or both, by completing and delivering to the Employer a form provided for that purpose. If there is no designated beneficiary or successor beneficiary surviving at the death of the Participant, payment of any death benefit shall be made to the surviving spouse of the Participant, and if no surviving spouse, then to the estate of the deceased Participant.

*(Ord. No. 25547, § 16, 3-26-2025)*

## CHAPTER 9. BENEFIT RESTRICTIONS

Section 900. Maximum benefits and contributions.
Section 901. Benefit limits.

### Section 900. Maximum benefits and contributions.

This plan incorporates by reference the requirements of Internal Revenue Code Section 415 and final regulations interpreting Internal Revenue Code Section 415, as applicable to this governmental retirement plan. The cost-of-living increase of Internal Revenue Code Section 415(d) shall continue to apply to increase the dollar benefit limit of Internal Revenue Code Section 415(b) after the Participant's severance from employment. The limitation year is the calendar year.

*(Ord. Nos. 17982, 19988, 20497; Ord. No. 21971, § 4, 12-11-2008; Ord. No. 25547, § 17, 3-26-2025)*

### Section 901. Benefit limits.

**A. Combined Limitation.** If a Participant's annual addition under this Plan and all other plans that must be aggregated with this Plan in accordance with the final Treasury Regulations under Internal Revenue Code Section 415 exceed the limit under such Regulations for a Plan Year, the excess shall be attributed to this Plan.

**B. Maximum Annual Additions.** A Participant's annual additions under this Plan for any Plan Year shall not exceed, when added to the annual additions to the Participant's account for the Plan Year under all other defined contribution plans (as defined in Treas. Reg. Section 1.415(c)-1(a)(2)), maintained by the Employer, the lesser of:

**1.** The dollar limit of Internal Revenue Code Section 415(c)(1)(A), as adjusted under Internal Revenue Code Section 415(d) (Sixty-Nine Thousand Dollars ($69,000.00) effective January 1, 2024), or

**2.** One hundred percent (100%) of the Compensation paid to the Participant by the Employer in such year.

The Compensation limitation referred to in 2. shall not apply to any contribution for medical benefits (within the meaning of Section 401(h) or Section 419A(f)(2) of the Code) which is otherwise treated as an annual addition under Internal Revenue Code Section 415(I)(1) or 419A(d)(2).

**C. Definition of Compensation.** For purposes of this Section 901, Compensation shall mean wages within the meaning of Internal Revenue Code Section 3401(a) (for purposes of income tax withholding at the source) plus amounts that would be included in wages but for an election under Code Section 125(a), 132(f)(4), 402(e)(3), 402(h)(1)(B), 402(k) or 457(b), all as described in Treas. Reg. Section 1.415(c)-2(d)(3) and subject to the limitations of Code Section 401(a)(17) as adjusted. Effective January 1, 2009, Compensation for purposes of this Section 901 includes a differential wage payment," which is a payment that: (1) is made by the Employer with respect to a period during which an Employee is on active military duty for a period of more than thirty (30) days, and (2) represents all or a portion of the wages the Employee would have received from the Employer if the Employee were performing service for the Employer, all as defined by Code Section 3401(h)(2). For purposes of applying the limitations of this chapter, Compensation for a Plan Year is the Compensation actually paid or includible in gross income during such year.

**D. Excess Annual Additions.** If as a result of a reasonable error in estimating a Participant's annual compensation, or any other limited facts and circumstances that the Commissioner of Revenue may find acceptable, the amount of a Participant's annual additions which exceed the limits stated above shall be returned to the Participant to the extent the excess arises from the Participant's contributions, provided the correction requirements of the IRS Employee Plans Compliance Resolution System are satisfied.

*(Ord. No. 22626, § 5, 2-2-2012; Ord. No. 25547, § 17, 3-26-2025)*

## CHAPTER 10. ADMINISTRATION OF PLAN

Section 1000. Board of Trustees.
Section 1001. Powers and duties of Board of Trustees.
Section 1002. Quorum.
Section 1003. Administrator—Appointment—Duties.
Section 1004. Liability limited.
Section 1005. Annual actuarial examination.

### Section 1000. Board of Trustees.

The Municipal Employees' Retirement Plan shall be administered by a Board of Trustees ("Board") under a Trust Agreement effective January 25, 1989, a copy of which is attached, made a part hereof and marked as "Exhibit A," and as amended by a First Amendment to Trust Agreement dated November 27, 2000, a copy of which is attached, made a part hereof and marked as "Exhibit B."

**A. Membership.** Effective January 1, 2025, the Board shall consist of the following seven (7) members, appointed by the Mayor, subject to confirmation by a majority vote of the entire membership of the City Council:

**1.** One (1) active, classified Employee Participant in the Plan employed by the City of Tulsa;

**2.** One (1) active Employee Participant in the Plan employed by an Employer agency other than the City of Tulsa;

**3.** One (1) retired Employee Participant who is receiving income from the Plan;

**4.** Three (3) persons, each of whom shall be either the head of a City division or department, an elected City official, or an appointee of the Mayor in the unclassified service, as described in Article X, Section 5.B of the City Charter;

**5.** One (1) person who shall not be a Participant in the Plan, a City employee or elected City official.

**B. Terms of Members.** Effective January 1, 2025, all currently serving members shall continue to hold their positions and shall continue to perform their duties until their terms expire. Subsequently, all successors to currently serving members shall be appointed to terms of three (3) years to begin on January 1 and end on December 31. The member who is not a Participant in the Plan, an employee or elected City official shall serve an indefinite term at the pleasure of the Mayor.

All members shall hold their offices until their successors are appointed and qualified. In the event of death, disability, resignation, dismissal or disqualification of any member of the Board, a successor shall be appointed for the remainder of that member's term.

**C. Organization.** During the regular monthly meeting of the Board held in July, the Board shall elect from its membership a Chairperson and such other officers appropriate for the performance of its duties. The Administrator of the Plan shall serve as Secretary to the Board, and the City Attorney shall advise the Board on any legal matter related to the Plan.

**D. Meetings.** The Board shall conduct regular meetings at least monthly and may meet specially at the discretion of the Chairperson or upon written request by a majority of

the members of the Board. Upon receipt of a request for a special meeting, the Chairperson shall call a meeting as soon as reasonably possible, but not more than five (5) days after receipt of the request. Except as otherwise provided by law, the Board shall adopt rules and regulations to govern the conduct of its meetings. All meetings shall be open to the public as provided by the laws of Oklahoma.

*(Ord. Nos. 17839, 18192, 19988, 20411; Ord. No. 25476, § 1, 11-20-2024)*

### Section 1001. Powers and duties of Board of Trustees.

The Board of Trustees shall have the following powers and duties:

**A.** To establish by-laws, formulate policy and implement procedures, rules and regulations to accomplish the objectives of the Plan; all such by-laws, policies, procedures, rules and regulations shall be written in a By-Laws, Policies, Procedures;

**B.** To appoint such committees and subcommittees as the Board of Trustees may deem necessary or advisable to aid and assist the Board of Trustees to effectively manage and administer the Plan; such committees and subcommittees may be comprised of any persons desired by the Board, whether Employees, Participants, Board members, citizens of the City of Tulsa or any combination thereof; and all members of committees and subcommittees shall serve without compensation or remuneration of any kind;

**C.** To appoint and employ administrators and advisors, with approval of the Mayor;

**D.** To establish general investment policies and guidelines;

**E.** To exercise discretionary authority in determining eligibility for benefits from the Plan and to review, approve and authorize all payments and expenditures from the Fund;

**F.** To implement improvement in the administrative procedures of the Plan and submit to the Mayor proposals for change in the benefits of the Plan, including cost-of-living increases to retired Participants, beneficiaries and contingent annuitants;

**G.** To review grievances of Participants regarding the Plan;

**H.** To adopt procedures for reporting the Plan's operations;

**I.** To approve interest rates, mortality tables and other actuarial assumptions recommended by an Actuary for funding and administration of the Plan;

**J.** To exercise discretionary authority in construing the terms of the Plan and to obtain interpretations when ordinances and laws are silent or unclear in specific situations; and

**K.** To maintain or cause to be maintained minutes of all meetings which shall be signed by the Administrator and the Chairman or Vice Chairman of the Board.

*(Ord. No. 17389; Ord. No. 25547, § 18, 3-26-2025)*

### Section 1002. Quorum.

For each meeting of the Board of Trustees, a quorum of four (4) members shall be required to conduct business and at least four (4) concurring votes shall be required to carry or defeat a measure.

### Section 1003. Administrator—Appointment—Duties.

The Board of Trustees shall appoint an Administrator for the Plan who shall be the Personnel Director of the City of Tulsa, Oklahoma, or the Director's designee. The Board of Trustees shall set forth the duties of the Administrator in the By-Laws, Policies, Procedures.

*(Ord. No. 17389; Ord. No. 24069, § 1, 1-9-2019; Ord. No. 25547, § 19, 3-26-2025)*

### Section 1004. Liability limited.

In administering the Plan, neither the Board of Trustees or any member or staff member thereof, nor the Employer or any official or employee thereof, shall be liable for any acts of omission or commission, except for his or its own individual gross negligence or willful or intentional misconduct. The Employer and its officials and employees, and each member or staff member of the Board of Trustees shall be entitled to rely conclusively on all tables, valuations, certifications, opinions and reports which shall be furnished by the City Attorney or by an Actuary, accountant, trustee, investment counsel, insurance company or any other expert who shall be appointed, employed or otherwise engaged by the Board of Trustees.

*(Ord. No. 19988)*

### Section 1005. Annual actuarial examination.

At least once a year, the Board of Trustees shall cause the liabilities of the Plan to be evaluated by an Actuary, who shall report no later than August 1st for the previous Plan Year to the Board of Trustees as to:

**A.** The soundness and solvency of the Fund in relation to the aforesaid liabilities; and

**B.** The amount of the annual payment by the Employer which would be sufficient to provide for Plan liabilities.

*(Ord. No. 23382, § 3, 10-1-2015)*

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## CHAPTER 11. ADMINISTRATION OF THE TRUST FUND

Section 1100. Establishment of Employee Retirement Fund.
Section 1101. Investment and management of trust fund.

### Section 1100. Establishment of Employee Retirement Fund.

The Board of Trustees shall maintain a Fund into which the contribution of each Participant and of the Employer shall be paid, which Fund shall comprise a trust fund held for and on behalf of all Participants and beneficiaries thereof. The Board of Trustees, with appropriate approval of the Mayor, shall designate a custodian to hold the Fund as the assets of the Plan by entering into a custodial agreement with the entity designated.

*(Ord. No. 17389)*

### Section 1101. Investment and management of trust fund.

**A. By the Board of Trustees.** All contributions made to the Fund pursuant to this Plan shall be paid to custodian and, except as herein otherwise provided, shall be held, invested and reinvested without distinction between principal and income, in such securities or in such other property, real or personal, wherever situated, as the Board of Trustees shall deem advisable, including but not limited to, real property, shares of stock, common or preferred, whether or not listed on any exchange, participations in mutual investment funds, bonds and mortgages, and other evidences of indebtedness or ownership. The custodian shall hold and retain all the property and assets of the Fund, including income from investments and from all other sources, for the exclusive benefit of the Participants and their beneficiaries, as provided herein, and for paying the costs and expenses of administering the Plan or Fund, to the extent that they are not paid by the Employer.

**B. By Investment Manager.** The Board of Trustees, with approval of the Mayor, may enter into one (1) or more agreements for the appointment of one (1) or more Investment Managers to supervise and direct the investment and reinvestment of a portion or all of the Fund in accordance with the provisions of this Plan in the same manner and with the same powers, duties, obligations, responsibilities and limitations as apply to the Board of Trustees. As a condition to its appointment, an Investment Manager shall acknowledge in writing that it is a fiduciary with respect to the Fund. An Investment Manager so appointed shall be an Investment Advisor registered pursuant to the Investment Advisor's Act of 1940, a bank as defined in such Act or an insurance company which is qualified to manage the assets of employee benefit plans pursuant to the laws of more than one (1) state. The custodian shall be bound by the supervision and direction of the Investment Manager, unless and until the Board of Trustees amends or revokes the appointment or authority of the Investment Manager. An Investment Manager shall have sole investment responsibility for that portion of the Fund which it has been appointed to manage. Any Investment Manager shall receive such reasonable compensation chargeable against the Fund as shall be agreed upon by the Board of Trustees. The Board of Trustees may revoke any agreement with the Investment Manager at any time by thirty (30) days' written notice to the Investment Manager. Any Investment Manager may resign by thirty (30) days' written notice to the Board of Trustees.

**C. Amortization.** Beginning January 1, 2016, the Plan shall adopt, and direct its Actuary to use, a Closed Amortization Schedule with a thirty (30) year timeline for amortizing the unfunded accrued liability of the Plan.

**D. Plan Improvements.** Beginning January 1, 2016, no Plan Improvements shall be made.

**E. Assumed Rate of Return.** The Plan's Assumed Rate of Return shall be no greater than seven and three-quarters percent (7.75%).

*(Ord. No. 17389; Ord. No. 23382, § 4, 10-1-2015; Ord. No. 25547, § 20, 3-26-2025)*

## CHAPTER 12. AMENDMENT AND TERMINATION

Section 1200. Modification or discontinuance of the Plan.
Section 1201. Distribution of assets of retirement fund on termination of Plan.

### Section 1200. Modification or discontinuance of the Plan.

**A. Right to Amend or Terminate.** The City of Tulsa, Oklahoma, expects and intends to maintain the Plan in force indefinitely, but necessarily reserves the right to change or discontinue the Plan at any time.

**B. Change of Benefits or Suspension of Contributions.** At any time and from time to time, the Plan may be changed in whole or in part, or the contributions of the Employer may be suspended, provided that:

**1.** No change shall be effective unless the Plan as so changed shall be for the exclusive benefit of the Participants and beneficiaries; and

**2.** No change shall deprive any Participant or beneficiary, without his consent, of his right to the benefits which had accrued to his credit up to the time of such change.

### Section 1201. Distribution of assets of retirement fund on termination of Plan.

**A. Order of Payment.** Upon termination of the Plan, all benefits accrued by Participants who are contributing to the Plan on the date of termination shall become fully vested and nonforfeitable to the extent funded on the date of termination. The assets remaining in the Fund shall be applied to provide retirement income to Participants and their contingent annuitants according to rules adopted by the Board of Trustees and approved by the Legislative Body.

**B. Release of Restricted Reserves.** Any reserves which shall be released as a result of the application of the provisions of Section 904 hereof shall be added to the portion of the Retirement Fund which is distributed according to rules adopted by the Board of Trustees and approved by the Legislative Body.

**C. Surplus.** Any surplus remaining in the Retirement Fund, after the satisfaction of all rights or contingent rights accrued under the Plan with respect to such benefits, and after distribution of any released reserves as above provided, shall be allocated among all Participants according to rules adopted by the Board of Trustees and approved by the Legislative Body.

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## CHAPTER 13. MISCELLANEOUS

Section 1300. Adjustments and offsets for misstatements, errors, and legal judgments.
Section 1301. Missing persons.
Section 1302. Non-alienation of benefits—Exceptions.
Section 1303. Plan not a contract of employment.
Section 1304. Payment to minors and incompetents.

### Section 1300. Adjustments and offsets for misstatements, errors, and legal judgments.

**A. Misinformation.** Upon discovering an Employee or Participant has provided any incorrect information or has failed to provide necessary information to the Board of Trustees for any reason, their contributions and retirement income shall be adjusted based on the correct facts as determined by the Board of Trustees. The amount of any previous underpayments or overpayments to such Participant shall be adjusted by the Participant's succeeding payments based on uniform procedures established by the Board of Trustees.

**B. Other Errors.** In the event that a benefit paid to an Employee, Participant, or other payee is determined to be incorrect for any other reason than as stated above in Subsection A, the contributions and retirement income shall be adjusted to the correct amount as soon as practicable.

The amount of any previous underpayment shall be paid in a lump sum with interest.

In the case of an overpayment to an Employee, Participant, or other payee, such overpayments may be corrected through a return of the overpayment, an adjustment to future payments, or a combination of these methods as approved by the Board of Trustees using uniform procedures and in accordance with IRS guidance for governmental plans related to corrections of overpayments.

The term "other payee" shall include, but not be limited to alternate payees pursuant to a Qualified Domestic Relations Order (QDRO).

**C. Judgments and Settlements.** Additionally, the Board of Trustees may approve an offset of an Employee's or Participant's benefits to satisfy a judgment or settlement against the Employee or Participant for a crime involving the Plan or a breach of fiduciary duty to the Plan.

*(Ord. No. 25547, § 21, 3-26-2025)*

### Section 1301. Missing persons.

If the Board of Trustees is unable to pay any benefit from the Retirement Fund because the identity or whereabouts of a Participant, contingent annuitant or beneficiary cannot be ascertained, the Board of Trustees may direct that such benefit and all further benefits with respect to such person shall be suspended until such person is located. If state law provides that a missing Participant shall be treated as deceased, a death benefit shall be paid to the beneficiary or estate of the Participant as though the death of the Participant had occurred on the date when the benefit was first suspended according to the preceding sentence.

### Section 1302. Non-alienation of benefits—Exceptions.

No benefits which shall be payable under the Plan shall be subject in any manner to anticipation, alienation, sale, transfer, assignment, pledge, garnishment, encumbrance or

charge. With respect to benefits otherwise payable to a Participant, this section shall not apply to benefits payable to an Alternate Payee pursuant to a Qualified Domestic Relations Order (QDRO) as defined by the rules and procedures adopted by the Board of Trustees.

*(Ord. No. 18142)*

### Section 1303. Plan not a contract of employment.

This Plan shall not be deemed to constitute a contract of employment. This Plan has no effect on a person's right to become an Employee. This Plan has no effect on an Employee's rights, duties or obligations related to his status as an Employee.

### Section 1304. Payment to minors and incompetents.

If a person who is entitled to any payment through this Plan is a minor or is incompetent, the Board of Trustees shall direct such payments to be paid to the legal representative of the estate of the minor or incompetent person.

# EXHIBIT A
# TRUST AGREEMENT FOR THE MUNICIPAL EMPLOYEES' RETIREMENT PLAN

THIS AGREEMENT, effective as of the 1st day of January, 1989 (the "Effective Date"), by and between the City of Tulsa, Oklahoma, a municipal corporation (the "City") and the Board of Trustees of the Municipal Employees' Retirement Plan (the "Board");

**WITNESSETH:**

WHEREAS, the City has established a pension program for certain of its employees and for employees of related governmental entities to provide income for their support when they shall have retired and to protect them against various contingencies; and

WHEREAS, the City wishes to create a separate trust agreement to provide for funding of certain of the benefits payable by the pension program;

NOW, THEREFORE, in consideration of the premises and of the mutual covenants, agreements, terms and provisions herein contained, IT IS AGREED by and between the City and the Board as follows:

## ARTICLE I
## Definitions and Construction

1.1 Definitions. The following words and phrases, as used in this Trust Agreement, shall have the meanings stated below:

**A.** Board. The Board of Trustees for the Plan.

**B.** City. The City of Tulsa, Oklahoma, a municipal corporation.

**C.** Custodian. First National Bank and Trust Company of Tulsa or such other custodian of Trust Fund assets as the Board appoints according to Section 5.1.B. hereof.

**D.** Effective Date. January 1, 1989, the date as of which the Trust created herein shall commence.

**E.** Investment Manager. An investment advisor registered pursuant to the Investment Advisor's Act of 1940, a bank as defined in such Act or an insurance company qualified to manage the assets of employee benefit plans pursuant to the laws of more than one state, which is appointed by the Board to supervise and direct the investment and reinvestment of all or a portion of the Trust Fund.

**F.** Investment Manager's Account. The portion of the Trust Fund designated by the Board with respect to which an Investment Manager has responsibility pursuant to Article III, Section 3.3 hereof.

**G.** Participant. A person who is a "Participant" pursuant to the Plan.

**H.** Plan. The Municipal Employees' Retirement Plan.

**I.** Trust Fund. The assets of the Plan held in trust by the Board pursuant to this Trust Agreement.

**J.** Trustees' Account. The portion of the Trust Fund designated by the Board with respect to which the Board has not received investment directions from any authorized party pursuant to Article III, Section 3.2 hereof.

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1.2 Construction. Words used herein in the masculine gender shall include the feminine and words used herein in the singular shall include the plural in all cases where such would apply. The words "hereof," "herein," "hereunder" and other similar compounds of the word "here" shall refer to the entire Agreement, not to a particular Article or Section hereof. Headings of Articles, Sections and subsections are for convenience of reference only; they constitute no part of the Agreement and are not to be considered in the construction hereof. All references to statutory sections shall include the section so identified as amended from time to time or any other statute of similar import.

## ARTICLE II
## Establishment, Acceptance and Purpose

2.1 Establishment and Acceptance. As of the Effective Date, the City hereby establishes with the Board a trust which shall consist of all property transferred to the Board pursuant to the Plan, together with all interest, income and profits which accrue on such property; all of which shall be held, managed and administered in trust pursuant to this Agreement. The Board hereby accepts the trust created hereunder and agrees to perform the duties, responsibilities and obligations required of it hereunder.

2.2 Purpose. The sole purpose of the Trust Fund is to provide benefits for Participants and their beneficiaries and to defray reasonable expenses of administering and operating the Plan and Trust. No part of the Trust Fund shall be used for, or diverted to, another purpose by operation of the Trust, by its natural termination, by the exercise of any power of revocation or amendment, by the happening of any contingency, by collateral arrangement or by any other means, except upon termination of the Plan and satisfaction of Trust expenses and all liabilities to Participants and their beneficiaries.

## ARTICLE III
## Management and Control of Trust Fund

3.1 Control of Trust Fund. The Board shall have the power to control the Trust Fund and to do all such acts, to take all such proceedings and to exercise all such rights and privileges, although not specifically mentioned herein, as the Board may deem necessary or advisable to administer the Trust Fund or to carry out the purposes of this Trust Agreement.

3.2 Management of Trust Fund. The management, including the acquisition and disposition of property comprising the Trust Fund, shall be as follows:

**A.** The Board shall have exclusive responsibility, discretion and authority with respect to management of the Trust Fund, consistent with the Plan, except as to those portions of the Trust Fund regarding which an Investment Manager has responsibility according to Section 3.3 hereof.

**B.** An Investment Manager shall have the authority to direct the investment of that portion of the Trust Fund with respect to which it has been appointed an Investment Manager pursuant to Section 3.3 hereof, in a manner consistent with this Trust Agreement, the Plan and applicable law.

3.3 Appointment of Investment Manager. The Board may appoint one or more Investment Managers to direct the investment of all or a portion of the Trust Fund. As a condition to its appointment, an Investment Manager shall acknowledge in writing that it is a fiduciary with respect to the Plan. An Investment Manager who is not also a Custodian

shall not have authority to take custody of any property which is a part of the Trust Fund. The Board may furnish an Investment Manager written investment guidelines for investment of the Investment Manager's Account, which guidelines may include directions with respect to diversification of the investments.

3.4 Limitation of Duty. The authority reserved to the Board in Sections 3.2 and 3.3 hereof shall not impose upon the Board any duty, responsibility or obligation to exercise such authority or to manage all or any portion of the Trust Fund.

3.5 Separate Accounting for Employee Contributions. The City shall maintain separate accounting for employee contributions to the Plan.

## ARTICLE IV
## Investment of Trust Fund

4.1 Investment of Trustees' Account. Except as specified below or as required by the Plan, the Board shall invest and reinvest the principal and income of the Trustees' Account.

4.2 Investment of Investment Manager's Account. The Investment Manager's Account shall be invested as directed in writing by the Investment Manager, provided the direction accords with this Agreement, the Plan and applicable law.

4.3 Purchase of Insurance Contracts. Subject to the Plan, the Board may apply for and purchase from responsible insurance companies such life insurance, retirement annuity, retirement income or other contracts issued by insurance companies and may exercise at any time or from time to time the rights of the absolute owner of such contracts or which may be granted pursuant to such contracts and may collect, receive, settle for and disburse the benefits of all such contracts as and when entitled to do so pursuant to the provisions thereof, and to execute all necessary receipts and annuities and other contracts issued by insurance companies as are purchased pursuant to the Plan and deal with such contracts in any manner as may be necessary pursuant to the terms and provisions of the Plan and this Agreement.

4.4 Commingled Funds. Declarations of Trust executed by a Custodian or by a bank appointed by the Board as Investment Manager and creating commingled investment funds are hereby made a part of this Agreement; provided that said Declarations of Trust comply with the Rules and Regulations of the Comptroller of the Currency, if necessary, and the laws of any state having jurisdiction thereover and have, where appropriate, been approved by the Internal Revenue Service. Notwithstanding any other provision of this Agreement, the Board may cause all or any part of the moneys of this trust to be commingled with moneys of trusts created by others and invested as part of the above described commingled funds and moneys of this trust so added to said funds at any time shall be subject to all the provisions of the applicable Declaration of Trust as it is amended from time to time.

The Board may, from time to time, withdraw from such commingled trust all or such part of the Trust Fund as the Board may deem advisable.

## ARTICLE V
## Duties of the Board

5.1 Duties. In addition to any duty or responsibility otherwise imposed on the Board by law or this Agreement, the Board shall:

**A.** Perform all of its functions hereunder with the care, skill, prudence and diligence under the circumstances then prevailing that a prudent man acting in a like capacity and familiar with such matters would use in the conduct of an enterprise of a like character and with like aims.

**B.** Hold and administer the Trust Fund in trust, provided the Board may appoint a Custodian to hold the Trust Fund on behalf of the Board.

**C.** Maintain accurate and detailed accounts of all investments, receipts, disbursements and all other transactions affecting all or any portion of the Trust Fund. All accounts, books and records relating to such transactions shall be open to inspection and audit at any time during business hours by any person designated by the City.

**D.** Within sixty (60) days following the close of each calendar quarter or at such other time as agreed upon by the City and the Board, and within sixty (60) days after the removal or resignation of the Board as provided in Article X hereof, file with the City a written account listing all investments, receipts, disbursements and other transactions affected by it during such period or during the period from the last written accounting to the date of such removal or resignation, and stating the current book and market values of the Trust Fund. If the Board invests a part or all of the assets of the Trust Fund in one or more contracts issued by an insurance company or Investment Manager, delivery of such insurance company's or Investment Manager's annual report shall satisfy the requirements of this subsection as to such assets.

5.2 Contributions to the Plan. The Board shall have no duty to inquire into the accuracy or sufficiency of any contribution, or its source, or to take any action to compel the Employer to contribute to the Plan.

5.3 Payments from the Trust Fund. In order to provide for payments pursuant to the Plan, the Custodian shall from time to time on the written direction of the Board make payments from the Trust Fund to such persons, insurance companies, corporations or other entities, in such manner, in such amounts and for such purposes, including, but not limited to, purchases of annuity or other contracts issued by insurance companies as may be specified in the written directions of the Board, and upon any such payment, the amount thereof shall no longer constitute a part of the Trust Fund unless the payment is for a contract intended to be a part of the Trust Fund. Each such written direction shall include a certification by the Board that the payment accords with the Plan. The Custodian shall make such payments either directly to persons certified by the Board to be entitled to them or to the Board or its delegate for transmittal to such persons or as otherwise directed by the Board. The Custodian shall be liable for failure to make any payment of any kind only if it shall have been directed by the Board to make such payment and only if funds sufficient to make such payment shall be available from the Trust Fund. The Board shall not be responsible in any way with respect to the application of such payments or for the adequacy of the Trust Fund to meet and discharge any and all liabilities pursuant to the Plan.

## ARTICLE VI
## Powers of Board

In addition to, and not in limitation of, the powers stated in Article III, Section 3.1 and Article IV, Section 4.1 above or elsewhere in this Agreement, the Board shall have the following powers and authority in the control of the Trust Fund, all consistent with direction by an Investment Manager pursuant to Article III above. Each interpretation and decision made by the Board in fulfillment of its responsibilities under this Trust shall be final and binding on all parties unless a court with proper jurisdiction over the matter issues a final decision that the determination of the Board was arbitrary, capricious or made in bad faith and had no rational basis.

**A.** To purchase or subscribe for and to retain any securities or other property, and to sell, exchange, convey, transfer or otherwise dispose of, and also to grant options with respect to, any securities or other property held by it, by private contract or at public auction, or to surrender for cash value any contracts issued by an insurance company which may at any time constitute a part of the Trust Fund. Any sale may be made for cash or upon credit, or partly in cash and partly on credit. No person dealing with the Board shall be bound to see to the application of the purchase money or to inquire into the validity, expedience or propriety of any such sale or other disposition.

**B.** To purchase and sell contracts or other properties through such broker or brokers as the Board may choose.

**C.** To vote upon any stocks, bonds or other securities; to give general or special proxies or powers of attorney with or without power of substitution; to appoint one or more individuals or corporations as voting trustees under voting trust agreements and pursuant to such voting agreements to delegate to such voting trustees discretion to vote; to exercise any conversion privileges, subscription rights or other options, and to make any payments incidental thereto; to oppose, or to consent to or otherwise participate in, corporate reorganizations or other changes affecting corporate securities, and to pay any assessments or charges in connection therewith; and generally to exercise any of the powers of an owner with respect to property held as part of the Trust Fund.

**D.** To cause any securities or other property to be registered in its own name or in the name of its nominee without designating the same as trust property, and to hold any investments in bearer form, but the books and records of the Board shall at all times show that all such investments are part of the Trust Fund. Any such registration or holding by the Board shall not relieve it from its responsibility for the safe custody and disposition of the Trust Fund in accordance with the terms and provisions of this Trust Agreement.

**E.** To hold cash, uninvested, for such length of time as the Board may deem prudent and in the best interests of the Trust created hereby without liability for interest thereon.

**F.** To make, execute, acknowledge and deliver any and all documents of transfer and conveyance including, but not limited to, deeds, leases, mortgages, conveyances, contracts, waivers and releases, and any and all other instruments that may be necessary or appropriate to carry out the powers herein granted.

**G.** To renew or extend or participate in the renewal or extension of any mortgage, upon such terms as may be deemed advisable, and to agree to a reduction in the rate of interest on any mortgage, or to any other modification or change in the terms of any mortgage, or of any guarantee pertaining thereto, in any manner and to any extent that may be deemed advisable for the protection of the Trust Fund or the preservation of the value of the investment; to waive any default whether in the performance of any covenant or conditions of any mortgage or in the performance of any guarantee or to enforce any such default in such manner and to such extent as may be deemed advisable; to exercise and enforce any and all rights of foreclosure, to bid in property on foreclosure, to take a deed in lieu of foreclosure with or without paying a consideration therefor, and in connection therewith to release the obligation on the bond secured by such mortgage and to exercise and enforce in any action, suit or proceeding at law or in equity any rights or remedies in respect of any such mortgage or guarantee.

**H.** To employ suitable agents and counsel (who may be agents or counsel for the City) and to pay their reasonable expenses and compensation.

**I.** To act at any time and in any jurisdiction without bond or other security to insure the faithful performance of its duties, except as required by applicable law.

**J.** To continue to have and to exercise after the termination of the Plan and until final distribution, all of the title, powers, discretions, rights and duties conferred or imposed upon the Board hereunder or by law.

## ARTICLE VII
## Compensation, Expenses and Taxes

7.1 Payment of Compensation and Expenses. The Board shall serve without compensation and shall be reimbursed for such reasonable expenses as approved by the Board and paid from the Trust Fund.

7.2 Payment of Taxes. The Board shall pay from the Trust Fund all taxes of any and all kinds whatsoever that may be levied or assessed under existing or future laws upon, or in respect of, the Trust Fund or its income.

## ARTICLE VIII
## Protection, Indemnification and Litigation

8.1 Limitation of Liability. Neither the City, its agents, the Board nor an Investment Manager shall be liable for the making, retention or sale of any investment, nor for any loss to, or diminution of the Trust Fund, unless due to its own negligence, misconduct or lack of good faith.

8.2 Reliance Upon Written Communications. Any Investment Manager shall provide the Board and Custodian with a written certification identifying the person or persons authorized to give instructions or directions on its behalf, and such certification shall be effective until a written revocation is filed with the Board and Custodian. The Board and Custodian may rely upon any written communication by such persons with respect to any instruction or direction of the Investment Manager and in continuing to rely upon such written communication until a subsequent written communication is filed with the Board and Custodian. The Board may act upon any instrument, written communication or paper believed by the Board to be genuine and to be signed or presented by the proper person or

persons, and the Board shall be under no duty to make any investigation or inquiry as to any statement contained in any such writing, but may accept the same as conclusive evidence of the truth and accuracy of the statements therein contained.

8.3 Indemnification of Board. The City agrees to provide a legal defense for the Board and to indemnify the Board for any legal fees the Board incurs resulting from or incident to any claimed breach of fiduciary duty by the Board relating to any sale or investment made, or act done, pursuant to any direction by an Investment Manager, all consistent with Article III above, or related to the retention of or failure to take any action with respect to any investment made, or act done, pursuant to direction by or in the absence of further directions by an Investment Manager.

8.4 Litigation. The Board shall have the power to commence or defend suits or legal or administrative proceedings and, with the consent of the City, to settle, compromise or submit to arbitration, any claims, debts or damages due or owing to or from the Trust Fund; provided, however, the Board shall not be required to institute suit or maintain any litigation to collect the proceeds of any insurance or other contract forming a part of the Trust Fund unless the Trust Fund holds sufficient funds for this purpose or unless it has been indemnified to its satisfaction for its counsel fees, costs, disbursements and all other expenses and liabilities to which it may be subjected by such suit; provided, further, that the Board may utilize the proceeds of any contract to meet expenses incurred in enforcing payment of such contract.

The Board shall not be obligated to participate in any suit or legal or administrative proceeding which would subject it to expense or liability unless such suit or proceeding is occasioned by the fault of the Board or involves a question of its fault or involves an alleged breach of fiduciary duty, obligation or responsibility by the Board, unless it be first indemnified by the City in an amount and manner satisfactory to it or be furnished with funds sufficient, in its sole judgment, to cover the same.

## ARTICLE IX
## Amendment

The City shall have the right at any time, and from time to time:

**A.** To amend this Trust Agreement in such manner as it may deem necessary or advisable in order to cause this Trust Agreement and the Plan to qualify or continue to qualify under the provisions of Section 401(a) and be exempt from taxation under the terms of Section 501(a) of the Internal Revenue Code and any such amendment may by its terms be retroactive to the extent permitted by applicable law; and

**B.** To amend this Trust Agreement in any other manner; however, no such amendment shall authorize or permit any part of the Trust Fund to be used for or diverted to purposes other than those stated in Article II, Section 2.2 hereof; no such amendment may cause or permit any portion of the Trust Fund to revert to or become the property of the City.

Any such amendment shall become effective upon delivery of a written instrument, executed by persons duly authorized, to the Board and upon endorsement by the Board of its receipt and of its written consent, if such consent is required.

## ARTICLE X
## Termination

10.1 Termination by the City. The City shall have the right at any time to terminate this Trust Fund by delivering to the Board written notice of such termination.

10.2 Procedures Upon Termination. Upon the occurrence of any of the circumstances described in Section 10.1, the Board shall appraise the value of the Trust Fund and shall determine the allocation and the distribution of the Trust Fund, subject to the approval of the City.

10.3 Discharge of Board. Upon making such final distribution, the Board shall be discharged from all obligations under the Trust.

## ARTICLE XI
## General Provisions

11.1 Individual's Rights; Acquittance. Neither the establishment of the Trust Fund hereby created, nor any modification thereof nor the creation of any fund or account, nor the issuance of any annuity policy, nor the payment of any benefits, shall be construed as giving to any person any legal or equitable right against the City, or any officer or employee thereof, any Investment Manager, or the Board, or any insurance company except as provided by the terms of any such annuity policy, the Plan or applicable law. Under no circumstances shall the terms of employment of any Participant be modified or in any way affected hereby.

11.2 Nonalienation of Benefits. Except for indebtedness owing to the Trust Fund, benefits payable from the Trust Fund shall not be subject in any manner to anticipation, alienation, sale, transfer, assignment, pledge, encumbrance, charge, garnishment, execution or levy of any kind, either voluntary or involuntary, until such payment has been actually received by the person entitled to it. Any attempt to anticipate, alienate, sell, transfer, assign, pledge, encumber, charge or otherwise dispose of any right to benefits payable hereunder shall be void. Neither this Trust Fund nor the Board shall in any manner be liable for or be subject to the debts, contracts, liabilities, engagements or torts of any person entitled to benefits hereunder. If the terms of this section are contrary to the law governing in a particular circumstance, then, as to that circumstance, any such payment shall be so exempt to the maximum extent permitted by such law. This Section shall not apply to any benefit payable with respect to a Participant pursuant to a domestic relations order as defined in the Internal Revenue Code.

11.3 Exercise of Authority by the City. Whenever the City, under the terms of this Agreement, is permitted or required to do or perform any act, or matter or thing, it shall be done and performed by a properly authorized officer, agent, representative or employee.

11.4 Qualification. Subject to any amendment to this Trust Agreement which specifically expresses a contrary intention, the Trust existing hereunder is intended to be exempt from income tax under Section 501(a) of the Internal Revenue Code of 1986 and wherever possible shall be construed to carry out that intention. The Board shall take no action which would adversely affect the tax-exempt status of the Trust. The Board may demand assurances satisfactory to it that any action which it is directed to take will not adversely affect the tax-exempt status.

11.5 Severability. In the event any provision of this Agreement shall be considered illegal or invalid for any reason, said illegality or invalidity shall not affect the remaining provisions hereof, but such provisions shall be fully severable and this Agreement shall be construed and enforced as if such illegal or invalid provisions had never been inserted therein. Any provision herein providing for any indemnification or limitation upon the liability of any person or entity shall be construed to be fully effective except to the extent that such construction would relieve any person from responsibility or liability for any responsibility, obligation or duty imposed by Part 4, Title I of the Employee Retirement Income Security Act of 1974.

11.6 Communications. Any communication required or permitted by this Agreement to be made by any party hereto shall be deemed sufficiently given or served if in writing and delivered to the party to whom addressed or with postage prepaid, addressed to such party as shown on the records of the sender. Any communication required or permitted by this Agreement shall be deemed to have been received on the date of mailing or other delivery.

IN WITNESS WHEREOF, the City has caused this Agreement to be executed by its respective duly appointed officers and the Board has hereunto set his or her hand and seal as of the day, month and year first above written.

CITY OF TULSA, OKLAHOMA
a municipal corporation
s/ Rodger A. Randle
Mayor

(Seal)
ATTEST:
s/ Phillip W. Wood
City Auditor
APPROVED:
s/ Neal E. McNeill
City Attorney

"City"

MUNICIPAL EMPLOYEES' RETIREMENT PLAN BOARD OF TRUSTEES
s/ Philip W. Wood
Philip W. Wood
s/ Cline L. Mansur
Cline Mansur

s/ Pete Williams
Pete Williams
s/ Charles L. Kimberling
Charles L. Kimberling
s/ Andrew L. Pierson
Andrew L. Pierson

"Board"

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# FIRST AMENDMENT TO TRUST AGREEMENT FOR THE MUNICIPAL EMPLOYEES' RETIREMENT PLAN

("Exhibit B" in Ord. No. 19988)

KNOW ALL MEN BY THESE PRESENTS:

WHEREAS, on January 1, 1989, an agreement was entered into by and between the City of Tulsa, Oklahoma, a municipal corporation (the "City"), and the Board of Trustees of the Municipal Employees' Retirement Plan ("the (Board") to provide for funding of certain of the benefits payable by the pension program established by the City for its employees and for employees of related governmental entities; and

WHEREAS, Article IX of said Trust Agreement provides that the City shall have the right at any time, and from time to time, to amend said Trust Agreement and any such amendment shall become effective upon delivery of a written instrument, executed by persons duly authorized, to the Board and upon endorsement by the Board of its receipt and of its written consent, if such consent is required; and

WHEREAS, it is deemed necessary to provide for amendments to the Trust Agreement to define the term, "Staff Member"; to make the indemnification language of the Trust Agreement consistent with the language of the Ordinance; and to strike from the severability clause the reference to ERISA.

NOW, THEREFORE, this First Amendment to Trust Agreement, dated the 27th day of November, 2000, in consideration of the premises and of the mutual covenants, agreements, terms and provisions herein contained, IT IS AGREED by and between the City and the Board to amend the original Trust Agreement, in the following respects:

**A.** That Article I, Definitions and Construction, Section 1.1, Definitions, be amended to include a definition of "Staff Member," to read as follows:

1.1. Definitions. The following words and phrases, as used in this Trust Agreement, shall have the meanings stated below:

**A.** Board. The Board of Trustees for the Plan.

**B.** City. The City of Tulsa, Oklahoma, a municipal corporation.

**C.** Custodian. First National Bank and Trust Company of Tulsa or such other custodian of Trust Fund assets as the Board appoints according to Section 5.1.B. hereof.

**D.** Effective Date. January 1, 1989, the date as of which the Trust created herein shall commence.

**E.** Investment Manager. An investment advisor registered pursuant to the Investment Advisor's Act of 1940, a bank as defined in such Act or an insurance company qualified to manage the assets of employee benefit plans pursuant to the laws of more than one state, which is appointed by the Board to supervise and direct the investment and reinvestment of all or a portion of the Trust Fund.

**F.** Investment Manager's Account. The portion of the Trust Fund designated by the Board with respect to which an Investment Manager has responsibility pursuant to Article III, Section 3.3 hereof.

**G.** Participant. A person who is a "Participant" pursuant to the Plan.

**H.** Plan. The Municipal Employees' Retirement Plan.

**I.** Staff Member. The City personnel who assist the Board of Trustees in carrying out the duties and responsibilities of the Municipal Employees' Retirement Plan.

**J.** Trust Fund. The assets of the Plan held in trust by the Board pursuant to this Trust Agreement.

**K.** Trustees' Account. The portion of the Trust Fund designated by the Board with respect to which the Board has not received investment directions from any authorized party pursuant to Article III, Section 3.2 hereof.

**B.** That Article VIII, Protection, Indemnification and Litigation, Section 8.1, be amended to read as follows:

8.1 Liability Limited. Neither the City, its agents, the Board, or any member or staff member thereof, shall be liable for the making, retention or sale of any investment, nor for any loss to, or diminution of the Trust Fund, unless due to its own gross negligence or willful or intentional misconduct.

**C.** That Article VIII, Protection, Indemnification and Litigation, Section 8.3, be and the same is amended to read as follows:

8.3 Indemnification of Board. The City agrees to provide a legal defense for the Board or any member or staff member thereof and to indemnify the Board or any member or staff member thereof for any legal fees the Board or any member or staff member thereof incurs resulting from or incident to any claim against the Board or any member or staff member thereof relating to any sale or investment made or act done, pursuant to any direction by an Investment Manager, all consistent with Article III, above, or related to any investment made or act done, pursuant to direction by or in the absence of further directions by an Investment Manager.

**D.** That Article VIII, Protection, Indemnification and Litigation, Section 8.4, be and the same is amended to read as follows:

8.4 Litigation. The Board shall have the power to commence or defend suits or legal or administrative proceedings and, with the consent of the City, to settle, compromise or submit to arbitration, any claims, debts or damages due or owing to or from the Trust Fund; provided, however, the Board shall not be required to institute suit or maintain any litigation to collect the proceeds of any insurance or other contract forming a part of the Trust Fund unless the Trust Fund holds sufficient funds for this purpose or unless it has been indemnified to its satisfaction for its counsel fees, costs, disbursements and all other expenses and liabilities to which it may be subjected by such suit; provided, further, that the Board may utilize the proceeds of any contract to meet expenses incurred in enforcing payment of such contract.

The Board shall not be obligated to participate in any suit or legal or administrative proceeding which would subject it to expense or liability unless such suit or proceeding is occasioned by the gross negligence or the willful or intentional misconduct of the Board or any member or staff member thereof, or involves a question of gross negligence or its willful or intentional misconduct or involves an alleged breach of fiduciary duty, obligation or responsibility by the Board or any

member or staff member thereof, unless it be first indemnified by the City in an amount and manner satisfactory to it or be furnished with funds sufficient, in its sole judgment, to cover the same.

**E.** That Article XI, General Provisions, Section 11.5, be and the same is amended to read as follows:

11.5 Severability. In the event any provision of this Agreement shall be considered illegal or invalid for any reason, said illegality or invalidity shall not affect the remaining provisions hereof, but such provisions shall be fully severable and this Agreement shall be construed and enforced as if such illegal or invalid provisions had never been inserted therein.

IN WITNESS WHEREOF, the City has caused this First Amendment to Trust Agreement to be executed by its respective duly appointed officers and the Board has hereunto set his or her hand and seal as of this 27th day of November, 2000.

CITY OF TULSA, OKLAHOMA
a municipal corporation
s/ M. Susan Savage
Mayor

(Seal)
ATTEST:
s/ Michael P. Kier
City Clerk
APPROVED:
s/ Martha Rupp Carter
City Attorney

"City"

MUNICIPAL EMPLOYEES' RETIREMENT PLAN BOARD OF TRUSTEES
s/ Michael P. Kier
Michael P. Kier
s/ Sherry Reinhardt
Sherry Reinhardt
s/ Michael S. Bates
Michael S. Bates
s/ Bill D. Lane
Bill D. Lane

s/ Robert G. Lemons
Robert G. Lemons
s/ Dick McKenzie
Dick McKenzie
s/ Andrew L. Pierson
Andrew L. Pierson
"Board"

# TITLE 29 POLICE DEPARTMENT

**Chapter 1. Police Department, Personnel, Records**
**Chapter 2. Conduct and Standards**
**Chapter 3. Prisoners**
**Chapter 4. Police Pensions and Retirement System**
**Chapter 5. Code Citations and Issuance Authority**
**Chapter 6. Police Department Imprest Account**
**Chapter 7. Wrecker Services**
**Chapter 8. Forfeited Proceeds and Properties Fund**
**Chapter 9. Tulsa Nine-One-One Emergency Number (Repealed)**
**Chapter 10. Contracts With Other Municipalities**

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## CHAPTER 1. POLICE DEPARTMENT, PERSONNEL, RECORDS

Section 100. Police Department.
Section 101. Control of Department.
Section 102. Definitions and construction.
Section 103. Appointments, promotions.
Section 104. Position of Chief.
Section 105. Duties of Chief.
Section 106. Powers of Chief.
Section 107. Reports.
Section 108. Records kept.
Section 109. Authority to release certain reports.
Section 110. Fees for records and related services.
Section 111. Deposit of fees.

### Section 100. Police Department.

A Police Department of the City of Tulsa ("the Department") shall be composed of a Chief of Police and such employees necessary to perform the duties and functions of the Department, subject to the provisions of the Charter and the Revised Ordinances of the City of Tulsa.

### Section 101. Control of Department.

The Department shall be under the control and authority of the Mayor who shall approve rules and regulations defining the authority, specifying the duties and governing the conduct of all police officers and employees of the Department.

*(Ord. No. 4846)*

### Section 102. Definitions and construction.

Unless otherwise provided herein, for the purposes of this title the following words and phrases shall have the meanings given herein.

**A. Employees** shall be all persons other than police officers appointed in the Police Department whose duties are to assist in the operation and functioning of the Department.

**B. Police officers** shall be those persons who are employed for the purpose of maintaining order, preventing and detecting crime, protecting the rights, lives and property of citizens and enforcing the laws.

**C. Singular and plural.** The use of any term in singular includes the plural of that term and the use of any term in plural includes the singular of that term.

**D. Gender.** The use of any masculine gender term shall include the feminine gender term.

*(Ord. No. 5280)*

### Section 103. Appointments, promotions.

Appointments and promotions of members of the Police Department shall be according to rules and regulations established by the Civil Service Commission and approved by the Council as provided in the Charter of the City of Tulsa.

### Section 104. Position of Chief.

There shall be a Chief of Police whose appointment shall be made by the Mayor, subject to the provisions of the Charter of the City of Tulsa.

### Section 105. Duties of Chief.

It shall be the duty of the Chief of Police to preserve the public peace, to prevent the commission of crime, to arrest offenders, to protect the rights of persons and property, to provide police officers at fires to protect the firefighters and property, to suppress riots and insurrections and disperse unlawful and dangerous assemblies, to preserve order at all elections and all public meetings and assemblies, to prevent and regulate the movement of vehicles in the streets and to prevent the violation of all laws and ordinances.

### Section 106. Powers of Chief.

The Chief of Police shall have general supervision of the Department, and shall be accountable to the Mayor for the promulgation of all orders or regulations made or given to the Department. Every member of the Police Department shall respect and obey all orders issued by the Chief. It shall be the duty of the Chief to confer fully with and be advised by the Mayor on all important matters pertaining to the government of the Department.

### Section 107. Reports.

The Chief of Police shall make periodic reports to the Mayor, showing the condition of the Department, the number of arrests, complaints and crimes by district, the amount of property stolen or taken, the amount recovered and such other information as the Mayor shall request.

### Section 108. Records kept.

The Chief shall keep the following records in the Department:

**A.** A record showing the name, age, weight and height of every officer and employee of the Department, the division of service in which stationed, the place of residence, the date of appointment and the time of removal, discharge or retirement;

**B.** A detailed inventory of all property belonging to the Police Department;

**C.** Records signed by all members of the Police Department showing the receipt of any equipment which is the property of the City; and

**D.** A record of monthly reports of all work done by the Department, including the time each police officer has been absent during the month and the cause of such absence, the number of arrests made, the cause of each arrest and the name of each police officer making the arrest; such records shall carry citations of commendation in cases which merit them and notations of demerits where the facts may justify them.

### Section 109. Authority to release certain reports.

The Department is authorized to release to the public, upon payment of any required fees, a copy of the Official Traffic Collision Report and any completed Supplement to Official Traffic Collision Report form relating to a specific traffic accident; provided, however, that this authority does not authorize the release of investigative materials or other records which may be related to the identified reports or supplements.

## Section 110. Fees for records and related services.

**A.** Fees for copying reports or records which are authorized for release by the Department under authority of City ordinance and which are not records subject to Oklahoma's Open Records Act, and fees for services relating to records shall be as follows:

| | |
|---|---|
| Individual record review | $2.00 |
| When no record | $0.50 |
| Police report (ten pages or less) | $3.00 |
| Each additional page | $1.00 |
| Rolling fingerprints | $3.00 |

**B.** No fee for performing these services shall be collected from:

**1.** Any of the Armed Services;

**2.** Law enforcement or governmental agencies; or

**3.** An individual identified as the victim of a criminal offense in the police report requested. Only one (1) copy shall be furnished to these individuals at no cost, and then only provided the request is made in person, with photo identification required.

**C.** No person shall be allowed to examine or receive a copy of an accident report or any related investigation report if examination or reproduction of the report is sought for the purpose of making a commercial solicitation. Any person requesting an accident report may be required to state, in writing, under penalty of perjury, that the report will not be examined, reproduced or otherwise used for commercial solicitation purposes.

*(Ord. Nos. 14922, 19224)*

## Section 111. Deposit of fees.

The fees collected by the Police Department shall be deposited daily with the Director of Finance.

*(Ord. No. 8364)*

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## CHAPTER 2. CONDUCT AND STANDARDS

Section 200. Uniforms and attire.
Section 201. Knowledge of laws.
Section 202. Duty hours.
Section 203. Conduct.
Section 204. Report suspects.
Section 205. Signing of petitions.
Section 206. Stolen, abandoned and found property.
Section 207. Disposition of property.
Section 208. Fee for storage of property authorized.

### Section 200. Uniforms and attire.

Every member of the Police Department shall at all times when entering upon any duty be neat; his badge, clothing, boots, shoes and wearing apparel shall be clean and shall conform to the rules and regulations of the Department. No member of the Department, except city detectives and other persons who may be designated by the Chief, shall report for duty unless he is attired in the regulation uniform and he has in his immediate possession all the equipment required by written directives of the Chief.

### Section 201. Knowledge of laws.

It shall be the duty of each member of the Police Department to be at all times thoroughly familiar with the rules and regulations of the Department, all ordinances pertaining to police work and all changes which may affect the discharge of his duties.

### Section 202. Duty hours.

Officers and members of the Police Department shall devote total time and attention to the business of the Department while on duty. Officers and members of the Police Department shall be deemed to be on duty at all times during their regular shift. Officers are subject to call for duty, and they shall be prepared to act immediately upon notice that their services are required. Officers and members of the Department may, however, secure part-time employment which does not interfere nor conflict with their duties as officers or members of the Department and which meets the guidelines as set out in the written policies, procedures and directives of the Department.

### Section 203. Conduct.

Each member of the Police Department, in his conduct and deportment, shall be quiet, civil and orderly in the performance of his duty. He shall exert only such force in making arrests as is necessary for the execution of the arrest or imprisonment of the violator or person apprehended. He shall at all times refrain from coarse, profane or insulting language and, when required, shall act with firmness and sufficient energy and force to perform his duty.

### Section 204. Report suspects.

Police officers shall report to their commanding officer all persons known or suspected of being gamblers, receivers of stolen property, thieves, burglars, prostitutes or offenders of any kind who may live in or frequently visit their territories. They shall exert their best efforts to locate gambling houses, houses of prostitution or places where intoxicating liquors or contraband are illegally held, manufactured or sold.

### Section 205. Signing of petitions.

No member of the Police Department shall be permitted to solicit or sign petitions or participate in any attempt to request the employment of any person by the City government, the promotion of any City employee or officer, or to protest the discharge or demotion of any City officer or employee, or otherwise to engage in any effort to use any influence for such purposes.

### Section 206. Stolen, abandoned and found property.

All stolen property recovered by the Police Department and all abandoned or found property which comes into the possession of the Department shall be kept in the Department property room and held under the authority of the Chief of Police.

### Section 207. Disposition of property.

The disposition of all property in the Department property room shall be governed by applicable state and federal laws. The Chief of Police is authorized to withhold any unclaimed or abandoned property from public sale and obtain court approval for the transfer of its ownership to the City of Tulsa when such property is adaptable for use by any City department.

### Section 208. Fee for storage of property authorized.

The Chief of Police is authorized to require the payment of a reasonable fee for storage before the release of the property from the Department property room.

## CHAPTER 3. PRISONERS

Section 300. City jail.
Section 301. Custody of prisoners.
Section 302. Duty of jailer.
Section 303. Property record.
Section 304. Delivery to other officers.
Section 305. Authority to contract for jail facilities.

### Section 300. City jail.

There is hereby established a city jail which shall be in the custody of the Chief Jailer. The jailer shall receive all persons committed to the jail by the Municipal Court and detain them therein in the jail in execution of the judgment of the Court. He shall receive and detain all persons charged with the violation of any law or ordinance and delivered to him by any police officer of the City, pending orders of the Municipal Court in relation to such prisoners. The jailer shall cause persons of opposite sex to be lodged in separate compartments of the jail. He shall discharge his duties under the supervision and control of the Chief of Police. All female prisoners shall be in the custody of a matron who shall exercise the police power of jailer and who shall perform her duties under the direction of the Chief of Police.

### Section 301. Custody of prisoners.

Persons confined in the jail by sentence or commitment of the Municipal Court for the violation of the City's ordinances or regulations or in default of payment of any fine or penalty for such violation shall be under the care and control of the Chief of Police by direction of the Mayor, and the Chief of Police shall be held responsible for the safe keeping of all prisoners.

### Section 302. Duty of jailer.

It shall be the duty of the jailer, prior to the incarceration of any prisoner, to remove from the person of the prisoner any weapon found on his person, any money, watch, jewelry or other valuable thing until the prisoner is released from imprisonment and to return them to the prisoner upon his release; provided, however, that anything which may be found on the person of the prisoner which is in his possession in violation of the law, shall be disposed of as provided by law.

### Section 303. Property record.

It shall be the duty of the jailer to immediately record on the police docket of arrests, opposite the name of the person arrested, a list of all articles taken from such person prior to his incarceration and, when his property is returned to such person, to obtain a receipt therefor, which receipt shall be kept on file by the jailer.

### Section 304. Delivery to other officers.

Upon the delivery to any county, state or federal official of any prisoner arrested and in the custody of the City police, it shall be the duty of the jailer to deliver any weapon belonging to such prisoner to the receiving officer, to deliver any valuables or money belonging to such prisoner to the prisoner himself and to take a receipt from the prisoner and the officer for the articles so delivered.

The jailer shall not allow anyone, except the Chief of Police, the City Attorney or any regularly licensed attorney or attorneys, to visit or converse with prisoners in the jail without the written permission of the Chief, except in the presence and hearing of an officer in charge of such prisoner.

## Section 305. Authority to contract for jail facilities.

Notwithstanding any of the foregoing provisions, the functions described by this chapter to establish, maintain or operate jail facilities may be satisfied by contract between the City of Tulsa and other agencies or entities, whether public or private.

## CHAPTER 4. POLICE PENSIONS AND RETIREMENT SYSTEM

Section 400. Creation of Police Pension and Retirement System.
Section 401. Composition, term and elections to the local Board of Trustees.
Section 402. Officers, quorum, duties and responsibilities.
Section 403. Legal advisor, litigation.
Section 404. State law.

### Section 400. Creation of Police Pension and Retirement System.

There is hereby established the City of Tulsa Local Police Pension and Retirement Board ("Local Board") of the Oklahoma Police Pension and Retirement System, as authorized by the Police Pension and Retirement Act of the State of Oklahoma, 11 O.S. 1991, §§ 50-101, *et seq*. The purpose of this chapter is to provide a local board to assist the Oklahoma Police Pension and Retirement System Board of Trustees in the provision of pension allowances and other benefits to City of Tulsa police officers, their spouses and children. All sections and provisions of the Oklahoma statutes pertaining to the Oklahoma Police Pension and Retirement Act, 11 O.S.1991, §§ 50-101, *et seq.*, and any amendments thereto, however numbered or designated, are hereby adopted and incorporated into this chapter.

### Section 401. Composition, term and elections to the local Board of Trustees.

The Local Board shall consist of the City Clerk and the City Treasurer, who shall serve as trustees during their respective terms of office, and three (3) officers from the Police Department who shall be elected as provided herein. At least thirty (30) days prior to the expiration of each member trustee's term, the City Clerk shall publicly post, at police headquarters, the announcement of a Local Board election, and the members participating in the Oklahoma Police Pension and Retirement System, either active on or retired from the City of Tulsa Police Department, shall elect by ballot one of its participating members to serve for a term of three (3) years on the Local Board. If a vacancy occurs on the Local Board, the vacancy shall be filled for the unexpired term in the same manner in which the position was previously filled.

### Section 402. Officers, quorum, duties and responsibilities.

During the regularly scheduled meeting in January of each year, the Local Board shall choose a chairman and secretary from its membership who shall serve for terms of one (1) year or until their successors are elected. In the event any chairman or secretary ceases to be a member of the Local Board, the Local Board shall elect from its members, a chairman or secretary to serve the unexpired term of the officer whose membership on the Local Board has terminated.

The Local Board shall hold monthly meetings at a regular time and place and at any time otherwise necessary, upon the call of its chairman. A majority of all the members of the Local Board shall constitute a quorum and shall have the power to transact business.

It shall be the responsibility of the Local Board to review applications for the following:

**1.** Membership in the Oklahoma Police Pension and Retirement System through the City of Tulsa Local Police Pension and Retirement Board;

**2.** Refund of accumulated contributions to members terminating employment from the Tulsa Police Department;

**3.** Retirement benefits; and

**4.** Disability benefits and examinations to determine continuation of disability benefits.

The Local Board shall recommend approval, disapproval or modification of each application described above and the secretary of the Local Board shall forward such recommendation to the Board of Trustees of the Oklahoma Police Pension and Retirement System within ten (10) days following the Local Board's decision. Consideration by the Local Board of all applications shall be strictly pursuant to the provisions of 11 O.S.1991, §§ 50-101, *et seq.*, and any applicable rules and regulations promulgated by the State Board of Trustees.

## Section 403. Legal advisor, litigation.

The City Attorney of the City of Tulsa, or his designee, shall be the legal advisor of the Local Board, shall appear on behalf of the Local Board at its meetings and shall represent it in suits brought by or against the Local Board. In the event the Local Board determines that there is a concern or conflict of interest in the handling of any litigation wherein the City of Tulsa is named as a party, the Local Board is authorized to retain additional or other legal counsel in its discretion. The Local Board shall notify the State Board immediately upon involvement of the Local Board in litigation of any nature and shall set forth in detail the specific nature of the involvement.

## Section 404. State law.

The provisions of this chapter and all other laws and regulations governing eligibility for membership, contributions, benefits, transfer of service time and any other aspect of the Oklahoma Police Pension and Retirement System provisions applicable to the City of Tulsa police officers shall be subject to the provisions of 11 O.S.1991, §§ 50-101, *et seq.*, as amended.

*(Ord. No. 14969)*

## CHAPTER 5. CODE CITATIONS AND ISSUANCE AUTHORITY

Section 500. Nontraffic citations.
Section 501. Jurisdiction of Municipal Court.
Section 502. Appearance date or fine.
Section 503. Time for appearance.
Section 504. Promise to appear.
Section 505. Violation of promise to appear.
Section 506. Penalty.
Section 507. City employees approved by Mayor.
Section 508. Authority to issue citations.
Section 509. Police power conferred.
Section 510. No firearms authorized.
Section 511. Police officer required.
Section 512. Uniform.
Section 513. Identification.
Section 514. Money not acceptable.
Section 515. Police Department authority not diminished.

### Section 500. Nontraffic citations.

Nontraffic code citations are hereby authorized and shall be issued on serially numbered forms approved by the Mayor and provided by the Municipal Court to any person, firm or corporation charged with violating certain penal provisions of the Revised Ordinances of the City of Tulsa.

### Section 501. Jurisdiction of Municipal Court.

Such citations shall be in the form and substance to be acceptable to invoke the full and appropriate jurisdiction of the Municipal Court and shall contain sufficient information to advise the person so charged of the offense, the title and section which is alleged to have been violated and to inform such person how the alleged violation may be contested.

### Section 502. Appearance date or fine.

At the direction of the presiding Judge of the Municipal Court, the officer issuing such citation shall place on the citation a preset fine and/or a date and time for appearance before the Municipal Court.

### Section 503. Time for appearance.

The date specified in the citation for appearance shall be at least five (5) days and not more than thirty (30) days after the alleged violation, unless the person charged demands an earlier date.

### Section 504. Promise to appear.

The person charged with the violation may give his written promise to appear in court by signing at least one (1) copy of the citation prepared by the issuing officer, in which event the officer shall deliver a copy of the citation to the person and shall not have the person charged taken into physical custody.

**Section 505. Violation of promise to appear.**

It shall be unlawful for any person to violate his written promise to appear, regardless of the disposition of the charge for which such citation is originally issued; provided, however, that appearance by counsel shall constitute compliance with a written promise to appear.

**Section 506. Penalty.**

Every person convicted of violating Section 505 herein shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Fifty Dollars ($50.00), including costs.

**Section 507. City employees approved by Mayor.**

The code citations authorized herein may be issued by any employee of the City of Tulsa, including those employees of the Tulsa City-County Health Department, who are so approved by the Mayor of the City of Tulsa.

**Section 508. Authority to issue citations.**

**A. Police officers.** Except as otherwise provided herein, the provisions of the Traffic Code and the Penal Code of the City of Tulsa and the provisions of this title (Police Department) may be enforced only by sworn, full-time officers of the Tulsa Police Department.

**B. Civilian citation officers of the Police Department.** Civilian citation officers of the Tulsa Police Department may issue citations for violations of provisions contained in Chapter 23 of Title 27 (Penal Code) of the Tulsa Revised Ordinances restricting the use of water in times of shortages.

**C. Parking investigators and parking inspectors.** Traffic citations for violations of the penal provisions of the Stopping, Standing and Parking Regulations of the Traffic Code of the City of Tulsa may be issued by those employees of the City of Tulsa classified as parking investigators or parking inspectors.

**D. Airport safety officials.** The provisions of the Traffic Code and the Penal Code of the City of Tulsa may be enforced by sworn, full-time peace officers employed by the Tulsa Airport Authority within the Safety subsection of the Airport Operations Division. These officers shall include the positions of Airport Safety Officer, Senior Airport Safety Officer, Airport Safety Supervisor and Airports/Operations Superintendent.

**E. Other designated employees.** Authority to issue citations for the purpose of enforcing other penal provisions of the Tulsa Revised Ordinances may be conferred on those City employees, including heads of departments, who are designated and approved by the Mayor.

**F. Campus Police Officers.** The provisions of the Traffic Code and the Penal Code of the City of Tulsa may be enforced by sworn Campus Police Officers if authorized by an agreement between the City of Tulsa and the Governing Board of an institution of higher education or the board of education of a public school district. The terms Campus Police Officer(s) and Governing Board as used in this subsection shall be as those terms are defined within the Oklahoma Campus Security Act (74 O.S. § 360.15 et seq., as amended).

*(Ord. Nos. 18509, 21488; Ord. No. 22314, § 1, 10-7-2010)*

### Section 509. Police power conferred.

Police power is conferred upon those designated and approved City employees, subject to the limitations herein prescribed, and they shall be code enforcement officers or officials.

### Section 510. No firearms authorized.

Such enforcement officers or officials are not authorized to carry any firearm in the performance of their duties.

### Section 511. Police officer required.

Such enforcement officers or officials are not authorized to physically subdue and take into custody any alleged violator unless accompanied by a regular police or peace officer.

### Section 512. Uniform.

Such enforcement officers or officials may wear uniforms approved and prescribed by the Mayor.

### Section 513. Identification.

Such enforcement officers or officials shall carry at all times during the performance of their duties identification of their authority as issued by the City Clerk, and shall exhibit such identification upon request when performing their duties.

### Section 514. Money not acceptable.

Such enforcement officers or officials are not authorized, under any circumstance, to accept money, cash, checks, money orders or things of value in payment of a fine.

### Section 515. Police Department authority not diminished.

Nothing contained in this chapter shall in any way detract or diminish the powers and authority of the Tulsa Police Department. Any Tulsa police officer may issue such citations or proceed as otherwise authorized by the Chief of Police.

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## CHAPTER 6. POLICE DEPARTMENT IMPREST ACCOUNT

Section 600. Creation of imprest account.
Section 601. Documentation of disbursements.
Section 602. Documentation available on file.
Section 603. Disbursement by check.
Section 604. Mayor to reconcile account.
Section 605. Recovered funds, unrecovered funds, records.

### Section 600. Creation of imprest account.

There is hereby created a Police Department Imprest Account ("Imprest Account") to be established as a separate checking account in a bank to be designated by the Treasurer of the City of Tulsa. Disbursements from the Imprest Account shall be made by the Police Department to obtain evidence for criminal investigations. The Imprest Account shall be maintained by charging the items paid out of it to the Police Department budget appropriation to obtain evidence and by the issuance of a warrant to reimburse the account.

### Section 601. Documentation of disbursements.

The Chief of Police shall document, on a form supplied by the Mayor, each disbursement made from the account and shall clearly state the purpose of such disbursement and the person or entity who will receive the funds.

### Section 602. Documentation available on file.

Such documentation shall remain in the files of the Chief of Police but shall be made available at any time for inspection and review by the City Auditor or outside independent auditors of the City, subject to the provisions of Section 605 herein.

### Section 603. Disbursement by check.

Disbursements from the Imprest Account shall be made by checks bearing the signature of any two (2) of the following: The Chief of Police, the two (2) Deputy Chiefs of Police, or the Commanding Officer of the Special Investigation Division of the Police Department.

### Section 604. Mayor to reconcile account.

The Mayor or his designee shall reconcile the Imprest Account at the end of each month and shall forward a copy of the reconciliation to the Chief of Police.

### Section 605. Recovered funds, unrecovered funds, records.

Funds disbursed from the Imprest Account to obtain evidence and thereafter recovered by the City shall be deposited and returned to the Imprest Account. If funds are not recovered, a report stating the circumstances and detailing the manner of the expenditure and the reason for nonrecovery of the funds shall be made by the Police Department and maintained in the files of the Chief of Police, and shall be available for review by the City Auditor or outside independent auditors of the City; provided, however, that the Mayor and the City Auditor must mutually agree that such investigation and review will not jeopardize or compromise an ongoing investigation, the identity of any informant or the safety of any victim, witness or police officer involved in any such criminal investigation.

*(Ord. No. 15235)*

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## CHAPTER 7. WRECKER SERVICES

Section 700. Contract required.
Section 701. Specifications for bidding.
Section 702. Equipment requirements.
Section 703. Vehicle inspection and maintenance.
Section 704. Operating rules and regulations.
Section 705. Dispatching procedure.
Section 706. Written reports.
Section 707. Driver's license.

### Section 700. Contract required.

Except as herein provided, no person shall dispatch or permit to be dispatched any wrecker he owns or controls at the request of any agent or employee of the City of Tulsa unless he has entered into a contract with the City to provide such service. No contract shall be required in cases in which the owner or operator of a vehicle not to be impounded specifically requests to have such vehicle towed by a wrecker service not having a contract with the City.

*(Ord. No. 16701)*

### Section 701. Specifications for bidding.

Specifications for bidding for contracts with the City of Tulsa shall include, but shall not be limited to, the following:

**1.** The requirement that bidders have a current Class "A" wrecker license issued by the Oklahoma Department of Public Safety;

**2.** The size, construction and location of facilities and requirements as to availability of attendants;

**3.** The kinds and amount of insurance coverage and the requirement that the City be carried as an additional insured on all policies;

**4.** The priorities for services to be accorded requests for services;

**5.** The types of records which must be furnished to the City and the times for furnishing such records;

**6.** The response time of the contractor from the time of receiving a request for service until a wrecker arrives at the scene;

**7.** The requirement that the City shall not be liable for payment of any fees for impounded vehicles;

**8.** The requirement that vehicles impounded at the request of the City shall be released at no cost to the vehicle owner when it is determined by the City that the vehicle was impounded through error; and

**9.** The requirement that the term for which each contract shall be one (1) year.

*(Ord. No. 16701)*

### Section 702. Equipment requirements.

**A.** All contractors shall clearly mark their wreckers with the name of the wrecker service on each side of the vehicle in letters not less than two (2) inches in height and one-half (½) inch in width. The color of such lettering shall contrast with the body color of the vehicle so as to be easily legible.

**B.** Every contractor shall maintain, in good operating condition and ready for use, equipment capable of rendering satisfactory wrecker service.

**C.** Each vehicle to be used as a wrecker must be designed for such purpose and shall be maintained in excellent mechanical condition.

**D.** Each vehicle to be used as a wrecker shall have at least one (1) amber rotating or flashing beacon with three hundred sixty degree (360°) visibility. In addition, each vehicle shall have an emergency flasher system capable of emitting two (2) amber lights to the front and two (2) red lights to the rear of the vehicle which shall flash simultaneously. All lighting systems shall be visible from a minimum of five hundred (500) feet.

**E.** Each vehicle to be used as a wrecker shall include the following equipment:

**1.** Two (2) "scotch" blocks or similar devices capable of adding stability to the wrecker in preparing the disabled vehicle for towing;

**2.** "Dollies" for the purpose of providing a method of towing a disabled vehicle which is otherwise incapable of being towed; or equipment capable of adequately and safely loading the disabled vehicle; provided, however, that this requirement shall not apply to the loading or transporting of disabled vehicles of ten thousand (10,000) pounds or more gross weight;

**3.** At least one easily accessible fire extinguisher with an NFPA rating of ten (10) BC or higher;

**4.** All truck warning devices required by 47 O.S.1991, § 12-407 to protect the scene of an accident during the daytime or at night;

**5.** Two (2) chains adequate for pulling or towing;

**6.** One (1) push-type broom;

**7.** One (1) axe;

**8.** One (1) shovel;

**9.** One (1) set of tire chains;

**10.** One (1) pry-bar or wrecker bar capable of prying open vehicle doors; and

**11.** One (1) "sling," "stay-bar" or other device capable of protecting a disabled vehicle while being towed or transported.

**F.** Each wrecker shall be equipped with a radio receiver and transmitter capable of communicating with the wrecker company dispatcher, and each wrecker company dispatcher shall have base station equipment capable of receiving and transmitting such communication.

*(Ord. No. 16701)*

## Section 703. Vehicle inspection and maintenance.

Prior to the use and operation of any vehicle under the provisions of this chapter, the vehicle shall be thoroughly examined and inspected by the Police Department in accordance with the rules and regulations prescribed by this chapter.

Every vehicle operating under the terms of the contract and the provisions of this chapter shall be periodically inspected by the Police Department at such intervals as shall be established by the Chief of Police to ensure the maintenance of safe operating conditions.

Upon such inspection, if it be found that the vehicle operating under the provisions of this chapter does not meet the requirements established herein, the Chief of Police shall cause the vehicle to be removed from service until such time as the vehicle has been made to comply with the requirements of this chapter.

When any vehicle has been involved in a reportable accident and is taken out of service, such vehicle shall not be put back into service until it is repaired. It is the primary responsibility of the owner to make necessary repairs before the vehicle is returned to service.

*(Ord. No. 16701)*

### Section 704. Operating rules and regulations.

**A.** Every contractor shall provide immediate service, twenty-four (24) hours per day, each and every day of the week.

**B.** Every call for a wrecker shall be answered promptly. In the event a driver will be delayed more than twenty (20) minutes from the time of dispatch to arrival at the scene, the driver shall notify his dispatcher who, in turn, shall contact the police dispatcher for further instruction or directions.

**C.** Every contractor shall have available for immediate service, at least one (1) wrecker driver on duty between the hours of 7:00 p.m. and 7:00 a.m. daily, and one (1) dispatcher and three (3) wrecker drivers on duty between the hours of 7:00 a.m. and 7:00 p.m. daily.

**D.** Except as otherwise provided by terms of contract, every contractor shall have a minimum of four (4) wreckers and four (4) drivers. Each such wrecker shall meet all requirements of this chapter.

**E.** The contractor shall not accept a call from the Police Department unless a wrecker and driver are immediately available for dispatch at the time such call is received.

**F.** Each wrecker driver dispatched to the scene of an accident shall be responsible for clearing from the street all debris existing as a result of the accident.

**G.** The steering wheel of all towed vehicles shall be secured with a tie-down before towing.

**H.** An inventory of all visible personal possessions or equipment in each towed vehicle shall be prepared by the wrecker driver before the vehicle is removed, and such inventory shall be verified by the signature of the police officer at the scene. Any erasures on such inventory shall be initialed by both the wrecker driver and the police officer.

**I.** No contractor shall maintain more than his originally authorized business location without prior approval by the City.

*(Ord. No. 16701)*

### Section 705. Dispatching procedure.

**A.** In the event the wrecker service called is unable to provide immediate service, the police dispatcher shall be advised of the reason therefor and the nearest wrecker service shall be called.

**B.** No wrecker service shall proceed to the scene of an accident until and unless it has been directed to do so by the police dispatcher or owner of the vehicle.

**C.** When the contractor receives a call from the police dispatcher, he shall indicate whether or not a wrecker and driver are immediately available for dispatch. If such wrecker or driver is not immediately available, the contractor shall so notify the police dispatcher at the time of receiving the request.

**D.** If a contractor discovers that he is not properly equipped or capable of performing the service required at the scene, he shall immediately notify the police dispatcher for additional instructions or directions.

*(Ord. No. 16701)*

### Section 706. Written reports.

The contractor shall keep records in which he shall log each police call received, the time such call was received, the time the wrecker reached the scene and the time the wrecker returned. Such records shall be kept on a daily basis and shall be open to inspection by the Police Department or the Mayor upon request. A written report shall be made to the Chief of Police:

**1.** Upon refusal to accept a call because of equipment failure or the lack of available driver;

**2.** When there has been an unusual delay in arriving at the scene of a police call;

**3.** When there has been damage or alleged damage to the towed vehicle caused by the wrecker or driver; or

**4.** When there has been loss or alleged loss of personal property or equipment from the towed vehicle during the time it was in possession of the wrecker company or its employees.

These reports shall be made within five (5) working days of the event and shall contain all information pertinent to the event.

*(Ord. No. 16701)*

### Section 707. Driver's license.

No person shall drive or be permitted to drive, upon the streets of the City, a wrecker car or truck regulated by this chapter unless the person shall have a current, valid driver's license issued by the state of Oklahoma.

*(Ord. No. 16701)*

## CHAPTER 8. FORFEITED PROCEEDS AND PROPERTIES FUND

Section 800. Creation of fund.
Section 801. Uses of funds.

### Section 800. Creation of fund.

There is hereby established a special fund to be known as the Police Department Forfeited Proceeds and Properties Fund of the City of Tulsa, Oklahoma ("the Fund"). All cash proceeds received by the City from forfeited proceeds and properties from the federal government, together with all income derived from the investment of such funds, shall be deposited into the Fund and used only for the purposes and under the conditions herein established.

### Section 801. Uses of funds.

The Fund shall be used and expended by the City of Tulsa only for law enforcement and drug education purposes and in the manner described herein:

**A.** The actual use of forfeited funds must comport with the specified intended use of the property as detailed in the City's Application for the Transfer of Federally Forfeited Property.

**B.** The result in the use of such funds shall be an overall increase in law enforcement resources of the City. Such funds may be used only to supplement the Police Department Budget and never to supplant any portion of it.

**C.** Such funds shall not be used for drug education purposes, unless the Tulsa Police Department shall be a sponsor or participant in the program and shall be actively involved in the program by the presence of law enforcement personnel.

**D.** Such funds may be used by the City to obtain "buy money," overtime salaries and other resources necessary for effective law enforcement.

**E.** Such funds shall not be used for salary purposes, except for overtime as provided herein.

*(Ord. No. 16712)*

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# CHAPTER 9. TULSA NINE-ONE-ONE EMERGENCY NUMBER (REPEALED)*

*NOTE: This chapter was repealed effective April 16, 2009. Provisions now appear in Title 8-A, Chapter 1.

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## CHAPTER 10. CONTRACTS WITH OTHER MUNICIPALITIES

Section 1000. Contracts authorized.
Section 1001. Fees.

### Section 1000. Contracts authorized.

The City of Tulsa is authorized and empowered to enter into contracts with any municipality or county or with the Oklahoma Highway Patrol for the purposes of furnishing police personnel and equipment in accordance with the statutes of the state of Oklahoma.

*(Ord. No. 17070)*

### Section 1001. Fees.

Any contract entered into by the City of Tulsa with another municipality shall provide for the payment by the municipality of a fee to the City of Tulsa as follows:

**A.** For the attendance of two (2) police officers and a supervisor, a fee computed at the rate of One Hundred Dollars ($100.00) per hour or any part thereof; and

**B.** For each additional unit required, a fee computed at the rate of Fifty Dollars ($50.00) per hour or any part thereof.

The total amount earned by the attendance of police units pursuant to this chapter shall be paid to the Finance Department, which sum shall be credited to the general fund of the City of Tulsa.

*(Ord. No. 17070)*

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# TITLE 29-A DEPARTMENT OF EQUIPMENT MANAGEMENT

## Chapter 1. Organization and Duties

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## CHAPTER 1. ORGANIZATION AND DUTIES

Section 100. Department of Equipment Management.
Section 101. Director of Equipment Management.
Section 102. Duties of Department.

### Section 100. Department of Equipment Management.

The Department of Equipment Management shall be under the control and supervision of the Mayor. The Department of Equipment Management shall consist of a Director of Equipment Management and such other employees as shall be necessary to perform the duties of the Department.

### Section 101. Director of Equipment Management.

The Director of Equipment Management and all other employees of the Department of Equipment Management shall be appointed by the Mayor, subject to the provision of the Charter of the City of Tulsa.

### Section 102. Duties of Department.

**A.** The Department of Equipment Management is empowered to maintain and repair all vehicles and to provide general maintenance of equipment owned and operated by the City of Tulsa except vehicles and equipment operated by the Tulsa Airport Authority and certain equipment specifically designated by the Parks and Recreation Department.

**B.** The Department of Equipment Management is authorized to keep and dispense such fuel and oil as is necessary to operate vehicles and equipment covered by this chapter and shall keep an accurate daily record of all such fuel and oil dispensed, noting the description or number of vehicles to which fuel or oil is delivered and the amount thereof.

**C.** The Department of Equipment Management is authorized to keep and maintain an adequate inventory and to purchase and use any and all parts, materials, paint or equipment necessary to the repair and maintenance of vehicles or equipment covered herein.

**D.** The Department of Equipment Management is directed to keep current and accurate records of all parts, materials, paint or equipment purchased, used or stored for future use for the repair and maintenance of vehicles. Such records shall include a description of each such item, the date of purchase, the date used and the identification of the vehicle on which such item was used.

**E.** The Department of Equipment Management is authorized to develop and administer all phases of a comprehensive program of equipment management.

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# TITLE 30 PUBLIC PROPERTY - RECORDS (REPEALED)*

*__Note—__This title was repealed effective May 8, 1990. Remaining provisions appear in Title 3.

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# TITLE 31 PURCHASING (REPEALED)*

*__Note—__This title was repealed effective May 8, 1990. Remaining provisions appear in Titles 5 and 6.

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# TITLE 32 SOLID WASTE (REPEALED)*

*__Note—__This title was repealed effective May 8, 1990. Remaining provisions appear in Title 11-B.

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# TITLE 33 GENERAL PROVISIONS

## Chapter 1. General Provisions

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## CHAPTER 1. GENERAL PROVISIONS

Section 100. How ordinances designated and cited.
Section 101. Definitions and rules of construction.
Section 102. Reference conflicts.
Section 103. Effect of repeals.
Section 104. Severability.
Section 105. Prior offenses, rights.
Section 106. Exclusion of special or temporary ordinances.
Section 107. Limitations of actions.

### Section 100. How ordinances designated and cited.

The ordinances embraced in this, the preceding and the following titles shall constitute and be designated as the "Tulsa Revised Ordinances" ("TRO") and may be cited as such.

### Section 101. Definitions and rules of construction.

In the construction of the Tulsa Revised Ordinances, the following rules of construction and definitions shall be observed, unless such construction or definition would be inconsistent with the manifest intent of the Council, be repugnant to the context of the provisions or the context clearly requires otherwise:

**A. Charter, Amended Charter or Revised Charter.** When the terms "Charter," "Amended Charter," "Revised Charter" or words of similar import are used in the Tulsa Revised Ordinances, such terms shall be deemed to refer to the Charter of the City of Tulsa, Oklahoma.

**B. City.** The words "the City," or "this City" shall be construed to mean the City of Tulsa, Oklahoma.

**C. City-County Health Department** shall mean the City-County Health Department created by agreement between the City and Tulsa County pursuant to the provisions of 63 O.S.1991, § 1-214, as amended.

**D. Council, City Council** or words of similar import shall mean the Council of the City of Tulsa, Oklahoma.

**E. Delegation of authority.** Whenever any authority, duty or other activity is charged to a City department or division, or to a City officer or employee, it may be done as well by another department, division, officer, or employee designated by the Mayor, so long as not prohibited by ordinance, Charter or the laws or Constitution of the state.

**F. Gender.** Every word importing the masculine gender shall extend to and be applied to the feminine gender and to the neuter gender.

**G. Joint authority.** Words giving a joint authority to three (3) or more public officers or other persons shall be construed as giving such authority to a majority of them, unless clearly expressed otherwise.

**H. May.** The word "may" is permissive.

**I. Mayor** shall mean the Mayor of the City of Tulsa, Oklahoma, or his designated representative.

**J. Nontechnical and technical words.** Unless a contrary intention plainly appears, words and phrases shall be construed according to the common and approved usage of

the language; but technical words and phrases and such others as may have acquired a peculiar and appropriate meaning in law shall be construed and understood according to such meaning.

**K. Number.** Words used in the singular number shall include the plural, and the plural the singular.

**L. Oath.** The word "oath" shall include an affirmation or declaration in all cases in which, by law, an affirmation may be substituted for an oath, and in those cases the words "swear" and "sworn" shall be the equivalent to the words "affirm" and "affirmed."

**M. Officers, departments, commissions, etc.** Whenever any officer, department, board or commission is referred to by title only, such reference shall be construed as if followed by the words "of the City of Tulsa, Oklahoma."

**N. Oklahoma statutes.** All references to the Oklahoma statutes in the Tulsa Revised Ordinances shall be deemed to refer to the latest edition of such statutes, as amended from time to time.

**O. Ordinance** shall mean an ordinance of the City of Tulsa.

**P. Person** shall include persons, firms, corporations, partnerships, associations, joint stock companies or their agents, servants and employees when acting for the principal or master respectively.

**Q. Preceding and following** shall mean next before and next after, respectively.

**R. Property** shall include real and person property.

**S. Shall.** The word "shall" is mandatory.

**T. Sidewalk,** unless otherwise defined, shall mean the paved portion of a street right-of-way between the curb line and the adjacent property intended for the use of pedestrians.

**U. Singular and plural.** Words in the plural include the singular, and words in the singular include the plural.

**V. State.** The words "the state" or "this state" shall be construed to mean the state of Oklahoma.

**W. Street** shall include any dedicated roads, highways, avenues and alleys within the City.

**X. Tenant and occupant,** when applied to a building or land, shall include any person who occupies the whole or part of such building or land, whether alone or with others.

**Y. Tense.** Words used in the present tense include future time as well as present time unless a contrary intention plainly appears.

**Z. Title or position of officer or office.** Whenever the title or position of any officer or name of any office is used herein, it shall refer to such office or title of officer of the City of Tulsa, Oklahoma.

**AA. Week,** unless otherwise provided by state law, shall be construed to mean seven (7) days. Publication in a newspaper of any notice or other matter indicated to be for a stated number of weeks shall be construed to mean one (1) insertion each week, unless specifically stated to be for each day of the week or for more than one day in each week; all publications heretofore made in accordance with the terms of this sentence are hereby validated.

**BB. Writing or written** shall include any representation of words, letters or figures, whether by printing or otherwise.

**CC. Year** shall mean a calendar year.

*(Ord. No. 25232, § 1, 1-24-2024)*

**Section 102. Reference conflicts.**

**A.** All references to titles, chapters, sections or paragraphs are to the titles, chapters, sections and paragraphs of the Tulsa Revised Ordinances unless otherwise provided.

**B.** If the provisions of different titles, chapters or sections of the Tulsa Revised Ordinances conflict with or contravene each other, the provisions of each title, chapter or section shall prevail as to all matters and questions growing out of the subject matter of that title, chapter or section.

**Section 103. Effect of repeals.**

When any ordinance repealing any other ordinance, or part thereof, shall itself be repealed, that repeal shall not be construed to revive the former ordinance, or part thereof, unless it shall expressly so provide.

**Section 104. Severability.**

If any part of any section of the Tulsa Revised Ordinances or any rule, regulation or requirement therein contained, shall be held to be invalid by a court of competent jurisdiction, such invalidity shall not affect the validity of any other part, or section thereof, or other rule, regulation or requirement.

**Section 105. Prior offenses, rights.**

**A.** Nothing in the Tulsa Revised Ordinances or the ordinance adopting the same shall affect any offense or act committed or done, or any penalty or forfeiture incurred, or any contract or right established or accruing before the effective date of the Tulsa Revised Ordinances.

**B.** The adoption of the Tulsa Revised Ordinances shall not be interpreted as authorizing or permitting any use or the continuance of any use of a structure or premises in violation of any ordinance of the City in effect on the date of adoption of the Tulsa Revised Ordinances.

**Section 106. Exclusion of special or temporary ordinances.**

Ordinances hereafter adopted which are not of a general or permanent nature shall be numbered consecutively, authenticated, published and recorded in the book of ordinances, but shall not be prepared for insertion in the Tulsa Revised Ordinances, nor be deemed a part hereof.

**Section 107. Limitations of actions.**

**A.** A crime, or public offense, is an act or omission forbidden by law, and to which is annexed, upon conviction, either imprisonment or fine as punishment.

**B.** Prosecutions for any crime or public offense under the provisions of any ordinance of the City of Tulsa shall be commenced within three (3) years after its commission or omission, or in cases involving fraud, deception or deceit, prosecutions shall be commenced within three (3) years after the discovery of the crime.

*(Ord. No. 17471)*

# TITLE 34 SCHOOL BOARD (REPEALED)*

*__Note—__All provisions repealed by Ordinance No. 12482, enacted May 16, 1972.

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# TITLE 35 INFRASTRUCTURE DEVELOPMENT*

**Chapter 1. General Provisions**
**Chapter 2. Infrastructure Development Permits**
**Chapter 3. IDP Major or Minor Construction Process**
**Chapter 4. Rights-of-Way Minor Construction Process**
**Chapter 5. Rights-of-Way Temporary Use Permit**
**Chapter 6. Familiar Rights-of-Way Activities**
**Chapter 7. Penalty**
**Chapter 8. Infrastructure and Development Advisory Board**
**Chapter 9. Permit Fees and Escrow Accounts**
**Chapter 10. Permit Required to Use Natural Gas Pipeline**

***Editor's note—**Ord. No. 21988, § 1, adopted January 16, 2009, repealed former Title 35, Streets and Sidewalks. Section 2 of said ordinance enacted provisions designated as a new Title 35 to read as herein set out. Ord. No. 22845, § 1, adopted March 14, 2013, amended Title 35, in its entirety, to read as herein set out. See also the Code Comparative Table for a detailed analysis of inclusion.

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## CHAPTER 1. GENERAL PROVISIONS

Section 100. Scope.
Section 101. Application and manual.

### Section 100. Scope.

**A.** Infrastructure development for the City of Tulsa shall include the following: construction, reconstruction, replacement or alteration of any street, alley, curb, gutter, ditch, drainageway, channel, detention facility, storm or sanitary sewer, water main or other similar private or public improvement or appurtenances thereto, any of which is located or is to be located on real property owned in fee simple by the City of Tulsa or upon easements or rights-of-way owned or to be owned or otherwise controlled by the City of Tulsa.

**B.** Infrastructure development as defined above shall not include any such work designed and/or constructed by the City of Tulsa.

*(Ord. No. 22845, § 1, 3-14-2013)*

### Section 101. Application and manual.

**A.** Any person who engages in work related to or intended to facilitate infrastructure development in the City of Tulsa shall do so in accordance with all applicable federal, state and city laws.

**B.** Policies and procedures for infrastructure development in the City of Tulsa can be found in the most current edition of the Infrastructure Development Manual (IDM), three (3) copies of which shall be kept on file in the Office of the City Clerk of the City of Tulsa, Oklahoma. Any deviation or exception to the standards as called for in the IDM shall be approved by the director or his designee.

*(Ord. No. 22845, § 1, 3-14-2013)*

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## CHAPTER 2. INFRASTRUCTURE DEVELOPMENT PERMITS

Section 200. Definitions.
Section 201. Permit categories.
Section 202. Contracts, bonds and insurance.
Section 203. Infrastructure development construction standards.
Section 204. Permit required.
Section 205. Application.
Section 206. Duration and revocation of permits.
Section 207. Remedies.
Section 208. Acceptance.

### Section 200. Definitions.

As used in this title, the following terms, phrases and words shall have the definitions ascribed below, unless expressly stated otherwise:

**Applicant** shall mean any person, firm, corporation or political subdivision (as defined herein) desiring to construct, reconstruct, replace or alter any street, alley, curb, gutter, ditch, drainage way, channel, detention facility, storm or sanitary sewers and water mains or other similar private or public improvement or appurtenances thereto, any of which is located or is to be located on real property owned in fee simple by the City of Tulsa or upon easements or rights-of-way owned or to be owned or otherwise controlled by the City of Tulsa.

**Arterial streets** shall mean the vehicle traffic lanes under the control and maintenance jurisdiction of the City of Tulsa, including the easements and rights-of-way on each side thereof, on freeways; parkways; special traffic ways; and primary, secondary and urban arterial streets, all as defined and established by the adopted and currently effective Tulsa City-County Major Street and Highway Plan. The term shall also apply and have reference to the street system within Tulsa's Central Business District, as defined in the City of Tulsa's adopted Comprehensive Plan, and more particularly described as the street network bounded on the east by the east leg of the inner dispersal loop (U.S. 75), the west by I-244, north by 1-244, and on the South by the Broken Arrow Expressway (S.H. 51).

**City** shall mean the City of Tulsa, Oklahoma.

**Contractor** shall mean the person, firm or corporation engaged in any aspect of construction related to infrastructure development.

**Developer** shall mean the owner, or agent of the owner, of the subject land having the right to arrange construction related to infrastructure development.

**Developer's contract** shall mean the agreement between the developer, the Tulsa Metropolitan Utility Authority and the City of Tulsa providing for the developer's duties, prior to commencement of work related to infrastructure development.

**Director** shall mean the Director of Planning and Economic Development, Engineering Services, Water and Sewer or Streets and Stormwater or his/her designee, as appropriate.

**Engineer's annual contract** shall mean a contract between the City of Tulsa and a consulting engineer employed by the developer for the design of infrastructure develop-

ment. It shall require the production of project plans, profiles and specifications approved by the City which are in accordance with the specifications generally applicable to City of Tulsa public improvement at the time the permit is issued.

**Formal acceptance** shall mean the official approval of the infrastructure development which shall occur after final inspection and the formal filing in the Tulsa County Clerk's Office of a document executed by the Mayor which acknowledges acceptance of the infrastructure development by the City.

**Infrastructure Development Process (IDP)** shall mean the construction, reconstruction, replacement or alteration of any street, alley, curb, gutter, ditch, drainage way, channel, detention facility, storm sewer or other similar private or public works thereto, including sedimentation and erosion control measures, or sanitary sewers and water mains, any of which is located or is to be located upon land owned in fee simple by the City of Tulsa or upon easements or rights-of-way owned or to be owned or controlled by the City of Tulsa.

**Non-arterial street** shall mean any street that does not meet the definition of arterial street.

**Permit** shall mean the grant, on an appropriate form provided and signed by the director, for permission to perform a specific task.

**Political subdivision** shall mean any political subdivision of the state of Oklahoma, including but not limited to a municipality, school district, county or public trust with a city, town, school district or county as its sole beneficiary or beneficiaries, and all their institutions, instrumentalities or agencies.

**Street right-of-way related project** shall mean construction for the purpose of developing infrastructure that is to be owned or regulated by the City of Tulsa. This phrase shall not include connections for private property purposes only, performed in the right-of-way by trade workers (tradesmen) licensed and bonded by the state.

**Substantial Completion** shall mean the status of an infrastructure development project which has been inspected by the City of Tulsa and found to be complete for all intended purposes. Such status authorizes the immediate public use by the City of Tulsa of the infrastructure for that which it is designed.

**TMUA** shall mean the Tulsa Metropolitan Utility Authority, a public trust.

**Trade workers (tradesmen)** shall mean mechanical contractors, plumbing contractors and others as determined by the Director of Planning and Economic Development, who are licensed by the state of Oklahoma, bonded by the state, and registered with the City of Tulsa.

*(Ord. No. 22845, § 1, 3-14-2013)*

### Section 201. Permit categories.

Permits required to engage in infrastructure development in the City of Tulsa are classified into four (4) separate categories, as follows:

**A. IDP Major Construction Permit.** This category shall include all construction that must be designed by a licensed professional engineer, including but not limited to water mains, sanitary sewers, storm sewers, storm drainage, street construction and other such engineering projects, or as may be required by the director.

**B. IDP Minor Construction Permit.** This category shall include any singular area of construction that may consist of a site plan showing the minor construction that is compliant with City of Tulsa Engineering specifications and standard details by a contractor, developer or engineer and/or designed by a licensed professional engineer, limited to one of the following areas: water mains, sanitary sewers, storm sewers and other such engineering projects, or as may be required by the director.

**C. Rights-of-Way Minor Construction Permit.** This category shall include any project that can be constructed using standard plans and specifications as outlined by City of Tulsa standards and does not require certification by a licensed professional engineer unless required by Title 11, Chapter 12, Tulsa Revised Ordinances. Bonding limits under this category shall depend on whether construction occurs in arterial streets or non-arterial streets. This section shall not apply to "Rights-of-Way Occupants" and their contractor's as defined in Title 11, Chapter 12, Tulsa Revised Ordinances.

**D. Rights-of-Way Temporary Use Permit.** This category shall include the use of streets for temporary activity, including the placement of equipment or temporary construction accessory buildings supporting construction activity in the rights-of-way, but not including special events permits.

*(Ord. No. 22845, § 1, 3-14-2013; Ord. No. 25606, § 1, 6-18-2025)*

## Section 202. Contracts, bonds and insurance.

**A. Developer's contract.** Prior to commencement of infrastructure development work, the developer shall execute a developer's contract, in the form required by the City, which shall require the following:

**1.** The hiring of an engineer currently under annual contract with City to design and oversee construction through completion of the project and its formal acceptance by City.

**2.** The construction of the water system, sanitary sewer, storm drains, streets and all other infrastructure development as required by and in accordance with the engineer's design and in compliance with City standards utilizing construction contractors currently under annual contract with City.

**3.** The maintenance of an escrow account with City to pay for laboratory testing, inspecting, Oklahoma Department of Environmental Quality fees, connection costs and other fees.

**4.** All documentation for floodplain management (i.e., conditional letters of map revision [CLOMR] and letters of map revision [LOMR]), required by the Federal Emergency Management Agency (FEMA) must be properly completed and submitted in a timely manner through the City to FEMA for approval.

**5.** That the developer remain responsible and accountable for all requirements until formal acceptance of the IDP project by City. Formal acceptance by City shall not occur until all infrastructure construction is complete, final inspection, delivery to City of all the record drawings, receipt from developer of certification that there are no liens against the project and the issuance and recording in the office of the Tulsa County Clerk of formal acceptance of the IDP project.

**6.** That the developer, if appropriate, shall enter into an additional contract to construct oversized water mains as directed by the City to accommodate future development outside the area covered by the subject project for which the developer will be reimbursed according to the provisions of the contract.

**7.** That the developer, if appropriate, shall enter into an additional contract to construct oversized sanitary sewer mains as directed by the City to accommodate future development outside the area covered by the subject project for which the developer will be reimbursed according to the provisions of the contract.

**8.** That before the IDP Major or Minor project will be formally accepted by the City, the developer shall cause to be delivered to the City all record drawings, in condition deemed acceptable to the City, which demonstrate the actual construction and written certification that there are no liens on the property or infrastructure being transferred to the City.

**9.** That the developer shall identify for the City a construction coordinator who will serve for the duration of the project.

**10.** That City is granted access to the infrastructure for operation and maintenance following substantial completion through formal acceptance of the project.

**11.** That the developer shall obtain all required zoning, platting, rights-of-way and easements as may be required for the project.

**B. Contractor's annual construction contract, bonds and insurance.** Any contractor desiring to participate in infrastructure development must execute an annual contractor's contract in the form required by the City prior to commencement of such work which shall provide the following:

**1. Requirements:**

**a.** That contractor shall:

(1) Furnish all tools, equipment, supplies, superintendence, transportation and other construction accessories, services and facilities;

(2) Furnish all materials, supplies and equipment specified and required to be incorporated in, and to form a permanent part of, the completed work; and

(3) Provide all such materials and perform all labor in a good, substantial and workmanlike manner, all in accordance with the requirements, stipulations, provisions and conditions of the contract documents for the construction of a specific infrastructure development project within City.

**b.** That prior to the commencement of work, the contractor shall post bonds and insurance as required by ordinance and applicable law.

**c.** That contractor shall rely upon the owner or developer who engages contractor for full payment of contractor's charges and not expect compensation of any nature from the City of Tulsa.

**2. Term.** Each annual contractor's contract shall have a twelve-month term, provided that it may be renewed or replaced on the anniversary date for successive twelve-month intervals, provided contractor is in compliance with then existing City requirements. Contractors that do not consistently perform in a timely manner and/or the quality of work is not satisfactory as determined by the City may have their application for a new annual contract rejected.

**3. Bonds and insurance.**

**a. Bonds:** As a condition to the execution of a contractor's annual contract, the contractor shall file with the City insurance and a bond which combines the obligations of traditional performance bonds, payment bonds (statutory labor

and materialmen payment) and maintenance bonds, in forms acceptable to City, executed by a surety acceptable to City and authorized to do business in the state of Oklahoma, providing as described hereafter that:

(1) The City and property owner shall be held harmless from any costs, damages or expenses of any kind and from any liability which may be imposed by law or for which the City or property owner may become liable or may pay by reason of any loss sustained by any person because of any act or omission by the contractor in the construction of infrastructure development or in providing proper safeguards for the public during such construction;

(2) For a period of one (1) year after the acceptance of the work by the City, contractor shall, in the manner prescribed by the director, repair any breaks or defects arising from defective construction or materials and shall repair any damage;

(3) Upon completion of construction, should any work not be approved by the director, it shall be reconstructed by the contractor within ten (10) days after receipt of written notice from the director and the contractor shall pay for any damages arising from the repairs;

(4) The contractor shall pay all indebtedness incurred for labor or materials furnished in the construction or repair of any infrastructure development in the City, and any person to whom there is due any moneys for furnishing labor or materials upon such work shall have a right of action against the principal and his surety as prescribed in 61 O.S. § 2;

(5) If the contractor's permit involves arterial streets, the amount of the bond shall be Two Hundred Fifty Thousand Dollars ($250,000.00); if the permit is for non-arterial street work, the amount shall be One Hundred Thousand Dollars ($100,000.00); and

(6) If the bond is for IDP major construction, the contractor shall file an additional maintenance bond in a sum equal to one hundred percent (100%) of the estimated cost of the project, naming the City and the developer or property owner, as appropriate, as the obligees and guaranteeing all work and materials for a period of two (2) years from and after substantial completion.

**b. Insurance:** All required insurance coverage shall be submitted by the contractor prior to execution of an annual contract. Coverage shall be written by a solvent company acceptable to the City and authorized to do business in the state of Oklahoma. The following coverages shall be required:

(1) **Workers' compensation insurance.** As prescribed by the laws of the state of Oklahoma, the contractor shall provide and require the subcontractor to similarly provide workers' compensation insurance for all employees, unless such employees are covered by the protection afforded by the permittee's insurance coverage.

(2) **Public liability insurance.** The contractor shall procure and maintain during the duration of any permit or any extension thereof contractor's public liability insurance in an amount not less than One Hundred

Seventy-Five Thousand Dollars ($175,000.00) for injuries (including accidental death) sustained by any one (1) person in a single accident or occurrence, and in an amount not less than One Million Dollars ($1,000,000.00) for injuries sustained by two (2) or more persons in a single accident or occurrence and contractor's property damage insurance in an amount not less than One Hundred Thousand Dollars ($100,000.00).

(3) **Owner's protection liability insurance.** The contractor shall also furnish an owner's protective liability policy in the amounts specified in paragraph 202.B.3.b(2), above, with the City of Tulsa as the named insured, issued by the same insurance company as the contractor's liability carrier, protecting the City of Tulsa against any and all actions, claims, judgments or demands arising out of or on account of injuries of whatever kind and character sustained by any person or persons on account of the construction of such work as may be performed by the contractor pursuant to the permit issued by the director. An exception to the "same insurance company" may be made only if both the owner's protective liability policy and the contractor's public liability policy are endorsed with "Waiver of Transfer of Rights of Recovery Against Others to Us," or equivalent, endorsements. Waiver under the contractor's public liability policy shall be in favor of the City and waiver under the owner's protective liability policy shall be in favor of the contractor.

(4) **Insurance certificates.** The contractor shall furnish the City an original and a duplicate certificate of insurance which shall indicate the types of insurance carried and the amounts of coverage. The contractor shall also provide the City with two (2) copies of the policy of insurance issued by the contractor's insurance carrier.

(5) **Notice of cancellation.** All insurance policies and certificates shall contain clauses stating that the policies cannot be canceled by the insurer without the insurer's giving the City thirty (30) days' prior written notice of cancellation. Cancellation of a required insurance policy shall automatically revoke any permit and all work by the permittee shall thereupon immediately terminate.

**C. Engineer's annual contract and insurance.** Any engineer designing facilities under the infrastructure development process must execute an annual contract in the form required by the City.

**1. Requirements:**

**a.** The engineer shall, in conformity with City of Tulsa design criteria, prepare project plans, specifications and other engineering documents as may be necessary for the proper construction of the project(s), including but not limited to, preparation and documentation of record drawings, and shall perform construction oversight of the project improvements as they are constructed by the owner and the owner's construction contractor(s) until final acceptance by the City. The City of Tulsa Standard Specifications for Engineering Services shall be attached, incorporated by reference, and made a part of this contract.

**b.** The City shall review and approve acceptable project plans, specifications and other engineering documents for the construction of each project prepared and submitted by the engineer to the director.

**c.** The engineer shall compensate the City for reviewing and approving project plans and specifications in accordance with the fee schedule established in Title 49, Tulsa Revised Ordinances. Fees shall be due and payable upon presentation of acceptable plans and specifications for each project for review by the City.

**d.** The engineer must be a Licensed Professional Engineer in the state of Oklahoma at the time of execution of the contract. If the engineer ceases to be a Licensed Professional Engineer prior to full performance of the terms and conditions of the contract; the engineer shall immediately cease work and notify the City.

**e.** The engineer shall maintain professional liability insurance in limits of not less than One Hundred Thousand Dollars ($100,000.00), and such insurance shall remain in continuous force and effect for a period of not less than three (3) years from and after final acceptance of each project.

**2. Term.** Each annual engineer contract shall have a twelve-month term provided that it may be renewed or replaced on the anniversary date for successive twelve-month intervals, provided engineer is in compliance with then existing City requirements.

*(Ord. No. 22845, § 1, 3-14-2013; Ord. No. 25606, § 2, 6-18-2025)*

### Section 203. Infrastructure development construction standards.

**A.** All infrastructure development constructed under authority of a permit issued by the City pursuant to the provisions of this chapter shall be constructed in strict accordance with the project plans, profiles and specifications approved by the director, and in accordance with the specifications generally applicable to City of Tulsa infrastructure development construction contracts at the time the permit is issued. These project plans, profiles and specifications shall be contained in a contract between the City of Tulsa and the developer. When work not specified in the contract is necessary, whether as a result of plan deficiencies or of encountering unforeseen site conditions, the developer or his agent shall submit proposed changes to the contract for review by the director; and, if the director approves the changes, they shall be submitted to the Mayor for approval. Upon receipt of these approvals, the developer shall construct the improvements in accordance with the modified contract.

**B.** In no event shall work commence until all required documentation, bonds and insurance are submitted to and approved by the City.

*(Ord. No. 22845, § 1, 3-14-2013)*

### Section 204. Permit required.

Any applicant desiring to construct, reconstruct, replace or alter any street, alley, curb, gutter, ditch, drainage way, channel, detention facility, storm sewer, sanitary sewer and water main, or other similar private or public improvement or appurtenances thereto, any

of which is located or is to be located upon real property owned in fee simple by the City of Tulsa, or upon easements or rights-of-way owned or to be owned or otherwise controlled by the City of Tulsa, shall first obtain a permit authorizing such work.

*(Ord. No. 22845, § 1, 3-14-2013)*

### Section 205. Application.

Any applicant seeking a permit under this chapter shall make written application which shall contain the name and address of the applicant and a description of the nature, location and the estimated total cost and the number of calendar days required for completion of the work. In addition, the applicant shall provide the name and address of the owner or developer, a signed and executed developer's contract between the developer and the City, if otherwise required herein, together with any other relevant information requested by the City. The application shall be signed by the applicant or his agent or officer.

*(Ord. No. 22845, § 1, 3-14-2013)*

### Section 206. Duration and revocation of permits.

**A.** Permits shall continue in effect until substantial completion of the IDP Major or Minor Construction project or until suspended, revoked or terminated in accordance with this title. If the work authorized by the permit has been inactive for six (6) consecutive months, the permit shall be deemed canceled and no further work shall be authorized; provided that should the permittee for good cause shown fail to complete the improvement within the time specified, the permittee may apply in writing for an extension of the permit for such additional time as may be reasonably necessary to complete the work. Any application for an extension of time in which to complete the work authorized by the original permit shall be accompanied by properly executed documents required for issuance of the original permit, affirmatively indicating the surety's and the financial institution's acceptance of an extension of time for the completion of the work by the permittee. Before any permit authorizing any additional time beyond the time authorized in the original permit is issued, the applicant shall pay a fee equal to the fee required for an original permit of equal duration.

**B.** Upon determination by the director that cause exists to revoke the permit, e.g., deficient design, unacceptable workmanship, defective materials or such other uncorrected deficiencies, the permit shall be revoked. Any person aggrieved may appeal the revocation to the appropriate board as provided in this chapter.

*(Ord. No. 22845, § 1, 3-14-2013; Ord. No. 25606, § 3, 6-18-2025)*

### Section 207. Remedies.

Should the applicant, its surety or financial institution fail or refuse to complete the improvements authorized pursuant to a permit issued under the provisions of this chapter, or fail to repair or replace any defective materials or work incorporated in the improvements during the period of the maintenance bond covering the same, the City may at its election immediately institute legal proceedings against the permittee and its surety or financial institution to recover the estimated cost of completing, repairing or replacing such

improvements. In the alternative, the City may complete, repair or replace the improvements and then institute legal proceedings to recover the cost from the permittee and its surety or financial institution.

*(Ord. No. 22845, § 1, 3-14-2013)*

**Section 208. Acceptance.**

It shall be the duty of the director to determine when the work on an authorized public improvement is completed and to recommend its acceptance to the Mayor. No work or any portion of the work shall be considered finally accepted until it is completed and formally accepted by the City after the final inspection is made by the director. Failure or neglect on the part of the director, or any other agent or employee of the City, to condemn or reject inferior work or material shall not be construed to imply acceptance of any such work or materials if such inferior work or material may become evident at any time prior to final acceptance of the City or prior to the expiration of the maintenance bond thereon.

*(Ord. No. 22845, § 1, 3-14-2013)*

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## CHAPTER 3. IDP MAJOR OR MINOR CONSTRUCTION PROCESS

Section 300. Definition—Scope and permit.

### Section 300. Definition—Scope and permit.

**A. Infrastructure development process.** The development process contemplated herein, which shall include but not be limited to such activities as business parks, retail stores, manufacturing facilities, infrastructure construction or residential development and other similar projects, all of which require designs by a licensed professional engineer, shall require an IDP Major or Minor Construction permit. Integral to the completion of such projects are activities related to stormwater drainage, sanitary sewer, water main extensions, easements and rights-of-way, traffic and transportation and others. This process shall include the following stages:

**1.** A pre-development conference at the initiation of the project, which is optional.

**2.** Zoning and platting, which shall be conducted in compliance with the City Zoning Code and Subdivision Regulations.

**3.** Completion of the infrastructure development process, which shall include a developer's contract, engineer's and contractor's annual contracts, project design by a licensed professional engineer, plan review and approval by the City of Tulsa and issuance of permits for site development and building construction.

**4.** The construction process, which shall consist of a pre-work conference, construction of the infrastructure, inspection and testing, substantial completion certification by the City of Tulsa, maintenance period and formal acceptance by the City of Tulsa.

**B. Permit.** An IDP Major or Minor Construction permit shall be issued to the applicant only after:

**1.** Approval of the application;

**2.** Execution and submission of the engineer's annual contract; of the contractor's annual contract; and the developer's contract;

**3.** Approval of the required bonds, insurance policies and licenses;

**4.** Filing of all necessary documentation with the City Clerk;

**5.** The payment of fees as provided in Title 49, Tulsa Revised Ordinances;

**6.** Approval by the director of the plans, profiles and specifications applicable to the project within the preceding twelve (12) months.

**C. Content and posting of permit.** The permit shall state the name of the person, firm or corporation to whom it is issued; the name of the owner for whom the project is being constructed; a description of the improvements authorized; the location of the improvements authorized; the length of time in calendar days the permit shall remain in effect and that issuance and validity are conditioned upon acceptance and compliance with the provisions of this chapter. At all times during the duration of the permit, a copy of the permit shall be posted in a conspicuous public place at or near the location of the work.

*(Ord. No. 22845, § 1, 3-14-2013; Ord. No. 25606, § 5, 6-18-2025)*

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## CHAPTER 4. RIGHTS-OF-WAY MINOR CONSTRUCTION PROCESS

Section 400. Definition—Scope and permit.

### Section 400. Definition—Scope and permit.

**A.** A Rights-of-Way Minor Construction permit shall be required for any project that can be constructed within the City of Tulsa's rights-of-way using standard plans and specifications as outlined by City of Tulsa standards and which does not require design and certification by a Licensed Professional Engineer. All minor construction which is to occur within existing public rights-of-way shall be further subdivided into work on an arterial street or work on a non-arterial street. Construction contractors working under the provisions of a Rights-of-Way Minor Construction permit must have obtained an annual contract with the City of Tulsa. Other contractors, either franchisees pursuant to contract provisions or contractors regulated by Title 11 Chapter 12 (Right of Way Occupancy) are excluded from this section but must comply with other applicable ordinances.

**B. Permit.** A Rights-of-Way Minor Construction permit (arterial and non-arterial) shall be issued to the applicant only after:

**1.** Approval of the application;

**2.** Execution and submission of the contractor's annual contract;

**3.** Approval of the required bonds, insurance policies and licenses;

**4.** Filing of all necessary documentation with the City Clerk;

**5.** The payment of fees as provided in Title 49, Tulsa Revised Ordinances;

**6.** Any additional requirements in Title 11, Chapter 12, Tulsa Revised Ordinances, as needed;

**C. Content and posting of permit.** The permit shall state the name of the person, firm or corporation to whom it is issued; the name of the owner for whom the project is being constructed; a description of the improvements authorized; the location of the improvements authorized and whether it is to be located within an arterial or non-arterial right-of-way; the length of time in calendar days the permit shall remain in effect and that issuance and validity are conditioned upon acceptance and compliance with the provisions of this chapter. At all times during the duration of the permit, a copy of the permit shall be posted in a conspicuous public place at or near the location of the work;

**D. Conditional exemption of trade workers.** Trade workers licensed by the state of Oklahoma, bonded by the state and registered with the City of Tulsa shall not be required to obtain a Rights-of-Way Minor Construction permit except when a street right-of-way related project is involved. Other specific requirements and permits related to trade workers as provided in other ordinances remain applicable.

*(Ord. No. 22845, § 1, 3-14-2013)*

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## CHAPTER 5. RIGHTS-OF-WAY TEMPORARY USE PERMIT

Section 500. Definition, scope and permit.

### Section 500. Definition, scope and permit.

A Rights-of-Way Temporary Use permit shall include the use of streets for temporary activity. Such permits are temporary and shall not exceed Fifteen (15) days. Two extensions may be allowed but the cumulative time shall not exceed Forty-five (45) days for the basic permit plus extensions. Temporary use is the placement of items such as dumpsters, cranes, equipment, etc., that are not permanent in the rights-of-way. It does not include construction in the rights-of-way.

The fees for Rights-of-Way Temporary Use permits on non-arterial streets are provided in Title 49, Section 906B, Tulsa Revised Ordinances. The fees for Rights-of-Way Temporary Use permits on arterial streets are provided in Title 11, Section 1208, Rights-of-Way Construction Permits, Tulsa Revised Ordinances.

*(Ord. No. 22845, § 1, 3-14-2013)*

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## CHAPTER 6. FAMILIAR RIGHTS-OF-WAY ACTIVITIES

Section 600. Scope.
Section 601. Sidewalks and driveways.
Section 602. Required sidewalks and fee-in-lieu option.
Section 603. Paving and sidewalk cuts.
Section 604. Retaining walls, wall fences and flood walls.
Section 605. Irrigation systems.
Section 606. Trees.

### Section 600. Scope.

The construction activities discussed in this chapter are considered minor construction projects and must receive special attention in the permitting process, due to their frequency of occurrence and specific design/construction requirements. All of the activities herein require a permit in addition to other permits provided by other applicable ordinances.

*(Ord. No. 22845, § 1, 3-14-2013)*

### Section 601. Sidewalks and driveways.

**A. Definitions.** Unless otherwise provided, for the purposes of this section, the following words and phrases shall have the meanings given herein:

**Curb** shall be construed to mean the raised paved structure along the edge of a street.

**Driveway** shall be construed to mean any vehicular entrance or exit connected to any street.

**Sidewalk** shall be construed to mean any paved walkway within City rights-of-way.

**B. Permits.** No person shall construct or repair any sidewalk, driveway, or curb in City of Tulsa street right-of-way without having first procured a permit. This permit must be in accordance with the Rights-of-Way Minor Construction category which will require a contractor who has executed an annual contractor's contract with City for this type of work except as detailed below.

**C. Sidewalk and Driveway Permit.** A Right-of-Way Minor Construction permit is required to construct or repair any sidewalk, driveway, or curb inside of City rights-of-way. A fee for each linear foot of the sidewalk, driveway, or curb to be constructed or repaired shall be charged in accordance with Title 49.

**D. Single-Family and Duplex Sidewalks and Driveways Within Non-Arterial Streets Rights-of-Way.** Annual contracts and bonds pursuant to Title 35, Tulsa Revised Ordinances, shall not apply. Any person issued a permit to construct or repair any sidewalk, driveway, or curb in the City of Tulsa Non-Arterial Rights-of-Way utilized for Single-Family and Duplex use, shall be required to provide a good and sufficient bond or insurance, or a combination of both, in favor of the City of Tulsa in the sum outlined in Title 49. The permit and inspection fee for this work shall be as shown in Title 49.

**E.** Right-of-Occupancy Permit requirements shall be in accordance with Title 11, Chapter 12, Tulsa Revised Ordinances.

**F. Maintenance by Property Owner.** The maintenance of sidewalks shall be a private responsibility. It shall be unlawful for any person, owner, his agent or representative, owning or having in his charge or under his control, any property in the City of Tulsa,

to permit any sidewalk or driveway abutting upon such property to become dilapidated or out of repair so as to endanger the public safety and the public travel thereon. In any instance where the responsible private party fails to maintain an abutting sidewalk or driveway in a safe condition and such failure becomes known to the director, the director shall determine the nature and extent of any repairs necessary to eliminate any existing hazard to public safety and travel, and he shall give written notice to such person to repair the sidewalk or driveway within ten (10) days. If the sidewalk or driveway is not properly repaired within ten (10) days after the service of notice, then the owner, agent or representative of such owner having charge of such property shall be deemed guilty of violating this chapter, and each day that the sidewalk or driveway is left in an unsafe or dangerous condition after the expiration of the ten (10) days' time shall constitute a separate offense and be punished by a fine as hereinafter provided.

*(Ord. No. 22845, § 1, 3-14-2013)*

## Section 602. Required sidewalks and fee-in-lieu option.

**A. Definitions.** Words and terms not defined in this section shall have the meanings given to them by the Tulsa Metropolitan Area Subdivision and Development Regulations, the Zoning Code of the City of Tulsa ("City"), other ordinances of the City, and statutes of the State of Oklahoma, all as amended from time to time, or by common and ordinary usage if not defined elsewhere. For the purposes of this section, the following words, terms, and phrases shall have the meanings prescribed in this section, unless otherwise expressly written:

**Agent:** A person authorized to act on behalf of another person or entity concerning a construction project.

**Applicant:** The owner of real property upon which a construction project is planned or has commenced, or an agent of such owner.

**Arterial Street:** A street designated as an arterial street on the Tulsa Metropolitan Area Major Street and Highway Plan, including, but not limited to, primary arterials, secondary arterials, and urban arterials.

**Building Permit:** Formal written permission by the City to perform construction, alteration, repair or related activities within the municipal limits of the City or within its jurisdictional control, as required by ordinance.

**Certificate of Occupancy:** A document issued by the City certifying that a building is in compliance with applicable building codes and other requirements and indicating that the building is in a condition suitable for occupancy.

**City Limits:** The outer boundary of the area within a specified sidewalk service area lying within the territory of the City.

**Collector Street:** A street designated as a collector street on the Tulsa Metropolitan Area Major Street and Highway Plan, whether a residential collector street or a commercial, central business district ("CBD") or industrial collector street. A collector street is a street intended to move traffic from local streets to arterial streets.

**Commercial/Industrial Street:** A street designated as a commercial/industrial street on the Tulsa Metropolitan Area Major Street and Highway Plan.

**Construction Project:** An organized undertaking at a specific location to complete pre-determined objectives for the planning, design, construction, repair, improvement or expansion of buildings or facilities, as detailed in construction plans, specifications and other related documents.

**Curb and Gutter:** The area abutting a street designed for the collection of stormwater runoff and providing a raised barrier for the safety of pedestrians and vehicular traffic.

**Deputy Director:** The Deputy Director of the Public Works Department of the City, or the Director of any successor department which has responsibility for the engineering, and design of streets.

**Development(s):** Buildings, facilities, improvements, or locations, whether planned, under construction or which are completed, which currently create pedestrian demand or which are likely to create pedestrian demand in the future.

**Director:** The Director of the Public Works Department of the City, or the Director of any successor department which has responsibility for the management, maintenance and repair of streets.

**Fee-in-Lieu:** Payment of a fee rather than constructing required sidewalk(s) and sidewalk infrastructure which has been deferred in accordance with this section.

**Mobility Scooter:** An electrically powered scooter designed for people with restricted mobility, typically those who are elderly and/or disabled.

**Ordinance:** A legislative act of the City Council of the City which has become effective in accordance with the Amended Charter of the City.

**Owner:** The person or entity having legal title to the real property upon which a construction project is planned, has commenced or is completed.

**Parkway:** A street designated as a parkway on the Tulsa Metropolitan Area Major Street and Highway Plan.

**Pedestrian:** A person traveling on foot (walking or running), or in an equivalent manner such as by means of a wheelchair or mobility scooter.

**Pedestrian Circulation System:** Improvements, whether public or private, including, but not limited to, sidewalks, parking lots, streets, paths, and trails, which provide connectivity and walkability between residential areas, businesses, schools, parks, and other pedestrian generators.

**Residential (local) Street:** A street, whether privately or publicly maintained, which provides access within a residential area, neighborhood or subdivision, which connects to other residential streets, collector streets, and less frequently, to arterial streets.

**Scenic Drive:** A street designated as a scenic drive on the Tulsa Metropolitan Area Major Street and Highway Plan.

**Sidewalk:** A hard-surfaced path (typically concrete) adjacent to a street or road, designed for pedestrian use, and which is constructed in accordance with standards approved and adopted by the City's Public Works Department, or its successor department. For the purpose of this section, the term "sidewalk" shall incorporate and include the term "sidewalk infrastructure".

**Sidewalk Infrastructure:** Improvements designed and constructed for the purpose of pedestrian use and travel which includes, but is not limited to, sidewalks, curb cuts and ramps, and retaining walls necessary for sidewalk construction.

**B. Required Sidewalks.** Sidewalks are required to be installed on both sides of arterial streets, parkways, scenic drives, commercial/industrial streets, collector streets and also on both sides of residential (local) streets with curb and gutter, except as set forth herein. The Director, or the Director's designee, may also require the installation of sidewalks in other locations when determined that such sidewalks will contribute to a logical and well-connected pedestrian circulation system.

**1. When Sidewalks are Required.** The sidewalk requirements of this subsection 602.B shall apply to all:

**a.** Land divisions, as defined in the Tulsa Metropolitan Area Subdivision and Development Regulations;

**b.** Activities expressly identified in Section 70.080-B(2) of Title 42, Tulsa Revised Ordinances; and

**c.** Development for which a building permit and a certificate of occupancy are required.

**2. Sidewalk Design and Construction Standards.** The standards for sidewalk design and construction shall be the standards approved and adopted by the City's Public Works Department, or its successor department.

**3. Sidewalk Fee-in-Lieu Option.** An applicant may elect to pay the fee-in-lieu instead of constructing the sidewalk as required above, provided that the sidewalk location is not listed in the Critical Sidewalk Areas in subsection C below.

**C. Critical Sidewalk Areas.** The following listed areas and locations within the City of Tulsa are designated as "Critical Sidewalk Areas". Sidewalks are required to be constructed within Critical Sidewalk Areas. The Fee-in-Lieu Option is not available, and deferral of sidewalk construction and payment of a sidewalk fee-in-lieu will not be approved for a construction project within a Critical Sidewalk Area, unless otherwise permitted by this section.

**CRITICAL SIDEWALK AREAS:**

**1.** Properties abutting or connecting to an existing sidewalk.

**2.** New subdivisions or replats of existing subdivisions.

**D. Fee-in-Lieu Option for Property Not Within a Critical Sidewalk Area.** An applicant desiring to defer sidewalk construction and pay a fee-in-lieu for a project which is not within a Critical Sidewalk Area as listed in subsection 602.C above shall submit an "Application for Deferral of the Requirement to Construct Sidewalks and Payment of a Fee-in-Lieu" ("Application") to the Public Works Department, together with such other information and supporting documentation as may be required or necessary to process the application and determine the eligibility of the applicant. The Deputy Director, or the Director's designee, shall review the completed application and shall approve deferral of sidewalk construction and require payment of a fee-in-lieu if the project which is the subject of the application is not wholly or partially within a Critical Sidewalk Area. An application not meeting the eligibility requirements for deferral of sidewalk construction and payment of a fee-in-lieu of shall be denied and the required sidewalk(s) shall be constructed prior to the issuance of a certificate of occupancy.

**E. Other Locations Eligible for the Fee-in-Lieu Option.** Required sidewalk construction may be deferred by the Deputy Director, in the Deputy Director's discretion, in locations otherwise requiring a sidewalk or sidewalk infrastructure, including locations within a Critical Sidewalk Area, based on one or more of the following factors demonstrated by the applicant:

**1.** Anticipated construction, known to the Deputy Director to be planned for the subject site, which will substantially damage or cause the replacement of sidewalks, if presently constructed;

**2.** Other factors not specified in this section deemed by the Deputy Director to make present sidewalk construction at the location in question impractical. The cost of construction of required sidewalk infrastructure, without other relevant factors being present, shall not make construction of a required sidewalk impractical.

In addition to one or more of the above-listed factors demonstrated by the applicant, the Deputy Director shall make a finding that deferral of sidewalk construction will not adversely impact pedestrian safety, mobility or connectivity. An applicant desiring to pay a fee-in-lieu for a location which may be eligible pursuant to the criteria established by this subsection shall submit an application to the Public Works Department, together with such other information and supporting documentation as may be required or necessary to process the application and determine the eligibility of the subject property. The Deputy Director, or the Director's designee, shall review the completed application and may approve deferral of sidewalk construction and payment of a fee-in-lieu if the project is eligible for the Fee-in-Lieu Option pursuant to the criteria set forth in this subsection. An application not meeting the eligibility requirements for sidewalk construction deferral and payment of a fee-in-lieu, in the discretion of the Deputy Director, shall be denied and the required sidewalk(s) shall be constructed prior to the issuance of a certificate of occupancy.

**F. Appeal of denial of Application for Approval of Sidewalk Fees-in-Lieu.** If an application is denied by the Deputy Director, the applicant may appeal the decision of the Deputy Director if the applicant believes that the subject property meets the criteria for eligibility for deferral of sidewalk construction and payment of fees-in-lieu as set forth in subsection 602.D or 602.E above. Such appeal shall be commenced by filing a notice of appeal to the Public Works Department within ten (10) business days after the date of denial of the application. The written Notice of Appeal must state the basis for the appeal. The Public Works Director, or the Public Works Director's designee, shall review the application and supporting documents provided to the Public Works Department and any other information provided by the applicant with the notice of appeal. The Public Works Director, or Public Works Director's designee, shall either affirm or reverse the decision appealed from in writing within thirty (30) calendar days after receipt of the appeal. If the appeal is granted and the decision of the Deputy Director is reversed, sidewalk construction shall be deferred, and the required fee-in-lieu shall be paid by the Applicant prior to issuance of the certificate of occupancy. If the appeal is denied, the required sidewalks shall be constructed prior to the issuance of a certificate of occupancy.

**G. Appeal to the City Council.** An applicant who has an appeal denied by the Public Works Director, or Public Works Director's designee, may appeal such decision to the City Council within ten (10) business days after the date of denial of the appeal by filing

two copies of a written Notice of Appeal, specifying the name and address of the Appellant and the grounds for appeal with the City Clerk at 175 East 2nd Street, Tulsa, Oklahoma, 74103, and by filing two copies of a written Notice of Appeal with the City Council Secretary. The written Notice of Appeal form shall be the form provided by the City Clerk or the Council Secretary. A hearing on the appeal shall be heard by the City Council not later than thirty (30) calendar days from the date of filing the Notice of Appeal unless a later date is agreed to by the Appellant. Notice of the date, time and place of the appeal hearing shall be mailed by the City Council Secretary by first-class mail to the Appellant at the address shown in the Notice of Appeal. Only the issues raised as the basis of the appeal to the Public Works Director and the documents submitted to and considered by the Public Works Director, including documents submitted by the applicant as part of the appeal to the Public Works Director shall be reviewed and heard by the City Council.

**H. City Council Action.** The City Council shall hold a hearing and may reverse or affirm the decision of the Public Works Director, or the Public Works Director's designee. The concurring vote of a majority of the quorum of the City Council shall be necessary to reverse the decision of the Public Works Director, or the Public Works Director's designee.

**I. Establishment of Sidewalk Service Areas.** There are now established by this subsection 602.I nineteen (19) geographic Sidewalk Service Areas with the City of Tulsa in which a defined sidewalk infrastructure system provides or will provide service to developments within that service area. The nineteen (19) Sidewalk Service Areas shall be as follows:

**1.** City limits to the North and West; Highway 75 to the East; Gilcrease Expressway to the South.

**2.** Highway 75 to the West; City limits to the North and East; Gilcrease Expressway and I-244 to the South.

**3.** City limits to the West, North, and South; I-244 and L.L. Tisdale Parkway to the East.

**4.** Gilcrease Expressway to the North; Highway 75 to the East; I-244 to the South; L.L. Tisdale Parkway to the West.

**5.** Gilcrease Expressway to the North; North Harvard Avenue to the East; I-244 to the South; Highway 75 to the West.

**6.** Gilcrease Expressway to the North and East; I-244 to the South; North Harvard Avenue to the West.

**7.** I-244 and Highway 75 to the North; South Lewis Avenue to the East; East 21st Street to the South; The Arkansas River and Highway 75 to the West.

**8.** I-244 to the North; South Yale Avenue to the East; East 21st Street to the South; South Lewis Avenue to the West.

**9.** I-244 to the North; Highway 169 to the East; East 15th Street and East 21st Street to the South; South Yale Avenue to the West.

**10.** East 21st Street to the North; South Lewis Avenue to the East; I-44 to the South; the Arkansas River to the West.

**11.** East 21st Street to the North; South Yale Avenue to the East; I-44 to the South; South Lewis Avenue to the West.

**12.** East 15th Street and East 21st Street to the North; I-44 and South Memorial Drive to the East; I-44 to the South; South Yale Avenue to the West.

**13.** I-244 to the North; 145th East Avenue and the City limits to the East; East 61st Street and City limits to the South; Highway 169, the Broken Arrow Expressway, and I-44 to the West.

**14.** City limits to the North, East, and South; 145th East Avenue to the West.

**15.** City limits to the North, South, and West; Arkansas River to the East.

**16.** I-44 to the North; South Harvard Avenue and South Lewis Avenue to the East; East 61st Street and East 81st Street to the South; the Arkansas River to the West.

**17.** I-44 and the Broken Arrow Expressway to the North; Highway 169 to the East; East 61st Street to the South; South Harvard Avenue to the West.

**18.** East 61st Street and East 81st Street to the North; City limits to the East; the Creek Turnpike to the South; City limits, the Arkansas River, and South Lewis Avenue to the West.

**19.** The Creek Turnpike to the North; City limits to the East, South, and West.

A map depicting the Sidewalk Service Areas established by this section is attached as Exhibit "A" and is made a part of this subsection 602.I. Sidewalk Service Areas which reference the Arkansas River, turnpikes, highways or streets, which act as the boundary for adjoining sidewalk service areas shall meet in the center of the Arkansas River, turnpike, highway or street so referenced.

**J. Determination of Sidewalk Fees.** The Director of the Streets and Stormwater Department, or the Director's successor, shall review and calculate, at least annually, the average unit cost to the City with respect to sidewalk infrastructure constructed for the City based on the lowest responsive bid(s) submitted to the City for similar work or the annual City-Wide Infrastructure Rehabilitation and Improvement Contract (or similar contract with a different title), and shall determine if the average unit costs of sidewalk infrastructure construction for fee-in-lieu purposes should be adjusted. The unit costs so calculated shall be the basis for the fee-in lieu amounts required. Eighty percent (80%) of the average unit cost of sidewalk and ADA-compliant ramp construction as determined and adjusted by the Director shall be the required fee-in-lieu amount for sidewalks on or along streets not designated as arterial streets, parkways, scenic drives, commercial/industrial streets, or collector streets in the Tulsa Metropolitan Area Major Street and Highway Plan (applicable to "Non-Arterial Sidewalk Construction" below in numerical 1 and 2 of this subsection), and one hundred percent (100%) of the average unit cost of sidewalk construction and ADA-compliant ramp construction as determined and adjusted by the Director shall be the required fee-in-lieu amount for sidewalks and for ADA-compliant ramps on or along streets designated as arterial streets, parkways, scenic drives, commercial/industrial streets, or collector streets in the Tulsa Metropolitan Area Major Street and Highway Plan and (applicable to "Arterial Sidewalk Construction" below in numerical 3 and 4 of this subsection). The existing average unit costs of sidewalk infrastructure adopted for fee-in-lieu purposes, until otherwise adjusted by the Director, are as follows:

**1. Non-Arterial Sidewalk Construction:** Seven Dollars and One Cent ($7.01) per square foot for eighty percent (80%) of the average unit cost.

2. **Non-Arterial ADA-Compliant Ramp Construction:** One Thousand Dollars ($1,000.00) each for eighty percent (80%) of the average unit cost.
3. **Arterial Sidewalk Construction:** Eight Dollars and Seventy-six Cents ($8.76) per square foot for one hundred percent (100%) of the average unit cost.
4. **Arterial ADA-Compliant Ramp Construction:** Twelve Hundred and Fifty Dollars ($1,250.00) each for one hundred percent (100%) of the average unit cost.

**K. Creation of Separate Fund; Use of Sidewalk Fees Collected.** A separate fund or funds for fees-in-lieu collected shall be established and the funds so collected shall be accounted for based upon the fees-in-lieu collected within each Sidewalk Service Area. The fees-in-lieu so collected for a particular Sidewalk Service Area shall only be spent for public sidewalk infrastructure projects within that service area. In the case of developments spanning more than one Sidewalk Service Area, the Sidewalk fees-in-lieu collected shall be expended proportionately within each Sidewalk Service Area. Fees-in-lieu may not be used to fund repairs, maintenance, restorations, refurbishments, alterations, improvements, or fixes to existing sidewalk infrastructure that do not result in an increase or expansion in the functional service capacity of the sidewalk system which is available to serve new or expanded existing growth and development in the applicable Sidewalk Service Area. Fees-in-lieu may be used for any costs related to public sidewalk infrastructure expansion within the applicable Sidewalk Service Area.

**L. Annual Report.** The Public Works Department shall provide an annual report to the City Council detailing the collection, investment and expenditure of fee-in-lieu funds as separately reported for each Sidewalk Service Area, and each public sidewalk infrastructure system project completed for each Sidewalk Service Area, as well as the estimates of the timing of system-capacity expanding improvements as such construction is funded by fees-in-lieu.

**M. Termination of Sidewalk Fees.** The City may terminate the deferral of required sidewalk construction and the collection of fees-in-lieu when the system of public sidewalk infrastructure has been fully funded or developed and any expanded or modified development will have no additional impact on the public sidewalk infrastructure system.

*(Ord. No. 24275, §§ 1, 2, 12-4-19; Ord. No. 24493, §§ 1—3, 12-2-2020; Ord. No. 24890, § 1, 8-10-2022; Ord. No. 25178, § 1, 11-1-2023; Ord. No. 25426, § 1, 10-16-2024)*

**Editor's note—**Ord. No. 24275, § 1, adopted December 4, 2019, repealed the former § 602, and enacted a new § 602 as set out herein. The former § 602 pertained to parkway and arterial street sidewalks—fee-in-lieu option and derived from Ord. No. 22845, § 1, 3-14-2013.

## Section 603. Paving and sidewalk cuts.

The provisions of this section shall apply to every person, firm, agency, institution or corporation and every City department, public trust, licensee or franchisee which makes or causes to be made any paving cuts as defined herein. The provisions of this section shall apply to sidewalk cuts when such sidewalk cuts are made in conjunction with paving cuts. The provisions of this section shall not apply to replacement or repair of a sidewalk when such replacement or repair is performed upon a sidewalk not located in a right-of-way.

**A. Definitions.** Unless otherwise provided, for the purposes of this section, the following words and phrases shall have the meanings given herein.

**City engineering standards** shall mean the official design specifications approved and promulgated by the director which set forth the requirements for paving cuts; (e.g., standard concrete pavement cut and repair; standard asphalt pavement cut and repair).

**Emergency** shall mean a sudden and urgent occasion necessitating immediate action to preserve the life, health, safety and/or welfare of people and/or property.

**Paving cut** shall mean the act of altering, cutting, removing, excavating or changing in any manner, the paved or traveled portion of any street right-of-way or public alley.

**Sidewalk cut** shall mean the act of altering, cutting, removing, excavating or changing in any manner, any sidewalk, driveway, curb, gutter or other appurtenance to a street right-of-way or public alley, but only when a necessary part of a paving cut as above defined.

**B. Permit Process, Permit Fee, Surety.**

1. Any person, firm or corporation before making any paving or sidewalk cut, shall apply for and obtain a rights-of-way—minor construction permit from the director, except in an emergency. In the event of an emergency, such person, firm or corporation may make a paving or sidewalk cut and shall apply for the permit at the earliest opportunity, but in no event later than the close of the next working day after such paving or sidewalk cut is commenced.
2. Applicants must meet all the requirements for a Rights-of-Way Minor Construction permit and the requirements of Title 11, Tulsa Revised Ordinances, Chapter 12, or employ the City's paving cut contractor.

*(Ord. No. 22845, § 1, 3-14-2013)*

## Section 604. Retaining walls, wall fences and flood walls.

**A. Definitions.** Unless otherwise provided, for the purposes of this section, the following words and phrases shall have the meanings given herein.

**Flood Wall** is defined as a vertical structure built from reinforced concrete or other material approved by the director for the purpose of retaining ponded water.

**Retaining Wall** is defined as a vertical structure built from stone or brick masonry, reinforced concrete, segmented block or other material approved by the director and built to support earth of a higher level on one (1) side than on the other.

**Wall Fence** is defined as a vertical structure built from stone or brick masonry, reinforced concrete, segmented block or other material approved by the director and built for security, screening, property boundary or other purpose with the earth at approximately the same elevation on both sides.

**B. Permit Required.** All retaining walls defined under this section, require a building permit for construction as defined in Title 51. Such walls must be designed by a Licensed Professional Engineer.

**C.** Projection on street or alley or construction in rights-of-way prohibited. No part of any wall coming under the provisions of this section shall be built or constructed, which shall extend beyond the property line along any street or alley or any other public way. Nor shall such a wall be built within a dedicated public utility easement or rights-of-way without approval of the director.

*(Ord. No. 22845, § 1, 3-14-2013)*

## Section 605. Irrigation systems.

**A. Definition.** Irrigation systems shall mean lawn and landscape watering or sprinkling systems.

**B. Irrigation systems authorized.** The installation of irrigation systems shall hereafter be allowed within the City of Tulsa on public rights-of-way, both arterial street and non-arterial street. Public rights-of-way shall be defined as the property lying between any curb or street line and adjacent property lines.

**C. Backflow preventer permits required.** Any person desiring to construct or install an irrigation system must have a plumbing permit for the installation of a backflow preventer that is required for all irrigation systems that connect directly or indirectly to the public water system. Such permits shall be substantially the same, if not identical to permits issued by the office of the plumbing inspector, pursuant to the provisions of the plumbing code of the City of Tulsa; and the construction and installation of back-flow preventers and water mains which are a part of or to be connected to any irrigation system shall be in full compliance with the provisions, conditions and terms of the plumbing code of the City of Tulsa. See Title 49, Tulsa Revised Ordinances, for appropriate fees.

**D. Restrictions and conditions.** The following restrictions and conditions shall attach to and become a part of this grant of permissive use of the public rights-of-way of the City of Tulsa for the construction or installation of irrigation systems.

**1.** No irrigation system shall be constructed or installed or maintained so as to interfere with pedestrian or vehicular traffic along the public rights-of-way, streets, alleys or sidewalks.

**2.** Any irrigation system shall be so constructed, installed and maintained by the owner of the property adjacent to the right-of-way, so that no maintenance costs shall inure to the disadvantage of the City of Tulsa on the public rights-of-way, streets, alleys or sidewalks adjacent thereto. The City of Tulsa shall bear no costs of future maintenance of that portion of the right-of-way upon which or under which such irrigation system is installed and constructed, but such maintenance shall be the exclusive responsibility of the property owner.

**3.** No liability for property damage or personal injury shall attach to the City of Tulsa as a municipal corporation arising out of the construction, installation or maintenance of an irrigation system.

**4.** Permission for the construction or installation of irrigation systems shall be authorized as herein provided without waiving or abandoning any privilege or

rights in favor of the City of Tulsa in, to or under the public rights-of-way on or under which an irrigation system is constructed or installed; nor shall there be a waiver of any privileges or rights previously acquired by any of the agents, servants or employees of the City of Tulsa, including utility companies.

**5.** In the event it becomes necessary for any public purpose (including construction, installation, maintenance, repair or discontinuance of utilities on or under the public right-of-way occupied by an irrigation system) to remove such irrigation system because it interferes with the prior privileges or rights of the City of Tulsa, its agents, servants and employees, including utility companies, the system shall be removed by the owner of the property adjacent thereto. In the event such removal is not accomplished as herein provided, such system may be removed by the City of Tulsa, its agents, servants or employees, including utility companies and independent contractors, at the expense of the person who is the owner of the property adjacent thereto.

*(Ord. No. 22845, § 1, 3-14-2013)*

## Section 606. Trees.

**A. Definitions.** For the purposes of this section, the following words and phrases shall have the meanings given herein:

**Abutting property owner** shall mean any person, firm, partnership or non-municipal corporation owning property abutting a public right-of-way.

**Arterial street** shall mean the vehicle traffic lanes under the control and maintenance jurisdiction of the City of Tulsa, including the easements and rights-of-way on each side thereof, on freeways; parkways; scenic drives; and primary, secondary and urban arterial streets, all as defined and established by the adopted and currently effective Tulsa City-County Major Street and Highway Plan. The term shall also apply and have reference to the street system within the Central Business District.

**Central Business District** shall mean that area of land lying within the Inner Dispersal Loop (IDL), Tulsa, Oklahoma, bounded by a street network on the east by the east leg of the IDL, part of U.S. Highway 75 South/Interstate Highway 444 (I-444); on the west by U.S. Highway 64 West/Oklahoma State Highway 51 West/Interstate Highway 244 (I-244); on the north by U.S. Highway 412 East/I-244; and on the south by the Broken Arrow Expressway, U.S. Highway 64 West/U.S. Highway 75 South/ Oklahoma State Highway 51 West, part of I-444.

**City** shall mean the City of Tulsa, Oklahoma, a municipal corporation.

**Code official** shall mean the person or persons designated by the City to implement the provisions of this chapter.

**Council** shall mean the governing body of the City of Tulsa, Oklahoma.

**Expressway** shall mean a divided highway for through traffic with full or partial control of access.

**Freeway** shall mean an expressway with full control of access.

**Mayor** shall mean the Mayor of the City of Tulsa, Oklahoma, or his or her designated representative.

**Park trees** shall mean trees in designated public parks or in any area owned by the City to which the public has free access.

**Person** shall mean every natural person, firm, partnership or non-municipal corporation.

**Public land** shall mean any real property within the corporate limits of the City in which the City has any ownership interest.

**Shrub** shall mean a low woody plant, usually multi-stemmed.

**Sight-distance triangle** shall mean the area within an imaginary triangle formed at a street corner as follows: Extend the curb lines (or the edge of the pavement where no curbs exist) into the street to a point where those lines intersect; from that point of intersection measure along both curb lines (or edges of pavement) to two (2) points, the length of each arm shall be defined by the Traffic Engineer based upon type of street and traffic counts; the connecting of these three (3) points shall form the sight-distance triangle.

**Street trees** shall mean trees within the entire width of every public way or right-of-way when any part thereof is open to the use of the public for the purpose of vehicular and pedestrian traffic.

**Topping** shall mean the cutting back of tree limbs within the tree's crown to stubs larger than three (3) inches in diameter thereby removing the natural canopy and/or disfiguring the tree.

**Tree** shall mean a woody perennial plant having a well-defined stem or trunk and a definite crown which attains a mature height of at least eight (8) feet.

**B. Street trees.**

1. **Approved street trees.** An official list of recommended and prohibited trees shall be prepared and maintained by the director of the Tulsa Planning Office at the Indian Nations Council of Governments or as otherwise set forth in Title 42 Tulsa Revised Ordinances. No species other than those included on the official list of recommended street trees may be planted as street trees unless permission to do so is given by the director of the Tulsa Planning Office at the Indian Nations Council of Governments (INCOG) or other official as may be designated in Title 42 Tulsa Revised Ordinances. No species included on the official list of prohibited trees may be planted as street trees.
2. **Permit required.** A permit is required for the planting of any street tree. For developments with construction requiring IDP approval under this Title 35, street tree plans must be included in the plans submitted, and approval of the IDP is the necessary permit. The owner of the abutting property or owner's consultant must apply for the permit and in support of the application must submit written approvals from all private utilities having facilities in the subject right-of-way before final acceptance of public improvements. In all other cases, a License Agreement is the required permit. Street trees must be planted in accordance with the issued permit.

**C. Spacing and clearance.** Spacing requirements for street trees are as follows:

1. No tree on an arterial street shall be planted closer than seven (7) feet from the face of the street curb or closer than four (4) feet from a sidewalk, except that in the central business district street trees may be planted no closer than two (2) feet from the curb and need not be planted a minimum distance from a sidewalk;

**2.** At the intersection of any street with any other street, no abutting property owner shall allow any tree or shrub to exceed a height of thirty (30) inches above street grade within the sight-distance triangle as defined herein;

**3.** No tree or shrub planted closer than fifty (50) feet from the end of any arterial street median shall be allowed to exceed a height of thirty (30) inches above street grade; trees on arterial street medians should be spaced no closer than thirty (30) feet from each other;

**4.** At the intersection of any arterial street with any other street, no abutting property owner shall allow any tree within one hundred (100) feet radius of the intersection within the right-of-way, measured from the point of intersecting curbs or curb lines or from the edge of the paving where no curbs exist, to have any branches within five (5) feet of the curb line;

**5.** Tree plantings on freeways and expressways shall be prohibited without written approval from agency with jurisdiction. Upon written approval, tree plantings on freeways and expressways shall be no closer than thirty (30) feet from the edge of the outside driving lanes and twenty (20) feet from any fencing and spaced no closer than twenty-five (25) feet apart; provided, however, that trees may be planted in a cluster and mulched so that mowing between the clustered trees is not required;

**6.** No tree shall have limbs which project over a public sidewalk or street which are less than eight (8) feet above the surface of the public sidewalk and nine (9) feet above the surface of the street; and

**7.** No tree or shrub shall be planted within fifteen (15) feet of any fire hydrant so as to obstruct the fire hydrant when viewed from the street.

**D. Trees in wells or raised planter beds.** Trees in wells or raised planter beds shall be planted in accordance with Standard 834 of the Division 8 Streetscape Specifications maintained by the City Engineering Services Department.

**E. Modification of requirements in subsections C and D.** In instances where the standards established in the foregoing subsections C and D cannot be met due to the physical circumstances of the area where street trees are proposed to be planted, an alternate plan may be approved by the Development Services Department or Engineering Services Department, as appropriate, in consultation with the Tulsa Planning Office at INCOG, and relevant public and private utilities.

**F. Trees in public utility easements.** No trees other than those species included on the official list of recommended street trees may be planted under or within twenty (20) lateral feet of any overhead utility wire. No species other than those included on the official list of recommended street trees may be planted as street trees unless permission to do so is given by the director of the Tulsa Planning Office at the Indian Nations Council of Governments (INCOG) or other official as may be designated in Title 42 Tulsa Revised over or within five (5) lateral feet of any underground public utility line.

**G. Care of trees.**

**1.** Whenever private property abuts a public right-of-way and there exists in such right-of-way a tree lawn or grassy area between the private property and the pavement of said right-of-way, the owner of the private property shall maintain the

trees, plants and shrubs that are planted within that tree lawn or grassy area of the right-of-way and shall remove any dead tree or any tree or part thereof that is in an unsafe condition or is injurious to public or private utilities.

**2.** The City shall have the right but not the obligation to prune and remove trees, plants and shrubs within the right-of-way lines of all streets, alleys, avenues, lanes, squares and public grounds as may be necessary for construction, to ensure public safety, to preserve or enhance the symmetry and beauty of the public area or to protect public utility facilities thereon.

**3.** The City may, but is not required to, remove, or cause or order to be removed, any tree or part thereof which is in an unsafe condition or which by reason of its nature is injurious to sewers, electric power lines, gas lines, water lines or other public improvements, or is infected with any injurious fungus, insect or other pest.

**H. Tree topping.**

**1. Tree topping prohibited generally.** It shall be unlawful as a normal practice for any person or for any City department to top any street tree, park tree or other tree on public property.

**2. Exception.** Where other pruning practices are impractical, the code official may exempt from this section trees which have been severely damaged by storms or other causes and certain trees under utility wires or other obstructions.

**I. Owner's responsibility.** Notwithstanding anything herein to the contrary, if a tree planted on private property or within the right-of-way abutting private property overhangs any street or right-of-way within the City, the owner of the private property shall prune the branches so that the branches do not obstruct the light from any street lamp or the view of any street intersection.

**J. City's right to prune.** The City or its assignees shall have the right but not the obligation to prune any tree or shrub on private property or in the right-of-way when it interferes with the proper spread of light along the street from a street light or interferes with visibility of any traffic control device or street sign.

**K. Dead or diseased trees.** The code official shall have the right but not the obligation to cause the removal of any dead or diseased trees on private property or in the right-of-way within the City according to the provisions of Title 24, Tulsa Revised Ordinances.

**L. Interference with City personnel.** It shall be unlawful for any person to prevent, delay or interfere with City personnel while they are engaged in planting, cultivating, mulching, pruning, spraying or removing any street trees, park trees or trees on private grounds as authorized by this section.

**M. Appeals.** Any person aggrieved by a decision of a code official may appeal that decision by following the procedures outlined in Section 804 hereof.

*(Ord. No. 22845, § 1, 3-14-2013; Ord. No. 24353, §§ 1, 2, 4-29-2020; Ord. No. 24716, § 1, 11-17-2021)*

## CHAPTER 7. PENALTY

Section 700. Penalty.

### Section 700. Penalty.

Unless otherwise provided in this title, any person, firm or corporation violating any of the provisions of this title shall be guilty of an offense, and upon conviction thereof, shall be punished by a fine of not more than One Thousand Dollars ($1,000.00), including costs. Each day of such violation shall constitute a separate offense.

*(Ord. No. 22845, § 1, 3-14-2013)*

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## CHAPTER 8. INFRASTRUCTURE AND DEVELOPMENT ADVISORY BOARD

Section 800. Purpose.
Section 801. Membership.
Section 802. Duties.
Section 803. Officers, meetings.
Section 804. Appeal process.

### Section 800. Purpose.

The purpose of the Infrastructure and Development Advisory Board (Board) is to establish a group of subject matter experts that can offer input and guidance on issues related to infrastructure and real estate development. The Board provides a means of vetting, regulations, procedures and standards as they pertain to municipal and real estate development. It may participate in reviews and/or hearings when relief is sought through appeals of code officials that are related to infrastructure and real estate development. The Board is a recommending body.

*(Ord. No. 23479, § 1, 5-5-2016; Ord. No. 25075, § 1, 6-21-2023)*

### Section 801. Membership.

The Infrastructure and Development Advisory Board shall consist of thirteen (13) members appointed by the Mayor and approved by the Council. The membership shall be as follows:

- Consulting engineers in the project development business (2).
- Member at large appointed by the Mayor (1).
- Attorney specializing in development (1).
- Developer (2).
- Independent business person (1).
- Representative from organized labor within the building trades (2).
- Construction contractor (2).
- Representative from homebuilder's association (1).
- Homeowner association or neighborhood association member (1).

All appointments shall be for terms of three (3) years; provided, however, that all members shall serve until their successors are appointed and qualified. If a vacancy shall occur otherwise than by expiration of term, it shall be filled by the Mayor by appointment for the unexpired term, subject to confirmation by Council. All members of the Board shall serve without compensation.

*(Ord. No. 23479, § 1, 5-5-2016; Ord. No. 25075, § 1, 6-21-2023)*

### Section 802. Duties.

The Infrastructure and Development Advisory Board shall have the following duties and responsibilities:

**A.** The Infrastructure and Development Advisory Board shall be available to assist the City of Tulsa in all aspects of the City's infrastructure development process, including all stormwater design standards;

**B.** Upon request, the Board shall be available to assist in the review and analysis of other real estate development related processes;

**C.** Upon request, the Board shall be available to advise the Director of Development Services, herein referred to as Director, on policies, standards, ordinances and codes that relate to real estate development within the City;

**D.** Before any action is taken, the Board shall advise the Directors of Development Services and Public Works on any proposed recommendation to adopt, modify, or rescind policies, standards, ordinances and codes that relate to real estate development within the City of Tulsa;

**E.** Upon request, the Board and Director may provide to the Mayor a review and joint recommendation regarding any proposal to adopt, modify, or rescind policies, standards, ordinances and codes that relate to real estate development under consideration by the City Council;

**F.** It shall serve as a review alternative for all parties involved in the planning, design and construction of infrastructure in support of subdivisions, business parks and other development; and

**G.** Should an appeal to the Infrastructure Development Advisory Board be requested as hereafter provided, it shall hear the appeal and its determination shall serve as a non-binding recommendation to the Director, who shall make the final decision.

*(Ord. No. 23479, § 1, 5-5-2016; Ord. No. 25075, § 1, 6-21-2023)*

### Section 803. Officers, meetings.

At the October meeting each year, the Board shall elect to serve for the ensuing year a chairman and vice-chairman and such other officers as it may determine are necessary for the performance of its duties. Insofar as possible, all business meetings shall be conducted in accordance with the parliamentary rules set forth in Robert's Rules of Order. The Board shall keep a record of its resolutions, transactions, findings, proposals and determinations. Meetings shall be at the call of the Chairman or three (3) members of the Board, or on a regular basis if the Board so determines. A quorum which represents a simple majority of the currently elected members shall be required to conduct business of the Board.

*(Ord. No. 23479, § 1, 5-5-2016; Ord. No. 25075, § 1, 6-21-2023)*

### Section 804. Appeal process.

**A. Initiation of an appeal.** Any person aggrieved by a decision of a code official related to infrastructure development may appeal the decision to the Director. The initiation of such an appeal shall be in writing and shall be filed with the Director or their designee no later than twenty (20) days after the code official's decision was served. The notice of appeal shall:

**1.** Set forth in detail the precise decision or requirement being appealed;

**2.** State precisely why the decision or requirement is in error;

**3.** Designate the section(s) of the code, ordinances, statute(s), design standards and manuals or policy which support(s) the appellant's position; and

**4.** Be accompanied by a fee as provided in Title 49, Tulsa Revised Ordinances.

**B. Informal review.** Upon receipt of the notice of appeal, the Director shall conduct an informal review to determine if a formal appeal is necessary. Upon finding that an appeal is necessary, the Director shall notify the Chairman of the Board, who shall then proceed in accordance with the Board's rules to schedule the hearing and notify the appellant accordingly.

**C. Board investigation and hearing.** Upon receipt of notice of an appeal from the Director or their designee, the Board shall make such investigation into the complaint which it may deem necessary and hold a hearing upon the appeal.

**D. Notice of hearing.** The Board shall meet upon notice from the chairman within twenty (20) days of being notified by the Director that an appeal is necessary or at a stated periodic meeting. The Board shall serve written notice of the hearing upon the appellant and upon the person against whom the appeal was filed. The notice shall be served either personally or by certified mail, return receipt requested, at least ten (10) days prior to any scheduled hearing, and shall include:

**1.** A statement of the date, time, place and nature of the hearing;

**2.** A statement of the legal authority and jurisdiction under which the hearing is to be held;

**3.** A reference to the particular section(s) of the code and rules involved;

**4.** A short, plain statement of the complaint or appeal and a statement of the issues before the Board;

**5.** A statement that the nature of the proceeding before the Board will be an informal inquiry into the complaint, at which time an opportunity will be afforded for the individual to respond to the allegations in the notice of appeal by the presentation of testimony or documentary evidence; and

**6.** A statement that the individual has a right to be represented by legal counsel.

**E. Board recommendation.** At the conclusion of a hearing on an appeal, the Board shall recommend, in writing, to the Director to affirm, modify or reverse the decision of the code official by a concurring vote of a majority of the members attending.

**F. Decision of the Director.** Within twenty (20) days from receipt of the Board's recommendation, the Director shall decide the matter on appeal. The decision shall be in writing which shall be mailed to the appellant and other interested parties.

**G. Enforcement of Director's decision stayed.** If any ruling, requirement, decision, or interpretation by the Director is appealed to the City Council, the enforcement of the Director's decision shall automatically be stayed until the Council has rendered a final decision.

**H. Appeals to the City Council.**

**1.** Any persons aggrieved by a decision of the Director may perfect an appeal to the City Council by filing a written notice of appeal with the City Clerk and the Director within ten (10) days from the date of the Director's decision. Such notice shall specify the grounds for the appeal. A hearing on the appeal shall be conducted by the Council no later than thirty (30) days from the date the notice of appeal was filed with the City Clerk unless otherwise agreed by appellant.

**2.** The City Council shall have jurisdiction to affirm, modify or reverse the decision of the Director. Where practical difficulties or an unnecessary hardship will result

from the strict application of this code, the Council shall have the power, in a specific case, to grant a variance from any provision, in accordance with the general purpose and intent of the code, so that the public health, safety, convenience, prosperity and general welfare may be secure and substantial justice done. Any such variance shall not be construed as an amendment or general waiver of any provision of this code.

**I. Appeal from City Council.** Any rulings, requirements, decisions or interpretations of the City Council shall be final and binding upon all parties, provided that any right of appeal to the courts shall not be abrogated.

*(Ord. No. 23479, § 1, 5-5-2016; Ord. No. 25075, § 1, 6-21-2023)*

## CHAPTER 9. PERMIT FEES AND ESCROW ACCOUNTS

Section 900. Permit fees and escrow accounts.

### Section 900. Permit fees and escrow accounts.

Before any permit shall be issued for the construction, reconstruction, replacement or alteration of any infrastructure development, the applicant shall pay to the City of Tulsa a fee or fees and make escrow deposits, in accord with Title 49, Tulsa Revised Ordinances.

*(Ord. No. 22845, § 1, 3-14-2013)*

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## CHAPTER 10. PERMIT REQUIRED TO USE NATURAL GAS PIPELINE

Section 1000. Definitions.
Section 1001. Permit required.
Section 1002. Fee.
Section 1003. Permit requirements.
Section 1004. Revocations and penalties.

### Section 1000. Definitions.

**A. City** shall mean the City of Tulsa, Oklahoma, a municipal corporation.

**B. Consumer** shall mean any individual person, corporation, company, partnership, firm, unincorporated association, trust or public corporation that uses or consumes natural gas in the City.

**C. Pipeline system** shall mean a system of works, pipes, pipelines, apparatus, machinery, structures, appliances and appurtenances reasonably necessary for the transportation, distribution or sale of natural gas.

**D. Lease** shall mean a lease of capacity of a pipeline system by a consumer.

**E. Permit** shall mean the rights, licenses and privileges granted by the City of Tulsa to a consumer to use the public ways for a lease.

**F. Permittee** shall mean a consumer granted a permit under this chapter.

**G. Public ways** shall mean any streets, alleys, avenues, boulevards, lanes, parks, parkways, sidewalks, driveways, utility easements, rights-of-way and any other public ways, places, areas or grounds within the corporate limits of the City of Tulsa as now constituted or as may be added hereafter.

*(Ord. No. 22845, § 1, 3-14-2013)*

### Section 1001. Permit required.

No consumer shall receive or deliver gas within the City pursuant to a lease of any pipeline system installed in the public ways, unless the consumer shall hold a valid permit from the City. Such permit shall be issued for the purpose of granting the permittee authority to use the public ways.

*(Ord. No. 22845, § 1, 3-14-2013)*

### Section 1002. Fee.

In consideration of the issuance of a permit by the City, a permittee shall pay to the City a fee for use of the public ways as follows:

**A.** Through April 23, 1987, an amount equal to two and one-half percent (2½%) and, thereafter, an amount equal to three percent (3%) of the purchase price of natural gas transported and received or delivered within the City under the lease; plus

**B.** For all permittees not otherwise exempt from the payment of municipal sales tax, an amount equal to three percent (3%) of the purchase price of the natural gas transported and received or delivered within the City under the lease.

*(Ord. No. 22845, § 1, 3-14-2013)*

## Section 1003. Permit requirements.

Any permit issued shall contain the following material terms:

**A.** The permittee shall pay the fee set forth in Section 1002 to the City or its designated agent on a monthly basis, as directed by the City;

**B.** The permittee shall subordinate its lease to the right of the City to construct, operate and maintain facilities in the public ways;

**C.** The permittee shall grant to the City the right to audit at reasonable times the books and records of the permittee to verify the correct payment of the fee set forth in Section 1002; and

**D.** The permittee shall assume jointly with the franchise holder the indemnification terms of the franchise insofar as the terms apply to the lease.

*(Ord. No. 22845, § 1, 3-14-2013)*

## Section 1004. Revocations and penalties.

**A.** A permit shall be revocable by the City at any time upon a ten-day written notice to permittees.

**B.** Any violation of this chapter shall be an offense. Any consumer adjudged guilty of violating this chapter shall be punished by a fine of Five Hundred Dollars ($500.00), excluding costs, for each offense; and each day of a continuing violation shall be deemed a separate offense.

*(Ord. No. 22845, § 1, 3-14-2013)*

# TITLE 36 TAXICABS, PARATRANSIT VEHICLES AND UTILITY VEHICLES FOR HIRE REGULATIONS*

**Chapter 1. Taxicab, Paratransit Vehicle and Utility Vehicle For Hire Regulations**
**Chapter 2. Transportation Network Vehicle Services (Repealed - Ord. No. 23521)**

*__Editor's note—__Ord. No. 23521, § 1, adopted July 21, 2016, amended Title 36 title to read as herein set out. Formerly, such title pertained to taxicabs, paratransit vehicles, and transportation network companies.

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# CHAPTER 1. TAXICAB, PARATRANSIT VEHICLE AND UTILITY VEHICLE FOR HIRE REGULATIONS

Section 100. Statement of policy and purpose.
Section 101. Definitions.
Section 102. Exclusions.
Section 103. Administration and appeals.
Section 104. Certificate required.
Section 105. Requirements for certificate holders.
Section 106. Certificate application.
Section 107. Certificate issuance.
Section 108. Certificate fees.
Section 109. Certificate renewal.
Section 110. Certificate suspension or revocation.
Section 111. Financial responsibility required.
Section 112. Vehicle permit required.
Section 113. Requirements for vehicle permit.
Section 114. Vehicle permit renewal.
Section 115. Removal of vehicle from service.
Section 116. Vehicle permit suspension.
Section 117. Chauffeur license required.
Section 118. Requirements for chauffeur license.
Section 119. Chauffeur license renewal.
Section 120. Chauffeur license suspension or revocation.
Section 121. Temporary chauffeur license.
Section 122. Falsification of a license or permit.
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Section 124. Additional responsibilities (taxicab service, only).
Section 125. Taxicab, paratransit vehicle and utility vehicle for hire stands.
Section 126. Use of taxicab, paratransit vehicle and utility vehicle for hire stands.
Section 127. Reserved.
Section 128. Return of passenger's property.
Section 129. Refusal to transport passengers.
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Section 134. Rates of fare.
Section 135. Taximeters.
Section 136. Vehicle inspections and requirements.
Section 137. Vehicle design, unit numbers, advertising, cruising lights.
Section 138. Report of accidents.
Section 139. Off-duty status.
Section 140. Enforcement.
Section 141. Renewal time limit, penalties.
Section 142. Reserved.
Section 143. Wheelchair transport service.
Section 144. Physically limited transport service.

Section 145. Horse-drawn carriages.
Section 146. Peda-cabs and rickshaws.
Section 147. Utility vehicles for hire.
Section 148. Construction.
Section 149. Provisions cumulative.
Section 150. Penalties for violation.

**Section 100. Statement of policy and purpose.**

**A.** It is the policy and purpose of the City of Tulsa to provide and promote adequate and satisfactory taxicab, paratransit vehicle and utility vehicle for hire service in a manner that will promote a positive image to residents and visitors within its corporate limits. To achieve this goal, this title provides for the regulation of such service for hire which will reasonably protect the public interest, welfare, health and safety, and will promote the availability of public transportation while protecting the principles of free enterprise.

**B.** The rights of the holder or licensee granted under this chapter shall, at all times, be subservient to the right of the City to fully exercise its rights of control over the streets, alleys and public ways of the City of Tulsa.

*(Ord. No. 23483, § 1, 4-28-2016)*

**Section 101. Definitions.**

For the purposes of this chapter, the following words and phrases shall have the meanings given herein:

**Ambulance** shall mean a vehicle defined in and permitted by the provisions of Title 37-A of the Revised Ordinances of the City of Tulsa.

**Antique, classic or special interest vehicle for hire** shall mean the following:

**1.** Antique or classic vehicle for hire shall mean vehicles which are twenty-five (25) calendar years old or older and have not been substantially altered, remodeled or remanufactured from the manufacturer's original design.

**2.** Special interest vehicle for hire shall mean a vehicle which does not match the description herein of other vehicles for hire yet may appeal to a certain age group through nostalgic association, as a cultural icon or a current fad.

**3.** These vehicles shall not be equipped with a taximeter and shall be for hire only by prearrangement at a rate charged per hour or fixed in advance, as long as the fixed rate is for a minimum period of one (1) hour, provided that all such vehicles are:

**a.** For hire for continuous periods of one (1) hour or more, whether actually used for one (1) hour or not:

**b.** Of a type and configuration not generally licensed as a taxicab or bus in the City;

**c.** Not to cruise in search of patronage and not to park in any public street, or in any public or private place of assemblage to solicit patronage not prearranged. This shall be interpreted to preclude the parking of these vehicles at any location other than to collect prearranged passengers.

**Bus** shall mean a chauffeur-driven vehicle for hire, designed to accommodate more than five (5) passengers excluding the chauffeur, classified by the manufacturer as a bus or van, not equipped with a taximeter and provided that all such vehicles are:

**1.** To be for hire only for travel along a fixed route which is approved by the Director in advance;

**2.** Of a type and configuration not generally licensed as a taxicab or limousine;

**3.** Not to cruise in search of patronage and not to park in any public street, or in any public or private place of assemblage soliciting patronage. This shall not be interpreted to preclude the parking of vehicles at any location while awaiting passengers; and

**4.** To operate at a rate fixed in advance and charged for regular travel over the approved route.

**Certificate** shall mean a certificate authorizing the operation of a taxicab, paratransit service or a utility vehicle for hire, service within the City limits of Tulsa.

**Chauffeur** shall mean a licensed individual who drives or operates a taxicab, paratransit vehicle or utility vehicle for hire, regardless of whether or not the individual drives or operates such vehicle as an employee, lessee, independent contractor or his lessee, or in any other capacity.

**Church Bus** shall mean a vehicle used primarily for the transportation of the members, guests or staff of a church.

**City** shall mean the City of Tulsa, Oklahoma, a municipal corporation.

**Council** shall mean the Council of the City of Tulsa, Oklahoma.

**Courtesy Vehicle** shall mean a vehicle used by hotel and motel facilities, apartment complexes, businesses, merchants, companies, private organizations or groups exclusively for the convenience of their guests, occupants, customers, employees or members and is not for hire.

**Director** shall mean the person designated by the Mayor to enforce the provisions of this chapter or that person's designee.

**For Hire** shall mean a transaction whereby any money, thing of value, charge tickets, surcharge, payment, pecuniary consideration or compensation, reward, donation, remuneration or profit is paid to, accepted by, or received by the chauffeur or an employee or the holder operating any taxicab, paratransit vehicle or utility vehicle in exchange for the temporary use by or for the transportation of a person as a passenger, whether such is paid voluntarily or upon solicitation, demand, request, contract, agreement, or as a surcharge. For hire shall also include a taxicab, paratransit vehicle or a utility which being operated for a commercial (profit) purpose whether or not computation is expected from its passengers.

**He/Him/His/It/Its** shall include the masculine, feminine and neuter gender.

**Hearse** shall mean a vehicle customarily and primarily used to transport the deceased for burial.

**Holder** shall mean a person who is granted a certificate.

**Horse-Drawn Carriage** shall mean a chauffeur-driven carriage, coach, wagon, or buggy for hire, having one (1) or more horses or other equines under harness and rein, which can carry one (1) or more passengers, usually operated and promoted for selected sightseeing routes.

**I.D.L. Definition.** As used herein, the I.D.L. (Inner Dispersal Loop) shall mean the area of the City of Tulsa bounded on the East by the East leg of the I.D.L. (U.S. 75), on the West by I-244, on the North by I-244, and on the South by the Broken Arrow Expressway (S.H. 51).

**Limousine** shall mean:

**1.** A specialized passenger motor vehicle in which a minimum of five (5) passengers can ride in the rear passenger compartment. The driver's seat is separated from the passenger's compartment by a partition that can ensure privacy for the rear passengers; or

**2.** A luxury sedan; luxury, as defined by the manufacturer of the vehicle. A paratransit company may operate a luxury sedan as a Limousine, provided they also have an equivalent number of specialized passenger motor vehicles. The certificate holder must license one (1) specialized passenger motor vehicle for every four (4) luxury sedans.

**3.** The vehicle shall not be equipped with a taximeter and shall be for hire only by prearrangement at a rate charged per hour or fixed in advance, as long as the fixed rate is for a minimum period of one (1) hour, provided that all such vehicles are:

**a.** For hire for continuous periods of one (1) hour or more, whether actually used for one (1) hour or not;

**b.** Of a type and configuration not generally licensed as a taxicab or bus in the City;

**c.** Not to cruise in search of patronage and not to park in any public street, or in any public or private place of assemblage soliciting patronage not prearranged. This shall be interpreted to preclude the parking of vehicles at any location while awaiting passengers.

**Mayor** shall mean the Mayor of the City of Tulsa, or designee.

**Metropolitan Tulsa Transit Authority** shall mean the public trust organized for the purpose of operating transportation within the City of Tulsa under the trade name of Tulsa Transit.

**Mortuary Limousine** shall mean a vehicle customarily and primarily used to transport a funeral party.

**Paratransit Vehicles** shall mean antique, classic or special interest vehicles for hire, limousines, physically limited transport vehicles, wheelchair transport vehicles, buses, peda-cabs, sightseeing vehicles, rickshaws and horse-drawn carriages for hire.

**Peda-Cab** shall mean a chauffeur-driven, non-motorized conveyance for hire, propelled by human power, having two (2) or more wheels, with power transmitted from the pedals to the wheels by means of a belt, chain, gears or any combination thereof, designed and constructed to carry one (1) or more passengers in addition to the chauffeur.

**Person** shall mean any individual, firm, corporation, company, association, partnership or any combination thereof, or two (2) or more persons having a joint or common economic interest. The word person shall include both the singular and plural.

**Physically Limited Transport** shall mean a chauffeur-driven vehicle for hire which is designed or suited for the transportation of the ambulatory elderly or physically limited, where no medical assistance is required en route to the passenger's destination and where stretcher transportation is not required. Stretcher transportation is deemed necessary when the passenger is not capable of sitting and is not ambulatory. Physically Limited Transport is to be used only by those who are physically unable to utilize a standard taxicab service.

**Prearranged** shall mean an agreement to provide transportation by registration in advance of boarding from a specific location in an antique, classic or special interest vehicle for hire, or a limousine at an agreed-upon rate for a minimum of a one-hour period without regard to whether the trip requires less than one (1) hour or not. The key factor in determining the cost of a prearranged limousine service shall be the length of time the vehicle is in use, measured in hourly increments or an agreed-upon fixed rate that exceeds the normal hourly rate for one (1) hour, and not the distance traveled.

**Rickshaw** shall mean a chauffeur-driven, non-motorized conveyance for hire, propelled by human power, having two (2) or more wheels, designed and constructed to carry one (1) or more passengers in addition to the chauffeur.

**School Bus** shall mean a vehicle used primarily for the transportation of a school's students and staff.

**Sightseeing Vehicle** shall mean a chauffeur-driven vehicle for hire, for carrying passengers on a sightseeing tour over a fixed route within the City, for a charge or fare per passenger, per tour trip or per hour, fixed by an agreement in advance or by the purchase of a ticket.

**Street** shall mean any street, alley, avenue, boulevard, drive, place, court, terrace, viaduct, public way or highway commonly used for the purpose of public travel.

**Taxicab** shall mean and include any motor vehicle for hire, designed to carry seven (7) persons or less excluding the chauffeur, accepting passengers indiscriminately on call or demand, for transportation between such points along streets or highways as may be directed by the passenger or passengers being transported.

**Taxicab or Paratransit Service** shall mean a transportation service operated for hire that uses vehicles or other types of conveyances in its operation.

**Taxicab or Paratransit Stands** shall mean parking places reserved for the exclusive use of either taxicabs or paratransit vehicles, whichever designated. The City of Tulsa shall designate such stands, except for those at the Tulsa International Airport, which shall be designated by the Tulsa Airport Authority and approved by the City Council. The locations of all such stands shall be filed with the Director.

**Taximeter** shall mean any approved, internally mounted instrument, appliance, mechanism or device which records mechanically, electrically, electronically, or any combination thereof, and which calculates and displays the fare based upon any of the rate-setting criteria set forth in this chapter.

**Traffic Violation** shall mean a violation of any offense described or listed in Title 37, Chapter 6, of the Tulsa Revised Ordinances, regardless of where the violation occurred.

**Utility Vehicle:** For purposes of this Chapter, the definition set out in 47 O.S. § 1102 (39) shall also apply throughout this Chapter. A utility vehicle is defined as a vehicle that is powered by an internal combustion engine, manufactured and used exclusively for off-highway, equipped with seating for two or more people and a steering wheel, traveling on four (4) or more wheels. This definition is republished here for convenience only, and the definition set out in 47 O.S. § 1102 (39), as amended from time to time, is controlling for all purposes.

**Utility Vehicle for Hire:** A utility vehicle for hire is one driven for commercial (profit) reasons or when money or anything of value is paid to the driver or to the holder of the utility vehicle for hire certificate in exchange for the transportation of a person as a passenger within the I.D.L., exclusively.

**Waiting Time** shall mean such time consumed or lost at the request or direction of a passenger or his agent after the acknowledgment of the arrival of the taxicab or paratransit vehicle and before reaching the destination. Waiting time also includes time lost as a result of congested traffic and controlled intersections.

**Wheelchair** shall mean a chair mounted on wheels, allowing an individual mobility in a sitting position, not altered or manufactured to allow the individual's position to be changed to a horizontal state.

**Wheelchair Transport** shall mean a chauffeur-driven vehicle for hire which is designed or suited for the transportation of wheelchair-confined persons while such persons are sitting in their wheelchairs.

*(Ord. No. 23483, § 1, 4-28-2016; Ord. No. 23779, § 1, 9-13-2017)*

**Section 102. Exclusions.**

**A.** This chapter shall not apply to the following categories of vehicles and services:

**1.** Hearses and mortuary limousines when used as funeral vehicles;

**2.** Ambulances;

**3.** Taxicabs and paratransit vehicles which carry passengers only from a point outside the city limits to a point inside the city limits or which carry passengers only from a point inside the city limits to a point outside the city limits;

**4.** School and church buses when used for school or church purposes;

**5.** Vehicles which are rented or leased to the public without a driver;

**6.** Vehicles operated by the Metropolitan Tulsa Transit Authority;

**7.** Vehicles operated on a share-the-expense plan, such as car pools; and

**8.** Vehicles providing transportation network vehicle services, defined as providing a ride to passengers for compensation arranged through a transportation network company's digital platform.

**B.** Courtesy vehicles, as defined in this chapter, are exempt if they meet the following conditions:

**1.** The courtesy vehicle shall have a sign thereon bearing the words "NOT FOR HIRE" in letters no less than three (3) inches high. The sign shall be provided by

the Director at no cost to the owner or operator of the courtesy vehicle and shall be displayed on the front dashboard in such a manner that the words are clearly visible to prospective passengers from the outside of the vehicle; and

**2.** The courtesy vehicle shall have a sign therein, easily seen by the vehicle's passengers, which shall state that neither the business nor the chauffeur of the vehicle is permitted to collect or accept compensation in any manner whatsoever for the transportation service provided. The sign shall be provided by the Director at no cost to the owner or operator of the courtesy vehicle.

**C.** The provisions of this chapter shall not be construed to limit any rights or powers which the Tulsa Airport Authority may have to regulate the operation of taxicab and paratransit vehicles on airport premises. Airport rules and regulations shall be approved by the Council and filed with the Director and with the City Clerk.

*(Ord. No. 23483, § 1, 4-28-2016; Ord. No. 23521, § 2, 7-21-2016)*

**Section 103. Administration and appeals.**

**A.** The Mayor shall have the power and it shall be his duty to administer the provisions of this chapter and, when necessary, to adopt and implement rules and regulations consistent with the intent of this chapter. Such rules and regulations shall be approved by the Council and filed with the City Clerk.

**B. Notice of adverse action.** If the Director or his authorized representative proposes to take any action adverse to an applicant, holder, chauffeur, licensee or permittee, he shall establish a time, date and place for an administrative hearing and shall notify such person (hereinafter "respondent") of the pending action at the respondent's address contained on his most recent application. If no address is included in the most recent application, notice shall be served in care of the certificate holder with which the respondent is associated. The notice shall be served on the respondent personally or by United States Mail, certified, return receipt requested. The notice shall be served or postmarked no later than seven (7) days preceding the date of the administrative hearing and shall:

**1.** Set forth in detail the proposed action and the reasons therefore;

**2.** Designate any section of this chapter, any statute, ordinance or other authority which requires or supports the proposed action;

**3.** Set forth the date, time and place of the administrative hearing;

**4.** Advise the respondent that he may be present at such hearing to provide reasons why the proposed action should not be taken; and

**5.** Advise the respondent that if he fails to appear at the administrative hearing, action may be taken in his absence.

Copies of such notice shall also be sent to the complaining party, if applicable, and to all certificate holders.

**C. Administrative hearing.** An administrative hearing shall be held on the date and time and at the place contained in the notice described above.

**1.** If the respondent appears, he shall be afforded an opportunity to be heard. Following the hearing, the Director may take or refrain from taking the proposed action or may modify the same by placing reasonable conditions on the respondent, or otherwise, according to the provisions of this chapter.

**2.** If the respondent fails to appear, notice of the decision made or action taken shall be given to all parties, and unless appealed to the City Council as hereinafter provided, such decision shall be final and binding ten (10) working days from and after the date of the decision.

**3.** Notice of the action taken or decision made shall be given by certified mail, return receipt requested or by personal delivery to the respondent, at the address given in the respondent's most recent application, or if none, in care of the certificate holder with which the respondent is associated.

**4.** The respondent shall be advised of his right to appeal the action or decision to the City Council.

**D. Appeals to the Council.** Any person aggrieved by a decision of the Director may file an appeal to the Council by filing a written notice of appeal with the Council Secretary and the Director within ten (10) working days of the date of the decision complained of. Such notice shall specify the grounds for the appeal. A hearing on the appeal shall be heard by the Council not later than fifteen (15) days from the date of filing the notice of appeal. If an appeal is filed, the Director shall notify the complaining party, if applicable, and all certificate holders.

**E. Enforcement stayed.** If an appeal of the Director's decision is made to the Council, enforcement of such decision shall be stayed until the Council has rendered its decision, unless the Director certifies to the Council that a stay would cause imminent danger to life or property.

**F. Administrative costs and passenger restitution.** Any determination by the Director regarding whether or not an applicant, holder, chauffeur, licensee or permittee has failed to comply with any of the provisions of this chapter may also include the requirement that the applicant, holder, chauffeur, licensee or permittee pay a sum not to exceed Five Hundred Dollars ($500.00) to defray administrative costs associated with the investigative and administrative hearing process. Should the Director's determination include a finding that an applicant, holder, chauffeur, licensee or permittee, pursuant to this chapter, requested, demanded or arranged for compensation in an amount greater than the lawful taxicab or paratransit vehicle rate authorized for the service provided, the Director is authorized to require the applicant, holder, chauffeur, licensee or permittee to pay restitution to the passenger/customer equal to the amount of the overcharge.

*(Ord. No. 23483, § 1, 4-28-2016)*

## Section 104. Certificate required.

**A.** A person shall not operate a taxicab, paratransit vehicle or utility vehicle for hire within the City unless he is in possession of a current and valid certificate.

**B.** Certificates shall not be sold, assigned or otherwise transferred.

**C.** All holders currently authorized to operate their service in the City of Tulsa shall have ninety (90) days from and after the effective date of this ordinance to comply with all the provisions of this title, except that certificate fees shall be due and payable on June 30.

*(Ord. No. 23483, § 1, 4-28-2016)*

## Section 105. Requirements for certificate holders.

Holders of certificates shall meet the following requirements.

**A.** The holder must be at least eighteen (18) years of age if the holder is an individual.

**B.** The holder must be a citizen of the United States and a resident of the state of Oklahoma or, if the holder is an alien, he must be legally residing in the United States and be authorized to engage in employment or business.

**C.** If the holder is other than an individual, each individual who is an officer or partner in the business shall be considered a holder and must sign the application.

**D.** The holder shall not have had a franchise, certificate, license or permit to do business as a taxicab, paratransit service or utility vehicle for hire revoked by any jurisdiction within the five (5) years immediately preceding the date of the application.

**E.** The holder shall have secured and filed with the Director the location for its office within the City of Tulsa which shall be used for the maintenance of its records required under this chapter and for its lost and found.

**F.** The holder of a taxicab certificate shall use taximeters in all its taxicabs, shall have a proposed color scheme and vehicle markings conforming to Section 137 of this chapter, and shall have a current and valid FCC license.

**G.** The holder shall be financially responsible according to the provisions of Section 111 of this chapter.

**H.** The holder shall have filed a schedule of fares with the Director according to the provisions of Section 134 of this chapter.

**I.** The holder shall not have been convicted of any felony or of any crime involving prostitution or prostitution-related offenses, public lewdness, sexual offenses or controlled-substance-related offenses, unless ten (10) years shall have elapsed from the date of conviction or release from confinement, whichever is the later date.

**J.** The holder of a taxicab certificate or utility vehicle for hire certificate shall have furnished evidence to the Director that at least ten (10) taxicabs or utility vehicles will be used in the service. Such evidence shall include the number of taxicabs or utility vehicles to be used, and the make, model, type and vehicle identification number of each.

**K.** The holder of a paratransit certificate shall have furnished the Director the make, model, type and identification number of all vehicles to be used in the service.

**L.** The holder shall have a single trade name.

**M.** The holder shall have a telephone number published in a Tulsa telephone directory of general circulation.

*(Ord. No. 23483, § 1, 4-28-2016)*

## Section 106. Certificate application.

**A.** An application for a certificate shall be on a form furnished by the Director. It shall be verified by the applicant and filed with the Director and shall include documentary proof of meeting, or the ability to meet upon entering service, the requirements in Section 105 of this chapter. The application expires if the applicant has not completed the process and received a certificate within one hundred twenty (120) days from the application date, unless additional time is justified by the Director.

**B.** The Director shall make or cause to be made such investigation as he may deem necessary regarding the character, experience and qualifications of each person with a direct interest in the applicant's business; provided, however, that such investigation shall include forwarding such person's fingerprints and relevant personal data to the Oklahoma State Bureau of Investigation and the City Police Department for investigation and report.

**C.** Each application shall be accompanied by a Seventy-Five Dollar ($75.00) processing fee and a fee of Twenty Dollars ($20.00) per person for each background investigation in excess of two (2). In addition, every application shall be accompanied by a Nineteen Dollar ($19.00) fingerprint fee, assessed to defray the cost of processing and investigation.

**D.** Each application shall designate the type of service or services for which the applicant is applying, either taxicab, paratransit service or utility vehicle for hire. If the application is for paratransit service, it shall further designate the type of such service, such as wheelchair transport, physically limited transport, horse-drawn carriages, peda-cabs, rickshaws, or other service.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 107. Certificate issuance.

If the Director finds that the application is complete and that applicant has met the requirements set forth in Sections 105 and 106 herein, he shall issue a certificate to the applicant. The Director shall review the application within a reasonable time after its completion.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 108. Certificate fees.

**A.** An annual certificate fee calculated on the basis of Thirty-Six Dollars ($36.00) per vehicle shall be assessed for each taxicab, paratransit vehicle or utility vehicle for hire, regardless of when the vehicle is placed in service. The fee may be prorated on a quarterly basis for the first issuance only. The certificate fee shall be assessed annually for the period from May 1 through April 30 of the following year.

**B.** If the holder requests to change the trade name of his taxicab, paratransit or utility vehicle for hire service, an administrative fee of Twenty-Five Dollars ($25.00) shall be paid.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 109. Certificate renewal.

On or before April 30 of each year, the holder may renew his certificate by the payment of the fees herein required, unless the Director finds that the holder is not in compliance with any of the provisions of this chapter.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 110. Certificate suspension or revocation.

**A.** The Director may suspend a certificate for a definite time period, not to exceed thirty (30) days, if he determines that the holder:

**1.** Has interfered with the Director or other enforcement personnel in the performance of his duties;

**2.** Has intentionally and knowingly failed to comply with any of the provisions of this chapter;

**3.** Has failed to collect or remit any city or state sales tax due on passenger fares as required by law, or has had his sales tax permit canceled or revoked;

**4.** Has failed to pay a certificate fee at the time it was due;

**5.** Has employed as chauffeurs persons not holding current and valid City chauffeurs' licenses;

**6.** Has failed to abide by the rules and regulations promulgated by the Mayor or the Tulsa Airport Authority adopted pursuant to this Code;

**7.** Knows when one of his chauffeurs is in violation of any provision of this chapter and fails to notify the Director within forty-eight (48) hours of such knowledge; or

**8.** Has employed chauffeurs who have, in the immediately preceding twelve (12) month period, in the aggregate, accumulated disciplinary actions equal to or greater than twenty percent (20%) of the number of chauffeurs operating under a holder's certificate. The number of chauffeurs operating under a holder's certificate for purposes of this subsection shall be based on the highest number of chauffeurs operating under the holder's certificate during the immediately preceding twelve (12) month period.

**B.** Upon curing the cause for suspension, the holder may file a written request for reinstatement with the Director, together with any proof required by the Director. Upon finding that the cause for suspension has been cured, the Director shall reinstate the certificate.

**C.** The Director may revoke a certificate if he determines that:

**1.** The holder, or if the holder is other than an individual, any individual who is an officer or partner in the business, has been convicted of a felony or of any crime involving prostitution, or prostitution-related offenses, public lewdness, sexual offenses or controlled-substance-related offenses, unless ten (10) years have elapsed from the date of conviction or the release from confinement, whichever is the later date; or

**2.** The holder has made a material misstatement in the application which would have been grounds for the denial thereof;

**3.** The holder has had his certificate suspended twice and a third cause for suspension occurs, all within the preceding twelve (12) month period; or

**4.** The holder has otherwise failed to meet the requirements of Section 105.

**D.** After revocation of a certificate, a holder shall not be eligible to make application for a certificate for a period of two (2) years, and subsequent applications must be made in accordance with Section 105 of this chapter.

*(Ord. No. 23483, § 1, 4-28-2016)*

## Section 111. Financial responsibility required.

**A.** The holder of a certificate for a taxicab, paratransit or utility vehicle for hire service shall submit proof of compliance with the financial responsibility requirements for taxicabs of 47 O.S. 1991, § 8-104, as amended.

**B.** The proof of financial responsibility that is required by Subsection 111.A of this chapter shall be in a form acceptable to the City Attorney and shall provide that it may not be canceled or amended without fifteen (15) days' prior written notice to the Director.

**C.** If the holder is at any time not in compliance with this section, it shall not operate its taxicab, paratransit or utility vehicle for hire service; and the Director shall take whatever action necessary to ensure that the service is not operating, notwithstanding the notice requirements of Section 103.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 112. Vehicle permit required.

**A.** It shall be unlawful to operate a taxicab, paratransit vehicle or utility vehicle for hire unless a current and valid City vehicle permit issued for that vehicle is affixed to the windshield of the vehicle.

**B.** A vehicle permit shall be issued only for a taxicab, paratransit vehicle or utility vehicle for hire being operated under a current and valid certificate.

**C.** A vehicle permit shall be valid only so long as the taxicab, paratransit vehicle or utility vehicle for hire is being operated under a current and valid certificate.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 113. Requirements for vehicle permit.

**A.** An application for a taxicab, paratransit vehicle or utility vehicle for hire permit shall be made only by a holder under whose certificate the vehicle will be operated or by the chauffeur who will be driving the vehicle. Any person acting as an agent for an applicant shall provide to the Director proof of his agency, verified and signed by the applicant and notarized. Such application shall include the following information:

**1.** The name of the applicant, the name of the owner of the vehicle and the name of the holder under whose certificate the vehicle will be operated;

**2.** A recommendation from the holder under whose certificate the applicant proposes to do business and proof of the holder's financial responsibility as required by Section 111 herein; and

**3.** The name of the manufacturer, the state license plate number, the model year, serial number and seating capacity of each vehicle and the designation of the vehicle as either a taxicab, a paratransit vehicle or a utility vehicle for hire.

**B.** The state of Oklahoma Certificate of Title shall be exhibited to the Director when the application is filed with the Director. If the owner of the vehicle is a corporation, its certificate of incorporation must also be presented to the Director.

**C.** A nonrefundable application and inspection fee shall be assessed for each taxicab, paratransit vehicle or utility vehicle for hire. Fees may be prorated on a quarterly basis for the first issuance only, and the following amounts shall be assessed annually for the period from May 1 through April 30 of the following year:

**1.** For each taxicab:

| | | |
|---|---|---|
| **a.** | Application Fee | $30.00 |
| **b.** | Inspection Fee | $54.00 |
| **c.** | Permit Fee (original or replacement) | $6.00 |

**d.** Transfer Fee (change of holder) ..... $6.00

**2.** For each paratransit vehicle:

**a.** Application Fee ..... $30.00

**b.** Inspection Fee ..... $30.00

**c.** Permit Fee (original or replacement) ..... $6.00

**d.** Transfer Fee (change of holder) ..... $6.00

**3.** For each utility vehicle for hire:

**a.** Application Fee ..... $30.00

**b.** Inspection Fee ..... $30.00

**c.** Permit Fee (original or replacement) ..... $6.00

**d.** Transfer Fee (change of holder) ..... $6.00

**D.** The annual inspection fee shall include the first annual inspection and one (1) reinspection to determine compliance prior to issuing the vehicle permit. The fee for each additional reinspection shall be Twenty-Four Dollars ($24.00).

**E.** After receipt of the vehicle permit application and inspection fees, the Director shall inspect the vehicle to determine that the provisions of Section 136 of this chapter have been met.

**F.** The Director shall not issue a vehicle permit until the applicant provides proof that:

**1.** The vehicle meets all the requirements of this section, and Sections 136 and 137 of this chapter; and

**2.** The holder under which the vehicle operates is in compliance with Section 111 of this chapter.

**G.** Before a vehicle may be transferred from one holder to another, the new holder or the chauffeur shall pay the required fee for change of holder and shall demonstrate compliance with Sections 111 and 137 of this chapter.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 114. Vehicle permit renewal.

**A.** On or before April 30 of each year, the holder or chauffeur of a taxicab, or paratransit vehicle or utility vehicle for hire service which has been permitted under this chapter may renew the vehicle permit. The Director shall not renew the permit until:

**1.** The annual inspection and permit fees have been paid;

**2.** The vehicle complies with the provisions of Sections 113, 136 and 137 of this chapter; and

**3.** Proof of compliance with Section 111 of this chapter is furnished.

**B.** The Director shall affix the new permit to the windshield of the vehicle.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 115. Removal of vehicle from service.

When a vehicle is removed from service by its holder or pursuant to an order by the Director, the vehicle permit sticker and company markings shall be removed by the Director

or the vehicle owner. The vehicle permit shall then be surrendered to the Director. The Director shall inspect the vehicle and determine that all indications of its service as a taxicab, paratransit vehicle or utility vehicle for hire have been removed.

*(Ord. No. 23483, § 1, 4-28-2016)*

**Section 116. Vehicle permit suspension.**

**A.** The Director may order a vehicle suspended from service for the following reasons:

**1.** Failure to meet the requirements of Sections 113, 136 or 137 of this chapter; or

**2.** Failure of its holder to comply with Section 111 of this chapter.

**B.** Upon ordering a vehicle suspended from service, the permit sticker shall be removed from the vehicle and the vehicle may not be operated as a taxicab, paratransit vehicle or utility vehicle for hire.

**C.** Upon proof of correction of the stated violation, a vehicle may be reinstated and a replacement permit sticker issued upon payment of the required fee.

*(Ord. No. 23483, § 1, 4-28-2016)*

**Section 117. Chauffeur license required.**

**A.** It shall be an offense for any person to drive a taxicab, paratransit vehicle or utility vehicle for hire within the City unless he has a current, valid taxicab, paratransit or utility vehicle for hire chauffeur's license issued under the provisions of this chapter.

**B.** It shall be an offense for a holder to allow a person to drive for hire a taxicab, paratransit vehicle or utility vehicle for hire which is owned, controlled or operated by the holder, unless the person has a current, valid taxicab, paratransit or utility vehicle for hire chauffeur's license.

*(Ord. No. 23483, § 1, 4-28-2016)*

**Section 118. Requirements for chauffeur license.**

**A.** To qualify for a taxicab, paratransit or utility vehicle for hire chauffeur's license, an applicant shall meet the following qualifications; provided, however, that a licensee holding a valid chauffeur's license at the time this title is amended will be eligible to retain his license and renew it annually until such time as an event occurs that renders him incapable of qualifying, pursuant to this section:

**1.** Shall be at least eighteen (18) years of age;

**2.** Shall be a legal resident of the United States and the state of Oklahoma or, if an alien, the applicant shall submit documentation that he is legally residing in the United States and is authorized to engage in employment;

**3.** Shall hold a current, valid driver's license issued by the state of Oklahoma appropriate for the vehicle to be driven;

**4.** Shall not have been convicted of a misdemeanor involving prostitution or prostitution-related offenses, public lewdness, sexual offenses, assault and battery, or controlled-substance-related offenses within the preceding five (5) years;

**5.** Shall not have been convicted of driving under the influence of alcohol or other intoxicating substance, driving while intoxicated or actual physical control of a vehicle while intoxicated, unless five (5) years have elapsed since the date of conviction or release from confinement, whichever is the later date;

**6.** Shall not have been cited or arrested for more than three (3) traffic violations arising out of separate events occurring within any twelve (12) month period for which, during the preceding twenty-four (24) months, the chauffeur or applicant has been convicted;

**7.** Shall not, within the preceding twelve (12) month period, have been involved in more than one (1) automobile accident in which the chauffeur or applicant has been determined to have been at fault;

**8.** Shall not have been convicted of any violent felony offense as defined by 22 Oklahoma Statutes § 982, as amended, or of any offense of hit and run driving, manslaughter or negligent homicide resulting from the operation of a motor vehicle, unless ten (10) years have elapsed since the date of conviction or five (5) years have elapsed since the release from confinement, whichever is the later date, or shall not have been convicted of any other felony offense, unless five (5) years have elapsed since the date of conviction or three (3) years have elapsed since the release from confinement, whichever is the later date;

**9.** Shall not be a person required to be registered pursuant to the Oklahoma Sex Offenders Registration Act (57 Oklahoma Statutes § 581 *et seq.*), as amended;

**10.** Shall not be subject to any outstanding warrants for arrest; and

**11.** Shall have been recommended in writing by each holder for whom he plans to drive. A Fifteen Dollar ($15.00) fee shall be charged for each recommendation filed in excess of one (1).

**B.** The Director shall establish an examination which may include the city and state traffic laws, chauffeurs' duties under this chapter, taxicab, paratransit or utility vehicle for hire regulations, the geography of the City, and the applicant's ability to effectively communicate and make correct change. An applicant shall fail the examination if he has a score of less than sixty (60) percent correct answers. Any applicant failing the examination shall wait thirty (30) days before being re-examined. A non-refundable re-examination fee of Thirty Dollars ($30.00) shall be paid prior to each re-examination.

**C.** Before obtaining a taxicab, paratransit or utility vehicle for hire chauffeur's license, the applicant shall submit a verified application to the Director upon a form provided by the Director. Any false statement of material fact made by an applicant in his application shall be grounds for denial or revocation of the license.

**D.** The applicant for a chauffeur's license shall deliver to the Director a report from a physician licensed by the state of Oklahoma who has examined the applicant within sixty (60) days prior to the application for the license. The physician's report must certify that the applicant does not have any physical or organic defect or condition of such a nature that would affect the applicant's ability to operate a taxicab, paratransit or utility vehicle for hire safely.

**E.** The Director shall make or cause to be made such investigation of the character, experience and qualifications of the applicant as he may deem appropriate and necessary, which investigation shall include forwarding the applicant's fingerprints and relevant personal data to the Oklahoma State Bureau of Investigation and the City Police Chief for investigation and report.

**F.** No taxicab, paratransit or utility vehicle for hire chauffeur's license shall be assignable or transferrable.

**G.** The chauffeur's license herein provided shall be on a form prescribed by the Director and shall contain a picture of the chauffeur, affixed in such a manner that another picture cannot be substituted without detection. The chauffeur's license shall contain the licensee's name, age, height, weight, color of hair and eyes, Oklahoma driver's license number and expiration date. While the taxicab chauffeur is on duty, the license shall be displayed in full view of passengers.

**H.** A non-refundable processing fee of Twenty Dollars ($20.00) shall accompany each application. In addition, every application shall be accompanied by a Nineteen Dollar ($19.00) fingerprint fee, assessed to defray the cost of processing and investigation.

**I.** An additional fee of Sixty Dollars ($60.00) per taxicab chauffeur's license and Sixty Dollars ($60.00) per paratransit vehicle chauffeur's license shall be assessed annually for the period from May 1 through April 30. Annual fees may be prorated on a quarterly basis to no less than Thirty Dollars ($30.00) for the first issuance only.

**J.** If a taxicab, paratransit or utility vehicle for hire chauffeur's license is lost or mutilated, a replacement may be obtained upon payment of a Ten Dollar ($10.00) replacement fee.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 119. Chauffeur license renewal.

On or before April 30 of each year, if he continues to meet the requirements of Section 118, a chauffeur may renew his license upon the submission of an updated application, the payment of the annual license fee and the submission of a new physician's report; provided, however, that a new physician's report shall not be required if the report on file with the Director is less than two (2) years old. Provided that all licenses expiring on June 30, 2005, will be renewed at eighty-three and three tenths percent (83.3%) of annual renewal rates.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 120. Chauffeur license suspension or revocation.

**A. Suspension.** The Director may suspend a chauffeur's license for a period of time not to exceed thirty (30) days if he determines that the licensee has violated any of the provisions of Section 123 of this chapter.

**B. Revocation.**

**1.** The Director shall revoke a chauffeur's license for any of the following reasons:

**a.** Operation of a taxicab, paratransit vehicle or utility vehicle for hire within the City while the chauffeur's license was suspended;

**b.** The making of any false statement of material fact in the application for a chauffeur's license;

**c.** The license has been suspended twice within the preceding twelve (12) months and a new cause for suspension occurs under the provisions of this section; or

**d.** The licensee would fail to qualify as a new applicant under the provisions of Section 118 of this chapter.

**2.** A person whose chauffeur's license is revoked pursuant to subparagraphs 120.B.1.a., b. or c. shall not be eligible for a chauffeur's license for a period of twelve (12) months from the effective date of the revocation.

**3.** A person whose chauffeur's license is revoked pursuant to paragraph 120.B.1.d. shall not be eligible for a chauffeur's license until he can qualify as a new applicant under the provisions of Section 118 of this chapter.

**C. Surrender of license.** After receipt of notice of suspension or revocation, the licensee shall, on the date specified in the notice, surrender his taxicab, paratransit vehicle or utility vehicle for hire chauffeur's license to the Director and discontinue driving a taxicab, paratransit vehicle or utility vehicle for hire within the City.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 121. Temporary chauffeur license.

**A.** A person satisfying all other provisions of Section 118 of this chapter may be issued a temporary chauffeur's license pending the receipt by the Director of a criminal record report as required by Subsection 118.E. herein.

**B.** A processing fee of Sixty Dollars ($60.00) and a temporary license fee of Fifteen Dollars ($15.00) shall be paid prior to the issuance of a temporary license. Upon issuance of the annual license, the temporary license fee shall be credited to the annual fee required in Subsection 118.I.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 122. Falsification of a license or permit.

It shall be unlawful and an offense for any person to:

**A.** Forge, alter, copy or counterfeit a taxicab, paratransit vehicle or utility vehicle for hire chauffeur's license or vehicle permit issued pursuant to the provisions of this chapter; or

**B.** Possess a forged, altered, copied or counterfeit taxicab, paratransit vehicle or utility vehicle for hire chauffeur's license or vehicle permit issued pursuant to the provisions of this chapter.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 123. Rules and regulations.

**A.** It shall be unlawful and a misdemeanor offense for any chauffeur or certificate holder to fail to comply with the following rules and regulations.

**1.** While in charge of or driving a taxicab, paratransit vehicle or utility vehicle for hire, a chauffeur shall have in his possession a current, valid driver's license, appropriate to the vehicle being driven, issued by the state of Oklahoma.

**2.** While on duty, a chauffeur shall display his chauffeur's license in his vehicle in the manner prescribed by Subsection 118.G. of this chapter.

**3.** At all times a chauffeur shall drive his taxicab, paratransit vehicle or utility vehicle in a safe, prudent and careful manner and in compliance with city and state traffic rules and regulations.

**4.** While on duty, a chauffeur shall not engage in any unlawful act.

**5.** Neither the certificate holder nor the chauffeur shall allow a taxicab, paratransit vehicle or utility vehicle to be operated which is in an unsafe operating condition or that fails to meet any requirement of this title.

**6.** A taxicab shall not be operated if it contains an inaccurate or unsealed meter. The chauffeur and certificate holder shall make certain that the approved meter rate is set and that the meter reading is reasonably visible to all passengers at all times.

**7.** The interior and exterior of a taxicab, paratransit vehicle or utility vehicle must be maintained in a clean condition, in good repair and in full compliance with this title. Prior to the beginning of each shift, the chauffeur shall physically inspect the vehicle and make certain the vehicle complies with all provisions of this title.

**8.** A chauffeur shall not monitor or respond to any call for taxicab or paratransit service transmitted through a holder's frequency other than his own. The dispatch radio shall be audible at all times when the taxicab or paratransit vehicle is available for service.

**9.** The certificate holder shall require and the chauffeur while on duty shall present and maintain a clean, neat and well-groomed personal appearance such as not to disparage the community, and generally comply with the following:

**a.** The term "neat and clean" as it relates to clothes shall mean that all clothing is clean, free from soil, grease and dirt and without rips or tears.

**b.** "Clean" means that state of personal hygiene, body and hair cleanliness and absence of offensive body odor normally associated with reasonable clothes laundering and bathing or showering.

**c.** "Well groomed" means beards and mustaches are groomed and neatly trimmed, and scalp and facial hair is neatly trimmed, and combed or brushed.

**d.** A chauffeur, unless otherwise authorized, shall not wear as an outer garment any of the following:

(1) Undershirt or underwear, tank tops, body shirts (see-through mesh);

(2) Swimwear, jogging or warm-up suits, or sweatshirts or similar attire;

(3) Shorts or trunks (jogging or bathing), cut-off shorts;

(4) Open-toed shoes or sandals, or any similar clothing.

**e.** Summer clothing may include Bermuda shorts (hemmed slack material) that extend down to within two (2) inches of the top of the kneecap.

**f.** A chauffeur shall wear a collared shirt as part of the uniform.

**10.** A chauffeur shall provide prompt, efficient service, shall be polite and courteous and shall act in a professional and dignified manner at all times while on duty.

**11.** A chauffeur shall not leave his vehicle in a taxicab or paratransit stand unless time is needed to assist a passenger or unless his absence is due to mechanical or electrical problems with his vehicle.

**12.** A chauffeur shall not induce any person to be transported by any taxicab, paratransit vehicle or utility vehicle for hire by willful misrepresentation.

**13.** A chauffeur shall not dismiss nor discharge any passenger at a point other than the requested destination without good cause. If a passenger is discharged for good cause, it shall be done, if at all possible, at a safe, well-lighted place, convenient to

public transportation. A chauffeur shall immediately notify his holder of any such incident. The holder shall conduct an investigation into the circumstances and, within one (1) working day, report his findings to the Director.

**14.** A chauffeur shall not overcharge any passenger; nor shall he request, demand or arrange for compensation in an amount greater than the taxicab, paratransit vehicle or utility vehicle for hire rate applicable to the service provided.

**15.** A chauffeur shall not solicit a gratuity; however, a gratuity from a passenger may be accepted if it is given voluntarily, without solicitation.

**16.** A chauffeur of a taxicab shall activate the taximeter at the beginning of each trip and deactivate the taximeter upon completion of the trip, providing the customer with the receipt printed by the taximeter, unless the trip is a fixed-rate trip approved as such pursuant to the provisions of this chapter. A chauffeur of a taxicab shall apply all fares in accordance with Section 134.F. of this title.

**17.** A chauffeur shall not attempt to influence the destination of a passenger unless requested by the passenger and shall not accept fees or gratuities from anyone other than the passenger or the passenger's agent.

**18.** A chauffeur shall place the passenger's luggage or packages in and out of the taxicab, paratransit vehicle or utility vehicle for hire when requested to do so.

**19.** A chauffeur shall assist a passenger in and out of his vehicle when requested to do so; provided, however, that the driver shall not be required to lift or carry any passenger.

**20.** Each chauffeur shall complete a separate manifest for each shift of duty on a form approved by the Director and contained as an appendix to this title. The manifest shall legibly and accurately record each trip as it occurs, including the time, place of pickup, destination, number of passengers and the amount charged. Each chauffeur shall retain his manifests in chronological order and they shall be available for inspection by the Director for a period of one (1) year.

**21.** Chauffeurs and passengers shall not smoke in a taxicab pursuant to 21 O.S.Supp.2003, § 1247.A.

**22.** All holders and chauffeurs shall comply with all lawful requests, orders or directives issued by the Director.

**23.** All holders and chauffeurs shall adhere to all rules and regulations promulgated by the Mayor and Tulsa Airport Authority adopted pursuant to this title.

**24.** A chauffeur shall remain on duty for no more than sixteen (16) hours in any twenty-four (24) hour period.

**25.** A chauffeur shall not recommend any hotel or motel, bar, private club, restaurant or other business establishment, nor attempt to divert patronage from one (1) business establishment to another, unless the passenger specifically requests the chauffeur's recommendation.

**26.** A chauffeur shall search the interior of the taxicab, paratransit vehicle or utility vehicle for hire at least once a day for lost articles. If a lost article is found, the Chauffeur shall follow the procedure set forth in Section 128 of this chapter.

**27.** A chauffeur shall immediately report a passenger's refusal to pay a fare to the Police Department, either in person or by telephone.

**28.** A chauffeur shall not fasten or lock the doors of his taxicab or paratransit vehicle in such a way that it is impossible for a passenger to open the doors from the inside.

**29.** Neither a certificate holder nor a chauffeur shall allow a taxicab, paratransit vehicle or utility vehicle for hire to be operated without a current, valid vehicle permit as required by Section 113 of this chapter.

**30.** A chauffeur of any taxicab, paratransit vehicle or utility vehicle for hire shall not transport any number of persons, including the chauffeur, which is greater than the manufacturer's rated seating capacity for the vehicle.

**31.** A chauffeur shall not operate a radio or any other audio device at a volume which might be offensive to a passenger, and he shall change stations or turn off the same upon a reasonable request of the passenger.

**32.** A chauffeur shall not permit a passenger to enter or exit his vehicle on a two-way street by the left rear door when another vehicle is approaching.

**33.** A chauffeur, when requested to do so, may transport and deliver baggage, packages or other types of personal property which are not accompanied by a passenger.

**34.** An off-duty chauffeur shall display signs indicating his off-duty status as required in Section 139 of this chapter.

**35.** A chauffeur may not represent that his taxicab is engaged when in fact it is vacant, nor shall he represent that it is vacant when it is engaged.

**36.** Any person violating any of the provisions of this subsection shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

**B.** It shall be unlawful and a misdemeanor offense for any chauffeur or any certificate holder to fail to comply with the following rules and regulations.

**1.** While on duty or within twelve (12) hours prior to being on duty, a chauffeur shall not partake of any alcoholic beverage, intoxicating liquor, narcotic, sedative, barbiturate, marijuana or any other drug which may impair his driving ability; and, while on duty, a chauffeur shall not have any such beverage or substance in his possession.

**2.** A chauffeur shall not have a firearm, explosive device or illegal weapon in his possession while on duty.

**3.** A chauffeur shall not operate a taxicab, paratransit vehicle or utility vehicle for hire while his ability or alertness is so impaired, or so likely to become impaired because of fatigue, illness or any other cause as to make it unsafe for him to operate the vehicle.

**4.** Any person violating any of the provisions of this subsection shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by imprisonment in the City jail for a period not exceeding ninety (90) days or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by both such fine and imprisonment. Each day in which a violation occurs shall be deemed a separate offense.

*(Ord. No. 23483, § 1, 4-28-2016)*

**Section 124. Additional responsibilities (taxicab service, only).**

**A. Dispatch records.** The date, time and origin of each trip dispatched by the holder shall be immediately recorded on a dispatch record. All dispatch records shall be maintained by the holder and available for inspection for at least one (1) year.

**B. Records and receipts.** The Director may require maintenance of the following current business records necessary for monitoring the activities, operations, service and safety record of a holder: names, birthdates and drivers' license numbers of chauffeurs; a list of vehicles operating under a holder's certificate, including unit number, year, make, model and VIN number; and such other reports as the Director may require. Each holder shall maintain such business records at a single location, according to a method approved by the Director, and shall make its records available for inspection by the Director at reasonable times upon request. Each holder shall submit to the Director such annual and monthly reports concerning its taxicab service as the Director may reasonably require. It shall be the duty of each holder and each chauffeur operating and doing business in the City to furnish any reports or information reasonably requested by the Director.

**C. City-wide taxicab service.** Except as otherwise specifically provided by its certificate, a holder of a certificate for taxicab service shall:

**1.** Provide taxicab service to the general public to and from any point within the City that is accessible by a public street, except that this provision shall not require a holder to subject a taxicab to mob violence or destruction;

**2.** Respond as soon as practicable to each call received for service within the City or, if service cannot be rendered within a reasonable time, inform the caller of the reason for the delay, the approximate response time and with the caller's permission attempt to arrange for another holder to provide the service; and

**3.** Maintain a single dispatch service twenty-four (24) hours each day for the purpose of receiving calls and dispatching vehicles. All taxicab service provided by the holder's chauffeurs shall be arranged through this dispatch service unless such service is directly arranged between the passenger and the chauffeur, in which event the chauffeur shall notify the holder within five (5) minutes of his engagement.

**D. Revocation or suspension.** When the holder has been notified of the revocation or suspension of a chauffeur's license, the holder shall cease transmitting calls for service to the chauffeur. Any holder whose certificate has been suspended or revoked shall not transmit calls for service to any chauffeur or allow his chauffeurs to otherwise conduct taxicab or paratransit service under such holder's certificate.

*(Ord. No. 23483, § 1, 4-28-2016)*

**Section 125. Taxicab, paratransit vehicle and utility vehicle for hire stands.**

**A.** Taxicab, paratransit vehicle and utility vehicle for hire stands shall be clearly designated for taxicabs, paratransit vehicles or utility vehicles for hire.

**B.** The Mayor or his designee may establish taxicab, paratransit vehicle and utility vehicle for hire stands of such character, number and location as are required for the public convenience and necessity.

**C.** A holder may file a written request with the Director for the establishment of a taxicab, paratransit vehicle or utility vehicle for hire stand.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 126. Use of taxicab, paratransit vehicle and utility vehicle for hire stands.

Taxicabs, paratransit vehicles or utility vehicles for hire waiting at designated stands shall be in a single line, facing in the direction required by applicable traffic regulations. Any passenger shall have the right to select any taxicab, paratransit vehicle or utility vehicle for hire, regardless of its position in the line. Upon the departure of any vehicle from the line, other vehicles entitled to use such stand shall move forward. No number of taxicabs, paratransit vehicles or utility vehicles for hire greater than the maximum allowed shall attempt to use any designated stand. No designated stand shall be reserved for any one (1) holder.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 127. Reserved.

### Section 128. Return of passenger's property.

**A.** Upon finding property left by a passenger in a taxicab, paratransit vehicle, or utility vehicle for hire, the chauffeur shall immediately notify the passenger and return the property. If the chauffeur is unable to locate or does not know the identity of the passenger, the chauffeur shall promptly deliver the property to his holder.

**B.** Upon delivery of the property to the holder, the chauffeur shall prepare and deliver to the holder a written report containing the description of the property, the identity of the passenger, if known, the date the property was left in the vehicle, the circumstances relating to the loss and the vehicle number. The holder shall keep the record on file for a period of one (1) year. The holder shall retain the property for a period of not less than three (3) months.

**C.** Any request for the return of the property by the chauffeur who discovered it must be made to the holder during the thirty (30) days following the three-month holding period, referenced in paragraph B. The holder need not honor the chauffeur's request if made beyond this time frame.

**D.** If either the holder or the chauffeur chooses to dispose of the property, said disposition must be in compliance with applicable state law regarding lost goods.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 129. Refusal to transport passengers.

While operating a taxicab, paratransit vehicle or utility vehicle for hire, a chauffeur shall not refuse to transport a person who requests service unless:

**A.** The person is disorderly;

**B.** The chauffeur is engaged in answering a previous request for service;

**C.** The chauffeur has reason to believe that the person is engaged in unlawful conduct;

**D.** The person is in such physical condition that he is apt to soil, stain or foul the interior of the vehicle;

**E.** The chauffeur has reason to fear for his personal safety;

**F.** The person can show no ability to pay fare;

**G.** The prospective passenger is in any way rude or abusive to the chauffeur; or

**H.** In the reasonable judgment of the chauffeur, the situation requires the use of an ambulance.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 130. Delay of passengers prohibited.

When any person employs a taxicab, paratransit vehicle or utility vehicle for hire and occupies it as a passenger, the chauffeur shall not remain parked nor delay the transporting of the passenger to his requested destination for a period exceeding five (5) minutes unless the nature of the service requested by all passengers occupying the vehicle requires such delay.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 131. Passenger limitations.

**A.** While operating a taxicab, paratransit vehicle or utility vehicle for hire, a chauffeur on duty may not transport any person other than a paying passenger.

**B.** A chauffeur may, at his discretion, allow or refuse to allow a passenger to ride in the front seat when there is an unoccupied seat in the rear of the vehicle.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 132. Direct route.

A chauffeur shall transport a passenger to his destination by the most direct and/or expeditious route available unless otherwise directed by the passenger. This provision shall not apply to peda-cabs, rickshaws, sightseeing vehicles or horse-drawn carriages.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 133. Solicitation of passengers.

**A.** A chauffeur may not solicit passengers:

**1.** From a location other than his vehicle or the immediate vicinity of his vehicle;

**2.** In a loud or boisterous tone of voice or by the use of a voice amplification device; or

**3.** By using another person to solicit passengers by directing passengers to his vehicle while waiting at a designated stand.

**B.** A chauffeur shall not solicit the patronage of persons assembled at the terminal of any form of public transportation other than his own, nor at any intermediate points along any established route of any public transportation, when such persons have assembled for the purpose of using the service of the public transportation.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 134. Rates of fare.

**A.** Rates which may be charged by a taxicab certificate holder are subject to the limits of a maximum rate schedule as recommended by the Transportation Advisory Board, and approved by the City Council; provided, if the Transportation Advisory Board fails to

act on a request for change(s) to the maximum rate schedule within forty-five (45) days of receipt, the City Council may take action on the request. The maximum rate schedule shall become effective upon Council approval.

**1.** A fuel surcharge, in addition to the maximum rate schedule, may be approved if recommended by the Transportation Advisory Board, and approved by the City Council; provided, if the Transportation Advisory Board fails to act on a request for approval of a fuel surcharge within forty-five (45) days of receipt, the City Council may take action on the request.

**2.** Prior to initiating the fuel surcharge, holder shall:

**a.** Advise Director, in writing, of its intent to impose the surcharge. Written notice to the Director may be hand delivered or mailed by certified mail to the City Clerk at 175 E. 2nd Street, Suite 260, Tulsa, OK 74103, with proof of delivery;

**b.** Post prominent signage in each vehicle and at the Airport advising the customer of the amount of the approved surcharge;

**c.** Include the surcharge on the itemized customer receipt required by Section 134.F.3.

**3.** After receiving a recommendation from the Transportation Advisory Board, the City Council may withdraw approval of a fuel surcharge, in whole or in part, by giving at least thirty (30) days' written notice of the effective date to the holders; provided, if the Transportation Advisory Board fails to act on a request to withdraw approval of a fuel surcharge within forty-five (45) days of receipt, the City Council may take action on the request.

**B.** Each taxicab certificate holder shall file a rate schedule with the Director at the time of application for a certificate.

**C.** Any amendment to holder's rate schedules shall be filed with the Director at least thirty (30) days prior to the effective date of the new rates. No schedule amending rates of fare shall be filed by any taxicab certificate holder until ninety (90) days shall have elapsed since the Director received the previously filed rate schedule.

**D.** The rate schedule filed by a holder with the Director shall not prevent the charging of any lower rates of fare, nor shall the foregoing provisions prevent the granting of discounts and reduced rates of fare to certain groups of people for promotional or humanitarian reasons or for reasons of goodwill.

**E.** Taxicab rate schedules shall list and include the following items and none other:

**1. Mileage charges after pickup.** This rate shall be calculated on a fixed unit rate per one-fifth (1/5) mile driven. The initial one-fifth (1/5) mile driven may include an initial fare ("Flag Drop"). All mileage units following the initial one-fifth (1/5) mile shall be charged at the one-fifth (1/5) mile unit rate set out in holder's filed rate schedule. The flag drop rate and the one-fifth (1/5) mile unit rate charged shall not exceed the maximum rate schedule.

**2. Waiting time.** The rate for waiting time shall not exceed the maximum recommended by the Transportation Advisory Board and approved by the City Council.

**3. Luggage charges per bag.** Luggage charges must be explained to the passenger in advance of the passenger accepting the taxi service. Luggage charges must be

added to the metered fare at the beginning of the trip by applying them to the meter total by use of the meter's "extra charges" function. Luggage charges shall not exceed Two Dollars ($2.00) per bag.

4. **Toll charges.** Toll charges to passenger shall only include the actual road toll charge the chauffeur paid for the trip.

5. **Extra passenger charges.** Extra passenger charges shall not exceed Two Dollars ($2.00) per extra passenger.

6. **Minimum trip charge.** Holder may include a "minimum trip charge" in its filed rate schedule which may be collected when the charge calculated by the meter is less than the minimum trip charge. The collection by a chauffeur from a passenger of a minimum trip charge (a) in excess of the charge listed in holder's filed rate schedule; or (b) in addition to the meter charge, shall be a violation of Section 123.A.14. of this title.

**F.** A chauffeur of a taxicab shall charge a rate of fare and provide a printed receipt as set forth in this Section 134 and further in accordance with the following provisions:

1. A chauffeur shall activate the taximeter at the beginning of each trip and provide the customer a receipt upon completion of the trip that satisfies paragraph 3. hereof; or

2. If the trip is subject to a minimum trip charge pursuant to the provisions of this section, the chauffeur shall activate the taximeter at the beginning of the trip but charge the appropriate minimum trip charge amount and provide the customer a receipt that satisfies paragraph 3. hereof; and

3. The chauffeur shall give the passenger an accurate receipt, printed from the meter at the time of payment. The receipt must include the name of the holder, information identifying the vehicle and its chauffeur, all items for which a charge was made, the total amount paid and the date of payment. The chauffeur shall sign or initial the receipt.

**G.** Taxicab rates of fare and associated charges must be posted on the passenger's side in the front of the vehicle and on both sides in the rear of the vehicle, in a place and manner visible to passengers from both the inside and outside of the vehicle. The holder's name, telephone number and vehicle unit number should be posted on or near the rates of fare information. The information required by this section shall be posted on a form or forms provided by the City. The City shall retain the right to post conspicuous and permanent signs in the immediate vicinity of all taxicab stands, whether located at Tulsa International Airport or otherwise, which clearly indicate taxicab rates of fare to prospective passengers.

**H.** It shall be unlawful and an offense for any passenger to refuse to pay the established rate after employing and using the taxicab, paratransit vehicle, or utility vehicle for hire.

**I.** The fare registered on the taximeter shall not be changed so as to cancel the amount of fare registered until after the fare has been paid or a charge ticket has been made and signed by the passenger.

**J.** A chauffeur may demand proof of ability to pay if he has reasonable cause to suspect that the passenger, due to his physical or mental state, may be unable to pay or may refuse to pay the fare at the point of destination.

**K.** Taxicab rides may be shared with the consent of all passengers under the following conditions.

**1.** When two (2) or more passengers engage a taxicab at the same location but are going to different destinations, the last passenger to leave the taxicab is responsible for the full metered fare plus any extra charges allowed pursuant to this section. When passengers arrive at destinations other than the final destination, the meter shall not be placed in a "hold" position.

**2.** When two (2) or more passengers engage a taxicab at different locations and are going to different destinations, each passenger pays the full metered fare; provided, however, that no extra charges may be assessed and that the meter is placed in a "hold" position when passengers are dropped off.

**3.** When two (2) or more passengers engage a taxicab at different locations but are going to the same destination, both passengers are responsible for their portion of the full metered or fixed fare plus any extra charges allowed pursuant to this section.

**L.** It shall be an offense for any person to call for a taxicab, paratransit vehicle or utility vehicle for hire without intending to use such vehicle upon its arrival; provided, however, that if a vehicle fails to arrive within thirty (30) minutes of the call requesting a vehicle and the holder fails to notify the person who requested the vehicle of such delay, the caller shall not be required to use the vehicle.

**M.** Paratransit rates will be based on the prearrangement of the use of the vehicle. For this section, prearrangement shall mean an advance appointment with a passenger to provide service that was initiated by a person contacting the company by telephone, correspondence or other oral or written communication.

**N.** Utility vehicle for hire rates. Fares shall be at a fixed rate per trip, per hour or other specified time period, and shall be posted in a conspicuous location which can be easily seen by the prospective passengers.

*(Ord. No. 23483, § 1, 4-28-2016; Ord. No. 24128, § 1, 5-1-2019)*

## Section 135. Taximeters.

**A.** Each taxicab operating under a holder's certificate shall have a taximeter which meets the following requirements:

**1.** The taximeter shall accurately register the fare in legible figures which shall be illuminated when the meter is activated. The taximeter shall have the ability to accurately print a receipt that satisfies the provisions of Section 134 of this title. Provided, licensed vehicles must be in compliance with this provision when applying for renewal permits expiring April 30, 2006.

**2.** The taximeter or its drive system shall be sealed at all points at which components, if manipulated, could affect the function or accuracy of the taximeter.

**3.** The design and features of the taximeter shall be subject to approval by the Director to ensure that they comply with this section. Multi-rate meters shall not be permitted unless it shall have been demonstrated to the satisfaction of the Director that such meters have been modified to calculate only the rate of fare currently on file with the Director.

**4.** A holder shall cause each taximeter being operated under his certificate to be maintained in good operating condition.

**B.** The Director may order a taximeter to be tested at any time during normal working hours and a holder or chauffeur shall make the vehicle available for such testing. A notice of such inspection indicating the date thereof shall be affixed to the meter by the Director.

**C.** Any taximeter which deviates more than four percent (4%) from the holder's rates of fare filed with the City shall be immediately removed from service.

**D.** Whenever a holder files an amended rate schedule, the taximeters in all vehicles operating under his certificate shall be adjusted to the new rate schedule and shall be inspected, tested and sealed by the Director prior to entering into service.

**E.** No person owning or operating any vehicle with a taximeter shall offer or let the same for hire, unless the taximeter has been inspected, tested and sealed by the Director and has been found to calculate and register the fare correctly in accordance with the rates filed with the Director and displayed in the vehicle.

**F.** It shall be unlawful for any holder or chauffeur to modify the vehicle or taximeter in any way which would result in an overcharge to any passenger.

*(Ord. No. 23483, § 1, 4-28-2016)*

## Section 136. Vehicle inspections and requirements.

**A.** The Director shall have the authority to inspect vehicles according to the following provisions.

**1.** The Director shall inspect each taxicab, paratransit vehicle and utility vehicle for hire before it is placed into service, annually thereafter and at such other times as he determines necessary for compliance with this chapter.

**2.** If a holder or chauffeur fails to make a taxicab, paratransit vehicle or utility vehicle for hire available for inspection within a reasonable time after being requested to do so, the Director may order the taxicab, paratransit vehicle or utility vehicle for hire removed from service until it is made available for inspection.

**3.** If, upon inspection of a taxicab, paratransit vehicle or utility vehicle for hire, the Director determines that the vehicle does not meet the requirements of this chapter, the Director may order the vehicle to be taken out of service until the requirements are met and the vehicle is reinspected and approved by the Director.

**B.** All taxicab, paratransit vehicles and utility vehicles for hire shall comply with the following requirements for safety, equipment and maintenance, and model year and size of the vehicle; unless the Director issues a written waiver with specific findings that a particular requirement is not applicable because of the design of the vehicle or the nature of its operation.

**1.** Vehicle age requirements:

**a. New applications and renewals.** Except for antique, classic or special interest vehicles for hire, the vehicle's model year shall be no more than eight (8) years prior to the date of the application or renewal;

**b. Age waiver.** Antique, classic or special interest vehicles for hire and vehicles older than eight (8) years will be allowed to renew an existing permit only upon

written waiver of the Director. The waiver shall be issued for vehicles which meet or exceed all applicable taxicab conditions and requirements. An age waiver shall be valid for one (1) licensing year, but may be renewed annually upon application, inspection and approval by the Director.

**c.** **Grandfather clause.** Vehicles with a current permit are exempt as to age as long as the permit is maintained but shall not be subject to renewal beyond the April 2005 period of renewal.

**2.** The vehicle shall be equipped with a heater and an air conditioner, each of which shall be in working order during the appropriate seasons.

**a.** The air conditioning must be in operating condition during the period of April 15 to October 15 of every year. During these months, the air conditioner compressor shall demonstrate adequate performance.

**b.** The heater must be in operating condition during the period of October 16 through April 14 of every year.

**3.** The exterior of the vehicle shall be clean, polished and well-painted.

**a.** Unless significant weather conditions prevail, taxicab, paratransit vehicles and utility vehicles for hire shall be washed as often as needed to keep the exterior in a clean condition. For the purpose of this section, clean condition means free from dirt, grease or other pollution;

**b.** For the purposes of this section, polished means that all surfaces are of a highly developed glossy state; and

**c.** For the purposes of this section, well-painted means that all painted surfaces are free from scratches, oxidation, dents, fading, or other flaws that detract from the appearance of the vehicle.

**4.** The body of the vehicle shall be free from dents, rust and holes not in place when originally manufactured, or such holes necessary for the installation of accessory equipment.

**5.** The taxicab shall be uniform in its color scheme and markings in accordance with the certificate holder's approved color scheme and in accordance with Section 137 of this title.

**6.** All doors shall operate easily, shall close securely from both the outside and inside of the vehicle, and shall be accessible to passengers.

**7.** All vehicle wheels shall have hubcaps attached unless the wheels are of a design which do not require hubcaps.

**8.** All bumpers and body moldings shall be in good condition and properly attached as when manufactured.

**9.** Interior lights and dashboard illumination shall be operable.

**10.** All installed accessory equipment shall be operational.

**11.** Taxicab windows shall not be equipped with shades, curtains, film or coatings to such extent that the occupants of the vehicle cannot be seen from the outside of the vehicle.

**12.** Loose items shall not be placed on the dashboard or rear shelf when the vehicle is on duty.

**13.** Front and rear dashboards shall be free from breaks and cracks, be properly repaired or covered with a mounted dash cover appropriate to the vehicle style.

**14.** The interior of the vehicle shall be clean, sanitized and free from litter and offensive odors. Torn and worn upholstery and carpets and broken seat springs shall be promptly repaired.

**15.** If seat covers are used, they shall cover the front, sides and back of the seat and match in style and color throughout the vehicle.

**16.** The windshield and all windows shall be clean and clear, from both the outside and inside. Cracks in windshield and windows must be less than six (6) inches, and stars or chips must be less than one (1) inch in diameter. No more than three (3) cracks, stars or chips of any size may be allowed in windshield and windows.

**17.** Mirrors shall be attached as when manufactured and not be broken or cracked.

**18.** Car lights or reflector lenses shall not be broken or cracked.

**19.** The trunk of the vehicle shall be clean and free of items or materials that could damage or stain the passenger's baggage and shall be free of any flammable liquids or other hazardous materials. If so equipped, spare tires shall be properly stored as originally manufactured.

**20.** A taxicab shall be equipped with a two-way radio approved by the Director. Radios shall be mounted securely to vehicle.

**21.** The vehicle shall be equipped with seat belts in working order as required by state law.

**22.** A sign or notice provided by the Director containing the name, address and telephone number of the holder, the vehicle number and the telephone number of the Director shall be placed in each vehicle in a place visible to all passengers to assist any passenger who wishes to file a complaint.

**23.** All taxicabs shall have a rigid roof and considered a midsize or a comparable size or larger by the manufacturer.

**24.** Taxicabs shall not leak or drip any fluids other than condensation from air conditioning or exhaust.

**25.** Taxicabs shall not emit grinding noises, squeals, screeches, knocks, smoke emission or other factors that detract from the appearance of the vehicle.

**26.** Taxicab vehicles shall not be excessively out of alignment.

**27.** Taxicab vehicle tire tread shall not be less than $^{4}/_{32}$ inches across tire.

**28.** Taxicab vehicle shocks, springs and struts shall be of good working condition and limit the vehicle from excessive movement.

**29.** Taxicab engine, brakes, transmission and muffler shall all be in good working condition as determined by the Director.

**C.** In the event that a provision of this section imposes a different standard or requirement than does a state inspection standard or requirement, the provision imposing the more restrictive standard or requirement shall govern.

**D.** Any person violating any of the provisions of this section shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

*(Ord. No. 23483, § 1, 4-28-2016; Ord. No. 23779, § 2, 9-13-2017)*

## Section 137. Vehicle design, unit numbers, advertising, cruising lights.

### A. Color scheme and design.

**1.** A holder shall file with the Director for approval a proposed color scheme and distinctive markings for taxicab vehicles operating under its name to ensure that its vehicles are readily distinguishable from the color scheme and markings used by other holders and to ensure that all vehicles operating under one (1) certificate are uniform in their color scheme and markings. Distinctive markings shall include:

**a.** The name of the holder's company affixed to the vehicle's front or rear doors, in letters at least two (2) inches high with one-half (½) inch stroke; and

**b.** The number assigned to each vehicle by the Director, in figures at least three (3) inches high with one-half (½) inch stroke, visible from both sides and the rear of the vehicle.

**2.** If the proposed color scheme and markings are approved by the Director, the holder shall submit to the Director an illustration or photograph of a completely equipped taxicab vehicle displaying the approved color scheme and markings.

**3.** The holder shall use only the approved color scheme and markings for all taxicabs vehicles operated under one (1) certificate. The name of the holder's company and the assigned unit number must be permanently affixed with adhesive or other appropriate method to each vehicle.

**4.** A holder shall not use a color scheme, design or markings which resembles federal, state, county or city enforcement vehicles, Emergency Medical Services Authority (EMSA) vehicles, Metropolitan Tulsa Transit Authority (MTTA) vehicles or Tulsa Fire Department vehicles.

**5.** A holder shall not operate a taxicab vehicle unless such vehicle is painted and marked according to the design approved by the Director.

**6.** If a holder proposes a color scheme or markings which resemble the color scheme or markings of another holder, the holder who has used the color scheme or markings for the greatest length of time shall have priority in its use. In the event the adoption of this section results in requiring a holder to modify its color scheme and/or markings, the holder shall be required to make such modifications only to new vehicles as they are added to the fleet.

### B. Limited Authority for Pink Vehicles.

**1.** A holder shall comply with all of the detailed marking requirements provided herein at all times, however, a holder shall be authorized to paint up to but no more than five (5) of its fleet vehicles pink in recognition of national efforts directed at cancer awareness.

**2.** In the event a holder opts to paint any of its fleet vehicles pink, the driver of each pink vehicle must be in possession of business cards which identify the holder by name, office address and phone number. Each passenger, or a minimum of one adult per family of passengers, shall be given such a business card, to eliminate confusion with another holder who opts to operate pink fleet vehicles.

**3.** The privilege to operate "pink" fleet vehicles shall begin after submission by the Holder to the Director of the completed Request Form furnished by the Director,

who shall have ten (10) business days after such submission to issue to the Holder a modified permit which will include authority to operate for twelve (12) months, a certain number of fleet vehicles, identified therein by VIN#, not to exceed five (5) vehicles.

**C. Vehicle unit number.** The Director shall assign to each holder nontransferable taxicab unit numbers in numerical order according to the estimated yearly need of each holder. The Director shall keep a register of the name of each person, firm or corporation, who has been issued a vehicle permit under this chapter, together with the unit number, permit number and the make and description of each vehicle assigned such numbers. The assigned unit numbers shall not be changed without the Director's approval and the payment of an administrative fee in the amount of Two Dollars ($2.00) for each change.

**D. Advertising.** Lettering or decals upon any windows or windshield shall be allowed only to the extent that the total space so utilized is no greater than five (5) inches by seven (7) inches per window, and that such lettering or decals do not block the view through any window. Taxicab or paratransit vehicles other than limousines shall be permitted to have removable advertising signs upon the roof or rear of vehicles, provided that such signs do not cover the vehicle number, block the view through the rear window of the vehicle or conceal the distinctive color scheme or markings. Paratransit vehicles other than limousines may display advertising on the sides and top of the vehicle.

**E. Cruising lights.** Each holder operating a taxicab service in the City shall have a cruising light affixed permanently or securely to the top of each vehicle operating under its certificate. Paratransit vehicles shall not be required to be equipped with cruising lights.

*(Ord. No. 23483, § 1, 4-28-2016)*

**Section 138. Report of accidents.**

**A.** In the event that any taxicab, paratransit vehicle or utility vehicle for hire is involved in an accident, the chauffeur shall immediately notify the City Police Department and shall, within twenty-four (24) hours, make a full and complete written report of such accident to the Director and the holder under whose certificate he operates.

**B.** In the event that any passenger in a taxicab, paratransit vehicle or utility vehicle for hire is injured from any cause or in the event that any person is injured by being struck by a taxicab, paratransit vehicle or utility vehicle for hire, the chauffeur shall immediately notify the City Police Department and shall, within twenty-four (24) hours, make a full and complete written report to the holder and Director.

*(Ord. No. 23483, § 1, 4-28-2016)*

**Section 139. Off-duty status.**

**A.** When a chauffeur is off-duty, he shall display signs provided by the Director in an upright position in both the right front and back windows of his taxicab or paratransit vehicle so as to be easily seen and read from outside the vehicle.

**B.** An off-duty chauffeur shall not park his vehicle at a taxicab or paratransit stand or on a public street within fifty (50) feet of a taxicab or paratransit stand, unless it is parked at a metered parking space.

*(Ord. No. 23483, § 1, 4-28-2016)*

## Section 140. Enforcement.

**A.** The Director shall establish a procedure and designate an inspecting official to inspect, investigate and monitor the chauffeurs, holders, taxicabs, paratransit vehicles and utility vehicles for hire to ensure compliance with this chapter. Officers of the City Police Department are empowered to and shall assist in the enforcement of this chapter.

**B.** An inspecting official, upon finding a violation of this chapter, may issue a citation or refer the violation to the Director for an administrative hearing pursuant to Section 103 of this chapter.

**C.** An inspecting official or a City of Tulsa Police Officer may suspend from operation immediately any taxicab, paratransit vehicle or utility vehicles for hire for safety reasons.

*(Ord. No. 23483, § 1, 4-28-2016)*

## Section 141. Renewal time limit, penalties.

All licenses, permits and certificates may be renewed according to the provisions of this chapter within two (2) months prior to their expiration date. A holder's certificate, a chauffeur's license or a vehicle permit which has not been renewed on or before its expiration date shall be subject to the following penalties:

| | |
|---|---|
| Chauffeur's License | $15.00 |
| Vehicle Permit | $20.00 |
| Certificate | $100.00 |

provided, however, that such licenses, permits and certificates which have not been renewed within ninety (90) days following their expiration date shall not be renewed.

*(Ord. No. 23483, § 1, 4-28-2016)*

## Section 142. Reserved.

## Section 143. Wheelchair transport service.

In addition to all the other applicable requirements of this chapter, a holder or chauffeur offering wheelchair transport service must comply with the following special requirements.

**A.** Wheelchair transport vehicles must be designated by the manufacturer as a van and must have the following equipment:

**1.** Electrically or hydraulically operated lift mechanisms or ramps with a nonskid surface to accommodate the loading and unloading of a passenger confined to a wheelchair;

**2.** A positive means of securing a wheelchair to the inside of the vehicle to prevent any lateral, forward, backward or vertical motion of the wheelchair within the vehicle;

**3.** A rear-view mirror which enables the chauffeur to view the passengers;

**4.** Outside rear-view mirrors on both sides of the vehicle; and

**5.** Emergency exit door or doors at the rear of the vehicle.

**B.** A wheelchair transport vehicle may accept as passengers wheelchair-confined persons when such persons remain in a sitting position within the chair during transport.

**C.** The holder shall comply with the requirements of Section 111 of this chapter with the following increased limits: a comprehensive automobile liability insurance policy covering each owned, hired and non-owned vehicle operating under his certificate in the amount of Three Hundred Thousand Dollars ($300,000.00) combined single limit.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 144. Physically limited transport service.

**A.** It is the purpose of this section to provide for a specialized transportation service to meet the needs of the elderly, the physically limited or persons requiring special attention but not requiring medical assistance, stretcher transportation or emergency services.

**B.** In addition to all the other requirements of this chapter, a holder or chauffeur operating a physically limited transport vehicle shall comply with the special requirements given herein. It shall be unlawful for a person or holder operating a physically limited transport vehicle knowingly to:

**1.** Respond to a call where emergency medical services or ambulance transportation is medically necessary;

**2.** Respond to a call for the transportation of a person requiring a stretcher;

**3.** Respond to a call where a passenger's condition is such that the use of an ambulance is indicated;

**4.** Respond to a call for an emergency transfer to a hospital;

**5.** Respond to a call for transportation of a passenger who can be moved to and from the transport vehicle only by a stretcher or in a horizontal position; or

**6.** Respond to a call for the transportation of a person who under normal circumstances could utilize the services of a standard taxicab company.

**C.** The holder shall, upon receipt of a call for service, make inquiry about whether the call is for emergency, medical or stretcher transportation and if so, the holder shall immediately call for an ambulance licensed under the Revised Ordinances of the City of Tulsa.

**D.** The holder is authorized to make available to its passengers incidental services as may be requested by a passenger.

**E.** The holder shall comply with the requirements of Section 111 of this chapter with the following increased limits: a comprehensive automobile liability insurance covering each owned, hired and non-owned vehicle in the amount of Three Hundred Thousand Dollars ($300,000.00) combined single limits.

**F.** A holder, under this section, may also transport persons confined to wheelchairs if the vehicle is licensed under Section 143 of this chapter.

**G.** Any trade name to be used by a holder under this section shall be submitted to the Director for approval prior to its use.

**H.** It shall be unlawful for a holder to use the terms "ambulance," "non-emergency vehicle," "medical transport" or any other term or name which implies or infers that he is providing medical, stretcher or emergency service.

**I.** A chauffeur of a physically limited transport vehicle shall provide door-through-door escort assistance to all passengers of the service.

*(Ord. No. 23483, § 1, 4-28-2016)*

**Section 145. Horse-drawn carriages.**

**A. Definitions.**

**1. Carriage** shall mean any conveyance which is pulled by one (1) or more horses.

**2. Downtown** shall mean that area bounded by Archer, Houston, Elgin and Eleventh Streets.

**3. Horse** shall mean any horse, donkey, mule or other equine.

**4. Veterinarian** shall mean a practitioner of animal medicine, licensed by the state of Oklahoma, who specializes in either equine or large animal medicine.

**5. Rest break** shall mean a minimum period of ten (10) minutes free from work.

**6. Rest period** shall mean a minimum period of thirty (30) minutes free from work.

**B. Health and welfare of horse.** In addition to all other applicable requirements of this chapter, a holder or chauffeur operating a horse-drawn carriage shall comply with the requirements given herein with respect to the well-being of the horse.

**1. Equine health standards.**

**a.** Before any horse is brought into service, the holder shall have it examined by a veterinarian who shall certify in writing that the animal is suited for the intended use.

**b.** The veterinarian's certification shall identify each horse by name, color, breed, sex, age and weight. The certification shall include any restriction or standards which the veterinarian determines to be necessary for the horse's well-being. Such restrictions or standards shall take into account temperature limits, carriage load limits, terrain, work time limits, rest breaks and periods, shoeing requirements, and breed, weight and animal age limit established in this section.

**c.** Any horse intended to be brought into service shall be on a preventative medicine program which shall include an annual Coggins test; a schedule for deworming every two (2) months; an annual dental examination; and a routine vaccination program, including immunization for sleeping sickness, tetanus, influenza and rhinopneumonitis. The veterinarian shall certify that a preventative medicine program is currently being performed.

**d.** Each horse used by the holder shall be reexamined at least once every ninety (90) days by a veterinarian who shall certify in writing to the Director that the horse remains suited for the intended use. The recertification shall state whether or not the preventative medicine program is still current, and whether or not any restrictions or standards established for the horse have been changed.

**e.** The holder shall furnish a copy of all such certifications and recertifications to the Director within five (5) days of the examination or re-examination.

**f.** The holder shall not place into service any horse that is under the influence of tranquilizing medicine.

**2. Work limits.**

**a.** No horse shall be placed into service for more than eight (8) hours per day. A rest break shall be given to each horse for every fifty (50) minute work period. A rest period shall be given to each horse for every two (2) consecutive fifty (50) minute work periods.

**b.** From April 1 through October 31, inclusive, rest periods shall be in an area shaded from the sun, and the harness shall be removed after appropriately securing the horse.

**c.** A horse which has been in service for four (4) or more hours each day for two (2) consecutive days shall be rested the following day, and shall not be worked at any other location on its day of rest.

**3. Temperature limits.**

**a.** No horse-drawn carriage shall be operated when the horse's respiratory rate equals or exceeds the horse's heart rate, regardless of conditions of climate.

**b.** No horse-drawn carriage shall be operated when the wind chill index, as reported by the National Weather Service, is below zero degrees (0°) Fahrenheit. When the wind chill index is below twenty degrees (20°) Fahrenheit, the horse shall be blanketed during rest periods.

**4. Shoeing requirements.**

**a.** Any horse used on concrete, asphalt or similar street surfaces shall be shod with metal shoes. If borium beads are used, six (6) or more small beads shall be evenly distributed in such a way that the shoe will be level between the hoof and street surface. A good quality, shock-absorbent material shall be used between the horse's hooves and the shoes.

**b.** Shoes shall be refitted every three (3) weeks when used on hard street surfaces and every six (6) weeks when used on dirt surfaces. If a horse is used on both street and dirt surfaces in relatively equal amounts of time, then the refitting schedule shall be every four and one-half (4½) weeks. Any shoe lost during the work period shall be replaced before the horse is brought back into service. The use of heel and toe caulks shall be restricted to operation on dirt surfaces only.

**c.** The horse's hooves shall be trimmed as needed at the scheduled times for shoe refitting. Hooves shall be examined by a certified farrier and a report of the examination shall be submitted in writing to the Director every six (6) months while the horse is in service.

**5. Carriage load limits.** Load limits shall be not more than six (6) persons, including the chauffeur, per horse. There shall be no exceptions to the load limit provided herein.

**6. Terrain limits.** Carriages shall not be placed into service when city streets are covered by ice or snow, nor shall they be placed into service over extremely rough or hilly terrain.

**7. Age and physical limitations.**

**a.** All horses used in a horse-drawn carriage service shall be at least three (3) years old and not more than twenty (20) years old.

**b.** All horses used in a horse-drawn carriage service shall weigh at least one hundred seventy-five (175) pounds per adult person hauled. Whenever teams are used, the same ratio shall prevail.

**8. Feeding and watering schedule.**

**a.** The holder shall have his feeding and watering schedule reviewed and approved by the veterinarian. The horse shall not be overfed on rest days.

**b.** The chauffeur shall not allow the horse to be fed anything other than hay during a rest period. No feeding shall occur during a rest break.

**c.** Cool, potable water shall be made available and offered to the horse during each rest break and each rest period. Watering facilities shall be made available at both the point of departure and the point of arrival.

**9. Miscellaneous regulations.**

**a.** Stabling facilities shall be clean, safe and well maintained.

**b.** A horse shall not be trotted in the downtown area.

**c.** The holder and chauffeur shall be responsible for the safety and welfare of both the horse and the passengers at all times when the horse-drawn carriage is in service.

**d.** Except in conditions of freezing rain or snow, horses when rested for a day shall not be confined to a stall.

**e.** The horse shall be kept clean and well groomed.

**f.** Head check-reins shall not be used.

**g.** The holder shall ensure that the chauffeur properly drives, handles and cares for the horse while it is in service.

**h.** No horse shall be placed into service when it shows signs of lameness or other health problems, or when it has cinch or harness sores.

**C. Carriage requirements.** In addition to all other requirements of this section, a holder or chauffeur operating a horse-drawn carriage shall comply with the operating requirements given herein.

**1. Carriage identification.** The holder shall identify each carriage with the initials of the holder's name followed by a dash and a number assigned by the Director of such size and color as the Director shall designate.

**2. Daily log.** The chauffeur of each horse-drawn carriage shall maintain a daily log with entries for each carriage, identifying the carriage, the horses being driven, the periods of work and rest, the number of passengers carried and the route taken. The chauffeur shall log each entry concurrently with each event. Logs shall be kept in chronological order, maintained at holder's business for a period of one (1) year and presented to the Director upon request.

**3. Operate after dark.** Each horse-drawn carriage operated after dusk shall be equipped with two (2) white or amber front lights which are visible at least seventy-five (75) feet from the front of the carriage and with two (2) red rear lights which are visible at least five hundred (500) feet from the rear of the carriage.

4. **Animal waste control.** The holder shall provide for and hold the chauffeur responsible for the dilution and neutralization of urine, and for removal of fecal matter from city streets. The horse shall be properly diapered to prevent such occurrences when carriage is operated on city streets.
5. **Slow-moving vehicle designation.** Each horse-drawn carriage shall have mounted a triangular "slow-moving vehicle" reflector on the rear of the carriage, the size and design of which shall be approved by the Director.
6. **Braking apparatus.** Each horse-drawn carriage, depending upon its size, may be required by the Director to be equipped with a suitable and efficient manually-operated braking mechanism designed for such carriage.
7. **Safety measures.**
   a. The harness attachment to the horse and to the carriage must have safety devices to ensure that the horse cannot break away from its harness or the carriage. The chauffeur shall inspect the harness each day prior to placing the carriage into service.
   b. The holder shall ensure that the carriage's wheels, suspension, pivoting axle, shaves and tongue/harness trees are all secured to the carriage properly and shall take precautions to prevent the accidental loosening of such appliances. The chauffeur shall inspect the carriage each day prior to placing it into service.
8. **Posting load limit.** The holder shall display in or on the horse-drawn carriage, in plain view of the passengers, a sign clearly specifying the maximum passenger capacity of the carriage.
9. The holder shall be responsible for the chauffeur's compliance with the requirements of this Subsection C.

**D. Chauffeur skill demonstration.** The chauffeur shall demonstrate and exhibit to the Director his ability to properly and skillfully drive, handle and care for the horses pulling the carriage.

**E. Rates of fare.** Fares shall be at a fixed rate per trip, per hour or other specified time period, and shall be posted in a conspicuous location which can be easily seen by the prospective passengers.

**F. Time limits.**

1. Horse-drawn carriage services in the downtown area shall not be operated prior to 6:00 p.m. except on Saturdays, Sundays and on any day of the week which is a nationally observed holiday.
2. Horse-drawn carriage services may also be operated prior to 6:00 p.m. during any annual or special event sponsored by Downtown Tulsa Unlimited; provided however, that such operation shall not be permitted between the hours of 7:00 and 9:00 a.m. and between the hours of 4:00 and 6:00 p.m., whenever such event falls on a weekday.

**G. Traffic regulations.** The holder shall ensure that the chauffeur operates the horse-drawn carriage according to the Traffic Code of the City of Tulsa.

**H. Approval of routes and stops.**

**1.** The holder must have fixed routes as approved by the Director of Public Works and shall not operate during peak traffic periods as specified by the Director of Public Works.

**2.** A chauffeur may pick up and discharge passengers only at specified locations on a specified route as approved by the Director of Public Works.

**3.** If the carriage service operates in a City park, the routes, stops and speed of travel must be approved by the Director of the Parks and Recreation Department or his designated representative.

**I. Miscellaneous.**

**1.** The Director shall have the right to require the holder or any chauffeur of a horse-drawn carriage to remove from service any horse which is ill, overtired, undernourished, overloaded, injured or lame.

**2.** No person shall harass or startle, or attempt to harass or to startle, any horse which is pulling a carriage or is at rest, nor shall any person treat a horse inhumanely when it is in service or at rest.

*(Ord. No. 23483, § 1, 4-28-2016)*

## Section 146. Peda-cabs and rickshaws.

In addition to all the other applicable requirements of this chapter, a holder or chauffeur operating a peda-cab or rickshaw must comply with the following special requirements.

**A.** The holder shall have fixed routes approved by the Director of Public Works and shall not operate during peak traffic periods as specified by the Director of Public Works.

**B.** Fares shall be a fixed rate.

**C.** A chauffeur shall pick up and discharge passengers only at specified locations on a prescribed route approved by the Director of Public Works.

**D.** Each peda-cab or rickshaw operated after dusk shall be equipped with two (2) front and two (2) side lights capable of emitting a white or amber light a distance of at least seventy-five (75) feet from the vehicle, and two (2) rear lights capable of emitting a red light at least five hundred (500) feet from the vehicle.

**E.** Each peda-cab or rickshaw shall have mounted a triangular "slow-moving vehicle" reflector on the rear of the vehicle.

**F.** Each peda-cab or rickshaw shall be equipped with a suitable and efficient braking mechanism.

**G.** Before the holder shall place any peda-cab or rickshaw into service, the holder shall identify such vehicle with the initials of the holder's name followed by a dash and a number assigned by the Director, which number shall be of a size and color designated by the Director and shall not be used on any other vehicle.

*(Ord. No. 23483, § 1, 4-28-2016)*

## Section 147. Utility vehicles for hire.

In addition to all the other applicable requirements of this chapter and all requirements of Title 21 Tulsa Revised Ordinances § 2400 *et seq.*, especially § 2404, a holder or chauffer operating a utility vehicle for hire must comply with the following special requirements.

**A.** The chauffer shall be allowed to operate only within the Inner Dispersal Loop (IDL).

**B.** The holder of a utility vehicle for hire certificate shall have furnished evidence to the Director that at least ten (10) utility vehicles will be used in this service. Such evidence shall include the number of utility vehicles to be used, and the make, model, type and vehicle identification number of each.

**C.** Fares shall be a fixed rate and posted in a conspicuous place easily visible by all passengers prior to boarding.

**D.** Each utility vehicle for hire must accommodate between six and eight passengers. The number of passengers may not exceed the manufacturer's specifications.

**E.** Before the holder shall place any utility vehicle for hire into service, the holder shall identify such vehicle with the initials of the holder's name followed by a dash and a number assigned by the Director, which number shall be of a size and color designated by the Director and shall not be used on any other vehicle.

**F.** The holder shall comply with the requirements of Section 111 of this chapter with the following increased limits: a comprehensive liability insurance policy covering each owned, hired and non-owned vehicle operating under his certificate in the amount of One Million Dollars ($1,000,000.000) combined single limit.

**G.** All utility vehicles for hire must be able to attain a speed of 20 mph but shall not exceed the speed of 25 mph.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 148. Construction.

The operation and effect of any provision of this chapter conferring a general power shall not be impaired or qualified by the granting of a specific power or powers, and to that end each provision herein shall be construed liberally.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 149. Provisions cumulative.

The provisions of this chapter shall be cumulative and nonexclusive and shall not affect any other remedy available at law.

*(Ord. No. 23483, § 1, 4-28-2016)*

### Section 150. Penalties for violation.

**A.** Unless otherwise specifically provided herein, any person violating any of the provisions of this chapter shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by imprisonment in the City jail for a period of not more than ninety (90) days and/or by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, or both fine and imprisonment. Each day in which a violation occurs shall be deemed a separate offense.

**B.** Prosecution for an offense under this chapter shall not prevent the application of other remedies provided by law.

*(Ord. No. 23483, § 1, 4-28-2016)*

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# CHAPTER 2. TRANSPORTATION NETWORK VEHICLE SERVICES (REPEALED)*

*__Editor's note—__This chapter was repealed by Ordinance No. 23521, adopted July 21, 2016.

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# TITLE 37 TULSA REVISED TRAFFIC CODE

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## CHAPTER 1. WORDS AND PHRASES

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Section 101. Words and phrases not defined.
Section 102. Present and future tense; singular and plural references.
Section 103. Gender.

### Section 100. Words and phrases defined.

The following words and phrases when used in this title shall, for the purpose of this title, have the meanings respectively ascribed to them in this chapter:

**All-weather material** shall mean a hard surface, dust-free material capable, during ordinary use, of withstanding without substantial deterioration normal weather conditions. Approved all weather surfaces include concrete, asphalt and other surfaces meeting City of Tulsa engineering standards.

**Alley or alleyway** shall mean any public or private passageway or street, as herein defined, having no legal or official name other than alley and open to traffic.

**Arterial street** shall mean any United States or state of Oklahoma numbered route, controlled-access highway or other major radial or circumferential street or highway designated by the City of Tulsa within its jurisdiction as part of an arterial system of streets or highways.

**Authorized emergency vehicle** shall mean such Fire Department vehicles, police vehicles and ambulances as are owned publicly or by a trust for public purposes, and such other publicly or privately owned vehicles as are designated by the Mayor.

**Bicycle** shall mean every device propelled by human power upon which any person or persons may ride, propelled solely by human power through a belt, chain or gears, and having two (2) or more wheels. Bicycle shall also include tricycles, quadcycles or similar human-powered devices, electric-assisted bicycles and motorized bicycles as defined by the laws of the state of Oklahoma.

**Bicycle lane** shall mean a portion of the roadway designated for bicycle use separated from motor vehicles by a paint stripe, raised divider, marked by signs and/or paint on the roadway, or other traffic control device.

**Bus** shall mean every motor vehicle designed for carrying more than ten (10) passengers and used for the transportation of persons; and every motor vehicle, other than a taxicab, designed and used for the transportation of persons for compensation.

**Cancellation of driver's license** shall mean the annulment or termination by formal action of any department of public safety or like agency of a person's driver's license because of some error or defect in the license or because the licensee is no longer entitled to such license.

**City** shall mean the City of Tulsa, Oklahoma.

**Commercial vehicle** shall mean every vehicle designed primarily for the transportation of persons or property for hire and which has a commercial tag attached or has the business

trade name or the business Federal Identification Number displayed on both sides of the vehicle in letters at least two (2) inches high in a color that contrasts with the vehicle's body color, even though the vehicle displays a passenger tag.

**Controlled-access highway** shall mean every highway, street or roadway with respect to which owners or occupants of abutting lands and other persons have no legal right of access to or from the same except at such points and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.

**Crosswalk** shall mean:

**A.** That part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the roadway measured from the curbs or, in the absence of curbs, from the edge of the traversable roadway; and

**B.** Any portion of a roadway at an intersection or elsewhere distinctively indicated for a pedestrian crossing by lines or other markings on the surface.

**Curb** shall mean the edge of a traversable roadway marked or understood as such.

**Curb side** shall mean the side of a vehicle next to the curb.

**Day** shall mean one-half (½) hour before sunrise until one-half (½) hour after sunset.

**Digital payment** shall mean payment of a parking meter, parking district, or parking facility fee through an online application or by using a mobile device.

**Double park** shall mean the standing of a vehicle, whether occupied or not, upon a roadway where the wheels on the side next to the curb are more than eighteen (18) inches from the curb.

**Driver** shall mean every person who drives or is in actual physical control of a vehicle.

**Dynamic braking device (commonly referred to as engine brakes, compression brakes, C brakes, Pac Brakes, Tek Brakes, Jake Brakes or Jacobs brakes)** shall mean a device used primarily on trucks for the conversion of the engine from an internal combustion engine to an air compressor for the purpose of braking without the use of wheel brakes.

**Electric bicycle** shall mean a bicycle that is propelled in full or in part by an electric motor. Electric bicycles shall be further defined into three classes, as outlined below. All e-bike/electric-assist bikes must follow CPSC Public Law 107-309 for low speed electric bicycles for maximum engine wattage.

**A.** Class I electric bicycle shall mean a pedal-assist bicycle with a maximum assisted speed of twenty (20) miles per hour. Class I electric bicycles may travel on all infrastructure open to a person-powered bicycle.

**B.** Class 2 electric bicycle shall mean a bicycle capable of being powered only by electric power through a throttle, with a maximum assisted speed of twenty (20) miles per hour. Class I electric bicycles may travel on all infrastructure open to a person-powered bicycle.

**C.** Class 3 electric bicycle shall mean a pedal-assist bicycle with a maximum assisted speed of twenty-eight (28) miles per hour, that is restricted from use on shared use paths unless certain conditions apply. People under sixteen (16) years of age cannot ride class 3 electric bicycles.

**Electric personal assistive mobility device** shall mean a self-balancing, two (2) nontandem-wheeled device, designed to transport only one (1) person, having an electric propulsion system with an average of seven hundred fifty (750) watts (one (1) h.p.), and a maximum speed of less than twenty (20) miles per hour on a paved level surface when powered solely by such a propulsion system while ridden by an operator who weighs one hundred seventy (170) pounds.

**Electric scooter** shall mean a device with no more than two ten-inch or smaller diameter wheels that has handlebars, is designed to be stood upon, and is powered by an electric motor that is capable of propelling the device with or without human propulsion at a speed no more than fifteen (15) miles per hour on a paved level surface.

**Explosive** shall mean any chemical compound or mechanical mixture that is commonly used or intended for the purpose of producing an explosion and which contains any oxidizing and/or combustible units or other ingredients in such proportions, quantities or packing that an ignition by fire, friction, concussion, percussion or detonation of any part of the compound or mixture which may cause such a sudden generation of highly heated gases that the resultant gaseous pressures are capable of producing destructive effects on contiguous objects or of destroying life or limb.

**Fire lane** shall mean any street or part of a street upon which parking is either restricted or prohibited for the purpose of facilitating the use or passage of equipment of the Fire Department.

**Gross weight** shall mean the weight of a vehicle without load plus the weight of any load thereon.

**Heavy truck** shall mean a truck rated or licensed to carry a load of one (1) ton or more.

**Highway** shall mean the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

**House trailer** shall mean:

**A.** A trailer or semitrailer which is designed, constructed and equipped as a dwelling place, living abode or sleeping place, either permanently or temporarily, and is equipped for use as a conveyance on streets and highways; or

**B.** A trailer or semitrailer whose chassis and exterior shell is designed and constructed for use as a house trailer, as defined in Paragraph 1, but which is used instead permanently or temporarily for the advertising, sale, display or promotion of merchandise or services or for any other commercial purpose except for the transportation of property for hire or the transportation of property for distribution by a private carrier.

**Identifying number** shall mean the numbers and letters, if any, on a vehicle designated by the Oklahoma Tax Commission for the purpose of identifying the vehicle.

**Inner Dispersal Loop, IDL** or **I.D.L** shall mean the area of the City of Tulsa bounded on the east by U.S. Highway 75, on the west and north by Interstate Highway 244 and on the south by State Highway 51, commonly known as the Broken Arrow Expressway.

**Intersection** shall mean the area embraced within the prolongation or connection of the lateral curb lines, or if none, then the lateral boundary lines of the roadways of two (2)

highways which join one (1) another at, or approximately at, right angles, or the area within which vehicles travel upon different highways joining at any other angle which may conflict, whether or not one (1) such street or highway crosses the other; and

**A.** Where a highway includes two (2) roadways thirty (30) feet or more apart, then every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. In the event such intersecting highway also includes two (2) roadways thirty (30) feet or more apart, then every crossing of two (2) roadways of such highways shall be regarded as a separate intersection; but

**B.** The junction of any alley with a street or highway shall not constitute an intersection.

**Intoxicating beverage** shall mean all beverages containing more than three and two-tenths percent (3.2%) alcohol by weight and all mixed beverage coolers as defined in 37 O.S. 2001, § 506, as amended, regardless of percent of alcoholic content.

**Laned roadway** shall mean a roadway which is divided into two (2) or more clearly marked lanes for vehicular travel.

**Legal holidays** shall mean New Year's Day, Martin Luther King's Birthday, Presidents' Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving Day, the Friday after Thanksgiving, Christmas Eve and Christmas Day.

**License to operate a motor vehicle** shall mean any operator's, commercial chauffeur's or chauffeur's license or any other license or permit to operate a motor vehicle issued under the laws of the state of Oklahoma, including:

**A.** Any temporary license or instruction permit;

**B.** The privilege of any person to drive a motor vehicle, whether or not such person holds a valid license; and

**C.** Any nonresident operating privilege as defined by the Oklahoma Statutes.

**Limit lines** shall mean boundaries of parking areas, loading zones, safety or danger zones, crosswalks and lines marked for the purpose of excluding traffic and parking.

**Loading zone** shall mean the area or space officially set apart within a street, roadway or alley for the purpose of loading and/or unloading vehicles which is so marked by signs as to be plainly visible at all times while set apart as a loading zone.

**Low-point beer** shall mean and include beverages containing more than one-half of one percent (½ of 1%) alcohol by volume, and not more than three and two-tenths percent (3.2%) alcohol by weight, including but not limited to beer or cereal malt beverages obtained by the alcoholic fermentation of an infusion of barley or other grain, malt or similar products.

**May**, as used in this title, is permissive and not mandatory.

**Mobility aid** shall mean a class of three- or four-wheeled-devices designed for and used by persons with mobility impairments, usable indoors, which do not exceed thirty (30) inches in width and forty-eight (48) inches in length, measured two (2) inches above the ground and do not weigh more than six hundred (600) pounds when occupied.

**Motor vehicle** shall mean every vehicle which is self-propelled and every vehicle which is propelled by electric power obtained from overhead trolley wires but not operated upon

rails; provided, however, the definition of "motor vehicle" herein shall not include implements of husbandry, electric personal assistive mobility devices and motorized wheelchairs as defined by the laws of the state of Oklahoma, or vehicles moved solely by human or animal power.

**Motor vehicle escort agency** shall mean any person, firm, corporation, partnership or other recognized form of business entity engaged in furnishing motor vehicle escorts or which employs one (1) or more persons as employees, clerks, assistants or motor vehicle escort guides for such purpose.

**Motor vehicle escort guide** shall mean any person who personally escorts or guides any funeral cortege, any overwidth, overlength, overheight, motor vehicle including mobile homes and other buildings as defined in the Building Code of the City of Tulsa, or any parade procession.

**Motorcycle** shall mean every motor vehicle having a saddle for the use of a rider and designed to travel on no more than three (3) wheels.

**Motorized scooter** shall mean any vehicle having:

**A.** Not more than three (3) wheels in contact with the ground;

**B.** Handlebars and a foot support or seat for the use of the operator; and

**C.** A power source that is capable of propelling the vehicle at a maximum design speed of not more than twenty-five (25) miles per hour on level ground, and:

**1.** If the power source is a combustion engine, has a piston or rotor displacement of thirty-five (35) cubic centimeters or less regardless of the number of chambers in the power source;

**2.** If the power source is electric, has a power output of not more than one thousand (1,000) watts.

**Multi-space parking meter** shall mean a parking meter that controls multiple parking spaces.

**Night** shall mean one-half (½) hour after sunset until one-half (½) hour before sunrise.

**Official police officer's badge** shall mean a badge of the size, type and design approved for the use of regular police officers.

**Official time standard** shall mean standard time or daylight saving time, as may be in current use in the City of Tulsa.

**Official traffic-control devices** shall mean all signs, signals, parking meters, parking meter hoods, barricades, markings and devices not inconsistent with this code which are placed or erected by authority of a public body or official having jurisdiction for the purpose of regulating, warning or guiding traffic.

**One-way traffic** shall mean traffic restricted to movement in one (1) direction.

**Open intersection** shall mean an intersection without any traffic-control device to regulate the flow of traffic entering the intersection.

**Operator** shall mean every person who drives or is in actual physical control of a motor vehicle or who is exercising control over or steering a vehicle being towed by a motor vehicle.

**Overlength, overheight, overwidth motor vehicle** shall mean any motor vehicle that is required by the laws of the state of Oklahoma due to size or configuration to have a permit attached thereto before moving upon the roadways of the state of Oklahoma.

**Owner** shall mean:

**A.** A person who holds the legal title to a vehicle;

**B.** A conditional vendee or lessee, in the event the vehicle is the subject of an agreement for the conditional sale or lease thereof with a right of purchase upon performance of the conditions stated in the agreement and with immediate right of possession; or

**C.** A mortgagor of a vehicle vested with an immediate right of possession of the vehicle.

**Parked** shall mean the standing of a vehicle whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading merchandise or passengers.

**Parking meter** shall mean a device or pay station that has been installed by or on the authority of the City of Tulsa, which shall be capable of being operated, either electronically or mechanically, upon the deposit therein of United States coinage, credit cards, debit cards, digital payment or other forms of payment, based upon the capabilities of the meters installed.

**Passenger** shall mean an occupant in or upon any vehicle other than the driver.

**Passenger curb loading zone** shall mean a place adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers.

**Passenger vehicle** shall mean every motor vehicle, except motorcycles and motor-driven cycles, designed for carrying ten (10) passengers or less and used for the transportation of persons.

**Pay by tag** shall mean a parking system whereas the person parking their vehicle and upon utilizing the proper form of payment, will enter their parked vehicles license plate number or tag number into the parking system. This system will allow the user to move their vehicle within the parking districts until their allotted time expires.

**Pedestrian** shall mean any person on foot or using a wheelchair, mobility aid or an electric personal assistive mobility device.

**Pedestrian overpass** shall mean a structure constructed to traverse a public roadway, ditch, railroad or other obstacle to the free movement of pedestrians and intended primarily for their use.

**Person** shall mean every natural person, firm, partnership, association, corporation or other recognized business entity.

**Police officer** shall mean every sheriff, policeman, highway patrolman and any other officer who is authorized to direct or regulate traffic or make arrests for violations of the traffic laws of the state of Oklahoma or ordinances of the City of Tulsa.

**Private road or driveway** shall mean every way or place in private ownership used for vehicular travel by the owner and those having express or implied permission from the owner, but not open to the use of the public for purposes of vehicular travel.

**Public parking lot** shall mean any parking lot or right-of-way dedicated to public use or owned by the state of Oklahoma or a political subdivision thereof available for public use.

**Railroad** shall mean a carrier of persons or property upon cars, other than street cars, operated upon stationary rails.

**Railroad train** shall mean a steam engine or electric or other motor with or without cars coupled thereto, operating upon rails, other than street cars.

**Registration** shall mean the registration certificate or certificates and/or registration plates issued under the laws of the state of Oklahoma pertaining to the registration of vehicles.

**Residential districts** shall mean the territory contiguous to and including a highway not comprising a business district when the property on such highway for a distance of three hundred (300) feet or more is in the main improved with residences or residences and buildings not used for business.

**Revocation of driver's license** shall mean the termination by formal action by any department of public safety or like agency of a person's driver's license or privilege to operate a motor vehicle on the public highways, which termination shall not be subject to renewal or restoration except that an application for a new license may be presented and acted upon by such department of public safety after the expiration of the period of revocation.

**Rickshaw** shall mean every device propelled by human power upon which any person or persons may ride, propelled solely by human power not through a belt, chain or gears, and having two (2) or more wheels, excluding devices specifically designed to carry infants or small children under forty (40) pounds in weight.

**Right-of-way** shall mean the privilege of the immediate and prior use of the roadway before other traffic, and the term "ROW" as used in descriptions of areas and districts in this title shall mean the land over which that right exists.

**Roadway** shall mean that portion of a highway, exclusive of the shoulder, which is improved, designed or ordinarily used for vehicular travel. In the event a highway includes two (2) or more separate roadways the term "roadway" as used herein shall refer to any such roadway separately but not to all such roadways collectively.

**Safety zone** shall mean the area or space officially set apart within a street for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

**School bus** shall mean every motor vehicle owned by a public or governmental agency and operated for the transportation of children to or from school or privately owned and operated for compensation for the transportation of children to or from school; provided, however, that this definition of school bus shall not be intended to include buses normally used in the City transit which may be used part time for transportation of school children during some portion of the day.

**Semitrailer** shall mean every vehicle with or without motor power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle. It shall be so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.

**Shall**, when used in this title, is always mandatory and never permissive.

**Shoulder** shall mean that portion of the roadway contiguous with the traveled way for accommodation of stopped vehicles for emergency use and for lateral support of base and surface courses.

**Sidewalk** shall mean that portion of the street between the curb lines or the lateral lines of a roadway and the adjacent property lines, intended for the use of pedestrians.

**Single-space parking meter** shall mean a parking meter that controls a single parking space.

**Slow signs** shall mean signs bearing upon their face the word "slow."

**Stand or standing** shall mean the halting of a vehicle, whether occupied or not, other than momentarily, while actually engaged in receiving or discharging passengers.

**State** shall mean a state, territory or possession of the United States, the District of Columbia, the Commonwealth of Puerto Rico or a province of the Dominion of Canada.

**Stop** shall mean:

**A.** When required, a complete cessation of movement; and

**B.** When prohibited, any halting, even momentarily of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal.

**Street** shall mean the whole width between boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

**Suspension of driver's license** shall mean the temporary withdrawal by formal action of any department of public safety or like agency of a person's driver's license or privilege to operate a motor vehicle on the public highways.

**Taxicab** shall mean and include any motor vehicle for hire designed to carry seven (7) persons or less, operated upon any street or highway, accepting or soliciting passengers for transportation; but this classification shall not include motor vehicles of seven (7) passenger capacity or less operated by the owner of the vehicle where the cost of operation is shared by the passengers on a "share the expense plan," nor shall this classification include motor vehicles of seven (7) passenger capacity or less transporting students to or from the school system when such motor vehicle is so transporting under contract with a public, private or parochial school board or governing body.

**Through highway** shall mean every highway or portion thereof on which vehicular traffic is given preferential right-of-way and at the entrances to which vehicular traffic from intersecting highways is required by law to yield right-of-way to vehicles on such through highway in obedience to either a stop sign or a yield sign when such signs are erected as provided in this title.

**Traffic** shall mean pedestrians, ridden or herded animals, vehicles, streetcars and other conveyances, either singly or together, while using any street or roadway for purposes of travel.

**Traffic division** shall mean officers of the Police Department of the City of Tulsa, authorized to enforce this Traffic Code.

**Traffic lane** shall mean the portion of the traveled way for the movement of a single line of vehicles.

**Traffic side** shall mean the street side of the vehicle as distinguished from the curb side.

**Trailer** shall mean every vehicle with or without motor power, other than a pole trailer, designed for carrying persons or property and for being driven by a motor vehicle and is so constructed that no part of its weight rests upon the towing vehicle; provided, however, the definition of a trailer herein shall not include implements of husbandry as defined in 47 O.S. Supp. 1999, § 1-125.

**Truck** shall mean every motor vehicle designed, used or maintained primarily for the transportation of property.

**Truck-tractor** shall mean every motor vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the weight of the vehicle and load so drawn.

**U-turn** shall mean to turn a vehicle around so as to proceed in the opposite direction.

**Vehicle** shall mean every device in, upon or about which any person or property is or may be transported or drawn upon a street or roadway, except devices moved by human power or used exclusively upon stationary rails or tracks; provided that "vehicle" as used in this title shall not include implements of husbandry, mobility aids or electric personal assistive mobility devices.

**Yield signs** shall mean signs bearing upon their face the word "yield."

*(Ord. Nos. 14569, 19825, 20523, 20564; Ord. No. 21982, § 1, 12-18-2008; Ord. No. 22395, § 1, 3-24-2011; Ord. No. 23019, § 1, 1-16-2014; Ord. No. 23037, § 1, 2-6-2014; Ord. No. 23786, § 2, 9-20-2017; Ord. No. 23845, § 1, 1-24-2018; Ord. No. 24018, § 1, 10-24-2018; Ord. No. 24245, § 1, 10-30-2019; Ord. No. 24808, § 1, 4-27-2022)*

### Section 101. Words and phrases not defined.

Where terms are not defined in this title, they shall have their ordinarily accepted meanings or such as the context may imply.

### Section 102. Present and future tense; singular and plural references.

Words used in the present tense include the future; the singular number includes the plural, and the plural the singular when used in this title.

### Section 103. Gender.

Words used in the masculine gender comprehend, as well, the feminine gender and neuter.

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## CHAPTER 2. TRAFFIC ADMINISTRATION

Section 200. Duty of Police Department.
Section 201. Regulations—Procedure.
Section 202. Traffic accident reports.
Section 203. Forms, warrants, bonds and penalties.

### Section 200. Duty of Police Department.

It shall be the duty of the Police Department to enforce the traffic regulations of the City of Tulsa and all the state of Oklahoma vehicle laws applicable to street traffic in the City of Tulsa, on the roadways, streets, alleys and highways within the corporate limits of the City of Tulsa, including upon the roadways, streets and highways that form the boundary line of the City of Tulsa, pursuant to 47 O.S. 2001, § 15-101.1, as amended, to make arrests for traffic violations, to investigate accidents in accordance with the provisions of 47 O.S. 2001, § 10-101, as amended, to assist in the prosecution of those persons charged with ordinance violations causing or contributing to such accidents, to cooperate with the Director of Public Works and other officers of the City of Tulsa in the administration of the traffic laws and in developing ways and means to improve traffic conditions, and to carry out those duties specially imposed by this code.

*(Ord. Nos. 16210, 18454, 21572)*

### Section 201. Regulations—Procedure.

All traffic regulations, except emergency regulations promulgated by the Director of Public Works under the authority granted to him by law, shall become effective upon the marking of the pavement, installation of a traffic-control device or the posting of a sign, signal or notice at the place where such regulation is effective, notifying the public of such regulation.

### Section 202. Traffic accident reports.

**A.** The Police Department shall maintain a suitable system of filing traffic accident reports. Accident reports or cards referring to them shall be filed systematically. Such reports shall be available for the use and information of the City Traffic Engineer or the City Attorney.

**B.** Such records shall accumulate until a five-year (5) period is covered and thereafter such records shall be maintained complete for the most recent five-year (5) period.

### Section 203. Forms, warrants, bonds and penalties.

**A.** There shall be authorized by the Presiding Judge of the Municipal Court and provided by the Clerk of the Municipal Court suitable serially numbered forms for notification of violators to appear and answer charges of ordinance violations. Such forms shall be issued and receipted by the office of the Clerk of the Municipal Court.

**B.** The Police Department shall furnish the Municipal Court one (1) liaison officer to work in conjunction with the Court, to make arrests, to transport prisoners and to coordinate the activities of the Police Department with the activities of the Court in reference to violations of traffic ordinances.

**C.** The Police Department shall designate five (5) field officers whose duty shall be to serve warrants, make arrests, investigate and locate violators and impound vehicles within the provisions of this title.

**D.** The Clerk of the Municipal Court shall make such bonds as may be set by City ordinance or the Presiding Judge of the Municipal Court and may deputize as Deputy Court Clerks those personnel as is deemed necessary. The handling of all monies and fines shall be under the supervision and direction of the Mayor.

**E.** The City by ordinance or in the absence thereof, by administrative order of the Presiding Municipal Judge, shall designate the penalties to be paid for the offenses which may be satisfied by payment at the court. Bail, in the form of a "preset fine," is authorized under the State and Municipal Traffic Bail Bond Procedure Act (22 O.S. 2001, § 1115.1, as amended) and 11 O.S. Supp. 2007, § 28-113, as amended. The amount of bail for designated traffic offenses shall be the amount of fines and costs, including any penalty assessments and/or fees, provided for in Oklahoma statutes and City ordinances. This section establishes preset fines only for those offenses where the violator signs a written promise to appear and no court appearance is scheduled by the issuing officer. This section shall not apply to those offenses that cause the violator to be arrested.

Tulsa Police Officers shall prescribe the fines and penalties for traffic violations according to the schedule outlined below. For purposes of this section, the abbreviation CRT = COURT, ARR = ARREST and ARR/CRT authorizes an officer to exercise the discretion to either arrest the violator or schedule the matter for a court appearance.

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| **LICENSES AND REGISTRATION REQUIREMENTS** | | |
| 400 | No Driver's License | ARR/CRT |
| 401 | Driving Under License Cancellation, Suspension, Revocation or Denial | ARR/CRT |
| 402.A.1 | Displaying a Suspended, Revoked or Canceled Driver's License | $185.00 |
| 402.A.2 | Permitting Use of One's Driver's License or Identification Card by Another Person | $185.00 |
| 402.A.3 | Displaying or Possessing an Altered Driver's License or Identification | $185.00 |
| 402.A.4 | Failure to Surrender a Suspended, Revoked or Canceled Driver's License or Identification Card to D.P.S. upon Demand | $185.00 |
| 402.A.5 | Permitting the Unlawful Use of a Driver's License or Identification Card | $185.00 |
| 402.A.7 | Displaying or Representing as One's Own License or Identification Card not Issued to such Person | $185.00 |
| 402.A.8 | Adding, Deleting from, Altering or Defacing the Required Information on a Driver License or Identification Card | $185.00 |
| 403 | Permitting an Unauthorized Minor to Drive | CRT |
| 404 | Permitting an Unauthorized Person to Drive | CRT |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 405 | Employer Permitting an Unlicensed Person to Drive an Employer's Vehicle | $185.00 |
| 406 | Failure to Exhibit One's Driver's License upon Demand of an Officer | $135.00 |
| 407 | Driving Contrary to a Driver's License Restriction | $185.00 |
| 409.A | Expired or Improper License Plate Display | $135.00 |
| 409.B | Improper Display of Nonresident License Plate | $135.00 |
| 409.C | Improper Display of Commercial License Plate | $135.00 |
| 409.D | Unreadable or Improperly Secured License Plate | $100.00 |
| 412.A | No Valid License for the Class of Vehicle Operated | CRT |
| 412.A.1 | No Valid Class A Commercial Vehicle License | CRT |
| 412.A.2 | No Valid Class B Commercial Vehicle License | CRT |
| 412.A.3 | No Valid Class C Commercial Vehicle License | CRT |
| 412.A.4 | Person Under Age 21 Operating a Hazardous Material Vehicle | CRT |
| 412.B | No Valid License Endorsement for the Type of Vehicle Operated | CRT |
| **STOPPING, STANDING AND PARKING** | | |
| 500 | Meter Parking (Overtime) | $25.00 |
| 502 | Improper Parking at Meter | $25.00 |
| 503D | Unlawful Meter Deposits | CRT |
| 504 | Tampering with Meter | CRT |
| 505 | Parking or Driving Vehicle Declared Nuisance | $100.00 |
| 507 | Parking Prohibited by Signs | $35.00 |
| 508 | Parking Prohibited - Certain Posted Hours | $35.00 |
| 509 | Parking Prohibited - Certain Times | $35.00 |
| 511.A | Parallel Spaces at Meter | $20.00 |
| 511.B | Diagonal Spaces at Meter | $20.00 |
| 511.C | 12" from Curb/Jay Parked | $35.00 |
| 511.D | Not Within Marked Lines | $25.00 |
| 511.E | Opening Vehicle Doors into Traffic | $35.00 |
| 511.F | Unattended Vehicle Engine Running | $35.00 |
| 512 | Commercial Vehicle Not Parked Parallel | $35.00 |
| 513 | Unattended Vehicle Brake Set & Key Removed | $35.00 |
| 514 | Large Vehicle Parked at Night on any Street | $35.00 |
| 515 | Improperly Occupying Vacated Space | $35.00 |
| 516 | Double Parking or Stopping | $35.00 |
| 517.A | Private Vehicle Parked in Alley | $50.00 |
| 517.B | Commercial Vehicle in Alley over 30 Minutes | $50.00 |
| 517.C | Blocking Alley Traffic | $50.00 |
| 517.D | Park Over 30 Minutes in Alley | $50.00 |
| 519 | Park Over 24 Hours | $35.00 |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 520.A.1 | Commercial Vehicle Loading Zone over 30 Minutes | $50.00 |
| 520.A.2.A | Taxi Loading Zone over 30 Minutes | $50.00 |
| 520.A.2.B | Vehicle with Permit Loading Zone over 30 Minutes | $50.00 |
| 520.A.3 | Vehicle Parked Pass Zone over 30 Minutes | $50.00 |
| 520.B.1 | No Loading Zone Permit Pass Vehicle | $35.00 |
| 521.A | Bus/Taxi only at Public Carrier Stands | $35.00 |
| 521.B | No Parking Public Carrier Stands | $35.00 |
| 522.A | Parking on Sidewalk | $75.00 |
| 522.B | Parking Over Sidewalk to any Degree | $50.00 |
| 522.C | Park within Intersection | $50.00 |
| 522.D | Park within 10 feet of Fire Hydrant | $100.00 |
| 522.E | Park Over Crosswalk to any Degree | $50.00 |
| 522.F | Park within 15 feet of RR | $35.00 |
| 522.G | Park within 20 feet of Fire Station Driveway | $75.00 |
| 522.H | Park Obscuring Traffic Control Device | $50.00 |
| 522.I | Park at Exit to Public Building with Open | $35.00 |
| 522.J | Park Between Sidewalk and Curb | $75.00 |
| 522.K | Park Vehicle on Park Grounds | $50.00 |
| 522.L | Park in Fire/Safety Zone | $100.00 |
| 522.M | Park in Front of Public Building over 3 Stories | $35.00 |
| 522.N | Park in Alley | $50.00 |
| 522.O | Park Across Driveway to any Degree | $50.00 |
| 522.P | Park on Controlled Access Highway | $50.00 |
| 522.Q | Park on Public Property not Designated for Parking | $35.00 |
| 522.R | Park on Grass, not on Hard All-Weather Surface | $50.00 |
| 523 | Repair Vehicle in Street | $35.00 |
| 525 A | No Valid Disabled Parking Insignia | $500.00 |
| 525.B.1 | Parking in a Disabled Parking Access Area - Displaying placard | $50.00 |
| 525.B.2 | Parking in a Disabled Parking Access Area - without placard | $500.00 |
| 526 | Unauthorized Use of Disabled Parking Insignia | CRT |
| **MOVING REGULATIONS AND TRAFFIC CONTROL DEVICES** | | |
| 600 | Failure to Obey a Police Officer, Firefighter or School Crossing Guard | $185.00 |
| 602 | Motorcycle Rider Holding on to Another Moving Vehicle | $185.00 |
| 604 | Failure to Yield to an Emergency Vehicle | $250.00 |
| 605 | Following or Parking too Close to a Fire Department Vehicle | $185.00 |
| 606.A | Failure to Proceed Upon Facing a Green Traffic-Control Signal Light | $185.00 |
| 606.B | Improperly Crossing an Intersection While Facing a Yellow Traffic-Control Signal Light | $200.00 |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 606.C | Failure to Stop Before Entering an Intersection While Facing a Red Traffic-Control Signal Light | $250.00 |
| 606.D | Failure to Obey a Green Arrow Directional Signal Light | $185.00 |
| 606.E.1 | Failure to Proceed with Caution While Facing a Flashing Yellow Signal Light | $185.00 |
| 606.E.2 | Failure to Stop or Yield While Facing a Flashing Red Signal Light | $185.00 |
| 606.F | Failure to Yield to a Pedestrian in a Crosswalk, While a Pedestrian Signal is Displaying a "Walk" Indication | $200.00/CRT |
| 606.G | Failure to Stop at a Traffic-Control Signal Not at an Intersection | $185.00 |
| 607 | Disobey a Traffic-Control Device | $185.00 |
| 608 | Unlawfully Display an Unauthorized Traffic-Control Sign or Signal | $185.00 |
| 609 | Avoiding a Street or a Traffic-Control Device | $185.00 |
| 610.A | Failure to Stop at a Stop Sign Before Entering an Intersection | $185.00 |
| 610.B | Failure to Properly Cease All Forward Movement at a Stop Sign | $100.00 |
| 610.C | Failure to Yield the Right-of-Way at a Stop Sign | $200.00 |
| 610.D | Improper Stop at a Stop Sign When Two or More Vehicles are in a Consecutive Line | $185.00 |
| 611 | Failure to Yield the Right-of-Way Upon Approaching a Yield Sign | $185.00 |
| 612.A | Failure to Stop as Required at a Railroad Grade Crossing | $185.00 |
| 612.B | Driving Around a Railroad Crossing Gate or Barrier | $250.00 |
| 613 | Unsafely Starting, Stopping or Turning a Vehicle | $185.00 |
| 614 | Failure to Yield the Right-of-Way When Leaving a Parked Position | $185.00 |
| 615 | Improperly Backing a Vehicle | $185.00 |
| 616 | Failure to Stop Certain Vehicles at a Railroad Crossing | $185.00 |
| 617.A | Speeding in Excess of the Posted Limit | |
| | 1—10 miles per hour over | $150.00 |
| | 11—15 miles per hour over | $210.00 |
| | 16—20 miles per hour over | $250.00 |
| 617.B | Speeding in Excess of Unposted Limit | |
| | 1—10 miles per hour over | $150.00 |
| | 11—15 miles per hour over | $210.00 |
| | 16—20 miles per hour over | $250.00 |
| 617.C | Aggravated Speeding, Greater than 20 Miles Per Hour Over a Posted or Unposted Limit (21 miles per hour & over) | CRT |
| 618 | Driving at an Imprudent Speed for the Conditions Affecting Speed | $200.00 |
| 619 | Speed Less than the Posted Minimum | $185.00 |
| 620 | Speeding Greater than 15 Miles Per Hour Through an Unmarked Intersection | $250.00 |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 621 | Speeding Greater than 10 Miles Per Hour in an Alley | $185.00 |
| 622 | Driving at a Speed too Slow For Conditions and Impeding the Movement of Traffic | $185.00 |
| 623 | Speeding in a School Zone | CRT |
| 624 | Excessive Acceleration | $185.00 |
| 625.A | No Proper Left Turn Signal | $100.00 |
| 625.B | No Proper Right Turn Signal | $100.00 |
| 625.C | No Proper Stop Signal | $100.00 |
| 626 | Use of an Obscured Hand Signal to Indicate Turning, Slowing or Stopping | $150.00 |
| 627 | Disobey a Turn-Control Device | $185.00 |
| 628.A | Improper or Unsafe U-Turn | $185.00 |
| 628.B | Improper U-Turn, Stopping or Backing | $185.00 |
| 628.C | U-Turn Within 500 Feet of a Curve or Crest of Grade | $185.00 |
| 628.D | U-Turn Within a Signalized Intersection | $185.00 |
| 628.E | U-Turn Where Prohibited by a Traffic-Control Device | $185.00 |
| 629.A | Improper Right Turn on Two-Way Streets | $185.00 |
| 629.B | Improper Left Turn on Two-Way Streets | $185.00 |
| 630.A | Improper Right Turn on One-Way Streets | $185.00 |
| 630.B | Improper Left Turn on One-Way Streets | $185.00 |
| 631.A | Improper Right Turn from a Two-Way Street to a One-Way Street | $185.00 |
| 631.B | Improper Left Turn from a Two-Way Street to a One-Way Street | $185.00 |
| 632.A | Improper Right Turn from a One-Way Street to a Two-Way Street | $185.00 |
| 632.B | Improper Left Turn from a One-Way Street to a Two-Way Street | $185.00 |
| 633 | Failure to Yield the Right-of-Way While Turning Left | $185.00 |
| 634 | Entering an Intersection Without Sufficient Clearance for Other Traffic | $185.00 |
| 635 | Failure to Yield the Right-of-Way at an Unmarked Intersection | $185.00 |
| 636.A | Vehicle Unsafely Emerging From an Alley, Driveway or Building | $185.00 |
| 636.B | Vehicle Unsafely Turning Into an Alley or Driveway | $185.00 |
| 637.A | Driving in the Wrong Direction on a One-Way Street | $185.00 |
| 637.B | Driving on the Wrong Side of a Two-Way Street | $185.00 |
| 638 | Driving a Vehicle on a Sidewalk | $250.00 |
| 639 | Driving a Motorcycle or Motorscooter on a Sidewalk | $185.00 |
| 640.A | Failure to Drive in the Right Lane of a Two-Lane Street Except When Overtaking Another Vehicle or Preparing to Turn Left | $200.00 |
| 640.B | Improper or Unsafe Lane Change | $200.00 |
| 640.B | Failure to Signal Lane Change | $100.00 |
| 640.C | Failure of Slower Traffic to Drive in the Right Lane | $200.00 |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 641 | Driving Through Barriers or Barricades Protecting Construction or Maintenance on a Roadway | $250.00 |
| 642 | Driving Over a Fire Hose | $185.00 |
| 643 | Driving Through a Safety, Loading or Unloading Zone | $185.00 |
| 644 | Creation of Unnecessary Noise Within 300 Feet of a Hospital Quiet Zone | $135.00 |
| 645.A | Failure to Remain Alert to the Safe Operation of a Vehicle | $185.00 |
| 645.B | Driver Engaging in an Activity that Interferes with Safe Driving | $185.00 |
| 645.C | Person Interfering with a Driver's Safe Operation of a Vehicle | $185.00 |
| 646 | Drag Racing | CRT |
| 647 | Reckless Driving | CRT |
| 648 | Eluding a Police Officer When Directed to Stop with Red Lights and Siren | ARR |
| 649.A.2 | Driving Under the Influence (DUI) of Alcohol | ARR |
| 649.A.3 | Driving Under the Influence (DUI) of Drugs or Any Other Intoxicating Substance | ARR |
| 649.A.4 | Driving Under the Influence (DUI) of Alcohol Combined with Drugs or Other Substances | ARR |
| 650 | Improper Passing or Failure to Yield to a Passing Vehicle | $185.00 |
| 651 | Passing Across the Center Line on a Multi-Laned Street | $185.00 |
| 652.A | Passing on the Left Half of the Roadway Without Sufficient Clearance to Complete the Passage Safely | $185.00 |
| 652.B | Passing While Approaching the Crest of a Hill | $185.00 |
| 652.C | Passing When the Curve of the Street Obscures the Driver's View | $185.00 |
| 652.D | Passing Within 100 Feet of a Bridge, Tunnel or Viaduct | $185.00 |
| 652.E | Passing Within 100 Feet of an Intersection | $185.00 |
| 652.F | Passing Within 100 Feet of a Railroad Crossing | $185.00 |
| 652.G | Passing Within 100 Feet of a Marked School Zone | $185.00 |
| 652.H | Passing on the Right When to do so Causes the Vehicle to Leave the Roadway | $185.00 |
| 652.I | Passing in a No-Passing Zone Marked by Signs or Pavement Striping | $185.00 |
| 653 | Passing Vehicles on a Motorcycle or Motorscooter Between Lanes of Travel in the Same Direction | $185.00 |
| 654.A | Passing a School Bus with Loading-Warning Signals Activated | CRT |
| 654.C | Unlawful Operation of Red Flashing Warning Lights on a School Bus When Not Loading or Unloading School Children | CRT |
| 656.A.2 | Driving While Impaired (DWI) by the Consumption of Alcohol with Test Results of .06—.07% Blood Alcohol Concentration (BAC) | ARR |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 657 | Transporting or Possessing an Open Container of an Alcoholic Beverage in a Moving Vehicle | CRT |
| 658 | Transporting or Possessing an Open Container of Beer in a Moving Vehicle | CRT |
| 659 | Follow too Closely Without Due Regard to the Speed and Street Conditions | $185.00 |
| 660 | Improper Entry or Exit of a Controlled Access Highway | $185.00 |
| 661.A.1 | Driving Under the Influence (DUI) of Alcohol with Any Measurable Quantity of Alcohol in the Person's Breath or Blood While Under the Age of 21 | ARR |
| 661.A.2 | Driving Under the Influence (DUI) of Drugs or Any Other Intoxicating Substance While Under the Age of 21 | ARR |
| 661.A.3 | Driving Under the Influence (DUI) of Alcohol Combined with Drugs or Other Substances While Under the Age of 21 | ARR |
| 662.A | Operation of a Vehicle Sound Amplification System Audible at a Distance of Fifty (50) Feet or More | $185.00 |
| 663 | Use of Dynamic Braking Device When Prohibited | $135.00 |
| 664.B | Unlawful Possession, Use or Interference with Traffic Signal Preemption Device | CRT |
| 664.C | Unlawful Sale of Traffic Signal Preemption Device | CRT |
| 665 | Unlawful Approach to Stationary Emergency Vehicle | $185.00 |
| 666 | Texting while driving | $100.00 |
| **EQUIPMENT REQUIREMENTS** | | |
| 700 | Knowingly Permitting or Driving, Transporting or Moving an Unsafe Vehicle on Any Street | $135.00 |
| 701 | No Headlight(s) in Use When Required at Night | $135.00 |
| 702 | Disobey Lamp Visibility or Mounted Height Requirements | $125.00 |
| 703.A | Failure to Have Two Headlights on Each Side of a Motor Vehicle | $125.00 |
| 703.B | Failure to Have One or Two Headlights on a Motorcycle or a Motor-Driven Cycle | $125.00 |
| 703.C | Failure to Have Headlights Located 22—54 Inches Above Ground | $125.00 |
| 704 | Failure to Have Headlights Properly Adjusted & Focused | $125.00 |
| 705.A | Failure of High-Beam Headlights to Illuminate at Least Three Hundred Fifty (350) Feet Ahead | $125.00 |
| 705.B | Failure of Low-Beam Headlights to Illuminate at Least One Hundred (100) Feet Ahead | $125.00 |
| 705.C | Failure to Have a High-Beam Headlight Indicator Light Visible to the Driver | $125.00 |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 706.A | Failure to Dim High-Beam Headlights Projected into the Eyes of the Driver of an Oncoming Vehicle Approaching Within Five Hundred (500) Feet | $150.00 |
| 706.B | Failure to Dim High-Beam Headlights When Following a Vehicle Within Two Hundred (200) Feet, Except When Overtaking and Passing | $150.00 |
| 707.A | Failure to Have the Required Number of Tail Lights for the Specified Vehicle Type | $135.00 |
| 707.B | Failure to Have Tail Lights Located 20—72 Inches Above Ground | $125.00 |
| 707.C | Failure to Have a White License Plate Light Rendering the License Plate Readable from a Distance of 50 Feet to the Rear | $135.00 |
| 708 | Back-Up Light Illuminated When in Forward Motion | $135.00 |
| 709.A.1 | More Than Two Spot Lamps on Vehicle | $135.00 |
| 709.A.2 | Spot Lamps Being Used as a Substitute for Headlights | $135.00 |
| 709.A.3 | Failure to Have Spot Lamps Located 30—72 Inches Above Ground | $125.00 |
| 709.A.4 | Failure to Turn Off Spot Lamp Immediately Upon the Approach of Another Vehicle | $135.00 |
| 709.B.1 | More Than Two Fog or Auxiliary Lamps on a Vehicle | $135.00 |
| 709.B.2 | Failure to Have Fog Lamps Mounted Below the Center of Headlights | $135.00 |
| 709.B.3 | Failure to Have Fog Lamps Properly Aimed and Adjusted | $135.00 |
| 709.B.4 | Fog Lamps Used as a Substitute for Headlights in Conditions Without Rain or Fog | $135.00 |
| 710.A | Failure to Have Two Driving Lamps on a Motor Vehicle Other Than a Motorcycle or Motor-Driven Cycle | $135.00 |
| 710.B | More Than Four Lamps In Use on the Front of a Vehicle at the Same Time | $135.00 |
| 710.C | Illumination of Driving, Auxiliary or any Other Combination of Lamps, Other Than Headlights, Within Three Hundred (300) Feet of Approaching an Oncoming Vehicle | $135.00 |
| 711.A | Failure to Have Proper Brake Lights | $150.00 |
| 711.B | Failure to Have Proper Front or Rear Turn Signal Lights on a Vehicle Under 80 Inches Wide | $135.00 |
| 711.C | Failure to Have Proper Front or Rear Turn Signal Lights on a Vehicle Over 80 Inches Wide | $135.00 |
| 711.D | Brake or Turn Signal Lights Projecting a Glaring Light | $135.00 |
| 712.A | Violation of Restrictions on the Use of Special Lamps on a Motor Vehicle | $135.00 |
| 712.B | Unlawful Display of a Red Light Visible From the Front of a Vehicle | CRT |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 712.C | Unlawful Display of Flashing Lights on a Vehicle | CRT |
| 712.D | Blue Lights prohibited | $135.00 |
| 713.A | Failure to Display Parking Lights on a Vehicle Parked on a Roadway or Adjacent Shoulder at Night | $135.00 |
| 713.B | Failure to Dim Headlights on a Parked Vehicle | $135.00 |
| 714 | Failure to Display a Red Lamp or Flag on a Load Projecting Four (4) or More Feet From the Rear of a Vehicle | $135.00 |
| 715.A | Failure to Display Proper Lamps on a Farm Tractor or Farm Equipment | $135.00 |
| 715.B | Failure to Equip Self-Propelled Farm Equipment, Not Having an Electrical Lighting System, with Two (2) Red Reflectors Visible to the Rear | $135.00 |
| 715.C | Failure to Display Required Lamps or Red Reflectors on a Combination of a Farm Tractor and Tow Unit of Farm Equipment, Not Having an Electrical Lighting System | $135.00 |
| 715.D | Failure to Equip Self-Propelled Farm Equipment, Having an Electrical Lighting System, with Required Lamps or Red Reflectors Visible to the Rear | $135.00 |
| 715.E | Failure to Display Required Lamps or Red Reflectors on a Combination of a Farm Tractor and Towed Farm Equipment, Having an Electrical Lighting System | $135.00 |
| 715.F | Failure to Properly Position Lamps and Reflectors on a Farm Tractor or Towed Farm Equipment | $135.00 |
| 716 | Unlawful Operation of Flashing, Warning School Bus Lights | $135.00 |
| 717 | Failure to Equip an Animal-Drawn or Other Vehicle With Required Lamps or Red Reflectors | $135.00 |
| 718 | Unlawfully Equip a Non-emergency Vehicle with a Siren, Without a Permit From the Chief of Police | $250.00 |
| 719.A | Improper or Unsafe Brakes on a Motor Vehicle | $150.00 |
| 719.B | Improper or Unsafe Brakes on a Motorcycle or Motorscooter | $150.00 |
| 720.A | Failure to Have a Horn Which is in Good Working Order, or Illegal Use of a Horn | $135.00 |
| 720.B | Unlawfully Equip or Use a Siren, Whistle or Bell on a Vehicle | $135.00 |
| 721 | Improper, Modified, Loud or Annoying Smoke-Emitting Muffler | $135.00 |
| 722 | Failure to Have a Proper Rear-View Mirror | $135.00 |
| 723 | Operating a Motor Vehicle with a Steering Apparatus Modified from the Original Provided by the Manufacturer of the Vehicle | $135.00 |
| 724.A | Driving with a Windshield or Other Windows Obstructed | $135.00 |
| 724.B | Failure to Have Proper Windshield Wipers | $135.00 |
| 724.C | Failure to Have Windshield Wipers in Good Working Order | $135.00 |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 725 | Failure to Have Proper Rear-View Mirrors on a Motorcycle or Motorscooter | $135.00 |
| 726 | Failure to Have a Proper Motorcycle Windshield, Goggles or Face Shield in Use | $135.00 |
| 727 | Failure to Have Proper Front or Rear Fenders on a Motorcycle or Motorscooter | $135.00 |
| 728 | Motorcycle or Motorscooter Handlebars More Than 12 Inches Above the Crown or Point of the Manufacturer's Attachment | $135.00 |
| 729 | No Proper Speedometer on a Motorcycle or Motorscooter | $135.00 |
| 730 | Operating a Motorcycle with a Suicide Clutch or a Clutch Altered From the Factory Installation | $135.00 |
| 731 | Operating or Riding on a Motorcycle or Motorscooter Without a Helmet for the Driver or a Passenger Under the Age of 18 | $150.00 |
| 732 | Carrying Passengers on a Two or Three-Wheeled Motor Vehicle Without a Seat and Footrests or a Sidecar | $150.00 |
| 733.A | Driver's View Obstructed or Control Interfered with by a Load Being Carried | $135.00 |
| 733.B | Passenger's Position in a Vehicle Interfering with Driver's View or Control | $135.00 |
| 733.C | Operating a Vehicle Constructed in a Manner as to Prevent the Driver from Having a Clear View | $135.00 |
| 734 | Failure to Display Warning Devices on a Disabled Motor Vehicle Towing a House Trailer | $135.00 |
| 735 | Failure to Carry Warning Devices While Operating Certain Vehicles | $135.00 |
| 736 | Improper Towing of a Disabled Vehicle | $135.00 |
| 737 | Driving a Vehicle with an Unsecured Load | $150.00 |
| 738 | Permitting Passengers to Stand on the Open Body of a Truck | $150.00 |
| 740 | Failure to Wear a Properly Adjusted and Fastened Safety Seat Belt in a Car, Pickup or Van | $20.00 |
| 741.A1 | Failure to Utilize a Mandatory Child Passenger Restraint System for Child Under Age 4 | $50.00 |
| 741.A2 | Failure to Utilize a Mandatory Child Passenger Restraint System for Child Ages 4—8, if not taller than 4 feet 9 inches in height | $50.00 |
| 741.B | Failure to Utilize Seatbelt for Child Age 8 or older, or taller than 4 feet 9 inches | $50.00 |
| **ACCIDENTS-DUTIES, REQUIREMENTS AND RESPONSIBILITIES** | | |
| 800 | Leaving the Scene of an Accident Resulting in Damage to a Vehicle Attended or Driven by Another Without Giving Certain Information | CRT |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 801 | Leaving the Scene of an Accident Resulting in Damage to an Unattended Vehicle or Property Without Giving Certain Information | CRT |
| 802 | Failure to Report to the Police Department an Accident Resulting in Injury, Death or Damage to Property Within Twenty-Four (24) Hours | CRT |
| 803 | Interference with a Police Officer Making a Traffic Accident Investigation | ARR/CRT |
| 804 | Failure of a Garage Keeper to Report to the Traffic Division of the Police Department Within Twenty-Four (24) Hours a Motor Vehicle Showing Evidence of Having been Struck by a Bullet | CRT |
| 806 | Failure to Remove Obstructing Vehicle or Cargo from Roadway | $185.00 |
| **ESCORTS AND PROCESSIONS** | | |
| 908 | Driving Between, Through, Along Side or Passing a Funeral Procession | $200.00 |
| **BICYCLES OR MOTORIZED SCOOTERS** | | |
| 1001 | Riding a Bicycle or Motorized Scooter Without a Regular and Permanently Attached Seat | $50.00 |
| 1002 | Riding a Bicycle or Motorized Scooter at a Speed Greater than is Reasonable and Prudent for the Existing Conditions | $50.00 |
| 1003 | Failure to Ride a Bicycle or Motorized Scooter on the Right-Hand Side of the Roadway | $50.00 |
| 1004 | Failure of a Bicycle or Motorized Scooter Operator to Yield the Right-of-Way While Emerging from an Alley, Driveway or Building and Approaching a Sidewalk | $50.00 |
| 1005 | Riding a Bicycle or Motorized Scooter While Holding on to a Car or Vehicle Upon the Roadway | $50.00 |
| 1006 | Operating a Bicycle or Motorized Scooter Upon a Roadway While Riding More Than Two Abreast | $50.00 |
| 1007 | Operating a Bicycle or Motorized Scooter While Carrying Packages Which Prevent the Rider from Keeping both Hands Upon the Handlebars | $50.00 |
| 1008 | Improperly Parking a Bicycle or Motorized Scooter Upon a Street or Against a Building | $50.00 |
| 1009 | Riding a Bicycle or Motorized Scooter Upon a Sidewalk Where Prohibited or Upon a Sidewalk While Failing to Yield the Right-of-Way to a Pedestrian or Giving an Audible Signal Before Overtaking and Passing such Pedestrian. | $50.00 |
| 1010 | Failure to Equip a Bicycle with a Required Front Lamp or Rear Red Reflector | $50.00 |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 1011 | Failure to Equip a Bicycle with Brakes | $50.00 |
| 1012 | Failure to Park a Bicycle or Motorized Scooter Within a Designated Bicycle or Motorized Scooter Parking Zone | $50.00 |
| **PEDESTRIANS—RIGHTS AND DUTIES** | | |
| 1101.A | Failure to Yield the Right-of-Way to a Pedestrian Properly Within a Crosswalk | $200.00/CRT |
| 1101.B | Pedestrian Suddenly Leaving a Curb or Other Place of Safety Into the Path of a Vehicle So Close that it Cannot Yield | $85.00/CRT |
| 1101.C | Overtaking or Passing a Vehicle Stopped Within a Crosswalk, When Such Movement Cannot be Made with Safety | $200.00/CRT |
| 1102 | Failure of a Pedestrian to Cross a Street Within a Crosswalk at an Intersection Controlled by a Traffic-Control Signal, or Taking the Shortest Possible Route at a Right Angle, Within a Residential Area | $50.00/CRT |
| 1103 | Failure of a Pedestrian, Outside a Marked Crosswalk or Outside an Unmarked Crosswalk at an Intersection, to Yield the Right-of-Way to All Vehicles Upon the Roadway | $100.00/CRT |
| 1104.A | Walking Along and Upon a Roadway Where an Adjacent Sidewalk is Provided | $50.00/CRT |
| 1104.B | Failure to Walk Upon the Left Side of a Roadway or Shoulder of a Roadway, Facing Traffic, Where No Sidewalk is Provided | $50.00/CRT |
| 1105 | Stepping or Standing in a Roadway or on a Median to Solicit a Ride, Employment, Business or Contributions | $150.00/CRT |
| 1106 | Failure to Yield the Right-of-Way to a Blind Pedestrian | $100.00/CRT |
| 1107.A | Failure of a Pedestrian to Properly Proceed Across a Roadway While Facing a Green Traffic Signal Light | $50.00/CRT |
| 1107.B | Pedestrian Entering a Roadway While Facing a Steady Yellow Traffic Signal Light | $75.00/CRT |
| 1107.C | Pedestrian Crossing a Roadway While Facing a Red Traffic Signal Light | $100.00/CRT |
| 1107.E | Pedestrian Entering a Roadway While Facing a Steady "DON'T WALK" Signal | $50.00/CRT |
| 1107.F | Pedestrian Entering a Roadway While Facing a Flashing "DON'T WALK" Signal | $25.00/CRT |
| **MISCELLANEOUS PROVISIONS** | | |
| 1200.A | Throwing or Depositing or Allowing Another Person to Throw or Deposit Substances in the Street Likely to Injure Any Person, Animal or Vehicle, or Likely to Interfere with the Safe Flow of Vehicular Traffic | $200.00 |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| 1200.B | Failure to Immediately Remove Any Destructive or Injurious Material By the Person Who Dropped or Permitted to be Dropped such Material in the Street | $200.00 |
| 1200.C | Throwing Substance at Standing Vehicle or any Occupant thereof or Throwing Substance at Person on or Adjacent to Street | $200.00 |
| 1201.A | Driving a Vehicle on a Paved Street When the Tires, Lugs or Wheels of that Vehicle are in such a Condition as to Damage the Pavement | $200.00 |
| 1201.B | Operating a Vehicle Equipped with Anti-Skid Chains or Studded Tires on a Paved Street Between April 1—November 1 | $200.00 |
| 1202.A | Rider of a Coaster, Sled, Roller Skates or Any Toy Vehicle Clinging to a Moving Vehicle Upon the Roadway | $85.00 |
| 1202.B | Riding, Standing, Sitting or Clinging to or Upon the Outside Part of a Moving Vehicle | $85.00 |
| 1203.A | Driver Permitting a Passenger to Leave or Board a Vehicle While in Motion | $185.00 |
| 1203.B | Boarding or Leaving a Vehicle While in Motion | $185.00 |
| 1203.C | Driver Permitting a Passenger to Ride in or Upon a Vehicle Not Equipped with Proper Seats, Hand Holds, Protective Railings and Not in a Mechanically Safe Condition | $185.00 |
| 1203.D | Operating a Vehicle While Any Person or Child is Standing on the Seat or Seats | $200.00 |
| 1203.E | Operating a Vehicle While Holding a Person, Child or Animal on the Driver's Lap | $200.00 |
| 1203.F | Operating a Motorcycle While Carrying a Passenger Less Than (10) Years of Age | $200.00 |
| 1203.G | Transporting an Untethered or Improperly Confined Animal in the Bed of a Pick-Up Truck or Other Open Vehicle | $150.00 |
| 1205 | Defacing, Injuring, Tampering With, Opening, Breaking, Destroying or Impairing a Traffic-Control Device | ARR/CRT |
| 1206 | Failure to Provide a Watchman, Flagman, Automatic Signal or Gate at a Railroad Street Grade Crossing | $200.00 |
| 1213.D.1 | Forget me not vehicle safety ordinance - 1st conviction | $250.00 |
| 1213.D.2 | Forget me not vehicle safety ordinance - 2nd conviction | ARR/CRT |
| 1213.D.3 | Forget me not vehicle safety ordinance - 3rd or more convictions | ARR/CRT |
| 1213.E | Forget me not vehicle safety ordinance - premises of establishment which holds license for sale of alcoholic beverages for consumption on premises | ARR/CRT |

| § Ref | Violation | Fine/ Penalty |
|---|---|---|
| **SECURITY VERIFICATION FORMS** | | |
| 1301 | Operating a Motor Vehicle Registered in Oklahoma Without Carrying or Being Able to Produce a Valid Oklahoma Security Verification Form Upon Request | CRT |
| 1304 | Knowingly Offering or Producing a Forged, False or Invalid Security Verification Form | CRT |

*(Ords. No. 16210, 18203, 18454, 18881, 18938, 19116, 19588, 19953, 20240, 20266, 20564, 20668, 20876; Ord. No. 21981, § 1, 12-18-2008; Ord. No. 23007, § 1, 1-22-2014; Ord. 23148, § 1, 7-17-2014; Ord. No. 23401, § 1, 11-5-2015; Ord. No. 23721, § 2, 6-28-2017; Ord. No. 23870, § 1, 2-28-2018; Ord. No. 24245, § 2, 10-30-19)*

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## CHAPTER 3. PARTIES AND PROCEDURES UPON ARREST

Section 300. Offense applicability.
Section 301. Parties to a crime.
Section 302. Offenses by persons owning or controlling vehicles.
Section 303. Citation on illegally parked vehicle.
Section 304. Failure to comply with traffic citation attached to a parked vehicle.
Section 305. Authority to impound vehicles.
Section 306. Presumption in reference to illegal parking.
Section 307. Notice to appear in court.
Section 308. Authority of an officer at the scene of an accident.
Section 309. Failure to obey notice to appear.
Section 310. Procedure upon arrest for traffic violation.
Section 311. When a person must be taken before a magistrate.
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Section 313. When warrant to be issued.
Section 314. Procedure upon arrest for felony.
Section 315. Procedure prescribed herein not exclusive.
Section 316. Disposition and records of traffic citations, warrants and complaints.
Section 317. Illegal cancellation of traffic citations.
Section 318. Record to be sent to state agency designated by the state of Oklahoma.
Section 319. Penalty.

### Section 300. Offense applicability.

The sections and provisions of this title are in each and every instance applicable to the drivers or operators of motor vehicles or motorcycles, and such other persons so designated, and the failure of any such person to obey the requirements of any such section or provision is hereby declared to be unlawful and an offense and punishable as prescribed.

### Section 301. Parties to a crime.

Every person who commits, attempts to commit, conspires to commit or aids or abets in the commission of any act declared in this title to be an offense, whether individually or in connection with one (1) or more other persons or as a principal, agent or accessory, shall be guilty of such offense; and every person who falsely, fraudulently, forcibly or wilfully induces, causes, coerces, requires, permits or directs another to violate any provisions of this title is likewise guilty of such offense.

### Section 302. Offenses by persons owning or controlling vehicles.

**A.** It is unlawful for the owner or any other person employing or otherwise directing the driver of any vehicle to require or knowingly to permit the operation of such vehicle upon a street in any manner contrary to law.

**B.** The provisions of Chapters 3, 4, 5, 6, 7, 8, 9, 11 and 12, applicable to drivers of vehicles in the City of Tulsa shall apply to the drivers of all vehicles owned or operated by the United States, the state of Oklahoma or any political subdivision of the state of Oklahoma, subject to such specific exceptions as are set forth in this title.

### Section 303. Citation on illegally parked vehicle.

Whenever any motor vehicle without driver is found parked, standing or stopped, in violation of any of the restrictions imposed by ordinance of the City of Tulsa, the police

officer finding such vehicle shall take its registration number and may take any other information displayed on the vehicle which may identify its ownership and shall conspicuously affix to such vehicle a traffic citation, on a form provided by the City of Tulsa.

### Section 304. Failure to comply with traffic citation attached to a parked vehicle.

If any violator of the traffic code restrictions on stopping, standing or parking does not appear in response to two (2) or more traffic summons affixed to his motor vehicle, the Clerk of the Municipal Court shall notify in writing the registered owner of such vehicle at the address listed on the vehicle's state registration records advising that a hearing will be held on a date certain to determine the vehicle a public nuisance as provided in Section 505 of this title, and to order impoundment. For the purposes of this section, impoundment shall be defined as the affixing of a wheel boot that restricts the vehicle's movement and/or the towing of the vehicle.

*(Ord. No. 20595)*

### Section 305. Authority to impound vehicles.

**A.** Members of the Police Department are hereby authorized to remove or cause to be removed a vehicle from a street or highway to the nearest garage designated or maintained by the Police Department or otherwise maintained by the City of Tulsa under the circumstances hereinafter enumerated:

**1.** When a vehicle has been declared a nuisance and ordered impounded by the court under the provisions of Section 505 of this title;

**2.** When a vehicle is left unattended upon any bridge, viaduct or causeway or in any tube or tunnel where such vehicle constitutes an obstruction to traffic;

**3.** When a vehicle upon a street or highway is so disabled or defective as to constitute an obstruction or hazard to traffic and/or the person or persons in charge of the vehicle are by reason of physical injury incapacitated to such an extent as to be unable to provide for its custody or removal;

**4.** When a vehicle is left unattended upon a street by reason of arrest of the driver or otherwise, or is so parked upon a street, highway or other public way as to constitute a definite hazard or obstruction to the normal movement of traffic;

**5.** When a vehicle is parked or left standing in excess of twenty-four (24) hours in violation of Section 519 of this title; or

**6.** When a vehicle is stopped by a police officer for an alleged violation of a City traffic ordinance or state traffic law or other ordinance or law applicable to the operation of a vehicle on a roadway, or a vehicle has been involved in an accident or collision investigated by a police officer, and the police officer has probable cause that the vehicle is not insured as required by the Compulsory Insurance Law of the state of Oklahoma. If, however, the owner or operator of the vehicle produces what appears to be a valid security verification form and the police officer is unable to confirm compliance through the online verification system or noncompliance by a subsequent investigation, the police officer shall be prohibited from impounding the vehicle and causing such vehicle to be towed and stored.

**B.** If the vehicle impounded has not been reclaimed within twenty-four (24) hours of the time of its impoundment, the Police Department of the City of Tulsa shall notify the vehicle's registered owner at the address provided by Service Oklahoma, or other state agency designated by the state of Oklahoma, of the place of impoundment of the vehicle.

*(Ord. No. 13992; Ord. No. 22631, § 1, 2-23-2012; Ord. No. 25354, § 1, 7-24-2024; Ord. No. 25425, § 1, 10-16-2024)*

### Section 306. Presumption in reference to illegal parking.

In any prosecution charging a violation of any ordinance of the City of Tulsa governing the standing or parking of a vehicle, proof that the particular vehicle described in the complaint was parked in violation of any such ordinance, together with proof that the defendant named in the complaint was at the time of such parking the registered owner of such vehicle, shall constitute in evidence a *prima facie* presumption that the registered owner of such vehicle was the person who parked or placed such vehicle at the point where and for the time during which such violation occurred.

### Section 307. Notice to appear in court.

**A.** Whenever a person is halted by a police officer for any violation of this title and is not taken before a magistrate as herein required or permitted, the officer shall prepare a written traffic citation containing a notice to appear in court, the name and address of the person, the state registration of his vehicle, if any, the offense charged, the time and place the person shall appear in court and such other pertinent information as may be necessary.

**B.** The time specified in the notice to appear must be at least five (5) days after the alleged violation unless the person charged with the violation shall demand an earlier hearing.

**C.** The place specified in the notice to appear must be before a municipal judge.

**D.** The person charged with the violation may give his written promise to appear in court by signing at least one (1) copy of the written traffic citation prepared by the officer, in which event, the officer shall deliver a copy of the citation to the person and thereupon the officer shall not take the person into physical custody for violation.

### Section 308. Authority of an officer at the scene of an accident.

Except for felonies, a police officer at the scene of a traffic accident may issue a written notice to appear, as provided in Section 307, to any driver of a vehicle involved in the accident when, based upon personal investigation, the officer has reasonable and probable grounds to believe that the person has committed any offense under the provisions of this title in connection with the accident.

### Section 309. Failure to obey notice to appear.

**A.** It shall be unlawful for any person to violate his written promise to appear given to an officer upon the issuance of a traffic citation regardless of the disposition of the charge for which such citation is originally issued.

**B.** A written promise to appear in court may be complied with by an appearance by counsel.

## Section 310. Procedure upon arrest for traffic violation.

**A.** In addition to other provisions of law for posting bail, any person, whether a resident of this state or a nonresident, who is arrested by a law enforcement officer solely for a misdemeanor violation of a state traffic law or municipal traffic ordinance shall be released by the arresting officer upon personal recognizance if:

**1.** The arrested person has been issued a valid license to operate a motor vehicle by Oklahoma, another state jurisdiction within the United States or any party jurisdiction of the Nonresident Violator Compact;

**2.** The arresting officer is satisfied as to the identity of the arrested person;

**3.** The arrested person signs a written promise to appear as provided for on the citation, unless the person is unconscious or injured and requires immediate medical treatment as determined by a treating physician; and

**4.** The violation does not constitute:

**a.** A felony;

**b.** Negligent homicide;

**c.** Driving or being in actual physical control of a motor vehicle while impaired or under the influence of alcohol or other intoxicating substances, unless the person is unconscious or injured and requires immediate medical treatment as determined by a treating physician;

**d.** Eluding or attempting to elude a law enforcement officer;

**e.** Operating a motor vehicle without having been issued a valid driver's license, or while the driving privilege and driver's license is under suspension, revocation, denial or cancellation;

**f.** An arrest based upon an outstanding warrant;

**g.** A traffic violation coupled with any offense stated in subparagraphs "a" through "f" of this section;

**h.** An overweight violation, or the violation of a special permit exceeding the authorized permit weight, or

**i.** A violation relating to the transportation of hazardous materials.

**B.** If the arrested person is eligible for release on personal recognizance as provided for in Subsection A of this section, then the arresting officer shall:

**1.** Designate the traffic charge;

**2.** Record information from the arrested person's driver's license on the citation form, including the name, address, date of birth, personal description, type of driver's license, driver's license number, issuing state and expiration date;

**3.** Record the motor vehicle make, model and tag information;

**4.** Record the arraignment date and time on the citation; and

**5.** Permit the arrested person to sign a written promise to appear as provided for in the citation.

The arresting officer shall then release the person upon personal recognizance based upon the signed promise to appear. The citation shall contain a written notice to the arrested person that release upon personal recognizance based upon a signed written

promise to appear for arraignment is conditional and that failure to timely appear for arraignment shall result in the suspension of the arrested person's driving privilege and driver's license in Oklahoma, or in the nonresident's home state pursuant to the Nonresident Violator Compact.

*(Ord. Nos. 17040, 19116)*

**Section 311. When a person must be taken before a magistrate.**

If the arrested person is not eligible for release upon personal recognizance as provided for in Section 310 herein, or if the arrested person is eligible but refuses to sign a written promise to appear, the officer shall deliver the person to an appropriate magistrate for arraignment and the magistrate shall proceed as otherwise provided for by law. If no magistrate is available, the defendant shall be placed in the custody of the appropriate municipal or county jailor or custodian, to be held until a magistrate is available or bail is posted as provided for by law or ordinance.

*(Ord. No. 17040)*

**Section 312. Release of defendant when magistrate not available.**

Whenever any person is taken into custody by an officer for the purpose of taking him before a magistrate or court as authorized or required in this chapter upon any charge other than a felony or the offenses enumerated in Section 310 and no magistrate is available and there is no bail schedule established by any such magistrate or court and no lawfully designated court clerk or other officer is available and authorized to accept bail on behalf of the magistrate or court, such person shall be released from custody upon the issuance to him of a written notice to appear and his signing a promise to appear.

**Section 313. When warrant to be issued.**

In the event any person fails to comply with a traffic citation given to such person or attached to a vehicle or fails to make appearance pursuant to a summons directing an appearance in the Municipal Court or if any person fails or refuses to deposit bail as required and within the time permitted by ordinance, the Clerk of the Municipal Court shall secure and issue a warrant for his arrest.

**Section 314. Procedure upon arrest for felony.**

Whenever a person is arrested for any violation declared by the Highway Safety Code of the state of Oklahoma to be a felony, he shall be dealt with in like manner as upon arrest for the commission of any other felony. For the purpose of this section, any offense which may be punishable by imprisonment in the State Penitentiary is a felony.

**Section 315. Procedure prescribed herein not exclusive.**

The foregoing provisions of this chapter shall govern all police officers in making arrests without a warrant for violations of any of the provisions of Chapters 3, 4, 5, 6, 7, 8, 9, 10, 11 and 12. However, the procedure prescribed herein shall not otherwise be exclusive of any other method prescribed by law for the arrest and prosecution of a person for an offense of like ground.

**Section 316. Disposition and records of traffic citations, warrants and complaints.**

**A.** Every police officer, upon issuing a traffic citation to an alleged violator of any of the provisions of this title relating to a moving violation, shall deposit a duplicate copy of the citation with the Chief of Police or his designee who shall cause the duplicate copy to be delivered to the appropriate records bureau.

**B.** The Chief of Police or his designee may recommend dismissal of a traffic citation when it is obvious to the Chief of Police or his designee that the citation was erroneously issued, is patently faulty on its face or in the interests of justice. The Chief of Police or his designee shall write a memorandum to the Manager of the Criminal Division of the Legal Department recommending the dismissal of such citation with the facts and reasons for the recommendation.

**C.** Upon the filing of such duplicate copy in the appropriate records bureau of the Police Department as aforesaid, such citation may be disposed of only by trial in the Municipal Court or by other official action by the Judge of the Municipal Court or a prosecuting officer of such Court.

**D.** The Clerk of the Court shall maintain or cause to be maintained in connection with every traffic citation issued by a member of the Police Department a record of the disposition of the citation.

**E.** The Clerk of the Court shall also maintain or cause to be maintained a record of all warrants issued by the Court on traffic violation charges which are delivered to the Police Department for service and of the final disposition of all warrants. The Police Department shall maintain a list of all warrants assigned to it for service and the officers to which such warrants are assigned.

**F.** It shall be unlawful and official misconduct for any member of the Police Department, other officer or public employee to dispose of, alter or deface a traffic citation, any copy thereof or the record of the issuance or disposition of any traffic citation, complaint or warrant in a manner other than as required in this section.

*(Ord. No. 16803; Ord. No. 21982, § 2, 12-18-2008)*

**Section 317. Illegal cancellation of traffic citations.**

It shall be unlawful for any person to cancel or solicit the cancellation of any traffic citation in any manner other than as provided by this chapter.

**Section 318. Record to be sent to state agency designated by the state of Oklahoma.**

Reports of the arrest and conviction of drivers for violation of City traffic ordinances, not including parking violations, shall be forwarded by the Municipal Court Clerk of the City of Tulsa to Service Oklahoma, or other state agency designated by the state of Oklahoma, in accordance with the provisions of state law.

*(Ord. No. 25354, § 2, 7-24-2024)*

**Section 319. Penalty.**

Unless otherwise provided for in this chapter, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

*(Ord. Nos. 15524, 18454, 19491)*

## CHAPTER 4. LICENSES AND REGISTRATION REQUIREMENTS

Section 400. Only licensed persons may operate.
Section 401. Driving while license is canceled, denied, suspended or revoked.
Section 402. Unlawful use of license or identification card.
Section 403. Permitting unauthorized minor to drive.
Section 404. Permitting unauthorized person to drive.
Section 405. Employer's permitting unauthorized persons to drive.
Section 406. License to be carried and exhibited on demand.
Section 407. Restricted licenses.
Section 408. Persons exempt from license.
Section 409. License plate display.
Section 410. Vehicles in good working order and safe mechanical condition; official inspection sticker.
Section 411. Penalty.
Section 412. Class and endorsement requirements for driver's licenses.

### Section 400. Only licensed persons may operate.

No person shall operate a motor vehicle upon any public roadway, street, highway, turnpike or other public place within this City without having first procured a driver's license from Service Oklahoma, or other state agency designated by the state of Oklahoma, except as otherwise specifically exempted by Oklahoma law. Any violation of this section shall be unlawful and an offense punishable by a fine of not less than Fifty Dollars ($50.00) nor more than Three Hundred Dollars ($300.00), excluding costs, fees and assessments, or by imprisonment in the City jail for not more than thirty (30) days, or by both such fine and imprisonment.

*(Ord. Nos. 16803, 18454, 18666, 18696; Ord. No. 21982, § 3, 12-18-2008; Ord. No. 25354, § 3, 7-24-2024)*

### Section 401. Driving while license is canceled, denied, suspended or revoked.

Any person who drives a motor vehicle upon any public roadways, streets, highways, turnpikes or other public places within this City at a time when such person's privilege to do so is canceled, denied, suspended or revoked or at a time when such person is disqualified from so doing shall be guilty of an offense and, upon conviction, shall be punished by a fine of not less than One Hundred Dollars ($100.00) and not more than Five Hundred Dollars ($500.00), excluding costs and assessments, or by imprisonment in the City Jail for not more than ninety (90) days or by both such fine and imprisonment.

*(Ord. Nos. 16803, 18454, 18655, 18696)*

### Section 402. Unlawful use of license or identification card.

**A.** It shall be unlawful and an offense for any person to commit any of the following acts in relation to an Oklahoma driver's license or identification card authorized to be issued by Service Oklahoma, or other state agency designated by the state of Oklahoma, pursuant to the provisions of 47 O.S. Supp. 2007, §§ 6-101 through 6-308, as amended, or any driver's license or other evidence of driving privilege or identification card authorized to be issued by the state of origin:

**1.** To display or cause or permit to be displayed such person's license after such license has been suspended, revoked or canceled or to possess such license after having received notice of its suspension, revocation or cancellation;

**2.** To lend such person's license or identification card to any other person or knowingly permit its use by another;

**3.** To display or cause or permit to be displayed or to possess a license or identification card issued to such person which bears altered information concerning the date of birth, expiration date, sex, height, eye color, weight or license or card number;

**4.** To fail or refuse to surrender to Service Oklahoma, or other state agency designated by the state of Oklahoma, upon its lawful demand any license or identification card which has been suspended, revoked or canceled;

**5.** To permit any unlawful use of a license or identification card issued to such person;

**6.** To do any act forbidden or fail to perform any act required by this chapter;

**7.** To display or represent as one's own, any license or identification card not issued to such person;

**8.** To add to, delete from, alter or deface the required information on a driver license or identification card.

**B.** Any person violating any of the provisions of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not less than Twenty-Five Dollars ($25.00), nor more than Two Hundred Dollars ($200.00), excluding costs and assessments.

*(Ord. Nos. 16803, 18454, 18696, 20185; Ord. No. 21982, § 4, 12-18-2008; Ord. No. 25354, § 4, 7-24-2024; Ord. No. 25425, § 2, 10-16-24)*

### Section 403. Permitting unauthorized minor to drive.

No person shall cause or knowingly permit a minor under the age of sixteen (16) years to drive a motor vehicle upon any public roadway, street, highway, turnpike or other public place when such minor is not authorized to do so by the laws of the state of Oklahoma or in violation of any of the provisions of state or local law.

*(Ord. No. 18696)*

### Section 404. Permitting unauthorized person to drive.

No person shall authorize or knowingly permit a motor vehicle owned by such person or under such person's control to be driven upon any public roadways, streets, highways, turnpikes or other public places by any person who is not authorized by law of the state of Oklahoma or in violation of any of the provisions of state or local law.

*(Ord. No. 18696)*

### Section 405. Employer's permitting unauthorized persons to drive.

No employer shall permit a person to operate a motor vehicle under the employer's control unless the person has a valid license for the class of vehicle being operated.

*(Ord. No. 18696)*

### Section 406. License to be carried and exhibited on demand.

Every licensee shall have such licensee's driver's license in the licensee's immediate possession at all times when operating a motor vehicle and shall display the same upon demand of any police officer of the City of Tulsa or other peace officer. However, any person

charged with violating this section who produces in court, on or before the court date, a driver license issued to him or her and valid at the time of his or her arrest shall be entitled to dismissal of such charge without payment of court costs and fine.

*(Ord. No. 18696; Ord. No. 21982, § 5, 12-18-2008)*

**Section 407. Restricted licenses.**

It shall be an offense for any person to operate a motor vehicle in any manner in violation of the restrictions imposed in a restricted license issued to such person.

*(Ord. No. 18696)*

**Section 408. Persons exempt from license.**

A nonresident who is sixteen (16) years of age or older who is properly licensed in the nonresident's home state or country to operate a commercial or noncommercial motor vehicle and who has in such person's immediate possession a valid driver's license issued by the nonresident's home state or country may operate a motor vehicle in this City as authorized by the class, restrictions and endorsements specified on such license.

*(Ord. No. 18696)*

**Section 409. License plate display.**

**A.** No person shall operate a motor vehicle upon the streets, roadways or thoroughfares unless such vehicle displays a current and appropriate identification number plate as required by the state of Oklahoma.

**B.** It shall be unlawful and an offense for any person to display upon any vehicle owned by such person within Oklahoma, any license plate issued by any state or country other than Oklahoma, unless there shall be displayed upon such vehicle at all times the current license plate and decal assigned to it by the Oklahoma Tax Commission or the vehicle shall display evidence that the vehicle is registered as a nonresident vehicle pursuant to rules promulgated by the Oklahoma Tax Commission. A violation of this section shall be presumed to have occurred if a person who is the holder of an Oklahoma driver's license operates a vehicle owned by such person and there is not displayed on the vehicle a current Oklahoma license plate and decal, unless the vehicle is owned by a member of the Armed Forces of the United States assigned to duty in Oklahoma in compliance with official military or naval orders or the spouse of such member of the Armed Forces.

**C.** It shall be unlawful and an offense for any person to operate any vehicle registered as a commercial vehicle and displaying a commercial vehicle license plate issued by the Oklahoma Tax Commission, without the name of the commercial establishment or the words "Commercial Vehicle" permanently and prominently displayed upon the outside of the vehicle in letters not less than two (2) inches high and two (2) inches wide. Such letters shall be in sharp contrast to the background and shall be of sufficient shape and color to be readily legible during daylight hours, from a distance of fifty (50) feet while the vehicle is not in motion.

**D.** License plates shall be placed and fastened securely to the rear of the vehicle and the numbers and letters of such plate shall be upright reading from left to right, except truck-tractor plates which shall be attached to the front of the vehicle. The license plate, decal and all letters and numbers shall be clearly visible at all times. It shall be

an offense to operate a vehicle in the City of Tulsa, regardless of where such vehicle is registered, if the license plate is covered, overlaid or otherwise screened with any material, whether such material be clear, translucent, tinted or opaque.

**E.** Any person violating any of the provisions of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not less than Ten Dollars ($10.00), nor more than Three Hundred Dollars ($300.00), excluding costs, fees and assessments.

*(Ord. Nos. 14271, 19491, 20564; Ord. No. 21982, §§ 6, 7, 12-18-2008)*

### Section 410. Vehicles in good working order and safe mechanical condition; official inspection sticker.

Repealed effective April 11, 2003, by Ord. No. 20564.

### Section 411. Penalty.

Unless otherwise provided for in this chapter, every person violating any provision of this chapter shall be guilty of an offense, and upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. Nos. 15524, 18454, 19491; Ord. No. 21982, § 8, 12-18-2008)*

### Section 412. Class and endorsement requirements for driver's licenses.

**A.** No person, except as otherwise specifically exempted, shall operate a motor vehicle upon any public roadways, streets, highways, turnpikes or other public places within this City unless such person has a valid Oklahoma driver's license for the class of vehicle being operated. No person shall be permitted to possess more than one (1) valid driver's license at any time.

**1.** No person shall operate a Class A commercial motor vehicle, as defined in 47 O.S. 2001, § 1-107.1, unless such person is eighteen (18) years of age or older and holds a valid Class A commercial license. Any person holding a valid Class A commercial license shall be permitted to operate motor vehicles in Classes A, B, C and D, except as otherwise provided in this subsection.

**2.** No person shall operate a Class B commercial motor vehicle, as defined in 47 O.S. 2001, § 1-107.2, unless such person is eighteen (18) years of age or older and holds a valid Class B commercial license. Any person holding a valid Class B commercial license shall be permitted to operate motor vehicles in Classes B, C and D, except as otherwise provided in this subsection.

**3.** No person shall operate a Class C commercial motor vehicle, as defined in 47 O.S. 2001, § 1-107.3, unless such person is eighteen (18) years of age or older and holds a valid Class C commercial license. Any person holding a valid Class C commercial license shall be permitted to operate motor vehicles in Classes C and D, except as otherwise provided in this subsection.

**4.** No person under twenty-one (21) years of age shall be licensed to operate any motor vehicle which is required to be placarded for hazardous materials pursuant to Title 49 United States Code of Federal Regulations, Part 172, subpart F; provided, however, that a person eighteen (18) years of age or older may be licensed to operate a farm vehicle, which is required to be placarded for hazardous materials pursuant to 49 C.F.R., Part 172, subpart F.

**B.** No person, unless otherwise specifically exempted, shall operate a vehicle upon any public roadways, streets, highways, turnpikes or other public place within this City, without first having procured a driver's license bearing any endorsement required by Service Oklahoma, or other state agency designated by the state of Oklahoma, qualifying such person for the operation of such vehicle.

**C.** Any violation of this section shall be unlawful and an offense punishable by a fine of not more than Five Hundred Dollars ($500.00), excluding costs and assessments, or by imprisonment in the City jail for not more than ninety (90) days, or by both such fine or imprisonment.

*(Ord. No. 18696; Ord. No. 21982, § 9, 12-18-2008; Ord. No. 25354, § 5, 7-24-2024; Ord. No. 25425, § 3, 10-16-2024)*

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## CHAPTER 5. STOPPING, STANDING AND PARKING REGULATIONS

Section 500. Parking in parking districts.
Section 501. Parking meter location and time limits.
Section 502. Parking lanes.
Section 503. Parking Districts, meter rates and unlawful deposits.
Section 504. Tampering with meters.
Section 505. Vehicles—A public nuisance.
Section 506. Public employees to comply.
Section 507. Stopping and parking.
Section 508. Parking prohibited during certain hours.
Section 509. Parking time limited.
Section 510. Time of parking limits.
Section 511. Manner of parking.
Section 512. Commercial vehicles.
Section 513. Unattended vehicles.
Section 514. Parking of large vehicles.
Section 515. Procedure for occupying vacated parking space.
Section 516. Double parking or stopping.
Section 517. Alley parking.
Section 518. Moving parked vehicles.
Section 519. Parking in excess of twenty-four hours.
Section 520. Parking in loading zones.
Section 521. Parking in public carrier stands.
Section 522. Stopping or parking prohibited in specific places.
Section 523. Repair and service in streets.
Section 524. Parking permits.
Section 525. Disabled persons parking.
Section 526. Unauthorized use of disabled person parking insignia.
Section 527. Penalty.

### Section 500. Parking in parking districts.

When any vehicle shall be parked in any space next to which there is located a parking meter or which is designated as a metered space within a parking district or is indicated as a metered space by signage, curb markings or other control system applicable to the space, the owner or driver of such vehicle shall, immediately upon entering such parking space, remit method of payment accepted by the appropriate parking meter, or make a digital payment with approved app utilizing the pay by tag option. The parking space may then be used by such vehicle only during the parking limit as provided for on the meter or the allotted time allocated to a vehicle using the pay by tag option. If the vehicle shall remain parked beyond the parking limit provided by such meter or the pay by tag system, such vehicle shall be considered as parked overtime and shall be a violation of this section. It shall be unlawful for any person to cause, allow, permit or suffer any vehicle registered in his name to be parked overtime or beyond the lawful period as above described.

*(Ord. No. 23036, § 1, 2-6-2014; Ord. No. 23846, § 1, 1-24-2018)*

### Section 501. Parking meter location and time limits.

**A. Parking meter location and time limits.** The location and time limits of all parking meters within the City of Tulsa shall be approved by the Council and filed with the City

Clerk. In the event of a change in the location or time limits of parking meters within the City of Tulsa, such changes shall be submitted to the Council for approval and the same shall be filed in the office of the City Clerk.

**B. Parking meter time limits govern if conflict.** Where parking meters are erected and the time limits prescribed thereon are in conflict with the time limits on file with the City Clerk, the time limits appearing on the parking meters shall govern unless official notice to the contrary is given on signs or parking meter hoods attached to the meter post or meter head.

*(Ord. No. 17568; Ord. No. 23036, § 1, 2-6-2014)*

### Section 502. Parking lanes.

The lines or marks on the curb or on the street, designate the parking space or spaces for which the meter is to be used and each vehicle parked alongside of or next to any parking meter or in any space designated by signage, curb markings or other control system, as a metered space, shall park within the lines or markings so established. It shall be unlawful and an offense to park any such vehicle across any such line or marks or to park such vehicle in such way that the same shall not be within the area so designated by such lines or markings.

*(Ord. No. 23036, § 1, 2-6-2014; Ord. No. 23846, § 2, 1-24-2018)*

### Section 503. Parking Districts, meter rates and unlawful deposits.

**A. Parking Districts.** Districts for parking meters within the City of Tulsa shall be as set forth herein.

1. **Financial District.** There shall be a financial parking district ("Financial District"), the boundaries of which shall be as follows: From a point commencing on Boston Ave. at Third Street, thence south to Sixth Street, to include east and west sides of the street. From a point commencing on Main Street at the Fifth Street intersection south to Sixth Street, to include east and west sides of the road. From a point on Fourth Street at Main Street, thence east along Fourth Street to Cincinnati Ave., to include north and south sides of the street. From a point commencing at the intersection of Fifth Street and Boulder Ave., thence east along Fifth Street to Cincinnati Ave., to include north sides of the street.
2. **Business Core District.** There shall be a business core parking district ("Business Core District"), the boundaries of which shall be as follows: From the Point of Beginning on the east ROW line of Cheyenne Ave. intersecting the south side of the Burlington Northern Railroad ("BN RR"), thence east along the south side of the BN RR to the east ROW line of Detroit Ave., thence south to the North ROW line of Seventh Street, thence west along Seventh Street to the east ROW line of Cheyenne Ave., thence north on Cheyenne to the Point of Beginning. Excluding the above described Financial District.
3. **Restaurant and Entertainment District.** There shall be a restaurant and entertainment parking district ("Restaurant and Entertainment District"), the boundaries of which shall be as follows: From the Point of Beginning on the west ROW line of Denver Ave. intersecting the south side of the BN RR, thence east to the east ROW line of Detroit Ave., thence south to the south ROW line of Fourth St., thence east to Elgin Ave., thence north along the east ROW line of Elgin Ave.

to the south ROW line of Third St., thence east to the east ROW line of Greenwood Ave., thence north to the south ROW line of Cameron St., thence west to the east ROW line of Elgin Ave., thence north to the south ROW line of 1-244 (IDL), thence west to the west ROW line of Main St., thence south to the north ROW line of Cameron St., thence west to the west ROW line of Denver Ave., thence south to the Point of Beginning.

4. **BOK Convention Center District.** There shall be a BOK Convention Center parking district ("BOK Convention Center District"), the boundaries of which shall be as follows: From the Point of Beginning on the east ROW line of Cheyenne Ave. intersecting the south side of the BN RR, thence south on the east ROW line of Cheyenne Ave. to north ROW line of Seventh Street, thence west to the east ROW line of Houston Ave., thence north to the north ROW line of Third Street, thence east on the Third Street ROW line to the west ROW line of Frisco Ave., thence north on the west ROW line of Frisco Ave. to the north ROW line of First Street, thence north on the west ROW line of Cheyenne Ave. to the south side of the BN RR ROW thence east on the south side of the BN RR to the point of beginning.

5. **Hillcrest Hospital District.** There shall be a Hillcrest Hospital parking district ("Hillcrest Hospital District"), the boundaries of which shall be as follows: From a point commencing at the intersection of Utica Ave. and Twelfth Street then west along Twelfth Street to Trenton Ave. commencing at the intersection of Eleventh Street and Saint Louis, thence south along Saint Louis Ave. to Twelfth Street.

6. **South District.** There shall be a South District the boundaries of which shall be as follows: From the point of the beginning at the intersection of Seventh St. and Cheyenne Ave., thence easterly along the south ROW line of Seventh St. to the east ROW line of Kenosha Ave., thence south along the east ROW line of Kenosha Ave. to the south ROW of Eighth St., thence west along the south ROW line of Eighth St. to the east ROW line of Elgin Ave., thence south along the east ROW line to Tenth St., thence south along the west ROW line of Elgin Ave. to Eleventh St., thence west along the south ROW line of Eleventh St. to Detroit Ave., thence south along the east ROW line to east Thirteenth St., thence west along the south ROW line of east Thirteenth St. to Boston Ave., thence south along the east ROW line of South Boston Ave. to Eighteenth St., thence west along the south ROW line of east Eighteenth St. to Boulder Ave., thence north along the west ROW line of east Boulder Ave. to Twelfth St., thence west along the south ROW line of Twelfth St. to Cheyenne Ave., thence north along the west ROW of Cheyenne Ave. to the point of beginning.

7. **East District.** There shall be an East parking district ("East District"), the boundaries of which shall be as follows: From the Point of Beginning on the east ROW line of Greenwood Ave. intersecting the south side of the BN RR, thence east to the south ROW line of 1-244, thence east to the east ROW line of Lansing Ave., thence south to Sixth St., thence west along the south ROW line of Sixth St. to the east ROW line of Kenosha St., thence south to the north ROW line of Seventh St., thence west to the east ROW line of Detroit Ave., thence north to the south ROW line of Fifth St., thence east to the east ROW line of Frankfort Ave, thence north to the south ROW line of Third St., thence east to the east ROW line of Greenwood Ave., thence north to the Point of Beginning.

**B. Meter rates.** All Parking Rates for all Parking meters within the Parking Districts of the City of Tulsa shall be Fifty Cents ($0.50) for each half-hour.

**C. Rates on meters govern if conflict.** Whenever the rates prescribed on parking meters are in conflict with any ordinance or regulation prescribing rates, the rates appearing on the parking meters shall govern unless official notice to the contrary is given on signs or parking meter hoods attached to the meter post or meter head.

**D. Unlawful deposits.** It shall be unlawful and an offense for any person to deposit or cause to be deposited any slug, device or metallic substitute for a United States coin or any other form of unlawful, or unacceptable payment in any parking meter.

*(Ord. No. 17568; Ord. No. 23036, § 1, 2-6-2014; Ord. No. 23287, § 1, 5-7-2015; Ord. No. 23846, § 3, 1-24-2018)*

### Section 504. Tampering with meters.

It shall be unlawful and an offense for any person to deface, injure, tamper with, open, break, destroy or impair the usefulness of any parking meter.

### Section 505. Vehicles—A public nuisance.

No person, owner or operator shall park, drive or permit to be parked or permit to be driven any vehicle which has two (2) or more traffic summons against it, such summons having been disregarded and unpaid. Any vehicle with two (2) or more traffic summons unpaid and outstanding against it is hereby declared a public nuisance and after notice as set forth in Section 304 of this title, may be impounded or caused to be impounded by any police officer or other person duly authorized. For the purposes of this section, impoundment shall be defined as the affixing of a wheel boot that restricts the vehicle's movement and/or the towing of the vehicle.

*(Ord. Nos. 13992, 20595)*

### Section 506. Public employees to comply.

The provisions of this chapter shall apply to the driver of any vehicle owned by or used in the service of the United States Government, the state of Oklahoma or any political subdivision thereof; and it shall be unlawful for any such driver to violate any of the provisions of this chapter, except as otherwise permitted herein or by the laws of the United States or the statutes of the state of Oklahoma.

### Section 507. Stopping and parking.

Where official signs prohibit parking on any part of any street or roadway, no person shall park a vehicle in any such designated place where parking is so prohibited, nor shall any person park a vehicle upon public property where official signs designate such property for special use.

### Section 508. Parking prohibited during certain hours.

Where official signs are erected giving notice that parking is prohibited during certain hours, no person shall park a vehicle during such hours upon that portion of the street so designated.

### Section 509. Parking time limited.

Where official signs are erected giving notice that parking is limited to a certain period, no person shall park a vehicle for a period exceeding the specified limit, except for after the

hours of enforcement and on Saturdays, Sundays and City of Tulsa legal holidays. It shall be a violation of this section for any person to move a vehicle in any manner or leave a parking space and then re-enter it to avoid the intent of this section.

*(Ord. No. 23036, § 1, 2-6-2014)*

**Section 510. Time of parking limits.**

All parking limit regulations, unless specifically provided otherwise, shall be in force and effect between the hours of 8:00 a.m. and 5:00 p.m., except on Saturdays, Sundays and legal holidays.

*(Ord. No. 17115)*

**Section 511. Manner of parking.**

**A.** In parallel parking spaces, the side of a vehicle shall be parked alongside and next to the curb for the parking space.

**B.** In diagonal parking spaces, the frontmost part of a vehicle shall be directed at and next to the curb for the parking space. Except where indicated by signage, "Back-In Angled Parking Only" then the rearmost part of a vehicle shall be directed at and next to the curb for the parking space.

**C.** No person shall park a vehicle on a street unless the vehicle is headed in the direction of traffic with the curb side wheels of the vehicle parallel to and within twelve (12) inches of the curb or roadside edge.

**D.** Vehicle must be parked within the lines marked on the street for such parking space.

**E.** Drivers or passengers of vehicles parked on a public street shall not open the doors of such vehicles on the side of the vehicle available to traffic until and unless it is reasonably safe to do so.

**F.** No vehicle with the motor running shall be parked on any street or alley unless a licensed operator is in such vehicle.

*(Ord. No. 23036, § 1, 2-6-2014; Ord. No. 23846, § 4, 1-24-2018)*

**Section 512. Commercial vehicles.**

Commercial vehicles shall be parked parallel in all areas unless otherwise authorized by the Chief of Police or his designee or otherwise designated with pavement markings or signs.

*(Ord. No. 16803; Ord. No. 23036, § 1, 2-6-2014)*

**Section 513. Unattended vehicles.**

No person shall leave a vehicle unattended unless the brakes are securely set and the ignition key removed from the vehicle.

**Section 514. Parking of large vehicles.**

No person shall park at night any vehicle when the manufacturer's gross vehicle weight (GVW) rating, as it appears on the vehicle identification plate, exceeds ten thousand (10,000) pounds or when the vehicle's classification is rated by the manufacturer as one (1) ton or greater and its total width exceeds ninety (90) inches, excluding approved safety devices, on any street of twenty-six (26) feet or less in width unless the person is actually

engaged in loading or unloading merchandise and while such person has displayed all warning required for disabled vehicles as described in Section 734 herein. The storage of vehicles, trucks, trailers, boats, motor-homes or any equipment wider than ninety (90) inches in width, excluding approved safety devices, on any street at night by any person is unlawful and an offense and such may be impounded, towed and stored by authority of the Police Department as a traffic obstruction hazard.

*(Ord. Nos. 14014, 18454)*

### Section 515. Procedure for occupying vacated parking space.

Every driver desiring to enter a parking space being vacated shall stop his vehicle and wait to the rear of the vacating vehicle and having so waited shall have prior right to the parking space over all other drivers. It shall be unlawful for any driver to wait in his vehicle ahead of a parking space being vacated or to attempt to interfere with one who has properly waited at the rear of a parking space being vacated. No driver shall stop and wait for a parking space unless the vehicle vacating the space is in the process of vacating. Every driver desiring to enter a vacant parking space shall stop his vehicle immediately in front of and parallel to such space, then back into it. It shall be unlawful for any other driver to drive his vehicle into such space, block or interfere in any way with the driver while he is preparing to back or is backing into such space.

### Section 516. Double parking or stopping.

No person shall double park or double stop any vehicle.

### Section 517. Alley parking.

**A.** No person other than a commercial vehicle driver, as provided herein, may park his vehicle in any alley at any time.

**B.** Commercial vehicle drivers may park in alleys for periods not to exceed thirty (30) minutes only while actually engaged in loading or unloading.

**C.** No person shall park a vehicle in any alleyway at any time unless such vehicle is parked on the right-hand side of such alley and is headed in the direction in which traffic is designated to move through such alley, except as otherwise provided by traffic-control devices. Under no circumstances shall a driver park a vehicle in an alley when such parked vehicle shall prevent the flow of traffic through the alley.

**D.** No person, except a physician on an emergency call, shall park a vehicle in any alley for a period longer than thirty (30) minutes.

*(Ord. Nos. 13350, 16449)*

### Section 518. Moving parked vehicles.

It shall be lawful for regular police officers of the City of Tulsa in performance of duty to change the position of any parked vehicle.

### Section 519. Parking in excess of twenty-four hours.

No person, operator or owner shall park or permit to be parked or left standing on any public street, alley or other public way any vehicle unattended for a continuous period exceeding twenty-four (24) hours. A vehicle parked in excess of twenty-four (24) hours is

hereby declared one endangering or threatening the public safety and convenience and impeding or likely to impede the efficient movement of vehicular or pedestrian traffic. Any police officer or code enforcement officer believing any vehicle to be so parked shall post a red sticker notice in a prominent place upon such vehicle and, if after twenty-four (24) hours the vehicle is not moved, it may be impounded or caused to be impounded by any police officer or other person duly authorized. For the purposes of this section, "code enforcement officer" is defined as an employee of the City of Tulsa, other than a police officer, authorized to investigate and enforce violations of statutes or ordinances regulating public health, safety, and welfare, through administrative procedures set forth by ordinance or by issuing municipal citations.

*(Ord. No. 13992; Ord. No. 25101, § 1, 8-9-2023)*

## Section 520. Parking in loading zones.

### A. Loading zones.

**1.** No commercial vehicle or Loading Zone User shall be parked in a loading zone unless such vehicle is being loaded or unloaded expeditiously, and in no event for a period exceeding thirty (30) minutes.

**2.** No passenger vehicle shall be parked in a loading zone, except that:

**a.** Taxi cabs may be parked in a loading zone for a period not exceeding thirty (30) minutes for the purpose of loading or unloading passengers; and

**b.** Passenger vehicles having an identification device issued by the Oklahoma Corporation Commission or passenger vehicles having a valid loading zone parking permit issued by the City of Tulsa Finance Department and clearly and prominently displayed in the lower left corner of the rear window may be parked in loading zones for a period not exceeding thirty (30) minutes for the purpose of picking up and making deliveries.

**3.** No vehicle shall be parked in a passenger loading zone for a period exceeding three (3) minutes.

### B. Loading zone permits for passenger vehicles.

**1.** The Director of Finance is hereby authorized and directed to issue to any person classified as a "Loading Zone-Commercial User", hereinafter defined, special thirty (30) minute parking permits for use only for parking in loading zones for the purpose of making deliveries. Such permit shall be clearly and prominently displayed in the lower left corner of the rear window.

**2.** "Loading Zone-Commercial User" shall mean any person who owns a passenger vehicle and who uses the same as a delivery vehicle in connection with his/her business, trade or occupation, which vehicle is operated solely in such business capacity or any persons residing within the Parking Districts pursuant to Title 37, Chapter 5, Section 503 for the purposes of loading and unloading items to their residences within their specified zone/district in accordance with said ordinance. Possession of a loading zone permit does not guarantee loading zone availability.

**3.** Any person wishing to be classified as a "Loading Zone-Commercial User", as herein defined shall make application to the Director of Finance. The Director of Finance shall investigate such application and determine whether such person is entitled to be so classified. In the event the Director finds the person to be entitled

to such classification, he/she shall certify that such person is eligible for such permit, upon payment of the fee and proof of residency by way of lease agreement or utility bill or property tax statement, if applicable, hereinafter provided.

**4.** Any person classified as a "Loading Zone-Commercial User" is entitled to and shall be issued a special loading zone parking permit which shall be valid upon the payment of a fee of Five Dollars ($5.00) per month, to be paid for the year or the portion of the year remaining and such permit shall expire midnight December 31, of each year. In the event that a permit is lost, becomes mutilated, or the permitted vehicle is changed, fee of Five Dollars ($5.00) shall be assessed as replacement cost for such permit.

**5.** Loading Zone Permits for residential purposes are available in limited quantities on a first come first served basis.

**6.** Any person holding a "Loading Zone-Commercial User" parking permit who, for any reason, shall become disqualified to hold such permit shall notify the Finance Department and shall surrender his/her permit. Failure to do so shall constitute forfeiture of the permit.

**7.** Any decision of the Director of Finance may be appealed by the affected party to the Council of the City of Tulsa.

*(Ord. No. 16215; Ord. No. 23036, § 1, 2-6-2014; Ord. No. 24072, § 1, 1-16-2019)*

### Section 521. Parking in public carrier stands.

**A.** The driver of a bus or taxicab while in commercial usage shall not stand or park such vehicle upon any street or any place other than at a bus stop or taxicab stand. This provision shall not prevent the driver of any such vehicle from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in loading or unloading passengers.

**B.** No person shall stop, stand or park a vehicle other than a bus in a bus zone or other than a taxicab at a taxicab stand when any such stop or stand has been officially designated and appropriate signs erected except:

**1.** When engaged in loading and/or unloading passengers and such stopping does not interfere with any bus or taxicab waiting to enter or about to enter such zone; or

**2.** During the hours when buses are not in regular operation.

### Section 522. Stopping or parking prohibited in specific places.

No person shall at any time stop, stand or park a vehicle except in compliance with the direction of a police officer or traffic-control device in any of the following places:

**A.** On a sidewalk;

**B.** Over a sidewalk to any degree;

**C.** Within an intersection;

**D.** Within ten (10) feet of a fire hydrant;

**E.** On or over a crosswalk to any degree;

**F.** Within fifteen (15) feet of nearest rail of a railroad;

**G.** Within twenty (20) feet of fire station driveway;

**H.** In a manner that obscures a traffic-control device;

**I.** In front of or at the exit of any theater or public building while people are congregating therein;

**J.** On area between sidewalk and curb;

**K.** On grounds of any public park except where permitted by official signs;

**L.** In fire lanes or safety zones;

**M.** In front of entrance of any public building of three (3) or more stories in height;

**N.** In an alley except as provided in Section 517;

**O.** Across a driveway to any degree;

**P.** On the center median of traffic lanes of any controlled access highway;

**Q.** Any other public property not designed to accommodate motor vehicles; or

**R.** On any surface other than a hard surface area constructed of an all-weather material, unless such parking has been previously authorized pursuant to the provisions of Title 42 or Title 26, Tulsa Revised Ordinances.

*(Ord. Nos. 16803, 18207, 19825; Ord. No. 23036, § 1, 2-6-2014)*

### Section 523. Repair and service in streets.

No person shall repair, wash or service a vehicle on any street, alley, highway or roadway unless specific lawful authority to do so has been granted by the Chief of Police or his designee.

*(Ord. No. 16803)*

### Section 524. Parking permits.

The Mayor shall, on or after the first day of February of each year, file with the City Clerk a list of individuals who require special parking privileges under this chapter. The list shall include the name of the individual, make, model and tag number of the motor vehicle involved and shall differentiate between those persons who require restricted (two (2) hours) parking privileges and those who require parking privileges without time limitation.

*(Ord. No. 15941; Ord. No. 23036, § 1, 2-6-2014)*

### Section 525. Disabled persons parking.

**A.** It shall be unlawful and an offense for any person to place or park a motor vehicle in any parking space on private property accessible to the public and where the public is invited or public property that is designated and posted as a reserved area for the parking of a motor vehicle operated by or transporting a physically disabled person unless such person has applied for and been issued a detachable insignia indicating a physical disability under the provisions of 47 O.S. Supp. 2007, § 15-112, as amended, and such insignia is displayed as provided in 47 O.S. Supp. 2007, as amended, or rules adopted pursuant thereto, or has applied for and been issued a physically disabled special license plate pursuant to the provisions of 47 O.S. Supp. 2007, § 1135.1, as amended, and such license plate is displayed pursuant to the provisions of the Oklahoma Vehicle License and Registration Act.

**B.** It shall be unlawful and an offense for any person:

**1.** Displaying a physically disabled placard or plate, in accordance with the provisions of Oklahoma law referenced in Subsection A, to place or park a motor vehicle in any disabled parking space access aisle, wheelchair ramp, wheelchair loading/unloading area or any portion thereof, on private property accessible to the public and where the public is invited or public property.

**2.** Without a physically disabled placard or plate, to place or park a motor vehicle in any disabled parking space access aisle, wheelchair ramp, wheelchair loading/unloading area or any portion thereof, on private property accessible to the public and where the public is invited or public property.

**C.** Any violation of this section shall be unlawful and a misdemeanor offense punishable by a fine of not more than Five Hundred Dollars ($500.00). Provided however, if, within ten (10) days of the date of the violation, excluding Saturdays, Sundays and legal holidays, the person charged with an offense under this section presents proof to the court that a valid detachable insignia or special license plate indicating a physical disability had been issued to the person charged, or issued to a person with a disability being transported by the person charged, under the provisions of Oklahoma law as referenced in Subsection A. of this section, on the date of violation, the charge shall be dismissed without the payment of any court costs. Provided further, if any person cited for a first offense of a violation of Subsection A. who has displayed a placard which has expired under Oklahoma law shall be entitled to dismissal of such charge without the payment of any court costs if the person presents to the court within thirty (30) days of the issuance of the citation a notice from the Service Oklahoma, or other state agency designated by the state of Oklahoma, that the person has obtained a valid placard pursuant to Oklahoma law.

*(Ord. Nos. 16501, 19116; Ord. No. 21982, § 10, 12-18-2008; Ord. No. 23874, § 1, 3-7-2018; Ord. No. 25354, § 6, 7-24-2024; Ord. No. 25425, § 4, 10-16-2024)*

## Section 526. Unauthorized use of disabled person parking insignia.

Any person who shall, without authority, use or display any disabled person parking insignia, or who promulgates, offers, displays or produces to any law enforcement officer, prosecuting attorney, Judge of the Municipal Court or other court official, any disabled person parking insignia, knowing or having reason to believe that it is forged, false, invalid or otherwise used without authority shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. No. 19491)*

## Section 527. Penalty.

Unless otherwise provided for in this chapter, every person violating any provision of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than One Hundred Dollars ($100.00), excluding costs, fees and assessments; provided, however, that any person found guilty of violating Section 500 of this chapter shall be punished by a fine of not less than Ten Dollars ($10.00) nor more than One Hundred Dollars ($100.00), excluding costs, fees and assessments.

*(Ord. Nos. 15524, 17568, 19491)*

## CHAPTER 6. MOVING REGULATIONS AND TRAFFIC-CONTROL DEVICES

Section 600. Obedience to police and fire department officers and school guards.
Section 601. Vehicles, rickshaws, bicycles, pushcarts and animals.
Section 602. Motorcycle or motorscooter drivers holding on to moving vehicles.
Section 603. Authorized emergency vehicles, regulation.
Section 604. Operation upon approach of authorized emergency vehicles.
Section 605. Following fire apparatus.
Section 606. Traffic-control signal lights.
Section 607. Obedience to traffic-control devices.
Section 608. Unauthorized signs.
Section 609. Avoiding traffic-control devices.
Section 610. Stop signs.
Section 611. Yield signs.
Section 612. Obedience to signal indicating approach of train.
Section 613. Starting and stopping.
Section 614. Drivers leaving parked position.
Section 615. Backing.
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Section 617. Speeding.
Section 618. Conditions affecting speed.
Section 619. Speed less than minimum posted speed.
Section 620. Speed through unmarked intersection.
Section 621. Speed in alleys.
Section 622. Speed too slow for conditions.
Section 623. Speeding in a school zone.
Section 624. Excessive acceleration.
Section 625. Turn and stop signals.
Section 626. Hand signals obscured.
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Section 629. Turning—Two-way street.
Section 630. Turning—One-way street.
Section 631. Turning from two-way street to one-way street.
Section 632. Turning from one-way street to two-way street.
Section 633. Turning vehicles—Right-of-way.
Section 634. Entering an intersection.
Section 635. Unmarked intersections.
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Section 637. Driving on right side of street.
Section 638. Driving on sidewalks.
Section 639. Motorcycles or motorscooters on sidewalks.
Section 640. Driving on laned streets.
Section 641. Driving through barriers.
Section 642. Driving across fire hose.
Section 643. Driving through a safety zone.
Section 644. Zone of quiet.
Section 645. Inattentive driving.

Section 646. Drag racing.
Section 647. Reckless driving.
Section 648. Eluding a police officer.
Section 649. Persons under the influence of alcohol or other intoxicating substance or combination thereof.
Section 650. Passing on single-laned two-way street.
Section 651. Passing on multi-laned streets.
Section 652. When passing prohibited.
Section 653. Passing between lanes of traffic.
Section 654. Passing a school bus.
Section 655. Penalty.
Section 656. Alcohol chemical analysis—Impaired ability—Penalty.
Section 657. Transporting an open container of alcohol.
Section 658. Transporting an open container of low-point beer.
Section 659. Following too closely.
Section 660. Restricted access.
Section 661. Driving under the influence while under age.
Section 662. Prohibited vehicle sound amplification systems.
Section 663. Use of dynamic braking device prohibited, except for the aversion of imminent danger.
Section 664. Traffic signal preemption device-possession, use, interference with or sale.
Section 665. Driver of a motor vehicle approaching a stationary emergency vehicle.
Section 666. Texting while driving.

### Section 600. Obedience to police and fire department officers and school guards.

No person shall fail or refuse to comply with any audible order or direction of a police officer, fire department officer or a school guard while any such officer or guard is engaged in directing traffic.

### Section 601. Vehicles, rickshaws, bicycles, pushcarts and animals.

Every person propelling any rickshaw, pushcart, riding a bicycle or animal, or driving an animal-drawn vehicle upon the street and any vehicle operating on rails where the rails are parallel to the street itself or where the rails are so placed as to become an integral part of the traffic movement, shall be subject to all provisions of this chapter, except those provisions which by their very nature can have no application.

*(Ord. No. 22395, § 2, 3-24-2011)*

### Section 602. Motorcycle or motorscooter drivers holding on to moving vehicles.

No rider of a motorcycle or motorscooter shall hold on to any other vehicle for the purpose of being propelled.

*(Ord. No. 12405)*

## Section 603. Authorized emergency vehicles, regulation.

**A.** The driver of an authorized emergency vehicle, when responding to an emergency call, or when in pursuit of an actual or suspected violator of the law, or when responding to but not upon returning from a fire alarm may:

**1.** Disregard regulations governing parking and standing of vehicles;

**2.** Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation;

**3.** Exceed the maximum speed limits so long as he does not endanger life or property; or

**4.** Disregard regulations governing direction of movement or turning in specified directions.

Provided, however, the exemptions herein granted to an authorized emergency vehicle shall apply only when such vehicle is making use of the required emergency equipment hereinafter specified.

**B.** Authorized emergency vehicles, other than police vehicles, shall, in addition to any other equipment and distinctive markings required by ordinance, be equipped with both a siren, exhaust whistle or bell capable of giving an audible signal and with signal lamps mounted as high and as widely spaced laterally as practicable, which shall be capable of displaying to the front two (2) alternately flashing red lights located at the same level, and these lights shall have sufficient intensity to be visible at five hundred (500) feet in normal sunlight or, as an alternative, such emergency vehicles may use one (1) flashing red signal lamp so located at or near the top of the vehicle which, when lighted is visible for a distance of five hundred (500) feet in normal sunlight, both to the front and to the rear of the vehicle. Police vehicles, when used as an authorized emergency vehicle, shall be equipped with a siren capable of giving an audible signal, and need not be equipped with visual signals.

**C.** The provisions of this section shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others.

**D.** Any ambulance company or operator responding to an emergency (priority one) call, shall immediately inform the Tulsa Police Department Dispatcher concerning the nature of the reported emergency and the points of origin and destination of its dispatched emergency vehicle.

## Section 604. Operation upon approach of authorized emergency vehicles.

Upon the approach of an authorized emergency vehicle making use of audible and visual signals meeting the requirements of the traffic ordinances of the City of Tulsa, or of a police vehicle properly making use of an audible signal only, the driver of every other vehicle shall yield the right-of-way to such emergency vehicle even when such vehicle is proceeding against an official traffic-control device, and shall immediately drive to a position which is clear of any intersection, parallel and as close as possible to the right-hand edge or curb of the street, alley or public or private roadway and shall stop and remain in such position until the authorized emergency vehicle has passed or stopped, except when otherwise directed by a police officer.

*(Ord. No. 14612)*

## Section 605. Following fire apparatus.

The driver of any vehicle, other than Police and Fire Department members, shall not follow an emergency vehicle traveling in response to an emergency call with siren sounding closer than five hundred (500) feet or drive into or park such vehicle within the block where emergency apparatus has stopped in answer to an emergency call.

## Section 606. Traffic-control signal lights.

Wherever vehicular traffic movement is controlled by an official traffic-control signal light device exhibiting green, yellow or red colored lights successively, such device shall control and be obeyed, as herein provided.

**A.** Vehicular traffic facing the green signal shall proceed right, left or straight through, unless a sign at such place prohibits any such movements; provided that the right-of-way shall be yielded to other vehicles or pedestrians lawfully in the intersection or signalized location, and a vehicle which enters on a green signal may complete such movement with safety even after the yellow or red signals appear.

**B.** Vehicular traffic facing a steady yellow signal is thereby warned that the red "stop" signal shall be exhibited immediately thereafter and such vehicular traffic shall not be crossing the intersection or signalized location when such red signal is successively exhibited.

**C.** Vehicular traffic facing a steady red signal shall stop before entering the crosswalk on the near side of the intersection or, if none, then before entering the intersection or signalized location, and shall remain standing until the green signal is shown alone, or, while the signal is still red, vehicular traffic may turn right, or turn left from a one-way street into a one-way street, from the appropriate lane after coming to the required stop, unless such turn on red is prohibited by a official sign. Such vehicular traffic making a turn on red shall yield the right-of-way to pedestrians lawfully within a crosswalk and to other traffic lawfully using the intersection.

**D.** Vehicular traffic in a proper lane with a steady green arrow directional signal light or steady red with green arrow signal shall move as indicated by the pointing of the arrow to the left, right or straight ahead, and shall cautiously enter the intersection or signalized location only to make the movement indicated by such arrow but shall yield the right-of-way to pedestrians lawfully within a crosswalk and to other traffic lawfully using the intersection.

**E.** Whenever flashing signal lights are exhibited, such signals shall control vehicular traffic and be obeyed, as follows:

**1.** Flashing yellow shall indicate the driver of a motor vehicle is to proceed with utmost caution through the intersection or signalized location; and

**2.** Flashing red shall indicate that the driver of a motor vehicle shall come to a full stop and then proceed, yielding the right-of-way to all other traffic or pedestrians so close as to constitute an immediate hazard.

**F.** Vehicular traffic may turn, pursuant to the provisions of this Section, through a crosswalk while the pedestrian signal shows a "WALK" indication provided such turn may be completed without danger to or interference with pedestrian traffic.

**G.** In the event an official traffic control signal is erected and maintained at a place other than an intersection, the provisions of this section shall be applicable except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking the stop shall be made at the signal.

*(Ord. No. 13902)*

### Section 607. Obedience to traffic-control devices.

All operators of motor vehicles and all pedestrians shall obey official traffic-control devices which shall include all signs, all parking meters, all parking meter hoods, all buttons, all curbing, all mechanical signals, all paint marks placed on the surface of the roadway and all electrically controlled traffic signals.

*(Ord. No. 14573)*

### Section 608. Unauthorized signs.

No person shall place, maintain or display, upon or in view of any roadway, any unauthorized sign, signal, marking or device which purports to be, is an imitation of or resembles an official traffic-control device, railroad sign or signal, which attempts to direct the movement of traffic or which hides from view or interferes with the effectiveness of any official traffic-control device, railroad sign or signal; and no person shall place or maintain, nor shall any public authority permit to be placed or maintained, upon any roadway, any such sign or signal. This section shall not be construed to prohibit the erection of highway signs or signals giving useful directional information and of such type that cannot be mistaken for official signs. Every such prohibited sign, signal or marking is hereby declared a public nuisance and the authority having jurisdiction over the street or highway is hereby empowered to remove, impound or cause to be removed or impounded the same without notice.

### Section 609. Avoiding traffic-control devices.

No person shall drive through a service station driveway, other driveway or private property so as to avoid use of a street or traffic-control device.

### Section 610. Stop signs.

**A.** The driver of a vehicle shall completely stop his vehicle before entering any intersection where official stop signs have been erected.

**B.** Vehicle stops at stop signs shall be made with the vehicle ceasing all forward movement, in the proper lane and behind the extending curbline of the intersecting street.

**C.** The driver of a vehicle at a stop sign shall stop in a position where he has complete visibility to the right and left of the intersection and having so stopped shall yield right-of-way to all other vehicles already in motion in the intersection or so close as to constitute an immediate hazard.

**D.** When two (2) or more vehicles stop in a consecutive line at an intersection controlled by a stop sign, each vehicle must pull forward to the stop sign or curbline of the intersecting street and completely cease all forward movement before proceeding into the intersection.

## Section 611. Yield signs.

The driver of a vehicle approaching a yield sign shall slow down to a speed reasonable for existing conditions or shall stop, if necessary, yielding the right-of-way to any pedestrian crossing the street on which he is driving and to any vehicle in the intersection or approaching on another street so closely as to constitute an immediate hazard.

## Section 612. Obedience to signal indicating approach of train.

**A.** Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop within fifty (50) feet but not less than fifteen (15) feet from the nearest rail of such railroad and shall not proceed until he can do so safely. The foregoing requirements shall apply when:

**1.** A clearly visible electric or mechanical signal device gives warning of the immediate approach of a railroad train;

**2.** A crossing gate is lowered or when a human flagman gives or continues to give a signal of the approach or passage of a railroad train; or

**3.** An approaching railroad train is plainly visible and is in hazardous proximity to such crossing.

**B.** No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed.

## Section 613. Starting and stopping.

Before starting, stopping or turning, the driver of any vehicle upon a street, alley, highway or public or private roadway shall first assure himself that such movement can be made in safety without endangering other vehicles or pedestrian traffic.

## Section 614. Drivers leaving parked position.

A driver leaving a parked position shall yield the right-of-way to all other vehicles already in motion or so close as to constitute an immediate hazard.

## Section 615. Backing.

Any driver backing a vehicle shall yield the right-of-way to all other vehicles and pedestrians which are so close as to constitute an immediate hazard. No person shall back a vehicle into an intersection or over a crosswalk. All drivers backing a vehicle shall do so at a reduced careful speed and shall only back while vision is not obstructed and not more than two (2) car lengths unless ordered to do so by a police officer.

## Section 616. Certain vehicles must stop at all railroad crossings.

**A.** The driver of any motor vehicle carrying passengers for hire, any school bus carrying any school child or of any vehicle carrying explosive substances or flammable liquids as a cargo or part of a cargo, before crossing any track or tracks of a railroad, shall stop such vehicle within fifty (50) feet but not less than fifteen (15) feet from the nearest rail of such railroad and while so stopped shall listen and look in both directions along such track for any approaching train and for signals indicating the approach of a train, except as hereinafter provided, and shall not proceed until he can do so safely. After

stopping as required herein and upon proceeding when it is safe to do so, the driver of any such vehicle shall cross only in such gear of the vehicle that there will be no necessity for changing gears while traversing such crossing and the driver shall not shift gears while crossing the track or tracks.

**B.** No stop need be made at any such crossing where a police officer or a traffic-control signal directs traffic to proceed.

**Section 617. Speeding.**

**A. Speed limits - posted.** No driver in the City of Tulsa shall exceed the speed limits posted on the official traffic-control devices.

**B. Speed limits - unposted.** Any speed greater than twenty-five (25) miles per hour, unless official traffic-control devices are erected indicating a greater or lesser speed, is unlawful.

**C. Aggravated speeding** is defined as any speed greater than twenty (20) miles per hour over the speed limit, whether posted or unposted. "Aggravated speeding" is hereby declared unlawful and any person violating this subsection shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and/or by imprisonment in the City jail for a period of not more than ten (10) days.

*(Ord. Nos. 16265, 18454; Ord. No. 21982, § 11, 12-18-2008)*

**Section 618. Conditions affecting speed.**

Notwithstanding the posted speed limits, any person driving a vehicle shall drive the same at a careful and prudent speed not greater than nor less than is reasonable and proper, having due regard to the traffic, surface and width of the roadway and any other condition then existing; and no person shall drive any vehicle upon a roadway at a speed greater than will permit him to bring it to a stop within the assured clear distance ahead.

**Section 619. Speed less than minimum posted speed.**

Any speed less than the minimum speed specified by official traffic-control devices is unlawful.

**Section 620. Speed through unmarked intersection.**

A speed greater than fifteen (15) miles per hour through an open, unmarked or unprotected intersection is unlawful.

**Section 621. Speed in alleys.**

A speed greater than ten (10) miles per hour in any alley is unlawful.

**Section 622. Speed too slow for conditions.**

It shall be unlawful for any person to drive a motor vehicle at such a slow speed as to impede the normal and reasonable movement of traffic.

*(Ord. No. 24024, § 1, 11-7-2018)*

### Section 623. Speeding in a school zone.

**A.** No person shall operate a motor vehicle in excess of twenty-five (25) miles per hour upon any portion of the public streets which has been duly marked as a school zone, with traffic signs showing the words, "School - Speed Limit 25." The area of the reduced speed school zone shall begin at the location of the school zone speed limit sign facing traffic and shall end at the location of the school zone speed limit sign facing traffic coming from the opposite direction, or at the location of a sign on the same street, marked, "End School Speed Zone."

**B.** Every person violating this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not less than Ten Dollars ($10.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period of not less than five (5) days nor more than thirty (30) days, or by both such fine and imprisonment.

**C.** It shall not be a violation of this section if on the day a street is marked with a speed limit school zone sign there is no preschool, kindergarten, elementary or secondary school property open for instruction on that day within a mile radius of that school zone speed limit sign, or on any day, beginning at 6:00 p.m. and continuing until 6:00 a.m. the following day.

*(Ord. Nos. 15822, 18454, 19491)*

### Section 624. Excessive acceleration.

No driver shall either purposely or inadvertently cause his vehicle to accelerate at such an excessive or rapid rate of speed so as to spin or squeal the tires of such vehicle, or cause his ability to control such vehicle to be impaired to any appreciable degree.

### Section 625. Turn and stop signals.

Every driver, before turning, stopping or slowing his vehicle, shall give the following hand or light signals or both:

**A.** For a left turn, the driver's left hand and arm shall be held horizontally outside the vehicle to indicate turning intention, or a blinker light on the front and rear of the vehicle shall indicate the direction of turning;

**B.** For a right turn, the driver's left hand and arm shall be held upward outside the vehicle to indicate turning intention, or a blinker light on the front and rear of the vehicle shall indicate such a direction of turn; or

**C.** To indicate an intention to stop or decrease in speed, the driver's left hand and arm shall be held downward outside the vehicle, or a red light on the rear of the vehicle shall light upon the driver's application of the brake.

### Section 626. Hand signals obscured.

If for any reason a hand signal given by a driver to indicate an intention to turn, slow or stop would not be visible from the rear of his vehicle, then such signals shall be given by lamps or mechanical devices.

### Section 627. Turn-control devices.

Where authorized traffic-control devices are erected indicating that no right or left turn is permitted or directing such turn to the right or left, no driver of a vehicle shall disobey the directions of such device.

**Section 628. U-turns.**

**A.** No driver of a vehicle shall execute a U-turn unless such movement can be made in safety and without interfering with other traffic. The driver of a vehicle intending to make a U-turn shall approach the U-turn in the extreme left-hand traffic lane lawfully available to traffic moving in the direction of travel of such vehicle.

**B.** No driver of a vehicle shall execute a U-turn unless such movement can be made continuously without stopping and backing.

**C.** No driver of a vehicle shall execute a U-turn upon any curve, or upon the approach to or near the crest of a grade, where such vehicle cannot be seen by the driver of any other vehicle approaching from either direction within five hundred (500) feet.

**D.** No driver of a vehicle shall execute a U-turn where an official traffic-control device has been erected prohibiting U-turns.

*(Ord. No. 18437; Ord. No. 24849, § 1, 6-15-2022)*

**Section 629. Turning—Two-way street.**

**A. Right turn.** Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.

**B. Left turn.** At any intersection where traffic is permitted to move in both directions on each roadway entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the center line thereof and by passing to the right of such center line where it enters the intersection and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the center line of the roadway being entered. Whenever practicable, the left turn shall be made in that portion of the intersection to the left of the center of the intersection.

**Section 630. Turning—One-way street.**

**A. Right turn.** Both the approach for a right turn and the right turn shall be made as close as practicable to the right-hand curb of the roadway except where official traffic-control devices permit more than one (1) lane of traffic to execute a right turn. The driver in the lane nearest the right-hand curb shall complete his turn in the right half of the street entered and the driver in the other lane shall complete his turn in the left half of the street entered unless pavement markings indicate otherwise.

**B. Left turn.** Both the approach for a left turn and a left turn shall be made from as close as practicable to the left-hand curb of the roadway except where official traffic-control devices permit more than one (1) lane to turn left. The driver in the lane nearest the left-hand curb shall complete his turn in the left half of the street entered and the driver in the other lane shall complete his turn in the right half of the street entered unless pavement markings indicate otherwise.

**Section 631. Turning from two-way street to one-way street.**

**A. Right turn.** Both the approach for a right turn and the right turn shall be made as close as practicable to the right-hand curb of the roadway except where official traffic-control devices permit more than one (1) lane of traffic to execute a right turn. The driver in the lane nearest the right-hand curb shall complete his turn in the right half of the street entered and the driver in the other lane shall complete his turn in the left half of the street entered unless pavement markings indicate otherwise.

**B. Left turn.** A left turn from a two-way street onto a one-way street shall start in the lane to the immediate right of the center of the two-way street and shall be completed to the left center of the one-way entered, except where official traffic-control devices permit more than one (1) lane to turn left. The driver in the lane nearest the center line shall complete his turn in the left half of the street entered and the driver in the other lane shall complete his turn in the right half of the street entered unless pavement markings indicate otherwise.

### Section 632. Turning from one-way street to two-way street.

**A. Right Turn.** Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.

**B. Left Turn.** A left turn from a one-way street onto a two-way street shall start in the extreme left lane and shall end in the traffic lane immediately to the right of the center lane of the two-way street entered, unless signs erected at the intersection indicate otherwise.

### Section 633. Turning vehicles—Right-of-way.

Vehicles turning left shall yield the right-of-way to all vehicles proceeding straight ahead or making a right turn which are so close as to constitute an immediate hazard.

### Section 634. Entering an intersection.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection and crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal indication to proceed.

### Section 635. Unmarked intersections.

The driver of a vehicle approaching an intersection without any traffic-control device to regulate the flow of traffic entering the intersection shall yield the right-of-way to all vehicles already in the intersection or to any vehicle approaching from his right whenever that vehicle is so close as to constitute an immediate hazard.

### Section 636. Entering or leaving alleys, driveways or buildings.

**A.** The driver of a vehicle emerging from an alley, driveway or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any such alley or driveway and before proceeding onto the street shall see that such street and sidewalk is sufficiently free from moving vehicles or pedestrians to permit such vehicle to enter the line of moving vehicles without collision, yielding the right-of-way to vehicles and pedestrians which are so close as to constitute an immediate hazard.

**B.** The driver of a vehicle turning into an alley or driveway shall not make such turn until the street from which such turn is being made is sufficiently free from moving vehicles and pedestrians to permit such turn without a collision. The driver making such turn shall yield the right-of-way to all pedestrians and vehicles already in motion on the street so close as to constitute an immediate hazard.

### Section 637. Driving on right side of street.

**A.** Upon streets, parts of streets and alleys, officially designated and plainly marked and signed as one-way streets, vehicular traffic shall move only in the indicated direction of traffic. Such signs are to be erected and maintained at every intersection where movement in the opposite direction is prohibited.

**B.** Upon all two-way streets, the driver of a vehicle shall drive the vehicle upon the right half of the roadway except:

**1.** When the right half of the roadway is in disrepair and for such reason impassable; and after yielding the right-of-way to traffic approaching from the opposite direction a driver may proceed on the usable portion of the roadway; or

**2.** When overtaking and passing another vehicle.

### Section 638. Driving on sidewalks.

No vehicle shall be driven within or upon any sidewalk area except at a driveway or alley.

### Section 639. Motorcycles or motorscooters on sidewalks.

No motorcycle or motorscooter shall be ridden upon any sidewalk.

### Section 640. Driving on laned streets.

**A.** Whenever any two-lane street has been divided into marked lanes for traffic, the driver of a vehicle shall drive in the lane nearest the right-hand edge or curb of the roadway when such lane is available for travel, except when overtaking another vehicle or in preparation for a left turn.

**B.** A vehicle shall be driven entirely within a single lane and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety. The driver shall signal his intent to change lanes prior to doing so.

**C.** All persons driving slower than the normal flow of traffic shall drive in the extreme right-hand lane.

### Section 641. Driving through barriers.

No person shall drive any vehicle on or across any newly-made pavement or on any freshly-painted markings on any open or closed street, alley or roadway, across or around which pavement or markings there is a barrier or temporary barricade or at or near which there is a person or sign warning persons not to drive on or across such pavement. The provisions of this section shall not apply to persons while engaged in the construction or maintenance of such markings, barricades or roadway or to persons entering therein for the protection of lives or property.

*(Ord. No. 17117)*

### Section 642. Driving across fire hose.

No vehicle shall be driven over any unprotected hose of the Fire Department except by the consent of a member of the Fire Department.

### Section 643. Driving through a safety zone.

No driver shall at any time drive through or within a safety, loading or unloading zone unless such zone is unoccupied.

### Section 644. Zone of quiet.

All the territory within three hundred (300) feet of the premises of any hospital is hereby created and established as a zone of quiet, with or without the erection of authorized signs, and no person operating a vehicle within such zone shall sound the horn or other warning device or create any unnecessary noise except in an emergency.

### Section 645. Inattentive driving.

**A.** It shall be unlawful and an offense for any driver to fail to remain alert and give full attention to the safe operation of his vehicle while it is in motion.

**B.** It shall be unlawful and an offense for any driver to engage in any activity while driving that interferes with the safe control of his vehicle.

**C.** It shall be unlawful and an offense for any person to engage in any activity or to do any act which interferes with a driver's safe operation of a vehicle.

**D.** No police officer shall issue a citation under this section unless the operator of the vehicle is involved in an accident or collision or the police officer observes the operator of the vehicle driving in such a manner that poses an articulable danger to other persons on the roadway that is not otherwise specified in this title of the Tulsa Revised Ordinances.

*(Ord. No. 21982, § 12, 12-18-2008; Ord. No. 22548, § 1, 10-20-2011)*

### Section 646. Drag racing.

A drag race is defined as the operation of two (2) or more vehicles from a point side by side at accelerating speeds in a competitive attempt to outdistance each other or the operating of one (1) or more vehicles over a common selected course, from the same point to the same point, for the purpose of comparing the relative speeds or power of acceleration of such vehicle or vehicles within a certain distance or time limit. Drag racing is hereby declared unlawful and any person violating this section shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not less than Twenty-Five Dollars ($25.00) nor more than Five Hundred Dollars ($500.00), excluding costs and assessments, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

*(Ord. Nos. 15822, 18454)*

### Section 647. Reckless driving.

It shall be deemed reckless driving for any person to drive a vehicle in a careless or wanton manner without regard for the safety of persons or property or in violation of the conditions outlined in Section 618. Every person convicted of reckless driving shall be punished by imprisonment in the City jail for a period of not less than five (5) days nor more than ninety (90) days and/or a fine of not less than One Hundred Dollars ($100.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. Nos. 15822, 18454; Ord. No. 21982, § 13, 12-18-2008)*

### Section 648. Eluding a police officer.

**A.** Any operator of a vehicle who has been directed to stop by receiving a visual and audible signal of a flashing red light and siren from a police officer in a police vehicle and who then increases his speed, extinguishes his lights or in any manner attempts to

elude the police officer is guilty of an offense. The police officer, while attempting to stop a violator of this section, may communicate a request for the assistance of other police officers. Any police officer having knowledge of such request is authorized to render such assistance in stopping the violator and may effect an arrest under this section based upon probable cause.

**B.** Every person who is convicted of a violation of this section shall be punished by imprisonment in the City jail for a period of not more than ninety (90) days and/or a fine of not less than One Hundred Dollars ($100.00) nor more than One Thousand Two Hundred Fifty Dollars ($1,250.00), excluding costs, fees and assessments.

*(Ord. Nos. 16648, 18454; Ord. No. 21982, § 14, 12-18-2008)*

### Section 649. Persons under the influence of alcohol or other intoxicating substance or combination thereof.

**A.** It is unlawful and punishable as provided in Subsection C. of this section for any person to drive, operate or be in actual physical control of a motor vehicle, whether upon public roads, highways, streets, turnpikes, other public places or upon any private road, street, alley or lane which provides access to one (1) or more single- or multi-family dwellings who:

**1.** Has a blood or breath alcohol concentration, as defined in 47 Supp.2007, § 756, as amended, of eight-hundredths (0.08) or more at the time of a test of such person's blood or breath administered within two (2) hours after the arrest of such person; or

**2.** Is under the influence of alcohol; or

**3.** Is under the influence of any other intoxicating substance other than alcohol which may render such person incapable of safely driving or operating a motor vehicle; or

**4.** Is under the combined influence of alcohol and any other intoxicating substance which may render such person incapable of safely driving or operating a motor vehicle.

**B.** The fact that any person charged with a violation of this section is or has been lawfully entitled to use alcohol or a controlled dangerous substance or any other intoxicating substance shall not constitute a defense against any charge of violating this section.

As used in this title, the term "other intoxicating substance" shall mean any controlled, dangerous substance as defined in the Uniform Controlled Dangerous Substance Act, 63 O.S. Supp. 1996, §§ 2-101, *et seq.*, and any other substance, other than alcohol, which is capable of being ingested, inhaled, injected or absorbed into the human body and is capable of adversely affecting the central nervous system, vision, hearing or other sensory or motor functions.

**C.** Every person who is convicted of a violation of this section shall be punished by imprisonment in the City jail for a period of not less than ten (10) days nor more than six (6) months and a fine of not more than One Thousand Dollars ($1,000.00), excluding costs, fees and assessments.

*(Ord. Nos. 15822, 18454, 18881, 19166, 20185; Ord. No. 21982, § 15, 12-18-2008)*

### Section 650. Passing on single-laned two-way street.

The driver of a vehicle overtaking another vehicle while proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of

the street until safely clear of such overtaken vehicle. The driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle, on suitable and audible signal, and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

### Section 651. Passing on multi-laned streets.

On streets containing two (2) or more lanes traveling in the same direction, the driver of a vehicle may pass another vehicle on either side, provided that the passing vehicle does not cross the center line of two-way multi-laned streets.

### Section 652. When passing prohibited.

The driver of a vehicle shall not pass nor attempt to pass other vehicles under any of the following conditions or locations:

**A.** When the left half of the roadway is not clear for a sufficient distance ahead to permit such overtaking and passage to be completed in safety;

**B.** On a single-laned two-way street when approaching the crest of a grade;

**C.** On a single-laned two-way street when upon a curve in a street where the driver's view along the street is obstructed;

**D.** On a single-laned two-way street when within one hundred (100) feet of any bridge, viaduct or tunnel;

**E.** On a single-laned two-way street when within one hundred (100) feet of an intersection;

**F.** On a single-laned two-way street when within one hundred (100) feet of a railroad grade crossing;

**G.** When within one hundred (100) feet of a marked school zone;

**H.** Passing on the right is prohibited when to do so the driver must cause any portion of his vehicle to leave the traveled roadway; or

**I.** Where signs or markings are in place to define a no-passing zone, no driver shall at any time drive to the left side of the roadway within such no-passing zone or on the left side of any pavement striping designed to mark such no-passing zone throughout its length.

### Section 653. Passing between lanes of traffic.

No driver of a motorcycle or motorscooter, except authorized emergency vehicles, shall pass other vehicles between lanes of traffic traveling in the same direction.

### Section 654. Passing a school bus.

**A.** The driver of a vehicle meeting or overtaking a school bus that is stopped to take on or discharge school children, and on which the red loading signals are in operation, is to stop his vehicle before it reaches the school bus and not proceed until the loading signals are deactivated and then proceed past such school bus at a speed which is reasonable and with due caution for the safety of such school children and other occupants.

**B.** The driver of a vehicle upon a highway with separate roadways need not stop upon meeting or passing a school bus which is on a different roadway or when upon a

controlled access highway and the school bus is stopped in a loading zone which is a part of or adjacent to such highway and where pedestrians are not permitted to cross the roadway.

**C.** It shall be unlawful to operate any red flashing warning signal light on any school bus except when any such school bus is stopped on a highway for the purpose of permitting school children to board or alight from such school bus.

**D.** Every person violating any provision of this section shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs and assessments, or by imprisonment in the City jail for a period of not more than ninety (90) days, or by both such fine and imprisonment.

*(Ord. Nos. 15821, 18454)*

### Section 655. Penalty.

Unless otherwise provided for in this chapter, every person convicted of a violation of any provision of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. Nos. 15524, 18454, 19491; Ord. No. 21982, § 16, 12-18-2008)*

### Section 656. Alcohol chemical analysis—Impaired ability—Penalty.

**A.** Upon the trial of any criminal action or proceeding arising out of acts alleged to have been committed by any person while under the influence of alcohol or intoxicating liquor, evidence of the amount of alcohol in the person's blood as shown by a chemical analysis of his blood or breath is admissible. For the purpose of this section:

**1.** Evidence that there was five-hundredths (5/100) of one percent or less by weight of alcohol in his blood is *prima facie* evidence that the person was not under the influence of alcohol or intoxicating liquor;

**2.** Evidence that there was more than five-hundredths (5/100) of one percent by weight of alcohol in the person's blood is relevant evidence of operating a motor vehicle while his ability to operate such vehicle is impaired by the consumption of alcohol or intoxicating liquor; however, no person shall be convicted of the offense of operating a motor vehicle while his ability to operate such vehicle is impaired by consumption of alcohol or intoxicating liquor solely because there was more than five-hundredths (5/100) of one percent by weight of alcohol in the person's blood in the absence of additional evidence that such person's driving was affected by such consumption of alcohol to the extent that the public health and safety was threatened or that such person had violated a state statute or local ordinance in the operation of a motor vehicle;

**3.** Evidence that there was eight-hundredths (8/100) of one percent or more by weight of alcohol in his blood shall be admitted as *prima facie* evidence that the person was under the influence of alcohol or intoxicating liquor;

**4.** Percent by weight of alcohol in the blood shall be based upon grams of alcohol per one hundred (100) milliliters of blood; and

**5.** To be admissible, such evidence must first be qualified by establishing that such specimen was obtained from the subject within not more than two (2) hours of the arrest of the subject.

**B.** Any person who operates a motor vehicle while his ability to operate such motor vehicle is impaired by the consumption of alcohol shall be guilty of an offense and, upon conviction thereof, shall be subject to a fine of not less than One Hundred Dollars ($100.00) nor more than Five Hundred Dollars ($500.00), excluding costs and assessments, and/or by imprisonment in the City jail for not more than ninety (90) days.

*(Ord. Nos. 16922, 18454, 20185)*

### Section 657. Transporting an open container of alcohol.

**A.** Except as provided in Subsection B. of this section, it shall be an offense for any operator to knowingly transport or for any passenger to possess in any moving vehicle upon a public highway, street or alley any intoxicating beverage, except in the original container which shall not have been opened and from which the original cap or seal shall not have been removed, unless the opened container be in the rear trunk or rear compartment, which shall include the spare tire compartment in a station wagon or panel truck, or any outside compartment which is not accessible to the driver or any other person in the vehicle while it is in motion. Any person violating the provisions of this section shall be deemed guilty of a misdemeanor offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

**B.** The provisions of Subsection A. of this section shall not apply to the passenger area of buses and limousines; however, it shall be an offense for the driver of the bus or limousine to consume or have in the driver's immediate possession any intoxicating beverage. Any person violating the provisions of this section shall be deemed guilty of a misdemeanor offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

*(Ord. Nos. 17527, 18454; Ord. No. 21982, § 17, 12-18-2008)*

### Section 658. Transporting an open container of low-point beer.

**A.** Except as provided in Subsection B. of this section, it shall be an offense for any operator to knowingly transport or for any passenger to possess in any moving vehicle upon a public highway, street or alley any low-point beer, except in the original container which shall not have been opened and from which the original cap or seal shall not have been removed, unless the opened container be in the rear trunk or rear compartment, which shall include the spare tire compartment in a station wagon or panel truck, or any outside compartment which is not accessible to the driver or any other person in the vehicle while it is in motion. Any person violating the provisions of this section shall be deemed guilty of a misdemeanor offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

**B.** The provisions of Subsection A. of this section shall not apply to the passenger area of buses and limousines; however, it shall be an offense for the driver of the bus or limousine to consume or have in the driver's immediate possession any low-point beer. Any person violating the provisions of this section shall be deemed guilty of a misdemeanor offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

*(Ord. Nos. 17527, 18454, 19491; Ord. No. 21982, § 18, 12-18-2008)*

### Section 659. Following too closely.

The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicles and the traffic upon and the condition of the street or highway.

*(Ord. No. 14444)*

### Section 660. Restricted access.

No person shall drive a vehicle onto or from any controlled access roadway except at such entrances and exits as are established by public authority.

*(Ord. No. 14785)*

### Section 661. Driving under the influence while under age.

**A.** It shall be unlawful and punishable as provided in Subsection C. of this section, for any person under twenty-one (21) years of age to drive, operate or be in actual physical control of a motor vehicle who:

**1.** Has any measurable quantity of alcohol in the person's blood or breath at the time of a test administered within two (2) hours after an arrest of the person;

**2.** Exhibits evidence of being under the influence of any other intoxicating substance as shown by analysis of a specimen of the person's blood, breath, saliva or urine in accordance with the provisions of 47 O.S. Supp. 1996, §§ 752 and 759; or

**3.** Exhibits evidence of the combined influence of alcohol and any other intoxicating substance.

**B.** As used in this section, the term "other intoxicating substance" means any controlled dangerous substance as defined in the Uniform Controlled Dangerous Substances Act, 63 O.S. Supp. 1996, §§ 2-101, *et seq.*, or any other substance, other than alcohol, which is capable of being ingested, inhaled, injected or absorbed into the human body and is capable of adversely affecting the central nervous system, vision, hearing or other sensory or motor function.

**C.** Every person under twenty-one (21) years of age who is convicted of a violation of this section shall be punished for a first offense by a fine of not less than One Hundred Dollars ($100.00) nor more than Five Hundred Dollars ($500.00), excluding costs and assessments, or by completion of twenty (20) hours of community service, or by requiring the person to attend and complete a treatment program, or by any combination of fine, community service or treatment. Every person who is convicted of a violation of this section shall, upon a second or subsequent conviction, be punished by a fine of not less than One Hundred Dollars ($100.00) nor more than One Thousand

Dollars ($1,000.00), excluding costs, fees and assessments, or by completion of forty (40) hours of community service, or by requiring the person to attend and complete a treatment program, or by any combination of fine, community service or treatment.

**D.** The court may assess additional community service hours in lieu of any fine specified in this section.

**E.** Nothing in this section shall be construed to prohibit the filing of charges pursuant to Sections 656 or 649 of this chapter, when the facts warrant.

*(Ord. Nos. 18881, 19166)*

**Section 662. Prohibited vehicle sound amplification systems.**

**A.** No person operating or occupying a motor vehicle on a street, highway, alley, parking lot or driveway shall operate or permit the operation of any sound amplification system from the vehicle so that the sound is audible at a distance of fifty (50) or more feet from the vehicle.

**B.** "Sound amplification system" means any radio, tape player, compact disc player, loud speaker or other electronic device used for the amplification of sounds including, without limitation, sounds created by human voice or musical instrumentation.

**C.** "Audible" means any sound produced by a sound amplification system from within the vehicle, regardless of whether the vehicle is operating or occupied, which can be heard at a distance of fifty (50) feet or more. Measurement standards shall be by the auditory senses, based upon direct line of sight. Words or phrases need not be discernible and base reverberations are included. The motor vehicle may be in any public or private location.

**D.** It is an affirmative defense to a charge under this section that the operator was not otherwise prohibited by law from operating the sound amplification system, and that any of the following apply:

**1.** The system was being operated to request medical or vehicular assistance or to warn of a hazardous road condition;

**2.** The vehicle was an emergency or public safety vehicle;

**3.** The vehicle was owned and operated by the City of Tulsa, or public or private utility company;

**4.** The vehicle was used in authorized public activities, such as parades, fireworks, sports events or other activities which have been approved by the City Council;

**5.** The vehicle was operating in the daytime in a residential area where the speed limit is twenty-five (25) miles per hour or less.

**E.** Every person violating any provision of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine not exceeding Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

*(Ord. Nos. 18908, 19491)*

### Section 663. Use of dynamic braking device prohibited, except for the aversion of imminent danger.

No person shall operate any motor vehicle on a street, highway, alley, parking lot or driveway with a dynamic braking device engaged, except to avert imminent danger to the operator or pedestrians, bicycles or other vehicles so close as to constitute an immediate hazard.

*(Ord. No. 20564)*

### Section 664. Traffic signal preemption device-possession, use, interference with or sale.

**A.** As used in this section, the term "traffic signal preemption device" shall mean a device designed for use by authorized emergency vehicles to improve traffic movement by temporarily controlling signalized intersections.

**B.** It shall be unlawful and an offense for a person to possess, use or interfere with a traffic signal preemption device unless:

**1.** The person is the operator of an authorized emergency vehicle upon which the device is installed; and

**2.** The person is responding to an existing or potential emergency and there is a threat of immediate danger to life or property which reasonably requires the use of the device in order to protect the life, safety, health or property of another person.

**C.** It shall be unlawful and an offense to advertise, offer for sale, sell or otherwise distribute any traffic signal preemption device to any individual person in the City of Tulsa. Advertising, offering for sale, selling and distribution of these devices shall be limited to trade publications and companies whose target market is law enforcement agencies, fire departments and ambulance service providers of the state of Oklahoma or its political subdivisions.

*(Ord. No. 21982, § 19, 12-18-2008)*

### Section 665. Driver of a motor vehicle approaching a stationary emergency vehicle.

**A.** The driver of a motor vehicle, upon approaching a stationary authorized emergency vehicle that is displaying a flashing combination red or blue lights or any combination of red or blue lights, shall:

**1.** If traveling on a street, roadway or highway that consists of two (2) or more lanes that carry traffic in the same direction of travel as that of the driver, the driver shall proceed with due caution and shall, if possible and with due regard to the road, weather and traffic conditions, change lanes into a lane that is not adjacent to the stationary authorized emergency vehicle; or if the driver is not able to change lanes or if to do so would be unsafe, the driver shall proceed with due caution and reduce the speed of the motor vehicle to a safe speed for the existing road, weather and traffic conditions; and

**2.** If traveling on a street, roadway or highway other than that described in paragraph 1. of this subsection, the driver shall proceed with due caution and reduce the speed of the motor vehicle to a safe speed for the existing road, weather and traffic conditions.

*(Ord. No. 21982, § 20, 12-18-2008)*

## Section 666. Texting while driving.

**A.** It shall be unlawful for any person to operate a motor vehicle on any street or highway within the City while using a hand-held electronic communication device to manually compose, send or read an electronic text message while the motor vehicle is in motion.

**B.** Any person who violates the provisions of subsection A. of this section shall be guilty of an offense and, upon conviction, be punished by a fine of not more than One Hundred Dollars ($100.00), excluding costs, fees and assessments.

**C.** The provisions of subsection A. of this section shall not apply if the person is using the cellular telephone or electronic communication device for the sole purpose of communicating with any of the following regarding an imminent emergency situation:

**1.** An emergency response operator;

**2.** A hospital, physician's office or health clinic;

**3.** A provider of ambulance services;

**4.** A provider of firefighting services; or

**5.** A law enforcement agency.

**D.** For the purpose of this section:

**1.** "Cellular telephone" means an analog or digital wireless telephone authorized by the Federal Communications Commission to operate in the frequency bandwidth reserved for cellular telephones;

**2.** "Compose", "send" or "read" with respect to a text message means the manual entry, sending or retrieval of a text message to communicate with any person or device;

**3.** "Electronic communication device" means an electronic device that permits the user to manually transmit a communication of written text by means other than through an oral transfer or wire communication. This term does not include a device that is physically or electronically integrated into a motor vehicle or a voice-operated global positioning or navigation system that is affixed to a motor vehicle, or a hands-free device that allows the user to write, send or read a text message without the use of either hand except to activate, deactivate or initiate a feature or function; and

**4.** "Text message" includes a text-based message, instant message, electronic message, photo, video or electronic mail."

*(Ord. No. 23369, § 1, 9-24-2015)*

## CHAPTER 7. EQUIPMENT REQUIREMENTS

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Section 739. Penalty.
Section 740. Mandatory seat belt use.
Section 741. Mandatory child passenger restraint system.

### Section 700. Scope and effect of regulations.

**A.** No unsafe vehicle or combination of vehicles may be driven or moved on any street or roadway so as to endanger any person. A vehicle is unsafe if it is not equipped with

such lamps and other equipment in proper condition as required by this chapter, or if its equipment violates any provision of this chapter. Transporting, moving or knowingly permitting such vehicles to be transported or moved is an offense punishable by a fine of not less than Five Dollars ($5.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, unless another penalty is provided herein. However, the provisions of this section shall not apply to implements of husbandry, road rollers and farm tractors, except as hereinafter set forth.

**B.** Any person producing proof to the court within forty-eight (48) hours that a condition or equipment for which the person was cited as defective, missing, prohibited, improper, unauthorized or otherwise in violation of this chapter has been remedied by the person shall be entitled to dismissal of such charge without assessment of court costs or fees.

*(Ord. Nos. 15524, 18454; Ord. No. 21982, § 21, 12-18-2008)*

### Section 701. Lighted lamps—When required.

Any vehicle using any street or roadway must display lighted lamps and illuminating devices, as hereinafter required, at any time between one-half (½) hour after sunset until one-half (½) hour before sunrise. Such lamps are also required at any other time when a person or vehicle on the street or roadway is, due to insufficient light or other unfavorable atmospheric conditions, not clearly discernable from a distance of five hundred (500) feet ahead.

### Section 702. Visibility distance and mounted heights of lamps.

**A.** When a requirement is made concerning the distance to which certain lamps and devices shall render objects visible or within which such lamps or devices shall be visible, the provisions shall apply during the times stated in Section 701 to a vehicle without load upon a straight, level, unlighted roadway and under normal atmospheric conditions, unless a different time or standard is expressly stated.

**B.** When a requirement is made concerning the mounted height of lamps or devices, it shall mean from the center of such lamp device to the level ground upon which the vehicle stands when such vehicle is without a load.

### Section 703. Head lamps on motor vehicles.

**A.** Every motor vehicle other than a motorcycle or motor-driven cycle shall be equipped with at least two (2) head lamps with at least one (1) on each side of the motor vehicle, which head lamps shall comply with the requirements and limitations set forth in this chapter.

**B.** Every motorcycle and motor-driven cycle shall be equipped with at least one (1) and not more than two (2) head lamps which shall comply with the requirements and limitations of this chapter.

**C.** After the effective date of this section every head lamp upon every motor vehicle, including every motorcycle and motor-driven cycle, shall be located at a height of not less than twenty-two (22) inches nor more than fifty-four (54) inches measured from the center of the head lamp to the level ground.

*(Ord. No. 21982, § 22, 12-18-2008)*

### Section 704. Headlights must be adjusted.

Headlight beams must be so adjusted and focused as not to throw the headlight beam on a plane higher than the mounting of the headlights.

### Section 705. Multiple-beam road-lighting equipment.

Except as hereinafter provided, the head lamps, auxiliary driving lamp, auxiliary passing lamp or combination thereof on motor vehicles, except on motorcycles or motor-driven cycles, shall be so arranged that the driver may select at will between distributions of light projected to different elevations. Such lamps may, in addition, be so arranged that such selection can be made automatically subject to the limitations given herein.

**A.** There shall be an uppermost distribution of light or composite beam so aimed and of such intensity as to reveal persons and vehicles at a distance of at least three hundred fifty (350) feet ahead under all conditions of loading.

**B.** There shall be a lowermost distribution of light or composite beam so aimed and of sufficient intensity to reveal persons and vehicles at a distance of at least one hundred (100) feet ahead. On a straight, level road under any condition of loading, none of the high-intensity portion of the beam shall be directed to strike the eyes of an approaching driver.

**C.** Every new motor vehicle, other than a motorcycle or motor-driven cycle, registered in the state of Oklahoma after the effective date of the State Highway Safety Code which has multiple-beam road-lighting equipment, shall be equipped with a beam indicator which shall be lighted whenever the uppermost distribution of light from the head lamps is in use and shall not otherwise be lighted. Such indicator shall be so designed and located that when lighted it will be readily visible without glare to the driver of the vehicle so equipped.

### Section 706. Use of multiple-beam road-lighting equipment.

Whenever a motor vehicle is being operated on a roadway or shoulder adjacent thereto during the times specified in Section 701, the driver shall use a distribution of light or composite beam directed high enough and of sufficient intensity to reveal persons and vehicles at safe distance in advance of the vehicle, subject to the following requirements and limitations:

**A.** Whenever a driver of a vehicle approaches an on-coming vehicle within five hundred (500) feet, such driver shall use a distribution of light or composite beam so aimed that the glaring rays are not projected into the eyes of the on-coming driver.

**B.** Whenever the driver of a vehicle follows another vehicle within two hundred (200) feet to the rear, except when engaged in the act of overtaking and passing, such driver shall use his lowermost distribution of light.

### Section 707. Tail lamps.

**A.** Every motor vehicle, trailer, semitrailer, pole trailer and any other vehicle which is being drawn at the end of a train of vehicles, shall be equipped with at least one (1) tail lamp mounted on the rear which, when lighted as required, shall emit a red light plainly visible from a distance of five hundred (500) feet to the rear; provided that in a train of vehicles only the tail lamp on the rearmost vehicle need actually be seen from

the distance specified. Further, every such above-mentioned vehicle, other than a truck-tractor, registered in the state of Oklahoma and manufactured or assembled after the effective date of this section shall be equipped with at least two (2) tail lamps mounted on the rear on the same level and as widely spaced laterally as practicable which, when lighted as herein required, shall comply with the provisions of this section.

**B.** Every tail lamp upon every vehicle shall be located at a height of not more than seventy-two (72) inches nor less than fifteen (15) inches.

**C.** Either a tail lamp or a separate lamp shall be constructed as to illuminate with a white light the rear registration plate and render it clearly legible from a distance of fifty (50) feet to the rear. Any tail lamp or tail lamps, together with any separate lamp for illuminating the rear registration plate, shall be so wired as to be lighted whenever the head lamps, clearance lamps or auxiliary driving lamps are lighted.

*(Ord. No. 21982, § 23, 12-18-2008)*

### Section 708. Back-up lamps.

Any motor vehicle may be equipped with not more than two (2) back-up lamps, either separately or in combination with other lamps, but any such back-up lamp shall not be lighted when the motor vehicle is in forward motion.

### Section 709. Spot lamps, fog lamps and auxiliary lamps.

**A.** Vehicle spot lamps shall be subject to the provisions set forth herein:

**1.** No vehicle shall be equipped with more than two (2) vehicle spot lamps.

**2.** Vehicle spot lamps shall not be used as a substitute for head lamps.

**3.** When mounted upon a vehicle, such spot lamps shall be located with the center at a height of not less than thirty (30) inches nor more than seventy-two (72) inches above the level surface upon which the vehicle stands. Such lamp shall be so directed that:

**a.** No portion of the main substantially parallel beam of light will strike the roadway to the left of the prolongation of the left side of the vehicle; and

**b.** The top of the beam will not strike the roadway at a distance in excess of five hundred (500) feet from the vehicle.

**4.** Unless they are being used by an authorized emergency vehicle, such spot lamps shall be immediately turned off upon the approach of another vehicle.

**B.** Vehicle fog lamps and auxiliary lamps shall be subject to the provisions given herein.

**1.** No vehicle shall be equipped with more than two (2) fog lamps.

**2.** Fog lamps shall be mounted upon the front of the vehicle below the level of the head lamp's center.

**3.** Fog lamps shall be so adjusted and aimed that no part of the high-intensity portion of the beam shall, at a distance of twenty-five (25) feet, rise above the horizontal plane passing through the center of the lamp.

**4.** Fog lamps shall not be used as a substitute for head lamps unless conditions of rain or fog exist. When substituted, two (2) such fog lamps mounted on opposite sides of the front of the vehicle must be lighted.

**C.** Every person convicted of a violation of this section shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not less than Ten Dollars ($10.00) nor more than Fifty Dollars ($50.00), excluding costs and assessments.

*(Ord. No. 18454)*

### Section 710. Number of driving lamps required or permitted.

**A.** At all times specified in Section 701, at least two (2) lighted lamps shall be displayed, one (1) on each side at the front of every motor vehicle other than a motorcycle or motor-driven cycle, except when such vehicle is parked subject to the regulations governing lights on parked vehicles.

**B.** Whenever a motor vehicle equipped with head lamps as herein required is also equipped with any auxiliary lamps, spot lamp or any other lamp on the front hereof projecting a beam of intensity greater than three hundred (300) candlepower, not more than a total of four (4) of any such lamps on the front of a vehicle shall be lighted at any one time when upon a street.

**C.** The driver of any vehicle when approaching an on-coming vehicle within a minimum distance of three hundred (300) feet shall not have illuminated any driving lamps, auxiliary lamps or other combination of lamps other than the required head lamps.

### Section 711. Signal lamps and signal devices.

**A.** Any motor vehicle may be equipped and when required under this chapter shall be equipped with a stop lamp or lamps on the rear of the vehicle which shall display, when lighted, a red or amber light, or any shade of color between red and amber, visible from a distance of not less than one hundred (100) feet to the rear in normal sunlight which shall be activated upon application of the service brake and which may but need not be incorporated with one (1) or more other rear lamps.

**B.** Any motor vehicle may be equipped and when required under this chapter shall be equipped with lamps showing to the front and rear for the purpose of indicating an intention to turn either to the right or left. Such lamps showing to the front shall be located on the same level and as widely spaced laterally as practicable and when in use shall display a white or amber light, or any shade of color between white and amber, visible from a distance of not less than one hundred (100) feet to the front in normal sunlight. The lamps showing to the rear shall be located at the same level and as widely spaced laterally as practicable, and when in use shall display a red or amber light, or any shade of color between red and amber, visible from a distance of not less than one hundred (100) feet to the rear in normal sunlight. When activated, such lamps shall indicate the intended direction of turning by flashing the lights showing to the front and rear on the side towards which the turn is made.

**C.** Any motor vehicle or combination of vehicles eighty (80) inches or more in overall width, and manufactured or assembled after the effective date set forth in the Highway Safety Code of the state of Oklahoma, shall be equipped with lamps showing to the front and rear for the purpose of indicating an intention to turn either to the right or left. Such lamps showing to the front shall be located on the same level and as widely spaced laterally as practicable and when in use shall display a white or amber light, or any shade of color between white and amber, visible for a distance of not less than five hundred (500) feet to the front in normal sunlight. The lamps showing to the rear shall

be located at the same level and as widely spaced laterally as practicable and when in use shall display a red or amber light, or any shade of color between red and amber, visible for a distance of not less than five hundred (500) feet to the rear in normal sunlight. When activated, such lamps shall indicate the intended direction of turning by flashing the lights showing to the front and rear on the side toward which the turn is made.

**D.** No stop lamp or signal lamp shall project a glaring light.

### Section 712. Special restrictions on lamps.

**A.** Any lighted lamp or illuminating device upon a motor vehicle, other than head lamps, spot lamps, auxiliary lamps, flashing turn signals, emergency vehicle warning lamps, construction and maintenance warning lamps and school bus warning lamps, which projects a beam of light of an intensity greater than three hundred (300) candlepower shall be so directed that no part of the high-intensity portion of the beam shall strike the level of the roadway on which the vehicle stands at a distance of more than seventy-five (75) feet from the vehicle.

**B.** No person shall drive or move any vehicle or equipment upon any highway with any lamp or device thereon displaying a red light visible from directly in front of the center thereof. Only regular employees of the United States Government, the State of Oklahoma or any political subdivision thereof engaged in law enforcement or Fire Department duties, or companies offering ambulance services, shall own or operate a vehicle equipped with a red or blue light directed to the front unless a permit has been issued to the person by the Chief of Police.

**C.** Flashing lights are prohibited except on an authorized emergency vehicle, school bus, church bus as defined in 47 O.S. 1991, § 11-705.1, snow-removal equipment, wreckers and tow vehicles while at the scene of an emergency or any vehicle as a means of indicating a right or left turn or in the presence of a vehicular traffic hazard requiring unusual care in approaching, overtaking or passing. Flashing red or blue lights or a combination of flashing red and blue lights may be used on vehicles or machinery owned or operated by any agency of the United States Government, state of Oklahoma or any political subdivision thereof when engaged in the performance of emergency work or on the construction or maintenance of roadways or bridges, or on wreckers and tow vehicles at the scene of an emergency.

**D.** Blue lights are prohibited except as allowed in Subsection C. of this section.

*(Ord. Nos. 18454, 19491; Ord. No. 21982, § 24, 12-18-2008)*

### Section 713. Lamps on parked vehicles.

**A.** Whenever a vehicle, other than a motor-driven cycle, is parked or stopped upon a roadway or shoulder adjacent thereto, whether attended or unattended, during the hours between one-half (½) hour after sunset and one-half (½) hour before sunrise and there is not sufficient light to reveal such vehicle from a distance of three hundred (300) feet upon such roadway, such vehicle so parked or stopped shall be equipped with one (1) or more lamps meeting the following requirements:

**1.** At least one (1) lamp shall display, when lighted, a white or amber light visible from a distance of three hundred (300) feet to the front of the vehicle and the same lamp or at least one (1) other lamp shall display, when lighted, a red light visible from a distance of three hundred (300) feet to the rear of the vehicle; and

**2.** The location of such lamp or lamps shall always be such that at least one (1) lamp or combination of lamps meeting the requirements of this section is installed as near as practicable to the side of the vehicle which is closest to the passing traffic.

**B.** Any lighted head lamps upon a parked vehicle shall be depressed or dimmed.

### Section 714. Lamp or flag on projecting load.

Whenever the load upon any vehicle extends to the rear four (4) feet or more beyond the bed or body of such vehicle, there shall be displayed at the extreme rear end of the load, at the time specified in Section 701 hereof, a red light or lantern plainly visible from a distance of at least five hundred (500) feet to the sides and rear. A red light or lantern required under this section shall be in addition to the red rear light required upon every vehicle. At any other time, there shall be displayed at the extreme rear end of such load a red flag or cloth not less than twelve (12) inches square and so hung that the entire area is visible to the driver of a vehicle approaching from the rear.

### Section 715. Lamps on farm tractors, farm equipment and implements of husbandry.

**A.** Every farm tractor and every self-propelled farm equipment unit or implement of husbandry not equipped with an electric lighting system shall at all times mentioned in Section 701 be equipped with at least one (1) lamp displaying, when lighted, a white light visible from a distance of five hundred (500) feet to the front of such vehicle and shall also be equipped with at least one (1) lamp displaying, when lighted, a red light visible from a distance of not less than five hundred (500) feet to the rear.

**B.** Every self-propelled unit of farm equipment not equipped with an electric lighting system shall at all times mentioned in Section 701, in addition to the lamps required in Subsection A, be equipped with two (2) red reflectors visible from a distance up to and including six hundred (600) feet to the rear when directly in front of lawful upper beams of head lamps.

**C.** Every combination of farm tractor and tow unit of farm equipment or implement of husbandry not equipped with an electric lighting system shall at all times mentioned in Section 701 be equipped with the following lamps:

**1.** At least one (1) lamp mounted to indicate as nearly as practicable the extreme left projection of such combination and displaying, when lighted, a white light visible from a distance of not less than five hundred (500) feet in front of such combination; and

**2.** Two (2) lamps each displaying, when lighted, a red light visible from a distance of not less than five hundred (500) feet to the rear of such combination, or as an alternative, at least one (1) lamp displaying, when lighted, a red light visible from a distance of not less than five hundred (500) feet to the rear thereof and two (2) red reflectors visible for a distance up to and including six hundred (600) feet to the rear thereof when illuminated by the lawful upper beams of head lamps.

**D.** Every farm tractor and every self-propelled unit of farm equipment or implement of husbandry equipped with an electric lighting system shall at all times mentioned in Section 701 be equipped with two (2) single-beam or multiple-beam head lamps meeting the requirements of Section 705 of this chapter or, as an alternative, Section 717 of this chapter and at least one (1) red lamp visible, when lighted, from a distance

of not less than five hundred (500) feet to the rear; provided, however, that every such self-propelled unit of farm equipment other than a farm tractor shall have two (2) such red lamps or, as an alternative, one (1) such red lamp and two (2) red reflectors visible from a distance up to and including six hundred (600) feet to the rear when directly in front of lawful upper beams of head lamps.

**E.** Every combination of farm tractor and towed farm equipment or towed implement of husbandry equipped with an electric lighting system shall at all times mentioned in Section 701 be equipped with lamps as follows:

**1.** The farm tractor implement of every such combination shall be equipped as required in subsection D of this section;

**2.** The towed unit of farm equipment or implement of husbandry element of such combination shall be equipped with two (2) red lamps visible, when lighted, from a distance of not less than five hundred (500) feet to the rear or, as an alternative, two (2) red reflectors visible from a distance up to and including six hundred (600) feet to the rear when directly in front of lawful upper beams of head lamps; and

**3.** Such combination shall also be equipped with a lamp displaying a white or amber light, or any shade of color between white and amber, visible, when lighted, from a distance of not less than five hundred (500) feet to the front and a lamp displaying a red light visible, when lighted, from a distance of not less than five hundred (500) feet to the rear.

**F.** The lamp and reflectors required in this section shall be so positioned as to show from front and rear as nearly as practicable the extreme projection of the vehicle on the side of the roadway used in passing such vehicle. If a farm tractor or a unit of farm equipment, whether self-propelled or towed, is equipped with two (2) or more lamps or reflectors visible from the front, or two (2) or more lamps or reflectors visible from the rear, such lamps or reflectors shall be so positioned that the extreme projection both to the rear and to the right of such vehicle shall be indicated as nearly as practicable.

## Section 716. Special lighting equipment on school buses.

It shall be unlawful to operate any flashing, warning, signal light on any school bus except when any such school bus is stopped on a street for the purpose of permitting school children to board or alight from such school bus.

## Section 717. Lamps on other vehicles and equipment.

Every vehicle, including animal-drawn vehicles and vehicles referred to in Section 700, not specifically required by the provisions of this chapter to be equipped with lamps or other lighting devices, shall at all times specified in Section 701 of this chapter be equipped with at least one (1) lamp displaying, when lighted, a white light visible from a distance of not less than five hundred (500) feet to the front of such vehicle; and shall also be equipped with two (2) lamps displaying, when lighted, red lights visible from a distance of not less than five hundred (500) feet to the rear of such vehicle or, as an alternative, one (1) lamp displaying, when lighted, a red light visible from a distance of not less than five hundred (500) feet to the rear and two (2) red reflectors visible for a distance up to and including six hundred (600) feet to the rear when illuminated by the lawful upper beams of head lamps.

## Section 718. Only emergency vehicles to be equipped with siren.

No person other than regular employees of the United States Government, the state of Oklahoma or any political subdivision thereof engaged in law enforcement or fire department duties, or companies offering ambulance services shall own or operate a vehicle equipped with a siren attached to the vehicle, unless such person has been issued a siren permit by the Chief of Police.

*(Ord. No. 18454)*

## Section 719. Brake equipment required.

**A.** Every motor vehicle, other than a motorcycle or motor-driven cycle when operated upon a street or roadway shall be equipped with brakes adequate to control the movement of and to stop and hold such vehicle, including two (2) separate means of applying the brakes, each of which means shall be effective to apply the brakes to at least two (2) wheels. If these two separate means of applying the brakes are connected in any way, they shall be so constructed that failure of any one part of the operating mechanism shall not leave the motor vehicle without brakes on at least two (2) wheels.

**B.** All motorcycles and motorscooters, except on actual trail rides conducted outside the public streets and roadways, shall be equipped with brakes adequate to control the movement of such vehicles, to stop and hold such vehicles, including two (2) separate means of applying the brakes: one (1) means shall be effective to apply the brakes to the front wheel, and one (1) shall be effective to apply the brakes to the rear wheels. All such vehicles shall be equipped with a stop lamp on the rear of the vehicle which shall display, when lighted, a red or amber light, or any shade of color between red and amber, visible from a distance of not less than one hundred (100) feet to the rear in normal sunlight and which shall be actuated upon application of the service brake.

## Section 720. Horns and warning devices.

**A.** Every motor vehicle when operated upon a street or roadway shall be equipped with a horn in good working condition and capable of emitting sound audible under normal conditions from a distance of not less than two hundred (200) feet; but no horn or other warning device shall emit an unreasonably loud or harsh sound or whistle. The driver of a motor vehicle shall when reasonably necessary to insure safe operation, give audible warning with his horn, but shall not otherwise use such horn when upon a roadway when such vehicle is in motion.

**B.** No vehicle shall be equipped with nor shall any person use upon a vehicle any siren, whistle, or bell, except as otherwise permitted in the section.

**C.** Any authorized emergency vehicle shall be equipped with a siren, whistle, or bell, capable of emitting sound audible under normal conditions from a distance of not less than five hundred (500) feet and of a type approved by the Chief of Police or his designee. Such warning device shall not be used except when such vehicle is operated in response to an emergency call or is in the immediate pursuit of an actual or suspected violator of the law, in which events, the driver of such vehicle shall sound such warning device when reasonably necessary to warn pedestrians and other drivers of the approach of the emergency vehicle.

*(Ord. No. 13046)*

## Section 721. Mufflers, prevention of noise.

Every motor vehicle shall at all times be equipped with a muffler in good working order and in constant operation to prevent excessive or unusual noise and annoying smoke, and no person shall use a muffler cut-out, by-pass or similar device upon a motor vehicle on any street or highway. No person shall modify the exhaust system of a motor vehicle in any manner which will amplify or increase the noise or sound emitted louder than that emitted by the muffler originally installed on the vehicle.

*(Ord. No. 13642)*

## Section 722. Mirrors.

**A.** Every motor vehicle shall be equipped with a mirror mounted on the left side of the vehicle and so positioned and located as to reflect to the driver a view of the roadway to the rear of the motor vehicle.

**B.** Every motor vehicle shall be equipped with an additional mirror mounted either inside the vehicle approximately in the center or outside the vehicle on the right side and so positioned and located as to reflect to the driver a view of the roadway to the rear of the vehicle.

*(Ord. No. 21982, § 25, 12-18-2008)*

## Section 723. Steering apparatus.

It shall be an offense to operate a vehicle with the steering apparatus modified or altered in any manner from the original steering apparatus provided by the manufacturer of the vehicle.

## Section 724. Windshields must be unobstructed and equipped with wipers.

**A.** No person shall drive any motor vehicle with any sign, poster or other nontransparent material, including snow or ice, upon the front windshield, side wings or side or rear windows of such vehicle which obstructs the driver's clear view of the roadway or any intersecting roadway.

**B.** The windshield on every motor vehicle, other than a motorcycle or motor-driven cycle, shall be equipped with a device for cleaning rain, snow or other moisture from the windshield, which device shall be so constructed as to be controlled or operated by the driver of the vehicle.

**C.** Every windshield wiper upon a motor vehicle shall be maintained in good working order.

## Section 725. Motorcyle, motorscooter and motor-driven cycle mirrors.

All motorcycles, motorscooters and motor-driven cycles shall be equipped with two (2) mirrors containing a reflection surface of not less than three (3) inches in diameter, mounted one (1) on each side of the vehicle and positioned so as to enable the operator to clearly view the roadway for a distance of two hundred (200) feet to the rear of his vehicle.

*(Ord. No. 20185)*

**Section 726. Motorcycle, motorscooter and motor-driven cycle windshields.**

All motorcycles, motorscooters and motor-driven cycles shall be equipped with a windshield of sufficient quality, size and thickness to protect the operator from foreign objects. In lieu of such windshield, the operator shall wear goggles or face shield of material and design to protect him from foreign objects.

*(Ord. No. 20185)*

**Section 727. Motorcycle, motorscooter and motor-driven cycle fenders.**

All motorcycles, motorscooters and motor-driven cycles shall be equipped with a fender over each wheel. All fenders shall be of a type provided by the manufacturer.

*(Ord. No. 20185)*

**Section 728. Motorcycle, motorscooter and motor-driven cycle handlebars.**

Handlebars on motorcycles, motorscooters and motor-driven cycles shall not exceed twelve (12) inches in height, measured from the crown or point of manufacturer's attachment.

*(Ord. No. 20185)*

**Section 729. Motorcycle, motorscooter and motor-driven cycle speedometers.**

All motorcycles, motorscooters and motor-driven cycles shall be equipped with a properly operating speedometer capable of registering at least the maximum legal speed limit for that vehicle.

*(Ord. No. 20185)*

**Section 730. Suicide clutch.**

No person shall ride a motorcycle with the clutch altered from the factory installation or change to the "Suicide Clutch" system.

**Section 731. Headgear.**

No person under eighteen (18) years of age shall operate or ride upon any motorcycle, motorscooter or motor-driven cycle, except on actual trail rides conducted outside of public roads and highways, unless such person is equipped with and wearing on the head a crash helmet of a type which complies with standards approved by the Department of Public Safety of the state of Oklahoma, in conjunction with Service Oklahoma, or other state agency designated by the state of Oklahoma. All crash helmets shall consist of lining, padding and chin straps and shall be of the type so as not to distort the view of the driver.

*(Ord. Nos. 13622, 20185; Ord. No. 25354, § 7, 7-24-2024)*

**Section 732. Passengers on motorcycles.**

No driver of a two (2) or three (3) wheeled motor vehicle shall carry any other person on, upon or within such vehicle on any street or roadway; except, however, that if any two (2) or three (3) wheeled motor vehicle with a wheel diameter of twelve (12) inches or greater shall have either a double seating device with double foot rests or a sidecar attachment providing a separate seat space within such sidecar attachment for each person riding therein so that such person shall be seated entirely within the body of such sidecar, then it

shall be permissible for an operator who has attained the age of sixteen (16) years of age or older to carry a passenger. A demonstration ride by a licensed dealer or his employee is excepted from the provisions of this section.

### Section 733. Obstruction of driver's view.

**A.** No person shall drive a vehicle when it is so loaded as to obstruct the view of the driver to the front or sides of the vehicle or so as to interfere with the driver's control over the mechanism of the vehicle.

**B.** No passenger in a vehicle shall ride in such a position as to interfere with the driver's view ahead or to the side or to interfere with his control over the mechanism of the vehicle.

**C.** No person shall operate a vehicle so constructed or enclosed in such manner as to prevent the driver from having a clear view of the road ahead and to the sides.

### Section 734. Display of warning devices when vehicle disabled.

**A.** Except as provided in Subsection B., whenever any motor truck, passenger bus, truck-tractor, trailer, semitrailer, pole trailer or any motor vehicle towing a house trailer is disabled upon the traveled portion of any roadway or the shoulder thereof at any time when lighted lamps are required on vehicles, the driver of such vehicle shall display the following warning devices upon the roadway:

**1.** A lighted fuse, a lighted red electric lantern or a portable red emergency reflector shall be immediately placed at the traffic side of the vehicle in the direction of the nearest approaching traffic; and

**2.** As soon thereafter as possible, but in any event within the burning period of the fuse (fifteen (15) minutes), the driver shall place three (3) liquid-burning flares (pot torches), three (3) lighted red electric lanterns or three (3) portable emergency reflectors on the traveled portion of the roadway in the following order:

**a.** One (1) approximately one hundred (100) feet from the disabled vehicle in the center of the lane occupied by such vehicle and toward traffic approaching in that lane;

**b.** One (1) approximately one hundred (100) feet ahead of the disabled vehicle and in the center of the traffic lane occupied by such vehicle; and

**c.** One (1) at the traffic side of the disabled vehicle not less than ten (10) feet rearward or forward thereof in the direction of the nearest approaching traffic.

**B.** Whenever any vehicle referred to in this section is disabled within five hundred (500) feet of a curve, hillcrest or other obstruction to view, the warning signal in that direction shall be so placed as to afford ample warning to other users of the street, but in no case less than one hundred (100) feet nor more than five hundred (500) feet from the disabled vehicle.

**C.** Whenever any vehicle of a type referred to in this section is disabled upon any roadway of a divided street or highway during the time the lights are required, the appropriate warning devices prescribed in Subsections A. and E. of this section shall be placed as follows:

**1.** One (1) at a distance of approximately two hundred (200) feet from the vehicle in the center of the lane occupied by the stopped vehicle and in the direction of traffic approaching in that lane;

**2.** One (1) at a distance of approximately one hundred (100) feet from the vehicle in the center of the lane occupied by the vehicle and in the direction of traffic approaching in that lane; and

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**3.** One (1) at the traffic side of the vehicle approximately ten (10) feet from the vehicle in the direction of the nearest approaching traffic.

**D.** Whenever any vehicle of a type referred to in this section is disabled upon a traveled portion of a roadway or the shoulder thereof at any time when the display of fuses, flares, red electric lanterns or portable red emergency reflectors is not required, the driver of the vehicle shall display two (2) red flags upon the roadway in the lane of traffic occupied by the disabled vehicle, one (1) at a distance of approximately one hundred (100) feet in advance of the vehicle and one (1) at a distance of one hundred (100) feet to the rear of the vehicle.

**E.** Whenever any vehicle used in the transportation of explosives or any cargo tank truck used for the transportation of any flammable liquid or compressed flammable gas is disabled upon a roadway at any time or place mentioned in Subsection A of this section, the driver of such vehicle shall immediately display the following warning devices: One (1) red electric lantern or portable red emergency reflector placed on the roadway at the traffic side of the vehicle and two (2) red electric lanterns or portable red reflectors, one (1) placed approximately one hundred (100) feet to the front and one (1) placed approximately one hundred (100) feet to the rear of the disabled vehicle in the center of the traffic lane occupied by such vehicle. Flares, fuses or signals produced by flame shall not be used as warning devices by disabled vehicles of the type mentioned in this subsection.

## Section 735. Certain vehicles to carry flares or other warning devices.

**A.** Except as provided in Section 700, no person shall operate any truck, passenger bus, school bus or truck-tractor upon any street at any time unless there shall be carried in such vehicle the following equipment:

**1.** At least three (3) flares or three (3) red electric lanterns, each of which shall be capable of being seen and distinguished, when lighted, at a distance of five hundred (500) feet under normal atmospheric conditions at nighttime; each flare (liquid-burning pot torch) shall be capable of burning for not less than twelve (12) hours in five (5) miles per hour wind velocity and capable of burning in any wind velocity from zero to forty (40) miles per hour; every such flare shall be substantially constructed so as to withstand reasonable shock breakage;

**2.** At least three (3) red burning fuses, unless red electric lanterns are carried; every fuse shall be made in accordance with specifications of the Bureau of Explosives, New York, and so marked and shall be capable of burning at least fifteen (15) minutes;

**3.** At least three (3) red cloth flags, each not less than twelve (12) inches square, with standards to support same; and

**4.** In every bus, truck or truck-tractor transporting persons or property for hire shall be carried at least one (1) spare bulb for each kind of electric lamp, except sealed beam headlights, where such electric lamp is used for any of the lighting devices required by this chapter.

**B.** No person shall operate any motor vehicle used in the transportation of flammable liquids in bulk or transporting compressed flammable gases unless there shall be carried in such vehicle three (3) red electric lanterns meeting the requirements set forth in Subsection A. of this section. There shall not be carried in any such vehicle any flares, fuses or signal produced by a flame.

**C.** In the alternative, it shall be deemed a compliance with this section if the person operating any motor vehicle described in this section shall carry in such vehicle three (3) portable reflector units on standards of a type approved by the Chief of Police or his designee. No portable reflector unit shall be approved unless it is so designed and constructed that it will reflect red light clearly visible for a distance up to and including five hundred (500) feet under normal atmospheric conditions at nighttime when directly in front of lawful upper beams of head lamps.

*(Ord. No. 12405)*

### Section 736. Towing disabled vehicles.

No vehicle, unless confined to tracks, shall tow more than one (1) disabled vehicle at a time. No towing connection shall be used which so connects the towing and towed vehicles that is in excess of sixteen (16) feet measured between the rear of the towing and the front of the towed vehicle.

### Section 737. Unsecured vehicle loads.

No vehicle shall be driven or moved on any street or alley unless such vehicle is so constructed and loaded or covered as to prevent its contents from dropping, shifting, leaking or otherwise escaping or spilling therefrom upon the streets or alleys.

### Section 738. Passengers on open body of truck—Requirements.

No driver shall permit passengers to stand on the open body of any truck unless such truck has a protective railing not less than four (4) feet in height completely around the bed.

### Section 739. Penalty.

Unless otherwise provided for in this chapter, every person violating any provision of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not less than Five Dollars ($5.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. Nos. 15524, 18454, 19491; Ord. No. 21982, § 26, 12-18-2008)*

### Section 740. Mandatory seat belt use.

**A.** Every operator and front seat passenger of a passenger car operated in the City shall wear a properly adjusted and fastened safety seat belt system, installed in any motor vehicle manufactured after January 1, 1972, or required to be installed in the motor vehicle when manufactured pursuant to Federal Motor Vehicle Safety Standard 208, 49 Code of Federal Regulations, § 571.208. For the purposes of this section, "passenger car" shall mean "vehicle" as defined in 47 O.S. Supp. 1996, § 1102, except that "passenger car" shall not include trucks, truck-tractors, recreational vehicles, motorcycles, motorized bicycles or vehicles used primarily for farm use and licensed pursuant to the provisions of 47 O.S. Supp. 1996, § 1134.

**B.** This section shall not apply to an operator or passenger of a passenger car in which the operator or passenger possesses a written verification from a physician licensed in this state that he is unable to wear a safety seat belt system for medical reasons; provided, however, that the issuance of such verification by a physician, in good faith, shall not

give rise to nor shall such physician thereby incur any liability whatsoever in damages or otherwise to any person injured by reason of such failure to wear a safety seat belt system.

**C.** This section shall not apply to an operator of a motor vehicle who is a route carrier of the U.S. Postal Service.

**D.** Any person violating this section shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine not exceeding Twenty Dollars ($20.00), including court costs.

*(Ord. Nos. 17006, 18454, 19116)*

### Section 741. Mandatory child passenger restraint system.

**A.** Every driver, when transporting a child under eight (8) years of age in a motor vehicle operated on the roadways, streets, or highways of the City of Tulsa, shall provide for the protection of said child by properly using a child passenger restraint system as follows:

**1.** A child under four (4) years of age shall be properly secured in a child passenger restraint system. The child passenger restraint system shall be rear-facing until the child reaches two (2) years of age or until the child reaches the weight or height limit of the rear-facing child passenger restraint system as allowed by the manufacturer of the child passenger restraint system, whichever occurs first; and

**2.** A child at least four (4) years of age but younger than eight (8) years of age, if not taller than 4 feet 9 inches in height, shall be properly secured in either a child passenger restraint system or child booster seat.

For purposes of this section of this title, "child passenger restraint system" means an infant or child passenger restraint system which meets the federal standards as set by 49 C.F.R., Section 571.213.

**B.** If a child is eight (8) years of age or is taller than 4 feet 9 inches in height, a seat belt properly secured to the vehicle shall be sufficient to meet the requirements of this section.

**C.** The provisions of this section shall not apply to:

**1.** The driver of a school bus, taxicab, moped, motorcycle, or other motor vehicle not required to be equipped with safety belts pursuant to state or federal laws;

**2.** The driver of an ambulance or emergency vehicle;

**3.** The driver of a vehicle in which all of the seat belts are in use;

**4.** The transportation of children who for medical reasons are unable to be placed in such devices, provided there is written documentation from a physician of such medical reason; or

**5.** The transportation of a child who weighs more than forty (40) pounds and who is being transported in the back seat of a vehicle while wearing only a lap safety belt when the back seat of the vehicle is not equipped with combination lap and shoulder safety belts, or when the combination lap and shoulder safety belts in the back seat are being used by other children who weigh more than forty (40) pounds. Provided, however, for purposes of this paragraph, back seat shall include all seats located behind the front seat of a vehicle operated by a licensed child care facility

or church. Provided further, there shall be a rebuttable presumption that a child has met the weight requirements of this paragraph if at the request of any law enforcement officer, the licensed child care facility or church provides the officer with a written statement verified by the parent or legal guardian that the child weighs more than forty (40) pounds.

**D.** A violation of the provisions of this section shall be admissible as evidence in any civil action or proceeding for damages unless the plaintiff in such action or proceeding is a child under sixteen (16) years of age.

In any action brought by or on behalf of an infant for personal injuries or wrongful death sustained in a motor vehicle collision, the failure of any person to have the infant properly restrained in accordance with the provisions of this section shall not be used in aggravation or mitigation of damages.

**E.** A person who is certified as a Child Passenger Safety Technician and who in good faith provides inspection, adjustment, or educational services regarding child passenger restraint systems shall not be liable for civil damages resulting from any act or omission in providing such services, other than acts or omissions constituting gross negligence or willful or wanton misconduct.

**F.** Any person convicted of violating subsection A of this section shall be punished by a fine of Fifty Dollars ($50.00), excluding costs, fees and assessments. This fine shall be suspended and the court costs limited to a maximum of Fifteen Dollars ($15.00) in the case of the first offense upon proof of purchase or acquisition by loan of a child passenger restraint system. Provided, the Department of Public Safety shall not assess points to the driving record of any person convicted of a violation of this section.

*(Ord. Nos. 16914, 18454, 19116, 20185, 20848; Ord. No. 23393, § 1, 10-29-2015)*

## CHAPTER 8. ACCIDENTS—DUTIES, REQUIREMENTS AND RESPONSIBILITIES

Section 800. Accident—Duty to stop.
Section 801. Striking unattended vehicle or property.
Section 802. Duty to report accidents.
Section 803. Interference with accident investigator.
Section 804. Garage keeper's reports.
Section 805. Penalty.
Section 806. Removal of vehicle or its cargo from roadway obstructing the regular flow of traffic.

### Section 800. Accident—Duty to stop.

**A.** The driver of any vehicle involved in an accident resulting in damage to a vehicle which is driven or attended by any person shall immediately stop his vehicle at the scene of such accident or as close thereto as possible, return to and remain at the scene of the accident until he has given his correct name, address, telephone number, current registered owner information including license plate number, vehicle identification number and complete vehicle insurance information to such other person or an investigating police officer. The driver shall, upon request, exhibit his driver's license to the driver or occupant of or persons attending any vehicle collided with and shall render to any person injured in such accident reasonable assistance. Every stop shall be made without obstructing traffic more than is necessary.

**B.** Any person failing to stop or to comply with any of the requirements of this section shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00) excluding costs and assessments and/or by imprisonment in jail for not more than ninety (90) days.

*(Ord. Nos. 16921, 18454)*

### Section 801. Striking unattended vehicle or property.

**A.** The driver of any vehicle which collides with any vehicle or other object which is unattended shall immediately stop, and then and there, either locate and notify the owner or custodian of such vehicle or other object of the name, address, telephone number of the driver and current registered owner information including license plate number, vehicle identification number and complete vehicle insurance information of the vehicle striking the unattended vehicle or object. In the event the driver of the vehicle is unable to locate the owner or custodian of the vehicle or object, the driver shall notify the police, in writing, of such an accident and circumstances within twenty-four (24) hours after the accident.

**B.** Any person failing to stop or to comply with any of the requirements of this section shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by imprisonment in the City jail for not more than thirty (30) days, or by both such fine and imprisonment.

*(Ord. Nos. 16277, 18454, 19491)*

### Section 802. Duty to report accidents.

**A.** The driver of a vehicle involved in any accident resulting in injury to or death of any person or damage to property shall within twenty-four (24) hours after such accident

file a written report of such accident on a prescribed form to the Police Department except when a member of the Police Department has made an official investigation of the accident.

**B.** The driver of any vehicle involved in an accident causing injury, death or property damage shall by the quickest means of communication notify the police radio dispatcher of the location of the accident.

**C.** The driver of any vehicle who kills or injures an animal in the street shall stop and attempt to locate the owner and, failing to find the owner, shall within twenty-four (24) hours notify the Police Department of the accident.

### Section 803. Interference with accident investigator.

It shall be an offense for any person to interfere with a police officer making a traffic accident investigation.

### Section 804. Garage keeper's reports.

The person in charge of any garage or repair shop to which is brought any motor vehicle which shows evidence of having been struck by a bullet shall file a written report of the same with the Traffic Division of the Police Department within twenty-four (24) hours after the vehicle is received, giving the make of car, engine number and name and address of the person representing himself as being in charge of such vehicle.

### Section 805. Penalty.

Unless otherwise provided for in this chapter, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. Nos. 15524, 18454, 19491; Ord. No. 21982, § 27, 12-18-2008)*

### Section 806. Removal of vehicle or its cargo from roadway obstructing the regular flow of traffic.

The owner or operator of a vehicle or its cargo which obstructs the regular flow of traffic shall make every reasonable effort to remove the obstructing vehicle or cargo from the roadway so the regular flow of traffic is not blocked. This section shall not apply to collisions resulting in the injury or death of any person. This section shall not apply to vehicles transporting "hazardous materials" as defined by state law. Nothing in this section shall be construed to relieve any person from complying with Section 800 or Section 801 of this chapter.

*(Ord. No. 21982, § 28, 12-18-2008)*

## CHAPTER 9. ESCORTS AND PROCESSIONS

Section 900. Duties and authority of motor vehicle escort guides and agencies.
Section 901. Escort guides—Uniforms and equipment requirements and limitations.
Section 902. Equipment requirements for escort vehicles.
Section 903. Advertisements—Limitations.
Section 904. Functions, powers and duties of the Police Department.
Section 905. Escorts required.
Section 906. Funerals—Driving.
Section 907. Parades.
Section 908. Driving through procession.
Section 909. Penalty.
Section 910. Funeral temporary restricted parking.

### Section 900. Duties and authority of motor vehicle escort guides and agencies.

**A.** Motor vehicle escort guides are authorized to:

**1.** Lead funeral corteges. It shall be the motor vehicle escort guide's duty to see that the headlights of every motor vehicle in the cortege are turned on;

**2.** Identify overlength, overwidth, overheight motor vehicles, mobile homes and buildings as defined in the Building Code of the City of Tulsa. It shall be the motor vehicle escort guide's duty to see that such vehicle is properly marked as prescribed by the permit issued to move such vehicle;

**3.** Escort any overlength, overwidth, overheight motor vehicles, mobile homes, buildings, funeral cortege, or parade procession through stop signs or signalized intersections without stopping, provided such motor vehicle escort guide has rendered such intersection safe by reason of having stopped all traffic whose movement through such intersection would conflict with that of any vehicle or vehicles being escorted; and

**4.** Stop oncoming vehicles at intersections where such escorted vehicle or vehicles are making turns.

**B.** Nothing in this chapter excludes any motor vehicle escort guide or the driver of any vehicle being escorted from any part of this title that requires the operator of a motor vehicle to obey the directions given by any police officer or requires the operator of any motor vehicle to yield the right-of-way to authorized emergency vehicles.

*(Ord. No. 24808, § 2, 4-27-2022)*

### Section 901. Escort guides—Uniforms and equipment requirements and limitations.

**A.** No motor vehicle escort guide shall escort any funeral cortege or parade procession unless they are wearing a uniform that has been approved by the Chief of Police of the City of Tulsa for the use of the motor vehicle escort agency by which they are employed.

**B.** No uniform is required for the escorting of overwidth, overlength, overheight vehicles, including mobile homes and buildings.

**C.** No motor vehicle escort guide shall have on or about their person or on or about their escort vehicle any of the following:

**1.** Any weapon declared to be unlawful by the statutes of the state of Oklahoma;

**2.** Any badge or cap wreath that resembles the official police officer's badge or bears the words "Police" or "Officer";

**3.** Any noncommissioned officer's bars or insignia denoting rank; or

**4.** Any holster, handcuff case, cartridge case or chemical weapon.

*(Ord. No. 24808, § 2, 4-27-2022)*

### Section 902. Equipment requirements for escort vehicles.

**A.** Motor vehicle escort guides, while actively engaged in furnishing an escort for funeral cortege, shall use either a two (2) wheeled or three (3) wheeled motorcycle. Such vehicle shall be equipped with two (2) lamps which display, when lighted, an amber light visible from directly in front of the center thereof for a distance of not less than five hundred (500) feet. Such lamps shall be no less than four (4) inches in diameter.

**B.** Motor vehicle escort guides, while actively engaged in furnishing an escort for overwidth, overlength, overheight motor vehicles, including mobile homes and buildings, shall use a vehicle equipped with two (2) flashing amber lights of at least four (4) inches in diameter which shall be mounted so as to be visible, when lighted, for a distance of not less than five hundred (500) feet directly to the front of such vehicle; and two (2) flashing amber or red lights of at least four (4) inches in diameter which shall be mounted so as to be visible, when lighted, for a distance of not less than five hundred (500) feet directly to the rear of such vehicle. In lieu of the foregoing lights, a single rotating amber light may be used, provided that such rotating light has a diameter of at least six (6) inches, has at least two (2) bulbs and is visible, when lighted, for a distance of not less than five hundred (500) feet in all directions. In addition to the above lights, each vehicle must be equipped with two (2) red flags, each sixteen (16) inches square, mounted as high as practicable and spaced as widely as practicable. Each vehicle must also display any special signs or markings as is specified on the permit issued to authorize the movement of such special vehicles listed above.

**C.** It shall be unlawful for the vehicles used in escorting to be equipped with sirens, decals, placards, signs and/or insignia which resemble official police insignia or bear the words "Police", "Official" or "Officer". No such vehicle shall display a red light to the front.

**D.** Any motor vehicle used in performing escorts shall be subject to inspection at any time by the Chief of Police of the City of Tulsa or his authorized representative.

### Section 903. Advertisements—Limitations.

No person engaged in the business of furnishing motor vehicle escort guides shall distribute, present or give away any cards, handbills or printed matter of any kind which bear the words "Police", "Officer" or "Official", in conjunction with advertising an escorting agency; nor shall any advertisement state, imply or falsely represent that a motor vehicle escort is required by the City of Tulsa.

### Section 904. Functions, powers and duties of the Police Department.

With regard to all motor vehicle escort agencies, the Police Department shall have the following functions, powers and duties:

**A.** To investigate qualifications for fitness of all applicants;

**B.** To investigate and aid in the prosecution of all violations of this chapter and cooperate in the prosecution of offenders before any court having jurisdiction to hear the same;

**C.** To inspect and approve or disapprove motor vehicle equipment used in making escorts; and

**D.** To inspect and approve or disapprove the equipment and uniforms worn by any motor vehicle escort guide.

### Section 905. Escorts required.

**A.** Every funeral cortege consisting of more than four (4) motor vehicles shall have no less than two (2) motor vehicle escort guides; and it shall be the duty of the funeral director or person conducting each funeral to provide as many more motor vehicle escort guides as may be needed to control traffic at all intersections through which the procession is proceeding simultaneously.

**B.** All overheight, overlength, overwidth motor vehicles as described by this chapter, including mobile homes and buildings, shall provide the number of motor vehicle escort guides as is stated on the permit issued for movement of such vehicle.

### Section 906. Funerals—Driving.

Each driver in a funeral or other procession shall drive as near to the right-hand edge of the roadway as practicable and shall follow the vehicle ahead as closely as practicable and safe. Funeral directors shall notify the Police Department of the time and destination of all funeral processions.

### Section 907. Parades.

No procession or parade containing three (3) or more vehicles, excepting funerals, shall proceed along any street except in accordance with the written permission of the City Council and such other regulations as are set forth herein.

### Section 908. Driving through procession.

No driver of a vehicle shall drive between, alongside nor pass the vehicles comprising a funeral procession while it is in motion when such vehicles are conspicuously designated as required in this chapter. This provision shall not apply to intersections where traffic is controlled by traffic-control signals or by police officers, nor shall the passing prohibited in this section apply to limited-access highways.

### Section 909. Penalty.

Unless otherwise provided for in this chapter, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

*(Ord. Nos. 18454, 19491)*

### Section 910. Funeral temporary restricted parking.

**A.** Licensed funeral directors may request to temporarily restrict no more than four (4) regulated on-street parking spaces-without charge for the purpose of conducting funerals, provided that:

**1.** No suitable off-street parking is available for the parking of funeral vehicles;

**2.** The temporary restriction of parking will be put in place no more than one (1) day prior to the time of the funeral; and

**3.** The restrictions put in place shall be removed immediately following the funeral.

**B.** The Director of Public Works or Parking Manager may order any funeral temporary restrictions to be removed when he/she deems such removal to be in the interest of the public safety or convenience.

*(Ord. No. 24090, § 1, 3-6-2019)*

**Editor's note—**Ord. No. 24090, § 1, adopted March 6, 2019, amended § 910 in its entirety to read as herein set out. Former § 910, pertained to funeral parking meter hoods.

## CHAPTER 10. BICYCLES

Section 1000. Traffic code applicable.
Section 1001. Manner of riding.
Section 1002. Speed.
Section 1003. Riding on right side.
Section 1004. Right-of-way.
Section 1005. Holding on to car.
Section 1006. Riding abreast.
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Section 1009. Restrictions of certain vehicular traffic in certain areas.
Section 1010. Lights.
Section 1011. Brakes.
Section 1012. Parking zones.
Section 1013. Penalty.
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Section 1015. Overtaking bicycles.
Section 1016. Bicycle lanes.

### Section 1000. Traffic code applicable.

Every person operating a rickshaw, bicycle or motorized scooter in the City of Tulsa shall be subject to the provisions of this title applicable to the driver of a vehicle, except as to those provisions which by their very nature can have no application. Any such person shall obey the instructions of official traffic signals, signs and other control devices applicable to vehicles unless otherwise directed by a police officer. The term "bicycle" shall include Class 1 and Class 2 "electric bicycles" as defined in Section 100 of this Title. The term "motorized scooter" shall include "electric scooter" as defined in Section 100 of this Title.

*(Ord. No. 21982, § 29, 12-18-2008; Ord. No. 22395, § 3, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017; Ord. No. 24245, § 3, 10-30-19)*

### Section 1001. Manner of riding.

A person operating a bicycle, or motorized scooter shall not ride other than upon or astride the permanent and regular seat attached thereto nor carry any other person upon a bicycle or motorized scooter other than upon a firmly attached and regular seat thereon. A person operating a rickshaw shall not carry any other person upon a rickshaw other than upon a firmly attached and regular seat thereon. A person operating an electric scooter shall not transport any other person upon the electric scooter.

*(Ord. No. 21982, § 30, 12-18-2008; Ord. No. 22395, § 4, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017; Ord. No. 24245, § 4, 10-30-19)*

### Section 1002. Speed.

No person shall operate a bicycle, rickshaw, or motorized scooter at a speed greater than is reasonable and prudent under the conditions then existing.

*(Ord. No. 21982, § 31, 12-18-2008; Ord. No. 22395, § 5, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017)*

### Section 1003. Riding on right side.

**A.** Every person operating a bicycle, rickshaw, or motorized scooter upon a roadway at less than the normal speed of traffic at the time and place and under the conditions then existing shall ride as close as is safe to the right-hand curb or edge of the roadway, except under any of the following situations:

**1.** When overtaking and passing another vehicle proceeding in the same direction;

**2.** When preparing for a left turn at an intersection or into a private road or driveway;

**3.** When reasonably necessary to avoid conditions and while exercising due care, including but not limited to:

**a.** Fixed or moving objects,

**b.** Parked or moving vehicles,

**c.** Pedestrians or animals,

**d.** Surface hazards,

**e.** Any time it is unsafe to continue along the right-hand curb or edge of the roadway; and

**4.** When riding in the right-turn-only lane.

**B.** Any person operating a bicycle, rickshaw, or motorized scooter upon a one-way street or roadway with two (2) or more marked lanes of travel may ride as close as is safe to the left-hand curb or edge of the street or roadway.

**C.** No person operating a bicycle, rickshaw, or motorized scooter shall pass other vehicles between lanes of traffic traveling in the same direction.

*(Ord. No. 21982, § 32, 12-18-2008; Ord. No. 22395, § 6, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017)*

### Section 1004. Right-of-way.

The operator of a bicycle, rickshaw, or motorized scooter emerging from an alley, driveway or building shall, upon approaching a sidewalk or the sidewalk area extending across such alley or driveway, yield the right-of-way to all pedestrians approaching on such sidewalk or sidewalk area, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on such roadway.

*(Ord. No. 19588; Ord. No. 21982, § 33, 12-18-2008; Ord. No. 22395, § 7, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017)*

### Section 1005. Holding on to car.

No person operating a bicycle or motorized scooter or riding upon any bicycle or motorized scooter shall attach the same or himself to any car or vehicle upon a roadway.

*(Ord. No. 21982, § 34, 12-18-2008; Ord. No. 22395, § 8, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017)*

### Section 1006. Riding abreast.

Persons operating bicycles, rickshaws, or motorized scooters upon a roadway shall not ride more than two (2) abreast, except on paths or parts of roadways set aside for the exclusive

use of bicycles, rickshaws, or motorized scooters. Persons riding two (2) abreast shall not impede the normal and reasonable flow of traffic and, on a laned roadway shall ride within a single lane.

*(Ord. No. 19491; Ord. No. 21982, § 35, 12-18-2008; Ord. No. 22395, § 9, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017)*

**Section 1007. Carrying packages.**

No person operating a bicycle, rickshaw, or motorized scooter shall carry any package, bundle or article which prevents the rider from keeping both hands upon the handlebars.

*(Ord. No. 21982, § 36, 12-18-2008; Ord. No. 22395, § 10, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017)*

**Section 1008. Parking.**

No person shall park a bicycle, rickshaw, or motorized scooter in such manner as to unreasonably obstruct pedestrian traffic.

*(Ord. No. 19588; Ord. No. 21982, § 37, 12-18-2008; Ord. No. 22395, § 11, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017)*

**Section 1009. Restrictions of certain vehicular traffic in certain areas.**

**A.** No person shall operate a bicycle, rickshaw or motorized scooter upon a sidewalk within the following areas of the City of Tulsa:

**1.** The Inner Dispersal Loop (IDL);

**2.** Sidewalks adjacent and parallel to South Peoria Avenue, from East 33rd Street to East 36th Street; and

**3.** Sidewalks adjacent and parallel to East 15th Street, from South Peoria Avenue to South Utica Avenue.

**B.** The Director of Streets and Stormwater, or that Director's designee, is authorized to erect signs on any sidewalk or roadway prohibiting the riding of bicycles thereon. Whenever any person is riding a bicycle upon a sidewalk, such person shall yield the right-of-way to any pedestrian and shall give an audible signal before overtaking and passing such pedestrian.

*(Ord. No. 24245, § 5, 10-30-19)*

**Editor's note—**Ord. No. 24245, § 5, adopted October 30, 2019, amended § 1009 in its entirety to read as herein set out. Former § 1009, pertained to restrictions of certain vehicular traffic in a business district and civic center complex, and derived from Ord. Nos. 17252, 19588; Ord. No. 21982, § 38, 12-18-2008; Ord. No. 22395, § 12, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017.

**Section 1010. Lights.**

Every bicycle or rickshaw, or person operating a bicycle or rickshaw, which is used at night shall be equipped with a lamp on the front which shall emit a white light, when lighted, of sufficient size and candlepower to be visible from a distance of at least five hundred (500) feet to the front and with a red reflector on the rear which shall be of sufficient size to be visible up to and including three hundred (300) feet to the rear when directly in front of lawful upper beams of head lamps on a motor vehicle.

*(Ord. No. 19588; Ord. No. 22395, § 13, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017)*

**Section 1011. Brakes.**

Every bicycle or rickshaw, shall be equipped with a brake or brakes which will enable the operator to stop the bicycle or rickshaw, within twenty-five (25) feet from a speed of ten (10) miles per hour on a dry, level, clean pavement.

*(Ord. No. 19588; Ord. No. 21982, § 39, 12-18-2008; Ord. No. 22395, § 14, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017)*

**Section 1012. Parking zones.**

The Director of Public Works may designate certain zones upon the streets for parking of only bicycles, rickshaws, or motorized scooters; and whenever such zones are designated and sufficient designated spaces are available, bicycles, rickshaws, or motorized scooters shall be parked in those blocks only in the designated zones.

*(Ord. No. 19588; Ord. No. 21982, § 40, 12-18-2008; Ord. No. 22395, § 15, 3-24-2011; Ord. No. 22932, § 1, 7-25-2013; Ord. No. 23786, § 1, 9-20-2017)*

**Section 1013. Penalty.**

Any person violating any provision of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not less than One Dollar ($1.00) nor more than Twenty-Five Dollars ($25.00), excluding costs, fees and assessments.

*(Ord. Nos. 15524, 18454, 19491, 19588; Ord. No. 21982, § 41, 12-18-2008; Ord. No. 22395, § 16, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017; Ord. No. 24245, § 6, 10-30-19)*

**Section 1014. Applicability to emergency services personnel.**

The provisions of this chapter shall not be applicable to emergency services personnel employed by the State of Oklahoma, City of Tulsa, a political subdivision of the State of Oklahoma, or a trust for public purposes while they are engaged in the performance of their official duties.

*(Ord. No. 21982, § 42, 12-18-2008; Ord. No. 22395, § 17, 3-24-2011; Ord. No. 23786, § 1, 9-20-2017)*

**Section 1015. Overtaking bicycles.**

**A.** When overtaking and passing a bicycle proceeding in the same direction, a person driving a motor vehicle shall exercise due care by leaving a safe distance between the motor vehicle and the bicycle of not less than three (3) feet until the motor vehicle is safely past the overtaken bicycle.

**B.** If a person violates the provisions of subsection A of this section and the violation results in a collision causing serious physical injury to another person, the person shall be subject to a fine of not more than Five Hundred Dollars ($500.00).

**C.** If a person violates the provisions of subsection A of this section and the violation results in the death of another person, the person shall be subject to a fine of not more than One Thousand Dollars ($1,000.00), in addition to any other penalties prescribed by law.

*(Ord. No. 22932, § 2, 7-25-2013; Ord. No. 23786, § 1, 9-20-2017)*

**Section 1016. Bicycle lanes.**

**A.** The creation of one (1) or more bicycle lanes does not inhibit a bicycle operator's ability to operate a bicycle upon a roadway, or to move out of the bicycle lane as needed.

**B.** Every person operating a motor vehicle shall yield the right-of-way to a person operating a bicycle within a bicycle lane. A person operating a motor vehicle may cross a bicycle lane when making a turn or when entering or leaving a roadway, but a bicycle lane shall not be used as a turning lane or passing lane.

**C.** Motor vehicles shall not be parked, stopped or left standing in a bicycle lane, except for emergency vehicles and municipally-owned transit vehicles in the course of their official duties.

**D.** A person operating a bicycle entering a bicycle lane shall yield the right-of-way to all bicycles in the bicycle lane. A person operating a bicycle leaving the bicycle lane shall yield the right-of-way to all vehicles and pedestrians. No person operating a bicycle within a bicycle lane shall leave the bicycle lane until such movement can be made with safety, and, if any vehicle or bicycle would be affected by the movement, by giving an appropriate signal before the movement is made.

**E.** A person operating a bicycle within a bicycle lane shall travel in the same direction as vehicles traveling in the adjacent traffic lane, unless otherwise permitted by an official traffic-control device.

**F.** A person operating a bicycle shall always yield the right-of-way to a pedestrian.

**G.** When approaching a pedestrian traveling in a bicycle lane from the rear, a person operating a bicycle shall give audible signal when overtaking and passing the pedestrian.

**H.** When overtaking and passing a pedestrian proceeding in either the same or opposite direction in a bicycle lane, a person operating a bicycle shall always pass with due care.

**I.** A pedestrian shall not travel in a bicycle lane except where a sufficient sidewalk is not provided.

*(Ord. No. 23786, § 1, 9-20-2017)*

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## CHAPTER 11. PEDESTRIANS—RIGHTS AND DUTIES

Section 1100. Pedestrians subject to traffic-control signals.
Section 1101. Pedestrians' right-of-way in crosswalks.
Section 1102. Crossing street.
Section 1103. When pedestrians shall yield.
Section 1104. Pedestrians walking along roadways.
Section 1105. Pedestrians obstructing roadways, soliciting rides, employment, business, or contributions.
Section 1106. Blind pedestrians.
Section 1107. Pedestrian procedure.
Section 1108. Penalty.

### Section 1100. Pedestrians subject to traffic-control signals.

Pedestrians shall be subject to traffic-control signals as described in Section 606 of this title, but at all other places pedestrians shall be granted those rights and be subject to the restrictions stated in this chapter.

*(Ord. No. 12405)*

### Section 1101. Pedestrians' right-of-way in crosswalks.

**A.** When traffic-control signals are not in place or are not in operation, the driver of a vehicle shall yield the right-of-way to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon that half of the roadway upon which the vehicle is traveling or when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger.

**B.** No pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield.

**C.** Whenever any vehicle is stopped at a crosswalk, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle until the overtaking driver has ascertained that such movement can be made with safety.

### Section 1102. Crossing street.

Every pedestrian shall cross the street within the crosswalk or at an intersection, whether or not such intersection is controlled by traffic-control signals; provided, however, that this provision shall not apply to residential neighborhoods, except where a major street passes through such neighborhoods or traffic-control devices are provided. A pedestrian crossing a street in a residential area shall take the shortest possible route to the opposite side of the street and at a right angle to the side of the street.

*(Ord. No. 13227)*

### Section 1103. When pedestrians shall yield.

Every pedestrian crossing a roadway at any point, other than within a marked crosswalk or within an unmarked crosswalk at an intersection, shall yield the right-of-way to all vehicles upon the roadway.

### Section 1104. Pedestrians walking along roadways.

**A.** Where sidewalks are provided, it shall be unlawful for any pedestrian to walk along and upon any adjacent roadway.

**B.** Where sidewalks are not provided, any pedestrian walking along and upon a roadway shall, when practicable, walk only on the left side of the roadway or its shoulder, facing traffic which may approach from the opposite direction.

## Section 1105. Pedestrians obstructing roadways, soliciting rides, employment, business, or contributions.

**A.** No person shall step, sit, lie upon, stand in, or otherwise enter a roadway or a roadway median used to channel or control traffic, or place any body part in or over a roadway, or extend into or over the roadway any device, container or sign for the purpose of soliciting a ride, donation, employment or business from the occupant of any vehicle, except as otherwise authorized by law or expressly permitted and regulated in this section.

**B.** A person shall be permitted to sit, lie upon, step or stand on a roadway median, or reach into without stepping into a roadway from a raised or painted roadway median, curb, shoulder or sidewalk for the purpose of soliciting a ride, donation, employment or otherwise lawful business from the occupant of any vehicle so long as such solicitation occurs only between one-half hour before sunrise and one-half hour after sunset, the person soliciting is at least sixteen (16) years of age, and the person soliciting is wearing high-visibility safety apparel that meets the Performance Class 2 or 3 requirements of the American National Standards Institute/International Safety Equipment Association (ANSI/ISEA) 107-2004 publication titled "American National Standard for High-Visibility Apparel and Headwear", is labeled as meeting the ANSI 107-2004 standard performance for Class 2 or 3 risk exposure, and is more particularly described as follows:

**1.** The apparel background (outer) material color shall be fluorescent orange-red, fluorescent yellow-green, or a combination of the two as defined in the ANSI standard;

**2.** The retroreflective material shall be orange, yellow, white, silver, yellow-green, or a fluorescent version of these colors, and shall be visible at a minimum distance of one thousand (1,000) feet;

**3.** The retroreflective safety apparel shall be designed to clearly identify the wearer as a person and shall cover the person's torso at a minimum.

**C.** For the purposes of this section, a "roadway median" shall be defined as the median strip or reserved area that separates opposing lanes of traffic on divided roadways and is either painted, or curbed and elevated above the surface of the roadway designated for vehicular traffic and "torso" shall be defined as that part of the human body excluding the arms, legs, neck, and head and which shall include the chest and back of a person.

*(Ord. No. 17372; Ord. No. 23721, § 1, 6-28-2017; Ord. No. 24877, § 1, 8-3-2022)*

## Section 1106. Blind pedestrians.

Blind pedestrians shall be given the right-of-way over all other pedestrians and vehicles and shall indicate such right-of-way by holding out horizontally a white cane in the direction they desire to travel over crosswalks on any street, avenue, alley or other public way.

### Section 1107. Pedestrian procedure.

**A.** Pedestrians facing an official green traffic light signal, except where the sole green indication is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk, unless otherwise directed by a pedestrian signal.

**B.** Pedestrians facing an official steady yellow traffic light signal, are thereby advised that there is insufficient time to cross the roadway before such signal turns red and no pedestrian shall enter the roadway on such yellow signal.

**C.** Pedestrians facing an official red traffic light signal shall not proceed across the roadway.

**D.** Pedestrians facing an official "WALK" signal may proceed across the roadway within any marked or unmarked crosswalk. Any pedestrian who has begun the crossing during the "WALK" signal may complete such crossing.

**E.** Pedestrians facing an official steady "DON'T WALK" signal shall not enter the roadway.

**F.** Pedestrians facing an official flashing "DON'T WALK" signal are thereby advised that there is insufficient time to cross the roadway before a steady "DON'T WALK" signal is exhibited and no pedestrian shall enter the roadway when such signal is flashing.

*(Ord. No. 13253)*

### Section 1108. Penalty.

Unless otherwise provided for in this chapter, every person violating any provision of this chapter shall be deemed guilty of an offense and, upon conviction, shall be punished by a fine of not less than Five Dollars ($5.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments.

*(Ord. Nos. 15524, 18454, 19491; Ord. No. 21982, § 43, 12-18-2008)*

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## CHAPTER 12. MISCELLANEOUS PROVISIONS

Section 1200. Obstructions.
Section 1201. Damage to pavement.
Section 1202. Clinging to moving vehicles.
Section 1203. Passengers.
Section 1204. Exceptions.
Section 1205. Tampering with traffic-control devices.
Section 1206. Railroad crossings—Watchman, signals required.
Section 1207. Railroad crossings—Procedure, notice.
Section 1208. Railroad crossings—Hearing, appeal.
Section 1209. Railroad gates or traffic-barring devices.
Section 1210. Railroad crossings—Lights.
Section 1211. Penalty.
Section 1212. Regulations validated.
Section 1213. Forget-me-not vehicle safety ordinance.

### Section 1200. Obstructions.

**A.** No person shall throw, deposit or allow to be thrown or deposited upon any street any glass bottle, glass, nails, tacks, sand or gravel, wire, tin cans, sharp metal or any other substance likely to injure any person, animal or vehicle or likely to interfere with the safe flow of vehicular traffic.

**B.** Any person who drops or permits to be dropped or thrown upon any street any destructive or injurious material shall immediately remove the same or cause it to be removed.

**C.** No person shall throw any substance at a standing vehicle or any occupant thereof, nor shall any person throw any substance at a person on or adjacent to a street.

*(Ord. No. 21982, § 44, 12-18-2008)*

### Section 1201. Damage to pavement.

**A.** No person shall drive any vehicle on or over any paved street when such vehicle has tires, lugs or wheels so constructed, in such condition, of such weight or so loaded as to damage the street surface.

**B.** Except during the time period between November 1 and April 1 of each year, no person shall operate any vehicle on or over any paved street when such vehicle has one (1) or more tires equipped with anti-skid chains, metal studs or porcelain studs.

*(Ord. No. 16398)*

### Section 1202. Clinging to moving vehicles.

**A.** No person riding upon any coaster, sled, roller skates or any toy vehicle shall attach the same or himself to any moving vehicle upon any roadway.

**B.** No person shall ride, stand, sit or cling to or upon any outside part of any moving vehicle.

### Section 1203. Passengers.

**A.** No driver shall permit any passenger to leave or board a vehicle while it is in motion.

**B.** No person shall board or leave a vehicle while it is in motion.

**C.** No person operating a vehicle of any type shall permit another person to ride in or upon the vehicle unless the vehicle is equipped with proper seats, hand holds or protective railings and is in mechanically safe condition.

**D.** No person shall operate a vehicle while any person or child is standing on the seat or seats.

**E.** No person shall operate a vehicle while holding a person, child or animal on his lap.

**F.** No person shall operate a motorcycle while carrying a passenger less than ten (10) years of age.

**G.** No person shall transport any animal in the bed of a pick up truck or any other open vehicle unless said animal is tethered or confined within a secured crate or cage designed for transportation of live animals.

*(Ord. No. 18454)*

### Section 1204. Exceptions.

No part of this chapter relating to carrying of persons on vehicles shall apply to the necessary operation of City of Tulsa vehicles for City employees performing health and public safety assignments.

### Section 1205. Tampering with traffic-control devices.

It shall be unlawful and an offense for any person to deface, injure, tamper with, open or willfully break, destroy or impair any traffic-control devices, such as parking meters, stop lights, stop signs, one-way markers, slow signs, yield signs or any other official traffic-control device.

### Section 1206. Railroad crossings—Watchman, signals required.

It is hereby declared to be the duty of all persons, firms or corporations owning or operating railways within the limits of the City of Tulsa, upon demand as hereinafter provided in this chapter and at their expense, to maintain a watchman, flagman, automatic signals or gates at each and every street grade crossing within the corporate limits of the City of Tulsa.

### Section 1207. Railroad crossings—Procedure, notice.

Whenever the Mayor or his designee ("Mayor") shall determine that it is necessary that a watchman, flagman, automatic signal, gate or other device for warning the public against danger at railroad crossings is necessary for the protection of the public where any street crosses a railroad track or tracks, then the Mayor shall authorize the City Attorney to notify in writing the owner or operator of such railroad that the Mayor is of the opinion that proper steps should be taken to safeguard the public by requiring that such precautionary measures be taken. Such notice shall provide for and set a date for hearing before the Mayor and shall designate the streets and crossings where such precautionary devices shall be maintained and their nature. Such notice shall be delivered to such person, firm or corporation at least ten (10) days prior to the date set by the Mayor for a hearing. Such notice may be served upon any officer, agent or employee of any such person, firm or corporation upon whom service of summons may be made under the provisions of the laws of the state of Oklahoma and service by mail shall be deemed *prima facie* good service.

**Section 1208. Railroad crossings—Hearing, appeal.**

**A. Administrative hearing.** At such hearing the Mayor shall take into consideration the amount of public travel at any street crossing and also the amount of use to which the railroad tracks are subjected by the owner thereof for railroad purposes. Should the Mayor determine that any of the precautionary measures herein contemplated are necessary, he shall order such precautionary measures in writing, specifying the street crossings, the kind of precautionary measures to be maintained, the hours of the day during which the same shall be maintained and shall set forth such other facts pertaining thereto as deemed necessary. A copy of such order shall forthwith be furnished the owner of such railroad and, thereafter, a failure to comply with the conditions thereof shall constitute an offense unless an appeal form such order is taken as herein provided.

**B. Appeal.** An appeal to the Council may be taken by the owner within ten (10) days of the date of the Mayor's order by filing with the Mayor and the City Clerk a notice of appeal, specifying the grounds thereof. The Mayor, upon receipt of notice, shall forthwith transmit to the Secretary of the Council, certified copies of all the papers constituting the record of the matter. Upon receipt of the record, the Secretary shall set the matter for public hearing and notify the Mayor and the owner of the date of the hearing. At the conclusion of the hearing, the Council may reverse, affirm or modify the order. The concurring vote of a majority of the Council shall be necessary to reverse the order. An appeal stays all proceedings in furtherance of the action appealed from, unless the Mayor certifies to the Council that by reason of facts stated in the certificate, a stay would in his opinion cause imminent peril to life or property. In such case, proceedings shall not be stayed other than by a restraining order granted by the Council on due and sufficient cause shown.

**Section 1209. Railroad gates or traffic-barring devices.**

If determined that the owner of the railroad should maintain gates or other devices, such gates or devices shall be so constructed, maintained and operated during the hours specified in the order herein mentioned that they will afford a guard against danger to pedestrians, vehicles and animals and that they will give warning to the public of any danger from approaching or passing trains, engines or moving cars. Such gates or other devices shall be so devised and operated that they may and shall be raised and lowered as necessity and circumstances demand.

**Section 1210. Railroad crossings—Lights.**

Every owner or operator of a railroad shall maintain at each grade crossing an electric light of the kind and character now in use on the streets in the City of Tulsa and shall also maintain a sufficient number of lights in and about their stations and yards to insure safety to the traveling public. In the event of the failure of any railroad company or companies to comply with such requirements, the City of Tulsa shall proceed to erect and maintain such devices and the actual cost thereof shall be taxed against the offending company and collected in the same manner as other taxes.

### Section 1211. Penalty.

Unless otherwise provided for in this chapter, every person violating any provision of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Dollars ($200.00), excluding costs, fees and assessments.

*(Ord. Nos. 15524, 18454, 19491)*

### Section 1212. Regulations validated.

All the traffic regulations heretofore adopted or put into effect by the Chief of Police and/or the Director of Public Works and in existence upon the date of the adoption of this amendment are hereby declared and made legal, valid and binding, notwithstanding any failure or omission to comply fully and completely with the laws of procedure in force at the time of the making of such traffic regulations, and such traffic regulations are hereby continued in full force and effect until repealed, modified or changed by the Council or in the manner prescribed in Section 201 herein.

### Section 1213. Forget-me-not vehicle safety ordinance.

This ordinance shall be known and may be cited as the "Forget-Me-Not Vehicle Safety Ordinance."

**A.** As used in the Forget-Me-Not Vehicle Safety Ordinance, the following words and phrases shall be defined as follows:

**1.** "Person responsible for a child" means a custodial parent or legal guardian of a child, or a person who has been directed or authorized to supervise a child by that child's custodial parent or legal guardian; and

**2.** "Unattended" means beyond a person's direct ability to care for or come to the aid of the unaccompanied person.

**B.** A person responsible for a child who is six (6) years of age or younger, or a caretaker of a vulnerable adult as defined by Section 10-103 of Title 43A of the Oklahoma Statutes, shall not leave that child or vulnerable adult unattended in a motor vehicle if the conditions, including, but not limited to, extreme weather, inadequate ventilation, or hazardous or malfunctioning components within the vehicle present a risk to the health or safety of the unattended child or vulnerable adult.

**C.** It shall not be considered a violation of this ordinance if the child or vulnerable adult is accompanied in the motor vehicle by a person at least twelve (12) years of age who is not mentally incompetent as defined by Section 1-103 of Title 43A of the Oklahoma Statutes.

**D.** Any person convicted of violating the provisions of this ordinance shall be guilty of a misdemeanor offense and shall be punished by:

**1.** A fine of not less than Fifty Dollars ($50.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, upon a first conviction;

**2.** A fine of not less than One Hundred Dollars ($100.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, upon a second conviction; and

**3.** A fine of not less than Two Hundred Dollars ($200.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and/or by imprisonment

in the City Jail for a period of not more than six (6) months, upon a third or subsequent conviction, and the full record of that person's convictions of the violations of this ordinance shall be submitted to the Department of Human Services for evaluation.

**E.** Any person convicted of violating the provisions of this ordinance who has left a child or vulnerable adult unattended in a motor vehicle on the premises of any establishment which holds any license for the sale of alcoholic beverages for consumption on the premises pursuant to Section 521 of Title 37 of the Oklahoma Statutes, and who has consumed any alcoholic beverage during the period of time the child or vulnerable adult has been unattended, shall be punished by a fine of not less than Five Hundred Dollars ($500.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, and/or by imprisonment in the City Jail for a period of not more than six (6) months.

**F.** Nothing in this ordinance precludes prosecution under any other provision of law.

*(Ord. No. 22719, § 1, 7-19-2012)*

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## CHAPTER 13. SECURITY VERIFICATION FORMS

Section 1300. Definitions.
Section 1301. Possession and production of security verification form.
Section 1302. Exceptions.
Section 1303. Penalty.
Section 1304. Forged or false security verification.

### Section 1300. Definitions.

As used in this chapter the following words and phrases shall have the meanings given herein:

**A.** **Department** shall mean the Department of Public Safety of the state of Oklahoma, acting directly or through its duly authorized officers and agents.

**B.** **Compulsory insurance law** shall mean the law requiring liability insurance in conjunction with the operation of a motor vehicle in the state of Oklahoma as found in Article VI, Chapter 7 of Title 47 of the Oklahoma Statutes.

**C.** **Security verification form** shall mean a form, approved by the Oklahoma State Board for Property and Casualty Rates, verifying the existence of security required by the compulsory insurance law of the state of Oklahoma.

*(Ord. No. 15774)*

### Section 1301. Possession and production of security verification form.

**A.** Except as provided in Section 1302, every operator of a motor vehicle registered in the state of Oklahoma shall, while operating or using such vehicle within the corporate limits of the City of Tulsa, carry a valid security verification form, or an equivalent form issued by the Department, reflecting liability coverage and shall produce such security verification form upon request for inspection by any law enforcement officer or representative of the Department or, in case of a collision, any person affected by such collision.

**B.** The provisions of this section shall apply to nonresident operators of vehicles that are not registered in this state only if the state in which the vehicle is registered requires compulsory liability insurance. In such cases, compliance with the requirements of the law of the state of registration shall be deemed compliance with the laws of this state.

*(Ord. Nos. 15774, 16803, 19491)*

### Section 1302. Exceptions.

The provisions of this chapter shall not be applicable to persons operating:

**A.** Any vehicle owned or leased by the federal or state government, or any agency or political subdivision thereof;

**B.** Any vehicle bearing the name, symbol or logo of the business, corporation or utility on the exterior and which is in compliance with the compulsory insurance law according to records of the Department which reflect a deposit, bond, self-insurance or fleet policy;

**C.** Any vehicle authorized for operation, under a permit number issued by the Interstate Commerce Commission or the Oklahoma Corporation Commission;

**D.** Any licensed taxicab; and

**E.** Any vehicle owned by a licensed used motor vehicle dealer.

*(Ord. No. 15774)*

### Section 1303. Penalty.

Every person violating any provision of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Two Hundred Fifty Dollars ($250.00), excluding costs, fees and assessments, or by imprisonment in the City jail for a period of not more than thirty (30) days, or by both such fine and imprisonment; provided, however that any person producing proof in court that a current security verification form or equivalent form which has been issued by the department reflecting liability coverage for such person was in force at the time of the alleged offense shall be entitled to dismissal of such charge upon payment of court costs; and provided further that if proof of security verification is presented to the court within forty-eight (48) hours after the violation, the charge shall be dismissed without payment of court costs.

*(Ord. Nos. 15774, 18454, 19491)*

### Section 1304. Forged or false security verification.

Any person who shall forge, falsify or, without authority, sign any security verification form or other evidence of financial responsibility, or who promulgates, files, offers or produces to any law enforcement officer, prosecuting attorney, representative of the Department or Service Oklahoma, or any other state agency designated by the state of Oklahoma, Judge of the Municipal Court, other court official or in the case of a motor vehicle collision, any person affected by such collision, any such security verification form or evidence of financial responsibility, knowing or having reason to believe that it is forged, false, signed without authority or otherwise invalid shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs and assessments, or by imprisonment in the City jail for not more than ninety (90) days, or by both such fine or imprisonment.

*(Ord. No. 18881; Ord. No. 25354, § 8, 7-24-2024)*

## CHAPTER 14. SPECIAL EVENTS

Section 1400. Purpose.
Section 1401. Definitions.
Section 1402. Special event permit required.
Section 1403. Exceptions to special event permit requirement.
Section 1404. Issuance of a special event permit does not obligate city services.
Section 1405. Special event permit application procedure.
Section 1406. Special event permit regulations.
Section 1407. Cost recovery for special events.
Section 1408. Insurance required to conduct special event.
Section 1409. Revocation of a special event permit.
Section 1410. City action on special event permit application.
Section 1411. Display of special event permit required.
Section 1412. Other permits and licenses.
Section 1413. Unlawful to interfere with special event or demonstration.
Section 1414. Penalty.
Section 1415. Other laws applicable.

### Section 1400. Purpose.

It is the purpose of the City of Tulsa to establish a process for permitting special events conducted by the private sector to use City streets, public property, facilities or services. It is recognized that these special events enhance the City of Tulsa lifestyle and provide benefits to the citizens through the creation of unique venues for expression and entertainment that are not normally provided as a part of governmental services. By recognizing special event venues, it is further intended to supplement land use regulations, to provide a coordinated process for the regulation of certain activities to be conducted in conjunction with special events, to ensure the health and safety of patrons of special events, to prohibit illegal activity from occurring within special event venues, and to protect the rights and interests granted a special event permit holder. It is further intended to create a mechanism for administrative and City services cost-recovery user fees for special events. It is also the intent of the City of Tulsa to protect the rights of its citizens to engage in protective free speech expression activities and yet allow for the least restrictive and reasonable, time, place and manner regulation of those activities within the overall context of rationally regulating special events that have an impact upon public property, facilities and services.

*(Ord. No. 23873, § 1, 2-28-2018)*

### Section 1401. Definitions.

**A. Affected parties** shall mean residents, businesses, places of worship, schools and other entities located within three hundred (300) feet of the special event venue that are likely to experience impact (e.g. noise and street closures) due to the special event.

**B. Building** shall mean any fully enclosed permanent structure built for the support, shelter, or enclosure of persons, animals or property of any kind. It includes push carts or sidewalk cafes, for which the sale of Goods, food or beverages has been authorized.

**C. Demonstration** shall mean any formation, procession or assembly of persons which, for the purpose of expressive activity, is:

**1.** To assemble or travel in unison on any street in a manner that does not comply with normal or usual traffic regulations or controls; or

**2.** To gather at a public area.

**D. Event** shall include a special event, film production, oversize/overweight load movement, or a demonstration.

**E. Expressive activity** shall include conduct, the sole or principal object of which is the expression, dissemination or communication by verbal, visual, literary or auditory means of opinion, views or ideas and for which no fee or donation is charged or required as a condition of participation in or attendance at such activity. It includes public oratory and distribution of literature.

**F. Film production** shall mean any outdoor film-making proposed to block pedestrian or vehicular traffic, or to take place on public or private property. Film permit fees shall be governed by Title 49, Chapter 10.

**G. Goods** shall mean goods, wares, personal property, merchandise or any other similar item which is generally sold.

**H. Major event** shall mean any special event organized and conducted that utilizes public rights-of-way. Major event permit fees shall be governed by Title 49, Chapter 10.

**I. Minor event** shall mean any special event organized and conducted that utilizes private property. Minor event permit fees shall be governed by Title 49, Chapter 10.

**J. Monthly event** shall mean any special event organized and conducted that utilizes public or private property for a recurring event at the same location on multiple dates in the same calendar month, if no changes are made to the site plan and/or traffic control plan. Monthly event permit fees shall be governed by whether it is a major event or minor event.

**K. Neighborhood block party** shall mean a gathering sponsored by a registered neighborhood or homeowners association, which may close a portion of a street (i.e. one residential block) during daylight hours.

**L. Organizer** shall mean any person who conducts, manages, promotes, organizes, aids or solicits attendance at a special event.

**M. Oversize/overweight load** shall mean any oversize/overweight load movement that traverses City of Tulsa Streets. Any vehicle, trailer, object or structure over fourteen (14)-feet-high, fourteen (14)-feet-wide or ninety (90)-feet-long is considered oversize and any vehicle, trailer, object or structure over ninety thousand (90,000) lbs. is considered overweight. oversize/overweight load permit fees shall be governed by Title 49, Chapter 10.

**N. Person** shall mean any person, film, partnership, association, corporation, company or organization of any kind.

**O. Public rights-of-way** shall mean any street, sidewalk, alley and/or easement deeded or dedicated to public use. This includes a City of Tulsa maintained trail.

**P. Sidewalk** shall mean that portion of the highway, other than the roadway, set apart by curbs, barriers, markings on other delineation for pedestrian travel.

**Q. Sign** shall mean any sign, pennant, flag, banner, inflatable display, or other attention-seeking device.

**R. Site plan** shall mean a diagram depicting all public rights-of-way sought to be closed and utilized for the conduct of the event, and the location of any structure, stand, tent, vehicle, sign, restroom facility, trash receptacles and/or displays to be used during or related to the event.

**S.** **Sound-amplifying system** shall mean any system, apparatus, equipment, device, instrument or machine designed for or intended to be used for the purpose of amplifying the sound or increasing the volume of human voice, musical tone, vibration or sound wave.

**T.** **Special event** shall mean:

**1.** Any organized formation, parade, procession or assembly consisting of persons, which may include animals, vehicles or any combination thereof, to assemble or travel in unison on any street that does not comply with normal or usual traffic regulations or controls; or,

**2.** Any organized activity conducted by a person involving the use of, or having any impact on public property, public facilities, public rights-of-way, street areas, or involving the temporary use of private property in a manner that varies from its current land use, which is open to the public with or without an admission charge. Private property use, including parking lots, may reference outdoor activities that include, but are not limited to, the sale or serving of alcoholic beverages including beer, entertainment with live music, fireworks, amusement rides, inflatables, climbing walls, examples as listed in Section 1401.T.3, parking motor vehicles on property not designed to accommodate motor vehicles or on any surface other than a hard surface area constructed of an all-weather material, or if the activity has the potential of impacting public property or public safety services.

**3.** For the purpose of this chapter, examples of special events include, but are not limited to, concerts, exhibitions, circuses, parades, carnivals, fairs, festivals, street parties, farmers markets, community events, escorts, mass-participation sports such as running, walking and/or cycling, films, oversize/overweight load movements and associated activities conducted over, under, upon and/or across public rights-of-way, which use, close or occupy portions of streets and sidewalks.

**U.** **Special event permit** shall mean a permit issued under this section.

**V.** **Special event venue** shall mean that area for which a special event permit has been issued and the geographic limits of all activities conducted as a part of the special event. For mass-participation sports, it includes the route of the event.

**W.** **Street** shall mean a way or place of whatever nature, publicly maintained and open to use of the public for purposes of vehicular travel, including but not limited to, any shoulder, parkway, public parking lot, public rights-of-way, alley or median. Street includes highway.

**X.** **Vendor** shall mean any Person who sells or offers to sell, any goods, food, or beverages within a special event venue.

**Y.** **Traffic control plan** shall mean the method of providing traffic control through and around the special event venue showing the placement of all necessary temporary traffic and parking control devices and/or changes in traffic signal operations. The special events coordinator shall have the authority to place, or cause to be placed, temporary "No Parking Signs" and other applicable signage for the purpose of regulating, warning or guiding traffic along public streets and rights of way, if in his/her opinion, traffic conditions and volume caused by the special event would otherwise adversely affect access to homes, businesses and driveways for area residents and businesses, to keep streets open for emergency vehicles and to prevent

unnecessary traffic congestion. Illegally parked vehicles can be relocated to a designated area by on-duty officers at the expense of the event organizer in areas marked with temporary or permanent "No Parking Signs", if obstructing the normal movement of traffic or blocking an approved permitted special event venue set-up. Temporary "No Parking Signs" will be designed and placed in accordance to City requirements and enforced by ordinance.

*(Ord. No. 23873, § 1, 2-28-2018)*

### Section 1402. Special event permit required.

**A.** It shall be unlawful for any person to engage in the conduct of a special event on public and/or private property, unless exempted, without first obtaining a permit from the City issued by the special events coordinator as provided by this ordinance and paying the fee established in Title 49, Chapter 10 currently in effect or hereafter adopted. Special event permit fees shall be governed whether it is a major event or minor event.

**B.** It shall be unlawful for any person to engage in the conduct of a film production on public and/or private property without first obtaining a permit from the special events coordinator and paying the fee established in Title 49, Chapter 10 currently in effect or hereafter adopted. A letter of support is required from the Tulsa Office of Film, Music, Arts and Culture to accompany the permit. Film Permit fees shall be governed by whether it is a major event or minor event.

**C.** It shall be unlawful for any person to engage in the conduct of an oversize/overweight load movement that traverses City of Tulsa streets without first obtaining a permit from the special events coordinator and paying the fee established in Title 49, Chapter 10 currently in effect or hereafter adopted. An oversize/overweight load permit is required by the City of Tulsa if an Oklahoma Department of Transportation (DOT), or any other state agency designated by the state of Oklahoma, oversize/overweight load permit is required for any type of movement that traverses City of Tulsa streets. Oversize/overweight load permit fees shall be governed by Title 49, Chapter 10.

**D.** The City is authorized to issue permits for special events occurring within the City limits of Tulsa pursuant to the procedures established by the City Charter and in this chapter. The City is authorized to determine the special event venue. The City shall set reasonable boundaries for the special event venue, balancing the special event requirement and public health, safety, and welfare. The City is authorized to coordinate the issuance of a special event permit with other public agencies through whose jurisdiction or property the event or portion thereof occurs.

*(Ord. No. 23873, § 1, 2-28-2018; Ord. No. 25354, § 9, 7-24-2024; Ord. No. 25425, § 5, 10-16-2024)*

### Section 1403. Exceptions to special event permit requirement.

The following activities are exempt from the special event permit requirement:

**A.** Funeral processions by a licensed mortuary;

**B.** Activities conducted by governmental agency acting within the scope of its authority;

**C.** Lawful demonstration or picketing on sidewalks;

**D.** Demonstrations that do not involve the use of a street, vehicles, animals, fireworks, pyrotechnics or equipment (other than sound equipment);

**E.** Activities held inside a building or facility intended for such activities, unless occupancy or other factors require a special event building permit;

**F.** Activities conducted entirely within City of Tulsa Parks, Tulsa County Parks, River Parks Authority or private parks;

**G.** Neighborhood block parties conducted on a one-block residential street; or

**H.** Activities of motor vehicle escort guides, regulated in Chapter 9 of this title, escorting a parade procession in accord with a special event permit issued under this chapter.

**I.** Although not required to obtain a special event permit, an event organizer of an exempted activity is nevertheless required to comply with general regulations governing public safety and health.

*(Ord. No. 23873, § 1, 2-28-2018; Ord. No. 24808, § 3, 4-27-2022)*

### Section 1404. Issuance of a special event permit does not obligate city services.

Issuance of a special event permit does not obligate or require the City to provide City services, equipment or personnel in support of the event.

*(Ord. No. 23873, § 1, 2-28-2018)*

### Section 1405. Special event permit application procedure.

**A.** The permitting of special events shall be coordinated and managed by the Working in Neighborhoods Department (WIN) of the City of Tulsa.

**B.** Applicants for a special event permit shall file with the Special Events Coordinator a verified application on a form to be furnished by the Events Coordinator.

**C.** The complete application shall be received by the Special Events Coordinator not less than the following number of days prior to the commencement of the event.

**1.** Ninety (90) days for special events involving the temporary use of public rights-of-way.

**2.** Forty-five (45) days for special events involving the temporary use of private property.

**3.** Applications for special events at City public facilities, film productions, oversize/overweight load movements, or non-exempt demonstrations shall be submitted in accordance with the time limits and procedures established by the Special Events Coordinator, subject to review by the Special Events Committee.

**D.** The application may not be submitted to the Special Events Coordinator more than one (1) year prior to the scheduled date of the event.

**E.** Each special event permit application shall be accompanied by the non-refundable application fee established in Title 49, Chapter 10 currently in effect or hereafter adopted.

**F.** Applications will be processed in the order in which complete applications are received unless delayed by other conditions. If a scheduling conflict occurs, preference will be given to long standing annual events customarily scheduled on the subject date.

**G.** An application for a special event permit is deemed complete when the applicant has provided all of the information required by the Special Events Coordinator, including any additional information required by other City departments.

**H.** The Special Events Coordinator is not required to process an incomplete or untimely special events permit application.

**I.** The Special Events Coordinator is not required to process more than one (1) application for a special event permit per applicant during any two-week period.

**J.** The Special Events Coordinator is not required to process two (2) or more special event permit applications submitted by the same applicant unless two (2) or more weeks shall have elapsed between respective dates of submission of each.

**K.** All applications for special event permits shall be reviewed by the Special Events Committee (SEC), which includes representatives from Police, Fire, Medical, Traffic Engineering and other City departments and applicable agencies.

**L.** Notwithstanding the submission of a completed application to the Special Events Coordinator, no date shall be confirmed until a special event permit is issued.

**M.** The monthly event permit may be issued for a recurring event at the same location on multiple dates in the same calendar month, provided no changes are made to the site plan and/or traffic control plan.

**N.** Subject to review by the Special Events Committee, the Special Events Coordinator is authorized to provide additional rules and regulations that are consistent with and that further the terms and requirements set forth with this chapter and the provisions of law that pertain to the conduct and operation of a special event, film production, oversize/overweight load movement or non-exempt demonstration.

*(Ord. No. 23873, § 1, 2-28-2018)*

## Section 1406. Special event permit regulations.

**A.** The permit shall be subject to, and subordinate to, any franchise for the use of the public rights-of-way previously or subsequently granted by the City of Tulsa to any public utilities, firms or corporations, and the permit shall further be subject to, and subordinate to, the right and power of the City of Tulsa to construct, operate and maintain any public utilities or public facilities in, above and under the public rights-of-way.

**B.** During the permit period, organizer will be authorized to limit motorized vehicle access to the event venue by the placement of temporary barricades as illustrated on the approved traffic control plan.

**C.** The issuance of a special event permit confers upon the permit holder or the Event Organizer the right to control and regulate the sale of goods, food and beverages within the special event venue in accordance with the terms and conditions of the special event permit. The Organizer is authorized to limit and regulate temporary exhibits, promotional activities, peddlers, entertainers, and vendor sales within the event venue; provided however, free unregulated access to permanent businesses and operations of such businesses on private property within or adjacent to the event venue shall not be prohibited.

**D.** It is unlawful for any person to sell, resell, or offer to sell or resell, any goods, food or beverages in a special event venue, except:

**1.** From any building; or

**2.** From any tent, booth or temporary structure expressly authorized pursuant to a special event permit.

**E.** The Organizer shall not make or suffer any use of occupancy of the event venue contrary to any law, state statute or City ordinance currently in effect or hereafter adopted. At all times during the operation of the event, the Organizer shall comply with all requests and requirements made by representatives of the Chief of Police, Fire Chief, Director of Engineering Services and/or Director of Working in Neighborhoods of the City with respect to security, surveillance and public safety, traffic and parking control, crowd management, alcohol management, barricades, signage, pedestrian matters, fire and safety and all matters related thereto; and at all times the foregoing City officials and their designated agents shall be allowed to fully inspect the operation of the event and the event venue. The Organizer shall also comply with the following requirements:

**1.** All street, lane and sidewalk closure locations together with temporary modifications authorized under the Permit are to be shown on the event traffic control plan.

**a.** Static venue closures shall be in conformance with the current edition of the Manual on Uniform Traffic Control Devices (MUTCD) and any additional City requirements. The placement of traffic control devices shall be reviewed and approved by the Special Events Coordinator and the Traffic Engineer or his/her designee and have sufficient flexibility to meet the needs of the changing conditions in the temporary road closure.

**b.** Moving route closures shall be permissible exceptions in conformance with the current edition of the MUTCD due to on-duty event officers and activated police emergency lights at intersections and any additional City requirements. The placement of traffic control devices shall be reviewed and approved by the Tulsa Police Department and the Traffic Engineer or his/her designee and have sufficient flexibility to meet the needs of the changing conditions in the temporary traffic control route.

**2.** The organizer must contact the City of Tulsa Police Department Special Events Unit for escort or temporary traffic control.

**3.** Special events trespassing onto private property is not permitted. However, this requirement shall in no way limit permissive use of private property.

**4.** There shall be no damage, drilling, painting or construction upon City streets, sidewalks or other public property unless specifically detailed and authorized in writing by the Director of Streets and Stormwater or his/her designated agent.

**5.** The Organizer must furnish such other information and satisfy all conditions as are reasonably necessary for the conduct of the Special Event and the enforcement of this chapter, including the requirement for the on-site presence of the Event Organizer or its designated representative for all event coordination and management purposes.

**6.** As a condition of the issuance of a special event permit, the applicant shall be required to make adequate provisions for cleaning up the area or route of the event both during and upon completion of the Event and to return the area or route to the same condition of material preservation and cleanliness as existed prior to the

event. No washing or flushing of materials into the storm sewer system is permitted except rain water. For pollution guidelines, see Title 11-A Chapter 5 of Pollution Ordinance.

**F.** The Organizer shall bear, pay and discharge all taxes, assessments, duties, impositions and burdens whatsoever assessed, charged or imposed within or upon and in connection with the use of the event venue except as may be exempted by local, state or federal laws or regulations and shall deliver to the City of Tulsa the proper and sufficient receipts and other evidence of the prompt payment and discharge of same.

**G.** Subject to compliance with all provisions of Section 1406.E.1, above, the Organizer is authorized to install, place and maintain modifications within the event venue during the term of the event, and such installation, placement and maintenance, as well as removal of the modifications within the event venue shall be at the sole risk and expense of the Organizer.

**H.** The Organizer shall bear, pay and discharge any and all obligations, costs, fees or expenses for the construction, erection and removal of any modifications and/or services provided within the event venue or connected with the event, and shall bear, pay and discharge all costs or expenses incurred by the Organizer in connection with the maintenance or repair of any such modifications within the event venue during the term of the permit.

**I.** The Organizer shall dismantle and remove any modifications and shall clean up all trash and debris from the event venue generated by the event as provided in the permit within the term of the permit. In case the Organizer fails to fulfill these obligations in a timely manner, the City of Tulsa shall have the right to do or have done such work and recover the cost of such work from the Organizer. Further, failure of the Organizer to comply with the provisions of this section shall constitute grounds for denial of subsequent permit requests.

**J.** The Organizer shall indemnify and hold the City of Tulsa and public trusts of which it is the beneficiary, harmless from all claims, suits, actions or judgment, including but not limited to, all expenses, attorney's fees, witness fees, and all other costs of defending any such action or claim or appeals thereof, arising out of any defect of the event venue or from the maintenance, operation or conduct of the event by the Organizer, its agents or employees or its invitees, vendors or licensees.

**K.** The Organizer shall assume full responsibility for ensuring the protection of all City property within the event venue, including but not limited to streets, storm sewer systems, sidewalks, trees, plants, shrubs, buildings, and the like. Any damage which may occur to City property will be the responsibility of the Organizer if the same occurs within the Event Venue due to the event. This section specifically excludes normal wear and tear as determined by the Director of Asset Management.

**L.** The City may deny a special event permit to an applicant who has failed to comply with any term or condition of this chapter, or any condition of a special event permit previously issued to the applicant.

**M.** In order to ensure that the conditions in this chapter are met, the Special Events Coordinator may place additional reasonable conditions on the special events permit.

*(Ord. No. 23873, § 1, 2-28-2018)*

## Section 1407. Cost recovery for special events.

Special events requiring additional services, as requested by the Organizer and/or as determined by the Special Events Coordinator or other City official, shall require service fees. Fees for additional services shall be calculated by the appropriate City department and invoiced to the special event organizers after the special event occurs. A schedule of such approved fees for such services follows:

| Department | Services | Calculation | Fee |
|---|---|---|---|
| Asset Management Security | Special Event and Services Parking and Oversized Loads | Per Hour/Per Position Minimum Three Hours | $30.00 |
| Fire Department | Special Event and Services Fire and Medical Support | Per Hour/Position Minimum 3 Hours | Effective Jan. 1, 2026: $59.00 Effective Jan. 1, 2027: $68.00 Effective Jan. 1, 2028: $77.00 |
| Police Department | Special Event and Services Traffic and Crowd Control | Per Hour/Position Minimum 3 Hours | Effective Jan. 1, 2026: $59.00 Effective Jan. 1, 2027: $68.00 Effective Jan. 1, 2028: $77.00 |
| Police Department | Special Event and Services Barricades and Signage | Per Hour/Position Minimum 4 Hours | Effective Jan. 1, 2026: $59.00 Effective Jan. 1, 2027: $68.00 Effective Jan. 1, 2028: $77.00 |
| Public Works | Special Event and Services Miscellaneous Support | Per Hour/Position Minimum 4 Hours | $30.00 |
| Public Works Traffic Engineer | Special Event and Services Traffic Signal Lights | Per Hour/Position Minimum 3 Hours | $30.00 |

*(Ord. No. 23873, § 1, 2-28-2018; Ord. No. 25611, § 1, 6-25-2025)*

## Section 1408. Insurance required to conduct special event.

**A.** The Event Organizer of a special event shall possess or obtain comprehensive general liability insurance to protect the City against loss from liability imposed by the law for damages on account of bodily injury and property damage arising from the event. Insurance coverage shall be maintained for the duration of the event. Notice of cancellation shall be provided immediately to the City and shall be cause of Permit revocation.

**B.** The Event Organizer shall furnish the City of Tulsa, at least fifteen (15) business days in advance of the occupancy time of the Permit, Venue, escort or road closure,

whichever comes first, a certificate showing there is in force a general liability insurance policy with a bodily injury and property damage combined single limit of not less than One Million Dollars ($1,000,000.00) for each occurrence. The applicant shall include product liability insurance coverage in equal liability limits (One Hundred Seventy-Five Thousand Dollars ($175,000.00) per individual and One Million Dollars ($1,000,000.00) per multiple individuals as the result of and single occurrence or accident) when concession sales are approved during the event. The applicant must be the named insured and the City of Tulsa be named as an additional insured on the policies. The insurance company must be a company duly licensed to do business in the State of Oklahoma and listed in the Oklahoma 96th Annual Report and Directory of Insurance and Related Companies. The policy shall also provide for a minimum of thirty (30) days mandatory written notice to the City of Tulsa, in the event of cancellation or material alteration of the limits of the policy.

*(Ord. No. 23873, § 1, 2-28-2018)*

**Section 1409. Revocation of a special event permit.**

**A.** Any special event Permit issued under the terms of this chapter may be revoked by the City for grounds including, but not limited to, the following:

**1.** Fraud, misrepresentation or any false statement contained in the application for the permit;

**2.** The Organizer conducts the event for which the Permit has been issued in a reckless or an unlawful manner or in such a manner as to constitute a breach of peace;

**3.** The conduct of the event has caused, will cause or will have the effect of an imminent threat to the public health, safety and/or general welfare;

**4.** The Organizer fails to comply with all the terms and conditions of the special event permit or reasonable directions of the Special Events Coordinator.

**5.** The event is being conducted in violation of any condition of the special event permit.

**6.** The Event Organizer or any person associated with the event has failed to obtain any other permit required pursuant to this chapter.

**7.** The special event permit was issued in error or contrary to law;

**B.** Upon revocation of the permit, the Organizer shall immediately terminate the conduct of the event, dismantle and remove any modifications and/or obstructions located in any public rights-of-way and/or the event venue, and return the public rights-of-way and the event venue, to the original condition before the event.

**C.** Revocation for cause shall constitute grounds for denial of subsequent permit requests.

*(Ord. No. 23873, § 1, 2-28-2018)*

**Section 1410. City action on special event permit application.**

**A.** The City shall take final action upon a completed application for a special permit as soon as practicable.

**B.** The City is not required to take final action upon any special event permit application prior to one-hundred-eighty (180) calendar days before the event.

**C.** The City is not required to take final action on an incomplete or untimely special event permit application.

**D.** The City is not required to take final action upon more than one (1) application for a special event permit per applicant during any two-week period.

**E.** The City is not required to take final action upon two (2) or more special event permit applications submitted by the same applicant unless two (2) or more weeks shall have elapsed between respective dates of submission of each.

**F.** Final action on a completed special event permit application shall consist of one (1) of the following:

**1.** Issuance of a special event permit by the City Council in accordance with the terms of the application; or,

**2.** Issuance of a special event permit in accordance with the terms of the application, as modified by mutual agreement between the City Council and the applicant; or,

**3.** Denial of the special event permit application by the City Council.

**G.** The Special Events Coordinator shall have the discretion and authority to issue permits for oversize/overweight movements, film productions, events solely on private property, or events which do not adversely affect traffic movement or require the use of an alternate route, and will notify the Mayor and City Council of such permit applications, except for oversize/overweight movements.

*(Ord. No. 23873, § 1, 2-28-2018)*

### Section 1411. Display of special event permit required.

A copy of the special event permit shall be available in the special event venue in the method prescribed by the Special Events Coordinator and shall be exhibited upon demand by any City official.

*(Ord. No. 23873, § 1, 2-28-2018)*

### Section 1412. Other permits and licenses.

**A.** The issuance of a special event permit does not relieve any person from the obligation to obtain any other permit or license required pursuant to any provisions of federal law, the statutes and regulations of the state of Oklahoma or the ordinances of the City of Tulsa.

**B.** The issuance of any other permit or license issued pursuant to the statutes and regulations of the state of Oklahoma or the ordinances of the City of Tulsa does not relieve any person from the obligation to obtain a special event permit pursuant to this chapter.

*(Ord. No. 23873, § 1, 2-28-2018)*

### Section 1413. Unlawful to interfere with special event or demonstration.

**A.** The event will not substantially interfere with any other special event or demonstration for which a permit has already been granted or with the provision of City services in support of other scheduled Events or unscheduled governmental functions such as chiefs of state.

**B.** It is unlawful for any person to obstruct, impede or interfere with any authorized assembly, person, vehicle, animal participating in a demonstration or an event for which a special event permit has been issued.

*(Ord. No. 23873, § 1, 2-28-2018)*

### Section 1414. Penalty.

Any person who shall violate any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00) and/or by imprisonment in the City jail for not more than six (6) months, excluding costs, fees and assessments. Each day of violation shall constitute a separate offense.

*(Ord. No. 23873, § 1, 2-28-2018)*

### Section 1415. Other laws applicable.

The provisions of this chapter shall not be construed to exempt any person or non-profit, political, educational, religious or fraternal organization from compliance with any other applicable ordinance of the City of Tulsa not in conflict herewith, unless specifically excluded herein.

*(Ord. No. 23873, § 1, 2-28-2018)*

# TITLE 37-A EMERGENCY MEDICAL SERVICES CODE

**Chapter 1. Emergency Medical Services Code**
**Chapter 2. Medical Service Program**

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## CHAPTER 1. EMERGENCY MEDICAL SERVICES CODE

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### Section 100. Definitions.

The following words, terms and phrases, when used in this Code, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

**(1) Ambulance** means any ground, air or water vehicle which is designed and equipped to transport a patient or patients and to provide appropriate on-scene and/or enroute patient stabilization and care to or from health care facilities.

**(2) Ambulance response time standards** means:

| | |
|---|---|
| Priority 1 | 10 minutes 59 seconds |
| Priority 2 | 24 minutes 59 seconds |
| Priority 3 | 60 minutes 0 seconds |
| Priority 4 | 20 minutes 0 seconds* |
| (*After agreed-upon pickup appointment.) | |

**(3) Ambulance service** means a person or organization, governmental or private, which operates one or more ambulances as defined herein for purposes of transporting a patient or patients and to provide appropriate on-scene and/or enroute stabilization and care to or from health care facilities.

**(4) Amended and Restated Trust Indenture** means the Second Amended and Restated Trust Indenture for the Emergency Medical Services Authority dated November 18, 2022 and any amendments thereto.

**(5) Contract for special arrangements** means a contract between EMSA and a Beneficiary or Non-beneficiary member jurisdiction which defines the terms of any special arrangements which have been agreed regarding subsidy, fee schedules,

response times and supplemental ambulance services. If the contract for special arrangements provides for supplement ambulance services, it shall detail the operational response plan for the supplemental service provider, resource deployment, delineation of command authority, reporting requirements, compensation, if any, between EMSA and the supplemental service provider, and such other provisions as deemed appropriate for the efficient and cost effective delivery of ambulance services within the regulated service area.

**(6) Supplemental service provider** means any beneficiary member jurisdiction or non-beneficiary member jurisdiction within the regulated service area that maintains its own ground ambulance license and maintains a contract for special arrangements with EMSA for the provision of supplemental ambulance services within the boundaries of the municipality or district of such beneficiary or non-beneficiary member jurisdiction.

**(7) On-line medical control physician** means an emergency department or destination facility based physician licensed to practice medicine in the State of Oklahoma, from whom ambulance and emergency medical response agency personnel may take medical direction by radio or other remote communications device.

**(8) Beneficiary member jurisdiction** means the City of Tulsa and the City of Oklahoma City.

**(9) Eastern Division** means that portion of the regulated service area which is located east of the City of Stroud.

**(10) Emergency Medical Services Authority (EMSA)** means the trust established by the City of Tulsa, pursuant to 60 O.S. § 176 et seq., as amended and whose beneficiaries are, jointly, the City of Tulsa and the City of Oklahoma City, and which is established to provide ambulance services to the Cities of Tulsa, Oklahoma City, and other jurisdictions within the regulated service area.

**(11) Emergency call** means a request for ambulance service by or for a patient whose apparent condition, at the time the call is received, presumptively meets the criteria for classification as priority 1 or priority 2, when classified in accordance with telephone algorithms and medical priority dispatch protocols approved by the Medical Control Board.

**(12) Emergency medical personnel/EMS personnel** means those persons who participate directly in the performance of one or more emergency medical services and are certified or licensed by the Oklahoma State Department of Health and credentialed by the Medical Director in the EMSA system.

**(13) Emergency medical services (EMS)** means the following prehospital and interhospital services:

**a. Access and coordination.** The answering and processing of telephone requests from the public for ambulance or first responder services, and including EMS dispatching, emergency and routine; the giving of medical prearrival instructions to callers by telephone; but excluding the process of 9-1-1 complaint-taking when the caller is immediately transferred to an EMS control center;

**b. Emergency medical responder services.** Those emergency services, which are performed by an emergency medical response agency within the regulated service area and credentialed by the Medical Director;

c. **Medical transportation.** Ambulance services, both emergency and non-emergency, including patient assessment, transportation, and medical procedures performed on-scene, en route, during interfacility transport, at an emergency receiving facility when performed at the request of the receiving physician, or non-emergency transfer; and

d. **On-line medical direction.** Instructions given by on-line medical control physicians to Emergency medical responders or ambulance personnel at the scene of an emergency, while en route to a hospital, or during an interfacility patient transfer.

**(14)Emergency Physicians Foundation (EPF)** means that administrative agency established jointly by this and other jurisdictions which have approved the EMS Interlocal Cooperation Agreement, pursuant to the Interlocal Cooperation Act (74 O.S. § 1001 et seq.), as amended and have adopted this Uniform Code for Emergency Medical Services.

**(15)EMS control center** (or "**control center**") means either of two facilities operated by EMSA, one of which serves as central EMS communications center for the Eastern Division, and the other of which serves as central EMS communications center for the Western Division. EMSA may, when an emergency declaration is made by the EMSA Board of Trustees or its CEO in order to avoid loss of life or damage to public peace and safety or in order to maintain operation continuity, consolidate the operations of the two EMS control centers to create a single EMS control center to serve the entire regulated service area until such time as the emergency declaration has been rescinded by the EMSA Board of Trustees, or upon cessation of the circumstances which required operational continuity changes. The EMSA Board of Trustees shall meet at its first opportunity following a written request for rescission from a beneficiary member jurisdiction to consider rescinding the emergency declaration.

**(16)EMS Interlocal Cooperation Agreement** means that certain agreement titled Amended and Restated Interlocal Cooperation Agreement and approved by the governing body of the beneficiary member jurisdictions.

**(17)Emergency medical dispatcher (EMD)** means a person credentialed by the Medical Director as trained and competent to properly employ telephone algorithms, medical priority dispatching protocols, and prearrival instructions approved by the Medical Control Board, and to operate the EMS control center's computer-aided dispatch system in accordance with the system status plan, so as to maintain the best possible ambulance coverage of the regulated service area, given the remaining resources available at any point in time.

**(18)Emergency medical response agency (EMRA)** means an organization of any type company, or governmental entity certified by the Oklahoma State Department of Health to provide emergency medical care and limited transport in an emergency vehicle as defined in Section 1-103 of Title 49 of the Oklahoma Statutes. A certified emergency medical response agency shall only provide transport upon approval by the Medical Director or his/her clinical staff at the time of transport and upon a determination that a licensed ambulance provider is not readily available. Certified emergency medical response agencies may utilize licensed emergency medical personnel; provided, however, that all personnel so utilized shall function under the direction of and consistent with transport protocols and other guidelines as required by the Medical Director.

**(19)Emergency medical responder (EMR)** means any person, fire department unit, law enforcement unit, or non-transporting rescue unit certified by the Oklahoma State Department of Health capable of providing appropriate emergency medical responder service, under the auspices of an Emergency Medical Response Agency.

**(20)Ground ambulance license** means a license issued by the Oklahoma State Department of Health for the provision of basic, intermediate, advanced or paramedic life support ambulance services.

**(21)Medical Control Board** means that body of eleven (11) physicians established jointly by this and other jurisdictions pursuant to the EMS Interlocal Cooperation Agreement and this Code for purposes of providing medical supervision, monitoring, and regulation as described in the Amended and Restated Interlocal Cooperation Agreement.

**(22)Medical Director/Chief Medical Officer (CMO)** means the licensed physician appointed by the Medical Control Board to perform the duties and responsibilities granted and ascribed to the Medical Director herein and in the EMS Interlocal Cooperation Agreement, which includes authorizing certified and licensed emergency medical personnel to perform procedures and interventions detailed in the medical protocols.

**(23)Medical protocol** means any diagnosis-specific or problem-oriented written statement of standard procedure, or algorithm, promulgated by the Medical Director and approved by the Medical Control Board as the medically appropriate standard of prehospital care for a given clinical condition.

**(24)Mutual aid agreement** means a written agreement between EMSA and a primary provider of ambulance services in an adjoining community to the regulated service area, whereby the signing parties agree to lend emergency aid to one another subject to conditions and terms specified in the agreement.

**(25)Non-beneficiary member jurisdictions** means jurisdictions that are not beneficiary member jurisdictions as defined herein, including municipalities, counties, EMS districts, ambulance districts, school districts, Indian Nations, or other governmental entities that elect to contract with EMSA in order to be included in the regulated service area upon such terms which are mutually agreeable to EMSA and which approves and signs the EMS Interlocal Agreement.

**(26)Operations contract** means any contract awarded by EMSA by competitive bid award for provision of any ambulance services throughout the regulated service area, but does not include a contract for special arrangements with beneficiary member jurisdictions and non-beneficiary member jurisdictions.

**(27)Operations contractor(s)** means the person(s) or firm(s) contracted by EMSA pursuant to an operations contract.

**(28)Patient** means any human being that has a complaint suggestive of potential illness or injury, requests evaluation for potential illness or injury, has obvious evidence of illness or injury, or has experienced an acute event that could reasonably lead to illness or injury and who may need transport by ambulance, as determined in accordance with applicable provisions of the system standard of care.

**(29)Person** means and includes any individual, firm, association, partnership, corporation, or other group or combination acting as a unit.

**(30)Presumptive priority classification** means the designation by an emergency medical dispatcher (EMD) emergency medical dispatcher (EMD) of a request for service as priority 1, 2, 3, or 4, in accordance with telephone algorithms and medical priority dispatching protocols approved by the Medical Control Board.

**(31)Priority** means the call priority number (i.e., priority 1, 2, 3, or 4) assigned to every request for service received by an EMS control center. Such priorities shall be assigned only by a credentialed EMD, pursuant to telephone algorithms and priority dispatch protocols established by the Medical Director and approved by the Medical Control Board. Classifications shall be consistent with the following definitions:

**a. Priority 1 call** means a presumptively classified life-threatening emergency call;

**b. Priority 2 call** means a presumptively classified non-life-threatening emergency call;

**c. Priority 3 call** means a presumptively classified request for routine patient transport scheduled less than 24 hours in advance of the requested time of pick-up or an unscheduled, nonemergency request for service; and

**d. Priority 4 call** means a presumptively classified request for routine patient transport scheduled 24 hours or more in advance of the requested time of pickup.

**(32)Quality assurance fund** means the fund account which is established pursuant to the EMS Interlocal Cooperation Agreement and, concurrently, by adoption of this Code, and which is administered by EMSA on behalf of the Medical Control Board, and which shall be used solely to fund the activities and related expenses of the Medical Control Board in carrying out its duties and responsibilities as set forth herein and in the EMS Interlocal Cooperation Agreement.

**(33)Regional EMS system** means that network of organizations, individuals, facilities, and equipment which provides emergency medical services, as defined herein, to jurisdictions within the regulated service area, subject to the system standard of care approved by the Medical Control Board.

**(34)Regulated service area** means the combined area which is contained within the boundaries of the municipalities, ambulance districts, EMS districts, school districts, Indian Nations, and other governmental entities which make up the beneficiary member jurisdictions and non-beneficiary member jurisdictions.

**(35)Ambulance response time** means the actual elapsed time between receipt by the EMS control center of the call and the arrival of a permitted ambulance or mutual aid ambulance at the scene of the incident. For scheduled nonemergency (priority 4) requests, "scheduled time of pick up" shall be substituted for the "time call received" in the response time calculation.

**(36)Emergency medical responder response time** means the actual elapsed time between notification of the emergency medical response agency by the EMS control center that a emergency medical response unit is needed at a given location, and the arrival of a first response unit at the incident scene.

**(37)Non-emergency call** means a request for ambulance service by or for a patient whose apparent condition, at the time the call is received, presumptively meets the criteria for classification as priority 3 or priority 4, when classified in accordance with telephone algorithms and medical priority dispatch protocols approved by the Medical Control Board.

**(38) Special events ambulance standby service** means the positioning of an ambulance and crew at the location of a publicly or privately sponsored event.

**(39) Sub-area** is a section of the Eastern Division's beneficiary member jurisdiction or the Western Division's beneficiary member jurisdiction drawn so as to divide the service area into three geographical areas for the purpose of equalizing response times within the area.

**(40) System standard of care** means the written body of standards, policies, and protocols governing all clinical aspects of the EMS system, which is approved by the Medical Control Board and which is developed and periodically updated in accordance with procedures set forth in the EMS Interlocal Cooperation Agreement. As used in this context, system standard of care is a comprehensive term including:

**a. Input standards** including but not limited to personnel credentialing requirements, training requirements, equipment specifications, on-board inventory requirements, and other requirements which the system must fulfill before receipt of a request for service;

**b. Performance standards** including but not limited to medical priority dispatching protocols and prearrival instructions, medical protocols, standing orders, response time standards, protocols governing authority for on-scene control of patient care, and other performance specifications describing how the system should behave upon receipt of a request for service; and

**c. Outcome standards** are results the system intends to achieve by meeting its input and performance standards.

**(41) System status plan** means the plan and protocols for staffing, deployment, and redeployment of ambulances which is developed and implemented by EMSA as to all ambulance service providers within the regulated service area in order to meet response time compliance. The system status plan specifies how many ambulances will be staffed and available within the regulated service area each hour of the day, each day of the week, including the locations of available ambulances (not assigned to calls) within the regulated service area, specified separately for each hour of the day, for each day of the week, and every remaining number of ambulances then available in the system, and including protocols for event-driven redeployment of those remaining ambulances.

**(42) Western Division** means that portion of the regulated service area which is located west of Stroud, and which may include the City of Stroud subject to requirements set forth in the EMS Interlocal Cooperation Agreement.

*(Ord. Nos. 17294, 19167; Ord. No. 22019, § 1, 8-20-2009; Ord. No. 22973, § 1, 10-24-2013; Ord. No. 24957, § 1, 11-16-2022)*

## Section 101. Medical Director/Chief Medical Officer.

The Medical Director/Chief Medical Officer shall be appointed by the Medical Control Board as provided for in the EMS Interlocal Cooperation Agreement, shall recommend a system standard of care designed to achieve a state of the art quality of emergency medical care within the regulated service area, shall set standards for clinically equipping ambulances and EMRA apparatus/vehicles and credential personnel as meeting the

requirements of this ordinance, and shall have those powers and duties granted and ascribed to him/her in the EMS Interlocal Cooperation Agreement, plus such additional powers and duties as are granted and ascribed to him/her herein.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

**Section 102. Medical Control Board.**

The Medical Control Board is hereby designated as the elected representatives constituting the Board of Directors of the EPF. Its members shall be as provided for in the EMS Interlocal Cooperation Agreement. The Medical Control Board shall be the policy-making, rule-making, and factfinding body that shall review and establish all aspects of the system standard of care; and shall have those powers and duties granted and ascribed to it in the Amended and Restated EMS Interlocal Cooperation Agreement.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

**Section 103. Emergency Physicians Foundation (EPF).**

The Emergency Physicians Foundation, acting through its appointed Medical Control Board, is established, concurrently herewith, by adoption of the EMS Interlocal Cooperation Agreement as the administrative agency to oversee clinical aspects of the care rendered by the regional EMS system to the citizens of the regulated service area. The EPF shall have the powers and duties granted and ascribed to it in the Amended and Restated EMS Interlocal Cooperation Agreement.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

**Section 104. Emergency Medical Services Authority (EMSA).**

EMSA is hereby designated as the sole provider of emergency, and non-emergency ambulance transport services in the regulated service area, pursuant to 63 O.S. § 1-2515. No person or entity may provide emergency, non-emergency or special events ambulance services in the regulated service area unless acting as a subcontractor to EMSA or pursuant to a written contract for special arrangements.

EMSA is authorized and directed to take such steps as are necessary to ensure the availability of both emergency and non-emergency ambulance services within the regulated service area, subject to the following requirements:

**(a)** EMSA shall at all times comply with the terms of: the Amended and Restated EMS Interlocal Cooperation Agreement, the Second Amended and Restated Trust Indenture, this Uniform Code for Emergency Medical Services, and all other applicable laws, rules, and regulations;

**(b)** EMSA shall at all times be a direct provider of ambulance services in the regulated service area unless the EMSA Board of Trustees elects to contract all or a portion of such ambulance service, pursuant to an operations contract, and in such case shall: employ a competitively selected operations contractor to operate the EMS control centers (Eastern and Western Divisions), or directly provide ambulance services rendered under EMSA's trade name, or any combination thereof;

**(c)** in contracting with an operations contractor for the provision of any ambulance services, EMSA shall employ such bidding processes and contracting methods as are reasonable and effective in ensuring the uninterrupted and reliable delivery of quality ambulance services to the citizens of the regulated service area;

**(d)** All ambulance services provided within the regulated service area shall meet or exceed the standards set forth herein and in the system standard of care, as approved and periodically updated by the Medical Control Board; and

**(e)** Any operations contractor selected by EMSA shall operate as a subcontractor to EMSA and under EMSA's ground ambulance license. EMSA shall maintain a valid Oklahoma ground ambulance license at all times.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

### Section 104.1. Supplemental services by qualified supplemental service providers.

A beneficiary or non-beneficiary member jurisdiction may contract for supplemental ambulance service with EMSA pursuant to a contract for special arrangements for purposes of ensuring the availability of ambulance services to respond to ambulance service within its municipality or district, subject to the following requirements:

**A.** Such supplemental service provider shall at all times comply with the terms of the Amended and Restated EMS Interlocal Cooperation Agreement, the Second Amended and Restated Trust Indenture, this Uniform Code for Emergency Medical Services, all other applicable laws, rules, and regulations, and the terms of the contract for special arrangements;

**B.** All services provided by such supplemental provider shall meet and exceed the standards set forth herein and in the system standard of care, as approved and periodically updated by the Medical Control Board;

**C.** Such supplemental service provider shall acquire and maintain at all times the appropriate level of ground ambulance license for the level of ambulance services required by this Code;

**D.** Such supplemental service provider shall have a written contract for special arrangements detailing the supplemental ambulance services, including an operational response plan, delineation of command authority, resource deployment, reporting requirements, and compensation and shall operate as a subcontractor to EMSA; and

**E.** Such supplemental service provider shall be solely responsible for staffing such supplemental ambulance services detailed in the contract for special arrangements and shall operate as a subcontractor to EMSA.

*(Ord. No. 24957, § 1, 11-16-2022)*

### Section 105. Mandatory centralized call processing.

**(a)** All telephone requests for ambulance services, both emergency and routine, originating within the regulated service area shall terminate at an EMS control center where a credentialed EMD shall establish the call's priority classification, determine the patient's location, and if appropriate, deliver prearrival instructions. The EMD shall also determine the need for emergency medical response service; alert the emergency medical response agency, if appropriate, and directly dispatch the call.

**(b)** During times of disaster, such as a natural disaster or civil unrest, impacting the entire system and declared by the Chief Executive Officer of EMSA or designee, the EMS control center shall at all times have full authority to direct the positioning,

movements, and run responses of all ambulance units of all ambulance services, including such units under a contract for special arrangements with EMSA, until such time as the declaration has been lifted.

**(c)** All calls processed by an EMS control center shall be recorded to facilitate subsequent auditing of the EMD's actions and decisions by the Medical Director, and all such recordings shall be safely stored and shall be erased after an appropriate interval or as provided by law.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

### Section 106. Mandatory EMS data system and reporting standards.

EMSA, as well as every operations contractor, supplemental service provider, and certified emergency medical response agency, shall comply with EMS data system and reporting standards as prescribed by the Medical Director; provided, however, that changes in data collection or reporting requirements which may reasonably be expected to require costly modification of existing computer hardware or software shall be approved by EMSA prior to implementation.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

### Section 107. Insurance requirements.

**A.** Any operations contractor shall keep in full force and effect a policy or policies of public liability and property damage insurance, executed by a financially stable insurance carrier(s) acceptable to EMSA and licensed or permitted to write insurance by the Oklahoma Insurance Commission, with coverage provisions insuring the public from any loss or damage that may arise to any person or property by reason of the operation of EMSA ambulances, and providing that amount of recovery shall be in limits of not less than the following sums:

**1.** Commercial general liability insurance, including but not limited to commercial owner and contractor protection, operational products, completed operations, property and personal injury, with limits of not less than One Million Dollars ($1,000,000.00) per occurrence; and Two Million Dollars ($2,000,000.00) aggregate. Coverage shall be on an occurrence basis.

**2.** Workers compensation coverage to statutory limits as required by law; employer's liability insurance of not less than One Million Dollars ($1,000,000.00) bodily injury by incident; and One Million Dollars ($1,000,000.00) bodily injury by disease for each employee.

**3.** Comprehensive automobile liability covering all vehicles used by the operations contractor, including owned, hired, and non-owned vehicles, with minimum limits of One Million Dollars ($1,000,000.00) combined single limit for bodily injury (including death), per occurrence, and property damage of not less than One Million Dollars ($1,000,000.00) per occurrence.

**4.** Automobile physical damage insurance for comprehensive and collision covering all vehicles provided by EMSA and used under this contract.

**B.** Any operations contractor shall keep in full force and effect a general comprehensive liability and professional liability policy or policies issued by a casualty insurance company, licensed or permitted to write insurance by the Oklahoma Insurance

Commission with coverage provisions insuring the public from any loss or damage that may arise to any person or property by reason of the actions of the operations contractor or any of its employees, and providing that the amount of recovery shall be in limits of not less than the following sums:

1. Professional medical liability insurance including errors and omissions with minimum limits of One Million Dollars ($1,000,000.00) per occurrence and Two Million Dollars ($2,000,000.00) annual aggregate.
2. "Umbrella" coverage in the amount of at least Five Million Dollars ($5,000,000.00) shall be provided as additional coverage to all underlying policies.

**C.** Any operations contractor shall furnish to EMSA an original and duplicate certificate of insurance which shall indicate the types of insurance, the amount of insurance and the expiration dates of all policies carried by the ambulance service. Each certificate of insurance shall name all jurisdictions in the regulated service area as an additional named insured, and shall contain a statement by the insurer issuing the certificate that the policies of insurance listed thereon will not be canceled or materially altered by the said insurer absent 60 days written notice received by all jurisdictions.

**D.** Self insurance programs must meet and comply with all applicable laws and regulations; be reasonable and limited to an amount of potential fiscal liability which would, if realized, not impair the operations contractor's ability to perform under the contract, and, offer coverage to that required in Sections A. through C. above.

**E.** EMSA and any supplemental service providers who are entitled to the immunities and protections of the Oklahoma Governmental Tort Claims Act, Okla. Stat. Tit. 51, § 151 et seq. may insure as deemed appropriate by their governing bodies.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

## Section 108. Reserved.

## Section 108.1. Quality assurance fee.

EMSA shall pay a monthly medical quality assurance fee, as determined by the Medical Control Board and approved by the beneficiary member jurisdictions. The monthly fee shall be equal to one-twelfth of the annual MCB budget approved by the beneficiary jurisdictions. The fee may be recalculated every July using the same formula. Such fee shall be paid to the quality assurance fund of the Medical Control Board. The fee shall be paid during each calendar month within 30 days after the end of the month.

*(Ord. Nos. 17294, 18343, 18932, 19167; Ord. No. 24957, § 1, 11-16-2022)*

## Section 109. Specialized mobile intensive care certification.

Any hospital in the regulated service area, EMSA, and any operations contractor shall be eligible to apply to the Medical Control Board for certification to operate a specialized mobile intensive care unit, which unit shall be used solely for interhospital transport of patients requiring specialized en route medical monitoring and advanced life support which exceed the capabilities of the equipment and personnel on board a paramedic ambulance. Such certification shall be subject to review every two years. Failure by the holder of such certification to limit the vehicle to interhospital transports of the types of patients specified within the certification shall constitute grounds for revocation of the certification.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

## Section 110. Clinical scope of practice of ambulance services.

The ambulances responding to any location within the regulated service area shall employ a tiered system of both Advanced Life Support (ALS) and Basic Life Support (BLS) equipped ambulances, which will be staffed and dispatched by EMSA, any operations contractor, or any supplemental service provider in accordance with the standards as approved by the Medical Control Board.

*(Ord. Nos. 17294, 19167; Ord. No. 24713, § 1, 11-3-2021; Ord. No. 24957, § 1, 11-16-2022)*

## Section 111. Ambulance response time performance required.

**A.** EMSA, any operations contractor, or any supplemental service provider shall employ sufficient personnel, acquire sufficient equipment, and manage its resources as necessary to meet the following response time standards on all emergency calls and non-emergency calls originating within the regulated service area.

**1. Response time standards for the Eastern Division beneficiary member jurisdiction and Western Division beneficiary member jurisdiction.** On the effective date of this Code, subject to the exclusions set forth in subsection C. below, the following standards of response time reliability shall be applicable to all patient transports originating from within the Eastern Division beneficiary member jurisdiction and the combined Western Division beneficiary and non-beneficiary jurisdiction of the regulated service area:

| *Standard* | *Reliability Percent* |
|---|---|
| Priority 1 | 90 reliability or better |
| Priority 2 | 90 reliability or better |
| Priority 3 | 90 reliability or better |
| Priority 4 | 90 reliability or better |

**2. Response time standards for the non-beneficiary member jurisdictions.** On the effective date of this Code, subject to the exclusions set forth in subsection C. below the following standards of response time reliability shall be applicable to all patient transports originating within a non-beneficiary member jurisdiction in the Eastern Division:

| | |
|---|---|
| Priority 1 and 2 standard | 75% minimum during each month in each individual non-beneficiary member jurisdiction priority 1 and 2 transports combined, and a 90% minimum during each month for combined priority 1 and priority 2 transports within the combined non-beneficiary jurisdictions. |
| Priority 3 standard | 90% reliability or better during each month. |
| Priority 4 standard | 90% reliability or better during each month. |

**B.** Three sub-areas will be defined by EMSA in the area comprising the Eastern Division beneficiary jurisdiction and three sub-areas defined by EMSA in the area comprising the Western Division for compliance measurement for priority 1 transports and discrimination. EMSA, any operations contractor, or any supplemental service provider,

shall use best efforts to ensure response time equity for priority 1 transports among sub-areas, keeping response times in each sub-area within ten percent (10%) of the compliance required for Priority 1 transports in the entire beneficiary jurisdiction. Variations of ten (10) percentage points or more from the jurisdiction standards within the same sub-area for more than three consecutive months, or more than six (6) months during any twelve-month period, shall be considered chronic response time discrimination and shall give rise to the provisions of the Amended and Restated EMS Interlocal Cooperation Agreement and the Amended and Restated Trust Indenture which provide beneficiary member jurisdictions certain options to address such response time discrimination with EMSA.

**C. Response time exclusions.** EMSA shall employ such mechanisms for reserve production capacity, including the use of any operations contractor or any supplement service provider, to increase production should a temporary system overload persist. However, it is understood that from time to time unusual factors beyond EMSA's reasonable control may affect the achievement of the specified response time standards. These unusual factors are limited to unusually severe weather conditions or declared disasters.

*(Ord. Nos. 17294, 19167; Ord. No. 22973, § 2, 10-24-2013; Ord. No. 24957, § 1, 11-16-2022)*

## Section 112. Prohibition against refusal to transport.

It shall be a violation of this Code for any ambulance service within the regulated service area to fail to respond to a call or to transport or to render emergency medical patient assessment and treatment, as required by Oklahoma law, or to otherwise refuse or fail to provide any ambulance services originating within the regulated service area because of the patient's perceived, demonstrated or stated inability to pay for such services, or because of the location of the patient within the regulated service area or because of the unavailable status or the location of any ambulance unit at the time of the request.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

## Section 113. Emergency medical response agency certification.

Any person or agency providing emergency medical responder services within this jurisdiction shall be credentialed by the Medical Director as an emergency medical responder or an emergency medical response agency.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

## Section 114. Procedures for denial, revocation or suspension of a certification.

For any proposed denial, suspension or revocation of credentials issued to an EMS personnel, emergency medical response agency or ambulance service provider within the regulated service area, the following standards shall apply:

**1.** Written notice prior to any final action of the action (denial, suspension, or revocation) pending against the person or entity whose credentials may be denied, suspended, or revoked;

**2.** Written notice of any final action by the Medical Director which results in the denial, suspension or revocation of credentials issued by the Medical Director;

**3.** A right to an appeal of any adverse action by the Medical Director to the Medical Control Board, requested in writing within thirty (30) days from the date the final action was issued in writing;

**4.** The appeal to the Medical Control Board shall be a de novo hearing which shall include, a right to cross examine witnesses, and to present witnesses and evidence on the person's own benefit.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

**Section 115. Violations.**

**A.** It shall be unlawful and an offense for any person to commit any of the following acts:

**1.** To perform or permit anyone to perform duties as an ambulance operator, attendant (EMT, EMT intermediate, AEMT, or paramedic), EMD, or emergency medical responder without complying with the terms of this chapter, or for any EMT or paramedic to seek or accept medical direction by radio or remote communication device contact from anyone who is not an on-line medical control physician, the Medical Director or a member of the Medical Director's clinical staff, as defined herein;

**2.** To use, or cause to be used, an ambulance service other than EMSA, any operations contractor, or supplemental service provider except for those services described in Paragraph (a) of Section 16;

**3.** For any person, firm or organization to respond to emergency calls originating within the regulated service area, other than EMSA, any operations contractor, any supplemental service provider, or any EMRA;

**4.** For any person, firm or organization to provide special events standby ambulance service within the regulated service area, other than EMSA, any operations contractor, any supplemental service provider;

**5.** For any person, firm or organization to respond to non-emergency transport calls originating within the regulated service area, other than EMSA, any operations contractor, any supplemental service provider;

**6.** To knowingly give false information to induce the dispatch of an ambulance, or emergency medical response agency apparatus or vehicle.

**B.** It shall not be a violation of this Code if the vehicle or ambulance is:

**1.** A privately owned vehicle not used in the business of transporting patients who are sick, injured, wounded, incapacitated or helpless;

**2.** A vehicle rendering services as an ambulance in the event of a major catastrophe or emergency when credentialed ambulances based in the locality of the catastrophe or emergency are incapacitated or insufficient in number to render the services needed;

**3.** An ambulance owned or operated by, or under contract with, the Federal or State government;

**4.** An ambulance transporting a patient to a location within the regulated service area, which transport originated from a point outside the regulated service area;

**5.** An ambulance responding to a call pursuant to a mutual aid agreement with EMSA;

**6.** A vehicle engaged in a non-emergency transport call to transport a patient from a hospital, nursing home or freestanding dialysis center (i.e., a dialysis center not located on hospital grounds) which is located within the regulated service area to any jurisdiction outside the regulated service area (the "receiving jurisdiction"), if the receiving jurisdiction allows EMSA to lawfully engage in non-emergency transport calls to transport patients from hospitals, nursing homes, and freestanding dialysis centers located within that receiving jurisdiction to destinations within the regulated service area;

**7.** A vehicle engaged in a non-emergency transport call to transport a patient from a hospital, nursing home, or freestanding dialysis center located within the regulated service area to any unincorporated area;

**8.** A vehicle engaged in a non-emergency transport call to transport a patient from a hospital, nursing home, or freestanding dialysis center located in either the Eastern or Western Division of the regulated service area, to a destination in the other division of the regulated service area;

**9.** A vehicle engaged in the interstate transport of a patient.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

## Section 116. Penalties.

**(a)** Any person convicted of violating any of the provisions of this Code shall be punished by fine and costs not to exceed the sum of One Thousand Two Hundred Dollars ($1,200.00) excluding costs and/or imprisonment for a period of not more than six (6) months.

**(b)** Each day that any violation of the provisions of this Code is committed or permitted to continue shall constitute a separate offense.

*(Ord. Nos. 17294, 19167; Ord. No. 24957, § 1, 11-16-2022)*

## CHAPTER 2. MEDICAL SERVICE PROGRAM

Section 200. Definitions.
Section 201. Medical service program and fee.
Section 202. Nonparticipation election.
Section 203. Collection of service charges.
Section 204. Adjustment of charges, appeal.
Section 205. Penalty.

### Section 200. Definitions.

For the purpose of this chapter, the following words and phrases shall have meanings respectively ascribed to them by this section:

**Director** shall mean the Chief Executive Officer of EMSA.

**Election Period** shall mean the month of August, 2014, and in all subsequent years the month of August immediately preceding the beginning of the next Program Year.

**Landlord** shall mean any person, company, corporation, or other entity which owns or manages residential living units and leases the residential living units to Tenants and is responsible for payment of the utility bills for the living units.

**Medical Service Program** shall mean the products, expertise, equipment, and costs associated with providing medical treatment, emergency response and emergency medical services to a patient, including but not limited to EMSA's "EMSACare Program," billed monthly on the water customer's utility bill.

**Multifamily Residential** shall mean two (2) or more residential living units and served by one (1) service connection.

**Program Year** shall be from September 1 through August 31 of the next calendar year. Each Program Year shall be designated by the calendar year in which the program year expires (e.g., September 1, 2014, through August 31, 2015, shall be designated Program Year 2015). Notwithstanding such September 1, through August 31 period, Program Year 2014 for all Program participant single-family residential and multifamily residential water customers shall be extended through the months of July and August, 2014 at the Program Year 2014 charge of Three and $^{64}/_{100}$ Dollars ($3.64) per month per occupied residential living unit.

**Single-Family Residential** shall mean one (1) residential living unit served by one (1) or more water service connections.

**Tenant** shall mean everyone not included as a water customer or a landlord.

**EMSACare Program** shall mean the EMSA-sponsored City of Tulsa EMSACare Program approved by the EMSA board of trustees, as it currently exists and as it may be subsequently amended by the EMSA board of trustees, provided that EMSA has given notice of any such subsequent amendments to the EMSACare Program, or its Program "Agreement," to all Water Customers and Landlords at least thirty (30) days in advance of the Election Period so that such Water Customers and Landlords can make an informed decision for the next Program Year whether or not, in the manner set forth in this chapter,

to affirmatively decline participation in the Medical Service Program, and so that Water Customers who have previously declined participation in the Medical Service Program may affirmatively elect to participate in the Medical Service Program.

**Water Customer** shall include all individuals permanently residing together in a residential living unit at a specific location, which living unit has water service billed directly to one (1) of the individuals residing in the residential living unit.

*(Ord. Nos. 21517, 21599; Ord. No. 22477, § 1, 7-21-2011; Ord. No. 22724, § 1, 7-26-2012; Ord. No. 23115, § 1, 5-22-2014; Ord. No. 23133, § 1, 6-19-2014)*

### Section 201. Medical service program and fee.

**A.** Every single-family residential and multifamily residential water customer within the corporate limits of the City shall be included in the Medical Service Program, unless they affirmatively decline participation in the Program in the manner set forth in this chapter.

**B.** Single-family residential water customers participating in the Program for the Program Year 2015 and in future Program Years shall have included within their water utility bill a charge of Five and $^{45}/_{100}$ Dollars ($5.45) per month. Multifamily residential water customers and landlords participating in the Program for the Program Year 2015 and in future Program Years shall be billed Five and $^{45}/_{100}$ Dollars ($5.45) per month per occupied residential living unit. There is a rebuttable presumption that fifty percent (50%) of the total number of residential living units served solely by a single water connection are occupied. The number of presumed residential units shall be rounded down, but to not less than one (1).

**C.** Multifamily residential water customers and landlords shall provide to the Director, on or before July 31 of the year immediately prior to the beginning of a Program Year, the total number of residential living units owned or operated by the person or entity providing the report, which shall be used to determine the occupancy figure set out in Subsection B., above.

*(Ord. Nos. 21517, 21571, 21599; Ord. No. 23115, § 2, 5-22-2014; Ord. No. 23133, § 2, 6-19-2014)*

### Section 202. Nonparticipation election.

**A.** Any water customer or landlord who elects not to participate in the program for the next Program Year shall make a declaration of nonparticipation during the Election Period, or upon opening a water service account at a residential address. Such declaration may be on forms prescribed and approved by the Director and the Mayor, or may be by verbal request to City of Tulsa Customer Account Representatives, after the identity of the caller is conclusively established as the appropriate water customer, and the water customer affirmatively acknowledges any party receiving medical services from EMSA at that address will be responsible for the full costs associated with any medical services. A water customer's election of nonparticipation shall remain in effect for succeeding Program Years until the customer affirmatively elects to join the program. Any succeeding election must be made during the Election Period immediately preceding the next Program Year, or upon opening a water service account at a different residential address.

**B.** If a landlord or multifamily residential water customer elects for a property not to participate in the program, then prior to the start of the next program year or upon entering into an initial lease with a tenant, whichever is earlier, the landlord or multifamily residential water customer shall obtain from each tenant a written and signed acknowledgment stating that the tenant (1) understands that the property being leased by the tenant is not included in the Medical Service Program; (2) understands that he/she may affirmatively elect to personally participate in the Program by contacting the Director and enrolling in the Program; (3) understands failure to participate in the Program will subject the tenant or water customer to the full fee for the costs associated with their treatment; (4) states the basic cost for an emergency ambulance transport run for the Program Year; and (5) acknowledges that he/she has received the telephone number and mailing address of the Director for purposes of participating in the Program, if desired. The written and signed acknowledgment described herein shall be maintained in the landlord's records and available for inspection as provided herein.

**C.** Failure to obtain and maintain on file the written acknowledgment from each tenant shall be a separate violation of this section. In addition, every thirty (30) day period from the beginning of a lease until written acknowledgment is received or the landlord elects for a property to participate in the program shall constitute a separate offense for each tenant affected.

*(Ord. Nos. 21517, 21599, 21794; Ord. No. 22477, § 2, 7-21-2011)*

## Section 203. Collection of service charges.

**A.** The service charges herein established for the use of medical service program shall be billed to each water customer monthly, along with the bill for water and other City utility services and such penalties as are now or may hereafter be established for water service bills, and shall carry the same due date as now or may hereafter be established for water service bills.

**B.** In the event any person, firm or corporation shall tender as payment of water service, medical service program, sanitary sewer nuisance abatement fees, sanitary sewer service, collection of solid waste service and/or service charge for the use of the City's stormwater drainage system an amount insufficient to pay in full all of the charges so billed, credit shall be given first to the charges for deposit, second to the service charge for the use of the City's stormwater drainage system, third to the charges for collection of solid waste, fourth to the charge for sanitary sewer service, fifth to any sanitary sewer nuisance abatement fees, sixth to the charge for the medical service program, seventh to the charges for water service and lastly to fees and penalties.

**C.** In the event any utility account shall become delinquent, water service may be terminated by the City until all delinquent charges shall be paid in full. The provisions for collection of charges provided herein shall be in addition to any rights or remedies which the City may have under the laws of the state of Oklahoma.

**D.** Disbursement of funds by the City to EMSA shall be upon the basis agreed to and approved through the annual budget process, or by subsequent budget amendments approved by the City Council.

**E.** [Reserved.]

**F.** City shall retain the medical service program revenue received from water customers that exceeds the cost of the program and a reserve equal to ten percent (10%) of EMSA's annual budgeted disbursements for the eastern division. Such excess revenue shall be retained by City in a rate stabilization fund. The rate stabilization fund shall only be used for the provision of medical service program services and related City administrative costs and services. The rate stabilization fund is to provide more level costs to water customers over time.

*(Ord. Nos. 21517, 21599; Ord. No. 22596, § 1, 12-1-2011)*

### Section 204. Adjustment of charges, appeal.

Any person who considers the EMSA medical service charges applicable to his residential living unit to be inaccurate or erroneous may request review thereof by the Director. In addition, any landlord who encounters special circumstances that would justify modifying the number of occupied units determined in accordance with the provisions of Section 201, such as fire, Act of God or renovations, may request review thereof by the Director. The determination by the Director may be appealed to the EMSA Medical Board by written notice of appeal filed with the Director within ten (10) days of the Director's determination. The decision of the Board may be appealed to the City Council by such person or by the Director by written notice of appeal filed with the City Clerk within ten (10) days of decision by the Board.

*(Ord. Nos. 21517, 21599)*

### Section 205. Penalty.

Unless otherwise provided in this chapter, any person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction, shall be punished by a fine of not more than One Thousand One Hundred Dollars ($1,100.00), excluding costs, fees and assessments.

*(Ord. Nos. 21517, 21599)*

# TITLE 38 TREASURY DEPARTMENT (REPEALED)*

*__Note—__This title was repealed effective May 8, 1990. Remaining provisions appear in Title 6.

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# TITLE 39 TRUSTS*

**Chapter 1. Tulsa County Utility Services Authority**
**Chapter 2. The Tulsa Geriatric & Infirmary Authority**
**Chapter 3. Tulsa Metropolitan Utility Authority**
**Chapter 4. Tulsa Municipal Airport Trust**
**Chapter 5. Tulsa Parking Authority**
**Chapter 6. Tulsa Public Market Authority**
**Chapter 7. Tulsa Police and Fire Academy Trust**
**Chapter 8. Tulsa Airports Improvement Trust**
**Chapter 9. Metropolitan Tulsa Transit Authority**
**Chapter 10. Tulsa Authority for Economic Opportunity**
**Chapter 11. The Regional Metropolitan Utility Authority**
**Chapter 12. Tulsa Performing Arts Center Trust**
**Chapter 13. River Parks Authority**
**Chapter 14. Emergency Medical Services Authority**
**Chapter 15. Tulsa Authority for Recovery of Energy**
**Chapter 16. Tulsa Public Facilities Authority**
**Chapter 17. University Center at Tulsa Authority**
**Chapter 18. Long-term Care Management Authority of Tulsa**
**Chapter 19. Northeast Oklahoma Solid Waste Management Authority**
**Chapter 20. Vietnam Veterans Memorial Trust**
**Chapter 21. Tulsa County Vision Authority**
**Chapter 22. Tulsa Stadium Trust**

*__Note—__Copies of the trust indentures, amendments, agreements, contracts, leases, resolutions and exhibits mentioned and/or incorporated by reference in the ordinances in this title are on file in the office of the City Clerk.

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## CHAPTER 1. TULSA COUNTY UTILITY SERVICES AUTHORITY

Section 100. Beneficial interest of the Tulsa County Utility Services Authority Trust accepted.
Section 101. Mayor authorized to execute necessary instruments.
Appendix I Declaration of Trust of The Tulsa County Utility Services Authority.
Appendix II Amendment to Declaration of Trust of the Tulsa County Utility Services Authority.

### Section 100. Beneficial interest of the Tulsa County Utility Services Authority Trust accepted.

The beneficial interest in and to the express trust known as "The Tulsa County Utility Services Authority," dated the 18th day of August, 1959, is hereby accepted by the governing body of the City of Tulsa acting by and through the Board of Commissioners thereof for and on behalf of said City.

*(Ord. No. 9218)*

### Section 101. Mayor authorized to execute necessary instruments.

The Mayor of the City of Tulsa and all other officers of said City are hereby authorized and directed to sign, execute and deliver any, every and all instruments of writing necessary or convenient to effect and accomplish the trust purposes, and are hereby authorized to receive and accept for the use and benefit of the City all of said benefits, monies or emoluments that may be received or flow from said trust, all as provided in the Declaration of Trust dated the 18th day of August, 1959, and as provided in the delineation of Declaration of Trust dated June 21, 1961.

*(Ord. No. 9218)*

# APPENDIX I DECLARATION OF TRUST OF THE TULSA COUNTY UTILITY SERVICES AUTHORITY (SECTIONS 100 AND 101)

*(Ord. No. 9218)*

KNOW ALL MEN BY THESE PRESENTS:

## I.
## CREATION OF TRUST

The undersigned, as Trustors and Trustees, do hereby create, establish and constitute, under the laws of the State of Oklahoma (generally but not exclusively pursuant to Title 60, sections 176 to 180, inclusive, Oklahoma Statutes, 1951, as amended, and to the Oklahoma Trust Act) a Trust for the public purposes and functions hereinafter set forth.

## II.
## NAME

The name of this Trust shall be, and the Trustees in their representative fiduciary capacity shall be designated as

"THE TULSA COUNTY UTILITY SERVICES AUTHORITY"

Under that name they shall, so far as practicable, conduct all business, and execute all instruments in writing, and otherwise perform their duties and functions in the execution of this Trust.

## III.
## PURPOSES

The purposes of this Trust are:

**(a)** To institute, furnish, provide and supply to the inhabitants, owners and occupants of property, and to industrial, commercial and mercantile establishments and enterprises in the presently unincorporated areas of Tulsa County any or all improvements, services and physical facilities for the safeguarding of public health, the protection of persons and property, and the conservation and implementation of public welfare, of such kinds and characters that the same may be an authorized or proper function of the Beneficiary of this Trust, or by law made subject to the supervision of its governing body or of its officers, which said improvements, services and physical facilities may be supplementary or wholly extraneous to any such improvement, service or physical facility that presently is, or hereafter may be furnished, provided or supplied by or under the supervision of the Beneficiary.

**(b)** For the furtherance of the greater convenience and welfare of the Beneficiary County of Tulsa, and any municipalities which are components of the Beneficiary, and the citizens of any thereof, to provide and/or to aid in the providing and/or to participate in the providing to the Federal Government, the State of Oklahoma, Tulsa County, any Beneficiary Municipality, the School District in which the latter are located and/or to any agency or instrumentality of either or any of them, or to any one or more of them, facilities and services of any and all kinds convenient or

necessary to the functioning thereof; and in implementation or furtherance of the foregoing to enter into any contractual arrangements in relation thereto, including (but not restricted to) purchase contracts, sale contracts, construction contracts, maintenance contracts, operation contracts, service contracts, leases, lease-purchase agreements, options, conveyances, and agreements to enter into or make any or either of them; and in additional implementation or furtherance of the foregoing to make a gift or gifts of said facilities and/or services to any one or more of the governmental entities aforesaid or to contract so to do;

**(c)** To acquire by lease, purchase, production, reduction to possession, or otherwise, and to construct, equip, maintain, hold, store, operate and administer any property (real, personal and/or mixed), rights, privileges, immunities, franchises, benefits and any other things of value, designed or needful for utilization in instituting, furnishing, providing or supplying any of the aforementioned improvements, services and facilities, or all of them; to comply with the terms and conditions of any leases or other contracts made in connection with the acquisition, equipping, maintenance and/or disposal of any of said property; and to relinquish, dispose of, rent or otherwise alienate, or otherwise make any provision for, or take any action relating to any or all of the assets of the Trust, including (but not restricted to) the marketing or otherwise disposing of any property of the Trust, which, by the Trustees, shall be deemed to be not required or in excess of their needs in executing the purposes set forth in paragraph (a) of this Section.

**(d)** To provide funds for the costs of financing, acquiring, constructing, equipping, maintaining, holding, storing, operating, repairing and administering any or all of the said facilities, or any or all of said services; and in so doing to incur indebtedness, either unsecured or secured by all or part of the Trust assets and/or its revenues, and also to fix, demand, enforce and collect charges, prices, rates and fees for the use of, participation in and/or delivery or furnishing or providing of any or all of said improvements, services, facilities and property, or of any product thereof; and, in implementation of the foregoing, to refuse, deny and debar the use of, participation in and/or delivery, furnishing or providing of any or all of said improvements, services, facilities and property, or any product thereof, to any person failing to pay the Trust any charge, price, rate or fee due it as aforesaid for any improvement, service, facility or property whatsoever delivered, furnished or provided by the Trust, or for breach or violation of any rule or regulation theretofore established by the Trustees for the administering thereof; Provided, that none of the foregoing shall authorize the creation of any lien upon real estate to secure, enforce or collect any charge, price, rate or fee, except by express contract with the owner thereof.

**(e)** To expend any funds coming into the hands of the Trustees, as revenue or otherwise, in the payment of costs and expenses of administering the Trust (which shall include the payment of any indebtedness incurred for Trust purposes, and in the payment of any other debt or obligation properly chargeable against the Trust Estate), and to distribute any residue or remainder of such funds to the Beneficiary for any authorized or proper public function or purpose, and not otherwise.

**(f)** Whenever the same shall be or become material, the purposes set forth in paragraphs (a) and (b) of this Section shall be deemed the primary objectives of this Trust and the provisions of paragraphs (c), (d) and (e) shall be deemed and construed in implementation thereof and collateral thereto.

## IV.
## DURATION

This Trust shall have duration for the term of duration of any Beneficiary as hereinafter described, and until such time as its purposes shall have been fully executed and fulfilled, or until it shall be terminated as hereinafter provided.

## V.
## TRUST ESTATE

The Trust Estate shall consist of:

**(a)** The funds presently in the hands of the Trustees, donated for the trust purposes by the Trustors, and (b) all money, property (real, personal and/or mixed) rights, choses in action, contracts, leases, privileges, franchises, benefits and all other things of value (whether or not above described) coming into the hands, or under the control of the Trustees pursuant to the provisions of this instrument or by virtue of their trusteeship hereunder.

## VI.
## THE TRUSTEES

**(a)** The undersigned Trustees hereby do contract, agree and covenant between themselves, with and to the State of Oklahoma, and with and to the Beneficiary hereunder, as by law now in force and effect, that they will execute the Trust herein declared, created and constituted, as Trustees for the Beneficiary as hereinafter specified, and that they do and will receive, hold and administer the Trust Estate hereinabove described in trust solely for the use and benefit of the said Beneficiary in the manner provided in this instrument or, in the absence of applicable provisions herein, then in the manner now provided by presently existing law.

**(b)** To provide uninterrupted continuity of Trusteeship hereunder:

**(1)** As soon as practicable after this Trust Shall become effective, the Trustees, by Resolution, shall designate three persons, each of whom shall succeed a specified Trustee in case of the resignation, decease or incapacity to act of such specified Trustee; and in the event that any such designated person shall become a Trustee, or prior to becoming a Trustee shall refuse to accept or remain as such designee or shall refuse to qualify or shall decease or shall otherwise become ineligible to qualify, the Trustees, by Resolution shall designate a person in lieu thereof to be such successor to such specified Trustee;

**(2)** Each Resolution adopted under the foregoing shall be filed for record in the office of the County Clerk of Tulsa County; and said Resolution shall ipso facto entitle the persons designated, respectively, to qualify to fill any vacancy in the Trusteeship as specified in said Resolution.

**(c)** Each Trustee under this instrument shall continue as such without interruption; Provided that, in the event any Trustee or Trustees be temporarily replaced under the provision of (e) of this Section, each Trustee so temporarily replaced shall continue with full power and authority until the respective Temporary Trustee so replacing him shall have qualified as provided in (f) of this Section.

**(d)** The determination of the fact of a vacancy in any Trusteeship, or in the panel of successor Trustees, shall be vested exclusively in the Board of Trustees and its determination of such fact shall be conclusive; and its authority hereunder shall not be suspended by reason of any Temporary Trustees appointed under (e) of this Section.

**(e)** The Trustees may contract, in connection with the incurring of any funded debt secured by the Trust estate and/or its revenues, or any part of either or both, that a Temporary Trustee or Temporary Trustees may be appointed to act in place and instead of a permanent Trustee or Trustees in respect of any part or all of the Trust Estate, in such manner that such Temporary Trustee or Trustees may have controlling authority over such property as may be covered by such contract in the event of a default in the payment of principal or interest of such debt, or any default under any instrument securing or pursuant to which such debt be incurred. Any such contract, if made, shall provide for the method of appointment of each such Temporary Trustee and for the method of designating the permanent Trustee to be so temporarily supplanted. Each such Temporary Trustee who shall be appointed under the authority herein granted shall supplant, in all respects, the permanent Trustee so designated to the extent provided in such contract, and during the term of such Temporary Trustee the permanent Trustee so supplanted shall be wholly without authority, duty or liability of any kind under the terms of this instrument insofar as the same relates to property covered by such contract. All Temporary Trustees shall cease to have any power or authority upon the termination of all defaults by which their appointment would have been authorized, and the permanent Trustees temporarily supplanted shall be automatically reinstated.

**(f)** All Trustees, and all Temporary Trustees appointed hereunder shall qualify by written acceptance of all of the terms of this instrument duly acknowledged and filed in the same manner as this instrument is acknowledged and filed. All Trustees hereunder, permanent and Temporary, before assuming the duties and powers of their offices, also shall subscribe and file such oaths as shall be required by law of public officers of the State of Oklahoma.

**(g)** Upon each change of personnel of the Trustees hereunder, the Chairman; Board of Trustees shall cause to be filed in the office of the County Clerk of Tulsa County, Oklahoma, a certificate of the entire personnel of the Board of Trustees of the Trust, specifying the respective designation of each Trustee.

**(h)** The acceptance of the office of Trustee of this Trust shall not constitute the Trustees hereunder, Temporary or permanent or both, to be in partnership or association. Each shall be an individual and wholly independent Trustee only.

**(i)** Notwithstanding any other provision of this instrument which shall appear to provide otherwise, no Trustee or Trustees shall have any power or authority to bind or obligate any other Trustee, or the beneficiary, in his or its individual capacity.

All persons, firms, associations, trusteeships, corporations, municipalities, governments and sovereignties contracting with any Trustee or Trustees, Temporary or permanent or both, shall take notice that all expense and obligations, and all debts, damage, judgments, decrees or liabilities incurred by any Trustee or Trustees, Temporary or permanent or both, shall take notice that all expense and obligations, and all debts, damage, judgments, decrees or liabilities incurred by any Trustee or Trustees, Temporary, permanent or both, and any of the foregoing incurred by any agent, servant or employee of

the aforesaid Trustees, in the execution of the purposes of this Trust, whether arising from contract or tort, shall be solely chargeable to and payable out of the Trust Estate. In no event shall any Trustee, Temporary or permanent, or any beneficiary of this Trust, in any manner be individually liable for any damage or injury to person or property, or from breach of contract or obligation, caused by, arising from, incident to, or growing out of the execution of this Trust, nor shall they, or any of them, be liable for the acts or omissions of each other, or of any agent, servant or employee of the aforesaid Trustee, or of another such Trustee; provided, however, that the foregoing shall not apply to any wilful or grossly negligent breach of trust of any said Trustee.

## VII.
## POWERS AND DUTIES OF TRUSTEES

The Trustees, in the manner hereinafter set forth, shall do, or cause to be done, in lawful manner, all things which are incidental, necessary, proper or convenient to carry fully into effect the purposes enumerated in Section III of this instrument, the general authority hereby given being intended to make fully effective the power of the Trustees under this instrument; and said Trustees are specifically authorized (but their general powers not limited thereby, notwithstanding any specific enumeration or description), in effecting such purposes:

**(a)** To enter in and conduct and execute, apply for, purchase, or otherwise acquire franchises, property (real or personal), contracts, leases, rights, privileges, benefits, choses in action, or other things of value, and to pay for the same, in cash, with bonds or evidence of indebtedness, or otherwise;

**(b)** To acquire, own, hold, manage, and in any manner to convey, assign, dispose of, liquidate, compromise, or realize upon any contract, lease, right, privilege, benefit, chose in action, franchise, property (real or personal), or other thing of value, and to exercise all of the powers necessary or convenient in respect to same;

**(c)** To guarantee, acquire, purchase, hold, sell, assign, transfer, encumber, dispose of, and deal in the stocks, bonds, debentures, shares or evidences of interest or indebtedness of any corporation, association, municipality, government, sovereignty, trusteeship, firm or individual, to enter into and perform any lawful contract in relation thereto, and to exercise all of the rights, powers and privileges in relation thereto to the same extent as a natural person might or could do;

**(d)** To enter into, make and perform contracts of every lawful kind, including, but not restricted to, management contracts, with any person, firm, association, corporation, trusteeship, municipality, government or sovereignty; and without limit as to amount, to draw, make, accept, indorse, assume, guarantee, discount, execute and issue promissory notes, drafts, bills of exchange, acceptance, warrants, bonds, debentures and other negotiable and transferable, or non-negotiable or non-transferable instruments, obligations and evidences of secured or unsecured indebtedness, if secured by mortgage, deeds of trust, or otherwise, to create a charge upon any or all property of the Trust, and to pledge any or all income of the Trust, in the same manner and to the same extent as a natural person might or could do;

**(e)** To collect and receive any property, money, rents, or income of any sort, and to distribute the same, or any portion thereof, for the furtherance of the purposes enumerated in Section III of this instrument.

**(f)** The Trustees shall hold the legal title to all property at any time belonging to the Truste (sic) in the name of the Trust, and shall have and exercise exclusive management and control of the same, for the use and benefit of the Beneficiary, in the execution of this Trust, and the right of said Trustees to manage, control and administer the said Trust, its properties, assets, facilities and services, shall be absolute and unconditional, free from the direction, control and management of the beneficiary or any person or persons whatsoever, but they shall file with the governing board of the beneficiary, annually, a full report and statement of their annual operations.

**(g)** The Trustees may employ such agents, servants and employees as they deem necessary, proper or convenient, and shall prescribe their duties and fix their compensation.

**(h)** The Trustees may contract for the furnishing of any services or the performance of any duties that they deem necessary, proper or convenient and pay for the same as they see fit to provide in such contract.

**(i)** The Trustees, by Resolution, may divide the duties of the Trustees hereunder, delegating all or any part of such duties to one or another of the Trustees as much as possible; but where specific duties are not delegated, a majority of the Trustees must act for the Trust.

**(j)** The Trustees may be compensated in the manner now provided by the Oklahoma Trust Act for services actually rendered and responsibilities assumed; but notwithstanding any other provision of this instrument, neither the Trustees, nor any of them, shall be eligible to be compensated by the Trust solely by reason of his occupancy of a Trusteeship hereunder.

**(k)** The Trustees shall, in the name of the Trust as above set forth, or in their respective or joint names as Trustees, bring any suit or action which may in their judgment, be necessary, proper, and convenient to protect the interests of the Trust, or to enforce any claim, demand or contract for the Trust, or to enforce any claim, demand or contract for the benefit thereof; and they likewise shall defend in their discretion, any suit against the Trust, or the Trustees or employees, agents, or servants thereof. And the Trustees jointly or respectively are expressly authorized to bring and prosecute or defend such suits, actions or proceedings, in their discretion, or to compromise and settle any suit, action, claim or proceeding in which the Trust is interested, and to discharge the same out of the Trust property and assets; and they likewise are specifically authorized to pay or transfer out of the Trust property or assets all sums of money or property under their joint or respective control necessary to discharge any judgment or decree rendered against them, or the Trust, together with all court or other costs, including counsel and attorney's fees, and also to pay out of the Trust property and assets such sums of money, or to transfer appropriate property thereof, for the purpose of settling, compromising, or adjusting any claim or controversy, together with all costs and expenses connected therewith, and all such expenditures and transfers shall be treated as expenses of executing this Trust.

**(l)** No bond shall be required of the Trustees, or any of them, unless they, by appropriate Resolution, so provide.

**(m)** At their first meeting the Trustees shall designate the place and times for regular meetings, which place and times shall not thereafter be changed unless designated at a meeting where all acting trustees shall be present. No notice shall be required of the holding of regular meetings. Special meetings may be held upon call as shall be determined by the Trustees.

**(n)** All proceedings of the Board of Trustees and all Resolutions adopted by them shall be kept in a record book at the principal office of the Trust and shall be subject to inspection, during customary hours as public records of the State of Oklahoma.

**(o)** The Trustees, by written instrument filed for record in the office of the County Clerk of Tulsa County, shall designate an address in Tulsa County, Oklahoma, as the principal office of the Trust. Any change in the address of the Trust shall be recorded in the same manner. All official records of the Trust shall be kept at its principal office.

## VIII.
## BENEFICIARY

**(a)** The term "Beneficiary" as used in this instrument shall denote:

**(1)** Except as provided in the three next ensuing provisions, the body politic and corporate named, by the Constitution of the State of Oklahoma, "Tulsa County".

**(2)** In the event that any like body politic and corporate hereafter shall succeed said County in the governmental authority, in respect to the subjects of the Trust Purposes, in the territory in which the Trust then shall be furnishing and providing facilities and services, then that successor to Tulsa County shall succeed said County as the Beneficiary.

**(3)** In the event that any part of the territory in which the Trust then shall be furnishing and providing any facilities or services hereafter shall become within the boundaries of any governmental entity of the State of Oklahoma, and such facilities or services, or the greatest portion thereof, shall become more properly (in the pattern of distribution of governmental functions) a function, authorized or proper, of such governmental entity, then that entity shall succeed the heretofore described entities as the Beneficiary hereunder upon acceptance of beneficial interest as provided by law.

**(4)** In the event (a) that any municipality or municipalities in Tulsa County shall desire that there be instituted by the Trust the providing or furnishing of facilities or services of a nature included in the purposes set forth in Section II of this instrument, within the municipal limites (sic) thereof, or (b) in the event that the territory or any parts thereof, in which the Trust shall be providing or furnishing facilities or services, hereafter shall become within the jurisdictional boundaries of more than one of the above described governmental entities and one or more (or a part thereof) of said facilities or services shall be an authorized or proper function of one such entity, and one or more (or a part thereof) shall be an authorized or proper function of another such entity, then all such entities collectively shall become Beneficiary hereunder upon acceptance of beneficial interest as provided

by law, and their respective proportionate shares of the beneficial interest hereunder shall be in and to those facilities and services and the distributed revenues therefrom (or such part thereof) which shall be performing or supplementing an authorized or proper function of such entity respectively and in like respective proportions.

It is the intention of this Section that, since the providing and furnishing of the Trust facilities and services described in Section III (a) of this instrument are the primary objectives of this Trust, the Beneficiary hereunder shall be the governmental entity or entities whose authorized or proper functions are being performed or supplemented by the Trust and in proportion to the extent of such performance or supplementation. The determination of any state of fact to make effective the said intention hereby is vested exclusively in the then Trustees (subject to any legally required acceptance of beneficial interest by the governing authorities of any entity affected), and such determination of any said fact or facts whereby any entity shall succeed to any beneficial interest hereunder shall be reduced to writing and filed for record in the same manner as this instrument: Provided that, anything in the foregoing to the contrary notwithstanding, the Beneficiary under this instrument shall be one or more governmental entities having jurisdiction over the territory (or portion thereof) in which the Trust shall be furnishing or providing its facilities or services, and the Trustees are not vested hereby with any power to designate a Beneficiary, their authority hereunder being limited to the determination of the existence or non-existence of states of fact with relation to the provisions of this Section whereby designated governmental entities ipso facto may succeed to beneficial interest hereunder.

**(b)** The Beneficiary shall have no legal title, claim or right to the Trust Estate, or to any part thereof; neither shall the Beneficiary, as such, have any authority, power or right whatsoever to do or transact any business whatsoever for, or on behalf of, or binding upon the Trustees or any of them or upon the Trust Estate; neither shall the Beneficiary have the right to control or direct the actions of the Trustees or any of them in respect of the Trust Estate, or any part thereof (sic); nor shall the Beneficiary have any right to demand or require any partition or distribution of the Trust Estate, or any part thereof. The Beneficiary shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder, and at the termination of the Trust, as provided herein and then only, the Beneficiary shall receive the residue of the Trust Estate.

**(c)** Each distribution of money by the Trustees to the Beneficiary shall be paid to said Beneficiary for use by it for any authorized or proper function or purposes as directed by the governing body thereof, without restrictions or limitation by the Trustees.

**(d)** In the making of distribution of net operating income to the component entities of the Beneficiary under this instrument, the revenues and expenses from each kind of service or facility furnished or provided, and that portion of the Trust Estate used in connection therewith, shall be segregated by the Trustees. "Net operating income", from each kind of service or facility furnished or provided, is that money remaining of the gross income derived from the furnishing or providing of such service or facility after deducting therefrom (1) all charges, costs and expenses determined by the Trustees to be allocable to the furnishing or providing of such service or facility and (2)

all amounts determined by the Trustees to be a fair proportionate part of the total charges, costs and expenses of execution and performance of the Trust purposes as a whole. Net operating income from each kind of service or facility shall be distributed to the component Beneficiary entities the jurisdictional limits of which received such service or facility during the period next preceding such distributions; and distribution to each shall be in the direct proportion of the amounts received from within the jurisdictional limits of each distributee to the gross amount received by the Trust from said service or facility during said period.

**(e)** In the making of distributions of the net proceeds from the disposal of Trust assets to the component entities of the Beneficiary under this instrument, the service or facility in which said asset had been utilized shall be segregated, from the other services and facilities of the Trust, by the Trustees. "Net proceeds from the disposal of Trust assets" is that money remaining from the gross money proceeds of such disposal after deducting therefrom all charges, costs and expenses determined by the Trustees to be allocable to the disposal of said assets. Net proceeds from the disposal of Trust assets shall be made to the entities entitled thereto in the direct proportion of the amounts contributed by each, for acquisition of the installations of which said assets were a part, to the gross amounts so contributed by all distributees of said proceeds, or if no such contributions shall have been made, then in proportion of the value of the assets within the jurisdictional limits of each distributee to the entire of the value of the Trust estate as determined by the Trustees.

## IX.
## TERMINATION

**(a)** This Trust shall be irrevocable by the Trustors and shall terminate:

**(1)** When purposes set forth in Section III of this instrument shall have been fully executed and fulfilled; or

**(2)** In the event of the happening of any event or circumstance that would prevent said purposes from being executed and fulfilled AND all of the Trustees and the governing body of each Beneficiary, with the approval of the Governor of the State of Oklahoma, shall agree that such event or circumstance has taken place; provided, however, that all indebtedness of the Trust shall have been paid; or

**(3)** In the manner provided by Title 60, Section 180, Oklahoma Statutes, 1951; provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding funded indebtedness or obligations of the Trust unless all owners of such indebtedness or obligations, or one authorized by them so to do, shall have consented in writing to such termination.

**(b)** Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of the Trust, and after payment of all debts and obligations out of Trust money, to the extent thereof, shall distribute the residue of the Trust money to the Beneficiary hereunder in the same manner as distribution made under Section VIII (c) of this instrument. Upon final distribution as aforesaid, the powers, duties and authority of the Trustees hereunder shall cease.

## X.
## PARTIAL INEFFECTIVENESS

The invalidity or ineffectiveness for any reason of any one or more words, phrases, clauses, paragraphs, subsections or sections of this instrument shall not affect the

remaining portions hereof so long as such remaining portions shall constitute a rational instrument. Any such invalid or ineffective portion was inserted conditionally upon it being valid or effective only; and this instrument shall be construed as if such invalid or ineffective portion had not been inserted herein.

## XI.
## COVENANT

The provisions hereof shall be binding upon the undersigned, their heirs, executors, administrators and assigns.

IN WITNESS WHEREOF we have hereunto set our hands, executing this Declaration of Trust in several multiple originals all of which constitute one and the same instrument, on this 18th day of August, 1959.

/s/ Orlie D. Kendall

/s/ G.L. Hollabaugh;

/s/ S. Neal Johnson

Trustors and Trustees

[ACKNOWLEDGMENT]

## ACCEPTANCE

KNOW ALL MEN BY THESE PRESENTS:

That the Board of County Commissioners of Tulsa County, Oklahoma, hereby accepts the beneficial interest in the Trust created by the within and foregoing Declaration of Trust, for and on behalf of said County in all respects in accordance with the terms of said Declaration of Trust.

WITNESS our hands, affixed in regular meeting of said Board of County Commissioners of Tulsa County, Oklahoma, as the official action of said Board, this 18th day of August, 1959.

/s/ Frank O'Brien
Chairman

/s/ W.V. Caffey
Members

ATTEST:

/s/ Clyde Winterringer
County Clerk

(SEAL)

## APPENDIX II AMENDMENT TO DECLARATION OF TRUST OF THE TULSA COUNTY UTILITY SERVICES AUTHORITY.

WHEREAS, on August 18, 1959, there was created a public trust designated as "The Tulsa County Utility Services Authority", by Declaration of Trust filed for record in the office of the County Clerk of Tulsa County, Oklahoma, on said date and recorded in Book 2992 at pages 362-386; and

WHEREAS, said instrument made provision only for instituting the performance of trust purposes in unincorporated areas of Tulsa County, and for beneficial interest to be available to municipalities in said County only when the areas served by the Trust should come within their governmental jurisdiction; and

WHEREAS, the City of Tulsa desires that the said Authority construct and install certain sanitary sewage facilities outside the corporate limits of said City but to be operated as a part of the sanitary sewage facilities and to become the property of the said City when all indebtedness of the Authority, incurred in connection with said installation, has been paid; and

WHEREAS, it is deemed proper that municipalities in Tulsa County should be enabled to avail themselves of the benefits of the Authority and to receive beneficial interests thereunder to the extent of facilities or services furnished for such municipalities by the said trust; and

WHEREAS, at this time beneficial interest in said trust has been accepted only for the said Tulsa County and for the City of Tulsa;

NOW, THEREFORE, the undersigned Trustors and Trustees of The Tulsa County Utility Services Authority, by and with the consent and agreement of the governing body of Tulsa County and of the governing body of the City of Tulsa as evidenced by the acceptances of beneficial interest hereon endorsed, hereby contract, agree and covenant between themselves, and with and to each and every component of the Beneficiary of said trust, and with and to the State of Oklahoma, that they do declare that they will execute the trust created by the aforesaid Declaration of Trust as amended by this instrument as TRUSTEES for the Beneficiary and the components thereof, and that they do and will hold, receive and administer the Trust Estate IN TRUST solely for the use and benefit of said Beneficiary and the components thereof in the manner provided in said Declaration of Trust as amended hereby.

In pursuance of the foregoing, each and every of the provisions of the aforesaid Declaration of Trust of The Tulsa County Utility Services Authority, excepting only as hereinafter amended, hereby are re-contracted, re-covenanted and re-declared to be effective from and after endorsement hereon of acceptance of beneficial interest for each and every component of the Beneficiary by the governing body of each respectively. Said amendments are as follows:

### I.

Paragraph (a) of Article III of said Declaration of Trust hereby is amended to read as follows:

(a) To institute, furnish, provide and supply to the inhabitants, owners and occupants of property, and to industrial, commercial and mercantile establishments and enterprises,

located in Tulsa County, any or all improvements, services and physical facilities for the safeguarding of public health, the protection of persons and property, and the conservation and implementation of public welfare, of such kinds and characters that the same may be an authorized or proper function of the Beneficiary of this Trust, or any component thereof, or by law made subject to the supervision of its governing body or of its officers, which said improvements, services and physical facilities may be supplementary or wholly extraneous to any such improvement, service or physical facility that presently is, or hereafter may be furnished, provided or supplied by or under the supervision of the Beneficiary, or any component thereof.

**II.**

There hereby is added in Article VII a new paragraph to be designated as (d-2) as follows:

(d-2) To contract with any component of the Beneficiary, in relation to any facilities or services instituted by the Trustees for the present or future benefit of said component of the Beneficiary, for the latter to have and/or receive the exclusive benefits accrued or accruing from said facilities or services, upon the terms and conditions as shall be provided by such Contract, notwithstanding any other provision of the Declaration of Trust (as hereby amended) appearing to the contrary; and to do and perform all things necessary to comply with such Contract.

**III.**

Paragraph (a) (4) of Article VIII of said Declaration of Trust hereby is amended to read as follows:

(a) (4) In the event (a) that any municipality or municipalities in Tulsa County shall desire that there be instituted by the Trust the providing or furnishing of facilities or services of a nature included in the purposes set forth in Section II of this instrument, or (b) that the territory or any parts thereof, in which the Trust shall be providing or furnishing facilities or services, hereafter shall become within the jurisdictional boundaries of more than one of the above described governmental entities and one or more (or a part thereof) shall be an authorized or proper function of one such entity, and one or more (or a part thereof) shall be an authorized or proper function of another such entity, then each or all of such entities collectively shall become Beneficiary hereunder upon acceptance of beneficial interest as provided by law, and their respective proportionate shares of the beneficial interest hereunder shall be in and to those facilities and services and the distributed revenues therefrom (or such part thereof) which shall be performing or supplementing an authorized or proper function of such entity respectively and in like respective proportions: Provided, that any municipality aforesaid may limit the extent of its beneficial interest in the facilities or services provided by the Trust, and to distributions from the Trust, to a lesser interest than that to which it would be entitled under the foregoing, such limited acceptance to be evidenced by appropriate wording in the acceptance endorsement, but such limited acceptance of beneficial interest shall not prevent subsequent acceptance, from time to time, of a greater portion of the beneficial interest to which said municipality may be entitled under this paragraph; and Provided, further, that the Trustees may contract with any such municipality that the latter shall be entitled to sole beneficial interest in

any particular facility or facilities (and to all distributions therefrom) described in (a) of this Paragraph (a) (4), to the exclusion of any or all others which otherwise might become entitled to a proportionate beneficial interest therein.

**IV.**

Paragraph (d) of Article VIII of said Declaration of Trust hereby is amended to read as follows:

(d) In the making of distribution of net operating income to the component entities of the Beneficiary under this instrument, the revenues and expenses form each kind of service or facility furnished or provided, and that portion of the Trust Estate used in connection therewith, shall be segregated by the Trustees. "Net operating income", from each kind of service or facility furnished or provided, is that money remaining of the gross income derived from the furnished or providing of such service or facility after deducting therefrom (1) all charges, costs and expenses determined by the Trustees to be allocable to the furnishing or providing of such service or facility, and (2) all amounts determined by the Trustees to be a fair proportionate part of the total charges, costs and expenses of execution and performance of the Trust purposes as a whole. Net operating income from each kind of service or facility shall be distributed to the component Beneficiary which received such service or facility during the period next preceding such distributions; and distribution of net operating income from each facility or service furnished to more than one component of the Beneficiary shall be made to each in the direct proportion that the amounts so received in relation to each such component bears to the gross amount received by the Trust from said service or facility during said period.

IN WITNESS WHEREOF, we have hereunto set our hands this 19th day of July, 1961.

/s/ S. Neal Johnson
/s/ G.L. Hollabaugh
/s/ Orlie D. Kendall
Trustors and Trustees

[ACKNOWLEDGMENT]

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENTS:

The Board of County Commissioners of Tulsa County, Oklahoma, the governing body of said County, hereby agrees to the foregoing Amendment to the Declaration of Trust of The Tulsa County Utility Services Authority, dated August 18, 1959, and hereby accepts beneficial interest in the trust created by the said Declaration of Trust, as amended by the foregoing, for and on behalf of said County, in all respects in accordance with the terms of said Declaration of Trust as so amended.

DATED this 18th day of September, 1961.

/s/ W.V. Caffey
W.V. Caffey, Chairman
/s/ Frank O'Brien
Member
/s/ Robt. L. Kinkaid
Member

Attest:

/s/ Clyde Winterringer
County Clerk

(COUNTY SEAL)

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENTS:

The Mayor and Board of City Commissioners of the City of Tulsa, Tulsa County, Oklahoma, a municipal corporation, the governing body of said City, hereby agrees to the foregoing Amendment to the Declaration of Trust of The Tulsa County Utility Services Authority, dated August 19, 1959, and hereby accepts beneficial interest in the trust created by the said Declaration of Trust, as amended by the foregoing, for and on behalf of said City, in all respects in accordance with the terms of said Declaration of Trust as so amended, but solely to the extent of beneficial interest in and to the sanitary sewage facilities (and distributions therefrom) particularly described in the Agreement dated the 30th day of June, 1961, between the Trustees of The Tulsa County Utility Services Authority and the City of Tulsa, relating to said facilities in the community known as the "Turley District"; it being expressly stipulated that the sole and exclusive beneficial interest in the foregoing shall be in the City of Tulsa as is provided by said Agreement.

DATED this 28th day of July, 1961.

/s/ James L. Maxwell
Mayor

/s/ Fay Young
Member

/s/ Guy Hall, Jr.
Member

/s/ Bennie J. Garren
Member

(CITY SEAL)
ATTEST:

/s/ William F. Lambert
City Auditor

/s/ Charles E. Norman
City Attorney

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## CHAPTER 2. THE TULSA GERIATRIC & INFIRMARY AUTHORITY

Section 200. Beneficial interest of the Tulsa Geriatric & Infirmary Authority Trust accepted.
Section 201. Mayor authorized to execute Declaration of Trust.
Appendix I Declaration of Trust of the Tulsa Geriatric & Infirmary Authority.

### Section 200. Beneficial interest of the Tulsa Geriatric & Infirmary Authority Trust accepted.

The Mayor and Board of Commissioners of the City of Tulsa, Oklahoma, being the governing body of said municipality, hereby accept the beneficial interest in a certain express trust dated March 19, 1956, designated as The Tulsa Geriatric & Infirmary Authority.

*(Ord. No. 7743)*

### Section 201. Mayor authorized to execute Declaration of Trust.

The Mayor hereby is authorized and directed to endorse upon the Declaration of Trust of The Tulsa Geriatric & Infirmary Authority the aforesaid acceptance of the beneficial interest in said trust; and he also is authorized and directed to sign said Declaration of Trust as ex officio Chairman of Trustees thereof.

*(Ord. No. 7743)*

## APPENDIX I DECLARATION OF TRUST OF THE TULSA GERIATRIC & INFIRMARY AUTHORITY (SECTIONS 200 AND 201)

*(Ord. No. 7743)*

KNOW ALL MEN BY THESE PRESENTS:

### I.
### CREATION OF TRUST

That the undersigned, as Trustors, do hereby irrevocably create, establish and constitute, under the laws of the State of Oklahoma, (generally but not exclusively pursuant to Title 60, sections 176 to 180, inclusive, Oklahoma Statutes, 1951, as amended, and to the Oklahoma Trust Act) a Trust for the public purposes and functions hereinafter set forth.

### II.
### NAME

The name of this Trust shall be, and the Trustees in their representative fiduciary capacity shall be designated as THE TULSA GERIATRIC & INFIRMARY AUTHORITY (hereinafter called "The Authority"). Under that name they shall, so far as practicable, conduct all business, and execute all instruments in writing, and otherwise perform their duties and functions in the execution of this Trust.

### III.
### PURPOSES

The purposes for which the Authority is created are:

**(a)** To institute, furnish, provide and supply for the City of Tulsa, Oklahoma, physical facilities for geriatric care and treatment by persons lawfully qualified to provide and administer such care and treatment;

**(b)** To institute, furnish, provide and supply for the City of Tulsa, Oklahoma, infirmary facilities and all proximate incidents thereto, in connection with (but not restricted to) geriatrics, for the furtherance and conservation of public health and for the conservation and implementation of public welfare; and to perform such corporate municipal obligations and functions of the said City of Tulsa, as an instrumentality thereof, as shall be in furtherance of the purposes set forth in this paragraph and the preceding paragraph (a);

**(c)** To fix, demand, collect and expend rents, rates, fees and charges in consideration of any of the foregoing; and to establish and enforce rules, regulations and practices in relation to such services, utilization of physical facilities and the Trust Estate, which rules, regulations and practices may provide for the discontinuance of or debarring from such services or physical facility utilization by reason of violation of any requirement established by the Trustees or for non-payment of any sum payable to the Authority for any cause whatsoever;

**(d)** To acquire by lease, purchase, production, reduction to possession, or otherwise, and to construct, equip, maintain, hold, store, operate and administer any property (real, personal and/or mixed), rights, privileges, immunities, franchises, benefits

and any other things of value, designed, adaptable to or needful for utilization in instituting, extending, enlarging, furnishing, improving, providing or supplying any of the aforementioned services and physical facilities, or any of them; to comply with the terms and conditions of any leases or other contracts made in connection with the acquiring, equipping, maintaining, regulating and/or disposing of any of the Trust Estate; and to relinquish, dispose of, rent or otherwise alienate, or otherwise make any provisions for, or take any action relating to any of the Trust Estate, including (without limitation by specification) the marketing or otherwise disposing of any of the Trust Estate which shall be deemed, by the Trustees, to be not required or in excess of the needs for executing the purposes set forth in paragraphs (a) and (b) of this Section.

**(e)** To provide funds for the cost of financing the creation, acquisition, institution, development, operation, maintenance, regulation, administration, conservation and protection of the Trust Estate and the aforesaid services and facilities, or any of them; and in so doing (without limitation by specification) to incur indebtedness, either unsecured or secured by all or part of the Trust Estate and/or all or part of the revenues of the Authority.

**(f)** To expend any funds coming into the hands of the Trustees as revenue or otherwise, in the enlargement, maintenance and operation of the Trust Estate and in payment of the costs and expenses of executing the purposes of the Authority, including (without limitation by specification) the payment of all indebtedness and obligations incurred for trust purposes or properly chargeable against the Trust Estate; and to distribute any residue or remainder of the said funds or any other of the Trust Estate to the Beneficiary as set forth in Section VIII of this instrument.

**(g)** Whenever the same shall be or become material, the purposes set forth in paragraphs (a) and (b) of this Section shall be deemed the primary objectives of the Authority, and the provisions of the paragraphs thereafter shall be deemed in implementation of and collateral to said primary objectives.

## IV.
## DURATION

This Authority shall have duration for the term of duration of the Beneficiary as hereinafter described, and until such time as its purposes shall have been fully executed and fulfilled, or until it shall be terminated as hereinafter provided.

## V.
## TRUST ESTATE

The Trust Estate shall consist of the funds presently in the hands of the Trustees, donated for the trust purposes by the Trustors, and all money, property (real, personal and/or mixed), rights, choses in action, contracts, leases, privileges, franchises, benefits and all other things of value (whether or not above described) coming into the hands, or under the control of the Trustees pursuant to the provisions of this instrument or by virtue of their trusteeship hereunder.

## VI.
## THE TRUSTEES

**(a)** The Trustees hereunder, and their successors, do hereby contract, agree and covenant between themselves, with and to the State of Oklahoma, and with and to the

Beneficiary hereinafter described, as by law now in force and effect, that they will execute the Trust herein declared, created and constituted, as Trustees for the Beneficiary as hereinafter specified, and that they do and will receive, hold and administer the Trust Estate hereinabove described in trust, solely for the use and benefit of the said Beneficiary in the manner provided in this instrument, or in the absence of applicable provisions herein then in the manner provided by now existing law.

**(b)** The Trustees of the Authority shall be the following persons:

**(1)** The Mayor of the City of Tulsa, Oklahoma (or, in the event that the chief executive authority of said city be transferred to any other officer, then such chief executive officer) shall be ex officio the Chairman of Trustees;

**(2)** The undersigned four Trustees and their respective successors chosen as hereinafter set forth, all of whom shall be bona fide residents of the City of Tulsa.

**(c)** Each qualified Trustee shall continue as such until his successor shall have been qualified as provided in paragraph (g) of this Section.

**(d)** In the event of the death, resignation, removal of residence from the City of Tulsa, or inability to act of any Trustee, (other than an ex officio Trustee), the remaining Trustees shall elect a successor Trustee to fill the vacancy.

**(e)** The determination of the fact of a vacancy in a Trusteeship and of any right of a successor to qualify to Trusteeship shall be vested exclusively in the remaining Trustees, and their determination shall be final.

**(f)** The Trustees may contract, in connection with the incurring of any funded debt secured by the Trust Estate and/or its revenues, or any part of either or both, that Temporary Trustees may be appointed to act in place and instead of permanent Trustees, in respect of any part or all of the Trust Estate, in such number that such Temporary Trustees may constitute a majority of the Board of Trustees with relation to such property and operations of the Authority specified in said contract, in the event of a default as defined in the contract incurring said funded debt. Any such contract, if made, shall provide for the method of appointment of each such Temporary Trustee and the method of designating each permanent Trustee so to be temporarily supplanted. Each such Temporary Trustee who shall be appointed under the authority herein granted shall supplant, in all respects, the permanent Trustee so designated to the extent provided in said contract; and during the term of such Temporary Trustee, the permanent Trustee so supplanted shall be wholly without authority, duty or liability, under the terms of this instrument, insofar as the same relates to the property and operations specified in said contract. No such contract shall be authorized hereunder, however, which fails to make provisions for one or more permanent Trustees to continue with full power and authority during the term of all Temporary Trustees. All Temporary Trustees forthwith shall cease to be such upon the termination of all defaults by which their appointment would have been authorized under such contract, and the permanent Trustees so temporarily supplanted automatically shall be reinstated to full power and authority.

**(g)** All Trustees, and all Temporary Trustees appointed hereunder, shall qualify by a written acceptance of all of the terms of this instrument, duly acknowledged and filed in the same manner and in the same places that this instrument is acknowledged and

filed. All Trustees, permanent and Temporary, before assuming the powers and duties as such, also shall subscribe and file such oaths as shall be required by law of public officers of the State of Oklahoma; Provided, that if any Trustee shall have subscribed and filed such oaths to entitle him to qualify ex officio hereunder, said actions need not be duplicated.

**(h)** Upon each change of personnel of the Trustees hereunder, the Chairman of the Board of Trustees shall cause to be filed in the office of the County Clerk of Tulsa County, a certificate of the entire personnel of the Board of Trustees of the Trust.

**(i)** The acceptance of the office of Trustee of this Authority shall not constitute the Trustees hereunder, Temporary or permanent or both, to be in partnership or association. Each shall be an individual and wholly independent Trustee only.

**(j)** Notwithstanding any other provision of this instrument which shall appear to provide otherwise, no Trustee or Trustees shall have any power or authority to bind or obligate any other Trustee, or the Beneficiary or any component Beneficiary entity, in his or its individual capacity.

All persons, firms, associations, trusteeships, corporations, municipalities, governments and sovereignties contracting with any Trustee or Trustees, Temporary or permanent or both, shall take notice that all expense and obligations, and all debts, damage, judgments, decrees or liabilities incurred by any Trustee or Trustees, Temporary or permanent or both, and any of the foregoing incurred by any agent, servant or employee of the aforesaid Trustees, in the execution of the purposes of this Authority, whether arising from contract or tort, shall be solely chargeable to and payable out of the Trust Estate. In no event shall any Trustee, Temporary or permanent, in any manner be individually liable for any damage or injury to person or property, or for breach of contract or obligation, caused by, arising from, incident to, or growing out of the execution of this Authority, nor shall they, or any of them, be liable for the acts or omissions of each other, or of any agent, servant or employee of the aforesaid Trustees, or of another such Trustee; provided however, that the foregoing shall not apply to any breach of trust by any said Trustee.

## VII.
## POWERS AND DUTIES OF TRUSTEES

The Trustees, in the manner hereinafter set forth, shall do, or cause to be done, in lawful manner, all things which are incidental, necessary, proper or convenient to carry fully into effect the purposes enumerated in Section III of this instrument, the general authority hereby given being intended to make fully effective the power of the Trustees under this instrument; and said Trustees are specifically authorized (but their aforesaid general powers not limited thereby, notwithstanding any such specification), in effecting said purposes:

**(a)** To enter in and conduct and execute, apply for, purchase, or otherwise acquire franchises, property (real or personal and/or mixed), contracts, leases, rights, privileges, benefits, choses in action, or other things of value, and to pay for the same in cash, with bonds or evidences of indebtedness or otherwise;

**(b)** To acquire, own, hold, manage, and in any manner to convey, assign, dispose of, liquidate, compromise, or realize upon any contract, lease, right, privilege, benefit, chose in action, franchise, property (real or personal), or other thing of value, and to exercise all of the powers necessary or convenient in respect of same;

**(c)** To guarantee, acquire, purchase, hold, sell, assign, transfer, encumber, dispose of, and deal in the stocks, bonds, debentures, shares or evidences of interest or indebtedness of any corporation, association, municipality, government, sovereignty, trusteeship, firm, or individual, to enter into and perform any lawful contract in relation thereto, and to exercise all of the rights, powers and privileges in relation thereto to the same extent as a natural person might or could do;

**(d)** To enter into, make and perform contracts of every lawful kind, including, but not restricted to, management contracts, with any person, firm, association, corporation, trusteeship, municipality, government or sovereignty; and without limit as to amount, to draw, make, accept, indorse (sic), assume, guarantee, discount, execute and issue promissory notes, drafts, bills of exchange, acceptance, warrants, bonds, debentures, and other negotiable and transferable, or non-negotiable or non-transferable, instruments, obligations and evidences of secured or unsecured indebtedness, and if secured by mortgage, deeds of trust, or otherwise, upon any or all property of the Trust, and to pledge any or all income of the Trust, in the same manner and to the same extent as a natural person might or could do;

**(e)** To collect and receive any property, money, rents, or income of any sort, and to distribute the same, or any portion thereof, for the furtherance of the purposes enumerated in Section III of this instrument.

**(f)** The Trustees shall hold the legal title to all property at any time belonging to the Trust Estate in the name of the Trustees, and shall have and exercise exclusive management and control of the same, for the use and benefit of the Beneficiary, in the execution of the purposes of this Authority, and the right of said Trustees to manage, control and administer the said Authority, its properties, assets and business, shall be absolute and unconditional, free from the direction, control or management of the Beneficiary or any person or persons whatsoever other than a court of competent jurisdiction so to do.

**(g)** The Trustees may employ such agents, servants, and employees as they deem necessary, proper or convenient, and shall prescribe their duties and fix their compensation.

**(h)** The Trustees may contract for the furnishing of any services or the performance of any duties that they deem necessary, proper or convenient and pay for the same as they see fit to provide in such contract.

**(i)** The Trustees, by Resolution, may divide the duties of the Trustees hereunder, delegating all or any part of such duties to one or another of the Trustees as much as possible; but where specific duties are not delegated, a majority of the Trustees must act for the Authority.

**(j)** The Trustees may be compensated in the manner now provided by the Oklahoma Trust Act for services actually rendered and responsibility assumed; but not ex officio Trustee shall be compensated in any manner from the Trust Estate.

**(k)** The Trustees shall, in the name of the Authority as set forth in Section II hereof, or in their names as Trustees, bring any suit or action which, in their judgment, shall be necessary, proper, and convenient to protect the interests of the Authority, or to enforce any claim, demand or contract for the Authority, or to enforce any claim, demand or contract for the benefit thereof; and they likewise shall defend, in

their discretion, any suit against the Authority, or the Trustees or employees, agents or servants thereof. And the Trustees are expressly authorized, in their discretion, to compromise and settle prior to judgment any suit, action, claim or proceeding to which the Authority is interested, and to discharge the same out of the Trust Estate; and they specifically are authorized to pay or transfer out of the Trust Estate all sums of money or property necessary to discharge any judgment or decree rendered against them, or the Authority, together with all court or other costs, including counsel and attorney's fees, and also to pay out of the Trust Estate such sums of money, or transfer appropriate property thereof, for the purpose of settling, compromising or adjusting any claim or controversy, together with all costs and expenses connected therewith, and all such expenditures and transfers shall be treated as expenses of executing their trust.

**(l)** No bond shall be required of the Trustees, or any of them, unless they, by appropriate Resolution, so provide.

**(m)** All proceedings of the Trustees and all Resolutions adopted by them shall be kept in a record book and shall be subject to inspection, during customary business hours as public records of the State of Oklahoma.

**(n)** At their first meeting, the Trustees shall designate the time and place for regular meetings, which time and place shall not thereafter be changed unless at a meeting where all Trustees are present. No notice shall be required for the holding of regular meetings of the Trustees. Special meetings of the Trustees may be held upon such call as shall be fixed by Resolution adopted at a meeting where all Trustees are present.

**(o)** The Trustees, by written instruments filed for record in all places in which this instrument is filed, shall designate the place of the principal office of the Authority; and any change of place shall be recorded in like manner. All official records of the Authority shall be kept at the principal office, and shall be subject to inspection, during customary business hours, as public records of the State of Oklahoma.

## VIII.
## BENEFICIARY

**(a)** The term "Beneficiary" as used in this instrument denotes the incorporated City of Tulsa, Tulsa County, Oklahoma, and likewise shall denote any municipal entity which may hereafter succeed said municipality to the governing authority of the territory lying within the present municipal boundaries of said municipality and to which the Trust then shall be furnishing transportation services or facilities.

**(b)** The Beneficiary shall have no legal title, claim or right to the Trust Estate, or to any part thereof; neither shall the Beneficiary, as such, have any authority, power or right whatsoever to do or transact any business whatsoever for, or on behalf of, or binding upon the Trustees or upon the Trust Estate; neither shall the Beneficiary have the right to control or direct the actions of the Trustees in respect of the Trust Estate, or any part thereof; nor shall the Beneficiary have any right to demand or require any partition or distribution of the Trust Estate, or any part thereof. The Beneficiary shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder, and at the termination of the Trust, as provided herein and then only, the Beneficiary shall receive the residue of the Trust Estate.

**(c)** Each distribution of money by the Trustees to the Beneficiary shall be paid to said municipality for use by it for any authorized or proper function or purpose as directed by the governing body thereof, without restrictions or limitation by the Trustees.

## IX.
## TERMINATION

**(a)** This Trust shall be irrevocable by the Trustors and shall terminate:

**(1)** When purposes set forth in Section III of this instrument shall have been fully executed and fulfilled; or

**(2)** In the event of the happening of any event or circumstance that would prevent said purposes from being executed and fulfilled AND all of the Trustees and the governing body of the Beneficiary municipality with the approval of the Governor of the State of Oklahoma, shall agree that such event or circumstance has taken place; provided, however, that all indebtedness of the Trust shall have been paid; or

**(3)** In the manner provided by Title 60, Section 180, Oklahoma Statutes, 1951; provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees unless all owners of such indebtedness or obligations, or one authorized by them so to do, shall have consented in writing to such termination.

**(b)** Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of the Trust, and after payment of all debts and obligations out of Trust money, to the extent thereof, shall distribute the residue of the Trust money to the Beneficiary hereunder. Upon final distribution as aforesaid, the powers, duties and authority of the Trustees hereunder shall cease.

## X.
## PARTIAL INEFFECTIVENESS

The invalidity or ineffectiveness for any reason of any one or more words, phrases, clauses, paragraphs, or sections of this instrument shall not affect the remaining portions thereof so long as such remaining portions shall constitute a rational instrument. Any such invalid or ineffective portion was inserted conditionally upon it being valid or effective only; and this instrument shall be construed as if such invalid or ineffective portion had not been inserted herein.

## XI.
## COVENANT

The provisions hereof shall be binding upon the undersigned, their heirs, executors, administrators and assigns.

IN WITNESS WHEREOF, we have hereunto set our hands, executing this Declaration of Trust in multiple duplicates all of which constitute one and the same instrument, on this 19th day of March, 1956.

/s/ L.C. Clark
Mayor of the City of Tulsa, ex officio Trustee

/s/ Rupert I. Hall

/s/ Frank J. Nelson, M.D.

/s/ J.L. Burke

/s/ Oren Smulian
Trustees and Trustors

[ACKNOWLEDGMENTS]

## ACCEPTANCE OF BENEFICIAL INTEREST

KNOW ALL MEN BY THESE PRESENTS:

That the City of Tulsa, a municipal corporation acting by and through the governing body of said municipality, hereby accepts the beneficial interest in the trust created by the within and foregoing Declaration of Trust, for and in behalf of the said municipality, in all respects in accordance with the terms of said Declaration of Trust.

IN WITNESS WHEREOF, the Mayor of the City of Tulsa, pursuant to the authority and direction of Ordinance No. 7743 of said City, effective this date, hereunto has set his hand and caused to be affixed the requisite official seal, this 20th day of March, 1956.

/s/ L.C. Clark
Mayor of the City of Tulsa

ATTEST:

/s/ Elizabeth Stowell Anderson
City Auditor

/s/ O.K. T.A. Landrith, Jr.

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## CHAPTER 3. TULSA METROPOLITAN UTILITY AUTHORITY

Section 300. Beneficial interest of the Tulsa Metropolitan Water Authority Trust accepted.
Section 301. Mayor authorized to execute necessary instruments.
Section 302. Approving Amendment to Trust Indenture and accepting beneficial interest therein.
Section 303. Authorizing and directing execution and delivery of documents.
Section 304. Effective date.
Section 305. Authorizing and approving the bond purchase contract; expressly waiving competitive bidding; negotiated sale authorized; directing execution and delivery of purchase contract.
Section 306. Approval and authorization of lease agreement and Operation and Maintenance Contract.
Section 307. Approval and authorization of an Escrow Trust Agreement.
Section 308. Issuance of bonds.
Section 309. Incidental action.
Section 310. Accepting beneficial interest in Tulsa Metropolitan Utility Authority Trust.
Section 311. Authorization to execute and deliver the Second Amendment to the Declaration of Trust.
Section 312. Authorization to lease the City's wastewater system.
Section 313. Authorization to execute and deliver lease agreement.
Section 314. Trust Indenture modified by Third Amendment.
Section 315. Mayor and City Council reaccept beneficial interest in Tulsa Metropolitan Utility Authority Public Trust, as Amended.
Section 316. Authorization to execute and deliver the Third Amendment to the Declaration of Trust.
Section 317. Mayor and Chairman of City Council authorized, instructed and directed to endorse City approval and cause recording of Third Amendment.
Appendix I Declaration of Trust of The Tulsa Metropolitan Water Authority (Sections 300 and 301).
Appendix II Amendment to Trust Indenture (Sections 302, 303 and 304) ("Exhibit A" in Ord. No. 15943).
Appendix III Lease Agreement and Operation and Maintenance Contract.
Appendix IV Resolution.
Appendix V Second Amendment to Declaration of Trust (Sections 310 and 311) ("Exhibit A" in Ord. No. 17220).
Appendix VI Wastewater System Lease Agreement and Operation and Maintenance Contract (Sections 312 and 313).
Appendix VII Resolution.
Appendix VIII Third Amendment to Declaration of Trust (Sections 314, 315, 316, and 317) ("Exhibit A" in Ord. No. 18776).

### Section 300. Beneficial interest of the Tulsa Metropolitan Water Authority Trust accepted.

The beneficial interest in and to the express trust known as the Tulsa Metropolitan Water Authority, dated the 5th day of April, 1957, is hereby accepted by the governing body of the City of Tulsa acting by and through the Board of Commissioners thereof for and on behalf of said City.

*(Ord. No. 8113)*

**Section 301. Mayor authorized to execute necessary instruments.**

The Mayor of the City of Tulsa and all other officers of said City are hereby authorized and directed to sign, execute and deliver any, every and all instruments of writing necessary or convenient to effect and accomplish the trust purposes, and are hereby authorized to receive and accept for the use and benefit of the City all of said benefits, monies or emoluments that may be received or flow from said trust, all as provided in the Declaration of Trust dated the 5th day of April, 1957.

*(Ord. No. 8113)*

**Section 302. Approving Amendment to Trust Indenture and accepting beneficial interest therein.**

The Amendment to Trust Indenture dated December 14, 1983, an executed copy of which is hereto attached, marked "Exhibit A" and made a part hereof, amending the Tulsa Metropolitan Water Authority, is hereby approved and the City of Tulsa hereby accepts the beneficial interest in and to the Amendment to Trust Indenture.

*(Ord. No. 15943)*

**Section 303. Authorizing and directing execution and delivery of document.**

The Mayor and the City Auditor of the City of Tulsa are hereby authorized and directed to endorse upon the original of said amendment the approval of the City of Tulsa of said Amendment to Trust Indenture creating the Tulsa Metropolitan Water Authority, and the City's acceptance of the beneficial interest therein.

*(Ord. No. 15943)*

**Section 304. Effective date.**

This amendment shall not become effective until filed with the County Clerk of Tulsa County, Oklahoma, which filing shall occur only after payment, discharge, defeasance or other satisfaction of all Tulsa Metropolitan Water Authority notes, bonds and debentures incurred prior to February 13, 1984.

*(Ord. No. 15943)*

**Section 305. Authorizing and approving the bond purchase contract; expressly waiving competitive bidding; negotiated sale authorized; directing execution and delivery of purchase contract.**

The City of Tulsa hereby authorizes and approves the sale and issuance by the Tulsa Metropolitan Water Authority of its Tulsa Metropolitan Water Authority Water Revenue Bonds, Series 1984 (the "bonds"); the Authority is authorized to sell the underwriters named in the hereinafter mentioned purchase contract, at a price of $21,221,017.35, plus accrued interest from the date thereof to the date of delivery; the price represents 97.5007% of the face amount of the bonds; the average interest rate will be 9.3753% with a net interest cost (rate) of 9.5647. Competitive bidding for the sale of the bonds is hereby expressly waived, pursuant to the act, and the bonds are authorized to be sold to the underwriters at a negotiated sale subject to the terms and conditions of said purchase

contract. The Chairman and Secretary of the Authority are hereby authorized by the City upon their satisfaction to execute and deliver the purchase contract to be dated of even date herewith, and the Mayor is authorized to approve the purchase contract.

*(Ord. No. 15944)*

**Section 306. Approval and authorization of lease agreement and Operation and Maintenance Contract.**

The City of Tulsa as the owner of the City's water system, hereby authorizes the execution of the Lease Agreement and Operation and Maintenance Contract by the Mayor and City Auditor. In order to adequately secure the payment of the principal and interest upon the bonds, the City and the Authority will enter into the agreement in respect to the lease of the system and the rates, fees, collections and charges derived from the operation of the system (the "gross revenues") shall be pledged to the payment of the bond; accordingly, the City will under the terms of the agreement agree to operate and maintain the system and remit such gross revenues in the manner specified by the agreement.

*(Ord. No. 15944)*

**Section 307. Approval and authorization of an Escrow Trust Agreement.**

The City of Tulsa hereby authorizes and directs the Mayor and City Auditor to execute and deliver an escrow trust agreement of the purpose of paying or providing for the payment of the City's general obligation water bond contribution (as that term is defined in the bond indenture, as supplemented) on or before the date when each such payment shall become due.

*(Ord. No. 15944)*

**Section 308. Issuance of bonds.**

The City find and determines the issuance of bonds for the purpose of financing the acquisition and construction of the project to be necessary and in furtherance of the public purpose of the act and in accordance with the trust indenture, and such issuance is hereby authorized and approved.

*(Ord. No. 15944)*

**Section 309. Incidental action.**

The Mayor and City Auditor are hereby authorized and directed to execute and deliver such other documents and to take such other action as may be necessary or appropriate in order to effectuate the delivery of the bonds and to execute and deliver any other letter, representation, certification or other item as is necessary and attendant to the delivery of the bonds.

*(Ord. No. 15944)*

**Section 310. Accepting beneficial interest in Tulsa Metropolitan Utility Authority Trust.**

The Board of Commissioners of the City of Tulsa, Oklahoma hereby accepts, for and on behalf of the City, the beneficial interest in the public trust designated as the Tulsa Metropolitan Utility Authority, provided for in the Declaration of Trust of said public trust,

dated April 5, 1957, as amended by the Amendment to Trust Indenture, dated December 14, 1983, and the Second Amendment to Declaration of Trust, dated August 23, 1989, in all respects in accordance with said Declaration of Trust, as amended.

*(Ord. No. 17220)*

**Section 311. Authorization to execute and deliver the Second Amendment to the Declaration of Trust.**

The Mayor and City Auditor of the City be, and they hereby are, authorized and empowered for and on behalf of the City, to execute and deliver the Second Amendment to Declaration of Trust and such further agreements and documents and take such action as such officer or officers may deem necessary or desirable in order to accomplish the trust purposes.

*(Ord. No. 17220)*

**Section 312. Authorization to lease the City's wastewater system.**

The City of Tulsa, Oklahoma, acting by and through the Board of Commissioners of the City of Tulsa, Oklahoma, the governing body of such City, hereby authorizes, consents and agrees to the leasing of the City's proprietary, revenue producing sanitary sewer and wastewater treatment, collection, transportation, processing and disposal system and facilities, together with any and all additions, enlargements, extensions and improvements thereto acquired by the City during the term of the lease agreement to the Trustees of the Tulsa Metropolitan Utility Authority, all pursuant to the lease agreement which is hereby approved and accepted.

*(Ord. No. 17221)*

**Section 313. Authorization to execute and deliver lease agreement.**

The Mayor and City Auditor of the City be, and they hereby are, authorized and empowered for and on behalf of the City, to execute and deliver the lease agreement and such further agreements and documents and take such action as such officer or officers may deem necessary or desirable in order to accomplish the leasing of the wastewater system to the Authority.

*(Ord. No. 17221)*

**Section 314. Trust Indenture modified by Third Amendment.**

That the trust indenture for the Tulsa Metropolitan Utility Authority, formerly known as The Tulsa Metropolitan Water Authority, dated April 5, 1957, as amended by the Amendment to Trust Indenture, dated December 14, 1983, and as further amended by the Second Amendment to Declaration of Trust, dated August 23, 1989, is modified hereby pursuant to the terms of Third Amendment to Declaration of Trust, dated June 12, 1996, an executed copy of which is attached hereto as "Exhibit A" and made a part hereof.

*(Ord. No. 18776)*

**Section 315. Mayor and City Council reaccept beneficial interest in Tulsa Metropolitan Utility Authority public trust, as Amended.**

That the Mayor and the City Council of the City of Tulsa hereby reaccept, for and on behalf of the City, the beneficial interest in the public trust designated as the Tulsa Metropolitan

Utility Authority, provided for in the Declaration of Trust of said public trust, dated April 5, 1957, as amended by the Amendment to Trust Indenture, dated December 14, 1983; and as amended by the Second Amendment to Declaration of Trust, dated August 23, 1989, and as further amended by the Third Amendment to Declaration of Trust, dated June 12, 1996, in all respects in accordance with said Declaration of Trust, as amended.

*(Ord. No. 18776)*

### Section 316. Authorization to execute and deliver the Third Amendment to the Declaration of Trust.

The Mayor and City Clerk of the City be, and they hereby are, authorized and empowered for and on behalf of the City, to execute and deliver the Third Amendment to Declaration of Trust and such further agreements and documents and take such action as such officer or officers may deem necessary or desirable in order to accomplish the trust purposes.

*(Ord. No. 18776)*

### Section 317. Mayor and Chairman of City Council authorized, instructed and directed to endorse City approval and cause recording of Third Amendment.

The Mayor and Chairman of the City Council for the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Third Amendment to Declaration of Trust the approval of the City of Tulsa of the Third Amendment to Declaration of Trust creating the Tulsa Metropolitan Utility Authority, formerly named The Tulsa Metropolitan Water Authority, and to cause said amendment to the trust indenture to be recorded in the office of the County Clerk of Tulsa, Oklahoma.

*(Ord. No. 18776)*

## APPENDIX I DECLARATION OF TRUST OF THE TULSA METROPOLITAN WATER AUTHORITY (SECTIONS 300 AND 301)

*(Ord. No. 8113)*

KNOW ALL MEN BY THESE PRESENTS:

### I.
### CREATION OF TRUST

The undersigned, as Trustors, hereby irrevocably do create, establish and constitute, under the laws of the State of Oklahoma (generally but not exclusively pursuant to Title 60, sections 176 to 180, inclusive, Oklahoma Statutes, 1951, as amended, and to the Oklahoma Trust Act) a Trust for the public purposes and functions hereinafter set forth.

### II.
### NAME

The name of this Trust shall be, and the Trustees in their representative fiduciary capacity shall be designated as

"THE TULSA METROPOLITAN WATER AUTHORITY"

(hereinafter called "the Authority").

Under that name they shall, so far as practicable, conduct all business, and execute all instruments in writing, and otherwise perform their duties and functions in the execution of this Trust.

### III.
### PURPOSES

The purposes of the Authority are:

For the Beneficiary as hereinafter described—

**(a)** To provide, create, acquire, extend, enlarge, develop, improve, operate, maintain, regulate, conserve, and protect water supply, sewage and garbage facilities, or any or all of them, for the safeguarding of public health, the protection of persons and property, and the implementation and conservation of public welfare; and the foregoing shall include (without limitation by specification) incidental and collateral public uses of any and all kinds whatsoever;

**(b)** To institute, furnish, provide and supply to persons (natural, corporate, municipal or governmental, or any one or more thereof) services and the utilization of physical facilities of any and all kinds compatable (sic) with the nature of the Trust Estate; to fix, demand, collect and expend rents, rates, fees and charges in consideration of any of the foregoing; and to establish and enforce rules, regulations and practices in relation to such services, utilization of physical facilities and the Trust Estate, which rules, regulations and practices may provide for the discontinuance of or debarring from such services or physical facility utilization by reason of violation of any requirement established by the Trustees or for non-payment of any sum payable to the Authority for any cause whatsoever;

**(c)** To acquire by lease, purchase, production, reduction to possession, or otherwise, and to construct, equip, maintain, hold, store, operate and administer any property (real personal and/or mixed), rights, privileges, immunities, franchises, benefits and any other things of value, designed, adaptable to or needful for utilization in instituting, extending, enlarging, furnishing, improving, providing, or supplying any of the aforementioned services and physical facilities, or any of them; to comply with the terms and conditions of any leases or other contracts made in connection with the acquiring, equipping, maintaining, regulating and/or disposing of any of the Trust Estate; and to relinquish, dispose of, rent or otherwise alienate, or otherwise make any provision for, or take any action relating to any of the Trust Estate, including (without limitation by specification) the marketing or otherwise disposing of any of the Trust Estate which shall be deemed, by the Trustees, to be not required or in excess of the needs for executing the purposes set forth in paragraphs (a) and (b) of this Section.

**(d)** To provide funds for the cost of financing the creation, acquisition, institution, development, operation, maintenance, regulation, administration, conservation and protection of the Trust Estate and the aforesaid services and facilities, or any of them; and in so doing (without limitation by specification) to incur indebtedness, either unsecured or secured by all or part of the Trust Estate and/or all or part of the revenues of the Authority.

**(e)** To expend any funds coming into the hands of the Trustees as revenues or otherwise, in the enlargement, maintenance and operation of the Trust Estate and in payment of the costs and expenses of executing the purposes of the Authority, including (without limitation by specification) the payment of all indebtedness and obligations incurred for trust purposes or properly chargeable against the Trust Estate; and to expend or distribute any residue or remainder of the said funds or any other of the Trust Estate for the benefit of or to the components of the Beneficiary as set forth in Section VIII of this instrument, this to include, but not limited to, the expenditure or obligating of such residue or remainder or any part thereof for purposes directly related to improvement of the working conditions and/or security of any one or more classes or employees of the Trust or of any component Beneficiary.

## IV.
## DURATION

This Authority shall have duration for the longest term of duration of any component of the Beneficiary as hereinafter described, and until such time as its purposes shall have been fully executed and fulfilled, or until it shall be terminated as hereinafter provided.

## V.
## TRUST ESTATE

The Trust Estate shall consist of the funds presently in the hands of the Trustees, donated for the trust purposes by the Trustors, and all money, property (real, personal and/or mixed), rights, choses in action, contracts, leases, privileges, franchises, benefits and all other things of value (whether or not above described) coming into the hands, or under the control of the Trustees pursuant to the provisions of this instrument or by virtue of their trusteeship hereunder.

## VI.
## THE TRUSTEES

**(a)** The Trustees hereunder, and their successors, do hereby contract, agree and covenant between themselves, with and to the State of Oklahoma, and with and to the Beneficiary hereinafter described, as by law now in force and effect, that they will execute the Trust herein declared, created and constituted, as Trustees for the Beneficiary as hereinafter specified, and that they do and will receive, hold and administer the Trust Estate hereinabove described in trust, solely for the use and benefit of the said Beneficiary in the manner provided in this instrument, or in the absence of applicable provisions herein then in the manner provided by now existing law.

**(b)** The Trustees of the Authority shall be the following persons:

**1.** For six (6) months from the effective date of this Trust and thereafter until such time that not less than five (5) of the persons of any single class specified in the next sub-paragraph (2) shall have qualified as Trustees in the manner provided in paragraph (f) of this Section, the persons executing this instrument as Trustees shall be and constitute the Trustees of the Authority; and they and their respective successors (unless temporarily replaced pursuant to paragraph (e) of this Section) shall continue as the sole Trustees of the Authority until five (5) or more of the persons of any single class as aforesaid shall have so qualified. In the event of a vacancy, the remaining of said Trustees shall fill the same.

**2.** From and after the qualification, in the manner provided in paragraph (f) of this Section, of five (5) or more thereof, the Trustees of the Authority shall be ex officio the same persons that currently are members of the Utility Board of the City of Tulsa, Oklahoma, without distinction as to office held on said Board: Provided, in the event that the greater portion of the duties and powers of said Utility Board, relevant to the operational purposes of the Authority, shall be transferred to any other governmental officer, board, agency or instrumentality of the said City of Tulsa, every provision of this instrument referring to said Utility Board, or the persons who currently are members thereof, thereafter shall mean the latter and the personal incumbency thereof as the case may be: and Provided further, that if the Trustees of the Authority shall be persons who were members of said Utility Board at the time of their qualification as Trustees, said Trustees shall continue as sole Trustees until a majority of the persons entitled to trusteeship pursuant to the foregoing proviso shall have qualified in the manner provided in paragraph (f) of this Section. All provisions of this sub-paragraph shall be subject, however, to the provisions of paragraph (e) of this Section.

**3.** Notwithstanding anything to the contrary contained in sub-paragraph 2 of this Section, if at any time the number of persons eligible as a class to ex officio Trusteeship shall be reduced by governmental action, any person who, by such action, shall cease to be a member of said class forthwith shall cease to be a Trustee.

**(c)** Except as hereinbefore provided, each qualified Trustee shall continue as such until his successor shall have qualified as provided in paragraph (f) of this Section.

**(d)** The determination of the fact of a vacancy in a Trusteeship and of any right to qualify to Trusteeship shall be vested exclusively in the remaining Trustees, and their determination shall be final.

**(e)** The Trustees may contract, in connection with the incurring of any funded debt secured by the Trust Estate and/or its revenues, or any part of either or both, that Temporary Trustees may be appointed to act in place and instead of permanent Trustees, in respect of any part or all of the Trust Estate, in such number that such Temporary Trustees may constitute a majority of the Board of Trustees with relation to such property and operations of the Authority specified in said contract, in the event of a default as defined in the contract incurring said funded debt. Any such contract, if made, shall provide for the method of appointment of each such Temporary Trustee and the method of designating each permanent Trustee so to be temporarily supplanted. Each such Temporary Trustee who shall be appointed under the authority herein granted shall supplant, in all respects, the permanent Trustee so designated to the extent provided in said contract; and during the term of such Temporary Trustee, the permanent Trustee so supplanted shall be wholly without authority, duty or liability, under the terms of this instrument, insofar as the same relates to the property and operations specified in said contract. No such contract shall be authorized hereunder, however, which fails to make provisions for one or more permanent Trustees to continue with full power and authority during the term of all Temporary Trustees. All Temporary Trustees forthwith shall cease to be such upon the termination of all defaults by which their appointment would have been authorized under such contract, and the permanent Trustees so temporarily supplanted automatically shall be reinstated to full power and authority.

**(f)** All Trustees, and all Temporary Trustees appointed hereunder, shall qualify by a written acceptance of all of the terms of this instrument, duly acknowledged and filed in the same manner and in the same places that this instrument is acknowledged and filed. All Trustees, permanent and Temporary, before assuming the powers and duties as such, also shall subscribe and file such oaths as shall be required by law of public officers of the State of Oklahoma: Provided, that if any Trustee shall have subscribed and filed such oaths to entitle him to qualify ex officio hereunder, said actions need not be duplicated.

**(g)** Upon each change of personnel of the Trustees hereunder, the Chairman of the Board of Trustees shall cause to be filed in the office of the County Clerk of each county in which this Declaration of Trust is filed, a certificate of the entire personnel of the Board of Trustees of the Trust.

**(h)** The acceptance of the office of Trustee of this Authority shall not constitute the Trustees hereunder, Temporary or permanent or both, to be in partnership or association, Each shall be an individual and wholly independent Trustee only.

**(i)** Notwithstanding any other provision of this instrument which shall appear to provide otherwise, no Trustee or Trustees shall have any power or authority to bind or obligate any other Trustee, or the Beneficiary or any component Beneficiary entity, in his or its individual capacity.

All persons, firms, associations, trusteeships, corporation, municipalities, governments and sovereignties contracting with any Trustee or Trustees, Temporary or permanent or both, shall take notice that all expense and obligations, and all debts, damage, judgments,

decrees or liabilities incurred by any Trustee or Trustees, Temporary or permanent or both, and any of the foregoing incurred by any agent, servant or employee of the aforesaid Trustees, in the execution of the purposes of this Authority, whether arising from contract or tort, shall be solely chargeable to and payable out of the Trust Estate. In no event shall any Trustee, Temporary or permanent, in any manner be individually liable for any damage or injury to person or property, or for breach of contract or obligation, caused by, arising from, incident to, or growing out of the execution of this Authority, nor shall they, or any of them, be liable for the acts or omissions of each other, or of any agent, servant or employee of the aforesaid Trustees, or of another such Trustee; provided however, that the foregoing shall not apply to any breach of trust by any said Trustee.

## VII.
## POWERS AND DUTIES OF TRUSTEES

The Trustees, in the manner hereinafter set forth, shall do, or cause to be done, in lawful manner, all things which are incidental, necessary, proper or convenient to carry fully into effect the purposes enumerated in Section III of this instrument, the general authority hereby given being intended to make fully effective the power of the Trustees under this instrument; and said Trustees are specifically authorized (but their aforesaid general powers not limited thereby, notwithstanding any such specification), in effecting said purposes:

**(a)** To enter in and conduct and execute, apply for, purchase, or otherwise acquire franchises, property (real or personal and/or mixed), contracts, leases, rights, privileges, benefits, choses in action, or other things of value, and to pay for the same in cash, with bonds or evidences of indebtedness or otherwise;

**(b)** To acquire, own, hold, manage, and in any manner to convey, assign, dispose of, liquidate, compromise, or realize upon any contract, lease, right, privilege, benefit, chose in action, franchise, property (real or personal), or other thing of value, and to exercise all of the powers necessary or convenient in respect of same.

**(c)** To guarantee, acquire, purchase, hold, sell, assign, stocks, bonds, debentures, shares or evidences of interest or indebtedness of any corporation, association, municipality, government, sovereignty, trusteeship, firm, or individual, to enter into and perform any lawful contract in relation thereto, and to exercise all of the rights, powers and privileges in relation thereto to the same extent as a natural person might or could do;

**(d)** To enter into, make and perform contracts of every lawful kind, including, but not restricted to, management contracts, with any person, firm, association, corporation, trusteeship, municipality, government or sovereignty; and without limit as to amount, to draw, make, accept, indorse, assume, guarantee, discount, execute and issue promissory notes, drafts, bills of exchange, acceptance, warrants, bonds, debentures, and other negotiable and transferable, or non-negotiable or non-transferable, instruments, obligations and evidences of secured or unsecured indebtedness, and if secured by mortgage, deeds of trust, or otherwise, upon any or all property of the Trust, and to pledge any or all income of the Trust, in the same manner and to the same extent as a natural person might or could do;

**(e)** To collect and receive any property, money, rents, or income of any sort, and to distribute the same, or any portion thereof, for the furtherance of the purposes enumerated in Section III of this instrument.

**(f)** The Trustees shall hold the legal title to all property at any time belonging to the Trust Estate in the name of the Trustees, and shall have and exercise exclusive management and control of the same, for the use and benefit of the Beneficiary, in the execution of the purposes of this Authority, and the right of said Trustees to manage, control and administer the said Authority, its properties, assets and business, shall be absolute and unconditional, free from the direction, control or management of the Beneficiary or any component Beneficiary entity, or any person or persons whatsoever other than a court of competent jurisdiction so to do.

**(g)** The Trustees may employ such agents, servants, and employees as they deem necessary, proper or convenient, and shall prescribe their duties and fix their compensation.

**(h)** The Trustees may contract for the furnishing of any services or the performance of any duties that they deem necessary, proper or convenient and pay for the same as they see fit to provide in such contract.

**(i)** The Trustees, by Resolution may divide the duties of the Trustees hereunder, delegating all or any part of such duties to one or another of the Trustees as much as possible; but where specific duties are not delegated, a majority of the Trustees must act for the Authority.

**(j)** The Trustees may be compensated in the manner now provided by the Oklahoma Trust Act for services actually rendered and responsibility assumed; but no ex officio Trustee shall be compensated in any manner from the Trust Estate.

**(k)** The Trustees shall, in the name of the Authority as set forth in Section II hereof, or in their names as Trustees, bring any suit or action which, in their judgment, shall be necessary, proper, and convenient to protect the interests of the Authority, or to enforce any claim, demand or contract for the benefit thereof; and they likewise shall defend, in their discretion, any suit against the Authority, or the Trustees or employees, agents or servants thereof. And the Trustees are expressly authorized, in their discretion, to compromise and settle prior to judgment any suit, action, claim or proceeding in which the Authority is interested, and to discharge the same out of the Trust Estate; and they specifically are authorized to pay or transfer out of the Trust Estate all sums of money or property necessary to discharge any judgment or decree rendered against them, or the Authority, together with all court or other costs, including counsel and attorney's fees, and also to pay out of the Trust Estate such sums of money, or transfer appropriate property thereof, for the purpose of settling, compromising or adjusting any claim or controversy, together with all costs and expenses connected therewith, and all such expenditures and transfers shall be treated as expenses of executing their trust.

**(l)** No bond shall be required of the Trustees, or any of them, unless they, by appropriate Resolution, so provide.

**(m)** All proceedings of the Trustees and all Resolutions adopted by them shall be kept in a record book and shall be subject to inspection, during customary business hours as public records of the State of Oklahoma.

**(n)** At their first meeting, the Trustees shall designate the time and place for regular meetings, which time and place shall not thereafter be changed unless at a meeting where all Trustees are present: Provided, that when all qualified Trustees are ex officio, a regular meeting may be held immediately following any meeting of the official body of which the said ex officio Trustees are the incumbents. No notice shall be required for the holding of regular meetings of the Trustees. Special meetings of the Trustees may be held upon such call as shall be fixed by Resolution adopted at a meeting where all Trustees are present.

**(o)** The Trustees, by written instrument filed for record in all places in which this instrument is filed, shall designate the place of the principal office of the Authority; and any change of place shall be recorded in like manner. All official records of the Authority shall be kept at the principal office, and shall be subject to inspection, during customary business hours, as public records of the State of Oklahoma.

## VIII.
## BENEFICIARY

**(a)** The term "Beneficiary" as used in this instrument collectively and severally shall denote the corporate governmental entities for which the Authority shall be furnishing and providing, or proposes to furnish and provide the services and facilities described in Section III of this instrument, or any part thereof, and which shall have accepted beneficial interest under this instrument as provided by law, as follows:

**1.** The initial Beneficiary hereunder shall be the incorporated city of Tulsa, Oklahoma;

**2.** Any one or more counties, municipalities, political or governmental subdivisions or governmental agencies of the State (including, but not restricted thereto by reason of enumeration, water districts and water improvement districts existing pursuant to law) may become components of the Beneficiary (a) if the Trustees shall determine that the services and facilities furnished and provided, or proposed to be furnished and provided by the Authority shall be furtherance of any authorized or proper function of any such entity and that the furnishing or providing thereof shall be consistent with the purposes of the Authority as set forth in Article III, and (b) upon acceptance of correlative beneficial interest hereunder by the governing body of said entity as provided by law. To effect the foregoing, in each case, the Trustees shall execute an instrument designating said entity as a component of the Beneficiary and defining its correlative privileges to benefits hereunder; and the aforesaid acceptance of correlative beneficial interest as so defined shall be endorsed thereon and the said instrument, together with said endorsement thereon, shall be recorded in all places where this Declaration of Trust shall be recorded. The provisions of the said Supplement to this Declaration of Trust thereupon shall have the same force and effect, from said time, as though the provisions thereof had been original provisions hereof.

**3.** In the event that any entity eligible to beneficial interest hereunder shall succeed any component entity of the Beneficiary in governmental authority, in respect to the general scope of the Authority purposes whereby any component entity became such, then that successor shall succeed to beneficial interest hereunder ipso facto, and the Trustees shall cause to be filed for record, in each place in which this instrument is or thereafter shall be recorded, an instrument evidencing such succession.

**(b)** The Beneficiary or any component entity thereof shall have no legal title, claim or right to the Trust Estate, or any part thereof, other than as provided by presently existing law relating to the title and interest of a beneficiary in trust property; neither shall the Beneficiary or any component entity thereof, as such have any authority, power or right whatsoever to do or transact any business whatsoever for, or on behalf of, or binding upon the Trustees or upon the Trust Estate; neither shall the Beneficiary or any component entity thereof, as such, have any right to control or direct the actions of the Trustees in respect of the Trust Estate, or any part thereof; nor shall the Beneficiary or any component part thereof have any right to demand or require a partition or distribution of the Trust Estate, or any part thereof. The Beneficiary shall be entitled solely to the benefits of this trust, as administered by the Trustees hereunder, and at the termination of this trust, as provided hereinafter, the Beneficiary shall receive the residue of the Trust Estate in such proportions as is hereafter specifically provided, and not otherwise.

**(c)** Distributions and benefit expenditures of money and/or property, both interim and final, shall be made as follows, and not otherwise:

**1.** Until there shall be one or more additional components of the Beneficiary pursuant to sub-paragraph (a)2 of this Section, all distributions and benefit expenditure shall be made solely to, or for benefits directly or indirectly inuring to the City of Tulsa, Oklahoma, as the Trustees shall determine;

**2.** In the event that there shall be one or more component entities of the Beneficiary pursuant to sub-paragraph (a)2 of this Section, the correlative privilege of each said component entity to distributions and benefit expenditures hereunder shall be set forth in the instrument, mentioned in sub-paragraph (a)2 of this Section, designating such component entity.

## IX.
## TERMINATION

**(a)** This trust shall be irrevocable by the Trustors or the Trustees and shall terminate:

**1.** When the purposes set forth in Section III of this instrument shall have been fully executed and fulfilled; or

**2.** In the event of the happening of any event or circumstance that would prevent said purposes from being executed and fulfilled AND all of the Trustees and the governing body of all component entities of the beneficiary hereunder, with the approval of the governor of the State of Oklahoma, shall agree that such event or circumstance has taken place; provided, however, that all indebtedness of the Authority shall have been paid; or

**3.** In the manner provided by Title 60, section 180, Oklahoma Statutes, 1951; provided, however, that this trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees unless all owners of such indebtedness and obligations, or one authorized by them so to do, shall have consented in writing to such termination.

**(b)** This trust shall terminate as to any component entity of the Beneficiary:

**1.** When the purposes set forth in Section III of this instrument shall have been fulfilled in relation to said entity; or

**2.** In the event of the happening of any event or circumstance that would prevent said purposes from being executed and fulfilled in relation to said entity AND all of the trustees and the governing body of such component entity, with the approval of the Governor of the State of Oklahoma, shall agree that such event or circumstance has taken place; provided, however, that all indebtedness of the Authority in any manner payable from operations of the Authority, relating to said component entity, shall have been paid; or

**3.** In the manner provided by Title 60, Section 180, Oklahoma Statutes, 1951; provided, however, that voluntary termination pursuant to any provisions of this paragraph shall not take place if there be outstanding indebtedness or fixed term obligations of the Trustees unless all owners of such indebtedness and obligations, or one authorized by them so to do, shall have consented in writing to such termination.

**(c)** Upon any complete or partial termination of this trust, the Trustees shall proceed to wind up all of the affairs of the Authority affected by such termination, and after payment of all debts and obligations, affected by such termination, out of the Trust Estate, to the extent thereof, shall distribute the residue of the Trust Estate proximately involved in such termination to the component entities of the Beneficiary hereunder in the manner provided in Section VIII, paragraph (c), of this instrument. Upon any distribution as aforesaid, the powers, duties and authority of the Trustees hereunder shall cease as to all services, facilities and properties involved in such distribution.

## X.
## PARTIAL INEFFECTIVENESS

The invalidity or ineffectiveness for any reason of any one or more words, phrases, clauses, paragraphs, or sections of this instrument shall not affect the remaining portions thereof so long as such remaining portions shall constitute a rational instrument. Any such invalid or ineffective portion was inserted conditionally upon it being valid or effective only; and this instrument shall be construed as if such invalid or ineffective portion had not been inserted herein.

## XI.
## COVENANT

The provisions hereof shall be binding upon the undersigned, their heirs, executors, administrators and assigns.

IN WITNESS WHEREOF, we have hereunto set our hands, executing this Declaration of Trust in multiple duplicates all of which constitute one and the same instrument, on this 5th day of April, 1957.

| | |
|---|---|
| | /s/ D. Blankenship |
| /s/ J. S. Sheets | /s/ R.E. Hruska |
| /s/ Stewart B. Ware | /s/ Patrick L. McGuire |
| Trustors | Trustees |

[ACKNOWLEDGMENTS]

## ACCEPTANCE OF BENEFICIAL INTEREST

KNOW ALL MEN BY THESE PRESENTS:

That the City of Tulsa, Oklahoma, a municipal corporation acting by and through the Utility Board of the City of Tulsa, and by and through the general governing body of said municipality, hereby accepts the beneficial interest in the trust created by the within and foregoing Declaration of Trust, for and in behalf of the said municipality, in all respects in accordance with the terms of said Declaration of Trust.

IN WITNESS WHEREOF, the Chairman of the Utility Board of the City of Tulsa, pursuant to the authority and direction of said Board on this date, and the Mayor of the City of Tulsa, pursuant to the authority and direction of Ordinance No. 8113 of said City, effective this date, hereunto have set our hands and caused to be affixed the requisite official seals, this 5th day of April, 1957.

ATTEST:

_____
Secretary

/s/ Pat McGuire
Chairman, Utility Board of the
City of Tulsa, Oklahoma

ATTEST:
/s/ Raymond Hoagland
Deputy City Auditor

/s/ George E. Norvell
Mayor of the City of Tulsa,
Oklahoma

Filed of record on May 28, 1957, at 9:46, Instrument No. 333770.

Recorded in Book 2785, Pages 70—89.

## APPENDIX II AMENDENT TO TRUST INDENTURE (SECTIONS 302, 303, AND 304)

*("Exhibit A" in Ord. No. 15943)*

KNOW ALL MEN BY THESE PRESENTS:

This Amendment to Trust Indenture dated the 14th day of December, 1983, by and among the Board of Commissioners of The City of Tulsa, Oklahoma, the Utility Board of The City of Tulsa, Oklahoma (the "Board") and the Tulsa Metropolitan Water Authority (the "Authority") hereby amends the original Trust Indenture dated April 5, 1957, forming and creating the said Authority in the following respects:

**(A)** Subsection (e) of Section III of said Trust Indenture is amended to read as follows:

(e) To expend any funds coming into the hands of the Trustees as revenues or otherwise, in the enlargement, maintenance and operation of the Trust Estate and in payment of the costs and expenses of executing the purposes of the Authority, including (without limitation by specification) the payment of all indebtedness and obligations incurred for trust purposes or properly chargeable against the Trust Estate; and to expend or distribute any residue or remainder of the said funds or any other of the Trust Estate for the benefit of or to the components of the Beneficiary as set forth in Section VIII of this instrument, this to include, but not be limited to, the expenditure or obligation of such residue or remainder or any part thereof for purposes directly related to improvement of the working conditions and/or security of any one or more classes of employees of the Trust or of the Beneficiary.

**(B)** Section IV of said Trust Indenture is amended to read as follows:

**IV.**
**DURATION**

This Authority shall have duration for the term of duration of the Beneficiary as hereinafter described, and until such time as its purposes shall have been fully executed and fulfilled, or until it shall be terminated as hereinafter provided.

**(C)** Section VI of said Trust Indenture is amended to read as follows:

**VI.**
**THE TRUSTEES**

(a) The Trustees hereunder, and their successors, do hereby contract, agree and covenant between themselves, with and to the State of Oklahoma, and with and to the Beneficiary hereinafter described, as by law now in force and effect, that they will execute the Trust herein declared, created and constituted, as Trustees for the Beneficiary as hereinafter specified, and that they do and will receive, hold and administer the Trust Estate hereinabove described in trust, solely for the use and benefit of the said Beneficiary in the manner provided in this instrument, or in the absence of applicable provisions herein then in the manner provided by now existing law.

(b) Those persons who are members of the utility Board of the City of Tulsa as said Board is from time to time constituted shall serve ex officio as the Trustees of this Authority. Each successor to a member of the Utility Board shall, without

any further act, deed or conveyance other than those provided in subsection (d) of this section become a Trustee of this Trust and become fully vested with all the estate, properties, rights, powers, duties and obligations of his predecessor hereunder with like effect as if originally named as a Trustee herein.

(c) The Commissioner of Waterworks and Sewerage of the City of Tulsa shall ex officio serve as the Chairman of the Trustees and preside at all meetings and perform other duties designated by the Trustees. The Trustees may elect from their members a Vice-Chairman and a Secretary. The Vice-Chairman shall act in place of the Chairman during the latter's absence or incapacity to act.

(d) All Trustees shall qualify by a written acceptance of all of the terms of this instrument, duly acknowledged and filed in the offices of the Authority. All Trustees also shall subscribe and file such oaths as shall be required by law of public officers of the State of Oklahoma: Provided, that if any Trustee shall have subscribed and filed such oaths to entitle him to qualify ex officio hereunder, said actions need not be duplicated.

(e) The Trustees may contract, in connection with the incurring of any funded debt secured by the Trust Estate and/or its revenues, or any part of either or both, that Temporary Trustees may be appointed to act in place and instead of permanent Trustees, in respect of any part or all of the Trust Estate, in such number that such Temporary Trustees may constitute a majority of the Board of Trustees with relation to such property and operations of the Authority specified in said contract, in the event of a default as defined in the contract incurring said funded debt. Any such contract, if made, shall provide for the method of appointment of each such Temporary Trustee and the method of designating each permanent Trustee so to be temporarily supplanted. Each such Temporary Trustee who shall be appointed under the authority herein granted shall supplant, in all respects, the permanent Trustee so designated to the extent provided in said contract; and during the term of such Temporary Trustee, the permanent Trustee so supplanted shall be wholly without authority, duty or liability, under the terms of this instrument, insofar as the same relates to the property and operations specified in said contract. No such contract shall be authorized hereunder, however, which fails to make provision for one or more permanent Trustee to continue with full power and authority during the term of all Temporary Trustees. All Temporary Trustees forthwith shall cease to be such upon the termination of all defaults by which their appointment would have been authorized under such contract, and the permanent Trustees so temporarily supplanted shall be reinstated to full power and authority.

(f) Bonds, notes or other evidences of indebtedness of the Trust, together with all interest and premium or penalty thereon, shall not constitute an indebtedness, general or special, or liability of the State of Oklahoma or any political subdivision thereof, including the Beneficiary, and shall contain express provisions to such effect and to the effect that (i) neither the faith and credit nor the taxing power of the State or any political subdivision thereof, including the Beneficiary, is pledged to the payment of the principal of, premium or penalty, if any, or interest thereon, and (ii) such indebtedness is not a personal

obligation of any Trustee, officer, employee or agent of the Trust. Bonds, notes or other evidences of indebtedness shall be limited and special revenue obligations of the Trust and shall set out therein the revenues from which the same shall be payable and the property constituting the Trust Estate, or such portion thereof, which shall be assigned and pledged by the Trust to secure the payment thereof.

(g) The Trustees and the officers, employees and agents of the Trust shall not be charged personally with any liability whatsoever by reason of any act or omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trust Estate; but any act or liability for any omission or obligation of the Trustees in the execution of this Trust, or in the operation of the Trust Estate, shall extend to the whole of the Trust Estate or so much thereof as shall be assigned and pledged as security therefor to the extent necessary to discharge such liability or obligation.

The Trustees shall, however, have the authority to purchase personal liability insurance, assuming such insurance is commercially feasible and it is economically feasible to do so, insuring themselves individually, as well as any of the officers, agent and employees of the Trust or the Trustees shall deem necessary or desirable, in the performance of their respective obligations and responsibilities under the Trust.

(h) The acceptance of the office of Trustee of this Authority shall not constitute the Trustees hereunder, Temporary or permanent or both, to be in partnership or association. Each shall be an individual and wholly independent Trustee only.

(i) Notwithstanding any other provisions of this instrument which shall appear to provide otherwise, no Trustee or Trustees shall have any power or authority to bind or obligate any other Trustee, or the Beneficiary, in his or its individual capacity.

All persons, firms, associations, trusteeships, corporations, municipalities, governments and sovereignties contracting with any Trustee or Trustees, Temporary or permanent or both, shall take notice that all expense and obligations, and all debts, damage, judgments, decrees or liabilities incurred by any Trustee or Trustees, Temporary or permanent or both, and any of the foregoing incurred by any agent, servant or employee of the aforesaid Trustees, in the execution of the purposes of this Authority, whether arising from contract or tort, shall be solely chargeable to and payable out of the Trust Estate. In no event shall any Trustee, Temporary or permanent, in any manner be individually liable for any damage or injury to person or property, or for breach of contract or obligation, caused by, arising from, incident to, or growing out of the execution of this Authority, nor shall they, or any of them, be liable for the acts or omissions of each other, or of any agent, servant or employee of the aforesaid Trustees, or of another such Trustee; provided, however, that the foregoing shall not apply to any breach of trust by any said Trustee.

**(D)** Subsection (f) of Section VII of said Trust Indenture is amended to read as follows:

(f) The Trustees shall hold the legal title to all property at any time belonging to

the Trust Estate in the name of the Trustees, and shall have and exercise exclusive management and control of the same, for the use and benefit of the Beneficiary, in the execution of the purposes of this Authority, and the right of said Trustees to manage, control and administer the said Authority, its properties, assets and business, shall be absolute and unconditional, free from the direction, control or management of the Beneficiary, or any person or persons whatsoever other than a court of competent jurisdiction so to do.

**(E)** Subsection (n) of Section VII of said Trust Indenture is amended to read as follows:

(n) At their first meeting, the Trustees shall designate the time and place for regular meetings, which time and place shall not thereafter be changed unless at a meeting where a majority of the Trustees are present: Provided, that when all qualified Trustees are ex officio, a regular meeting may be held immediately following any meeting of the official body of which the said ex officio Trustees are the incumbents; provided, in all cases the Trustee shall comply in every respect with the requirements of State law in respect to notice posted or delivered for all regular and special meetings.

**(F)** Section VIII of said Trust Indenture is amended to read as follows:

**VIII.**
**BENEFICIARY**

(a) The Beneficiary under this instrument shall be the incorporated City of Tulsa, Oklahoma;

(b) The Beneficiary shall have no legal title, claim or right to the Trust Estate, or any part thereof, other than as provided by presently existing law relating to the title and interest of a beneficiary in trust property; neither shall the Beneficiary thereof, as such have any authority, power or right whatsoever to do or transact any business whatsoever for, or on behalf of, or binding upon the Trustees or upon the Trust Estate; neither shall the Beneficiary, as such, have any right to control or direct the actions of the Trustees in respect of the Trust Estate, or any part thereof; nor shall the Beneficiary have any right to demand or require a partition or distribution of the Trust Estate, or any part thereof. The Beneficiary shall be entitled solely to the benefits of this trust, as administered by the Trustees hereunder, and at the termination of this Trust, in whole or in part, all distributions and benefit expenditures shall be made to or among the Beneficiary or Beneficiaries as the Trustees and the governing body of the City of Tulsa may direct.

(c) Upon approval by the Board of Commissioners for The City of Tulsa and the Trustees of the Authority, and the appropriate acceptance of the beneficial interest thereby, any city, town or county may be added as a beneficiary under this Indenture. In such a case, all references to Beneficiary used herein shall be deemed, to the extent necessary, to refer to all political subdivisions, including The City of Tulsa, Oklahoma, which have accepted beneficial interest in this Trust.

**(G)** Section IX of said Trust Indenture is amended to read as follows:

## IX.
## MODIFICATION AND TERMINATION

(a) This Trust Indenture may be amended by a unanimous vote of all Trustees then in office, provided that such amendment shall be further approved by the governing board of The City of Tulsa, Oklahoma, as the original Beneficiary, before becoming effective.

Notwithstanding the foregoing, however, this Trust Indenture shall not be subject to alteration, amendment, revision or modification in any manner which would be adverse to the interest of the holders of any bonds, notes or other evidences or indebtedness of the Trust without the consent of holders of indebtedness who would be adversely affected, which consent may be given by less than all of such holders, if so provided in any resolution, indenture or agreement relating to such indebtedness; provided, that the Trustees may rely conclusively upon the advice of counsel, who may be counsel for the Trust, in determining that any such amendment would not be adverse to the interest of the holders of any bonds, notes or other evidences of indebtedness of the Trust.

(b) This trust shall be irrevocable by the Trustors or the Trustees and shall terminate:

**1.** When the purposes set forth in Section III of this instrument shall have been fully executed and fulfilled; or

**2.** Upon the happening of any event or circumstance that would prevent said purposes form being executed and fulfilled; provided that all of the Trustees and the governing body of the Beneficiary hereunder, shall agree that such event or circumstance has taken place; and provided, further, that all indebtedness of the Authority shall have been paid; or

**3.** In the manner provided by Title 60, Section 180, Oklahoma Statutes, 1951; provided, however, that this trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees unless all owners of such indebtedness and obligations, or one authorized by them so to do, shall have consented in writing to such termination.

(c) Upon complete termination of this trust, the Trustees shall proceed to wind up all of the affairs of the Authority affected by such termination, and after payment of all debts and obligations affected by such termination, out of the Trust Estate to the extent thereof, shall distribute the residue of the Trust Estate hereunder in the manner provided in Section VIII. Upon any distribution as aforesaid, the powers, duties and authority of the Trustees hereunder shall cease as to all services, facilities and properties involved in such distribution.

**(H)** Otherwise the original Trust Indenture shall remain in full force and effect.

IN WITNESS WHEREOF, the Mayor of The City of Tulsa, the members of the Board and the Authority have executed this document as of the date above first mentioned.

BOARD OF COMMISSIONERS OF THE
CITY OF TULSA

/s/ James M. Inhofe
Mayor

ATTEST:

/s/ Ronald L. Payne
Deputy City Auditor

APPROVED:

/s/ Edward J. Hicks
Assistant City Attorney

| UTILITY BOARD OF THE CITY OF TULSA | TULSA METROPOLITAN WATER AUTHORITY |
|---|---|
| /s/ James M. Inhofe<br>James M. Inhofe, Mayor | /s/ J.R. Thomas<br>J.R. Thomas, Chairman |
| /s/ Patty Eaton<br>Patty Eaton, Chairman | /s/ E.A. Schermerhorn<br>E.A. Schermerhorn |
| /s/ J.R. Thomas<br>J.R. Thomas | /s/ Travis W. Freeman<br>Travis W. Freeman |
| /s/ E.A. Schermerhorn<br>E.A. Schermerhorn | /s/ Priscilla Harris<br>Priscilla Harris |
| /s/ Travis W. Freeman<br>Travis W. Freeman | /s/ Phillip G. Smith<br>Phillip G. Smith |
| /s/ Priscilla Harris<br>Priscilla Harris | |
| /s/ Phillip G. Smith<br>Phillip G. Smith | |
| (SEAL)<br>ATTEST: | (SEAL)<br>ATTEST: |
| /s/ E.A. Schermerhorn<br>Secretary | /s/ Travis W. Freeman<br>Secretary |

[ACKNOWLEDGMENTS]

IN FURTHER WITNESS WHEREOF, the following members of the Board and the Authority appointed subsequent to the date of this Amendment have also executed this document as of February 16, 1984.

| UTILITY BOARD OF THE CITY OF TULSA | TULSA METROPOLITAN WATER AUTHORITY |
|---|---|

/s/ Eugene Bell
Eugene Bell

/s/ Eugene Bell
Eugene Bell

/s/ Mary T. Dunn
Mary Dunn

/s/ Mary T. Dunn
Mary Dunn

[ACKNOWLEDGMENT]

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENTS:

THAT the Board of Commissioners of the City of Tulsa, Tulsa, County, Oklahoma, hereby accepts the beneficial interest in the Trust created by the Trust Indenture dated April 5, 1957, and in the foregoing Amendment to Trust Indenture dated December 14, 1983, for and on behalf of said beneficiary in all respects in accordance with the laws of the State of Oklahoma, the Charter of the City of Tulsa, and the terms of said Trust Indenture.

WITNESS my hand as Mayor of the City of Tulsa, Tulsa County, Oklahoma, and attested by the City Auditor of said City pursuant to direction of said Board of Commissioners this 14th day of February, 1984.

/s/ James M. Inhofe
Mayor

(Seal)

ATTEST:

/s/ F.F. Campbell
City Auditor

APPROVED:

/s/ Neal E. McNeill (by ga)
City Attorney

## APPENDIX III LEASE AGREEMENT AND OPERATION AND MAINTENANCE CONTRACT

THIS LEASE AGREEMENT AND OPERATION AND MAINTENANCE CONTRACT (hereinafter called "Agreement"), dated as of February 1, 1984, by and between the CITY OF TULSA, OKLAHOMA, as Lessor (hereinafter called "CITY"), a municipal corporation, the UTILITY BOARD of the City of Tulsa, (the "UTILITY BOARD") a board of the CITY, with exclusive powers and authority over the operation, management and control of the SYSTEM, as defined herein, under the Charter of the City, and the TULSA METROPOLITAN WATER AUTHORITY, acting by and through its trustees, as Lessee, (hereinafter called "AUTHORITY"), a public trust created under the authority of and pursuant to the provisions of Title 60, Oklahoma Statutes 1981, Sections 176 et seq., as amended and supplemented, cited as the Public Trust Act, which Agreement, from and after its execution ad delivery, shall supersede, replace and be substituted for any and all previously executed lease agreements, if any, between the CITY, the UTILITY BOARD and the AUTHORITY, pertaining to the hereinafter described "SYSTEM".

WITNESSETH:

WHEREAS, said AUTHORITY, is a public trust created and existing pursuant to the provisions of Title 60 Okla. Stats. (176 et. seq., and the Oklahoma Trust Act and by a certain Trust Indenture initially dated as of April 5, 1957, and, as amended, for the use and benefit of the CITY of Tulsa, Oklahoma; and

WHEREAS, the CITY, with the approval of the UTILITY BOARD, is desirous of entering into this Lease Agreement and Operation and Maintenance Contract whereby the CITY will lease to the AUTHORITY all of its presently existing and hereafter acquired water system, but not limited to distribution systems, treatment facilities, water rights and storage facilities (herein as more fully defined in Article I hereof, called the "SYSTEM"); and

WHEREAS, it is necessary to assure adequate water services to the citizens of the CITY to acquire additional water sources and to acquire, improve and construct additional water transportation and delivery systems; and

WHEREAS, to finance the cost of acquiring, constructing, improving and extending such additions and betterments to the SYSTEM it is necessary for the AUTHORITY acting on behalf of the CITY to initially issue its Tulsa Metropolitan Water Authority Water Revenue Bonds, Series 1984 in the aggregate principal amount of $21,765,000 (the "Bonds" and together with all bonds issued on a parity therewith called "bonds"); and

WHEREAS, the Bonds will be authorized to be issued by official action of the AUTHORITY, approved by the CITY, and the terms and conditions of the bonds and the security therefor is set-forth in the Bond Indenture dated as of February 1, 1984 (as may be supplemented or amended from time to time with the approval of the CITY for the purpose of issuing additional bonds, or otherwise herein called the "Indenture") by and between the AUTHORITY, and the corporate trustee named therein (the "Trustee"), to be selected by the Authority; and

WHEREAS, the CITY is desirous of expanding and improving the overall SYSTEM of the CITY (under the control of the Utility Board) and acquiring additional sources of water; and

WHEREAS, under and pursuant to certain provisions of the Charter of the City of Tulsa, it is the policy of the CITY to remit to the Sinking Fund of the CITY an amount equal to 50% of the annual principal and interest requirements upon the CITY'S outstanding general obligation water bonds (the "General Obligation Water Bond Contribution") from the total amount of revenues received in respect to the SYSTEM (the "Gross Revenues"); and

WHEREAS, the CITY has heretofore and may in the future, enter into certain water main extension contracts with certain real estate developers (the "Water Main Extension Contracts") providing for certain water main extension payments expressed as a percentage of the revenues directly derived in respect to that portion of the distribution system acquired and constructed by a real estate developer (the "Water Main Extension Payments"); and

WHEREAS, the Water Main Extension Payments are remitted to the real estate developer in order to assist the said developer to recover certain costs of construction of such water main extensions; and

WHEREAS, the Gross Revenues are necessary to the securing and payment of the bonds, to pay the Operation and Maintenance Expenses incurred in respect to the SYSTEM to provide for payment of the General Obligation Water Bond Contribution, if any, to make the Water Main Extension Payments, if any, and to make all other payments related or charged to the System; and

WHEREAS, certain of the revenues derived from the operation of the SYSTEM historically have been paid or transferred to the CITY to defray a portion of the costs of CITY government (the General Fund Transfer"); and

WHEREAS, it is contemplated that the General Fund Transfer for each year will be established by the budget of the CITY, each year during the term of this Agreement; and

WHEREAS, under the terms of the Indenture the following monthly transfers or payments shall be made from the Gross Revenues: (i) the principal and interest requirements on the bonds (including payments to replenish deficiencies in the Bond Reserve Account within the Bond Fund), (ii) the Operation and Maintenance Expenses (herein defined), (iii) deposits, if any, to the AUTHORITYS Renewal and Replacement Fund (as those terms are defined in the Indenture), (iv) the General Obligation Water Bond Contributions, if any, (v) the Water Main Extension Payments, if any, and (vi) the General Fund Transfer; and

WHEREAS, the CITY, acting by and through the UTILITY BOARD, has historically operated and maintained the SYSTEM and accordingly, the CITY has kept the books, accounts and records pertaining to the SYSTEM and all funds and accounts pertaining thereto; and

WHEREAS, in order to ensure the efficient operation and maintenance of the SYSTEM, the AUTHORITY is desirous of continuing the arrangement whereby the CITY shall operate and maintain the SYSTEM; and

WHEREAS, the AUTHORITY is desirous of reimbursing the CITY for the Operation and Maintenance Expenses incurred in respect to the System and paying the other Operation and Maintenance Expenses incurred in respect to the SYSTEM; and

WHEREAS, in order to expedite the most efficient means of: (i) paying the principal and interest requirements on the Bonds, including any payments to be made into the Bond Reserve Account created in respect to the Bonds, (ii) making payments, if necessary, into the Renewal and Replacement Reserve, under the pursuant to the terms of the Indenture, (iii) paying or reimbursing the CITY for the monthly costs incurred in connection with the operation and maintenance of the SYSTEM, (iv) paying the monthly General Obligation Water Bond Contribution, if any, and the Water Main Extension Payments, if any, to the appropriate CITY funds and accounts, and (v) paying the monthly General Fund Transfer established by the CITY, and for other reasons of general operation, the AUTHORITY has created a Revenue Fund and an Operating Fund; and

WHEREAS, the Operating Fund as of the date of delivery of the Bonds will be initially funded by a transfer of funds from the CITY; and

WHEREAS, in order to adequately secure the Bonds on a long-term basis the CITY and the AUTHORITY have elected to enter into this Agreement whereby the CITY shall lease the existing and hereafter acquired SYSTEM to the AUTHORITY; and

WHEREAS, it is probable that in the future the CITY, the UTILITY BOARD and the AUTHORITY may desire that the AUTHORITY issue additional indebtedness payable from the Gross Revenues of the SYSTEM; and

WHEREAS, certain terms not defined for purposes of this Agreement shall be given the meaning set forth in the Indenture, unless such meaning presents a contradiction or renders the term without effect.

NOW, THEREFORE, IN CONSIDERATION of the issuance of the Bonds by the AUTHORITY and the acquisition and construction of the additions and betterments to the SYSTEM and in further consideration of the mutual covenants contained herein, THE CITY, THE UTILITY BOARD and THE AUTHORITY COVENANT AND AGREE AS FOLLOWS:

## ARTICLE I
## PROPERTY LEASED

The CITY, and the UTILITY BOARD for and in consideration of the covenants, agreements, provisions and conditions hereinafter set out on the part of the AUTHORITY to be kept, observed and performed, does by these presents demise, lease and let unto the AUTHORITY the property described as follows:

**(A)** All of the presently existing and hereafter acquired water systems of the CITY and all appurtenances thereof presently belonging to the CITY, or under its custody, management or control, located within and without the corporate limits of the CITY, together with the rights-of-way, real estate and interests therein, licenses, water rights, water storage rights, easements and other rights and privileges appertaining or related thereof and including but not limited to the real property and improvements thereto set out on Exhibit A attached hereto and made a part hereof;

**(B)** All interest of the CITY in and to all unexpired leases and contracts heretofore or hereafter executed by the CITY pertaining to use of any part of said water system, including any revenue and income to be received therefrom;

**(C)** All property, real, personal or mixed, together with all rights and privileges appertaining or related thereto which hereafter may be acquired by or in the name of the City or the AUTHORITY for use in connection with furnishing of water service to persons, firms, corporations and others within and without the corporate limits of the CITY; it being the intention of this paragraph that any of the foregoing, including income therefrom, immediately upon its acquisition shall be a part of the property demised and leased hereunder; and

**(D)** All interest of the CITY in and to proceeds, fees, charges, revenues, income, rents, receipts, issues and benefits from the use of said water system of the CITY.

*End of Article I*

ARTICLE II
TERM AND PURPOSE OF LEASE

TO HAVE AND TO HOLD THE SAME TO THE AUTHORITY for a term of fifty (50) years from the 1st day of February, 1984, to the 31st day of January, 2034, or to such date as all bonds or any indebtedness incurred by the AUTHORITY secured by and payable from the revenues of or any interest in the SYSTEM pursuant to the Indenture, or any portion thereof, have been paid or provisions for the payment thereof have been duly made.

The Leased Property is demised to the AUTHORITY for the purpose of enabling the AUTHORITY to assist the CITY in the execution and performance of the public functions of the CITY in respect of furnishing and providing an adequate water SYSTEM and services and facilities related thereto at all times during the term of this Agreement.

The CITY hereby consents and agrees that the AUTHORITY'S interest in the SYSTEM and the Gross Revenues to be derived therefrom may be assigned and pledged by the AUTHORITY as security for indebtedness to be incurred by the AUTHORITY.

*End of Article II*

ARTICLE III

COVENANTS AND AGREEMENTS OF THE CITY

In consideration of the covenants and agreements of the AUTHORITY, the AUTHORITY has agreed to establish and maintain the Operating Fund and the CITY will upon the delivery of the AUTHORITYS Bonds transfer funds to the Operating Fund to be used for the purposes specified herein. In connection with the Operating Fund the City shall act as the fiduciary-agent of the AUTHORITY, and the CITY shall promptly apply the moneys deposited therein to the uses and purposes specified in this Agreement and the Indenture. Subject to the proviso herein expressed the CITY may elect to deposit certain funds in the Operating Fund of the AUTHORITY and the CITY'S designated representative shall be empowered to draw upon such Operating Funds for the specific purposes prescribed in the Indenture. The AUTHORITY by official action shall designate an individual employee of the City as the CITY'S representative for purposes and uses of the Operating Fund. The

CITY and the UTILITY BOARD during the term of this Agreement subject to the inherent powers, duties and limitations expressed in the CITYS charter and applicable State law agree to cooperate and together to:

**A.** cooperate with the AUTHORITY in the adoption and approval of a schedule of uniform and non-discriminatory rates, fees and charges for the use of the SYSTEM and the facilities and services thereof all in accordance with the provisions set forth in the Indenture.

**B.** bill and collect rates, fees, tariffs and charges to each and every user of the SYSTEM and the facilities and services thereof and to enforce the payment of same by all available legal means including curtailment of service, and not to permit any free use of the SYSTEM and the facilities and services thereof except as may be furnished to or used by the CITY for municipal purposes and functions.

**C.** deposit the Gross Revenues on a daily basis, or as soon as practicable, to the credit of the Revenue Fund created pursuant to the Indenture or in the alternative subject to the conditions expressed herein to the Operating Fund as permitted by the Indenture or paragraph G of this Article III.

**D.** transfer funds from the Operating Fund of the Authority on or before the 25th day of each month in an amount sufficient to make all payments required under Section 5.05 paragraphs (1), (3), (4), (5) and (6) of the Indenture for the next succeeding month.

**E.** maintain books, accounts and records pertaining to the Operation and Maintenance Expenses of the SYSTEM, to account for such Operation and Maintenance Expenses and expenses for repairs, replacements and betterments of the SYSTEM; to account for all General Obligation Water Bond Contributions and Water Main Extension Payments and the General Fund Transfers remitted or caused to be remitted by the terms of the Indenture and to account for the General Fund Transfers, caused to be transferred in the manner prescribed herein or in the Indenture.

**F.** report or cause reports and recommendations, required to be submitted pursuant to the Indenture, to be furnished to the AUTHORITY (including but not limited to the direction as to the General Fund Transfers, projected monthly Operation and Maintenance Expenses, and recommendations as to the Renewal and Replacement Fund requirement).

**G.** Upon receipt of the Gross Revenues into the Revenue Fund, but in no case later than the 20th day of each month the Authority is to make (or cause to be made) the transfers or payments in the amounts and in the order of priority set-out in Section 5.05, of the Indenture. Provided however, if after the first month from the date of delivery of the Bonds and on or before the 25th day of each month thereafter the AUTHORITY shall have transferred from the Operating Fund to the Revenue Fund the amounts required under Section 5.05, paragraphs (1),(3),(4),(5) and (6) of the Indenture, the deposit of daily collections of Gross Revenues into the Revenue Fund shall not be required and such collections may be placed directly into the Operating Fund to be transferred as set-forth in the Indenture.

Assuming the timely application of the monies in the Operating Fund for the purposes above prescribed in paragraphs (1),(3),(4),(5) and (6) of Section 5.05 of the

Indenture, the Operating Fund shall be used to make the remaining transfers required by Section 5.05 of the Indenture. Under the terms of the proviso on or before the 10th of each month, the CITY shall advise the AUTHORITY by written statement of the sum of the actual monthly Operation and Maintenance Expenses for the last preceeding (sic) calendar month, and no later than the 20th day of each month the AUTHORITY shall provide for the payment of such Operation and Maintenance Expenses. Any failure to remit on the 25th day of each month the payments required to be made in the following month by Section 5.05 paragraphs (1),(3),(4),(5) and (6) of the Indenture, shall result in the daily deposit of Gross Revenues directly into the Revenue Fund, unless and until the AUTHORITY shall make current such remittances by the twenty-fifth (25th) day of the month.

**H.** prepare and file with the TRUSTEE written monthly statements, as follows: (a) on or before the 10th day of each month the actual Operation and Maintenance Expenses for the last preceeding (sic) calendar month and specifically setting-forth that amount either in excess of or less than the amount enumerated in the AUTHORITYS Annual Budget; (b) the CITYS require monthly General Obligation Water Bond Contribution if any, calculated for the last preceeding (sic) calendar month, and (c) the CITYS monthly obligation under the Water Main Extension Payments, if any, calculated for the last preceeding (sic) calendar month, and (d) the CITYS monthly General Fund Transfer calculated for the last preceeding (sic) calendar month. The foregoing statements for items (a),(b),(c) & (d) for the prior calendar month shall be filed with the TRUSTEE no later than the 10th of each month.

**I.** provide to the TRUSTEE, if the Trustee shall so require receipts as to such payments or remittances.

**J.** in the case of any monthly payments made on behalf of the AUTHORITY by the CITY from the Operating Fund and deposited into the various CITY funds and accounts established therefor, the CITY shall in all cases verify, receipt and account for such payments and transfers to the satisfaction of the AUTHORITY and the TRUSTEE.

**K.** make or cause the AUTHORITY to provide funds to make all necessary additions, extensions, replacements and improvements to the SYSTEM in order to keep the System in proper working and revenue producing order.

**L.** assist and cooperate with the AUTHORITY in the maintenance of the Operating Fund and compliance with the terms of the Indenture; and

**M.** cause the SYSTEM to be operated and maintained in first class condition and kept in good repair and not commit or allow any waste with respect to any of said property and to pay or cause to be paid or reimburse the CITY for the payment of the Operation and Maintenance Expenses of the SYSTEM. The term "Operation and Maintenance Expense(s)" means the reasonable and necessary current expenses of the AUTHORITY, the CITY or the UTILITY BOARD paid or accrued in operating, maintaining, repairing and insuring the SYSTEM, determined in accordance with generally accepted accounting procedures.

**N.** carry the insurance required to be carried by the AUTHORITY under the terms of the Indenture pertaining to any indebtedness incurred by the AUTHORITY.

**O.** keep the SYSTEM and each and every part thereof free and clear from all liens, claims and encumbrances of any nature or character whatever to the end and purpose that the priority of the liens and pledge provided for in the Indenture or other instruments securing or pertaining to any indebtedness of the AUTHORITY may at all time be maintained and preserved as paramount and superior.

**P.** take all necessary and appropriate actions to assist the AUTHORITY in observing and performing all of its duties and obligations imposed under any Indenture securing any of the indebtedness including but not limited to, the institution and protection of appropriate proceedings in eminent domain, and any and all action required to protect the resources required for the provision of a water supply adequate to meet the needs of the SYSTEM.

**Q.** take all prompt and diligent action necessary as it relates to the AUTHORITYS duty to establish and refer, or cause to be established and referred, for approval any revision of rates, fees and charges for the use of the SYSTEM and the facilities and services thereof so as to produce sufficient Gross Revenues to meet all legal requirements of the CITY, the AUTHORITY and the Indenture.

**R.** construct or assist the Authority in constructing any project and to provide for the supervision and administration of contracts for construction of the projects to be undertaken with the proceeds of any indebtedness or other available funds of the AUTHORITY, and the proceeds of any grants or gifts made available to the CITY by the AUTHORITY or any federal, state or private entity; to encumber (or to otherwise provide for the encumberance [sic]) said funds transferred to the CITY for purposes of constructing or acquiring (System) projects or materials; and further, to assist the AUTHORITY in advertising and preparing all documentation necessary to comply with the bidding requirements established by Oklahoma Law and to the extent the AUTHORITY provides funds the CITY hereby convenants (sic) to complete, or cause the completion, of the project or projects in accordance with the specification furnished by the AUTHORITY, the UTILITY BOARD and the CITY.

**S.** assist the AUTHORITY in the preparation of its Annual Budget. In this connection the information to be furnished by the CITY shall include but not necessarily be limited to: (i) monthly estimates based on historical data pertaining to Operation and Maintenance Expenses, (ii) estimates of renewal and replacement deposits for additions, respairs (sic) or betterments of the System, (iii) the monthly General Obligation Water Bond Contribution and Water Main Extension Payments and (iv) the estimated monthly General Fund Transfers set-forth as a percentage of Gross Revenues. The City shall be required to review and in its discretion approve the AUTHORITY'S Annual Budget prior to the same becoming effective.

**T.** provide the AUTHORITY no later than July 1 of each year with a certified copy of the offical (sic) action of the City whereby the City in its sole discretion assesses and establishes the General Fund Transfer, if any, set-forth as a percentage of Gross Revenues.

**U.** observe, abide by, perform and comply with all (a) conditions, requirements, duties and obligations intended to be performed by the CITY the terms of the Indenture or other instrument securing or pertaining to any indebtedness incurred by the AUTHORITY pertaining to the SYSTEM to the extent such Indenture shall have

been approved by the CITY, and (b) all requirements now or hereafter during the terms of this Agreement imposed by statute, rule, regulation or order enacted, adopted or issued by any competent governmental agency or authority (whether state or federal, legislative, executive or judicial).

**V.** In the event of the default of the AUTHORITY under the Indenture resulting in the appointment of a receiver or trustee (whether temporary or permanent) for the SYSTEM, perform all covenants and agreements contained herein with respect thereto, and if ordered by competent decree, to surrender possession of the SYSTEM for operating to such receiver or trustee.

**W.** So long as any bonds are outstanding under the Indenture, the City agrees not to issue any general obligation bonds for water system purposes, unless any resulting additional General Obligation Water Bond Contribution shall remain subordinated to all other Indenture payments. This covenant does not constitute a complete prohibition against the CITYS issuing such general obligation bonds in the future but does impose the condition that in order to do so, the Indenture must first be defeased, discharged or otherwise provided for to the satisfaction of the AUTHORITY and the TRUSTEE and this Agreement shall have been terminated.

*End of Article III*

ARTICLE IV
COVENANTS AND AGREEMENTS OF THE AUTHORITY

In consideration of the covenants and agreements of the CITY and the UTILITY BOARD, the AUTHORITY hereby covenants and agrees during the term of this Agreement to conduct its business and operations with respect to the SYSTEM in full recognition of its status as public trust with the CITY as the beneficiary thereof, and further the AUTHORITY covenants and agrees as follows:

**A.** to direct that the Gross Revenues collected by the CITY and deposited in the Revenue Fund or the Operating Fund as may be permitted by the Indenture are utilized in accordance with the terms of the Indenture including the payment to the CITY of the General Obligation Water Bond Contribution, if any, (to the appropriate Sinking Fund or Funds designated by the City), transfer the Water Main Extension Payments, if any, (to the appropriate fund or account designated by the City).

**B.** to pay or reimburse the CITY for the payment of Operation and Maintenance Expenses and to remit the General Fund Transfer.

**C.** to issue bonds, notes or other evidences of indebtedness for the purpose of providing funds for paying all or part of the costs of constructing or acquiring additions or improvements to the SYSTEM only after obtaining approval of the CITY as required by the terms of the CITYS Charter, Oklahoma Public Trust Act and the laws of the State of Oklahoma.

**D.** prepare and recommend for adoption a schedule of uniform and non-discriminatory rates, fees and charges for the use of the SYSTEM and the facilities and services thereof all in accordance with the provisions set-forth in the Indenture; and to present the same in the UTILITY BOARD and the CITY for approval and adoption as is required by the established procedures of the CITY, the CITY'S Charter and

other applicable Oklahoma law, and subject to such conditions to revise or cause the timely revision of the same from time to time so as to comply with any and all requirements and conditions upon it by any Indenture securing or pertaining to any of its indebtedness.

**E.** to furnish the CITY, upon request, unaudited financial statements and balance sheets relating to the operation of the SYSTEM and not more than 90 days after the close of each fiscal year (July 1, to June 30, unless changed hereafter) to furnish the CITY with a copy of its annual audit with the accompanying opinion of a Certified Public Accountant; and to prepare and file with the CITY any additional reports, statements or any other information relating to the SYSTEM as may be required pursuant to the terms of the Indenture securing any indebtedness of the AUTHORITY or as may be reasonably required by the CITY.

**F.** to do any and all things necessary and appropriate in performing its purposes and functions within and under the scope of its powers, duties and obligations now or hereafter as may be required by law or contained in the Trust Indenture creating and establishing the AUTHORITY or as may be contained in any Indenture securing any indebtedness of the AUTHORITY.

**G.** keep the SYSTEM and each and every part thereof free and clear from all liens, claims and encumbrances of any nature or character whatever to the end and purpose that the priority of the liens and pledge provided for in the Indenture or other instruments securing or pertaining to any indebtedness of the AUTHORITY may at all time be maintained and preserved as paramount and superior.

*End of Article IV*

ARTICLE V
MISCELLANEOUS

SECTION 1. This Agreement may be amended by agreement among the CITY, the UTILITY BOARD and the AUTHORITY, provided any such amendment shall be subject to provisions of the Indenture. The AUTHORITY and the CITY may consent to amendment of this Agreement to the extent permitted by law for the purpose of curing any ambiguity, formal defect or omission or providing additional security or in connection with the issuance of additional indebtedness for additions or improvements or to meet any requirements imposed by the Charter or any other law, order, regulation or ruling.

SECTION 2. Any indebtedness issued by the AUTHORITY shall not constitute an indebtedness of the State of Oklahoma, nor of the CITY, nor shall such indebtedness be the personal obligation of the Trustees of the AUTHORITY, but such indebtedness shall be an obligation of the AUTHORITY payable solely from the Gross Revenues derived from the SYSTEM or the trust estate; notwithstanding the foregoing, any such indebtedness shall be considered as issued "on behalf of" the CITY, for the purpose of and as defined by the Internal Revenue Code of 1954, as amended, and certain regulations and rulings promulgated thereunder.

SECTION 3. The CITY, the UTILITY BOARD and the AUTHORITY declare that this Agreement shall be a third party beneficiary contract with any bank or trust company appointed by any Indenture securing any indebtedness of the AUTHORITY, as Trustee for the holders thereof, being the third party beneficiary. Insofar as this Agreement or any such

Indenture bestows any rights, powers or privileges upon such bank or such holders, the CITY, the UTILITY BOARD and the AUTHORITY expressly agree that such bank or holders, as may be provided in such Indenture, may enforce this Agreement to the fullest extent permitted by law.

SECTION 4. The provisions of this Agreement shall be deemed severable. If it shall ever be held by a court of competent jurisdiction that any one or more articles, sections, clauses or provisions of this Agreement is invalid or ineffective for any reason, such holding shall not affect the validity and effectiveness of the remaining articles, sections, clauses and provisions hereof.

IN WITNESS WHEREOF, the CITY by its Board of Commissioners has caused this Agreement to be executed by the Mayor, attested by the City Auditor and has caused its seal to be affixed hereto, the UTILITY BOARD has caused this Agreement to be executed by its Chairman and attested by its Secretary and has caused its seal to be affixed hereto, and the Authority has caused this Agreement to be executed by its Chairman and attested by its Secretary and has caused its seal to be affixed hereto all as of the day and year above written.

CITY OF TULSA, OKLAHOMA
Lesser

/s/ James M. Inhofe
James M. Inhofe, Mayor

(SEAL)

ATTEST:

/s/ Francis F. Campbell
Francis F. Campbell,
City Auditor

APPROVED:

/s/ Neal McNeill
Neal McNeill, City Attorney

UTILITY BOARD

/s/ Patty Eaton
Patty Eaton, Chairman

(SEAL)

ATTEST:

/s/ Ed A. Schermerhorn
Ed A. Schermerhorn,
Secretary

TULSA METROPOLITAN WATER
AUTHORITY, Lessee

/s/ Patty Eaton
Patty Eaton, Chairman

(SEAL)

ATTEST:

/s/ Travis W. Freeman
Travis W. Freeman,
Secretary

[ACKNOWLEDGMENTS]

"EXHIBIT A"

REAL ESTATE DESCRIPTION

The hereinafter described Real Property constitutes part of the Trust Estate held in respect to the Water Revenue Bonds, as defined herein. No mortgage interest is granted, bargained, mortgaged and conveyed pursuant to this Bond Indenture and no mortgage interest upon the leasehold shall result from this description. This Legal Description is included for purposes of filing and notice.

SW-Quarter of the NE-Quarter and the East Half of the NW-Quarter of NE-Quarter and the East Half of the West Half of the NW Quarter of the NE Quarter of Section 13 Township 19N Range 14 East in Tulsa County Oklahoma containing 70 acres more or less.

The West Half of the SE Quarter less the North 330 feet thereof of Section 12, T-19-N, R-14-B in Tulsa County Oklahoma containing 70 acres more or less and the West half of the West Half of the NW Quarter of NE Quarter of Section 13, T-19-N, R-14-E in Tulsa County Oklahoma containing 10 acres more or less.

East half of the NW Quarter and the East Half of the West Half of NW Quarter of Section 13, T-19-N, R-14-S in Tulsa County Oklahoma.

East half of the SW Quarter of Section 13, T-19-N, R-14-E of the Indian Base and Meridian.

All that part of the NW-Quarter, SW Quarter, SE Quarter of Section 13, T-19-N, R-14-E of the Indian Base and Meridian in Tulsa County Oklahoma describes as follows: Beginning at the NE Corner of said NW-Quarter, SW-Quarter, SE-Quarter, thence Southwesterly in a straight line to the SW Corner of said, NW-Quarter, SW-Quarter, SE Quarter thence Northerly along West boundary of said NW-Quarter, SW-Quarter, SE-Quarter to the NW Corner thereof, thence Easterly along N boundary of said NW-Quarter, SW-Quarter, SE-Quarter to point of beginning, containing 5 acres more or less.

The NW-Quarter of SE-Quarter of Section 13, T-19-N, R-14-E, Tulsa County State of Oklahoma.

East 1/2 SE-Quarter of Section 12, T-19-N, R-14-E in Tulsa County Oklahoma containing 80 acres more or less.

## CERTIFICATE OF PRINCIPAL OFFICE AND PERSONNEL

STATE OF OKLAHOMA )
) ss:

COUNTY OF TULSA )

**I,** the undersigned, the duly qualified and acting Chairman of Trustees of the Tulsa Metropolitan Utility Authority, a public trust (the "Authority"), hereby certify:

**(1)** That the principal office of the Authority and the place where all records of the Authority are kept is the City Hall, 200 Civic Center, Tulsa, Oklahoma.

**(2)** That the personnel of the Trustees of the Authority are:

Charlie L. King
Ed A. Schermerhorn
Jack Brown
Richard Sevenoaks
Mary Ann Bumgarner
Daniel C. Keating
Rodger A. Randle

/s/ Charlie L. King
Chairman of Trustees

ATTEST:

/s/ Jack L. Brown
Secretary

SUBSCRIBED AND SWORN to before me this 15th day of September, 1989.

/s/ Deborah J. Wise
Notary Public

My Commission Expires: January 10, 1993

(SEAL)

October 12, 1987

Mr. Clifton Scott
State Auditor and Inspector
State Capitol Building
Oklahoma City, Oklahoma 73105

Re: The Tulsa Metropolitan Water Authority

Gentlemen:

Pursuant to the requirements of 60 O.S. Section 180.2, the undersigned hereby certifies that the fiscal year of the captioned Public Trust commenced on July 1 and closes on June 30, annually.

In addition, you are hereby notified, as required by 60 O.S. Section 180.2, that a certified copy of the Trust Indenture creating the captioned Authority has been filed with the Secretary of State.

Very truly yours,

/s/ H. Adams

Chairman of Trustees
Tulsa Metropolitan Water Authority

## APPENDIX IV RESOLUTION

A RESOLUTION PROVIDING FOR THE AMENDMENT OF THE AUTHORITY'S DECLARATION OF TRUST DATED APRIL 5, 1957, AS AMENDED, PROVIDING FOR SELECTION OF A CHAIRMAN OF TRUSTEES, AND CHANGING THE NAME OF THE AUTHORITY; APPROVING A SECOND AMENDMENT TO DECLARATION OF TRUST; AND CONTAINING OTHER PROVISIONS RELATING THERETO.

WHEREAS, the Authority was created by a Trust Indenture, dated as of April 5, 1957, as amended (the "Trust Indenture"), for the use and benefit of the City of Tulsa, Oklahoma (the "City"), under authority of and pursuant to the provisions of Title 60, Oklahoma Statutes 1981, Sections 176 to 180.3, inclusive, as amended and supplemented, and other applicable statues of the State of Oklahoma; and

WHEREAS, the Authority and each Trustee thereto has determined to amend the Trust Indenture to change the name of the Authority and to provide for selection of a Chairman of Trustees; and

WHEREAS, there has been presented to this meeting a form of Second Amendment to Declaration of Trust between the Authority and the City of Tulsa, Oklahoma, and the Utility Board of the City of Tulsa, Oklahoma; and

BE IT RESOLVED BY THE TRUSTEES OF THE TULSA METROPOLITAN WATER AUTHORITY:

Section 1. The amendment of the Declaration of Trust of the Authority as set forth in the Second Amendment to Declaration of Trust is hereby authorized, agreed to, consented and approved by the Trustees of the Authority.

Section 2. The form of Second Amendment to Declaration of Trust presented to this meeting be, and hereby is approved, and each Trustee of the Authority be, and they hereby are, authorized, directed and empowered to execute and deliver in their name the Second Amendment to Declaration of Trust.

ADOPTED the 23rd day of August, 1989.

/s/ Charlie L. King
Chairman of Trustees

ATTEST:

/s/ Jack L. Brown
Secretary of Trustees

(SEAL)

I, the undersigned, the duly qualified and acting Secretary of Trustees of The Tulsa Metropolitan Water Authority, hereby certify that the foregoing is a true, correct and complete copy of a Resolution of the Trustees of the Authority held on the date therein stated as the same appears in the minutes of said meeting on file in my office as a part of the official records thereof. I further certify that a true and complete copy of the schedule of regularly scheduled meetings of the Authority for calendar year 1989 attached hereto as Exhibit "A" was filed in the office of the City Auditor of the City of Tulsa, Oklahoma. I further certify that a true and correct copy of the Agenda attached hereto as Exhibit "B"

was posted in prominent public view on the ninth floor bulletin board at the City Hall, Tulsa, Oklahoma, twenty-four (24) hours prior to the date of the meeting therein described, excluding Saturdays, Sunday, and legal obligations, all in compliance with the Oklahoma Open Meeting Law.

WITNESS my hand and seal of said Authority this 23rd day of August, 1989.

_____
Secretary of Trustees

(SEAL)

## APPENDIX V SECOND AMENDMENT TO DECLARATION OF TRUST (SECTIONS 310 AND 311)

*(Ord. No. 17220)*

KNOW ALL MEN BY THESE PRESENTS:

This Second Amendment to Declaration of Trust dated this 23rd day of August, 1989, by and among the Board of Commissioners of the City of Tulsa, Oklahoma, the Utility Board of the City of Tulsa, Oklahoma and the Tulsa Metropolitan Water Authority hereby amends that certain Declaration of Trust dated April 5, 1957 as previously amended by that certain Amendment to Trust Indenture (collectively the "Declaration of Trust") in the following respects:

Section 1. Article II of the Declaration of Trust is hereby amended in its entirety to read as follows:

"II.
NAME

The name of this Trust shall be, and the Trustees in their representative fiduciary capacity shall be designated as

"**TULSA METROPOLITAN UTILITY AUTHORITY**"

Under that name they shall, so far as practicable, conduct all business and execute all instruments in writing and otherwise perform their duties and functions in the execution of this Trust."

Section 2. From and after May 8, 1990, paragraph (c) of Article VI of the Declaration of Trust shall be amended in its entirety to read as follows:

"(c)" The Mayor of the City of Tulsa or any authorized representative of the Mayor empowered to act and vote as member of the Tulsa Utility Board pursuant to the amended Charter of the City of Tulsa shall ex officio serve as the Chairman of the Trustees and preside at all meetings and perform other duties designated by the Trustees. The Trustees may elect from their members a Vice-Chairman and a Secretary. The Vice-Chairman shall act in place of the Chairman during the latter's absence or incapacity to act."

Section 3. The Declaration of Trust and this Second Amendment to Declaration of Trust shall be read, construed and constructed to be one and the same document.

IN WITNESS WHEREOF, the Mayor of the City of Tulsa, the Chairman of the Utility Board of the City of Tulsa and the individual Trustees of the Authority have executed this document as of the date above first written.

BOARD OF COMMISSIONERS OF
THE CITY OF TULSA, OKLAHOMA

/s/ Rodger A. Randle
Mayor

ATTEST:

/s/ Philip W. Wood
City Auditor

APPROVED:

/s/ Neal E. McNeill
City Attorney

THE UTILITY BOARD OF THE
CITY OF TULSA, OKLAHOMA

/s/ Charlie L. King
Chairman

ATTEST:

/s/ Jack L. Brown
Secretary

(SEAL)

APPROVED:

/s/ R. James Unruh
Utility Board Attorney

TULSA METROPOLITAN WATER
AUTHORITY

/s/ Charlie L. King
Charlie L. King, Trustee

/s/ Ed A. Schermerhorn
Ed A. Schermerhorn, Trustee

/s/ Jack L. Brown
Jack L. Brown, Trustee

/s/ Richard Sevenoaks
Richard Sevenoaks, Trustee

/s/ Mary Ann Bumgarner
Mary Ann Bumgarner,
Trustee

/s/ Daniel G. Keating
Daniel G. Keating, Trustee

/s/ Rodger A. Randle
Rodger A. Randle, Trustee

[ACKNOWLEDGMENTS]

## ACCEPTANCE OF BENEFICIAL INTEREST

KNOW ALL MEN BY THESE PRESENTS:

That the City of Tulsa, Oklahoma, a municipal corporation acting by and through the Utility Board of the City of Tulsa, and by and through the general governing body of said municipality, hereby accepts the beneficial interest in the trust created by the Declaration of Trust as amended by the Amendment to Trust Indenture and Second Amendment to Declaration of Trust, for an in behalf of said municipality, in all respects in accordance with the terms of said Declaration of Trust.

IN WITNESS WHEREOF, the Chairman of the Utility Board of the City of Tulsa, pursuant to the authority and direction of said Board on this date, and the Mayor of the City of Tulsa, pursuant to the authority and direction of Ordinance No. 17220 of said City, effective this date, hereunto have set our hands and caused to be affixed the requisite official seals, this 25th day of August, 1989.

/s/ Charlie L. King
Chairman, Utility Board of the
City of Tulsa, Oklahoma

ATTEST:

/s/ Jack L. Brown
Secretary

/s/ Rodger A. Randle
Mayor of the City of Tulsa, Oklahoma

ATTEST:

/s/ Philip W. Wood
City Auditor

# APPENDIX VI WASTEWATER SYSTEM LEASE AGREEMENT AND OPERATION AND MAINTENANCE CONTRACT (SECTIONS 312 AND 313)

*(Ord. No. 17221)*

THIS WASTEWATER SYSTEM LEASE AGREEMENT AND OPERATION AND MAINTENANCE CONTRACT (hereinafter called "Agreement"), dated as of July 1, 1989, by and between the CITY OF TULSA, OKLAHOMA, as Lessor (hereafter called the "City"), a municipal corporation, the UTILITY BOARD OF THE CITY OF TULSA (the "Utility Board"), a board of the City, with exclusive powers and authority over the operation, management and control of the System, as defined herein, under the Charter of the City, and the TULSA METROPOLITAN UTILITY AUTHORITY, acting by and through its trustees, as Lessee, (hereinafter called the "Authority"), a public trust created under the authority of and pursuant to the provisions of Title 60, Oklahoma Statutes 1981, Sections 176, et seq., as amended and supplemented, which Agreement, from and after its execution and delivery, shall supersede, replace and be substituted for any and all previously executed lease agreements, if any, between the City, the Utility Board and the Authority, pertaining to the hereinafter described "System".

WITNESSETH:

WHEREAS, said Authority is a public trust created and existing pursuant to the provisions of Title 60 Okla. Stats. (176 et. seq., and the Oklahoma Trust Act and by a certain Trust Indenture initially dated as of April 5, 1957, as amended, for the use and benefit of the City of Tulsa, Oklahoma; and

WHEREAS, the City, with the approval of the Utility Board, is desirous of entering into this Agreement whereby the City will lease to the Authority all of its presently existing and hereafter acquired sanitary sewer and wastewater treatment and disposal system, including, but not limited to, collection systems, treatment facilities and plants, and lift stations (all as more fully defined in Article I hereof, herein called the "System"); and

WHEREAS, under and pursuant to certain provisions of the Charter of the City of Tulsa, it is the policy of the City to remit to the Sinking Fund of the City an amount equal to fifty percent (50%) of the annual principal and interest requirement upon the City's outstanding general obligation sanitary sewer and wastewater treatment and disposal bonds (the "General Obligation Wastewater Bond Contribution") from the total amount of revenues received in respect to the System (the "Gross Revenues"); and

WHEREAS, the Gross Revenues are necessary to the securing and payment of any bonds or other indebtedness of the Authority now or hereafter issued and secured by the System (hereinafter "Bonds") to pay the Operation and Maintenance Expenses incurred in respect to the System to provide for payment of the General Obligation Wastewater Bond Contribution, if any, and to make all other payments related or charged to the System; and

WHEREAS, certain of the revenues derived from the operation of the System historically have been paid or transferred to the City to defray a portion of the costs of City government (the "General Fund Transfer"); and

WHEREAS, it is contemplated that the General Fund Transfer for each year will be established each year by the budget of the City, during the term of this Agreement; and

WHEREAS, the Authority and the City contemplate that monthly transfers or payments will be made from the Gross Revenues from time to time including: (i) the principal and interest requirements on any bonds, (ii) the Operation and Maintenance Expenses (herein defined), (iii) deposits, if any, to renewal and replacement funds of the Authority, (iv) the General Obligation Wastewater Bond Contribution, if any, and (v) the General Fund Transfer; and

WHEREAS, the City, acting by and through the Utility Board, has historically operated and maintained the System and accordingly, the City has kept the books, accounts and records pertaining to the System and all funds and accounts pertaining thereto; and

WHEREAS, in order to ensure the efficient operation and maintenance of the System, the Authority is desirous of continuing the arrangement whereby the City shall operate and maintain the System; and

WHEREAS, the Authority is desirous of reimbursing the City for Operation and Maintenance Expenses incurred in respect to the System and paying the other Operation and Maintenance Expenses incurred in respect to the System; and

WHEREAS, in order to expedite the most efficient means of: (i) paying the principal and interest requirements on any bonds, (ii) making payments, if necessary, into any renewal and replacement reserve, (iii) paying or reimbursing the City for the monthly costs incurred in connection with the operation and maintenance of the System, (iv) paying the monthly General Obligation Wastewater Bond Contribution, if any, to the appropriate City funds and accounts, and (v) paying the monthly General Fund Transfer established by the City, and for other reasons of general operation, the Authority has created a Revenue Fund and an Operating Fund; and

WHEREAS, the Operating Fund will be initially funded by an appropriation of funds from the City; and

WHEREAS, in order to adequately secure any bonds on a long-term basis, the City and the Authority have elected to enter into this Agreement whereby the City shall lease the existing and hereafter acquired System to the Authority; and

WHEREAS, it is probable that in the future the City, the Utility Board and the Authority may desire that the Authority incur indebtedness payable from the Gross Revenues of the System.

NOW, THEREFORE, IN CONSIDERATION OF THE MUTUAL COVENANTS CONTAINED HEREIN, THE CITY, THE UTILITY BOARD AND THE AUTHORITY COVENANT AND AGREE AS FOLLOWS:

## ARTICLE I

## PROPERTY LEASED

The City, and the Utility Board for and in consideration of the covenants, agreements, provisions and conditions hereinafter set out on the part of the Authority to be kept, observed and performed, does by these presents demise, lease and let unto the Authority the property described as follows:

**(A)** All of the presently existing and hereafter acquired sanitary sewer and wastewater collection, transportation, processing and disposal system and facilities of the City

and all appurtenances thereof presently belonging to the City, or under its custody, management, or control, located within and without the corporate limits of the City, together with the rights-of-way, real estate and interests therein, licenses, easements and other rights and privileges appertaining or related to such system and facilities or the use thereof, and including, but not limited to, the real property and improvements thereto set out on "Exhibit A" attached hereto and made a part hereof;

**(B)** All interest of the City in and to all unexpired leases and contracts heretofore or hereafter executed by the City pertaining to use of any part of said sanitary sewer and wastewater system, including any revenue and income to be received therefrom;

**(C)** All property, real, personal or mixed, together with all rights and privileges appertaining or related thereto which hereafter may be acquired by or in the name of the City or the Authority for use in connection with the sanitary sewer and wastewater system and in connection with the furnishing of service to persons, firms, corporations and others within and without the corporate limits of the City; it being the intention of this paragraph that any of the foregoing, including income therefrom, immediately upon its acquisition shall be a part of the property demised and leased hereunder; and

**(D)** All interest of the City in and to proceeds, fees, charges, revenues, income, rents, receipts, issues and benefits from the use of said sanitary sewer and wastewater system of the City.

*End of Article I*

ARTICLE II

TERM AND PURPOSE OF LEASE

TO HAVE AND TO HOLD THE SAME TO THE AUTHORITY for a term of fifty (50) years from the 1st day of July, 1989, to the 30th day of June, 2039, or to such date as all bonds or any indebtedness incurred by the Authority secured by and payable from the revenues of or any interest in the System, or any portion thereof, have been paid or provisions for the payment thereof have been duly made.

The Leased Property is demised to the Authority for the purpose of enabling the Authority to assist the City in the execution and performance of the public functions of the City in respect of furnishing and providing an adequate sanitary sewer and wastewater system and services and facilities related thereto at all times during the term of this Agreement.

The City hereby consents and agrees that the Authority's interest in the System and the Gross Revenues to be derived therefrom may be assigned and pledged by the Authority as security for indebtedness to be incurred by the Authority.

*End of Article II*

ARTICLE III

COVENANTS AND AGREEMENTS OF THE CITY

In consideration of the covenants and agreements of the Authority, the Authority has agreed to establish and maintain the Operating Fund and the Revenue Fund and the City

will transfer funds to the Operating Fund to be used for the purposes specified herein. In connection with the Operating Fund, the City shall act as the fiduciary-agent of the Authority, and the City shall promptly apply the monies deposited therein to the uses and purposes specified in this Agreement. Subject to the proviso herein expressed, the City may elect to deposit certain funds in the Operating Fund of the Authority and the City's designated representative shall be empowered to draw upon such Operating Fund for the specific purposes prescribed herein. The Authority, by official action, shall designate an individual employee of the City as the City's representative for purposes and uses of the Operating Fund. The City and the Utility Board, during the term of this Agreement, subject to the inherent powers, duties and limitations expressed in the City's charter and applicable State law, agree to cooperate and together to:

**A.** cooperate with the Authority in the adoption and approval of a schedule of uniform and non-discriminatory rates, fees and charges for the use of the System and the facilities and services thereof.

**B.** bill and collect rates, fees, tariffs and charges to each and every user of the System and the facilities and services thereof and to enforce the payment of same by all available legal means, including curtailment of service, and not to permit any free use of the System and the facilities and services thereof except as may be furnished to or used by the City for municipal purposes and functions.

**C.** deposit the Gross Revenues on a daily basis, or as soon as practicable, to the credit of the Revenue Fund or, in the alternative, subject to the conditions expressed herein, to the Operating Fund.

**D.** transfer funds from the Operating Fund of the Authority on or before the time needed therefor and in such amounts as may be directed by the Authority.

**E.** maintain books, accounts and records pertaining to the Operation and Maintenance Expenses of the System, to account for such Operation and Maintenance Expenses and expenses for repairs, replacements and betterment of the System; to account for all General Obligation Wastewater Bond Contributions and to account for the General Fund Transfers, caused to be transferred in the manner prescribed herein.

**F.** report or cause reports and recommendations requested by the Authority, to be furnished to the Authority (including, but not limited to, the direction as to the General Fund Transfers, and projected monthly Operation and Maintenance Expenses.

**G.** prepare and file with the Authority written monthly statements, as follows: (a) on or before the 10th day of each month the actual Operation and Maintenance Expenses for the last preceding calendar month and specifically setting forth that amount either of or less than the amount enumerated in the Authority's Annual Budget; (b) the City's required monthly General Obligation Wastewater Bond Contribution, if any, calculated for the last preceding calendar month, and (c) the City's monthly General Fund Transfer calculated for the last preceding calendar month.

**H.** provide to the Authority, if the Authority shall so require, receipts as to such payments or remittances.

**I.** In the case of any monthly payments made on behalf of the Authority by the City from the Operating Fund and deposited into the various City funds and accounts established therefor, the City shall in all cases verify, receipt and account for such payments and transfers to the satisfaction of the Authority.

**J.** make or cause the Authority to provide funds to make all necessary additions, extensions, replacements and improvements to the System in order to keep the System in proper working and revenue producing order.

**K.** assist and cooperate with the Authority in the maintenance of the Operating Fund.

**L.** cause the System to be operated and maintained in first class condition and kept in good repair and not commit or allow any waste with respect to any of said property and to pay or cause to be paid or reimburse the City for the payment of the Operation and Maintenance Expenses of the System. The term "Operation and Maintenance Expense(s)" means the reasonable and necessary current expenses of the Authority, the City or the Utility Board paid or accrued in operating, maintaining, repairing and insuring the System, determined in accordance with generally accepted accounting procedures.

**M.** carry the insurance required to be carried by the Authority under the terms of any indenture pertaining to any indebtedness incurred by the Authority.

**N.** keep the System and each and every part thereof free and clear form all liens, claims and encumbrances of any nature or character whatever to the end and purpose that the priority of the liens and pledge provided for in any indenture or other instruments securing or pertaining to any indebtedness of the Authority may at all times be maintained and preserved as paramount and superior.

**O.** take all necessary and appropriate actions to assist the Authority in observing and performing all of its duties and obligations imposed under any indenture securing any indebtedness of the Authority, including, but not limited to, the institution and protection of appropriate proceedings in eminent domain, and any and all action required to protect the sources required for the provision of sanitary sewer and wastewater facilities supply adequate to meet the needs of the System.

**P.** take all prompt and diligent action necessary as it relates to the Authority's duty to establish and refer, or cause to be established and referred, for approval any revision of rates, fees and charges for the use of the System and the facilities and services thereof so as to produce sufficient Gross Revenues to meet all legal requirements of the City and the Authority.

**Q.** construct or assist the Authority in constructing any project and to provide for the supervision and administration of contracts for construction of the projects to be undertaken with the proceeds of any indebtedness or other available funds of the Authority, and the proceeds of any grants or gifts made available to the City by the Authority or any federal, state or private entity; to encumber (or to otherwise provide for the encumbrance) said funds transferred to the City for purposes of constructing or acquiring (System) projects or materials; and further, to assist the Authority in advertising and preparing all documentation necessary to comply with the bidding requirements established by Oklahoma law and to the extent the Authority provides funds the City hereby covenants to complete, or cause the completion of the project or projects in accordance with the specifications furnished by the Authority, the Utility Board and the City.

**R.** assist the Authority in the preparation of its Annual Budget. In this connection the information to be furnished by the City shall include, but not necessarily be limited to: (i) monthly estimates based on historical data pertaining to Operation and Maintenance Expenses, (ii) estimates of renewal and replacement deposit for additions, repairs or betterment of the System, (iii) the monthly General Obligation Wastewater Bond Contribution and (iv) the estimated monthly General Fund Transfers set forth as a percentage of Gross Revenues. The City shall be required to review and in its discretion approve the Authority's annual Budget prior to the same becoming effective.

**S.** provide the Authority no later than July 1 of each year with a certified copy of the official action of the City whereby the City, in its sole discretion, assesses and establishes the General Fund Transfer, if any, set forth as a percentage of Gross Revenues.

**T.** observe, abide by, perform and comply with all (a) conditions, requirements, duties and obligations intended to be performed by the City under the terms of any indenture or other instrument securing or pertaining to any indebtedness incurred by the Authority pertaining to the System to the extent such indenture shall have been approved by the City, and (b) all requirements now or hereafter during the terms of this Agreement imposed by statute, rule, regulation or order enacted, adopted or issued by any competent governmental agency or authority (whether state or federal, legislative, executive or judicial).

**U.** In the event of the default of the Authority under any indenture resulting in the appointment of a receiver or trustee (whether temporary or permanent) for the System, perform all covenants and agreements contained herein with respect thereto, and if ordered by competent decree, to surrender possession of the System for operation to such receiver or trustee.

*End of Article III*

## ARTICLE IV

## COVENANTS AND AGREEMENTS OF THE AUTHORITY

In consideration of the covenants and agreements of the City and the Utility Board, the Authority hereby covenants and agrees during the term of this Agreement to conduct its business and operations with respect to the System in full recognition of its status as public trust with the City as the beneficiary thereof, and further, the Authority covenants and agrees as follows:

**A.** to direct that the Gross Revenues collected by the City and deposited in the Revenue Fund or the Operating Fund are utilized in accordance with the terms hereof or any indenture securing indebtedness of the Authority secured by Gross Revenues of the System, including the payment to the City of the general Obligation Wastewater Bond Contribution, if any (to the appropriate Sinking fund or Funds designated by the City).

**B.** to pay or reimburse the City for the payment of Operation and Maintenance Expenses and to remit the General Fund Transfer.

**C.** to issue bonds, notes or other evidences of indebtedness for the purpose of providing funds for paying all or part of the costs of constructing or acquiring

additions or improvements to the System only after obtaining approval of the City as required by the terms of the City's Charter, Oklahoma Pubic (sic) Trust Act and the laws of the State of Oklahoma.

**D.** to prepare and recommend for adoption a schedule of uniform and non-discriminatory rates, fees and charges for the use of the System and the facilities and services thereof; and to present the same to the Utility Board and the City for approval and adoption as is required by the established procedures of the City, the City's charter and other applicable Oklahoma law, and subject to such conditions to revise or cause the timely revision of the same from time to time so as to comply with any and all requirements and conditions upon it by any indenture securing or pertaining to any of its indebtedness.

**E.** to furnish the City, upon request, unaudited financial statements and balance sheets relating to the operation of the System and not more than ninety (90) days after the close of each fiscal year (July 1 to June 30, unless changed hereafter) to furnish the City with a copy of its annual audit with the accompanying opinion of a Certified Public Accountant; and to prepare and file with the City any additional reports, statements or any other information relating to the System as may be required pursuant to the terms of any indenture securing any indebtedness of the Authority or as may be reasonably required by the City.

**F.** to do any and all things necessary and appropriate in performing its purposes and functions within and under the scope of its powers, duties and obligations now or hereafter as may be required by law or contained in the Declaration of Trust creating and establishing the Authority or as may be contained in any indenture securing any indebtedness of the Authority.

**G.** keep the System and each and every part thereof free and clear from all liens, claims and encumbrances of any nature or character whatever to the end and purpose that the priority of the liens and pledge provided for in any indenture or other instruments securing or pertaining to any indebtedness of the Authority may at all times be maintained and preserved as paramount and superior.

*End of Article IV*

ARTICLE V

MISCELLANEOUS

SECTION 1. This Agreement may be amended by agreement among the City, the Utility Board and the Authority. The Authority, the Utility Board and the City may consent to amendment of this Agreement to the extent permitted by law for the purpose of curing any ambiguity, formal defect or omission or providing additional security or in connection with the issuance of indebtedness for additions or improvements or to meet any requirements imposed by the Charter or any other law, order, regulation or ruling.

SECTION 2. Any indebtedness issued by the Authority shall not constitute an indebtedness of the State of Oklahoma, nor of the City, nor shall such indebtedness be the personal obligation of the Trustees of the Authority, but such indebtedness shall be an obligation of the Authority payable solely from the Gross Revenues derived from the

System; notwithstanding the foregoing, any such indebtedness shall be considered as issued "on behalf of" the City, for the purpose of and as defined by the Internal Revenue Code of 1986, as amended, and regulations and rulings promulgated thereunder.

SECTION 3. The City, the Utility Board and the Authority declare that this Agreement shall be a third party beneficiary contract with any bank or trust company appointed by any indenture securing any indebtedness of the Authority, as Trustee for the holders thereof, being the third party beneficiary. Insofar as this Agreement or any such indenture bestows any rights, powers or privileges upon such bank or such holders, the City, the Utility board and the Authority expressly agree that such bank or holders, as may be provided in such indenture, may enforce this Agreement to the fullest extent permitted by law.

SECTION 4. The provisions of this Agreement shall be deemed severable. If it shall ever be held by a court of competent jurisdiction that any one or more articles, sections, clauses or provisions of this Agreement is invalid or ineffective for any reason, such holding shall not affect the validity and effectiveness of the remaining articles, sections, clauses and provisions hereof.

IN WITNESS WHEREOF, the City, by its Board of Commissioners, has caused this Agreement to be executed by the Mayor, attested by the City Auditor and has caused its seal to be affixed hereto, the Utility Board has caused this Agreement to be executed by its Chairman and attested by its Secretary and has caused its seal to be affixed hereto, and the Authority has caused this Agreement to be executed by its Chairman and attested by its Secretary and has caused its seal to be affixed hereto all to be effective as of the day and year above written.

CITY OF TULSA, OKLAHOMA

By: /s/ Rodger A. Randle
Mayor

ATTEST:

/s/ Philip W. Wood
City Auditor

(SEAL)

APPROVED:

/s/ Neal E. McNeill
City Attorney

"LESSOR"

UTILITY BOARD OF THE
CITY OF TULSA, OKLAHOMA

By: /s/ Charlie L. King
Chairman

TULSA METROPOLITAN UTILITY
AUTHORITY

ATTEST:

By: /s/ Charlie L. King
Chairman

/s/ Jack L. Brown
Secretary

(SEAL)

[ACKNOWLEDGMENTS]

## "EXHIBIT A" - LEGAL DESCRIPTION

All that part of the Southeast Quarter of the Northwest Quarter (SE/4 NW/4) lying West of the Railroad Right-of-Way in Section 12, Township 18 North, Range 12 East, Indian Base and Meridian Tulsa County, Oklahoma, adjacent to and abutting the City of Tulsa land to the South, containing 37 acres more or less, including one-half (1/2) all mineral rights.

### NORTHEAST INDUSTRIAL DISTRICT

Block Two (2), NORTHEAST INDUSTRIAL DISTRICT, a subdivision of the SW1/4 of Section 6, Township 20 North, Range 14 East of the Indian Base and Meridian, Tulsa County, State of Oklahoma, according to the recorded Plat No. 2266, LESS AND EXCEPT the following described tract: BEGINNING at a point 40 feet North and 725.79 feet, more or less East of the SW corner of said Section 6; thence due East along a line parallel with the South line of said Section a distance of 995.0 feet; thence North along a line parallel with and 848.91 feet West of the East line of the SW1/4 of said Section a distance of 1955.55 feet; thence S 27 5'30" W along the Westerly boundary line of said Lot 2 a distance of 2184.70 feet to the POINT OF BEGINNING.

### SLUDGE BEDS

Lots Eight (8) and Nine (9) of Section One (1), Township Eighteen (18) North, Range Twelve (12) East of the Indian Base and Meridian, Tulsa County, Oklahoma and the Northeast Quarter (NE1/4) of the Northwest quarter (NW1/4) and Lot Two (2) of Section Twelve (12), Township Eighteen (18) North, Range Twelve (12) East, of the Indian Base and Meridian, Tulsa County, Oklahoma containing one hundred eighteen and seventy-six hundredths (118.76) acres, more or less.

Part of Lot 3 in the NE/4 in Section 12, and part of SE/4 NW/4 of Section 12, all in Township 18 North, Range 12 East, of the Indian Base and Meridian Tulsa County, State of Oklahoma, more particularly described as follows: Starting at the North East corner of the NW/4 of said Section 12, thence South along the East boundary of said NW/4 a distance of 1312.84 feet to a point of beginning that being the South East corner of the NE/4 NW/4 of said Section 12; thence in a westerly direction along the South boundary of said NE/4 NW/4 a distance of 350 feet to a point on the East right-of-way boundary of the Midland Valley Railroad Company, thence in a South Easterly direction along a curve to the left with a radius of curvature of 2916.05 feet and a delta angle of 10 14'12" being on the East right-of-way boundary of said Midland Valley Railroad Company a distance of 503.11 feet to a point of tangency on said East right-of-way boundary, thence South 20 17'30" East along

the East right-of-way boundary a distance of 264.28 feet to a point on said East right-of-way boundary. Thence in a Easterly direction being parallel to the South boundary of the NW/4 NE/4 a distance of 610 feet to a point. Thence South 22 24' East a distance of 85 feet to a point. Thence in an easterly direction being parallel to the South boundary of the NW/4 NE/4 to a point on the East boundary of Lot 3. Thence in a North Westerly direction along the East boundary of said Lot 3 a distance of 825 feet to a point on South boundary of the NW/4 NE/4 of said Section 12. Thence in a Westerly direction along the South boundary of said NW/4 NE/4 a distance of 1135 feet to the Point of Beginning. Said tract of land containing approximately 16 acres.

Subject to two (2) acres of Lot Three (3) previously conveyed to Dundee Petroleum Company.

**SOUTHSIDE SEWAGE TREATMENT PLANT**

The East 2.20 acres of the North 4.70 acres and the South 4.78 acres of Lot 2, less 1.03 acres for Midland Valley Railroad right-of-way, all in Section 36, Township 19 North, Range 12 East, of the Indian Base and Meridian, Tulsa County, State of Oklahoma, according to the Government Survey thereof.

All of Lot 3 of Section 36 Township Nineteen (19) North, Range Twelve (12) East, of the Indian Base and Meridian, in Tulsa County, Oklahoma, according to the United States Government Survey thereof lying East of the Midland Valley Railroad right-of-way.

**SOUTH ARKANSAS RIVER REGIONAL WASTE WATER FACILITY**

Lots One (1), Two (2) and Seven (7) of Section Nineteen (19) and the Northwest Quarter (NW1/4) and the West half (W1/2) of the Northeast Quarter (NE1/4) and the Northwest Quarter (NW1/4) of the Southeast Quarter (SE1/4) of Section Twenty (20), all in Township Seventeen (17) North, Range Fourteen (14) East of the Indian Base and Meridian, Tulsa County, State of Oklahoma, according to the United States Government Survey thereof, and containing 326.7 acres more or less.

**NORTHSIDE SEWAGE TREATMENT PLANT**

The Southeast Quarter of the Southeast Quarter (SE1/4 SE1/4) and the Southeast Quarter of the Southwest Quarter of the Southeast Quarter (SE1/4 SW1/4 SE1/4), all in Section 6, Township 20 North, Range 14 East, of the Indian Base and Meridian, Tulsa County, Oklahoma, containing fifty (50) acres.

The Northeast Quarter of the Southwest Quarter of the Southeast Quarter (NE1/4 SW1/4 SE1/4) of Section 6, Township 20 North, Range 14 East of the Indian Base Meridian, Tulsa County, Oklahoma containing 10 acres, more or less.

The West Half (W1/2) of the West Half (W1/2) of the Southeast Quarter (SE1/4) of Section Six, Township Twenty (20) North Range Fourteen (14) East and a tract of land in the SW1/4 SW1/4 of Section 5, Township Twenty (20) North, Range Fourteen (14) East, of the Indian Base and Meridian, Tulsa County, Oklahoma, more particularly described as follows, to-wit: Beginning at a point on the West boundary of the said SW1/4 SW1/4 235.17 feet from the SW corner thereof, thence N42(14'E a distance of 73.95 feet, thence N54(50'30"E a distance of 329.10 feet, thence N51(21'30"E a distance of 115.10 feet, thence

N24(51'30"W a distance of 90.95 feet, thence N45(30'W a distance of 111.15 feet, thence N55(04'30"W a distance of 183.85 feet, thence N74(7'30"W a distance of 79.97 feet, thence S82(43'W a distance of 64.60 feet to a point in the West boundary of the said SW1/4 SW1/4 which is 830 feet from the SW corner thereof, thence S0(3'E along the West boundary of the said SW1/4 SW1/4 to the point of beginning containing 4.0 acres, more or less.

The Southeast Quarter of the Northwest Quarter of the Southeast Quarter (SE1/4 NW1/4 SE1/4) Less the North 66 feet thereof, and the Southwest Quarter of the Northeast Quarter of the Southeast Quarter (SW1/4 NE1/4 SE1/4) Less the North 66 feet thereof, in Section Six (6), Township Twenty (20) North, Range Fourteen (14) East, of the Indian Base and Meridian, Tulsa County, Oklahoma;

All that part of the Southwest Quarter of the Southeast Quarter of the Northeast Quarter (SW1/4 SE1/4 NE1/4) and the Northwest Quarter of the Northeast Quarter of the Southeast Quarter (NW1/4 NE1/4 SE1/4) and the Southeast Quarter of the Northeast Quarter of the Southeast Quarter (SE1/4 NE1/4 SE1/4) lying West of Mingo and Bird Creeks, all in Section Six (6) Township Twenty (20) North, Range Fourteen (14) East, of the Indian Base and Meridian, Tulsa County, Oklahoma, containing 28 acres, more or less.

The Northeast Quarter of the Northwest Quarter of the Southeast Quarter (NE1/4 NW1/4 SE1/4) and the North Sixty-Six (66) feet of the Southeast Quarter of the Northwest Quarter of the Southeast Quarter (SE1/4 NW1/4 SE1/4) and the North Sixty-Six (66) feet of the Southwest Quarter of the Northeast Quarter of the Southeast Quarter (SW1/4 NE1/4 SE1/4), all in Section Six (6), Township Twenty (20) North, Range Fourteen (14) East of the Indian Base and Meridian, Tulsa County, Oklahoma.

The West Half of the Northwest Quarter of the Southeast Quarter of the Northeast Quarter (W1/2 NW1/4 SE1/4 NE1/4) of Section Six (6) Township Twenty (20) North, Range Fourteen (14) East of the Indian Base and Meridian, Tulsa County, Oklahoma.

Southwest Quarter (SW/4) of the Northeast Quarter (NE/4) and the Southeast Quarter (SE/4) of the Northwest Quarter (NW/4) of the Northeast Quarter (NE/4), Section 6, Township Twenty (20) North, Range Fourteen (14) East, of the Indian Base and Meridian, Tulsa County, Oklahoma according to the U.S. Survey thereof.

A strip, piece or parcel of land lying in part of the SW1/4 SE1/4 and the SE1/4 SE1/4 of Section 6, Township Twenty (20) North, Range Fourteen (14) East of the Indian Base and Meridian, Tulsa County, Oklahoma. Said parcel of land being described by metes and bounds as follows:

Beginning at the SE corner of said SE1/4 SE1/4, thence West along the South line of said SE1/4 SE1/4 and said SW1/4 SE1/4 a distance of 2261.10 feet, thence N0(01'E a distance of 60.0 feet, thence S89(59'E a distance of 1200.0 feet, thence N84(56'E a distance of 451.8 feet, thence S89(59'E a distance of 611.1 feet to a point on the East line of said SE1/4 SE1/4, thence South along said East line a distance of 100.0 feet to a point of beginning.

A strip, piece or parcel of land being a part of the Southeast Quarter (SE1/4) of Section 6, Township Twenty (20) North, Range Fourteen (14) East, of the Indian Base and Meridian, Tulsa County, Oklahoma and being more particularly described as follows:

The East 20.0 feet of the West 60.0 feet of the SE1/4 of Section 6, Township Twenty (20) North, Range Fourteen (14) East, of the Indian Base and Meridian, Tulsa County, Oklahoma.

A strip, piece or parcel of land being a part of the southeast quarter (SE1/4) of Section 6, Township Twenty (20) North, Range Fourteen (14) East, of the Indian Base and Meridian, Tulsa County, Oklahoma and being more completely described as follows:

The West 40.0 feet of the SE1/4 of Section 6, Township Twenty (20) North, Range Fourteen (14) East.

## APPENDIX VII RESOLUTION

A RESOLUTION PROVIDING FOR THE AMENDMENT OF THE AUTHORITY'S DECLARATION OF TRUST DATED APRIL 5, 1957, AS AMENDED, PROVIDING FOR SELECTION OF A CHAIRMAN OF TRUSTEES AND OTHER OFFICERS; APPROVING A THIRD AMENDMENT TO DECLARATION OF TRUST; AND CONTAINING OTHER PROVISIONS RELATING THERETO.

WHEREAS, the Authority was created by a Trust Indenture dated as of April 5, 1957, as amended (the "Trust Indenture", for the use and benefit of the City of Tulsa, Oklahoma (the "City"), under authority of and pursuant to the provisions of Title 60, Oklahoma Statutes 1981, Sections 176 to 180.3, inclusive, as amended and supplemented, and other applicable statutes of the State of Oklahoma; and

WHEREAS, the Authority and each Trustee thereto has determined to amend the Trust Indenture to provide for selection of a Chairman of Trustees and other officers and providing for Trustees continuing to serve until successor qualified, and for adopting procedures to conduct meetings; and

WHEREAS, there has been presented to this meeting a form of Third Amendment to Declaration of Trust between the Authority and the City of Tulsa, Oklahoma, and the Utility Board of the City of Tulsa, Oklahoma; and

BE IT RESOLVED BY THE TRUSTEES OF THE TULSA METROPOLITAN UTILITY AUTHORITY:

Section 1. The amendment of the Declaration of Trust of the Authority as set forth in the Third Amendment to Declaration of Trust is hereby authorized, agreed to, consented and approved by the Trustees of the Authority.

Section 2. The form of Third Amendment to Declaration of Trust presented to this meeting be, and hereby is approved, and each Trustee of the Authority be, and they hereby are, authorized, directed and empowered to execute and deliver in their name the Third Amendment to Declaration of Trust.

ADOPTED the 12th day of June, 1996.

/s/ Sandra J. Alexander
Chairman of Trustees

ATTEST:

/s/ Patricia Bragg
Secretary of Trustees

(SEAL)

I, the undersigned, the duly qualified and acting Secretary of Trustees of The Tulsa Metropolitan Utility Authority, hereby certify that the foregoing is a true, correct and complete copy of a Resolution of the Trustees of the Authority held on the date therein stated as the same appears in the minutes of said meeting on file in my office as a part of the official records thereof. I further certify that a true and complete copy of the schedule of regularly scheduled meetings of the authority for calendar year 1996 attached hereto as "Exhibit A" was filed in the office of the City Auditor of the City of Tulsa, Oklahoma. I

further certify that a true and correct copy of the agenda attached hereto as "Exhibit B" was posted in prominent public view on the street floor bulletin board at the City Hall, Tulsa, Oklahoma, twenty-four (24) hours prior to the date of the meeting therein described, excluding Saturdays, Sunday, and legal obligations, all in compliance with the Oklahoma Open Meeting Law.

WITNESS my hand and seal of said Authority this 12th day of June, 1996.

/s/ Patricia Bragg
Secretary of Trustees

(SEAL)

## APPENDIX VIII THIRD AMENDMENT TO DECLARATION OF TRUST (SECTIONS 314, 315, 316, AND 317)

*("Exhibit A" in Ord. No. 18776)*

KNOW ALL MEN BY THESE PRESENTS:

This Third Amendment to Declaration of Trust dated this 12th day of June, 1996, by and among the City Council of the City of Tulsa, Oklahoma, the Utility Board of the City of Tulsa, Oklahoma, and the Tulsa Metropolitan Utility Authority hereby amends that certain Declaration of Trust dated April 5, 1957, as previously amended by that certain Amendment to Trust Indenture and Second Amendment to Declaration of Trust (collectively the "Declaration of Trust") in the following respects:

Section 1. From and after May 8, 1990, paragraph (c) of Article VI of the Declaration of Trust shall be amended in its entirety to read as follows:

"(c) 1. Each qualified Trustee shall continue as such until his or her successor shall have qualified as hereafter provided.

2. The Trustees shall elect a chairman, vice-chairman, and secretary from among its members and adopt procedures for conducting its meetings."

Section 2. The Declaration of Trust and this Third Amendment to Declaration of Trust shall be read, construed and constructed to be one and the same document.

IN WITNESS WHEREOF, the Mayor of the City of Tulsa, the Chairman of the Utility Board of the City of Tulsa and the individual Trustees of the Authority have executed this document as of the date first above written.

CITY OF TULSA, OKLAHOMA

/s/ M. Susan Savage
Mayor

ATTEST:

/s/ Michael P. Kier
City Clerk

(SEAL)

APPROVED:

/s/ David L. Pauling
City Attorney

THE UTILITY BOARD OF THE CITY OF TULSA, OKLAHOMA

/s/ Sandra J. Alexander
Chairman

ATTEST:

/s/ Patricia Bragg
Secretary

(SEAL)

APPROVED:

/s/ R. James Unruh
Utility Board Attorney

TULSA METROPOLITAN UTILITY AUTHORITY

/s/ M. Susan Savage
M. Susan Savage, Trustee

/s/ Sandra J. Alexander
Sandra J. Alexander, Trustee

/s/ J.D. Metcalf
J.D. Metcalf, Trustee

/s/ Patricia Bragg
Patsy Dunmire Bragg, Trustee

/s/ Bruce Robson
Bruce Robson, Trustee

/s/ Richard Sevenoaks
Richard Sevenoaks, Trustee

/s/ Robin Siegfried
Robin Siegfried, Trustee

[ACKNOWLEDGMENTS]

**ACCEPTANCE OF BENEFICIAL INTEREST**

KNOW ALL MEN BY THESE PRESENTS:

That the City of Tulsa, Oklahoma, a municipal corporation, acting by and through the Utility Board of the City of Tulsa, and by and through the general governing body of said municipality, hereby reaccepts the beneficial interest in the trust created by the Declaration of Trust as amended by the Amendment to Trust Indenture, Second Amendment to Declaration of Trust, and Third Amendment to Declaration of Trust, for and on behalf of said municipality, in all respects in accordance with the terms of said Declaration of Trust.

IN WITNESS WHEREOF, the Chairman of the Utility Board of the City of Tulsa, pursuant to the authority and direction of said Board on this date, and the Mayor of the City of Tulsa, pursuant to the authority and direction of Ordinance No. 18776 of said City, effective this date, hereunto have set our hands and caused to be affixed the requisite official seals:

January 9, 1997.
Date

/s/ Sandra J. Alexander
Chairman, Utility Board of the
City of Tulsa, Oklahoma

ATTEST:

/s/ Patsy Bragg
Secretary

/s/ M. Susan Savage
Mayor of the
City of Tulsa, Oklahoma

ATTEST:

/s/ Michael P. Kier
City Clerk

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## CHAPTER 4. TULSA MUNICIPAL AIRPORT TRUST

Section 400. Beneficial interest of Tulsa Municipal Airport Trust accepted.
Section 401. Trust identified.
Section 402. Mayor and Auditor authorized to endorse acceptance on Trust Indenture and Record with County Clerk.
Section 403. Mayor and Auditor authorized to execute 99-year lease on Airport land to Trust.
Section 404. Form of sublease between City of Tulsa and Trustees of Tulsa Municipal Airport Trust approved.
Section 405. Form of Bond Indenture approved.
Section 406. Amendment to lease between City of Tulsa and Trustees of Tulsa Municipal Airport Trust approved.
Section 407. Ratification of Ordinance No. 8236 and Trust Indenture.
Section 408. Ratification of lease between City of Tulsa and Trustees of Tulsa Municipal Airport Trust.
Section 409. Form of cancellation of lease between City of Tulsa and American Airlines, Inc., approved.
Section 410. Ratification of documents and proceedings.
Section 411. Ratification of Resolution dated October 29, 1957, and Acts of Enrollment performed pursuant thereto.
Section 412. Rents to be used for Airport purposes.
Section 413. Officers authorized to perform all acts necessary in issuance of Tulsa Municipal Airport Trust Bonds, Series 1958.
Section 414. Resolution of Tulsa Airport Authority and Second Amendment to Lease approved and Mayor authorized to execute same.
Section 415. Ratification of Amendment to Lease dated May 27, 1958.
Section 416. City's consent to assignment of Lease.
Section 417. Ratification of Ordinance Nos. 8236 and 8461 and of all proceedings of Trustees of Tulsa Municipal Airport Trust in issuance of Bonds.
Section 418. Form of Bond Indenture dated May 1, 1963, approved.
Section 419. Form of First Amendment to the Sublease dated May 1, 1963, approved.
Section 420. All proceedings taken by Trustees in issuance of Bonds pursuant to Bond Indenture dated May 1, 1963, ratified and approved.
Section 421. Ratification of action of Trustees in contracting for construction of permanent improvements described in Third Amendment to the Sublease with American Airlines, Inc.
Section 422. Approval by City of issuance of $27,500,000. Revenue Bonds, Series 1971, by Trustees to finance costs of improvements constructed.
Section 423. Approval by City of form and substance of Second Supplemental Bond Indenture dated June 1, 1971.
Section 424. Approval by City of form and substance of Third Amendment to Sublease between Trustees and American Airlines, Inc., dated June 1, 1971.
Section 425. Authorization of Trustees to take all necessary action to complete construction of improvements, sale of revenue bonds and execution of Third Amendment to Sublease with American Airlines, Inc.
Appendix I Park Board Resolution and Lease (§ 403) ("Exhibit A" in Ord. No. 8236).

Appendix II Trust Indenture Tulsa Municipal Airport Trust (Sections 400, 401, and 402) ("Exhibit B" in Ord. No. 8236).
Appendix III Amendment to Lease (Section 406) ("Exhibit A" in Ord. No. 8461).
Appendix IV Cancellation of Lease (Section 409) ("Exhibit B" in Ord. No. 8461).
Appendix V Resolution of Airport Authority (Section 414) ("Exhibit A" in Ord. No. 8480).

**Section 400. Beneficial interest of Tulsa Municipal Airport Trust accepted.**

The Tulsa Municipal Airport Trust, created by Trust Indenture dated August 2, 1957, a copy of which Trust Indenture is hereto attached and marked "Exhibit B" and made a part hereof, wherein N. G. Henthorne, Richard Lloyd Jones, Jr., E. Fred Johnson, Sid W. Patterson and George E. Norvell are designated trustees, and the City of Tulsa is designated as the sole beneficiary of said Tulsa Municipal Airport Trust, is hereby approved and said City of Tulsa hereby accepts the beneficial interest therein, and all of the terms and provisions of said Trust Indenture as authorized by the applicable statutes of the state of Oklahoma and the City of Tulsa, Oklahoma, hereby agrees to be and become the sole beneficiary of said trust.

*(Ord. No. 8236)*

**Section 401. Trust identified.**

The City recognizes said Tulsa Municipal Airport Trust and the trustees named in said Trust Indenture, and in all negotiations where the term "Tulsa Municipal Airport Trust" is used, it shall be deemed and construed to mean said trust above mentioned and described.

*(Ord. No. 8236)*

**Section 402. Mayor and Auditor authorized to endorse acceptance on Trust Indenture and record with County Clerk.**

The Mayor and City Auditor are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture the approval of the City of Tulsa of said Trust Indenture creating the Tulsa Municipal Airport Trust, and the City's acceptance of the beneficial interests therein, and to cause said Trust Indenture to be recorded in the office of the County Clerk and ex officio Register of Deeds of the County of Tulsa, Oklahoma.

*(Ord. No. 8236)*

**Section 403. Mayor and Auditor authorized to execute 99-year lease on Airport land to Trust.**

Pursuant to the recommendations of the Tulsa Park Board, as evidenced by its said Resolution of August 5, 1957, a copy of which is hereto attached marked "Exhibit A," the proposed ninety-nine (99) year lease of certain lands constituting a part of the Tulsa Municipal Airport and the improvements thereon, in which the City of Tulsa is lessor and the trustees of said Tulsa Municipal Airport Trust are the lessees, a copy of which lease is attached to said "Exhibit A" and is hereby made a part hereof, is hereby approved and the Mayor and City Auditor are hereby authorized, instructed and directed to execute and deliver said lease to the lessees therein named.

*(Ord. No. 8236)*

**Section 404. Form of sublease between City of Tulsa and Trustees of Tulsa Municipal Airport Trust approved.**

The form of the sublease by and between the trustees of the Tulsa Municipal Airport Trust and American Airlines, Inc., which form of sublease has been filed with the City Clerk and is hereby made a part of the official record of the minutes of the governing board of the City of Tulsa, is hereby approved; provided, however, that any modifications or changes in said sublease may be made by said trustees if approved by resolution of the governing board of the City of Tulsa.

*(Ord. No. 8461)*

**Section 405. Form of Bond Indenture approved.**

The form of bond indenture to be executed by the trustees of the Tulsa Municipal Airport Trust and a bank designated by such trustees, which form has been filed with the City Clerk and is hereby made a part of the official record of the minutes of the governing board of the City of Tulsa, is hereby approved; provided, however, that the principal amount of the Bonds Series 1958, of said trustees authorized in said bond indenture shall not exceed Twenty-Five Million Dollars ($25,000,000), that the interest rate or rates to be borne by the Bond Series 1958, of the Trustees of the Tulsa Municipal Airport Trust shall be such that the net interest cost thereon shall not exceed five and one-half percent (5-1/2%) per annum, and that said Bonds Series 1958 shall mature not later than December 31, 1983, and no redemption premium on any of said Bonds Series 1958 shall exceed one hundred four and one-half per cent (104-1/2%) of the principal amount thereof; and provided further, that said trustees may name any bank in Tulsa, Oklahoma, or New York, N.Y. as trustees under said bond indenture and may name any bank or banks in Tulsa, Oklahoma, and New York, N.Y., and in such other cities as said trustees may determine, as paying agent or paying agents for said Bond Series 1958; and provided further, that any other modifications or changes in said bond indenture may be made by said trustees if approved by resolution of the governing Board of the City of Tulsa.

*(Ord. No. 8461)*

**Section 406. Amendment to lease between City of Tulsa and Trustees of Tulsa Municipal Airport Trust approved.**

The Amendment to Lease by and between the City of Tulsa and the Trustees of the Tulsa Municipal Airport Trust, a copy of which Amendment to Lease bearing the approval of the City Attorney is hereto attached and marked "Exhibit A," is hereby approved, and the Mayor, the Chairman of the Tulsa Airport Authority and the City Auditor are hereby duly authorized to execute said Amendment to Lease.

*(Ord. No. 8461)*

**Section 407. Ratification of Ordinance No. 8236 and Trust Indenture.**

Ordinance No. 8236 heretofore duly adopted by the Board of Commissioners of the City of Tulsa on the 6th day of August, 1957, is hereby ratified, validated and confirmed, and the Tulsa Municipal Airport Trust created by the Trust Indenture dated August 2, 1957, and duly recorded in the records of the County Clerk of Tulsa County, Oklahoma, in Book 2803, Page 146, on the 9th day of August, 1957, a copy of which Trust Indenture is attached to said Ordinance No. 8236 and marked "Exhibit B," is approved, ratified and confirmed and

the acceptance by the City of Tulsa of the beneficial interest in said Tulsa Municipal Airport Trust and all the terms and provisions of said Trust Indenture are hereby ratified, validated and confirmed.

*(Ord. No. 8461)*

### Section 408. Ratification of lease between City of Tulsa and Trustees of Tulsa Municipal Airport Trust.

The lease heretofore entered into by and between the City of Tulsa and the trustees of the Tulsa Municipal Airport Trust on the 6th day of August, 1957, and duly recorded in the records of the County Clerk of Tulsa County, Oklahoma, in Book 2803, Page 131, on the 9th day of August, 1957, as amended by "Exhibit A," which is hereto attached, is hereby ratified, validated and confirmed.

*(Ord. No. 8461)*

### Section 409. Form of cancellation of lease between City of Tulsa and American Airlines, Inc., approved.

The form of cancellation of (1) the lease by and between the City of Tulsa, as lessor, and American Airlines, Inc., as lessee, which lease is dated January 10, 1946, and (2) the lease by and between said parties as lessor and lessee, respectively, which lease is dated the 7th day of May 1946, which form of cancellation is hereto attached and marked "Exhibit B," is hereby approved, and the trustees of the Tulsa Municipal Airport Trust are authorized to execute said cancellation simultaneously with the execution of the sublease, hereinabove referred to in Section 404 of this chapter.

*(Ord. No. 8461)*

### Section 410. Ratification of documents and proceedings.

All documents and proceedings in any way pertaining to the acquisition, administration and maintenance by the City of Tulsa, the Tulsa Park Board and the Tulsa Airport Authority of any part or all of the Tulsa Municipal Airport are hereby ratified, validated and confirmed, including, but without limiting in any way the generality of the foregoing, the following:

**A.** The quitclaim deed by the United States of America to the City of Tulsa dated the 22nd day of November, 1946, including all exhibits attached thereto duly recorded in the records of the County Clerk of Tulsa County, Oklahoma, in Book 1767, Page 467, on the 13th day of December, 1946;

**B.** The resolution of the Tulsa Park Board adopted December 11, 1946, authorizing the execution of the aforesaid quitclaim deed;

**C.** The resolution of the Board of Commissioners of the City of Tulsa adopted December 13, 1946, authorizing the acceptance of the aforesaid quitclaim deed and the execution thereof;

**D.** The release by and between the United States of America and the City of Tulsa dated April 25, 1957, duly recorded in the records of the County Clerk of Tulsa County, Oklahoma, in Book 2797, Page 312, on the 17th day of July, 1957;

**E.** The resolution of the Tulsa Park Board adopted April 30, 1957, accepting the aforesaid release; and

**F.** The resolution of the Board of Commissioners of the City of Tulsa adopted April 30, 1957, approving and accepting the aforesaid release.

*(Ord. No. 8461)*

### Section 411. Ratification of Resolution dated October 29, 1957, and Acts of Enrollment performed pursuant thereto.

The resolution heretofore adopted by the Board of Commissioners of the City of Tulsa, Oklahoma, on the 29th day of October, 1957, charging Guy Hall, Jr., Commissioner of Streets and Public Property, together with the City Attorney, with the duty of comparing each ordinance passed and enrolled, with the ordinance, as enacted, is hereby ratified, validated and confirmed, and all acts of said Commissioner and City Attorney in so comparing all ordinances in any way pertaining to the trustees of the Tulsa Municipal Airport Trust and subscribing their endorsement thereon evidencing the correct enrollment thereof are hereby ratified, validated and confirmed.

*(Ord. No. 8461)*

### Section 412. Rents to be used for Airport purposes.

The City of Tulsa hereby covenants that the rent payable to the City of Tulsa pursuant to provisions of the lease hereinabove referred to in Section 408 of this chapter shall be used for the operation, maintenance, development and improvement of the Tulsa Municipal Airport, as required by the release by and between the United States of America and the City of Tulsa, dated April 25, 1957, hereinabove referred to in Subsection D of Section 410 of this chapter, and this covenant shall be for the benefit of the holders of all bonds issued pursuant to the bond indenture hereinabove referred to in Section 405 of this chapter and for the benefit of all parties to the bond indenture and all parties to the lease hereinabove referred to in Section 408, the amendment to lease hereinabove referred to in Section 406 of this chapter and the sublease hereinabove referred to in Section 404 of this chapter.

*(Ord. No. 8461)*

### Section 413. Officers authorized to perform all acts necessary in issuance of Tulsa Municipal Airport Trust Bonds, Series 1958.

All officers of the City of Tulsa, Oklahoma, including the members and officers of the Tulsa Airport Authority or any successor of such authority, are hereby authorized and ordered to do and perform any and all acts necessary on the part of the City of Tulsa or of said Tulsa Airport Authority or any successor thereof to consummate the execution of any and all documents necessary in connection with the issuance by the trustees of the Tulsa Municipal Airport Trust of the Bonds Series 1958 of said Trustees, authorized by the bond indenture hereinabove referred to in Section 405 of this chapter.

*(Ord. No. 8461)*

### Section 414. Resolution of Tulsa Airport Authority and Second Amendment to Lease approved and Mayor authorized to execute same.

The Resolution of the Tulsa Airport Authority duly adopted on the 19th day of June, 1958, copy of which resolution is hereto attached and marked "Exhibit A", and the Second Amendment to Lease, attached to said resolution as Exhibit 1 thereof, which Second

Amendment to Lease bears the approval of the City Attorney, is hereby approved, and the Mayor, the Chairman of the Tulsa Airport Authority and the City Auditor are hereby duly authorized to execute said Second Amendment to Lease.

*(Ord. No. 8480)*

**Section 415. Ratification of Amendment to Lease dated May 27, 1958.**

The Amendment to Lease, dated May 27, 1958, is hereby ratified, validated and confirmed.

*(Ord. No. 8480)*

**Section 416. City's consent to assignment of Lease.**

The consent of the City of Tulsa is hereby given to the assignment of said lease, as amended by said Amendment to Lease and said Second Amendment to Lease, as such assignment is contained in the bond indenture referred to in Ordinance No. 8461.

*(Ord. No. 8480)*

**Section 417. Ratification of Ordinance Nos. 8236 and 8461 and of all proceedings of Trustees of Tulsa Municipal Airport Trust in issuance of Bonds.**

Ordinance Nos. 8236 and 8461 are hereby ratified, validated and confirmed and all proceedings of the trustees of the Tulsa Municipal Airport Trust heretofore taken in connection with the issuance of bonds pursuant to the bond indenture referred to in Ordinance No. 8461 are hereby ratified, validated and confirmed.

*(Ord. No. 8480)*

**Section 418. Form of Bond Indenture dated May 1, 1963, approved.**

The form of the bond indenture dated as of May 1, 1963, by and between the trustees of the Tulsa Municipal Airport Trust and Morgan Guaranty Trust Company of New York, N.Y., which form of bond indenture has been filed with the City Clerk and is hereby made a part of the official record of the minutes of the governing body of the City of Tulsa, is hereby approved; provided, however, that any modifications not substantially changing the tenor thereof may be made by the parties thereto.

*(Ord. No. 9666)*

**Section 419. Form of First Amendment to the Sublease dated May 1, 1963, approved.**

The form of the first amendment to the sublease dated as of May 1, 1963, by and between the trustees of the Tulsa Municipal Airport Trust and American Airlines, Inc., which form of sublease has been filed with the City Clerk and is hereby made a part of the official record of the minutes of the governing body of the City of Tulsa, is hereby approved; provided, however, that any modifications not substantially changing the tenor thereof may be made by the parties thereto.

*(Ord. No. 9666)*

**Section 420. All proceedings taken by Trustees in issuance of Bonds pursuant to Bond Indenture dated May 1, 1963, ratified and approved.**

All proceedings of the trustees of the Tulsa Municipal Airport Trust heretofore taken in connection with the issuance of bonds pursuant to said bond indenture dated as of May 1, 1963, are hereby ratified, validated and confirmed, and the issuance of said bonds is hereby approved.

*(Ord. No. 9666)*

**Section 421. Ratification of action of Trustees in contracting for construction of permanent improvements described in Third Amendment to the Sublease with American Airlines, Inc.**

The City of Tulsa, the beneficiary of the Tulsa Municipal Airport Trust, hereby ratifies, confirms and approves: (a) the contracting by the trustees of the Tulsa Municipal Airport Trust for the erection and equipping of certain lasting and permanent improvements on the premises described in the sublease of airport lands heretofore entered into by and between the trustees and American Airlines, Inc., such improvements being referred to in the Third Amendment to the sublease approved in Section 424 hereof; (b) the erecting and equipping of the aforesaid improvements; and (c) the interim financing agreements heretofore entered into by said trustees to pay costs of the aforesaid improvements.

*(Ord. No. 12261)*

**Section 422. Approval by City of issuance of $27,500,000. Revenue Bonds, Series 1971, by Trustees to finance costs of improvements constructed.**

The City of Tulsa, the beneficiary of the Tulsa Municipal Airport Trust, hereby approves the Twenty-Seven Million, Five Hundred Thousand Dollars ($27,500,000) principal amount of Revenue Bonds, Series 1971, to be issued by the trustees of the Tulsa Municipal Airport Trust to finance the costs of the improvements approved in Section 421 hereof, including the discharge of the interim indebtedness approved in said section, said bonds to be dated as of such date or dates within the current fiscal year, to be in such form or forms, to bear interest at such rate or rates not exceeding ten percent (10%) per annum, to mature as to principal on such dates commencing not later than five years from the date of said bonds and ending not later than June 1, 2006, and in such annual amounts so that the difference between the greatest amount of interest and principal maturing in any year in which principal of said bonds shall mature and the smallest amount of interest and principal maturing in any such year shall not exceed one percent (1%) of the aforesaid total principal amount of said series of bonds, and to be subject to prior redemption at such time or times not later than fifteen (15) years from the date thereof and upon such redemption price or prices not exceeding one hundred five percent (105%) of the principal amount thereof, all as the trustees of the Tulsa Municipal Airport Trust may determine, and said trustees are hereby authorized to issue said bonds under the second supplemental bond indenture approved in Section 423 hereof and the bond indenture supplemented thereby; provided that in the discretion of said trustees all or any part of said bonds may be subject to redemption from sinking fund installments, in which event in computing for the purpose of this section the amount of interest and principal maturing in any year (i) the amount of any sinking fund installment becoming due in any year shall be deemed to constitute the

maturing of principal, and (ii) the amount of principal stated to mature on any particular date shall be reduced by the amount of such principal required to be redeemed prior to such stated maturity date from such sinking fund installments.

The City of Tulsa, the beneficiary of the Tulsa Municipal Airport Trust, hereby approves and authorizes the sale by the trustees of the Tulsa Municipal Airport Trust of the Twenty-Seven Million, Five Hundred Thousand Dollars ($27,500,000) principal amount of Revenue Bonds, Series 1971, approved in the immediately preceding paragraph, which sale may be made by negotiation and shall be made at a purchase price of not less than ninety-seven percent (97%) of the principal amount of said bonds, together with the interest accrued on said bonds from their date of delivery of and payment therefor; provided, that the net average interest rate for said bonds shall not exceed ten percent (10%).

*(Ord. No. 12261)*

**Section 423. Approval by City of form and substance of Second Supplemental Bond Indenture dated June 1, 1971.**

The City of Tulsa, Oklahoma, the beneficiary of the Tulsa Municipal Airport Trust, hereby approves the form and substance of the second supplemental bond indenture, dated as of the 1st day of June, 1971, by and between the trustees of the Tulsa Municipal Airport Trust and the Morgan Guaranty Trust Company of New York, New York, under which, together with the bond indenture supplemented thereby, the bonds approved in Section 422 hereof shall be issued, which form of second supplemental bond indenture has been filed with the City Auditor and is hereby made a part of the official record of the minutes of this meeting, and said trustees are hereby authorized to execute such second supplemental bond indenture; provided that prior to such execution there shall be inserted in said second supplemental bond indenture the various details of said bonds determined in accordance with the provisions of Section 422 hereof; and provided, further, that prior to such execution modifications or amendments to said second supplemental bond indenture which do not substantially change the tenor thereof may be made by the parties thereto.

*(Ord. No. 12261)*

**Section 424. Approval by City of form and substance of Third Amendment to Sublease between Trustees and American Airlines, Inc., dated June 1, 1971.**

The City of Tulsa, Oklahoma, the beneficiary of the Tulsa Municipal Airport Trust, hereby approves the form and substance of the Third Amendment to the Sublease dated as of the 1st day of June, 1971, by and between the trustees of the Tulsa Municipal Airport Trust and American Airlines, Inc., whereby the improvements approved in Section 421 hereof shall be leased to American Airlines, Inc., which form of the Third Amendment to the Sublease has been filed with the City Auditor and is hereby made a part of the official record of the minutes of this meeting, and said trustees are hereby authorized to execute such Third Amendment to the Sublease; provided, however, that prior to such execution modifications or amendments to said Third Amendment to the Sublease which do not substantially change the tenor thereof may be made by the parties thereto.

*(Ord. No. 12261)*

## Section 425. Authorization of Trustees to take all necessary action to complete construction of improvements, sale of revenue bonds and execution of Third Amendment to Sublease with American Airlines, Inc.

The Trustees of the Tulsa Municipal Airport Trust are hereby authorized to perform such acts and take such proceedings as may be necessary for, or as are incidental, to the construction of the improvements approved in Section 421 hereof, the issuance and sale of the bonds approved in Section 422 hereof, the entering into and carrying out of the second supplemental bond indenture approved in Section 423 hereof and the entering into and carrying out the Third Amendment to the Sublease approved in Section 424 hereof.

*(Ord. No. 12261)*

## APPENDIX I PARK BOARD RESOLUTION AND LEASE (§ 403)

*("Exhibit A" in Ord. No. 8236)*

RESOLUTION

WHEREAS, the overhaul and maintenance base of American Airlines, Inc. at the Tulsa Municipal Airport is a necessary and essential part of the business economy of the City of Tulsa; and,

WHEREAS, the present facilities of said maintenance and overhaul base are not adequate to meet the growing needs and requirements of American Airlines, Inc. for overhauling and maintenance facilities to service not only their present fleet of aircraft but turbo-jet and turbo-prop and other types of aircraft that may hereafter be used by American Airlines, Inc.; and

WHEREAS, it is desirable and necessary for the best interests of the City of Tulsa that the present overhaul and maintenance base should be altered, modified, and expanded and additional improvements be constructed, installed, and equipped to meet the present and future needs of American Airlines, Inc. in the servicing of aircraft of such various types as American Airlines, Inc. may now use or may hereafter place in service and the various types of power plants for such aircraft now in use or hereafter to be acquired; and

WHEREAS, all of said alterations and modifications of existing structures and such additional buildings, installations, and facilities, and equipment therefor, as may be necessary for said purposes are herein collectively referred to as the proposed improvements and all of said improvements are to be constructed without cost to the City of Tulsa; and

WHEREAS, to finance said proposed improvements without cost to the City of Tulsa, Oklahoma, there was created an express trust as authorized by 60 Oklahoma Statutes, 1951, Sections 176 to 180 inclusive as amended by laws of 1953, and other applicable statutes, dealing with the creation and operation of express trusts for the benefit of municipalities and counties, of which trust the City of Tulsa is the sole beneficiary; and

WHEREAS, the present members of the Tulsa Park Board have heretofore agreed to act as Trustees of such express trust and have duly executed the Trust Indenture dated August 2, 1957, wherein the City of Tulsa is designated as the sole beneficiary; and

WHEREAS, the officers or governmental agencies or authorities having the custody, management, or control of any property of the beneficiary of such a trust are, by statute, authorized to lease such property as may be necessary for the execution of the trust purposes after the acceptance of the beneficial interests in such trust by the City of Tulsa; and

WHEREAS, it is necessary for the execution of said trust purposes that a long-term lease of approximately 228 acres of land of the Municipal Airport, requisite for the present and expanded facilities of said maintenance and overhaul base be executed and granted to the Trustees of said Tulsa Municipal Airport Trust with authority to construct all of the proposed improvements and to lease all or portions of said lands with all existing and proposed improvements thereon so that all costs of the proposed improvements can be amortized out of the rents to accrue to said Trustees and without cost to the City of Tulsa, Oklahoma,

NOW, THEREFORE, BE IT RESOLVED by the Tulsa Park Board as follows:

Sec. 1. The creation and organization of the Tulsa Municipal Airport Trust above mentioned and referred to is hereby approved, and the said Trust is hereby recognized as an express trust having the City of Tulsa as the sole beneficiary thereof, and possessing all of the powers provided by the Trust Indenture creating the same and laws of the State of Oklahoma applicable to trusts for the benefit of a municipality.

Sec. 2. The proposed ninety-nine (99) year lease from the City of Tulsa to the Trustees of said Tulsa Municipal Airport Trust, a copy of which lease is hereto attached and marked Exhibit A and made a part hereof, is hereby approved and the Park Board finds, determines, and hereby declares, that the property therein described is needful for the execution of the Trust purposes of said Tulsa Municipal Airport Trust, and upon acceptance by the City of Tulsa of the beneficial interests in said Trust, said lease shall become binding and go immediately into effect.

Sec. 3. The Chairman of the Tulsa Park Board is hereby authorized, instructed and directed to execute said ninety-nine (99) year lease and, in accordance with the provisions of the Charter of the City of Tulsa, to submit said lease to the Mayor and Board of Commissioners of said City with the recommendation of the Park Board that said lease be approved and executed upon acceptance, by said City, of the beneficial interests in said Tulsa Municipal Airport Trust.

Sec. 4. The Secretary of the Tulsa Park Board is hereby authorized, instructed, and directed to deliver to the Mayor and Board of Commissioners of the City of Tulsa, Oklahoma a certified copy of this Resolution and to deliver to the attorney for the Park Board such additional certified copies of this Resolution as may be necessary or convenient to evidence the action of the Park Board with respect to said Tulsa Municipal Airport Trust and with respect to said lease.

Sec. 5. The Chairman and Secretary of the Tulsa Park Board are further authorized to execute and deliver such additional instruments and certificates as may be necessary or convenient in furtherance of the purposes and functions of said Tulsa Municipal Airport Trust.

PASSED AND ADOPTED by unanimous vote of the Tulsa Park Board at Tulsa, Oklahoma this 5th day of August, 1957.

/s/ N.G. Henthorne
Chairman, Tulsa Park Board

APPROVED:

/s/ Remington Rogers
Attorney for Tulsa Park Board

CERTIFICATE

STATE OF OKLAHOMA )
) ss:

COUNTY OF TULSA )

I, the undersigned, O.A. Zeigler, hereby certify that I am the duly appointed, qualified and acting Secretary of the Tulsa Park Board; that the above and foregoing is a true and correct copy of a Resolution unanimously passed and adopted by the Tulsa Park Board at a lawful meeting of the Tulsa Park Board at which all members were present, held on the 5th day of August, 1957, as said Resolution appears in the official minutes and records of the Tulsa Park Board.

/s/ O.A. Zeigler
Secretary, Tulsa Park Board

**LEASE**
**from**
**CITY OF TULSA**
**to the**
**TRUSTEES OF THE**
**TULSA MUNICIPAL AIRPORT TRUST**

THIS AGREEMENT OF LEASE by and between the City of Tulsa, Oklahoma, a municipal corporation, hereinafter called Lessor, and N.G. Henthorne, Richard Lloyd Jones, Jr., E. Fred Johnson, Sid W. Patterson, and George E. Norvell, jointly, as Trustees of the Tulsa Municipal Airport Trust, a statutory trust, duly created by a Trust Indenture, dated August 2, 1957 and duly accepted by the City of Tulsa, Oklahoma as beneficiary thereof, under and by virtue of Ordinance No. 8236, enacted on August 6, 1957, hereinafter called Lessee,

WITNESSETH:

**1.** Recitals. The City of Tulsa, Oklahoma heretofore acquired the lands hereinafter described for the purposes of the Tulsa Municipal Airport, which lands now constitute a part of said airport. A portion of said lands is now occupied by American Airlines, Inc., under terms and conditions of a certain lease dated January 10, 1946, and modifications thereof. The improvements now on the portion of said lands occupied by American Airlines, Inc., are and will be inadequate for the servicing, maintenance and overhauling of jet and other aircraft now or soon to be acquired by American Airlines, Inc. It is contemplated that the Lessee in this indenture shall, at its expense, plan, erect, and construct certain additional improvements, and may alter and modify all or part of the existing improvements on the portion of said lands now occupied by said American Airlines, Inc.; that all of said improvements, alterations, modifications and new construction may be made in whole or in part on the portion of said lands now occupied by American Airlines, Inc. or on the additional portion of said lands, all of which lands are hereinafter more particularly described, to the end that there will be an integrated structure and facility for overhaul and maintenance of aircraft. Lessee may become indebted for the cost of said improvements, alterations and modifications to be made on said lands and may lease said lands and existing improvements thereon and future improvements, alterations and modifications to be made thereon by or on behalf of the Lessors to American Airlines, Inc. or other tenant or tenants, and may assign the rents and profits to be derived from any or all of such leases to secure the

payment of such indebtedness and that at the termination of this Lease all of the lands, property and premises hereinafter described, together with all of the improvements and structures thereon, and hereditaments pertaining thereto, including easements for rights of way, and other appurtenances of every kind and character shall become the sole and exclusive property of Lessor, without cost to the Lessor.

**2.** Demise. For and in consideration of the terms, covenants and conditions hereinafter set forth, Lessor does hereby demise, lease and let unto Lessee and the Trustees constituting, from time to time, the respective successors of the Trustees of the Tulsa Municipal Airport Trust hereinabove named all of the following described property and premises, and existing improvements and structures thereon in the County of Tulsa, State of Oklahoma, more particularly described as follows:

All of that part of the S 1/2 of Section 13 and all that part of the N 1/2 of Section 24, Township 20 North, Range 13 East, particularly described as follows: Beginning at the northeast corner of the SE 1/4 of said Section 13; thence west along the north boundary of the SE 1/4 of said Section 13 to the northwest corner of the SE 1/4 of said Section; thence south along the half section line of said Section 13 to a point in the half section line 1565 feet north of the south boundary of said section 13; thence southwesterly along a line bearing south 14° 37' west a distance of 655.20 feet to a point 200 feet east of the east boundary of the taxiway now constructed, which point is 165.34 feet west of the half section line of said Section 13 and 931.06 feet north of the south boundary of said Section 13; Thence in a southwesterly direction and parallel to said taxiway 200 feet east from the east boundary of said taxiway on a bearing south 3° 4' 30" west a distance of 1537.65 feet to a point in the NE 1/4 of the NW 1/4 of Section 24, Township 20 North, Range 13 East and which point is 604.38 feet south of the north boundary of said Section 24 and 247.83 feet west of the north-south half section line of said Section 24; thence in a southeasterly direction and parallel to the south boundary of the concrete apron of the maintenance base of the American Airlines on a bearing south 76° 00' 58" east a distance of 2978.32 feet more or less to the east boundary of said Section 24; thence north and along the east boundary of Section 24 and 13, to the northeast corner of the SE 1/4 of said Section 13, the point of beginning;

together with all of the hereditaments and appurtenances thereunto belonging, and the improvements, alterations, and modifications thereof referred to in paragraph 1 hereof; subject however, to the rights of the American Airlines, Inc., as tenant of a portion of the above-described property, under the aforesaid existing lease, dated January 10, 1946, and modifications thereof.

TO HAVE AND TO HOLD said premises irrevocably for and during the term of ninety-nine (99) years from the 6th day of August, 1957.

**3.** Objects and Purposes. Lessee and any tenant or tenants of Lessee shall have the right to use such demised premises and any and all improvements, alterations, and modifications thereof, referred to in paragraph 1 hereof, for the performance of maintenance, repair and modification of aircraft and aircraft engines of any type or design, whether now or hereafter developed, including, without limitation, testing and experimenting with any of such aircraft, aircraft engines or parts or components thereof and for any other lawful purpose.

**4.** Rental. Lessee shall pay, or cause to be paid, to Lessor for the use of the demised premises rental annually in advance commencing February 1, 1958, as follows:

**(a)** $35,000 during the period commencing on February 1, 1958, and ending on January 31, 1966.

**(b)** $38,500 during the period commencing on February 1, 1966, and ending January 31, 1976.

**(c)** $42,350 during the period commencing on February 1, 1976, and ending January 31, 1986, and

**(d)** $46,585 during the period commencing on February 1, 1986, and ending on the expiration or termination of this Lease.

**5.** Interest of American Airlines, Inc. It is understood that this Lease is subject to the right of American Airlines, Inc., in and to a certain portion of the above-described premises under the aforesaid existing lease and modifications thereof. Lessee is hereby authorized in its sole discretion to negotiate with American Airlines, Inc., for the purpose of leasing all or such portions of the above-described lands as said American Airlines, Inc., may desire, and as a part and parcel thereof, said Lessee shall have authority to agree with American Airlines, Inc., for the cancellation of the said existing lease and modifications thereof now held by American Airlines, Inc., and for the termination of the leasehold estate and existing rights now held by American Airlines, Inc., and to enter into a new lease with American Airlines, Inc., as tenant, covering all or any part of the premises above described, for such terms not extending beyond the term of this Lease and on such conditions as said Lessee may deem for the best interests of the City of Tulsa. In accordance with the purposes of said Trust Indenture dated August 2, 1957, Lessee shall have full and complete authority to alter and modify any and all improvements, buildings, structures and fixtures now on the premises, and to erect, construct and install such additional buildings, structures, fixtures, and facilities therefor as said Lessee may deem best; to incur indebtedness to cover the costs thereof, and to secure the payment of all such indebtedness by the assignment of all or any part of the rents and income that may be derived thereunder, with full right and authority in said Lessee to enforce all of the terms and conditions of each and every such lease or other agreement as it may enter into, and to modify and cancel the same in the sole discretion of said Lessee, and to lease to others, for such term or terms not extending beyond the term of this Lease, any part or all of the property and premises and existing improvements and structures thereon, as well as any and all improvements, alterations and modifications thereof described in paragraph 1 hereof, and to assign any part or all of the rents and income that may be derived thereunder to the payment of any and all indebtedness of Lessee, but no breach of any term of any such lease shall be deemed or construed a breach of this Lease, or give to the City of Tulsa any authority to cancel or terminate this Lease.

**6.** Additional Covenants by Lessee. Lessee shall not suffer any use or occupancy of said premises contrary to any law or ordinance now or hereafter in force, and Lessee shall not assign this Lease or allow any part of the leased property to be subjected to any mechanic's or materialmen's liens. The Lessee covenants that no obstruction to air navigation as such is determined by application of the criteria of the Civil Aeronautics Administration Technical Standard Order N-18, will be permitted on the premises and property leased hereunder, and further covenants that this restriction shall run with the land.

**7.** Additional Covenants by Lessor. Lessor covenants and agrees that Lessee shall have quiet and peaceable possession of all of said premises during the term hereof; that the Lessee, its tenants and their employees, representatives and licensees, shall at all times have free access to the Tulsa Municipal Airport, upon compliance with non-discriminatory regulations governing entrance to and use of said Tulsa Municipal Airport. Lessor further covenants to hold the Trustees hereinabove named and their respective successors and the Tulsa Municipal Airport Trust harmless for any injury to person or property on the leased premises and property during the term of this Lease and further covenants that the City Treasurer of the City of Tulsa, the Secretary of the Tulsa Park Board and the Attorney for the Tulsa Park Board, or the Secretary and Attorney of any other board or agency to which the operation and maintenance of the Tulsa Municipal Airport may be transferred, shall in the discretion of the Lessee, act, respectively, as Treasurer, Secretary and Attorney for the Lessee, at no cost to Lessee or to the Tulsa Municipal Airport Trust. The City of Tulsa further covenants that in the event that any or all of the premises and properties leased hereby are taken over by The United States of American or any other paramount agency by order or proceeding of any nature whatsoever, it will use its best efforts to secure the highest rentals possible for the use of said premises and properties, and in the event such rentals are paid directly to it by The United States of America or other paramount agency, the City of Tulsa will immediately pay such rentals over to the Lessee.

**8.** Reservation of Public Right of Flight. The City of Tulsa hereby specifically reserves a public right of flight through the air space above the property and premises leased hereunder.

IN WITNESS WHEREOF, the parties have executed this Lease at Tulsa, Oklahoma, this 6th day of August, 1957.

CITY OF TULSA, OKLAHOMA

/s/ N.G. Henthorne
Chairman of the Park Board

ATTEST:

/s/ A. Jackson Lawrence
City Auditor

/s/ George E. Norvell
Mayor

LESSOR

APPROVED:

/s/ Darven L. Brown
City Attorney

/s/ N.G. Henthorne
N.G. Henthorne

/s/ Richard Lloyd Jones, Jr.
Richard Lloyd Jones, Jr.

/s/ E. Fred Johnson
E. Fred Johnson

/s/ Sid W. Patterson
Sid W. Patterson

/s/ George E. Norvell
George E. Norvell

TRUSTEES OF TULSA
MUNICIPAL AIRPORT TRUST

LESSEE

[ACKNOWLEDGMENTS]

# APPENDIX II TRUST INDENTURE TULSA MUNICIPAL AIRPORT TRUST (SECTIONS 400, 401, AND 402)

*("Exhibit B" in Ord. No. 8236)*

KNOW ALL MEN BY THESE PRESENTS:

This Trust Indenture, hereinafter referred to as "Indenture", dated August 2, 1957, for purposes of reference, but actually executed on the date hereinafter set out, by The Tulsa Chamber of Commerce, of Tulsa, Oklahoma, a nonprofit corporation organized and existing under the laws of the State of Oklahoma, hereinafter referred to as "Trustor", and N.G. Henthorne, Richard Lloyd Jones, Jr., E. Fred Johnson, Sid W. Patterson and George E. Norvell, to be known as the Trustees of the Tulsa Municipal Airport Trust, and hereinafter referred to as "Trustees"

W I T N E S S E T H:

That in consideration of the payment by Trustor to the Trustees of the sum of Ten Thousand Dollars ($10,000.00) and other valuable considerations, receipt whereof is hereby acknowledged, and of the mutual covenants herein set forth, the said Trustees agree to hold, manage, invest, assign, convey and distribute as herein provided, authorized and directed, such property as Trustor, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Trust or the Trustees hereof.

To Have and to Hold such property and the proceeds, rents, profits and increases thereof unto said Trustees, and said Trustees' successors and assigns, but nevertheless in trust, for the use and benefit of the City of Tulsa, Oklahoma, and upon the following trusts, terms and conditions herein stated.

## ARTICLE I.
## Creation of Trust.

The undersigned Trustor creates and establishes a trust for the use and benefit of the City of Tulsa, Oklahoma, and for the public purposes hereinafter set forth, under the provisions of Title 60, Oklahoma Statutes, 1951, Sections 176 to 180, inclusive, as amended by Title 60, Chapter 4, Oklahoma Session Laws 1953, the Oklahoma Trust Act and other applicable statutes of the State of Oklahoma.

## ARTICLE II.
## Name.

The name of this trust shall be "Tulsa Municipal Airport Trust", hereinafter referred to as "Trust." The Trustees shall conduct all business and execute all instruments and otherwise perform the duties and functions required in the execution of this Trust.

## ARTICLE III.
## Purposes of Trust.

The purposes of this Trust are:

**1.** To alter and modify any and all airport improvements, buildings and structures located on any leasehold estate, whether within or without the territorial boundaries of the City of Tulsa, Oklahoma, acquired by the Trustees and to erect,

construct and install additional buildings, structures, fixtures, equipment and facilities therefor; to incur indebtedness to cover the cost thereof; to lease or sublease said premises with or without such improvements, and to secure the payment of such indebtedness by the assignment of all or any part of the rents and income that may be derived thereunder, with full power and authority to enforce all terms and conditions of each and every such lease or other agreement and to modify and cancel or otherwise terminate the same.

**2.** To hold, maintain and administer any leasehold rights in and to physical properties demised to said Trustees, and to comply with the terms and conditions of any such lease.

**3.** To acquire by lease, purchase, or otherwise, and to plan, establish, develop, construct, enlarge, improve, maintain, equip, operate and regulate any and all physical properties designated or needful for utilization in the furnishing and providing of services, in connection with the airport properties, and to dispose of, rent, or otherwise make provisions for properties owned by the Trust but no longer needful for trust purposes.

**4.** To provide funds for the cost of financing, acquiring, constructing, leasing, equipping, maintaining, repairing and operating any such airport properties and other improvements on airport grounds, and all properties, real, personal or mixed, required for execution and fulfilling the trust purposes as set forth in this instrument, and all other charges, costs and expenses necessarily incurred in connection therewith, and in so doing, to incur indebtedness, either unsecured or secured, by all or any part of the Trust Estate and its revenues.

**5.** To expend all funds coming into the hands of the Trustees as revenue or otherwise for the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the aforesaid costs and expenses, and in payment of any other obligation properly chargeable against the Trust Estate, and to distribute the remainder of such funds to the beneficiary municipality.

## ARTICLE IV.
## Duration of Trust.

This Trust shall have duration for the term of duration of the Beneficiary and until such time as its purpose shall have been fully fulfilled, or until it shall be terminated as hereinafter provided.

## ARTICLE V.
## The Trust Estate.

The Trust Estate shall consist of:

**1.** The funds and property presently in the hands of the Trustees, including the $10,000 paid to the Trustees as consideration, as hereinabove recited.

**2.** Any and all leasehold rights and leases to said Trustees for the purposes of this Trust.

**3.** Any and all improvements that may be constructed by, or on behalf of, the Trustees or by, or on behalf of, the City of Tulsa, upon any property owned by, or leased to, said Trustees.

**4.** Any and all money, property, real, personal or mixed, rights, choses in action, contracts, leases, privileges, immunities, licenses, franchises, benefits and all other things of value coming into the possession of the Trustees pursuant to the provisions of this Indenture.

## ARTICLE VI.
## The Trustees.

**1.** There shall be five Trustees of this Trust. The five Trustees originally appointed herein are severally the present members of the Tulsa Park Board of the City of Tulsa, Oklahoma. The Trustees of this Trust shall during the term hereof, consist of the members of the Tulsa Park Board in office from time to time, and the number of such Trustees shall be increased or decreased as the membership of said Tulsa Park Board is increased or decreased. When any person has been appointed and qualified as a member of the Tulsa Park Board he shall thereupon be deemed to have accepted appointment as Trustee of this Trust and shall continue as a Trustee as long as he remains a member of the Tulsa Park Board. If any member of the Tulsa Park Board shall refuse to act as Trustee, the other Trustees may appoint a Trustee to take his place until such time as his successor is appointed to the Tulsa Park Board. If any member of the Tulsa Park Board who is a Trustee shall die or resign or become disabled from performing his duties as a member of the Tulsa Park Board, the Trustees shall have power and authority to fill any vacancy by an interim appointment until the successor of such member of the Tulsa Park Board shall have been appointed and qualified, at which time the powers under the interim appointment shall cease and the newly appointed and qualified member of the Tulsa Park Board shall become Trustee hereunder.

**2.** In event of any changes in the Charter of the City of Tulsa abolishing the Tulsa Park Board or abrogating in whole or in part the present authority and jurisdiction of the Tulsa Park Board over the Tulsa Municipal Airport, then and in either of such events, the Trustees then in office hereunder shall continue as the Trustees of this Trust and shall thereafter have power to fill any vacancies that may occur and to designate and appoint the successors of any Trustee who may die or resign or may become disabled from performing the duties of a Trustee hereunder. In the event the operation and maintenance of the Tulsa Municipal Airport is transferred form the Tulsa Park Board to some other board or agency, the members of such board or agency in office from time to time shall be the Trustees of this Trust, and the provisions contained in paragraph 1 of this Article VI with respect to temporary filling of vacancies shall apply in like manner to the members of such board or agency acting as Trustees of this Trust.

## ARTICLE VII.
## Powers and Duties of the Trustees, and Incidents of the Trust.

Subject to the provisions and limitations otherwise provided in this indenture, the Trustees shall have, in addition to the usual powers incident to their office and the powers

granted to them in other parts of this Indenture, the following rights, powers, duties, authority, discretion and privileges, all of which may be exercised by them without any order or authority from any court:

**1.** To enter into and execute, purchase, lease or otherwise acquire property, real, personal or mixed, franchises, contracts, leases, rights, privileges, benefits, choses in action, or other things of value and to pay for the same in cash, with bonds or other evidences of indebtedness or otherwise.

**2.** To make and change investments, to convert real into personal property, and vice versa, to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem advisable, any or all of the property in the Trust, real or personal; to borrow money, or renew loans for the Trust, to refund outstanding bonded indebtedness and to execute therefor evidences of indebtedness, and to secure the same by mortgage, lien, pledge or otherwise; to purchase property from any person, and lease land and other property from the beneficiary and construct and equip buildings and facilities thereon and lease, sublease or rent, on such terms as they deem advisable, the same to individuals, partnerships, associations, corporations and others, including agencies of the United States of America, State of Oklahoma, and political subdivisions of the State, and procure funds necessary for such purpose by the sale of bonds or other evidences of indebtedness and secure the payment of such bonds or other evidences of indebtedness by a mortgage, lien, pledge or other encumbrance of such real and personal property, buildings and facilities owned or otherwise acquired, leased or controlled by Trustees, and rentals, income, receipts and profits therefrom, or from any other revenues associated with the ownership, operation or control of the property of the Trust; to lease or sublease, on such terms as they deem advisable, any property of the Trust or of which the Trustees may become the owners or lessees.

**3.** To fix, demand and collect charges, rentals and fees for the services and facilities of the Trust to the same extent as the beneficiary might do and to discontinue furnishing of services and facilities to any person, firm or corporation, or public instrumentality, delinquent in the payment of any indebtedness to the Trust. To purchase and sell such supplies, goods and commodities as are incident to the operation of its airport properties.

**4.** To make and perform contracts of every kind, including management contracts with any person, firm, corporation, association, trusteeship, municipality, government or sovereignty; and without limit as to amount, to draw, make, accept, indorse, assume, guarantee, account, execute and issue promissory notes, drafts, bills of exchange, acceptances, warranties, bonds, debentures, and other negotiable or non-negotiable instruments, obligations, and evidences of unsecured indebtedness, or of indebtedness secured by mortgage, deeds of trust or otherwise, upon any or all property of the Trust, and to pledge any or all income of the Trust, in the same manner and to the same extent as a natural person might or could do. To collect and receive any property, money, rents or income of any sort and distribute the same or any portion thereof for the furtherance of the authorized Trust purposes set out herein.

**5.** To contract for the furnishing of any services or the performance of any duties that they may deem necessary, or proper, and pay for the same as they see fit.

**6.** To employ such agents, servants and employees as they deem necessary or proper, and shall prescribe their duties and fix their compensation at such amounts as is customary and normal in the operation of airports; and select depositories for the funds and securities of this Trust.

**7.** To compromise any debts or claims of or against the Trust, and to adjust any dispute in relation to such debts or claims by arbitration or otherwise, and may pay any debts or claims against the Trust upon any evidence that seems to the Trustees to be sufficient. The Trustees may bring any suit or action, which in their judgment is necessary or proper to protect interests of the Trust, or to enforce any claim, demand or contract for the Trust; and they shall defend, in their discretion, any suit against the Trust, or the Trustees or employees, agents or servants thereof. They may compromise and settle any suit or action, and discharge the same out of Trust assets, together with court costs and attorney fees. All such expenditures shall be treated as expenses of executing this Trust.

**8.** To do all other acts in their judgment necessary or desirable for the proper and advantageous management, investment, and distribution of the Trust Estate and income therefrom.

The whole title, legal and equitable, to the Trust property is and shall be vested in the Trustees, as such title in the Trustees is necessary for their due execution of this Trust. Said Trustees shall have and exercise exclusive management and control of the Trust properties for the use and benefit of the beneficiary; but may agree for approval of any or all of its actions and transactions by the governing board of the beneficiary.

No purchaser at any sale or lessee under a lease made by the Trustees shall be bound to inquire into the expediency, propriety, validity or necessity of such sale or lease or to see to or be liable for the application of the purchase or rental monies arising therefrom.

Bonds to be issued by the Trustees shall not constitute an indebtedness of the State of Oklahoma nor of the City of Tulsa, Oklahoma, nor personal obligations of the Trustees of the Tulsa Municipal Airport Trust, but shall constitute obligations of the Trustees payable solely from the Trust Estate.

The Trustees, the State of Oklahoma and the beneficiary herein shall not be charged personally with any liability whatsoever by reason of any act or omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trust property; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust property, shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

No contract, lease, indenture or agreement of any nature whatsoever, to which the Trustees shall be a party, shall be deemed ineffectual or invalid by reason of the fact that any one or more of such Trustees may execute such contract, lease, indenture or agreement for, or on behalf of, the other parties thereto.

Any firm of which any Trustee may be a member, or any public or private corporation, association, commission or agency of which any Trustee may be an officer, director or member, or in which any Trustee may be interested as the holder of any amount of its capital stock, or otherwise, or any Trustee individually, may be a party to, or may be

pecuniarily or otherwise interested in, any contract or transaction with this Trust or the Trustees thereof, and, in the absence of fraud, no contract or other transaction shall be thereby affected or invalidated; provided that in case a Trustee individually, or a firm of which a Trustee is a member, or a corporation in which any Trustee owns a substantial amount of capital stock, is so interested, such fact shall be disclosed or shall have been known to the other Trustees.

## ARTICLE VIII.
## Beneficiary of Trust.

**1.** The beneficiary of this Trust shall be the City of Tulsa, Oklahoma, a municipal corporation, under and pursuant to Title 60, Oklahoma Statutes, 1951, Sections 176 to 180, both inclusive, as amended. Trustor now declares that this Indenture shall be irrevocable from the moment it is signed by it and delivered to the Trustees, and that it shall thereafter stand without any power whatsoever at any time to alter, amend, revise, modify, revoke or terminate any of the provisions of this Indenture.

**2.** The Trustees shall first pay all indebtedness of the Trust and interest thereon, and second, shall pay the costs and expenses incident to the management, operation, maintenance and conservation of this Trust and shall then pay the balance to the beneficiary of the Trust.

## ARTICLE IX.
## Termination of Trust.

This Trust shall terminate:

**1.** When the purposes set out in Article III of this Indenture shall have been fully executed; or

**2.** In the manner provided by Title 60, Oklahoma Statutes, 1951, Section 180.

Provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of this Trust, and after payment of all debts and obligations out of Trust money to the extent thereof shall distribute the residue of the money and Trust property to the Beneficiary hereunder. Upon final distribution the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE X.

The Trustees accept the Trust herein created and provided for, and agree to carry out the provisions on their part to be performed.

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands this 5th day of August, 1957.

THE TULSA CHAMBER OF COMMERCE

/s/ Cleo C. Ingle
President

TRUSTOR

ATTEST:

/s/ C.A. Border
Secretary

/s/ N.G. Henthorne
N. G. Henthorne

/s/ Richard Lloyd Jones, Jr.
Richard Lloyd Jones, Jr.

/s/ E. Fred Johnson
E. Fred Johnson

/s/ Sid W. Patterson
Sid W. Patterson

/s/ George E. Norvell
George E. Norvell

TRUSTEES

[ACKNOWLEDGMENTS]

**CERTIFICATE OF ACCEPTANCE**

STATE OF OKLAHOMA )
) ss.
COUNTY OF TULSA )

We, the undersigned, Chairman and Secretary of the Tulsa Park Board, hereby certify that the Tulsa Park Board duly accepted the above and foregoing Trust Indenture creating the Tulsa Municipal Airport Trust for the sole and exclusive benefit of the City of Tulsa, Oklahoma, pursuant to Resolution of the Park Board duly adopted August 5, 1957, as shown by the official minutes of said meeting.

Dated August 5, 1957.

/s/ N.G. Henthorne
Chairman, Tulsa Park Board

(SEAL)

ATTEST:

/s/ O.A. Zeigler
Secretary, Tulsa Park Board

**CERTIFICATE OF ACCEPTANCE**

STATE OF OKLAHOMA )
) ss.

COUNTY OF TULSA )

Pursuant to the provisions of Ordinance No. 8236, I hereby certify that the City of Tulsa has accepted the above and foregoing Trust Indenture, creating the Tulsa Municipal Airport Trust, for the sole and exclusive benefit of said City of Tulsa, Oklahoma, all as provided by the terms and conditions of said Ordinance, a copy of which is hereto attached.

Dated August 6th, 1957.

/s/ George E. Norvell
Mayor

ATTEST:

/s/ A. Jackson Lawrence
City Auditor

## APPENDIX III AMENDMENT TO LEASE (SECTION 406)

*("Exhibit A" in Ord. No. 8461)*

THIS AGREEMENT, by and between the City of Tulsa, Oklahoma, a Municipal Corporation, herein called City, and N.G. Henthorne, E. Fred Johnson, Richard Lloyd Jones, Jr., Wade C. Whiteside and James L. Maxwell, as Trustees of the Tulsa Municipal Airport Trust, second party, herein called Trustees,

W I T N E S S E T H:

That for and in consideration of the mutual promises and terms, covenants and conditions herein set forth, the parties have agreed and hereby agree as follows:

**1.** The Lease heretofore entered into by and between the City of Tulsa, Oklahoma, as Lessor, and N.G. Henthorne, Richard Lloyd Jones, Jr., E. Fred Johnson, Sid W. Patterson and George E. Norvell, as Trustees of the Tulsa Municipal Airport Trust, which Lease was duly executed on the 6th day of August, 1957 and recorded in Book 2803, page 131, of the records of the Tulsa County Clerk, on the 9th day of August, 1957, covering the following described lands in Tulsa County, Oklahoma, to-wit:

All of that part of the S 1/2 of Section 13 and all that part of the N 1/2 of Section 24, Township 20 North, Range 13 East, particularly described as follows: Beginning at the northeast corner of the SE 1/4 of said Section 13; thence west along the north boundary of the SE 1/4 of said Section 13 to the northwest corner of the SE 1/4 of said Section; thence south along the half section line of said Section 13 to a point in the half section line 1565 feet north of the south boundary of said Section 13; thence wouthwesterly (sic) along a line bearing south 14° 37' west a distance of 655.30 feet to a point 200 feet east of the east boundary of the taxiway now constructed, which point is 165.34 feet west of the half section line of said Section 13 and 931.06 feet north of the south boundary of said Section 13;

Thence in a southwesterly direction and parallel to said taxiway and 200 feet east from the east boundary of said taxiway on a bearing south 3° 4' 30" west a distance of 1537.65 feet to a point in the NE 1/4 of the NW 1/4 of Section 24, Township 20 North, Range 13 East and which point is 604.38 feet south of the north boundary of said Section 24 and 247.83 feet west of the north-south half section line of said Section 24; thence in a southeasterly direction and parallel to the south boundary of the concrete apron of the maintenance base of the American Airlines on a bearing south 76° 00' 58" east a distance of 2978.32 feet more or less to the east boundary of said Section 24; thence north and along the east boundary of Section 24 and 13, to the northeast corner of the SE 1/4 of said Section 13, the point of beginning, is hereby amended in the manner hereinafter set out.

**2.** Said Lease shall expire fifty (50) years from the last day of the month in which the construction and installation of improvements undertaken by the Trustees shall be completed, as evidenced by (1) the certificate of completion of the Trustees and American Airlines, Inc., countersigned by Coston-Frankfurt-Short, as Architects, of Oklahoma City, Oklahoma, stating that such improvements have been substantially completed and are ready for occupancy by American Airlines, Inc., stating the date on which completion occurred and setting forth in reasonable detail the final cost

of such improvements and listing all items of equipment included in such improvements, (2) a certificate of completion of Trustees, endorsed to show the acceptance of American Airlines, Inc., stating that all items of equipment constituting a part of such improvements have been acquired and installed and are ready for use by American Airlines, Inc. and stating the final cost of such equipment, and (3) a certified copy of any other certificate or permit which may be required by any Federal, State or local government or agency in connection with the occupancy thereof by American Airlines, Inc.

**3.** Section 2 of said Lease is hereby amended by adding the following paragraph thereto:

"The Trustees are hereby given and granted an easement over and under the railway right-of-way owned by Lessor and used as a spur track serving the maintenance depot on the above-described property and over and under the park property of the City of Tulsa for the purpose of maintaining and operating the transit waste disposal line located as follows: beginning at the center of Section 13 and continuing north paralleling and 25 feet from the railroad track as established on said right-of-way to the north line of Section 13, thence in a generally northwesterly direction across the park property of Lessor to the Southwest corner of the Northeast Sewage Disposal Plant on said Disposal Plant property, attaching to and entering the effluent line of said plant at the outfall manhole known as Manhole "B", all as shown on the plat attached hereto and made a part hereof."

**4.** Section 6 of said Lease is hereby amended by inserting "(a)" after the heading and by adding a new paragraph (b) to read as follows:

"(b) Lessee agrees to cause American Airlines, Inc. or any successor operator of the maintenance depot located on the demised premises (i) to indemnify Lessor and hold it harmless to the extent of any injury or loss suffered or incurred by Lessor which is caused by and directly traceable to the disposal of industrial waste from such maintenance depot through the effluent line of Lessor's Northeast Sewage Disposal Plant, and (ii) to maintain the transit waste disposal line referred to in paragraph 2 hereof and the oil separator equipment installed in connection therewith as long as it uses the same in good state of repair at its own expense; provided, that American Airlines, Inc. or any such successor shall have the right, at its own election and determination, to remove said line and separator equipment if at any time it ceases to require the use of said line and may abandon or otherwise dispose thereof, and provided further that if said line is disposed of to another purchaser then such purchaser desiring or intending to use said line in place must, prior to any use of said line, obtain the approval of the City of Tulsa of such use."

**5.** Section 7 of said Lease is hereby amended by adding at the end thereof the following:

"Lessor agrees to keep open for such use the taxi-way now extending from the southwesterly corner of the above described premises to the easterly side of taxiway No. VIII and across said taxiway No. VIII to the easterly side of the north-south 10,000 foot runway at the Tulsa Municipal Airport for all such purposes of ingress to and egress from said Tulsa Municipal Airport by aircraft. Lessor further covenants and agrees to permit waste disposal to be emptied into and through the effluent line

leading from Lessor's Northeast Sewage Disposal Plant at Manhole "B", as described in Paragraph 2 of this lease, provided that oil shall have been removed from such waste by the use of oil separators approved by Lessor."

**6.** Except as herein amended said Lease from the City of Tulsa, as Lessor, to the Trustees of said Municipal Airport Trust, as Lessee, dated August 6, 1957 and recorded as above described, shall be and remain in full force and effect.

IN WITNESS WHEREOF, the parties have executed this Amendment to Lease this 27th day of May, 1958.

CITY OF TULSA, OKLAHOMA

By _____
Chairman of the Tulsa
Airport Authority

/s/ James L. Maxwell
Mayor

ATTEST:

/s/ Raymond Hoagland
Deputy City Auditor

(SEAL)

APPROVED:

/s/ Darven L. Brown
City Attorney

_____
N.G. Henthorne

_____
E. Fred Johnson

/s/ Richard Lloyd Jones, Jr.
Richard Lloyd Jones, Jr.

_____
Wade C. Whiteside

/s/ James L. Maxwell
James L. Maxwell

Trustees of Tulsa
Municipal Airport Trust

LESSEE

[ACKNOWLEDGMENTS]

**APPENDIX IV CANCELLATION OF LEASE (SECTION 409)**

*("Exhibit B" in Ord. No. 8461)*

THIS AGREEMENT made this 24th day of June, 1958, by and between N.G. HENTHORNE, E. FRED JOHNSON, RICHARD LLOYD JONES, JR., JAMES L. MAXWELL and WADE C. WHITESIDE, Trustees of TULSA MUNICIPAL AIRPORT TRUST, hereinafter called the "Trustees", and AMERICAN AIRLINES, INC., a Delaware corporation, hereinafter called "American".

W I T N E S S E T H:

WHEREAS, by lease dated January 10, 1946 as modified by amendment to lease dated July 3, 1948 (hereinafter called the "Lease"), the City of Tulsa, Oklahoma (hereinafter called the "City"), leased to American certain property known as the Modification Center located in Tulsa County, Oklahoma, at the northeast corner of the Tulsa Municipal Airport, the same being more particularly described as follows:

Beginning at the center of Section 13, Township 20 North, Range 13 East, thence east along the center section line a distance of 1980 feet to a point, thence south and along the west boundary line of the east half of the Northeast Quarter of the Southeast Quarter of said Section 13, a distance of 1320 feet; thence west along the north boundary of the Southeast Quarter of the Southeast Quarter of said Section 13 to a point in the easterly boundary of the concrete apron now paved around certain buildings known and described as the Modification Center; thence in a southwesterly direction along the easterly boundary of said concrete apron to the south boundary thereof located in the Northwest Quarter of the Northeast Quarter of Section 24, Township 20, North, Range 13 East; thence in a westerly direction along the south boundary of said concrete apron to the intersection thereof with a taxiway now located on the Municipal Airport in the Northwest Quarter of said Section 24; thence in a northerly direction along the west boundary of said concrete apron to a point where the same intersects with the south boundary line of the Southwest Quarter of said Section 13, Township 20 North, Range 13 East; thence east along the south boundary line of said section to the half section line; thence north along the half section line of said Section 13 to the point of beginning; provided, however, that Lessor shall be entitled to use the South 100 feet of said apron as part of its taxi-way system, and no part of the said south 100 feet shall be in the exclusive possession of Lessee;

And also a tract of land in the East Half of the Southwest Quarter of Section 13, Township 20 North, Range 13 East, described as follows:

Beginning at the southeast corner of the Southwest Quarter of said Section 13; thence north along the half section line of said Section 13 a distance of 1665 feet; thence Southwesterly along a line bearing south 14 degrees, 37 minutes west a distance of 1165 feet; thence southwesterly along a curve on a radius of 523.69 feet a distance of 688 feet more or less; thence south and parallel to the east boundary of said Section 13 a distance of 50 feet to the south boundary line of said section; thence east along said south boundary of said Section 13 a distance of 800 feet more or less to the point of beginning; the lands containing 8.49 acres more or less;

And also all of the easements which Lessor may acquire from the United States with reference to a certain railroad spur, trackage and rights of way extending in a generally northerly direction from said Modification Center to the Atchison, Topeka and Santa Fe Railroad in Section 12, Township 20 North, Range 13 East.

WHEREAS, by Lease dated August 6, 1957 as modified by amendments to lease dated May 27, 1958 and June 20, 1958, respectively (hereinafter called the "Ground Lease"), the City has leased to the Trustees certain premises in Tulsa County, Oklahoma, located at Tulsa Municipal Airport and including the Modification Center, subject to the rights of American under the Lease.

WHEREAS, under the provisions of the Ground Lease, the Trustees were granted authority by the City to agree with American for the cancellation of the Lease and for the termination of the leasehold estate represented thereby and existing rights thereunder held by American and to enter into a new lease with American; and

WHEREAS, pursuant to such authority the Trustees have subleased to American the premises covered by the Ground Lease, including the Modification Center, by Sublease dated this day;

NOW, THEREFORE, in consideration of the premises, the parties hereto have agreed and hereby agree as follows:

**1.** The Lease is hereby cancelled and terminated and American is hereby released from any and all obligations, past or future, incurred under or by reason of or arising out of the Lease.

**2.** The Trustees acknowledge that $35,000 has been paid to the City as advance rental under the Lease for the twelve-month period beginning February 1, 1958 and that the prorated portion of such rental for the period from the date hereof through January 31, 1959, shall be credited to American towards its obligation to pay basic rental under clause (a) (i) of Section 3 of said Sublease.

IN WITNESS WHEREOF, the parties hereto have executed and delivered this Cancellation of Lease the day and year first above written.

/s/ N.G. Henthorne
N.G. Henthorne

/s/ E. Fred Johnson
E. Fred Johnson

/s/ Richard Lloyd Jones, Jr.
Richard Lloyd Jones, Jr.

/s/ James L. Maxwell
James L. Maxwell

/s/ Wade C. Whiteside
Wade C. Whiteside

Trustees of Tulsa Municipal Airport Trust

AMERICAN AIRLINES, INC.

/s/ George C. VanNostrand
Vice President

ATTEST:

/s/_____
Assistant Secretary

(Corporate Seal)

[ACKNOWLEDGMENTS]

## APPENDIX V RESOLUTION OF AIRPORT AUTHORITY (SECTION 414)

*("Exhibit A" in Ord. No. 8480)*

At a special meeting of the Tulsa Airport Authority held on the 19th day of June, 1958,

PRESENT: N.G. Henthorne, Richard Lloyd Jones, Jr., E. Fred Johnson, Wade C. Whiteside, and James L. Maxwell,

ABSENT: None,

the following resolution was adopted by the following vote:

YEAS: Five (5).

NAYS: None (0).

### RESOLUTION

A RESOLUTION APPROVING PROPOSED SECOND AMENDMENT TO LEASE WHICH WILL AMEND THE LEASE BY AND BETWEEN THE CITY OF TULSA AND THE TRUSTEES OF THE TULSA MUNICIPAL AIRPORT TRUST, EXECUTED AUGUST 6, 1957, AS AMENDED BY THE AMENDMENT TO LEASE EXECUTED THE 11TH DAY OF JUNE, 1958, AND AUTHORIZING THE EXECUTION OF SAID PROPOSED SECOND AMENDMENT TO LEASE BY THE CHAIRMAN OF THE TULSA AIRPORT AUTHORITY AND THE SUBMISSION THEREOF TO THE MAYOR AND BOARD OF COMMISSIONERS OF THE CITY OF TULSA, OKLAHOMA, WITH THE RECOMMENDATION THAT SAID PROPOSED SECOND AMENDMENT TO LEASE BE APPROVED.

BE IT RESOLVED BY THE TULSA AIRPORT AUTHORITY AS FOLLOWS:

**1.** The Second Amendment to Lease between the City of Tulsa, Oklahoma, and the Trustees of the Tulsa Municipal Airport Trust, as particularly set forth in the copy thereof marked Exhibit 1 attached to this resolution and hereby made a part hereof as completely as if set out in full herein, is hereby approved.

**2.** The Chairman of the Tulsa Airport Authority is instructed, empowered and directed to execute multiple copies of said proposed Second Amendment to Lease, each of which copies shall be deemed an original, and to submit the same to the Mayor and Board of Commissioners of the City of Tulsa with the recommendation of the Tulsa Airport Authority that said Second Amendment to Lease be approved, and that the Mayor and City Auditor of the City of Tulsa be authorized to sign the said Second Amendment to Lease upon its being approved by the City Attorney.

**3.** The signing by the Chairman of the Tulsa Airport Authority of the Amendment to Lease, approved by resolution of the Tulsa Airport Authority on May 14, 1958, is hereby ratified, validated and confirmed.

CERTIFICATE

STATE OF OKLAHOMA )
) ss.
COUNTY OF TULSA )

I, the undersigned, Secretary of the Tulsa Airport Authority, do hereby certify that the above and foregoing is a true and correct excerpt from the minutes of the meeting of the Tulsa Airport Authority held on the 19th day of June, 1958, as shown by the official minutes of said meeting.

/s/ Remington Rogers
Secretary

**EXHIBIT 1**
**SECOND AMENDMENT TO LEASE**

THIS AGREEMENT, by and between the City of Tulsa, Oklahoma, a Municipal Corporation, herein called City, and N.G. Henthorne, E. Fred Johnson, Richard Lloyd Jones, Jr., Wade C. Whiteside and James L. Maxwell, as Trustees of the Tulsa Municipal Airport Trust, second party, herein called Trustees,

WITNESSETH:

That for and in consideration of the mutual promises and terms, covenants and conditions herein set forth, the parties have agreed and hereby agree as follows:

**1.** The Lease heretofore entered into by and between the City of Tulsa, Oklahoma, as Lessor, and N.G. Henthorne, Richard Lloyd Jones, Jr., E. Fred Johnson, Sid W. Patterson and George E. Norvell, as Trustees of the Tulsa Municipal Airport Trust, which Lease was duly executed on the 6th day of August, 1957 and recorded in Book 2803, page 131, of the records of the Tulsa County Clerk, on the 9th day of August, 1957, as amended by the Amendment to Lease heretofore entered into by and between the City of Tulsa, as Lessor, and N.G. Henthorne, E. Fred Johnson, Richard Lloyd Jones, Jr., Wade C. Whiteside and James L. Maxwell, as Trustees of the Tulsa Municipal Airport Trust, which Amendment to Lease was duly executed on the 27th day of May, 1958 and recorded in Book 2873, page 112 of the records of the Tulsa County Clerk on the 11th day of June, 1958, covering the following described lands in Tulsa County, Oklahoma, to-wit:

All of that part of the S 1/2 of Section 13 and all that part of the N 1/2 of Section 24, Township 20 North, Range 13 East, particularly described as follows:

Beginning at the Northeast corner of the SE 1/4 of said Section 13; thence west along the north boundary of the SE 1/4 of said Section 13 to the northwest corner of the SE 1/4 of said Section; thence south along the half section line of said Section 13 to a point in the half section line 1565 feet north of the south boundary of said Section 13; thence southwesterly along a line bearing south 14° 37' west a distance of 655.20 feet to a point 200 feet east of the east boundary of the taxiway now constructed, which point is 165.34 feet west of the half section line of said Section 13 and 931.06 feet north of the south boundary of said Section 13.

Thence in a southwesterly direction and parallel to said taxiway and 200 feet east from the east boundary of said taxiway on a bearing south 3° 4' 30" west a distance of 1537.65 feet to a point in the NE 1/4 of the NW 1/4 of Section 24, Township 20 North, Range 13 East and which point is 604.38 feet south of the north boundary of said Section 24 and 247.83 feet west of the north-south half section line of said section 24; thence in a southeasterly direction and parallel to the south boundary of

the concrete apron of the maintenance base of the American Airlines on a bearing south 76° 00' 58" east a distance of 2978.32 feet more or less to the east boundary of said Section 24; thence north and along the east boundary of Section 24 and 13, to the northeast corner of the SE 1/4 of said Section 13, the point of beginning is amended in the manner hereinafter set out.

**2.** The first paragraph of Section 6 of said Lease, denominated (a) by said Amendment to Lease, is hereby amended to read as follows:

"(a) Lessee shall not suffer any use or occupancy of said premises contrary to any law or ordinance now or hereafter in force, and Lessee shall not allow any part of the leased property to be subjected to any mechanic's or materialmen's liens, provided, however, that Lessee need not discharge any such liens if and so long as the applicability and validity thereof is being contested by appropriate proceedings diligently prosecuted in good faith and if such proceedings shall stay the execution or enforcement thereof so that pending such proceedings the leased property shall not be affected thereby. The Lessee covenants that no obstruction to air navigation as such is determined by application of the criteria of the Civil Aeronautics Administration Technical Standard Order N-18, will be permitted on the premises and property leased hereunder, and further covenants that this restriction shall run with the land."

**3.** Except as amended by the Amendment to Lease referred to above and as herein amended, said Lease from the City of Tulsa, as Lessor, to the Trustees of the Tulsa Municipal Airport Trust, as Lessee, dated August 7, 1957 and recorded as above described, shall be and remain in full force and effect.

IN WITNESS WHEREOF, the parties have executed this Second Amendment to Lease this day of June, 1958.

CITY OF TULSA, OKLAHOMA

By _____
Chairman of the Tulsa Airport Authority

By /s/ James L. Maxwell
Mayor

ATTEST:

_____
City Auditor

APPROVED:

_____
City Attorney

_____
N.G. Henthorne

_____
E. Fred Johnson

Richard Lloyd Jones, Jr.

Wade C. Whiteside

/s/ James L. Maxwell
James L. Maxwell

Trustees of the Tulsa Municipal Airport Trust

LESSEE

## CHAPTER 5. TULSA PARKING AUTHORITY

Section 500. Beneficial interest in Tulsa Parking Authority Trust accepted.
Section 501. Tulsa Parking Authority to mean the Trust.
Section 502. Mayor and City Auditor authorized to endorse approval of City on Trust Indenture.
Appendix I Trust Indenture Tulsa Parking Authority (Sections 500, 501 and 502) ("Exhibit A" in Ord. No. 9601).
Appendix II Amendment to Trust Indenture Tulsa Parking Authority (Sections 500, 501, and 502) ("Exhibit A" in Ord. No. 9601).
Appendix III Second Amendment to Trust Indenture Tulsa Parking Authority (Sections 500, 501, and 502) ("Exhibit A" in Ord. No. 9601).
Appendix IV Third Amendment to Trust Indenture Tulsa Parking Authority (Sections 500, 501 and 502) ("Exhibit A" in Ord. No. 9601).

### Section 500. Beneficial interest in Tulsa Parking Authority Trust accepted.

The Tulsa Parking Authority Trust, created by Trust Indenture dated February 8, 1963, an executed copy of which Trust Indenture is hereto attached, marked "Exhibit A" and made a part hereof, wherein Ohren Smulian, C. A. Astle, Harry A. Clarke, James L. Maxwell as Mayor of the City of Tulsa, and Charles E. Norman as City Attorney of the City of Tulsa, are designated trustees, and the City of Tulsa, Oklahoma, is designated as the sole beneficiary of said Tulsa Parking Authority Trust, is hereby approved and the City of Tulsa hereby accepts the beneficial interest therein, and all of the terms and provisions of said Trust Indenture as authorized by the applicable statutes of the state of Oklahoma, and the City of Tulsa hereby agrees to be and become the sole beneficiary of said trust.

*(Ord. No. 9601)*

### Section 501. Tulsa Parking Authority to mean the Trust.

The City of Tulsa hereby recognizes said Tulsa Parking Authority Trust and the trustees named in said Trust Indenture, and in all negotiations and instruments where the term "Tulsa Parking Authority" is used it shall be deemed and construed to mean the trust above mentioned and described.

*(Ord. No. 9601)*

### Section 502. Mayor and City Auditor authorized to endorse approval of City on Trust Indenture.

The Mayor and the City Auditor of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture the approval of the City of Tulsa of said Trust Indenture creating the Tulsa Parking Authority, and the City's acceptance of the beneficial interest therein, and to cause said Trust Indenture to be recorded in the office of the County Clerk of Tulsa County, Oklahoma.

*(Ord. No. 9601)*

## APPENDIX I TRUST INDENTURE TULSA PARKING AUTHORITY (SECTIONS 500, 501, AND 502)

*("Exhibit A" in Ord. No. 9601)*

KNOW ALL MEN BY THESE PRESENTS:

This Trust Indenture dated this 8th day of February, 1963, by Downtown Tulsa Unlimited of Tulsa, Oklahoma, a non-profit corporation organized and existing under the laws of the State of Oklahoma hereinafter referred to as Trustor, and James L. Maxwell, Charles E. Norman, Ohren Smulian, Harry A. Clarke and C.A. Astle, to be known as the Trustees of the Tulsa Parking Authority, and hereinafter referred to as Trustees.

WITNESSETH:

That in consideration of payment by Trustor to the Trustees of the sum of Five Hundred Dollars ($500.00) and the assignment of all rights and interest in the contract with the City of Tulsa dated July 1, 1960, and amended on October 27, 1961, allowing for the operation of a motor vehicle parking facility on Blocks 129, 130, 131, 132 155, 154 and 153, Original Town, now City of Tulsa, Tulsa County, Oklahoma, according to the recorded plat thereof; and of the mutual covenants herein set forth, the said Trustees agree to hold, manage, invest, assign, convey and distribute as herein provided, authorized and directed, such property as Trustor, or other, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Authority or the Trustees hereof.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits and increases thereof unto said Trustees, and said Trustees' successors and assigns, but nevertheless in Trust, for the use and benefit of the City of Tulsa, Oklahoma, and upon the following trusts, terms and conditions herein stated.

### ARTICLE I.
### Creation of Trust

The undersigned Trustor creates and establishes a Trust for the use and benefit of the City of Tulsa, Oklahoma, and for the public purpose hereinafter set forth, under the provisions of Title 60, Oklahoma Statutes, 1961, Sections 176 to 180 inclusive, the Oklahoma Trust Act and other applicable Statutes of the State of Oklahoma.

### ARTICLE II.
### Name

The name of this Trust shall be "Tulsa Parking Authority" hereinafter referred to as "Authority". The Trustees shall conduct all business and execute all instruments, and otherwise perform the duties and functions required in the execution of this Trust.

### ARTICLE III.
### Purposes of Trust

The purposes of this Trust are:

**1.** To acquire or construct within the corporate boundaries of the City of Tulsa, Oklahoma, and to own, maintain and operate or to own and lease to or cause to be maintained or operated by an operating company, corporation, or individual or to

own and to lease to a person, firm, or corporation who shall construct, finance and operate one or more automotive parking stations (which term shall include parking lots, parking areas, as well as buildings or other structures for parking or storing automotive vehicles) having floor levels of any number, elevated, surface or sub-surface and when operated by said Authority to charge fees and tolls for the use of such facilities. The right of the Authority to own, maintain, operate, and cause to be operated such facilities and to fix and collect fees and tolls for the use of such facilities is hereby declared to be a public right and use, and such right and facilities to constitute a public benefit.

**2.** In carrying out said public purposes to issue bonds, notes and other obligations in such manner and at such price as the Trustees may deem desirable and to secure the payment of such bonds, notes or other obligations by the pledge of all or any part of the rents and income of the Authority.

**3.** To hold maintain and administer any leasehold rights, in and to physical properties demised to the beneficiary or to the Trust Estate and to comply with the terms and conditions of any such lease.

**4.** To acquire by lease, purchase, or otherwise, and to plan, establish, develop, construct, enlarge, improve, maintain, equip, operate and regulate any and all physical properties designated or needful for utilization in the furnishing and providing of services in connection with the automotive parking stations and to dispose of, rent, or otherwise make provisions for properties owned by the Authority but no longer needful for Trust purposes.

**5.** To enter into lease-purchase, or rental agreements and to comply with the terms and conditions of any leases or other contracts made in connection with the acquisition, equipping, maintenance, occupancy, and disposal of any of said property.

**6.** To provide funds for the cost of financing, acquiring, constructing, purchasing, equipping, maintaining, leasing, repairing, improving, extending, enlarging, remodeling, holding, operating, and administering any or all foresaid services, utilities, buildings, facilities, and all properties, real, personal or mixed, needful for executing and fulfilling the Trust purposes as set forth in this Indenture and all other charges, costs, and expenses necessarily incurred in connection therewith, including promotional and advertising expenses and in so doing to incur indebtedness either unsecured or secured by all or any part of the Trust Estate and its revenues.

**7.** To expend all funds coming into the hands of the Trustees as revenue or otherwise for the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the aforesaid costs and expenses, and in payment of any other obligation properly chargeable against the Trust Estate and to distribute the remainder of such funds to the beneficiary municipality.

## ARTICLE IV.
## Duration of Trust

This Trust shall have duration for the term of duration of the Beneficiary and until such time as its purpose shall have been fulfilled or until it shall be terminated as hereinafter provided.

## ARTICLE V.
## The Trust Estate

The Trust Estate shall consist of:

**1.** The funds and property presently in the hands of the Trustees, including the consideration as hereinabove recited.

**2.** Any and all leasehold rights demised to said Trustees for the purposes of this Trust.

**3.** Any and all improvements that may be constructed by, or in behalf of the Trustees upon any property owned by or leased to said Trustees.

**4.** Any and all improvements that may be constructed by, or in behalf of, the City of Tulsa upon any property owned by the City and leased to said Trustees.

**5.** Any and all money, property, real, personal or mixed, rights, choses in action, contracts, leases, privileges, immunities, licenses, franchises, benefits and all other things of value coming into the possession of the Trustees, pursuant to the provisions of this Indenture.

## ARTICLE VI.
## The Trustees

**1.** There shall be five Trustees of this Authority:

**(a)** The Mayor of the City of Tulsa, whoever he may be, shall be a trustee during his incumbency and shall serve until his successor as Mayor has been duly elected and qualified.

**(b)** The City Attorney of the City of Tulsa, whoever he may be, shall be a trustee during his incumbency and shall serve until his successor as City Attorney has been duly appointed and qualified.

**(c)** C.A. Astle, Tulsa, Oklahoma, shall be a Trustee for a term of two years, commencing on the date of this Indenture. Harry A. Clarke, Tulsa, Oklahoma, shall be a Trustee for a term of four years, commencing on the date of this Indenture. Ohren Smulian, Tulsa, Oklahoma, shall be a Trustee for a term of six years, commencing on the date of this Indenture. Successors to these Trustees shall be appointed by the Board of Commissioners of the City of Tulsa upon nomination by the Mayor of the City of Tulsa. Each of the successor Trustees so appointed shall serve a term of six years. Vacancies occurring otherwise than through the expiration of term shall be filled for the unexpired term in the same manner as that provided for the appointment as a successor to that position.

**2.** Each successor duly appointed shall without any further act or conveyance become fully vested with all of the estate, properties, rights, powers, duties and obligations of his predecessor hereunder, with like effect as if originally named as Trustee.

**3.** The three Trustees appointed by the Board of Commissioners of the City of Tulsa upon nomination by the Mayor of the City of Tulsa shall during their term be subject to removal only by action of the District Court of Tulsa County, for cause shown.

**4.** In the event of the default in payment of principle or of interest on any indebtedness created by said Trustees or any default under any instrument securing or pursuant to which such debt be incurred, a Temporary Trustee or Receiver may be appointed as

shall be provided in any such instrument. Such Temporary Trustee or Receiver shall without any further act or conveyance become fully vested with all of the estate, properties, rights, powers, trusts, duties and obligations of his predecessors in Trust with like effect as if originally named as Trustee herein. The Temporary Trustee or Receiver shall cease to have any power or authority upon the termination of all the defaults by which his appointment would have been authorized and the permanent Trustees temporarily supplanted, shall be automatically reinstated.

**5.** Bonds or other evidences of indebtedness to be issued by the Trustees shall not constitute an indebtedness of the City of Tulsa, nor personal obligations of the Trustees of the Authority, but shall constitute obligations of the Trustees payable solely from the Trust Estate.

**6.** The Trustees, the City of Tulsa or any agency thereof, shall not be charged personally with any liability whatsoever by reason of any act of omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trust Estate; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**7.** No Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or the Beneficiary in his or its capacity, nor can the Beneficiary bind or obligate the Authority or any individual Trustee.

**8.** No Trustee shall be paid any compensation of any kind for his services as Trustee of this Authority, except that each such Trustee shall be reimbursed for actual expenses incurred in the performance of his duties as a Trustee.

## ARTICLE VII.
## Powers and Duties of the Trustees

Subject to the provisions and limitations otherwise provided in this Indenture, the Trustees shall have, in addition to the usual powers incident to their office, and the powers granted to them in other parts of this Trust Indenture, the following rights, powers, duties, authority, discretion and privileges, all of which may be exercised by them without any order or authority from any Court:

**1.** To enter into and execute, purchase, lease, or otherwise acquire property, real, personal, or mixed, franchises, contracts, leases, rights, privileges, benefits, choses in action, or other things of value and to pay for the same in cash, with bonds, or other evidences of indebtedness or otherwise.

**2.** To make and change investments, to convert real into personal property and vice versa, to lease, improve, exchange, or sell, at public or private sale, upon such terms as they deem advisable, any or all of the property in the Trust, real or personal, to borrow money or renew loans for the Trust, to refund outstanding bonded indebtedness, and to execute therefore evidences of indebtedness and to secure the same by mortgage, lien, pledge, or otherwise; to purchase property from any person and purchase or lease land and other property from the Beneficiary and construct, and equip buildings and facilities thereon, and lease, sub-lease, or rent, on such terms as they deem advisable, the same to individuals, partnerships,

associations, corporations, and others, including agencies of the United States of America, State of Oklahoma, and political sub-divisions of the State, and procure funds necessary for such purpose by the sale of bonds or other evidences of indebtedness and secure the payment of such bonds of other evidences of indebtedness by mortgage, lien, pledge, or other encumbrance of such real and personal property, buildings and facilities owned or otherwise acquired, leased, or controlled by Trustees and rentals, income, receipts, and profits therefrom or from any other revenues associated with the ownership, operation or control of the property of the Authority; to lease or sub-lease on such terms as they deem advisable, any property of the Authority, or of which the Trustees may become the owners or lessees.

**3.** To fix, demand and collect charges, rentals, fees and tolls for the services and facilities of the Authority to the same extent as the Beneficiary might do and to discontinue furnishing of services and facilities to any person, firm or corporation or public instrumentality, delinquent in the payment of any indebtedness to the Trust. To purchase and sell such supplies, goods and commodities as are incident to the operation of its automotive parking stations.

**4.** To make and perform contracts of every kind including management contracts with any person, firm, corporation, association, trusteeship, municipality, or government; and without limit as to amount to draw, make, accept, endorse, assume, guarantee, account, execute, and issue promissory notes, drafts, bills of exchange, acceptances, warranties, bonds, debentures, and other negotiable or non-negotiable instruments, obligations and evidences of unsecured indebtedness, or of indebtedness secured by mortgage, deeds of trust, or otherwise, upon any or all property of the Authority and to pledge any or all income of the Authority in the same manner and to the same extent as a natural person might or could do. To collect and receive any property, money, rents, or income of any sort and distribute the same or any portion thereof, for the furtherance of the authorized Trust purposes set out herein.

**5.** To employ such counsel, agents, servants, and employees as they deem necessary or proper, and prescribe their duties and fix their compensation at such amounts, as is customary and normal in the operation of automotive parking stations; and select depositories for the funds and securities of this Authority. Any officer or employee having custody of Authority funds shall be bonded in such amount as may be designated by the Trustees.

**6.** To compromise any debts or claims of or against the Authority and to adjust any dispute in relation to such debts or claims by arbitration or otherwise and pay any debts or claims against the Authority upon any evidence that seems to the Trustees to be sufficient. The Trustees may bring any suit or action, which in judgment is necessary or proper to protect the interests of the Authority or to enforce any claim, demand, or contract for the Authority; and they shall defend in their discretion any suit against the Authority of the Trustees or employees, agents, or servants thereof. They may compromise and settle any suit or action and discharge the same out of Authority assets together with Court Costs and attorney fees. All such expenditures shall be treated as expenses of executing this Trust.

**7.** To do all other acts in their judgment necessary or desirable for the proper and advantageous management, investment and distribution of the Trust Estate and income therefrom.

The whole Title, legal and equitable, to the Authority property, is and shall be vested in the Trustees as such title in the Trustees is necessary for their due execution of this Trust. Said Trustees shall have and exercise exclusive management and control of the Trust properties for the use and benefit of the Beneficiary; but may agree for approval of any or all, of its actions and transactions by the governing board of the Beneficiary.

The Trustees may contract for the furnishing of any services, or for the performance of any duties that they may deem necessary, or proper, and pay for the same as they see fit; but in any case, said Trustees shall provide for an annual audit of the Authority property and operations, one copy each of which shall be filed with the Mayor and Auditor of the City of Tulsa, Oklahoma, and shall be open to public inspection.

No purchaser at any sale, or lessee under a lease made by the Trustees shall be bound to inquire into the expediency, propriety, validity or necessity of such sale or lease or to see to or be liable for, the application of the purchase or rental monies arising therefrom.

No contract, lease, indenture, or agreement of any nature whatsoever to which the Trustees shall be a party shall be deemed ineffectual or invalid by reason of the fact that any one or more of such Trustees may execute such contract, lease, indenture, or agreement for or on behalf of the other parties thereto.

Any firm of which any Trustee may be a member, or any public or private corporation, association, commission, or agency, of which any Trustee may be an officer, director, or member, or in which any Trustee may be interested as the holder of any amount of its capital stock, or otherwise, or any Trustee individually, may be a party to, or may be pecuniarly (sic), or otherwise interested in, any contract, or transaction with this Authority, or the Trustees thereof, and, in the absence of fraud, no contract or other transaction shall be thereby affected or invalidated; provided that in case a Trustee individually, or a firm of which a Trustee is a member, or a corporation in which any Trustee owns a substantial amount of capital stock, is so interested such fact shall be disclosed or shall have been known to the other Trustees.

## ARTICLE VIII.
## Beneficiary of Trust

**1.** The Beneficiary of this Trust shall be the City of Tulsa, Oklahoma, a municipal corporation, under and pursuant to, Title 60, Oklahoma Statutes 1961, Section 176 to 180, both inclusive. Trustor now declares that this Indenture shall be irrevocable from the moment it is signed by it and delivered to the Trustees and that it shall thereafter stand without any power whatsoever, at any time to alter, amend, revise, modify, revoke, or terminate any of the provisions of this Indenture.

**2.** The Trustees, after first paying all obligations of the Trust and interest thereon and all the costs and expenses incident to the management, operation, maintenance and conservation of this Trust, may then pay the balance to the Beneficiary of the Trust.

**3.** The City of Tulsa, Oklahoma, shall have no legal title, claim or right to the Trust Estate, its income, or to any part thereof, or to demand or require any partition or distribution thereof, except as set forth in Paragraph (2) of Article VIII. Neither shall said City of Tulsa, Oklahoma, or any agency thereof have any authority, power, or right, whatsoever, to do or transact any business for, or in behalf of, or binding upon the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the

Trustees. The City of Tulsa, Oklahoma, as Beneficiary of this Trust, shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder, and at the termination of the Trust as herein provided, and then only, shall said City of Tulsa, Oklahoma, receive the residue of the Trust Estate for the declared public purposes.

**ARTICLE IX.**
**Termination of Trust**

This Trust shall terminate:

**1.** When the purposes set out in Article III, of this Indenture shall have been fully executed; or

**2.** In the manner provided by Title 60, Oklahoma Statutes, 1961, Section 180.

Provided however, that this Trust shall not be terminated by voluntary action, if there be outstanding indebtedness, or fixed term obligations of the Trustees unless all owners of such indebtedness or obligations, shall have consented in writing to such termination.

Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of this Authority, and after payment of all debts and obligations out of Authority money, to the extent thereof, shall distribute the residue of the money and Authority property to the Beneficiary hereunder, upon final distribution, the powers, duties, and authority of the Trustees hereunder, shall cease.

**ARTICLE X.**
**Termination**

The Trustees accept the Trust herein created and provided for, and agree to carry out the provisions on their part to be performed.

IN WITNESS WHEREOF, the Trustor and the Trustees, have hereunto set their hands this 8th day of February, 1963.

DOWNTOWN TULSA UNLIMITED

By /s/ C.A. Mayo, Jr.
President
TRUSTOR

ATTEST:

/s/ L.A. Blust, Jr.
Secretary

/s/ James L. Maxwell

/s/ Charles E. Norman

/s/ C.A. Astle

/s/ Harry A. Clarke

/s/ Ohren Smulian
TRUSTEES

[ACKNOWLEDGMENTS]

## CERTIFICATE OF ACCEPTANCE

STATE OF OKLAHOMA )
) ss.
COUNTY OF TULSA )

Pursuant to the provisions of Ordinance No. 9601, I hereby certify that the City of Tulsa has accepted the above and foregoing Trust Indenture, creating the Tulsa Parking Authority, for the sole and exclusive benefit of said City of Tulsa, Oklahoma, all as provided by the terms and conditions of said Ordinance, a copy of which is hereto attached.

Dated this 12th day of February, 1963.

/s/ James L. Maxwell
Mayor

ATTEST:

/s/ William F. Lambert
City Auditor

[ACKNOWLEDGMENT]

## APPENDIX II AMENDMENT TO TRUST INDENTURE TULSA PARKING AUTHORITY (§§ 500—502) ("EXHIBIT A" IN Ord. No. 9601)

KNOW ALL MEN BY THESE PRESENTS:

WHEREAS, on the 8th day of February, 1963, a Trust Indenture herein the "Trust Indenture" was entered into by Downtown Tulsa Unlimited Inc., formerly Downtown Tulsa Unlimited of Tulsa, Oklahoma, a non-profit corporation organized and existing under the laws of the State of Oklahoma herein the "Trustor" and James L. Maxwell, Charles E. Norman, Ohren Smulian, Harry A. Clarke and C.A. Astle as Trustees of the Tulsa Parking Authority, and

WHEREAS, M. Susan Savage, Tom P. Henson, Adam Adwon, Ben Boddie and David L. Pauling are the current and successor Trustees of the Tulsa Parking Authority, herein the "Trustees", and

WHEREAS, by the terms of the Trust Indenture, the Trustor created and established the Tulsa Parking Authority, a public trust, for the use and benefit of the City of Tulsa, Oklahoma, as the beneficiary thereof, and

WHEREAS, the City of Tulsa Ordinance No. 9601, the City of Tulsa accepted the terms and conditions of the Trust Indenture creating the Tulsa Parking Authority, and

WHEREAS, the Trustor and the Trustees desire, with the consent and approval of the City of Tulsa, Oklahoma, to amend the Trust Indenture to provide for the appointment by the Mayor of an alternate Trustee, subject to the approval of the City Council of the City of Tulsa.

NOW, THEREFORE, the Trustor and the Trustees hereby agree to amend Article VI, sections 1 and 3 of the Trust Indenture to read as follows:

"1. There shall be five Trustees of this Authority:

(a) The Mayor of the City of Tulsa shall be ex-officio a Trustee and shall serve until a successor Mayor has been duly elected and qualified; provided, that the Mayor may from time to time during the term of office of the Mayor, appoint, subject to the approval of the City Council, from among the full-time employees of the City of Tulsa, an alternate to serve as Trustee with all the rights, privileges and responsibilities of a Trustee until removed by the Mayor or until such alternate shall resign or otherwise cease to be a full-time employee of the City of Tulsa or until a successor to the Mayor is duly elected and qualified whichever event shall first occur.

(b) The City Attorney of the City of Tulsa, shall be ex-officio a Trustee and shall serve as a Trustee until a successor City Attorney has been duly appointed and qualified.

**(c)** C.A. Astle, Tulsa, Oklahoma, shall be a Trustee for a term of two years, commencing on the date of this Indenture. Harry A. Clarke, Tulsa, Oklahoma, shall be a Trustee for a term of four years, commencing on the date of this Indenture. Ohren Smulian, Tulsa, Oklahoma, shall be a Trustee for a term of six years, commencing on the date of this Indenture. Successors to these Trustees shall be appointed by the Mayor of the City of Tulsa subject to the approval of the City Council of the City of Tulsa. Each of the successor Trustees so appointed shall

serve a term of six years. Vacancies occurring otherwise than through the expiration of term shall be filled for the unexpired term in the same manner as that provided for the appointment as a successor to that position.

3. The three Trustees appointed by the Mayor of the City of Tulsa and subject to approval by the City Council of the City of Tulsa shall, during their term, be subject to removal only by action of the District Court of Tulsa County, for cause as provided by the general laws of Oklahoma for the removal of trustees."

All other provisions of the Trust Indenture not herein specifically amended shall remain in full force and effect.

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands this 15th day of October, 1992.

"TRUSTOR"

ATTEST: DOWNTOWN TULSA UNLIMITED, INC.

/s/ _____
Secretary

By:

/s/ James Norton
President

"TRUSTEES"

/s/ M. Susan Savage
M. Susan Savage

/s/ Tom P. Henson
Tom P. Henson

/s/ Adam Adwon
Adam Adwon

/s/ Ben Boddie
Ben Boddie

/s/ David L. Pauling
David L. Pauling

## APPENDIX III SECOND AMENDMENT TO TRUST INDENTURE TULSA PARKING AUTHORITY (§§ 500—502) ("EXHIBIT A" IN ORD. NO. 9601)

RECITALS:

**1.** On the 8th day of February, 1963, a Trust Indenture, herein the "Trust Indenture" was entered into by Downtown Tulsa Unlimited, Inc., formerly Downtown Tulsa Unlimited of Tulsa, Oklahoma, a non-profit corporation organized and existing under the laws of the State of Oklahoma (the "Trustor"), and James L. Maxwell, Charles E. Norman, Ohren Smulian, Harry A. Clarke and C.A. Astle as Trustees of the Tulsa Parking Authority.

**2.** By the terms of the Trust Indenture, the Trustor created and established the Tulsa Parking Authority, a public trust, for the use and benefit of the City of Tulsa, Oklahoma, as the beneficiary thereof.

**3.** By City of Tulsa Ordinance No. 9601, the City of Tulsa accepted the terms and conditions of the Trust Indenture creating the Tulsa Parking Authority.

**4.** The Trust Indenture was amended on the 15th day of October, 1992 to provide for the appointment by the Mayor of the City of Tulsa of an alternate Trustee subject to the approval of the City Council of the City of Tulsa.

**5.** The Trust Indenture as amended now provides that there shall be five trustees of the Tulsa Parking Authority as follows:

**a.** The Mayor of the City of Tulsa, or an alternate Trustee appointed by the Mayor, subject to the approval of the City Council;

**b.** The City Attorney of the City of Tulsa, ex-officio; and

**c.** Three Trustees appointed by the Mayor of the City of Tulsa, subject to the approval of the City Council to serve for terms of six years.

**6.** The Mayor has recommended, and the Trustor and the Trustees desire, with the consent and approval of the City Council, to amend the Trust Indenture as amended to remove the City Attorney as a Trustee, ex officio of the Tulsa Parking Authority and to provide for the appointment by the Mayor of four trustees, subject to the approval of the City Council.

**7.** Patrick B. Connelly, Martha Rupp Carter, Barbara K. Hess, Adam Adwon and Dale A. Williams are the current Trustees of the Tulsa Parking Authority (the "Trustees"). Patrick B. Connelly serves as a Trustee alternate to the Mayor. Martha Rupp Carter, the City Attorney of the City of Tulsa, serves as a Trustee, ex officio. The present terms of office of the three appointed Trustees expire as follows:

| | |
|---|---|
| Barbara K. Hess | February 8, 2001 |
| Adam Adwon | February 8, 2004 |
| Dale A. Williams | February 8, 2005 |

NOW THEREFORE, the Trustor and the Trustees hereby agree to amend Article VI, Sections 1 and 3 of the Trust Indenture to read as follows:

"1. There shall be five Trustees of this Authority:

(a) The Mayor of the City of Tulsa shall be ex-officio a Trustee and shall serve until a

successor Mayor has been duly elected and qualified; provided, that the Mayor may from time to time during the term of office of the Mayor, appoint, subject to the approval of the City Council, from among the full-time employees of the City of Tulsa, an alternate to serve as Trustee with all the rights, privileges and responsibilities of a Trustee until removed by the Mayor or until such alternate shall resign or otherwise cease to be a full-time employee of the City of Tulsa or until a successor to the Mayor is duly elected and qualified whichever event shall first occur.

(b) Barbara K. Hess shall continue to serve as a Trustee for a term expiring on February 8, 2001. Adam Adwon shall continue to serve as a Trustee for a term expiring on February 8, 2004. Dale A. Williams shall continue to serve as a Trustee for a term expiring on February 8, 2005. The fourth Trustee appointed by the Mayor, subject to the approval of the City Council, shall serve as a Trustee for a term expiring on February 8, 2002. Successors to these Trustees shall be appointed by the Mayor of the City of Tulsa subject to the approval of the City Council. Each of the successor Trustees so appointed shall serve a term of six years. Vacancies occurring otherwise than through the expiration of term shall be filled for the unexpired term in the same manner as provided for the appointment as a successor to that position.

3. The four Trustees appointed by the Mayor of the City of Tulsa and subject to approval by the City Council shall, during their term, be subject to removal only by action of the District Court of Tulsa County for cause as provided by the general laws of Oklahoma for the removal of trustees."

All other provisions of the Trust Indenture as amended not herein specifically amended shall remain in full force and effect.

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands this 20th day of March, 2000.

"TRUSTOR"

DOWNTOWN TULSA UNLIMITED, INC.

Attest:

/s/ _____
Secretary

By:

/s/ James Norton
President

"TRUSTEES"

/s/ Patrick B. Connelly
Patrick B. Connelly

/s/ Martha Rupp Carter
Martha Rupp Carter

/s/ Barbara K. Hess
Barbara K. Hess

/s/ Adam Adwon
Adam Adwon

/s/ Dale A. Williams
Dale A. Williams

## APPENDIX IV THIRD AMENDMENT TO TRUST INDENTURE TULSA PARKING AUTHORITY (§§ 500—502) ("EXHIBIT A" IN ORD. NO. 9601)

RECITALS:

**1.** On the 8th day of February, 1963, a Trust Indenture, herein the "Trust Indenture" was entered into by Downtown Tulsa Unlimited, Inc., formerly Downtown Tulsa Unlimited of Tulsa, Oklahoma, a non-profit corporation organized and existing under the laws of the State of Oklahoma (the "Trustor"), and James L. Maxwell, Charles E. Norman, Ohren Smulian, Harry A. Clarke and C.A. Astle as Trustees of the Tulsa Parking Authority.

**2.** By the terms of the Trust Indenture, the Trustor created and established the Tulsa Parking Authority, a public trust, for the use and benefit of the City of Tulsa, Oklahoma, as the beneficiary thereof.

**3.** By City of Tulsa Ordinance No. 9601, the City of Tulsa accepted the terms and conditions of the Trust Indenture creating the Tulsa Parking Authority.

**4.** The Trust Indenture was amended on the 15th day of October, 1992 to provide for the appointment by the Mayor of the City of Tulsa of an alternate Trustee subject to the approval of the City Council of the City of Tulsa.

**5.** A Second Amendment to the Tulsa Parking Authority Trust Indenture was executed on March 20, 2000 to remove the City Attorney as a Trustee, ex-officio of the Tulsa Parking Authority and to provide for the appointment by the Mayor of four (4) Trustees subject to the approval of the City Council.

**6.** Barbara K. Hess, Joel B. Kantor, Dr. Thomas McKeon, Ted Osgood, and Patrick B. Connelly are the current Trustees of the Tulsa Parking Authority ("Trustees"). Patrick B. Connelly serves as Trustee alternate to the Mayor. The present terms of office of the four appointed Trustees expire as follows:

| | |
|---|---|
| Barbara K. Hess | February 8, 2013 |
| Joel B. Kantor | February 8, 2012 |
| Thomas McKeon | February 8, 2012 |
| Ted Osgood | February 8, 2010 |

**7.** The Trustor and the Trustees desire, with the consent and approval of the City Council, to further amend the Trust Indenture as amended to add to the purposes of the Authority the acquisition or construction of automotive parking stations, which may be useful in stimulating, securing, developing and maintaining, commercial, industrial, manufacturing, cultural, educational and similar economic development activities.

NOW THEREFORE, the Trustor and the Trustees hereby agree to amend Article III, Section 4., of the Trust Indenture to read as follows:

"4. To acquire by lease, purchase or otherwise, and to plan, establish, develop, hold, construct, install, equip, repair, enlarge, furnish, maintain, operate and regulate or otherwise deal with, any and all physical properties and facilities needed or convenient for the furnishing and providing of services in connection with automotive parking stations, and which may be useful in stimulating, securing, developing and maintaining commercial, industrial, manufacturing, cultural,

educational and similar economic development activities; to lease, rent, furnish, provide, relinquish, sell or otherwise dispose of, or otherwise make provision for, any or all of said properties and facilities either in execution of any of the aforesaid trust purposes or in the event that any thereof shall no longer be needful for such purposes."

All other provisions of the Trust Indenture as amended not herein specifically amended shall remain in full force and effect.

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands the 20th day of August, 2007.

"TRUSTOR"

DOWNTOWN TULSA UNLIMITED, INC.

Attest:

/s/_____

By:

/s/_____
President

"TRUSTEES"

/s/ Barbara K. Hess
Barbara K. Hess

/s/ Joel B. Kantor
Joel B. Kantor

/s/ Thomas McKeon
Thomas McKeon

/s/ Ted Osgood
Ted Osgood

/s/ Patrick B. Connelly
Patrick B. Connelly

## CHAPTER 6. TULSA PUBLIC MARKET AUTHORITY

Section 600. Beneficial interest in the Tulsa Public Market Authority Trust accepted.
Section 601. Mayor authorized to execute necessary instruments.
Appendix I Trust Indenture (Sections 600, 601 and 602) (Ord. No. 8062).

### Section 600. Beneficial interest in the Tulsa Public Market Authority trust accepted.

The beneficial interest in and to the express trust known as the Tulsa Public Market Authority be and the same is hereby accepted by the governing body of the City of Tulsa for and on behalf of said City.

*(Ord. No. 8062)*

### Section 601. Mayor authorized to execute necessary instruments.

The Mayor of the City of Tulsa and all other officers of said City are hereby authorized and directed to sign, execute and deliver any, every and all instruments or writings necessary or convenient to effect and accomplish the trust purposes; and are hereby authorized to receive and accept all of said benefits, moneys or emoluments that may be received or flow from said trust, all as provided in the Trust Indenture dated as of August 15, 1956.

*(Ord. No. 8062)*

## APPENDIX I. TRUST INDENTURE (SECTIONS 600 AND 601)

*(Ord. No. 8062)*

TULSA PUBLIC MARKET AUTHORITY

KNOW ALL MEN BY THESE PRESENTS:

THIS TRUST INDENTURE, dated this 15th day of August, 1956, by CLARKLAND, INC., hereinafter designated "Trustor" and RUSSELL F. HUNT, J. LEO BURKE and RAINEY ELLIOTT, hereinafter designated "Trustees" and to be known as Trustees of Tulsa Public Market Authority,

W I T N E S S E T H:

That in consideration of the payment by the Trustor to the Trustees of the sum of One Dollar ($1.00), the mutual covenants hereinafter set forth and other good and valuable considerations, the Trustees agree to hold, manage, invest, assign, convey and distribute as herein provided, authorized and directed, such property as Trustor, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto Tulsa Public Market Authority or the Trustees thereof.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits, accumulations and increases thereof to the Trustees, their successors, and assigns, but nevertheless and always in trust, for the use and benefit of the City of Tulsa, Oklahoma, and upon the following trusts, uses, terms and conditions hereinafter stated.

### ARTICLE I
### CREATION OF TRUST

The undersigned Trustor creates and establishes a trust for the use and benefit of the City of Tulsa, Oklahoma, and for the public purposes hereinafter set forth, under the provisions of Title 60, Oklahoma Statutes 1951, Sections 176 to 180, inclusive, as amended, by Title 60, Chapter 4, Oklahoma Session Laws 1953, the Oklahoma Trust Act and other applicable laws of the State of Oklahoma.

### ARTICLE II
### NAME

The name of this trust shall be "Tulsa Public Market Authority" hereinafter referred to as "Authority" and the Trustees in their representative fiduciary capacity shall collectively be so designated. Under that name the Authority and/or Trustees shall, so far as practicable, conduct all business, execute all instruments in writing and otherwise perform all the duties and functions required in the execution of this trust.

### ARTICLE III
### PURPOSES OF TRUST

The purposes of this trust are:

**(A)** To acquire by purchase or otherwise, for the Beneficiary, real property within the territorial boundaries of the Beneficiary, or in reasonable proximity thereto, for the

purpose of furnishing to the public any general public service, under franchise granted by the Beneficiary as provided by law and in its Charter, or by the Beneficiary itself, or by the Authority for and on behalf of the Beneficiary.

**(B)** To furnish the following general public service for the Beneficiary, to-wit: To plan, buy, establish, develop, construct, lease, maintain, equip, regulate and operate public markets and public market places and to build, own and maintain buildings therefor and to rent and lease same.

**(C)** To acquire by lease, purchase or otherwise, and to plan, establish, develop, construct, enlarge, improve, maintain, equip, operate and regulate any and all physical properties desired or needful for utilization in the furnishing and providing the aforesaid services and facilities, including warehouses, storehouses, storage bins, stalls, depots, and other similar structures related to the purposes of this trust.

**(D)** To provide funds for the costs of financing, acquiring, conducting, leasing, equipping, maintaining, repairing, and operating any such markets, market places, warehouses, storehouses, storage bins, stalls, depots, and other similar structures related to the purposes of this trust, in all properties, real, personal and mixed, required for execution and fulfilling the trust purposes as set forth in this instrument, and all other charges, costs and expenses necessarily incurred in connection therewith, and in so doing, to incur indebtedness, either unsecured or secured, by all or any part of the trust estate, assets, property and/or its revenues.

**(E)** To expend any and all funds coming into the hands of the Trustees, as revenue or otherwise, in the payment of any indebtedness incurred by the Trustees for the purposes specified herein, and in the payment of any other debt or obligation properly chargeable against the trust estate, and to distribute the residue and remainder of such funds to the beneficiary for any authorized proper public function or purpose, and not otherwise.

## ARTICLE IV
## DURATION

This trust shall have duration for the term of duration of the beneficiary as hereinafter described, and until such time as its purposes shall have been fully executed and fulfilled, or until it shall be terminated as hereinafter provided.

## ARTICLE V
## TRUST ESTATE

The trust estate shall consist of:

**(A)** The funds and property presently in the hands of the Trustees donated for the trust properties by the Trustor, or to be constructed by the Trustees and dedicated by the Trustor, and others to be used for trust properties.

**(B)** Any and all leasehold rights demised to the Trustees by the beneficiary as authorized and empowered by law.

**(C)** Any and all money, property, real, personal and mixed, rights, choses in action, contracts, leases, privileges, immunities, franchises, benefits, and all other things of value coming into the possession of the Trustees pursuant to the provisions of this trust indenture, or by virtue of their trusteeship hereunder.

## ARTICLE VI
## THE TRUSTEES

**(A)** The Trustees hereunder, and their successors, do hereby contract, agree and covenant between themselves, with and to the State of Oklahoma, and with and to the beneficiary hereinafter described, as by law now in force and effect, that they will execute the trust herein declared, created and constituted, as Trustees for the beneficiary hereinafter specified, and that they will do and will receive, hold and administer the trust estate hereinabove described, in trust, solely for the use and benefit of the said beneficiary in the manner provided in this instrument, or in the absence of applicable provisions herein, then in a manner provided by now existing law.

**(B)** The Trustees of the Authority shall be the undersigned three Trustees and their respective successors chosen as hereinafter set forth, all of whom shall be bona fide residents of the County of Tulsa, State of Oklahoma.

**(C)** Each qualified Trustee shall continue as such until his successor shall have been qualified as provided in Paragraph (G) of this section.

**(D)** In the event of the death, resignation, removal of residence from the County of Tulsa, or inability to act of any Trustee, the remaining Trustees shall elect a successor Trustee to fill the vacancy.

**(E)** The determination of the fact of a vacancy in a trusteeship and of any right of a successor to qualify to trusteeship shall be vested exclusively in the remaining Trustees, and their determination shall be final.

**(F)** The Trustees may contract, in connection with the incurring of any funded debt secured by the trust estate and/or its revenues, or any part of either or both, that temporary Trustees may be appointed to act in place and instead of permanent Trustees, in respect to any part or all of the trust estate, in such number that such temporary Trustees shall constitute a majority of the Trustees with relation to such property and operations of the Authority specified in said contract, in the event of a default as defined in the contract incurring said funded debt. Any such contract, if made, shall provide for the method of appointment of each such temporary Trustee and the method of designating each permanent Trustee so to be temporarily supplanted. Each such temporary Trustee who shall be appointed under the Authority herein granted shall supplant, in all respects, the permanent Trustee so designated to the extent provided in said contract; and during the term of such temporary Trustee, the permanent Trustee so supplanted shall be wholly without authority, duty or liability, under the terms of this instrument, in so far as the same relates to the property and operations specified in said contract. No such contract shall be authorized hereunder, however, which fails to make provisions for one or more permanent Trustees to continue with full power and authority during the term of all temporary Trustees. All temporary Trustees forthwith shall cease to be such upon the termination of all defaults by which their appointment would have been authorized under such contract, and the permanent Trustees so temporarily supplanted automatically shall be reinstated to full power and authority.

**(G)** All Trustees, and all temporary Trustees appointed hereunder, shall qualify by written acceptance of all of the terms of this instrument, duly acknowledged and filed in the same manner and in the same places that this instrument is acknowledged and filed. All Trustees, permanent and temporary, before assuming the powers and duties as such, also shall subscribe and file such oaths as shall be required by law of public

officers of the State of Oklahoma; provided, that if any Trustee shall have subscribed and filed such oaths to entitle him to qualify ex officio hereunder, said actions need not be duplicated.

**(H)** Upon each change of personnel of the Trustees hereunder, the Chairman shall cause to be filed in the office of the County Clerk of Tulsa County, a certificate of the names of the Trustees of this trust.

**(I)** The acceptance of the office of Trustee of this Authority shall not constitute the Trustees hereunder, temporary or permanent, or both, to be in partnership or association. Each shall be an individual and wholly independent Trustee only.

**(J)** Notwithstanding any other provisions of this indenture which shall appear to provide otherwise, no Trustee or Trustees shall have any power or authority to bind or obligate any other Trustee, or the beneficiary, in his or its individual capacity.

**(K)** Bonds to be issued by the Trustees shall not constitute an indebtedness of the State of Oklahoma nor of the City of Tulsa, Oklahoma, nor personal obligations of the Trustees of Tulsa Public Market Authority but shall constitute obligations of the Trustees, payable solely from the trust estate.

**(L)** All persons, firms, associations, trusteeships, corporations, municipalities, governments and sovereignties contracting with any Trustee or Trustees, temporary or permanent or both, shall take notice that all expense and obligations, and all debts, damage, judgments, decrees or liabilities incurred by any Trustee or Trustees, temporary or permanent or both, and any of the foregoing incurred by any agent, servant or employee of the aforesaid Trustees, in the execution of the purposes of this Authority, whether arising from contract or tort, shall be solely chargeable to and payable out of the trust estate. In no event shall any Trustee, temporary or permanent, in any manner be individually liable for any damage or injury to person or property, or for breach of contract or obligation, caused by, arising from, incident to, or growing out of the execution of this Authority, nor shall they, or any of them, be liable for the acts or omissions of each other, or of any agent, servant or employee of the aforesaid Trustees, or of another such Trustee.

## ARTICLE VII
## POWERS AND DUTIES OF TRUSTEES

The Trustees, in the manner hereinafter set forth, shall do, or cause to be done, in lawful manner, all things which are incidental, necessary, proper or convenient to carry fully into effect the purposes enumerated in Section III of this instrument, the general authority hereby given being intended to make fully effective the power of the Trustees under this instrument; and said Trustees are specifically authorized (but their aforesaid general powers not limited thereby, notwithstanding any such specification), in effecting said purposes:

**(A)** To enter in and conduct and execute, apply for, purchase, or otherwise acquire franchises, property (real or personal and/or mixed), contracts, leases, privileges, benefits, choses in action, or other things of value, and to pay for the same in cash, with bonds or evidences of indebtedness or otherwise.

**(B)** To acquire, own, hold, manage, and in any manner to convey, assign, dispose of, liquidate, compromise, or realize upon any contract, lease, right, privilege, benefit, chose in action, franchise, property (real or personal), or other thing of value, and to exercise all of the powers necessary or convenient in respect of same.

**(C)** To guarantee, acquire, purchase, hold, sell, assign, transfer, encumber, dispose of, and deal in the stocks, bonds, debentures, shares or evidences of interest or indebtedness of any corporation, association, municipality, government, sovereignty, trusteeship, firm or individual, to enter into and perform any lawful contract in relation thereto, and to exercise all of the rights, powers and privileges in relation thereto to the same extent as a natural person might or could do.

**(D)** To enter into, make and perform contracts of every lawful kind, including, but not restricted to, management contracts, with any person, firm, association, corporation, trusteeship, municipality, government or sovereignty; and without limit as to amount, to draw, make, accept, endorse, assume, guarantee, discount, execute and issue promissory notes, drafts, bills of exchange, acceptance, warrants, bonds, debenture, and other negotiable and transferable, nor non-negotiable or non-transferable, instruments, obligations and evidences of secured or unsecured indebtedness, and if secured by mortgage, deeds of trust, or otherwise, upon any or all property of the Trust, and to pledge any or all income of the Trust, in the same manner and to the same extent as a natural person might or could do.

**(E)** To collect and receive any property, money, rents, or income of any sort, and to distribute the same, or any portion thereof, for the furtherance of the purpose enumerated in Section III of this instrument.

**(F)** The Trustees shall hold the legal title to all property at any time belonging to the trust estate in the name of the Trustees, and shall have and exercise exclusive management and control of the same, for the use and benefit of the beneficiary; in the execution of the purposes of this trust, and the right of said Trustees to manage, control and administer the said Authority, its properties, assets and business, shall be absolute and unconditional, free from the direction, control or management of the beneficiary or any person or persons whatsoever other than a court of competent jurisdiction so to do.

**(G)** The Trustees may employ such agents, servants, and employees as they shall deem necessary, proper or convenient, and shall prescribe their duties and fix their compensation.

**(H)** The Trustees may contract for the furnishing of any services or the performance of any duties that they deem necessary, proper or convenient and pay for the same as they see fit to provide in such contract. The Trustees may purchase and sell such supplies, goods and commodities as are incidental to the operation of the trust facilities.

**(I)** The Trustees, by resolution, may divide the duties of the Trustees hereunder, delegating all or any part of such duties to one or another of the Trustees as much as possible; but where specific duties are not delegated, a majority of the Trustees must act for the Authority.

**(J)** The Trustees may be compensated in the manner now provided by the Oklahoma Trust Act for services actually rendered and responsibility assumed.

**(K)** The Trustees shall, in the name of the Authority as set forth in Section II hereof, or in their names as Trustees, bring any suit or action which, in their judgment, shall be necessary, proper, and convenient to protect the interests of the Authority, or to enforce any claim, demand or contract for the Authority, or to enforce any

claim, demand or contract for the benefit thereof; and they likewise shall defend, in their discretion, any suit against the Authority, or the Trustees or employees, agents or servants thereof. And the Trustees are expressly authorized, in their discretion, to compromise and settle prior to judgment any suit, action, claim or proceeding in which the Authority is interested, and to discharge the same out of the Trust estate; and they specifically are authorized to pay or transfer out of the trust estate all sums of money or property necessary to discharge any judgment or decree rendered against them, or the Authority, together with all court or other costs, including counsel and attorney's fees, and also to pay out of the trust estate such sums of money, or transfer appropriate property thereof, for the purpose of settling, compromising or adjusting any claim or controversy, together with all costs and expenses connected therewith, and all such expenditures and transfers shall be treated as expenses of executing their trust.

**(L)** No bond shall be required of the Trustees, or any of them, unless they, by appropriate resolution, so provide.

**(M)** All proceedings of the Trustees and all resolutions adopted by them shall be kept in a record book and shall be subject to inspection, during customary business hours as public records of the State of Oklahoma.

**(N)** At their first meeting, the Trustees shall designate the time and place for regular meetings, which time and place shall not thereafter be changed unless at a meeting where all Trustees are present. No notice shall be required for the holding of regular meetings of the Trustees. Special meetings of the Trustees may be held upon such call as shall be fixed by resolution adopted at a meeting where all Trustees are present.

**(O)** The Trustees, by written instruments filed for record in all places in which this instrument is filed, shall designate the place of the principal office of the Authority; and any change of place shall be recorded in like manner. All official records of the Authority shall be kept at the principal office, and shall be subject to inspection during customary business hours as public records of the State of Oklahoma.

## ARTICLE VIII
## BENEFICIARY

**(A)** The term "Beneficiary" as used in this instrument denotes the incorporated City of Tulsa, Tulsa County, Oklahoma, and likewise shall denote any municipal entity which may hereafter succeed said municipality to the governmental authority of the territory lying within the present municipal boundaries of said municipality and to which the Trust then shall be furnishing its trust services or facilities.

**(B)** The Beneficiary shall have no legal title, claim or right to the Trust estate, or to any part thereof, neither shall the beneficiary, as such, have any authority, power or right whatsoever to do or transact any business whatsoever for, or on behalf of, or binding upon the Trustees or upon the Trust estate; neither shall the beneficiary have the right to control or direct the actions of the Trustees in respect of the Trust estate, or any part thereof; nor shall the beneficiary have any right to demand or require any partition or distribution of the trust estate, or any part thereof. The beneficiary shall be entitled

solely to the benefits of this trust, as administered by the Trustees hereunder, and at the termination of the Trust, as provided herein and then only, the beneficiary shall receive the residue of the trust estate.

**(C)** Each distribution of money by the Trustees to the beneficiary shall be paid to said municipality for use by it for any authorized or proper function or purpose as directed by the governing body thereof, without restrictions or limitation by the Trustees.

## ARTICLE IX
## TERMINATION

**(A)** This Trust shall be irrevocable by the Trustors and shall terminate:

**(1)** When purposes set forth in Section III of this instrument shall have been fully executed and fulfilled; or

**(2)** In the event of the happening of any event or circumstance that would prevent said purposes from being executed and fulfilled and all of the Trustees and the governing body of the beneficiary municipality, with the approval of the Governor of the State of Oklahoma, shall agree that such event or circumstance has taken place; provided, however, that all indebtedness of the Trust shall have been paid, or

**(3)** In the manner provided by Title 60, Section 180, Oklahoma Statutes, 1951; provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees unless all owners of such indebtedness or obligations, or one authorized by them so to do, shall have consented in writing to such termination.

**(B)** Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of the Trust, and after payment of all debts and obligations out of trust money, to the extent thereof, shall distribute the residue of the trust money to the beneficiary hereunder. Upon final distribution as aforesaid, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE X
## PARTIAL INEFFECTIVENESS

The invalidity or ineffectiveness for any reason of any one or more words, phrases, clauses, paragraphs, or sections of this instrument shall not affect the remaining portions thereof so long as such remaining portions shall constitute a rational instrument. Any such invalid or ineffective portion was inserted conditionally upon it being valid or effective only; and this instrument shall be construed as if such invalid or ineffective portion has not been inserted herein.

## ARTICLE XI
## COVENANT

The provisions hereof shall be binding upon the undersigned, their heirs, executors, administrators and assigns.

IN WITNESS WHEREOF, we have hereunto set our hands, executing this Declaration of Trust in multiple duplicates all of which constitute one and the same instrument, this 15th day of August, 1956.

CLARKLAND, INC.

/s/ T. H. Banister
T.H. Banister, Vice-President

"Trustor"

ATTEST:

/s/ C.C. Kratky
C.C. Kratky, Secretary

/s/ Russell F. Hunt
Russell F. Hunt

/s/ J. Leo Burke
J. Leo Burke

/s/ Rainey Elliott
Rainey Elliott

"Trustees"

[ACKNOWLEDGMENTS]

**ACCEPTANCE OF BENEFICIAL INTEREST**

KNOW ALL MEN BY THESE PRESENTS:

That the City of Tulsa, Oklahoma, a municipal corporation, acting by and through its governing body, the Board of Commissioners of the City of Tulsa, Oklahoma, hereby accepts the beneficial interest in the express trust created by the within and foregoing Trust Indenture for and on behalf of the said municipality, in all respects, in accordance with the terms and provisions of said Trust Indenture.

IN WITNESS WHEREOF, the Mayor of the City of Tulsa, Oklahoma, pursuant to the authority and direction of Ordinance No. 8062 of said City, enacted on the 5th day of February, 1957, and published in the Tulsa Daily Legal News on the 7th day of February, 1957, has executed this acceptance and caused to be affixed thereon the official seal of said City this 7th day of February, 1957.

CITY OF TULSA, OKLAHOMA,
a municipal corporation,

/s/ George E. Norvell
Mayor

ATTEST:

/s/ A. Jackson Lawrence
A. Jackson Lawrence,
City Auditor

APPROVED:

/s/ Darven L. Brown

Darven L. Brown,
City Attorney

## CHAPTER 7. TULSA POLICE AND FIRE ACADEMY TRUST

Section 700. Beneficial interest in the Tulsa Police & Fire Academy Trust accepted.
Section 701. Trust and Trustees recognized.
Section 702. Mayor and City Auditor authorized to execute necessary instruments.
Appendix I Declaration Establishing Tulsa Police & Fire Academy Trust (Sections 700, 701 and 702) ("Exhibit A" in Ord. No. 9707).

### Section 700. Beneficial interest in the Tulsa Police & Fire Academy Trust accepted.

The Tulsa Police & Fire Academy Trust, created by trust indenture dated July 16, 1963, an executed copy of which is hereto attached, marked "Exhibit A" and made a part hereof, wherein D. J. Tuepker, Byron V. Boone, Harold C. Stuart, Paul E. Taliaferro, A. Ray Smith, John R. Richards and Bennie C. Garren as Commissioner of Fire and Police of the City of Tulsa are designated trustees and the City of Tulsa, Oklahoma, is designated as the sole beneficiary of the Tulsa Police & Fire Academy Trust, hereby is approved and the City of Tulsa hereby accepts the beneficial interest therein, and all the terms and provisions of said trust indenture as authorized by the applicable statutes of the state of Oklahoma, and the City of Tulsa hereby agrees to be and become the sole beneficiary of said Trust.

*(Ord. No. 9707)*

### Section 701. Trust and Trustees recognized.

The City of Tulsa hereby recognizes that the Tulsa Police & Fire Academy Trust and the trustees named in said trust indenture, and in all negotiations and instruments where the term "Tulsa Police & Fire Academy Trust" is used, it shall be deemed and construed to mean the trust above mentioned and described.

*(Ord. No. 9707)*

### Section 702. Mayor and City Auditor authorized to execute necessary instruments.

The Mayor and the City Auditor of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of the trust indenture the approval of the City of Tulsa of said trust indenture creating the Tulsa Police & Fire Academy Trust, and the City's acceptance of the beneficial interest therein, and to cause said trust indenture to be recorded in the Office of the County Clerk of Tulsa County, Oklahoma.

*(Ord. No. 9707)*

## APPENDIX I DECLARATION ESTABLISHING TULSA POLICE & FIRE ACADEMY TRUST (SECTIONS 700, 701, AND 702)

*("Exhibit A" in Ord. No. 9707)*

THIS AGREEMENT, made this 16th day of July, 1963, by and between PAUL E. TALIAFERRO and BYRON V. BOONE, hereinafter referred to as "Trustors", and THE CITY OF TULSA, a municipal government under the Statutes of Oklahoma, hereinafter referred to as "Beneficiary",

W I T N E S S E T H:

WHEREAS, the Trustors herein propose to create a trust under the laws of the State of Oklahoma (generally but not exclusively pursuant to Title 60, Sections 176 to 180, Oklahoma Statutes 1951, as Amended, and to the Oklahoma Trust Act), for the benefit of the City of Tulsa, Oklahoma; and

WHEREAS, other persons may, with consent of the Trustees, make charitable contributions to the trust; and

WHEREAS, the trust is specifically for the purpose of benefiting the City of Tulsa, Oklahoma through the creation and construction and development of a Tulsa Police and Fire Academy, said purposes more specifically hereinafter set forth;

NOW, THEREFORE, the undersigned trustors do irrevocably create, establish and constitute a trust for public purposes, the City of Tulsa agrees to accept the beneficial interests therein, and the Trustees agree to operate the trust as hereinafter provided.

### ARTICLE I
### Name

This trust shall be known as the TULSA POLICE & FIRE ACADEMY TRUST.

### ARTICLE II
### Purposes

**(A)** The purposes of this trust shall be to build, maintain, operate, expand, improve and do all other legal and lawful things in connection with a police and fire academy for use by the police and fire departments of the City of Tulsa, Oklahoma, including but not limited to, the solicitation of funds for erection of a police and fire academy building in the City of Tulsa; the solicitation of and acceptance of donations of materials and equipment for the erection of a police and fire academy building; the solicitation of and acceptance of the donation of labor and services for construction of a police and fire academy building, the negotiation of and letting of contracts and work orders for supply materials, services, supervision and labor for the erection of a police and fire academy building; the equipping with necessary or convenient furnishings, training equipment and instruction materials of a police and fire academy building, the landscaping of the grounds contiguous to said building, the employment of personnel to operate, maintain and repair said building and its facilities if necessary, and the doing of any lawful act necessary or convenient to the building maintenance, operation, expansion or improvement of a police and fire department academy for the City of Tulsa; and to have such additional purposes as are necessary to complete and operate the aforementioned academy.

**(B)** This trust is not organized for pecuniary profit of its trustees or donors nor shall it have any power to distribute profits or net earnings, if any, to said parties, nor shall any part of its net earnings or profits inure to the benefit of its trustees or donors. The balance, if any, of all money received by the trust from its operations, after the payment in full of all debts and obligations of the trust of whatever kind and nature, shall be used and distributed exclusively for carrying out only the purpose or purposes of the trust particularly hereinabove set forth.

## ARTICLE III
## Location

The principal office of said trust shall be located in the City of Tulsa, Oklahoma.

## ARTICLE IV
## Duration

**(A)** The life of the trust shall be for the duration of the beneficiary or its successor, unless terminated at an earlier date, as hereinafter provided.

**(B)** The life of this trust may be prematurely terminated by unanimous vote of the trustees when in their sole discretion it is determined that the trust purposes are no longer deemed necessary or when, in their sole discretion, they shall determine that in the best interests of the community the trust should be terminated.

**(C)** It is further provided that in the event the Board of Trustees, in their sole discretion, should determine this trust should be merged with another trust or organization with like purposes, or the trust assets should be distributed to the City of Tulsa, then and in that event by resolution of the Board of Trustees the said merger or transfer may be authorized.

**(D)** In the event of the dissolution of this trust all the business property and assets of the trust shall go and be distributed to such non-profit trust or corporation of like purpose or purposes as the Trustees may select or designate, and in no event shall any of the said assets or property, in the event of dissolution thereof, go or be distributed to any donor, other than the beneficiary, either for the reimbursement of any sum subscribed, donated or contributed by such donor, or for any other such purpose.

## ARTICLE V
## Trust Estate

The Trust Estate shall consist of the funds presently in the hands of the Trustees, donated for the trust purposes, and all money, property (real, personal and/or mixed), rights, choses in action, contracts, leases, privileges, franchises, benefits and all other things of value (whether or not above described), coming into the hands, or under the control of the Trustees, pursuant to the provisions of this instrument or by virtue of their trusteeship hereunder.

## ARTICLE VI
## Trustees

**(A)** The Trustees hereunder, and their successors, do hereby contract, agree and covenant between themselves, with and to the State of Oklahoma, and with and to the

Beneficiary herein described, as by law now in force and effect, that they will execute the Trust herein declared, created and constituted, as Trustees for the Beneficiary as herein specified, and that they do and will receive, hold and administer the Trust Estate hereinabove described in trust, solely for the use and benefit of the said Beneficiary in the manner provided in this instrument, or in the absence of applicable provisions herein, then in the manner provided by now existing law.

**(B)** The Trustees shall be known as the Board of Trustees, there shall be seven members on the Board, and it shall be composed of the following:

D.J. Tuepker
Byron V. Boone
Harold C. Stuart
Commissioner of Fire & Police of the City of Tulsa, an ex officio member
Paul E. Taliaferro
A. Ray Smith
John R. Richards

**(a)** In the event of death, resignation, or removal of one or more Trustees, the right to fill said vacancy shall be vested exclusively in the remaining Trustees, and their determination shall be final.

**(b)** Any Trustee may resign by filing his written resignation with the Board of Trustees to be effective 30 days thereafter, unless accepted sooner by the Board of Trustees.

**(c)** Any Trustee may be removed pursuant to the terms of Title 60, Sec. 175.39, Oklahoma Statutes 1951.

**(C)** An annual report shall be prepared and shall be made available to the Commissioners of the City of Tulsa, adequately reflecting the investments and the general status of the Trust.

## ARTICLE VII
## Trust Powers

**(A)** Notwithstanding any other provision of this instrument which shall appear to provide otherwise, no Trustee or Trustees shall have any power or authority to bind or obligate any other trustee, or the Beneficiary or any component Beneficiary entity, in his or its individual capacity. All persons, firms, associations, trusteeships, corporations, municipalities, governments and sovereignties contracting with any Trustee or Trustees, shall take notice that all expense and obligations, and all debts, damage, judgments, decrees or liabilities incurred by any Trustee or Trustees, and any of the foregoing incurred by any agent, servant or employee of the aforesaid Trustees, in the execution of the purposes of this Trust, whether arising from contract or tort, shall be solely chargeable to and payable out of the Trust Estate. In no event shall any Trustee, in any manner be individually liable for any damage or injury to person or property, or for breach of contract or obligation, caused by, arising from, incident to, or growing out of the execution of this Trust, nor shall they, or any of them, be liable for the acts or omissions of each other, or of any agent, servant or employee of the aforesaid Trustees, or of another such Trustee; provided, however, that the foregoing shall not apply to any breach of trust by any said Trustee.

**(B)** The Trustees, in the manner hereinafter set forth, shall do, or cause to be done, in lawful manner, all things which are incidental, necessary, proper or convenient to carry fully into effect the purposes enumerated in Article II of this instrument, the general authority hereby given being intended to make fully effective the power of the Trustees under this instrument; and said Trustees are specifically authorized (but their aforesaid general powers not limited thereby, notwithstanding any such specification), in effecting said purposes:

**(1)** To enter in and conduct and execute, apply for, purchase, or otherwise acquire franchises, property (real or personal and/or mixed), contracts, leases, rights, privileges, benefits, choses in action, or other things of value, and to pay for the same in cash, with bonds or evidences of indebtedness or otherwise;

**(2)** To acquire, own, hold, manage, and in any manner to convey, assign, dispose of, liquidate, compromise, or realize upon any contract, lease, right, privilege, benefit, chose in action, franchise, property (real or personal), or other thing of value, and to exercise all of the powers necessary or convenient in respect of same;

**(3)** To guarantee, acquire, purchase, hold, sell, assign, transfer, encumber, dispose of, and deal in the stocks, bonds, debentures, shares or evidence of interest or indebtedness of any corporation, association, municipality, government, sovereignty, trusteeship, firm, or individual, to enter into and perform any lawful contract in relation thereto, and to exercise all of the rights, powers and privileges in relation thereto to the same extent as a natural person might or could do;

**(4)** To enter into, make and perform contracts of every lawful kind, including, but not restricted to, management contracts, with any person, firm, association, corporation, trusteeship, municipality, government or sovereignty; and without limit as to amount, to draw, make, accept, indorse, assume, guarantee, discount, execute and issue promissory notes, drafts, bills of exchange, acceptance, warrants, bonds, debentures, and other negotiable and transferable, or non-negotiable or non-transferable, instruments, obligations and evidences of secured or unsecured indebtedness, and if secured by mortgage, deeds of trust, or otherwise, upon any or all property of the Trust, and to pledge any or all income of the Trust, in the same manner and to the same extent as a natural person might or could do;

**(5)** To collect and receive any property, money, rents or income of any sort, and to distribute the same, or any portion thereof, for the furtherance of the purposes enumerated in Article II of this instrument.

**(6)** The Trustees shall hold the legal title to all property at any time belonging to the Trust Estate in the name of the Trustees, and shall have and exercise exclusive management and control of the same, for the use and benefit of the Beneficiary, in the execution of the purposes of this Trust, and the right of said Trustees to manage, control and administer the said Trust, its properties, assets and business, shall be absolute and unconditional, free from the direction, control or management of the Beneficiary or any component Beneficiary entity, or any person or persons whatsoever other than a court of competent jurisdiction so to do.

**(7)** The Trustees may employ such agents, servants, and employees as they deem necessary, proper or convenient, and shall prescribe their duties and fix their compensation.

**(8)** The Trustees may contract for the furnishing of any services or the performance of any duties that they deem necessary, proper or convenient and pay for the same as they see fit to provide in such contract.

**(9)** The Trustees by resolution may divide the duties of the Trustees hereunder, delegating all or any part of such duties to one or another of the Trustees as much as possible; but where specific duties are not delegated, a majority of the Trustees must act for the Trust.

**(10)** The Trustees shall, in the name of the Trust as set forth in Article I hereof, or in their names as Trustees, bring any suit or action which, in their judgment, shall be necessary, proper and convenient to protect the interests of the Trust, or to enforce any claim, demand or contract for the Trust, or to enforce any claim, demand or contract for the benefit thereof; and they likewise shall defend, in their discretion, any suit against the Trust, or the Trustees or employees, agents or servants thereof. And the Trustees are expressly authorized, in their discretion, to compromise and settle prior to judgment any suit, action, claim or proceeding in which the Trust in interested, and to discharge the same out of the Trust Estate; and they specifically are authorized to pay or transfer out of the Trust Estate all sums of money or property necessary to discharge any judgment or decree rendered against them, or the Trust, together with all court or other costs, including counsel and attorney's fees, and also to pay out of the Trust Estate such sums of money, or transfer appropriate property thereof, for the purpose of settling, compromising or adjusting any claim or controversy, together with all costs and expenses connected therewith, and all such expenditures and transfers shall be treated as expenses of executing their trust.

**(11)** No bond shall be required of the Trustees, or any of them, unless they, by appropriate resolution, so provide.

**(12)** All proceedings of the Trustees and all resolutions adopted by them shall be kept in a record book and shall be subject to inspection, during customary business hours as public records of the State of Oklahoma.

**(13)** At their first meeting, the Trustees shall designate the time and place for regular meetings, which time and place shall not thereafter be changed unless at a meeting where all Trustees are present; no notice shall be required for the holding of regular meetings of the Trustees. Special meetings of the Trustees may be held upon such call as shall be fixed by resolution adopted at a meeting where all Trustees are present.

**(14)** The Trustees, by written instrument filed for record in all places in which this instrument is filed, shall designate the place of the principal office of the Trust; and any change of place shall be recorded in like manner. All official records of the Trust shall be kept at the principal office, and shall be subject to inspection, during customary business hours, as public records of the State of Oklahoma.

## ARTICLE VIII
## Beneficiary

The term "Beneficiary" as used in this instrument means the City of Tulsa, Oklahoma, an incorporated municipality.

## ARTICLE IX
## Exempt Status

This Trust agreement may be amended in any form to enable the Trust to qualify as a tax exempt organization under Sec. 501(c)(3) of the Internal Revenue Code for 1954, or its successor statute in order to effect an exemption for trust income and tax deduction for contributions to the Trust.

IN WITNESS WHEREOF, we have hereunto set our hands, creating this Declaration of Trust on this 16th day of July, 1963.

/s/ Paul E. Taliaferro

/s/ Byron V. Boone

"TRUSTORS"

/s/ Paul E. Taliaferro

/s/ Byron V. Boone

/s/ Gerald Stuart

/s/ D. J. Tuepker

/s/ A. Ray Smith

/s/ John R. Richards

/s/ Bennie C. Garren
Commissioner of Police & Fire

"TRUSTEES"

[ACKNOWLEDGMENT]

## ACCEPTANCE OF BENEFICIAL INTEREST

KNOW ALL MEN BY THESE PRESENTS:

That the City of Tulsa, Oklahoma, a municipal corporation, acting by and through the general governing body of said municipality, hereby accepts the beneficial interest in the trust created by the within and foregoing Declaration of Trust, for and in behalf of the said municipality, in all respects in accordance with the terms of said Declaration of Trust.

IN WITNESS WHEREOF, the Mayor of the City of Tulsa, pursuant to the authority and direction of Ordinance No. 9707 of said City, effective this date, hereunto has set his hand and caused to be affixed the requisite official seals, this 16th day of July, 1963.

/s/ James L. Maxwell
Mayor of the City of
Tulsa, Oklahoma

ATTEST:

/s/ William F. Lambert
City Auditor

[ACKNOWLEDGMENT]

## CHAPTER 8. TULSA AIRPORTS IMPROVEMENT TRUST

Section 800. Beneficial interest in Tulsa Airports Improvement Trust accepted.
Section 801. Mayor and Auditor authorized to execute necessary instruments.
Appendix I Trust Indenture Tulsa Airports Improvement Trust (Sections 800 and 801) ("Exhibit A" in Ord. No. 10736).

### Section 800. Beneficial interest in Tulsa Airports Improvement Trust accepted.

The Tulsa Airports Improvement Trust, accepted by Trust Indenture dated March 20, 1967, a copy of which Trust Indenture is hereto attached, marked, "Exhibit A," and made a part hereof, wherein Richard Lloyd Jones, Jr., E. Fred Johnson, L. L. Dresser, Byron Boone and J. M. Hewgley, Jr., are designated trustees, and the City of Tulsa is designated as the sole beneficiary, be, and the same is hereby, approved, and said City of Tulsa hereby accepts the beneficial interest therein, and all of the terms and provisions of said Trust Indenture as authorized by the applicable statutes of the state of Oklahoma; and the City of Tulsa, Oklahoma hereby agrees to be, and become, the sole beneficiary of said Trust.

*(Ord. No. 10736)*

### Section 801. Mayor and Auditor authorized to execute necessary instruments.

The Mayor and City Auditor are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture the approval of the City of Tulsa of said Trust Indenture creating the Tulsa Airports Improvement Trust and the City's acceptance of the beneficial interests therein, and to cause said Trust Indenture to be recorded in the office of the County Clerk and ex officio Register of Deeds of the County of Tulsa, Oklahoma.

*(Ord. No. 10736)*

## APPENDIX I TRUST INDENTURE TULSA AIRPORTS IMPROVEMENT TRUST (SECTIONS 800 AND 801)

*("Exhibit A" in Ord. No. 10736)*

KNOW ALL MEN BY THESE PRESENTS:

THIS TRUST INDENTURE, hereinafter referred to as "Indenture", by and between A & S METALS, INC., an Oklahoma corporation, herein called "Trustor", and Richard Lloyd Jones, Jr., E. Fred Johnson, L.L. Dresser, Byron V. Boone, and J.M. Hewgley, Jr., jointly (to be known as the Trustees of the Tulsa Airports Improvement Trust), hereinafter referred to as "Trustees"

W I T N E S S E T H:

That for and in consideration of the sum of $1,000.00 cash in hand paid by Trustor to the Trustees, receipt of which by said Trustees is hereby acknowledged, said Trustees have agreed and hereby agree to hold, manage, invest, convey and distribute said sum of money so received, and such other property as Trustor, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Trust, or the Trustees hereof, or which said Trust may otherwise acquire. To have and to hold all such property and proceeds, rents, profits and increases thereof unto said Trustees and their successors, but nevertheless in trust, for the use and benefit of the City of Tulsa, Oklahoma, upon the following trusts, terms and conditions herein stated.

### ARTICLE I
### Creation and Establishment of Trust

**1.1.** Creation. The undersigned Trustor creates and establishes this trust for the use and benefit of the City of Tulsa, Oklahoma and for the public purposes hereinafter set forth, under the provisions of the Public Trust Act of Oklahoma, Title 60, Oklahoma Statutes, Sections 176 to 180, inclusive, as amended by Chapter 76, of the laws of 1963.

**1.2.** Beneficiary. The beneficiary of this Trust shall be the City of Tulsa, a municipal corporation, of the State of Oklahoma, under and pursuant to Title 60, Oklahoma Statutes, Sections 176 to 180, both inclusive, as amended.

**1.3.** Date. For purposes of reference, this Indenture may be referred to as the Tulsa Airports Improvement Trust of March 1, 1967, although executed by Trustor and the Trustees on the date shown below.

**1.4.** Effective date. Notwithstanding such execution by the parties, this trust shall not take effect until duly accepted by the Beneficiary, as provided by law.

**1.5.** Name. The name of this Trust shall be TULSA AIRPORTS IMPROVEMENT TRUST, hereinafter referred to as "Trust". The Trustees may conduct all business, open one or more bank accounts, execute all instruments, and otherwise perform the duties and functions required in the execution of this Trust, in said name or in their joint names, as Trustees of the Tulsa Airports Improvement Trust.

**1.6.** Trust irrevocable. Trustor now declares that this Indenture shall be irrevocable from the moment it is signed by it and delivered to the Trustees, and approved and accepted by the Beneficiary, and that Trustor shall thereafter stand without any power whatsoever at any time to alter, amend, revise, modify, revoke or terminate any of the provisions of this Indenture.

## ARTICLE II
## Purposes of Trust

**2.1.** The purposes of this Trust are, and the Trustees thereof shall have power to, improve and to cooperate with the Airport Authority of the City of Tulsa, or its successors in function, in improving the buildings, structures and facilities of the Tulsa International Airport, the Tulsa Riverside Airport, and any additional airport that may be acquired, constructed, or operated by the City of Tulsa, Oklahoma; and, without limiting the generality of such purposes and powers, the same shall include purposes and powers:

**(a)** To alter and modify any and all improvements, buildings and structures located on any leasehold estate, whether within or without the territorial boundaries of the City of Tulsa, acquired by the Trustees, and to erect, construct and install additional buildings, structures, fixtures, equipment and facilities therefor; to incur indebtedness to cover the cost thereof; to lease or sublease said premises with or without such improvements, and to secure the payment of such indebtedness by the assignment of all or any part of the rents and income that may be derived thereunder, or from other income of the Trust, with full power and authority to enforce all terms and conditions of each and every such lease or other agreement, and to modify and cancel, or otherwise terminate the same.

**(b)** To hold, maintain and administer any leasehold rights in, and to, physical properties demised to, said Trustees, and to comply with the terms and conditions of any such lease.

**(c)** To acquire by lease, purchase, devise, bequest or otherwise, and to plan, establish, develop, construct, enlarge, improve, maintain, equip, and operate and regulate, any and all physical properties designed or needful for utilization in the furnishing and providing of services in connection with the Tulsa International Airport and Tulsa Riverside Airport; and to sell, assign, rent, or otherwise dispose of properties owned by the Trust when no longer needful for trust purposes.

**(d)** To provide funds for the cost of financing, acquiring, constructing, leasing, equipping, maintaining, repairing, and operating any such airport properties, facilities, and other improvements on airport grounds, both of the Tulsa International Airport, and Tulsa Riverside Airport, and all properties, real, personal or mixed, required for execution and fulfilling the trust purposes as set forth in this instrument, and all other charges, costs and expenses incurred in connection therewith; and in so doing, to incur indebtedness, either secured or unsecured by all or any part of the Trust Estate, or its revenues, or both, or any part of either or both.

**(e)** To expend all funds coming into the hands of the Trustees, as revenue or otherwise, for the payment of any indebtedness incurred by the Trustees for any purposes specified herein, and in the payment of the aforesaid costs and expenses, and in payment of any other obligation properly chargeable against the Trust Estate, and to distribute the remainder of such funds to the beneficiary municipality.

## ARTICLE III
## Duration of Trust

**3.1.** Commencement. This trust shall commence upon approval and acceptance thereof by the City of Tulsa, Oklahoma.

**3.2.** Duration and Termination. From the date of commencement, this trust shall exist for the term of the duration of said Beneficiary, the City of Tulsa, or until such time as its purposes shall have been fully performed and fulfilled, and until its termination in the manner hereinafter provided.

## ARTICLE IV
## The Trust Estate - Disposal of Assets Liability for Indebtedness

**4.1.** The Trust Estate shall consist of

**(a)** The funds and property presently in the hands of the Trustees, including the $1,000.00 paid to the Trustees, as consideration, above recited.

**(b)** Any and all leasehold rights and leases to said Trustees for the purposes of this Trust, by original lease, or assignment of an existing lease, or otherwise.

**(c)** Any and all improvements that may be constructed by, or on behalf of, the Trustees, upon any property owned by, or leased to, said Trustees, or in which this Trust owns any interest.

**(d)** Any and all money, property, real, personal or mixed, rights, choses in action, contracts, leases, privileges, immunities, licenses, franchises, benefits and other things of value coming into the possession of the Trustees pursuant to the provisions of this Indenture.

**4.2.** The whole title, legal and equitable, to the Trust property is and shall be vested in the Trustees, as such title in the Trustees is necessary for their due execution of this Trust. Said Trustees shall have and exercise exclusive management and control of the Trust properties for the use and benefit of the Beneficiary; but may, in their discretion, agree for approval of any of their actions and transactions by the governing board of the Beneficiary, before taking such action.

**4.3.** No purchaser at any sale, or lessee under a lease, made by the Trustees shall be bound to inquire into the expediency, propriety, validity, or necessity of such sale or lease, or to see to, or be liable for, the application of the purchase or rental monies arising therefrom.

**4.4.** No bond, note, indenture, or other evidence of indebtedness to be issued by the Trustees shall constitute an indebtedness of the State of Oklahoma, nor of the City of Tulsa, Oklahoma, nor a personal obligation of the Trustees of this Trust, or any of them, but shall constitute obligations of the Trustees payable solely from the Trust Estate.

**4.5.** Neither the Trustees, as individuals, nor any of said Trustees, either jointly or severally, nor the Beneficiary herein shall be under any liability whatsoever by reason of any act committed, or omission suffered, in good faith, or in the exercise of their honest discretion in the performance of such Trust, or in the operation of the Trust property; but any liability for any act, omission, or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust property, shall extend to the whole of the Trust Estate, or so much thereof as may be necessary to discharge such liability or obligation.

**4.6.** No contract, lease, indenture, or agreement of any nature whatsoever, to which the Trustees shall be a party, shall be deemed ineffectual or invalid by reason of the fact that any one or more of such Trustees may execute such contract, lease, indenture, or agreement for, or on behalf of, the other parties thereto.

**4.7.** Any firm of which any Trustee may be a member, or any public or private corporation, association, commission, or agency of which any Trustee may be an officer, director, or member, or in which any Trustee may be interested as the holder of any amount of its capital stock, or otherwise, or any Trustee individually, may be a party to, or may be pecuniarily or otherwise interested in, any contract or transaction with this Trust or the Trustees thereof; and, in the absence of fraud, no contract or other transaction shall be thereby affected or invalidated; provided that in case a Trustee, individually, or a firm of which a Trustee is a member, or a corporation in which any Trustee owns a substantial amount of capital stock, is so interested, such fact shall be disclosed, or shall have been known to the other Trustees.

## ARTICLE V
## The Trustees

**5.1.** The five Trustees originally appointed and named herein are severally the present members of the Tulsa Airport Authority of the City of Tulsa, Oklahoma. The Trustees of this Trust shall, during the term hereof, consist of the members of the Tulsa Airport Authority in office from time to time, and the number of such Trustees shall be increased or decreased as the membership of said Tulsa Airport Authority is increased or decreased. When any person has been appointed and qualified as a member of the Tulsa Airport Authority, he shall thereupon be deemed to have accepted appointment as Trustee of this Trust, and shall continue as a Trustee so long as he remains a member of said Tulsa Airport Authority. If any member of the Tulsa Airport Authority shall refuse to act as Trustee, the other then qualified Trustees may appoint a Trustee to take his place until such time as his successor is appointed to the Tulsa Airport Authority. If any member of the Tulsa Airport Authority, who is a Trustee, shall die or resign, or become disabled from performing his duties as a member of the Tulsa Airport Authority, the Trustees shall have power and authority to fill any vacancy in the Trustees of this Trust so resulting by an interim appointment until the successor of such member of the Tulsa Airport Authority shall have been appointed and qualified, at which time the powers under the interim appointment shall cease, and the newly appointed and qualified member of the Tulsa Airport Authority shall become Trustee hereunder.

**5.2.** In event of any changes in the Charter of the City of Tulsa abolishing the Tulsa Airport Authority, or abrogating in whole or in part the present authority and jurisdiction of the Tulsa Airport Authority over the airports of the City of Tulsa, or removing from the jurisdiction of the Tulsa Airport Authority, the operation and maintenance of the airports of the City of Tulsa, or any of them, then and in either of such events, the Trustees then in office hereunder shall continue as the Trustees of this Trust, and shall thereafter have power to fill any vacancies that may occur, and to designate and appoint the successors of any Trustee who may die, resign, or become disabled from performing the duties of a Trustee hereunder.

## ARTICLE VI
## Powers and Duties of the Trustees and Incidents of the Trust

Subject to the provisions and limitations otherwise provided in this Indenture, the Trustees shall have, in addition to the usual powers incident to their office and the powers

granted to them in other parts of this Indenture, the following rights, powers, duties, authority, discretion, and privileges, all of which may be exercised by them without any order or authority from any court:

**6.1.** To adopt By-laws to be binding upon said Trustees as to the manner in which they shall jointly perform their duties, and execute the objects and purposes of this trust. Said By-laws may provide that action to be binding upon the Trust may be taken by concurrence of less than the entire number of the Trustees, but not less than a majority thereof. The By-laws may provide for the election from their own number of a Trustee to act as Chairman, and of a Trustee to act as Vice Chairman of said Trustees; and may provide for the election or designation of such other officers, who need not be members of the Trustees, as said Trustees may deem necessary or convenient for the efficient execution of their duties; and in such By-laws, shall define the qualifications and duties of each officer so to be chosen or designated.

**6.2.** To select and designate one or more depositaries for the funds and securities of this Trust; and by resolution, provide for the execution of checks, notes, bonds, and of other instruments, whether negotiable or otherwise, by one or more of said Trustees, upon approval of a majority of the then total number of Trustees.

**6.3.** To enter into and execute, purchase, lease, or otherwise acquire, property, real, personal or mixed, franchises, contracts, leases, rights, privileges, benefits, choses in action, or other things of value, and to pay for the same in cash, with bonds or other evidences of indebtedness or otherwise.

**6.4.** To make and change investments, to convert real into personal property, and vice versa, to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem advisable, any or all of the property in the Trust, real or personal, to borrow money or renew loans for the Trust; to refund outstanding bonded indebtedness, and to execute therefor, evidences of indebtedness, and to secure the same by mortgage, lien, pledge or otherwise; to purchase property form any person and lease land and other property from the Beneficiary, and construct and equip buildings and facilities thereon, and lease, sublease, or rent, on such terms as they deem advisable the same to individuals, partnerships, associations, corporations and others, including agencies of the United States of America, State of Oklahoma, and political subdivisions of the State, and procure funds necessary for such purpose by the sale of bonds or other evidences of indebtedness and secure the payment of such bonds or other evidences of indebtedness by a mortgage, lien, pledge or other encumbrance of such real and personal property, buildings and facilities owned or otherwise acquired, leased or controlled by Trustees, and rentals, income, receipts and profits therefrom or from any other revenues associated with the ownership, operation or control of the property of the Trust; to lease or sublease, on such terms as they deem advisable, any property of the Trust, or of which the Trustees may become the owners or lessees.

**6.5.** To fix, demand and collect charges, rentals and fees for the services and facilities of the Trust to the same extent as the Beneficiary might do and to discontinue furnishing of services and facilities to any person, firm or corporation, or public instrumentality, delinquent in the payment of any indebtedness to the Trust. To purchase and sell such supplies, goods, equipment and commodities as are incident to the operation of its airport properties.

**6.6.** To make and perform contracts of every kind, including management contracts with any person, firm, corporation, association, trusteeship, municipality, government or sovereignty; and without limit as to amount, to draw, make, accept, endorse, assume, guarantee, account, execute and issue promissory notes, drafts, bills of exchange, acceptances, warranties, bonds, debentures, and other negotiable or non-negotiable instruments, obligations and evidences of unsecured indebtedness, or of indebtedness secured by mortgage, deeds of trust or otherwise, upon any and all property of the Trust, and to pledge any or all income of the Trust, in the same manner and to the same extent as a natural person might or could do. To collect and receive any property, money, rents or income of any sort and distribute the same, or any portion thereof for the furtherance of the authorized Trust purposes set out herein.

**6.7.** To contract for the furnishing of any services, or the performance of any duties that they may deem necessary, or proper, and pay for the same as they see fit.

**6.8.** To employ such agents, servants and employees as they deem necessary or proper, and to prescribe their duties and fix their compensation at such amounts as, in their judgment, is customary and normal in the operation of airports, and select depositories for the funds and securities of this Trust.

**6.9.** To compromise any debts or claims of or against the Trust, and to adjust any dispute in relation to such debts or claims by arbitration or otherwise; and pay any debts or claims against the Trust upon any evidence that seems to be sufficient to the Trustees. The Trustees may bring any suit or action which, in their judgment, is necessary or proper to protect interests of the Trust, or to enforce any claim, demand or contract for the Trust; and they shall defend, in their discretion, any suit against the Trust, or the Trustees or employees, agents or servants thereof. They may compromise and settle any suit or action, and discharge the same out of Trust assets, together with court costs and attorney fees. All such expenditures shall be treated as expenses of executing this Trust.

**6.10.** To do all other acts in their judgment necessary or desirable for the proper and advantageous management, investment and distribution of the Trust Estate and income therefrom.

## ARTICLE VII
## Termination of Trust

**7.1.** This Trust shall terminate

**(a)** When the purposes set out in Article II of this Indenture shall have been fully executed; or

**(b)** In the manner provided by Title 60, Oklahoma Statutes, Section 180

provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

**7.2.** Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of this Trust; they shall first pay all indebtedness of the Trust, and interest thereon; and, second, all costs and expenses incident to the management, operation, maintenance and conservation of the Trust; and after payment of all debts and obligations, they shall

distribute the entire residue of the trust corpus to the Beneficiary hereunder. Upon final distribution, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE VIII

The Trustees accept the Trust herein created, and provided for, and agree to carry out the provisions on their part to be performed.

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands this 20th day of March, 1967.

A & S METALS, INC.

/s/ Morris L. Sellenger
President

Trustor

ATTEST:

/s/ Elsa Faye Sellenger
Secretary

/s/ Richard Lloyd Jones, Jr.
Richard Lloyd Jones, Jr.

/s/ E. Fred Johnson
E. Fred Johnson

/s/ J.M. Hewgley, Jr.
J. M. Hewgley, Jr.

/s/ L.L. Dresser
L. L. Dresser

/s/ Byron V. Boone
Byron V. Boone

Trustees

[ACKNOWLEDGMENTS]

## CERTIFICATE OF ACCEPTANCE

STATE OF OKLAHOMA )
) ss.
COUNTY OF TULSA )

We, the undersigned, Chairman and Secretary of the Tulsa Airport Authority, hereby certify that the Tulsa Airport Authority, to the extent of its authority, duly accepted the above and foregoing Trust Indenture creating the TULSA AIRPORTS IMPROVEMENT TRUST for the sole and exclusive benefit of the City of Tulsa, Oklahoma, pursuant to resolution of the Tulsa Airport Authority duly adopted December 29, 1966, as shown by the official minutes of said meeting.

Dated March 20, 1967

/s/ Richard Lloyd Jones, Jr.
Chairman

Attest:

/s/ Remmington Rogers
Secretary

## CERTIFICATE OF ACCEPTANCE

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Pursuant to the provisions of Ordinance No. 10736, I hereby certify that the City of Tulsa has accepted the above and foregoing Trust Indenture creating the TULSA AIRPORTS IMPROVEMENT TRUST, for the sole and exclusive benefit of said City of Tulsa, Oklahoma, all as provided by the terms and conditions of said ordinance, a copy of which is hereto attached.

Dated March 21, 1967

/s/ J.M. Hewgley, Jr.
J. M. Hewgley, Jr., Mayor

Attest:

/s/ William F. Lambert
City Auditor

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## CHAPTER 9. METROPOLITAN TULSA TRANSIT AUTHORITY

Section 900. Beneficial interest in Metropolitan Tulsa Transit Authority Trust accepted.
Section 901. Identification of Trust and Trustees.
Section 902. Mayor and City Auditor authorized to endorse approval of Trust and record Trust Indenture.
Section 903. Trust Indenture modified pursuant to terms of Amendment Number One.
Section 904. Beneficial interest accepted in the Trust Indenture as modified by Amendment Number One.
Section 905. Mayor and City Auditor authorized to endorse and record Amendment Number One.
Appendix I Trust Indenture (Sections 900, 901 and 902) ("Exhibit A" in Ord. No. 11208).
Appendix II Amendment Number One to the Trust Indenture Dated August 2, 1968, for the Metropolitan Tulsa Transit Authority (Sections 903, 904 and 905) ("Exhibit A" in Ord. No. 17329).

### Section 900. Beneficial interest in Metropolitan Tulsa Transit Authority Trust accepted.

The Metropolitan Tulsa Transit Authority, created by Trust Indenture dated August 2, 1968, a copy of which Trust Indenture is hereto attached and marked "Exhibit A" and made a part hereof, wherein A. E. McMillan, Fenelon Boesche, Rex M. Ball, M. M. Hargrove, James A. Robinson, John L. O'Brien and Robert J. LaFortune are designated trustees, and the City of Tulsa is designated as the sole beneficiary of said Metropolitan Tulsa Transit Authority Trust, is hereby approved and said City of Tulsa hereby accepts the beneficial interest therein, and all the terms and provisions of said Trust Indenture as authorized by the applicable statutes of the state of Oklahoma, and the City of Tulsa, Oklahoma and hereby agrees to be and become the sole beneficiary of said Trust.

*(Ord. No. 11208)*

### Section 901. Identification of Trust and Trustees.

The City recognizes said Metropolitan Tulsa Transit Authority and the trustees named in said Trust Indenture and in all negotiations where the term "Metropolitan Tulsa Transit Authority Trust" is used, it shall be deemed and construed to mean said trust above mentioned and described.

*(Ord. No. 11208)*

### Section 902. Mayor and City Auditor authorized to endorse approval of Trust and record Trust Indenture.

The Mayor and City Auditor are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture the approval of the City of Tulsa of said Trust Indenture creating the Metropolitan Tulsa Transit Authority Trust and the City's acceptance of the beneficial interests therein and to cause said Trust Indenture to be recorded in the office of the County Clerk and ex officio Register of Deeds of the County of Tulsa, Oklahoma.

*(Ord. No. 11208)*

### Section 903. Trust Indenture modified pursuant to terms of Amendment Number One.

The Trust Indenture for the Metropolitan Tulsa Transit Authority, dated August 2, 1968, is modified hereby pursuant to the terms of Amendment Number One to said Trust Indenture dated February 27, 1990, an executed copy of which is attached hereto as "Exhibit A" and made a part hereof.

*(Ord. No. 17329)*

### Section 904. Beneficial interest accepted in the Trust Indenture as modified by Amendment Number One.

The City of Tulsa hereby accepts the beneficial interest in the Trust Indenture of August 2, 1968, creating the Metropolitan Tulsa Transit Authority, as modified by Amendment Number One attached.

*(Ord. No. 17329)*

### Section 905. Mayor and City Auditor authorized to endorse and record Amendment Number One.

The Mayor and the City Auditor of the City of Tulsa hereby are authorized, instructed and directed to endorse upon the original of the Amendment Number One to the Trust Indenture the approval of the City of Tulsa of the Amendment Number One to the Trust Indenture creating the Metropolitan Tulsa Transit Authority and to cause Amendment Number One to be recorded in the Office of the County Clerk of Tulsa, Oklahoma.

*(Ord. No. 17329)*

## APPENDIX I TRUST INDENTURE (SECTIONS 900, 901, AND 902)

*("Exhibit A" in Ord. No. 11208)*

KNOW ALL MEN BY THESE PRESENTS:

THIS Trust Agreement and Indenture dated as of the 2nd day of August, 1968, by J.M. Hewgley, Jr., Tulsa, Oklahoma, R.L. Langenheim, Tulsa, Oklahoma, and William F. Lambert, Tulsa, Oklahoma, hereinafter referred to as Trustors, and A.E. McMillan, Tulsa, Oklahoma, Fenelon Boesche, Tulsa, Oklahoma, Rex M. Ball, Tulsa, Oklahoma, M.M. Hargrove, Tulsa, Oklahoma, James A. Robinson, Tulsa, Oklahoma, John L. O'Brien, Tulsa, Oklahoma, and Robert J. LaFortune, Tulsa, Oklahoma, to be known as Trustees of the Metropolitan Tulsa Transit Authority, and hereinafter referred to as Trustees.

W I T N E S S E T H:

That in consideration of the payment by the Trustors to the Trustees of the sum of Ten Dollars ($10.00), the mutual covenants herein set forth, and other valuable considerations, the said Trustees agree to hold, manage, invest, assign, convey and distribute as herein provided, authorized and directed, such property as Trustors, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Trust or the Trustees thereof.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits and increases thereof unto said Trustees, and said Trustees' successors and assigns, but nevertheless in trust, for the use and benefit of the City of Tulsa, Oklahoma, and upon the following trusts, terms and conditions herein stated.

### ARTICLE I.
### Creation of Trust.

The undersigned Trustors create and establish a trust for the use and benefit of the City of Tulsa, Oklahoma, and for the public purposes hereinafter set forth, under the provisions of Title 60, Oklahoma Statutes 1961, Sections 176 to 180, inclusive, as amended, the Oklahoma Trust Act and other applicable statutes of the State of Oklahoma.

### ARTICLE II.
### Name.

The name of this Trust shall be "Metropolitan Tulsa Transit Authority," hereinafter referred to as Trust. Under that name it shall, so far as practicable, conduct all business and execute all instruments, and otherwise perform its duties and functions in the execution of this Trust.

### ARTICLE III.
### Purposes of Trust.

The purposes of this Trust are:

**(1)** To plan, establish, develop, acquire, construct, purchase, install, repair, enlarge, improve, maintain, equip, finance and refinance, operate and regulate public transportation systems and facilities either within or without the territorial boundaries of The City of Tulsa, including but not limited to the purchase, lease,

construction, installation, equipping, maintenance and operation of such buildings and other facilities necessary for the servicing of such public transportation systems and facilities of for the comfort and accommodation of patrons of such public transportation systems and facilities or for use by authorities or agencies of the United States of America, the State of Oklahoma or other political subdivisions of government or for other uses that any municipality may undertake as to public transportation and the buildings and facilities thereof.

**(2)** To hold, maintain and administer any leasehold rights in and to physical properties demised to the beneficiary and to comply with the terms and conditions of any such lease.

**(3)** To acquire by lease, purchase or otherwise, and to plan, establish, develop, construct, enlarge, improve, maintain, equip, operate and regulate any and all physical properties designated or needful for utilization in the furnishing and providing of services, in connection with public transportation systems and facilities properties, and to dispose of, rent or otherwise make provisions for properties owned by the Trust but no longer needful for trust purposes.

**(4)** To provide funds for the cost of financing, acquiring, constructing, leasing, equipping, maintaining, repairing and operating such public transportation systems and facilities and buildings and other improvements thereto, and all properties, real, personal or mixed, required for execution and fulfilling the trust purposes as set forth in this instrument, and all other charges, costs and expenses necessarily incurred in connection therewith, and in so doing, to incur indebtedness, either unsecured or secured by all or any part of the Trust Estate and its revenues.

**(5)** To expend all funds coming into the hands of the Trustees as revenue or otherwise in the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the aforesaid costs and expenses, and in the payment of any other obligation properly chargeable against the Trust Estate, and to distribute the remainder of such funds to the beneficiary municipality.

## ARTICLE IV.
## Duration of Trust.

This Trust shall have duration for the term of duration of the beneficiary and until such time as its purpose shall have been fully fulfilled, or until it shall be terminated as hereinafter provided.

## ARTICLE V.
## The Trust Estate.

The Trust Estate shall consist of:

**(1)** The funds and property presently in the hands of the Trustees or to be acquired or constructed by Trustees and dedicated by the Trustor and others to be used for trust purposes.

**(2)** Any and all leasehold rights demised to the Trustees by any Beneficiary as authorized and empowered by law.

**(3)** Any and all money, property, real, personal or mixed, rights, choses in action, contracts, leases, privileges, immunities, franchises, benefits and all other things of value coming into the possession of the Trustees pursuant to the provisions of this Trust Indenture.

**(4)** Cash in hand.

The instruments executed for each project, and each issuance of Trustees' Bonds and other indebtedness, shall set out the specific property of the Trust Estate exclusively pledged and mortgaged for the payment of such indebtedness.

## ARTICLE VI.
## The Trustees.

**(1)** There shall be seven Trustees of this Trust who shall be appointed by the Mayor of the City of Tulsa, subject to the approval of the governing body of the City of Tulsa, and who shall serve for the initial and successive term as stated further hereinafter.

**(a)** Two of such Trustees shall be elected officers of the City of Tulsa, Oklahoma. Such elected Trustees shall serve during their term of office and until their successors have been duly elected or appointed and qualified.

**(b)** A.E. McMillan shall be a Trustee for a term of one year, commencing on the date of this Indenture. Fenelon Boesche shall be a Trustee for a term of two years, commencing on the date of this Indenture. Rex M. Ball shall be a Trustee for a term of three years, commencing on the date of this Indenture. M.M. Hargrove shall be a Trustee for a term of four years, commencing on the date of this Indenture. James A. Robinson shall be a Trustee for a term of five years, commencing on the date of this Indenture.

**(c)** Successor Trustees shall be appointed by the Mayor, subject to the approval of the governing body of the City of Tulsa. Each successor Trustee so appointed shall serve a term of five years, except those two Trustees who are elected officers of the City of Tulsa. Vacancies occurring otherwise than through the expiration of term shall be filled for the unexpired term in the same manner as that provided for the appointment as a successor to that position.

**(d)** Each successor Trustee duly appointed shall without any further act or conveyance become fully vested with all of the estate, properties, rights, powers, duties and obligations of his predecessor hereunder, with like effect as if originally named as Trustee.

**(e)** The five Trustees who are not members of the governing body of the City of Tulsa shall during their term be subject to removal only by action of the District Court of Tulsa County, for cause shown.

**(2)** The Trustees may contract, in connection with the incurring of any bonded debt secured by the Trust Estate and/or its revenues, or any part of either or both, that a Temporary Trustee or Trustees may be appointed by the "Bank" under the Bond Indenture securing the payment of Trustees' Bonds, or by holders of at least fifty percent in amount of the then outstanding bonded indebtedness obligated to be paid by the Trustees who executed this instrument in the event of a default in the payment of principal of or interest on such debt, or any default under any instrument securing or pursuant to which such debt be incurred. A certificate shall be filed by the Bank under

the Bond Indenture with the City Auditor of the City of Tulsa, setting out the appointment of such Temporary Trustee or Trustees. Such Temporary Trustee or Trustees shall without any further act or conveyance become fully vested, together with the other Trustees, with all the estate, properties, rights, powers, trusts, duties and obligations of their predecessors in trust with like effect as if originally named as Trustee herein. The Temporary Trustee or Trustees shall cease to have any power or authority in the event there is termination of all the defaults by which his appointment would have been authorized, and the permanent Trustee, temporarily supplanted, shall be automatically reinstated.

**(3)** No Trustee shall be paid any compensation of any kind for his services as a Trustee of this Trust. However, Trustees may be reimbursed for expenses incurred in the performance of their duties hereunder. Any temporary Trustee appointed shall receive reasonable compensation for his services, to be fixed by the Bank set out in the Bond Indenture, which compensation is subject to revision by the holders of at least fifty percent in an amount of the Trustees' Bonds then outstanding, to be paid from revenues of the Trust Estate.

**(4)** Bonds or other evidences of indebtedness to be issued by the Trustees shall not constitute an indebtedness of the State of Oklahoma, nor of the Beneficiary, nor personal obligations of the Trustees of the Trust, but shall constitute obligations of the Trustees payable solely from the Trust Estate. Provided, however, that no indebtedness in excess of $100,000 during any one year shall be incurred by the Trustees without the prior approval of the governing body of the City of Tulsa, Oklahoma, both as to the purpose and amount of the indebtedness.

**(5)** The Trustees, the State of Oklahoma, and the Beneficiary hereof shall not be charged personally with any liability whatsoever by reason of any act or omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trust Estate; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate, shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**(6)** Notwithstanding any other provisions of this Indenture which shall appear to provide otherwise, no Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or the Beneficiary, in his or its capacity, nor can the Beneficiary bind or obligate the Trust or any individual Trustee.

**(7)** The Trustees shall elect a Chairman from their members who shall preside at all meetings and perform other duties designated by the Trustees. The Trustees shall elect a Vice Chairman from their members who shall serve as such until another member is elected Vice Chairman. The Vice Chairman shall act as Chairman during the temporary absence or disability of the Chairman. If a permanent vacancy occurs in the office of Chairman or Vice Chairman the Trustees shall elect a successor thereto from its members. The Trustees shall designate the time and place of all regular meetings, which meetings shall be public. All actions by the Trustees pursuant to the provisions of this Trust Indenture shall be approved by the affirmative vote of at least a majority of all the Trustees.

## ARTICLE VII.
## Powers and Duties of the Trustees.

To accomplish the purposes of the Trust, and subject to the provisions and limitations otherwise provided in this Trust Indenture, the Trustees shall have, in addition to the usual powers incident to their office and the powers granted to them in other parts of this Trust Indenture, the following rights, power, duties, authority, discretion and privileges, all of which may be exercised by them without any order or authority from any court:

**(1)** To finance, acquire, establish, develop, construct, enlarge, improve, extend, maintain, equip, operate, lease, furnish, provide, supply, regulate, hold, store and administer any of the systems and facilities designated pursuant to Paragraph (1) of Article III hereof as the Trustees shall determine necessary for the benefit and development of the Beneficiary.

**(2)** To enter into contracts for the acquisition and construction and enlargement and improvement of buildings, works, including but not limited to transportation vehicle terminals and way stations, garages and repair shops, and facilities authorized to be acquired and constructed, enlarged and improved, pursuant to the terms of this Trust Indenture and in compliance herewith, other than those buildings, works and other facilities to be constructed by the employees of the Trustees; provided, however, that:

**(a)** It is the intent of this Trust Indenture that there be effective competition on contracts for all construction work and materials involving an outlay and expenditure in excess of $1,000; provided, however, should the Trustees find that an immediate emergency exists by reason of which an immediate outlay of funds in an amount exceeding $1,000 is necessary in order to avoid loss of life, substantial damage to property, or damage to the public peace or safety, then contracts may be made and entered into without competitive bids. Contracts involving an outlay and expenditure not in excess of $1,000 may be made only after informal quotations of costs have been obtained from at least three reliable sources capable of accomplishing the project contemplated if available. Contracts in excess of $1,000 for the construction of all improvements as a whole or in part shall be entered into only after reasonable public advertisement for bids, and the Trustees shall cause plans and specifications to be prepared in sufficient detail for contractors to submit bids on such construction work. Plans and specifications shall be made available to all bidders, and whenever practicable in the opinion of the Trustees, final detailed plans and specifications shall be prepared prior to advertisement for bids and shall be made available to all bidders.

**(b)** The Trustees may reject all bids and re-advertise for bids or may enter into a contract or contracts with a responsible bidder or bidders who, in the opinion of the Trustees, shall offer the terms deemed most favorable to the Trust Estate. All contractors to whom any construction contract for any project or part thereof is let shall be financially responsible and bear a good reputation in the industry. The Trustees may prescribe such bidding qualifications as they deem necessary and desirable.

**(c)** All construction contracts shall be bonded (performance and statutory) for One Hundred percent (100%) of the amount of the contract.

**(d)** On major construction projects the invitation to bid, the bidding, and letting of contracts may be by sections, segments or for particular parts or units of the total work to be performed.

**(3)** To employ such architectural and engineering firm or firms as the Trustees deem necessary to prepare such preliminary or detailed studies, plans, specifications, cost estimates and feasibility reports as are required in the opinion of the Trustees. The cost of such engineering and architectural work shall be paid out of the proceeds of the sale of bonds or from such other funds as may be available therefor.

**(4)** To enter into contracts for the sale of bonds, notes or other evidences of indebtedness or obligations of the Trust for the purpose of acquiring or constructing works and facilities authorized to be acquired or constructed pursuant to the terms of this Trust Indenture and for that purpose may:

**(a)** Employ a financial advisor, or committee of advisors, to advise and assist the Trustees in the marketing of such bonds, notes or other evidences of indebtedness or obligations, and to present financial plans for the financing of the acquisition or construction of each project, and to recommend to, or consult with, the Trustees concerning the terms and provisions of bond indentures and bond issues, and may pay appropriate compensation for such work and services performed in the furtherance of the project;

**(b)** Sell all bonds, notes or other evidences of indebtedness or obligations of the Trust in installments or series and on such terms and conditions and in such manner as the Trustees shall deem to be in the best interest of the Trust Estate; and

**(c)** Appoint and compensate attorneys, paying agencies and corporate trustees in connection with the issuance of any such bonds, notes, evidences of indebtedness or other obligations of the Trust.

**(5)** To enter into and execute, purchase, lease, or otherwise acquire property, real, personal or mixed, contracts, leases, rights, privileges, benefits, choses in action, or other things of value and to pay for the same in cash, with bonds or other evidences of indebtedness or otherwise.

**(6)** To make and change investments, to convert real into personal property, and vice versa, to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem proper, and to resell, at any time and as often as they deem advisable, any or all the property in the Trust, to refund outstanding bonded indebtedness and to execute therefor bonds, notes, or other evidences of indebtedness or obligations, and to secure the same by mortgage, lien, pledge or otherwise; to purchase property from any person, firm, corporation or public Trust, and lease or sublease land and other property to and from the Beneficiary or others and construct, improve, repair, extend, remodel, and equip buildings, improvements and other facilities thereon and to operate or lease or rent the same to individuals, partnerships, associations, corporations and others, including the United States of America or the State of Oklahoma and agencies or authorities of the United States of America, or of the State of Oklahoma, or of any municipality thereof, and also including all municipal or other political subdivisions of the State of Oklahoma as well as the beneficiary hereof, and to do all things to accomplish the purposes set out in Article III of this Trust Indenture, and procure funds necessary for such

purpose by the sale of bonds or other evidences of indebtedness by mortgages, liens, pledges or other encumbrances of such real and personal property, buildings, improvements and other facilities owned or otherwise acquired, leased or controlled by Trustees, and by rentals, income, receipts and profits therefrom, or from any other revenues associated with the ownership, operation or control of the property of the Trust; to lease or sublease any property of the Trust or of which the Trustees may become the owners or lessees.

**(7)** To fix, demand and collect charges, rentals and fees for the services and facilities of the Trust to the same extent as the Beneficiary might do and to discontinue furnishing of services and facilities to any person, firm or corporation, or public instrumentality, delinquent in the payment of any indebtedness to the Trust; to purchase and sell such supplies, goods, and commodities as are incident to the operation of its properties.

**(8)** To make and perform contracts of every kind, including management contracts, with any person, firm, corporation, association, trusteeship, municipality, government or sovereignty; and subject to the provisions of Article VI (4) set forth above without limit as to amount to draw, make, accept, indorse, assume, guarantee, account, execute and issue promissory notes, drafts, bills of exchange, acceptances, warranties, bonds, debentures, and other negotiable or non-negotiable instruments, obligations and evidences of unsecured indebtedness, or of indebtedness secured by mortgage, deed of trust or otherwise upon any or all income of the Trust, in the same manner and to the same extent as a natural person might or could do. To collect and receive any property, money, rents, or income of any sort and distribute the same or any portion thereof for the furtherance of the authorized Trust purposes set out herein.

**(9)** The Trustees shall file with the governing body of the City of Tulsa a quarterly Financial Report including a balance sheet, a comparative analysis of income and expenses, together with a summary of the Trust Activities for the quarter.

**(10)** The Trustee shall file with the governing body of the City of Tulsa a certified copy of the annual audit made of the funds, accounts, and fiscal affairs of the Trust at the time as is required by Section 180.3, Title 60, Oklahoma Statutes Annotated.

**(11)** The governing body of the Beneficiary shall have the right to conduct or have conducted a complete audit of the funds, accounts and fiscal affairs of the Trust at any time at its discretion.

**(12)** The Trustees shall, no later than August 15 of each year, file with the governing body of the City of Tulsa an operating and capital budget(s) for the next fiscal year. The form of such operating budget shall be as provided by the Mayor of the City of Tulsa.

**(13)** To do all other acts in their judgment necessary or desirable for the proper and advantageous management, investment, and distribution of the Trust Estate and income therefrom.

The whole title, legal and equitable, to the properties of the Trust is and shall be vested in the Trustees, as such title in the Trustees is necessary for the due execution of this Trust.

Said Trustees shall have and exercise exclusive management and control of the properties of the Trust Estate for the use and benefit of the Beneficiary; but may agree for approval of any or all of its actions and transactions by the governing board of the Beneficiary.

The Trustees may contract for the furnishing of any services or the performance of any duties that they may deem necessary, or proper, and pay for the same as they see fit.

The Trustees may select depositories for the funds and securities of this Trust. Temporary Trustee or Trustees appointed pursuant to paragraph 5 of Article VI hereof may employ special counsel to represent them and such special counsel's compensation shall be paid from revenues of the Trust Estate.

The Trustees may compromise any debts or claims of or against the Trust Estate, and may adjust any dispute in relation to such debts or claims by arbitration or otherwise and may pay any debts or claims against the Trust Estate upon any evidence deemed by the Trustees to be sufficient. The Trustees may bring any suit or action, which in their judgment is necessary or proper to protect interest of the Trust Estate, or to enforce any claim, demand or contract for the Trust; and they shall defend, in their discretion, any suit against the Trust, or the Trustees or employees, agents or servants thereof. They may compromise and settle any suit or action, and discharge the same out of assets of the Trust Estate, together with court costs and attorneys' fees. All of such expenditures shall be treated as expenses of executing this Trust.

No purchaser at any sale or lessee under a lease made by the Trustees shall be bound to inquire into the expediency, propriety, validity or necessity of such sale or lease or to see to or be liable for the application of the purchase or rental moneys arising therefrom.

## ARTICLE VIII.
## Beneficiary of Trust.

**(1)** The Beneficiary of this Trust shall be the City of Tulsa, Oklahoma, a municipal corporation, under and pursuant to Title 60, Oklahoma Statutes 1961, Sections 176 to 180, both inclusive, as amended, and other statutes of the State of Oklahoma as presently in force and effect. Trustors now declare that this Trust Indenture shall be irrevocable from the moment it is signed by him and delivered to the Trustees, and that it shall thereafter stand without any power whatsoever at any time to alter, amend, revise, modify, revoke or terminate any of the provisions of this Trust Indenture, except with the consent of all parties in interest.

**(2)** Subject to the provisions of Article III (5) set forth above, the Beneficiary shall have no legal title, claim or right to the Trust Estate, its income, or to any part thereof or to demand or require any partition or distribution thereof. Neither shall the Beneficiary have any authority, power or right whatsoever, to do or transact any business for, or on behalf of, or binding upon the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees pertaining to the Trust Estate, or any part thereof. The Beneficiary shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder, and at the termination of the Trust, as provided herein, and then only the Beneficiary shall receive the residue of the Trust Estate.

## ARTICLE IX.
## Secretary of Trust.

The Trustees shall employ a Secretary of the Trustees to serve at their will, with compensation as set by themselves. The Secretary shall keep minutes of all meetings of the Trustees and shall maintain complete and accurate records of all their financial transactions, all such minutes, books and records to be on file in the office of the Trust. All meetings of the Trustees shall be open to the public, and the bonds, records and minutes of the Trustees shall be considered as public records and available for inspection at all times by any interest (sic) party.

## ARTICLE X.
## Termination of Trust.

This Trust shall terminate -

**(1)** When the purposes set out in Article III of this instrument shall have been fully executed; or

**(2)** In the manner provided by Title 60, Oklahoma Statutes 1961, Section 180.

Provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of this Trust, and after payment of all debts, expenses and obligations out of the moneys and properties of the Trust Estate to the extent thereof, shall distribute the residue of the money and properties of the Trust Estate to the Beneficiary hereunder. Upon final distribution, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE XI.

The Trustees accept the Trust herein created and provided for, and agree to carry out the provisions of this Trust Indenture on their part to be performed.

IN WITNESS WHEREOF, the Trustors and the Trustees have hereunto set their hands on the day and year indicated.

/s/ J.M. Hewgley, Jr.
J.M. Hewgley, Jr., Trustor

/s/ R.L. Langenheim
R. L. Langenheim, Trustor

/s/ William F. Lambert
William F. Lambert, Trustor

/s/ Rex M. Ball

/s/ James A. Robinson

/s/ John L. O'Brien

/s/ A.E. McMillan

/s/ Robert J. LaFortune

/s/ Fenelon Boesche

/s/ M.M. Hargrove

TRUSTEES

[ACKNOWLEDGMENTS]

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENTS:

That the Board of Commissioners of The City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, for and on behalf of said Beneficiary in all respects in accordance with the terms of said Trust Indenture.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners this 6th day of August, 1968.

/s/ Robert J. LaFortune
Mayor Pro-Tem

(SEAL)

ATTEST:

/s/ William F. Lambert
City Auditor

APPROVED:

/s/ Charles E. Norman
City Attorney

# APPENDIX II AMENDMENT NUMBER ONE TO THE TRUST INDENTURE DATED AUGUST 2, 1968, FOR THE METROPOLITAN TULSA TRANSIT AUTHORITY (SECTIONS 903, 904, AND 905)

*("Exhibit A" in Ord. No. 17329)*

KNOW ALL MEN BY THESE PRESENTS:

Whereas, the original Trustors and elected officials of the City of Tulsa, Oklahoma, i.e., J.M. Hewgley, Jr., Mayor; R. L. Langenheim, Commissioner of Waterworks and Sewerage; and William F. Lambert, City Auditor, created a Trust named the Metropolitan Tulsa Transit Authority for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, under a Trust Indenture dated August 2, 1968, between the Trustors and certain citizens, i.e., A.E. McMillan, Fenelon Boesche, Rex M. Ball, M.M. Hargrove, and James A. Robinson, and elected officials of the City of Tulsa, John L. O'Brien, Commissioner of Finance and Revenue, and Robert J. LaFortune, Commissioner of Streets and Public Property, referred to in the Trust Indenture as Trustees; and

WHEREAS, the successor Trustors and elected officials, i.e., Rodger Randle, Mayor; Charlie L. King, Commissioner of Waterworks and Sewerage; and Philip W. Wood, City Auditor, wish to amend the Trust to change the number of Trustees and the terms of service of the Trustees; and

WHEREAS, the Trust Indenture can be amended only by the Trustors with the consent of the City of Tulsa as beneficiary and the consent of the five successor Trustees:

NOW THEREFORE, we, the undersigned elected officials and successor Trustors, Rodger Randle, Philip W. Wood, and Charlie L. King, under a Trust Indenture named the Metropolitan Tulsa Transit Authority and dated November 2, 1968, between J. M. Hewgley, Jr., R.L. Langenheim, William F. Lambert, as Trustors; and A.E. McMillan Fenelon Boesche, Rex M. Ball, M. M. Hargrove, James A. Robinson, John L. O'Brien, and Robert J. LaFortune, as Trustees; do hereby amend said Trust Indenture subject to the approval of the governing body of the City of Tulsa, and further subject to the approval of the successor Trustees, E.J. Hammond, Brook D. Tarbel, R. O. Laird, Henry Collier, Phyllis Levy, and Gary L. Watts, Commissioner of Finance and Revenue, and J.D. Metcalfe, Commissioner of Streets and Public Property, of the City of Tulsa, Oklahoma; as follows:

**I.**

Article VI of the Trust Indenture, entitled "The Trustees", is amended hereby in Paragraphs (1) and (2) to read as follows:

**ARTICLE VI**
**The Trustees**

**(1)** There shall be seven Trustees of this Trust who shall be appointed by the Mayor of the City of Tulsa, subject to the approval of the governing body of the City of Tulsa, and who shall serve for the initial and successive terms as stated hereinafter.

**(a)** One of the Trustees shall be ex officio the Mayor of the City of Tulsa, or the Mayor's designated representative who shall be a full-time City employee serving a one-year term.

**(b)** Robert O. Laird shall be a Trustee for a term ending July 31, 1990. E.J. Hammond shall be a Trustee for a term ending July 31, 1991. Henry Collier shall be a Trustee for a term ending July 31, 1992. shall be a Trustee for a term ending July 31, 1992. Brook D. Tarbel shall be a Trustee for a term ending July 31, 1993. Phyllis Levy shall be a Trustee for a term ending July 31, 1994.

**(c)** Successor Trustees shall be appointed by the Mayor, subject to approval of the governing body of the City of Tulsa. Each successor Trustee so appointed shall serve a three-year term, excepting ex officio the Mayor of the City of Tulsa, or the Mayor's designee. The Trustee who shall be the Mayor, or Mayor's designee, shall serve a one-year term. Vacancies occurring otherwise than through the expiration of term shall be filled for the unexpired term in the same manner as that provided for the appointment of a successor Trustee.

**(d)** Each successor Trustee duly appointed, without further act or conveyance, shall become fully vested with all of the estate, properties, rights, powers, duties and obligations of his or her predecessor hereunder, and with like effect as if originally named as Trustee.

**(e)** All Trustees, excepting the Mayor, or the Mayor's designee, during their term shall be subject to removal only by action of the District Court of Tulsa County, Oklahoma, and for cause shown.

**II.**

Except as amended herein, the Trustors and Trustees hereby ratify and confirm the provisions of the trust as originally executed on August 2, 1968.

IN WITNESS WHEREOF, this Amendment to Trust Indenture has been duly executed on the 27th day of February, 1990, and shall take effect at 12:00 noon, on the 8th day of May, 1990.

/s/ Philip W. Wood
Philip W. Wood, Trustor

/s/ Rodger M. Randle
Rodger Randle, Trustor

/s/ Charlie L. King
Charlie L. King, Trustor

APPROVAL OF TRUSTEES:

/s/ E.J. Hammond
E.J. Hammond

/s/ Brook D. Tarbel
Brook D. Tarbel

/s/ Robert O. Laird
Robert O. Laird

/s/ Henry Collier
Henry Collier

/s/ Phyllis Levy
Phyllis Levy

/s/ Gary L. Watts
Gary L. Watts

/s/ J.D. Metcalfe
J.D. Metcalfe

[ACKNOWLEDGMENTS]

**ACCEPTANCE OF TRUST**

KNOW ALL MEN BY THESE PRESENTS:

That the Board of Commissioners of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, as amended, for an (sic) on behalf of said Beneficiary, the City of Tulsa, Oklahoma, in all respects in accordance with the terms of said Trust Indenture.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners this 7th day of May, 1990.

/s/ Rodger Randle
Mayor

ATTEST:

/s/ Philip W. Wood
City Auditor

APPROVED:

/s/ Neal E. McNeill
City Attorney (*IH*)

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## CHAPTER 10. TULSA AUTHORITY FOR ECONOMIC OPPORTUNITY*

Section 1000. Beneficial interest in Tulsa Authority For Economic Opportunity.
Section 1001. Authorization to endorse approval of Trust.
Appendix I Trust indenture (Sections 1000, 1001)

### Section 1000. Beneficial interest in Tulsa Authority For Economic Opportunity.

That the Tulsa Authority For Economic Opportunity created by Trust Indenture dated March 7, 1969, amended on January 4, 1972, December 13, 1973, January 26, 1978, July 14, 1986, March 1, 1990 (effective May 8, 1990), March 4, 1991, and as amended and restated by the Amended and Restated Trust Indenture dated as of the 25th day of February, 2021, a copy of which Amended and Restated Trust Indenture is available for inspection at the office of the City Clerk, wherein the City of Tulsa remains and is designated as the sole beneficiary of the Tulsa Authority For Economic Opportunity Trust, is hereby approved and the City of Tulsa hereby accepts the beneficial interest in the Tulsa Authority For Economic Opportunity and accepts all the terms and provisions of the Amended and Restated Trust Indenture as authorized by the applicable statutes of the State of Oklahoma.

*(Ord. No. 24590, § 1, 4-7-2021)*

### Section 1001. Authorization to endorse approval of Trust.

That the Chair of the Tulsa City Council and the Mayor and the City Clerk of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Amended and Restated Trust Indenture the approval of the City of Tulsa, Oklahoma of said Amended and Restated Trust Indenture creating the Tulsa Authority For Economic Opportunity and the City's acceptance of the beneficial interest therein.

*(Ord. No. 24590, § 2, 4-7-2021)*

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***Editor's note—**Ord. No. 24590, adopted April 7, 2021, amended Chapter 10 in its entirety to read as herein set out. Former Chapter 10, §§ 1000—1021, Appendices I—VII, pertained to Tulsa Industrial Authority, and derived from Ord. No. 11397; Ord. No. 12352; Ord. No. 13043; Ord. No 14032; Ord. No. 16642; Ord. No. 17296; Ord. No. 17525.

## APPENDIX I TRUST INDENTURE (SECTIONS 1000, 1001)

### THE TULSA AUTHORITY FOR ECONOMIC OPPORTUNITY AMENDED AND RESTATED TRUST INDENTURE

THIS AMENDED AND RESTATED TRUST INDENTURE, dated as of the 25th day of February, 2021, is made and entered into by the TULSA CHAMBER OF COMMERCE, as the Trustor, and the Trustees selected as provided herein, and their respective successors in office, to be known as the Trustees of the TULSA AUTHORITY FOR ECONOMIC OPPORTUNITY, as Trustees.

**WITNESSETH:**

WHEREAS, the Tulsa Industrial Authority was created by Trust Indenture dated March 7, 1969, as amended by the Amendment to Trust dated January 4, 1971, as further amended by the Second Amendment to Trust Indenture dated December 13, 1973, as further amended by the Third Amendment to Trust Indenture dated January 26, 1978, as further amended by Fourth Amendment to Trust Indenture dated July 14, 1986, as further amended by the Fifth Amendment to Trust Indenture dated March 1, 1990, as further amended by the Sixth Amendment to Trust Indenture dated March 4, 1991; and

WHEREAS, the Trustor, the presently qualified and acting Trustees of the Trust, and the Beneficiary of the Trust, the City of Tulsa, Oklahoma, have determined it to be in the best interests of the Trust Estate, in order to better fulfill its comprehensive purposes, to change the name of the Trust and to further amend and restate the Trust Indenture as provided herein.

NOW, THEREFORE, the undersigned Trustor and presently qualified and acting Trustees of the Trust, by and with the consent and agreement of the Beneficiary, do hereby contract, agree and covenant between themselves and the Beneficiary that they will execute and administer the Trust declared and created in the Trust Indenture as hereinafter amended and restated as Trustees for the Beneficiary and that they do and will hold, receive and administer the Trust Estate solely for the use and benefit of said Beneficiary, for the public purposes and functions and in the manner provided in said Trust Indenture as hereafter amended and restated.

In consideration of the payment by the Trustor to the Trustees of the sum of One Dollar ($1.00), receipt of which is hereby acknowledged, the mutual covenants herein set forth, and other valuable considerations, the said Trustees agree to hold, manage, invest, assign, convey, lease and distribute as herein provided, authorized and directed, such property as Trustor, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Trust or the Trustees hereof.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits and increases thereof unto said Trustees and said Trustees' successors and assigns, but nevertheless in trust, for the use and benefit of the City of Tulsa, Oklahoma, hereby designated and referred to as Beneficiary of this Trust, and upon the following trusts, terms and conditions herein stated.

## ARTICLE I
## CREATION OF TRUST

The undersigned Trustor creates and establishes a trust for the use and benefit of the Beneficiary, for the public purposes hereinafter set forth, under the provisions of the Oklahoma Trust Act, OKLA. STAT. tit. 60, §§ 176—180, as amended, and other applicable statutes and laws of the State of Oklahoma.

## ARTICLE II
## THE NAME

The name of this Trust shall be "Tulsa Authority for Economic Opportunity". Under that name, the Trustees shall conduct all business and execute or authorize the execution of all instruments and otherwise perform the duties and functions required in the execution of this Trust.

## ARTICLE III
## PURPOSES

In order to promote the general public health, safety, welfare and economic stability of the Beneficiary municipality, the purposes of this Trust are:

**(1)** To promote, stimulate, encourage and finance economic growth and development, and promote racial equity and resolve disparities in economic outcomes of the general public, including but not limited to securing commercial and industrial growth and development and otherwise promoting; assisting and encouraging the general economic welfare and prosperity within, without and near the territorial limits of the Beneficiary municipality and the State of Oklahoma.

**(2)** To promote, develop, finance, participate in and secure employment centers, business parks, and industrial parks which will facilitate the creation of living-wage jobs, promote economic mobility and support the long-term growth and resilience of Tulsa's economy.

**(3)** To promote, assist, encourage, participate in and secure the development, redevelopment, preservation and/or renewal of the Beneficiary's public parks and park lands, its blighted urban and suburban areas, its business and central business districts and areas, and such other community development efforts as may be in the interests of promoting, protecting and developing the general public health, safety and welfare within, without or near the territorial limits of the Beneficiary municipality.

**(4)** To promote, develop, finance, participate in and secure adequate housing and related facilities within, without or near the territorial boundaries of the Beneficiary municipality; to participate in housing programs, including but not limited to housing deemed to be affordable or workforce housing, related to or undertaken as a part of development, redevelopment, rehabilitation or conversion activities whether related to single family or multi-family dwellings including, without limitation, the following activities:

**a)** making or participating in making loans or grants to non-profit sponsors of affordable housing;

**b)** making or participating in making loans to persons for use in constructing, acquiring, rehabilitating or improving low-income housing on such terms and conditions as may be prescribed by the Trust;

**c)** participating in all state, local and federal programs relating to housing and housing projects.

**(5)** To promote the general public health, safety and welfare and to protect it against the effects and consequences of air, water and ground pollution and to finance, encourage, assist or conduct activities as may be necessary for or used to, in whole or in part, abate or control water, ground or atmospheric pollution or certain inaction by, in whole or in part, removing, altering, disposing, retarding or storing pollutants, contaminants, wastes or heat, within, without or near the territorial limits of the Beneficiary municipality.

**(6)** To promote, develop and finance sports, entertainment, cultural, convention and trade show facilities within, without, or near the territorial limits of the Beneficiary municipality.

**(7)** To promote, develop, finance, participate in and secure the expansion of medical, surgical and other health care activities and facilities, including hospitals, extended care facilities, clinics, and other similar facilities and such facilities as may be related thereto.

**(8)** To perform on behalf of the Beneficiary the functions, activities and powers authorized by industrial and economic development statutes including, without limitation, the Local Development Act, OKLA. STAT. tit. 62 §§ 850—869.

**(9)** To provide funds for the cost of financing, refinancing, acquiring, constructing, purchasing, equipping, maintaining, leasing, repairing, improving, extending, enlarging, remodeling, holding, storing, operating and administering any or all aforesaid property, improvements, buildings, facilities, and all properties (real, personal or mixed), necessary or desirable for executing and fulfilling the Trust purposes as set forth in this instrument and all other charges, costs, and expenses necessarily incurred in connection therewith and in so doing, to incur indebtedness, either unsecured or secured by all or any part of the Trust Estate and its revenues.

**(10)** To expend all funds coming into the hands of the Trustees as revenue or otherwise for the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the aforesaid costs and expenses, and in payment of any other obligation properly chargeable against the Trust Estate, and to distribute the residue and remainder of such funds to the Beneficiary.

**(11)** To contract for and receive grants or donations made by public, private, corporate, non-profit, or other entities to be used for any of the foregoing purposes.

**(12)** To promote, develop and finance the expansion of any transportation facilities serving the general public commuting on a day-to-day basis by means of any form of transport including, without limitation, vehicular, rail, air or water, within, without or near the territorial limits of the Beneficiary municipality and any public or quasi-public parking facilities.

**(13)** To acquire, construct, own, maintain, operate or cause to be operated one or more parking lots, parking areas, parking buildings or structures of any size or nature

for parking or storing vehicles and to charge fees for the use of such facilities by the public. The Trust's ownership, maintenance and operation of such facilities is hereby declared to be a public use and such facilities to constitute a public benefit.

**(14)** To acquire, construct, own, maintain, operate or cause to be operated any and all physical properties and facilities needed or convenient for the provision of services in connection with parking lots, parking areas, parking buildings or structures which may be useful in stimulating, securing, developing and maintaining commercial industrial, manufacturing, cultural, educational and other economic development activities.

**(15)** To lease, rent, sell or otherwise dispose of any or all of such facilities either in the execution of any of the foregoing trust purposes or in the event that such facilities are no longer needed for such purposes.

## ARTICLE IV
## DURATION OF TRUST

This Trust shall have duration for the term of duration of the Beneficiary and until such time as its purposes shall have been fully fulfilled, or until it shall be terminated as hereinafter provided.

## ARTICLE V
## THE TRUST ESTATE

The Trust Estate shall consist of:

**(1)** The funds and property presently in the hands of the Trustees and dedicated by the Trustor and others to be used for trust purposes.

**(2)** Any and all leasehold rights demised to the Trustees for the purposes of this Trust.

**(3)** Any and all money, property (real, personal or mixed), rights, choses in action, contracts, leases, privileges, immunities, licenses, franchises, benefits, and all other things of value coming into the possession of the Trustees pursuant to the provisions of this Amended and Restated Trust Indenture.

The instruments executed for each project and such issuance of Trustees' Bonds and other indebtedness, shall set out the specific property of the Trust Estate exclusively pledged and mortgaged for the payment of such indebtedness.

## ARTICLE VI
## THE TRUSTEES

**(1)** There shall be a total of thirteen (13) Trustees of this Trust. The Trustees shall all be citizens and residents of the Beneficiary.

**a)** The Mayor of the City of Tulsa (the "Mayor") and each of the five Commissioners of the Tulsa Development Authority, an Oklahoma Urban Renewal Authority (the "TDA Commissioners") shall be ex-officio Trustees with all rights, privileges, duties and responsibilities of the Trustees as herein provided, and shall serve for their respective terms of office (each a "Term of Office") and be succeeded by their successors in office; PROVIDED, HOWEVER, the Mayor may appoint an officer or full-time employee of the City of Tulsa to attend meetings of the Trust as the

representative of the Mayor and such representative shall be vested with all rights, privileges, duties and responsibilities of the Trustees as herein provided, for the period of such appointment.

**b)** There shall be seven (7) additional Trustees appointed by the Mayor subject to the approval of the City Council; the Trustees shall initially serve staggered terms as set out below.

**(1)** Office No. One, Craig Abrahamson, shall serve a term ending June 30, 2022.

**(2)** Office No. Two, Larry Rooney, shall serve a term ending June 30, 2022.

**(3)** Office No. Three, Terrell Siegfried, shall serve a term ending June 30, 2023.

**(4)** Office No. Four, Joan Parkhurst, shall serve a term ending June 30, 2023.

**(5)** Office No. Five, Cassia Carr, shall serve a term ending June 30, 2023.

**(6)** Office No. Six, Elian Hurtado, shall serve a term ending June 30, 2024.

**(7)** Office No. Seven, Katie Plohocky, shall serve a term ending June 30, 2024.

**c)** The Mayor shall endeavor and use every reasonable effort to nominate Trustees in such a manner that the Board of Trustees is representative of the gender, racial, ethnic, and demographic characteristics of the population of the territorial limits of the Beneficiary municipality. Each of the successor Trustees so appointed shall serve a term commencing on the date of City Council approval of the Mayor's appointment and ending three (3) years following the end of the then-current fiscal year, with each term expiring on June 30 of the relevant calendar year. The fiscal year of the Trust shall extend from July 1 through June 30.

**d)** The Mayor shall further endeavor and use every reasonable effort to nominate Trustees who hold knowledge, skills, and expertise which are critical to the execution of the purposes of the Trust.

**e)** Vacancies occurring otherwise than through the expiration of term shall be filled for the unexpired term in the same manner as that provided for the appointment as a successor Trustee.

**(2)** The Mayor or, in the event that the Mayor has appointed a representative to serve as a Trustee in his or her stead, the Mayor's representative shall serve as Chairman of the Trustees and shall preside at all meetings and perform other duties designated by the Trustees. The Trustees shall designate the time and place of all regular meetings. All actions by the Trustees pursuant to the provisions of this Amended and Restated Trust Indenture shall be approved by the affirmative vote of at least a majority of the Trustees constituting a quorum and qualified to act as such under the provisions of this Amended and Restated Trust Indenture. The Trustees shall elect annually, by majority vote at the beginning of each fiscal year one or more of their members to be Vice-Chairman who shall act in the place of the Chairman during the latter's absence or incapacity to act.

**(3)** The Trustees shall elect, at the same time and in the same manner, a Secretary and a Treasurer of the Trustees either of whom may or may not be a Trustee. The Secretary shall keep minutes of all meetings of the Trustees and shall maintain complete and accurate records of all their financial transactions, all such minutes, books and records to be on file in the office of the Trust.

**(4)** All meetings of the Trustees shall be open to the public, and the books, records and minutes of the Trustees shall be considered as public records and available for inspection at all times by any interested party.

**(5)** The Trustees may appoint an executive director or manager for the Trust Estate, and may employ such other clerical, professional, legal and technical assistance as may be deemed necessary in the discretion of the Trustees to properly operate the business of the Trust Estate, and may fix their duties, terms of employment and compensation. All Trustees shall serve without compensation but shall be reimbursed for actual expenses incurred in the performance of their duties hereunder. In the event an executive director or manager for the Trust Estate is appointed by the Trustees, that person shall administer the business of the Trust Estate as directed from time to time by the Chairman and/or the Trustees.

**(6)** The Trustees may appoint an Executive Committee and such other permanent or ad hoc committees as are necessary or desirable for the efficient exercise of the Trustees duties and the proper administration of the Trust Estate.

**(7)** The Trustees are authorized to contract, in connection with the incurring of any funded indebtedness secured by the Trust Estate and/or its revenues, or any part of either or both, that in the event of a default in the fulfillment of any contract obligation undertaken on behalf of the Trust Estate or in payment of any indebtedness incurred on behalf of the Trust Estate, that a Temporary Trustee or Trustees or Receiver shall be appointed to succeed to the rights, powers and duties of the Trustees then in office. Any such contract, if made, shall set out the terms and conditions under which such Temporary Trustee or Trustees or Receiver shall be appointed, and operate the Trust Estate and provide for compensation to be paid, and appointment to be vacated and permanent Trustees to be automatically reinstated upon termination of all defaults by which the appointment of Temporary Trustee, or Trustees or Receiver was authorized.

**(8)** Bonds or other evidences of indebtedness to be issued by the Trustees shall not constitute an indebtedness of the State of Oklahoma, nor of the Beneficiary, nor personal obligations of the Trustees of the Trust, but shall constitute obligations of the Trustees payable solely from the Trust Estate.

**(9)** The Trustees, the State of Oklahoma and the Beneficiary hereof shall not be charged personally with any liability whatsoever by reason of any act or omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trust Estate; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate, shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**(10)** Notwithstanding any other provision of this Indenture which shall appear to provide otherwise, no Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or the Beneficiary, in his or its capacity, nor can the Beneficiary bind or obligate the Trust or any individual Trustee.

## ARTICLE VII
## POWERS AND DUTIES OF THE TRUSTEES

To accomplish the purposes of the Trust, and subject to the provisions and limitations otherwise provided in this Amended and Restated Trust Indenture, the Trustees shall

have, in addition to the usual powers incident to their office and the powers granted to them in other parts of this Amended and Restated Trust Indenture, the following rights, powers, duties, authority, discretion and privileges, all of which may be exercised by them without any order or authority from any court.

**(1)** To finance, refinance, acquire, develop, redevelop, enlarge, extend, improve, maintain, equip, operate, lease, furnish, exchange, sell at public or private sale, hold, alienate, transfer, encumber, loan, use, and/or administer any of the property, buildings or facilities reasonably required for, functionally related or incident to the pursuit, development, execution and/or fulfillment of the Trust purposes as set forth and enumerated in Article III hereof as the Trustees shall determine necessary within, without and/or near the territorial limits of the Beneficiary municipality for the benefit of the said Beneficiary, its general public and the general public of the area and State of Oklahoma.

**(2)** To enter into contracts for the acquisition and construction of property, buildings and facilities authorized to be acquired and constructed pursuant to the terms of this Amended and Restated Trust Indenture.

**(3)** To enter into contracts for the sale of bonds, notes or other evidences of indebtedness or obligations of the Trust for the purpose of providing conduit financing and for the purpose of acquiring, equipping or constructing property, buildings, improvements and facilities authorized to be acquired or constructed pursuant to the terms of this Trust Indenture and for said purposes may:

**a)** Employ a financial advisor, or committee of advisors, to advise and assist the Trustees in the marketing of such bonds, notes or other evidence of indebtedness or obligations, and to present financial plans for the financing of the acquisition or construction of each project and to recommend to, or consult with, the Trustees concerning the terms and provisions of bond indentures and bond issues, and may pay appropriate compensation for such work and services performed in the furtherance of the project.

**b)** Issue bonds, notes and other evidences of indebtedness or obligations of the Trust of varying series and of stated, variable or convertible maturities the annual rate or rates of interest on which (whether or not in effect for fixed or variable annual interest periods, and whether or not from time to time exempt in whole or in part from state and federal income taxation) may be either fixed or variable (and in either case convertible and reconvertible from one to the other); sell such bonds, notes or other evidences of indebtedness or obligations of the Trust in whole or in installments or series and on such terms and conditions and in such manner as the Trustees shall deem to be in the best interest of the Trust Estate; lend the proceeds of such bonds, notes or other evidences of indebtedness or obligations of the Trust to individuals, partnerships, associations, corporations and others, including agencies or authorities of the United States of America, or of the State of Oklahoma, or of any municipality thereof, and also including all municipal or other political subdivisions of the State of Oklahoma, as well as the Beneficiary hereof, pursuant to loan agreements, whether secured or unsecured, on such terms and conditions and in such manner as the Trustees shall deem to be in the best interest of the Trust Estate; and grant, bargain, sell, convey, mortgage, pledge,

assign and give security interests in the revenues, receipts and other payments receivable under the rights and privileges of the Trust pursuant to such loan agreements to secure such bonds, notes or other evidences of indebtedness or obligations of the Trust; and

**c)** Appoint and compensate attorneys, paying agencies and corporate trustees in connection with the issuance of any such bonds, notes, evidences of indebtedness or other obligations of the Trust.

**(4)** To enter into and execute, purchase, lease or otherwise acquire property (real, personal or mixed), contracts, leases, rights, privileges, benefits, choses in action, or other things of value and to pay for the same in cash, with bonds or other evidences of indebtedness or otherwise.

**(5)** To make and change investments, to convert real into personal property, and vice versa, to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem proper, and to resell, at any time and as often as they deem advisable, any or all the property in the Trust, real and personal; to borrow money, or renew loans to the Trust, to refund outstanding bonded indebtedness and to execute therefor notes, bonds or other evidences of indebtedness, and to secure the same by mortgage, lien, pledge or otherwise; to purchase property from any person, firm or corporation, and lease land and other property to and from the Beneficiary and construct, improve, repair, extend, remodel and equip buildings and facilities thereon and to operate or lease or rent the same to individuals, partnerships, associations, corporations and others, including the United States of America or the State of Oklahoma and agencies or authorities of the United States of America, or of the State of Oklahoma, or of any municipality thereof, and also including all municipal or other political subdivisions of the State of Oklahoma as well as the Beneficiary hereof, and to do all things provided for in Article III of this Trust Indenture, and procure funds necessary for such purpose by the sale of bonds or other evidences of indebtedness by a mortgage, lien, pledge or other encumbrance or otherwise of such real and personal property, buildings and facilities owned or otherwise acquired, leased or controlled by Trustees, and by rentals, income, receipts and profits therefrom, or from any other revenue associated with the ownership, operation or control of the property of the Trust; to lease or sublease any property of the Trust or of which the Trustees may become the owners or lessees.

**(6)** To fix, demand and collect charges, rentals and fees for the services, property, buildings and facilities of the Trust; to discontinue furnishing of properties, buildings and facilities to any person, firm or corporation, or public instrumentality, delinquent in the payment of any indebtedness to the Trust; to purchase and sell such supplies, goods and commodities as are incident to the operation of its properties.

**(7) a)** To make and perform contracts of every kind, including management contracts, with any person, firm, corporation, association, trusteeship, municipality, government or sovereignty; and without limit as to amount to draw, make, accept, endorse, assume, guarantee, account, execute and issue promissory notes, drafts, bills of exchange, acceptance, warranties, bonds, debentures, and other negotiable or non-negotiable instruments, obligations and evidences of

unsecured indebtedness, or of indebtedness secured by mortgage, deed of trust or otherwise upon any or all property or income of the Trust, in the same manner and to the same extent as a natural person might or could do. To collect and receive any property, money, rents, or income of any sort and distribute the same or any portion thereof for the furtherance of the authorized Trust purposes set out herein.

**b)** The Trustees shall file with the governing body of the City of Tulsa a certified copy of the annual audit made of the funds, accounts and fiscal affairs of the Trust at the time as is required by OKLA. STAT. tit. 60, §§ 180.1 and 180.2, as amended.

**(8)** To enter into contracts for the sake of administering grants and donations and any associated scope of work associated with the grant or donation.

**(9)** To adopt Bylaws to be binding upon said Trustees as to the manner in which they shall conduct their affairs, jointly perform their duties, and execute the objects and purposes of this Trust. Said Bylaws may provide for the establishment of rules and procedures governing the creation and operation of the permanent and ad hoc committees established by the Trustees, including, without limitation, the delegation and scope of authority given said committees.

**(10)** To do all other acts in their judgment necessary or desirable for the proper and advantageous management, investment, and distribution of the Trust Estate and income therefrom.

The whole title, legal and equitable, to the properties of the Trust is and shall be vested in the Trustees, as such title in the Trustees is necessary for the due execution of this Trust. Said Trustees shall have and exercise exclusive management and control of the properties of the Trust Estate for the use and benefit of the beneficiary.

The Trustees may contract for the furnishing of any services or the performance of any duties that they may deem necessary, or proper, and pay for the same as they see fit.

The Trustees may select depositories for the funds and securities of this Trust. Temporary Trustee or Trustees or Receiver appointed pursuant to paragraph 6 of Article VI hereof may employ special counsel to represent them and such special counsel's compensation shall be paid from revenues of the Trust Estate.

The Trustees may compromise any debts or claims of or against the Trust Estate, and may adjust any dispute in relation to such debts or claims by arbitration or otherwise and may pay any debts or claims against the Trust Estate upon any evidence deemed by the Trustees to be sufficient. The Trustees may bring any suit or action, which in their judgment is necessary or proper to protect interest of the Trust Estate, or to enforce any claim, demand or contract for the Trust; and they shall defend, in their discretion, any suit against the Trust, or the Trustees or employees, agents or servants thereof. They may compromise and settle any suit or action, and discharge the same out of assets of the Trust Estate, together with court costs and attorneys' fees. All such expenditures shall be treated as expense of executing this Trust.

No purchaser at any sale or lessee under a lease made by the Trustee shall be bound to inquiry into the expediency, propriety, validity or necessity of such sale or lease or to see to or be liable for the application of the purchase or rental moneys arising therefrom.

**(11)** The provisions of this Trust shall not be applicable to nor used by the Trustees for the purpose of purchasing, condemning, or otherwise acquiring a utility plant or distribution system owned or operated by a regulated public utility or for the purpose of constructing and/or operating a utility plant which would be in competition with a regulated public utility.

## ARTICLE VIII
## BENEFICIARY OF TRUST

**(1)** The beneficiary of this Trust shall be the Beneficiary, under and pursuant to OKLA. STAT. tit. 60, §§ 176—180, inclusive, as amended and supplemented, and other statutes of the State of Oklahoma, presently in force and effect. Trustor now declares that this Trust Indenture may be altered, amended, revised and/or modified with written consent of Trustor, Trustees and Beneficiary, which written consents shall be endorsed on any instrument of alteration, amendment, revision and/or modification; Provided, that no such alteration, amendment, revision or modification shall in any way impair the rights of the holder or holders of any bonds or other evidences of indebtedness of the Trust or party to whom the Trust is indebted without the written consent of any and all such holders and/or parties evidenced in the manner aforesaid.

**(2)** The Beneficiary shall have no legal title, claim or right to the Trust Estate, its income, or to any part thereof or require any partition or distribution thereof. Neither shall the Beneficiary have any authority, power or right, whatsoever, to do or transact any business for, or on behalf of, or binding upon the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees pertaining to the Trust Estate, or any part thereof. The Beneficiary shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder, and at the termination of the Trust, as provided herein, and then only, the Beneficiary shall receive the residue of the Trust Estate.

## ARTICLE IX
## TERMINATION OF TRUST

This Trust shall terminate —

**(1)** When the purposes set out in Article III of this instrument shall have been fully executed; or

**(2)** In the manner provided by OKLA. STAT. tit. 60, § 180; provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of this Trust, and after payment of all debts, expenses and obligations out of the moneys and properties of the Trust Estate to the extent thereof, shall distribute the residue of the money and properties of the Trust Estate to the beneficiary hereunder. Upon final distribution, the powers, duties and authority of the Trustee hereunder shall cease.

## ARTICLE X
## ACCEPTANCE

The Trustees accept the Trust herein created and provided for, and agree to carry out the provisions of this Trust Indenture on their part to be performed.

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands on the day and year indicated.

TULSA CHAMBER OF COMMERCE

By: /s/_____
President

"TRUSTOR"

ATTEST:

/s/_____
Secretary

/s/ A. CRAIG ABRAHAMSON

/s/ LARRY ROONEY

/s/ WILLIAM TISDALE, SR.

/s/ JOAN PARKHURST

/s/ CASSIA CARR

/s/ ELIAN HURTADO

/s/ KATIE PLOHOCKY

"TRUSTEES"

## CHAPTER 11. THE REGIONAL METROPOLITAN UTILITY AUTHORITY

Section 1100. Beneficial interest accepted in The Regional Metropolitan Utility Authority.
Section 1101. Mayor and Auditor authorized to execute instruments.
Appendix I Declaration of Trust of The Regional Metropolitan Utility Authority (Sections 1100 and 1101) (Ord. No. 12644).

### Section 1100. Beneficial interest accepted in The Regional Metropolitan Utility Authority.

The beneficial interest in and to the express trust known as The Regional Metropolitan Utility Authority dated the 10th day of October, 1972, be and the same is hereby accepted by the governing body of the City of Tulsa acting by and through the Board of Commissioners thereof for and on behalf of said City.

*(Ord. No. 12644)*

### Section 1101. Mayor and Auditor authorized to execute instruments.

The Mayor of the City of Tulsa and all other officers of said City are hereby authorized and directed to sign, execute and deliver any, every and all instruments of writing necessary or convenient to effect and accomplish the trust purposes, and are hereby authorized to receive and accept for the use and benefit of the City all of said benefits, monies or emoluments that may be received or flow from said trust, all as provided in the Declaration of Trust dated the 10th day of October, 1972.

*(Ord. No. 12644)*

## APPENDIX I DECLARATION OF TRUST OF REGIONAL METROPOLITAN UTILITY AUTHORITY (SECTIONS 1100 AND 1101)

*(Ord. No. 12644)*

KNOW ALL MEN BY THESE PRESENTS:

### I.
### CREATION OF TRUST

The undersigned, as Trustors, hereby irrevocably do create, establish and constitute, under the laws of the State of Oklahoma (generally but no (sic) exclusively pursuant to Title 60, Sections 176 to 180, inclusive, Oklahoma Statutes, 1971, as amended and to the Oklahoma Trust Act) a Trust for the public purposes and functions hereinafter set forth.

### II.
### NAME

The name of this Trust shall be, and the Trustees in their representative fiduciary capacity shall be designated as "THE REGIONAL METROPOLITAN UTILITY AUTHORITY" (hereinafter called "Authority").

Under that name they shall, so far as practicable, conduct all business, and execute all instruments in writing, and otherwise perform their duties and functions in the execution of this Trust.

### III.
### PURPOSES

The purposes of the Authority are:

For the Beneficiary as hereinafter described—

**(a)** To provide, create, acquire, extend, enlarge, develop, improve, operate, maintain, regulate, conserve and protect water supply facilities, for the safe-guarding of public health, the protection of persons and property, and the implementation and conservation of public welfare; and the foregoing shall include (without limitation by specification) incidental and collateral public uses of any and all kinds whatsoever;

**(b)** To provide, create, acquire, extend, enlarge, develop, improve, operate, maintain, regulate, conserve and protect waste water facilities including but not limited to solid waste, liquid waste, and industrial, commercial, and domestic waste, for the safeguarding of public health, the protection of persons and property, and the implementation and conservation of public welfare; and the foregoing shall include (without limitation by specification) incidental and collateral public uses of any and all kinds whatsoever;

**(c)** To provide, create, acquire, extend, enlarge, develop, improve, operate, maintain, regulate, conserve and protect pollution control facilities as the same may be defined or recognized and as they affect the public health and welfare, for the safeguarding of public health, the protection of persons and property, and the implementation and conservation of public welfare; and the foregoing shall include (without limitation by specification) incidental and collateral public uses of any and all kinds whatsoever;

**(d)** To institute, furnish, provide and supply to persons (natural, corporate, municipal or governmental, or any one or more thereof) services and the utilization of physical facilities of any and all kinds compatable (sic) with the nature of the Trust Estate; to fix, demand, collect and expand rents, rates, fees and charges in consideration of any of the foregoing; and to establish and enforce rules, regulations and practices in relation to such service, utilization of physical facilities and the Trust Estate, which rules, regulations and practices may provide for the discontinuance of or debarring from such services or physical facility utilization by reason of violation of any requirement established by the Trustees or for non-payment of any sum payable to the Authority for any cause whatsoever;

**(e)** To acquire by lease, purchase, production, reduction to possession, or otherwise, and to construct, equip, maintain, hold, store, operate and administer any property (real, personal and/or mixed), rights, privileges, immunities, franchises, benefits and any other things of value, designed, adaptable to or needful for utilization in instituting, extending, enlarging, furnishing, improving, providing, or supplying any of the aforementioned services and physical facilities, or any of them; to comply with the terms and conditions of any leases or other contracts made in connection with the acquiring, equipping, maintaining, regulating and/or disposing of any of the Trust Estate; and to relinquish, dispose of, rent or otherwise alienate, or otherwise make any provision for, or take any action relating to any of the Trust Estate, including (without limitation by specification) the marketing or otherwise disposing of any of the Trust Estate which shall be deemed, by the Trustees, to be not required or in excess of the needs for executing the purposes set forth in paragraphs (a), (b), and (c) of this Section.

**(f)** To provide funds for the costs of financing the creation, acquisition, institution, development, operation, maintenance, regulation, administration, conservation and protection of the Trust Estate and the aforesaid services and facilities, or any of them; and in so doing (without limitation by specification) to incur indebtedness, either unsecured or secured by all or part of the Trust Estate and/or all or part of the revenues of the Authority.

**(g)** To expend any funds coming into the hands of the Trustees as revenues or otherwise, in the enlargement, maintenance and operation of the Trust Estate and in payment of the costs and expenses of executing the purposes of the Authority, including (without limitation by specification) the payment of all indebtedness and obligations incurred for trust purposes or properly chargeable against the Trust Estate; and to distribute any residue or remainder of said funds or any other of the Trust Estate to the components of the Beneficiary as set forth in Section VIII of this instrument.

**(h)** Whenever the same shall be or become material, the purposes set forth in paragraphs (a), (b), and (c) of this Section shall be deemed the primary objectives of the Authority, and the provisions of the paragraphs thereafter shall be deemed in implementation of and collateral to said primary objectives.

**(i)** The purposes above set forth shall be accomplished for the use and benefit of the primary beneficiaries as hereinafter designated and for any component beneficiary as may hereinafter become a part of this Trust, within and without the municipal

corporate limits of said beneficiaries or the county limits of a beneficiary and in such area or areas as a beneficiary might in its own stead perform such purposes as a proper function of their particular governmental unit.

## IV.
## DURATION

This Authority shall have duration for the longest term of duration of any of the Beneficiaries as hereinafter described, and until such time as its purposes shall have been fully executed and fulfilled, or until it shall be terminated as hereinafter provided.

## V.
## TRUST ESTATE

The Trust Estate shall consist of:

**(a)** The funds presently in the hand of the Trustees, donated for the trust purposes by the Trustors, and

**(b)** All money, property (real, personal and/or mixed) rights, choses in action, contracts, leases, privileges, franchises, benefits and all other things of value (whether or not above described) coming into the hands, or under the control of the Trustees pursuant to the provisions of this instrument or by virtue of their trusteeship hereunder.

## VI.
## THE TRUSTEES

**(a)** The Trustees hereunder, and their successors, do hereby contract, agree and covenant between themselves, with and to the State of Oklahoma, and with and to the Beneficiaries hereinafter described, as by law now in force and effect, that they will execute the Trust herein declared, created and constituted, as Trustees for the Beneficiaries as hereinafter specified, and that they do and will receive, hold and administer the Trust Estate hereinabove described in Trust, solely for the use and benefit of the said Beneficiaries in the manner provided in this instrument, or in the absence of applicable provisions herein then in the manner provided by now existing law.

**(b)** The Trustees shall be a minimum of seven (7) in number constituted as follows:

**1.** Commencing with the creation of the Authority and for twelve (12) calendar months from the date of said creation, the undersigned Trustors and Trustees shall be and constitute the Trustees of the Authority. In the event of a vacancy, the remaining Trustees shall fill said vacancy.

**2.** From and after twelve (12) calendar months from the date of creation of the Authority, the Trustees of the Authority shall be ex officio the same persons that currently are the appointive members of the Utility Board of The City of Tulsa, Oklahoma, (which constitutes five (5) in number) and one (1) Trustee elected by said five (5) Trustees and two (2) Trustees who shall be appointed by the City Council of the City of Broken Arrow, Oklahoma. In the event that the greater portion of the powers and duties of said Utility Board, relevant to Authority purposes, shall be transferred to any other governmental officer, board, agency or

instrumentality, the personal incumbency thereof ex officio shall succeed to Trusteeship hereunder, without distinction as to office held, when a majority of those so entitled have qualified as such in the manner provided in paragraph (f) of this Section, but in no event shall the number of Trustees ex-officio, a successor or successors to the Utility Board of the City of Tulsa, Oklahoma, be less than five (5) in number. Each person of the classes of persons described in the foregoing sentences of this sub-paragraph shall be entitled to qualify as, and to become a Trustee of the Authority in the manner provided in paragraph (f) of this Section.

**3.** Notwithstanding anything heretofore to the contrary, however, the Trustees described in sub-paragraph numbered 1 shall continue as sole Trustees of the Authority (unless temporarily replaced pursuant to paragraph (3) of this Section) until a majority of the persons of any class described in sub-paragraph numbered 2 of this Section shall have qualified in the manner provided in paragraph (f) of this Section.

**4.** If at any time the number of persons eligible as a class to ex officio Trusteeship shall be reduced by governmental action, any person, who by such action, shall cease to be a member of said class shall forthwith cease to be a Trustee. However, where this section is applicable to ex officio Utility Board of the City of Tulsa, Oklahoma, the Board of City Commissioners of Tulsa, Oklahoma, shall designate such Trustees as shall maintain the number of Trustees at five (5).

**5.** In the event that a component Beneficiary becomes a part of this Trust as hereinafter provided, then and in that event such Beneficiary shall be entitled to one Trustee who shall be appointed by the governing body of said component Beneficiary. However, in no instance shall the Trustees exceed thirteen (13) in number. Any component Beneficiary entering the Trust after thirteen (13) Trustees shall have qualified, shall not be entitled to a Trustee per se.

**(c)** Except as hereinbefore provided, each qualified Trustee shall continue as such until his successor shall have qualified as provided in Paragraph (f) of this Section.

**(d)** The determination of the fact of a vacancy in a Trusteeship and of any right to qualify to Trusteeship shall be vested exclusively in the remaining Trustees, and their determination shall be final.

**(e)** The Trustees may contract, in connection with the incurring of any funded debt secured by the Trust Estate and/or its revenues, or any part of either of both, that Temporary Trustees may be appointed to act in place and instead of permanent Trustees, in respect of any part or all of the Trust Estate, in such number that such Temporary Trustees may constitute a majority of the Board of Trustees with relation to such property and operations of the Authority specified in said contract, in the event of a default as defined in the contract incurring said funded debt. Any such contract, if made, shall provide for the method of appointment of each such Temporary Trustee and the method of designating each permanent Trustee so to be temporarily supplanted. Each such Temporary Trustee who shall be appointed under the authority herein granted shall supplant, in all respects, the permanent Trustee so designated to the extent provided in said contract; and during the term of such Temporary Trustee, the permanent Trustee so supplanted shall be wholly without authority, duty or liability, under the terms of this instrument, insofar as the same relates to the property and operations specified in said contract. No such contract shall be authorized hereunder,

however, which fails to make provision for one or more permanent Trustees to continue with full power and authority during the term of all Temporary Trustees. All Temporary Trustees forthwith shall cease to be such upon the termination of all defaults by which their appointment would have been authorized under such contract, and the permanent Trustees so temporarily supplanted automatically shall be reinstated to full power and authority.

**(f)** All Trustees, and all Temporary Trustees appointed hereunder, shall qualify by a written acceptance of all of the terms of this instrument, duly acknowledged and filed in the same manner and in the same places that this instrument is acknowledged and filed. All Trustees, permanent and Temporary, before assuming the powers and duties as such, also shall subscribe and file such oaths as shall be required by law of public officers of the State of Oklahoma.

**(g)** Upon each change of personnel of the Trustees hereunder, the Chairman of the Board of Trustees shall cause to be filed in the office of the County Clerk of Each county in which this Declaration of Trust is filed, a certificate of the entire personnel of the Board of Trustees of the Trust.

**(h)** The acceptance of the office of Trustee of this Authority shall not constitute the Trustees hereunder, Temporary or permanent or both, to be in partnership or association. Each shall be an individual and wholly independent Trustee only.

**(i)** Notwithstanding any other provision of this instrument which shall appear to provide otherwise, no Trustee or Trustees shall have any power or authority to bind or obligate any other Trustee, or the Beneficiaries or any component Beneficiary entity, in his or its individual capacity.

All persons, firms, associations, trusteeships, corporations, municipalities, governments and sovereignties contracting with any Trustee or Trustees, Temporary or permanent or both, shall take notice that all expense and obligations, and all debts, damage, judgments, decrees or liabilities incurred by any Trustee or Trustees, Temporary or permanent or both, and any of the foregoing incurred by any agent, servant or employee of the aforesaid Trustees, in the execution of the purposes of this Authority, whether arising from contract or tort, shall be solely chargeable to and payable out of the Trust Estate. In no event shall any Trustee, Temporary or permanent, in any manner be individually liable for any damage or injury to person or property, or for breach of contract or obligation, caused by, arising from, incident to, or growing out of the execution of this Authority, nor shall they, or any of them, be liable for the acts or omissions of each other, or of any agent, servant or employee of the aforesaid Trustees, or of another such Trustee; provided however, that the foregoing shall not apply to any breach of trust by any said Trustee.

## VII.
## POWERS AND DUTIES OF TRUSTEES

The Trustees, in the manner hereinafter set forth, shall do, or cause to be done, in lawful manner, all things which are incidental, necessary, proper or convenient to carry fully into effect the purposes enumerated in Section III of this instrument, the general authority hereby given being intended to make fully effective the power of the Trustees

under this instrument; and said Trustees are specifically authorized (but their aforesaid general powers not limited thereby, notwithstanding any such specification), in effecting said purposes:

**(a)** To enter in and conduct and execute, apply for, purchase or otherwise acquire franchises, property (real or personal and/or mixed), contracts, leases, rights, privileges, benefits, choses in action, or other things of value, and to pay for the same in cash, with bonds or evidences of indebtedness or otherwise;

**(b)** To acquire, own, hold, manage, and in any manner to convey, assign, dispose of, liquidate, compromise, or realize upon any contract, lease, right privilege, benefit, chose in action, franchise, property (real or personal), or other things of value, and to exercise all of the powers necessary or convenient in respect of same;

**(c)** To guarantee, acquire, purchase, hold, sell, assign, transfer, encumber, dispose of, and deal in the stocks, bonds, debentures, shares or evidences of interest or indebtedness of any corporation, association, municipality, government, sovereignty, trusteeship, firm, or individual, to enter into and perform any lawful contract in relation thereto and to exercise all of the rights, powers and privileges in relation thereto to the same extent as a natural person might or could do;

**(d)** To enter into, make and perform contracts of every lawful kind, including, but no (sic) restricted to, management contracts, with any person, firm, association, corporation, trusteeship, municipality, government or sovereignty; and without limit as to amount, to draw, make, accept, indorse, assume, guarantee, discount, execute and issue promissory notes, drafts, bills of exchange, acceptance, warrants, bond, debentures, and other negotiable and transferable, or non-negotiable or nontransferable, instruments, obligations and evidences of secured or unsecured indebtedness, and if secured by mortgage, deeds of trust, or otherwise, upon any and all property of the Trust, and to pledge any or all income of the Trust in the same manner and to the same extent as a natural person might or could do;

**(e)** To collect and receive any property, money, rents, or income of any sort, and to distribute the same, or any portion thereof, for the furtherance of the purposes enumerated in Section III of this instrument.

**(f)** The Trustees shall hold the legal title to all property at any time belonging to the Trust Estate in the name of the Trustees, and shall have and exercise exclusive management and control of the same, for the use and benefit of the Beneficiary, in the execution of the purposes of this Authority, and the right of said Trustees to manage, control and administer the said Authority, its properties, assets and business, shall be absolute and unconditional, free from the direction, control or management of the Beneficiaries or any component Beneficiary entity, or any person or persons whatsoever other than a court of competent jurisdiction so to do.

**(g)** The Trustees may employ such agents, servants, and employees as they deem necessary, proper or convenient, and shall prescribe their duties and fix their compensation.

**(h)** The Trustees may contract for the furnishing of any services or performance of any duties that they deem necessary, proper or convenient and pay for the same as they see fit to provide in such contract.

**(i)** The Trustees, by Resolution, may divide the duties of the Trustees hereunder, delegating all or any part of such duties to one or another of the Trustees as much as possible; but where specific duties are not delegated, a majority of the Trustees must act for the Authority.

**(j)** The Trustees may be compensated in the manner now provided by the Oklahoma Trust Act for services actually rendered and responsibility assumed; but no ex officio Trustee shall be compensated in any manner from the Trust Estate.

**(k)** The Trustees shall, in the name of the Authority as set forth in Section II hereof, or in their names as Trustees, bring any suit or action which, in their judgment, shall be necessary, proper, and convenient to protect the interests of the Authority, or to enforce any claim, demand or contract for the Authority or to enforce any claim, demand or contract for the benefit thereof; and they likewise shall defend, in their discretion, any suit against the Authority, or the Trustees or employees, agents or servants thereof. And the Trustees are expressly authorized, in their discretion, to compromise and settle prior to judgment any suit, action, claim or proceeding in which the Authority is interested, and to discharge the same out of the Trust Estate; and they specifically are authorized to pay or transfer out of the Trust Estate all sums of money or property necessary to discharge any judgment or decree rendered against them, or the Authority, together with all court or other costs, including counsel and attorney's fees, and also to pay out of the Trust Estate such sums of money, or transfer appropriate property hereof, for the purpose of settling, compromising or adjusting any claim or controversy, together with all costs and expenses connected therewith, and all such expenditures and transfers shall be treated as expenses of executing their trust.

**(l)** No bond shall be required of the Trustees, or any of them, unless they, by appropriate Resolution, so provide.

**(m)** All proceedings of the Trustees and all Resolutions adopted by them shall be kept in a record book and shall be subject to inspection, during customary business hours as public records of the State of Oklahoma.

**(n)** At their first meeting, the Trustees shall designate the time and place for regular meetings, which time and place shall not thereafter be changed unless at a meeting where all Trustees are present: Provided, that when all qualified Trustees are ex officio, a regular meeting may be held immediately following any meeting of the official body of which the said ex officio Trustees are the incumbents. No notice shall be required for the holding of regular meetings of the Trustees. Special meetings of the Trustees may be held upon such call as shall be fixed by Resolution adopted at a meeting where all Trustees are present.

**(o)** The Trustees, by written instrument filed for record in all places in which this instrument is filed, shall designate the place of the principal office of the Authority; and any change of place shall be recorded in like manner. All official records of the Authority shall be kept at the principal office, and shall be subject to inspection, during customary business hours, as public records of the State of Oklahoma.

## VIII.
## BENEFICIARIES

**(a)** The term "Beneficiaries" as used in this instrument collectively and severally shall denote the corporate government entities for which the Authority shall be furnishing

and providing, or proposes to furnish and provide the services and facilities described in Section III of this instrument, or any part thereof, and which shall have accepted beneficial interest under this instrument as provided by law, as follows:

**1.** The initial Beneficiaries hereunder shall be the incorporated cites of Tulsa, Oklahoma, and Broken Arrow, Oklahoma, and Jenks, Oklahoma, and the Town of Bixby, Oklahoma.

**2.** Additional municipal corporations, counties, or other governmental entities may become component Beneficiaries of the Trust if the Trustees shall determine that the services and facilities furnished and provided by Authority can be extended to such entities in a manner consistent with the purposes of the Authority as set forth in Section III of this instrument; but first, each such entity shall accept beneficial interest hereunder in the manner provided by law. In each such event, the Trustees shall execute an instrument designating such entity as a component Beneficiary hereunder, and fixing its correlative privilege to distributions; and the requisite acceptance thereof shall be endorsed thereon, and the said instrument shall be filed for record in each place in which this instrument is, or thereafter shall be recorded. In any such event, each said entity shall have the same status as a primary Beneficiary as though designated by name therein.

**3.** In the event that any corporate governmental entity shall succeed any Beneficiary in governmental authority, in respect to the general scope of the Authority purposes whereby any component entity became such, then that successor shall succeed the former to beneficial interest hereunder ipso facto, and the Trustees shall cause to be filed for record, in each place in which this instrument is or thereafter shall be recorded, an instrument evidencing such succession.

**(b)** The Beneficiaries or any component entity thereof shall have no legal title, claim or right to the Trust Estate, or any part thereof, other than as provided by presently existing law relating to the title and interest of a beneficiary in trust property; neither shall the Beneficiary or any component entity thereof, as such, have any authority, power or right whatsoever to do or transact any business whatsoever for, or on behalf of, or binding upon the Trustees or upon the Trust Estate; neither shall the Beneficiary or any component entity thereof, as such, have any right to control or direct the actions of the Trustees in respect of the Trust Estate, or any part thereof; nor shall the Beneficiary or any component part thereof have any right to demand or require a partition or distribution of the Trust Estate, or any thereof. The Beneficiary shall be entitled solely to the benefits of this trust, as administered by the Trustees hereunder, and at the termination of this trust, as provided hereinafter, the Beneficiary shall receive the residue of the Trust Estate in such proportions as is hereafter specifically provided, and not otherwise.

**(c)** Distributions of money and/or property, both interim and final, shall be made as follows, and not otherwise:

**1.** The pro-rata interest of each of the principal Beneficiaries shall be determined by the Trustees based upon their contribution to the Trust or contributions made on either or both Beneficiaries behalf by other parties and the same shall be recorded in the records of the Trust and any changes in the proportional right to distribution shall be recorded as they occur. Until there shall be additional Beneficiaries as

provided above all distribution shall be made among the primary Beneficiaries in accordance with their designated pro-rata interest. Distributions to the Beneficiaries shall be for governmental purposes only.

**2.** In the event that additional Beneficiaries are added as above provided, the pro-rata interest of each Beneficiary to distribution shall be set forth in the instrument wherein they become Beneficiaries. Any change in the pro-rata distribution shall be recorded in the records of the Trust as such changes occur based upon contribution to the Trust by the Beneficiaries or other parties on behalf of the Beneficiaries.

**3.** Where the distribution shall involve property, either real, personal and/or mixed, any joint use facility shall be distributed to the joint users and any facility not a joint use facility shall be distributed to the Beneficiary within whose political boundaries it is located.

## IX.
## TERMINATION

**(a)** This Trust shall be irrevocable by the Trustors or the Trustees and shall terminate:

**1.** When the purposes set forth in Section III of this instrument shall have been fully executed and fulfilled; or

**2.** In the event of the happening of any event or circumstance that would prevent said purposes from being executed and fulfilled AND all of the Trustees and the governing body of all component entities of the Beneficiaries hereunder, with the approval of the Governor of the State of Oklahoma, shall agree that such event or circumstance has taken place; provided, however, that all indebtedness of the Authority shall have been paid; or

**3.** In the manner provided by Title 60, Section 180, Oklahoma Statutes, 1971; provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees unless all owners of such indebtedness and obligations, or one authorized by them so to do, shall have consented in writing to such termination.

**(b)** A partial termination may occur as to any Beneficiary when such Beneficiary shall be dissolved as a governmental entity in which instance its pro-rata share in the Trust, if not assumed by a successor entity, shall be retained by the Trust unless the distribution can be made to those legally determined to be entitled to distribution without jeopardizing the purposes of the Trust and the general health and welfare of the public as represented by the remaining Beneficiaries.

**(c)** Upon any complete termination of this Trust, The Trustees shall proceed to wind up all of the affairs of the Authority affected by such termination, and after payment of all debts and obligations, affected by such termination, out of the Trust Estate, to the extent thereof, shall distribute the residue of the Trust Estate proximately involved in such termination to the component entities of the Beneficiary hereunder in the manner provided in Section VIII, paragraph (c), of this instrument. Upon any distribution as aforesaid, the powers, duties and authority of the Trustees hereunder shall cease as to all services, facilities and properties involved in such distribution.

## X.
## PARTIAL INEFFECTIVENESS

The invalidity or ineffectiveness for any reason of any one or more words, phrases, clauses, paragraphs, or sections of this instrument shall not affect the remaining portions thereof so long as such remaining portions shall constitute a rational instrument. Any such invalid or ineffective portion was inserted conditionally upon it being valid or effective only; and this instrument shall be construed as if such invalid or ineffective portion had not been inserted herein.

## XI.
## COVENANT

The provisions hereof shall be binding upon the undersigned, their heirs, executors, administrators and assigns.

IN WITNESS WHEREOF, we have hereunto set our hands, executing this Declaration of Trust in multiple duplicates all of which constitute one and the same instrument, on this _____ day of _____, 1972.

/s/ Floyd M. Bartlett
Floyd M. Bartlett

/s/ L.W. Grant, Jr.
L.W. Grant, Jr.

/s/ Glen E. Michael
Glen E. Michael

/s/ Phil S. Stover, Jr.
Phil S. Stover, Jr.

/s/ John P. Thomas, Jr.
John P. Thomas, Jr.

/s/ Robert S. Newhouse
Robert S. Newhouse

/s/ James R. Newcomb
James R. Newcomb

/s/ Bill Secrest
Bill Secrest

/s/ Houston Johnson
Houston Johnson

/s/ Noble Campbell
Noble Campbell

[ACKNOWLEDGMENT]

## ACCEPTANCE OF BENEFICIAL INTEREST

KNOW ALL MEN BY THESE PRESENTS:

THAT THE CITY OF TULSA, OKLAHOMA, a municipal corporation, acting by and through the UTILITY BOARD OF THE CITY OF TULSA, and by and through the general governing body of said municipality, hereby accepts the beneficial interest in the Trust created by the within and foregoing Declaration of Trust, for and in behalf of the said municipality, in all respects in accordance with the terms of said Declaration of Trust.

IN WITNESS WHEREOF, the Chairman of the Utility Board of The City of Tulsa, pursuant to the authority and direction of said Board on this date, and the Mayor of the

City of Tulsa, pursuant to the authority and direction of Ordinance No. 12644 of said City, effective this date, hereunto have set our hands and caused to be affixed the requisite official seal, this 7th day of November, 1972.

/s/ Phil S. Stover, Jr.
Vice Chairman, Utility Board
of
the City of Tulsa, Oklahoma

ATTEST:

/s/ John P. Thomas, Jr.
Secretary

/s/ Robert J. LaFortune
Mayor of the City of
Tulsa, Oklahoma

ATTEST:

/s/ F.F. Campbell
City Auditor

## CHAPTER 12. TULSA PERFORMING ARTS CENTER TRUST

Section 1200. Beneficial interest of the Tulsa Municipal Theater Authority Trust accepted.
Section 1201. Trust recognized and identified.
Section 1202. Mayor and Auditor authorized to endorse acceptance on Trust Indenture and record with County Clerk.
Section 1203. Trustor and Board of Trustees approve Second Amendment.
Section 1204. Mayor and Council approve Second Amendment.
Section 1205. Beneficial interest accepted.
Section 1206. Mayor and City Clerk authorized to endorse approval of City of Tulsa on Second Amendment.
Section 1207. City Clerk authorized to record Second Amendment with County Clerk.
Appendix I Trust Indenture Tulsa Municipal Theater Authority (Sections 1200, 1201 and 1202) ("Exhibit A" in Ord. No. 12849).
Appendix II Amendment Number One to Trust Indenture Tulsa Municipal Theater Authority.
Appendix III Second Amendment to the Trust Indenture of the Tulsa Performing Arts Center Trust (Sections 1203, 1204, 1205, 1206 and 1207) ("Exhibit A" in Ord. No. 17474).

### Section 1200. Beneficial interest of the Tulsa Municipal Theater Authority Trust accepted.

The Tulsa Municipal Theater Authority, created by Trust Indenture dated June 7, 1973, an executed copy of which Trust Indenture is hereto attached, marked "Exhibit A" and made a part hereof, wherein Robert J. LaFortune, as Mayor of the City of Tulsa; Sid Patterson, as Commissioner of Streets and Public Property of the City of Tulsa; and William H. Morris, Jr., as Commissioner of Finance and Revenue of the City of Tulsa, are designated Trustees, and the City of Tulsa, Oklahoma, is designated as the sole beneficiary of said Tulsa Municipal Theater Authority, is hereby approved and the City of Tulsa hereby accepts the beneficial interest therein, and all of the terms and provisions of said Trust Indenture as authorized by the applicable statutes of the state of Oklahoma, and the City of Tulsa hereby agrees to be and become the sole beneficiary of said trust.

### Section 1201. Trust recognized and identified.

The City of Tulsa hereby recognizes said Tulsa Municipal Theater Authority and the trustees named in said Trust Indenture, and in all negotiations and instruments where the term "Tulsa Municipal Theater Authority" is used it shall be deemed and construed to mean the trust above mentioned and described.

### Section 1202. Mayor and Auditor authorized to endorse acceptance on Trust Indenture and record with County Clerk.

The Mayor and the City Auditor of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture the approval of the City of Tulsa of said Trust Indenture creating the Tulsa Municipal Theater Authority, and the City's acceptance of the beneficial interest therein, and to cause said Trust Indenture to be recorded in the office of the County Clerk of Tulsa County, Oklahoma.

*(Ord. No. 12849)*

**Section 1203. Trustor and Board of Trustees approve Second Amendment.**

The Trustor, John H. Williams, with the unanimous consent of the currently comprised thirteen (13) members of the Board of Trustees of the Tulsa Performing Arts Center Trust, formerly the Tulsa Municipal Theatre Authority pursuant to a Trust Indenture dated June 7, 1973, but as revised, expanded and renamed by Amendment Number One to Trust Indenture dated April 5, 1977, hereby finds and declares it necessary and in furtherance of the public purposes of the Tulsa Performing Arts Center Trust, to amend said Trust Indenture for a second time as set forth in the Second Amendment to Trust Indenture to the Tulsa Performing Arts Center Trust hereto attached as "Exhibit A."

*(Ord. No. 17474)*

**Section 1204. Mayor and Council approve Second Amendment.**

The Mayor and the City Council of the City of Tulsa hereby find and determine it is in the best interest of the City of Tulsa, Oklahoma and in the public interest to re-accept and accept the sole and exclusive beneficial interest of the original Trust Indenture of the Tulsa Municipal Theatre Authority dated June 7, 1973, as amended and renamed the Tulsa Performing Arts Center Trust by Amendment Number One to the Trust Indenture of the Tulsa Municipal Theatre Authority dated April 5, 1977, and as now amended by the attached Second Amendment to the Trust Indenture of the Tulsa Performing Arts Center Trust.

*(Ord. No. 17474)*

**Section 1205. Beneficial interest accepted.**

The Trust Indenture for the Tulsa Performing Arts Center Trust, formerly the Tulsa Municipal Theatre Authority, dated June 7, 1973, as amended and renamed by Amendment Number One to the Trust Indenture of the Tulsa Municipal Theatre Authority dated April 5, 1977, is hereby further amended pursuant to the terms of the Second Amendment to the Trust Indenture of the Tulsa Performing Arts Center Trust dated between the dates of January 4, 1991, and February 8, 1991, and the sole and exclusive beneficial interests under that Second Amendment to said Trust Indenture as well as the sole and exclusive beneficial interests of the aforesaid original Trust Indenture dated June 7, 1973, and Amendment Number One to said Trust Indenture dated April 5, 1977, are hereby accepted and reaccepted by the City Council of the City of Tulsa, Oklahoma.

*(Ord. No. 17474)*

**Section 1206. Mayor and City Clerk authorized to endorse approval of City of Tulsa on Second Amendment.**

The Mayor and the City Clerk of the City of Tulsa, Oklahoma, are hereby authorized, empowered, instructed and directed to endorse upon the face of the original of the said Second Amendment to the Trust Indenture of the Tulsa Performing Arts Center Trust, the approval of the City of Tulsa, Oklahoma of the said Second Amendment and the reacceptance and acceptance of the sole and exclusive beneficial interests of the City of Tulsa, Oklahoma, in the aforesaid Trust Indenture, Amendment Number One to said Trust Indenture and the Second Amendment to said Trust Indenture.

*(Ord. No. 17474)*

## Section 1207. City Clerk authorized to record Second Amendment with County Clerk.

The City Clerk of the City of Tulsa, Oklahoma, is hereby further authorized, empowered, instructed and directed to file and record or cause to be filed and recorded the original copy of the Second Amendment of the Trust Indenture of the Tulsa Performing Arts Center Trust in the office of the County Clerk of the County of Tulsa, Oklahoma.

*(Ord. No. 17474)*

## APPENDIX I TRUST INDENTURE TULSA MUNICIPAL THEATER AUTHORITY (SECTIONS 1200, 1201, AND 1202)

*("Exhibit A" in Ord. No. 12849)*

KNOW ALL MEN BY THESE PRESENTS:

This Trust Indenture dated this 8th day of June, 1973, by John H. Williams, hereinafter referred to as Trustor, and Robert J. LaFortune, Sid Patterson, William H. Morris, Jr., to be known as the Trustees of the Tulsa Municipal Theater Authority, and hereinafter referred to as Trustees.

W I T N E S S E T H:

That in consideration of payment by Trustor to the Trustees of the sum of One Hundred Dollars ($100.00); and of the mutual covenants herein set forth, the said Trustees agree to hold, manage, invest, assign, convey and distribute, as herein provided, authorized and directed, such property as Trustor, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Authority or the Trustees hereof.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits and increases thereof unto said Trustees, and said Trustees' successors and assigns, but nevertheless in Trust, for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, and upon the following trusts, terms and conditions herein stated.

### ARTICLE I
### Creation of Trust

The undersigned Trustor creates and establishes a Trust for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, and for the public purpose hereinafter set forth, under the provisions of Title 60, Oklahoma Statutes, 1971, Sections 176 to 180 inclusive, the Oklahoma Trust Act and other applicable Statutes of the State of Oklahoma.

### ARTICLE II.
### Name

The name of this Trust shall be "Tulsa Municipal Theater Authority" hereinafter referred to as "Authority". The Trustees shall conduct all business and execute all instruments, and otherwise perform the duties and functions required in the execution of this Trust.

### ARTICLE III.
### Purposes of Trust

The purposes of this Trust are:

**1.** To assist the City of Tulsa to own, construct, finance, furnish, equip, maintain and operate or to own, maintain and operate a municipal theater and community arts center facility, with appurtenant parking facilities.

**2.** In carrying out said public purposes to issue bonds, notes and other obligations in such manner and at such price as the Trustees may deem desirable and to secure the payment of such bonds, notes or other obligations by the pledge of all or any part of the rents and income of the Authority.

**3.** To hold, maintain and administer any leasehold rights, in and to physical properties demised to the beneficiary or to the Trust Estate, and to comply with the terms and conditions of any such lease.

**4.** To enter into contracts with the City of Tulsa and other parties to carry out the purpose of this Trust.

**5.** To provide funds to the City of Tulsa for the costs of financing, acquiring, constructing, purchasing, equipping, maintaining, repairing, improving, enlarging, remodeling, holding, operating and administering any or all of the aforesaid services, utilities, buildings, facilities and all properties, real, personal or mixed, needful for executing and fulfilling the Trust purposes as set forth in this Indenture and all other charges, costs and expenses necessarily incurred in connection therewith, and in so doing to incur indebtedness either unsecured or secured by all or any part of the Trust Estate and its revenues.

**6.** To expend all funds coming into the hands of the Trustees as revenue or otherwise for the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the aforesaid costs and expenses, and in payment of any other obligation properly chargeable against the Trust Estate and to distribute the remainder of such funds to the beneficiary municipality.

## ARTICLE IV.
## Duration of Trust

This Trust shall have duration for the term of duration of the Beneficiary and until such time as its purpose shall have been fulfilled or until it shall be terminated as hereinafter provided.

## ARTICLE V.
## The Trust Estate

The Trust Estate shall consist of:

**1.** The funds and property presently in the hands of the Trustees, including the consideration as hereinabove recited.

**2.** Any and all leasehold rights demised to said Trustees for the purposes of this Trust.

**3.** Any and all money, property, real, personal or mixed, rights, choses in action, contracts, leases, privileges, immunities, licenses, franchises, benefits and all other things of value coming into the possession of the Trustees, pursuant to the provisions of this Indenture.

## ARTICLE VI.
## The Trustees

**1.** There shall be three (3) Trustees of this Authority:

**a.** The Mayor of the City of Tulsa, whoever he may be, shall be a Trustee during his incumbency and shall serve until his successor as Mayor has been duly elected and qualified.

**b.** The Commissioner of Streets and Public Property of the City of Tulsa, whoever he may be, shall be a Trustee during his incumbency and shall serve until his successor as Commissioner of Streets and Public Property has been duly elected and qualified.

**c.** The Commissioner of Finance and Revenue of the City of Tulsa, whoever he may be, shall be a Trustee during his incumbency and shall serve until his successor as Commissioner of Finance and Revenue has been duly elected and qualified.

In the event of a change in the form of the government of the City of Tulsa, successors to these Trustees shall be the Mayor under the new form of government and two (2) other Trustees approved by the legislative body of the City of Tulsa under said new form of government, upon nomination of the Mayor of said City. Vacancies occurring in the Board of Trustees shall be filled in the same manner as hereinabove provided.

**2.** Each successor duly appointed shall become, without any further act or conveyance, fully vested with all of the estate, properties, rights, powers, duties and obligations of his predecessor hereunder, with like effect as if originally named as Trustee.

**3.** The Trustees shall be, during their term, subject to removal only by action of the District Court of Tulsa County, for cause shown.

**4.** In the event of the default in payment of principal or of interest on any indebtedness created by said Trustees or any default under any instrument securing or pursuant to which such debt be incurred, a Temporary Trustee or Receiver may be appointed, as shall be provided in any such instrument. Such Temporary Trustee or Receiver shall become, without any further act or conveyance, fully vested with all of the estate, properties, rights, powers, trusts, duties and obligations of his predecessors in Trust, with like effect as if originally named as Trustee herein. The Temporary Trustee or Receiver shall cease to have any power or authority upon the termination of all the defaults by which his appointment would have been authorized and the permanent Trustees temporarily supplanted shall be automatically reinstated.

**5.** Bonds or other evidences of indebtedness to be issued by the Trustees shall not constitute an indebtedness of the City of Tulsa, nor personal obligations of the Trustees of the Authority, but shall constitute obligations of the Trustees payable solely from the Trust Estate.

**6.** The Trustees, the City of Tulsa or any agency thereof, shall not be charged personally with any liability whatsoever by reason of any act of omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trust Estate; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**7.** No Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or the Beneficiary in his or its capacity, nor can the Beneficiary bind or obligate the Authority or any individual Trustee.

**8.** No Trustee shall be paid any compensation of any kind for his services as Trustee of this Authority, except that each such Trustee shall be reimbursed for actual expenses incurred in the performance of his duties as Trustee.

## ARTICLE VII.
## Powers and Duties of the Trustees

Subject to the provisions and limitations otherwise provided in this Indenture, the Trustees shall have, in addition to the usual powers incident to their office, and the powers granted to them in other parts of this Trust Indenture, the following rights, powers, duties, authority, discretion and privileges, all of which may be exercised by them without any order or authority from any court:

**1.** To enter into and execute, purchase, lease, or otherwise acquire property, real, personal or mixed, franchises, contracts, leases, rights, privileges, benefits, choses in action, or other things of value and to pay for the same in cash, with bonds or other evidences of indebtedness or otherwise.

**2.** To make and change investments; to convert real into personal property and vice versa; to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem advisable, any or all of the property in the Trust, real or personal; to borrow money or renew loans for the Trust; to refund outstanding bonded indebtedness; and to execute therefor evidences of indebtedness and to secure the same by mortgage, lien, pledge or otherwise; to purchase property from any person and purchase or lease land and other property from the Beneficiary and construct and equip buildings and facilities thereon; and lease, sublease or rent, on such terms as they deem advisable, the same to individuals, partnerships, associations, corporations, and others, including agencies of the United States of America, State of Oklahoma and political subdivisions of the State; and procure funds necessary for such purpose by the sale of bonds or other evidences of indebtedness and secure the payment of such bonds or other evidences of indebtedness by mortgage, lien, pledge or other encumbrance of such real and personal property, buildings and facilities owned or otherwise acquired, leased or controlled by Trustees and rentals, income, receipts and profits therefrom or from any other revenues associated with the ownership, operation or control of the property of the Authority; to lease or sublease on such terms as they deem advisable, any property of the Authority or of which the Trustees may become the owners or lessees.

**3.** To make and perform contracts of every kind, including management contracts with any person, firm, corporation, association, trusteeship, municipality or government; and, without limit as to amount, to draw, make, accept, endorse, assume, guarantee, account, execute and issue promissory notes, drafts, bills of exchange, acceptances, warranties, bonds, debentures, and to have issued a letter or letters of credit from any state or national bank, and other negotiable or non-negotiable instruments, obligations and evidences of unsecured indebtedness, or of indebtedness secured by mortgage, deeds of trust, or otherwise, upon any or all property of the Authority and to pledge any or all income of the Authority in the same manner and to the same extent as a natural person might or could do. To collect and receive any property, money, rents, or income of any sort and distribute the same or any portion thereof, for the furtherance of the authorized Trust purposes set out herein.

**4.** To employ such counsel, agents, servants and employees as they deem necessary or proper; and prescribe their duties and fix their compensation at such amounts as is

customary and normal; and select depositories for the funds and securities of this Authority. Any officer or employee having custody of Authority funds shall be bonded in such amount as may be designated by the Trustees.

**5.** To compromise any debts or claims of or against the Authority and to adjust any dispute in relation to such debts or claims by arbitration or otherwise and pay any debts or claims against the Authority upon any evidence that seems to the Trustees to be sufficient. The Trustees may bring any suit or action which in their judgment is necessary or proper to protect the interests of the Authority or to enforce any claim, demand, or contract for the Authority; and they shall defend, in their discretion, any suit against the Authority of the Trustees or employees, agents or servants thereof. They may compromise and settle any suit or action and discharge the same out of Authority assets together with court costs and attorney fees. All such expenditures shall be treated as expenses of executing this Trust.

**6.** To do all other acts, in their judgment, necessary or desirable for the proper and advantageous management, investment and distribution of the Trust Estate and income therefrom.

The whole title, legal and equitable, to the Authority property, is and shall be vested in the Trustees as such title in the Trustees is necessary for their due execution of this Trust. Said Trustees shall have and exercise exclusive management and control of the Trust properties for the use and benefit of the Beneficiary; but may agree for approval of any or all of its actions and transactions by the governing board of the Beneficiary.

The Trustees may contract for the furnishing of any services or for the performance of any duties that they may deem necessary or proper, and pay for the same as they see fit; but in any case, said Trustees shall provide for an annual audit of the Authority property and operations, one copy each of which shall be filed with the Mayor and Auditor of the City of Tulsa, Oklahoma, and shall be open to public inspection.

No purchaser at any sale or lessee under a lease made by the Trustees shall be bound to inquire into the expediency, propriety, validity or necessity of such sale or lease or to see to or be liable for the application of the purchase or rental monies arising therefrom.

No contract, lease, indenture or agreement of any nature whatsoever to which the Trustees shall be a party shall be deemed ineffectual or invalid by reason of the fact that any one or more of such Trustees may execute such contract, lease, indenture or agreement for or on behalf of the other parties thereto.

Any firm of which any Trustee may be a member, or any public or private corporation, association, commission or agency of which any Trustee may be an officer, director or member, or in which any Trustee may be interested as the holder of any amount of its capital stock, or otherwise, or any Trustee individually, may be a party to, or may be pecuniarly (sic), or otherwise interested in, any contract or transaction with this Authority or the Trustees thereof; and, in the absence of fraud, no contract or other transaction shall be thereby affected or invalidated; provided that in case a Trustee, individually, or a firm of which a Trustee is a member, or a corporation in which any Trustee owns a substantial amount of capital stock, is so interested that such fact shall be disclosed or shall have been known to the other Trustees.

## ARTICLE VIII.
## Beneficiary of Trust

**1.** The Beneficiary of this Trust shall be the City of Tulsa, Oklahoma, a municipal corporation, under and pursuant to Title 60, Oklahoma Statutes, 1971, Sections 176 to 180, both inclusive. Trustor now declares that this Indenture shall be irrevocable from the moment it is signed by him and delivered to the Trustees and that he shall thereafter stand without any power whatsoever, at any time to alter, amend, revise, modify, revoke or terminate any of the provisions of this Indenture, except with the consent of the City of Tulsa.

**2.** The Trustees, after fulfilling the purpose of this Trust and after paying all obligations of the Trust and interest thereon and all the costs and expenses incident to the management, operation, maintenance and conservation of this Trust, to be used solely and exclusively for the purpose of constructing, furnishing, equipping, maintaining, improving and operating a municipal theater and community arts center facility.

**3.** The City of Tulsa, Oklahoma, shall have no legal title, claim or right to the Trust Estate, its income or to any part thereof, or to demand or require any partition or distribution thereof, except as set forth in Paragraph (2) of Article VIII of this Trust Indenture. Neither shall said City of Tulsa, Oklahoma, or any agency thereof, have any authority, power or right, whatsoever, to do or transact any business for, or in behalf of, or binding upon, the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees. The City of Tulsa, Oklahoma, as Beneficiary of this Trust, shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder, and at the termination of the Trust as herein provided, and then only, shall said City of Tulsa, Oklahoma, receive the residue of the Trust Estate for the declared public purposes.

## ARTICLE IX.
## Termination of Trust

This Trust shall terminate:

**1.** When the purposes set out in Article III of this Indenture shall have been fully executed; or

**2.** In the manner provided by Title 60, Oklahoma Statutes, 1971, Section 180.

Provided, however, that this Trust shall not be terminated by voluntary action, if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of this Authority and after payment of all debts and obligations out of Authority money, to the extent thereof, shall distribute the residue of the money and Authority property to the Beneficiary hereunder; upon final distribution, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE X.
## Termination

The Trustees accept the Trust herein created and provided for and agree to carry out the provisions on their part to be performed.

IN WITNESS WHEREOF, the Trustor and the Trustees, have hereunto set their hands this 7th day of June, 1973.

/s/ John H. Williams
Trustor

/s/ Robert J. LaFortune

/s/ Sid W. Patterson

/s/ William H. Morris, Jr.
Trustees

[ACKNOWLEDGMENTS]

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENTS:

That the Board of Commissioners of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, for and on behalf of said Beneficiary in all respects in accordance with the terms of said Trust Indenture.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners, this 8th day of June, 1973.

/s/ Robert J. LaFortune
Mayor

ATTEST:

/s/ F.F. Campbell
City Auditor

## APPENDIX II AMENDMENT NUMBER ONE TO TRUST INDENTURE TULSA MUNICIPAL THEATER AUTHORITY.

KNOW ALL MEN BY THESE PRESENT:

WHEREAS, the undersigned Trustor, John H. Williams, created a trust named the Tulsa Municipal Theatre Authority ("Authority") for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation under Trust Indenture dated June 8, 1973, between the said Trustor and Robert J. LaFortune, Sid Patterson, and William H. Morris, Jr., referred to therein as the Trustees, and

WHEREAS, the said Trust was created for the purpose, inter alia, to own, construct, finance, furnish, equip, maintain and operate a municipal theatre and community arts center facility in Tulsa, Oklahoma or to assist the City of Tulsa in such activities; and

WHEREAS, the City of Tulsa and the Authority have caused to be constructed and have purchased a municipal theatre and performing arts center facility located in downtown Tulsa, Oklahoma on the land described in Exhibit "A" hereto; and

WHEREAS, said facility has been named the Tulsa Performing Arts Center and the Trustor desires to rename the Trust from the "Tulsa Municipal Theatre Authority" to the "Tulsa Performing Arts Center Trust" to correspond the name of the Trust with the name given to the arts center actually constructed; and

WHEREAS, the Trustor desired to expand and enlarge the number of Trustees from a total of three (3) to a total of fifteen (15) to encourage a greater degree of community involvement and participation in the activities of the Trust; and

WHEREAS, the Trustor desires to amend and broaden the purposes of the Trust to encompass a full range of cultural and artistic endeavors, events, and activities relating to the use of the Tulsa Performing Arts Center and to encourage the further endowment and financial contribution to the Trust for the cultural enrichment and the expansion of such opportunities available in the City of Tulsa at the Performing Arts Center; and

WHEREAS, the Trust Indenture can be amended only by the Trustor with the consent of the City of Tulsa as beneficiary and the consent of the current three (3) Trustees;

NOW, THEREFORE, I the undersigned Trustor under Trust Indenture named the Tulsa Municipal Theatre Authority dated June 8, 1973, between John H. Williams as Trustor and Robert J. LaFortune, Sid Patterson, and William H. Morris, Jr., as Trustees, do hereby amend the said Trust Indenture, subject to the approval of two-thirds (2/3) of the members of the governing body of the City of Tulsa and further subject to the approval of the current Trustees, Robert J. LaFortune, Robert A. Franden, and Norma Eagleton, as follows:

**A.**

Article II of the said Trust Indenture entitled "Name" is hereby amended to read in its entirety as follows:

"**II.**
**Name**

The name of this Trust shall be "Tulsa Performing Arts Center Trust" hereinafter referred to as the "TPACT" or "Authority". The Trustees shall conduct all business and

execute all instruments, and otherwise perform the duties and functions required in the execution of this Trust in accordance with the laws of Oklahoma in general and Title 60, Oklahoma Statutes (1976), Sections 176 to 180 in particular and in accordance with the provisions of Sub-title A, Chapter 1 USCA, Section 509(a)(3) of the United States Tax law, and the regulations promulgated thereunder pertaining to Support Organizations as therein defined, as the same laws and regulations may be amended from time to time during the existence of this Trust."

**B.**

Article III of the Trust Indenture entitled "Purposes of Trust" is hereby amended to include Paragraphs numbered 7 and 8 reading as follows:

"7. To rehabilitate, repair, reconstruct, remodel, improve, enlarge, alter, rebuild, operate, maintain, administer, equip, furnish and decorate the Tulsa Performing Arts Center and to place any real estate improvement or item of personal property upon the land described in Exhibit "A" and to assist in any of the foregoing.

8. To provide financial assistance, direction and other assistance in connection with cultural, artistic, or entertainment events occurring or proposed to occur in the Tulsa Performing Arts Center, or in its immediate environs including contiguous public spaces and to carry on, sponsor, produce, finance, arrange, present, manage, and represent attractions of various kinds and nature as the Trustees may from time to time elect, including without limitation, dramatic, operatic and musical performances; panaromic (sic), intellectual and instructive entertainments; pantomimes, motion pictures, art exhibits, concerts, ballets, shows, exhibitions, songs, performances, plays, events, variety and other entertainment and amusement by and through theatrical or other devices; and to purchase, receive, or otherwise acquire and obtain exclusive and other interests in copyrights and other rights to any plays, music, songs, words, operas, comedies, dramatic and other compositions, art work, and other cultural or artistic items or things."

**C.**

Paragraph 1 of Article VI of the Trust Indenture entitled "The Trustees" is hereby amended to read in its entirety as follows:

"1. There shall be fifteen (15) Trustees of this Trust. The Trustees shall be comprised of three (3) Elected Trustees and twelve (12) Appointed Trustees as follows:

Elected Trustees

**(a)** The Mayor of the City of Tulsa, whoever he may be, shall be a Trustee during his incumbency and shall serve until his successor as Mayor has been duly elected and qualified.

**(b)** The Commissioner of Streets and Public Property of the City of Tulsa, whoever he may be, shall be a Trustee during his incumbency and shall serve until his successor as Commissioner of Streets and Public Property has been duly elected and qualified.

**(c)** The Commissioner of Finance and Revenue of the City of Tulsa, whoever he may be, shall be a Trustee during his incumbency and shall serve until his successor as Commissioner of Finance and Revenue has been duly elected and qualified.

Appointed Trustees

**(d)** The remaining twelve (12) Trustees shall be appointed by the Mayor subject to the approval of the Board of Commissioners of the City of Tulsa. The terms of the first Appointed Trustees shall be as follows:

Four (4) Trustees shall be appointed for a term expiring July 1, 1978; four (4) Trustees shall be appointed for a term expiring July 1, 1979; and four (4) Trustees shall be appointed for a term expiring July 1, 1980.

At the expiration of the term of each Appointed Trustee and of each succeeding Appointed Trustee, the Mayor shall, subject to the approval of the Board of Commissioners of the City of Tulsa, appoint a successor for a term of three (3) years. Whenever a vacancy shall occur among the Appointed Trustees by death, resignation or otherwise, the Mayor shall, subject to the approval of the Board of Commissioners of the City of Tulsa, fill the same by appointment and the appointee shall hold office during the unexpired term. Each Trustee shall hold office until his successor has been appointed and qualified.

In the event of a change in the form of government of the City of Tulsa, successors to the Elected Trustees shall be the elected Mayor or his equivalent office under the new form of government. The two (2) other Elected Trustees and the twelve (12) Appointed Trustees shall be approved by the legislative body of the City of Tulsa under said new form of government, upon nomination of the elected Mayor of the City of Tulsa (or his equivalent office). Vacancies occurring in the Board of Trustees shall be filled in the same manner.

**D.**

Article VII of the Trust Indenture entitled "Powers and Duties of the Trustees" is hereby amended by adding new Paragraph numbered 7 reading as follows:

"7. To adopt By-Laws and operating rules and regulations of the TPACT and to provide for therein the creation of executive positions and such special or regular committees as the Trustees shall from time to time deem appropriate or advisable and to confer upon such executive positions and committees such powers and duties as the Trustees shall from time to time deem appropriate or advisable. Any and all such regular or special committees formed in pursuance hereof, shall have for its membership at least one (1) Elected Trustee."

**E.**

Paragraph 2 of Article VIII of the Trust Indenture entitled "Beneficiary of Trust" is hereby amended to read in its entirety as follows:

"2. The Trustees, after fulfilling the purposes of this Trust and after paying all obligations of the Trust and interest thereon and all the costs and expenses incident to the purposes of this Trust, shall then pay the balance to the Beneficiary of the Trust, to be used solely and exclusively for the benefit of the Tulsa Performing Arts Center in accordance with the intent of the purposes of this Trust."

Except as herein amended the Trustor and Trustees hereby ratify and confirm the provisions of the Trust.

IN WITNESS WHEREOF, this Amendment to Trust Indenture has been duly executed on the 5th day of April, 1977 and shall be effective on the 1st day of June, 1977.

/s/ John H. Williams
John H. Williams, "TRUSTOR"

APPROVAL OF TRUSTEES:

/s/ Robert J. LaFortune
Robert J. LaFortune, Mayor

/s/ Robert A. Franden
Robert A. Franden
Commissioner of Streets
and Public Property

/s/ Norma Eagleton
Norma Eagleton
Commissioner of Finance
and Revenue

"TRUSTEES"

APPROVED BY CITY OF TULSA,
AS BENEFICIARY

CITY OF TULSA,
a Municipal Corporation

By: s/ Robert J. LaFortune
Robert J. LaFortune
Mayor

ATTEST:

By: /s/ F.F. Campbell
F.F. Campbell

APPROVED:

By: /s/ Russell Linker
Asst. City Attorney

[ACKNOWLEDGMENTS]

"**EXHIBIT A**"

The following described real estate, situate in the County of Tulsa, and State of Oklahoma, to-wit:

A tract of land consisting of a part of Block 106, ORIGINAL TOWN OF TULSA, including the alley, all located in the City of Tulsa, Tulsa County, State of Oklahoma, according to the official plat thereof and described as follows:

Beginning at the northeast corner of said Block 106; thence southerly along the common boundary of Block 106 and the westerly boundary of Cincinnati Ave. a

distance of 300.00 feet; thence westerly along the common boundary of said Block 106 and the northerly boundary of Third Street a distance of 166.00 feet to a point 134.0 feet from the southwest corner of said Block 106; thence northerly parallel to and 134.0 feet from the westerly boundary of said Block 106 a distance of 300.00 feet to a point in the southerly boundary of Second Street; thence easterly along the common boundary of said Block 106 and the southerly boundary of Second Street a distance of 166.00 feet to the point of beginning.

Being otherwise described as:

All of Lots 1,2,3, and 4, All of the alley lying between Second Street and Third Street and the Easterly 6.0 feet of Lots 5,6,7, and 8, Block 106, ORIGINAL TOWN OF TULSA, Tulsa County, Oklahoma.

AND

A tract of land consisting of a part of Lots 5, 6, 7, and 8, Block 106, ORIGINAL TOWN OF TULSA, located in the City of Tulsa, Tulsa County, State of Oklahoma, lying above elevation 731.67, being the westerly 20.3 feet of the easterly 26.3 feet of said Lots 5, 6, 7, and 8, particularly described as follows, to-wit:

Beginning at a point in the southerly boundary of said Lot 5, 6.0 feet from the southeasterly corner thereof; thence westerly along the common boundary of said Lot 5 and Third Street a distance of 20.3 feet to a point 113.70 feet from the southwesterly corner of said Lot 5; thence northerly parallel to and 26.3 feet from the easterly boundary of said Lots 5, 6, 7, and 8, Block 106, a distance of 300.0 feet to a point in the northerly boundary of said Block 106, (southerly boundary of Second Street), 113.7 feet from the northwesterly corner thereof; thence easterly along the common boundary of said Lot 8 and Second Street, a distance of 20.3 feet to a point 6.0 feet from the northeasterly corner of said Lot 8; thence southerly parallel to and 6.0 feet from the easterly boundary of said Lots 8, 7, 6, and 5, a distance of 300.0 feet to the point of beginning.

## APPENDIX III SECOND AMENDMENT TO THE TRUST INDENTURE OF THE TULSA PERFORMING ARTS CENTER TRUST (SECTIONS 1203, 1204, 1205, 1206, AND 1207)

*("Exhibit A" in Ord. No. 17474)*

KNOW ALL MEN BY THESE PRESENTS:

WHEREAS, the undersigned TRUSTOR, John H. Williams, did on June 7, 1973, create a Public Trust originally named the "Tulsa Municipal Theatre Authority" ("Authority") under the statutory authorization for such public trusts as set forth in Title 60 O.S. 1971 §§ 176 et seq., as amended, under the provisions of which the CITY was designated as the sole beneficiary of said Trust; and

WHEREAS, the CITY under the provisions of Ordinance No. 12849, formally accepted the beneficial interest in the original Trust Indenture on June 8, 1973; and

WHEREAS, the original purpose of the Trust established by TRUSTOR was to own, construct, finance, furnish, equip, maintain and operate a municipal theatre and community arts center facility in the City of Tulsa, Oklahoma or to assist CITY in such activities; and

WHEREAS, the CITY and Authority did thereafter in joint effort, so acquire, furnish and equip the municipal theatre and community arts center facility, title to which was thence transferred to CITY and CITY did name the subject facility the "Tulsa Performing Arts Center"; and

WHEREAS, TRUSTOR thence foresaw the need for the continuation of the Trust but desired to amend and broaden the purposes of the Trust to encompass a full range of cultural artistic endeavors, events and activities relating to the use of the Tulsa Performing Arts Center and to encourage the further endowment and financial contributions to the Trust for the cultural enrichment and expansion of the presentation of such activities in the Tulsa Performing Arts Center; and

WHEREAS, TRUSTOR further believed the change of the name of the Trust from the "Tulsa Municipal Theatre Authority" to the "Tulsa Performing Arts Center Trust" and the expansion and enlargement of the number of members of the Board of Trustees from a total of three (3) to a total of fifteen (15) would implement a greater degree of community involvement and participation in the activities of the Tulsa Performing Arts Center; and

WHEREAS, TRUSTOR thereafter and on April 5, 1977, with the unanimous approval of the three (3) members of the Board of Trustees, amended the original Trust Indenture of the Tulsa Municipal Theatre Authority (First Amendment) which: (a) provided for the change of name of the Authority to the "Tulsa Performing Arts Center Trust"; (b) substantially revised and expanded the purposes of the Trust; (c) revised and increased the number of trustees and the method of appointment thereof; and, (d) otherwise amended the Trust Indenture, all as was thereafter duly approved by a two-thirds vote of the Board of Commissioners of the CITY on April 26, 1977, and all of which revisions and amendments went into effect June 1, 1977; and

WHEREAS, under the First Amendment to Trust Indenture, three (3) of the fifteen (15) members of the Board of Trustees were to be elected officials of the CITY, specifically naming the Mayor, the Commissioner of Streets and Public Property and the Commissioner

of Finance and Revenue but further provided that in the event of a change in the form of government of the CITY, successors to the Elected Trustees would be the Mayor or his equivalent office and two (2) other elected officials of the CITY nominated by the Mayor and approved by the legislative body of the CITY under any such new form of government; and

WHEREAS, the citizens of the CITY did, effective May 8, 1990, amend the Charter of the CITY to establish a Mayor/Council form of government with the Council serving solely in a legislative capacity as opposed to the previous Board of Commissioners form of Government whereunder the Mayor and four (4) Commissioners all served in both a legislative capacity and an administrative capacity; and

WHEREAS, the nine (9) elected Councilors have determined it to be in the best interests of the citizens of CITY that none of the Councilors should accept appointment to any of the various committees, councils, boards, Board of Directors, or Board of Trustees which aid, assist or impact the administration of CITY property or funds; and

WHEREAS, the Mayor of the City of Tulsa is therefore unable under the existing provisions of the First Amended Trust Indenture to submit nominees to fill the two vacancies created by the abolishment of the Commission form of Government; and

WHEREAS, the undersigned TRUSTOR, John H. Williams, desires to amend the Trust Indenture for a second time to delete the requirement in the First Amended Trust Indenture that three (3) members of the Board of Trustees were to be elected officials of the City of Tulsa; and

WHEREAS, the TRUSTOR, pursuant to the provisions of Article VIII, paragraph 1. of the Trust Indenture, created this Trust as an irrevocable Indenture and stands without power to alter, amend, revise, modify, revoke or terminate any of the provisions of the Indenture except with the consent of the City of Tulsa as beneficiary and the consent of the current thirteen (13) Trustees;

NOW THEREFORE, I the undersigned TRUSTOR, subject to and with the express consent of its sole and exclusive beneficiary, the City of Tulsa, Oklahoma and further subject to the express consent of the current thirteen (13) Trustees do hereby amend the Trust Indenture named the Tulsa Municipal Theatre Authority dated June 8, 1973, as amended and revised by "Amendment Number One To Trust Indenture of the Tulsa Municipal Theatre Authority" executed by the TRUSTOR April 5, 1977, approved by the City of Tulsa April 26, 1977 and mutually agreed to become effective June 1, 1977, in the following particulars as follows:

Paragraph 1 of Article VI of the Trust Indenture entitled "The Trustees" is hereby amended to read in its entirety as follows:

"1. There shall be fifteen (15) Trustees of this Trust. The Trustees shall be comprised of one (1) elected Trustee and fourteen (14) appointed Trustees as follows:

Elected Trustee

**(a)** The Mayor of the CITY of Tulsa, whoever he or she may be, shall be a Trustee during his incumbency and shall serve until his successor as Mayor has been duly elected and qualified. The Mayor may designate a member of his staff to be his Representative at any meetings of the Trustees. The Representative shall have all authority to act and to vote on the Mayor's behalf.

Appointed Trustees

**(b)** The remaining fourteen (14) Trustees shall be appointed by the Mayor subject to confirmation and approval by the City Council of the City of Tulsa. The terms of the Trustees shall be as follows:

The twelve Trustees serving on the Board of Trustees as of December 15, 1990, four of whom are serving three (3) year terms expiring July 1, 1991, four (4) of whom are serving terms expiring July 1, 1992, and four (4) of whom are serving three (3) year terms expiring July 1, 1993, shall continue to serve and complete those terms. As soon as possible after the City of Tulsa's acceptance of this Second Amendment to the Trust Indenture of the Tulsa Performing Arts Center Trust, one (1) additional Trustee shall be appointed for a term expiring July 1, 1992 and one (1) additional Trustee shall be appointed for a term expiring July 1, 1993.

At the expiration of the term of each Appointed Trustee and each succeeding Appointed Trustee, the Mayor shall, subject to the confirmation and approval by the City Council of the City of Tulsa, appoint a successor for a term of three (3) years. Whenever a vacancy shall occur among the appointed Trustees by death, resignation or otherwise, the Mayor shall, subject to the confirmation and approvals by the City Council of the City of Tulsa, fill the same by appointment and the appointee shall hold the position of Appointed Trustee for the unexpired term. Each Appointed Trustee shall hold office until his successor has been appointed and qualified.

The Trustor and Trustees do, by their execution hereof, hereby ratify and confirm the provisions of the Trust, specifically including the hereinbefore recited amendments thereto.

IN WITNESS WHEREOF, this Second Amendment to the Trust Indenture of the Tulsa Performing Arts Center Trust has been duly executed by the Trustor and Trustees on the days and dates respectively set forth below, and subject to confirmation and approval by the City Council of the City of Tulsa, to be effective January 15, 1991.

/s/ John H. Williams
John H. Williams, Trustor

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 24th day of January, 1991.

/s/ Judith M. Gothman
Notary Public

My Commission expires: August 18, 1992

Seal

/s/ John Barry
John Barry, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 17th day of January, 1991.

/s/ Alana Hughes
Notary Public

My Commission expires: April 28, 1993

Seal

/s/ Liddy Doenges
Liddy Doenges, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 4th day of January, 1991.

/s/ Alana Hughes
Notary Public

My Commission expires: April 28, 1993

Seal

/s/ Thomas F. Golden
Thomas F. Golden, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 24th day of January, 1991.

/s/ Lois Ellen Higgins
Notary Public

My Commission expires: January 25, 1991

Seal

/s/ Eileen Hewgley
Eileen Hewgley, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 30th day of January, 1991.

/s/ Brenda S. Collins
Notary Public

My Commission expires: 07/25/93

Seal

/s/ Robert J. LaFortune
Robert J. LaFortune, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 24th day of January, 1991.

/s/ Margaret E. Grimes
Notary Public

My Commission expires: December 10, 1994

Seal

/s/ Benedict I. Lubell
Benedict I. Lubell, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 17th day of January, 1991.

/s/ /s/ Alana Hughes
Notary Public

My Commission expires: April 28, 1993

Seal

/s/ Charles E. Norman
Charles Norman, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 17th day of January, 1991.

/s/ Alana Hughes
Notary Public

My Commission expires: April 28, 1993

Seal

/s/ Rodger Randle
Rodger A. Randle, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 8th day of February, 1991.

/s/ Michelle M. Benka
Notary Public

My Commission expires: 9/30/92

Seal

/s/ Jayne Reed
Jayne Reed, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 24th day of January, 1991.

/s/ Alana Hughes
Notary Public

My Commission expires: April 28, 1993

Seal

/s/ R. Thomas Seymour
Thomas Seymour, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 24th day of January, 1991.

/s/ Melinda Kirk
Notary Public

My Commission expires: 10/27/92

Seal

/s/ Nancy Vaughn
Nancy Vaughn, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 25th day of January, 1991.

/s/ Roger D. Radebraugh
Notary Public

My Commission expires: November 4, 1991

Seal

/s/ Kathleen P. Westby
Kathleen Westby, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 17th day of January, 1991.

/s/ Alana Hughes
Notary Public

My Commission expires: April 28, 1993

Seal

/s/ John H. Williams
John H. Williams, Trustee

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Subscribed and sworn to before me this 24th day of January, 1991.

/s/ Judith M. Gothman
Notary Public

My Commission expires: August 18, 1992

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENT:

That the City Council of the City of Tulsa, Oklahoma, a municipal corporation, does hereby expressly confirm, consent and agree to the foregoing Second Amendment to the Trust Indenture of the Tulsa Performing Arts Center Amendment to the Trust Indenture of

the Tulsa Performing Arts Center Trust and hereby accepts the sole and exclusive beneficial interest created by the Trust Indenture of the Tulsa Municipal Theatre Authority on June 7, 1973, as previously amended and renamed the Tulsa Performing Arts Center Trust effective June 1, 1977, and as amended by the foregoing Second Amendment to the Trust Indenture dated effective January 15, 1991, in all respects in accordance with the terms of said instruments for and in behalf of the Beneficiary Municipality, the City of Tulsa, Oklahoma.

WITNESSETH my hand and seal as Mayor of the City of Tulsa, Oklahoma, a municipal corporation, as attested to by the City Clerk of the City of Tulsa, Oklahoma, pursuant to the direction of the aforesaid City Council of the City of Tulsa this 5th day of April, 1991.

THE CITY OF TULSA, OKLAHOMA
a municipal corporation

/s/ Rodger Randle
Mayor

ATTEST:

/s/ Ronald L. Payne
City Clerk

APPROVED:

/s/ Kenneth E. Davis
City Attorney

STATE OF OKLAHOMA )
) ss
COUNTY OF TULSA )

Before me, the undersigned, a notary public in and for said County and State, on this 5th day of April, 1991, personally appeared Rodger A. Randle, to me known to be the identical person who, subscribed the name of THE CITY OF TULSA, OKLAHOMA, to the foregoing instrument as its Mayor and acknowledged to me that he executed the same as his free and voluntary act and deed and as the free and voluntary act and deed of such municipal corporation, all for the uses and purposes therein set forth.

/s/ Michelle M. Benka
Notary Public

My Commission expires: 9/30/92

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## CHAPTER 13. RIVER PARKS AUTHORITY

Section 1300. Beneficial interest of the River Parks Authority Trust accepted.
Section 1301. Trust recognized—Title.
Section 1302. Mayor and Auditor authorized to endorse approval and acceptance of beneficial interest on Trust Indenture and record with County Clerk.
Section 1303. Amendment Number One.
Section 1304. Mayor and City Council accept beneficial interest in Trust as amended.
Section 1305. Mayor and City Clerk authorized to execute and deliver Amendment Number One.
Section 1306. Mayor and Chairman of City Council authorized to endorse approval of Amendment Number One.
Appendix I Trust Indenture River Parks Authority (Sections 1300, 1301 and 1302) ("Exhibit A" in Ord. No. 13137).
Appendix II Amendment Number One to Trust Indenture Dated April 9, 1974, for River Parks Authority (Sections 1303, 1304, 1305 and 1306) ("Exhibit A" in Ord. No. 19090).

### Section 1300. Beneficial interest of the River Parks Authority Trust accepted.

The River Parks Authority, created by Trust Indenture dated April 9, 1974, an executed copy of which Trust Indenture is hereto attached marked "Exhibit A" and made a part hereof, wherein Carl Smith, Mrs. Gerald Westby, Leonard Eaton, William Wiseman, Travis Freeman, Richard Johnson and Marshall Nash are designated Trustees, and the City of Tulsa, Oklahoma, is designated, along with the County of Tulsa, as the sole and exclusive beneficiaries of said River Parks Authority, is hereby approved and the City of Tulsa hereby accepts the beneficial interest therein and all of the terms and provisions of said Trust Indenture, as authorized by the applicable statutes of the state of Oklahoma, and the City of Tulsa, Oklahoma, along with the County of Tulsa, hereby agrees to be and become a beneficiary in accordance with the terms of said trust.

*(Ord. No. 13137)*

### Section 1301. Trust recognized—Title.

The City of Tulsa hereby recognizes said River Parks Authority and the trustees named in said Trust Indenture, and in all negotiations and instruments where the term "River Parks Authority" is used it shall be deemed and construed to mean the trust above mentioned and described.

*(Ord. No. 13137)*

### Section 1302. Mayor and Auditor authorized to endorse approval and acceptance of beneficial interest on Trust Indenture and record with County Clerk.

The Mayor and the City Auditor of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture the approval of the City of Tulsa of said Trust Indenture creating the River Parks Authority and the City's acceptance of the beneficial interest therein and to cause said Trust Indenture to be recorded in the office of the County Clerk of Tulsa County, Oklahoma.

*(Ord. No. 13137)*

**Section 1303. Amendment Number One.**

That the Trust Indenture for the River Parks Authority, dated April 9, 1974, is modified hereby pursuant to the terms of Amendment Number One to Trust Indenture, dated March 13, 1997, an executed copy of which is attached hereto as "Exhibit A" and made a part hereof.

*(Ord. No. 19090)*

**Section 1304. Mayor and City Council accept beneficial interest in Trust as amended.**

That the Mayor and the City Council of the City of Tulsa hereby reaccepts, for and on behalf of the City, the beneficial interest in the public trust designated as the River Parks Authority, as amended by Amendment Number One to Trust Indenture, attached.

*(Ord. No. 19090)*

**Section 1305. Mayor and City Clerk authorized to execute and deliver Amendment Number One.**

The Mayor and City Clerk of the City be, and they hereby are, authorized and empowered for and on behalf of the City, to execute and deliver Amendment Number One to Trust Indenture and such further agreements and documents and take such action as such officer or officers may deem necessary or desirable in order to accomplish the trust purposes.

*(Ord. No. 19090)*

**Section 1306. Mayor and Chairman of City Council authorized to endorse approval of Amendment Number One.**

The Mayor and Chairman of the City Council for the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Amendment Number One to Trust Indenture the approval of the City of Tulsa of the said amendment and to cause said Amendment Number One to Trust Indenture to be recorded in the office of the County Clerk of Tulsa, Oklahoma.

*(Ord. No. 19090)*

## APPENDIX I TRUST INDENTURE RIVER PARKS AUTHORITY (SECTIONS 1300, 1301, AND 1302)

*("Exhibit A" in Ord. No. 13137)*

KNOW ALL MEN BY THESE PRESENTS:

This Trust Indenture, dated this 9th day of April, 1974, by Darrell J. Lowrance, hereinafter referred to as Trustor; and Carl Smith, Mrs. Gerald Westby, Leonard Eaton, William Wiseman, Travis Freeman, Richard Johnson, and Marshall Nash, to be known as the Trustees of the River Parks Authority, who shall be Trustees of the Trust herein set out and hereinafter referred to as "Trustees".

W I T N E S S E T H:

That in consideration of the payment by Trustor to the Trustees of the sum of One Hundred Dollars ($100.00); and of the mutual covenants herein set forth, the said Trustees agree to hold, manage, invest, assign, convey, lease and distribute, as herein provided, authorized and directed, such property as Trustor, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Authority or the Trustees hereof.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits and increases thereof unto said Trustees, and said Trustees' successors and assigns, but nevertheless in trust, for the exclusive use and benefit of the City of Tulsa, Oklahoma, a municipal corporation (hereinafter referred to as the "City"), and the County of Tulsa, Oklahoma, a political subdivision of the State of Oklahoma (hereinafter referred to as the "County"), which said City and County are hereby designated as the Beneficiaries of this Trust and hereinafter referred to as the "Beneficiaries", and upon the following trust, terms and conditions herein stated.

### ARTICLE I
### Creation of Trust

The undersigned Trustor creates and establishes a Trust for the use and benefit of the City and the County, and for the public purposes hereinafter set forth, under the provisions of Title 60 Oklahoma Statutes, 1971, Section 176 et seq., the Oklahoma Trust Act and other applicable Statutes of the State of Oklahoma, as amended.

### ARTICLE II

The name of this Trust shall be "River Parks Authority", hereinafter referred to as "Authority." The Trustees shall conduct all business and execute all instruments and otherwise perform the duties and functions required in the execution of this Trust.

### ARTICLE III
### Purposes of Trust

The purposes of this Trust are:

**1.** To promote the general public health, safety, welfare and convenience within, without and near the territorial limits of the Beneficiaries, and either of them, through promoting, assisting in, encouraging, participating in and securing the

development, redevelopment, preservation and/or renewal of the Beneficiaries' natural resources, renewable natural resources and community resources known or identified and hereafter to be known or identified collectively as the Arkansas River Lakes Park or Parks, or by such other name or names as the Authority may designate, and such public parks, park lands, lands and/or facilities as may now or hereafter be identified with the same, whether directly or indirectly, for public, or quasi-public park and related usage, including private usage.

**2.** In carrying out said public purposes, to issue bonds, notes, mortgages, security agreements and other obligations as the Trustees may deem desirable and to secure the payment of such bonds, notes or other obligations by the pledge of all or any part of the rents and income of the Authority.

**3.** To hold, maintain and administer any leasehold rights, in and to physical properties demised to the beneficiaries or to the Trust Estate and to comply with the terms and conditions of any such lease.

**4.** To acquire by lease, purchase or otherwise and to plan, establish, develop, construct, enlarge, improve, maintain, equip, operate and regulate any and all property, real, personal or mixed, designated or needful for utilization in the furnishing and providing services in connection with the Arkansas River Lakes Park and to dispose of, sell, rent or otherwise make provisions for properties owned by the Authority but no longer needful for Trust purposes.

**5.** To lease, rent, furnish, or provide such property, buildings, improvements and facilities for use by the United States of America, the State of Oklahoma, or the Beneficiaries or either of them, or for use by authorities or agencies of any of said entities, or for the use of corporations, individuals, partnerships, associations, or proprietary companies, upon such terms as the Trustees may deem suitable; and to relinquish, rent, dispose of or otherwise make provision for properties owned or controlled by the Trust but no longer needed for Trust purposes.

**6.** To enter into contracts with the City and with the County and other parties to carry out the purposes of this Trust.

**7.** To provide funds for the cost of financing, acquiring, constructing, purchasing, equipping, maintaining, repairing, improving, enlarging, remodeling, holding, storing, operating and administering any and all of the aforesaid property improvement services, utilities, buildings, facilities and all property, real, personal or mixed, needful for exercising and fulfilling the Trust purposes as set out in this Indenture and all other charges, costs and expenses necessarily incurred in connection therewith and in so doing to incur indebtedness, either unsecured or secured by all or any part of the Trust Estate and its revenues.

**8.** To expend all funds coming into the hands of the Trustees as revenue or otherwise for the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the aforesaid costs and expenses and in payment of any other obligation properly chargeable against the Trust Estate or to distribute the residue and remainder of such funds to the beneficiaries as hereinafter set forth, which said funds, together with all Trust property, assets, profits and net revenues are irrevocably dedicated to the Beneficiaries.

## ARTICLE IV
## Duration of Trust

This Trust shall have duration for the term of duration of the Beneficiaries or until such time as its purposes shall have been fulfilled, or until it shall be terminated as hereinafter provided.

## ARTICLE V
## The Trust Estate

The Trust estate shall consist of:

**1.** The funds and property presently in the hands of the Trustees, including the consideration, as hereinabove recited.

**2.** Any and all leasehold rights, demised to the Trust for the purposes of this Trust, including such as may be demised to the Trust by the Beneficiaries, or either of them, as authorized and empowered by law.

**3.** Any and all improvements that may be constructed by, or in behalf of, the Trustees upon any property owned by or leased to said Trustees.

**4.** Any and all improvements that may be constructed by, or in behalf of, the City and the County upon any property owned by the said City and County and leased to said Trustees.

**5.** Any and all money, property, real, personal, or mixed, rights, choses in action, contracts, leases, privileges, immunities, licenses, franchises, benefits and all other things of value coming into the possession of the Trustees, pursuant to the provisions of this Indenture.

**6.** Cash in the sum of $100.00 paid to the Trustees, receipt of which is hereby acknowledged by the Trustees.

The instruments executed for each project and such issuance of Trustees' bonds and other indebtedness, shall set out the specific property of the Trust Estate exclusively pledged and/or mortgaged for the payment of such indebtedness.

## ARTICLE VI
## The Trustees

**1.** There shall be seven (7) Trustees of this Authority:

**(a)** Carl Smith shall be a Trustee for a term of one (1) year, commencing on the date of this Indenture, or until his respective successor is appointed, confirmed and qualified;

**(b)** William Wiseman shall be a Trustee for a term of One (1) year, commencing on the date of this Indenture, or until his respective successor is appointed, confirmed and qualified;

**(c)** Mrs. Gerald Westby shall be a Trustee for a term of two (2) years, commencing on the date of this Indenture, or until her respective successor is appointed, confirmed and qualified;

**(d)** Travis Freeman shall be a Trustee for a term of two (2) years, commencing on the date of this Indenture, or until his respective successor is appointed, confirmed and qualified;

**(e)** Leonard Eaton shall be a Trustee for a term of three (3) years, commencing on the date of this Indenture, or until his respective successor is appointed, confirmed and qualified;

**(f)** Richard Johnson shall be a Trustee for a term of three (3) years, commencing on the date of this Indenture, or until his respective successor is appointed, confirmed and qualified;

**(g)** Marshall Nash shall be a Trustee for a term of three (3) years, commencing on the date of this Indenture, or until his respective successor is appointed, confirmed and qualified;

**2.** Upon the expiration of the terms herein provided, appointments shall be made for terms of three (3) years, or until their respective successors are appointed, confirmed, and qualified. No Trustee who has served two consecutive terms of three years shall be eligible for further appointment as Trustee.

**3.** The Mayor of the City shall appoint the Trustees to succeed the Trustees mentioned in paragraphs 1(a), 1(c) and 1(e) of this Article, subject to confirmation by a majority vote of the entire membership of the legislative body of the City.

**4.** The Chairman of the Board of County Commissioners of Tulsa County, Oklahoma shall appoint the Trustees to succeed the Trustees mentioned in paragraphs 1(b), 1(d) and 1(f) of this Article, subject to confirmation by a majority vote of the entire membership of the Board of County Commissioners of Tulsa County, Oklahoma.

**5.** Chairman of the Tulsa Metropolitan Area Planning Commission shall appoint the Trustee to succeed the Trustee mentioned in paragraph 1(g), subject to confirmation by a majority vote of the entire membership of the Tulsa Metropolitan Area Planning Commission, by a majority vote of the entire membership of the legislative body of the City and by a majority vote of the entire membership of the Board of County Commissioners of Tulsa County, Oklahoma.

**6.** In the event of the dissolution, voluntary or involuntary, by law, or otherwise, of the Tulsa Metropolitan Area Planning Commission, the successor to the Trustee appointed by the Chairman and confirmed by the Tulsa Metropolitan Area Planning Commission, the City and the County, shall be appointed by the Mayor of the City, subject to confirmation by a majority vote of the entire membership of the legislative body of the City and subject to confirmation by a majority vote of the entire membership of the Board of County Commissioners of Tulsa County, Oklahoma.

**7.** Vacancies occurring otherwise than through the expiration of term, shall be filled for the unexpired term by the officer appointing the prior Trustee.

**8.** All Trustees and all temporary Trustees appointed hereunder shall qualify by a written acceptance of all the terms of this instrument, duly acknowledged and signed in the same manner and in the same places that this instrument is acknowledged and filed. All Trustees, permanent and temporary, before assuming the powers and duties as such, also shall subscribe and file such oaths as shall be required by law for public officers of the State of Oklahoma.

**9.** The Trustees shall elect annually by majority vote a Chairman of the Trustees, who shall preside at all meetings and perform other duties designated by the Trustees. The Trustees shall designate the time and place of all regular meetings. All actions by the Trustees pursuant to the provisions of this Indenture shall be approved by the affirmative vote of at least a majority of the Trustees qualified to act as such under the provisions of this Indenture. The Trustees shall select one or more of their members to be Vice-Chairman, who shall act in the place of the Chairman during the latter's absence or incapacity to act or serve.

**10.** The Trustees shall elect a Secretary of the Trustees who may or may not be a Trustee. The Secretary shall keep minutes of all meetings of the Trustees. All such minutes, books and records to be on file in the principal office of the Authority, which said office shall be in the City of Tulsa, Oklahoma, or in such other place within the State of Oklahoma as the Trustees may designate. This Authority may also have offices at such other places within the State of Oklahoma as the Trustees may designate. All meetings of the Trustees shall be open to the public, and the books, records and minutes of the Trustees shall be considered as public records and available for inspection at all reasonable times by any interested person or persons.

**11.** The Trustees shall elect a Treasurer of the Trustees who may or may not be a Trustee, and who shall maintain complete and accurate records of all their financial transactions.

**12.** The Trustees may appoint an executive Director for the Authority and may employ such other clerical, professional, legal and technical assistance as may be deemed necessary in the discretion of the Trustees to properly operate the business of the Authority, and may fix their duties, terms of employment and compensation. In the event an Executive Director for the Trust Estate or Authority is appointed by the Trustees, the said Executive Director shall administer the business of the Trust Estate or Authority as directed from time to time by the Trustees.

**13.** Upon each change of personnel of the Trustees hereunder, the Chairman of the Board of Trustees shall cause to be filed in the office of the County Clerk of Tulsa County, a certificate of the entire personnel of the Board of Trustees of the Authority.

**14.** The Trustees shall be, during their terms, subject to removal only by action of the District Court of Tulsa County, for cause shown, including incompetence, neglect of duty, or malfeasance in office.

**15.** Bonds or other evidences of indebtedness to be issued by the Trust shall not constitute an indebtedness of the City or indebtedness of the County, nor personal obligations of the Trustees of the Authority, but shall constitute obligations of the Trustees, payable solely from the Trust Estate.

**16.** The Trustees, the City, the County, or any agency thereof, shall not be charged personally with any liability whatsoever by reason of any act of omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trust Estate; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**17.** No Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or the Beneficiaries in his or its capacity, nor can the Beneficiaries bind or obligate the Authority or any individual Trustee.

**18.** No Trustee shall be paid any compensation of any kind for his services as Trustee for this Authority, except that each such Trustee shall be reimbursed for actual expenses incurred in the performance of his duties as Trustee.

## ARTICLE VII
## Powers and Duties of the Trustees

To accomplish the purposes of this Trust, and subject to the provisions and limitations otherwise provided in this Indenture, the Trustees shall have, in addition to the usual powers incident to their office, and the powers granted to them in other parts of this Trust Indenture, the following rights, powers, duties, authority, discretion and privileges, all of which may be exercised by them without any order or authority from any court or legislative body, except as herein provided:

**1.** To enter into and execute, purchase, lease, or otherwise acquire property, real, personal or mixed, franchises, contracts, leases, rights, privileges, benefits, choses in action, or other things of value and to pay for the same in cash, with bonds or other evidences of indebtedness or otherwise; provided, however, that all acquisitions and purchases of lands or real property by lease, purchase or otherwise, shall be subject to the approval of the City and the County.

**2.** To enter into contracts for the acquisition and construction of property, buildings and facilities authorized to be acquired and constructed pursuant to the terms of this Indenture.

**3.** To employ such architectural and engineering firm or firms as the Trustees deem necessary to prepare such preliminary and detailed studies, plans, specifications, cost estimates and feasibility reports as are required in the opinion of the Trustees. The cost of such engineering and architectural work shall be paid out of the proceeds of the sale of bonds or from such other funds as the Trustees may determine as may be available therefor.

**4.** To enter into contracts for the sale of bonds, notes or other evidences of indebtedness or obligations of the Trust for the purpose of acquiring, equipping or constructing property, buildings, improvements and facilities authorized to be acquired or constructed pursuant to the terms of this Indenture and for that purpose may, subject to applicable statutory provisions:

**(a)** employ a financial advisor or advisors, or committee of advisors, to advise and assist the Trustees in the marketing of such bonds, notes or other evidences of indebtedness or obligations, and to present financial plans for the financing of the acquisition or construction of such project, and to recommend to, or consult with, the Trustees concerning the terms and provisions of bond indentures and bond issues, and may pay appropriate compensation for such work and services performed in the furtherance of the project.

**(b)** sell all bonds, notes or other evidences of indebtedness or obligations of the Trust in whole or in installments or series and on such terms and conditions and in such manner as the Trustees shall deem to be in the best interest of the Trust Estate; and

**(c)** appoint and compensate attorneys, paying agencies and corporate trustees in connection with the issuance of any such bonds, notes, evidences of indebtedness or other obligations of the Trust.

**5.** To enter into and execute, purchase, lease or otherwise acquire property (real, personal or mixed), contracts, leases, rights, privileges, benefits, choses in action, or other things of value and to pay for the same in cash, with bonds or other evidences of indebtedness or otherwise.

**6.** To make and change investments; to convert real into personal property and vice versa; to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem advisable, any or all of the property in the Trust, real or personal; to borrow money or renew loans for the Trust; to refund outstanding bonded indebtedness; and to execute therefor evidences of indebtedness and to secure the same by mortgage, lien, pledge or otherwise; to purchase property from any person, firm or corporation, and lease land and other property to and from the Beneficiaries or either of them, and construct, improve, repair, remodel and equip buildings and facilities thereon and to operate or lease or rent the same to individuals, partnerships, associates, corporations and others, including the United States of America or the State of Oklahoma and agencies or authorities of the United States of America, or of the State of Oklahoma, or of any political subdivisions thereof, as well as the Beneficiaries hereof, and to do all things provided for in Article III of this Indenture, and procure funds necessary for such purpose by the sale of bonds or other evidences of indebtedness by a mortgage, lien, pledge, or other encumbrance or otherwise of such real and personal property, buildings, and facilities owned or otherwise acquired, leased or controlled by Trustees, and by rentals, income, receipts and profits therefrom, or from any other revenue associated with the ownership, operation or control of the property of the Authority; to lease or sublease any property of the Authority or of which the Trustees may become the owners or lessees; to collect and/or receive for and disburse and/or pay to the Beneficiaries such voluntary contributions as are or may be made for public purposes under such contractual arrangements as the Trustees may enter into with any person, firm, corporation or entity with respect to any property, whether real, personal or mixed; and to otherwise exercise any and all rights and powers which a trust organized and created pursuant to Title 60, Oklahoma Statutes, 1971, Sections 176, et seq., as amended, may now or hereafter exercise.

**7.** To fix, demand, and collect charges, rentals and fees for the property, buildings, and facilities of the Authority; to discontinue furnishings of properties, buildings and facilities to any person, firm or corporation, or public instrumentality, delinquent in the payment of any indebtedness to the Authority; to purchase and sell such supplies, goods and commodities as are incident to the operation of its properties.

**8.** To make and perform contracts of every kind, including management contracts, with any person, firm, corporation, association, trusteeship, municipality, county, state or federal government or any agency thereof; and, without limit as to amount, to draw, make, accept, endorse, assume, guarantee, account, execute and issue promissory notes, drafts, bills of exchange, acceptances, warranties, bonds, debentures, and to have issued a letter or letters of credit from any state or national bank, and other negotiable or non-negotiable instruments, obligations and evidences of unsecured indebtedness, or of indebtedness secured by mortgage, deeds of trust, or otherwise upon any or all property of the Authority and to pledge any or all income

of the Authority in the same manner and to the same extent as a natural person might or could do. To collect and receive any property, money, rents, or income of any sort and distribute the same or any portion thereof for the furtherance of the authorized Trust purposes set out herein.

**9.** To select depositories for the funds and securities of this Authority, any officer or employee having custody of funds of the Authority shall be bonded in such amount as may be determined according to the provisions of Title 60, Oklahoma Statutes, 1970, Section 178(a).

**10.** To compromise any debts or claims of or against the Authority and to adjust any dispute in relation to such debts or claims by arbitration or otherwise and pay any debts or claims against the Authority upon any evidence that seems to the Trustees to be sufficient. The trustees may bring any suit or action which in their judgment is necessary or proper to protect the interests of the Authority, or to enforce any claim, demand, or contract for the Authority; and they shall defend, in their discretion, any suit against the Authority, Trustees, employees, agents or servants thereof. They may compromise and settle any suit or action and discharge the same out of the Trust Estate, together with court costs and attorneys' fees. All such expenditures shall be treated as expenses of executing this Trust.

**11.** To do all other acts, in their judgment, necessary or desirable for the proper and advantageous management, investment and distribution of the Trust Estate and income therefrom.

The whole title, legal and equitable, to the properties of the Authority, is and shall be vested in the Trustees, as such title in the Trustees is necessary for their due execution of this Trust. Said Trustees shall have and exercise exclusive management and control of the Trust properties for the use and benefit of the Beneficiaries; but upon request shall submit for approval of any or all of its actions and transactions by the governing boards of the Beneficiaries.

**12.** To contract for the furnishing of any services or for the performance of any duties that they may deem necessary or proper, and pay for the same as they see fit; but in any case, said Trustees shall provide for an annual audit of the Authority Trust property and operations, by an independent auditor, one copy each of which shall be filed with the Mayor and Auditor of the City, and one copy of which shall be filed with the Board of Commissioners of Tulsa County, Oklahoma, and one copy shall be filed with the State Examiner and Inspector of Oklahoma, pursuant to the Oklahoma Public Trust Act. Provided, however, that the City or the County may order an audit of the Authority Trust property and its operations at any time by Certified Public Accountants, a Certified Municipal Accountant or a licensed public accountant at the expense of the Authority and such audit shall be filed as hereinbefore provided.

**13.** No purchases at any sale or lessee under a lease made by the Trustees shall be bound to inquire into the expediency, propriety, validity or necessite (sic) of such sale or lease or to see to or be liable for the application of the purchase or rental monies arising therefrom.

**14.** In the event a corporation, partnership or firm in which a Trustee has a substantial financial interest contracts with the Authority, such interest shall be disclosed by

said Trustee and shall be entered in the minutes of the Authority; provided, in the absence of fraud, no contract or other transaction shall be thereby affected or invalidated.

Provided, however, that no part of the net earnings, if any, of this Trust or any of its properties, whether real, personal or mixed, shall ever inure to the benefit of any private individual or Trustee, and provided further, that no substantial part of the activities of this Trust shall consist of carrying on propaganda for, or otherwise attempting to influence legislation, nor shall it participate in, or intervene in, including the publishing or distributing of statements or other and similar materials, any political campaign on behalf of any candidate for public office.

**15.** The Trustees shall cause an annual budget to be compiled of all anticipated and proposed expenditures, expenses and outlay of trust funds for the initial and thereafter annually ensuing fiscal years of the Authority. Such budget and all amendments thereto shall be promptly submitted to the City and the County and subject to their approval.

## ARTICLE VIII
## Beneficiaries of Trust

**1.** The Beneficiaries of this Trust shall be the City and the County under and pursuant to Title 60, Oklahoma Statutes, 1971, Section 176, et seq., and other statutes of the State of Oklahoma, presently in force and effect.

Trustor now declares that this Indenture may be altered, amended, revised or modified with the express written consent of the Trustor (if surviving, otherwise without it), the Trustees, the City and the County, which said written consent shall be evidenced by endorsement upon any such instrument of alteration, amendment, revision or modification; provided, that no such alteration, amendment, revision or modification shall take effect in such way as to impair the rights of the holder of any bond or other evidence of indebtedness of the Trust or party to whom the Trust is indebted in any way under written obligation of indebtedness.

**2.** The City and the County shall have no legal title, claim or right to the Trust Estate, its income, or any part thereof, or to demand or require any partition or distribution thereof, except as set forth hereinafter in this Trust Indenture. Neither shall said City or the County nor any agents thereof, have any authority, power or rights, whatsoever, to do or transact any business for, nor in behalf of, or binding upon the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees. The City and the County as Beneficiaries of this Trust, shall be entitled solely to the benefit of this Trust as administered by the Trustees hereunder, and at the termination of the Trust as herein provided and then only shall said City and the County receive the residue of the Trust Estate.

**3.** The Trustees, after fulfilling the purposes of this Trust and after paying all obligations of the Authority and Trust Estate and interest thereon and all the costs and expenses incident to the management, operation, maintenance and conservation of this Authority, shall then distribute the then remaining property, real, personal or mixed, to the Beneficiaries of the Trust, in, as nearly as possible, portions proportionate to the

contributions made by each beneficiary or on their behalf, to be used solely and exclusively for the purposes of constructing, furnishing, equipping, maintaining, improving and operating the parks and recreation areas established hereunder.

## ARTICLE IX
## Termination of Trust

This Trust shall terminate:

**1.** When the purposes set out in Article III of this Indenture shall have been fully executed; or

**2.** In the manner provided by Title 60, Oklahoma Statutes, 1971, Section 180.

Provided, however, that this Trust shall not be terminated by voluntary action, if there be outstanding fixed term indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

Upon the termination of the Trust, the Trustees shall proceed to wind up the affairs of this Authority, and after payment of all debts and obligations out of the monies and properties of the Trust Estate, to the extent thereof, shall distribute the residue of all property, real, personal or mixed, of the Trust Estate to the Beneficiaries hereunder in the manner provided in Article VIII, paragraph 3 of this Indenture. Upon final distribution, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE X
## Termination

The Trustees accept the Trust herein created and provided for and agree to carry out the provisions on their part to be performed. If any one or more of the powers or provisions provided in this Indenture to be performed on the part of the Trust or on the part of the Trustees shall be declared by any court of competent jurisdiction to be contrary to law, then such powers or provisions shall be null and void and shall be deemed separable from the remaining powers or provisions and shall in no way affect the enforceability of any other power or provision of this Indenture, or of any bonds, notes, or other evidences of indebtedness, issued hereunder.

IN WITNESS WHEREOF, the Trustor and the Trustees, have hereunto set their hands this 9th day of April, 1974.

/s/ Darrell J. Lowrance
TRUSTOR

/s/ William J. Wiseman, Jr.

/s/ Richard Johnson

/s/ Kathleen P. Westby

/s/ Travis Tillman

/s/ Marshall Nash

/s/ Leonard J. Eaton, Jr.

/s/ Carl C. Smith
TRUSTEES

[ACKNOWLEDGMENTS]

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENTS:

That the Board of Commissioners of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, for and on behalf of said Beneficiary in all respects in accordance with the terms of said Trust Indenture.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners this 9th day of April, 1974.

/s/ Robert J. LaFortune
MAYOR

ATTEST:

/s/ F.F. Campbell
City Auditor

APPROVED:

/s/ William M. Northcutt
Deputy City Attorney

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENTS:

That the Board of County Commissioners of Tulsa County, Oklahoma, a political subdivision of the State of Oklahoma, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, for and on behalf of the County of Tulsa, the said Beneficiary, in all respects in accordance with the terms of said Trust Indenture.

WITNESS my hand as Chairman of the said Board of County Commissioners of Tulsa County, Oklahoma, as authorized by Resolution dated this 10th day of April, 1974, and pursuant to direction of the said Board of County Commissioners of Tulsa County, Oklahoma.

BOARD OF COUNTY COMMISSIONERS
OF TULSA COUNTY, OKLAHOMA

/s/ Lewis Harris
CHAIRMAN

/s/ Robert Newhouse
COMMISSIONER

/s/ Burkett H. Wamsley
COMMISSIONER

ATTEST:

/s/ Etta Mae Estes
Chief Deputy County Clerk

## APPENDIX II AMENDMENT NUMBER ONE TO TRUST INDENTURE DATED APRIL 9, 1974, FOR RIVER PARKS AUTHORITY (SECTIONS 1303, 1304, 1305, AND 1306)

*("Exhibit A" in Ord. No. 19090)*

KNOW ALL PEOPLE BY THESE PRESENTS:

WHEREAS, the original Trustor, Darrell J. Lowrance, created a Trust named the RIVER PARKS AUTHORITY for the benefit of the City of Tulsa and Tulsa County, under Trust Indenture dated April 9, 1974, between the said Trustor and CARL SMITH, WILLIAM WISEMAN, MRS. GERALD WESTBY, TRAVIS FREEMAN, LEONARD EATON, RICHARD JOHNSON and MARSHALL NASH, referred to herein as Trustees; and

WHEREAS, said original Trust Indenture provides that "No Trustee who has served two consecutive terms of three years shall be eligible for further appointment as Trustee"; and

WHEREAS, the said Trustor, Darrell J. Lowrance, desires to amend the Trust Indenture to allow a Trustee, who has served two consecutive terms, to become eligible for subsequent non-consecutive terms of office after a period of time out of office; and

WHEREAS, said Trust Indenture can be amended by the Trustor with the approval of the successor Trustees and the approval of the beneficiaries.

NOW, THEREFORE, I, Darrell J. Lowrance, the undersigned original Trustor of the River Parks Authority Trust under Trust Indenture dated April 9, 1974 between me and the above named Trustees, do hereby propose the amendment of said Trust Indenture as appears below, subject to the approval of a majority of the successor Trustees STEPHEN J. JATRAS, JAMES W. PIELSTICKER, JAMES M. STURDEVANT, JILL TARBEL, AMBROSE SIMS, LOUIS LEVY, LEANNE K. HELMERICH, and subject to approval by the governing bodies of the beneficiaries City of Tulsa and Tulsa County.

**The second sentence of Paragraph 2 of Article VI, "The Trustees" is hereby amended to read as follows:**

**No Trustee who has served two consecutive terms shall serve a third consecutive term.**

IN WITNESS WHEREOF, this amendment to the Trust Indenture has been proposed by me on this 5th day of March, 1997.

/s/ Darrell J. Lowrance
TRUSTOR

APPROVAL OF BOARD OF TRUSTEES, approved in open meeting this 13th day of March, 1997.

/s/ Stephen J. Jatras
Chairman

ATTEST:

/s/ Jackie Bubenik
Executive Director

/s/ Mark D. Swiney
General Counsel

## APPROVAL BY CITY OF TULSA, BENEFICIARY

KNOW ALL PEOPLE BY THESE PRESENTS:

The City Council of the City of Tulsa, Oklahoma, a municipal corporation, hereby authorizes and approves the within an (sic) foregoing Amendment Number One to the River Parks Authority Trust Indenture dated April 9, 1974, as beneficiary of said Trust.

WITNESS my hand as Chairman of the City Council of the City of Tulsa, attested by the City Clerk of the City of Tulsa, Oklahoma, this 27th day of March, 1997.

/s/ Vickie Cleveland
Chairman of the Council

APPROVED by the Mayor of the City of Tulsa, this 3rd day of April, 1997.

/s/ M. Susan Savage
Mayor

ATTEST:

/s/ Michael P. Kier
City Clerk

/s/ David L. Pauling
City Attorney

## APPROVAL BY TULSA COUNTY, BENEFICIARY

KNOW ALL PEOPLE BY THESE PRESENTS:

The Board of County Commissioners of Tulsa County, State of Oklahoma, hereby authorizes and approves the within and foregoing Amendment Number One to the River Parks Authority Trust Indenture dated April 9, 1974, as beneficiary of said Trust.

WITNESS my hand as Chairman of the Board of County Commissioners of Tulsa County, attested by the Tulsa County Clerk, this 24th day of March, 1997.

BOARD OF COUNTY COMMISSIONERS
OF TULSA COUNTY, OKLAHOMA

/s/ Robert N. Dick
CHAIRMAN

ATTEST:

By:

/s/ Nancy Cooper, Deputy
County Clerk

APPROVED:

/s/ Gordon Edwards
District Attorney

## CHAPTER 14. EMERGENCY MEDICAL SERVICES AUTHORITY

Section 1400. Beneficial interest in Emergency Medical Services Authority accepted.
Section 1401. Mayor and Auditor authorized to endorse approval and acceptance of beneficial interest on Trust Indenture and record it in office of County Clerk.
Section 1402. Approval of amendment to Trust Indenture dated February 18, 1987.
Section 1403. Mayor and auditor authorized to endorse upon the amendment to Trust Indenture the approval of the City.
Section 1404. Approval of amended and restated Trust Indenture.
Section 1405. Mayor and Auditor authorized to endorse upon the Trust Indenture the approval of the City and acceptance of the beneficial interest.
Appendix I Trust Indenture Emergency Medical Services Authority (Sections 1400 and 1401) ("Exhibit A" in Ord. No. 13994).
Appendix II Amendment to the Trust Indenture Dated December 1, 1977, for Emergency Medical Services Authority (Sections 1402 and 1403) ("Exhibit A" in Ord. No. 16832).
Appendix III Amended and Restated Trust Indenture Emergency Medical Services Authority (Sections 1404 and 1405) ("Exhibit A" in Ord. No. 17295).

### Section 1400. Beneficial interest in Emergency Medical Services Authority accepted.

That the Emergency Medical Services Authority, created by Trust Indenture dated the 1st day of December, 1977, an executed copy of which Trust Indenture is hereto attached, marked "Exhibit A" and made a part hereof, wherein Mrs. Norma Eagleton, Mr. Michael E. Kerpan, Dr. Gerald E. Gustafson, Dr. Bert Bergland, Dr. Charles A. Farmer, Mr. Phil Goodwin, Mr. W. Richard Horkey, Mr. James Todd and Mrs. Carl Edmonds are designated trustees, and the City of Tulsa, Oklahoma, is designated as the sole beneficiary of said Emergency Medical Services Authority, is hereby approved, and the City of Tulsa hereby accepts the beneficial interest therein, and all of the terms and provisions of said Trust Indenture as authorized by the applicable statutes of the state of Oklahoma, and the City of Tulsa hereby agrees to be and become the sole beneficiary of said trust.

*(Ord. No. 13994)*

### Section 1401. Mayor and Auditor authorized to endorse approval and acceptance of beneficial interest on Trust Indenture and record it in office of County Clerk.

That the Mayor and the City Auditor of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture the approval of the City of Tulsa of said Trust Indenture creating the Emergency Medical Services Authority, and the City's acceptance of the beneficial interest therein and to cause said Trust Indenture to be recorded in the office of the County Clerk of Tulsa County, Oklahoma.

*(Ord. No. 13994)*

### Section 1402. Approval of amendment to Trust Indenture dated February 18, 1987.

The Trust Indenture dated the 1st day of December, 1977, is hereby amended pursuant to the terms of the Amendment to the Trust Indenture dated February 18, 1987, an executed copy of which is attached hereto as "Exhibit A" and made a part hereof.

*(Ord. No. 16832)*

### Section 1403. Mayor and Auditor authorized to endorse upon the amendment to Trust Indenture the approval of the City.

The Mayor and the City Auditor of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of the Amendment to the Trust Indenture the approval of the City of Tulsa of the Amendment to the Trust Indenture creating the Emergency Medical Services Authority, and to cause the Amendment to the Trust Indenture to be recorded in the office of County Clerk of Tulsa County, Oklahoma.

*(Ord. No. 16832)*

### Section 1404. Approval of amended and restated Trust Indenture.

The Emergency Medical Services Authority, created by the Amended and Restated Trust Indenture dated the 23rd day of March, 1990, attached as "Exhibit A" and made a part hereof, (wherein the above-referenced individuals are designated as trustees, and the City of Tulsa and the City of Oklahoma City are designated as beneficiaries of the Emergency Medical Service Authority), is hereby approved.

*(Ord. No. 16832)*

### Section 1405. Mayor and Auditor authorized to endorse upon the Trust Indenture the approval of the City and acceptance of the beneficial interest.

The Mayor and the City Auditor of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of the Trust Indenture the approval of the City of Tulsa of the Trust Indenture creating the Emergency Medical Services Authority, and to cause the Trust Indenture and the City's acceptance of the beneficial interest therein to be recorded in the office of County Clerk of Tulsa County, Oklahoma.

*(Ord. No. 17295)*

## APPENDIX I TRUST INDENTURE EMERGENCY MEDICAL SERVICES AUTHORITY (SECTIONS 1400 AND 1401)

*("Exhibit A" in Ord. No. 13994)*

KNOW ALL MEN BY THESE PRESENTS:

THIS TRUST INDENTURE, dated this 1st day of December, 1977, by MR. FRANCIS F. CAMPBELL, hereinafter referred to as "Trustor," and MRS. NORMA EAGLETON as Commissioner of Finance and Revenue for the City of Tulsa; MR. MICHAEL E. KERPAN as Police and Fire Commissioner; DR. GERALD E. GUSTAFSON, M.D., Tulsa, Oklahoma; DR. BERT BERGLAND, D.O., Tulsa, Oklahoma; DR. CHARLES A. FARMER, M.D., Tulsa, Oklahoma; MR. PHIL GOODWIN, Tulsa, Oklahoma; MR. RICHARD HORKEY, Tulsa, Oklahoma; MR. JAMES TODD, Tulsa, Oklahoma; and MRS. CARL EDMONDS, Tulsa, Oklahoma; to be known as "Trustees of the Emergency Medical Services Authority," and hereinafter referred to as "Trustees."

W I T N E S S E T H:

That in consideration of payment by Trustor to the Trustees of the sum of Ten and 00/100 Dollars ($10.00) and of the mutual covenants herein set forth, the said Trustees agree to hold, manage, invest, assign, convey and distribute, as herein provided, authorized and directed, such property as Trustor, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Authority or the Trustees hereof.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits and increases thereof unto said Trustees, and said Trustees' successors and assigns, but nevertheless in Trust, for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, and upon the following trusts, terms and conditions herein stated.

### ARTICLE I
### Creation of Trust

The undersigned Trustor creates and establishes a Trust for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, and for the public purpose hereinafter set forth, under the provisions of Title 60, Oklahoma Statutes, 1971, Sections 176 to 180 inclusive, the Oklahoma Trust Act and other applicable Statutes of the State of Oklahoma.

### ARTICLE II
### Name

The name of this Trust shall be EMERGENCY MEDICAL SERVICES AUTHORITY hereinafter referred to as "Authority." The Trustees shall conduct all business and execute all instruments, and otherwise perform the duties and functions required in the execution of this Trust.

### ARTICLE III
### Purposes of Trust

The purposes of this Trust are:

**1.** To assist the City of Tulsa to own, construct, finance, furnish, equip, maintain and operate, or on its own behalf, to own, construct, finance, furnish, equip, maintain and operate or cause to be operated an emergency medical services system for the inhabitants of the City of Tulsa.

**2.** To charge and collect fees for the use of such emergency medical services in accordance with the rates prescribed by the Emergency Medical Services Council and approved by the City of Tulsa.

**3.** In carrying out said public purposes to issue bonds, notes and other obligations in such manner and at such price as the Trustees may deem desirable and to secure the payment of such bonds, notes or other obligations by the pledge of all or any part of the rents and income of the Authority.

**4.** To hold, maintain and administer any leasehold rights in and to physical properties demised to the beneficiary or to the Trust Estate, and to comply with the terms and conditions of any such lease.

**5.** To provide funds for the costs of financing, acquiring, constructing, purchasing, equipping, maintaining, repairing, improving, enlarging, remodeling, holding, operating, administering and contracting for any or all of the aforesaid services, utilities, buildings, facilities and all properties, real, personal or mixed, needful for executing and fulfilling the Trust purposes as set forth in this Indenture and all other charges, costs and expenses necessarily incurred in connection therewith, and in so doing to incur indebtedness either unsecured or secured by all or any part of the Trust Estate and its revenues.

**6.** To expend all funds coming into the hands of the Trustees as revenue or otherwise for the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the aforesaid costs and expenses, and in payment of any other obligation properly chargeable against the Trust Estate and to distribute the remainder of such funds to the beneficiary municipality.

## ARTICLE IV
## Duration of Trust

This Trust shall have duration for the term of duration of the beneficiary and until such time as its purpose shall have been fulfilled or until it shall be terminated as hereinafter provided.

## ARTICLE V
## The Trust Estate

The Trust Estate shall consist of:

**1.** The funds and property presently in the hands of the Trustees, including the consideration as hereinabove recited.

**2.** Any and all leasehold rights demised to said Trustees for the purposes of this Trust.

**3.** Any and all money, property, real, personal or mixed, rights, choses in action, contracts, leases, privileges, immunities, licenses, franchises, benefits and all other things of value coming into the possession of the Trustees, pursuant to the provisions of this Indenture.

## ARTICLE VI
## The Trustees

**1.** There shall be nine (9) Trustees of this Trust:

**a.** Two of such Trustees shall be elected officers of the City of Tulsa, to wit: The Commissioner of Finance and Revenue and the Police and Fire Commissioner.

Such elected Trustees shall serve during their term of office and until their successors have been duly elected or appointed and qualified. In the event of a change in the form of the government of the City of Tulsa, successors to these Trustees shall be two other Trustees approved by the legislative body of the City of Tulsa under the new form of government, upon nomination of the Mayor of said City.

**b.** Dr. Bert Bergland, D.O., shall be a Trustee for a term of one year, commencing on the date of this indenture. Mrs. Carl Edmonds shall be a Trustee for a term of one year, commencing on the date of this indenture. Dr. Charles A. Farmer, M.D., shall be a Trustee for a term of two years, commencing on the date of this indenture. Mr. James Todd shall be a Trustee for a term of two years, commencing on the date of this indenture. Mr. W. Richard Horkey shall be a Trustee for a term of two years, commencing on the date of this indenture. Mr. Phil Goodwin shall be a Trustee for a term of three years, commencing on the date of this indenture. Dr. Gerald E. Gustafson, M.D., shall be a Trustee for a term of three years, commencing on the date of this indenture.

**c.** Successor Trustees shall be appointed by the Mayor, subject to the approval of the governing body of the City of Tulsa. Each Successor Trustee so appointed shall serve a term of three years, except those two Trustees who are elected officers of the City of Tulsa. Vacancies occurring otherwise than through the expiration of term shall be filled for the unexpired term in the same manner as that provided for the appointment as a successor to that position.

**d.** Each Successor Trustee duly appointed shall, without any further act or conveyance, become fully vested with all of the estate, properties, rights, powers, duties, and obligations of his predecessor hereunder, with like effect as if originally named as Trustee.

**e.** The seven (7) Trustees who are not members of the governing body of the City of Tulsa shall during their term be subject to removal only by action of the District Court of Tulsa County for cause shown.

**2.** In the event of the default in payment of principal or of interest on any indebtedness created by said Trustees or any default under any instrument securing or pursuant to which such debt be incurred, a Temporary Trustee or Receiver may be appointed, as shall be provided in any such instrument. Such Temporary Trustee or Receiver shall become, without any further act or conveyance, fully vested with all of the estate, properties, rights, powers, trusts, duties and obligations of his predecessors in Trust, with like effect as if originally named as Trustee herein. The Temporary Trustee or Receiver shall cease to have any power or authority upon the termination of all the defaults by which his appointment would have been authorized, and the permanent Trustees temporarily supplanted shall be automatically reinstated.

**3.** Bonds or other evidences of indebtedness to be issued by the Trustees shall not constitute an indebtedness of the City of Tulsa, nor personal obligations of the Trustees of the Authority, but shall constitute obligations of the Trustees of payable solely from the Trust Estate.

**4.** The Trustees, the City of Tulsa or any agency thereof, shall not be charged personally with any liability whatsoever by reason of any act of omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust

or in the operation of the Trust Estate; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate, shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**5.** No Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or the beneficiary in his or its capacity, nor can the beneficiary bind or obligate the Authority or any individual Trustee.

**6.** No Trustee shall be paid any compensation of any kind for his services as Trustee of this Authority, except that each such Trustee shall be reimbursed for actual expenses incurred in the performance of his duties as Trustee.

## ARTICLE VII
## Powers and Duties of the Trustees

Subject to the provisions and limitations otherwise provided in this Indenture, the Trustees shall have, in addition to the usual powers incident to their office, and the powers granted to them in other parts of this Trust Indenture, the following rights, powers, duties, authority, discretion and privileges, all of which may be exercised by them without any order or authority from any court:

**1.** To enter into and execute, purchase, lease, or otherwise acquire property, real, personal or mixed, franchises, contracts, leases, rights, privileges, benefits, choses in action, or other things of value and to pay for the same in cash, with bonds or other evidences of indebtedness or otherwise.

**2.** To make and change investments; to convert real into personal property and vice versa; to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem advisable, any or all of the property in the Trust, real or personal; to borrow money or renew loans for the Trust; to refund outstanding bonded indebtedness; to execute therefor evidences of indebtedness and to secure the same by mortgage, lien, pledge or otherwise; to purchase property from any person and purchase or lease land and other property from the beneficiary and construct and equip buildings and facilities thereon; to lease, sublease or rent, on such terms as they deem advisable, the same to individuals, partnerships, associations, corporations, and others, including agencies of the United States of America, State of Oklahoma and political subdivisions of the State; to procure funds necessary for such purpose by the sale of bonds or other evidences of indebtedness and secure the payment of such bonds or other evidences of indebtedness by mortgage, lien, pledge or other encumbrance of such real and personal property, buildings and facilities owned or otherwise acquired, leased or controlled by Trustees and rentals, income, receipts and profits therefrom or from any other revenues associated with the ownership, operation or control of the property of the Authority; to lease or sublease on such terms as they deem advisable, any property of the Authority or of which the Trustees may become the owners or lessees.

**3.** To make and perform contracts of every kind, including management contracts with any person, firm, corporation, association, trusteeship, municipality or government; and, without limit as to amount, to draw, make, accept, endorse, assume, guarantee, account, execute and issue promissory notes, drafts, bills of exchange, acceptances, warranties, bonds, debentures, and to have issued a letter

or letters of credit from any state or national bank, and other negotiable or nonnegotiable instruments, obligations and evidences of unsecured indebtedness, or of indebtedness secured by mortgage, deeds of trust, or otherwise, upon any or all property of the Authority, and to pledge any or all income of the Authority in the same manner and to the same extent as a natural person might or could do. To collect and receive any property, money, rents, or income of any sort and distribute the same, or any portion thereof, for the furtherance of the authorized Trust purposes set out herein.

**4.** To employ such counsel, agents, servants and employees as they deem necessary or proper; and prescribe their duties and fix their compensation at such amounts as is customary and normal; and select depositories for the funds and securities of this Authority. Any officer or employee having custody of Authority funds shall be bonded in such amount as may be designated by the Trustees.

**5.** To compromise any debts or claims of or against the Authority, and to adjust any dispute in relation to such debts or claims by arbitration or otherwise, and pay any debts or claims against the Authority upon any evidence that seems to the Trustees to be sufficient. The Trustees may bring any suit or action which in their judgment is necessary or proper to protect the interests of the Authority or to enforce any claim, demand, or contract for the Authority; and they shall defend, in their discretion, any suit against the Authority of the Trustees or employees, agents or servants thereof. They may compromise and settle any suit or action and discharge the same out of Authority assets, together with court costs and attorney fees. All such expenditures shall be treated as expenses of executing this Trust.

**6.** To do all other acts, in their judgment, necessary or desirable for the proper and advantageous management, investment and distribution of the Trust Estate and income therefrom.

The whole title, legal and equitable, to the Authority property is and shall be vested in the Trustees as such title in the Trustees is necessary for their due execution of this Trust. Said Trustees shall have and exercise exclusive management and control of the Trust properties for the use and benefit of the beneficiary, but may agree for approval of any or all of its actions and transactions by the governing board of the beneficiary.

The Trustees may contract for the furnishing of any services or for the performance of any duties that they may deem necessary or proper, and pay for the same as they see fit; but in any case, said Trustees shall provide for an annual audit of the Authority property and operations, one copy each of which shall be filed with the Mayor and Auditor of the City of Tulsa, Oklahoma, and shall be open to public inspection.

No purchaser at any sale or lessee under a lease made by the Trustees shall be bound to inquire into the expediency, propriety, validity or necessity of such sale or lease or to see to or be liable for the application of the purchase or rental monies arising therefrom.

No contract, lease, indenture or agreement of any nature whatsoever to which the Trustees shall be a party shall be deemed ineffectual or invalid by reason of the fact that any one or more of such Trustees may execute such contract, lease, indenture or agreement for or on behalf of the other parties thereto.

Any firm of which any Trustee may be a member, or any public or private corporation, association, commission or agency of which any Trustee may be an officer, director or member, or in which any Trustee may be interested as the holder of any amount of its capital stock, or otherwise, or any Trustee individually may be a party to, or may be pecuniarly (sic), or otherwise, interested in any contract or transaction with this Authority or the Trustees thereof; and, in the absence of fraud, no contract or other transaction shall be thereby affected or invalidated; provided that in case a Trustee, individually, or a firm of which a Trustee is a member, or a corporation in which any Trustee owns a substantial amount of capital stock, is so interested that such fact shall be disclosed or shall have been known to the other Trustees.

## ARTICLE VIII
## Beneficiary of Trust

**1.** The Beneficiary of this Trust shall be the City of Tulsa, Oklahoma, a municipal corporation, under and pursuant to Title 60, Oklahoma Statutes, 1971, Sections 176 to 180, both inclusive. Trustor now declares that this Indenture shall be irrevocable from the moment it is signed by him and delivered to the Trustees, and that he shall thereafter stand without any power whatsoever, at any time to alter, amend, revise, modify, revoke or terminate any of the provisions of this Indenture, except with the consent of the City of Tulsa.

**2.** The Trustees, after fulfilling the purpose of this Trust and after paying all obligations of the Trust and interest thereon and all the costs and expenses incident to the management, operation, maintenance and conservation of this Trust, shall then pay the balance to the beneficiary of the Trust, to be used solely and exclusively for the purpose of constructing, furnishing, equipping, maintaining, improving and operating an emergency medical services system for the inhabitants of the City of Tulsa.

**3.** The City of Tulsa, Oklahoma, shall have no legal title, claim or right to the Trust Estate, its income or to any part thereof, or to demand or require any partition or distribution thereof, except as set forth in Paragraph (2) of Article VIII of this Trust Indenture. Neither shall said City of Tulsa, Oklahoma, or any agency thereof, have any authority, power or right, whatsoever, to do or transact any business for, or in behalf of, or binding upon, the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees. The City of Tulsa, Oklahoma, as beneficiary of this Trust, shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder; and at the termination of the Trust as herein provided, and then only, shall said City of Tulsa, Oklahoma, receive the residue of the Trust Estate for the declared public purposes.

## ARTICLE IX
## Termination of Trust

This Trust shall terminate:

**1.** When the purposes set out in Article III of this Indenture shall have been fully executed; or

**2.** In the manner provided by Title 60, Oklahoma Statutes, 1971, Section 180.

Provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of this Authority and, after payment of all debts and obligations out of Authority money, to the extent thereof, shall distribute the residue of the money and Authority property to the beneficiary hereunder; upon final distribution, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE X

## ACCEPTANCE

The Trustees accept the Trust herein created and provided for and agree to carry out the provisions on their part to be performed.

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands this 1st day of December, 1977.

| | |
|---|---|
| /s/ Francis F. Campbell<br>Trustor | /s/ W. Richard Horkey<br>Trustee |
| /s/ Norma Eagleton<br>Trustee | /s/ James H. Todd II<br>Trustee |
| /s/ Phyllis Edmonds<br>Trustee | /s/ Charles A. Farmer, M.D.<br>Trustee |
| /s/ Mike Kerpan<br>Trustee | /s/ Phil Goodwin<br>Trustee |
| /s/ Dr. Bert E. Bergland, D.O.<br>Trustee | /s/ Gerald E. Gustafson, M.D.<br>Trustee |

[ACKNOWLEDGMENT]

## ACCEPTANCE

KNOW ALL MEN BY THESE PRESENTS:

That the Board of Commissioners of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, for and on behalf of said beneficiary in all respects, in accordance with the terms of said Trust Indenture.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners, this 2nd day of December, 1977.

/s/ Robert J. LaFortune
Mayor

(SEAL)

ATTEST:

/s/ F. F. Campbell
City Auditor

## APPENDIX II AMENDMENT TO THE TRUST INDENTURE DATED DECEMBER 1, 1977, FOR EMERGENCY MEDICAL SERVICES AUTHORITY (SECTIONS 1402 AND 1403)

*(Ord. No. 1683)*

KNOW ALL MEN BY THESE PRESENTS:

THIS AMENDMENT TO THE TRUST INDENTURE, dated December 1, 1977, dated this 18th day of Feb., 1987, by MR. FRANCIS CAMPBELL, hereinafter referred to as "Trustor," and MR. GARY WATTS as Commissioner of Finance and Revenue for the City of Tulsa; MR. ROY GARDNER as Police and Fire Commissioner; DR. JOHN SACRA, M.D., Tulsa, Oklahoma; DR. PAUL KORO, D.O., Tulsa, Oklahoma; DR. CHARLES A. FARMER, M.D., Tulsa, Oklahoma; MR. W. RICHARD HORKEY, Tulsa, Oklahoma; MR. STEVE AUSTIN, Tulsa, Oklahoma; MR. IRA SCHLEZINGER, Tulsa, Oklahoma; and MRS. CARL EDMONDS, Tulsa, Oklahoma; to be known as "Trustees of the Emergency Medical Services Authority," and hereinafter referred to as "Trustees."

WITNESSETH:

WHEREAS, The Trustor and Trustees have found it necessary and expedient to further the public purposes of the Emergency Medical Services Ambulance Authority by amending the Trust Indenture dated December 1, 1977.

NOW, THEREFORE, BE IT RESOLVED that Article II, Section 1 of the Trust Indenture dated December 1, 1977 be amended to read as follows:

"ARTICLE III

PURPOSES OF TRUST

**1.** To assist the City of Tulsa to own, construct, finance, furnish, equip, maintain and operate, or on its own behalf, to own, construct, finance, furnish, equip, maintain and operate or cause to be operated an emergency medical services system for the inhabitants of the City of Tulsa and inhabitants of any other municipality or unincorporated area, and/or county."

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands this 18th day of Feb., 1987.

/s/ Francis F. Campbell
Trustor

/s/ Gary L. Watts
Trustee

/s/ W.R. Horkey
Trustee

/s/ Paul P. Koro
Trustee

/s/ Ira H. Schlezinger
Trustee

/s/ Phyllis Edmonds
Trustee

/s/ John C. Sacra
Trustee

/s/ Charles A. Farmer
Trustee

/s/ Steve Austin
Trustee

/s/ Roy Gardner
Trustee

ATTEST:

/s/ Ronald L. Payne
Deputy City Auditor

APPROVED:

/s/ Neal E. McNeill
City Attorney

## ACCEPTANCE

KNOW ALL MEN BY THESE PRESENTS:

That the Board of Commissioners of the City of Tulsa, Oklahoma, a municipal corporation, hereby approves the foregoing Amendment to the Trust Indenture dated December 1, 1977, for and on behalf of said beneficiary in all respects, in accordance with the terms of said Amendment.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners, this 2nd day of June, 1987.

/s/ Dick Crawford
Mayor

ATTEST:

/s/ Ronald L. Payne
Deputy City Auditor

[ACKNOWLEDGMENTS]

## APPENDIX III AMENDED AND RESTATED TRUST INDENTURE EMERGENCY MEDICAL SERVICES AUTHORITY (SECTIONS 1404 AND 1405)

*(Ord. No. 17295)*

KNOW ALL MEN BY THESE PRESENTS:

THIS AMENDMENT AND RESTATEMENT OF THE TRUST INDENTURE, dated December 1, 1977, as amended on February 18, 1987, dated this 23rd day of March, 1990, by PHILIP W. WOOD as City Auditor, hereinafter referred to as "Trustor" and GARY WATTS, ROBERT DICK, JOHN SACRA, M.D., PAUL KORO, D.O., CHARLES A. FARMER, M.D., MR. W. RICHARD HORKEY, MR. STEVE AUSTIN, MR. IRA SCHLEZINGER and MRS. PHYLLIS EDMONDS, to be known as the "Trustees of the Emergency Medical Services Authority" and hereinafter referred to as the "Trustees".

WITNESSETH:

That the Trustor and Trustees have found it desirable to further the public purposes of the Emergency Medical Services Authority (the "Authority" or the "Trust") by expanding the service area served by the Authority to include Oklahoma City, Oklahoma, its surrounding neighboring communities and the area between Tulsa and Oklahoma City in addition to the present service area of the Authority, which includes Tulsa, Oklahoma and its neighboring communities (collectively the "Service Area").

That the expansion of said Service Area to include Oklahoma City, Oklahoma, and its neighboring communities, and the area between Oklahoma City and Tulsa will result in economies of scale which will hold down the cost of emergency medical services to the users of such services, and strengthen disaster response capabilities.

That the City of Oklahoma City on December 5, 1989 found that an emergency exists with regard to its emergency medical ambulance services that imperils the lives of its citizens and threatens its public health, safety, peace and welfare.

That in consideration of payment by Trustor to the Trustees of the sum of Ten and 00/100 Dollars ($10.00) and of the mutual covenants herein set forth, the said Trustees agree to hold, manage, invest, assign, convey and distribute, as herein provided, authorized and directed, such property as Trustor, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Authority or the Trustees hereof.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits and increases thereof unto said Trustees, and said Trustees' successors and assigns, but nevertheless in Trust, for the use and benefit of the beneficiary or beneficiaries hereof, upon the trusts, terms and conditions herein stated.

NOW, THEREFORE, the Trust Indenture is hereby amended and restated in its entirety to read as follows:

### Article I. CREATION OF TRUST

The undersigned Trustor creates and establishes a Trust and amends and restates in its entirety the Trust Indenture dated December 1, 1977, as amended on February 18, 1987, to expand the Trust for the use and benefit of the Cities of Tulsa, Oklahoma, and Oklahoma City, Oklahoma, as beneficiaries of this Trust (the "Beneficiaries"), and for the public

purposes hereinafter set forth, under the provisions of Title 60, Oklahoma Statutes, 1981, Sections 176 to 180.3 inclusive, the Oklahoma Trust Act as may be amended or superseded from time to time, and other applicable Statutes of the State of Oklahoma.

## Article II. NAME

The name of this Trust shall be EMERGENCY MEDICAL SERVICES AUTHORITY (hereinafter referred to as "Authority"). The Trustees shall under such name conduct all business and execute all instruments, and otherwise perform the duties and functions required in the execution of this Trust.

## Article III. PURPOSES OF TRUST

The purposes of this Trust are:

**1.** To operate or cause to be operated and to furnish and supply an emergency medical services system for the furtherance of the general convenience, welfare, public health and safety of the inhabitants of the Cities of Tulsa and Oklahoma City, the Beneficiaries of this Trust), and for other jurisdictions including municipalities, counties, emergency medical service districts, school districts, Indian Nations or other legal entities which elect to contract with the Trustees of this Trust (which jurisdictions shall be called "Non-Beneficiary Member Jurisdictions").

**2.** To charge and collect user fees for the use of such ambulance services.

**3.** To acquire by lease, purchase or otherwise, and to hold, construct, install, equip, repair, enlarge, furnish, maintain and operate or otherwise deal with, any and all physical properties and facilities needful or convenient for utilization in executing or promoting the execution of the aforesaid Trust purposes or any of them, to lease, rent, furnish, provide, relinquish, sell or otherwise dispose of, or otherwise make provision for, any or all of said properties and facilities either in execution of any of the aforesaid Trust purposes or in the event that any thereof shall no longer be needful for such purposes.

**4.** To hold, maintain and administer any leasehold rights in and to physical properties of the Beneficiaries demised to the Trustees, and to comply with the terms and conditions of any such lease providing such rights.

**5.** To provide funds for the costs of financing, acquiring, constructing, installing, purchasing, equipping, maintaining, repairing, improving, enlarging, remodeling, holding, operating, administering, contracting for, disposing of or otherwise dealing with any or all of the aforesaid services, utilities, buildings, facilities and all properties, real, personal or mixed, needful for executing and fulfilling the Trust purposes as set forth in this Trust Indenture and for all other charges, costs and expenses necessarily incurred in connection therewith; and in so doing to incur indebtedness either unsecured or secured by all or any part of the Trust Estate and/or its revenues.

**6.** To expend all funds coming into the hands of the Trustees as revenue or otherwise for the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the aforesaid costs and expenses, and in

payment of any other obligation properly chargeable against the Trust Estate and to distribute the remainder of such funds to the Beneficiaries, in accordance with this Trust Indenture.

## Article IV. DURATION OF TRUST

Unless otherwise terminated as provided for herein, the duration of this Trust shall be for a period of ten (10) years beginning April 15, 1990. Provided, however, that after the first six (6) years, and every six (6) years thereafter, the then-remaining four (4) year duration of the Trust shall be automatically extended by six (6) additional years, unless either Beneficiary Jurisdiction nullifies such automatic extension by exercising its option to nullify the automatic extension during the "window of opportunity," which "window of opportunity" is hereby defined as the month of April occurring during every sixth year beginning with and including April 1996. In the event such automatic extension is so nullified, the Trust shall terminate upon the expiration of its then-remaining term in accordance with the provisions set forth in Subsection 5 of Article XI, hereof.

## Article V. THE TRUST ESTATE

The Trust Estate shall consist of:

**1.** The funds and property presently in the hands of the Trustees.

**2.** Any and all leasehold rights demised to said Trustees for the purposes of this Trust.

**3.** Any and all money, property, real, personal or mixed, rights, choses in action, contracts, leases, privileges, immunities, licenses, franchises, benefits and all other things of value coming into the possession of the Trustees, pursuant to the provisions of this Trust Indenture. The aggregate net worth of the Trust Estate as reflected in the annual audit shall be called the "Combined Capital Account." The Combined Capital Account shall be the sum of the two "Divisional Capital Accounts" established as provided for in Article IX, "Establishment of the Capital Accounts."

## Article VI. THE TRUSTEES

**1.** There shall be initially six voting Trustees of this Trust, one member who shall be ex officio the Mayor of the City of Tulsa, or the Mayor's designated representative who shall be a City of Tulsa employee serving a one year term, and five members appointed by the Mayor of Tulsa pursuant to the City Charter. Each of the following qualifications shall at all times be met by at least one member of the Board of Trustees:

**a.** At least one licensed attorney, engaged in private practice;

**b.** At least one person knowledgeable in health care administration (and who may be a physician);

**c.** At least one person knowledgeable in finance, accounting or business administration.

**d.** Once the above criteria have been met, remaining appointees shall possess such qualifications as may be deemed appropriate by the Mayor.

**2.** The Medical Director of the Medical Control Board, created pursuant to the EMS Interlocal Cooperation Agreement between the Beneficiaries and Non-Beneficiary Member Jurisdictions, shall serve, ex officio, without voting rights, as a Trustee, except that in the event of a tie vote, the Medical Director shall cast the deciding vote.

**3.** Excluding the Trustee who is the Mayor or the Mayor's designated representative as referred to in Article VI, Section 1, the five remaining Trustees shall be appointed by the Mayor of Tulsa to staggered terms as follows:

**a.** Two shall be appointed for three years;

**b.** Two shall be appointed for two years;

**c.** One shall be appointed for one year.

**4.** Upon election by the City Council of Oklahoma City to become a beneficiary of this Trust, and upon completion of the requirements set forth in Section 2 of Article IX, hereof, the Board of Trustees shall be expanded by two voting Trustees as follows:

**a.** The Mayor of Oklahoma City, ex officio, or the Mayor's designated representative, who shall be a resident of Oklahoma City and serve at the pleasure of the Mayor, shall occupy one such voting position. The other additional Trustee shall be appointed by the Mayor of Oklahoma City for a three year term and shall meet one of the qualifications for membership described above in Paragraph 1, Items (a) through (c), of this Article VI, and be confirmed by the City Council of Oklahoma City.

**b.** Thereafter, all Trustees shall be appointed by the Mayor of the Beneficiary Jurisdiction which is filling a vacancy on the Board of Trustees which arises from that City; each Trustee shall be appointed to a three year term, and each of the qualifications described in Paragraph 1, Items (a) through (c), of this Article VI, shall be met by at least one member of the Board of Trustees at all times.

**c.** At such time as the annual audited financial statement of the Authority indicates that Oklahoma City's share of the Combined Capital Account, as hereinafter defined, exceeds one-half (1/2) of the Tulsa share of the Combined Capital Account, Oklahoma City shall be entitled to appoint one additional Trustee, and Tulsa entitled to appoint one less Trustee, on the next Tulsa appointment date.

**d.** At such time as the annual audited financial statement of the Authority indicates that Oklahoma City's share of the Combined Capital Account equals or exceeds Tulsa's share of the Combined Capital Account, Oklahoma City shall be entitled to appoint one additional Trustee, and Tulsa entitled to appoint one less Trustee on the next Tulsa appointment date, so that each City at that time will be appointing an equal number of Trustees, that is, four Trustees each.

**e.** Any provision of Section (c) or (d) of this Paragraph 4 of this Article VI notwithstanding, at the end of forty-eight (48) months as a beneficiary, Oklahoma City shall have the right to contribute money, or assets acceptable to a majority of the incumbent Trustees, in such amount as to bring Oklahoma City's share of the Combined Capital Account to a level where Oklahoma City may appoint one more Trustee, pursuant to Section (c) or two more Trustees, pursuant to Sections (c) and (d) of this Paragraph 4 of this Article VI. Such right to contribute shall be available

to Oklahoma City annually thereafter, until such time as both Tulsa and Oklahoma City are entitled to appoint four Trustees each, and thereafter, Tulsa and Oklahoma City shall appoint four (4) Trustees each.

**5.** At such time (hereinafter called the "Trigger Date") as sufficient Non-Beneficiary Member Jurisdictions contract with the Authority under Paragraph 19 of Article VII for emergency medical services so as to add a total population of 100,000 persons to the Authority's service area, the number of voting Trustees shall be increased by two persons, so that the total Trustees shall be ten (10) voting members. Such Trustees positions shall be filled by the Non-Beneficiary Member Jurisdictions as follows:

**a.** For purposes of representation on the Board of Trustees, each Non-Beneficiary Member Jurisdiction shall be associated with either the "Eastern Division" (i.e., communities east of Stroud) or with the "Western Division" (i.e., communities west of Stroud). Should Stroud become a Non-Beneficiary Member Jurisdiction, Stroud shall be associated with the Western Division. (See Exhibit A: Map of Eastern and Western Division)

**b.** The Non-Beneficiary Member Jurisdictions within each of these two Divisions shall then choose their respective representatives on the Board of Trustees as follows:

**1.** Each Non-Beneficiary Member Jurisdiction within a Division shall be entitled to appoint one person to be a member of a Selection Committee. Voting on the Selection Committee shall be on a one vote per member basis.

**2.** No later than one month after the Trigger Date, the Selection Committee shall compile a list of three persons, who are eligible and who possess one of the areas of expertise required of Trustees, as listed in Article VI, Section 1, Items (a), (b), and (c). The list of three persons shall be called the "Candidates List."

**3.** The Candidates List shall be submitted no later than forty-five (45) days after the Trigger Date to the governing body of each Non-Beneficiary Member Jurisdiction.

**4.** Each such governing body shall cast its vote for one of the eligible candidates on the Candidates List. The governing body of each Non-Beneficiary Member Jurisdiction shall be entitled to cast all of the number of votes which corresponds to the number of residents residing in that jurisdiction as most recently published by the United States Census Bureau.

**5.** The candidate receiving the most votes shall be certified as the winner of the election to that Trusteeship. The Selection Committee shall forward the certified results of the election to the incumbent Trustees. Those Trustees shall receive and certify the results, and thereupon the elected person shall be entitled to become a Trustee for a three year term of office, which term need not coincide with the terms of offices of Trustees appointed by Beneficiary Jurisdictions.

**6.** Thereafter, every three years, the Non-Beneficiary Member Jurisdictions in each Division shall follow the procedure set forth above to select the Trustee who represents the Non-Beneficiary Member Jurisdictions of that Division.

**6.** Except for the initial shorter terms described above, and except for Mayors of the Beneficiary Jurisdictions and Trustees serving at the pleasure of the respective Mayors of the Beneficiary Jurisdictions, the terms of office of all members of the Board of Trustees shall be for a period of three years.

**7.** No Trustee shall have any interest, financial or otherwise, either directly or indirectly, in any firm or organization which is a bidder for any competitively awarded contract, or in any firm or organization which contracts to provide ambulance service to the Authority.

**8.** Any Trustee who fails to attend any three consecutive, regularly scheduled Board meetings or who fails to attend at least six regularly scheduled meetings in any twelve month period, without a reasonable and valid reason for such absence shall be deemed to have resigned from the Board.

**9.** The Trustees shall be subject to removal for cause shown by action of a District Court having jurisdiction over this Trust.

**10.** Each Successor Trustee duly appointed shall, without any further act or conveyance, become fully vested with all of the estate, properties, rights, powers, duties, and obligations of his predecessor hereunder, with like effect as if originally named as Trustee.

**11.** In the event of the default in payment of principal or of interest on any indebtedness created by said Trustees or any default under any instrument securing or pursuant to which such debt be incurred, a temporary trustee or receiver may be appointed, as shall be provided in any such instrument. Such temporary trustee or receiver shall, upon subscribing the required oath of office, become, without any further act or conveyance, fully vested with all of the estate, properties, rights, powers, trusts, duties and obligations of his predecessors in Trust, with like effect as if originally named as Trustee herein. The temporary trustee or receiver shall cease to have any power or authority upon the termination of all the defaults by which his appointment would have been authorized, and the permanent Trustees temporarily supplanted shall be automatically reinstated.

**12.** Bonds or other evidence of indebtedness to be issued by the Trustees shall not constitute an indebtedness of the Beneficiaries, nor personal obligations of the Trustees of the Authority, but shall constitute obligations of the Trustees payable solely from the Trust Estate.

**13.** The Trustees, the Beneficiaries of any agency thereof, shall not be charged personally with any liability whatsoever by reason of any act or omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trust Estate; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate, shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**14.** No Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or the Beneficiaries in his or their capacity, nor can the Beneficiaries bind or obligate the Authority or any individual Trustee.

**15.** No Trustee shall be paid any compensation of any kind for services as Trustee of this Authority, except that each such Trustee may be reimbursed for actual expenses incurred in the performance of his duties as Trustee.

**16.** Any Trustee shall remain a member of the Board of Trustees only so long as he remains a resident of the service area of his appointing authority, and continues to fulfill the area of expertise related to his original appointment, if applicable.

**17.** In the event of a vacancy in any Trusteeship, (except that appointment of a temporary trustee or receiver governed by Paragraph 11 of this Article VI shall not be deemed a vacancy), the Trustees shall certify the fact of said vacancy to the appropriate appointive or elective power and a successor Trustee shall be elected or appointed for the unexpired term in the same manner as hereinabove provided. In the event that the aforesaid appointing or elective power, as above set forth, shall fail effectively to appoint or elect a successor Trustee or said appointee or successful candidate shall fail to qualify as a Trustee within sixty (60) days next following the expiration of the fixed term of an incumbent Trustee or within thirty (30) days next following the certification of the fact of existence of a vacancy the power of appointment of a successor Trustee shall be vested in the then remaining incumbent Trustee or Trustees.

**18.** The determination of the right of any person to qualify as a Trustee hereunder (except a temporary trustee or receiver referred to in Paragraph 11 of this Article VI), shall be vested exclusively in the incumbent Trustees, and their determination shall be final.

**19.** Each Trustee qualifying under this instrument shall continue as such until his successor shall have qualified as provided in Paragraph 21 of this Article VI.

**20.** The determination of the fact of vacancy shall be vested exclusively in the remaining Trustee or Trustees and his or their determination of such fact shall be conclusive; and, in the event that such a vacancy shall be determined to exist, the remaining Trustee or Trustees may fill such vacancy pending qualification, as provided in Paragraph 21 of this Article VI, of the person entitled so to do.

**21.** All Trustees, and any temporary trustee or receiver appointed hereunder, shall qualify by written acceptance of all of the terms of this instrument, duly acknowledged and filed in the office of the County Clerk of Tulsa and Oklahoma Counties, Oklahoma, and by subscribing and filing such oaths as shall be required by law of public officers of the State of Oklahoma.

**22.** The acceptance of the office of Trustee of this Trust shall not constitute the Trustees, hereunder, permanent or temporary, or both, to be in partnership or association, but each shall be an individual and wholly independent Trustee only.

**23.** Notwithstanding any provision of this instrument which shall appear to provide otherwise, no Trustee or Trustees shall have any power or authority to bind or obligate any other Trustee, or any Beneficiary of this Trust, in his or its individual capacity.

**24.** All persons, firms, associations, trusteeships, corporations, municipalities, governments, and all agents, agencies and instrumentalities thereof, contracting with any Trustee or Trustees, permanent or temporary or both, shall take notice that all expenses and obligations, and all debts, damages, judgments, decrees or liabilities incurred by any Trustee or Trustees, permanent or temporary or both, and any of the foregoing incurred by any agent, servant, or employee of any such Trustee or Trustees, in the execution of the purposes of this Trust, whether arising from contract or tort, shall be solely chargeable to, and payable out of the Trust Estate. In no event shall any Trustee, permanent or temporary, or any Beneficiary of this Trust, be in any manner individually liable for any injury or damage to persons or property, or for breach of

contract or obligation, caused by, arising from, incident to or growing out of the execution of this Trust; nor shall they, or any of them, be liable for the acts or omissions of each other or of any agent, servant or employee of the aforesaid Trustees, or of another such Trustee: PROVIDED, HOWEVER, that the foregoing shall not apply to any willful or grossly negligent breach of trust of any said Trustee.

## Article VII. POWERS AND DUTIES OF THE TRUSTEES

Subject to the provisions and limitations otherwise provided in this Trust Indenture, the Trustees shall have, in addition to the usual powers incident to their office, and the powers granted to them in other parts of this Trust Indenture, the following rights, powers, duties, authority, discretion and privileges, all of which may be exercised by them without any order or authority from any court:

**1.** To own, construct, finance, furnish, equip and maintain, all property, equipment, facilities, and vehicles necessary to operate, or cause to be operated, an emergency medical services system throughout the Service Area of the Authority.

**2.** To enter into and execute, purchase, lease or otherwise acquire property, real, personal or mixed, franchises, contracts, leases, rights, privileges, benefits, potential lawsuits, or other things of value and to pay for the same in cash, with bonds or other evidences of indebtedness or otherwise.

**3.** To make and change investments; to convert real into personal property and vice versa; to own, hold, manage, lease, improve, exchange, dispose of or sell, at public or private sale, upon such terms as they deem advisable, any or all of the property in the Trust, real or personal; to borrow money or renew loans for the Trust; to refund outstanding bonded indebtedness; to execute therefor evidences of indebtedness and to secure the same by mortgage, lien, pledge or otherwise; to purchase property from any person and purchase or lease land and other property from any Beneficiary and construct and equip buildings and facilities thereon; to lease, sublease or rent, on such terms as they deem advisable, the same to individuals, partnerships, associations, corporations, and others, including agencies of the United States of America, State of Oklahoma and political subdivisions of the State; to procure funds necessary for such purpose by the sale of bonds or other evidences of indebtedness by mortgage, lien, pledge or other encumbrance of such real and personal property, buildings and facilities owned or otherwise acquired, leased or controlled by Trustees and rentals, income, receipts and profits therefrom or from any other revenues associated with the ownership, operation or control of the property of the Authority; to lease or sublease on such terms as they deem advisable, any property of the Authority or of which the Trustees may become the owners or lessees.

**4.** To make and perform contracts of every kind necessary to fulfill or accomplish the purposes of the Trust, including management contracts with any person, firm, corporation, association, trusteeship, municipality or government; and, without limit as to amount, to draw, make, accept, endorse, assume, guarantee, discount, execute and issue promissory notes, drafts, bills of exchange, acceptances, warrants, bonds, debentures, and to have issued a letter or letters of credit from any state or national bank, and other negotiable or non-negotiable instruments, obligations and evidences of unsecured indebtedness, or of indebtedness secured by

mortgage, deeds of trust, or otherwise, upon any or all property of the Authority, and to pledge any or all income of the Authority in the same manner and to the same extent as a natural person might or could do. To collect and receive any property, money, rents or income of any sort and distribute same, or any portion thereof, for the furtherance of the authorized Trust purposes set out herein.

**5.** To employ an Executive Director, and such counsel, agents, servants and employees as they deem necessary or proper; and to prescribe their duties and fix their compensation at such amounts as the Trustees deem appropriate; and select depositories for the funds and securities of this Authority. Any officer or employee having custody of Authority funds shall be bonded in such amount as may be specified by the Trustees.

**6.** To compromise any debts or claims of or against the Authority; and to adjust any dispute in relation to such debts or claims by arbitration or otherwise, and pay any debts or claims against the Authority upon any evidence deemed by the Trustees to be sufficient. The Trustees may bring any suit or action which in their judgment is necessary or proper to protect the interests of the Authority or to enforce any claim, demand, or contract for the Authority; and they shall defend, in their discretion, any suit against the Authority or the Trustees or employees, agents or servants thereof. They may compromise and settle any suit or action and discharge the same out of Authority assets, together with court costs and attorney fees. All such expenditures shall be treated as expenses of executing this Trust.

**7.** To do all other acts, in their judgment, necessary or desirable for the proper and advantageous management, investment and distribution of the Trust Estate and income therefrom.

**8.** The whole title, legal and equitable, to the Authority property is and shall be vested in the Trustees as such title in the Trustees is necessary for their due execution of this Trust. Said Trustees shall have and exercise exclusive management and control of the Trust properties for the use and benefit of the Beneficiaries, but may apply for approval of any or all of its actions and transactions to a court having jurisdiction.

**9.** The Trustees may contract for the furnishing of any services or for the performance of any duties that they may deem necessary or proper, and pay for the same as they see fit.

**10.** The Trustees shall obtain monthly financial reports (staff-prepared); and an annual certified audit of the Authority's property and operations as evidenced in the Authority's financial statements, including changes in the Capital Account of each Division, and certifying changes in the individual shares of the applicable Divisional Capital Account of each Beneficiary Jurisdiction and Non-Beneficiary Member Jurisdiction.

**11.** No purchaser at any sale or lessee under a lease made by the Trustees shall be bound to inquire into the expediency, propriety, validity or necessity of such sale or lease or to see to or be liable for the application of the purchase or rental monies arising therefrom.

**12.** No contract, lease, indenture or agreement of any nature whatsoever to which the Trustees shall be a party shall be deemed ineffectual or invalid by reason of the fact that any one or more of such Trustees may execute such contract, lease, indenture or agreement for or on behalf of the other parties thereto.

**13.** The Trustees shall collect and receive all property, money, rents and income of all kinds belonging to or due the Trust Estate, and shall distribute the same, or any portion thereof, solely for the purposes, and the furtherance of the purposes, set forth in Article III of this instrument, and not otherwise.

**14.** The Trustees shall take and hold title to all property at any time belonging to the Trust in the names of the Trustees or in the name of the Trust and shall have and exercise exclusively the management and control of the same, for the use and benefit of the Beneficiaries, as provided herein, in the execution of the purposes of this Trust; and the right of the Trustees to manage, control and administer the said Trust, its property, assets and business shall be absolute and unconditional and free from any direction, control or management by the Beneficiaries, or any person or persons whomsoever.

**15.** The Trustees may employ such agents, servants and employees as they deem necessary, proper or convenient for the execution of the purposes of this Trust, and prescribe their duties and fix their compensation.

**16.** The Trustees, by Resolution, may divide the duties of the Trustees hereunder, delegating all or any part of such duties to one or another of the Trustees as they deem proper; but, where a specific duty is not so delegated, a majority of the Trustees must act for the Trust.

**17.** No bond shall be required of the Trustees, or any of them, unless they shall deem the same proper and shall provide therefor by Resolution.

**18.** All proceedings of the Trustees shall be taken in public meeting only, and the Trustees shall make, or cause to be made, a written record of all of their proceedings. All records of the Trust shall be kept at the principal office of the Trust and shall be subject to inspection during customary business hours as are public records of the State of Oklahoma.

**19.** The Trustees may, at the option of the Board of Trustees, contract to provide emergency medical services to any jurisdiction, subject to the following requirements:

**a.** The jurisdiction shall adopt the Uniform Ordinance for Emergency Medical Services, as approved by the Authority; and execute the EMS Interlocal Cooperation Agreement establishing the Medical Control Board and setting forth its powers and duties; and

**b.** The jurisdiction shall arrange for the availability of first responder services throughout the jurisdiction within eighteen (18) months after signing said contract with the Authority. Such first responder services may be furnished by the jurisdiction's existing fire department or law enforcement agency, where such resources are available, or may be provided on a contract basis by a neighboring jurisdiction, or may be developed using volunteer resources.

**c.** In cases where serving an applicant jurisdiction at the Authority's standard level of response time reliability would result in a cost per patient transport in that jurisdiction in excess of the Authority's typical cost per patient transport in its existing Service Area, the Trustees may require special financial arrangements or reduced response time requirements, in their sole discretion, prior to contracting with the applicant jurisdiction on behalf of this Trust.

Provided, however that the municipalities listed in Exhibit B shall be exempt from the special financial arrangement requirement until June 1, 1990. After June 1, 1990, the Trustees may charge an initial capitalization fee to applicants for status as Non-Beneficiary Member Jurisdictions, such fee to be equal to the average per capita share of the Combined Capital Account (i.e., the Combined Capital Account divided by the population of the Authority's entire service area) multiplied by the population of the applicant jurisdiction.

**20.** Any other power in this Trust Indenture to the contrary notwithstanding, and except for services rendered pursuant to a Mutual Aid Agreement, as defined in the Uniform Ordinance for Emergency Medical Services, the Trustees shall not have the authority or power to provide ambulance service to any municipality, county, emergency medical services district, school district, or Indian Nation unless said municipality, county, emergency medical services district, school district, or Indian Nation has met the qualifications to become a Beneficiary or a Non-Beneficiary Member Jurisdiction, as set forth in Section 19, immediately above. Provided, however, that in cases where an applicant for membership lacks the legal authority to regulate the conduct of ambulance services within its borders, the Board of Trustees may, at its option, waive the requirement to adopt and enforce the Uniform Ordinance for Emergency Medical Services, so long as the lack of such regulation does not impair the effective operation of the emergency medical services system in that jurisdiction, or create economic losses to the Authority in rendering services within that jurisdiction.

**21.** Any other provision in this Trust Indenture to the contrary notwithstanding, the Trustees shall at all times employ by contract, a competitively selected operations contractor (hereinafter called the "Operations Contractor"), to manage and operate the dispatching and field operations of the Authority's emergency medical services system; except that in the event of an emergency in which the public health and safety are threatened by the inadequate performance of any existing Operations Contractor or by the absence of qualified bids at reasonable cost for the performance of the required services, the Trustees may cause the Authority to act as Operations Contractor for the duration of the emergency, but in no event for longer than two consecutive years during any single episode. During any such period, the Trustees shall cause the Authority to conduct a bid process, sole-source negotiation or otherwise to proceed to obtain a qualified Operations Contractor.

**22.** Not less than one year prior to the expiration of each Operations Contract, the Trustees shall announce and nationally advertise a competitive procurement process and shall release the relevant request for proposal to potential bidders.

## Article VIII. BENEFICIARIES OF TRUST

**1.** The Beneficiaries of this Trust shall be the City of Tulsa, Oklahoma and, upon election by its City Council to become a Beneficiary under this Trust Indenture, the City of Oklahoma City, Oklahoma.

**2.** This Amended Trust Indenture shall be irrevocable from the moment it is signed by Trustor and delivered to the Trustees, and Trustor shall thereafter stand without any power whatsoever, at any time to alter, amend, revise, modify, revoke or terminate any

of the provisions of this Indenture, except with the consent of all of the Trustees and the governing body of the City of Tulsa, Oklahoma, and upon the election by its City Council to become a beneficiary, the City of Oklahoma City, Oklahoma.

**3.** The Beneficiaries shall not have any legal title, claim or right to the Trust Estate, its income or to any part thereof, or to demand or require any partition or distribution thereof. The Beneficiaries, or any agency thereof, shall not have any authority, power or right, whatsoever, to do or transact any business for, or in behalf of, or binding upon, the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees. The Beneficiaries of this Trust shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder; and at the termination of the Trust as herein provided, and then only, shall said Beneficiaries receive the residue of the Trust Estate for the declared public purposes.

## Article IX. ESTABLISHMENT OF THE CAPITAL ACCOUNTS

**1.** The Authority shall establish an "Eastern Division Capital Account" and a "Western Division Capital Account." The Capital Account of each such Division shall record that portion of the Combined Capital Account (i.e., Authority's net worth) which is attributable to that Division's economic activity. The geographic definition of these Divisions shall be as set forth in Section 5 (a) of Article VI.

**2.** Oklahoma City's application to become a Beneficiary Jurisdiction shall be effective only upon completion of the following steps. If the following steps fail to occur, Oklahoma City shall not become a Beneficiary Jurisdiction, and all provisions of this Trust Indenture relating to the Western Division, and to Non-Beneficiary Member Jurisdictions of the Western Division, shall be of no effect.

**a.** The entire Eastern Division's audited net worth as of June 30, 1990 shall be credited to Tulsa's share of the Eastern Division Capital Account.

**b.** Effective April 15, 1990 (the "Closing Date"), all of the assets and liabilities of the Central Oklahoma Ambulance Trust (hereinafter called "COAT") shall be transferred to the Oklahoma City Municipal Facilities Authority (hereinafter called "OCMFA").

**c.** On the Closing Date, COAT's assets and liabilities listed within the Transfer Agreement attached hereto as Exhibit C, "Transfer Agreement," shall be transferred to the Authority by OCMFA, and the Authority shall then immediately assume responsibility for the provision of ambulance services throughout the Authority's expanded Service Area.

**d.** COAT's assets and liabilities to be included in the Transfer Agreement shall include all of COAT's assets and liabilities as shown on COAT's audited financial statement as of the Closing Date, excluding the following:

**1)** COAT's property at 36th and Walker, to wit: All of Lots 23, 24, 25, 26, and 27 in Block Eighteen (18) Crown Heights Addition to Oklahoma City, Oklahoma County, Oklahoma; more commonly known as 501 Northwest 36th Street, Oklahoma City, Oklahoma.

**2)** The AidCar Division, including related assets and liabilities, and including contractual obligations to subscribers for provision of wheelchair transport services;

**3)** Those certain primary leases on the facilities at 1111 Classen Drive dated August 19, 1983, and June 19, 1987, between COAT and B.D. Eddie Enterprises, Inc., and any and all obligations related to the operation or occupancy of said facilities.

**4)** COAT's contractual obligations, if any, to provide ambulance services outside COAT's service area pursuant to membership agreements sold by COAT to persons residing outside COAT's service area as defined on the Closing Date.

**5)** Liabilities and contingent liabilities connected with lawsuits or potential lawsuits related to incidents occurring prior to the Closing Date;

**6)** Liabilities and contingent liabilities not specifically disclosed in the audited financial statement as of the Closing Date.

**e.** The Authority shall be responsible solely for those liabilities and obligations which are specifically disclosed in the Transfer Agreement, and shall be responsible for no other liabilities or obligations of COAT. However, the Authority shall if requested by OCMFA at the time of Closing execute a sublease with a term not to exceed four years for use of the facilities at 1111 Classen Drive, incorporating the same financial terms and conditions as those of the primary leases, subject to approval by the lessor.

**f.** The dollar values of the assets and liabilities transferred hereunder shall be established by a certified audit (the "Audit"), to be performed by the accounting firm of KPMG/Peat Marwick, at no cost to the Authority. This audit shall be completed as soon after the Closing Date as is reasonably possible.

**g.** If the collective net value of the assets and liabilities transferred hereunder is less than zero, as determined by the Audit, the OCMFA shall either: contribute sufficient additional cash to increase the net value of the transferred assets and liabilities to a level not less than zero; or, re-assume a sufficient amount of the previously-transferred liabilities to achieve that same effect.

**h.** If the collective net value of the assets and liabilities transferred hereunder is greater than zero, the amount in excess of zero shall be credited to Oklahoma City's share of the Western Division's Capital Account.

**3.** Thereafter, an annual certified audit of the Authority shall be conducted in such a manner as to provide both a consolidated financial statement and a separate accounting of the financial performance of each of the two Divisions. The following general principles shall govern the allocation of costs and revenues between the two Divisions in preparing such financial Statements:

**a.** Except for expense items listed in Exhibit D, "Allocated Overhead Costs," all expenses incurred by the Authority shall be allocated to either the Eastern Division or the Western Division using generally accepted accounting principles ("GAAP").

**b.** The cost items listed in Exhibit D shall be allocated between the Divisions on a 50/50 basis through June 30, 1993, and thereafter shall be allocated on a pro-rata basis, based upon the relative patient transport volumes of the Divisions.

**c.** Base service monthly payments to the Operations Contractor, including stop-loss payments related to run volumes in excess of then-current Operations Contract

"trigger volumes," shall be allocated between the Divisions on a pro-rata basis, based upon relative patient transport volumes. All other payments to the Operations Contractor shall be allocated using GAAP.

**d.** Revenues from sales shall be allocated to the Divisions as earned. All other revenues shall be allocated between the Divisions using GAAP.

**4.** The annual change in net worth attributed to each Division, whether greater or lesser, shall be allocated to each Beneficiary Jurisdiction's and each Non-Beneficiary Member Jurisdiction's share of its Division's Capital Account on the basis of the relative percentage of patient transports originating within that jurisdiction, as a percentage of patient transports originating within that entire Division during that same accounting period.

**5.** The Authority shall strive to attain, and maintain, a "prudent net worth," which shall mean $20 (annually indexed to changes in Medical CPI) per capita of the combined populations of the Beneficiary Jurisdictions and Non-Beneficiary Member Jurisdictions as most recently officially reported by the United States Census Bureau.

**6.** At such time as any jurisdiction's (per capita) share of its Division's Capital Account exceeds $20 per capita of that jurisdiction's population, that jurisdiction may elect to employ such excess share of the Division's net worth for purposes of subsidizing services originating within that jurisdiction's boundaries, by contract with the Authority. This subsidization of services may be used only to reduce the cost of ambulance subscription memberships to residents of the contracting jurisdiction, the amount of such reduction to be determined by dividing the amount in excess of $20 per capita of population by the number of single family residential households on the tax rolls of that jurisdiction.

**7.** The Authority shall adopt sound business practices and accounting methods, appropriate to a governmental enterprise fund operation.

**8.** The Authority shall operate on a fiscal year, which shall begin on July 1 and end on June 30 of each year unless otherwise determined by the Trustees.

## Article X. WITHDRAWAL OPPORTUNITIES

**1.** In the event a Non-Beneficiary Member Jurisdiction experiences repeated and chronic failure by the Authority either to:

**a.** Provide the clinical quality of care established by the Medical Control Board in its System Standard of Care; or to

**b.** Comply with the applicable response time standards established in the Uniform Ordinance for Emergency Medical Services, after written notice to the Authority, and reasonable opportunity to correct such deficiencies;

That Non-Beneficiary Member Jurisdiction may withdraw from the Authority, as hereinafter provided, and such withdrawal shall be deemed to be "for cause."

**2.** Withdrawal for cause shall be upon the following terms and conditions:

**a.** The Non-Beneficiary Member Jurisdiction must give written notice to the Authority of its intent to invoke and withdraw pursuant to this section of this Trust Indenture; and

**b.** Upon a continued failure for the following three full months, after receipt by the Authority of the written notice described immediately above, and after a determination by the Medical Director and approved by a two-thirds (2/3) affirmative vote of the Medical Control Board that the alleged chronic failure to perform has occurred and has not been corrected during such full three months period, the jurisdiction shall be deemed to have withdrawn from the Authority, effective at the end of such three months period.

**3.** In the event a Non-Beneficiary Member Jurisdiction withdraws for cause, that jurisdiction shall receive its portion of its Divisional Capital Account in three equal annual payments, the first payment to be made thirty days after the effective date of its withdrawal and on the first and second anniversaries of such date.

**4.** In the event a Non-Beneficiary Member Jurisdiction chronically fails to enforce the Uniform Ordinance for Emergency Medical Services, or fails to participate in the first responder program, determined by the Authority in its sole discretion, the Authority may terminate that jurisdiction's membership upon the following terms:

**a.** The Authority shall give written notice to the governing body of the jurisdiction that the Authority intends to invoke this section of the Trust Indenture;

**b.** Upon continued failure for the following three full months after receipt by the jurisdiction of the written notice described immediately above, the Authority may terminate that jurisdiction's membership by giving written notice to the jurisdiction, to be effective ten days after receipt of said notice by the governing body of the jurisdiction.

**c.** Provided, however, that said jurisdiction may appeal the Authority's decision to terminate the jurisdiction's membership by requesting a hearing on the matter by the Medical Control Board. The decision of the Authority shall stand unless reversed by a two-thirds (2/3) vote by the Medical Control Board.

**d.** In the event a Non-Beneficiary Member Jurisdiction is terminated pursuant to this Section 4, or withdraws voluntarily without cause, that jurisdiction shall forfeit all right, title, interest or claim to any asset, or combination of assets of both the Combined Capital Account and its Division's Capital Account.

## Article XI. TERMINATION OF TRUST

This Trust shall terminate:

**1.** If the purposes set out in Article III of this Indenture shall have been fulfilled.

**2.** The Trustees, after fulfilling the purposes of this Trust and after paying all obligations of the Trust and any interest due thereon and all the costs and expenses incident to the management, operation, maintenance and conservation of this Trust, and after liquidating all remaining assets of the Trust shall then distribute to each Beneficiary and Non-Beneficiary Member Jurisdiction a percentage share of the residue of the Trust Estate, if any, equal to that jurisdiction's percentage share of the Combined Capital Account (as herein defined) as of the end of the most recently completed fiscal year.

**3.** The method of termination shall be as provided by Title 60, Oklahoma Statutes, 1981, Section 180, as may be amended or superseded from time to time.

**4.** Provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

**5.** In the event this Trust is terminated by action of a Beneficiary Jurisdiction in accordance with provisions set forth in Article IV, hereof, such termination shall be in accordance with the requirements set forth in Title 60, Oklahoma Statutes, 1981, Section 180, as may be amended or superseded from time to time, and shall be carried out in accordance with the following procedures:

**a.** All outstanding indebtedness and other obligations of the Trust which are not entirely allocated to a single Division must first be paid off.

**b.** Each asset of the Trust which is not entirely allocated to a single Division shall be liquidated or allocated to one of the Divisions by mutual consent of the Beneficiaries. If the Beneficiaries cannot agree on the disposition of an asset, the asset shall be sold and the proceeds, along with all liquid assets not previously allocated to a single Division, shall be divided between the Divisions on a pro-rata basis, based upon the relative size of the Division Capital Accounts.

**c.** Subject to approval by creditors, if any, all assets and liabilities then carried on the books of the Western Division shall be transferred to the City of Oklahoma City, or to an entity designated by the City of Oklahoma City. For purpose of this provision, the shares of that Division's Capital Account carried on the books in the name of Non-Beneficiary Member Jurisdictions shall be considered contingent liabilities. [See Item (e), below.]

**d.** Subject to approval by creditors, if any, all assets and liabilities carried on the books of the Eastern Division shall be transferred to the City of Tulsa, or to an entity designated by the City of Tulsa. For purpose of this provision, the shares of that Division's Capital Account carried on the books in the name of Non-Beneficiary Member Jurisdictions shall be considered contingent liabilities. [See Item (e), below.]

**e.** Each Beneficiary may then either: provide for continued delivery of ambulance services throughout the Service Area of its former Division; or, liquidate the transferred assets, distributing the proceeds in the following manner:

1. All transferred liabilities shall first be satisfied;
2. If the share of the Divisional Capital Account of any Non-Beneficiary Member Jurisdiction is less than zero, its negative share shall be distributed to reduce the shares of the Capital Accounts of all other Non-Beneficiary Member Jurisdictions within that Division on a pro-rata basis, based upon each jurisdiction's percentage share of combined shares of all Non-Beneficiary Member Jurisdictions.
3. The shares of the Capital Accounts of Non-Beneficiary Member Jurisdictions, as calculated upon completion of the liquidation process, shall then be reimbursed to the Non-Beneficiary Member Jurisdictions to the extent of available funds. If insufficient funds remain for full reimbursement, the

remaining funds shall be distributed among the Non-Beneficiary Member Jurisdictions on a basis proportional to their respective shares of total reimbursement which would otherwise be paid.

4. All funds then remaining shall revert to the Beneficiary.

## Article XII. ACCEPTANCE

The Trustees accept the Trust herein created and provided for and agree to carry out the provisions on their part to be performed.

## Article XIII. RATES

**1.** The Trustees shall set and annually adjust ambulance fees for services rendered.

**2.** Except as provided for in Section 5 of this Article, XIII, no rate increase adopted by the Trustees on their own initiative, shall be more than 90% of the increase in the Medical Consumer Price Index ("CPI"), over a period of time equal to the number of months since the last rate increase. The most recently published medical CPI figures then available for the same number of months as described in the preceding sentence shall be used to establish this limitation.

**3.** Excluding rate adjustments made pursuant to Section 5 of this Article XIII, in the event that the Trustees announce a rate increase in excess of that provided in Paragraph 2 of this Article XIII, such increase shall not become effective until approved affirmatively by the governing bodies of the Beneficiaries.

**4.** Effective April 15, 1990, fee-for-service rates charged by the Authority for services rendered in Beneficiary Jurisdictions and Non-Beneficiary Member Jurisdictions shall be the same as those charged by the Authority for services rendered in Tulsa as of April 15, 1990. Thereafter, rates charged throughout the Service Area shall be uniform, except that in the event collection experience in one Division is substantially inferior to that experienced in the other Division, the Authority shall charge higher fees in such other Division sufficient to offset the difference; and, except for differences resulting from rate adjustments made pursuant to Section 5 of this Article XIII. Provided, however, that the fees for services rendered in Non-Beneficiary Member Jurisdictions which have joined under Section (c) of Paragraph 19, Article VII, may vary from uniform fees set for that Division.

**5.** As of the Closing Date, the difference in Medicare reimbursement rates between the two Divisions, if any, shall be examined to determine the extent to which fees charged by the Authority in the Division experiencing the lower level of Medicare reimbursement shall be increased to offset the reduction in average net revenues per patient transport attributable to the difference in levels of Medicare reimbursement. Such adjustment, if any, shall be effective immediately. Thereafter, upon the annual issuance by Medicare of its reimbursement rates applicable in each Division, this analysis shall be repeated and adjustments made, if appropriate.

## Article XIV. MAJOR FINANCIAL THREATS

In the event the Trustees determine that either Division's financial stability is substantially threatened, the Trustees shall take such steps as are reasonable, necessary, and within the Authority's powers as set forth herein to minimize the adverse impact upon

that Division's financial status. If, however, such actions cannot reasonably be projected to resolve the threat to such Division's financial stability, the matter shall be submitted to the governing bodies of both Beneficiary Jurisdictions for their consideration. In the event the governing bodies of both Beneficiaries, at their option, adopt a resolution confirming that a substantial threat to the Division's financial stability, as defined under Paragraph 1, immediately below, does exist, the following emergency provisions shall be authorized:

**1.** For purposes of this provision a "substantial threat" shall mean:

**a.** A projected decline in the Division's Capital Account in excess of ten percent (10%) over a period of less than 12 months; or,

**b.** Projected operating losses extending over a multi-year period; or,

**c.** A projected decline in working capital reserves which, if continued, would deplete working capital entirely within a period of forty-eight (48) months or less.

**2.** If the existence of a substantial financial threat to a Division is confirmed by the Beneficiaries, the Authority shall offer each jurisdiction within that Division two options for participating in the restoration of financial stability, as follows:

Option a. Each jurisdiction shall be offered the option of entering into a subsidy agreement with the Authority providing for subsidy payment sufficient to both preserve the existing standard of care and to restore financial stability, the amount of such payment to be determined in accordance with the formula set forth in Section 3, of this Article XIV. The per capita amount of such subsidy option shall be the same for all jurisdictions within that Division.

Option b. Each jurisdiction shall also be offered the alternative of approving a reduction in the standard of response time reliability applicable within that jurisdiction; and such reduction shall be of sufficient magnitude as to produce projected operating cost savings equal to the amount of subsidy established under Option a, immediately above.

**3.** If a jurisdiction selects Option a, above, that jurisdiction's share of the subsidy requirement, and the method of payment, shall be determined as follows:

Step A. The Authority shall determine the amount of additional funds needed to resolve the financial threat to the Division, taking into consideration the savings resulting from reductions in response time requirements which have been agreed to by jurisdictions selecting Option b. This amount shall be referred to as the "emergency requirement."

Step B. The Authority shall then determine each jurisdiction's fair share of its Division's emergency requirement by apportioning the amount of the "emergency requirement" among all jurisdictions selecting Option a on a pro-rata basis, based on the population of each jurisdiction as a percentage of the combined population of all jurisdictions selecting Option a. The amounts so allocated shall be referred to as each jurisdiction's "share of the emergency requirement."

Step C. The Authority then shall determine the portion of the emergency requirement which can reasonably be obtained from existing financial resources (e.g., by reducing working capital reserves or replacement fund accounts, borrowing, selling assets, or otherwise converting fixed assets into cash). This amount

shall be referred to as the "currently available funds." The amount by which the "emergency requirement" exceeds the "currently available funds" shall be referred to as the "net cash requirement."

Step D. The total amount of the "currently available funds" shall then be credited toward payment of each jurisdiction's respective "share of the emergency requirement," such allocation to be based upon each jurisdiction's percentage share of the Division's Capital Account.

Step E. Each member jurisdiction whose "share of the emergency requirement" exceeds its pro-rata share of the "currently available funds" shall then be requested to immediately pay to the Authority in cash its pro-rata share of the "net cash requirement."

Step F. All funds contributed by jurisdictions pursuant to this Article XV shall be credited to each contributing jurisdiction's share of the Division Capital Account.

**4.** In the event any jurisdiction does not timely elect either Option a or b, above, the membership of that jurisdiction shall be terminated as provided for under Section 4 (d) of Article X, hereof. Provided, however, that the Authority shall make reasonable efforts to assist the departing jurisdiction in achieving a safe and smooth transition to an alternative provider of services, including, if requested, continuing the provision of ambulance service to that jurisdiction for a period not to exceed six months after the request for payment was made.

## Article XV. EFFECTIVE DATE AND CLOSING DATE

This Amended and Restated Trust Indenture shall become effective March 1, 1990. The Closing Date as defined herein shall be April 15, 1990.

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands this 23rd day of March, 1990.

/s/ Philip W. Wood
Trustor

/s/ Gary Watts
Trustee

/s/ John C. Sacra
Trustee

/s/ Robert N. Dick
Trustee

/s/ Charles A. Farmer
Trustee

/s/ Ira H. Schlezinger
Trustee

/s/ Paul P. Koro
Trustee

/s/ W. Richard Horkey
Trustee

/s/ Phyllis Edmonds
Trustee

/s/ Steve Austin
Trustee

[ACKNOWLEDGMENTS]

## ACCEPTANCE

KNOW ALL MEN BY THESE PRESENTS:

That the Board of Commissioners of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, for and on behalf of said Beneficiary in all respects, in accordance with the terms of said Trust Indenture.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners, this 23rd day of March, 1990.

/s/ J.D. Metcalfe
Mayor Pro-tem

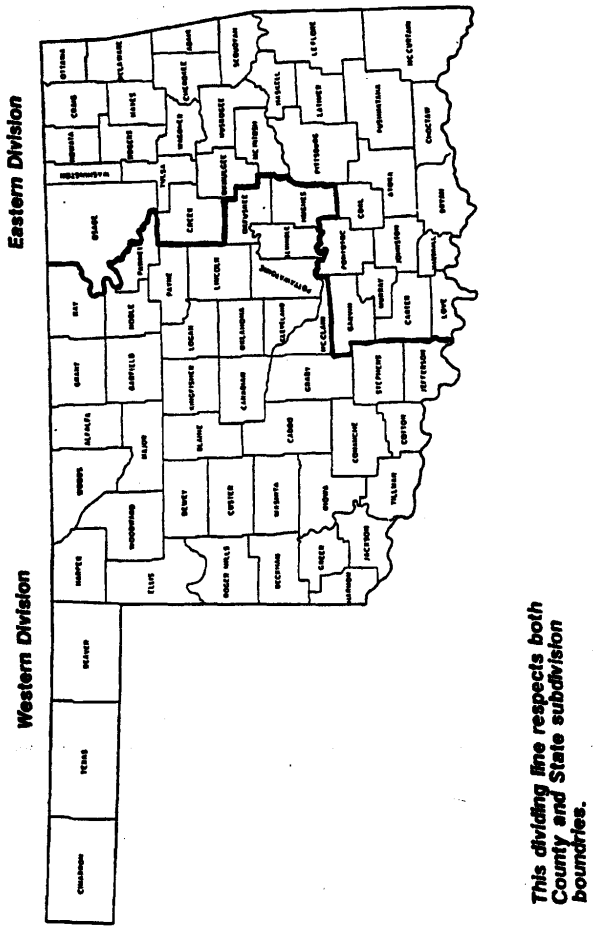
ATTEST:

/s/ Philip W. Wood
City Auditor

APPROVED:

/s/ Neal E. McNeill
City Attorney

## AMENDED AND RESTATED TRUST INDENTURE
## EXHIBIT A



## AMENDED AND RESTATED TRUST INDENTURE
(Ord. No. 17295)

## EXHIBIT B

Eastern Division
Bixby
Glenpool
Jenks
Sand Springs
Tulsa

Western Division
Bethany
Choctaw
Del City
Edmond
Forest Park
Jones
Lake Aluma
Midwest City
Moore
Mustang
Nichols Hills
Nicoma Park
Oklahoma City
Smith Village
Spencer
The Village
Valley Brook
Warr Acres
Woodlawn Park
Yukon

## AMENDED AND RESTATED TRUST INDENTURE
(Ord. No. 17295)

## EXHIBIT C
## MEMORANDUM OF AGREEMENT

This Memorandum of Agreement entered into effective the 15th day of April, 1990, by and among the Central Oklahoma Ambulance Trust (COAT), a public trust, the Oklahoma City Municipal Facilities Authority (OCMFA), a public trust, and the Emergency Medical Services Authority (EMSA), a public trust,

WITNESSETH:

WHEREAS, the Central Oklahoma Ambulance Trust is a public trust organized pursuant to Title 60 Oklahoma Statutes, Section 176 et seq., of which The City of Oklahoma City is the sole beneficiary; and

WHEREAS, the Oklahoma City Municipal Facilities Authority is a public trust organized pursuant to Title 60 Oklahoma Statutes, Section 176 et seq., of which The City of Oklahoma City is the sole beneficiary; and

WHEREAS, the Emergency Medical Services Authority is a public trust organized pursuant to Title 60 Oklahoma Statutes, Section 176 et seq., of which the Cities of Tulsa and Oklahoma City are the beneficiaries; and

WHEREAS, the Central Oklahoma Ambulance Trust has provided emergency medical service in central Oklahoma; and

WHEREAS, during the fall of 1989 the Central Oklahoma Ambulance Trust experienced a financial crisis that resulted in its reorganization and eventual succession by the Emergency Medical Services Authority; and

WHEREAS, during the reorganization of emergency medical service delivery in central Oklahoma, the Trust Indenture of the Emergency Medical Services Authority was amended to allow The City of Oklahoma City to become a beneficiary and thus to allow EMSA to provide emergency medical services in central Oklahoma; and

WHEREAS, said Indenture provides in pertinent part:

2. Oklahoma City's application to become a Beneficiary Jurisdiction shall be effective only upon completion of the following steps. If the following steps fail to occur, Oklahoma City shall not become a Beneficiary Jurisdiction, and all provisions of this Trust Indenture relating to the Western Division, and to Non-Beneficiary Member Jurisdictions of the Western Division, shall be of no effect.

a. The entire Eastern Division's audited net worth as of June 30, 1990 shall be credited to Tulsa's share of the Eastern Division Capital Account.

b. Effective April 15, 1990 (the "Closing, Date"), all of the assets and liabilities of the Central Oklahoma Ambulance Trust (hereinafter called "COAT") shall be transferred to the Oklahoma City Municipal Facilities Authority (hereinafter called "OCMFA").

c. On the Closing Date, COAT's assets and liabilities listed within the Transfer Agreement attached hereto as Exhibit C, "Transfer Agreement," shall be transferred to the Authority by OCMFA, and the Authority shall then immediately assume responsibility for the provision of ambulance services throughout the Authority's expanded service area.

d. COAT's assets and liabilities to be included in the Transfer Agreement shall include all of COAT's assets and liabilities as shown on COAT's audited financial statement as of the Closing Date, excluding the following:

1) COAT's property at 36th and Walker, to wit: All of Lots 23, 24, 25, 26 and 27 in Block Eighteen (18) Crown Heights Addition to Oklahoma City, Oklahoma County, Oklahoma, more commonly known as 501 Northwest 36th Street, Oklahoma City, Oklahoma.

2) The AidCar Division, including related assets and liabilities, and including contractual obligations to subscribers for provision of wheelchair transport services;

3) Those certain primary leases on the facilities at 1111 Classen Drive dated August 19, 1983, and June 19, 1987, between COAT and B.D. Eddie Enterprises, Inc., and any and all obligations related to the operation or occupancy of said facilities.

4) COAT's contractual obligations, if any, to provide ambulance services outside COATs service area pursuant to membership agreements sold by COAT to persons residing outside COAT's service area as defined on the Closing Date.

5) Liabilities and contingent liabilities connected with lawsuits or potential lawsuits related to incidents occurring prior to the Closing Date;

6) Liabilities and contingent liabilities not specifically disclosed in the audited financial statement as of the Closing Date.

e. The Authority shall be responsible solely for those liabilities and obligations which are specifically disclosed in the Transfer Agreement, and shall be responsible for no other liabilities or obligations of COAT. However, the Authority shall if requested by OCMFA at the time of Closing execute a sublease with a term not to exceed four years for use of the facilities at 1111 Classen Drive, incorporating the same financial terms and conditions as those of the primary leases, subject to approval by the lessor.

f. The dollar values of the assets and liabilities transferred hereunder shall be established by a certified audit (the "Audit"), to be performed by the accounting firm of KPMG/Peat Marwick, at no cost to the Authority. This audit shall be completed as soon after the Closing Date as is reasonably possible.

g. If the collective net value of the assets and liabilities transferred hereunder is less than zero, as determined by the Audit, the OCMFA shall either: contribute sufficient additional cash to increase the net value of the transferred assets and liabilities to a level not less than zero; or, re-assume a sufficient amount of the previously-transferred liabilities to achieve that same effect.

h. If the collective net value of the assets and liabilities transferred hereunder is greater than zero, the amount in excess of zero shall be credited to Oklahoma City's share of the Western Division's Capital Account.

; and

WHEREAS, the Transfer Agreement contemplated in Section 2(d) is dependent upon an audit that will take some time to complete; and

WHEREAS, effective April 15, 1990, and pursuant to Section 2(c), above, the Emergency Medical Services Authority provides emergency medical service in central Oklahoma; and

WHEREAS, effective April 15, 1990, Emergency Medical Services Authority has operated the AidCar Division for the Oklahoma City Municipal Facilities Authority with the understanding that it would be reimbursed for the actual expenses incurred in such operation; and

WHEREAS, it is therefore appropriate to expedite the transfer of all the assets and liabilities of the Central Oklahoma Ambulance Trust to the Oklahoma City Municipal

Facilities Authority and to the Emergency Medical Services Authority, pursuant to Article IX, Section 2(b-d) of the Amended and Restated Trust Indenture of the Emergency Medical Services Authority.

NOW, THEREFORE, in consideration of the premises and the mutual covenants and obligations set out below, the Parties agree as follows:

1. Effective April 15, 1990, all the assets and liabilities of the Central Oklahoma Ambulance Trust of whatsoever kind or nature, and wherever situate, are hereby transferred and assigned by the Central Oklahoma Ambulance Trust to the Oklahoma City Municipal Facilities Authority as contemplated at Article IX, Section 2(b) of the Amended and Restated Trust Indenture of the Emergency Medical Services Authority.

2. The Oklahoma City Municipal Facilities Authority hereby accepts said assignment and assumes all the assets and liabilities of the Central Oklahoma Ambulance Trust effective April 15, 1990.

3. Except as expressly provided in Section 4, below, and effective April 15, 1990, all the assets and liabilities of the Central Oklahoma Ambulance Trust transferred and assigned to the Oklahoma City Municipal Facilities Authority by operation of Section 1, above, are hereby transferred and assigned by the Oklahoma City Municipal Facilities Authority to the Emergency Medical Services Authority as contemplated at Article IX, Section 2(d) of the Amended and Restated Trust Indenture of the Emergency Medical Services Authority.

4. As contemplated at Article IX, Section 2(d) 1-6 of the Restated Trust Indenture of the Emergency Medical Services Authority, the assignment from the OCMFA to EMSA effected by Section 3, above, shall exclude:

a. The property of the Central Oklahoma Ambulance Trust located at 36th and Walker, to wit: All of Lots 23, 24, 25, 26 and 27 in Block Eighteen (18) Crown Heights Addition to Oklahoma City, Oklahoma County, Oklahoma, more commonly known as 501 Northwest 36th Street, Oklahoma City, Oklahoma.

b. The AidCar Division of the Central Oklahoma Ambulance Trust, including related assets and liabilities, and including contractual obligations to subscribers for provision of wheelchair transport services;

c. Those certain primary leases on the facilities at 1111 Classen Drive dated August 19, 1983, and June 19, 1987, between Central Oklahoma Ambulance Trust and B.D. Eddie Enterprises, Inc., and any and all obligations related to the operation or occupancy of said facilities.

d. The contractual obligations of Central Oklahoma Ambulance Trust, if any, to provide ambulance services outside COAT's service area pursuant to membership agreements sold by COAT to persons residing outside COAT's service area as defined on the Closing Date.

e. Liabilities and contingent liabilities connected with lawsuits or potential lawsuits related to incidents occurring prior to the Closing Date;

f. Liabilities and contingent liabilities not specifically disclosed in the audited financial statement as of the Closing Date.

5. Emergency Medical Services Authority hereby accepts said assignment and assumes said assets and liabilities, subject to said exclusions.

6. The Parties agree, in the event the audit contemplated at Article IX, Section 2(d) of the Amended and Restated Trust Indenture of the Emergency Medical Services Authority evidences any asset or liability not hereby transferred to the Oklahoma City Municipal Facilities Authority effective April 15, 1990, that this Agreement shall be amended to conform to the "Transfer Agreement" referred to in Section 2(c) of said Indenture; provided, however, in the event no such asset or liability is identified by said audit, this Agreement shall be and constitute said "Transfer Agreement."

7. The Emergency Medical Services Authority agrees to continue to operate the AidCar Division for the Oklahoma City Municipal Facilities Authority until the Oklahoma City Municipal Facilities Authority, or another public trust of which The City of Oklahoma City is the beneficiary, shall assume such operation; or until a provider is selected pursuant to a request for proposals to operate such service; or until September 30, 1990, whichever shall first occur.

8. The Oklahoma City Municipal Facilities Authority agrees to reimburse the Emergency Medical Services Authority for its documented expenses incurred in the operation of the AidCar Division for the term set out in Section 7, above.

9. The officers of the respective Parties, are hereby expressly authorized to execute such documents of title as may be appropriate to give effect to this Agreement.

EXECUTED this _____ day of _____, 1990.

**CENTRAL OKLAHOMA AMBULANCE TRUST**

By: /s/ Ronald J. Norick
Chairman

ATTEST:

(Seal)

/s/ H. Stephen Williamson
Secretary

EXECUTED this 5th day of June, 1990.

**OKLAHOMA CITY MUNICIPAL FACILITIES AUTHORITY**

By: /s/ Ronald J. Norick
Chairman

ATTEST:

(Seal)

/s/ Thomas P. Hurley
Secretary

EXECUTED this 20th day of September, 1990.

**EMERGENCY MEDICAL SERVICES AUTHORITY**

By: /s/ W. R. (Richard) Horkey
Chairman

ATTEST:

(Seal)

/s/ Charles A. Farmer, M.D.
Secretary

APPROVED by the City of Tulsa this 16 day of November, 1990, as Beneficiary of the Emergency Medical Services Authority.

**CITY OF TULSA**

/s/ Rodger A. Randall
MAYOR

ATTEST

(Seal)

/s/ Ronald L. Payne
City Clerk

APPROVED by the City of Oklahoma City this _____ day of _____, 1990, as Beneficiary of the Central Oklahoma Ambulance Trust, the Oklahoma City Municipal Facilities Authority and the Emergency Medical Services Authority.

**CITY OF OKLAHOMA CITY**

/s/ Ronald J. Norick
MAYOR

ATTEST

(Seal)

/s/ Thomas P. Hurley
City Clerk

APPROVED as to form and legality this 20th day of May, 1990.

/s/ Thomas S. Jones
Assistant Municipal Counselor

APPROVED as to form and legality this 20th day of September, 1990.

/s/ Stephen P. Gray
Legal Counsel
Emergency Medical Services Authority

## AMENDED AND RESTATED TRUST INDENTURE

(Ord. No. 17295)

### EXHIBIT D

Allocated Overhead Costs

**A.** Salaries, Benefits, and Educational Expenses for the following positions:

Executive Director
Associate Director
Assistant Director

**B.** Expenses related to joint efforts including, but not limited to:

**1.** Total Care Campaign

**2.** Legal expenses not related to a given division

**3.** Accounting expenses not related to a given division

**4.** Such other joint activities of benefit to both divisions as may be designated and approved by the EMSA Board of Trustees

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## CHAPTER 15. TULSA AUTHORITY FOR RECOVERY OF ENERGY

Section 1500. Beneficial interest of Tulsa Energy Resource Recovery Authority accepted.
Section 1501. Recognition of Trust by name.
Section 1502. Mayor and Auditor authorized to endorse approval on Trust instrument and record it in office of County Clerk.
Section 1503. Trustees find Third Amendment necessary.
Section 1504. Mayor and City Council find Third Amendment necessary.
Section 1505. Third amendment approved.
Section 1506. Mayor and Chairman of City Council authorized to endorse Third Amendment.
Section 1507. Trustees find Fourth Amendment necessary.
Section 1508. Mayor and City Council find Fourth Amendment necessary.
Section 1509. Fourth Amendment approved.
Section 1510. Mayor and Chairman of City Council authorized to endorse Fourth Amendment.
Appendix I Exhibit A Trust Indenture (Sections 1500, 1501 and 1502) ("Exhibit A" in Ord. No. 13974).
Appendix II Amendment Number One to Trust Indenture Tulsa Energy Resource Recovery Authority.
Appendix III Amendment Number Two to the Trust Indenture Creating the Tulsa Energy Resource Recovery Authority Changing the Name to Tulsa Authority for Recovery of Energy.
Appendix IV Assignment of Trust Interest.
Appendix V Exhibit A Trust Indeture Amendment Number Three to Trust Indenture Dated November 11, 1977, for Tulsa Authority for Recovery of Energy, Formerly Known as the Tulsa Energy Resource Recovery Authority (Sections 1503, 1504, 1505 and 1506) ("Exhibit A" in Ord. No. 17344).
Appendix VI Amendment Number Four to Trust Indenture dated November 11, 1977, for Tulsa Authority for Recovery of Energy, Formerly Known as the Tulsa Energy Resource Recovery Authority (Sections 1507, 1508, 1509 and 1510) ("Exhibit A" in Ord. No. 20547).

### Section 1500. Beneficial interest of Tulsa Energy Resource Recovery Authority accepted.

The Tulsa Energy Resource Recovery Authority created by Trust Indenture dated November 11, 1977, an executed copy of which Trust Indenture is hereto attached, marked "Exhibit A" and made a part hereof, wherein Robert J. LaFortune, as Mayor of the City of Tulsa; John P. Thomas, Jr., as Commissioner of Waterworks and Sewerage of the City of Tulsa; Robert A. Franden, as Commissioner of Streets and Public Property of the City of Tulsa; Michael E. Kerpan, as Police and Fire Commissioner of the City of Tulsa; and Norma H. Eagleton, as Commissioner of Finance and Revenue of the City of Tulsa, are designated trustees, and the City of Tulsa, Oklahoma, is designated as the sole beneficiary of said Tulsa Energy Resource Recovery Authority, is hereby approved and the City of Tulsa hereby accepts the beneficial interest therein, and all of the terms and provisions of said Trust Indenture as authorized by the applicable statutes of the state of Oklahoma, and the City of Tulsa hereby agrees to be and become the sole beneficiary of said trust.

*(Ord. No. 13974)*

### Section 1501. Recognition of Trust by name.

The City of Tulsa hereby recognizes said Tulsa Energy Resource Recovery Authority and the trustees named in said Trust Indenture, and in all negotiations and instruments where the term "Tulsa Energy Resource Recovery Authority" is used it shall be deemed and construed to mean the trust above mentioned and described.

*(Ord. No. 13974)*

### Section 1502. Mayor and Auditor authorized to endorse approval on Trust instrument and record it in office of County Clerk.

The Mayor and the City Auditor of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture the approval of the City of Tulsa of said Trust Indenture creating the Tulsa Energy Resource Recovery Authority, and the City's acceptance of the beneficial interest therein, and to cause said Trust Indenture to be recorded in the office of the County Clerk of Tulsa County, Oklahoma.

*(Ord. No. 13974)*

### Section 1503. Trustees find Third Amendment necessary.

Mayor Rodger A. Randle, Commissioner Charlie L. King, Commissioner J.D. Metcalfe, Commissioner Robert N. Dick and Commissioner Gary L. Watts as trustees of the Tulsa Authority for Recovery of Energy, formerly known as the Tulsa Energy Resource Recovery Authority, pursuant to a Trust Indenture dated November 11, 1977, hereby find it necessary and in furtherance of the public purposes of the Tulsa Authority for Recovery of Energy, formerly known as the Tulsa Energy Resource Recovery Authority, to amend said Trust Indenture.

*(Ord. No. 17344)*

### Section 1504. Mayor and City Council find Third Amendment necessary.

The Mayor and the City Council of the City of Tulsa hereby find and determine that it is in the best interest of the City of Tulsa and in the public interest to accept Amendment Number Three for said Trust Indenture for the Tulsa Authority for Recovery of Energy, formerly known as the Tulsa Energy Resource Recovery Authority.

*(Ord. No. 17344)*

### Section 1505. Third Amendment approved.

The Trust Indenture for the Tulsa Authority for Recovery of Energy, formerly known as the Tulsa Energy Resource Recovery Authority, dated the 11th day of November, 1977, is hereby amended pursuant to the terms of Amendment Number Three to said Trust Indenture dated June 29, 1990, an executed copy of which is attached hereto as "Exhibit A" and made a part hereof.

*(Ord. No. 17344)*

### Section 1506. Mayor and Chairman of City Council authorized to endorse Third Amendment.

The Mayor and Chairman of the City Council for the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Amendment Number Three to

the Trust Indenture the approval of the City of Tulsa of the Amendment Number Three to Trust Indenture creating the Tulsa Authority for Recovery of Energy, formerly named The Tulsa Energy Resource Recovery Authority, and to cause said amendment to the Trust Indenture to be recorded in the office of the County Clerk of Tulsa, Oklahoma.

*(Ord. No. 17344)*

**Section 1507. Trustees find Fourth Amendment necessary.**

Mayor Bill LaFortune; Cheryl Cohenour; Sharon King Davis; Stephen A. Schuller; Herbert P. Haschke, Jr.; Joseph Moran III; and Dr. Roberto Ruiz, Phd., as Trustees of the Tulsa Authority for Recovery of Energy, formerly known as the Tulsa Energy Resource Recovery Authority, pursuant to a Trust Indenture dated November 11, 1977, hereby find it necessary and in furtherance of the public purposes of the Tulsa Authority for Recovery of Energy, formerly known as the Tulsa Energy Resource Recovery Authority, to amend said Trust Indenture.

*(Ord. No. 20547)*

**Section 1508. Mayor and City Council find Fourth Amendment necessary.**

The Mayor and the City Council of the City of Tulsa hereby find and determine that it is in the best interest of the City of Tulsa and in the public interest to accept Amendment Number Four for said Trust Indenture for the Tulsa Authority for Recovery of Energy, formerly known as the Tulsa Energy Resource Recovery Authority, and all beneficial interests therein.

*(Ord. No. 20547)*

**Section 1509. Fourth Amendment approved.**

The Trust Indenture for the Tulsa Authority for Recovery of Energy, formerly known as the Tulsa Energy Resource Recovery Authority, dated the 11th day of November, 1977, is hereby amended pursuant to the terms of Amendment Number Four to said Trust Indenture, dated December 20, 2002, an executed copy of which is attached hereto as "Exhibit A" and made a part hereof.

*(Ord. No. 20547)*

**Section 1510. Mayor and Chairman of City Council authorized to endorse Fourth Amendment.**

The Mayor and Chairman of the City Council for the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Amendment Number Four to the Trust Indenture the approval of the City of Tulsa of the Amendment Number Four to the Trust Indenture creating the Tulsa Authority for Recovery of Energy, formerly known as the Tulsa Energy Resource Recovery Authority, and to cause said Amendment to the Trust Indenture to be recorded in the office of the County Clerk of Tulsa, Oklahoma.

*(Ord. No. 20547)*

## APPENDIX I EXHIBIT A TRUST INDENTURE (SECTIONS 1500, 1501, AND 1502)

*("Exhibit A" in Ord. No. 13974)*

KNOW ALL MEN BY THESE PRESENTS:

THIS TRUST AGREEMENT AND INDENTURE, dated as of the 11th day of November, 1977, by FRANCIS F. CAMPBELL, hereinafter referred to as "Trustor" and ROBERT J. LAFORTUNE, Mayor of the City of Tulsa; JOHN P. THOMAS, JR., Commissioner of Waterworks & Sewerage; ROBERT A. FRANDEN, Commissioner of Streets & Public Property; MICHAEL E. KERPAN, Police & Fire Commissioner; and NORMA H. EAGLETON, Commissioner of Finance & Revenue; to be Trustees of the Tulsa Energy Resource Recovery Authority and hereinafter referred to as "Trustees".

W I T N E S S E T H:

That in consideration of the payment by the Trustor to the Trustees of the sum of Ten Dollars ($10.00), the mutual covenants herein set forth, and other valuable considerations, the Trustees agree to hold, manage, invest, assign, convey and distribute as herein provided, authorized and directed, such property as Trustor, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Trust or the Trustees thereof.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits and increases thereof unto the Trustees, and the successors and assigns of the Trustees, but nevertheless in trust, for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, hereinafter referred to as the "Beneficiary", and upon the following trusts, terms and conditions herein stated.

### ARTICLE I
### Creation of Trust

The undersigned Trustor creates and establishes a trust for the use and benefit of the City of Tulsa, Oklahoma, and for the public purposes hereinafter set forth, under the provisions of Title 60, Oklahoma Statutes, Section 176 et seq., as amended, the Oklahoma Trust Act and other applicable statutes of the State of Oklahoma.

### ARTICLE II
### The Name

The name of this Trust shall be the "Tulsa Energy Resource Recovery Authority", hereinafter referred to as the "Trust". Under that name it shall, so far as practicable, conduct all business and execute all instruments, and otherwise perform its duties and functions in the execution of this Trust.

### ARTICLE III
### Purposes of Trust

The purposes of this Trust are:

**1.** To receive from public and private collectors solid waste including refuse, trash, garbage and other discarded or salvageable solid materials and process, transfer,

transport, convert, recover, recycle and reclaim from such solid waste, fuel and usable materials and products and sell the same and to dispose of non-usable solid waste by burial, incineration or other methods.

**2.** To plan, establish, develop, acquire, construct, purchase, install, repair, enlarge, improve, maintain, equip, finance and refinance, operate and regulate public solid processing systems and facilities either within or without the territorial boundaries of the City of Tulsa, including but not limited to the purchasing, leasing, construction, installation, equipping, maintenance and operation of such buildings, equipment, machinery and other facilities necessary for the processing of refuse and solid waste, and the purchasing or leasing of transportation vehicles, equipment and facilities.

**3.** To hold, maintain and administer any leasehold rights in and to physical properties demised to the beneficiary and to comply with the terms and conditions of any such lease.

**4.** To acquire by lease, purchase or otherwise, and to plan, establish, develop, construct, enlarge, improve, maintain, equip, operate and regulate any and all physical properties designated or needful for utilization in the furnishing and providing of services, in connection with public solid waste processing systems and facilities, and to dispose of, rent or otherwise make provisions for properties owned by the Trust but no longer needful for trust purposes.

**5.** To provide funds for the cost of financing, acquiring, constructing, leasing, equipping, maintaining, repairing and operating public solid waste processing systems and facilities and buildings and other improvements thereto, and all properties, real, personal or mixed, required for execution and fulfilling the trust purposes as set forth in this instrument, and all other charges, costs and expenses necessarily incurred in connection therewith and in so doing, to incur indebtedness, either unsecured or secured by all or any part of the Trust Estate and its revenues.

**6.** To expend all funds coming into the hands of the Trustees as revenue or otherwise in the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the costs and expenses thereof, and in the payment of any other obligation properly chargeable against the Trust Estate, and to distribute the remainder of such funds to the beneficiary municipality.

## ARTICLE IV
## Duration of Trust

The Trust shall have duration for the term of duration of the beneficiary and until such time as its purpose shall have been fully fulfilled, or until it shall be terminated as hereinafter provided.

## ARTICLE V
## The Trust Estate

The Trust Estate shall consist of:

**1.** The funds and property presently in the hands of the Trustees or to be acquired or constructed by Trustees and dedicated by the Trustor and others to be used for trust purposes.

**2.** Any and all leasehold rights demised to the Trustees by its beneficiary as authorized and empowered by law.

**3.** Any and all money, property, real, personal or mixed, rights, choses in actions, contracts, leases, privileges, immunities, franchises, benefits and all other things of value coming into the possession of the Trustees pursuant to the provisions of this Trust Indenture.

**4.** Cash in hand.

The instruments executed for each project, and each issuance of Bonds and other indebtedness, shall set out the specific property of the Trust Estate exclusively pledged and mortgaged for the payment of such indebtedness.

## ARTICLE VI
## The Trustees

**1.** There shall be five (5) Trustees of this Trust as follows:

**(a)** The mayor of the City of Tulsa;

**(b)** The Commissioner of Waterworks & Sewerage;

**(c)** The Commissioner of Streets & Public Property;

**(d)** The Commissioner of Finance & Revenue;

**(e)** The Police and Fire Commissioner.

The Trustees shall serve during their terms of office and until their successors have been duly elected or appointed and qualified Successor Trustees duly appointed or elected and qualified shall, without any further act or conveyance, become fully vested with all of the estate, properties, rights, powers, duties and obligations of their predecessors hereunder with like effect as if originally named as Trustee.

**2.** In the event of a change in the form of government of the City of Tulsa, Oklahoma, successors to the Trustees shall be the elected Mayor or equivalent officer under the new form of government, and four other Trustees who shall be approved by the legislative body of the City of Tulsa under the new form of government upon nomination by the elected Mayor or equivalent officer.

**3.** The Trustees shall, during their terms of office, be subject to removal only by action of the District Court of Tulsa County for good cause shown.

**4.** No Trustee shall be paid any compensation of any kind for his services as a Trustee of this Trust. However, Trustees may be reimbursed for expenses incurred in the performance of their duties hereunder.

**5.** Bonds or other evidences of indebtedness to be issued by the Trustees shall not constitute an indebtedness of the State of Oklahoma, nor of the Beneficiary, nor personal obligations of the Trustees of the Trust but shall constitute obligations of the Trustees payable solely from the Trust Estate. No indebtedness shall be incurred by the Trustees without the prior approval of two-thirds of the governing body of the City of Tulsa, Oklahoma, both as to the purpose and amount of the indebtedness.

**6.** The Trustees, the State of Oklahoma, and the Beneficiary hereof shall not be charged personally with any liability whatsoever by reason of any act or omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of

such Trust or in the operation of the Trust Estate; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate, shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**7.** Notwithstanding any other provisions of this Indenture which shall appear to provide otherwise, no Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or the Beneficiary, in his or its capacity, nor can the Beneficiary bind or obligate the Trust or any individual Trustee.

**8.** The Trustees shall adopt by-laws for the conduct of their business, and shall elect a Chairman from their members who shall preside at all meetings and perform other duties designated by the Trustees. The Trustees shall elect a Vice Chairman from their members who shall act as Chairman during the temporary absence or disability of the Chairman. If a vacancy occurs in the office of Chairman or Vice Chairman, the Trustees shall elect a successor from their members. The Trustees shall designate the time and place of all regular meetings, which meetings shall be public. All actions by the Trustees pursuant to the provisions of this Trust Indenture shall be approved by the affirmative vote of at least a majority of all the Trustees.

**9.** The Trustees shall file with the governing body of the City of Tulsa a certified copy of the annual audit made of the funds, accounts, and fiscal affairs of the Trust at the time as is required by Section 180.3 Title 60, Oklahoma Statutes Annotated.

**10.** The governing body of the Beneficiary shall have the right to conduct or have conducted a complete audit of the funds, accounts and fiscal affairs of the Trust at any time at its discretion.

**11.** The whole title, legal and equitable, to the properties of the Trust is and shall be vested in the Trustees, as such title in the Trustees is necessary for the due execution of this Trust. The Trustees shall have and exercise exclusive management and control of the properties of the Trust Estate for the use and benefit of the Beneficiary.

The Trustees may contract for the furnishing of any services or the performance of any duties that they may deem necessary, or proper, and pay for the same as they see fit.

**12.** The Trustees may compromise any debts or claims of or against the Trust Estate, and may adjust any dispute in relation to such debts or claims by arbitration or otherwise and may pay any debts or claims against the Trust Estate upon any evidence deemed by the Trustees to be sufficient. The Trustees may bring any suit or action, which in their judgment is necessary or proper to protect the interest of the Trust Estate, or to enforce any claim, demand or contract for the Trust; and they shall defend, in their discretion, any suit against the Trust, or the Trustees or employees, agents or servants thereof. They may compromise and settle any suit or action, and discharge the same out of assets of the Trust Estate, together with court costs and attorneys' fees. All of such expenditures shall be deemed proper expenses of executing this Trust.

## ARTICLE VII
## Powers and Duties of the Trustees

To accomplish the purposes of the Trust, and subject to the provisions and limitations otherwise provided in this Trust Indenture, the Trustees shall have, in addition to the

usual powers incident to their office and the powers granted to them by statute and in other parts of this Trust Indenture, the following rights, powers, duties, authority, discretion and privileges:

**1.** To finance, acquire, establish, develop, construct, enlarge, improve, extend, maintain, equip, operate, lease, furnish, provide, supply, regulate, hold, store, and administer any of the systems and facilities designated pursuant to Article III hereof as the Trustees shall determine necessary for the benefit and development of the Beneficiary.

**2.** To employ architectural and engineering firms or consultants as the Trustees deem necessary to prepare such preliminary or detailed studies, plans, specifications, cost estimates and feasibility reports as are required in the opinion of the Trustees. The cost of such engineers, architects and consultants shall be paid out of the proceeds of the sale of bonds or from such other funds as may be available therefor.

**3.** To enter into contracts for the sale of bonds, notes or other evidences of indebtedness or obligations of the Trust for the purpose of acquiring or constructing works, systems and facilities authorized to be acquired or constructed pursuant to the terms of this Trust Indenture and for that purpose may:

**(a)** Employ a financial advisor, or committee of advisors, to advise and assist the Trustees in the marketing of such bonds, notes or other evidences of indebtedness or obligations, and to present financial plans for the financing of the acquisition or construction of each project, and to recommend to, or consult with, the Trustees concerning the terms and provisions of bond indentures and bond issues, and may pay appropriate compensation for such work and services performed in the furtherance of the project;

**(b)** Sell all bonds, notes or other evidences of indebtedness or obligations of the Trust in installments or series and on such terms and conditions and in such manner as the Trustees shall deem to be in the best interest of the Trust Estate subject to the provisions of Title 60, Oklahoma Statutes, Section 176, et seq., as amended; and

**(c)** Appoint and compensate attorneys, paying agencies and corporate trustees in connection with the issuance of any such bonds, notes, evidences of indebtedness or other obligations of the Trust.

**4.** To purchase, lease, or otherwise acquire property, real, personal or mixed; to enter into and execute contracts, leases, and operating agreements.

**5.** To make and change investments, to convert real into personal property, and vice versa, to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem proper, and to resell, at any time and as often as they deem advisable, any or all the property in the Trust, to refund outstanding bonded indebtedness and to execute therefor bonds, notes, or other evidences of indebtedness, or obligations, and to secure the same by mortgage, lien, pledge or otherwise; to purchase property from any person, firm, corporation or public Trust, and lease or sublease land and other property to and from the Beneficiary or others and construct, improve, repair, extend, remodel, and equip buildings, improvements and other facilities thereon and to operate or lease or rent the same to individuals, partnerships, associations, corporations and others, including the United States of

America or the State of Oklahoma and agencies or authorities of the United States of America, or of the State of Oklahoma, or of any municipality thereof, and also including all municipal or other political subdivisions of the State of Oklahoma as well as the Beneficiary hereof, and to do all things to accomplish the purposes set out in Article III of this Trust Indenture, and procure funds necessary for such purpose by the sale of bonds or other evidences of indebtedness by mortgages, liens, pledges or other encumbrances of such real and personal property, buildings, improvements and other facilities owned or otherwise acquired, leased or controlled by Trustees, and by rentals, income, receipts and profits therefrom, or from any other revenues associated with the ownership, operation or control of the property of the Trust; to lease or sublease any property of the Trust, or of which the Trustees may become the owners or lessees.

**6.** To fix, demand and collect charges, rentals and fees for the services and facilities of the Trust to the same extent as the Beneficiary might do and to discontinue furnishing of services and facilities to any person, firm or corporation, or public instrumentality, delinquent in the payment of any indebtedness to the Trust; to purchase and sell such supplies, goods, and commodities as are incident to the operation of its properties.

**7.** To make and perform contracts of every kind, including management and operating contracts, with any person, firm, corporation, association, trusteeship, municipality, government or sovereignty; and subject to the provisions of Article VII(3) set forth above without limit as to amount to draw, make, accept, endorse, assume, guarantee, account, execute and issue promissory notes, drafts, bills of exchange, acceptances, warranties, bonds, debentures, and other negotiable or non-negotiable instruments, obligations and evidences of unsecured indebtedness, or of indebtedness secured by mortgage, deed or trust or otherwise upon any or all income of the Trust, in the same manner and to the same extent as a natural person might or could do; to collect and receive any property, money, rents, or income of any sort and distribute the same or any portion thereof for the furtherance of the authorized Trust purposes set out herein.

**8.** To do all other acts in their judgment necessary or desirable for the proper and advantageous management, investment, and distribution of the Trust Estate and income therefrom.

## ARTICLE VIII
## Beneficiary of Trust

**1.** The Beneficiary of this Trust shall be the City of Tulsa, Oklahoma, a municipal corporation, under and pursuant to Title 60, Oklahoma Statutes, Sections 176 et seq., as amended, and other statutes of the State of Oklahoma as presently in force and effect. The Trustor declares that this Trust Indenture shall be irrevocable from the moment it is signed by him and delivered to the Trustees, and that it shall thereafter stand without any power whatsoever at any time to alter, amend, revise, modify, revoke or terminate any of the provisions of this Trust Indenture, except with the consent of the Trustor, his heirs, successors, and assigns and with the consent of at least four-fifths (4/5ths) of the Trustees.

**2.** The Beneficiary shall have no legal title, claim or right to the Trust Estate, its income, or to any part thereof or to demand or require any partition or distribution thereof. Neither shall the Beneficiary have any authority, power or right whatsoever, to do or transact any business for, or on behalf of, or binding upon the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees pertaining to the Trust Estate, or any part thereof. The Beneficiary shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder, and at the termination of the Trust, as provided herein, and then only the Beneficiary shall receive the residue of the Trust Estate.

## ARTICLE IX
## Secretary of Trust

The Trustees shall appoint a Secretary of the Trustees to serve at their will, with compensation as set by themselves. The Secretary shall keep minutes of all meetings of the Trustees and shall maintain complete and accurate records of all their financial transactions, all such minutes, books and records to be on file in the principal office of the Trust. All meetings of the Trustees shall be open to the public and conducted in accord with the provisions of the Oklahoma Public Meeting Law and the bonds, records and minutes of the Trustees shall be considered as public records and available for inspection at all times by any interested party.

## ARTICLE X
## Termination of Trust

This Trust shall terminate:

**1.** When the purposes set out in Article III of this instrument shall have been fully executed; or

**2.** In the manner provided by Title 60, Oklahoma Statutes, Section 180, provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of this Trust, and after payment of all debts, expenses and obligations out of the moneys and properties of the Trust Estate to the extent thereof, shall distribute the residue of the money and properties of the Trust Estate to the Beneficiary hereunder. Upon final distribution, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE XI

The Trustees accept the Trust herein created and provided for, and agree to carry out the provisions of this Trust Indenture on their part to be performed.

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands on the day and year indicated.

/s/ Francis F. Campbell
Francis F. Campbell
"Trustor"

/s/ Robert J. LaFortune
Robert J. LaFortune

/s/ John P. Thomas, Jr.
John P. Thomas, Jr.

/s/ Robert A. Franden
Robert A. Franden

/s/ Michael E. Kerpan
Michael E. Kerpan

/s/ Norma H. Eagleton
Norma H. Eagleton
"Trustees"

[ACKNOWLEDGMENTS]

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENTS:

That the Board of Commissioners of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, for an on behalf of said Beneficiary in all respects in accordance with the terms of said Trust Indenture, and as authorized by Ordinance No. 13974 of the City of Tulsa, Oklahoma.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners this 11th day of November, 1977.

CITY OF TULSA

/s/ Robert J. LaFortune
Robert J. LaFortune, Mayor

ATTEST:

/s/ Francis F. Campbell
City Auditor

APPROVED:

/s/ William M. Northcutt
Deputy City Attorney

## APPENDIX II AMENDMENT NUMBER ONE TO TRUST INDENTURE TULSA ENERGY RESOURCE RECOVERY AUTHORITY.

KNOW ALL MEN BY THESE PRESENTS:

WHEREAS, the undersigned Trustor, Francis F. Campbell, created a Trust named the Tulsa Energy Resource Recovery Authority (TERRA) for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, under Trust Indenture dated November 11, 1977, between the said Trustor and Robert J. LaFortune, Mayor of the City of Tulsa; John P. Thomas, Jr., Commissioner of Waterworks and Sewerage; Robert A. Franden, Commissioner of Streets and Public Property; Michael E. Kerpan, Police and Fire Commissioner; and Norma H. Eagleton, Commissioner of Finance and Revenue, referred to therein as Trustees; and

WHEREAS, the Trustor desires to amend and broaden the purposes of the Trust to encompass the full range of managing, collecting, controlling and disposing of solid waste pursuant to the provisions of the Oklahoma Solid Waste Management Act, 63 O.S. 71, §2251 et seq.; and

WHEREAS, the Trust Indenture can be amended only by the Trustor with the consent of the City of Tulsa as beneficiary and the consent of the five current Trustees.

NOW, THEREFORE, I, the undersigned Trustor, under Trust Indenture named Tulsa Energy Resource Recovery Authority dated November 11, 1977, between Francis F. Campbell as Trustor and Robert J. LaFortune, Mayor of the City of Tulsa; John P. Thomas, Jr., Commissioner of Waterworks and Sewerage; Robert A. Franden, Commissioner of Streets and Public Property; Michael E. Kerpan, Police and Fire Commissioner; and Norma H. Eagleton, Commissioner of Finance and Revenue, as Trustees, do hereby amend said Trust Indenture subject to the approval of two-thirds (2/3) of the majority of the governing body of the City of Tulsa and further subject to the approval of the current Trustees, James M. Inhofe, Mayor of the City of Tulsa; John P. Thomas, Jr., Commissioner of Waterworks and Sewerage; James M. Hewgley, III, Commissioner of Streets and Public Property; Jack Purdie, Police and Fire Commissioner; and Ronald L. Young, Commissioner of Finance and Revenue, as follows:

Article III of said Trust Indenture entitled "Purposes of Trust" is hereby amended to read in its entirety as follows:

"ARTICLE III
Purposes of Trust

The purposes of this Trust are:

1. To operate or cause to be operated systems for the collection and receipt of solid waste including refuse, trash, garbage and other discarded or salvageable solid materials and to collect, process, transfer, transport, convert, recover, recycle and reclaim from such solid waste, fuel and usable materials and products and sell the same and to dispose of solid waste whether usable or nonusable by burial, incineration or other methods.

2. To plan, establish, develop, acquire, construct, purchase, install, repair, enlarge, improve, maintain, equip, finance and refinance, operate and regulate public solid waste collection and processing systems and facilities either within or without the territorial boundaries of the City of Tulsa, including but not limited to the purchasing, leasing,

construction, installation, equipping, maintenance and operation of such buildings, equipment, machinery and other facilities necessary for the collection and processing of refuse and solid waste, and the purchasing or leasing of transportation vehicles, equipment and facilities.

3. To hold, maintain and administer any leasehold rights in and to physical properties demised to the beneficiary and to comply with the terms and conditions of any such lease.

4. To acquire by lease, purchase or otherwise, and to plan, establish, develop, construct, enlarge, improve, maintain, equip, operate and regulate any and all physical properties designated or needful for utilization in the furnishing and providing of services, in connection with public solid waste collection and processing systems and facilities, and to dispose of, rent or otherwise make provisions for properties real and personal owned by the Trust but no longer needful for trust purposes.

5. To provide funds for the cost of financing, acquiring, constructing, leasing, equipping, maintaining, repairing and operating public solid waste collection and processing systems and facilities and buildings and other improvements thereto, and all properties, real personal or mixed, required for execution and fulfilling the trust purposes as set forth in this instrument, and all other charges, costs and expenses necessarily incurred in connectiontherewith and in so doing, to incur indebtedness, either unsecured or secured by all or any part of the Trust Estate and its revenues.

6. To expend all funds coming into the hands of the Trustees as revenue or otherwise in the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the costs and expenses thereof, and in the payment of any other obligation properly chargeable against the Trust Estate, and to distribute the remainder of such funds to the beneficiary municipality."

Except as herein amended, the Trustor and Trustees hereby ratify and confirm the provisions of the Trust as originally executed.

IN WITNESS WHEREOF, this Amendment to Trust Indenture has been duly executed on the 1st day of August, 1979, and shall be effective on the 3rd day of August, 1979.

/s/ Francis F. Campbell
Francis F. Campbell, "Trustor"

APPROVAL OF TRUSTEES:

/s/ James M. Inhofe
James M. Inhofe, Mayor

/s/ John P. Thomas, Jr.
John P. Thomas, Jr.
Commissioner of Waterworks and Sewerage

/s/ James M. Hewgley III
James M. Hewgley III
Commissioner of Streets and Public Property

/s/ Jack Purdie
Jack Purdie
Police and Fire Commissioner

/s/ Ronald L. Young
Ronald L. Young
Commissioner of Finance and Revenue
"Trustees"

APPROVED BY CITY OF TULSA,
AS BENEFICIARY

CITY OF TULSA, OKLAHOMA,
a municipal corporation

By /s/ James M. Inhofe
James M. Inhofe, Mayor

(SEAL)

ATTEST:

By /s/ F.F. Campbell
F. F. Campbell
City Auditor

APPROVED:

By /s/ Waldo F. Bales (NEMc)
Waldo F. Bales
City Attorney

[ACKNOWLEDGEMENTS]

## APPENDIX III AMENDMENT NUMBER TWO TO THE TRUST INDENTURE CREATING THE TULSA ENERGY RESOURCE RECOVERY AUTHORITY CHANGING THE NAME TO TULSA AUTHORITY FOR RECOVERY OF ENERGY.

KNOW ALL MEN BY THESE PRESENTS:

WHEREAS, the undersigned Trustor, Francis F. Campbell, created a Trust named the Tulsa Energy Resource Recovery Authority (TERRA) for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, under Trust Indenture dated November 11, 1977, between the said Trustor and Robert J. LaFortune, Mayor of the City of Tulsa; John P. Thomas, Jr., Commissioner of Waterworks and Sewerage; Robert A. Franden, Commissioner of Streets and Public Property; Michael E. Kerpan, Police and Fire Commissioner; and Norma H. Eagleton, Commissioner of Finance and Revenue, referred to therein as Trustees; and

WHEREAS, on August 3, 1979, said Trust was amended by Amendment Number One; and

WHEREAS, the Trustor desires to amend the name of the Trust; and

WHEREAS, the Trust Indenture can be amended only by the Trustor with the consent of the City of Tulsa as beneficiary and the consent of the five current Trustees.

NOW, THEREFORE, I, the undersigned Trustor, under Trust Indenture named Tulsa Energy Resource Recovery Authority dated November 11, 1977, between Francis F. Campbell as Trustor and Robert J. LaFortune, Mayor of the City of Tulsa; John P. Thomas, Jr., Commissioner of Waterworks and Sewerage; Robert A. Franden, Commissioner of Streets and Public Property; Michael E. Kerpan, Police and Fire Commissioner; and Norma H. Eagleton, Commissioner of Finance and Revenue, as Trustees, do hereby amend said Trust Indenture subject to the approval of two-thirds (2/3) of the governing body of the City of Tulsa and further subject to the approval of the current Trustees, James M. Inhofe, Mayor of the City of Tulsa; Patty Eaton, Commissioner of Waterworks and Sewerage; James M. Hewgley III, Commissioner of Streets and Public Property; Robert H. Gardner, Police and Fire Commissioner; and Ronald L. Young, Commissioner of Finance and Revenue, as follows:

Article II of said Trust Indenture entitled "The Name" is hereby amended to read in its entirety as follows:

"ARTICLE II
The Name

The name of this Trust shall be the Tulsa Authority for Recovery of Energy," hereinafter referred to as the "Trust." Under that name it shall, so far as practicable, conduct all business and execute all instruments, and otherwise perform its duties and functions in the execution of this Trust."

Except as herein amended, the Trustor and Trustees hereby ratify and confirm the provisions of the Trust as originally executed and as modified by Amendment Number One.

IN WITNESS WHEREOF, this Amendment to Trust Indenture has been duly executed on the 21st day of April, 1981, and shall be effective on the 21st day of April, 1981.

/s/ Francis F. Campbell
Francis F. Campbell, "Trustor"

APPROVAL OF TRUSTEES:

/s/ James M. Inhofe
James M. Inhofe, Mayor

/s/ Patty Eaton
Patty Eaton
Commissioner of Waterworks and Sewerage;

/s/ James M. Hewgley III
James M. Hewgley III
Commissioner of Streets and Public Property

/s/ Robert H. Gardner
Robert H. Gardner
Police and Fire Commissioner

/s/ Ronald L. Young
Ronald L. Young
Commissioner of Finance and Revenue

"Trustees"

[ACKNOWLEDGMENTS]

## APPENDIX IV ASSIGNMENT OF TRUST INTEREST.

KNOW ALL MEN BY THESE PRESENTS:

I, Francis F. Campbell, of the City of Tulsa, County of Tulsa, State of Oklahoma, as Assignor herein, acting as a private citizen and not in my official capacity, for and in consideration of the payment to me of One and 00/100 Dollars ($1.00) and other good and valuable consideration, hereby grant, assign, transfer, and set over to the elected City Auditor of the City of Tulsa, Tulsa County, State of Oklahoma, acting in his official capacity, and to his successors in office, forever, all of my right, title, and interest as Trustor in and to the reversion, remainder, remainders, and rights, including the right to consent or to refuse to consent to the amendment of a certain Trust Indenture, dated November 11, 1977, executed and delivered by me to the Trustees named therein, which created the Tulsa Energy Resource Recovery Authority pursuant to the provisions of 60 O.S.1971, Sec. 176 et seq., as amended.

IN WITNESS WHEREOF, I have executed this Assignment at 200 Civic Center, Tulsa, Oklahoma 74103, on this 23rd day of November, 1977.

/s/ Francis F. Campbell
Francis F. Campbell

STATE OF OKLAHOMA )
) ss.
COUNTY OF TULSA )

Before me, the undersigned, a notary public in and for said county and state on this 23rd day of November, 1977, personally appeared Francis F. Campbell, to me known to be the identical person who executed the within and foregoing instrument and acknowledged to me that he executed the same as his free and voluntary act and deed and as Trustor of the Tulsa Energy Resource Recovery Authority, for the uses and purposes therein set forth.

Given under my hand and seal the day and year last above written.

/s/ Marjorie Weber
Notary Public

My Commission Expires: Dec. 15, 1980

## APPENDIX V EXHIBIT A TRUST INDENTURE AMENDMENT NUMBER THREE TO TRUST INDENTURE DATED NOVEMBER 11, 1977, FOR TULSA AUTHORITY FOR RECOVERY OF ENERGY, FORMERLY KNOWN AS THE TULSA ENERGY RESOURCE RECOVERY AUTHORITY

*("Exhibit A" in Ordinance No. 17344)*

KNOW ALL MEN BY THESE PRESENTS:

WHEREAS, the original Trustor, Francis F. Campbell, created a Trust named the Tulsa Energy Resource Recovery Authority for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, under Trust Indenture dated November 11, 1977, between the said Trustor and Robert J. LaFortune, Mayor of the City of Tulsa; John P. Thomas, Jr., Commissioner of Waterworks and Sewerage; Robert A. Franden, Commissioner of Streets and Public Property; Michael E. Kerpan, Police and Fire Commissioner; and Norma H. Eagleton, Commissioner of Finance and Revenue, referred to therein as Trustees; and

WHEREAS, on August 3, 1979, said Trust was amended by Amendment Number One; and

WHEREAS, on April 21, 1981, said Trust was amended by Amendment Number Two and the name of the Trust was changed to the Tulsa Authority for Recovery of Energy; and

WHEREAS, the successor Trustor, Philip W. Wood, desires to amend the Trust to change the Trustees, the number of the Trustees, and the terms of service of the Trustees; and

WHEREAS, the Trust Indenture can be amended only by the Trustor with the consent of the City of Tulsa as beneficiary and the consent of the five successor Trustees.

NOW, THEREFORE, I, the undersigned successor Trustor, Philip W. Wood, under Trust Indenture named Tulsa Energy Resource Recovery Authority dated November 11, 1977, between Francis F. Campbell as Trustor and Robert J. LaFortune, Mayor of the City of Tulsa; John P. Thomas, Jr., Commissioner of Waterworks and Sewerage; Robert A. Franden, Commissioner of Streets and Public Property; Michael E. Kerpan, Police and Fire Commissioner; and Norma H. Eagleton, Commissioner of Finance and Revenue, as Trustees, do hereby amend said Trust Indenture subject to the approval of a sufficient number of members of the governing body of The City of Tulsa and further subject to the approval of the successor Trustees, Rodger A. Randle, Mayor of the City of Tulsa; Charlie L. King, Commissioner of Waterworks and Sewerage; J. D. Metcalfe, Commissioner of Streets and Public Property; Robert N. Dick, Police and Fire Commissioner; and Gary L. Watts, Commissioner of Finance and Revenue as follows:

Article VI of said Trust Indenture, entitled "The Trustees", is hereby amended in paragraphs one and two to read as follows:

## ARTICLE VI THE TRUSTEES

l. There shall be seven Trustees of the Trust who shall serve for the initial and successive terms as stated below and who shall be subject to the terms and provisions of Okla. Stat. tit. 11, §8-113 (Supp. 1989) and all City personnel policies and procedures concerning conflicts of interest.

(a) One of the Trustees shall be ex officio the Mayor of the City of Tulsa, or the Mayor's designated representative who shall be a full-time City employee.

(b) Six of the Trustees shall be appointed by the Mayor of the City of Tulsa subject to the approval by a majority vote of the membership of the City Council. Two of these initial Trustees shall be appointed by the Mayor for terms of three years, two for terms of two years, and two for terms of one year. The terms of these initial Trustees shall expire on July 31 of the appropriate year.

(c) Successor Trustees to the six Trustees described in paragraph (b) shall be appointed by the Mayor of the City of Tulsa subject to approval by a majority vote of the membership of the City Council to serve for three year terms which shall expire on July 31 of the appropriate year. The Trustee who shall be the Mayor of the City of Tulsa shall serve during his or her term of office. The designated representative who is selected to serve as Trustee in place of the Mayor as set forth in paragraph (a) shall serve a one-year term which shall expire on July 31 of the appropriate year and which shall in no event extend for any period of time beyond the term of office of the appointing Mayor.

2. Duly appointed successor Trustees shall, without further act or conveyance, become fully vested with all of the estate, properties, rights, powers, duties and obligations of their predecessors hereunder with like effect as if originally named as Trustees.

Except as herein amended, the Trustor and Trustees hereby ratify and confirm the provisions of the Trust as originally executed and as modified by Amendment Number One and Amendment Number Two.

IN WITNESS WHEREOF, this Amendment to Trust Indenture has been duly executed on the 24th day of August, l991, and shall be effective on the date of execution.

/s/ Philip W. Wood, Trustor
Philip W. Wood, Trustor

APPROVAL OF TRUSTEES:

/s/ Rodger A. Randle
Rodger A. Randle, Mayor

/s/ Charlie L. King
Charlie L. King
Commissioner of Waterworks and Sewerage

/s/ J. D. Metcalfe
J. D. Metcalfe
Commissioner of Streets and Public Property

/s/ Robert N. Dick
Robert N. Dick
Police and Fire Commissioner

/s/ Gary L. Watts
Gary L. Watts
Commissioner of Finance and Revenue

"Trustees"

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 24th day of August, l990, personally appeared Philip W. Wood, to me known to be the identical person who executed the within and foregoing instrument as Trustor and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Traci L. Hushbeck
Notary Public

My commission expires: 12-14-91

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 24th day of August, l990, personally appeared Rodger A. Randle to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Michelle M. Benka
Notary Public

My commission expires: September 30, 1992

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 21st day of August, l990, personally appeared Charlie L. King to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Traci L. Hushbeck
Notary Public

My commission expires: 12-14-91

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 23rd day of August, l990, personally appeared J. D. Metcalfe to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Traci L. Hushbeck
Notary Public

My commission expires: 12-14-91

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 14th day of August, l990, personally appeared Robert N. Dick to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Traci L. Hushbeck
Notary Public

My commission expires: 12-14-91

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 15th day of August, l990, personally appeared Gary L. Watts to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Traci L. Hushbeck
Notary Public

My commission expires: 12-14-91

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 14th day of September, l990, personally appeared Rodger A. Randle, to me known to be the identical person who executed the within and foregoing instrument as Mayor and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Michelle M. Benka
Notary Public

My Commission Expires: September 30, 1992

## APPROVAL BY CITY OF TULSA, BENEFICIARY

KNOW ALL MEN BY THESE PRESENTS:

The City Council of the City of Tulsa, Oklahoma, a municipal corporation, hereby authorizes and approves the within and foregoing Amendment Number Three to Trust Indenture Dated November 11, 1977, For Tulsa Authority for Recovery of Energy, Formerly Known As The Tulsa Energy Resource Recovery Authority, as beneficiary of said Trust.

WITNESS my hand as Chairman of the City Council of the City of Tulsa, Oklahoma, attested by the City Clerk of the City of Tulsa, Oklahoma, this 11th day of September, 1990.

/s/ By: Gary Watts
Chairman of the Council

Approved by the Mayor of the City of Tulsa, Oklahoma, this 14th day of September 1990, at 3:00 o'clock p.m.

/s/ Rodger A. Randle
Rodger A. Randle, Mayor

ATTEST:

/s/ Ronald L. Payne
City Clerk

APPROVED:

/s/ Neal E. McNeill
City Attorney

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENTS:

The City Council of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the Trust Indenture dated November 11, 1977, creating the Tulsa Authority for Recovery of Energy, formerly known as the Tulsa Energy Resource Recovery Authority, as amended by the within and foregoing Amendment Number Three to said Trust Indenture, for and on behalf of said Beneficiary in all respects in accordance with the terms of said Trust Indenture and all amendments thereto including Amendment Number Three, and as authorized by the City of Tulsa Ordinances.

WITNESS my hand as Chairman of the City Council of the City of Tulsa, Oklahoma, attested by the City Clerk of the City of Tulsa, Oklahoma, this 11th day of September, 1990.

/s/ By: Gary Watts
Chairman of the Council

Approved by the Mayor of the City of Tulsa, Oklahoma, this 14th day of September, 1990, at 3:00 o'clock p.m.

/s/ Rodger A. Randle
Rodger A. Randle, Mayor

ATTEST:

/s/ R.L. Payne
City Clerk

APPROVED:

/s/ Neal E. McNeill
City Attorney

# APPENDIX VI AMENDMENT NUMBER FOUR TO TRUST INDENTURE DATED NOVEMBER 11, 1977, FOR TULSA AUTHORITY FOR RECOVERY OF ENERGY, FORMERLY KNOWN AS THE TULSA ENERGY RESOURCE RECOVERY AUTHORITY (SECTIONS 1507, 1508, 1509, AND 1510)

*("Exhibit A" in Ordinance No. 20547)*

KNOW ALL MEN BY THESE PRESENTS:

WHEREAS, the original Trustor, Francis F. Campbell, created a Trust named the Tulsa Energy Resource Recovery Authority for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, under Trust Indenture dated November 11, 1977, between the said Trustor and Robert J. LaFortune, Mayor of the City of Tulsa; John P. Thomas, Jr., Commissioner of Waterworks and Sewerage; Robert A. Franden, Commissioner of Streets and Public Property; Michael E. Kerpan, Police and Fire Commissioner; and Norma H. Eagleton, Commissioner of Finance and Revenue, referred to therein as Trustees; and

WHEREAS, on August 3, 1979, said Trust was amended by Amendment Number One; and

WHEREAS, on April 21, 1981, said Trust was amended by Amendment Number Two and the name of the Trust was changed to the Tulsa Authority for Recovery of Energy; and

WHEREAS, on August 24, 1991, said Trust was amended by Amendment Number Three, which changed the Trustees, their number and term of office; and

WHEREAS, the successor Trustor, Philip W. Wood, desires to further amend the Trust to clarify the Trustees' authority to enter into contracts for the sale of bonds, notes or other evidences of indebtedness or obligations of the Trust; and

WHEREAS, the Trust Indenture can be amended only by the Trustor with the consent of the City of Tulsa as beneficiary and the consent of the seven successor Trustees.

NOW, THEREFORE, I, the undersigned successor Trustor, Philip W. Wood, under Trust Indenture named Tulsa Energy Resource Recovery Authority dated November 11, 1977, between Francis F. Campbell as Trustor and Robert J. LaFortune, Mayor of the City of Tulsa; John P. Thomas, Jr., Commissioner of Waterworks and Sewerage; Robert A. Franden, Commissioner of Streets and Public Property; Michael E. Kerpan, Police and Fire Commissioner; and Norma H. Eagleton, Commissioner of Finance and Revenue, as Trustees, do hereby amend said Trust Indenture subject to the approval of a sufficient number of members of the governing body of The City of Tulsa and further subject to the approval of the successor Trustees, as follows:

Article VII of said Trust Indenture, entitled "Powers and Duties of the Trustees", is hereby amended in paragraph three (3) only, to read as follows:

3. To enter into contracts for the sale of bonds, notes or other evidences of indebtedness or obligations of the Trust for any of the purposes set forth in Article III pursuant to the terms of this Trust Indenture and for those purposes may:

(a) Employ a financial advisor, or committee of advisors, to advise and assist the Trustees in the marketing of such bonds, notes or other evidences of indebtedness

or obligations, and to present financial plans for the financing of the acquisition or construction of each project, and to recommend to, or consult with, the Trustees concerning the terms and provisions of bond indentures and bond issues, and may pay appropriate compensation for such work and services performed in the furtherance of the project;

(b) Sell all bonds, notes or other evidences of indebtedness or obligations of the Trust in installments or series and on such terms and conditions and in such manner as the Trustees shall deem to be in the best interest of the Trust Estate subject to the provisions of Title 60, Oklahoma Statutes, Section 176, et seq., as amended; and

(c) Appoint and compensate attorneys, paying agencies and corporate trustees in connection with the issuance of any such bonds, notes, evidences of indebtedness or other obligations of the Trust.

This Amendment shall be effective upon approval as required by law and the Indenture, as amended, shall continue in effect until March 1, 2010, at which time this Amendment shall be automatically rescinded and the language of Article VII paragraph (3) shall re-vert to the language in place immediately before this 4th Amendment.

Except as herein amended, the successor Trustor and successor Trustees hereby ratify and confirm the provisions of the Trust as originally executed and as modified by Amendment Number One, Amendment Number Two and Amendment Number Three.

IN WITNESS WHEREOF, this Amendment to Trust Indenture has been duly executed on the 20th day of December, 2002, and shall be effective on the date of execution.

/s/ Philip W. Wood
Philip W. Wood, Trustor

APPROVAL OF TRUSTEES

/s/ Stephen L. Sewell
for Bill LaFortune, Mayor

/s/ Cheryl Cohenour
Cheryl Cohenour

/s/ Sharon King Davis
Sharon King Davis

/s/ Stephen A. Schuller
Stephen A. Schuller

/s/ Herbert P. Haschke, Jr.
Herbert P. Haschke, Jr.

/s/ Joseph Moran, III
Joseph Moran, III

/s/ Dr. Roberto Ruiz, Phd.
Dr. Roberto Ruiz, Phd.

"Trustees"

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 20th day of December, 2002, personally appeared Philip W. Wood, to me known to be the identical person who executed the within and foregoing instrument as Trustor and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Robert R. Edmiston
Notary Public
No. 01007499

My Commission expires: June 16, 2005

(Seal)

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 19th day of February, 2003, personally appeared Stephen L. Sewell, representative of Bill LaFortune, to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Robert R. Edmiston
Notary Public
No. 01007499

My Commission expires: June 16, 2005

(Seal)

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 19th day of February, 2003, personally appeared Cheryl Cohenour, to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that she executed the same as her free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Robert R. Edmiston
Notary Public
No. 01007499

My Commission expires: June 16, 2005

(Seal)

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 19th day of February, 2003, personally appeared Sharon King Davis, to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that she executed the same as her free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Robert R. Edmiston
Notary Public
No. 01007499

My Commission expires: June 16, 2005

(Seal)

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 19th day of February, 2003, personally appeared Stephen A. Schuller, to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Robert R. Edmiston
Notary Public
No. 01007499

My Commission expires: June 16, 2005

(Seal)

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 19th day of February, 2003, personally appeared Herbert P. Haschke, Jr., to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Robert R. Edmiston
Notary Public
No. 01007499

My Commission expires: June 16, 2005

(Seal)

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 19th day of February, 2003, personally appeared Joseph Moran, III, to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Robert R. Edmiston
Notary Public
No. 01007499

My Commission expires: June 16, 2005

(Seal)

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 19th day of February, 2003, personally appeared Roberto Ruiz, to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Robert R. Edmiston
Notary Public
No. 01007499

My Commission expires: June 16, 2005

(Seal)

## APPROVAL BY CITY OF TULSA, BENEFICIARY

KNOW ALL MEN BY THESE PRESENTS:

The City Council of the City of Tulsa, Oklahoma, a municipal corporation, hereby authorizes and approves the within and foregoing Amendment Number Four to Trust Indenture Dated November 11, 1977, For Tulsa Authority for Recovery of Energy, Formerly Known As The Tulsa Energy Resource Recovery Authority, as beneficiary of said Trust.

WITNESS my hand as Chairman of the City Council of the City of Tulsa, Oklahoma, attested by the City Clerk of the City of Tulsa, Oklahoma, this 20th day of February , 2003.

/s/ William C. Christiansen
Chairman of the Council

Approved by the Mayor of the City of Tulsa, Oklahoma, this 24th day of February, 2003.

/s/ Bill LaFortune
Mayor

(Seal)

ATTEST:

/s/ Michael P. Kier
City Clerk

APPROVED:

/s/ Andrew T. Rees
Asst. City Attorney

## ACCEPTANCE

KNOW ALL MEN BY THESE PRESENTS:

The City Council of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the Trust Indenture dated November 11, 1977, creating the Tulsa Authority for Recovery of Energy, formerly known as the Tulsa Energy Resource Recovery Authority, as amended by the within and foregoing Amendment Number Four to said Trust Indenture, for and on behalf of said Beneficiary in all respects in accordance with the terms of said Trust Indenture and all amendments thereto, including amendment Number Four, and as authorized by the City of Tulsa Ordinances.

WITNESS my hand as Chairman of the City Council of the City of Tulsa, Oklahoma, attested by the City Clerk of the City of Tulsa, Oklahoma, this 20th day of February, 2003, at 6:30 p.m.

/s/ William C. Christiansen
Chairman of the Council

APPROVED by the Mayor of the City of Tulsa, Oklahoma, this 24th day of February, 2003, at 9:00 o'clock a.m.

/s/ Bill LaFortune
Mayor

(Seal)

ATTEST:

/s/ Michael P. Kier
City Clerk

APPROVED:

/s/ Andrew T. Rees
Asst. City Attorney

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## CHAPTER 16. TULSA PUBLIC FACILITIES AUTHORITY

Section 1600. Beneficial interest in Tulsa Civic Center Authority accepted.
Section 1601. Identification of Trust and Trustees.
Section 1602. Mayor and City Auditor authorized to endorse approval of Trust and record Trust Indenture.
Section 1603. Approval of Amendment Number One.
Section 1604. Acceptance of Trust Indenture as amended.
Section 1605. Identification of Trust and Trustees.
Section 1606. Mayor and City Auditor authorized to endorse approval of Amendment Number One.
Section 1607. Trustees find Amendment Two necessary.
Section 1608. Mayor and Council find it is in best interest of City to accept Amendment Two.
Section 1609. Tulsa Public Facilities Authority Trust amended.
Section 1610. Mayor and Council Chairman Authorized to endorse and record Amendment Two.
Appendix I Trust Indenture Tulsa Civic Center Authority (Sections 1600, 1601 and 1602) ("Exhibit A" in Ord. No. 14980).
Appendix II Amendment Number One to the Trust Indenture Creating the Tulsa Civic Center Authority Changing the Name to Tulsa Public Facilities Authority and Amending the Purposes of the Trust (Sections 1603, 1604, 1605 and 1606) (Ord. No. 15306).
Appendix III Amendment Number Two to Trust Indenture Dated March 10, 1981, for Tulsa Public Facilities Authority, Formerly Known as the Tulsa Civic Center Authority (Sections 1607, 1608, 1609 and 1610) ("Exhibit A" in Ord. No. 17430).

### Section 1600. Beneficial interest in Tulsa Civic Center Authority accepted.

The Tulsa Civic Center Authority created by Trust Indenture dated March 10, 1981, an executed copy of which Trust Indenture is hereto attached, marked "Exhibit A" and made a part hereof, wherein James M. Inhofe, as Mayor of the City of Tulsa; Patty Eaton, as Commissioner of Waterworks and Sewerage; Jim Hewgley III, as Commissioner of Streets and Public Property; Robert H. Gardner, as Police and Fire Commissioner; and Ronald L. Young, as Commissioner of Finance and Revenue, are designated trustees, and the City of Tulsa, Oklahoma, is designated as the sole beneficiary of said Tulsa Civic Center Authority, is hereby approved and the City of Tulsa hereby accepts the beneficial interest therein, and all of the terms and provisions of said Trust Indenture as authorized by the applicable statutes of the state of Oklahoma and City of Tulsa hereby agrees to be and become the sole beneficiary of said Trust.

*(Ord. No. 14980)*

### Section 1601. Identification of Trust and Trustees.

The City of Tulsa hereby recognizes said Tulsa Civic Center Authority and the trustees named in said Trust Indenture, and in all negotiations and instruments where the term "Tulsa Civic Center Authority" is used, it shall be deemed and construed to mean the trust above mentioned and described.

*(Ord. No. 14980)*

**Section 1602. Mayor and City Auditor authorized to endorse approval of Trust and record Trust Indenture.**

The Mayor and the City Auditor of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture creating the Tulsa Civic Center Authority, and the City's acceptance of the beneficial interest therein, and to cause said Trust Indenture to be recorded in the office of the County Clerk of Tulsa County, Oklahoma.

*(Ord. No. 14980)*

**Section 1603. Approval of Amendment Number One.**

"Amendment No. One to the Trust Indenture Creating the Tulsa Civic Center Authority Changing the name to Tulsa Public Facilities Authority and Amending the Purposes of the Trust," which was approved by the Board of Trustees of the Tulsa Civic Center Authority on March 12, 1982, is hereby approved by the Board of Commissioners of the City of Tulsa, Oklahoma.

*(Ord. No. 15306)*

**Section 1604. Acceptance of Trust Indenture as amended.**

The City of Tulsa hereby accepts the beneficial interest created by said Trust Indenture as amended by "Amendment No. One to the Trust Indenture Creating the Tulsa Civic Center Authority Changing the Name to Tulsa Public Facilities Authority and Amending the Purposes of the Trust."

*(Ord. No. 15306)*

**Section 1605. Identification of Trust and Trustees.**

The City of Tulsa hereby recognizes said Tulsa Public Facilities Authority and the trustees named in said Trust Indenture and, in all negotiations and instruments where the term "Tulsa Public Facilities Authority" is used, it shall be deemed and construed to mean the trust above mentioned and described.

*(Ord. No. 15306)*

**Section 1606. Mayor and City Auditor authorized to endorse approval of Amendment Number One.**

The Mayor and City Auditor of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said "Amendment No. One to the Trust Indenture creating the Tulsa Civic Center Authority changing the name to Tulsa Public Facilities Authority and Amending the Purposes of the Trust" the approval of the City of Tulsa of said Trust Indenture amendment and the City's acceptance of the beneficial interest therein and to cause said amendment to be recorded in the office of the County Clerk of Tulsa County, Oklahoma.

*(Ord. No. 15306)*

**Section 1607. Trustees find Amendment Two necessary.**

Mayor Rodger A. Randle, J. Patrick Cremin, Graydon Dean Luthey, Jr. and Coleman Davis as trustees of the Tulsa Public Facilities Authority, formerly known as the Tulsa Civic

Center Authority, pursuant to a Trust Indenture dated March 10, 1981, hereby find it necessary and in furtherance of the public purposes of the Tulsa Public Facilities Authority, formerly known as the Tulsa Civic Center Authority, to amend said Trust Indenture.

*(Ord. No. 17430)*

**Section 1608. Mayor and Cuncil find it is in best interest of City to accept Amendment Two.**

The Mayor and the City Council of the City of Tulsa hereby find and determine that it is in the best interest of the City of Tulsa and in the public interest to accept Amendment Number Two to said Trust Indenture for the Tulsa Public Facilities Authority, formerly known as the Tulsa Civic Center Authority.

*(Ord. No. 17430)*

**Section 1609. Tulsa Public Facilities Authority Trust amended.**

The Trust Indenture for the Tulsa Public Facilities Authority, formerly known as the Tulsa Civic Center Authority, dated the 10th day of March, 1981, is hereby amended pursuant to the terms of Amendment Number Two to said Trust Indenture dated January 14, 1991, an executed copy of which is attached hereto as "Exhibit A" and made a part hereof.

*(Ord. No. 17430)*

**Section 1610. Mayor and Council Chairman authorized to endorse and record Amendment Two.**

The Mayor and Chairman of the City Council for the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Amendment Number Two to the Trust Indenture the approval of the City of Tulsa of the Amendment Number Two to Trust Indenture creating the Tulsa Public Facilities Authority, formerly named The Tulsa Civic Center Authority, and to cause said amendment to the Trust Indenture to be recorded in the office of the County Clerk of Tulsa, Oklahoma.

*(Ord. No. 17430)*

## APPENDIX I TRUST INDENTURE TULSA CIVIC CENTER AUTHORITY (SECTIONS 1600, 1601, AND 1602)

*("Exhibit A" in Ord. No. 14980)*

KNOW ALL MEN BY THESE PRESENTS:

THIS TRUST AGREEMENT AND INDENTURE, dated this 10th day of March, 1981, by FRANCIS F. CAMPBELL, Auditor of the City of Tulsa, Oklahoma, hereinafter referred to as "Trustor" and JAMES M. INHOFE, Mayor of the City of Tulsa; PATTY EATON, Commissioner of Waterworks and Sewerage; JIM HEWGLEY III, Commissioner of Streets and Public Property; ROBERT H. GARDNER, Police and Fire Commissioner; and RONALD L. YOUNG, Commissioner of Finance and Revenue; to be known as Trustees of the Tulsa Civic Center Authority and hereinafter referred to as "Trustees".

W I T N E S S E T H:

That in consideration of the payment by the Trustor to the Trustees of the sum of Ten Dollars ($10.00), the mutual covenants herein set forth, and other valuable considerations, the Trustees agree to hold, manage, invest, assign, convey and distribute as herein provided, authorized and directed, such property as Trustor, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Trust or the Trustees thereof.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits and increases thereof unto the Trustees, and the successors and assigns of the Trustees, but nevertheless in trust, for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, hereinafter referred to as the "Beneficiary", and upon the following trusts, terms and conditions herein stated.

### ARTICLE I
### Creation of Trust

The undersigned Trustor creates and establishes a trust for the use and benefit of the City of Tulsa, Oklahoma, and for the purposes hereinafter set forth, under the provisions of Title 60, Oklahoma Statutes, Section 176 et seq., as amended, the Oklahoma Trust Act and other applicable statutes of the State of Oklahoma.

### ARTICLE II
### The Name

The name of this Trust shall be the "Tulsa Civic Center Authority", hereinafter referred to as the "Trust". Under that name it shall, so far as practicable, conduct all business and execute all instruments, and otherwise perform its duties and functions in the execution of this Trust.

### ARTICLE III
### Purposes of Trust

The purposes of this Trust are:

**1.** To own, acquire, purchase, lease, plan, establish, develop, construct, enlarge, improve, alter, reconstruct, remodel, rehabilitate, repair, maintain, operate,

administer, staff, regulate, equip, furnish, decorate, finance and refinance or to assist the City of Tulsa to own, acquire, purchase, lease, plan, establish, develop, construct, enlarge, improve, alter, reconstruct, remodel, rehabilitate, repair, maintain, operate, administer, staff, regulate, equip, furnish, decorate, finance and refinance the Tulsa Civic Center and appurtenant parking facilities.

**2.** To hold, maintain and administer any leasehold rights in and to physical properties demised to the beneficiary and to comply with the terms and conditions of any such lease.

**3.** To acquire by lease, purchase or otherwise, and to plan, establish, develop, construct, enlarge, improve, maintain, equip, operate and regulate any and all physical properties designated or needful for utilization in the furnishing and providing of services, in connection with the Tulsa Civic Center facilities and to dispose of, rent or otherwise make provision for properties owned by the Trust but no longer needful for Trust purposes.

**4.** To provide funds for the cost of financing, acquiring, constructing, leasing, equipping, maintaining, repairing and operating the Tulsa Civic Center and buildings and other improvements thereto, and all properties real, personal or mixed required for executing and fulfilling the Trust purposes as set forth in this instrument, and all other charges, costs and expenses necessarily incurred in connection therewith and in so doing, to incur indebtedness, either unsecured or secured by all or any part of the Trust Estate and its revenues.

**5.** To expend all funds coming into the hands of the Trustees as revenue or otherwise in the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the costs and expenses thereof, and in the payment of any other obligation properly chargeable against the Trust Estate, and to distribute the remainder of such funds to the beneficiary municipality.

**6.** To enter into contracts with the City of Tulsa and other parties to carry out the purpose of this Trust.

## ARTICLE IV
## Duration of Trust

The Trust shall have duration for the term of duration of the beneficiary and until such time as its purpose shall have been fulfilled, or until it shall be terminated as hereinafter provided.

## ARTICLE V
## The Trust Estate

The Trust Estate shall consist of:

**1.** The funds and property presently in the hands of the Trustees or to be acquired or constructed by Trustees and dedicated by the Trustor and others to be used for trust purposes.

**2.** Any and all leasehold rights demised to the Trustees by its beneficiary as authorized and empowered by law.

**3.** Any and all money, property, whether real, personal or mixed, rights, choses in actions, contracts, leases, privileges, immunities, franchises, benefits and all other things of value coming into the possession of the Trustees pursuant to the provisions of this Trust Indenture.

**4.** Cash in hand.

The instruments executed for each project, and each issuance of bonds and other indebtedness, shall set out the specific property of the Trust Estate exclusively pledged and mortgaged for the payment of such indebtedness.

## ARTICLE VI
## The Trustees

**1.** There shall be five (5) Trustees of this Trust as follows:

**(a)** The Mayor of the City of Tulsa;

**(b)** The Commissioner of Waterworks and Sewerage;

**(c)** The Commissioner of Streets and Public Property;

**(d)** The Commissioner of Finance and Revenue;

**(e)** The Police and Fire Commissioner.

The Trustees shall serve during their terms of office and until their successors have been duly elected or appointed, and qualified Successor Trustees duly appointed or elected shall, without any further act or conveyance, become fully vested with all of the estate, properties, rights, powers, duties and obligations of their predecessors hereunder with like effect as if originally named as Trustee.

**2.** In the event of a change in the form of government of the City of Tulsa, Oklahoma, successors to the Trustees shall be the elected Mayor or equivalent officer under the new form of government, and four other Trustees who shall be approved by the legislative body of the City of Tulsa under the new form of government upon nomination by the elected Mayor or equivalent officer.

**3.** The Trustees shall, during their terms of office, be subject to removal only by action of the District Court of Tulsa County for good cause shown.

**4.** No Trustee shall be paid any compensation of any kind for his services as a Trustee of this Trust. However, Trustees may be reimbursed for expenses incurred in the performance of their duties hereunder.

**5.** Bonds or other evidences of indebtedness to be issued by the Trustees shall not constitute an indebtedness of the State of Oklahoma, nor of the Beneficiary, nor personal obligation of the Trustees of the Trust but shall constitute obligations of the Trustees payable solely from the Trust Estate. No indebtedness shall be incurred by the Trustees without the prior approval of two-thirds of the governing body of the City of Tulsa, Oklahoma, both as to the purpose and amount of the indebtedness.

**6.** The Trustees, the State of Oklahoma and the Beneficiary hereof shall not be charged personally with any liability whatsoever by reason of any act or omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trust Estate; but any act or liability for any

omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate, shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**7.** Notwithstanding any other provisions of this Indenture which shall appear to provide otherwise, no Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or the Beneficiary, in his or its capacity, nor can the Beneficiary bind or obligate the Trust or any individual Trustee.

**8.** The Trustees shall adopt by-laws for the conduct of their business, and shall elect a Chairman from their members who shall preside at all meetings and perform other duties designated by the Trustees. The Trustees shall elect a Vice Chairman from their members who shall act as Chairman during the temporary absence or disability of the Chairman. If a vacancy occurs in the office of Chairman or Vice Chairman, the Trustees shall elect a successor from their members. The Trustees shall designate the time and place of all regular meetings, which meetings shall be public. All actions by the Trustees pursuant to the provisions of this Trust Indenture shall be approved by the affirmative vote of at least a majority of all the Trustees.

**9.** The Trustees shall file with the governing body of the City of Tulsa a certified copy of the annual audit made of the funds, accounts and fiscal affairs of the Trust at the time as is required by Section 180.3 Title 60, Oklahoma Statutes Annotated.

**10.** The governing body of the Beneficiary shall have the right to conduct or have conducted a complete audit of the funds, accounts and fiscal affairs of the Trust at any time at its discretion.

**11.** The whole title, legal and equitable, to the properties of the Trust is and shall be vested in the Trustees, as such title in the Trustees is necessary for the due execution of this Trust. The Trustees shall have and exercise exclusive management and control of the properties of the Trust Estate for the use and benefit of the Beneficiary.

**12.** The Trustees may compromise any debts or claims of or against the Trust Estate, and may adjust any dispute in relation to such debts or claims by arbitration or otherwise and may pay any debts or claims against the Trust Estate upon any evidence deemed by the Trustees to be sufficient. The Trustees may bring any suit or action, which in their judgment is necessary or proper to protect the interest of the Trust Estate, or to enforce any claim, demand or contract for the Trust; and they shall defend, in their discretion, any suit against the Trust, or the Trustees or employees, agents or servants thereof. They may compromise and settle any suit or action, and discharge the same out of assets of the Trust Estate, together with court costs and attorneys' fees. All of such expenditures shall be deemed proper expenses of executing this Trust.

## ARTICLE VII POWERS AND DUTIES OF THE TRUSTEES

To accomplish the purposes of the Trust, and subject to the provisions and limitations otherwise provided in this Trust Indenture, the Trustees shall have, in addition to the usual powers incident to their office and the powers granted to them by statute and in other parts of this Trust Indenture, the following rights, powers, duties, authority, discretion and privileges:

**1.** To finance, acquire, establish, develop, construct, enlarge, improve, extend, maintain, equip, operate, lease, furnish, provide, supply, regulate, hold, store and

administer any of the systems and facilities designated pursuant to Article III hereof as the Trustees shall determine necessary for the benefit and development of the Beneficiary.

**2.** To employ architectural and engineering firms or consultants as the Trustees deem necessary to prepare such preliminary or detailed studies, plans, specifications, cost estimates and feasibility reports as are required in the opinion of the Trustees. The cost of such engineers, architects and consultants shall be paid out of the proceeds of the sale of bonds or from such other funds as may be available therefor.

**3.** To enter into contracts for the sale of bonds, notes or other evidences of indebtedness or obligations of the Trust for the purpose of acquiring or construction works, systems and facilities authorized to be acquired or constructed pursuant to the terms of this Trust Indenture and for that purpose may:

**(a)** Employ a financial advisor, or committee of advisors, to advise and assist the Trustees in the marketing of such bonds, notes or other evidences of indebtedness or obligations, and to present financial plans for the financing of the acquisition or construction of each project, and to recommend to, or consult with, the Trustees concerning the terms and provisions of bond indentures and bond issues, and may pay appropriate compensation for such work and services performed in the furtherance of the project;

**(b)** Sell all bonds, notes or other evidences of indebtedness or obligations of the Trust in installments or series and on such terms and conditions and in such manner as the Trustees shall deem to be in the best interest of the Trust Estate subject to the provisions of Title 60, Oklahoma Statutes, Section 176, et seq., as amended; and

**(c)** Appoint and compensate attorneys, paying agencies and corporate trustees in connection with the issuance of any such bonds, notes, evidences of indebtedness or other obligations of the Trust.

**4.** To purchase, lease, or otherwise acquire property, real, personal or mixed; to enter into and execute contracts, leases, and operating agreements.

**5.** To make and change investments, to convert real into personal property, and vice versa, to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem proper, and to resell, at any time and as often as they deem advisable, any or all the property in the Trust, to refund outstanding bonded indebtedness and to execute therefor bonds, notes, or other evidences of indebtedness, or obligations, and to secure the same by mortgage, lien, pledge or otherwise; to purchase property from any person, firm, corporation or public Trust, and lease or sublease land and other property to and from the Beneficiary or others and construct, improve, repair, extend, remodel and equip buildings, improvements and other facilities thereon and to operate or lease or rent the same to individuals, partnerships, associations, corporations and others, including the United States of America or the State of Oklahoma and agencies or authorities of the United States of America, or the State of Oklahoma, or of any municipality thereof, and also including all municipal or other political subdivisions of the State of Oklahoma as well as the Beneficiary hereof, and to do all things to accomplish the purposes set out in Article III of this Trust Indenture, and procure funds necessary for such purpose by the sale of bonds or other evidence of indebtedness by mortgages, liens,

pledges or other encumbrances of such real and personal property, buildings, improvements and other facilities owned or otherwise acquired, leased or controlled by Trustees, and by rentals, income, receipts and profits therefrom, or form any other revenues associated with the ownership, operation or control of the property of the Trust; to lease or sublease any property of the Trust, or of which the Trustees may become the owners or lessees.

**6.** To fix, demand and collect charges, rentals and fees for the services and facilities of the Trust to the same extent as the Beneficiary might do and to discontinue furnishing of services and facilities to any person, firm or corporation, or public instrumentality, delinquent in the payment of any indebtedness to the Trust; to purchase and sell such supplies, goods, and commodities as are incident to the operation of its properties.

**7.** To make and perform contracts of every kind, including management and operating contracts, with any person, firm, corporation, association, trusteeship, municipality, government or sovereignty; and subject to the provisions of Article VII(3) set forth above without limit as to amount to draw, make, accept, endorse, assume, guarantee, account, execute and issue promissory notes, drafts, bills of exchange, acceptances, warranties, bonds, debentures, and other negotiable or non-negotiable instruments, obligations and evidences of unsecured indebtedness, or of indebtedness secured by mortgage, deed or trust or otherwise upon any or all income of the Trust, in the same manner and to the same extent as a natural person might or could do; to collect and receive any property, money, rents, or income of any sort and distribute the same or any portion thereof for the furtherance of the authorized Trust purposes set out herein.

**8.** The Trustees may contract for the furnishing of any services or the performance of any duties that they may deem necessary, or proper, and pay for the same as they see fit.

**9.** To do all other acts in their judgment necessary or desirable for the proper and advantageous management, investment and distribution of the Trust Estate and income therefrom.

## ARTICLE VIII BENEFICIARY OF TRUST

**1.** The Beneficiary of this Trust shall be the City of Tulsa, Oklahoma, a municipal corporation, under and pursuant to Title 60, Oklahoma Statutes, Section 176 et seq., as amended, and other statutes of the State of Oklahoma as presently in force and effect. The Trustor declares that this Trust Indenture shall be irrevocable from the moment it is signed by him and delivered to the Trustees, and that it shall thereafter stand without any power whatsoever at any time to alter, amend, revise, modify, revoke or terminate any of the provisions of this Trust Indenture, except with the consent of the Beneficiary and with the consent of at least four-fifths (4/5) of the Trustees.

**2.** The Beneficiary shall have no legal title, claim or right to the Trust Estate, its income or to any part thereof or to demand or require any partition or distribution thereof. Neither shall the Beneficiary have any authority, power or right whatsoever, to do or transact any business for, or on behalf of, or binding upon the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees pertaining to the Trust Estate, or any part thereof. The Beneficiary shall be entitled solely to the

benefits of this Trust, as administered by the Trustees hereunder, and at the termination of the Trust, as provided herein, and then only the Beneficiary shall receive the residue of the Trust Estate.

## ARTICLE IX SECRETARY OF TRUST

The Trustees shall appoint a Secretary of the Trustees to serve at their will, with compensation as set by themselves. The Secretary shall keep minutes of all meetings of the Trustees and shall maintain complete and accurate records of all their financial transactions, all such minutes, books and records to be on file in the principal office of the Trust. All meetings of the Trustees shall be open to the public and conducted in accord with the provisions of the Oklahoma Public Meeting Law and the bonds, records and minutes of the Trustees shall be considered as public records and available for inspection at all times by any interested party.

## ARTICLE X TERMINATION OF TRUST

This Trust shall terminate:

**1.** When the purposes set out in Article III of this instrument shall have been fully executed; or

**2.** In the manner provided by Title 60, Oklahoma Statutes, Section 180, provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of this Trust, and after payment of all debts, expenses and obligations out of the moneys and properties of the Trust Estate to the extent thereof, shall distribute the residue of the money and properties of the Trust Estate to the Beneficiary hereunder. Upon final distribution, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE XI

The Trustees accept the Trust herein created and provided for, and agree to carry out the provisions of this Trust Indenture on their part to be performed.

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands this 10th day of March, 1981.

/s/ Francis F. Campbell
Francis F. Campbell
"Trustor"

/s/ James M. Inhofe
James M. Inhofe

/s/ Patty Eaton
Patty Eaton

/s/ Jim Hewgley III
Jim Hewgley III

/s/ Robert H. Gardner
Robert H. Gardner

/s/ Ronald L. Young
Ronald L. Young

"Trustees"

[ACKNOWLEDGMENTS]

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENTS:

That the Board of Commissioners of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, for and on behalf of said Beneficiary in all respects in accordance with the terms of said Trust Indenture, and as authorized by Ordinance No. 14980 of the City of Tulsa, Oklahoma.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners this 10th day of March, 1981.

CITY OF TULSA

/s/ James M. Inhofe
James M. Inhofe, Mayor

ATTEST:

/s/ F. F. Campbell
City Auditor

(SEAL)

APPROVED:

/s/ Neal E. McNeill
City Attorney

## APPENDIX II AMENDMENT NUMBER ONE TO THE TRUST INDENTURE CREATING THE TULSA CIVIC CENTER AUTHORITY CHANGING THE NAME TO TULSA PUBLIC FACILITIES AUTHORITY AND AMENDING THE PURPOSES OF THE TRUST (SECTIONS 1603, 1604, 1605, AND 1606)

*(Ord. No. 15306)*

KNOW ALL MEN BY THESE PRESENTS:

WHEREAS, the undersigned Trustor, Francis F. Campbell, Auditor of the City of Tulsa, Oklahoma, created a Trust named THE TULSA CIVIC CENTER AUTHORITY (TCCA) for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, under Trust Indenture dated March 10, 1981, between the said Trustor and James M. Inhofe, Mayor of the City of Tulsa; Patty Eaton, Commissioner of Waterworks and Sewerage; Jim Hewgley III, Commissioner of Streets and Public Property; Robert H. Gardner, Police and Fire Commissioner; and Ronald L. Young, Commissioner of Finance and Revenue, referred to therein and herein as "Trustees;" and

WHEREAS, the Trustor desires to amend the name of the Trust and to broaden the powers of the Trust; and

WHEREAS, the Trust Indenture can be amended only by the Trustor with the consent of the City of Tulsa as beneficiary and the consent of the current Trustees.

NOW, THEREFORE, I, the undersigned Trustor, under Trust Indenture named the Tulsa Civic Center Authority, dated March 10, 1981, between Francis F. Campbell as Trustor and James M. Inhofe, Patty Eaton, Jim Hewgley III, Robert H. Gardner and Ronald L. Young as Trustees, do hereby amend the said Trust Indenture subject to the approval of two-thirds (2/3rds) of the members of the governing body of the City of Tulsa, and further subject to the approval of the current Trustees, James M. Inhofe, Mayor of the City of Tulsa; Patty Eaton, Commissioner of Waterworks and Sewerage; Jim Hewgley III, Commissioner of Streets and Public Property; Robert H. Gardner, Police and Fire Commissioner; and Ronald L. Young, Commissioner of Finance and Revenue, as follows:

A.

Article II of said Trust Indenture entitled "The Name" is hereby amended to read in its entirety as follows:

"**ARTICLE II**
**The Name**

The name of this Trust shall be the "TULSA PUBLIC FACILITIES AUTHORITY" hereinafter referred to as the "Trust." Under that name it shall, so far as practicable, conduct all business and execute all instruments, and otherwise perform its duties and functions in the execution of this Trust.

B.

Article III of the said Trust Indenture entitled "Purposes of Trust" is hereby amended to read in its entirety as follows:

"**ARTICLE III**
**Purposes of Trust**

"The purposes of this Trust are:

"1. To provide, assist in providing and to otherwise promote, secure and encourage the development, redevelopment, renovation and rehabilitation of such properties, real, personal and mixed, and facilities as are necessary and/or convenient to the performance of any governmental or proprietary purposes or activities of the City of Tulsa, Oklahoma, and any authorized activities of any department, board, commission, agency, instrumentality or constituted authority of the City of Tulsa, Oklahoma, and any of the same created by any compact to which the City of Tulsa, Oklahoma, is a party.

"2. To own, acquire, purchase, lease, plan, establish, develop, construct, enlarge, improve, alter, reconstruct, remodel, rehabilitate, repair, maintain, operate, administer, staff, regulate, equip, furnish, finance and refinance the properties and facilities referred to in Section 1 above.

"3. To hold, maintain and administer any leasehold rights in and to physical properties demised to the beneficiary and to comply with the terms and conditions of any such lease.

"4. To acquire by lease, purchase or otherwise, and to plan, establish, develop, construct, enlarge, improve, maintain, equip, operate and regulate any and all physical properties designated or needful for utilization in the furnishing and providing of services in connection with the above referenced utilities, facilities and public improvements and to dispose of, rent or otherwise make provisions for properties owned by the Trust but no longer needful for Trust purposes.

"5. To provide funds for the cost of financing, acquiring, constructing, leasing, equipping, maintaining, repairing and operating the public utilities, facilities and other public improvements and all properties, real, personal or mixed, required for executing and fulfilling the trust purposes as set forth in this instrument, and all other charges, costs and expenses necessarily incurred in connection therewith, and in so doing to incur indebtedness, either unsecured or secured, by all or any part of the Trust estate and its revenues.

"6. To expend all funds coming into the hands of the Trustees as revenue or otherwise in the payment of any indebtedness incurred by the Trustees for purposes specified herein and in the payment of the costs and expenses thereof, and in the payment of any other obligation properly chargeable against the Trust estate, and to distribute the remainder of such funds to the beneficiary municipality.

"7. To enter into contracts with the City of Tulsa and other parties to carry out the purposes of this Trust."

C.

Except as herein amended, the Trustor and Trustees hereby ratify and confirm the provisions of the Trust.

IN WITNESS WHEREOF, this amendment to Trust Indenture has been duly executed on the 15th day of March, 1982, and shall be effective on the 16th day of March, 1982.

/s/ Francis F. Campbell
Francis F. Campbell

"Trustor"

APPROVAL OF TRUSTEES:

/s/ James M. Inhofe
James M. Inhofe, Mayor

/s/ Patty Eaton
Patty Eaton, Commissioner of Waterworks and Sewerage

/s/ Jim Hewgley III
Jim Hewgley III, Commissioner of Streets and Public Property

/s/ Robert H. Gardner
Robert H. Gardner, Police and Fire Commissioner

/s/ Ronald L. Young
Ronald L. Young, Commissioner of Finance and Revenue

"Trustees"

APPROVED BY THE CITY OF TULSA AS BENEFICIARY:

THE CITY OF TULSA, OKLAHOMA,
a municipal corporation

/s/ James M. Inhofe
James M. Inhofe, Mayor

ATTEST:

/s/ Francis F. Campbell
Francis F. Campbell, City Auditor

APPROVED:

/s/ Neal E. McNeill
Neal E. McNeill, City Attorney

[ACKNOWLEDGMENTS]

**ACCEPTANCE**

KNOW ALL MEN BY THESE PRESENTS:

THAT the Board of Commissioners of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the Trust

Indenture for the Tulsa Civic Center Authority (now known as the "Tulsa Public Facilities Authority") which was approved by City of Tulsa Ordinance No. 14980 and which was amended by the within and foregoing "Amendment No. One to the Trust Indenture Creating the Tulsa Civic Center Authority Changing the Name to Tulsa Public Facilities Authority and Amending the Purposes of the Trust" for and on behalf of said beneficiary in all respects in accordance with terms of said Trust Indenture as amended and as authorized by Ordinance No. 15306 of the City of Tulsa, Oklahoma.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma.

ATTESTED by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners this 16th day of March, 1982.

CITY OF TULSA, OKLAHOMA,
a municipal corporation

/s/ James M. Inhofe
Mayor

(SEAL)

ATTEST:

/s/ Francis F. Campbell
City Auditor

APPROVED:

/s/ Neal E. McNeill
City Attorney

## APPENDIX III AMENDMENT NUMBER TWO TO TRUST INDENTURE DATED MARCH 10, 1981, FOR TULSA PUBLIC FACILITIES AUTHORITY, FORMERLY KNOWN AS THE TULSA CIVIC CENTER AUTHORITY (SECTIONS 1607, 1608, 1609, AND 1610)

*("Exhibit A" in Ord. No. 17430)*

KNOW ALL MEN BY THESE PRESENTS:

WHEREAS, the original Trustor, Francis F. Campbell, created a Trust named the Tulsa Civic Center Authority for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, under Trust Indenture dated March 10, 1981, between the said Trustor and James M. Inhofe, Mayor of the City of Tulsa; Patty Eaton, Commissioner of Waterworks and Sewerage; Jim Hewgley III, Commissioner of Streets and Public Property; Robert H. Gardner, Police and Fire Commissioner; and Ronald L. Young, Commissioner of Finance and Revenue, referred to therein as Trustees; and

WHEREAS, on March 16, 1982, said Trust was amended by Amendment Number One in which the name of the Trust was changed to the Tulsa Public Facilities Authority and the purposes of the Trust were amended; and

WHEREAS, the successor Trustor, Philip W. Wood, desires to amend the Trust to change the Trustees, the number of the Trustees, and the terms of service of the Trustees; and

WHEREAS, the Trust Indenture can be amended only by the Trustor with the consent of the City of Tulsa as beneficiary and the consent of the successor Trustees.

NOW, THEREFORE, I, the undersigned successor Trustor, Philip W. Wood, under Trust Indenture creating the Tulsa Civic Center Authority dated March 10, 1981, between Francis F. Campbell as Trustor and James M. Inhofe, Mayor of the City of Tulsa; Patty Eaton, Commissioner of Waterworks and Sewerage; Jim Hewgley III, Commissioner of Streets and Public Property; Robert H. Gardner Police and Fire Commissioner; and Ronald L. Young, Commissioner of Finance and Revenue, as Trustees, do hereby amend said Trust Indenture subject to the approval of a sufficient number of members of the governing body of The City of Tulsa and further subject to the approval of the successor Trustees, Rodger A. Randle, Mayor of the City of Tulsa under the new form of government of the City of Tulsa, J. Patrick Cremin, Graydon Dean Luthey, Jr., and Coleman Davis as follows:

Article VI of said Trust Indenture, entitled "The Trustees", is hereby amended in paragraphs one and two to read as follows:

### ARTICLE VI
The Trustees

(l) There shall be five Trustees of the Trust who shall serve for the initial and successive terms as stated below and who shall be subject to applicable conflict of interest laws.

(a) One of the Trustees shall be ex officio the Mayor of the City of Tulsa, or in the Mayor's absence the Mayor's designated representative who shall be a full-time City employee.

(b) Four of the Trustees shall be appointed by the Mayor of the City of Tulsa subject to the approval by a majority vote of the membership of the City Council. Two of these initial Trustees shall be appointed by the Mayor for terms of three years, one for a term of two years, and one for a term of one year. The terms of these initial Trustees shall expire on July 31 of the appropriate year.

(c) Successor Trustees to the five Trustees described in paragraph (b) shall be appointed by the Mayor of the City of Tulsa subject to approval by a majority vote of the membership of the City Council to serve for three year terms which shall expire on July 31 of the appropriate year. The Trustee who shall be the Mayor of the City of Tulsa shall serve during his or her term of office. The designated representative who is selected to serve as Trustee in place of the Mayor as set forth in paragraph (a) shall serve a one-year term which shall expire on July 31 of the appropriate year and which shall in no event extend for any period of time beyond the term of office of the appointing Mayor.

(2) Duly appointed successor Trustees shall, without further act or conveyance, become fully vested with all of the estate, properties, rights, powers, duties and obligations of their predecessors hereunder with like effect as if originally named as Trustees.

Except as herein amended, the Trustor and Trustees hereby ratify and confirm the provisions of the Trust as originally executed and as modified by Amendment Number One.

IN WITNESS WHEREOF, this Amendment to Trust Indenture has been duly executed on the 14th day of January, l991, and shall be effective on the date of execution.

/s/ Philip W. Wood
Philip W. Wood, Trustor

APPROVAL OF TRUSTEES:

/s/ Rodger A. Randle
Rodger A. Randle, Mayor

/s/ J. Patrick Cremin
J. Patrick Cremin

/s/ Graydon Dean Luthey, Jr.
Graydon Dean Luthey, Jr.

/s/ Coleman Davis
Coleman Davis
"Trustees"

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 14th day of January, l991, personally appeared Philip W. Wood, to me known to be the identical person who executed the within and foregoing instrument as Trustor and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Traci L. Hushbeck
Notary Public

My commission expires: 12-14-91

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 9th day of January, l991, personally appeared Rodger A. Randle to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Traci L. Hushbeck
Notary Public

My commission expires: 2/14/91

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 9th day of January, l991, personally appeared J. Patrick Cremin to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Traci L. Hushbeck
Notary Public

My commission expires: 12/14/91

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 9th day of January, l991, personally appeared Graydon Dean Luthey, Jr. to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Traci L. Hushbeck
Notary Public

My commission expires: 12/14/91

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 9th day of January, l991, personally appeared Coleman Davis to me known to be the identical person who executed the within and foregoing instrument as Trustee and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Traci L. Hushbeck
Notary Public

My commission expires: 12-14-91

STATE OF OKLAHOMA )
) ss:
COUNTY OF TULSA )

Before me, the undersigned Notary Public in and for said County and State, on this 9th day of January, l991, personally appeared Rodger A. Randle, to me known to be the identical person who executed the within and foregoing instrument as Mayor and acknowledged to me that he executed the same as his free and voluntary act and deed for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

/s/ Traci L. Hushbeck
Notary Public

My Commission Expires: 12/14/91

## APPROVAL BY CITY OF TULSA, BENEFICIARY

KNOW ALL MEN BY THESE PRESENTS:

The City Council of the City of Tulsa, Oklahoma, a municipal corporation, hereby authorizes and approves the within and foregoing Amendment Number Two to Trust Indenture Dated March 10, 1981, For Tulsa Public Facilities Authority, Formerly Known As The Tulsa Civic Center Authority, as beneficiary of said Trust.

WITNESS my hand as Chairman of the City Council of the City of Tulsa, Oklahoma, attested by the City Clerk of the City of Tulsa, Oklahoma, this 29th day of January, 1991.

By /s/ Gary Watts
Chairman of the Council

Approved by the Mayor of the City of Tulsa, Oklahoma, this 1st day of February, 1991, at 9:15 o'clock a.m.

/s/ Rodger Randle
Rodger Randle, Mayor

ATTEST:

/s/ Ronald L. Payne
City Clerk

APPROVED:

/s/ Neal E. McNeill
City Attorney

## ACCEPTANCE

KNOW ALL MEN BY THESE PRESENTS:

The City Council of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the Trust Indenture dated March 10, 1981, creating the Tulsa Public Facilities Authority, formerly known as the Tulsa Civic Center Authority, as amended by the within and foregoing Amendment Number Two to said Trust Indenture, for and on behalf of said Beneficiary in all respects in accordance with the terms of said Trust Indenture and all amendments thereto including Amendment Number Two, and as authorized by the City of Tulsa Ordinances.

WITNESS my hand as Chairman of the City Council of the City of Tulsa, Oklahoma, attested by the City Clerk of the City of Tulsa, Oklahoma, this 29th day of January, 1991.

/s/ Gary Watts
Chairman of the Council

OFFICE OF THE MAYOR

Received by the Mayor this _____ day of N/A, 1990, at _____ o'clock _.m.

Rodger A. Randle, Mayor

By: _____
Secretary

Approved by the Mayor of the City of Tulsa, Oklahoma, this 1st day of February, 1991, at 9:15 o'clock a.m.

/s/ Rodger Randle
Rodger Randle, Mayor

ATTEST:

/s/ Ronald L. Payne
City Clerk

APPROVED:

/s/ Neal E. McNeill
City Attorney

## CHAPTER 17. UNIVERSITY CENTER AT TULSA AUTHORITY

Section 1700. Reserved.
Section 1701. Reserved.
Section 1702. Reserved.
Section 1703. Dissolution and termination of University Center at Tulsa Authority public trust.
Section 1704. Repealed sections and appendix resulting from termination of University Center at Tulsa Authority public trust.

### Section 1700. Reserved.

**Editor's note—**Ord. No. 24225, adopted September 18, 2019, repealed § 1700, which pertained to University Center at Tulsa Authority accepted and derived from Ord. No. 16412.

### Section 1701. Reserved.

**Editor's note—**Ord. No. 24225, adopted September 18, 2019, repealed § 1701, which pertained to recognition of Trust and Trustees and derived from Ord. No. 16412.

### Section 1702. Reserved.

**Editor's note—**Ord. No. 24225, adopted September 18, 2019, repealed § 1702, which pertained to Mayor and City Auditor authorized and directed to endorse approval of Trust and record Declaration of Trust and derived from Ord. No. 16412.

### Section 1703. Dissolution and termination of University Center at Tulsa Authority public trust.

The Tulsa City Council, the governing body of the City of Tulsa, an Oklahoma municipal corporation, having been provided the fully executed and filed December 20, 2018 Executive Order 2018-33 of Mary Fallin, the Governor of the State of Oklahoma approving the dissolution and termination of the University Center at Tulsa Authority, created pursuant to Title 60, Oklahoma Statutes, Section 176, et seq., by Declaration of Trust dated July 26, 1985, wherein the City of Tulsa, Oklahoma, is designated as the sole beneficiary of said public trust, did review and examine the Governor's Executive Order 2018-33, as well as the following described four (4) documents:

A true and correct signed copy of the officially approved October 30, 2018, Minutes of the Board of Trustees of said trust reflecting unanimous vote authorizing and approving "all action deemed necessary including necessary expenditures to enact dissolution and/or discontinuance of operations of the UCT Authority," and

A true and correct copy of the University Center at Tulsa Authority Financial Statements with Independent Audit Report of Regier, Carr and Monroe, LLP, CPAs, for the seven-month period ended January 31, 2019 and Year Ended June 30, 2018, showing no assets and no liabilities or outstanding trust indebtedness, and no fixed-term trust obligations, and

A true and correct signed copy of the officially approved April 4, 2019, Minutes of the Board of Trustees of said public trust unanimously approving the Board's Resolution terminating the University Center at Tulsa Authority public trust, and

A true and accurate fully executed copy of the University Center at Tulsa Authority's Resolution terminating the University Center at Tulsa Authority public trust, dated April 4, 2019; and accordingly,

does hereby approve such dissolution and termination of the University Center at Tulsa Authority public trust.

*(Ord. No. 24225, 9-18-19)*

**Section 1704. Repealed sections and appendix resulting from termination of University Center at Tulsa Authority public trust.**

The University Center at Tulsa Authority public trust having thus been terminated by Section 1703, both in conformance with Section IX of its Declaration of Trust and with Title 60, Oklahoma Statutes, Section 180, and therefore, Title 39, Chapter 17, of Tulsa Revised Ordinances is amended by removing Sections 1700 through and including 1702, together with any Appendices, and such Sections 1700, 1701, and 1702 are hereby repealed.

*(Ord. No. 24225, 9-18-19)*

## CHAPTER 18. LONG-TERM CARE MANAGEMENT AUTHORITY OF TULSA

Section 1800. Beneficial interest in Long-Term Care Management Authority of Tulsa accepted.
Section 1801. Recognition of Trust and Trustees.
Section 1802. Mayor and City Auditor authorized to endorse approval of Trust and record Trust Indenture.
Section 1803. Approval of the first amendment to Trust Indenture and acceptance of Beneficial Interest.
Section 1804. Mayor and City Clerk authorized to endorse approval of the first amendment and to record the first amendment.
Appendix I Trust Indenture Long-Term Care Management Authority of Tulsa (Sections 1800, 1801 and 1802) ("Exhibit A" in Ord. No. 16929).
Appendix II First Amendment to Trust Indenture Long-Term Care Management Authority of Tulsa (sections 1803 and 1804) ("Exhibit A" in Ord. No. 17500).

### Section 1800. Beneficial interest in Long-Term Care Management Authority of Tulsa accepted.

The Long-Term Care Management Authority of Tulsa, created by Trust Indenture dated the 8th day of December, 1987, a copy of which is attached hereto marked "Exhibit A" and made a part hereof, and wherein Gary Watts, John Selph, Paul Shireman, Sharon Corbitt, William Kohl, George Masters, Donald Crowl, George Prothro, M.D., Ira Trail Adams, Doyal Knowles and Gerald Carson are designated trustees, and the City of Tulsa and the County of Tulsa are designated as the sole beneficiaries, is hereby approved; and the City of Tulsa accepts a beneficial interest therein, and all of the terms and provisions of the Trust Indenture as authorized by the applicable statutes of the state of Oklahoma.

*(Ord. No. 16929)*

### Section 1801. Recognition of Trust and Trustees.

The City of Tulsa recognizes Long-Term Care Management Authority and the trustees named in said Trust Indenture, and in all negotiations where the term "Long-Term Care Management Authority of Tulsa" is used, it shall be deemed and construed to mean the trust above mentioned and described.

*(Ord. No. 16929)*

### Section 1802. Mayor and City Auditor authorized to endorse approval of Trust and record Trust Indenture.

The Mayor and the City Auditor are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture the approval of the City of Tulsa of the Trust Indenture creating the Long-Term Care Management Authority of Tulsa and the acceptance of a beneficial interest therein, and cause the Trust Indenture to be recorded in the office of the County Clerk and ex officio Register of Deeds of the County of Tulsa, Oklahoma.

*(Ord. No. 16929)*

### Section 1803. Approval of the first amendment to Trust Indenture and acceptance of Beneficial Interest.

The Long-Term Care Management Authority of Tulsa, created by Trust Indenture dated December 18, 1987, as amended by the First Amendment, a copy of which is attached

hereto, marked "Exhibit A" and made a part hereof, wherein the City of Tulsa remains cobeneficiary with Tulsa County, Oklahoma, of the Long-Term Care Management Authority of Tulsa, is hereby approved and the City of Tulsa hereby accepts the beneficial interest therein and all the terms and provisions of the Trust Indenture, as amended, as authorized by the applicable statutes of the state of Oklahoma; and the City of Tulsa, Oklahoma hereby agrees to be, become and remain the cobeneficiary of the trust.

*(Ord. No. 17500)*

### Section 1804. Mayor and City Clerk authorized to endorse approval of the first amendment and to record the first amendment.

The Mayor and City Clerk are hereby authorized, instructed and directed to execute and endorse upon the original of the First Amendment to the Trust Indenture, the approval of the City of Tulsa and the City's acceptance of the beneficial interests therein and to cause the First Amendment to the Trust Indenture to be recorded in the office of the County Clerk and ex officio Registrar of Deeds of the County of Tulsa, Oklahoma.

*(Ord. No. 17500)*

## APPENDIX I TRUST INDENTURE LONG-TERM CARE MANAGEMENT AUTHORITY OF TULSA (SECTIONS 1800, 1801, AND 1802)

*("Exhibit A" in Ord. No. 16929)*

KNOW ALL PERSONS BY THESE PRESENTS:

THIS TRUST AGREEMENT AND INDENTURE, dated this 14th day of December, 1987, by the Mayor of the City of Tulsa, Oklahoma, and the Chairman of the Board of Commissioners of Tulsa County, Oklahoma, both hereinafter referred to as Trustors, and

Ira Trail Adams, Tulsa, Oklahoma
Gerald L. Carson, Tulsa, Oklahoma
Sharon L. Corbitt, Tulsa, Oklahoma
Donald E. Crowl, Tulsa, Oklahoma
Doyal W. Knowles, Tulsa, Oklahoma
William A. Kohl, Tulsa, Oklahoma
George W. Masters, Tulsa, Oklahoma
George W. Prothro, M.D., Tulsa, Oklahoma
John Selph, Tulsa, Oklahoma
Paul M. Shireman, Tulsa, Oklahoma
Gary L. Watts, Tulsa, Oklahoma

to be known as "Trustees of the Long-Term Care Management Authority of Tulsa," and hereinafter referred to as "Trustees."

W I T N E S S E T H:

That in consideration of the payment by the Trustors to the Trustees of the sum of Ten Dollars ($10.00) and of the mutual covenants herein set forth, the Trustees agree to hold manage, invest, assign, convey and distribute, as herein provided, authorized and directed, such property as may from time to time be assigned, transferred, leased, conveyed, given, bequeathed, devised or delivered unto this Authority or the Trustees hereof.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits and increases thereof unto said Trustees, and said Trustees' successors and assigns, but nevertheless in Trust, for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, and the County of Tulsa, Oklahoma, a subdivision of the State of Oklahoma, and upon the following trusts, terms and conditions herein stated.

### ARTICLE I
### Creation of Trust

The undersigned Trustors create and establish a Trust for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, and the County of Tulsa, Oklahoma, a subdivision of the State of Oklahoma, for the public purposes hereinafter set forth, under the provisions of Title 60, Oklahoma Statutes, 1981, Sections 176 et seq., the Oklahoma Public Trust Act, and other applicable Statutes of the State of Oklahoma.

### ARTICLE II
### Name

The name of this Trust shall be LONG-TERM CARE MANAGEMENT AUTHORITY OF TULSA hereinafter referred to as "Authority." The Trustees shall conduct all business and execute all instruments, and otherwise perform the duties and functions required in the execution of this Trust.

## ARTICLE III
## Purposes of Trust

The purposes of this Trust are:

**1.** To assure the quality of care and cost-effectiveness of long-term care services which benefit the following groups in the greater Tulsa area: frail elderly persons, physically disabled adults, chronically mentally ill adults, developmentally disabled persons of all ages, and disabled veterans. Adults shall be defined as persons eighteen (18) years of age or over.

Long-term care services are those services needed by persons who lack some capacity for self-care due to physical or mental impairments which result in reduced functional ability and dependence on others and include health, social, personal care, financial, special housing, and supportive services that are delivered for a sustained period whether provided on an intermittent or continuous basis. Long-term care may be provided in the home, community, or an institution.

**2.** To provide planning services, program developments, fiscal management, contract administration, and monitoring and evaluation of governmental and non-governmental programs and services for the aforementioned persons.

**3.** To designate, prior to the start of each fiscal year, the jurisdictions, geographic areas, and target groups to be addressed by the Authority in the upcoming fiscal year.

**4.** To develop and apply standards of care, performance measures, and other indicators of the quality of care applicable to each long-term care service, taking into account the cost for each service, the cost of monitoring each service, and applicable federal and state laws and regulations governing standards of care.

**5.** To solicit and receive funds from government and private sources to be used to purchase long-term care services for persons who could not otherwise afford such services.

**6.** To develop and maintain mechanisms to assure accountability to each governmental and private agency which channels funds and other resources for long-term care through the Authority.

**7.** To be the fiscal intermediary for governmental and non-governmental programs by receiving invoices from and reimbursing service providers.

**8.** To provide, contract, arrange, or issue vouchers for the delivery of the range of services required to maximize the level of functioning and independence of persons who need long-term care while ensuring the efficient and equitable use of limited resources.

**9.** To assure that persons with long-term care needs have continually updated plans of care that include a mix of the most appropriate formal services and informal care provided by family members, friends, neighbors, church members, and other volunteers; and, further, to assure persons' continuity of care among all levels and types of care.

**10.** To develop and maintain a management information system that generates service and financial information that is required for accountability to funding sources, is

useful for planning and evaluation, assists in maintaining cost controls, and can be used by service providers to meet their reporting requirements to the Authority and assist with their administering of services.

**11.** To charge and collect fees and to receive voluntary contributions from the users of long-term care services or their families, including use of sliding fee scales based on a person's ability to pay, use of annual fees, or other methods of exacting user payments that are consistent with federal and state laws and approved by the Trustees as set forth in Article VII.

**12.** To carry out said public purposes by issuing bonds, notes, and other obligations in such manner and at such price as the Trustees may deem desirable and to secure the payment of such bonds, notes, and other obligations by the pledge of all or any part of the income and rents of the Authority all in conformity with Title 60, Oklahoma Statutes, 1981, Sections 176 et seq.

**13.** To hold, maintain and administer any property or any leasehold rights in and to physical properties demised to the Trust Estate, and to comply with the terms and conditions of any such lease.

**14.** To provide funds for the costs of financing, acquiring, constructing, purchasing, equipping, maintaining, repairing, improving, enlarging, remodeling, holding, operating, administering and contracting for any or all of the aforesaid services, utilities, buildings, facilities and all properties (real, personal or mixed), needful for executing and fulfilling the Trust purposes as set forth in this Indenture and all charges, costs and expenses necessarily incurred in connection therewith, and in so doing to incur indebtedness either unsecured or secured by all or any part of the Trust Estate and its revenues.

**15.** To expend all funds coming into the hands of the Trustees as revenue or otherwise for the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of any other obligation properly chargeable against the Trust Estate, and to distribute the remainder of such funds to advance the purposes specified herein.

## ARTICLE IV
## Duration of Trust

This Trust shall have duration for the term of duration of the Beneficiaries or until such time as its purpose shall have been fulfilled, or until it shall be terminated hereinafter provided.

## ARTICLE V
## The Trust Estate

The Trust Estate shall consist of:

**1.** The funds and property presently in the hands of the Trustees or to be acquired by Trustees and dedicated by others to be used for trust purposes.

**2.** Any and all leasehold rights demised to the Trustees for the purposes of this Trust.

**3.** Any and all money, property (real, personal or mixed), rights, choses in action, contracts, leases, privileges, immunities, franchises, benefits and all other things of value coming into the possession of the Trustees, pursuant to the provisions of this Trust Indenture.

## ARTICLE VI
## The Trustees

**1.** There shall be eleven (11) Trustees of this Trust:

**a.** One Trustee shall be an elected officer of the City of Tulsa, Oklahoma. Said Trustee shall be selected by the city Board of Commissioners and shall serve during his or her term of office and until a successor has been duly elected or appointed and qualified. In the event of a change in the form of the government of the City of Tulsa, successors to this Trustee shall be an elected officer approved by the legislative body of the City of Tulsa under the new form of government. The Mayor may designate an alternate elective officer of the Board of Commissioners of the City of Tulsa to attend meetings of the Trustees in the absence of said Trustee.

**b.** Paul M. Shireman, shall be a Trustee for a term of three years, commencing on the date of this Indenture. The successor Trustee shall be appointed by the Mayor, and approved by the legislative body of the City of Tulsa, from a list of two to five nominees submitted by the Tulsa Area Council on Aging or any successor area advisory council established pursuant to the Older Americans Act of 1965, as amended. Successor Trustees shall serve for terms of three years. The Mayor may designate an alternate elective officer of the Board of Commissioners of the City of Tulsa to attend meetings of the Trustees in the absence of said Trustee.

**c.** George W. Masters, shall be a Trustee for a term of one year, commencing on the date of this Indenture. The successor Trustee shall be appointed by the Mayor, and approved by the legislative body of the City of Tulsa, from a list of two to five nominees selected by the local member organization or organizations that have voting status in the National Council on Independent Living, Inc., a non-profit corporation, or its successor organizations. Successor Trustees shall serve for terms of three years. The Mayor may designate an alternate elective officer of the Board of Commissioners of the City of Tulsa to attend meetings of the Trustees in the absence of said Trustee.

**d.** William A. Kohl, shall be a Trustee for a term of two years, commencing on the date of this Indenture. The successor Trustee shall be appointed by the Mayor, and approved by the legislative body of the City of Tulsa, from a list of two to five nominees submitted by the Metropolitan Tulsa Chamber of Commerce. Successor Trustees shall serve for terms of three years. The Mayor may designate an alternate elective officer of the Board of Commissioners of the City of Tulsa to attend meetings of the Trustees in the absence of said Trustee.

**e.** Sharon L. Corbitt, shall be a Trustee for a term of three years, commencing on the date of this Indenture. The successor Trustee shall be appointed by the Mayor, and approved by the legislative body of the City of Tulsa, from a list of two to five nominees submitted by the Community Service Council of Greater Tulsa, Inc. Successor Trustees shall serve for terms of four years. The Mayor may designate an alternate elective officer of the Board of Commissioners of the City of Tulsa to attend meetings of the Trustees in the absence of said Trustee.

**f.** One Trustee shall be an elected officer of the County of Tulsa. Said Trustee shall be selected by the Board of County Commissioners and shall serve during his or her term of office and until a successor has been duly elected or appointed and

qualified. The Chairman of the Board of County Commissioners may designate an alternate elected officer of the County of Tulsa to attend meetings of the Trustees to this Authority in the absence of said Trustee.

**g.** George W. Prothro, M.D. shall be a Trustee for a term of one year, commencing on the date of this Indenture. The successor Trustee shall be appointed by the Chair of the County Commission, on approval of the Board of County Commissioners, from a list of two or three nominees submitted separately by the Tulsa County Medical Society and the Tulsa District Osteopathic Society. Successor Trustees shall serve for terms of three years.

**h.** Ira Trail Adams, shall be a Trustee for a term of two years, commencing on the date of this Indenture. The successor Trustee shall be appointed by the Chair of the County Commission, on approval of the Board of County Commissioners, from a list of two to five nominees selected by the Tulsa County Mental Health, Substance Abuse, and Domestic Violence Planning and Coordination Board or other body established pursuant to Oklahoma Statures (sic), 1983, 43A, Chapter 614, et seq. Said "Mental Health Board" shall select nominees in consultation with the local affiliates of the Oklahoma Alliance for the Mentally Ill and the Mental Health Association in Tulsa. Successor Trustees shall serve for terms of three years.

**i.** Donald E. Crowl, shall be a Trustee for a term of three years, commencing on the date of this Indenture. The successor Trustee shall be appointed by the Chair of the County Commission, on approval of the Board of County Commissioners, from a list of two to five nominees selected by the local unit member organization or organizations of the Association for Retarded Citizens of the United States or its successor organizations. Successor Trustees shall serve for terms of three years.

**j.** Gerald L. Carson, shall be a Trustee for a term of three years, commencing on the date of this Indenture. The successor Trustee shall be appointed by the Chair of the County Commission, on approval of the Board of County Commissioners, from a list of two to five nominees selected by the Tulsa Business Health Group, Inc. Successor Trustees shall serve for terms of three years.

**k.** Doyal W. Knowles, shall be a Trustee for a term of four years, commencing on the date of this Indenture. The successor Trustee shall be appointed by the Chair of the County Commission, on approval of the Board of County Commissioners, from a list of two to five nominees selected by the Community Service Council of Greater Tulsa, Inc. Successor Trustees shall serve for terms of four years.

**2.** Vacancies occurring otherwise than through the expiration of term shall be filled for the unexpired term in the same manner as that provided for the appointment as a successor Trustee.

**3.** Each successor Trustee duly appointed shall, without any further act or conveyance become fully vested with all the estate, properties, rights, powers, duties, and obligations of his or her predecessor hereunder, with like effect as if originally named as Trustee.

**4.** The Authority shall have ex-officio members. Such members shall not have the right to vote, but shall have the right of discussion at meetings of the Authority. The ex-officio, non-voting members shall consist of the director, or a designated representative with authority to speak on behalf of the director, of the following agencies, divisions of

agencies, or organizations: the Medical Services Division, Aging Division, and Developmental Disabilities Services Division of the Department of Human Services, State of Oklahoma; Department of Mental Health, State of Oklahoma; the Chronic Disease and Eldercare Division and Medical Facilities Division, Department of Health, State of Oklahoma; Veterans Administration Medical Center, Muskogee; Tulsa Area United Way; and the Tulsa Metropolitan Nursing Home Association.

**5.** The Trustees shall elect from their members a Chair who shall preside at all meetings and perform other duties designated by the Trustees. The Trustees shall elect from their members a Vice Chair who shall serve as such until another member is elected Vice Chair. The terms of the Chair and Vice Chair shall coincide with their respective terms as Trustees. The Vice Chair shall act as Chair during the temporary absence or disability of the Chair. If a permanent vacancy occurs in the office of Chair or Vice Chair, the Trustees shall elect a successor thereto from its members.

**6.** All actions by the Trustees shall be approved by the affirmative vote of at least a majority of all the Trustees. As set forth by By-Laws adopted by the Trustees, certain powers and duties may be executed by the Chair, an Executive Committee, an executive director, or other officers acting on behalf of the Trustees.

**7.** No Trustee shall be paid any compensation of any kind for his or her services as a Trustee of this Authority. However, a Trustee may be reimbursed for actual expenses incurred in the performance of duties hereunder.

**8.** The Trustees, the State of Oklahoma, the City of Tulsa, the County of Tulsa or any agency thereof, shall not be charged personally with any liability whatsoever by reason of any act or omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trust Estate; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate, shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**9.** Notwithstanding any other provisions of this Indenture which shall appear to provide otherwise, no Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, the State of Oklahoma, or the Beneficiaries, in his or its capacity, nor can the Beneficiaries or the State of Oklahoma bind or obligate the Trust or any individual Trustee.

## ARTICLE VII
## Powers and Duties of the Trustees

To accomplish the purposes of the Trust, and subject to the provisions and limitations otherwise provided in this Trust Indenture, the Trustees shall have, in addition to the usual powers incident to their office and the powers granted to them in other parts of this Trust Indenture, the following rights, power, duties, authority, discretion and privileges, all of which may be exercised by them without any order or authority from any court, but limited to the extent provided by the Oklahoma Public Trust Act, Title 60, Oklahoma Statutes, 1986, Sections 176 et seq., and other applicable statutes of the State of Oklahoma, as follows:

**1.** To establish policies, procedures, and by-laws relating to the purposes set forth in Article III of this Trust Indenture.

**2.** To appoint additional non-voting members to the Authority.

**3.** To submit nominees for Trustees to the Mayor of the City of Tulsa or the Chair of the Board of County Commissioners in the event that a nominating organization listed in Article VI fails to submit nominees for a Trustee position. Consideration shall be given to filling said position with a Trustee who reflects the concerns of the original nominating organization.

**4.** To remove, during their term, Trustees who are not members of the governing bodies of the City of Tulsa and County of Tulsa for failure to attend at least half of the meetings of the Trustees during a calendar year. Trustees may also be removed by action of the District Court of Tulsa County, for cause shown.

**5.** To organize or designate, at least once a year, an Advisory Committee or Advisory Committees, including medical and health care professionals, service providers, and consumers of long-term care or their relatives. The Committees shall review and comment on proposed policies and actions of the Trustees dealing with arrangements for long-term care within the jurisdiction of the Authority. The chair, or other representative designated by said Committees, shall have the right of discussion at Trustee meetings.

**6.** To enter into and execute, purchase, lease, or otherwise acquire property (real, personal or mixed), franchises, contracts, leases, rights, privileges, benefits, choses in action, or other things of value and to pay for the same in cash, with bonds or other evidences of indebtedness or otherwise.

**7.** To make and perform contracts of every kind, including management contracts with any person, firm, corporation, association, trusteeship, municipality or government; and, except as hereinafter stated without limit as to amount, to draw, make, accept, endorse, assume, guarantee, account, execute and issue promissory notes, drafts, bills of exchange, acceptances, warranties, bonds, debentures, and to have issued a letter or letters of credit from any state or national bank, and other negotiable or non-negotiable instruments, obligations and evidences of unsecured indebtedness, or of indebtedness secured by mortgage, deeds of trust or otherwise upon any or all property of the Authority, and to pledge any or all income of the Authority in the same manner and to the same extent as a natural person might or could do. To collect and receive any property, money, rents, or income of any sort and distribute the same, or any portion thereof, for the furtherance of the authorized Trust purposes set out herein.

**8.** To promote competition for service contracts through releasing request for proposals or advertising for bids when the Trustees deem said measures would promote the purposes of this Indenture and when required by federal, state, or municipal laws or regulations. The Trustees may prescribe such qualifications for proposals or bids as they deem necessary and desirable. The Trustees may reject all proposals or bids, may readvertise for said proposals or bids, or may enter into a contract or contracts with a responsible bidder or bidders who, in the opinion of the Trustees, shall offer a high quality long-term care service or services at a reasonable cost. If no proposal or bid is acceptable to the Trustees, the Trustees may authorize the Authority to provide the service or may advertise to receive proposals or bids from other parts of Oklahoma or from other states.

**9.** To approve, when desirable and at least once a year, charges, fees, or rates to be paid by users of long-term care services, users' families, or other payors and, also, to approve the methods for exacting payments for services.

**10.** To employ such counsel, agents, professionals, and employees as they deem necessary or proper; and prescribe their duties and fix their compensation at such amounts as is customary and normal; and select depositories for the funds and securities of this Authority. Any officer or employee having custody of Authority funds shall be bonded in such amount as may be designated by the Trustees.

**11.** To make and change investments; to convert real into personal property and vice versa; to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem advisable, any or all of the property in the Trust, real or personal; to borrow money or renew loans for the Trust; to refund outstanding bonded indebtedness and to execute therefor bonds notes or other evidences of indebtedness or obligations, and to secure the same by mortgage, lien, pledge or otherwise; to purchase property from any person, firm, corporation or public Trust, and purchase or lease land and other property to and from the City of Tulsa, the County of Tulsa, or others and construct, improve, repair, extend, remodel, and equip buildings, improvements, and other facilities thereon and to operate or lease, sublease, or rent, on such terms as they deem advisable, the same to individuals, partnerships, associations, corporations and others, including the United States of America or the State of Oklahoma and agencies and authorities of the United States of America, or of the State of Oklahoma, or of any municipality thereof, and also including all municipal or other political subdivisions of the State of Oklahoma as well as the Beneficiaries hereof; and to do all things to accomplish the purposes set out in Article III of this Trust Indenture, and to procure funds necessary for such purpose by the sale of bonds or other evidences of indebtedness and secure the payment of such bonds or other evidences of indebtedness by mortgages, liens, pledges or other encumbrance of such real and personal property, buildings, improvements, and other facilities owned or otherwise acquired, leased or controlled by Trustees, and by rentals, income, receipts and profits therefrom or from any other revenues associated with the ownership, operation or control of the property of the Authority; to lease or sublease, on such terms as they deem advisable, any property of the Authority or of which the Trustees may become owners or lessees.

**12.** To compromise any debts or claims of or against the Authority, and to adjust any dispute in relation to such debts or claims by arbitration or otherwise, and to pay any debts or claims against the Authority upon any evidence deemed by the Trustees to be sufficient. The Trustees may bring any suit or action which in their judgment is necessary or proper to protect the interests of the Authority or to enforce any claim, demand, or contract for the Authority; and they shall defend, in their discretion, any suit against the Authority, or the Trustees, or employees, agents or servants thereof. They may compromise and settle any suit or action and discharge the same out of Authority assets, together with court costs and attorneys' fees. All such expenditures shall be treated as expenses of executing this Trust.

**13.** To enter into contracts for the sale of bonds, notes or other evidences of indebtedness or obligations of the Trust for the purpose of acquiring or constructing works and facilities authorized to be acquired or constructed pursuant to the terms of this Trust Indenture and for that purpose may:

**(a)** Employ a financial advisor, or committee of advisors, to advise and assist the Trustees in the marketing of such bonds, notes or other evidences of indebtedness or obligations, and to present financial plans for the financing of each project, and to recommend to, or consult with, the Trustees concerning the terms and provisions of bond indentures and bond issues, and may pay appropriate compensation for such work and services performed in the furtherance of the project;

**(b)** Sell all bonds, notes or other evidences of indebtedness or obligations of the Trust in installments or series and on such terms and conditions and in such manner as the Trustees shall deem to be in the best interest of the Trust Estate, and

**(c)** Appoint and compensate attorneys, paying agencies and corporate trustees in connection with the issuance of any such bonds, notes, evidences of indebtedness or other obligations of the Trust.

**14.** Bonds or other evidences of indebtedness to be issued by the Trustees shall not constitute an indebtedness of the State of Oklahoma, nor of the City of Tulsa, nor of the County of Tulsa, nor personal obligations of the Trustees of the Authority, but shall constitute obligations of the Trustees payable solely from the Trust Estate.

**15.** The Trustees shall not create any indebtedness or other obligation as stated herein whatsoever until such indebtedness on obligation has been approved by the legislative body of the City of Tulsa and the Board of Commissioners of Tulsa County as set forth in Title 60, Oklahoma Statutes, Section 176 (d). Provided further that all expenditures of funds and the creation of indebtedness or other obligations as stated herein whatsoever shall be made in conformity with the provisions of Title 60, Oklahoma Statutes, 1986, Sections 176 et seq., the Oklahoma Public Trust Act and other applicable statutes of the State of Oklahoma and in case of conflict with any provision of this Trust Indenture said statutes shall control.

**16.** In the event of the default in payment of principal or of interest on any indebtedness created by said Trustees or any default under any instrument securing or pursuant to which such debt be incurred, a Temporary Trustee or Trustees may be appointed as Receiver or Receivers, as shall be provided in any such instrument. Such Temporary Trustees shall become, without further act or conveyance, fully vested with all of the estate, properties, rights, powers, trusts, duties and obligations of their predecessors in Trust, with like effect as if originally named as Trustee herein. The Temporary Trustee or Trustees shall cease to have and (sic) power or authority upon the termination of the defaults by which his appointment would have been authorized, and the permanent Trustees temporarily supplanted shall be automatically reinstated.

**17.** To file with the governing bodies of the City of Tulsa and County of Tulsa, the Tulsa Area United Way, the Veterans Administration, and the Departments of Health, Mental Health, and Human Services the following reports:

**(a)** a quarterly Financial Report including a balance sheet and a comparative analysis of income and expenses.

**(b)** a quarterly summary of the activities of the authority in fulfilling its purposes.

**(c)** a quarterly report of the projected project activities and borrowing plans for the year ahead.

**(d)** a certified copy of the annual audit made of the funds, accounts, and fiscal affairs of the Trust at the time required by the Oklahoma Public Trust Act.

**18.** The governing bodies of the City of Tulsa or the County of Tulsa, the State of Oklahoma or its agencies, or the Veterans Administration shall have the right to conduct a complete audit of the funds, accounts, and fiscal affairs of the Trust at any time at their discretion.

**19.** Meetings of the Trust shall be open to the public to the same extent as is required in law for other public boards and commissions as set out in Title 60, Oklahoma Statutes, Section 178 (d).

**20.** To do all other acts, in their judgment, necessary or desirable for the proper and advantageous management, investment and distribution of the Trust Estate and income therefrom.

The whole title, legal and equitable, to the properties of the Authority is and shall be vested in the Trustees as such title in the Trustees is necessary for their due execution of this Trust. Said Trustees shall have and exercise exclusive management and control of the Trust properties for the use and benefit of the beneficiaries, but may agree for approval of any or all of its actions and transactions by the governing bodies of the Beneficiaries.

The Trustees may contract for the furnishing of any services or the performance of any duties that they may deem necessary, or proper, and pay for the same as they see fit.

No purchaser at any sale or lessee under a lease made by the Trustees shall be bound to inquire into the expediency, propriety, validity or necessity of such sale or lease or to see to or be liable for the application of the purchase or rental moneys arising therefrom.

No contract, lease, indenture or agreement of any nature whatsoever to which the Trustees shall be a party shall be deemed ineffectual or invalid by reason of the fact that any one or more of such Trustees may execute such contract, lease, indenture or agreement for or on behalf of the other parties thereto when authorized by such Trustees.

**21.** No Trustee shall receive, directly or indirectly any interest, profit or perquisites, arising from the use or loan of Trust funds or moneys to be raised through the operation of the Trust. This prohibition shall include those instances when a Trustee, or any firm, corporation, agency or institution in which a Trustee or any member of this immediate family is an officer, partner, employee, staff member, agent, stockholder and shall directly or indirectly bur or sell services or goods to

the Trust or otherwise contract or do business with the Trust in any manner whatsoever. A Trustee shall make a full public disclosure of any transaction, contract, relationship or any matter whatsoever in which the Trustee has or may have a conflict of interest and shall resign immediately. All conflicts of interest shall be resolved pursuant to the Oklahoma Constitution, Oklahoma Statutes and the Oklahoma Public Trust Act.

**22.** The Trustees shall take no action unless a quorum is present. A quorum shall consist of six of the eleven voting Trustees. All actions of the Trustees shall be done on a simple majority vote of this voting Trustees present.

## ARTICLE VIII
## Beneficiaries of the Trust

**1.** The Beneficiaries of this Trust shall be the City of Tulsa, Oklahoma, a municipal corporation, and the County of Tulsa, Oklahoma, a subdivision of the State of Oklahoma, under and pursuant to Title 60, Oklahoma Statutes, 1981, Sections 176 et seq., as amended, and other statutes of the State of Oklahoma as presently in force and effect, and shall have those rights and duties set out in said Statutes.

**2.** Neither the City of Tulsa, Oklahoma, nor the County of Tulsa, Oklahoma, shall have any legal title, claim or right to the Trust Estate, its income or to any part thereof or to demand or require any partition or distribution thereof. Neither shall said Beneficiaries have any authority, power, or right whatsoever, to do or transact any business for, or on behalf of, or binding upon the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees. The Beneficiaries shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder; and at the termination of the Trust as herein provided, and then only, shall the City of Tulsa, Oklahoma, and the County of Tulsa, Oklahoma, receive the residue of the Trust Estate in the proportion, amounts, and kind as established by the Trustees.

## ARTICLE IX
## Amendment to the Trust

This Trust Indenture may be amended at any time by action of the governing bodies of both Beneficiaries, the City of Tulsa, Oklahoma, a municipal corporation, and the County of Tulsa, Oklahoma, a subdivision of the State of Oklahoma.

## ARTICLE X
## Termination of the Trust

This Trust shall terminate:

**1.** When the purposes set out in Article III of this indenture shall have been executed; or

**2.** In the manner provided by Title 60, Oklahoma Statutes, 1981, Section 180.

**3.** Provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

Upon the termination of this Trust, the Trustees shall proceed to conclude the affairs of this Authority and, after payment of all debts, expenses and obligations out of the monies and properties of the Trust Estate, to the extent thereof, shall distribute the residue of the money and Authority properties to the Beneficiaries in the proportion, amounts, and kind as established by the Trustees. Upon final distribution, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE XI
## Secretary of Trust

The Trustees shall appoint or employ a Secretary of the Trustees to serve at their will, with compensation as set by themselves. The Secretary shall keep minutes of all meetings of the Trustees and shall maintain complete and accurate records of all their financial transactions, all such minutes, books and records to be on file in the office of the Trust. All meetings of the Trustees shall be open to the public, and the bonds, records and minutes of the Trustees shall be considered as public records and available for inspection at all times by any interested party.

## ARTICLE XII
## ACCEPTANCE

The Trustees accept the Trust herein created and provided for and agree to carry out the provisions of this Trust Indenture on their part to be performed.

IN WITNESS WHEREOF, the Trustors and the Trustees have hereunto set their hand this 18th day of December, 1987.

/s/ Melvin C. Rice
Trustor

/s/ John Selph
Trustee

/s/ Ira Trail Adams
Trustee

/s/ Gerald L. Carson
Trustee

/s/ Donald E. Crowl
Trustee

/s/ George W. Prothro
Trustee

/s/ George W. Masters
Trustee

/s/ Doyal W. Knowles
Trustee

/s/ Paul M. Shireman
Trustee

/s/ Gary L. Watts
Trustee

/s/ Dick Crawford
Trustor

/s/ William A. Kohl
Trustee

[ACKNOWLEDGMENTS]

**ACCEPTANCE OF BENEFICIAL INTEREST**

KNOW ALL PERSONS BY THESE PRESENTS:

That the Board of Commissioners of The City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, for and on behalf of said Beneficiary in all respects in accordance with the terms of said Trust Indenture.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners this 18th day of December, 1987.

/s/ Dick Crawford
Mayor

ATTEST:

/s/ Ron Howell
City Auditor

APPROVED:

/s/ Neal E. McNeill
City Attorney

**ACCEPTANCE OF BENEFICIAL INTEREST**

KNOW ALL PERSONS BY THESE PRESENTS:

That the Board of Commissioners of the County of Tulsa, Oklahoma, a subdivision of the State of Oklahoma, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, for and on behalf of said Beneficiary in all respects in accordance with the terms of said Trust Indenture and as authorized by the Board of County Commissioners of Tulsa County on the 14th day of December, 1987.

WITNESS my hand as Chairman of the Board of County Commissioners, Tulsa, Oklahoma, attested by the County Clerk of the County of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners.

/s/ Melvin C. Rice
Chairman, Board of
Commissioners of
Tulsa County

ATTEST:

/s/ Nancy Cooper for Joan Hastings
Tulsa County Clerk

APPROVED AS TO FORM:

/s/ Ray Hesselman
Assistant District Attorney

## APPENDIX II FIRST AMENDMENT TO TRUST INDENTURE LONG-TERM CARE MANAGEMENT AUTHORITY OF TULSA (SECTIONS 1803 AND 1804)

*("Exhibit A" in Ord. No. 17500)*

KNOW ALL PERSONS BY THESE PRESENTS:

WHEREAS, the Mayor of the City of Tulsa, Oklahoma and the Chairman of the Board of Commissioners of Tulsa County, Oklahoma, both as Trustors, and Ira Trail Adams, Gerald L. Carson, Sharon L. Corbitt, Donald E. Crowl, Doyal W. Knowles, William A. Kohl, George W. Masters, George W. Prothro, M.D., John Selph, Paul M. Shireman, and Gary Watts, all as Trustees, created a Trust known as the Long-Term Care Management Authority of Tulsa for the use and benefit of the City of Tulsa, Oklahoma and Tulsa County, Oklahoma, under a Trust Indenture dated December 18, 1987; and

WHEREAS, Article IX of said Trust Indenture dated December 18, 1987 recites, "This Trust Indenture may be amended at any time by action of the governing bodies of both Beneficiaries, the City of Tulsa, Oklahoma, a municipal corporation, and the County of Tulsa, Oklahoma, a subdivision of the State of Oklahoma;" and

WHEREAS, the governing bodies of both Beneficiaries, the City of Tulsa, Oklahoma, a municipal corporation, and the County of Tulsa, Oklahoma, a subdivision of the State of Oklahoma, have found it necessary and expedient to further the public purposes of the Long-Term Care Management Authority of Tulsa by amending the Trust Indenture dated December 18, 1987; and

WHEREAS, the City of Tulsa, Oklahoma, a municipal corporation, by Ordinance No. 17500 passed on May 16, 1991, authorized, instructed and directed the Mayor and the City Clerk of the City of Tulsa, Oklahoma to execute and endorse upon the original of the First Amendment to the Trust Indenture creating the Long-Term Care Management Authority of Tulsa the approval of the City of Tulsa of the First Amendment to the Trust Indenture, and to cause the First Amendment to the Trust Indenture to be recorded in the office of the County Clerk of Tulsa County, Oklahoma; and

WHEREAS, the County of Tulsa, Oklahoma, a subdivision of the State of Oklahoma, by Resolution adopted on May 13, 1991, authorized, instructed and directed the Chairman of the Board of Commissioners of Tulsa County, Oklahoma to execute and endorse upon the original of the First Amendment to the Trust Indenture creating the Long-Term Care Management Authority of Tulsa the approval of the County of Tulsa of the First Amendment to the Trust Indenture, and to cause the First Amendment to the Trust Indenture to be recorded in the office of the County Clerk of Tulsa County Oklahoma;

NOW, THEREFORE, the undersigned Trustors of the Long-Term Care Management Authority of Tulsa by and with the authorization, instruction and direction of the governing bodies of both Beneficiaries, the City of Tulsa, Oklahoma, a municipal corporation, and the County of Tulsa, Oklahoma, a subdivision of the State of Oklahoma, do hereby amend said Trust Indenture dated December 18, 1987 as follows:

Article VI, Section 1, Subsection (a) be and the same is hereby amended to read as follows:

"**ARTICLE VI**
**THE TRUSTEES**

1. There shall be eleven (11) Trustees of this Trust:

a. One Trustee shall be the Mayor of the City of Tulsa, Oklahoma or such person as the Mayor of said City shall appoint, subject to confirmation by a majority vote of the entire membership of the Council."

IN WITNESS WHEREOF, the Trustees have hereunto set their hands, this 21st day of May, 1991.

/s/ Rodger Randle
Mayor, City of Tulsa, Oklahoma

ATTEST:

/s/ Ronald L. Payne
City Clerk

APPROVED:

/s/ Neal E. McNeill
City Attorney

/s/ Lewis Harris
Chairman, Board of
Commissioners of
Tulsa County, Oklahoma

ATTEST:

Joan Hastings, Tulsa County Clerk

/s/ by Nancy Cooper, Dep.
Tulsa County Clerk

APPROVED:

/s/ Dick Blakely
Asst. District Attorney

**ACCEPTANCE OF BENEFICIAL INTEREST**
**BY CITY OF TULSA, OKLAHOMA**

KNOW ALL PERSONS BY THESE PRESENTS:

That the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created on December 18, 1987, and amended by and within the foregoing First Amendment to the Trust Indenture in all respects in accordance with the terms of said Trust Indenture, as amended.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Clerk of the City of Tulsa, Oklahoma this 21st day of May, 1991.

/s/ Rodger Randle
Mayor
City of Tulsa, Oklahoma

ATTEST:

/s/ Ronald L. Payne
City Clerk

APPROVED:

/s/ Neal E. McNeill
City Attorney

**ACCEPTANCE OF THE BENEFICIAL INTEREST BY TULSA COUNTY, OKLAHOMA**

KNOW ALL PERSONS BY THESE PRESENTS:

That the Board of Commissioners of the County of Tulsa, Oklahoma, a subdivision of the State of Oklahoma, hereby accepts the beneficial (sic) in the Trust created on December 18, 1987, and amended by and within the foregoing First Amendment to the Trust Indenture, for and on behalf of Tulsa County, Oklahoma, in all respects in accordance with the terms of said Trust Indenture, as amended.

WITNESS, my hand as Chairman of the Board of Commissioners, Tulsa County, Oklahoma, attested by the County Clerk, of Tulsa County, Oklahoma, pursuant to direction of the Board of Commissioners, this 13th day of May, 1991.

/s/ Lewis Harris
Chairman, Board of Commissioners
of Tulsa County, Oklahoma

ATTEST:

Joan Hastings, Tulsa County Clerk

/s/ by Nancy Cooper, Dep.
Tulsa County Clerk

APPROVED:

/s/ Dick Blakely
Asst. District Attorney

## RESOLUTION

A RESOLUTION APPROVING THE FIRST AMENDMENT TO THE TRUST INDENTURE CREATING THE LONG-TERM CARE MANAGEMENT AUTHORITY OF TULSA WHEREIN ONE TRUSTEE SHALL BE THE MAYOR OF THE CITY OF TULSA OR SUCH PERSON AS THE MAYOR SHALL APPOINT, SUBJECT TO CONFIRMATION BY A MAJORITY OF THE CITY COUNCIL; ACCEPTING THE BENEFICIAL INTEREST AND ALL TERMS AND PROVISIONS OF THE TRUST INDENTURE AS AMENDED; AUTHORIZING THE CHAIRMAN OF THE BOARD OF COUNTY COMMISSIONERS AND THE COUNTY CLERK TO EXECUTE AND ENDORSE UPON THE ORIGINAL OF THE FIRST AMENDMENT THE APPROVAL OF TULSA COUNTY AND ITS ACCEPTANCE OF THE BENEFICIAL INTEREST IN THE AMENDED TRUST.

WHEREAS, the Mayor of the City of Tulsa, Oklahoma and the Chairman of the Board of Commissioners of Tulsa County, Oklahoma, both as Trustors, and Ira Trail Adams, Gerald L. Carson, Sharon L. Corbitt, Donald E. Crowl, Doyal W. Knowles, William A. Kohl, George W. Masters, George W. Prothro, M.D., John Selph, Paul M. Sherman, and Gary Watts, all as Trustees, created a Trust known as the Long-Term Care Management Authority of Tulsa for the use and benefit of the City of Tulsa, Oklahoma and Tulsa County, Oklahoma, under a Trust Indenture dated December 18, 1987; and

WHEREAS, the governing bodies of both beneficiaries have found it necessary and expedient to further the public purposes of the Long-Term Care Management Authority of Tulsa by amending the Trust Indenture dated December 18, 1987;

NOW, THEREFORE, BE IT RESOLVED BY THE COUNTY OF TULSA, OKLAHOMA:

Section 1. That the Long-Term Care Management Authority of Tulsa, created by Trust Indenture dated December 18, 1987, as amended by the First Amendment, a copy of which is attached hereto as Exhibit "A" and made a part hereof, wherein Tulsa County, Oklahoma remains co-beneficiary with the City of Tulsa, Oklahoma of the Long-Term Care Management Authority of Tulsa, is hereby approved and Tulsa County hereby accepts the beneficial interest therein and all the terms and provisions of the Trust Indenture, as amended, as authorized by the applicable statutes of the state of Oklahoma; and Tulsa County, Oklahoma hereby agrees to be, become, and remain the co-beneficiary of said Trust;

Section 2. That the Chairman of the Board of Commissioners of Tulsa County, Oklahoma and the County Clerk are hereby authorized, instructed and directed to execute and endorse upon the original of the First Amendment to the Trust Indenture, the approval of Tulsa County and the acceptance by Tulsa County of the beneficial interest therein and to cause the First Amendment to the Trust Indenture to be recorded in the office of the County Clerk and ex-officio Registrar of Deeds of the County of Tulsa, Oklahoma.

Section 3. That an emergency is hereby declared to exist for the preservation of the peace, health and safety, by reason whereof this Resolution shall take effect immediately upon its adoption and approval.

ADOPTED, and the emergency clause ruled upon separately and approved this 13th day of May, 1991.

TULSA COUNTY, OKLAHOMA,
a Subdivision of the State of Oklahoma

/s/ Lewis Harris
Chairman, Board of Commissioners
of Tulsa County, Oklahoma

ATTEST:

Joan Hastings, Tulsa County Clerk

/s/ Nancy Cooper, Deputy
County Clerk

Seal

APPROVED:

/s/ Dick Blakely
District Attorney

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# CHAPTER 19. NORTHEAST OKLAHOMA SOLID WASTE MANAGEMENT AUTHORITY

Section 1900. Beneficial interest in the Northeast Oklahoma Solid Waste Management Authority accepted.
Section 1901. Authorization to endorse approval and acceptance of beneficial interest.
Section 1902. Appointment and term of office of Trustee.
Appendix I Trust Indenture (Sections 1900, 1901 and 1902) ("Exhibit A" in Ord. No. 16947).

## Section 1900. Beneficial interest in the Northeast Oklahoma Solid Waste Management Authority accepted.

Acknowledging that on February 3, 1988, the Northeast Oklahoma Solid Waste Management Authority was created pursuant to a Trust Indenture executed by its Trustor Susan Young, a copy of which is attached hereto, marked as "Exhibit A" and made a part hereof, wherein the City of Tulsa, Oklahoma, is a designated beneficiary; the City of Tulsa, Oklahoma, pursuant to the enactment of this ordinance hereby approves and accepts the beneficial interest of that trust, subject to the terms and provisions of said Trust Indenture.

*(Ord. No. 16947)*

## Section 1901. Authorization to endorse approval and acceptance of beneficial interest

The Mayor and City Auditor are hereby authorized, instructed and directed to endorse a written approval of the Trust Indenture of the Northeast Oklahoma Solid Waste Management Authority and the City's acceptance of the beneficial interest therein.

*(Ord. No. 16947*

## Section 1902. Appointment and term of office of Trustee.

**A.** In accordance with Article VI, Section 1 of the Trust Indenture of the Northeast Oklahoma Solid Waste Management Authority, the Mayor and Board of Commissioners of the City of Tulsa hereby appoints Herbert E. Van Fleet, the Director of the Department of Solid Waste Management of the City of Tulsa, in his individual capacity, as its trustee, to serve a term of office through June 30, 1989.

**B.** The foregoing notwithstanding, the City's Trustee of the Northeast Oklahoma Solid Waste Management Authority shall be appointed by the Mayor and approved by the Board of Commissioners. Thereafter, said trustee shall serve a term of two years, beginning July 1 and expiring on the second June 30, two years following, provided that no trustee's term shall expire until a successor trustee is appointed, approved, sworn or otherwise qualified.

*(Ord. No. 16947)*

## APPENDIX I TRUST INDENTURE (SECTIONS 1900, 1901, AND 1902)

*("Exhibit A" in Ord. No. 16947)*

### ARTICLE I

The undersigned Trustor creates and establishes a trust for the use and benefit of the Cities of Bixby, Coweta, Glenpool, Jenks, Owasso, Sand Springs, Sapulpa and Tulsa, the Towns of Mounds and the Counties of Tulsa and Wagoner and for the public purposes hereinafter set forth, under the provisions of Title 60, Oklahoma Statutes, Section 176 et. seq., as amended, the Oklahoma Trust Act and other applicable statutes of the State of Oklahoma.

### ARTICLE II

The name of this Trust shall be the "Northeast Oklahoma Solid Waste Management Authority", hereinafter referred to as the "Trust". Under that name it shall, so far as practicable, conduct all business and execute all instruments, and otherwise perform its duties and functions in the execution of this Trust.

### ARTICLE III

The purposes of this Trust are:

**1.** To receive from public and private collectors in the region solid waste including refuse, trash, garbage, sludges and other discarded or salvageable solid materials as specified in the Oklahoma Solid Waste Management Act and any amendments or successors thereto and process, transfer, transport, convert, recover, recycle, or reclaim such solid waste, fuel and usable materials and products and sell the same and to dispose of non-usable solid waste by burial, incineration or other methods.

**2.** To plan, establish, develop, acquire, construct, purchase, install, repair, enlarge, improve, maintain, equip, finance and refinance, operate and regulate public solid waste processing or disposal systems and facilities and to close and monitor facilities according to regulations either within or without the territorial boundaries of the beneficiaries of the Trust, including but not limited to the purchasing, leasing, construction, installation, equipping, maintenance and operation of such buildings, equipment, machinery and other facilities necessary for the processing of refuse and solid waste, and the purchasing or leasing of transportation vehicles, equipment and facilities.

**3.** To hold, maintain and administer any leasehold rights in and to physical properties demised to the beneficiaries and to comply with the terms and conditions of any such lease.

**4.** To acquire by lease, purchase, grant, gift or otherwise, and to plan, establish, develop, construct, enlarge, improve, maintain, equip, operate and regulate any and all physical properties designated or needful for utilization in the furnishing and providing of services, in connection with public solid waste processing and disposal systems and facilities, and to dispose of, rent or otherwise make provisions for properties owned by the Trust but no longer needful for trust purposes.

**5.** To provide funds for the cost of financing, acquiring, constructing, leasing, equipping, maintaining, repairing and operating public solid waste processing

systems and facilities and buildings and other improvements thereto, and all properties, real, personal or mixed, required for execution and fulfilling the trust purposes as set forth in this instrument, and all other charges, costs and expenses necessarily incurred in connection therewith and in so doing, to incur indebtedness, either unsecured or secured by all or any part of the Trust Estate and its revenues.

**6.** To expend all funds coming into the hands of the Trustees as revenue or otherwise in the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the costs and expenses thereof, and in the payment of any other obligation properly chargeable against the Trust Estate, and to distribute the remainder of such funds to the beneficiaries hereof.

## ARTICLE IV

The Trust shall have duration for the term of duration of the beneficiaries and until such time as its purpose shall have been fully fulfilled, or until it shall be terminated as hereinafter provided.

## ARTICLE V

The Trust Estate shall consist of:

**1.** The funds and property presently in the hands of the Trustees or to be acquired or constructed by Trustees and dedicated by the Trustees and others to be used for trust purposes.

**2.** Any and all leasehold rights demised to the Trustees by its beneficiaries as authorized and empowered by law.

**3.** Any and all money, property, real, personal or mixed, rights, choses in actions, contracts, leases, privileges, immunities, franchises, benefits, grants, gifts and all other things of value coming into the possession of the Trustees pursuant to the provisions of this Trust Indenture.

**4.** Cash in hand.

The instruments executed for each project, and each issuance of Bonds and other indebtedness, shall set out the specific property of the Trust Estate exclusively pledged and mortgaged for the payment of such indebtedness.

## ARTICLE VI
## The Trustees

**1.** There shall be (11) Trustees of this Trust. The governing body of each of the beneficiaries of the Trust shall designate one Trustee. Each governing body shall establish the term of office of its trustee and the criteria for removal of its trustee.

Trustees shall serve until their successors have been duly appointed and qualified. Successor Trustees duly appointed and qualified shall, without any further act or conveyance, become fully vested with all of the estate, properties, rights, powers, duties and obligations of their predecessors hereunder with like effect as if originally named as Trustee.

**2.** The Trustees shall, during their terms of office, be subject to removal only by action of said Trustee's governing body or the District Court of Tulsa County for good cause shown.

**3.** No Trustee shall be paid any compensation of any kind for his services as a Trustee of this Trust. However, Trustees may be reimbursed for expenses incurred in the performance of their duties hereunder.

**4.** Bonds or other evidences of indebtedness to be issued by the Trustees shall not constitute an indebtedness of the State of Oklahoma, nor of the Beneficiaries, nor personal obligations of the Trustees of the Trust but shall constitute obligations of the Trustees payable solely from the Trust Estate. No indebtedness shall be incurred by the Trustees without the prior approval of two-thirds of the beneficiary governing bodies, both as to the purpose and amount of the indebtedness.

**5.** The Trustees, the State of Oklahoma, and the Beneficiaries hereof shall not be charged personally with any liability whatsoever by reason of any act or omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trust Estate; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate, shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**6.** Notwithstanding any other provisions of this Indenture which shall appear to provide otherwise, no Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or Beneficiary, in his or its capacity, nor can the Beneficiary bind or obligate the Trust or any individual Trustee.

**7.** The Trustees shall adopt bylaws for the conduct of their business, and shall elect a Chairman from their members who shall preside at all meetings and perform other duties designated by the Trustees. The Trustees shall elect a Vice Chairman from their members who shall act as Chairman during the temporary absence or disability of the Chairman. If a vacancy occurs in the office of Chairman or Vice Chairman, the Trustees shall elect a successor from their members. The Trustees shall designate the time and place of all regular meetings, which meetings shall be public, except for instances wherein executive sessions are authorized by State law. Except as otherwise provided herein or as required by state law, all actions by the Trustees pursuant to the provisions of this Trust Indenture shall be approved by the affirmative vote of at least a majority of the Trustees present at a meeting where a quorum is present. A quorum of the Trustees is defined as seven duly appointed Trustees.

**8.** The Trustees shall file with the governing bodies of the Beneficiaries a certified copy of the annual audit made of the funds, accounts, and fiscal affairs of the Trust at the time as is required by Section 180.3 Title 60, Oklahoma Statutes Annotated.

**9.** The governing body of each of each of the Beneficiaries shall have the right to conduct or have conducted a complete audit of the funds, accounts and fiscal affairs of the Trust at any time at its discretion, and at the expense of the requesting governing body.

**10.** The whole title, legal and equitable, to the properties of the Trust is and shall be vested in the Trustees. The Trustees shall have and exercise exclusive management and control of the properties of the Trust Estate for the use and benefit of the Beneficiaries.

**11.** The Trustees may contract for the furnishing of any services or the performance of any duties that they may deem necessary, or proper, and pay for the same as they see fit.

**12.** The Trustees may compromise any debts or claims of or against the Trust Estate, and may adjust any dispute in relation to such debts or claims by arbitration or otherwise and may pay any debts or claims against the Trust Estate upon any evidence deemed by the Trustees to be sufficient. The Trustees may bring any suit or action, which in their judgment is necessary or proper to protect the interest of the Trust Estate, or to enforce any claim, demand or contract for the Trust; and they shall defend, in their discretion, any suit against the Trust, or the Trustees or employees, agents or servants thereof. They may compromise and settle any suit or action, and discharge the same out of assets of the Trust Estate, together with court costs and attorneys' fees. All of such expenditures shall be deemed proper expenses of executing this Trust.

## ARTICLE VII
## Powers and Duties of the Trustees

To accomplish the purposes of the Trust, and subject to the provisions and limitations otherwise provided in this Trust Indenture, the Trustees shall have, in addition to the usual powers incident to their office and the powers granted to them by statute and in other parts of this Trust Indenture, the following rights, powers, duties, authority, discretion and privileges:

**1.** To finance, acquire, establish, develop, construct, enlarge, improve, extend, maintain, equip, operate, lease, furnish, provide, supply, regulate, hold, store, and administer any of the systems and facilities designated pursuant to Article III hereof as the Trustees shall determine necessary for the benefit and development of the Beneficiaries.

**2.** To employ architectural and engineering firms or consultants as the Trustees deem necessary to prepare such preliminary or detailed studies, plans, specifications, cost estimates and feasibility reports as are required in the opinion of the Trustees. The costs of such engineers, architects and consultants shall be paid out of the proceeds of the sale of bonds or from such other funds as may be available therefor.

**3.** To enter into contracts for the sale of bonds, notes or other evidences of indebtedness or obligations of the Trust for the purpose of acquiring or constructing works, systems and facilities authorized to be acquired or constructed pursuant to the terms of this Trust Indenture and for that purpose may:

**(a)** Employ a financial advisor, or committee of advisors, to advise and assist the Trustees in the marketing of such bonds, notes or other evidences of indebtedness or obligations, and to present financial plans for the financing of the acquisition or construction of each project, and to recommend to, or consult with, the Trustees concerning the terms and provisions of bond indentures and bond issues, and may pay appropriate compensation for such work and services performed in the furtherance of the project;

**(b)** Sell all bonds, notes or other evidences of indebtedness or obligations of the Trust in installments or series and on such terms and conditions and in such manner as the Trustees shall deem to be in the best interest of the Trust Estate subject to the provisions of Title 60, Oklahoma Statutes, Section 176, et. seq., as amended; and

**(c)** Appoint and compensate attorneys, paying agencies and corporate trustees in connection with the issuance of any such bonds, notes, evidences of indebtedness or other obligations of the Trust.

**4.** To purchase, lease, or otherwise acquire property, real, personal or mixed; to enter into and execute contracts, leases, and operating agreements.

**5.** To make and change investments, to convert real into personal property, and vice versa, to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem proper, and to resell, at any time and as often as they deem advisable, any or all the property in the Trust, to refund outstanding bonded indebtedness and to execute therefor bonds, notes, or other evidences of indebtedness, or obligations, and to secure the same by mortgage, lien, pledge or otherwise; to purchase property from any individuals, partnerships, associations, corporations, and others, including the United States of America or the State of Oklahoma and agencies, authorities or trusts of the United States of America, or the State of Oklahoma, or of any municipality thereof, and also including all municipal or other political subdivisions of the State of Oklahoma as well as the beneficiaries hereof, and lease or sublease land and other property to and from the Beneficiaries or others and construct, improve, repair, extend, remodel, and equip buildings, improvements and other facilities thereon and to operate or lease or rent the same to individuals, partnerships, associations, corporations and others, including the United States of America or the State of Oklahoma and agencies, authorities or Trusts of the United States of America, or of the State of Oklahoma, or of any municipality thereof, and also including all municipal or other political subdivisions of the State of Oklahoma as well as the Beneficiaries hereof, and to do all things to accomplish the purposes set out in Article III of this Trust Indenture, and procure funds necessary for such purpose by the sale of bonds or other evidences of indebtedness by mortgages, liens, pledges or other encumbrances of such real and personal property, buildings, improvements and other facilities owned or otherwise acquired, leased or controlled by Trustees, and by rentals, income, receipts and profits therefrom, or from any other revenues associated with the ownership, operation or control of the property of the Trust; to lease or sublease any property of the Trust, or of which the Trustees may become the owners or lessees.

**6.** To fix, demand and collect charges, rentals and fees for the services and facilities of the Trust and to discontinue furnishing of services and facilities to any person, firm or corporation, or public instrumentality, delinquent in the payment of any indebtedness to the Trust; to purchase and sell such supplies, goods, and commodities as are incident to the operation of its properties.

**7.** To make and perform contracts of every kind, including management and operating contracts, with any person, firm, corporation, association, trusteeship, municipality, government or sovereignty; and subject to the provisions of Article VII(3) set forth above without limit as to amount to draw, make, accept, endorse, assume, guarantee, account, execute and issue promissory notes, drafts, bills of exchange, acceptances, warranties, bonds, debentures, and other negotiable or non-negotiable instruments, obligations and evidences of unsecured indebtedness, or of indebtedness secured by mortgage, deed or trust or otherwise upon any or all income of the Trust, in the same manner and to the same extent as a natural

person might or could do; to collect and receive any property, money, rents, or income of any sort and distribute the same or any portion thereof for the furtherance of the authorized Trust purposes set out herein.

**8.** To the extent permitted by State law, to bind others by their duly authorized decisions and actions taken on their behalf, or failures to take action on their behalf, and as provided for in the Trust Agreement.

**9.** To take whatever actions may be appropriate and whatever actions may be directed by a Majority of the Trustees to cure any default by a Beneficiary pursuant to the Trust Agreements.

**10.** To do all other acts in their judgment necessary or desirable for the proper and advantageous management, investment, and distribution of the Trust Estate and income therefrom.

## ARTICLE VIII
## Beneficiaries of Trust

**1.** The Beneficiaries of this Trust shall be the Cities of Bixby, Coweta, Glenpool, Jenks, Owasso, Sand Springs, Sapulpa and Tulsa, the Towns of Mounds and the Counties of Tulsa and Wagoner.

**2.** The Beneficiaries shall have no legal title, claim or right to the Trust Estate, its income, or to any part thereof or to demand or require any partition or distribution thereof. Neither shall the Beneficiaries have any authority, power or right whatsoever, to do or transact any business for, or on behalf of, or binding upon the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees pertaining to the Trust Estate, or any part thereof. The Beneficiaries shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder, and at the termination of the Trust, as provided herein, and then only the Beneficiaries shall receive the residue of the Trust Estate, to be distributed in accordance with the Trust Agreement.

**3.** If, after the effective date of the Trust Agreement, governments desire to join with the Beneficiaries of the Trust in accomplishing the purposes of the Trust, provisions may be made for additional beneficiaries to the trust. Said governments shall make such contributions to the Trust Estate as the Trustees deem appropriate to offset the costs and expenses of additional services, systems and facilities required to serve their portion of additional wastes streams together with an amount reflecting previous contributions of the Beneficiaries of initiating, establishing, developing, acquiring, constructing, maintaining or repairing the Trust Estate.

## ARTICLE IX
## Secretary of Trust

The Trustees shall appoint a Secretary of the Trustees to serve at their will, with compensation as set by themselves. The Secretary shall keep minutes of all meetings of the Trustees and shall maintain complete and accurate records of all their financial transactions, all such minutes, books and records to be on file in the principal office of the Trust. All meetings of the Trustees shall, except for instances wherein executive sessions are authorized by State law, be open to the public and conducted in accord with the provisions

of the Oklahoma Public Meeting Law and the bonds, records and minutes of the Trustees shall be considered as public records and available for inspection at all times by an interested party.

## ARTICLE X
## Termination of Trust

**1.** This Trust shall terminate:

**a.** When the purposes set out in Article III of this instrument shall have been fully executed; or

**b.** In the manner provided by Title 60, Oklahoma Statutes, Section 180, provided, however, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligations shall have consented in writing to such termination.

**2.** Upon the termination of this Trust, the Trustees shall proceed to conclude the affairs of this Trust, and after payment of all debts, expenses and obligations out of the moneys and properties of the Trust Estate to the extent thereof, shall distribute the residue of the money and properties of the Trust Estate to the Beneficiaries hereunder in accordance with Title 60, Oklahoma Statutes, Section 180 or successors thereto. Upon final distribution, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE XI

The Trustees accept the Trust herein created and provided for, and agree to carry out the provisions of this Trust Indenture on their part to be performed.

IN WITNESS WHEREOF, the Trustor and the Trustees have hereunto set their hands on the day and year indicated.

/s/ Susan A. Young
Susan Young, "Trustor"

| | | | |
|---|---|---|---|
| /s/ S. Marguerite Lofton | 8-5-88 | /s/ Roger Minor | 8-5-88 |
| Trustee, City of Bixby | Date | Trustee, City of Sapulpa | Date |
| /s/ Mark Bates | 8-5-88 | /s/ Herbert Van Fleet | 8-5-88 |
| Trustee, City of Coweta | Date | Trustee, City of Tulsa | Date |
| /s/ Kendel G. Goslee | 8-5-88 | /s/ Wylodean Mooney | 8-5-88 |
| Trustee, City of Glenpool | Date | Trustee, Town of Mounds | Date |
| /s/ V. R. Ewing | 8-5-88 | /s/ Sam Regier | 8-5-88 |
| Trustee, City of Jenks | Date | Trustee, County of Tulsa | Date |
| /s/ Everett R. Jones | 8-5-88 | /s/ Wilton W. Works | 8-9-88 |

| | | | |
|---|---|---|---|
| Trustee, City of Owasso | Date | Trustee, County of Wagoner | Date |

/s/ Loy Calhoun 8-5-88
Trustee, City of Sand Springs Date

[ACKNOWLEDGMENTS]

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## CHAPTER 20. VIETNAM VETERANS MEMORIAL TRUST

Section 2000. Beneficial interest in the Vietnam Veterans Memorial Trust accepted.
Section 2001. Authorization to endorse approval and acceptance of beneficial interest.
Appendix I Trust Indenture Vietnam Veterans Memorial Trust (Sections 2000 and 2001) ("Exhibit A" in Ord. No. 16978).

### Section 2000. Beneficial interest in the Vietnam Veterans Memorial Trust accepted.

The Vietnam Veterans Memorial Trust, created by Trust Indenture dated the 5th day of April, 1988, an executed copy of which Trust Indenture is hereto attached, marked "Exhibit A" and made a part hereof, wherein Mr. Richard Crawford, Mr. Houston Adams, Mr. John Fischer, Mr. Stafford G. Davis, Mr. Amadeo Richardson, Mr. Paul Rauscher, Mr. L.A. "Quantrill" Page, Mr. Frank Friedl, Mr. John Tew and Mr. Ralph Henderson are designated trustees, and the City of Tulsa, Oklahoma, is designated as the sole beneficiary of said Vietnam Veterans Memorial Trust, is hereby approved, and the City of Tulsa hereby accepts the beneficial interest therein, and all of the terms and provisions of said Trust Indenture as authorized by the applicable statutes of the state of Oklahoma, and the City of Tulsa hereby agrees to be and become the sole beneficiary of said trust.

*(Ord. No. 16978)*

### Section 2001. Authorization to endorse approval and acceptance of beneficial interest.

The Mayor and City Auditor are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture the approval of the City of Tulsa of said Trust Indenture creating the Vietnam Veterans Memorial Trust and the City's acceptance of the beneficial interest therein, and to cause said Trust Indenture to be recorded in the office of the County Clerk of Tulsa County, Oklahoma.

*(Ord. No. 16978)*

## APPENDIX I TRUST INDENTURE VIETNAM VETERANS MEMORIAL TRUST (SECTIONS 2000 AND 2001)

*("Exhibit A" in Ord. No. 16978)*

KNOW ALL MEN BY THESE PRESENTS:

This Trust Indenture, dated this 8th day of April, 1988, by Vietnam Veterans of America, Chapter 216, hereinafter referred to as Trustor; and the Trustees selected as hereinafter provided, and their respective successors in office, to be known as the Trustees of the Vietnam Veterans Memorial Trust, who shall be Trustees of the Trust of herein set out and hereinafter referred to as "Trustees".

WITNESSETH:

That in consideration of the payment by Trustor to the Trustees of the sum of One Hundred Dollars ($100.00); receipt on which is hereby acknowledged and of the mutual covenants herein set forth, the said Trustees agree to hold, manage, invest, assign, convey, lease and distribute, as herein provided, authorized and directed, such property as Trustor, or others, may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver unto this Trust or the Trustees hereof.

TO HAVE AND TO HOLD such property and the proceeds, rents profits and increases thereof unto said Trustees, and said Trustee's successors and assigns, but nevertheless in trust, for the use and benefit of the City of Tulsa, Oklahoma, hereby designated as the Beneficiaries of this Trust and hereinafter referred to as the "Beneficiary", and upon the following Trust, terms and conditions herein stated.

### ARTICLE I
### Creation of Trust

The undersigned Trustor creates and establishes a Trust for the use and benefit of the Beneficiary, and for the public purposes hereinafter set forth, under the provisions of Title 60, Oklahoma Statues (sic), 1971, Section 176 et seq., the Oklahoma Trust Act and other applicable Statues (sic) of the State of Oklahoma, as amended.

### ARTICLE II

The name of this Trust shall be the Vietnam Veterans Memorial Trust, hereinafter referred to as the "Trust". The Trustees shall conduct all business and execute all instruments and otherwise perform the duties and functions required in the execution of this Trust.

### ARTICLE III
### Purpose of Trust

The purposes of this Trust are:

**1.** To develop and maintain within the corporate limits of the City of Tulsa, Oklahoma, a memorial park dedicated to those who died in the Vietnam War, those still missing and unaccounted for, those who served and those who waited at home.

**2.** To hold, maintain and administer any leasehold rights, in and to physical properties demised to the Beneficiary or to the Trust Estate and comply with the terms and conditions of any such lease.

**3.** To acquire by lease, purchase or otherwise, and to plan, establish, develop, construct, enlarge, improve, maintain, equip, operate and regulate any and all property, real, personal or mixed, designated or needful for utilization in the furnishing and providing services in connection with the Vietnam Veterans Memorial Park and to dispose of, sell, rent or otherwise make provisions for properties owned by the Trust but no longer needful for Trust purposes.

**4.** To lease, rent, furnish or provide such property, buildings, improvements and facilities for use by the Untied States of America, the State of Oklahoma, or the Beneficiary, or for the use of corporations, individuals or associations, upon such terms as the Trustees may deem suitable; and to relinquish, rent dispose of or otherwise make provision for properties owned or controlled by the Trust but no longer needed for Trust purposes.

**5.** To enter into contracts with the City of Tulsa and other parties to carry out the purposes of this Trust.

**6.** To provide funds for the cost of financing, acquiring, constructing, purchasing, equipping, maintaining, repairing, improving, enlarging, remodeling, holding of said services, operating and administering any and all of the aforesaid facilities or any or all services, utilities, buildings, facilities and all property, real, personal or mixed, needful for exercising and fulfilling the Trust purposes as set out in this Indenture and all other charges, costs and expenses necessarily incurred in connection therewith.

**7.** To expend all funds coming into the hands of the Trustees as revenue or otherwise for the payment of any indebtedness incurred by the Trustees for purposes specified herein, and in the payment of the aforesaid costs and expenses and in payment of any other obligation properly chargeable against the Trust Estate or to distribute the residue and remainder of such funds to the beneficiary as hereinafter set forth, which said funds, together with all Trust property, assets, profits and net revenues are irrevocably dedicated to the Beneficiary.

## ARTICLE IV
## Duration of Trust

This Trust shall have duration for the term of duration of the Beneficiary or until such time as its purposes shall have been fulfilled, or until it shall be terminated as hereinafter provided.

## ARTICLE V
## The Trust Estate

The Trust Estate shall consist of:

**1.** The funds and property presently in the hands of the Trustees, including the consideration, as hereinabove recited.

**2.** Any and all leasehold rights, demised to the Trust for the purposes of this Trust, including such as may be demised to the Trust by the Beneficiary, as authorized and empowered by law.

**3.** Any and all improvements that may be constructed by, or in behalf of, the Trustees upon any property owned by or leased to said Trustees.

**4.** Any and all improvements that may be constructed by, or in behalf of, the City upon any property owned by the said City and County and leased to said Trustees.

**5.** Any and all money, property, real, personal, or mixed, rights, chooses (sic) in action, contracts, leases, privileges, immunities, licenses, franchises, benefits and all other things of value coming into the possession of the Trustees, pursuant to the provisions of this Indenture.

## ARTICLE VI
## The Trustees

**1.** There shall be a total of ten (10) Trustees of this Trust:

**(a)** The Mayor and Water and Sewer Commissioner of the City of Tulsa, whoever they may be, shall be Trustees during their incumbencies and shall serve until their successors as Mayor and Water and Sewer Commissioner have been duly elected and qualified.

**(b)** The President and Vice-President of Chapter 216, Vietnam Veterans of America, whoever they may be, shall be Trustees during their terms of office and shall serve until their successors have been duly elected and qualified.

**(c)** There shall be three (3) Trustees appointed by the Mayor of the City of Tulsa, subject to the approval of the Board of Commissioners: said Trustees shall serve staggered terms as set forth below:

**1.** John Fischer, Tulsa, Oklahoma, shall be a Trustee for a term of three (3) years on the date of the Indenture.

**2.** Stafford G. Davis, Tulsa, Oklahoma, shall be a Trustee for a term of one (1) year commencing on the date of this Indenture.

**3.** Amadeo Richardson, Tulsa, Oklahoma, shall be a Trustee for a term of two (2) years commencing on the date of this Indenture.

**(d)** Successors to these Trustees shall be approved by the Mayor, subject to approval by the Board of Commissioners of the City of Tulsa. Each successor shall serve a term of two (2) years. Vacancies occurring other than through the expiration of a term shall be filled for the unexpired terms in the same manner as that provided for the appointment as a successor Trustee.

**(e)** There shall be three (3) Trustees appointed by the President of Vietnam Veterans of America, Chapter 261, with approval of the Board of Directors; said Trustees shall serve staggered terms as set forth below:

**1.** Paul Rauscher, Tulsa, Oklahoma, shall be a Trustee for a term of one (1) year commencing on the date of this Indenture.

**2.** L.A. "Quantrill" Page, Tulsa, Oklahoma, shall be a Trustee for a period of two (2) years commencing on the date of this Indenture.

**3.** Frank Friedl, Tulsa, Oklahoma, shall be a Trustee for a period of three (3) years commencing on the date of this Indenture.

**(f)** Successors to these Trustees shall be appointed by the President of Vietnam Veterans of America, Chapter 216 with approval of the Board of Directors. Each

successor shall serve a term of two (2) years. Vacancies occurring other than through the expiration terms in the same manner as that provided for the appointment as a successor Trustee.

**2.** All Trustees appointed hereunder shall qualify by a written acceptance of all the terms of this instrument, duly acknowledged and signed in the same manner and in the same places that this instrument is acknowledged and filed. All Trustees, permanent and temporary, before assuming the powers and duties as such, also shall subscribe and file such oaths as shall be required by law for public officers of the State of Oklahoma.

**3.** The Trustees shall elect annually, by majority vote, a Chairman of the Board of Trustees, who shall preside at all meetings and perform other duties designated by the Trustee. The Trustees shall designate the time and place of all regular meetings. All actions by the Trustees pursuant to the provision of this Indenture shall be approved by the affirmative vote of at least a majority of the Trustees qualified to act as such under the provisions of this Indenture. The Trustees shall elect one or more of their members to be Vice-Chairman, who shall act in the place of the Chairman during the latter's absence or incapacity to act or serve.

**4.** The Trustees shall elect a Secretary of the Trustees who may or may not be a Trustee. The Secretary shall keep minutes of all meetings of the Trustees. All such minutes, books and records to be on file in the principal office of the Authority, which said office shall be in the City of Tulsa, Oklahoma, or in such other place within the State of Oklahoma as the Trustees may designate. This Authority may also have offices at such other places within the State of Oklahoma as the Trustees may designate. All meetings of the Trustees shall be open to the public, and the books, records and minutes of the Trustees shall be considered as public records and available for inspection at all reasonable times by any interested person or persons.

**5.** The Trustees shall elect a Treasurer of the Trustees who may or may not be a Trustee, and who shall maintain complete and accurate records of all their financial transactions.

**6.** The Trustees may appoint an Executive Director for the Trust and may employ such other clerical, professional, legal and technical assistance as may be deemed necessary in the discretion of the Trustees to properly operate the business of the Trust, and may fix their duties, terms of employment and compensation. In the event an Executive Director for the Trust is appointed by the Trustees, the said Executive Director shall administer the business of the Trust as directed from time to time by the Trustees.

**7.** Upon each change of personnel of the Trustees hereunder, the Chairman of the Board of Trustees shall cause to be filed in the office of the County Clerk of Tulsa County, a certificate of the entire personnel of the Board of Trustees of the Trust.

**8.** The Trustees shall be, during their terms, subject to removal only by action of the District Court of Tulsa County, for cause shown, including incompetence, neglect of duty, or malfeasance in office.

**9.** The Trustees, the City, or any agency thereof, shall not be charged personally with any liability whatsoever by reason of any act of omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trustee Estate; but any act or liability for any omission or obligation

of the Trustees in the execution of such Trust, or in the operation of the Trust Estate shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**10.** No Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or the Beneficiary in his or its capacity, nor can the Beneficiary bind or obligate the Trust or any individual Trustee.

**11.** No Trustee shall be paid any compensation of any kind for his services as Trustee, except that each such Trustee shall be reimbursed for actual expenses incurred in the performance of his duties as Trustee.

## ARTICLE VII
## Powers and Duties of the Trustees

Subject to the provisions and limitations otherwise provided in this Indenture, the Trustees shall have, in addition to the usual powers incident to their office, and the powers granted to them in other parts of this Trust Indenture, the following rights, powers, duties, authority, discretion and privileges, all of which may be exercised by them without any order or authority from any court or legislative body except as herein provided:

**1.** To accept by gift, devise or bequest or to purchase, lease, or otherwise acquire property, real, personal or mixed, franchises, contracts, leases, rights, privileges, benefits, chooses (sic) in action, or other things of value and to pay for the same in cash, or other evidences of indebtedness or otherwise; provided, however, that all acquisitions and purchases of land or real property by lease, purchase or otherwise, shall be subject to the approval of the beneficiary.

**2.** To enter into contracts for the acquisition and construction of property, buildings and facilities authorized to be acquired and constructed pursuant to the terms of this Indenture.

**3.** To employ such architectural and engineering firm or firms as the Trustees deem necessary to prepare such preliminary and detailed studies, plans, specifications, cost estimates and feasibility reports as are required in the opinion of the Trustees. The cost of such engineering and architectural work shall be paid out of Trust funds as the Trustees may determine to be available therefor.

**4.** To make and change investments; to convert real into personal property and vice versa; to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem advisable, any or all of the property in the Trust, real or personal; to purchase property from any person, firm or corporation, and lease land and other property to and from the Beneficiary, and construct, improve, repair, remodel and equip buildings and facilities thereon and to operate or lease or rent the same to individuals, partnerships, associates, corporations and others, including the United States of America or the State of Oklahoma and agencies or authorities of the United States of America, or of the State of Oklahoma, or of any political subdivision thereof, as well as the Beneficiary hereof, and to do all things provided for in Article III of this Indenture, and procure funds necessary for such purpose by the rentals, income, receipts and profits from the personal property, buildings and facilities owned or otherwise acquired, leased or controlled by trustee, or from any other revenue associated with the ownership, operation or control of the property

of the Trust to lease or sublease any property of the Trust or of which the Trustees may become the owners or lessees; to collect and/or receive for and disburse and/or pay to the Beneficiary such voluntary contributions as are or may be made for public purposes under such contractual arrangements as the Trustees may enter into with any person, firm, corporation or entity with respect to any property, whether real, personal or mixed; and to otherwise exercise any and all rights and powers which a trust organized and created pursuant to Title 70, Oklahoma Statues, Sections 176, et seq., as amended, may not or hereafter exercise.

**5.** To fix, demand, and collect charges, rentals and fees for the property, buildings and facilities of the Trust; to discontinue furnishings of properties, buildings and facilities to any person, firm or corporation, or public instrumentality, delinquent in the payment of any indebtedness to the Trust; to purchase and sell such supplies, goods and commodities as are incident to the operation of its properties.

**6.** To make and perform contracts of every kind, including management contracts, with any person, firm, corporation, association, trusteeship, municipality, county, state or federal government or any agency thereof. To collect and receive any property, money, rents, or income of any sort and distribute the same or any portion thereof for the furtherance of the authorized Trust purposes set out herein.

**7.** To select depositories for the funds and securities of this Trust.

**8.** To compromise any debts or claims of or against the Trust and to adjust any dispute in relation to such debts or claims by arbitration or otherwise and pay any debts or claims against the Trust upon any evidence that seems to the Trustees to be sufficient. The Trustees may bring any suit or action which in their judgment is necessary or proper to protect the interest of the Trust, or to enforce any claim, demand, or contract for the Trust; and they shall defend, in their discretion, any suit against the Trust, Trustees, employees, agents or servants thereof. They may compromise and settle any suit or action and discharge the same out of the Trust Estate, together with court costs and attorneys' fees. All such expenditures shall be treated as expenses of executing this Trust.

**9.** To do all other acts, in their judgment, necessary or desirable for the proper and advantageous management, investment and distribution of the Trust Estate and income therefrom.

**10.** To contract for the furnishing of any services or for the performance of any duties that they may deem necessary or proper, and pay for the same as they see fit; but in any case, said Trustees shall provide for an annual audit of the Trust property and operations, by an independent auditor, one copy each of which shall be filed with the Mayor and Auditor of the City, and one copy of which shall be filed with the Board of Commissioners of Tulsa County, Oklahoma, and one copy shall be filed with the State Examiner and Inspector of Oklahoma, pursuant to the Oklahoma Public Trust Act. Provided, however, that the City may order an audit of the Trust property and its operations at any time by Certified Public Accountants, a Certified Municipal Accountant or a licensed public accountant at the expense of the Authority and such audit shall be filed as hereinbefore provided.

**11.** To issue bonds, notes, Security Agreements, or other obligations as may be necessary or desireable to carry out the purposes of the Trust, and to secure the payment of such obligations by the pledge of all or any part of the rents and income of the Trust.

**12.** No purchaser at any sale or lessee under a lease made by the Trustees shall be bound to inquire into the expediency, propriety, validity or necessity of such sale or lease or to see to or be liable for the application of the purchase or rental monies arising therefrom.

**13.** In the event a corporation, partnership or firm in which a Trustee has a substantial financial interest contracts with the Authority, such interest shall be disclosed by said Trustee and shall be entered in the minutes of the Trust; provided, in the absence of fraud, no contract or other transaction shall be thereby affected or invalidated.

Provided, however, that no part of the net earnings, if any, of this Trust or any of its properties, whether real, personal or mixed, shall ever inure to the benefit of any private individual or Trustee, and provided further, that no substantial part of the activities of this Trust shall consist of carrying on propaganda for, or otherwise attempting to influence legislation, nor shall it participate in, or intervene in, including the publishing or distributing of statements or other and similar materials, any political campaign on behalf of any candidate for public office.

**14.** The Trustee shall cause an annual budget to be compiled of all anticipated and proposed expenditures, expenses and outlay of trust funds for the initial and thereafter annually ensuing fiscal years of the Trust. Such budget and all amendments thereto shall be promptly submitted to the City and the County and subject to their approval.

## ARTICLE VIII
## Beneficiaries of Trust

**1.** The Beneficiary of this Trust shall be the City of Tulsa, Oklahoma under and pursuant to Title 60, Oklahoma Statues, Section 176, et seq., and other statues of the State of Oklahoma, presently in force and effect.

Trustor now declares that this Indenture may be altered, amended, revised or modified with the express written consent of the Trustor, the Trustees, and the Beneficiary, which said written consent shall be evidenced by endorsement upon any instrument of alteration, amendment, revision or modification; provided, that no such alteration, amendment, revision or modification shall take effect in such way as to impair the rights of the holder of any bond or other evidence of indebtedness of the Trust or party to whom the Trust is indebted in any way under written obligation of indebtedness.

**2.** The Beneficiary shall have no legal title, claim or right to the Trust Estate, its income, or any part thereof, or to demand or require any partition or distribution thereof, or to demand or require any partition or distribution thereof, except as set forth hereinafter in this Trust Indenture. Neither shall said Beneficiary nor any agents thereof, have any authority, power or right, whatsoever, to do or transact any business for, or on behalf of, or binding upon, the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees. The City of Tulsa as Beneficiary of this Trust, shall be entitled solely to the benefits of this Trust as administered by the Trustees hereunder, and, at the termination of the Trust as herein provided and then only shall said City receive the residue of the Trust Estate.

**3.** The Trustees, after fulfilling the purposes of this Trust and after paying all obligations of the Trust and Trust Estate and interest thereon and all the costs and expenses

incident to the management, operation, maintenance and conservation of this Trust, shall then distribute the then remaining property, real, personal or mixed, to the Beneficiary of the Trust.

## ARTICLE IX
## Termination of Trust

This Trust shall terminate:

**1.** When the purposes set out in Article III of this Indenture shall have been fully executed; or

**2.** In the manner provided by Title 60, Oklahoma Statues, Section 180.

Provided, however, that this Trust shall not be terminated by voluntary action, if there be outstanding fixed term indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligation shall have consented in writing to such termination.

Upon the termination of the Trust, the Trustees shall proceed to wind up the affairs of this Trust, and after payment of all debts and obligations out of the monies and properties of the Trust Estate, to the extent thereof, shall distribute the residue of all property, real, personal or mixed, of the Trust Estate to the Beneficiary hereunder in the manner provided in Article VIII, paragraph 3 of this Indenture. Upon final distribution, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE X
## Termination

The Trustees accept the Trust herein created and provided for and agree to carry out the provisions on their part to be performed. If any one or more of the powers or provisions provided in this Indenture to be performed on the part of the Trust or on the part of the Trustees shall be declared by any court of competent jurisdiction to be contrary to law, then such powers or provisions shall be null and void and shall be deemed separable from the remaining powers or provisions and shall in no way affect the enforceability of any other power or provision of this Indenture, or of any bonds, notes or other evidences of indebtedness, issued hereunder.

IN WITNESSETH WHEREOF, the Trustor and the Trustees, have hereunto set their hands this 8th day of April, 1988.

TRUSTOR:

VIETNAM VETERANS OF AMERICA,
Chapter 216

ATTEST:

/s/ John G. Tew
Vice President

By: /s/ Ralph Henderson
TITLE: President

TRUSTEES:

/s/ Dick Crawford

/s/ Amadeo Richardson

/s/ John Fischer

/s/ Frank Friedl

/s/ Houston Adams

/s/ Ralph Henderson

/s/ Quantrill Page

/s/ John G. Tew

/s/ Paul F. Rauscher

/s/ Stafford G. Davis

[ACKNOWLEDGMENTS]

**ACCEPTANCE**

KNOWN ALL MEN BY THESE PRESENTS:

That the Board of Commissioners of the City of Tulsa, Oklahoma, a municipal corporation, hereby accepts the beneficial interest in the Trust created by the within and foregoing Trust Indenture, for and on behalf of said Beneficiary in all requests in accordance with the terms of said Trust Indenture.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Auditor of the City of Tulsa, Oklahoma, pursuant to direction of said Board of Commissioners this 8th day of April, 1988.

/s/ Dick Crawford
Mayor

ATTEST:

/s/ Ronald Payne
Deputy City Auditor

APPROVED:

/s/ Neal E. McNeill
City Attorney

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## CHAPTER 21. TULSA COUNTY VISION AUTHORITY

Section 2100. Beneficial interest in the Tulsa County Vision Authority Trust accepted.
Section 2101. Authorization to endorse approval and acceptance of Beneficial Interest.
Appendix I Declaration of Trust of Trust Indenture Tulsa County Vision Authority (Sections 2100 and 2101) ("Exhibit A" in Ord. No. 21329).

### Section 2100. Beneficial interest in the Tulsa County Vision Authority accepted.

That the Tulsa County Vision Authority created by Declaration of Trust dated the 26th day of June, 2006, a copy of which Declaration of Trust is attached hereto and marked "Exhibit A" wherein the City of Tulsa is designated as one of the beneficiaries of said trust, is hereby approved and the City of Tulsa hereby accepts a beneficial interest in the Tulsa County Vision Authority and accepts all of the terms and provisions of the Declaration of Trust as authorized by the applicable statutes of the state of Oklahoma.

*(Ord. No. 21329)*

### Section 2101. Authorization to endorse approval and acceptance of Beneficial Interest.

That the Mayor and the City Clerk of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Declaration of Trust the approval of the City of Tulsa of said Declaration of Trust creating the Tulsa County Vision Authority and the City's acceptance of the beneficial interest therein.

*(Ord. No. 21329)*

## APPENDIX I DECLARATION OF TRUST OF TULSA COUNTY VISION AUTHORITY (SECTIONS 2100 AND 2101).

*("Exhibit A" in Ord. No. 21329)*

KNOW ALL MEN BY THESE PRESENTS:

### I.
### DECLARATION AND COVENANT

The undersigned Trustor hereby contracts with the undersigned Trustees, and the latter, as individuals and not as holders of public office, hereby do declare and covenant, between themselves and unto the Trustor, the State of Oklahoma and the Beneficiary hereinafter described, that they and their successors do and will hold, receive and administer the Trust Estate hereinafter described, as Trustees of a public trust under and pursuant to the laws of the State of Oklahoma now in force and effect (generally, but not exclusively, Title 60, Oklahoma Statutes 2001, Sections 176-180.3, inclusive, and the Oklahoma Trust Act), solely for the use and benefit of the Beneficiaries for the public purposes and functions hereinafter set forth, in the manner provided in this instrument or, in the absence of applicable provision herein, then in the manner now provided by law. The aforesaid public trust is created by virtue of the execution of this instrument by the individuals signing the same as the Trustor and initial Trustees hereunder; and neither the acceptance of the beneficial interest hereunder, nor the endorsement hereon of such acceptance, for and on behalf of the designated Beneficiaries as provided by law, nor the fact that, at the time of signing this instrument, some or all of the initial Trustees are members of the governing body thereof, shall be deemed or construed to be the creation of a public trust by any such Beneficiary or the governing body thereof.

The undersigned Trustor hereby forever irrevocably conveys, relinquishes and assigns to the Trustees of the Authority any and all right, title and interest he may have in and under this Declaration of Trust and the trust created hereunder, including, without limitation, the right to consent to and approve any changes, amendments or supplements to this Declaration of Trust.

### II.
### NAME

The name of this Trust shall be, and the Trustees thereof in their representative fiduciary capacity shall be designated as the "Tulsa County Vision Authority". Under that name, the Trustees shall, so far as practicable, conduct all business and execute all instruments in writing, and otherwise perform their duties and functions, in execution of this Trust.

### III.
### PURPOSE

The purposes of this Trust, for and on behalf of the Beneficiary as hereinafter described, are:

**(a)** To determine which additional projects shall be funded with excess funds generated from the Tulsa County sales tax approved September 9, 2003, in

Propositions 2-4, inclusive, as provided in Section 8 of each of the three Resolutions adopted July 7, 2003, calling such Tulsa County sales tax election relating to propositions 2-4 inclusive.

**(b)** To approve any deletion or addition of projects from those listed in Section 8 of each of the three Resolutions adopted July 7, 2003, calling the Tulsa County sales tax election regarding propositions 2-4 inclusive, and any major change in scope of any such project.

## IV.
## DURATION

This Trust shall have duration for the term of duration of the Beneficiaries as hereinafter described, and until such time as the Trust's purposes shall have been fully executed and fulfilled, or until it shall be terminated as hereinafter provided.

## V.
## TRUST ESTATE

The Trust Estate shall consist of all money, property (real, personal and/or mixed), rights, choses in action, contracts, leases, privileges, franchises, benefits and all other things of value (whether or not above described) presently in or hereafter coming into the hands, or under the control, of the Trustees pursuant to the provisions of this instrument or by virtue of the Trusteeship herein declared. Furthermore, each of the Beneficiaries hereto shall contribute the sum of $1.00 to the Trust Estate upon acceptance of beneficial interest herein.

## VI.
## THE TRUSTEES

**(a)** The Trustees of this Trust shall be seven (7) in number, three of whom shall be the same persons, ex officio, who currently shall be the acting members of the legally-constituted governing body of Tulsa County, Oklahoma, without distinction as to the office held, one of whom shall be the same person, ex officio, who currently shall be the Mayor of the City of Tulsa, Oklahoma (the "Ex Officio Trustees"), and three of whom (the "Appointive Trustees"), shall be at the time of appointment the Mayor of a municipality, other than the City of Tulsa, located in whole or in part in Tulsa County, Oklahoma, and which has accepted beneficial interest in this Trust, and the undersigned, as Trustees, and all successors thereof who shall qualify as Trustees as hereinafter provided, each contract, agree and covenant with and to each other, with and to the State of Oklahoma, with and to each Beneficiary hereunder, and with and to each component thereof, as by law now in force and effect, that they will execute the trust herein declared and created, as Trustees for the Beneficiaries hereunder, and each component thereof, and that they do and will receive, hold and administer the Trust Estate solely for the use and benefit of the said Beneficiaries in the manner provided in this instrument, or, in the absence of applicable provision herein, then in the manner now provided by presently existing law. The Ex Officio Trustees and Appointive Trustees are herein collectively called the "Trustees". The initial Appointive Trustees shall be appointed by the presiding officer of the governing body of Tulsa County, Oklahoma, and confirmed by a majority of the persons who constitute the governing

body of Tulsa County, Oklahoma, and they shall serve, respectively, for fixed terms from the date of appointment and qualification as hereinafter provided to December 31, 2006, and each such person shall continue to serve until a successor shall have qualified, unless removed as provided by law.

Each undersigned Ex Officio Trustee shall continue as such until succeeded and replaced by some other person as an officer of Tulsa County, Oklahoma, above designated, or as Mayor of the City of Tulsa, as appropriate, ex officio, to be an Ex Officio Trustee and such other person shall have qualified as an Ex Officio Trustee hereunder as provided in paragraph (f) of this Section; each person who shall become such an above-designated member of the governing body of Tulsa County, Oklahoma or the Mayor of the City of Tulsa, as appropriate, shall be entitled to qualify as, and to become, an Ex Officio Trustee hereunder and to continue as such, until succeeded and replaced by some other person as such member of the governing body of Tulsa County, Oklahoma, or as such Mayor of the City of Tulsa, as appropriate, and such other person shall have qualified as an Ex Officio Trustee hereunder as provided in paragraph (f) of this Section: PROVIDED, that in the event the number of persons constituting the governing body of Tulsa County, Oklahoma, shall be reduced by or pursuant to applicable law, any person serving as an Ex Officio Trustee who shall cease to be a member of the governing body of Tulsa County, Oklahoma, shall, forthwith, cease to be an Ex Officio Trustee of this Trust.

Each Appointive Trustee shall continue as such unless such Appointive Trustee shall cease to be a member of the legally-constituted governing body of the Tulsa County municipality from which he was appointed, in which event such person shall, forthwith, cease to be an Appointive Trustee of this Trust. All of the legal rights, powers and duties of each Trustee shall terminate when he shall cease to be a Trustee hereunder and all of such legal rights, powers and duties shall devolve upon his successor and successors, with full right and power of the latter to do or perform any act or thing which his predecessor or any predecessor could have done or performed.

Successors to each of the Appointive Trustees shall have fixed terms of one (1) year, and shall continue to serve until a successor has qualified hereunder. Upon the expiration of the fixed term of an Appointive Trustee, the power of appointment of his successor hereby is vested in the person who then shall be the presiding officer of the governing body of Tulsa County, but before such appointment shall become effective, it also shall require the confirmation of a majority of the persons who then shall constitute the governing body of Tulsa County; Provided, that if the form of government of Tulsa County be changed, or the said Tulsa County shall have been succeeded by another governmental entity as provided in Section VIII hereof, then the aforesaid appointive power shall be vested in the person who then shall be the elected official who shall be the presiding officer of the governing body thereof, and confirmation of all such appointments shall be required by a majority of persons who then shall constitute the elected governing body of such successor.

In the event of a vacancy in a Appointive Trusteeship, the Trustees shall certify the fact of said vacancy to the above described appointive power and the Mayor of a municipality, other than the City of Tulsa, located in whole or in part in Tulsa County and which has accepted beneficial interest in this Trust, shall be appointed as an Appointive Trustee for the unexpired term by the presiding officer of the governing

body of Tulsa County and confirmed by a majority of persons who constitute the governing body of Tulsa County. In the event that the aforesaid appointing and confirming power, as above set forth, shall fail effectively to appoint a successor Appointive Trustee or said Trustee shall fail to qualify as a Trustee within thirty (30) days next following the expiration of the fixed term of an incumbent Appointive Trustee or within thirty (30) days next following certification of the fact of existence of a vacancy, the power of appointment of a successor Trustee shall be vested in the then remaining incumbent Trustee or Trustees. The determination of the right of any person to qualify as a Trustee hereunder shall be vested exclusively in the incumbent Trustees, and their determination shall be final.

All of the legal rights, powers and duties of each Trustee shall terminate when he shall cease to be a Trustee hereunder and all of such legal rights, powers and duties shall devolve upon his successor and successors, with full right and power of the latter to do or perform any act or thing which his predecessor or any predecessor could have done or performed.

**(b)** The person who shall be the Chairman of the Board of County Commissioners of Tulsa County, Oklahoma, shall become automatically the Chairman of the Trustees and shall preside at all meetings and perform other duties designated by the Trustees. The Trustees shall designate the time and place of all regular meetings. A majority of the duly qualified and acting Trustees of this Trust shall constitute a quorum for voting purposes and all other purposes hereunder. All actions by the Trustees pursuant to the provisions of this Declaration of Trust shall be approved by the affirmative vote of at least a majority of a quorum of the Trustees. The Trustees shall select one of their members to be Vice-Chairman, who shall act in the place of the Chairman during the latter's absence or incapacity to act.

**(c)** The Trustees shall select a person to act as Secretary of the Trustees. The Secretary shall keep minutes of all meetings of the Trustees and shall maintain complete and accurate records of all their financial transactions, all such minutes, books and records to be on file in the office of the Trust. All meetings of the Trustees shall comply with the Oklahoma Open Meeting Act, and the books, records and minutes of the Trustees shall comply with the Oklahoma Open Records Act.

**(d)** The person who shall be the County Treasurer of the Tulsa County, Oklahoma, shall act as Treasurer of the Trustees.

**(e)** All Trustees shall serve without compensation but may be reimbursed for actual expenses incurred in the performance of their duties hereunder from any legally available funds of the Trust.

**(f)** All Trustees serving hereunder, shall qualify by written acceptance of all of the terms of this instrument, duly acknowledged and filed in the office of the County Clerk of Tulsa County, Oklahoma, and by subscribing and filing such oaths as shall be required by law of public officers of the State of Oklahoma.

**(g)** Upon each change of personnel of the Trustees hereunder, the Trustees shall cause to be filed in the office of the County Clerk mentioned in paragraph (f) above, a certificate as to the entire personnel of the Trustees of this Trust.

**(h)** The acceptance of the office of Trustee of this Trust shall not constitute the Trustees hereunder to be in partnership or association, but each shall be an individual and wholly independent Trustee only.

**(i)** Notwithstanding any provision of this instrument which shall appear to provide otherwise, no Trustee or Trustees shall have any power or authority to bind or obligate any other Trustee, or any Beneficiary of this Trust, in his or its individual capacity.

**(j)** All persons, firms, associations, trusteeships, corporations, municipalities, governments, and all agents, agencies and instrumentalities thereof, contracting with any Trustee or Trustees, shall take notice that all expenses and obligations, and all debts, damages, judgments, decrees or liabilities incurred by any Trustee or Trustees and any of the foregoing incurred by any agent, servant, or employee of any such Trustee or Trustees, in the execution of the purposes of this Trust, whether arising from contract or tort, shall be solely chargeable to, and payable out of the Trust Estate. In no event shall any Trustee, or any Beneficiary of this Trust, be in any manner individually liable for any injury or damage to persons or property, or for breach of contract or obligation, caused by, arising from incident to or growing out of the execution of this Trust; nor shall they, or any of them, be liable for the acts or omissions of each other or of any agent, servant or employee of the aforesaid Trustees, or of another such Trustee: PROVIDED, HOWEVER, that the foregoing shall not apply to any willful or grossly negligent breach of trust of any said Trustee.

## VII.
## POWERS AND DUTIES OF TRUSTEES

Subject to, and in full compliance with, all requirements of law applicable to this Trust or to the Trustees thereof:

**(a)** The Trustees, in the manner hereinafter set forth, shall do, or cause to be done, all things which are incidental, necessary, proper or convenient to carry fully into effect the purposes enumerated in Section III of this instrument, with the general authority hereby given being intended to make fully effective the power of the Trustees under this instrument.

**(b)** The Trustees, by Resolution, may divide the duties of the Trustees hereunder, delegating all or any part of such duties to one or another of the Trustees as they deem proper; but, where a specific duty is not so delegated, a majority of a quorum of the Trustees must act for the Trust.

**(c)** No bond shall be required of the Trustees, or any of them, unless they shall deem the same proper and shall provide therefor by Resolution.

**(d)** All records of the Trust shall be kept at the principal office of the Trust.

**(e)** As soon as reasonably convenient after the acceptance of beneficial interest hereunder by any Beneficiary, the Trustees' first meeting shall be held at the call of any Trustee. At their first meeting, the Trustees shall designate the principal office of the Trust; and they also shall designate the time and place for regular meetings of the Trustees. No notice shall be required for the holding of regular meetings of the Trustees except as otherwise provided by law. Special meetings may be held upon such call as shall be fixed by Resolution of the Trustees. The Trustees shall cause to be filed in all places where this instrument is recorded, a certificate designating the principal office of the Trust and the time and place of regular meetings of the Trustees; and any changes therein shall be filed for record in like manner.

## VIII.
## BENEFICIARIES

**(a)** The term "Beneficiaries", as used in this instrument, shall denote Tulsa County, Oklahoma, the City of Tulsa, the City of Bixby, the City of Broken Arrow, the City of Collinsville, the City of Glenpool, the City of Jenks, the City of Owasso, the City of Sand Springs, the Town of Skiatook, and the Town of Sperry, acting by and through their governing bodies, and likewise shall denote any governmental entity which hereafter may succeed such County or any such municipality as the governing authority of the territory lying within the boundaries of said County or any such municipality on the effective date of this instrument.

**(b)** The Beneficiaries shall have no legal claim or right to the Trust Estate, or to any part thereof, against the Trustees or anyone holding under them; neither shall the Beneficiaries, as such, have any authority, power or right whatsoever to do or transact any business whatsoever for, or on behalf of, or binding upon, the Trustees or the Trust Estate; neither shall the Beneficiaries have the right to control or direct the actions of the Trustees in respect of the Trust Estate, or any part thereof; nor shall the Beneficiaries have any right to demand or require any partition or distribution of the Trust Estate, or any part thereof. The Beneficiaries shall be entitled solely to the benefits of this Trust, as administered by the Trustees hereunder, and at the termination of the Trust, as provided herein, and then only, each of the Beneficiaries hereunder shall be entitled to the sum of $1.00, with the exception of Tulsa County, Oklahoma, which shall in addition to the sum of $1.00 receive the remaining residue of the Trust Estate. Notwithstanding anything in the aforesaid appearing to be to the contrary, no provision in this instrument and/or of any Acceptance of Beneficial Interest thereunder by the governing bodies of the said Beneficiaries, limiting, restricting or denying any authority, power, or right of the Beneficiaries of said Trust in relation to the administration thereof is intended, or shall be construed or interpreted, to effect a surrender, or to attempt to effect a surrender, of any of the sovereign governmental powers of the State of Oklahoma or of the Beneficiaries; but any and all provisions of this trust instrument are intended, and shall be applied, to relate solely and only to the proprietary rights and property interests of the said Beneficiaries, in trust, as distinguished from their sovereign governmental powers and authority. It further is agreed that nothing contained in this Declaration of Trust and/or in any Acceptance of Beneficial Interest thereunder shall be construed, interpreted or applied as intending to grant, or to grant to the Trustees hereunder an exclusive franchise in relation to any powers, rights or authority of the Trustees under this instrument.

## IX.
## TERMINATION

**(a)** This Trust shall be irrevocable by the Trustor and shall terminate:

**(1)** When the purposes set forth in Section III of this instrument shall have been fully executed and fulfilled: or

**(2)** In the event of the happening of any event or circumstance that would prevent said purposes from being executed and fulfilled AND all of the Trustees and the governing bodies of the Beneficiaries who have accepted beneficial interest

hereunder, with the approval of the Governor of the State of Oklahoma, shall agree that such event or circumstance has taken place: PROVIDED, HOWEVER, that all indebtedness of the Trust shall have been paid; or

**(3)** In the manner provided by Title 60, Oklahoma Statutes 2001, Section 180:

PROVIDED, HOWEVER, that this Trust shall not be terminated by voluntary action if there be outstanding indebtedness or fixed-term obligations of the Trustees, unless all owners of such indebtedness or obligations or someone authorized by them so to do, shall have consented in writing to such termination.

**(b)** Upon the termination of this Trust, the Trustees shall proceed to wind up the affairs of the Trust, and, after payment of all debts and obligations out of Trust assets, to the extent thereof, shall distribute the residue of the Trust assets to Tulsa County, Oklahoma, as provided in Section VIII of this instrument. Upon final distribution as aforesaid, the powers, duties and authority of the Trustees hereunder shall cease.

## X.
## PARTIAL INEFFECTIVENESS

The invalidity or ineffectiveness for any reason of any one or more words, phrases, clauses, paragraphs, subsections or sections of this instrument shall not affect the remaining portions hereof so long as such remaining portions shall constitute a rational instrument. Any such invalid or ineffective portion was inserted conditionally upon its being valid and effective only; and this instrument shall be construed as though such invalid or ineffective portion had not been inserted herein.

## XI.
## COVENANT

The provisions hereof shall be binding upon the undersigned, their heirs, executors, administrators and assigns.

IN WITNESS WHEREOF, we have hereunder set out hands, executing this Declaration of Trust in several multiple originals, all of which constitute one and the same instrument, this 26 day of June, 2006.

/s/ Wilbert E. Collins, Sr.
Wilbert E. Collins, Sr., Trustor

/s/ Wilbert E. Collins, Sr.
Wilbert E. Collins, Sr., Trustee

/s/ Robert N. Dick
Robert N. Dick, Trustee

/s/ Randi Miller
Randi Miller, Trustee

/s/ Kathy Taylor
Kathryn L. Taylor, Trustee

/s/ Richard M. Carter
Richard M. Carter, Trustee

/s/ Stan Sallee
Stan Sallee, Trustee

/s/ J. Shayne Buchanan
J. Shayne Buchanan, Trustee

[ACKNOWLEDGMENTS]

**ACCEPTANCE OF BENEFICIAL INTEREST**

On this 26 day of June, 2006, pursuant to Resolution duly adopted by the Board of County Commissioners of Tulsa County, Oklahoma, the Board of County Commissioners of Tulsa County hereby accepts, for and on behalf of said County, the beneficial interest in the trust created by the within and foregoing Declaration of Trust, in all respects in accordance with the terms of said Declaration of Trust.

BOARD OF COUNTY COMMISSIONERS OF TULSA COUNTY, OKLAHOMA

By: /s/ Wilbert E. Collins, Sr.
Chairman

ATTEST:

/s/ Earlene Wilson
County Clerk

(SEAL)

## ACCEPTANCE OF BENEFICIAL INTEREST

On this 7th day of July, 2006, pursuant to an authorizing Ordinance of the Board of County Commissioners of Tulsa City Council, adopted on July 6, 2006, Kathryn L. Taylor, Mayor of the City of Tulsa, Oklahoma, herewith accepts, for and on behalf of the City of Tulsa, the beneficial interest in the trust created by the within and foregoing Declaration of Trust, in all respects in accordance with the terms of said Declaration of Trust.

CITY OF TULSA, OKLAHOMA

By: /s/ Kathy Taylor
Kathryn L. Taylor, Mayor

(SEAL)

ATTEST:

/s/ Michael P. Kier
City Clerk

APPROVED:

/s/ Alan L. Jackere
City Attorney

## ACCEPTANCE OF BENEFICIAL INTEREST

On this 10 day of July, 2006, pursuant to Resolution duly adopted by the City Council of the City of Bixby, Oklahoma, the Mayor of the City of Bixby herewith accepts for and on behalf of said City, the beneficial interest in the trust created by the within and foregoing Declaration of Trust, in all respects in accordance with the terms of said Declaration of Trust.

CITY OF BIXBY, OKLAHOMA

By: /s/ Ray Bowen
Mayor

ATTEST:

/s/ Cheryl Sasser
City Clerk

(SEAL)

## ACCEPTANCE OF BENEFICIAL INTEREST

On this 3rd day of July, 2006, pursuant to Resolution duly adopted by the City Council of the City of Broken Arrow, Oklahoma, the Mayor of the City of Broken Arrow herewith accepts for and on behalf of said City, the beneficial interest in the trust created by the within and foregoing Declaration of Trust, in all respects in accordance with the terms of said Declaration of Trust.

CITY OF BROKEN ARROW, OKLAHOMA

By: /s/ Richard M. Carter
Mayor

ATTEST:

/s/ Linda C. Fagundes
City Clerk

(SEAL)

**ACCEPTANCE OF BENEFICIAL INTEREST**

On this 3rd day of July, 2006, pursuant to Resolution duly adopted by the City Council of the City of Collinsville, Oklahoma, the Mayor of the City of Collinsville herewith accepts for and on behalf of said City, the beneficial interest in the trust created by the within and foregoing Declaration of Trust, in all respects in accordance with the terms of said Declaration of Trust.

CITY OF COLLINSVILLE, OKLAHOMA

By: /s/ Stan Sallee
Mayor

ATTEST:

/s/ Pamela J. Polk
City Clerk City Manager

(SEAL)

**ACCEPTANCE OF BENEFICIAL INTEREST**

On this 3rd day of July, 2006, pursuant to Resolution duly adopted by the City Council of the City of Glenpool, Oklahoma, the Mayor of the City of Glenpool hereby accepts for and on behalf of said City, the beneficial interest in the trust created by the within and foregoing Declaration of Trust, in all respects in accordance with the terms of said Declaration of Trust.

CITY OF GLENPOOL, OKLAHOMA

By: /s/ J. Shayne Buchanan
Mayor

ATTEST:

/s/ Patricia Morris
City Clerk

(SEAL)

**ACCEPTANCE OF BENEFICIAL INTEREST**

On this 3rd day of July, 2006, pursuant to Resolution duly adopted by the City Council of the City of Jenks, Oklahoma, the Mayor of the City of Jenks herewith accepts for and on behalf of said City, the beneficial interest in the trust created by the within and foregoing Declaration of Trust, in all respects in accordance with the terms of said Declaration of Trust.

CITY OF JENKS, OKLAHOMA

By: /s/ Vic Vreeland
Mayor

ATTEST:

/s/ Joshua McCorkle
City Clerk

(SEAL)

**ACCEPTANCE OF BENEFICIAL INTEREST**

On this 11 day of July, 2006, pursuant to Resolution duly adopted by the City Council of the City of Owasso, Oklahoma, the Mayor of the City of Owasso hereby accepts for and on behalf of said City, the beneficial interest in the trust created by the within and foregoing Declaration of Trust, in all respects in accordance with the terms of said Declaration of Trust.

CITY OF OWASSO, OKLAHOMA

By: /s/ Stephen Cataudella
Mayor

ATTEST:

/s/ Sherry Bishop
City Clerk

(SEAL)

**ACCEPTANCE OF BENEFICIAL INTEREST**

On this 10 day of July, 2006, pursuant to Resolution duly adopted by the City Council of the City of Sand Springs, Oklahoma, the Mayor of the City of Sand Springs hereby accepts for and on behalf of said City, the beneficial interest in the trust created by the within and foregoing Declaration of Trust, in all respects in accordance with the terms of said Declaration of Trust.

CITY OF SAND SPRINGS, OKLAHOMA

By: /s/ Robert L. Walker
Mayor

ATTEST:

/s/ Eulas Bruce Ford
City Clerk

(SEAL)

**ACCEPTANCE OF BENEFICIAL INTEREST**

On this 11 day of July, 2006, pursuant to Resolution duly adopted by the City Council of the City of Skiatook, Oklahoma, the Mayor of the City of Skiatook hereby accepts for and on behalf of said City, the beneficial interest in the trust created by the within and foregoing Declaration of Trust, in all respects in accordance with the terms of said Declaration of Trust.

CITY OF SKIATOOK, OKLAHOMA

By: /s/ Virgil Mayabb
Mayor

ATTEST:

/s/ Shirley Lett
City Clerk

(SEAL)

## ACCEPTANCE OF BENEFICIAL INTEREST

On this 13th day of July, 2006, pursuant to Resolution duly adopted by the Board of Trustees of the Town of Sperry, Oklahoma, the Mayor of the Town of Sperry hereby accepts for and on behalf of said Town, the beneficial interest in the trust created by the within and foregoing Declaration of Trust, in all respects in accordance with the terms of said Declaration of Trust.

TOWN OF SPERRY, OKLAHOMA

By: /s/ Michael Hilton
Mayor

ATTEST:

/s/ Glenda Holcolm
Town Clerk

(SEAL)

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## CHAPTER 22. TULSA STADIUM TRUST

Section 2200. Beneficial interest in the Tulsa Stadium Trust accepted.
Section 2201. Authorization to endorse approval and acceptance of beneficial interest.
Appendix I Trust Indenture Tulsa Stadium Trust (§§ 2201-2202) ("Exhibit A" in Ord. No. 21886).

### Section 2200. Beneficial interest in the Tulsa Stadium Trust accepted.

That the Tulsa Stadium Trust created by Trust Indenture dated the 25th day of September, 2008, a copy of which Trust Indenture is attached hereto and marked "Exhibit A" wherein the City of Tulsa is designated as the sole beneficiary of said trust, is hereby approved and the City of Tulsa hereby accepts the beneficial interest in the Tulsa Stadium Trust and accepts all of the terms and provisions of the Trust Indenture as authorized by the applicable statutes of the state of Oklahoma.

### Section 2201. Authorization to endorse approval and acceptance of beneficial interest.

That the Mayor and the City Clerk of the City of Tulsa are hereby authorized, instructed and directed to endorse upon the original of said Trust Indenture the approval of the City of Tulsa of said Trust Indenture creating the Tulsa Stadium Trust and the City's acceptance of the beneficial interest therein.

## TRUST INDENTURE TULSA STADIUM TRUST

KNOW ALL MEN BY THESE PRESENTS:

This Trust Indenture is dated and made this 25th day of September, 2008, by and between:

**(i)** Steven J. Malcolm, James F. Adelson, John-Kelly C. Warren, and Arlo B. DeKraai, (the "Trustors"); and,

**(ii)** Mayor of the City of Tulsa, Steven J. Malcolm, Glenn A. Strobel, Larry Lyon, Reuben Gant, James F. Adelson, John-Kelly C. Warren, Arlo B. DeKraai, and Stanley A. Lybarger (the "Trustees").

WITNESSETH:

That, in consideration of the payment by the Trustors to the Trustees of the sum of One Dollar ($1.00); the receipt of which is hereby acknowledged, and of the mutual covenants herein set forth, the Trustees agree to hold, manage, invest, assign, convey, lease and distribute in accordance with the terms and provisions of this Trust Indenture, all such property as Trustors or others may from time to time assign, transfer, lease, convey, give, bequeath, devise or deliver to this Trust (as hereafter defined) or the Trustees.

TO HAVE AND TO HOLD such property and the proceeds, rents, profits and increases thereof in trust, for the use and benefit of the City of Tulsa, Oklahoma, a municipal corporation, (the "Beneficiary") on the terms and provisions of this Trust Indenture.

### ARTICLE I
### Creation of Trust

**(1)** The Trustors hereby create and establish a trust (the "Trust") for the use and benefit of the Beneficiary and for the public purposes hereinafter set forth under the provisions of Title 60, Oklahoma Statutes, 2001, Section 176 to 180.4, inclusive, as amended and supplemented from time to time, and other applicable statutes of the State of Oklahoma, now in existence or hereinafter enacted.

**(2)** The specific citation of any Act shall not limit the powers of the Trust to engage in any activity permitted under the Oklahoma Trust Act or the laws of the State of Oklahoma in regard to public trusts. Subject only to the provisions of this Trust Indenture, this Trust may engage in any purpose or function permitted of a public trust under the laws of the State of Oklahoma.

### ARTICLE II
### Names and Definitions

The name of this Trust shall be the "Tulsa Stadium Trust." The Trustees shall conduct all business and execute all instruments and otherwise perform the duties and functions required in the execution of this Trust in the name of the Trust.

### ARTICLE III
### Purpose and Powers of The Trust

**(1)** The Trust purpose shall be and the Trust shall have the power (i) to acquire, construct, own, operate, and sell a baseball stadium in downtown Tulsa (herein called the "Tulsa

Stadium Project") and (ii) to acquire, construct, own, operate, and sell amenities and facilities necessary or convenient thereto as determined by the Trustees in their discretion; provided, that if the Trustees determine it is in the best interests of the Trust to sell all or substantially all of the assets of the trust, that decision shall be made subject to approval by the City Council; and, provided further, that the Trust shalt not acquire any interest in real property located outside of the area bounded by North Detroit Street on the West, the railroad right of way on the South, and US Highway 244 on the North and East (the "Stadium Development Boundary") without the written consent of the City Council. Notwithstanding the foregoing, the Trust shall not acquire real property owned by or contracted for development by the Greenwood Community Development Corporation within the Stadium Development Boundary.

**(2)** In addition to the foregoing purposes and powers, the Trust shall have the further purpose and power to engage in other projects related to the Tulsa Stadium Project and approved by a vote of two-thirds of the Trustees, including any maintenance and improvement of property either owned directly by the Trust or under maintenance or improvement contract with the Trust.

**(3)** In exercising the powers described above, the Trust may engage in any lawful activity authorized by the Oklahoma Public Trust Act and other applicable statutes of the State of Oklahoma, with or without the participation of other agencies or private entities and may exercise such powers in any lawful manner by the expenditure and depletion of Trust revenues and/or assets. Without limiting the foregoing, in the exercise of the powers of this Trust, the Trustees may take any or all actions deemed necessary or appropriate by the Trustees, including, without limitation, any one or more of the following:

**(a)** demolish, clear, assemble, prepare, rehabilitate, repair, refurbish, erect, construct, purchase, lease, mortgage, and sell real or personal property;

**(b)** incur short term and long term indebtedness, issue notes and bonds for the repayment thereof, and grant mortgages, liens, and security interests to secure such repayment;

**(c)** enter into such purchase and sale agreements, services agreements (including agreements for architectural, real estate, management, legal, accounting, and other professional services), management agreements, and other agreements of whatsoever nature and duration as the Trustees may deem advisable.

**(4)** To assist the Trust in the construction of the Stadium and the planning of related amenities adjacent thereto funded by assessments paid pursuant to the Tulsa Stadium Improvement District No. 1. the Trustees shall establish an advisory committee (the "Construction and Planning Committee").

**(a)** The Construction and Planning Committee shall consist of (i) one or two of the Trustees elected by the Trustees, (ii) a representative designated by the Greenwood Community Development Corporation, and (iii) three persons designated by the Trustees who possess experience and professional qualifications in facility construction and/or project management.

**(b)** Upon reasonable request by the Construction and Planning Committee, the Trustees shall receive, consider, and act upon recommendations of the Construction and Planning Committee respecting such construction and planning.

## ARTICLE IV
## Duration of Trust

The Trust shall continue until it shall be terminated as hereinafter provided.

## ARTICLE V
## The Trust Estate

**(1)** The Trust Estate shall consist of

**(a)** The funds and property presently in the hands of the Trustees, including the consideration recited above;

**(b)** Any and all property assigned, leased or transferred to the Trust, including any such property assigned, leased, or transferred by the Beneficiary;

**(c)** Any and all improvements that may be constructed by, or on behalf of, the Trust upon any property owned by or leased to the Trust; and

**(d)** Any and all money, property, real, personal, or mixed, rights, choses in action, contracts, leases, privileges, immunities, licenses, franchises, benefits and all other things of value coming into the possession of the Trust.

## ARTICLE VI
## The Trustees

**(1)** There shall be a total of nine (9) Trustees of this Trust.

**(2)** The Trustees shall be designated by number as Trustee No. 1, Trustee No. 2, Trustee No. 3, Trustee No. 4, Trustee No. 5, Trustee No. 6, Trustee No. 7, Trustee No. 8, and Trustee No. 9. The term of the Trustees designated as Trustee No. 3 through Trustee No. 5 shall be three (3) years. The term of the Trustees designated as Trustee No. 6 through Trustee No. 9 shall be five (5) years, except as hereafter provided for the initial Trustees.

**(3)** The initial Trustees and the terms of the Trustees are as follows:

**(a)** Trustee No. 1 shall be at all times the then duly elected and serving Mayor of the City of Tulsa and shall serve until her successor as Mayor has been duly elected and qualified.

**(b)** Steven J. Malcolm shall be the initial Trustee No. 2. Trustee No. 2 shall serve for a term of four (4) years, or until his successor is appointed, confirmed and qualified. A vacancy in the office of Trustee No. 2 shall be filled by an owner of property (or in the case of the owner of property which is not an individual, its representative) located within the Inner Dispersal Loop of the City of Tulsa paying assessments to the Tulsa Stadium improvement District appointed by the Mayor and approved by the City Council of the City of Tulsa.

**(c)** Glenn A. Strobel shall be the initial Trustee No. 3. Trustee No. 3 shall serve for a term of three (3) years, or until his successor is appointed, confirmed and qualified. A vacancy in the office of Trustee No. 3 shall be filled by an owner of property or payor of assessments (or, in the case of the owner of property or payor which is not an individual, its representative) paying assessments to the Tulsa Stadium Improvement District on property of less than 250,000 square feet, approximately, recommended to the Mayor by the Trustees, appointed by the Mayor, and approved

by the City Council of the City of Tulsa. In the event, the City Council fails to approve a person so appointed by the Mayor, the process shall be repeated until the City Council approves a person so appointed.

**(d)** Larry Lyon shall be the initial Trustee No. 4. Trustee No. 4 shall serve for a term of three (3) years, or until his successor is appointed, confirmed and qualified. A vacancy in the office of Trustee No. 4 shall be filled by an owner of property or payor of assessments (or, in the case of the owner of property or payor which is not an individual, its representative) paying assessments to the Tulsa Stadium Improvement District No. 1 ("Tulsa Stadium Improvement District") on property of less than 100,000 square feet, approximately, recommended to the Mayor by the Trustees, appointed by the Mayor, and approved by the City Council of the City of Tulsa. In the event, the City Council fails to approve a person so appointed by the Mayor, the process shall be repeated until the City Council approves a person so appointed.

**(e)** Reuben Gant shall be the initial Trustee No. 5. Trustee No. 5 shall serve for a term of three (3) years, or until his successor is appointed, confirmed and qualified. A vacancy in the office of Trustee No. 5 shall be filled by a person designated by the Greenwood Community Development Corporation, recommended to the Mayor by the Trustees, appointed by the Mayor, and approved by the City Council of the City of Tulsa. In the event, the City Council fails to approve a person so appointed by the Mayor, the process shall be repeated until the City Council approves a person so appointed.

**(f)** James F. Adelson shall be the initial Trustee No. 6. The term of the initial Trustee No. 6 shall be two (2) years.

**(g)** John-Kelly C. Warren shall be the initial Trustee No. 7. The term of the initial Trustee No. 7 shall be three (3) years.

**(h)** Stanley A. Lybarger shall be the initial Trustee No. 8. The term of the initial Trustee No. 8 shall be four (4) years. Upon the expiration of the initial term of Trustee No. 8, a vacancy in the office of Trustee No. 8 shall be filled by an owner of property or payor of assessments (or, in the case of the owner of property or a payor of assessments which is not an individual, its representative) paying assessments to the Tulsa Stadium Improvement District recommended to the Mayor by the Trustees, appointed by the Mayor, and approved by the City Council of the City of Tulsa. In the event, the City Council fails to approve a person so appointed by the Mayor, the process shall be repeated until the City Council approves a person so appointed.

**(i)** Arlo B. DeKraai shall be the initial Trustee No. 9. The term of the initial Trustee No. 9 shall be five (5) years.

**(4)** Except for Trustee No. 1 no initial Trustee shall assume office until approved by the City Council of the City of Tulsa. In the event the City Council fails to approve an initial Trustee the office shall be filled in the same manner as is provided herein for a successor to such initial Trustee.

**(5)** Except for Trustee No. 1, no trustee may immediately succeed herself or himself, but a Trustee may serve as a Trustee in more than one term provided such Trustee has not been a Trustee for at least one year preceding her or his appointment.

**(6)** All Trustees shall serve until their successors are appointed and approved as provided in this Trust Indenture

**(7)** Whenever nominations or recommendations for successor trustees are required by this Trust Indenture, such nominations or recommendations shall be submitted to the Mayor within forty-five (45) days of the creation of the vacancy or expiration of an existing term. Upon failure to receive nominations or recommendations within such time period, the Mayor shall submit such appointments to the City Council for approval without the recommendation or nomination. Whenever this Trust Indenture provides for the Mayor to appoint successor trustees for approval by the City Council, the Mayor shall submit such appointments to the City Council within sixty (60) days from the creation of the vacancy or expiration of an existing term or within such additional time as may be authorized by the Council, for good cause shown. Upon omission of the Mayor to timely appoint such successor Trustees, such appointments shall be made by the City Council.

**(8)** Any vacancy in Trustee positions Nos. 6, 7 and 9 (whether occurring by reason of the expiration of a term, death, incapacity, resignation, or otherwise) shall be filled in the following manner:

**(a)** Trustee No. 6, Trustee No. 7, and Trustee No. 9 (including the Trustee leaving the Board, if available) may nominate a person to be considered by the Board for submission to the City Council of the City of Tulsa to fill the vacancy. The Board shall by majority vote (including the vote of the Trustee leaving the Board, if available) select a person from among such persons so nominated and submit the name of such person to the City Council of the City of Tulsa for her or his appointment to fill the vacancy.

**(b)** In the event, the City Council of the City of Tulsa fails to appoint a person nominated in accordance with the foregoing subparagraphs, the Board shall submit the name of other persons in accordance with the foregoing sub-paragraph until the City Council appoints a person so nominated.

**(9)** All Trustees appointed hereunder shall qualify by a written acceptance of all the terms of this instrument, duly acknowledged and signed in the same manner and in the same places that this instrument is acknowledged and filed. All Trustees, permanent and temporary, before assuming the powers and duties as such, also shall subscribe and file such oaths as shall be required by law for public officers of the State of Oklahoma.

**(10)** The Trustees shall elect at the first meeting of the Trustees, and annually thereafter, by majority vote, a Chairman of the Board of Trustees, who shall preside at all meetings and perform other duties designated by the Trustees. The Trustees shall designate the time and place of all regular meetings. At their first meeting, and any time thereafter, the Trustees may adopt Bylaws and or Rules of Procedure to govern the conduct of meetings of the Trust. Any such Bylaws or Rules of Procedure may be amended from time to time as deemed necessary or appropriate by the Trustees. All actions by the Trustees pursuant to the provision of this Trust Indenture shall be approved by the affirmative vote of at least a majority of the Trustees qualified to act as such under the provisions of this Trust Indenture, and present at a meeting at which a quorum is present. Five Trustees shall constitute a quorum. The Trustees shall elect one or more of their members to be Vice-Chairman who shall act in the place of the Chairman during the latter's absence or incapacity to act or serve.

**(11)** The Trustees shall elect a Secretary of the Trustees who may or may not be a Trustee. The Secretary shall keep minutes of all meetings of the Trustees. All such minutes, books and records shall be on file in the principal office of the Trust, which said office shall be within the City of Tulsa, Oklahoma. All meetings of the Trustees shall be open to the public, and the books, records and minutes of the Trustees shall be considered as public records and available for inspection at all reasonable times by any interested person or persons.

**(12)** The Trustees shall elect a Treasurer of the Trustees who may or may not be a Trustee, and who shall maintain complete and accurate records of all their financial transactions.

**(13)** The Trustees may appoint an Executive Director for the Trust and may employ such other clerical, professional, legal and technical assistance as may be deemed necessary in the discretion of the Trustees to properly operate the business of the Trust, and may fix their duties, terms of employment and compensation. In the event an Executive Director for the Trust is appointed by the Trustees, the said Executive Director shall administer the business of the Trust as directed from time to time by the Trustees.

**(14)** Upon each change of personnel of the Trustees hereunder, the Chairman of the Board of Trustees shall cause to be filed in the office of the City Clerk of the City of Tulsa, a certificate of the entire personnel of the Board of Trustees of the Trust.

**(15)** The Trustees shall be, during their terms, subject to removal only by: (i) action of the District Court of Tulsa County, for cause shown, including incompetence, neglect of duty or malfeasance in office; or (ii) as provided 12 TRO Chapter 6.

**(16)** The Trustees, the City, or any agency thereof, shall not be charged personally with any liability whatsoever by reason of any act of omission committed or suffered in good faith or in the exercise of their honest discretion in the performance of such Trust or in the operation of the Trustee Estate; but any act or liability for any omission or obligation of the Trustees in the execution of such Trust, or in the operation of the Trust Estate shall extend to the whole of the Trust Estate or so much thereof as may be necessary to discharge such liability or obligation.

**(17)** No Trustee or Trustees shall have the power or authority to bind or obligate any other Trustee, or the Beneficiary in his or its capacity, nor can the Beneficiary bind or obligate the Trust or any individual Trustee.

**(18)** No Trustee shall be paid any compensation of any kind for his services as Trustee, except that each such Trustee shall be reimbursed for actual expenses incurred in the performance of his duties as Trustee.

## ARTICLE VII
## Powers and Duties of the Trustees

**(1)** Subject to the provisions and limitations otherwise provided in this Indenture, the Trustees shall have, in addition to the usual powers incident to their office, and the powers granted to them in other parts of this Trust Indenture, the following rights,

powers, duties, authority, discretion and privileges, all of which may be exercised by them without any order or authority from any court or legislative body except as herein provided:

**(a)** To accept by gift, devise or bequest or to purchase, lease, or otherwise acquire property, real, personal or mixed, franchises, contracts, leases, rights, privileges, benefits, choses in action, or other things of value and to pay for the same in cash, or other evidences of indebtedness or otherwise.

**(b)** To enter into contracts for the acquisition and construction of property, buildings and facilities authorized to be acquired and constructed pursuant to the terms of this Indenture. In the execution of these powers and duties, the Trustees may employ such architectural and engineering firm or firms as the Trustees deem necessary to prepare such preliminary and detailed studies, plans, specifications, cost estimates and feasibility reports as are required in the opinion of the Trustees. The cost of such engineering and architectural work shall be paid out of Trust funds as the Trustees may determine to be available therefor.

**(c)** To make and change investments; to convert real into personal property and vice versa; to lease, improve, exchange or sell, at public or private sale, upon such terms as they deem advisable, any or all of the property in the Trust, real or personal; to purchase property from any person, firm or corporation, and lease land and other property to and from the Beneficiary, and construct, improve, repair, remodel and equip buildings and facilities thereon and to operate or lease or rent the same to individuals, partnerships, associates, corporations and others, including the United States of America or the State of Oklahoma and agencies or authorities of the United States of America, or of the State of Oklahoma, or of any political subdivision thereof, as well as the Beneficiary hereof, and to do all things provided for in Article 111 of this Indenture, and procure funds necessary for such purpose by the rentals, income, receipts and profits from the personal property, buildings and facilities owned or otherwise acquired, leased or controlled by trustee, or from any other revenue associated with the ownership, operation or control of the property of the Trust to lease or sublease any property of the Trust or of which the Trustees may become the owners or lessees; to collect and/or receive for and disburse and/or pay to the Beneficiary such voluntary contributions as are or may be made for public purposes under such contractual arrangements as the Trustees may enter into with any person, firm, corporation or entity with respect to any property, whether real, personal or mixed; and to otherwise exercise any and all rights and powers which a trust organized and created pursuant to Title 60, Oklahoma Statutes, Sections 176, et seq., as amended, may now or hereafter exercise.

**(d)** To fix, demand, and collect charges, rentals and fees for the property, buildings and facilities of the Trust; to discontinue furnishings of properties, buildings and facilities to any person, firm or corporation, or public instrumentality, delinquent in the payment of any indebtedness to the Trust; to purchase and sell such supplies, goods and commodities as are incident to the operation of its properties.

**(e)** To make and perform contracts of every kind, including management contracts, with any person, firm, corporation, association, trusteeship, municipality, county,

state or federal government or any agency thereof. To collect and receive any property, money, rents, or income of any sort and distribute the same or any portion thereof for the furtherance of the authorized Trust purposes set out herein.

**(f)** To select depositories for the funds and securities of this Trust.

**(g)** To compromise any debts or claims of or against the Trust and to adjust any dispute in relation to such debts or claims by arbitration or otherwise and pay any debts or claims against the Trust upon any evidence that seems to the Trustees to be sufficient. The Trustees may bring any suit or action which in their judgment is necessary or proper to protect the interest of the Trust, or to enforce any claim, demand, or contract for the Trust; and they shall defend, in their discretion, any suit against the Trust, Trustees, employees, agents or servants thereof. They may compromise and settle any suit or action and discharge the same out of the Trust Estate, together with court costs and attorneys' fees. All such expenditures shall be treated as expenses of executing this Trust.

**(h)** To do all other acts, in their judgment, necessary or desirable for the proper and advantageous management, investment and distribution of the Trust Estate and income therefrom.

**(i)** To contract for the furnishing of any services or for the performance of any duties that they may deem necessary or proper, and pay for the same as they see fit; but in any case, said Trustees shall provide for an annual audit of the Trust property and operations, by an independent auditor, one copy each of which shall be filed with the Mayor and State Auditor and Inspector, and one copy of which shall be filed with the City Council of the City of Tulsa, pursuant to the Oklahoma Public Trust Act. Provided, however, that the City Council of the Beneficiary may order an audit of the Trust property and its operations at any time by Certified Public Accountants, a Certified Municipal Accountant or a licensed public accountant at the expense of the Trust and such audit shall be filed as hereinbefore provided.

**(j)** To issue bonds, notes, Security Agreements, or other obligations as may be necessary or desirable to carry out the purposes of the Trust, and to secure the payment of such obligations by the pledge of all or any part of the rents and income of the Trust.

**(k)** No purchaser at any sale or lessee under a lease made by the Trustees shall be bound to inquire into the expediency, propriety, validity or necessity of such sale or lease or to see to or be liable for the application of the purchase or rental monies arising therefrom.

**(1)** In the event a corporation, partnership or firm in which a Trustee has a substantial financial interest or in which a Trustee serves as an officer or director contracts with the Trust, such interest shall be disclosed by said Trustee and shall be entered in the minutes of the Trust and such Trustee shall not participate in any action on such transaction; provided, in the absence of fraud, no contract or other transaction shall be thereby affected or invalidated.

**(m)** Provided, however, that no part of the net earnings, if any, of this Trust or any of its properties, whether real, personal or mixed, shall ever inure to the benefit of any private individual or Trustee, and provided further, that no substantial part of the activities of this Trust shall consist of carrying on propaganda for, or otherwise

attempting to influence legislation, nor shall it participate in, or intervene in, including the publishing or distributing of statements or other and similar materials, any political campaign on behalf of any candidate for public office.

**(n)** The Trustee shall cause an annual budget to be compiled of all anticipated and proposed expenditures, expenses and outlay of trust funds for the initial and thereafter annually ensuing fiscal years of the Trust. Such budget and all amendments thereto shall be promptly submitted to the Mayor and City Council of the Beneficiary.

**(o)** Each Trustee, when acting in his or her official capacity, shall be subject to the City of Tulsa Ethics Code (Tulsa Revised Ordinances, Title 12, Chapter 6).

**(2)** The Trust shall not incur any debt which will create any financial liability upon the City of Tulsa. No indebtedness or obligation shall be created by the Trust until such indebtedness or obligation has been approved by a two-thirds (⅔) vote of the City Council of the City.

## ARTICLE VIII
## Beneficiary of Trust

**(1)** The Beneficiary of this Trust shall be the City of Tulsa, Oklahoma, a municipal corporation, under and pursuant to Title 60, Oklahoma Statutes, Section 176, et seq., and other statutes of the State of Oklahoma, presently in force and effect. Any approval of the Beneficiary required by this Trust Indenture shall be given by the City Council of the Beneficiary unless this Indenture provides for approval by the Mayor of the Beneficiary.

**(2)** This Trust Indenture may be altered, amended, revised or modified by and only with the express written consent of the Trustors, the Trustees, and the City Council on behalf of the Beneficiary, which said written consent shall be evidenced by endorsement upon any instrument of alteration, amendment, revision or modification; provided, that no such alteration, amendment, revision or modification shall take effect in such way as to impair the rights of the holder of any bond or other evidence of indebtedness of the Trust or party to whom the Trust is indebted in any way under written obligation of indebtedness.

**(3)** The Beneficiary shall have no legal title, claim or right to the Trust Estate, its income, or any part thereof, or to demand or require any partition or distribution thereof, or to demand or require any partition or distribution thereof, except as set forth hereinafter in this Trust Indenture. Neither shall said Beneficiary nor any agents thereof, have any authority, power or right, whatsoever, to do or transact any business for, or on behalf of, or binding upon, the Trustees or upon the Trust Estate, nor the right to control or direct the actions of the Trustees. The City of Tulsa as Beneficiary of this Trust shall be entitled solely to the benefits of this Trust as administered by the Trustees hereunder, and, at the termination of the Trust as herein provided and then only shall said City receive the residue of the Trust.

**(4)** The Trustees, after fulfilling the purposes of this Trust and after paying all obligations of the Trust and all the costs and expenses incident to the management, operation, maintenance and conservation of this Trust, shall then distribute the then remaining property, real, personal or mixed, to the Beneficiary of the Trust.

## ARTICLE IX
## Termination of Trust

**(1)** This Trust shall terminate:

**(a)** When the purposes set out in Article III of this Indenture shall have been fully executed, as determined by a majority vote of the full membership of both the Trustees and the governing body of the Beneficiary; or

**(b)** In the manner provided by Title 60, Oklahoma Statutes, Section 180, as it currently exists or may hereafter be amended or superseded.

Provided, however, that this Trust shall not be terminated by voluntary action, if there be outstanding indebtedness or fixed term obligations of the Trustees, unless all owners of such indebtedness or obligation shall have consented in writing to such termination.

**(2)** Upon the termination of the Trust, the Trustees shall proceed to settle the affairs of this Trust, and after payment of all debts and obligations out of the monies and properties of the Trust Estate, to the extent thereof, shall distribute the residue of all Trust property to the Beneficiary hereunder or to such other person or persons as may be required by law. Upon final distribution, the powers, duties and authority of the Trustees hereunder shall cease.

## ARTICLE X
## Acceptance of Trust

The Trustees accept the Trust herein created and provided for and agree to carry out the provisions on their part to be performed. If any one or more of the powers or provisions provided in this Indenture to be performed on the part of the Trust or on the part of the Trustees shall be declared by any court of competent jurisdiction to be contrary to law, then such powers or provisions shall be null and void and shall be deemed separable from the remaining powers or provisions and shall in no way affect the enforceability of any other power or provision of this Indenture, or of any bonds, notes or other evidences of indebtedness, issued hereunder.

IN WITNESSETH WHEREOF, the Trustors and the Trustees have hereunto set their hands this 25th day of September, 2008.

TRUSTORS' EXECUTION AND ACKNOWLEDGEMENT

Execution:

"TRUSTORS"

/s/ Steven J. Malcolm

/s/ James F. Adelson

/s/ John-Kelly C. Warren

/s/ Arlo B. DeKraai

[ACKNOWLEDGMENTS]

TRUSTEES' EXECUTION AND ACKNOWLEDGEMENT:

"TRUSTEES"

/s/ Kathy Taylor
Mayor of the City of Tulsa

/s/ Steven J. Malcolm
Steven J. Malcolm

/s/ Glenn A. Strobel
Glenn A. Strobel

/s/ Larry Lyon
Larry Lyon

/s/ Reuben Gant
Reuben Gant

/s/ James F. Adelson
James F. Adelson

/s/ John-Kelly C. Warren
John-Kelly C. Warren

/s/ Arlo B. DeKraai
Arlo B. DeKraai

/s/ Stanley A. Lybarger
Stanley A. Lybarger

[ACKNOWLEDGMENTS]

## ACCEPTANCE OF TRUST INDENTURE AND ACCEPTANCE OF BENEFICIAL INTEREST BY THE GOVERNING BODY OF THE BENEFICIARY

KNOW ALL MEN BY THESE PRESENTS:

Pursuant to action of the Council of the City of Tulsa, Oklahoma, a municipal corporation and governing body of the Beneficiary herein, on the 18th day of September, 2008, which action was taken by the affirmative vote of not less than two-thirds (⅔) of the entire membership of the Council, the said Council approves this Trust Indenture dated the 25th day of September, 2008, and hereby further accepts on behalf of the City of Tulsa, Oklahoma, the beneficial interest in the Tulsa Stadium Trust, a public trust with the City of Tulsa as its sole beneficiary, which Trust has been created for the purposes and with the powers set forth in the said Trust Indenture and pursuant to the law.

WITNESS my hand as Mayor of the City of Tulsa, Oklahoma, attested by the City Clerk of the City of Tulsa, Oklahoma, pursuant to such approval and acceptance by the Council of the City, has executed this Approval and Acceptance of Beneficial Interest for said governing body on this 6th day of October, 2008.

/s/ Amy Polonchek
Mayor Pro-Tem

ATTEST:

/s/ Anthony Mayes
Deputy City Clerk

[ACKNOWLEDGMENT]

THIS INDENTURE APPROVED as to form and legality:

/s/ Linda G. Redemann
Assistant City Attorney

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# TULSA

# CODE OF

# ORDINANCES

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# VOLUME III

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Republished 2024

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# TITLE 40 WATERWORKS AND SEWERAGE (REPEALED)*

*__Note—__This title was amended and recodified as Title 11-C, effective May 8, 1990.

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# TITLE 41 WEIGHTS AND MEASURES

## Chapter 1. Weights and Measures

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## CHAPTER 1. WEIGHTS AND MEASURES

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### Section 100. Inspector.

Subject to the provisions of the Charter of the City of Tulsa, the Mayor shall designate an Inspector of Weights and Measures and such Deputy Inspectors as necessary. It shall be the duty of the inspector to enforce all applicable state laws and City ordinances relating to weights and measures and to perform all other duties assigned by the Mayor.

## Section 101. Meaning of terms.

For the purposes of this chapter, the following words and phrases shall have the meanings given herein.

**A.** **Bulk sales** shall mean the sale of commodities when the quantity is determined at time of sale.

**B.** **Commercial weighing and measuring device** shall mean any weight or measure or weighing or measuring device commercially used or employed in establishing the size, quantity, extent, area, length or other measurements of things, produce, meats, articles or other commodities for distribution or consumption which are purchased, offered, exposed for sale, submitted for sale, hire, award or in computing any basic charge or payment for services rendered or payment for goods received on the basis of weight or measure, and shall include any accessory attached to or used in connection with a commercial weighing or measuring device where such accessory is so designed or installed that its operation affects or may affect the accuracy of the device.

**C.** **Commodity** shall mean goods, things, articles, wares, merchandise, foodstuffs, chemicals, raw materials, products of the soil, produce, meat poultry and dairy products, petroleum products, scrap material or any other substance, either solid or liquid.

**D.** **Correct,** as used in connection with weights and measures, shall mean conformance to all applicable technical requirements for accuracy.

**E.** **Check-weigh** shall mean verification of the quantity represented on a prepackaged commodity, upon the request of a customer and in his presence.

**F.** **Inspector** shall mean the City official responsible for the supervision of weights and measures standards in this jurisdiction and assistant inspectors acting under his control and direction.

**G.** **Intrastate** shall mean any and all commerce or trade that is begun, carried on and completed wholly within the limits of the state of Oklahoma, and the phrase introduced into intrastate commerce shall define the time and place at which the first sale and delivery of a commodity is made within the state, such delivery being made either directly to the purchaser or to a common carrier for shipment to the purchaser.

**H.** **Net weight,** as used in connection with any commodity, shall be that weight excluding all tare weight as herein defined.

**I.** **Package** shall mean any commodity put up or packaged in any manner, in advance of sale, in units suitable for either wholesale or retail sale.

**J.** **Removal order** shall mean any order or written notice declaring that the device being used in violation of the provisions of this chapter shall be permanently removed from commerce.

**K.** **Stop-use order** shall mean any order or written notice declaring that the use of a device is in violation of the provisions of this chapter, and the use of such device shall be stopped or discontinued.

**L.** **Stop-removal order** shall mean any order or written notice declaring that the device being used in violation of the provisions of this chapter shall be removed from commerce for a reasonable temporary period of time.

**M. Stop-sale order** shall mean any order or written notice declaring that the packaged commodities inspected do not contain the quantity or amount as represented on the package label. The Inspector can order a "stop-sale" on a lot or shipment if, after taking a reasonable sample, the sample falls below the standards established in the National Bureau of Standards Handbook 67, Checking Prepackaged Commodities.

**N. Sell** shall include in any of its variant forms the word sell, barter, exchange, trade, keep for sale, offer for sale and expose for sale.

**O. Tare weight** shall mean any material or thing that is weighed with, but not an actual part of a commodity sold by weight; tare weight may include, in the case of a packaged commodity, a wrapper, container, packaging material, binding material, preservative or the like, or in the case of bulk commodity, a vehicle, box, crate, can, jar or the like.

**P. Weights and measures** shall mean all instruments and devices for weighing and measuring and any appliances and accessories associated with any or all such devices; except that the term shall not include meters for the measurement of electricity, natural gas or water which are operated in a public utility system. The term shall not include metered pumps and units which measure and dispense gasoline or any other liquid petroleum product in a fluid state.

**Q. Person** shall include both the singular and the plural, and shall include individuals, partnerships, agents, corporations, companies, societies, associations and their employees, proprietors and officers.

### Section 102. Systems of weights and measures.

The system of weights and measures in customary use in the United States and the metric system of weights and measures are jointly recognized and either or both of these systems shall be used for commercial purposes in this jurisdiction. The definitions of basic units of weight and measure, the tables of weight and measure, and weights and measures equivalents, as published by the National Bureau of Standards and recognized by the state of Oklahoma, are recognized and shall govern weighing and measuring equipment and transactions in the City of Tulsa.

### Section 103. Technical requirements for commercial devices.

The specifications, tolerances and other technical requirements for commercial weighing and measuring devices as adopted by the National Conference on Weights and Measures and published in the National Bureau of Standards, Handbook 44, and supplements thereto or revisions thereof, shall apply to commercial weighing and measuring devices in the City of Tulsa, except insofar as they are reasonably modified or rejected by the Inspector.

### Section 104. Maintenance of City standards of weights and measures.

Weights and measures, in conformity with the standards of the National Bureau of Standards, as have been obtained by the City for use as City standards, shall, when the same have been examined and approved by the inspector, be the official standards of weights and measures. The inspector may seek the inspection and approval of the Director of the Department of Agriculture of the state of Oklahoma, in the event he questions the accuracy of the standards obtained by the City. The City standards of weights and measures shall be kept in a safe and suitable place designated by the Inspector. The City

standards shall be submitted at least once every three (3) years to the Director of the Department of Agriculture of the state of Oklahoma or to some testing laboratory recommended by the Director for certification of accuracy.

### Section 105. Powers and duties of the inspector.

**A.** The inspector shall be empowered to inspect and test weights and measures kept, offered or exposed for sale.

**B.** The inspector shall inspect, as many times he deems necessary to ascertain if they are accurate, all weights and measures commercially used, without prejudice to the type of equipment used, including but not limited to:

**1.** Their use in determining the weight, measure or count of commodities, things sold, offered or exposed for sale, on the basis of weight, measure or count;

**2.** Their use in computing the basic charge or payment for services rendered on the basis of weight, measure or count;

**3.** Their use in computing the payment for commodities purchased on the basis of weight, measure or count; and

**4.** Their use in spot-checking commodities prepackaged in mass production to insure that the commodities meet their declared weight, measure or count.

**C.** The inspector shall keep a record of all weights and measures devices inspected by him, specifying the name of the person for whom the inspection was performed, his address and the date of the inspection. He shall keep a record of all complaints, specifying the name of the business charged, its address, the nature of the charge, the findings and any corrective action taken. He shall keep a record of all condemnations of weights and measures devices, specifying the business, its address, the device type, model and serial number, the date condemned, the date repaired and placed back into service and the date reinspected and sealed.

**D.** The inspector shall place the City "Seal of Approval" upon correct devices in a conspicuous place, so as to be easily seen by the customer. The seal shall show the date of inspection and the signature or identification number of the inspector.

**E.** Upon his discretion and with the express consent of the owner, the inspector may make any minor adjustments to devices, except electronic meat pricing scales and measure graphs, to bring such devices into conformance with the required standards; provided, however, that such adjustments shall not in any way damage the operating mechanisms of the devices.

**F.** The inspector shall reinspect and seal previously condemned or rejected devices after they have been repaired and placed back into service.

**G.** The inspector shall promulgate, adopt and issue reasonable regulations for the enforcement of this chapter, subject to the approval of the City Council. Such regulations shall be filed with the City Clerk.

**H.** The inspector shall grant exemptions from the provisions of this chapter with respect to classes of weights and measures found to be of such character that an inspection is superfluous to maintaining continued good commercial practices.

**I.** The inspector shall condemn or reject those commercially used weighing and measuring devices that do not conform to the technical requirements as established in the

National Bureau of Standards, Handbook 44; provided, however, that he may allow weighing and measuring devices to be used when, in the course of commercial transactions, only the lower capacity range is used, even though the device may not meet the required standards at the higher capacity range, if he marks or places a sticker tag conspicuously on the device informing the customer of its restriction.

**J.** The inspector shall conduct investigations as soon as possible on complaints made to him concerning violations of this chapter. He shall, upon his own initiative, conduct such investigations as he deems appropriate and advisable to develop information on prevailing procedures in commercial quantity determination and on possible violations of the provisions of this chapter, and to promote the general objective of accuracy in the determination and representation of quantity in commercial transactions.

**K.** The inspector shall conduct, as often as he deems necessary, the inspection of prepackaged commodities that are kept, offered or exposed for sale, to determine if the contents contain the amounts represented and that the tare weight has been taken.

**L.** The inspector shall avoid conflict of interests. The inspector shall not sell nor enter into the business of repair, directly or indirectly, of any weighing or measuring device. He shall not solicit nor interfere in any transactions involving the sale of weighing and measuring devices between persons.

**M.** The inspector shall advocate the establishment and the maintenance of good quality control programs with respect to prepacking procedures and quantity representation.

**N.** The inspector shall promote the advantages of progressive weights and measures practices to deal with the current market trends and to achieve benefits to both the buyer and the seller.

**O.** The inspector shall promptly assist any county, state or federal agency that requests weights and measures services.

**P.** The inspector shall promptly provide information and services to any person requesting the same relative to the activities of the inspector and the enforcement of this chapter.

*(Ord. No. 16784)*

### Section 106. Citation power.

The inspector shall have such citation power authorized by Title 29, Tulsa Revised Ordinances, and granted to designated employees of the City of Tulsa.

### Section 107. Injunction application.

The inspector is authorized to apply to any court of competent jurisdiction for a temporary injunction restraining any person from violating any provision of this chapter.

### Section 108. Special police powers.

**A.** With respect to the enforcement of this chapter and any other law dealing with weights and measures that he is or may be empowered to enforce, the inspector is hereby vested with the powers of a special enforcement officer as set forth in Title 29, Tulsa Revised Ordinances. Upon presentation of proper credentials, the inspector is authorized, at reasonable times during normal business hours of the person using the weights and measures, to enter into or upon any structure or premises where weights and measures

are used or kept for commercial purposes for the purpose of performing any duty imposed upon him by this chapter. In the event he is denied access to any such premises or structure and has probable cause to believe that there have been violations of this chapter upon such premises or in such structure, he may apply for a search warrant from any magistrate or other person authorized by law to issue the same. If the magistrate or person authorized to issue a search warrant determines that there is probable cause that violations of this chapter have occurred, the search warrant shall recite that there is probable cause to believe such violations have occurred; and such recital shall authorize any authorized police or peace officer to seize any device, equipment, commodity, product, article, material or any other thing used or kept for commercial purposes, or in aid of commercial purposes, in violation of this chapter, all of which shall be admissible in evidence in any court having cognizance of offenses committed under this chapter.

**B.** The inspector shall be empowered to issue "stop-use," "stop-removal" and "removal" orders with respect to any weights and measures commercially used, and "stop-sale" orders with respect to any packaged commodities kept, offered or exposed for sale, if he deems it necessary or expedient to issue such orders to protect the public interest. It shall be a violation of this chapter for any person to refuse or fail to obey a "stop-use," "stop-removal," "removal" or "stop-sale" order.

## Section 109. Right of hearing.

If the inspector issues a "stop-use," "stop-removal," "removal" or "stop-sale" order under the provisions of this chapter, the aggrieved party may file a petition with the City Clerk within ten (10) days from the date of such order, requesting a hearing before the Council to abrogate the order. The petition shall be in writing and shall clearly state the reasons why the petitioner believes the order should be abrogated. The Council shall fix a time for the hearing of the petition and shall notify the petitioner of the time, place and date of the hearing. At the time set for such hearing, the Council shall proceed to hear and determine the matter.

## Section 110. Inspection of packages.

The inspector, from time to time, shall weigh or measure and inspect packages or amounts of commodities kept, offered, exposed for sale, sold or in the process of delivery, to determine whether such packages or amounts of commodities contain the amounts represented and whether they are kept, offered, exposed for sale or sold in accordance with the law; and when such packages or amounts of commodities are found not to contain the amounts represented or are found to be kept, offered, exposed for sale or sold in violation of the law, the inspector may order them off sale and may mark or stamp them in a manner as to show them to be illegal. In carrying out the provisions of this section, the inspector may employ recognized sampling procedures under which compliance of a given lot of packages shall be determined on the basis of the result obtained on a representative sample selected from such lot. The criteria used in sampling and determining whether packages conform to the law is set forth by the National Bureau Handbook 67, Checking Prepackaged Commodities, and supplements thereto.

No person shall sell, keep, offer or expose for sale any package or amount of commodity that has been ordered off sale as provided in this section, unless and until such package or

amount of commodity has been brought into full compliance with the legal requirements; and no person shall in any manner dispose of any package or amount of commodity that has been ordered off sale and that has not been brought into compliance with the legal requirements, except with the specific approval of the inspector.

The inspector may allow reasonable variations from the declared net weight, measure or count when such variations are caused by unavoidable deviations in weighing, measuring or counting the contents of individual packages that occur in good packaging practices. Variations shall not be permitted to such extent that the average of the quantities in the packages of a particular commodity, or a lot of the commodity, that is kept, offered, exposed for sale or sold, is below the quantity stated; and no unreasonable shortage in any single package shall be permitted, even though overages in other packages in the same shipment, delivery or lot compensate for such shortage. Variations above the declared quantity shall not be unreasonably large. Variations from the declared weight or measure may be permitted when caused by ordinary and customary exposure to conditions that normally occur in good distribution practice and that unavoidably result in change of weight or measure, but only after the commodity is introduced into intrastate commerce; provided, however, that the phrase "introduced into intrastate commerce" as used in this section shall be construed to define the time and the place at which the first sale and delivery of a package is made within the City of Tulsa, the delivery being either directly to the purchaser or to his agent, or to a common carrier for shipment to the purchaser; and further provided that this provision shall be construed as requiring that, so long as a shipment, delivery or lot of a particular commodity remains in the possession or under the control of the packager or the person who introduces the package into intrastate commerce, exposure variations shall not be permitted. The magnitude of variations permitted under this section shall, in the case of any shipment, delivery or lot, be determined by the facts in the individual case.

### Section 111. Sale by net weight.

The words "weight" or "amount" as used in this chapter in connection with any commodity shall mean "net weight." Whenever any commodity is sold on the basis of weight, the net weight of the commodity shall be employed, and all contracts concerning commodities shall be so construed.

### Section 112. Misleading packages.

No commodity in package form shall be so wrapped, nor shall it be in a container so made, formed or filled, as to mislead the purchaser as to the quantity of the contents of the package. This section shall not be construed to mean that packages which are filled by weight and whose contents settle between the time of filling and the time of purchase are in violation of this section.

### Section 113. Misrepresentation of pricing.

No person shall misrepresent the price of any commodity or service sold, offered, exposed or advertised for sale by weight, measure or count, nor represent the price in any manner calculated or tending to mislead or in any way to deceive a person.

### Section 114. Misrepresentation of quantity.

No person shall sell, offer or expose for sale less than the quantity he represents, nor take any more than the quantity he represents when, as buyer, he furnished the weight or measure by means of which the quantity is determined.

### Section 115. Information required on packages.

**A.** Except as otherwise provided in this chapter, any package kept for the purpose of sale, offered or exposed for sale, shall bear on the outside of the package a definite, plain and conspicuous declaration of:

**1.** The identity of the commodity in the package, unless the same can easily be identified through the wrapper or container;

**2.** The quantity of contents in terms of net weight, measure or count;

**3.** The name and place of business of the manufacturer, packer or distributor in the case of any prepackaged commodity kept, offered, exposed for sale or sold in any place other than on the premises where packed; and

**4.** The price per pound, if customarily sold this way.

**B.** There shall not be included as part of the declaration required under this section such qualifying terms as "when packed," "minimum," "not less than" or any other terms of similar import, nor any term qualifying a unit of weight, measure or count such as "jumbo," "giant," "full" and the like, that tends to exaggerate the amount of commodity in the package, unless expressly permitted by state or federal statutes.

### Section 116. Method of sale of commodities.

Commodities in liquid form shall be sold only by liquid measure or by weight, and commodities in solid form shall be sold only by weight, measure or count; provided, however, that liquid commodities may be sold by weight and solid commodities may be sold by measure or count only when such methods give accurate information as to the quantity of the commodity being sold. The provisions of this section shall not apply to:

**A.** Commodities when sold for immediate consumption on the premises where sold;

**B.** Vegetables when sold by the head or bunch;

**C.** Bakery products sold by the dozen;

**D.** Commodities in package form or in containers standardized by state or federal law;

**E.** Commodities in package form when there exists a general consumer usage to express the quantity in some other manner;

**F.** Concrete aggregate and mixtures, loose solid materials (gravel, sand, soil and similar types) when sold by cubic measurement;

**G.** Unprocessed vegetable and animal fertilizer when sold by cubic measurements; and

**H.** Nuts in large multiple bag lots being sold by cleaners or shellers to processors for further processing or repacking; these may be sold on a gross weight basis, if expressly agreed upon by the buyer and seller.

### Section 117. Method of sale of meat, poultry, seafood and cheese.

All meat, meat products, poultry (whole or parts), seafood (except shellfish) and cheese offered for sale or sold as food, shall be offered for sale on the basis of weight. Meat, poultry, cheese or seafood combined with or associated with some other food element or elements to form either a distinctive food product or a food combination, shall be sold by weight and the quantity representation may be the total weight of the product or combination. This section shall not apply to prepared meat, poultry, cheese or seafood sold for immediate consumption on or off the premises where sold.

**Section 118. Machine vended commodities.**

All vending machines dispensing packaged commodities shall indicate on the machine, unless easily read on the packaged commodity by the prospective buyer: the product identity; the net quantity of the commodity; and the name and address of the person who makes or prepares the commodity for consumption.

**Section 119. Measures for garden and orchard products.**

When fruits, berries, other products of like character or any garden products are sold, offered or exposed for sale, either at wholesale or retail, on the public markets or anywhere in the City, in baskets, boxes, crates or other receptacles, they shall be sold, exposed or offered for sale in uniform size baskets, crates, boxes or other receptacles containing one (1) quart, one (1) pint or one-half (½) pint standard dry measure, or in multiples thereof, and in no other way; and such receptacles shall have the quantity or capacity of same stamped on the outside thereof and shall be evenly and uniformly filled throughout; provided, however, that these provisions shall not apply to fruit sold by the dozen or fractions thereof, or vegetables sold by the head or bunch; and provided further that such commodities may be sold in receptacles containing other quantities than the multiples above set out, if the receptacles have clearly and legally stamped in plain figures on the outside thereof the actual contents of same.

**Section 120. Sale of meat by carcass, side or primal cut.**

**A.** Any person who sells meat by carcass, side or primal cut, and cuts up the meat prior to delivery to the consumer, shall provide the consumer with an invoice at time of delivery, furnishing the following information:

**1.** The name and address of seller;

**2.** The date of sale;

**3.** The total net weight of carcass, side or primal cut;

**4.** The price per pound;

**5.** The total price of sale;

**6.** The total net weight of cut up and processed meat delivered;

**7.** The declaration of quality grade and yield grade, if the carcass has been graded by an authorized agency; if the carcass has not been graded, then the declaration "Not Quality and/or Yield Graded" must be made; and

**8.** An itemized list of any charges over and above the originally agreed upon sale price.

**B.** The common or usual name of the cut of meat or processed meat shall appear on each package or container, unless complete visual determination can be made through transparent packaging material.

**C.** The invoice required in Subsection A. of this section shall not include the weight of any meat or other commodities received by the consumer as a bonus or gift in connection with the purchase of the carcass, side or primal cut.

## Section 121. Bulk commodities sold in terms of weight or cubic measure and delivered by vehicle.

When a vehicle delivers to an individual purchaser a commodity in bulk and the commodity is sold in terms of weight or cubic units, the delivery shall be accompanied by a duplicate delivery ticket which shall be given to the purchaser upon delivery and which shall contain the following information clearly stated thereon:

**A.** The name and address of the vendor;

**B.** The name and address of the purchaser;

**C.** A clear description of the material delivered; and

**D.** The net weight or cubic measure of the delivery; and if the net weight of the delivery is derived from determinations of gross and tare weights, such gross and tare weight of the vehicle shall be stated.

## Section 122. Sale of wood.

Firewood in any lengths, when sold or delivered in the City, shall be closely laid together for the purpose of measurement when the sale is by cord or rick. A cord of wood shall be construed to mean one hundred twenty-eight (128) cubic feet and a rick of wood shall be construed to mean sixty-four (64) cubic feet. Firewood may be sold by the piece, bundle or container, as expressly agreed upon by both the buyer and seller. When wood cuttings, wood blocks, kindling wood or similar types of wood are sold or delivered in the City, they shall be sold by either cubic measurement or weight, unless the buyer and seller expressly agree that some other method may be employed. No person shall sell or deliver wood as mentioned herein unless such person delivers to the buyer a delivery or sales ticket showing the amount of wood purported to be delivered, the name and address of the dealer, the name and address of the purchaser or consignee, the date of sale and delivery and the price agreed upon by the seller and the buyer. The ticket shall include a statement as to whether such wood is "dry" or "green" and the word "dry" shall be construed to mean seasoned wood.

## Section 123. Peddlers.

Any peddler who uses weighing or measuring devices in his business transactions must have such devices inspected, approved and sealed by the inspector. If any peddler should be found selling his wares without the proper stamp of approval on his weighing or measuring devices, showing approval by the inspector, he shall be guilty of a violation of this chapter.

## Section 124. Sale of ice.

When block ice is sold from a self-service, automatic vending device, the owner of such device shall cause to be posted or displayed on the outside housing of the vending device a plain and conspicuous declaration of the weight and price of the block of ice to be dispensed.

Crushed ice or ice cubes packed or sold in bags or other containers shall have printed or stamped on the bag or container a declaration of the net weight contained. When the same is sold from a self-service, automatic vending device, there shall be posted, or displayed on the outside of the vending device, a plain and conspicuous declaration of the net weight and price of each bag or container of crushed ice or ice cubes to be dispensed.

### Section 125. Interstate or intrastate shipments.

The inspector is hereby authorized to inspect scales used for the calculation and determination of fees or charges for the transportation of bulk materials, packages, goods or commodities in interstate or intrastate shipments by rail, motor vehicles, motor transport, parcel services or airlines.

### Section 126. Misleading advertisements prohibited.

This section pertains to only those areas that come under the jurisdiction of weights and measures supervision.

**A.** No person shall advertise or cause to be advertised in any newspaper or other publication, radio or television, any advertising device, or by any other manner or means whatever, any assertion, representation or statement of fact concerning commodities, or services for hire or concerning any circumstances or matter of fact connected with the performance thereof which is untrue or misleading. Such advertising shall be construed to be *prima facie* evidence of a violation of this chapter.

**B.** No person shall, by means of exaggerated variations in the comparative size, location or position of letters, figures or other markings or characters on any price tag, sign, poster, notice, display or advertisement or other public representation of any nature whatsoever, mislead or deceive, or attempt to mislead or deceive the public, as to the true nature, price, quantity, quality, brand or character of any commodity or services.

**C.** No person shall advertise commodities for sale with the word "wholesale" when the same commodities are available for sale by that same person to the general public at the same price.

**D.** No person shall advertise commodities for sale with the intent not to supply a reasonable, expected demand by the public, unless the advertisement conspicuously states that there is a limited quantity and numerically states the limited quantity.

**E.** No person shall fail to correct advertising errors brought to his attention either by the inspector, the Health Department Director or his authorized representative or a customer. The advertising error shall be corrected by a retraction of equal magnitude and by placing a conspicuous sign, next to or as near as possible to the commodity advertised in error, alerting the prospective buyer to the error. Failure to comply with this subsection shall constitute a violation of this chapter and shall result in notification of the Federal Trade Commission of the incident.

**F.** This section does not apply to any publisher of a newspaper, magazine or other publication, nor to the owner or operator of a radio or television station, nor any other owner or operator of a medium primarily devoted to advertising, who publishes, broadcasts or otherwise disseminates an advertisement in good faith, without knowledge of its false, deceptive or misleading character.

### Section 127. Advertising packages for sale.

Whenever any person advertises a commodity in package form in any manner and the retail price of the package is stated in the advertisement, there shall be closely and conspicuously associated with such statement of price a declaration of the basic quantity of contents of the package as is required by law or regulation to appear on the package itself; provided that where the law or regulation requires a dual declaration of net quantity to appear on the

package, only the declaration that sets forth the quantity in terms of the smaller unit of weight or measure (the declaration that is required to appear first without parentheses on the package) need appear in the advertisement.

### Section 128. Consumer right to check-weigh.

When a retail vendor offers for sale the major portion of his meats and meat products, poultry (whole and parts), seafood, cheese and fresh produce as prepackaged items as the basis from which the customer's selection for purchases is made:

**A.** Upon request by the customer, the vendor shall weigh the selected item in the presence of the customer if the customer doubts the quantity or amount as represented; and

**B.** The vendor shall provide, upon request by a customer, a conversion chart of the decimal system to avoirdupois system to enable the customer to compare weight values with which he or she is familiar.

### Section 129. Vehicle scales.

**A.** Any person owning or operating public or non-public vehicle scales which are involved in commercial transactions, either directly or indirectly, shall once each year furnish to the City Office of Weights and Measures proof that his vehicle scale has been certified to be correct, either by the State of Oklahoma Weights and Measures Department or by a state licensed scale agency.

**B.** A "public" vehicle scale shall mean any scale upon which any vehicle is weighed if:

**1.** The weighing is in any way intended, either directly or indirectly, to determine the weight or measure of commodities which will be offered for sale or have been sold, bought, awarded or hired;

**2.** The weighing is in any way intended to compute any charge or payment for services rendered on the basis of weight or measure;

**3.** Such scale is represented to render accurate weighings;

**4.** Certificates are provided setting forth the weights as a result of such weighing; or

**5.** Charges are made either directly or indirectly, to those who use the scale.

**C.** A "non-public" vehicle scale shall mean any vehicle scale used exclusively by the owner or operator to make weight determinations for commercial transactions of commodities to be sold or purchased, and such determinations are the basis for charges or payments.

### Section 130. Duties of owners of incorrect devices.

Commercial weighing and measuring devices that have been rejected or condemned under the authority of the City inspector shall remain subject to the control of the inspector until such time as suitable repair or disposition has been made as required by this section. The owners of such rejected or condemned devices shall cause the same to be made correct within ten (10) days or such longer time as may be authorized by the inspector; or, in lieu thereof, the owner may dispose of the devices, but only in such manner as is specified by the inspector. Weighing and measuring devices that have been rejected or condemned shall not again be used commercially until they have been certified repaired by a state licensed repair agency and have been officially reexamined and found to be correct, or until specific written permission for such use is issued by the inspector.

## Section 131. Coin-operated devices.

**A.** For the purpose of this section, the following words and phrases shall have the meanings given herein.

1. **Coin-operated device** shall mean any device that will accept a coin or paper money in exchange for any commodity, thing or service.
2. **Coin-operated timing device** shall mean any device that measures the time during which a particular service duly purchased is provided.
3. **Operator** shall mean any person, firm, company, association or corporation that exhibits, displays or permits to be exhibited or displayed at his or its place of business or upon premises under his or its control within the City, any "coin-operated device" for customer use.
4. **Owner** shall mean any person, firm, company, association or corporation owning or having the care, control or management of any "coin-operated device" in the City.
5. **Unattached coin-operated device** shall mean any such device in a location where there is no person readily available who is authorized to make rebates to users when such device malfunctions.

**B.** No owner shall display or permit to be displayed in the City any coin-operated device unless such device is of such materials, design and construction as to make it reasonably certain under normal operating conditions that accuracy will be maintained as to quantity dispensed or interval of service provided, operating parts will continue to function as intended, and any adjustments required will remain reasonably permanent.

**C.** The owner of a coin-operated device displayed in the City for customer use shall continuously maintain such device in proper operating condition.

**D.** The owner of a coin-operated device displayed in the City for customer use which may fail to operate properly, except when special precautions are observed, shall prominently and conspicuously mark such device with suitable operating instructions that include such precautions.

**E.** The owner or operator shall prominently display, at all locations within the City where unattended coin-operated devices are displayed for customer use, complete instructions for reporting the failure of any such device to function properly. Such instructions shall include the name and either the address or telephone number of the owner or operator responsible for operation. It shall be the duty of the owner or operator of such devices to rebate all money paid for commodities or services not received; provided, however, that the owner or operator may elect to check the device before making any rebate so long as the device is checked promptly so that a rebate to which a customer is entitled will be made within ten (10) days from the date he applies for it.

**F.** At the location of any coin-operated timing device displayed in the City for customer use where time is a critical factor in the use of the service provided, the owner or operator shall clearly, prominently and conspicuously display the price in terms of money per unit or units of time for the service provided.

**G.** It shall be unlawful for any person to deface, destroy or remove any signs placed pursuant to the requirements of this section by the owner or operator at the location where unattended coin-operated devices are displayed for customer use in the City.

**H.** The following coin-operated devices shall be exempted from the terms of this section:

**1.** All music and skill or pleasure coin-operated machines;

**2.** All game type coin-operated devices, including, but not limited to pinball machines, marble boards, miniature race track, football, golf and bowling machines and all juke boxes;

**3.** All coin-operated devices owned by a federal, state or local governmental agency; and

**4.** All coin-operated devices owned by a public utility operating under a franchise granted by the City or other public body.

## Section 132. Offenses and penalties.

**A.** No person, by himself, by his employee or agent, or when serving as an agent for another person, shall:

**1.** Use or have in his possession, for the purpose of selling or leasing for use in commercial transactions, any weighing or measuring device which calculates false weight, measure or count;

**2.** Use or have in his possession for current use any commercially used weighing and measuring devices that have not been inspected and approved by the inspector;

**3.** Dispose of any rejected or condemned weights and measures in a manner contrary to the provisions of this chapter;

**4.** Deface or remove from any weight or measure, contrary to law, any tag, seal or mark placed thereon by the inspector;

**5.** Sell, offer or expose for sale less than the quantity or amount any person represents of any commodity, thing or service;

**6.** Take more than the quantity or amount a person represents of any commodity, thing or service when, as a buyer, a person furnishes the weighing or measuring device by means of which the quantity or amount of the commodity, thing or service is determined and payment is calculated based on that determination;

**7.** Advertise, offer or expose for sale, keep for the purpose of sale or sell any commodity, thing or service in a condition or manner contrary to law;

**8.** Make false statement to the inspector with regard to the number of such commercially used weighing and measuring devices kept in his establishment or place of business or their intended use, or endeavor to hide away the same to avoid inspection;

**9.** Use any weighing and measuring devices commercially used after such devices have been condemned or rejected by the inspector;

**10.** Falsify a weight certificate when issued by a public vehicle scales owner or any of his employees, either by the scale operator, owner or by the recipient of the certificate;

**11.** Use in retail trade, except in the preparation of packages put up in advance of sale and in preparation of medical prescriptions, a weighing or measuring device that is not so positioned that its indications may be easily read by the customer;

**12.** Hinder or obstruct in any way the performance of the inspector's duties prescribed in this chapter;

**13.** Impersonate the inspector in any manner whatsoever;

**14.** Attempt, directly or indirectly, to bribe or cause the inspector not to reject or condemn weighing or measuring devices that do not correctly weigh, measure or count; or not to issue stop-use, stop-removal, removal or stop-sale orders; or

**15.** Violate any provision of this chapter.

**B.** Unless otherwise provided herein, every person violating any of the provisions of this chapter shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Three Hundred Dollars ($300.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days. Each day such violation is committed or permitted to continue shall constitute a separate offense. The violation of each provision and each separate violation shall be deemed a separate offense.

### Section 133. Special inspection service.

The term "special inspection service" shall denote any inspection service made by request of the owner or operator that does not come under the supervision of the inspector performing his duties as outlined by this chapter. The owner or operator shall pay for such special inspection service a fee of Ten Dollars ($10.00) per hour, plus travel cost of Twenty Cents ($.20) per mile, or a fraction thereof, for each weighing device and measuring device.

*(Ord. No. 16784)*

### Section 134. Presumptive evidence.

For the purpose of this chapter, proof of the existence of a weighing or measuring device in or about any premises, building, enclosure, stand or vehicle in which or from which it is shown that buying or selling is commonly carried on, shall, in the absence of conclusive evidence to the contrary, be presumptive proof of the regular use of such weighing or measuring device for commercial purposes and of such use by the person in charge of such premises or vehicle.

### Section 135. Provisions cumulative.

The provisions of this chapter shall be cumulative and nonexclusive and shall not affect any other remedy available at law.

### Section 136. Applicability to Department of Health functions.

Nothing herein shall be construed to limit or otherwise alter the functions, duties and powers of the City-County Health Department relative to the administration and the regulation of health matters essential to the public health, welfare and safety. In all cases where the inspector determines that a commodity has been mislabeled hereunder, the inspector shall send a copy of his report to the Health Department as to health matters, and shall provide any other assistance that the Health Department may request regarding weights and measures.

### Section 137. Construction.

The operation and effect of any provision of this chapter conferring a general power shall not be impaired or qualified by the granting of a specific power or powers, and to that end each provision shall be construed liberally.

## Section 138. Cooperation in uniformity of regulations.

The inspector shall cooperate with any county, state, federal or other agency with similar statutory functions for the purpose of carrying out the provisions of this chapter and, to the extent that it is reasonably possible, to establish uniformity with federal, state or county enactments or regulations consistent with this chapter.

*(Ord. No. 13420)*

# TITLE 42 ZONING CODE*

**Chapter 1. Introductory Provisions**
**Chapter 5. Residential Districts**
**Chapter 10. Mixed-Use Districts**
**Chapter 15. Office, Commercial and Industrial Districts**
**Chapter 20. Overlay Districts**
**Chapter 25. Special Districts**
**Chapter 30. Legacy Districts**
**Chapter 35. Building Types and Use Categories**
**Chapter 40. Supplemental Use and Building Regulations**
**Chapter 45. Accessory Uses and Structures**
**Chapter 50. Temporary Uses**
**Chapter 55. Parking**
**Chapter 60. Signs**
**Chapter 65. Landscaping and Screening**
**Chapter 67. Outdoor Lighting**
**Chapter 70. Review and Approval Procedures**
**Chapter 75. Administration**
**Chapter 80. Nonconformities**
**Chapter 85. Violations, Penalties and Enforcement**
**Chapter 90. Measurements**
**Chapter 95. Definitions**

*__Editor's note—__Printed herein is the Zoning Code as amended and effective December 9, 2019. Further amendments to the Zoning Code are indicated by parenthetical history notes following amended provisions. Obvious misspellings and punctuation errors have been corrected without notation. For stylistic purposes, headings and catchlines have been made uniform and the same system of capitalization, citation to state statutes, and expression of numbers in text as appears in the Code of Ordinances has been used. Additions made for clarity are indicated by brackets.

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## CHAPTER 1. INTRODUCTORY PROVISIONS

Section 1.010. Title.
Section 1.020. Authority.
Section 1.030. Effective date.
Section 1.040. Applicability and jurisdiction.
Section 1.050. Purposes.
Section 1.060. Minimum requirements.
Section 1.070. Compliance required.
Section 1.080. Conflicting provisions.
Section 1.090. Rules of language and construction.
Section 1.100. Zoning map.
Section 1.110. Transitional provisions.
Section 1.120. Severability.

### Section 1.010. Title.

Title 42 Tulsa Revised Ordinances is known and may be cited as the "Tulsa Zoning Code." For convenience, it may be referred to as the "zoning code."

### Section 1.020. Authority.

This zoning code is adopted pursuant to the powers granted in the Tulsa City Charter (Article I, Section 3).

### Section 1.030. Effective date.

The provisions of this zoning code become effective on January 1, 2016, except as otherwise expressly stated.

### Section 1.040. Applicability and jurisdiction.

The provisions of this zoning code apply to all public and private use and development of properties within the corporate limits of the City of Tulsa, except as provided by state or federal law or as otherwise expressly stated in this zoning code.

### Section 1.050. Purposes.

This zoning code is adopted for the purposes of:

**A.** Protecting and promoting the public health, safety and general welfare; and

**B.** Implementing the policies and goals of the comprehensive plan and other relevant, officially adopted plans of the city.

### Section 1.060. Minimum requirements.

**A.** The provisions of this zoning code are the minimum requirements deemed necessary to carry out the zoning code's stated purposes.

**B.** In addition to the requirements of this zoning code, all uses, buildings and structures must comply with all other applicable ordinances, laws and regulations.

**C.** All references in the zoning code to other governmental regulations are for informational purposes only and do not constitute a complete list of such regulations. These references do not imply any responsibility for the city to enforce regulations imposed by other government authorities.

**Section 1.070. Compliance required.**

**A.** Land may not be used for any purpose other than one that is allowed by the provisions of this zoning code.

**B.** A building or structure may not be erected, located, moved, reconstructed, extended or structurally altered except as allowed by this zoning code.

**C.** Buildings, structures and land may be used and occupied only in compliance with the provisions of this zoning code.

**D.** All lots created or modified must comply with all applicable provisions of this zoning code.

**Section 1.080. Conflicting provisions.**

**A. Conflict with State or Federal Regulations.** If the provisions of this zoning code are inconsistent with state or federal law, the more restrictive provision governs, to the extent allowed by law. The more restrictive provision is the one that imposes more stringent controls.

**B. Conflict with other City regulations.** If the provisions of this zoning code are inconsistent with one another or if they conflict with provisions found in other adopted ordinances or regulations of the City, the more restrictive provision governs unless otherwise expressly stated. The more restrictive provision is the one that imposes more stringent controls.

**C. Conflict with private agreements and covenants.** This zoning code does not interfere with, abrogate or annul any easement, covenant, deed restriction or other agreement between private parties. If the provisions of this zoning code impose a greater restriction than imposed by an agreement or covenant among private parties, the provisions of this zoning code govern. The city is not responsible for monitoring or enforcing agreements or covenants among private parties.

**Section 1.090. Rules of language and construction.**

**A. Meanings and intent.** Words and terms expressly defined in this zoning code including those defined in Chapter 95 have the specific meanings assigned unless the context indicates another meaning. Words that are not expressly defined in this zoning code have the meaning given in the latest edition of Merriam-Webster's Unabridged Dictionary.

**B. Computation of time.**

**1.** References to "days" are to calendar days unless otherwise expressly stated. References to "business days" are references to regular city government working days, excluding Saturdays, Sundays and holidays observed by city government.

**2.** The time in which an act is to be completed is computed by excluding the first day and including the last day. If the last day is a Saturday, Sunday or holiday observed by city government, that day is excluded.

**3.** A day concludes at the close of business and any materials received after that time will be considered to have been received the following day.

**C. Tenses and usage.**

**1.** Words used in the singular include the plural. The reverse is also true.

**2.** Words used in the present tense include the future tense. The reverse is also true.

**3.** The words "must," "will," "shall" and "may not" are mandatory.

**4.** The word "may" is permissive, not mandatory or required.

**5.** When used with numbers, "up to x," "not more than x" and "a maximum of x" all include "x."

**6.** The word "person" includes a firm, association, organization, partnership, limited liability company, trust, or corporation, as well as an individual.

**7.** The words "used" and "occupied" include "intended, designed or arranged to be used or occupied."

**D. Conjunctions.** Unless the context otherwise expressly indicates, conjunctions have the following meanings:

**1.** "And" indicates that all connected items or provisions apply; and

**2.** "Or" indicates that the connected items or provisions may apply singularly or in combination.

**E. Headings and Illustrations.** Headings and illustrations are provided for convenience and reference only and do not define or limit the scope of any provision of this zoning code. In case of any difference of meaning or implication between the text of this zoning code and any heading, drawing, table, figure or illustration, the text governs.

**F. Versions and citations** All references in this zoning code to other city, state or federal regulations are to be construed as referring to the most up-to-date version and citation for those regulations, unless otherwise expressly indicated. When the referenced regulations have been repealed and not replaced by other regulations, zoning code requirements for compliance are no longer in effect.

**G. Lists and examples.** Unless otherwise expressly indicated, lists of items or examples that use "including," "such as," or similar terms are intended to provide examples only. They are not to be construed as exhaustive lists of all possibilities.

**H. Delegation of authority.** Whenever a provision appears requiring the head of a department or another officer or employee of the city to perform an act or duty, that provision will be construed as authorizing the department head or officer to delegate that responsibility to others over whom they have authority. Delegation of authority is not allowed when the provisions of this zoning code expressly prohibit such delegation.

**I. Public officials and agencies**

**1.** Unless otherwise expressly stated, all employees, public officials, bodies and agencies to which references are made are those of the City of Tulsa or individuals or agencies legally authorized to act on behalf of the City of Tulsa.

**2.** References in this zoning code to the "city" are references to the City of Tulsa.

**3.** References in this zoning code to the "city council" are references to the Tulsa City Council.

**4.** References in this zoning code to the "planning director" are references to the director of the Tulsa Planning Office.

**5.** References in this zoning code to the "planning commission" are references to the Tulsa Metropolitan Area Planning Commission.

**6.** References in this zoning code to the "board of adjustment" are references to the City of Tulsa Board of Adjustment.

**7.** References in this zoning code to the "preservation officer" are references to the City of Tulsa Preservation Commission.

**8.** References in this zoning code to the "preservation officer" are references to the planning director or the staff member to whom the planning director assigns responsibility for performing the preservation officer's duties under this zoning code.

**9.** References in this zoning code to the "development administrator" are references to the Director of the City of Tulsa Development Services Department. In the performance of his or her duties, the development administrator may consult with the land use administrator.

**10.** References in this zoning code to the "land use administrator" are references to the Director of the Tulsa Planning Office. In the performance of his or her duties, the land use administrator may consult with the development administrator.

*(Ord. No. 25055, §§ 1, 2, 5-24-2023)*

## Section 1.100. Zoning map.

**A. Establishment.** The location and boundaries of the zoning districts defined in this zoning code must be established by ordinance and shown on a geographic coverage layer that is maintained as part of a geographic information system (GIS) under the direction of the land use administrator. This "Zoning" geographic coverage layer constitutes Tulsa's official zoning map.

**B. Maintenance and updates.** The land use administrator is responsible for directing revisions to the official zoning map to reflect its amendment as soon as possible after the effective date of zoning map amendments (rezonings).

**C. District boundaries.** Zoning district boundary lines must be described by legal description or by a map that accompanies the ordinance establishing the district or amending the district boundaries. When a legal description is used, the zoning district boundary is deemed to extend to the centerline of abutting streets. When a map is used, district boundary lines must be established by dimensions, property lines, recorded lot lines, or the centerline of abutting streets, alleys, or railroad rights-of-way, as those features were of record at the time of adoption.

**D. Map interpretations.** Where any uncertainty exists about a zoning boundary that was established by legal description, the legal description accompanying the amending ordinance governs. In other cases, the land use administrator is authorized to make an interpretation in accordance with the procedures of Section 70.090. The following rules apply to all map interpretations:

**1.** A boundary shown on the zoning map as approximately following the shoreline or centerline of a river, stream, lake or other watercourse will be construed as following the actual shoreline or centerline of the watercourse. If, subsequent to the establishment of the boundary, the shoreline or centerline of the watercourse should move as a result of natural processes (flooding, erosion, sedimentation, etc.), the boundary will be construed as moving with the shoreline or centerline of the watercourse.

**2.** A boundary shown on the zoning map as approximately following a ridge line or topographic contour line will be construed as following the actual ridge line or contour line. If, subsequent to the establishment of the boundary, the ridge line or contour line should move as a result of natural processes (erosion, slippage, subsidence, etc.), the boundary will be construed as moving with the ridge line or contour line.

**3.** A boundary shown on the zoning map as approximately following lot lines or other lot boundaries will be construed as following such lot lines or lot boundaries.

**4.** A boundary shown on the zoning map as approximately following a street or railroad right-of-way line will be construed as following the centerline of the street or railroad right-of-way.

**5.** A boundary shown on the zoning map as approximately following the boundary of an adjacent municipality will be construed as following that boundary.

**6.** A boundary shown on the zoning map as approximately parallel to, or as an apparent extension of, a feature described above will be construed as being actually parallel to, or an extension of, the feature.

**E. Zoning of annexed land.** When land is annexed or otherwise brought into the zoning jurisdiction of the city, it may be classified in the AG district or assigned another zoning classification based on the comprehensive plan, existing land uses, any applicable annexation agreement and other relevant considerations.

## Section 1.110. Transitional provisions.

The provisions of this section address the transition to this zoning code from the zoning code in effect immediately preceding the effective date specified in Section 1.030:

**A. Applications, permits and approvals.**

**1.** Any building, development or structure for which a building permit was issued or a complete building permit application had been accepted for processing before the effective date specified in Section 1.030 may be completed in conformance with the issued building permit and other applicable permits and conditions, even if such building, development or structure does not comply with provisions of this zoning code. If the building, development or structure is not commenced and completed within the time allowed under the original building permit and any authorized permit extension, the building, development or structure may be constructed, completed and occupied only if it complies with the regulations of this zoning code.

**2.** Complete applications for PUDs, development plans, special exceptions, variances or other zoning-related approvals that are pending approval on the effective date specified in Section 1.030 must be reviewed wholly under the terms of the zoning code in effect immediately preceding the effective date specified in Section 1.030. Building permits for construction and development approved under such zoning approvals may be issued in accordance with Subsection 1.110A.3.

**3.** The development administrator is authorized to issue building permits for construction or development approved before the effective date specified in Section 1.030 and for developments pending approval under Subsection 1.110A.2., even if such building, development or structure does not fully comply with provisions of this zoning code. If building is not commenced and completed within the time

allowed under the building permit and any authorized permit extension, then the building, development or structure may be constructed, completed and occupied only if it complies with the regulations of this zoning code.

**4.** When a use classified as a special exception under this zoning code exists as an approved special exception or permitted use on the effective date specified in Section 1.030, that use will be considered a lawfully established special exception under this zoning code. When any amendment to this zoning code changes the classification of a permitted use to a special exception, any use lawfully established before such amendment will be considered a lawfully established special exception after the effective date of the amendment. A lawfully established existing use that is not allowed as a special exception or permitted use in the district in which the use is now located will be considered a nonconforming use and will be subject to all applicable regulations of Chapter 80.

## B. Zoning District Name Conversions.

**1. General.** The zoning district names in effect before the effective date specified in Section 1.030 are converted in this zoning code as follows:

**Table 1-1: Zoning District Name Conversions**

| Map Symbol | Previous Zoning District Name | Map Symbol | New Zoning District Name |
|---|---|---|---|
| **RESIDENTIAL** (See Chapter 5) | | | |
| RE | Residential Single-family Estate | RE | Residential Single-family Estate |
| RS-1 | Residential Single-Family Low Density | RS-1 | Residential Single-family 1 |
| RS-2 | Residential Single-Family Med. Density | RS-2 | Residential Single-family 2 |
| RS-3 | Residential Single Family High Density | RS-3 | Residential Single-family 3 |
| RS-4 | Residential Single Family Highest Density | RS-4 | Residential Single-family 4 |
| No existing equivalent | | RS-5 | Residential Single-family 5 |
| RD | Residential Duplex | RD | Residential Duplex |
| RT | Residential Townhouse | RT | Residential Townhouse |
| RM-0 | Residential Multi-family Lowest Density | RM-0 | Residential Multi-family 0 |
| RM-1 | Residential Multi-family Low Density | RM-1 | Residential Multi-family 1 |
| RM-2 | Residential Multi-family Medium Density | RM-2 | Residential Multi-family 2 |
| RM-3 | Residential Multi-family High Density | RM-3 | Residential Multi-family 3 |
| RMH | Residential Manufactured Home | RMH | Residential Manufactured Housing |
| **MIXED-USE DISTRICTS** (See Chapter 10) | | | |
| No existing equivalent | | MX1 | Neighborhood Mixed-use |
| No existing equivalent | | MX2 | Community Mixed-use |

| Map Symbol | Previous Zoning District Name | Map Symbol | New Zoning District Name |
|---|---|---|---|
| No existing equivalent | | MX3 | Regional Mixed-use |
| **OFFICE, COMMERCIAL AND INDUSTRIAL** (See Chapter 1) | | | |
| OL | Office Low Intensity | OL | Office-Low |
| OM | Office Medium Intensity | OM | Office-Medium |
| OMH | Office Medium-High Intensity | OMH | Office-Medium-High |
| OH | Office High Intensity | OH | Office-High |
| CS | Commercial Shopping | CS | Commercial Shopping |
| CG | Commercial General | CG | Commercial General |
| CH | Commercial High Intensity | CH | Commercial-High |
| CBD | Central Business | CBD | Central Business |
| IL | Industrial Light | IL | Industrial-Light |
| IM | Industrial Moderate | IM | Industrial-Moderate |
| IH | Industrial Heavy | IH | Industrial-Heavy |
| **SPECIAL DISTRICTS** (See Chapter 25) | | | |
| AG | Agriculture | AG | Agricultural |
| PK | Parking | PK | Parking |
| CO | Corridor | CO | Corridor |
| SR | Scientific Research | SR | Scientific Research |
| MX-I | Mixed-Use Institutional | IMX | Institutional Mixed-Use |
| No existing equivalent | | MPD | Master Planned Development |
| FBC | Form-Based Code (Title 42-B) | MPD-FBC1 | Master Planned Development-Form-Based Code |
| **OVERLAY DISTRICTS** (See Chapter 20) | | | |
| PUD | Planned Unit Development | PUD | Planned Unit Development "Legacy" (See Section 30.010) |
| HP | Historic Preservation | HP | Historic Preservation |
| No existing equivalent | | SA | Special Area |
| No existing equivalent | | PI | Parking Impact |

**2. Form-Based Code of Title 42-B.**

**a.** The form-based code district in effect before the effective date specified in Section 1.030 is hereby converted to the MPD-FBC district. The MPD-FBC district is governed by the regulations of the following chapters of Title 42-B Tulsa Revised Ordinances in effect immediately prior to the effective date referred to in Section 1.030, which are adopted to serve as the development standards for development within the MPD-FBC district:

(1) Chapter 3, Regulating Plans, section 301;

(2) Chapter 4, Building Form Standards;

(3) Chapter 5, Urban Space Standards;

(4) Chapter 6, Parking Standards; and

(5) Chapter 7, Definitions.

**b.** Properties zoned FBC immediately prior to the effective date specified in Section 1.030 are designated MPD-FBC-1. Chapter 3, Regulating Plans of Title 42-B, Section 302 serves as the development plan for MPD-FBC-1.

**c.** "Adult entertainment establishments," as referred to in Title 42-B means bars and other use types that cater exclusively or primarily to adults 21 years of age or older. References in Title 42-B to Section 705 of Title 42 mean Section 40.370 of this zoning code. References in Title 42-B to Section 1204.C of Title 42 mean Section 40.420 of this zoning code.

**d.** The provisions of Title 42-B in effect immediately prior to the effective date referred to in Section 1.030 must be maintained and be available for public review in the office of the land use administrator.

**C. Violations.** The adoption of this zoning code does not affect any pending or future prosecution of, or action to abate, violations of the previous zoning code that occurred before the effective date specified in Section 1.030.

### Section 1.120. Severability.

If any portion of this zoning code is held to be invalid or unconstitutional by a court of competent jurisdiction, that portion is to be deemed severed from the zoning code and in no way affects or diminishes the validity of the remainder of the zoning code.

# CHAPTER 5. RESIDENTIAL DISTRICTS

Section 5.010. Districts.
Section 5.020. Use regulations.
Section 5.030. Lot and building regulations.
Section 5.040. Other relevant regulations.

## Section 5.010. Districts.

**A. List.** The residential zoning districts are listed in Table 5-1. When this zoning code refers to "residential" zoning districts or "R" districts, it is referring to these districts.

**Table 5-1: Residential (R) Zoning Districts**

| Map Symbol | District Name | Relative Intensity Scale |
|---|---|---|
| RE | Residential Single-family Estate | Least intensive "R" district |
| RS-1 | Residential Single-family 1 | |
| RS-2 | Residential Single-family 2 | |
| RS-3 | Residential Single-family 3 | |
| RS-4 | Residential Single-family 4 | |
| RS-5 | Residential Single-family 5 | |
| RD | Residential Duplex | |
| RT | Residential Townhouse | |
| RM-0 | Residential Multi-family 0 | |
| RM-1 | Residential Multi-family 1 | |
| RM-2 | Residential Multi-family 2 | |
| RM-3 | Residential Multi-family 3 | Most intensive "R" district |
| RMH | Residential Manufactured Housing | RMH not included in relative intensity scale |

**B. Purposes.** Residential zoning districts are primarily intended to create, maintain and promote a variety of housing opportunities for individual households and to maintain and promote the desired physical character of existing and developing neighborhoods. While the districts primarily accommodate residential uses, some nonresidential uses are also allowed. The various R district are primarily differentiated on the basis of allowed building types, density and lot and building regulations.

## Section 5.020. Use regulations.

Principal uses are allowed in R districts in accordance with Table 5-2.

**A. Use Classification System.** Uses are listed in the first column of Table 5-2. This zoning code classifies uses into categories and subcategories, which are defined in Chapter 35. In some cases, specific use types are listed in addition to the use categories and subcategories. Building types are also defined in Chapter 35.

**B. Permitted uses.** Uses identified with a "P" are permitted as-of-right in the subject zoning district, subject to compliance with any supplemental regulations identified in the final column of Table 5-2 and with all other applicable regulations of this zoning code.

**C. Special exception uses.** Uses identified with an "S" may be allowed if reviewed and approved in accordance with the special exception procedures of Section 70.120. Special exception uses are subject to compliance with any supplemental regulations identified in the final column of Table 5-2 and with all other applicable regulations of this zoning code.

**D. Prohibited uses.** Uses identified with an "-" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in Subsection 35.020E.) to fall within any defined use category are also prohibited.

**E. Supplemental regulations.** The "supplemental regulations" column of Table 5-2 identifies additional regulations that apply to some uses. Unless otherwise expressly stated, compliance with these regulations is required regardless of whether the use is permitted as-of-right or requires special exception approval.

**F. Accessory uses.** Accessory uses, such as home occupations, are not regulated by Table 5-2. Customary accessory uses are allowed in conjunction with principal uses permitted by right or by special exception, subject to compliance with all applicable accessory use regulations of Chapter 45.

**Table 5-2: R District Use Regulations**

| USE CATEGORY | | RS- | | | | | | | RM- | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| Subcategory Specific use | RE | 1 | 2 | 3 | 4 | 5 | RD | RT | 0 | 1 | 2 | 3 | RMH | Supplemental Regulations |
| **RESIDENTIAL** | | | | | | | | | | | | | | |
| Household Living (if in allowed building type identified in Table 5-2.5) | | | | | | | | | | | | | | |
| Single household | P | P | P | P | P | P | P | P | P | P | P | P | P | |
| Two households on single lot | - | - | - | S | S | S | P | P | P | P | P | P | - | |
| Three or more households on single lot | - | - | - | - | - | S | S | P | P | P | P | P | - | |
| **Group Living** | | | | | | | | | | | | | | Section 40.160 |
| Assisted living facility | S | S | S | S | S | S | S | S | P | P | P | P | - | |
| Community group home | S | S | S | S | S | S | S | S | P | P | P | P | - | Section 40.100 |
| Convent/monastery/ novitiate | S | S | S | S | S | S | S | S | P | P | P | P | - | |
| Elderly/retirement center | - | - | - | - | - | - | - | - | P | P | P | P | - | |
| Fraternity/Sorority | - | - | - | - | - | - | - | - | P | P | P | P | - | |
| Homeless center | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.130 |
| Life care retirement center | S | S | S | S | S | S | S | - | P | P | P | P | - | |
| Re-entry facility | S | S | S | S | S | S | S | S | S | S | S | S | S | |
| Residential treatment center | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.130 |
| Rooming/boarding house | - | - | - | - | - | - | - | - | P | P | P | P | - | |
| Shelter, emergency and protective | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.130 |
| Transitional living center | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.130 |

| USE CATEGORY | | RS- | | | | | | | RM- | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| Subcategory<br>Specific use | RE | 1 | 2 | 3 | 4 | 5 | RD | RT | 0 | 1 | 2 | 3 | RMH | Supplemental Regulations |
| **PUBLIC, CIVIC AND INSTITUTIONAL** | | | | | | | | | | | | | | |
| Airport | S | S | S | S | S | S | S | S | S | S | S | S | S | |
| Cemetery | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.150 |
| College or University | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.070 |
| Day Care | | | | | | | | | | | | | | |
| Family child care home established on or before Nov. 15, 2023[2] | P | P | P | P | P | P | P | P | P | P | P | P | P | Section 40.120 |
| Family child care home established after Nov. 15, 2023 | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.120 |
| Child care center | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.120 |
| Detention and Correctional Facility | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.130 |
| Fraternal Organization | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.140 |
| Governmental Service or similar functions | S | S | S | S | S | S | S | S | S | S | S | S | S | |
| Hospital | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.070 |
| Library or Cultural Exhibit | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.200 |
| Natural Resource Preservation | P | P | P | P | P | P | P | P | P | P | P | P | P | |
| Parks and Recreation | S | S | S | S | S | S | S | S | S | S | S | S | S | |
| Postal Services | S | S | S | S | S | S | S | S | S | S | S | S | S | |
| Religious Assembly | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.320 |
| Safety Service | S | S | S | S | S | S | S | S | S | S | S | S | S | |
| School | | | | | | | | | | | | | | |
| Established on or before Jan. 1, 1998 | P | P | P | P | P | P | P | P | P | P | P | P | P | Section 40.350 |
| Others | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.350 |
| Utilities and Public Service Facility | | | | | | | | | | | | | | |
| Minor | P | P | P | P | P | P | P | P | P | P | P | P | P | |
| Major | S | S | S | S | S | S | S | S | S | S | S | S | S | |
| Wireless Communication Facility | | | | | | | | | | | | | | |
| Freestanding tower | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.420 |
| Building or tower-mounted antenna | P | P | P | P | P | P | P | P | P | P | P | P | P | Section 40.420 |
| **COMMERCIAL** | | | | | | | | | | | | | | |
| Broadcast or Recording Studio | - | - | - | - | - | - | - | - | - | S | S | S | - | |
| Farmers market | - | - | - | - | - | - | - | - | S | S | S | S | - | Section 40.430 |
| Financial Services (except as below) | - | - | - | - | - | - | - | - | - | S | S | S | - | |
| Personal credit establishment | - | - | - | - | - | - | - | - | - | - | - | - | - | |
| Funeral or Mortuary Service | - | - | - | - | - | - | - | - | - | S | S | S | - | Section 40.150 |
| Lodging | | | | | | | | | | | | | | |
| Bed & breakfast | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.060 |

| USE CATEGORY | | RS- | | | | | | | RM- | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| Subcategory Specific use | RE | 1 | 2 | 3 | 4 | 5 | RD | RT | 0 | 1 | 2 | 3 | RMH | Supplemental Regulations |
| Short-term rental | P | P | P | P | P | P | P | P | P | P | P | P | P | Section 40.375 |
| Marina | S | S | S | S | S | S | S | S | S | S | S | S | S | |
| Office | | | | | | | | | | | | | | Section 40.260 |
| Business or professional office | - | - | - | - | - | - | - | - | - | S | S | S | - | |
| Medical, dental or health practitioner office | - | - | - | - | - | - | - | - | - | S | S | S | - | |
| Self-service Storage Facility | - | - | - | - | - | - | - | - | - | S | S | S | - | Section 40.360 |
| Studio, Artist or Instructional Service | - | - | - | - | - | - | - | - | - | S | S | S | - | Section 40.380 |
| **AGRICULTURAL** | | | | | | | | | | | | | | |
| Animal Husbandry | | See Title 2, Ch. 2 of the Tulsa Revised Ordinances | | | | | | | | | | | | |
| Community Garden | P | P | P | P | P | P | P | P | P | P | P | P | P | Section 40.090 |
| Farm-, Market- or Community-supported [1] | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.090 |
| **OTHER** | | | | | | | | | | | | | | |
| Oil or Gas Well | S | S | S | S | S | S | S | S | S | S | S | S | S | Section 40.270 |

**Table 5-2 Notes.** The following notes refer to the bracketed numbers (e.g.,"[1]") in Table 5-2:

**[1]** A Farm-, Market- or Community-supported, may only be allowed in a residential district where the land area of a single parcel is greater than 2 acres.

**[2]** Only family child care homes that were operating as a principal-use family child care home under a valid license issued from the State of Oklahoma on or before November 15, 2023, and have been issued a certificate of occupancy for a family child care home by December 31, 2025, may be considered established for the purposes of this provision. Said license may be for a Family Child Care Home or Large Family Child Care Home as permitted by the State of Oklahoma, provided that the child care home has a licensed capacity of no greater than 12 children. At the time the license expires, is revoked by the State of Oklahoma, is transferred to another entity, or the child care home ceases operation for longer than 6 months, the property will lose its status as established and the family child care home will require a Special Exception.

**G. Residential Building Types.** Residential uses allowed in R districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. The following residential building types are allowed in R districts:

**Table 5-2.5: R District Building Type Regulations for Household Living**

| USE CATEGORY | | RS- | | | | | | | RM- | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| Subcategory Specific Uses Building Type | RE | 1 | 2 | 3 | 4 | 5 | RD | RT | 0 | 1 | 2 | 3 | RMH | Supplemental Regulations |
| **RESIDENTIAL** | | | | | | | | | | | | | | |
| Household Living | | | | | | | | | | | | | | |

| USE CATEGORY | | RS- | | | | | | | RM- | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| Subcategory<br>Specific Uses<br>Building Type | RE | 1 | 2 | 3 | 4 | 5 | RD | RT | 0 | 1 | 2 | 3 | RMH | Supplemental Regulations |
| Single household | | | | | | | | | | | | | | |
| Detached house | P | P | P | P | P | P | P | P | P | P | P | P | S | |
| Patio House | - | - | - | P | P | P | P | P | P | P | P | P | - | Section 40.290 |
| Townhouse | | | | | | | | | | | | | | |
| 2-unit townhouse | - | - | - | S | S | P | P | P | P | P | P | P | - | Section 40.390 |
| 3+-unit townhouse | - | - | - | - | - | - | - | P | P | P | P | P | - | Section 40.390 |
| Manufactured housing unit | S | S | S | S | S | S | S | S | S | S | S | S | P | Section 40.210 |
| Manufactured housing subdivision | - | - | - | - | - | - | - | - | - | - | - | - | P | Section 40.220 |
| Mobile home | - | - | - | - | - | - | - | - | - | - | - | - | P | Section 40.240 |
| Mixed-use building | - | - | - | - | - | - | - | - | - | S | S | S | - | |
| Vertical mixed-use building | - | - | - | - | - | - | - | - | - | S | S | S | - | |
| Two households on single lot | | | | | | | | | | | | | | |
| Duplex | - | - | - | S | S | S | P | P | P | P | P | P | - | |
| Mixed-use building | - | - | - | - | - | - | - | - | - | P | P | P | - | |
| Vertical mixed-use building | - | - | - | - | - | - | - | - | - | P | P | P | - | |
| Three or more households on single lot | | | | | | | | | | | | | | |
| Cottage house development | - | - | - | - | - | P | S | S | P | P | P | P | - | Section 40.110 |
| Multi-unit house | - | - | - | - | - | S | S | P | P | P | P | P | - | Section 40.250 |
| Apartment/condo | - | - | - | - | - | - | - | - | P | P | P | P | - | Section 40.030 |
| Mobile home park | - | - | - | - | - | - | - | - | - | - | - | - | P | Section 40.240 |
| Mixed-use building | - | - | - | - | - | - | - | - | - | P | P | P | - | |
| Vertical mixed-use building | - | - | - | - | - | - | - | - | - | P | P | P | - | |
| P= Permitted; S=Special Exception Approval Required; - = Prohibited | | | | | | | | | | | | | | |

*(Ord. No. 24328, § 1, 3-11-2020; Ord. No. 24725, § 1, 11-17-2021; Ord. No. 25055, § 3, 5-24-2023; Ord. No. 25192, § 1, 12-6-2023; Ord. No. 25429, §§ 1, 2, 10-30-2024; Ord. No. 25604, § 1, 6-18-2025)*

## Section 5.030. Lot and building regulations.

**A. Table of regulations.** The lot and building regulations of Table 5-3 apply to all principal uses and structures in R districts, except as otherwise expressly stated in this zoning code. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90. Regulations governing accessory uses and structures can be found in Chapter 45.

### Table 5-3: R District Lot and Building Regulations

| Regulations | RE | RS-1 | RS-2 | RS-3 | RS-4 | RS-5 | RD | RT | RM-0 | RM-1 | RM-2 | RM-3 | RMH |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| **Minimum Lot Area** (sq. ft.) | | | | | | | | | | | | | |
| Detached house | 22,500 | 13,500 | 9,000 | 6,900 | 5,500 | 3,300 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 |
| Patio house | - | - | - | 6,900 | 5,500 | 3,300 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | - |
| Townhouse | - | - | - | 4,500 | 4,500 | 2,200 | 2,750 | 1,600 | 1,600 | 1,600 | 1,600 | 1,600 | - |

| **Regulations** | **RE** | **RS-1** | **RS-2** | **RS-3** | **RS-4** | **RS-5** | **RD** | **RT** | **RM-0** | **RM-1** | **RM-2** | **RM-3** | **RMH** |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| Cottage house dev't | - | - | - | - | - | 10,000 | 10,000 | 10,000 | 10,000 | 10,000 | 10,000 | 10,000 | - |
| Duplex | - | - | - | 6,900 | 5,500 | 3,300 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | - |
| Multi-unit house | - | - | - | - | - | 3,300 | 6,900 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | - |
| Apartment/condo | - | - | - | - | - | - | - | - | 10,000 | 10,000 | 6,000 | 24,000 | - |
| Mobile home park | - | - | - | - | - | - | - | - | - | - | - | - | [1] |
| Other allowed buildings/uses | | | | | | | | | | | | | |
| Permitted by right | 22,500 | 13,500 | 9,000 | 6,900 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 |
| Special exceptions | 22,500 | 13,500 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 |
| **Min. Lot Area per Unit** (sq. ft.) | | | | | | | | | | | | | |
| Detached house | 22,500 | 13,500 | 9,000 | 6,900 | 5,500 | 3,300 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | - |
| Patio house | - | - | - | 6,900 | 5,500 | 3,300 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 | - |
| Townhouse | - | - | - | 4,500 | 4,500 | 2,200 | 2,750 | 1,600 | 1,600 | 1,600 | 1,600 | 1,600 | - |
| Cottage house dev't | - | - | - | - | - | 2,500 | 2,500 | 2,500 | 2,500 | 2,500 | 2,500 | 2,500 | - |
| Duplex | - | - | - | 3,450 | 2,750 | 1,650 | 2,750 | 2,750 | 2,750 | 2,750 | 2,750 | 2,750 | - |
| Multi-unit house | - | - | - | - | - | 1,100 | 1,800 | 1,800 | 1,800 | 1,375 | 1,100 | 900 | - |
| Apartment/condo | - | - | - | - | - | - | - | - | 2,900 | 1,750 | 1,100 | 400 | - |
| Other allowed buildings/uses | | | | | | | | | | | | | |
| Permitted by right | - | - | - | - | - | - | - | - | 5,500 | 5,500 | 5,500 | 5,500 | 5,500 |
| Special exceptions | 22,500 | 13,500 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 | 12,000 |
| **Minimum Lot Width** (ft.) | | | | | | | | | | | | | |
| Detached house | 150 | 100 | 75 | 60 | 50 | 30 | 50 | 50 | 50 | 50 | 50 | 50 | - |
| Patio house | - | - | - | 60 | 50 | 30 | 50 | 50 | 50 | 50 | 50 | 50 | - |
| Townhouse | - | - | - | 30 | 25 | 20 | 25 | 20 | 20 | 20 | 20 | 20 | - |
| Cottage house dev't | - | - | - | - | - | 75 | 75 | 75 | 75 | 75 | 75 | 75 | - |
| Duplex | - | - | - | 60 | 50 | 30 | 50 | 50 | 50 | 50 | 50 | 50 | - |
| Multi-unit house | - | - | - | - | - | 30 | 50 | 50 | 50 | 50 | 50 | 50 | - |
| Apartment/condo | - | - | - | - | - | - | - | - | 100 | 100 | 50 | 100 | - |
| Other allowed buildings/uses | | | | | | | | | | | | | |
| Permitted by right | 150 | 100 | 75 | 60 | 50 | 50 | 50 | 50 | 50 | 50 | 50 | 50 | 50 |
| Special exceptions | 150 | 100 | 100 | 100 | 100 | 100 | 100 | 100 | 100 | 100 | 100 | 100 | 100 |
| **Minimum Street Frontage** | | | | | | | | | | | | | |
| Residential bdgs./ uses [2] | 30 | 30 | 30 | 30 | 30 | 30 | 30 | 30 | 30 | 30 | 30 | 30 | 30 |
| **Min. Building Setbacks** (ft.) | | | | | | | | | | | | | |
| Street [3] | | | | | | | | | | | | | |
| Arterial or fwy service rd. | 35 | 35 | 35 | 35 | 35 | 35 | 35 | 35 | 10 | 10 | 10 | 10 | 35 |
| Other streets | 35 | 35 | 30 | 25 | 20 | 20 | 25 | 10 | 10 | 10 | 10 | 10 | 25 |
| Side (interior) [4] | 15 | 5 | 5 | 5 | 5 | 5 | 5 | 5[5] | 5[6] | 5[6] | 5[6] | 5[7] | 10 |
| Rear [4] | 25 | 25 | 25 | 20 | 20 | 20 | 20 | 20 | 20 | 20 | 10 | 20 | 15 |
| **Min. Open Sp./ Unit** (sq. ft.) | 12,000 | 7,000 | 5,000 | 4,000 [8] | 2,500 | 600 | 2,000 | 1,200 | 1,200 | 600 | 200 | - | 2,500 |

| Regulations | RE | RS-1 | RS-2 | RS-3 | RS-4 | RS-5 | RD | RT | RM-0 | RM-1 | RM-2 | RM-3 | RMH |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| **Max. Building Height** (feet) | 35 | 35 | 35 | 35 | 35 | 35 | 35 | 35 | 35 | 35 | 35 | - | 35 |

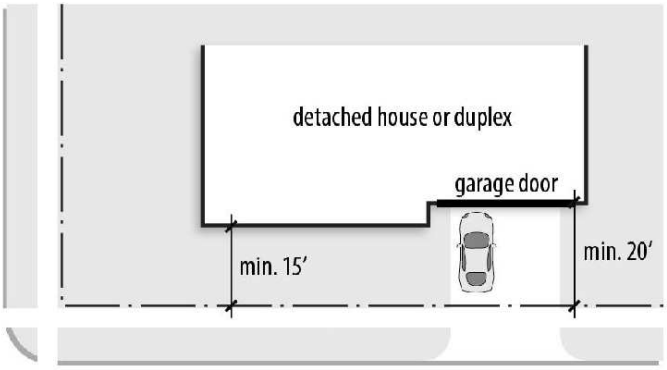
**B. Table notes.** The following notes refer to the bracketed numbers (e.g.," [1]") in Table 5-3:

**[1]** See Section 40.240 for detailed regulations governing mobile home parks.

**[2]** Minimum street frontage requirements apply to townhouse developments, not to individual townhouse units. Cottage house developments require minimum street frontage of 75 feet. Minimum street frontage requirements do not apply to nonresidential uses.

**[3]** For detached houses and duplexes on corner lots, the minimum side street setback along a non-arterial street may be reduced to 15 feet, provided that the minimum setback for street-facing garage doors is 20 feet or 20 feet from the back of the sidewalk, whichever is greater. The street setback specified in Table 5-3 applies along the other street.

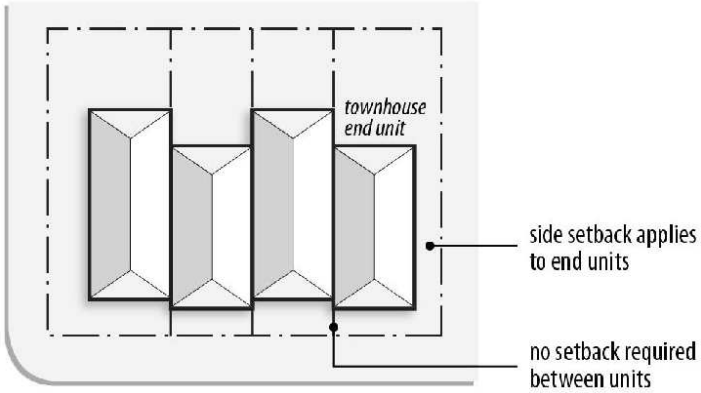
**Figure 5-1: Street Side Setback on Corner Lots**




**[4]** Non-residential uses requiring special exception approval in R zoning districts, excluding Day Cares, require minimum 25-foot building setback from R-zoned lots that are vacant or occupied by residential uses. Day Cares are not subject to the required 25-foot building setback.

**[5]** No side setback is required for interior units in townhouse developments. Side setback applies to end units (see Figure 5-2).

**Figure 5-2: Side Setbacks for Townhouses**




**[6]** Minimum interior side setback is 10 feet for apartment/condo and permitted nonresidential buildings.

**[7]** Minimum interior side setback is 25 feet for apartment/condo and permitted nonresidential buildings.

**[8]** Minimum required open space for duplex in RS-3 is 2,500 square feet per unit.

*(Ord. No. 24644, §§ 1, 2, 7-21-2021; Ord. No. 24825, § 1, 5-18-2022; Ord. No. 25092, § 1, 7-26-2023)*

## Section 5.040. Other relevant regulations.

Uses and structures in residential zoning districts may be subject to other regulations and standards, including the following:

**A. Nonconformities.** See Chapter 80.

**B. Accessory uses and structures.** See Chapter 45.

**C. Parking.** See Chapter 55.

**D. Signs.** See Chapter 60.

**E. Landscaping and screening.** See Chapter 65.

**F. Temporary uses.** See Chapter 50.

**G. Outdoor lighting.** See Chapter 67.

**H. Access across R-zoned property.** The use of RE-, RS-, RD- or RT-zoned land for access to any RM, O, C, or I zoning district, or the use of an RM district for access to any O, C, or I zoning district is prohibited unless permitted through an approved PUD or MPD.

## CHAPTER 10. MIXED-USE DISTRICTS

Section 10.010. General.
Section 10.020. Use regulations.
Section 10.030. Character designations.
Section 10.040. Height designations.
Section 10.050. Other relevant regulations.

### Section 10.010. General.

**A. List.** The mixed-use zoning districts are listed in Table 10-1. When this zoning code refers to "mixed-use" zoning districts or to "MX" districts it is referring to all MX districts. (Note: IMX district regulations are found in Section 25.060.)

**Table 10-1: Mixed-use (MX) Zoning Districts**

| Map Symbol | District Name | Relative Intensity Scale |
|---|---|---|
| **MX1** | Neighborhood Mixed-use | Least intensive MX district |
| **MX2** | Community Mixed-use | ↑ |
| **MX3** | Regional Mixed-use | Most intensive MX district |

**B. Purposes.**

1. **MX1, Neighborhood Mixed-use.** The MX1, Neighborhood Mixed-use district is intended to accommodate small-scale retail, service and dining uses that serve nearby residential neighborhoods. The district also allows a variety of residential uses and building types. MX1 zoning is generally intended for application in areas designated by the comprehensive plan as neighborhood centers, main streets and mixed-use corridors.
2. **MX2, Community Mixed-use.** The MX2, Community Mixed-use district is intended to accommodate retail, service, entertainment and employment uses that serve many surrounding neighborhoods. The district also allows a variety of residential uses and building types. MX2 zoning is generally intended for application in areas designated by the comprehensive plan as town centers, main streets and mixed-use corridors.
3. **MX3, Regional Mixed-use.** The MX3, Regional Mixed-use district is intended to accommodate large-scale employment, retail, civic and institutional and entertainment uses that draw visitors and workers from around the region. MX3 zoning is generally intended for application in areas designated by the comprehensive plan as regional centers.

**C. Use, Character and Height Designations.**

1. Each MX district consists of a use designation (MX1, MX2 or MX3), a character designation (-P, -U, -V or -F) and a height designation (-35, -45, -55, -65 or -unlimited). This "modular" approach allows the creation of finely-tuned, context-sensitive zoning districts.
2. MX districts and their respective use, character and height designations may be established or amended only through the zoning map amendment procedures of Section 70.030.

**3.** On the zoning map, all the components of the applicable mixed-use zoning district will be identified as a single map symbol. MX1-P-45, for example, is the map symbol denoting a neighborhood-oriented mixed-use district (MX1) that requires a very pedestrian-oriented (-P) building pattern (character) and that allows buildings up to forty-five (45) feet in height (-45).

## Section 10.020. Use regulations.

Principal uses are allowed in mixed-use districts in accordance with Table 10-2.

**A. Use classification system.** Uses are listed in the first column of Table 10-2. This zoning code classifies uses into categories and subcategories, which are defined in Chapter 35. In some cases, specific use types are listed in addition to the use categories and subcategories. Building types are also defined in Chapter 35.

**B. Permitted uses.** Uses identified with a "P" are permitted as-of-right in the subject zoning district, subject to compliance with any supplemental regulations identified in the final column of Table 10-2 and with all other applicable regulations of this zoning code.

**C. Special exception uses.** Uses identified with an "S" may be allowed if reviewed and approved in accordance with the special exception procedures of Section 70.120. Special exception uses are subject to compliance with any supplemental regulations identified in the final column of Table 10-2 and with all other applicable regulations of this zoning code.

**D. Prohibited uses.** Uses identified with an "-" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in Subsection 35.020E.) to fall within any defined use category are also prohibited.

**E. Supplemental regulations.** The "supplemental regulations" column of Table 10-2 identifies additional regulations that apply to some uses. Unless otherwise expressly stated, compliance with these regulations is required regardless of whether the use is permitted as-of-right or requires special exception approval.

**F. Accessory uses.** Accessory uses are not regulated by Table 10-2. Customary accessory uses are allowed in conjunction with principal uses permitted by right or by special exception, subject to compliance with all applicable accessory use regulations of Chapter 45.

### Table 10-2: MX District Use Regulations

| USE CATEGORY<br>Subcategory<br>Specific use | MX1 | MX2 | MX3 | Supplemental Regulations |
|---|---|---|---|---|
| **RESIDENTIAL** | | | | |
| Household Living (allowed building types regulated by character zone) | P | P | P | |
| Group Living | | | | Section 40.160 |
| Assisted living facility | P | P | P | |
| Community group home | P | P | P | Section 40.100 |
| Elderly/retirement center | P | P | P | |
| Life care retirement center | P | P | P | |
| Shelter, emergency and protective | S | S | S | Section 40.130 |

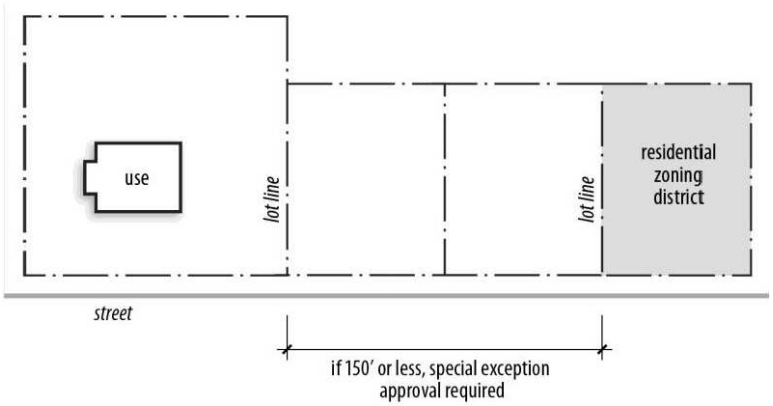
| USE CATEGORY<br>Subcategory<br>Specific use | MX1 | MX2 | MX3 | Supplemental Regulations |
|---|---|---|---|---|
| **PUBLIC, CIVIC AND INSTITUTIONAL** | | | | |
| College or University | S | S | P | Section 40.070 |
| Day Care | P | P | P | Section 40.120 |
| Family Child Care Home | P | P | P | Section 40.120 |
| Child Care Center | P | P | P | Section 40.120 |
| Fraternal Organization | S | P | P | |
| Governmental Service or similar functions | S | S | S | |
| Hospital | S | S | S | Section 40.070 |
| Library or Cultural Exhibit | P | P | P | |
| Natural Resource Preservation | P | P | P | |
| Parks and Recreation | P | P | P | |
| Postal Services | S | S | S | |
| Religious Assembly | P | P | P | |
| Safety Service | S | P | P | |
| School | - | - | P | Section 40.350 |
| Utilities and Public Service Facility | | | | |
| Minor | P | P | P | |
| Major | S | S | S | |
| Wireless Communication Facility | | | | Section 40.420 |
| Freestanding tower | S | S | S | |
| Building or tower-mounted antenna | P | P | P | |
| **COMMERCIAL** | | | | |
| Animal Service | | | | Section 40.020 |
| Boarding or shelter | - | - | S | |
| Grooming | P | P | P | |
| Veterinary | P | P | P | |
| Assembly and Entertainment | | | | Section 40.040 |
| Indoor | | | | |
| Small (up to 250 persons capacity) | S | P/S[1] | P/S[1] | |
| Large (>250 person capacity) | - | P/S[1] | P/S[1] | |
| Outdoor | - | S | S | |
| Broadcast or Recording Studio | S | P | P | |
| Commercial Service | | | | Section 40.080 |
| Building service | - | S | P | |
| Business support service | - | S | P | Section 40.300 |
| Consumer maintenance/repair service | P | P | P | |
| Personal improvement service | P | P | P | |
| Research service | - | P | P | Section 40.225 |
| Farmers market | P | P | P | Section 40.430 |
| Financial Services (except as below) | P | P | P | |
| Personal credit establishment | - | P | P | Section 40.300 |
| Funeral or Mortuary Service | - | P | P | |
| Lodging | | | | |
| Bed & breakfast | S | P | P | Section 40.060 |
| Short-term rental | P | P | P | Section 40.375 |
| Hotel/motel | - | P | P | Section 40.170 |

| USE CATEGORY<br>Subcategory<br>Specific use | MX1 | MX2 | MX3 | Supplemental Regulations |
|---|---|---|---|---|
| Marina | S | P | P | |
| Office | | | | Section 40.260 |
| Business or professional office | P | P | P | |
| Medical, dental or health practitioner office | P | P | P | |
| Plasma center | - | - | P | Section 40.300 |
| Parking, Non-accessory | - | S | S | Section 55.080-C3 |
| Restaurants and Bars | | | | |
| Restaurant | P | P | P | Section 40.330 |
| Bar | P/S[1] | P/S[1] | P/S[1] | Section 40.050 |
| Retail Sales | | | | Section 40.340 |
| Building supplies and equipment | - | S | P | |
| Consumer shopping goods | P | P | P | |
| Convenience goods | P | P | P | Section 40.300 |
| Grocery Store | P | P | P | |
| Small Box Discount Store | P[2] | P[2] | P[2] | |
| Medical Marijuana Dispensary | P | P | P | Section 40.225 |
| Self-service Storage Facility | - | - | S | Section 40.360 |
| Sexually Oriented Business Establishment | - | - | S | Section 40.370 |
| Studio, Artist or Instructional Service | P | P | P | |
| Trade School | - | S | S | |
| Vehicle Sales and Service | | | | Section 40.400 |
| Commercial vehicle repair/maintenance | - | S | S | |
| Commercial vehicle sales and rentals | - | S | S | |
| Fueling station | - | P | P | |
| Personal vehicle repair and maintenance | - | S | P | |
| Personal vehicle sales and rentals | - | S | S | |
| Vehicle part and supply sales | - | P | P | |
| Vehicle body and paint finishing shop | - | S | S | |
| **INDUSTRIAL** | | | | Section 40.180 |
| Low-impact Manufacturing & Industry | - | - | S | |
| **RECYCLING** | | | | Section 40.310 |
| Consumer Material Drop-off Station | - | S | P | |
| **AGRICULTURAL** | | | | Section 40.090 |
| Community Garden | P | P | P | |
| **OTHER** | | | | |
| Drive-in or Drive-through Facility (as a component of an allowed use) | - | S | S | Section 55.100 |
| Oil or Gas Well | S | S | S | Section 40.270 |

**G. Table notes.** The following notes refer to the bracketed numbers (e.g.," [1]") in Table 10-2:

**[1]** Proposed use requires special exception approval if selling or serving alcoholic beverages and located on a lot within 150 feet of any residential zoning district other than R-zoned street right-of-way (see Figure 10-1).

**Figure 10-1: Special Exception Requirement within 150 feet of R zoning**




**[2]** When located in the Healthy Neighborhoods Overlay (HNO) district the use is regulated as stated in Subsection 20.060D.

*(Ord. No. 24328, § 2, 3-11-2020; Ord. No. 24725, § 2, 11-17-2021; Ord. No. 25192, § 2, 12-6-2023; Ord. No. 25604, § 2, 6-18-2025)*

## Section 10.030. Character designations.

**A. List.** There are four (4) character designations established for the MX districts, as identified in Table 10-3. These designations govern allowed building types as well as required building and development patterns.

**Table 10-3: MX District Character Designations**

| Map Symbol | General Character |
|---|---|
| -P | Pedestrian |
| -U | Urban |
| -V | Variable |
| -F | Flexible |

**B. Pedestrian Character Designation.**

**1. Intent.** The -P, Pedestrian character designation is generally intended to be applied in locations where a high level of pedestrian orientation is present or desired, such as areas designated by the comprehensive plan as "main street" areas.

**2. Allowed Building Types.** The following building types are permitted in -P character zones (see building type definitions in Section 35.010):

**a.** Vertical mixed-use buildings.

**b.** Commercial buildings.

**c.** Civic/Institutional buildings.

**d.** Open space sites.

3. **Lot and Building Regulations.** The lot and building regulations of Table 10-4 apply to all new construction and building additions in -P character zones, except that civic/institutional buildings and open space sites are subject to -F character zone regulations (see Subsection 10.030D). General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Existing buildings are exempt from compliance with build-to-zone (BTZ), ground floor ceiling height and transparency regulations.

**Table 10-4: Lot and Building Regulations for -P Character Zones**

| | |
|---|---|
| Minimum Lot Area (sq. ft.) | 3,500 |
| Minimum Lot Width (feet) | 25 |
| Minimum Street Frontage (feet) | 20 |
| Minimum Open Space per Unit (sq. ft.) | 100 |
| Minimum Building Setbacks (feet) | |
| Street | 0 |
| Abutting R district | 10 |
| Abutting nonresidential district | 0 |
| Abutting alley | 5 |
| Build-to-Zone (BTZ) (minimum/maximum in feet) See Section 90.110 for BTZ measurement | 0/10 |

| | |
|---|---|
| Primary street BTZ (%) | 80 |
| Secondary street BTZ (%) | 30 |
| Min. Ground Floor Ceiling Height (feet) | 14 |
| Minimum Transparency (%) | |
| Ground floor | 50 |
| Upper floors | 20 |
| Min. Parking Setbacks (ft.) (see also Subsection 55-080C.)[1] | |
| Primary street | 30 |
| Secondary street or R zoning district | 10 |
| Nonresidential zoning district | 0 |
| Street-facing Entrance Required | Yes |

See Figure 10-3 for illustration of selected regulations.

**[1]** Parking spaces, not including drive aisles, are prohibited between building and street right-of-way (see Figure 10-2) Parking structures are subject to Section 40.280.

**Figure 10-2: Parking Prohibited between Building and Street Right-of-Way (-P Character Zones)**

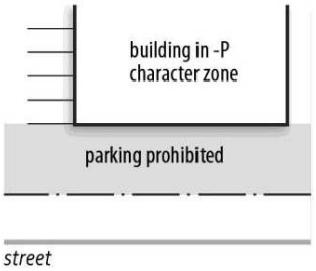
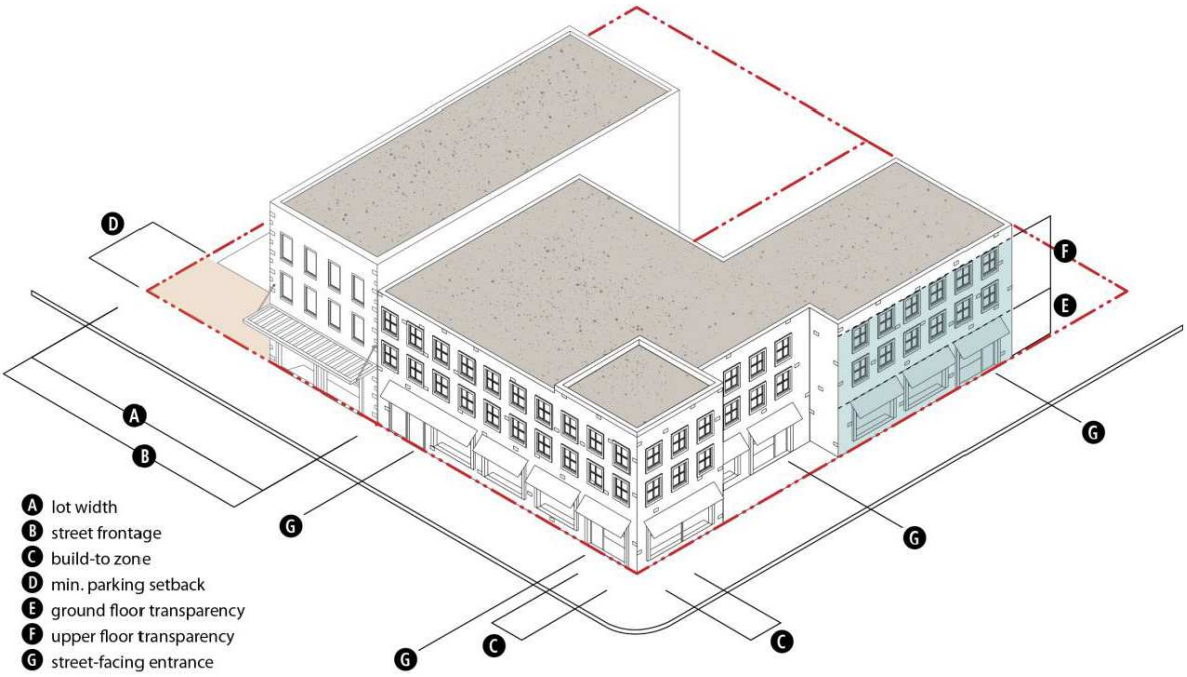


**Figure 10-3: MX District Lot and Building Regulations (-P Character Zone)**




## C. Urban Character Designation.

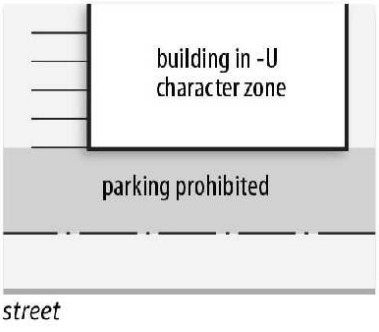
1. **Intent.** Like the -P character designation, the -U, Urban character designation is generally intended to be applied in areas with high levels of walkability, but where a greater variety of building types are present or desired, such as in areas designated by the comprehensive plan as neighborhood, town and regional centers and along some plan-designated mixed-use corridors.
2. **Allowed Building Types.** The following building types are permitted in -U character zones (see building type definitions in Section 35.010):
   - **a.** Vertical mixed-use and mixed-use buildings.
   - **b.** Commercial buildings.
   - **c.** Apartment/Condo.
   - **d.** Townhouses.
   - **e.** Civic/Institutional buildings.
   - **f.** Open space sites.
3. **Lot and building regulations.** The lot and building regulations of Table 10-5 apply to all new construction and building additions in -U character zones, except that civic/institutional buildings and open space sites are subject to -F character zone regulations (see Subsection 10.030D.). General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Existing buildings are exempt from compliance with build-to-zone (BTZ), ground floor ceiling height and transparency regulations.

## Table 10-5: Lot and Building Regulations for -U Character Zones

| | |
|---|---|
| Minimum Lot Area (sq. ft.) | |
| Townhouse | 1,600 |
| Apartment/condo | 7,500 |
| All other | 3,500 |
| Minimum Lot Width (feet) | |
| Townhouse | 20 |
| Apartment/condo | 50 |
| All other | 25 |
| Minimum Street Frontage (feet) | 20 |
| Minimum Open Space per Unit (sq. ft.) | |
| Townhouse | 200 |
| Apartment/condo/mixed-use | 100 |
| Minimum Building Setbacks (feet) | |
| Street | 0 |
| Abutting R district | 10 |
| Abutting nonresidential district | 0 |
| Abutting alley | 5 |
| Build-to-Zone (BTZ) (minimum/maximum in feet) See Section 90.110 for BTZ measurement | 0/20 |
| Primary street BTZ (%) | 60 |
| Secondary street BTZ (%) | 30 |
| Min. Parking Setbacks (feet) (see also Subsection 55.080C.)[1] | |
| Primary street | 30 |
| Secondary street or R zoning district | 10 |
| Nonresidential district | 0 |
| Min. Ground Floor Ceiling Height (feet) | |
| Mixed-use and commercial buildings | 14 |
| Other buildings | - |
| Minimum Transparency (%) | |
| Mixed-use buildings | |
| Ground floor | 40 |
| Upper floors | 20 |
| Commercial buildings | |
| Ground floor | 35 |
| Upper floors | 20 |
| Other buildings | 20 |
| Street-facing Entrance Required | Yes |

**[1]** Parking is prohibited between building and street right-of-way (see Figure 10-4). Parking structures are subject to Section 40.280.

**Figure 10-4: Parking Prohibited between Building and Street Right-of-Way (-U Character Zones)**




## D. Variable character designation.

1. **Intent.** The -V, Variable character designation is generally intended to be applied in auto-oriented areas where a transition to greater levels of walkability are underway or desired. The regulations allow greater flexibility in the siting of buildings and parking areas by, for example, allowing more generous maximum building setbacks, which can be used for landscape and streetscape elements or limited amounts of parking.

2. **Allowed building types.** The following building types are permitted in -V character zones (see building type definitions in Section 35.010):
   - **a.** Vertical mixed-use buildings and mixed-use buildings.
   - **b.** Commercial buildings.
   - **c.** Apartment/Condo.
   - **d.** Townhouses.
   - **e.** Civic/Institutional buildings.
   - **f.** Open space sites.
3. **Lot and building regulations.** The lot and building regulations of Table 10-6 apply to all new construction and building additions in -V character zones, except that civic/institutional buildings and open space sites are subject to -F character zone regulations (see Subsection 10.030D.). General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Existing buildings are exempt from compliance with build-to-zone (BTZ), ground floor ceiling height and transparency regulations.

**Table 10-6: Lot and Building Regulations for -V Character Zones**

| | |
|---|---|
| Minimum Lot Area (sq. ft.) | |
| Townhouse | 1,600 |
| Apartment/condo | 7,500 |
| All other | 3,500 |
| Minimum Lot Width (feet) | |
| Townhouse | 20 |
| Apartment/condo | 50 |
| All other | 25 |
| Minimum Street Frontage (feet) | 20 |
| Minimum Open Space per Unit (sq. ft.) | |
| Townhouse | 200 |
| Apartment/condo/mixed-use | 100 |
| Minimum Building Setbacks (feet) | |
| Street | 0 |
| Abutting R district | 10 |
| Abutting nonresidential district | 0 |
| Abutting alley | 5 |
| Build-to-Zone (BTZ) (minimum/maximum in feet) See Section 90.110 for BTZ measurement | 0/110 |
| Primary street BTZ (%) | 50 |
| Secondary street BTZ (%) | 25 |
| Min. Parking Setbacks (feet) (see also Subsection 55.080C.) [1] | |
| Street or R zoning district | 10 |
| Nonresidential zoning district | 0 |
| Min. Ground Floor Ceiling Height (feet) | |
| Mixed-use and commercial buildings | 14 |
| Other buildings | - |
| Minimum Transparency (%) | |
| Mixed-use buildings | |
| Ground floor | 40 |

| | |
|---|---|
| Upper floors | 20 |
| Commercial buildings | |
| Ground floor | 35 |
| Upper floors | 20 |
| Other buildings | 20 |
| Street-facing entrance required | Yes |

See Figure 10-6 for illustration of selected regulations.

**[1]** A maximum of one double-loaded parking aisle (two (2) parking bays) is permitted between the building and street right-of-way (see Figure 10-5 and Figure 10-6). Parking structures are subject to Section 40.280.

**Figure 10-5: Limited Parking between Building and Street Right-of-Way (-V Character Zones)**

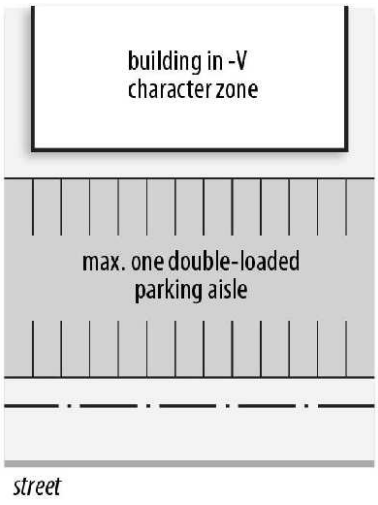
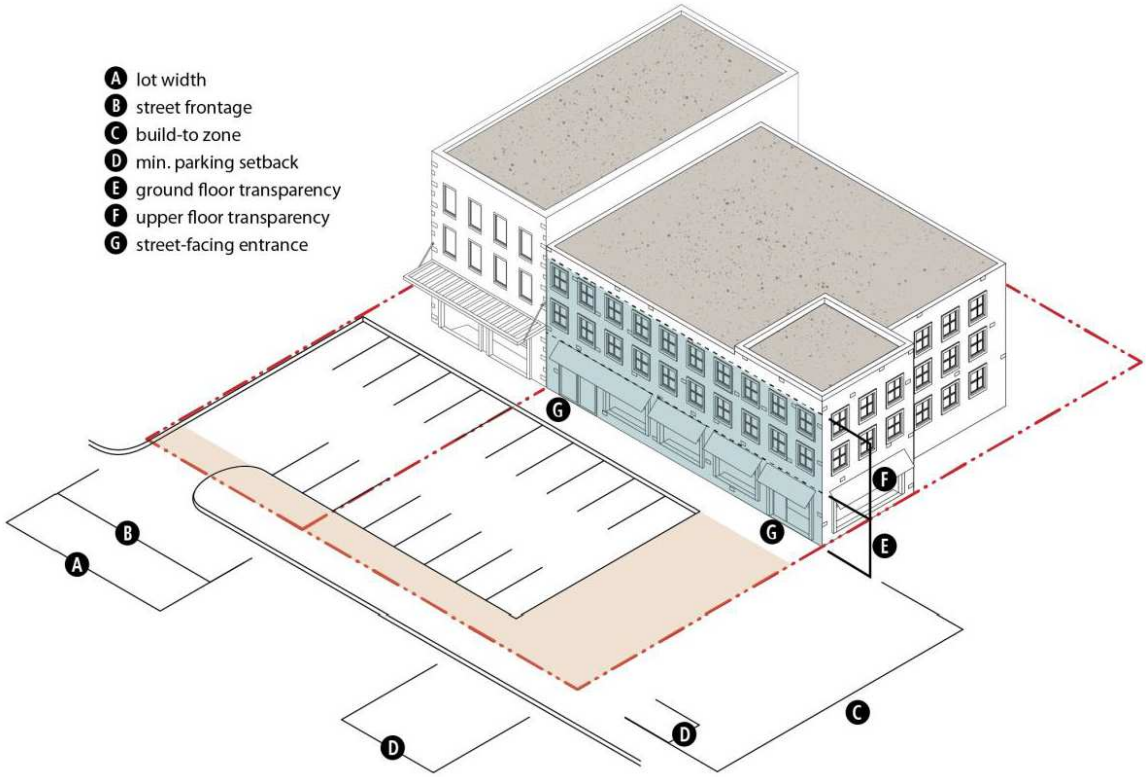


**Figure 10-6: MX District Lot and Building Regulations (-V Character Zone)**




## E. Flexible Character Designation.

1. **Intent.** The -F, Flexible character designation is generally intended to allow the highest levels of flexibility in terms of allowed building types and development patterns.
2. **Allowed Building Types.** The following building types are permitted in -F character zones (see building type definitions in Section 35.010):
   - **a.** Vertical mixed-use and mixed-use buildings.
   - **b.** Commercial buildings.
   - **c.** Apartment/Condo.
   - **d.** Townhouses.
   - **e.** Duplexes.
   - **f.** Detached houses.
   - **g.** Civic/Institutional buildings.
   - **h.** Open space sites.
3. **Lot and building regulations.** The lot and building regulations of Table 10-7 apply to all new construction and building additions in -F character zones. General

exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Existing buildings are exempt from ground floor ceiling height and transparency requirements.

**Table 10-7: Lot and Building Regulations for -F Character Zones**

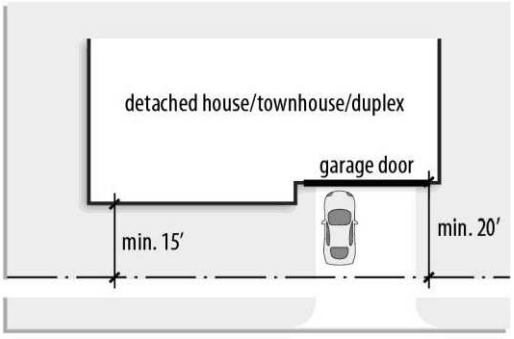
| | |
|---|---|
| Minimum Lot Area (sq. ft.) | |
| Townhouse | 1,600 |
| Duplex | 5,000 |
| Apartment/condo | 7,500 |
| Other buildings | 3,300 |
| Minimum Lot Width (feet) | |
| Townhouse | 20 |
| Duplex | 45 |
| Apartment/condo | 50 |
| Other buildings | 20 |
| Minimum Street Frontage (feet) | 20 |
| Minimum Open Space per Unit (sq. ft.) | |
| Detached house | 400 |
| Townhouse/Duplex | 200 |
| Apartment/condo/mixed-use | 100 |
| Minimum Building Setbacks (feet) | |
| Detached house/townhouse/duplex | |
| Street | 15[1] |
| Side | 3[2] |
| Rear | 20 |
| Other buildings | |
| Street | 5 |
| Abutting R district | 10 |
| Abutting alley | 5 |
| Abutting nonresidential district | 0 |
| Minimum Parking Setbacks (feet) (see also Subsection 55.080C.) | |
| Detached house/townhouse/duplex | - |
| Other buildings [3] | |
| Street | 10 |
| Abutting R district | 10 |
| Abutting nonresidential district | 0 |
| Abutting alley | 2 |
| Min. Ground Floor Ceiling Height (feet) | |
| Vertical mixed-use, mixed-use and commercial buildings | 14 |
| Other buildings | - |
| Minimum Transparency (%) | |
| Vertical mixed-use buildings | |
| Ground floor | 40 |
| Upper floors | 20 |
| Commercial buildings and mixed-use buildings | |
| Ground floor | 35 |
| Upper floors | 20 |
| Other buildings | 20 |
| Street-facing Entrance Required | Yes |

**[1]** Garage doors must be set back at least twenty (20) feet from back of sidewalk (see Figure 10-7).

**[2]** For townhouses, side setback applies only to exterior wall of end units.

**[3]** Parking structures are subject to Section 40.280.

**Figure 10-7: Garage Door Setback**




*(Ord. No. 24725, §§ 3—6, 11-17-2021; Ord. No. 25055, § 4, 5-24-2023)*

**Section 10.040. Height designations.**

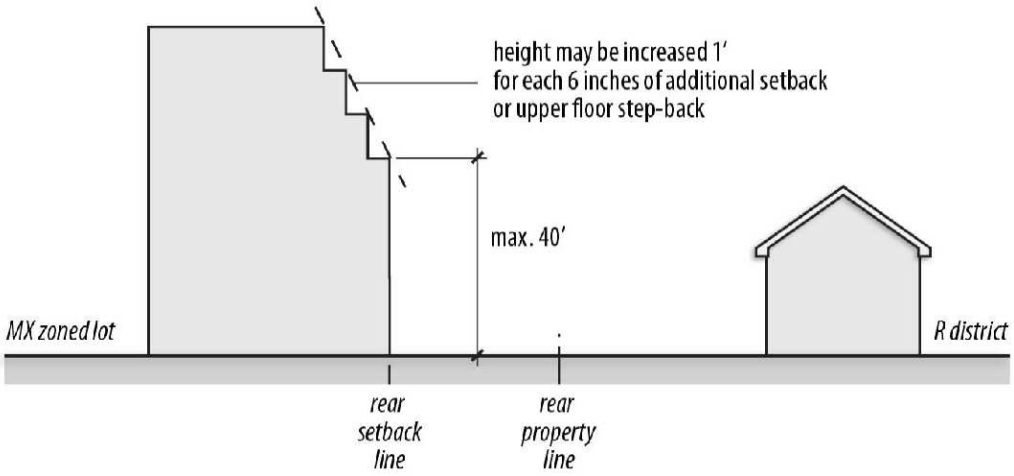
**A. Regulations.** MX district height designations are indicated by a dash and number suffix at the end of an MX district map symbol. Except as stated by the transition standards of Subsection 10.040B., building heights in MX districts may not exceed the limits established in Table 10-8.

**Table 10-8: MX District Height Designations**

| *Height Designation* | *Maximum Height (feet)* |
|---|---|
| -35 | 35 |
| -45 | 45 |
| -55 | 55 |
| -65 | 65 |
| -U | Unlimited (no maximum) |

**B. Height transition.** For MX-zoned lots that abut an R-zoned lot, the maximum building height limit at the point of the required minimum setback is forty (40) feet. Height may be increased above forty (40) feet by up to one foot (vertical) for each six (6) inches of additional building setback, up to the maximum height allowed in the district. The additional setback may be provided for the entire building or only the portion of the building above forty (40) feet in height (see Figure 10-8).

**Figure 10-8: Transitional Height Standards**




## Section 10.050. Other relevant regulations.

Uses and development in mixed-use zoning districts may be subject to other regulations and standards, including the following:

**A. Nonconformities.** See Chapter 80.

**B. Accessory uses and structures.** See Chapter 45.

**C. Parking.** See Chapter 55.

**D. Signs.** See Chapter 60.

**E. Landscaping and screening.** See Chapter 65.

**F. Temporary uses.** See Chapter 50.

**G. Outdoor lighting.** See Chapter 67.

# CHAPTER 15. OFFICE, COMMERCIAL AND INDUSTRIAL DISTRICTS

Section 15.010. Districts.
Section 15.020. Use regulations.
Section 15.030. Lot and building regulations.
Section 15.040. Other relevant regulations.

## Section 15.010. Districts.

**A. List.** The office, commercial and industrial zoning districts are listed in Table 15-1. When this zoning code refers to "office," "commercial" or "industrial" zoning districts or to "O," "C" or "I" districts, respectively, it is referring to these districts.

**Table 15-1: Office, Commercial and Industrial Zoning Districts**

| Map Symbol | District Name | Relative Intensity Scale |
|---|---|---|
| OL | Office-Low | Least intensive O, C or I district |
| OM | Office-Medium | |
| OMH | Office-Medium-High | |
| OH | Office-High | |
| CS | Commercial Shopping | |
| CG | Commercial General | |
| CH | Commercial-High | |
| CBD | Central Business | |
| IL | Industrial-Light | |
| IM | Industrial-Moderate | |
| IH | Industrial-Heavy | Most intensive O, C or I district |

**B. Purposes.**

1. **General.** Office, commercial and industrial zoning districts are intended to accommodate and promote neighborhood, community- and region-serving commercial uses, as well as industrial and employment uses.
2. **OL district.** The OL district is primarily intended to facilitate the development and preservation of low-intensity office development.
3. **OM district.** The OM district is primarily intended to accommodate medium-intensity office development, together with community facilities typically found in conjunction with offices.
4. **OMH district.** The OMH district is primarily intended to provide for multi-story office development.
5. **OH district.** The OH district is primarily intended to provide areas for high-intensity office use, together with community facilities, and commercial uses typically found in conjunction with high-intensity office uses.
6. **CS district.** The CS district is primarily intended to accommodate convenience, neighborhood, subcommunity, community, and regional shopping centers providing a range of retail and personal service uses.
7. **CG district.** The CG district is primarily intended to:
   - **a.** Accommodate established commercial uses, while providing protection to adjacent residential area; and

**b.** Accommodate the grouping of compatible commercial and light industrial uses.

**8. CH district.** The CH district is primarily intended to:

**a.** Accommodate high-intensity commercial and related uses primarily in the core area of the city; and

**b.** Encourage use of properties and existing buildings along older commercial corridors; and

**c.** Minimize encroachment and adverse land use impacts on stable residential neighborhoods.

**9. CBD district.** The CBD district is primarily intended to:

**a.** Accommodate and encourage the most desirable, most productive, most intense use of land, without regard to the regulation of building height, floor area, land coverage and parking requirements, within the central core area of the city.

**b.** Encourage a diversity of high-intensity uses that mutually benefit from close proximity to, and from the available services of, the high transportation carrying capacity afforded by locations within the boundaries of the Inner Dispersal Loop.

**c.** Preserve and promote the public and private investment of the existing central core area.

**10. IL district.** The IL district is primarily intended to provide areas suitable for manufacturing, wholesaling, warehousing, and other industrial activities that have few if any adverse land use or environmental impacts.

**11. IM district.** The IM district is primarily intended to group together a wide range of industrial uses that may produce some moderate adverse land use or environmental impacts in terms of their operation and appearance.

**12. IH district.** The IH district is primarily intended to provide areas for manufacturing and other industrial activities that may constitute substantial adverse land use or environmental impacts or hazards.

## Section 15.020. Use regulations.

Principal uses are allowed in office, commercial and industrial districts in accordance with Table 15-2.

**A. Use classification system.** Uses are listed in the first column of Table 15-2. This zoning code classifies uses into categories and subcategories, which are defined in Chapter 35. In some cases, specific use types are listed in addition to the use categories and subcategories. Building types are also defined in Chapter 35.

**B. Permitted uses.** Uses identified with a "P" are permitted as-of-right in the subject zoning district, subject to compliance with any supplemental regulations identified in the final column of Table 15-2 and with all other applicable regulations of this zoning code.

**C. Special exception uses.** Uses identified with an "S" may be allowed if reviewed and approved in accordance with the special exception procedures of Section 70.120.

Special exception uses are subject to compliance with any supplemental regulations identified in the final column of Table 15-2 and with all other applicable regulations of this zoning code.

**D. Prohibited uses.** Uses identified with an "-" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in Subsection 35.020E.) to fall within any defined use category are also prohibited.

**E. Supplemental regulations.** The "supplemental regulations" column of Table 15-2 identifies additional regulations that apply to some uses. Unless otherwise expressly stated, compliance with these regulations is required regardless of whether the use is permitted as-of-right or requires special exception approval.

**F. Accessory uses.** Accessory uses are not regulated by Table 15-2. Customary accessory uses are allowed in conjunction with principal uses permitted by right or by special exception, subject to compliance with all applicable accessory use regulations of Chapter 45.

**Table 15-2: O, C and I District Use Regulations**

| USE CATEGORY<br>Subcategory<br>Specific use | OL | OM | OMH | OH | CS | CG | CH | CBD | IL | IM | IH | Supplemental Regulations |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| **RESIDENTIAL** | | | | | | | | | | | | |
| Household Living (if in allowed building type identified in Table 15-2.5) | | | | | | | | | | | | |
| Single household | P | P | P | P | P | P | P | P | S | S | S | |
| Two households on single lot | P | P | P | P | P | P | P | P | S | - | - | |
| Three or more households on single lot | P | P | P | P | P | P | P | P | S | - | - | |
| Group Living | | | | | | | | | | | | Section 40.160 |
| Assisted living facility | S | P | P | P | P | P | P | P | - | - | - | |
| Community group home | S | P | P | P | P | P | P | P | - | - | - | Section 40.100 |
| Convent/monastery/ novitiate | S | P | P | P | P | P | P | P | - | - | - | |
| Elderly/retirement center | S | P | P | P | P | P | P | P | - | - | - | |
| Fraternity/Sorority | S | P | P | P | P | P | P | P | - | - | - | |
| Homeless center | S | S | S | S | S | S | S | S | S | S | S | Section 40.130 |
| Life care retirement center | S | P | P | P | P | P | P | P | - | - | - | |
| Re-entry facility | S | P | P | P | S | S | S | S | P | S | S | |
| Residential treatment center | S | P | P | P | S | S | S | S | P | S | S | Section 40.130 |
| Rooming/boarding house | S | P | P | P | P | P | P | P | - | - | - | |
| Shelter, emergency and protective | S | S | S | S | S | S | S | S | S | S | S | Section 40.130 |
| Transitional living center | S | P | P | P | S | S | S | S | P | S | S | Section 40.130 |
| **PUBLIC, CIVIC AND INSTITUTIONAL** | | | | | | | | | | | | |
| Airport | S | S | S | S | S | S | S | S | S | S | S | |
| Cemetery | S | S | S | S | S | S | S | S | S | S | S | Section 40.150 |
| College or University | S | P | P | P | P | P | P | P | S | S | S | Section 40.070 |
| Day Care | P | P | P | P | P | P | P | P | S | S | S | Section 40.120 |
| Family Child Care Home | P | P | P | P | P | P | P | P | S | S | S | Section 40.120 |
| Child Care Center | P | P | P | P | P | P | P | P | S | S | S | Section 40.120 |
| Detention and Correctional Facility | S | S | S | S | S | S | S | S | S | S | S | Section 40.130 |

| USE CATEGORY<br>Subcategory<br>Specific use | OL | OM | OMH | OH | CS | CG | CH | CBD | IL | IM | IH | Supplemental Regulations |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| Fraternal Organization | S | S | S | S | S | S | S | S | S | S | S | |
| Governmental Service or Similar Functions | S | S | S | S | S | S | S | S | S | S | S | |
| Hospital | S | P | P | P | P | P | P | P | S | S | S | Section 40.070 |
| Library or Cultural Exhibit | S | P | P | P | P | P | P | P | S | S | S | |
| Natural Resource Preservation | P | P | P | P | P | P | P | P | P | P | P | |
| Parks and Recreation | S | P | P | P | P | P | P | P | S | S | S | |
| Postal Services | S | S | S | S | S | S | S | S | S | S | S | |
| Religious Assembly | S | P | P | P | P | P | P | P | S | S | S | Section 40.320 |
| Safety Service | S | S | S | S | P | P | P | P | P | P | P | |
| School | | | | | | | | | | | | Section 40.350 |
| Established on or before Jan. 1, 1998 | P | P | P | P | P | P | P | P | P | P | P | |
| Others | S | P | P | P | P | P | P | P | S | S | S | |
| Utilities and Public Service Facility | | | | | | | | | | | | |
| Minor | P | P | P | P | P | P | P | P | P | P | P | |
| Major | S | S | S | S | S | S | S | S | S | S | S | |
| Wireless Communication Facility | | | | | | | | | | | | |
| Freestanding tower | S | S | S | S | P | P | P | P | P | P | P | Section 40.420 |
| Building or tower-mounted antenna | P | P | P | P | P | P | P | P | P | P | P | Section 40.420 |
| **COMMERCIAL** | | | | | | | | | | | | |
| Animal service | | | | | | | | | | | | Section 40.020 |
| Boarding or shelter | - | - | - | - | S | P | P | P | P | P | P | |
| Grooming | - | - | - | - | P | P | P | P | P | P | P | |
| Veterinary | - | - | - | - | P | P | P | P | P | P | P | |
| Assembly and Entertainment | | | | | | | | | | | | Section 40.040 |
| Indoor gun club | - | - | - | - | S | S | S | S | S | S | S | Section 40.040 |
| Other indoor | | | | | | | | | | | | |
| Small (up to 250-person capacity) | - | - | - | - | P[2] | P[2] | P[2] | P[2] | S | S | S | Section 40.040 |
| Large (>250-person capacity) | - | - | - | - | S | S | S | S | S | S | S | Section 40.040 |
| Outdoor gun club | - | - | - | - | S | S | S | - | S | S | S | Section 40.040 |
| Other outdoor | - | - | - | - | S | S | S | S | S | S | S | Section 40.040 |
| Broadcast or Recording Studio | P | P | P | P | P | P | P | P | P | P | P | |
| Commercial Service | | | | | | | | | | | | Section 40.080 |
| Building service | - | - | - | - | S | P | P | P | P | P | P | |
| Business support service | - | - | - | - | P | P | P | P | P | P | P | Section 40.300 |
| Consumer maintenance/ repair service | - | - | - | - | P | P | P | P | P | P | P | |
| Personal improvement service | S | S | S | S | P | P | P | P | P | P | P | |
| Research service | - | - | - | - | - | S | P | P | P | P | P | Section 40.225 |
| Farmers market | P | P | P | P | P | P | P | P | P | P | P | Section 40.430 |
| Financial Services (except as below) | P | P | P | P | P | P | P | P | P | P | P | |

| USE CATEGORY<br>Subcategory<br>Specific use | OL | OM | OMH | OH | CS | CG | CH | CBD | IL | IM | IH | Supplemental Regulations |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| Personal credit establishment | - | - | - | - | P | P | P | P | P | P | P | Section 40.300 |
| Funeral or Mortuary Service | P | P | P | P | P | P | P | P | P | P | P | |
| Lodging | | | | | | | | | | | | |
| Bed & breakfast | S | S | S | S | P | P | P | P | S | S | S | Section 40.060 |
| Short-term rental | P | P | P | P | P | P | P | P | P | P | P | Section 40.375 |
| Campgrounds and RV parks | - | - | - | - | S | P | P | P | P | P | P | |
| Hotel/motel | - | - | S | S | P | P | P | P | S | S | S | Section 40.170 |
| Marina | S | S | S | S | S | S | S | S | S | S | S | |
| Office | | | | | | | | | | | | Section 40.260 |
| Business or professional office | P | P | P | P | P | P | P | P | P | P | P | |
| Medical, dental or health practitioner office | P | P | P | P | P | P | P | P | P | P | P | |
| Plasma center | - | - | - | - | P | P | P | P | P | P | P | Section 40.300 |
| Parking, Non-accessory | P | P | P | P | P | P | P | P | P | P | P | |
| Restaurants and Bars | | | | | | | | | | | | |
| Restaurant | P[1] | P[1] | P[1] | P | P | P | P | P | P | P | P | Section 40.330 |
| Bar (except as below) | - | - | - | - | P[2] | P[2] | P[2] | P[2] | S | S | S | Section 40.050 |
| Brewpub | - | - | - | - | S | S | S | P[2] | S | S | S | Section 40.050 |
| Retail Sales | | | | | | | | | | | | Section 40.340 |
| Building supplies and equipment | - | - | - | - | P | P | P | P | P | P | P | |
| Consumer shopping goods | - | S[3] | S[3] | P[3] | P | P | P | P | P | P | P | |
| Convenience goods | - | S[3] | S[3] | P[3] | P | P | P | P | P | P | P | Section 40.300 |
| Grocery Store | _ | S[3,6] | S[3,6] | S[3,6] | P | P | P | P | P | P | P | |
| Small Box Discount Store | - | S[3,6] | S[3,6] | S[3,6] | P[6] | P[6] | P[6] | P[6] | P[6] | P[6] | P[6] | |
| Medical Marijuana Dispensary | - | - | - | - | P | P | P | P | P | P | P | Section 40.225 |
| Self-service Storage Facility | S | S | S | S | S | P | P | P | P | P | P | Section 40.360 |
| Sexually Oriented Business Establishment | - | - | - | - | P | P | P | P | S | S | S | Section 40.370 |
| Studio, Artist or Instructional Service | P | P | P | P | P | P | P | P | P | P | P | Section 40.380 |
| Trade School | - | S | S | S | S | P | P | P | P | P | P | |
| Vehicle Sales and Service | | | | | | | | | | | | Section 40.400 |
| Commercial vehicle repair/ maintenance | - | - | - | - | S | P | P | P | P | P | P | |
| Truck stop | - | - | - | - | - | S | S | - | P | P | P | |
| Commercial vehicle sales and rentals | - | - | - | - | S | P | P | P | P | P | P | |
| Fueling station | - | - | - | - | P | P | P | P | P | P | P | |
| Personal vehicle repair and maintenance | - | - | - | - | P | P | P | P | P | P | P | |
| Personal vehicle sales and rentals | - | - | - | - | S | P | P | P | P | P | P | |
| Vehicle part and supply sales | - | - | - | - | P | P | P | P | P | P | P | |
| Vehicle body and paint finishing shop | - | - | - | - | S | P | P | P | P | P | P | |
| **WHOLESALE, DISTRIB. & STORAGE** | | | | | | | | | | | | Section 40.410 |

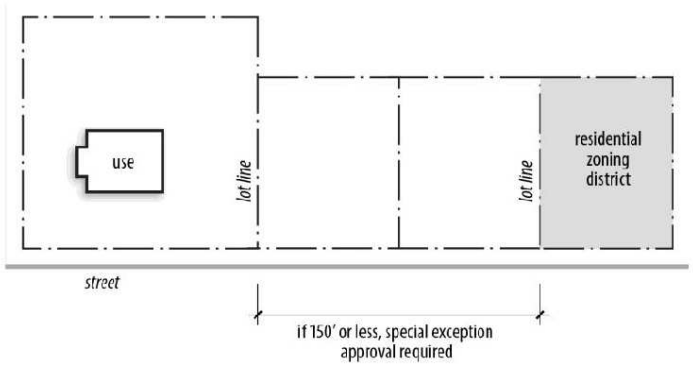
| USE CATEGORY<br>Subcategory<br>Specific use | OL | OM | OMH | OH | CS | CG | CH | CBD | IL | IM | IH | Supplemental Regulations |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| Equip. & Materials Storage, Outdoor | - | - | - | - | S | P | P | P | P | P | P | |
| Trucking and Transportation Terminal | - | - | - | - | S | P | P | P | P | P | P | |
| Warehouse | - | - | - | - | S | P | P | P | P | P | P | |
| Wholesale Sales and Distribution | - | - | - | - | S | P | P | P | P | P | P | |
| **INDUSTRIAL** | | | | | | | | | | | | Section 40.180 |
| Low-impact Manufacturing & Industry | - | - | - | - | - | S | S | S | P | P | P | |
| Moderate-impact Manufacturing & Industry | - | - | - | - | - | - | - | - | S | P | P | Section 40.225 |
| High-impact Manufacturing & Industry | - | - | - | - | - | - | - | - | - | S | P | |
| Mining or Mineral Processing | - | - | - | - | - | - | - | - | - | S | S | Section 40.230 |
| Junk or Salvage Yard | - | - | - | - | - | - | - | - | - | S | P | Section 40.190 |
| **RECYCLING** | | | | | | | | | | | | Section 40.310 |
| Construction or Demolition Debris | - | - | - | - | - | - | - | - | S | S | P | |
| Consumer Material Drop-off Station | - | - | - | - | P/S[5] | P | P | P | P | P | P | |
| Consumer Material Processing | - | - | - | - | - | - | - | - | P | P | P | |
| **AGRICULTURAL** | | | | | | | | | | | | |
| Animal Husbandry | - | - | - | - | - | - | - | - | - | P | P | |
| Community Garden | P | P | P | P | P | P | P | P | P | P | P | Section 40.090 |
| Farm-, Market- or Community-supported | P | P | P | P | P | P | P | P | P | P | P | |
| Horticulture Nursery | - | - | - | - | - | S | S | - | P | P | P | Section 40.225 |
| **OTHER** | | | | | | | | | | | | |
| Drive-in or Drive-through Facility (as a component of an allowed principal use) | S | S | P | P | P | P | P | S | P | P | P | Section 55.100 |
| Off-Premise Outdoor Advertising Sign [4] | - | - | - | - | P | P | P | P | P | P | P | Chapter 60 |
| Oil or Gas Well | S | S | S | S | S | S | S | S | S | S | S | Section 40.270 |

**G. Table notes.** The following notes refer to the bracketed numbers (e.g.," [1]") in Table 15-2:

**[1]** Restaurant is permitted as accessory use in OL, OM, and OMH districts. Use must be located entirely within the principal office building and may not occupy more than 5% of the building's floor area.

**[2]** Use requires special exception approval if alcoholic beverages are sold or served, and the subject lot is located within one hundred fifty (150) feet of any residential zoning district other than R-zoned street right-of-way (see Figure 15-1).

**Figure 15-1: Special Exception Requirement within 150 Feet of R zoning**




**[3]** Retail sales uses that are allowed in O districts must be located entirely within the principal building and may not occupy more than 15% of the floor area of the building in which such uses are located.

**[4]** Allowed in specified zoning district only when location within freeway sign corridors. See Chapter 60 for other supplemental regulations that apply to off-premise outdoor advertising signs.

**[5]** Use permitted as of right only if there is no outdoor storage and gross floor does not exceed 5,000 square feet. Otherwise, special exception approval is required.

**[6]** When located in the Healthy Neighborhoods Overlay (HNO) district the use is regulated as stated in Section 20.060D.

**H. Residential building types.** Residential uses allowed in O, C, and I districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. The following residential building types are allowed in O, C, and I districts.

**Table 15-2.5: O, C and I District Building Type Regulations for Household Living**

| USE CATEGORY<br>Subcategory<br>Specific Use<br>Building Types | OL | OM | OMH | OH | CS | CG | CH | CBD | IL | IM | IH | Supplemental Regulations |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| **RESIDENTIAL** | | | | | | | | | | | | |
| Household Living | | | | | | | | | | | | |
| Single household | | | | | | | | | | | | |
| Detached house | P | S | S | S | S | S | S | S | - | - | - | |
| Townhouse | P | P | P | P | P | P | P | P | - | - | - | |
| Patio House | P | S | S | S | S | S | S | S | - | - | - | Section 40.290 |
| Manufactured housing unit | - | - | - | - | - | S | S | - | S | S | S | |
| Mixed-Use building | P | P | P | P | P | P | P | P | S | - | - | |
| Vertical mixed-use building | P | P | P | P | P | P | P | P | S | - | - | |
| Two households on single lot | | | | | | | | | | | | |
| Duplex | P | P | P | P | P | P | P | S | - | - | - | |

| USE CATEGORY<br>Subcategory<br>Specific Use<br>Building Types | OL | OM | OMH | OH | CS | CG | CH | CBD | IL | IM | IH | Supplemental Regulations |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| Mixed-Use building | P | P | P | P | P | P | P | P | S | - | - | |
| Vertical mixed-use building | P | P | P | P | P | P | P | P | S | - | - | |
| Three or more households on single lot | | | | | | | | | | | | |
| Multi-unit House | P | P | P | P | P | P | P | P | - | - | - | Section 40.250 |
| Apartment/condo | S | P | P | P | P | P | P | P | - | - | - | Section 40.030 |
| Mixed-Use building | P | P | P | P | P | P | P | P | S | - | - | |
| Vertical mixed-use building | P | P | P | P | P | P | P | P | S | - | - | |
| Cottage house development | P | P | P | P | P | P | P | P | - | - | - | Secton 40.110 |
| P= Permitted; S=Special Exception Approval Required; - = Prohibited | | | | | | | | | | | | |

*(Ord. No. 24328, § 3, 3-11-2020; Ord. No. 24382, §§ 1, 2, 6-10-2020; Ord. No. 24725, § 7, 11-17-2021; Ord. No. 25092, § 2, 7-26-2023; Ord. No. 25192, § 3, 12-6-2023; Ord. No. 25429, § 3, 10-30-2024; Ord. No. 25604, § 3, 6-18-2025)*

## Section 15.030. Lot and building regulations.

**A. Table of regulations.** The lot and building regulations of Table 15-3 apply to all principal uses and structures in office, commercial and industrial districts, except as otherwise expressly stated in this zoning code. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Additional regulations governing accessory uses and structures can be found in Chapter 45.

### Table 15-3: O, C and I District Lot and Building Regulations

| Regulations | OL | OM | OMH | OH | CS | CG | CH | CBD | IL | IM | IH |
|---|---|---|---|---|---|---|---|---|---|---|---|
| Minimum Lot Area (sq. ft.) | - | - | - | 10,000 | - | - | - | - | - | - | - |
| Minimum Street Frontage (feet) | 50 | 50 | 50 | - | 50 | 50 | - | - | 50 | 50 | 50 |
| Maximum Floor Area Ratio (FAR) | 0.40 | 0.50 | 2.00 | 8.00 | 0.50 | 0.75 | - | - | - | - | - |
| Minimum Lot Area per Unit (sq. ft.) | - | - | - | - | - | - | - | - | - | - | - |
| Min. Open Space per Unit (sq. ft.) | - | - | - | - | - | - | - | - | - | - | - |
| Building Setbacks (feet) | | | | | | | | | | | |
| Street [1] | 10 | 10 | 10 | 10 | 10 | 10 | - | - | 10 | 10 | 10 |
| From AG, AG-R, or R district | 10 | 10[2] | 10[2] | 10 | 10[2] | 10[2] | - | - | 75[3] | 75[3] | 75[3] |
| From O district | - | - | - | - | - | - | - | - | 75[3] | 75[3] | 75[3] |
| Max. Building Coverage (% of lot) | - | - | - | - | - | - | - | - | - | - | - |
| Maximum Building Height (feet) | 35 | - | - | - | - | - | - | - | - | - | - |

**B. Table Notes.** The following notes refer to the bracketed numbers (e.g.," [1]") in Table 15-3:

**[1]** Garage doors must be set back at least 20 feet or 20 feet from the back of the sidewalk, whichever is greater.

**[2]** When abutting RE-, RS- or RD-zoned lot, 2 feet of additional building setback required for each foot of building height above 15 feet.

**[3]** Minimum building setback abutting freeway right-of-way or railroad right-of-way that is zoned AG, AG-R, R, or O is 10 feet.

*(Ord. No. 25055, § 5, 5-24-2023; Ord. No. 25429, §§ 4, 5, 10-30-2024)*

## Section 15.040. Other relevant regulations.

Uses and development in office, commercial and industrial zoning districts may be subject to other regulations and standards, including the following:

**A. Outdoor storage and display.** In the CS district, outdoor storage, including storage of recyclable materials, and outdoor merchandise display is prohibited within three hundred (300) feet of an abutting R or AG-R district.

**B. Nonconformities.** See Chapter 80.

**C. Accessory uses and structures.** See Chapter 45.

**D. Parking.** See Chapter 55.

**E. Signs.** See Chapter 60.

**F. Landscaping and screening.** See Chapter 65.

**G. Temporary uses.** See Chapter 50.

**H. Outdoor lighting.** See Chapter 67.

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## CHAPTER 20. OVERLAY DISTRICTS

Section 20.010. General.
Section 20.020. HP, Historic Preservation overlays.
Section 20.030. SA, Special Area overlays.
Section 20.040. PI, Parking Impact overlay.
Section 20.050. RDO, River Design overlays.
Section 20.060. HNO, Healthy Neighborhoods overlay.
Section 20.070. RT66, Route 66 Overlay.
Section 20.080 NIO, Neighborhood Infill Overlay.
Section 20.090. NCO, Neighborhood Character Overlay.
Section 20.100. NIO-2, Neighborhood Infill Overlay-2.

### Section 20.010. General.

**A. Purpose and intent.** As the name implies, overlay districts "over-lay" applicable base zoning district classifications to alter some or all of the base zoning district regulations that apply to particular sites. Overlay zoning districts work to modify or supplement the regulations imposed by base zoning district when necessary to address special situations or accomplish specific city goals. Overlay zoning is intended to be used when the base zoning district applied to an area remains generally appropriate, but when an additional, modified or eliminated requirement could help implement the City's planning goals or address an area-specific planning, design or land use regulation issue.

**B. Establishment and public engagement**

**1.** A pre-application meeting is required before the filing of any owner-initiated overlay district application (see Subsection 70.010C.2).

**2.** Proposed regulations and overlay district boundaries must be based on an adopted plan or be prepared following an inclusive, transparent, and equitable planning and public involvement process that includes opportunities for affected property owners and residents to participate in the formulation of the district regulations or otherwise offer recommendations and provide input.

**3.** At the time of the public hearing to consider adoption of an overlay district, the applicant must document the public involvement process used in preparing the proposed regulations and district boundaries, by providing at least the following information:

**a.** The opportunities provided for participation and input;

**b.** The types of information disseminated to affected residents, businesses and property owners and the methods of dissemination;

**c.** The level of participation by affected residents, businesses and property owners in meetings and discussions; and

**d.** The level of support shown by affected residents, businesses and property owners for the proposed regulations and overlay district boundaries.

**C. Interpretation.**

**1.** All applicable regulations of the underlying base zoning district apply to property in an overlay district unless otherwise expressly stated in the overlay district regulations.

**2.** When overlay regulations conflict with regulations that otherwise apply in the underlying base zoning district, the regulations of the applicable overlay govern. If property is classified in multiple overlay districts and the regulations of one overlay district conflict with the regulations of another overlay district, the more restrictive regulations govern.

**D. Procedure.** Overlay districts are shown on the official zoning map. The following procedures apply to the establishment, amendment or termination of all overlay districts unless otherwise expressly stated:

**1.** Overlay district regulations must be established, amended or terminated in accordance with the zoning code text amendment procedures of Section 70.020.

**2.** Except as otherwise expressly stated, zoning map amendments establishing, expanding or reducing the boundaries of an overlay district or terminating all or part of an overlay district must be processed in accordance with the zoning map amendment procedures of Section 70.030.

**3.** A recommendation to establish an overlay district must be accompanied by a report containing at least the following information:

**a.** Specific findings regarding the need for the proposed overlay and its consistency with the zoning code's general purposes (Section 1.050) and the stated purpose and intent of the applicable overlay.

**b.** Any recommended overlay-specific use, development or design regulations that will apply within the overlay and what actions (e.g., new development, building additions, change of use) will trigger compliance with those regulations.

**c.** A description of public education and outreach activities undertaken to inform property owners, residents and tenants of the effect of proposed overlay regulations.

**d.** A map showing the boundaries of the proposed overlay, including all lots included within the boundaries and identifying those owners of property within the proposed overlay who have indicated, in writing, their support or opposition to the overlay district text or map amendment. Property owners may submit their written indication of support or opposition at informal informational meetings, at public hearings, or by writing directly to the land use administrator or planning commission. The report and all other pertinent information must be transmitted to the planning commission and City Council before their public hearing and final action, respectively.

## Section 20.020. HP, Historic Preservation overlays.

**A. Purposes.** HP, Historic Preservation overlay districts and the other historic preservation-related regulations of this zoning code are intended to:

**1.** Promote the educational, cultural, economic and general welfare of the public through the conservation, preservation, protection and regulation of historic resources within the City of Tulsa;

**2.** Safeguard the cultural, social, political and architectural heritage of the city by conserving, preserving and regulating historic preservation districts;

**3.** Conserve, preserve and enhance the environmental quality and economic value of historic preservation districts;

**4.** Strengthen the city's economic base by promotion of conservation and reuse of the City's historic resources; and

**5.** Promote the development of the community in accordance with the comprehensive plan and historic preservation plan.

**B. Use regulations.** The use regulations of the underlying base zoning district apply in HP overlay districts.

**C. Lot and building regulations.** The lot and building regulations of the underlying base zoning district apply in HP overlay districts.

**D. Design Guidelines.** Design guidelines governing the applicable HP zoning district must be adopted before or concurrent with any HP zoning map amendments. When the boundaries of an HP zoning map amendment include a City of Tulsa park, design guidelines governing the applicable HP zoning district must identify the historic resources within the park.

**E. Establishment or amendment of HP overlay districts** See Subsection 20.010D. and Section 70.060 for procedures and requirements governing establishment or amendment of HP overlay districts.

**F. HP permits.** See Section 70.070 for requirements and procedures governing the review and approval of HP permits in HP overlay districts.

*(Ord. No. 25212, § 1, 12-20-2023)*

## Section 20.030. SA, Special Area overlays.

**A. General.** This section establishes the general authority and basic procedure for establishment of SA, Special Area overlay districts. Historic Preservation Overlays (HP), Parking Impact Overlays (PI) and Planned Unit Developments (PUD) are not considered SA overlays.

**B. Purpose and intended use.**

**1.** SA overlays are intended to address neighborhood planning and design issues when other available zoning tools or other techniques cannot achieve the desired results. SA overlays may be used to relax or eliminate requirements that apply under base zoning or to impose requirements in addition to those of base zoning. SA overlays are not intended to be used as a de facto downzoning tool. SA overlays may be appropriate for one or more of the following purposes:

**a.** Protect unique development, building or land use patterns in residential, commercial or mixed-use areas when such patterns are not adequately addressed by applicable zoning regulations;

**b.** Promote reinvestment and redevelopment in residential, commercial or mixed-use areas where change is desired and when existing zoning regulations hinder achievement of the desired change; or

**c.** Help implement neighborhood plans or planning studies.

**2.** Without limiting the general purpose and intent of Subsection 20.030B.1., SA overlays may be used for the following express purposes:

**a.** Allow principal or accessory uses and building types that are not allowed under base zoning;

**b.** Allow densities and intensities of development that are not allowed under base zoning; or

**c.** Establish reasonable, clear and objective site, building and design standards that promote the general purpose established in Subsection 20.030B.1.

**3.** SA overlays may not be used to impose requirements that conflict with the comprehensive plan or any other officially adopted plan.

**C. Underlying Zoning.** SA overlays may be approved in areas classified in any residential or nonresidential base zoning district, except the Central Business District (CBD). SA overlays may not be applied in combination with Central Business District (CBD) zoning.

**D. Minimum contiguous areas.** SA overlay district boundaries must encompass at least ten (10) lots, and in all cases must include at least one acre of contiguous land area. Smaller areas may be designated as SA overlays if they abut and extend an existing SA overlay district or if they include all lots within an original subdivision plat.

*(Ord. No. 25055, §§ 6, 7, 5-24-2023; Ord. No. 25322, § 2, 5-22-24; Ord. No. 25330, § 5, 6-5-2024)*

### Section 20.040. PI, Parking Impact overlay.

**A. Purpose.** The purpose of the Parking Impact (PI) overlay district is to provide supplemental parking regulations for specified areas experiencing negative impacts due to the relative absence of parking, transit and alternative transportation mode choices. The intent of the PI overlay is to identify areas of high parking demand and increase the off-street parking requirements accordingly.

**B. Underlying zoning.** The PI overlay may be approved in areas classified in any underlying base zoning district.

**C. Regulations.** Special parking requirements apply to many uses located within the boundaries of the PI overlay, in accordance with the minimum off-street parking ratios of Section 55.020.

### Section 20.050. RDO, River Design overlays.

**A. General.**

**1. Purpose and intent.** The RDO, River Design overlay regulations of this section establish regulations governing form, function, design and use for properties located within the boundaries of the River Design overlay district. The regulations are generally intended to maintain and promote the Arkansas River corridor as a valuable asset to the City and region in terms of economic development and quality of life. The regulations are also intended to:

**a.** Support and enhance the river corridor as a lively people-oriented destination, connecting nodes of high-quality development with parks and open spaces;

**b.** Protect the City's investment as well as the investments of property owners, developers and others who enjoy the benefits of the Arkansas River corridor;

**c.** Encourage development that enhances the appearance of the Arkansas River corridor and the surrounding area;

**d.** Ensure development and redevelopment that is sensitive to the area's natural resources and environmental qualities;

**e.** Establish the area as an interconnected, pedestrian-oriented, cultural and recreational destination, attracting both residents and visitors to the Arkansas River; and

**f.** Foster a sense of community and civic pride.

**2. Districts.** Three (3) RDO districts are established, as follows:

**a. RDO-1.** The RDO-1 district is primarily intended to apply to park, recreation and open space uses adjacent to the river. RDO-1 regulations help promote development that is compatible with public parks and green space and that complements park uses.

**b. RDO-2.** The RDO-2 district is primarily intended to apply to other (non-RDO-1) properties with direct access to the river. RDO-2 regulations help to ensure safe, attractive and activated pedestrian areas by requiring that new development is oriented to the river and abutting streets. The regulations also promote integration with the River Parks trail system and avoidance of adverse environmental impacts.

**c. RDO-3.** The RDO-3 district is primarily intended to apply to properties that do not have direct access to the river but that are visible from riverfront areas. These areas benefit from proximity to the river and contribute to the overall visual environment of the riverfront area.

**3. Applicability.** Except as otherwise expressly stated, the RDO regulations of this section apply within the boundaries of the RDO overlay districts to all new uses and structures and all building alterations and site modifications that require a building permit.

**4. Exemptions.**

**a.** Existing detached houses and duplexes and additions to existing detached houses and duplexes are exempt from compliance with all of the RDO regulations of this section (Section 20.050).

**b.** Uses and structures that are accessory to existing or new detached houses or duplexes are exempt from compliance with all of the RDO regulations of this section (Section 20.050).

**c.** New detached houses and duplexes, where allowed, are exempt from compliance with all of the site and building design regulations of Subsection 20.050C.

**d.** New or modified public utility and service uses and accessory uses customarily incidental to park and recreation uses (excluding restaurants) are exempt from compliance with the:

(1) Build-to-zone regulations of Table 20-2;

(2) Ground floor transparency regulations of Table 20-3; and

(3) Building entrance requirements of Table 20-3.

**e.** Planned unit developments (PUDs) and CO-zoned properties or portions of PUDs and CO-zoned properties that have received site plan approval prior to August 1, 2016 are exempt from compliance with all RDO regulations of this section (Section 20.050). Approved PUDs and CO-zoned properties or portions

of PUDs and CO-zoned properties that have not received site plan approval prior to August 1, 2016 are subject to compliance with all applicable RDO regulations of this section (Section 20.050).

**f.** Minor revisions of previously approved site plans do not trigger a requirement that the site plan be brought into compliance with the RDO regulations of this section. Major and minor amendments to approved development plans do trigger a requirement that the entire development plan be brought into compliance with all applicable RDO regulations of this section (Section 20.050).

**5. Nonconformities.**

**a. General.** Nonconformities that exist within an RDO district are governed by the regulations of Chapter 80, except as expressly stated in this subsection.

**b. Restoration, Replacement, Alteration and Expansion of Nonconforming Uses and Structures (other than signs).**

(1) Structures and uses that are nonconforming with regard to the RDO regulations of this section (Section 20.050) may be restored, replaced, altered or expanded, and additional structures that are nonconforming with regard to the regulations of this section (Section 20.050) may be constructed, provided that the restoration, replacement, alteration, expansion, or additional construction does not increase by more than fifty (50) percent of the total floor area or lot coverage of a nonconforming use or increase by more than fifty (50) percent of the total lot coverage of nonconforming structures. Restoration, replacement, alterations, expansions, and additions allowed under this paragraph are not required to comply with the site and building design regulations of Subsection 20.050C. For purposes of this Subsection 20.050A.5. "structure" does not mean "sign". For purposes of this Subsection 20.050A.5., the increase in percentage of total floor area or total lot coverage is calculated using the total floor area or total lot coverage in existence on the date the structure or use became nonconforming.

(2) An existing structure and all replacements, restorations, expansions, alterations and additions must be brought into compliance with the site and building design regulations of Subsection 20.050C. under the following circumstances:

(a) More than fifty percent (50%) of a nonconforming structure is proposed to be replaced or restored; or

(b) A nonconforming structure is proposed to be altered or expanded by more than fifty percent (50%); or

(c) Additional structure(s) are proposed to be constructed resulting in a more than fifty percent (50%) increase in the floor area or lot coverage, as described in Subsection 20.050A.5.b.(1).

(3) For purposes of administering these restoration, replacement, alteration and expansion regulations, increases in floor area and lot coverage are calculated separately; they are not added together to determine whether the fifty (50) percent threshold has been met. A complete building permit

application for any restoration or replacement must be submitted within five (5) years of the date a nonconforming building was damaged, destroyed or removed.

6. **Conflicting regulations.** All applicable regulations of the underlying base zoning district apply to property in the RDO district unless otherwise expressly stated in the RDO regulations. For properties with PUD or CO zoning, the approved development plan or development standards governing the subject PUD or CO district apply unless otherwise expressly stated in the RDO regulations. If the regulations of the RDO district conflict with the regulations of the subject property's underlying zoning, approved development plan or development standards or any other overlay zoning district that applies to the property, the RDO regulations of Section 20.050 govern, unless otherwise expressly stated.
7. **Modifications to RDO regulations.**
   a. The land use administrator may grant administrative adjustments to provisions in this Section 20.050 in accordance with Section 70.100.
   b. The Board of Adjustment may modify the build-to-zone regulations in Table 20-2, the transparency regulations in Table 20-3 and the parking regulations in Subsection 20.050D.2.b.(3) through the special exception process provided that the Board of Adjustment finds the special exception will be in harmony with the spirit and intent of the zoning code, including the spirit and intent of this Section 20.050 and will not be injurious to the neighborhood or otherwise detrimental to the public welfare.
   c. The regulations of an RDO district may not be varied or modified through approval of or amendment of a Planned Unit Development (PUD) district or Corridor (CO) district.
   d. The regulations of an RDO district may not be varied or modified through approval of or amendment of a Master Plan Development (MPD) district except that in an MPD with a minimum area of twenty (20) acres, the build-to-zone regulations in Table 20-2 may be modified. If the build-to-zone in the MPD is modified, the MPD must demonstrate activation along the trail and/or street edge through the use of other principles of the RDO. The MPD must meet all other RDO provisions and remain consistent with the purpose and intent of both the RDO and the MPD.
8. **Administration.** No building permit for proposed use or development in an RDO district may be approved until a site plan for such use or development has been submitted and reviewed by the land use administrator and found to be in compliance with all applicable RDO regulations.

**B. Uses.**

1. **Intent.** The RDO regulations are intended to allow for a mix of uses to promote a pedestrian environment, while prohibiting uses that will hinder the long-term viability of an attractive, vibrant and active riverfront area.
2. **Regulations.**
   a. **Allowed uses.** Except as expressly identified in Table 20-1, principal uses are allowed in RDO districts in accordance with the use regulations of the underlying (base) zoning district or, in the case of PUD or CO zoning, in

accordance with the approved development plan or development standards governing the subject PUD or CO district. Uses identified with a "□" symbol are allowed in the respective RDO district: (1) if allowed by the subject property's underlying (base) zoning district or (2) if the subject property has PUD or CO zoning, if the use is allowed by the approved development plan or development standards governing the subject PUD or CO district.

**b. Prohibited uses.** Uses identified with an "X" Table 20-1 are expressly prohibited in the respective RDO district.

### Table 20-1: RDO District Use Regulations

| USE CATEGORY<br>Subcategory<br>Specific use<br>Building Types | RDO-1 | RDO-2 | RDO-3 |
|---|---|---|---|
| X = expressly prohibited use □ and unlisted uses = underlying zoning governs | | | |
| **RESIDENTIAL** | | | |
| Household Living (if in building type allowed in underlying zoning and not prohibited in Table 20.1-5) | | | |
| **PUBLIC, CIVIC AND INSTITUTIONAL** | | | |
| Cemetery | X | X | X |
| Utilities and Public Service Facility | | | |
| Major | X | X | □ [2] |
| Wireless Communication Facility | | | |
| Freestanding tower | X | X | X |
| **COMMERCIAL** | | | |
| Assembly and Entertainment | | | |
| Indoor gun club | X | X | X |
| Outdoor gun club | X | X | X |
| Commercial Service | | | |
| Building service | X | X | X |
| Business support service | X | X | X |
| Consumer maintenance/repair service | X | X | X |
| Research service | X | X [1] | □ |
| Financial Services (except as below) | X | X [1] | □ |
| Personal credit establishment | X | X | X |
| Funeral or Mortuary Service | X | X | X |
| Office | | | |
| Business or professional office | X | X [1] | □ |
| Medical, dental or health practitioner office | X | X [1] | □ |
| Plasma center | X | X | X |
| Retail Sales | | | |
| Building supplies and equipment | X | X | X |
| Medical Marijuana Dispensary | X | X[1] | □ |
| Self-service Storage Facility | X | X | X |
| Sexually Oriented Business Establishment | X | X | X |
| Vehicle Sales and Service | | | |
| Commercial vehicle repair/maintenance | X | X | X |
| Commercial vehicle sales and rentals | X | X | X |
| Fueling station | X | X | X |
| Personal vehicle repair and maintenance | X | X | X |

| USE CATEGORY<br>Subcategory<br>Specific use<br>Building Types | RDO-1 | RDO-2 | RDO-3 |
|---|---|---|---|
| Personal vehicle sales and rentals | X | X | X |
| Vehicle part and supply sales | X | X | X |
| Vehicle body and paint finishing shop | X | X | X |
| **WHOLESALE, DISTRIBUTION AND STORAGE** | | | |
| Equipment and Materials Storage, Outdoor | X | X | X |
| Trucking and Transportation Terminal | X | X | X |
| Warehouse | X | X | X |
| Wholesale Sales and Distribution | X | X | X |
| **INDUSTRIAL** | | | |
| Moderate-impact Manufacturing & Industry | X | X | X |
| High-impact Manufacturing & Industry | X | X | X |
| Mining or Mineral Processing | X | X | X |
| Junk or Salvage Yard | X | X | X |
| **RECYCLING** | | | |
| Construction or Demolition Debris | X | X | X |
| Consumer Material Drop-off Station | X | X | X |
| Consumer Material Processing | X | X | X |
| **AGRICULTURAL** | | | |
| Animal Husbandry | X | X | X |
| Horticulture Nursery | X | X | X |
| **OTHER** | | | |
| Drive-in or Drive-through Facility (as a component of an allowed use) | X | X | X |
| Off-premise Outdoor Advertising Sign | X | X | X |

**[1]** Use allowed above the ground-floor level only.

**[2]** Use limited to water and wastewater treatment facilities (Special Exception required).

**C. Residential Building Types.** Residential uses allowed in RDO districts must be located in residential buildings as allowed in the underlying zoning district, except as prohibited by Table 20.1-5. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010.

### Table 20-1.5: RDO Building Type Regulations for Household Living

| USE CATEGORY<br>Subcategory<br>Specific use<br>Building Type | RDO-1 | RDO-2 | RDO-3 |
|---|---|---|---|
| X = expressly prohibited use □ and unlisted uses = underlying zoning governs | | | |
| **RESIDENTIAL** | | | |
| Household Living | | | |
| Single household | | | |
| Detached house | X | X [1] | □ |
| Manufactured housing unit | X | X | X |
| Manufactured housing subdivision | X | X | X |
| Mobile home | X | X | X |
| Two households on single lot | | | |

| USE CATEGORY<br>Subcategory<br>Specific use<br>Building Type | RDO-1 | RDO-2 | RDO-3 |
|---|---|---|---|
| Duplex | X | X [1] | □ |
| Three or more households on single lot | | | |
| Mobile home park | X | X | X |
| Cottage house development | X | X | □ |

**[1]** Detached houses and duplexes are allowed when part of a planned unit development that was approved before January 1, 2016.

## D. Site and Building Design.

### 1. Building Placement, Building Design and Site Features.

**a. Intent.** The building placement, building design and site design regulations of this section are intended to:

(1) Ensure that buildings are oriented to face pedestrian areas along the river and abutting streets;

(2) Create and frame usable outdoor spaces;

(3) Encourage pedestrian activity by creating compact and well-connected development;

(4) Ensure that new development is constructed of durable, long-lasting materials;

(5) Enhance pedestrian interaction with the natural and built environment by providing building articulation and transparency of building façades at pedestrian levels; and

(6) Promote incorporation of design features that encourage outdoor activity and emphasize the presence of the river and parkland.

**b. Siting of buildings, parking and service areas.** Buildings, parking and service/equipment areas are subject to the regulations of Table 20-2.

**Table 20-2: RDO Building, Parking and Service Area Siting [1]**

| | *RDO-1* | *RDO-2* | *RDO-3* |
|---|---|---|---|
| Build-to-Zones (BTZ) (minimum/maximum setback in feet) | | | |
| River BTZ (See Figure 20-1) | | | |
| From dual river trail [2] | 10/25[3] | 10/25[3] | NA |
| From top of river bank [4] | 50/75[5] | 50/75[5] | NA |
| Street BTZ (See Figure 20-2) | | | |
| From major street | 10/25 | 10/25[6] | 10/25 |
| Building Façade in BTZ [9] | | | |
| River BTZ (See Figure 20-3) | At least 60% of river-facing façade must be located in BTZ | River-facing façade must occupy at least 70% of the BTZ length [6][7] | NA |
| Street BTZ (See Figure 20-4) | At least 60% of street-facing façade must be located in BTZ | Street-facing façade must occupy at least 50% of the BTZ length [6][7] | Street-facing façade must occupy at least 50% of the BTZ length [8] |
| Minimum Side Setback | None required | | |
| Minimum Rear Setback | Per underlying zoning | | |
| Minimum Parking Area Setback (feet) | | | |

| | *RDO-1* | *RDO-2* | *RDO-3* |
|---|---|---|---|
| From dual river trail [10] | 20 | 20 | NA |
| From top of river bank [4][10] | 70 | 70 | NA |
| From any street | 30 | 30 | 30 |
| Minimum Service Area/Equipment Setback (feet) (service areas, mechanical equipment, refuse collection areas, storage areas and loading docks) | | | |
| From Dual River Trail | 50 | 50 | NA |
| From Top of River Bank [4] | 70 | 70 | NA |
| From any Street | 50 | 50 | 50 |

**[1]** General rules for measuring compliance and exceptions to these regulations and can be found in Chapter 90.

**[2]** "Dual river trail" refers to the split or divided public trail that runs generally parallel to the river and that provides separate hard-surfaced areas for cyclists and pedestrians. [Note: Not all portions of the dual river trail are designed as separate/divided trails.] BTZ measurements are taken from the edge of the dual river trail surface located furthest from the river.

**[3]** Maximum may be increased to 150 feet if occupied by a pedestrian activity area or outdoor dining/entertainment venue.

**[4]** Top of river bank BTZ and setback requirements apply only if dual river trail is not in place. Buildings that project beyond the top of the river bank are exempt from BTZ requirements. The geographic "river bank" refers generally to the land alongside the bed of the river. The top of the river bank must be dimensionally defined on the site plan that is submitted to and approved by the land use administrator during the development/permit review process. The top of bank will generally be interpreted as the highest point where the steepest slope of the bank intersects with the flattest surface further away from the river. The 100-year flood elevation is typically below the top of the bank.

**[5]** Maximum may be increased to 200 feet if occupied by a pedestrian activity area or outdoor dining/entertainment venue.

**[6]** Buildings are not required to meet both river and major street BTZ requirements. Buildings must first comply with river BTZ requirements.

**[7]** In RDO-2, Pedestrian activity areas and outdoor dining/entertainment venues may be counted to meet up to 30% of the river BTZ requirement, provided that if multiple buildings on a lot are located within the river BTZ, the cumulative total of all pedestrian activity and outdoor dining/entertainment areas may not exceed 30% for the purpose of determining the river BTZ. Once buildings occupy at least 70% of the length of the river BTZ, additional buildings may be constructed in the major street BTZ. Once 70% of the length of the river BTZ and 50% of the length of the major street BTZ of a lot is occupied by building(s), any additional building(s) on that lot is not required to be located within a BTZ.

**[8]** In RDO-3, buildings must first comply with major street BTZ requirements. Once 50% of the length of the major street BTZ of a lot is occupied by building(s), any additional building(s) on that lot is not required to be located in a BTZ.

**[9]** For purposes administering and interpreting these regulations, a "façade" is an exterior wall of a building.

**[10]**Drive aisles that are parallel or generally parallel to the river must be lined by a parking aisle on the river side of the property.

**c. Facades.** Facades are subject to the regulations of Table 20-3.

**Table 20-3: RDO Facade Regulations**

| | RDO-1 | RDO-2 | RDO-3 |
|---|---|---|---|
| Minimum Ground Floor Transparency (%)[1] | | | |
| Building facade facing the river | 40 | 40 | — |
| Building facade facing a major street | 40 | 40 | 40 |
| Building facade facing parking or common open space area | 20 | 20 | — |
| Required Building Entrances | | | |
| Building facade facing the river | At least one building entrance required with direct connection to dual river trail [2] | | — |
| Building facade facing a major street | At least one building entrance required with direct connection to public sidewalk | | |
| Building facade facing parking or common open space area | At least one building entrance required with direct connection to parking or open space | | — |

**[1]** Residential buildings are exempt from ground-floor transparency requirements.

**[2]** Buildings entrance requirements do not apply to river-facing façades if the building projects beyond the top of the river bank. The land use administrator is authorized to waive the trail direct connection requirement when the subject portion of the trail is in different ownership and access rights cannot be obtained.

**Figure 20-1: River BTZ, Setback and Facade Regulations**

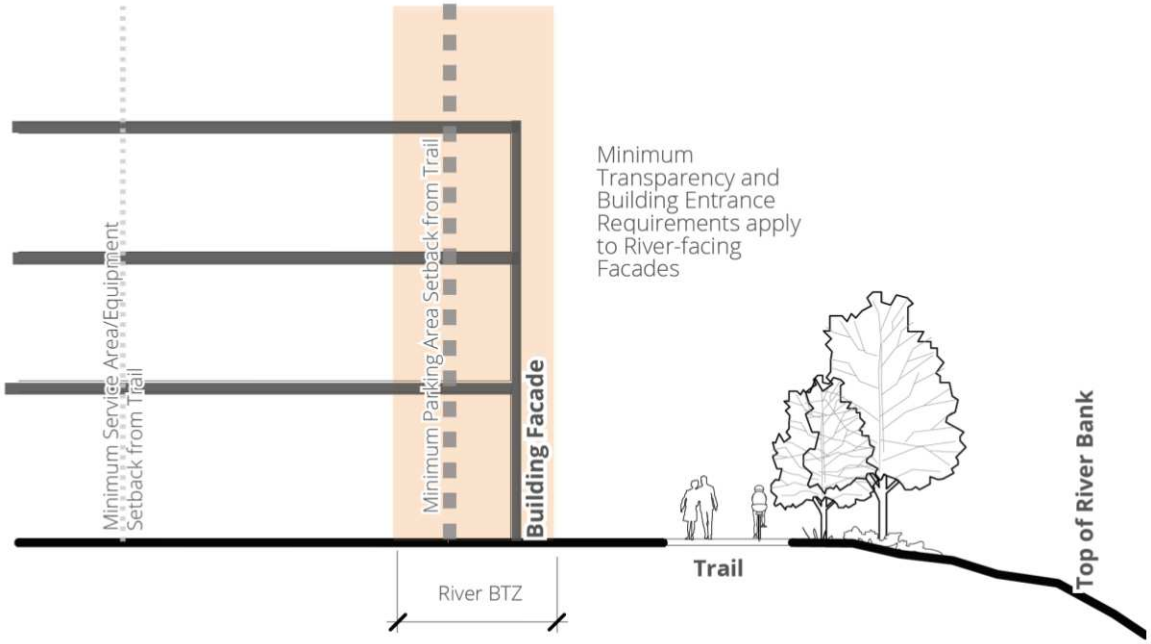


**Figure 20-2: Street BTZ, Setback and Facade Regulations**

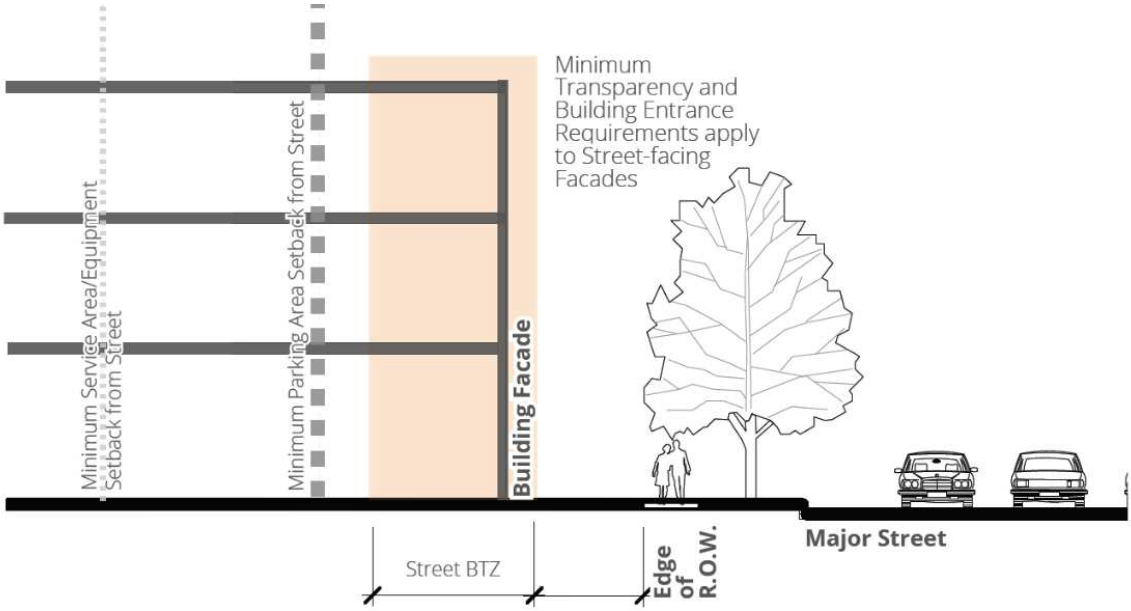


**Figure 20-3: Building and Parking Placement (1)**

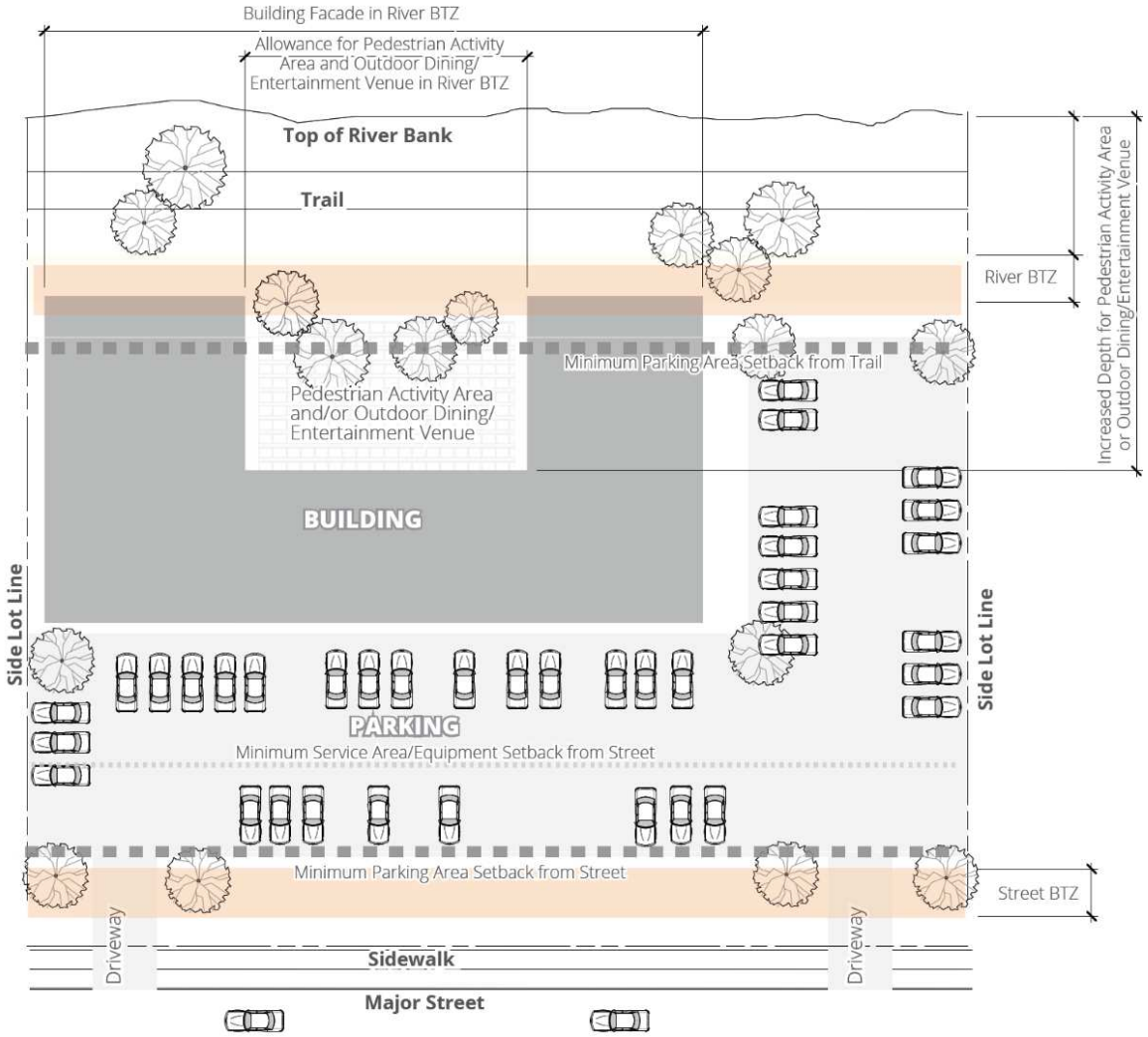
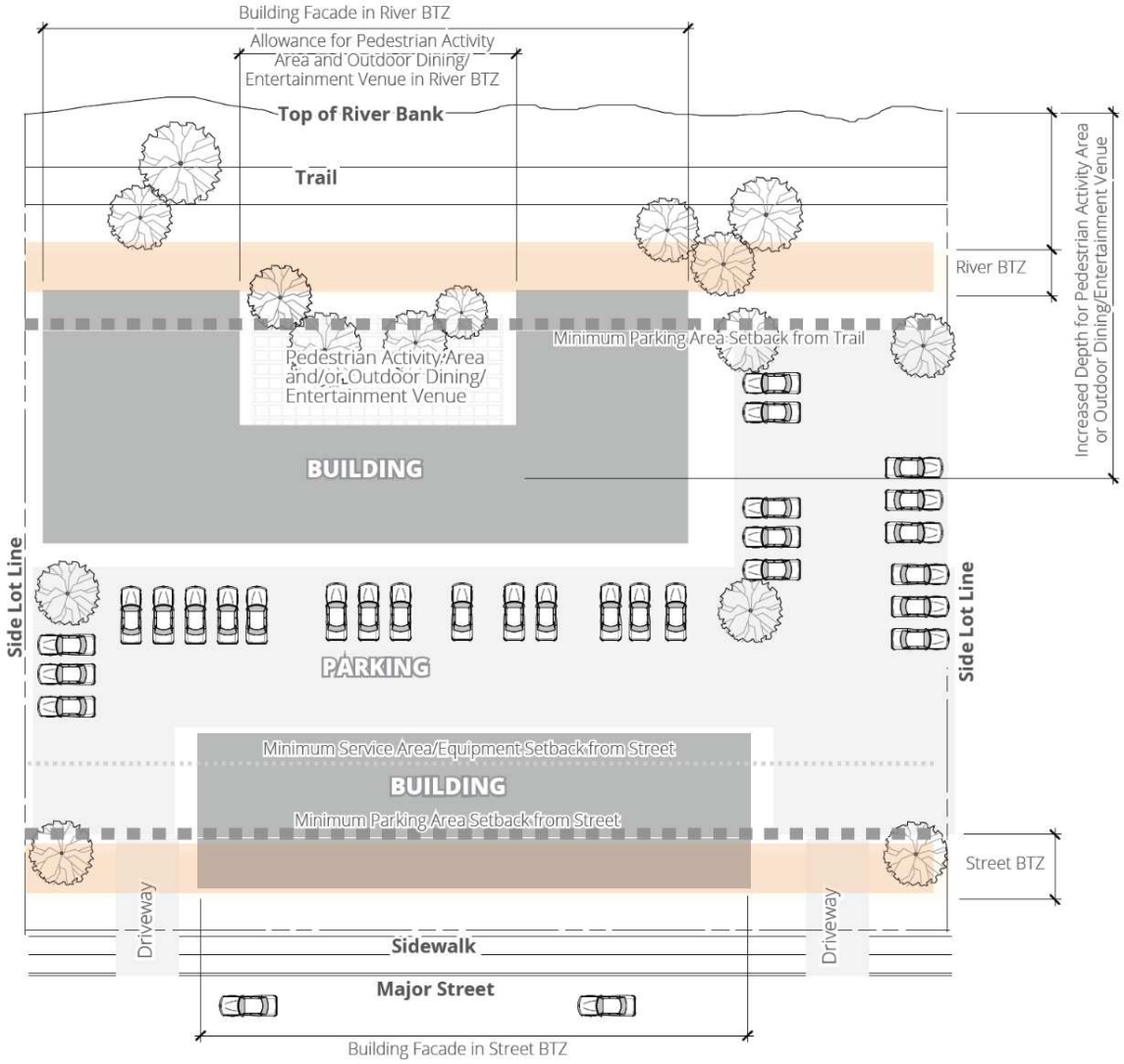


**Figure 20-4: Building and Parking Placement (2)**




**d. Building design.**

(1) Exterior insulation and finish systems (EIFS) or simulated stucco may not be used on more than fifteen (15) percent of any building façade and may not be used on the ground-floor level façade.

(2) Vinyl siding and aluminum siding are prohibited building materials.

(3) Blank walls without architectural detailing/articulation may not exceed thirty-five (35) feet in height or width. Articulation must be provided as a means of breaking the building face into separate visually distinct but attached or adjoining pieces by using a different building materials, transparency, openings or by recesses or projections in facades.

**e. Parking structures.**

(1) Parking structures must be designed to visually conceal ground-floor level parking through the use of architectural detailing or liner buildings.

(2) Ramped and sloping interior floors must be concealed from view of the public street and the river.

(3) Stairwells must be built and located on the exterior corners of parking garages and constructed so that at least one wall of the stairwell be visually open to the outdoors. Additional interior stairs may be allowed adjacent to elevators, but one side must remain visually open.

(4) Screening walls to conceal ramps, slopes and vehicles absent architectural detailing/articulation at expanses greater than thirty-five (35) feet are prohibited.

**f. Site features.**

(1) All new utility services, such as telephone, electrical and cable services, must be installed underground.

(2) Utility components required to be above ground, such as transformers and meters, must either be screened by landscaping or decorative wall or concealed from view of the public street and the river.

**2. Parking.**

**a. Intent.** The parking-related provisions of this subsection are intended:

(1) To minimize the visual prominence of parking, promoting increased pedestrian activity and enhancing the overall appearance of development; and

(2) To support more urban development intensities through reduced parking minimums and other flexible parking regulations.

**b. Regulations.**

(1) The minimum parking ratios established in Table 55-1 are reduced by fifty (50) percent for uses in the RDO district.

(2) Bicycle parking must be provided at a rate of at least one hundred fifty (150) percent of the ratios established in Table 55-3.

(3) Surface parking lots must be organized as a series of smaller parking areas, each not exceeding fifty (50) spaces. These parking areas must be separated by landscaped areas with a minimum width of twelve (12) feet. Pedestrian walkways may be integrated into these areas but may not be counted toward satisfying the required minimum landscaped area width of twelve (12) feet.

(4) Off-street surface parking lots must be screened in accordance with the RDO district landscaping and screening regulations of Subsection 20.050C.3.

**3. Landscaping and screening.**

**a. Intent.** To establish a distinctive landscape character along the river corridor through preservation of existing trees/vegetation, enhanced landscape standards and promotion of native, drought-tolerant and non-invasive landscaping.

**b. Regulations.**

(1) The applicant must submit a landscape plan illustrating plant size within a three-year growing cycle.

(2) The total landscaped area must equal at least twenty (20) percent of the lot. Areas beyond the top of the river bank (river side) and existing dual river trails (including the paved trail or trail bed and a five-foot buffer on each side) may not be counted toward satisfying the minimum twenty (20) percent landscaped area requirement.

(3) Dumpsters must be screened by masonry walls with a minimum height of six (6) feet and a metal frame gate that is at least eighty (80) percent opaque.

(4) Fences and walls that prohibit physical or visual access to the river and those exceeding three (3) feet in height are prohibited. The maximum fence and wall height limitation does not apply to screening of service areas, mechanical equipment, refuse collection areas, storage areas and loading docks.

(5) The perimeter of parking lots must be screened from public streets and the dual river trail by one of the following methods:

(a) A berm with a minimum height of three (3) feet and a maximum slope of one vertical foot for every four (4) horizontal feet. The berm must be planted with coniferous and deciduous trees at a rate of at least one tree per twenty (20) linear feet of berm; or

(b) A masonry wall with a minimum height of two (2) feet and maximum height of three (3) feet, with a minimum five-foot landscaped buffer containing at least one tree per twenty (20) linear feet located on the outside of the wall.

(6) Lots adjacent to the dual river trail must provide at least one tree for every twenty (20) feet of trail or river frontage, as follows:

(a) All trees required by this provision must be placed within twenty (20) feet of the edge of the trail, trail easement, reserve area or trail right-of-way, as measured from the outer edge of the tree's trunk; and

(b) Trees placed within twenty (20) feet of the river trail may not be counted towards meeting the requirements of any other minimum landscape or tree planting requirement of Chapter 65.

(7) Trees provided to meet the landscaping and screening requirements of this subsection may be regularly spaced or grouped. When grouped, the distance between required trees may not exceed sixty (60) feet.

**4. Lighting.**

**a. Intent.** The lighting provisions of this subsection are intended to:

(1) Ensure lighting is of pedestrian scale;

(2) Minimize the negative effects of lighting on adjacent uses; and

(3) Ensure unified lighting standards along the dual river trail and in parks.

**b. Regulations.**

(1) Floodlights are prohibited.

(2) Building-mounted neon lighting is only allowed when recessed or contained in a cap or architectural reveal.

**5. Signs.**

**a. Intent.** The sign regulations of this subsection are intended to:

(1) Ensure that signs contribute to the visual continuity and quality of development in the river corridor;

(2) Minimize visual clutter; and

(3) Ensure that signs are primarily of pedestrian scale.

**b. Regulations.**

(1) Off-premise outdoor advertising signs, dynamic display signs and internally illuminated signs enclosed in frames or cabinets (aka "cabinet signs" or "box signs") are prohibited.

(2) All new or replacement freestanding signs must be monument-style signs with a maximum height of six (6) feet.

(3) Freestanding signs must be consistent with the architectural character of the buildings on the site, incorporating a minimum of one of the primary materials, colors or design elements of the associated structures.

(4) The sign area of a monument sign may not exceed fifty (50) square feet.

(5) Wall signs may not exceed an aggregate sign area of one and one-half (1.5) square feet per linear foot of building wall to which they are attached.

(6) Projecting signs may not project more than three (3) feet from the face of the building. The sign area of a projecting sign may not exceed twenty-four (24) square feet if located within a street build-to-zone or twelve (12) square feet in any other location.

**6. Circulation and access.**

**a. Intent.** The circulation and access provisions of this subsection are intended to:

(1) Establish a safe and efficient network of vehicular and pedestrian linkages throughout the river corridor;

(2) Integrate access management design features;

(3) Accommodate multiple modes of transportation (motor vehicles, transit, bicycles, pedestrians, etc.); and

(4) Provide connectivity to the parks within and adjacent to the river corridor, dual river trail and the river.

**b. Regulations.**

(1) No more than one driveway is allowed per three hundred (300) linear feet of public right-of-way in RDO-1 and RDO-2 districts.

(2) All access points to a public street must be shared by multiple tenants and park users.

(3) All parcels must provide vehicular and pedestrian connectivity (cross-access) with adjacent parcels.

(4) Internal pedestrian circulation systems must coordinate and connect with public spaces, sidewalks, dual river trail, transit stops and other transportation systems.

(5) All new dual river trails and re-positioned existing dual river trails must be located to avoid vehicular crossings.

(6) Public sidewalks with a minimum width of five (5) feet must be installed along the entire street frontage on any lot abutting a major street.

*(Ord. No. 25330, § 2, 6-5-2024)*

**Section 20.060. HNO, Healthy Neighborhoods overlay.**

**A. Purpose and intent.** The regulations of this section are established for properties located within the boundaries of the Healthy Neighborhoods overlay (HNO) district. The purpose of the Healthy Neighborhoods overlay (HNO) is to modify and supplement regulations in a specified area where there is a desire for greater diversity in retail options and convenient access to fresh meats, fruits and vegetables. These regulations are intended to:

**1.** Avoid and reduce over-concentration of small box discount stores in the area.

**2.** Encourage and streamline grassroots access to fresh meats, fruits and vegetables.

**3.** Encourage a greater diversity of retail activity and purchasing options within the area.

**4.** Allow for a more community-based approach to distributing and purchasing fresh meats, fruits and vegetables in a specified area.

**5.** Promote investment and development in a community where change is desired.

**B. Applicability.** Except as otherwise expressly stated, the regulations of this section apply within the boundaries of the HNO district to all new uses and structures and all building alterations and site modifications that require a building permit.

**C. Exemptions.**

**1.** Uses that contain a prescription pharmacy or offer for sale gasoline or diesel fuel are exempt from the dispersal standards established in Subsection 20.060D.

**2.** Uses that dedicate a minimum floor area of five hundred (500) square feet to the sale of fresh meat, fruits or vegetables are exempt from the dispersal standards established in Subsection 20.060D.

**3.** Grocery Stores are exempt from the dispersal standards established in Subsection 20.060D.

**D. Dispersal standards for small box discount stores.** To avoid over-concentration, a small box discount store, as defined in Subsection 35.050L.4., within the overlay area must be separated from another small box discount store within or outside the overlay area by a minimum distance of five thousand two hundred eighty (5,280) feet. The required separation distance must be measured in a straight line from the nearest point on the lot line of the property occupied by a small box discount store to the

nearest point on a lot line of the other property occupied by a small box discount store. The separation distance requirements of this section may be reduced if approved through the special exception approval process.

**E. Community gardens.** Community gardens within the boundaries of the HNO district are governed by the regulations of Section 40.090, unless expressly stated by this section. On-site sale of community garden products is permitted by right in all zoning districts within the boundaries of the HNO district.

**F. Grocery store.** The minimum parking ratios established in Section 55.020, Table 55-1 for a Grocery Store use are reduced by fifty (50) percent in the HNO district.

**G. Nonconformities.** Nonconformities that exist within the HNO district are governed by the regulations of Chapter 80.

## Section 20.070. RT66, Route 66 Overlay.

### A. General.

**1. Purpose and intent.** The Route 66 Overlay district establishes zoning regulations and incentives intended to ensure the enhancement, development, and revitalization of the authentic Route 66 through the promotion of historic and historically inspired signage, especially neon, and roadside attractions along and adjacent to the two alignments of Route 66 in Tulsa. The regulations are generally intended to guide the character of both public and private development as it occurs along Route 66.

**2. Applicability.** Except as otherwise expressly stated, the Route 66 Overlay district regulations of this section shall apply within the boundaries of the Route 66 Overlay district to the following:

**a.** All new signage that requires a sign permit and includes at least twenty-five percent (25%) exposed neon as measured by total sign face area. Dynamic Displays as defined in Section 60.100 are not permitted to utilize the provisions of the overlay.

**b.** Roadside attractions as defined in Section 20.070.C.

**3. Conflicting regulations.** All applicable regulations of the underlying base zoning district apply to property in the Route 66 Overlay district unless otherwise expressly stated in the Route 66 Overlay regulations. For properties with approved development plans (PUD, CO, MPD, Optional Development Plan), the approved development plan and development standards apply unless otherwise expressly stated in the Route 66 Overlay regulations.

**B. Signage guidelines.** Signs are regulated by underlying zoning districts and development plans, where applicable, except where modified by these regulations. Signs located within the Route 66 Overlay that include at least twenty-five (25) percent exposed neon as measured by total sign area of the sign shall comply with the regulations of Chapter 60 except as modified by the following provisions and exemptions:

**1. Location.**

**a.** A freestanding sign may overhang up to four (4) feet into the public right-of-way and a wall sign may protrude up to fifteen (15) inches into the

public right-of-way, provided it is a minimum of twelve (12) feet above the right-of-way at grade and does not interfere with utility poles, lines, and/or easements.

**b.** A projecting sign may project horizontally up to four (4) feet into the public right-of-way, provided it is a minimum of twelve (12) feet above the right-of-way at grade and does not interfere with utility poles, lines, and/or easements.

**c.** No sign, or portion of a sign, shall be located within ten (10) feet of any high voltage overhead conductor. (See Title 51, Section 3107)

**d.** Signs shall not project beyond a vertical plane that is two (2) feet inside the curb line. (See Title 51, Section 3107)

**e.** Signage utilizing the standards of the Route 66 Overlay must be oriented to a major street.

**2. Maximum area.**

**a.** Sign area for freestanding or projecting signs may be up to fifty (50) percent greater than the sign area allowed by the underlying zoning district sign budget, provided that sign area shall not exceed two hundred fifty (250) square feet.

**b.** Sign area for wall signs may be up to twenty-five (25) percent greater than the sign area allowed by the underlying zoning district, provided that sign area shall not exceed twenty (20) percent of the building wall to which the sign is attached.

**3. Height.**

**a.** Freestanding signs shall not exceed the height of the principal structure on the property by more than twenty-five (25) percent or a maximum height of twenty-five (25) feet, whichever is greater.

**b.** Projecting signs shall not exceed the height of the parapet or building wall to which it is attached by more than twenty-five (25) percent or a maximum of twenty (20) feet, whichever is greater.

**c.** Wall signs shall not extend higher than five (5) feet above the height of the parapet or building wall to which it is mounted or shall not be mounted any higher than thirty (30) feet, whichever is less.

**4. Illumination.** Change of illumination may produce apparent motion of the visual image on signs. Such motion shall be the result of changes in luminance in a sequential or radial manner to produce what appears to be movement of an element of the animated sign. Sequential or radial changes in luminance shall not include search lights, strobe lights, rotating beacon lights, or flashing.

**5. Roof signs.** Roof signs are regulated by the provisions of Subsection 60.080B.5.

**C. Roadside attractions.** Roadside attractions are permitted in the Route 66 Overlay district. Roadside attractions are features or structures intended to promote tourism and enhance the Route 66 experience.

**1.** General regulations.

**a.** Roadside attractions are subject to review and approval by the Tulsa Route 66 Commission.

**b.** Business name and/or logos will be considered signage and are required to comply with sign regulations.

**c.** Roadside attractions are required to obtain all necessary permits prior to construction.

**2.** In reviewing roadside attractions, the Route 66 Commission must determine that the proposal:

**a.** Reflects the historic significance of Route 66 in Tulsa by identifying elements that contribute to its legacy and character; and

**b.** Promotes tourism along Route 66; and

**c.** Implements recommendations adopted in Plan 66.

*(Ord. No. 25322, §§ 1, 3, 4, 5-22-2024)*

## Section 20.080. NIO, Neighborhood Infill Overlay.

### A. General.

**1. Purpose and intent.** The Neighborhood Infill Overlay (NIO) establishes zoning regulations that are intended to promote the development of alternative infill housing in established neighborhoods. The overlay allows for a variety of residential housing types in a manner that is compatible, in mass and scale, with the character of surrounding properties. The regulations are also intended to promote housing types that accommodate households of varying sizes and income levels and provide for a more efficient use of residential land.

**2. Applicability.** Except as otherwise expressly stated, the Neighborhood Infill Overlay regulations of this section apply to RS-3, RS-4, RS-5, RD, RT, RM-0, RM-1, RM-2 and RM-3 zoning districts only within the boundaries of the Neighborhood Infill Overlay districts to all new permitted uses and structures and all building alterations and site modifications that require a building permit.

**3. Nonconformities.** Nonconformities that exist within the overlay district are governed by the regulations of Chapter 80 except in residential zoning districts, a single detached house, duplex, or multi-unit house, where the particular residential building type is allowed by right or is allowed by special exception and a special exception has been granted, may be erected on a nonconforming lot without complying with the minimum lot area, minimum lot area per unit, minimum lot width, minimum street frontage or minimum open space per unit requirements of the subject zoning district, provided that at least fifty percent (50%) of the lot area remains as open space. All other lot and building regulations apply, except that detached houses, duplexes, or multi-unit houses may be erected on corner lots that are nonconforming with regard to lot width, subject to a reduced minimum street side building setback of five (5) feet. Garages that are accessed through a side yard abutting a street must be set back at least twenty (20) feet.

**4. Conflicting regulations.** All applicable regulations of the underlying base zoning district apply to property in the Neighborhood Infill Overlay unless otherwise expressly stated in the Neighborhood Infill Overlay regulations. For properties with approved development plans (PUD, CO, MPD, Optional Development Plan), the approved development plan and development standards apply.

**B. Use regulations—Residential, household living.** Residential, household living principal uses are allowed in the Neighborhood Infill Overlay district in accordance with Table 20-4.

1. **Permitted uses.** Residential, household living uses identified with a "P" symbol are allowed by right in the Neighborhood Infill Overlay district within the particular base zoning district, subject to compliance with any supplemental regulations identified in Chapter 40 and all other applicable regulations of this zoning code.
2. **Special exception uses.** Uses identified with an "S" may be allowed and if reviewed and approved in accordance with the special exception procedures of Section 70.120.
3. **Prohibited uses.** Uses identified with an "-" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in subsection 35.020E.) to fall within any defined use category are also prohibited.

**Table 20-4: Neighborhood Infill Overlay District Use Regulations for Household Living**

| USE CATEGORY | Base Zoning Districts: | | | | | | | | |
|---|---|---|---|---|---|---|---|---|---|
| | RS- | | | | | RM- | | | |
| Subcategory<br>Specific use | 3 | 4 | 5 | RD | RT | 0 | 1 | 2 | 3 |
| **RESIDENTIAL** | | | | | | | | | |
| **Household Living (if in building type allowed in Table 20-4.5)** | | | | | | | | | |
| Single household | P | P | P | P | P | P | P | P | P |
| Two households on single lot | P | P | P | P | P | P | P | P | P |
| Three or more households on single lot | P | P | P | P | P | P | P | P | P |

**C. Residential building types for household living.** In the Neighborhood Infill Overlay district, within the particular base zoning district, household living uses must be located in the residential building types identified in Table 20-4.5. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010.

**Table 20-4.5: Neighborhood Infill Overlay District Building Type Regulations for Household Living**

| USE CATEGORY | Base Zoning Districts: | | | | | | | | |
|---|---|---|---|---|---|---|---|---|---|
| | RS- | | | | | RM- | | | |
| Subcategory<br>Specific use<br>Building Types | 3 | 4 | 5 | RD | RT | 0 | 1 | 2 | 3 |
| **RESIDENTIAL** | | | | | | | | | |
| **Household Living** | | | | | | | | | |
| Single household | | | | | | | | | |
| Detached house | P | P | P | P | P | P | P | P | P |
| Patio House | P | P | P | P | P | P | P | P | P |
| Townhouse | | | | | | | | | |
| 2-unit townhouse | P | P | P | P | P | P | P | P | P |
| 3+unit townhouse | P | P | P | P | P | P | P | P | P |

| Table 20-4.5: Neighborhood Infill Overlay District Building Type Regulations for Household Living | | | | | | | | | |
|---|---|---|---|---|---|---|---|---|---|
| USE CATEGORY | Base Zoning Districts: | | | | | | | | |
| | RS- | | | | | RM- | | | |
| Subcategory Specific use Building Types | 3 | 4 | 5 | RD | RT | 0 | 1 | 2 | 3 |
| Manufactured housing unit | S | S | S | S | S | S | S | S | S |
| Manufactured housing subdivision | - | - | - | - | - | - | - | - | - |
| Mobile home | - | - | - | - | - | - | - | - | - |
| Mixed-use building | - | - | - | - | - | - | S | S | S |
| Vertical mixed-use building | - | - | - | - | - | - | S | S | S |
| Two households on single lot | | | | | | | | | |
| Duplex | P | P | P | P | P | P | P | P | P |
| Mixed-use building | - | - | - | - | - | - | P | P | P |
| Vertical mixed-use building | - | - | - | - | - | - | P | P | P |
| Three or more households on single lot | | | | | | | | | |
| Cottage house development | P | P | P | P | P | P | P | P | P |
| Multi-unit house | P | P | P | P | P | P | P | P | P |
| Apartment/ condo | P [1] | P [1] | P [1] | P [1] | P [1] | P | P | P | P |
| Mobile home park | - | - | - | - | - | - | - | - | - |
| Mixed-use building | - | - | - | - | - | - | P | P | P |
| Vertical mixed-use building | - | - | - | - | - | - | P | P | P |

1. **Table 20-4.5 Notes.** The following notes refer to the bracketed numbers (e.g.," [1]") in (Table 20-4.5):

**[1]** Apartment/condo is limited to no more than 6 dwelling units on a single lot.

**D. Lot and building regulations.** In the Neighborhood Infill Overlay district, the lot and building regulations of Table 20-5 apply in the RS-3, RS-4, RS-5, RD, RT, RM-0, RM-1, RM-2, RM-3 base zoning districts to Duplex, Townhouse, Cottage House Development, Multi-unit House and Apartment/Condo building types. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90. Regulations governing accessory uses and structures can be found in Chapter 45.

| Table 20-5: Neighborhood Infill Overlay District Lot and Building Regulations | |
|---|---|
| **Minimum Lot Area (sq. ft.)** | |
| Townhouse | 1,600 |
| Duplex, Cottage House Development, Multi-Unit House, Apartment/Condo | 4,000 |
| **Minimum Lot Area per Unit (sq. ft.)** | N/A |
| **Minimum Lot Width** | |
| Townhouse | 20 |

| Table 20-5: Neighborhood Infill Overlay District Lot and Building Regulations | |
|---|---|
| Duplex, Cottage House Development, Multi-Unit House, Apartment/Condo | 40 |
| **Minimum Street Frontage (feet)** | 20 [1] |
| **Minimum Open Space per Unit (sq. ft.)** | 100 |
| **Minimum Building Setbacks (feet)** | |
| Street | 10 [2] |
| Side | 3 [3] |
| Rear | 10 |
| **Maximum Building Height (feet)** | 35 |

1. **Table 20-5 Notes.** The following notes refer to the bracketed numbers (e.g.," [1]") in (Table 20-5):

**[1]** Minimum street frontage requirements apply to townhouse developments, not to individual townhouse units. Cottage house developments require minimum street frontage of 50 feet.

**[2]** Minimum setback for street-facing garage doors is 20 feet.

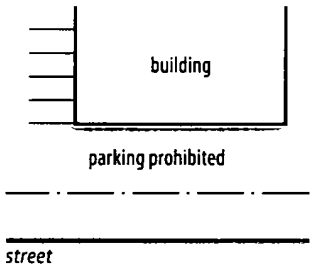
**[3]** No side setback is required for interior units in townhouse developments. Side setback applies to end units.

**E. Parking regulations.**

1. **Minimum parking ratios.** The minimum parking ratios established in Section 55.020, Table 55-1 for a Household Living use are reduced by 50% in the Neighborhood Infill Overlay district.

2. **Location.** Parking spaces, not including drive aisles, are prohibited between building and street right-of-way (see Figure 20-5) on lots occupied by a 3+ Unit Townhouse, Cottage House Development, Multi-unit House and Apartment/Condo.

**Figure 20-5:
Parking Prohibited
between Building
and Street
Right-of-Way**




*(Ord. No. 24644, § 3, 7-21-2021; Ord. No. 24725, §§ 8, 9, 11-17-2021; Ord. No. 24825, §§ 2, 3, 5-18-2022; Ord. No. 25429, §§ 6, 7, 10-30-2024)*

## Section 20.090. NCO, Neighborhood Character Overlay.

### A. General.

1. **Purpose and Intent.** The Neighborhood Character Overlay (NCO) district establishes zoning regulations that are intended to promote compatibility of infill housing in established neighborhoods.

2. **Applicability.**

   **a.** The regulations of this section apply to newly permitted detached houses, duplexes, and accessory buildings and any building alterations and site modifications for detached houses, duplexes, or accessory buildings that require a building permit within the boundaries of the NCO district. Any building, development, or structure for which a building permit was issued, or a complete building application has been accepted for processing prior to the effective date of the NCO district may be completed in conformance with the issued building permit and other applicable permits and conditions, even if such building, development, or structure does not comply with the provisions of the NCO district. If the building, development, or structure is not commenced and completed within the time allowed under the original building permit and any authorized permit extension, the building, development, or structure may be constructed, completed, and occupied only if it complies with the regulations of the NCO district.

   **b.** Complete applications for development plans, special exceptions, variances, or other zoning-related approvals that are pending approval on the date a property is supplementally zoned NCO must be reviewed wholly under the zoning regulations applicable to the property immediately preceding the date the property was supplementally zoned NCO. Building permits for construction and development approved under such zoning approvals may be issued in accordance with Section 20.090 A.2.c.

   **c.** The development administrator is authorized to issue building permits for construction or development approved before the date a property was supplementally zoned NCO and for developments pending approval under Section 20.090 A.2.b. even if such building, development, or structure does not fully comply with the NCO district regulations. If building is not commenced and completed within the time allowed under the building permit and any authorized permit extension, then the building, development, or structure may be constructed, completed, and occupied only if it complies with the NCO district regulations.

3. **Conflicting Regulations.** All applicable regulations of the underlying base zoning district apply to property in the NCO district unless otherwise expressly stated in the NCO district regulations. For properties with approved development plans (PUD, CO, MPD, Optional Development Plan), the approved development plan and development standards apply.

4. **Nonconformities.** Nonconformities that exist within the NCO district are governed by the regulations of Chapter 80.

**B. Lot and Building Regulations.** In the Neighborhood Character Overlay district, the supplemental regulations of this section apply to detached houses and duplexes, and lots being used for detached houses and duplexes. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90.

1. **Maximum Building Height.** The maximum allowable building height is thirty (30) feet.
2. **Maximum Building Width.** The maximum allowable building width is forty (40) feet. For the purposes of the Neighborhood Character Overlay district, building width shall be measured from the exterior wall closest to the side setback to the exterior wall closest to the opposite side setback, parallel to the street setback. For corner lots, building width is measured parallel to the street setback not designated as the side street setback.
3. **Maximum Driveway Width.** Driveways serving detached houses or duplexes may not exceed eighteen (18) feet in width within the right-of-way and within the street setback. Maximum width is applied to the composite of all driveways if multiple curb cuts are provided.
4. **Garage Setback.** Street-facing garage doors must be set back at least 36 feet and may not be located closer to the street than the front facade of the principal residential building. On corner lots, the side street setback along a non-arterial street may be reduced to twenty (20) feet.

**C. Accessory Building Regulations.** In the Neighborhood Character Overlay, the supplemental regulations of this section apply to all detached accessory buildings.

*(Ord. No. 24959, § 1, 11-16-2022; Ord. No. 25429, § 8, 10-30-2024)*

## Section 20.100. NIO-2, Neighborhood Infill Overlay-2.

**A. General.**

1. **Purpose and Intent.** The Neighborhood Infill Overlay-2 (NIO-2) establishes zoning regulations that are intended to promote the development of alternative infill housing in established neighborhoods. The overlay allows for a variety of residential housing types in a manner that is compatible, in mass and scale, with the character of surrounding properties. The regulations are also intended to promote housing types that accommodate households of varying sizes and income levels and provide for a more efficient use of land for residential purposes.
2. **Applicability.** Except as otherwise expressly stated, the Neighborhood Infill Overlay regulations of this section apply to RS-3, RS-4, RS-5, RD, RT, RM-0, RM-1, RM-2, RM-3, RMH, OL, OM, OMH, OH, CS, CG, CH, IL, IM, and IH zoning districts only within the boundaries of the Neighborhood Infill Overlay-2 districts to all new permitted uses and structures and all building alterations and site modifications that require a building permit.
3. **Nonconformities.** Nonconformities that exist within the NIO-2 district are governed by the regulations of Chapter 80 except in residential zoning districts, a single detached house, duplex, or multi-unit house, where the particular residential building type is allowed by right or is allowed by special exception and a special exception has been granted, may be erected on a nonconforming lot without complying with the minimum lot area, minimum lot area per unit, minimum lot

width, minimum street frontage or minimum open space per unit requirements of the subject zoning district, provided that at least fifty percent (50%) of the lot area remains as open space. All other lot and building regulations apply, except that detached houses, duplexes, or multi-unit houses may be erected on corner lots that are nonconforming with regard to lot width, subject to a reduced minimum street side building setback of five (5) feet. Garages that are accessed through a side yard abutting a street must be set back at least twenty (20) feet.

4. **Conflicting Regulations.** All applicable regulations of the underlying base zoning district apply to property in the NIO-2 district unless otherwise expressly stated in the NIO-2 regulations. For properties with approved development plans (PUD, CO, MPD, Optional Development Plan), the approved development plan and development standards apply.

**B. Use Regulations - Residential, Household Living.** Residential, household living principal uses are allowed in the NIO-2 district in accordance with Table 20-6.

1. **Permitted Uses.** Residential, household living uses identified with a "P" symbol are allowed by right in the NIO-2 district within the particular base zoning district, subject to compliance with any supplemental regulations identified in Chapter 40 and all other applicable regulations of this zoning code.

2. **Special Exception Uses.** Uses identified with an "S" may be allowed if reviewed and approved in accordance with the special exception procedures of Section 70.120.

3. **Prohibited Uses.** Uses identified with an "-" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in subsection 35.020-E) to fall within any defined use category are also prohibited.

**Table 20-6: NIO-2 District Use Regulations for Household Living**

| Use Category | Base Zoning Districts: | | | | | | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|
| | RS- | | | | | RM- | | | | RMH | O, C, and I |
| Subcategory Specific use | 3 | 4 | 5 | RD | RT | 0 | 1 | 2 | 3 | | All |
| **RESIDENTIAL** | | | | | | | | | | | |
| **Household Living (if in building type allowed in Table 20-7)** | | | | | | | | | | | |
| Single household | P | P | P | P | P | P | P | P | P | P | P |
| Two households on single lot | P | P | P | P | P | P | P | P | P | P | P |
| Three or more households on single lot | P | P | P | P | P | P | P | P | P | P | P |

**C. Residential Building Types for Household Living.** In the NIO-2 district, within the particular base zoning district, household living uses must be located in the residential building types identified in Table 20-7. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010.

## Table 20-7: NIO-2 District Building Type Regulations for Household Living

| USE CATEGORY | RS- | | | | | Base Zoning Districts: RM- | | | | RMH | O, C, and I |
|---|---|---|---|---|---|---|---|---|---|---|---|
| Subcategory Specific use Building Types | 3 | 4 | 5 | RD | RT | 0 | 1 | 2 | 3 | | All |
| **RESIDENTIAL** | | | | | | | | | | | |
| **Household Living** | | | | | | | | | | | |
| **Single household** | | | | | | | | | | | |
| Detached House | P | P | P | P | P | P | P | P | P | P | P |
| Patio House | P | P | P | P | P | P | P | P | P | P | P |
| **Townhouse** | | | | | | | | | | | |
| 2-unit townhouse | P | P | P | P | P | P | P | P | P | P | P |
| 3+-unit townhouse | P | P | P | P | P | P | P | P | P | P | P |
| Manufactured housing unit [2] | P/S | P/S | P/S | P/S | P/S | P/S | P/S | P/S | P/S | P | P/S |
| Manufactured housing subdivision | - | - | - | - | - | - | - | - | - | P | P |
| Mobile home | - | - | - | - | - | - | - | - | - | P | - |
| Mixed-use building | - | - | - | - | - | - | S | S | S | P | P |
| Vertical mixed-use building | - | - | - | - | - | - | S | S | S | P | P |
| **Two households on single lot** | | | | | | | | | | | |
| Duplex | P | P | P | P | P | P | P | P | P | P | P |
| Mixed-use building | - | - | - | - | - | - | P | P | P | P | P |
| Vertical mixed-use building | - | - | - | - | - | - | P | P | P | P | P |
| **Three or more households on single lot** | | | | | | | | | | | |
| Cottage house development | P | P | P | P | P | P | P | P | P | P | P |
| Multi-unit house | P | P | P | P | P | P | P | P | P | P | P |
| Apartment/ condo | P[1] | P[1] | P[1] | P[1] | P[1] | P | P | P | P | P | P |
| Mobile home park | - | - | - | - | - | - | - | - | - | P | - |
| Mixed-use building | - | - | - | - | - | - | P | P | P | P | P |
| Vertical mixed-use building | - | - | - | - | - | - | P | P | P | P | P |

1. **Table 20-7 Notes.** The following notes refer to the bracketed numbers (e.g.," [1]") in (Table 20-7):
   **[1]** Apartment/condo is limited to no more than 4 dwelling units on a single lot.
   **[2]** Manufactured housing units manufactured in 2016 or later are permitted by right if they are skirted with masonry, have a street-facing entrance, and are attached to a permanent foundation. All other manufactured housing units require a special exception approved in accordance with the procedures of Section 70.120.

**D. Lot and Building Regulations.** In the NIO-2 district, the lot and building regulations of Table 20-8 apply in the RS-3, RS-4, RS-5, RD, RT, RM-0, RM-1, RM-2, RM-3,

RHM, OL, OM, OMH, OH, CS, CG, CH, IL, IM, and IH base zoning districts to Detached House, Manufactured Housing Unit, Duplex, Townhouse, Cottage House Development, Multi-unit House and Apartment/Condo building types. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90. Regulations governing accessory uses and structures can be found in Chapter 45.

**Table 20-8: NIO-2 District Lot and Building Regulations**

| | |
|---|---|
| **Minimum Lot Area (sq. ft.)** | |
| Townhouse | 1,600 |
| Detached House, Manufactured Housing Unit, Duplex, Cottage House Development, Multi-Unit House, Apartment/Condo | 4,000 |
| **Minimum Lot Area per Unit (sq. ft.)** | N/A |
| **Minimum Lot Width** | |
| Townhouse | 20 |
| Detached House, Manufactured Housing Unit, Duplex, Cottage House Development, Multi-Unit House, Apartment/Condo | 40 |
| **Minimum Street Frontage (feet)** | 20 [1] |
| **Minimum Open Space per Unit (sq. ft.)** | 100 |
| **Minimum Building Setbacks (feet)** | |
| Street | 10 [2] |
| Side | 3 [3] |
| Rear | 10 |
| **Maximum Building Height (feet)** | 35 |

Table 20-8 Notes:

The following notes refer to the bracketed numbers (e.g.," [1]") in (Table 20-8):

**[1]** Minimum street frontage requirements apply to townhouse developments, not to individual townhouse units. Cottage house developments require minimum street frontage of 50 feet.

**[2]** Minimum setback for street-facing garage doors is 20 feet.

**[3]** No side setback is required for interior units in townhouse developments. Side setback applies to end units.

**D. Home Occupations.** In the NIO-2 district, both Type 1 and Type 2 home occupations are permitted as a matter of right.

**E. Modification to Lot and building regulations for the IL Zoning Districts.**

**1.** In the NIO-2 district, the building setback from AG, AG-R and R districts is reduced from seventy-five (75) feet to ten (10) feet in the IL base zoning district for all non-residential uses.

*(Ord. No. 25087, § 1, 7-19-2023; Ord. No. 25330, § 3, 6-5-2024; Ord. No. 25429, §§ 9, 10, 10-30-2024)*

## CHAPTER 25. SPECIAL DISTRICTS

Section 25.010. General.
Section 25.020. AG, Agricultural District and AG-R, Agricultural-Residential District.
Section 25.030. PK, Parking district.
Section 25.040. CO, Corridor district.
Section 25.050. SR, Scientific Research district.
Section 25.060. IMX, Institutional Mixed-Use.
Section 25.070. MPD, Master Planned Development district.

### Section 25.010. General.

**A. Purpose.** Like overlay zoning districts, special purpose zoning districts are tools for dealing with unique neighborhoods or settings or accomplishing special planning and zoning goals. Unlike overlay districts, however, special districts are base zoning classifications; they do not "over-lay" other base zoning districts.

**B. Establishment.** Except as otherwise expressly stated, special districts may be established, amended or removed only in accordance with the zoning map amendment procedures of Section 70.030.

### Section 25.020. AG, Agricultural District and AG-R, Agricultural-Residential District.

**A. Purposes.**

**1.** The AG, Agricultural district is primarily intended to accommodate agricultural, mining or mineral processing uses in rural areas. The district also allows very low-density residential and other uses and serves as a holding zone pending an orderly transition to more urban development that can be efficiently served by public facilities and services.

**2.** The AG-R, Agricultural-Residential district is primarily intended for areas of the city that are generally located on the outer edge of urbanized development. The district is designed to acknowledge the desire for lower-density residential development with larger lot sizes. While land use regulations and lot and building standards are primarily geared towards residential uses, some agricultural uses could also be permitted.

**B. Use regulations.**

**1.** Uses are allowed in AG and AG-R districts in accordance with Table 25-1. These uses are described in Chapter 35. Uses identified with a "P" are permitted as-of-right. Uses identified with an "S" may be allowed only if reviewed and approved in accordance with the special exception procedures of Section 70.120. All allowed uses are subject to compliance with all other applicable regulations of this zoning code.

**2.** Uses identified with an "-" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in Subsection 35.020E.) to fall within any defined use category are also prohibited.

## Table 25-1: AG and AG-R District Use Regulations

| USE CATEGORY<br>Subcategory (Section 35.020)<br>Specific use | AG | AG-R | Supplemental Regulations |
|---|---|---|---|
| **RESIDENTIAL** | | | |
| Household Living (if in allowed Building type indicated in Table 25.1-5) | | | |
| Single household | P | P | |
| Group Living | | | Section 40.160 |
| Community group home | S | S | Section 40.100 |
| Convent/monastery/ novitiate | S | S | |
| **PUBLIC, CIVIC AND INSTITUTIONAL** | | | |
| Airport | S | S | |
| Cemetery | S | S | Section 40.150 |
| College | S | S | Section 40.070 |
| Detention and Correctional Facility | S | S | Section 40.130 |
| Fraternal Organization | S | S | Section 40.140 |
| Governmental Service or similar functions | S | S | |
| Hospital | S | S | Section 40.070 |
| Library or Cultural Exhibit | S | S | Section 40.200 |
| Natural Resource Preservation | P | P | |
| Parks and Recreation | S | S | |
| Postal Service | S | S | |
| Religious Assembly | S | S | Section 40.320 |
| School | | | |
| Established on or before Jan. 1, 1998 | P | P | Section 40.350 |
| Others | S | S | Section 40.350 |
| Utilities and Public Service Facility | | | |
| Minor | P | P | |
| Major | S | S | |
| Wireless Communication Facility | | | |
| Freestanding tower | S | S | Section 40.420 |
| Building or tower-mounted antenna | P | P | Section 40.420 |
| **COMMERCIAL** | | | |
| Assembly and Entertainment | | | Section 40.040 |
| Indoor gun club | S | - | |
| Outdoor gun club | S | - | |
| Stable or riding academy | P | - | |
| Other indoor assembly and entertainment | S | - | |
| Other outdoor assembly and entertainment | S | - | |
| Day Care | | | |
| Family Child Care Home established on or before Nov. 15, 2023[3] | P | P | Section 40.120 |

| USE CATEGORY<br>Subcategory (Section 35.020)<br>Specific use | AG | AG-R | Supplemental Regulations |
|---|---|---|---|
| Family Child Care Home established after Nov. 15, 2023 | S | S | Section 40.120 |
| Child Care Center | S | S | Section 40.120 |
| Farmers market | S | S | Section 40.430 |
| Funeral and Mortuary Service | | | |
| Crematory | S | - | |
| Lodging | | | |
| Bed & breakfast | S | S | Section 40.060 |
| Rural retreat | S | - | |
| Short-term rental | P | P | Section 40.375 |
| Marina | S | - | |
| **INDUSTRIAL** | | | Section 40.180 |
| Mining or Mineral Processing | S | - | Section 40.230 |
| **AGRICULTURAL** | | | |
| Animal Husbandry [1] | P | - | |
| Community Garden | P | P | Section 40.090 |
| Farm-, Market- or Community-supported [2] | P | S | Section 40.090 |
| Horticulture Nursery | P | - | Section 40.225 |
| **OTHER** | | | |
| Oil or Gas Well | S | S | Section 40.270 |

**3. Table Notes:**

**[1]** See Title 2, Chapter 2 of the Tulsa Revised Ordinances.

**[2]** A Farm, Market- or Community-supported, may only be allowed in an AG-R district where the land area of a single parcel is greater than 2 acres.

**[3]** Only family child care homes that were operating as a principal-use family child care home under a valid license issued from the State of Oklahoma on or before November 15, 2023, and have been issued a certificate of occupancy for a family child care home by December 31, 2025, may be considered established for the purposes of this provision. Said license may be for a Family Child Care Home or Large Family Child Care Home as permitted by the State of Oklahoma, provided that the child care home has a licensed capacity of no greater than 12 children. At the time the license expires, is revoked by the State of Oklahoma, is transferred to another entity, or the child care home ceases operation for longer than 6 months, the property will lose its status as established and the family child care home will require a Special Exception.

**C. Residential building types.** Residential uses allowed in AG and AG-R districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. The following residential building types are allowed in AG and AG-R districts:

**Table 25-1.5: AG District Building Type Regulations for Household Living**

| USE CATEGORY<br>Subcategory (Section 35.020)<br>Specific use<br>Building Type | AG | AG-R | Supplemental Use Regulations |
|---|---|---|---|
| **RESIDENTIAL** | | | |
| Household Living | | | |
| Single household | | | |
| Detached house | P | P | |
| Manufactured housing unit | S | S | Section 40.210 |
| P= Permitted; S=Special Exception Approval Required; - = Prohibited | | | |

**D. Lot and Building Regulations.** The lot and building regulations of Table 25-2 apply to all principal uses and structures in AG and AG-R districts, except as otherwise expressly stated in this zoning code. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Additional regulations governing accessory uses and structures can be found in Chapter 45.

**Table 25-2: AG District Lot and Building Regulations**

| Regulations | AG | AG-R |
|---|---|---|
| Min. Lot Area | 2 acres | 1 acre |
| Min. Lot Area per Unit | 2 acres | 1 acre |
| Minimum Lot Width (feet) | 200 | 150 |
| Min. Lot Frontage (feet) | 30 | 30 |
| Min. Building Setbacks (feet) | | |
| Street | 25 | 25 |
| Side (one side/other side) | 10/5 | 15 |
| Rear | 40 | 25 |
| Max. Building Height (feet) | - | 35 |

*(Ord. No. 24328, § 4, 3-11-2020; Ord. No. 24725, §§ 10, 11, 11-17-2021; Ord. No. 25192, § 4, 12-6-2023; Ord. No. 25429, §§ 11, 12, 10-30-2024; Ord. No. 25604, § 4, 6-18-2025)*

## Section 25.030. PK, Parking district.

**A. Purpose.** The PK, Parking district is primarily intended to accommodate off-street parking areas bordering nonresidential zoning districts, while protecting nearby residential areas from adverse impacts associated with spillover parking into residential neighborhoods.

**B. Use regulations.** Parking lots, including parking structures, are the only uses permitted in the PK district. Such parking lots may be used for off-site accessory parking or for non-accessory parking.

**C. Lot and building regulations.**

1. **Table of regulations.** The lot and building regulations of Table 25-3 apply to all principal uses and structures in PK districts, except as otherwise expressly stated in this zoning code. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Additional regulations governing accessory uses and structures can be found in Chapter 45.

**Table 25-3: PK District Lot and Building Regulations**

| Regulations | PK |
|---|---|
| Minimum Lot Frontage (feet) | 20 |
| Min. Building Setbacks (feet) | |
| Street | 10[1] |
| From abutting RE, RS, RD, AG-R district | 10[2] |
| Max. Lot Coverage by Buildings and Parking Surface Area (%) | 90 |
| Maximum Building Height (feet) | 35[3] |

**2. Table notes.** The following notes refer to the bracketed numbers (e.g.," [1]") in Table 25-3:

**[1]** No part of any parking space, drive aisle or fence or wall that is over 4 feet in height may be located closer to a minor street right-of-way line than any residential building occupying an abutting lot with frontage on the same minor street as the parking lot (see Figure 25-1 and Figure 25-2).

**Figure 25-1: Parking Setback from Street on Lots Abutting Residential Buildings**

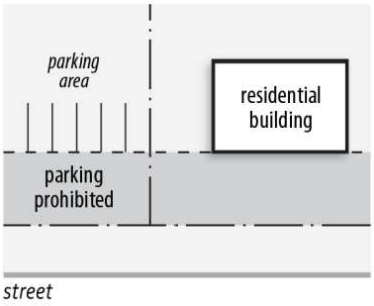
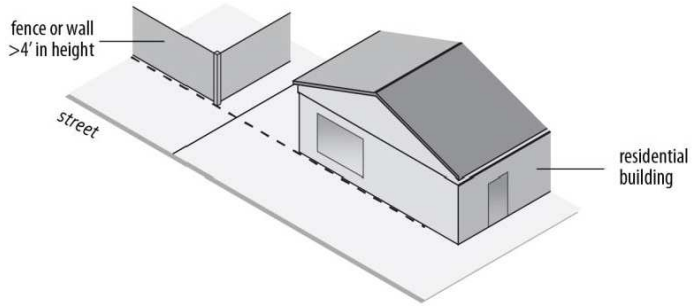



**Figure 25-2: Fence Setback from Street Abutting Residential Building**




**[2]** When a PK district abuts an R or AG-R district, a masonry screening wall must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

**[3]** Buildings in the PK district may not exceed 35 feet in height, unless reviewed and approved in accordance with the special exception procedures of Section 70.120.

## Section 25.040. CO, Corridor district.

**A. Purpose.** The CO, Corridor district is established to allow and encourage high-intensity, multi-use development, in compliance with an approved development plan, in order to:

**1.** Accommodate intensive uses and development near high-capacity thoroughfares;

**2.** Allow for a wide range of lifestyles and housing types close to employment, recreational, shopping, and cultural facilities;

**3.** Maximize the interrelationship between land use and transportation and in particular encourage development patterns compatible with the evolution of transit;

**4.** Provide direct, safe and convenient non-motorized travel routes within the boundaries of the development site, as well as connections to abutting properties;

**5.** Maximize use of higher capacity segments within the city's overall transportation network;

**6.** Accommodate a more productive use of land consistent with the public objectives and standards of accessibility and land use compatibility; and

**7.** Maintain the traffic carrying capacity of the city's transportation network by encouraging access from internal streets or private drives.

**B. Use regulations.**

**1.** Uses identified with a "P*" in Table 25-4 may be approved in CO districts at the time of development plan approval. Only uses approved through the development plan approval process of Section 70.040 are allowed. Allowed uses are subject to compliance with all other applicable regulations of this zoning code.

**2.** Uses identified with an "-" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in Subsection 35.020E.) to fall within any defined use category are also prohibited.

**Table 25-4: CO District Use Regulations**

| **USE CATEGORY**<br>**Subcategory (Section 35.020)**<br>**Specific use** | **CO** | **Supplemental Regulations** |
|---|---|---|
| **RESIDENTIAL** | | |
| Household Living (if in allowed building type indicated in Section 25-4.5) | | |
| Single household | P* | |
| Two households on single lot | P* | |
| Three or more households on single lot | P* | |
| Group Living | P* | Section 40.160 |
| **PUBLIC, CIVIC AND INSTITUTIONAL** | | |
| Airport | P* | |

| USE CATEGORY<br>Subcategory (Section 35.020)<br>Specific use | CO | Supplemental Regulations |
|---|---|---|
| Cemetery | P* | Section 40.150 |
| College or University | P* | Section 40.070 |
| Day Care | P* | Section 40.120 |
| Family Child Care Home | P* | Section 40.120 |
| Child Care Center | P* | Section 40.120 |
| Detention and Correctional Facility | P* | Section 40.130 |
| Fraternal Organization | P* | |
| Governmental Service or similar functions | P* | |
| Hospital | P* | Section 40.070 |
| Library or Cultural Exhibit | P* | |
| Natural Resource Preservation | P* | |
| Parks and Recreation | P* | |
| Postal Services | P* | |
| Religious Assembly | P* | Section 40.320 |
| Safety Service | P* | |
| School | P* | |
| Utilities and Public Service Facility (Major or Minor) | P* | |
| Wireless Communication Facility | P* | |
| **COMMERCIAL** | | |
| Animal service | P* | Section 40.020 |
| Assembly and Entertainment | P* | Section 40.040 |
| Broadcast or Recording Studio | P* | |
| Commercial Service | P* | Section 40.080 |
| Research Service | P* | Section 40.225 |
| Farmers market | P* | Section 40.430 |
| Financial Services | P* | |
| Funeral or Mortuary Service | P* | |
| Lodging | P* | Section 40.170 |
| Marina | P* | |
| Office | P* | Section 40.260 |
| Parking, Non-accessory | P* | |
| Restaurants and Bars | P* | |
| Restaurant | P* | Section 40.330 |
| Bar | P* | Section 40.050 |
| Retail Sales | P* | Section 40.340 |
| Medical Marijuana Dispensary | P* | Section 40.225 |
| Self-service Storage Facility | P* | Section 40.360 |
| Sexually Oriented Business Establishment | P* | Section 40.370 |
| Studio, Artist or Instructional Service | P* | Section 40.380 |
| Trade School | P* | |

| USE CATEGORY<br>Subcategory (Section 35.020)<br>Specific use | CO | Supplemental Regulations |
|---|---|---|
| Vehicle Sales and Service | P* | Section 40.400 |
| **WHOLESALE, DISTRIB. & STORAGE** | | Section 40.410 |
| Equip. & Materials Storage, Outdoor | P* | |
| Trucking and Transportation Terminal | P* | |
| Warehouse | P* | |
| Wholesale Sales and Distribution | P* | |
| **INDUSTRIAL** | | Section 40.180 |
| Low-impact Manufacturing & Industry | P* | |
| Mining or Mineral Processing | - | |
| **RECYCLING** | | Section 40.310 |
| Consumer Material Drop-off Station | P* | |
| **AGRICULTURAL** | | |
| Community Garden | P* | Section 40.090 |
| Farm-, Market- or Community-supported | P* | |
| **OTHER** | | |
| Drive-in or Drive-through Facility (as a component of an allowed use) | P* | |
| Oil or Gas Well | P*/S | Section 40.270 |
| Off-Premise Outdoor Advertising Sign [1] | P* | |

**[1]** Allowed only when located within freeway sign corridors. See Chapter 60 for other supplemental regulations that apply to off-premise outdoor advertising signs.

**C. Residential building types.** Residential uses allowed in CO districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. The following residential building types are allowed in CO districts.

**Table 25-4.5: CO District Building Type Regulations for Household Living**

| USE CATEGORY<br>Subcategory (Section 35.020)<br>Specific use | CO | Supplemental Regulations |
|---|---|---|
| **RESIDENTIAL** | | |
| Household Living | | |
| Single household | P* | |
| Detached house | P* | |
| Patio House | P* | |
| Townhouse | P* | |
| 2-unit townhouse | P* | |
| 3+-unit townhouse | P* | |
| Manufactured housing unit | P* | |
| Manufactured housing subdivision | P* | |

| USE CATEGORY<br>Subcategory (Section 35.020)<br>Specific use | CO | Supplemental Regulations |
|---|---|---|
| Mobile home | P* | |
| Mixed-use building | P* | |
| Vertical mixed-use building | P* | |
| Two households on single lot | P* | |
| Duplex | P* | |
| Mixed-use building | P* | |
| Vertical mixed-use building | P* | |
| Three or more households on single lot | P* | |
| Cottage house development | P* | |
| Multi-unit house | P* | |
| Apartment/condo | P* | |
| Mobile home park | P* | |
| Mixed-use building | P* | |
| Vertical mixed-use building | P* | |
| *P= if allowed in approved development plan | | |

**D. Lot and building regulations** The lot and building regulations that apply within a CO zoning district must be established at the time of development plan approval by the City Council.

**E. Special procedures applicable to Corridor (CO) district rezonings and developments.**

**1. Overview of required approval process.**

**a.** A property owner request for rezoning to the CO zoning district requires review and approval of a zoning map amendment (see Section 70.030) and a development plan (see Section 70.040) for the subject property.

**b.** The planning commission is authorized to recommend and the City Council is authorized to approve modifications and adjustments to otherwise applicable parking, sign, landscaping, screening and outdoor lighting regulations concurrently with development plan approval.

**c.** After approval of the zoning map amendment and development plan, site plan review and approval is required in accordance with the procedures of Section 70.050.

**d.** No building permit may be issued and no building or development may occur in a CO zoning district until a zoning clearance permit has been issued in accordance with Section 70.080.

**2. Supplemental review and approval criteria.** In making recommendations and decisions on CO district zoning map amendments and development plans, review and decision-making bodies must consider the zoning map amendment criteria of Subsection 70.030H. and the following factors:

**a.** Whether the proposed corridor development will be compatible with the existing and expected development of surrounding areas;

**b.** Whether the proposed corridor development is a unified treatment of the development possibilities of the project site;

**c.** Whether provision has been made for proper access, circulation, and functional relationships of uses; and

**d.** Whether the proposed corridor development is consistent with the stated purposes of this zoning code.

3. **Restrictive covenants.** No building permit may be issued, and no building or development may occur in a CO zoning district until covenants necessary to reasonably ensure continued compliance with the approved development plan are recorded in the County Clerk's office. Such covenants may be established in a subdivision plat or in a separately recorded legal instrument. In order that the public interest may be protected, the City of Tulsa must be made beneficiary of the covenants pertaining to such matters as location of uses, height of structures, setbacks, screening, and access. Such covenants must provide that the City of Tulsa may enforce compliance of the covenants, and further provide that amendment of the covenants requires planning commission approval and the filing of record of a written amendment to covenants, endorsed by the planning commission.

4. **Issuance of building permits.** Building permits may be issued only after a zoning clearance permit has been issued in accordance with Section 70.080 and covenants have been recorded in accordance with Subsection 25.040E.3. Any permits issued must be in accordance with the approved development plan.

5. **Amendments.** The planning commission is authorized to approve minor amendments to an approved development plan as long as substantial compliance is maintained with the approved development plan. Major amendments must be processed as new development plans. See Subsection 70.040I.

6. **Abandonment of approved plans.** Abandonment of an approved development plan requires review and recommendation by the planning commission and approval by the City Council. Upon final action by the city council authorizing abandonment of the development plan, no building permits may be issued until a subsequent development plan has been approved and a zoning clearance permit has been issued or until the property has been rezoned to another zoning district and permits sought in accordance with the regulations applicable to the subject district.

*(Ord. No. 24725, § 12, 11-17-2021; Ord. No. 25192, § 5, 12-6-2023; Ord. No. 25604, § 5, 6-18-2025)*

## Section 25.050. SR, Scientific Research district.

**A. Purpose.** The SR, Scientific Research district is intended to accommodate and promote modern, scientific research facilities and institutions.

**B. Use regulations.**

1. Principal uses are allowed in SR districts in accordance with Table 25-5. These uses are described in Chapter 35. Uses identified with a "P" are permitted as-of-right. Uses identified with an "S" may be allowed if reviewed and approved in

accordance with the special exception procedures of Section 70.120. All allowed uses are subject to compliance with all other applicable regulations of this zoning code.

**2.** Uses identified with an "-" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in Subsection 35.020E.) to fall within any defined use category are also prohibited.

**Table 25-5: SR District Use Regulations**

| **USE CATEGORY**<br>**Subcategory (Section 35.020)**<br>**Specific use** | **SR** | **Supplemental Regulations** |
|---|---|---|
| RESIDENTIAL | | |
| Group Living | | Section 40.160 |
| Homeless center | S | Section 40.130 |
| Life care retirement center | S | |
| Re-entry facility | S | |
| Residential treatment center | S | Section 40.130 |
| Shelter, emergency and protective | S | Section 40.130 |
| Transitional living center | S | Section 40.130 |
| **PUBLIC, CIVIC AND INSTITUTIONAL** | | |
| Airport | S | |
| Cemetery | S | Section 40.150 |
| College or University | S | Section 40.070 |
| Day Care | S | Section 40.120 |
| Family Child Care Home | S | Section 40.120 |
| Child Care Center | S | Section 40.120 |
| Detention and Correctional Facility | S | Section 40.130 |
| Fraternal Organization | S | |
| Governmental Service or similar functions | S | |
| Hospital | S | Section 40.070 |
| Library or Cultural Exhibit | S | |
| Natural Resource Preservation | P | |
| Parks and Recreation | S | |
| Postal Services | S | |
| Religious Assembly | S | |
| Safety Service | P | |
| School | | Section 40.350 |
| Established on or before Jan. 1, 1998 | P | |
| Others | S | Section 40.350 |

| USE CATEGORY<br>Subcategory (Section 35.020) | SR | Supplemental Regulations |
|---|---|---|
| Utilities and Public Service Facility | | |
| Minor | P | |
| Major | S | |
| Wireless Communication Facility | | Section 40.420 |
| Freestanding tower | P | |
| Building or tower-mounted antenna | P | |
| **COMMERCIAL** | | |
| Assembly and Entertainment | | Section 40.040 |
| Indoor gun club | S | |
| Other indoor | - | |
| Outdoor gun club | S | |
| Other outdoor | - | |
| Broadcast or Recording Studio | P | |
| Commercial Service | | Section 40.080 |
| Research service | P | Section 40.225 |
| Farmers market | P | Section 40.135 |
| Financial Services (except as below) | P | |
| Personal credit establishment | - | Section 40.300 |
| Funeral or Mortuary Service | P | |
| Lodging | | |
| Bed & breakfast | S | Section 40.060 |
| Campgrounds and RV parks | - | |
| Hotel/motel | - | Section 40.170 |
| Marina | S | |
| Office | | Section 40.260 |
| Business or professional office | P | |
| Medical, dental or health practitioner office | P | Section 40.260 |
| Plasma center | - | Section 40.300 |
| Parking, Non-accessory | P | |
| **AGRICULTURAL** | | |
| Community Garden | P | Section 40.090 |
| **OTHER** | | |
| Drive-in or Drive-through Facility (as a component of an allowed use) | - | |
| Oil or Gas Well | S | Section 40.270 |

**C. Lot and building regulations.** The lot and building regulations of Table 25-6 apply to all principal uses and structures in SR districts, except as otherwise expressly stated in this zoning code. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Additional regulations governing accessory uses and structures can be found in Chapter 45.

**Table 25-6: SR District Lot and Building Regulations**

| Regulations | SR |
|---|---|
| Minimum Lot Area (sq. ft.) | - |
| Minimum Street Frontage (feet) | 200 |
| Maximum Floor Area Ratio (FAR) | 0.50 |
| Minimum Lot Area per Unit (sq. ft.) | - |
| Minimum Building Setbacks (feet) | |
| Street | 50 |
| From AG, AG-R or R district | 50[1][2] |
| From O district | 50[1][2] |

**[1]** When abutting RE- or RS-zoned lot, two (2) feet of additional building setback required for each one foot of building height above thirty-five (35) feet.

**[2]** Minimum building setback abutting freeway right-of-way that is zoned AG, AG-R, R or O is ten (10) feet.

**D. Supplemental Regulations** In the SR district, all research service uses must be conducted within a completely enclosed building.

*(Ord. No. 24725, § 13, 11-17-2021; Ord. No. 25192, § 6, 12-6-2023; Ord. No. 25604, § 6, 6-18-2025)*

## Section 25.060. IMX, Institutional Mixed-Use.

### A. General.

**1. Purposes.** The Institutional Mixed-Use (IMX) district is designed to:

**a.** Achieve the economic objectives of the comprehensive plan by encouraging sustainable growth of regional job centers anchored by institutions.

**b.** Meet the need for medical and educational services in the metropolitan area and trade area.

**c.** Provide an environment conducive to the development and conservation of medical and educational institutions.

**d.** Permit the establishment of uses which are customarily located in proximity to such institutions.

**e.** Accommodate a mix of uses and encourage a compatible relationship with adjoining land uses and thoroughfares by:

(1) Establishing lot and building regulations, including transitional height regulations, which help to ensure compatibility among areas with different uses and development intensities;

(2) Requiring off-street parking and loading facilities to mitigate vehicular impacts in surrounding residential areas;

(3) Controlling the number, size, height, sign area, location and types of signs; and

(4) Preserving, enhancing and creating open space.

**2. Zoning criteria.**

**a.** Properties proposed for IMX zoning must include one or more hospitals, colleges, or universities.

**b.** The minimum contiguous land area required for an IMX district is five (5) acres, provided that properties of less than five (5) acres in area that are contiguous with existing IMX-zoned areas or that are separated from existing IMX-zoned areas only by a non-arterial street, alley or railroad right-of-way, may be approved for IMX zoning.

**B. Use regulations.**

**1.** Principal uses are allowed in IMX districts in accordance with Table 25-7. These uses are described in Chapter 35. Uses identified with a "P" are permitted as-of-right. Uses identified with an "S" may be allowed only if reviewed and approved in accordance with the special exception procedures of Section 70.120. All allowed uses are subject to compliance with all other applicable regulations of this zoning code.

**2.** Uses identified with an "-" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in Subsection 35.020E.) to fall within any defined use category are also prohibited.

**Table 25-7: IMX District Use Regulations**

| **USE CATEGORY**<br>**Subcategory (Section 35.020)**<br>**Specific use** | **IMX** | **Supplemental Regulations** |
|---|---|---|
| **RESIDENTIAL** | | |
| Household Living (if in allowed building type indicated in Table 25.7-5) | | |
| Single household | P | |
| Two households on single lot | P | |
| Three or more households on single lot | P | |
| Group Living | | Section 40.160 |
| Assisted living facility | P | |
| Community group home | P | Section 40.100 |
| Convent/monastery/novitiate | P | |
| Elderly/retirement center | P | |
| Fraternity/Sorority | P | |
| Homeless center | S | Section 40.130 |
| Life care retirement center | P | |
| Re-entry facility | S | |
| Residential treatment center | S | Section 40.130 |
| Rooming/boarding house | P | |
| Shelter, emergency and protective | S | Section 40.130 |
| Transitional living center | S | Section 40.130 |
| **PUBLIC, CIVIC AND INSTITUTIONAL** | | |
| Airport | S | |

| USE CATEGORY<br>Subcategory (Section 35.020)<br>Specific use | IMX | Supplemental Regulations |
|---|---|---|
| Cemetery | S | Section 40.150 |
| College or University | P | Section 40.070 |
| Day Care | P | |
| Family Child Care Home | P | Section 40.120 |
| Child Care Center | P | Section 40.120 |
| Detention and Correctional Facility | S | Section 40.130 |
| Fraternal Organization | S | |
| Governmental Service or similar functions | S | |
| Hospital | P | Section 40.070 |
| Library or Cultural Exhibit | P | |
| Natural Resource Preservation | P | |
| Parks and Recreation | P | |
| Postal Services | S | |
| Religious Assembly | P | |
| Safety Service | P | |
| School | P | Section 40.350 |
| Utilities and Public Service Facility | | |
| Minor | P | |
| Major | S | |
| Wireless Communication Facility | | |
| Freestanding tower | P | Section 40.420 |
| Building or tower-mounted antenna | P | Section 40.420 |
| **COMMERCIAL** | | |
| Animal service | | Section 40.020 |
| Grooming | P | |
| Veterinary | P | |
| Assembly and Entertainment | | Section 40.040 |
| Indoor | P[1] | |
| Broadcast or Recording Studio | P | |
| Commercial Service | | Section 40.080 |
| Building service | S[2] | |
| Business support service | P | Section 40.300 |
| Consumer maintenance/repair service | P | |
| Personal improvement service | P | |
| Research service | P | Section 40.225 |
| Farmers market | P | Section 40.135 |
| Financial Services (except as below) | P | |
| Personal credit establishment | S[2] | Section 40.300 |
| Funeral or Mortuary Service | P | |
| Lodging | | |
| Bed & breakfast | S | Section 40.060 |
| Hotel/motel | S[2] | Section 40.170 |
| Marina | S | |
| Office | | Section 40.260 |
| Business or professional office | P | |
| Medical, dental or health practitioner office | P | |

| USE CATEGORY<br>Subcategory (Section 35.020)<br>Specific use | IMX | Supplemental Regulations |
|---|---|---|
| Plasma center | P | Section 40.300 |
| Parking, Non-accessory | P[3] | |
| Restaurants and Bars | | |
| Restaurant | P | Section 40.330 |
| Bar (except as below) | P[1] | Section 40.050 |
| Brewpub | S | Section 40.050 |
| Retail Sales | | Section 40.340 |
| Building supplies and equipment | S[2] | |
| Consumer shopping goods | P[4] | |
| Convenience goods | P | Section 40.300 |
| Grocery Store | p | |
| Small Box Discount Store | P[5] | |
| Medical Marijuana Dispensary | P | Section 40.225 |
| Studio, Artist or Instructional Service | P | Section 40.380 |
| Trade School | S[2] | |
| Vehicle Sales and Service | | |
| Fueling station | P | |
| Vehicle part and supply sales | P | |
| **AGRICULTURAL** | | |
| Community Garden | P | Section 40.090 |
| **OTHER** | | |
| Oil or Gas Well | S | Section 40.270 |

**3. Table notes.** The following notes refer to the bracketed numbers (e.g.," [1]") in Table 25-7:

**[1]** Requires special exception approval if alcoholic beverages are sold or served and the subject lot is located within one hundred fifty (150) feet of any residential zoning district other than R-zoned street right-of-way.

**[2]** Vehicular and pedestrian circulation must be reviewed and approved by traffic engineering, including the location of ingress and egress points.

**[3]** No surface parking lot, whether a principal use or accessory use, is permitted within one hundred (100) feet of any HP district.

**[4]** Package stores require special exception approval, and vehicular and pedestrian circulation must be reviewed and approved by traffic engineering, including the location of ingress and egress points.

**[5]** When located the Healthy Neighborhoods Overlay (HNO) district the use is regulated as stated in Subsection 20.060D.

**4. Accessory uses.**

**a.** Accessory uses are not regulated by Table 25-7. Customary accessory uses are allowed in conjunction with principal uses permitted by right or by special exception, subject to compliance with all applicable accessory use regulations of Chapter 45. The following are expressly allowed as accessory uses in the IMX district:

(1) Heliport.

(2) Loading dock and storage facilities.

(3) Repair and service facilities, including vehicle repair.

(4) Laundry facilities.

(5) Parking, provided that no surface parking is permitted within one hundred (100) feet of HP district.

(6) Physical plant.

(7) Disaster shelters.

(8) Antennas and supporting structures.

(9) Signs, in accordance with Chapter 60.

**b.** All accessory buildings must comply with minimum building setback requirements.

**c.** An accessory building erected as an integral part of the principal building must be made structurally a part of the principal building, have a common wall with the principal building, and comply with the requirements applicable to the principal building.

**C. Residential building types.** Residential uses allowed in IMX districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. The following residential building types are allowed in IMX districts:

**Table 25-7.5: IMX District Building Type Regulations for Household Living**

| USE CATEGORY<br>Subcategory (Section 35.020)<br>Specific use<br>Building Type | IMX | Supplemental Regulations |
|---|---|---|
| **RESIDENTIAL** | | |
| Household Living | | |
| Single household | | |
| Detached house | P | |
| Townhouse | P | Section 40.390 |
| Two households on single lot | | |
| Duplex | P | |
| Three or more households on single lot | | |
| Multi-unit house | P | Section 40.250 |
| Apartment/condo | P | Section 40.030 |
| P= Permitted; S=Special Exception Approval Required; - = Prohibited | | |

**D. Lot and building regulations.**

**1. Table of regulations.** The lot and building regulations of Table 25-8 apply to all new construction and building additions in IMX districts. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Existing buildings are exempt from compliance with build-to-zone (BTZ) and transparency regulations.

## Table 25-8: IMX District Lot and Building Regulations

| Regulation | IMX |
|---|---|
| Minimum District Area (acres) | 5 acres (see Subsection 25.060A.2.b.) |
| Minimum Lot Area (sq. ft.) | |
| Detached house | 5,500 |
| Duplex | 6,900 |
| Townhouse | 1,600 |
| Multi-unit house | 7,500 |
| Apartment/condo | 7,500 |
| Other allowed uses/buildings | 3,500 |
| Minimum Street Frontage (feet) | |
| Arterial or freeway service road | 50 |
| All other streets | 20 |
| Minimum Building Setbacks (feet) | |
| Street | See "Build-to-Zone" Requirements |
| Side | -[1] |
| Rear | 5[2] |
| Build-to-Zone (BTZ) (min./max. in feet) [4] (See also Subsection 25.060H.2.) | |
| Arterial or freeway service road | 10/20 |
| All other streets | 20/30 |
| Minimum Percentage of Build-To Zone Occupied | |
| Arterial or freeway service road | 70 |
| All other streets | 50 |
| Minimum Parking Setback (feet) | 30[3] |
| Street-facing Building Entrance Required | Yes[5] |
| Minimum Ground Floor Transparency (%)[6] | |
| Arterial or freeway service road | 50 |
| All other streets | 40 |
| Maximum Building Height (feet) | See Subsection 25.060E. |

**2. Table notes.** The following notes refer to the bracketed numbers (e.g.," [1]") in Table 25-8:

**[1]** A minimum side setback of ten (10) feet is required on lots abutting an R district, an HP district, or a lot occupied by a detached house, duplex or townhouse without an intervening right-of-way. Required side setbacks may not be used for parking, paving, loading, servicing or any other activity, and must comply with the L1 landscape yard requirements of Subsection 25.060H.1.

**[2]** A minimum rear setback of twenty (20) feet is required on lots abutting an R district, an HP district, or a lot occupied by a detached house, duplex or townhouse without an intervening right-of-way. Required rear setbacks may not be used for parking, paving, loading, servicing or any other activity, and must comply with the L1 landscape yard requirements of Subection 25.060H.1.

**[3]** A minimum ten-foot deep buffer yard that complies with the L1 landscape yard requirements of Subsection 25.060H.1. must be provided to separate parking from the sidewalk, except no buffer yard is required where the ground-floor level of a parking garage or structure is masked by a liner building.

**[4]** In all cases, a minimum setback distance of twelve (12) feet is required between the edge of curb and the face of the building.

**[5]** A functional building entrance door is required on each street-facing façade, and each dwelling unit on the ground-floor level shall have a functional building entrance facing the street. The length of street-facing facade without an intervening entrance may not exceed one hundred fifty (150) feet. An angled or curved entrance may be provided at either corner of a building along the street to meet the street-facing entrance requirements along both streets. On corner lots, the street-facing entrance requirement does not apply along the side street.

**[6]** In the IMX district, the transparency of a ground floor facade is measured between three (3) and eight (8) feet above the adjacent curb.

**E. Height regulations.** No maximum height limits apply in the IMX district except in the following cases:

**1.** When an IMX district abuts an HP district with an intervening right-of-way that is not an alley, a maximum height limit of thirty-five (35) feet applies within one hundred (100) feet of the right-of-way centerline.

**2.** When an IMX district abuts an R or AG-R district with an intervening right-of-way that is not an alley, a maximum height limit of forty-eight (48) feet applies within one hundred (100) feet of the right-of-way centerline.

**3.** When an IMX district abuts an R, AG-R, or an HP district with an intervening alley, a maximum height limit of twenty-four (24) feet applies within forty (40) feet of the alley centerline and a maximum height limit of forty-eight (48) feet applies at a distance between forty (40) feet and ninety (90) feet of the alley centerline.

**4.** When an IMX district abuts an R, AG-R, or an HP district without an intervening right-of-way, a maximum height limit of twenty-four (24) feet applies within fifty (50) feet of the lot boundary and a maximum height limit of forty-eight (48) feet applies at a distance between fifty (50) and one hundred (100) feet of the lot boundary.

**5.** A maximum height limit of ninety-six (96) feet applies for a distance of one hundred (100) feet from the forty-eight-foot feet maximum height limit zone where the IMX district abuts an HP district.

**F. Structured parking facilities.** Parking structures must be designed to visually conceal parking at ground-floor level and the second floor level through the use of architectural detailing or liner buildings.

**G. Loading areas and dumpsters.**

**1.** Loading dock entrances must be screened from public view at ground level by masonry walls.

**2.** Dumpsters are subject to the regulations of Section 45.050, provided that dumpsters in the IMX district must be screened from public view at ground level by masonry walls.

**H. Landscaping and screening.** Landscaping and screening in the IMX district must meet or exceed the minimum regulations of this subsection and the minimum regulations of Section 65.050, Section 65.090 and Section 65.100. The other landscaping and screening regulations of Chapter 65 do not apply in the IMX district.

**1. L1 landscape transition yards.**

**a. When required.** L1 landscape transition yards with a minimum depth of ten (10) feet are required in all of the following cases:

(1) When development occurs on a lot abutting an R, AG-R, or HP district, or a lot occupied by a detached house, duplex or townhouse without an intervening right-of-way;

(2) When off-street parking lots or structures are located adjacent to sidewalks or public rights-of-way, except that L1 landscape yards are not required when the ground-floor level of a parking garage or structure is masked by a liner building.

**b. Trees.** Trees must be provided in L1 landscape transition yards as follows:

(1) At least one medium or large tree must be provided per twenty-five (25) linear feet of landscape transition yard.

(2) If medium or large trees are not appropriate due to overhead utilities or other obstructions one small tree must be provided per twenty (20) linear feet of landscape yard.

(3) Trees must generally be evenly spaced.

(4) Medium and large trees must be a minimum of two and one-half (2.5) inches in caliper size and at least twelve (12) feet in height at time of planting. Small trees must be a minimum of two (2) inches in caliper size and at least eight (8) feet in height at time of planting.

**c.** Understory plantings meeting the following requirements must be provided in all L1 landscape transition yards:

(1) Ground covers or shrubs must be provided at a size and density in order to protect tree roots and to prevent erosion within a three-year growth cycle.

(2) Sod is not permitted in required L1 landscape transition yards.

(3) Where used to meet the landscape requirement, shrubs must be maintained at a minimum height of three (3) feet and a maximum height of eight (8) feet with no more than fifty (50) percent opacity.

**d.** Screening must be provided within L1 landscape transition yards as follows:

(1) Opaque walls or fences a minimum height of six (6) feet must be provided if the L1 landscape transition yard is in a side or rear setback and must be maintained in good condition. Screening is not required if the subject lot is occupied by a detached house, duplex or townhouse.

(2) Opaque walls with a minimum height of thirty-six (36) inches must be provided within ten (10) feet of a surface parking lot edge where surface parking is located within one hundred (100) feet of any IMX district

boundary except when a building is located between the IMX district boundary and the surface parking lot. Walls must be maintained in good condition.

**2. L2 street tree yards.**

**a. When required.** L2 street tree yards with a minimum depth of ten (10) feet are required between the planned right-of-way and the closest edge of the build-to-zone within the lot, extending the full width of the lot.

**b. Trees.** Trees must be provided in L2 street tree yards as follows:

(1) At least one medium or large tree must be provided per twenty-five (25) linear feet of street frontage.

(2) If medium or large trees are not appropriate due to overhead utilities or other obstructions one small tree must be provided per twenty (20) linear feet of street frontage.

(3) Trees must generally be evenly spaced.

(4) Medium and large trees must be a minimum of two and one-half (2.5) inches in caliper size and at least twelve (12) feet in height at time of planting. Small trees must be a minimum of two (2) inches in caliper size and at least eight (8) feet in height at time of planting.

**I. Walls and fences.** Except as otherwise provided in this zoning code, fences or walls within a street tree yard may not exceed thirty-six (36) inches in height. Fences or walls in other locations may not exceed eight (8) feet in height.

**J. Mechanical equipment.**

**1.** Mechanical equipment is not permitted between the building and the street.

**2.** An opaque wall or fence exceeding the height of the equipment is required if the equipment is visible from a public street or from adjacent properties at the level where such equipment is located.

**3.** Rain barrels, cisterns, and similar equipment designed as part of the building do not require screening.

**4.** Chiller plants and similar utility structures must be screened from public rights-of-way and abutting R- or AG-R-zoned lots, HP districts, and lots occupied by a detached houses, duplexes or townhouses. Required screening must consist of a masonry wall that is at least six (6) feet in height. Trees must also be provided as required in L1 landscape transition yards (see Subsection 25.060H.1.b.).

*(Ord. No. 24725, § 14, 11-17-2021; Ord. No. 25192, § 7, 12-6-2023; Ord. No. 25604, § 7, 6-18-2025)*

## Section 25.070. MPD, Master Planned Development district.

**A. Purpose and intent.** The MPD, Master Planned Development district is established to accommodate development that would be difficult or impossible to carry out under otherwise applicable zoning regulations. Different types of MPDs will promote different planning goals. In general, however, all MPDs are intended to result in

development that is consistent with the city's adopted plans and that provides greater public benefits than could be achieved using conventional zoning regulations. MPDs are also generally intended to promote one or more of the following:

**1.** Variety in housing types and sizes to accommodate households of all ages, sizes, incomes and lifestyle choices;

**2.** Compact, mixed-use development patterns where residential, commercial, employment, civic, and open space areas are located in close proximity to one another;

**3.** A transportation network designed to accommodate safe and efficient motorized and non-motorized travel;

**4.** Direct, safe and convenient non-motorized travel routes within the boundaries of the development site, as well as connections to abutting properties;

**5.** Buildings and other improvements that by their arrangement, massing, design, character and site design elements establish a quality, livable environment;

**6.** Sustainable development practices;

**7.** Incorporation of open space amenities and natural resource features into the development design;

**8.** Low-impact development (LID) and best management practices for managing stormwater; and

**9.** Flexibility and creativity in responding to changing social, economic and market conditions.

**B. Initiation of amendment.** Applications to establish an MPD district or expand the boundaries of an existing MPD district may be initiated only by the owner of the subject property.

**C. Statement of intent.** Each MPD application must include a written explanation describing how the proposed development meets the purpose and intent described in Subsection 25.070A. and the supplemental review and approval criteria of Subsection 25.070D.2.

**D. MPD approval procedures.**

**1. Overview of required approval process.**

**a.** A property owner request for rezoning to the MPD zoning district requires review and approval of a zoning map amendment (see Section 70.030), which is processed concurrently with a development plan (see Section 70.040).

**b.** After approval of the zoning map amendment and development plan, site plan review and approval is required in accordance with the procedures of Section 70.050.

**c.** No building permit may be issued and no building or development may occur in a MPD zoning district until a zoning clearance permit has been issued in accordance with Section 70.080.

**2. Supplemental review and approval criteria.** In making recommendations and decisions on MPD district zoning map amendments, review and decision-making bodies must consider the zoning map amendment criteria of Subsection 70.030H. and the following factors:

**a.** Whether the proposed master planned development is consistent with the comprehensive plan and any other adopted plans for the subject area;

**b.** Whether the development plan complies with the MPD district provisions of Section 25.070;

**c.** Whether the development will result in public benefits that are equal to or greater than those that would have resulted from development under conventional zoning (non-MPD) regulations; and

**d.** Whether appropriate terms and conditions have been imposed on the approval to protect the interests of surrounding property owners and residents, existing and future residents of the MPD and the general public.

**3. Restrictive covenants.** No building permit may be issued, and no building or development may occur in an MPD district until covenants necessary to reasonably ensure continued compliance with the approved development plan are recorded in the County Clerk's office. Such covenants may be established in a subdivision plat or in a separately recorded legal instrument. In order that the public interest may be protected, the City of Tulsa must be made beneficiary of the covenants pertaining to such matters as location of uses, height of structure, setbacks, screening, and access. Such covenants must provide that the City of Tulsa may enforce compliance of the covenants, and further provide that amendment of the covenants requires planning commission approval and the filing of record of a written amendment to covenants, endorsed by the planning commission.

**4. Issuance of building permits.** Building permits may be issued only after a zoning clearance permit has been issued in accordance with Section 70.080 and covenants have been recorded in accordance with Subsection 25.070D.3. Any permits issued must be in accordance with the approved development plan.

**E. Abandonment.** Abandonment of an approved MPD requires that the property be rezoned to another zoning district in accordance with the zoning map amendment procedures of Section 70.030 or that a new MPD be approved following the procedures of Subsection 25.070D.

**F. Use regulations and lot and building standards** The use regulations and lot and building standards that apply within an MPD zoning district must be established at the time of development plan approval by the City Council.

**G. Other development standards.** Unless otherwise expressly provided in the approved development plan, properties within the MPD district are subject to all other applicable provisions of this zoning code and the subdivision and development regulations. The MPD district is expressly intended to accommodate the use of alternative standards for streets and other public improvements based on the approved development plans. The development plan must specify the deviations proposed from otherwise applicable public improvement standards if deviations from otherwise applicable standards are proposed.

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## CHAPTER 30. LEGACY DISTRICTS

Section 30.010. PUD, Planned Unit Development (Legacy) district.
Section 30.020. CDP, Community Development Projects.

### Section 30.010. PUD, Planned Unit Development (Legacy) district.

**A. Legacy district status.**

**1.** Land classified in a PUD overlay zoning district on the effective date specified in Section 1.030 will continue to be classified in the PUD overlay district.

**2.** No applications to establish new PUD zoning districts or to expand the boundaries of existing PUD zoning districts may be accepted for processing after the effective date specified in Section 1.030, except that PUD rezoning applications that were in process on the effective date specified in Section 1.030 may continue to be processed and may be approved (see the transitional provisions of Section 1.110). Amendments to existing PUDs may be processed in accordance with the PUD amendment procedures of Subsection 30.010I.

**3.** The PUD zoning district regulations of this section and all applicable conditions of approval of an approved PUD govern the use and development of PUD-zoned areas unless and until the subject PUD is abandoned.

**B. General.**

**1.** Except as may be expressly approved as part of a PUD overlay district, the regulations of the underlying base zoning district effective at the time any new permit application is submitted shall apply within a planned unit development.

**2.** The City Council in approving a major amendment to a PUD and the planning commission in approving a minor amendment, may impose restrictions as conditions of approval in addition to those imposed by the underlying base zoning and the PUD regulations.

**3.** No building permit may be issued, and no building or development may occur in a PUD zoning district until a zoning clearance permit has been issued in accordance with Section 70.080.

**C. Purposes.** The purposes of the PUD overlay district are to:

**1.** Permit and encourage innovative land development while maintaining appropriate limitation on the character and intensity of use and assuring compatibility with adjoining and proximate properties;

**2.** Permit greater flexibility within the development to best utilize the unique physical features of the particular site;

**3.** Permit creative land use design;

**4.** Provide and preserve meaningful open space; and

**5.** Achieve a continuity of function and design within the development.

**D. Allowed uses.**

**1. Principal uses.** The development may consist of one or more of the uses permitted as of right or by special exception within the underlying base zoning districts, provided:

**a.** That if any part of the PUD is located within a residential district, the permitted building types may include:

(1) Detached house;

(2) Townhouse;

(3) Duplex; and

(4) Apartment/condo;

**b.** That manufactured housing units are a permitted use only within PUDs that are located in whole or in part in an RMH district;

**c.** That the permitted uses, whether principal or accessory uses, may be reallocated within the development irrespective of the base zoning district boundaries; and

**2. Accessory uses.**

**a. General.** Accessory uses customarily incidental to principal uses allowed within the PUD are permitted.

**b. Accessory commercial.** In addition to accessory uses customarily incidental to a permitted principal residential use, residential support services are allowed as an accessory use to a principal group living use and in apartment/condo buildings in accordance with Section 45.160. Office support services are allowed as an accessory use to a principal office use in accordance with Section 45.120.

**3. Signs.** Except for regulations governing dynamic displays, which must comply with all applicable provisions of Chapter 60, signs in a PUD, including outdoor advertising signs, must comply with all provisions of the PUD or if not provided for within the PUD, with all applicable provisions of the zoning code in effect at the time any new sign permit application is submitted.

**E. Bulk and area regulations.**

**1. Intensity of use.** Intensity may be reallocated irrespective of the base zoning district boundaries.

**a. Residential intensity.**

(1) The residential intensity may not exceed a maximum number of dwelling units calculated as follows:

**Maximum Number of Dwelling Units Allowed** = Gross area of property located within a residential district divided by (/) minimum land area per dwelling unit permitted in the underlying zoning district.

(2) The minimum land area per dwelling unit, for the purpose of the above described residential intensity calculation, must be based on the least restrictive minimum land area per dwelling unit permitted in the underlying zoning district. Each six hundred (600) square feet of a quasi-dwelling, such as a care home, constitutes a dwelling unit. If the

PUD is located in two (2) or more residential districts, the permitted density is the sum of the permitted dwelling units computed separately for the gross area within each district. For a PUD located entirely within a residential district, the gross area for the purposes of the above-described residential intensity calculation must be reduced by the area or areas designated for any principal use other than dwellings, quasi dwellings, residential open space and recreation areas.

(3) For the purpose of residential intensity calculations, "gross area" means the lot area plus fifty (50) percent of the right-of-way width of any abutting street to which the lot has access.

**b. Nonresidential intensity.**

(1) Nonresidential intensity may not exceed a maximum permitted floor area calculated as follows:

**Maximum Permitted Floor Area** = Gross area of property located within a nonresidential district multiplied (X) by the maximum floor area ratio permitted by right or by special exception within the underlying zoning district, except where a floor area ratio is not specified, a maximum floor area ratio of 0.75 applies.

(2) The intensity of use of a PUD located within two (2) or more zoning districts of the following differing classifications must be separately calculated and allocated within the PUD by the respective classification:

(a) Residential;

(b) Office;

(c) Commercial; and

(d) Industrial.

(3) For the purpose of nonresidential intensity calculations, gross area means the lot area plus fifty (50) percent of the right-of-way width of any abutting street to which the lot has access.

**2. Lot width, frontage and area.** Minimum requirements for lot width, frontage and area must be prescribed.

**3. Open space.** Open space for a residential development area must be provided in an aggregate amount of not less than the amount of open space required by the underlying base zoning district for conventional development of a comparable number of dwelling units. Required open space must be provided on the lot containing the dwelling unit or units on which computed, or in common areas. Common open space must be designed and located so as to be accessible to the dwelling units it is intended to serve. Provisions for the ownership and maintenance of common open space as will ensure its continuity, conservation and maintenance must be incorporated in the subdivision plat or in covenants recorded in the county clerk's office.

**4. Building height and setbacks.** The building height limitations and building setback requirements must be prescribed and incorporated within the subdivision plat or in a separately recorded legal instrument. Every structure must be set back

from the centerline of an abutting public street designated on the major street and highway plan a horizontal distance of not less than fifty (50) percent of the right-of-way width designated on the major street and highway plan.

5. **Landscaped Area.** Minimum landscaped open space is required for each type of nonresidential development area as follows:
   - **a.** Office use: Fifteen (15) percent of lot area.
   - **b.** Commercial use: Ten (10) percent of lot area.
   - **c.** Industrial use: Five (5) percent of lot area.

**F. Perimeter requirements.** Perimeter requirements for screening, landscaping, and setbacks, as are necessary to ensure compatibility with adjoining and proximate properties, must be prescribed and be incorporated within the subdivision plat or in a separately recorded legal instrument.

**G. Off-street parking and loading.** No modification of applicable off-street parking and loading requirements is permitted unless a subdivision plat incorporating the provisions and requirements is submitted to and approved by the planning commission and the city council recorded in the county clerk's office or restrictive covenants are established in a separately recorded legal instrument, except that Subsection 55.070B. and Subsection 55.080C. do not apply. Required spaces may be provided on the lot containing the uses for which it is intended to serve or in common areas. Common parking areas must be designed and located so as to be accessible to the uses it is intended to serve. Provisions for the ownership and maintenance of common parking space must be incorporated in the subdivision plat or in a separately recorded legal instrument.

**H. Administration and procedures.** No applications to establish new PUD zoning districts or to expand the boundaries of existing PUD zoning districts may be accepted for processing after the effective date specified in Section 1.030, except that PUD rezoning applications that were in process on the effective date specified in Section 1.030 may continue to be processed and may be approved in accordance with the PUD procedures in effect immediately prior to the effective date specified in Section 1.030. Amendments to existing PUDs may processed in accordance with the PUD amendment procedures of Subsection 30.010I.

**I. Amendments to approved plans.**

1. **Major amendments.** Any change or amendment that represents a significant departure from an approved PUD development plan requires review and approval of a PUD zoning district map amendment and development plan, including all requirements for fees, notices and hearings.
2. **Minor amendments.**
   - **a.** The planning commission is authorized to approve minor changes and amendments to an approved PUD development plan as long as a substantial compliance is maintained with the approved PUD development plan.
   - **b.** In instances where the City Council has expressly imposed a PUD condition more restrictive than originally recommended by the planning commission, any minor amendment of that specific condition must be approved by the City Council.

**c.** The following may be processed as minor amendments:

(1) Adjustment of internal development area boundaries, provided the allocation of land to particular uses and the relationship of uses within the project are not substantially altered;

(2) Limitation or elimination of previously approved uses, provided the character of the development is not substantially altered;

(3) Increases in the number dwelling units, provided the approved number of dwelling units is permitted by the underlying zoning and the density of a development area is not increased more than fifteen (15) percent;

(4) Increases in permitted nonresidential floor area, provided the increased floor area is permitted by the underlying zoning and the floor area of a development area is not increased more than fifteen (15) percent;

(5) Modification of the internal circulation system, provided the system is not substantially altered in design, configuration or location;

(6) Changes in points of access, provided the traffic design and capacity are not substantially altered;

(7) Addition of customary accessory buildings and uses within the delineated common open space of a residential PUD, including swimming pools, cabanas, security buildings, clubhouses and tennis courts;

(8) Location of customary residential accessory buildings and uses on an adjoining single-family residential lot within the PUD, including swimming pools, cabanas, garages, and tennis courts, provided an agreement has been recorded by the owner prohibiting the conveyance of the lot containing the accessory use separate from the conveyance of the lot containing the principal use;

(9) Changes in structure heights, building setbacks, yards, driveway coverage measured by width, square footage or percentage of the yard, open spaces, building coverage and lot widths or frontages, provided the approved PUD development plan, the approved PUD standards and the character of the development are not substantially altered;

(10) Lot splits that have been reviewed and approved in accordance with, the subdivision and development regulations;

(11) Home occupations that comply with the regulations of Section 45.100;

(12) Modifications to approved signage, provided the size, location, number and character (type) of signs is not substantially altered;

(13) Modification to approved screening and landscaping plans, provided the modification is not a substantial deviation from the original approved plan;

(14) Changes reducing the number of permitted dwelling units; and

(15) Changes in an approved use to another use may be permitted, provided the underlying zoning on the particular site within the PUD would otherwise permit such use as of right and the proposed use will not result in any increase of incompatibility with the present and future use of nearby properties.

**d.** Notice of the planning commission's required public hearing on a minor PUD amendment request must be provided as follows:

(1) Notice must be mailed to all owners of property within three hundred (300) feet of the subject property at least ten (10) days before the scheduled public hearing.

(2) The provisions of Subsection 70.010F. apply to the required mailed notices.

**e.** If the planning commission determines that the proposed amendment, if approved, will result in a significant departure from the approved PUD development plan or otherwise change the character of the PUD significantly or that the cumulative effect of a number of minor amendments substantially alters the approved PUD development plan, then the amendment must be deemed a major amendment to the PUD development plan.

**3. Appeal of minor amendment.** An appeal from any minor PUD amendment decision by the planning commission may be taken by any person aggrieved, or any taxpayer or any officer, department, board or bureau of the City. Appeals are made to the City Council by filing notice of appeal with the City Clerk and with the recording secretary of the planning commission within ten (10) days of the date of the decision being appealed. The appeal must specify the grounds of the appeal. No bond or deposit for costs are required for an appeal. Upon filing of the notice of appeal, the planning commission must transmit to the City Council, the original or certified copies of all the papers constituting the record in the case, together with the decision of the planning commission. The City Council must notify the applicant and all interested parties, as recorded in the minutes of planning commission, of the appeal hearing location, date and time.

**J. Restrictive covenants.** No building permit may be issued, and no building or development may occur in a PUD zoning district until covenants necessary to reasonably ensure continued compliance with the approved development plan are recorded in the County Clerk's office. Such covenants may be established in a subdivision plat or in a separately recorded legal instrument. In order that the public interest may be protected, the City of Tulsa must be made beneficiary of the covenants pertaining to such matters as location of uses, height of structures, building setbacks, screening, and access. Such covenants must provide that the City of Tulsa may enforce compliance of the covenants, and further provide that amendment of the covenants requires planning commission approval and the filing of record of a written amendment to covenants, endorsed by the planning commission.

**K. Issuance of building permits.** Building permits may be issued only after a zoning clearance permit has been issued in accordance with Section 70.080 and covenants have been recorded in accordance with Subsection 30.010J. Any permits issued must be in accordance with the approved PUD development plan.

**L. Abandonment of approved PUDs.** Abandonment of an approved PUD requires review and recommendation by the planning commission and approval by the City Council. The City Council is authorized to amend the underlying zoning upon abandonment of the PUD. Upon final action by the City Council authorizing abandonment of the PUD, no building permit may be issued except in accordance with the restrictions and limitations of the base zoning district.

## Section 30.020. CDP, Community Development Projects.

**A. General.** CDP was the predecessor of PUD zoning. Before adoption of the City's 1970 zoning code, which created the PUD district, the Board of Adjustment had authority to approve site-specific CDPs.

**B. Expiration and lapse of approval.** Pursuant to Section 204 of the 1970 zoning code, all CDPs approved by the Board of Adjustment before 1970 effectively expired on June 30, 1975 except those extended by the Board of Adjustment or for which building permits had been issued or construction had commenced in accordance with the terms and conditions approved by the board of adjustment. The following CDPs have expired pursuant to this provision and are now governed by the zoning district regulations that apply to the subject property: CDP01, CDP02, CDP03, CDP04, CDP05, CDP06, CDP07, CDP08, CDP09, CDP10, CDP11, CDP12, CDP13, CDP14, CDP15, CDP16, CDP17, CDP18, CDP19, CDP23, CDP24, CDP25, CDP26, CDP27, CDP28, CDP30, CDP31, CDP32, CDP34, CDP35, CDP36, CDP37, CDP38, CDP39, CDP40, CDP41, CDP42, CDP43, CDP44, CDP45, CDP46, CDP47, CDP48, CDP49, CDP50, CDP51, CDP52, CDP55, CDP56, CDP57, CDP58, CDP59, CDP60, CDP61, CDP62, CDP64, CDP65, CDP66, CDP67, CDP68, CDP69, CDP70, CDP71, CDP72, CDP73, CDP74, CDP75, CDP76, CDP77, CDP78, CDP79, CDP81, CDP82, CDP83, CDP84, CDP85, CDP86, and CDP87.

**C. Active CDPs.** The following CDPs remain active and are governed by the terms of the CDP approval granted by the Board of Adjustment: CDP20, CDP21, CDP22, CDP29, CDP33, CDP53, CDP54, CDP63, and CDP80. Proposed changes and amendments to active CDPs require a public hearing and approval by the Board of Adjustment.

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## CHAPTER 35. BUILDING TYPES AND USE CATEGORIES

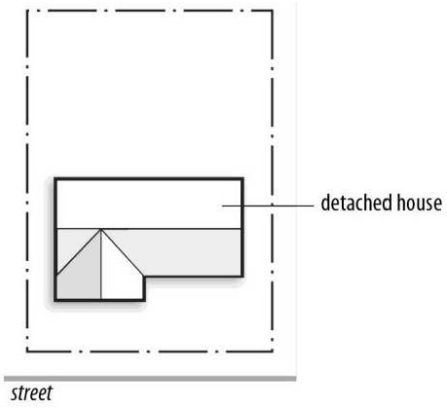
Section 35.010. Building types.
Section 35.020. Use categories generally.
Section 35.030. Residential use category.
Section 35.040. Public, civic and institutional use category.
Section 35.050. Commercial use category.
Section 35.060. Wholesale, distribution and storage use category.
Section 35.070. Industrial use category.
Section 35.080. Recycling use category.
Section 35.090. Agricultural use category.
Section 35.100. Other use category.

### Section 35.010. Building types.

This section establishes and describes the building types regulated by this zoning code.

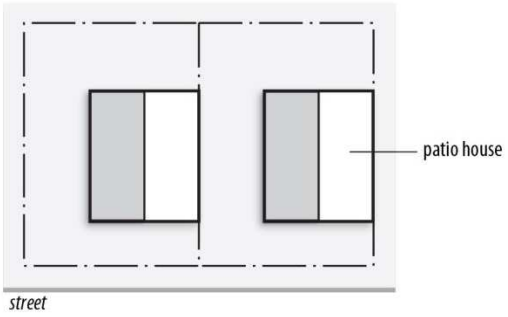
**A. Detached house.** A detached house is a principal residential building, other than a manufactured housing unit or mobile home, that contains only one dwelling unit and that is located on a single lot that is not occupied by other principal residential buildings. Detached houses are not attached to and do not abut other dwelling units. Detached houses include conventional ("stick-built") construction and construction involving modular or system-built components as long as such construction complies with city building codes. (An accessory dwelling unit, as defined by Subsection 45.031A., is not considered a detached house.)

**Figure 35-1: Detached House**




**B. Patio house.** A patio house is a principal residential building occupied by one dwelling unit and that is located on a single lot that is not occupied by other principal residential buildings. Patio houses are not attached to and do not abut other dwelling units. The building is shifted to one side of the lot so that there is a more usable side yard on one side of the house and very little or no private yard on the other side. Patio houses are subject to the same lot and building regulations that apply to detached houses except as modified by the supplemental patio house regulations of Section 40.290.

**Figure 35-2: Patio House**

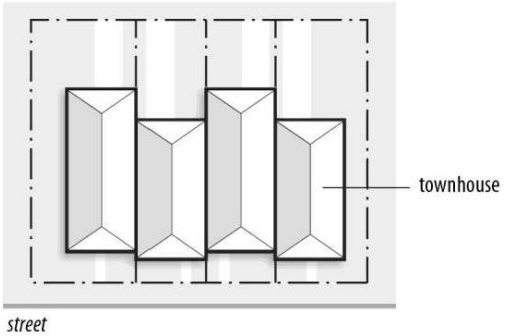



**C. Townhouse.** A townhouse building is a principal residential building that is occupied by multiple dwelling units, each located on its own lot with a common or abutting wall along the dwelling units' shared lot lines. Each dwelling unit has its own external entrance. There are two (2) types of townhouses: two-unit townhouses and 3+-unit townhouses.

**1.** A two-unit townhouse is a townhouse building occupied by only two (2) dwelling units.

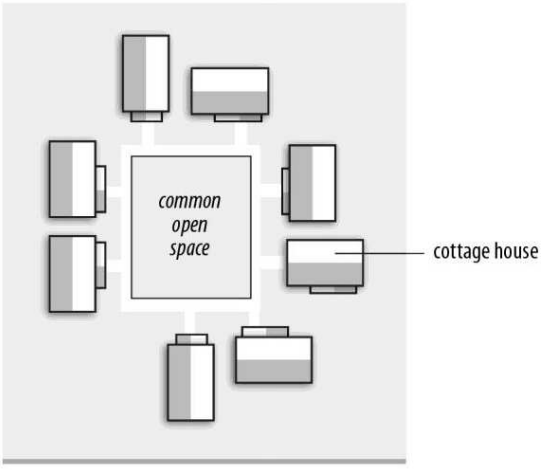
**2.** A 3+-unit townhouse is a townhouse building occupied by three (3) or more dwelling units.

**Figure 35-3: Townhouse**



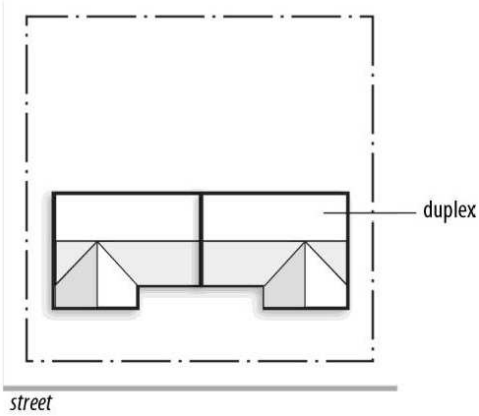

**D. Cottage House Development.** A cottage house development is a grouping of small detached houses around a common open space or shared courtyard. Cottage house developments are subject to lot and building regulations of the subject zoning district and the supplemental cottage house development regulations of Section 40.110.

**Figure 35-4: Cottage House Development**



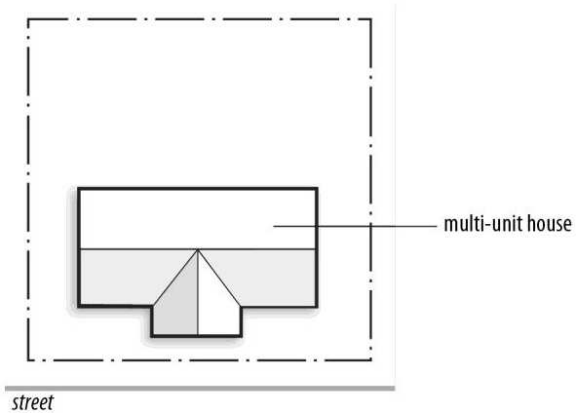

**E. Duplex.** A duplex is a principal residential building occupied by two (2) dwelling units, both of which are located on a single lot that is not occupied by other principal residential buildings. The two (2) dwelling units are attached and may be located on separate floors or side-by-side.

**Figure 35-5: Duplex**



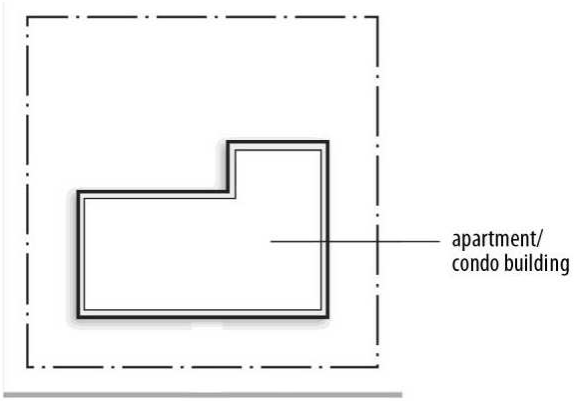

**F. Multi-unit house.** A multi-unit house is a principal residential building that contains three (3) or four (4) dwelling units that share common walls and/or common floors/ceilings. The building is located on a single lot that is not occupied by other principal residential buildings. Multi-unit houses have the appearance of large detached houses and have only one entrance visible from the street.

**Figure 35-6: Multi-unit House**




**G. Apartment/Condo.** An apartment/condo building is a principal residential building on a single lot that is occupied by three (3) or more dwelling units (other than a multi-unit house) that share common walls and/or common floors/ceilings.

**Figure 35-7: Apartment/Condo**




**H. Manufactured housing unit.** A manufactured housing unit is a principal residential building that complies with the National Manufactured Housing Construction and Safety Standards Act of 1974 (42 U.S.C. § 5401, et seq.). Manufactured housing units are subject to the same regulations that apply to detached houses, except as modified by supplemental regulations of Section 40.210.

**I. Manufactured housing subdivision.** A manufactured housing subdivision is a residential subdivision primarily comprising home sites for manufactured housing units on individual lots. Manufactured housing subdivisions are subject to the supplemental regulations of Section 40.220.

**J. Mobile home.** A mobile home is a principal residential building that is built on a permanent chassis and that complies with Standard for Mobile Homes, National Fire Protection Association (NFPA) 501, American National Standards Institute (ANSI)

119.1, in effect at the time that the unit was manufactured. Mobile homes are allowed only within mobile home parks, which are subject to the regulations of Section 40.240.

**K. Mobile home park.** A mobile home park is a lot or multiple lots upon which mobile homes or manufactured housing units are available for lease or upon which spaces for mobile homes or manufactured housing units are available for lease.

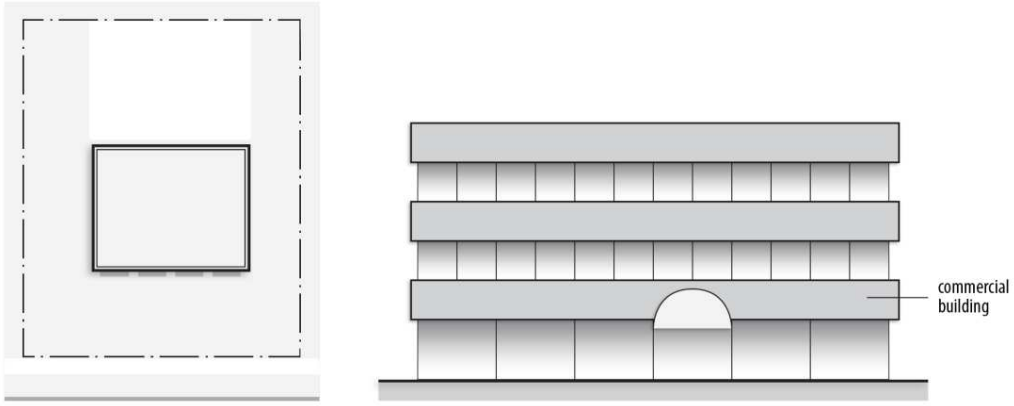
**L. Mixed-use building, vertical.** A vertical mixed-use building is a principal building occupied by one or more commercial uses on the ground floor and one or more residential dwelling units on upper floors.

**Figure 35-8: Vertical Mixed-use Building**

**M. Mixed-use building.** A mixed-use building is a principal building occupied by one or more commercial uses and one or more residential dwelling units.

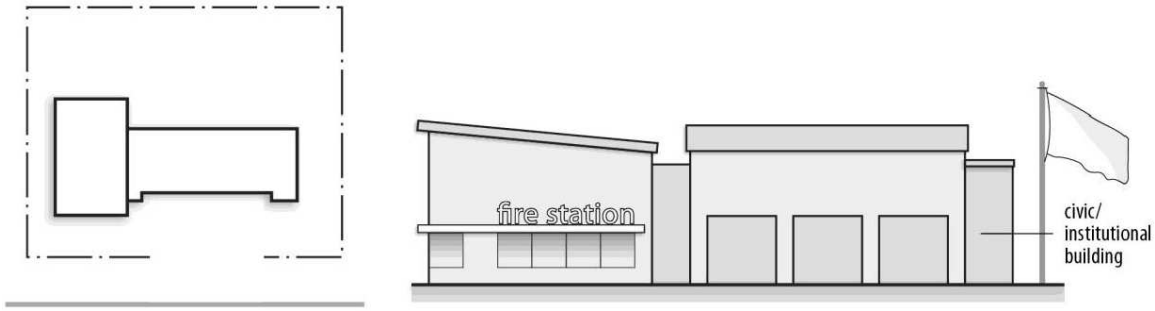
**N. Commercial building** A commercial building is a principal building occupied primarily by non-residential uses.

**Figure 35-9: Commercial Building**



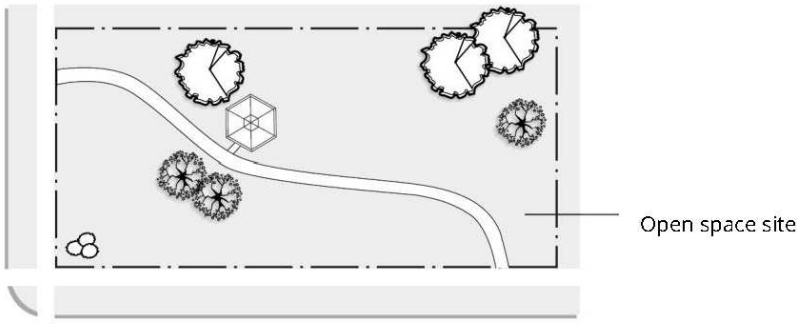

**O. Civic/Institutional building.** A civic/institutional building is a principal building occupied primarily by public, civic or institutional uses.

**Figure 35-10: Civic/Institutional Building**




**P. Open space site.** Open space sites are parcels occupied primarily by parks, open spaces, natural areas and similar large outdoor open spaces.

**Figure 35-11: Open Space Site**




## Section 35.020. Use categories generally.

This section establishes and describes the use categorization system used to classify principal uses in this zoning code.

**A. Use categories.** This zoning code classifies principal land uses into eight (8) major groupings (described in Section 35.030 through Section 35.100). These major groupings are referred to as "use categories." The use categories are as follows:

**1.** Residential. See Section 35.030.

**2.** Public, Civic and Institutional. See Section 35.040.

**3.** Commercial. See Section 35.050.

**4.** Wholesale, Distribution and Storage. See Section 35.060.

**5.** Industrial. See Section 35.070.

**6.** Recycling. See Section 35.080.

**7.** Agricultural. See Section 35.090.

**8.** Other. See Section 35.100.

**B. Use subcategories.** Each use category is further divided into more specific "subcategories." Use subcategories classify principal land uses and activities based on common functional, product or physical characteristics, such as the type and amount of activity, the type of customers or residents, and how goods or services are sold or delivered and site conditions.

**C. Specific use types.** Some use subcategories are further broken down to identify specific types of uses that are regulated differently than the subcategory as a whole.

**D. Use tables.** Use tables are used in this zoning code to identify the land uses allowed within the respective zoning districts. The structure of the use tables reflects the hierarchical nature of the use categorization system described in this section.

**Table 35-1: Sample Use Table Format**

| | *District* | *District* | *District* | *District* | *District* | *District* | *Supplemental Regulations* |
|---|---|---|---|---|---|---|---|
| *P = use permitted as of right S = Special exception approval required - = Not allowed* | | | | | | | |
| *Uses not listed are also prohibited except as stated in Subsection 35.020E. Bracketed numbers refer to notes following the table.* | | | | | | | |
| **USE CATEGORY** | | | | | | | |
| **Use Subcategory** | | | | | | | cross-reference to any applicable regulations |
| Specific Use | P[1] | P[1] | P | P | P | P | |
| Specific Use | - | - | - | S | S | S | |
| Specific Use | - | - | - | - | P | P | |

[1] Table notes

**E. Determination of use categories and subcategories.**

**1.** The development administrator or land use administrator has the authority to classify uses on the basis of the use category, subcategory and specific use type descriptions of this chapter.

**2.** When a use cannot be reasonably classified into a use category, subcategory or specific use type, or appears to fit into multiple categories, subcategories or specific use types, the development administrator is authorized to determine the most similar and thus most appropriate use category, subcategory or specific use type based on the actual or projected characteristics of the principal use or activity in relationship to the use category, subcategory and specific use type descriptions provided in this chapter. In making such determinations, the development administrator must consider:

**a.** The types of activities that will occur in conjunction with the use;

**b.** The types of equipment and processes to be used;

**c.** The existence, number and frequency of residents, customers or employees;

**d.** Parking demands associated with the use; and

**e.** Other factors deemed relevant to a use determination.

**3.** If a use can reasonably be classified in multiple categories, subcategories or specific use types, the development administrator is authorized to categorize each use in the category, subcategory or specific use type that provides the most exact, narrowest and appropriate "fit."

## Section 35.030. Residential use category.

This category includes uses that provide living accommodations for one or more persons. The residential use subcategories are as follows:

**A. Household living.** Residential occupancy of a dwelling unit by a household. When dwelling units are rented, tenancy is arranged on a month-to-month or longer basis. Uses where tenancy may be arranged for a shorter period are not considered residential; they are considered a form of lodging.

**B. Group living.** Residential occupancy of a building or any portion of a building by a group other than a household. Group living uses typically provide communal kitchen/dining facilities. Group living use types include convents, monasteries, novitiates, fraternity and sorority houses, homeless centers and the following:

1. **Assisted living center.** A residential facility designed to meet housing and care needs of older persons and individuals with disabilities in a residential rather than institutional environment, while maximizing independence, choice and privacy. Assisted living programs provide personal care for persons with needs for assistance in the activities of daily living and can respond to unscheduled needs for assistance. Services typically provided include meals, housekeeping, laundry and linen service, medication monitoring, transportation and activities. Assisted living settings also typically provide features that enhance resident autonomy, such as lockable doors, full bathrooms, temperature control and single occupancy, and may provide limited cooking facilities in individual units.
2. **Community group home.** A community-based group living use for elderly persons or persons with disabilities that allows independent living and that provides communal room and board, personal care, and habilitation services in a household-like environment. Community group homes for eight (8) or fewer persons are considered household living uses.
3. **Elderly/Retirement center.** A residential facility designed for and principally occupied by elderly persons. Such facilities sometimes include congregate meals in a common dining area, but do not include medical or skilled nursing care, as distinguished from life care retirement centers.
4. **Emergency and protective shelter.** A residential use that provides room and board for a continuous period of no more than thirty (30) consecutive days for adults or children who have been abused, displaced or are transient. Such uses provide protection services and typically provide counseling and pre-placement screening services as well.
5. **Life care retirement center.** A residential facility designed for and principally occupied by elderly persons in a planned retirement community that includes a residential complex, an activity or community center and a medical or skilled nursing care facility licensed by the State of Oklahoma as an intermediate care facility or a skilled nursing center.
6. **Re-entry facility.** A facility operated by the city, the state, the federal government or a private party under contract with the city, the state or the federal government and used for rehabilitation and overnight accommodation of individuals, including staff, who are (a) under the jurisdiction of a court, but not under confinement, or (b)

individuals recently released from the jurisdiction of a court. Re-entry facilities are operated for the purpose of providing treatment or rehabilitation intended to assist such individuals with their re-entry into the community.

7. **Residential treatment center.** A community-based residential facility that provides diagnostic or therapeutic services, counseling, or treatment and long-term room and board in a highly structured environment for persons receiving active treatment for alcoholism, drug abuse or behavioral disorders.
8. **Rooming and boarding house.** A residential use that provides congregate meals and lodging and that is not otherwise classified as another form of group living use or lodging use.
9. **Transitional living center.** A community-based residential facility that provides room and board, a supervised living environment, counseling and rehabilitation services for persons with a history of juvenile delinquency, behavioral disorders, alcoholism or drug abuse for a continuous period of no more than one hundred twenty (120) consecutive days.

## Section 35.040. Public, civic and institutional use category.

This category includes public, quasi-public and private uses that provide unique services that are of benefit to the public at-large. The public, civic and institutional subcategories are as follows:

**A. Airport or ground transportation terminal.** Facilities from which FAA-certified aircraft take off, land and operate, including customary accessory uses and structures. Also includes passenger ticketing, loading and unloading facilities for buses (local or intercity) and trains.

**B. Cemetery.** Land or structures used for burial or permanent storage of the dead or their cremated remains. Typical uses include cemeteries and mausoleums. Also includes pet cemeteries.

**C. College or university.** Institutions of higher learning that offer courses of general or specialized study and are authorized to grant academic degrees. The college or university use subcategory includes classrooms and instructional spaces, as well as on-campus residence halls, fraternity and sorority houses, administrative buildings, auditoriums and other on-campus uses and facilities that provide customary accessory and support functions for college or university uses.

**D. Day Care.**

1. **Child Care Center.** Uses providing care and supervision for children or adults for a fee on a regular basis away from their primary residence for less than twenty-four (24) hours per day. Uses providing care and supervision for children or adults for twenty-four (24) hours per day or longer are classified as group living uses. Child care centers in residential districts are subject to the same lot and building regulations that apply to detached houses, except as modified by supplemental regulations of Section 40.120-A.
2. **Family Child Care Home.** A day care that provides care and supervision for twelve (12) or fewer children for less than twenty-four (24) hours per day. Family child care homes may be a principal use or accessory to an allowed household living

use. Family child care homes are subject to the same lot and building regulations that apply to detached houses, except as modified by the supplemental regulations of Section 40.120-B.

**E. Detention and correctional facility.** An institution operated by the city, the state, the federal government or a private party under contract with the city, the state or the federal government for the confinement and punishment and treatment or rehabilitation of offenders under the jurisdiction of a court.

**F. Fraternal organization.** The use of a building or lot by a not-for-profit organization that restricts access to its facility to bona fide, annual dues-paying members and their occasional guests and where the primary activity is a service not carried on as a business enterprise.

**G. Governmental service or similar functions.** Local, state or federal governmental services or similar functions, that are not otherwise classified. Typical uses include health departments, courthouses, soup/food kitchens, and food pantries.

**H. Hospital.** Uses providing medical or surgical care to patients and offering inpatient (overnight) care.

**I. Library or cultural exhibit.** Museum-like preservation and exhibition of objects in one or more of the arts and sciences, gallery exhibition of works of art or library collections of books, manuscripts and similar materials for study and reading. Includes aquariums and planetariums.

**J. Natural resource preservation.** Undeveloped land left in a natural state for specific use as visual open space or environmental purposes. Typical uses include wildlife or nature preserves, arboretums, flood management projects and reservoirs.

**K. Parks and recreation.** Recreational, social or multi-purpose uses associated with public parks and open spaces, including playgrounds, playfields, play courts, community centers and other facilities typically associated with public parks and open space areas. Also includes public and private golf courses and tennis clubs.

**L. Postal service.** Facilities operated by the U.S. Postal Service, including post offices and mail sorting and distribution facilities.

**M. Religious assembly.** Religious services involving public assembly that customarily occur in churches, synagogues, temples, mosques and other facilities used for religious worship.

**N. Safety service.** Establishments that provide fire, police or life protection, together with the incidental storage and maintenance of necessary vehicles. Typical uses include fire stations, police stations, ambulance services and storm or civil defense shelters.

**O. School.** Public and private schools at the primary, elementary, middle school or high school level that provide basic, compulsory education.

**P. Utilities and public service facility, minor.** Infrastructure services that need to be located in or close to the area where the service is provided. Minor utilities and public service facilities generally do not have regular employees at the site and typically have few if any impacts on surrounding areas. Typical uses include water and sewer pump stations; gas regulating stations; underground electric distribution substations; electric

transformers; water conveyance systems; stormwater facilities and conveyance systems; telephone switching equipment and emergency communication warning/broadcast facilities.

1. The production, collection or distribution of renewable energy, water, organic waste, or other similar resources at a neighborhood, district or campus scale are classified as minor utilities and public service facilities. This includes distributed energy facilities that produce or distribute energy from renewable sources; neighborhood composting areas and neighborhood stormwater facilities.
2. District-, neighborhood- or campus-scale systems that produce or distribute energy from the biological breakdown of organic matter produced within the subject neighborhood or campus are also considered minor utilities and public service facilities.
3. Energy production systems that generate energy from the byproducts of the principal use are considered accessory uses, including net metered installations and installations that generate power to sell at wholesale to the power grid.

**Q. Utilities and public service facility, major.** Infrastructure services that typically have substantial visual or operational impacts on nearby areas. Typical uses include but are not limited to water and wastewater treatment facilities, high-voltage electric substations, utility-scale power generation facilities (including wind, solar and other renewable and nonrenewable energy sources), sanitary landfills and utility-scale water storage facilities, such as water towers and reservoirs.

**R. Wireless communication facility.** Towers, antennas, equipment, equipment buildings and other facilities used in the provision of wireless communication services. The following are wireless communication facility specific use types:

1. **Freestanding towers.** A structure intended to support equipment that is used to transmit and/or receive telecommunications signals, including monopoles and guyed and lattice construction steel structures.
2. **Building or tower-mounted antennas.** The physical device that is attached to a freestanding tower, building or other structure, through which electromagnetic, wireless telecommunications signals authorized by the Federal Communications Commission are transmitted or received.

*(Ord. No. 24382, § 3, 6-10-2020; Ord. No. 25092, § 3, 7-26-2023; Ord. No. 25192, § 8, 12-6-2023)*

### Section 35.050. Commercial use category.

The commercial use category includes uses that provide a business service or involve the selling, leasing or renting of merchandise to the general public. The commercial use subcategories are as follows:

**A. Animal service.** Uses that provide goods and services for care of animals, including the following specific use types:

1. **Grooming.** Grooming of dogs, cats and similar small animals, including dog bathing and clipping salons and pet grooming shops.
2. **Boarding** or **shelter.** Animal shelters, care services and kennel services for dogs, cats and small animals, including boarding kennels, pet resorts/hotels, pet adoption centers, dog training centers, animal rescue shelters and zoos and animal sanctuaries.

3. **Veterinary.** Animal hospitals and veterinary clinics.

**B. Assembly and entertainment.** Uses that provide gathering places for participant or spectator recreation, entertainment or other assembly activities. Assembly and entertainment uses may provide incidental food or beverage service. Typical uses include gun clubs, shooting ranges, health clubs, gymnasiums, riding stables and academies, banquet halls, entertainment centers, event centers, billiard centers, bowling centers, cinemas, go-cart tracks, laser tag, paintball, miniature golf courses, stadiums, arenas, video arcades, race tracks, fairgrounds, rodeo grounds, water parks, amusement parks, food truck courts, and live theaters. Outdoor seating and dining areas that exceed fifty (50) percent of the indoor floor area of the subject principal use (e.g., bar, restaurant or indoor assembly and entertainment use) are regulated as an outdoor assembly and entertainment use.

**C. Broadcast or recording studio.** Uses that provide for audio or video production, recording or broadcasting.

**D. Commercial service.** Uses that provide for consumer or business services and for the repair and maintenance of a wide variety of products. Specific commercial service use types include the following:

1. **Building service.** Uses that provide maintenance and repair services for all structural and mechanical elements of structures, as well as the exterior spaces of premises. Typical uses include janitorial, landscape maintenance, carpet cleaning, chimney sweeps, extermination, plumbing, electrical, HVAC, roofing, window cleaning and similar services.
2. **Business support service.** Uses that provide personnel services, printing, copying, package (delivery) drop-off, photographic services or communication services to businesses or consumers. Typical uses include employment agencies, day labor hiring services, armored car services, copy and print shops, delivery/ courier service drop-off location for consumers, caterers, telephone answering services and photo developing labs.
3. **Consumer maintenance and repair service.** Uses that provide maintenance, cleaning and repair services for consumer goods on a site other than that of the customer (i.e., customers bring goods to the site of the repair/maintenance business). Typical uses include laundry and dry cleaning pick-up shops, tailors, taxidermists, dressmakers, shoe repair, picture framing shops, gunsmiths, locksmiths, vacuum repair shops, electronics repair shops and similar establishments. Business that offer repair and maintenance service for large equipment or technicians who visit customers' homes or places of business are classified as a "building service."
4. **Personal improvement service.** Uses that provide personal grooming, cosmetic or health and well-being-related services. Typical uses include barbers, hair and nail salons, tanning salons, day spas, and body art services.
5. **Research service.** Uses engaged in scientific research and testing services leading to the development of new products and processes. Such uses resemble office buildings or campuses and do not involve the mass production, distribution or sale of products. Research services do not produce odors, dust, noise, vibration or other external impacts that are detectable beyond the property lines of the subject

property. Includes medical marijuana testing laboratories, and medical marijuana research facilities, as licensed by the Oklahoma Medical Marijuana Authority, in accordance with the terms of such license.

**E. Financial service.** Uses related to the exchange, lending, borrowing and safe-keeping of money. Automatic teller machines, kiosks and similar facilities that do not have on-site employees or amplified sound are not classified as financial service uses if they meet the criteria for classification as an accessory use (see Subsection 45.010B.). Specific financial service use types are banks, credit unions, and the following types of personal credit establishments:

1. **Check cashing.** An establishment that:
   - **a.** Is not a bank or financial lending institution subject to federal or state regulation;
   - **b.** Charges a fee to cash a check or have a check processed; and
   - **c.** Provides such services to the public.
2. **Pawnshop.** An establishment that is engaged to any extent in any of the following business or activities:
   - **a.** The lending of money on the deposit or pledge of personal property, other than choses in action, securities or written evidence of indebtedness;
   - **b.** The purchase of personal property either from an individual, another pawn business or any other business with an expressed or implied agreement or understanding to offer the property for sale to the public, and if that sale is unsuccessful, then to sell it back to the previous owner at a subsequent time at a stipulated price or negotiated price;
   - **c.** The purchase of precious metals with the intent to melt down, provided that such activity is not clearly incidental to the principal use of the establishment; or
   - **d.** The lending of money upon personal property, goods, wares, or merchandise pledged, stored or deposited as collateral security.
3. **Payday lender.** An establishment that is substantially in the business of negotiating, arranging, aiding, or assisting a consumer in procuring payday loans.
4. **Bail bond.** A use that provides surety and pledged money or property as bail for the appearance of persons accused in court.

**F. Funeral and mortuary service.** Uses that provide services related to the death of a human or domestic, household pet, including funeral homes and mortuaries. Funeral and mortuary services may include crematoriums as an accessory use. Other crematoriums and animal rendering uses are classified as moderate-impact manufacturing and industry.

**G. Lodging.** Uses that provide temporary lodging for less than thirty (30) days where rents are charged by the day or by the week. Lodging uses sometimes provide food or entertainment, primarily to registered guests. Examples of specific lodging use types include:

1. **Bed and Breakfast.** An establishment in which the owner/operator offers overnight accommodations to guests for compensation. A bed and breakfast may serve meals to guests subject to the supplemental use regulations; a bed and breakfast may be rented for on-site events.

2. **Hotel/Motel.** An establishment, other than a bed and breakfast, short-term rental or rural retreat, in which temporary lodging is offered for compensation. A hotel/motel use may include an accessory bar.

3. **Recreational Vehicle Park/Campground.** An establishment that provides temporary overnight accommodations for camping in recreational vehicles or tents.

4. **Rural Retreat.** An establishment that is part of a working farm or ranch that provides temporary overnight accommodations for individuals or groups engaged in supervised training or personal improvement activities. Examples include corporate retreat facilities, educational facilities and dude ranches or working farm learning centers.

5. **Short-Term Rental.** A dwelling unit, which is not the primary residence of a household, or a portion thereof, in which temporary lodging is offered for compensation. A short-term rental is limited to a maximum occupancy of eight (8) persons at any one time. Short-Term Rentals can be principal or accessory uses. Accessory use short-term rentals are defined in Section 45.185.

**H. Marina.** Facilities that provide moorage, launching, storage, fueling, supplies and services (other than repair) commonly associated with storing, maintaining and operating recreational and commercial watercraft.

**I. Office.** Uses in an enclosed building, customarily performed in an office, that focus on providing executive, management, administrative, professional or medical services. Specific office use types include the following:

1. **Business and professional office.** Office uses that are not medical, dental, health practitioner offices or plasma centers. Examples include corporate office, law offices, architectural firms, insurance companies and other executive, management or administrative offices for businesses and corporations. Also included are union halls that offer only office and meeting space and insurance claims adjusters/estimators with no more than one vehicle inspection bay and no on-site repair facilities.

2. **Medical, dental and health practitioner office.** Office uses related to diagnosis and treatment of human patients' illnesses, injuries and physical maladies that can be performed in an office setting with no overnight care. Typical uses include offices of physicians, dentists, psychiatrists, psychologists, chiropractors and practitioners of massage therapy. Surgical, rehabilitation and other medical centers that do not involve overnight patient stays are included in this use subcategory, as are medical and dental laboratories, unless otherwise expressly indicated. Ancillary sales of medications and medical products are allowed in association with a medical, dental or health practitioner office.

3. **Plasma center.** An establishment primarily involved in the collection of human blood plasma from plasma donors.

**J. Parking, non-accessory.** Parking that is not provided to comply with minimum off-street parking requirements or that is not provided exclusively to serve occupants of or visitors to a particular use, but rather is available to the public at-large. A parking facility that provides both accessory and non-accessory parking will be classified as

non-accessory parking if it leases twenty-five (25) percent or more of its spaces to non-occupants of or persons other than visitors to a particular use. Specific non-accessory parking use types include the following:

1. **Surface parking, non-accessory.** A non-accessory parking lot.
2. **Structured parking, non-accessory.** A non-accessory parking garage.

**K. Restaurants and bars.**

1. **Bar.** Uses that cater primarily to adults, 21 years of age and older and that sell and serve alcoholic beverages as their principal business. Specific bar use types include bars, taverns, beer bars, brewpubs, nightclubs, pool halls, dance halls, hookah lounges, and similar establishments. See also the definition of accessory use bar in Section 95.040.
   a. **Hookah lounge.** An establishment whose business operation, whether as a principal use or as an accessory use, includes the smoking of tobacco or other substances through one or more hookah pipes (also commonly referred to as a hookah, waterpipe, shisha or narghile), including but not limited to establishments known variously as hookah bars, hookah parlors or hookah cafés.
   b. **Brewpub.** An establishment where beer and malt beverages are made on the premises in conjunction with a restaurant and/or bar and where (1) less than five thousand (5,000) barrels (one hundred fifty-five thousand (155,000) gallons) of beer and malt beverages are produced per calendar year and (2) at least thirty-three (33) percent of the beer and malt beverages produced on site are sold on site. Where allowed by law, brewpubs may sell beer and malt beverages "to go" and/or distribute to off-site accounts.
2. **Restaurant.** An establishment that serves food or beverages for on- or off-premise consumption as its principal business. The preparation and processing of food or beverages to be served or sold on-site directly to consumers is permitted as an accessory use to a restaurant, including on-site coffee roasting with a maximum roasting capacity of forty-five (45) kilograms per batch. Typical examples of restaurant uses include principal use restaurants, cafés, cafeterias, ice cream/yogurt shops, donut shops and coffee shops.
   a. **Principal use restaurant.** A restaurant that employs at least one full-time cook, has a menu, a fully equipped kitchen for cooking and preparation of meals and in which dining, kitchen and non-service areas occupy at least seventy-five (75) percent of the floor area of the business. A principal use restaurant may include an accessory use bar, but any bar area that does not meet the definition of an accessory use bar (Section 95.040) is classified and regulated as a bar.
3. **Outdoor seating and dining areas.** Outdoor seating and dining areas that exceed fifty (50) percent of the indoor floor area of the subject bar or restaurant are regulated as an outdoor assembly and entertainment use.

**L. Retail sales.** Uses involving the sale, lease or rental of new or used goods to the ultimate consumer. Specific retail use types include the following:

1. **Convenience goods.** Retail sales uses that sell or otherwise provide (1) sundry goods; (2) products for personal grooming and for the day-to-day maintenance of personal health; or (3) food or beverages for off-premise consumption, retail

bakeries and similar uses that provide incidental and accessory food and beverage service as part of their primary retail sales business. Typical uses include convenience stores, drug stores, specialty food stores, package stores, gift shops, newsstands, florists and tobacco stores. Does not include small box discount stores or grocery stores.

2. **Consumer shopping goods.** Retail sales uses that sell or otherwise provide wearing apparel, fashion accessories, furniture, household appliances and similar consumer goods, large and small, functional and decorative, for use, entertainment, comfort or aesthetics. Typical uses include clothing stores, department stores, appliance stores, TV and electronics stores, bike shops, book stores, costume rental stores, stationery stores, art galleries, hobby shops, furniture stores, pet stores and pet supply stores, shoe stores, antique shops, secondhand stores, record stores, toy stores, sporting goods stores, variety stores, video stores, musical instrument stores, medical supplies, office supplies and office furnishing stores and wig shops. Does not include small box discount stores, grocery stores or medical marijuana dispensaries.
3. **Building supplies and equipment.** Retail sales uses that sell or otherwise provide goods to repair, maintain or visually enhance a structure or premises. Typical uses include hardware stores, home improvement stores, paint and wallpaper supply stores and garden supply stores.
4. **Small box discount store.** Retail sales uses with floor area less than twelve thousand (12,000) square feet that offer for sale a combination and variety of convenience shopping goods and consumer shopping goods; and continuously offer a majority of the items in their inventory for sale at a price less than ten dollars ($10.00) per item. Does not include medical marijuana dispensaries.
5. **Grocery store.** Retail sales uses that sell or otherwise provide assorted goods; products for personal grooming and for the day-to-day maintenance of personal health; and that sell food and beverages for off-premise consumption; and that have a minimum floor area of five hundred (500) square feet dedicated to the sale of fresh meat, fruits and vegetables. A principal use grocery store may include an accessory use restaurant or dining area for on-premise consumption of food and beverage items. Does not include medical marijuana dispensaries.
6. **Medical Marijuana Dispensary.** Retail sales uses that sell or otherwise provide medical marijuana or medical marijuana products by the holder of a medical marijuana dispensary license issued by the Oklahoma Medical Marijuana Authority, in accordance with the terms of such license, which may be sold or provided only to the holder of a medical marijuana patient or caregiver license.

M. **Self-service storage facility.** An enclosed use that provides separate, small-scale, self-service storage facilities leased or rented to individuals or small businesses. Facilities are designed and used to accommodate only interior access to storage lockers or drive-up access only from regular size passenger vehicles and two-axle non-commercial vehicles.

N. **Sexually oriented business establishment.** Sexually oriented business establishments include all of the following:

1. **Adult amusement or entertainment.** Amusement or entertainment that is distinguished or characterized by an emphasis on acts or material depicting,

describing or relating to sexual conduct or specified anatomical areas, including but not limited to topless or bottomless dancers, exotic dancers, strippers, male or female impersonators or similar entertainment.

2. **Adult bookstore.** An establishment wherein ten (10) percent or more of its display area consists of books, films, videos, magazines, periodicals, games, novelties or other materials that are distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas (referred to in this section as "sexually oriented materials"). As used in this definition of "adult bookstore," "display area" is measured as follows:
   a. For bookshelves, magazine racks and similar display devices, display area is calculated by multiplying the length times the width of such devices. If sexually oriented materials are mixed with non-sexually oriented materials in or on such devices, the entire device is considered as consisting of sexually oriented materials.
   b. For table tops, counters, display cases and similar display devices, display area is calculated by multiplying the length times the width of each surface on which merchandise is displayed. If sexually oriented materials are mixed with non-sexually oriented materials on such surfaces, the entire surface is considered as consisting of sexually oriented materials.
   c. For walls, display area is the area of the wall enclosed by the smallest imaginary rectangle that contains each item.
   d. The display area of merchandise hanging or suspended from the ceiling is calculated by multiplying the item's length or width, whichever is longer, times the item's height.
3. **Adult mini motion picture theater.** An enclosed building with a capacity of fewer than fifty (50) persons used for presenting material distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas.
4. **Adult motel.** A motel in which material is presented, as part of the motel services, via closed circuit TV or otherwise, that is distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas.
5. **Adult motion picture arcade.** Any place to which the public is permitted or invited wherein coin or slug operated or electronically, electrically or mechanically controlled, still or motion picture machines, projectors, or other image producing devices are maintained to show images to five (5) or fewer persons per machine at any one time, and where the images so displayed are distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas.
6. **Adult motion picture theater.** An enclosed building with a capacity of fifty (50) or more persons used for presenting material distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas.
7. **Massage parlor.** Any place where for any form of consideration or gratuity, massage, alcohol rub, administration of fomentations, electric or magnetic treatments, or any other treatment or manipulation of the human body occurs as part of

or in connection with sexual conduct or where any person providing such treatment, manipulation or service related thereto exposes specified anatomical areas.

8. **Model studio.** Any place other than public park, museum or university or college art classes where, for any form of consideration or gratuity, figure models who display specified anatomical areas are provided to be observed, sketched, drawn, painted, sculptured, photographed, or similarly depicted by persons paying such consideration or gratuity.

9. **Sexual encounter center.** Any building or structure that contains, or is used for commercial entertainment where the patron directly or indirectly is charged a fee to engage in personal contact with or to allow personal contact by, employees, devices or equipment or by personnel provided by the establishment that appeals to the prurient interest of the patron, to include, but not to be limited to bath houses, massage parlors, and related or similar activities.

**O. Studio, artist or instructional service.** Uses in an enclosed building that focus on providing individual or small group instruction or training in fine arts, music, dance, drama, fitness, language or similar activities. Also includes dance studios, ballet academies, yoga studios, martial arts instruction, tutoring, artist studios and photography studios.

**P. Trade school.** Uses in an enclosed building that focus on teaching the skills needed to perform a particular job. Examples include schools of cosmetology, modeling academies, computer training facilities, vocational schools, administrative business training facilities and similar uses. Licensed medical marijuana education facilities are expressly included. Truck driving schools are classified as "trucking and transportation terminals" (wholesale, distribution and storage use category).

**Q. Vehicle sales and service.** Uses that provide for the sale, rental, maintenance or repair of new or used vehicles and vehicular equipment. The vehicle sales and service subcategory includes the following specific use types:

1. **Commercial vehicle repair and maintenance.** Uses, excluding vehicle paint finishing shops, that repair, install or maintain the mechanical components or the bodies of large trucks, mass transit vehicles, large construction or agricultural equipment, aircraft or similar large vehicles and vehicular equipment. Includes truck stops and fleet vehicle fueling facilities, which may dispense conventional vehicle fuels and/or alternative vehicle fuels.

2. **Commercial vehicle sales and rentals.** Uses that provide for the sale or rental of large trucks, moving equipment (e.g., U-haul and Ryder) construction or agricultural equipment, aircraft, or similar large vehicles and vehicular equipment.

3. **Fueling station (for personal, consumer vehicles).** Uses engaged in retail sales of vehicle fuels for personal vehicles, other than fleet fueling facilities and truck stops. (Note: Fleet vehicle fueling facilities and truck stops are part of the "Commercial Vehicle Repair and Maintenance" specific use type). Fueling stations may dispense conventional vehicle fuels and/or alternative vehicle fuels.

4. **Personal vehicle repair and maintenance.** Uses that repair, install or maintain the mechanical components of automobiles, small trucks or vans,

motorcycles, motor homes or recreational vehicles including recreational boats or that wash, clean or otherwise protect the exterior or interior surfaces of these vehicles.

5. **Personal vehicle sales and rentals.** Uses that provide for the sale or rental of new or used autos, small trucks or vans, trailers, motorcycles, motor homes or recreational vehicles including recreational watercraft. Typical examples include automobile dealers, auto malls, car rental agencies. Car-share vehicles that are parked or stored when not being used by members of a car-share program are not regulated as personal vehicle sales and rental uses, but are instead considered accessory parking.
6. **Vehicle equipment and supplies sales and rentals.** Uses related to the sale, lease or rental of new or used parts, tools or supplies for the purpose of repairing or maintaining motor vehicles.
7. **Vehicle body and paint finishing shop.** Uses that primarily conduct motor vehicle body work and repairs or that apply paint to the exterior or interior surfaces of motor vehicles by spraying, dipping, flow-coating or other similar means.

**R. Farmers market.** A designated area in which farmers, growers or producers gather on a regularly scheduled basis to sell at retail non-hazardous farm food products to the public. Farm food products are grown or raised on a farm, including but not limited to, vegetables, mushrooms, herbs, nuts, shell eggs, honey or other bee products, flowers, nursery stock, livestock food products and fish. A portion of the raw food ingredients used by the individual vendor to produce a product must have been grown or raised by the vendor. Farmers markets must have written operational guidelines and a minimum of six (6) vendors along with a designated market manager or advisory board who will be responsible for distribution of a copy of the guidelines to the vendors. Farmers markets must be registered with the Oklahoma Department of Agriculture, Food and Forestry. This definition does not include individual farmers who grow and sell unprocessed fruit and/or vegetables from the farm, roadside or truck. Farmers markets may be located inside a building or outdoors using permanent shelters or tents that can be placed and removed on the subject site when the market is not operating.

*(Ord. No. 24328, § 5, 3-11-2020; Ord. No. 25330, §§ 4—6, 6-5-2024; Ord. No. 25604, § 8, 6-18-2025)*

## Section 35.060. Wholesale, distribution and storage use category.

This category includes uses that provide and distribute goods in large quantities, principally to retail sales, commercial services or industrial establishments. Long-term and short-term storage of supplies, equipment, commercial goods and personal items is included. The wholesale, distribution and storage subcategories are as follows:

**A. Equipment and materials storage, outdoor.** Uses related to outdoor storage of equipment, products or materials, whether or not stored in containers.

**B. Trucking and transportation terminals.** Uses engaged in the dispatching and long-term or short-term storage of trucks, buses and other vehicles, including parcel service delivery vehicles, taxis and limousines. Minor repair and maintenance of

vehicles stored on the premises is also included. Includes uses engaged in the moving of household or office furniture, appliances and equipment from one location to another, including the temporary on-site storage of those items.

**C. Warehouse.** Uses conducted within a completely enclosed building that are engaged in long-term and short-term storage of goods and that do not meet the definition of a "self-service storage facility" or a "trucking and transportation terminal."

**D. Wholesale sales and distribution.** Uses engaged in the wholesale sales, bulk storage and distribution of goods. Such uses may also include incidental retail sales and wholesale showrooms. Expressly includes the following uses: bottled gas and fuel oil sales, flea markets, ice distribution centers, monument sales, portable storage building sales, vending machine sales, auctioneers, and frozen food lockers. Includes uses engaged in the transportation and distribution of medical marijuana products to and from the licensed premises of commercial medical marijuana licensees.

*(Ord. No. 25330, §§ 4—7, 6-5-24)*

## Section 35.070. Industrial use category.

This category includes uses that produce goods from extracted and raw materials or from recyclable or previously prepared materials, including the design, storage and handling of these products and the materials from which they are produced. The industrial subcategories are:

**A. Low-impact manufacturing and industry.** Manufacturing and industrial uses that do not, as part of their normal operations, generate noticeable off-site impacts in terms of noise, smoke, particulate matter, odors, or vibration. Typical examples of low-impact manufacturing and industrial uses include: commercial laundries and linen supply services, apparel manufacturing, bakery products manufacturing, production of medical marijuana products, such as edibles and pre-rolls, using medical marijuana components processed elsewhere, bottling plants, ice manufacturing, mattress manufacturing and assembly, microbreweries, micro distilleries, coffee roasting with a maximum roasting capacity of 45 kilograms per batch, musical instrument and parts manufacturing, newspaper printing and binderies.

1. **Microbrewery.** An establishment in which beer or malt beverages are made on the premises and then sold or distributed, and which produces less than fifteen thousand (15,000) barrels (four hundred sixty-five thousand (465,000) gallons) of beer and malt beverages per calendar year. Where allowed by law, microbreweries may include tasting rooms and direct sales to consumers in addition to other methods of distribution.
2. **Micro distillery.** A distillery producing distilled spirits in total quantity of no more than forty thousand (40,000) proof gallons per calendar year. Where allowed by law, micro distilleries may include tasting rooms and direct sales to consumers in addition to other methods of distribution.
3. **Low-impact medical marijuana processor.** A medical marijuana processor issued a nonhazardous processor license by the Oklahoma Medical Marijuana Authority.

**B. Moderate-impact manufacturing and industry.** Manufacturing and industrial uses that, as part of their normal operations, generate noticeable off-site impacts in

terms of noise, smoke, particulate matter, odors, or vibration. Typical examples of moderate-impact manufacturing and industrial uses include: large breweries, distilleries and alcohol manufacturing (other than micro distilleries), coffee roasting with a roasting capacity of more than forty-five (45) kilograms per batch, medical marijuana waste disposal facilities, dairy products manufacturing, foundries, chrome plating, crematoriums and animal rendering plants, electroplating, fiberglass manufacturing, flour mills and paper products manufacturing.

1. **Large brewery.** An establishment where beer or malt beverages are made on the premises at an annual production rate of over fifteen thousand (15,000) barrels (four hundred sixty-five thousand (465,000) gallons). Large breweries may include tasting rooms.
2. **Medical marijuana waste disposal facility.** A facility issued a medical marijuana waste disposal facility license by the Oklahoma Medical Marijuana Authority.

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**C. High-impact manufacturing and industry.** Manufacturing and industrial uses that regularly use hazardous chemicals or procedures or that produce hazardous byproducts or explosive hazards. Typical examples of high-impact manufacturing and industrial uses include: the manufacture of acetylene, cement, lime, gypsum or plaster-of-Paris, chlorine, corrosive acid or fertilizer, insecticides, disinfectants, poisons, explosives, paint, lacquer, varnish, petroleum products, coal products, plastic and synthetic resins and radioactive materials. This subcategory also includes petrochemical tank farms, gasification plants, smelting, animal slaughtering, oil refining, asphalt and concrete (batch) plants and tanneries.

1. **High-impact medical marijuana processing facility.** An establishment in which the preparation, manufacture, processing or packaging of medical marijuana products by the holder of a hazardous medical marijuana processor license issued by the Oklahoma Medical Marijuana Authority is conducted, in accordance with the terms of such license, and in which extraction processes include the use of flammable substances such as butane, propane, ethanol and alcohol.

**D. Junk or salvage yard.** An open area where waste, scrap, used or second-hand materials are bought, sold, exchanged, stored, baled, packed, disassembled, crushed, processed, or handled for reclamation, disposal or other similar purposes, including but not limited to scrap iron and other metals, paper, rags, rubber tires and bottles.

**E. Mining or mineral processing.** The extraction or quarrying of coal, ores, stone, minerals, top soil or aggregate resources from the ground. Examples include quarrying or dredging for sand, gravel or other aggregate materials; mining and top soil extraction. Also includes crushing, washing and grading coal, ore, stone, sand, gravel, minerals, top soil or aggregate resources and manufacture of Portland cement.

*(Ord. No. 25330, §§ 8—11, 6-5-2024)*

## Section 35.080. Recycling use category.

This category includes uses that collect, store or process recyclable material for the purpose of marketing or reusing the material in the manufacturing of new, reused or reconstituted products. The recycling use subcategories are as follows:

**A. Construction or demolition debris.** Establishments that receive and process general construction or demolition debris for recycling.

**B. Consumer material drop-off station.** An establishment that (1) accepts consumer recyclable commodities directly from the consuming party; (2) is staffed by personnel on site for a minimum of twenty (20) hours per week; and (3) stores materials temporarily before transferring them to recyclable material processing facilities. Establishments that process recyclable material are classified as "consumer material processing" establishments. (Note: Accessory use dumpsters and recyclable material bins/donation bins are subject to the regulations of Sections 45.050 and 45.051.)

**C. Consumer material processing.** Establishments that receive and process consumer recyclable commodities for subsequent use in the secondary market.

*(Ord. No. 24279, § 1, 12-11-2019)*

## Section 35.090. Agricultural use category.

This category includes uses such as gardens, farms and orchards that involve the raising and harvesting of food and non-food crops and the raising of farm animals. The agricultural subcategories are:

**A. Animal husbandry.** Uses that involve the feeding, housing and care of farm animals for private or commercial purposes.

**B. Community garden.** An area less than one acre in area that is managed and maintained by an individual, group or business entity to grow and harvest food crops or non-food crops (e.g., flowers). A community garden area may be divided into separate garden plots or orchard areas for cultivation by one or more individuals or may be farmed collectively by members of the group. Community gardens may be principal or accessory uses.

**C. Farm, market or community-supported.** An area managed and maintained by an individual, group or business entity to grow and harvest food crops or non-food crops (e.g., flowers) for sale or distribution. Farms may be principal or accessory uses and may be located on a roof or within a building.

**D. Horticulture nursery.** A use involving propagation and growth of trees or plants in containers or in the ground for wholesale or retail sales and distribution. Does not include on-site retail sales unless such sales are otherwise allowed in the subject zoning district.

1. **Medical marijuana grower operation.** Uses involving the growing, harvesting and packaging of medical marijuana by the holder of a medical marijuana grower license issued by the Oklahoma Medical Marijuana Authority, in accordance with the terms of such license. Does not include retail sales.

*(Ord. No. 25330, § 12, 6-5-2024)*

## Section 35.100. Other use category.

This category includes uses that do not fit the other use categories.

**A. Drive-in or drive-through facility.** Any use with drive-through windows or drive-through lanes or that otherwise offer service to the occupants of motor vehicles. Typical uses include drive-through restaurants, drive-through pharmacies, drive-in restaurants and drive-in cinemas. Automatic teller machine kiosks and similar drop-off or pick-up facilities that do not have on-site employees or amplified sound are not classified as drive-in or drive-through facilities if they meet the criteria for classification as an accessory use (see Subsection 45.010B.).

**B. Off-premise outdoor advertising sign.** A sign that directs attention to a business, commodity, service, or activity that is conducted, sold or offered elsewhere than upon the lot where the subject sign is located.

**C. Oil or gas well.** Any hole or bore, of any depth, for the purpose of producing and recovering oil, gas, or other hydrocarbon substances or for the injection or disposal of any oil, gas, or other hydrocarbon substances. See also Title 42A of the Tulsa Revised Ordinances.

# CHAPTER 40. SUPPLEMENTAL USE AND BUILDING REGULATIONS

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Section 40.320. Religious assembly.
Section 40.330. Restaurants.
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Section 40.350. Schools.
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Section 40.390. Townhouses.
Section 40.400. Vehicle sales and service.
Section 40.410. Wholesale, distribution and storage uses.
Section 40.420. Wireless communication facilities.
Section 40.430. Farmers markets.

## Section 40.010. General.

This chapter includes supplemental regulations that apply to some uses and building types. These regulations supplement the applicable zoning district regulations. The applicability of these supplemental use regulations is indicated in the individual sections of this chapter and in the use regulations of the respective zoning district.

## Section 40.020. Animal services.

Whenever an animal services use is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

## Section 40.030. Apartments/condos.

Whenever an apartment/condo building is located on a lot abutting an RE, RS, or AG-R district, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070-C.

*(Ord. No. 24825, § 4, 5-18-2022)*

## Section 40.040. Assembly and entertainment.

Whenever an assembly and entertainment use is located on a lot abutting an R or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

## Section 40.050. Bars.

The supplemental use regulations of this section apply to all bars, except accessory use bars.

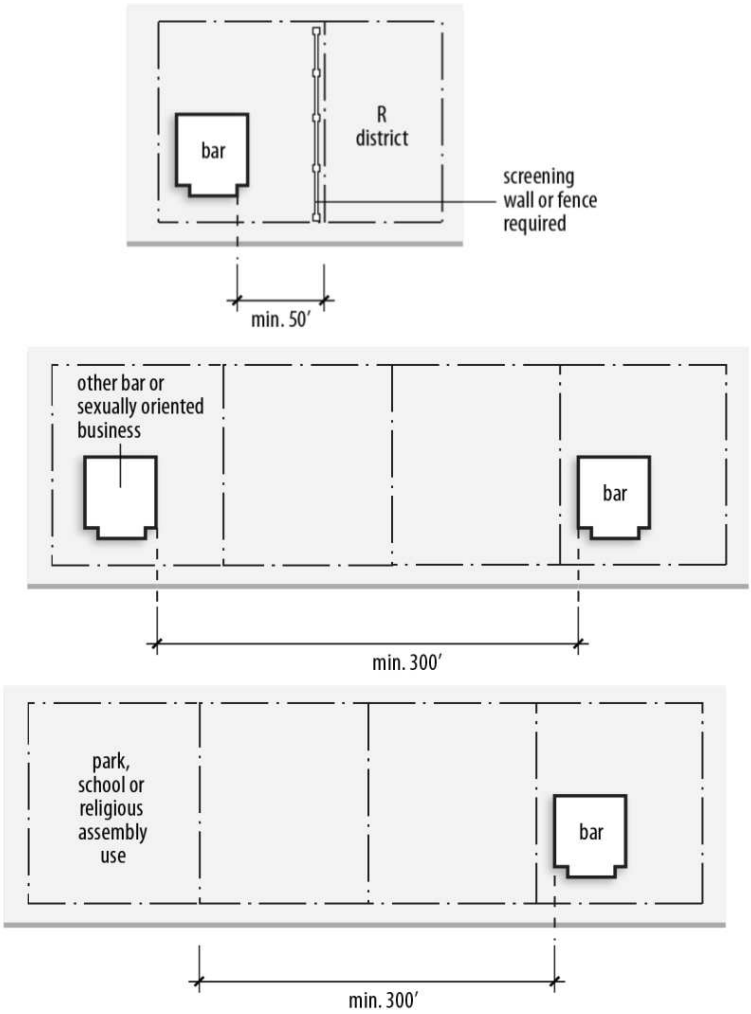
**A.** Bars are subject to all of the following separation distance requirements:

**1.** Public entrance doors of bars may not be located within fifty (50) feet of any R-zoned lot, as measured in a straight line from the nearest point on the R-zoned lot (not including R-zoned expressway right-of-way) to the nearest public entrance door of the bar or the nearest portion of any outdoor seating/dining area, whichever results in a greater setback.

**2.** Bars may not be located within three hundred (300) feet of a public park, school or religious assembly use. The separation distance required by this paragraph must be measured from the nearest property line of such public park, school or religious assembly use to the nearest perimeter wall of the bar.

**3.** Bars may not be located within three hundred (300) feet of any other bar or sexually oriented business establishment, except in the CBD district. The required separation distance must be measured in a straight line between the nearest perimeter walls of the portions of the buildings occupied by the bar or sexually oriented business establishment.

**Figure 40-1: Separation Distance Requirements for Bars**




**4.** Religious assembly uses include all contiguous property owned or leased by the religious organization upon which the principal religious assembly building is located, regardless of any interior lot lines.

**5.** Schools include all contiguous property owned or leased by the school upon which the principal school building is located, regardless of any interior lot lines.

**B.** Bars must be located within completely enclosed buildings, except that outdoor customer seating/dining areas, including rooftop seating, are allowed subject to the following regulations:

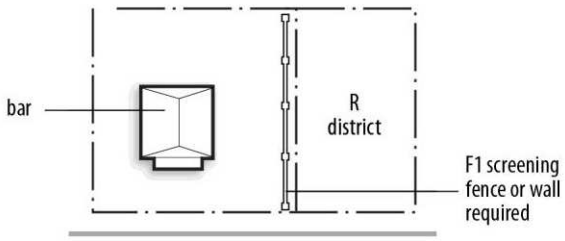
**1.** Outdoor customer seating/dining areas are subject to all applicable building setback requirements and must abut the building wall or roof area of the principal building;

**2.** Outdoor customer seating/dining areas may not occupy required parking spaces or parking area access aisles; and

**3.** When a bar is located on a lot abutting an R-zoned lot, noise emanating from any on-site equipment or activity, including outdoor customer seating/dining areas may not exceed 65 db(A), as measured long the common lot line at the top of the required screening wall or fence.

**C.** When a bar is located on a lot abutting an R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

**Figure 40-2: Screening of Bar Abutting R District**




## Section 40.060. Bed and breakfasts.

The supplemental use regulations of this section apply to all bed and breakfast uses.

**A.** Bed and breakfast are limited to a maximum of twelve (12) guest rooms unless a lower limit is established by the board of adjustment as a condition of an approved special exception.

**B.** The maximum length of stay for any guest is limited to thirty (30) consecutive days.

**C.** The owner/operator must maintain a register of bed and breakfast guests and on-site events for each calendar year and make the register available to city code enforcement upon request.

**D.** Cooking facilities are prohibited in guest rooms.

**E.** Signs are allowed in accordance with the sign regulations of the subject zoning district unless the board of adjustment establishes stricter conditions at the time of special exception approval.

**F.** Public restaurants are prohibited. Meals may be served only to overnight guests and for on-site events expressly authorized by the board of adjustment at the time of special exception approval. The board of adjustment may authorize bed and breakfasts to be rented for events, such as weddings, receptions, anniversaries, private dinner parties, business seminars, etc. The use of bed and breakfasts for on-site events requires express authorization of the board of adjustment, in accordance with the special exception procedures of Section 70.120. As part of approval of the special exception, the board of adjustment is authorized to establish the maximum number of on-site events per year and the maximum number of guests per any single event, based on the availability of off-street parking and the facility's likely impacts on the area.

## Section 40.070. Colleges, universities and hospitals.

Colleges, universities and hospitals are all subject to a minimum site area requirement of one acre.

### Section 40.080. Commercial services.

Whenever a commercial services use is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

### Section 40.090. Community garden and farm, market or community supported.

The supplemental use regulations of this section apply to all community garden uses, and to all farms, market or community supported, as may be allowed in a residentially zones district.

**A.** Unless permitted by the underlying zoning district or approved as a special exception, on-site sale of products is prohibited.

**B.** Lawn and garden equipment of the type customarily used by consumers for household lawn and garden care is the only type of motorized equipment allowed. The use of motorized equipment is restricted to hours beginning at 8:00 a.m. and ending at 8:00 p.m.

**C.** The site must be designed and maintained to prevent any chemical pesticide, fertilizer or other garden waste from draining on to adjacent properties.

**D.** An on-site trash storage container must be provided and located as close as practicable to the rear lot line. Compost bins or piles must also be located as close as practicable to the rear lot line. Trash must be removed from the site at least once a week. Dumpster style trash containers are prohibited.

**E.** Only individuals and organizations authorized by the property owner may participate in the community garden.

**F.** A sign must be posted on the property identifying the name and phone number of the property owner or the owner's agent name. The sign must be at least four (4) and no more than eight (8) square feet in area and be posted so that it is legible from the public right-of-way.

**G.** The owner of any lot used for a community garden or a lot used for a farm, market or community supported, must give each abutting property owner and occupant written notice of the intent to establish a community garden or a farm, market or community supported, and the applicable use regulations of this zoning code at least thirty (30) days before the start of the operation.

**H.** Measures must be taken to prevent cultivated areas from encroaching onto adjacent properties.

**I.** The property must be maintained free of tall weeds and debris. Dead garden plants must be regularly removed and, in any instance, no later than October 31 of each year.

**J.** Within an AG-R or residential zoning district, operating hours for community garden or farm-, market- or community-supported, activities are restricted to between 5:00 a.m. and 11:00 p.m. daily.

**K.** Any use regulation of this section may be modified by special exception approval.

### Section 40.100. Community group homes.

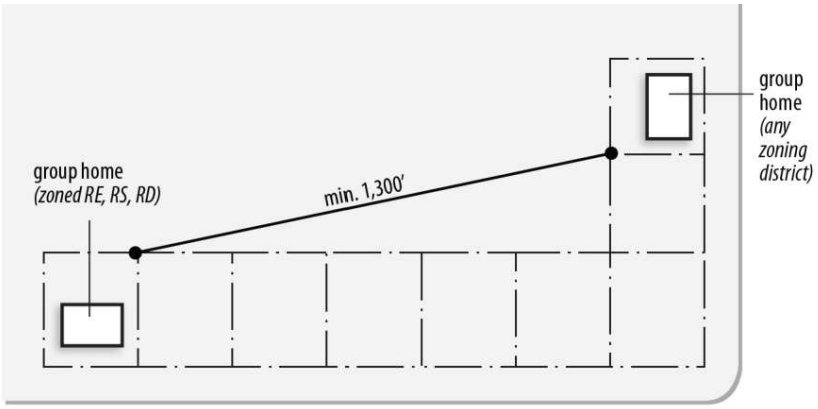
The supplemental use regulations of this section apply to all community group homes.

**A.** The occupancy of a community group home may not exceed fifteen (15) inhabitants. Consideration of special exception approval must, at least in part, be based upon a showing that, but for the economic need associated with the number of inhabitants requested to be permitted in the proposed group home, (1) the dwelling would otherwise be available to the applicant; and (2) the requested number of inhabitants is reasonably calculated to offset the increased economic costs associated with the group home use.

**B.** Community group homes must have all licenses required by the state. A special exception granted for a community group home use will immediately become void upon final revocation of any required state license.

**C.** To avoid over-concentration, community group homes in RE, RS or RD zoning districts may not be located within one thousand three hundred (1,300) feet of any other community group home. This separation requirement is established, not on the basis of any disability status, but on the basis of the non-family status of the groups. The required separation distance must be measured in a straight line from the nearest lot lines of the lots occupied by the community group home uses.

**Figure 40-3: Required Separation of Community Group Homes**




**D.** In order to allow for special accommodations for inhabitants of community group homes, the board of adjustment is authorized, by special exception, to reduce or eliminate the separation distance requirement upon a finding that the federal Fair Housing Amendments Act, as amended, requires it, or that the grant of the special exception will not be injurious to the neighborhood or detrimental to the public welfare and will be in harmony with the spirit and intent of this zoning code. In consideration of granting this special exception, the board of adjustment must specifically consider the following factors:

**1.** Traffic and parking congestion given the capacity of nearby streets;

**2.** The likelihood that any other applicable group home use will impact traffic and parking congestion;

**3.** Traffic hazards;

**4.** Availability of off-street parking;

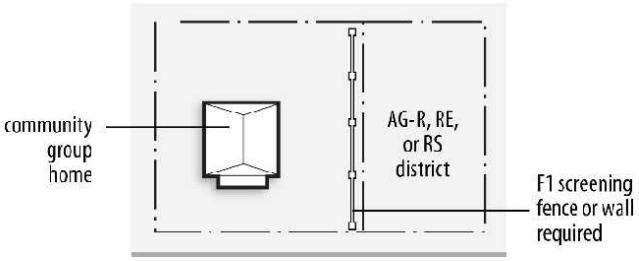
**5.** Availability of public transit and the likelihood of its use;

**6.** Feasibility of traffic mitigation measures; and

**7.** Impacts on public utilities, including water and sanitary sewer capacities.

**E.** When a community group home is located on a lot abutting an RE-, RS-, or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

**Figure 40-4: Screening of Community Group Home Abutting RE, RS, or AG-R Districts**




## Section 40.110. Cottage house developments.

Cottage house developments are subject to the lot and building regulations in Table 5-3, except as expressly modified by the regulations of this section.

**A. Purpose.** The cottage house development regulations of this zoning code are intended to provide opportunities for individual ownership of small houses oriented around a courtyard or common open area.

**B. Development Size.** On lots with one or more cottage house grouping(s), each grouping must contain at least three (3) and no more than ten (10) houses arranged around at least two (2) sides of a courtyard or common open space.

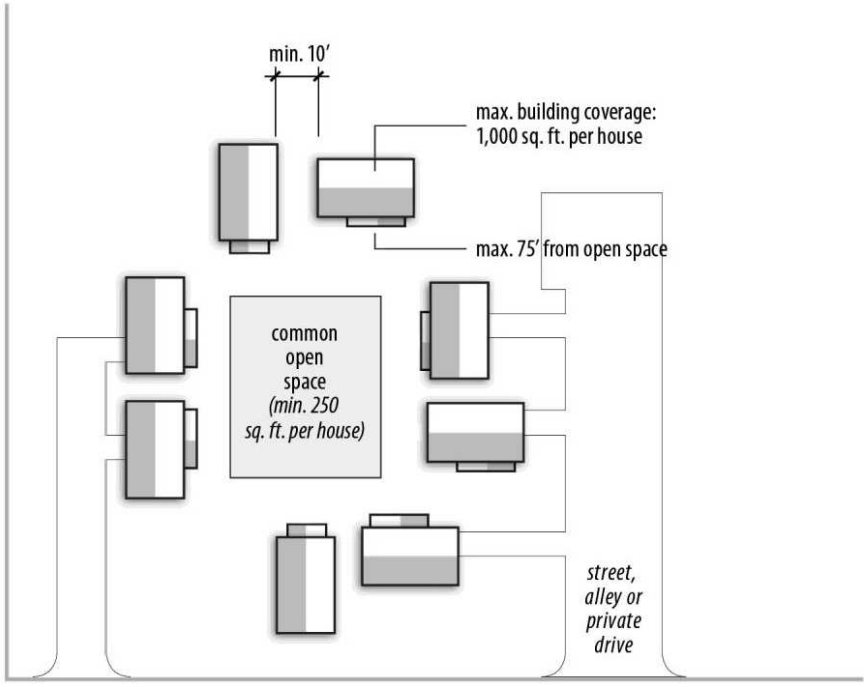
**C. Orientation of cottage houses.**

**1.** Cottage houses must be oriented to, and have a main entry onto a courtyard or common open space area that is accessible by all residents in the cottage house development, provided that cottage houses on lots abutting minor streets must have their front building elevation facing the street, including a building entrance, with a second entrance facing a courtyard or common open space area.

**2.** Required courtyards and common open space areas must have cottage houses abutting on at least two (2) sides.

**3.** All cottage houses must be located within seventy-five (75) feet walking distance of a required courtyard or common open space area.

**Figure 40-5: Cottage House Developments**




**D. Open space.** A unified, contiguous courtyard or common open space must be provided as the focal point of the cottage house development. The courtyard or common open space area must contain at least two hundred fifty (250) square feet of common open space per cottage house.

**E. Building setbacks and separation.** All buildings within a cottage house development must comply with the minimum building setbacks that apply to detached houses in the subject zoning district, except that no building setback is required from an alley. Buildings within a cottage house development must be separated by a minimum distance of ten (10) feet.

**F. Building coverage.** Individual cottage houses are subject to a maximum first floor area of one thousand (1,000) square feet. Attached garages are counted in the calculation of first floor area, but covered porches and detached accessory buildings are not counted.

**G. Vehicular access and parking.**

**1.** Vehicular access to parking areas serving cottage houses within the development may come from the street, an alley or a private drive.

**2.** Required parking may be provided on each cottage house lot or in a shared parking area located within commonly owned space or in a combination of the two. Common parking areas containing four (4) or more spaces must be screened from view of abutting R- or AG-R-zoned lots in accordance with the F1 screening fence or wall standards of Subsection 65.070C. Parking may not be located in street yards or in the required courtyard or common open space area.

**H. Restrictive covenants.** A cottage house development is permitted only if a subdivision plat or other recorded legal instrument incorporating the provisions and requirements of this section (Section 40.110) is recorded in the county clerk's office.

*(Ord. No. 25429, § 13, 10-30-2024)*

**Section 40.120. Day cares.**

**A. Child Care Centers.** When a child care center is located inside an R or AG-R zoning district, outdoor child play equipment may not be located or stored in the street yard. See also the family child care home regulations of Section 40.120-B.

**B. Family Child Care Homes.**

**1.** When a family child care home is located inside an R or AG-R zoning district, outdoor child play equipment may not be located or stored in the street yard.

**2.** Family child care homes must be licensed by the State of Oklahoma.

**3.** Applicants for family child care homes must obtain a zoning clearance permit and a certificate of occupancy before commencing operation.

**4.** Family child care homes may provide care and supervision for the number of children authorized under the state license, up to a maximum of twelve (12) children.

**5.** When a family child care home is located in an AG, AG-R or R zoning district, signs advertising a Family Child Care home are prohibited.

**6.** When a family child care home is located in an AG, AG-R or R zoning district, no exterior building alterations or site modifications may be made that would change the residential character of the premises.

*(Ord. No. 25092, § 4, 7-26-2023; Ord. No. 25192, § 9, 12-6-2023)*

**Section 40.130. Dispersal standards for specified land uses.**

**A.** The supplemental use regulations of this section apply to all detention and correctional facilities, emergency and protective shelters, homeless centers, residential treatment centers and transitional living center uses.

**B.** To avoid over-concentration, all detention and correctional facilities, emergency and protective shelters, homeless centers, residential treatment centers and transitional living center uses must be separated from one another by a minimum distance of two thousand six hundred forty (2,640) feet, as measured in a straight line from the nearest point on the lot line of the property occupied by one of these uses to the nearest point on a lot line of the other property occupied by one of the subject uses (see Figure 40-6). The separation distance requirements of this subsection may be reduced if approved through the special exception approval process.

**Figure 40-6: Dispersal Standards Measurement**

## Section 40.140. Fraternal organizations.

Fraternal organizations require a minimum lot area of one acre in AG, RE and RS zoning districts.

## Section 40.150. Funeral homes.

Funeral homes may be approved as a special exception in any cemetery with a land area of ten (10) acres or more, provided that special exception approval is not required for a funeral home use if the use is permitted as of right in the subject zoning district.

## Section 40.160. Group living uses.

Whenever any group living use is located on a lot abutting an RE-, RS-, or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

## Section 40.170. Hotel or motel.

Whenever a hotel or motel use is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

## Section 40.180. Industrial uses.

**A.** Whenever any industrial use, other than a junk or salvage yard, is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C. Junk and salvage yards are subject to the regulations of Section 40.190.

**B.** Industrial uses located within three hundred (300) feet of an abutting R- or AG-R-zoned lot must be conducted within a completely enclosed building, except for storage, loading and off-loading areas.

## Section 40.190. Junk or salvage yards.

The supplemental use regulations of this section apply to all junk or salvage yards.

**A.** Junk or salvage yards must be screened from view of abutting streets and all AG, AG-R, R, PK, O, C, CBD, SR, IL and CO zoning districts by the erection and maintenance of a screening wall or fence that is:

**1.** At least eight (8) feet in height;

**2.** Made of wood, metal, or masonry construction;

**3.** Designed and arranged to provide opaque visual screening;

**4.** Uniform in height, except in response to significant changes in topography;

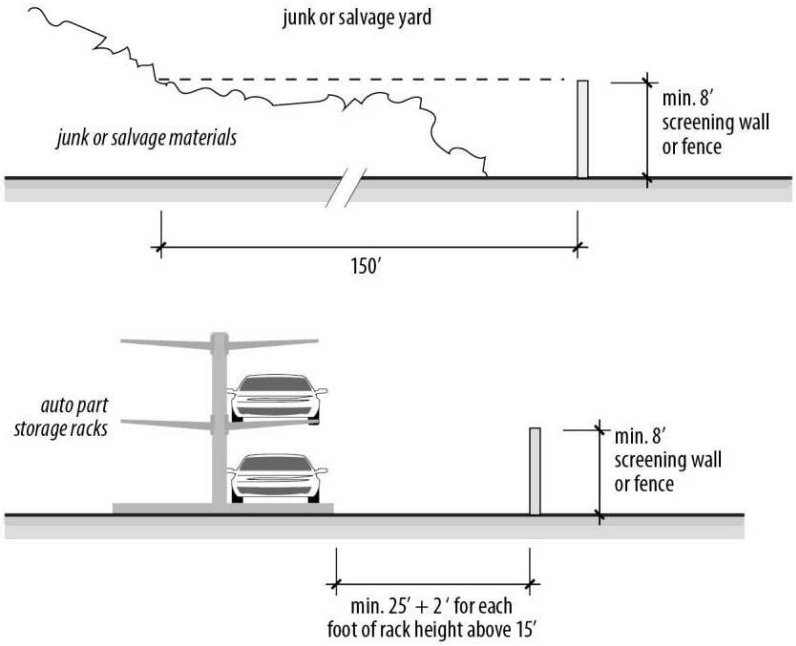
**5.** Constructed with all braces and supports on the interior of the fence or wall; and

**6.** Erected before occupancy of the building or initiation of the junk or salvage yard use.

**B.** Required screening walls and fences must be maintained by the owner of the lot containing the use requiring the screening.

**C.** The piling of junk or salvage materials may not exceed the height of the required screening wall or fence within one hundred fifty (150) feet of the boundary required to be screened, except that storage racks designed for the stacking of automotive front-ends, hoods, doors, quarter panels, and similar parts that exceed the height of the screening wall or fence, must be set back at least twenty-five (25) feet from abutting R- or AG-R-zoned lot and street rights-of-way, plus two (2) additional feet of setback for every foot of rack height above fifteen (15) feet.

**Figure 40-7: Screening and Setback Requirements for Junk and Salvage Material**




**D.** The board of adjustment is authorized as a special exception to:

**1.** Modify or eliminate the screening wall or fence requirements where existing physical features, such as trees and other plant materials, buildings, earthen berms or hills, provide equivalent visual screening;

**2.** Modify the screening wall or fence requirements when alternative screening will provide equivalent visual screening, such as:

**a.** Dense landscaping, or

**b.** A six-foot privacy wall or fence;

**3.** Grant an extension of time to erect a screening wall or fence when properties, other than streets, are undeveloped and no immediate plans for development are known or anticipated; or

**4.** Eliminate the screening wall or fence requirements when the purpose of the screening requirement cannot be achieved, such as when a street is elevated, or when the required screening wall or fence is prohibited by other regulations, such as in floodplains.

### Section 40.200. Library or cultural exhibit.

Museums, planetariums, aquariums and other cultural exhibit uses require a minimum lot area of one acre in AG, AG-R, RE and RS zoning districts.

### Section 40.210. Manufactured housing units.

The supplemental regulations of this section apply only to manufactured housing units approved as special exception uses in R or AG-R zoning districts.

**A.** No more than one manufactured housing unit may be located on a lot.

**B.** Manufactured housing units are required to comply with the same lot and building regulations that apply to detached houses in the subject zoning district.

*(Ord. No. 25429, § 14, 10-30-2024)*

### Section 40.220. Manufactured housing subdivisions.

The supplemental use regulations of this section apply to all manufactured housing subdivisions.

**A.** Manufactured housing subdivisions require a minimum contiguous land area of ten (10) acres.

**B.** All manufactured housing units in manufactured housing subdivisions must be attached to a permanent foundation and comply with the same lot and building regulations that apply to detached houses in the subject zoning district.

### Section 40.225. Medical marijuana uses.

The supplemental use regulation of this section apply to medical marijuana uses.

**A.** A medical marijuana grower operation must be located inside an enclosed building.

**B.** A medical marijuana processing facility, whether low-impact or high-impact, must be located inside an enclosed building.

**C.** A medical marijuana dispensary must be located inside an enclosed building.

**D.** A medical marijuana dispensary may not be located within 1,000 feet of another medical marijuana dispensary.

**E.** Drive-through windows and drive-through lanes are prohibited for medical marijuana grower operations, processing facilities, and research facilities.

**F.** Medical marijuana grower operations, processing facilities, waste disposal facilities, and dispensaries must provide the following:

**1.** A ventilation/air filtration system that prevents odor from being detectible at the boundaries of the lot within which the building housing the medical marijuana grower operation, processing facility or dispensary is located, except that if such use is located in multiple-tenant building, the ventilation/air filtration system must prevent odor from being detectible outside the tenant space housing the use.

**2.** An electronic security system and surveillance camera.

**G.** Medical marijuana grower operations, processing facilities, dispensaries, transportation facilities, education facilities, waste disposal facilities, testing laboratories, and research facilities must be conducted and maintained in compliance with the licenses issued by the Oklahoma Medical Marijuana Authority and in compliance with Oklahoma law, including but not limited to all applicable statutes, rules and regulations.

**H.** No medical marijuana grower operation, processing facility, dispensary, transportation facility, education facility, waste disposal facility, testing laboratory, or research facility shall be permitted or maintained unless there exists a valid license, issued by the Oklahoma Medical Marijuana Authority for the particular use at the particular location.

**I.** The separation distance required under Section 40.225D. must be measured in a straight line between the nearest perimeter walls of the buildings (or portion of the building, in the case of a multiple-tenant building) occupied by the dispensaries. The separation required under Section 40.225D. shall not be applied to limit the location of a medical marijuana dispensary for which a license was issued by the Oklahoma Medical Marijuana Authority prior to December 1, 2018, for the particular location.

**J.** A medical marijuana waste disposal facility must be located inside an enclosed building.

*(Ord. No. 24569, § 1, 2-24-2021; Ord. No. 25330, § 13, 6-5-2024)*

### Section 40.230. Mining or mineral processing.

As part of the special exception review and approval process for any mining or mineral processing use, the board of adjustment must consider potential environmental impacts, such as noise, dust and vibration, and is authorized to establish conditions of approval (e.g., setbacks, screening, and methods of operation) to help control and mitigate any adverse land use or environmental impacts on surrounding areas.

### Section 40.240. Mobile home parks.

The supplemental regulations of this section apply to all mobile home parks.

**A.** All mobile homes and manufactured housing units must be completely skirted.

**B.** All mobile homes and manufactured housing units must be anchored in accordance with city regulations.

**C.** All housing units must be certified and display applicable federal certifications.

**D.** The lot and building regulations of Table 40-1 apply to the overall mobile home park site:

**Table 40-1: Mobile Home Park Lot and Building Regulations**

| **Regulations** | |
|---|---|
| Minimum Area (acres) | 5 |
| Minimum Width (feet) | 200 |
| Minimum Lot Area per Unit (sq. ft.) | 5,000 |
| Minimum Building Setbacks (feet) | |
| Street (Arterial/Freeway) | 35 |
| Street (Non-Arterial/Freeway) | 20 |
| Side (interior) | 10 |
| Rear | 10 |
| Maximum Building Height (feet) | 15 |

**E.** The lot and building regulations of Table 40-2 apply to individual mobile home and manufactured housing unit spaces within a mobile home park:

**Table 40-2: Mobile Home and Manufactured Housing Unit Space Regulations**

| **Regulations** | |
|---|---|
| Minimum Area (sq. ft.) | 4,000 |
| Minimum Width (feet) | 40 |
| Minimum Building Setbacks (feet) | |
| Street | 10 |
| Side (interior) | 5/10[1] |
| Rear | 10 |
| Minimum Separation Between Units (feet) | 15 |
| Maximum Under-Roof Area [2] (% of space) | 45 |
| Minimum Outdoor Living Area [3] (sq. ft.) | 100 |

Table 40-2 apply to individual mobile home and manufactured housing unit spaces within a mobile home park.

Table 40-2 Notes:

**[1]** Minimum five (5) feet on one side, ten (10) feet on the other.

**[2]** Includes dwellings, carports and all other accessory buildings.

**[3]** May be covered by roof or awning. May be paved but may not include parking or driveway areas. Must have average dimensions of ten (10) feet per side.

**F.** Accessory buildings must be set back at least ten (10) feet from manufactured housing units.

**G.** Streets within the mobile home park must have a minimum paved width of twenty-four (24) feet.

**H.** Common park/recreational open space and facilities (which may include trails, playgrounds, community buildings and tot-lots) must be provided for all mobile home

parks equal to at least six (6) percent of the total gross area of the mobile home park, exclusive of outdoor living area provided on individual mobile home/manufactured unit spaces.

### Section 40.250. Multi-unit houses.

Multi-unit houses are subject to the lot and building regulations of the subject zoning district, except as expressly modified by the supplemental regulations of this section.

**A.** The street-facing façade of a multi-unit house may have only one building entrance that is visible from the street. If the building is located on a corner lot, one building entrance may be visible from each street.

**B.** Patio-style doors, such as sliding glass doors, may not be used for entrance doors on building façades that face a street.

**C.** The front façade of new multi-unit houses established after the effective date established in Section 1.030 may not exceed sixty (60) feet in width.

**D.** Outdoor (surface) parking areas may not be located between the principal building and the street or within any required side building setback.

### Section 40.260. Offices.

The supplemental use regulations of this section apply to office uses in the districts indicated.

**A.** Office uses in the RM-1 district must comply with the lot and building regulations of the OL district.

**B.** Office uses in the RM-2 district must comply with the lot and building regulations of the OM district, except that no building occupied by office uses may exceed thirty-five (35) feet in height.

**C.** Office uses in the RM-3 district must comply with the lot and building regulations of the OMH district.

**D.** Whenever an office use is located on a lot abutting an R- or AG-R- zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

### Section 40.270. Oil or gas wells.

Oil and gas wells and oil and gas well drilling operations are subject to the regulations of Title 42A of the Tulsa Revised Ordinances.

### Section 40.280. Parking structures.

The supplemental use regulations of this section apply only to parking structures located in MX districts.

**A.** The ground floor of parking structures must be screened from view of abutting public sidewalks by a liner building. The floor space within the liner building may be occupied by any principal use allowed in the district, except for parking.

**B.** The street-facing facade of parking structures must be oriented horizontally (maintain a horizontal line) on all street-facing facades, so that the sloping nature of parking floors is not repeated on the exterior facade. This requirement does not apply to

helix-shaped ramps leading to and from parking floors and may be waived or modified in accordance with the administrative adjustment provisions of Section 70.100 when compliance would result in a reduction in the number of parking spaces or necessitate mechanical ventilation of the garage.

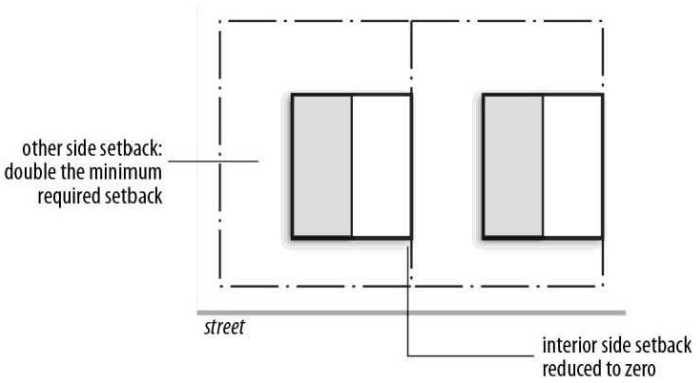
## Section 40.290. Patio houses.

Patio houses are subject to the lot and building regulations of the subject zoning district, except as expressly modified by the supplemental patio house regulations of this section.

**A.** A patio house development must consist of at least three (3) contiguous lots with frontage on the same street.

**B.** The interior side building setback on one side of the lot containing a patio house may be reduced to as little as zero. The zero- or reduced setback side of a patio house may not abut a street and may not abut a lot that is not part of the patio house development. On the "non-zero" side, a side building setback must be provided equal to at least twice the minimum side building setback requirement of the subject zoning district.

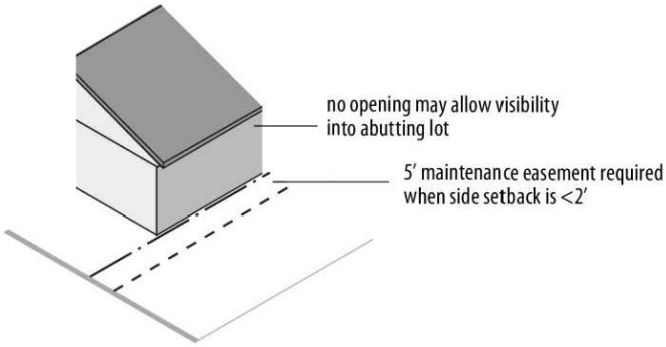
**Figure 40-8: Minimum Side Building Setbacks for Patio Houses**




**C.** When the patio house's exterior wall or eaves are within two (2) feet of the abutting property line, a perpetual maintenance easement at least five (5) feet in width must be provided on the lot abutting the zero patio property line, which, with the exception of walls and/or fences, must be kept clear of structures. The easement must be depicted on and established in a recorded plat or a separate legal instrument recorded in the county clerk's office. This provision is intended to ensure the ability to conduct maintenance on the patio house. Eaves on the side of a patio house with a zero or reduced setback may project over the side property line only if shown on the easement required under this paragraph.

**D.** Windows, doors and other openings that allow for visibility into the side yard of the lot abutting the reduced or zero setback side of the patio house are prohibited. Windows that do not allow visibility into the side yard of the lot abutting the zero or reduced setback side, such as clerestory windows or translucent windows, are allowed, subject to compliance with the building code.

**Figure 40-9: Patio House Maintenance Easements and "Privacy" Requirements**




**E.** A patio house development is permitted only if a subdivision plat or other recorded legal instrument incorporating the provisions and requirements of this section (Section 40.290) is recorded in the county clerk's office.

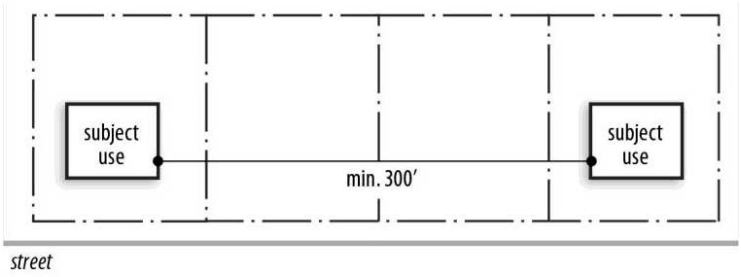
## Section 40.300. Plasma centers, day labor, package stores, bail bonds, pawn shops.

The supplemental use regulations of this section apply to all plasma centers, day labor hiring centers, package stores, bail bond offices and pawn shops.

**A.** Plasma centers, day labor hiring centers, package stores, bail bond offices and pawn shops must be separated by a minimum distance of three hundred (300) feet, provided that bail bond offices located within the CBD district are not subject to this separation requirement.

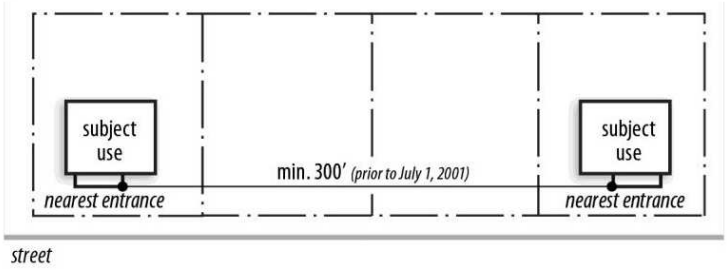
**B.** For uses established after July 1, 2001, the separation distance requirement of Subsection 40.300A. must be measured in a straight line from the nearest perimeter wall of the portion of the building occupied by one of the subject uses to the nearest perimeter wall of the portion of the building of any other subject use.

**Figure 40-10: Measurement of Required Use Separation (Permits issued after 7/1/2001)**




**C.** For uses that were in operation or had been issued a building permit on or before July 1, 2001, the separation distance requirement of Subsection 40.300A. must be measured in a straight line from the nearest public entrance door of one of the subject uses to the nearest public entrance door of any other subject use.

**Figure 40-11: Measurement of Required Separation (Uses Established/Permits Issued on or before 7/1/2001)**




## Section 40.310. Recycling uses.

**A.** Whenever any recycling use is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

**B.** Recycling uses located within three hundred (300) feet of an abutting R- or AG-R-zoned lot must be conducted within a completely enclosed building, except for storage, loading and off-loading areas.

## Section 40.320. Religious assembly.

The supplemental use regulations of this section apply to religious assembly uses in AG and R districts.

**A.** In AG and R zoning districts, religious assembly uses must be located on lots with a minimum lot area of one acre and a minimum lot width of one hundred (100) feet.

**B.** In AG and R zoning districts, off-street parking on the site of a religious assembly use is prohibited in street building setbacks.

## Section 40.330. Restaurants.

The supplemental use regulations of this section apply to all restaurant uses.

**A.** Restaurants must occupy completely enclosed buildings, except outdoor customer seating/dining, including rooftop seating, is permitted subject to the following regulations:

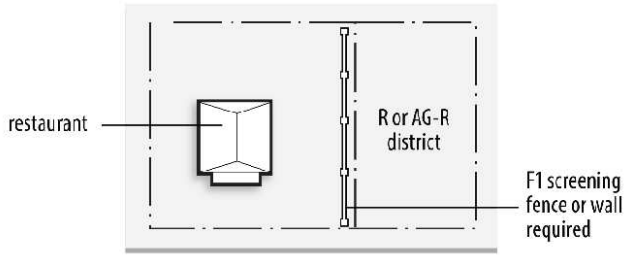
**1.** Outdoor customer seating/dining areas are subject to all applicable building setback requirements and must abut the building wall or roof area of the principal building;

**2.** Outdoor customer seating/dining areas may not occupy required parking spaces or drive aisles or be located within fifty (50) feet of R- or AG-R-zoned lots;

**3.** When a restaurant is located on a lot abutting an R- or AG-R-zoned lot, noise emanating from any onsite equipment or activity, including outdoor customer seating/dining areas may not exceed sixty-five (65) db(A), as measured along the common lot line at the top of the required screening wall or fence.

**B.** Whenever a restaurant is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

**Figure 40-12: Screening of Restaurant Abutting R or AG-R Districts**




## Section 40.340. Retail sales.

**A.** Whenever a retail sales use is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

**B.** Retail sales uses must take place within a completely enclosed building, except that accessory outdoor display of merchandise and accessory outdoor customer seating/dining areas are permitted, subject to the following supplemental regulations:

**1.** Outdoor display areas must comply with the minimum street setback requirements of the subject zoning district;

**2.** Outdoor display areas may not occupy or use required parking spaces or drive aisles;

**3.** Outdoor display areas are considered floor area for the purposes of determining off-street parking requirements; and

**4.** Outdoor customer seating/dining areas are subject to the same requirements that apply to restaurants, per Subsection 40.330A.

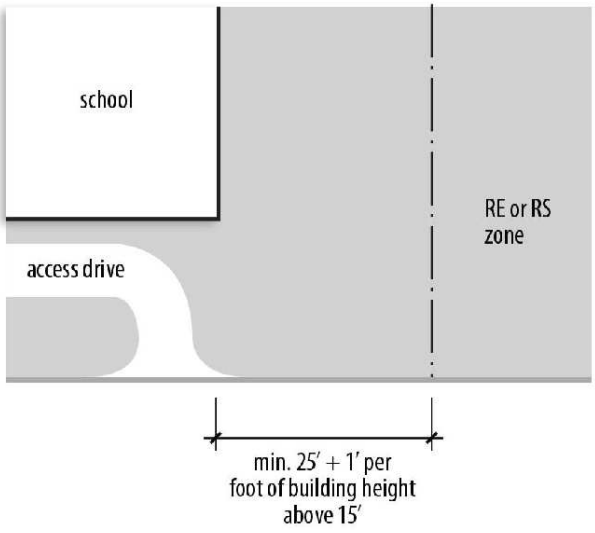
## Section 40.350. Schools.

**A. Schools Established Before January 1, 1998.** Schools established before January 1, 1998 are subject to a maximum floor area ratio of 0.5 and to the following supplemental use regulations:

**1.** Day care uses and community centers may be allowed as accessory uses to a school. Outdoor stadiums, lighted athletic fields, unlighted athletic fields that have bleachers for non-student spectators and buildings and structures accessory to these types of stadiums or fields may not be approved as accessory uses to a school.

**2.** Buildings, parking areas and access drives must be set back at least twenty-five (25) feet from abutting RE- and RS-zoned properties, plus one foot of additional building setback for each one foot of building height above fifteen (15) feet. These setback and height requirements do not apply if the RE- or RS-zoned land is freeway or expressway right-of-way.

**Figure 40-13: Required Building Setbacks from RE and RS Zoning Districts (Schools)**




**B. Schools established on or after January 1, 1998.** Schools established on or after January 1, 1998 require a minimum lot area of one acre, and lots to be occupied by senior high schools must have frontage on an arterial street.

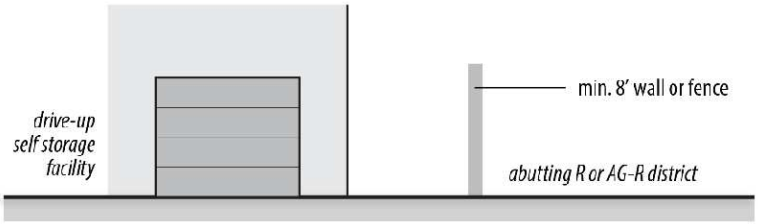
## Section 40.360. Self-service storage facilities.

**A. General.**

**1.** The general provisions of this section apply to all self-service storage facilities.

**2.** A screening fence or masonry wall is required along all lot lines that abut R- or AG-R-zoned lots. Required screening fences and walls must be at least eight (8) feet in height. If buildings are masonry, the building wall can serve as the screening wall, provided that any open spaces between perimeter buildings are screened with a masonry screening wall at least eight (8) feet in height. The screening fence/wall requirements of this section do not apply to climate-controlled self-storage buildings in which self-storage spaces are accessed only from within the building.

**Figure 40-14: Screening of Drive-up Style Self-Storage Facilities from Abutting R or AG-R Districts**




**3.** A single dwelling unit may be integrated into the self-storage facility.

**4.** No activities other than storage and pick-up and deposit of stored materials are allowed within the storage units.

**B. RM and O Districts.** Self-service storage facilities located in RM or O zoning districts are subject to the following additional requirements:

**1.** Exterior building walls visible from streets and abutting lots must be of masonry construction, using brick, stone, stucco or concrete tilt-up panels. Corrugated steel or standard (smooth) concrete block exterior walls are not permitted on these walls.

**2.** The floor area ratio (FAR) may not exceed 0.5.

**3.** Access doors to drive-up style storage units may not be visible at ground-level from abutting O-, R-, or AG-R-zoned lots or from abutting street rights-of-way.

**4.** The storage of flammable liquids, highly combustible, explosive materials or hazardous chemicals is prohibited.

**5.** In RM-1 and OL districts storage may only occur within completely enclosed buildings. All storage in RM-2, RM-3, OM, OMH or OH districts must also occur in completely enclosed buildings, except that outdoor (open-air) storage is allowed on the interior of the lot if the storage is not visible at ground level from abutting R, O, or AG-R districts or from any street rights-of-way.

**C. CS District.** In the CS district, no outdoor (open-air) storage of any kind is allowed that is visible at ground level from abutting R, O, or AG-R districts or from any street rights-of-way.

## Section 40.370. Sexually oriented business establishments.

The supplemental use regulations of this section apply to all sexually oriented business establishments.

**A.** Sexually oriented business establishments are allowed only in those districts and under those approval procedures expressly stated in this zoning code. In addition, no person may exercise supervisory control, manage, operate, cause the establishment or permit the establishment of any sexually oriented business establishment within one thousand (1,000) feet (the "minimum separation distance") of any of the following:

**1.** Another sexually oriented business. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the

building occupied by a sexually oriented business establishment to the nearest point of the wall of the portion of the building occupied by another sexually oriented business establishment.

**2.** A religious assembly use, including all contiguous property owned or leased by the religious organization upon which the principal religious assembly building is located, regardless of any interior lot lines. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the building occupied by a sexually oriented business establishment to the nearest point of the building in which religious assembly activities occur.

**3.** A school, including all contiguous property owned or leased by the school upon which the principal school building is located, regardless of any interior lot lines. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the building occupied by a sexually oriented business establishment to the nearest point of the school.

**4.** A public or private park. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the building occupied by a sexually oriented business establishment to the nearest point on the property of the park.

**5.** Residential zoning or a habitable dwelling unit in an AG or AG-R zoning district. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the building occupied by a sexually oriented business establishment, to the nearest point on an R district boundary line (not including R-zoned expressway right-of-way) or to the nearest point of the exterior wall of a habitable dwelling located in an AG or AG-R zoning district.

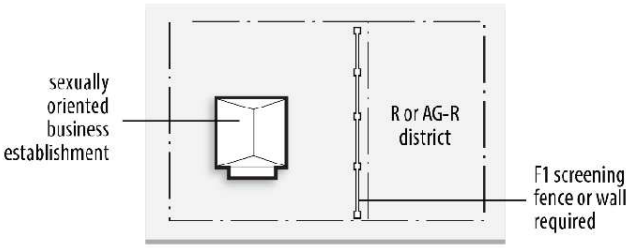
**6.** Any group living use or public, civic or institutional use that cares for or is typically frequented by persons under 18 years of age, including child day cares, children's preschools, children's nurseries, children's day camps, juvenile delinquency centers, children's campgrounds, children's group homes, libraries and cultural exhibits. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the building occupied by a sexually oriented business establishment to the nearest point on the property occupied by the use that cares for or is typically frequented by persons under 18 years of age.

**B.** The separation distance requirements of this section apply to new sexually oriented business establishments, the relocation of sexually oriented business establishments, the enlargement of sexually oriented business establishments in scope or area or the conversion of an existing business location to any sexually oriented business establishment.

**C.** If a new religious assembly use, school, park or protected group living use or public, civic or institutional use is established within one thousand (1,000) feet of an existing lawful sexually oriented business establishment, the distance separation requirements from religious assembly uses, schools, parks or protected group living uses or public, civic or institutional uses do not apply.

**D.** When a sexually oriented business establishment is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

**Figure 40-15: Screening of Sexually Oriented Business Establishments**




## Section 40.375. Short-term rental.

The supplemental use regulations of this section apply to all principal use short-term rentals.

**A.** A short-term rental must comply with all licensing requirements of the City of Tulsa and an approved license number must be included with any material advertising the short-term rental.

**B.** Events are not permitted in conjunction with a short-term rental use. Examples of events include, but are not limited to, weddings, receptions, anniversaries, private parties, banquets, and business seminars.

**C.** A register of short-term rental guests must be maintained and made available to city code enforcement upon request.

**D.** External structural alterations or site improvements that change the residential character of the lot upon which a short-term rental is located are prohibited. Examples of such prohibited alterations include, but are not limited to, the construction of a parking lot, the addition of commercial-like exterior lighting, and signage.

**E.** No recreational vehicle, bus, or trailer shall be parked on a residential street in conjunction with a short-term rental use. A recreational vehicle, bus or trailer may be parked on the property if not visible from the street.

*(Ord. No. 24328, § 6, 3-11-2020)*

## Section 40.380. Studios, artist or instructional services.

Whenever an artist studio or an instructional services studio is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

## Section 40.390. Townhouses.

**A. Applicability.** Townhouses are subject to all applicable regulations of this zoning code and other city codes and ordinances except as modified or supplemented by the townhouse development and building regulations of this section.

**B. Side setbacks.** No side building setback is required for common or abutting walls. Otherwise, the minimum side setback requirements of the subject zoning district apply.

**C. Design.** Townhouses must be affixed to a permanent foundation.

**D. Open space.** Required open space per dwelling unit for a townhouse project may be provided either on each townhouse lot or in common areas within the overall townhouse project, as designated on a recorded subdivision plat or in a separately recorded legal instrument.

### Section 40.400. Vehicle sales and service.

**A.** Whenever a vehicle sales and service use is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

**B.** Whenever commercial or personal vehicle sales or rentals are within three hundred (300) feet of an R- or AG-R-zoned lot, off-street parking and vehicle display areas must comply with the parking area design standards of Section 55.090.

### Section 40.410. Wholesale, distribution and storage uses.

Whenever any wholesale, distribution and storage use is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

### Section 40.420. Wireless communication facilities.

**A. Purpose.** The wireless communication facility regulations of this section establish supplemental regulations governing wireless communications towers and antennas. These regulations are established to promote the following goals:

**1.** Protecting residential areas and land uses from potentially adverse impacts of towers and antennas;

**2.** Encouraging the location of towers in nonresidential areas;

**3.** Minimizing the total number of towers;

**4.** Encouraging co-location rather than the construction of additional single-use towers;

**5.** Encouraging users of towers and antennas to locate them, to the extent possible, in areas where the adverse impact on the community is minimal;

**6.** Encouraging users of towers and antennas to configure them in a way that minimizes the adverse visual impact of the towers and antennas through careful design, siting, landscape screening and innovative camouflaging techniques; and

**7.** Helping to ensure the ability of telecommunications services providers to offer such services to the community quickly, effectively and efficiently.

**B. Exemptions.** The following are exempt from these regulations:

**1.** Amateur (Ham) radio antennas;

**2.** Microwave reflectors and parabolic antennas;

**3.** Antennas and equipment located completely inside of buildings; and

**4.** Minor modifications of existing wireless communications facilities and attached wireless communications facilities, whether emergency or routine, provided there is little or no change in the visual appearance. Minor modifications are those

modifications, including the addition of antennas, to conforming wireless and attached wireless communications facilities that comply with all applicable regulations of this section.

**C. Federal Law.** The wireless communication facility regulations of this section must be applied within the constraints of the Telecommunications Act of 1996 and Section 6409 of the Middle Class Tax Relief and Job Creation Act of 2012.

**D. Special definitions.** The following definitions are established solely for administering and interpreting the wireless communication facility regulations of this section:

**1.** "Antenna" means any exterior transmitting or receiving device used in communications to radiate or capture electromagnetic waves, digital signals, analog signals, radio frequencies, wireless telecommunications signals or other communication signals.

**2.** "FAA" means the Federal Aviation Administration.

**3.** "FCC" means the Federal Communications Commission.

**4.** "Height," when referring to a tower or wireless communication facility, means the distance from finished grade at the base of the tower or facility, including any base pad, to the highest point of the structure.

**5.** "Monopole" means a single, freestanding pole structure without guy wires or external supporting braces.

**6.** "Tower" means any structure more than twenty (20) feet tall that is designed and constructed primarily for the purpose of supporting one or more antennas for telephone, radio and similar communication purposes, including self-supporting lattice towers, guyed towers or monopole towers. The term includes radio and television transmission towers, microwave towers, common-carrier towers, cellular telephone towers and the like. The term includes the tower structure and any tower supports.

**E. General requirements.** All towers and antennas are subject to the general requirements of this subsection unless otherwise expressly stated.

**1.** Towers may be considered either principal or accessory uses. Another principal or accessory use on the same lot does not preclude the installation of a tower on that lot.

**2.** Towers and antennas are subject to all of the following requirements:

**a.** Towers and antennas must be designed to blend into the surrounding environment through the use of color, galvanizing, or camouflaging architectural treatment, except in instances where the color is dictated by federal or state authorities, such as the Federal Aviation Administration.

**b.** Except in IM and IH zoning districts, communication towers must be of a monopole design unless the board of adjustment approves, by special exception, an alternative design that they determine would better blend into the surrounding environment or that the required antennas cannot be supported by a monopole.

**c.** If an antenna is installed on a structure other than a tower, the antenna and supporting electrical and mechanical equipment must be of a color that closely matches or complements the color of the supporting structure, so as to make the antenna and related equipment as visually unobtrusive as possible.

**3.** Towers may not be illuminated by artificial means and may not display strobe lights unless such lighting is expressly required by the Federal Aviation Administration or other federal or state authorities. When incorporated into the approved design of the tower, light fixtures used to illuminate ball fields, parking lots or similar areas may be attached to the tower.

**4.** The use of any portion of a tower for advertising or signs other than warning or equipment information signs is expressly prohibited.

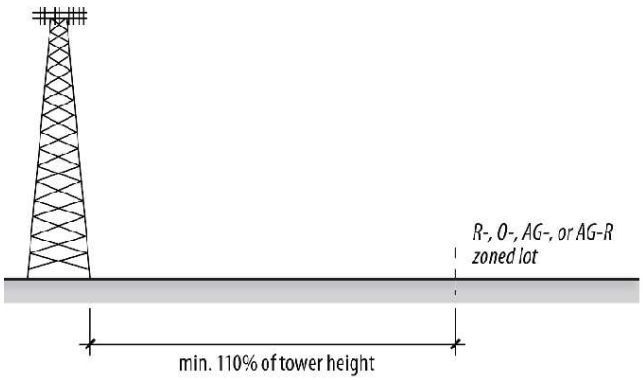
**5.** All utility buildings and structures accessory to a tower must comply with all applicable requirements of the underlying zoning district. Exterior ground-mounted equipment occupying more than fifty (50) square feet, if visible from ground level, must be screened from view of abutting property used or zoned for residential purposes by a screening wall or fence in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

**6.** The following setback requirements apply to all towers unless otherwise expressly approved by the board of adjustment as part of the special exception approval:

**a.** Towers must be set back a distance equal to at least one hundred ten (110) percent of the height of the tower from any adjoining lot line of an R-, O-, AG-, or AG-R-zoned lot, excluding R-zoned expressway rights-of-way.

**b.** Accessory buildings are subject to applicable zoning district building setback requirements.

**Figure 40-16: Tower Setback from R, O, AG, or AG-R districts**




**7.** Towers must be enclosed by security fencing that is at least 6 feet in height or be equipped with an appropriate anti-climbing device.

**F. Antennas and towers requiring special exception approval.**

**1. Applicability.** The regulations of this subsection (Subsection 40.420F.) apply to all antennas and towers that require special exception approval.

**2. Factors to be considered.**

**a.** In addition to any other applicable requirements, the following factors must be considered in a decision to approve or deny special exception approval for a tower:

(1) Height of the proposed tower;

(2) Proximity of the tower to residential structures, residential district boundaries and existing towers;

(3) Nature of uses on adjacent and nearby properties;

(4) Surrounding topography;

(5) Surrounding tree coverage and foliage;

(6) Design of the tower, with particular reference to design characteristics that have the effect of reducing or eliminating visual obtrusiveness;

(7) The total number and size of antennas proposed and the ability of the proposed tower to accommodate co-location;

(8) Architectural design of utility buildings and accessory structures to blend with the surrounding environment;

(9) Proposed ingress and egress;

(10) The need for a tower within the immediate geographic area to provide an acceptable level of communications service to the area;

(11) The size of the tract and the most likely future development as indicated by the comprehensive plan, planned infrastructure, topography and other physical considerations.

**b. Findings.** The findings of the board of adjustment as to each of these factors must be made on the record and included in the written minutes of the meeting.

**3. Co-location.** Co-location of facilities is encouraged wherever practical by allowing reasonable extra height or tower diameter necessary to support multiple antennas.

**4. Landscaping.** The following requirements govern landscaping surrounding towers that require special exception approval; provided that the board of adjustment may modify or waive such requirements by special exception.

**a.** Tower facilities must be landscaped with a continuously maintained buffer of plant materials that effectively screens the view of the tower compound from property within three hundred (300) feet used or zoned for residential purposes. The standard buffer requirement consists of a landscaped strip with a minimum width of four (4) feet outside the perimeter of the compound.

**b.** Existing mature tree growth and natural land forms on the site must be preserved to the maximum extent possible. In some cases, such as towers sited on large, wooded lots, natural growth around the property perimeter may provide sufficient buffer.

**G. Antennas and towers permitted as-of-right.**

**1. Applicability.** The regulations of this subsection (Subsection 40.420G.) apply to all antennas and towers that are permitted as-of-right.

**2. Permits.** A permit must be obtained from the city before installation or construction of any antenna or tower.

3. **Standards.** Antennas and towers that are permitted as-of-right are subject to the following supplemental regulations:
   a. Antennas attached to the roof or wall of buildings in commercial or industrial zoning districts, or to office or apartment/condo buildings, or to public, civic or institutional buildings (e.g., schools, places of worship, or hospitals) are subject to all of the following regulations:
      (1) An antenna may not extend more than twenty (20) feet above the highest point of the building, or, if located on an architectural feature such as a steeple or bell tower, may not protrude above that structure; provided, however, that the board of adjustment may modify such requirements by special exception; and
      (2) The antenna must comply with all applicable FCC and FAA regulations;
      (3) The antenna must comply with all applicable building codes.
   b. Antennas may be attached to existing towers and to city-owned buildings and structures. When an existing tower must be modified to accommodate the collocation of antennas, the tower must be of the same type as the existing tower or reconstructed as a monopole and the modification or reconstruction may not result in a height increase of more than thirty (30) feet above the height of the existing tower. Other modifications may be approved by special exception.

**H. Removal of abandoned antenna and towers.** Any antenna or tower that is not operated for a continuous period of twelve (12) months will be considered abandoned, and the owner of the antenna or tower must remove it within ninety (90) days of receiving notice from the city. Failure to remove the abandoned antenna or tower within ninety (90) days constitutes grounds for the city to remove the antenna or tower at the owner's expense. Abandoned towers are subject to the nuisance abatement procedures set forth in Title 24 Tulsa Revised Ordinances, Chapter 2.

**I. Preexisting towers and antennas.** Any tower or antenna that lawfully existed on or before April 19, 1997 including a tower or antenna for which a permit was issued on or before that date which was constructed within the time frame allowed under the permit, is allowed to remain in use. Routine maintenance, including antenna replacement, is permitted. All new construction, other than routine maintenance, requires compliance with all applicable regulations of this section.

## Section 40.430. Farmers markets.

The supplemental use regulations of this section apply to all farmers markets.

**A.** All temporary tents, seating, equipment, materials and merchandise must be stored in a permanent building or off site when the farmers market is not operation.

**B.** All tents placed on a temporary basis for the farmers market must follow all tent regulations within City of Tulsa ordinances and must be placed in a manner that complies with the building setback lines of the subject zoning district.

**C.** All farmers markets and their vendors must comply with federal state and local laws and regulations relating to the operation and use of the market premises, including but not limited to any requirements to obtain health permits and licenses.

*(Ord. No. 25604, § 9, 6-18-2025)*

## CHAPTER 45. ACCESSORY USES AND STRUCTURES

Section 45.010. Generally applicable regulations.
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### Section 45.010. Generally applicable regulations.

**A. Accessory uses allowed.** Accessory uses and structures are allowed only in connection with lawfully established principal uses.

**B. Allowed uses and structures.** Allowed accessory uses and structures are limited to those expressly regulated in this chapter as well as those that, in the determination of the development administrator, satisfy all of the following criteria:

**1.** They are customarily found in conjunction with the subject principal use or principal structure;

**2.** They are subordinate and clearly incidental to the principal use of the property; and

**3.** They serve a necessary function for or contribute to the comfort, safety or convenience of occupants of the principal use.

**C. Time of construction and establishment.**

**1.** Accessory uses may be established only after the principal use of the property is in place.

**2.** Accessory buildings may be established in conjunction with or after the principal building or use. They may not be established before the principal building or use is in place.

**D. Location.** Accessory uses and structures must be located on the same lot as the principal use to which they are accessory, unless otherwise expressly stated.

**E. Compliance with lot and building regulations.** Unless otherwise expressly stated, accessory uses and structures are subject to the same lot and building regulations as apply to principal uses and buildings. See also the provisions governing allowed yard obstructions (Subsection 90.090C.) and exceptions to height limits (Subsection 90.160B.).

## Section 45.020. Accessory antennas.

**A. AG, AG-R, R and PK districts.**

1. In AG, AG-R, R and PK districts, accessory antennas and their support structures are allowed to be mounted on a principal building or accessory building, provided that:
   - **a.** The overall mounted height of the antenna does not exceed sixty-five (65) feet, measured from the average ground elevation at the base of the building to the highest point of the antenna; and
   - **b.** The aggregate surface area of all mounted antennas may not exceed ten (10) square feet, based on the area of side with the largest surface area.
2. In AG, AG-R, R and PK districts, structures other than principal or accessory buildings that are used to support accessory antennas (including guy lines) must comply with all of the following regulations:
   - **a.** Only one such antenna support structure is allowed on a lot.
   - **b.** The antenna support structure may be located only in the rear yard, not in a street yard or side yard.
   - **c.** The overall height of the antenna may not exceed sixty-five (65) feet, measured from the average ground elevation at the base of the structure to the highest point of the antenna.
   - **d.** The antenna support structure may not encroach upon the land or airspace of any abutting property.
   - **e.** The antenna support structure may not exceed twenty-four (24) inches in width above twenty-five (25) feet in height, exclusive of guy lines.

**B. Other districts.** In all districts other than AG, AG-R, R or PK districts, antenna support structures that are accessory to principal uses must be set back from any R district a distance equal to at least one hundred ten (110) percent of the height of the antenna, measured from the average ground elevation at the base of the structure to the highest point of the antenna. The setback distance must be measured from the nearest point of the antenna supporting structure (excluding any guy lines) to the nearest point on the residential zoning district boundary line, excluding R-zoned freeways.

## Section 45.030. Accessory buildings and carports in R districts.

**A. Accessory Building Size.**

1. **RE and RS-1 Districts.** In RE and RS-1 districts, the total aggregate floor area of all detached accessory buildings not erected as an integral part of the principal residential building may not exceed 750 square feet or 40% of the floor area of the principal residential structure, whichever is greater. [1] [2]

**2. RS-2, RS-3, RS-4, RS-5 and RM Districts.** In RS-2, RS-3, RS-4, RS-5, and RM districts, the total aggregate floor area of all detached accessory buildings not erected as an integral part of the principal residential building may not exceed 500 square feet or 40% of the floor area of the principal residential structure, whichever is greater. [1] [2]

[1] For detached accessory buildings located within rear setbacks, see Section 90.090-C.

[2] See Section 45.031D.6. for exceptions to these floor area limits for accessory buildings containing an accessory dwelling unit.

**B. Carports.** Carports are allowed in R zoning districts. Any carport that occupies all or a portion of the street setback or street yard area must be approved in accordance with the special exception procedures of Section 70.120 and comply with the regulations of Section 90.090C.1.

*(Ord. No. 25429, § 15, 10-30-2024)*

## Section 45.031. ADU, Accessory Dwelling Units in R, AG, and AG-R districts.

**A. Definition.** A dwelling unit that is located in an accessory building on the same lot as a household living use to which it is accessory and subordinate.

Examples of ADUs include carriage houses, garage apartments, and mother-in-law flats.

**B. Purpose.**

**1.** The purpose of allowing accessory dwelling units is to:

**a.** Accommodate new housing units while preserving the character of existing neighborhoods;

**b.** Allow efficient use of the city's existing housing stock and infrastructure;

**c.** Provide housing options and choices that respond to varying income levels, changing household sizes and lifestyle needs; and

**d.** Provide a means for residents—particularly seniors, single parents, and empty-nesters—to remain in their homes and neighborhoods, and obtain extra income, security, companionship and assistance.

**2.** The ADU supplemental regulations are also intended to help ensure that that new buildings and modifications to existing buildings are designed with sensitivity to their context in terms of building placement, proportions, building materials, and similar design features.

**C. Applicability.** These regulations apply to all accessory dwelling units, as defined by Subsection 45.031A.

**D. Regulations.**

**1. Where allowed.** Accessory dwelling units are allowed by special exception in RE, RS, AG, and AG-R districts. Accessory dwelling units are allowed by right in all other districts when accessory to a household living use.

**2. Number.** No more than one accessory dwelling unit is allowed per lot.

3. **Methods of creation.** An accessory dwelling unit may be created only through the following methods:
   a. Constructing an accessory dwelling unit on a lot with a new or existing principal building; or
   b. Converting or increasing existing floor area within an accessory building on a lot with an existing principal building.
4. **Density (minimum lot area and lot area per unit).** No additional lot area or lot area per unit is required for the accessory dwelling unit.
5. **Open space (minimum open space per unit).** No additional open space is required for the accessory dwelling unit.
6. **Accessory dwelling unit size.** The size limitations in Section 45.030 apply, provided that the maximum allowed square footage of an accessory building containing an accessory dwelling unit is increased by 500 square feet. The maximum allowable floor area for accessory buildings containing an accessory dwelling unit may be increased in accordance with the special exception procedures of Section 70.120.
7. **Building and Fire Codes.** All accessory dwelling units are subject to applicable building and fire codes.
8. **Additional regulations for accessory dwelling units.**
   a. **Entrances.** Building entrances to accessory dwelling units may not face the nearest side or rear property line unless there is an alley abutting that property line.
   b. **Setbacks.** An accessory dwelling unit must be located at least 10 feet behind the principal building. This required 10-foot separation distance must be open from the ground to the sky except that it may include walkways, patios, decks and similar structures that do not exceed 30 inches in height above finished grade.
   c. **Exterior finish materials.** The exterior finish material of any new accessory dwelling unit must be the same or visually match in type, size and placement, the exterior finish material of the principal building.
   d. **Roof pitch.** The roof pitch any new accessory dwelling unit must be the same as the predominant roof pitch of the principal building.
   e. **Second story windows.** Any second-story window less than 10 feet from and oriented toward a lot line not abutting a right-of-way shall either use permanently translucent glazing or have a minimum sill height of 6 feet above the finished floor.

*(Ord. No. 25429, § 16, 10-30-2024)*

### Section 45.040. Compressed natural gas (CNG) refueling appliances.

Private (restricted access), consumer-oriented (home), CNG refueling appliances are permitted as an accessory use to lawfully established household living uses in all zoning districts.

**Section 45.050. Dumpsters.**

**A. Regulations.** Dumpsters established or placed on or after the effective date specified in Section 1.030 are subject to the following regulations:

**1.** Dumpsters may only be placed with the written permission of the owner of the subject property.

**2.** Dumpsters must be located on a dustless, all-weather surface.

**3.** Dumpsters may not:

**a.** Obstruct motorized or non-motorized traffic;

**b.** Reduce any sidewalk or walkway designed for the passage of pedestrians to less than five (5) feet in width;

**c.** Be located within ten (10) feet of a fire hydrant or fire suppression connection;

**d.** Be located in a required parking space or required landscape area; or

**e.** Be located in a street setback or side setback.

**4.** The site surrounding the dumpster must be maintained free of litter, debris, and other materials.

**5.** Dumpsters must be screened from view of all street rights-of-way, R-zoned property, and AG-R zoned property by a principal structure or an F1 screening fence or wall in accordance with Subsection 65.070B.2., provided that no trees are required as part of the required screening. Screening of dumpsters located in alley rights-of-way is not required. No signs are allowed on the exterior of a required screening fence or wall.

**6.** Where the use of a dumpster is proposed, the location and intended screening demonstrating compliance with the standards of this section must be included with the submittal of a site plan for a zoning clearance, building or certificate of occupancy permit.

*(Ord. No. 24279, § 2, 12-11-2019)*

**Section 45.051. Recyclable material bins/donation bins.**

**A. Regulations.** Recyclable material bins/donation bins established or placed on or after February 1, 2020 are subject to the following regulations, and recyclable material bins/donation bins established before February 1, 2020 must be removed or brought into compliance with the following regulations no later than July 1, 2020:

**1.** Recyclable material bins/donation bins may only be placed with the written permission of the owner of the subject property.

**2.** Recyclable material bins/donation bins must be located on a dustless, all-weather surface.

**3.** Recyclable material bins/donation bins may not:

**a.** Obstruct motorized or non-motorized traffic;

**b.** Reduce any sidewalk or walkway designed for the passage of pedestrians to less than five (5) feet in width;

**c.** Be located within ten (10) feet of a fire hydrant or fire suppression connection;

**d.** Be located in a required parking space or required landscape area;

**e.** Be located in a street setback or side setback; or

**f.** Exceed seven (7) feet in height, six (6) feet in width, and six (6) feet in depth.

**4.** All goods must be screened from view within the recyclable material bin or donation bin.

**5.** The site surrounding the bin must be maintained free of litter, debris, and other materials.

**6.** Recyclable material bins/donation bins must be maintained in good condition with no structural damage, holes, visible rust, or graffiti.

**7.** The exterior front face of a recyclable material bin or donation bin must clearly display the name, phone number, and website (if any) of the person or entity operating the bin and of any charitable or for-profit entity that benefits from the collected items. The information must be printed in bold letters, each at least one inch tall and one inch wide. See also Oklahoma Statutes, Title 78, Section 56.

*(Ord. No. 24279, § 3, 12-11-2019)*

## Section 45.060. Electric vehicle charging stations.

**A. General.**

**1.** Private (restricted-access) electric-vehicle (EV) charging stations are permitted as accessory uses to lawfully established principal uses in all zoning districts.

**2.** Public EV charging stations are permitted as accessory uses to lawfully established principal nonresidential uses in all zoning districts.

**B. Parking.**

**1.** Electric vehicle charging stations may be counted toward satisfying minimum off-street parking space requirements.

**2.** Public electric vehicle charging stations must be reserved for parking and charging electric vehicles.

**C. Equipment.** Vehicle charging equipment must be designed and located so as to not impede pedestrian, bicycle or wheelchair movement or create safety hazards on sidewalks.

**D. Signage.** Public electric vehicle charging stations must be posted with signage indicating that the space is reserved for electric vehicle charging purposes only. For purposes of this provision, "charging" means that an electric vehicle is parked at an electric vehicle charging station and is connected to the battery charging station equipment.

**Figure 45-1: Electric Vehicle Parking Signs (typical)**

**Section 45.070. Family child care homes.**

**A.** Family child care homes must be an accessory use to an allowed household living use and be licensed by the State of Oklahoma.

**B.** Applicants for family child care homes must obtain a zoning clearance permit and a certificate of occupancy before commencing operation.

**C.** Family child care homes may provide supervision for no more than twelve (12) children.

**D.** Signs advertising a family child care home are prohibited.

**E.** No exterior building alterations or site modifications may be made that would change the residential character of the premises.

*(Ord. No. 25092, § 5, 7-26-2023; Ord. No. 25192, § 10, 12-6-2023)*

**Section 45.080. Fences and walls.**

**A.** Fences and walls within required building setbacks may not exceed eight (8) feet in height, except that in required street setbacks fences and walls may not exceed four (4) feet in height. However, in R zoned districts, fences up to eight (8) feet in height are permitted in side street setbacks of detached houses or duplexes located on corner lots and in street setbacks abutting the rear lot line of houses or duplexes located on double frontage lots. The board of adjustment is authorized to modify these fence and wall regulations in accordance with the special exception procedures of Section 70.120.

**B.** Electrical fence charger systems are prohibited, except for the following:

**1.** Electrical fence charger systems are allowed on parcels of land with an area of ten (10) acres or more, provided the system is not readily accessible to the public; and

**2.** Electrical fence charger systems are allowed on parcels of land with an area of less than ten (10) acres, provided that the conductors are located at least eight (8) feet above grade and are not readily accessible to the public.

**C.** Barbed-wire and razor-wire fencing is permitted as of right in AG, IL, IM, and IH districts, except as limited by Title 24, Section 103 of the Tulsa Revised Ordinances.

Barbed-wire and razor-wire fencing is prohibited in all other districts unless approved in accordance with the special exception procedures of Section 70.120, subject to the limitations of Title 24, Section 103 of the Tulsa Revised Ordinances.

*(Ord. No. 24382, § 4, 6-10-2020)*

**Section 45.090. Geothermal heat exchange systems.**

**A. General.** Geothermal heat exchange systems are permitted as an accessory use in all zoning districts.

**B. Location.**

**1.** Above-ground equipment is subject to compliance with the minimum building setback regulations of the subject zoning district, including the setback obstruction provisions of Subsection 90.090C.

**2.** Underground equipment, piping and devices may not be located in any public easement or right-of-way.

**Section 45.100. Home occupations.**

**A. Description.** Home occupations are jobs or professions conducted wholly or partly from a residential dwelling.

**B. Purpose.** The home occupation regulations of this section are intended to allow Tulsa residents to engage in customary home-based work activities, while also helping to ensure that neighbors are not subjected to adverse operational and land use impacts (e.g., excessive noise or traffic or public safety hazards) that are not typical of residential neighborhoods.

**C. Types of home occupations.** Two (2) types of home occupations are defined and regulated under this section: Type 1 and type 2.

**1. Type 1 home occupations.** Type 1 home occupations are those in which household residents use their home as a place of work, with no employees, customers or clients coming to the site. Typical examples include telecommuting office workers, writers, consultants, artists and crafts people.

**2. Type 2 home occupations.** Type 2 home occupations are those in which household residents use their home as a place of work and either employees or customers come to the site. Typical examples include tutors, teachers, photographers, counselors, hair cutting/styling and real estate agents.

**D. Exemptions.** Nonresidential uses that are expressly allowed in conjunction with residential uses (e.g., bed and breakfast uses and family child care homes) are not subject to home occupation regulations.

**E. Allowed uses.** The home occupation regulations of this section establish performance standards for all home occupations rather than listing specific home occupation uses that are allowed. Uses that comply with the standards of this section are allowed as of right unless otherwise expressly stated.

**F. Prohibited uses.** The following uses are expressly prohibited as home occupations:

**1.** Any type of assembly, cleaning, maintenance, painting or repair of vehicles or equipment with internal combustion engines or of large appliances (such as washing machines, clothes dryers or refrigerators);

**2.** Dispatch centers or other businesses where employees come to the site and are dispatched to other locations;

**3.** Equipment or supply rental businesses;

**4.** Taxi, limo, van or bus services;

**5.** Tow truck services;

**6.** Taxidermists;

**7.** Restaurants;

**8.** Funeral or interment services;

**9.** Animal care, grooming or boarding businesses; and

**10.** Any use involving the use or storage of vehicles, products, parts, machinery or similar materials or equipment outside of a completely enclosed building; and

**11.** Any use that does not comply with regulations of this section.

**G. Where allowed.**

**1. Type 1 home occupations.** Type 1 home occupations are permitted as of right as an accessory use to a principal use in the household living use category. Type 1 home occupations are subject to the general regulations of Subsection 45.100H. and the supplemental regulations of Subsection 45.100I.

**2. Type 2 home occupations.**

**a.** Type 2 home occupations may be approved as an accessory use to a principal use in the household living use category through the special exception procedures of Section 70.120. Type 2 home occupations are subject to the general regulations of Subsection 45.100H. and the supplemental regulations of Subsection 45.100J.

**b.** Type 2 home occupations may be approved as an accessory use to a principal use in the household living use category through mandatory development plan provisions defined in Subsection 70.040B.1. Type 2 home occupations are subject to the general regulations of Subsection 45.100H. and the supplemental regulations of Subsection 45.100J. or as may be further regulated in a mandatory development plan.

**H. General regulations.** All type 1 and type 2 home occupations are subject to the following regulations:

**1.** Home occupations must be accessory and subordinate to the principal residential use of the property.

**2.** Home occupations that change the character of the residential building they occupy or that adversely affect the character of the surrounding neighborhood are prohibited. Home occupations may not, for example, produce light, noise, vibration, odor, parking demand, or traffic impacts that are not typical of a residential neighborhood in Tulsa. Home occupations must be operated so as not to create or cause a nuisance.

**3.** Any tools or equipment used as part of a home occupation must be operated in a manner or sound-proofed so as not to be audible beyond the lot lines of the subject property.

4. External structural alterations or site improvements that change the residential character of the lot upon which a home occupation is located are prohibited. Examples of such prohibited alterations include construction of parking lots, the addition of commercial-like exterior lighting, the addition of a separate building entrance that is visible from abutting streets or the exterior display of an illuminated nameplate sign (See Subsection 60.030C., Nameplates).

5. No display of any material or merchandise is allowed.

6. The use or storage of hazardous substances is prohibited, except at the "consumer commodity" level, as that term is defined in 49 C.F.R. Section 171.8.

7. Home occupations are subject to the commercial truck parking prohibition of Section 45.130.

**I. Supplemental Regulations for Type 1 Home Occupations.**

1. Only residents of the dwelling unit in which the home occupation is located may be engaged in a type 1 home occupation. No nonresident owners, employees or contractors may be present on the subject property.

2. No clients, customers, patients, or students are allowed in conjunction with a type 1 home occupation.

3. Type 1 home occupations and all related activities, including storage (other than the lawful parking of passenger vehicles), must be conducted entirely within the principal residential building or an allowed accessory building.

4. More than one Type 1 home occupation is allowed as an accessory use, but the general regulations of Subsection 45.100H. and the supplemental regulations of Subsection 45.100I. apply to the combined home occupation uses.

**J. Supplemental regulations for type 2 home occupations.**

1. Only uses approved in accordance with the special exception procedures of Section 70.120 or through a mandatory development plan are allowed as type 2 home occupations.

2. At least one individual engaged in the home occupation must reside in the dwelling unit in which the home occupation is located as their primary place of residence.

3. No more than three (3) clients or customers may be present at any one time on the site of a type 2 home occupation. Family members of the client or customer are not counted towards the three-person limit.

4. A maximum of one nonresident employee is allowed with a type 2 home occupation if no customers or clients come to the site at any time. Home occupations that have clients, customers or students coming to the site may not have nonresident employees and vice-versa. For the purpose of this provision, the term "nonresident employee" includes an employee, contractor, business partner, co-owner or any other person affiliated with the home occupation, who does not live at the site, but who visits the site as part of the home occupation.

5. Type 2 home occupations and all related activities, including storage (other than the lawful parking of passenger vehicles), must be conducted entirely within the principal residential building or an allowed accessory building.

### Section 45.110. Alcoholic beverage sales and service.

The development administrator is authorized to allow accessory sales or service of alcoholic beverages if the development administrator determines that all of the following criteria are met:

**A.** The proposal complies with the accessory use criteria of Subsection 45.010B.; and

**B.** The use is located in a zoning district in which bars are permitted as of right or the use is temporary in nature and located on city-owned property.

### Section 45.120. Office support service.

**A.** Retail sales of convenience goods and retail sales of shopping goods (office support services) are allowed as an accessory use to a principal office use in the OH district and in any O district with a PUD overlay.

**B.** Office support services must be located in the same building as the principal office use, and occupy, in aggregate, no more than fifteen (15) percent of the floor area of the subject building.

**C.** Office support services must have internal access from the subject office building. External entrances are also allowed.

### Section 45.130. Parking and storage of commercial vehicles.

**A. Description.** A commercial vehicle, for the purpose of determining compliance with Section 45.130, is any vehicle, including but not limited to a car, van, truck, bus, semi-truck, or tow truck, that includes any of the following characteristics:

**1.** More than two (2) axles;

**2.** A cab height greater than eighty-four (84) inches;

**3.** Any part or attachment to the vehicle capable of exceeding the height of ninety (90) inches;

**4.** A gross vehicle weight rating greater than twelve thousand (12,000) pounds;

**5.** An overall length of more than twenty-five (25) feet;

**6.** A commercial sign or message exceeding four (4) square feet per side; or

**7.** A tow sling or other device designed specifically to tow another vehicle.

**B. Where prohibited.** No commercial vehicle as defined in Subsection 45.130A. may be parked or stored outdoors within a residential zoning district. This provision is not intended to prohibit the following:

**1.** Vehicles accessory to a permitted non-residential use and parked on the lot containing the use;

**2.** Deliveries and pickups by common carrier delivery vehicles or service vehicles being actively used, loaded, or unloaded (e.g., postal service, UPS, FedEx, et al.) of the type typically used in residential neighborhoods;

**3.** Recreational vehicles (See Section 45.150);

**4.** Vehicles registered to a governmental body or utility provider and used for law enforcement, emergency response, or repair of public infrastructure; or

**5.** Vehicles accessory to a construction project or an active building or construction permit.

*(Ord. No. 24725, § 15, 11-17-2021)*

### Section 45.140. Parking and storage of inoperable or unlicensed motor vehicles.

In R or AG-R districts, parking or storage of inoperable or unlicensed motor vehicles is prohibited within street yards.

### Section 45.150. Parking and storage of recreational vehicles.

**A.** Other than for purposes of loading and unloading, which must take place within a forty-eight-hour period, recreational vehicles located in an AG, AG-R, R or MX district may be parked or stored only in the following locations:

**1.** Within a garage;

**2.** Within a rear building setback, provided it is set back at least three (3) feet from all lot lines;

**3.** Within a side yard but not within a required side building setback;

**4.** Within a side building setback if the recreational vehicle is no more than six (6) feet in height, excluding the height of any outboard motor or windshield, and the recreational vehicle is screened along the lot line nearest to the vehicle and extending for the vehicle's the full length by an F1 screening fence or wall in accordance with Subsection 65.070C.; or

**5.** Within the street yard, provided that the development administrator determines that all of the following conditions exist:

**a.** Space is not available or there is no reasonable access to either the side yard or rear yard;

**b.** Parking inside the garage is not possible due to the height or width of the recreational vehicle;

**c.** The recreational vehicle is parked perpendicular to the street lot line;

**d.** The body of the recreational vehicle is at least twelve (12) feet from the face of the curb or travel lanes of the street and does not extend over a sidewalk; and

**e.** No more than one recreational vehicle is parked or stored in the street yard.

**6.** For purposes of these provisions:

**a.** A corner lot is always deemed to have reasonable access to the rear yard;

**b.** A fence does not necessarily prevent reasonable access to a yard; and

**c.** A boat loaded on a boat trailer is considered one recreational vehicle.

**B.** The parking and storage of recreational vehicles in an R or AG-R district is permitted in accordance with Subsection 45.150A., provided that:

**1.** The vehicle is not used for dwelling purposes;

**2.** The vehicle is not permanently connected to sewer lines, water lines, or electricity; and

**3.** The vehicle is not used for storage of goods, materials, or equipment other than those items considered to be a part of the recreational vehicle or essential for its use as a recreational vehicle.

**C.** If the siting regulations of Subsection 45.150A. cannot be met, parking or storage of recreational vehicles in the street yard requires approval in accordance with the special exception procedures of Section 70.120.

### Section 45.160. Residential support service.

**A.** Residential support services include restaurants and retail sales of convenience goods provided primarily to serve the needs of residents of residential buildings.

**B.** Residential support services are allowed in the RM-3 district and all MX districts as an accessory use to any principal group living use and in apartment/condo buildings.

**C.** Residential support services must be located in the same building as the principal residential use, and occupy, in aggregate, floor area of no more than four thousand (4,000) square feet or ten (10) percent of the floor area of the principal residential use, whichever is less.

**D.** Residential support services must have internal access from the principal residential building. External entrances are also allowed.

### Section 45.170. Rooming units.

Rooming units that are accessory to household living uses are allowed, provided that the total number of unrelated persons residing on the property does not exceed the number permitted in the household.

### Section 45.180. Satellite dish antennas.

**A. Where allowed.**

**1.** Satellite dish antennas up to forty (40) inches in diameter are permitted as of right as an accessory use to all lawfully established principal uses in all zoning districts. They are subject to all applicable accessory structure setback regulations.

**2.** Satellite dish antennas over forty (40) inches in diameter, up to one hundred twenty (120) inches in diameter, are permitted as of right as an accessory use to all lawfully established principal uses in mixed-use and nonresidential zoning districts. They are subject to all applicable accessory structure setback regulations.

**B. Location.**

**1.** In RM and MX districts, satellite dish antennas may be located anywhere in the buildable area of the lot (outside of required building setbacks) or on an allowed principal or accessory building on the lot.

**2.** In RS, RD and RT districts, satellite antennas may be located only to the rear of any principal structure. If usable communication signals cannot be obtained from a rear location, the satellite antenna may be located in the side yard. If usable satellite communication signals cannot be received by locating the antenna in the rear or to the side of the principal structure, the antenna may be placed in the street yard outside of the required building setback or on the roof in a location that is visible from the street, provided that the diameter of the satellite dish antenna does not exceed eighteen (18) inches.

**3.** Ground-mounted satellite dish antennae must be visually screened to reduce visual impact from surrounding properties at street level and from public streets.

## Section 45.185. Short-term rental—Accessory.

**A. Description.** The rental of all or a portion of a dwelling unit, which is the primary residence of a household, for temporary lodging for a period of less than thirty (30) consecutive days. An accessory short-term rental is limited to a maximum occupancy of eight (8) persons—including the dwelling's residents—at any one time.

**B. General.** The supplemental use regulations of this section apply to all accessory use short-term rentals.

**1.** An accessory short-term rental must comply with all licensing requirements of the City of Tulsa and an approved license number must be included with any material advertising the short-term rental.

**2.** A register of short-term rental guests must be maintained and made available to city code enforcement upon request.

**3.** On-site events are not permitted in conjunction with an accessory short-term rental. Examples of on-site events include but are not limited to weddings, receptions, anniversaries, private parties, banquets, and business seminars.

**4.** External structural alterations or site improvements that change the residential character of the lot upon which an accessory short-term rental is located are prohibited. Examples of such prohibited alterations include the construction of a parking lot, the addition of commercial-like exterior lighting, and signage.

**5.** No recreational vehicle, bus, or trailer shall be parked on a residential street in conjunction with a short-term rental use. A recreational vehicle, bus or trailer may be parked on the property if not visible from the street.

*(Ord. No. 24328, § 7, 3-11-2020)*

## Section 45.190. Solar energy systems.

**A. General.**

**1.** Solar energy systems are permitted as of right as an accessory use to all lawfully established principal uses in all zoning districts.

**2.** Accessory solar energy systems must comply with all applicable building and electrical code requirements.

**B. Building-mounted solar energy systems**

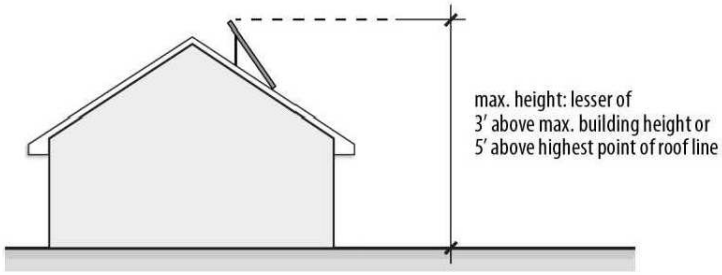
**1.** Building-mounted solar energy systems may be mounted on principal and accessory structures.

**2.** Building-mounted solar energy systems may not encroach into required street setbacks. Systems mounted on principal structures may encroach into interior side and rear building setbacks in accordance with Subsection 90.090C.

**3.** Only building-integrated or flush-mounted solar energy systems may be installed on street-facing building elevations.

**4.** Solar energy systems may not extend more than three (3) feet above the applicable maximum building height limit for the subject building type or more than five (5) feet above the highest point of the roof line, whichever is less.

**Figure 45-3: Roof-Mounted Solar Energy Systems**




**C. Ground-mounted solar energy systems.**

**1.** In residential zoning districts, ground-mounted solar energy systems may not be located in a required street setback or street yard area.

**2.** Ground-mounted solar energy systems may be located within required interior side and rear setbacks.

**3.** Ground-mounted solar energy systems are subject to applicable accessory structure height and lot coverage regulations.

*(Ord. No. 25192, § 10, 12-6-2023)*

## Section 45.200. Small wind energy conversion systems.

**A. General.**

**1.** The regulations of this section apply to all small wind energy conversion systems.

**2.** Small wind energy conversion systems are also subject to building code requirements.

**B. Where allowed.**

**1.** One small wind energy conversion system is permitted per lot as an accessory use to a lawfully established principal use in all zoning districts, provided that such systems comply with all applicable requirements of this section.

**2.** Up to three (3) small wind energy conversion systems may be allowed on a single lot if the lot is at least one acre in area and the systems are approved in accordance with the special exception procedures of Section 70.120.

**C. Height.**

**1.** The maximum allowed height of a small wind energy conversion system, measured as the distance from ground level at the base of the structure to the highest point of the structure, varies based on the size of the lot on which it is located, as indicated in Table 45-1.

**Table 45-1: Maximum Height of Small Wind Energy Conversion System**

| Lot Area (acres) | Maximum Height (feet) |
|---|---|
| 0—0.99 | 30 |
| 1—1.99 | 65 |

| Lot Area (acres) | Maximum Height (feet) |
|---|---|
| 2—4.99 | 85 |
| 5 or more | 100 |

**2.** The lowest point of any moving elements, such as blades or vanes, must be at least twenty-five (25) feet above grade immediately beneath the moving element.

**D. Siting.** Small wind energy conversion systems may not be located in required building setbacks or within easements. In addition, systems must be set back from all property lines by a distance at least equal to one hundred ten (110) percent of the overall height of the system, measured from grade at the base of the structure to the highest point of the system structure, which includes the tip of the top blade when the blade is in its highest position.

**E. Design and operation.**

**1.** All small wind energy conversion systems must be equipped with manual and automatic over-speed controls to limit the blade rotation speed to within the design limits of the system.

**2.** The rotating turbine may not produce vibrations that are perceptible to humans standing at ground level outside the property lines of the subject lot.

**3.** Operational noise of a small wind energy system may not exceed sixty (60) db(A) at the nearest property line except during short-term high wind speed events such as storms.

**4.** Lattice-type towers and towers using guy wires are prohibited.

**5.** All power transmission and telemetry lines from a ground-mounted small wind energy conversion system to any building or other structure must be placed underground.

**6.** Towers, rotors and turbines may not be illuminated unless required by a state or federal agency, such as the FAA.

**7.** All structures and equipment must maintain factory colors or be finished in a non-reflective, matte finished, neutral color.

**8.** No commercial messages may be placed or painted on the tower, rotor, turbine, generator or tail vane that is legible from off-site. This provision is not intended to prohibit warning signs or manufacturer's logos.

**9.** All climbing pegs, ladders and similar apparatus on ground-mounted small wind energy conversion systems must be located at least twelve (12) feet above the ground at the base of the structure.

**F. Permits.** The following information must be submitted with a zoning clearance permit application for a small wind energy conversion system:

**1.** A description of the system, including its maximum power-rated output capacity.

**2.** The make, model, an illustrative photograph or brochure, manufacturer's specifications including noise data (decibels) for the proposed wind energy conversion system, the support structure, and method of attachment to the ground and/or structure.

**3.** Elevation drawing of the wind energy conversion system showing total height, turbine dimensions, tower and turbine colors, distance between ground and lowest point of any blade, and if proposed, the location of climbing apparatus.

**4.** If the wind energy conversion system is not certified as meeting the IEEE 1547 standards (Institute of Electrical and Electronic Engineers), then an assessment must be provided from an electrical engineer indicating that protection equivalent to the IEEE standard will be provided.

**G. Abandonment.** Any small wind energy conversion system that is not operated for a continuous period of twelve (12) months or more or that is in an obvious state of disrepair or a threat to public safety will be considered abandoned and must be dismantled and removed from the property at the expense of the property owner.

**Section 45.210. Farmers markets.**

**A.** Accessory use farmers markets are subject to compliance with all supplemental regulations for farmers markets in Section 40.135.

**B.** Farmers markets may operate as an accessory use in all districts where they are allowed by right.

**C.** In districts where farmers markets are not allowed by right, farmers markets may operate as an accessory use to the following principal uses for up to two days per calendar week, regardless of the zoning district:

**1.** Religious assembly,

**2.** College or university,

**3.** Governmental service or similar functions,

**4.** Library or cultural exhibit,

**5.** School,

**6.** Fraternal organization,

**7.** Parks and recreation, and

**8.** Apartment/Condo.

*(Ord. No. 25604, § 10, 6-18-2025)*

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## CHAPTER 50. TEMPORARY USES

Section 50.010. Description and purpose.
Section 50.020. Authority to approve.
Section 50.030. Authorized uses.
Section 50.040. General procedure.
Section 50.050. Exemptions.

### Section 50.010. Description and purpose.

**A.** A temporary use is the use of private property that does not require a building permit and that may or may not comply with the use and lot and building regulations of the zoning district in which the temporary use is located.

**B.** The temporary use regulations of this chapter are intended to permit such occasional, temporary uses and activities when consistent with the purposes and regulations of this zoning code.

### Section 50.020. Authority to approve.

**A.** Except as expressly stated in Section 50.050, all temporary uses require city approval.

**B.** The development administrator is authorized to establish administrative procedures governing the processing, review and approval of temporary uses.

**C.** The development administrator is authorized to approve a zoning clearance permit for temporary uses that comply with the provisions of this chapter and to impose conditions on the operation of temporary uses to help ensure that they do not create significant adverse impacts on surrounding uses and that they operate safely and without causing nuisances, consistent with the general purposes of this zoning code.

**D.** Temporary uses that do not comply with all applicable regulations and all conditions of approval may be approved as special exceptions in accordance with Section 70.120. The development administrator is authorized to refer any temporary use to the board of adjustment for consideration in accordance with special exception procedures of Section 70.120.

**E.** Special events require city council review and approval.

### Section 50.030. Authorized uses.

The development administrator is authorized to approve a zoning clearance permit for temporary uses upon determining that the proposed use is a customary temporary use in the subject location and will generally be compatible with surrounding uses and not be a detriment to public safety. The following is a non-exhaustive list of the types of temporary uses and activities for which a zoning clearance permit may be approved by the development administrator:

**A.** Parking lot and seasonal sales for a maximum of one hundred eighty (180) days per lot per year;

**B.** Tents accessory to an allowed principal or temporary use;

**C.** Outdoor carnivals, concerts, festivals, revivals and public gatherings for a maximum of thirty (30) days per lot per year and no more than ten (10) consecutive days per occurrence;

**D.** Construction staging areas, construction offices and storage of materials related to ongoing construction for the period in which construction is ongoing and all required permits remain valid;

**E.** Temporary residential sales and leasing offices and model homes, when located on the same lot or in the same subdivision as the residential units actively being offered for lease or sales; and

**F.** Temporary mobile storage units, subject to the following supplemental regulations:

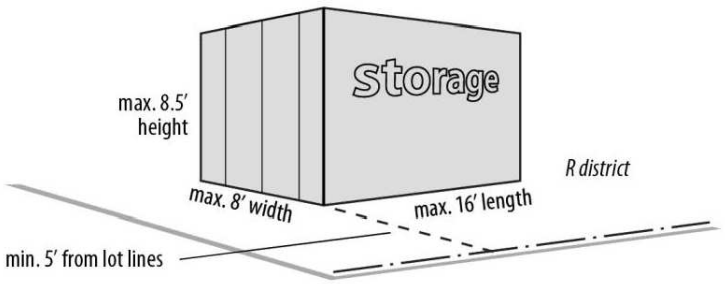
**1.** Temporary mobile storage units are allowed in R zoning districts, subject to compliance with all of the following regulations:

**a.** Temporary mobile storage units are permitted for a period not to exceed a total of ninety (90) days within any calendar year unless a valid building or construction permit is in place for the subject property, in which case the temporary mobile storage unit may remain in place for a maximum of one hundred twenty (120) days or until the permit expires, whichever occurs first. If a dwelling unit on the subject lot has been damaged by natural disaster act of God, the development administrator is authorized to grant time extensions of otherwise applicable temporary mobile storage unit time limits.

**b.** No more than one temporary mobile storage unit may be located on any lot.

**c.** Temporary mobile storage units may not exceed sixteen (16) feet in length, eight (8) feet in width, and eight and one-half (8.5) feet in height. See Figure 50-1.

**Figure 50-1: Maximum Mobile Storage Unit Size in Residential Districts**




**d.** Temporary mobile storage units must be set back at least five (5) feet from all property lines.

**e.** Temporary mobile storage units must be placed on an improved all-weather surface, generally asphalt, brick pavers, or concrete. Units are prohibited within landscape areas, open spaces, stormwater basins, or any other location that may cause hazardous conditions, constitute a threat to public safety, or create a condition detrimental to surrounding land uses and development.

**f.** No materials may be stacked or stored on the exterior of the mobile storage unit and no running gear or transport trailer may be stored on site outside of a completely enclosed building.

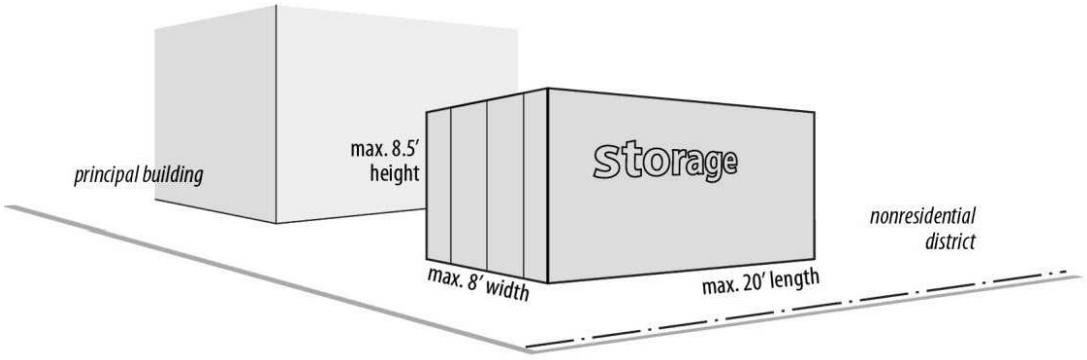
**2.** Temporary mobile storage units are allowed in nonresidential zoning districts, subject to compliance with all the following regulations:

**a.** Temporary mobile storage units are permitted for a period not to exceed a total of ninety (90) days within any calendar year unless a valid building or construction permit is in place for the subject property, in which case the temporary mobile storage unit may remain in place for a maximum of one hundred eighty (180) days or until the permit expires, whichever occurs first. If the principal building on the subject lot has been damaged by natural disaster act of God, the development administrator is authorized to grant time extensions of otherwise applicable temporary mobile storage unit time limits.

**b.** No more than three (3) temporary mobile storage units may be located on any lot.

**c.** Temporary mobile storage units may not exceed twenty (20) feet in length, eight (8) feet in width, and eight and one-half (8.5) feet in height. See Figure 50-2.

**Figure 50-2: Maximum Mobile Storage Unit Size in Nonresidential Districts**




**d.** Temporary mobile storage units must comply with all building setback requirements of the subject zoning district.

**e.** Temporary mobile storage units may not be placed or located on a required parking space, circulation aisle/lane, or fire access lane.

**f.** Vertical stacking of storage units and stacking of any other materials or merchandise on top of any mobile storage unit is prohibited. No running gear or transport trailer may be left underneath any mobile storage unit.

**g.** Temporary mobile storage units are prohibited within landscape areas, required open spaces, stormwater basins, or any other location that may cause hazardous conditions, constitute a threat to public safety, or create a condition detrimental to surrounding land uses and development.

## Section 50.040. General procedure.

Upon receipt of a complete application for a zoning clearance permit for a temporary use, the development administrator must review the proposed use for its likely effects and

surrounding properties and its compliance with the general provisions of this chapter. The development administrator may impose such conditions of approval on the zoning clearance permit as the development administrator determines necessary to mitigate potential adverse impacts. Such conditions may include the following:

**A.** Requirements for vehicle access and parking;

**B.** Restrictions on hours of operation;

**C.** Limitations on signs and outdoor lighting;

**D.** Requirements for financial guarantees covering the costs of cleanup and/or removal of structures or equipment; and

**E.** Other conditions necessary to carry out the stated purposes of this zoning code and this chapter.

### Section 50.050. Exemptions.

The following temporary uses are permitted as of right, without obtaining a zoning clearance permit from the development administrator:

**A.** Garage sales conducted in R districts or on lots occupied by residential dwelling units no more than two (2) times in any calendar year and for no more than four (4) consecutive days per occurrence. These limits apply on a per-lot basis, regardless of the person conducting the garage sale. No person conducting a garage sale may sell merchandise at the garage sale acquired solely for resale purposes. Garage sales are sometimes referred to as "yard sales," "estate sale," "moving sales," "occasional sales" and other similar names. All such sales, by whatever name, are classified and regulated as "garage sales." Authorization to conduct more than two (2) garage sales in any calendar year requires review and approval in accordance with the special exception procedures of Section 70.120.

**B.** **1.** Temporary dumpsters are allowed on lots with ongoing construction, subject to compliance with all the following regulations:

**a.** Temporary dumpsters related to ongoing construction are permitted for a period in which construction is ongoing and all required permits remain valid.

**b.** Temporary dumpsters may not exceed twenty-two (22) feet in length, eight (8) feet in width, and eight and one-half (8.5) feet in height.

**c.** Temporary dumpsters must be wholly contained within the lot and cannot be located within the right-of-way unless a right-of-way occupancy permit has been issued by the city.

**d.** Temporary dumpsters are prohibited within storm water basins, or any other location that may cause hazardous conditions, constitute a threat to public safety, or create a condition detrimental to surrounding land uses and development.

**e.** In single-family residential zoning districts and development areas, no more than one temporary dumpster may be located on any lot.

**2.** Temporary dumpsters are allowed on lots for a period of sixty (60) days following a natural disaster (act of God) occurring in the immediate area of the lot, to be used

for the disposal of debris resulting from the natural disaster (act of God). The development administrator is authorized to grant extensions of the sixty-day time limit.

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## CHAPTER 55. PARKING

Section 55.010. General.
Section 55.020. Minimum parking ratios.
Section 55.030. Maximum parking ratio for large retail uses.
Section 55.040. Calculation of required parking.
Section 55.050. Parking exemptions and credits.
Section 55.060. Bicycle parking.
Section 55.070. Use of off-street parking areas.
Section 55.080. Location of off-street parking.
Section 55.090. Parking area design.
Section 55.100. Stacking spaces for drive-through facilities.
Section 55.110. Accessible parking for people with disabilities.
Section 55.120. Loading.
Section 55.130. Pedestrian circulation.

### Section 55.010. General.

**A. Purpose.**

**1.** The regulations of this chapter establish off-street motor vehicle and bicycle parking requirements that attempt to balance the city's goal of encouraging transit and non-motorized modes of transportation with the goal of providing off-street parking facilities to meet the typical day-to-day needs of shoppers, employees, visitors and residents. The regulations are also intended to help avoid the negative impacts that can result from requiring excessive supplies of off-street parking (e.g., impervious surfaces, stormwater runoff, heat island affect, visual environment, parking encroachment into stable neighborhoods).

**2.** The provisions of this chapter are also intended to help protect the public health, safety and general welfare by:

**a.** Promoting economically viable and beneficial use of land; and

**b.** Providing flexible methods of responding to the transportation and access demands of various land uses in different areas of the city.

**B. Applicability.**

**1. General.** Off-street parking must be provided and maintained in accordance with the provisions of this chapter. Unless otherwise expressly stated, the regulations apply to all zoning districts and uses.

**2. New Uses and Development.** The parking regulations of this chapter apply to all new buildings constructed and all new uses established in all zoning districts.

**3. Change of use.** If a new residential use of a building or structure requires more off-street parking than the nonresidential use that most recently occupied the building or structure, no additional off-street parking is required. If a new nonresidential use of a building or structure requires more off-street parking than the use that most recently occupied the building or structure, additional off-street parking is required in an amount equal to the difference between the parking required for the new use and the parking that would have been required for the

previous use if current parking requirements had been applicable, provided that the total number of required spaces for the change of use need not exceed the number that would be required for establishment of a new use.

**4. Enlargements and expansions.**

**a.** The parking regulations of this chapter apply whenever an existing building or use is enlarged or expanded to include additional dwelling units, floor area, seating capacity or other units of measurement used for establishing off-street parking requirements.

**b.** In the case of enlargements or expansions that trigger requirements for additional parking, additional spaces are required only to serve the enlarged or expanded area, not the entire building or use. There is no requirement to address parking space deficits associated with existing, lawfully established buildings or uses.

*(Ord. No. 25429, § 17, 10-30-2024)*

## Section 55.020. Minimum parking ratios.

Off-street motor vehicle parking spaces must be provided in accordance with the minimum ratios established in Table 55-1. See Section 55.050 for an explanation of exemptions and allowed reductions of minimum motor vehicle parking requirements. See Section 55.060 for additional information about bicycle parking requirements.

## Table 55-1: Minimum Motor Vehicle Parking Ratios

| USE CATEGORY<br>Subcategory<br>Specific use | Measurement (spaces per) | CBD | All other districts and PI Overlay [1] | Additional requirements/ notes for all other districts |
|---|---|---|---|---|
| *[1] See Section 20.040 for information on PI Overlay.* | | | | |
| **RESIDENTIAL** | | | | |
| **Household Living** | dwelling unit | 0.00 | 1.00 | |
| **Group Living** | | | | |
| Assisted living facility | dwelling unit | 0.00 | 0.33 | |
| Community group home | 1,000 sq. ft. | 0.00 | 0.65 | |
| Convent/monastery/novitiate | 1,000 sq. ft. | 0.00 | 0.65 | |
| Elderly/retirement center | dwelling unit | 0.00 | 0.50 | |
| Fraternity/Sorority | bed | 0.00 | 0.33 | |
| Homeless Center | established as part of special exception | | | |
| Life care retirement center | dwelling unit | 0.00 | 0.50 | plus 0.20 per nursing center bed |
| Re-entry facility | 1,000 sq. ft. | 0.00 | 0.65 | |
| Residential treatment center | 1,000 sq. ft. | 0.00 | 0.65 | |
| Rooming/boarding house | bed | 0.00 | 0.33 | |
| Shelter, emergency and protective | 1,000 sq. ft. | 0.00 | 0.65 | |
| Transitional living center | 1,000 sq. ft. | 0.00 | 0.65 | |
| **PUBLIC, CIVIC & INSTITUTIONAL** | | | | |
| **Airport** | | 0.00 | established as part of special exception/ development plan | |

| USE CATEGORY<br>Subcategory<br>Specific use | Measurement (spaces per) | CBD | All other districts and PI Overlay [1] | Additional requirements/ notes for all other districts |
|---|---|---|---|---|
| *[1] See Section 20.040 for information on PI Overlay.* | | | | |
| **Cemetery** | | 0.00 | established as part of special exception | |
| **College or University** | 1,000 sq. ft. (classroom) | 0.00 | 1.10 | |
| **Community Center** | 1,000 sq. ft. | 0.00 | 1.30 | |
| **Day Care** | 1,000 sq. ft. | 0.00 | 1.30 | |
| **Detention and Correctional Facility** | | 0.00 | established as part of special exception | |
| **Fraternal Organization** | 1,000 sq. ft. (assembly room) | 0.00 | 16.25 | or 3.33 per 1,000 sq. ft. of floor area, whichever is greater |
| **Governmental Service or Similar Functions** | | 0.00 | established as part of special exception | |
| **Hospital** | bed | 0.00 | 0.65 | plus 3.00 per 1,000 sq. ft. emergency/outpatient care area |
| **Library or Cultural Exhibit** | | | | |
| Library | 1,000 sq. ft. | 0.00 | 1.30 | |
| Museum/cultural exhibit | 1,000 sq. ft. | 0.00 | 0.80 | |
| **Natural Resource Preservation** | | 0.00 | 0.00 | |
| **Parks and Recreation** | seat (stadium) | 0.00 | 0.15 | plus 2 per 1,000 sq. ft. in community center or recreation building plus 3.33 per 1,000 sq. ft. in swimming pool area |

| USE CATEGORY<br>Subcategory<br>Specific use | Measurement (spaces per) | CBD | All other districts and PI Overlay [1] | Additional requirements/ notes for all other districts |
|---|---|---|---|---|
| *[1] See Section 20.040 for information on PI Overlay.* | | | | |
| Golf course | hole | 0.00 | 3.25 | plus 2.50 per 1,000 sq. ft. in club house |
| Tennis court | court | 0.00 | 1.30 | plus 2.50 per 1,000 sq. ft. in club house |
| **Postal Service** | | 0.00 | established as special exception | |
| **Religious Assembly** | 1,000 sq. ft. (sanctuary) | 0.00 | 18.5 | or 1 per 3 seats, whichever is greater |
| **Safety Service** | | | | |
| Police station | 1,000 sq. ft. | 0.00 | 3.00 | |
| Fire station/ambulance service | emergency vehicle bay | 0.00 | 3.00 | |
| **School** | | | | |
| Elementary or Middle | 1,000 sq. ft. | 0.00 | 0.50 | |
| Senior High | 1,000 sq. ft. | 0.00 | 0.50 | or 0.055 per seat in the largest stadium/auditorium, whichever is greater |
| **Utilities and Public Service Facility** | | | | |
| Minor | | 0.00 | 0.00 | |
| Major | | 0.00 | established as part of special exception | |
| **Wireless Communication Facility** | | | | |
| Freestanding tower | | 0.00 | 0.00 | |

| USE CATEGORY<br>Subcategory<br>Specific use | Measurement (spaces per) | CBD | All other districts and PI Overlay [1] | Additional requirements/ notes for all other districts |
|---|---|---|---|---|
| *[1] See Section 20.040 for information on PI Overlay.* | | | | |
| Building or tower-mounted antenna | | 0.00 | 0.00 | |
| **COMMERCIAL** | | | | |
| **Animal service** | | | | |
| Boarding or shelter | 1,000 sq. ft. | 0.00 | 1.00 | |
| Grooming | 1,000 sq. ft. | 0.00 | 2.80 | None for first 5,000 sq. ft. |
| Veterinary | 1,000 sq. ft. | 0.00 | 2.80 | None for first 5,000 sq. ft. |
| **Assembly and Entertainment** | | | | |
| Cinema, Theater, Auditorium, Stadium, Gymnasium | seat | 0.00 | 0.15 | |
| Driving range | tee | 0.00 | 0.65 | |
| Gun Club (indoor or outdoor) | | 0.00 | established as part of special exception | |
| Health club | 1,000 sq. ft. | 0.00 | 4.25 | |
| Video arcade, bingo, billiards | 1,000 sq. ft. | 0.00 | 6.50 | |
| Other assembly and entertainment (indoor) | 1,000 sq. ft. | 0.00 | 2.80 | |
| Other assembly and entertain. (outdoor) | 1,000 sq. ft. | 0.00 | 0.80 | |
| **Broadcast or Recording Studio** | 1,000 sq. ft. | 0.00 | 2.15 | |
| **Commercial Service** | | | | |
| Building service | 1,000 sq. ft. | 0.00 | 1.60 | |
| Business support service | 1,000 sq. ft. | 0.00 | 1.60 | None for first 5,000 sq. ft. |
| Consumer maintenance/repair service | 1,000 sq. ft. | 0.00 | 2.80 | None for first 5,000 sq. ft. |

| USE CATEGORY<br>Subcategory<br>Specific use | Measurement (spaces per) | CBD | All other districts and PI Overlay [1] | Additional requirements/ notes for all other districts |
|---|---|---|---|---|
| *[1] See Section 20.040 for information on PI Overlay.* | | | | |
| Personal improvement service | 1,000 sq. ft. | 0.00 | 2.80 | None for first 5,000 sq. ft. |
| Tanning salon | 1,000 sq. ft. | 0.00 | 4.25 | |
| Research service | 1,000 sq. ft. | 0.00 | 0.80 | |
| Farmers market | 1,000 sq. ft. (permanent outdoor shelters and indoor market space) | 0.00 | 0.85 | |
| **Financial Services** (except as below) | 1,000 sq. ft. | 0.00 | 2.50 | |
| Personal credit establishment | 1,000 sq. ft. | 0.00 | 2.80 | |
| **Funeral or Mortuary Service** | 1,000 sq. ft. (assembly room) | 0.00 | 16.25 | plus 3.30 spaces per 1,000 sq. ft. in non-assembly area |
| **Lodging** | | | | |
| Bed & breakfast | guest room | 0.00 | 0.65 | plus spaces required for assembly space |
| Campgrounds and RV parks | camping space | 0.00 | 0.65 | |
| Hotel/motel | guest room | 0.00 | 0.65 | plus spaces required for restaurants/bars and assembly/ meeting space |
| Rural retreat | guest room | 0.00 | 0.65 | plus spaces required for restaurants/bars and assembly/ meeting space |
| **Marina** | | 0.00 | established as part of special exception | |

| USE CATEGORY<br>Subcategory<br>Specific use | Measurement (spaces per) | CBD | All other districts and PI Overlay [1] | Additional requirements/ notes for all other districts |
|---|---|---|---|---|
| *[1] See Section 20.040 for information on PI Overlay.* | | | | |
| **Office** | | | | |
| Business or professional office | 1,000 sq. ft. | 0.00 | 2.20 | None for first 5,000 sq. ft. |
| Medical, dental or health practitioner office | 1,000 sq. ft. | 0.00 | 2.60 | |
| Plasma center | 1,000 sq. ft. | 0.00 | 2.60 | |
| **Parking, Non-accessory** | | 0.00 | 0.00 | |
| **Restaurants and Bars** | | | | |
| Restaurant | 1,000 sq. ft. | 0.00 | 6.50 | None for first 5,000 sq. ft. |
| Restaurant, carry-out only | 1,000 sq. ft. | 0.00 | 2.50 | |
| Bar | 1,000 sq. ft. | 0.00 | 8.50 | None for first 5,000 sq. ft. |
| **Retail Sales** | | | | |
| Antique dealer or furniture store | 1,000 sq. ft. | 0.00 | 1.65 | |
| Building supplies and equipment | 1,000 sq. ft. | 0.00 | 1.65 | |
| Consumer shopping goods | 1,000 sq. ft. | 0.00 | 2.50 | None for first 5,000 sq. ft. |
| Convenience goods | 1,000 sq. ft. | 0.00 | 2.50 | None for first 5,000 sq. ft. |
| Convenience goods: Lawn, garden and building materials | 1,000 sq. ft. (Outdoor display and storage area) | 0.00 | 1.10 | |
| Convenience goods: Other materials | 1,000 sq. ft. (Outdoor display and storage area) | 0.00 | 2.50 | None for first 5,000 sq. ft. |
| Grocery Store | 1,000 sq. ft. | 0.00 | 2.50 | None for first 5,000 sq. ft. |
| Small Box Discount Store | 1,000 sq. ft. | 0.00 | 2.50 | None for first 5,000 sq. ft. |
| Medical Marijuana Dispensary | 1,000 sq. ft. | 0.00 | 2.50 | |
| **Self-service Storage Facility** | 1,000 sq. ft. | 0.00 | 0.10 | |

| USE CATEGORY<br>Subcategory<br>Specific use | Measurement (spaces per) | CBD | All other districts and PI Overlay [1] | Additional requirements/ notes for all other districts |
|---|---|---|---|---|
| *[1] See Section 20.040 for information on PI Overlay.* | | | | |
| **Sexually Oriented Business Establishment (except as below)** | 1,000 sq. ft. | 0.00 | 2.85 | |
| Adult amusement or entertainment | 1,000 sq. ft. | 0.00 | 8.75 | |
| Adult motel | room | 0.00 | 0.65 | |
| Adult theater | seat | 0.00 | 0.19 | plus 1 per booth |
| **Studio, Artist or Instructional Service** | 1,000 sq. ft. | 0.00 | 2.80 | None for first 5,000 sq. ft. |
| **Trade School** | 1,000 sq. ft. (Classroom) | 0.00 | 1.10 | |
| **Vehicle Sales and Service** | | | | |
| Car wash | See the vehicle stacking space requirements of Section 55.100 | | | |
| Fueling station | 1,000 sq. ft. | 0.00 | 1.50 | |
| Vehicle parts and supply sales | 1,000 sq. ft. | 0.00 | 3.33 | |
| Vehicle repair and maintenance (all types of vehicles/repairs) | 1,000 sq. ft. | 0.00 | 1.50 | minimum 5 spaces |
| Vehicle rentals | 1,000 sq. ft. | 0.00 | 1.25 | |
| Vehicle sales (all types) | 1,000 sq. ft. | 0.00 | 1.25 | plus 0.67 per 1,000 sq. ft. of open air display or storage area up to 4,500 sq. ft. plus 0.20 per each additional 1,000 sq. ft. of open display or storage area |
| **WHOLESALE, DISTRIBUTION & STORAGE** | | | | |

| USE CATEGORY<br>Subcategory<br>Specific use | Measurement (spaces per) | CBD | All other districts and PI Overlay [1] | Additional requirements/ notes for all other districts |
|---|---|---|---|---|
| *[1] See Section 20.040 for information on PI Overlay.* | | | | |
| **All Wholesale, Distribution and Storage Subcategories** | 1,000 sq. ft. | 0.00 | 0.15 | |
| **INDUSTRIAL** | | | | |
| **Low-impact, Moderate-impact and High-impact Manufacturing & Industry** | 1,000 sq. ft. | 0.00 | 0.85 | |
| **Mining/Extraction** | 1,000 sq. ft. | 0.00 | 0.65 | |
| **Junk or Salvage Yard** | 1,000 sq. ft. | 0.00 | 0.65 | |
| **RECYCLING** | | | | |
| **Construction or Demolition Debris** | 1,000 sq. ft. | 0.00 | 1.00 | |
| **Consumer Material Drop-off Station** | 1,000 sq. ft. | 0.00 | 1.00 | minimum 2 spaces |
| **Consumer Material Processing** | 1,000 sq. ft. | 0.00 | 1.00 | |
| **AGRICULTURAL** | | | | |
| **Animal Husbandry** | | 0.00 | 0.00 | |
| **Community Garden** | | 0.00 | 0.00 | |
| **Farm, Market- or Community-supported** | | 0.00 | 0.00 | |
| **Horticulture Nursery** | 1,000 sq. ft. | 0.00 | 0.20 | |
| **OTHER** | | | | |
| **Drive-in or Drive-through Facility** | See the vehicle stacking space requirements of Section 55.100 | | | |

*(Ord. No. 24725, §§ 16, 17, 11-17-2021; Ord. No. 25429, § 18, 10-30-2024; Ord. No. 25604, § 11, 6-18-2025)*

## Section 55.030. Maximum parking ratio for large retail uses.

Retail uses requiring more than two hundred twenty-five (225) parking spaces may not provide more than four (4) outdoor parking spaces per one thousand (1,000) square feet of floor area, except as approved through the alternative compliance landscaping provisions of Subsection 65.100-D.2. The alternative compliance landscaping plan must include a description of any low-impact development practices and landscaping that will help mitigate the additional paved area.

## Section 55.040. Calculation of required parking.

In determining the number of parking spaces required, the following calculation rules apply:

**A. Multiple uses.** Lots containing more than one use or tenant must provide parking in an amount equal to the total aggregate number of spaces required for each use or tenant on the lot except when a shared parking arrangement is approved in accordance with Subsection 55.050J.

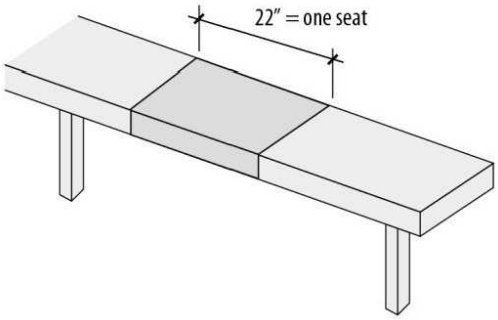
**B. Calculations.** In calculating the number of parking spaces required for uses subject to a minimum parking ratio of "x" spaces per 1,000 square feet, first divide the floor area of the subject use by 1,000 and then multiply the result by "x." If, for example, a minimum parking ratio of 3.33 spaces per 1,000 square feet is applied to a use occupying 500 square feet of floor area, the minimum parking requirement for that use would be calculated as follows: (500 sq. ft. ÷ 1,000) × 3.33 = 0.5 × 3.33 = 1.665, which is rounded up to 2 spaces (see Section 90.010).

**C. Floor area exemptions.** When minimum off-street parking ratios exempt the first increment of floor area, such exemption is credited to each individual use in a multi-tenant development.

**D. Occupancy- or capacity-based standards.** For the purpose of computing parking requirements based on employees, students, members, residents or occupants, calculations must be based on the average number of persons working on any single shift, the average enrollment or membership or the building code-rated capacity, whichever is applicable.

**E. Bench seating.** For the purpose of calculating parking requirements based on seating, each twenty-two (22) linear inches of bench or pew length is equivalent to one seat.

**Figure 55-1: Bench Seating**



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**F. Outdoor customer seating/dining areas.** Any outdoor customer seating/dining area exceeding ten (10) percent of a bar, restaurant or other use's indoor floor area must be counted as floor area for purposes of determining off-street parking requirements.

**G. Unlisted uses.** Upon receiving a development application for a use not specifically listed in an off-street parking schedule, the development administrator is authorized to apply the off-street parking ratio specified for the listed use that is deemed most similar to the proposed use or establish a minimum off-street parking requirement for the proposed use in accordance with Subsection 55.040H.

**H. Establishment of other parking ratios.** The development administrator is authorized to establish required minimum parking ratios for unlisted uses and in those instances where authority to establish a requirement is expressly granted. Such ratios must be established on the basis of (1) a similar use/parking determination (as described in Subsection 55.040G.), (2) on parking data provided by the applicant, or (3) other information available to the development administrator. Parking data and studies must include estimates of parking demand based on reliable data collected from comparable local uses or on external data from credible research organizations, such as the Urban Land Institute (ULI) and the Institute of Transportation Engineers (ITE). Comparability will be determined by density, scale, bulk, area, type of activity and location. Parking studies must document the source of all data used to develop recommended requirements.

## Section 55.050. Parking exemptions and credits.

**A. Central Business district.** Uses within the CBD zoning district are exempt from compliance with all regulations of this chapter, except for the parking area design requirements of Subsection 55.090B. through Subsection 55.090G., which do apply in the CBD district.

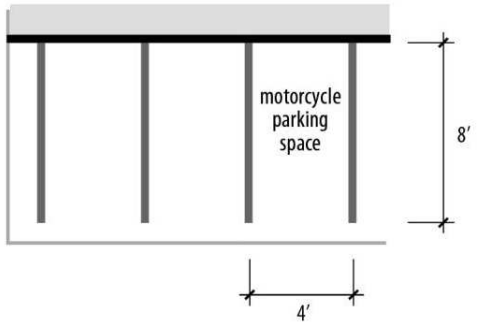
**B. HP-zoned property.** Buildings within HP (Historic Preservation) overlay districts are exempt from the minimum off-street parking ratios of Table 55-1.

**C. National Register of Historic Places.** Buildings listed in the National Register of Historic Places and contributing buildings within National Register districts are exempt from the minimum off-street parking ratios of Table 55-1.

**D. Accessory buildings.** Accessory buildings are exempt from the minimum off-street parking ratios of Table 55-1.

**E. Motorcycle and scooter parking.** In parking lots containing more than ten (10) parking spaces, the provision of motorcycle or scooter parking spaces may be credited toward satisfying the minimum off-street parking ratios of Table 55-1 at the rate of one motor vehicle parking space for each two (2) motorcycle or scooter parking spaces. The maximum credit allowed under this provision is two (2) spaces or ten (10) percent of the total minimum motor vehicle parking requirement for the subject property, whichever is greater. To receive credit, each motorcycle and scooter space must have a concrete surface and minimum dimensions of four (4) feet by eight (8) feet. This provision applies to existing and proposed parking lots.

**Figure 55-2: Motorcycle Parking Space Dimensions**




**F. Car-share and bike-share service.** The following parking credits apply to nonresidential uses that are required to provide ten (10) or more motor vehicle parking spaces and to residential or mixed-use projects that are required to provide twenty-five (25) or more motor vehicle parking spaces.

**1.** The number of required motor vehicle parking spaces is reduced by four (4) spaces for each parking space that is leased by a city-approved car-share program for use by a car-share vehicle.

**2.** The number of required motor vehicle parking spaces is reduced by two (2) spaces for uses that provide space for a city-approved bike-share program facility with a minimum of ten (10) bicycle parking docks.

**G. Long-term bicycle parking.** Each ten (10) long-term bicycle parking spaces provided in accordance with Section 55.060 is credited as one motor vehicle space.

**H. Public parking.** Nonresidential uses may receive credit for parking spaces within a nearby public parking lot or public parking garage, as follows:

**1.** The nearest pedestrian entrance to the public parking lot or garage must be located within one thousand five hundred (1,500) feet of the lot on which the subject use is located;

**2.** The parking facility must be open to the general public from at least 6:00 a.m. to 10 p.m.;

**3.** Minimum parking requirements may be reduced by one parking space for every four (4) parking spaces within the public parking lot or garage, not to exceed a total reduction of more than twenty-five (25) spaces.

**I. On-street parking.** Nonresidential uses may count on-street parking spaces on public street rights-of-way abutting the subject property towards satisfying off-street motor vehicle parking requirements. One on-street parking space credit may be taken for each twenty (20) linear feet of abutting right-of-way where on-street parking is allowed. Only space on the same side of the street as the subject use may be counted, except that the opposite side of the street may be counted if the property on that side of the street does not have the potential for future development. In calculating credit for on-street parking, all fractional spaces are rounded down.

**J. Shared parking.**

1. **General.** Shared parking refers to the practice of two (2) or more users who have need for parking at different times voluntarily agreeing to make use of the same motor vehicle parking spaces. Shared parking is encouraged as a means of conserving scarce land resources, reducing stormwater runoff, reducing the heat island effect caused by large paved areas and improving community appearance.
2. **Approval.** The development administrator is authorized to approve shared parking arrangements among property owners who propose shared parking.
3. **Eligibility.** Shared parking may be approved for nonresidential uses that have different periods of parking demand. Required residential parking and accessible parking spaces (for people with disabilities) may not be shared, provided that this provision is not intended to prohibit shared driveways serving such uses.
4. **Calculation.** The number of parking spaces required under a shared parking arrangement must be determined in accordance with the following:
   - **a.** Multiply the minimum parking required for each individual use, as set forth in Table 55-1 by the percentage identified in Table 55-2 for each of the six (6) designated time periods.
   - **b.** Add the resulting sums for each of the six (6) columns in Table 55-2.
   - **c.** Select the time period with the highest total parking requirement and use that total as the shared parking requirement.

**Table 55-2: Shared Parking Calculations**

| | Time | | | | | |
|---|---|---|---|---|---|---|
| | Weekday | | | Weekend | | |
| Land Use | Midnight - 7:00 a.m. | 7:00 a.m. - 6:00 p.m. | 6 p.m. - Midnight | Midnight - 7:00 a.m. | 7:00 a.m. - 6:00 p.m. | 6 p.m. - Midnight |
| Office and Industrial | 5% | 100% | 10% | 0% | 60% | 5% |
| Lodging | 100% | 60% | 90% | 100% | 65% | 80% |
| Restaurants and Bars | 50% | 70% | 100% | 45% | 70% | 100% |
| Religious Assembly | 0% | 10% | 30% | 0% | 100% | 30% |
| Assembly & Entertain. | 10% | 50% | 100% | 5% | 80% | 100% |
| Retail Sales & Comm. Service | 5% | 70% | 90% | 0% | 100% | 60% |

5. **Other uses.** If one or more of the land uses proposing to make use of a shared parking arrangement do not conform to the land use classifications in Table 55-2, as determined by development administrator, then the applicant must submit sufficient data to indicate the principal operating hours of the uses. Based upon this information, the development administrator is authorized to determine the appropriate shared parking requirement, if any, for such uses.
6. **Location.** Shared parking may be located on-site or off-site. Off-site parking is subject to the regulations of Subsection 55.080D.
7. **Agreement.** Before final approval of a shared parking arrangement, a shared parking agreement must be provided guaranteeing the long-term availability of the shared parking, commensurate with the uses served. The agreement must be filed of record in the county clerk's office of the county in which the property is located. Shared parking privileges will continue in effect only as long as the

agreement, binding on all parties, remains in force. If a shared parking agreement lapses or is no longer valid, then parking must be provided as otherwise required by this chapter.

**K. Alternative Compliance.** The motor vehicle parking ratios of this chapter are not intended to prevent development and redevelopment or to make development and redevelopment economically impractical. In order to allow for flexibility in addressing the actual expected parking demand of specific uses, alternative compliance parking ratios may be approved through the special exception procedures of Section 70.120 only if:

**1.** The board of adjustment determines that the other allowed parking reduction alternatives of Section 55.050 are infeasible or do not apply; and

**2.** The board of adjustment determines that the reduced parking ratios proposed are not likely to cause material adverse impacts on traffic circulation and safety or on the general welfare of property owners and residents in the surrounding area.

**L. Conflicts with interior parking lot landscape regulations.** If compliance with the minimum interior parking lot landscaping regulation of Subsection 65.050D.1. would result in the loss of required parking spaces, the amount of parking required is automatically reduced by the amount needed to accommodate the required interior parking lot landscape area.

*(Ord. No. 24725, § 18, 11-17-21)*

## Section 55.060. Bicycle parking.

**A. Purposes.**

**1. Short-term bicycle parking.** Short-term bicycle parking is generally intended to serve the needs of cyclists who park their bicycles for short time periods, including customers, clients, students and other short-term visitors.

**2. Long-term bicycle parking.** Long-term bicycle parking is generally intended to serve the needs of cyclists who park their bicycles for long time periods, primarily employees and residents.

**B. Spaces required.**

**1. Short-term bicycle parking.** Short-term bicycle parking spaces must be provided in accordance with the minimum ratios established in Table 55-3: Minimum Required Bicycle Parking Ratios.

**Table 55-3: Minimum Required Bicycle Parking Ratios**

| **USE CATEGORY**<br>**Subcategory**<br>**Specific use** | **Bicycle Spaces (% of Required Motor Vehicle Parking Spaces)** |
|---|---|
| **RESIDENTIAL** | |
| Household Living | |
| Apartment/condo | 10% or 2 spaces, whichever is greater |
| **PUBLIC, CIVIC AND INSTITUTIONAL** | |
| College or University | 10% or 2 spaces, whichever is greater |
| Library or Cultural Exhibit | 10% or 2 spaces, whichever is greater |

| USE CATEGORY<br>Subcategory<br>Specific use | Bicycle Spaces (% of Required Motor Vehicle Parking Spaces) |
|---|---|
| Parks and Recreation | 5% or 2 spaces, whichever is greater |
| School | |
| Elementary or Middle School | 10% or 2 spaces, whichever is greater |
| Senior High | 5% or 2 spaces, whichever is greater |
| **COMMERCIAL** | |
| Assembly and Entertainment | 5% or 2 spaces, whichever is greater |
| Commercial Service | |
| Personal improvement service | 5% or 2 spaces, whichever is greater |
| Financial Services | 5% or 2 spaces, whichever is greater |
| Restaurants and Bars | |
| Restaurant | 5% or 2 spaces, whichever is greater |
| Bar | 5% or 2 spaces, whichever is greater |
| Retail Sales | |
| Consumer shopping goods | 5% or 2 spaces, whichever is greater |
| Convenience goods | 5% or 2 spaces, whichever is greater |
| Studio, Artist or Instructional Service | 5% or 2 spaces, whichever is greater |

**C. Long-term bicycle parking.** Long-term bicycle parking and storage is not required, but as a means of encouraging the provision of long-term bicycle parking spaces for employees and bicycle commuters, motor vehicle parking credit is offered in accordance with Subsection 55.050G.

**D. Location and design.**

**1. Short-term bicycle parking spaces.**

**a. Location.** Short-term bicycle parking spaces must be located in highly visible areas that do not interfere with pedestrian movements. At least fifty (50) percent of required short-term bicycle parking spaces must be located within one hundred (100) feet of a customer entrance, with the remainder located no more than three hundred (300) feet from any entrance. Short-term bicycle parking must be located on the subject lot, unless a license agreement has been approved by the city to allow private bicycle parking facilities to be located in the right-of-way. Public bicycle parking spaces may be credited toward meeting short-term bicycle parking requirements if such bicycle parking spaces comply with the location requirements of this paragraph.

**b. Design.** Required short-term bicycle parking spaces must:

(1) Consist of bike racks or lockers that are anchored so that they cannot be easily removed;

(2) Be of solid construction, resistant to rust, corrosion, hammers, and saws;

(3) Allow both the bicycle frame and the wheels to be locked with the bicycle in an upright position using a standard U-lock;

(4) Be designed so as not to cause damage to the bicycle;

(5) Facilitate easy locking without interference from or to adjacent bicycles; and

(6) Have minimum dimensions of two (2) feet in width by six (6) feet in length, with a minimum overhead vertical clearance of seven (7) feet.

**2. Long-term bicycle parking and storage spaces.**

**a. Location.** Long-term bicycle parking spaces provided to receive parking credit in accordance with Subsection 55.050G. must be provided in the building or in a weather-protected area. Long-term bicycle parking spaces must be protected from access by unauthorized persons.

**b. Design.** Long-term bicycle parking spaces provided to receive parking credit in accordance with Subsection 55.050G. must:

(1) Consist of bike racks or lockers anchored so that they cannot be easily removed;

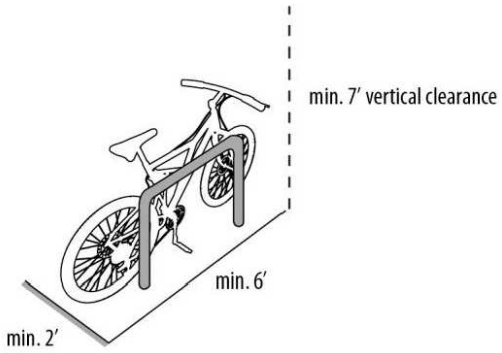
(2) Allow both the bicycle frame and the wheels to be locked with the bicycle in an upright position using a standard U-lock;

(3) Be designed so as not to cause damage to the bicycle;

(4) Facilitate easy locking without interference from or to adjacent bicycles; and

(5) Have minimum dimensions of two (2) feet in width by six (6) feet in length, with a minimum overhead vertical clearance of seven (7) feet. Bicycle lockers are exempt from overhead clearance requirements.

**Figure 55-3: Bicycle Parking Space Dimensions**




## E. Special exceptions.

**1.** The board of adjustment is authorized to approve a special exception reducing the number of short-term bicycle spaces required under this section, in accordance with the special exception procedures of Section 70.120.

**2.** The board of adjustment is also authorized to approve special exception to modify the bicycle parking design and location requirements of this section in accordance with the special exception procedures of Section 70.120.

**Section 55.070. Use of off-street parking areas.**

**A.** Required off-street parking spaces are intended to serve residents, tenants, patrons, employees, or guests of the principal use. Required off-street parking areas may be used solely for the temporary parking of licensed motor vehicles in operating condition.

**B.** Required off-street parking spaces may not be used for the storage, display or sale of goods equipment or materials. No motor vehicle repair work of any kind is permitted in a required parking space.

**C.** Required spaces may be used for electric vehicle charging.

**Section 55.080. Location of off-street parking.**

**A. General.** Except as otherwise expressly stated in this chapter, required off-street parking areas must be located on the same lot as the building or use they are required to serve.

**B. Street yard parking in RM districts.** Within RM districts no more than fifty (50) percent of a street yard may be used for motor vehicle parking.

**C. Parking setbacks.**

**1.** Unenclosed off-street parking areas must be set back from abutting streets as indicated in Table 55-4:

**Table 55-4: Parking Space Setback Requirements**

| | Minimum Street Setback (feet) | |
|---|---|---|
| | 1 to 5 Parking Spaces | 6 or More Parking Spaces |
| **Residential Zoning Districts** | | |
| Accessory to a household living use | 3 | 15 |
| Accessory to another use | 15 | 25 |
| **Other Zoning Districts** | | |
| Within 50 feet of a residential district | 15 | 25 |

**2.** All unenclosed, non-accessory off street parking areas must be screened from abutting R- or AG-R-zoned lots by an F1 screening fence or wall, in accordance with Subsection 65.070C.

**3.** All unenclosed, accessory off street parking areas containing six (6) or more spaces must be screened from abutting RE-, RS-, or AG-R-zoned lots by an F1 screening fence or wall, in accordance with Subsection 65.070C., provided that accessory parking areas located more than fifty (50) feet from abutting RE-, RS-, or AG-R-zoned lots are not required to provide such screening.

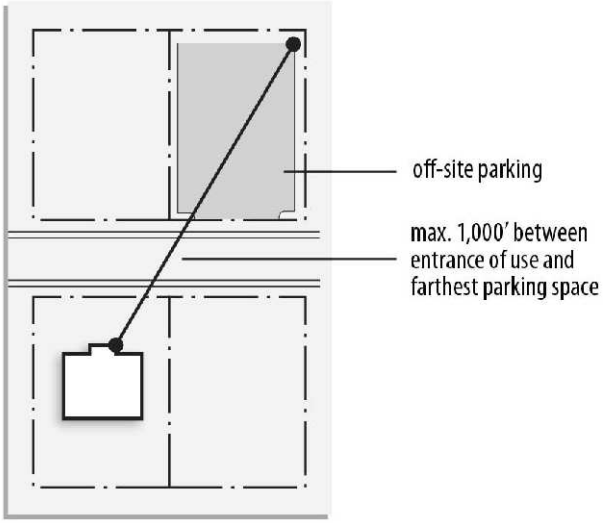
**D. Off-site parking.**

**1. When Allowed.** All or a portion of required off-street parking for nonresidential uses may be provided off-site, in accordance with the regulations of this section. Required accessible parking spaces (see Section 55.110) and required parking for residential uses may not be located off site.

**2. Location.** Off-site parking areas must be located within a one-thousand-foot radius of the use served by such parking, measured between the nearest public

entrance door of the use to be served and the outer perimeter of the furthest parking space within the off-site parking lot. Off-site parking lots are allowed only in zoning districts that permit non-accessory parking or in districts that allow the principal use to be served by the off-site parking spaces.

**Figure 55-4: Off-Site Parking Location**




3. **Design.** Off-site parking areas must comply with all applicable parking area design regulations of Section 55.090. Off-site parking proposed to take place on a newly constructed parking area must comply with the PK district lot and building regulations of Subsection 25.030C.

4. **Control of off-site parking area.** The property to be occupied by the off-site parking facilities must be under the same ownership as the lot containing the use to be served by the parking. The off-site parking area may be under separate ownership only if an agreement is provided guaranteeing the long-term availability of the parking, commensurate with the use served by the parking. The agreement must be filed of record in the county clerk's office of the county in which the property is located. Off-site parking privileges will continue in effect only as long as the agreement, binding on all parties, remains in force. If an off-site parking agreement lapses or is no longer valid, then parking must be provided as otherwise required by this chapter.

*(Ord. No. 24825, § 5, 5-18-2022)*

## Section 55.090. Parking area design.

**A. Applicability.** The parking area design regulations of this section apply to all off-street parking lots for motor vehicles, whether containing required parking spaces or non-required parking spaces.

**B. Ingress and egress.** All parking areas must be designed to allow vehicles to enter and exit a street and cross public sidewalks in a forward motion, except that this requirement does not apply to lots with access on a minor street.

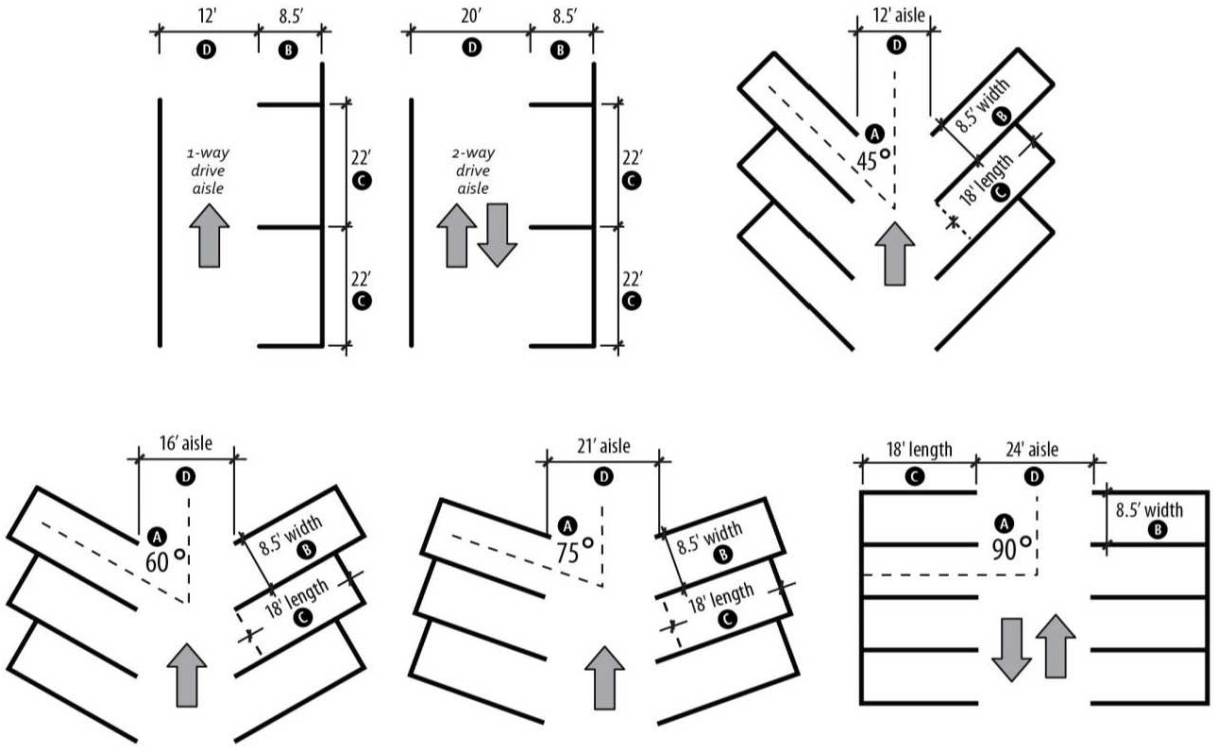
**C. Stall size.** Parking spaces must be at least eight and one-half (8.5) feet in width and eighteen (18) feet in length, exclusive of access drives and aisles. In parking areas where permanent wheel stops have been installed, two and one-half (2.5) feet of the parking space length (depth) beyond the wheel stop may be counted as part of the required stall length if that area is unobstructed and not part of another parking stall, drive aisle or sidewalk.

**D. Parking area layout (geometrics).** Parking areas must be designed and marked in accordance with the dimensional standards of Table 55-5, which shows minimum dimensions for various parking layouts (angles). Requirements for layouts or angles not shown in Table 55-5 may be interpolated from the layouts shown, as approved by the development administrator.

**Table 55-5: Parking Area Geometrics**

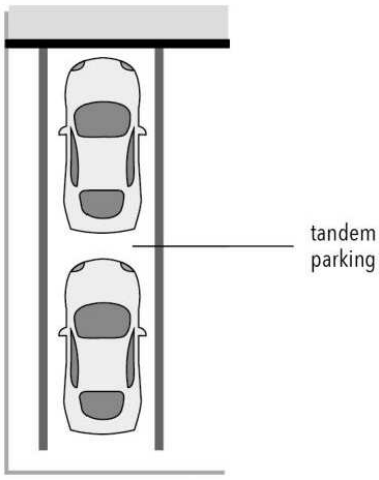
| Stall Angle | Stall Width | Stall Length | Aisle Width (1-way/2-way) |
|---|---|---|---|
| 0° | 8.5 | 22.0 | 12.0/20.0 |
| | 9.0 | 22.0 | 12.0/20.0 |
| 45° | 8.5 | 18.0 | 12.0/20.0 |
| | 9.0 | 18.0 | 11.0/19.0 |
| 60° | 8.5 | 18.0 | 16.0/21.0 |
| | 9.0 | 18.0 | 15.0/20.0 |
| 75° | 8.5 | 18.0 | 21.0/22.0 |
| | 9.0 | 18.0 | 20.0/21.0 |
| 90° | 8.5 | 18.0 | -/24.0 |
| | 9.0 | 18.0 | -/22.0 |
| | 10.0 | 18.0 | -/20.0 |

**Figure 55-5: Parking Area Geometrics**




**E. Tandem parking.** Tandem parking spaces may be used to satisfy parking requirements for household living uses when the spaces are assigned to the same dwelling unit. In all other cases parking spaces must be designed to allow each parking space to be accessed without passing through another parking space. Tandem parking arrangements must have a minimum stall of eight and one-half (8.5) feet and a minimum length of thirty-six (36) feet.

**Figure 55-6: Tandem Parking**




## F. Surfacing.

**1.** All off-street parking areas must be surfaced with a dustless, all-weather surface unless otherwise expressly stated in this zoning code. Pervious pavement or pervious pavement systems are allowed subject to the supplemental regulations of Subsection 55.090F.4. Parking area surfacing must be completed prior to initiation of the use to be served by the parking.

**2.** All motorized vehicles designed for travel upon public streets and all recreational vehicles that are being parked, stored or displayed for sale must be parked, stored or displayed on a dustless, all-weather surface. This surfacing requirement does not apply to junk or salvage yards. The board of adjustment is authorized to grant a special exception permitting the parking, storage or display of motorized vehicles or recreational vehicles on a surface other than one consisting of a dustless, all-weather surface if the location complies with all applicable minimum building setbacks.

**3.** Driveways, not including parking spaces, that serve residential uses in AG and AG-R zoning districts may be surfaced with gravel in place of a dustless, all-weather surface outside of the street right-of-way.

**4.** In RE and RS zoning districts, driveways serving residential dwelling units may not exceed 50% of the lot frontage or the following maximum widths, whichever is less, unless a greater width is approved in accordance with the special exception procedures of Section 70.120, or, if in a PUD, in accordance with the amendment procedures of Subsection 30.010I.2. (Refer to the City of Tulsa Standard Specifications and Details for Residential Driveways #701—704).

**Table 55-6: Maximum Driveway Widths in RE and RS Zoning Districts**

| Maximum Driveway Width | | | | | |
|---|---|---|---|---|---|
| **Lot Frontage** | **75'+** | **60'—74'** | **46'—59'** | **30'—45'** | **Less than 30' [2]** |
| Driveway Within Right-of-Way (feet) [1] | 27' | 26' | 22' | 20' | 12' |
| Driveway Within Street Setback (feet) | 30' | 30' | — | — | — |

[1] Maximum width applies to the composite of all driveways if multiple curb cuts are provided.

[2] Provided that for lot frontages less than 24 feet, a driveway up to 12 feet in width is permitted.

For approvals granted under the terms of the zoning code in effect prior to January 1, 2016, including: (1) variances of maximum driveway coverage measured by width, square footage or percentage of yard; and (2) establishment of PUD development standards that increase the maximum permitted driveway coverage measured by any such means, the foregoing maximums do not apply.

**5.** Pervious pavement or pervious pavement systems, including pervious asphalt, pervious concrete, modular pavers designed to funnel water between blocks, lattice or honeycomb shaped concrete grids with turf grass or gravel filled voids to funnel water, plastic geocells with turf grass or gravel, reinforced turf grass or gravel with overlaid or embedded meshes, resin-bound pervious pavement systems, or similar structured and durable systems are allowed as parking lot surfacing materials. Gravel, turf, or other materials that are not part of a structured system designed to manage stormwater are not considered pervious pavement or a pervious pavement system. Pervious pavement and pervious pavement systems must comply with the following:

**a.** Materials must be installed and maintained in accordance with all applicable city standards. Damaged areas must be promptly repaired. Gravel that has migrated from a pervious pavement system onto adjacent areas must be regularly swept and removed.

**b.** Accessible parking spaces and accessible routes from the accessible space to the principal structure or use served must comply with the building code.

**c.** Pervious pavement or pervious pavement systems are prohibited in areas used for the dispensing of gasoline or other liquid engine fuels or where other hazardous materials are used or stored.

**d.** Pervious asphalt, pervious concrete, or modular pavers may be used for drive aisles and driveways, but no other pervious pavement systems may be used in such areas unless expressly approved by the development administrator.

**e.** Pervious pavement or pervious pavement systems that utilize turf grass may not be used to meet minimum off-street parking requirements, but may be used for overflow parking spaces that are not used for required parking and that are not occupied on a daily or regular basis.

**f.** Pervious pavement or pervious pavement systems that utilize gravel with overlaid or embedded mesh or geocells may be used only in industrial zoning districts.

**g.** Parking areas with pervious pavement or pervious pavement systems must have the parking spaces marked as required by this chapter, except that pervious pavement systems that utilize gravel or turf may use alternative marking to indicate the location of the parking space, including markings at the end of spaces on the drive aisle or curbing, wheel stops, or concrete or paver strips in lieu of painted lines.

**G. Vertical clearance.** All parking spaces must have overhead vertical clearance of at least seven (7) feet.

**H. Landscaping and screening.** See Chapter 65.

**I. Lighting.** See Chapter 67.

*(Ord. No. 25330, § 14, 6-5-2024)*

## Section 55.100. Stacking spaces for drive-through facilities.

**A. Spaces required.** In addition to the parking required for each use, establishments with drive-through facilities must provide stacking spaces for each drive-through station as indicated in Table 55-7:

**Table 55-7: Drive-through Stacking Space Requirements**

| Use | Minimum Spaces (per lane) |
|---|---|
| Automated teller machine | 2 (measured from ATM) |
| Bank | 3 (measured from teller or service area) |
| Car wash, automated or customer-operated | 2 (measured from vehicle entrance) |
| Car wash, attendant hand wash | 3 (measured from vehicle entrance) |
| Drug store | 2 (measured from pick-up window) |
| Restaurant drive-through | 3 (measured from order board) |
| Kiosks | 2 (measured from service window) |
| Other | As determined by the development administrator |

**B. Dimensions.** Each lane of stacking spaces must be at least eight (8) feet in width and at least eighteen (18) feet in length. Stacking lanes must be delineated with pavement markings.

**C. Location and design.**

**1.** Stacking lanes must be located on the subject property. They may not be located within required driveways or drive aisles, parking spaces or loading areas and may not interfere with access to parking and ingress and egress from the street.

**2.** All areas associated with drive-through facilities, including drive-through signs, stacking lanes, trash receptacles, loudspeakers and service windows must be located to the rear or on the non-street-facing side of the property. Drive-through lanes must be set back at least ten (10) feet from abutting R- or AG-R-zoned lots, and a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

**D. Pedestrian access.** The principal pedestrian access to the entrance of the use from a public sidewalk may not cross the drive-through facility stacking lane.

*(Ord. No. 25330, § 15, 6-5-2024)*

### Section 55.110. Accessible parking for people with disabilities.

Accessible parking facilities must be provided in accordance with the building code.

### Section 55.120. Loading.

Unenclosed off-street loading areas may not be located within fifty (50) feet of any abutting R- or AG-R-zoned properties unless the loading areas is screened on all sides abutting the R- or AG-R-zoned property in accordance with the F1 screening fence or wall standards of Subsection 65.070C.

### Section 55.130. Pedestrian circulation.

**A. Applicability.** An on-site circulation system for pedestrian and non-motorized travel must be provided in accordance with the requirements of this section for all lots occupied by buildings, except for:

**1.** Residential buildings containing four (4) or fewer dwelling units;

**2.** Agricultural uses;

**3.** Industrial or other uses without a resident- or customer-entrance; and

**4.** Uses, other than parking lots, that do not include a principal building intended for regular human occupancy.

**B. Required connections.** The pedestrian circulation system must provide safe, direct and convenient pedestrian access connecting main entrances of buildings and uses with all other such entrances and with available access points including parking, streets, sidewalks and transit stops. In the case of building or site additions, these requirements apply only to the new or expanded areas.

**C. Design.** Required on-site pedestrian circulation facilities must be designed and constructed in accordance with the following requirements:

**1.** Pedestrian access must consist of an accessible, easily-discernible walkway or multi-use path with a minimum width of five (5) feet.

**2.** The pedestrian access surface located on private property must be constructed of concrete, asphalt or other fixed, firm and nonslip material, approved by the development administrator.

**3.** Pedestrian access routes that cross parking lots, drive aisles or other vehicular use areas must be clearly differentiated from the vehicle surface through the use of physical separation or by durable, low-maintenance materials such as pavers, bricks, scored concrete, pavement textures or painted surfaces to define places of pedestrian movement.

## CHAPTER 60. SIGNS

Section 60.010. General.
Section 60.020. Prohibited signs and sign characteristics.
Section 60.030. Sign exceptions.
Section 60.040. Sign regulations of general applicability.
Section 60.050. Signs in R, AG, and AG-R zoning districts.
Section 60.060. Signs in office zoning districts.
Section 60.070 Signs in SR zoning districts.
Section 60.080. Signs in mixed-use, commercial and industrial zoning districts.
Section 60.090. Signs in special districts.
Section 60.100. Dynamic displays.
Section 60.110. Administration.
Section 60.120. Nonconforming signs.
Section 60.130. Rules of measurement.

### Section 60.010. General.

**A. Purpose.** The sign regulations of this section are intended to balance the following differing, and at times, competing goals:

**1.** To support the desired character of the city, as expressed in adopted plans, policies and regulations;

**2.** To promote an attractive visual environment;

**3.** To encourage the effective use of signs as a means of communication for businesses, organizations and individuals;

**4.** To provide a means of way-finding for visitors and residents;

**5.** To provide for reasonable business identification, advertising and communication;

**6.** To prohibit signs of such excessive size and number that they obscure one another to the detriment of the economic and social well-being of the city and its residents, property owners and visitors;

**7.** To protect the safety and welfare of the public by minimizing hazards for motorized and nonmotorized traffic;

**8.** To minimize the possible adverse effects of signs on nearby public and private property; and

**9.** To provide broadly for the expression of individual opinions through the use of signs on private property.

**B. Scope and applicability.** All signs within the city are subject to the regulations of this chapter and all other applicable provisions of this zoning code.

**C. Content neutrality.** Any sign allowed under this chapter may contain, in lieu of any other message or copy, any lawful noncommercial message that does not direct attention to a business operated for profit, or to a product, commodity or service for sale or lease, or to any other commercial interest or activity, as long as the sign complies with all size, height, location and other applicable requirements of this chapter.

**D. Off-premise outdoor advertising signs.** Off-premise outdoor advertising sign are allowed only in those locations expressly identified in this zoning code and only when such signs comply with all applicable off-premise outdoor advertising sign regulations.

Provisions of this zoning code that refer to "signs" being allowed or certain types of signs being allowed (e.g., freestanding, wall, projecting) are not to be construed as references to off-premise outdoor advertising signs being allowed, unless the subject provision expressly refers to "off-premise outdoor advertising signs."

## Section 60.020. Prohibited signs and sign characteristics.

The following signs and sign characteristics are prohibited except as otherwise expressly stated:

**A.** Signs for which no permit that is required under Title 51 of the Tulsa Revised Ordinances has been issued;

**B.** Signs located in such a manner as to constitute a nuisance as provided in Title 24, Chapter 1 of the Tulsa Revised Ordinances;

**C.** Search lights, strobe lights, rotating beacon lights, flashing lights that are visible from public right-of-way, except as otherwise expressly allowed by this chapter or required by law;

**D.** Signs located in or obstructing a required parking or loading space, or that otherwise obstruct vehicular or pedestrian access or circulation, or that pose any other hazard to motorized or nonmotorized travel;

**E.** Signs located in or that project into the right-of-way or planned right-of-way of a public street, unless a special exception has been approved by the board of adjustment in accordance with the procedures of Section 70.120 and a license has been granted by the city in the case of the right-of-way or a removal agreement has been entered into in the case of the planned right-of-way. (Title 11 § 1400 and following of the Tulsa Revised Ordinances grants a license for certain signs located in the "Central Business District" as therein defined);

**F.** Signs that obstruct any fire escape, required exit, window or door opening used as a means of egress;

**G.** Signs that interfere with an opening required for ventilation, except that signs may cover transom windows when not in violation of building and fire prevention codes;

**H.** Signs affixed directly to a tree, utility pole or traffic control device;

**I.** Signs that obstruct, impair, obscure, interfere with the view of, or that may be confused with, any authorized traffic control sign, signal, or device;

**J.** Sign displays with a brightness of such intensity or brilliance that they impair the vision or endanger the safety and welfare of any pedestrian, cyclist, or person operating a motor vehicle;

**K.** Signs that violate the intersection sight distance regulations of Title 24 (§ 103.A) of the Tulsa Revised Ordinances;

**L.** Roof signs, except as expressly allowed by Subsection 60.080B.5.;

**M.** Signs exceeding an illumination of seventy (70) foot-candles measured at a distance of two (2) feet;

**N.** Signs attached to or painted on an inoperable or unlicensed vehicle (motorized or non-motorized) located in view of the right-of-way; and

**O.** Signs attached to or painted on a licensed motor vehicle if the sign: (1) directs attention to a business, service, commodity, or activity offered or sold on the premises and (2) if the vehicle is parked closer to the street than the nearest building wall (does not apply to vehicles parked for the purpose of immediate loading and unloading).

*(Ord. No. 24725, § 19, 11-17-21)*

**Section 60.030. Sign exceptions.**

The following signs are not counted as signs for purposes of determining the number of signs or amount of signage on a lot:

**A. Driveway signs.**

**1.** One driveway sign may be installed at each vehicle entrance and exit to any lot occupied by an allowed nonresidential use or apartment/condo building. Such signs must be located within ten (10) feet of the intersection of the driveway and the street right-of-way. Driveway signs may be illuminated but may not exceed four (4) square feet in area or five (5) feet in height.

**2.** Off-street parking areas with a capacity of more than four (4) vehicles, multi-tenant developments and uses on lots exceeding eighty thousand (80,000) square feet in area may display internal site driveway signs. Such signs must be located within ten (10) feet of an internal site driveway or drive aisle and may not exceed twelve (12) square feet in area or ten (10) feet in height.

**B. Drive-through signs.** Drive-through signs are permitted in conjunction with drive-through uses, in accordance with the following regulations:

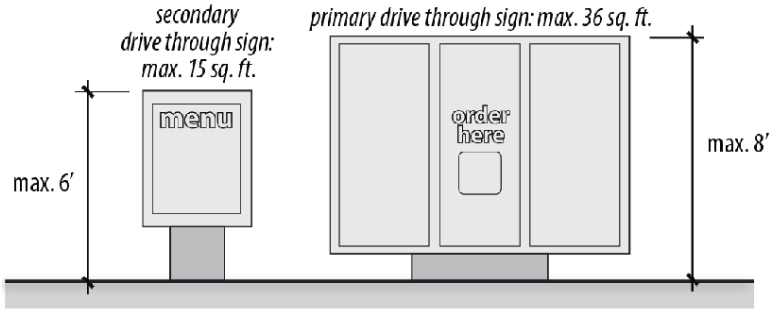
**1. Location.** Drive-through signs must be located within ten (10) feet of a drive-through lane.

**2. Number and dimensions.** One primary drive-through sign not to exceed thirty-six (36) square feet in area or eight (8) feet in height is allowed per order station up to a maximum of two (2) primary drive-through signs per lot. One secondary drive-through sign not to exceed fifteen (15) square feet in area or six (6) feet in height is allowed per lot.

**3. Residential separation.** Drive-through signs must be set back at least fifty (50) feet from residential zoning districts.

**4. Visibility.** Drive-through signs must be oriented to be visible by motorists in allowed drive-through lanes.

**Figure 60-1: Drive-through Signs**




**C. Nameplates.** Nameplates are allowed in all zoning districts, provided they do not exceed two (2) square feet in area in residential districts or four (4) square feet in area in all other districts.

**D. Window Signs.** Window signs are allowed as sign exceptions for allowed nonresidential uses, provided they do not cover more than twenty-five (25) percent of the area of the window to which they are affixed.

**E. Temporary signs.**

**1. Real estate signs.** One real estate sign is allowed per street frontage, subject to the standards in Table 60-1:

**Table 60-1: Real Estate Signs**

| Regulation | AG, AG-R, R, O and SR Districts | All Other Districts |
|---|---|---|
| Maximum Sign Area (sq. ft.) | | |
| Minor Street Frontage | 8 | 8 |
| All Other Street Frontages | 32 | 80 |
| Maximum Sign Height (feet) | | |
| Minor Street Frontage | 8 | 8 |
| All Other Street Frontages | 15 | 25 |

**2. Construction signs.** One construction sign is allowed per street frontage, subject to the following standards:

**a.** Construction signs may not exceed thirty-two (32) square feet in area or 0.50 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed four hundred (400) square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented.

**b.** Construction signs may not exceed fifteen (15) feet in height.

**c.** Construction signs must be removed within two (2) weeks of completion of the construction or development.

**3. Banners.**

**a.** One banner attached to the wall of a building is allowed as a sign exception for allowed nonresidential uses, provided that such banner does not exceed thirty-two (32) square feet in area.

**b.** Banners must be removed no later than ninety (90) days after installation or at such time that permanent signs are installed, whichever occurs first.

**4. Promotional signs.** Promotional signs are permitted as sign exceptions on lots occupied by allowed nonresidential uses. Such signs are subject to the following standards:

**a.** No more than four (4) promotional sign permits are allowed per business per year.

**b.** A promotional sign permit may be issued for a maximum fourteen-day period. Any or all of the four (4) allowed promotional sign time periods may run consecutively.

**c.** The height of a promotional sign may not exceed the maximum allowed height of any freestanding sign allowed in the subject zoning district. In addition, any inflatable promotional signs must be set back from all property lines by a minimum distance of one foot for every one foot of sign height, as measured from ground level at the base of the sign.

**d.** Promotional signs may not be mounted on the roof, except for inflatable or other non-rigid sign/displays, which may be roof-mounted.

**5. Campaign signs.** Campaign signs must be removed no later than seven (7) days after the voting event. Campaign signs are prohibited on public property and are allowed on private property only with the consent of the owner of the subject property. In R and O zoning districts campaign signs may not exceed sixteen (16) square feet in area.

**6. Special event signs.** Special event signs are subject to city council approval. City council-approved special event signs are not subject to the sign regulations of this chapter unless otherwise expressly stated at the time of approval.

**F. Other sign exceptions** The following additional signs are also allowed as sign exceptions:

**1.** Signs erected and maintained pursuant to the discharge of governmental functions, or that are required by law, ordinance, or government regulation, or that are required to be posted in order to effectuate a legal right;

**2.** Flags that do not contain a commercial message;

**3.** Wall plaques and wall signs that are not illuminated and that do not exceed four (4) square feet in area;

**4.** Signs that are not legible from any public right-of-way or from beyond the boundaries of the lot or parcel;

**5.** Signs within completely enclosed buildings, provided that such signs are oriented to be primarily visible from inside the subject building; and

**6.** Labels and notices on equipment or structures, provided the label or notice does not exceeding fifteen (15) square inches in area.

## Section 60.040. Sign regulations of general applicability.

**A. Applicability.** The regulations of this section apply to on-premise wall, projecting and freestanding signs and all off-premise outdoor advertising signs, except as otherwise expressly stated. These regulations are in addition to any other applicable regulations established in this chapter.

**B. Required setbacks, spacing and separations.**

**1.** All parts of a sign must be set back at least ten (10) feet of a freeway planned right-of-way.

**2.** All on-premise projecting signs, roof signs and freestanding signs and all off-premise outdoor advertising signs must be separated from all other roof signs, projecting signs, freestanding signs and off-premise outdoor advertising signs by a minimum distance of thirty (30) feet. Additional spacing requirements apply between off-premise outdoor advertising signs (See Subsection 60.080F.5.).

**3.** Signs that are visible from an R or AG-R district (other than street, highway or freeway right-of-way) or from a designated residential development area must be separated from the R or AG-R district or residential development area by a minimum distance of fifty (50) feet.

**4.** Signs with an area of more than three hundred (300) square feet that are visible from an R or AG-R district (other than street, highway or freeway right-of-way) or from a designated residential development area must be separated from the R or AG-R district or residential development area by a minimum distance of two hundred (200) feet.

**C. Mounting height of wall signs and projecting signs.** Wall signs and projecting signs must be mounted so that no portion of the sign extends above the top of the parapet or building wall to which they are attached, except in those cases where the height of the parapet or building wall or the presence of architectural features will not accommodate a wall or projecting sign that is at least three (3) feet in height. In such cases, the sign may extend above the parapet or building wall for a distance that will permit a sign with a height of up to three (3) feet.

**D. Dynamic displays.** Unless otherwise expressly stated, all signs that include a dynamic display are subject to the supplemental regulations of Section 60.100.

**E. Off-premise business signs.** Off-premise business signs may be approved for multi-tenant developments only when such developments are included in a mandatory development plan (See Section 70.040). The authority to approve off-premise business signs is intended to be used only when the location of the identified business or activity precludes placement of a sign that is visible to motorists and pedestrians along the highest (traffic) volume street that provides access to the subject development and when the result of the approval will be in keeping with the stated purposes of this chapter (Subsection 60.010A.). The intent of this off-premise business sign authorization is to provide flexibility in overcoming the locational and visibility challenges of lots within a mandatory development plan area, not to allow an overall increase in the amount of signage allowed or encourage a proliferation of signs within the area covered by the mandatory development plan. Any waiver, modification, or variance to the regulations of Subsection 60.040E. is considered a use variance and is thereby prohibited in accordance with Subsection 70.130B.1.

**F. Illumination.** Except for authorized dynamic displays, the illumination on the face of any sign where illumination is permitted must be by constant light and may not exceed seventy (70) foot-candles measured at a distance of two (2) feet from the face of the sign.

**G. Electronic message center signs.** Electronic message center signs shall be permitted in SR, MX, O, C, and I districts, and shall be subject to the regulations that apply to on-premise wall, projecting, and freestanding signs within the applicable zoning district, and the following supplemental regulations:

**1.** Electronic message center signs may not exceed the maximum sign area allowed for the respective sign type or the following maximum areas, whichever is less:

**a.** Thirty-two (32) square feet in SR and O districts; and

**b.** Forty-eight (48) square feet in MX, C, and I districts.

The sign area allowed for electronic message center signs is not in addition to the maximum sign area allowed for a wall, projecting or freestanding sign, but rather is counted as part of the maximum area of the wall, projecting or freestanding sign. The board of adjustment may approve a greater sign area for electronic message center signs in accordance with the special exception procedures of Section 70.120.

**2.** Display of messages shall remain static, without any animation or special effects, for a period of not less than five (5) minutes. The transition from one message to the next shall be direct and immediate, without any animation or special effects.

**3.** Electronic message center signs with an area exceeding the maximum allowable sign area in Subsection 60.040G.1. may not be located within fifty (50) feet of the driving surface of a signalized intersection, unless expressly approved by the board of adjustment as part of the special exception approval. This separation distance must be measured horizontally in a straight line from the nearest point of the sign structure to the nearest point of the street curb or edge of the traveled roadway marked or understood as such.

**4.** Electronic message center signs with a sign area exceeding the maximum allowable sign area in Subsection 60.040G.1. may not be located within two hundred (200) feet of an R or AG-R district (other than street, highway, or freeway right-of-way) or a residential development area, unless expressly approved by the board of adjustment as part of the special exception approval. This separation distance does not apply if the electronic message center sign is not visible from the referenced district, area or lot. Required separation distances must be measured horizontally in a straight line from the nearest point on a sign structure to the nearest point of an R or AG-R district or residential development area boundary.

**5.** Electronic message center signs are subject to the illumination standards established in Subsection 60.040-F.

*(Ord. No. 25512, § 1, 1-29-2025)*

## Section 60.050. Signs in R, AG, and AG-R zoning districts.

**A. Applicability.** The regulations of this section apply to signs in R, AG, and AG-R districts. See also the general regulations of Section 60.040.

**B. Signs allowed.** The following signs are allowed in R, AG, and AG-R districts in addition to any signs allowed pursuant to Section 60.030. On-premise roof signs, on-premise projecting signs and all off-premise outdoor advertising signs are prohibited in R, AG, and AG-R districts.

**1.** Apartment/Condo buildings and neighborhood and subdivision identification signs.

**a.** Lots occupied by one or more apartment/condo buildings are allowed a maximum of one freestanding sign per street frontage and a maximum of one wall sign per building wall. Wall signs may not exceed thirty-two (32) square feet in area.

**b.** Residential neighborhoods and residential subdivisions, including manufactured housing parks, are allowed a single freestanding sign at each street entrance to the neighborhood or subdivision.

**c.** The freestanding signs allowed by this section may not exceed thirty-two (32) square feet in area or 0.20 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed one hundred fifty (150) square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented. Maximum height may not exceed twenty (20) feet.

**2. Nonresidential uses.** The following regulations apply to all principal nonresidential uses in R, AG, and AG-R districts:

**a. Wall signs.** Nonresidential uses in R, AG, and AG-R districts are allowed a maximum of one wall sign per public building entrance. No individual wall sign may exceed thirty-two (32) square feet in area. In buildings with multiple public building entrances, the sign area of all wall signs may not exceed thirty-two (32) square feet in the aggregate.

**b. Freestanding Signs.** Nonresidential uses in R, AG, and AG-R districts are allowed a maximum of one freestanding sign per street frontage. Allowed freestanding signs are subject to a maximum height limit of twenty (20) feet and may not exceed thirty-two (32) square feet in area or 0.20 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed one hundred fifty (150) square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented.

**c. Dynamic displays.** Dynamic displays are prohibited in R, AG, and AG-R districts except that on a lot occupied by an allowed public, civic or institutional use, the board of adjustment is authorized to approve a special exception for the allowed wall sign or the allowed freestanding sign to include a dynamic display.

(1) The allowed dynamic display component may not exceed thirty-two (32) square feet in area, and no more than one (wall or freestanding) dynamic display is allowed per street frontage.

(2) The sign area allowed for a dynamic display is not in addition to the maximum sign area allowed for a wall or freestanding sign, but rather is counted as part of the maximum area of a wall or freestanding sign.

(3) Dynamic displays in R, AG, and AG-R districts may operate only between the hours of 7:00 a.m. and 9:00 p.m. unless otherwise expressly approved through the special exception process.

(4) Dynamic displays are subject to the dynamic display regulations of Section 60.100.

**Section 60.060. Signs in office zoning districts.**

**A. Applicability.** The regulations of this section apply to signs in all office zoning districts. See also the general regulations of Section 60.040.

**B. Signs allowed.**

**1.** In addition to any sign exceptions allowed pursuant to Section 60.030, and any development identification sign allowed pursuant to Section 60.060B.2., lots in office zoning districts are allowed a maximum of one on-premise sign per street frontage. The allowed on-premise sign may be a wall sign, a projecting sign or a freestanding sign. Roof signs and off-premise outdoor advertising signs are prohibited in office districts.

**2. Development identification signs.** Developments with multiple tenants are allowed a single monument style or freestanding sign with a maximum height of eight (8) feet at each street entrance to the development. Such signage shall count against the maximum sign area permitted on the lot in which it is located, and may not identify any tenant or tenants within the development.

**C. Maximum area.** Signs allowed in the OH district may not exceed forty-eight (48) square feet in area or 0.50 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may a sign in an OH district exceed two hundred twenty-five (225) square feet in area. Signs allowed in all other O districts may not exceed thirty-two (32) square feet in area or 0.30 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed one hundred fifty (150) square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented.

**D. Maximum height.** Freestanding signs in the OH district may not exceed thirty (30) feet in height. Freestanding signs in other O districts may not exceed twenty (20) feet in height or the height of the principal building on the lot, whichever is less.

**E. Dynamic displays.** Dynamic displays are prohibited in O districts except that on a lot occupied by an allowed public, civic or institutional use, either the allowed wall sign or the allowed freestanding sign may include a dynamic display.

**1.** The allowed dynamic display component may not exceed thirty-two (32) square feet in area, and no more than one (wall or freestanding) dynamic display is allowed per street frontage.

**2.** The sign area allowed for a dynamic display is not in addition to the maximum sign area allowed for a wall or freestanding sign, but rather is counted as part of the maximum area of a wall or freestanding sign.

**3.** Dynamic displays in O districts may operate only between the hours of 7:00 a.m. and 9:00 p.m.

**4.** Dynamic displays are subject to the dynamic display regulations of Section 60.100.

**Section 60.070 Signs in SR zoning districts.**

**A. Applicability.** The regulations of this section apply to signs in all SR zoning districts. See also the general regulations of Section 60.040.

**B. Signs allowed.**

**1. On-premise wall signs.** On-premise wall signs are allowed in SR zoning districts. Wall signs may not exceed an aggregate area of more than one square foot per linear foot of building wall to which they are attached. Wall signs are not counted against a lot's allowed sign budget, pursuant to Subsection 60.070C.

2. **On-premise projecting signs and freestanding signs.** On-premise projecting signs and freestanding signs are allowed in SR zoning districts. Projecting signs and freestanding signs are counted against a lot's allowed sign budget, pursuant to Subsection 60.070C. They are subject to the regulations of Subsection 60.070D.

3. **On-premise roof signs and off-premise outdoor advertising signs prohibited.** On-premise roof signs and off-premise outdoor advertising signs are prohibited in SR zoning districts.

4. **Development identification signs.** Developments with multiple tenants are allowed a single monument style or freestanding sign with a maximum height of eight (8) feet at each street entrance to the development. Such signage shall count against the maximum sign area permitted on the lot in which it is located, and may not identify any tenant or tenants within the development.

**C. Sign budget.**

1. **Applicability.** The sign budget provisions of this subsection govern the maximum aggregate number and combined area of all projecting and freestanding signs on a lot in an SR district, except as otherwise expressly stated.

2. **Maximum number.** In addition to any sign exceptions allowed pursuant to Section 60.030, lots in SR zoning districts are allowed a maximum of one projecting sign or freestanding sign per street frontage.

3. **Maximum area.** The maximum aggregate sign area of all projecting and freestanding signs allowed in SR zoning districts may not exceed 0.50 square feet of sign area per linear foot of street frontage or three hundred (300) square feet, whichever is less.

**D. Maximum height of projecting signs and freestanding signs.**

1. Projecting signs in SR districts may not exceed twenty (20) feet in height or the height of the principal building on the lot, whichever is less. In addition, projecting signs may not extend above the top of the parapet or building wall to which they are attached except in those cases where the height of the parapet or building wall, or the presence of architectural features will not accommodate a projecting sign that is at least three (3) feet in height, in which case the projecting sign may extend above the parapet or building wall for a distance that will permit a projecting sign with a height of three (3) feet.

2. Freestanding signs in the SR zoning district may not exceed thirty (30) feet in height.

**E. Dynamic displays.** Dynamic displays are prohibited in SR districts except that on a lot occupied by an allowed public, civic or institutional use, either the allowed wall sign or the allowed freestanding sign may include a dynamic display. The allowed dynamic display component may not exceed thirty-two (32) square feet in area, and no more than one (wall or freestanding) dynamic display is allowed per street frontage. The sign area allowed for a dynamic display is not in addition to the maximum sign area allowed for a wall or freestanding sign, but rather is counted as part of the maximum area of a wall or freestanding sign. Dynamic displays are subject to the dynamic display regulations of Section 60.100.

## Section 60.080. Signs in mixed-use, commercial and industrial zoning districts.

**A. Applicability.** The regulations of this section apply to signs in all mixed-use, commercial and industrial zoning districts. See also the general regulations of Section 60.040.

**B. Signs allowed.** In addition to any sign exceptions allowed pursuant to Section 60.030, the following signs are the only signs allowed in all mixed-use, commercial and industrial zoning districts:

1. **On-premise wall signs.** On-premise wall signs are allowed in all mixed-use, commercial and industrial zoning districts. Wall signs may not exceed an aggregate area of more than three (3) square feet per linear foot of building wall to which they are attached. Wall signs are not counted against a lot's allowed sign budget, pursuant to Subsection 60.080C.

2. **On-premise projecting signs.** On-premise projecting signs are allowed in all mixed-use, commercial and industrial zoning districts. Projecting signs are counted against a lot's allowed sign budget, pursuant to Subsection 60.080C. They are also subject to the regulations of Subsection 60.080D.

3. **On-premise freestanding signs.** Freestanding signs are allowed in all mixed-use, commercial and industrial zoning districts. Freestanding signs are counted against a lot's allowed sign budget, pursuant to Subsection 60.080C. They are also subject to the regulations of Subsection 60.080D.

4. **Off-premise outdoor advertising signs.** Off-premise outdoor advertising signs are subject to the regulations of Subsection 60.080F. Where allowed, off-premise outdoor advertising signs are counted against a lot's allowed sign budget, pursuant to Subsection 60.080C.

5. **Roof signs.**

   **a.** Roof signs are allowed only in the Central Business District (CBD) and the Route 66 Overlay, subject to the following provisions:

      (1) Roof signs may not include any dynamic display; and

      (2) Roof signs may not extend more than twenty-five (25) feet above the point where the sign is attached to the roof, measured in a vertical line from the horizontal plane of the lowest point where the sign is attached to the roof to the horizontal plane of the highest location on the sign's structure.

   **b.** Roof signs are counted against a lot's allowed sign budget, pursuant to Subsection 60.080C.

   **c.** Only major street frontage along that portion of the subject lot that is occupied by the business displaying the sign may be counted in determining the maximum sign area of a roof sign allowed under this section.

6. **Development identification signs.** Developments with multiple tenants are allowed a single monument style or freestanding sign with a maximum height of eight (8) feet at each street entrance to the development. Such signage shall count against the maximum sign area permitted on the lot in which it is located, and may not identify any tenant or tenants within the development.

## C. Sign budget.

1. **Applicability.** The sign budget provisions of this subsection govern the maximum aggregate number and combined area of all projecting, roof, freestanding, and off-premise outdoor advertising signs allowed on a lot in mixed-use, commercial and industrial zoning districts, except as otherwise expressly stated.

2. **Maximum number.**

   a. **Lots with frontage on only minor streets.** Lots with frontage on only minor streets are allowed a maximum of one roof, freestanding, or projecting sign per lot.

   b. **Lots with frontage on major streets.** The maximum aggregate number of roof, projecting, freestanding, and off-premise outdoor advertising signs allowed on lots with frontage on one or more major streets may not exceed the limits established in Table 60-2.

**Table 60-2: Maximum Aggregate Number of Signs**

| Zoning District | Maximum Aggregate Number of Signs Allowed |
|---|---|
| CG, CH, and CBD | 1 per 100 feet of major street frontage or fraction thereof |
| CO, CS, MX and IL | 1 per 150 feet of major street frontage or fraction thereof |
| IM and IH | 1 per 200 feet of major street frontage or fraction thereof |

3. **Maximum area.**

   a. **Lots with frontage on only minor streets.** Signs allowed on lots with frontage on only minor streets may not exceed thirty-two (32) square feet in area or 0.20 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed one hundred fifty (150) square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented.

   b. **Lots with frontage on major streets.**

      (1) The maximum aggregate sign area of all roof, projecting, freestanding, and off-premise outdoor advertising signs allowed on lots with frontage on one or more major streets may not exceed the limits established in Table 60-3:

**Table 60-3: Maximum Aggregate Sign Area**

| | Roof, Projecting, Freestanding, and Off-premise Outdoor Advertising Signs (sq. ft. per linear foot of major street frontage) | | | |
|---|---|---|---|---|
| | Not Within Freeway Sign Corridor[1] | | Within Freeway Sign Corridor | |
| Zoning District | If More than 1 Such Sign | If Only 1 Such Sign | If More than 1 Such Sign | If Only 1 Such Sign |
| MX, CO and CS | 1 | 2 | 1 | 2 |
| CG, CH, CBD, IL, IM and IH | 1 | 2 | 2 | 3 |

[1] Off-premise outdoor advertising signs are prohibited outside of freeway sign corridors and prohibited in MX districts.

      (2) In addition to the maximum aggregate sign area limits, individual roof, projecting, and freestanding signs may not exceed five hundred (500) square feet in area. Individual off-premise outdoor advertising signs may not exceed six hundred seventy-two (672) square feet in area.

**D. Maximum height of on-premise projecting and freestanding signs.**

1. **Lots with frontage on only minor streets.** On-premise projecting signs and freestanding signs on lots with frontage on only minor streets may not exceed twenty (20) feet in height or the height of the principal building on the lot, whichever is less.

2. **Lots with frontage on major streets.** On-premise projecting signs and freestanding signs on lots with frontage on major streets may not exceed twenty-five (25) feet in height, except that a maximum height of forty (40) feet is allowed if the sign is set back from the planned right-of-way line at least one foot for each foot of sign height in excess of twenty-five (25) feet. Projecting signs and freestanding signs may not exceed forty (40) feet in height unless the subject lot abuts a freeway, in which case the maximum allowed height is fifty (50) feet.

**E. Dynamic displays on on-premise wall, projecting and freestanding signs.** A maximum of one of the on-premise wall signs, projecting signs or freestanding signs allowed on a lot in a mixed-use, commercial or industrial zoning district may include a dynamic display. The dynamic display may not exceed the maximum sign area allowed for the respective sign type or forty-eight (48) square feet, whichever is less. The sign area allowed for a dynamic display is not in addition to the maximum sign area allowed for a wall, projecting or freestanding sign, but rather is counted as part of the maximum area of the wall, projecting or freestanding sign. Only one, contiguous dynamic display is allowed on a wall, projecting or freestanding sign face. Off-premise outdoor advertising signs that incorporate a dynamic display are subject to the dynamic display regulations of Section 60.100.

**F. Off-premise outdoor advertising signs.** Off-premise outdoor advertising signs are allowed only in compliance with regulations of this subsection (Subsection 60.080F.).

1. **Where allowed.** Off-premise outdoor advertising signs are a use allowed in commercial and industrial zoning districts but only when located in a freeway sign corridor. Off-premise outdoor advertising signs are a use allowed in corridor zoning districts when approved through the development plan approval process of Section 70.040 but may only be so approved when located in a freeway sign corridor. Off-premise outdoor advertising signs are prohibited in mixed-use zoning districts. Any waiver, modification, or variance to the regulations of Subsection 60.080F.1. is considered a use variance and is thereby prohibited in accordance with Subsection 70.130B.1.

2. **Maximum number and area.** The maximum number and area of allowed off-premise outdoor advertising signs is governed by the sign budget provisions of Subsection 60.080C.

3. **Maximum height.** Off-premise outdoor advertising signs may not exceed fifty (50) feet in height, except when the adjacent freeway is elevated ten (10) feet or more above grade in the location where the sign is to be located, in which case the off-premise outdoor advertising sign may not exceed sixty (60) feet in height or a maximum of twenty (20) feet in height above the centerline of the travel lanes of the freeway, whichever is greater.

4. **Orientation.** All off-premise outdoor advertising signs must be oriented to be primarily visible from the adjacent freeway.

5. **Required setbacks, spacing and separations.**
   a. All off-premise outdoor advertising signs must be separated by a minimum distance of one thousand two hundred (1,200) feet from any other off-premise outdoor advertising sign except when the subject signs are separated by and on opposite sides of the same freeway.
   b. Off-premise outdoor advertising signs must be separated by a minimum distance of one hundred fifty (150) feet from any public park.
   c. Off-premise outdoor advertising signs that are visible from an R or AG-R district (other than street, highway or freeway right-of-way) or from a designated residential development area must be separated from the R or AG-R district or residential development area by a minimum distance of one hundred fifty (150) feet if the sign does not exceed three hundred (300) square feet in area and by a distance of at least two hundred (200) feet if the sign is greater than three hundred (300) square feet in area.
   d. See Subsection 60.040B. for setback, spacing and separation regulations generally applicable to all signs.
6. **Number of sign faces.** Off-premise outdoor advertising signs may not have more than two (2) sign faces. See also Subsection 60.130A.3.
7. **Cutouts and extensions.** Cutouts or extensions are permitted and do not count in calculating the sign area of an off-premise outdoor advertising sign unless the cutouts or extensions exceed fifteen (15) percent of the sign face, in which case the cutout or extension area in excess of fifteen (15) percent of the sign face area does count.
8. **Posts and columns.** Off-premise outdoor advertising signs that are freestanding may not be supported by more than one post or column unless required by site engineering considerations, as certified by a registered professional engineer.
9. **Illumination.**
   a. Illumination on the face of any off-premise outdoor advertising sign may not exceed seventy (70) foot-candles.
   b. Any illumination must be by constant light unless otherwise expressly stated.
   c. No off-premise outdoor advertising sign may contain flashing, blinking or traveling lights or reflective glitter.
10. **Conversion.** A sign permitted as an off-premise outdoor advertising sign may not be converted to any other type of sign without first obtaining a permit. The reverse is also true.
11. **Dynamic displays.**
    a. Off-premise outdoor advertising signs that incorporate a dynamic display are subject to the dynamic display regulations of Section 60.100.
    b. No off-premise outdoor advertising sign with a dynamic display may be modified, extended, or enlarged until a permit has been issued for its installation and use as a dynamic display sign.
    c. The conversion of an off-premise outdoor advertising sign into an off-premise outdoor advertising sign with a dynamic display requires a permit as if it were an entirely new sign.

**d.** A nonconforming off-premise outdoor advertising sign may not be modified, changed or converted into a dynamic display off-premise outdoor advertising sign unless it complies with all requirements of this zoning code, and all setback, spacing and separation requirements have been verified.

*(Ord. No. 25604, §§ 12, 13, 6-18-2025)*

**Section 60.090. Signs in special districts.**

**A. AG and AG-R district.** See Section 60.050.

**B. PK district.** In addition to any sign exceptions allowed pursuant to Section 60.030, a maximum of one on-premise freestanding sign is allowed on a lot in a PK (Parking) zoning district. The freestanding sign may not exceed thirty-two (32) square feet in area or 0.20 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed one hundred fifty (150) square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented.

**C. CO district.** Signs in CO districts are subject to same regulations that apply in commercial and industrial zoning districts (see Section 60.080). They are subject to review as part of development plan approval process (see Section 70.040).

**D. IMX district.**

**1. Applicability.** The regulations of this section apply to signs in all IMX zoning districts. See also the general regulations of Section 60.040.

**2. Signs allowed.** In addition to any sign exceptions allowed pursuant to Section 60.030, the following signs are the only signs allowed in IMX zoning districts:

**a.** Directional and way-finding signs;

**b.** On-premise building signature signs;

**c.** On-premise wall signs;

**d.** On-premise projecting signs;

**e.** On-premise canopy signs;

**f.** On-premise marquee signs; and

**g.** On-premise, monument-style ground signs.

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3. **Directional and way-finding signs.** Directional and way-finding signs for business establishments located in the IMX district may be permitted by special exception within the lot containing the use. Such signs are subject to conditions (including but not limited to regulation of the location, number, sign area and height of such signs) established by the board of adjustment in approving the special exception.
4. **On-premise wall signs, projecting signs, canopy signs, and marquee signs.**
   a. **When allowed.** On-premise wall, projecting, canopy and marquee signs are permitted only for business establishments located within the ground-floor level, second-floor level, and third-floor level of a building.
   b. **Business establishments.** For purposes of administering interpreting and enforcing the IMX district sign regulations of this section, the term "business establishment" means a space within a building occupied for a use permitted by right or special exception in the IMX district, except for residential uses.
   c. **Maximum number.**
      (1) A maximum of three (3) such signs are permitted for each business establishment located within the ground-floor level of a building and having a façade that faces a street.
      (2) A maximum of two (2) such signs are permitted for each business establishment located within the second-floor level or third-floor level of a building and having a façade that faces a street.
      (3) One additional such sign is permitted for each business establishment located within the ground-floor level, second-floor level or third-floor level of a building and occupying a corner space that faces two (2) streets. Such additional sign must be oriented toward the additional street.
      (4) Only one of the allowed signs may be projecting along each street-facing façade of the subject business establishment.
      (5) If the subject business establishment is identified on a ground sign that is permitted for the building in which the business establishment is located, the number of wall, projecting, canopy and marquee signs otherwise permitted for the business establishment is reduced by one for each ground sign in which the business establishment is identified.
   d. **Maximum area.** No individual projecting sign may exceed twelve (12) square feet in area, and no other individual sign may exceed sixty (60) square feet in area, provided that the total area of all on-premise wall, projecting, canopy and marquee signs permitted for a business establishment may not exceed ten (10) percent of the area of the street-facing façade of the subject business establishment.
   e. **Location and height.** Permitted on-premise wall, projecting, canopy and marquee signs must be located directly above the independent entrance to the subject business establishment identified on the sign or directly above or adjacent to windows in the street-facing façade of the business establishment and within the area of the street-facing façade of the building establishment, provided, however:
      (1) No portion of a sign permitted for a ground-floor level business establishment may be located more than thirty-five (35) feet above the elevation of the nearest curb.

(2) No portion of a sign permitted for a second-level or third-level business establishment may be located more than fifty (50) feet above the elevation of the nearest curb.

(3) No portion of any sign may extend above the top of a parapet or building wall upon which it is located.

**5. Ground signs.**

**a. When allowed.** Ground signs are permitted only for business establishments within a building containing more than twenty-five thousand (25,000) square feet of floor area.

**b. Maximum number.** If the building for which a ground sign is permitted faces only one street, a maximum of one ground sign is permitted. If the building faces two (2) or more streets, a maximum of two (2) ground signs is permitted, provided that each sign is oriented toward a different street.

**c. Size and height.** Ground signs may not exceed eighteen (18) feet in length and two (2) feet in depth, measured from the outer edges of the ground sign, and five (5) feet in height measured from the lowest point of the elevation of the nearest curb to the highest point of the ground sign.

**6. Building signature signs.**

**a.** A building signature sign is a sign that identifies the owner of the building or a business establishment located in the building that occupies more than fifty (50) percent of the floor area of the subject building.

**b.** Building signature signs are permitted only on buildings four (4) or more stories in height, provided no part of such sign may extend above the top of the parapet or building wall upon which it is located.

**c.** Only one building signature sign is permitted per exterior building wall.

**d.** The sign area of a building signature sign may not exceed five (5) percent of the area of the wall to which it is affixed or three hundred (300) square feet, whichever is less.

**e.** All sides of the building that display a building signature sign must contain the exact copy that is displayed on any other side of the building that displays a building signature sign.

**7. Prohibited signs.** In addition to the signs prohibited by Section 60.020, the following signs are expressly prohibited in the IMX district:

**a.** Off-premise outdoor advertising signs;

**b.** Dynamic displays;

**c.** Inflatable signs; and

**d.** Roof signs.

**E. MPD district.** Except as otherwise expressly allowed as part of an approved MPD development plan:

**1.** Residential development areas are subject to the sign regulations that apply to R districts; and

**2.** Nonresidential development areas are subject to the sign regulations that apply to CS districts.

## Section 60.100. Dynamic displays.

The supplemental regulations of this section apply to all signs with dynamic displays. Except as otherwise expressly stated, these regulations apply whether incorporated into off-premise outdoor advertising signs or on-premise signs that are allowed to include a dynamic display.

**A.** The images and messages displayed on a dynamic display must have a minimum dwell time of at least eight (8) seconds and may not contain any movement, animation, audio, video, pyrotechnics or other special effects.

**B.** The transition or change from one message to another must occur in one second or less and involve no animation or special effects.

**C.** The images and messages displayed must be complete in and of themselves within the required dwell time.

**D.** Dynamic displays may not be located within fifty (50) feet of the driving surface of a signalized intersection, measured horizontally in a straight line from the nearest point of the sign structure to the nearest point of the intersection.

**E.** Dynamic displays may not be located within or within twenty (20) feet of the driving surface of a street, measured horizontally in a straight line from the nearest point of the sign structure to the nearest point of the street curb or edge of the traveled roadway marked or understood as such.

**F.** Dynamic displays may not be located within two hundred (200) feet of any of the following: (1) an R or AG-R district (other than street, highway or freeway right-of-way); (2) a residential development area. This separation distance does not apply if the dynamic display is not visible from the referenced district, area or lot, and the requirements may be modified in R, AG, and AG-R districts if approved through the special exception process. Required separation distances must be measured horizontally in a straight line from the nearest point on a sign structure to the nearest point of an R or AG-R district or residential development area boundary.

**G.** Dynamic displays must be equipped with a default mechanism that freezes the display in one position or presents a static or blank display if a malfunction occurs.

**H.** Dynamic displays must be equipped with a light detector/photocell that automatically adjusts the display's brightness according to natural ambient light conditions.

**I.** The maximum brightness level of a dynamic display may not exceed six thousand five hundred (6,500) nits (candelas per square meter) during daylight hours or five hundred (500) nits between thirty (30) minutes after sunset and thirty (30) minutes before sunrise, as those times are determined by the National Weather Service (Actual Time). Brightness must be measured from the brightest element of the sign's face.

**J.** Any off-premise outdoor advertising sign that includes a dynamic display that was lawfully established before January 1, 2010, must be separated by a minimum distance of one thousand two hundred (1,200) feet from any other off-premise outdoor advertising sign that includes a dynamic display. This spacing limitation does not apply between signs separated by a freeway. The one thousand two hundred (1,200) foot distance must be measured in a straight line from the center of the subject sign structures, as located on the ground.

**K.** Except as provided in Subsection 60.100J., any off-premise outdoor advertising sign that includes a dynamic display and that was approved by a permit issued on or after January 1, 2009, must be separated by a minimum distance of one thousand two hundred (1,200) feet from any other off-premise outdoor advertising sign that includes a dynamic display facing the same traveled way. The one thousand two hundred (1,200) foot distance must be measured in a straight line from the center of the subject sign structures, as located on the ground.

*(Ord. No. 24725, §§ 20, 21, 11-17-2021)*

## Section 60.110. Administration.

**A.** Any person proposing to erect any sign requiring a sign permit must submit a sign permit application to the development administrator. Applications for such permit must be accompanied by detailed plans, including scaled drawings of the proposed sign, a detailed site plan and other information deemed necessary by the development administrator to determine compliance with applicable regulations.

**B.** Sign permit fees must be paid prior to the issuance of a sign permit.

**C.** If the work associated with a sign permit has not been completed within one hundred eighty (180) days of the date of the issuance of the permit, such permit will lapse and become null and void.

## Section 60.120. Nonconforming signs.

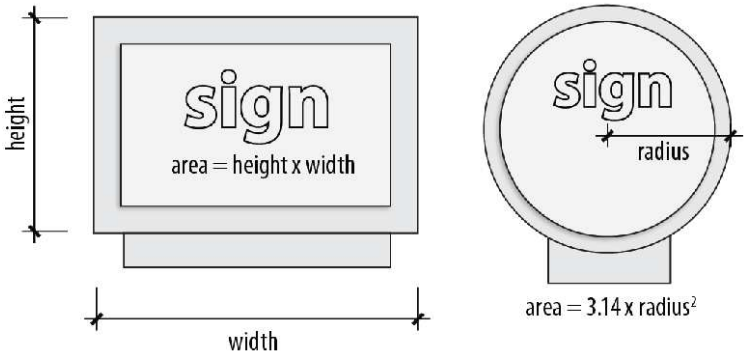
See Section 80.060.

## Section 60.130. Rules of measurement.

### A. Sign area.

**1. Signs enclosed in frames or cabinets.** The area of a sign enclosed in a frame or cabinet is determined based on the outer dimensions of the frame or cabinet surrounding the sign face (see Figure 60-2).

**Figure 60-2: Sign Area Measurement (Signs in Cabinets or Frames)**



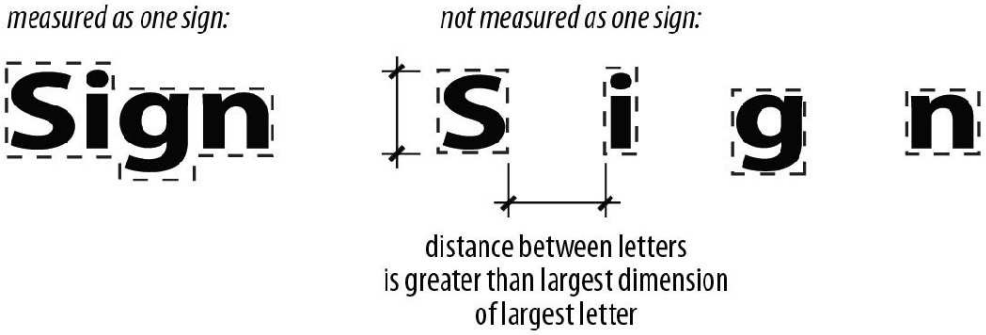
**2. Channel (individual) letter signs.**

**a.** The area of a sign comprised of individual letters or elements attached to a building wall is determined by calculating the area of the smallest geometric figure (e.g. square, rectangle, circle, polygon, etc.) that can be drawn around the letters and/or elements (see Figure 60-3).

**b.** Signs consisting of individual letters and/or elements will be measured as one sign when the distance between the letters and/or elements is less than the largest dimension of the largest sign letter (see Figure 60-4).

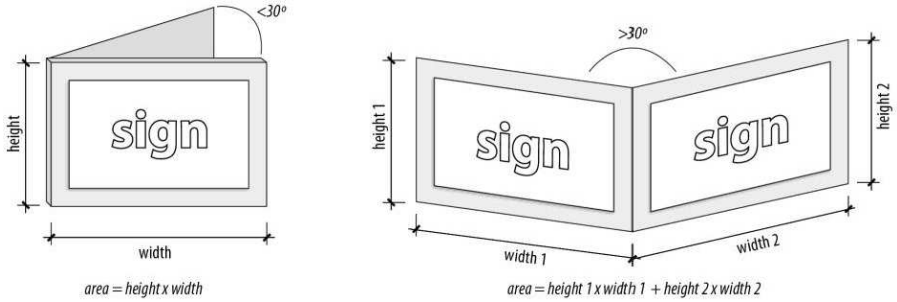
**Figure 60-3: Sign Area Measurement (Individual Letter Signs)**

**Figure 60-4: Sign Area Measurement (Single vs. Multiple Signs)**



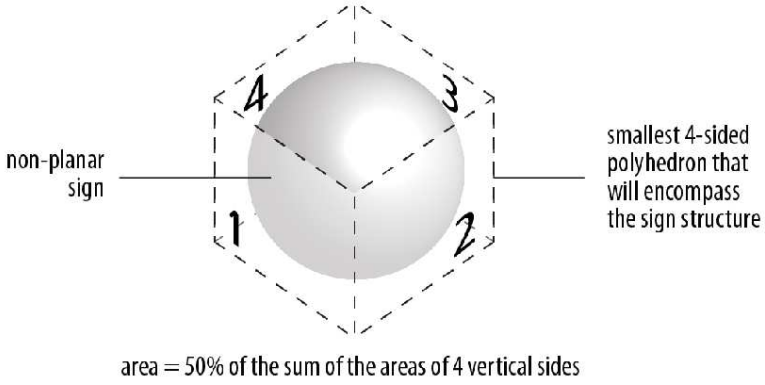

**3. Multi-sided signs.** Unless otherwise expressly stated, when the sign faces of a multi-sided sign are parallel or within thirty (30) degrees of parallel, only one side is counted for the purpose of determining the area and number of signs. If the sign faces are not parallel or within thirty (30) degrees of parallel, all sign faces are counted (see Figure 60-5).

**Figure 60-5: Multi-Sided Signs**



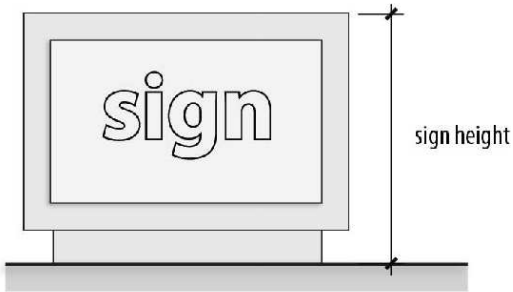

4. **Non-planar signs.** Spherical, free-form, sculptural or other non-planar sign area is measured as fifty (50) percent of the sum of the areas using only the four (4) vertical sides of the smallest four-sided polyhedron that will encompass the sign structure. Signs with greater than four (4) polyhedron faces are prohibited.

**Figure 60-6: Non-Planar Sign Measurement**




**B. Sign height.** The height of a sign is measured as the vertical distance from curb level to the highest point of the sign.

**Figure 60-7: Sign Height Measurement**



**C. Setback, spacing and separation distances.**

**1.** Required setback, spacing and separation distances between signs must be measured in a straight line from the nearest points on the respective sign structures. Required separation distances between signs and zoning districts, area or lots must be measured in a straight line from the nearest point on the sign structure to the nearest point of the subject district, area or lot.

**2.** The required separation distance between off-premise outdoor advertising signs must be measured in a straight line from the center of the respective off-premise outdoor advertising sign structures, as located on the ground.

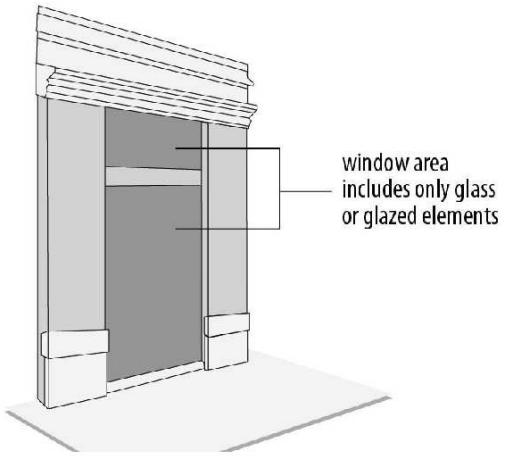
**D. Illumination and luminance.**

**1. Foot-candles.** Sign illumination in foot-candles is measured two (2) feet from the sign face.

**2. Nits.** For the purpose of verifying compliance with maximum brightness level limits expressed in "nits," brightness levels must be measured with the dynamic display set to run full white copy with a luminance meter positioned at a location perpendicular to the sign face center. When taking the luminance reading, the sign face must be the only subject visible in the viewfinder.

**E. Window area.** The area of a window includes only the glass or glazed elements of the window. Frames, mullions and similar features are not counted as part of the window area (see Figure 60-8).

**Figure 60-8: Measurement of Window Area**



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# CHAPTER 65. LANDSCAPING AND SCREENING

Section 65.010. Purposes.
Section 65.020. Principles.
Section 65.030. Applicability.
Section 65.040. Street trees.
Section 65.050. Interior parking lot landscaping.
Section 65.060. Vehicular use area buffers.
Section 65.070. Screening.
Section 65.080. Landscape and screening material.
Section 65.090. Landscape installation, irrigation and maintenance.
Section 65.100. Landscape plans.

## Section 65.010. Purposes.

**A. Landscaping and screening.** The landscaping and screening regulations of this chapter establish minimum requirements for landscaping and screening. The regulations are intended to advance the general purposes of this zoning code and to help:

**1.** Maintain and enhance the city's appearance;

**2.** Mitigate possible adverse impacts of higher intensity land uses abutting lower intensity land uses;

**3.** Reduce the impacts of noise and glare;

**4.** Maintain and improve air quality;

**5.** Protect surface water quality and reduce the negative impacts of stormwater runoff by reducing impervious surface area and providing vegetated areas that filter and retain greater amounts of stormwater on site;

**6.** Moderate heat by providing shade;

**7.** Encourage wise use of water resources;

**8.** Encourage preservation and replacement of existing trees and landscaping; and

**9.** Encourage greater use of low-impact development practices.

## Section 65.020. Principles.

The regulations of this chapter will be interpreted, administered and enforced in accordance with the following general principles:

**A.** Preservation of existing, healthy trees and shrubs is a top priority and is strongly encouraged.

**B.** Trees, shrubs, groundcover and turf must be the primary sources of landscaping and must be installed and maintained to reduce stormwater runoff and ensure safe visibility at intersections and points of vehicular access.

**C.** The design of landscape areas to promote low-impact development practices (e.g., bioretention basins, rain gardens, filter strips, and grassed swales) is strongly encouraged and may be used to satisfy the landscaping regulations of this zoning code, subject to compliance with all applicable standards of the Stormwater Management Criteria Manual.

**D.** The alternative compliance provisions of Subsection 65.100D. are intended to accommodate creativity in landscape and screening design and address site-specific barriers that prevent strict compliance with the regulations of this chapter.

### Section 65.030. Applicability.

The landscaping and screening regulations of this chapter apply as set forth in the individual sections of this chapter. The following are expressly exempt from the landscaping and screening regulations of this chapter:

**A.** Agricultural uses;

**B.** Public parks and open spaces;

**C.** Household living uses consisting of a single household on one lot or two households on one lot (existing or proposed); and

**D.** Reconstruction of any building that is damaged or destroyed by tornadoes, straight-line winds, ice storms, accidental fire, floods, hail, lightning, or other forces beyond the reasonable control of the property owner.

### Section 65.040. Street trees.

**A. Purpose.** Street trees help maintain and enhance the appearance of the city, contribute to pedestrian safety and comfort and offer environmental benefits by allowing the infiltration of stormwater, reducing urban heating and improving air quality.

**B. Applicability.** The street tree planting requirements of this section apply to all the following, except as otherwise expressly stated:

**1.** Construction of any principal building or non-accessory parking;

**2.** Any addition to or enlargement of an existing principal building when the addition or enlargement exceeds twenty (20) percent of the building's existing floor area; and

**3.** Any increase in impervious coverage on the subject lot that exceeds twenty (20) percent of the lot's existing impervious coverage.

**C. Requirements.**

**1. Number.** At least one large tree is required per thirty (30) feet of street frontage. If large trees are not appropriate due to the presence of overhead lines, other obstructions or site visibility considerations, as determined by the land use administrator, at least one small tree is required per twenty-five (25) feet of street frontage. Street tree requirements may be satisfied by the installation of new trees or by the preservation of existing trees (see Subsection 65.080B.4. to determine available incentives for preservation of existing trees). The tree list prepared by the planning director (see Subsection 65.080A.2.) identifies and classifies street trees by size.

**2. Location.**

**a.** Required street trees must be located on the subject property within twenty (20) feet of the planned street right-of-way unless the land use administrator determines that the presence of buildings or obstructions or other factors prevent viable tree planting within this area, in which case required street

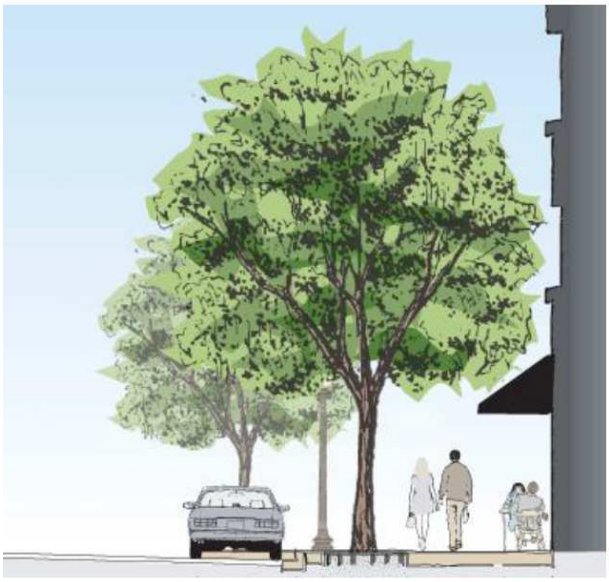
trees must be installed in the first seven (7) feet of the planned street right-of-way, as measured from the outer edge of the right-of-way. Street tree planting in the right-of-way must comply with the regulations of Title 35, Chapter 6 of the Tulsa Revised Ordinances.

**b.** The land use administrator is expressly authorized to approve an alternative compliance landscape plan for installation of street trees in alternative locations when circumstances prevent tree planting within the areas described in Subsection 65.040C.2.a. or when compliance with Subsection 65.040C.2.a. would result in a poor growing environment for the tree or damage to public or private improvements.

**3. Spacing.** Street trees are not required to be evenly spaced, but the distance between street trees may not exceed seventy-five (75) feet.

**4. Materials, installation and maintenance.** See Section 65.080 and Section 65.090.

**Figure 65-1: Street Tree**



## Section 65.050. Interior parking lot landscaping.

**A. Purpose.** The interior parking lot landscaping regulations of this section are intended to help mitigate the visual and stormwater runoff impacts of parking lots and provide shade for parked vehicles and pedestrians.

**B. Applicability.** Unless otherwise expressly stated, the interior parking lot landscaping regulations of this section apply to all the following:

**1.** The construction of any new principal building or addition to a principal building that increases the floor area of principal buildings on the subject lot by more than twenty (20) percent;

**2.** The construction or installation of any new parking lot containing ten (10) or more parking spaces; and

**3.** The expansion of any existing parking lot that increases the number of parking spaces or amount of paved area by more than thirty-three (33) percent.

**C. Exception.** Parking areas used solely for the display of motor vehicles for sale, lease or rental are exempt from the interior parking lot landscaping requirements of this section.

**D. Requirements.**

**1. Landscape area.**

**a.** At least thirty-five (35) square feet of interior parking lot landscape area must be provided for each parking space. If compliance with this regulation would result in the loss of required parking spaces, the amount of parking required is automatically reduced by the amount needed to accommodate the required interior parking lot landscape area.

**b.** When at least fifty (50) percent of interior parking lot landscape area consists of depressed bioretention areas used for stormwater management, the minimum interior parking lot landscape area requirement is reduced from thirty-five (35) square feet per parking space to twenty-eight (28) feet per parking space. To receive this bioretention credit, the stormwater harvesting area must be at least six (6) inches and not more than eighteen (18) inches in depth and planted with vegetation that can withstand periodic inundation.

**2. Trees and plant material.** Required interior parking lot landscape areas must include at least one large tree per ten (10) parking spaces. Small trees may be substituted for large trees if the land use administrator determines that the presence of overhead lines or other obstructions make the installation of large trees unsafe or impractical or would result in poor growing conditions. Minimum tree planting requirements may be satisfied by the installation of new trees or by the preservation of existing trees (see Subsection 65.080B.4. to determine available incentives for preservation of existing trees).

**3. Location and design.**

**a.** Interior parking lot landscaping must be reasonably distributed throughout the parking lot and provided in landscape islands or medians that comply with all the following requirements:

(1) They must be bordered by a paved surface on at least two (2) sides;

(2) They must be at least seven (7) feet wide, as measured from the back of the curb;

(3) They must include at least one tree per island and be covered with ground cover plants or mulch;

(4) They must be protected by curbs or other barriers, which may include breaks or inlets to allow stormwater runoff to enter the landscape island; and

(5) They must be located so that every parking space is within one hundred (100) feet of a tree.

**b.** Parking rows that end abutting a paved driving surface must have a landscape terminal island (end cap) at that end of the parking row. All other parking lot

landscape islands must be located to comply with all applicable regulations of this section. The regulations of Subsection 65.050D.3.a. apply to the landscape terminal island.

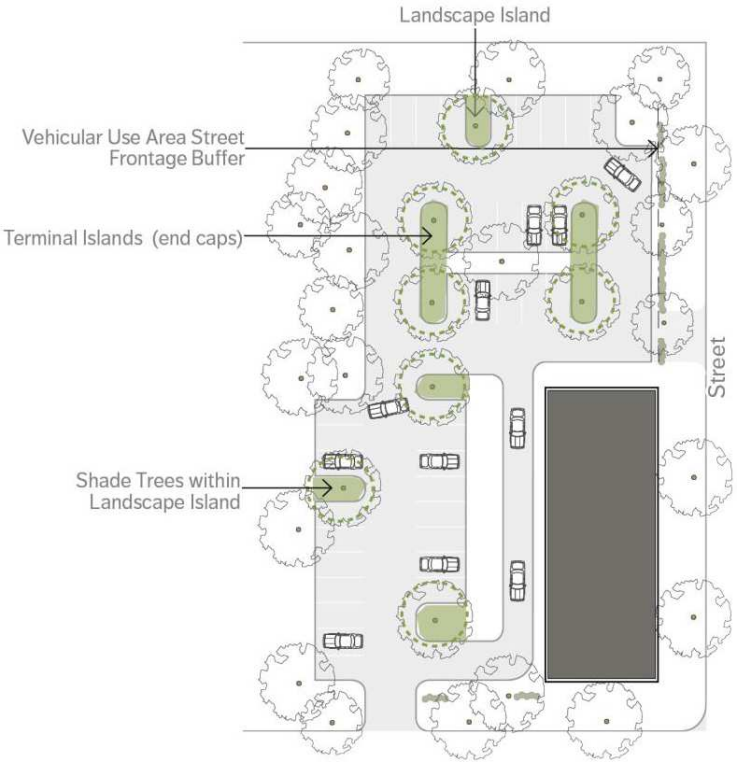
**c.** The land use administrator is expressly authorized to approve landscape plans that do not provide terminal islands at the end of each parking row or that otherwise provide for reduced dispersal of interior parking lot landscape areas when proposed landscape planting areas are combined to form functional bioretention areas or to preserve existing trees and vegetation.

**4. Vehicle overhangs.** A portion of a motor vehicle parking space may be landscaped instead of paved to meet interior parking lot landscaping requirements. The landscaped area may be up to two and one-half (2.5) feet of the front of the space, as measured from a line parallel to the direction of the bumper of the vehicle using the space. Groundcover plants or mulch must be provided in the allowed overhang area.

**5. Relationship to vehicular use area buffer regulations.** Landscape areas and plant material provided to satisfy the vehicular use area buffer regulations of Section 65.060 may not be counted toward satisfying the interior parking lot landscaping regulations of this section (Section 65.050).

**6. Materials, installation and maintenance.** See Section 65.080 and Section 65.090.

**Figure 65-2: Interior Parking Lot Landscaping**



## Section 65.060. Vehicular use area buffers.

**A. Purpose.** The vehicular use area buffer regulations of this section are intended to help mitigate the visual and operational impacts of parking lots and other vehicular use areas when such areas are adjacent to streets, highways, residential zoning districts, or agricultural-residential zoning districts.

**B. Applicability.** A "vehicular use area" is an area on a lot that is not contained within a garage or similar enclosed or partially enclosed structure that is designed and intended for use by motor vehicles, including parking lots, vehicle storage and display areas, loading areas; and driveways and drive-through lanes. Unless otherwise expressly stated, the vehicular use area buffer regulations of this section apply to all the following:

**1.** The construction or installation of any new vehicular use area with a contiguous paved area of three thousand five hundred (3,500) square feet or more; and

**2.** The expansion of any existing vehicular use area that results in the addition of three thousand five hundred (3,500) square feet of paved area, in which case the vehicular use area perimeter landscaping requirements of this section apply only to the expanded area.

**C. Requirements.**

**1. Street frontage buffers.**

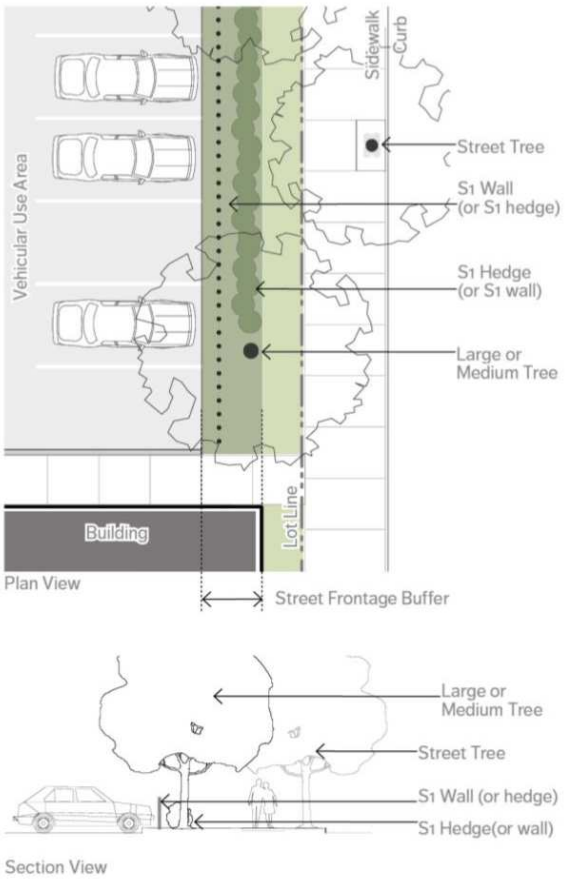
**a.** When a vehicular use area is located adjacent to a street or highway right-of-way, street frontage buffers must be provided in accordance with this subsection to physically and visually buffer the vehicular use area from the right-of-way.

**b.** Street frontage buffers are required only when the vehicular use area is located within one hundred (100) feet of the right-of-way and there are no intervening buildings between the vehicular use area and the right-of-way.

**c.** Except as expressly stated for vehicular use areas in the CBD zoning district (see Subsection 65.060C.1.d.), street frontage buffer areas must be at least seven (7) feet in width and include an S1 screen, in accordance with Subsection 65.070C.1.

**d.** In the CBD zoning district, required street frontage buffers must be at least three (3) feet in width and include an S1 screen, in accordance with Subsection 65.070C.1.

**Figure 65-3: Street Frontage Buffer**




**e.** Groundcover plants must be provided in all street frontage buffer areas not covered by fences or walls.

**f.** The vehicle overhang allowance of Subsection 65.050D.4. applies to parking spaces abutting street frontage buffers.

**2. R or AG-R District Buffers**

**a.** When a vehicular use area is located on a lot abutting an R- or AG-R-zoned lot, an R or AG-R district buffer must be provided in the form of an F1 screen, in accordance with Subsection 65.070-C2.

**b.** R or AG-R district buffers are required only when the vehicular use area is located within 100 feet of an abutting R- or AG-R-zoned lot and there are no buildings between the vehicular use area and the abutting R- or AG-R-zoned lot.

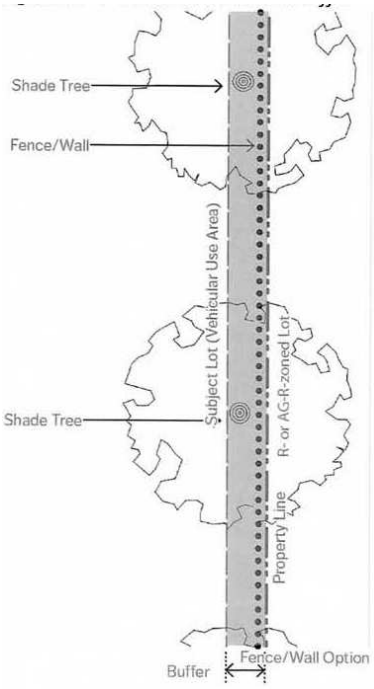
**c.** Groundcover plants must be provided in all R or AG-R district buffer areas that are not covered by fences or walls.

**d.** The vehicle overhang allowance described in Subsection 65.050-D4 applies to parking spaces abutting R or AG-R district buffers.

**3. Materials, installation and maintenance.** See Section 65.080 and Section 65.090.

*(Ord. No. 24382, §§ 5—8, 6-10-2020)*

**Figure 65-4: R and AG-R District Buffer**




## Section 65.070. Screening.

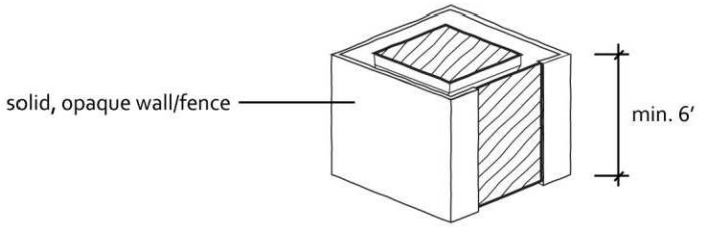
**A. Purpose.** Screening requirements are intended to partially or completely shield expressly identified uses and site features from view of abutting streets or other abutting lots.

**B. Features required to be screened.**

**1. General.** This subsection establishes screening requirements for several common site features that require visual separation from streets and abutting lots. Other uses, districts, structures and activity areas may also require screening in accordance with other provisions of this zoning code.

**2. Dumpsters.** All dumpsters must be screened from view of all street rights-of-way and R-zoned property, and AG-R zoned property. Screening of dumpsters located in alley rights-of-way is not required. Dumpsters may be screened from view by a principal structure or by an F1 screening fence or wall in accordance with Subsection 65.070C.2. When an F1 screening fence or wall encloses a dumpster on four (4) sides, one side of the storage area must be furnished with an opaque, lockable gate kept closed at all times except during waste deposit or collection. The gate must be located and constructed to allow for unobstructed access to each dumpster during collection.

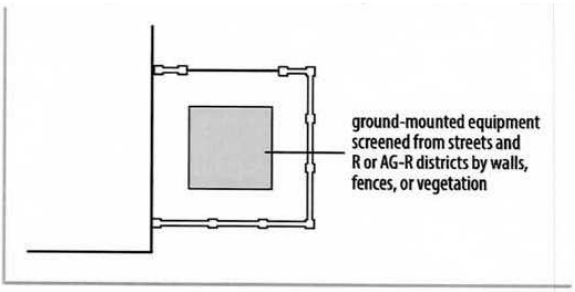
**Figure 65-5: Dumpster Screening**




**3. Mechanical Equipment.**

**a. Ground-mounted equipment.** Mechanical equipment located at ground level, such as heating or cooling equipment, pumps, or generators must be screened from view of the street and any abutting R or AG-R districts by walls, fences or vegetation. Screening must be at least as tall as the tallest part of the equipment required to be screened

**Figure 65-6: Screening of Ground-mounted Equipment**



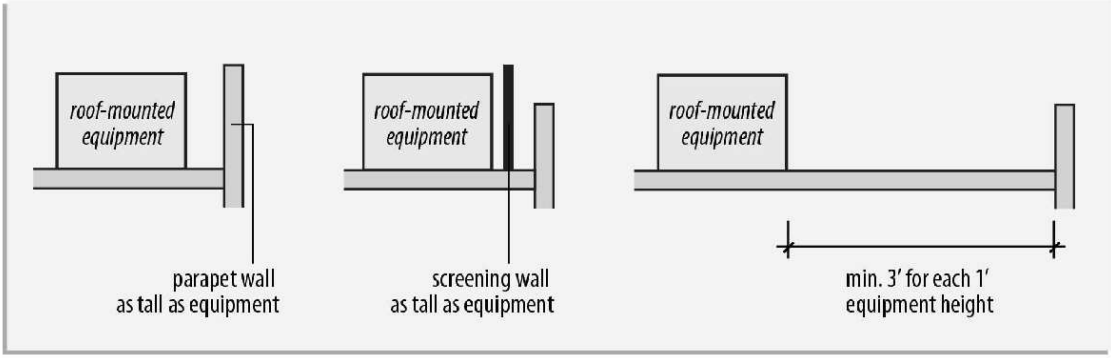

**b. Roof-mounted equipment.** Mechanical equipment placed on roofs must be screened in one of the following ways, if the equipment is within 50 feet of an R or AG-R zoning district:

(1) A parapet along facades facing the R or AG-R district that is as least as tall as the tallest part of the equipment;

(2) A screening fence or wall around the equipment that is as least as tall as the tallest part of the equipment required to be screened; or

(3) An equipment setback from roof edges facing the R or AG-R district by at least 3 feet for each one foot of equipment height.

**Figure 65-7: Screening of Roof-mounted Equipment**




## C. Type of screens.

### 1. S1, low-profile screen.

**a. Purpose.** The S1, low-profile screen is intended to help soften visual impacts of certain site features and provide an "urban edge" along lot borders and other site features, while maintaining some visibility of the areas required to be screened.

**b. Design.** The S1 screen requires shrubs planted to form a continuous visual barrier (hedge) at least three (3) feet in height. A screening wall with a minimum height of two and one-half (2.5) feet and a maximum height of three (3) feet may be substituted for the shrubs. Walls used to satisfy S1 screening requirements must be constructed of brick, stone, cast stone, formed concrete or similar durable, low-maintenance materials.

### 2. F1, screening fence or wall.

**a. Purpose.** An F1 screening fence or wall is required in those instances where a complete visual barrier is needed.

**b. Options.** F1 screening requirements may be met by either of the following options:

(1) The installation of an opaque fence at least six (6) feet in height and at least one tree per twenty-five (25) linear feet of fence; or

(2) The installation of a masonry wall with a minimum height of six (6) feet.

**c. Street setback.** When located in the required street setback, required F1 screening fences and walls may not exceed four (4) feet in height.

### 3. Materials, installation and maintenance.

See Section 65.080 and Section 65.090. Any tree planting requirements associated with F1 screens may be satisfied by the installation of new trees or by the preservation of existing trees (see Subsection 65.080B.4. to determine available incentives for preservation of existing trees).

**4. Modification of requirements.**

**a.** Applicable screening requirements may be waived or modified through the alternative compliance approval process (see Subsection 65.100D.) or through the special exception approval process when:

(1) Existing features provide a visual screen equivalent to the screening requirements of this section;

(2) The screening requirements cannot be achieved; or

(3) The screening is prohibited by other ordinances or regulations.

**b.** An extension of time to install required screening may be approved through the special exception approval process when the properties benefited by the screening are undeveloped.

**5. Screening or setbacks triggered by proximity to nonresidential areas/ features.** When a screening wall or fence or setback is required by this zoning code because a use abuts one or more R or AG-R districts, such wall, fence, or setback is not required if the actual use of the abutting R or AG-R district is a freeway, expressway, turnpike, nonresidential use; or a nonresidential development area. This exemption from screening does not apply to junk or salvage yards.

*(Ord. No. 24279, §§ 4, 5, 12-11-2019; Ord. No. 24382, §§ 9—12, 6-10-2020)*

## Section 65.080. Landscape and screening material.

### A. General.

**1. Applicability.** The regulations of this section apply to all trees, plant materials, and other features used to satisfy the landscaping and screening requirements of this zoning code.

**2. Tree list.** The planning director must annually prepare a list of recommended and prohibited tree species for use in administering and enforcing the regulations of this chapter.

**3. Selection.** Trees and plants used to satisfy the requirements of this zoning code must:

**a.** Meet or exceed the plant quality standards established in the latest edition of the American Standard for Nursery Stock (ANSI Z60.1);

**b.** Be native to North America or adapted for growing conditions in the Tulsa area, as determined by the land use administrator; and

**c.** Not be artificial plants or plants listed as prohibited species on the recommended and prohibited tree list.

**4. Planting areas.** All planting areas must have amended soil to help ensure the health of newly installed plant material.

### B. Trees.

**1. Types.** Unless otherwise expressly approved by the land use administrator, trees used to satisfy the tree planting requirements of this chapter must be selected from the recommended tree list (see also Subsection 65.080A.2.).

**2. Size.**

**a. New trees.** New or transplanted trees provided to satisfy the requirements of this zoning code must comply with the following minimum size requirements:

(1) Large trees must be deciduous, with a minimum caliper size of two (2) inches and a minimum height of twelve (12) feet at the time of installation.

(2) Medium trees must have a minimum caliper size of two (2) inches and a minimum height of eight (8) feet at the time of installation.

(3) Small trees must have a minimum caliper size of one and one-half (1.5) inches and a minimum height of six (6) feet at the time of installation.

(4) Evergreen trees must have a minimum height of six (6) feet at the time of installation.

**b. Overhead lines.** Trees to be installed below overhead lines must be selected from the list of small trees specified on the recommended and prohibited tree list or be otherwise expressly approved by the land use administrator.

**3. Species.** If more than ten (10) trees are required, no more than forty (40) percent may be of a single species. If more than twenty-five (25) trees are required, no more than twenty-five (25) percent may be of a single species. This requirement applies to trees being planted, not to existing trees.

**4. Existing (preserved) trees.**

**a.** Preserved trees will be credited toward satisfying the tree planting requirements of this zoning code in accordance with the regulations of this subsection (Subsection 65.080B.4.).

**b.** Credit will be given on the following basis:

(1) Preserved trees up to six (6) inches in diameter at breast height (DBH) will be credited as three (3) trees;

(2) Preserved trees larger than six (6) inches DBH, up to twelve (12) inches DBH will be credited as four (4) trees;

(3) Preserved trees that are more than twelve (12) inches DBH up to twenty-four (24) inches DBH will be credited as five (5) trees; and

(4) Preserved trees that are more than twenty-four (24) inches DBH will be credited at a ratio of ten (10) trees.

**c.** The tree preservation incentive credits provided in this subsection (Subsection 65.080B.4.) may not be used to reduce the number of trees required by this chapter by more than fifty (50) percent.

**d.** To receive tree preservation credit, the following additional conditions must be met:

(1) Preserved trees for which credit is given must be in good health and condition and may not be prohibited species;

(2) The original grade of the dripline area of a preserved tree may not be changed; and

(3) Tree protection fencing must be installed around the outer limits of the dripline area and remain in place from commencement of construction activity until all exterior work is complete. Tree protection fencing must

consist of orange vinyl construction fencing, chain link fencing, snow fencing or other similar fencing at least forty-two (42) inches in height and supported at no more than ten-foot intervals by posts or stakes to keep the fence upright and in place. A visible warning/no-disturb sign must be affixed to fence at one hundred-foot intervals.

**e.** The land use administrator is expressly authorized to reduce off-street parking requirements to allow for the preservation of existing trees.

**f.** If healthy, preserved trees are removed, they must be replaced by the number trees for which credit was given.

**g.** If preserved trees die or are lost to storms or natural causes within one year of the date of approval of the landscape plan, they must be replaced by the number trees for which credit was given. If preserved trees die or are lost to storms or natural causes beyond one year of the date of approval of the landscape plan, they must be replaced by an equal number of trees (1:1 basis).

**C. Shrubs.**

**1. New shrubs.**

**a.** Deciduous shrubs must have a minimum container size of five (5) gallons.

**b.** Evergreen shrubs must have a minimum container size of five (5) gallons.

**c.** Shrubs may also be balled and burlapped.

**d.** If more than seventy-five (75) shrubs are required, no more than forty (40) percent may be of a single species.

**2. Existing (preserved) shrubs.** Existing shrubs may be used to satisfy the landscaping and screening requirements of this zoning code if protected and maintained during site development and construction phases of work and if such plants are not otherwise prohibited.

**D. Ground cover.**

**1.** All required landscape areas that are not planted with trees or shrubs must be covered with ground cover plants, which may include turf. Mulch must be confined to areas underneath trees and shrubs and is not an allowed substitute for ground cover.

**2.** Ground cover plants other than turf must be minimum four-inch pot or plug size. Areas planted in ground cover other than turf must be planted at distances appropriate for the species and at a density that will achieve complete coverage after the second full growing season.

**E. Mulch.** All required trees and shrubs must be located within a mulched area and be separated from turf by a minimum distance of two (2) feet (four-foot diameter mulched area). Mulch must be applied to provide a two-inch (minimum) to four-inch (maximum) soil cover, with no weed barrier material visible.

**F. Fences and walls.** Unless otherwise expressly stated, fences and walls provided to meet the regulations of this chapter are subject to the regulations of this subsection.

**1.** Fences must durable and constructed with materials that are customarily used for fences, including wood, decorative rigid vinyl (polyvinyl chloride), metal or wrought iron. Fence posts must be structurally stable.

**2.** The finished side of all fences other than tree protection fences must face the adjacent property or street. Chain-link fencing may not be used to satisfy the regulations of this chapter.

**3.** Walls, raised planting beds and planters must be constructed of brick, stone or other durable masonry material approved by the land use administrator.

*(Ord. No. 24382, §§ 13, 14, 6-10-2020; Ord. No. 24725, § 22, 11-17-2021)*

## Section 65.090. Landscape installation, irrigation and maintenance.

**A. Installation.**

**1.** Required landscaping must be installed in accordance with an approved landscape plan.

**2.** All trees and plant material must be installed in accordance with sound nursery practices, in a manner designed to encourage vigorous growth.

**3.** All newly installed trees must be staked.

**4.** Trees and plant material suitable for planting must be balled and burlapped or container grown. Planting areas should be at least twice the diameter of the root system or the container.

**5.** All landscaped areas that are adjacent to pavement must be protected with curbs or equivalent barriers. Flush curbs, curb cuts, or other methods must be used to direct stormwater to landscape areas that abut paved areas.

**6.** Landscaping may not obstruct traffic visibility at street intersections or driveways and must comply with the intersection sight distance regulations of Title 24 (§103.A) of the Tulsa Revised Ordinances as well as AASHTO (American Association of State Highway and Transportation Officials) guidelines.

**7.** The city is not liable for any damage to above-ground or below-ground improvements or landscaping within the public right-of-way, even when such damage or destruction is the direct result of government action. When landscaping is placed or installed within the public right-of-way, the city has no obligation to replace or repair such landscaping if removed or damaged by city field operations or other governmental functions. The city also has no obligation to maintain above ground or below ground improvements or landscaping within the public right-of-way.

**B. Protection.** All landscape areas provided to meet the requirements of this zoning code must be protected from potential damage by adjacent uses and development, including parking and storage areas.

**C. Irrigation.**

**1.** All required landscaped areas must be provided with irrigation in accordance with one of the following two (2) options:

**a.** A permanent irrigation system with a controller to tailor watering schedules to weather and site conditions; or

**b.** A temporary irrigation system that provides enough water to ensure that all trees and plants will become established.

**2.** Irrigation systems must comply with all applicable building and plumbing codes.

**D. Timing of installation.**

**1.** All required landscaping and appurtenances, except trees, must be installed prior to the issuance of a final certificate of occupancy.

**2.** All required trees must be installed within one hundred twenty (120) days after issuance of a final certificate of occupancy or temporary certificate of occupancy.

**E. Certificate of installation.** Within a CO, PUD or MPD district or whenever a mandatory or optional development plan is approved, certification of installation of required landscaping must be provided as required by any express provisions of the CO, PUD or MPD district or mandatory or optional development plan approval that was granted. In all other cases, within one hundred twenty (120) days of the issuance of a certificate of occupancy or temporary certificate of occupancy, written certification by the owner of the property, an architect, landscape architect or engineer licensed to do business in the State of Oklahoma must be submitted to the city stating that all landscaping and appurtenances have been installed in accordance with the approved landscape plan.

**F. Maintenance.**

**1.** Required landscaping and screening must be continuously maintained, including necessary watering; weeding; pruning; pest control; litter and debris clean-up; and replacement of dead, diseased or damaged plant material.

**2.** Failure to comply with an approved landscaping plan, including failure to maintain required landscaping and screening and failure to replace dead, diseased or damaged landscaping, constitutes a violation of this zoning code and is subject to penalties and enforcement under Chapter 85.

**3.** The property owner is responsible for maintenance of trees and landscaping in accordance with the approved landscape plan and the regulations of this zoning code. Any dead, diseased or damaged trees, landscaping or screening materials must be removed and replaced by the property owner. Property owners are also responsible for replacing or restoring required landscaping that is damaged or destroyed as a direct result of government action or lawful action of a franchise utility provider.

## Section 65.100. Landscape plans.

**A. Preparation of landscape plan.**

**1.** Except as expressly stated in Subsection 65.100A.2., required landscape plans must be accompanied by written certification from an architect, landscape architect or engineer licensed to practice in the State of Oklahoma, that the landscape plan is in conformance with the minimum requirements of this chapter.

**2.** Required landscape plans for properties that (a) are subject to an approved mandatory or optional development plan or (b) have a lot area of more than twenty thousand (20,000) square feet and are occupied by buildings with a combined gross floor area of more than fifteen thousand (15,000) square feet, must be sealed and signed by a landscape architect licensed to practice in the State of Oklahoma.

**B. Required information.** All building permit applications for sites requiring landscaping must include a landscape plan that complies with the landscape plan submittal requirements specified by the development administrator. Such submittal requirements must be in writing and made available to the public.

**C. Administrative review.** After receipt of a complete landscape plan, the development administrator must:

**1.** Approve the landscape plan as complying with the requirements of this chapter;

**2.** Approve the landscape plan with conditions of approval that will bring it into compliance with the requirements of this chapter; or

**3.** Reject the landscape plan as failing to comply with the requirements of this chapter.

**D. Alternative compliance landscape and screening plans.**

**1.** To accommodate creativity in landscape and screening design and to allow for flexibility in addressing site-specific development/redevelopment challenges, the land use administrator is authorized to approve alternative compliance landscape plans sealed by a landscape architect licensed to practice in the State of Oklahoma. In order to approve an alternative compliance landscape plan, the land use administrator must determine that one or more of the following conditions or opportunities are present:

**a.** The subject site has space limitations, an unusual shape or other factors that make strict compliance with applicable landscaping and screening regulations impossible or impractical;

**b.** Physical conditions on or adjacent to the site such as topography, soils, vegetation or existing structures or utilities are such that strict compliance is impossible, impractical or of no value in terms of advancing the general purposes of this chapter;

**c.** Safety considerations such as intersection visibility, utility locations, etc., make alternative compliance necessary; or

**d.** Creative, alternative landscape plans will provide an equal or better means of meeting the intent of the landscaping and screening regulations of this chapter.

**2.** The land use administrator is expressly authorized to approve alternative compliance landscape plans for projects implementing low-impact development practices or seeking sustainable development or green building certification from nationally recognized organizations, such as the International Code Council, the U.S. Green Building Council, the International Living Future Institute, the U.S. Green Building Initiative or SITES, as follows:

**a.** Sites implementing low-impact development (LID) practices that comply with the City of Tulsa Stormwater Management Criteria Manual are expressly authorized for approval through the alternative compliance provisions of this section.

(1) LID plans must be sealed by a landscape architect licensed to practice in the State of Oklahoma.

(2) LID development solutions may be provided in the street right-of-way, subject to approval by all applicable city bodies, departments and agencies. Such improvements must be maintained by the adjoining property owner.

(3) All aspects of an LID project, including permeable pavement, bioretention

areas, rain gardens, filter strips, grassed swales, green roofs, wetlands, natural stream restoration or preservation will be considered part of the approved alternative compliance landscape plan.

**b.** Plans for sites for which property owners are seeking sustainable development or green building certification from nationally recognized organizations may be approved as alternative compliance landscape plans.

(1) Landscape plans must be sealed by a landscape architect licensed to practice in the State of Oklahoma.

(2) Landscape improvements may be provided in the street right-of-way, subject to approval by all applicable city bodies, departments and agencies. Such improvements must be maintained by the adjoining property owner.

(3) All proposed aspects of the proposed certification, including hardscape material selections, site lighting, grey water irrigation systems and other components of the site may be considered as part of the approved alternative compliance landscape plan.

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## CHAPTER 67. OUTDOOR LIGHTING

Section 67.010. Purposes.
Section 67.020. Applicability and exemptions.
Section 67.030. General standards.
Section 67.040. Lighting plans.
Section 67.050. Measurement of illumination.

### Section 67.010. Purposes.

The outdoor lighting regulations of this chapter are intended to help ensure adequate lighting for motorized and nonmotorized travelers; provide for the efficient use of energy; and reduce the impacts of nuisance lighting and glare on nearby areas.

### Section 67.020. Applicability and exemptions.

The outdoor lighting regulations of this section apply to all outdoor lighting installed after the effective date specified in Section 1.030, except that they do not apply to any of the following:

**A.** Outdoor lighting on lots occupied by residential buildings containing fewer than four (4) dwelling units;

**B.** Public street lights;

**C.** Airport runway and aviation safety lights required by the FAA (e.g., warning lights on radio, communication and navigation towers);

**D.** Spotlighting of official government flags if the spotlighting is contained within the area of the flag;

**E.** Outdoor lighting used exclusively for and during public recreational activities, sporting events at stadiums and ball fields or other outdoor public spaces or venues;

**F.** Outdoor lighting used for emergency equipment and work conducted in the interest of law enforcement or for public health, safety or welfare;

**G.** Outdoor lighting in association with special events approved by the city council;

**H.** Outdoor lighting used for a temporary use lasting no more than ten (10) days;

**I.** Lighting fixtures with a light output of no more than one thousand (1,000) lumens; and

**J.** Temporary holiday light displays.

### Section 67.030. General standards.

All outdoor lighting must comply with the following general standards:

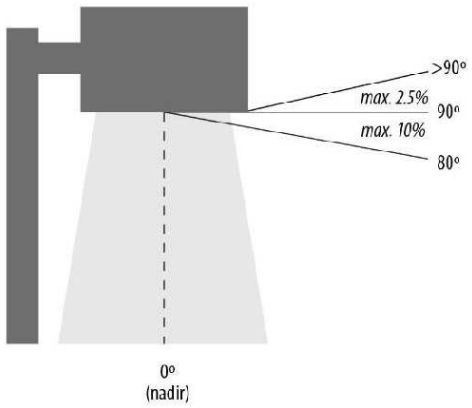
**A. Canopy-mounted lights.** Recessed fixtures must be used in all under-canopy lighting. No lamps, reflectors, refractors or focusing or diffusing may extend below the underside of the canopy surface.

**B. Arrangement and shielding.**

**1.** Lighting must be installed to shield and direct light away from abutting lots that are not under common ownership or control with the lot on which the lights are located. Shielding must be designed and installed to ensure that the light-producing element of the fixture is not visible from on the abutting property, as measured five (5) feet above grade.

**2.** Light-producing elements must be concealed or shielded with cutoffs so that no more than two and one-half (2.5) percent of the light emitted directly from the lamp or indirectly from the fixture is projected at an angle of more than ninety (90) degrees above nadir and no more than ten (10) percent of the light emitted directly from the lamp or indirectly from the fixture is projected at an angle of more than eighty (80) degrees above nadir.

**Figure 67-1: Required Shielding**




**C. Spillover light.** Light trespass along the lot line of the subject property may not exceed 0.5 foot-candles when abutting an agricultural, agricultural-residential or residential zoning district and may not exceed 3.0 foot-candles when abutting any other zoning district or public right-of-way. Maximum illumination levels are measured three (3) feet above grade or from the top of any opaque screening fence or wall along the property line.

*(Ord. No. 24382, § 15, 6-10-2020)*

## Section 67.040. Lighting plans.

**A. General.** Outdoor lighting plans demonstrating compliance with the standards of this section are required with the submittal of a site plan. If no outdoor lighting is proposed, a note must be placed on the face of the site plan indicating that no outdoor lighting will be provided. Applicants have two (2) options for the format of the required lighting plan:

**1.** Submit a lighting plan that complies with the fixture height lighting plan requirements of Subsection 67.040B.; or

**2.** Submit a photometric plan demonstrating that compliance will be achieved using taller fixture heights, in accordance with Subsection 67.040C.

**B. Option 1: Fixture Height Standard Lighting Plan.** Option 1 (Fixture Height Standard Lighting Plans) establishes maximum light fixture heights but does not require submittal of a detailed photometric plan.

**1. Information required.**

**a.** Fixture height standard lighting plans must include at least the following: A scale drawing of the site with all outdoor lighting locations shown;

**b.** Fixture specifications, including catalog cut-sheets or generic standards;

**c.** Pole type and height of fixture;

**d.** Lamp type and size; and

**e.** Fixture mounting and orientation.

**2. Maximum Fixture Heights.** Allowable heights of light fixtures must be measured from the light-emitting surface to finished grade at the base of the pole. Maximum allowed light fixture heights are based on the (ground-level) horizontal distance between the light fixture and any agricultural, agricultural-residential or residential zoning district or public right-of-way, as established in Table 67-1:

**Table 67-1: Maximum Light Fixture Heights**

| Distance from AG District, AG-R District, R District or Public Right-of-Way (feet) | Maximum Fixture Height (feet) |
|---|---|
| 0—50 | 16 |
| 50.01—250 | 20 |
| More than 250 | 35 |

**C. Option 2: Photometric Study.** Under Option 2 (Photometric Study Lighting Plan) no maximum fixture heights are established, but applicants are required to submit a photometric study in enough detail to demonstrate that all applicable outdoor light standards will be met. The photometric study must include at least the following:

**1.** A scale drawing of the site with all outdoor lighting locations shown;

**2.** Fixture specifications, including catalog cut-sheets or generic standards;

**3.** Lamp type and size;

**4.** Fixture mounting heights, mounting orientation, and tilt angles if applicable; and

**5.** A representative point-by-point illumination array for the site showing property lines and all off-site lighting impacts.

*(Ord. No. 24382, § 16, 6-10-2020)*

## Section 67.050. Measurement of illumination.

Light levels must be measured with a direct-reading, portable light meter, calibrated annually by an independent laboratory regularly engaged in the calibration of such instruments. The meter's sensor must be located at the top of the visual screening fence or wall along on the property line (or at a height of three (3) feet above finished grade at the property line if there is no fence or wall), aimed towards the subject property in horizontal position. Readings must be recorded after the value has stabilized. Measurements are made after establishment of darkness with the light sources to be measured illuminated, and then with those light sources extinguished. The difference between these two (2) readings must then be compared to the maximum allowed illumination at the property line. In this way, contributions to light levels by the moon and other ambient light sources are eliminated and the light intensity from the subject light sources can be accurately determined.

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## CHAPTER 70. REVIEW AND APPROVAL PROCEDURES

Section 70.010. Common provisions.
Section 70.020. Zoning code text amendments.
Section 70.030. Zoning map amendments (rezonings).
Section 70.040. Development plans.
Section 70.050. Site plans.
Section 70.060 Historic Preservation (HP) zoning map amendments.
Section 70.070. HP permits.
Section 70.080. Zoning clearance and permits.
Section 70.090. Interpretations of zoning code, zoning map, and approved development plans and site plans.
Section 70.100. Administrative adjustments.
Section 70.110. Spacing and separation distance verification.
Section 70.120. Special exceptions.
Section 70.130. Variances.
Section 70.140. Appeals of administrative decisions.

### Section 70.010. Common provisions.

**A. Applicability.** The common provisions of this section apply to all of the procedures in this chapter unless otherwise expressly stated.

**Table 70-1: Review and Decision-making Authority Summary Table**

| Procedure | Staff | Preservation Commission | Planning Commission | Board of Adjustment | City Council | Public Notice |
|---|---|---|---|---|---|---|
| Zoning Code Text Amendments | R | - | (R) | - | (DM) | N[7] |
| Zoning Map Amendments (Non-HP) | R | - | (R) | - | (DM) | N, M, P[7] |
| Development Plans | R | - | (R) | - | (DM) | N, M, P[7] |
| Site Plans | DM[1] | - | - | - | - | - |
| Historic Pres. (HP) Zoning Map Amendments | R | R | (R) | - | (DM) | N, M, P[7] |
| HP Permits | R[2] | DM[2] | - | - | - | - |
| Zoning Code Interpretations | DM[3] | - | - | - | - | - |
| Spacing and Separation Distance Verification | DM[4] | - | - | - | - | - |
| Special Exceptions | - | - | - | (DM) | - | N, M, P[5] |
| Variances | - | - | - | (DM) | - | N, M |
| Appeals of Administrative Decisions | - | - | - | (DM)[6] | - | N, M |

R = Review body (review and recommendation) DM = Decision-making body (final decision to approve or deny)
() = Public hearing required
Hearing Notice: N = Newspaper; M = Mail; P = Posting (signs)

Table 70-1 Notes:

**[1]** Unless alternative site plan review procedure/decision-maker is established by city council at time of development plan approval (see Subsection 70.050C.).

**[2]** Preservation officer (staff) authorized to act on some applications (see Subsection 70.070K.).

**[3]** Development administrator authorized to issue written interpretations.

**[4]** Development Administrator authorized to verify spacing and separation distance requirements.

**[5]** Special notice requirements for minor special exceptions (See Subsection 70.120E.).

**[6]** Appeals of administrative decisions on site plans go to the planning commission.

**[7]** Notice required for planning commission public hearing but not for city council public hearing.

**B. Review and decision-making authority (summary table).** Table 70-1 provides a summary of the review and approval procedures of this chapter. In the event of conflict between this summary table and the detailed procedures contained elsewhere in this chapter, the detailed procedures govern.

**C. Applications and fees.**

**1. Owner-initiated applications.** Whenever the provisions of this zoning code allow the filing of an application by the owner of the subject property, that application must be filed by all record title owners of the real properties that are the subject of the application or the property owners' authorized agent.

**2. Pre-application meetings.**

**a. Purpose.** Pre-application meetings provide an early opportunity for staff and applicants to discuss the procedures, standards and regulations required for development approval under this zoning code.

**b. Applicability.** Pre-application meetings are required whenever the provisions of this zoning code expressly state that they are required. They are encouraged in all cases.

**c. Scheduling.** Pre-application meetings must be scheduled with the land use administrator.

**d. Guidelines.** The land use administrator is authorized to establish guidelines for pre-application meetings, including information that should be provided and any available alternatives to face-to-face meetings, such as telephone conversations and email correspondence.

**3. Form of application.**

**a.** Applications required under this zoning code must be submitted in a form and in such numbers as required by the official responsible for accepting the application. Applications must include materials and information to assist authorized review and decision-making bodies in their consideration of the application, including at least the following:

(1) A list of the names and addresses of all owners of record of the property that is the subject of the application; and

(2) Maps, plats, surveys, dimensioned site plans, engineering documents, environmental reports, traffic studies, and other materials and information, as required by this zoning code or application checklists established by the official responsible for accepting the application. Application forms and submittal requirements must be made available to the general public.

**4. Application filing fees and notification costs.** All applications must be accompanied by the application fee that has been established by the city council and by an amount to cover the costs of required public hearing notices and publication.

**5. Application completeness, accuracy and sufficiency.**

**a.** An application will be considered complete and ready for processing only if it is submitted in the required number and form, includes all required information and is accompanied by the required application filing and notification fees.

**b.** The official responsible for accepting the application must make a determination of application completeness within ten (10) business days of application filing.

**c.** If an application is determined to be incomplete, the official responsible for accepting the application must provide notice to the applicant along with an explanation of the application's deficiencies. Notice of an incomplete application may be provided by personal service, electronic mail or first-class mail.

**d.** No further processing of incomplete applications will occur and incomplete applications will be pulled from the processing cycle. When the deficiencies are corrected, the application will be placed in the first available processing cycle. If the deficiencies are not corrected by the applicant within sixty (60) days, the application will be deemed to have been withdrawn.

**e.** Applications deemed complete will be considered to be in the processing cycle and will be reviewed by staff and other review and decision-making bodies in accordance with applicable review and approval procedures of this zoning code.

**f.** The official responsible for accepting the application may require that applications or plans be revised before being placed on an agenda for possible action if the land use administrator determines that:

(1) The application or plan contains one or more significant inaccuracies or omissions that hinder timely or competent evaluation of the plan's/application's compliance with zoning code requirements or other regulations;

(2) The application contains multiple minor inaccuracies or omissions that hinder timely or competent evaluation of the plan's/application's compliance with zoning code requirements or other regulations; or

(3) The decision-making body does not have legal authority to approve the application.

**D. Application processing cycles.** The land use administrator and other officials responsible for accepting applications, after consulting with review and decision-making bodies, is authorized to promulgate reasonable cycles and timelines for processing applications, including deadlines for receipt of complete applications.

**E. Neighbor communications.**

**1.** Neighbor communications are encouraged by the board of adjustment, planning commission and city council to help:

**a.** Educate applicants and neighbors about one another's interests;

**b.** Resolve issues in a manner that respects those interests; and

**c.** Identify unresolved issues before initiation of formal public hearings.

**2.** Applicants are encouraged to submit a summary of their neighbor communication activities at or before the first required public hearing. The recommended content of such summaries is as follows:

**a.** Efforts to notify neighbors about the proposal (how and when notification occurred, and who was notified);

**b.** How information about the proposal was shared with neighbors (mailings, work-shops, meetings, open houses, flyers, door-to-door handouts, etc.);

**c.** Who was involved in the discussions;

**d.** Suggestions and concerns raised by neighbors; and

**e.** What specific changes (if any) were considered and/or made as a result of the neighbor communications.

**F. Public hearing notice.**

**1. Newspaper notice.** Whenever the procedures of this chapter require that newspaper notice be provided, the notice must be published in a newspaper of general circulation within the City of Tulsa.

**2. Mailed notice.**

**a.** Whenever the procedures of this chapter require that notices be mailed, the notices must be sent by United States Postal Service first class mail.

**b.** Addresses must be based on property ownership information from the county assessor's office. When required notices have been properly addressed and deposited in the U.S. mail, alleged failure of a party to receive the mailed notice does not constitute grounds to invalidate any action taken.

**3. Posted notice.**

**a.** Except as expressly stated in Subsection 70.010F.3.b., when the procedures of this chapter require that posted notice be provided, at least one notice sign must be posted on each public street frontage abutting the subject property in locations plainly visible to passers-by. If the subject application includes an area with more than one thousand (1,000) feet of street frontage on a single street, at least one sign must be posted for each one thousand (1,000) feet of street frontage or fraction thereof on that street.

**b.** When the city initiates a zoning map amendment in order to ensure consistency with its comprehensive plan or to implement land use and zoning policies in areas that require special attention due to topography, geography, or other distinguishing features, such as floodplain, drainage, historic preservation, or blight, the land use administrator is authorized to designate the number and location of posted notice signs. The locations must be within the area proposed for rezoning, be plainly visible to passers-by and provide reasonable posted notice.

**4. Content of notice.** All required public hearing notices must:

**a.** Indicate the date, time and place of the public hearing that is the subject of the notice;

**b.** Describe any property involved in the application by map, street address or by legal description, provided that a map must be included in the newspaper notice for any zoning map amendment;

**c.** Describe the action sought in the application or proposal;

**d.** Identify who will conduct the hearing; and

**e.** Indicate where additional information on the matter can be obtained.

**5. Constructive notice.**

**a.** Minor defects in required notices will not be deemed to impair the notice or invalidate proceedings pursuant to the notice. Minor defects in notice are limited to errors in a legal description or typographical or grammatical errors that do not impede communication of the notice to affected parties. If questions arise at the hearing regarding the adequacy of notice, the hearing body must make a formal finding about whether there was substantial compliance with the notice requirements of this zoning code.

**b.** When the records of the city document the publication, mailing, and posting of notices as required by this chapter, required notice of the public hearing will be presumed to have been given.

**6. Courtesy notice.**

**a.** ln addition to otherwise required notices of public hearings, the land use administrator must endeavor to provide one or more of the following forms of additional courtesy notice of public hearings required under this zoning code:

(1) Mailing notices to registered neighborhood and resident organizations whose boundaries include or are abutting the subject property;

(2) Posting notices in city hall or in other government buildings; or

(3) Publishing notice on the city or planning commission website.

**b.** Failure to provide any form of courtesy notice that is not required under this zoning code or any defect in courtesy notice that is provided does not invalidate impair, or otherwise affect any application, public hearing or decision rendered in respect to the matter under consideration.

**G. Hearing procedures.**

**1.** At required public hearings, interested persons must be permitted to submit information and comments, verbally or in writing. The hearing body is authorized to establish reasonable rules and regulations governing the conduct of hearings and the presentation of information and comments. The required city council public hearing may be conducted under the council agenda classification "Authorities, Boards and Commissions" or under any other agenda classification deemed appropriate by the City Council.

**2.** Once commenced, a public hearing may be continued by the hearing body. No re-notification is required if the continuance is set for specified date and time and that date and time is announced at the time of the continuance.

**3.** If a public hearing requiring notice is continued or postponed for an indefinite period of time from the date of the originally scheduled public hearing, new public hearing notice must be given before the rescheduled public hearing. If the applicant requests and is granted a continuance or postponement requiring renotification, the applicant must pay any costs of renotification.

**H. Action by review bodies and decision-making bodies.**

**1.** In taking action under the procedures of this chapter, review and decision-making bodies must act by simple majority vote of a quorum, unless otherwise expressly stated. Unless otherwise expressly stated "simple majority vote" means a simple majority vote of a quorum.

**2.** Review and decision-making bodies may take any action that is consistent with:

**a.** The regulations of this zoning code;

**b.** Any rules or by-laws that apply to the review or decision-making body; and

**c.** The notice that was given.

**3.** In acting on zoning map amendments, review and decision-making bodies are expressly authorized to recommend and approve a less intensive zoning district classification than the zoning district that was described in required public notices (see "less intensive zoning district" in Section 95.150).

**4.** Review and decision-making bodies are authorized to continue a public hearing or defer action in order to receive additional information or further deliberate.

**I. Conditions of approval.** When the procedures of this chapter authorize approval with conditions, review bodies, including staff, are authorized to recommend conditions and decision-making bodies are authorized to approve the subject application with conditions. Any conditions recommended or approved must relate to a situation likely to be created or aggravated by the proposed use or development and must be roughly proportional to the impacts of the use or development.

**J. Decision-making criteria; burden of proof or persuasion.** Applications must address relevant review and decision-making criteria. In all cases, the burden is on the applicant to show that an application or proposal complies with all applicable review or approval criteria.

**K. Required time-frames for action.** Any time limit specified in this zoning code for any decision or action on behalf of a review or decision-making body may be extended if the applicant agrees to an extension. Unless otherwise expressly stated, if a review or decision-making body does not render a decision or take action within any time period required under this zoning code and the applicant has not agreed to an extension of that time limit, the application is deemed denied.

*(Ord. No. 24725, § 23, 11-17-2021; Ord. No. 25055, §§ 8—10, 5-24-2023)*

**Section 70.020. Zoning code text amendments.**

**A. Authority to file.** Amendments to the text of this zoning code may be initiated only by the city council, planning commission or land use administrator.

**Figure 70-1: Zoning Code Text Amendment Process (Generally)**

**B. Review and recommendation—Land use administrator.** The land use administrator must prepare a report and recommendation on the proposed zoning code text amendment. The report must be transmitted to the planning commission before its public hearing on the proposed amendment.

**C. Notice of hearing.** Notice of the planning commission's required public hearing on a zoning code text amendment must be published in the newspaper at least twenty (20) days before the scheduled public hearing (see Subsection 70.010F. for additional information on newspaper notices).

**D. Hearing and recommendation—Planning commission.** The planning commission must hold a public hearing on the proposed zoning code text amendment. Following the close of the public hearing, the planning commission must act to recommend that the proposed text amendment be approved, approved with modifications, or denied and transmit its report and recommendations to the city council. Motions to approve, approve with modifications or deny zoning code text amendments may be approved by a simple majority vote. If the planning commission arrives at a tie vote, the application must be forwarded to the city council with the notation of the tie vote.

**E. Final action—City council.** Following receipt of the planning commission's report and recommendation, the city council must hold a public hearing and act to approve the proposed zoning code text amendment, approve the proposed text amendment with modifications or deny the proposed text amendment. The city council is also authorized to remand the proposed text amendment back to the planning commission for further consideration. Zoning code text amendments may be approved by a simple majority vote.

**F. Review and approval criteria.** The decision to amend the zoning code text is a matter of legislative discretion that is not controlled by any one standard. In making recommendations and decisions about zoning code text amendments, review and decision-making bodies must consider all relevant factors, including at least the following:

**1.** Whether the proposed text amendment is in conformity with the policy and intent of the comprehensive plan; and

**2.** Whether the proposed zoning code text amendment corrects an error or inconsistency or is necessary or desirable to meet the challenge of a changed or changing condition.

**G. Applicability.**

**1.** All amendments to the text of this Zoning Code must be processed in accordance with the provisions of this section, except as stated in Subsection 70.020G.2.

**2.** The Land Use Administrator, in consultation with the city legal department, is authorized to correct typographical errors, reference errors, spelling errors, formatting errors, and errors in section, page, table, and figure numbering, without following the zoning code text amendment procedures of this section. The changes necessary to correct such errors may not change the meaning or regulations of the Zoning Code.

*(Ord. No. 24725, § 24, 11-17-2021)*

## Section 70.030. Zoning map amendments (rezonings).

**A. Authority to file.** Amendments to the zoning map may be initiated only by the city council, the planning commission, the owner of the real property that is the subject of the proposed zoning map amendment or by the property owner's authorized agent.

**Figure 70-2: Zoning Map Amendment Process (Generally)**

**B. Application filing.** Property owner-initiated applications for zoning map amendments must be filed with the land use administrator. Property owners have the option of filing applications for zoning map amendments with or without a development plan. If the applicant elects to submit a development plan concurrently with a zoning map amendment application, the development plan procedures of Section 70.040 govern review and approval of the development plan.

**C. Review and recommendation—Land use administrator.** Following receipt of a complete zoning map amendment application or initiation of zoning map amendment by the planning commission or the city council, the land use administrator must prepare a report and recommendation on the proposed zoning map amendment. The report must be transmitted to the planning commission before its public hearing on the proposed amendment.

**D. Notice of hearing.** Notice of the planning commission's required public hearing on a zoning map amendment must be provided as follows (see Subsection 70.010F. for additional information on required newspaper, mail and posted notices):

**1. Newspaper notice.** Notice must be published in the newspaper at least twenty (20) days before the scheduled public hearing.

**2. Mailed notice.** Notice must be mailed to all owners of property included within the area that is the subject of the proposed zoning map amendment and all owners

of property within three hundred (300) feet of the subject property at least twenty (20) days before the scheduled public hearing. Mailed notice is not required for city-initiated rezonings proposed as a means of revising the comprehensive plan or official map or designating areas that require specific land use development due to topography, geography or other distinguishing features, including but not limited to floodplain, drainage and blighted areas.

3. **Posted notice.** Notice (signs) must be posted at least twenty (20) days before the scheduled public hearing.

**E. Hearing and recommendation—Planning commission.**

1. Following receipt of a complete application for a zoning map amendment or initiation of a zoning map amendment by the planning commission or city council, the planning commission must hold a public hearing on the proposed amendment. Following the close of the public hearing, the planning commission must act to recommend that the proposed amendment be approved, approved with modifications, or denied.
2. All proposed zoning map amendments initiated by the city council or the planning commission must be transmitted to the city council within fifteen (15) days of the date of planning commission action.
3. A property owner-initiated zoning map amendment recommended for approval or approval with modifications must be transmitted to the city council within fifteen (15) days of the date of planning commission action.
4. A property owner-initiated application recommended for denial by the planning commission may not be considered further unless the applicant, within fifteen (15) days of the date of the planning commission's action, files a written request with the city clerk and the recording secretary of the planning commission for a public hearing by the city council. The request for hearing must be accompanied by the payment of the required filing fee. Upon notice of a request for a public hearing before the city council, the planning commission must transmit the application and its report and recommendations to the city council.
5. Motions to approve, approve with modifications or deny zoning map amendments may be approved by a simple majority vote. If the planning commission arrives at a tie vote, the application must be forwarded to the city council with the notation of the tie vote.

**F. Final action—City council.**

1. Following receipt of the planning commission's recommendation, the city council must hold a public hearing on the application and act to approve the proposed zoning map amendment, approve the proposed amendment with modifications, including approval of a less intensive zoning district, or deny the proposed amendment. The city council is also authorized to remand the proposed zoning map amendment back to the planning commission for further consideration.
2. Zoning map amendments may be approved by a simple majority vote, except as stated in Subsection 70.030G.

**G. Protest petitions.**

1. If a valid protest petition is filed against any proposed zoning map amendment, passage of the zoning map amendment requires a favorable vote of three-fourths of the members of the entire city council.

2. A protest petition will be deemed valid if it is signed by the owners of twenty (20) percent or more of the area of the lots included in the proposed zoning map amendment or by the owners of fifty (50) percent or more of the area of the lots within three hundred (300) feet of the area included in the proposed zoning map amendment and if it meets the other regulations of this Subsection 70.030G. Areas designated as right-of-way shall not be included in the calculation. The city council will determine sufficiency of a protest petition if its validity is challenged.
3. A written protest petition opposing a zoning map amendment must be submitted to the land use administrator at least three (3) business days before the city council's vote.
4. The protest petition must identify the zoning case number for which the protest is filed and must state that it is a formal protest of the proposed zoning map amendment.
5. Persons signing the protest petition must be at least 18 years of age and must hold record title to their properties, as shown in the land records of the Tulsa County Clerk. If a lot is owned jointly by more than one owner, all owners must sign the protest petition. If a lot is owned by a trust, the trustee must sign, noting that he or she signs "as trustee". If there is more than one trustee, and no single trustee is authorized to sign, then all the trustees must sign. If a lot is owned by a corporation, the president or a vice-president or the chair or vice chair of the board of directors, must sign. If a lot is owned by a limited liability company, a manager must sign. If a lot is owned by any other legal entity, the person signing the protest petition must be someone authorized by that entity to convey title to land.
6. Persons signing the protest petition must indicate the street address of the lot owned. If no street address is assigned, a legal description (lot and block of a subdivision, metes and bounds description of unplatted tracts) or a map must be provided.
7. If a protest petition contains multiple signature pages, each page must contain the same protest language. Signatures must be the normal cursive signature of the person signing and should be accompanied by the legibly printed or typed name of the person signing. The name of the person signing must be the same as the name of that person as shown in the land records of the Tulsa County Clerk.
8. A protest petition may not be amended, supplemented or corrected subsequent to the deadline for filing the petition.

**H. Review and approval criteria.** The decision to amend the zoning map is a matter of legislative discretion that is not controlled by any single standard or criterion. In making recommendations and decisions on zoning map amendments, review and decision-making bodies must consider all relevant factors, including at least the following:

1. Whether the proposed zoning map amendment is consistent with the policy and intent of comprehensive plan; and
2. Whether the proposed zoning map amendment corrects an error or inconsistency or is necessary or desirable to meet the challenge of a changed or changing condition.

## Section 70.040. Development plans.

**A. Purpose.** Development plans are required with some property owner-initiated rezonings and are optional with other property owner-initiated rezonings. Their purpose is

to depict a property owner's generalized plan for the type, amount and character of development proposed on the subject property. By providing greater certainty about development proposals, development plans provide review and decision-making bodies with additional information on which to base rezoning decisions.

**B. Applicability.**

1. **Mandatory.** Development plans are required (mandatory) for Corridor (CO) district zoning map amendments and Master Planned Development (MPD) zoning map amendments. They are also required for major amendments to existing Planned Unit Developments (PUDs). In acting on mandatory development plans, the planning commission is authorized to recommend and the city council is authorized to approve use and development limitations that comply with, are more restrictive than or, as may be permitted by the respective CO, MPD, or PUD provisions of this code, are less restrictive than the base zoning district regulations and otherwise applicable standards of this zoning code.
2. **Optional.** Property owners may elect to submit a development plan with any zoning map amendment application. The optional development plan process is also used to process proposals to provide access to lots via a private street. In acting on optional development plans, the planning commission is authorized to recommend and the city council is authorized to approve use and development limitations that are at least as restrictive or are more restrictive than the base zoning regulations. Optional development plans may not be used to obtain relief from otherwise applicable zoning code regulations.

**C. Application filing.** Complete applications for development plan approval must be filed with the land use administrator concurrently with a zoning map amendment application.

**D. Review and recommendation—Land use administrator.** Following receipt of a complete application, including the required development plan, the land use administrator must prepare a report and recommendation. The report must evaluate the proposed development plan in light of all applicable standards and approval criteria. The report must also include a description of any development plan modifications or conditions of approval that would help ensure the development plan complies with applicable standards and approval criteria. The land use administrator's report must be transmitted to the planning commission before the required public hearing.

**E. Notice of hearing.** Notice of the planning commission's required public hearing must be provided as follows (see Subsection 70.010F. for additional information on required newspaper, mail and posted notices).

1. **Newspaper notice.** Notice must be published in the newspaper at least twenty (20) days before the scheduled public hearing.
2. **Mailed notice.** Notice must be mailed to the owner of the subject property and all owners of property within three hundred (300) feet of the subject property at least twenty (20) days before the scheduled public hearing. Notice for straight zoning constitutes notice for optional development plans.
3. **Posted notice.** Notice (signs) must be posted at least twenty (20) days before the scheduled public hearing.

**F. Hearing and recommendation—Planning commission.**

**1.** Within sixty (60) days of the date of filing of a complete application for development plan approval, the planning commission must hold a public hearing to consider the proposed development plan. Following the close of the public hearing, the planning commission must act to recommend that the proposed development plan be approved, approved with modifications, or denied.

**2.** A development plan application recommended for approval or approval with modifications must be transmitted, with the report and recommendation of the planning commission, to the city council within fifteen (15) days of the date of planning commission action.

**3.** A development plan application recommended for denial by the planning commission, will be deemed denied and will not be considered further unless the applicant, within fifteen (15) days of the date of the planning commission's action, files a written request with the city clerk and with the recording secretary of the planning commission for a public hearing by the city council. The request for hearing must be accompanied by the payment of the required filing fee. Upon notice of a request for a public hearing before the city council, the planning commission must transmit the development plan application and its report and recommendations to the city council.

**4.** If the planning commission arrives at a tie vote, the application must be forwarded to the city council with a notation of the tie vote.

**G. Final action—City council.**

**1.** Following receipt of the planning commission's recommendation, the city council must hold a public hearing on the development plan and act to approve the proposed development plan, approve the proposed development plan with modifications or deny the proposed development plan. The city council is also authorized to remand the proposed development plan back to the planning commission for further consideration.

**2.** Development plans may be approved by a simple majority vote, except that any accompanying zoning map amendment may require a super-majority vote, as stated in Subsection 70.030G.

**H. Requirement for filing of site plan.**

**1.** Unless a longer time period or a phasing plan is approved at the time of approval of a mandatory development plan, a complete application for site plan approval must be filed within five (5) years of the date of mandatory development plan approval. If an application for site plan approval is not filed within the time required, no further site plans may be approved for the project until the subject property owner has filed the original or amended development plan for re-review and reconsideration by the planning commission and city council. Such re-review and reconsideration must follow the mandatory development plan review procedures of this zoning code. Following re-review and reconsideration, the planning commission is authorized to recommend and the city council is authorized to approve any of the following actions based on surrounding land use patterns and other relevant information presented at the time of reconsideration by the planning commission and city council:

**a.** An extension of time for filing a site plan;

**b.** An amendment to the approved mandatory development plan; or

**c.** Rezoning to another zoning district in accordance with the zoning map amendment procedures of Section 70.030.

**2.** The site plan filing deadline established in Subsection 70.040H.1. does not apply to optional development plans or to PUD or CO district development plans approved before the effective date specified in Section 1.030. The site plan filing deadline established in Subsection 70.040H.1. does apply to any major amendments to PUD or CO district development plans approved after the effective date specified in Section 1.030.

**I. Amendments to approved development plans.**

**1. Minor amendments.**

**a.** The planning commission is authorized to approve amendments to approved development plans as minor amendments if the planning commission determines that substantial compliance is maintained with the approved development plan. The following is a non-exhaustive list of changes that may be considered as minor amendments:

(1) Any deviation expressly authorized at the time of development plan approval;

(2) The relocation or addition of customary accessory uses and structures;

(3) Adjustment of internal development area boundaries, provided the allocation of land to particular uses and the relationship of uses within the project are not substantially altered;

(4) Limitation or elimination of previously approved uses, provided the character of the development is not substantially altered;

(5) Modification of the internal circulation system that would not increase points of access from adjacent streets, change access to another street or increase projected traffic volumes;

(6) Lot splits that have been reviewed and approved in accordance with the subdivision and development regulations;

(7) Modifications to approved signage, provided the size, location, number and type of signs is not substantially altered;

(8) Modification to approved screening and landscaping plans, provided the modification is not a substantial deviation from the original approved plan;

(9) Changes reducing the number of permitted dwelling units, the amount of nonresidential floor area or the area covered by buildings or paved areas; and

(10) Reductions in off-street parking or loading by more than ten (10) percent or one space, whichever results in a greater reduction.

**b.** In those cases when the city council has expressly imposed a condition more restrictive than recommended by the planning commission, any amendment of that city council-imposed condition must be reviewed and approved by the city council.

**c.** Notice of the Planning Commission's public hearing on a development plan minor amendment request must be provided at least ten (10) days in advance of the hearing by mailing written notice to all owners of property within a three hundred-foot radius of the exterior boundary of the subject property.

**d.** If the planning commission determines that the proposed development plan amendment, if approved, will result in a significant departure from the approved development plan or otherwise significantly change the character of the subject area or that the cumulative effect of a number of minor amendments substantially alters the approved development plan, then the amendment must be deemed a major amendment to the development plan and processed as a new development plan following the development plan approval procedure of Section 70.040, including all requirements for fees, notices and hearings.

**2. Appeal of development plan minor amendment decisions.** An appeal from any development plan minor amendment decision by the planning commission may be taken by any person aggrieved, or any taxpayer or any officer, department, board or bureau of the city. Appeals are made to the city council by filing notice of appeal with the city clerk and with the recording secretary of the planning commission within ten (10) days of the date of the decision being appealed. The appeal must specify the grounds of the appeal. No bond or deposit for costs are required for an appeal. Upon filing of the notice of appeal, the planning commission must transmit to the city council, the original or certified copies of all the papers constituting the record in the case, together with the decision of the planning commission. The city council must notify the applicant and all interested parties, as recorded in the minutes of planning commission, of the appeal hearing location, date and time.

**3. Major amendments.** Any amendment to an approved development plan that is not authorized as a minor amendment must be processed as a new development plan following the development plan approval procedure of Section 70.040, including all requirements for fees, notices and hearings.

*(Ord. No. 24725, § 25, 11-17-2021)*

**Section 70.050. Site plans.**

**A. Applicability.** Site plan approval is required before the issuance of any permits for development or construction on any property included within the boundaries of any approved development plan and whenever a provision of this zoning code expressly states that site plan approval is required.

**B. Application filing.** Complete applications for site plan approval must be filed with the land use administrator. At a minimum, the application must include a site plan, landscape plan and sign plan.

**C. Review and action by land use administrator; appeals.**

**1.** Unless otherwise required by the city council as a condition of approval of a development plan, the land use administrator is authorized to review and take action on site plans. The land use administrator must approve the site plan if it complies (as applicable) with an approved development plan, all conditions of development plan approval and all applicable regulations of this zoning code. If the

submitted site plan does not comply with an approved development plan, any conditions imposed on that plan or applicable regulations of this zoning code, the land use administrator must disapprove the site plan and advise the landowner in writing of the specific reasons for disapproval.

**2.** If the land use administrator does not approve the site plan, the landowner may either: (1) resubmit the site plan to correct the plan's inconsistencies and deficiencies, or (2) within sixty (60) days of the date of notice of disapproval, appeal the decision of the land use administrator by filing a notice of appeal with the recording secretary of the planning commission. If such an appeal is filed, the site plan must be reviewed by the planning commission following the hearing and notice requirements that apply to minor amendments of approved development plans (see Subsection 70.040I.1.c.). The planning commission's decision may be appealed following the procedures of Subsection 70.040I.2.

**D. Effect of approval.** Approval of a site plan must occur before any building permits are issued. Site plan approval, in and of itself, does not constitute effective dedication of rights-of-way or any other public improvements. See also the zoning clearance permit provisions of Section 70.080.

## Section 70.060 Historic Preservation (HP) zoning map amendments.

**A. Scope.** The HP zoning procedures of this section govern the establishment, amendment or repeal of any HP zoning district.

**Figure 70-3: HP District Zoning Map Amendment Process (Generally)**

**B. Authority to file.** HP zoning map amendments may be initiated only by the city council, the planning commission, the preservation commission or the owner of the real property that is the subject of the proposed zoning map amendment or the property owner's authorized agent.

**C. Application filing.** Complete applications for privately initiated HP zoning map amendments must be filed with the land use administrator.

**D. Notice of meeting and hearing.** Notice of the preservation commission's meeting to consider an HP zoning map amendment must be given in accordance with the preservation commission's rules and regulations. Notice of the planning commission's required public hearing on an HP zoning map amendment must be provided as follows (see Subsection 70.010F. for additional information on required newspaper, mail and posted notices).

**1. Newspaper notice.** Notice must be published in the newspaper at least twenty (20) days before the planning commission's public hearing.

2. **Mailed notice.** Notice must be mailed to all owners of property included within the area that is the subject of the proposed HP zoning map amendment and all owners of property within three hundred (300) feet of the subject property at least twenty (20) days before the planning commission's public hearing. In addition to other information required in hearing notices (see Subsection 70.010F.), mailed notice for an HP zoning map amendment must include a statement indicating that upon approval of HP zoning, activities such as the erection, construction, reconstruction, renovation, alteration, painting, removal, or demolition of a building, structure or lot will trigger the need for the subject property owner to obtain an HP permit, regardless of whether a building permit is required for such work.

3. **Posted notice.** Notice (signs) must be posted at least twenty (20) days before the planning commission's public hearing.

**E. Review and recommendation—Preservation commission.** The preservation commission must hold a public meeting and receive public comments on the HP zoning map amendment. After the public meeting, the preservation commission must prepare a report and recommendation on the proposed HP zoning map amendment in accordance with the general overlay district procedure described in Subsection 20.010D. The report and recommendation must also include specific findings regarding the proposed map amendment's consistency with the HP zoning criteria of Subsection 70.060J. The preservation commission's report and all other pertinent information must be transmitted to the planning commission before the planning commission's public hearing on the proposed HP zoning map amendment.

**F. Hearing and recommendation—Planning commission.**

1. The planning commission must hold a public hearing on all proposed HP zoning amendments. Following the close of the public hearing, the planning commission must act to recommend that the proposed HP zoning map amendment be approved, approved with modifications, or denied.

2. All proposed HP zoning map amendments initiated by the city council, the planning commission or the preservation commission must be transmitted to the city council within fifteen (15) days of the date of planning commission action.

3. A property owner-initiated HP zoning map amendment recommended by the planning commission for approval or approval with modifications must be transmitted to the city council within fifteen (15) days of the date of planning commission action.

4. A property owner-initiated HP application recommended for denial by the planning commission, may not be considered further unless the applicant, within fifteen (15) days of the date of the planning commission's action, files a written request with the city clerk for a public hearing by the city council. The request for hearing must be accompanied by the payment of the required filing fee. Upon notice of a request for a public hearing before the city council, the planning commission must transmit the application and its report and recommendations to the city council.

5. If the planning commission arrives at a tie vote, the application must be forwarded to the city council with a notation of the tie vote.

**G. Final action—City council.**

**1.** Following receipt of the planning commission's recommendation, the city council must hold a public hearing on the application and act to approve the proposed HP zoning map amendment, approve the proposed amendment with modifications or deny the proposed amendment. The city council is also authorized to remand the proposed HP zoning map amendment back to the planning commission for further consideration.

**2.** HP zoning map amendments may be approved by a simple majority vote, except as stated in Subsection 70.060H.

**H. Protest petitions.**

**1.** If a valid protest petition is filed against any proposed HP zoning map amendment, passage of the zoning map amendment requires a favorable vote of three-fourths of the members of the entire city council.

**2.** A protest petition will be deemed valid if it is signed by the owners of twenty (20) percent or more of the area of the lots included in proposed HP zoning map amendment area or by the owners of fifty (50) percent or more of the area of the lots within three hundred (300) feet of the area included in the proposed HP zoning map amendment area and if it meets the other regulations of this Subsection 70.060H. Areas designated as right-of-way shall not be included in the calculation. The city council will determine sufficiency of a protest petition if its validity is challenged.

**3.** A written protest petition opposing an HP zoning map amendment must be submitted to the land use administrator at least three (3) business days before the city council's vote.

**4.** The protest petition must identify the zoning case number for which the protest is filed and must state that it is a formal protest of the proposed HP zoning map amendment.

**5.** Persons signing the protest petition must be at least 18 years of age and must hold record title to their properties, as shown in the land records of the Tulsa County Clerk. If a lot is owned jointly by more than one owner, all owners must sign the protest petition. If a lot is owned by a trust, the trustee must sign, noting that he or she signs "as trustee". If there is more than one trustee, and no single trustee is authorized to sign, then all the trustees must sign. If a lot is owned by a corporation, the president or a vice-president or the chair or vice chair of the board of directors, must sign. If a lot is owned by a limited liability company, a manager must sign. If a lot is owned by any other legal entity, the person signing the protest petition must be someone authorized by that entity to convey title to land.

**6.** Persons signing the protest petition must indicate the street address of the lot owned. If no street address is assigned, a legal description (lot and block of a subdivision, metes and bounds description of unplatted tracts) or a map must be provided.

**7.** If a protest petition contains multiple signature pages, each page must contain the same protest language. Signatures must be the normal cursive signature of the

person signing and should be accompanied by the legibly printed or typed name of the person signing. The name of the person signing must be the same as the name of that person as shown in the land records of the Tulsa County Clerk.

**8.** A protest petition may not be amended, supplemented or corrected subsequent to the deadline for filing the petition.

**I. Recordation.** The preservation officer must file a copy of the HP zoning map amendment ordinance and a map indicating the boundaries of the HP-zoned area in the county clerk's office of the county in which the property is located.

**J. HP zoning approval criteria.** A building, structure, site or area containing buildings, structures or sites that are at least fifty (50) years old, or less with exceptional importance and possessing integrity, may be classified in an HP overlay district if the subject building, structure, site or area meets one or more of the following criteria:

**1.** It has significant character, interest, or value as part of the historical development, history or cultural heritage of the city, state, or nation;

**2.** It has significance as the site of a historic event in the past of the city, state or nation;

**3.** It is associated with a person, or group of persons, who played a significant role in the historical development, history or cultural heritage of the city, state, or nation;

**4.** It is the embodiment of distinguishing characteristics, design, details, materials or craftsmanship which represent a historically significant architectural or engineering innovation, type, style or specimen;

**5.** It portrays the environment in an era of history characterized by a distinctive architectural, engineering, or construction style;

**6.** It represents a significant and distinguishable entity of historical importance whose components may lack individual distinction;

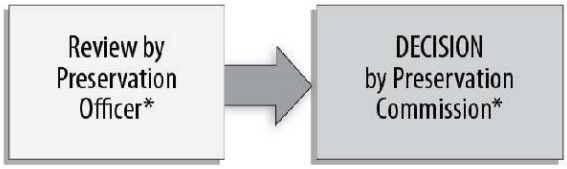
**7.** It has yielded, or is likely to yield, information important in prehistory or history; or

**8.** It is listed or meets the criteria for being listed on the National Register of Historic Places.

## Section 70.070. HP permits.

**A. Applicability.** Within any HP zoning district, an HP permit must be obtained in accordance with the procedures of this section before any work is performed on or changes are made to any existing building, structure or lot unless expressly exempted under Subsection 70.070B. Examples of changes and work that require an HP permit include the erection, construction, reconstruction, renovation, alteration, painting, removal, or demolition of a building, structure, or lot, regardless of whether or not a building permit is required.

**Figure 70-4: HP Permits (Generally)**




**Preservation officer (staff) authorized to act on some applications.*

**B. Exemptions.** The applicability provisions of Subsection 70.070.A. notwithstanding, none of the following changes or work require an HP permit:

**1.** Ordinary maintenance and repair including the removal, installation, or replacement of guttering; the removal or replacement of roof covering with like material; and the application of any paint color to non-masonry surfaces;

**2.** The interior of buildings or structures;

**3.** Portions of buildings, structures, or sites not visible from adjoining streets;

**4.** Accessory structures or buildings, such as storage sheds, garages, decks, patios, fencing, swimming pools and pool houses that are not part of the primary structure, provided that the structures or buildings are not located in street yards;

**5.** Installation of radio or television antennas that are not visible from abutting streets;

**6.** General landscape maintenance and planting of new organic materials;

**7.** Work required for temporary stabilization of a building or structure due to damage;

**8.** Installation, removal, or alteration of park furnishings within City of Tulsa parks, such as benches, tables, bicycle racks, planters, statues, lighting, trash receptacles, and drinking fountains, provided they have not been identified as historic resources within the design guidelines governing the applicable HP zoning district;

**9.** Installation, removal, or alteration of shade canopies or similar open-air shade structures within City of Tulsa parks, provided they are no more than 10 feet in height, and provided they have not been identified as historic resources within the design guidelines governing the applicable HP zoning district;

**10.** Removal or replacement of existing fencing with equivalent materials within City of Tulsa parks, provided the fencing has not been identified as a historic resource within the design guidelines governing the applicable HP zoning district;

**11.** Installation, removal, or alteration of sport courts, sport fields, swimming pools, and dog parks within City of Tulsa parks, inclusive of any fencing and lighting abutting the court, field, swimming pool, or dog park;

**12.** Installation, removal, or alteration of playground equipment and other recreational equipment within City of Tulsa parks, provided they are no more than 16 feet in height; and

**13.** Installation, removal, or alteration of signs within City of Tulsa parks that are erected and maintained pursuant to the discharge of governmental functions, or that are required by law, ordinance, or government regulation, or that are required to be posted in order to effectuate a legal right.

**C. Authority to file.** Applications for an HP permit may be filed only by the owner of the subject property or by the property owner's authorized agent.

**D. Application filing.** Complete HP permit applications must be filed with the preservation officer in a form established by the preservation commission. The application must be accompanied by plans of sufficient clarity and detail to show the nature of the work to be performed and the materials to be used. The plans must depict at least the following information:

**1.** The location, orientation and placement of existing and proposed structures on the site;

**2.** A floor plan, if applicable, identifying the location and limits of the proposed work;

**3.** Facade elevations, if applicable, of the proposed work in sufficient detail to identify existing and proposed materials and the location of the proposed work; and

**4.** Any other drawings, photographs, material brochures or samples, specifications, or information that may be necessary to determine compliance with HP district regulations and design guidelines.

**E. Meeting and final decision—Preservation commission.** Within thirty (30) days of receipt of a complete HP permit application, the preservation commission must meet to consider the application and act to approve the HP permit, approve the HP permit with modifications and/or conditions, or deny HP permit application based on the standards and review criteria of Subsection 70.070F. Failure of the preservation commission to take action within thirty (30) days of receipt of a complete HP permit application is deemed to constitute approval of the HP permit, unless the applicant requests or agrees to an extension of the thirty-day period.

**F. Standards and review criteria.** In its review of HP permit applications, the preservation commission must use the adopted design guidelines to evaluate the proposed work and must, to the greatest extent possible, strive to affect a fair balance between the purposes and intent of HP district regulations and the desires and need of the property owner. In addition, the preservation commission must consider the following specific factors:

**1.** The degree to which the proposed work is consistent with the applicable design guidelines;

**2.** The degree to which the proposed work would destroy or alter all or part of the historic resource;

**3.** The degree to which the proposed work would serve to isolate the historic resource from its surroundings, or introduce visual elements that are out of character with the historic resource and its setting, or that would adversely affect the physical integrity of the resource;

**4.** The degree to which the proposed work is compatible with the significant characteristics of the historic resource; and

**5.** The purposes and intent of the HP district regulations and this zoning code.

**G. Demolition requests.**

**1.** Any HP permit application for demolition, if not approved, is automatically stayed for a period of sixty (60) days, unless the preservation commission determines that the building or structure meets one of more of the following criteria:

**a.** It is imminently dangerous to life and property;

**b.** The building or structure does not contribute significantly to the district; or

**c.** The building or structure cannot be preserved.

**2.** During the sixty-day stay period, the preservation commission must consult with the property owner and other interested parties to find alternatives to demolition. Should alternatives acceptable to the property owner not be found, the HP permit for demolition will be deemed automatically approved and must be issued upon termination of the stay period.

**3.** Prior to the expiration of the sixty-day stay period, the preservation commission may request that the city council extend the stay for a period not to exceed an additional sixty (60) days. The preservation commission must provide written notice to the property owner of such request and of the date of the public hearing to consider the request. At the hearing, the city council must consider whether:

**a.** The preservation commission has presented reasonable alternatives that would preserve the structure;

**b.** Suitable alternatives have been found and further time is required to finalize arrangements for achieving such alternatives; and

**c.** The property owner desires further time to search for or continue action on available alternatives.

**4.** After notice and public hearing, the city council must vote to approve, approve with conditions, or deny the request for an extension of the stay period. If the request is denied the HP permit for demolition will be deemed automatically approved and must be issued upon termination of the original stay period.

**5.** During any period of the stay of demolition the property owner may use the property in question in any legal manner, except that no action may be taken that would place the property in danger of damage or destruction.

**H. Lapse of approval.**

**1.** An approved HP permit will lapse and become void two (2) years after it is approved by the preservation commission, unless a building permit for the work or improvements authorized has been issued and the project is commenced and thereafter diligently pursued to completion. If no building permit is required, the work that is the subject of the HP permit application must be completed within the two-year period.

**2.** The preservation commission may extend the expiration period by up to one year at the time of approval of the HP permit or any time before expiration of the approval.

**I. Transferability.** Approved HP permits run with the land and are not affected by changes of tenancy, ownership, or management.

**J. Amendments.** A request for changes in the specific nature of the approved HP permit or changes to any conditions attached to an approved HP permit must be processed as a new application.

**K. Action by Preservation Officer.**

**1.** The preservation officer is authorized to approve HP permit applications for proposed work on existing structures involving the replacement of existing materials with equivalent materials if the work complies with the design guidelines of the subject HP district.

**2.** The preservation officer is also authorized to approve HP permit applications for the following minor exterior alterations if the work complies with design guidelines of the subject HP district:

**a.** Installation of storm windows and doors;

**b.** Removal of non-historic materials, including but not limited to siding, storm windows and doors, awnings, shutters, retaining walls and fences; and

**c.** Removal of paint from historic masonry surfaces.

**3.** The preservation officer is authorized to approve HP permit applications for the replacement of trails or walkways within City of Tulsa parks with an alternative material if the work complies with the design guidelines of the subject HP district, provided that the location and size of the trail or walkway remain the same.

**L. Appeals.** Any final decision of the preservation commission may be appealed to the board of adjustment in accordance with Section 70.140.

*(Ord. No. 25212, §§ 2, 3, 12-20-2023)*

**Section 70.080. Zoning clearance and permits.**

**A. Applicability.** Property owners or their authorized agent must obtain a zoning clearance permit from the development administrator before constructing, moving, or structurally altering any building or structure or establishing or changing the use of any building or lot.

**B. Compliance with development regulations**

**1. Purpose.** The requirements of this section are intended to help ensure that rights-of-way, streets, sidewalks and other public improvements are in place and adequate to serve proposed developments in accordance with applicable regulations.

**2. Rezonings, special exceptions and residential uses.** Except as expressly stated in Subsection 70.080B.3., no building permit or zoning clearance permit may be issued until the subject lot or parcel for which the permit is sought has been determined to be in compliance with all applicable design and improvement requirements of the Tulsa Metropolitan Area Subdivision and Development Regulations, as evidenced by submittal of a recorded subdivision plat or ALTA/ACSM survey and separately recorded legal instruments. This requirement applies to any property for which:

**a.** A property owner-initiated zoning map amendment or development plan was approved after July 1, 1970;

**b.** A special exception was approved for any of the following:

(1) Group living use;

(2) Public, civic or institutional use;

(3) Outdoor assembly and entertainment use;

(4) Household living involving three (3) or more households on a single lot;

(5) Marina;

(6) Gun club;

(7) Crematory;

(8) Mausoleum; or

**c.** A building permit is requested for any of the following residential uses:

(1) Cottage house development;

(2) Patio house; or

(3) Townhouse.

**C. Application.**

**1.** Zoning clearance permit applications must be accompanied by a legal description of the lot and plans in duplicate, drawn to scale, showing at least the following information:

**a.** The actual shape and dimension of the lot;

**b.** The location and dimensions of all easements;

**c.** The location, size and height of any existing buildings or structures to be erected or altered;

**d.** The existing and intended use of each building or structure and portion of the lot;

**e.** The number of dwellings and buildings proposed; and

**f.** Other information required by the development administrator to determine compliance with all applicable provisions this zoning code.

**2.** If the zoning code requires that the use, structure, or other development feature must be separated or spaced a minimum distance from another use, structure, or development feature, the zoning clearance permit application must also be accompanied by the following information:

**a.** An aerial photograph identifying the location of the proposed use, structure or development feature at the center of a circle drawn to scale, the radius of which is the required separation distance from another use, structure or development feature;

**b.** The location of the nearest use, structure, or development feature from which the proposed use, structure or development feature must be separated; and

**c.** Verification of having provided a copy of the zoning clearance permit application, concurrent with the submission of the application, to the City Councilor for the City Council District in which the subject property is located.

**D. Action.** Following receipt of a complete application for a zoning clearance permit, the development administrator must review and take action on the permit. If the proposed development and construction complies with all applicable provisions of this zoning code, the permit must be issued. If the proposed development and construction does not

comply with one or more provisions of this zoning code, the permit must be denied. The applicant must be notified of the action taken, and if the permit is denied, notified of the specific reasons for denial.

*(Ord. No. 24382, §§ 17, 18, 6-10-2020; Ord. No. 24725, § 26, 11-17-2021)*

## Section 70.090. Interpretations of zoning code, zoning map, and approved development plans and site plans.

**A. Purpose and applicability.**

**1.** Day-to-day responsibility for administering and interpreting the provisions of this zoning code, including the zoning map, rests with the development administrator and land use administrator, whose decisions may be appealed to the board of adjustment, in accordance with the procedures of Section 70.140.

**2.** Occasionally, the zoning code may not sufficiently address an issue that arises in administering or interpreting the zoning code. In those cases, the development administrator may elect to issue, or a citizen may file an application for, a written zoning code interpretation to guide in future decision-making. The procedures of this section govern the issuance of such interpretations. The procedures also govern interpretations of the terms of approved development plans and site plans, such as those associated with PUDs, MPDs and CO zoning districts.

**B. Authority.** The land use administrator, as to the zoning map and approved development plans and site plans, and the development administrator, as to the zoning code, are authorized to issue written interpretations pursuant to this section. The land use administrator and the development administrator are also authorized to refer the matter to the board of adjustment for an interpretation or for guidance in making an interpretation.

**C. Application.** A complete application for a written interpretation request may be submitted either to the land use administrator or development administrator, as appropriate.

**D. Action.** Within thirty (30) days of receipt of a complete application, the land use administrator or development administrator, as appropriate, must (1) review and evaluate the interpretation request in light of the provisions that are the subject of the interpretation request and any other relevant documents (2) consult with affected staff and (3) prepare a written interpretation.

**E. Form.** The interpretation must be provided to the applicant in writing and filed in the official record of interpretations held by the development administrator.

**F. Official record.** The development administrator must maintain an official record of written interpretations and provide copies to the land use administrator. The record of interpretations must be available for public inspection in the office of the land use administrator and development administrator during normal business hours.

**G. Appeal of decision.** Appeals of written interpretations issued pursuant to this section may be taken to the board of adjustment in accordance with the appeal procedures of Section 70.140.

## Section 70.100. Administrative adjustments.

**A. Intent.** Administrative adjustments are intended to provide a streamlined approval procedure for minor (de minimis) modifications of selected zoning code regulations. Administrative adjustments are further intended to:

**1.** Allow development and construction that is in keeping with the general purpose and intent of zoning code regulations and the established character of the area in which the development or construction is located;

**2.** Provide flexibility that will help promote rehabilitation and reuse of existing buildings when such flexibility will not adversely affect nearby properties or neighborhood character; and

**3.** Provide flexibility for new construction when such flexibility is in keeping with the general purpose and intent of zoning code regulations and will not adversely affect nearby properties or surrounding neighborhood character.

**B. Authorized administrative adjustments.**

**1.** Administrative adjustments may be granted only as expressly identified in this section.

**a.** The land use administrator is authorized to grant an administrative adjustment reducing minimum required street setbacks by up to five (5) feet.

**b.** The land use administrator is authorized to grant an administrative adjustment reducing minimum required side and rear setbacks in any R district by up to twenty (20) percent.

**c.** The land use administrator is authorized to grant an administrative adjustment reducing minimum required side setbacks to no less than five (5) feet in any RM district to allow construction of a detached house or two-unit house.

**d.** The land use administrator is authorized to grant an administrative adjustment of build-to-zone regulations by up to twenty (20) percent.

**e.** The land use administrator is authorized to approve an administrative adjustment reducing minimum transparency requirements by up to ten (10) square feet or twenty (20) percent, whichever is greater.

**f.** The land use administrator is authorized to approve an administrative adjustment reducing minimum lot width and lot frontage requirements by up to ten (10) percent.

**g.** The land use administrator is authorized to approve an administrative adjustment waiving or modifying the parking structure design requirement of Subsection 40.280B. when the land use administrator determines that compliance with that requirement would result in a reduction in the number of parking spaces within the parking structure or necessitate mechanical ventilation of the garage.

**2.** The administrative adjustment procedures may not be used to vary, modify or otherwise override a condition of approval or requirement imposed by an authorized decision-making body.

**C. Authority to file.** Administrative adjustment applications may be filed by the owner of the subject property or by the property owner's authorized agent.

**D. Application filing.** Complete applications for administrative adjustments must be filed with the land use administrator. Applications must be accompanied by a letter of deficiency issued by the development administrator.

**E. Notice of filing/intent to approve.** Written notice of application filing must be delivered to all owners of property abutting the subject lot. The written notice must describe the nature of the requested administrative adjustment. It must also indicate the date on which the land use administrator will take action on the application and that the application will be available for review and comment until that date. Any interested party may submit written comments concerning the application to the land use administrator.

**F. Action by land use administrator.**

**1.** The land use administrator must review each application for an administrative adjustment and act to approve the application, approve the application with conditions, deny the application or refer the application to the board of adjustment for consideration as a variance.

**2.** The land use administrator may not take final action to approve or deny an administrative adjustment application until at least five (5) days after the required notices have been mailed.

**3.** The land use administrator decision to approve or deny an administrative adjustment must be based on the approval criteria and standards of Subsection 70.100G. and accompanied by written findings of fact.

**4.** At least once per calendar year, the land use administrator must provide to the board of adjustment a list of all administrative adjustment decisions.

**G. Standards and review criteria.** Administrative adjustments may be approved only when the land use administrator determines that the following general approval criteria and any specific criteria associated with the authorized administrative adjustment have been met:

**1.** The requested administrative adjustment is consistent with all relevant purpose and intent statements of this zoning code and with the general purpose and intent of the comprehensive plan;

**2.** The requested administrative adjustment will not have a substantial or undue adverse effect upon adjacent property, the character of the area or the public health, safety and general welfare; and

**3.** Any adverse impacts resulting from the administrative adjustment will be mitigated to the maximum extent feasible.

**H. Conditions of approval.** In granting an administrative adjustment, the land use administrator is authorized to impose conditions upon the subject property that are necessary to reduce or minimize any potentially adverse impacts on other property in the surrounding area, and to carry out the stated purpose and intent of this zoning code.

**I. Lapse of approval.** An approved administrative adjustment will lapse and become void three (3) years after it is granted by the land use administrator, unless a building permit for the work or improvements authorized has been issued and the project has

commenced and is diligently pursued to completion. If no building permit is required, the improvement that is the subject of the administrative adjustment must be in place within the three-year period.

**J. Transferability.** Approved administrative adjustments run with the land and are not affected by changes of tenancy, ownership, or management.

**K. Amendments.** A request for changes in the specific nature of an approved administrative adjustment or changes to any conditions attached to an approved administrative adjustment must be processed as a new administrative adjustment application, including all requirements for fees and notices.

**L. Appeals.** The applicant or any interested party may appeal the administrative adjustment decision of the land use administrator in accordance with Section 70.140.

**Section 70.110. Spacing and separation distance verification.**

**A. Applicability.** The spacing and separation distance verification procedure of this section applies whenever this zoning code requires that a use, structure or other development feature be separated or spaced a minimum distance from another use, structure or development feature. The procedure does not apply to a determination of compliance with building setback requirements that apply on individual lots.

**B. Action.** The development administrator may rely upon the evidence provided by the applicant with an application for a zoning clearance permit to verify that the proposed use, structure or other development feature complies with the applicable spacing and separation distance requirements of this zoning code. Only other uses, structures, or development features that have been legally established by the issuance of a certificate of occupancy, an active building permit, active sign permit or active zoning clearance permit will be considered in determining compliance with the applicable spacing and separation distance requirements. It is the responsibility of the applicant to provide all information requested by the development administrator to aid in the determination. For purposes of determining whether spacing and separation distance requirements are met, a zoning-clearance-only permit for the use, structure or development feature from which the subject use, structure or development feature must be separated is valid for one hundred eighty (180) days after it is issued.

**C. Appeal of decision.** Appeals of spacing and distance verification decisions of the development administrator may be appealed to the board of adjustment in accordance with Section 70.140.

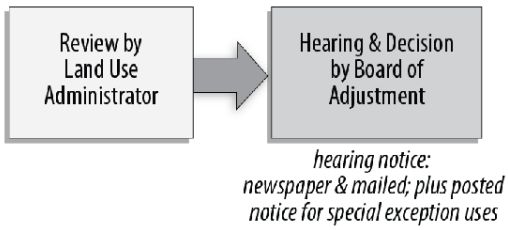
*(Ord. No. 24382, § 19, 6-10-2020)*

**Section 70.120. Special exceptions.**

**A. Authorized special exceptions.** Only those special exceptions expressly authorized in this zoning code may be approved as special exceptions.

**B. Authority to file.** Applications for special exception approval may be filed only by the owner of the subject property or by the property owner's authorized agent.

**Figure 70-5: Special Exception Process (Generally)**




**C. Application filing.** Complete applications for special exception approval must be filed with the land use administrator.

**D. Review and report—Land use administrator.** Following receipt of a complete application, the land use administrator must prepare a report on the proposed special exception. The report must be transmitted to the board of adjustment before the required public hearing.

**E. Notice of hearing.**

**1. Minor special exceptions.** Notice of the board of adjustment's required public hearing on any minor special exception application must be mailed to all owners of property that abut the subject property at least ten (10) days before the scheduled public hearing. (See Subsection 70.010F. for additional information on required mailed notices). Minor special exceptions are limited to the following:

**a.** A special exception to allow public or private schools at the primary, elementary, middle school or high school level to expand a principal building or construct an accessory building, structure or use or to permit a use that is an accessory use to an existing principal use, provided the improvement does not include new athletic stadiums or other outdoor athletic facilities that include spectator seating or high-intensity lighting;

**b.** A special exception to allow recreational vehicles to be parked or stored in a street yard or required side setback if the conditions listed in Subsection 45.150A. cannot be met;

**c.** Amendments to plot plans that were made condition of the granting of a special exception that involve an increase in building floor area of no greater than fifteen (15) percent and do not require the granting of any variances;

**d.** A special exception to allow any of the following improvements in public parks:

(1) Non-illuminated outdoor courts,

(2) Non-illuminated athletic fields,

(3) Playgrounds,

(4) Picnic shelters,

(5) Parking lots, and

(6) Renovation or expansion of existing buildings.

2. **Other Special Exceptions.** Except as expressly allowed for minor special exceptions under Subsection 70.120E.1., notice of the board of adjustment's required public hearing on a special exception application must be provided as follows (see Subsection 70.010F. for additional information on required newspaper, mail and posted notices).
   a. **Newspaper notice.** Notice must be published in the newspaper at least ten (10) days before the scheduled public hearing.
   b. **Mailed notice.** Notice must be mailed to the owner of the subject property and all owners of property within three hundred (300) feet of the subject property at least ten (10) days before the scheduled public hearing.
   c. **Posted notice.** For uses that require special exception approval, notice (signs) must be posted at least ten (10) days before the scheduled public hearing. Posting of signs is not required for non-use matters.

**F. Hearing and final decision—Board of adjustment.**

1. The board of adjustment must hold a public hearing on the special exception application. Following the close of the public hearing, the board of adjustment must act to approve the proposed special exception, approve the special exception with conditions and/or modifications or deny the special exception. Approval of a special exception requires an affirmative vote of at least three (3) members of the board of adjustment.
2. In approving a special exception, the board of adjustment is authorized to impose such conditions and restrictions as the board of adjustment determines to be necessary to ensure compliance with the standards of Subsection 70.120G., to reduce or minimize the effect of the special exception upon other properties in the area, and to better carry out the general purpose and intent of this zoning code.

**G. Approval criteria.** A special exception may be approved only if the board of adjustment makes each of the following findings:

1. That the special exception will be in harmony with the spirit and intent of this zoning code; and
2. That the special exception will not be injurious to the neighborhood or otherwise detrimental to the public welfare.

**H. Lapse of approval.**

1. An approved special exception will lapse and become void three (3) years after it is granted by the board of adjustment, unless a building permit has been issued and the project has commenced and is diligently pursued to completion. If no building permit is required, the use, improvement or activity that is the subject of the special exception must be in place within the three-year period.
2. The board of adjustment may extend the expiration period by up to one year at the time of approval of the special exception or any time before expiration of the approval. Requests for extensions after the special exception is approved must be processed in accordance with the special exception procedures, including applicable fees, notices and public hearings.

**I. Transferability.** Approved special exceptions run with the land and are not affected by changes of tenancy, ownership, or management.

**J. Amendments.**

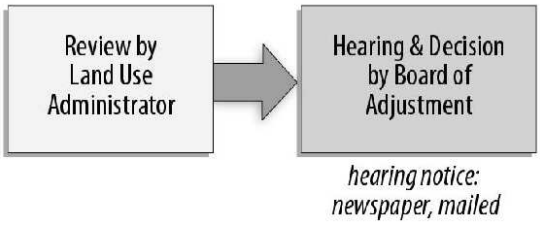
1. Amendments to approved special exceptions must be processed as new special exception applications, including all requirements for fees, notices and public hearings, provided that the development administrator is authorized to approve the following:
   a. Any structures or uses authorized to be approved by the development administrator at the time of special exception approval; and
   b. The addition or relocation of customary accessory uses and structures.
2. Applications for amendments to approved special exceptions must be filed in a form established by the land use administrator.

**K. Appeals.** Board of adjustment decisions on special exceptions may be appealed to District Court in accordance with Subsection 75.010K.

## Section 70.130. Variances.

**A. Intent.** A variance is a grant of relief to a property owner from strict compliance with the regulations of this zoning code. The intent of a variance is not to simply remove an inconvenience or financial burden that may result from compliance with applicable zoning requirements. Variances are intended to help alleviate an unnecessary hardship or practical difficulty that would be caused by strict enforcement of the subject zoning code requirements. They are intended to provide relief when the requirements of this zoning code render property very difficult or impossible to put to reasonable use because of some unique or special characteristics of the property itself.

**Figure 70-6: Variance Process**




**B. Authorized variances.** The board of adjustment is authorized to grant a variance to any regulation in this zoning code in accordance with the variance procedures of this section, except that the variance procedures may not be used to do any of the following:

1. Allow a principal or an accessory use in a zoning district that is not otherwise allowed in that zoning district (i.e., "use variances" are prohibited);
2. Allow an accessory use on a lot that is not occupied by the principal use that such accessory use serves;
3. Waive, modify or amend any definition or use classification;
4. Waive, modify or otherwise vary any of the review and approval procedures of this chapter;
5. Waive, vary, modify or otherwise override a condition of approval or requirement imposed by an authorized decision-making body or the state or federal government; or

**6.** Waive, vary or modify applicable residential density regulations, provided that this provision is not intended to prohibit variances to minimum lot area or width requirements that apply to lots occupied by a single dwelling unit.

**C. Authority to file.** Variance applications may be filed only by the owner of the subject property or by the property owner's authorized agent.

**D. Application filing.** Complete applications for variances must be filed with the land use administrator.

**E. Review and report—Land use administrator.** Following receipt of a complete application, the land use administrator must prepare a report on the requested variance. The report must be transmitted to the board of adjustment before the required public hearing.

**F. Notice of hearing.** Notice of the board of adjustment's required public hearing on a variance application must be provided as follows (see Subsection 70.010F. for additional information on required newspaper and mail notices).

**1. Newspaper notice.** Notice must be published in the newspaper at least ten (10) days before the scheduled public hearing.

**2. Mailed notice.** Notice must be mailed to the owner of the subject property and all owners of property within three hundred (300) feet of the subject property at least ten (10) days before the scheduled public hearing.

**G. Hearing and final decision—Board of adjustment.**

**1.** Following receipt of a complete variance application, the board of adjustment must hold a public hearing to consider the requested variance. Following the close of the public hearing, the board of adjustment must act to approve the requested variance, approve the variance with modifications and/or conditions, or deny the variance request based on the standards and review criteria of Subsection 70.130H. Approval of a variance requires an affirmative vote of at least three (3) members of the board of adjustment.

**2.** In approving a variance, the board of adjustment is authorized to impose such conditions and restrictions as the board determines to be necessary to ensure compliance with the standards of Subsection 70.130H., to reduce or minimize the effect of the variance upon other properties in the area, and to better carry out the general purpose and intent of this zoning code.

**H. Standards and review criteria.**

**1.** No variance may be approved unless the board of adjustment determines that the following facts, favorable to the property owner, have been established:

**a.** That the physical surroundings, shape, or topographical conditions of the subject property would result in unnecessary hardships or practical difficulties for the property owner, as distinguished from a mere inconvenience, if the strict letter of the regulations were carried out;

**b.** That literal enforcement of the subject zoning code provision is not necessary to achieve the provision's intended purpose;

**c.** That the conditions leading to the need of the requested variance are unique to the subject property and not applicable, generally, to other property within the same zoning classification;

**d.** That the alleged practical difficulty or unnecessary hardship was not created or self-imposed by the current property owner;

**e.** That the variance to be granted is the minimum variance that will afford relief;

**f.** That the variance to be granted will not alter the essential character of the neighborhood in which the subject property is located, nor substantially or permanently impair use or development of adjacent property; and

**g.** That the variance to be granted will not cause substantial detriment to the public good or impair the purposes, spirit, and intent of this zoning code or the comprehensive plan.

**I. Lapse of approval.**

**1.** An approved variance will lapse and become void three (3) years after it is granted by the board of adjustment, unless a building permit for the work or improvements authorized has been issued and the project has commenced and is diligently pursued to completion. If no building permit is required, the improvement that is the subject of the variance must be in place within the three-year period.

**2.** The board of adjustment may extend the expiration period by up to one year at the time of approval of the variance or any time before expiration of the approval. Requests for extensions after the variance is approved must be processed in accordance with the variance procedures, including applicable fees, notices and public hearings.

**J. Transferability.** Approved variances run with the land and are not affected by changes of tenancy, ownership, or management.

**K. Amendments.** A request for changes in the specific nature of the approved variance or changes to any conditions attached to an approved variance must be processed as a new variance application, including all requirements for fees, notices and public hearings.

**L. Appeals.** Board of adjustment decisions on variances may be appealed to District Court in accordance with Subsection 75.010K.

**Section 70.140. Appeals of administrative decisions.**

**A. Authority.** Appeals of administrative (staff-level) decisions on site plans go to the Planning Commission (See Subsection 70.050C.). The Board of Adjustment is authorized to hear and decide all other appeals where it is alleged there has been an error in any order, requirement, decision or determination made by the Land Use Administrator, the Development Administrator or any other Administrative Official in the administration, interpretation or enforcement of this Zoning Code. For the purpose of applying the procedures of Section 70.140 to appeal of any final decision of the Preservation Commission (See Subsection 70.070L.), the final decision of the Preservation Commission is deemed an administrative decision and the Preservation Commission is deemed an administrative official.

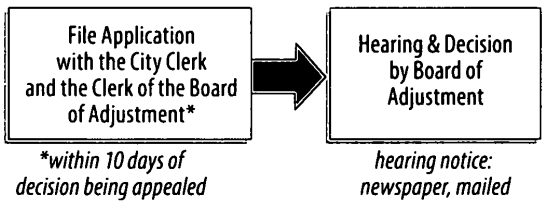



**Figure 70-7: Appeals of Administrative Decisions (Generally)**

**B. Right to appeal.** Appeals of administrative decisions may be filed by any person aggrieved by the land use administrator's, the development administrator's or other administrative official's decision or action. The board of adjustment is authorized to make determinations about whether individuals filing appeals are "aggrieved" by the decision or action.

**C. Application filing.**

**1.** Complete applications for appeals of administrative decisions must be filed with the Clerk of the Board of Adjustment and the City Clerk, who will accept the appeal on behalf of the administrative official who made the decision being appealed and forward it to said official.

**2.** Appeals of administrative decisions must be filed within ten (10) business days of the date of the decision being appealed.

**D. Effect of filing.** The filing of a complete notice of appeal stays all proceedings in furtherance of the action appealed, unless the land use administrator or the administrative official who made the decision being appealed certifies to the board of adjustment, after the appeal is filed, that, because of facts stated in the certification, a stay would cause immediate peril to life or property, in which case the proceedings will not be stayed unless by a restraining order, which may be granted by the board of adjustment or by a court of record based on due cause shown.

**E. Record of decision.** Upon receipt of a complete application of appeal, the land use administrator or other administrative official whose decision is being appealed must transmit to the board of adjustment all papers constituting the record related to decision being appealed

**F. Notice of hearing.** Notice of the board of adjustment's required public hearing must be provided as follows (see Subsection 70.010F. for additional information on required newspaper and mail notices).

**1. Newspaper notice.** Notice must be published in the newspaper at least ten (10) days before the scheduled public hearing.

**2. Mailed notice.** When an appeal affects a specific property, notice must be mailed to the owner of the subject property and all owners of property within three hundred (300) feet of the subject property at least ten (10) days before the scheduled public hearing.

**G. Hearing and final decision.**

**1.** The board of adjustment must hold a public hearing on the appeal.

**2.** Following the close of the public hearing, the board of adjustment must make its findings and take action on the appeal.

**3.** In exercising the appeal power, the board of adjustment has all the powers of the administrative official from whom the appeal is taken. The board of adjustment may affirm or may, upon the concurring vote of at least three (3) members, reverse, wholly or in part, or modify the decision being appealed.

**4.** In acting on the appeal, the board of adjustment must grant to the official's decision a presumption of correctness, placing the burden of persuasion of error on the appellant.

**H. Review criteria.** The decision being appealed may be reversed or wholly or partly modified only if the board of adjustment finds that the land use administrator, the development administrator or other administrative official erred.

**I. Appeals.** Board of adjustment decisions may be appealed to District Court in accordance with Subsection 75.010K.

*(Ord. No. 24725, §§ 27—29, 11-17-2021; Ord. No. 25330, § 16, 6-5-2024)*

## CHAPTER 75. ADMINISTRATION

Section 75.010. Board of adjustment.
Section 75.020. Preservation Commission.

### Section 75.010. Board of adjustment.

**A. Composition.** The board of adjustment must consist of five (5) members.

**B. Appointments.** Board of adjustment members must be appointed by the mayor and confirmed by the city council.

**C. Terms.** Members of the board of adjustment serve three-year terms.

**D. Vacancies.** In the event of a vacancy occurring in the membership of the board of adjustment for any reason, an appointment for the remainder of the vacant term must be made in the same manner as regular appointments.

**E. Removal.** A board of adjustment member may be removed for cause by the city council after notice, written charges and public hearing.

**F. Compensation.** Members of the board of adjustment serve without compensation.

**G. Officers.** The board of adjustment must elect a chairperson, vice chairperson and secretary.

**H. Rules of Procedure.** The board of adjustment must adopt rules necessary for the conduct of its affairs.

**I. Meetings.** Meetings are held at the call of the chairperson and at other times as the board of adjustment may determine. The chairperson, or in the chairperson's absence, the acting chairperson, may administer oaths and compel attendance of witnesses. All meetings of the board of adjustment must be conducted in compliance with the Oklahoma Open Meeting Act. The board of adjustment must keep records of its proceedings and official actions, all of which must be open to the public in compliance with the Oklahoma Open Records Act. Except as stated in Subsection 70.010K., the board of adjustment must decide all matters within ninety (90) days after the filing of a complete application.

**J. Powers and Duties.** The board of adjustment has the powers and duties that are expressly identified in this zoning code, including hearing and acting on applications for variances, special exceptions, land use spacing verifications and appeals of administrative decisions.

**K. Appeals to District Court.**

**1. Procedure.**

**a.** An appeal from any action, decision, ruling, judgment, or order of the board of adjustment may be taken by any person or persons who were entitled, pursuant to any provision of this zoning code, to mailed notice of the public hearing before the board of adjustment, by any person or persons whose property interests are directly affected by such action decision, ruling, judgment or order of the board of adjustment, or by the city council to the District Court of Tulsa County by filing with the city clerk and with the clerk of the board of adjustment within ten (10) days of the date of such action, a notice of appeal that specifies the grounds for the appeal. No bond or deposit for costs is required for such an appeal.

**b.** Upon filing of the notice of appeal, the board of adjustment must transmit to the clerk of the Tulsa County District Court, the original or certified copies of all papers constituting the record in the case, together with the order, decision or ruling of the board of adjustment.

**c.** The appeal is heard and tried de novo in the District Court of Tulsa County. An appeal from the action of the District Court may be taken as in all other civil actions. All issues in any proceedings under this section have preference over all other civil actions and proceedings.

**d.** Costs are not allowed against the board of adjustment unless the court finds that the board of adjustment, in making its decision, acted with gross negligence, in bad faith or with malice.

**2. Stay of Proceedings.** During the pendency of such an appeal, the effectiveness of a decision of the board of adjustment shall not be suspended unless a party applies to the district court for a stay pending the district court's determination of the merits of the appeal and the district court issues the stay. Stays in appeals from the board of adjustment to the district court shall be obtained only as set forth in Title 11 Oklahoma Statutes Section 44-110.

## Section 75.020. Preservation Commission.

**A. Composition.** Members of the preservation commission must have a demonstrated interest in historic preservation, as required by the Oklahoma State Historic Preservation Office, to maintain certified local government status with the National Park Service. The preservation commission must be composed of eleven (11) members appointed to positions as "professional members," "historic property owner members" and "allied commission members." The composition and qualifications of each class of members are as follows:

**1. Professional Members.** The professional membership of the preservation commission must be composed of five (5) members as follows:

**a.** One member must be a licensed architect;

**b.** One member must be a licensed landscape architect;

**c.** One member must be a developer or builder;

**d.** One member must be a licensed real estate broker; and

**e.** One member must be an architectural historian or historian.

**2. Historic Property Owner Members.** The historic property owner membership of the preservation commission must be composed of four (4) members, each of whom must own an individual National Register-listed property or a property within a National Register-listed or eligible historic district. For a district to be considered eligible, it must be identified as eligible for National Register listing in the Tulsa Historic Preservation Resource Guide and agreed to by the Oklahoma State Historic Preservation Office. At least three (3) of the four (4) historic property owner members must reside in their historic property, or within their listed or eligible historic district, and at least one of the historic property owner members must reside within an HP district.

3. **Allied commission members.** The allied commission membership must be composed of two (2) members, one of whom must be a member of the arts commission and one of whom must be a member of the planning commission.

**B. Appointments.** Professional members and historic property owner members of the preservation commission must be appointed by the mayor and confirmed by the city council. Allied commission members must be appointed by their respective commissions to serve on the preservation commission.

**C. Terms.**

1. **Length of terms.** The terms of office of all members of the preservation commission, except allied commission members, will be three (3) years. Allied commission members serve terms on the preservation commission commensurate with the terms of office served on their respective commissions, without any of the limitations on terms provided in this paragraph. Regardless of the expiration of any term of office, except in the event of death, resignation, or removal from office, all members of the preservation commission must continue to serve until their successor is duly appointed by the mayor.

2. **Limitation of terms.** No member of the preservation commission may serve more than three (3) consecutive terms of office on the preservation commission. Partial terms of office served by a member are not included in this limitation. After any member has served three (3) consecutive terms of office, that member is not eligible for reappointment to serve on the preservation commission until after that person has ceased to be a member of the preservation commission for at least one calendar year. The limitation provided in this paragraph does not apply to allied commission members.

**D. Vacancies.** In the event of a vacancy occurring in the membership of the preservation commission for any reason, an appointment for the remainder of the vacant term of office must be made in the same manner as regular appointments.

**E. Compensation.** Members of the preservation commission serve without compensation.

**F. Officers.** The preservation commission must annually elect from its members a chairperson, vice chairperson and secretary. Vacancies of officer positions must be filled in the same manner as regular election.

**G. Rules of Procedure.** The preservation commission must adopt rules necessary for the conduct of its affairs.

**H. Meetings.** The preservation commission must meet at least once a month for the purpose of transacting its business and duties. All meetings of the preservation commission must be conducted in compliance with the Oklahoma Open Meeting Act. The preservation commission must keep records of its proceedings and official actions, all of which must be open to the public in compliance with the Oklahoma Open Records Act.

**I. Quorum.** A simple majority of the entire membership of the preservation commission, regardless of vacancies, constitutes a quorum for the transaction of business.

**J. Minimum vote.** Issues must be decided by at least a simple majority vote of a quorum.

**K. Conflict of interest.** Members of the preservation commission to whom some private benefit, directly or indirectly, may come as a result of a public action taken by the preservation commission, should not be a participant in that action. The possibility, not actuality, of a conflict should govern. The individual experiencing a conflict of interest must declare their interest, and abstain from voting on the matter. The individual may not discuss the matter with a fellow member or a member of the city council or planning commission for the purpose of influencing a decision on the action.

**L. Staff.** The Tulsa Planning Office, or such other department, division or section as directed by the mayor, must provide staff to the preservation commission to assist in the performance of its duties.

**M. Powers and duties.** The powers and duties of the preservation commission are as follows:

**1.** Prepare, or cause to be prepared, a comprehensive inventory of historic resources within the City of Tulsa and update the inventory as deemed necessary.

**2.** Prepare, or cause to be prepared, proposed HP zoning map amendments and amendments to the historic preservation plan.

**3.** Prepare reports and recommendations on HP zoning map amendments in accordance with Section 70.060.

**4.** Promulgate design guidelines as necessary for the review and approval of applications for HP permits and inform residents, property owners, and the general public of those guidelines. Design guidelines must relate to the significant characteristics of the historic resources being proposed for HP zoning. Design guidelines must be developed by the preservation commission and include the input of property owners and other parties directly affected by proposed HP zoning. Design guidelines are subject to approval and adoption by the city council, after a public hearing by the planning commission, and the recommendation of the preservation commission and planning commission.

**5.** Act upon applications for HP permits and perform other duties as set forth in Section 70.070.

**6.** Make recommendations to the mayor and the city council concerning grants and programs from federal and state agencies, private groups and individuals and the utilization of budgetary appropriations to promote the preservation of historic resources in the city.

**7.** Coordinate and oversee such programs and projects as may be directed by the mayor or the city council.

**8.** Recommend to the mayor the need for employing staff and making contracts with professional and technical experts as may be required for the furtherance of preservation commission work.

**9.** Increase public awareness of the historic resources and disseminate information to the public concerning historic resources in the city deemed worthy of preservation. Provide notification, as effectively as possible, to property owners within HP zoning districts of the rights and responsibilities associated with HP zoning of their properties. Advise and disseminate information to property owners on the preservation, conservation, protection, enhancement, perpetuation, and use of historic resources.

**10.** Place, or cause to be placed, monuments, markers, or other identifying elements at locations of historic resources as funds are available.

**11.** Coordinate, comment on and make recommendations to the appropriate body concerning actions undertaken by other city, state, and federal agencies with respect to the effect of such actions upon the historic resources in the City of Tulsa.

**12.** Consider methods other than those provided for in this zoning code for encouraging and achieving preservation of historic resources in the City of Tulsa and make appropriate recommendations to the mayor, the city council and to other bodies and agencies, public and private.

**13.** Prepare, or cause to be prepared, studies and reports, and undertake other preservation related tasks as may be deemed appropriate.

**14.** Prepare, or cause to be prepared, in accordance with the goals and objectives set forth for neighborhood conservation in the comprehensive plan, programs and plans designed to implement neighborhood stabilization, revitalization, and conservation in those neighborhoods that are fifty (50) years or older which may not qualify for historic or HP zoning designation, yet represent valuable resources to the City of Tulsa and its citizens.

**15.** Perform any other duties and functions imposed by this zoning code or which may be specified by the mayor and city council.

*(Ord. No. 25055, § 11, 5-24-2023)*

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## CHAPTER 80. NONCONFORMITIES

Section 80.010. General.
Section 80.020. Nonconforming lots.
Section 80.030. Nonconforming structures.
Section 80.040. Nonconforming uses.
Section 80.050. Sexually oriented business establishment.
Section 80.060. Nonconforming signs.
Section 80.070. Nonconforming development features.

### Section 80.010. General.

**A. Intent.** The adoption and amendment of the zoning code text and map, beginning with the adoption of the city's first zoning code in 1923, has resulted in some lots, uses and structures becoming nonconforming (i.e., established in compliance with regulations in effect at the time of their establishment, but which would be prohibited under subsequently adopted regulations). The nonconformity regulations of this chapter are intended to explain the effect of this nonconforming status and help differentiate nonconformities, which have legal status under this zoning code, from zoning violations, which are illegal and subject to penalties and enforcement action. The regulations of this chapter are also intended to:

**1.** Recognize the interests of landowners in continuing to use their property for uses that were lawfully established;

**2.** Promote maintenance, reuse and rehabilitation of existing buildings; and

**3.** Place reasonable limits on nonconformities that have the potential to adversely affect surrounding properties.

**B. Authority to continue.** Any nonconformity that existed on the effective date specified in Section 1.030 or any lot, structure use or situation that becomes nonconforming upon adoption of any amendment to this zoning code or any amendment of the zoning map subsequent to the effective date specified in Section 1.030 may be continued, subject to the regulations of this chapter.

**C. Determination of nonconforming status.**

**1.** The burden of proving that a nonconformity exists (as opposed to a zoning code violation) rests entirely with the subject owner.

**2.** The development administrator is authorized to determine whether reliable evidence of nonconforming status has been provided by the subject owner.

**3.** Building permits, zoning clearance reports, lawfully recorded plats, lawfully recorded instruments of conveyance, aerial photography owned by a governmental agency and other official government records that indicate lawful establishment of the use, lot or structure constitute conclusive evidence of nonconforming status. If such forms of conclusive evidence are not available, the development administrator is authorized to consider whether other forms of evidence provided by the owner are reliable and adequate to document nonconforming status. Common examples of evidence that may be determined to be reliable and adequate include:

**a.** Professional registrations or business licenses;

**b.** Utility billing records;

**c.** Rent records;

**d.** Advertisements in dated publications;

**e.** Listings in telephone or business directories; and

**f.** Notarized affidavits affirming the date of lawful establishment of the use or structure.

**4.** The development administrator's determination of nonconforming status may be appealed in accordance with Section 70.140.

**D. Repairs and maintenance.**

**1.** Repairs and normal maintenance necessary to keep a nonconformity in sound condition are permitted unless the work increases the extent of the nonconformity or is otherwise expressly prohibited by this zoning code.

**2.** If a nonconforming structure or a structure occupied by a nonconforming use becomes physically unsafe or unlawful due to lack of repairs and maintenance, and a final order of vacation or demolition is entered by any duly authorized official by reason of physical condition, it may not thereafter be used, restored, or repaired, or rebuilt except in conformity with the provisions of the zoning district in which it is located.

**3.** Nothing in this chapter is intended to prevent nonconformities from being structurally strengthened or restored to a safe condition in accordance with an order from a duly authorized public official.

**E. Change of tenancy or ownership.** Nonconforming status runs with the land and is not affected by changes of tenancy, ownership or management.

**Section 80.020. Nonconforming lots.**

**A. Description.** A nonconforming lot is a lot that does not comply with the applicable minimum lot area, minimum lot width, minimum street frontage or minimum open space requirements of the subject zoning district and that meets at least one of the following criteria:

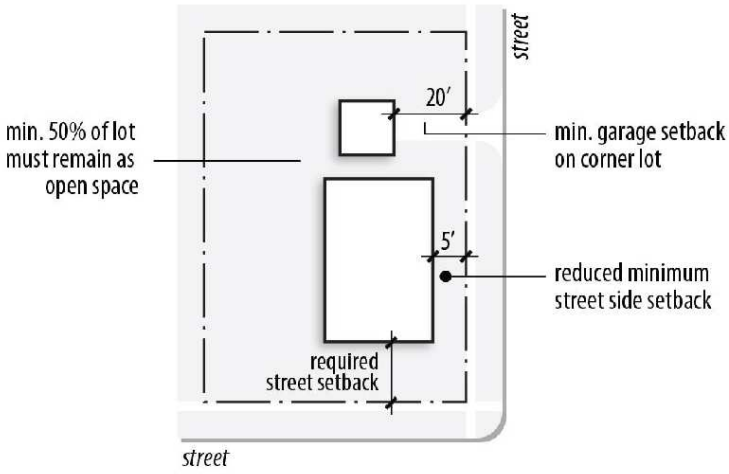
**1.** The lot was a lot of record on or before July 1, 1970;

**2.** The lot is located within a subdivision approved by the planning commission; or

**3.** The lot is a lot of record for which a recorded instrument of conveyance bears the endorsement of the planning commission.

**B. Nonconforming lots in residential zoning districts.** In residential zoning districts, a single detached house may be erected on a nonconforming lot without complying with the minimum lot area, minimum lot area per unit, minimum lot width, minimum street frontage or minimum open space per unit requirements of the subject zoning district, provided that at least fifty (50) percent of the lot area remains as open space. All other lot and building regulations apply, except that detached houses may be erected on corner lots that are nonconforming with regard to lot width, subject to a reduced minimum street side building setback of five (5) feet. Garages that are accessed through a side yard abutting a street must be set back at least twenty (20) feet.

**Figure 80-1: Detached House on Nonconforming Lot in R District**




**C. Nonconforming lots in nonresidential zoning districts.** In nonresidential districts, on any lot of record created on or before July 1, 1970, or on any lot within a subdivision having received approval of the planning commission, or any lot of record for which a recorded instrument of conveyance bears the endorsement of the planning commission a permitted use may be located on such lot irrespective of its street frontage. Such uses are subject to compliance with other lot and building regulations of the district and applicable use regulations.

## Section 80.030. Nonconforming structures.

**A. Description.** A nonconforming structure is a structure, other than a sign, that was lawfully established but that no longer complies with applicable zoning regulations because of the adoption or amendment of zoning regulations after the structure was established.

**B. Use.** A nonconforming structure may be used for any use allowed in the zoning district in which the structure is located, including a lawfully established nonconforming use.

**C. Movement.** A nonconforming structure may be moved in whole or in part to another location on the same lot only if the movement or relocation does not create additional or new nonconformities. A nonconforming structure may be moved to another lot only if the structure would comply with the zoning regulations that apply to that (relocation) lot.

**D. Alterations, enlargements and expansions.** Alterations, including enlargements and expansions, are permitted if the proposed alteration or expansion complies with all applicable lot and building regulations and does not increase the extent of the nonconformity. A building with a nonconforming street setback, for example, may be expanded to the rear as long as the rear expansion complies with applicable rear setback regulations and all other applicable lot and building regulations. Horizontal and vertical extensions of an exterior wall that is nonconforming with regard to

applicable setbacks may be approved in accordance with the special exception procedures of Section 70.120, provided the extensions are not located closer to the lot line than the existing structure.

**E. Restoration or re-establishment of damaged or destroyed structures.**

**1.** Antenna-supporting structures, if damaged or destroyed by any means, may be reconstructed, provided the supporting structure is placed in the same location and has no greater height or area that the structure it replaces.

**2.** If any other nonconforming structure is damaged or partially destroyed by any means to the extent of more than fifty (50) percent of its replacement cost at time of damage, it may be restored as a nonconforming structure only if approved in accordance with the special exception procedures of Section 70.120. In order to approve a special exception for re-establishment of a nonconforming structure, the board of adjustment must find that restoration as a conforming structure cannot reasonably be made in view of the nature and extent of the nonconformity and the nature and extent of the damages.

**3.** If a nonconforming structure is damaged or partially destroyed by any means to the extent of fifty (50) percent or less of its replacement cost at time of damage it may be restored as a nonconforming structure.

**4.** Re-establishment as a nonconforming structure may not increase the extent of nonconformity, except that the board of adjustment is authorized to approve a special exception for building additions that increase the extent of nonconformity if the board of adjustment determines that such additions:

**a.** Do not increase the habitable or leasable floor area of the building; and

**b.** Are required to be provided because of building or energy code amendments adopted after construction of the original building.

**5.** In all cases, any permits required to restore the damaged structure must be obtained within two (2) years of the date of damage. If required permits are not obtained within two (2) years, the structure's nonconforming status is lost.

## Section 80.040. Nonconforming uses.

**A. Description.** A nonconforming use is a use that was lawfully established in accordance with all zoning regulations in effect at the time of its establishment but that is no longer allowed by the use regulations of the zoning district in which the use is located. Lawfully established uses that do not comply with separation distance (spacing) requirements are also deemed to be nonconforming uses.

**B. Change of use.**

**1.** A nonconforming use in a residential zoning district may be changed only to a use that is allowed in the subject zoning district. Once changed to a conforming use, the nonconforming use may not be re-established.

**2.** A nonconforming use located in a zoning district other than a residential zoning district, may be changed to a use that is allowed in the subject zoning district, in which case the nonconforming use may not be re-established. A nonconforming use located in a zoning district other than a residential zoning district, may be changed to another nonconforming use only if approved in accordance with the special exception procedures of Section 70.120. The change of a use to another use

included within the same use category does not constitute a "change of use" within the meaning of this section. In order to approve a special exception for a nonconforming use substitution, the board of adjustment must find that the proposed use substitution will not result in any increase in adverse impacts on the surrounding area when compared to the previous nonconforming use of the property. In making such a determination, the board of adjustment must consider all of the following factors, as applicable:

**a.** Traffic to and from the site;

**b.** Hours of operation;

**c.** Outdoor display, storage and work activities; and

**d.** Other factors likely to have an effect on the surrounding area.

**C. Expansion of use.** A nonconforming use of a portion of a building may be expanded or extended into the remaining portions of the building if the development administrator determines that the areas of the building in which the expansion is proposed were manifestly arranged and designed for the use. Nonconforming use may not be expanded or extended in any other way unless the expansion reduces or eliminates the nonconformity.

**D. Movement.** A nonconforming use may be moved in whole or in part to another location on the same lot only if the movement or relocation does not create additional or new nonconformities. A nonconforming use may be moved to another lot only if the use would comply with the zoning regulations that apply to that (relocation) lot.

**E. Loss of nonconforming status.**

**1.** If a structure containing a nonconforming use is damaged or partially destroyed to the extent of more than fifty (50) percent of its replacement cost at time of damage, the nonconforming use may be re-established only if approved in accordance with the special exception procedures of Section 70.120. In order to approve a special exception for re-establishment of a nonconforming use, the board of adjustment must find that re-establishment will not result in any increase in adverse impacts on the surrounding area when compared to the previous nonconforming use of the structure. In making such a determination, the board of adjustment must consider all of the following factors, as applicable:

**a.** Traffic to and from the site;

**b.** Hours of operation;

**c.** Outdoor display, storage and work activities; and

**d.** Other factors likely to have an effect on the surrounding area.

**2.** If a nonconforming use is changed to a conforming use, no matter how short the period of time, all nonconforming use rights are lost and re-establishment of the nonconforming use is prohibited.

**3.** If a nonconforming use of a building is discontinued for thirty-six (36) consecutive months or for thirty-six (36) months during any four-year period, the nonconforming use may not be re-established. Periods of time when governmental action impedes access to or the use of the premises are not counted as periods of discontinuance.

**F. Nonconforming use of unimproved land.** Nonconforming uses of unimproved land are land uses and activities that meet the definition of a nonconforming use but that include structures that are all accessory or incidental to the use and in the aggregate do not cover more than ten (10) percent of the lot area devoted to the nonconforming use. Common examples include storage yards, construction debris sites, used vehicle sales lots, vehicle impound yards, auto wrecking, junkyards, and similar open-air uses. Nonconforming uses of unimproved land are subject to the nonconforming use regulations of this section (Section 80.040), except as modified by the following specific regulations:

**1.** No nonconforming use of unimproved land may be changed to another nonconforming use, nor enlarged, increased or moved to another portion of the lot, nor extended to occupy a greater area of land than was occupied at the time that the use became nonconforming.

**2.** No additional structure (other than fences) may be erected in connection with a nonconforming use of unimproved land.

**3.** If any nonconforming use of unimproved land ceases for any reason for a period of more than ninety (90) days, (except when government action impedes access to or use of the premises) any subsequent use of such land must conform in all respects to the regulations of the zoning district in which it is located.

## Section 80.050. Sexually oriented business establishment.

A sexually oriented business establishment lawfully existing on the effective date specified in Section 1.030, or any subsequent amendment, but that does not comply with any parking, loading, spacing or screening requirement of this zoning code, is deemed nonconforming. Such use may continue subject to the following provisions:

**A.** No such use may be enlarged or extended.

**B.** No such use may be changed to another use that does not comply with parking, loading, screening and spacing requirements, except that changes to an office or retail use are permitted, and the board of adjustment is authorized to approve a change to another use otherwise permitted by right or special exception within the subject zoning district, even though such use does not comply with applicable parking, loading, screening or spacing requirements.

**C.** A change of a use from one type of sexually oriented business establishment to another type of sexually oriented business establishment is considered a change of use and is not permitted unless the new use complies with all applicable requirements of this zoning code.

**D.** If the use of a nonconforming sexually oriented business establishment is discontinued for any reason whatsoever for a period of one hundred eighty (180) days or more, such use may not be reestablished unless it complies with all of the requirements of this zoning code.

**E.** If two (2) or more existing sexually oriented business establishments are separated by a lesser distance than required by this zoning code, the first sexually oriented business establishment licensed and continually operating at a particular location will be deemed the conforming use with regard to required spacing and separation distances and all later established sexually oriented business establishments will be deemed the nonconforming use with regard to required spacing distance.

## Section 80.060. Nonconforming signs.

**A. Description.** A nonconforming sign is a sign that was lawfully established but that no longer complies with applicable zoning code regulations because of the adoption or amendment of regulations after the sign was established.

**B. Off-premise outdoor advertising signs.** Nonconforming off-premise outdoor advertising signs may continue subject to the following provisions:

**1.** Nonconforming off-premise outdoor advertising signs must be maintained in good repair and safe condition, in accordance with Subsection 80.010D. No permits may be issued for upgrades or modifications of nonconforming signs. The conversion of a dynamic display component of a sign to a different dynamic display method or technology is considered a sign modification.

**2.** If an off-premise outdoor advertising sign is nonconforming by reason of restrictions on its brightness or illumination or its use of strobe or beacon lights, the sign must be immediately removed or made to conform.

**3.** If a nonconforming off-premise outdoor advertising sign is damaged or partially destroyed to the extent of more than fifty (50) percent of its replacement cost at the time of damage, the sign must be removed or made to conform to all applicable regulations within ninety (90) days of the date of the date of damage or destruction.

**4.** If a nonconforming off-premise outdoor advertising sign is not used for advertising purposes for a period of one hundred eighty (180) consecutive days, the nonconforming off-premise outdoor advertising sign is deemed to have been abandoned and must be removed. A sign that directs attention to the sign owner's outdoor advertising business, commodity, or service is not considered "outdoor advertising" for purposes administering and enforcing the provisions of this paragraph.

**C. On-premise signs.** Nonconforming on-premise signs may continue subject to the following provisions:

**1.** Nonconforming on-premise signs must be maintained in good repair and safe condition, in accordance with Subsection 80.010D. No permits may be issued for upgrades or modifications of nonconforming signs.

**2.** If an on-premise sign is nonconforming by reason of restrictions on its brightness or illumination or its use of strobe or beacon lights, the sign must be immediately removed or made to conform.

**3.** A window sign that is nonconforming by reason of restrictions on its sign area must be immediately removed or made to conform.

**4.** If a nonconforming on-premise sign is damaged or partially destroyed to the extent of more than fifty (50) percent of its replacement cost at the time of damage, the sign must be removed or made to conform to all applicable regulations within ninety (90) days of the date of the date of damage or destruction.

**5.** If the on-premise sign is not used for advertising purposes for a period of one hundred eighty (180) consecutive days, the sign is deemed abandoned and must be removed.

**D. Strobe lights and beacons.** Search lights, strobe lights and rotating beacon lights that are visible from public right-of-way are prohibited and must be removed immediately, except as otherwise required by law.

*(Ord. No. 25330, § 17, 6-5-2024)*

## Section 80.070. Nonconforming development features.

**A. Description.** A nonconforming development feature is any aspect of a development—other than a nonconforming lot, nonconforming structure, nonconforming use or nonconforming sign—that was lawfully established in accordance with zoning regulations in effect at the time of its establishment but that no longer complies with one or more applicable zoning regulations. Common examples are off-street parking areas that contain fewer spaces than required by current regulations and sites that do not comply with current landscaping, screening or lighting regulations.

**B. General.** Nonconforming development features may remain except as otherwise expressly stated in this zoning code, but the nature and extent of nonconforming development features may not be increased.

## CHAPTER 85. VIOLATIONS, PENALTIES AND ENFORCEMENT

Section 85.010. Responsibility for enforcement.
Section 85.020. Violations.
Section 85.030. Continuing violations.
Section 85.040. Remedies and enforcement powers.
Section 85.050 Remedies cumulative.
Section 85.060. Persons subject to penalties.
Section 85.070. Enforcement procedures.
Section 85.080. Appeals.

### Section 85.010. Responsibility for enforcement.

The development administrator, the code enforcement division, and any other officials or agencies designated by the mayor have responsibility for enforcing this zoning code. All departments, officials, agencies and employees vested with the authority to review, recommend or issue development approvals, permits or licenses must act in accordance with the provisions of this zoning code.

*(Ord. No. 25330, § 18, 6-5-2024)*

### Section 85.020. Violations.

Unless otherwise expressly allowed by this zoning code or state law, any violation of a provision of this zoning code—including any of the following—are subject to the remedies and penalties provided for in this zoning code:

**A.** To use land, buildings or other structures in any way that is not consistent with the requirements of this zoning code;

**B.** To erect a building or other structure in any way not consistent with the requirements of this zoning code;

**C.** To install or use a sign in any way not consistent with the requirements of this zoning code;

**D.** To engage in the use of a building, structure or land, the use or installation of a sign, or any other activity requiring one or more permits or approvals under this zoning code without obtaining such required permits or approvals;

**E.** To engage in the use of a building, structure or land, the use or installation of a sign, or any other activity for which a permit or approval has been granted under this zoning code or under previous zoning codes of the city in any way inconsistent with such permit or approval or any conditions imposed on the permit or approval;

**F.** To violate the terms of any permit or approval granted under this zoning code or under previous zoning codes of the city or any condition imposed on the permit or approval;

**G.** To obscure, obstruct or destroy any notice required to be posted under this zoning code;

**H.** To violate any lawful order issued by any authorized public official;

**I.** To continue any violation after receipt of notice of a violation; or

**J.** To fail to install or maintain required landscaping and screening material.

### Section 85.030. Continuing violations.

Each day that a violation continues constitutes a separate violation of this zoning code.

## Section 85.040. Remedies and enforcement powers.

The city has all remedies and enforcement powers allowed by law, including, without limitation, all of the following:

**A. Fines.** Any person violating any provisions of this zoning code or failing to comply with any of its requirements may be deemed guilty of a misdemeanor punishable by a fine of not more than one thousand two hundred dollars ($1,200.00) or by imprisonment not exceeding six (6) months, or by both fine and imprisonment.

**B. Withhold permit.**

**1.** The development administrator may deny or withhold all permits, certificates or other forms of authorization on any land or structure or improvements upon which there is an uncorrected violation of a provision of this zoning code or of a condition or qualification of a permit, certificate, approval or other authorization previously granted by the city. This enforcement provision may be used regardless of whether the current owner or applicant is responsible for the violation in question.

**2.** The development administrator may deny or withhold all permits, certificates or other forms of authorization on any land where an uncorrected violation exists. The development administrator may also withhold all permits, certificates or other forms of authorization on any other land owned by the owner of land on which an uncorrected violation exists. This enforcement provision may be used regardless of whether the property for which the permit or other approval is sought is the property in violation.

**3.** Instead of withholding or denying a permit or other authorization, the development administrator may grant such authorization subject to the condition that the violation be corrected.

**C. Revoke permits.**

**1.** A permit, certificate or other form of authorization required under this zoning code may be revoked by the development administrator when the development administrator determines:

**a.** That there are unapproved significant, material departures from approved plans or permits;

**b.** That the development permit was procured by false representation or was issued by mistake; or

**c.** That any of the provisions of this zoning code or approval previously granted by the city are being violated.

**2.** Written notice of revocation must be served upon the owner, the owner's agent or contractor, or upon any person employed on the building or structure for which such permit was issued. If no persons can reasonably be served with notice, the notice must be posted in a prominent location.

**D. Stop work.** With or without revoking permits, the development administrator may stop work on any building or structure on any land on which there is an uncorrected violation of a provision of this zoning code or of a permit or other form of authorization issued under this or previous zoning codes.

**E. Injunctive relief.** The city may seek an injunction or other equitable relief in court to stop any violation of this zoning code or of a permit, certificate or other form of authorization granted under this or previous zoning codes.

**F. Forfeiture and confiscation of signs on public property.** Any sign installed or placed on public property, except in compliance with the regulations of this zoning code will be considered forfeited to the public and subject to confiscation. In addition to other remedies and penalties of this chapter, the city has the right to recover from the sign owner or person who placed the sign, the full costs of sign removal and disposal.

**G. Abatement.** The city may seek a court order in the nature of mandamus, abatement, injunction or other action or proceeding to abate or remove a violation or to otherwise restore the premises in question to the condition in which they existed prior to the violation.

**H. Other penalties, remedies and powers.** The city may seek such other penalties and remedies as are provided by law.

**I. Continuation of previous enforcement actions.** Nothing in this zoning code prohibits the continuation of previous enforcement actions, undertaken by the city pursuant to previous valid ordinances and laws.

### Section 85.050 Remedies cumulative

The remedies and enforcement powers established in this zoning code are cumulative, and the city may exercise them in any combination or order.

### Section 85.060. Persons subject to penalties.

The owner or tenant of any building, structure, premises, or part thereof, and any architect, builder, contractor, or agent, or other person who commits, participates in, assists in, or maintains such violations may each be found guilty of a separate offense and be subject to penalties, remedies and enforcement actions.

### Section 85.070. Enforcement procedures.

**A. Non-emergency matters.** In the case of violations of this zoning code that do not constitute an emergency or require immediate attention, the development administrator must give notice of the nature of the violation to the property owner by personal service, U.S. first class mail or by posting notice on the premises. Notices of violation must state the nature of the violation and the time period for compliance and may state the corrective steps necessary and the nature of subsequent penalties and enforcement actions should the situation not be corrected.

**B. Emergency matters.** In the case of violations of this zoning code that constitute an emergency situation as a result of public health or safety concerns if not remedied immediately, the city may use the enforcement powers available under this zoning code without prior notice, but the development administrator must attempt to give notice to the property owner simultaneously with beginning enforcement action.

### Section 85.080. Appeals.

A determination made by the development administrator or other administrative officials that a zoning code violation has occurred may be appealed by the affected party in accordance with Section 70.140.

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## CHAPTER 90. MEASUREMENTS

Section 90.010. Fractions and rounding.
Section 90.020. Lot area.
Section 90.030. Lot area per unit.
Section 90.040. Floor area.
Section 90.050. Floor area ratio.
Section 90.060. Lot width.
Section 90.065. Lot depth.
Section 90.070. Frontage or street frontage.
Section 90.080. Open space per unit.
Section 90.090. Setbacks.
Section 90.100. Parking setbacks.
Section 90.110. Build-to-zone.
Section 90.120. Building coverage.
Section 90.130. Ceiling height.
Section 90.140. Transparency.
Section 90.150 Street-facing building entrances.
Section 90.160. Building height.
Section 90.170. Other height measurements.
Section 90.180. Noise and sound.
Section 90.190. Occupancy.

### Section 90.010. Fractions and rounding.

When calculations required under this zoning code result in fractions, the results must be rounded as follows:

**A. Minimum requirements.** When a regulation is expressed in terms of a minimum requirement, any fractional result must be rounded up to the next consecutive whole number. For example, if a minimum requirement of one tree for every thirty (30) feet is applied to a fifty-foot strip, the resulting fraction of 1.67 is rounded up to two (2) required trees.

**B. Maximum limits.** When a regulation is expressed in terms of maximum limits, any fractional result must be rounded down to the preceding whole number. For example, if a maximum limit of one dwelling unit for every three thousand seven hundred fifty (3,750) square feet of lot area is applied to an eight thousand-square-foot lot, the resulting fraction of 2.13 is rounded down to two (2) allowed dwelling units.

### Section 90.020. Lot area.

Lot area is measured as the total ground-level surface area contained within the property lines of a lot.

### Section 90.030. Lot area per unit.

Lot area per unit is a measure of residential density. It governs the amount of lot area required for each dwelling unit on the subject lot. To determine the number of dwelling units allowed on a lot, divide the area of the lot by the minimum lot-area-per-unit requirement, and round any fractional result down to a whole number. If, for example, a minimum lot-area-per-unit requirement of one thousand seven hundred fifty (1,750) feet is

applied to a ten thousand-square-foot lot, a maximum of five (5) units would be allowed on that lot (5.71 rounded down to five (5)). In applying minimum lot-area-per-unit requirements to fraternity, sorority and rooming/boarding house uses, each six hundred (600) square feet of floor area is counted as one dwelling unit.

### Section 90.040. Floor area.

The floor area of a building is measured as the sum of the gross horizontal areas of all floors within the building, including basements, as measured from the exterior faces of the exterior walls or from the centerline of walls separating 2 buildings. The floor area of enclosed required off-street parking areas is not included in the measurement of floor area.

### Section 90.050. Floor area ratio.

The floor area ratio (FAR) is the floor area of all buildings on a lot, divided by the area of that lot.

### Section 90.060. Lot width.

Lot width refers to the average horizontal distance between the side property lines of a lot. Lot width is calculated as follows:

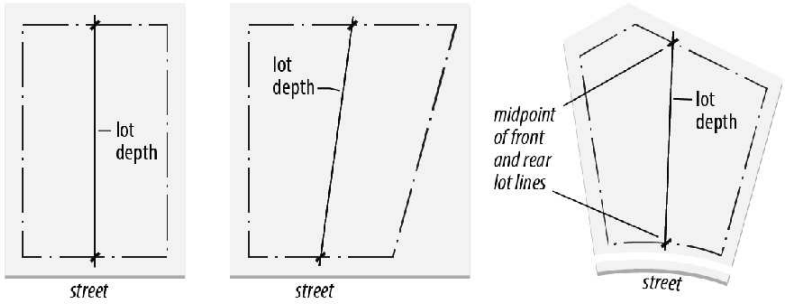
Lot Width = Lot Area (square feet) divided by (/) Lot Depth (feet)

*(Ord. No. 25330, § 19, 6-5-2024)*

### Section 90.065. Lot depth.

Lot depth is measured as the distance, in a straight line, between the midpoint of the front lot line and the midpoint of the rear lot line.

**Figure 90-1: Lot Depth Measurement**

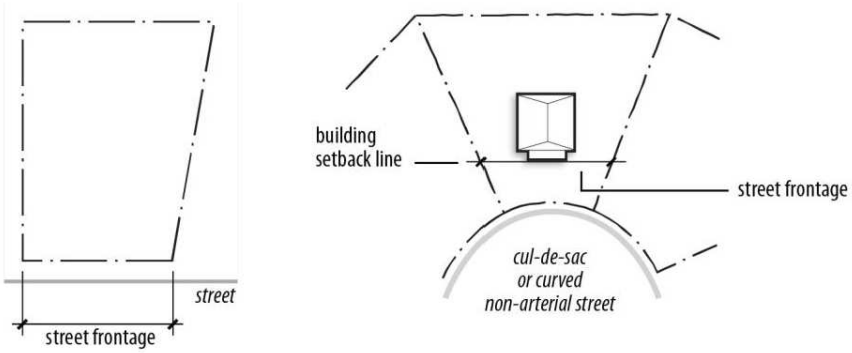



*(Ord. No. 25330, § 20, 6-5-2024)*

### Section 90.070. Frontage or street frontage.

Street frontage is measured between side property lines of a lot along the property line that abuts the street. For purposes of determining compliance with zoning district lot and building regulations, the frontage of a lot that abuts a cul-de-sac or similarly curved non-arterial street may be measured along the required setback line. Lot boundaries that abut a limited access freeway are not considered street frontage for the purpose of complying with zoning district lot and building regulations.

**Figure 90-2: Street Frontage Measurement**




## Section 90.080. Open space per unit.

**A.** Open space per unit refers to the amount of outdoor open space required to be provided on a lot for each dwelling unit on the subject lot. Multiply the minimum open space-per-unit requirement by the number of dwelling units to determine the total amount of open space required on a lot. In applying minimum open space-per-unit requirements to fraternity, sorority and rooming/boarding house uses, each six hundred (600) square feet of floor area is counted as one dwelling unit.

**B.** The following may be counted toward satisfying minimum open space-per unit requirements:

**1.** Outdoor areas that are not occupied by buildings, driveways or parking areas and are generally useable by residents;

**2.** Driveways and parking areas located in the rear yard of a detached house or duplex; and

**3.** Green roofs covering twenty-five (25) percent or more of the subject building's overall roof area.

**C.** Required open space within a townhouse development may be provided on each townhouse lot or may be provided in outdoor common areas within the townhouse development, as designated on the recorded subdivision plat or in a separately recorded legal instrument.

## Section 90.090. Setbacks.

**A. Measurement.** Required setbacks are measured from the applicable lot line, right-of-way, planned right-of-way or location referred to below. Building setbacks are measured to the nearest exterior building wall. Minimum setbacks that apply to other features (parking areas, fences, storage areas) are measured from the nearest point of the area or feature for which a setback is required. See Subsection 90.090C. for information on structures and building features that are allowed to occupy setback and yard areas in R zoning districts. Unless otherwise expressly stated, no part of any structure may be located within the street right-of-way, nor within the planned right-of-way of streets shown on the major street and highway plan, nor within twenty-five (25) feet of the centerline of the right-of-way on streets not shown on the

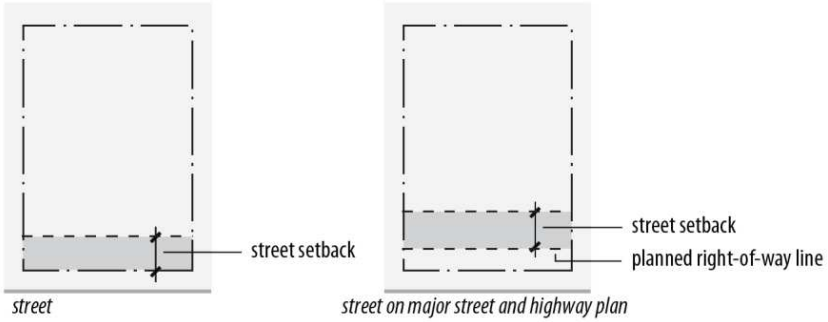
major street and highway plan. If a variance of the prohibition against location of a structure within the right-of-way or planned right-of-way is granted by the Board of Adjustment, no part of any structure may be located within the street right-of-way, nor within the planned right-of-way of streets shown on the major street and highway plan, nor within twenty-five (25) feet of the centerline of the right-of-way on streets not shown on the major street and highway plan, unless a license has been granted by the city, in the case of the right-of-way, or a removal agreement has been entered into, in the case of the planned right-of-way.

**1.** Street setbacks are measured from the actual right-of-way line of the street (other than an alley), provided that if the following measurement results in a greater setback, the greater setback applies:

**a.** For streets shown on the major street and highway plan, if the width of the planned right-of-way exceeds the width of the actual right-of-way, the measurement must be taken from the planned right-of-way; and

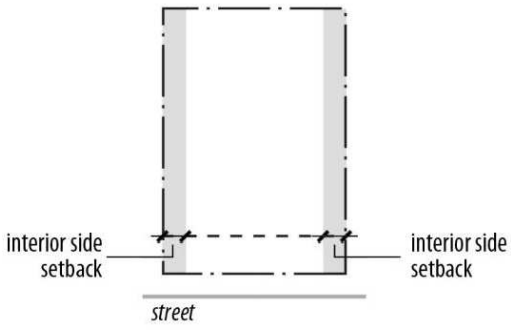
**b.** For streets not shown on the major street and highway plan, if the width of the right-of-way is fifty (50) feet or less, the measurement must be taken from a point that is twenty-five (25) feet from the centerline of the actual right-of-way.

**Figure 90-3: Street Setback Measurement**



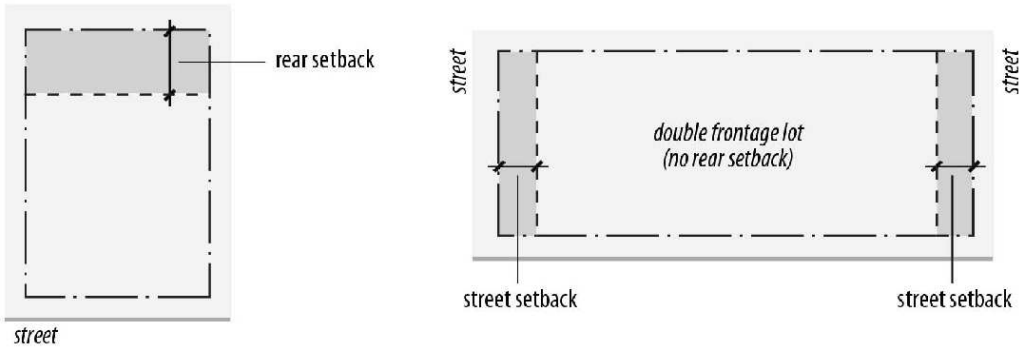

**2.** Side (interior) setbacks are measured from a side lot line that does not abut a street.

**Figure 90-4: Side (Interior) Setback Measurement**



**3.** Rear setbacks are measured from the rear lot line, except on double-frontage lots. On double-frontage lots, street setbacks apply from all property lines that abut streets.

**Figure 90-5: Rear Setback Measurement**

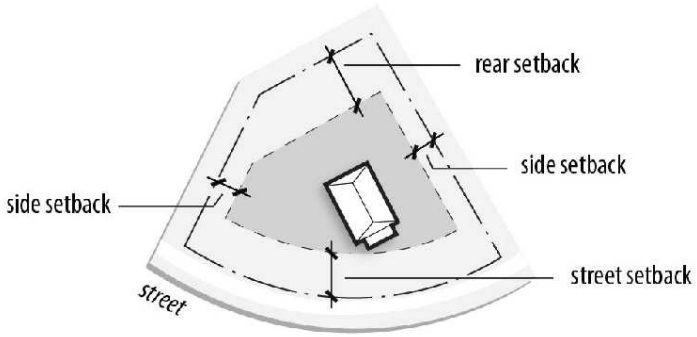



**B. Setbacks on Irregular Lots.** Setbacks are measured from lot lines towards the center of the lot, as follows:

**1.** Generally, setbacks are measured as set out in Subsection 90.090A.

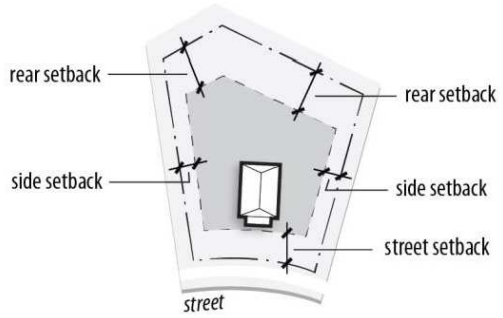
**2.** When lot lines are curvilinear, setbacks must be measured parallel to the curvilinear lot line.

**Figure 90-6: Setbacks from Curvilinear Lot Lines**



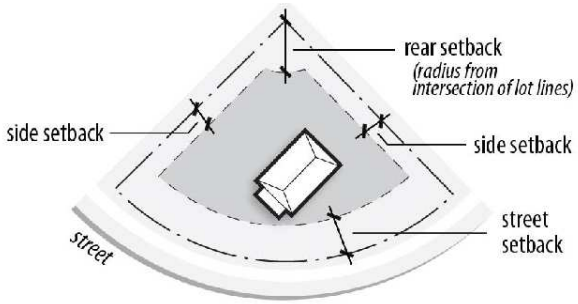

**3.** When there are multiple rear lot lines, the rear setback must be measured from each of rear lot lines.

**Figure 90-7: Setbacks from Multiple Rear Lot Lines**




**4.** When there is no rear lot line, the rear setback must be measured as a radial distance from the intersection of side lot lines at the rear of the lot.

**Figure 90-8: Rear Setback Measurement When there is No Rear Lot Line**




**C. Permitted setback obstructions in R zoning districts** Setbacks in R zoning districts must be unobstructed and unoccupied from the ground to the sky except as indicated in Table 90-1:

**Table 90-1: Permitted Setback Obstructions in R Zoning Districts**

| Obstruction | Setback | | |
|---|---|---|---|
| | **Street** | **Side** | **Rear** |
| Accessory buildings (see also Subsection 90.090C.2.) | No | No | Yes |
| Air conditioning units | No | Yes | Yes |
| Arbors and trellises | Yes | Yes | Yes |
| Awnings, canopies, light shelves and architecturally integrated solar shading devices projecting no more than two (2) feet into the setback | Yes | Yes | Yes |
| Barbeque pits and outdoor fireplaces | No | No | Yes |
| Bay windows projecting no more than two (2) feet into the setback | Yes | Yes | Yes |
| Carports | Yes [1] | Yes [2] | Yes [2] |

| Obstruction | Setback | | |
|---|---|---|---|
| | Street | Side | Rear |
| Chimneys and flues projecting no more than two (2) feet into the setback | Yes | Yes | Yes |
| Clotheslines | No | Yes | Yes |
| Decks, patios, and other features and structures less than thirty (30) inches in height above grade | Yes | Yes | Yes |
| Eaves and gutters projecting no more than two (2) feet into the setback | Yes | Yes | Yes |
| Fences and walls (see also Section 45.080) | Yes | Yes | Yes |
| Fire escapes projecting no more than four and one-half (4.5) feet into the setback | Yes | Yes | Yes |
| Flagpoles and similar features | Yes | Yes | Yes |
| Geothermal heat pumps and geothermal heat exchange system equipment up to four (4) feet in height above grade | No | No | Yes |
| Green houses and hoop houses | No | No | Yes |
| Insulation added to the outside of the exterior wall of an existing building | Yes | Yes | Yes |
| Plants and cold frames | Yes | Yes | Yes |
| Rainwater harvesting equipment projecting no more than four and one-half (4.5) feet into the setback | Yes | Yes | Yes |
| Recreational equipment (e.g., swing sets, playground equipment, tree houses, etc.) | No | No | Yes |
| Satellite dish antennas | See Section 45.180 | | |
| Signs (see also Chapter 60) | Yes | Yes | Yes |
| Sills, belt courses, cornices and similar architectural features projecting no more than two (2) feet into the setback | Yes | Yes | Yes |
| Solar energy systems, building-mounted | No | Yes | Yes |
| Solar energy systems, ground-mounted | No | No | Yes |
| Swimming pools and tennis courts | No [3] | No | Yes |
| Vehicle parking/storage, inoperable (see also Section 45.140) | No | No | Yes |
| Wheelchair lifts and ramps that meet federal, state and local accessibility standards | Yes | Yes | Yes |

**Table 90-1 Notes:**

**[1]** Special exception approval required; see Subsection 90.090C.1.

**[2]** Must be setback at least three (3) feet from side and rear lot lines.

**[3]** May be allowed in the street setback within a rear yard.

1. **Carports.** Carports are allowed in street setbacks and yards in R zoning districts only if approved in accordance with the special exception procedures of Section 70.120. Any carport that occupies all or a portion of the street setback or street yard area must comply with the following regulations, unless otherwise expressly approved by the board of adjustment as part of the special exception process:

   **a.** A carport may be a detached accessory building or an integral part of the principal building.

   **b.** The area of a carport may not exceed twenty (20) feet in length by twenty (20) feet in width.

**c.** A detached carport may not exceed eight (8) feet in height at its perimeter or eighteen (18) feet in height at its highest point. A carport erected as an integral part of the principal building may not exceed eight (8) feet in height within ten (10) feet of a side lot line or eighteen (18) feet at its highest point.

**d.** The carport structure must be setback from side lot lines by a minimum distance of five (5) feet or the depth of the principal building setback, whichever is a greater distance from the side lot line.

**e.** The carport structure may project into the required street setback by a maximum distance of twenty (20) feet. This distance must be measured from the required street setback line or the exterior building wall of the principal building, whichever results in the least obstruction of the street setback.

**f.** All sides of a carport that are within the required street setback must be open and unobstructed, except for support columns, which may not obstruct more than fifteen (15) percent of the area of any side.

**g.** The entire area under a carport may be used only for storage of operable, licensed motor vehicles (i.e., cars, boats, pickup trucks, vans, sport utility vehicles), which are customarily accessory to the dwelling. No other use of the carport area is allowed.

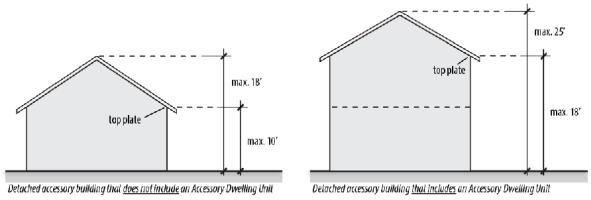
**2. Detached Accessory Buildings in R Districts.**

**a.** Detached accessory buildings may be located in rear setbacks, provided that:

(1) The building does not exceed one story or 18 feet in height and is not more than 10 feet in height to the top of the top plate; and

(2) The building does not exceed two stories or 25 feet in height and is not more than 18 feet in height to the top of the top plate if it contains an accessory dwelling unit on the second floor; and

**Figure 90-9: Maximum Height of Accessory Buildings in Rear Setbacks**




(3) Garage doors are limited to 8 feet in height; and

(4) Building coverage in the rear setback does not exceed the maximum limits established in Table 90-2:

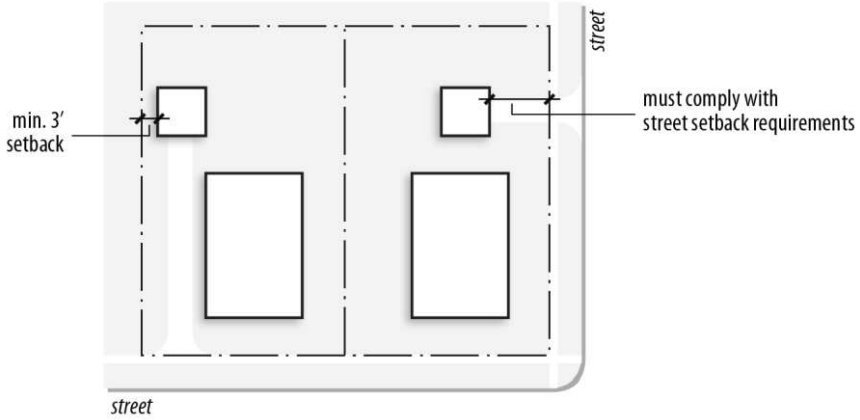
**Table 90-2: Accessory Building Coverage Limits in Rear Setback**

| Zoning District | Maximum Coverage of Rear Setback |
|---|---|
| RE and RS-1 Districts | 30% |
| RS-2 District | 35% |

| Zoning District | Maximum Coverage of Rear Setback |
|---|---|
| RS-3, RS-4, RS-5, RD, RT, and RM Districts | 40% |

**b.** Detached accessory buildings in the rear setback must be set back at least 3 feet from all interior lot lines. For lot lines abutting street right-of-way, detached accessory buildings must comply with the same setback requirements that apply to principal buildings.

**Figure 90-10: Required Setbacks for Accessory Buildings in Rear Setbacks within R District**




**c.** Nonconforming detached accessory buildings in the rear yard that are set back less than three (3) feet from interior lot lines may be expanded or demolished and reconstructed without complying with the three-foot setback requirements, provided that the reconstructed or expanded building complies with all of the following requirements:

(1) It is no closer to any interior lot line than the existing nonconforming structure;

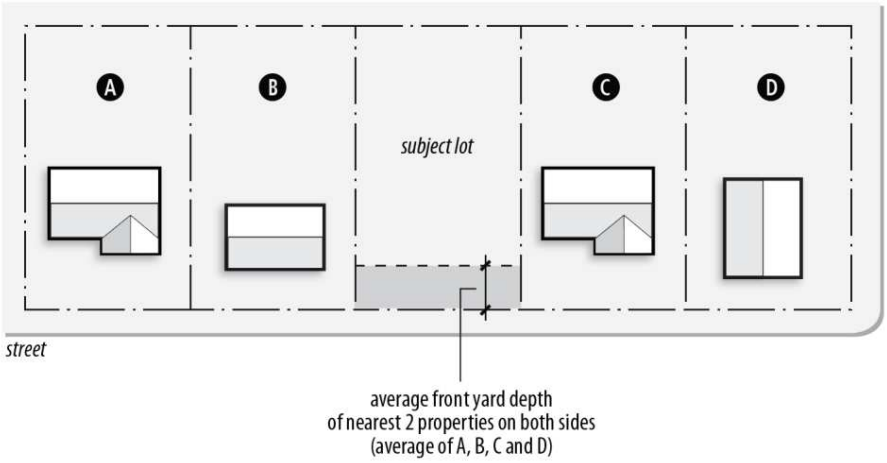
(2) It is not over one story in height;

(3) It does not cover more of the required rear yard than permitted in Subsection 90.090C.2.a.(2); and

(4) It does not exceed five hundred (500) square feet in floor area if the building does not comply with the setback requirements of Subsection 90.090C.2.b.

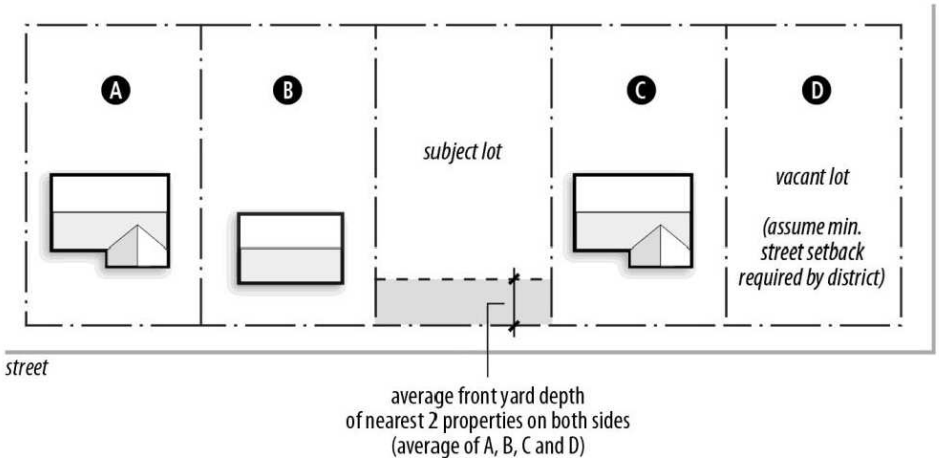
**D. Contextual setbacks.** When existing buildings on one or more abutting lots are closer to the street (front or street side) property line than the otherwise required setback, additions to existing buildings or construction of new buildings on the subject lot may comply with the average street yard depth that exists on the nearest two (2) lots on either side of the subject lot instead of complying with the zoning district's minimum street setback requirement. Existing yard depths must be based on the front corners of the buildings on the lots used in the contextual setback determination that are nearest to the subject lot.

**Figure 90-11: Contextual Setbacks (1)**



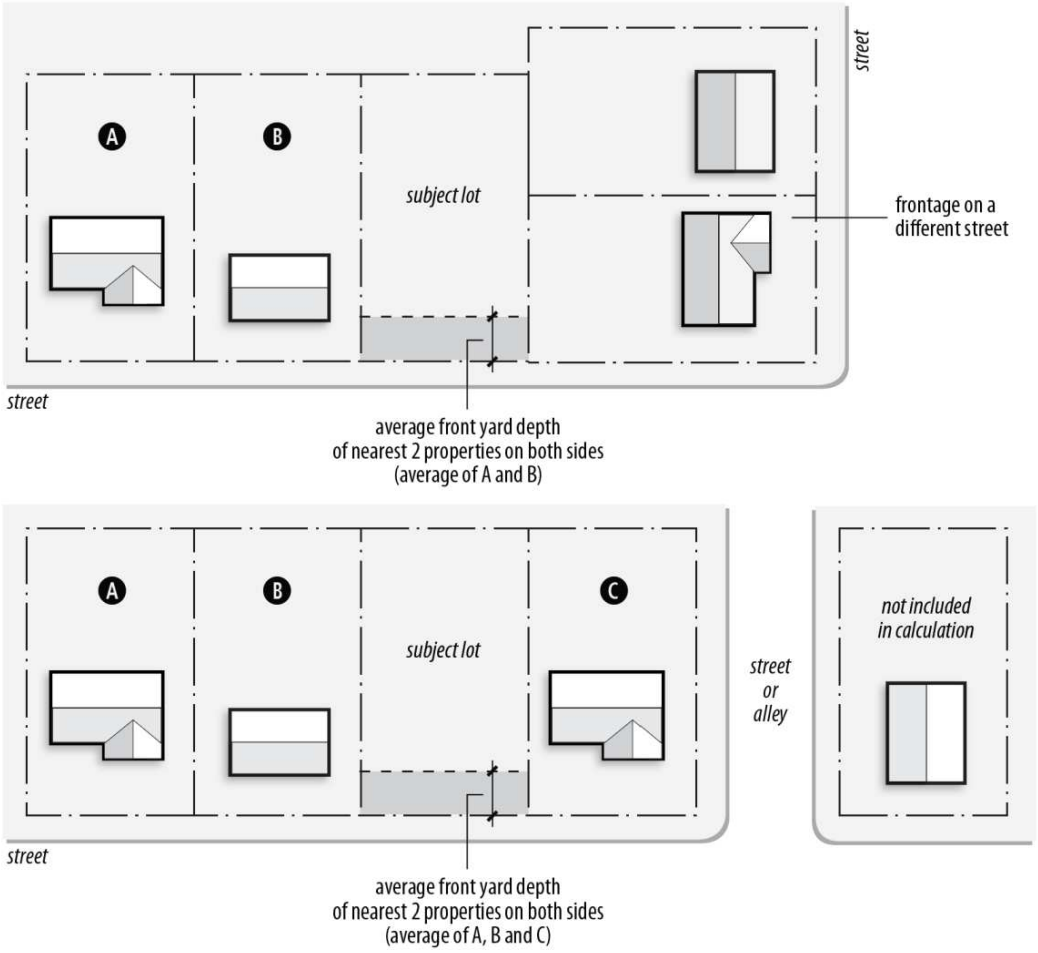

**1.** If one or more of the lots required to be included in the averaging calculation is vacant, that vacant lot will be deemed to have a street yard depth equal to the minimum street setback requirement of the subject zoning district.

**Figure 90-12: Contextual Setbacks (2)**



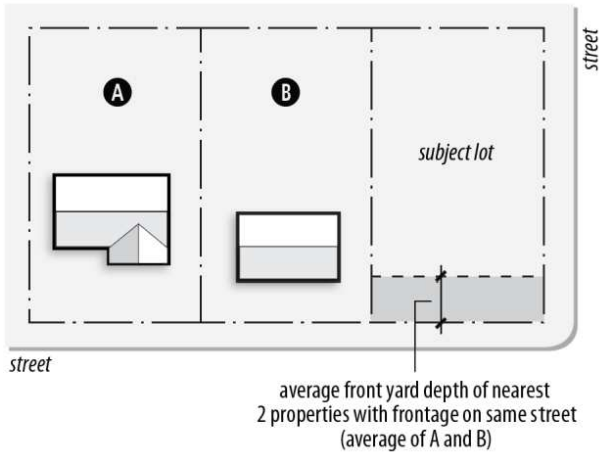

**2.** Lots with frontage on a different street than the subject lot or that are separated from the subject lot by a street or alley may not be used in computing the average.

**Figure 90-13: Contextual Setbacks (3)**



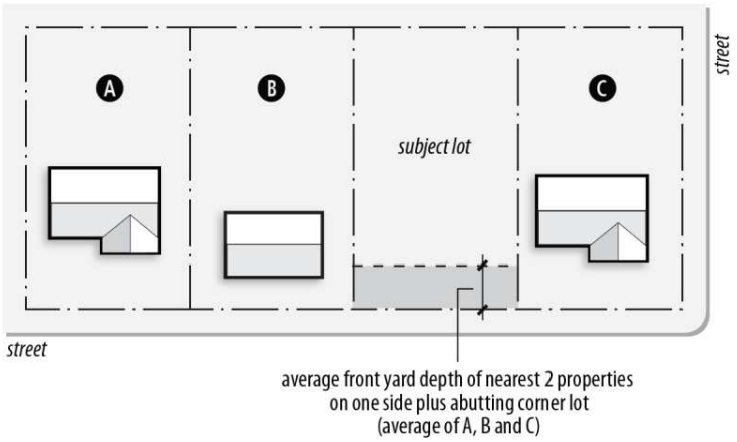

**3.** When the subject lot is a corner lot, the average street yard depth will be computed on the basis of the nearest two (2) lots with frontage on the same street as the subject lot.

**Figure 90-14: Contextual Setbacks (4)**




**4.** When the subject lot abuts a corner lot with frontage on the same street, the average street yard depth will be computed on the basis of the abutting corner lot and the nearest two (2) lots with frontage on the same street as the subject lot.

**Figure 90-15: Contextual Setbacks (5)**




**5.** These contextual setback provisions may not be used to reduce the setback of a street-facing garage door to less than twenty (20) feet.

*(Ord. No. 25429, § 19, 10-30-2024)*

## Section 90.100. Parking setbacks.

**A.** All on-site parking spaces must be located behind any applicable parking setback line. This requirement applies whether such spaces are located in a surface (open-air) parking lot or in a parking structure. Parking setbacks do not apply to on-street parking spaces, parking spaces located in an underground structure or parking spaces located above the ground floor.

**B.** Parking setbacks are measured in accordance with Subsection 90.090A.

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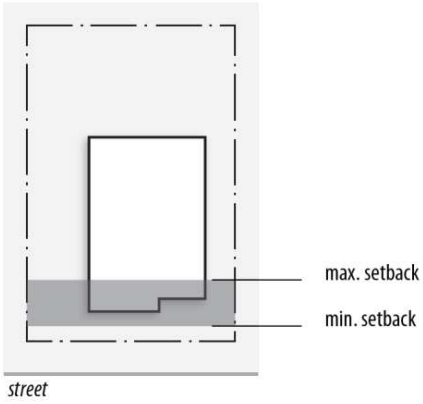
## Section 90.110. Build-to-zone.

**A.** The build-to-zone is the area on the lot where all or a portion of the street-facing building façade must be located, established as a minimum and maximum setback range, measured in accordance with the setback measurement provisions of Subsection 90.090A.

**B.** The street-facing building façade must be located in and extend along the length of the build-to-zone for a minimum distance equal to a percentage of the width of the lot, as required by specific provisions of this zoning code. The required minimum percentage is calculated by dividing the width of the building façade located within the build-to-zone by the width of the lot. For purposes of this calculation, the width of the lot is the narrowest width of the lot within the build-to-zone.

**Figure 90-16: Build-to-Zone**




**C.** On corner lots, the development administrator is authorized to designate which street is the primary street and which street is the secondary or side street. The primary street designation must be based on consideration of the following criteria:

**1.** The street with the highest functional street classification;

**2.** The street that the lot takes its address from; and

**3.** The street parallel to an alley within the block.

**D.** On corner lots, the building must be within the required build-to-zone for the first twenty-five (25) feet extending from the intersection of the two (2) street rights-of-way.

## Section 90.120. Building coverage.

Building coverage is the total area of a lot covered by principal and accessory buildings. Only building areas beneath a roof are counted for purposes of measuring building coverage. A porch with a roof, for example, is counted, but an uncovered deck structure is not considered building coverage.

## Section 90.130. Ceiling height.

Ceiling height is measured from the finished floor to the ceiling immediately above. At least fifty (50) percent of the enclosed ground floor area must comply with established

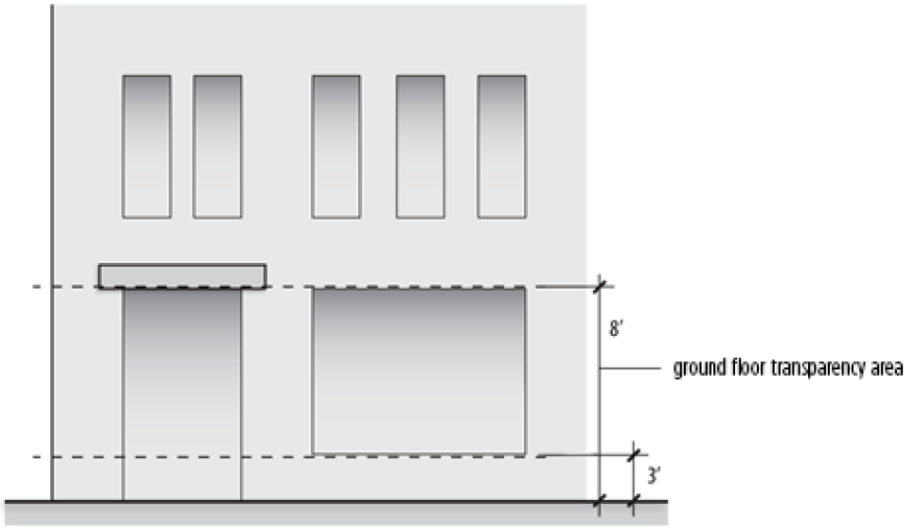
floor-to-ceiling height requirements and all of the first thirty (30) feet of building depth, measured from the principal street-facing façade, must comply with established ceiling height requirements. Buildings in existence or that were the subject of an approved building permit before the effective date specified in Section 1.030 are exempt from ceiling height requirements.

## Section 90.140. Transparency.

**A.** Transparency regulations govern the percentage of a street-facing building façade that must be covered by transparent elements (e.g., transparent windows and doors). Such transparent elements shall be designed and maintained to provide views into and out of the building, and shall not be permanently obstructed by fixed elements, such as signage, shelving, furniture, etc.

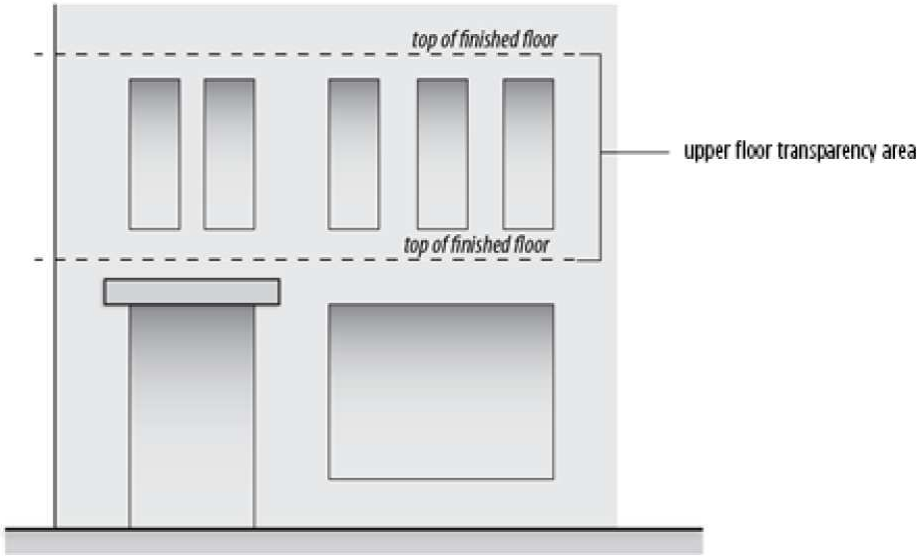
**B.** Unless otherwise expressly stated, the transparency area of a ground floor facade is measured between three (3) and eight (8) feet above the adjacent curb. Such transparent elements shall not begin higher than three (3) feet above the level of the adjoining curb and shall have a minimum width of two (2) feet.

Figure 90-17: Ground Floor Transparency Measurement




**C.** The transparency of an upper story facade is measured from top of the finished floor to the top of the finished floor above. When there is no floor above, upper story transparency is measured from the top of the finished floor to the top of the wall plate.

**Figure 90-18: Upper Floor Transparency Measurement**




**D.** Glazed elements used to satisfy minimum transparency requirements must be clear and non-reflective and not be painted or tinted (transparent, low-emissivity glass is permitted).

**Section 90.150 Street-facing building entrances.**

**A.** Required street-facing building entrances must provide ingress and egress for residents and customers. Additional entrances off another street, pedestrian area or internal parking area are also permitted.

**B.** An angled entrance may be provided at any corner of a building along the street to meet street-facing entrance requirements.

**Section 90.160. Building height.**

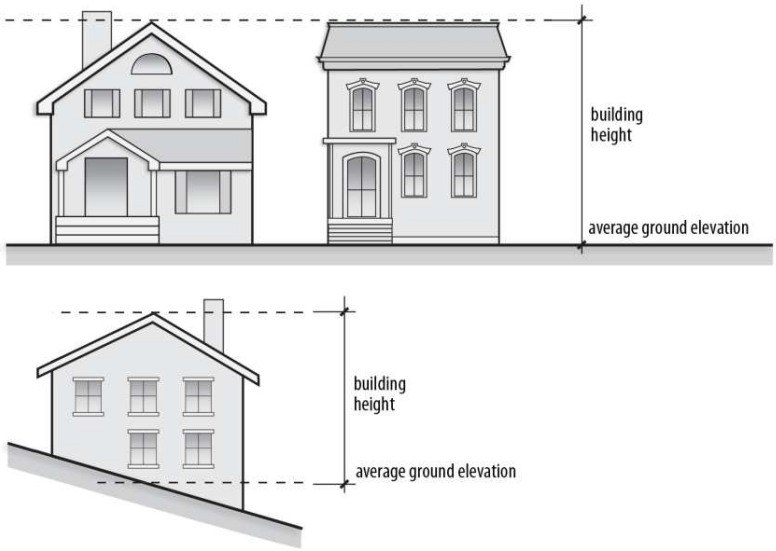
**A.** Measurement.

**1.** Building height is measured as the vertical distance from the average ground elevation along the exterior building wall to the highest point of the subject building. For purposes of measuring height:

**a.** The average ground elevation is the mid-point between the highest and lowest ground elevations along the exterior building wall; and

**b.** The highest point of the building is the coping of a flat roof, the top of a mansard roof or shed roof, or the peak of the highest gable of a gambrel or hip roof. For buildings without a roof, height is measured to the highest point of the structure.

**Figure 90-19: Building Height Measurement**




**B. Exceptions.**

**1.** Farm buildings and farm-related structures are not subject to building height limits.

**2.** Chimneys, elevators, equipment penthouses, monitors, cooling towers and ventilators may exceed maximum building height limits, provided they are not intended for human occupancy and they do not extend more than twenty (20) feet above the top of the principal structure to which they are attached. This twenty-foot limit may be increased through the special exception procedures of Section 70.120.

**3.** Belfries, clock towers, cupolas, domes, flag poles and spires may exceed maximum building height limits, provided they are not intended for human occupancy and they are not more than one hundred fifty (150) percent taller than the applicable height limit. This one hundred fifty (150) percent limit may be increased through the special exception procedures of Section 70.120.

## Section 90.170. Other height measurements.

**A. Fences and walls.** The height of fences and walls is measured as vertical distance from the average finished grade on the inside of the fence to the top of the fence or wall. Fences atop walls or landscape features (e.g., raised beds) are measured to average finished grade at the base of the wall or landscape feature. In the case of retaining walls, average finished grade may be measured from the side of the retaining wall abutting and contacting the earth being supported. Fence posts may exceed the height of the highest connected portion of the fence by up to twelve (12) inches.

**B. Other structures.** The height of structures other than buildings, fences or walls is measured as vertical distance from the average finished grade at the base of the

structure to the highest point of the structure. Unless otherwise expressly stated, the height of a structure may not exceed the maximum building height allowed in the subject zoning district.

*(Ord. No. 25330, § 21, 6-5-2024)*

**Section 90.180. Noise and sound.**

For the purpose of determining compliance with any noise limits expressed in db(A) (A-weighted decibels), the noise must be measured on the A-weighting scale on a sound level meter of standard design and quality having characteristics established by the American National Standards Institute.

**Section 90.190. Occupancy.**

For the purpose of determining compliance with standards or requirements based on building occupancy or capacity, calculations must be based on the building code.

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## CHAPTER 95. DEFINITIONS

Section 95.010. General.
Section 95.020. Use definitions.
Section 95.030. Measurement-related terms.
Section 95.040. Terms beginning with "A".
Section 95.050. Terms beginning with "B".
Section 95.060. Terms beginning with "C".
Section 95.070. Terms beginning with "D".
Section 95.080. Terms beginning with "E".
Section 95.090. Terms beginning with "F".
Section 95.100. Terms beginning with "G".
Section 95.110. Terms beginning with "H".
Section 95.120. Terms beginning with "I".
Section 95.130. Terms beginning with "J". RESERVED
Section 95.140. Terms beginning with "K". RESERVED
Section 95.150. Terms beginning with "L".
Section 95.160. Terms beginning with "M".
Section 95.170. Terms beginning with "N".
Section 95.180. Terms beginning with "O".
Section 95.190. Terms beginning with "P".
Section 95.200. Terms beginning with "Q". RESERVED
Section 95.210. Terms beginning with "R".
Section 95.220. Terms beginning with "S".
Section 95.230. Terms beginning with "T".
Section 95.240. Terms beginning with "U".
Section 95.250. Terms beginning with "V".
Section 95.260. Terms beginning with "W".
Section 95.270. Terms beginning with "X". RESERVED
Section 95.280. Terms beginning with "Y".
Section 95.290. Terms beginning with "Z". RESERVED

### Section 95.010. General.

Words and terms expressly defined in this zoning code have the specific meanings assigned unless the context clearly indicates another meaning. Words and terms that are not expressly defined in this zoning code have the meaning given in the latest edition of *Merriam-Webster's Unabridged Dictionary*.

### Section 95.020. Use definitions.

See Chapter 35 for an explanation of the use categorization system used in this zoning code and for use type definitions.

### Section 95.030. Measurement-related terms.

See Chapter 90 for an explanation of various lot and building regulation terms, such as "lot area," "building height," "setbacks" and "build-to-zone."

## Section 95.040. Terms beginning with "A".

**Abut or abutting.** To touch or share a contiguous boundary or border, except that in the context of hearing notice and screening or enclosure requirements, "abutting" includes properties that are contiguous or separated only by a non-arterial street, alley or railroad right-of-way.

**Accessory use bar.** A commercial establishment open to the public that sells and serves alcoholic beverages for consumption on the premises, but that is incidental and subordinate to and that occupies no more than twenty-five (25) percent of the floor area of a principal use restaurant or fraternal organization. In order to be classified as an accessory use bar, the bar must occupy the same principal building and contiguous tenant space as the principal use and not contain a separate exterior public entrance (i.e., it must be served solely by the customer entrance that serves the principal use restaurant, hotel/motel or fraternal organization).

**Accessory dwelling unit.** See Subsection 45.031A.

**Accessory Use or Structure.** A use or structure that meets the criteria established in Subsection 45.010B.

**Adjacent.** Lying near or in the immediate vicinity.

**Agent.** A person duly authorized to act on behalf of the owner of the subject property.

**Alcoholic beverage.** As defined in Title 37-A of Oklahoma Statutes.

**Alley.** A public right-of-way that affords a means of access to abutting property, generally secondary in nature.

**All-weather surface (or material).** A hard surface, dustless material capable, during ordinary use, of withstanding without substantial deterioration, normal weather conditions. Gravel, rock, or screenings, when treated with a road surface binder approved by the development administrator, meet the definition of an all-weather surface.

**Applicant.** The owner of the subject property or an agent authorized by the subject property owner to submit an application on the owner's behalf.

**Arterial.** A street designated on the major street and highway plan as an arterial, parkway or scenic drive.

**Arts Commission.** The Arts Commission of the City of Tulsa.

**Average ground elevation.** See Subsection 90.160A.1.a.

**Awning.** A roof-like structure typically made of cloth, metal or other material attached to a frame that extends from and is supported by a building. Awnings are typically erected over a window, doorway or building front and they may be raised or retracted to a position adjacent to the building.

*(Ord. No. 24725, § 30, 11-17-2021; Ord. No. 25330, § 22, 6-5-2024)*

## Section 95.050. Terms beginning with "B".

**Base (zoning) district.** Any zoning district that is not an overlay district.

**Bioretention.** The use of soil and plants to remove pollutants from stormwater runoff.

**Block face.** All lots abutting one side of a street between the two (2) nearest intersecting streets.

**Board of Adjustment (BOA).** The Board of Adjustment of the City of Tulsa.

**Build-to-zone (or build-to line).** See Section 90.110.

**Building.** A structure that is permanently affixed to the land; with or without a roof, or walls on all sides; and used or intended for supporting or sheltering any use or occupancy.

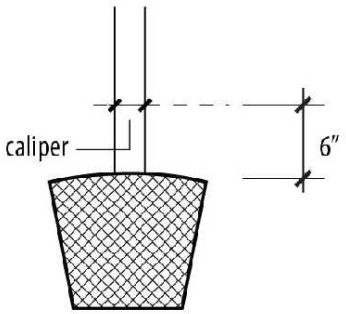
**Building coverage.** See Section 90.120.

**Building height.** See Section 90.160.

## Section 95.060. Terms beginning with "C".

**Caliper.** The diameter of the tree trunk measured at a point six (6) inches above the root ball or soil level.

**Figure 95-1: Caliper (Tree) Measurement**




**Carport.** Any parking space or spaces having a roof, but not enclosed by walls, and accessory to a dwelling or dwellings. Parking garages and parking structures are not carports.

**Car-share program.** A system in which a fleet of cars (or other motor vehicles) is made available for use by members of the car-share program and that exhibit all of the following characteristics:

1. Members are permitted to use vehicles from the car-share program fleet on an hourly basis;
2. Car-share vehicles are generally available twenty-four (24) hours a day and seven (7) days a week to members in parking spaces at dispersed locations or facilities; and
3. No separate written agreement is required each time a member reserves and uses a car-share vehicle.

**Car-share vehicle.** A motor vehicle from a car-share program fleet.

**Character.** Any letter of the alphabet or any numeral.

**City.** The City of Tulsa, Oklahoma.

**City Council.** The City Council of the City of Tulsa.

**Coffee roasting.** Applying heat to green coffee beans to produce darker roasted beans that can be used to brew coffee.

**Cold frame.** An unheated structure no more than four (4) feet in height used for protecting seedlings and plants from the cold.

**Commercial message.** Any sign, wording, logo, or other representation that directly or indirectly, names, advertises, or calls attention to a business, product, service or other commercial activity.

**Comprehensive plan.** The City of Tulsa's official comprehensive plan, as adopted by the planning commission and approved by the City Council.

**Curb level.** The average (mean) level of the established curb at the frontage of the subject lot. Where no curb has been established, the City Engineer is authorized to establish such curb level or its equivalent.

**Section 95.070. Terms beginning with "D".**

**Designated residential development area.** An area specifically designated for residential development by conditions imposed in a PUD, MPD or CO district.

**Design guidelines.** The criteria used to guide the preservation commission in review of an application for an HP permit, unless the context clearly indicates another meaning.

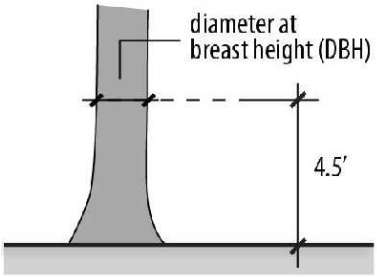
**Development.** Any man-made change to improved or unimproved real estate, including but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavation, or drilling operations.

**Development Administrator.** See Subsection 1.090I.8.

**Development plan.** See Section 70.040.

**Diameter at breast height (DBH).** The diameter of a tree trunk measured at a point four and one-half (4.5) feet above ground level at the base of the tree.

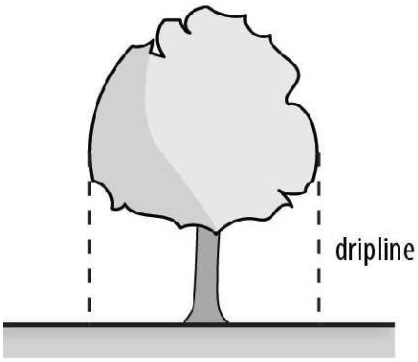
**Figure 95-2: Diameter at Breast Height (DBH)**




**Donation bins.** See "recyclable material bins/donation bins".

**Dripline.** The periphery of the area underneath a tree that would be encompassed by perpendicular lines extending from the exterior edges of the crown of the tree.

**Figure 95-3: Dripline (of a Tree)**




**Dumpster.** A container with a capacity of more than one and one-half (1.5) cubic yards or a height of more than four and one-half (4.5) feet that is designed for receiving, transporting, and depositing waste materials produced by uses that are on the subject site. Dumpsters are typically designed to be hoisted and emptied into a garbage truck. (See Section 45.050 for applicable regulations).

**Dwelling unit.** A room or group of rooms arranged, intended, or designed as a habitable unit, containing kitchen, bath and sleeping facilities, for not more than one household living independently of any other household.

*(Ord. No. 24279, § 6, 12-11-2019; Ord. No. 25604, § 14, 6-18-2025)*

**Section 95.080. Terms beginning with "E".**

**Electric vehicle.** Any vehicle that is licensed and registered for operation on public and private highways, roads, and streets; either partially or exclusively, on electrical energy from the grid or an off-board source, that is stored on-board via a battery. "Electric vehicle" includes: (1) battery electric vehicles; and (2) plug-in hybrid electric vehicles.

**Electric vehicle (EV) charging station.** A public or private parking space that is served by battery charging station equipment.

**Electric vehicle charging station, private (restricted-access)** means an EV charging station that is not available for use by the general public. Examples include electric vehicle charging stations that serve residential homeowners or renters, executive parking areas, designated employee parking areas and fleet parking areas.

**Electric vehicle charging station, public.** An EV charging station that is accessible to and available for use by the general public.

**Electric vehicle parking space.** Any parking space that is clearly identified to be used exclusively for the parking of an electric vehicle.

**Electrical fence charger system.** A labeled circuit arrangement, whether energized by a battery or other electrical power source that is or is designed or intended to impart an electrical shock to any person or animal coming in contact with such un-insulated conductors.

**Section 95.090. Terms beginning with "F".**

**Floor area.** See Section 90.040.

**Floor area ratio.** See Section 90.050.

**Floor-to-ceiling height.** See Section 90.130.

**Foot-candle.** A measure of illumination, the amount of light falling onto a surface. One lumen of light, shining evenly across one square foot of surface, illuminates that surface to one foot-candle.

**Freeway.** A street designated as a freeway on the major street and highway plan.

**Section 95.100. Terms beginning with "G".**

**Garage sale.** The sale of tangible personal property at retail by a person who is not in the business or does not hold himself or herself out to be in the business of selling tangible personal property at retail, when such sale occurs on residentially-zoned property (including in a garage, on a driveway, patio or porch, in the yard or in the residential structure) and is open to the public. Also referred to as yard sale, estate sale, moving sale, occasional sale, etc.

**Geothermal heat exchange system.** Equipment that exchanges thermal energy between the ground (or a water source) and a building. This includes vertical closed loop, horizontal closed loop, water body closed loop system and open loop systems. Also known as ground source heat pumps and geothermal heat pumps.

**Grade, finished.** The vertical location of the ground or pavement surface after site grading work is completed in accordance with an approved plan.

**Green roof.** An extension of an above-grade building roof that includes at least a waterproof membrane, a root repellent system, a drainage system, a filtering layer, soil with a minimum depth of three (3) inches and native or naturalized plants. Also commonly referred to as a "vegetated roof."

**Ground-floor level.** The lowest level of a building that is at or above grade for at least fifty (50) percent of its interior floor-to-ceiling height.

**Section 95.110. Terms beginning with "H".**

**Height, building.** See Section 90.160.

**Height, sign.** See Subsection 60.130B.

**Historic preservation.** The adaptive use, conservation, protection, reconstruction, rehabilitation, restoration, or stabilization of a historic resource.

**Adaptive use.** The restrained alteration of a historic resource to accommodate uses for which the resource was not originally constructed, but in such a way so as to maintain the general historical and architectural character.

**Conservation.** The sustained appearance of a historic resource essentially in its existing state.

**Protection.** The security of a historic resource as it exists through the establishment of the mechanisms of this zoning code.

**Reconstruction.** The process of recreating or reproducing by new construction all or part of the form and detail of a vanished historic resource as it appeared at a specific period in time.

**Rehabilitation.** The process of recreating a historic resource to a state of efficiency or soundness by repair or alteration designed to encourage its continued use, but without noticeably changing the exterior appearance of the historic resource.

**Restoration.** The process of accurately recovering all or part of the form and detail of a historic resource and its setting as it appeared at a particular period of time by means of the removal of later work and the replacement of missing earlier work.

**Stabilization.** The process of applying measures designated to halt deterioration and to establish the structural stability of an unsafe or deteriorated resource while maintaining the essential form as it presently exists and without noticeably changing the exterior appearance of the historic resource.

**Historic preservation district.** A supplemental zoning district consisting of a building, structure, or site or an area containing buildings, structures, or sites that is a historic resource.

**(Historic preservation) work.** Solely for purposes of administering and enforcing the historic preservation-related provisions of this zoning code, "work" means any changes to an existing building, structure, or lot, or any portion thereof, including but not limited to, the erection, construction, reconstruction, renovation, alteration, painting, removal, or demolition of a building, structure, or lot, irrespective of whether or not a building permit is required.

**Historic resource.** A building, structure, site or area containing a concentration, linkage, or continuity of buildings, structures, or sites that are generally fifty (50) years or older and that contain one or more of the following attributes:

1. Significant characteristics, interest, or value as part of the historical development, history, or cultural heritage of the city, state, or nation;
2. Significance as the site of a historic event in the past of the city, state, or nation;
3. Associated with a person, or group of persons, who played a significant role in the historical development, history, and cultural heritage of the city, state, or nation;
4. That is the embodiment of distinguishing characteristics, design, details, materials or craftsmanship which represent a historically significant architectural or engineering innovation, type, style or specimen;

**5.** That portrays the environment in an era of history characterized by a distinctive architectural, engineering, or construction style;

**6.** That represents a significant and distinguishable entity of historical importance whose components may lack individual distinction;

**7.** Yielded and is likely to yield, information important in prehistory or history; or

**8.** Meets the criteria for listing on the National Register of Historic Places.

**Historic resource: Significant characteristics.** Those characteristics that are important to the historic resource by design or location, and include, but are not limited to materials, detail, height, orientation, proportion, rhythm, scale, setback, setting, shape, and workmanship.

**Materials.** The physical elements of a building, structure, site, or area that create an aesthetic and structural appearance of the resource, including characteristics such as texture, form, composition, and style.

**Detail.** Aspects of a building, structure, site or area which, due to particular treatment, draw attention to certain parts or features of the building, structure, site, or area.

**Orientation.** The position of a building, structure, site, or area relative to a particular point in which it is viewed or in relation to other fixed elements in the environment.

**Proportion.** The visible relationship and order established between buildings, structures, sites or areas, their individual parts to one another, as well as between the parts and the whole.

**Rhythm.** The regular pattern or harmonious recurrence of lines, shapes, or forms, such elements occurring within or between buildings, structures, sites or areas; including, but not limited to, windows, doors, roofs, porches, driveways, sidewalks, setbacks and heights.

**Scale.** The size of the parts of a building, structure, site or area in relationship to one another and to the human figure.

**Setback.** The location of a building or structure as it relates to the street and other buildings and structures around it.

**Setting.** The surrounding buildings, structures, landscaping and familiar features which provide a visual aesthetic or perceptual quality to historic resources.

**Shape.** The physical configuration of a building, structure, site or area, established by its form, surfaces, edges, height, width, and depth.

**Workmanship.** A level of quality exhibited in the construction, detailing, or design of a historic resource.

**Home occupation.** An accessory use of a dwelling unit for business or commercial purposes. Home occupations are subject to the regulations of Section 45.100.

**Hoop house.** A temporary or permanent structure typically made of flexible pipe or other material covered with translucent plastic, constructed in a "half-round" or "hoop" shape, for the purposes of protecting and cultivating plants. A hoop house is considered more temporary than a greenhouse.

**Household.** One or more persons who inhabit a single dwelling unit, as a single housekeeping unit, that is: (1) traditionally characterized by matrimonial or parent-child

relationship, provided that all such persons are related by blood, marriage, adoption, fosterage, or guardianship and no more than two (2) unrelated inhabitants are included in the housekeeping unit; or (2) predominantly characterized by voluntary associational, communal relationships, provided no more than eight (8) inhabitants are included in the housekeeping unit. The term "household" expressly includes community-based residential facilities licensed by or contracted with the Oklahoma Department of Human Services that provide care or supervision by a responsible adult for no more than eight (8) individuals with developmental or physical disabilities as a single housekeeping unit.

**HP permit.** The official document issued by the Preservation Commission authorizing work within an HP district.

**Section 95.120. Terms beginning with "I".**

**Inoperable vehicle.** Any motor vehicle from which, for a period of seven (7) days, the engine, wheels, or other parts have been removed, or in which the engine, wheels, or other parts have been altered, damaged, or otherwise modified so that the vehicle is incapable of being driven under its own motor power. "Inoperable motor vehicle" does not include a motor vehicle that has been rendered temporarily incapable of being driven under its own motor power, solely to perform ordinary service or repair operations.

**Intersection, signalized.** The area where motor vehicle traffic is regulated by an official traffic control signal or light, which is also embraced within the prolongation or connection of the lateral curb lines, or if none, then the lateral boundary lines of the roadways of two (2) streets that join one another at or approximately at right angles, or the area within which vehicles travel upon different streets joining at any other angle that may conflict, whether or not one such street or roadway crosses the other.

**Section 95.130. Terms beginning with "J". RESERVED**

**Section 95.140. Terms beginning with "K". RESERVED**

**Section 95.150. Terms beginning with "L".**

**Landscaped area.** The unpaved area of a lot that contains grass, shrubs, flowers, ground cover, trees or plant materials and that may include decorative fixtures such as rock, pools and planters. Areas of a lot containing artificial plants, artificial trees or other artificial vegetation are not considered landscaped area.

**Land use administrator.** See Subsection 1.090I.10.

**Lawfully established.** A use, structure, lot or sign (as the context indicates) that was established in conformance with all applicable zoning code regulations in effect at the time of its establishment.

**Less intensive zoning district.** A zoning district classification that is identified as being less intensive than another zoning district within the same grouping of districts, as indicated in Table 5-1, Table 10-1, Table 15-1. Overlay districts, special district and zoning districts that are expressly excluded from the relative intensity scales identified in these tables do not qualify as less intensive zoning districts.

**Light trespass.** Light that is emitted into an unintended area.

**Liner building.** A building or portion of a building that is specifically designed to mask a parking garage or structure from frontage on a public street and that consists of habitable or occupiable floor space.

**Lot.** A lot of record.

**Lot area.** See Section 90.020.

**Lot area per unit.** A measurement of allowed residential density. See Section 90.030.

**Lot, corner.** A lot abutting two (2) or more streets at their intersection or upon two (2) segments of the same street, when such segments form an interior angle of less than one hundred thirty-five (135) degrees. The point of intersection of street rights-of-way lines is the corner.

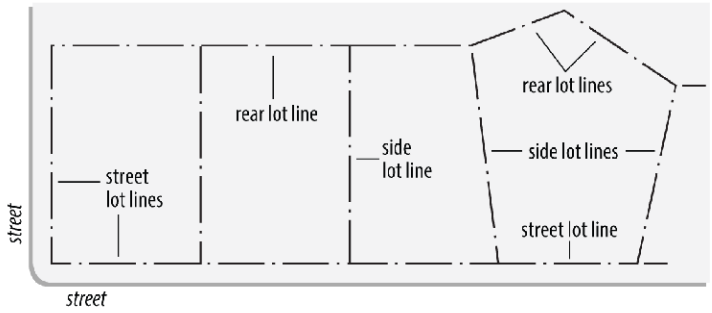
**Lot, double-frontage.** An interior lot with frontage on more than one street or a corner lot with frontage on more than two (2) streets.

**Lot, interior.** A lot other than a corner lot.

**Lot of record.** A lot that is part of a subdivision, the plat of which is recorded in the county clerk's office; a parcel of land, the conveyance of which is lawfully recorded in the county clerk's office; or the balance of a parcel of land where the conveyance of another portion of that parcel is lawfully recorded in the county clerk's office.

**Lot line.** Any boundary of a lot.

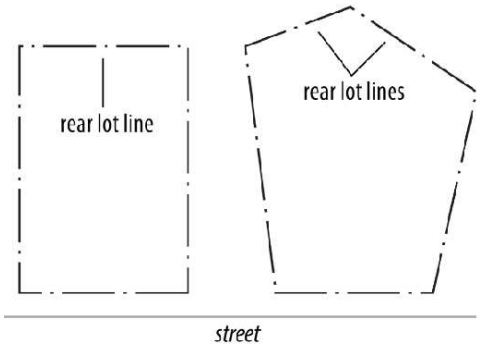
**Figure 95-4: Lot Lines**




**Lot line, front.** The boundary of a lot that abuts the street. Unless otherwise expressly stated, the owner of the subject property may select which lot line is the front lot line on corner lots.

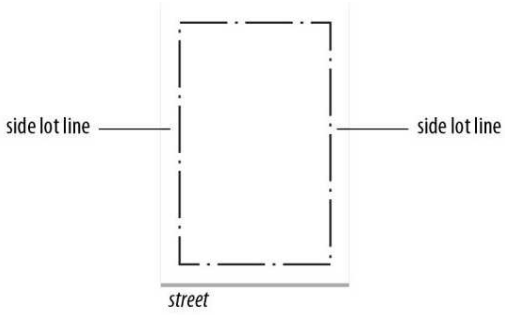
**Lot line, rear.** The boundary of a lot that is most distant from and most nearly parallel to the front lot line.

**Figure 95-6: Rear Lot Line**



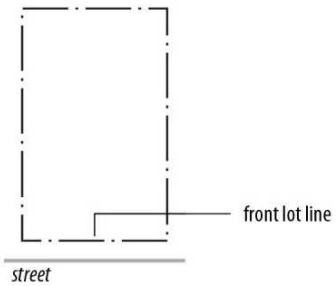

**Lot line, side.** Any boundary of a lot that is not a street lot line or a rear lot line.

**Figue 95-7: Side Lot Lines**




**Lot line, street.** The boundary of a lot that abuts a street. A lot may have more than one street lot line, and a street lot line may also be a front lot line.

**Figue 95-5: Street Lot Line**




**Lot width.** See Section 90.060.

**Low-impact development (LID).** An approach to land development (or redevelopment) that works with nature to manage stormwater as close to its source as possible. LID employs principles such as preserving and recreating natural landscape features, minimizing impervious area to create functional and appealing site drainage features that treat stormwater as a resource rather than a waste product. Common LID practices include bioretention facilities, rain gardens, green roofs, rain barrels or cisterns, and permeable paving.

*(Ord. No. 25055, § 12, 5-24-2023; Ord. No. 25330, §§ 23, 24, 6-5-2024)*

## Section 95.160. Terms beginning with "M".

**Major street and highway plan.** The Tulsa Metropolitan Area Major Street and Highway Plan, which is adopted as a functional element of the comprehensive plan.

**Massage therapy.** The manipulation of soft or connective tissues of the human body to alleviate pain, enhance circulation, improve joint mobilization, relieve stress or muscle tension. This definition expressly excludes sexually oriented business establishments and any manipulation of the human body associated with a sexually oriented business establishment.

**Mobile storage unit, temporary.** A mobile, fully enclosed container that is specifically designed and used for the temporary storage of household goods, wares, and materials for the purpose of moving, relocation, or temporary storage during construction. This definition does not include a shipping or cargo container, modified or otherwise.

**Multi-tenant development.** A development typically under unified ownership and control consisting of two (2) or more business establishments, which may be on the same lot or on separate lots. The tenants of multi-tenant development typically share vehicle access and parking facilities.

## Section 95.170. Terms beginning with "N".

**NA (or -).** Not applicable or no requirement.

**Neon.** Gas-filled tubing made of glass or similar products which creates illumination when charged with electricity. Tubing may contain alternatives such as light-emitting diodes (LED) provided that any alternative must produce illumination that is a continuous, uninterrupted line similar to illumination produced by gaseous illumination technology.

**NIT.** A unit of illuminative brightness equal to one candela per square meter, measured perpendicular to the rays of the source.

**Nonconforming development feature.** See Subsection 80.070A.

**Nonconforming lot.** See Subsection 80.020A.

**Nonconforming use.** See Subsection 80.040A.

**Nonconforming sign.** See Subsection 80.060A.

**Nonconforming structure.** See Subsection 80.030A.

**Nonconformity.** A nonconforming lot, nonconforming use, nonconforming structure, nonconforming development feature or nonconforming sign.

**Nonresidential building.** Any principal building other than a residential building.

**Nonresidential development area.** An area designated for nonresidential development on an approved development plan, such as in a PUD, MPD or CO district.

**Nonresidential district or nonresidential zoning district.** Any zoning districts other an R (residential) district.

**Section 95.180. Terms beginning with "O".**

**Open-air uses.** Uses of land that do not involve buildings or that involve buildings that are incidental and accessory to the open-air use of the lot. Typical examples include storage yards, vehicle impound yards, auto wrecking and junkyard uses.

**Open space per unit.** See Section 90.080.

**Outdoor customer seating/dining area.** The area of all unenclosed areas used or intended to be used for seating and dining by customers and guests, including standing table areas.

**Overlay district.** A zoning district that over-lays one or more base zoning districts and imposes requirements in addition to those of the base district or modifies the regulations otherwise applicable in the base zoning district.

**Section 95.190. Terms beginning with "P".**

**Package store.** As defined in Title 37-A of Oklahoma Statutes.

**Parapet or parapet wall.** A wall-like barrier at the edge of a roof that acts as a vertical extension of an exterior building wall extending above the roof height of the building. Parapets may serve as a safety or architectural feature.

**Parking area.** The vehicular driving surfaces and parking area which includes the parking spaces, the maneuvering areas necessary to enter and exit the spaces and the drives providing access to the parking spaces and maneuvering areas from a public or private street or other parking areas.

**Parking space, off-street.** A space on a lot intended and reserved for the parking of an automobile.

**Parking space, required off-street.** A space on a lot reserved for parking required by this zoning code.

**Permanent foundation.** A foundation that meets the requirements established in Title 51 Tulsa Revised Ordinances.

**Photovoltaic cell.** A semiconductor device that converts solar energy into electricity.

**Planned (street) right-of-way.** The right-of-way designated in the Tulsa Metropolitan Area Major Street and Highway Plan.

**Planning commission.** See Subsection 1.090I.4.

**Planning director.** See Subsection 1.090I.4.

**Preservation (historic).** See "historic preservation."

**Preservation commission.** See Subsection 1.090I.7.

**Preservation officer.** See Subsection 1.090I.8.

**Principal building.** A building or combination of buildings of chief importance or function on a lot. In general, the principal use is carried out in the principal building.

**Principal use.** A use or activity or combination of which are of chief importance on the lot; one of the main purposes for which the land, buildings or structures are intended, designed or ordinarily used.

**Proof gallon.** One liquid gallon of beverage grade spirits that is fifty (50) percent alcohol by volume at sixty (60) degrees F. Note: Spirits bottled at eighty (80) proof (forty (40) percent alcohol) would be 0.8 proof gallons per gallon of liquid. At one hundred twenty-five (125) proof, a gallon of liquid would be 1.25 proof gallons.

**Section 95.200. Terms beginning with "Q". RESERVED**

**Section 95.210. Terms beginning with "R".**

**Rainwater harvesting equipment.** A rain barrel, cistern or similar container that collects and stores rainwater or other water that would otherwise be lost as runoff.

**Recreational vehicle (RV).** A trailer, boat trailer, travel trailer, camping trailer, truck camper, camper shell, motor home, tent trailer, boat, houseboat, or similar vehicle or unit. Camper shells that are attached to a pickup truck are not considered a recreational vehicle.

**Recyclable material bins/donation bins.** A container or drop box with a capacity of more than one and one-half (1.5) cubic yards or a height of more than four and one-half (4.5) feet that is provided for receiving and temporary storing of recyclable materials or salvageable personal property such as paper, metal, glass, and plastic as well as clothing, shoes, books, and toys. Recyclable material bins/donation bins may receive items to be reused or resold for the purpose of charitable solicitation. Recyclable material bins/donation bins include both containers used by uses located on the subject site and those used by consumers who bring their recyclables from other (off-site) locations. (See Section 45.051 for applicable regulations.)

**Residential building.** A detached house, townhouse, duplex or apartment/condo building. (See also building types described in Section 35.010.)

**Residential development area.** An area designated for residential development on an approved development plan, such as in a PUD, MPD or CO district.

**Retaining wall.** A vertical structure built from stone or brick masonry, reinforced concrete, segmented block or other material approved by the development administrator and built to support earth of a higher level on one side than on the other.

**Roomer.** An occupant of a rooming unit who is not a member of the household occupying the principal residential building.

**Rooming unit.** Any habitable room or group of adjoining habitable rooms that is an accessory use to a household living use and forming a single unit with facilities that are used or intended to be used primarily for living and sleeping but not for cooking.

**Route 66 Commission.** The Route 66 Commission of the City of Tulsa.

*(Ord. No. 24279, § 7, 12-11-2019; Ord. No. 25322, § 5, 5-22-24; Ord. No. 25330, § 25, 6-5-2024)*

**Section 95.220. Terms beginning with "S".**

**Setback.** An open, unobstructed area that is required to be provided by this zoning code. See Section 90.090.

**Sexual conduct.** Any and all of the following: (1) the fondling or other touching of human genitals, pubic region, buttocks, or female breasts; (2) ultimate sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation, sodomy; (3) masturbation; and (4) excretory functions as part of or in connection with any of the activities set forth in (1) through (3) above.

**Sign.** Any object, device, structure or part thereof used to advertise, identify, display or attract attention to an object, person, institution, organization, business, product, service, event or location by any means, including words, letters, figures, designs, symbols, fixtures, colors, illumination or projected images. Signs as defined herein do not include temporary holiday decorations; or landscape features that display no words or symbols.

**Sign, animation.** The presentation of pictorials and graphics on signs displayed in a progression of frames that give the illusion of motion, including but not limited to the illusion of moving objects, moving patterns or bands of light, or expanding or contracting shapes.

**Sign area.** See Subsection 60.130A.

**(Sign) banner.** A sign composed of lightweight, flexible, non-rigid material that is mounted to a pole or a structure at one or more edges either vertically or horizontally. Flags are not considered banners.

**Sign budget.** Sign regulations governing the maximum aggregate number and/or maximum aggregate area of all or a defined group of signs on a lot.

**Sign, campaign.** A temporary sign displayed on a lot during an active local, state or federal campaign for public office or ballot issue or referenda.

**(Sign) commercial message.** See "commercial message."

**Sign, construction.** A temporary sign located on a lot upon which building or construction is actively occurring.

**Sign corridor, freeway.** An area four hundred (400) feet in width on each side of and adjacent to the publicly acquired right-of-way of a freeway.

**Sign, development plan.** A sign approved as part of a development plan (See Section 70.040) that directs attention to a business, commodity, service, or activity that is conducted, sold, or offered on property that lies within the boundaries of an approved development plan covering a contiguous area that includes both the subject sign and the subject business, commodity, service, or activity.

**Sign, drive-through.** A sign located on the site of an allowed drive-through use.

**Sign, driveway.** A sign located near a driveway entrance from a street or near an internal site driveway or drive aisle. (See also Subsection 60.030A.)

**(Sign) dwell time.** The duration or interval of time during that each individual advertisement or message is displayed on any sign with a dynamic display.

**Sign, dynamic display.** Any element of a sign or sign structure capable of displaying words, symbols, figures, images or messages that can be electronically or mechanically changed by remote or automatic means. This also includes any display that incorporates rotating panels, LED lights manipulated through digital input, "digital ink" or any other method or technology that allows a sign to present a series of images, messages or displays. This does not include electronic message center signs.

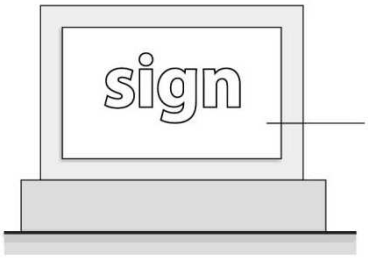
**Sign, electronic message center.** An electronic sign or portion thereof which displays alphanumeric characters only, which can be electronically changed or rearranged without altering the face or the surface of the sign.

**(Sign) flag.** A generally rectangular or triangular sign or part of a sign made of fabric or other pliant material attached to a flagpole only along one side and which predominately displays distinctive colors, images, shapes or designs rather than legible words, letters, numbers or other linguistic characters.

**Sign, flashing (illumination).** A light source or other image that in whole or in part physically changes in light intensity or gives the appearance of such change.

**Sign, freestanding.** A sign that is part of a self-supporting structure, other than a building or portion of a building. Sometimes referred to as a "ground sign."

**Figure 95-8: Freestanding Sign**




**Sign, height of.** See Subsection 60.130B.

**Sign, illuminated.** Any sign, other than a dynamic display, that is directly lighted by any constant light source, internal or external, except light sources specifically and clearly operated for the purpose of lighting the general area in which the sign is located rather than the sign itself.

**Sign, illumination and luminance.** See Subsection 60.130D.

**Sign, monument.** A freestanding sign where the base of the sign structure is on the ground or no more than twelve (12) inches above the ground adjacent to the sign. Typically constructed of brick, wood, stone, or metal, monument signs have a base that is at least seventy-five (75) percent of the width of the sign face.

**(Sign) nameplate.** A sign attached flush against a building.

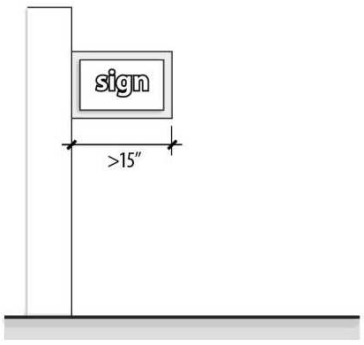
**Sign, off-premise business.** A sign that directs attention to a business, commodity, service, or activity that is conducted, sold or offered within the development where the subject sign is located and that is expressly approved as part of a mandatory development plan.

**Sign, off-premise outdoor advertising.** See Subsection 35.100B.

**Sign, on-premise.** A sign that directs attention to a business, commodity, service, or activity that is conducted, sold or offered upon the lot where the subject sign is located.

**Sign, projecting.** A sign that is affixed to a building wall, canopy, awning or marquee and that extends horizontally more than fifteen (15) inches from the wall, canopy, awning or marquee.

**Figure 95-9: Projecting Sign**




**Sign, promotional.** A temporary sign that is located on a lot on which a business promotion is actively occurring and that consists of tinsel, flags, balloons, banners, wind devices, or similar attention-getting devices, whether or not the same contain any words, numbers or characters.

**Sign, real estate.** A temporary sign located on a lot or portion of a lot that is actively being marketed for sale, rental or lease.

**Sign, roof.** A sign that is affixed to a roof, extended roof, pitched roof, or canopy, and that extends above the building wall or parapet wall.

**(Sign) rules of measurement.** See Section 60.130.

**Sign, special event.** A sign approved in connection with a special event permit approved by the city council. (See also Subsection 60.030E.6.)

**(Sign) storyboarding.** The consecutive display of advertisements or messages on a sign, used to provide a continuing or evolving message, theme or story.

**(Sign) static message.** An advertisement or message that, when displayed, contains no motion, flashing, changeable copy, running lights, variances in brightness, or animation.

**Sign, wall.** A sign affixed to a building wall, canopy, awning, marquee or parapet wall, or a sign displayed in or on a door that does not extend horizontally more than fifteen (15) inches from the wall, canopy, awning, marquee, parapet wall, or door, nor extend above the parapet wall.

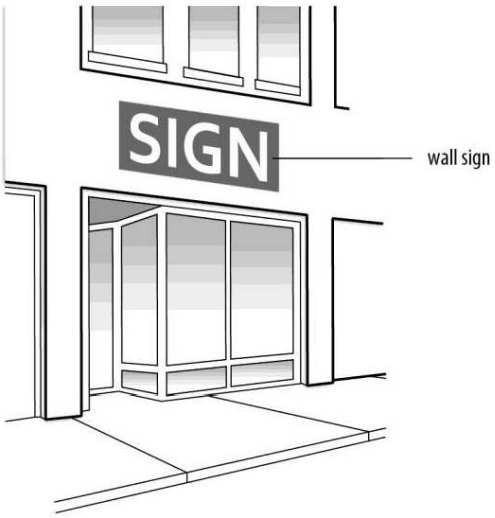
**(Sign) wind device.** Any flag, banner, pennant, streamer or similar device that moves freely in the wind.

**Sign, window.** A sign attached to a window.

**(Sign) word.** Any and all of the following (otherwise, each separate character is considered to be a word):

1. A word in any language found in any standard unabridged dictionary or dictionary of slang.
2. A proper noun or any initial.
3. A separate symbol or abbreviation, such as "&", "S", "%" and "INC".
4. A telephone number, street number or commonly used combination of numerals and/or symbols such as "$5.00" or "50%".
5. A symbol or logo that is a registered trademark, but that itself contains no word or character.

**Figure 95-10: Wall Sign**




**Site Plan.** A detailed plan or set of plans depicting the arrangement of buildings, parking, landscaping, lighting, walls, grading, elevations, building materials, signs, dumpsters, and other information necessary to determine compliance with applicable regulations. (See also Section 70.050.)

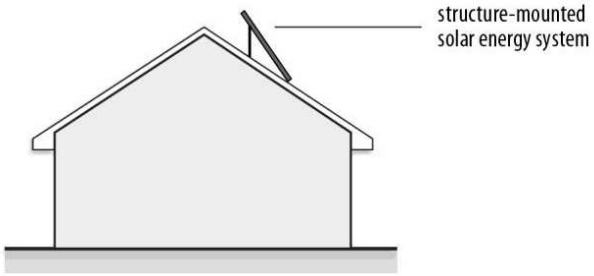
**Solar energy system.** A system intended to convert solar energy into thermal, mechanical or electrical energy.

**Solar energy system, building-integrated.** A solar energy system that is an integral part of a principal or accessory building, rather than a separate mechanical device, replacing or substituting for an architectural or structural part of the building. Building-integrated systems include, but are not limited to, photovoltaic or hot water systems that are contained within roofing materials, windows, skylights, shading devices and similar architectural components.

**Figure 95-11: Building-Integrated Solar Energy System**

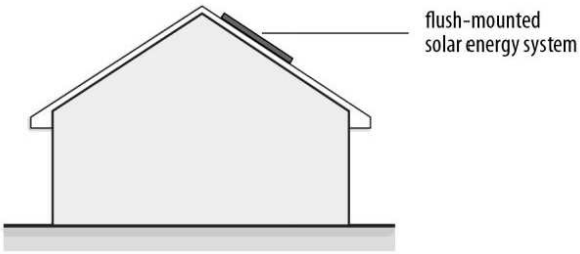
**Solar energy system, structure-mounted.** A solar energy system that is mounted on the façade or roof of either a principal or accessory structure.

**Figure 95-12: Structure-mounted Solar Energy System**



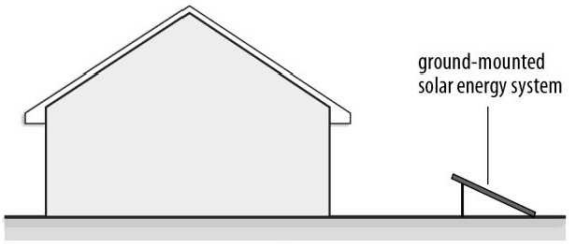

**Solar energy system, flush-mounted.** A solar energy system that is mounted flush with a finished building surface, at no more than six (6) inches in height above that surface.

**Figure 95-13: Flush-Mounted Solar Energy System**




**Solar energy system, ground-mounted.** A solar energy system mounted on the ground and not attached to any other structure other than structural supports.

**Figure 95-14: Ground mounted Solar Energy System**




**Solar panel.** A group of photovoltaic cells assembled on a panel. Panels are assembled on-site into solar arrays.

**Special event.** An temporary event or group of related temporary events typically involving a mass gathering of people on public right-of-way or public property; or on private property in a manner that results in significant impacts on public property or right-of-way.

**Special exception.** A use or a design element or characteristic of a use or development that is not permitted by right because of potential adverse effect, but that if controlled in the particular instance as to its relationship to the neighborhood and to the general welfare, may be permitted by the board of adjustment. In order to be approved as a special exception, the special exception must be expressly authorized by this zoning code and reviewed in accordance with the substantive and procedural standards of this zoning code.

**Specified anatomical areas.** Any and all of the following: (1) human genitals, pubic region, buttocks, and female breasts below a point immediately above the top of the areola; and (2) human male genitals in a discernible turgid state, even if completely and opaquely covered.

**Street-facing building entrance.** See Section 90.150.

**Street frontage.** See Section 90.070.

**Street, major.** All classifications of streets shown on and defined by the major street and highway plan, except residential collector streets. Major streets include freeways and freeway service roads.

**Street, minor.** All classifications of public streets not defined as major streets.

**Street, perimeter.** A public street that abuts the exterior boundary of a residential or nonresidential development.

**Street wall.** The wall or part of the building nearest the abutting street.

**Street yard.** See "yard, street".

**Structure.** Anything constructed or erected with a fixed location on the ground, or attached to something having a fixed location on the ground, and includes buildings, parking areas, walks, fences canopies and signs.

*(Ord. No. 24279, § 8, 12-11-2019; Ord. No. 24382, § 20, 6-10-2020; Ord. No. 25512, §§ 2, 3, 1-29-2025)*

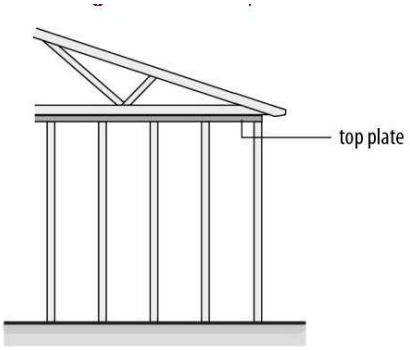
## Section 95.230. Terms beginning with "T".

**Tasting room.** A room that is ancillary to the production of beer at a microbrewery or large brewery where the public can purchase and /or consume only the beer produced on site.

**Tent.** Any structure, enclosure, or shelter constructed of fabric or other pliable material supported by any manner except by air or the contents protected by the material.

**Top plate.** The horizontal timber directly carrying the trusses of a roof or the rafters.

**Figure 95-15: Top Plate**




**Transition time.** The duration or interval of time between which each individual advertisement or message is displayed on any dynamic display.

**Transparency.** See Section 90.140.

**Tree.** A woody plant having one or more defined stems or trunks.

**Tree, large.** A tree that will attain a mature height of over sixty (60) feet and a spread or canopy that is at least thirty-five (35) feet in width.

**Tree, medium.** A tree that will attain a mature height of between thirty (30) and sixty (60) feet and a spread or canopy that is at least twenty-five (25) feet in width.

**Tree, small.** A tree that will attain a mature height of less than thirty (30) feet and a spread or canopy that is at least fifteen (15) feet in width.

**Tulsa Metropolitan Area Planning Commission.** See Subsection 1.090I.4.

**Section 95.240. Terms beginning with "U".**

**Utility-scale energy production.** An energy production facility that produces electric energy for widespread distribution through the electric power grid.

**Section 95.250. Terms beginning with "V".**

**Variance.** See Section 70.130.

**Vehicle fuels, alternative.** Electricity, CNG (compressed natural gas), LNG (liquefied natural gas), LPG (liquefied petroleum gas), and hydrogen.

**Vehicle fuels, conventional.** Gasoline and diesel fuel.

**Section 95.260. Terms beginning with "W".**

**Walkability.** The extent to which the built environment is safe and inviting for pedestrians and for the presence of people living, shopping, visiting, enjoying or spending time in an area.

**Walkway.** A clearly defined path for non-motorized movement between buildings, structures, destinations, or other walkways on or adjacent to a site.

**Wind energy conversion system.** A device that directly converts wind energy into usable thermal, mechanical, or electrical energy, including such devices as windmills and wind turbines. The "system" includes towers and supporting structures and directly connected facilities such as generators, alternators, inverters, batteries, and associated control equipment.

**Wind energy conversion system, small.** A wind energy conversion system with a power-related capacity of no more than one hundred (100) kW that is primarily intended to produce power for on-site consumption, as a supplement to utility power or in lieu of utility power. Small wind energy systems are often connected to the electric utility for the purpose of "net metering."

**Window area.** See Subsection 60.130E.

**Section 95.270. Terms beginning with "X". RESERVED**

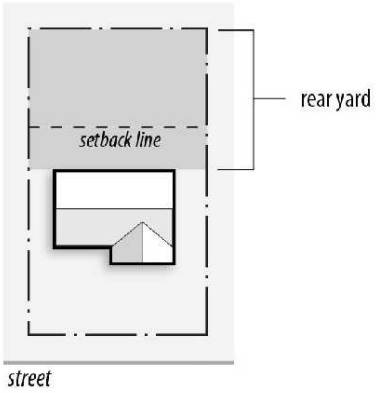
**Section 95.280. Terms beginning with "Y".**

**Yard.** An actual (as opposed to "required") open, unoccupied space that exists on a lot between a building and a lot line.

**Yard, front.** A yard extending along the full length of the front lot lines between the side lot lines.

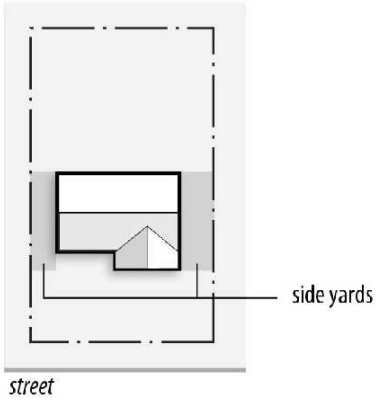
**Yard, rear.** A yard extending along the full length of the rear lot line between the side lot lines.

**Figure 95-16: Rear Yard**



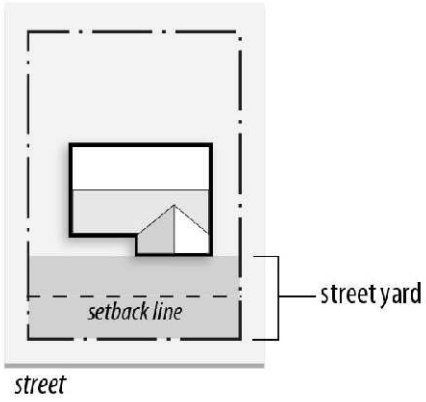

**Yard, side.** A yard extending along a side lot line between the front yard and the rear yard.

**Figure 95-17: Side Yard**




**Yard, street.** Any yard abutting a street.

**Figure 95-18: Street Yard**




## Section 95.290. Terms beginning with "Z". RESERVED

# TITLE 42-A OIL AND GAS DRILLING IN THE CITY LIMITS

**Chapter 1. General Provisions**
**Chapter 2. Oil and Gas Drilling Rights**
**Chapter 3. Administration**
**Chapter 4. Enforcement**
**Chapter 5. Penalties**
**Chapter 6. Drilling and Operation of Oil and Gas Wells**
**Chapter 7. Artificial Production**
**Chapter 8. Swabbing Wells**
**Chapter 9. Loading Racks**
**Chapter 10. Pipelines**
**Chapter 11. Excavation Permit**
**Chapter 12. Commercial Distribution Systems for Gas**

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## CHAPTER 1. GENERAL PROVISIONS

Section 100. Purpose and intent.
Section 101. Definitions.
Section 102. Applicability and compliance.
Section 103. Applicability of provisions.
Section 104. Oil and Gas Inspector.

### Section 100. Purpose and intent.

In order to protect the public health, peace, safety, and welfare of the City and its residents, this title is enacted to establish reasonable and uniform limitations, safeguards, and controls for the drilling, operation, and production of oil, gas, and other hydrocarbon substances within the corporate limits of this City. The provisions set forth in this title shall be considered as minimum requirements and shall not relieve any person from any duty imposed by law to use reasonable care and take reasonable precautions for the safeguarding of people and the protection of and noninterference with property rights.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 101. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

**Abandoned well** means any well in which production casing has been run but which has not been operated for six (6) months, and any well in which no production casing has been run, and for which drilling operations have ceased for thirty (30) consecutive days.

**Artificial production** means the raising to the surface of the earth, by means other than natural flow, of petroleum or natural gas.

**Building** means any structure used or intended for supporting or sheltering any use or occupancy. The term "building" shall be construed as if followed by the words "or portions thereof."

**Corporation Commission** means the Oklahoma Corporation Commission.

**Deleterious substance** means any chemical, saltwater, oil field brine, waste oil, waste emulsified oil, basic sediment, mud, or injurious substances produced or used in the drilling, development, production, transportation, refining, and processing of oil, gas, or condensate.

**Enhanced recovery** means an operation by which fluid or energy is introduced into a source of supply for the purpose of facilitating recovery therefrom.

**Highway** means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

**Inspector** means that person employed by the City to enforce the provisions of this chapter, or his authorized representatives.

**Motor vehicle** means any automobile, truck, truck tractor, trailer, or semitrailer or any motor bus or any self-propelled vehicle not operated or driven upon fixed rails or tracks.

**Natural production** means the rising to the surface of the earth, by natural flow, of petroleum or natural gas.

**Operator** means any person who owns or who has ever owned any working interest in any well bore located within the corporate limits of the City and any person who operates or who has ever operated any well on a contractual basis for any working interest owner.

**Permittee** means the person to whom a permit is issued under the provisions of this title.

**Person** means and includes any person, firm, partnership, association, corporation, trust, cooperative, or other type of organization.

**Pollution** means the contamination or other alteration of the physical, chemical, or biological properties of any natural waters of the City, or such discharge of any liquid, gaseous or solid substance into any water of the City as will or is likely to create a nuisance or render such waters harmful or detrimental or injurious to public health, safety, or welfare, to domestic, commercial, industrial, agricultural, recreational, or other beneficial uses, or to livestock, animals, or aquatic life.

**Pressure maintenance** means an operation by which gas, water, or other fluids are injected into a supply of oil to maintain pressure or retard pressure decline therein for the purpose of facilitating recovery therefrom, and which has been approved by the Corporation Commission after notice and hearing.

**Public building** means all buildings used or designed and intended to be used for gathering together fifty (50) or more persons for such purposes as deliberation, entertainment, amusement, health care, or awaiting transportation. Public buildings include, but shall not be limited to:

**1.** Theaters;
**2.** Motion picture theaters;
**3.** Assembly halls;
**4.** Auditoriums;
**5.** Exhibition halls;
**6.** Museums;
**7.** Libraries;
**8.** Skating rinks;
**9.** Gymnasiums;
**10.** Bowling lanes;
**11.** Pool rooms;
**12.** Armories;
**13.** Mortuary chapels;
**14.** Dance halls;
**15.** Club rooms;
**16.** Recreation piers;

**17.** Courtrooms;

**18.** Conference rooms;

**19.** Drinking establishments;

**20.** Hospitals;

**21.** Restaurants.

**State** means the state of Oklahoma, its branches, departments, agencies, boards, or the officers thereof.

**Structure** means that which is built or constructed. The term "structure" shall be construed as if followed by the words "or portion thereof."

**Treatable water** or **fresh water** means surface and subsurface water in its natural state which may or may not require treatment to be useful for human consumption, and contains less than ten thousand (10,000) ppm total dissolved solids and/or five thousand (5,000) ppm chlorides.

**Water** or **waters of the City** means all streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, irrigation systems, drainage systems, and all other bodies or accumulations of water, surface and underground, natural or artificial, public or private, which are contained within, flow through, or border upon the City or any portion thereof.

**Well** means, unless specifically qualified, any hole or holes, bore or bores, of any depth for the purpose of producing and recovering any oil, gas, minerals, or liquefied matter, or for the injection or disposal of any of the foregoing.

All technical or oil and gas industry words or phrases used herein and not specifically defined herein shall have that meaning customarily attributable thereto by prudent operators in the oil and gas industry.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 102. Applicability and compliance.

No person shall engage in any work or erect any structure, tanks, machinery, pipelines, or other appurtenances incident to the drilling for or production of petroleum or natural gas, or operate, maintain, or permit any equipment, structures, or appurtenances incident to such production to exist, or use or maintain any property or premises in violation of any of the provisions of this title.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 103. Applicability of provisions.

The provisions of Chapter 3 and Chapter 6 of this title shall be applied by the Inspector as follows:

**A.** The provisions of Sections 300, 301, 302, 303, 304, 305, 306, 307, and 308 shall apply to all wells located within the City, regardless of the respective dates on which operations were/are originally commenced for said wells.

**B.** The provisions of Section 600 shall be applied in accordance with Subsection E. thereof.

**C.** The provisions of the following sections shall apply only to wells and well sites at which operations were/are originally commenced on or after the passage of this ordinance:

| | |
|---|---|
| Section 601 | Section 615 |
| Section 602 | Section 631 |
| Section 605.B. | Section 632 |

**D.** The provisions of the following sections shall apply to operations at all wells and well sites within the City, regardless of the respective dates on which operations were/are originally commenced for said wells or well sites:

| | | |
|---|---|---|
| Section 603 | Section 612 | Section 623 |
| Section 604 | Section 613 | Section 624 |
| Section 605.A. | Section 615 | Section 625 |
| Section 605.B. | Section 616 | Section 626 |
| Section 606 | Section 617 | Section 627 |
| Section 607 | Section 618 | Section 628 |
| Section 608 | Section 619 | Section 633 |
| Section 609 | Section 620 | Section 635 |
| Section 610 | Section 621 | |
| Section 611 | Section 622 | |

**E.** The provisions of Section 614 shall apply to all wells located within the City; provided, however, that such section shall not be applied to require the reinstallation or replacement of any technically and structurally sound surface casings set prior to the passage of this ordinance, in full compliance with the then applicable state and City regulations.

**F.** The provisions of Section 630 shall apply to all wells located within the City; provided, however, that such section shall not apply to any wells plugged and abandoned prior to the passage of this ordinance, in full compliance with the then applicable state and City regulations.

**G.** The provisions of Section 634 shall apply to all enhanced recovery or disposal wells located within the City.

**H.** The provisions of Section 636 shall apply to all wells located within the City; provided, however, that the provisions of such section shall not be applied to require the relocation or removal of any surface facilities installed prior to the passage of this ordinance, in full compliance with the then applicable state and City regulations.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 104. Oil and Gas Inspector.

**A.** The Mayor shall employ an Inspector, and assistants, if necessary, whose duty it shall be to enforce the provisions of this title.

**B.** The Inspector shall have the authority to issue any orders or directives required to carry out the intent and purpose of this title and its particular provisions. Failure of any person to comply with any such order or directive shall constitute a violation of this title.

**C.** The Inspector shall have authority to enter and inspect any premises covered by the provisions of this title to determine compliance with the provisions of this title and all applicable laws, rules, regulations, standards, or directives of the state. Failure of any person to permit access to the Inspector shall constitute a violation of this title.

**D.** The Inspector shall have the authority to request and receive any records, logs, reports and the like relating to the status or condition of any well or project or the appurtenances thereof within the City. Subject to appropriate open records statutes, this material shall remain confidential unless necessary as evidence of the violation of any of the provisions of this title. Failure of any person to provide any such requested material shall be deemed a violation of this title.

**E.** In the case of a well being drilled pursuant to an order granted by the Board of Adjustment of the City, the Inspector shall be bound by any conditions placed upon the order by the Board of Adjustment and shall have no authority to vary such conditions.

*(Ord. No. 22189, § 1, 1-14-2010)*

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## CHAPTER 2. OIL AND GAS DRILLING RIGHTS

Section 200. Oil and gas drilling rights.
Section 201. Oil and gas exploration/operation authorized.
Section 202. Wells permitted only when authorized by law.

### Section 200. Oil and gas drilling rights.

The operations outlined in this title related to the recovery of oil and gas within the city limits shall be permitted as authorized by appropriate order issued by the Board of Adjustment, pursuant to Title 42, TRO § 1202, Use Unit 2 Area-Wide Special Exceptions Uses, or other Board of Adjustment order.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 201. Oil and gas exploration/operation authorized.

Following the appropriate Board of Adjustment order, uses of buildings and premises for petroleum wells, natural gas wells, derricks, machinery boilers, tool houses, storage tanks, and other appurtenances necessary for the mining, drilling for and production of crude petroleum and natural gas, and any other minerals are permitted in accordance with and pursuant to all requirements of this title and the laws, rules, or regulations of the state or any department, board, or bureau thereof.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 202. Wells permitted only when authorized by law.

No person shall drill a petroleum or natural gas well except when and where authorized by law.

*(Ord. No. 22189, § 1, 1-14-2010)*

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## CHAPTER 3. ADMINISTRATION

Section 300. Drilling permit required.
Section 301. Application for permit; permit fee.
Section 302. Permit required for drilling or operation of enhanced recovery or saltwater or deleterious substances disposal wells.
Section 303. Application for permit and permit fee for enhanced recovery and disposal well.
Section 304. Insurance coverage required.
Section 305. Issuance or refusal of permit.
Section 306. Annual inspection fee to operate.
Section 307. Annual submission of information to inspector required.

### Section 300. Drilling permit required.

No person shall drill or open a well for the production of petroleum or natural gas or permit to flow therefrom any petroleum or natural gas, or engage in any work or erect any structures, tanks, machinery, pipelines, or other appurtenances incident to the production of petroleum or natural gas, or operate, maintain, or permit to exist any equipment, structures, or appurtenances incident to such production or use or maintain any property or premises for such production unless a permit for such drilling and operation shall have been obtained as provided by the terms of this title.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 301. Application for permit; permit fee.

**A.** Every application for a permit to drill and operate an original well or to re-enter and operate an abandoned well shall be in writing and signed by the applicant or by some person duly authorized to sign on his behalf, and it shall be filed with the Inspector and be accompanied by a nonrefundable application fee in the amount established in Title 49 TRO. The application fee shall be paid by cashier's check. The permittee shall pay an additional nonrefundable operating permit fee in the amount established in Title 49 TRO, when the drilling permit is approved and accepted, and this payment shall also be in the form of a cashier's check. The applicant shall submit two (2) copies of the application and all required documents. The application shall contain full information as required by the Inspector, including the following:

**1.** Name and address of applicant and date of application.

**2.** Location of the proposed well, including the following:

**a.** A map in digital form acceptable to the City of the twenty-six (26) acres surrounding the drill site, including thereon the location of the proposed well, and the distances therefrom to all existing dwelling houses, buildings, or other structures designed for the occupancy of human beings or animals within six hundred (600) feet of any such well, and the location of all existing oil, gas, or fresh water wells within six hundred (600) feet of the proposed well bore. The map shall also show the location of proposed surface facilities associated with the proposed well.

**b.** The names and addresses of all surface fee simple and surface leasehold owners of property located within one thousand (1,000) feet of the proposed well and surface facilities.

**3.** A copy of the approved drilling permit (approved Intent to Drill Form) from the Corporation Commission and a copy of the staking plat.

**4.** A drilling prognosis. The drilling prognosis shall also include all of the information shown in the City's form called "Instructions for Completing a Prognosis Report." Plugging procedures to be used in the event production is not established shall also be specified, and a well bore diagram showing the casing and proposed plugs shall be included.

**5.** A statement of the provisions for water for the drilling operations.

**6.** The name and address of the person upon whom service of legal notice or service of process upon the applicant may be made within this state. Any nonresident applicant who has no service agent within this state shall attach to the application a designation of a service agent who is a resident of Tulsa County, Oklahoma, and a consent that service of summons or legal notice may be made upon such person in any action to enforce any of the obligations of the applicant hereunder.

**7.** A verification of the above information by the applicant.

**8.** The applicant shall also submit a certified copy of the order by the Board of Adjustment of the City or a certified copy of the journal entry of judgment which grants such applicant the right to drill the well at the proposed location.

**9.** Proof of insurance coverage as fully described in Section 304 of this chapter.

**10.** Proof of compliance with the blanket bond or irrevocable letter of credit requirements of Section 638 of this title.

**B.** Where the application is one (1) for the re-entry of an abandoned well, said application shall contain all the information required by Section 301.A., above. Provided, however, that such application shall also provide all of the following information:

**1.** A statement of:

**a.** The condition of the abandoned well at the time the application is filed;

**b.** The depth to which it is proposed such well shall be deepened;

**c.** The casing program to be used in connection with the proposed deepening; and

**d.** A casing integrity log.

**2.** A statement of the tests which will be run on the casing strings. Include any proposed remedial cementing.

**C.** No application for a permit to drill an original well or to re-enter an abandoned well shall be considered to be a valid and complete application unless and until the applicant shall submit the required application fee and all of the items, documents, and/or information required under Subsections A. and/or B. of this section.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 302. Permit required for drilling or operation of enhanced recovery or saltwater or deleterious substances disposal wells.

**A.** No person shall convert any well from natural or primary production to a use for enhanced recovery or disposal of saltwater or deleterious substances without first obtaining a permit therefor.

**B.** No person shall re-enter any abandoned well or drill an original well to be used for enhanced recovery or disposal of saltwater or deleterious substances without first obtaining a permit therefor.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 303. Application for permit and permit fee for enhanced recovery and disposal well.

**A.** Every application for a permit as required by Section 302 of this title shall be in the same form as that required for a permit to drill an original well. All such applications shall be filed with the Inspector and all such applications shall be accompanied by a nonrefundable application fee in the amount established in Title 49 TRO. The application fee shall be paid by cashier's check. The permittee shall pay an additional nonrefundable operating permit fee in the amount established in Title 49 TRO, when the permit is approved and accepted, and this payment shall also be in the form of a cashier's check.

**B.** The applicant shall submit two (2) copies of the application as required by the Inspector, both in hard and digital form, which include the following:

**1.** A block map of the well site, showing all equipment to be used thereat, location of pipelines, access road, and distances from the well to any and all fences, public roadways, and buildings within a radius of six hundred (600) feet;

**2.** A block map of the project, showing: the location of all water supply, disposal, injection, and producing wells; all pipelines; tank batteries, pumping station, and appurtenant equipment; all wells in the project area and those located within one (1) mile of a proposed enhanced recovery or disposal well, including producing, abandoned, disposal, and public or private fresh water supply wells;

**3.** Evidence that all fresh water zones within the project area and within one (1) mile of a proposed enhanced recovery or disposal well will be adequately protected;

**4.** All wells within the project area and within one (1) mile of a proposed enhanced recovery or disposal well shall be indicated by status (i.e., plugged and abandoned, injection, saltwater, etc.) and show the following additional information:

**a.** Footage location (surface casing);

**b.** Derrick floor and ground level elevation;

**c.** Drilled total depth;

**d.** Plugged back total depth;

**e.** Size, depth, and quality of surface and production casing including zones from which casing has been removed;

**f.** Location of all plugs, packers, cement plugs, tubing anchors, etc., with the well bore;

**g.** Depth and nature of all cement squeeze jobs;

**h.** Formation name and depth of all perforations and open-hole completions;

**i.** Volume and type of cement used on surface and production strings;

**j.** Top of cement;

**5.** One (1) copy of all electric, mechanical, sample, and driller's log;

**6.** Fee simple owner and operator's name(s) and address(es) for each well;

**7.** One (1) copy of all cement bond logs and temperature surveys which show the top of the cement outside the production casing;

**8.** One (1) copy of all work performed on the well;

**9.** Copies of all information supplied to the Corporation Commission, and said Commission's approval of the project;

**10.** The detail of a pressure test of the tubing-casing annulus as described in Section 634. The pressure test shall be required prior to the use of any such enhanced recovery or disposal well;

**11.** The applicant shall also submit a certified copy of the order by the Board of Adjustment of the City or a certified copy of the journal entry of judgment which grants such applicant a special exception for such enhanced recovery or disposal well;

**12.** Proof of insurance coverage as fully described in Section 304 of this title; and

**13.** Proof of compliance with the blanket bond or irrevocable letter of credit requirements of Section 638 of this title.

**C.** No application for a permit to drill or operate an enhanced recovery or disposal well shall be considered to be a valid and complete application unless and until the applicant shall submit the required application fee and all of the items, documents, and/or information required under Subsection A. of this section.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 304. Insurance coverage required.

All applications for a permit under the provisions of this title shall be accompanied by proof of insurance coverage as follows:

**A.** The applicant for a permit to drill, operate, and/or produce a well located within any watershed areas of any Tulsa water reservoir, as defined by the Tulsa Metropolitan Utility Authority, the Oklahoma Water Resources Board, or other appropriate state agency, or located outside the watershed areas but within one (1) mile of any Tulsa water reservoir, shall submit a pollution insurance policy with the permit application as follows:

**1.** Applicants shall submit and maintain a pollution insurance policy which meets the following requirements:

**a.** Said insurance policy shall be a standard pollution liability insurance policy providing for a minimum coverage of One Million Dollars ($1,000,000.00);

**b.** Said insurance policy must be issued by a reliable insurance broker licensed to do business in the state, with the applicant/permittee and the City named as coinsureds;

**c.** Said insurance policy shall be maintained in full force and effect from commencement of drilling operations until the well is plugged and abandoned in accordance with this chapter, including the entire period during which production activities are conducted. The legal description of the well location

and the Tulsa Board of Adjustment case number, if any, shall be specified in the insurance policy, or any endorsement thereto, with respect to each well covered by such insurance;

**2.** All insurance policies shall provide that they may not be canceled without written notice to the Inspector at least thirty (30) days prior to the effective date of such cancellation. In the event said policy or policies are canceled, the permit granted shall immediately terminate without any action on the part of the Inspector, and the applicant/permittee's rights to operate under said permit shall cease until the applicant/permittee files the insurance as required herein; and

**3.** The deductible for any pollution insurance policy shall not exceed Twenty-Five Thousand Dollars ($25,000.00).

**B.** In addition to the pollution insurance required in Subsection A of this section, each applicant for a permit shall submit with the permit application a policy or policies of standard comprehensive public liability insurance, including contractual liability insurance covering bodily injuries and property damage naming the applicant/permittee and the City as coinsureds, issued by an insurance company authorized to do business within the state; said policy or policies in the aggregate shall provide for the following minimum coverage:

**1.** **Bodily injuries,** One Hundred Seventy-Five Thousand Dollars ($175,000.00) per person; One Million Dollars ($1,000,000.00) for any number of claims arising out of a single occurrence; and

**2.** **Property damage,** Five Hundred Thousand Dollars ($500,000.00) per occurrence.

Said insurance policy or policies shall provide that they may not be canceled without written notice to the Inspector at least thirty (30) days prior to the effective date of such cancellation. In the event said policy or policies are canceled, the permit granted shall immediately terminate without any action on the part of the Inspector and the applicant/permittee's right to operate under said permit shall cease until permittee files the insurance as required herein.

**C.** The insurance policies required by this section shall be submitted and maintained in full force and effect at all times by all persons drilling, completing, operating, maintaining, and/or producing any well located within the limits of the City.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 305. Issuance or refusal of permit.

**A.** The Inspector shall, after the filing of a valid and complete application for a permit under this title, determine whether or not such application complies with all of the provisions of this title and applicable federal and state law and, if it does, then the permit shall be issued. The Inspector shall have sixty (60) full days to review an application for a permit from and after the submission of the required permit fee and all other required items by the applicant; provided, however, that the Inspector may, in his sole discretion, shorten this review period. Each permit issued under the terms of this title shall:

**1.** Incorporate by reference all the provisions of this title with the same force and effect as if this title were copied verbatim therein;

**2.** Incorporate by reference all the provisions of applicable state law and the rules, regulations and standards adopted in accordance therewith relating to the protection of persons, property, animals, and natural resources; and

**3.** Specify that the term of said permit shall be for a period of one (1) year from the date of issuance thereof, and for like periods thereafter upon the successful inspection of the permittee's well and operations and the payment of an annual fee to operate, as provided for in this title.

**B.** If the permit is issued, two (2) originals of such permit shall be signed by the Inspector and the permittee, and when so signed shall constitute the obligation of the permittee to comply with the terms of such permit, such bonds as are required, and all applicable state law, rules, regulations, standards and directives. One (1) executed original of said permit shall be retained by the Inspector; the other shall be retained by the permittee and shall be kept available for inspection by all city or state law enforcement officials.

**C.** If the permit be refused by the Inspector, or if the applicant notifies the Inspector in writing within thirty (30) days of the initial filing of said application that he wishes to withdraw his application, then the application process shall be considered to be terminated. If the applicant fails to accept an approved permit within six (6) months after being notified in writing of approval by the Inspector, then the application process shall be considered to be terminated.

The City shall in all events retain the application fee to cover the costs of processing said application.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 306. Annual inspection fee to operate.

An annual inspection fee is hereby levied upon each well operated or maintained within the City. The amount of such fee shall be as established in Title 49 TRO. The fee shall be payable to the City on or before the annual anniversary date of the issuance of any permit under the provisions of this title. No permit for any well shall be considered valid for any year for which the annual inspection fee has not been paid.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 307. Annual submission of information to inspector required.

Effective upon passage of this ordinance, and each year thereafter on its anniversary date, every owner or operator of a well or wells within the City shall provide the Inspector with the following information in electronic format as instructed by the Inspector:

**A.** A list of personnel to be contacted in case of an emergency at the well site. This list shall contain all information reasonably requested by the Inspector, including but not limited to the following:

**1.** The name(s) of such person or persons;

**2.** The job description(s) of such person or persons; and

**3.** The residence, office, and mobile telephone numbers of such person or persons.

**B.** A list of all wells owned or operated within the City by that owner or operator. This list shall include all wells, except wells which have been plugged and abandoned in compliance with the law. The list shall contain all information reasonably requested by the Inspector, including but not limited to the following:

**1.** The lease name and well number of each well;

**2.** The legal description (¼ Section, T.R., etc.) of each well; and

**3.** The status and use of each well.

*(Ord. No. 22189, § 1, 1-14-2010)*

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## CHAPTER 4. ENFORCEMENT

Section 400. Power and authority of Inspector.
Section 401. Order to cease operations.
Section 402. Appeals.

### Section 400. Power and authority of Inspector.

In enforcing the provisions of this title, the Inspector shall have such power and authority as set forth in this title.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 401. Order to cease operations.

In any situation in which the Inspector finds that any person is not in compliance within the terms of this title or any other state law or City ordinance or that, in his judgment, a hazard to life, natural resources, or property exists, he may order immediate remedial action by the permittee or other appropriate persons. If such persons take no immediate measures to come into compliance with the law or to reduce the hazard, or if the situation is so perilous as to constitute an imminent threat to safety, then the Inspector may order the prompt cessation of all activity at the well site, and if necessary, the clearance of the premises.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 402. Appeals.

Any person aggrieved by any order, directive, or ruling issued by the Inspector shall have such right of appeal as provided by law. The filing of such appeal shall not stay the enforcement of any of the provisions of this title.

*(Ord. No. 22189, § 1, 1-14-2010)*

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## CHAPTER 5. PENALTIES

Section 500. Violations, penalties.

### Section 500. Violations, penalties.

**A.** It shall be unlawful and an offense for any person to violate or neglect to comply with any provisions of this title.

**B.** Any person who shall violate any of the provisions of this title, or any of the provisions of a drilling and operating permit issued pursuant thereto, or any condition of the bond filed by the permittee pursuant to this title, or who shall neglect to comply with the terms hereof, shall be guilty of an offense and upon conviction, shall be punished by imprisonment in the City Jail for a period not exceeding six (6) months or by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or both such fine and imprisonment.

**C.** The permittee and all of his co-owners, partners, associates, employees, and contractors or any other persons who may have assisted in the commission of any violation of the provisions of this title shall each be deemed guilty of a separate offense.

**D.** The violation of each separate provision of this title, and of said permit, and of said bond, shall be considered a separate offense, and each day's violation of each separate provision thereof shall be considered a separate offense.

**E.** In addition to the foregoing penalties, it is further provided that the Inspector may, upon ten (10) days' written notice to the permittee, hold a hearing to consider the revocation or suspension of any permit issued under this title. Any violation of the provisions of this title or the terms of the permit shall be sufficient grounds for revocation or suspension. The written notice issued by the Inspector must specify the alleged grounds for revocation or suspension and the date, time, and place of the hearing.

**F.** Any continuing offense shall be considered a public nuisance, the remedies for which under law shall be in addition to those hereinbefore enumerated.

*(Ord. No. 22189, § 1, 1-14-2010)*

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## CHAPTER 6. DRILLING AND OPERATION OF OIL AND GAS WELLS

Section 600. Well location.
Section 601. Location of wells in streets and alleys, blocking or closing.
Section 602. Determination of routes to well site.
Section 603. Drilling operations; equipment.
Section 604. Compliance with applicable laws required.
Section 605. Fencing, screening, and landscaping.
Section 606. Noise, air quality, and other nuisances.
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Section 612. Fresh water supply wells.
Section 613. Disposal of muds.
Section 614. Surface casing.
Section 615. Affidavit required upon completion of well.
Section 616. Storage tanks and separators.
Section 617. Impounding around tanks by diking.
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Section 619. Open hole formation or drill stem testing.
Section 620. Flaring of gas.
Section 621. Disposal of saltwater or other deleterious substances.
Section 622. Fracturing and acidizing.
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Section 625. Depositing oil products.
Section 626. Service companies.
Section 627. Accumulation of vapor.
Section 628. Inspection of pressure lines.
Section 629. Pipeline placement; marking.
Section 630. Plugging abandoned wells.
Section 631. Copies of forms filed with Corporation Commission to be filed with Inspector.
Section 632. Wells within watershed areas of City water reservoirs and other areas near the reservoirs.
Section 633. Prohibition of pollution.
Section 634. Additional requirements for enhanced recovery or saltwater or deleterious substances disposal wells.
Section 635. Burning of trash prohibited.
Section 636. Location of surface facilities.
Section 637. Temporary abandoned wells.
Section 638. Blanket bond or blanket irrevocable letter of credit required.

### Section 600. Well location.

**A.** No well shall be drilled nor shall any tank batteries, well facilities, or equipment be located and no permit shall be issued for any well to be drilled at any location which is nearer than three hundred (300) feet to any occupied or unoccupied dwelling or any

other building used or designed and intended to be used for human occupancy unless the applicant has obtained written permission for the location of the well from all owners and lessees whose dwellings or other subject buildings are within three hundred (300) feet of the proposed well. This distance shall be calculated from the well bore, tank batteries, well facilities, and equipment to the closest exterior point of the dwelling or other subject building.

**B.** No well shall be drilled nor shall any tank batteries, well facilities, or equipment be located and no permit shall be issued for any well to be drilled at any location which is nearer than six hundred (600) feet to any public building, religious building, or school building unless the applicant has obtained written permission for the location of the well from the owners and lessees of such public building, religious building, or school building. This distance shall be calculated from the well bore, tank batteries, well facilities, and equipment to the closest exterior point of the building.

**C.** No well shall be drilled and no permit shall be issued for any well to be drilled at any location which is nearer than three hundred (300) feet to any fresh water well. This distance shall be calculated from the well bore to the fresh water well bore.

**D.** The provisions of this section shall also apply to any dwellings, public buildings, religious buildings, school buildings, or other subject buildings under construction or to any fresh water wells being drilled on the date the application for a permit is filed with the Inspector.

**E.** The application of the provisions of this section to a proposed well shall be determined by examining the existing uses of the surrounding property as of the date the application for a permit is filed with the Inspector.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 601. Location of wells in streets and alleys, blocking or closing.

No well shall be drilled, and no permit shall be issued for any well to be drilled, at any location which is within any of the streets or alleys of the City; and no street or alley shall be blocked or encumbered or closed in any drilling or production operation except upon the written approval of the Inspector, and then only temporarily.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 602. Determination of routes to well site.

**A.** At least thirty (30) days prior to the actual commencement of any operations at the well site, the permittee shall notify the Inspector in writing of the proposed date for commencement of such operations. Such notification shall also contain the following information:

**1.** The permittee shall identify the maximum length, width, and weight of any motor vehicles and the maximum weight of the load to be carried by any motor vehicles to be used in traveling to and from the well site; and

**2.** The permittee shall submit a complete list of the proposed routes to and from the well site for all motor vehicles to be used to travel to and from the well site. Such list shall identify any and all highways within the limits of the City proposed to be used by such motor vehicles in traveling to and from the well site.

The Inspector may also require any additional information which he deems necessary to evaluate the proposed routes.

**B.** Upon receipt of the notification required under Subsection A., the Inspector shall have twenty-five (25) days to review the information submitted by the permittee. In reviewing the proposed routes to the well site, the Inspector may consult with the Transportation and Engineering Divisions of the Public Works Department of the City.

**C.** Following review of the information submitted by the permittee, the Inspector shall prepare a written order which either approves or disapproves the routes to and from the well site as proposed by said permittee. If the Inspector disapproves of all or part of the proposed routes, then such Inspector shall, if possible, designate alternate routes which are acceptable. If the permittee disagrees with the routes as designated by the Inspector, then he shall have such right of appeal as provided by law.

**D.** During all drilling and production activities for the particular well, all motor vehicles used by any person to travel to and from the well site shall be restricted to the highways approved by the Inspector as appropriate routes to and from the well site.

**E.** The Inspector shall have the power and authority to amend the order designating routes to and from the well site upon his own initiative or upon application by the permittee.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 603. Drilling operations; equipment.

**A.** All drilling, re-entry, and operations at any oil and gas well within the city limits shall be conducted in accordance with the best available technology. All casing, valves, blowout preventers, drilling fluids, tubing, bradenhead, Christmas trees, and well head connections shall be of the type and quality consistent with the best available technology. The setting and cementing of casing and running of drill stem tests shall be performed in a manner and at a time consistent with the best available technology. All persons engaged in drilling or production operations shall observe and follow the recommendations or regulations of the American Petroleum Institute and the Corporation Commission, except in those instances that are specifically addressed by this title. A copy of all logs associated with the surface casing shall be filed with the Inspector.

**B.** Blowout prevention equipment shall be used on all wells being drilled, workedover, or in which tubing is being changed. Wells being drilled shall have at least three (3) hydraulically operated blowout preventers installed and these blowout preventers shall meet the American Petroleum Institute recommendation for Class 3M blowout preventers. Wells being drilled shall also have a kill line, choke line, and choke manifold which meet the recommendations of the American Petroleum Institute for Class 3M blowout prevention equipment. See Rules Controlling Drilling Operations in Watershed Areas of Tulsa Water Reservoirs and Other Areas Near the Reservoirs, Section 3, paragraphs 6a, 6b, and 6c.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 604. Compliance with applicable laws required.

All of the general rules and regulations of the Corporation Commission are hereby incorporated into this title and may be enforced by the Inspector. Any violation of any of

these rules and regulations shall be subject to enforcement and penalties as provided in this title. In the event of any conflicts between the provisions of this title and the Corporation Commission rules and regulations, the more restrictive provision shall apply.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 605. Fencing, screening, and landscaping.

**A.** Any person who owns, operates, or maintains any producing well shall have the obligation to enclose said well, together with its surface facilities, by a sight proof fence sufficiently high and properly built to keep persons and animals out of the enclosure. All gates thereto shall be kept locked when authorized persons are not within the enclosure. Provided, however, that the Inspector, upon written application by a permittee, may designate a different type of fence to be erected if he determines in a particular case that a sight proof fence is not necessary to protect the public health, safety, and welfare and that a different type of fence would meet those objectives.

**B.** Any person who completes any producing well located within six hundred (600) feet of any occupied or unoccupied dwelling shall meet the following sight proof landscaping requirements:

**1.** Such persons shall install evergreen vegetation or landscaped earth berms completely around the well site and all fences or lease equipment and facilities;

**2.** The vegetation or berms shall be a minimum of six (6) feet in height;

**3.** The vegetation or berms shall be sufficient to screen from view the structures sought to be screened; and

**4.** The vegetation or berms shall be kept in an attractive state and in good condition at all times by the permittee.

**C.** The Inspector shall also have the power and authority to require such general landscaping of any well site as he deems necessary. The phrase "general landscaping" shall mean the aesthetic improvement of land by adding trees, shrubs, lawns, ground cover, or flowers.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 606. Noise, air quality, and other nuisances.

**A.** All drilling and production operations shall be conducted in such a manner as to eliminate, as far as possible, dust, noise, vibration, or noxious odors, and shall be in accordance with the best available technology incident to exploration for, drilling for, or production of oil, gas, and other hydrocarbon substances. Proven technological improvements in exploration, drilling, and production methods shall be adopted as they become available, if capable of reducing factors of nuisance and annoyance.

**B.** Upon his own initiative, or upon request by a landowner residing within a one (1) mile radius from the well location, the Inspector, after confirmation of an air pollution issue related to the well, may require the operator to pay for an air quality test deemed necessary by the Inspector. Absent extraordinary circumstances, only one (1) such test to be paid for by the operator shall be required per year.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 607. Facilities.

All lease equipment shall be painted and maintained in a good state of appearance and shall have posted in a prominent place a metal sign no less than two (2) square feet in area which shall contain the following information: permittee's name, lease name, location of drill site by reference to the United States Survey, and identifying numbers of all permits.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 608. Fire prevention.

**A.** All permittees under the provisions of this title shall maintain adequate firefighting apparatus and supplies at the well site at all times during drilling and production operations. "Adequate firefighting apparatus and supplies" shall include, but shall not be limited to, all of the following:

**1.** During drilling operations, the permittee shall provide a minimum of four (4) portable fire extinguishers, the size, rating, distribution, and maintenance of which shall be in accordance with National Fire Protection Association (NFPA) Standard #10, entitled "Portable Fire Extinguishers," and NFPA Standard #30, entitled "Flammable Liquids Code";

**2.** Sources of ignition. In locations where flammable vapors may be present, precautions shall be taken to prevent ignition by eliminating or controlling sources of ignition. Sources of ignition may include open flames, lightning, smoking, cutting and welding, hot surfaces, frictional heat, sparks (static, electrical and mechanical) spontaneous ignition, chemical and physical-chemical reactions, and radiant heat. NFPA #77, "Recommended Practice on Static Electricity," and NFPA #78, "Lightning Protection Code," provide information on such protection;

**3.** The permittee shall protect all hazardous materials and/or special hazards at the well site in accordance with applicable NFPA standards; and

**4.** The permittee shall also comply with such other requirements which the Inspector or Tulsa Fire Marshal may prescribe for the particular well.

**B.** Lightning protection equipment as specified by the Inspector shall be installed at every site containing crude or water storage tanks. The lightning protection equipment specified by the Inspector shall be in accordance with the recommendations of the National Fire Protection Association.

**C.** Crude and water tanks shall be equipped with a vent system approved by the Inspector. A flame arrestor approved by the Inspector shall be installed on the vent line.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 609. Pits.

**A.** Steel mud or circulating pits shall be used. Such pits and contents shall be removed from the premises and the drilling site within sixty (60) days after completion of the well. No earthen pits shall be allowed, unless small and temporary and approved in writing by the Inspector. All pits must be securely fenced. No spoil piles are to be left overnight in any City right-of-way.

**B.** No earthen pits, lined or unlined, shall be constructed, used, or maintained in conjunction with any well within the City. This section shall apply to all pits described

as treating pits, overflow pits, settling pits, disposal pits, evaporation pits, dumping pits, or similar designations. Any and all existing pits of this type shall be properly closed within one hundred twenty (120) days of the effective date of this ordinance.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 610. Motive power.

Motive power for all well pumping equipment shall be electricity. Provided, however, that in respect to wells in operation with non-electric pumping equipment prior to passage of this ordinance, the Inspector shall have authority to waive the requirements of this section if he determines in a particular case that electric pumping equipment is not necessary to protect the public health, safety, or welfare.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 611. Derrick and rig.

It shall be unlawful and an offense for any person to use or operate in connection with drilling, re-entry, or reworking of any well within the City, any wooden derrick or any steam-powered rig, and all engines shall be equipped with adequate mufflers approved by the Inspector. Permitting any drilling rig or derrick to remain on the premises or drilling site for a period of longer than sixty (60) days after completion or abandonment of a well is hereby prohibited.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 612. Fresh water supply wells.

**A.** In the event a fresh water supply well is to be drilled to provide water for drilling operations, a permit shall first be obtained from the Oklahoma Water Resources Board and submitted to the Inspector.

**B.** The drilling of any fresh water supply well shall be performed only by a water well drilling contractor who has a current license from the state.

**C.** All such water wells shall be drilled and maintained in accordance with state law and regulations and in accordance with regulations promulgated by the Oklahoma Water Resources Board.

**D.** At the time such water well becomes no longer necessary, or upon completion of the oil and gas well, whichever occurs earlier, such well shall be:

**1.** Plugged pursuant to the standards and requirements of the Oklahoma Water Resources Board, and the Inspector shall be notified in writing of such plugging at least five (5) days in advance thereof and such Inspector shall have the right to be on-site at the time of such plugging; or

**2.** Control of the well shall be transferred to the landowner with written notice of such transfer to the Oklahoma Water Resources Board and the Inspector.

Failure to comply with the provisions of this subsection shall create a presumption of liability upon the permittee for any pollution resulting from an abandoned fresh water supply well.

**E.** Any person violating the provisions of this section will be subject to the penalties provided by state law or as provided in this title.

*(Ord. No. 22189, § 1, 1-14-2010)*

**Section 613. Disposal of muds.**

The disposal of drilling mud shall be by transporting the mud to a state-licensed disposal site or to a site approved for soil farming by the Corporation Commission. The mud may not be buried in an earthen pit, pumped down the well bore, or down the annulus of a well, nor spread on the surface of the ground. Transportation shall be in compliance with the requirements of Title 11, TRO, § 1210.

*(Ord. No. 22189, § 1, 1-14-2010)*

**Section 614. Surface casing.**

Surface casing shall be set in accordance with all applicable state rules and regulations. Such operations shall be monitored and reviewed by the Inspector. The Inspector may require all such samples as necessary to be submitted at drilling sites or elsewhere for quality control testing.

*(Ord. No. 22189, § 1, 1-14-2010)*

**Section 615. Affidavit required upon completion of well.**

Upon completion of the well, the operator shall certify to the Inspector by affidavit that the well has been set according to good engineering practices. The affidavit shall stipulate the number of sacks of cement, the class of cement, blended materials, weight of cement in pounds per gallon, cement displacement pressure, final pumping pressure, and whether check valves (float shoes, float collar) held the pressure. Commencement and completion times of such operation shall be stipulated. The affidavit shall be completed by a cementing service company and signed by both the operator and the cementing service company. The form to be submitted with this information shall be the same form used to submit the information to the Oklahoma Corporation Commission.

*(Ord. No. 22189, § 1, 1-14-2010)*

**Section 616. Storage tanks and separators.**

**A.** Crude oil storage tanks shall not be constructed, operated, or used except to the extent of two (2) steel tanks for oil storage, not exceeding five hundred (500) barrels' capacity each and constructed and maintained in accordance with the recommendations of the American Petroleum Institute. Provided, however, that additional storage tanks may be approved in writing by the Inspector.

**B.** A permittee may use, construct and operate a steel conventional separator and such other steel tanks and appurtenances as are necessary for treating oil. All such facilities shall be constructed and maintained to control vapors. Each oil and gas separator shall be equipped with both a regulation pressure relief safety valve and a bursting head. If excessive vapors are released from the tanks, the Inspector may require that a vapor recovery system be installed and operated to prevent the release of gas vapors into the atmosphere.

*(Ord. No. 22189, § 1, 1-14-2010)*

**Section 617. Impounding around tanks by diking.**

When protection of adjoining property or waterways is by means of impounding by diking around the tanks, such system shall comply with the following:

**A.** A slope of not less than one (1) percent away from the tank shall be provided for at least fifty (50) feet (fifteen (15) m) or to the dike base, whichever is less.

**B.** The volumetric capacity of the diked area shall not be less than the greatest amount of liquid that can be released from the largest tank within the diked area, assuming a full tank. To allow for volume occupied by tanks, the capacity of the diked area enclosing more than one (1) tank shall be calculated after deducting the volume of the tanks, other than the largest tank, below the height of the dike.

**C.** To permit access, the outside base of the dike at ground level shall be no closer than ten (10) feet (three (3) m) to any property line that is or can be built upon.

**D.** Walls of the diked area shall be of earth, steel, concrete, or solid masonry designed to be liquid tight and to withstand a full hydrostatic head. Earthen walls three (3) feet (0.90 m) or more in height shall have a flat section at the top not less than two (2) feet (0.60 m) wide. The slope of an earthen wall shall be consistent with the angle of repose of the material of which the wall is constructed. Diked areas for tanks containing Class I liquids located in extremely porous soils may require special treatment to prevent seepage of hazardous quantities of liquids to low-lying areas or waterways in case of spills.

**E.** Every tank battery associated with a well or group of wells shall be separated from any other tank battery associated with any other well or wells by a dike of a height as required in Subsection 617.B. of this title. A dike shall also be constructed to separate the crude storage tanks and water storage tanks from separators, heater treaters, and other vessels. The height of this dike shall meet the requirements of Subsection 617.B. of this title. The provisions of this subsection shall apply only to tanks or equipment installed, placed, or replaced on or after the effective date of this ordinance.

**F.** There shall be a separation distance of at least twenty-five (25) feet between crude and water storage tanks and heater treaters or other equipment designed to be heated with burners or electric elements. The provisions of this subsection shall apply only to tanks or equipment installed, placed, or replaced on or after the effective date of this ordinance.

**G.** Where provision is made for draining water from diked areas, such drains shall be controlled in a manner so as to prevent flammable or combustible liquids from entering natural watercourses, public sewers, or public drains, if their presence would constitute a hazard. Control of drainage shall be accessible under fire conditions from outside the dike.

**H.** Storage of combustible materials shall not be permitted within the diked area.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 618. Ingress and egress.

Lease roads shall be maintained in such manner as to safely and comfortably allow for ingress and egress of City or state personnel traveling in a common passenger motor vehicle. Provided, however, that the provisions of this section shall not apply to producing wells and well sites without tank batteries which are located more than six hundred (600) feet from any building. Ingress and egress shall be as approved by the Inspector.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 619. Open hole formation or drill stem testing.

**A.** Unless otherwise authorized by the Inspector, all open hole formation or drill stem testing shall be done during daylight hours, with adequate advance notification thereof to the Inspector to enable him to be present during such testing.

**B.** All open hole formation testing shall be done into steel tanks or flared properly in the case of gas.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 620. Flaring of gas.

All produced gas shall either be sold or flared with the flaring procedures being approved by the Inspector and the Fire Marshal.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 621. Disposal of saltwater or other deleterious substances.

**A.** Every permittee shall make sufficient provisions for the safe disposal of saltwater or other deleterious substances which he may bring to the surface of the earth. The disposal shall not result in pollution of the waters of the City and shall not result in any other environmental hazard. Such disposal shall incorporate the best available techniques and equipment. When an applicant files an application for a permit to drill a new well, the method of disposing of produced saltwater shall be described in the application. When a disposal well located inside the City is to be used, the applicant shall identify the disposal well by operator, lease, well name and number, and location.

**B.** In the event of any leakage or spillage of any pollution or deleterious substance, whatever the cause thereof, the permittee shall promptly notify the Inspector. If, in the judgment of the Inspector, such leakage or spillage represents a potential environmental hazard, he may issue whatever corrective orders he deems appropriate and additionally may require the appropriate testing of the surface and subsurface for pollutant incursion, the cost of all such testing to be paid by the permittee.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 622. Fracturing and acidizing.

In the completion of an oil and gas, injection, disposal, or service well, where acidizing or fracturing processes are used, no oil, gas, or other deleterious substances or pollutants shall be permitted to pollute any surface or subsurface fresh waters.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 623. Swabbing, bailing, and purging wells.

In swabbing, bailing, or purging a well, all deleterious substances removed from the bore hole shall be placed in appropriate tanks or pits and no substances shall be permitted to pollute any surface or subsurface fresh waters. The permittee and operator shall also comply with the provisions of Chapter 8 of this title.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 624. Rupture in surface or production casing.

In the event a rupture, break or opening occurs in the surface or production casing, the permittee or the operator or drilling contractor shall promptly report the incident to the Inspector. Immediate action shall be taken to repair such casing and the repairs shall be witnessed by the Inspector.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 625. Depositing oil products.

No person shall deposit, drain, or divert into or upon any public highway, street, alley, drainage ditch, storm drain, sewer, gutter, paving, creek, river, lake, or lagoon, any oil or oily liquid with petroleum content, or any mud, rotary mud, sand, water or saltwater, or in any manner permit, by seepage, overflow or otherwise, any of such substances to escape from any property owned, leased or controlled by such person.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 626. Service companies.

Upon request of the Inspector, service companies or other persons shall furnish and file reports and records showing perforating, hydraulic fracturing, cementing, shooting, chemical treatment, and all other service operations on any well site covered by this title. Such furnished material shall remain confidential unless necessary as evidence in the prosecution of any violation of the provisions of this title. Failure to provide any such requested material shall constitute a violation of this title.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 627. Accumulation of vapor.

The Inspector shall have the authority to require the immediate shutting in or closing of any well if he finds that there exists, within a one hundred-foot radius of any well, any gas or gasoline vapor in a quantity sufficient to constitute, in his judgment, or in the judgment of the Fire Marshal, a fire hazard. The well shall remain shut in or closed in until the hazard and its cause have been remedied.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 628. Inspection of pressure lines.

The Inspector shall inspect all pressure lines in use at any well or at any project to ensure that tubing, fittings, equipment, or connections are reasonably tight, safe, and free from leaks.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 629. Pipeline placement; marking.

**A.** Unless exempt pursuant to Title 15, TRO, Chapters 3 and 4, repair, installation, replacement, or any work associated with pipe or pipeline located in City rights-of-way shall be governed by the provisions of Title 11, TRO, Chapter 12 entitled: "Rights-of-Way Occupancy Management," including the need to obtain construction and occupancy permits provided for therein.

**B.** All new or replacement pipe or pipelines shall be covered and must be not less than forty-eight (48) inches below the existing ground level as verified and approved by the Inspector. Prior to installation, the owner of the pipeline shall submit to the Public Works Director or his designee and the Inspector the pipeline design criteria, including but not limited to, operating pressures, pipeline gradient and elevation to sea level, location, pipe ASTM grade, pipe manufacturer, pipe wall thickness, and pipeline capacity and volume. Prior to and subsequent to installation of each segment of new or replacement pipeline, the pipe and pipeline must receive and pass an on-site inspection

of the compliance with design criteria and the process of installation. The forty-eight (48) inch depth requirement in this Subsection A. shall not apply to piping constructed or installed within the diked tank battery, which piping may be placed at ground level.

**C.** All new or replacement pipe or pipelines located in public rights-of-way shall require construction and occupancy permits authorized in Title 11, TRO, Chapter 12. In addition to any other requirement set out by state law or ordinance, all new and replacement pipe or pipeline crossings must meet one (1) of the following criteria:

**1. Cased Crossing.** The pipeline crossings must pass through a casing of a design and constructed in accordance with the United States Department of Transportation standards set forth in 49 CFR 192.323 (Casing) as same exists on the date of the adoption of this ordinance, or as amended.

**2. Uncased Crossing.** The pipeline crossing must conform in design, construction, and installation to the United States Department of Transportation standards set forth in 49 CFR 192 Subpart C as same exists on the date of the adoption of this ordinance, or as amended. Construction, installation, and use of an uncased pipeline crossing shall be allowed only when the pipe utilized for the crossing is a minimum of one (1) ASTM grade higher in tensile strength and a minimum of one (1) step greater in wall thickness than the materials otherwise required by the Code.

**D.** The location of all new or replacement pipe and pipelines shall be marked by the owner(s) thereof or by the person installing or operating such pipelines as follows:

**1.** Marker signs shall be placed at all locations where pipe or pipelines cross property boundary lines and at each side of a public street or road right-of-way which the pipe or pipeline crosses;

**2.** The top of all marker signs shall be a minimum of four (4) feet above ground level, and the support post must be sufficient to support the marker sign and shall be painted yellow or such other color as may be approved by the Director of Public Works or his designee;

**3.** All marker signs shall be a minimum of twelve (12) inches square and shall be marked as "Gas Pipe Line," "Oil Pipe Line," or "S.W. Pipe Line" or as may be applicable; and

**4.** All marker signs shall contain the name of the owner and operator of the pipeline. It is the joint and several responsibility of the owner and the operator of any and all pipeline to maintain the markers in accordance with this title.

**5.** "Locate Wires" - Locate wires, consisting of a minimum #6 rating solid core PVC coated wire, or equivalency approved by the Public Works Director of his designee, shall be required on all underground pipelines located in City of Tulsa rights-of-way.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 630. Plugging abandoned wells.

**A.** Every person owning or operating any well and the officers, agents, and employees of such person shall begin removing all derricks, machinery, concrete foundations, and any and all other objects that interfere with the leveling of the land within a period of sixty (60) days from the day of abandonment of the well and shall remove such objects

in a workmanlike manner. Such person shall also grade, level, and restore the land as nearly as possible to the same conditions which existed before the well was first commenced.

**1.** Any well in which production casing has been run but which has not been operated for six (6) months, and which has not received temporarily abandoned status from the Oklahoma Corporation Commission and the Inspector, and any well in which no production casing has been run and for which drilling operations have ceased for thirty (30) consecutive days, shall be presumed to be abandoned and shall be plugged in accordance with Section 630 of this title.

**2.** Any well which has not had the annual inspection fees paid (as required in Section 307 of this title) for a period of one (1) year, or for which the Inspector has not been provided proof of bond or letter of credit as required in Section 638 of this title, or for which the Inspector has not been provided proof of insurance as provided in Section 304 of this title, shall be presumed to be abandoned and shall be plugged in accordance with Section 630 of this title.

**B.** Whenever any well having sufficient casing to meet the requirements of this title is abandoned, it shall also be the duty of the permittee and the operator of the well to set a two hundred (200) foot cement plug in the bottom of the surface casing, with the bottom of the plug one hundred (100) feet below the surface casing section, and to set a fifty (50) foot cement plug in the top of the surface casing. A cement plug shall also be placed in the well bore above, but within one hundred (100) feet of the shallowest zone known to produce hydrocarbons or considered by the Inspector to be capable of producing hydrocarbons, in either commercial or noncommercial quantities, or known to have been used for injection or disposal of any fluid within three (3) miles of the well being plugged. This plug may be:

**1.** A two hundred (200) foot cement plug placed in a section of the hole from which the casing has been removed;

**2.** A bridge plug capped with twenty (20) feet of cement when a cement bond log is available to show that the casing is cemented at the depth where the plug is required; or

**3.** A plug formed by setting a bridge plug in the casing, perforating the casing above the bridge plug, setting a cement retainer above the perforations, running tubing into the hole, and squeezing cement through the tubing, retainer, and perforations. The bridge plug may be omitted when a pressure test approved by the Inspector is performed to prove the integrity of the casing.

**C.** The Inspector shall require that cement plugs, except those installed in connection with a bridge plug or retainer, be tagged with a string of pipe or a wireline weight to confirm that the cement plug has hardened in the correct location.

**D.** When any cement plug is found to be deficient, an additional cement plug shall be placed in the well bore or other appropriate corrective action shall as ordered by the Inspector be taken. No surface or conductor string of casing may be pulled or removed from a well. During initial abandonment operations, it shall also be the duty of the permittee and operator to flood the well with mud-laden fluid. This fluid shall have a density not less than nine (9) pounds per gallon and a viscosity not less than thirty-six (36) funnel seconds as measured with a standard marsh funnel. Provided, however,

that in no case shall the density of this mud be less than the density of the mud used to complete the drilling of the well or less than the density required to create sufficient hydrostatic pressure to prevent the well from attempting to kick or flow. Prior to commencing plugging operations, the Inspector shall be notified so that he may witness the plugging operations.

**E.** Whenever a permittee or operator desires to plug and abandon any well drilled within the City, except a well which is still within its original drilling permit period or a dry hole, the permittee or operator shall apply to the Inspector for a permit to plug the well. The application for the permit to plug the well shall be on forms provided by the Inspector and shall be accompanied by a nonrefundable application fee in the amount established in Title 49 TRO, except that no fee will be required to plug a well which is within the period covered by the original drilling permit. The application fee shall be paid by cashier's check. The permittee shall pay an additional nonrefundable permit fee in the amount established in Title 49 TRO, when the permit is approved and accepted, and this amount shall also be in the form of a cashier's check. The applicant shall submit two (2) copies of the application as required by the Inspector. In the application for a permit to plug a well, the applicant shall include evidence of the depth of the base of the fresh water in the vicinity of the well, copies of all Corporation Commission reports filed on the well, a well bore diagram showing the proposed plugged condition of the well, a copy of electric logs run on the well and a proposed plugging procedure. Copies of any temperature surveys or cement bond logs run to determine the top of the cement outside the casing strings shall be included in the permit application.

**F.** Whenever any well having a lesser amount of surface casing than required by this title is abandoned, it shall be the duty of the permittee or operator of the well to plug the well in accordance with the provisions of this subsection. To effect the plugging of said well, the production casing shall be cut at a depth at least two hundred (200) feet deeper than the base of the fresh water zones. A cement plug shall be placed in the well bore with the bottom of the plug located two hundred (200) feet deeper than the base of the fresh water zone and the top of the plug located at least one hundred (100) feet inside the surface casing. If the production casing cannot be removed as required, then the operator or permittee shall propose an alternative plugging procedure, but no plugging may be performed unless the procedure has been approved by the Inspector. The Inspector shall be notified so that he may witness the plugging of the well. The remainder of the plugging requirements for wells not having sufficient surface casing shall be the same as for wells which do have sufficient surface casing.

**G.** In exceptional circumstances, the Inspector shall have authority to approve recognized and appropriate plugging procedures other than these set forth herein. Such approval shall be in writing and shall be signed by the Inspector.

**H.** The cement used to plug wells shall be API Class A or Class H cement and no volume extenders may be added to this cement.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 631. Copies of forms filed with Corporation Commission to be filed with Inspector.

**A.** Copies of all applications, notices, forms, records, logs, and all similar documents filed by the permittee with the Corporation Commission shall also be filed with the

Inspector within one (1) week of filing with the Corporation Commission. The Inspector shall keep confidential all materials submitted unless such material is necessary as evidence in prosecution of any violation of the provisions of this title or required to be available for public inspection under applicable law including but not limited to the Oklahoma Open Records Act.

**B.** No transfer of any permit shall be valid until the Corporation Commission approved Form 1073, Transfer of Ownership, is provided to the Inspector. No permittee shall be released from the requirements of this title until the Inspector is provided with proof of change of operator and submittal of the required documentation as provided by Section 305, Section 307, and Section 638 of this title.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 632. Wells within watershed areas of City water reservoirs and other areas near the reservoirs.

**A.** Under no circumstances shall a well be permitted closer than six hundred sixty (660) feet to the high-water shoreline of a reservoir, including areas which are located outside the watershed of a city water reservoir.

**B.** No well shall be permitted within the watershed of a city water reservoir unless it is located on the surface of such watershed, and in no case closer than six hundred sixty (660) feet to the high-water shoreline of said reservoir.

**C.** Any well permitted under Subsection B. to be located within the watershed in which a city water reservoir is contained, or to be located outside the watershed area but within one (1) mile of a city water reservoir, shall comply with all of the then-current "Rules Controlling Drilling Operations in Watershed Areas of Tulsa Water Reservoirs and other Areas Near the Reservoirs," as adopted by the City. In the event of any conflicts between such rules and the provisions of this title, the more restrictive provisions shall apply. A current copy of the "Rules Controlling Drilling Operations in Watershed Areas of Tulsa Water Reservoirs and other Areas Near the Reservoirs," is on file and may be obtained from the City Clerk's office or from the Inspector.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 633. Prohibition of pollution.

**A.** All permittees, operators, contractors, drillers, service companies, pipe-pulling and salvaging contractors, or other persons shall at all times conduct their operations and drill, equip, operate, produce, plug, and abandon all wells drilled for oil or gas, service wells or exploratory wells (including seismic, core, and stratigraphic holes) in a manner that will prevent pollution and the migration of oil, gas, saltwater, or other substance from one (1) stratum into another, including any other fresh water bearing formation. Pollution of surface or subsurface fresh water by deleterious substances used in connection with the exploration, drilling, producing, refining, transporting, or processing of oil or gas is hereby prohibited.

**B.** The Inspector shall have the authority to pursue all steps necessary to monitor compliance with Subsection A., including the construction of monitoring water wells to physically document any impact on any fresh water bearing formation.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 634. Additional requirements for enhanced recovery or saltwater or deleterious substances disposal wells.

**A.** Every enhanced recovery or disposal well shall be constructed so as to seal the injection zone from the upper portion of the casing. The annulus between the injection tubing and the casing shall be filled with a noncorrosive fluid, then sealed and a one-quarter (1/4) inch female fitting with cutoff valve shall be attached so that the pressure in the annulus may be measured by the Inspector by attaching a gauge having a one-quarter (1/4) inch male fitting. The annulus between the production casing and the injection tubing shall be pressure tested to a pressure at least two hundred fifty (250) psi greater than the injection pressure proposed for the well. The pressure testing shall be witnessed and approved by the Inspector. Copies of Corporation Commission Form No. 1015 shall also be filed with the Inspector. A pressure shall be maintained in the annulus sufficient to monitor the fluids in the annulus. Any significant deviation from the established pressure shall be cause to shut down the well, and may result in cancellation of the operating permit, until such time as the established pressure can once again be maintained.

**B.** Injection lines for such wells shall be buried in a trench of a depth no less than four (4) feet, and shall be pressure tested (static) annually at a minimum of one hundred fifty (150) percent of the pressure normally encountered at the injection pump discharge for a period of hours to be fixed by the Inspector. Said Inspector shall be notified in writing five (5) days in advance of such test and may supervise same. Test results shall be filed with the Inspector upon completion.

**C.** The annulus between the production casing and the surface casing shall be equipped with the appropriate fittings to provide a one-quarter (1/4) inch female fitting equipped with a cutoff valve so that the pressure in the annulus may be measured by the Inspector. Any indication of pressure on this annulus shall be cause to shut down the well and may result in the cancellation of the operating permit, until such time as the problem can be corrected.

**D.** The permit for an enhanced recovery or disposal well shall state the maximum injection pressure. Exceeding this injection pressure shall be considered a violation of this title.

**E.** The injection tubing or injection line near the injection tubing shall be equipped with a one-quarter (1/4) inch female fitting and cutoff valve so that the Inspector may measure the injection pressure by the installation of a gauge equipped with a standard one-quarter (1/4) inch fitting.

**F.** Before performing any down-hole work on an enhanced recovery or disposal well, the operator shall notify the Inspector at least five (5) days in advance of performing this work. The Inspector shall witness the installation of tubing and packer in an enhanced recovery or disposal well. The annulus between the injection tubing and the production casing shall then be pressure tested to a pressure at least two hundred fifty (250) psi in excess of the approved injection pressure. The Inspector shall witness the pressure testing of this annulus. The pressure test shall be repeated at least every six (6) months and shall be witnessed by the Inspector.

**G.** The permittee or operator of the well shall submit to the Inspector a monthly report stating the amount of water injected during the month and the maximum tubing pressure.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 635. Burning of trash prohibited.

No permittee or any other person shall burn any trash or debris within one thousand (1,000) feet of any well location or equipment.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 636. Location of surface facilities.

Whenever necessary to protect the health, safety or welfare of the public, the Inspector is hereby authorized to direct any permittee or operator to locate, relocate, remove, or replace any well surface facilities located within a particular drilling unit.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 637. Temporary abandoned wells.

Whenever the Oklahoma Corporation Commission has granted "temporary abandonment status" for a well, the permittee or operator may apply to the Inspector for "temporary abandonment status." "Temporary abandonment status" may be granted by the Inspector for a maximum of two (2) years, except when an extension is obtained from the Mayor. The "temporary abandonment status" may be granted by the Inspector to the applicant provided all requirements and conditions placed upon the well by the Inspector are met by the applicant. These requirements and conditions shall include, but shall not be limited to, all of the following:

**A.** For enhanced recovery or disposal wells, a cast iron bridge plug shall be placed above, but within one hundred (100) feet of the perforated interval and a minimum of twenty (20) feet of cement shall be placed on the cast iron bridge plug. The casing shall be pressure tested to a pressure approved by the Inspector. Pressure testing shall be repeated annually on a date to be specified by the Inspector. The production casing and each annulus of the well shall be equipped with fittings to permit the pressure on each string of casing to be measured using a gauge having a one-quarter (¼) inch fitting.

**B.** Producing wells shall have fittings and valves installed to permit the pressure on tubing and each string of casing to be measured using a gauge having a one-quarter (¼) inch fitting.

**1.** A fluid level test shall be performed on each well in this classification at intervals not to exceed six (6) months, and the pressure shall be checked on the tubing and each casing string at least every six (6) months.

**2.** If the fluid level in the production casing when no tubing is installed in the well is found to be less than two thousand (2,000) feet from ground level then the same requirements specified in Subsection A. above shall be applied.

**3.** If the fluid level in both the tubing and the tubing-casing annulus when tubing and packer are installed in the well is found to be less than two thousand (2,000) feet from the surface, then the requirements shall be the same as in Subsection A., above.

**4.** If pressure in excess of fifty (50) psi is found on the production casing or when other evidence of a leak exists, the requirements shall be as in Subsection A., above.

**C.** If pressure in excess of fifty (50) psi is found on the surface casing of any well or when other evidence of a leak exists, additional tests shall be performed to determine if a

casing leak or channel flow outside the casing exists. When the Inspector determines that a leak exists, appropriate repair work or remedial cementing shall be performed by the permittee or applicant to correct the problem. All repair procedures shall be approved by the Inspector. The Inspector shall be notified so that he may witness the repair work and test to confirm the success of such repair work.

**D.** The permittee and operator of any well granted "temporary abandonment status" under the provisions of this section shall also comply with any other requirements or conditions imposed by the Inspector and such permittee and operator shall continue to comply at all times with the provisions of Section 305 and Section 307 of this title.

*(Ord. No. 22189, § 1, 1-14-2010)*

**Section 638. Blanket bond or blanket irrevocable letter of credit required.**

**A.** Any person who drills or operates any well for the exploration, development, or production of oil or gas, or as an injection or disposal well, within this City shall furnish on forms approved by the Inspector and maintain at all times a blanket bond or blanket irrevocable letter of credit in the principal sum of at least One Million Dollars ($1,000,000.00). Said bond or letter of credit must be executed by a reliable insurance company or bank authorized to do business in the state, as surety or creditor, and with the applicant/permittee as principal or debtor, running to the City for the benefit of the City and all persons concerned, conditioned that the applicant/permittee shall comply with the terms and conditions of this title in the drilling and operation of oil wells drilled or operated within the City. Said bond or letter of credit must become effective on or before the date the same is filed with the City and remain in full force and effect for at least twelve (12) months subsequent to the expiration of the permit term and, in addition, the bond or letter of credit must be conditioned that the applicant/permittee must promptly pay all fines, penalties and other assessments imposed upon the applicant/permittee by reason of his breach of any of the terms, provisions, or conditions of this title, and that the applicant/permittee must promptly restore the streets, sidewalks, and other public property of the City which may be disturbed or damaged during the applicant/permittee's operations to their former condition; and that the applicant/permittee must promptly clear all premises of all litter, trash, waste, and other substances and must, after abandonment, grade, level, and restore said property to the same surface condition, as far as possible, as existed prior to commencing operations; and further that the applicant/permittee shall indemnify and hold harmless the City from any and all liability attributable to granting the permit; and that the applicant/permittee shall promptly pay all sums with respect to deductibles on covered losses under insurance policies required by this title; and that the applicant/permittee shall comply with all of the terms of this title concerning the abandonment and/or plugging of all such wells. Each bond or letter of credit submitted shall cover all wells drilled or operated by said person within the City.

**B.** For good cause, the Inspector, after notice to and hearing for a permittee, may require the filing of a blanket bond or letter of credit in an amount higher than One Million Dollars ($1,000,000.00) but not to exceed Two Million Dollars ($2,000,000.00). "Good cause" shall include, but shall not be limited to, a showing that the operator or permittee has previously violated any of the provisions of Title 42-A.

**C.** The blanket bond or letter of credit required by this section shall be submitted and maintained in full force and effect at all times by all persons drilling, completing, operating, maintaining, and/or producing any well located within the limits of the City, whether drilling operations were commenced on, prior, or subsequent to adoption of this title.

*(Ord. No. 22189, § 1, 1-14-2010)*

## CHAPTER 7. ARTIFICIAL PRODUCTION

Section 700. Approval required for conversion to artificial production.
Section 701. Permissible working pressure; booster plant.
Section 702. High-pressure lines.
Section 703. Pressure gauges on air or gas lifts.
Section 704. Portable pumping units.
Section 705. Violations.

### Section 700. Approval required for conversion to artificial production.

**A.** No person shall commence any operation to change the equipment of an oil or gas well for the purpose of converting from natural to artificial production of oil or gas, or commence any operation for the purpose of cleaning, repairing, or reconditioning any such well, before notifying the Inspector and Chief of the Fire Department or any of his authorized representatives that such operation is to be commenced. No person shall commence such operation unless he receives approval as set forth in Subsection B. of this section.

**B.** The Chief of the Fire Department or his authorized representatives, or the Inspector, shall give approval for converting from natural to artificial production if it appears that compliance with the provisions of this chapter have been and are being met.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 701. Permissible working pressure; booster plant.

In no case shall gas or air be transported through any pipeline at a working pressure in excess of one thousand (1,000) pounds. If it is necessary to use a greater working pressure, a gas or air booster plant shall be installed not closer than seventy-five (75) feet from the derrick floor of a well or tank battery and the compressor unit not greater than one hundred (100) feet from the derrick floor of the well being served. In no event shall more than one thousand five hundred (1,500) pounds working pressure be used in flowing a well by artificial means.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 702. High-pressure lines.

A pipe used for the transportation of air or gas ranging from six hundred (600) to one thousand (1,000) pounds pressure shall be from two (2) to ten (10) inches in outer diameter and shall be seamless pipe with welded or screwed couplings. Any new or replacement pipe shall be covered and not less than forty-eight (48) inches below the regular ground level and shall be placed in conduit whenever laid under any portion of a street, roadway, alley, or driveway ordinarily used for heavy vehicular traffic. These lines shall be tested before being used and every six (6) months thereafter the test shall be made with water and the pipe shall stand a pressure of two thousand (2,000) pounds.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 703. Pressure gauges on air or gas lifts.

**A.** At each well where air or gas lift is used, there shall be placed on the air or gas lift an indicating pressure gauge which shall show the working pressure of air or gas delivered to the well at all times.

**B.** When any air or gas is supplied in any air or gas lift line from a source of supply outside the City, one (1) recording pressure gauge which contains charts shall be placed on the line at the point where it enters the City. The charts shall be preserved and open to inspection by the Inspector. On plants or sources of gas lift or air inside the City, a recording pressure gauge shall be placed between the plant and the well or wells served.

**C.** All gauges installed on lines shall be tested and corrected every six (6) months.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 704. Portable pumping units.

Every person operating a portable pumping unit used for the pumping of oil shall equip the unit before the operation or use thereof, on both the suction and discharge sides, with steel flexible tubing or with pipe or tubing composed of some other material that is approved by the Inspector.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 705. Violations.

If the Inspector finds that any person is carrying on activity in violation of this title, he shall order the activity to cease until compliance is made. No person shall renew such activity until the Inspector finds that compliance has been made and permission given for the renewed activity.

*(Ord. No. 22189, § 1, 1-14-2010)*

## CHAPTER 8. SWABBING WELLS

Section 800. Compliance.
Section 801. Lubricator.
Section 802. Valves on lines leaving flow casing.

### Section 800. Compliance.

No person shall begin the operation of swabbing an oil or gas well without first complying with the provisions of this chapter.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 801. Lubricator.

**A.** No well shall be swabbed before a device, commonly known as a lubricator, has been placed on the flow casing above all outlets or flow lines of the well. The lubricator shall be not less in diameter than the flow casing and equipped with an adequate oil saver or stuffing box at the top. The total inside length of the lubricator shall be not less than five (5) feet more than the total length of swab and turn back on swab line. The lubricator shall have a nipple not less than two (2) inches in diameter nor more than four (4) inches in length, placed not more than six (6) inches from the top and on flow line or lines between gate valve on the flow lines and flow casings. The nipple shall be provided with a gate valve not less than two (2) inches in size. All equipment and parts of the lubricator shall be of a type designed and tested to withstand a pressure of three thousand (3,000) pounds per square inch. All pressure tests shall be by the hydrostatic method.

**B.** The lubricator shall be tied down from the top to the casing next in size to flow casing with wire line of not less than five-eighths (5/8) inch in diameter or by iron or steel rods not less than one and one-quarter (1¼) inches in diameter. The tiedown shall be equipped with turnbuckles and adequate clamps. Guy lines shall be provided from the top and bottom of the lubricator to the derrick legs. The guy lines shall be not less than five-eighths (5/8) inch in diameter and shall be tied into the derrick legs at the same level as on the lubricator. A small gate valve at the top of the lubricator shall be tied back to it, using clamps of required size.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 802. Valves on lines leaving flow casing.

All lines leaving the flow casing shall be equipped with a gate valve of not less than three thousand (3,000) pounds per square inch test and the same size of line and be placed not farther than twenty-four (24) inches from the flow casing. The valve or valves shall be tied back to the flow casing using necessary clamps and wire line or rods as specified in Section 801.

*(Ord. No. 22189, § 1, 1-14-2010)*

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## CHAPTER 9. LOADING RACKS

Section 900. Definition.
Section 901. Construction generally.
Section 902. Construction permits and fees.
Section 903. Use of fire resistant materials in construction.
Section 904. Electrical wiring and equipment specifications.
Section 905. Specifications for motors.
Section 906. Grounding and bonding.
Section 907. Filler head or dome.
Section 908. Fire protection devices and requirements.

### Section 900. Definition.

As used in this article the term "loading rack" shall mean any platform or structure built alongside a railroad track for use in loading crude oil, gasoline, kerosene, or other liquid petroleum products into tank cars.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 901. Construction generally.

No person shall construct a loading rack for crude oil, gasoline, kerosene, or other liquid petroleum products, except as permitted under this title.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 902. Construction permits and fees.

No person shall commence construction of a loading rack, without obtaining a permit from the Public Works Director or his designee. Permits shall be issued only after approval by the Fire Marshal. The fees for the permit shall be as established in Title 49 TRO.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 903. Use of fire resistant materials in construction.

Only fire resisting materials shall be used in the construction of a loading rack or a building or structure used in connection with or on the same premises as loading racks.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 904. Electrical wiring and equipment specifications.

All electrical wiring and electrical equipment shall be installed in loading racks in compliance with the electrical code in force in the City. All light outlets used in close proximity to loading racks shall be of a vapor-proof type, approved by the United States Bureau of Mines.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 905. Specifications for motors.

All motors used in connection with or near any loading racks shall be of an induction type or of any type that can be used in connection with an explosive atmosphere.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 906. Grounding and bonding.

Each loading rack and the railroad track which is to be used with that loading rack shall be bonded and grounded into the same wire.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 907. Filler head or dome.

A filler head or dome of a type approved by the Fire Marshal shall be used for loading tank cars from any loading rack. The filler head or dome shall have a vertical vent not less than three (3) inches in diameter and ten (10) feet in height from the dome of the tank car.

*(Ord. No. 22189, § 1, 1-14-2010)*

## Section 908. Fire protection devices and requirements.

Fire protection devices shall be maintained at all times at loading racks and approved by the Fire Marshal, including:

**A.** An adequate water supply;

**B.** Foam-producing chemicals with a minimum required amount of five (5) pounds for each foot of length of the loading rack; and

**C.** Any other foam equipment specifically required by the Fire Marshal.

*(Ord. No. 22189, § 1, 1-14-2010)*

## CHAPTER 10. PIPELINES

Section 1000. Enforcement generally.
Section 1001. Interpretation.
Section 1002. Limitations upon rights granted.
Section 1003. Special provisions for natural gas pipelines.
Section 1004. Pressure limitations.
Section 1005. Ditches.
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Section 1009. Fees for interchanging of pipelines.
Section 1010. Alternative to removing pipelines under any public or City property, right-of-way, easement, or utility reserve; plugging; permit fee
Section 1011. Fee collection procedure.
Section 1012. Unsafe pipeline to be shut down.
Section 1013. Abatement of nuisances.
Section 1014. Violations.

### Section 1000. Enforcement generally.

**A.** Unless exempt pursuant to Title 12, TRO, Chapters 3 and 4, repair, installation, replacement, or any work associated with pipe or pipeline located in City rights-of-way shall be governed by the provisions of Title 11, TRO, Chapter 12 entitled: "Rights-of-Way Occupancy Management," including the need to obtain construction and occupancy permits provided for therein.

**B.** The Inspector, the Public Works Director, and the Chief of Police shall exercise constant supervision of the pipelines, meters, valves, gauges, pumps, appliances, and equipment located in the streets, alleys, and public places and report to the Mayor all violations of this title, and all dangerous, defective, or unsuitably placed pipelines, meters, valves, gauges, pumps, appliances, and equipment, and guard the public at all times from the dangers incident to the erection, maintenance, and operation of all pipelines, meters, valves, gauges, pumps, appliances, and equipment used in connection with the sale or distribution of natural or artificial gas to consumers in the City and its environs, in, under, or upon the streets, alleys, or public places.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1001. Interpretation.

**A.** None of the provisions of this article shall be construed or operate to prevent or render unnecessary the securing of a construction or occupancy permit for the erection, maintenance, or operation of pipelines, meters, valves, gauges, pumps, appliances, and equipment in, under, or upon any of the streets, alleys, or public places if the pipelines and the equipment referred to herein are used in the sale or distribution of natural or artificial gas to consumers in the City and its environs nor shall any provisions or any act or proceeding conducted under this article be construed as a grant by the City of the right or privilege to use the streets, alleys, or public places for the purposes provided.

**B.** The compensation provided by Title 11, TRO, § 1203 for the nonfranchised use of the streets, alleys, and public places shall be for occupation and use, and shall be in addition to other penalties provided for in this title.

**C.** This chapter, or any part of it, may be altered or repealed at any time, and no rights or privileges shall ever be acquired under it which may not be withdrawn, altered, or modified by the City.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1002. Limitations upon rights granted.

The provisions of this chapter or any acts and proceedings conducted under it shall not be construed as a grant by the City of the right or privilege to use the streets, alleys, or public places for the purposes provided in this chapter, or any purpose, except for and during the annual period immediately succeeding the time fixed for payment of fees to the City and then only if such payment is actually made.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1003. Special provisions for natural gas pipelines.

All pipelines, connections, and fixtures installed or used for the purpose of the transportation of natural gas shall be equivalent to the specifications of the National Gas Safety Code, adopted and approved by the United States Department of Commerce and now in force, as to thickness, weight, size, strength, and general character of material, workmanship, and manner of installation. All pipelines used in connection with the drilling of wells, other than gas lines and lines used for the transportation of petroleum or any of its products, shall be new lap-weld or seamless pipe and shall be equivalent to the specifications as now adopted by the American Petroleum Institute for lap-weld of Grade A seamless pipeline. All such lines shall be operated and maintained in a safe manner at all times so as to prevent all leakage or escape of their contents.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1004. Pressure limitations.

Pressure in any line shall not exceed those permitted by the rules, regulations or orders of the Corporation Commission then in force.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1005. Ditches.

All ditches for pipelines shall be excavated in a manner that will make the smallest possible opening in the public property, provided that all ditches shall be constructed six (6) inches wider than the outside diameter of the pipe. The minimum space between the outside diameter of pipes shall be six (6) inches.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1006. Special provisions for pipes under streets.

On streets and alleys, all pipelines shall be buried to a minimum depth of forty-eight (48) inches below the normal surface of the ground, the depth to be measured from the top of the pipe, and shall be approved by the Public Works Director or his designee.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1007. Removal or change of pipe.

If it becomes necessary to change or remove any pipeline, the entire expense of change or removal shall be borne by the owner upon the approval of the Public Works Director or the Inspector. The removal or change shall be made within five (5) days after notice is given by the City. A right-of-way construction permit shall be obtained prior to any such work.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1008. Testing of gas pipelines and correction of defects.

Each owner or operator of a gas pipeline other than a high-pressure line for which a permit is required under this title shall have it tested at least once every six (6) months for the purpose of determining whether it is in safe condition and free from leaks, breaks, or open spaces, and make a report of the test supported by an affidavit by the person making the test to the Public Works Director. The test may be by the stench method, electrical detection method, or any other method approved by the Inspector; provided that each gas pipeline at the time of its installation shall be tested by the Inspector, and a report of the test shall be filed with the Public Works Director before the operation of that line. Testing periods shall end on September 15 and March 15 of each year. No person shall continue the operation of any pipeline after the termination of any testing period provided herein without having it tested and making the required report. For failure to make the test and report, or if the report discloses or it otherwise appears that any line is leaking, defective, or unsafe, the Inspector shall, within five (5) days of such disclosure, or within five (5) days after the closing of any testing period, close and shut the pipeline.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1009. Fees for interchanging of pipelines.

If a pipeline covered by this article is placed in a ditch where another similarly covered pipeline is being removed and if it is not necessary to deepen the ditch and a high-pressure line is not exchanged where a low-pressure line has previously been, a fee in the amount established in Title 49 TRO shall be collected; provided, however, that in a case where it is necessary to deepen the ditch and the new pipeline being placed in the ditch is a high-pressure line taking the place of a low-pressure line, an additional fee in the amount established in Title 49 TRO, shall be charged for the removal of the old line.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1010. Alternative to removing pipelines under any public or City property, right-of-way, easement, or utility reserve; plugging; permit fee

**A. Abandonment and Plugging.** In lieu of the actual removal of a pipeline or portion thereof located underneath any public or City property, right-of-way, easement, or utility reserve, the owner of a pipeline for which an abandonment permit has been applied and issued may relinquish his ownership and abandon that portion beneath any public or City property, right-of-way, easement, or utility reserve by first pumping the pipe full of material approved by the Public Works Director, then properly disposing of any residue coming out of the pipe, and securely plugging each end of the pipe left beneath any public or City property, right-of-way, easement, or utility reserve. However, before abandoning and plugging the pipe, the owner shall file with the City Clerk, or incorporate in the application for an abandonment permit, a written transfer

and assignment to the City of all his interest, possession, and title in and to the abandoned pipe, and shall give thirty (30) days' previous written notice to the Public Works Director as to when and where the owner proposes to plug the pipe. The work shall require a right-of-way construction permit and be subject to inspection and approval of the Inspector and the Director or his authorized representative.

**B. Permit Fee.** Every applicant for an abandonment permit shall pay an inspection and regulation fee per rod based on the number of rods in length of pipeline to be abandoned. The amount of such fee shall be as established in Title 49 TRO.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1011. Fee collection procedure.

The fees required by this title to be paid shall be deemed a debt to the City, and upon failure to pay them the City may maintain a civil action in any court of competent jurisdiction for the recovery and collection of the debt.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1012. Unsafe pipeline to be shut down.

If a pipeline becomes unsafe or is not maintained as provided in this title or if any of the contents escape, the person in control of the line shall immediately discontinue its use and shut off all its contents until the line is repaired.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1013. Abatement of nuisances.

The Inspector, the Public Works Director, or the Chief of Police or any or all of these officers shall summarily abate or remove any of the pipelines, meters, valves, gauges, pumps, appliances, and equipment declared by this title to be a nuisance immediately upon the order given by the Mayor or his designee. No person shall prevent or attempt to prevent any officer or employee or agent of the City from abating or removing any such pipelines, meters, valves, gauges, pumps, appliances, and equipment declared to be a nuisance or interfere with such officer, employee, or agent when engaged in or attempting to engage in such work. All expenses of the abatement shall remain the responsibility of the owner/operator of the facilities.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1014. Violations.

Each day's violation of any provision of this title shall constitute a separate offense.

*(Ord. No. 22189, § 1, 1-14-2010)*

## CHAPTER 11. EXCAVATION PERMIT

Section 1100. Permit required.
Section 1101. Application.
Section 1102. Fee.
Section 1103. Consent of property owners.
Section 1104. Expiration and renewal.

### Section 1100. Permit required.

No person shall make an excavation in any part of public property or in any public utility reserve for the purpose of laying, removing, installing, or maintaining a pipeline without first having obtained a right-of-way construction permit from the City to do so.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1101. Application.

An applicant for the permit required by the provisions of this chapter shall file a plan with the Public Works Director showing in detail the size of the pipeline, the depth and width and the exact location of the excavation or pipeline with particular reference to all structures or lines of the City or any public utility company, sidewalk, pavement, or other public improvement.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1102. Fee.

Every applicant for a permit required by the provisions of this chapter shall pay to the City Treasurer the fee established in Title 11 TRO, Chapter 12.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1103. Consent of property owners.

Where a pipeline is laid in any public utility reserve, the applicant for a pipeline permit shall first obtain written permission or consent from all owners of property through and over which the public utility reserve runs before applying for a permit under the provisions of this chapter.

*(Ord. No. 22189, § 1, 1-14-2010)*

### Section 1104. Expiration and renewal.

**A.** A permit issued pursuant to the provisions of this chapter shall expire on the permit end date or one (1) year from its date of issuance, whichever is sooner, and shall be renewed upon payment to the City of the fee established in Title 11 TRO, Chapter 12.

**B.** Any permit may be revoked for failure to comply with the requirements set out in 11 TRO, Chapter 12.

*(Ord. No. 22189, § 1, 1-14-2010)*

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## CHAPTER 12. COMMERCIAL DISTRIBUTION SYSTEMS FOR GAS

Section 1200. Franchise or permit required.

### Section 1200. Franchise or permit required.

No person shall erect, lay, maintain, or operate any pipelines, meters, valves, gauges, pumps, appliances, and equipment used, or which are to be used, in the sale or distribution of natural or artificial gas to consumers in this City and its environs and maintained or operated in, under, or upon any of the streets, alleys, or public places, or assist or participate therein, without a franchise or permits, as required by all applicable City ordinances.

*(Ord. No. 22189, § 1, 1-14-2010)*

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# TITLE 42-B RESERVED*

*__Editor's note—__Ord. No. 23403, § 2, adopted November 9, 2015, repealed the former Title 42-B, Chs. 1—7 and Appendix. Formerly, such title pertained to Form-Based Code. See Code Comparative Table for complete derivation. Refer to the link referenced in Title 42 for the new Tulsa Zoning Code, Chs. 1 through 95.

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# TULSA

# CODE OF

# ORDINANCES

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# VOLUME IV

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# TITLE 43 CITY OF TULSA SALES TAX CODE

## Chapter 1. City Sales Tax Code

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## CHAPTER 1. CITY SALES TAX CODE

Section 100. Sales tax levied.
Section 100.1. Limited-Purpose, Public Safety Permanent Sales Tax Levied.
Section 100.2. Limited-Purpose, Street Maintenance and Public Transportation Permanent Sales Tax Levied.
Section 100.3. Limited Purpose Economic Development Temporary Sales Tax Levied.
Section 100.4. 2021 Limited-Purpose, Economic Stabilization Reserve ("Rainy Day Fund") Permanent Sales Tax Levied.
Section 100.5. 2023 Temporary Sales Tax Levied.
Section 101. Adoption of state exemptions except sale of residential gas and electricity.
Section 102. Tax due when, returns, records.
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Section 104. Tax constitutes debt.
Section 105. Vendor's duty to collect and remit tax.
Section 106. Returns and remittances, discounts.
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Section 108. Waiver of interest and penalties.
Section 109. Erroneous payments, claim for refund.
Section 110. Filing of sales tax returns.
Section 111. Records confidential.
Section 112. Amendments.
Section 113. Provisions cumulative.
Section 114. Definitions.
Section 115. Tax collector defined.
Section 116. Classification of taxpayers.
Section 117. Subsisting state permits.
Section 118. Purposes of revenue.
Section 119. Rebate.
Section 120. Reserved.
Section 121. Posting of sales tax permit.

### Section 100. Sales tax levied.

*Text operative through September 30, 2011*

There is hereby levied, pursuant to 68 O.S. § 2701.A., an excise tax of three percent (3%) of the gross proceeds or gross receipts derived from all sales taxable under the sales tax code of Oklahoma, including any and all amendments thereto and revisions thereof, and additionally upon the sale of natural or artificial gas and electricity when sold exclusively for residential use as authorized by 68 O.S. § 1357(8).

For text operative on and after October 1, 2011, see Section 100, post.

### Section 100. Sales tax levied.

*Text operative on and after October 1, 2011*

There is hereby levied, pursuant to 68 O.S. § 2701.A., an excise tax of three and two-twelfths percent (3$^{2}/_{12}$%) of the gross proceeds or gross receipts derived from all sales

taxable under the sales tax code of Oklahoma, including any and all amendments thereto and revisions thereof, and additionally upon the sale of natural or artificial gas and electricity when sold exclusively for residential use as authorized by 68 O.S. § 1357(8).

For text operative on and after July 1, 2014, see Section 100, post.

### Section 100. Sales tax levied.

*Text operative on and after July 1, 2014*

There is hereby levied, pursuant to 68 O.S. § 2701.A., an excise tax of two percent (2%) of the gross proceeds or gross receipts derived from all sales taxable under the sales tax code of Oklahoma, including any and all amendments thereto and revisions thereof, and additionally upon the sale of natural or artificial gas and electricity when sold exclusively for residential use as authorized by 68 O.S. § 1357(8).

*(Ord. Nos. 10679, 12147, 14845, 16290, 17400, 18594, 20043, 21220, 21600, 21879)*

### Section 100. Sales tax levied.

*Text operative on and after July 1, 2014*

There is hereby levied, pursuant to 68 O.S. § 2701.A., an extended temporary excise tax, also known as a sales tax, of one and one-tenth percent (1.1%) in addition to the currently existing permanent excise tax of two percent (2%) of the gross proceeds or gross receipts derived from all sales taxable under the sales tax code of Oklahoma, including any and all amendments thereto and revisions thereof, and additionally upon the sale of natural or artificial gas and electricity when sold exclusively for residential use as authorized by 68 O.S. § 1357(8). The said temporary one and one-tenth percent (1.1%) sales tax shall remain in effect until the end of the next available calendar quarter as soon as the full amount of Five Hundred Sixty-Three Million Seven Hundred Thousand Dollars ($563,700,000.00) shall have been collected, but in no event later than seven (7) years, that is, June 30, 2021, at which time the said extended temporary one and one-tenth percent (1.1%) sales tax shall expire, and the permanent two percent (2%) sales tax shall be left unchanged.

The Mayor or his/her designee shall give notice to the Oklahoma Tax Commission, as provided by law, to reduce the sales tax levied pursuant to this chapter from three and one-tenth percent (3.1%) to two percent (2%) at the end of the next available calendar quarter as soon as Five Hundred Sixty-Three Million Seven Hundred Thousand Dollars ($563,700,000.00) is collected from the funds raised from the incremental increase of the tax levy from two percent (2%) to three and one-tenth percent (3.1%) or after seven (7) years, that is, June 30, 2021, whichever is earlier; provided, the Mayor or his/her designee may give notice to the Oklahoma Tax Commission upon a reasonable estimate that collections shall meet or exceed Five Hundred Sixty-Three Million Seven Hundred Thousand Dollars ($563,700,000.00) during the then-current calendar quarter.

*(Ord. No. 22921, § 1, 8-22-2013; Ord. No. 23067, § 1, 3-13-2014)*

### Section 100.1. Limited-Purpose, Public Safety Permanent Sales Tax Levied.

*Text operative on and after January 1, 2017*

There is hereby levied, pursuant to Title 68 Oklahoma Statutes, Section 2701, a permanent excise tax, also known as a sales tax, of sixteen one-hundredths of one percent (.16%) for the

limited purpose of supporting public safety functions in the City of Tulsa. The said sales tax shall be in addition to the currently existing permanent sales tax of two percent (2%), and the current temporary sales tax of one and one-tenth percent (1.1%), set forth in Section 100 of this Title and approved by the voters on November 12, 2013. The said sixteen one-hundredths of one percent (.16%) permanent sales tax shall commence on January 1, 2017 and shall continue until July 1, 2021, on which date it shall increase to a twenty-six one-hundredths of one percent (.26%) permanent sales tax. The said tax shall be a limited-purpose tax; any and all revenue derived from it shall be deposited into a limited-purpose fund created by the City of Tulsa. All revenue derived from the said tax shall be expended by the governing body of the City of Tulsa for the purpose of funding public safety; specifically, for Police, Fire and 911 operations, rolling stock, maintenance, equipment and supplies, as further set forth in detail in Title 43-1 of Tulsa Revised Ordinances, "2017 Limited-Purpose, Public Safety Permanent Sales Tax Policy". No revenue derived from said tax shall ever be used for any purpose other than public safety.

*(Ord. No. 23420, § 1, 1-28-2016, Elec. of 4-5-2016)*

### Section 100.2. Limited-Purpose, Street Maintenance and Public Transportation Permanent Sales Tax Levied.

*Text operative on and after January 1, 2017*

There is hereby levied, pursuant to Title 68 Oklahoma Statutes, Section 2701, a limited-purpose permanent excise tax, also known as a sales tax, of eighty-five thousandths of one percent (.085%) for the purpose of supporting the construction, operations and maintenance of streets, traffic and public transportation systems in the City of Tulsa and paying debt service on indebtedness issued for such purposes. The said sales tax shall be in addition to the currently existing permanent sales tax of two percent (2%) and the current temporary sales tax of one and one-tenth percent (1.1%), set forth in Section 100 of this Title and approved by the voters on November 12, 2013. The said eighty-five thousandths of one percent (.085%) permanent sales tax shall commence on January 1, 2017. The said tax shall be a limited-purpose tax; any and all revenue derived from it shall be deposited into a limited-purpose fund created by the City of Tulsa. All revenue derived from the said tax shall be expended by the governing body of the City of Tulsa for the purpose of maintaining and supporting public streets, traffic and public transportation systems; that is, funding capital projects, operations, salaries and maintenance, and purchasing rolling stock, fuel, materials and supplies and paying debt service on indebtedness issued for such purposes, as set forth in detail in Title 43-J of Tulsa Revised Ordinances, "2017 Limited-Purpose Street Maintenance and Public Transportation Permanent Sales Tax Policy". No revenue derived from said tax shall ever be used for any purpose other than public street maintenance and public transportation systems.

*(Ord. No. 23421, § 1, 1-28-2016, Elec. of 4-5-2016)*

### Section 100.3. Limited Purpose Economic Development Temporary Sales Tax Levied.

*Text operative on and after January 1, 2017*

There is hereby levied, pursuant to Title 68 Oklahoma Statutes 2701, a limited-purpose temporary excise tax, also known as a sales tax, of three hundred five thousandths of one

percent (.305%) beginning January 1, 2017, increasing to eight hundred five thousandths of one percent (.805%) on July 1, 2021, then decreasing to three hundred five thousandths of one percent (.305%) on July 1, 2025 and continuing until December 31, 2031, on which date it shall expire, for the purpose of acquiring, constructing, equipping, furnishing, operating and maintaining economic development projects in the City of Tulsa, including Arkansas River development. The said sales tax shall be in addition to the currently existing permanent sales tax of two percent (2%) and the temporary sales tax of one and one-tenth percent (1.1%), set forth in Section 100 of this Title and approved by the voters on November 12, 2013. The said tax shall be a limited-purpose tax; any and all revenue derived from it shall be deposited into a limited-purpose fund created by the City of Tulsa. All revenue derived from the said tax shall be expended by the governing body of the City of Tulsa for the purpose of encouraging economic development projects in the City, including Arkansas River development, and for paying debt service on indebtedness issued for such purposes, as set forth in detail in Title 43-K of Tulsa Revised Ordinances, "2017 Limited-Purpose Economic Development Temporary Sales Tax Policy". No revenue derived from said tax shall ever be used for any purpose other than economic development.

*(Ord. No. 23422, § 1, 1-28-2016, Elec. of 4-5-2016)*

### Section 100.4. 2021 Limited-Purpose, Economic Stabilization Reserve ("Rainy Day Fund") Permanent Sales Tax Levied.

*Text operative on and after July 1, 2021, or upon collection of $563,700,000.00 pursuant to the 2014 Extended 1.1% Sales Tax, whichever occurs first.*

"There is hereby levied, pursuant to Title 68 Oklahoma Statutes, Section 2701, a permanent excise tax, also known as a sales tax, of five one-hundredths of one percent (.05%) for the limited purpose of supporting the Economic Stabilization Reserve (the "Rainy Day Fund") in the City of Tulsa. The said sales tax shall be in addition to any currently existing City of Tulsa sales tax. The said five one-hundredths of one percent (.05%) permanent sales tax shall commence on July 1, 2021, or upon collection of $563,700,000.00 pursuant to the 2014 Extended 1.1% Sales Tax, whichever occurs first. The said tax shall be a limited-purpose tax; any and all revenue derived from it shall be deposited into a limited-purpose fund created by the City of Tulsa. All revenue derived from the said tax shall be expended by the governing body of the City of Tulsa for the purpose of funding the Economic Stabilization Reserve.

"Any amounts collected that would cause total monies in the Economic Stabilization Reserve to exceed thirty percent (30%) of actual total General Fund revenues will be allocated to the General Fund Emergency Operating Reserve. Any amounts collected that would cause total monies in the General Fund Emergency Operating Reserve to exceed ten percent (10%) of the total General Fund budget will be allocated to the General Fund, for maintenance and operation of municipal infrastructure, facilities, and equipment.

"The Economic Stabilization Reserve shall be administered and utilized as provided in Article 2 Tulsa City Charter, Sections 7.4 through 7.9, as amended from time to time."

*(Ord. No. 24178, § 1, 8-7-19, Elec. of 11-12-19)*

### Section 100.5. 2023 Temporary Sales Tax Levied.

There is hereby levied, pursuant to Title 68 Oklahoma Statutes, Section 2701, a limited purpose temporary excise tax, also known as a sales tax, of ninety-five one-hundredths of

one percent (.95%) for the purpose of funding projects of the City of Tulsa and paying debt service on indebtedness issued for such purposes. This sales tax shall be in addition to the currently existing permanent sales tax. The said ninety-five one-hundredths of one percent (.95%) temporary sales tax shall commence upon the expiration of the 2021 Miscellaneous Capital Improvements Temporary Sales Tax (Title 43-L TRO), namely, December 31, 2025, or when One Hundred Ninety-Three Million Dollars and No Cents ($193,000,000.00) has been collected, whichever occurs first.

This tax shall be a limited-purpose tax; any and all revenue derived from it shall be deposited into a limited-purpose fund created by the City of Tulsa. All revenue derived from the said tax shall be expended by the governing body of the City of Tulsa for the funding of projects and paying debt service on indebtedness issued for such purposes, as set forth in detail in Title 43-M TRO, "2023 Temporary Sales Tax Policy (Ordinance No. 25042)". This tax shall terminate on June 30, 2030.

*(Ord. No. 25041, § 1, 5-24-2023, election of 8-8-2023)*

**Section 101. Adoption of state exemptions except sale of residential gas and electricity.**

There is hereby specifically exempted from the tax levied pursuant to the provisions of this chapter the gross receipts or gross proceeds exempted by the sales tax code of Oklahoma, including any and all amendments to and revisions thereof; provided however, that the gross receipts or gross proceeds derived from the sale of natural or artificial gas and electricity sold exclusively for residential use shall NOT be exempt from the tax levied herein.

*(Ord. Nos. 10679, 10722)*

**Section 102. Tax due when, returns, records.**

The tax levied hereunder shall be due and payable at the time and in the manner and form prescribed for payment of the state sales tax under the sales tax law of the state of Oklahoma.

*(Ord. No. 10679)*

**Section 103. Bracket system guidelines.**

The bracket system guidelines established by the Oklahoma Tax Commission, including the revisions of same, are hereby adopted for the convenience of vendors in the City of Tulsa for collecting both the state sales tax and the city sales tax. Such bracket system guidelines shall be interpreted so as not to be inconsistent with the purposes provided in 68 O.S.Supp.1996, § 1362, in respect to the state of Oklahoma sales tax code.

The use of the bracket system guidelines does not relieve the vendor from the duty and liability to remit to the tax collector an amount equal to the applicable percentage of the gross receipts or gross proceeds (less discounts allowed by law and ordinance) derived from all sales during the taxable period.

*(Ord. Nos. 10679, 12147, 14845, 16290)*

### Section 104. Tax constitutes debt.

Such taxes, penalty and interest hereunder shall at all times constitute a prior, superior and paramount claim as against the claims of unsecured creditors and may be collected by suit as any other debt.

*(Ord. No. 10679)*

### Section 105. Vendor's duty to collect and remit tax.

**A.** The tax levied hereunder shall be paid by the consumer or user to the vendor, and it shall be the duty of each and every vendor in this City to collect from the consumer or user the full amount of the tax levied by this chapter or an amount equal as nearly as possible or practicable to the average equivalent thereof. Every person required to collect any tax imposed by this chapter, and in the case of a corporation, each principal officer thereof, shall be personally liable for such tax.

**B.** Vendors shall add the tax imposed hereunder, or the average equivalent thereof, to the sales price or charge and, when added, such tax shall constitute a part of such price or charge, shall be a debt from the consumer or user to vendor until paid and shall be recoverable at law in the same manner as other debts.

**C.** A vendor, as defined herein, who willfully or intentionally fails, neglects or refuses to collect the full amount of the tax levied by this chapter, or willfully or intentionally fails, neglects or refuses to comply with the provisions of this chapter, or remits or rebates to a consumer or user, either directly or indirectly, and by whatsoever means, all or any part of the tax herein levied, or makes in any form of advertising, verbally or otherwise, any statement which infers that he is absorbing the tax or paying the tax for the consumer or user by an adjustment of prices or at a price including the tax, or in any manner whatsoever, shall be deemed guilty of an offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees, and assessments, and/or by imprisonment in the City jail for a period of not more than sixty (60) days. Each day a violation exists shall constitute a separate violation.

**D.** Any sum or sums collected or required to be collected in accordance with the provisions of this title shall be deemed to be held in trust for the City of Tulsa, Oklahoma. Any person, firm, corporation, joint venture or association that willfully or intentionally fails, neglects or refuses to remit the tax, after the tax levied by this chapter was collected, shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees, and assessments, and/or by imprisonment in the City jail for a period of not more than sixty (60) days. Each day a violation exists shall constitute a separate violation.

**E.** It shall be unlawful for any of the following vendors to engage in or transact a business of reselling tangible personal property or services within the City of Tulsa, unless a written sales tax permit has been issued to him. This subsection shall apply to:

**1.** Any vendor who is regularly and continuously engaged in a business at an established place of business and makes sales subject to the Oklahoma sales tax code;

**2.** Any vendor who is engaged in a business in the City of Tulsa and makes sales incidental to such business which are subject to the Oklahoma sales tax code;

3. Any vendor who is a transient person, firm or corporation and makes seasonal sales, or in any manner becomes subject to the Oklahoma sales tax code; and
4. Any vendor, either within or without this state, who makes sales, subject to the Oklahoma sales tax code, through peddlers, solicitors or other salesmen who do not have established places of business in the City of Tulsa.

Any person who engages in a business subject to the provisions of this section without a permit or permits, or after a permit has been suspended, shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and upon conviction for a second or subsequent violation hereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees, and assessments, and/or by imprisonment in the City jail for a period of not more than sixty (60) days. Each day a violation exists shall constitute a separate violation.

*(Ord. Nos. 10679, 13931, 16688; Ord. No. 22773, § 1, 10-4-2012)*

**Section 106. Returns and remittances, discounts.**

Returns and remittances of the tax herein levied and collected shall be made to the tax collector at the time and in the manner, form and amount as prescribed for returns and remittances required by the state sales tax code; and remittances of tax collected hereunder shall be subject to the same discount as may be allowed by such code for collection of state sales taxes.

*(Ord. No. 10679)*

**Section 107. Interest and penalties, delinquency.**

Title 68 O.S.Supp.1996, § 217, is hereby adopted and made a part of this chapter, and interest and penalties at the rates and in the amounts specified therein are hereby levied and shall be applicable in cases of delinquency in reporting and paying the tax levied by this chapter; provided, however, that the failure or refusal of any taxpayer to make and transmit the reports and remittances of tax in the time and manner required by this chapter shall cause such tax to be delinquent. In addition, if such delinquency continues for a period of five (5) days, the taxpayer shall forfeit his claim to any discount allowed under this chapter.

*(Ord. No. 10679)*

**Section 108. Waiver of interest and penalties.**

The interest or penalty or any portion thereof accruing by reason of a taxpayer's failure to pay the city tax herein levied may be waived or remitted in the same manner as provided for such waiver or remission as applied in administration of the state sales tax provided in 68 O.S.Supp.1996, § 220; and to accomplish the purposes of this section, the applicable provisions of § 220 are hereby adopted by reference and made a part of this chapter.

*(Ord. No. 10679)*

**Section 109. Erroneous payments, claim for refund.**

Refund of erroneous payment of the city sales tax herein levied may be made to any taxpayer making such erroneous payment in the same manner and procedure, and under

the same limitations of time, as provided for administration of the state sales tax as set forth in 68 O.S. Supp. 1996, § 227, and to accomplish the purposes of this section, the applicable provisions of § 227 are hereby adopted by reference and made a part of this chapter.

*(Ord. No. 10679)*

**Section 110. Filing of sales tax returns.**

In addition to all the civil penalties provided by this chapter, the willful failure or refusal of any taxpayer to make reports or remittances herein required, or the making of any false or fraudulent report for the purpose of avoiding or escaping payment of any tax or portion thereof rightfully due under this chapter, shall be a misdemeanor offense and, upon conviction thereof, the offending taxpayer shall be punished by a fine of not more than Twelve Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, and/or by imprisonment in the City jail not to exceed a period of ninety (90) days.

*(Ord. Nos. 10679, 16437, 16753; Ord. No. 22773, § 1, 10-4-2012)*

**Section 111. Records confidential.**

The confidential and privileged nature of the records and files concerning the administration of the city sales tax is legislatively recognized and declared; and to protect the same, the provisions of 68 O.S.Supp.1996, § 205, of the state uniform tax procedure and each subsection thereof, is hereby adopted by reference and made fully effective and applicable to administration of the city sales tax as if here set forth in full.

*(Ord. No. 10679)*

**Section 112. Amendments.**

The people of the City of Tulsa, Oklahoma, by their approval of this chapter at the election hereinafter provided, hereby authorize the City of Tulsa, by ordinances duly enacted, to make such administrative and technical changes or additions in the method and manner of administration and enforcing this chapter as may be necessary or proper for efficiency and fairness, except that the rate of the tax herein provided shall not be charged without approval of the qualified electors of the City as provided by law.

*(Ord. No. 10679)*

**Section 113. Provisions cumulative.**

The provisions hereof shall be cumulative and in addition to any and all other taxing provisions of the revised ordinances of the City of Tulsa.

*(Ord. No. 10679)*

**Section 114. Definitions.**

The definitions of words, terms and phrases contained in the Oklahoma sales tax code, 68 O.S.Supp.1996, § 1352, are hereby adopted by reference and made a part of this chapter.

*(Ord. No. 10679)*

### Section 115. Tax collector defined.

The term "Tax Collector" as used herein means the department of the City government or the official agency of the state, duly designated according to law or contract authorized by law, to administer the collection of the tax herein levied.

*(Ord. No. 10679)*

### Section 116. Classification of taxpayers.

For the purpose of this chapter, the classification of taxpayers hereunder shall be as prescribed by state law for purposes of the Oklahoma sales tax code.

*(Ord. No. 10679)*

### Section 117. Subsisting state permits.

All valid and subsisting permits to do business issued by the Oklahoma Tax Commission pursuant to the Oklahoma sales tax code are, for the purpose of this chapter, hereby ratified, confirmed and adopted in lieu of any requirement for an additional City permit for the same purpose.

### Section 118. Purposes of revenue.

*Text operative through June 30, 2014*

It is hereby declared to be the purpose of this chapter to provide revenues for the support of the functions of the municipal government of the City of Tulsa; any and all revenue in excess of the first two percent (2%) excise tax shall be expended by the governing body of the City of Tulsa for the purposes of making capital improvements to and paying the costs and expenses of operation and maintenance relating to the repair, construction and reconstruction of streets, bridges and related infrastructure of the City; making other capital improvements of the City as hereinafter defined; and for the purpose of reducing indebtedness of the trust authorities for which the City is beneficiary made for such purposes; and any and all other revenues derived hereunder may be expended by the governing body of the City of Tulsa, Oklahoma, for any purpose for which funds may be lawfully expended as authorized by the Charter of the City of Tulsa and the statutes of the state of Oklahoma.

The term "capital improvements" as used herein is defined to comprehend all items and articles not consumed with use, but only diminished in value with prolonged use, including, but not limited to, the purchase, lease or rental of machinery, equipment, traffic control devices and street lighting systems, furniture and fixtures; the acquisition of all real properties; the construction, reconstruction and repair of buildings, appurtenances and improvements to real property; the construction, reconstruction and repair of roads and highways and/or streets and alleys, including the acquisition of rights-of-way and other real property necessary for such construction; and the construction, reconstruction and repair of water lines, sanitary and storm sewers and related facilities, including the acquisition of rights-of-way and other real property necessary for such construction.

For text operative on and after July 1, 2014, see Section 118, post.

### Section 118. Purposes of revenue.

*Text operative on and after July 1, 2014*

It is hereby declared to be the purpose of this chapter to provide revenues for the support of the functions of the municipal government of the City of Tulsa; any and all revenue derived from the extended temporary one and one-tenth percent (1.1%) sales tax levied by Section 100, above, in excess of the permanent two percent (2%) sales tax, shall be expended by the governing body of the City of Tulsa for the purpose of making capital improvements to and paying the costs and expenses of operation and maintenance relating to the repair, construction and reconstruction of streets, bridges and other infrastructure of the City; and making other capital improvements of the City as hereinafter defined and as set forth in detail in Title 43-H of Tulsa Revised Ordinances, "2014 Sales Tax Policy".

The term "capital improvements" as used herein is defined to comprehend all items and articles not consumed with use, but only diminished in value with prolonged use, including, but not limited to, the purchase, lease or rental of machinery, equipment, traffic control devices and street lighting systems, furniture and fixtures; the acquisition of all real properties; the construction, reconstruction and repair of buildings, appurtenances and improvements to real property; the construction, reconstruction and repair of roads, highways, bridges and/or streets and alleys, including the acquisition of rights-of-way and other real property necessary for such construction; and the construction, reconstruction and repair of water lines, sanitary and storm sewers and related facilities, including the acquisition of rights-of-way and other real property necessary for such construction.

*(Ord. No. 22921, § 2, 8-22-2013)*

**Section 118. Purposes of revenue.**

*Text operative on and after July 1, 2021*

It is hereby declared to be the purpose of this chapter to provide revenues for the support of the functions of the municipal government of the City of Tulsa, Oklahoma; therefore, any and all revenues derived hereunder may be expended by the governing body of the City of Tulsa, Oklahoma, for any purpose for which funds may be lawfully expended as authorized by the Charter of the City of Tulsa, and the statutes of the state of Oklahoma.

*(Ord. Nos. 10679, 12147, 14845, 16060, 16290, 17400, 18594, 20043, 21220, 21600, 21879)*

**Section 119. Rebate.**

Repealed by Ord. No. 16290.

**Editor's note—**See Title 22, Chapter 3, Section 301, for rebate provisions. Ord. No. 21913.

**Section 120. Reserved.**

**Editor's note—**Ord. No. 22921, § 3, adopted August 22, 2013, repealed § 120, which pertained to termination date. See also the Code Comparative Table and Disposition List.

**Section 121. Posting of sales tax permit.**

The following provisions shall apply to any vendor required by the state of Oklahoma to obtain a sales tax permit:

**A.** If the vendor maintains a location open to the public for the sale of items or services, as listed in Section 100 hereof, the vendor shall post the permit or a legible copy of the permit within plain site of each public entrance to the vendor's premises.

**B.** If sales are transacted from a mobile location, including but not limited to a vehicle, a trailer or other place from which the vendor conducts business, the vendor shall post the sales tax permit, or a legible copy thereof, conspicuously upon such mobile location.

**C.** For all other sales transacted within the City, a legible copy of the vendor's sales tax permit shall be furnished each employee or contractor entitled to present invoices or collect monies from customers, to be presented upon request as part of the invoicing or collection process.

**D.** Any person who violates any of the provisions of this section shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and upon conviction for a second or subsequent violation hereof, shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by incarceration in the City jail for a period of not more than sixty (60) days; provided, however, that any person producing proof to the court within two (2) business days after the violation that a current sales tax permit, which has been issued by the Oklahoma Tax Commission, was in force at the time of the alleged offense shall be entitled to dismissal of such charge upon payment of court costs.

*(Ord. Nos. 21460, 21532)*

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# TITLE 43-A 1980 SALES TAX EXPENDITURE POLICY

## Chapter 1. 1980 Sales Tax Expenditure Policy

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## CHAPTER 1. 1980 SALES TAX EXPENDITURE POLICY

Section 100. Declaration of policy.
Section 101. Overview Committee.
Section 102. Special revenue fund established.
Section 103. Procedure to amend or repeal this chapter.

### Section 100. Declaration of policy.

**A.** The governing body of the City of Tulsa hereby officially and solemnly pledges to the citizens of Tulsa:

**1.** That ALL funds received by the City from the temporary sales tax increase to be voted upon October 7, 1980, will be spent ONLY for those projects and purposes set forth herein;

**2.** That NONE of such funds shall ever be spent for any other purpose;

**3.** That every officer and employee of the City is hereby ordered to give FIRST priority to the completion of the projects set forth at the earliest possible date;

**4.** That any attempt to divert any of such funds to other purposes or projects, or any failure to give first priority to the completion of such projects shall constitute a breach of the official City policy herein established and shall be a violation of the terms, spirit and purpose of this chapter; and shall constitute sufficient grounds for the removal of such officer or employee from his office or position;

**5.** That a special revenue fund shall be created to which all of the money received from the temporary tax will be appropriated and deposited on a monthly basis as soon as received by the City; that all expenditures for the projects and purposes herein enumerated shall be made from such special revenue fund; that an accurate record of the status of such fund shall be maintained by the Mayor or his designee and shall be available for inspection by any person during regular office hours.

**B. Specific projects and purposes.** The only projects and purposes for which expenditures of proceeds from the temporary increase in sales tax may lawfully be made are as follows:

**PROJECTS AND PURPOSES**

**WATERWORKS**

| PROJECT | ESTIMATED COST |
|---|---|
| **Local Storage and Treatment** | |
| **Bird Creek Reservoir Project** | |
| Site and R.O.W. purchase | $ 762,000.00 |
| Reservoir Dam | 2,540,000.00 |
| *(Deleted by Ord. No. 15500)* | *(2,540,000.00)* |
| Pump Station | 1,092,000.00 |
| Five (5) million gallon tank and piping at the Bird Creek Pumping Station<br>*(Added by Ord. No. 15500)* | 615,000.00 |

| PROJECT | ESTIMATED COST |
|---|---|
| **Local Storage and Treatment** | |
| **A.B. Jewell Treatment Plant Expansion** | |
| Expand Plant Capacity to 60 MGD | 14,706,000.00 |
| Additional 30 MGD Pump | 258,000.00 |
| Modify Wash Water Return | 190,000.00 |
| **Oolagah Line and Pump Station** | |
| Engineering study and services for design<br>*(Added by Ord. No. 15500)* | 750,000.00 |
| **Distribution System Improvements** | |
| **Southeast Extensions** | |
| 48" Main on 41st between Mingo and 129th E. Ave. | 1,287,000.00 |
| 60" Main on 161st E. Ave. between 21st and 41st and 41st between 161st and 129th E. Ave. | 4,130,000.00 |
| 48" Main on 129th E. Ave. between 41st and 61st | 1,404,000.00 |
| 48" Main on 61st between Mingo and 129th E. Ave. | 1,404,000.00 |
| 36" Main on 129th E. Ave. between 21st and 41st | 1,115,000.00 |
| **South Extensions** | |
| 48" Main on Mingo between 61st and 101st | 2,974,000.00 |
| 36" Main on 101st between Mingo and Yale, on Yale between 101st and 91st, on 91st between Yale and Lewis, and on Lewis between 91st and 51st | 4,667,000.00 |
| 16" and 36" Main from 49th and Detroit to 61st and Peoria, and on 61st between Peoria and Harvard | 1,224,000.00 |
| 15 Million Gallon Storage Tank on Shadow Mountain | 3,175,000.00 |
| Additional System Connection to Existing Shadow Mountain Storage Tank | 190,000.00 |
| **Northside Extensions** | |
| 24" Main on Hartford from 46th St. North to approximately 52nd St. North | 703,000.00 |
| 24" Main on Port Road between Mingo and N. 193rd E. Ave. | 2,904,000.00 |
| **Westside Extensions** | |
| 36" Main West of Elwood between W. 51st and 41st, and West on 41st to 3600 Block West | 3,770,000.00 |
| 10 Million Gallon Storage Tank at 3600 Block West and 41st (Price included immediately preceding) | |
| Additional System Connection to Existing West Tulsa Reservoir at W. 21st and 33rd<br>*(Deleted by Ord. No. 15500)* | 365,000.00<br>*(365,000.00)* |
| 24" Jenks Main, South on Tacoma from W. 49th to I-44 Service Road, and West to Union | 279,000.00 |
| Estimated Total for Waterworks<br>(Ord. No. 14857) | $49,139,000.00 |

| PROJECT | ESTIMATED COST |
|---|---|
| **Local Storage and Treatment** | |
| Revised Estimated Total for Waterworks (Ord. No. 15500) | $ 47,599,000.00 |

**SEWERS**

| PROJECT | ESTIMATED COST |
|---|---|
| **Collection** | |
| 27" Joe Creek Relief Sewer at 53rd and S. Harvard | $ 279,000.00 |
| 42" Joe Creek Relief Interceptor at 61st and Riverside | 5,976,000.00 |
| Replace sewer at 24th and Riverside | 127,000.00 |
| Estimated Total for Sewer Projects (Ord. No. 14857) | $ 6,382,000.00 |

**WATERWORKS AND SEWERS**

| PROJECT | ESTIMATED COST |
|---|---|
| **Relocation** | |
| Water and Sewer Relocation for Gilcrease Expressway Construction (Added by Ord. No. 16115) | $ 1,283,000.00 |

**DRAINAGE**

| PROJECT | ESTIMATED COST |
|---|---|
| **Channelization** | |
| Parkview Drainage Channel | $ 2,159,000.00 |
| **Flood Detention Facilities** | |
| Mingo Creek, 11th and Mingo Site | 7,734,000.00 |
| Estimated Total for Drainage Projects (Ord. No. 14857) | $ 9,893,000.00 |

**MAJOR STREET AND INTERSECTION IMPROVEMENTS**

| PROJECT | ESTIMATED COST |
|---|---|
| 4-Lane 21st from Memorial to 101st E. Ave., and modification of the Intersection of 21st and Memorial | $ 10,160,000.00 |
| 4-Lane 31st from Memorial to Mingo, with modification of the Intersection of 31st and Memorial | 8,255,000.00 |
| 4-Lane 61st from Yale to Sheridan, with modification of the Intersection of 61st and Yale and major channelization on all approaches at 61st and Sheridan | 9,842,000.00 |
| 4-Lane Yale Avenue from 64th to 71st, and major channelization on all approaches at 71st and Yale | 10,160,000.00 |
| Acquire R.O.W. and Relocate Utilities for Widening Memorial from S. 71st to S. 101st | 3,810,000.00 |
| Estimated Total for Major Streets and Intersections | 42,227,000.00 |

## BRIDGE

| PROJECT | ESTIMATED COST |
|---|---|
| Reconstruct 23rd Street Bridge | 12,700,000.00 |

## EXPRESSWAY

| PROJECT | ESTIMATED COST |
|---|---|
| Acquire R.O.W. for Osage Expressway between Haskell and Apache | 2,825,000.00 |

## STREETS AND EXPRESSWAYS

| PROJECT | ESTIMATED COST |
|---|---|
| Complete 4-laning of Osage Expressway from Haskell to Apache<br>(Added by Ord. No. 16128) | $ 1,750,000.00 |
| Widen Pine from Denver to Boston<br>(Added by Ord. No. 16128) | 564,000.00 |
| Estimated Total for Streets & Expressways<br>(Ord. No. 16128) | $ 2,314,000.00 |
| Estimated Total for STREETS, BRIDGE and EXPRESSWAY Requests<br>(Ord. No. 14857) | $ 57,752,000.00 |
| Revised Estimated Total for STREETS, BRIDGE and EXPRESSWAY Requests<br>(Ord. No. 16128) | $ 60,066,000.00 |

## FLOOD CONTROL

| PROJECT | ESTIMATED COST |
|---|---|
| **Master Drainage Plans** | |
| Blackboy, Harlow, Sand Springs Line and Lower Parkview<br>(Added by Ord. No. 16128) | $ 500,000.00 |
| East and West Branches of Joe Creek and implementation funds for initial critical projects identified in the plan<br>(Added by Ord. No. 16128) | 600,000.00 |
| Mingo Creek Mainstem Floodway Mapping<br>(Added by Ord. No. 16128)<br>(Deleted by Ord. No. 16574) | 100,000.00<br>(100,000.00) |
| Mingo Creek tributaries south of the Broken Arrow Expressway<br>(Added by Ord. No. 16128) | 200,000.00 |
| Dirty Butter Detention Facility at 1500 N. Osage Dr.<br>(Added by Ord. No. 16128)<br>Amended Cost Estimate<br>(Ord. No. 19856)<br>Amended Cost Estimate<br>(Ord. No. 19856) | 1,750,000.00<br>(1,750,000.00)<br>1,740,000.00 |

| PROJECT | ESTIMATED COST |
|---|---|
| **Master Drainage Plans** | |
| Detention Facility on the John Paul Jones School Site<br>(Added by Ord. No. 16128)<br>Amended Cost Estimate<br>(Ord. No. 17044)<br>Amended Cost Estimate<br>(Ord. No. 17044) | 1,200,000.00<br>(1,200,000.00)<br>1,757,445.34 |
| Construct Channel Improvements on Red Fork Creek from Zenith Avenue to Okmulgee Expressway (Cost estimate includes ROW acquisition)<br>(Added by Ord. No. 16128) | 2,012,000.00 |
| Tupelo Creek - 14th and South Garnett Road Detention Facility<br>(Added by Ord. No. 16128)<br>Amended Cost Estimate<br>(Ord. No. 17044)<br>Amended Cost Estimate<br>(Ord. No. 17044) | 2,500,000.00<br>(2,500,000.00)<br>93,436.25 |
| Construct Channel on Audubon Creek from Mingo to 31st and South Memorial (Cost estimate includes ROW acquisition less insurance claims)<br>(Added by Ord. No. 16128)<br>Amended Cost Estimate<br>(Ord. No. 17044)<br>Amended Cost Estimate<br>(Ord. No. 17044) | 5,161,000.00<br>(5,161,000.00)<br>765,413.95 |
| Enlarge inlet and provide overland flow relief near 47th and South Wheeling<br>(Added by Ord. No. 16128) | 250,000.00 |
| Construct Villa Grove Heights Storm Sewer<br>(Added by Ord. No. 16128) | 202,000.00 |
| Construct Second Detention Cell at 15th & Mingo<br>(Added by Ord. No. 16128)<br>(Deleted by Ord. No. 17044) | 2,874,000.00<br>(2,874,000.00) |
| Arkansas River Floodway Mapping<br>(Added by Ord. No. 16574) | 10,000.00 |
| Mingo Creek Local Flood Control<br>(Added by Ord. No. 17044) | 5,597,606.66 |
| Estimated Total for Flood Control<br>(Ord. No. 16128) | $ 17,349,000.00 |
| Revised Estimated Total for Flood Control<br>(Ord. No.16574) | $ 17,259,000.00 |

| PROJECT | ESTIMATED COST |
|---|---|
| **Master Drainage Plans** | |
| Revised Estimated Total for Flood Control<br>(Ord. No. 17044) | $ 13,737,902.20 |
| Revised Estimated Total for Flood Control<br>(Ord. No. 19856) | $ 13,727,902.20 |

## MISCELLANEOUS PROJECTS

| PROJECT | ESTIMATED COST |
|---|---|
| Greenwood Avenue Extension from Archer to Second Street<br>(Added by Ord. No. 16128) | $ 1,162,000.00 |
| Replace Outdoor Firing Range<br>(Added by Ord. No. 16128) | 335,000.00 |
| Booking Area Expansion<br>(Added by Ord. No. 16128) | 150,000.00 |
| Acquire Fire Station Sites near 21st & Utica and 71st & Union<br>(Added by Ord. No. 16128) | 100,000.00 |
| Police Laboratory Expansion<br>(Added by Ord. No. 16128) | 187,000.00 |
| Renovate Fire Station No. 19 for use as a Seized Vehicle Facility<br>(Added by Ord. No. 16128) | 13,000.00 |
| 1984 Memorial Day Flood Acquisition Program<br>(Added by Ord. No. 16128) | An amount not to exceed the amount of interest received on temporary sales tax subsequent to July 1, 1984. |
| Police Training Facility<br>(Added by Ord. No. 16801) | 192,788.00 |
| Project to provide funds to Tulsa Urban Renewal Authority (now Tulsa Development Authority) for repaying funding for the Greenwood Centre Project<br>(Added by Ord. No. 16801) | 1,193,753.00 |
| Civic Center Pedestrian Walkways<br>(Added by Ord. No. 17374) | 300,000.00 |
| Reimburse the "Police Department Forfeited Proceeds and Properties Fund of the City of Tulsa, Oklahoma" for the acquisition of property in the 5100 Block of North Osage Drive, commonly known as the "Police Youth Ranch"<br>(Added by Ord. No. 17766) | 50,000.00 |
| Estimated Total for Miscellaneous Projects<br>(Ord. No. 16128) | $ 1,947,000.00 |
| Revised Estimated Total for Miscellaneous Projects<br>(Ord. No. 16801) | $ 3,333,541.00 |

| PROJECT | ESTIMATED COST |
|---|---|
| Revised Estimated Total for Miscellaneous Projects (Ord. No. 17374) | $ 3,633,541.00 |
| Revised Estimated Total for Miscellaneous Projects (Ord. No. 17766) | $ 3,683,541.00 |
| Estimated Reserve for Food and Drug Rebate (Ord. No. 14857) | $ 17,400,000.00 |
| Estimated Funds Available for Maintenance of Capital Improvements and Facilities (Ord. No. 14857) | $ 10,000,000.00 |
| Delete from the Maintenance Funds (Deleted by Ord. No. 16801) | (1,193,753.00) |
| Estimated Totals (Ord. No. 14857) | $150,566,000.00 |
| Revised Estimated Totals (Ord. No. 15500) | $149,026,000.00 |
| Revised Estimated Totals (Ord. No. 16115) | $150,309,000.00 |
| Revised Estimated Totals (Ord. No. 16128)* | $171,919,000.00 |
| Revised Estimated Totals (Ord. No. 16574)* | $171,829,000.00 |
| Revised Estimated Totals (Ord. No. 16801)* | $172,021,788.00 |
| Revised Estimated Totals (Ord. No. 17044)* | $168,500,690.20 |
| Revised Estimated Totals (Ord. No. 17374)* | $168,800,690.20 |
| Revised Estimated Totals (Ord. No. 17766)* | $168,850,690.20 |
| Revised Estimated Totals (Ord. No. 19856)* | $168,840,690.20 |
| * Plus, "An amount not to exceed the amount of interest received on temporary sales tax subsequent to July 1, 1984," as provided by Ord. No. 16128. | |

**C. Cost estimates - maintenance expenditures.** While the cost estimate shown above are believed to be accurate, it must be recognized that the exact cost of each project may vary from the estimate shown.

It is the intention of the City of Tulsa and is the official City policy herein established that all such projects shall be completed as funds are made available. To ensure such result, that portion of the funds designated for maintenance of existing capital improvements and facilities shall also be regarded as a reserve for cost overruns and

not more than Two Million Dollars ($2,000,000.00) per year may be expended for such maintenance until it shall become apparent that sufficient funds will be generated to complete all of the above projects. Excess funds, if any, shall be:

1. Spent on maintenance of capital improvements and facilities; or
2. Transferred to a special revenue fund created pursuant to a temporary sales tax increase and monitored by a Sales Tax Overview Committee for projects which have not been completed.

In addition to providing financing for the projects and purposes set forth in Subsection B of this section, funds generated from the temporary increased sales tax may be expended for maintenance of capital improvements and facilities or to repay indebtedness expended for any of such projects or purposes.

*(Ord. Nos. 16128, 19856)*

**Section 101. Overview Committee.**

**A.** Until the sales tax revenues so designated have been fully expended for the projects and purposes set forth in this title, the Sales Tax Overview Committee created in Title 43-C, Section 101, Tulsa Revised Ordinances, shall oversee such sales tax expenditures and shall regularly report to the City Council as fully set out in Title 43-C, Section 101.

**B. Term.** The Committee shall exist and the above members shall serve throughout the five (5)-year period of the sales tax increase and thereafter until all funds generated by such sales tax increase and the proceeds from the bond issue approved by the voters of the City, at the special election held in the City on May 24, 1983, have been expended. The Committee shall be a citizens' committee whose members are not officers of the City, as terms for officers of the City are limited to one (1) year. They shall continue to serve, except upon death or resignation, without regard to changes of City administrations, it being the intent to ensure the continued existence of a well-informed group of citizens to review and report upon the expenditures of the sales tax revenues and funds derived from the bond issue approved by the voters of the City at the special election held in the City on May 24, 1983. They shall serve without compensation. Upon the death or resignation of any member of the Committee, the Chairman of the Committee shall appoint a nominating committee of five (5) members from its members to nominate a replacement for the deceased or resigned member. At the next meeting of the Committee, the nomination committee shall report its nomination for the deceased or resigned member. The Committee shall then nominate a replacement at such meeting by a majority vote of its members present and voting thereon. The nomination of such replacement shall be presented to the Council at its next available meeting after nomination by the Committee, and all of such nominations shall be subject to confirmation by a majority vote of the Council. In the event any such nomination by the Committee shall fail confirmation by the Council, it shall be the duty of the Committee to submit another nomination to the Council in the same manner as above provided and to continue to so submit other nominations until one shall be ratified and confirmed by the Council.

**C. Elected officials, municipal personnel and agencies to assist.** The facilities, personnel, elected officials and agencies of the municipal government are hereby directed to be available and to cooperate with the Committee to accomplish the

objectives and purposes herein set forth. Copies of City reports and records pertinent to the receipts and expenditures of the proceeds of the sales tax increase shall be made available to the Committee upon request.

**D. Report of Overview Committee.** On the first Tuesday of each month beginning with the month of February, 1981, the Chairman or other member designated by the Committee shall attend the regular meeting of the Council of the City of Tulsa and make any report, comment or recommendation which the Committee deems to be warranted. A time for the presentation of such report shall be reserved on the agenda for the Council's first meeting of every month beginning February, 1981, until the sales tax revenues have been fully expended for the projects and purposes set forth in this chapter.

*(Ord. Nos. 15789, 17455)*

### Section 102. Special revenue fund established.

There is hereby established a special revenue fund which shall be known as the Special Five-Year Sales Tax Capital Fund.

All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the special five-year sales tax program, including interest received from the investment thereof, to be deposited in the special revenue fund as soon as received by the City of Tulsa.

None of the monies in the special revenue fund shall ever be encumbered or expended for any purpose other than those purposes set forth in this chapter. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the special revenue fund and to ensure that all such funds shall always be readily available for immediate expenditure for the projects and purposes set forth in this chapter.

The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the increased sales tax monies to the Special Five-Year Sales Tax Capital Fund, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the projects and purposes set forth in this chapter.

*(Ord. No. 16128)*

### Section 103. Procedure to amend or repeal this chapter.

**A. Mandatory duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the increased sales tax, and having enacted the provisions in this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force during the entire period of collection and expenditure of the revenues generated by the special five-year tax for the projects and purposes herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council, which agenda is prepared by the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary of the Council is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements have been made.

**1.** The Secretary shall forthwith (within twenty-four [24] hours) notify all major newspapers, all televisions stations and all radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at the City Hall, to which all of the above-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be given in the Tulsa Daily World, Tulsa Tribune and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication of such notice. The notice shall be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and be available for inspection or copying at all reasonable times.

**B. Procedure before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection A above, and shall have satisfied itself that all such acts have been duly and timely performed.

**2.** The Council shall have held at least two (2) public hearings on the proposal (one of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

*(Ord. No. 14857)*

# TITLE 43-B 1985 SALES TAX EXPENDITURE POLICY

## Chapter 1. 1985 Sales Tax Expenditure Policy

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## CHAPTER 1. 1985 SALES TAX EXPENDITURE POLICY

Section 100. Declaration of official policy of City and pledges to the citizens.
Section 101. Overview Committee.
Section 102. Establishment of Special Five-Year Extended Sales Tax Capital Fund for revenue from the extended sales tax.
Section 103. Procedure to amend or repeal this chapter.

### Section 100. Declaration of official policy of City and pledges to the citizens.

**A.** The City of Tulsa hereby officially and solemnly pledges to the citizens of Tulsa:

**1.** That ALL funds received by the City from the extension of the temporary sales tax levy of one percent (1%) for the period of time from and including the 31st day of December, 1985, to and including the 30th day of April, 1991, to be voted upon April 9, 1985, will be spent ONLY for those projects and purposes set forth herein;

**2.** That NONE of such funds shall ever be spent for any other purpose;

**3.** That every officer and employee of the City is hereby ordered to give HIGH priority to the completion of such projects at the earliest possible date;

**4.** That any attempt to divert any of such funds to other purposes or projects or any failure to give high priority to the completion of such projects shall constitute a breach of the official City policy herein established, shall be a violation of the terms, spirit and purpose of this chapter, and shall constitute sufficient grounds for the removal of such officer or employee from his office or position;

**5.** That a Special Five-Year Extended Sales Tax Capital Fund will be created to which all of the money received from such extension of the temporary sales tax will be appropriated and deposited on a monthly basis as soon as received by the City; that all expenditures for the projects and purposes herein enumerated shall be made from such Special Five-Year Extended Sales Tax Capital Fund; that an accurate record of the status of such fund shall be maintained by the Mayor or his designee and shall be available for inspection by any person during office hours.

**6.** 1985 Sales Tax Economic Development Fund. Notwithstanding the provisions in paragraph 100.A.5 herein, there is hereby created a 1985 Sales Tax Economic Development Fund from which all monies, including interest earnings, may be appropriated by the City Council only for projects meeting all of the following criteria:

**a.** The project must be physical in nature;

**b.** The project must be for a public purpose;

**c.** The project must conform to the City's Comprehensive Plan;

**d.** The project will encourage private investment in areas where existing City service systems are not being used to capacity according to measurable objective service level standards;

**e.** The project must be located, at least in part, in the area defined by those census tracts which lost more than five percent (5%) residential population between the years 1980 and 1990 as reported in the United States Census for those years; and

**f.** The project must be located, at least in part, in the area defined by those census tracts which cumulatively:

(1) Contain twenty percent (20%) of the City's population, and

(2) Have the lowest median family income in the City as reported by the most recent United States Decennial Census, and

(3) Shall include Census Tracts 59, 61, 80.02 and 101 as shown in the 1990 United States Decennial Census.

The area which meets all of the required criteria shall be known as the "1985 Sales Tax Special Economic Development Fund Eligibility Area," a map of which shall be filed in the office of the City Clerk and shall be available for public inspection.

**B. Specific projects and purposes.** The only projects and purposes for which expenditures of proceeds from the extension of the temporary sales tax may lawfully be made are as follows:

## PROJECTS AND PURPOSES

## STREETS

| PROJECT | ESTIMATED COST |
|---|---|
| Widen 71st - 93rd East Ave. to Mingo Expressway | $ 7,019,000.00 |
| Widen 21st - Garnett to 137th East Ave. | 5,565,000.00 |
| Widen 129th East Ave. - I-244 to 21st | 5,292,000.00 |
| Widen Mingo - Broken Arrow Expressway to 51st | 2,083,000.00 |
| Widen Sheridan - 51st to 61st | 2,900,000.00 |
| Widen 81st - Riverside to Lewis | 1,200,000.00 |
| Widen 61st - Harvard to Sandusky | 5,742,000.00 |
| Widen Harvard - Apache to Gilcrease Expressway | 1,736,000.00 |
| Widen Yale - Apache to Gilcrease Expressway | 2,778,000.00 |
| Widen Apache from L.L. Tisdale Parkway to Cincinnati Avenue (Added by Ord. No. 19281) | 2,100,000.00 |
| Widen 51st - Garnett to Mingo Valley Expressway | 4,721,000.00 |
| Widen Yale - I-44 to 61st | 9,571,000.00 |
| 4 Lane 71st - Lewis to Yale | 14,238,000.00 |
| Amended cost estimate (Ord. No. 19857) | (14,238,000.00) |
| Amended cost estimate (Ord. No. 19857) | 13,988,000.00 |
| Widen 51st - Union to 33rd W. Ave. (Deleted by Ord. No. 16802) | 3,500,000.00 (3,500,000.00) |
| Acquire Mingo Expressway ROW - 71st to 91st | 3,150,000.00 |
| Acquire Osage Expressway ROW - Apache to 36th North | 2,552,000.00 |
| Acquire Osage Expressway ROW - Apache to 36th North, including acquiring ROW, making utility relocations and preparing plans and specifications and construction of the interchange at Apache and Osage Expressway in the City | (2,552,000.00) |

| PROJECT | ESTIMATED COST |
|---|---|
| (Estimated cost and purpose amended by Ord. No. 17045) | 1,913,600.00 |
| Amended cost estimate<br>(Ord. No. 19857) | (1,913,600.00) |
| Amended cost estimate<br>(Ord. No. 19857) | 1,838,600.00 |
| Widen 33rd West Avenue from West 51st through the intersection of South 61st Street and improvement of said intersection, insofar as the same are now or may be hereafter located within the City limits of the City of Tulsa.<br>(Added by Ord. No. 16802) | 3,500,000.00 |
| Widen South 33rd West Avenue from West 51st Street South to West 68th Street South and making improvements to the intersection of South 33rd West Ave. and West 61st Street South, insofar as the same are now or may be hereafter located within the City limits of the City of Tulsa.<br>(Ord. No. 17508 amended project description, only) | |
| Install lighting on the Osage Expressway<br>(Added by Ord. No. 17771) | 315,000.00 |
| Two (2) Lane Admiral Blvd. - Harvard to Frisco Tracks<br>(Added by Ord. No. 18310) | 40,000.00 |
| Estimated Total for Streets<br>(Ord. Nos. 16292, 16802) | $ 72,047,000.00 |
| Revised Estimated Total for Streets<br>(Ord. No. 17045) | $ 71,408,600.00 |
| Revised Estimated Total for Streets<br>(Ord. No. 17771) | $ 71,723,600.00 |
| Revised Estimated Total for Streets<br>(Ord. No. 18310) | $ 71,763,600.00 |
| Revised Estimated Total for Streets<br>(Ord. Nos. 19281, 19770) | $ 73,863,600.00 |
| Revised Estimated Total for Streets<br>(Ord. No. 19857) | $ 73,538,600.00 |

## FLOOD PREVENTION

| PROJECT | ESTIMATED COST |
|---|---|
| Crow Master Drainage Plan | $ 600,000.00 |
| Perryman Master Drainage Plan | 85,000.00 |
| Elm Creek Master Drainage Plan | 110,000.00 |
| Fred Creek Master Drainage Plan | 60,000.00 |
| Southwest Master Drainage Plans | 220,000.00 |
| Fry 2 Master Drainage Plan | 60,000.00 |
| Haikey Master Drainage Plan | 75,000.00 |

| PROJECT | ESTIMATED COST |
|---|---|
| Spunky/Adams Master Drainage Plan | 218,000.00 |
| Lower Mingo Master Drainage Plan | 218,000.00 |
| Construct Audubon Final Phase | 4,911,000.00 |
| Amended cost estimate (Ord. No. 17045) | (4,911,000.00) |
| Amended cost estimate (Ord. No. 17045) | 2,248,279.24 |
| Construct Brookhollow Creek Detention | 6,867,000.00 |
| Amended cost estimate (Ord. No. 17045) | (6,867,000.00) |
| Amended cost estimate (Ord. No. 17045) | 408,113.14 |
| Construct Alsuma Detention | 4,011,000.00 |
| Amended cost estimate (Ord. No. 17045) | (4,011,000.00) |
| Amended cost estimate (Ord. No. 17045) | 3,051,571.47 |
| Construct Mill Creek - McClure Detention | 4,299,000.00 |
| Amended cost estimate (Ord. No. 17045) | (4,299,000.00) |
| Amended cost estimate (Ord. No. 17045) | 526,726.15 |
| Construct Cooley Lake Detention No. 2 | 3,588,000.00 |
| (Deleted by Ord. No. 17045) | (3,588,000.00) |
| Construct Greenwood Area Detention | 2,373,000.00 |
| Construct Coal Creek N. Joplin Detention | 525,000.00 |
| Springdale Detention Phase 1 ROW | 1,724,000.00 |
| Construct Turner Park Rogers H.S. Detention | 6,077,000.00 |
| Construct Apache Bridge/Crawford Detention | 882,000.00 |
| Replace Mohawk Boulevard Bridge/West of Peoria | 463,000.00 |
| Replace Peoria Bridge on Dirty Butter | 315,000.00 |
| Construct Cherry Creek Channel | 1,050,000.00 |
| Construct Parkview Channel Levee Pump | 525,000.00 |
| Construct 5th and 33rd West Avenue Drainage | 127,000.00 |
| Construct 4029 East 53rd Drainage | 300,000.00 |
| Construct 41st and Utica Drainage | 315,000.00 |
| Construct Bridle Trail Detention Phase One | 1,337,000.00 |
| Construct 1751 East 63rd Drainage | 173,000.00 |
| Construct Crow, Joe Creeks Projects | 2,259,000.00 |
| Mingo Creek Local Control (Added by Ord. No. 17045) | 15,732,412.35 |

| PROJECT | ESTIMATED COST |
|---|---|
| Amended cost estimate<br>(Ord. No. 19857) | (15,732,412.35) |
| Amended cost estimate<br>(Ord. No. 19857) | 15,577,412.35 |
| Estimated Total for Flood Prevention<br>(Ord. No. 16292) | $ 43,767,000.00 |
| Revised Estimated Total for Flood Prevention<br>(Ord. No. 17045) | $42,058,102.35 |
| Revised Estimated Total for Flood Prevention<br>(Ord. No. 19857) | $ 41,903,102.35 |

## WATER SUPPLY AND DELIVERY

| PROJECT | ESTIMATED COST |
|---|---|
| Construct Phase One Third Flowline | $ 14,533,000.00 |
| (Deleted by Ord. No. 17456) | (14,533,000.00) |
| Expand A. B. Jewell Plant Distribution | 8,158,000.00 |
| Amended cost estimate<br>(Ord. No. 17045) | (8,158,000.00) |
| Amended cost estimate<br>(Ord. No. 17045) | 1,747,458.60 |
| Construct 60" Main on 193rd and 41st | 4,630,000.00 |
| Purchase Right-of-Way Third Flowline<br>(Added by Ord. No. 17456) | 2,036,000.00 |
| Amended cost estimate<br>(Ord. No. 19857) | (2,036,000.00) |
| Amended cost estimate<br>(Ord. No. 19857) | 1,996,000.00 |
| Expand Water Treatment Facilities<br>(Added by Ord. No. 17045) | 5,985,541.40 |
| Amended cost estimate<br>(Ord. No. 17456) | (5,985,541.40) |
| Amended cost estimate<br>(Ord. No. 17456) | 11,000,000.00 |
| Estimated Total for Water Supply and Delivery<br>(Ord. No. 16292) | $ 27,321,000.00 |
| Revised Estimated Total for Water Supply and Delivery<br>(Ord. No. 17045) | $ 26,896,000.00 |
| Revised Estimated Total for Water Supply and Delivery<br>(Ord. No. 17456) | $ 19,413,458.60 |
| Revised Estimated Total for Water Supply and Delivery<br>(Ord. No. 19857) | $ 19,373,458.60 |

## SANITARY SEWER PROJECT

| PROJECT | ESTIMATED COST |
|---|---|
| Construct Northside Plant Awt | $ 4,961,000.00 |
| (Deleted by Ord. No. 17045) | (4,961,000.00) |
| Southside Flow Equalization<br>(Added by Ord. No. 17045) | 4,705,000.00 |
| Estimated Total for Sanitary Sewer Project<br>(Ord. No. 16292) | $ 4,961,000.00 |
| Revised Estimated Total for Sanitary Sewer Projects<br>(Ord. No. 17045) | $ 4,705,000.00 |

## PARK FACILITY IMPROVEMENTS

| PROJECT | ESTIMATED COST |
|---|---|
| Construct Bishop Tract Sports Complex | $ 1,731,000.00 |
| Amended cost estimate<br>(Ord. No. 17045) | (1,731,000.00) |
| Amended cost estimate<br>(Ord. No. 17045) | 109,957.89 |
| Purchase Eastside Area Park | 4,862,000.00 |
| Construct Leake Park Development | 572,000.00 |
| Construct Hunter Park Development | 572,000.00 |
| Northside Park Restoration | 3,398,000.00 |
| Reed Park Renovation | 229,000.00 |
| Construct Carl Smith Sports Complex<br>(Added by Ord. No. 17045) | 1,454,042.11 |
| Park Land Acquisition - to acquire approximately 72 acres between 71st and 81st Street on Riverside Drive<br>(Added by Ord. No. 17509) | 2,250,000.00 |
| Acquire additional park land near the Torcia Oliver tract<br>(Added by Ord. No. 17771) | 300,000.00 |
| Air Conditioning at Whiteside Park<br>(Added by Ord. No. 17985) | 30,000.00 |
| Sidewalk at Henthorne Park<br>(Added by Ord. No. 17985) | 5,000.00 |
| Renovate Dawson Tract to Create Mike Patrick Park<br>(Added by Ord. No. 17985) | 44,000.00 |
| Landscaping in River Parks<br>(Added by Ord. No. 18183) | 5,000.00 |
| Estimated Total for Park Facility Improvements<br>(Ord. No. 16292) | $ 11,364,000.00 |
| Revised Estimated Total for Park Facility Improvements<br>(Ord. No. 17045) | $ 11,197,000.00 |

| PROJECT | ESTIMATED COST |
|---|---|
| Revised Estimated Total for Park Facility Improvements (Ord. No. 17509) | $ 13,447,000.00 |
| Revised Estimated Total for Park Facility Improvements (Ord. No. 17771) | $ 13,747,000.00 |
| Revised Estimated Total for Park Facility Improvements (Ord. No. 17985) | $ 13,826,000.00 |
| Revised Estimated Total for Park Facility Improvements (Ord. No. 18183) | $ 13,831,000.00 |

## URBAN AND ECONOMIC DEVELOPMENT

| PROJECT | ESTIMATED COST |
|---|---|
| Construct University Center Tulsa Capital Facility | $ 15,000,000.00 |
| Crosstown Section Railroad Acquisition and Roadway Improvements | 3,400,000.00 |
| Projects from the 1985 Sales Tax Economic Development Fund Meeting Criteria Described in Paragraph 100.A.6. herein (Added by Ord. No. 17651) | 1,500,000.00 |
| Urban Design Features in the Brookside Area (Added by Ord. No. 18183) | 5,000.00 |
| Estimated Total for Urban and Economic Development (Ord. No. 16292) | $ 18,400,000.00 |
| Revised Estimated Total for Urban and Economic Development (Ord. No. 17651) | $ 19,900,000.00 |
| Revised Estimated Total for Urban and Economic Development (Ord. No. 18183) | $ 19,905,000.00 |

## POLICE FACILITIES

| PROJECT | ESTIMATED COST |
|---|---|
| Rehab UD East Sub-Station | $ 360,000.00 |
| Provide a Police Training Facility | 5,694,000.00 |
| Expand and Rehab UDW Sub-Station | 325,000.00 |
| Construct Southside Police Sub-Station | 3,385,000.00 |
| Additions to the Police Courts and E911 Building (Added by Ord. No. 18055) | 1,300,000.00 |
| Estimated Total for Police Facilities (Ord. No. 16292) | $ 9,764,000.00 |
| Revised Estimated Total for Police Facilities (Ord. No. 18055) | $ 11,064,000.00 |

## MISCELLANEOUS PROJECTS

| PROJECT | ESTIMATED COST |
|---|---|
| Maintenance of Capital Improvement and Facilities | $ 20,000,000.00 |
| Acquire capital equipment, such as rolling stock, computers, radios and other "short-term" capital improvements as provided in the City Sales Tax Ordinance | $ 23,100,000.00 |
| Acquire facilities for the City's surplus property program and other office and storage needs (Added by Ord. No. 17859) | $ 200,000.00 |
| Expenditure Totals for Miscellaneous Projects | $ 43,300,000.00 |
| Rebate | $ 15,000,000.00 |
| Expenditure Totals (Ord. No. 16292) | $245,724,000.00 |
| Revised Estimated Totals (Ord. No. 16802) | $245,724,000.00 |
| Revised Estimated Totals (Ord. No 17045) | $242,528,702.35 |
| Revised Estimated Totals (Ord. No. 17456) | $235,046,160.95 |
| Revised Estimated Totals (Ord. No. 17509) | $237,296,160.95 |
| Revised Estimated Totals (Ord. No. 17651) | $238,796,160.95 |
| Revised Estimated Totals (Ord. No. 17771) | $239,411,160.95 |
| Revised Estimated Totals (Ord. No. 17859) | $239,611,160.95 |
| Revised Estimated Totals (Ord. No. 17985) | $239,690,160.95 |
| Revised Estimated Totals (Ord. No. 18055) | $240,990,160.95 |
| Revised Estimated Totals (Ord. No. 18183) | $241,000,160.95 |
| Revised Estimated Totals (Ord. No. 18310) | $241,040,160.95 |
| Revised Estimated Totals (Ord. Nos. 17771, 17978, 19281, 19770) | $243,140,160.95 |
| Revised Estimated Totals (Ord. No. 19857) | $242,620,160.95 |

**C. Cost estimates - maintenance expenditures - additional projects.** While the cost estimates shown above are believed to be accurate, it must be recognized that the exact cost of each project may vary from the estimate shown.

It is the intention of the City of Tulsa and is the official City policy herein established that all such projects shall be completed as funds are made available. To ensure such

result, the Twenty Million Dollar ($20,000,000.00) fund designated for maintenance of existing capital improvements and facilities shall also be regarded as a reserve for cost overruns and not more than Two Million Dollars ($2,000,000.00) per year may be expended for such maintenance until it shall become apparent that sufficient funds will be generated to complete all of the above projects.

Excess funds, if any, received over and above the expenditures needed to complete the projects and purposes heretofore mentioned in Subsection B of this section, shall be transferred to a special revenue fund created pursuant to a temporary sales tax increase and monitored by a Sales Tax Overview Committee for projects which have not been completed.

*(Ord. Nos. 17651, 17771, 17978, 18943, 19281, 19857)*

**Section 101. Overview Committee.**

Until the sales tax revenues so designated have been fully expended for the projects and purposes set forth in this title, the Sales Tax Overview Committee created in Title 43-C, Section 101, Tulsa Revised Ordinances, shall oversee such sales tax expenditures and shall regularly report to the City Council as fully set out in Title 43-C, Section 101.

**A. Term.** The Committee shall exist and the above members shall serve thereon throughout the five (5) year period of the extended sales tax and thereafter until all funds generated by such sales tax extension have been expended. The Committee shall be a citizens' committee whose members are not officers of the City, as terms for officers of the City are limited to one (1) year. They shall continue to serve, except upon death, resignation or vacancy of a member, without regard to changes of City administrations, it being the intent to ensure the continued existence of a well-informed group of citizens to review and report upon the expenditures of the sales tax revenues. They shall serve without compensation. Upon the death, resignation or vacancy of any member of the Committee, the Chairman of the Committee shall appoint a nomination committee of five (5) members from its members to nominate a replacement for the deceased or resigned member. At the next meeting of the Committee, the nomination committee shall report its nomination for the deceased or resigned member. The Committee shall then nominate a replacement at such meeting by a majority vote of its members present and voting thereon. The nomination of such replacement shall be presented to the Council at its next available meeting after nomination by the Committee and all nominations shall be subject to confirmation by a majority vote of the Council. In the event any such nomination by the Committee shall fail confirmation by the Council, it shall be the duty of the Committee to submit another nomination to the Council in the same manner as above provided and to continue to so submit other nominations until one shall be ratified and confirmed by the Council.

**B. Elected officials, municipal personnel and agencies to assist.** The facilities, personnel, elected officials and agencies of the municipal government are hereby directed to be available and to cooperate with the Committee to accomplish the objectives and purposes herein set forth. Copies of City reports and records pertaining to the receipts and expenditures of the proceeds of the sales tax extension shall be made available to the Committee upon request.

**C. Report of Overview Committee.** On the first meeting of the Council of each month, beginning with the month of February, 1986, the Chairman or other member

designated by the Committee shall attend the regular meeting of the Council of the City of Tulsa and make any report, comment or recommendation which the Committee deems to be warranted. A time for the presentation of such report shall be reserved on the agenda for the first City Council meeting of every month beginning February, 1986, until the sales tax revenues have been fully expended for the projects and purposes set forth in this chapter.

*(Ord. No. 17455)*

**Section 102. Establishment of Special Five-Year Extended Sales Tax Capital Fund for revenue from the extended sales tax.**

There is hereby established a special revenue fund which shall be known as the Special Five-Year Extended Sales Tax Capital Fund.

All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the special five-year sales tax program, including interest received from the investment thereof, to be deposited in the special revenue fund as soon as received by the City of Tulsa.

None of the monies in the special revenue fund shall ever be encumbered or expended for any purpose other than those purposes set forth in this chapter. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the special revenue fund and to ensure that all such funds shall always be readily available for immediate expenditure for the projects and purposes set forth in this chapter.

The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the extended sales tax monies to the Special Five-Year Extended Sales Tax Capital Fund, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the projects and purposes set forth in this chapter.

**Section 103. Procedure to amend or repeal this chapter.**

**A. Mandatory duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the extended sales tax, and having enacted this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force during the entire period of collection and expenditure of the revenues generated by the five-year period of the extended sales tax for the projects and purposes herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements have been made.

1. The Secretary shall forthwith (within twenty-four [24] hours) notify all major newspapers, all televisions stations and all radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.
2. The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at the City Hall, to which all of the above-named newspapers, radio and television stations shall be invited.
3. The Secretary shall forthwith cause a public notice to be given in the Tulsa Daily World, Tulsa Tribune and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication of such notice. The notice shall be published once a week for two (2) consecutive weeks.
4. The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B. Procedure before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until following acts and procedures have been complied with:

1. The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 103.A above, and shall have satisfied itself that all such acts have been duly and timely performed.
2. The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

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# TITLE 43-C 1991 SALES TAX EXPENDITURE POLICY

## Chapter 1. 1991 Sales Tax Expenditure Policy

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## CHAPTER 1. 1991 SALES TAX EXPENDITURE POLICY

Section 100. Declaration of official policy of City and pledges to the citizens.
Section 101. Sales Tax Overview Committee.
Section 102. Establishment of Special Five-Year Extended Sales Tax Capital Fund 1991 for revenue from the extended sales tax.
Section 103. Procedure to amend or repeal this chapter.

### Section 100. Declaration of official policy of City and pledges to the citizens.

**A.** The City of Tulsa hereby officially and solemnly pledges to the citizens of Tulsa:

**1.** That ALL funds received by the City from the extension of the temporary sales tax levy of one percent (1%) for the period of time from and including the 1st day of May, 1991, to and including the 31st day of July, 1996, to be voted upon December 4, 1990, will be spent ONLY for those projects and purposes set forth herein, including the repayment of indebtedness expended for any of such projects or purposes;

**2.** That NONE of such funds shall ever be spent for any other purpose;

**3.** That every officer and employee of the City is hereby ordered to give HIGH priority to the completion of such projects at the earliest possible date;

**4.** That any attempt to divert any of such funds to other purposes or projects or any failure to give high priority to the completion of such projects shall constitute a breach of the official City policy herein established, shall be a violation of the terms, spirit and purpose of this chapter, and shall constitute sufficient grounds for the removal of such officer or employee from his office or position;

**5.** That a Special Five-Year Extended Sales Tax Capital Fund will be created to which all of the money received from such extension of the temporary sales tax will be appropriated and deposited on a monthly basis as soon as received by the City; that all expenditures for the projects and purposes herein enumerated shall be made from such Special Five-Year Extended Sales Tax Capital Fund; that an accurate record of the status of such fund shall be maintained by the Mayor or his designee and shall be available for inspection by any person during office hours.

**B. Specific projects and purposes.** The only projects and purposes for which expenditures of proceeds from the extension of the temporary sales tax may lawfully be made are as follows:

**PROJECTS AND PURPOSES**

| STREETS | FUNDING AMOUNTS |
|---|---|
| City Match for I-44 Utility Relocation from US 169 to S. Yale | $ 700,000.00 |
| Construct Left Turn Lanes on Riverside at 31st, 41st & I-44 | 2,000,000.00 |
| Construct Riverside from 81st to 101st & Delaware | 13,600,000.00 |
| Extend Osage Expressway to 36th Street North | 5,000,000.00 |
| Pay Gilcrease Expressway Right-of-Way Obligation | 400,000.00 |
| 11th & Garnett Intersection Engineering, ROW & Utility Relocation | 500,000.00 |
| Construct Left Turn Lane on 31st East of Garnett | 50,000.00 |

| STREETS | FUNDING AMOUNTS |
|---|---|
| City Match for Widening 51st & 129th E. Ave. Intersection | 1,250,000.00 |
| Widen 51st-Memorial to Mingo | 5,330,000.00 |
| Widen 61st & Mingo Intersection to Mingo Valley Expressway | 4,900,000.00 |
| Widen 61st-Memorial to Mingo | 4,100,000.00 |
| City Match for Widening 61st-Sheridan to Memorial | 1,350,000.00 |
| 61st & Union Intersection Engineering, ROW & Utility Relocation | 1,700,000.00 |
| 71st-Yale to 93rd E. Ave. Engineering, ROW & Utility Relocation | 2,300,000.00 |
| 81st & Sheridan Intersection Engineering, ROW & Utility Relocation | 1,600,000.00 |
| (Estimated cost and purpose amended by Ord. No. 19018) | (1,600,000.00) |
| Widen the 81st and Sheridan Intersection | 3,370,000.00 |
| Widen 81st & Yale Intersection | 5,100,000.00 |
| Widen 129th E. Ave. & 31st Intersection | 2,000,000.00 |
| Widen 129th E. Ave. & 41st Intersection | 2,000,000.00 |
| City Match for Widening Apache-Osage Expressway to Cincinnati Ave. | 3,400,000.00 |
| (Estimated cost and purpose amended by Ord. No. 19018) | (3,400,000.00) |
| Widen Apache from the Osage Expressway to Cincinnati Ave. | 4,100,000.00 |
| City Match for Widening Delaware-91st to 96th | 200,000.00 |
| City Match for Widening Garnett-21st to 31st | 2,800,000.00 |
| Widen Garnett-31st to 41st | 5,150,000.00 |
| City Match for Widening Sheridan-61st to 71st | 1,800,000.00 |
| Widen Sheridan-71st to 81st | 5,915,000.00 |
| Widen Sheridan-Broken Arrow Expressway to 51st | 3,300,000.00 |
| Widen Virgin-Cincinnati to Xanthus Engineering, ROW & Utility Relocation | 1,500,000.00 |
| Arterial Streets-Major Rehabilitation | 14,000,000.00 |
| Residential Streets-Major Rehabilitation | 15,000,000.00 |
| Misc. Intersection Revisions | 1,300,000.00 |
| Downtown Street Cave-in Repair | 275,000.00 |
| Misc. Traffic Signal Modifications | 615,000.00 |
| Construct Left Turn Bays-101st & Yale, 91st & Yale, 101st & Sheridan & 91st & Sheridan | 909,000.00 |
| Reconstruct Joe Creek Bridge at 59th & Lewis | 700,000.00 |
| Preliminary Environmental Assessment for the Gilcrease Expressway Bridge at 57th W. Ave. | 100,000.00 |
| Construct Sidewalks on N. Peoria from 46th to 51st | 100,000.00 |
| 4 Lane 71st - Lewis to Yale<br>(Ord. No. 19858) | 250,000.00 |

| STREETS | FUNDING AMOUNTS |
|---|---|
| Acquire Osage Expressway ROW - Apache to 36th North, including acquiring ROW, making utility relocations and preparing plans and specifications and construction of the interchange at Apache and Osage Expressway in the City (Ord. No. 19858) | 75,000.00 |
| Total Streets (Ord. No. 17407) | $110,944,000.00 |
| Revised Estimated Total for Streets (Ord. No. 19018) | $113,414,000.00 |
| Revised Estimated Total for Streets (Ord. No. 19858) | $113,739,000.00 |

## SANITARY SEWERS

| | |
|---|---|
| Engineer Northside Flow Equalization Basin (Partial Funding) | $ 750,000.00 |
| Flatrock Basin Sewer Improvements (Partial Funding) | 200,000.00 |
| Lakeview Rehabilitation & Force Main | 120,000.00 |
| Northside Lift Station & Force Main | 2,200,000.00 |
| Boman Acres Area Rehabilitation | 2,000,000.00 |
| Whitney Homeowners Relief Sewers | 2,000,000.00 |
| Southside Plant Expansion Phase 3a (Partial Funding) | 15,585,000.00 |
| Lakewood Chronic Relief Sewer | 100,000.00 |
| Joe Creek East Branch Sewer | 700,000.00 |
| Joe Creek Relief Sewer, 51st to 40th (Partial Funding) | 2,247,000.00 |
| Joe Creek Relief Sewer, 29th to 40th (Partial Funding) | 2,550,000.00 |
| Sherwood Forest Chronic Overflow | 250,000.00 |
| Yargee Chronic Overflow Relief | 150,000.00 |
| Veterans Addition Relief Sewer | 150,000.00 |
| Columbia Terrace Chronic Overflow | 350,000.00 |
| Newblock Area Improvements (Partial Funding) | 300,000.00 |
| Southslope Area Rehabilitation (Partial Funding) | 550,000.00 |
| Haikey Creek Plant Improvements Phase One (Partial Funding) | 150,000.00 |
| Southeast Basin East Leg Sewers | 2,322,000.00 |
| Construct Rolling Hills Relief Facility (Partial Funding) | 500,000.00 |
| Construct Future Crossings Under the Creek Turnpike | 250,000.00 |
| Utility Relocation for I-44 Widening | 866,000.00 |
| Inflow & Infiltration Analysis | 700,000.00 |
| Inflow & Infiltration Permanent Stations | 700,000.00 |
| Sanitary Sewers-Knoxville to Pittsburg N. of 36th St. N. | 436,000.00 |
| Total Sanitary Sewer (Ord. No. 17407) | $ 36,126,000.00 |

## WATER

| | |
|---|---|
| A. B. Jewell Water Treatment Plant (Partial Funding) | $ 4,000,000.00 |
| (Deleted by Ord. No. 17860) | (4,000,000.00) |
| Construct or Repair 36-inch Harvard Water Line, Pine to Apache | 1,250,000.00 |
| Water Treatment Plants Improvements | 4,000,000.00 |
| (Added by Ord. No. 17860) | |
| Purchase Right-of-Way Third Flowline (Ord. No. 19858) | 40,000.00 |
| Total Water | |
| (Ord. No. 17407) | $ 5,250,000.00 |
| Revised Total Water | $ 5,250,000.00 |
| (Ord. No. 17860) | |
| Revised Total Water | $ 5,290,000.00 |
| (Ord. No. 19858) | |

## PARKS

| | |
|---|---|
| General Park Restoration | $ 6,137,000.00 |
| General New Park Development | 4,557,000.00 |
| Zoo Expansion 1990-1995 | 4,000,000.00 |
| Physically Limited Access | 202,000.00 |
| Improve Oxley Center & Redbud Valley | 232,000.00 |
| Woodward Park Improvements | 676,000.00 |
| Gilcrease Land, Grounds & Vista Room | 848,000.00 |
| Land Acquisition | 800,000.00 |
| Urban Forestry | 250,000.00 |
| Greenwood Cultural Center | 1,250,000.00 |
| Tulsa Trails | 600,000.00 |
| Total Parks | |
| (Ord. No. 17407) | $ 19,552,000.00 |

## FLOOD CONTROL

| | |
|---|---|
| Fry Ditch #2 Detention Facilities | $ 2,200,000.00 |
| Drainage System Reconstruction | 1,250,000.00 |
| Critical Neighborhood Flood Control | 1,000,000.00 |
| NPDES Water Quality Permit | 1,500,000.00 |
| Voluntary Floodproof & Acquisition | 600,000.00 |
| Audubon Creek-Phase 3 | 5,000,000.00 |
| Vensel Creek-Brookwood Detention | 3,700,000.00 |
| Vensel Creek-93rd St. Bridge | 450,000.00 |
| Improve S. Fork of Little Joe from Joe Creek through Harvard | 1,400,000.00 |
| Vern Rayburn Drainage & Gilcrease Pump Station | 850,000.00 |
| Mingo Creek Local Control | 155,000.00 |
| (Ord. No. 19858) | |

| | |
|---|---|
| Total Flood Control | |
| (Ord. No. 17407) | $ 17,950,000.00 |
| Revised Estimated Total for Flood Control | $ 18,105,000.00 |
| (Ord. No. 19858) | |

**URBAN DEVELOPMENT**

| | |
|---|---|
| Acquire property for the University Center Tulsa Campus | $ 2,894,000.00 |
| Demolition of Donated Properties | 500,000.00 |
| Kendall Whittier Redevelopment | 2,000,000.00 |
| Total Urban Development | |
| (Ord. No. 17407) | $ 5,394,000.00 |

**CORRECTIONAL FACILITIES**

| | |
|---|---|
| Juvenile Detention Facility | $ 1,500,000.00 |
| Adult Detention Facility | 4,000,000.00 |
| Total Correctional Facilities | |
| (Ord. No. 17407) | $ 5,500,000.00 |

**PUBLIC SAFETY**

| | |
|---|---|
| Animal Shelter | $ 600,000.00 |
| Electronic Citations | 59,137.57 |
| *(Added by No. No. 22030)* | |
| Total Public Safety | |
| *(Ord. No. 22030)* | $659,137.57 |

**CIVIC CENTER**

| | |
|---|---|
| Civic Center Plaza Renovation | $ 2,500,000.00 |
| TRASH TO ENERGY DEBT PAYMENT | $ 10,000,000.00 |
| CAPITAL REPLACEMENT | $ 31,445,000.00 |
| SYSTEMWIDE CAPITAL MAINTENANCE | $ 88,000.00 |
| (Ord. No. 19858) | |
| FACILITIES MAINTENANCE AND CAPITAL EQUIPMENT | |
| City Hall Relocation and Operations Consolidation | $ 1,000,000.00 |
| (Ord. No. 21736) | |
| TOTAL PROGRAM | |
| (Ord. Nos. 17407, 17860) | $245,261,000.00 |
| REVISED TOTAL PROGRAM | $247,731,000.00 |
| (Ord. Nos. 19018 and 19246) | |
| REVISED TOTAL PROGRAM | $248,339,000.00 |
| (Ord. No. 19858) | |
| REVISED TOTAL PROGRAM | $249,339,000.00 |
| (Ord. No. 21736) | |

REVISED TOTAL PROGRAM $249,398,137.00
(Ord. No. 22030)

**C. Cost estimates - additional projects.** While the cost estimates shown above are believed to be accurate, it must be recognized that the exact cost of each project may vary from the estimate shown.

It is the intention of the City of Tulsa and is the official City policy herein established that all such projects shall be completed as funds are made available.

If, on or after July 1, 1994, the Council has determined that all of the projects listed in Subsection B above will be completed with existing and projected funds and that excess funds will be available for additional projects, the Council will so advise the Mayor, and such excess funds shall be expended for street projects, including but not limited to the following:

Widen 129 E. Ave. - 21st to 41st
Widen Mingo - 51st to 61st
Widen 71st - Yale to Memorial
Widen Yale - 71st to 81st

and for water and sanitary sewer projects. All such additional projects shall be recommended by the Mayor and approved by the Council.

**Section 101. Sales Tax Overview Committee.**

**A. Committee created.** There is hereby created a committee to review and report upon the expenditures of the sales tax revenues. The committee shall be known as the Sales Tax Overview Committee ("the Committee") which shall consist of twenty-one (21) citizens who shall be qualified electors of the City of Tulsa. The members shall serve without compensation. No member of the Committee shall be an elected public official. The Committee shall terminate and the terms of its members shall expire when all funds generated by the temporary sales tax increase voted upon October 7, 1980, the extension of the temporary sales tax voted upon April 9, 1985, and the extension of the temporary sales tax voted upon December 4, 1990, have been expended.

**B. Appointment and terms.** Members of the Committee shall be appointed by the Mayor, subject to confirmation by a majority vote of the entire membership of the Council. Ten (10) members shall be appointed for terms of two (2) years and eleven (11) members shall be appointed for terms of four (4) years, all to commence on January 1, 1991. Upon the expiration of the terms provided herein, appointments to the Committee shall be for terms of four (4) years. All members of the Committee shall serve until their respective successors are appointed and qualified.

**C. Vacancies.** In the event of vacancies on the Committee, appointments to fill such vacancies shall be for the remainder of the unexpired terms. A member of the Committee shall have vacated his or her position on the Committee if such member fails to attend three (3) consecutive meetings; provided, however, that the vacancy so created shall not prohibit the reappointment to the Committee of such member.

**D. City Clerk to maintain Committee roster.** All appointments to the Committee shall be filed with the City Clerk of the City of Tulsa, and the City Clerk shall maintain a list of the current members of the Committee.

**E. Elected officials, municipal personnel and agencies to assist.** The facilities, personnel, elected officials and agencies of the municipal government are hereby directed to be available and to cooperate with the Committee to accomplish the objectives and purposes herein set forth. Copies of City reports and records pertaining to the receipts and expenditures of the proceeds of the sales tax extension shall be made available to the Committee upon request.

**F. Meetings and reports of the Overview Committee.** The Committee shall meet at least once each month at least seven (7) days prior to the first regular meeting of the City Council the following month. At the first regular meeting of the City Council of each month, the Chairman or another member designated by the Committee shall attend the meeting of the City Council and shall make any report, comment or recommendation which the Committee deems appropriate. In the alternative, at the option of the Committee, a written report from the Committee may be submitted to the Council each month. A time for the presentation of the Committee's reports shall be reserved on the Council's agenda for its first regular meeting each month until the sales tax revenues have been fully expended for the projects and purposes set forth in Titles 43-A, 43-B and 43-C, Tulsa Revised Ordinances.

*(Ord. No. 17455)*

### Section 102. Establishment of Special Five-Year Extended Sales Tax Capital Fund 1991 for revenue from the extended sales tax.

There is hereby established a special revenue fund which shall be known as the Special Five-Year Extended Sales Tax Capital Fund 1991 ("Special Revenue Fund").

All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the special five-year sales tax program, including interest received from the investment thereof, to be deposited in the special revenue fund as soon as received by the City of Tulsa.

None of the monies in the special revenue fund shall ever be encumbered or expended for any purpose other than those purposes set forth in this chapter. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the special revenue fund and to ensure that all such funds shall always be readily available for immediate expenditure for the projects and purposes set forth in this chapter.

The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the extended sales tax monies to the Special Five-Year Extended Sales Tax Capital Fund 1991, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the projects and purposes set forth in this chapter.

### Section 103. Procedure to amend or repeal this chapter.

**A. Mandatory duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the

extended sales tax, and having enacted this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force during the entire period of collection and expenditure of the revenues generated by the five-year period of the extended sales tax for the projects and purposes herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council, which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements have been made.

**1.** The Secretary shall forthwith (within twenty-four [24] hours) notify all major newspapers, all television stations and all radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at the City Hall, to which all of the above-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be given in the Tulsa Daily World, Tulsa Tribune and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication of such notice. The notice shall be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B. Procedure before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 103.A above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

# TITLE 43-D 1996 SALES TAX EXPENDITURE POLICY

## Chapter 1. 1996 Sales Tax Expenditure Policy

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## CHAPTER 1. 1996 SALES TAX EXPENDITURE POLICY

Section 100. Declaration of official policy of City and pledges to the citizens.
Section 101. Sales Tax Overview Committee.
Section 102. Establishment of Special Five-Year Extended Sales Tax Capital Fund 1996 for revenue from the extended sales tax.
Section 103. Procedure to amend or repeal this chapter.

### Section 100. Declaration of official policy of City and pledges to the citizens.

**A.** The City of Tulsa hereby officially and solemnly pledges to the citizens of Tulsa:

**1.** That all funds received by the City from the extension of the temporary sales tax time from and including the 1st day of August, 1996, to and including the 31st day of July, 2001, to be voted upon February 13, 1996, will be spent ONLY for those projects and purposes set forth herein, including the repayment of indebtedness expended for any of such projects or purposes;

**2.** That NONE of such funds shall ever be spent for any other purpose;

**3.** That every officer and employee of the City is hereby ordered to give HIGH priority to the completion of such projects at the earliest possible date;

**4.** That any attempt to divert any of such funds to other purposes or projects or any failure to give high priority to the completion of such projects shall constitute a breach of the official City policy herein established; shall be a violation of the terms, spirit and purpose of this chapter; and shall constitute sufficient grounds for the removal of such officer or employee from his office or position;

**5.** That a Special Five-Year Extended Sales Tax Capital Fund will be created to which all of the money received from such extension of the temporary sales tax will be appropriated and deposited on a monthly basis as soon as received by the City; that all expenditures for the projects and purposes herein enumerated shall be made from such Special Five-Year Extended Sales Tax Capital Fund; that an accurate record of the status of such fund shall be maintained by the Mayor or the Mayor's designee and shall be available for inspection by any person during office hours.

**B. Specific projects and purposes.** The only projects and purposes for which expenditures of proceeds from the extension of the temporary sales tax may lawfully be made are as follows:

**PROJECTS AND PURPOSES**

| **PUBLIC SAFETY** | **ESTIMATED COSTS** |
|---|---|
| Implement Mobile Police Computer Terminal System and Police Courts Information Systems Program | $ 5,500,000.00 |
| Construct Auto Theft/Motorcycle Unit Facility | 850,000.00 |
| Construct a City of Tulsa Safety Training Center | 685,000.00 |
| Construct a Vehicle Wash Facility at Police Uniform Division Southwest | 125,000.00 |
| Build Canine Training Center | 150,000.00 |
| Continue Fire Equipment and Apparatus Replacement Plan | 8,260,000.00 |
| Replace Firefighters' Self-Contained Breathing Apparatus | 800,000.00 |

| **PUBLIC SAFETY** | **ESTIMATED COSTS** |
|---|---|
| Consolidate Fire Stations 3 & 7 in the Kendall-Whittier Area | 1,615,000.00 |
| (Deleted by Ord. No. 19019) | (1,615,000.00) |
| Relocate Fire Station 31 South of Pine Street | 1,235,000.00 |
| (Deleted by Ord. No. 19019) | (1,235,000.00) |
| Install Fire Station and Apparatus Exhaust Systems | 500,000.00 |
| Install Fiber Optic Communications Infrastructure | 2,010,000.00 |
| Enhance SmartZone Simulcast System (800 MHZ Radio System) | 1,250,000.00 |
| Replace Police and Fire Department Mobile and Portable Radios | 4,600,000.00 |
| Replace Emergency Medical Services Capital Equipment | 2,820,000.00 |
| Provide Funding to Repay the Emergency Medical Services Debt | 4,000,000.00 |
| Replace Police Cars; Police, Fire and Municipal Courts Computers; Telecommunications Equipment; and Other Police and Fire capital Equipment | 21,000,000.00 |
| Relocate Fire Station 7 | 1,615,000.00 |
| (Added by Ord. No. 19019) | |
| Relocate Fire Station 22 | 1,235,000.00 |
| (Added by Ord. No. 19019) | |
| Electronic Citations | |
| (Added by Ord. No. 22031) | 112,543.10 |
| Public Safety Total | |
| (Ord. No. 18604) | $ 55,400,000.00 |
| Revised Public Safety Total | $ 55,400,000.00 |
| (Ord. No. 19019) | |
| Revised Public Safety Total | $55,512,543.00 |
| (Ord. No. 22031) | |

| **CULTURE AND RECREATION** | **ESTIMATED COSTS** |
|---|---|
| Construct General Park Improvements | $ 2,160,000.00 |
| Develop Super Center and Recreation Complex at Hicks Park | 2,000,000.00 |
| Perform Park Capital Maintenance | 3,750,000.00 |
| Perform Maintenance and Rehabilitation Activity at the Tulsa Zoo | 1,250,000.00 |
| Acquire Park Land for Unserved Areas | 1,500,000.00 |
| Continue Tulsa Trails System Development | 2,385,000.00 |
| Build Girls' Softball Facilities at Smith Park | 2,000,000.00 |
| Develop Union Area Tulsa Kids Baseball Complex | 2,000,000.00 |
| Renovate Gilcrease Museum | 1,660,000.00 |
| Revitalize and Improve the Tulsa Convention Center | 2,680,000.00 |
| Renovate and Improve the Performing Arts Center Building and Facilities | 2,415,000.00 |
| Expand the Performing Arts Center West Area Facilities | 1,900,000.00 |

| CULTURE AND RECREATION | ESTIMATED COSTS |
|---|---|
| Culture and Recreation Total (Ord. No. 18604) | $ 25,700,000.00 |

| FEDERAL AND STATE MANDATES AND FLOOD CONTROL | ESTIMATED COSTS |
|---|---|
| **Sanitary Sewers** | |
| Construct Coal Creek Relief Facilities and Basin Improvements | $7,270,000.00 |
| (Estimated cost amended by Ord. No. 19020) | (7,270,000.00) |
| (Estimated cost amended by Ord. No. 19020) | 8,220,000.00 |
| Construct Douglas Creek Relief Facilities and Basin Improvements | 4,360,000.00 |
| (Estimated cost amended by Ord. No. 19020) | (4,360,000.00) |
| Estimated cost amended by Ord. No. 19020) | 5,860,000.00 |
| Construct Northside and Mingo Creek Relief Facilities and Basin Improvements | 8,200,000.00 |
| (Estimated cost amended by Ord. No. 19020) | (8,200,000.00) |
| (Estimated cost amended by Ord. No. 19020) | 9,200,000.00 |
| Construct Northside Sludge Handling Facilities | 7,550,000.00 |
| (Deleted by Ord. No. 19020) | (7,550,000.00) |
| Construct Flatrock Creek Relief Facilities and Basin Improvements, Phase 2 | 4,960,000.00 |
| (Estimated cost amended by Ord. No. 19020) | (4,960,000.00) |
| (Estimated cost amended by Ord. No. 19020) | 7,560,000.00 |
| Rehabilitate and Improve the Mohawk Park Lift Station | 500,000.00 |
| Construct Newblock Area Relief Facilities and Basin Improvements | 5,000,000.00 |
| (Estimated cost amended by Ord. No. 19020) | (5,000,000.00) |
| (Estimated cost amended by Ord. No. 19020) | 6,500,000.00 |
| Extend Service to Unsewered Areas | 750,000.00 |
| Sanitary Sewer Total (Ord. No. 18604) | $ 38,590,000.00 |
| Revised Sanitary Sewer Total (Ord. No. 19020) | $ 38,590,000.00 |

| | |
|---|---|
| **Flood Control** | |
| Improve Fry Creek Mainstem Channel (Corps of Engineers Match) | $ 3,900,000.00 |
| Construct a Stormwater Pump Station at 21st and Union | 1,500,000.00 |
| Construct Upper Tupelo Channel and 16th Street Bridge | 450,000.00 |
| Build Methodist Manor Regional Stormwater Detention Facility | 1,000,000.00 |
| Rehabilitate Fred Creek Channel | 500,000.00 |
| Construct Brookhollow Creek Channel from 28th to 137th East Ave. | 1,000,000.00 |
| Improve Lower Mooser Creek Corridor Flood Control Capabilities Including Bridge | 2,900,000.00 |
| Perform Flood-Hazard Mitigation Projects Citywide | 500,000.00 |

**Flood Control**

| | |
|---|---|
| Improve Tupelo Creek Channel at 12th & 119th East Ave. | 450,000.00 |
| Complete Preliminary Design and Feasibility Analyses for Flood Control Projects:<br>Red Fork Creek Detention Basin Facility Design<br>Celia Clinton Detention and Storm Sewer Design<br>Coal Creek, Darlington Bridge and Acquisition Design<br>Crow Creek - Travis Park and Blair Storm Sewers Design<br>Perryman Ditch 50-Year Flood Design & Feasibility Study | 1,200,000.00 |
| Flood Control Total | $ 13,400,000.00 |
| Federal and State Mandates and Flood Control Total (Ord. No. 18604) | $ 51,990,000.00 |
| Revised Federal and State Mandates and Flood Control Total (Ord. No. 19020) | $ 51,990,000.00 |

| NEIGHBORHOOD AND COMMUNITY DEVELOPMENT | ESTIMATED COSTS |
|---|---|
| Improve the Proposed 21st Century Education Park Site | $ 250,000.00 |
| Acquire and Redevelop the Heritage Hills Extension Area | 2,650,000.00 |
| Continue Redevelopment of the Whittier Square Area | 600,000.00 |
| Acquire & Clear Dilapidated Structures in the Springdale Neighborhood | 1,000,000.00 |
| Downtown Residential Development | 4,000,000.00 |
| Improve Downtown Street and Sidewalks | 3,000,000.00 |
| Improve Sidewalks on Arterial and Residential Streets | 1,000,000.00 |
| Convert Certain Downtown Streets to Two-Way Traffic | 550,000.00 |
| Repair and Improve the Main and Fifth Street Mall Area | 1,115,000.00 |
| Osage/Emerson Sector Acquisition and Clearance for University Center at Tulsa | 250,000.00 |
| Neighborhood and Community Development Total (Ord. No. 18604) | $ 14,415,000.00 |

| FACILITIES MAINTENANCE AND CAPITAL EQUIPMENT | ESTIMATED COSTS |
|---|---|
| Replace Capital Equipment | $ 24,000,000.00 |
| Maintain City Facilities | 15,000,000.00 |
| (Estimated cost amended by Ord. No. 21738) | (15,000,000.00) |
| (Estimated cost amended by Ord. No. 21738) | 14,520,000.00 |
| Implement an Electronic System to Store/Retrieve Official City Records | 400,000.00 |
| Enhance the Financial Control and Reporting System | 1,985,000.00 |

| FACILITIES MAINTENANCE AND CAPITAL EQUIPMENT | ESTIMATED COSTS |
|---|---|
| Implement a Public Safety/Public Works Addressing/Mapping System | 340,000.00 |
| City Hall Relocation and Operations Consolidation (Added by Ord. No. 21738) | $480,000.00 |
| Facilities Maintenance and Capital Equipment Total (Ord. Nos. 18604, 21738) | $ 41,725,000.00 |

| TRANSPORTATION PROJECTS | ESTIMATED COSTS |
|---|---|
| Rehabilitate Residential Streets | $ 25,000,000.00 |
| Rehabilitate Arterial Streets | 15,700,000.00 |
| Design 31st Street Widening from Garnett to 129th E. Ave. (Engineering Only) | 300,000.00 |
| Design 61st Street Widening from Riverside to Lewis (Engineering Only) | 500,000.00 |
| Improve 61st Street and Union Intersection | 3,750,000.00 |
| Design 71st Street Widening from U.S. 169 to Garnett (Engineering Only) | 250,000.00 |
| Widen 71st Street from Yale to Sheridan | 6,000,000.00 |
| Design 81st Street Widening from Delaware to Harvard (Engineering Only) | 300,000.00 |
| Design 81st Street and Mingo Intersection Improvements (Engineering Only) | 350,000.00 |
| Design 91st Street and Harvard Intersection Improvements (Engineering Only) | 350,000.00 |
| Widen 91st Street and Mingo Intersection | 6,500,000.00 |
| Acquire Right-of-Way to Widen 91st and Sheridan Intersection | 500,000.00 |
| Acquire Right-of-Way to Widen 91st and Yale Intersection | 400,000.00 |
| Widen 129th E. Ave. from 21st to 31st Streets | 3,500,000.00 |
| Widen Garnett from 41st to 51st Streets | 2,600,000.00 |
| Acquire Right-of-Way to Widen Garnett Road from 51st to 61st | 500,000.00 |
| Widen Garnett Road from I-44 to 21st Streets | 2,800,000.00 |
| Widen Intersection of 11th and Garnett | 900,000.00 |
| Design Gilcrease Expressway Extension and Begin Right-of-Way Acquisition from U.S. 75 to Osage Expressway (Engineering and Partial ROW Only) | 500,000.00 |
| Begin Design of the Gilcrease Expressway Extension from the Osage Expressway to 41st Street (Partial Engineering Only) | 500,000.00 |
| Construct Harvard at 81st Street Slope Stabilization | 250,000.00 |
| Design Extension of Harvard from 91st to 101st Streets (Engineering Only) | 500,000.00 |

| TRANSPORTATION PROJECTS | ESTIMATED COSTS |
|---|---|
| Design Memorial Widening from 61st to 71st Street (Engineering Only) | 350,000.00 |
| Widen Mingo from 51st to 71st Streets | 7,500,000.00 |
| Provide City Match for Construction of Osage Expressway at Apache Interchange | 2,000,000.00 |
| Install Lighting on Osage Expressway from Apache to 36th Street North | 250,000.00 |
| Improve Peoria from Pine to Mohawk | 8,500,000.00 |
| Begin Partial Right-of-Way Acquisition for the Port Road Extension | 750,000.00 |
| Widen Yale Avenue from 71st to 81st Streets | 6,300,000.00 |
| Design Yale Widening from 81st to 91st Streets (Engineering Only) | 350,000.00 |
| Acquire Right-of-Way to Widen from 91st to Creek Turnpike | 600,000.00 |
| Fund City Match for Railroad Crossings Improvements (City Match) | 75,000.00 |
| Repair and Paint Various City Bridges and Overpasses | 1,400,000.00 |
| Repay Oklahoma Department of Transportation for Advances on Matching Funds | 305,000.00 |
| Replace City Bridge at 11th & 172nd East and Change Mohawk Blvd. Bridge over Midland Valley Railroad to an At-Grade Crossing | 1,515,000.00 |
| Install and Rehabilitate Traffic Signals | 600,000.00 |
| Remove and Replace Fuel Tanks at 56th Street & Garnett Road Maintenance Facility | 130,000.00 |
| Expand the Maintenance Facility at 470 W. 23rd Street | 375,000.00 |
| Build a Fleet Wash Facility at 56th Street & Garnett Road Maintenance Site | 240,000.00 |
| Build Salt Storage Facilities | 350,000.00 |
| Acquire a Site for and Construct a New Tulsa Transit Downtown Transfer Station | 4,100,000.00 |
| Replace Tulsa Transit Buses | 6,480,000.00 |
| (Estimated cost amended by Ord. No. 19813) | (6,480,000.00) |
| (Estimated cost amended by Ord. No. 19813) | 4,480,000.00 |
| Replace Tulsa Transit Lift Equipped Vans | 1,245,000.00 |
| Replace Tulsa Transit Vanpool Vans | 275,000.00 |
| Improve Tulsa Transit Bus Maintenance and Office Facilities | 1,185,000.00 |
| Less Federal Transit Administration Grants | (4,400,000.00) |
| Land Acquisition for Downtown Parking (Added by Ord. No. 19813) | 2,000,000.00 |
| Transportation Total (Ord. No. 18604) | $112,425,000.00 |
| GRAND TOTAL PROPOSED 1996 SALES TAX PROJECTS (Ord. No. 18604) | $301,655,000.00 |

| TRANSPORTATION PROJECTS | ESTIMATED COSTS |
|---|---|
| REVISED GRAND TOTAL PROPOSED 1996 SALES TAX PROJECTS (Ord. Nos. 19019, 19020, 19813, 21738) | $301,655,000.00 |
| REVISED GRAND TOTAL PROPOSED 1996 SALES TAX PROJECTS (Ord. No, 22031) | $301,767,543.10 |

**C. Cost estimates - additional projects.** While the cost estimates shown above are believed to be accurate, it must be recognized that the exact cost of each project may vary from the estimate shown.

It is the intention of the City of Tulsa and is the official City policy herein established that all such projects shall be completed as funds are made available.

If, on or after August 1, 2000, the Council has determined that all of the projects listed in Subsection B above will be completed with existing and projected funds and that excess funds will be available for additional projects, the Council will so advise the Mayor, and such excess funds shall be expended for street projects and for water and sanitary sewer projects. All such additional projects shall be recommended by the Mayor and approved by the Council.

*(Ord. Nos. 18604, 19020, 21738)*

**Section 101. Sales Tax Overview Committee.**

**A. Committee created.** There is hereby created a committee which shall be known as the Sales Tax Overview Committee (STOC) 1996 Extension which shall consist of twenty-one (21) citizens who shall be qualified electors of the City of Tulsa. The members shall serve without compensation. No member of the Committee shall be an elected public official. The Committee shall terminate when all funds generated by the Special Five-Year Extended Sales Tax, 1996, have been expended.

**B. Appointment and terms.** Members of the Sales Tax Overview Committee 1996 Extension shall continue to serve as the STOC 1996 Extension. Terms shall be as provided by Title 43-C. All members of the Committee shall serve until their respective successors are appointed and qualified.

**C. Vacancies.** In the event of vacancies on the Committee, appointments to fill such vacancies shall be for the remainder of the unexpired terms. A member of the Committee shall have vacated his or her position on the Committee if such member fails to attend three (3) consecutive meetings; provided, however, that the vacancy so created shall not prohibit the reappointment to the Committee of such member.

**D. City Clerk to maintain committee roster.** All appointments to the Committee shall be filed with the City Clerk of the City of Tulsa, and the City Clerk shall maintain a list of the current members of the Committee.

**E. Elected officials, municipal personnel and agencies to assist.** The facilities, personnel, elected officials and agencies of the municipal government are hereby directed to be available and to cooperate with the Committee to accomplish the objectives and purposes herein set forth. Copies of City reports and records pertaining to the receipts and expenditures of the proceeds of the sales tax extension shall be made available to the Committee upon request.

**F. Meetings and report of Overview Committee.** The Committee shall meet at least once each month beginning with the month of September, 1996. The monthly meeting shall be at least seven (7) days prior to the first meeting of the Council in the following month. At the first meeting of the Council of each month, beginning with the month of October, 1996, the Chairman or other member designated by the Committee shall attend the regular meeting of the Council of the City of Tulsa and make any report, comment or recommendation which the Committee deems to be warranted or, at the option of the Committee, a written report from the Committee may be submitted monthly to the Council. A time for the presentation of such report shall be reserved on the agenda for the first City Council meeting of every month beginning October, 1996, until the sales tax revenues have been fully expended for the projects and purposes set forth in this chapter.

*(Ord. No. 18604)*

## Section 102. Establishment of Special Five-Year Extended Sales Tax Capital Fund 1996 for revenue from the extended sales tax.

There is hereby established a special revenue fund which shall be known as the Special Five-Year Extended Sales Tax Capital Fund 1996 ("special revenue fund").

All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the special five-year sales tax program, including interest received from the investment thereof, to be deposited in the special revenue fund as soon as received by the City of Tulsa.

None of the monies in the special revenue fund shall ever be encumbered or expended for any purpose other than those purposes set forth in this chapter. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the special revenue fund and to ensure that all such funds shall always be readily available for immediate expenditure for the projects and purposes set forth in this chapter.

The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the extended sales tax monies to the Special Five-Year Extended Sales Tax Capital Fund 1996, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the projects and purposes set forth in this chapter.

*(Ord. No. 18604)*

## Section 103. Procedure to amend or repeal this chapter.

**A. Mandatory duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the extended sales tax, and having enacted this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force

during the entire period of collection and expenditure of the revenues generated by the five-year period of the extended sales tax for the projects and purposes herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements have been made.

**1.** The Secretary shall forthwith (within twenty-four [24] hours) notify all major newspapers, all television stations and all radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at the City Hall, to which all of the above-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be given in the Tulsa Daily World and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication of such notice. The notice shall be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B. Procedure before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 103.A above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

*(Ord. No. 18604)*

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# TITLE 43-E 2001 SALES TAX EXPENDITURE

## Chapter 1. 2001 Sales Tax Expenditure Policy

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## CHAPTER 1. 2001 SALES TAX EXPENDITURE POLICY

Section 100. Declaration of official policy of City and pledges to the citizens.
Section 101. Sales Tax Overview Committee.
Section 102. Establishment of Special Five-Year Extended Sales Tax Capital Fund 2001 for revenue from the extended sales tax.
Section 103. Procedure to amend or repeal this chapter.

### Section 100. Declaration of official policy of City and pledges to the citizens.

**A.** The City of Tulsa hereby officially and solemnly pledges to the citizens of Tulsa:

**1.** That all funds received by the City from the extension of the temporary sales tax time from and including the 1st day of August, 2001, to and including the 31st day of July, 2006, to be voted upon May 8, 2001, will be spent ONLY for those projects and purposes set forth herein, including the repayment of indebtedness expended for any of such projects or purposes;

**2.** That NONE of such funds shall ever be spent for any other purpose;

**3.** That every officer and employee of the City is hereby ordered to give HIGH priority to the completion of such projects at the earliest possible date;

**4.** That any attempt to divert any of such funds to other purposes or projects or any failure to give high priority to the completion of such projects shall constitute a breach of the official City policy herein established; shall be a violation of the terms, spirit and purpose of this chapter; and shall constitute sufficient grounds for the removal of such officer or employee from his office or position;

**5.** That a Special Five-Year Extended Sales Tax Capital Fund will be created to which all of the money received from such extension of the temporary sales tax will be appropriated and deposited on a monthly basis as soon as received by the City; that all expenditures for the projects and purposes herein enumerated shall be made from such Special Five-Year Extended Sales Tax Capital Fund; that an accurate record of the status of such fund shall be maintained by the Mayor or the Mayor's designee and shall be available for inspection by any person during office hours.

**B. Specific projects and purposes.** The only projects and purposes for which expenditures of proceeds from the extension of the temporary sales tax may lawfully be made are as follows:

| PROJECTS AND PURPOSES | ESTIMATED COSTS |
|---|---|
| **PUBLIC SAFETY** | |
| **Police** | |
| Forensic Lab Expansion | $ 750,000.00 |
| Handgun Replacement Program | 625,000.00 |
| Driving & Pursuit Simulator System | 500,000.00 |
| Replace Two Police Helicopters | 1,900,000.00 |
| Police Car Replacement Program | 18,000,000.00 |
| Police Total | $ 21,775,000.00 |

**Community Fire Safety**

| | |
|---|---|
| Apparatus Replacement | $ 12,800,000.00 |
| Exhaust Systems for Apparatus & Stations | 600,000.00 |
| Hazardous Materials Protection Complex | 500,000.00 |
| New South Tulsa Fire Station | 2,235,000.00 |
| Site Acquisition for Additional Fire Station | 1,000,000.00 |
| Community Fire Safety Total | $ 17,135,000.00 |

**Emergency Medical Service**

| | |
|---|---|
| EMS Apparatus & Equipment Replacement | $ 4,000,000.00 |
| Emergency Medical Service Total | $ 4,000,000.00 |

**Telecommunications/Information Services**

| | |
|---|---|
| Upgrade City Computer Capabilities | $ 1,395,000.00 |
| Network Hardware & Software Replacement | 2,500,000.00 |
| Telecommunications/Information Services Total | $ 3,895,000.00 |
| Public Safety Total | $ 46,805,000.00 |

| STREETS AND TRANSPORTATION | ESTIMATED COSTS |
|---|---|
| **Street and Expressway** | |
| Gilcrease Expressway Extension—Tisdale Parkway to I-44 (Local Match) | $ 1,500,000.00 |
| Gilcrease Expressway Extension—U.S. 75 to Tisdale Parkway (Local Match) | 3,300,000.00 |
| 15th & Utica Intersection | 2,000,000.00 |
| 31st—Garnett to 129th East Avenue | 5,000,000.00 |
| 41st—Memorial to Broken Arrow Expressway | 1,700,000.00 |
| 61st—Mingo Valley Expressway to Garnett | 2,500,000.00 |
| 81st and Delaware Intersection | 7,500,000.00 |
| 81st & Mingo Intersection to U.S. 169 | 6,000,000.00 |
| 91st & Yale Intersection to Creek Turnpike | 9,500,000.00 |
| 129th East Avenue—41st to 51st | 6,000,000.00 |
| Delaware—I-244 to 11th | 3,310,000.00 |
| Garnett—51st to 61st | 6,750,000.00 |
| Lewis—61st to 75th | 10,000,000.00 |

| STREETS AND TRANSPORTATION | ESTIMATED COSTS |
|---|---|
| Riverside Drive and Other Related Infrastructure | 1,200,000.00 |
| Arterial Streets—Major Rehabilitation | 40,775,000.00 |
| **Streets** | |
| a. 11th—Memorial to 89th East | |
| b. 15th—Fulton to Sheridan | |
| c. 15th—73rd to Memorial | |
| d. 21st—Harvard to Yale | |
| e. 21st—129th E. to 137th E. | |
| f. 41st—Yale to Hudson | |
| g. 46th—Elwood to Cincinnati | |
| h. 51st—129th to 145th E. Ave. | |
| i. 71st—33rd W. to U.S. 75 | |
| j. 81st—Lewis to Riverside | |
| k. 81st—US 169 to Garnett | |
| l. 161st—11th to Admiral | |
| m. Admiral—Yale to Memorial | |
| n. Elwood—71st to 81st | |
| o. Garnett—Admiral Pl. to I-244 | |
| p. Harvard—36th St. No. to Mohawk | |
| q. Independence—Lewis to Yale | |
| r. Peoria—21st to 31st St. | |
| s. Peoria—Admiral to Pine | |
| t. Pine—Cincinnati to Main | |
| u. Yale—14th to 21st | |
| v. Yale—I-44 to 41st | |
| w. Yale—61st to 71st | |
| x. Yale—36th to 41st | |
| y. Downtown Streets & Sidewalks | |
| z. Traffic Signal Installation & Modification | |
| aa. Arterial Sidewalks | |
| ab. Pavement Management System Update | |
| ac. General Engineering & Inspection | |
| **Intersections** | |
| a. 21st & 129th E. Ave. | |
| b. 51st & 33rd W. Ave. | |
| c. Admiral & Yale, Including Left Turn Lanes | |
| d. Peoria & 36th St. No. | |
| e. Pine & Garnett | |
| f. Pine & Lewis | |
| g. Sheridan & Pine | |
| Residential Streets—Major Rehabilitation | 46,995,000.00 |

| **STREETS AND TRANSPORTATION** | **ESTIMATED COSTS** |
|---|---|

a. Maintenance Zone 1001: Meadow Brook Subdivision: Bounded by the area S. of Virgin St., E Seminole Pl., Cincinnati Ave. & Hartford Ave.
b. Maintenance Zone 1007: Ingram Lewis Subdivision: N. Troost Ave. -Latimer St. to S. of Jasper St. Also Capitol Hill Subdivision: Haskell St. -Peoria to Rockford Ave., N. Quaker Ave. -Easton to Haskell St. & King Pl. -Peoria to Quaker Ave.
c. Maintenance Zone 1068: Easton Heights, Easton Heights 2nd Subdivisions: Bounded by Edison St., N. 33rd W. Ave., W. Brady St. & Gilcrease Hills Museum Rd.
d. Maintenance Zone 1068: Vern Subdivision: W. 8th St., 49th W. Ave. to 51st W. Ave.
e. Maintenance Zone 1070: Reservoir Hill Subdivision; N. Denver Place -Zion St. to Young St., W. Zion St. -N. Denver Pl. to W. of Cheyenne -Replace Retaining Walls & Reconstruct Street.
f. Maintenance Zone 1079: N. Highland Acres, Hughey Acres Subdivisions: N. Victor Ave. -46th St. N. to 48th St. N., 48th St. N. -N. Victor Ave. to N. Lewis Ave., N. Yorktown Ave., N. of 46th St. N., N. Yorktown Pl. -48th St. N. to 50th St. N., 50th St. N. -N. Yorktown Pl. to N. Lewis Ave.
g. Maintenance Zone 2131: Summit Park Subdivision: Bounded by W. 61st St., 33rd W. Ave., W. 56th St. & S. 30th W. Ave.
h. Maintenance Zone 3009: Modern Heights Subdivision: Bounded by Independence St., N. Toledo Ave., E. Latimer St. & N.Yale Ave.
i. Maintenance Zone 3012: Layman Acres Subdivision: E. Latimer St. -89th E. Ave. to N. Mingo Rd., 89th E. Ave. -Latimer St. to Newton Pl., 94th E. Ave. -Latimer St. to Newton St.
j. Maintenance Zone 4013: Lynche & Forsythe, Midway, Hackthorne: Bounded by Crosstown Expressway, Peoria Ave., the railroad & Utica Ave.
k. Maintenance Zone 4024: Smithville 2nd, C & C Industrial Park Subdivisions: Bounded by E. 11th St., Fulton Ave., E. 15th St. & Sheridan Rd.
l. Maintenance Zone 5033: Michael Heights, Michael Heights Ext. Additions: Bounded by E. 21st, 73rd E. Ave., E. 22nd Pl. & S. Memorial.
m. Maintenance Zone 5040: Longview Acres 2nd, Longview Acres 3rd Subdivisions: Bounded by Memorial Dr., 88th E. Ave., E. 31st St. & 35th St.
n. Maintenance Zone 6019: Wagon Wheel Addition, Wagon Wheel Blks. 19-25 Addition: Bounded by S. Admiral Pl., S. 106th E. Ave., 5th St. & Garnett Rd.

| STREETS AND TRANSPORTATION | ESTIMATED COSTS |
|---|---|
| o. Maintenance Zone 7045: Patrick Henry IV/ Patrick Henry Blks. 24-37; Pittsburg Ave. -Skelly Dr. to 46th Pl. | |
| p. Maintenance Zone 7058: Warrenton Center East, Warrenton Subdivisions: Bounded by E. 61st St., Erie Ave., 65th Pl. & Hudson Ave. Also Deborah Jean Subdivisions: Maplewood Ave. -E. 61st St. to E. 62nd St. & E. 62nd St. -Maplewood Ave. to Sheridan Road. Also Country View Estates: Oxford Rd. & E. 67th Pl. | |
| q. Maintenance Zone 7059: Park Plaza South/Park Plaza South III: 69th E. Ave -66th E. Ave. to 69th St., 69th St. -73rd E. Ave. to 77th E. Ave. | |
| r. Maintenance Zone 7059: Shadow Mountain Estates Subdivision: bounded by E. 61st St., 69th E. Pl., 65th Pl. & 72nd E. Ave. Also E. 65th St. - 72nd E. Ave. to 74th E. Ave. | |
| s. Maintenance Zone 8057: Vienna Woods, Vienna Woods West Subdivisions: S. Jamestown Ave. -E. 71st to E. 69th Pl., E. 69th Pl. -S. Jamestown Ave. to S. Louisville Ave., S. Knoxville Pl., N. of E. 69th Pl. & S. Louisville Ave. -E. 71st St. to E. 69th Pl. Also S. Indianapolis Ave. -E. 71st to E. 70th St. & E. 70th St. -S. Harvard to S. Indianapolis Ave. | |
| t. Maintenance Zone 9037: Timberland Addition, Roth Hammer Heights Subdivisions: S. Birmingham Ave. -E. 31st St. to 36th St. Also Charlane Estates Subdivision: S. Gary Pl. -E. 31st St. to E. 36th St., S. Florence Pl. -Gary Pl. to E. 36th St. & E. 33rd St. -Florence Pl. to S. Harvard Ave. | |
| u. Maintenance Zone 9030: Woody Crest Subdivision: Columbia Pl., 31st St. to 26th Pl. | |
| v. Neighborhood Traffic Calming Devices. | |
| w. Residential Sidewalks. | |
| x. Street Project Engineering & Inspection. | |
| y. Pavement Management System Reinspection. | |
| Bridge Repair, Citywide | 1,500,000.00 |
| Bridge Replacement, Citywide | 3,080,000.00 |
| Main Mall Renovation (Pedestrian-friendly environment, including in part: Center island with fountain at 5th & Main, memorializing Senator Dewey Bartlett; Two-way traffic on Main, 4th to 6th; 5th St. Renovation one-half block on each side of Main; Mini-plaza at SW Corner of 5th & Main with Stage; Fountain at SE Corner of 4th & Main; and wide sidewalks, landscaping and lighting, designed to retain and promote pedestrian usage and enjoyment of the Main Mall)* | 4,525,000.00 |
| Street Surface Repairs & Citywide Crack Sealing | 10,000,000.00 |

| STREETS AND TRANSPORTATION | ESTIMATED COSTS |
|---|---|
| City Match for I-44 Utility Relocation and other ODOT Utility Relocations | $101,268.96 |
| Engineer & Acquire Rights-of-Way on Peoria between Pine Street and Mohawk Boulevard | $10,935.16 |
| Trails Development Program | 4,500,000.00 |
| **Revised Streets and Expressway Total** | $177,747,204.12 |

*The present legislative intent, although it is not part of the project, is to close Main Mall to vehicular traffic from 11:00 a.m. to 2:00 p.m., Monday through Friday, and such other times as determined by the Council, pursuant to law. Exercise or modification of this legislative intent shall not require amendment of this chapter.

**Tulsa Transit**

| | |
|---|---|
| Electric Floor Lifts (8 Sets) | 225,000.00 |
| Passenger Shelters | 350,000.00 |
| Transit Coaches (31 Units) | 9,500,000.00 |
| Vans, Lift Equipped (37 Units) | 1,850,000.00 |
| Vans & Utility Vehicles (7 Units) | 200,000.00 |
| Less: Federal Funding | (8,000,000.00) |
| Tulsa Transit Authority Total | $ 4,125,000.00 |
| **Revised Streets and Transportation Total** | $181,872,204.12 |

| FLOOD CONTROL | ESTIMATED COSTS |
|---|---|
| Coal Creek—Darlington Bridge Replacement & Property Acquisition | $ 1,700,000.00 |
| Crow Creek Channel Rehabilitation & Culvert Replacement | 2,000,000.00 |
| Citywide Flood Control | 8,150,000.00 |
| Elm Creek Sixth St. Drainage Improvements | 3,000,000.00 |
| Fred Creek Guier Wood III & IV Drainage Improvements | 500,000.00 |
| Fred Creek Southridge Drainage Improvements | 1,500,000.00 |
| Vensel Creek Bridge (98th & Oswego) | 400,000.00 |
| Garden City Drainage Improvements | 200,000.00 |
| South Fork Joe Creek Channelization, Phase 2 | 5,000,000.00 |
| Magic Circle Storm Sewer | 1,700,000.00 |
| Mountain Manor, Mooser Creek Bridge (W. 53rd St.) | 1,365,000.00 |
| Perryman Ditch, Plan C—Phase 1 | 2,250,000.00 |
| Rose Dew Channel & Crossing Improvements | 1,400,000.00 |
| Vienna Woods Drainage Improvements | 2,210,000.00 |

| FLOOD CONTROL | ESTIMATED COSTS |
|---|---|
| Flood Control Total | $ 31,375,000.00 |

| SANITARY SEWER | ESTIMATED COSTS |
|---|---|
| Flatrock Basin Relief Lines | $ 2,200,000.00 |
| Northslope Basin (Coal Creek & Flat Rock) Rehabilitation | 3,600,000.00 |
| Northside WWTP Process Improvements | 3,365,000.00 |
| Northslope Mingo Creek Sanitary Sewer Survey & Rehabilitation | 8,000,000.00 |
| Mid-Town East District Sanitary Sewer Rehabilitation/Replacement | 7,000,000.00 |
| Central Park Interceptor Relocation | 3,800,000.00 |
| Newblock Area Sanitary Sewer Improvements/Rehabilitation | 4,000,000.00 |
| Unsewered Areas & Offsite Mains | 4,800,000.00 |
| Sanitary Sewer Total | $ 36,765,000.00 |

| NEIGHBORHOOD AND COMMUNITY DEVELOPMENT | ESTIMATED COSTS |
|---|---|
| Brady Village Plan Implementation | $ 1,150,000.00 |
| Brookside Neighborhood Plan Implementation | 1,085,000.00 |
| Charles Page Boulevard Plan Implementation | 1,545,000.00 |
| Hope VI Infrastructure Development | 500,000.00 |
| Downtown Residential Development | 4,000,000.00 |
| OSU Campus Acquisition/Housing Program | 3,700,000.00 |
| Neighborhood and Community Development Total | $ 11,980,000.00 |

| CULTURE AND RECREATION | ESTIMATED COSTS |
|---|---|
| **Park and Recreation** | |
| Aquatics Facilities & Swimming Pools Development | $ 725,000.00 |
| General Park Sites Renovation, Improvements & Maintenance | 5,100,000.00 |
| Golf Course Development | 4,155,000.00 |
| Mohawk Park Improvement & Development & Oxley & Redbud Valley Nature Centers | 4,045,000.00 |
| River Parks | 1,800,000.00 |
| Tulsa Zoo Development | 8,000,000.00 |
| Woodward, Forestry & Horticulture | 1,355,000.00 |
| Youth & Adult Sports Facilities Development | 1,615,000.00 |

| CULTURE AND RECREATION | ESTIMATED COSTS |
|---|---|
| Parks and Recreation Total | $ 26,795,000.00 |

**Gilcrease Museum**

| | |
|---|---|
| Gilcrease Museum Renovations & Improvements | $ 1,200,000.00 |
| Thomas Gilcrease House & Mausoleum Repair | 200,000.00 |
| Gilcrease Museum Total | $ 1,400,000.00 |

**Performing Arts Center**

| | |
|---|---|
| Performing Arts Center Building & Facilities Renovations | $ 2,800,000.00 |
| Performing Arts Center Total | $ 2,800,000.00 |

**Tulsa Convention Center**

| | |
|---|---|
| Tulsa Convention Center Renovations & Improvements | $ 3,420,000.00 |
| Tulsa Convention Center Total | $ 3,420,000.00 |
| Cultural and Recreation Total | $ 34,415,000.00 |

| PUBLIC FACILITIES RENOVATION & REPAIR | ESTIMATED COSTS |
|---|---|
| Citywide Public Facilities Renovation | $ 10,000,000.00 |
| (Estimated cost amended by Ord. No. 21737) | ($ 10,000,000.00) |
| (Estimated cost amended by Ord. No. 21737) | $ 9,965,000.00 |
| City Hall Relocation and Operations Consolidation (Ord. No. 21737) | $ 35,000.00 |
| Public Facilities Renovation & Repair Total (Ord. No. 21737) | $ 10,000,000.00 |

| PROJECTS AND PURPOSES PROJECTS | ESTIMATED COSTS |
|---|---|
| **GENERAL GOVERNMENT** | |
| 1. System Wide Capital Maintenance | $48,243.31 |
| **General Government Total** | $48,243.31 |

| PROJECTS AND PURPOSES PROJECTS | ESTIMATED COSTS |
|---|---|
| FINANCE DEPARTMENT | |
| 1. 2008 Streets Package Sales Tax Rebate | $950,000.00 |
| **Finance Total** | $950,000.00 |

| CAPITAL EQUIPMENT | ESTIMATED COSTS |
|---|---|
| Capital Equipment Replacement | $ 38,100,000.00 |
| Capital Equipment Total | $ 38,100,000.00 |
| **REVISED GRAND TOTAL PROPOSED 2001 SALES TAX PROJECTS** | $392,310,447.43 |

**C. Cost estimates - additional projects.** While the cost estimates shown above are believed to be accurate, it must be recognized that the exact cost of each project may vary from the estimate shown.

**D.** The Mayor and City Council shall determine project priority on an annual basis through the budget process.

It is the intention of the City of Tulsa and is the official City policy herein established that all such projects shall be completed as funds are made available.

If, on or after August 1, 2005, the Council has determined that all of the projects listed in Subsection B above will be completed with existing and projected funds and that excess funds will be available for additional projects, the Council will so advise the Mayor, and such excess funds shall be expended for street projects and for water and sanitary sewer projects. All such additional projects shall be recommended by the Mayor and approved by the Council.

*(Ord. Nos. 20052, 21737; Ord. No. 22380, §§ 1—5, 2-17-2011; Ord. No. 23324, §§ 1—3, 6-25-2015)*

## Section 101. Sales Tax Overview Committee.

**A. Committee created.** There is hereby created a committee which shall be known as the Sales Tax Overview Committee (STOC) 2001 Extension which shall consist of twenty-one (21) citizens who shall be qualified electors of the City of Tulsa. The members shall serve without compensation. No member of the Committee shall be an elected public official. The Committee shall terminate when all funds generated by the Special Five-Year Extended Sales Tax, 2001, have been expended.

**B. Appointment and terms.** Members of the Sales Tax Overview Committee 1996 Extension shall continue to serve as the STOC 2001 Extension. Terms shall be as provided by Title 43-C. All members of the Committee shall serve until their respective successors are appointed and qualified.

**C. Vacancies.** In the event of vacancies on the Committee, appointments to fill such vacancies shall be for the remainder of the unexpired terms. A member of the

Committee shall have vacated his or her position on the Committee if such member fails to attend three (3) consecutive meetings; provided, however, that the vacancy so created shall not prohibit the reappointment to the Committee of such member.

**D. City Clerk to maintain Committee roster.** All appointments to the Committee shall be filed with the City Clerk of the City of Tulsa, and the City Clerk shall maintain a list of the current members of the Committee.

**E. Elected officials, municipal personnel and agencies to assist.** The facilities, personnel, elected officials and agencies of the municipal government are hereby directed to be available and to cooperate with the Committee to accomplish the objectives and purposes herein set forth. Copies of City reports and records pertaining to the receipts and expenditures of the proceeds of the sales tax extension shall be made available to the Committee upon request.

**F. Monthly report to Overview Committee.** The Mayor or the Mayor's designee shall provide to the Sales Tax Overview Committee and the City Council a monthly report on the status of the Special Five-Year Extended Sales Tax Capital Fund 2001 and the projects listed in this chapter. The monthly report shall include, with reference to each project, current information on:

**1.** The estimated cost;
**2.** The amount of total appropriations;
**3.** The amount of total expenditures;
**4.** A statement of completion status;
**5.** A summary of all budget transfers;
**6.** The amount of any unencumbered and unallocated fund balance within the Special Five-Year Extended Sales Tax Capital Fund 2001; and
**7.** Specific designation of projects that are fifteen percent (15%) over or under the estimated cost.

Said monthly report shall be in addition to any reports that the Mayor or the Mayor's designee are required by law to provide.

**G. Meetings and report of Overview Committee.** The Committee shall meet at least once each month beginning with the month of September, 2001. The monthly meeting shall be at least seven (7) days prior to the first meeting of the Council in the following month. At the first meeting of the Council of each month, beginning with the month of October, 2001, the Chairman or other member designated by the Committee shall attend the regular meeting of the Council of the City of Tulsa and make any report, comment or recommendation which the Committee deems to be warranted or, at the option of the Committee, a written report from the Committee may be submitted monthly to the Council. A time for the presentation of such report shall be reserved on the agenda for the first City Council meeting of every month beginning October, 2001, until the sales tax revenues have been fully expended for the projects and purposes set forth in this chapter.

*(Ord. No. 20052)*

### Section 102. Establishment of Special Five-Year Extended Sales Tax Capital Fund 2001 for revenue from the extended sales tax.

There is hereby established a special revenue fund which shall be known as the Special Five-Year Extended Sales Tax Capital Fund 2001 ("Special Revenue Fund").

All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the special five-year sales tax program, including interest received from the investment thereof, to be deposited in the Special Revenue Fund as soon as received by the City of Tulsa.

None of the monies in the Special Revenue Fund shall ever be encumbered or expended for any purpose other than those purposes set forth in this chapter. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the Special Revenue Fund and to ensure that all such funds shall always be readily available for immediate expenditure for the projects and purposes set forth in this chapter.

The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the extended sales tax monies to the Special Five-Year Extended Sales Tax Capital Fund 2001, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the projects and purposes set forth in this chapter.

*(Ord. No. 20052)*

**Section 103. Procedure to amend or repeal this chapter.**

**A. Mandatory duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the extended sales tax, and having enacted this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force during the entire period of collection and expenditure of the revenues generated by the five-year period of the extended sales tax for the projects and purposes herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements have been made.

**1.** The Secretary shall forthwith (within twenty-four [24] hours) notify all major newspapers, all television stations and all radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at the City Hall, to which all of the above-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be given in the Tulsa Daily World and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda

for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication of such notice. The notice shall be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B. Procedure before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 103.A above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

*(Ord. No. 20052)*

# TITLE 43-F 2006 SALES TAX EXPENDITURE POLICY

## Chapter 1. 2006 Sales Tax Expenditure Policy

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## CHAPTER 1. 2006 SALES TAX EXPENDITURE POLICY

Section 100. Declaration of official policy of City and pledges to the citizens.
Section 101. Sales Tax Overview Committee.
Section 102. Establishment of Special 2006 Extended Sales Tax Capital Fund 2006 for revenue from the extended sales tax.
Section 103. Procedure to amend or repeal this chapter.

### Section 100. Declaration of official policy of City and pledges to the citizens.

**A.** The City of Tulsa hereby officially and solemnly pledges to the citizens of Tulsa:

**1.** That all funds received by the City from the extension of the temporary sales tax, from and including the 1st day of August, 2006, until Four Hundred Fifty-Nine Million One Hundred Sixty-One Thousand Dollars ($459,161,000.00) is collected from the funds raised from the incremental increase of the tax levy from two percent (2%) to three percent (3%), notice is given to the Oklahoma Tax Commission to reduce the sales tax levied pursuant to this chapter from three percent (3%) to two percent (2%), and said tax levy reduction has become effective as provided by law, which said extension is to be voted upon May 9, 2006, will be spent ONLY for those projects and purposes set forth herein, including the repayment of indebtedness expended for any of such projects or purposes;

**2.** That NONE of such funds shall ever be spent for any other purpose;

**3.** That every officer and employee of the City is hereby ordered to give HIGH priority to the completion of such projects at the earliest possible date;

**4.** That any attempt to divert any of such funds to other purposes or projects or any failure to give high priority to the completion of such projects shall constitute a breach of the official City policy herein established; shall be a violation of the terms, spirit and purpose of this chapter; and shall constitute sufficient grounds for the removal of such officer or employee from his office or position;

**5.** That a Special 2006 Extended Sales Tax Capital Fund 2006 will be created to which all of the sales tax received from such extension of the temporary sales tax and the interest thereon will be appropriated and deposited on a monthly basis as soon as received by the City; that all expenditures for the projects and purposes herein enumerated shall be made from such Special 2006 Extended Sales Tax Capital Fund 2006; that an accurate record of the status of such fund shall be maintained by the Mayor or the Mayor's designee and shall be available for inspection by any person during office hours.

**B. Specific projects and purposes.** The only projects and purposes for which expenditures of proceeds from the extension of the temporary sales tax may lawfully be made are as follows:

**1.** Projects and purposes listed in Title 43-E which did not receive sufficient funding for completion during the 2001 3rd Penny Sales Tax Extension, more specifically as follows:

## PROJECTS AND PURPOSES
## (UNCOMPLETED 2001 SALES TAX PROJECTS)

| PUBLIC SAFETY | ESTIMATED COSTS |
|---|---|
| **Police** | |
| Driving & Pursuit Simulator System | $ 500,000.00 |
| Replace Two Police Helicopters | 2,000,000.00 |
| Police Car Replacement Program | 2,705,000.00 |
| Police Total | $ 5,205,000.00 |
| **Community Fire Safety** | |
| Hazardous Materials Protection Complex | 500,000.00 |
| (Project deleted) | (500,000.00) |
| Community Fire Safety Total | $ 000,000.00 |
| **Telecommunications/Information Services** | |
| Upgrade City Computer Capabilities | $ 415,000.00 |
| Telecommunications/Information Services Total | $ 415,000.00 |
| Public Safety Total | $ 5,620,000.00 |

| STREETS AND TRANSPORTATION | ESTIMATED COSTS |
|---|---|
| **Streets and Expressways** | |
| 41st—Memorial to Broken Arrow Expressway | $ 1,700,000.00 |
| 81st and Delaware Intersection | 5,150,000.00 |
| Delaware—I-244 to 11th | 3,110,000.00 |
| Garnett—51st to 61st | 7,309,000.00 |
| Lewis—61st to 75th | 9,150,000.00 |
| Arterial Streets—Major Rehabilitation | 12,075,000.00 |
| Streets | |
| a. 21st—129th E. to 137th E. | |
| b. 71st—33rd W. to U.S. 75 | |
| c. 81st—US 169 to Garnett | |
| d. 161st—11th to Admiral | |
| e. Admiral—Yale to Memorial | |
| f. Elwood—71st to 81st | |
| g. Garnett—Admiral Pl. to I-244 | |
| h. Yale—61st to 71st | |

| STREETS AND TRANSPORTATION | ESTIMATED COSTS |
|---|---|
| i. Traffic Signal Installation & Modification | |
| j. General Engineering & Inspection | |
| Intersections | |
| a. 21st & 129th E. Ave. | |
| b. 51st & 33rd W. Ave. | |
| c. Pine & Garnett | |
| d. Sheridan & Pine | |
| Residential Streets—Major Rehabilitation | 250,000.00 |
| a. Neighborhood Traffic Calming Devices | |
| Street Surface Repairs & Citywide Crack Sealing | 1,000,000.00 |
| Trails Development Program | 720,000.00 |
| Streets and Expressway Total | $ 40,464,000.00 |

**Tulsa Transit**

| | |
|---|---|
| Passenger Shelters | $ 350,000.00 |
| Transit Coaches (31 Units) | 700,000.00 |
| Tulsa Transit Total | $ 1,050,000.00 |
| Streets and Transportation Total | $ 41,514,000.00 |

| FLOOD CONTROL | ESTIMATED COSTS |
|---|---|
| Coal Creek—Darlington Bridge Replacement & Property Acquisition | $ 1,000,000.00 |
| Citywide Flood Control | 602,000.00 |
| Perryman Ditch, Plan C—Phase 1 | 1,000,000.00 |
| Rose Dew Channel & Crossing Improvements | 1,000,000.00 |
| Flood Control Total | $ 3,602,000.00 |

| NEIGHBORHOOD AND COMMUNITY DEVELOPMENT | ESTIMATED COSTS |
|---|---|
| Brady Village Plan Implementation | $ 675,000.00 |
| Downtown Residential Development | 3,000,000.00 |
| Neighborhood and Community Development Total | $ 3,675,000.00 |

| CULTURE AND RECREATION | ESTIMATED COSTS |
|---|---|

**Parks and Recreation**

| CULTURE AND RECREATION | ESTIMATED COSTS |
|---|---|
| Aquatics Facilities & Swimming Pools Development | $ 580,000.00 |
| General Park Sites Renovation, Improvements & Maintenance | 2,450,000.00 |
| Golf Course Development | 25,000.00 |
| Mohawk Park Improvement & Development & Oxley & Redbud Valley Nature Centers | 705,000.00 |
| River Parks | 70,000.00 |
| Tulsa Zoo Development | 5,000,000.00 |
| Woodward, Forestry & Horticulture | 470,000.00 |
| Youth & Adult Sports Facilities Development | 435,000.00 |
| Parks and Recreation Total | $ 9,735,000.00 |
| **Gilcrease Museum** | |
| Gilcrease Museum Renovations & Improvements | $ 140,000.00 |
| Gilcrease Museum Total | $ 140,000.00 |
| **Performing Arts Center** | |
| Performing Arts Center Building & Facilities Renovations | $ 480,000.00 |
| Performing Arts Center Total | $ 480,000.00 |
| **Tulsa Convention Center** | |
| Tulsa Convention Center Renovations & Improvements | $ 660,000.00 |
| Tulsa Convention Center Total | $ 660,000.00 |
| Culture and Recreation Total | $ 11,015,000.00 |

| PUBLIC FACILITIES RENOVATION & REPAIR | ESTIMATED COSTS |
|---|---|
| Citywide Public Facilities Renovation | $ 2,255,000.00 |
| Public Facilities Renovation & Repair Total | $ 2,255,000.00 |

| CAPITAL EQUIPMENT | ESTIMATED COSTS |
|---|---|
| Capital Equipment Replacement | $ 3,095,000.00 |
| Capital Equipment Total | $ 3,095,000.00 |

| CAPITAL EQUIPMENT | ESTIMATED COSTS |
|---|---|
| GRAND TOTAL UNCOMPLETED 2001 SALES TAX PROJECTS | $ 70,776,000.00 |

These projects shall be given funding priority over any projects listed in Section 100(B)(2) of this chapter. Provided that any revenue bond funding package may include additional project(s) as listed in Section 100(B)(2), so long as the projects listed above have been previously funded for the amounts listed above, or the projects listed above will be funded by the proposed revenue bond funding package for the amounts listed above.

**2.** New 2006 sales tax projects and purposes for which expenditures of proceeds from the extension of the temporary sales tax may lawfully be made are as follows:

**PROJECTS AND PURPOSES**
**(NEW 2006 SALES TAX PROJECTS)**

| PUBLIC SAFETY | ESTIMATED COSTS |
|---|---|
| **Police** | |
| Police Helicopter Replacement | $ 2,000,000.00 |
| Permanent Police Laboratory & Property Room (Estimated cost amended by Ord. No. 22032) | 15,970,758.01 |
| Police Vehicle Replacement Program | 14,391,000.00 |
| Electronic Citations (Added by Ord. No. 22032) | 240,766.43 |
| Revised Police Total | $32,602,524.44 |
| **Fire** | |
| Fire Equipment & Apparatus | $ 13,000,000.00 |
| New Southeast Tulsa Fire Station and Apparatus, East 41st Street South & 122nd East Avenue | 3,100,000.00 |
| Homeland Security Equipment Facility (Amended by Ord. No. 22032) | 2,994,230.99 |
| Revised Fire Total (Ord. No. 22032) | $19,094,230.99 |
| **Telecommunications** | |
| City Hall Uninterruptible Power Supply (UPS) Replacement | $ 190,000.00 |
| Weather Alert Sirens Replacement | 1,315,000.00 |
| Network System Improvements | 1,445,000.00 |
| 61st Street Tower Communication Shelter Replacement | 300,000.00 |
| Power Protection for City's Prime Communications Site on BOK Tower | 105,000.00 |
| Logging System for 800 MHZ Radio System | 120,000.00 |

| | |
|---|---|
| **Telecommunications** | |
| Disk Drive Subsystem, Imaging Server, Enterprise Systems Server for Finance & HR Systems | 905,000.00 |
| 800 MHZ East Tulsa Receiver Site | 1,195,000.00 |
| (Project deleted) | (1,195,000.00) |
| Radio System Tower Controller Upgrade and Associated Equipment (Added by Ord. No. 23320) | 3,545,000.00 |
| VoIP Citywide Phone System | 1,500,000.00 |
| Wireless Data Communications System | 2,350,000.00 |
| (Project deleted) | (2,350,000.00) |
| Telecommunications Total | $ 9,425,000.00 |
| **Emergency Medical Service (EMS)** | |
| EMS Capital Equipment | $ 3,000,000.00 |
| Emergency Medical Service Total | $ 3,000,000.00 |
| Revised Public Safety Total (Ord. No. 22032) | $ 64,121,755.43 |

| **CULTURE AND RECREATION** | **ESTIMATED COSTS** |
|---|---|
| **Parks and Recreation/Golf Courses/Zoo** | |
| Municipal & Junior Pool Renovations | $ 1,000,000.00 |
| Playground, Splashpad & General Park Safety Surfaces | 2,750,000.00 |
| Playground Equipment Replacement & Renovation | 990,000.00 |
| Page Belcher Golf Course Parking Lots & Driveways | 470,000.00 |
| General Park Buildings Renovation & Improvement and Site Development, Maintenance & Improvement | 3,650,000.00 |
| Tulsa Zoo Development & Improvements | 3,000,000.00 |
| Carl Smith Complex Facilities Development | 250,000.00 |
| Savage Park Girls Softball Facilities Expansion | 1,590,000.00 |
| Hilti Baseball Facilities Expansion | 1,000,000.00 |
| North Tulsa Sports Complex | 3,800,000.00 |
| Parks and Recreation/Golf Courses/Zoo Total | $ 18,500,000.00 |

| **River Parks** | **ESTIMATED COSTS** |
|---|---|
| Trails Resurfacing and Widening | $2,925,00.00 |
| Zink Lake Riverfront Development East Bank Improvements between 11th and 21st Streets | 5,250,000.00 |
| River West Festival Park Renovation | $7,500,000.00 |

| **River Parks** | **ESTIMATED COSTS** |
|---|---|
| River Parks Facilities Rehabilitation and Replacement | $350,000.00 |
| Zink Lake Dam Repair | $250,000.00 |
| River Parks Total | $16,275,000.00 |
| **Gilcrease** | **Estimated Costs** |
| Gilcrease Museum Renovations & Improvements | $3,280,000.00 |
| Gilcrease Total | $3,280,000.00 |
| **Performing Arts Center** | |
| Performing Arts Center Renovation | $ 1,350,000.00 |
| Performing Arts Center Total | $ 1,350,000.00 |
| **Tulsa Convention Center** | |
| Tulsa Convention Center Renovation | $ 2,000,000.00 |
| Tulsa Convention Center Total | $ 2,000,000.00 |
| Culture and Recreation Total | $ 41,405,000.00 |

| **DOWNTOWN, ECONOMIC AND NEIGHBORHOOD DEVELOPMENT** | **ESTIMATED COSTS** |
|---|---|
| Tulsa Development Authority Downtown Property Acquisition, Rehabilitation and Construction | $ 2,000,000.00 |
| Kendall Whittier Plan Implementation—Early Childhood Development Center | 5,000,000.00 |
| Dirty Butter Creek Floodplain Acquisition—Phase II | 3,000,000.00 |
| Downtown Signage for Public Garages and Event Locales | 2,000,000.00 |
| Economic Development—Infrastructure | 3,000,000.00 |
| Civic Center Parking Garage Ramp Construction | 4,000,000.00 |
| New Downtown Parking Garage | 2,300,000.00 |
| OKPOP Museum Parking and Related Capital Improvements | 2,700,000.00 |
| Downtown, Economic and Neighborhood Development Total | 24,000,000.00 |

| STREETS AND TRANSPORTATION | ESTIMATED COSTS |
|---|---|
| **Streets and Expressways** | |
| 81st Street South—Memorial Drive to Mingo Road | $ 8,600,000.00 |
| 41st Street South—Garnett Road to 129th East Avenue (Design) | 500,000.00 |
| 91st Street South—91st Street South & Harvard Avenue Intersection Improvements/Delaware Avenue to Harvard Avenue | 5,000,000.00 |
| 91st Street South & Sheridan Road Intersection Improvements | 4,500,000.00 |
| Peoria Avenue—61st Street South to Riverside Parkway (Design) | 800,000.00 |
| Garnett Road—11th Street South to I-244 (Design) | 500,000.00 |
| Mingo Road—71st Street South to 81st Street South (Design) | 500,000.00 |
| Pine Street—Memorial Drive to Mingo Road (Design) | 500,000.00 |
| 129th East Avenue—31st Street South to 41st Street South | 5,500,000.00 |
| 61st Street South—Riverside Parkway to Peoria Avenue/61st Street South & Peoria Avenue Intersection Improvements | 9,000,000.00 |
| 91st Street South—Memorial Drive to Mingo Road (Design, Right-of-Way Acquisition) | 500,000.00 |
| Gilcrease West Expressway from Tisdale Expressway to Edison | 4,500,000.00 |
| City Match for Federal, State or County Projects | 1,500,000.00 |
| Apache-Tisdale Interchange—Expressway & Trail Lighting | 300,000.00 |
| Traffic Signal Synchronization | 1,700,000.00 |
| Traffic Signalization, Lighting & Safety Improvements | 1,600,000.00 |
| Riverside Drive and Other Related Infrastructure (Added by Ord. No. 23320) | 750,000.00 |
| Arterial Streets—Major Rehabilitation | 32,250,000.00 |
| Streets | |
| a. 11th Street South: 145th East Avenue to 161st East Avenue | |
| b. 31st Street South: 129th East Avenue to 145th East Avenue | |
| c. 36th Street North: Harvard Avenue to Yale Avenue | |
| d. 57th West Avenue/53rd West Avenue: Edison Street to 31st Street North | |
| e. 61st Street South: Yale Avenue to Sheridan Road | |
| f. Riverside Drive: 71st Street South to 68th Street South | |
| g. Riverside Drive: 61st Street South to 56th Street South | |
| h. Sheridan Road: 21st Street South to 11th Street South | |
| i. 4th Street South: Frisco Avenue to Detroit Avenue | |

| STREETS AND TRANSPORTATION | ESTIMATED COSTS |
|---|---|
| j. Arena Area Street & Sidewalk Improvements | |
| k. 2nd Street South: Denver Avenue to Detroit Avenue | |
| l. Denver Avenue: 13th Street South to 3rd Street South | |
| m. Houston Avenue: 12th Street South to Heavy Trafficway | |
| n. Routine & Preventive Maintenance—Citywide | |
| o. Sidewalk: Harvard Avenue—Gilcrease (State Highway 11) Expressway to 36th Street North | |
| p. Railroad Crossing Improvements—Citywide | |
| q. Sidewalks—Citywide | |
| Intersections | |
| a. Sheridan Road & 21st Street South Intersection | |
| b. Admiral Place & Garnett Road Intersection | |
| c. 71st Street & 108th East Avenue Intersection | |
| d. Peoria Avenue & U.S. Highway 75 Intersection | |
| e. Sheridan Road & 11th Street South Intersection | |
| Residential Streets—Major Rehabilitation | 25,714,169.10 |
| a. Maintenance Zone 1078: Fairhill 2nd: East 51st Street North/East 46th Street North/North Frankfort Avenue/North Cincinnati Avenue. | |
| b. Maintenance Zone 2061: Amended Kensington II/Kensington Pointe: East 71st Street South/East 78th Street South/Trenton Place/Riverside Parkway less Trenton Avenue from East 71st Street South to East 78th Street South. | |
| c. Maintenance Zone 3004: Louisville Heights: Seminole Street/Ute Street/Louisville Avenue/Pittsburg Avenue. | |
| d. Maintenance Zone 3017: Crestview Estates/Crestview Estates 2nd: Admiral Place South/East 4th Place South/South 69th East Avenue/ South 67th East Avenue. | |
| e. Maintenance Zone 4021: Bungalow Court/Bell—McNeal: South Victor Avenue—15th Street South to 17th Street South/East 16th Street South/East 16th Place South. | |
| f. Maintenance Zone 4022: Jean Heights/Iversons Subdivision/ Oliver Terrace/ Glendale Addition/ Avondale/ Exposition Heights Addition: East 15th Street South/ East 17th Street South/ Harvard Avenue/ College Avenue. | |
| g. Maintenance Zone 5048: Regency Park: East 46th Place South/East 48th Place South/South 94th East Avenue/South 88th East Avenue. | |
| h. Maintenance Zone 6100: Golden Valley: 107th East Avenue from East 56th Street South to East 61st Street South. | |
| i. Maintenance Zone 6140: Summerfield: East 36th Street South from South 136th East Avenue to South 145th East Avenue. | |

| STREETS AND TRANSPORTATION | ESTIMATED COSTS |
|---|---|
| j. Maintenance Zone 7045: Patrick Henry Blocks 38-47/Patrick Henry 4th: Louisville Avenue/East 48th Place South/Knoxville Place—East 46th Place South to Skelly Drive. | |
| k. Maintenance Zone 7052: Park Plaza 2nd/Amended Carter Plaza Extended: Joplin Place/East 54th Street South/East 55th Street South/Oxford Avenue/Joplin Avenue. | |
| l. Maintenance Zone 8063(a): Southridge Estates/Southridge Estates 2nd/Southridge Estates 3rd/Southridge Estates 4th: East 71st Street South/East 74th Street South/Yale Avenue/Pittsburg Avenue. | |
| m. Maintenance Zone 9029W: Sunset Park/Sunset Park 3rd: East 21st Street South/East 24th Place South/Peoria Avenue/Cincinnati Avenue. | |
| n. Maintenance Zone 9045: Patrick Henry Blocks 13-23/Saddle Lane—East 41st Street South/East 46th Street South/Louisville Avenue/Pittsburg Avenue. | |
| o. Sidewalk: 89th East Avenue—21st Street South to 11th Street South. | |
| p. Sidewalks—Citywide. | |
| q. Routine & Preventive Maintenance—Citywide. | |
| r. General Engineering & Reinspection Pavement Management System (PMS)—Non-Arterial. | |
| Bridge Replacement | 2,500,000.00 |
| Boulder Avenue Downtown Bridge Replacement (Structure No. 163) | 4,800,000.00 |
| Bridge Rehabilitation/Repair—Citywide | 2,500,000.00 |
| Trail System Improvements Matching Funds | 1,500,000.00 |
| Street Surface Repair & Crack Sealing—Citywide | 10,000,000.00 |
| Revised Streets and Expressways Total | $125,514,169.10 |
| **Tulsa Transit** | |
| Tulsa Transit—Transit System Projects | $ 2,410,000.00 |
| Tulsa Transit Total | $ 2,410,000.00 |
| Revised Streets and Transportation Total (Ord. No. 22032) | $127,924,169.10 |

| FLOOD CONTROL | ESTIMATED COSTS |
|---|---|
| Jones Creek Tributary | $ 1,600,000.00 |

| FLOOD CONTROL | ESTIMATED COSTS |
|---|---|
| Fred Creek Drainage Improvements—Main Stem: Evanston to Harvard, Harvard to Yale, Urbana Tributary, West Tributary (South of 71st), East Tributary (South of 71st) | 12,250,000.00 |
| Lower Mingo (vicinity of BNSF Railroad Bridge) | 1,000,000.00 |
| Vensel Creek—Grupe Channel Repair | 1,800,000.00 |
| Vensel Creek—Phase 1 (vicinity of 88th Street South to 84th Street South) | 2,700,000.00 |
| Tupelo Creek—12000 East Skelly Drive | 850,000.00 |
| Elm Creek/6th Street Drainage, Detentions & Conveyance Improvement (Design, Right-of-Way Acquisition) | 2,000,000.00 |
| East Tulsa/Fair Oaks Master Drainage Plan & Citywide MDP Updates | 450,000.00 |
| Citywide Channel Erosion & Stabilization | 967,378.70 |
| Engineering & Inspection Services | 500,000.00 |
| Revised Flood Control Total | $ 24,117,378.70 |

| SANITARY SEWER | ESTIMATED COSTS |
|---|---|
| Unsewered Areas & Offsite Mains | $ 7,200,000.00 |
| Unserved Areas & Offsite Mains | |
| System Development | 210,000.00 |
| R.L. Jones Lift Station Relief & North Lift Station & Force Main | |
| Southside Wastewater Treatment Plant 71st Street Lift Station Expansion | 400,000.00 |
| Spunky Creek Basin Sanitary Sewer Extensions (including areas of Main Stem North, Main Stem South & Rose Dew Lift Station Relief & Lynn Lane Interceptor) (Amended by Ord. No. 22032) | 9,497,696.77 |
| Lower Bird Creek Wastewater Treatment Plant Expansion | 11,000,000.00 |
| Revised Sanitary Sewer Projects Total | $ 28,307,696.77 |

| PUBLIC FACILITIES RENOVATION AND REPAIR | ESTIMATED COSTS |
|---|---|
| Citywide Public Facilities Renovations & Facilities Capital Replacement (Amended by Ord. No. 21735) | $7,080,000.00 |
| Traffic Engineering Maintenance Facility | 5,000,000.00 |
| Energy Efficiency Facility Improvements (Amended by Ord. No. 21735) | 1,600,000.00 |

| **PUBLIC FACILITIES RENOVATION AND REPAIR** | **ESTIMATED COSTS** |
|---|---|
| City Hall Relocation and Operations Consolidation (Added by Ord. No. 21735) | 4,420,000.00 |
| Public Facilities Renovation and Repair Total (Ord. No. 21735) | $ 18,100,000.00 |

| **EQUIPMENT MANAGEMENT** | **ESTIMATED COSTS** |
|---|---|
| Equipment Management Projects | $ 2,200,000.00 |
| Equipment Management Total | $ 2,200,000.00 |

| **COMPREHENSIVE PLAN** | **ESTIMATED COSTS** |
|---|---|
| Comprehensive Plan Update | $ 500,000.00 |
| Comprehensive Plan Total | $ 500,000.00 |

| **CAPITAL EQUIPMENT** | **ESTIMATED COSTS** |
|---|---|
| Capital Equipment Replacement | $ 55,335,000.00 |
| Capital Equipment Total | $ 55,335,000.00 |
| TOTAL NEW PROPOSED 2006 SALES TAX PROJECTS COSTS | $386,011,000.00 |
| ADVANCE FUNDING BOND INTEREST AND ISSUANCE COSTS | $ 2,624,000.00 |
| TOTAL NEW PROPOSED 2006 SALES TAX PROGRAM | $388,635,000.00 |
| TOTAL UNCOMPLETED 2001 SALES TAX PROJECTS | $ 70,776,000.00 |
| GRAND TOTAL ALL PROJECTS (Uncompleted 2001 and New 2006) | $459,411,000.00 |

**C.** If additional funding in the amount of Four Million Three Hundred Thousand Dollars ($4,300,000.00) is approved by the voters as a separate proposition on May 9, 2006, the following project shall be included in the list of projects and purposes for which expenditures of proceeds from the extension of the temporary sales tax may lawfully be made, subject to the same limitations of priority and revenue bond funding as those projects listed in Section 100(B)(2):

**PROJECTS AND PURPOSES**
**(ECONOMIC DEVELOPMENT—TULSA INTERNATIONAL AIRPORT IMPROVEMENTS)**

| AIRPORT | ESTIMATED COSTS |
|---|---|
| Economic Development— Relocatable Airplane Maintenance Hangers (Tulsa International Airport) | $ 4,300,000.00 |
| Airport Total | $ 4,300,000.00 |
| GRAND TOTAL ECONOMIC DEVELOPMENT—Tulsa International Airport Improvements | $ 4,300,000.00 |

**D. Cost estimates - additional projects.** While the cost estimates shown above are believed to be accurate, it must be recognized that the exact cost of each project may vary from the estimate shown.

**E.** The Mayor and City Council shall determine project priority on an annual basis through the budget process.

It is the intention of the City of Tulsa and is the official City policy herein established that all such projects shall be completed as funds are made available.

If, on or after June 1, 2010, the Council has determined that all of the projects listed in Subsection B above will be completed with existing and projected funds and that excess funds will be available for additional projects, the Council will so advise the Mayor, and such excess funds shall be expended for street projects and for water and sanitary sewer projects. All such additional projects shall be recommended by the Mayor and approved by the Council.

*(Ord. No. 22593, § 1, 12-15-2011; Ord. No. 22648, § 1, 4-12-2012; Ord. No. 22918, § 1, 8-1-2013; Ord. No. 23320, §§ 1, 2, 6-25-2015; Ord. No. 23692, § 1, 5-24-2017; Ord. No. 23693, § 1, 5-24-2017; Ord. No. 24665, § 1, 8-25-2021)*

**Section 101. Sales Tax Overview Committee.**

**A. Committee created.** There is hereby created a committee which shall be known as the Sales Tax Overview Committee (STOC) 2006 Extension which shall consist of twenty-one (21) citizens who shall be qualified electors of the City of Tulsa. The members shall serve without compensation. No member of the Committee shall be an elected public official. The Committee shall terminate when all funds generated by the Special 2006 Extended Sales Tax, 2006, have been expended.

**B. Appointment and terms.** Members of the Sales Tax Overview Committee 2001 Extension shall continue to serve as the STOC 2006 Extension. Terms shall be as provided by Title 43-C. All members of the Committee shall serve until their respective successors are appointed and qualified.

**C. Vacancies.** In the event of vacancies on the Committee, appointments to fill such vacancies shall be for the remainder of the unexpired terms. A member of the

Committee shall have vacated his or her position on the Committee if such member fails to attend three (3) consecutive meetings; provided, however, that the vacancy so created shall not prohibit the reappointment to the Committee of such member.

**D. City Clerk to maintain Committee roster.** All appointments to the Committee shall be filed with the City Clerk of the City of Tulsa, and the City Clerk shall maintain a list of the current members of the Committee.

**E. Elected officials, municipal personnel and agencies to assist.** The facilities, personnel, elected officials and agencies of the municipal government are hereby directed to be available and to cooperate with the Committee to accomplish the objectives and purposes herein set forth. Copies of City reports and records pertaining to the receipts and expenditures of the proceeds of the sales tax extension shall be made available to the Committee upon request.

**F. Monthly report to Overview Committee.** The Mayor or the Mayor's designee shall provide to the Sales Tax Overview Committee and the City Council a monthly report on the status of the Special 2006 Extended Sales Tax Capital Fund 2006 and the projects listed in this chapter. The monthly report shall include, with reference to each project, current information on:

**1.** The estimated cost;

**2.** The amount of total appropriations;

**3.** The amount of total expenditures;

**4.** A statement of completion status;

**5.** A summary of all budget transfers; and

**6.** The amount of any unencumbered and unallocated fund balance within the Special 2006 Extended Sales Tax Capital Fund 2006.

Said monthly report shall be in addition to any reports that the Mayor or the Mayor's designee are required by law to provide.

**G. Meetings and report of Overview Committee.** The Committee shall meet at least once each month beginning with the month of September, 2006. The monthly meeting shall be at least seven (7) days prior to the first meeting of the Council in the following month. At the first meeting of the Council of each month, beginning with the month of October, 2006, the Chairman or other member designated by the Committee shall attend the regular meeting of the Council of the City of Tulsa and make any report, comment or recommendation which the Committee deems to be warranted or, at the option of the Committee, a written report from the Committee may be submitted monthly to the Council. A time for the presentation of such report shall be reserved on the agenda for the first City Council meeting of every month beginning October, 2006, until the sales tax revenues have been fully expended for the projects and purposes set forth in this chapter.

## Section 102. Establishment of Special 2006 Extended Sales Tax Capital Fund 2006 for revenue from the extended sales tax.

There is hereby established a special revenue fund which shall be known as the Special 2006 Extended Sales Tax Capital Fund 2006 ("Special Revenue Fund").

All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the special 2006 sales tax program, including interest received from the investment thereof, to be deposited in the Special Revenue Fund as soon as received by the City of Tulsa.

None of the monies in the Special Revenue Fund shall ever be encumbered or expended for any purpose other than those purposes set forth in this chapter. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the Special Revenue Fund and to ensure that all such funds shall always be readily available for immediate expenditure for the projects and purposes set forth in this chapter.

The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the extended sales tax monies to the Special 2006 Extended Sales Tax Capital Fund 2006, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the projects and purposes set forth in this chapter.

### Section 103. Procedure to amend or repeal this chapter.

**A. Mandatory duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the extended sales tax, and having enacted this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force during the entire period of collection and expenditure of the revenues generated by the extended sales tax for the projects and purposes herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements have been made.

**1.** The Secretary shall forthwith (within twenty-four [24] hours) notify all major newspapers, all television stations and all radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at the City Hall, to which all of the above-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be given in the Tulsa Daily World and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication of such notice. The notice shall be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B. Procedure Before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 103.A above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

*(Ord. No. 21254)*

# TITLE 43-G 2008 SALES TAX EXPENDITURE POLICY

## Chapter 1. 2008 Sales Tax Expenditure Policy

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## CHAPTER 1. 2008 SALES TAX EXPENDITURE POLICY

Section 100. Declaration of official policy of City and pledge to the citizens.
Section 101. Sales Tax Overview Committee.
Section 102. Establishment of Special Temporary Sales Tax Fund 2008 for revenue from the temporary sales taxes.
Section 103. Procedure to amend or repeal this chapter.

### Section 100. Declaration of official policy of City and pledge to the citizens.

**A.** The City of Tulsa hereby officially and solemnly pledges to the citizens of Tulsa:

**1.** That all funds received by the City from extending the temporary sales tax levy of one percent (1%) for the period of time from and including August 1, 2006, to and including June 30, 2014; and levying a temporary increase of the sales tax levy from three percent (3%) to three and two-twelfths percent (3$^{2}/_{12}$%) from and including October 1, 2011, to and including June 30, 2014; which will be voted upon November 4, 2008 ("temporary sales tax") will be spent ONLY for those projects and purposes set forth herein, including the repayment of indebtedness expended for any of such projects or purposes issued by the City or any of its public trusts;

**2.** That NONE of such funds shall ever be spent for any other purpose;

**3.** That every officer and employee of the City is hereby ordered to give HIGH priority to the completion of such projects at the earliest possible date;

**4.** That any attempt to divert any of such funds to other purposes or projects or any failure to give high priority to the completion of such projects shall constitute a breach of the official City policy herein established; shall be a violation of the terms, spirit and purpose of this chapter; and shall constitute sufficient grounds for the removal of such officer or employee from his or her office or position; and

**5.** That a Special Temporary Sales Tax Fund 2008 will be created to which all of the sales tax received from such temporary sales tax, and the interest thereon, will be appropriated and deposited on a monthly basis as soon as received by the City; that all expenditures for the projects and purposes herein enumerated shall be made from such Special Temporary Sales Tax Fund 2008; that an accurate record of the status of such fund shall be maintained by the Mayor or the Mayor's designee and shall be available for inspection by any person during normal office hours.

**B. Specific projects and purposes.** The only projects and purposes for which expenditures of proceeds from the temporary sales taxes may lawfully be made are as set forth below:

**1.** The projects and purposes listed in Title 43-F, which shall be given funding priority over the projects listed in Section 100.B.2 of this Chapter. Provided, however, that any revenue bond funding package may include additional project(s) as listed in Section 100.B.2, so long as the projects listed in Title 43-F have been previously funded for the amounts set forth in Title 43-F, or the projects listed in Title 43-F will be funded by the proposed revenue bond funding package for the amounts set forth in Title 43-F.

**2.** New Special Temporary Sales Tax Fund 2008 projects and purposes for which expenditures of proceeds from the temporary sales tax may lawfully be made are as follows:

| PROJECTS AND PURPOSES | | | |
|---|---|---|---|
| **PROJECTS** | | | **ESTIMATED COSTS** |
| **STREETS AND TRANSPORTATION** | | | |
| 1 | ARTERIAL STREETS - MAJOR REHABILITATION | | $116,227,140.00 |
| **STREETS** | | | |
| a | 129TH EAST AVE. | ADMIRAL BLVD. TO PINE ST. | |
| b | 21ST ST. S. | PEORIA AVE. TO LEWIS AVE. | |
| c | APACHE ST. | YALE AVE. TO SHERIDAN RD. | |
| d | ADMIRAL BLVD. | MINGO RD. TO GARNETT RD. | |
| e | CINCINNATI AVE./ DETROIT AVE. | 1 - 244 TO JASPER ST. | |
| f | GARNETT RD. | PINE ST. TO APACHE ST. | |
| g | GARNETT RD. | APACHE ST. TO 36TH ST. N. | |
| h | HARVARD AVE. | 61ST ST. S. TO 51ST ST. S. | |
| i | HARVARD AVE. | ADMIRAL BLVD. TO PINE ST. | |
| j | LEWIS AVE. | 21ST ST. S. TO 11TH ST. S. | |
| k | LEWIS AVE. | 36TH ST. N. TO 46TH ST. N. | |
| l | MEMORIAL DR. | 21ST ST. S. TO 11TH ST. S. | |
| m | MEMORIAL DR. | 11TH ST. S. TO ADMIRAL BLVD. | |
| n | MINGO RD. | 41ST ST. S. TO 31ST ST. S. | |
| o | PINE ST. | YALE AVE. TO SHERIDAN RD. | |
| p | RIVER ROAD | 121ST ST. S. to 111TH ST. S. | |
| q | RIVER ROAD | 111TH ST. S. to 101ST ST. S. | |
| r | RIVERSIDE DR. | 41ST ST. S. TO 31ST ST. S. | |
| s | SHERIDAN RD. | 61ST ST. S. TO 51ST ST. S. | |
| t | UNION AVE. | 51ST ST. S. TO 41ST ST. S. | |
| u | YALE AVE. | 111TH ST. S. to 101ST ST. S. | |
| v | YALE AVE. | 31ST ST. S. TO 21ST ST. S. | |
| w | YALE AVE. | 11TH ST. S. TO ADMIRAL BLVD. | |
| **INTERSECTIONS** | | | |
| x | 11TH ST. S. | YALE AVE. INTERSECTION | |
| y | 21ST ST. S. | UTICA AVE. INTERSECTION | |
| z | 31ST ST. S. | HARVARD AVE. INTERSECTION | |
| aa | 36TH ST. N. | LEWIS AVE. INTERSECTION | |

| PROJECTS AND PURPOSES | | | |
|---|---|---|---|
| **PROJECTS** | | | **ESTIMATED COSTS** |
| **STREETS AND TRANSPORTATION** | | | |
| ab | 41ST ST. S. | HARVARD AVE. INTERSECTION | |
| ac | 51ST ST. S. | GARNETT RD. INTERSECTION | |
| ad | 61ST ST. S. | MEMORIAL DR. INTERSECTION | |
| ae | ADMIRAL BLVD. | MEMORIAL DR. INTERSECTION | |
| af | PINE ST. | YALE AVE. INTERSECTION | |
| ag | PINE ST. | 129TH EAST AVE. INTERSECTION | |
| ah | RIVERSIDE DRIVE | RIVERSIDE DRIVE AND OTHER RELATED INFRASTRUCTURE | $5,500,000.00 |
| 2 | CITYWIDE | ARTERIAL REHABILITATION AND RECONSTRUCTION | $ 4,200,000.00 |
| 3 | CITYWIDE | ARTERIAL SIDEWALK REPAIR AND CONSTRUCTION | $ 1,600,000.00 |
| 4 | CITYWIDE | ARTERIAL ROUTINE AND PREVENTIVE MAINTENANCE | $ 15,494,000.00 |
| 5 | CITYWIDE | NON-ARTERIAL REHABILITATION AND RECONSTRUCTION | $ 1,200,000.00 |
| 6 | CITYWIDE | NON-ARTERIAL SIDEWALK REPAIR AND CONSTRUCTION | $ 700,000.00 |
| 7 | CITYWIDE | NON-ARTERIAL ROUTINE AND PREVENTIVE MAINTENANCE | $ 25,282,000.00 |
| 8 | CITYWIDE | GENERAL ENGINEERING/ TESTING/INSPECTION | $ 1,834,860.00 |
| 9 | BRIDGES - SEALING | | $ 90,000.00 |
| a | 50 SOUTH 33RD WEST AVENUE | | |
| b | 110 NORTH 115TH EAST AVENUE | | |
| **STREETS AND TRANSPORTATION TOTAL** | | | $172,128,000.00 |

**C. Cost estimates.** While the cost estimates shown above are believed to be accurate, it must be recognized that the exact cost of each project may vary from the estimate shown.

**D.** The Mayor and the City Council shall determine project priority on an annual basis through the budget process.

It is the intention of the City of Tulsa and is the official City policy herein established that all such projects shall be completed as funds are made available.

If, on or after June 30, 2014, the Council has determined that all of the projects listed in Subsection B, above, will be completed with existing and projected funds and that excess funds will be available for additional projects, the Council will so advise the Mayor, and such excess funds shall be expended for capital projects. All such additional projects shall be recommended by the Mayor and approved by the Council.

*(Ord. No. 21878, § 1, 8-28-2008; Ord. No. 23321, § 1, 6-25-2015)*

**Section 101. Sales Tax Overview Committee.**

**A. Committee created.** There is hereby created a committee which shall be known as the Sales Tax Overview Committee (STOC) 2008 Temporary Tax which shall consist of twenty-one (21) citizens who shall be qualified electors of the City of Tulsa. The members shall serve without compensation. No member of the Committee shall be an elected public official. The Committee shall terminate when all funds generated by the Special Extended Sales Tax 2008 have been expended.

**B. Appointment and terms.** Members of the Sales Tax Overview Committee 2006 Extension shall continue to serve as the STOC 2008 Temporary Tax. Terms shall be as provided by Title 43-C. All members of the Committee shall serve until their respective successors are appointed and qualified.

**C. Vacancies.** In the event of vacancies on the Committee, appointments to fill such vacancies shall be for the remainder of the unexpired terms. A member of the Committee shall have vacated his or her position on the Committee if such member fails to attend three (3) consecutive meetings; provided, however, that the vacancy so created shall not prohibit the reappointment to the Committee of such member.

**D. City Clerk to maintain Committee roster.** All appointments to the Committee shall be filed with the City Clerk of the City of Tulsa, and the City Clerk shall maintain a list of the current members of the Committee.

**E. Elected officials, municipal personnel and agencies to assist.** The facilities, personnel, elected officials and agencies of the municipal government are hereby directed to be available and to cooperate with the Committee to accomplish the objectives and purposes herein set forth. Copies of City reports and records pertaining to the receipts and expenditures of the proceeds of the sales tax extension shall be made available to the Committee upon request.

**F. Monthly report to Overview Committee.** The Mayor or the Mayor's designee shall provide to the Sales Tax Overview Committee and the City Council a monthly report on the status of the Special Temporary Sales Tax Fund 2008 and the projects listed in this chapter. The monthly report shall include, with reference to each project, current information on:

**1.** The estimated cost;

**2.** The amount of total appropriations;

**3.** The amount of total expenditures;

**4.** A statement of completion status;

**5.** A summary of all budget transfers; and

**6.** The amount of any unencumbered and unallocated fund balance within the Special Temporary Sales Tax Fund 2008.

Said monthly report shall be in addition to any reports that the Mayor or the Mayor's designee is required by law to provide.

**G. Meetings and report of Overview Committee.** The Committee shall meet at least once each month beginning with the month of January, 2009. The monthly meeting shall be at least seven (7) days prior to the first meeting of the Council in the following month. At the first meeting of the Council of each month, beginning with the month of February, 2009, the Chairman or other member designated by the Committee shall attend the regular meeting of the Council of the City of Tulsa and make any report, comment or recommendation which the Committee deems to be warranted or, at the option of the Committee, a written report from the Committee may be submitted monthly to the Council. A time for the presentation of such report shall be reserved on the agenda for the first City Council meeting of every month beginning February, 2009, until the sales tax revenues have been fully expended for the projects and purposes set forth in this title.

*(Ord. No. 21878, § 1, 8-28-2008)*

## Section 102. Establishment of Special Temporary Sales Tax Fund 2008 for revenue from the temporary sales taxes.

There is hereby established a special revenue fund which shall be known as the Special Temporary Sales Tax Fund 2008 ("Special Revenue Fund").

All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the temporary sales taxes, including interest received from the investment thereof, to be deposited in the Special Revenue Fund as soon as received by the City of Tulsa.

None of the monies in the Special Revenue Fund shall ever be encumbered or expended for any purpose other than those purposes set forth in this chapter. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the Special Revenue Fund and to ensure that all such funds shall always be readily available for immediate expenditure for the projects and purposes set forth in this chapter.

The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the revenues of the temporary sales taxes to the Special Temporary Sales Tax Fund 2008, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the projects and purposes set forth in this chapter.

*(Ord. No. 21878, § 1, 8-28-2008)*

## Section 103. Procedure to amend or repeal this chapter.

**A. Mandatory duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the temporary sales tax, and having enacted this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force during the entire period of collection and expenditure of the revenues generated by the temporary sales taxes for the projects and purposes herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements have been made.

**1.** The Secretary shall forthwith (within twenty-four [24] hours) notify all major newspapers, all television stations and all radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at the City Hall, to which all of the below-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be given in the Tulsa Daily World and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication of such notice. The notice shall be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B. Procedure before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 103.A above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

*(Ord. No. 21878, § 1, 8-28-2008)*

# TITLE 43-H 2014 SALES TAX POLICY

## Chapter 1. Extension of 1.1% Sales Tax (Capital Projects)

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## CHAPTER 1. EXTENSION OF 1.1% SALES TAX (CAPITAL PROJECTS)

Section 100. Declaration of official policy of City and pledge to the citizens.
Section 101. Sales Tax Overview Committee.
Section 102. Establishment of Special Fund for Revenue from the 2014 Extended 1.1% Sales Tax.
Section 103. Procedure to amend or repeal this chapter.

### Section 100. Declaration of official policy of City and pledge to the citizens.

**A.** The City of Tulsa hereby pledges to the citizens of Tulsa:

**1.** That all funds received by the City from extending a sales tax levy of one and one-tenth percent (1.1%) for the period of time beginning July 1, 2014, and continuing until the full amount of five hundred sixty-three million, seven hundred thousand dollars and no cents ($563,700,000.00) has been collected, but in no event continuing beyond seven (7) years, namely June 30, 2021, which will be voted upon November 12, 2013 (the "2014 Extended 1.1% Sales Tax") will be spent only for those projects and purposes set forth herein;

**2.** That none of such funds shall ever be spent for any other purpose;

**3.** That every officer and employee of the City is hereby ordered to give high priority to the completion of such projects at the earliest possible date;

**4.** That any attempt to divert any of such funds to other purposes or projects or any failure to give high priority to the completion of such projects shall constitute a breach of City policy herein established; shall be a violation of the terms, spirit and purpose of this chapter; and shall constitute sufficient grounds for the removal of such officer or employee from his or her office or position; and

**B. Specific projects and purposes.** The only projects and purposes for which expenditures of proceeds from the 2014 Extended 1.1% Sales Tax may lawfully be made are as follows:

**PUBLIC WORKS AND TRANSPORTATION**

| | | | |
|---|---|---|---|
| 1 | Arterial Street Rehabilitation and Citywide Projects | Citywide | $127,340,000 |
| | a Charles Page Blvd. - 33rd W. Ave. to 25th W. Ave. | 1 | |
| | b 49th W. Ave. - Edison St. to Charles Page Blvd. | 1 | |
| | c Utica Ave. - Pine St. to Admiral Blvd. | 1, 3 | |
| | d Lewis Ave. - 36th St. N. to Apache St. | 1 | |
| | . | | |
| | e Southwest Blvd. - W. 23rd St. to W. 31st St. | 2 | |
| | f Southwest Blvd. - W. 31st St. to W. 40th St. | 2 | |
| | g Union Ave. - Southwest Blvd. to W. 41st St. | 2 | |
| | h Union Ave. - W. 51st St. to W. 61st St. | 2 | |
| | i Riverside Dr. - Joe Creek to 81st St. | 2 | |
| | j Pine St. - Harvard Ave. to Yale Ave. | 3 | |
| | k Admiral Pl. - Lewis Ave. to Harvard Ave. | 3 | |
| | m Admiral Pl. - Harvard Ave. to Yale Ave. | 3, 4 | |
| | n Sheridan Rd. - Apache St. to Pine St. | 3 | |

| | |
|---|---|
| o Mingo Rd. - 46th St. N. to 36th St. N. | 3 |
| p Mingo Rd. - 36th St. N. to Pine St. | 3 |
| q Mingo Rd. - Admiral Blvd. to 11th St. | 3 |
| r 11th St. - 89th E. Ave. to Mingo Rd. | 3 |
| s 15th St. - Peoria Ave. to Lewis Ave. | 4 |
| t 15th St. - Lewis Ave. to Harvard Ave. | 4 |
| u Peoria Ave. - Admiral Blvd. to 11th St. | 4 |
| v Peoria Ave. - 11th St. to 21st St. | 4 |
| w Utica Ave. - Admiral Blvd. to 11th St. | 4 |
| x Utica Ave. - 11th St. to 15th St. | 4 |
| y Harvard Ave. - 15th St. to 21st St. | 4 |
| z Harvard Ave. - 21st St. to 31st St. | 4, 9 |
| aa 21st St. - Yale Ave. to Sheridan Rd. | 5 |
| ab 31st St. - Yale Ave. to Sheridan Rd. | 5 |
| ac 31st St. - Riverside Dr. to Peoria Ave. | 4, 9 |
| ad 41st St. - Sheridan Rd. to Memorial Dr. | 5 |
| ae Memorial Dr. - 21st St. to 31st St. | 5 |
| af 51st St. - Mingo Rd. to Garnett Rd. | 7 |
| ag 71st St. - Memorial Dr. to Mingo Rd. | 7 |
| ah 91st. St - Mingo Rd. to Hwy 169 | 7 |
| ai Memorial Dr. - 81st St. to 91st St. | 7, 8 |
| aj Memorial Dr. - 91st St. to Creek Tpk. | 7, 8 |
| ak Sheridan Rd. - 91st St. to 101st St. | 8 |
| al 51st St. - Pittsburg Ave. to Yale Ave. | 9 |
| am Harvard Ave. - 41st St. to 51st St. | 9 |
| an 36th St. N. - Mingo Rd. to Hwy. 169 | |
| ao Downtown Arterial Streets | 4 |
| ap Pine St. & MLK Jr. Blvd. Intersection | 1 |
| aq Pine St. & Peoria Ave. Intersection | 1 |
| ar Pine St. & Lewis Ave. Intersection | 1, 3 |
| as 41st St. & Union Ave. Intersection | 2 |
| at 51st St. & Union Ave. Intersection | 2 |
| au 46th St. N. & Mingo Rd. Intersection | 3 |
| av 36th St. N. & Mingo Rd. Intersection | 3 |
| aw Admiral Blvd. & Lewis Ave. Intersection | 3, 4 |
| ax 11th St. & Utica Ave. Intersection | 4 |
| ay 21st St. & Peoria Ave. Intersection | 4 |
| az 21st St. & Memorial Dr. Intersection | 5 |
| ba 51st St. & Mingo Rd. Intersection | 7 |
| bb 71st St. & Sheridan Rd. Intersection | 7, 8, 9 |
| bc 61st St. & Sheridan Rd. Intersection | 7, 9 |
| bd 71st St. & Memorial Dr. Intersection | 7, 8 |
| be 81st St. & Memorial Dr. Intersection | 7, 8 |

| | | | |
|---|---|---|---|
| | bf 61st St. & Yale Ave. Intersection | 8, 9 | |
| 2 | Non-Arterial Street Rehabilitation And Citywide Projects | Citywide | $ 3,120,000 |
| 3 | Widen Yale Avenue, 81st St. To 91st Street South | 8 | $ 31,250,000 |
| 4 | Widen 81st Street South, Sheridan Road To Memorial Drive | 8 | $ 12,000,000 |
| 5 | Widen Yale Avenue, 96th St. South To 101st St. South Including The 101st Street Intersection | 8 | $ 17,000,000 |
| 6 | Widen Riverside Drive and other Related Infrastructure | 4, 9 | $ 19,000,000 |
| 7 | Widen 25th W. Ave., Edison To Apache (Design Only) | 1 | $ 750,000 |
| 8 | Widen Pine Street, Mingo To U.S. 169 (Design Only) | 3 | $ 500,000 |
| 9 | Gilcrease Expressway Local Match | Citywide | $ 7,500,000 |
| 10 | Bridges - Replacement And Rehabilitation Programs | Citywide | $ 14,685,000 |
| | a Bridge No. 275 - 10100 E. 36th St. N. | 3 | |
| | b Bridge No. 185 - 4000 N. Hartford Ave. | 1 | |
| | c Bridge No. 285 - 1900 W. 43rd St. | 2 | |
| | d Bridge No. 232 - 3600 S. Southwest Blvd. | 2 | |
| | e Bridge No. 181 - 300 N. Garnett Rd. | 3 | |
| | f Bridge No. 204A - 200 S. Mingo Rd. | 3 | |
| | g Bridge No. 250 - 11200 E. 11th St. | 3, 5 | |
| | h Bridge No. 247 - 9200 E. 11th St. | 3, 5 | |
| | i Bridge No. 239 - 2600 S. Yorktown Ave. | 4 | |
| | j Bridge No. 311 - 3900 S. 90th E. Ave. | 5, 7 | |
| | k Bridge No. 401 - 3800 S. Memorial Dr. | 5 | |
| | m Bridge No. 310 - 2750 S. 90th E. Ave. | 5 | |
| | n Bridge No. 254 - 8330 E. 14th St. | 5 | |
| | o Bridge No. 403 - 4400 S. Memorial Dr. | 5, 7 | |
| | p Bridge No. 402 - 4200 S. Memorial Dr. | 5, 7 | |
| | q Bridge No. 307 - 2900 S. 87th E. Ave. | 5 | |
| | r Bridge No. 266 - 13700 E. 28th St. | 6 | |
| | s Bridge No. 262 - 19200 E. 21st St. | 6 | |
| | t Bridge No. 333 - 1300 S. 177th E. Ave. | 6 | |
| | u Bridge No. 316 - 3800 S. 93rd E. Ave. | 7 | |
| | v Bridge No. 209 - 3000 N. Mingo Rd. | 3 | |
| | w Bridge No. 352 - 12300 E. State Farm Blvd. | 7 | |
| | x Bridge No. 226 - 8200 S. Pittsburg Ave. | 8 | |
| | y Bridge No. 222 - 3200 S. Peoria Ave. | 9 | |
| | z Bridge No. 166 - 3200 S. Cincinnati Ave. | 9 | |
| | aa Bridge No. 210 - 5600 S. Harvard Ave. | 9 | |
| | ab Bridge No. 194 - 5300 S. Louisville Ave. | 9 | |
| | ac Bridge No. 217 - 5300 S. New Have Ave. | 9 | |
| 11 | ODOT Rehabilitation and Replacement Program Local Match | Citywide | $ 3,800,000 |

| | | | |
|---|---|---|---|
| 12 | Citywide Guardrail Replacement | Citywide | $ 1,000,000 |
| 13 | Citywide Traffic Signalization | Citywide | $ 2,000,000 |
| 14 | Roadway, Pedestrian, and Decorative Lighting Replacement | Citywide | $ 1,000,000 |
| 15 | Signing, Pavement Marking and Delineation | Citywide | $ 2,500,000 |
| 16 | Traffic Calming and Pedestrian Safety Improvements | Citywide | $ 1,000,000 |
| 17 | Traffic Signal Installation, Modification, and Safety Improvements | Citywide | $ 3,000,000 |
| 18 | Traffic Signal Pole Replacement | Citywide | $ 1,000,000 |
| 19 | Creek Turnpike Trail Pedestrian Bridge Over Memorial Dr. (Study Only) | 7, 8 | $ 200,000 |
| 20 | GPS Emergency Vehicle Preemption System (Approx. 30 Intersections) | Citywide | $ 400,000 |
| 21 | Citywide ADA Transition Plan Implementation (Minimum for 30-Year Schedule - High and Medium Priority Needs) | Citywide | $ 10,200,000 |
| 22 | Citywide Local Matching Funds | Citywide | $ 3,500,000 |
| 23 | Bicycle/Pedestrian Master Plan Implementation (Following Formal Adoption by the City Council of The Plan Currently Being Developed) | Citywide | $ 4,200,000 |
| 24 | IDL Entrance Rehabilitation (1st, 7th, and 8th Streets; Signals At 1st and Greenwood) | 4 | $ 3,000,000 |
| | **Total Streets Projects Stormwater** | | **$269,945,000** |
| | **Stormwater** | | |
| 25 | Levee District #12 Rehabilitation | Citywide | **$ 3,400,000** |
| | **Total Stormwater Projects** | | **$ 3,400,000** |
| | **Transit** | | |
| 26 | Replace Aging Vehicles - Local Portion of Cost of Replacing 33 Fixed-Route and 39 Lift Program Busses | Citywide | $ 14,750,000 |
| 27 | Peoria Bus Rapid Transit (BRT) Project | Citywide | $ 13,698,000 |
| 28 | Tulsa Transit Facility Expansion - Southwest Parking Lot | Citywide | $ 1,302,000 |
| | **Total Transit Projects** | | **$ 29,750,000** |
| | **Citywide Public Facilities** | | |
| 29 | ADA Transition Plan - Buildings | Citywide | $ 1,275,000 |
| 30 | ADA Transition Plan - Parks | Citywide | $ 1,140,000 |
| 31 | Public Facilities, OTC | Citywide | $ 3,295,000 |
| 32 | Public Facilities, Roofing | Citywide | $ 3,000,000 |
| | **Total Citywide Public Facilities Projects** | | **$ 8,710,000** |

| | | | |
|---|---|---|---|
| **TOTAL PUBLIC WORKS AND TRANSPORTATION PROJECTS** | | | **$ 311,805,000** |
| **SOCIAL AND ECONOMIC DEVELOPMENT** | | | |
| | **Planning and Economic Development Department** | | |
| 33 | Annual Economic Development Priority Opportunities | Citywide | $ 6,000,000 |
| 34 | Strategic Mobility Plan | Citywide | $ 1,500,000 |
| 35 | Corridor and Small Area Planning and Implementation | Citywide | $ 2,000,000 |
| 36 | Phase I - Northland Strategic Acquisition and Street Improvements | 1 | $ 5,000,000 |
| 37 | Retail and Residential Development | 4 | $ 4,000,000 |
| 38 | Phase I - Pearl District Flood Control and Redevelopment | 4 | $ 5,000,000 |
| 39 | Charles Page Boulevard - Plan | 1, 4 | $ 445,000 |
| 40 | Eugene Field Redevelopment | 2 | $ 10,900,000 |
| 41 | Route 66 Station (Restrooms and Short-Term Parking) | 2 | $ 550,000 |
| | **Total Planning And Economic Development Projects** | | **$ 35,395,000** |
| | **Animal Welfare** | | |
| 42 | Animal Shelter Expansion - Phase I | Citywide | $ 2,750,000 |
| 43 | Animal Shelter Immediate Improvements - Ventilation System and Facility Improvements | Citywide | $ 750,000 |
| | **Total Animal Welfare Projects** | | **$ 3,500,000** |
| **TOTAL SOCIAL AND ECONOMIC DEVELOPMENT PROJECTS** | | | **$ 38,895,000** |
| **CULTURAL DEVELOPMENT & RECREATION** | | | |
| | **Tulsa Zoo** | | |
| 44 | Master Plan - Tiger & Snow Leopard Exhibits | Citywide | $ 3,750,000 |
| 45 | Master Plan - Carnivores Exhibits | Citywide | $ 8,000,000 |
| 46 | Zoo Playground | Citywide | $ 850,000 |
| | **Total Tulsa Zoo Projects** | | **$ 12,600,000** |
| | **River Parks** | | |
| 47 | Park Facilities Refurbishment | Citywide | $ 4,000,000 |
| 48 | Pedestrian Bridge | Citywide | $ 7,760,000 |
| | **Total River Parks Department Projects** | | **$ 11,760,000** |
| | **Parks and Recreation Department** | | |
| 49 | Pool Renovation | 1, 2, 3, 9 | $ 13,110,000 |

| | | | |
|---|---|---|---|
| | a Chamberlain - Pool Reconstruction | 1 | |
| | b Lacy - Pool Reconstruction | 1 | |
| | c McClure - Pool Reconstruction | 3 | |
| | d Reed - Pool Reconstruction | 2 | |
| | e Whiteside - Pool Reconstruction | 9 | |
| 50 | Safety Surfaces | Citywide | $ 7,300,000 |
| | a Aaronson - New Playground and Safety Surface | 7 | |
| | b Boots Adams - New Playground and Safety Surface | 7 | |
| | c Carbondale - New Playground and Safety Surface | 2 | |
| | d Crawford - New Playground and Safety Surface | 1 | |
| | e Graham - New Playground and Safety Surface | 2 | |
| | f Helmerich - New Playground (Replaces 2-5 and 5-12 Equipment) | 2 | |
| | g Henthorne - New Playground and Safety Surface | 9 | |
| | h Hunter - New Playground (Replace 2-5 Equipment and Replace Walks) | 8 | |
| | i Lacy - New Playground and Safety Surface | 1 | |
| | j Langenheim - New Playground and Safety Surface | 9 | |
| | k McClure - New Playground and Safety Surface | 3 | |
| | l Minshall - New Playground and Safety Surface | 8 | |
| | m Mohawk - Rehabilitate Pielsticker and Add Safety Surface | 1 | |
| | n Patrick - New Playground and Safety Surface | 3 | |
| | o Penney - New Playground and Safety Surface | 1 | |
| | p Plaza - New Playground and Safety Surface | 6 | |
| | q Schlegel - New Playground and Safety Surface | 2 | |
| | r Shannon - New Playground and Safety Surface | 6 | |
| | s Summerglen Plaza - New Playground and Safety Surface | 6 | |
| | t Terrace - New Playground and Safety Surface | 5 | |
| | u Tracy - New Playground and Safety Surface | 4 | |
| | v West Highlands - New Playground and Safety Surface | 2 | |
| | w Skelly - New Playground and Safety Surface | 5 | |
| 51 | Security System Upgrades | 1, 2 | $ 160,000 |
| 52 | Carl Smith Improvements | 6 | $ 185,000 |
| 53 | Cousins Park Improvements | 8 | $ 1,975,000 |
| 54 | Hicks Park Improvements | 7 | $ 635,000 |
| 55 | Hunter - Renovate and Expand Existing Restroom Facility | 8 | $ 400,000 |
| 56 | Lacy Park Master Plan - Phase 1 | 1 | $ 3,600,000 |
| 57 | Water Playgrounds | 1, 2 | $ 1,580,000 |
| | a Zeigler - Water Playground | 1 | |

| | | | |
|---|---|---|---|
| | b Reed - Replace Splash Pad with Water Playground | 2 | |
| | c Lacy - Replace Existing Splashpad with Water Playground | 1 | |
| 58 | Mohawk Golf Course Club House - Service of HVAC Flooring, Paint and Annualized HVAC Replacement | 1 | $ 265,000 |
| 59 | Page Belcher Improvements | 2 | $ 400,000 |
| 60 | Savage Park Improvements | 6 | $ 120,000 |
| 61 | Whiteside - Upgrade and Repair Plumbing in Community Center | 9 | $ 355,000 |
| 62 | Woodward - Comprehensive Solution Involving Regrading Slopes, Adding and Repairing Weathered Limestone Walls, Extensive Landscaping and Renovating the Stream and Pond | 4 | $ 4,850,000 |
| | **Total Parks and Recreations Department Projects** | | **$ 34,935,000** |
| | **Performing Arts Center** | | |
| 63 | Replace Existing Fire Alarm System | Citywide | $ 520,000 |
| 64 | Fire Sprinklers | Citywide | $ 1,140,000 |
| 65 | Renovations | Citywide | $ 1,840,000 |
| 66 | Fan Coil Replacement | Citywide | $ 555,000 |
| 67 | HVAC Motor Replacement | Citywide | $ 175,000 |
| 68 | Roof Replacement | Citywide | $ 1,300,000 |
| | **Total Performing Arts Center Projects** | | **$ 5,530,000** |
| | **Gilcrease Museum** | | |
| 69 | Gilcrease Museum Facilities Improvements | Citywide | $ 8,395,000 |
| | **Total Gilcrease Museum Projects** | | **$ 8,395,000** |
| | **Tulsa City-County Library** | | |
| 87 | Tulsa Central Library Project | Citywide | $ 10,000,000 |
| | **Total Tulsa City-County Library Projects** | | **$ 10,000,000** |
| **TOTAL CULTURAL DEVELOPMENT & RECREATION PROJECTS** | | | **$ 83,220,000** |
| **PUBLIC SAFETY AND PROTECTION** | | | |
| | **Police Department** | | |
| 71 | Replace Helicopter | Citywide | $ 1,500,000 |
| 72 | Police Academy Renovations/Police Courts/Compstat Building | Citywide | $ 4,040,000 |
| 73 | Uniform Division Renovations | Citywide | $ 3,000,000 |
| 74 | Police Five-Year Capital Equipment Needs | Citywide | $ 22,265,000 |
| 75 | Computer Aided Dispatch (CAD) | Citywide | $ 660,000 |

| | | | |
|---|---|---|---|
| | **Total Police Department Projects** | | **$ 31,465,000** |
| | **Fire Department** | | |
| 76 | Self Contained Breathing Apparatus (SCBA) | Citywide | $ 2,600,000 |
| 77 | Apparatus Replacement | Citywide | $ 17,000,000 |
| 78 | Fire Station Rehabilitation | Citywide | $ 7,250,000 |
| 79 | Fire Station Generators | Citywide | $ 1,500,000 |
| 80 | Fire Department Facilities | Citywide | $ 2,000,000 |
| | **Total Fire Department Projects** | | **$ 30,350,000** |
| | **Information Technology Department** | | |
| 81 | Financial System Replacement | Citywide | $ 10,000,000 |
| 82 | Law Enforcement Record Management System | Citywide | $ 6,530,000 |
| | **Total Information Technology Department Projects** | | **$ 16,530,000** |
| **TOTAL PUBLIC SAFETY AND PROTECTION PROJECTS** | | | **$ 78,345,000** |
| **ADMINISTRATIVE** | | | |
| | **Equipment Management Department** | | |
| 83 | Compressed Natural Gas (CNG) Fleet Fueling Infrastructure Expansion | Citywide | $ 1,800,000 |
| 84 | Install Radio Frequency Identification (RFD) System at all Fuel Locations and on Approximately 2,500 Vehicles | Citywide | $ 750,000 |
| 85 | Install Two Emergency Generators and EMD's Two Emergency Operations Shops (56th and Garnett; 1790 West Newblock) | Citywide | $ 200,000 |
| 86 | EMD Facilities Maintenance | Citywide | $ 1,000,000 |
| 87 | Lighting Systems, Driveways, Sidewalks, Energy Efficiency Upgrades, HVAC, and Plumbing | Citywide | $ 2,300,000 |
| | **Total Equipment Management Department Projects** | | **$ 6,050,000** |
| | **Capital Equipment** | | |
| 88 | Five-Year Capital Equipment Needs (Excluding Police) | Citywide | $ 46,235,000 |
| | **Total Capital Equipment Projects** | | **$ 46,235,000** |
| **TOTAL ADMINISTRATIVE PROJECTS** | | | **$ 52,285,000** |
| **TOTAL CAPITAL PROGRAM PROJECTS** | | | **$ 564,550,000** |

**C. Cost estimates.** While the cost estimates shown above are believed to be accurate, the exact cost of each project may vary from the estimate shown.

**D.** The Mayor and the City Council shall determine project priority on an annual basis through the budget process.

**E.** It is the intention of the City of Tulsa and is the official City policy herein established that all such projects and purposes shall be commenced as funds are made available.

**F.** When City financial and auditing staff and the Sales Tax Overview Committee shall determine that the full amount of five hundred sixty-three million, seven hundred thousand dollars and no cents ($563,700,000,00) has been collected from this sales tax, but in no event later than seven (7) years, namely June 30, 2021, and has been devoted to the projects listed above, and so advise the Mayor and City Council, and when the Mayor and City Council approve said determination by City financial and auditing staff and the Sales Tax Overview Committee, the Mayor shall recommend to the City Council the repeal of this chapter.

**G.** If at the general election on November 12, 2013 the 2014 Extended 1.1% Sales Tax shall fail to receive the approval of a majority of voters voting thereon, then to the extent of the said failure, this Ordinance or part hereof shall have no force or effect.

*(Ord. No. 22922, § 1, 8-27-2013; Ord. No. 23322, § 1, 6-25-2015; Ord. No. 23691, § 1, 5-24-2017; Ord. No. 24027, § 1, 11-7-2018; Ord. No. 24259, § 1, 11-6-19; Ord. No. 24385, § 1, 6-17-2020; Ord. No. 24704, § 1, 10-27-2021)*

**Section 101. Sales Tax Overview Committee.**

**A. Sales Tax Overview Committee created.** There is hereby created a committee which shall be known as the 2014 Extended 1.1% Sales Tax Overview Committee (STOC) which shall consist of twenty-one (21) citizens who shall be qualified electors of the City of Tulsa. The members shall serve without compensation. No member of STOC shall be an elected public official. STOC shall terminate when all funds generated by the 2014 Extended 1.1% Sales Tax have been expended.

**B. Appointment and terms.** Members of the current STOC shall continue to serve as the 2014 Extended 1.1% STOC. Terms shall be as provided by Title 43-C. All members of STOC shall serve until their respective successors are appointed and qualified.

**C. Vacancies.** In the event of vacancies on STOC, appointments to fill such vacancies shall be for the remainder of the unexpired terms. A member of STOC shall have vacated his or her position on STOC if such member fails to attend three (3) consecutive meetings; provided, however, that the vacancy so created shall not prohibit the reappointment to STOC of such member.

**D. City Clerk to maintain STOC roster.** All appointments to STOC shall be filed with the City Clerk of the City of Tulsa, and the City Clerk shall maintain a list of the current members of STOC.

**E. Elected officials, municipal personnel and agencies to assist.** The facilities, personnel, elected officials and agencies of the municipal government are hereby directed to be available and to cooperate with STOC to accomplish the objectives and purposes herein set forth. Copies of City reports and records pertaining to the receipts and expenditures of the proceeds of the sales tax extension shall be made available to STOC upon request.

**F. Monthly report to STOC.** The Mayor or the Mayor's designee shall provide to the Sales Tax Overview Committee and the City Council a monthly report on the status of the 2014 Extended 1.1% Sales Tax Fund and the projects listed in this chapter. The monthly report shall include, with reference to each project or program, current information on:

**1.** The estimated cost;

**2.** The amount of total appropriations;

**3.** The amount of total expenditures;

**4.** A statement of completion status;

**5.** A summary of all budget transfers; and

**6.** The amount of any unencumbered and unallocated fund balance within the 2014 Extended 1.1% Sales Tax Fund.

Said monthly report shall be in addition to any reports that the Mayor or the Mayor's designee is required by law to provide.

**G. Meetings and report of STOC.** STOC shall meet at least once each month beginning with the month of July, 2014. The monthly meeting shall be at least seven (7) days prior to the first meeting of the City Council in the following month. At the first meeting of the Council of each month, beginning with the month of August, 2014, the Chairman or other member designated by STOC shall attend the regular meeting of the Council and make any report, comment or recommendation which STOC deems to be warranted or, at the option of STOC, a written report from STOC may be submitted monthly to the Council. A time for the presentation of such report shall be reserved on the agenda for the first City Council meeting of every month beginning August, 2014, until the sales tax revenues have been fully expended for the projects and programs set forth in this title.

*(Ord. No. 22922, § 1, 8-27-2013)*

## Section 102. Establishment of a special fund for revenue from the 2014 Extended 1.1% Sales Tax.

**A.** There is hereby established a special revenue fund which shall be known as the 2014 Extended 1.1% Sales Tax Fund.

**B.** All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the 2014 Extended 1.1% Sales Tax, including interest received from the investment thereof, to be deposited into the 2014 Extended 1.1% Sales Tax Fund as soon as received by the City of Tulsa.

**C.** None of the monies in the 2014 Extended 1.1% Sales Tax Fund shall ever be encumbered or expended for any purpose other than those purposes set forth in this chapter, unless amended pursuant to Section 103, below. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

**D.** The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the 2014 Extended 1.1% Sales Tax Fund and to ensure that all such funds shall always be readily available for immediate expenditure for the projects and purposes set forth in this chapter.

**E.** The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the revenues of the sales taxes to the 2014 Extended 1.1% Sales Tax Fund, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the projects and programs set forth in this chapter.

*(Ord. No. 22922, § 1, 8-27-2013)*

## Section 103. Procedure to amend or repeal this chapter.

**A. Mandatory duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the 2014 Extended 1.1% Sales Tax, and having enacted this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force during the entire period of collection and expenditure of the revenues generated by the 2014 Extended 1.1% Sales Tax for the projects and programs herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements has been made.

**1.** The Secretary shall forthwith (within twenty-four (24) hours) notify all major newspapers, all major television stations and all major radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at City Hall, to which all of the below-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be sent to the Tulsa World and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication requested for such notice. The Secretary shall request that the notice be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B. Procedure before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 103 A. above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

*(Ord. No. 22922, § 1, 8-27-2013)*

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# TITLE 43-I 2017 LIMITED-PURPOSE PUBLIC SAFETY PERMANENT SALES TAX POLICY

## Chapter 1. Limited-Purpose Public Safety Permanent Sales Tax

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## CHAPTER 1. LIMITED-PURPOSE PUBLIC SAFETY PERMANENT SALES TAX

Section 100. Declaration of official policy of City and pledge to the citizens.
Section 101. Establishment of a special fund for revenue from the 2017 Limited-Purpose Public Safety Permanent Sales Tax.
Section 102. Procedure to amend or repeal this chapter.

### Section 100. Declaration of official policy of City and pledge to the citizens.

**A.** The City of Tulsa hereby pledges to the citizens of Tulsa:

**1.** That all funds received by the City from the permanent sales tax levy of sixteen one-hundredths of one percent (.16%) for the period of time beginning January 1, 2017, and continuing until July 1, 2021, on which date it shall increase to a twenty-six one-hundredths of one percent (.26%) permanent sales tax (the "2017 Limited-Purpose Public Safety Permanent Sales Tax") will be spent only for those purposes set forth herein;

**2.** That none of such funds shall ever be spent for any other purpose, unless this ordinance is amended as provided herein;

**3.** That the City shall begin such expenditures at the earliest reasonable date;

**B.** Specific purposes. The purposes for which expenditures of proceeds from the 2017 Limited-Purpose Public Safety Permanent Sales Tax may lawfully be made are as follows:

Tulsa Police Department: additional police officers, and equipment for said police officers; new or additional equipment for law enforcement purposes; and possible contract services.

Tulsa Fire Department: additional firefighters, and equipment for said firefighters; new or additional firefighting and rescue equipment; and construction of fire stations and/or renovation of existing fire stations.

Other functions, including the 911 Call Center, new or additional personnel, maintenance, equipment and supplies.

**C.** The fifteen (15) year permanent funding is estimated to be as follows:

| | |
|---|---|
| Police Department (including 911) | $202,000,000 |
| Fire Department | 70,000,000 |
| TOTAL | $272,000,000 |

**D.** It is the intent of this Limited-Purpose Tax to create a special fund, to be utilized in addition to General Fund expenditures currently and historically allocated for public safety funding. It is not the intent of this Tax to supplant such public safety funding. Such expenditures have been as follows:

**Police & Fire Annual Adopted Budgets**

General Fund
(in millions of dollars)

| | FY12 | FY13 | FY14 | FY15 | FY16 |
|---|---|---|---|---|---|
| **Police** | $ 78 | $ 83 | $ 88 | $ 89 | $ 95 |

| | FY12 | FY13 | FY14 | FY15 | FY16 |
|---|---|---|---|---|---|
| % of Adopted Budget | 31% | 30% | 33% | 34% | 34% |
| **Fire** | $ 61 | $ 64 | $ 67 | $ 67 | $ 69 |
| % of Adopted Budget | 24% | 23% | 25% | 26% | 25% |
| **Total Adopted Budget** | $ 254 | $ 273 | $ 268 | $ 261 | $ 275 |

**E.** The Mayor and the City Council shall determine project priority on an annual basis through the budget process.

**F.** If at the special election on April 5, 2016 the 2017 Limited-Purpose Public Safety Permanent Sales Tax shall fail to receive the approval of a majority of voters voting thereon, then to the extent of the said failure, this Ordinance or part hereof shall have no force or effect.

*(Ord. No. 23423, § 1, 3-3-2016)*

### Section 101. Establishment of a special fund for revenue from the 2017 Limited-Purpose Public Safety Permanent Sales Tax.

**A.** There is hereby established a limited-purpose special revenue fund which shall be known as the 2017 Limited-Purpose Public Safety Permanent Sales Tax Fund.

**B.** All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the 2017 Limited-Purpose Public Safety Permanent Sales Tax, including interest received from the investment thereof, to be deposited into the 2017 Limited-Purpose Public Safety Permanent Sales Tax Fund as soon as received by the City of Tulsa.

**C.** None of the monies in the 2017 Limited-Purpose Public Safety Permanent Sales Tax Fund shall ever be encumbered or expended for any purpose other than those purposes set forth in this chapter, unless amended pursuant to Section 102, below. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

**D.** The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the 2017 Limited-Purpose Public Safety Permanent Sales Tax Fund and to ensure that all such funds shall always be readily available for immediate expenditure for the purposes set forth in this chapter.

**E.** The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the revenues of the sales taxes to the 2017 Limited-Purpose Public Safety Permanent Sales Tax Fund, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the programs set forth in this chapter.

*(Ord. No. 23423, § 1, 3-3-2016)*

### Section 102. Procedure to amend or repeal this chapter.

**A. Mandatory duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the 2017

Limited-Purpose Public Safety Permanent Sales Tax, and having enacted this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force during the entire period of collection and expenditure of the revenues generated by the 2017 Limited-Purpose Public Safety Permanent Sales Tax for the programs herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements has been made.

**1.** The Secretary shall forthwith (within twenty-four [24] hours) notify all major newspapers, all major television stations and all major radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at City Hall, to which all of the below-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be sent to the Tulsa World and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication requested for such notice. The Secretary shall request that the notice be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B. Procedure before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 102.A above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

*(Ord. No. 23423, § 1, 3-3-2016)*

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# TITLE 43-J 2017 LIMITED-PURPOSE .085% STREET MAINTENANCE AND PUBLIC TRANSPORTATION PERMANENT SALES TAX

## Chapter 1. Levy of .085% Street Maintenance and Public Transportation Permanent Sales Tax

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## CHAPTER 1. LEVY OF .085% STREET MAINTENANCE AND PUBLIC TRANSPORTATION PERMANENT SALES TAX

Section 100. Declaration of official policy of City and pledge to the citizens.
Section 101. Establishment of a special fund for revenue from the 2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax.
Section 102. Procedure to amend or repeal this chapter.

### Section 100. Declaration of official policy of City and pledge to the citizens.

**A.** The City of Tulsa hereby pledges to the citizens of Tulsa:

**1.** That all funds received by the City from the permanent sales tax levy of eighty-five thousandths of one percent (.085%) beginning January 1, 2017 (the "2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax") will be spent only for maintaining and supporting public streets, traffic and public transportation ("transit") systems, funding capital projects, operations, salaries and maintenance, purchasing rolling stock, fuel, materials and supplies, and paying debt service on indebtedness issued for such purposes.

The fifteen (15) year permanent funding is estimated to be as follows:

| | |
|---|---|
| Street Maintenance and Traffic | $45,000,000 |
| Transit Operations and Capital | 57,000,000 |
| **TOTAL** | $102,000,000 |

**2.** That none of such funds shall ever be spent for any other project or purpose, unless this ordinance is amended as provided herein;

**3.** That the City shall commence these projects as funds are made available, and shall complete such projects at the earliest possible date;

**B.** It is the intent of this Limited-Purpose Tax to create a special fund, to be utilized in addition to General Fund expenditures currently and historically allocated to street and transit funding. It is not the intent of this Tax to supplant such street and transit funding from the General Fund. Such expenditures have been as follows:

**Transit and Streets Annual Adopted Budgets**

General Fund
(in millions of dollars)

| **FY** | **2012** | **2013** | **2014** | **2015** | **2016** |
|---|---|---|---|---|---|
| **Transit** | 7.5 | 7.9 | 7.9 | 7.5 | 7.6 |
| % | 3.0% | 2.9% | 2.9% | 2.9% | 2.8% |
| **Streets** | 23 | 22.7 | 21.8 | 20.1 | 17 |
| % | 9.1% | 8.3% | 8.1% | 7.7% | 6.2% |
| **Total Budget** | 254 | 273 | 268 | 261 | 275 |

**C.** The Mayor and the City Council shall determine project priority on an annual basis through the budget process.

**D.** If at the special election on April 5, 2016 the 2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax shall fail to receive the approval of a majority of voters voting thereon, then to the extent of the said failure, this Ordinance or part hereof shall have no force or effect.

*(Ord. No. 23424, § 1, 3-3-2016)*

### Section 101. Establishment of a special fund for revenue from the 2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax.

**A.** There is hereby established a special revenue fund which shall be known as the 2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax Fund.

**B.** All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the 2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax, including interest received from the investment thereof, to be deposited into the 2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax Fund as soon as received by the City of Tulsa.

**C.** None of the monies in the 2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax Fund shall ever be encumbered or expended for any capital projects or purposes other than those identified projects and purposes, unless amended pursuant to Section 102, below. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

**D.** The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the 2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax Fund and to ensure that all such funds shall always be readily available for immediate expenditure for identified capital projects and purposes.

**E.** The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the revenues of the sales taxes to the 2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax Fund, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for identified capital projects and programs.

*(Ord. No. 23424, § 1, 3-3-2016)*

### Section 102. Procedure to amend or repeal this chapter.

**A.** Mandatory duty of Secretary of Council. The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the 2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax, and having enacted this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force during

the entire period of collection and expenditure of the revenues generated by the 2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax for the capital projects and programs herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements has been made.

**1.** The Secretary shall forthwith (within twenty-four (24) hours) notify all major newspapers, all major television stations and all major radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at City Hall, to which all of the below-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be sent to the Tulsa World and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication requested for such notice. The Secretary shall request that the notice be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B.** Procedure before Council. No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 102.A above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

*(Ord. No. 23424, § 1, 3-3-2016)*

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# TITLE 43-K 2017 LIMITED-PURPOSE ECONOMIC DEVELOPMENT TEMPORARY SALES TAX POLICY

## Chapter 1. Levy of Limited-Purpose Economic Development Temporary Sales Tax

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## CHAPTER 1. LEVY OF LIMITED-PURPOSE ECONOMIC DEVELOPMENT TEMPORARY SALES TAX

Section 100. Declaration of official policy of City and pledge to the citizens.
Section 101. Sales Tax Overview Committee.
Section 102. Establishment of a special fund for revenue from the 2017 Limited-Purpose Economic Development Temporary Sales Tax.
Section 103. Procedure to amend or repeal this chapter.

### Section 100. Declaration of official policy of City and pledge to the citizens.

**A.** The City of Tulsa hereby pledges to the citizens of Tulsa:

**1.** That all funds received by the City from the Limited-Purpose Economic Development Temporary Sales Tax levy of Three Hundred Five Thousandths of One Percent (.305%) beginning January 1, 2017, increasing to Eight Hundred Five Thousandths of One Percent (.805%) on July 1, 2021, then decreasing to Three Hundred Five Thousandths of One Percent (.305%) on July 1, 2025 and expiring on December 31, 2031 (the "2017 Limited-Purpose Economic Development Temporary Sales Tax ") will be spent only for those projects and purposes set forth herein, and paying debt service on indebtedness issued for such purposes;

**2.** That none of such funds shall ever be spent for any other purpose, unless this ordinance is amended as provided herein;

**3.** That the City shall complete such projects at the earliest possible date;

**B. Specific projects and purposes.** The only projects and purposes for which expenditures of proceeds from the 2017 Limited-Purpose Economic Development Temporary Sales Tax may lawfully be made are as follows:

| **Arkansas River Infrastructure & Amenities (City of Tulsa Share)** | |
|---|---|
| Zink Lake and Related Amenities | $63,000,000 |
| Low-Water Dam with Recreational Gates & Flume and New Pedestrian Bridge | |
| Mitigation, Bank Stabilization & Outfall Protection | |
| South Tulsa/Jenks Lake and Related Amenities | $64,214,000 |
| Low-Water Dam and Pedestrian Bridge | |
| East Bank Park, Boat Dock, and Abutment Improvements | |
| Vensel Creek Park and Boat Dock | |
| East Bank Trail Connection from Low-Water Dam to Vensel Creek | |
| Mitigation, Bank Stabilization & Outfall Protection | |
| Turkey Mountain Urban Wilderness | $7,600,000 |
| Levee District #12 Rehabilitation - Local Matching Funds | $5,000,000 |
| New Trail, East Bank-101st to Cousins Park (Design and Matching Funds) | $4,000,000 |
| 23rd & Jackson Redevelopment Site - Relocation Study, Design & Acquisition | $1,000,000 |
| **Gilcrease Museum Facilities Improvements** | $65,000,000 |
| **Cox Business Center and Arena District Master Plan** | $55,000,000 |
| **Tulsa Fairgrounds** | $30,000,000 |
| **Airport Infrastructure** | $27,300,000 |

| | |
|---|---|
| **Tulsa Zoo & Living Museum** | $25,000,000 |
| **Langston University - Tulsa Healthcare Professions Complex Expansion** | $16,250,000 |
| **BMX National Headquarters** | $18,600,000 |
| **South Mingo Corridor** | $15,000,000 |
| **Public Schools - Safety First Initiative** | $14,500,000 |
| **Capital Equipment (non-Public Safety)** | $12,000,000 |
| **Citywide & Route 66 Beautification and Reinvestment** | $11,000,000 |
| **Peoria-Mohawk Business Park** | $10,000,000 |
| **Public Schools - Partnership with Union, Jenks & Tulsa Public Schools in Teacher Retention, Recruitment, and Training Efforts** | $10,000,000 |
| **Community Health Connection East Clinic** | $9,975,000 |
| **Air National Guard F35 Simulator Training Center** | $9,400,000 |
| **Discovery Lab - Tulsa Children's Museum Permanent Site** | $8,000,000 |
| **Peoria Connection - North Peoria Avenue, 56th St. to Mohawk Blvd.** | $7,000,000 |
| **TCC Career Placement** | $5,320,000 |
| **McCullough Park** | $3,600,000 |
| **Mohawk Sports Complex** | $3,500,000 |
| **GO Plan - Priority Projects Identified in the Bicycle/Pedestrian Master Plan** | $3,125,000 |
| **Route 66 Village Train Depot** | $3,000,000 |
| **Tulsa Arts Commission** | $2,250,000 |
| **Tulsa Performing Arts Center Trust -** for planning and design to modernize the PAC, including, but not limited to, the renovation of the four existing theaters | $1,000,000 |
| **SUBTOTAL** | **$510,634,000** |

**C. Cost estimates.** While the cost estimates shown above are believed to be accurate, the exact cost of each project may vary from the estimate shown.

**D.** The project entitled 'South Tulsa/Jenks Lake and Related Amenities' is contingent on additional funding to be provided by the City of Jenks, the Muscogee (Creek) Nation, and/or other potential funding partners for other aspects of the entire project, which includes a long-term operating and maintenance endowment for both dams and related amenities.

The City of Tulsa will contribute no more than Sixty-Four Million Two Hundred Fourteen Thousand Dollars ($64,214,000), to the project entitled 'South Tulsa/Jenks Lake and Related Amenities', as described above. If a Memorandum of Understanding is not executed by December 31, 2022 pledging that the other funding partners will provide a minimum of Thirty-Two Million Eight Hundred Sixty-Two Thousand Dollars ($32,862,000), for the project (including design, permits, and construction of the South Tulsa/Jenks dam, access and abutment improvements; environmental mitigation, bank stabilization and outfall protection; trails; debt service on bonds issued for these purposes; and the operating and maintenance endowment), funding hereby allocated by the City of Tulsa for this project Sixty-Four Million Two Hundred Fourteen Thousand Dollars ($64,214,000) may be reallocated according to the provisions of this

ordinance, provided that Eighteen Million Dollars ($18,000,000) will first be reallocated to a long-term operating and maintenance endowment for Zink Lake and Related Amenities.

If other projects and purposes described in Section 100(B) above cannot be completed due to circumstances beyond the control of the City of Tulsa, funding allocated for such projects and purposes will be reallocated according to the provisions of this ordinance.

**E.** The Mayor and the City Council shall determine project priority on an annual basis through the budget process.

**F.** It is the intention of the City of Tulsa and is the official City policy herein established that all such projects and purposes shall be commenced as funds are made available.

**G.** If at the special election on April 5, 2016 the 2017 Limited-Purpose Economic Development Temporary Sales Tax shall fail to receive the approval of a majority of voters voting thereon, then to the extent of the said failure, this Ordinance or part hereof shall have no force or effect.

*(Ord. No. 23425, § 1, 3-3-2016; Ord. No. 23637, § 1, 2-8-2017; Ord. No. 24129, § 1, 5-8-2019; Ord. No. 24386, § 1, 6-17-2020; Ord. No. 24495, § 1, 12-9-2020)*

### Section 101. Sales Tax Overview Committee.

**A. Sales Tax Overview Committee created.** There is hereby created a committee which shall be known as the 2017 Limited-Purpose Economic Development Temporary Sales Tax Overview Committee (STOC) which shall consist of twenty-one (21) citizens who shall be qualified electors of the City of Tulsa. The members shall serve without compensation. No member of STOC shall be an elected public official. STOC shall terminate when all funds generated by the 2017 Limited-Purpose Economic Development Temporary Sales Tax have been expended, or when the tax shall have expired.

**B. Appointment and terms.** Members of the current STOC shall continue to serve as the 2017 Limited-Purpose Economic Development Temporary STOC. Terms shall be as provided by Title 43-C. All members of STOC shall serve until their respective successors are appointed and qualified.

**C. Vacancies.** In the event of vacancies on STOC, appointments to fill such vacancies shall be for the remainder of the unexpired terms. A member of STOC shall have vacated his or her position on STOC if such member fails to attend three (3) consecutive meetings; provided, however, that the vacancy so created shall not prohibit the reappointment to STOC of such member.

**D. City Clerk to maintain STOC roster.** All appointments to STOC shall be filed with the City Clerk of the City of Tulsa, and the City Clerk shall maintain a list of the current members of STOC.

**E. Elected officials, municipal personnel and agencies to assist.** The facilities, personnel, elected officials and agencies of the municipal government are hereby directed to be available and to cooperate with STOC to accomplish the objectives and purposes herein set forth. Copies of City reports and records pertaining to the receipts and expenditures of the proceeds of the sales tax extension shall be made available to STOC upon request.

**F. Monthly report to STOC.** The Mayor or the Mayor's designee shall provide to the Sales Tax Overview Committee and the City Council a monthly report on the status of

the 2017 Limited-Purpose Economic Development Temporary Sales Tax Fund and the projects listed in this chapter. The monthly report shall include, with reference to each project or program, current information on:

**1.** The estimated cost;

**2.** The amount of total appropriations;

**3.** The amount of total expenditures;

**4.** A statement of completion status;

**5.** A summary of all budget transfers; and

**6.** The amount of any unencumbered and unallocated fund balance within the 2017 Limited-Purpose Economic Development Temporary Sales Tax Fund.

Said monthly report shall be in addition to any reports that the Mayor or the Mayor's designee is required by law to provide.

**G. Meetings and report of STOC.** STOC shall meet at least once each month beginning with the month of December, 2016. The monthly meeting shall be at least seven (7) days prior to the first meeting of the City Council in the following month. At the first meeting of the Council of each month, beginning with the month of January, 2017, the Chairman or other member designated by STOC shall attend the regular meeting of the Council and make any report, comment or recommendation which STOC deems to be warranted or, at the option of STOC, a written report from STOC may be submitted monthly to the Council. A time for the presentation of such report shall be reserved on the agenda for the first City Council meeting of every month beginning January, 2017, until the sales tax revenues have been fully expended for the projects and programs set forth in this title.

*(Ord. No. 23425, § 1, 3-3-2016)*

## Section 102. Establishment of a special fund for revenue from the 2017 Limited-Purpose Economic Development Temporary Sales Tax.

**A.** There is hereby established a special revenue fund which shall be known as the 2017 Limited-Purpose Economic Development Temporary Sales Tax Fund.

**B.** All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the 2017 Limited-Purpose Economic Development Temporary Sales Tax, including interest received from the investment thereof, to be deposited into the 2017 Limited-Purpose Economic Development Temporary Sales Tax Fund as soon as received by the City of Tulsa.

**C.** None of the monies in the 2017 Limited-Purpose Economic Development Temporary Sales Tax Fund shall ever be encumbered or expended for any purpose other than those purposes set forth in this chapter, unless amended pursuant to Section 103, below. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

**D.** The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the 2017 Limited-Purpose Economic Development Temporary Sales Tax Fund and to ensure that all such funds shall always be readily available for immediate expenditure for the projects and purposes set forth in this chapter.

**E.** The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the revenues of the sales taxes to the 2017 Limited-Purpose Economic Development Temporary Sales Tax Fund, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the projects and programs set forth in this chapter.

*(Ord. No. 23425, § 1, 3-3-2016)*

**Section 103. Procedure to amend or repeal this chapter.**

**A. Mandatory duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the 2017 Limited-Purpose Economic Development Temporary Sales Tax, and having enacted this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force during the entire period of collection and expenditure of the revenues generated by the 2017 Limited-Purpose Economic Development Temporary Sales Tax for the projects and programs herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements has been made.

**1.** The Secretary shall forthwith (within twenty-four (24) hours) notify all major newspapers, all major television stations and all major radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at City Hall, to which all of the below-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be sent to the Tulsa World and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication requested for such notice. The Secretary shall request that the notice be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B. Procedure before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 103.A above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

*(Ord. No. 23425, § 1, 3-3-2016)*

# TITLE 43-L 2021 SALES TAX POLICY

## Chapter 1. 2021 Miscellaneous Capital Improvements Temporary Sales Tax

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## Chapter 1. 2021 Miscellaneous Capital Improvements Temporary Sales Tax

Section 100. Declaration of official policy of City and pledge to the citizens.
Section 101. Sales Tax Overview Committee.
Section 102. Establishment of 2021 Miscellaneous Capital Improvements Temporary Sales Tax Fund.
Section 103. Procedure to amend or repeal this chapter.

## CHAPTER 1. 2021 MISCELLANEOUS CAPITAL IMPROVEMENTS TEMPORARY SALES TAX

### Section 100. Declaration of official policy of City and pledge to the citizens.

**A.** The City of Tulsa hereby pledges to the citizens of Tulsa:

**1.** That all funds received by the City from the 2021 Miscellaneous Capital Improvements Temporary Sales Tax will be spent only for those projects and purposes as set forth herein. The levy of forty-five one-hundredths of one percent (.45%), is set to begin on either July 1, 2021 or upon collection of $563,700,000.00 pursuant to the 2014 Extended 1.1% Sales Tax, whichever occurs first, and to continue until June 30, 2025, when it shall become ninety-five one-hundredths of one percent (.95%), and continue at ninety-five one-hundredths of one percent (.95%) from July 1, 2025 until either December 31, 2025 or until One Hundred Ninety-Three Million Dollars and No Cents ($193,000,000.00) is collected, whichever occurs first.

**2.** That none of such funds shall ever be spent for any other purpose, unless this ordinance is amended according to the procedures set forth below;

**3.** That every officer and employee of the City is hereby ordered to give high priority to the completion of such projects at the earliest possible date;

**4.** That any attempt to divert any of such funds to other purposes or projects or any failure to give high priority to the completion of such projects shall constitute a breach of City policy herein established; shall be a violation of the terms, spirit and purpose of this chapter; and shall constitute sufficient grounds for the removal of such officer or employee from his or her office or position; and

**B.** **Specific projects and purposes.** The only projects and purposes for which expenditures of proceeds from the 2021 Miscellaneous Capital Improvements Temporary Sales Tax may lawfully be made are as follows:

| Temporary Sales Tax Projects | |
|---|---|
| **Capital Equipment (Police Vehicles and Lab Equipment, Heavy Equipment, etc.)** | $50,750,000 |
| **City Facilities** | |
| Citywide Public Facilities - Maintenance and Rehabilitation | $7,000,000 |
| Tulsa Zoo Entrance and Parking | $6,000,000 |
| Gilcrease Museum Mechanical, Electrical, Plumbing | $6,000,000 |
| Greenwood Cultural Center Facility Rehabilitation | $5,340,000 |
| ADA Improvements for City Facilities | $5,000,000 |
| ADA Improvements for City Parks | $3,000,000 |

| | |
|---|---|
| Citywide Public Facilities - Roofs | $2,460,000 |
| Animal Shelter Phase II | $2,080,000 |
| Police Courts Building | $1,000,000 |
| One Technology Center - Maintenance and Rehabilitation | $1,000,000 |
| 600 Civic Center - Equipment Relocation | $200,000 |
| **Park & Recreation** | |
| Park Facilities Roof, HVAC, Infrastructure Rehabilitation/Replacement, Security Upgrades | $10,125,000 |
| Upgrade, Add, or Renovate Outdoor Park Play Amenities | $5,500,000 |
| Tennis Court Major Rehabilitation, Repurpose, or Replacement | $4,800,000 |
| Fred Johnson Park Rehabilitation and Replacement | $3,125,000 |
| Swan Lake Rehabilitation | $1,700,000 |
| Hill Park Improvements | $2,750,000 |
| Mohawk Park Rehabilitation and Renovation | $1,000,000 |
| Citywide Park System Parking Rehabilitation | $1,000,000 |
| **Tulsa Fire Department** | |
| Fire Apparatus and Equipment | $23,000,000 |
| 911 Station Alert System | $3,000,000 |
| **Tulsa Police Department** | |
| Police Helicopter Replacement | $4,500,000 |
| Computer Aided Dispatch (CAD) | $660,000 |
| Municipal Lockup Data Storage | $510,000 |
| **Economic Development Infrastructure** | $6,500,000 |
| **Community Development Priority Projects** | $9,000,000 |
| **Parking Facility, Veterans Hospital** | $8,000,000 |
| **Transit-MTTA - Critical Deferred Maintenance and Aging Vehicle Replacement, and Transit Infrastructure** | $18,000,000 |
| **Temporary Sales Tax Total** | **$193,000,000** |

**C. Cost estimates.** While the cost estimates shown above are believed to be accurate, the exact cost of each project may vary from the estimate shown.

**D.** The Mayor and the City Council shall determine project priority on an annual basis through the budget process. Funding for the project/purpose entitled "Community Development Priority Projects" (above) shall be equally divided among the nine City Council districts and appropriated by the City Council for projects meeting the following criteria:

**1.** The project must be for a public purpose;

**2.** The project must conform to the City's Comprehensive Plan; and

**3.** The project must promote safe and attractive neighborhoods and/or commercial districts, economic vitality, safe and affordable housing, public recreational opportunities, and/or transportation options.

**E.** It is the intention of the City of Tulsa and is the official City policy herein established that all such projects and purposes shall be commenced as funds are made available.

**F.** When City financial and auditing staff and the Sales Tax Overview Committee shall determine that the full amount of one hundred ninety-three million dollars and no

cents ($193,000,000.00) has been collected from this sales tax, but in no event later than December 31, 2025, and has been devoted to the projects listed above, and so advise the Mayor and City Council, and when the Mayor and City Council approve said determination by City financial and auditing staff and the Sales Tax Overview Committee, the Mayor shall recommend to the City Council the repeal of this Ordinance.

**G.** If at the special election on November 12, 2019 the 2021 Miscellaneous Capital Improvements Temporary Sales Tax shall fail to receive the approval of a majority of voters voting thereon, then this chapter shall have no force or effect.

*(Ord. No. 24180, § 1, 8-7-19; Ord. No. 24387, § 1, 6-17-2020; Ord. No. 24640, § 1, 7-21-2021)*

**Section 101. Sales Tax Overview Committee.**

**A. Sales Tax Overview Committee created.** There is hereby created a committee which shall be known as the 2021 Miscellaneous Capital Improvements Temporary Sales Tax Overview Committee (STOC) which shall consist of twenty-one (21) citizens who shall be qualified electors of the City of Tulsa. The members shall serve without compensation. No member of STOC shall be an elected public official. STOC shall terminate when all funds generated by the 2021 Miscellaneous Capital Improvements Temporary Sales Tax have been expended.

**B. Appointment and terms.** Members of the current STOC shall continue to serve as the 2021 Miscellaneous Capital Improvements Temporary STOC. Terms shall be as provided by Title 43-C. All members of STOC shall serve until their respective successors are appointed and qualified.

**C. Vacancies.** In the event of vacancies on STOC, appointments to fill such vacancies shall be for the remainder of the unexpired terms. A member of STOC shall have vacated his or her position on STOC if such member fails to attend three (3) consecutive meetings; provided, however, that the vacancy so created shall not prohibit the reappointment to STOC of such member.

**D. City Clerk to maintain STOC roster.** All appointments to STOC shall be filed with the City Clerk of the City of Tulsa, and the City Clerk shall maintain a list of the current members of STOC.

**E. Elected officials, municipal personnel and agencies to assist.** The facilities, personnel, elected officials and agencies of the municipal government are hereby directed to be available and to cooperate with STOC to accomplish the objectives and purposes herein set forth. Copies of City reports and records pertaining to the receipts and expenditures of the proceeds of the sales tax extension shall be made available to STOC upon request.

**F. Monthly report to STOC.** The Mayor or the Mayor's designee shall provide to the Sales Tax Overview Committee and the City Council a monthly report on the status of the 2021 Miscellaneous Capital Improvements Temporary Sales Tax Fund and the projects listed in this chapter. The monthly report shall include, with reference to each project or program, current information on:

**1.** The estimated cost;

**2.** The amount of total appropriations;

**3.** The amount of total expenditures;

**4.** A statement of completion status;

**5.** A summary of all budget transfers; and

**6.** The amount of any unencumbered and unallocated fund balance within the 2021 Miscellaneous Capital Improvements Temporary Sales Tax Fund.

Said monthly report shall be in addition to any reports that the Mayor or the Mayor's designee is required by law to provide.

**G. Meetings and report of STOC.** STOC shall meet at least once each month beginning with the month of July, 2021. The monthly meeting shall be at least seven (7) days prior to the first meeting of the City Council in the following month. At the first meeting of the Council of each month, beginning with the month of August, 2021, the Chairman or other member designated by STOC shall attend the regular meeting of the Council and make any report, comment or recommendation which STOC deems to be warranted or, at the option of STOC, a written report from STOC may be submitted monthly to the Council. A time for the presentation of such report shall be reserved on the agenda for the first City Council meeting of every month beginning August, 2021, until the sales tax revenues have been fully expended for the projects and programs set forth in this title.

*(Ord. No. 24180, § 1, 8-7-19)*

## Section 102. Establishment of 2021 Miscellaneous Capital Improvements Temporary Sales Tax Fund.

**A.** There is hereby established a special revenue fund which shall be known as the 2021 Miscellaneous Capital Improvements Temporary Sales Tax Fund.

**B.** All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the 2021 Miscellaneous Capital Improvements Temporary Sales Tax, including interest received from the investment thereof, to be deposited into the 2021 Miscellaneous Capital Improvements Temporary Sales Tax Fund as soon as received by the City of Tulsa.

**C.** None of the monies in the 2021 Miscellaneous Capital Improvements Temporary Sales Tax Fund shall ever be encumbered or expended for any purpose other than those purposes set forth in this chapter, unless amended pursuant to Section 103, below. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

**D.** The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the 2021 Miscellaneous Capital Improvements Temporary Sales Tax Fund and to ensure that all such funds shall always be readily available for immediate expenditure for the projects and purposes set forth in this chapter.

**E.** The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the revenues of the sales taxes to the 2021 Miscellaneous Capital Improvements Temporary Sales Tax Fund, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the projects and programs set forth in this chapter.

*(Ord. No. 24180, § 1, 8-7-19)*

## Section 103. Procedure to amend or repeal this chapter.

**A. Mandatory duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the 2021 Miscellaneous Capital Improvements Temporary Sales Tax, and having enacted this chapter to establish the official City policy with regard to such revenue, hereby pledges that this chapter shall remain in force during the entire period of collection and expenditure of the revenues generated by the 2021 Miscellaneous Capital Improvements Temporary Sales Tax for the projects and programs herein enumerated.

Any attempt to amend or repeal this chapter can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this chapter on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements has been made.

**1.** The Secretary shall forthwith (within twenty-four [24] hours) notify all major newspapers, all major television stations and all major radio stations then located within the City of Tulsa of the request for amendment or repeal of this chapter.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at City Hall, to which all of the below-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be sent to the Tulsa World and The Oklahoma Eagle, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication requested for such notice. The Secretary shall request that the notice be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B. Procedure before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this chapter until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 103.A above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this chapter as above provided.

*(Ord. No. 24180, § 1, 8-7-19)*

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# TITLE 43-M 2023 TEMPORARY SALES TAX POLICY

## Chapter 1. Levied of the 2023 Temporary Sales Tax

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## CHAPTER 1. LEVIED OF THE 2023 TEMPORARY SALES TAX

Section 100. Declaration of Official Policy of City and Pledge to the Citizens.
Section 101. Sales Tax Overview Committee.
Section 102. Establishment of 2023 Temporary Sales Tax Fund.
Section 103. Procedure to amend or repeal this title.

### Section 100. Declaration of Official Policy of City and Pledge to the Citizens.

The City of Tulsa has levied the 2023 Temporary Sales Tax of ninety-five one-hundredths of one percent (.95%), Title 43 TRO Section 100.5, Ordinance No. 25041 to commence upon the expiration of the 2021 Miscellaneous Capital Improvements Temporary Sales Tax (Title 43-L TRO), that is, December 31, 2025, or when One Hundred Ninety-Three Million Dollars and No Cents ($193,000,000.00) has been collected, whichever occurs first. This tax levy will be voted on at a special election on August 8, 2023, pursuant to Title 68 Oklahoma Statutes, Section 2705.

**A.** The City of Tulsa hereby pledges to the citizens of Tulsa:

**1.** That ALL funds received by the City from the 2023 Temporary Sales Tax will be spent ONLY for those projects and purposes set forth herein, unless amended pursuant to Section 103, below;

**2.** That none of such funds shall ever be spent for any other purpose, unless amended pursuant to Section 103, below;

**3.** That every officer and employee of the City is hereby ordered to give high priority to the completion of such projects at the earliest possible date;

**4.** That any attempt to divert any of such funds to other purposes or projects, unless amended pursuant to Section 103, below, or any failure to give high priority to the completion of such projects shall constitute a breach of City policy herein established; shall be a violation of the terms, spirit and purpose of this Title; and shall constitute sufficient grounds for the removal of such officer or employee from his or her office or position; and

**B.** Specific projects and purposes. The only projects for which expenditures of proceeds from the 2023 Temporary Sales Tax may lawfully be made are as follows along with paying debt service on indebtedness issued for such purposes:

| | |
|---|---|
| Citywide street rehabilitation, repair, and maintenance | $51,100,000 |
| Additional costs for completion of previously approved street projects listed in Improve Our Tulsa Proposition No. 1 approved at an election held on November 12, 2019 | $27,075,000 |
| Citywide bridge replacement and rehabilitation | $4,800,000 |
| Citywide project engineering inspection and testing | $2,500,000 |
| Citywide street project construction completion incentives | $4,000,000 |

| | |
|---|---|
| City matching funds for Federal or State grants for Citywide Street Projects | $14,400,000 |
| Citywide traffic engineering needs | $16,670,000 |
| Citywide American Disabilities Act Transition Plan Implementation | $3,750,000 |
| Citywide sidewalks | $1,650,000 |
| Citywide alleys | $400,000 |
| Cox Business Convention Center - building, safety, and security improvements | $18,800,000 |
| Mohawk Park - improvements | $2,545,000 |
| Page Belcher Golf Course - renovation | $4,000,000 |
| Citywide Parks - improvements | $3,025,000 |
| Citywide Regional Trails - improvements | $3,000,000 |
| Citywide Facilities - maintenance and improvements | $20,000,000 |
| River Parks - maintenance building | $5,000,000 |
| Housing Initiatives | $75,000,000 |
| Kirkpatrick Heights/Greenwood Area - plan implementation | $5,000,000 |
| Neighborhoods - revitalization and improvements | $15,000,000 |
| City vehicles, equipment, and technology | $94,300,000 |
| Tulsa Fire Department - apparatus and vehicles | $58,500,000 |
| **TOTAL** | **$430,515,000** |

**C.** Cost estimates. While the cost estimates shown above are believed to be accurate, the exact cost of each project may vary from the estimate shown.

**D.** The Mayor and the City Council shall determine project priority on an annual basis through the budget process. Funding for the project/purpose entitled "Housing Initiatives" (above) shall be allocated and appropriated to implement a project plan adopted by resolution, after presentation and consideration of recommendations from the City of Tulsa's Housing, Homelessness and Mental Health Task Force.

**E.** It is the intention of the City of Tulsa and is the official City policy herein established that all such projects and purposes shall be commenced as funds are made available.

*(Ord. No. 25042, § 1, 5-24-2023)*

### Section 101. Sales Tax Overview Committee.

**A. Sales Tax Overview Committee Created.** There is hereby created a committee which shall be known as the 2023 Temporary Sales Tax Overview Committee (STOC) which shall consist of twenty-one (21) citizens who shall be qualified electors of the City of Tulsa. The members shall serve without compensation. No member of STOC shall be an elected public official. STOC shall terminate when all funds generated by the 2023 Temporary Sales Tax have been expended or on June 30, 2030, whichever occurs earlier.

**B. Appointment and terms.** Members of the current STOC shall continue to serve as the 2023 Temporary STOC. Terms shall be as provided by Title 43-C. All members of STOC shall serve until their respective successors are appointed and qualified.

**C. Vacancies.** In the event of vacancies on STOC, appointments to fill such vacancies shall be for the remainder of the unexpired terms. A member of STOC shall have vacated his or her position on STOC if such member fails to attend three (3) consecutive meetings; provided, however, that the vacancy so created shall not prohibit the reappointment to STOC of such member.

**D. City Clerk to Maintain STOC Roster.** All appointments to STOC shall be filed with the City Clerk of the City of Tulsa, and the City Clerk shall maintain a list of the current members of STOC.

**E. Elected Officials, Municipal Personnel and Agencies to Assist.** The facilities, personnel, elected officials and agencies of the municipal government are hereby directed to be available and to cooperate with STOC to accomplish the objectives and purposes herein set forth. Copies of City reports and records pertaining to the receipts and expenditures of the proceeds of the sales tax shall be made available to STOC upon request.

**F. Monthly report to STOC.** The Mayor or the Mayor's designee shall provide to the Sales Tax Overview Committee and the City Council a monthly report on the status of the 2023 Temporary Sales Tax Fund and the projects listed in this Title. The monthly report shall include, with reference to each project, current information on:

**1.** The estimated cost;

**2.** The amount of total appropriations;

**3.** The amount of total expenditures;

**4.** A statement of completion status;

**5.** A summary of all budget transfers; and

**6.** The amount of any unencumbered and unallocated fund balance within the 2024 Capital Projects Temporary Sales Tax Fund.

Said monthly report shall be in addition to any reports that the Mayor or the Mayor's designee is required by law to provide.

**G. Meetings and Report of STOC.** STOC shall meet at least once each month beginning with the month of January, 2026. The monthly meeting shall be at least seven (7) days prior to the first meeting of the City Council in the following month. At the first meeting of the Council of each month, beginning with the month of February 2026, the Chairman or other member designated by STOC shall attend the regular meeting of the Council and make any report, comment or recommendation which STOC deems to be warranted or, at the option of STOC, a written report from STOC may be submitted monthly to the Council. A time for the presentation of such report shall be reserved on the agenda for the first City Council meeting of every month beginning February, 2026, until the sales tax revenues have been fully expended for the projects set forth in this title or June 30, 2030, whichever occurs sooner.

*(Ord. No. 25042, § 1, 5-24-2023)*

**Section 102. Establishment of 2023 Temporary Sales Tax Fund.**

**A.** There is hereby established a special revenue fund which shall be known as the 2023 Temporary Sales Tax Fund.

**B.** All officers and employees of the City of Tulsa are hereby ordered to take all necessary action to cause the funds generated by the 2023 Temporary Sales Tax, including interest received from the investment thereof, to be deposited into the 2023 Temporary Sales Tax Fund as soon as received by the City of Tulsa.

**C.** None of the monies in the 2023 Temporary Sales Tax Fund shall ever be encumbered or expended for any purpose other than those projects set forth in this Title, unless amended pursuant to Section 103, below. Any violation of this provision will subject the persons violating this mandate to removal from their respective offices or positions.

**D.** The City Treasurer of the City shall take whatever action is necessary to ensure the timely investment of all monies within the 2023 Temporary Sales Tax Fund and to ensure that all such funds shall always be readily available for immediate expenditure for the projects set forth in this Title.

**E.** The Mayor, Council and all officers and employees of the City having budgetary duties and responsibilities shall take all necessary and timely action to cause the necessary appropriation of the revenues of the sales taxes to the 2023 Temporary Sales Tax Fund, to the end that the records and data shall always be readily available, and the funds will be encumbered and expended only for the projects set forth in this Title.

*(Ord. No. 25042, § 1, 5-24-2023)*

**Section 103. Procedure to amend or repeal this title.**

**A. Mandatory Duty of Secretary of Council.** The City of Tulsa, having made a solemn pledge to the citizens of Tulsa regarding the expenditures of the revenue from the 2023 Temporary Sales Tax, and having enacted this Title to establish the official City policy with regard to such revenue, hereby pledges that this Title shall remain in force during the entire period of collection and expenditure of the revenues generated by the 2023 Temporary Sales Tax for the projects herein enumerated.

Any attempt to amend or repeal this Title can lawfully occur only by placing such proposal on the official agenda of the City Council which agenda is prepared by the office of the Secretary of the Council ("Secretary").

In the event a request is ever made by any party to place the issue of the amendment or repeal of this Title on any agenda of the City Council, the Secretary is hereby specifically prohibited from placing such issue on any such agenda until full compliance with the following requirements has been made.

**1.** The Secretary shall forthwith (within twenty-four (24) hours) notify all major newspapers, all major television stations and all major radio stations then located within the City of Tulsa of the request for amendment or repeal of this Title.

**2.** The Secretary shall forthwith notify the general public of such request by a press conference officially called by the Secretary and held at City Hall, to which all of the below-named newspapers, radio and television stations shall be invited.

**3.** The Secretary shall forthwith cause a public notice to be sent to a newspaper of general circulation in the City of Tulsa, specifically setting forth fully the nature, purpose and extent of the request and the date the matter will first be placed on

the agenda for public hearing before the City Council, which date shall be a date more than fifteen (15) days from the date of first publication requested for such notice. The Secretary shall request that the notice be published once a week for two (2) consecutive weeks.

**4.** The Secretary shall, upon performance of all of the above acts, execute and deliver to the Council of the City of Tulsa written certification as to the time and manner of the performance of the foregoing duties herein assigned, which certification shall be filed as a part of the permanent records of the City in the office of the City Clerk, and shall be available for inspection or copying at all reasonable times.

**B. Procedure before Council.** No official action shall be taken by the Council of the City of Tulsa upon any request to amend or repeal this Title until the following acts and procedures have been complied with:

**1.** The Council shall have examined the written certification of the Secretary concerning the acts required to be performed by Subsection 103 A. above, and shall have satisfied itself that all such acts have been duly and timely performed; and

**2.** The Council shall have held at least two (2) public hearings on the proposal (one (1) of which shall be held at night), which hearings shall be at least seven (7) days apart, and the first of which shall have been more than fifteen (15) days from the date of first publication of the notice given by the Secretary setting forth the nature of the request to amend or repeal this Title as above provided.

*(Ord. No. 25042, § 1, 5-24-2023)*

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# TITLE 44 CITY OF TULSA HOTEL TAX CODE

## Chapter 1. City of Tulsa Hotel Tax Code

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## CHAPTER 1. CITY OF TULSA HOTEL TAX CODE

Section 100. Definitions.
Section 101. Imposition of tax; exemptions.
Section 102. Records to be kept.
Section 103. Returns.
Section 104. Payment of tax.
Section 105. Assessment and determination of tax.
Section 106. Refunds.
Section 107. Notices.
Section 108. Remedies exclusive.
Section 109. Proceedings to recover tax.
Section 110. General powers of the Mayor.
Section 111. Administration of oaths and compelling testimony.
Section 112. Licenses and registration.
Section 113. Discount, delinquent taxes.
Section 114. Interest and penalties.
Section 115. Confidential records.
Section 116. Amendments.
Section 117. Provisions cumulative.
Section 118. Creation of funds.
Section 119. Effective date.
Section 120. Perpetuation of tax.

### Section 100. Definitions.

Unless a different meaning clearly appears from the context, for the purposes of this chapter, the following words and phrases shall have the meanings given herein.

**A.** **Person** shall mean an individual, partnership, society, association, joint stock company, corporation, estate, receiver, trustee, assignee, referee or any other person acting in a fiduciary or representative capacity, whether appointed by a court or otherwise, or any combination of the above acting as a unit.

**B.** **Operator** shall mean any person operating a hotel in this City, included, but not limited to, the owner, proprietor, lessee, sublessee, mortgagee in possession, licensee or any other person otherwise operating such hotel.

**C.** **Occupant** shall mean a person who, for a consideration, uses, possesses or has the right to the use or possession of any room or rooms in a hotel under any lease, concession, permit, right of access, license to use or other agreement, or otherwise.

**D.** **Occupancy** shall mean the use or possession or the right to the use or possession of any room or rooms in a hotel.

**E.** **Hotel** shall mean any building or buildings, trailer or other facility in which the public may, for consideration, obtain sleeping accommodations in which five (5) or more rooms are used for the accommodation of such guests, whether such rooms are in one (1) or several structures. The term shall include hotels, apartment hotels, motels, tourist homes, houses or courts, lodging houses, inns, rooming houses, trailer houses, trailer motels, dormitory space where bed space is rented to individuals or groups, apartments not occupied by "permanent residents," as that term is hereinafter defined, and all

other facilities where rooms or sleeping facilities or space are furnished for a consideration. As defined herein, "hotel" shall not include hospitals, sanitariums or nursing homes.

**F.** **Room** shall mean any room or rooms of any kind in any part or portion of a hotel which is available for, let for the use of, or possessed for the purpose of lodging or sleeping.

**G.** **Rent** shall mean the consideration received for occupancy valued in money, whether received in money or otherwise, including all receipts, cash, credits and property or services of any kind or nature, without any deduction therefrom whatsoever. Rent does not include the cost of any tax or assessment imposed by a governmental taxing entity for occupancy of a room or the cost of ancillary services or charges, including but not limited to food and beverages, parking fees, equipment fees, early check-in or late check-out fees, or damage recoupment.

**H.** **Permanent resident** shall mean any occupant who has or shall have the right of occupancy of any room or rooms in the same hotel for at least thirty (30) consecutive days during the current calendar year or preceding year.

**I.** **Return** shall include any return filed or required to be filed as herein provided.

**J.** **Mayor** shall mean the duly elected Mayor of the City of Tulsa, Oklahoma, or his designated representative.

*(Ord. No. 15876; Ord. No. 25386, § 1, 8-21-2024; Ord. No. 25603, § 1, 6-18-2025)*

**Section 101. Imposition of tax; exemptions.**

**A.** There is hereby levied an excise tax of five percent (5%) upon the gross proceeds or gross receipts derived from the rent from every occupancy of a room or rooms in a hotel in this City, except that the tax shall not be imposed where the rent is less than at the rate of Ten Dollars ($10.00) per day.

**B.** No tax shall be imposed hereunder upon a permanent resident.

**C.** No tax shall be imposed hereunder upon the United States insofar as it is immune from taxation, the state of Oklahoma, nor any municipality or other political subdivision of the state.

**D.** No tax shall be imposed upon persons who are residents of Oklahoma and have been honorably discharged from active service in any branch of the Armed Forces of the United States or Oklahoma National Guard and who have been certified by the United States Department of Veterans Affairs or its successor to be in receipt of disability compensation at the one hundred (100) percent rate and the disability shall be permanent and have been sustained through military action or accident or resulting from disease contracted while in such active service and registered with the veterans registry created by the Oklahoma Department of Veterans Affairs.

**E.** The tax to be collected shall be stated and charged separately from the rent and shall be shown separately on any record thereof at the time when the occupancy is arranged or contracted and charged for, and upon every evidence of occupancy or any bill, statement or charge made for such occupancy issued or delivered by the operator. The tax shall be paid by the occupant to the operator as trustee for and on account of the City, and the operator shall be liable for the collection thereof and for the payment of the tax. The operator and any officer of any corporate operator shall be personally

liable for the tax collected or required to be collected under this title, and the operator shall have the same right in respect to collecting the tax from the occupant or in respect to nonpayment of the tax by the occupant as if the tax were a part of the rent for the occupancy payable at the same time such tax shall become due and owing, including all rights of eviction, dispossession, repossession and enforcement of any innkeeper's lien that he may have in the event of nonpayment of rent by the occupant; provided, however, that the City of Tulsa shall be joined as a party in any action or proceeding brought by the operator to collect or enforce collection of the tax.

**F.** Such taxes, penalty and interest due hereunder shall at all times constitute a prior, superior and paramount claim as against the claim of unsecured creditors and may be collected by suit as any other debt.

**G.** Where the occupant has failed to pay and the operator has failed to collect a tax as imposed by this chapter, then, in addition to all other rights, obligations and remedies provided, such tax shall be payable by the occupant directly to the City, and it shall be the duty of the occupant to file a return thereof with the Mayor and to pay the tax imposed thereon to the Mayor, within fifteen (15) days after such tax was due.

**H.** The Mayor may, whenever he deems it necessary for the proper enforcement of this chapter, provide by regulation that the occupant shall file returns and pay directly to the Mayor the tax herein imposed at such times as returns are required to be filed and payment over made by the operator.

**I.** The tax imposed by this section shall be paid upon any occupancy on or after September 1, 1971, although such occupancy is had pursuant to a contract, lease or other arrangement made prior to September 1, 1971. Where rent is paid, charged, billed or falls due on either weekly or other term basis, the rent so paid, charged, billed or falling due shall be subject to the tax herein imposed to the extent that it covers any portion of the period after September 1, 1971, and such payment, bill, charge or rent due shall be apportioned on the basis of the ratio of the number of days falling within such portion to the total number of days covered thereby. Where any tax has been paid hereunder upon any rent which has been ascertained to be worthless, the Mayor may, by regulation, provide for credit or refund of the amount of such tax upon application as provided herein.

**J.** For the purpose of the proper administration of this chapter, and to prevent evasion of the tax hereby imposed, it shall be presumed that all rentals are subject to the tax until facts to the contrary are established; and the burden of providing that a rent for occupancy is not taxable hereunder shall be upon the operator or the occupant.

**K.** No operator shall advertise or hold out to the public in any manner, directly or indirectly, that the tax imposed by this chapter is not considered as an element in the rent charged to the occupant.

*(Ord. No. 13288; Ord. No. 25386, §§ 2, 3, 8-21-2024)*

### Section 102. Records to be kept.

Every operator shall keep records of every occupancy and of all rent paid, charged or due thereon and of the tax payable thereon in such form as the Mayor may, by regulation, require. Such records shall be available for inspection and examination at any time upon

demand by the Mayor or a duly authorized agent or employee of the City, and shall be preserved for a period of three (3) years, except that the Mayor may consent to their destruction within that period or may require that they be kept longer.

### Section 103. Returns.

**A.** Every operator, on or before the last day of each month, shall file with the Mayor a return of occupancy and of rents and of the taxes payable thereon for the preceding calendar month. The date of filing shall be the date of delivery to the Mayor.

**B.** The Mayor may permit or require returns to be made by shorter or longer periods and upon such dates as he may specify. The form of return shall be prescribed by the Mayor and shall contain such information as he may deem necessary for the proper administration of this code. The Mayor may require amended returns to be filed within twenty (20) days after notice, containing the information specified in the notice.

**C.** If a return required by this chapter is not filed or if a return when filed is incorrect or insufficient on its face, the Mayor shall take the necessary steps to enforce the filing of a return or an amended return.

*(Ord. No. 16630)*

### Section 104. Payment of tax.

At the time of filing a return of occupancy and of rents, each operator shall pay to the City the taxes imposed upon the rents included in such return, as well as all other moneys collected by the operator acting or purporting to act under the provisions of this chapter. All taxes for the period for which a return is required shall be due and payable on or before the date fixed for the filing of the return for such period, without regard to whether a return is filed or whether the return correctly filed shows the amount of rents and the taxes due. If any operator has twice failed to pay taxes on or before the date fixed for payment of such taxes or if any operator refuses to pay the taxes or if the Mayor has reasonable grounds for belief that any operator is about to cease business or leave the state or remove or dissipate assets, or if, for any similar reason he deems it necessary to protect revenues due hereunder, the Mayor may require an operator to file with the City either a performance and payment bond, as detailed herein, or in lieu of this bond, an escrow account or an irrevocable letter of credit as detailed herein. Should the operator not submit either a performance and payment bond, an escrow account or an irrevocable letter of credit within fifteen (15) days of notice to do so, the Mayor may conduct a hearing to suspend the license pursuant to the revised ordinances of the City of Tulsa. The performance bond, irrevocable letter of credit or escrow account shall be provided as follows:

**A.** A performance and payment bond in a form acceptable to the City, naming the operator as obligee thereof, executed by a surety acceptable to the City and authorized to do business in the state of Oklahoma, in a sum equal to the city-wide average daily room rental rate, to be ascertained by the Mayor, times the number of rooms available for rent within the hotel multiplied by a factor of thirty (30), times five percent (5%); or

**B.** An irrevocable letter of credit in a form acceptable to the City, executed by the operator and a federally insured financial institution acceptable to the City, providing for a sum equal to the city-wide average daily room rental rate, to be ascertained by the Mayor, times the number of rooms available for rent within the hotel multiplied by a factor of thirty (30), times five percent (5%); or

**C.** An escrow account held by the City in a sum equal to the city-wide average daily room rental rate, to be ascertained by the Mayor, times the number of rooms available for rent within the hotel multiplied by a factor of thirty (30), times five percent (5%).

*(Ord. No. 16958)*

## Section 105. Assessment and determination of tax.

If a return required by this chapter is not filed, or if a return when filed is incorrect or insufficient, the amount of tax due shall be assessed by the Mayor from such information as may be obtainable and, if necessary, the tax may be estimated on the basis of external indices, such as number of rooms, location, scale of rents, comparable rents, types of accommodations and services, number of employees or other factors. Written notice of such assessments shall be given to the person liable for the collection and payment of the tax. Such assessment shall finally and irrevocably fix and determine the tax, unless the person

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against whom it is assessed, within ten (10) days after the giving of such assessment, shall apply in writing to the Council of the City of Tulsa for a hearing, or unless the Mayor, at his discretion, shall reassess the same. After such hearing, the Council of the City of Tulsa shall give written notice of its determination to the person against whom the tax is assessed. If the taxes and interest due are not paid within ten (10) days of assessment or reassessment by the Mayor or determination by the Council, in addition to the taxes and interest, the operator shall pay a penalty equal to ten percent (10%) of the taxes due.

*(Ord. No. 16630)*

**Section 106. Refunds.**

**A.** In the manner provided in this section, the Mayor shall refund or credit any tax erroneously, illegally or unconstitutionally collected if written application to the Mayor for such refund shall be made within two (2) years from the date of payment thereof. For like causes, and in the same period, a refund may be so made upon the initiative and the order of the Mayor. Whenever a refund is made, the reasons therefor shall be stated in writing. Such application may be made by the person upon whom such tax was imposed and who has actually paid the tax. Such application may also be made by the person who has collected and paid such tax to the City, provided that the application is made within two (2) years of the payment by the occupant to the operator; but no refund of money shall be made to the operator until he shall first establish to the satisfaction of the Mayor, under such regulations as the Mayor may prescribe, that he has repaid to the occupant the amount for which the application for refund is made. The Mayor, in lieu of any refund required to be made, may allow credit therefor on payments due from the applicant.

**B.** An application for a refund or credit made, as herein provided, shall be deemed an application for a revision of any tax, penalty or interest complained of, and the Mayor may receive evidence with respect thereto. After making his determination, the Mayor shall give notice thereof to the applicant. Such determination shall be final unless the applicant, within ten (10) days after such notice of determination, shall apply in writing to the Council for a hearing. After such hearing, the Council shall give written notice of its determination to the applicant.

**C.** A person shall not be entitled to revision, refund or credit of a tax under this section if he has had a hearing or an opportunity for a hearing as provided in this chapter and has failed to avail himself of the remedies therein provided.

*(Ord. No. 15876)*

**Section 107. Notices.**

Notices provided for under this chapter shall be deemed to have been given when such notices have been delivered personally to the operator or deposited in the United States mail to the last known address of the operator.

**Section 108. Remedies exclusive.**

The remedies provided by Sections 105 and 106 of this chapter shall be exclusive remedies available to any person for the review of tax liability imposed by this chapter.

## Section 109. Proceedings to recover tax.

**A. Civil remedies.**

**1.** Whenever any operator, occupant or other person shall fail to collect and/or pay over any tax, or to owe any tax, penalty or interest imposed by this chapter as herein provided, the Mayor may authorize the Director of Finance to file notice of liens on behalf of the City of Tulsa against the real estate upon which the hotel is located and/or against all franchises, property and rights to property, whether real or personal, then belonging to or thereafter acquired by the person owing the tax pursuant to 68 O.S.Supp.1996, § 2701, and 68 O.S.1991, § 2704.

**2.** The liens shall, upon proper filing, attach to the real estate and/or personal property then owned or thereafter acquired by the debtor, whether such property is used by the debtor in the operation of business or is under the authority of an assignee, trustee or receiver for the benefit of creditors, from the date such taxes are due and payable as allowed by 68 O.S.1991, § 2704.

**3.** The Director of Finance shall notify the person owing the tax by personal service or by certified mail that the City of Tulsa will file such liens if any delinquent lodging taxes, interest and/or penalties are not paid within fifteen (15) days of receiving such notice.

**4.** The Mayor may also authorize the City Attorney to institute an action in personam and in rem to enforce payment and collect any delinquent lodging taxes, penalties and/or interest.

**B. Criminal penalties.** In addition to all civil penalties provided by this chapter, the wilful failure or refusal of any operator, occupant or other person to make reports and/or remittances as herein required or the making of any false and fraudulent report for the purpose of avoiding or escaping payment of any tax or portion thereof rightfully due under this chapter shall be an offense and, upon conviction thereof, the offending operator, occupant or other person shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

*(Ord. No. 16958)*

## Section 110. General powers of the Mayor.

In addition to all other powers granted to the Mayor, he is hereby authorized and empowered:

**A.** To make, adopt and amend rules and regulations appropriate to the carrying out the provisions of this chapter for the purposes thereof;

**B.** To extend, for cause shown, the time for filing any return for a period not exceeding sixty (60) days; and, for cause shown, to waive, remit or reduce penalties or interest;

**C.** To delegate his functions hereunder to a deputy or other employee or employees of the City;

**D.** To assess, reassess, determine, revise and readjust the taxes imposed by this chapter; and

**E.** To prescribe methods for determining the taxable and non-taxable rents.

### Section 111. Administration of oaths and compelling testimony.

**A.** The Mayor, or employees or agents of the City duly designated and authorized by him, shall have the power to administer oaths and take affidavits in relation to any matter or proceeding in the exercise of their powers and duties under this chapter. The Mayor shall have the power to subpoena and require the attendance of witnesses and the production of books, papers and documents to secure information pertinent to the performance of his duties hereunder and of the enforcement of this chapter, and to examine them in relation thereto.

**B.** Any person who shall refuse to testify or to produce books or records, or who shall testify falsely in any material matter pending before the Mayor shall be guilty of an offense punishable by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, and/or by imprisonment in the City jail for a period of not more than ninety (90) days.

*(Ord. No. 16385)*

### Section 112. Licenses and registration.

Every new operator shall file, within three (3) days of engaging in the hotel business, an application for license and registration pursuant to the Revised Ordinances of the City of Tulsa. The Mayor shall, within five (5) days after such registration, issue to each operator a license empowering such operator to collect the tax from the occupant. Such license shall be permanently displayed by the operator in such manner that it may be seen by and may come to the notice of all occupants and persons seeking occupancy. Such license shall be nonassignable and nontransferable and shall be surrendered immediately to the Mayor upon the cessation of business at the hotel named, or upon its sale or transfer.

*(Ord. No. 16958)*

### Section 113. Discount, delinquent taxes.

**A.** At the time of filing the returns required under this chapter with the Mayor, the operator shall remit therewith to the Mayor, except as thereinafter provided, ninety-seven percent (97%) of the tax due under the provisions of this chapter; provided that the tax is delivered to the Mayor on or before the 15th of the month for the preceding calendar month's return, or if transmitted by mail, that the date of postmark by the U.S. Postal Service is on or before the 15th day of the month for the preceding month's return. In the event that payment of any tax due is not made by the 15th of the month, the operator forfeits his claim to the three percent (3%) discount and must remit to the Mayor one hundred percent (100%) of the taxes due. If the filing of the return and remittance of the taxes due are received by the Mayor after the last day of the month, the taxes are then delinquent and the operator shall pay, in addition to one hundred percent (100%) of the taxes due, interest and penalties as prescribed in Subsection 114.A. of this chapter.

**B.** The discount granted by this section shall remunerate the operator for keeping tax records, filing reports and remitting the tax when due as required by this chapter.

*(Ord. Nos. 15876, 16630)*

## Section 114. Interest and penalties.

**A.** If an operator fails to file a return or remit the taxes due prior to the last day of the month, the operator shall pay, in addition to one hundred percent (100%) of the taxes due, the following interest and penalties:

**1.** One and one-half percent (1½%) interest per month on the total amount of taxes due from the last day of the month to the date of filing; and

**2.** A penalty of ten percent (10%) of the total amount of the taxes due.

**B.** In addition to the penalties provided herein, the following persons shall be guilty of an offense and, upon conviction thereof, shall be punished by imprisonment in the City jail for a period of not more than ninety (90) days and/or by a fine of not more than Three Hundred Dollars ($300.00), excluding costs:

**1.** Any operator or occupant who wilfully fails to file a return as required by this chapter, or who files or causes to be filed, or makes or causes to be made, or causes to be given any return, certificate, affidavit, representation, information, testimony or statement required or authorized by this chapter which is wilfully false;

**2.** Any operator who wilfully fails to file a bond required by this chapter or who wilfully fails to file a registration certificate and such data in connection therewith as the Mayor may require, by regulation or otherwise, or who fails to display or surrender the license as required by this chapter, or who assigns or transfers such license;

**3.** Any operator who wilfully fails to charge separately from the rent the tax herein imposed, or who wilfully fails to state such tax separately on any evidence of occupancy and on any bill, statement or receipt of rent issued or employed by the operator, or who wilfully fails or refuses to collect tax from the occupant;

**4.** Any operator who wilfully refers or causes reference to be made to this tax in a form or manner other than that required by this chapter; and

**5.** Any operator who wilfully fails to keep the records required by this chapter.

**C.** The affidavit of the Mayor to the effect that a tax has not been paid, that a return, bond or registration certificate has not been filed, or that information has not been supplied pursuant to the provisions of this chapter, shall be presumptive evidence thereof.

*(Ord. Nos. 15876, 16630)*

## Section 115. Confidential records.

The confidential and privileged nature of the records and files concerning the administration of this tax is legislatively recognized and declared, and to protect the same, the provisions of 68 O.S.Supp.1996, § 205, and each subsection thereof, are hereby adopted by reference and made fully effective and applicable to administration of this tax as if they were herein set forth in full.

## Section 116. Amendments.

The people of the City of Tulsa, Oklahoma, shall by their approval of this chapter at the election hereinafter provided, authorize the Council of the City of Tulsa, Oklahoma, by ordinance duly enacted, to make such changes or additions in the method and manner of

administration and enforcing this chapter as may be necessary or proper for efficiency and fairness, except that the rate of the tax herein provided shall not be changed without approval of the qualified electors of the City of Tulsa as herein provided.

**Section 117. Provisions cumulative.**

The provisions hereof shall be cumulative and in addition to any and all other taxing provisions of the City.

**Section 118. Creation of funds.**

**A.** The first two percent (2%) of all taxes levied and collected pursuant to this chapter shall be deposited into the General Fund of the City of Tulsa and shall be available to pay expenses incurred by the City of Tulsa in the enforcement of this chapter. "Enforcement," as used in this chapter, shall include expenses incurred in monitoring the collection, expenditure, and auditing of the hotel tax.

**B.** There is hereby established a special fund to be known as the Convention & Visitors Fund of the City of Tulsa. Forty-five percent (45%) of all taxes levied and collected pursuant to this chapter shall be deposited into this fund. This fund shall be used to market and promote tourism and the use of convention facilities in the City of Tulsa, and to serve the needs of visitors and encourage their economic activity in the City of Tulsa.

**C.** There is hereby established a special fund to be known as the Convention & Tourism Facilities Fund of the City of Tulsa. Forty-eight and five tenths percent (48.5%) of all taxes levied and collected pursuant to this chapter, together with all income derived from the investment of the taxes referred to in this Section, shall be deposited into the fund. This fund shall be used and expended by the City of Tulsa to construct, reconstruct, operate, maintain, and repair buildings and facilities to foster the development of the City as a convention and tourist destination, and to acquire land in connection therewith.

**D.** There is hereby established a special fund to be known as the Economic Development Fund of the City of Tulsa. Four and five-tenths percent (4.5%) of all taxes levied and collected pursuant to this chapter shall be deposited into the fund. This fund shall be used and expended to research, adopt, and implement plans, policies and proposals to facilitate the economic development of the City of Tulsa.

**E.** Actual disbursements shall be made only by warrants drawn, approved, and executed as required for other disbursements by the City.

*(Ord. Nos. 15305, 16591, 17408; Ord. No. 23112, § 1, 5-1-2014; Ord. No. 23294, § 1, 5-21-2015; Ord. No. 24107, § 1, 4-3-2019; Ord. No. 24643, § 1, 7-21-2021)*

**Section 119. Effective date.**

This code shall become effective on and after November 1, 1980, subject to approval of a majority of the registered voters of the City of Tulsa, Oklahoma, voting on same in manner prescribed by 11 O.S.Supp.1980, §§ 16-101 and 16-112.

*(Ord. No. 14846)*

**Section 120. Perpetuation of tax.**

In the event the provisions of this chapter relating to the Economic Development Fund or the Convention Fund be declared invalid by any court of competent jurisdiction, the tax

levied pursuant to this chapter shall continue to be levied and collected for general revenue purposes; and it is specifically declared to be the intention of the governing body of the City of Tulsa that the tax is to be levied and collected, notwithstanding the invalidity of any other section of this chapter.

# TITLE 45 CITY OF TULSA USE TAX CODE

## Chapter 1. City of Tulsa Use Tax Code

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## CHAPTER 1. CITY OF TULSA USE TAX CODE

Section 100. Use tax levied.
Section 101. Exemptions.
Section 102. Time when due, returns, payment.
Section 103. Bracket system.
Section 104. Tax constitutes debt.
Section 105. Collection of tax by retailer or vendor.
Section 106. Collection by retailer or vendor maintaining a place of business out of state or both within and outside the state, permits.
Section 107. Revoking permits.
Section 108. Deductions allowed vendors or retailers of other states.
Section 109. Interest and penalties.
Section 110. Waiver of interest and penalties.
Section 111. Erroneous payments.
Section 112. Fraudulent returns.
Section 113. Records confidential.
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### Section 100. Use tax levied.

There is hereby levied, for the storage, use or other consumption of tangible personal property purchased or brought into the City of Tulsa, a use tax of three and sixty-five one hundredths (3.65 or 3 65/100) percent of the purchase price of such property. Such tax shall be paid by every person storing, using or otherwise consuming within the City tangible personal property purchased or brought into the City. The tax levied herein shall be paid at the time of importation or storage of the property within the City and shall be assessed only on property purchased outside Oklahoma; provided, however, that the tax levied herein shall not be levied against tangible personal property intended solely for use outside the City but which is stored in the City pending shipment outside the City or which is temporarily retained in the City for the purpose of fabrication, repair, testing, alteration, maintenance or other service. Any person liable for payment of the tax authorized herein may deduct from such tax any local or municipal sales tax previously paid on such goods or services; provided, however, that the amount deducted shall not exceed the amount that would have been due if the taxes imposed by the City had been levied on the sale of such goods or services.

*(Ord. No. 16232; Ord. No. 22423, § 1, 4-28-20110, eff. 10-1-2011; Ord. No. 23020, § 1, 1-16-2014; Ord. No. 23574, § 1, 10-26-2016)*

### Section 101. Exemptions.

The provisions of this chapter shall not apply:

**A.** In respect to the use of an article of tangible personal property brought into the City by a nonresident individual visiting in this City for his or her personal use or enjoyment while within the City;

**B.** In respect to the use of tangible personal property purchased for resale before being used;

**C.** In respect to the use of any article of tangible personal property on which a tax equal to or in excess of that levied by both the Oklahoma use tax code and the City of Tulsa use tax code has been paid by the person using such tangible personal property in the City, whether such tax was levied under the laws of Oklahoma or any other state or municipality of the United States. If any article of tangible personal property has already been subjected to a tax by Oklahoma or any other state or municipality in respect to its sale or use in an amount less than the tax imposed by the Oklahoma use tax code and the City of Tulsa use tax code, the provisions of this chapter shall also apply to it by a rate measured by the difference only between the rate provided by both the Oklahoma use tax code and the City of Tulsa use tax code, and the rate by which the previous tax upon the sale or use was computed; provided, however, that no credit shall be given for taxes paid in another state or municipality if that state or municipality does not grant like credit for taxes paid in Oklahoma and the City of Tulsa;

**D.** In respect to the use of machinery and equipment purchased and used by persons establishing new manufacturing or processing plants in the City of Tulsa and machinery and equipment purchased and used by persons in the operation of manufacturing plants already established in the City; provided, however, that this exemption shall not apply unless such machinery and equipment is incorporated into and is directly used in the process of manufacturing property subject to taxation under the sales tax code for the City of Tulsa; the term "manufacturing plants" shall mean those establishments primarily engaged in manufacturing or processing operations and generally recognized as such;

**E.** In respect to the use of tangible personal property now specifically exempted from taxation under the sales tax code of the City;

**F.** In respect to the use of any article of tangible personal property brought into the City by an individual with intent to become a resident of this City where such personal property is for such individual's personal use or enjoyment;

**G.** In respect to the use of any article of tangible personal property used or to be used by commercial airlines or railroads; or

**H.** In respect to livestock purchased outside Oklahoma and brought into the City of Tulsa for feeding or breeding purposes, and which livestock is later resold.

### Section 102. Time when due, returns, payment.

The tax levied by this chapter is due and payable at the time and in the manner and form prescribed for payment of the state use tax under the use tax code of the state of Oklahoma.

### Section 103. Bracket system.

The bracket system guidelines established by the Oklahoma Tax Commission for the collection of sales taxes, including any amendment of same, are hereby adopted for convenience in collecting both the state of Oklahoma use tax and the City of Tulsa use tax. The use of the bracket system guidelines does not relieve the retailer or vendor from the duty and liability to remit to the tax collector an amount equal to the applicable percentage of the purchase price of such property as required by state law and these revised ordinances.

**Section 104. Tax constitutes debt.**

Such taxes, penalty and interest due hereunder shall at all times constitute a prior, superior and paramount claim as against the claims of unsecured creditors and may be collected by suit as any other debt.

**Section 105. Collection of tax by retailer or vendor.**

Every retailer or vendor maintaining places of business both within and outside the state of Oklahoma and making sales of tangible personal property from a place of business outside this state for use in this City shall, at the time of making such sales, collect the use tax levied by this chapter from the purchaser and give to the purchaser a receipt therefor in the manner and form prescribed by the Tax Commission, if the Tax Commission shall, by regulation, require such receipt. Each retailer or vendor shall list with the Tax Commission the name and address of all his agents operating in this City and the location of any and all distribution or sales houses or offices or other places of business in this City.

**Section 106. Collection by retailer or vendor maintaining a place of business out of state or both within and outside the state, permits.**

The Tax Commission may in its discretion, upon application, authorize the collection of the tax herein levied by any retailer or vendor not maintaining a place of business within this state but who makes sales of tangible personal property for use in this City and by the out-of-state place of business of any retailer or vendor maintaining places of business both within and outside Oklahoma and making sales of tangible personal property at such out-of-state place of business for use in this City. Such retailer or vendor may be issued, without charge, a permit to collect such taxes, by the Tax Commission, in such manner and subject to such regulations and agreements as it shall prescribe. When so authorized, it shall be the duty of such retailer or vendor to collect the tax upon all tangible personal property sold to his knowledge for use within this City. Such authority and permit may be canceled when at any time the Tax Commission considers that such tax can more effectively be collected from the person using such property in this City. Provided, however, that in all instances where such sales are made or completed by delivery to the purchaser within this City by the retailer or vendor in such retailer's or vendor's vehicle, whether owned or leased (not by common carrier), such sales or transactions shall continue to be subject to applicable City sales tax at the point of delivery; and the tax shall be collected and reported under taxpayer's sales tax permit number accordingly.

**Section 107. Revoking permits.**

Whenever any retailer or vendor not maintaining a place of business in this state, or both within and outside this state, and authorized to collect the tax herein levied, fails to comply with any of the provisions of this chapter, the Oklahoma use tax code or any order, rules or regulations of the Tax Commission, the Tax Commission may, upon notice and hearing as provided for in 68 O.S.1991, § 1408, by order revoke the use tax permit, if any, issued to such retailer or vendor, and if any such retailer or vendor is a corporation authorized to do business in this state may, after notice and hearing provided by state law, cancel such corporation's license to do business in this state and shall issue a new license only when such corporation has complied with the obligations under this chapter, the Oklahoma use tax code or any order, rules or regulations of the Tax Commission.

### Section 108. Deductions allowed vendors or retailers of other states.

Returns and remittances of the tax herein levied and collected shall be made to the Tax Commission at the time and in the manner, form and amount as prescribed for returns and remittances required by the Oklahoma use tax code; and remittances of tax collected hereunder shall be subject to the same discount as may be allowed by the Oklahoma use tax code for the collection of state use taxes.

### Section 109. Interest and penalties.

Title 68 O.S.Supp.1996, § 217, is hereby adopted and made a part of this chapter, and interest and penalties at the rates and in the amounts as therein specified are hereby levied and shall be applicable in cases of delinquency in reporting and paying the tax levied by this chapter; provided, however, that the failure or refusal of any retailer or vendor to make and transmit the reports and remittances of tax in the time and manner required by this chapter shall cause such tax to be delinquent. In addition, if such delinquency continues for a period of five (5) days, the retailer or vendor shall forfeit his claim to any discount allowed under this chapter.

### Section 110. Waiver of interest and penalties.

The interest or penalty or any portion thereof accruing by reason of a retailer's or vendor's failure to pay the City use tax herein levied may be waived or remitted in the same manner as provided for such waiver or remittance as applied in administration of the state use tax provided in 68 O.S.Supp.1996, § 220; and to accomplish the purposes of this section, the applicable provisions of Section 220 are hereby adopted by reference and made a part of this chapter.

### Section 111. Erroneous payments.

Refund of erroneous payment of the City use tax herein levied may be made to any taxpayer making such erroneous payment in the same manner and procedure, and under the same limitations of time, as provided for administration of the state use tax as set forth in 68 O.S.Supp.1996, § 227; and to accomplish the purpose of this section, the applicable provisions of Section 227 are hereby adopted by reference and made a part of this chapter.

### Section 112. Fraudulent returns.

In addition to all civil penalties provided by this chapter, the willful failure or refusal of any taxpayer to make reports and remittances herein required, or the making of any false and fraudulent report for the purpose of avoiding or escaping payment of any tax portion thereof rightfully due under this chapter shall be a misdemeanor offense, and upon conviction thereof, the offending taxpayer shall be punished by a fine of not more than Five Hundred Dollars ($500.00), excluding costs, fees, and assessments, and/or by imprisonment in the City jail for a period of no more than sixty (60) days. Each day a violation exists shall constitute a separate violation.

*(Ord. No. 22774, § 1, 10-4-2012)*

### Section 113. Records confidential.

The confidential and privileged nature of the records and files concerning the administration of the City use tax is legislatively recognized and declared and, to protect the same, the

provisions of 68 O.S.Supp.1996, § 205 of the state uniform tax procedure and each subsection thereof, are hereby adopted by reference and made fully effective and applicable to the administration of the City use tax as if herein set forth in full.

**Section 114. Provisions cumulative.**

The provisions hereof shall be cumulative and in addition to any and all other taxing provisions of the City ordinances.

**Section 115. Definitions.**

The definitions of words, terms and phrases contained in the Oklahoma use tax code, 68 O.S.Supp.1996, § 1401, are hereby adopted by reference and made a part of this chapter. In addition thereto, the following words and terms shall be defined as follows:

**A. City** shall mean the City of Tulsa, Oklahoma; and

**B. Transaction** shall mean sale.

**Section 116. Tax collector defined.**

The term "tax collector" as used herein means the department of the City government or the official agency of the state, duly designated according to law or contract authorized by law, to administer the collection of the tax herein levied.

**Section 117. Classification of taxpayers.**

For the purpose of this chapter, the classification of taxpayers hereunder shall be as prescribed by state law for purposes of the Oklahoma use tax code.

**Section 118. Subsisting state permits.**

All valid and subsisting permits to do business issued by the Tax Commission pursuant to the Oklahoma use tax code are, for the purpose of this chapter, hereby ratified, confirmed and adopted in lieu of any requirement for an additional City permit for the same purpose.

**Section 119. Purposes of revenue.**

It is hereby declared to be the purpose of this chapter to provide revenues for the support of the functions of the municipal government of the City, and any and all revenues derived hereunder may be expended by the governing body of the City for any purpose for which funds may be lawfully expended as authorized by the Charter of the City of Tulsa and the state of Oklahoma. Subject to and consistent with the annual budget process as detailed in the Charter, 15% of the revenue generated by the use tax levied in Section 100 hereof, shall be deposited in the fund created by Title 43-K Tulsa Revised Ordinances to be used to pay debt service on indebtedness issued in support of the projects and purposes set forth therein. The deposit of use taxes authorized herein shall not continue past the retirement of the subject indebtedness, unless specifically extended by ordinance.

*(Ord. No. 23574, § 2, 10-26-2016)*

**Section 120. Effective date.**

This code shall become effective on and after May 1, 1983.

*(Ord. No. 15580)*

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# TITLES 46—48 RESERVED

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# TITLE 49 ADMINISTRATIVE, PERMIT, AND LICENSE FEES*

**Chapter 1. General Administrative Fees**
**Chapter 2. Annual Permit Fees**
**Chapter 3. Building Permit Fees**
**Chapter 4. Electrical Permit Fees**
**Chapter 5. Mechanical Permit Fees**
**Chapter 6. Manufactured Homes Permit Fees**
**Chapter 7. Third Party Plan Review and Inspections**
**Chapter 8. Plumbing Permit Fees**
**Chapter 9. Infrastructure Development Permit Fees**
**Chapter 10. Special Event Permit Fees**
**Chapter 11. Reserved**
**Chapter 12. Stormwater Drainage Service Fees**
**Chapter 13. Water and Sanitary Sewer Fees**
**Chapter 14. Fire Prevention Code Fees**
**Chapter 15. Urban Design Permit Fees**
**Chapter 16. Utility Coordination Fees**
**Chapter 17. Planning and Zoning Fees**

*__Editor's note—__Ord. No. 24664, § 1, adopted August 25, 2021, amended Title 49 in its entirety to read as herein set out. Former Title 49, Chs. 1—16, pertained to similar subject matter. See Code Comparative Table for complete derivation.

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## CHAPTER 1. GENERAL ADMINISTRATIVE FEES

Section 100. Uniform Building Code commission fees.
Section 101. Code compliance process meeting fee.
Section 102. Application of general administrative fees.
Section 103. Permit system maintenance fee.
Section 104. Permit cancellation fee.
Section 105. Penalty fee for work started prior to obtaining a permit.
Section 106. Addendums, resubmitted, or revised plans fee.
Section 107. Minimum permit fee.
Section 108. Inspection fee.
Section 109. Reinspection fee.
Section 110. Off-duty recall inspection fee.
Section 111. Record retention fee.
Section 112. Failure to obtain approval prior to concealment or occupancy—Penalty.
Section 113. Continuation after stop work order—Penalty.
Section 114. Fee for appeal to Board of Appeals.
Section 115. Disposition of abandoned escrow deposits.
Section 116. Fees waived for governmental entities.
Section 117. System development fee.
Section 118. Payment of permit fees requiring plans review.
Section 119. Accounts for payment of fees.
Section 120. Replacement registration fee.
Section 121. Administrative review fee.
Section 122. Nuisance abatement extension fee.
Section 123. Nuisance and nuisance abatement administrative fees.
Section 124. Reinstatement of permits.

### Section 100. Uniform Building Code commission fees.

**A.** A fee of Four Dollars ($4.00) shall be collected pursuant to 59 O.S. Section 1000.25 on all building permits and/or construction permits, as defined therein, and upon the renewal of said permits. This fee is for all permits issued by the City which authorize work governed by codes within the purview of the Oklahoma Uniform Building Code Commission (OUBCC) in compliance with 59 O.S. Section 1000.25.

**B.** All fees collected pursuant to this ordinance shall be deposited into a separate account for that purpose.

**C.** All fees collected for the Uniform Building Code Commission pursuant to this ordinance, shall be remitted by the City monthly directly to the State Treasury for deposit into the Oklahoma Uniform Building Code Commission Revolving Fund created pursuant to 59 O.S. Section 1000.28.

**D.** As further provided in 59 O.S. Section 1000.25, an administrative fee of Fifty Cents ($0.50) shall be collected by the City on all building permits and/or construction permits, which are the subject matter hereof, and on the renewal of said permits, and said fees shall be retained by the City as reimbursement for the administrative expenses incurred to meet the obligations of collecting, accounting for, and remitting these fees on behalf of the OUBCC.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 101. Code compliance process meeting fee.

A meeting between City of Tulsa staff and a development project team for the purpose of examining and discussing the project team's design code concepts and/or for the purpose of developing code compliant design concepts is highly recommended. If a code compliance development meeting is requested by any party, including the owner, the fee for such meeting shall be Four Hundred Dollars ($400.00)

Infrastructure Predevelopment Meeting - see Section 901.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 102. Application of general administrative fees.

The fees codified in this chapter are imposed and shall be applied to each permit, license, certificate, and registration governed by this Title 49, unless specifically provided otherwise in any individual chapters. The fees established in this Title 49, Tulsa Revised Ordinances, shall supersede and replace any fees codified in Titles 11, 11-A, 11-C; 14, 35, 50, 51, 52, 55, 56, and 59, Tulsa Revised Ordinances, unless expressly provided otherwise, herein.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 103. Permit system maintenance fee.

A surcharge of Five Dollars ($5.00) shall be charged on each permit, license, certificate, or registration processed.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 104. Permit cancellation fee.

When a written request to cancel a permit is received within one hundred eighty (180) days of the last permit activity, a Ninety Dollar ($90.00) cancellation fee shall be assessed in addition to a Sixty-Four Dollar ($64.00) fee for each inspection that has been performed or review completed which was not previously covered by an application fee. Permit fees will be refunded with the exception of the administrative fees pursuant to Chapter 1 of this title and the permit application fee as assessed in Chapter 3 of this title. License, registration, or certificate fees shall be non-refundable.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 105. Penalty fee for work started prior to obtaining a permit.

If work is started prior to the issuance of any required permit, a penalty fee shall be charged in addition to the regular permit fee. The penalty fee shall be Two Hundred Fourteen Dollars ($214.00) or three times (3x) the cost of the regular fee, whichever is greater. The payment of such a penalty fee shall not relieve any person from fully complying with all the requirements of this Code, nor shall such payment exempt the person from further penalty prescribed by ordinance.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 106. Addendums, resubmitted, or revised plans fee.

All plans submitted as addendums or plans required to be resubmitted or revised pursuant to any code regulated by this title shall be assessed with an additional fee of One Hundred Dollars ($100.00) This fee shall be non-refundable.

**Exception:** This section shall not be applicable to plans or addendums submitted pursuant to Chapter 9 of this title.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 107. Minimum permit fee.

A minimum fee of Eighty Dollars ($80.00) shall apply to any permit.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 108. Inspection fee.

The cost of each permit shall cover inspections unless specified otherwise. For sections where the number of inspections is specified, any additional inspections requested, including partials and reinspection's, shall be made at the minimum rate of Sixty-Two Dollars ($62.00) per inspection.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 109. Reinspection fee.

For any permit where a re-inspection is required due to faulty work or work not completed or ready for inspection when the code official is notified to make such inspection, each re-inspection shall be assessed a fee of Seventy-Five Dollars ($75.00) unless otherwise provided for in this title. All re-inspection fees shall be paid prior to the re-inspection being made.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 110. Off-duty recall inspection fee.

Any inspection requiring a code official or inspector who is off duty to be recalled to duty that is not continuous with the inspector's regular work period shall be subject to a recall inspection fee assessed, paid, and collected at a rate of One Hundred Fifty Dollars ($150.00) per hour, with a minimum assessed inspection time of two (2) hours.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 111. Record retention fee.

In addition to any permit, license, certificate, or registration fee or minimum fee, a fee of Two Dollars ($2.00) per page shall be charged for record retention.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 112. Failure to obtain approval prior to concealment or occupancy—Penalty.

Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the code official. Work that is covered or concealed, placed in operation, or a structure that is occupied without approval of the code official shall be in violation of the code and shall be penalized by the imposition of a civil fine in the amount of One Hundred Dollars ($100.00) for each occurrence and may result in a hearing before the applicable Appeals Board. Each day that a violation continues shall be deemed a

separate offense. The assessment or payment of this penalty shall not relieve any person from fully complying with all requirements imposed by law, nor shall such payment exempt the person from further penalty provided by law.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 113. Continuation after stop work order—Penalty.**

Any person who shall continue any work in or about the structure after having been served with a stop-work order, except such work as any such person is directed to perform to remove a violation or unsafe condition, shall be punished by a civil fine in the amount of One Thousand Dollars ($1,000.00) for each occurrence. Each day that a violation continues shall be deemed a separate offense.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 114. Fee for appeal to Board of Appeals.**

A fee of Two Hundred Fifty Dollars ($250.00) shall be charged upon the filing of an application by any person, firm, corporation, limited liability company, or other entity for an appeal to the Board of Appeals from any decision of a code official. Upon a successful appeal to either the Board of Appeals or the City Council, fifty percent (50%) of this fee shall be refunded to the applicant.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 115. Disposition of abandoned escrow deposits.**

Whenever monies deposited into an escrow account held by the City pursuant to any section of Titles 11, 11-A, 11-C, 14, 35, 50, 51, 52, 55, 56, and 59, Tulsa Revised Ordinances, and the monies have not been expended and the account has been inactive for one (1) year or more from the date of the last charge or deposit, it shall be presumed abandoned and shall be disposed of pursuant to 11 O.S. Supp. 2016, § 22-136, as amended.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 116. Fees waived for governmental entities.**

Unless specified otherwise in a specific section, all permit or inspection fees shall be collected by the City of Tulsa on any public work or improvement performed by or for any city, county, state, or federal governmental entity, unless approved by the Director of Development Services or the Director's designated representative of a written request for an exemption submitted by the entity showing just cause, alternative consideration or proposing an exchange of services in lieu of the fee. Such an exemption shall not constitute waiver of any ordinance requiring the issuance of such permits or the performance of specified inspections, and it shall apply only to such permits or certificates of inspection issued directly to the governmental entity involved. Fees-in-lieu of detention, penalty fees, and after hour inspection fees shall not be waived.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 117. System development fee.**

In addition to any license, permit, certificate, or registration fee, or minimum fee, a fee of Five and 50/100 Dollars ($5.50) plus eight percent (8%) of the license, permit, certificate, or registration fee shall be charged for continued system development and maintenance.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 118. Payment of permit fees requiring plans review.**

Upon acceptance of an application for a permit, an application fee shall be paid. The application, and all associated required documents and plans shall then be reviewed. Upon approval, the applicant shall be notified that the permit is approved and advised of what remaining fees are due. For any permit to be valid, it shall have been paid for in full and posted at the job site prior to beginning construction. Payments for permits shall be due upon notification to an applicant that the permit has been approved and is ready for issuance. Any permit not paid for within thirty (30) days after notification may be deemed void and any application fee shall then be forfeited.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 119. Accounts for payment of fees.**

Any person or entity may deposit with the City of Tulsa monies to be used for permit or license related fees. Such deposit shall authorize the City to use the funds therein for the payment of any and all permits, inspection, or penalty fees. Such funds shall be held in trust on behalf of the person or entity in a non-interest-bearing account. Any account that remains inactive for more than twelve (12) months will be disposed of in accordance with Section 115 of this ordinance.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 120. Replacement registration fee.**

In the event any registrant's registration card is lost or destroyed, a duplicate may be obtained by submitting a signed, written request and payment of a Twenty-Three Dollars ($23.00) replacement fee.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 121. Administrative review fee.**

Any person, firm, corporation, or limited liability company requesting an administrative review for the purpose of considering an alternative construction solution for "equivalency" to the code shall pay a fee of Two Hundred and Eighty-Two Dollars ($282.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 122. Nuisance abatement extension fee.**

An extension of fourteen (14) days in which to self-abate the nuisance may be applied for by paying a nuisance abatement extension fee of Sixty-Four Dollars ($64.00) per extension. Qualifications for the extension are specified in Title 24, Section 201.F.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## Section 123. Nuisance and nuisance abatement administrative fees.

Administrative fees chargeable for nuisance abatement shall be as follows:

| | |
|---|---|
| Initial nuisance | $300.00 |
| Summary abatement | $300.00 |
| Demolition | $500.00 |

Said fees shall be recoverable against the party maintaining, operating, or permitting a nuisance.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## Section 124. Reinstatement of permits.

Any person, firm, corporation, or limited liability company desiring to have their expired, canceled, or voided permit reinstated must provide a written request showing just cause. If approved by the Director, code official, or designee, the permit will be reinstated and a fee of One Hundred Dollars ($100.00) shall be charged.

*(Ord. No. 25351, § 1, 7-17-2024)*

## CHAPTER 2. ANNUAL PERMIT FEES

Section 200. Annual permit fees.
Section 201. Annual building permit.
Section 202. Annual plumbing permit.
Section 203. Annual mechanical permit.
Section 204. Annual electrical permit.

### Section 200. Annual permit fees.

Pursuant to Title 50, Tulsa Revised Ordinances, the fee for all annual permits issued to any qualified person, firm, corporation, limited liability company, or other entity owning and operating a commercial, industrial, utility, processing, or institutional plant within the City of Tulsa shall be computed on the basis of the gross square footage of the building(s) or structure(s) for which the annual permit is issued. The fees established in this Title 49, Tulsa Revised Ordinances, Chapter 2 shall supersede and replace any fees codified in Title 50, Tulsa Revised Ordinances. In addition to the fees listed below, administrative fees pursuant to Chapter 1 of this title shall be required.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 201. Annual building permit.

The fee for all annual building permits shall be computed on the basis of the gross square footage of the applicable building(s) or structure(s) at a rate of Two Dollars ($2.00) per one thousand (1,000) square feet.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 202. Annual plumbing permit.

The fee for all annual plumbing permits shall be computed on the basis of the gross square footage of the applicable building(s) or structure(s) at a rate of Two Dollars ($2.00) per one thousand (1,000) square feet.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 203. Annual mechanical permit.

The fee for all annual mechanical permits shall be computed on the basis of the gross square footage of the applicable building(s) or structure(s) at a rate of Two Dollars ($2.00) per one thousand (1,000) square feet.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 204. Annual electrical permit.

The fee for all annual electrical permits shall be computed on the basis of the gross square footage of the applicable building(s) or structure(s) at a rate of Two Dollars ($2.00) per one thousand (1,000) square feet.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

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## CHAPTER 3. BUILDING PERMIT FEES

Section 300. Building permit fees—General.
Section 301. Building permit application fee.
Section 302. Building permit fee.
Section 303. Certificates of occupancy and zoning clearance fees.
Section 304. Carport permit fee.
Section 305. Expediting fee.
Section 306. Storm shelter permit fee.
Section 307. Fire suppression system permits application fee.
Section 308. Fire suppression system permit fee.
Section 309. Fire suppression hood permit fee.
Section 310. Fire alarm system permits application fee.
Section 311. Fire alarm system permit fee.
Section 312. Fire standpipe system permits application fee.
Section 313. Fire standpipe system permit fee.
Section 314. Demolition fee and bond.
Section 315. Tent permit fee.
Section 316. Special assembly permit fee.
Section 317. Sign permit fee.
Section 318. Temporary residential use permit fee.
Section 319. Moving of buildings and structures application fee.
Section 320. Moving of buildings and structures permit fee.
Section 321. Moving an oversized building permit fee.
Section 322. House moving cash deposit.
Section 323. Fee for moving buildings or structures from outside the city limits.
Section 324. House mover's bond and insurance.
Section 325. House mover's escort fee.
Section 326. House mover's license fee.
Section 327. Professional home builder's registration fee.

### Section 300. Building permit fees—General.

The fees for all building permits issued pursuant to Title 51, Tulsa Revised Ordinances, shall be as established in this Title 49, Tulsa Revised Ordinances, Chapter 3. The fees established in this chapter shall supersede and replace any fees codified in Title 51, Tulsa Revised Ordinances, Chapters 1 through 5. In addition to the fees listed below, administrative fees pursuant to Chapter 1 of this title shall be required.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 301. Building permit application fee.

An application fee shall be charged for each building permit. The building permit application fee shall be based on the declared valuation of the construction, as determined by the following schedule:

| Declared Valuation | Fee |
|---|---|
| $0 to $15,000.00 | $64.00 |
| $15,000.01 to $100,000.00 | $98.50 |

| Declared Valuation | Fee |
|---|---|
| Above $100,000.00 | $0.97/$1,000 Value |

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 302. Building permit fee.

A. A building permit fee shall be assessed for each building permit issued. Such fee shall be decreased by the amount of any previously paid building permit application fee. A building permit fee shall be based on the value of the construction, as determined by the following schedule:

| Estimated Valuation | Fee |
|---|---|
| $0 to $5,000.00 | $133.00 |
| $5,000.01 to $40,000.00 | $213.00 |

**B.** For estimated valuation in excess of Forty Thousand Dollars ($40,000.00) but less than or equal to One Hundred Fifty Thousand Dollars ($150,000.00), calculated in One Thousand Dollar ($1,000.00) increments to the closest One Thousand Dollars ($1,000.00), the fee shall be Six Dollars ($6.00) per thousand of the estimated valuation.

**C.** For estimated valuation in excess of One Hundred Fifty Thousand Dollars ($150,000.00), calculated in One Thousand Dollar ($1,000.00) increments to the closest One Thousand Dollars ($1,000.00), the additional fee shall be at the rate of Three Dollars ($3.00) per thousand of the estimated valuation above One Hundred Fifty Thousand Dollars ($150,000.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 303. Certificates of occupancy and zoning clearance fees.

**A.** Certificate of occupancy fee for a new building with an associated building permit ..... $70.00

**B.** Residential certificate of occupancy associated with a new single-family residence, new duplex, or new townhouse ..... $34.00

**C.** Certificate of occupancy fee for existing buildings or change in use only... $384.00

**D.** Temporary or partial certificate of occupancy ..... $367.00

**E.** Certificate of occupancy update..... $384.00

**F.** Zoning clearance permit fee for any construction or for a site with or without improvements (commercial)..... $92.00

**G.** Zoning clearance permit fee for construction or for a site with or without improvements (residential) ..... $75.50

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 304. Carport permit fee.

The fee for a carport permit shall be Ninety-Eight Dollars ($98.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 305. Expediting fee.

In addition to the permit fee, a nonrefundable fee for expediting permits shall be:

**A.** Professional home builders ..... $121.00

**B.** Residential fast track ..... $500.00

**C.** Commercial priority review (interior remodel with no change of use) ..... $500.00

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024; Ord. No. 25572, § 1, 5-21-2025)*

### Section 306. Storm shelter permit fee.

Storm shelter permit fee shall be a flat fee with no other administrative, zoning, or watershed fees applicable with the exception of Section 100, Uniform Building Code Commission fees.

**A.** Indoor storm shelter ..... $88.00

**B.** Outdoor storm shelter ..... $132.00

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 307. Fire suppression system permits application fee.

**A.** The application fee for an automatic fire suppression system shall be Seventy-Five Dollars ($75.00). A permit for the installation of the fire suppression system shall not be issued by a code official until the plans have been approved by the Fire Marshal.

**Exception:** A permit for five (5) or less sprinkler heads may be issued with approval via telephone without any application fee or plans review.

**B.** A code official shall not issue a permit for installation of an automatic fire suppression system until the person, firm, corporation, limited liability company, or other entity installing the same shall have on file with the City of Tulsa a surety bond in the amount of Two Thousand Five Hundred Dollars ($2,500.00). Such bond shall be in a form satisfactory to the City, guaranteeing payment of all obligations and guaranteeing installation in accordance with the provisions of Title 51, Tulsa Revised Ordinances.

**C.** No person, firm, or corporation shall install fire suppression systems unless licensed as provided in 59 O.S. 2001, §§ 1800.1, et seq., as amended, and the rules and regulations adopted pursuant to 59 O.S. 2001, §§ 1800.1, et seq. The fee for such license shall be pursuant to Chapter 14, Section 1450 of this title.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 308. Fire suppression system permit fee.

The fee for a fire suppression system permit shall be based upon the number of sprinkler heads involved. The following fees shall include a maximum of four (4) inspections, unless otherwise indicated:

| No. of Heads | Fee |
|---|---|
| 1—5 (One (1) inspection) | $113.00 |
| 6—20 (Two (2) inspections) | $157.00 |
| 21—100 (Two (2) inspections) | $225.00 |
| 101—200 (Three (3) inspections) | $276.00 |
| 201—300 | $313.00 |
| 301—400 | $419.50 |

| No. of Heads | Fee |
|---|---|
| 401—500 | $519.00 |
| 501—600 | $625.00 |
| 601—750 | $781.00 |

For permits issued for systems containing more than Seven Hundred Fifty (750) heads, the fee shall be Seven Hundred Eighty-One Dollars ($781.00), plus Eighty-Five Cents ($0.85) per additional head, with one (1) additional inspection included for each One Hundred Twenty-Five (125) heads over Seven Hundred Fifty (750).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 309. Fire suppression hood permit fee.

The fee for a fire suppression hood permit shall be Seventy-Three and 75/100 Dollars ($73.75) per hood.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 310. Fire alarm system permits application fee.

**A.** An application fee of Seventy-Five Dollars ($75.00) shall be charged for each fire alarm system permit. A permit for the installation of the fire alarm system shall not be issued by a code official until the plans have been approved by the Fire Marshal.

**Exception:** A permit for five (5) or less fire alarm devices, not including the panel, may be issued with approval via telephone without any application fee or plans review.

**B.** No person, firm, or corporation shall install fire alarm systems unless licensed as provided in 59 O.S. 2001, §§ 1800.1, et seq., as amended, and the rules and regulations adopted pursuant to 59 O.S. 2001, §§ 1800.1, et seq. The fee for such license shall be pursuant to Chapter 14, Section 1450 of this title.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 311. Fire alarm system permit fee.

The fee for a fire alarm system permit shall be based upon the number of fire alarm devices involved. The following fees shall include a maximum of four (4) inspections, unless otherwise indicated:

| | |
|---|---|
| 1—5 (One (1) inspection) | $113.00 |
| 6—20 (Two (2) inspections) | $157.00 |
| 21—100 (Two (2) inspections) | $225.00 |
| 101—200 (Three (3) inspections) | $419.00 |
| 201—300 | $625.00 |
| 301—400 | $830.00 |
| 401—500 | $1,036.00 |
| 501—600 | $1,245.00 |
| 601—750 | $1,550.00 |

For permits issued for systems containing more than Seven Hundred Fifty (750) devices, the fee shall be One Thousand Five Hundred Fifty Dollars ($1,550.00), plus One Dollar and 75/100 ($1.75) per additional device, with one (1) additional inspection included for each One Hundred Twenty-Five (125) devices over Seven Hundred Fifty (750).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

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### Section 312. Fire standpipe system permits application fee.

An application fee of Seventy-Five Dollars ($75.00) shall be assessed for each fire standpipe system permit.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 313. Fire standpipe system permit fee.

The fee for a fire standpipe system permit shall be Forty-Three and 50/100 Dollars ($43.50) per standpipe per floor.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 314. Demolition fee and bond.

**A.** The fee for a permit to demolish any building or structure, or any portion of a building or structure, shall be One Hundred Thirty-Three Dollars ($133.00). See Chapter 13 Section 1302 of this Title for the fees associated with the required sewer plug permit.

**B.** The amount of bond required for protecting owners adjacent to a permitted demolition from damage shall be in the minimum amount of Five Thousand Dollars ($5,000.00), provided that this amount may be increased by the code official, if in the opinion of the code official the location of the building to be demolished or destroyed requires a larger bond. The code official, or designated representative, may waive the requirement of bond if the official is satisfied that the particular building or structure can be demolished or destroyed without damage to adjoining buildings or properties.

**C.** No person, firm, or corporation shall be issued a demolition permit until such time the proof of asbestos inspection has been submitted as required by the state of Oklahoma Department of Environmental Quality. Excluded from the requirements of this subsection C are privately owned residential structures having four (4) or fewer dwelling units.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 315. Tent permit fee.

Tent permit fee shall be Ninety Dollars ($90.00) for the first tent, plus Twenty-Nine Dollars ($29.00) for each additional tent on the same permit and on the same site.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 316. Special assembly permit fee.

For each permit allowing a special assembly or amusement on private property in buildings not designed for assembly, amusement, and/or the number of occupants requested shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 317. Sign permit fee.

No permit required for any sign work shall be issued and no sign for which such permit is required shall be erected unless the person, firm, corporation, limited liability company, or other entity erecting it shall have paid all applicable fees designated below:

**A.** Minimum sign fee ..... $81.00

**B.** Application fee(s): Each applicant for an outdoor advertising sign or business sign shall be charged a fee, when an application is made, which shall be non-refundable and shall be counted as part of the total sign permit fee upon issuance of the permit ..... $81.00

**C.** Outdoor advertising signs: zoning clearance and plan review fee ..... $464.00

**D.** Business signs: zoning clearance and plan review fee ..... $190.00

**E.** Interior electrical sign ..... $190.00

**F.** Border neon sign ..... $190.00

**G.** Inflatable non-rigid or tethered balloon ..... $127.00

**H.** Temporary sign ..... $127.00

**I.** Remove and rehang (same size and same location)..... $127.00

**J.** Sign inspections or reviews requiring no application fee or minimum sign fee:

**1.** Promotional business sign ..... $81.00

**2.** Remove only ..... $81.00

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 318. Temporary residential use permit fee.

The permit fee for the temporary residential occupancy of a building or structure, or part thereof, shall be One Hundred Sixty-Six and 50/100 Dollars ($166.50), payable when the permit is issued.

*(Ord. No. 24664, § 1, 8-25-2021)*

### Section 319. Moving of buildings and structures application fee.

The application fee for moving any building or structure from one lot to another over public right-of-way shall be Eighty-One Dollars ($81.00). Such fee shall be non-refundable and shall be counted as part of the total permit fee upon issuance of the permit.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 320. Moving of buildings and structures permit fee.

The permit fee for moving any building or structure from one lot to another over public right-of-way shall be Two Hundred Forty-Seven Dollars ($247.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 321. Moving an oversized building permit fee.

In addition to all other permit fees, a fee of Three Hundred Eighty-Four Dollars ($384.00) shall be assessed for the moving of any oversized building or structure over any public right-of-way, as defined in Title 51, Chapter 4, Section 1303.12.1, Tulsa Revised Ordinances.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 322. House moving cash deposit.**

Pursuant to Title 51, Chapter 4, Tulsa Revised Ordinances, Section 1303.4, prior to the issuance of a house mover license, the license applicant shall deposit with the City of Tulsa One Thousand Dollars ($1,000.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 323. Fee for moving buildings or structures from outside the city limits.**

Pursuant to Title 51, Chapter 4, Tulsa Revised Ordinances, Section 1303.14, a license applicant for a permit to move a building or structure from a location outside the corporate limits into the City of Tulsa shall be assessed an inspection fee equal to Eighty-Four Dollars ($84.00), plus Sixty-Two Cents ($0.62) per mile for the round trip to and from the structure and 175 East 2nd Street, Tulsa, Oklahoma for the sole purpose of measuring the structure.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 324. House mover's bond and insurance.**

**A.** Pursuant to Title 51, Chapter 4, Tulsa Revised Ordinances, Section 1303.3, the bond required to be given by a licensed house mover for the benefit of the City and any private person or corporation sustaining damages under the conditions of such bond shall be in the amount of Ten Thousand Dollars ($10,000.00).

**B.** Pursuant to Title 51, Chapter 4, Tulsa Revised Ordinances, Section 1303.5, the amount of general liability insurance which a house mover shall provide to indemnify the City and the public for claims arising out of work to be performed shall be not less than Ten Thousand Dollars ($10,000.00) for bodily injury to or death of one (1) person in one (1) accident; in an amount not less than Twenty-Five Thousand Dollars ($25,000.00) for personal injury or death of more than one (1) person in one accident; and in an amount not less than Five Thousand Dollars ($5,000.00) for property damage. The policy providing such coverage shall not be canceled or modified without giving at least thirty (30) days' written notice to the City of Tulsa.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 325. House mover's escort fee.**

Pursuant to Title 51, Chapter 4, Tulsa Revised Ordinances, Section 1303.13.3, an applicant for a permit to move a building or structure shall have a Police Escort. Associated fees incurred with such service will be handled through the Tulsa Police Department, separate from the moving permit fees. City of Tulsa personnel will provide escort on an "as needed" basis as determined by City of Tulsa Traffic Engineering. When this escort is required, the house mover will be assessed a fee equal to Sixty-Four Dollars ($64.00) per hour, per escort, with a two-hour minimum, plus Sixty-Two Cents ($0.62) per mile per round trip traveled for the move of each building or structure requiring a permit.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## Section 326. House mover's license fee.

Pursuant to Title 51, Chapter 4, Tulsa Revised Ordinances, Section 1303, any person engaging in house moving shall pay a license fee of One Hundred Seventy-Eight dollars ($178.00) per annum. All house mover certificates of registration shall expire on the last day of the house mover's birth month.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## Section 327. Professional home builder's registration fee.

Any builder desiring to apply for permits as a Professional Home Builder shall register as a Professional Home Builder in accord with the Initial Registration or Annual Registration Renewal guidelines of the Professional Home Builder Program. The builder shall pay an annual registration fee of One Hundred Seventy-Eight Dollars ($178.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## CHAPTER 4. ELECTRICAL PERMIT FEES

Section 400. Electrical permit fees—General.
Section 401. Residential (one- and two-family dwellings)—New construction and additions only.
Section 402. Commercial or industrial—New construction, additions, and major remodels only.
Section 403. Low density projects such as parking garages, shell buildings, and warehouses.
Section 404. Other electrical work.
Section 405. Registration fees.

### Section 400. Electrical permit fees—General.

The fees for all electrical permits, licenses, certificates, and registrations issued pursuant to Title 52, Tulsa Revised Ordinances shall be as established in this Title 49, Tulsa Revised Ordinances, Chapter 4. The fees established in this chapter shall supersede and replace any fees codified in Title 52, Tulsa Revised Ordinances, Chapter 1. In addition to the fees listed below, administrative fees pursuant to Chapter 1 of this Title shall be required.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 401. Residential (one- and two-family dwellings)—New construction and additions only.

**A.** Electrical permit fees for residential one- and two-family dwellings, involving new construction and additions only, shall be a total of the electric service fee, as determined in Subsection 404.A of this chapter, plus a base fee determined by the size of the construction designated below:

| | |
|---|---|
| 1—2,000 sq. ft. | $230.00 |
| 2,001—6,000 sq. ft. | $293.00 |
| Each additional 1,000 sq. ft. | $58.00 |

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 402. Commercial or industrial—New construction, additions, and major remodels only.

**A.** Electrical permit fees for commercial or industrial construction, involving new construction only, shall be a total of the electric service fee, as determined in Subsection 404.A of this chapter, plus a base fee determined by the size of the construction designated below:

| | |
|---|---|
| 1—2,500 sq. ft. | $293.00 |
| 2,501—10,000 sq. ft. | $344.00 |
| 10,001—25,000 sq. ft. | $562.00 |
| 25,001—50,000 sq. ft. | $779.00 |
| 50,001—75,000 sq. ft. | $997.00 |
| 75,001—100,000 sq. ft. | $1,179.00 |
| Each additional 5,000 sq. ft. | $64.00 |

**B.** Electrical permit fees for commercial or industrial construction, involving additions, and major remodels only, shall be a total of the electric service fee (when required), as determined in Subsection 404.A of this chapter, plus a base fee determined by the size of the construction designated below:

| | |
|---|---|
| 1—2,500 sq. ft. | $189.00 |
| 2,501—10,000 sq. ft. | $207.00 |
| 10,001—25,000 sq. ft. | $344.00 |
| 25,001—50,000 sq. ft. | $476.00 |
| 50,001—75,000 sq. ft. | $607.00 |
| 75,001—100,000 sq. ft. | $745.00 |
| Each additional 5,000 sq. ft. | $64.00 |

**Note:** On remodel projects having less than fifty percent (50%) of the space in the area involved, the fees shall be as provided in Section 404 of this chapter.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 403. Low density projects such as parking garages, shell buildings, and warehouses.

Electrical permit fees for low density projects such as parking garages, shell buildings, and warehouses shall be a total of the electric service fee (when required), as determined in Subsection 404.A of this chapter, plus a base fee determined by the size of the construction designated below:

| | |
|---|---|
| 1—2,500 sq. ft. | $144.00 |
| 2,501—10,000 sq. ft. | $161.00 |
| 10,001—25,000 sq. ft. | $305.00 |
| 25,001—50,000 sq. ft. | $453.00 |
| 50,001—75,000 sq. ft. | $593.00 |
| 75,001—100,000 sq. ft. | $739.00 |
| Each additional 5,000 sq. ft. | $64.00 |

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 404. Other electrical work.

The following fees shall apply to residential, commercial, or industrial work not covered in Sections 401 through 403 of this chapter:

| | | |
|---|---|---|
| **A.** | Electrical service (first 100 amps) | $98.00 |
| | Each additional 100 amps, or portion thereof | $18.00 |
| **B.** | Swimming pools | $235.00 |
| **C.** | Generator | $235.00 |
| | Each additional | $118.00 |
| **D.** | HVAC unit | $81.00 |
| | Each additional | $11.89 |

| | | |
|---|---|---|
| **E.** | Transformer | $81.00 |
| | Each additional | $11.89 |
| **F.** | Motor | $81.00 |
| | Each additional | $11.89 |
| **G.** | Elevator/escalator | $81.00 |
| | Each additional | $11.89 |
| **H.** | Electrical equipment: | |
| | 1—25 | $81.00 |
| | Each additional | $2.68 |
| **I.** | Reconnect fee | $81.00 |

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 405. Registration fees.**

**A.** All Electrical Contractor certificates of registration shall expire on the last day of the contractor's birth month.

| | |
|---|---|
| Electrical Contractor | $178.00 |

**B.** Renewal applications for electrical contractors may be made in person, by mail to the Permit Center, or online at the Citizen Self Service portal. A photocopy of the current state license shall accompany the application form and the check or money order for the required fee; online renewal can be paid by MasterCard or Visa.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

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## CHAPTER 5. MECHANICAL PERMIT FEES

Section 500. Mechanical permit fees—General.
Section 501. Fee schedule.
Section 502. Registration fees.

### Section 500. Mechanical permit fees—General.

The fees for all mechanical permits, licenses, certificates, and registrations issued pursuant to Title 59, Tulsa Revised Ordinances, shall be as established in Title 49, Tulsa Revised Ordinances, Chapter 5. The fees established in this chapter shall supersede and replace any fees codified in Title 59, Tulsa Revised Ordinances, Chapters 1 and 2. In addition to the fees listed below, administrative fees pursuant to Chapter 1 of this title shall be required.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 501. Fee schedule.

Permit and inspection fees for all mechanical work shall be as set forth in this section.

| | | |
|---|---|---|
| **A.** | Gas piping per meter | $41.00 |
| | Plus, per opening | $2.68 |
| **B.** | Heating appliance, each | $35.00 |
| **C.** | Air compressors and tanks, per receiver | $35.00 |
| **D.** | Boilers 200,000 BTU and above | $41.00 |
| **E.** | Refrigeration/chiller | $47.00 |
| **F.** | Hydronic piping | $41.00 |
| | Plus, hot, or chilled water piping, per opening | $2.68 |
| **G.** | Geothermal piping | $41.00 |
| **H.** | Duct systems | $35.00 |
| **I.** | Exhaust fan and/or vent, each | $18.00 |
| **J.** | Removal and replacement of rooftop units for purposes of re-roofing, flat fee | $35.00 |
| **K.** | Exhaust hood | $81.00 |
| **L.** | Paint booth | $81.00 |
| **M.** | VAV box | $35.00 |
| **N.** | Other mechanical equipment not specified above, each | $35.00 |

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 502. Registration fees.

**A.** The following fees shall be assessed for the certificates of registration listed and their renewals:

| | |
|---|---|
| Boiler Repair Contractor | $178.00[1] |
| Mechanical Contractor | $178.00[2] |
| Stationary Engineer | $64.00[3] |
| Process Steam Boiler | $41.00[3] |

**B.** Renewal applications may be made in person, by mail to the Permit Center, or online at the Citizen Self Service portal. A photocopy of the current state license, when applicable, shall accompany the application form and the check or money order for the required fee; online renewal can be paid by MasterCard or Visa.

[1] This fee shall be waived if the contractor is registered with the City of Tulsa as a Mechanical Contractor.

[2] All Mechanical Contractor certificates of registration shall expire on the last day of the contractor's birth month.

[3] Failure to renew within thirty (30) days of expiration shall subject the licensee to a penalty of Eighteen Dollars ($18.00) per month until renewed. Pursuant to Title 59 Section 200G, when any operator's license has expired for one (1) year or more, the license holder shall retest in accordance with Title 59 Section 200E.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## CHAPTER 6. MANUFACTURED HOMES PERMIT FEES

Section 600. Manufactured homes permit fees and bonds—General.
Section 601. Zoning clearance permit fee.
Section 602. Manufactured home permit fees.
Section 603. Temporary, nonresidential use of manufactured home permit fee.

### Section 600. Manufactured homes permit fees and bonds—General.

The fees for all manufactured homes permits issued pursuant to Title 51, Tulsa Revised Ordinances, shall be as established in this Title 49, Tulsa Revised Ordinances, Chapter 6. The fees and bond amounts established in this chapter shall supersede and replace any fees codified in Title 51, Tulsa Revised Ordinances, Chapters 2 and 3. In addition to the fees listed below, administrative fees pursuant to Chapter 1 of this title shall be required.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 601. Zoning clearance permit fee.

Zoning clearance permit fees will be in accordance with subsection 303F. (commercial) or subsection 303G. (residential) of this title.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 602. Manufactured home permit fees.

The following manufactured home permit fees shall be assessed for all work provided for in this section and shall cover a maximum of one (1) inspection, unless specified otherwise:

**A.** Manufactured home permit outside of a manufactured home park (two (2) inspections) ..... $178.00

**B.** Blocking and anchoring ..... $81.00

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 603. Temporary, nonresidential use of manufactured home permit fee.

Pursuant to Title 51, Tulsa Revised Ordinances, subsection 302.A, any person who desires to use a manufactured home on a temporary basis for a field or local branch office, demonstration, or for a charitable and nonprofit purpose shall apply for such permit by filing an application with the code official, accompanied by a nonrefundable application fee of One Hundred Thirty-Nine Dollars ($139.00), payable to the City of Tulsa. Applications for an extension of such temporary use shall be accompanied by a nonrefundable application fee of Seventy Dollars ($70.00).

**Exception:** Temporary construction trailers used solely in conjunction with permitted, ongoing construction shall be exempt from compliance with this section.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

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## CHAPTER 7. THIRD PARTY PLAN REVIEW AND INSPECTIONS

Section 700. Payments to third party providers.
Section 701. Registration of third-party provider.
Section 702. Renewal of third-party provider registration.
Section 703. Issuance of permits and fees.

The fees for all building permits issued through the Third-Party Plan Review and Inspection Program ("Program") shall be as established in this Title 49, Tulsa Revised Ordinances, Chapter 7. In addition to the fees listed below, administrative fees pursuant to Chapter 1 of this Title shall be required.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 700. Payments to third party providers.

The Owner, Developer, or his/her authorized representative is responsible for all payment for services rendered by the Third-Party Provider. The City of Tulsa is not a party to the contract between the Owner or Developer and the Third-Party Provider. All fees and costs associated with the services rendered by a Third-Party Provider are the sole responsibility of the Owner or Developer. Any monetary claims that arise from incomplete, inaccurate, or defective plan review and/or inspections provided by the Third-Party Provider shall be remedied without cost to the City of Tulsa.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 701. Registration of third-party provider.

Any person or entity interested in registering as a Third-Party Provider for the Program must make application as stipulated in the Third-Party Plan Review and Inspection Manual ("Manual") and must pay a non-refundable registration fee of Two Hundred Fifty Dollars ($250.00). If approved, the Third-Party Provider may provide services pursuant to the Program in accordance with the Manual for a twelve-month term.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 702. Renewal of third-party provider registration.

A person or entity approved as a Third-Party Provider must submit a renewal application at least sixty (60) days prior to the anniversary date of the initial approval as a Third-Party Provider, along with a non-refundable registration fee of Two Hundred Seventy-Five Dollars ($275.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 703. Issuance of permits and fees.

The fee for issuing a permit pursuant to the Program shall be the calculated permit fee payable to the City of Tulsa. This fee shall be non-refundable.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

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## CHAPTER 8. PLUMBING PERMIT FEES

Section 800. Plumbing permit fees—General.
Section 801. Fee schedule.
Section 802. Outside of City permit/inspection fee.
Section 803. Registration fees.

### Section 800. Plumbing permit fees—General.

The fees for all plumbing permits, licenses, certificates, and registrations issued pursuant to Title 56, Tulsa Revised Ordinances, shall be as established in Title 49, Tulsa Revised Ordinances, Chapter 8. The fees established in this chapter shall supersede and replace any fees codified in Title 56, Tulsa Revised Ordinances, Chapter 1. In addition to the fees listed below, administrative fees pursuant to Chapter 1 of this title shall be required.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 801. Fee schedule.

Permit and inspection fees for all plumbing work shall be as set forth in this section.

| | | |
|---|---|---|
| **A.** | Gas Piping per meter | $41.00 |
| | Plus, per opening | $2.6887.00 |
| **B.** | Backflow prevention assembly fee | $79.00 |
| **C.** | Interceptor/separator fee | $150.00 |
| **D.** | Water heater fee | $35.00 |
| **E.** | Water service fee | $35.00 |
| **F.** | Plumbing fixtures, appliances, and appurtenances (except those listed above)—Base fee, including the first fixture, appliance, or appurtenance | $81.00 |
| | Plus, each additional fixture, appliance, or appurtenance | $3.31 |

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 802. Outside of City permit/inspection fee.

All permits/inspections requiring a code official or a plumbing inspector to travel outside the corporate limits of the City of Tulsa to perform an inspection shall be subject to a permit/inspection fee of Ninety-Two Dollars ($92.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 803. Registration fees.

**A.** All Plumbing contractor certificates of registration shall expire on the last day of the contractor's birth month.

| | |
|---|---|
| Plumbing Contractor | $178.00 |

**B.** Renewal applications may be made in person, by mail to the Permit Center, or online at the Citizen Self Service portal. A photocopy of the current state license shall accompany the application form and the check or money order for the required fee; online renewal can be paid by MasterCard or Visa.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

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## CHAPTER 9. INFRASTRUCTURE DEVELOPMENT PERMIT FEES

Section 900. General.
Section 901. Predevelopment meeting.
Section 902. Contracts.
Section 903. Plan review.
Section 904. Escrow.
Section 905. County fees paid through the City of Tulsa.
Section 906. Rights-of-way permits.

### Section 900. General.

**A. Stormwater and streets.** Fees for licenses, certificates and registrations issued pursuant to Title 35 Tulsa Revised Ordinances shall be as established in this Title 49 Tulsa Revised Ordinances, Chapter 9.

**B. Waterworks and sewerage.** Fees for licenses, requirements, and permits pursuant to Title 11C Tulsa Revised Ordinances shall be as established in this Title 49 Tulsa Revised Ordinances, Chapter 9. The fees established in this chapter shall supersede and replace any fees codified in Title 11C Tulsa Revised Ordinance.

**C.** Administrative fees pursuant to Chapter 1 of this title shall only be required for Section 906 of this chapter.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 901. Predevelopment meeting.

A predevelopment meeting between City of Tulsa staff and the engineer, the owner, or both, for a proposed infrastructure development project is required prior to any infrastructure submittal. The fee for such meeting shall be Four Hundred Dollars ($400.00), which shall be credited toward the fees charged for the review of associated plans, if and when they are submitted within one (1) year from date of first meeting.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 902. Contracts.

**A. Engineer's annual contract.** Engineers desiring to prepare plans for an infrastructure development project in the City of Tulsa shall enter into an annual Engineer's Contract with the City and pay a contract fee of Two Hundred Seventy-Five Dollars ($275.00) per year.

**B. Contractor's annual contract.** Contractor's desiring to construct infrastructure development projects within the City of Tulsa shall enter into an annual Contractor's Contract with the City and pay a contract fee of Two Hundred Seventy-Five Dollars ($275.00) per year.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 903. Plan review.

**A. Initial submittal and review fee.** Applications for infrastructure development plans involving stormwater, street, water, and sewer main improvements, shall be assessed an initial submittal fee equal to Eight Hundred Dollars ($800.00), plus Three Hundred

Fifty Dollars ($350.00) per plan sheet reviewed. The initial submittal fee shall provide for an initial review and two (2) additional reviews in response to City comments, at no additional charge.

**B. Additional plan reviews.** Development plans requiring a fourth and/or subsequent review shall be charged an additional fee of Four Hundred Fifty Dollars ($450.00) per sheet reviewed.

**C. Addendums.** Plan reviews after the original plans have been approved will be charged an additional fee of Two Hundred Fifty Dollars ($250.00) per sheet.

**D. IDP major construction permit.** When an IDP Major Construction permit is required pursuant to Title 35, Tulsa Revised Ordinances, Chapter 3, no additional fee shall be required if review fees were paid pursuant to Section 903 of this chapter.

**E. IDP minor construction permit.** When an IDP Minor Construction permit is required pursuant to Title 35, Tulsa Revised Ordinance, Chapter 2, a plan review fee of Two Hundred Fifty Dollars ($250.00) will be assessed. Reference Chapter 400 Section 401.2 of the Infrastructure Development Process Manual.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024; Ord. No. 25572 § 2, 5-21-2025)*

## Section 904. Escrow.

Developers desiring to construct infrastructure development projects in the City of Tulsa shall deposit funds into an escrow account sufficient to pay for the following fees prior to permit issuance:

**A. General.**

1. **Field inspection.** Before any permit shall be issued for the construction, reconstruction, replacement, or alteration of any infrastructure development improvement, the applicant shall pay a field inspection fee of Two Hundred Thirty-Five Dollars ($235.00) per day for the estimated number of days of construction. The actual amount will be billed or credited once the work is complete.
2. **Testing and quality assurance.** For quality assurance testing of all infrastructure development improvements the applicant shall pay an estimated fee of Two Hundred Dollars ($200.00) per day for the estimated construction duration. The actual amount will be billed or credited once the work is complete.
3. **ODEQ fees.** Applications for sanitary sewer improvements and new water mains shall be subject to a review for compliance with Oklahoma Department of Environmental Quality (ODEQ) requirements. Before any permit shall be issued for the construction, reconstruction, replacement, or alteration of any such improvement, the applicant shall be assessed a fee according to the current fees established by ODEQ.

**B. Water mains force account.** For all taps onto water mains, the applicant shall pay a connection fee equal to Two Hundred Dollars ($200.00) per connection.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024; Ord. No. 25572 § 3, 5-21-2025)*

## Section 905. County fees paid through the City of Tulsa.

**A. Plat copy fee.** A fee shall be assessed per plat according to the current fees established by Tulsa County and shall be paid to the City of Tulsa at the time a draft final plat is submitted.

**B. Filing of easements.** Filing fees shall be required for easements that will be filed by the City for private developments. The fees for these filings shall be collected according to the current fees established by Tulsa County.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## Section 906. Rights-of-way permits.

**A. Rights-of-way minor construction permit.** When a rights-of-way minor construction permit is required pursuant to Title 35, Tulsa Revised Ordinances, Chapter 4, an application fee of Two Hundred Forty-Two Dollars ($242.00) shall be charged in addition all other applicable permit fees as identified in Title 11, Chapter 12. Contractors for this work must have an annual contract with the City of Tulsa in accordance with Title 35. This section shall not apply to "Rights-of-Way Occupants," and their contractors as defined in Title 11, Chapter 12.

**B. Sidewalk and driveway permit fee.** The location of the proposed work shall determine the fees and bonds and the proposed work shall be defined and established by referencing the adopted and currently effective Tulsa Metropolitan Area Major Street and Highway Plan.

1. **Non-arterial sidewalk and driveway permit.** Any person applying for a residential use permit to construct or repair any sidewalk, driveway, or curb in the City of Tulsa Non-Arterial Rights-of-Way shall be required to provide a good and sufficient bond or insurance, or a combination of both, in favor of the City of Tulsa in the sum of not less than Five Thousand Dollars ($5,000.00). Contractors applying for commercial use permits to construct or repair any sidewalk, driveway, or curb in the City of Tulsa Non-Arterial Rights-of-Way shall reference Title 35, Chapter 2 for bonding, insurance, and annual contract requirements. The permit fee for this work shall be Two Hundred Forty-Two Dollars ($242.00).
2. **Arterial sidewalk and driveway permit.** Contractors constructing or repairing any sidewalk, driveway, or curb in the City of Tulsa Arterial Rights-of-Way shall reference Title 35, Chapter 2 for bonding, insurance, and annual contract requirements.

**C. Right-of-way temporary use of street fees.** The location of the proposed work shall determine the fees and insurance and the proposed work shall be defined and established by referencing the adopted and currently effective Tulsa Metropolitan Area Major Street and Highway Plan.

1. **Non-arterial temporary use of streets.** Any person applying for a permit to temporarily use the City's non-arterial rights-of-way shall pay the City of Tulsa a permit fee equal to Two Hundred Forty-Two Dollars ($242.00). Inspection fee based on Title 49, Section 108. Temporary use of street permits will be issued according to Title 35, Section 500. It does not include the construction described in paragraph 906.A. above.

2. **Arterial temporary use of streets.** Contractors requesting temporary use of street permits in the City of Tulsa Arterial Rights-of-Way shall reference Title 35, Chapter 2 for insurance requirements. If the placement is in an arterial street, fees required by Title 11, Chapter 12 will apply.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## CHAPTER 10. SPECIAL EVENT PERMIT FEES

Section 1000. Special event permit fees—General.
Section 1001. Minor event permit fee.
Section 1002. Major event permit fee.
Section 1003. Oversize/overweight load permit fee.
Section 1004. Film permit fee.

The fees for all special event permits shall be as established in Title 49, Tulsa Revised Ordinances, Chapter 10. In addition to the non-refundable application fees listed below, administrative fees pursuant to Chapter 1 of this title shall be required.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1000. Special event permit fees—General.

Any person, firm, corporation, limited liability company, or other entity applying for a permit to temporarily use the public rights-of-way or private property for the purpose of a special event shall pay the non-refundable application fee as specified below. Administrative fees pursuant to Chapter 1 of this title shall be required.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1001. Minor event permit fee.

A minor event shall mean any special event organized and conducted that utilizes private property. The non-refundable application fee assessed shall be Eighty Dollars ($80.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1002. Major event permit fee.

A major event shall mean any special event organized and conducted that utilizes public rights-of-way. The non-refundable application fee assessed shall be Two Hundred Forty-Two Dollars ($242.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1003. Oversize/overweight load permit fee.

Any person, firm, corporation, limited liability company, or other entity applying for an oversize/overweight load permit to traverse City of Tulsa streets, other than house moving as issued according to Chapter 3, Section 320 of this title, shall pay a non-refundable application fee as set forth in this section.

**A.** Single oversize/overweight load ..... $80.00

**B.** Monthly oversize/overweight load..... $242.00

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1004. Film permit fee.

Any person, firm, corporation, limited liability company, or other entity desiring a permit for any outdoor filmmaking which will block pedestrian and/or vehicular traffic, or which will take place on public or private property shall pay a non-refundable application fee as set forth in this section.

**A.** Event on private property..... $80.00

**B.** Event on public rights-of-way..... $242.00

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

# CHAPTER 11. RESERVED

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## CHAPTER 12. STORMWATER DRAINAGE SERVICE FEES

Section 1200. Stormwater drainage service fees—General.
Section 1201. Watershed permit application fee.
Section 1202. Stormwater impact review fee.
Section 1203. Floodplain (FP) watershed development permit fee.
Section 1204. Elevation certificate and floodproof certificate review fee.
Section 1205. Floodway (FW) watershed development permit fee.
Section 1206. Rate used in calculating fee-in-lieu of detention.

### Section 1200. Stormwater drainage service fees—General.

The fees for all permits, licenses, certificates, registrations, and stormwater drainage services provided pursuant to Title 11-A, Tulsa Revised Ordinances, shall be as established in Title 49, Tulsa Revised Ordinances, Chapter 12. Administrative fees pursuant to Chapter 1 of this Title shall be required. The fees established in this chapter shall supersede and replace any fees codified in Title 11-A, Tulsa Revised Ordinances, Chapters 2 and 3, and adopted by resolution in the City's Stormwater Management Criteria Manual.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1201. Watershed permit application fee.

The application fee for a watershed permit shall be Sixty-Four Dollars ($64.00). Such fee shall be non-refundable and shall be counted as part of the total permit fee upon issuance of the permit. Applicants shall deposit sufficient funds into an escrow account to pay the following fees prior to permit issuance:

1. **Field Inspection:** The applicant shall pay a field inspection fee of Two Hundred Thirty-Five Dollars ($235.00) per day for the estimated number of days of construction for work performed pursuant to a watershed permit. The actual amount will be billed or credited to once the work is complete.

2. **Testing and quality assurance:** For quality assurance testing related to a watershed permit, the applicant shall pay an estimated fee of Two Hundred Dollars ($200.00) per day for the estimated construction duration. The actual amount will be billed or credited once the work is complete.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024; Ord. No. 25572 § 4, 5-21-2025)*

### Section 1202. Stormwater impact review fee.

The fee assessed an applicant for the review and permit of stormwater connection, stormwater drainage, and earth change, issued pursuant to Title 11-A, Tulsa Revised Ordinances, paragraph 302B.4, shall be:

**A.** Commercial ..... $350.00

**B.** Residential ..... $207.00

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1203. Floodplain (FP) watershed development permit fee.**

The fee assessed an applicant for Floodplain (FP) Watershed Development Permit, issued pursuant to Title 11-A, Tulsa Revised Ordinances, paragraph 302.B.2, shall be Fifty-Seven Dollars ($57.00) per acre of development in the floodplain or floodplain alteration, provided that the minimum fee assessed shall be One Hundred Twenty-One Dollars ($121.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1204. Elevation certificate and floodproof certificate review fee.**

The fee assessed an applicant for the review of elevation certificates or floodproof certificates shall be One Hundred Twenty-One Dollars ($121.00) for each certificate.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1205. Floodway (FW) watershed development permit fee.**

The fee assessed an applicant for a Floodway (FW) Watershed Development Permit, issued pursuant to Title 11-A, Tulsa Revised Ordinances, paragraph 302.B.1, shall be Eight Hundred Sixty-Five Dollars ($865.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1206. Rate used in calculating fee-in-lieu of detention.**

Pursuant to City's Stormwater Management Criteria Manual, Section 1301.4, whenever the City, in its discretion, offers a landowner or developer the option of paying a fee-in-lieu of providing on-site detention of stormwater runoff, the fee shall be calculated as provided in Section 1301.4, using a rate of Seventy-Four Cents ($0.74) per square foot of new impervious development.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## CHAPTER 13. WATER AND SANITARY SEWER FEES

Section 1300. Water and sewer fees—General.
Section 1301. Water meter and detector check installation.
Section 1302. Sanitary sewer permit fees.

### Section 1300. Water and sewer fees—General.

**A.** The fees for all water and sewer permit, licenses, certificates and registrations and services provided pursuant to Title 11-C Tulsa Revised Ordinances shall be as established in Title 49 Tulsa Revised Ordinances, Chapter 13. In addition to the fees listed below, administrative fees pursuant to Chapter 1 of this title shall be required. The fees established in this chapter shall supersede and replace the fees codified in Title 11-C Tulsa Revised Ordinances, Chapters 2 and 5.

**B.** Pursuant to Title 35 Certified Contractors must have an Annual IDP Contract with the City that shows they are qualified to install water taps and/or sewer taps if the sewer tap is in the City rights-of-way.

**C.** The permit fees shown in Section 1301 below include review and inspection fees only. The cost of required City furnished water meters varies depending upon size and current cost to the City. These costs will be added to the cost of the permit. A table showing the water meter costs is shown on the permitting website. The table will be updated whenever acquisition costs for the city change.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1301. Water meter and detector check installation.

**A.** Meters less than three (3) inches ..... $234.00
plus AMR meter

**B.** Meters three (3) inches and larger ..... $884.00
plus AMR meter

**C.** Detector Check Assemblies* ..... $884.00
plus AMR meter

AMR - Automatic Meter Read

*Contractor furnishes all materials.

Applicants shall deposit sufficient funds into an escrow account to pay the following fees prior to permit issuance:

1. **Field inspection:** The applicant shall pay a field inspection fee of Two Hundred Thirty-Five Dollars ($235.00) per day for the estimated number of days of construction for work performed pursuant to a permit issued for installation of a water meter and/or detector check. The actual amount will be billed or credited to once the work is complete.
2. **Testing and quality assurance:** For quality assurance testing related to the installation of a water meter and/or detector check, the applicant shall pay an estimated fee of Two Hundred Dollars ($200.00) per day for the estimated construction duration. The actual amount will be billed or credited once the work is complete.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024; Ord. No. 25572 § 5, 5-21-2025)*

## Section 1302. Sanitary sewer permit fees.

**A.** Add on, cleanout, permanent plug, plug septic, route/repair, and wreck building first..... $88.50

**B.** Private lift station, new tap, off septic, reconnect, service line only, and temporary plug ..... $125.00

**C.** Backwater valve ..... $88.50

**D.** **Temporary sanitary sewer plugs security deposit.** Title 11C requires the owner to deposit Ten Thousand Dollars ($10,000.00) security deposit prior to the issuance of a Temporary Plug Permit. This fee will be reimbursed if a permanent Reconnect Permit is issued, and the work passes inspection within ninety (90) days. If not, the deposit will be forfeited and the city will permanently plug the line tap.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## CHAPTER 14. FIRE PREVENTION CODE FEES

Section 1400. Fire prevention code fees—General.
Section 1401. Aerosol products operational permit fee.
Section 1402. Amusement buildings operational permit fee.
Section 1403. Aviation facilities operational permit fee.
Section 1404. Carnivals and fairs operational permit fee.
Section 1405. Cellulose nitrate film operational permit fee.
Section 1406. Combustible dust-producing operations operational permit fee.
Section 1407. Combustible fibers operational permit fee.
Section 1408. Compressed gases operational permit fee.
Section 1409. Covered mall buildings operational permit fee.
Section 1410. Cryogenic fluids operational permit fee.
Section 1411. Cutting and welding operational permit fee.
Section 1412. Dry cleaning plants operational permit fee.
Section 1413. Exhibits and trade show operational permit fees.
Section 1414. Explosives operational permit fee.
Section 1415. Fire hydrant and valves operational permit fee.
Section 1416. Flammable and combustible liquids operational permit fee.
Section 1417. Removal or closure of any flammable or combustible liquid ground storage tank operational permit fee.
Section 1418. Floor finishing operational permit fee.
Section 1419. Fruit and crop ripening operational permit fee.
Section 1420. Fumigation and thermal insecticidal fogging operational permit fee.
Section 1421. Hazardous materials operational permit fee.
Section 1422. Hpm facilities operational permit fee.
Section 1423. High-piled storage operational permit fee.
Section 1424. Hot work operations operational permit fee.
Section 1425. Industrial ovens operational permit fee.
Section 1426. Lumber yards and woodworking plants operational permit fee.
Section 1427. Liquid- or gas-fueled vehicles or equipment in assembly buildings operational permit fee.
Section 1428. Lp-gas operational permit fee.
Section 1429. Magnesium operational permit fee.
Section 1430. Miscellaneous combustible storage operational permit fee.
Section 1431. Open burning operational permit fee.
Section 1432. Open flames and torches operational permit fee.
Section 1433. Open flames and candles operational permit fee.
Section 1434. Organic coatings operational permit fee.
Section 1435. Places of assembly operational permit fee.
Section 1436. Private hydrants operational permit fee.
Section 1437. Pyrotechnic special effects material operational permit fee.
Section 1438. Pyroxylin plastics operational permit fee.
Section 1439. Refrigeration equipment operational permit fee.
Section 1440. Repair garages and motor fuel-dispensing facilities operational permit fee.
Section 1441. Rooftop heliports operational permit fee.
Section 1442. Spraying or dipping operational permit fee.
Section 1443. Storage of scrap tires and tire byproducts operational permit fee.

Section 1444. Temporary membrane structures, tents, and canopies operational permit fee.
Section 1445. Tire-rebuilding plants operational permit fee.
Section 1446. Waste handling operational permit fee.
Section 1447. Wood products operational permit fee.
Section 1448. Security gates operational permit fee.
Section 1449. Key boxes operational permit fee.
Section 1450. Fire protection system installation license and testing fee.
Section 1451. State or federal license inspection fee.
Section 1452. Fee for training employees in private enterprises.
Section 1453. Construction permit fee.
Section 1454. On-site inspection fee.

**Section 1400. Fire prevention code fees—General.**

The fees for all permits, licenses, certificates, registrations, and services provided pursuant to Title 14, Tulsa Revised Ordinances, shall be as established in this Title 49, Tulsa Revised Ordinances, Chapter 14.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1401. Aerosol products operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.1, the fee assessed on initial startup for an operational permit required to manufacture, store, or handle an aggregate quantity of Level 2 or Level 3 aerosol products in excess of 500 pounds (227 kg) net weight shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1402. Amusement buildings operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.2, the fee assessed on initial startup for an operational permit required to operate a special amusement building shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1403. Aviation facilities operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.3, the fee assessed on initial startup for an operational permit required to use a Group H or Group S occupancy for aircraft servicing or repair and aircraft fuel-servicing vehicles shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1404. Carnivals and fairs operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.5, the fee assessed on initial startup for an operational permit required to conduct a carnival or fair shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1405. Cellulose nitrate film operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.6, the fee assessed for an operational permit required to store, handle, or use cellulose nitrate film in a Group A occupancy shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1406. Combustible dust-producing operations operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.7, the fee assessed on initial startup for an operational permit required to operate a grain elevator, flour starch mill, feed mill, or a plant pulverizing aluminum, coal, cocoa, magnesium, spices or sugar, or other operations producing combustible dusts shall be One Hundred Thirty-Five Dollars ($135.00)

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1407. Combustible fibers operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.8, the fee assessed on initial startup for an operational permit required for the storage and handling of combustible fibers in quantities greater than one hundred (100) cubic feet (2.8 $m^3$) shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1408. Compressed gases operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.9, the fee assessed on initial startup for an operational permit for the storage, use or handling at normal temperature and pressure (NTP) of compressed gases in excess of the amounts listed in Table 105.6.9 of the ICC International Fire Code, as adopted by reference in Title 14 Tulsa Revised Ordinances, shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1409. Covered mall buildings operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.10, the fee assessed for an operational permit required for the following shall be One Hundred Thirty-Five Dollars ($135.00).

1. The placement of retail fixtures and displays, concession equipment, displays of highly combustible goods and similar items in the mall.
2. The display of liquid- or gas-fired equipment in the mall.
3. The use of open-flame or flame-producing equipment in the mall.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1410. Cryogenic fluids operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.11, the fee assessed on initial startup for an operational permit required to produce, store, transport on site, use,

handle or dispense cryogenic fluids in excess of the amounts listed in Table 105.6.11 of the ICC International Fire Code, as adopted by reference in Title 14 Tulsa Revised Ordinances, shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1411. Cutting and welding operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.12, the fee assessed for an operational permit required under special circumstances as determined by the Fire Code Official to conduct cutting or welding operations within the jurisdiction shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1412. Dry cleaning plants operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.13, the fee assessed on initial startup for an operational permit required to engage in the business of dry cleaning or to change to a more hazardous cleaning solvent used in existing dry-cleaning equipment shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1413. Exhibits and trade show operational permit fees.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.14, the fee assessed on initial startup for an operational permit required to operate exhibits and trade shows shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1414. Explosives operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.15, the fee assessed for an operational permit required for the manufacture, storage, handling, sale, or use of any quantity of explosive, explosive material, fireworks, or pyrotechnic special effects within the scope of Chapter 56 shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1415. Fire hydrant and valves operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.16, the fee assessed under extraordinary circumstances as determined by the Fire Code Official for an operational permit required to use or operate fire hydrants or valves intended for fire suppression purposes which are installed on water systems and accessible to a fire apparatus access road that is open to or generally used by the public shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## Section 1416. Flammable and combustible liquids operational permit fee.

Pursuant to Title 14 ICC International Fire Code, Section 105.6.17, the fee assessed shall be One Hundred Thirty-Five Dollars ($135.00) on initial startup for an operational permit required to:

1. Use or operate a pipeline for the transportation within facilities of flammable or combustible liquids. This requirement shall not apply to the off-site transportation in pipelines regulated by the Department of Transportation (DOT), nor does it apply to piping systems.
2. Store, handle or use Class I liquids in excess of five (5) gallons (19 L) in a building or in excess of ten (10) gallons (37.9 L) outside of a building, except that a permit is not required for the following:
    a. The storage or use of Class I liquids in the fuel tank of a motor vehicle, aircraft, motorboat, mobile power plant or mobile heating plant, unless such storage, in the opinion of the code official, would cause an unsafe condition.
    b. The storage or use of paints, oils, varnishes, or similar flammable mixtures when such liquids are stored for maintenance, painting, or similar purposes for a period of not more than thirty (30) days.
3. Store, handle or use Class II or Class IIIA liquids in excess of twenty-five (25) gallons (95 L) in a building or in excess of sixty (60) gallons (227 L) outside a building, except for fuel oil used in connection with oil-burning equipment.
4. Remove Class I or Class II liquids from an underground storage tank used for fueling motor vehicles by any means other than the approved, stationary on-site pumps normally used for dispensing purposes.
5. Operate tank vehicles, equipment, tanks, plants, terminals, wells, fuel-dispensing stations, refineries, distilleries, and similar facilities where flammable and combustible liquids are produced, processed, transported, stored, dispensed, or used.
6. Place temporarily out of service (for more than ninety (90) days) an underground, protected above-ground or above-ground flammable or combustible liquid tank.
7. Change the type of contents stored in a flammable or combustible liquid tank to a material which poses a greater hazard than that for which the tank was designed and constructed.
8. Manufacture, process, blend or refine flammable or combustible liquids.
9. Engage in the dispensing of liquid fuels into the fuel tanks of motor vehicles at commercial, industrial, governmental, or manufacturing establishments.
10. Utilize a site for the dispensing of liquid fuels from tank vehicles into the fuel tanks of motor vehicles at commercial, industrial, governmental, or manufacturing establishments.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1417. Removal or closure of any flammable or combustible liquid ground storage tank operational permit fee.

Pursuant to Title 14 Tulsa Revised Ordinances, Section 105.6.17, the fee assessed for an operational permit required for the removal or closure of any flammable or combustible liquid ground storage tank shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1418. Floor finishing operational permit fee.

Pursuant to Title 14 ICC International Fire Code, Section 105.6.18, the fee assessed under extraordinary circumstances as determined by the Fire Code Official for an operational permit required for floor finished or surfacing operations exceeding Three Hundred Fifty (350) square feet (33 $m^2$) using Class I or Class II liquids shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1419. Fruit and crop ripening operational permit fee.

Pursuant to Title 14 ICC International Fire Code, Section 105.6.19, the fee assessed on initial startup for an operational permit required to operate a fruit-, or crop-ripening facility or conduct a fruit-ripening process using ethylene gas shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1420. Fumigation and thermal insecticidal fogging operational permit fee.

Pursuant to Title 14 ICC International Fire Code, Section 105.6.20, the fee assessed on initial startup for an operational permit required to operate a business of fumigation or thermal insecticidal fogging and to maintain a room, vault, or chamber in which a toxic or flammable fumigant is used shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1421. Hazardous materials operational permit fee.

Pursuant to Title 14 ICC International Fire Code, Section 105.6.21, the fee assessed on initial startup for an operational permit required to store, transport on site, dispense, use, or handle hazardous materials in excess of the amounts listed on Table 105.6.21 of the ICC International Fire Code, as adopted by reference in Title 14 Tulsa Revised Ordinances, shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1422. HPM facilities operational permit fee.

Pursuant to Title 14 ICC International Fire Code, Section 105.6.22, the fee assessed on initial startup for an operational permit required to store, handle, or use hazardous production materials shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1423. High-piled storage operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.23, the fee assessed on initial startup for an operational permit required to use a building or portion thereof as a high-piled storage area exceeding five hundred (500) square feet (46 $m^2$) shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1424. Hot work operations operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.24, the fee assessed under extraordinary circumstances as determined by the Fire Code Official shall be One Hundred Thirty-Five Dollars ($135.00) for an operational permit required for hot work including, but not limited to:

1. Public exhibitions and demonstrations where hot work is conducted.
2. Use of portable hot work equipment inside a structure.

   **Exception:** Work that is conducted under a construction permit.
3. Fixed-site hot work equipment such as welding booths.
4. Hot work conducted within a hazardous fire area.
5. Application of roof coverings with the use of an open-flame device.
6. When approved, the Fire Code Official shall issue a permit to carry out a Hot Work Program.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1425. Industrial ovens operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.25, the fee assessed on initial startup for an operational permit required for operation of industrial ovens regulated by Chapter 30 shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1426. Lumber yards and woodworking plants operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.26, the fee assessed on initial startup for an operational permit required for the storage or processing of lumber exceeding one hundred thousand (100,000) board feet (8,333 $ft^3$) (236 $m^3$) shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1427. Liquid- or gas-fueled vehicles or equipment in assembly buildings operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.27, the fee assessed for an operational permit required to display, operate, or demonstrate liquid- or gas-fueled vehicles or equipment in assembly buildings shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1428. LP-gas operational permit fee.

Pursuant to Title 14 ICC International Fire Code, Section 105.6.28, the fee assessed under extraordinary circumstances as determined by the Fire Code Official shall be One Hundred Thirty-Five Dollars ($135.00) for an operational permit required for:

1. Storage and use of LP-gas.

   **Exception:** A permit is not required for individual containers with a 500-gallon (1,893 L) water capacity or less serving occupancies in Group R-3.

2. Operation of cargo tankers that transport LP-gas.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1429. Magnesium operational permit fee.

Pursuant to Title 14 ICC International Fire Code, Section 105.6.29, the fee assessed on initial startup for an operational permit required to melt, cast, heat treat or grind more than ten (10) pounds (4.54 kg) of magnesium shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1430. Miscellaneous combustible storage operational permit fee.

Pursuant to Title 14 ICC International Fire Code, Section 105.6.30, the fee assessed for an operational permit required to store in any building or upon any premises in excess of two thousand five hundred (2,500) cubic feet (71 $m^3$) gross volume of combustible empty packing cases, boxes, barrels or similar containers, rubber tires, rubber, cork or similar combustible material shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1431. Open burning operational permit fee.

Pursuant to Title 14 Tulsa Revised Ordinance, Section 105.6.32, the fee assessed for an operational permit required to kindle or maintain an open fire shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1432. Open flames and torches operational permit fee.

Pursuant to Title 14 ICC International Fire Code, Section 105.6.33, the fee assessed for an operational permit required to remove paint with a torch; or to use a torch or open-flame device in a hazardous fire area shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

### Section 1433. Open flames and candles operational permit fee.

Pursuant to Title 14 ICC International Fire Code, Section 105.6.34, the fee assessed for an operational permit required to use an open flame or candle in certain areas or establishments shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1434. Organic coatings operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.35, the fee assessed on initial startup for an operational permit required for any organic-coating manufacturing operation producing more than one (1) gallon (4 L) of an organic coating in one (1) day shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1435. Places of assembly operational permit fee.**

Pursuant to Title 14 Tulsa Revised Ordinance, Section 105.6.36.1, the fee assessed for an approved Occupant Load sign shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1436. Private hydrants operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.37, the fee assessed for an operational permit required for the removal from service, use or operation of private fire hydrants shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1437. Pyrotechnic special effects material operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.38, the fee assessed for an operational permit required for the use and handling of pyrotechnic special effects materials shall be One Hundred Thirty-Five Dollars ($135.00). A monthly fee of Five Hundred Dollars ($500.00) is optional for repetitive indoor pyrotechnic events with approval form the Fire Marshal's office.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1438. Pyroxylin plastics operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.39, the fee assessed for an operational permit required for storage or handling of more than twenty-five (25) pounds (11 kg) of cellulose nitrate (pyroxylin) plastics and for the assembly or manufacture of articles involving pyroxylin plastics shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1439. Refrigeration equipment operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.40, the fee assessed on initial startup for an operational permit required to operate a mechanical refrigeration unit or system regulated by Chapter 6 shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1440. Repair garages and motor fuel-dispensing facilities operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.41, the fee assessed for an operational permit required under special circumstances as determined by the Fire Code Official for operation of repair garages and automotive, marine, and fleet motor fuel-dispensing facilities shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1441. Rooftop heliports operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.42, the fee assessed on initial startup for an operational permit required for the operation of a rooftop heliport shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1442. Spraying or dipping operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.43, the fee assessed on initial startup for an operational permit required to conduct a spraying or dipping operation utilizing flammable or combustible liquids or the application of combustible powders regulated by Chapter 24 shall be Ninety Dollars ($90.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1443. Storage of scrap tires and tire byproducts operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.44, the fee assessed annually for an operational permit required to establish, conduct, or maintain storage of scrap tires and tire byproducts that exceeds two thousand five hundred (2,500) cubic feet (71 $m^3$) of total volume of scrap tires and for indoor storage of tires and tire byproducts shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1444. Temporary membrane structures, tents, and canopies operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.45, the fee assessed for an operational permit required to operate an air-supported temporary membrane structure or a tent having an area in excess of two hundred (200) square feet (19 $m^2$), or a canopy in excess of four hundred (400) square feet (37 $m^2$) shall be according to Title 49 Chapter 3.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1445. Tire-rebuilding plants operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.46, the fee assessed for an operational permit required for the operation and maintenance of a tire-rebuilding plant shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1446. Waste handling operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.47, the fee assessed for an operational permit required for the operation of wrecking yards, junk yards and waste material-handling facilities shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1447. Wood products operational permit fee.**

Pursuant to Title 14 ICC International Fire Code, Section 105.6.48, the fee assessed for an operational permit required to store chips, hogged material, or plywood in excess of two hundred (200) cubic feet (6 $m^3$) shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1448. Security gates operational permit fee.**

Pursuant to Title 14 Tulsa Revised Ordinance, Section 105.6.49, the fee assessed for an operational permit required to operate a security gate installed across a fire apparatus access road shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1449. Key boxes operational permit fee.**

Pursuant to Title 14 Tulsa Revised Ordinance, Section 105.6.50, the fee assessed for an operational permit required for each key box regulated by Section 506 and Section 607 of the ICC International Fire Code, as adopted by reference in Title 14 Tulsa Revised Ordinances, shall be Ninety Dollars ($90.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1450. Fire protection system installation license and testing fee.**

Pursuant to Title 14 Tulsa Revised Ordinance, Section 105.6.51, any firm performing work on the installation, maintenance or testing of fire alarm and detection systems or automatic fire-extinguishing systems shall register their Oklahoma State contractor's license with the City of Tulsa Permit Center. The fee for contractor license registration shall be One Hundred Ninety-Five Dollars ($195.00) annually.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1451. State or federal license inspection fee.**

Pursuant to Title 14 Tulsa Revised Ordinance, Section 105.6.52, the fee assessed for any inspection performed pursuant to state or federal licensing requirements shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

**Section 1452. Fee for training employees in private enterprises.**

Pursuant to Title 14 Tulsa Revised Ordinance, Section 105.6.53, the fee assessed for fire safety and fire protection training provided to employees working for a private business entity shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## Section 1453. Construction permit fee.

Pursuant to Title 14 Tulsa Revised Ordinance, Section 105.7, the fee assessed for each construction permit issued pursuant to Sections 105.7.1 through 105.7.18 of the ICC International Fire Code, 2015 Edition, as adopted by reference in Title 14 Tulsa Revised Ordinances, shall be One Hundred Thirty-Five Dollars ($135.00).

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## Section 1454. On-site inspection fee.

Pursuant to Title 14 ICC International Fire Code, Section 106.2.1, any person, firm, corporation or limited liability company failing to respond to a self-inspection request within thirty (30) days of the date postmarked on the envelope mailed to the self-inspection recipient shall be subject to an on-site inspection by the fire code official and the recipient shall be assessed a One Hundred Thirty-Five Dollars ($135.00) inspection fee.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

## CHAPTER 15. URBAN DESIGN PERMIT FEES

Section 1500. Urban Design Permit Fee Schedule.

### Section 1500. Urban Design Permit Fee Schedule.

The fees for Uban Design Permits are as follows:

**A.** Initial Application fee for Tables and Chairs program, Sidewalk Café program, and Parklet program: $150.00.

**B.** Renewal Application fee for Tables and Chairs program, Sidewalk Café program, and Parklet Program: $100.00.

**C.** Resubmission or amendment fee for Tables and Chairs program, Sidewalk Café program, and Parklet program: $86.00.

**D.** Metered parking space fee for Private Parklet (per space): $1,175.00.

**E.** Metered parking space fee for Public Parklet (per space): $585.00.

**F.** Reinspection fee (each additional inspection): $58.00.

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024)*

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## CHAPTER 16. UTILITY COORDINATION FEES

Section 1600. Closures.
Section 1601. License agreements.
Section 1602. Construction agreements.
Section 1603. Public Property Use/Occupancy Permit.

### Section 1600. Closures.

**A.** Easement closure ..... $1,500.00

**B.** ROW/alley/airspace closure ..... $1,500.00

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024; Ord. No. 25572 § 6, 5-21-2025)*

### Section 1601. License agreements.

**A.** Commercial, office, industrial and multi-family ..... $1,500.00

**B.** Residential, single-lot, single-family ..... $750.00

**C.** Decorative concrete flatwork, i.e.: diamond scored, stained, rock salt ..... $300.00

**D.** Any other item not affixed and fits within a nine square feet footprint .... $300.00 each item

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024; Ord. No. 25572 § 7, 5-21-2025)*

### Section 1602. Construction agreements.

**A.** Commercial, office, industrial and multi-family ..... $1,500.00

**B.** Residential, single lot, single-family ..... $750.00

*(Ord. No. 24664, § 1, 8-25-2021; Ord. No. 25351, § 1, 7-17-2024; Ord. No. 25572 § 8, 5-21-2025)*

### Section 1603. Public Property Use/Occupancy Permit.

**A.** Commercial, office, industrial and multi-family, up to three locations, with a fee of $300.00 for each additional location, total ..... $1,500.00

**B.** Residential, single lot, single family, up to three locations, with a fee of $300.00 for each additional location, total ..... $750.00

**C.** Any other item not affixed and fits within a 9 square feet footprint, for each item ..... $300.00

*(Ord. No. 25351, § 1, 7-17-2024; Ord. No. 25572 § 9, 5-21-2025)*

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## CHAPTER 17. PLANNING AND ZONING FEES

Section 1701. Planning commission application fees.
Section 1702. Board of adjustment application fees.

### Section 1701. Planning commission application fees.

The fees for applications submitted to the Tulsa Metropolitan Area Planning Commission (TMAPC) for properties located within the City of Tulsa are as follows:

| | | |
|---|---|---|
| **A.** | Rezoning (all zoning districts except otherwise specified) | $1,800.00 |
| **B.** | Optional development plan or corridor development plan | $400.00 |
| **C.** | Master planned development or corridor district rezoning | $2,200.00 |
| **D.** | Major amendment to a master planned development, corridor development plan, optional development plan, or a planned unit development | $2,000.00 |
| **E.** | Minor amendment to master planned development, corridor development plan, optional development plan or a planned unit development | $900.00 |
| **F.** | Detail site plan, landscape plan, or sign plan | $400.00 |
| **G.** | Minor revision to detail site plan or landscape plan | $200.00 |
| **H.** | Planned unit development abandonment concurrent with rezoning | $300.00 |
| **I.** | Planned unit development abandonment not concurrent with rezoning | $1,800.00 |
| **J.** | Establishment of an overlay district | $4,000.00 |
| **K.** | Alternative compliance landscape plan | $550.00 |
| **L.** | Minor revision to an alternative compliance landscape plan | $250.00 |
| **M.** | Other agenda item for consideration by the TMAPC for which no fee is established | $100.00 |
| **N.** | Comprehensive plan map amendment | $1,200.00 |
| **O.** | Preliminary plat | $1,200.00 |
| **P.** | Final plat review (includes one revision) | $950.00 |
| **Q.** | Each additional revision of a final plat | $200.00 |
| **R.** | Minor subdivision plat | $1,000.00 |
| **S.** | Access point(s) changed on recorded plat | $250.00 |
| **T.** | Extension of approval of subdivision plat, preliminary or final | $250.00 |
| **U.** | Authorization for an accelerated release of a building permit | $700.00 |
| **V.** | Exempt land division | $250.00 |
| **W.** | Lot split or lot line adjustment | $500.00 |
| **X.** | Development regulations compliance | $500.00 |

*(Ord. No. 25477, § 1, 12-4-2024)*

### Section 1702. Board of adjustment application fees.

The fees for applications submitted to the City of Tulsa Board of Adjustment (BOA) are as follows:

| | | |
|---|---|---|
| **A.** | Variance or non-use-related special exception | $800.00 |

| | | |
|---|---|---|
| **B.** | Special exception, use-related | $950.00 |
| **C.** | Each additional variance | $400.00 |
| **D.** | Each additional special exception | $300.00 |
| **E.** | Administrative adjustment | $430.00 |
| **F.** | Modification of previously approved site plan or conditions | $650.00 |
| **G.** | Appeal of decision of administrative official | $900.00 |
| **H.** | Other agenda item for consideration by the BOA for which no fee is established | $100.00 |
| **I.** | Reconsideration request | $100.00 |
| **J.** | Reconsideration processing fee | $500.00 |

*(Ord. No. 25477, § 1, 12-4-2024)*

# TITLE 50 ANNUAL PERMITS

## Chapter 1. Annual Permits

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## CHAPTER 1. ANNUAL PERMITS

Section 100. Permits authorized.
Section 101. Work limitations under annual permits.
Section 102. Minimum requirements for annual permits.
Section 103. Application for issuance of annual permit.
Section 104. Processing of annual permit applications.
Section 105. Issuance of approved annual permits.
Section 106. Inspections.
Section 107. Permit fees.
Section 108. Revocation of annual permit.
Section 109. Mayor defined.

### Section 100. Permits authorized.

Notwithstanding any existing requirements or limitations heretofore established by the City of Tulsa for the issuance of permits authorizing electrical, mechanical, building and plumbing work within the City of Tulsa, the Mayor may authorize, in individual cases, upon showing justified need and the meeting of the requirements established herein, the issuance of an annual permit to any qualified person, firm or corporation owning and operating a commercial, industrial, utility, processing or institutional plant within the City of Tulsa.

### Section 101. Work limitations under annual permits.

All work authorized by an annual permit shall be performed only by the regularly employed full-time employees of the permit holder who meet all licensing and/or registration requirements for the work they perform as established by the Revised Ordinances of the City of Tulsa. Any work which is not performed by the permit holder's permanent work force, as identified on the personnel roster hereinafter required, shall be performed by a contractor who meets the licensing and registration requirements of the City of Tulsa to perform such work in the City of Tulsa; and such contractor shall obtain separate permits and his work shall receive such inspections as may be required by the provisions of the applicable code (building, electrical, plumbing or mechanical) adopted by the City of Tulsa. No increase in ground cover, square footage, the height of any building or structure, or modification/relocation of any exitway or fire wall shall be permitted under an annual permit. All work accomplished under an annual permit shall comply with all requirements of the governing code (building, electrical, mechanical or plumbing) and shall be inspected in the manner hereinafter specified. No project shall be commenced under an annual permit which requires more than four hundred (400) man-hours to complete. For purposes of this section, the term "project" is defined to include staged or incremental work which, when completed, accomplishes a single purpose. Man-hours required to complete separate stages or increments shall cumulate for the purpose of calculating total man-hours required to complete any project.

### Section 102. Minimum requirements for annual permits.

All applicants for annual permits shall be required to establish:

**A.** That the applicant employs full-time personnel who are duly and properly licensed and/or registered by the City of Tulsa as qualified to perform the building, electrical, mechanical or plumbing work for which an annual permit is required; and

**B.** That the day-to-day operation of the applicant's facility requires, or would require, the issuance of numerous permits for the purpose of allowing the applicant to perform required incidental machinery repairs, equipment component replacements or modifications, or recurring minor alterations and/or replacement of building and/or electrical and/or mechanical and/or plumbing components governed by the Revised Ordinances of the City of Tulsa; and

**C.** That the building or buildings for which an annual permit is requested consist of at least two hundred thousand (200,000) square feet of gross floor area.

### Section 103. Application for issuance of annual permit.

Unless otherwise directed or approved by the Mayor, an application for the issuance of an annual permit shall be submitted in letter form to the Deputy Director of Customer Services, Public Works Department, and shall contain, as a minimum, the following information.

**A.** Initial applications shall contain:

**1.** A comprehensive statement detailing the nature and extent of the work which will be performed, identification of the field of work (i.e., mechanical, electrical, building or plumbing) for which an annual permit is requested, and a full and complete breakdown of the gross square footage within the building or buildings in which all work authorized by an annual permit would be performed;

**2.** A statement which identifies any unique needs of the applicant which would be met by the issuance of an annual permit;

**3.** Any additional statements which the applicant may wish to make to demonstrate its qualifications for the requested annual permit; and

**4.** A personnel roster which contains the names of the applicant's full-time employees who will do all work authorized by the requested annual permit, which shall individually identify:

**a.** Trade specialties, by field and skill level, and

**b.** License and/or registration numbers of all contractor, journeyman or apprentice licenses issued by the City of Tulsa.

**B.** Renewal applications shall contain:

**1.** A statement that there is no change in the information originally submitted by the applicant or, if any changes have occurred or are contemplated, a full description of all changes and proposed changes; and

**2.** A current personnel roster containing all information as required in Subsection A.4., above.

### Section 104. Processing of annual permit applications.

**A.** Upon receipt of an annual permit application, the Deputy Director of Customer Services shall within thirty (30) days make such inquiry into the merits of the application as he may deem necessary and advisable. Thereafter, he shall forward such application to the Mayor with his recommendation thereon. The Mayor shall thereafter consider such application and may grant the requested annual permit upon a finding that the public welfare will be served by its issuance; provided, however, that the Mayor, in granting a requested annual permit, may prescribe appropriate conditions

and safeguards and may further require any guarantee or bond which he may deem necessary to insure compliance with any condition or limitation which may be imposed.

**B.** The Mayor shall notify the applicant in writing of his decision, and his decision shall be final unless within ten (10) days of the receipt of the notice the applicant files with the City Clerk a petition for review of the Mayor's decision by the Council.

If a petition for review is filed with the Clerk, the Secretary of the Council shall, within five (5) days of such filing, provide written notice to the petitioner and to the Mayor of the date of the public hearing, which date shall be within twenty (20) days of the filing of the petition for review. At the conclusion of the hearing, the Council may grant or deny the application for annual permit, may itself impose conditions or safeguards and/or may require a guarantee or bond necessary to insure compliance with any conditions or limitations it may impose.

**C.** Renewal permits shall be issued on an annual basis by the Deputy Director of Customer Services upon the same terms and conditions as initially authorized by the Mayor. Any application for a renewal of an annual permit which requests any modification of any previously imposed requirement or condition, or which otherwise in any manner changes the nature or scope of the work authorized by a previously approved permit, shall require the approval of the Mayor prior to its issuance, and such renewal application shall be processed as an initial application.

### Section 105. Issuance of approved annual permits.

Upon final approval and the payment of all required fees, the Deputy Director of Customer Services shall issue the annual permit. If any special limitations or restrictions have been imposed upon the permit by the Mayor, the applicant or a responsible official acting on behalf of the applicant, shall acknowledge receipt of such specially limited permit by endorsing the copy of the permit maintained by the Deputy Director of Customer Services. All annual permits shall be applicable only to those buildings or structures specifically identified on the face of the annual permit.

### Section 106. Inspections.

All work authorized by an annual permit shall be subject to inspection as provided herein.

**A. Records required.** All work performed by an annual permit holder shall be noted in a log or register maintained by the permit holder which shall identify the general nature of the work and the dates such work was initiated and completed. Such record shall be open for inspection at all times by the Deputy Director of Customer Services of the City of Tulsa or his designated inspectors, and the work listed therein shall be subject to inspection both on a spot basis and on an annual basis. After an annual inspection, the permit holder may discard such log or register containing the work performed in the twelve (12) month period preceding the date of the annual inspection.

**B. Notice required.** Any work to be performed under an annual permit which will require more than three hundred (300) man-hours to complete shall be brought to the attention of the Deputy Director of Customer Services in writing prior to the commencement of such work; and at the option of the Deputy Director, such work may be inspected during its progress.

**C. Violations observed during inspections.** A written list itemizing all violations noted during any inspection by the Deputy Director of Customer Services or his authorized inspectors shall be furnished to the permit holder, and a follow-up inspection shall thereafter be made to insure that all cited violations are corrected. The permit holder shall either promptly correct all noted violations or initiate an appeal from the decision of the Inspector to the technical administrative board having jurisdiction over the cited violation.

**Section 107. Permit fees.**

**A. Annual permit fees.** The fee for all annual permits shall be computed on the basis of the gross square footage of the building(s) or structure(s) for which the annual permit is issued as follows:

1. **Annual Building Permit:** One and 05/100 Dollars ($1.05) per one thousand (1,000) square feet;
2. **Annual Plumbing Permit:** One and 05/100 Dollars ($1.05) per one thousand (1,000) square feet;
3. **Annual Mechanical Permit:** One and 05/100 Dollars ($1.05) per one thousand (1,000) square feet; and
4. **Annual Electrical Permit:** One and 05/100 Dollars ($1.05) per one thousand (1,000) square feet.

**B. Additional fees.** In addition to fees assessed for annual permits, the following fees shall be assessed:

1. **Permit and licensing system maintenance fee.** A permit surcharge of Four Dollars ($4.00) shall be charged on each permit to maintain the permit and licensing system.
2. **Record retention fee.** In addition to any permit or license fee, a fee of One and 30/100 Dollars ($1.30) per page shall be charged for the retention of permits, licenses and associated data by microfilming, computer imaging or other method of record storage.
3. **Penalty fee authorized.** If work is started prior to issuance of the required permit, a penalty fee shall be charged in addition to the regular permit fee. The penalty fee shall be One Hundred Thirty-Two Dollars ($132.00) or triple the cost of the regular fee, whichever is greater; provided, that for emergency work started outside regular business hours, including weekends and holidays, a permit must be obtained no later than the first work day after the work is started. Upon satisfactory proof of such emergency, no penalty fee shall be required.

   The assessment or payment of this fee shall not relieve any person from fully complying with all requirements of this code, nor shall such payment exempt the person from further penalty, such as suspension or revocation of any certificate of registration.
4. **Failed inspection fee.** Failed inspections due to faulty work, or work not completed or ready for inspection when the code official is notified to make such inspection shall be assessed additional fees at Thirty-Two Dollars ($32.00) per inspection.

5. **Concealment fee.** Work that is covered or concealed without the approval of the code official is in violation of the code and shall be subject to a civil penalty in an amount not exceeding Fifty-Two and 50/100 Dollars ($52.50) for each occurrence. The assessment or payment of this penalty shall not relieve any person from fully complying with all the requirements of this title nor shall such payment exempt the person from further penalty provided by law.
6. **Appeals fee.** A fee of Thirty-Two Dollars ($32.00) shall be charged for an appeal from the code official's decision in enforcing this title. Upon a successful appeal to either a board of appeals or the City Council, this fee shall be refunded to the applicant.

*(Ord. No. 20628)*

**Section 108. Revocation of annual permit.**

**A.** Any annual permit issued by the City of Tulsa may be revoked by the Mayor upon a finding that:

1. The permit holder has performed or allowed the performance of work not authorized by the annual permit or has violated any special terms or conditions imposed upon such permit;
2. The permit holder has refused to permit the inspection of all work performed by the permit holder pursuant to an annual permit;
3. The permit holder has performed work in buildings or structures not covered by the annual permit, without obtaining required individual permits authorizing such work; or
4. The permit holder has made a misrepresentation of a material fact in his application for issuance of an annual permit or in his application for renewal of his annual permit.

**B.** If an annual permit is revoked by the Mayor, the Mayor shall notify the holder of the permit in writing and the Mayor's decision shall be final unless, within ten (10) days of receipt of such notice, the holder of the permit shall file with the City Clerk a petition for review of the Mayor's decision by the Council.

If a petition for review of the Mayor's decision is timely filed with the Clerk, the Secretary of the Council shall, within five (5) days of such filing, notify the petitioner and the Mayor of the date of the public hearing which date shall be within twenty (20) days of the filing of the petition for review. At the conclusion of the hearing, the Council may approve or rescind the Mayor's revocation of the annual permit, may impose conditions or safeguards and/or may require a guarantee or bond necessary to insure compliance with any condition or limitation which it may impose.

**C.** Any aggrieved person who suffers, sustains or incurs direct personal detriment as a consequence of the issuance or renewal of an annual permit, may petition the Mayor, in writing, to revoke an annual permit for the reasons herein stated. The Mayor shall notify the petitioner of his decision in writing, and his decision shall be final unless, within ten (10) days of receipt of such notice, the petitioner shall file with the City Clerk a petition for review by the Council.

If a petition for review of the Mayor's decision is timely filed with the Clerk, the Secretary of the Council shall, within five (5) days of such filing, notify the petitioner,

the permit holder and the Mayor of the date of the public hearing, which date shall be within twenty (20) days of the filing of the petition for review. At the conclusion of the hearing, the Council may approve or rescind the Mayor's decision.

## Section 109. Mayor defined.

For the purposes of this chapter, Mayor shall mean the Mayor of the City of Tulsa or his authorized representative.

# TITLE 51 BUILDING CODE

**Chapter 1. ICC International Building Code, 2018 Edition, Adopted**
**Chapter 2. ICC International Residential Code for One- and Two-Family Dwellings, 2018 Edition, Adopted**
**Chapter 3. Manufactured Homes, Mobile Homes, Modular Structures, Recreational Vehicles and Mobile Home Parks**
**Chapter 4. ICC International Existing Building Code, 2018 Edition, Adopted**
**Chapter 5. Residential Swimming Pools, Spas and Hot Tubs**
**Chapter 6. Self-Certification Program for Plan Review**
**Chapter 7. Third-Party Plan Review and Inspection Program**

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# CHAPTER 1. ICC INTERNATIONAL BUILDING CODE, 2018 EDITION, ADOPTED

Section 100. Adoption of the ICC International Building Code, 2018 Edition.
Section 101. Amendments to the ICC International Building Code, 2018 Edition.

## Section 100. Adoption of the ICC International Building Code, 2018 Edition.

A certain document, three (3) copies of which are on file in the office of the City Clerk of the City of Tulsa, Oklahoma, being marked and designated as the *ICC International Building Code*, 2018 Edition, as published by the International Code Council, Inc., hereinafter the "Building Code" is hereby adopted for the control of buildings and structures other than detached one- and two-family dwellings and townhouses, as herein provided. Each and all of the regulations, provisions, penalties, terms and conditions of the *ICC International Building Code*, 2018 Edition, are hereby referred to, adopted and made a part hereof as if fully set out in this chapter with the amendments thereto, prescribed in Section 101 of this chapter.

*(Ord. Nos. 18094, 19117, 20828, 21782; Ord. No. 22761, § 1, 9-20-2012; Ord. No. 22898, § 1, 6-27-2013; Ord. No. 22999, § 1, 12-12-2013; Ord. No. 23394, § 1, 10-29-2015; Ord. No. 24829, § 1, 5-25-2022)*

## Section 101. Amendments to the ICC International Building Code, 2018 Edition.

The following sections of the ICC International Building Code, 2018 Edition are hereby added, deleted or amended to read as follows:

**101.1 Title - Amendatory.** These regulations shall be known and may be cited as the "Building Code of the City of Tulsa, Oklahoma," hereinafter referred to as the "Building Code" or "this code."

**101.2 Scope - Amendatory.** The provisions of this code shall apply to the construction, alteration, relocation, enlargement, replacement, repair, equipment, use and occupancy, location, maintenance, removal and demolition of every building or structure or any appurtenances connected or attached to such buildings or structures.

**Exceptions:**

1. Detached one- and two-family dwellings and multiple single-family dwellings (town houses) not more than three stories above grade plane in height with a separate means of egress and their accessory structures shall comply with the International Residential Code for One and Two Family Dwellings of the City of Tulsa, Oklahoma, Title 51, Tulsa Revised Ordinances, Chapter 2.
2. One- and two-family dwellings or townhouses relocated or moved inside the corporate limits of the City shall comply with the provisions of the Building Code of the City of Tulsa Title 51, Tulsa Revised Ordinances, Chapter 1.

**101.4.3 Plumbing - Amendatory.** The provisions of the International Plumbing Code, as adopted in the Plumbing Code of the City of Tulsa, Oklahoma, Title 56, Tulsa Revised Ordinances shall apply to the installation, alteration, repair and replacement of plumbing systems, including equipment, appliances, fixtures, fittings and appurtenances, and where connected to a water or sewage system, and all aspects of a medical gas system. Regulations promulgated by the Oklahoma Department of

Environmental Quality (ODEQ) and published in Oklahoma Administrative Code (OAC), Title 252, Chapter 641, entitled "Individual and Small Public On-site Sewage Disposal Systems" shall apply to private sewage disposal systems.

**101.4.7 Existing buildings - Amendatory.** Existing buildings undergoing repair, alterations or additions, change of occupancy or relocation shall be permitted to comply with the International Existing Building Code of the City of Tulsa, Oklahoma, Title 51, Tulsa Revised Ordinances, Chapter 4.

**101.5 Conflict with Other Ordinances or Statutes - Added.** No provisions of this code shall be held to deprive any federal or state agency or any municipal authority having jurisdiction, of any power or authority which it had on the effective date of this code or of any remedy then existing for the enforcement of its orders.

**102.7 Buildings Owned by the City of Tulsa - Added.** Buildings and structures owned by the City of Tulsa which are located inside or outside the corporate limits of the City, shall comply with the requirements of this code.

**103.1 Enforcement Agency - Amendatory.** The term "Department of Building Safety," as used within the ICC International Building Code, 2018 Edition shall mean the Development Services Division of the Planning and Development Department of the City of Tulsa or other department, division or section of the City of Tulsa authorized and directed to enforce the provisions of this code.

**103.4 Code of Ethics - Added.** Staff members of the Development Services Division of the Planning and Development Department of the City of Tulsa shall ascribe to and be guided in professional conduct as code officials and department representatives as stipulated within Title 12, Chapter 6 "Ethics Code," Tulsa Revised Ordinances.

**103.5 Qualifications of Code Officials - Added.** The building official and deputies, otherwise known as "code officials," shall have experience in commercial or residential building work, as determined by their job descriptions and responsibilities, and possess certification by the International Code Council, Inc. or other testing agencies, as approved by the Director of the Planning and Development Department.

**104.2.1 Determination of substantially improved or substantially damaged existing buildings and structures in flood hazard areas - Amendatory.** For applications for reconstruction, rehabilitation, repair, alteration, addition or other improvement of existing buildings or structures located in flood hazard areas, the building official shall determine if the proposed work constitutes substantial improvement or repair of substantial damage. Where the building official determines that the proposed work constitutes substantial improvement or repair of substantial damage, and where required by this code, the building official shall require the building to meet the requirements of Section 1612. The cost used in the substantial improvement determination shall be the cumulative costs of all previous improvements for a specific building or structure occurring during the immediate past 10-year period.

**104.10.1 Flood Hazard Areas, and Areas Prone to Flooding - Amendatory.** The code official shall not grant modifications to any provision related to flood hazard areas and areas prone to flooding, as established by the current City of Tulsa Regulatory Floodplain Map Atlas, without the grant of a variance by the Stormwater Drainage and Hazard Mitigation Advisory Board, as provided in Title 11-A, Tulsa Revised Ordinances.

**105.1.1 Annual permit - Amendatory.** An annual permit is a yearly permit which represents a group of individual permits for each alteration to an already approved electrical, gas, mechanical or plumbing installation. The building official is authorized to issue an annual permit upon application therefor to any person, firm or corporation regularly employing one or more qualified tradespersons in the building, structure or on the premises owned or operated by the applicant for the permit.

**105.1.2 Annual Permit Records - Amendatory.** The person to whom an annual permit is issued shall keep a detailed record of alterations made under such annual permit, in accordance with Title 50, Tulsa Revised Ordinances, titled "Annual Permits." The code official shall have access to such detailed records of alterations at all times or such records shall be filed with the code official as designated. At the completion of the entity's annual permit term, the applicant shall file such detailed records of alterations with the building official. Pursuant to the authority of 59 O.S. § 1000.25, the building official shall collect fees for each individual permit which is part of the annual permit once the detailed records are submitted and remit such fees to the OUBCC.

**105.1.3 By Whom an Application is Made - Added.** An application for a permit shall be made by the owner or lessee of the building or structure, or the agent of either, or by the licensed architect or engineer employed in connection with the proposed work. If an application is made by a person other than the owner in fee, it shall be accompanied by an affidavit of the owner or the qualified applicant or a signed statement of the qualified applicant witnessed by the code official or the official's designee, informing that the proposed work is authorized by the owner in fee and that the applicant is authorized to make such application. The full names and addresses of the owner, lessee, applicant, and the responsible officers, if the owner or lessee is not a natural person, shall be stated on the application. The owner of the building or structure, or the owner's authorized agent(s), shall at all times retain ownership rights and authority for use and control of such application and any related subsequent permits issued pursuant to this code.

**105.3.1.1 Bond Required - Added.** The code official, or designated representative, shall not issue a permit for the demolition or destruction of a building or structure until a suitable bond has been provided, protecting the adjacent owners from damages. Such bond shall be in the minimum amount as provided in Title 49, Tulsa Revised Ordinances, Chapter 3, and may be increased if in the opinion of the code official the location of the building to be demolished or destroyed requires a larger bond. The code official, or designated representative, may waive the requirement of bond if the official is satisfied that the particular building or structure can be demolished or destroyed without damage to adjoining buildings or properties.

**105.3.3 Payment of Permit Fees - Added.** Upon acceptance of application for a permit, an application fee shall be paid. Upon approval, the applicant shall be notified the permit is ready and advised of what remaining fees are due. In order for the permit to be valid, all fees shall have been paid in full and the permit posted at the job site prior to beginning construction. Payments for permits are due upon notification to the applicant that the permit is approved and is ready for issuance. Any permit not paid for within thirty (30) days after notification may be deemed void by the code official and the application fee shall then be forfeited.

**105.3.4 Eating or Drinking Establishments - Added.** Each applicant for a permit for a structure to be used as an eating or drinking establishment shall provide two (2) additional copies of the Plans and specifications for the proposed structure. The Tulsa City-County Health Department shall review the documents for compliance with the Food Code of the City of Tulsa, as provided in the Tulsa Revised Ordinances.

**105.3.5 Zoning Clearance Permit Required - Added.** The code official shall not issue a building permit for any building or structure until and unless the code official is furnished a zoning clearance permit stating that the use or occupancy of such building or structure complies with, or, upon completion, will comply with applicable zoning ordinances of the City of Tulsa.

**105.3.6 Alarm Industry Act Adopted and Incorporated by Reference - Added.** The Alarm Industry Act, Title 59 O.S. Section 1800.1 et seq. as amended is hereby adopted by reference and incorporated into this code as if set out at-length here, save and except any portions which may be added, deleted or amended in this title.

**105.3.6.1 Fire Extinguisher Industry Act Adopted and Incorporated by Reference - Added.** The Fire Extinguisher Industry Act, Title 59 O.S. Supp. 2007, Section 1820.1 et seq. as amended is hereby adopted by reference and incorporated into this code as if set out at-length here, save and except any portions which may be added, deleted or amended in this title.

**105.3.6.2 Fire Sprinkler Permits - Added.** The code official shall not issue a permit for the installation, alteration or repair, of fire sprinkler systems, and related equipment, including standpipes, and hose connections to fire sprinkler systems, air line systems used in connection with fire sprinkler systems, and to connect tanks and pumps, until the person, firm, corporation or limited liability company installing the same shall have on file with the City of Tulsa a surety bond in the amount of Two Thousand Five Hundred Dollars ($2,500.00). Such bond shall be on a form satisfactory to the City, guaranteeing payment of all obligations and guaranteeing the work to be installed in accordance with the provisions of this code. No person, firm, corporation or limited liability company shall install automatic fire sprinkler systems unless licensed as provided in Title 59 O.S. Section 1800.1 et seq., as amended, and related rules and regulations.

**105.3.6.3 Licensing - Added.** All fire alarm and fire sprinkler systems governed by this code shall be installed, inspected and repaired by licensed firms and technicians in compliance with occupational licensing laws and regulations promulgated by the Oklahoma Department of Labor, and published in the Oklahoma Administrative Code (OAC), Section 380:75. All fire extinguisher systems governed by this code shall be installed, inspected and repaired by licensed firms and technicians in compliance with occupational licensing laws and regulations promulgated by the Oklahoma State Fire Marshal Commission, and published in the Oklahoma Administrative Code (OAC), Section 265:50.

**107.2.2 Fire Protection System Shop Drawings - Amendatory.** Shop drawings for the fire protection system(s) shall be submitted to indicate conformance with this code and the construction documents. An application for a permit shall be submitted prior to the start of system installation. Any applicant for a permit that begins construction activities prior to an approved permit being issued shall be proceeding at their own risk. Regardless, a permit shall be required before a rough-in inspection may be

requested for the system(s) and prior to the system(s) being concealed. Shop drawings shall contain all information required by installation standards referenced in Chapter 9 of this code.

**107.2.6 Site plan - Amendatory.** The construction documents submitted with the application for permit shall be accompanied by a site plan showing to scale the size and location of new construction and existing structures on the site, property boundaries, distances from lot lines, the established grades and the proposed finished grades, easements, rights-of-way, utilities and, as applicable, flood hazard areas, floodways, design flood elevations and finished floor elevations; and it shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the site or plot. The building official is authorized to waive or modify the requirement for a site plan where the application for permit is for alteration or repair or where otherwise warranted.

**107.3.5 Approval of Water and Sewer Plans - Added.** If the property is not served by an adequate public water supply or public sanitary sewer system, each applicant for a permit for a structure requiring a water supply and sewage disposal shall develop the site in accordance with adopted City ordinances.

**108.3 Temporary Power - Amendatory.** The building official is authorized to give permission to temporarily supply and use power in part of an electrical installation before such installation has been fully completed and the final inspection has been approved. The part covered by the temporary permit shall comply with the requirements specified for temporary lighting, heat, or power in the Electrical Code of the City of Tulsa, Title 52, Tulsa Revised Ordinances.

**109.2 Schedule of permit fees - Amendatory.** All permit and inspection fees for work encompassed in this chapter shall be paid in accordance with the schedule established in Title 49, Tulsa Revised Ordinances Chapters 1 and 3.

**109.3 Building Permit Valuations - Amendatory.** The applicant for a permit shall provide an estimated permit value at the time of application. Permit valuations shall include total value of work, including materials and labor, for which the permit is being issued, such as electrical, gas, mechanical, plumbing equipment, and permanent systems. If, in the opinion of the building official, the valuation is underestimated on the application, the permit shall be (1) denied, or (2) approved using an adjusted valuation substituted by the building official, or (3) approved using a valuation submitted by the applicant based upon detailed estimates meeting the approval of the code official. Final building permit valuation shall be set by the building official.

**110.3.3 Lowest Finished Floor Elevation - Amendatory.** When a lowest finished floor elevation is specified in a permit for structures located in flood hazard areas or areas prone to flooding, as established by the current City of Tulsa Regulatory Floodplain Map Atlas, no further vertical construction shall be performed after approval of the slab or floor, until an elevation certificate, verifying the lowest floor elevation, has been received and approved by the code official. The elevation certificate shall be prepared by a land surveyor or engineer who is licensed by the State of Oklahoma, using an appropriate form provided by the code official.

**110.3.3.1 Final Floodplain Elevation Certificate - Added.** Prior to the final inspection, a final elevation certificate shall be required for structures located in areas

prone to flooding, as established by the current City of Tulsa Regulatory Floodplain Map Atlas. The final elevation certificate shall be prepared by a land surveyor or engineer licensed by the State of Oklahoma, using an appropriate form provided by the code official. The certificate shall confirm the lowest finished floor elevation and verify the lowest elevation of mechanical equipment. A certificate of occupancy shall not be issued unless the final elevation certificate is approved by the code official.

**110.3.3.2 Flood-proofing Certificate - Added.** In lieu of elevating a non-residential structure, or non-residential portions of a mixed-use structure, to the specified finished floor elevation as provided in Sections 110.3.3 and 110.3.3.1 of this code, a non-residential structure, or nonresidential portions of a mixed-use structure, located in flood hazard areas or areas prone to flooding, as established by the current City of Tulsa Regulatory Floodplain Map Atlas, undergoing substantial improvement, may be flood-proofed in accordance with other sections of this code. An engineer or architect licensed by the State of Oklahoma shall prepare a certificate of flood-proofing and submit it to the code official for approval prior to the final inspection. The certificate shall be in an appropriate form provided by the code official.

**110.3.8 Energy Efficiency Inspection-Deleted.** Section 110.3.7 of the ICC International Building Code, 2018 Edition is intentionally deleted from this code.

**110.6 Approval required - Amendatory.** No work shall be done beyond the point indicated in each successive inspection without first obtaining the approval of the code official. Upon notification, the code official shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed, or notify the permit holder or an agent of the permit holder where it fails to comply with this code. Any portions that do not comply shall be corrected and such portion shall not be covered, concealed or occupied until authorized by the code official. Work that is covered or concealed, or occupied without approval of the code official shall be in violation of this code and shall be penalized by the imposition of a civil fine as provided in Title 49, Tulsa Revised Ordinances, Chapter 1, for each occurrence and may result in a hearing before the Board of Appeals. Each day, or portion thereof, during which a violation is committed, continued or permitted shall be deemed a separate offense. The assessment or payment of this penalty shall not relieve any person from fully complying with all requirements of this code nor shall such payment exempt the person from further penalty provided by law.

**113.1 Board of Appeals Created - Amendatory.** In order to hear and decide appeals of orders, decisions, or determinations made by the building, fire, or other code officials relative to the application and interpretation of Tulsa Revised Ordinances Titles 14, 51, 52, 56, or 59, there shall be and is hereby created a Board of Appeals.

**113.1.1 Membership of Board - Added.** The Board shall be composed of the following thirteen (13) members and two (2) alternates, appointed by the Mayor and confirmed by the City Council:

Thirteen (13) Members:

One (1) electrical contractor

One (1) mechanical or plumbing contractor

One (1) mechanical stationary engineer

One (1) fire protection contractor

One (1) commercial building contractor

One (1) residential building contractor

One (1) structural engineer

One (1) mechanical, electrical, or plumbing consultant engineer

One (1) fire protection engineer

One (1) architect

One (1) member of the Home Builders Association of Greater Tulsa

One (1) member of the Building Owners and Managers Association of Tulsa

One (1) mayoral designee

Two (2) Alternates of similar qualification as any Member:

Alternates may be called upon to ensure quorum of the board during times when a sufficient number of regular members is not available. Alternates shall receive notices and all meeting materials and may attend all meetings. They will serve as voting members only when needed to provide a quorum.

Appointments shall be for terms of three (3) years and shall commence on July 1. Upon death, removal, or resignation of any member, a new member shall be appointed to serve out the unexpired term. Members shall serve until their successors are duly appointed and qualified.

**113.1.2 Election of Officers - Added.** At the July meeting of each year, the Board shall elect one of its members as chairman and one as vice-chairman, both to serve for the ensuing year. The code official shall serve, ex-officio, as a non-voting secretary of the Board. The fire code official shall serve, ex-officio, as a non-voting member of the Board.

**113.1.3 Meetings of Board - Added.** The Board shall meet at the call of the chairman or three (3) members of the Board. Seven (7) members of the Board shall constitute a quorum. Insofar as possible, all business meetings shall be conducted in accordance with the parliamentary rules set forth in Robert's Rules of Order. The Office of Building Inspection shall maintain records of all proceedings of Board meetings. Prior to each meeting, a complete agenda and the minutes of the previous meeting shall be provided to all Board members.

**113.1.4 Attendance - Added.** Each member of the Board shall attend all Board meetings except for reasons beyond the member's control. Any member who misses three (3) consecutive meetings of the Board shall be recommended to the Mayor for removal and replacement.

**113.1.5 Powers and Duties of the Board - Added.**

**1.** The Board shall hear all appeals from decisions of the building, fire, or other code officials and shall interpret the provisions of the applicable code whenever a dispute arises as to the meaning or intent of any provision. In the event of a dispute between interested parties, the code official may, as necessary, order part or all of the construction work to cease; provided that within twenty (20) days after an order from the code official has been issued, the appellant may file a written notice of appeal with the Board. Thereafter the appellant may proceed with the work at the appellant's own risk, pending determination of the dispute.

**2.** The Board shall serve as an advisory board to the Council with respect to technological advances in equipment standards, in installation and performance, and other matters related.to buildings and structures.

**3.** The Board shall adopt rules of procedure for the transaction of its business. The Board shall have the authority to establish ad hoc committees and select appropriate representatives with technical expertise and experience to provide guidance and recommendations on specific and focused issues as may be desired.

**4.** The Board may suspend, revoke, or cancel any License or Certificate of Registration issued pursuant to the City of Tulsa Electrical, Mechanical, or Plumbing Codes (Titles 52, 56 or 59) if it has reason to believe or finds that the holder of the License or Certificate has:

**a.** Made a material misstatement in the application for any License or Certificate or renewal thereof; or

**b.** Loaned or illegally used the License or Certificate; or

**c.** Violated any provisions of the City's applicable codes.

**113.1.6 Initiation of an Appeal - Added.** Any person aggrieved by a decision of the building, fire, or other code officials may appeal the decision to the Board of Appeals. The initiation of such an appeal shall be in writing and shall be filed with the City Clerk and the Code Official whose decision is being appealed no later than twenty (20) days after the code official's decision was made known to the aggrieved person. The notice of appeal shall:

**1.** Set forth in detail the precise decision or requirement being appealed;

**2.** State precisely why the decision or requirement is in error;

**3.** Designate the section(s) of the code, other ordinances or statute(s) which support(s) the appellant's position; and

**4.** Be accompanied by a fee as provided in Title 49, Tulsa Revised Ordinances, Chapter 1.

**113.1.7 Board Investigation and Hearing - Added.** Upon receipt by the Board of a written notice of appeal filed by the code official or any aggrieved person, or upon the Board's own motion, the Board shall make such investigation into the complaint which it may deem necessary and hold a hearing upon the appeal.

**113.1.8 Notice of Hearing - Added.** The Board shall meet upon notice from the chairman within twenty (20) days of the filing of an appeal or at a stated periodic meeting. The appellant shall be notified by regular mail of the date, time and place of the hearing which shall include:

**1.** A statement of the date, time, place and nature of the hearing;

**2.** A statement of the legal authority and jurisdiction under which the hearing is to be held;

**3.** A reference to the particular section(s) of the code and rules involved;

**4.** A short, plain statement of the complaint or appeal and a statement of the issues before the Board;

**5.** A statement that the nature of the proceeding before the Board will be an informal inquiry into the complaint at which time an opportunity will be afforded for the individual to respond to the allegations in the notice of appeal by the presentation of testimony or documentary evidence; and

**6.** A statement that the individual has a right to be represented by legal counsel.

**113.1.9 Board Decision Upon Hearing an Appeal - Added.**

**1.** At the conclusion of a hearing on an appeal, the Board shall affirm, modify, or reverse the decision of the code official by a concurring vote of a majority present.

**2.** A decision of the Board on a technical dispute shall be res judicata and the Board may, in its discretion, refuse to hear appeals involving interpretation of codes, statutes or ordinance provisions upon which a decision by the Board has been previously made. When the Board determines that a decision made by it has industry-wide implications, the Board may direct its secretary to advise all registered contractors by letter of such decision.

**3.** Any rulings, requirements, decisions or interpretations of the Board shall be final and binding upon all parties, unless appealed to the City Council.

**113.1.10 Suspension or Revocation of Certificates of Registration - Added.**

**1.** Written Complaint. Upon receipt of a written complaint to the Board, filed by the code official or any aggrieved person, or upon the Board's own motion, the Board shall make any investigation into the complaint which it may deem necessary and thereafter shall conduct a hearing upon such complaint.

**2.** Notice of Hearing. Within ten (10) days after the filing of a written complaint, the Board shall serve written notice of the complaint upon the Certificate holder. The notice shall be served either personally or by certified mail, return receipt requested, at least ten (10) days prior to any scheduled hearing and shall include:

**2.1.** A statement of the time, place, and nature of the hearing;

**2.2.** A statement of the legal authority and jurisdiction under which the hearing is to be held;

**2.3.** A reference to the particular section(s) of the code and rules involved;

**2.4.** A short, plain statement of the complaint and a statement of the issues before the Board;

**2.5.** A statement that the nature of the proceeding before the Board will be an informal inquiry into the complaint, at which time an opportunity will be afforded the individual to respond to the allegations in the complaint by the testimony of witnesses, or by documentary evidence;

**2.6.** A statement that the individual has a right to be represented by legal counsel; and

**2.7.** A statement that, based upon the evidence presented at the hearing, the Board may deny, suspend, revoke, or cancel the individual's Certificate of Registration.

**3.** Determining Vote. A decision to deny, suspend, revoke, or cancel a Certificate of Registration shall require the concurring vote of a majority present.

**113.1.11 Enforcement of Board Action Stayed - Added.** If any ruling, requirement, decision or interpretation of the Board is appealed to the City Council, the enforcement of the Board's action shall automatically be stayed until the Council has rendered a final decision.

**113.4 Appeals to the City Council from the Board - Added.**

1. Any person(s) aggrieved by a decision of the Board may perfect an appeal to the City Council by filing a written notice of appeal with the City Clerk and with the Secretary of the City Council within ten (10) days from the date of the action by the Board. Such notice shall specify the grounds for the appeal. A hearing on the appeal shall be commenced by the Council no later than thirty (30) days from the date the notice of appeal was filed with the City Clerk.
2. The City Council shall have jurisdiction to affirm, modify, reverse, or remand the action of the Board. Where practical difficulties or an unnecessary hardship will result from the strict application of this code, the Council shall have the power, in a specific case, to grant a variance from any provision, in accordance with the general purpose and intent of the code, so that the public health, safety, convenience, prosperity, and general welfare may be secured and substantial justice done. Any such variance shall not be construed as an amendment or a general waiver of any provision of this code.

**113.5 Appeal from City Council Action - Added.** Any rulings, requirements, decisions or interpretations of the City Council shall be final and binding upon all parties, provided that any right of appeal to the courts shall not be abrogated.

**113.6 Computation of Time - Added.** In computing any period of time prescribed or allowed by this title, the day of the act, event, or default from which the designated period of time begins to run shall not be included. The last day of the period computed shall be included, unless it is a legal holiday as recognized by the City of Tulsa, or any other day when the office of the City Clerk does not remain open for public business until its regularly scheduled closing time, in which event the period shall run until the end of the next day which is not a legal holiday or a day when the office of the City Clerk does not remain open for public business until its regularly scheduled closing time. Unless the context of a period of time clearly indicates otherwise, a period of time prescribed in days shall be calendar days, including holidays and any other day when the office of the City Clerk is not open for public business until its regularly scheduled closing time.

**114.4 Violation Penalties - Amendatory.** It shall be unlawful and a misdemeanor offense for any person, firm, corporation or limited liability company to violate any of the provisions of this code, fail to comply with any of the requirements thereof, or erect, construct, repair, alter or change the occupancy of a building or structure in violation of approved construction documents, a directive of the code official, or of a permit or certificate issued under the provisions of this code. Any person, firm, corporation or limited liability company convicted of a violation of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, continued or permitted shall be deemed a separate offense.

**114.5 Abatement of Violation - Added.** The imposition of civil or criminal penalties prescribed in this code shall not preclude the City Attorney from instituting appropriate action to restrain or enjoin unlawful construction, the illegal occupancy of a building, or to stop an illegal act, conduct, business, or operation of systems, or to abate any such violation.

**115.3 Unlawful Continuance - Amendatory.** It shall be unlawful and a misdemeanor offense for any person, firm, corporation or limited liability company to continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition. Any person, firm, corporation or limited liability company convicted of a violation of this section shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, continued or permitted shall be deemed a separate offense.

**Section 117. Emergency Measures - Added.**

**117.1 Imminent Danger - Added.** When, in the opinion of the code official, there is an imminent danger of failure or collapse of a building that endangers life, or when any building or part of a building has fallen and life is endangered by the occupation of the building, or when there is actual or imminent danger to the building occupants or those in the proximity of any structure because of explosives, explosive fumes or vapors, or the presence of toxic fumes, gases, or materials, or operation of defective or dangerous equipment, the code official is authorized and empowered to order and require the occupants to vacate the premises immediately. The code official shall then cause to be posted at each entrance to such structure a notice reading as follows: "THIS STRUCTURE IS UNSAFE AND ITS OCCUPANCY HAS BEEN PROHIBITED BY THE CODE OFFICIAL." It shall then be unlawful and a misdemeanor offense for any person to enter such structure except for the purpose of securing the structure, making the required repairs, removing the hazardous condition, or demolishing it.

**117.2 Temporary Safeguards - Added.** Notwithstanding other provisions of this code, whenever, in the opinion of the code official, the unsafe condition of any building or structure creates an imminent peril to life or property, the code official shall order the necessary work to be done, including the boarding up of openings, to render the building or structure temporarily safe and shall cause such other action to be taken as the code official deems necessary to temporarily abate the unsafe condition.

**117.3 Temporary Closure of Structures or Streets Due to Unsafe Condition - Added.** When necessary for public safety, the code official shall be authorized to temporarily close any unsafe structure and any adjacent sidewalk, street, alley, public way, or place, and prohibit access until the unsafe condition of the structure is abated.

**202 Definitions - Amendatory.**

Safe room - Added. A building or structure or portions thereof, constructed in accordance with ICC/NSSA Standard for the design and construction of Storm Shelters® (ICC 500®) and constructed to provide near-absolute protection for its occupants from severe wind storm events such as tornados.

**(1)** Community safe room. A safe room designed and constructed in accordance with the Federal Emergency Management Agency (FEMA) document P-361 entitled "Design and Construction Guidance for Community Safe Rooms®" ("FEMA P-361®"), intended to provide life-safety protection for more than 16 persons.

**(2)** Other safe room. A safe room designed and constructed in accordance with FEMA P-361® Design and Construction Guidance for Community Safe Rooms or FEMA P-320® entitled "Taking Shelter from the Storm: Building a Safe Room for your Home or Small Business®", located in a residence or non-residential building or structure, intended to provide life-safety protection for 16 people or less.

**CAPACITOR ENERGY STORAGE SYSTEM.** A stationary, rechargeable energy storage system consisting of capacitors, chargers, controls and associated electrical equipment designed to provide electrical power to a building or facility. The system is typically used to provide standby or emergency power, an uninterruptable power supply, load shedding, load sharing or similar capabilities.

**INTERMODAL SHIPPING CONTAINER.** A six-sided steel unit originally constructed as a general cargo container used for the transport of goods and materials.

**305.2.4 Seven or fewer children in a detached dwelling - Added.** A facility such as the above within a detached dwelling and having seven or fewer children receiving such day care shall be permitted to comply with the International Residential Code® (IRC®). This number shall include children two and one-half years or less of age.

**305.2.5 Eight to 12 children in a detached dwelling - Added.** A facility such as the above within a detached dwelling and having eight to 12 children receiving such day care shall comply with the IRC® provided an automatic sprinkler system is installed in accordance with Section 903.3.1.3 or Section P2904 of the IRC®. This number shall include children two and one-half years or less of age.

**310.4 Residential Group R-3.** Residential Group R-3 occupancies where the occupants are primarily permanent in nature and not classified as a Group R-1, R-2, R-4 or I, including:

**(A)** Buildings that do not contain more than two dwelling units.

**(B)** Care facilities that provide accommodations for five or fewer persons receiving care.

**(C)** Congregate living facilities (nontransient) with 16 or fewer occupants.

**(i)** Boarding houses (nontransient).

**(ii)** Convents.

**(iii)** Dormitories.

**(iv)** Fraternities and sororities.

**(v)** Monasteries.

**(D)** Congregate living facilities (transient) with 10 or fewer occupants - Boarding houses (transient).

**(E)** Lodging houses (transient) with four or fewer guest rooms and no more than 2 persons per room.

**310.4.2 Lodging houses.** Owner-occupied lodging houses with four or fewer guest rooms and no more than 2 persons per room shall be permitted to be constructed in accordance with the International Residential Code®.

**310.5.3 Lodging houses - Amendatory.** Owner-occupied lodging houses with four or fewer guest rooms shall be permitted to be constructed in accordance with the IRC®.

**403.4.8.2. Fuel line piping protection.** Fuel lines supplying a generator set inside a building shall be separated from areas of the building other than the room the generator is located in, by one of the following methods:

**(A)** A fire-resistant pipe-protection system that has been tested in accordance with UL 1489. The system shall be installed as tested and in accordance with the manufacturer's installation instructions, and shall have a rating of not less than 2 hours. Where the building is protected throughout with an automatic fire sprinkler system installed in accordance with Section 903.3.1.1, the required rating shall be reduced to 1 hour.

**(B)** An assembly that has a fire-resistance rating of not less than 2 hours. Where the building is protected throughout with an automatic sprinkler system installed in accordance with Section 903.3.1.1, the required fire-resistance rating shall be reduced to 1 hour.

**(C)** Other approved methods.

**406.7.2.1 Canopies used to support lighter-than-air gaseous systems.** Canopies that are used to shelter dispensing operations where flammable compressed gases are located on the roof of the canopy shall be in accordance with the following:

**(A)** The canopy shall meet or exceed Type I construction requirements.

**(B)** Operations located under canopies shall be limited to refueling only.

**(C)** The canopy shall be constructed in a manner that prevents the accumulation hydrogen of gas.

**406.7.2.2 Canopies sheltering units and devices that dispense lighter-than-air gas.** Where CNG, LNG, or Hydrogen motor fuel dispensing devices are installed beneath a canopy, the canopy shall be designed to prevent the accumulation or entrapment of ignitable vapors, including provisions for natural or mechanical ventilation means, or all electrical equipment installed beneath the canopy or within the enclosure shall be suitable for Class I, Division 2 hazardous (classified) locations. Tank vents that are installed within or attached to the canopy shall extend a minimum of 5 feet (1524 mm) above the highest projection of the canopy. Compression and storage equipment located on the top of the canopy shall be in accordance with current State of Oklahoma adopted International Fire Code®, Section 2309.

**407.5 Smoke barriers - Amendatory.** Smoke barriers shall be provided to subdivide every story used by persons receiving care, treatment or for sleeping, and to divide other stories with an occupant load of 50 or more persons, into no fewer than two smoke compartments. Such stories shall be divided into smoke compartments with an area of not more than 22,500 square feet (2092 square meters) in Group I-2 Condition 1 and Condition 2. The distance of travel from any point in a smoke compartment to a smoke barrier door shall be not greater than 200 feet (60960 millimeters). The smoke barrier shall be in accordance with Section 709.

## [F] TABLE 414.5.1 ADDITION

| MATERIAL | CLASS | Barricade construction (Explosion Control Method) | Explosion (deflagration) venting or explosion (deflagration) prevention systems [b] (Explosion Control Method) |
|---|---|---|---|
| **HAZARD CATEGORY** | | | |
| Combustible dusts [c] | - | Not Required | Required |
| Cryogenic flammables | - | Not Required | Required |
| Explosives | Division 1.1 | Required | Not Required |
| Explosives | Division 1.2 | Required | Not Required |
| Explosives | Division 1.3 | Not Required | Required |
| Explosives | Division 1.4 | Not Required | Required |
| Explosives | Division 1.5 | Required | Not Required |
| Explosives | Division 1.6 | Required | Not Required |
| Flammable gas | Gaseous | Not Required | Required |
| Flammable gas | Liquefied | Not Required | Required |
| Flammable liquid | IA [d] | Not Required | Required |
| Flammable liquid | IB [e] | Not Required | Required |
| Organic peroxides | U | Required | Not Required |
| Organic peroxides | I | Required | Not Required |
| Oxidizer liquids and solids | 4 | Required | Not Required |
| Pyrophoric gas | - | Not Required | Required |
| Unstable (reactive) | 4 | Required | Not Required |
| Unstable (reactive) | 3 Detonable | Required | Not Required |
| Unstable (reactive) | 3 Non detonable | Not Required | Required |
| Water-reactive liquids and solids | 3 | Not Required | Required |
| | 2 [g] | Not Required | Required |
| **SPECIAL USES** | | | |
| Acetylene generator rooms | - | Not Required | Required |
| Electrochemical energy storage systems [i] | - | Not Required | Required |
| Grain processing | - | Not Required | Required |
| Liquefied petroleum gas-distribution facilities | - | Not Required | Required |
| Where explosion hazards exist [f] | Detonation | Required | Not Required |
| Where explosion hazards exist [f] | Deflagration | Not Required | Required |

**419.1 General - Amendatory.** A live/work unit shall comply with Sections 419.1 through 419.9.

**Exceptions:**

**1.** Dwelling or sleeping units that include an office that is less than 10 percent of the area of the dwelling unit are permitted to be classified as dwelling units with accessory occupancies in accordance with Section 508.2.

**2.** Group B, M, and F occupancies that are located in a detached dwelling unit complying with the limitations of Section 419.1.1 shall be permitted to be constructed in accordance with the IRC®.

**419.1.1 Limitations - Amendatory.** The following shall apply to all live/work areas:

**1.** The nonresidential portion of the live/work unit is permitted to be not greater than 2,500 square feet (232 square meters) in area;

**2.** The nonresidential area is permitted to be not more than 50 percent of the area of each live/work unit;

**3.** The nonresidential area function shall be limited to the first or main floor only of the live/work unit; and

**4.** Not more than five nonresidential workers or employees are allowed to occupy the nonresidential area at any one time.

**423 Storm Shelters and Safe Rooms - Amendatory.**

**423.1 General - Amendatory.** In addition to other applicable requirements in this code, storm shelters and safe rooms shall be constructed in accordance with the definitions and this section.

**423.1.1 Scope - Amendatory.** This section applies to the construction of above or below ground storm shelters or safe rooms constructed as separate detached buildings, or rooms within buildings, structures, or portions thereof for the purpose of providing safe refuge from storms that produce high winds, such as tornados. Any room or structure, as may be used as a place of refuge during a severe wind storm event, shall not be defined as a storm shelter or safe room unless specifically designed to the requirements as listed in Section 423.

**423.2 Definitions - Amendatory.** The following terms are defined in Chapter 2 of this code:

**1.** SAFE ROOM.

- **a.** Community safe room.
- **b.** Other safe room.

**2.** STORM SHELTER.

- **a.** Community storm shelter.
- **b.** Residential storm shelter.

**423.5 Required - Added.** Where storm shelters and safe rooms are provided, they shall be provided in compliance with ICC 500® except as required by Sections 423.5.1 through 423.5.1.1.

**423.5.2 Signage.** All signs, as outlined in ICC 500® Sections 108, 504.1, 504.1.1 and 504.1.2 shall comply with the applicable requirements of ICC A117.1®.

**423.5.2.1 Entrance signage.** Entrance signage, as outlined in ICC 500® Section 504.1.1 shall not be required at exterior entrances where the shelter can be accessed from within a host building and is only open to the occupants of the host building.

**423.5.3 Roof live load reduction for shelters.** Roof live load reduction in Section 1607.13.2.1 (Equation 16-26) shall not be allowed for roof live loads stipulated under ICC 500® Section 303.2.

**423.5.4 Design wind speed.** For storm shelters, the minimum design wind speed for the entire State of Oklahoma shall be 250 miles per hour.

**423.5.5 Usable storm shelter floor area.** The usable storm shelter floor area shall be determined by ICC 500® Section 501.1.2.1 or 501.1.2.2.

**Exception:** Areas within privacy enclosures for sanitary facilities shall not be included in the usable floor area calculations.

**423.5.6 Door operation.** Means of egress doors shall be operable from the inside without the use of keys or special knowledge or effort.

**423.5.6.1 Additional door and shutter operation.** Doors and shutters designed to protect windows or other unprotected openings not in a required means of egress in storm shelters shall be operable from the inside without the use of keys or special relocatable tools.

**423.5.7 Height of storm shelter.** When determining the location of natural ventilation in accordance with ICC 500® Section 702.1.1.1, the height of the storm shelter shall be defined as an average of the vertical dimensions from the floor elevation to the bottom of the storm shelter deck or to the underside of a hard ceiling within the storm shelter.

**423.5.8 Additional facilities for storm shelters.** Where the required number of sanitation facilities for the storm shelter exceeds the number of facilities provided for the normal occupancy of the space, the additional facilities shall be permitted to be temporary sanitary fixtures, chemical toilets, or other means approved by the authority having jurisdiction. Temporary toilets, chemical toilets, or other approved means shall have temporary or permanent privacy enclosures such as fabric, portable screens, or other means approved by the authority having jurisdiction. Privacy enclosures shall have minimum clear inside dimensions of 5 feet by 5 feet (1524 mm by 1524 mm).

**423.5.9. Sanitary facilities support systems.** Support systems for the temporary sanitation facilities (e.g. bladders, storage tanks or vessels, etc.) shall be capable of supplying water and containing waste for the design capacity of the tornado shelter.

**423.5.10 Conversion of plumbing systems.** ICC 500® Section 702.2.4 is omitted.

**423.5.11 First aid kit.** An ANSI compliant first aid kit rated for the number of storm shelter occupants, as listed in the construction documents, shall be supplied in all tornado shelters.

**429 Cultivation, Extraction and Processing of Plant Material.**

**429.1 General.** Plant growing facilities that utilize carbon dioxide enrichment systems in accordance with Section 5307.4 of the International 17 Fire Code® and plant processing or extraction facilities in accordance with Chapter 39 of the International Fire Code® shall also comply with Sections 429.2 through 429.6.

**429.2 Construction.** The construction of buildings used for the extraction process that include the act of extraction of the oils and fats by use of solvent, desolventizing of the raw material, production of the miscella, distillation of the solvent from the miscella and solvent recovery shall comply with this section.

**Exception:** Extraction process that utilizes nonhazardous solvents or carbon dioxide.

**429.2.1 Noncombustible construction.** Extraction equipment and processes utilizing materials classified as physical hazards in accordance with Section 307 of the International Fire Code® shall be located in a room constructed of noncombustible materials.

**429.2.2 Prohibited occupancies.** Extraction equipment and extraction processes utilizing materials classified as physical hazards in accordance with Section 307 of the International Fire Code® shall not be located in any building containing a Group A, E, I, or R occupancy.

**429.3 Equipment location.** The extraction equipment and extraction processes utilizing materials classified as physical hazards in accordance with Section 307 of the International Fire Code® as solvents shall be located in a room dedicated to extraction and the room shall not be used for any other purpose. There shall be no storage of solvents in the extraction room.

**429.4 Interior finish.** Interior finish of walls and ceilings in plant growing, processing and extraction facilities shall comply with this section and Section 803.

**429.4.1 Plastic, mylar and other thin sheeting.** Plastic, mylar and other thin sheeting that covers any walls or ceilings shall comply with this section and Section 803.

**429.4.1.1 Installation.** Plastic, mylar and other thin sheeting shall not be hung from ceilings or suspended overhead structures to create divider walls or rooms.

**429.5 Emergency power system.** For extraction processes utilizing hydrocarbon gases or liquids as solvents, the extraction room lighting and ventilation system shall be provided with emergency power in accordance with Section 2702.

**429.6 Means of egress.** Extraction rooms utilizing materials classified as physical hazards in accordance with Section 307 of the International Fire Code® shall have a minimum of one exit access door that swings in the direction of egress travel. The exit access door shall be equipped with panic hardware or fire exit hardware and a self-closing or automatic-closing device.

[Source: Added at 38 Ok Reg 2573, eff 9-14-2021.]

Table 509 Incidental uses. Omitted: Stationary storage battery systems having an energy capacity greater than the threshold quantity specified in Table 1206.2 of the *International Fire Code*.

| ROOM OR AREA | SEPARATION AND/OR PROTECTION |
|---|---|
| Furnace room where any piece of equipment is over 400,000 Btu per hour input | 1 hour or provide automatic sprinkler system |
| Rooms with boilers where the largest piece of equipment is over 15 psi and 10 horsepower | 1 hour or provide automatic sprinkler system |
| Refrigerant machinery room | 1 hour or provide automatic sprinkler system |

| ROOM OR AREA | SEPARATION AND/OR PROTECTION |
|---|---|
| Hydrogen fuel gas rooms, not classified as Group H | 1 hour in Group B, F, M, S and U occupancies |
| Hydrogen fuel gas rooms, not classified as Group H | 2 hours in Group A, E, I and R occupancies |
| Incinerator rooms | 2 hours and provide automatic sprinkler system |
| Paint shops, not classified as Group H, located in occupancies other than Group F | 2 hours; or 1 hour and provide automatic sprinkler system |
| In Group E occupancies, laboratories and vocational shops not classified as Group H | 1 hour or provide automatic sprinkler system |
| In Group I-2 occupancies, laboratories not classified as Group H | 1 hour and provide automatic sprinkler system |
| In ambulatory care facilities, laboratories not classified as Group H | 1 hour or provide automatic sprinkler system |
| Laundry rooms over 100 square feet | 1 hour or provide automatic sprinkler system |
| In Group I-2, laundry rooms over 100 square feet | 1 hour |
| Group I-3 cells and Group I-2 patient rooms equipped with padded surfaces | 1 hour |
| In Group I-2, physical plant maintenance shops | 1 hour |
| In ambulatory care facilities or Group I-2 occupancies, waste and linen collection rooms with containers that have an aggregate volume of 10 cubic feet or greater | 1 hour |
| In other than ambulatory care facilities and Group I-2 occupancies, waste and linen collection rooms over 100 square feet | 1 hour or provide automatic sprinkler system |
| In ambulatory care facilities or Group I-2 occupancies, storage rooms greater than 100 square feet | 1 hour |
| Electrical installations and transformers | See Sections 110.26 through 110.34 and Sections 450.8 through 450.48 of NFPA 70 for protection and separation requirements. |

**Added Table 706.8**

| Required Single Fire Wall Assembly Rating (Hours) | Each Wall of the Double Fire Wall Assembly Rating (Hours) | Minimum Fire Door and Fire Shutter Assembly Rating (Hours) | Door Vision Panel Size[a] | Fire Rated Glazing Marking Door Vision Panel[bc] | Minimum Sidelight/ Transom Assembly Fire-Protection Rating (Hours) | Minimum Sidelight/ Transom Assembly Fire-Resistance Rating (Hours) | Fire-Protection Rated Glazing Marking Sidelight/ Transom Panel (Hours) | Fire-Resistance Rated Glazing Marking Sidelight/ Transom Panel (Hours) |
|---|---|---|---|---|---|---|---|---|
| 4 | 3 | 3 | See note a | D-H-W-180 | Not Permitted | 3 | Not Permitted | W-180 |
| 3 | 2 | 1½ | 100 sq. inches | < than or = to 100 sq. in. =D-H-90. >100 sq. in. = D-H-W-90 | Not Permitted | 2 | Not Permitted | W-120 |

| Required Single Fire Wall Assembly Rating (Hours) | Each Wall of the Double Fire Wall Assembly Rating (Hours) | Minimum Fire Door and Fire Shutter Assembly Rating (Hours) | Door Vision Panel Size[a] | Fire Rated Glazing Marking Door Vision Panel[bc] | Minimum Sidelight/ Transom Assembly Fire-Protection Rating (Hours) | Minimum Sidelight/ Transom Assembly Fire-Resistance Rating (Hours) | Fire-Protection Rated Glazing Marking Sidelight/ Transom Panel (Hours) | Fire-Resistance Rated Glazing Marking Sidelight/ Transom Panel (Hours) |
|---|---|---|---|---|---|---|---|---|
| 2 | 1 | 1 | 100 sq. inches | < than or = to 100 sq. in. =D-H-60. >100 sq. in. = D-H-W-60 | Not Permitted | 1 | Not Permitted | W-60 |
| **Footnotes:** | | | | | | | | |
| 1. For SI: 1 square inch equals 645.2 mm. | | | | | | | | |
| 2. Fire-resistance-rated glazing tested to ASTME E-119 in accordance with Section 716.1.2.3 shall be permitted, in the maximum size tested. | | | | | | | | |
| 3. Under the column heading "Fire-rated glazing marking door vision panel," W refers to the fire-resistance rating of the glazing, not the frame. | | | | | | | | |
| 4. See Section 716.1.2.2.1 and Table 716.1(1) for additional permitted markings. | | | | | | | | |

**[F] 903.2.1.2 Group A-2 - Amendatory.** An automatic sprinkler system shall be provided for fire areas containing Group A-2 occupancies and intervening floors of the building where one of the following conditions exists:

**1.** The fire area exceeds 5,000 square feet (465.5 $m^2$ ).

**2.** The fire area has an occupant load of 100 or more.

**3.** The fire area is located on a floor other than the level of exit discharge serving such occupancies.

**4.** A fire area with nightclub occupancy regardless of occupant load, where the total overall occupant load density is denser than 10 square feet (.93 $m^2$ ) per occupant.

**5.** Existing nightclubs not undergoing a change in fire area in alteration work shall be provided with an automatic sprinkler system in accordance with Section 1103.5.4 of the International Fire Code, 2018 Edition, as adopted by the City of Tulsa.

**[F] 903.2.7 Group M - Amendatory.** An automatic sprinkler system shall be provided throughout buildings containing a Group M occupancy where one of the following conditions exists:

**1.** A Group M fire area exceeds 12,000 square feet (1115 $m^2$ ).

**2.** A Group M fire area is located more than three stories above grade plane.

**3.** The combined area of all Group M fire areas on all floors, including any mezzanines, exceeds 24,000 square feet (2230 $m^2$ ).

**4.** A Group M occupancy where the cumulative area used for the display and sale of upholstered furniture or mattresses exceeds 5,000 square feet (464 $m^2$ ).

**[F] 903.2.9 Group S-1 - Amendatory.** An automatic sprinkler system shall be provided throughout all buildings containing a Group S-1 occupancy where one of the following conditions exists:

**1.** A Group S-1 fire area exceeds 12,000 square feet (1115 $m^2$).

**2.** A Group S-1 fire area is located more than three stories above grade plane.

**3.** The combined area of all Group S-1 fire areas on all floors, including any mezzanines, exceeds 24,000 square feet (2230 $m^2$).

**4.** A Group S-1 fire area used for the storage of commercial motor vehicles where the fire area exceeds 5,000 square feet (464 $m^2$).

**5.** A Group S-1 occupancy used for the storage of upholstered furniture or mattresses exceeds 2,500 square feet (232 $m^2$).

**Exception:** Self-service storage facility where the fire area is less than 5,000 square feet (464 $m^2$).

**[F] 903.4.2 Alarms - Amendatory.** Approved audible and visual devices shall be connected to every automatic sprinkler system. Such sprinkler water-flow alarm devices shall be activated by water flow equivalent to the flow of a single sprinkler of the smallest orifice size installed in the system. Alarm devices shall be provided on the address side of the exterior of the building above the fire department connection (FDC) or in an approved location. Where a fire alarm system is installed, actuation of the automatic sprinkler system shall actuate the building fire alarm system.

**[F] 907.2.3 Group E.** A manual fire alarm system that activates the occupant notification signal in accordance with Section 907.5 and installed in accordance with Section 907.6 shall be installed in Group E occupancies. When automatic sprinkler systems or smoke detectors are installed such systems or detectors shall be connected to the building fire alarm system.

**Exceptions:**

**1.** A manual fire alarm system is not required in Group E occupancies with an occupant load of 50 or less.

**2.** Manual fire alarm boxes are not required in Group E occupancies where all of the following apply:

2.1 Interior corridors are protected by smoke detectors.

2.2 Auditoriums, cafeterias, gymnasiums and similar areas are protected by heat detectors or other approved detection devices.

2.3 Shops and laboratories involving dusts or vapors are protected by heat detectors or other approved detection devices.

2.4 The capability to activate the evacuation signal from a central point is provided.

2.5 In buildings where normally occupied spaces are provided with a two-way communication system between such spaces and a constantly attended receiving station from where a general evacuation alarm can be sounded, except in locations specifically designated by the fire code official.

**3.** Manual fire alarm boxes shall not be required in Group E occupancies where all of the following apply:

3.1 The building is equipped throughout with an approved automatic sprinkler system installed in accordance with Section 903.3.1.1.

3.2 The fire alarm system will activate on sprinkler waterflow.

3.3 Manual activation is provided from a normally occupied location.

**907.2.22 Energy Storage Systems.** An automatic smoke detection system or radiant-energy detection system shall be installed in rooms, areas, and walk-in units containing energy storage systems as required in Section 1206 of the International Fire Code®.

**907.2.23 Omitted.**

**[F] 911.1.3. Size.** The fire command center shall be not less than 0.015 percent of the total building area of the facility served or 200 square feet (19 square meters) in area, whichever is greater, with a minimum dimension of 0.7 times the square root of the room area or 10 feet (3048 mm), whichever is greater.

**Exception:** When approved by the fire code official the fire command center can be reduced in size to not less than a minimum of 96 square feet (9 $m^2$) with a minimum dimension of 8 feet (2438 mm).

**[F] 912.1 Installation - Amendatory.** Fire department connections shall be installed in accordance with the NFPA standard applicable to the system design and shall comply with Sections 912.1.1 through 912.6.

**[F] 912.1.1 Fire Department Connection Inlet Size - Added.** The fire department connection shall be a 5" (130 mm) Quick-Connect Connection with a 30° angle elbow for risers larger than 3" (78 mm) in size. A single 2½" (65 mm) NH Standard Thread inlet is permitted for risers 3" and smaller. Fire department connections on NFPA 13R systems shall be a minimum of a single 2½" (65 mm) NH Standard Thread inlet.

**1003.4 Floor Surface.** Circulation paths of the means of egress shall have a slip-resistant surface and be securely attached. Floor surfaces that are a part of a means of egress shall have a solid surface. A floor for this purpose is also defined as the space between a floor surface and a guard if it projects beyond the edge of a floor.

**Exceptions:**

**(A)** Where approved by the Building Official, openings in floor surfaces shall be a size that does not permit the passage of ½-inch-diameter (12.7 mm) sphere. Elongated openings shall be placed so that the long dimension is perpendicular to the direction of travel.

**(B)** Where approved by the Building Official in Group F, H and S occupancies, other than areas of parking structures accessible to the public, openings in the floor surface shall not be prohibited provided a sphere with a diameter of 1⅛ inches (29 mm) cannot pass through the opening.

**1008.2.3 Exit discharge.** Illumination shall be provided along the path of travel for the exit discharge from each exit to the public way. Illumination may be provided by the building or other site lighting such as street lighting.

**Exceptions:**

**(A)** Illumination shall not be required where the path of exit discharge meets both of the following requirements:

**(i)** The path of exit discharge is illuminated from the exit to a safe dispersal area complying with Section 1028.5.

**(ii)** A dispersal area shall be illuminated to a level not less than 1 foot-candle (11 lux) at the walking surface.

**(B)** Buildings that comply for a single exit in accordance with Table 1006.2.1.

**1010.1.9.4 Locks and latches - Amendatory.** Locks and latches shall be permitted to prevent operation of doors where any of the following exists:

**1.** Places of detention or restraint.

**2.** In buildings in occupancy Group A having an occupant load of forty-nine (49) or less, Groups B, F, M and S, and in places of religious worship, the main door or doors are permitted to be equipped with key-operated locking devices from the egress side provided:

**2.1** The locking device is readily distinguishable as locked,

**2.2** A readily visible durable sign is posted on the egress side, on or adjacent to the door stating: THIS DOOR TO REMAIN UNLOCKED WHEN THIS SPACE IS OCCUPIED. The sign shall be in letters 1 inch (25 mm) high on a contrasting background, and

**2.3** The use of the key-operated locking device is revocable by the building official for due cause.

**3.** Where egress doors are used in pairs, approved automatic flush bolts shall be permitted to be used, provided that the door leaf having the automatic flush bolts does not have a doorknob or surface-mounted hardware.

**4.** Doors from individual dwelling or sleeping units of Group R occupancies having an occupant load of 10 or less are permitted to be equipped with a night latch, dead bolt or security chain, provided such devices are openable from the inside without the use of a key or tool.

**5.** Fire doors after the minimum elevated temperature has disabled the unlatching mechanism in accordance with listed fire door test procedures.

**1010.1.9.8 Delayed Egress Locks - Amendatory.** Delayed egress locking systems shall be permitted to be installed on doors serving any occupancy except Group A, E and H occupancies, in buildings that are equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1 or an approved automatic smoke or heat detection system installed in accordance with Section 907. The locking system shall be installed and operated in accordance with all of the following items:

**1.** The delay electronics of the delayed egress locking system shall deactivate upon actuation of the automatic sprinkler system or automatic fire detection system, allowing immediate, free egress.

**2.** The delay electronics of the delayed egress locking system shall deactivate upon loss of power controlling the lock or lock mechanism, allowing immediate free egress.

**3.** The delayed egress locking system shall have the capability of being deactivated at the fire command center, and other approved locations.

**4.** An attempt to egress shall initiate an irreversible process that shall allow such egress in not more than fifteen (15) seconds when a physical effort to exit is applied to the egress side door hardware for not more than 3 seconds. Initiation of the irreversible process shall activate an audible signal in the vicinity of the door. Once the delay electronics have been deactivated, rearming the delay electronics shall be by manual means only.

**Exceptions:**

**4.1** Where approved, a delay of not more than 30 seconds is permitted on a delayed egress door.

**4.2** The release of the latch is permitted to be reversed by manual over-ride either by security personnel, the tenant, or from the fire command center to cause the latch to remain in a locked mode, provided the vicinity of the door that is locked out is equipped with both a 2-way audio and a 1-way video that are connected to the security personnel, the tenant, or the command center.

**5.** The egress path from any point shall not pass through more than one delayed egress locking system.

**Exception:** In Group I-2 or I-3 occupancies, the egress path from any point in the building shall pass through not more than two delayed egress locking systems provided the combined delay does not exceed 30 seconds.

**6.** A sign shall be provided on the door and shall be located above and within 12 inches (305 mm) of the door exit hardware.

**6.1.** For doors that swing in direction of egress, the sign shall read PUSH UNTIL ALARM SOUNDS. DOOR CAN BE OPENED IN 15 [30] SECONDS.

**6.2.** For doors that swing in the opposite direction of egress, the sign shall read PULL UNTIL ALARM SOUNDS. DOOR CAN BE OPENED IN 15 [30] SECONDS.

**6.3.** The sign shall comply with the visual character requirements in ICC A117.1.

**Exception:** Where approved, in Group I occupancies, the installation of a sign is not required where care recipients who because of clinical needs require restraint or containment as part of the function of the treatment area.

**7.** Emergency lighting shall be provided on the egress side of the door.

**8.** The delayed egress locking system units shall be listed in accordance with UL 294.

**1010.1.9.7.1 Electrical Locking System - Added.** Buildings permitted prior to 1999 that are not in compliance with Section 1010.1.9.7 of this code shall be permitted to utilize an electrical locking system with the following conditions, provided, the building is equipped throughout with an automatic sprinkler system in accordance with Section 903 of this code, and an approved automatic smoke or heat detection system installed in accordance with Section 907 of this code:

**1.** The electrical locking system shall be interconnected with the automatic sprinkler system and automatic fire detection system such that it unlocks upon actuation of the automatic sprinkler system or automatic fire detection system.

**2.** The electrical locking system shall unlock upon loss of power controlling the lock or locking mechanism. The door locks shall not be connected to an emergency power system.

**3.** A constantly and internally lit button with three-fourths inch (¾") minimum surface dimension shall be provided forty-eight inches (48") above the floor and within twelve inches (12") of the door on the latch side, together with an immediately adjacent sign reading "PRESS BUTTON IF EMERGENCY DOOR OPERATION IS NEEDED" of two inch (2") high letters in contrasting color to the sign surface. Equivalent Braille signage shall be provided on the sign surface, mounted forty-eight inches (48") minimum from the floor to the bottom of Braille text. Activation of the button by pressing under a force not exceeding one-half (½) pound will immediately operate a voice communication system connected to a

central control point that is constantly attended that is not required to be within the building, with the ability for the central control point to immediately contact another person to respond to the emergency.

**4.** Emergency lighting and exit light fixture shall be provided.

**5.** Electrical Locking System locks provided under this section shall be required to be tested annually by an Electronic Access Control Hardware company during the annual fire alarm inspection to assure they function as required in items 1 and 2 of this section.

**6.** An occupant within the building shall be provided with at least one (1) direct access to an exit without being required to pass through a door equipped with such electrical locking system.

**7.** An occupant within the building shall not be required to pass through more than one (1) door equipped with such electrical locking system before entering an exit.

**1010.1.9.12 Stairway Doors - Amendatory.** Interior stairway means of egress doors shall be openable from both sides without the use of a key or special knowledge or effort.

**Exceptions:**

**1.** Stairway discharge doors shall be openable from the egress side and shall only be locked from the opposite side.

**2.** This section shall not apply to doors arranged in accordance with Section 403.5.3.

**3.** In stairways serving not more than four (4) stories, doors are permitted to be locked from the side opposite the egress side, provided they are openable from the egress side and capable of being unlocked simultaneously without unlatching upon a signal from the fire command center, if present, or a signal by emergency personnel from a single location inside the main entrance to the building.

**4.** Stairway exit doors shall be openable from the egress side and shall only be locked from the opposite side in Group B, F, M and S occupancies where the only interior access to the tenant space is from a single exit stairway where permitted in Section 1006.3.2.

**5.** Stairway exit doors shall be openable from the egress side and shall only be locked from the opposite side in Group R-2 occupancies where the only interior access to the dwelling unit is from a single exit stairway where permitted in Section 1006.3.2.

**6.** Doors on stair enclosures shall be permitted to be equipped with hardware that prevents reentry into the interior of the building, provided that:

6.1. There are at least two (2) levels where it is possible to leave the stair enclosure, and

6.2. There shall be not more than four (4) floors intervening between floors where it is possible to leave the stair enclosure, and

6.3. Re-entry is possible on the top or next to the top floor permitting access to another exit, and

6.4. Doors permitting re-entry are identified as such on the stair side of the door.

**1010.1.9.13 Fail-safe Electronic Locks - Added.** Except for Group A, E and H occupancies, approved fail-safe electronic locks shall be permitted to be installed on doors serving any occupancy in buildings that are equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1 and an approved automatic smoke or heat detection system installed in elevator lobbies and machine rooms as required for elevators with recall capabilities, provided that the fail-safe electronic locks comply with all the conditions in paragraphs 1 through 6 below, to access a required exit other than the first required exit.

**1.** The fail-safe electronic lock shall unlock upon actuation of the automatic fire sprinkler system, or automatic smoke or heat detection system.

**2.** The fail-safe electronic lock shall unlock upon loss of power to the electronic locking system.

**3.** The fail-safe electronic lock shall unlock upon loss of power to the building.

**4.** The fail-safe electronic lock shall not be supplied with emergency and/or back-up power.

**5.** The fail-safe electronic lock when unlocked shall not be reset until after the emergency no longer exists.

**6.** Fail-safe electronic locks provided under this section shall be required to be tested annually by an Electronic Access Control Hardware company during the annual fire alarm inspection to assure they function as required in items 1 thru 5 of this section.

**Exceptions:**

1. In addition to the above requirements, where fail-safe electronic locks in accordance with this section are used to secure elevator or stair lobbies that are not provided with direct access to an exit, the lobbies shall be provided with a 2-way communication system with a central station that can be located anywhere inside or outside of the building, provided it is manned twenty-four (24) hours, seven (7) days a week. The communication system shall be tested monthly to ensure operational condition. The lobby shall also be provided with a location sign that indicates its location in the building. Direction to exits shall be provided with exit lights as required by this code.
2. In addition to the above requirements, where fail-safe electronic locks in accordance with this section are used to secure elevator or stair lobbies that are not provided with direct access to an exit in buildings that are not equipped with a sprinkler system in accordance with Section 903.3.1.1 of this code, the lobbies shall have a manual fire alarm pull station tied into the building fire alarm system, in addition to a 2-way communication system with a central station that can be located anywhere inside or outside of the building. The central station shall also be manned twenty-four (24) hours, seven (7) days a week, and shall be tested monthly to ensure operational condition. The lobby shall also be provided with a

location sign that indicates its location in the building. Direction to exits shall be provided with exit lights as required by this code. An informational sign is not required for the manual fire alarm pull station.

3. In addition to the above requirements, where fail-safe electronic locks in accordance with this section are installed on stairway doors and its operation requires a primary release from the egress side to release the locking mechanism which is not integral to the latch, a secondary push-button release shall be required to be installed on the egress side, as a back-up unlocking operation, in the event of failure of the primary release mechanism.

**1010.1.10 Panic and fire exit hardware.** Doors serving a Group H occupancy and doors serving rooms or spaces with an occupant load of 50 or more in a group A or E occupancy shall not be provided with a latch or lock other than panic hardware or fire exit hardware.

**Exceptions:**

**1.** A main exit of a Group A occupancy shall be permitted to have locking hardware in accordance with Section 1010.1.9.3, Item 2.

**2.** Doors serving a Group A or E occupancy shall be permitted to be electromagnetically locked in accordance with Section 1010.1.9.9.

**3.** Electrical rooms rated 1200 amperes or more and over 6 feet (1829 mm) wide, and that contain overcurrent devices, switching devices or control devices with exit or exit access doors, shall be equipped with panic hardware or fire exit hardware. The doors shall swing in the direction of egress travel.

**4.** Where electrical equipment rated 800 amperes or more that contains overcurrent devices, switching devices, or control devices is installed and there is a personnel door(s) intended for entrance to and egress from the working space less than 25 feet (7.6 m) from the nearest edge of the working space, the personnel door shall be equipped with panic hardware or fire exit hardware. The door(s) shall open in the direction of egress.

**1011.1 General - Amendatory.** Stairways serving occupied portions of a building, and exterior stairways traversed by human traffic, shall comply with the requirements of Sections 1011.2 through 1011.13, notwithstanding the general scoping provisions of Section 1001.1. Alternating tread devices shall comply with Section 1011.14. Ships ladders shall comply with Section 1011.15. Ladders shall comply with Section 1011.16. These requirements shall not be applicable to stairs or steps in swimming and wading pools; play structures; building systems equipment; and similar structures.

**Exception:** Within rooms or spaces used for assembly purposes, stepped aisles shall comply with Section 1029.

**1015.6 Mechanical equipment, systems and devices - Amendatory.** Guards shall be provided where various components that require services are located on a roof or elevated structure and have a condition as set forth in Sections 1015.6.1 through 1015.6.3. The guard shall be constructed so as to prevent the passage of a sphere 21 inches (533 mm) in diameter.

**Exception:** When approved by the authority having jurisdiction, guards are not required where permanent fall arrest/restraint anchorage connector devices that

comply with ANSI/ASSE Z 359.1 are affixed for use during the entire roof covering lifetime. The devices shall be reevaluated for possible replacement when the entire roof covering is replaced. The devices shall be placed not more than 10 feet (3048 mm) on center along hip and ridge lines and placed not less than 10 feet (3048 mm) from roof edges and the open sides of walking surfaces.

**1015.6.1 Roof edge - Added.** Guards shall be provided when components are located within 10 feet (3048 mm) of a roof edge or open side of a walking surface or elevated structure and such edge or open side is located more than 30 inches (762 mm) above the floor, roof, or grade below. The guard shall extend not less than 30 inches (762 mm) beyond each end of the component that requires service.

**1015.6.2 Skylights - Added.** Guards shall be provided when a skylight is within 10 feet (3048 mm) of the component that requires service. The guard shall extend 30 inches (762 mm) beyond the edge of the skylight.

**Exceptions:**

1. Guards are not required when the skylight is located at least 42 inches (1067 mm) above the highest point of the walking surface adjacent to the skylight or component.
2. Guards are not required if some other provision for skylight fall-thru protection is provided and approved by the authority having jurisdiction.

**1015.6.3 Roof hatch - Added.** Guards shall be provided when a roof hatch is within 10 feet (3048 mm) of the component that requires service. The guard shall extend 30 inches (762 mm) beyond the edge of the roof hatch. If the component is within 10 feet (3048 mm) of the ladder access side of the roof hatch, the guard shall incorporate a self-closing, self-latching gate. The gate shall have a top edge of not less than 42 inches (1067 mm) above the elevated surface adjacent to the gate and shall not allow the passage of a 21 inch (533 mm) sphere.

**1015.7 Roof access - Amendatory.** Guards shall be provided where the roof hatch opening is located within 10 feet (3048 mm) of a roof edge or open side of a walking surface and such edge or open side is located more than 30 inches (762 mm) above the floor, roof or grade below. The guard shall be constructed so as to prevent the passage of a sphere 21 inches (533 mm) in diameter.

**Exception:** When approved by the authority having jurisdiction, guards are not required where permanent fall arrest/restraint anchorage connector devices that comply with ANSI/ASSE Z 359.1 are affixed for use during the entire roof covering lifetime. The devices shall be reevaluated for possible replacement when the entire roof covering is replaced. The devices shall be placed not more than 10 feet (3048 mm) on center along hip and ridge lines and placed not less than 10 feet (3048 mm) from roof edges and the open sides of the walking surfaces.

**1016.2.1 Multiple Tenants - Amendatory.** Where more than one tenant occupies any one floor of a building or structure, each tenant space, dwelling unit and sleeping unit shall be provided with access to the required exits without passing through adjacent tenant spaces, dwelling units and sleeping units.

**Exceptions:**

1. The means of egress from a smaller tenant space shall not be prohibited from passing through a larger adjoining tenant space where such rooms or spaces of

the smaller tenant occupy less than 10 percent of the area of the larger tenant space through which they pass; are the same or similar occupancy group; a discernible path of egress travel to an exit is provided; and the means of egress into the adjoining space is not subject to locking from the egress side. A required means of egress serving the larger tenant space shall not pass through the smaller tenant space or spaces.

**2.** Means of egress to the required second exit through another tenant space shall not be prohibited in buildings permitted prior to October 27, 1972.

**3.** Existing means of egress through another tenant space, approved on or after October 27, 1972 and prior to January 1, 2008, shall be permitted to remain. Newly created means of egress through another tenant space shall not be permitted in buildings permitted on or after October 27, 1972.

**1507.12.1 Slope - Amendatory.** Section 1507.12.1 of the ICC International Building Code, 2018 Edition is adopted as published, provided that an Exception to Section 1507.12.1 is added to read as follows:

**Exception - Added:** The roof design slope may be reduced to ⅛:12 when structural calculations have been provided to demonstrate compliance with Section 1611.2 of this code and warranties have been provided for the roof membrane in a ⅛:12 installation.

**1507.13.1 Slope - Amendatory.** Section 1507.13.1 of the ICC International Building Code, 2018 Edition is adopted as published, provided that an Exception to Section 1507.13.1 is added to read as follows:

**Exception - Added:** The roof design slope may be reduced to ⅛:12 when structural calculations have been provided to demonstrate compliance with Section 1611.2 of this code and warranties have been provided for the roof membrane in a ⅛:12 installation.

**1511.3.1.1 Exceptions. Addition:** A roof recover shall not be permitted where any of the following conditions occur:

**1.** Where the existing roof or roof covering is water soaked or has deteriorated to the point that the existing roof or roof covering is not adequate as a base for additional roofing.

**2.** Where the existing roof covering is slate, clay, cement or asbestos-cement tile.

**3.** Where the existing roof has two or more applications of any type of roof covering.

**4.** Where the existing roof has one or more applications of asphalt shingles, additional applications of asphalt shingles shall not be permitted

**1603.1.7 Flood design data - Amendatory.** For buildings located in whole or in part in flood hazard areas as established in Section 1612.3, the documentation pertaining to design, if required in Section 1612.5, shall be included and the following information, referenced to the datum on the City of Tulsa Regulatory Floodplain Map Atlas shall be shown, regardless of whether flood loads govern the design of the building:

**1.** Flood design class assigned according to ASCE 24.

**2.** The elevation of the proposed lowest floor, including the basement.

**3.** The elevation to which any nonresidential building will be dry floodproofed.

**1604.10 Loads on storm shelters.** Loads and load combinations on storm shelters shall be determined in accordance with Section 423.5.3 and ICC 500®.

**1609.3(1) Basic Wind Speeds, V, for Risk Category II Buildings and Other Structures.**

Notes: Addition

Footnote 6. Location-specific basic wind speeds shall be permitted to be determined using www.hazards.atcouncil.org.

**1609.3(2) Basic Wind Speeds, V, for Risk Category III Buildings and Other Structures.**

Notes: Addition

Footnote 6. Location-specific basic wind speeds shall be permitted to be determined using www.hazards.atcouncil.org.

**1609.3(3) Basic Wind Speeds, V, for Risk Category IV Buildings and Other Structures.**

Notes: Addition

Footnote 6. Location-specific basic wind speeds shall be permitted to be determined using www.hazards.atcouncil.org.

**1611.1 Design rain loads - Amendatory.** Each portion of a roof shall be designed to sustain the load of rainwater that will accumulate on it if the primary drainage system for that portion is blocked plus the uniform load caused by water that rises above the inlet of the secondary drainage system at its design flow. The design rainfall for the secondary drainage system shall be based on a rainfall rate of 10.2 inches per hour.

(Equation 16-35)

R equals 5.2 (d with a subscript "s" plus d with a subscript "h")

For SI: R equals 0.0098 (d with a subscript "s" plus d with a subscript "h") where:

**(i)** d with a subscript "h" equals Additional depth of water on the undeflected roof above the inlet of secondary drainage system at its design flow (in other words, the hydraulic head) in inches (mm).

**(ii)** d with a subscript "s" equals Depth of water on the undeflected roof up to the inlet of secondary drainage system when the primary drainage system is blocked (in other words, the static head) in inches (mm).

**(iii)** R equals Rain load on the undeflected roof, in psf (kN divided by square meters). Where the phrase "undeflected roof" is used, deflections from loads (including dead loads) shall not be considered when determining the amount of rain on the roof. [Source: Added at 38 Ok Reg 2573, eff. 9-14-2021.]

**1612.1 General - Amendatory.** Within flood hazard areas as established in Section 1612.3 of this code, all new construction of buildings, structures and portions of buildings and structures, including substantial improvements and restoration of substantial damage to buildings and structures, shall be designed and constructed to resist the effects of flood hazards and flood loads, in accord with all applicable City ordinances. For buildings that are located in more than one (1) flood hazard area, the provisions associated with the most restrictive flood hazard area shall apply.

**1612.1.1 Definitions - Amendatory.** Section 1612.2 of the ICC International Building Code, 2018 Edition is adopted as published, provided that the following definitions in Section 1612.2 are amended to read as follows:

**BASE FLOOD - Amendatory.** A flood having a one-percent (1%) chance of being equaled or exceeded in any given year, and is a regulatory flood as defined in applicable City ordinances.

**DESIGN FLOOD - Amendatory.** A flood associated with the greater of the following two areas:

**1.** An area with a flood plain subject to a one-percent (1%) or greater chance of flooding in any year (100 year, 24 hour storm); or

**2.** An area designated as a flood hazard area on a community's flood hazard map, or otherwise lawfully designated.

**EXISTING BUILDING OR EXISTING STRUCTURE - Amendatory.** A building or structure for which a legal building permit has been issued. For application of provisions in flood hazard areas, an existing structure is any building or structure for which the start of construction commenced before the effective date of the community's first flood plain management code, ordinance or standard.

**FLOOD HAZARD AREA - Amendatory.** For all buildings or structures located inside the corporate limits of the City of Tulsa, the flood hazard area shall be as designated on the adopted City of Tulsa Regulatory Floodplain Map Atlas.

**FLOODWAY - Amendatory.** The channel of the river, creek or other watercourse and the adjacent land areas that must be reserved in order to discharge a base flood without cumulatively increasing the water surface elevation as prescribed by applicable City ordinances.

**SUBSTANTIAL IMPROVEMENT - Amendatory.** Any repair, reconstruction or improvement of a structure, the cost of which equals or exceeds fifty percent (50%) of the market value of the structure, either before the improvement or repair is started or, if the structure has been damaged and is being restored, before the damage occurred. For purposes of this definition "substantial improvement" is considered to occur when the first alteration of any wall, ceiling, floor or other structural part of the building commences, whether or not that alteration affects the external dimensions of the structure. The term shall not include:

**1.** Any project(s) for improvement of a structure to comply with existing health, sanitary or safety code specifications which are solely necessary to assure safe living conditions, or

**2.** Any alterations of a structure listed on the National Register of Historic Places or state inventory of historic places.

The cost used in the substantial improvement determination shall be the cumulative costs of all previous improvements for a specific building or structure occurring during the immediate past 10-year period.

**1612.3 Establishment of Flood Hazard Areas - Amendatory.** To establish flood hazard areas, the City, by the passage and approval of a resolution, shall adopt a flood hazard map and supporting data. The flood hazard map shall include, at a minimum, areas of special flood hazard as currently identified by the Federal Emergency

Management Agency in an engineering report entitled "The Flood Insurance Study for City of Tulsa, Oklahoma," as amended or revised with the accompanying Flood Insurance Rate Map (FIRM) and Flood Boundary and Floodway Map (FBFM) and related supporting data, together with any revisions. The adopted City of Tulsa Regulatory Floodplain Map Atlas and supporting data are hereby adopted by reference and incorporated as part of this section.

**1612.3.1 Design flood elevations - Amendatory.** Where design flood elevations are not included in the flood hazard areas established in Section 1612.3, or where floodways are not designated, the building official is authorized to require the applicant to:

**1.** Obtain and reasonably utilize any design flood elevation and floodway data available from a federal, state, or other source; or

**2.** Determine the design flood elevation and/or floodway in accordance with accepted hydrologic and hydraulic engineering practices used to define special flood hazard areas. Determinations shall be undertaken by an engineer licensed by the State of Oklahoma who shall document that the technical methods used reflect currently accepted engineering practices and meet the guidelines of the Stormwater Drainage Criteria Manual.

**1612.2 Design and construction - Amendatory.** The design and construction of buildings and structures located in flood hazard areas shall be in accordance with Chapter 5 of ASCE 7 and ASCE 24 and Title 11 A, Tulsa Revised Ordinance, Chapter 3. The lowest finished floor elevation together with attendant utility and sanitary facilities shall be at least one (1) foot above the regulatory flood elevation.

**1612.4 Flood hazard documentation - Amendatory.** The following documentation shall be prepared and sealed by a land surveyor or engineer licensed by the State of Oklahoma and submitted to the building official:

**1.** For construction in flood hazard areas:

**1.1.** The elevation of the lowest floor, including the basement, as required by the lowest floor elevation inspection in Section 110.3.3 and for the final inspection in Section 110.3.3.1.

**1.2.** For fully enclosed areas below the design flood elevation where provisions to allow for the automatic entry and exit of floodwaters do not meet the minimum requirements in Section 2.6.2.1 of ASCE 24, construction documents shall include a statement that the design will provide for equalization of hydrostatic flood forces in accordance with Section 2.6.2.2 of ASCE 24.

**1.3.** For dry floodproofed nonresidential buildings, construction documents shall include a statement that the dry floodproofing is designed in accordance with ASCE 24.

**ADDED Table 1704.2**

| Category of Inspection | Required Certification |
|---|---|
| High Strength Steel Bolting and Steel Erection | High Strength Steel Bolting and Steel Erection: (I) ICC Structural Steel and Bolting Special Inspector. (II) AWS/ AISC Certified Structural Steel Inspector. (III) EIT with relevant experience. (IV) PE with relevant experience |
| Steel Welding | (I) ICC Structural Welding SI. (II) AWS Certified Welding Inspector |

| Category of Inspection | Required Certification |
|---|---|
| Nondestructive Testing | ASNT SNT-TC-1A, NDT Level II or III |
| Prestressed Concrete | (I) ICC Prestressed Concrete Special Inspector. (II) PTI Level 1 Unbonded Post-Tension Inspector. (III) ACI Concrete Field Tech 1 Certification (for field testing only). (IV) EIT with relevant experience. (V) PE with relevant experience. |
| Reinforced Concrete Post installed Structural Anchors | (I) ICC Reinforced Concrete Special Inspector. (II) ACI Concrete Construction Special Inspector. (III) ACI Concrete Field Tech I Certification (for field testing only). (IV) EIT with relevant experience. (V) PE with relevant experience |
| Masonry Construction | (I) ICC Structural Masonry Special Inspector. (II) EIT with relevant experience. (III) PE with relevant experience |
| Soils | (I) NICET II. (II) ICC Soils SI. (III) EIT with relevant experience. (IV) PE with relevant experience |
| Driven deep foundation, Cast-in place deep foundations, Helical pile foundations, Excavation | (I) NICETT II (geotechnical or construction, or construction material testing or soils. (II) EIT with relevant experience. (III) PE with relevant experience |
| Sprayed fire-resistant materials, Mastic and intumescent fire-resistance coatings | (I) ICC Spray-applied Fireproofing Special Inspector. (II) UL approved Spray-applied Fireproofing Inspector. (III) EIT with relevant experience. (IV) PE with relevant experience. (V) RA with relevant experience |
| Exterior insulation and finish systems (EIFS) | (I) AWCI EIFS Inspector (II) EIT with relevant experience. (III) PE with relevant experience. (IV) RA with relevant experience |
| Fire-resistant penetrations and joints | (I) UL approved firestop inspector. (II) FM approved firestop inspector. (III) Inspector otherwise approved by the AHJ |
| Testing for smoke control | (I) AABC technical certification. (II) EIT with relevant experience. (III) PE with relevant experience |

Footnotes Table 1704.2:

**(1)** The special inspector shall meet one of the required certifications listed for the applicable category of inspection.

**(2)** Applicants shall comply with one of the following education and experience requirements in addition to the required certifications:

**(I)** Oklahoma Professional Engineer or Oklahoma Registered Architect and a minimum of three months of relevant work experience.

**(II)** Bachelor of Science Degree in Engineering, Architecture, or Physical Science and a minimum of six months of relevant work experience.

**(III)** Two years of verified college or technical school and a minimum of one year of relevant work experience.

**(IV)** High school or equivalent graduate and a minimum of one year of relevant work experience.

**(3)** Oklahoma Professional Engineer or Oklahoma Registered Architect competent in the specific category are exempt from the required certifications listed in this table, but are subject to on-site assessment of competence by the authority having jurisdiction.

**(I)** AA stands for Associate of Arts (degree).

**(II)** AABC stands for Associated Air Balance Council.

**(III)** ACI stands for American Concrete Institute.

**(IV)** ANSI stands for American National Standards Institute.

**(V)** API stands for American Petroleum Institute.

**(VI)** ANST stands for American Society for Nondestructive Testing.

**(VII)** ASTM stands for American Society for Testing and Materials.

**(VIII)** AWCI stands for Association of the Wall and Ceiling Industry.

**(IX)** AWS stands for American Welding Society.

**(X)** BS stands for Bachelor of Science (degree).

**(XI)** CWI stands for Certified Welding Inspector.

**(XII)** EIFS stands for Exterior insulation and finish system.

**(XIII)** FM stands for Factory Mutual Global.

**(XIV)** IAS stands for International Accreditation Service.

**(XV)** IBC stands for International Building Code.

**(XVI)** ICC stands for International Code Council.

**(XVII)** ICC-ES stands for ICC Evaluation Service.

**(XVIII)** NDT stands for Nondestructive testing.

**(XIX)** NICET stands for National Institute for Certification of Engineering Technologists.

**(XX)** PE stands for Professional engineer.

**(XXI)** RDP stands for Registered design professional.

**(XXII)** SI stands for Special inspector.

**(XXIII)** SIA stands for Special inspection agency.

**(XXIV)** UL stands for Underwriters Laboratories.

**(XXV)** EIT stands for Engineer in Training [Source: Added at 38 Ok Reg 2573, eff 9-14-2021].

**1807.2.4 Guards - Added.** Where retaining walls with differences in grade level on either side of the wall in excess of four (4) feet are located closer than two (2) feet to a walk, path, parking lot or driveway on the high side, the retaining walls shall be provided with guards that are constructed in accordance with Section 1013.0 of this code or other approved protective measures.

**1809.4 Depth and width of footings - Amendatory.** The minimum depth of footings below the undisturbed ground surface shall be 12 inches (305 mm). Where applicable, the requirements of Section 1809.5 shall also be satisfied. The minimum width of footings shall be 12 inches (305 mm).

**Exception:** Single story free-standing building meeting all of the following conditions may be permitted without footings:

1. Assigned to Occupancy Category 1, in accordance with Section 1604.5;
2. Light-frame wood or metal construction;
3. Area of 400 square feet (37 square meters) or less;
4. Eave height of 10 feet (3048 mm) or less; and
5. Building height of 15 feet (4575 mm) or less.

Such buildings shall have an approved wooden floor, or shall be placed on a concrete slab having a minimum thickness of 3½ inches (89 mm). Buildings shall be anchored to resist uplift as required by Section 1609.

**1809.5 Frost Protection - Amendatory.** Except where otherwise protected from frost, foundation walls, piers and other permanent supports of buildings and structures shall be protected by one or more of the following methods: extending a minimum of eighteen inches (18") below the finish grade; constructing in accordance with American Society of Civil Engineers (ASCE) Reference Standard Number 32; or erecting on solid rock.

**Exception:** Free-standing buildings meeting all of the following conditions may not be required to be protected:

1. Classified in Occupancy Category I, in accordance with Section 1604.5 of this code;
2. Area of 600 square feet or less for light-frame construction or 400 square feet or less for other than light-frame construction; and
3. Eave height of ten feet (10') or less.

Footings shall not bear on frozen soil unless such frozen condition is of a permanent character.

**1809.8 Plain Concrete Footings - Deleted.** Section 1809.8 of the ICC International Building Code, 2018 Edition is intentionally deleted from this code.

**2702.1.2 Fuel-line piping protection.** Fuel lines supplying a generator set inside a high-rise building shall be separated from areas of the building other than the room the generator is located in, by one of the following methods:

**(A)** A fire-resistant pipe-protection system that has been tested in accordance with UL 1489. The system shall be installed as tested and in accordance with the manufacturer's installation instructions, and shall have a rating of not less than 2 hours. Where the building is protected throughout with an automatic fire sprinkler system installed in accordance with Section 903.3.1.1, the required rating shall be reduced to 1 hour.

**(B)** An assembly that has a fire-resistance rating of not less than 2 hours. Where the building is protected throughout with an automatic sprinkler system installed in accordance with Section 903.3.1.1, the required fire-resistance rating shall be reduced to 1 hour.

**(C)** Other approved methods.

**2703 Lightning Protection Systems.**

**2703.1 General.** Where provided, lightning protection systems shall comply with Sections 2703.2 through 2703.4.

**2703.2 Installation.** Lighting protection systems for all new buildings and additions shall be installed in accordance with one of the following standards:

**(A)** NFPA® 780.

**(B)** UL 96A.

**Exception:** UL 96A shall not be utilized for structures used for the production, handling, or storage of ammunition, explosives, flammable liquids or gases, and other explosive ingredients including dust.

**2703.3 Additions to existing systems.** Where additions are constructed to a building containing a lighting protection system, the existing building's lightning protection system shall be properly interconnected to the new lightning protection system.

**2703.4 Surge protection.** Surge protective devices shall be installed for all normal and emergency electrical systems and all communication systems in accordance with Section 2703.2 and NFPA® 70. [Source: Added at 38 Ok Reg 2573, eff 9-14-2021.]

**2902.4.1 Directional signage - Amendatory.** Directional signage indicating the route to the required public toilet facilities in Group A, B, I, M, and R-1 occupancies shall be posted in a lobby, corridor, aisle, or similar space, such that the sign can be readily seen from the main entrance to the building or tenant space. Only one sign at each main entrance that is intended for public use shall be required.

**Exceptions:**

1. Group A occupancies that are part of an overall group E occupancy need not have directional signage.
2. Private-use Group B occupancies need not have directional signage.

[Source: Added at 38 Ok Reg 2573, eff 9-14-2021.]

**3001.5.1 Oklahoma Department of Labor - Added.** The design, construction, installation, alteration, repair, and maintenance of elevators and conveying systems and their components shall conform to State of Oklahoma Elevator Safety Act, 59 O.S. Section 3020, et seq., and the Elevator Safety Administrative Rules: Title 380, Oklahoma Department of Labor, Chapter 70, Elevator Safety Act Rules.

**3101.1 Scope.** The provisions of this chapter shall govern special building construction including membrane structures, temporary structures, pedestrian walkways and tunnels, automatic vehicular gates, awnings and canopies, marquees, signs, towers, antennas, relocatable buildings, swimming pool enclosures and safety devices, solar energy systems, and intermodal shipping containers.

**3103.1.2 Permit required - Amendatory.** Temporary structures covering an area in excess of 200 square feet, including connecting areas or spaces with a common means of egress or entrance which are used or intended to be used for the gathering together of ten (10) or more persons, shall not be erected, operated or maintained for any purpose without obtaining a permit from the code official.

**Section 3107. Signs - Amendatory.**

**3107.1 Scope - Amendatory.** In addition to the general requirements of this code governing the design and construction of all structures, the provisions of Section 3107 of this code shall control the special structures and construction features pertaining to signs.

**3107.2 General - Added.** Section 3107 of this code shall govern the construction, alteration, repair and maintenance of outdoor signs together with the associated and auxiliary devices related to structural and fire safety. Section 2611 of this code shall govern approved light transmitting plastic interior wall signs. Section 402.16 of this code shall govern approved plastic signs in covered mall buildings.

**3107.3 Definitions - Added.** The following words and terms, for the purposes of this title and as used elsewhere in this code, shall have the meanings ascribed to them as follows:

**Sign:** Sign shall have the same meaning as defined in the City of Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances ("Zoning Code").

**Sign Types:**

**Electrical Sign:** Electrical sign shall mean any sign that includes wiring, fixtures, appurtenances, and provision for connection to an electrical power supply, not including signs illuminated by an external light source.

**Marquee Sign:** Marquee sign shall mean a sign attached to or hung from a marquee, canopy or other covered structure, projecting from and supported by the building and extending beyond the building wall, building line or street lot line.

**3107.4 Zoning Law - Added.** Where more restrictive in respect to location, purpose, size or height of signs, the limitations of Tulsa's Zoning Code, Title 42, Tulsa Revised Ordinances that affect required light and ventilation requirements and occupancy of land shall take precedence over the regulations of this code.

**3107.5 Permits and Construction Documents - Added.** Permits for signs shall be required as specified in Sections 3107.5.1 and 3107.5.2 of this code, except as provided for in Section 3107.5.3 of this code. Construction documents shall be prepared and filed in accordance with Sections 3107.5.4 and 3107.5.5 of this code.

**3107.5.1 New Signs - Added.** A new sign shall not be erected, constructed, altered or maintained except as provided for in this code and until a permit has been issued by the code official.

**3107.5.1.1 Outdoor Advertising Signs - Added.** An application for an outdoor advertising sign for which a State of Oklahoma permit is required under the provisions of 69 O.S. 2001 §§ 1271 et seq., the Oklahoma Highway Code of 1968 Highway Advertising Control Act of 1968 shall have a copy of the state's permit attached.

**3107.5.2 Alterations - Added.** No sign shall be enlarged or relocated unless such sign conforms to the provisions of this Section 3107 of this code applicable to new signs, or until a proper permit has been secured. The changing of movable parts of an approved sign that is designed for such changes, or the repainting or reposting of display matter, shall not be deemed an alteration, provided that the conditions of the original approval and the requirements of this section are not violated.

**3107.5.3 Permit Exemptions - Added.** No permit shall be required for the signs specified in Sections 3107.5.3.1 through 3107.5.3.5 of this code. This exemption shall not be construed to relieve the owner of the sign from responsibility for the sign's erection and maintenance in a safe manner.

**3107.5.3.1 Wall Signs - Added.** No permit shall be required for one sign painted on the surface of a fence or approved building wall, or any non-illuminated wall sign on a building or structure, which is not more than ten (10) square feet in area.

**3107.5.3.2 Sale or Rent - Added.** No permit shall be required for ground signs erected to announce the sale or rent of property, provided that such signs are not more than twenty-five (25) square feet in area.

**3107.5.3.3 Transit Directions - Added.** A permit shall not be required for the erection or maintenance of a ground sign designating the location of a transit line, a railroad station or other public carrier provided that such signs are not more than three (3) square feet in area.

**3107.5.3.4 Street Signs - Added.** No permit shall be required for ground signs erected by a city, state or federal agency for street and traffic direction.

**3107.5.3.5 Projecting Signs - Added.** No permit shall be required for a projecting sign not exceeding two and one-half (2½) square feet of display surface.

**3107.5.4 Construction Documents and Owner's Consent - Added.** Before any permit shall be issued for the erection of a sign, construction documents shall be filed with the code official showing the dimensions, materials and required details of construction, including loads, stresses and anchorage. The applications shall be accompanied by the written consent of the owner or lessee of the premises upon which the sign is to be erected.

**3107.5.5 Identification - Added.** Every sign for which a permit has been issued and which is erected, constructed or maintained, shall be plainly identified by the name of the person, firm, corporation or limited liability company owning, erecting, maintaining or operating such sign. The method and location of this identification shall appear on construction documents filed with the code official.

**3107.5.6 Permit Expiration - Added.** Permits for business or outdoor advertising signs which have not been utilized within six (6) months from the date of issuance shall be null and void. "Business signs" and "outdoor advertising signs" shall have the same meaning as defined in the Zoning Code. The term "utilized" shall mean actual installation of the sign.

**3107.6 Maintenance and Inspection - Added.** Sign maintenance and inspection shall comply with Sections 3107.6.1 through 3107.6.4 of this code.

**3107.6.1 Removal - Added.** The code official is authorized to order the removal of any sign that is not maintained in accordance with the provisions of this section.

**3107.6.2 Maintenance - Added.** All signs for which a permit is required, together with all supports, braces, guys and anchors, shall be kept in repair in accordance with the provisions of Section 3107 of this code and Chapter 1 of this title. Where not galvanized or constructed of approved corrosion-resistant noncombustible materials, signs shall be painted.

**3107.6.3 Housekeeping - Added.** The owner or lessee of every sign shall maintain the immediate premises occupied by the sign in a clean, sanitary and healthful condition.

**3107.6.4 Inspection - Added.** Every sign shall be subject to inspection and approval.

**3107.7 General Requirements - Added.** All signs shall be designed and constructed to comply with the provisions of this code related to materials, loads and stresses, and with the requirements of Sections 3107.7.1 through 3107.7.5 of this code.

**3107.7.1 Wind Load - Added.** All signs shall be designed and constructed to withstand wind pressure as provided for in Section 1609 of this code.

**3107.7.2 Earthquake Load - Added.** Signs designed to withstand wind pressures shall be considered capable of withstanding earthquake loads, except as provided for in Section 1613 of this code.

**3107.7.3 Illumination - Added.** No sign shall be illuminated by other than electrical means, and electrical devices and wiring shall be installed in accordance with the requirements of the National Electrical Code, as adopted by the City of Tulsa. Any open spark or flame shall not be used for display purposes unless specifically approved.

**3107.7.4 Use of Combustibles - Added.** The requirements of Sections 3107.7.4.1 and 3107.7.4.2 of this code shall apply to combustible materials for signs.

**3107.7.4.1 Ornamental Features - Added.** Wood or approved plastic as provided for in Chapter 26 of this code, or other materials of combustible characteristics similar to wood, used for moldings, cappings, nailing blocks, letters and latticing shall comply with Section 3107.8 of this code and shall not be used for other ornamental features of signs, unless approved.

**3107.7.4.2 Internally Illuminated Signs - Added.** Except as provided for in Sections 402.7.3 and 2611.0 of this code, where internally illuminated signs have sign facings of wood or approved combustible plastic, the area of such facing section shall not be more than 120 square feet and the wiring for electrical lighting shall be entirely enclosed in the sign cabinet, with a clearance of not less than two (2) inches from the facing material. The dimensional limitation of 120 square feet shall not apply to sign facing sections made from flame resistant-coated fabric (ordinarily known as "flexible sign face plastic") that weighs less than twenty (20) ounces per square yard and which, when tested in accordance with National Fire Protection Association (NFPA) Standard Reference Number 701, meets the fire propagation performance requirements of both Test 1 and Test 2, or which, when tested in accordance with the approved test method, exhibits an average burn time of two (2) seconds or less and a burning extent of five and ninetenths (5.9) inches (150 mm) or less for ten specimens.

**3107.8 Maximum Height of Ground Signs - Added.** Ground signs may be erected to a height above the ground as permitted by the Zoning Code, when constructed entirely of noncombustible material. If constructed of combustible materials, ground signs shall not be erected more than thirty-five (35) feet in height measured from the highest part of the sign to the ground at any point immediately below the sign. Applications for permits for ground signs over forty (40) feet in height shall include engineering calculations and drawings by a Professional Engineer registered in the State of Oklahoma. Such calculations shall bear the engineer's seal and certification that the design meets the requirements of this code.

**3107.9 Roof Signs - Added.** Roof signs shall be prohibited to the extent provided within the City of Tulsa Zoning Code, Title 42, Tulsa Revised Ordinance.

**3107.10 Wall Signs - Added.** Wall signs shall comply with Sections 3107.10.1 and 3107.10.2 of this code.

**3107.10.1 Materials - Added.** Wall signs which have an area exceeding forty (40) square feet shall be constructed of metal or other approved noncombustible materials, except for nailing rails and as provided for in Section 3107.7.4 of this code.

**3107.11 Projecting Signs - Added.** Projecting signs shall comply with Sections 3107.11.1 through 3107.11.4 of this code.

**3107.11.1 Materials - Added.** Projecting signs shall be constructed entirely of metal or other approved noncombustible material except as provided for in Section 3107.7.4 of this code.

**3107.11.2 Maximum Projection - Added.** A projecting sign shall not extend beyond a vertical plane that is two (2) feet inside the curb line.

**3107.11.3 Clearance - Added.** A vertical clearance of not less than eight (8) feet shall be provided below all parts of projecting signs.

**3107.11.4 Additional Loads - Added.** Projecting sign structures which will be used to support an individual on a ladder or other servicing device, whether or not specifically

designed for the servicing device, shall be capable of supporting the anticipated additional load, but not less than a 100-pound concentrated horizontal load and a 300-pound concentrated vertical load applied at the point of assumed or most eccentric loading. The building component to which the projecting sign is attached shall also be designed to support the additional loads.

**3107.12. Marquee Signs - Added.** Marquee signs shall comply with Sections 3107.12.1 through 3107.12.3 of this code.

**3107.12.1 Materials - Added.** Marquee signs shall be constructed entirely of metal or other approved noncombustible material except as provided for in Section 3107.7.4 of this code.

**3107.12.2 Attachment - Added.** Marquee signs shall be attached to approved marquees that are constructed in accordance with Section 3107.12.2 of this code.

**3107.12.2.1 Marquees - Added.** A marquee is a permanent roofed structure including attached objects or decorations, attached to and supported by the building.

**3107.12.2.1.1 Projection and Clearance - Added.** The horizontal clearance between a marquee and the curb line shall not be less than two (2) feet. A marquee projecting more than two-thirds of the distance from the property line to the curb line shall not be less than ten (10) feet above the ground or pavement below.

**3107.12.3 Dimensions - Added.** Marquee signs shall not project beyond the perimeter of the marquee.

**3107.13 Temporary Signs - Added.** Temporary signs shall comply with Sections 3107.13.1 through 3107.13.4 of this code.

**3107.13.1 Banner and Cloth Signs - Added.** Temporary banner and cloth signs, constructed of combustible material, which are attached to or suspended from a building, shall be constructed in an approved manner and shall be securely supported. Such signs and banners shall be removed as soon as torn or damaged, or not later than the maximum allowable time period as provided in the Tulsa Zoning Code after erection, whichever is the earlier.

**3107.13.2 Maximum Size - Added.** Temporary signs shall be subject to the aggregate square footage display surface area limitations of the zoning district in which they are located, as prescribed in the City of Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances. Temporary signs of combustible construction shall not be more than ten (10) feet in one dimension nor more than five hundred (500) square feet in area.

**3107.13.3 Supports - Added.** Where more than one hundred (100) square feet in area, temporary signs and banners shall be constructed and fastened to supports that are capable of withstanding the design loads listed in Section 1609 of this code.

**3107.13.4 Special Permits - Added.** Temporary signs, which extend across streets or other public spaces shall be subject to special approval of the City Council or other authority having jurisdiction.

**3107.14 Illuminated Signs - Added.** Illuminated signs shall comply with Sections 3107.14.1 through 3107.14.3 of this code.

**3107.14.1 Certificates - Added.** All electrically illuminated signs shall be certified as to electric wiring and devices by the agency having jurisdiction, and all wiring and accessory electrical equipment shall conform to the requirements of the National Electrical Code, as adopted by the City of Tulsa.

**3107.14.2 Additional Permits - Added.** Electrical permits shall be issued for the erection or maintenance of illuminated signs.

**3107.14.3 Re-lettering Signs - Added.** The requirements of Section 3107 of this code shall not apply to the re-lettering of illuminated signs, except where such re-lettering requires a change of wiring or piping of the sign.

**3107.15 Portable Signs - Added.** Portable signs shall conform to all requirements for ground, roof, projecting, flat and temporary signs where such signs are used in a similar capacity. The requirements of this section shall not be construed to require portable signs to have connections to surfaces, tie-downs or foundations where provisions are made by temporary means or configuration of the structure to provide stability for the expected duration of the installation.

**3107.15.1 Electrical - Added.** Portable signs that require electrical service shall have a positive connecting device on the sign. Electrical service lines to the sign shall be protected from damage from all anticipated traffic.

**3107.16 Prohibited Signs and Locations - Added.** The signs, devices and locations described in Sections 3107.16.1 and 3107.16.2 of this code shall be specifically prohibited.

**3107.16.1 Portable Signage - Added.** Vehicles and trailers shall not be used for on- or off-premise signage, primarily as static displays, advertising a product or service, nor utilized as storage, shelter or distribution points for commercial products or services to the public.

**3107.16.2 Power Line Clearance - Added.** No sign, or portion of a sign, shall be located or maintained within ten (10) feet of any high voltage overhead conductor. "High Voltage" shall mean a voltage.in excess of seven hundred fifty (750) volts between conductors, or between any single conductor and the ground. "Overhead conductors" shall mean all bare or insulated conductors installed above the ground except those conductors that are de-energized and grounded or those that are enclosed in iron pipe or other metal covering of equal strength.

**3114 Intermodal Shipping Containers.**

**3114.1 General.** The provisions of Section 3114 and other applicable sections of this code, shall apply to intermodal shipping containers that are repurposed for use as buildings or structures or as a part of buildings or structures.

**Exceptions:**

Intermodal shipping containers previously approved as existing relocatable buildings complying with Chapter 14 of the International Existing Building Code®.

Energy Storage Systems (ESS) located in intermodal shipping containers complying with Chapter 12 of the International Fire Code®.

Intermodal shipping containers that are listed as equipment complying with the standard for equipment, such as air chillers, engine generators, modular data centers, and other similar equipment.

Intermodal shipping containers housing or supporting experimental equipment are exempt from the requirements of Section 3114 provided they comply with all of the following:

**(i)** Such units shall be single stand-alone units supported at grade level and used only for occupancies as specified under Risk Category I in Table 1604.5;

**(ii)** Such units are located a minimum of 8 feet from adjacent structures and are not connected to a fuel gas system or fuel gas utility; and

**(iii)** In hurricane-prone regions and flood hazard areas, such units are designed in accordance with the applicable provisions of Chapter 16.

**3114.2 Construction documents.** The construction documents shall contain information to verify the dimensions and establish the physical properties of the steel components, and wood floor components, of the intermodal shipping container in addition to the information required by Sections 107 and 1603.

**3114.3 Intermodal shipping container information.** Intermodal shipping containers shall bear an existing data plate containing the following information as required by ISO 6346 and verified by an approved agency. A report of the verification process and findings shall be provided to the building owner.

Manufacturer's name or identification number

Date manufactured

Safety approval number

Identification number

Maximum operating gross mass or weight (kg) (lbs.)

Allowable stacking load for 1.8G (kg) (lbs.)

Transverse racking test force (Newtons)

Valid maintenance examination date

Where approved by the building official, the markings and existing data plate are permitted to be removed from the intermodal shipping containers before they are repurposed for use as buildings or structures or as a part of buildings or structures.

**3114.4 Protection against decay and termites.** Wood structural floors of intermodal shipping containers shall be protected from decay and termites in accordance with the applicable provisions of Section 2304.12.1.1.

**3114.5 Under-floor ventilation.** The space between the bottom of the floor joists and the earth under any intermodal shipping container, except spaces occupied by basements with cellars, shall be provided with ventilation in accordance with Section 1202.4.

**3114.6 Roof assemblies.** Intermodal shipping container roof assemblies shall comply with the applicable requirements of Chapter 15. Exception: Single-unit stand-alone intermodal shipping containers not attached to, or stacked vertically over, other intermodal shipping containers, buildings or structures.

**3114.7 Joints and voids.** Joints and voids that create concealed spaces between intermodal shipping containers, that are connected or stacked, at fire-resistance-rated walls, floor or floor/ceiling assemblies and roofs or roof/ceiling assemblies shall be protected by an approved fire-resistant joint system in accordance with Section 715.

**3114.8 Structural.** Intermodal shipping containers which conform to ISO 1496-1 that are repurposed for use as buildings or structures, or as a part of buildings or structures, shall be designed in accordance with Chapter 16 and this section.

**3114.8.1 Foundations.** Intermodal shipping containers repurposed for use as a permanent building or structure shall be supported on foundations or other supporting structures designed and constructed in accordance with Chapters 16 through 23 of this code.

**3114.8.1.1 Anchorage.** Intermodal shipping containers shall be anchored to foundations or other supporting structures as necessary to provide a continuous load path for all applicable design and environmental loads in accordance with Chapter 16.

**3114.8.2 Welds.** All new welds and connections shall be equal to or greater than the original connections.

**3114.8.3 Structural design.** The structural design for the intermodal shipping containers repurposed for use as a building or structure, or as part of a building or structure, shall comply with Section 3114.8.4 or 3114.8.5.

**3114.8.4 Detailed design procedure.** A structural analysis meeting the requirements of this section shall be provided to the building official to demonstrate the structural adequacy of the intermodal shipping containers.

**Exception:** Intermodal shipping containers designed in accordance with Section 3114.8.5.

**3114.8.4.1 Material properties.** Structural material properties for existing intermodal shipping container steel components shall be established by material testing where the steel grade and composition cannot be identified by the manufacturer's designation.

**3114.8.4.2 Seismic design parameters.** The seismic force-resisting system shall be designed and detailed in accordance with one of the following:

Where all or portions of the corrugated steel container sides are considered to be the seismic force-resisting system, design and detailing shall be in accordance with the ASCE 7 Table 12.2-1 requirements for light-frame bearing-wall systems with shear panels of all other materials,

Where all or portions of the corrugated steel container sides are retained, but are not considered to be the seismic force-resisting system, an independent seismic force resisting system shall be selected, designed and detailed in accordance with ASCE 7 Table 12.2-1, or

Where all or portions of the corrugated steel container sides are retained and integrated into a seismic force-resisting system other than as permitted by Section 3114.8.2 Item 1, seismic design parameters shall be developed from testing and analysis in accordance with Section 104.11 and ASCE 7 Section 12.2.1.1 or 12.2.1.2.

**3114.8.4.3 Allowable shear value.** The allowable shear values for the intermodal shipping container corrugated steel sheet panel side walls and end walls shall be demonstrated by testing and analysis in accordance with Section 104.11. Where penetrations are made in the side walls or end walls designated as part of the lateral force-resisting system, the penetrations shall be substantiated by rational analysis.

**3114.8.5 Simplified structural design of single-unit containers.** Single-unit intermodal shipping containers conforming to the limitations of Section 3114.8.5.1 shall be permitted to be designed in accordance with the simplified structural design provisions of this section.

**3114.8.5.1 Limitations.** Use of Section 3114.8.5 is subject to all of the following limitations:

The intermodal shipping container shall be a single-unit, stand-alone unit supported on a foundation and shall not be in contact with or supporting any other shipping container or other structure.

The intermodal shipping container top and bottom rails, corner castings, and columns or any portion thereof shall not be notched, cut, or removed in any manner.

The intermodal shipping container shall be erected in a level and horizontal position with the floor located at the bottom.

The intermodal shipping container shall be located in Seismic Design Category A, B, C or D. (22) Section 3.

**3114.8.5.2. Simplified structural design.** Where permitted by Section 3114.8.5.1, single-unit, stand-alone intermodal shipping containers shall be designed using the following assumptions for the corrugated steel shear walls:

The appropriate detailing requirements contained in Chapters 16 through 23,

Response modification coefficient, R equals 2,

Over strength factor, $^{*}$ equals 2.5,

Deflection amplification factor, C equals 2, and

Limits on structural height, h equals 9.5 feet (2900 mm).

**3114.8.5.3 Allowable shear.** The allowable shear for the corrugated steel side walls (longitudinal) and end walls (transverse) for wind design and for seismic design using the coefficients of Section 3114.8.5.2 shall be in accordance with Table 3114.8.5.3 provided that all of the following conditions are met:

The total linear length of all openings in any individual side walls or end walls shall be limited to not more than 50 percent of the length of that side wall or end wall.

Any full height wall length, or portion thereof, less than 4 feet (305 mm) long shall not be considered as a portion of the lateral force-resisting system.

All side walls or end walls used as part of the lateral force-resisting system shall have an existing or new boundary element on all sides to form a continuous load path, or paths, with adequate strength and stiffness to transfer all forces from the point of application to the final point of resistance.

Where openings are made in container walls, floors, or roofs for doors, windows and other openings:

**(i)** The openings shall be framed with steel elements that are designed in accordance with Chapter 16 and Chapter 22.

**(ii)** The cross section and material grade of any new steel element shall be equal to or greater than the steel element removed.

A maximum of one penetration not greater than a 6-inch (152 mm) diameter hose for conduits, pipes, tubes or vents, or not greater than 16 square inches (10 322 $mm^2$) for electrical boxes, is permitted for each individual 8-foot length (2438 mm) lateral force resisting wall. Penetrations located in walls that are not part of the wall lateral force resisting system shall not be limited in size or quantity. Existing intermodal shipping container vents shall not be considered a penetration.

End wall door or doors designated as part of the lateral force-resisting system shall be welded closed.

**ADDED Table 3114.8.5.3**

| Container Designation[b] | Container Dimension (Nominal Length) | Container Dimension (Nominal Height) | Allowable Side Wall Shear Values (PLF)[ac] | Allowable End Wall Shear Values (PLF)[ac] |
|---|---|---|---|---|
| 1EEE | 45 feet (13.7 m) | 9.5 feet (2896 mm) | (PLF) of 75 | (PLF) of 843 |
| 1EE | 45 feet (13.7 m) | 9.5 feet (2896 mm) | (PLF) of 75 | (PLF) of 843 |
| 1AAA | 40 feet (12.2 m) | 9.5 feet (2896 mm) | (PLF) of 84 | (PLF) of 843 |
| 1AA | 40 feet (12.2 m) | 8.5 feet (2591 mm) | (PLF) of 84 | (PLF) of 843 |
| 1A | 40 feet (12.2 m) | 8.0 feet (2438 mm) | (PLF) of 84 | (PLF) of 843 |
| 1AX | 40 feet (12.2 m) | less than 8.0 feet (2438 mm) | (PLF) of 84 | (PLF) of 843 |
| 1BBB | 30 feet (9.1 m) | 9.5 feet (2896 mm) | (PLF) of 112 | (PLF) of 843 |
| 1BB | 30 feet (9.1 m) | 8.5 feet (2591 mm) | (PLF) of 112 | (PLF) of 843 |
| 1B | 30 feet (9.1 m) | 8.0 feet (2438 mm) | (PLF) of 112 | (PLF) of 843 |
| 1BX | 30 feet (9.1 m) | less than 8.0 feet (2438 mm) | (PLF) of 112 | (PLF) of 843 |
| 1CC | 20 feet (6.1 m) | 8.5 feet (2591 mm) | (PLF) of 168 | (PLF) of 843 |
| 1CX | 20 feet (6.1 m) | less than 8.0 feet (2438 mm) | (PLF) of 168 | (PLF) of 843 |
| 1D | 10 feet (3.0 m) | 8.0 feet (2438 mm) | (PLF) of 337 | (PLF) of 843 |
| 1DX | 10 feet (3.0 m) | less than 8.0 feet (2438 mm) | (PLF) of 337 | (PLF) of 843 |

Added Footnotes:

1. The allowable shear for the side walls and end walls of the intermodal shipping containers are derived from ISO 1496-1 and reduced by a factor of safety of 5.
2. Container designation type is derived from ISO 668.
3. Limitations of Section 3114.8.5.1 shall apply. [Source: Added at 38 Ok Reg 2573, eff 9-14-2021.]

**3201.3 Other Laws - Amendatory.** The provisions of this chapter shall not be construed to permit the violation of other laws or ordinances regulating the use and occupancy of public property or to prevent the holders of public right-of-way to grant special permission for encroachments in their rights-of-way greater than those permitted in Section 3202.

**Chapter 35 Referenced Standards - Amendatory.** The International Building Code, 2018 Edition Chapter 35, Referenced Standards, are amended to include the referenced standard of the American Society of Mechanical Engineers (ASME), the Federal Emergency Management Agency (FEMA) and ICC-500 as follows:

| ASME | American Society of Mechanical Engineers<br>3 Park Avenue<br>New York, NY 10016 | |
|---|---|---|
| Standard reference number | Title | Referenced in code section number |
| A17.3-11 | Safety Code for Existing Elevators and Escalators . . . | 902.1.2 |

| | | |
|---|---|---|
| FEMA | Federal Emergency Management Agency<br>Federal Plaza<br>500 C Street S.W.<br>Washington, DC 20590 | |
| Standard reference number | Title | Referenced in code section number |
| FEMA P-320-08 | Taking Shelter from the Storm: Building a Safe Room for your Home or Small Business . . . 202 | |
| FEMA P-361-08 | Design and Construction Guidance for Community Safe Rooms . . . 202 | |
| ICC | International Code Council, Inc.<br>500 New Jersey Ave., NW<br>6 th Floor<br>Washington, DC 20001 | |
| Standard reference number | Title | Referenced in code section number |
| ICC 500-08 | ICC 500®-14 ICC/NSSA Standard on the Design and Construction of Storm Shelters, Code reference sections: 202, 423.5, 423.5.1, 423.5.2, 423.5.2.1, 423.5.3, 423.5.4, 423.5.5, 423.5.6, 423.5.6.1, 423.5.7, 423.5.8, 423.5.9, 423.5.10, and 423.5.11. | |

**(1)** Substitute "International Existing Building Code®" with "IEBC®-18 International Existing Building Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**(2)** Substitute "International Energy Conservation Code®" with "IECC®-06 International Energy Conservation Code®".

**(3)** Substitute "International Fire Code®" with "IFC®-18 International Fire Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**(4)** Substitute "International Fuel Gas Code®" with "IFGC®-18 International Fuel Gas Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**(5)** Substitute "International Mechanical Code®" with "IMC®-18 International Mechanical Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**(6)** Substitute "International Plumbing Code®" with "IPC®-18 International Plumbing Code® as adopted and modified by the State of Oklahoma through OUBCC".

**(7)** Substitute "International Residential Code®" with "IRC®-15 International Residential Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**(8)** Substitute "NFPA 70® National Electrical Code®" with "70-17 National Electrical Code® as adopted and modified by the State of Oklahoma through the OUBCC".

ISO 668 - 2013 Series 1 Freight Containers - Classifications, Dimensions and Ratings. Code reference sections: Table 3114.8.5.3.

ISO 1496-1 - 2013 Series 1 Freight Containers Specification and Testing - Part 1: General Cargo Containers for General Purposes. Code reference sections: 3114.8, Table 3114.8.5.3.

ISO 6346 - 1995 with Amendment 3 - 2012 Freight Containers - Coding, Identification and Marking. Code reference section: 3114.3.

NFPA® 780 - 17 Standard for the Installation of Lighting Protection Systems. Code reference section: 2703.2.

UL 96A - 2016 Standard for Installation Requirements for Lightning Protection Systems. Code reference section: 2703.2.

UL 1489-2016 Fire Resistant Piping Protection Systems Carrying Combustible Liquids. Code reference sections: 403.4.8.2, 2702.1.2.

Appendices A, B, C, D, E, F, H, I, J, K - Deleted. The following appendices of the ICC International Building Code, 2018 Edition, are intentionally deleted from this code:

| | |
|---|---|
| APPENDIX A | EMPLOYEE QUALIFICATIONS |
| APPENDIX B | BOARD OF APPEALS |
| APPENDIX C | GROUP U - AGRICULTURAL BUILDINGS |
| APPENDIX D | FIRE DISTRICTS |
| APPENDIX E | SUPPLEMENTARY ACCESSIBILITY REQUIREMENTS |
| APPENDIX F | RODENT PROOFING |
| APPENDIX H | SIGNS |
| APPENDIX I | PATIO COVERS |
| APPENDIX J | GRADING |
| APPENDIX K | ADMINISTRATIVE PROVISIONS |

**Appendix G - Added.** The following appendix of the ICC International Building Code, 2018 Edition is specifically referred to, adopted and made a part of this code, as if fully set out in this chapter, with the amendments thereto:

**APPENDIX G FLOOD-RESISTANT CONSTRUCTION**

**Appendix G - Amendatory.** The following sections of Appendix G of the ICC International Building Code, 2018 Edition, entitled Flood-Resistant Construction, are amended to read as follows:

**G102.2 Establishment of Flood Hazard Areas - Amendatory.** Flood hazard areas shall be as established in Section 1612.3 of this code.

**G103.3 Determination of Design Flood Elevations - Amendatory.** If design flood elevations are not specified, the code official is authorized to require the applicant to:

**1.** Obtain, review and reasonably utilize data available from federal, state or other sources, or

**2.** Determine the design flood elevation in accordance with accepted hydrologic and hydraulic engineering techniques. Such analyses shall be performed and sealed by a Professional Engineer registered in the State of Oklahoma. Studies, analyses and computations shall be submitted in sufficient detail to allow review and approval by the code official. The accuracy of data submitted for such determination shall be the responsibility of the applicant.

**G103.4 Activities in Riverine Flood Hazard Areas - Amendatory.** In riverine flood hazard areas where design flood elevations are specified but floodways have not been designated, the code official shall not permit any new construction, substantial improvement or other development, including fill, unless the applicant submits an engineering analysis prepared and sealed by an engineer licensed by the State of Oklahoma, demonstrating that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the design flood elevation as prescribed by applicable City ordinances.

**G103.5 Floodway encroachment - Amendatory.** Prior to issuing a permit for any floodway encroachment, including fill, new construction, substantial improvements and other development or land-disturbing activity, the building official shall require submission of a certification, prepared by an engineer licensed by the State of Oklahoma, along with supporting technical data, demonstrating that such development will not cause any increase of the base flood level.

**G103.5.1 Floodway revisions - Amendatory.** A floodway encroachment that increases the level of the base flood is authorized if the applicant has applied for a conditional Flood Insurance Rate Map (FIRM) revision and has received approval of the Federal Emergency Management Agency (FEMA). The conditional map revision shall be approved prior to issuing a permit for any floodway encroachment.

**G103.6.1 Engineering analysis - Amendatory.** The building official shall require submission of an engineering analysis, prepared by an engineer licensed by the State of Oklahoma, demonstrating that the flood-carrying capacity of the altered or relocated portion of the watercourse will not be decreased. Such watercourses shall be maintained in a manner that preserves the channel's flood-carrying capacity.

**G104.2 Application for Permit - Amendatory.** The applicant shall file an application in writing on a form furnished by the code official. Such application shall:

**1.** Identify and describe the development to be covered by the permit;

**2.** Describe the land on which the proposed development is to be conducted by legal description, street address or similar description that shall readily identify and definitely locate the site;

**3.** Include a site plan showing the delineation of flood hazard areas, floodway boundaries, flood zones, design flood elevations, existing and proposed ground elevations, property boundaries, existing and proposed finished floor elevations, proposed fill and excavation and drainage patterns and facilities;

**4.** Include in subdivision proposals and other proposed developments with more than 50 lots or larger than 5 acres, base flood elevation data in accordance with Section 1612.3.1 if such data are not identified for the flood hazard areas established in Section G102.2;

**5.** Indicate the use and occupancy for which the proposed development is intended;

**6.** Be accompanied by construction documents, grading and filling plans, drainage and storm plans and other information deemed appropriate by the code official;

**7.** State the valuation of the proposed work; and

**8.** Be signed by the applicant or the applicant's authorized agent.

**G401.1 Development in floodways - Amendatory.** Development or land-disturbing activity shall not be authorized in the floodway unless it has been demonstrated through hydrologic and hydraulic analyses performed in accordance with standard engineering practice, and prepared by an engineer licensed by the State of Oklahoma, that the proposed encroachment will not result in any increase in the base flood level.

**G501.1 Elevation - Amendatory.** All new and replacement manufactured homes to be placed or substantially improved in a flood hazard area shall be elevated such that the lowest floor of the manufactured home is elevated to one (1) foot or greater above the design flood elevation. A land surveyor or engineer licensed by the State of Oklahoma shall submit an Elevation Certificate to the Development Services Division of the Planning and Development Department of the City of Tulsa or other department, division or section of the City of Tulsa authorized and directed to enforce the provisions of this code that the elevation requirement has been met.

**Exception:** Manufactured Homes located in a licensed Mobile Home Park must be elevated to the level determined in the permitting process.

**G501.4 Protection of mechanical equipment and outside appliances - Amendatory.**

Mechanical equipment and outside appliances shall be elevated to one (1) foot or greater above the design flood elevation.

**G1001.1 Utility and miscellaneous Group U - Amendatory.** Utility and miscellaneous Group U includes buildings that are accessory in character and miscellaneous structures not classified in any specific occupancy in this code, including, but not limited to, agricultural buildings, aircraft hangars (accessory to a one- or two-family residence), barns, carports, fences more than 6 feet (1829 mm) high, grain silos (accessory to a residential occupancy), greenhouses, livestock shelters, detached private garages, retaining walls, sheds, stables and towers.

**G1001.4 Enclosures below design flood elevation - Amendatory.** Fully enclosed areas below the design flood elevation shall be constructed in accordance with ASCE 24 and shall be floodproofed.

**G1001.6 Protection of mechanical, plumbing and electrical systems - Amendatory.**

Mechanical, plumbing and electrical systems, including plumbing fixtures, shall be elevated to one (1) foot or greater above the design flood elevation.

*(Ord. No. 23590, § 1, 11-2-2016; Ord. No. 24829, § 1, 5-25-2022)*

# CHAPTER 2. ICC INTERNATIONAL RESIDENTIAL CODE FOR ONE- AND TWO-FAMILY DWELLINGS, 2018 EDITION, ADOPTED*

Section 200. Adoption of the ICC International Residential Code for One- and Two-Family Dwellings, 2018 Edition and as amended hereinafter.
Section 201. Amendments to the International Residential Code for One- and Two-Family Dwellings, 2018 Edition.
Section 202. Protection of existing rights and remedies.
Section 203. Violation penalties—Amendatory.

## Section 200. Adoption of the ICC International Residential Code for One- and Two-Family Dwellings, 2018 Edition and as amended hereinafter.

A certain document, one (1) copy of which is on file in the Office of the City Clerk, being marked and designated as the *International Residential Code for One- and Two-Family Dwellings*, 2018 Edition, as published by the International Code Council (ICC) and amended or revised as stated in Title 748 Uniform Building Code Commission—Chapter 20, is hereby adopted as a part of the Building Code of the City of Tulsa, Oklahoma, for regulating the design, construction, quality of materials, erection, installation, alteration, repair, location, relocation, replacement, addition to, or use of one- and two-family dwellings and townhouses not more than three (3) stories in height with separate means of egress in the City of Tulsa. Consistent with the adoption of this *International Residential Code*, 2018 Edition, there is hereby provided for the related issuance of permits and collection of fees. Each and all of the terms, conditions, regulations, and provisions of the *International Residential Code*, 2018 Edition, published by the ICC, as supplemented and amended, on file in the Office of the City Clerk of the City of Tulsa are hereby referred to, adopted and made a part of the Tulsa Revised Ordinances, as if fully set out in this chapter, with its amendments, as prescribed in Section 201 of this chapter and, as used in this Chapter 2, may be referred to as the "code."

*(Ord. No. 24935, § 1, 10-26-2022)*

## Section 201. Amendments to the International Residential Code for One- and Two-Family Dwellings, 2018 Edition.

The following provisions of the *International Residential Code for One- and Two-Family Dwellings*, 2018 Edition, are hereby added or amended to read as follows:

**R101.1 Title - Amendatory.** These provisions shall be known and may be cited as the Residential Code for One- and Two-Family Dwellings of the City of Tulsa" or as the "Tulsa Residential Building Code."

**R103.1 Enforcement agency - Amendatory.** The term "Department of Building Safety," as used within the *International Residential Code for One- and Two-Family Dwellings*, 2018 Edition shall mean the Planning and Development Department Development Services Division of the City of Tulsa or other department, division or section of the City of Tulsa authorized and directed to enforce the provisions of this code.

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***Editor's note—**Ord. No. 24935, § 1, adopted October 26, 2022, amended Chapter 2 in its entirety to read as herein set out. Former Chapter 2, §§ 200—203, pertained to ICC International Residential Code for One- and Two-Family Dwellings, 2015 Edition, Adopted, and derived from Ord. No. 23589, § 1, 11-30-2016.

**R103.2 Appointment - Amendatory.** The "building official" or "code official," as used in this chapter and *International Residential Code for One- and Two-Family Dwellings*, 2018 Edition, as adopted by the City of Tulsa, shall be the official in charge of the enforcement of this code as appointed or otherwise designated by the Mayor.

**R103.4 Conflict of Interest Prohibited - Added.** Code officials shall ascribe to and be guided in professional conduct as City of Tulsa representatives as provided in Title 12, Chapter 6 "Ethics Code," Tulsa Revised Ordinances.

**R105.1.1 By Whom Application is Made - Added.** The application for a permit shall be made by the owner or lessee of the building or structure, or the agent of either or by the licensed engineer or architect employed in connection with the proposed work. If an application is made by a person other than the owner in fee, it shall be accompanied by an affidavit of the owner or the qualified applicant or a signed statement of the qualified applicant witnessed by the building official or designee informing that the proposed work is authorized by the owner in fee and that the applicant is authorized to make such application. The full names and addresses of the owner, lessee, applicant, and the responsible officers, if the owner or lessee is not a natural person, shall be stated on the application. The owner of the building or structure shall at all times retain ownership rights and authority for use and control of such application and any related subsequent permits issued pursuant to this code.

**R105.1.2 Zoning Clearance Required - Added.** The code official shall not issue a building permit for any building or other structure until and unless the code official is furnished a Zoning Clearance Permit issued by the zoning official stating that the use or occupancy of such building or structure complies with, or, upon completion, will comply with applicable zoning ordinances of the City of Tulsa.

**R105.1.3 Fire Sprinkler Permit - Added.** A permit shall be obtained before installing, altering or removing any portion of an automatic fire sprinkler system. The code official shall not issue a fire sprinkler permit for the installation of an automatic sprinkler system until the person, firm, corporation, or Limited Liability Company or other entity installing the same shall have on file with the City of Tulsa a surety bond in the amount of Two Thousand Five Hundred Dollars ($2,500.00). Such bond shall be on a form satisfactory to the City, guaranteeing payment of all obligations and guaranteeing installation in accordance with the provisions of this code. No person, firm, corporation, limited liability company or other entity shall install fire sprinkler systems unless licensed as provided in 59 O.S. 2001, § 1800.1, et seq., as amended, and related rules and regulations.

**R105.3 Application for permit - Amendatory.** To obtain a building permit, the applicant shall first file an application therefore in writing on a form furnished by the City of Tulsa for that purpose.

Such application shall:

1. Identify and describe the work to be covered by the permit for which application is made.
2. Describe the land on which the proposed work is to be done by legal description, street address or similar description that will readily identify and definitely locate the proposed building or work.
3. Indicate the use and occupancy for which the proposed work is intended.

**4.** Be accompanied by construction documents and other information as required in Section R106.1.

**5.** State the valuation of the proposed work.

**6.** Be signed by the applicant or the applicant's authorized agent.

**7.** Give such other data and information as required by the building official.

**R105.3.(a) License - Added.** All Electrical permits and required licensing shall be administered as described in Title 52, Tulsa Revised Ordinances. All Mechanical permits and required licensing shall be administered as described in Title 59, Tulsa Revised Ordinances. All Plumbing and required licensing shall be administered as described in Title 56, Tulsa Revised Ordinances.

**Exception:** Any homeowner may perform water supply and drainage plumbing work only, on the homeowner-occupied residence and property, provided all permits required pursuant to this code are obtained, without requiring the homeowner to possess a plumbing license.

**R105.3.1.1 Determination of substantially improved or substantially damaged existing buildings in flood hazard areas - Amendatory.** For applications for reconstruction, rehabilitation, addition, alteration, repair or other improvement of existing buildings or structures located in a flood hazard area as established by Table 301.2(1), the building official shall examine or cause to be examined the construction documents and shall make a determination with regard to the value of the proposed work. For buildings that have sustained damage of any origin, the value of the proposed work shall include the cost to repair the building or structure to its pre-damaged condition. If the building official finds that the value of the proposed work equals or exceeds fifty (50) percent of the market value of the building or structure before the damage has occurred or the improvement is started, the proposed work is a substantial improvement or restoration of substantial damage regardless of whether or not the proposed work affects the external dimensions of the building or structure and the building official shall require existing portions of the entire building or structure to comply with the requirements of Section R322.

For the purpose of this determination, a substantial improvement shall mean any repair, reconstruction, rehabilitation, addition or improvement of a building or structure, the cost of which equals or exceeds fifty (50) percent of the market value of the building or structure before the improvement or repair is started. Where the building or structure has sustained substantial damage, repairs necessary to restore the building or structure to its pre-damaged condition shall be considered substantial improvements regardless of the actual repair work performed. The cost used in the substantial improvement determination shall be the cumulative costs of all previous improvements for a specific building or structure occurring during the immediate past 10-year period. The term shall not include either of the following:

**1.** Improvements to a building or structure that are required to correct existing health, sanitary or safety code violations identified by the building official and that are the minimum necessary to ensure safe living conditions.

**2.** Any alteration of a historic building or structure, provided that the alteration will not preclude the continued designation as a historic building or structure. For the purposes of this exclusion, a historic building shall be any of the following:

**2.1** Listed or preliminarily determined to be eligible for listing in the National Register of Historic Places or State Inventory of Historic Places.

**2.2** Determined by the Secretary of the U.S. Department of Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined to qualify as an historic district.

**2.3** Designated as historic under a state or local historic preservation program that is approved by the Department of Interior.

**R105.3.3 Payment of Fees - Added.** Upon receipt of an application for a building permit, an application fee shall be paid. Upon approval the applicant shall then be notified the permit is ready and advised of what remaining fees are due. In order for the permit to be valid, it shall have been paid in full and posted at the job site prior to beginning construction. Payment for permits is due upon notification to applicant that the permit has been approved and is ready for issuance. Any permit not paid within thirty (30) days after notification may be deemed void by the code official and the application fee shall then be forfeited. An amendment to a permit shall not be released until the additional fee, if any, has been paid.

**R105.7 Placement of Permit - Amendatory.** A copy of the building permit shall be posted on the site of operations, visible from the street, and open to public inspection during the entire time of execution of the work and until the completion of the same.

**R106.2 Site plan or plot plan - Amendatory.** The construction documents submitted with the application for permit shall be accompanied by a site plan showing to scale the size and location of new construction and existing structures on the site; distances between structures and lot lines; property boundaries; distance to center of street(s); established grades and proposed finished grades; easements; rights-of-way; utilities; and as applicable, flood hazard areas and limits, floodways, design flood elevations and finished floor elevations; in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the site or plot. The building official is authorized to waive or modify the requirement for a site plan where the application for permit is for alteration, repair, or demolition or where otherwise warranted.

**R108.1.1 Accounts - Added.** Every person or entity shall be issued an account number at the time of an initial permit application as established by Title 49, Tulsa Revised Ordinances.

**R108.2 Schedule of Permit Fees - Amendatory.** On buildings, structures, electrical, gas, mechanical and plumbing systems or alterations requiring a permit, a fee for each permit shall be paid as required, in accordance with the schedule as established by Title 49, Tulsa Revised Ordinances.

**R109.1.3 Floodplain Inspections, Finished Floor Elevation and Flood Vents - Amendatory.** When a minimum finished floor elevation is specified in a permit for structures located in a flood hazard area or areas prone to flooding, as established by the current City of Tulsa Regulatory Floodplain Map Atlas, no further vertical construction shall be performed after construction of the slab or floor until an elevation certificate, verifying the lowest floor elevation, and the size and location of any required flood vents, has been received and approved by the code official. The elevation certificate shall be prepared by a land surveyor or engineer licensed by the State of Oklahoma, using an appropriate form provided by the code official.

**R109.1.3.1 Final Floodplain Elevation Certificate - Added.** Prior to the final inspection, a final elevation certificate shall be required for those structures located in flood hazard areas or areas prone to flooding, as established by Table R301.2(1) of this code. The certificate, as approved by the code official, shall confirm the finished floor elevation, the size and location of flood vents, and shall verify the lowest elevation of mechanical, electrical and utility equipment. The certificate shall be prepared by a land surveyor or engineer licensed by the State of Oklahoma and shall be provided to the code official for approval. A Certificate of Occupancy shall not be issued unless the final elevation certificate is approved by the code official.

**R109.1.5.2 Placement of Erosion Control Inspection (PEC) - Added.** After issuance of a permit for work that involves disturbance of earth, and before any other earthwork begins, the permit applicant or the applicant's authorized agent shall (1) identify and mark property lines, easements and floodplains, (2) implement erosion control in accordance with the approved plan and/or Storm Water Pollution Prevention Plan, and (3) request a Placement of Erosion Control Inspection (PEC). No other work may be performed until the building official authorizes further construction activity. All construction including development, excavation, grading, regrading, paving, landfilling, berming, and diking of land shall be conducted so as to minimize erosion and prevent the discharge of pollutants (including, but not limited to rock, sand, and soil) into the municipal storm sewer system or onto adjacent occupied property. Persons conducting construction shall implement and maintain acceptable structural and/or nonstructural barriers for controlling erosion. Failure to install and maintain adequate erosion control may result in issuance of a stop work order on all trades by the building official.

**R109.1.6 Final Inspection - Amendatory.** Final inspection shall be made after the permitted work is complete and prior to occupancy. It shall be unlawful and an offense for any person, firm, corporation, or limited liability company, whether as owner, lessee, sublessee, or occupant, to use or occupy any structure regulated by this code or part thereof, or cause same to be done, until all required final inspections on all open permits have been made, except as authorized by the IRC 2018, Section R110.4.

**R109.4 Approval Required - Amendatory.** Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the code official. The code official upon notification shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed, or shall notify the permit holder or an agent of the permit holder wherein the same fails to comply with this code. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the code official. Work that is covered or concealed, or a residence that is occupied without approval of the code official shall be in violation of this code and be penalized by the imposition of a civil fine in accordance with Title 49, Tulsa Revised Ordinances for each occurrence and may result in a hearing before the Board of Appeals as provided in Title 51, Chapter 1, Tulsa Revised Ordinances. The assessment or payment of this penalty shall not relieve any person, firm, corporation, or limited liability company from fully complying with all the requirements of this code nor shall such payment exempt the person, firm, corporation, or limited liability company or other entity from further penalty provided by law.

**SECTION R112 BOARD OF APPEALS**

**R112.1 General - Amendatory.** Appeals of orders, decisions or determinations made by the code official relative to the application and interpretation of this code, shall be made to the Board of Appeals as provided in Title 51, Chapter 1, Tulsa Revised Ordinances.

**R112.3 Qualifications - Amendatory.** The Board of Appeals shall consist of members who are qualified by experience and training to pass on matters pertaining to building construction. The membership of the Board shall be as established in Title 51, Chapter 1, Tulsa Revised Ordinances.

**R113.4 Violation Penalties - Amendatory.** It shall be unlawful and a misdemeanor offense for any person, firm, corporation, limited liability company or other entity to violate any of the provisions of this code, fail to comply with any of the requirements thereof, or to erect, construct, alter, repair or change the occupancy of any building or structure in violation of an approved plan or directive of the building official or of a permit or certificate issued under the provisions of this code. Any person, firm, corporation, limited liability company or other entity convicted of a violation of this code shall be guilty of a misdemeanor offense and shall be One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, punished by a fine of not more than or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, or continued, shall be deemed a separate offense.

**CHAPTER 2 DEFINITIONS**

**SECTION R202 DEFINITIONS - Amendatory.** Definitions amended, deleted or added.

**BUILDING DRAIN - Amendatory.** That part of the lowest piping of a drainage system that receives the discharge from soil, waste, and other drainage pipes inside the building or structure and that extends 5 feet (1524 mm) in developed length of pipe beyond the exterior walls of the building and conveys the drainage to the building sewer.

**FLOOD HAZARD AREA - Added.** For all buildings or structures located inside the corporate limits of the City of Tulsa, the flood hazard area shall be as designated on the adopted City of Tulsa Regulatory Floodplain Map Atlas and the currently effective Flood Insurance Rate Maps (FIRM) established by the most current Tulsa Revised Ordinances Title 11-A incorporating the areas of special flood hazard.

**FLOODWAY - Added.** The channel of the river, creek or other watercourse and the adjacent land areas that must be reserved in order to discharge a base flood without cumulatively increasing the water surface elevation as prescribed by applicable City ordinances.

**[RE] HIGH-EFFICACY LAMPS - Amendatory.** Compact fluorescent lamps, light emitting diode (L.E.D.) type lamps, T-8 or smaller diameter linear fluorescent lamps, or lamps with a minimum efficacy of:

**1.** 60 lumens per watt for lamps over 40 watts;

**2.** 50 lumens per watt for lamps over 15 watts to 40 watts; and

**3.** 40 lumens per watt for lamps 15 watts or less.

**[RE] INSULATED SHEATHING - Added.** An insulating board having a thermal resistance of not less than R-2 of the core material.

**NATIONALLY RECOGNIZED TESTING LABORATORY - Added.** A testing facility given this designation from the United States Occupational Safety and Health Administration (OSHA) that provides product safety testing and certification services to manufacturers.

**[RB] ROOF RECOVER - Amendatory.** The process of installing an additional roof covering over a prepared existing roof covering without removing the existing roof covering.

**SAFE ROOM - Added.** A building or structure or portions thereof, constructed in accordance with ICC/NSSA Standard for the design and construction of Storm Shelters®, (ICC 500®), and constructed to provide near-absolute protection for its occupants from severe wind storm events such as tornados or hurricanes.

1. **Community safe room.** A safe room designed and constructed in accordance with the Federal Emergency Management Agency (FEMA) document P-361 entitled "Design and Construction Guidance for Community Safe Rooms® (FEMA P-361®), intended to provide life-safety protection for more than 16 persons.
2. **Other Safe Room.** A safe room designed and constructed in accordance with FEMA P-361® "Design and Construction Guidance for Community Safe Rooms" or FEMA P-320® entitled "Taking Shelter from the Storm: Building a Safe Room for your Home or Small Business®," located in a residence or non-residential building or structure, intended to provide life-safety protection for 16 persons or less.

**[RE] SKYLIGHT - Deleted.**

**[RE] SLEEPING UNIT - Deleted.**

**STORM SHELTER - Added.** A building, structure, or portions thereof, constructed in accordance with ICC 500® and designated for use during a severe wind storm event such as a hurricane or tornado.

1. **Community storm shelter.** A storm shelter not defined as a "Residential storm shelter."
2. **Residential storm shelter.** A storm shelter serving occupants of dwelling units and having an occupant load not exceeding 16 persons.

**SUBSTANTIAL IMPROVEMENT - Added.** See Section R105.3.1.1.

**[RB] SUNROOM - Amendatory.** A one-story structure attached to a dwelling with a glazing area in excess of 40 percent of the gross area of the structure's exterior walls and roof.

**[RB] THERMAL ISOLATION - Amendatory.** Physical and space conditioning separation from conditioned space(s) consisting of existing or new walls, doors, or windows. The conditioned space(s) shall be controlled as separate zones for heating and cooling or conditioned by separate equipment.

**[RE] U-FACTOR, THERMAL TRANSMITTANCE - Amendatory.** The coefficient of heat transmission (air to air) through a building envelope component or assembly, equal to the time rate of heat flow per unit area and unit temperature difference between the warm side and cool side air films (BTU/h x square feet x Fahrenheit).

**VENTILATION - Amendatory.** The natural or mechanical process of supplying conditioned or unconditioned air to, or removing such air from, any space.

**WHOLE-HOUSE MECHANICAL VENTILATION SYSTEM - Amendatory.** An exhaust system, supply system or combination thereof that is designed to mechanically exchange indoor air for outdoor air where operating continuously or through a programmed intermittent schedule to satisfy the whole-house ventilation rate.

## CHAPTER 3 BUILDING PLANNING

| *GROUNDSNOW LOAD* | *WIND DESIGN* | | *SEISMIC DESIGN CATEGORY* | *SUBJECT TO DAMAGE FROM* | | | *WINTER DESIGN TEMP* | *ICE BARRIER UNDER-LAYMENT REQUIRED* | *FLOOD HAZARDS* | *AIR FREEZING INDEX* | *MEAN ANNUAL TEMP* |
|---|---|---|---|---|---|---|---|---|---|---|---|
| | *Speed (mph)* | *Topographic effects* | | *Weathering* | *Frostline Depth* | *Termite* | | | | | |
| 10 PSF | 115 | Yes | A | MODE RATE | 18" | YES | 12°F | No | See note a. | 442 | 60.3 |

[a.] Flood hazard areas within the corporate limits of the City of Tulsa shall include, at a minimum, special flood hazard areas as identified by the Federal Emergency Management Agency (FEMA) in the current effective Flood Insurance Studies for the City of Tulsa, as amended or revised with the accompanying Flood Insurance Rate Maps (FIRM) and related supporting data, together with any amendments or revisions; including the City of Tulsa Regulatory Floodplain Map Atlas and related supporting data; established by the most current Tulsa Revised Ordinances Title 11-A incorporating the areas of special flood hazard identified by FEMA in the scientific and engineering report entitled "Flood Insurance Study for Tulsa County, Oklahoma and Incorporated Areas" dated September 30, 2016; "Flood Insurance Study for Osage County, Oklahoma and Incorporated Areas" dated December 17, 2013; "Flood Insurance Study for Rogers County, Oklahoma and Incorporated Areas" dated September 30, 2016; "Flood Insurance Study for Wagoner County, Oklahoma and Incorporated Areas" dated September 30, 2016; with the accompanying FIRM include the following FIRM Panels; with any amendments or revisions.

### TABLE R302.1(1) EXTERIOR WALLS - Amendatory.

| *EXTERIOR WALL ELEMENT* | | *MINIMUM FIRE-RESISTANCE RATING* | *MINIMUM FIRE SEPARATION DISTANCE* |
|---|---|---|---|
| Walls | Fire-resistance rated | 1 hour-tested in accordance with ASTM E 119 or UL 263 with exposure from both sides | < 3 feet |
| | Not fire-resistance rated | 0 hours | ≥3 feet |
| Projections | Fire-resistance rated | 1 hour on the underside[a, b] | <3 feet |
| | Not fire-resistance rated | 0 hours | ≥3 feet |
| Openings in walls | Not allowed | N/A | < 3 feet |
| | Unlimited | 0 hours | ≥3 feet |
| Penetrations | All | Comply with Section R302.4 | < 3 feet |
| | | None required | ≥3 feet |

For SI: 1 foot = 304.8 mm.

N/A = Not Applicable.

[a.] Roof eave fire resistance rating shall be permitted to be reduced to 0 hours on the underside of the eave if fire blocking is provided from the wall top plate to the underside of the roof sheathing.

[b.] Roof eave fire resistance rating shall be permitted to be reduced to 0 hours on the underside of the eave provided that gable vent openings are not installed.

## TABLE R302.1(2) EXTERIOR WALLS — DWELLINGS WITH FIRE SPRINKLERS- Amendatory.

| *EXTERIOR WALL ELEMENT* | | *MINIMUM FIRE-RESISTANCE RATING* | *MINIMUM FIRE SEPARATION DISTANCE* |
|---|---|---|---|
| Walls | Fire-resistance rated | 1 hour-tested in accordance with ASTM E 119 or UL 263 with exposure from the outside | 0 feet |
| | Not fire-resistance rated | 0 hours | 3 feet[a] |
| Projections | Fire-resistance rated | 1 hour on the underside[b, c] | 2 feet[a] |
| | Not fire-resistance rated | 0 hours | 3 feet |
| Openings in walls | Not allowed | N/A | <3 feet |
| | Unlimited | 0 hours | 3 feet[a] |
| Penetrations | All | Comply with Section R302.4 | <3 feet |
| | | None required | 3 feet[a] |

For SI: 1 foot = 304.8 mm.

N/A = Not Applicable.

a. For residential subdivisions where all dwellings are equipped throughout with an automatic sprinkler system installed in accordance with Section P2904, the fire separation distance for nonrated exterior walls and rated projections shall be permitted to be reduced to 0 feet, and unlimited unprotected openings and penetrations shall be permitted, where the adjoining lot provides an open setback yard that is 6 feet or more in width on the opposite side of the property line.

b. The roof eave fire-resistance rating shall be permitted to be reduced to 0 hours on the underside of the eave if fire blocking is provided from the top wall plate to the underside of the roof sheathing.

c. The roof eave fire-resistance rating shall be permitted to be reduced to 0 hours on the underside of the eave provided that gable vent openings are not installed.

**R303.4 Mechanical ventilation.** Where the air infiltration rate of a dwelling is 5 air changes per hour or less where tested with a blower door at a pressure of 0.2 inch w.c. (50 Pa) or confirmed through visual testing in accordance with Section N1102.4.1.2, the dwelling unit shall be provided with whole-house mechanical ventilation in accordance with Section M1505.4.

**R309.3 Garages and Carports in Flood Hazard Areas - Amendatory.** For buildings located in flood hazard areas as established by Table 301.2(1), garage and carport floors shall be:

**1.** Elevated at least one (1) foot above the design flood elevation as determined in Section R322.2; or

**2.** Located below the design flood elevation, provided that they are at or above grade on not less than one side; are used solely for parking, building access, or storage; comply with the requirements of Section R322. The building shall not be converted to living space and used for human habitation without first becoming fully compliant with the provisions of this code and Title 11-A Chapter 3 Tulsa Revised Ordinances.

**R311.1 Means of egress - Amendatory.** Dwellings or garages (attached or detached from the dwelling) shall be provided with a means of egress in accordance with this section. The means of egress shall provide a continuous and unobstructed path of vertical and horizontal egress travel from all portions of the dwelling to the required egress door without traveling through a garage. The means of egress from the garage may travel through the adjacent dwelling. The required egress door shall open directly into a public way or to a yard or court that opens to a public way.

**R311.2 Egress door - Amendatory.** Not less than one egress door shall be provided for each dwelling unit or garage. The egress door shall be side-hinged and shall provide a clear width of not less than 32 inches (813 mm) where measured between the face of the door and the stop, with the door open 90 degrees (1.57 rad). The clear height of the door opening shall not be less than 78 inches (1981 mm) in height measured from the top of the threshold to the bottom of the stop. Other doors shall not be required to comply with these minimum dimensions. Egress doors shall be readily openable from the inside of the dwelling or garage without the use of a key or special knowledge or effort.

**R311.7.5.1 Risers - Amendatory.** The riser height shall be not more than 7¾ inches (196 mm). The riser shall be measured vertically between leading edges of the adjacent treads. The greatest riser height within any flight of stairs shall not exceed the smallest by more than ⅜ inch (9.5 mm) at rough-in. Risers shall be vertical or sloped from the underside of the nosing of the tread above at an angle not more than 30 degrees (0.51 rad) from the vertical. Open risers are permitted provided that the openings located more than 30 inches (762 mm), as measured vertically, to the floor or grade below do not permit the passage of a 4-inch-diameter (102 mm) sphere≤.

**Exceptions:**

**1.** The openings between adjacent treads is not limited on spiral stairways.

**2.** The riser height of spiral stairways shall be in accordance with Section R311.7.10.1.

**3.** The top and bottom riser in each flight of stairs may vary by ¾ inch (19 mm).

**R313.2 One- and two-family dwellings automatic fire systems.** This section, including the exception, has been moved to the newly created Appendix U, entitled "Appendix U, Automatic Fire Systems" and is not adopted as a part of the statewide minimum code for residential construction within the State of Oklahoma. This section has been renumbered in Appendix U to become U101.1. The section number R313.2 itself, will stay as part of this code for numbering alignment but will not have any requirements attached to it.

**R313.2.1 Design and installation.** "Appendix U, Automatic Fire Systems" and is not adopted as a part of the statewide minimum code for residential construction within the State of Oklahoma.

**R314.2.2 Alterations, repairs and additions - Amendatory.** Where alterations, repairs, or additions requiring a permit occur, or where one or more sleeping rooms are added or created in existing dwellings, the individual dwelling unit shall be equipped with smoke alarms located as required for new dwellings.

**Exceptions:**

**1.** Work involving the exterior surfaces of dwellings, such as the replacement of roofing or siding, the addition or replacement of windows or doors, or the addition of a porch or deck, are exempt from the requirements of this section.

**2.** Installation, alteration, or repairs of electrical, plumbing or mechanical systems are exempt from the requirements of this section.

**R314.6 Power source - Amendatory.** Smoke alarms shall receive their primary power from the building wiring when such wiring is served from a commercial source, and when primary power is interrupted, shall receive power from a battery. Wiring shall be permanent and without a disconnecting switch other than those required for overcurrent protection. Smoke alarms shall be interconnected. All required smoke alarms in the individual unit shall be connected to the same luminaire circuit.

**Exceptions:**

**1.** Smoke alarms shall be permitted to be battery operated when installed in buildings without commercial power.

**2.** Smoke alarms installed in accordance with Section R314.2.2 shall be permitted to be battery powered.

**R315.2.2 Alterations, repairs and additions - Amendatory.** Where alterations, repairs, or additions requiring a permit occur, or where one or more sleeping rooms are added or created in existing dwellings, the individual dwelling unit shall be equipped with carbon monoxide alarms located as required for new dwellings.

**Exceptions:**

**1.** Work involving the exterior surfaces of dwellings, such as the replacement of roofing or siding, the addition or replacement of windows or doors, or the addition of a porch or deck, are exempt from the requirements of this section.

**2.** Installation, alteration, or repairs of electrical, plumbing or mechanical systems are exempt from the requirements of this section.

**R322.1.6 Protection of mechanical, plumbing and electrical systems - Amendatory.** Electrical systems, equipment and components; heating, ventilating, air conditioning; plumbing appliances and plumbing fixtures; duct systems; and other service equipment shall be located at least one (1) foot above the elevation required in Section R322.2. If replaced as part of a substantial improvement, electrical systems, equipment and components; heating, ventilating, air conditioning; plumbing appliances and plumbing fixtures; duct systems; and other service equipment shall meet the requirements of this section. Systems, fixtures, and equipment and components shall not be mounted on or penetrate through walls intended to break away under flood loads.

**Exception:** Locating electrical systems, equipment and components; heating, ventilating, air conditioning; plumbing appliances and plumbing fixtures; duct systems; and other service equipment below the elevation required in Section R322.2 is permitted provided that they are designed and installed to prevent water from entering or accumulating within the components and to resist hydrostatic and hydrodynamic loads and stresses, including the effects of buoyancy, during the occurrence of flooding to the design flood elevation in accordance with ASCE 24. Electrical wiring systems are permitted to be located below the required elevation provided that they conform to the provisions of the electrical sections of this code for wet locations.

**R322.1.9 Manufactured homes - Amendatory.** The bottom of the frame of new and replacement manufactured homes on foundations that conform to the requirements of Section R322.2, shall be elevated at least one (1) foot above the elevations as specified in Section R322.2. The anchor and tie-down requirements of the applicable state and

federal requirements shall apply. The foundation and anchorage of manufactured homes to be located in identified floodways shall be designed and constructed in accordance with ASCE 24.

**R322.1.10 As-built elevation documentation - Amendatory.** A registered land surveyor or engineer licensed by the State of Oklahoma shall prepare and seal documentation of the elevations specified in Sections R109.1.3, R109.1.3.1, and R322.2.

**R322.2.1 Elevation Requirements - Amendatory.**

**1.** Buildings and structures in flood hazard areas shall have the lowest floors (including basement floors) elevated at least one (1) foot above the base flood elevation or the design flood elevation, whichever is higher.

**2.** In areas of shallow flooding (AO Zones), buildings and structures shall have the lowest floor (including a basement) elevated at least as high above the highest adjacent grade as the depth number specified in feet (mm) on the FIRM plus one (1) foot, or at least three (3) feet if a depth number is not specified.

**3.** Basement floors that are below grade on all sides shall be elevated at least one (1) foot above the base flood elevation, or the design flood elevation, whichever is higher.

**Exception:** Enclosed areas below the design flood elevation, including basements whose floors are not below grade on all sides, shall meet the requirements of Section R322.2.2 of this code.

**4.** Electrical systems, equipment and components; heating, ventilation, air conditioning; plumbing appliances and plumbing fixtures; duct systems; and other service equipment shall be located at least one (1) foot above the base flood elevation, or design flood elevation, whichever is higher. If replaced as part of a substantial improvement, electrical systems, equipment and components; heating, ventilation, air conditioning; plumbing appliances and plumbing fixtures; duct systems; and other service equipment shall meet the requirements of this section. Systems, fixtures, and equipment and components shall not be mounted on or penetrate through walls intended to break away under flood loads.

**R322.3 Coastal High Hazard Areas - Deleted; Section number retained but unused.**

**R323.1 General - Amendatory.** This section applies to the construction of above or below ground storm shelters and safe rooms constructed as separate detached buildings or rooms within buildings, structures, or portions thereof for the purpose of providing safe refuge from storms that produce high winds, such as tornados. Any room or structure, as may be used as a place of refuge during a severe windstorm event, shall not be defined as a storm shelter or safe room unless specifically designed and built to the requirements listed in Section 323. In addition to other applicable requirements in this code, storm shelters shall be constructed in accordance with ICC/NSSA 500.

**R323.2 Definitions - Added.** The following definitions are defined in Chapter 2 of this code:

**1.** SAFE ROOM

**a.** Community safe room.

**b.** Other safe room.

**2.** STORM SHELTER

**a.** Community storm shelter.

**b.** Residential storm shelter.

**R323.2.1 Design wind speed.** For storm shelters, the minimum design wind speed for the entire State of Oklahoma shall be 250 miles per hour.

**R323.2.2 In-ground storm shelters.** When installed in the floor of a garage, the rim of the storm shelter shall be raised a minimum of 1 inch (25 mm) above the highest point of the adjacent garage floor to resist surface drainage into the shelter. The floor around the shelter shall slope at a maximum slope of 1:8.

**R323.2.3 Height of storm shelter.** When determining the location of natural ventilation in accordance with ICC 500® Section 702.1.1.1, the height of the storm shelter shall be defined as an average of the vertical dimensions from the floor elevation to the bottom of the storm shelter deck or to the underside of a hard ceiling within the storm shelter.

**R323.2.4 Occupant density.** Residential storm shelters located in or adjacent to one- and two-family dwellings may exceed the occupant density in ICC 500® Table 502.4 and shall not be required to conform to the requirements of a community shelter.

**R326.1 General.** Residential swimming pools, spas, and hot tubs requiring a permit shall comply with Sections R326.2 through R326.4.

**R326.2 Enclosure.** Swimming pools shall be completely enclosed by a fence or barrier not less than 4 feet (1219 mm) in height or a screen enclosure. Openings in the fence or barrier shall not permit the passage of a 4-inch-diameter (102 mm) sphere.

**Exceptions:**

**(A)** Exception 1. Swimming pools, spas and hot tubs on lots in excess of 2 acres are exempt from the requirements.

**(B)** Exception 2. A swimming pool with a power safety cover or a spa with a safety cover complying with ASTM F 1346 need not comply with this section.

**R326.3 Gates.** Exterior pedestrian access doors or gates shall be self-closing and have a self-latching device. Doors or gates other than pedestrian access doors or gates shall have a self-latching device. Where the release mechanism of the self-latching device is located less than 54 inches (1372 mm) from the bottom of the door or gate, the release mechanism shall be located on the pool side of the door or gate, 3 inches (76 mm) or more below the top of the door or gate, and the door or gate and barrier shall be without openings greater than ½ inch (12.7 mm) within 18 inches (457 mm) of the release mechanism. Exception: Gates equipped with a locking device.

**R326.4 Suction outlet fitting assemblies.** Suction outlet fitting assemblies shall be listed and labeled in compliance with ANSI/APSP/ICC 16.

**R326.5 Entrapment avoidance.** Suction entrapment avoidance for pools and spas shall be provided in accordance with ANSI/APSP/ICC 7. Exception: Portable spas and portable exercise pools listed in accordance with UL 1563 or CSA C22.2 No 281.1.

**R327.3.1 Locations.**

**(A)** ESS (Energy Storage Systems) shall be installed only in the following locations:

(i) Item 1. Detached garages and detached accessory structures.

(ii) Item 2. Attached garages separated from the dwelling unit living space in accordance with Section R302.6.

(iii) Item. 3. Outdoors or on the exterior side of exterior walls located not less than 3 feet (914 mm) from doors and windows directly entering the dwelling unit.

(iv) Item 4. Enclosed utility closets, basements, storage or utility spaces within dwelling units with finished or noncombustible walls and ceilings. Walls and ceilings of unfinished wood-framed construction shall be provided with not less than ⅝-inch (15.9 mm) Type X gypsum wall board.

**(B)** ESS shall not be installed in sleeping rooms, or closets or spaces opening directly into sleeping rooms.

**R402.2 Concrete - Amendatory.** Concrete shall have a minimum specified compressive strength of fc, as shown in Table R402.2. Concrete subject to moderate or severe weathering as indicated in Table R301.2 (1) shall be air entrained as specified in Table R402.2. The maximum weight of fly ash, other pozzolans, silica fume, slag or blended cements that is included in concrete mixtures for garage floor slabs and for exterior porches, carport slabs and steps that will be exposed to deicing chemicals shall not exceed the percentages of the total weight of the cementitious materials specified in Section 19.3.3.4 of ACI 318. Materials used to produce concrete and testing thereof shall comply with the applicable standards listed in Chapters 19 and 20 of ACI 318 or ACI 332.

**Exception:** Interior concrete slabs on grade and enclosed garage slabs are not required to be air entrained.

**Table R403.1(1) Minimum width and thickness for concrete footings for light-frame construction (inches) - Amendatory. Footnote "b" is deleted.**

**Table R403.1(2) Minimum width and thickness for concrete footings for light-frame construction with brick veneer (inches) - Amendatory. Footnote "b" is deleted.**

**Table R403.1(3) Minimum width and thickness for concrete footings with cast-in-place concrete or fully grouted masonry wall construction (inches) - Amendatory. Footnote "b" is deleted.**

**Figure R403.1(1) Plain concrete footings with masonry and concrete stem walls in SDC A, B, and C[a, b, c, d, e, f, g] - Amendatory; footnote "g" added.**

**g.** See Section R403.1.1.1 and Section R403.1.1.2 for minimum reinforcement bar requirements.

**R403.1.1.1 Reinforcement of Footings - Added.** A minimum of four (4) five-eighths-inch reinforcement bars shall be placed horizontally, two (2) at the top and two (2) at the bottom, in each continuous footing. The continuous footing shall extend across below the garage door openings, unless otherwise designed by an engineer. Reinforcements shall be installed at the time of footing inspections.

**R403.1.1.2 Dowels in Footings - Added.** Unless otherwise designed by an engineer, dowels shall be required as follows and shall be installed at the time of footing inspection:

**1.** All cold joints between footings and foundation walls (stem walls) shall be tied together with a minimum size number four (4) dowels at every corner, and not to exceed four (4) feet (1828 mm) on center along the wall, with minimum embedment of 12 inches (304 mm) each into the footing and the foundation (stem) wall.

**2.** All cold joints between continuous footings and grade slab shall be tied together with a minimum size one-half (½) inch dowels at four (4) feet on center which shall extend from three (3) inches above the bottom of the footing and turn into the slab a minimum embedment of twenty-four (24) inches.

**3.** All cold joints between foundation (stem) walls and grade slab shall be tied together with a minimum size one-half (½) inch dowels at four (4) feet on center, with minimum embedment of 12 inches (304 mm) into the foundation (stem) wall and minimum embedment of twenty-four (24) inches into the slab.

**R403.1.6 Foundation anchorage - Amendatory.** Wood sill plates and wood walls supported directly on continuous foundations shall be anchored to the foundation in accordance with this section.

**1.** Cold formed steel framing shall be anchored directly to the foundation or fastened to wood sill plates anchored to the foundation. Anchorage of cold-formed steel framing shall be in accordance with this section and Section R505.3.1 or R603.3.1.

**2.** Wood sole plates at the exterior walls on monolithic slabs, wood sole plates of braced wall panels at building interiors on monolithic slabs and all wood sill plates shall be anchored to the foundation with minimum ½-inch-diameter (12.7 mm) anchor bolts spaced a maximum of 6 feet (1829 mm) on center or approved anchors or anchor straps spaced as required to provide equivalent anchorage to ½-inch-diameter (12.7 mm) anchor bolts. Bolts shall extend a minimum of 7 inches (178 mm) into concrete or grouted cells of concrete masonry units. The bolts shall be located in the middle third of the width of the plate. A nut and washer shall be tightened on each anchor bolt. There shall be a minimum of two bolts per plate section with one bolt located not more than 12 inches (305 mm) or less than seven bolt diameters from each end of the plate section. Interior bearing wall sole plates that are not part of a braced wall panel shall be positively anchored with approved fasteners. Hand driven cut or concrete nails are not approved fasteners. Sill plates and sole plates shall be protected against decay and termites where required by Sections R317 and R318.

**Exceptions:**

**1.** Walls 24 inches (610 mm) total length or shorter connecting offset braced wall panels shall be anchored to the foundation with a minimum of one anchor bolt located in the center third of the plate section and shall be attached to adjacent braced wall panels at corners as shown in Item 9 of Table R602.3(1).

**2.** Connection of walls 12 inches (305 mm) total length or shorter connecting offset braced wall panels to the foundation without anchor bolts shall be permitted. The wall shall be attached at corners as shown in Item 9 of Table R602.3(1).

**3.** Wood sole plates of braced wall panels at building interiors on monolithic slabs may be anchored using connector(s) with a shear capacity of 2,300 pounds and a tensile capacity of 800 pounds over a maximum span of 6 feet.

**R403.1.7.3 Foundation Elevation - Deleted; Section number retained but unused.**

**R403.1.9. Protection of footings - Added.** Trenching for work including but not limited to plumbing, electrical, storm shelters, and pools shall comply with this section. Trenching installed parallel to footings and walls shall not extend into the bearing

plane of a footing wall. The upper boundary of the bearing plane is a line that extends downward, at an angle of 45 degrees from horizontal, from the outside bottom edge of the footing wall.

**R506.2.1 Fill - Amendatory.** Fill material shall be free of vegetation and foreign material. The fill shall be compacted in 8 to 12 inch (203 mm to 305 mm) lifts to ensure uniform support of the slab, and except where approved, the fill depths shall not exceed 48 inches (1220 mm) for clean sand or gravel and 8 inches (203 mm) for earth.

**R506.2.3 Vapor retarder - Amendatory.** A six (6) mil (0.006 inch; 152 micrometers) polyethylene sheeting, other industry accepted vapor retarder products installed per manufacturer specifications or approved vapor retarder with joints lapped not less than six (6) inches (152 mm) shall be placed between the concrete floor slab and the base course or the prepared subgrade where no base course exists.

**Exception:** The vapor retarder may be omitted:

**1.** From detached garages, utility buildings and other unheated accessory structures.

**2.** From unheated storage rooms having an area of less than seventy (70) square feet (6.5 $m^2$) and carports.

**3.** From driveways, walks, patios and other flatwork not likely to be enclosed and heated at a later date.

**4.** Where approved by the building official, based on local site conditions.

**Table R602.3(1) Fastening schedule - Amendatory. Footnote "k" added. Top or bottom plate to stud[k].**

**k.** When 7/16 inch structural sheathing is used with a minimum nailing spacing of 6 inches (152 mm) on the edge and 12 inches (305 mm) in the field, two 3-inch x 0.131-inch nails are acceptable for end nail conditions for the top and bottom plate to stud connection.

**Table R602.3(3) Requirements for wood structural panel wall sheathing used to resist wind pressures[a, b, c, d] - Amendatory. Footnote "d" added.**

**d.** The following alternative fasteners will be acceptable with a wind exposure category of C or D, 0.099 inch x 2¼ inches at 3 inches on center along the edge and 6 inches on center in the field. Or, 0.113 inch x 2⅜ inches at 6 inches on center along the edge and 12 inches on center in the field.

**R602.10.5 Minimum length of a braced wall panel - Amendatory.** The minimum length of a braced wall panel shall comply with Table R602.10.5. For methods CS-WSP and CS-SFB, the minimum panel length shall be based on the adjacent clear opening height in accordance with Table R602.10.5 and Figure R602.10.5. Where a panel has an opening on either side of differing heights, the taller opening height shall be used to determine the panel length. For method CS-PF, it is permissible to begin the portal frame at 12½ feet (3810 mm) from the wall line end.

**R602.10.8 Braced wall panel connections - Amendatory.** Braced wall panels shall be connected to floor framing or foundations as follows:

**1.** Where joists are perpendicular to a braced wall panel above or below, a rim joist, band joist or blocking shall be provided along the entire length of the braced wall

panel in accordance with Figure R602.10.8(1). Fastening of top and bottom wall plates to framing, rim joist, band joist and/or blocking shall be in accordance with Table R602.3(1).

**2.** Where joists are parallel to a braced wall panel above or below, a rim joist, end joist or other parallel framing member shall be provided directly above and below the braced wall panel in accordance with Figure R602.10.8(2). Where a parallel framing member cannot be located directly above and below the panel, full-depth blocking at sixteen (16) inch (406 mm) spacing shall be provided between the parallel framing members to each side of the braced wall panel in accordance with Figure R602.10.8(2). Fastening of blocking and wall plates shall be in accordance with Table R602.3(1) and Figure R602.10.8(2).

**3.** Connections of braced wall panels to concrete or masonry shall be in accordance with Section R403.1.6.

**4.** Wood sole plates of braced wall panels at building interiors on monolithic slabs may be anchored using connector(s) with a shear capacity of two thousand three hundred (2,300) pounds and a tensile capacity of eight hundred (800) pounds over a maximum span of six (6) feet.

**R602.12 Simplified wall bracing - Amendatory.** Buildings meeting all of the conditions listed below shall be permitted to be braced in accordance with this section as an alternate to the requirements of Section R602.10. The entire building shall be braced in accordance with this section; the use of other bracing provisions of Section R602.10, except as specified herein, shall not be permitted.

**1.** There shall be not more than three stories above the top of a concrete or masonry foundation or basement wall. Permanent wood foundations shall not be permitted.

**2.** Floors shall not cantilever more than 24 inches (607 mm) beyond the foundation or bearing wall below.

**3.** Wall height shall not be greater than 12 feet (3658 mm).

**4.** The building shall have a roof eave-to-ridge height of 20 feet (6096 mm) or less.

**5.** Exterior walls shall have gypsum board with a minimum thickness of ½ inch (12.7 mm) installed on the interior side fastened in accordance with Table R702.3.5.

**6.** The structure shall be located where the ultimate design wind speed is less than or equal to 115 mph (51.4 m/s), and the exposure category is B or C.

**7.** The structure shall be located in Seismic Design Category A, B, or C for detached one- and two-family dwellings or Seismic Design Category A or B for townhouses.

**8.** Cripple walls shall not be permitted in three-story buildings.

**R602.12.2 Sheathing materials - Amendatory.** The following sheathing materials installed on the exterior side of exterior walls shall be used to construct a bracing unit as defined in Section R602.12.3. Mixing materials is prohibited.

**1.** Wood structural panels with a minimum thickness of 7/16 inch (11.11 mm) fastened in accordance with Table R602.3(3).

**2.** Structural fiberboard sheathing with a minimum thickness of ½ inch (12.7 mm) fastened in accordance with Table R602.3(1).

**R703.1 General -** Exterior walls shall provide the building with a weather-resistive exterior wall envelope. The exterior wall envelope shall include flashing as described in Section R703.4. Direct Applied Exterior Finish Systems Cement Board based stucco finish and direct applied masonry or stone shall comply with the following:

**(A)** Item 1. Direct applied masonry or stone shall comply with Section R703.7.3 Water-resistive barriers and product manufacture's installation specifications.

**(B)** Item 2. Cement Board Stucco Exterior Finish Systems shall be installed per manufacturer installation instructions and meet the minimum wall assembly details below. Products that make up the finished wall system that consists of base coat, secondary coat, reinforcing mesh and finish coat shall be of same manufacturer to ensure product/material compatibility and performance.

**2.1.** Approved Sheathing.

**2.2.** Base flashing at bottom of walls and roofs.

**2.3.** Water resistant barrier equal to or greater than 60-minute Grade D paper or ASTM D226.

**2.4.** Approved Cement Board for wall application base for exterior wall ASTM C1326.

**2.5.** Approved Cement Board Joint Reinforcement Coat and Mesh.

**2.6.** Base Coat.

**2.7.** Reinforcing Mesh ASTM E2098(Alkaline Resistant).

**2.8.** Second Base Coat.

**2.9.** Finish Coat.

**2.10.** Other Design Considerations: Separation distance from finish exterior grade must be 6 inches or greater. Separation from roofs must be 1 inch or greater. Through wall flashing must be provided at horizontal locations at dissimilar materials. Expansion joints, if needed, shall comply with finish system manufacturer recommendations. Expansion gaps are required around all windows, doors, or other dissimilar material integrated in the wall and joints are required to be sealed.

**(C) Exception:** Log walls designed and constructed in accordance with the provisions of ICC 400®.

**R703.4 Flashing - Amendatory.** Approved corrosion-resistant flashing shall be applied shingle-fashion in a manner to prevent entry of water into the wall cavity or penetration of water to the building structural framing components. Six (6) mil polyethylene sheeting is an approved corrosion-resistant flashing when not exposed to UV rays. Self-adhered membranes used as flashing shall comply with AAMA 711. Fluid-applied membranes used as flashings in exterior walls shall comply with AAMA 714. The flashing shall extend to the surface of the exterior wall finish. Approved corrosion-resistant flashings shall be installed at the following locations:

**1.** Exterior window and door openings. Flashing at exterior window and door openings shall extend to the surface of the exterior wall finish or to the water-resistive barrier complying with Section R703.2 for subsequent drainage.

Mechanically attached flexible flashings shall comply with AAMA 712. Flashing at exterior window and door openings shall be installed in accordance with one or more of the following:

**1.1.** The fenestration manufacturer's installation instructions and flashing instructions, or for applications not addressed in the fenestration manufacturer's instructions in accordance with the flashing manufacturer's instructions. Where flashing instructions or details are not provided, flashing to be installed per 1.2, 1.3, 1.4 or, pan flashing shall be installed at the sill of exterior window and door openings. Pan flashing shall be sealed or sloped in a such a manner as to direct water to the surface of the exterior wall finish or to the water-resistive barrier for subsequent drainage. Openings using pan flashing shall incorporate flashing or protection at the head and sides.

**1.2.** In accordance with the flashing design or method of a registered design professional.

**1.3.** In accordance with other approved methods.

**1.4.** Flashing above doors are not required where the door is covered by a minimum of 3 feet.

**2.** At the intersection of chimneys or other masonry construction with frame or stucco walls, with projecting lips on both sides under stucco copings.

**3.** Under and at the ends of masonry, wood or metal copings and sills.

**4.** Continuously above all projecting wood trim.

**5.** Where exterior porches, decks, or stairs attach to a wall or floor assembly of wood-frame construction.

**6.** At wall and roof intersections.

**7.** At built-in gutters.

**703.7.3 Water-resistive barriers.** Water-resistive barriers shall be installed as required in Section R703.2 and, where applied over approved sheathing, shall include a water-resistive vapor-permeable barrier with a performance at least equivalent to two layers of Grade D paper. The individual layers shall be installed independently such that each layer provides a separate continuous plane and any flashing, installed in accordance with Section R703.4 and intended to drain to the outer water-resistive barrier. Exception: Where the water-resistive barrier that is applied over wood-based sheathing has a water resistance equal to or greater than that of 60-minute Grade D paper and is separated from the stucco by an intervening, sustainably nonwater-absorbing layer or designed drainage space.

**R703.8 Anchored stone and masonry veneer, general.** R703.8 Anchored stone and masonry veneer, general. Anchored stone and masonry veneer shall be installed in accordance with this chapter, Table R703.3(1) and Figure R703.8. These veneers installed over a backing of wood or cold-formed steel shall be limited to the first story above grade plane and shall not exceed 5 inches (127 mm) in thickness. See Section R602.10 for wall bracing requirements for masonry veneer for wood-framed construction and Section R603.9.5 for wall bracing requirements for masonry veneer for cold-formed steel and connections. Anchored stone walls shall have an additional layer

of No. 15 asphalt felt complying with ASTM D226 for Type I felt or other approved water-resistance barrier to provide a bond break between the primary water-resistive barrier and the back side of stone or mortar.

**Exceptions:**

**(A)** Exception 1. For buildings in Seismic Design Categories A, B, and C, exterior stone or masonry veneer, as specified in Table R703.8(1) with a backing of wood or steel framing shall be permitted to the height specified in Table R703.8(1) above a noncombustible foundation.

**(B)** Exception 2. For detached one- and two-family dwellings in Seismic Design Categories D (subscript 0), D (subscript 1), and D (subscript 2), exterior stone or masonry veneer, as specified in Table 703.8(2) with a backing of wood framing shall be permitted to the height specified in Table 703.8(2) above a noncombustible foundation.

**Figure R703.8 Typical Masonry Veneer Wall Details[e, f, g] - Amendatory. Footnotes "f" and "g" added.**

**f.** Flashing to be done per Section R703.4, in accordance with a design from a registered design professional or in accordance with other approved methods or standard industry practices.

**g.** Flashing depicted under sill and above windows are not required with windows that have flanges for their primary attachment. Flange type windows shall be counter flashed into the weather-resistant barrier or installed per Section R703.4 and per window manufacturer's installation instructions.

**Figure R703.8.2.1 Exterior Masonry Veneer Support by Steel Angles[a] - Amendatory. Footnote "a" added.**

**a.** Flashing to be done per Section R703.4, in accordance with a design from a registered design professional or other approved methods as defined by the code for wall flashing.

**Figure R703.8.2.2 Exterior Masonry Veneer Support by Roof Members[a] - Amendatory. Footnote "a" added.**

**a.** Flashing to be done per Section R703.4, in accordance with a design from a registered design professional or other approved methods as defined by the code for wall flashing.

**R703.8.3.1 Allowable span — Amendatory.** The allowable span shall not exceed the values set forth in Table R703.8.3.1. Additionally a 3 inches x 3 inches x 3/16 inch (76 mm x 76 mm x 4.8 mm) steel angle 6 feet (1829 mm) long may be used to support 3 vertical feet (914 mm) of masonry veneer and a 3 inches x 3 inches x 3/16 inch (76 mm x 76 mm 4.8 mm) steel angle 5 feet (1524 mm) long may be used to support 4¼ vertical feet (1295 mm) of masonry veneer.

**R703.9.1 Exterior insulation and finish systems (EIFS).** Exterior insulation and finish systems (EIFS). EIFS shall comply with the following:

**1.** ASTM E2568.

**2.** EIFS shall be limited to applications over substrates of concrete or masonry wall assemblies.

**3.** Flashing of EIFS shall be provided in accordance with the requirements of Section R703.4.

**4.** EIFS shall be installed in accordance with same manufacturer's instruction as to ensure product/material compatibility and performance.

**5.** EIFS shall terminate not less than 6 inches (152 mm) above the finished ground level.

**6.** Decorative trim shall not be face-nailed through the EIFS.

**R703.9.2 Exterior insulation and finish systems (EIFS) with drainage.** Exterior insulation and finish systems (EIFS) with drainage. EIFS with drainage shall comply with the following:

**1.** ASTM E2568.

**2.** EIFS with drainage shall be required over all wall assemblies with the exception of substrates of concrete or masonry wall assemblies.

**3.** EIFS with drainage shall have an average minimum drainage efficiency of 90 percent when tested in accordance with ASTM E2273.

**4.** The water-resistive barrier shall comply with Section R703.2 or ASTM 2570.

**5.** The water-resistive barrier shall be applied between the EIFS and the wall sheathing.

**6.** Flashing of EIFS with drainage shall be provided in accordance with the requirements of Section R703.4.

**7.** EIFS with drainage shall be installed in accordance with the same manufacturer's instructions to ensure product/material compatibility and performance.

**8.** EIFS with drainage shall terminate not less than 6 inches (152 mm) above the finished ground level.

**9.** Decorative trim shall not be face-nailed through the EIFS.

**R801.3 Roof drainage - Deleted.**

**R802.3 Ridge - Added.** A ridge board used to connect opposing rafters shall be not less than 1 inch (25 mm) nominal thickness and not less in depth than the cut end of the rafter. Where ceiling joists or rafter ties do not provide continuous ties across the structure, a ridge beam shall be designed, in accordance with acceptable engineer practices, and supported on each end of the wall or girder, when roof loads exceed 10 per square foot pound dead loads and 20 per square foot pound live loads. In the case where rafters are used to support roof and finished ceiling (also known as a cathedral ceiling) with no connection of opposing rafters, ridge beam shall be designed, in accordance with acceptable engineer practices to carry one-half of tributary load of the roof.

**R802.4.1 Rafter size - Added.** Rafters shall be sized based on the rafter spans in Tables R802.4.1(1) through R802.4.1(8). Rafter spans shall be measured along the horizontal projection of the rafter. For other grades and species and for other loading conditions, refer to the AWC STJR. The tabulated rafter spans in Tables R802.4.1(1) through R802.4.1(8) assume ceiling joists are located at the bottom of the attic space or some other method of resisting the outward push of the rafter on the bearing walls, such as rafter ties is provided at that location. Where ceiling joists or rafter ties are located higher in the attic space, the rafter span in these tables shall be multiplied by

the following rafter reduction factors: Where ceiling joists or rafter ties are located at one-third the span of the rafter the adjustment factor is 0.67, at one-quarter of the span of the rafter the rafter adjustment factor is 0.76, at one-fifth the span of the rafter the adjustment factor is 0.83, at one-sixth of the span of the rafter, the adjustment factor is 0.90, and at two-fifteenths of the rafter or less, there is no need for adjusting the rafter capacity. Exception: Collar Ties. Installation of the collar ties to reduce the span of the rafters is permitted as shown in Figure R802.4.5. Collar ties shall be installed at every rafter and sized not less than the required size of the rafters they are connected.

**R802.4.2 Framing details - Amendatory.**

**(A)** Rafters shall be framed to a ridge board or to each other with a collar tie, gusset plate or ridge strap in accordance with Table R602.3(1). Rafters shall be nailed to the top wall plates in accordance with Table R602.3 (1) unless the roof assembly is required to comply with the uplift requirements of Section R802.11. Ridge board shall not be less than 1-inch (25 mm) nominal thickness and not less in depth and one size greater than the rafters attached to it.

**(B)** Where a 1-inch (25 mm) nominal thickness ridge is used, all rafters shall be framed not more than 1.5 inches (38 mm) offset from each other at the ridge board or if no ridge is used they should be framed directly opposite from each other with a gusset plate as a tie. When a nominal 2-inch rafter is used they may be offset with no limitations.

**R802.4.3 Hips and Valleys - Added.** Hip and valley rafters shall be not less than 2 inches (51 mm) nominal in thickness and not less in depth than the cut end of the rafter. Hip and valley rafters shall be supported at the ridge by a brace to a bearing partition, or beam, or be designated to carry and distribute the specific load at that point. Exception: The use of a "Blind Valley" also known as a "Farmers Valley" or "California Valley" will be allowed. In this type of valley, the main roof is framed as usual, it may or may not be sheathed and the intersecting roof is framed on top of the main roof. The two valley plates or sleeps lie on the top of the main roof rafters or sheathing and provide a nailing base for the jack rafters and the ridge board of the intersecting roof. A definition of a brace includes:

**(A)** Item 1. A triangular configuration of framing members with a horizontal tie and rafter members.

**(B)** Item 2. King post or similar.

**R802.5.1 Purlins - Amendatory.** Installation of purlins to reduce the span of rafters is permitted as shown in Figure R802.5.1. Purlins shall be sized no less than the required size of the rafters that they support. Purlins shall be continuous and shall be supported by two (2) inch by four (4) inch (51 mm by 102 mm) braces installed to bearing walls at a slope not less than forty-five (45) degrees from the horizontal. The braces shall be spaced not more than four (4) feet (1219 mm) on center and the unbraced length of braces shall not exceed eight (8) feet (2438 mm).

**Exception:** Braces may be spaced not more than six (6) feet (1,829 mm) on center if:

**1.** The purlin brace is two (2) inch by six (6) inch (51 mm by 153 mm),

**2.** Purlins shall be sized one (1) nominal size larger than the rafter they support, and

**3.** Unbraced length of braces shall not exceed eight (8) feet (2,438 mm).

**R802.5.2 Ceiling joists and rafter connections - Added.** Where ceiling joists run parallel to rafters, they shall be connected to rafters at the top wall plate in accordance with Table R802.5.2. Where ceiling joists are not connected to the rafters at the top of the wall plate, they shall be installed in the bottom third of the rafter height in accordance with Figure R802.4.5 and Table R802.5.2 Where ceiling joists do not run parallel to the rafters, the ceiling joists shall be connected to top plates in accordance with Table R602.3(1). Each rafter shall be tied across the structure with a rafter tie spaced 4 ft (1219 mm) on center. Where ceiling joists or rafter ties are not provided, the ridge formed by these rafters shall be supported by a wall or girder designed in accordance with accepted engineer practices.

**R802.7.1.2 Ceiling joists taper cut - Amendatory.** Taper cuts at the ends of the ceiling joists shall not exceed one-fourth the depth of the member in accordance with Figure R802.7.1.2.

**Exception:** For ceiling joists not carrying more than 25 pounds of tributary load (limited attic storage) then taper cut at end of joint may be able to be increased to D/2.

**R806.5 Unvented attic and unvented enclosed rafter assemblies - Added.** Unvented attics and unvented enclosed roof framing assemblies created by ceilings that are applied directly to the underside of the roof framing members and structural roof sheathing applied directly to the top of the roof framing members/rafters, shall be permitted where all of the following conditions are met:

**(A)** Item 1. The unvented attic space is completely within the building thermal envelope.

**(B)** Item. 2. Interior Class I vapor retarders are not installed on the ceiling side (attic floor) of the unvented attic assembly or on the ceiling side of the unvented enclosed roof assembly.

**(C)** Item 3. Where wood shingles or shakes are used, a minimum ¼-inch (6.4 mm) vented airspace separates the shingles or shakes and the roofing underlayment above the structural sheathing.

**(D)** Item 4. In climate Zones 5, 6, 7, and 8, any air-impermeable insulation shall be a Class II vapor retarder or shall have a Class II vaper retarder coating or covering in direct contact with the underside of the insulation.

**(E)** Item 5. Insulation shall comply with Item 5.3 and either Item 5.1 or 5.2:

**(i)** Item 5.1. Item 5.1.1, 5.1.2, 5.1.3, or 5.1.4 shall be met, depending on the air permeability of the insulation directly under the structural roof sheathing.

(I) Item 5.1.1 Where only air-impermeable insulation is provided it shall be applied in direct contact with the underside of the structural roof sheathing.

(II) Item 5.1.2 Where air-permeable insulation is installed directly below the structural sheathing, ridge board or sheet insulation shall be installed directly above the structural roof sheathing in accordance with the R-values in Table R806.5 for condensation control.

(III) Item 5.1.3. Where both air-impermeable and air-permeable insulation are provided, the air-impermeable insulation shall be applied in direct contact with the underside of the structural roof sheathing in accordance

with Item 5.1.1 and shall be in accordance with the R-values in Table R806.5 for condensation control. The air-permeable insulation shall be installed directly under the air-impermeable insulation.

(IV) Item 5.1.4 Alternatively, sufficient ridge board or sheet insulation shall be installed directly above the structural roof sheathing to maintain the monthly average temperature of the underside of the structural roof sheathing above 45 degrees Fahrenheit (7 degrees Celsius). For calculation purposes, an interior air temperature of 68 degrees Fahrenheit (20 degrees Celsius) is assumed and the exterior air temperature is assumed to be the monthly average outside air temperature of the three coldest months.

**(ii)** Item 5.2. In Climate Zones 1, 2, and 3, air-permeable insulation installed in unvented attics shall meet the following requirements:

(I) Item 5.2.1. An approved vapor diffusion port shall be installed not more than 12 inches (305 mm) from the highest point of the roof, measured vertically from the highest point of the roof to the lower edge of the port.

(II) Item 5.2.2. The port area shall be greater than or equal to 1:600 of the ceiling area. Where there are multiple ports in the attic, the sum of the port areas shall be greater than or equal to the area requirement.

(III) Item 5.2.3. The vapor-permeable membrane in the vapor diffusion port shall have a vapor permeance rating of greater than or equal to 20 perms when tested in accordance with Procedure A of ASTM E96.

(IV) Item 5.2.4. The vapor diffusion port shall serve as an air barrier between the attic and the exterior of the house.

(V) Item 5.2.5. The vapor diffusion port shall protect the attic against the entrance of rain and snow.

(VI) Item 5.2.6. Framing members and blocking shall not block the free flow of water vapor to the port. Not less than a 2-inch (51 mm) space shall be provided between any blocking and the roof sheathing. Air-permeable insulation shall be permitted within that space.

(VII) Item 5.2.7. The roof slope shall be greater than or equal to 3:12 (vertical/horizontal).

(VIII) Item 5.2.8. Where only air-permeable insulation is used, it shall be installed directly below the structural roof sheathing, on top of the attic floor, or on top of the ceiling.

(IX) Item 5.2.9. Air-impermeable insulation, where used in conjunction with air-permeable insulation, shall be directly above or below the structural roof sheathing and is not required to meet the R-value in Table 806.5. Where directly below the structural roof sheathing, there shall be no space between the air-impermeable insulation and the air-permeable insulation.

(X) Item 5.2.10. Where air-permeable insulation is used and is installed directly below the roof structural sheathing, air shall be supplied at a flow rate greater than or equal to 50 CFM (23.6 L/s) per 1,000 square feet (93 square meters) of ceiling. The air shall be supplied from ductwork

providing supply air to the occupiable space when the condition system is operating. Alternatively, the air shall be supplied by a supply fan when the conditioning system is operating. Exceptions: 1. Where both air-impermeable and air-permeable insulation are used, and the R-value in Table R806.5 is met, air supply to the attic is not required. 2. Where only air-permeable insulation is used and is installed in top of the attic floor, or on top of the ceiling, air supply to the attic is not required.

**(iii)** Item 5.3. Where preformed insulation board is used as the air-impermeable insulation layer, it shall be sealed at the perimeter of each individual sheet interior surface to form a continuous layer.

**Section 905.1.2 Ice barriers.**

**A. 905.1.2 Ice barriers.** In areas where there has been a history of ice forming along the eaves causing a backup of water as designated in Table R301.2(1), an ice barrier shall be installed for asphalt shingles, metal roof shingles, mineral-surfaced roll roofing, slate and slate-type shingles, wood shingles and wood shakes. The ice barrier shall consist of not fewer than two layers of underlayment cemented together, or a self-adhering polymer-modified bitumen sheet shall be used in place of normal underlayment and extend from the lowest edges of all roof surfaces to a point not less than 24 inches (610 mm) inside the exterior wall line of the building. On roofs with a slope equal to or greater than eight units vertical in 12 units horizontal (67 percent slope), ice barrier shall also be applied not less than 36 inches (914 mm) measured along the roof slope from the eave edge of the building.

**B.** A 36-inch wide (914 mm) ice barrier shall be installed in all valleys, run the length of the valley, and centered on the valley.

**C.** A 36-inch wide (914 mm) ice barrier shall be installed at all change in roof pitch in which the lower roof has a lower pitch than the upper roof. The ice barrier is run the length of the change in pitch and cemented on the change in pitch.

S**ection R905.2.1 Sheathing requirements - Amendatory.**

**R905.2.1 Sheathing requirements.** Asphalt shingles shall be fastened to solidly sheathed decks. Solidly sheathed decks shall be defined as sawn lumber boards or structural panels that provide a solid holding power for fasteners that do not have deficit conditions (gaps greater than those allowed by the roof covering manufacturer's installation instructions, warped, split, cracked, deteriorated or rotten boards).

**R905.2.8.5 Drip edge - Amendatory.** A drip edge shall be provided at eaves and rake edges of shingle roofs. Adjacent segments of drip edge shall be overlapped not less than 2 inches (51 mm). Drip edges shall extend not less than ¼ inch (6.4 mm) below the roof sheathing and extend up back onto the roof deck not less than 2 inches (51 mm). Drip edges shall be mechanically fastened to the roof deck at not less than 12 inches (305 mm) on center with fasteners as specified in Section R905.2.5. Underlayment shall be installed over the drip edge along eaves and under the underlayment along rake edges.

**Exception:** If a nominal 1 inch by 2 inch (25 mm by 51 mm) shingle mold is used, attached to the fascia and the starter course of shingles is extended a minimum of ¼ inch (6.35 mm) and not more than 1 inch (25 mm) then a metal drip edge is not required.

**R905.3.1. Deck requirements - Added.** Concrete and clay tile shall be installed only over solid sheathing or spaced structural sheathing boards. Solidly sheathed decks shall be defined as sawn lumber boards or structural panels that provide a solid holding power for fasteners that do not have deficit conditions (gaps greater than those allowed by the roof covering manufacture's installation instructions, warped, split, cracked deteriorated or rotten boards).

**R905.4.1 Deck requirements - Added.** Metal roof shingles shall be applied to a solid or closely fitted deck, except where the roof covering is specifically designed to be applied to spaced sheathing. Solidly sheathed decks shall be defined as sawn lumber boards or structural panels that provide a solid holding power for fasteners that do not have deficit conditions (gaps greater than those allowed by the roof covering manufacture's installation instructions, warped, split, cracked deteriorated or rotten boards).

**R905.5.1 Deck requirements - Added.** Mineral-surfaced roll roofing shall be fastened to solidly sheathed roofs. Solidly sheathed decks shall be defined as sawn lumber boards or structural panels that provide a solid holding power for fasteners that do not have deficit conditions (gaps greater than those allowed by the roof covering manufacture's installation instructions, warped, split, cracked deteriorated or rotten boards).

**R905.6.2 Deck requirements - Added.** Slate shingles shall be fastened to solidly sheathed roofs. Solidly sheathed decks shall be defined as sawn lumber boards or structural panels that provide a solid holding power for fasteners that do not have deficit conditions (gaps greater than those allowed by the roof covering manufacture's installation instructions, warped, split, cracked deteriorated or rotten boards).

**R905.7.1 Deck requirements - Added.** Wood shingles shall be installed on solid or spaced sheathing. Where spaced sheathing is used, sheathing boards shall be not less than 1-inch by 4-inch (25 mm by 102 mm) nominal dimensions and shall be spaced on centers equal to the weather exposure to coincide with the placement of fasteners. Solidly sheathed decks shall be defined as sawn lumber boards or structural panels that provide a solid holding power for fasteners that do not have deficit conditions (gaps greater than those allowed by the roof covering manufacture's installation instructions, warped, split, cracked deteriorated or rotten boards).

R**905.8.1 Deck requirements - Added.** Wood shakes shall be used only on solid or spaced sheathing. Where spaced sheathing is used, sheathing boards shall be not less than 1-inch by 4-inch (25 mm by 102 mm) nominal dimensions and shall be spaced on centers equal to the weather exposure to coincide with the placement of fasteners. Where 1-inch by 4-inch (25 mm by 102 mm) spaced sheathing is installed at 10 inches (254 mm) on center, additional 1-inch by 4-inch (25 mm by 102 mm) boards shall be installed between the sheathing boards. Solidly sheathed decks shall be defined as sawn lumber boards or structural panels that provide a solid holding power for fasteners that do not have deficit conditions (gaps greater than those allowed by the roof covering manufacture's installation instructions, warped, split, cracked, deteriorated or rotten boards).

**R905.10.1 Deck requirements - Added.** Metal roof panel roof coverings shall be applied to solid or spaced sheathing, except where the roof covering is specifically designed to be applied to spaced supports. Solidly sheathed decks shall be defined as sawn lumber boards or structural panels that provide a solid holding power for

fasteners that do not have deficit conditions (gaps greater than those allowed by the roof covering manufacture's installation instructions, warped, split, cracked deteriorated or rotten boards).

**R905.16.1 Deck requirements - Added.** Photovoltaic shingles shall be applied to a solid or closely fitted deck, except where the roof covering is specifically designed to be applied over spaced sheathing. Solidly sheathed decks shall be defined as sawn lumber boards or structural panels that provide a solid holding power for fasteners that do not have deficit conditions (gaps greater than those allowed by the roof covering manufacture's installation instructions, warped, split, cracked, deteriorated or rotten boards).

**R905.17.1 Deck requirements - Added.** BIPV roof panels shall be applied to a solid or closely fitted deck, except where the roof covering is specifically designed to be applied over spaced sheathing. Solidly sheathed decks shall be defined as sawn lumber boards or structural panels that provide a solid holding power for fasteners that do not have deficit conditions (gaps greater than those allowed by the roof covering manufacture's installation instructions, warped, split, cracked, deteriorated or rotten boards).

**R908.3.1.1. Roof re-cover - Amendatory.** A roof re-cover shall not be permitted where any of the following conditions occur:

**1.** Where the existing roof or roof covering is water soaked or has deteriorated to the point that the existing roof or roof covering is not adequate as a base for additional roofing.

**2.** Where the existing roof covering is slate, clay, cement or asbestos-cement tile.

**3.** Where the existing roof has two or more applications of any type of roof covering.

**4.** Where the existing roof has one or more application of asphalt shingles additional applications of asphalt shingles shall not be permitted.

**R1005.7 Factory-built chimney offsets - Amendatory.** Where a factory-built chimney assembly incorporates offsets, no part of the chimney shall be at an angle of more than 30 degrees (0.52 rad) from vertical at any point in the assembly and the chimney assembly shall not include more than four elbows.

**Exception:** Where chimneys are part of a listed and labeled factory-built fireplace they may be installed in accordance with the fireplace and chimney manufacturer's installation instructions.

**N1101.1 Scope - Amendatory.** This chapter regulates the energy efficiency for the design and construction of buildings regulated by this code.

**Exception:** This chapter does not apply to portions of the building envelope that do not enclose conditioned space.

**N1101.2 (R101.3) Intent - Deleted.**

**N1101.3 (R101.5.1) Compliance materials - Deleted.**

**N1101.4 Above code programs - Amendatory.** The building official or other authority having jurisdiction shall be permitted to deem a national, state, or local energy-efficiency program to exceed the energy efficiency required by this chapter. Buildings approved in writing by such an energy-efficiency program shall be considered in compliance with this chapter.

**N1101.5 (R103.2) Information on construction documents - Deleted.**

**N1101.5.1 (R103.2.1) Thermal envelope depiction - Deleted.**

**N1101.6 (R202) Defined Terms** - This section has been modified to delete the definition of a "ROOF RECOVER" from the list of defined terms in the chapter. Definitions for all other terms remain in the section and are applicable to the chapter.

**N1101.7 Climate zones - Amendatory** Climate zones from Figure N1107.1 or Table N1101.7 shall be used in determining the applicable requirements in Sections N1101 through N1111.

**Figure N1101.7 Climate zones - Amendatory.**

**Table N1101.7 Climate zones, moisture regimes, and warm-humid designations by state, county and territory - Amendatory.**

**N1101.7.1 Warm humid counties - Amendatory.** Warm humid counties are identified in Table N1101.7 by an asterisk.

**N1101.7.2 (R301.3) International climate zones - Deleted.**

**Table N1101.7.2(1) (R302.3.) (1) International climate zone definitions - Deleted.**

**N1101.7.2(2) (R301.3.) (2) International climate zone definitions - Deleted.**

**N1101.8 (R301.4) Tropical climate zone - Deleted.**

**N1101.9 (R302.1) Interior design conditions - Deleted.**

**N1101.10 Identification - Amendatory.** Materials, systems and equipment shall be identified in a manner that will allow a determination of compliance with the applicable provisions of this chapter.

**N1101.10.1 Building thermal envelope insulation - Amendatory.** An R-value identification mark shall be applied by the manufacturer to each piece of building thermal envelope insulation 12 inches (305 mm) or wider. Alternately, the insulation installers shall provide a certification listing the type, manufacturer and R-value of the insulation installed in each element of the building thermal envelope. For blown or sprayed insulation (fiberglass and cellulose), the initial installed thickness, settled thickness, settled R-value, installed density, coverage area and number of bags installed shall be listed on the certification. For sprayed polyurethane foam (SPF) insulation, the installed thickness of the area covered, and R-value of installed thickness shall be listed on the certificate. The insulation installer shall sign, date and post the certificate in a conspicuous location on the job site.

**N1101.10.1.1 Blown or sprayed roof/ceiling insulation - Amendatory.** The thickness of blown-in or sprayed roof/ceiling insulation (fiberglass or cellulose) shall be written in inches (mm) on markers that are installed at least once for every 300 square feet (28 square meters) throughout the attic space. The markers shall be affixed to the trusses or joists and marked with a minimum initial installed thickness with numbers not less than of 1 inch (25 mm) high. Each marker shall face the attic access opening. Spray polyurethane foam thickness and installed R-value shall be listed on the certificate provided by the insulation installer.

**N1101.10.2 Insulation mark installation - Amendatory.** Insulating materials shall be installed such that the manufacturer's R-value mark is readily observable upon inspection.

**N1101.10.3 Fenestration product rating - Amendatory.**

U-factors of fenestration products (windows, glazed doors, and skylights) shall be determined in accordance with NFRC 100 by an accredited, independent laboratory, and labeled and certified by the manufacturer.

Products lacking such a labeled U-factor shall be assigned a default U-factor from Table N1101.10.3(1) or N1101.10.3(2). The solar heat gain coefficient (SHGC) of glazed fenestration products (windows, glazed doors and skylights) shall be determined in accordance with NFRC 200 by an accredited, independent laboratory, and labeled and certified by the manufacturer. Products lacking such a labeled SHGC shall be assigned a default SHGC from Table 1103.10.3(3).

**Table N1101.10.3(1) Default glazed fenestration U-factors - Amendatory.**

**TABLE N1101.10.3(1)**
**DEFAULT GLAZED FENESTRATION U-FACTORS**

| *FRAME TYPE* | *SINGLE PANE* | *DOUBLE PANE* | *SKYLIGHT* | |
|---|---|---|---|---|
| | | | Single | Double |
| Metal | 1.20 | 0.80 | 2.00 | 1.30 |
| Metal with Thermal Break | 1.10 | 0.65 | 1.90 | 1.10 |
| Nonmetal or Metal Clad | 0.95 | 0.55 | 1.75 | 1.05 |
| Glazed Block | 0.60 | | | |

**Table N1101.10.3(2) Default door U-factors - Amendatory.**

**TABLE N1101.10.3(2)**
**DEFAULT DOOR U-FACTORS**

| *DOOR* | *U-FACTOR* |
|---|---|
| Uninsulated Metal | 1.20 |
| Insulated Metal | 0.60 |
| Wood | 0.50 |
| Insulated, nonmetal edge, max 45% glazing, any glazing double pane | 0.35 |

**Table N1101.10.3(3) Default glazed fenestration SHGC - Amendatory.**

**TABLE N1101.10.3(3)**
**DEFAULT GLAZED FENESTRATION SHGC**

| | *SINGLE GLAZED* | | *DOUBLE GLAZED* | | *GLAZED BLOCK* |
|---|---|---|---|---|---|
| | *Clear* | *Tinted* | *Clear* | *Tinted* | |
| SHGC | 0.8 | 0.7 | 0.7 | 0.6 | 0.6 |

**N1101.10.4 Insulation product rating - Amendatory.** The thermal resistance (R-value) of insulation shall be determined in accordance with the CFR Title 16, Part 460 in units of h x square foot x Fahrenheit/BTU at a mean temperature of 75 degrees Fahrenheit (24 degrees Celsius).

**N1101.10.4.1 (R303.1.4.1) Insulated siding - Deleted.**

**N1101.11 Installation - Amendatory.** All materials, systems and equipment shall be installed in accordance with the manufacturer's instructions and the provisions of this code.

**N1101.11.1 Protection of exposed foundation installation - Amendatory.** Insulation applied to the exterior basement walls, crawlspace walls, and the perimeter of slab-on-grade floors shall have a rigid, opaque and weather-resistance protective covering to prevent the degradation of the insulation's thermal performance. The protective covering shall cover the exposed exterior insulation and extend not less than 6 inches (153 mm) below grade.

**N1101.12 (R303.3) Maintenance information - Deleted.**

**N1101.13 Compliance - Amendatory.** Compliance shall be demonstrated by either meeting the requirements of the 2009 International Energy Conservation Code® or meeting the requirements of this chapter. Climate zones from figure N1101.7 or Table 1101.7 shall be used in determining the applicable requirements from this chapter.

**N1101.13.1 (R401.2.1). Tropical zone - Deleted.**

**N1101.14 (R401.3) Certificate - Deleted.** This section has been moved to the newly created Appendix W, entitled "Appendix W, Energy Efficiency" and is not adopted as a part of the statewide minimum code for residential construction within the State of Oklahoma. The section has been renumbered in Appendix W to become W101.1. The section number N1101.14 itself, will stay as part of the code for numbering alignment but will not have any requirements attached to it.

**N1102.1 (R402.1) General - Deleted.**

**N1102.1.1 (R402.1.1) Vapor retarder - Deleted.**

**N1102.1.2 Insulation and fenestration criteria - Amendatory.** The building thermal envelope shall meet the requirements of Table N1102.1.2 based on the climate zone specified in Section 1101.7.

**TABLE N1102.1.2 (R402.1.2) INSULATION AND FENESTRATION REQUIREMENTS BY COMPONENT**

| *CLIMATE ZONE* | *FENESTRATION U-FACTOR*[b] | *SKYLIGHT*[b] *U-FACTOR* | *GLAZED FENESTRATION SHGC*[b, e] | *CEILING R-VALUE* | *WOOD FRAME WALL R-VALUE* | *MASS WALL R-VALUE*[k] | *FLOOR R-VALUE* | *BASEMENT*[c] *WALL R-VALUE* | *SLAB*[d] *R-VALUE & DEPTH* | *CRAWL SPACE*[c] *WALL R-VALUE* |
|---|---|---|---|---|---|---|---|---|---|---|
| 3 | 0.38 | 0.55 | 0.3 | 30 | R13 | 8/13 | 19 | 5/13 | 0 | 5/13 |
| 4 except Marine | 0.32 | 0.55 | 0.4 | 49 | 20 or 13+5 | 8/13 | 19 | 10/13 | 10.2 ft | 10/13 |

**N1102.1.3 R-value computation - Amendatory.** Insulation material used in layers, such as framing cavity insulation, and insulation sheathing, shall be summed to compute the component R-value. The manufacturer's settled R-value shall be used for blown insulation. Computed R-values shall not include an R-value for other building materials or air films.

## TABLE N1102.1.4
## EQUIVALENT U-FACTORS[a]

| *CLIMATE ZONE* | *FENESTRATION U-FACTOR* | *SKYLIGHT U-FACTOR* | *CEILING U-FACTOR* | *FRAME WALL U-FACTOR* | *MASS WALL U-FACTOR[b]* | *FLOOR U-FACTOR* | *BASEMENT WALL U-FACTOR* | *CRAWL SPACE WALL U-FACTOR* |
|---|---|---|---|---|---|---|---|---|
| 3 | 0.36 | 0.55 | 0.035 | 0.082 | 0.098 | 0.047 | 0.091 | 0.136 |
| 4 except Marine | 0.32 | 0.55 | 0.026 | 0.06 | 0.098 | 0.047 | 0.059 | 0.065 |

**N1102.1.4 U-factor alternative - Amendatory.** An assembly with a U-factor equal to or less than that specified in Table N1102.1.4 shall be permitted as an alternative to the R-value in Table N1102.1.2.

**N1102.1.5 Total UA alternative - Amendatory.** If the total building thermal envelope UA (sum of U-factor times assembly area) is less than or equal to the total UA resulting from using the U-factors in Table 1102.1.4 (multiplied by the same assembly area as in the proposed building), the building shall be considered in compliance with Table N1102.1.2. The UA calculation shall be done using a method consistent with the ASHRAE Handbook of Fundamentals and shall include the thermal bridging effects of framing materials. The SHGC requirements shall be met in addition to UA compliance.

**N1102.2 Specific insulation requirements - Amendatory.**

**N1102.2.1. Ceilings with attic spaces - Amendatory.** Where Section R1102.1.2 requires R-38 insulation in the ceiling, installing R-30 insulation over 100 percent of the ceiling area requiring insulation shall satisfy the requirement for R-38 insulation wherever the full height of uncompressed R-30 insulation extends over the wall top plate at the eaves. Where Section N1102.1.2 requires R-49 insulation in the ceiling, installing R-38 insulation over 100 percent of the ceiling area requiring insulation shall satisfy the requirement for R-49 insulation wherever the full height of uncompressed R-38 insulation extends over the wall top plate at the eaves. This reduction shall not apply to the U-factor alternative approach in Section N1102.1.4 and the Total UA alternative in Section N1102.1.5.

**Exceptions:**

**(A)** Where Table 1102.2.1 Requires R-30 insulation in the ceiling and roof/ceiling assembly does not allow sufficient space for the required insulation, compressed batts shall be allowed at the perimeter of the building where insulation extends over top plates.

**(B)** Where the ceiling is formed by the rafter in a slope or vaulted ceiling from plate height to ceiling level of 2 feet, that slope shall be considered an extension of the wall up to 4 feet and be insulated with R-19.

**N1102.2.2 Ceilings without attic spaces - Amendatory.** Where Section N1102.1.2 would require insulation levels above R-30 and the design of the roof/ceiling assembly does not allow sufficient space for the required insulation, the minimum required insulation for such roof/ceiling assemblies shall be R-30. This reduction of insulation from the requirements of Section N1102.1.2 shall be limited to 500 square feet (46 square meters) or 20 percent of the total insulated ceiling area, whichever is less. Where Section N1102.1 would require insulation level R-30 and the design of the roof/ceiling assembly does not allow sufficient space for the required insulation, the

minimum required insulation for such roof/ceiling assemblies shall be R-19. This reduction of insulation from the requirements of Section N1102.1 shall be limited to 500 square feet (46 square meters) or 20 percent of the total insulated ceiling area, whichever is less.

**N1102.2.3 (R402.2.3) Eave baffle - Deleted.**

**N1102.2.4 Access hatches and doors - Amendatory.** Access doors from conditioned spaces to unconditioned spaces such as attics and crawl spaces shall be weatherstripped and insulated to a level equivalent to the insulation on the surrounding surfaces. Access shall be provided to all equipment that prevents damaging or compressing the insulation. A wood-framed or equivalent baffle or retainer is required to be provided when loose-fill insulation is installed, the purpose of which is to prevent the loose-fill insulation from spilling into the living space when the attic is opened, and to provide a permanent means of maintaining the installed R-value of the loose-fill insulation.

**N1102.2.5 Mass walls - Amendatory.** Mass walls for the purposes of this chapter shall be considered above-grade walls of concrete block, concrete, insulated concrete form (ICF), masonry cavity, brick (other than brick veneer), earth (adobe, compressed earth block, rammed earth) and solid timber/logs.

**N1102.2.6 Steel-frame ceilings, walls, and floors - Amendatory.** Steel-frame ceilings, walls, and floors shall meet the insulation requirements of Table N1102.2.6 or shall meet the U-factor requirements of Table N1102.1.4. The calculation of the U-factor for a steel-frame envelope assembly shall use a series-parallel path calculation method. Exception: In climate zones 1 and 2, the continuous insulation requirements in the Table N1102.2.6 shall be permitted to be reduced to R-3 for steel frame wall assemblies with studs spaced at 24 inches (610 mm) on center.

**Table N.1102.2.6**
**STEEL-FRAME CEILING, WALL AND FLOOR INSULATION (R-VALUE)**

| *WOOD FRAME R-VALUE REQUIREMENT* | *COLD-FORMED STEEL EQUIVALENT R-VALUE*[a] |
|---|---|
| **Steel Truss Ceiling**[b] | |
| R-30 | R-38 or R-30 + 3 or R-26 + 5 |
| R-38 | R-49 or R-038 + 3 |
| R-49 | R-38 + 5 |
| **Steel Joist Ceiling**[b] | |
| R-30 | R-38 in 2 × 4 or 2 × 6 or 2 × 8 R-49<br>In any framing |
| R-38 | R-49 in 2 × 4 or 2 × 6 or 2 × 8 or 2 × 10 |
| **Steel-Framed Wall** | |
| R-13 | R-13 + 5 or R-15 + 4 or R-21 + 3 or R-0 + 10 |
| R-19 | R-13 + 9 or R-19 + 8 or R-25 + 7 |
| R-21 | R-13 + 10 or R-19 + 9 or R-25 + 8 |
| **Steel Joist Floor** | |
| R-13 | R-19 in 2 × 6, R-19 + R-6 in 2 × 8 or 2 × 20 |

| *WOOD FRAME R-VALUE REQUIREMENT* | *COLD-FORMED STEEL EQUIVALENT R-VALUE[a]* |
|---|---|
| R-19 | R-19 + R-6 in 2 × 6, or R-19 + R-12 in 2 × 8 or 2 × 10 |
| a. Cavity insulation R-value is listed first, followed by continuous insulation R-value. | |
| b. Insulation exceeding the height of the framing shall cover the framing. | |

**N1102.2.7 (R402.2.7) Walls with partial structural sheathing - Deleted.**

**N1102.2.8 Floors - Amendatory.** Floor framing cavity insulation shall be installed to maintain permanent contact with the underside of the subfloor decking.

**N1102.2.9 Basement walls - Amendatory.** Exterior walls associated with conditioned basements shall be insulated from the top of the basement wall down to 10 feet (3048 mm) below grade or to the basement floor, whichever is less. Walls associated with unconditioned basements shall meet this requirement unless the floor overhead is insulated in accordance with Sections N1102.1.2 and N1102.2.8.

**N1102.2.10 Slab-on-grade floors - Amendatory.** Slab-on-grade floors with a floor surface less than 12 inches (305 mm) below grade shall be insulated in accordance with Table N1102.1.2. The insulation shall extend downward from the top of the slab on the outside or inside of the foundation wall. Insulation located below grade shall be extended the distance provided in Table N1102.1.2 by any combination of vertical insulation, insulation extending under the slab or insulation extending out from the building. Insulation extending away from the building shall be protected by pavement or by not less than 10 inches (254 mm) of soil. The top edge of the insulation installed between the exterior wall and the edge of the interior slab shall be permitted to be cut at a 45-degree (0.79 rad) angle away from the exterior wall. Slab-edge insulation is not required in jurisdictions designated by the building official as having a very heavy termite infestation.

**Exception - Added:** If foundation/slab insulation is used in vertical application on inside of stem wall and a slab ledge exists, ½-inch insulation in vertical position is allowed as a thermal break between slab edge and foundation wall so that slab can still bear on the horizontal ledge.

**N1102.2.11 Crawl space walls - Amendatory.** As an alternative to insulating floors over crawl spaces, crawl space walls shall be permitted to be insulated when the crawl space is not vented to the outside. Crawl space wall insulation shall be permanently fastened to the wall and extend downward from the floor to the finished grade level and then vertically and/or horizontally for at least an additional 24 inches (610 mm). Exposed earth in unvented crawl space foundations shall be covered with a continuous Class I vapor retarder in accordance with this code. All joints of the vapor retarder shall overlap by 6 inches (153 mm) and be sealed or taped. The edges of the vapor retarder shall extend not less than 6 inches (153 mm) up the stem wall and shall be attached to the stem wall.

**N1102.2.12 Masonry veneer - Amendatory.** Insulation shall not be required on the horizontal portion of the foundation that supports a masonry veneer.

**N1102.2.13 Thermally isolated sunroom insulation - Amendatory.** The minimum ceiling insulation R-values shall be R-19 in Zones 1 through 4 and R-24 in Zones 5

through 8. The minimum wall R-value shall be R-13 in all zones. New walls separating the sunroom from the conditioned space shall meet the building thermal envelope requirements.

**N1102.3 Fenestration - Amendatory.**

**N1102.3.1 U-factor - Amendatory.** An area-weighted average of fenestration products shall be permitted to satisfy the U-factor requirements.

**N1102.3.2 Glazed fenestration SHGC - Amendatory.** An area-weighted average of fenestration products more than 50-percent glazed shall be permitted to satisfy the solar heat gain coefficient (SHGC) requirements.

**N1102.3.3 Glazed fenestration exemption - Amendatory.** Up to 15 square feet (1.4 square meters) of glazed fenestration per dwelling unit shall be permitted to be exempt from U-factor and SHGC requirements in Section N1102.1.2. This exemption shall not apply to the U-factor alternative approach in N1102.1.4 and the total UA alternative approach in N1102.1.5.

**N1102.3.4 Opaque door exemption - Amendatory.** One side-hinged opaque door assembly up to 24 square feet (2.22 square meters) in area is exempted from the U-factor requirement in Section N1102.1.2. This exemption shall not apply to the U-factor alternative approach in Section N1102.1.4 and the total UA alternative in Section N1102.1.5.

**N1102.3.5 Thermally isolated sunroom U-factor - Amendatory.** For zones 4 through 8, the maximum fenestration U-factor shall be 0.50 and the maximum skylight U-factor shall be 0.75. New windows and doors separating the sunroom from conditioned space shall meet the building thermal envelope requirements.

**N1102.3.6 Replacement fenestration - Added.** Where some or all of an existing fenestration unit is replaced with a new fenestration product, including sash and glazing, the replacement fenestration unit shall meet the applicable requirements for U-factor and solar heat gain coefficient (SHGC) in Table N1102.1.2.

**N1102.4 Air leakage - Amendatory.**

**N1102.4.1 Building thermal envelope - Amendatory.** The building thermal envelope shall be durably sealed to limit infiltration. The sealing methods between dissimilar materials shall allow for differential expansion and contraction. The following shall be caulked, gasketed, weather-stripped or otherwise sealed with an air barrier material, suitable film or solid material.

**(A)** All joints seams and penetrations.

**(B)** Site-built windows, doors and skylights.

**(C)** Openings between window and door assemblies and their respective jambs and framing.

**(D)** Utility penetrations.

**(E)** Dropped ceilings or chases adjacent to the thermal envelope.

**(F)** Knee walls.

**(G)** Walls and ceilings separating the garage from conditioned spaces.

**(H)** Behind tubs and showers on exterior walls.

**(I)** Common walls between dwelling units.

**(J)** Attic access openings.

**(K)** Rim joists junction.

**(L)** Other sources of infiltration.

**N1102.4.1.1 Air sealing and insulation - Amendatory.** Building envelope air tightness and insulation installation shall be demonstrated to comply with one of the following options given by Section N1102.4.1.2 or N1102.4.1.3.

**Table N.1102.4.1.1 BUILDING THERMAL ENVELOPE CRITERIA - Amendatory**

| *COMPONENT* | *AIR BARRIER CRITERIA* | *INSULATION INSTALLATION CRITERIA* |
|---|---|---|
| Walls | The junction of the foundation and sill plate shall be sealed. The junction of the top plate and the top exterior walls shall be sealed. Knee walls shall be sealed. | Cavities within corners and headers (in a 2 × 6 wall system or greater) of frame walls shall be insulated by completely filling the cavity with a material having a thermal resistance of not less than R-3 per inch. If used on wall systems, exterior thermal envelope insulation for framed walls shall be installed in substantial contact and in continuous alignment with the air barrier. |
| Electrical/phone box on exterior walls | The air barrier extends behind the building thermal envelope. Boxes that penetrate the building thermal envelope shall be air sealed to the subfloor, wall covering, or ceiling penetrated by the box or air-sealed boxes shall be installed. | Spaces behind boxes penetrating the thermal envelope shall have insulation cut or blow to fit or that readily conforms to the space around the box. |

**N1102.4.1.2 Testing option - Amendatory.** The building or dwelling unit may be tested and verified as having an air leakage rate of not exceeding five air changes per hour in Climate Zones 1, 2, and 3, and three air changes per hour in Climate Zones 4 through 8. Testing, if preformed shall be in accordance with RESNET/ICC 380, ASTM E779 or ASTM E1827 and reported at a pressure of 0.2-inch w.g. (50 Pascals). Where required by the building official, testing shall be conducted by an approved third party. A written report of the test shall be signed by the party conducting the test and provided to the building official, if requested. Testing shall be performed at any time after creation of all penetrations of the building thermal envelope. During testing:

**(A)** Exterior windows and doors, fireplace, and stove doors shall be closed, but not sealed beyond the intended weatherstripping or other infiltration measures.

**(B)** Dampers including exhaust, intake, makeup air, backdraft and flue dampers shall be closed, but not sealed beyond intended infiltration control measures.

**(C)** Interior doors, where installed at the time of the test shall be open.

**(D)** Exterior or interior terminations for continuous ventilation systems shall be sealed.

**(E)** Heating and cooling systems, where installed at the time of the test, shall be turned off.

**(F)** Supply and return registers, where installed at the time of the test, shall be fully open.

**Exception:** Visual testing of air barrier shall be allowed to assure leakage rate above or the Air Barrier and Insulation Checklist Table N1102.4.1.1 (R402.4.1.1) by a local jurisdictional inspection services or by approved third party.

**N1102.4.1.3 Visual Inspection - Added.** The items listed in Table N1102.4.1.1 applicable to the method of construction, are field verified. Where required by the code official, an approved party independent from the installer of the insulation or contractor, shall inspect the air barrier and insulation. Where no approved party inspects these items the air barrier components shall be viewed as a part of the frame inspection or insulation inspection by the Authority Having Jurisdiction.

**N1102.4.2 Fireplaces - Amendatory. New wood-burning fireplaces shall have outdoor combustion air.**

**N1102.4.3 Fenestration air leakage - Amendatory.** Windows, skylights and sliding glass doors shall have an air infiltration rate of no more than 0.3 cfm per square foot (1.5 L divided by square meters), and swinging doors no more than 0.5 cfm per square foot (2.5 L divided by square meters), when tested according to NFRC 400 or AAMA/WDMA/CSA 101/I.S.2/A440 by an accredited, independent laboratory and listed and labeled by the manufacturer. Exception: Site-built windows, skylights, and doors.

**N1102.4.4 (R402.4.4) Rooms containing fuel burning appliances - Deleted.**

**N1102.4.5 Recessed lighting - Amendatory.** Recessed luminaries installed in the building thermal envelope shall be sealed to limit air leakage between conditioned and unconditioned space. All recessed luminaries shall be IC-rated and labeled as meeting ASTM E 283 when tested at 1.57 psi (75 Pa) pressure differential with no more than 2.0 cfm (0.944 L/s) of air movement from the conditioned space to the ceiling cavity. All recessed luminaries shall be sealed with a gasket or caulk between the housing and the interior wall or ceiling cover.

**N1102.4.6 (R406.2.4.6) Air-sealed electrical and communication outlet boxes - Added.** Where selected for installation as permitted by Table N1102.4.1.1, air-sealed electrical and communication outlet boxes that penetrate the building thermal envelope shall be sealed to limit air leakage between conditioned and unconditioned spaces. Air-sealed electrical and communication outlet boxes shall be tested in accordance with NEMA OS 4. Requirement for Air-sealed Boxes for Electrical and Communication Applications and shall have an air leakage rate of not greater than 2.0 cfm (0.944 L/s) at a pressure differential of 1.57 psf (75 Pa). Electrical and communication outlet boxes shall be installed per the manufacturer's instructions and with any supplied components required to achieve compliance with NEMA OS 4.

**N1102.5 (R402.5) Maximum fenestration U-factor and SHGC (Mandatory) - Deleted.**

**N1103.1 Controls - Amendatory.** At least one thermostat shall be installed for each separate heating and cooling system.

**N1103.1.1 Programmable thermostat - Amendatory.** Where the primary heating system is a forced air furnace, at least one thermostat per dwelling unit shall be capable of controlling the heating and cooling system on a daily schedule to maintain different temperature set points at different times of the day. This thermostat shall include the capability to set back or temporarily operate the system to maintain zone temperature down to 55 degrees Fahrenheit (13 degrees Celsius) or up to 85 degrees Fahrenheit (29 degrees Celsius). The thermostat shall initially be programmed with a heating temperature set point no higher than 70 degrees Fahrenheit (21 degrees Celsius) and a cooling temperature set point no lower than 78 degrees Fahrenheit (26 degrees Celsius).

**N1103.1.2 Heat pump supplementary heat - Amendatory.** Heat pumps having supplementary electric-resistance heat shall have controls that, except during defrost, prevent supplemental heat operation when the heat pump compressor can meet the heating load.

**N1103.2 (R403.2) Hot water boiler outdoor temperature setback - Deleted.**

**Section N1103.3 Ducts - Amendatory.**

**N1103.3.1 Insulation - Amendatory.** Supply ducts in attics shall be insulated to a minimum of R-8. All other ducts shall be insulated to a minimum of R-6.

**Exception:** The minimums do not apply to ducts or portions thereof located completely inside the building thermal envelope.

**N1103.3.2 (R403.3.2) Sealing - Amendatory.** Ducts, air handler, plenums, start collar connections to plenum and filter boxes shall be sealed. Joints and seams shall comply with Section M1601.4.1. For duct systems with sheet metal Plenums, Y's and supply boots, only liquid applied sealants complying with 181 BM (Mastic or similar) shall be used to seal inner liners and start collars to plenum and any other seams in system

**N1103.3.2.1 (R403.2.1) Sealed air handler - Deleted.**

**N1103.3.3 (R043.3.3) Duct testing.** Ducts shall be pressure tested to determine air leakage by one of the following methods:

1. Item 1: Rough-in-test: Total leakage shall be measured with a pressure differential of 0.1-inch w.g. (25 Pa) across the system, including the manufacturer's air handler enclosure if installed at the time of the test. Registers shall be taped or otherwise sealed during the test.
2. Item 2: Post construction test: Total leakage shall be measured with a pressure differential of 0.1-inch w.g. (25 Pa) across the entire system, including manufacturer's air handler enclosure. Registers shall be taped or otherwise sealed during the test.

**Exceptions:**

1. Exception 1: A duct air-leakage test shall not be required where the ducts and air handlers are located entirely within the building thermal envelope.
2. Exception 2: A duct air-leakage test shall not be required for ducts serving heat or energy recovery ventilators that are not integrated with ducts serving heating or cooling systems.

**3.** Exception 3: Visual verification by Authority having Jurisdiction, approved agency or licensed inspector.

A written report of the results of the test shall be signed by the party conducting the test and provided to the building official.

**N1103.3.4 (R403.3.4) Duct leakage (Mandatory) - Deleted.**

**N1103.3.5 Building cavities - Amendatory.** Building framing cavities shall not be used as supply ducts.

**N1103.4 Mechanical system piping insulation - Amendatory.** Mechanical system piping capable of carrying fluids greater than 120 degrees Fahrenheit (49 degrees Celsius) or less than 55 degrees Fahrenheit (13 degrees Celsius) shall be insulated to an R-value of not less than R-3 or to the manufacturer's installation instructions, whichever is more stringent.

**N1103.4.1 (R403.4.1) Protection of piping insulation - Deleted.**

**N1103.5 Circulation service hot water systems - Amendatory.** Energy conservation measures for circulation service potable hot water systems shall be in accordance with Sections N1103.5.1 and N1103.5.2.

**N1103.5.1 Heated water circulation and temperature systems (Mandatory) - Amendatory.** Heated water circulation systems shall be in accordance with Section R1103.5.1.1. Heat trace temperature maintenance systems shall be in accordance with Section R1103.5.1.2. Automatic controls, temperature sensors and pumps shall be accessible. Manual controls shall be readily accessible.

**N1103.5.1.1 Circulation systems - Amendatory.** Heated water circulation systems shall be provided with a circulation pump. The system return pipe shall be a dedicated return pipe or a cold water supply pipe. Gravity and thermo-syphon circulation systems shall be prohibited. Controls for circulating hot water system pumps shall start the pump based on the identification of a demand for hot water within the occupancy. The controls shall automatically turn off the pump when the water in the circulation loop is at the desired temperature and when there is no demand for hot water.

**N1103.5.1.2 Heat trace systems - Amendatory.** Electric heat trace systems shall comply with IEEE 515.1 or UL 515. Controls for such systems shall automatically adjust the energy input to the heat tracing to maintain the desired water temperature in the piping in accordance with the times when heated water is used in the occupancy.

**N1103.5.2 Demand recirculation systems - Amendatory.** A water distribution system having one or more recirculation pumps that pump water from a heated water supply pipe back to the heated water source through a cold water supply pipe shall be a demand recirculation water system. Pumps shall have controls that comply with both of the following:

**(A)** The control shall start the pump upon receiving a signal from the action of a user of a fixture or appliance, sensing the presence of a user of a fixture or sensing the flow of hot or tempered water to a fixture, fitting or appliance.

**(B)** The control shall limit the temperature of the water entering the cold water piping to 104 degrees Fahrenheit (40 degrees Celsius).

**N1103.5.3 (R403.5.3) Hot water pipe insulation - Amendatory.** Insulation for hot water piping with a thermal resistance R-value of not less than R-3 shall be applied to the following:

**(A)** Item 1. Piping 1 inch (25 mm) and larger in nominal diameter.

**(B)** Item 2. Piping serving more than one dwelling unit.

**(C)** Item 3. Piping located outside the conditioned space.

**(D)** Item 4. This item has been stricken from the code.

**(E)** Item 5. This item has been stricken from the code.

**(F)** Item 6. Buried piping

**(G)** Item 7. Supply and return piping in recirculation systems other than demand recirculation systems.

**N1103.5.4 (R403.5.4) Drain water heat recovery units - Deleted.**

**N1103.6 Mechanical ventilation - Amendatory.** Outdoor air intakes shall have automatic or gravity dampers that close when the ventilation system is not operating.

**N1103.6.1 (R403.6.1) Whole-house mechanical ventilation system fan efficacy - Deleted.**

**Table N1103.6.1 (R403.6.1) Mechanical ventilation system fan efficacy - Deleted.**

**N1103.7 (R403.7) Equipment sizing and efficiency rating - Amendatory.** Heating and cooling equipment shall be sized in accordance with ACCA Manual S based on building loads calculated in accordance with ACCA Manual J or other approved heating and cooling calculation methodologies. New or replacement heating and cooling equipment shall have an efficiency rating equal to or greater than the minimum required by federal law for geographic location where the equipment is installed. Documentation demonstrating compliance with this section is to be provided to the authority having jurisdiction at the time a Mechanical Permit is requested on new one- and two-family dwellings and townhouses.

**N1103.8 (R403.8) Systems serving multiple dwelling units (Mandatory) - Deleted.**

**N1103.9 Snow melt system controls - Amendatory.** Snow- and ice-melting systems, supplied through energy service to the building shall include automatic controls capable of shutting off the system when the pavement temperature is above 50 degrees Fahrenheit (10 degrees Celsius), and no precipitation is falling and an automatic or manual control that will allow the shutoff when the outdoor temperature is above 40 degrees Fahrenheit (5 degrees Celsius).

**N1103.10 Pools - Amendatory.** Pools shall be provided with energy conservation measures in accordance with Sections N1103.10.2 through N1103.10.4.

**N1103.10.1 (R403.10.1) Residential pools and permanent residential spas - Deleted; Section number retained but unused.**

**N1103.10.2 Pool heaters - Amendatory.** All pool heaters shall be equipped with a readily accessible on-off switch to allow shutting off the heater without adjusting the thermostat setting. Pool heaters fired by natural gas or LPG shall not have continuously burning pilot lights.

**N1103.10.3 Time switches - Amendatory.** Time switches that can automatically turn off and on heaters and pumps according to a preset schedule shall be installed on swimming pool heaters and pumps.

**Exceptions:** Time switches shall not be installed where:

**(A)** Public health standards require 24-hour pump operation.

**(B)** Pumps are required to operate solar- and waste-heat-recovery pool heating systems.

**N1103.10.4 Pool covers - Amendatory.** Pools heated to more than 90 degrees Fahrenheit (32 degrees Celsius) shall have a pool cover with a minimum insulation value of R-12.

**N1103.11 (R403.11) Portable spas (Mandatory) - Deleted.**

**N1103.12 (R403.12) Residential pools and permanent residential spas - Deleted.**

**N1104 Lighting Systems - Amendatory.**

**N1104.1 Lighting equipment - Amendatory.** Not less than 75 percent of the lamps in permanently installed luminaries shall be high-efficacy lamps or not less than 75 percent of the permanently installed luminaries shall contain only high-efficacy lamps.

**Exception:** Low-voltage lighting is not subject to this requirement.

**N1104.1.1 (R401.1) Lighting equipment (Mandatory) - Deleted.**

**N1105 (R405) Simulated performance alternative (Performance) - Deleted.**

**Section N1105.4.2 (R405.4.2) Compliance report - Added.**

**(A)** Compliance software tools shall generate a report that documents that the proposed design complies with Section N1105.3. A compliance report on the proposed design shall be submitted with the application for the building permit. Upon completion of the building, a compliance report based on the as-built condition of the building shall be submitted to the building official before a certificate of occupancy is issued. Batch sampling of buildings to determine energy code compliance shall only be allowed for stacked multiple-family units.

**(B)** Compliance shall include information in accordance with Sections N1105.4.2.1 and N1105.4.2.2 When the proposed design of a building will be built on different sites where the cardinal orientation of the building on each site is different, compliance of the proposed design for the purposes of the application for the building permit shall be based on the worst-case orientation, worst-case configuration, worst-case building air leakage and worst-case duct leakage. Such worst-case parameters shall be used as inputs to the compliance software energy analysis.

**N1106 (R406) Energy rating index compliance alternative - Deleted.**

**Table N1106.4 (R406.4) Maximum Energy Rating Index - Added.**

| CLIMATE ZONE | ENERGY RATING INDEX |
|---|---|
| 3 | 64 |

**N1107 (R501) Existing Buildings - General - Deleted.**

**N1108 (R502) Additions - Deleted.**

**N1109 (R503) Alterations - Deleted.**

**N1110 (R504) Repairs - Deleted.**

**N1111 (R505) Change of occupancy or use - Deleted.**

**Part V Mechanical**

**M1308.2.4. Protection of refrigerant lines - Added.** Refrigerant lines shall not be installed less than one and one-half (1½) inches from the bottom side of roof decking unless protected from damage by an approved method.

**M1401.3 Equipment and appliance sizing - Amendatory.** Heating and cooling equipment and appliances shall be sized in accordance with ACCA Manual S or other approved sizing methodologies based on building loads calculated in accordance with ACCA Manual J or other approved heating and cooling calculation methodologies. Documentation demonstrating compliance with this section is to be provided to the authority having jurisdiction at the time a mechanical permit is required on new one- and two-family dwellings and townhouses.

**M1402.1 General - Amendatory.** Oil-fired central furnaces shall conform to ANSI/UL 727. Electric furnaces shall conform to UL 1995 or UL/CSA 60335-2-40.

**M1403.1 Heat pumps - Amendatory.** Electric heat pumps shall be listed and labeled in accordance with UL 1995 or UL/CSA 60335-2-40.

**M1411.8 Locking access port caps - Amendatory.** Refrigerant circuit access ports located outdoors shall be fitted with locking-type tamper-resistant caps or shall be otherwise secured to prevent unauthorized access. Shall apply to new and retrofit outdoor condensers only.

**M1412.1 Approval of equipment - Amendatory.** Absorption systems shall be installed in accordance with the manufacturer's instructions. Absorption equipment shall comply with UL 1995 or UL/CSA 60335-2-40.

**M14013.1 General - Amendatory.** Evaporative cooling equipment and appliances shall comply with UL 1995 or UL/CSA 60335-2-40 and shall be installed:

**M1502.3 Duct termination - Amendatory.** Exhaust ducts shall terminate on the outside of the building. Exhaust duct terminations shall be in accordance with the dryer manufacturer's installation instructions. If the manufacturer's instructions do not specify a termination location, the exhaust duct shall terminate not less than 3 feet (914 mm) in any direction from the openings into buildings nor less than 12 inches from finished ground level or other obstacles. Exhaust duct terminations shall be equipped with a backdraft damper. Additionally, exhaust shall not terminate within 3 feet (914 mm) of condensing units and a minimum 12 inches (305 mm) from the ground or any obstruction. Screens shall not be installed at the duct termination. Existing dryer terminations shall be exempt.

**M1502.4.2 Duct installation - Amendatory.** Exhaust ducts shall be supported at 4 feet (1219 mm) intervals and secured in place. The insert end of the duct shall extend into the adjoining duct or fitting in the direction of airflow. Ducts shall not be joined with screws or similar fasteners that protruded into the inside of the duct. Where dryer exhaust ducts are enclosed in wall or ceiling cavities, such cavities shall allow the installation of the duct without deformation.

## TABLE N1601.1.1

| DUCT SIZE | GALVANIZED | | APPROXIMATE ALUMINUM B & S GAGE |
|---|---|---|---|
| | Minimum thickness (inches) | Equivalent Galvanized Gage No. | |
| Round ducts and enclosed rectangular ducts | | | |
| 14" or less | 0.013 | 30 | 26 |
| Over 14" | 0.016 | 28 | 24 |
| Exposed rectangular ducts | | | |
| 14" or less | 0.016 | 28 | 24 |
| Over 14" | 0.019 | 26 | 22 |
| For SI: 1 inch = 25.4 mm. | | | |
| a. Ductwork that exceeds 20 inches by dimension or exceeds a pressure of 1 inch water gage (250Pa) shall be constructed in accordance with *SMACNA HVAC Duct Construction Standards Metal and Flexible*. | | | |

**Section M1601.4.1 Joints, seams, and connections - Amendatory.**

Longitudinal and transverse joints, seams and connections in metallic and nonmetallic ducts shall be constructed as specified in SMACNA HVAC Duct Construction Standards-Metal and Flexible and NAIMA Fibrous Glass Duct Construction Standards. Joints, longitudinal and transverse seams and connections in ductwork shall be securely fastened and sealed with welds, gaskets, mastics (adhesive), mastic-plus-embedded-fabric systems, liquid sealants or tapes. Tapes and mastics used to seal fibrous glass ductwork shall be listed and labeled in accordance with UL 181A and shall be marked "181A-P" for pressure-sensitive tape, "181 A-M" for mastic or "181 A-H" for heat sensitive tape.

Tapes and mastics used to seal metallic and flexible air ducts and flexible air connectors shall comply with UL 181B and shall be marked "181 B-FX" for pressure-sensitive tape or "181 BM" for mastic. Duct connections to flanges of air distribution system equipment shall be sealed and mechanically fastened. Mechanical fasteners for use with flexible nonmetallic air ducts shall comply with UL 181B and shall be marked 181B-C. Crimps joints for round metallic ducts shall have a contact lap of not less than 1 inch (25 mm) and shall be mechanically fastened by means of not less than three sheet-metal screws or rivets equally spaced around the joint.

Closure systems used to seal all ductwork shall be installed in accordance with the manufacturers' instructions.

**Exceptions:**

**(i)** Spray polyurethane foam shall be permitted to be applied without additional joint seals.

**(ii)** Where a duct connection is made that is partially inaccessible, three screws or rivets shall be equally spaced on the exposed portion of the joint so as to prevent a hinge effect.

**(iii)** For ducts having a static pressure classification of less than 2 inches of water column (500 Pa), additional closure systems shall not be required for continuously welded joints and seams and locking-type joints and seams of other than the snap-lock and button-lock types.

**(iv)** For duct systems with sheet metal plenums, Y's and supply boots, only liquid applied sealants complying with UL 181 BM (Mastic or similar) or equivalent method, shall be used to seal inner liners and start collars to plenum and any other seams in system.

**M1903.1.1 Electrical requirements - Amendatory.** In addition to the requirements of M1903.1, interconnection and all associated wiring shall be installed in accordance with NFPA 70, NEC®, 2017, Article 692 Fuel Cell Systems.

**PART VI - SOLAR THERMAL ENERGY SYSTEMS**

**M2301.2.21 Roof-mounted collectors - Amendatory.** The roof shall be constructed to support the loads imposed by roof-mounted solar collectors. Roof-mounted solar collectors that serve as a roof covering shall conform to the requirements for roof coverings in Chapter 9 of this code. Where mounted on or above the roof coverings, the collectors and supporting structure shall be constructed on noncombustible materials or fire-retardant-treated wood equivalent to that required for roof construction. A mechanical means of disconnect shall be installed on piping to allow the disconnecting and removal of collectors for service or replacement of the roof.

**PART VII - FUEL GAS.**

**G2413.1 General Considerations - Amendatory.** Piping systems shall be of such size and so installed as to provide a supply of gas sufficient to meet the maximum demand and supply gas to each appliance inlet at not less than the minimum supply pressure required by the appliance, but not less than one (1) inch to the first connected appliance.

**G2415.7.4 Protection of gas piping other than steel - Added.** Gas piping other than steel shall not be installed less than one and one-half (1½) inches from the bottom side of roof decking unless protected from damage by an approved method.

**G2415.12 Minimum burial depth - Amendatory.** Underground piping systems shall be installed a minimum depth of 18 inches (457.5 mm) below grade, except as provided for in Section G2415.12.1.

**G2415.13.1 Separation of gas piping from other piping systems - Added.** There shall be a minimum 12 inches of undisturbed or compacted earth separation between buried gas piping and any other electrical service lines, water piping or sewer piping systems.

**G2417.4.1 Test pressure - Amendatory.** The test pressure to be used shall be no less than 1½ times the proposed maximum working pressure, but not less than three (3) psi on a five (5) psi gauge registered in one-tenth pound increments or ten (10) psi on a thirty (30) psi gauge registered in one (1) pound increments. Where the test pressure exceeds 125 psig (862 kpa gauge), the test pressure shall not exceed a value that produces a hoop stress in the piping greater than 50 percent of the specified minimum yield strength of the pipe.

**G2417.6.2.1 General - Added.** At least one appliance shall be connected prior to final release of the gas meter.

**G2420.3.1 Location of Shut-off Valves - Added.**

**A.** Outlets for the individual manufactured homes and gas piping to any building supplied by the system shall be provided with a readily accessible, approved valve which cannot be locked in the open position.

**B.** A readily accessible valve shall be provided near the point of gas delivery for shutting off the entire manufactured home park system. The valve provided by the serving gas supplier may be considered acceptable for this purpose, provided it is readily accessible.

**G2420.5.4 Location, Protection and Sizing - Added.** The gas riser and shut-off valve to each manufactured home site shall be placed in the rear one-third section of the site, within eighteen (18) inches of the roadside wall of the manufactured home (ie., the right side of the manufactured home when viewing the tongue of the manufactured home). It shall be located and protected or supported so as to minimize the likelihood of damage by moving vehicles. The minimum size of the gas piping outlet at such site shall be three-fourths (¾) inch for other than undiluted liquefied petroleum gases.

**PART VIII - PLUMBING**

**P2503.4 Building sewer testing - Amendatory.**

**A.** Where required by local authority having jurisdiction, the building sewer shall be tested by insertion of a test plug at the point of connection with the public sewer, filling the building sewer with water and pressurizing the sewer to not less than 5-foot (1524 mm) head of water. The test pressure shall not decrease during a period of not less than 15 minutes. The building sewer shall be watertight at all points.

**B.** A forced sewer test shall consist of pressuring the piping to a pressure of not less than 5 psi (34.5 kPa) greater than the pump rating and maintaining such pressure for not less than 15 minutes. The forced sewer shall be watertight at all points.

**P2503.7 Water-supply system testing - Amendatory.** Upon completion of the water-supply system or a section of it, the system or portion completed shall be tested and proved tight under a water pressure of not less than the working pressure of the system or, for piping systems other than PVC or CPVC, by an air test of not less than fifty (50) psi (345 kPa). This pressure shall be held for not less than fifteen (15) minutes. The water used for tests shall be obtained from a potable water source.

**P2603.2.1 Protection against physical damage - Amendatory.** In concealed locations, where piping, other than cast-iron or galvanized steel, is installed through holes or notches in studs, joists, rafters or similar members less than 1½ inches (38 mm) from the nearest edge of the member, the pipe shall be protected by steel shield plates. Such shield plates shall have a thickness of not less than 0.0575 inch (1.463mm) (No. 16 Gage). Such plates shall cover the area of the pipe where the member is notched or bored and shall extend not less than 2 inches (51 mm) above sole plates and below top plates.

**P2603.4 Pipes through foundation walls - Amendatory.** A pipe that passes through a foundation wall shall be provided with a relieving arch, or a pipe sleeve shall be built into the foundation wall. The relieving arch or pipe sleeve shall conform to one of the materials listed in Table P3002.1(2). The sleeve shall be two pipe sizes greater than the pipe passing through the wall.

**P2603.5.1 Sewer depth - Amendatory.** Building sewers that connect to private sewage disposal systems shall be not less than 12 inches (305 mm) or as approved by the authority having jurisdiction below finished grade at the point of septic tank connection. Building sewers shall be not less than 12 inches (305 mm) below grade.

**P2704.1 General - Amendatory.** Slip joints shall be made with an approved elastomeric gasket and shall be installed from the fixture to within eighteen (18) inches downstream of the trap outlet seal. Fixtures with concealed slip-joint connections shall

be provided with an access panel or utility space at least twelve (12) inches (305 mm) in its smallest dimension or other approved arrangement so as to provide access to the slip-joint connections for inspection and repair.

**P2705.1 General - Added.** The installation of fixtures shall conform to the following: 9: Vanity countertops shall be permitted to extend a maximum of 1.5 inches (38.1 mm) into the water closet floor space.

**P2709.2 Lining required - Amendatory.**

Where required, the adjoining walls and floor framing which enclose on-site built-up shower receptors shall be lined with one (1) of the following materials:

**1.** Sheet lead,

**2.** Sheet copper,

**3.** Plastic liner material that complies with ASTM D 4068 or ASTM D 4551,

**4.** Hot mopping in accordance with Section P2709.2.3, or

**5.** Sheet-applied load bearing, bonded waterproof membranes that comply with ANSI A118.10.

The lining material shall extend not less than three (3) inches (76 mm) beyond or around the rough jambs and not less than three (3) inches (76 mm) above finished thresholds. Sheet-applied load bearing, bonded waterproof membranes shall be applied in accordance with the manufacturer's installation instructions.

**P2715.1 Laundry tray waste outlet - Amendatory.** Each compartment of a laundry tray shall be provided with a waste outlet not less than one and one-half (1½) inches (38 mm) in diameter and a strainer or crossbar to restrict the clear opening of the waste outlet.

**P2802.3 Solar Water heater panels means of disconnect - Amendatory.** When solar water heater panels are installed on the roof, a union shall be installed on all piping entering and exiting the solar panel to allow a mechanical means of disconnect for service or replacement of the roof.

**P2902.5.3 Lawn irrigation systems - Amendatory.** The potable water supply to lawn irrigation systems shall be protected against backflow by an atmospheric vacuum breaker, a pressure vacuum breaker assembly, a spill-resistant vacuum breaker, or a reduced pressure principle backflow prevention assembly. Valves shall not be installed downstream from an atmospheric vacuum breaker. Where chemicals are introduced into the system, the potable water supply shall be protected against backflow by a reduced pressure principle backflow prevention assembly.

**P2903.9.1 Service valve - Amendatory.** Each dwelling unit shall be provided with an accessible main shutoff valve near the entrance of the water service. The valve shall be of a full-open type having nominal restriction to flow. Additionally, the water service shall be valved at the curb or property line in accordance with local requirements.

**P2903.10 Hose bibb - Amendatory.** Hose bibbs subject to freezing, including the "frost-proof" type, shall be equipped with an accessible valve inside the building so that they can be controlled and/or drained during cold periods.

**Section P2904.1.1 Required sprinkler locations - Amendatory.** Sprinklers shall be installed to protect all areas of a townhouse dwelling unit.

**P2906.4 Water service pipe - Amendatory.** Water service pipe shall conform to NSF 61 and shall conform to one (1) of the standards listed in Table P2906.4. Water service pipe or tubing, installed underground and outside of the structure, shall have a minimum working pressure rating of not less than one hundred sixty (160) pounds per square inch at 73°F (1103 kPa at 23°C). Where the water pressure exceeds one hundred sixty (160) pounds per square inch (1103 kPa), piping material shall have a rated working pressure equal to or greater than the highest available pressure. Water service piping materials not third-party certified for water distribution shall terminate at least thirty (30) inches outside the exterior wall. Ductile iron water service piping shall be cement mortar lined in accordance with AWWA C104/A21.4.

**Table P2906.4 Water Service Pipe — Amendatory.**

| MATERIAL | STANDARD |
|---|---|
| Acrylonitrile butadiene styrene (ABS) plastic pipe | ASTM D 1527; ASTM D 2282 |
| Brass pipe | ASTM B 43 |
| Chlorinated polyvinyl chloride (CPVC) plastic pipe | ASTM D 2846; ASTM F 441; ASTM F 442; CSA B 137.6 |
| Copper or copper-alloy pipe | ASTM B 42; ASTM B 302 |
| Copper or copper-alloy tubing (Type K, WK, L, WL, M or WM) | ASTM B 75; ASTM B 88; ASTM B 251; ASTM B 447 |
| Cross-linked polyethylene/aluminum/cross-linked polyethylene (PEX-AL-PEX) pipe | ASTM F 1281; ASTM F 2262; CSA B 137.10M |
| Cross-linked polyethylene/aluminum/high-density polyethylene (PEX-AL-HDPE) | ASTM F 1986 |
| Cross-linked polyethylene (PEX) plastic tubing | ASTM F 876; ASTM F 877; CSA B 137.5 |
| Ductile iron water pipe | AWWA C151; AWWA C115 |
| Galvanized steel pipe | ASTM A 53 |
| Polyethylene/aluminum/polyethylene (PE-AL-PE) pipe | ASTM F 1282; CSA CAN/CSA-B137.9M |
| Polyethylene (PE) plastic pipe | ASTM D 2104; ASTM D 2239; CSA-B137.1 |
| Polyethylene (PE) plastic tubing | ASTM D 2737; CSA B137.1 |
| Polypropylene (PP) plastic pipe or tubing | ASTM F 2389; CSA B137.11 |
| Polyvinyl chloride (PVC) plastic pipe | ASTM D 1785; ASTM D 2241; ASTM D 2672; CSA B137.3 |
| Stainless steel (Type 304/304L) pipe | ASTM A 312; ASTM A 778 |
| Stainless steel (Type 316/316L) pipe | ASTM A 312; ASTM A 778 |

**P2906.9.1.4 PVC plastic pipe - Amendatory.** A clear or purple primer, or other approved primer that conforms to ASTM F 656 shall be applied to PVC solvent-cemented joints. Solvent cement for PVC plastic pipe conforming to ASTM D 2564 shall be applied to all joint surfaces.

**P3003.2 Prohibited joints - Amendatory.** Running threads and bands shall not be used in the drainage system. Drainage and vent piping shall not be drilled, tapped, burned or welded. The following types of joints and connections shall be prohibited:

**1.** Cement or concrete.

**2.** Mastic or hot-pour bituminous joints.

**3.** Joints made with fittings not approved for the specific installation.

**4.** Joints between different diameter pipes made with elastomeric rolling O-rings.

**5.** Solvent-cement joints between different types of plastic pipe.

**6.** Saddle-type fittings.

**Exception:** Saddle-type fittings may be used to connect the building sewer to a public sewer.

**P3003.9.2 Solvent cementing - Amendatory.** Joint surfaces shall be clean and free from moisture. A purple primer that conforms to ASTM F656 shall be applied. Solvent cement not purple in color and conforming to ASTM D2564, CSA B137.3 or CSA B181.2 shall be applied to all joint surfaces. The joint shall be made while the cement is wet and shall be in accordance with ASTM D2855. Solvent-cement joints shall be installed above or below ground.

**P3005.2.12 Cleanout Requirements for Residential Construction - Added.** All bathtub, lavatory, kitchen sink, mop or utility sink, and washing machine drains shall have an accessible cleanout which will allow for the cleaning or rodding of the drain line.

**A.** Cleanouts shall be the removable trap or threaded plug type and shall be the same diameter or greater than the pipe served.

**B.** When two (2) drains are combined with a sanitary cross fitting, a threaded plug-type cleanout shall be installed immediately upstream of the sanitary cross fitting.

**C.** Shower drains with two (2) inch traps are not required to have a cleanout if the developed length of the shower drain is no more than ten (10) feet in length.

**D.** Besides the main cleanout for the building sewer located just outside and downstream of the residence, a second cleanout shall be located upstream of the first floor water closet plumbed the greatest distance from the point the building sewer leaves the residence. This cleanout shall be the same diameter as the pipe it serves and be located at ground level and within five (5) feet of the building, or in the outside wall no higher than two (2) feet above ground level.

**P3008.1 Sewage backflow - Amendatory.** Where the flood level rims of plumbing fixtures are below the elevation of the manhole cover of the next upstream manhole in the public sewer, the fixtures shall be protected by a backwater valve installed in the building drain, branch of the building drain or horizontal branch serving such fixtures.

**PART VIII—ELECTRICAL**

**E3402.2 Penetrations of fire-resistance-rated assemblies - Amendatory.** Electrical installations in hollow spaces, vertical shafts and ventilation or air-handling ducts shall be made so that the possible spread of fire or products of combustion will not be substantially increased. Electrical penetrations through fire-resistance-rated walls, partitions, floors or ceilings shall be protected by approved methods to maintain the fire-resistance rating of the element penetrated. Penetrations of fire-resistance-rated walls shall be limited as specified in Section R302.4 (300.21).

**E3403.3 Listing and labeling - Amendatory.** Electrical materials, components, devices, fixtures and equipment shall be listed for the application, in accordance with NFPA 70, shall bear the label of an approved agency and shall be installed, and used, or both, in accordance with the manufacturer's installation instructions. [110.3(B)]

**E3404.7 Integrity of electrical equipment - Amendatory.** Internal parts of electrical equipment, including busbars, wiring terminals, insulators and other surfaces, shall not be damaged or contaminated by foreign materials such as paint, plaster, cleaners or abrasives, and corrosive residues. There shall not be any damaged parts that might adversely affect safe operation or mechanical strength of the equipment such as parts that are broken; bent; cut; deteriorated by corrosion, chemical action, or overheating. Foreign debris shall be removed from equipment. Damaged materials, equipment, appliances, and devices shall not be reused unless such elements have been reconditioned, tested, and placed in good and proper working condition and approved by a Nationally Recognized Testing Laboratory (NRTL), or by the manufacturer of the equipment. Electrical equipment damaged by natural or manmade events shall be reused only as recommended by the manufacturer of such equipment. [110.12(B)]

**E3501.1 Scope - Amendatory. Definition added.**

**UNFINISHED ROOM.** A room with either the floor decking and/or heating/air conditioning not installed.

**E3604.3 Point of Attachment - Amendatory.** The point of the overhead service entrance and attachment to the electric utility company's service wires on a building shall be a minimum of ten (10) feet above finished grade.

**Exception:** For existing structures with new overhead services, the point of attachment shall be nine (9) feet above the ground; and clearances shall be provided as required by the National Electrical Code.

**E3604.5 Service masts as supports - Amendatory.** Where a service mast is used for the support of service-drop conductors, it shall be of adequate strength or be supported by braces or guys to withstand the strain imposed by the service drop. Where raceway-type service masts are used, all equipment shall be approved. Only power service drop conductors shall be permitted to be attached to a service mast. The minimum size of rigid metal conduit (RMC) shall be two (2) inches for services up to and including two hundred (200) amperes, and two and one-half (2½) inches for services over two hundred (200) amperes.

**E3604.7 Compliance with Utility Company Regulations - Added.** All electric metering equipment, the ownership and responsibility for which rests with the electric utility company furnishing electricity to such meter, shall be placed, wired, installed and equipped in accordance with the rules and regulations of such electric utility company.

**E3702.3 Fifteen- and 20-ampere branch circuits - Amendatory.** A 15- or 20-ampere branch circuit shall be permitted to supply lighting units, or other utilization equipment, or a combination of both. The rating of any one cord-and-plug connected utilization equipment not fastened in place shall not exceed 80 percent of the branch-circuit ampere rating. The total rating of utilization equipment fastened in place, other than luminaries, shall not exceed 50 percent of the branch-circuit ampere rating where lighting units, cord-and-plug connected utilization equipment is not

fastened in place, or both, are also supplied. 20-Ampere general-purpose branch circuits shall supply a maximum of 10 outlets. 15-Ampere general-purpose branch circuits shall supply a maximum of 8 outlets. [210.23(A)(1) and (2)]

**E3901.1.1 Unfinished Rooms - Added.** Unfinished rooms located within new dwellings are not required to comply with this code as to the number and placement of receptacles and luminaries.

**E4003.12.1 Luminaires in Dwelling Unit Dressing Rooms - Added.** The dressing room is a room designed for the purpose of storage of clothing, which permits incandescent luminaires with open or partially enclosed lamps and pendant luminaires or lampholders when the dressing room shall have a distance of fifty-four (54) inches or greater from the sides and back of the closet walls, respectively, and continuing vertically to the closet ceiling parallel to the walls at a horizontal distance of the same. The dressing room may have incandescent luminaires with open or partially enclosed lamps and pendant light fixtures where the distance to the combustibles in any configuration is thirty (30) inches or greater to the nearest edge of the luminaire.

**E4206.4.1 Luminaires - Amendatory.** Luminaires shall not operate above the low-voltage contact limit as defined in E4202.1. [680.23(A)(4)].

**APPENDIX Q TINY HOUSES**

Appendix Q relaxes various requirements in the body of the code as they apply to houses that are 400 square feet in area or less. Attention is specifically paid to features such as compact stairs, including stair handrails and headroom, ladders, reduced ceiling heights in lofts and guard and emergency escape and rescue opening requirements at lofts.

**SECTION AQ101. - GENERAL.**

**AQ101.1 Scope.** This appendix shall be applicable to tiny houses used as single dwelling units. Tiny houses shall comply with this code except as otherwise stated in this appendix.

**SECTION AQ102. - DEFINITIONS.**

**AQ102.1 General.** The following words and terms shall, for the purposes of this appendix, have the meanings shown herein. Refer to Chapter 2 of this code for general definitions.

**EGRESS ROOF ACCESS WINDOW.** A skylight or roof window designed and installed to satisfy the emergency escape and rescue opening requirements of Section R310.2.

**LANDING PLATFORM.** A landing provided as the top step of a stairway accessing a loft.

**LOFT.** A floor level located more than 30 inches (762 mm) above the main floor, open to the main floor on one or more sides with a ceiling height of less than 6 feet 8 inches (2032 mm) and used as a living or sleeping space.

**TINY HOUSE.** A dwelling that is 400 square feet (37 m2) or less in floor area excluding lofts. Also called "Tiny Home", "Micro-Unit", "Micro House" or similar name.

**SECTION AQ103. - CEILING HEIGHT.**

**AQ103.1 Minimum ceiling height.** Habitable space and hallways in tiny houses shall have a ceiling height of not less than 6 feet 8 inches (2032 mm). Bathrooms, toilet

rooms and kitchens shall have a ceiling height of not less than 6 feet 4 inches (1930 mm). Obstructions including, but not limited to, beams, girders, ducts and lighting, shall not extend below these minimum ceiling heights.

**Exception:** Ceiling heights in lofts are permitted to be less than 6 feet 8 inches (2032 mm).

**SECTION AQ104. - LOFTS.**

**AQ104.1 Minimum loft area and dimensions.** Lofts used as a sleeping or living space shall meet the minimum area and dimension requirements of Sections AQ104.1.1 through AQ104.1.3.

**AQ104.1.1 Minimum area.** Lofts shall have a floor area of not less than 35 square feet (3.25 m2).

**AQ104.1.2 Minimum dimensions.** Lofts shall be not less than 5 feet (1524 mm) in any horizontal dimension.

**AQ104.1.3 Height effect on loft area.** Portions of a loft with a sloped ceiling measuring less than 3 feet (914 mm) from the finished floor to the finished ceiling shall not be considered as contributing to the minimum required area for the loft.

**Exception:** Under gable roofs with a minimum slope of 6 units vertical in 12 units horizontal (50-percent slope), portions of a loft with a sloped ceiling measuring less than 16 inches (406 mm) from the finished floor to the finished ceiling shall not be considered as contributing to the minimum required area for the loft.

**AQ104.2 Loft access.** The access to and primary egress from lofts shall be of any type described in Sections AQ104.2.1 through AQ104.2.4.

**AQ104.2.1 Stairways.** Stairways accessing lofts shall comply with this code or with Sections AQ104.2.1.1 through AQ104.2.1.5.

**AQ104.2.1.1 Width.** Stairways accessing a loft shall not be less than 17 inches (432 mm) in clear width at or above the handrail. The width below the handrail shall be not less than 20 inches (508 mm).

**AQ104.2.1.2 Headroom.** The headroom in stairways accessing a loft shall be not less than 6 feet 2 inches (1880 mm), as measured vertically, from a sloped line connecting the tread or landing platform nosings in the middle of their width.

**AQ104.2.1.3 Treads and risers.** Risers for stairs accessing a loft shall be not less than 7 inches (178 mm) and not more than 12 inches (305 mm) in height. Tread depth and riser height shall be calculated in accordance with one of the following formulas:

1. The tread depth shall be 20 inches (508 mm) minus four-thirds of the riser height.
2. The riser height shall be 15 inches (381 mm) minus three-fourths of the tread depth.

**AQ104.2.1.4 Landing platforms.** The top tread and riser of stairways accessing lofts shall be constructed as a landing platform where the loft ceiling height is less than 6 feet 2 inches (1880 mm) where the stairway meets the loft. The landing platform shall be 18 inches to 22 inches (457 to 559 mm) in depth measured from the nosing of the landing platform to the edge of the loft, and 16 to 18 inches (406 to 457 mm) in height measured from the landing platform to the loft floor.

**AQ104.2.1.5 Handrails.** Handrails shall comply with Section R311.7.8.

**AQ104.2.1.6 Stairway guards.** Guards at open sides of stairways shall comply with Section R312.1.

**AQ104.2.2 Ladders.** Ladders accessing lofts shall comply with Sections AQ104.2.1 and AQ104.2.2.

**AQ104.2.2.1 Size and capacity.** Ladders accessing lofts shall have a rung width of not less than 12 inches (305 mm), and 10-inch (254 mm) to 14-inch (356 mm) spacing between rungs. Ladders shall be capable of supporting a 200-pound (75 kg) load on any rung. Rung spacing shall be uniform within ⅜ inch (9.5 mm).

**AQ104.2.2.2 Incline.** Ladders shall be installed at 70 to 80 degrees from horizontal.

**AQ104.2.3 Alternating tread devices.** Alternating tread devices accessing lofts shall comply with Sections R311.7.11.1 and R311.7.11.2. The clear width at and below the handrails shall be not less than 20 inches (508 mm).

**AQ104.2.4 Ship's ladders.** Ship's ladders accessing lofts shall comply with Sections R311.7.12.1 and R311.7.12.2. The clear width at and below handrails shall be not less than 20 inches (508 mm).

**AQ104.2.5 Loft guards.** Loft guards shall be located along the open side of lofts. Loft guards shall be not less than 36 inches (914 mm) in height or one-half of the clear height to the ceiling, whichever is less.

**SECTION AQ105 - EMERGENCY ESCAPE AND RESCUE OPENINGS**

**AQ105.1 General.** Tiny houses shall meet the requirements of Section R310 for emergency escape and rescue openings.

**Exception:** Egress roof access windows in lofts used as sleeping rooms shall be deemed to meet the requirements of Section R310 where installed such that the bottom of the opening is not more than 44 inches (1118 mm) above the loft floor, provided the egress roof access window complies with the minimum opening area requirements of Section R310.2.1.

*(Ord. No. 24935, § 1, 10-26-2022; Ord. No. 25021, § 1, 4-19-2023)*

### Section 202. Protection of existing rights and remedies.

Nothing in this chapter shall be construed to affect any suit or proceeding pending in any court, or any rights acquitted, or liability incurred, or any cause or causes of action acquired or existing under any act or provision hereby repealed; nor shall this chapter require any changes in work which has been lawfully authorized prior to the adoption of this chapter, so long as such work is actually commenced within sixty (60) days after its adoption.

*(Ord. No. 24935, § 1, 10-26-2022)*

### Section 203. Violation penalties—Amendatory.

It shall be unlawful and a misdemeanor offense for any person, firm, corporation, limited liability company or other entity to violate any of the provisions of this code, fail to comply with any of the requirements thereof, or to erect, construct, alter, repair or change the occupancy of any building or structure in violation of an approved plan or directive of the building official or of a permit or certificate issued under the provisions of this code. Any person, firm, corporation, limited liability company or other entity convicted of a violation of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not

more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, or continued, shall be deemed a separate offense.

*(Ord. No. 24935, § 1, 10-26-2022)*

# CHAPTER 3. MANUFACTURED HOMES, MOBILE HOMES, MODULAR STRUCTURES, RECREATIONAL VEHICLES AND MOBILE HOME PARKS*

Section 300. Definitions.
Section 301. Use, occupancy and location of manufactured homes, mobile homes and modular structures.
Section 302. Temporary nonresidential use of manufactured homes, mobile homes and modular structures.
Section 303. General requirements for manufactured homes, mobile homes and recreational vehicle parks.
Section 304. Manufactured home subdivision and mobile home parks.
Section 305. Foundations and anchoring manufactured homes, mobile homes and certain recreational vehicles.
Section 306. Required inspection.
Section 307. Recreational vehicle parks.
Section 308. Flood hazard areas.
Section 309. Violation and appeal.
Section 310. Permits not transferable.
Section 311. Violation penalties.

## Section 300. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings given herein:

**A.** **Mobile Home** shall mean a manufactured home built prior to the National Manufactured Housing Construction and Safety Act of 1974 (42 U.S.C. §§ 5401, *et seq.*); built on a permanent chassis and that complies with Standard for Mobile Homes, National Fire Protection Association (NFPA) 501, American National Standards Institute (ANSI) 119.1, in effect at the time that the unit was manufactured.

**B.** **Manufactured Home** shall mean a manufactured home built after the National Manufactured Housing Construction and Safety Act of 1974 (42 U.S.C. §§ 5401, *et seq.*).

**C.** **Mobile Home Parks** shall mean land used or intended to be used by two (2) or more mobile homes where sewer, water, gas, electric and other similar facilities are available to allow occupancy of such mobile homes as dwellings.

**D.** **Modular Structure** shall mean a transportable, non-vehicular, prefabricated structure, requiring an independent foundation, which is designed and constructed for movement from a point of fabrication to a permanent erection or location site.

**E.** **Dwelling** shall mean any structure or vehicle occupied or used primarily for a residential purpose which may or may not contain sleeping, bath, toilet, cooking and refrigeration facilities.

**F.** **Code Official** shall mean the officer or other designated authority charged with the administration and enforcement of this code.

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***Editor's note—**Ord. No. 23590, § 1, adopted November 2, 2016, amended chapter 3 in its entirety to read as herein set out. Former chapter 3, §§ 300—309, pertained to mobile homes, modular structures, recreational vehicles and mobile home parks. See Code Comparative Table for complete derivation.

**G. Person** shall mean any individual, partnership, trust, association, corporation or combination thereof.

**H. Recreational Vehicle** shall mean a vehicular type unit designed primarily for temporary living quarters for recreational, camping or travel use, which either has its own motive power or is mounted on or towed by another vehicle and has its own potable water storage tank and waste storage tank.

A recreational vehicle may be any of the following:

1. **Motor Home** which shall mean a vehicular type unit designed to provide temporary living quarters for recreational, camping or travel use built on or permanently attached to a self-propelled motor chassis or on a chassis cab or van which is an integral part of the completed vehicle;
2. **Travel Trailer** which shall mean a vehicular unit mounted on wheels, designed to provide temporary living quarters for recreational, camping or travel use and of such size and weight as not to require special highway permits when towed by a motorized vehicle;
3. **Camping Trailer** which shall mean a vehicular portable unit mounted on wheels and constructed with collapsible partial side walls which fold for towing by another vehicle and unfold at the campsite to provide temporary living quarters for recreational, camping or travel use; or
4. **Truck Camper** which shall mean a portable unit constructed to provide temporary living quarters for recreational, travel or camping use, consisting of a floor, roof and sides, designed to be mounted on the bed of a pickup truck.

*(Ord. No. 23590, § 1, 11-2-2016)*

## Section 301. Use, occupancy and location of manufactured homes, mobile homes and modular structures.

The use, occupancy and location of manufactured homes, mobile homes and modular structures are governed by the provisions of the zoning code of the City of Tulsa, Title 42, Tulsa Revised Ordinances.

*(Ord. No. 23590, § 1, 11-2-2016)*

## Section 302. Temporary nonresidential use of manufactured homes, mobile homes and modular structures.

**A. Temporary permit required; requirements for issuance established.** Any person who desires to use a manufactured home, mobile home or a modular structure on a temporary basis for a field or local branch office, demonstration or for a charitable and nonprofit purpose, may do so upon issuance of a temporary mobile home permit by the code official of the City of Tulsa. The prospective user shall apply for such permit by filing a written application with the code official, accompanied by a nonrefundable application as set forth in Title 49, Tulsa Revised Ordinances. Such application shall include the exact location where the manufactured home, mobile home or modular structure will be placed, a full explanation and description of the use or activity which will be conducted within the manufactured home, mobile home or modular structure, and a statement specifying the period of time for which such temporary use will be required.

Upon a finding by the code official that the proposed use is permitted by this section, that such use will not exceed twelve (12) months in duration and upon the applicant's

posting a cash or surety removal bond as hereinafter required, the code official shall issue a temporary manufactured home, mobile home permit for any requested period of time not exceeding twelve (12) months.

The issuance of a temporary manufactured home or mobile home permit authorized by this section shall require the issuance of a zoning clearance certificate, but shall not require an occupancy certificate as provided by the building code of the City of Tulsa, Chapter 1, Title 51, Tulsa Revised Ordinances.

**B. Permit for extended use.** The use of any property as a temporary location site for a manufactured home, mobile home or modular structure in excess of twelve (12) months shall not be considered to be a temporary use within the meaning of this section and no additional temporary permits shall be issued by the code official; provided, however, that permits for extended temporary use beyond the initial twelve (12) months may be obtained by the following persons:

**1.** Building contractors involved with an ongoing construction project on the same property on which such mobile home or modular structure is located; and

**2.** Public schools (as defined in 70 O.S.2001, § 1-106) using such mobile home or modular structure as temporary classrooms.

The code official shall either issue the requested permit for extended use or deny the application in writing, giving the reasons for such denial, within ten (10) working days after the filing of such application. No extended use permit shall be issued for a period of time exceeding twelve (12) months. Extended use permits may be re-issued by the code official upon the expiration of an existing extended use permit.

**C. Limitations upon occupancy of temporarily located manufactured homes, mobile homes and modular structures.** Holders of temporary permits and their employees may occupy a manufactured home, mobile home or a modular structure on a twenty-four (24) hour basis, provided that: (1) such occupancy is accessory and subordinate to a principal nonresidential use of the property upon which such manufactured home, mobile home or modular structure is located; and (2) such twenty-four (24) hour occupancy does not thereby establish a dwelling unit within the meaning of the zoning code of the City of Tulsa, Title 42, Tulsa Revised Ordinances, unless otherwise permitted by a zoning variance granted by the Tulsa Board of Adjustment.

*(Ord. No. 23590, § 1, 11-2-2016)*

## Section 303. General requirements for manufactured homes, mobile homes and recreational vehicle parks.

**A. Manufactured homes, mobile homes and recreational vehicles in storage.** Manufactured homes, mobile homes and recreational vehicles not intended for occupancy may be parked only in a separately designated storage area within the manufactured home subdivision, mobile home park or recreational vehicle park or in another storage area authorized under the zoning code of the City of Tulsa, Title 42, Tulsa Revised Ordinances. When the mobile home or recreational vehicle is parked in a designated storage area, no fees or permits are required. When the mobile home is stored on a mobile home lot, it shall comply with the applicable bulk and area requirements in the zoning code of the City of Tulsa, Section 403, Chapter 4, Title 42,

Tulsa Revised Ordinances, and it shall be anchored according to the building code, Chapter 1, Title 51. Recreational vehicles stored on a mobile home lot shall be parked on the parking pad.

**B. Utility connections.** Electrical, mechanical and plumbing connections, where required, shall comply with the respective codes of the City of Tulsa.

**C. Fire hydrants.** Where existing fire hydrants are farther than one thousand (1,000) feet from the most distant mobile home or recreational vehicle space, additional fire hydrants shall be provided and located as required by the Fire Marshal of the City of Tulsa. The Fire Marshal shall approve or deny submitted plans within seven (7) days after receipt thereof.

**D. Street lighting.** Street lamps shall be positioned no less than every two hundred (200) feet throughout the park. Such lamps shall be twenty (20) feet above ground level and shall contain bulbs of at least one hundred (100) watts. All lamps shall be shaded and positioned so as to avoid glare on adjoining properties.

**E. Garbage cans.** Garbage cans must be enclosed, maintained in sanitary condition and located no farther than one hundred fifty (150) feet from any mobile home or recreational vehicle space.

*(Ord. No. 23590, § 1, 11-2-2016)*

## Section 304. Manufactured home subdivision and mobile home parks.

**A. Manufactured home subdivision permit, mobile home park permit, zoning clearance permit and fees.** No manufactured home subdivision or mobile home park shall be constructed, maintained, used or occupied within the City limits of the City of Tulsa unless and until a zoning clearance permit and a manufactured home subdivision or mobile home park permit have been issued by the code official and an annual fee as set forth in Title 49, Tulsa Revised Ordinances, has been paid.

**B. Site plan required.** No mobile home park permit shall be issued to any person until a site plan of the proposed park is filed with and approved by the code official of the City of Tulsa. The site plan shall show compliance with all requirements set forth herein for mobile home parks. The site plan shall be drawn to scale and shall be sufficiently detailed to show compliance with all requirements of this chapter.

**C. Land requirements.** All mobile home parks shall be constructed, maintained and/or operated in accordance with the provisions of the zoning code of the City of Tulsa, Title 42, Tulsa Revised Ordinances.

**D. Utilities.** Connections for electricity, gas, City water and City sanitary sewer shall be provided at each mobile home space.

*(Ord. No. 23590, § 1, 11-2-2016)*

## Section 305. Foundations and anchoring manufactured homes, mobile homes and certain recreational vehicles.

**A. General.** Manufactured home and mobile home anchoring and foundation systems shall be designed by an Oklahoma licensed engineer or in accordance with the Code of Federal Regulations, Title 24, Housing and Urban Development, Subtitle B, Chapter XX, part 3285.

**B. Additional requirements.** In addition to requirements for anchoring contained in Chapter 1, Title 51, Tulsa Revised Ordinances, the following requirements shall apply:

**1.** Patio awnings shall be installed according to manufacturer's instructions;

**2.** Accessory structures on the lot shall be securely anchored;

**3.** Tip-out rooms shall be anchored by an over-the-home tie at the end of each raised section; and

**4.** Clerestory roofs shall require an over-the-home tie at the end of each raised section.

**C. Recreational vehicles.** Recreational vehicles placed in a mobile home park and used as a residence shall be anchored in accordance with the requirements specified herein for a mobile home.

*(Ord. No. 23590, § 1, 11-2-2016)*

### Section 306. Required inspection.

Prior to the issuance of a permit to locate a manufactured home or mobile home within the corporate limits of the City of Tulsa, the code official of the City of Tulsa shall be afforded reasonable access to the manufactured home or mobile home to ascertain whether unsafe conditions exist. Such official shall be afforded similar access upon application by a person for renewal or extension of any permit provided by this chapter. Such reasonable access to any mobile home shall not be denied to the code official.

*(Ord. No. 23590, § 1, 11-2-2016)*

### Section 307. Recreational vehicle parks.

**A. Recreational vehicle park zoning clearance.** No recreational vehicle (RV) park shall be constructed, maintained, used or occupied within the city limits of the City of Tulsa unless and until a zoning clearance permit and an RV park permit have been applied for, an annual permit fee as set forth in Title 49, Tulsa Revised Ordinances has been paid and the permit has been issued by the code official.

**B. Site plan required.** No recreational vehicle park permit shall be issued to any person until a site plan of the proposed park is filed with and approved by the code official of the City of Tulsa. Such site plan shall show compliance with all requirements of this chapter for recreational vehicle parks. The site plan shall be drawn to scale and of sufficient detail to show compliance with all requirements of this chapter.

**C. Auxiliary facilities.** Recreational vehicle parks shall have permanent service buildings for laundry, toilet and bath or shower facilities. Such service buildings shall be located no closer than fifteen (15) feet and no farther than six hundred (600) feet from any recreational vehicle space. Permanent service facilities shall have adequate supplies of both hot and cold water, shall be adequately lighted at all times, shall be constructed of moisture resistant materials to permit frequent cleaning and washing and shall be heated in winter.

**D. Toilet facilities.** Separate toilet facilities shall be provided for males and females. One (1) flush type water closet, one (1) lavatory and one (1) shower facility shall be provided for each sex in all parks having nine (9) or fewer spaces. One (1) additional water closet, lavatory and shower facility shall be provided for each sex for each additional thirty (30) spaces or fraction of this number.

**E. Laundry facilities.** Laundry facilities shall consist of one (1) dual compartment lavatory, one (1) automatic washer and one (1) automatic dryer for each thirty (30) spaces or fraction of this number.

**F. Utilities.** All utility services and connections installed in recreational vehicle parks shall meet all applicable codes, rules and regulations.

*(Ord. No. 23590, § 1, 11-2-2016; Ord. No. 24023, § 1, 11-7-2018)*

### Section 308. Flood hazard areas.

New and replacement manufactured homes, mobile homes, modular structures and recreational vehicles to be located in flood hazard areas as established in Table R301.2(1) of Title 51 TRO Chapter 2 International Residential Code 2015 of the City of Tulsa shall comply with the applicable requirements of Section R322 (Title 51 TRO Chapter 2); Title 51 TRO Chapter 1 Appendix G: and Title 11-A TRO Chapter 3.

The bottom of the frame of new and replacement manufactured homes, mobile homes, modular structures and recreational vehicles on foundations shall be elevated at least one (1) foot above the design flood elevation. The anchor and tie-down requirements of the applicable state and federal requirements shall apply.

*(Ord. No. 23590, § 1, 11-2-2016)*

### Section 309. Violation and appeal.

Any violation of this chapter, state statutes or other applicable law shall constitute cause for denial or revocation of any permit required herein; provided, however, that upon denial or revocation of any permit, an appeal of the code official's action may be taken to the City Council by filing a notice of appeal with the code official and the City Clerk within ten (10) days of the code official's action.

*(Ord. No. 23590, § 1, 11-2-2016)*

### Section 310. Permits not transferable.

No permit granted pursuant to the provisions of this chapter shall be transferable.

*(Ord. No. 23590, § 1, 11-2-2016)*

### Section 311. Violation penalties.

It shall be unlawful and a misdemeanor offense for any person, firm, corporation, limited liability company or other entity to violate any of the provisions of this code, fail to comply with any of the requirements thereof, or to erect, construct, alter, repair or change the occupancy of any building or structure in violation of an approved plan or directive of the building official or of a permit or certificate issued under the provisions of the code. Any person, firm, corporation, limited liability company or other entity convicted of a violation of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, or continued, shall be deemed a separate offense.

*(Ord. No. 23590, § 1, 11-2-2016)*

## CHAPTER 4. ICC INTERNATIONAL EXISTING BUILDING CODE, 2018 EDITION, ADOPTED.

Section 400. Adoption of the ICC International Existing Building Code, 2018 Edition.
Section 401. Amendments to the ICC International Existing Building Code, 2018 Edition.

### Section 400. Adoption of the ICC International Existing Building Code, 2018 Edition.

That certain document, three (3) copies of which are on file in the office of the City Clerk of the City of Tulsa, Oklahoma, being marked and designated as the ICC International Existing Building Code, 2018 Edition, as published by the International Code Council, Inc. (ICC), hereinafter the "Existing Building Code" is hereby adopted as an optional code for the control of buildings and structures other than detached one- and two-family dwellings, as herein provided. Each and all of the regulations, provisions, penalties, terms and conditions of the ICC International Existing Building Code, 2018 Edition, are hereby referred to, adopted and made a part hereof as if fully set out in this chapter with the amendments thereto, prescribed in Section 401 of this chapter.

*(Ord. No. 20245, 20827, 21781; Ord. No. 22760, § 1, 9-20-2012; Ord. No. 23001, § 1, 12-12-2013; Ord. No. 23396, § 1, 10-29-2015; Ord. No. 24829, § 2, 5-25-2022)*

### Section 401. Amendments to the ICC International Existing Building Code, 2018 Edition.

The following sections of the ICC International Existing Building Code, 2018 Edition, are hereby added, deleted or amended to read as follows:

**101.1 Title - Amendatory.** These regulations shall be known as the "Existing Building Code of the City of Tulsa, Oklahoma," hereinafter referred to as "this code."

**101.2.1 Optional Use of this Code - Added.** Buildings and structures located inside the corporate limits of the City and all City owned buildings and structures located inside or outside the corporate limits of the City shall have the option to comply with this code or the Building Code of the City of Tulsa, Title 51, Tulsa Revised Ordinances, Chapter 1.

**102.1.1 Applicability - Added.** The provisions of this code shall only apply to and govern buildings for which the initial building permit was issued prior to January 1, 1994.

**Exceptions:**

1. This code shall not apply to buildings and structures regulated by the International Residential Code for One- and Two-Family Dwellings of the City of Tulsa, Oklahoma, Title 51, Tulsa Revised Ordinances, Chapter 2. One- and two-family dwellings or townhouses relocated or moved inside the corporate limits of the City shall comply with the provisions of the Existing Building Code of the City of Tulsa Title 51, Tulsa Revised Ordinance, Chapter 4, Section 1301.
2. Chapters 1, 2, 4, 5, 6, 7, 13, 15 and 16 of the ICC International Existing Building Code, 2018 Edition shall be optional for any building for which the initial building permit was issued subsequent to January 1, 1994.

**103.1 Enforcement Agency - Amendatory.** The term "Department of Building Safety," as used within the ICC International Existing Building Code, 2018 Edition shall mean the Development Services Division of the Planning and Development Department of the City of Tulsa or other department, division or section of the City of Tulsa authorized and directed to enforce the provisions of this code.

**103.4 Code of Ethics - Added.** Staff members of the Development Services Division of the Planning and Development Department of the City of Tulsa shall ascribe to and be guided in professional conduct as code officials and department representatives, as provided within Title 12, Chapter 6, Tulsa Revised Ordinances, entitled "Ethics Code".

**103.5 Qualification of Code Officials - Added.** The building official and deputies, otherwise known as "code officials," shall be licensed as may be prescribed by statutes of the state of Oklahoma, possess experience in commercial or residential building work, as determined by their job descriptions and responsibilities and possess certification by the International Code Council, Inc., or other testing agencies, as approved by the Director of the Planning and Development Department, or the Director's designated representative.

**104.2.1 Determination of substantially improved or substantially damaged existing buildings and structures in flood hazard areas - Amendatory.** For applications for reconstruction, rehabilitation, repair, alteration, addition or other improvement of existing buildings or structures located in flood hazard areas, the building official shall determine where the proposed work constitutes substantial improvement or repair of substantial damage. Where the building official determines that the proposed work constitutes substantial improvement or repair of substantial damage, and where required by this code, the building official shall require the building to meet the requirements of the Building Code of the City of Tulsa Title 51, Tulsa Revised Ordinance, Chapter 1, Section 1612. The cost used in the substantial improvement determination shall be the cumulative costs of all previous improvements for a specific building or structure occurring during the immediate past 10-year period.

**104.10.1 Flood Hazard Areas, Areas Prone to Flooding - Amendatory.** The code official shall not grant modifications to any provision related to flood hazard areas and areas prone to flooding, as established by the current City of Tulsa Regulatory Floodplain Map Atlas, without the grant of a variance by the Stormwater Drainage and Hazard Mitigation Advisory Board, as provided in Title 11-A, Tulsa Revised Ordinances.

**104.10.2 Modifications Affecting Life and Fire Safety - Added.** Modifications affecting life and safety shall be approved by the fire code official and code official. The details of action granting modifications shall be recorded and entered in the files of the Development Services Division of the Planning and Development Department.

**105.1 Permits Required - Amendatory.** Any owner or owner's authorized agent who intends to construct, enlarge, alter, repair, move, demolish, substantially improve or change the occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any electrical, gas, mechanical or plumbing system, the installation of which is regulated by this code, or to cause any such work to be performed, shall first make application to the building official and obtain the required permit.

**105.1.1 Annual permit - Amendatory.** An annual permit is a yearly permit which represents a group of individual permits for each alteration to an already approved

electrical, gas, mechanical or plumbing installation. The building official is authorized to issue an annual permit upon application therefor to any person, firm or corporation regularly employing one or more qualified tradespersons in the building, structure or on the premises owned or operated by the applicant for the permit.

**105.1.2 Annual Permit Records - Amendatory.** The person to whom an annual permit is issued shall keep a detailed record of alterations made under such annual permit, in accordance with Title 50, Tulsa Revised Ordinances, entitled "Annual Permits." The code official shall have access to such detailed records of alterations at all times or such records shall be filed with the code official as designated. At the completion of the entity's annual permit term, the applicant shall file such detailed records of alterations with the building official. Pursuant to the authority of 59 O.S. § 1000.25, the building official shall collect fees for each individual permit which is part of the annual permit once the detailed records are submitted and remit such fees to the OUBCC.

**105.1.3 By Whom an Application is Made - Added.** An application for a permit shall be made by the owner or lessee of the building or structure, or the agent of either, or by the licensed architect or engineer employed in connection with the proposed work. If an application is made by a person other than the owner in fee, it shall be accompanied by an affidavit of the owner or the qualified applicant or a signed statement of the qualified applicant witnessed by the code official or his designee, informing that the proposed work is authorized by the owner in fee and that the applicant is authorized to make such application. The full names and addresses of the owner, lessee, applicant and the responsible officers, if the owner or lessee is not a natural person, shall be stated on the application. The owner of the building or structure shall at all times retain ownership rights and authority for use and control of such application and any related subsequent permits issued pursuant to this code.

**105.2 Work Exempt from Permit - Amendatory.** Exemptions from permit requirements of this code shall comply with the Building Code of the City, Title 51, Tulsa Revised Ordinances, Section 105.2.

**105.3.3 Payment of Permit Fees - Added.** Upon acceptance of application for a permit, an application fee shall be paid. The permit and associated documents shall then be reviewed and, upon approval, the applicant shall be notified the permit is ready and advised of what remaining fees are due. In order for the permit to be valid, all fees shall have been paid in full and the permit posted at the job site prior to beginning construction. Payments for permits shall be due upon notification to applicant that the permit has been approved and is ready to be issued. Any permit not paid within thirty (30) days after notification may be deemed void by the code official and the application fee shall then be forfeited.

**105.3.4 Eating or Drinking Establishments - Added.** Each applicant for a permit for a structure to be used as an eating or drinking establishment shall provide two (2) additional copies of the Plans and specifications for the proposed structure. The Tulsa City-County Health Department shall determine whether the proposed construction for the eating or drinking establishment meets current health requirements as provided in the Tulsa Revised Ordinances.

**105.3.5 Zoning Clearance Permit Required - Added.** The code official shall not issue a building permit for any building or other structure until and unless the code

official is furnished a zoning clearance permit issued by the zoning official stating that the use or occupancy of such building or structure complies with or, upon completion, will comply with the applicable zoning ordinances of the City of Tulsa.

**105.3.6 Alarm Industry Act Adopted and Incorporated by Reference - Added.** Alarm Industry Act, Title 59 O.S. Section 1800.1 et seq. as amended is hereby adopted by reference and incorporated into this code as if set out at-length here, save and except any portions which may be added, deleted or amended in this title.

**105.3.6.1 Fire Extinguisher Industry Act Adopted and Incorporated by Reference - Added.** Fire Extinguisher Industry Act, Title 59 O.S. Supp. 2007, Section 1820.1 et seq. as amended is hereby adopted by reference and incorporated into this code as if set out at-length here, save and except any portions which may be added, deleted or amended in this title.

**105.3.6.2 Fire Sprinkler Permits - Added.** The code official shall not issue a permit for the installation, alteration or repair, of fire sprinkler systems, and related equipment, including standpipes, and hose connections to fire sprinkler systems, air line systems used in connection with fire sprinkler systems, and connect tanks and pumps, until the person, firm, corporation or limited liability company installing the same shall have on file with the City of Tulsa a surety bond in the amount of Two Thousand Five Hundred Dollars ($2,500.00). Such bond shall be on a form satisfactory to the City, guaranteeing payment of all obligations and guaranteeing the work to be installed in accordance with the provisions of this code. No person, firm, corporation or limited liability company shall install automatic fire sprinkler systems unless licensed as provided in Title 59 O.S. Section 1800.1 et seq., as amended, and related rules and regulations.

**105.3.6.3 Licensing - Added.** All fire alarm and fire sprinkler systems governed by this code shall be installed, inspected and repaired by licensed firms and technicians in compliance with occupational licensing laws and regulations promulgated by the Oklahoma Department of Labor, and published in the Oklahoma Administrative Code (OAC), Section 380:75. All fire extinguisher systems governed by this code shall be installed, inspected and repaired by licensed firms and technicians in compliance with occupational licensing laws and regulations promulgated by the Oklahoma State Fire Marshal Commission, and published in the Oklahoma Administrative Code (OAC), Section 265:50.

**106.2.2 Fire Protection System(s) Shop Drawings - Amendatory.** Shop drawings for fire protection systems shall be submitted to indicate conformance with this code and construction documents. An application for a permit shall be submitted prior to the start of system installation. Any applicant for a permit that begins construction activities prior to an approved permit being issued shall be proceeding at their own risk. Regardless, a permit shall be issued before a rough-in inspection may be requested for the system(s) and prior to the system(s) being concealed. Shop drawings shall contain all information required by the installation standards referenced in Chapter 9 of the International Building Code.

**106.2.6 Construction Documents Site plan - Amendatory.** The construction documents submitted with the application for permit shall be accompanied by a site plan showing to scale the size and location of new construction and existing structures on the site, property boundaries, distances from lot lines, the established grades and

the proposed finished grades, easements, rights-of-way, utilities and, as applicable, flood hazard areas, floodways, design flood elevations and finished floor elevations; and it shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the site or plot. The building official is authorized to waive or modify the requirement for a site plan where the application for permit is for alteration or repair or where otherwise warranted.

**106.3.1.1 Approval of Water and Sewer Plans - Added.** If the property is not served by an adequate public water supply or public sanitary sewer system, each applicant for a permit for a structure requiring a water supply and sewage disposal shall develop the site in accordance with adopted City ordinances.

**107.3 Temporary Power - Amendatory.** The building official is authorized to give permission to temporarily supply and use power in part of an electrical installation before such installation has been fully completed and the final inspection has been approved. The part covered by the temporary permit shall comply with the requirements specified for temporary lighting, heat or power in the Electrical Code of the City of Tulsa, Title 52, Tulsa Revised Ordinances.

**108.2 Schedule of Permit Fees - Amendatory.** All permit and inspection fees for work encompassed in this chapter shall be paid in accordance with the schedule established in Title 49, Tulsa Revised Ordinances, Chapter 3.

**108.3 Building Permit Valuations - Amendatory.** The applicant for a permit shall provide an estimated permit value at time of application. Permit valuations shall include total value of work, including materials and labor, for which the permit is being issued, such as electrical, gas, mechanical, plumbing equipment and permanent systems. If, in the opinion of the code official, the valuation is underestimated on the application, the permit shall be (1) denied, or (2) approved using an adjusted valuation substituted by the code official or (3) approved using a valuation submitted by the applicant based upon detailed estimates meeting the approval of the code official. Final building permit valuation shall be set by the code official.

**109.3.3 Lowest Floor Floodplain Elevation Certificate - Amendatory.** For additions and substantial improvements to existing buildings in flood hazard areas, upon placement of the lowest floor, including basement, and prior to further vertical construction, the elevation documentation required in the Building Code of the City of Tulsa Title 51, Tulsa Revised Ordinance, Chapter 1, Section 110.3.3 shall be submitted to the code official.

**109.3.3.1 Final Floodplain Elevation Certificate - Added.** Prior to the final inspection, a final elevation certificate shall be required for additions and substantial improvements to existing buildings in flood hazard areas, as established by the current City of Tulsa Regulatory Floodplain Map Atlas. The final elevation certificate shall be prepared by a land surveyor or engineer licensed by the State of Oklahoma, using an appropriate form provided by the code official.

**109.3.3.2 Flood-proofing Certificate - Added.** In lieu of elevating an existing non-residential structure to a certified minimum finished floor elevation as provided in Sections 109.3.3 and 109.3.3.1 of this code, an existing non-residential structure located in an area prone to flooding, as established by the current City of Tulsa

Regulatory Floodplain Map Atlas, undergoing substantial improvement, may be flood-proofed in accordance with Building Code of the City of Tulsa Title 51, Tulsa Revised Ordinance, Chapter 1, Section 110.3.3.2.

**109.6 Approval Required - Amendatory.** No work shall be done beyond the point indicated in each successive inspection without first obtaining the approval of the code official. Upon notification, the code official shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed, or shall notify the permit holder or an agent of the permit holder where it fails to comply with this code. Any part that does not comply shall be corrected and such portion shall not be covered, concealed or occupied until authorized by the code official. Work that is covered or concealed, or occupied without approval of the code official shall be in violation of this code and shall be penalized by the imposition of a civil fine as provided in Title 49, Tulsa Revised Ordinances, Chapter 1, for each occurrence and may result in a hearing before the Board of Appeals as established by Title 51, Chapter 1, Tulsa Revised Ordinances. Each day, or portion thereof, during which a violation is committed, continued or permitted shall be deemed a separate offense. The assessment or payment of this penalty shall not relieve any person from fully complying with all requirements of this code nor shall such payment exempt the person from further penalty provided by law.

**110.1.1 Bond Required - Added.** The code official, or designated representative, shall not issue a permit for the demolition or destruction of a building or structure until a suitable bond has been provided, protecting the adjacent property from damages. Such bond shall be in the minimum amount as provided in Title 49, Tulsa Revised Ordinances, Chapter 3, and may be increased if in the opinion of the code official the location of the building to be demolished or destroyed requires a larger bond. The code official, or designated representative, may waive the requirement of bond if the official is satisfied that the particular building or structure can be demolished or destroyed without damage to adjoining buildings or properties.

**112.1 Appeals - Amendatory.** Any person aggrieved by a decision of the code official may appeal the decision to the Board of Appeals as established by Title 51, Chapter 1, Tulsa Revised Ordinances.

**113.4 Violation Penalties - Amendatory.** It shall be unlawful and a misdemeanor offense for any person or limited liability company to violate any of the provisions of this code, fail to comply with any of the requirements thereof, or erect, construct, repair, alter or change the occupancy of a building or structure in violation of approved construction documents, a directive of the code official, or of a permit or certificate issued under the provisions of this code. Any person or limited liability company convicted of a violation of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, continued or permitted shall be deemed a separate offense.

**113.5 Abatement of Violation - Added.** The imposition of civil or criminal penalties prescribed in this code shall not preclude the City Attorney from instituting appropri-

ate action to restrain or enjoin unlawful construction, the illegal occupancy of a building, or to stop an illegal act, conduct, business, or operation of systems or to abate any such violation.

**114.3 Unlawful continuance - Amendatory.** It shall be unlawful and a misdemeanor offense for any person or limited liability company to continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition. Any person or limited liability company convicted of a violation of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees and assessments, or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, continued or permitted shall be deemed a separate offense.

**117. Demolition - Deleted.** Section 117, including Sections 117.1, 117.2, 117.3 and 117.4 of the ICC International Existing Building Code, 2018 Edition are intentionally deleted from this code. (See Title 24, Tulsa Revised Ordinances, entitled "Nuisances," Chapters 1, 2 and 4, for related abatement and demolition activities relevant to existing buildings classified as nuisance, dilapidated or unsecured.)

**202 General Definitions - Amendatory.** Section 202.0 of the ICC International Existing Building Code, 2018 Edition is adopted as published, provided that the following definitions in Section 202 are amended to read as follows:

**Existing Building or Existing Structure - Amendatory.** A building or structure for which a legal building permit has been issued. For application of provisions in flood hazard areas, an existing structure is any building or structure for which the start of construction commenced before the effective date of the community's first floodplain management code, ordinance or standard.

**Flood Hazard Area - Amendatory.** For all buildings or structures located inside the city's corporate limits, the flood hazard area shall be as designated on the City of Tulsa Regulatory Floodplain Map Atlas.

**Substantial Improvement - Amendatory.** Any repair, reconstruction or improvement of a structure, the cost of which equals or exceeds fifty percent (50%) of the market value of the structure, either before the improvement or repair is started or, if the structure has been damaged and is being restored, before the damage occurred. For purposes of this definition "substantial improvement" is considered to occur when the first alteration of any wall, ceiling, floor or other structural part of the building commences, whether or not that alteration affects the external dimensions of the structure. This term shall not, include:

1. Any project(s) for improvement of a structure to comply with existing health, sanitary or safety code specifications which are solely necessary to assure safe living conditions, or
2. Any alterations of a structure listed on the National Register of Historic Places or state inventory of historic places.

The cost used in the substantial improvement determination shall be the cumulative costs of all previous improvements for a specific building or structure occurring during the immediate past 10-year period.

**[FG] 702.6.1 International Fuel Gas Code - Amendatory.** The following sections of the International Fuel Gas Code shall constitute the fuel gas materials and methods requirements for Level 1 alterations.

**1.** All of Chapter 3, entitled General Regulations, except Sections 303.7 and 306.

**2.** All of Chapter 4, entitled Gas Piping Installations, except Sections 401.8 and 402.3.

**2.1.** Sections 401.8 and 402.3 shall apply when the work being performed increases the load on the system such that the existing pipe does not meet the size required by code. Existing systems that are modified shall not require resizing as long as the load on the system is not increased and the system length is not increased, even if the altered system does not meet code minimums.

**3.** All of Chapter 5, entitled Chimneys and Vents.

**4.** All of Chapter 6, entitled Specific Appliances.

**5.** All appliances shall be installed according to the manufacturer's installation instructions for service, repair or maintenance.

**804.2.1 High-rise Buildings - Amendatory.** In high-rise buildings, work areas shall be provided with automatic sprinkler protection.

**804.2.1.1 Supplemental Automatic Sprinkler System Requirements - Amendatory.** Highrise building owners shall produce a copy of, or enter into an agreement with the City of Tulsa providing that the owner shall install an automatic fire sprinkler system throughout the building by a specific date, approved by the code official. The code official shall provide the form of agreement to be used by the owner. Once this agreement is fully executed, it shall be filed in land records maintained by the appropriate County Clerk prior to the issuance of any associated permit.

**Exception:** Buildings that comply with Title 14, Tulsa Revised Ordinances, Chapter 1, *ICC International Fire Code* 2018 Edition Section 1103.5.7, as amended.

**804.2.2 Groups A, B, E, F-1, H, I, M, R-1, R-4, S-1, and S-2 - Amendatory.** In buildings with occupancies in Groups A, B, E, F-1, H, I, M, R-1, R-4, S-1, and S-2, work areas that include exits or corridors shared by more than one tenant or that have exits or corridors serving an occupant load greater than thirty (30) shall be provided with automatic sprinkler protection, where the work area is required to be provided with automatic sprinkler protection in accordance with the International Building Code applicable to new construction.

**804.2.2.2 Group R-2 - Added.** Work areas within R-2 occupancies shall be provided with automatic sprinkler protection.

**804.2.3 Stories without openings - Amendatory.** Work located in stories without openings, as determined in accordance with the International Building Code, shall be sprinklered where the work area is required to be sprinklered under the provisions of the International Building Code for newly constructed buildings.

**804.2.4 Other Required Suppression Systems - Amendatory.** In buildings and areas listed in Table 903.2.11.6 of the International Building Code, work areas that have exits or corridors shared by more than one (1) tenant or that have exits or corridors serving an occupant load greater than thirty (30) shall be provided with

automatic sprinkler protection where the work area is required to be provided with automatic sprinkler protection in accordance with the International Building Code applicable to new construction.

**805.2 General - Amendatory.** The means of egress shall comply with the requirements of this section.

**Exception:** Means of egress conforming to the requirements of the building code under which the building was constructed shall be considered compliant means of egress if, in the opinion of the code official and the fire code official, they do not constitute a distinct hazard to life.

**904.1.1 High-rise Buildings - Amendatory.** In high-rise buildings, automatic fire sprinkler protection shall be provided in compliance with the requirements of Sections 804.2.1 and 804.2.1.1 of this code.

**1203.2 Fire Safety-General - Amendatory.** Every historic building that does not conform to the construction requirements specified in this code for the occupancy or use and that constitutes a distinct fire hazard as defined herein shall be provided with an approved automatic fire extinguishing system as determined appropriate in the written joint opinion of the code official and the fire code official. However, an automatic fire-extinguishing system shall not be used to substitute for, or act as an alternative to, the required number of exits from any facility.

**1203.12 Automatic Fire-Extinguishing Systems-General - Amendatory.** Every historical building that cannot be made to conform to the construction requirements specified in the International Building Code for the occupancy or use, and that constitutes a distinct fire hazard shall be deemed to be in compliance if provided with an approved automatic fire extinguishing system.

**Exception:** When an alternative life-safety system is approved in the written joint opinion of the code official and the fire code official.

**1303 House Mover License - Added.**

**1303.1 License Required - Added.** Every person who shall engage in the business of moving buildings or structures which require moving permits within the City of Tulsa shall obtain a license from the City of Tulsa Permit & Licensing Center. This license shall be granted upon the terms and conditions specified in this code, and shall be subject to denial, suspension, revocation or cancellation for any violation of this code, pursuant to the procedures specified in Title 21, Section 111, Tulsa Revised Ordinances.

**1303.1.1 Application for License - Added.** Any applicant seeking a house mover license shall, at the time of application, pay all required fees and deposits, as provided in Title 49, Tulsa Revised Ordinances, Chapter 3; present evidence of public liability insurance coverage; and post all required bonds. In addition the applicant shall file with the code official an affidavit of ownership, containing the business name to be used by the applicant, the names and addresses of all principals or officers in the business, and the names of all agents or employees having a proprietary interest in the business.

**1303.1.2 Licensee Responsibility - Added.** Every person licensed to engage in the business of house moving shall ensure that the licensee's agents and employees comply with all requirements imposed by this code. For purposes of denial, suspension,

revocation or cancellation of a license issued under authority of this code, the license holder shall have the same responsibility for all acts of the licensee's agents and employees as though such acts were performed by the licensee.

**1303.2 Equipment Identification - Added.** All prime movers, tractors, trucks and other motorized vehicles owned, leased, rented, borrowed or otherwise under the control of a licensed house mover and being used for the preparation of, or moving of a building or structure shall be plainly identified by the name and municipal license number of the house mover displayed on the door panels of such vehicle at all times. Identification markings shall consist of numbers and letters not less than two (2) inches in height and of a contrasting color. All moving beams and moving dollies shall be marked with the owner's name which shall be painted, stenciled, branded or bead welded on each item in letters not less than two (2) inches in height.

**1303.3 Bond Required - Added.** The bond to be given by a licensed house mover shall be executed to the City of Tulsa as provided in Title 49, Tulsa Revised Ordinances, Chapter 3, with a surety company authorized to do business in the state of Oklahoma. The bond shall be for the benefit of the City and any private person or corporation sustaining damages under the conditions of the bond. Any private person, corporation or limited liability company shall be entitled to sue for payment on the bond, in their own name. The bond shall be conditioned, among other things, that if such license shall be granted, the licensee shall in all respects comply with the ordinances of the City of Tulsa relating to the moving of buildings or structures and to the use or obstruction of the streets, highways and other places of the City, and that the licensee will save, indemnify and protect the City from all liability which may arise or be occasioned either directly or indirectly from the moving of any building or structure by such licensee, licensee's agents, servants, employees, workers, contractors or subcontractors. The bond shall be further conditioned that the licensee shall pay all damages which may be caused to any person or to any property, either public or private, within the City of Tulsa by the licensee or the licensee's agents, servants, employees, workmen, contractors or subcontractors and that the licensee shall pay for all damages to property of others caused by a moving operation while engaged in any work in connection with the moving of any building or structure, including any loss or damages which may be sustained because of the stoppage of any business or industry located along the route over which such building or structure shall be moved, caused by the operation of moving such building or structure.

**1303.4 Cash Deposits - Added.** Prior to the issuance of a house mover license, the license applicant shall deposit with the City of Tulsa a sum of money as provided in Title 49, Tulsa Revised Ordinances, Chapter 3, for the purpose described in this Section 1303.4 of this code. This deposit, or any part of it, shall be used to reimburse the City of Tulsa for actual damages sustained by any public property owned by the City of Tulsa as a direct result of any moving operation under the supervision or control of the house mover. It shall be the duty of the Director of Planning and Development, or the Director's designated representative, to immediately repair damages to traffic control devices, which are necessary to operate properly for public safety. Any charges for such repairs will be taken from the cash deposit. Further, the Director of Planning and Development, or the Director's designated representative, will advise the licensee of any other damages to public property and, in the event that the licensee shall fail to

repair or restore all damaged public property within two (2) working days after receipt of such notice, any portion or all of such deposit may be used to reimburse the City of Tulsa for damages to public property. In the event such deposit is insufficient to make such repairs, the City of Tulsa may proceed against the surety on the bond posted by the licensed house mover for any and all expenses incurred in excess of the licensee's cash deposit. Such deposit shall also be a guarantee to cover delinquent or unpaid permit fees, zoning clearance fees, and all costs incurred in plugging sanitary sewer lines serving the house being moved and any such fees may be deducted from the cash deposit. Whenever any portion of such cash deposit is used under the direction of the code official, the Director of Planning and Development, or the Director's designated representative, shall notify the license holder in writing of the amount used in making such repairs, reimbursements or replacements specified in this Section 1303.4 and instruct the license holder to deposit a corresponding amount so as to keep the deposit at the required amount at all times. No work preparation permits or moving permits shall be issued by the code official until such additional deposit has been made. However, in the event it is necessary for the City to use all or any portion of such deposit as herein provided, then and in that event the license holder shall pay the sum of money as provided in Title 49, Tulsa Revised Ordinances, Chapter 3, which sum is declared to be the amount necessary to defray the reasonable cost and expense to the City in enforcing this provision, including bookkeeping and auditing expenses. Such sum of money as provided in Title 49, Tulsa Revised Ordinances, Chapter 3, shall be deducted from the deposit of the license holder and forthwith paid to the City of Tulsa upon the contingencies stated in this Section 1303.4.

**1303.5 Insurance - Added.** Every person who shall engage in the business of moving buildings and structures within the City of Tulsa shall maintain a current certificate of insurance on file in the office of the City Clerk of the City of Tulsa. Such insurance shall indemnify the City and the public for claims arising out of work to be performed under such license in amounts as provided in Title 49, Tulsa Revised Ordinances, Chapter 3.

**1303.6 City Council Approval Required - Added.** The City Council shall hold a hearing on each application transmitted from the City of Tulsa's Permit & License Center on any proposed house moving. The City Council shall approve the application as submitted or as amended, or deny the application.

**1303.6.1 Notice of Public Hearing Required - Added.** Notice shall be given of the public hearing before the City Council for the proposed move.

**1.** Upon acceptance of a permit application the Development Services Division of the Planning and Development Department of the City of Tulsa shall:

**1.1.** Require the applicant to furnish the names and mailing addresses of all owners of the real property, as shown by the relevant county's tax records, included in the proposed route of travel from the lot of origin to the first arterial street, as identified in the City's Major Street and Highway Plan, and from the last arterial street as defined in the Major Street and Highway Plan, to the final destination, if applicable;

**1.2.** Schedule a hearing date before the City Council;

**1.3.** Mail written notice to all owners of the real property included in the proposed route of travel from the lot of origin to the first arterial street and from the last

arterial street to the final destination, if applicable, indicating that an application for a house moving permit has been requested and when a hearing will be held.

**2.** Upon filing an application for a permit with the Development Services Division of the Planning and Development Department of the City of Tulsa, the house moving contractor shall post the affected property at least five (5) days before the date of the hearing. The notice shall state the date, time, and place of the hearing; the proposed move date; the name of the house moving Company; and other such information as the code official may deem necessary to provide adequate and timely public notice.

**1303.7 House Moving Permit - Added.**

**1303.7.1 Work Preparation Permit Required - Added.** No person, firm, corporation or limited liability company shall prepare a building or structure to be moved or relocated within the corporate limits of the City of Tulsa without a work preparation permit issued by the code official when:

**1.** The building or structure, when loaded for transit, has a width of more than fourteen (14) feet at its widest point as measured at the point of greatest projection at a right angle to the direction of travel; or

**2.** The building or structure, when loaded for transit, is more than thirteen (13) feet, six (6) inches high as measured from the roadway to the highest point on the roof; or

**3.** The building or structure is more than thirty (30) feet long.

**1303.7.1.1 Exclusions - Added.** No moving permit under the provisions of this code shall be required for the movement of mobile homes, structures, vehicles or trailers, which are designed to utilize integral wheels for movement. Structures which are to be moved along the streets of the City of Tulsa, which are not expressly excluded from the terms of this code, shall be moved only after obtaining the approval of the code official.

**1303.7.2 Application for Work Preparation Permit - Added.** The licensed house mover, or his authorized agent, shall file with the code official a written application for a moving permit, stating:

**1.** The type or kind of building to be moved;

**2.** The extreme dimensions of the building when loaded for transit, to include height, length and widths at both the base of the building walls and the widest point of overhanging eaves;

**3.** The present location of the building;

**4.** The street address of destination point within City or departure point from City;

**5.** The detailed description of the proposed route of travel to destination or to departure from the City limits;

**6.** The zoning clearance permit number, if applicable;

**7.** The building permit number for the destination point, if applicable;

**8.** The date and time requested for start and completion of the move;

**9.** The plumbing permit number for the sanitary sewer plug at the address of the building to be moved; and

**10.** Whether or not a single building is to be sectioned into parts for movement, and the dimensions of each section, if applicable.

Each application shall include a drawn diagram, clearly dimensioned, that states the widths at both the base of the building walls and at the widest point of overhanging eaves or other projection(s); the diagram shall show the roof ridgeline(s) and direction of travel during the move.

**1303.7.3 Self-Certification of Route - Added.** Every licensed house mover shall submit a written moving route certifying that the route is passable without obstructions such as but not limited to signs, trees, and high-line wires. If it is necessary to move any building or structure under an overpass, applicant shall certify that the height of the overpass is sufficient to accommodate the loaded height. The house mover is responsible for working with the utility companies to move lines or with the City of Tulsa to move/re-position signs or traffic lights, if necessary.

**1303.7.4 Display of Work Preparation Permit - Added.** Every work preparation permit shall be securely attached to the front of the building before preparations for movement or relocation have been initiated. The work preparation perm it shall remain attached to the building until the building has been moved to its final destination.

**1303.7.5 Pre-Move Inspection Required - Added.** No building or structure shall be moved to a new location within the corporate limits of Tulsa until such building has been inspected by the code official and found to be structurally sound.

**1303.7.6 Building Code Application - Added.** No building or structure shall be relocated within the City of Tulsa unless, in the opinion of the code official, such building can be made to comply with the requirements of this code which would govern the requirements for the erection of a new building at the proposed new location.

**1303.7.7 Zoning Clearance Permit Required - Added.** No building or structure shall be relocated within the corporate limits of the City of Tulsa without a zoning clearance permit as required by the Zoning Code of the City of Tulsa, Title 42, Tulsa Revised Ordinances.

**1303.8 Moving Permit - Added.**

**1303.8.1 Permit Required - Added.** Prior to moving any building or structure, or portion thereof, onto any City of Tulsa right-of-way and over or along such right-of-way, a moving permit for each building, structure, or portion thereof, authorizing each scheduled move, shall be obtained from the code official.

**1303.8.2 Application for Moving Permit - Added.** At least five (5) working days prior to the anticipated movement of any building or structure on any public right-of-way, the work preparation permit holder shall apply for a moving permit at the code official's office. An application for the permit shall contain the following information and attachments:

**1.** The work preparation permit number;

**2.** The street address of destination point within City or departure point from City;

**3.** The date and time requested for start and completion of the move.

**1303.9 Duties of Code Official - Added.** When a moving permit application is filed with the code official, it shall be the code official's duty to immediately notify the Fire Chief, the Chief of Police, and City of Tulsa Traffic Engineering.

**1303.10 Duties of the Permit Holder - Added.** It shall be the duty of the permit holder to:

1. Ensure an approved final inspection for the sewer plug was conducted prior to the razing of the structure;
2. Request an inspection of the structure when in the loaded position prior to the move;
3. Provide a 48-hour notice of the date and time of the move to the Permit Center; and
4. Give a 2-hour cancellation notice to the Permit Center in the event of cancellation of the move date.

**1303.11 Display of Moving Permit - Added.** The moving permit shall be placed at a conspicuously visible location and securely attached to the front of the building being moved, as determined by the direction of travel. The moving permit shall show the permit number, approved move date, scheduled time for the move and approved route for the move.

**1303.12 Oversized Buildings and Structures - Added.**

**1303.12.1 Oversized Buildings and Structures Defined - Added.** For purposes of this code, an oversized building or structure is defined as either:

1. A building or structure of a height of more than sixteen (16) feet from the ground to the highest point of the roof, as measured in the loaded condition;
2. A building or structure, when loaded for transit, having a width of more than thirty-two (32) feet at its widest point, as measured at the point of greatest projection at a right angle to the direction of travel; or
3. A building or structure, when loaded for transit, has a length not including the towing vehicle of more than sixty-five (65) feet as measured along the greatest projection in the direction of travel.

**1303.12.2 Movement of Oversized Buildings - Added.** A moving permit for an oversized building or structure, as defined in this code, shall not be issued by the code official until the code official receives written acknowledgment of clearance from overhead wire and cable right-of-way users, Tulsa Fire Department, Tulsa Police Department and Traffic Engineer stating that satisfactory arrangements have been made to ensure that all overhead wires, signals, and other facilities will either clear the moving building or that arrangements have been made to move such obstructions.

**1303.12.3 Routing Survey and Special Fee Required - Added.** An application for a moving permit to move an oversized building or structure as defined in this code shall be accompanied by a fee as provided in Title 49, Tulsa Revised Ordinances, Chapter 3. Such fee shall be in addition to all other permit fees required by this code.

**1303.13 Conduct of House Moving Operations - Added.**

**1303.13.1 Hours of Movement - Added.** The movement of any building or structure shall be restricted to the hours of 9:30 a.m. to 11:30 a.m. and 1:30 p.m. to 3:30 p.m. Monday through Friday, excluding holidays.

**1303.13.2 Lights Required - Added.** In the event the move cannot be completed during the hours specified in Section 1303.13.1 of this code, every building or structure, which occupies or travels upon any portion of a public right-of-way within the one-half (½) hour after sundown or within the one-half (½) hour before sunrise shall be marked

with at least six (6) continuously burning lights. One light shall be placed at each corner of the structure, and one light shall be placed in the middle of each side of the structure as determined by the direction of travel. Such lights shall be attached to indicate extreme width and length of the building. The color of the lights shall comply with the laws of the state of Oklahoma.

**1303.13.3 Motor Escort and Police Escort Required - Added.** Each building or structure requiring a permit to be moved shall be escorted by a Motor Escort service and Police Escort at all times while traveling on any public street or right-of-way within the City of Tulsa. The Police Escort is to be arranged through the Special Events Coordinator. Associated fees incurred with such service will be handled through the Special Events Office, separate from the moving permit fees. City of Tulsa personnel will provide escort on an "as needed" basis as determined by City of Tulsa Traffic Engineering. When this escort is required, an hourly fee plus mileage shall be collected to defray expenses incurred by the City, as provided in Title 49, Tulsa Revised Ordinances, Chapter 3.

**1303.13.4 Time Limitations on Moving Permits; Right-of-Way Changes - Added.** The work of preparing a building for moving and the actual moving of any building or structure on, over, along or across any street or highway shall be completed within three (3) months after the issuance of a work preparation permit. A moving permit shall be obtained in accordance with the requirements of this code prior to the moving of any building or structure on, over, along or across any street or highway. If a move is not performed as scheduled on the moving permit, a new moving permit shall be obtained from the code official without the payment of any additional fee; provided that if an approved right-of-way is found to be blocked in a manner which prevents its use at the time authorized on the right-of-way permit, an on-the-spot change in the scheduled right-of-way route may be obtained from the Tulsa Fire Chief. It shall be the duty of the Fire Chief to identify the alternate route authorized for use, and such alternate route shall be noted for record in the Fire Chiefs watch log. The absence of any entry in the Fire Chiefs watch log approving an alternative route shall constitute prima facie evidence that any departure from the route shown on the moving permit was unauthorized.

**1303.14 Moving Buildings or Structures into the City of Tulsa from Points Outside Municipal Limits - Added.** Moving buildings or structures into the City of Tulsa from points outside the municipal limits shall be approved by the code official. The code official shall collect an inspection fee as provided in Title 49, Tulsa Revised Ordinances, Chapter 3, for the round trip to and from the structure and 175 E 2nd St., Tulsa, Oklahoma. No building or structure which is destined to a point outside the corporate limits of the City of Tulsa shall be moved from a point outside the City of Tulsa on, over, along or across any street or highway in the City of Tulsa.

**1303.15 Delays En route; Delay in Movement After Preparation - Added.** When a structure has been prepared for movement, but the actual movement has not occurred within five (5) calendar days, all floor and first story openings into the building or structure shall be sealed with plywood or its equivalent in a manner sufficient to prevent the entry of children into the building or structure. When the movement of any building or structure is temporarily halted en route, and the building or structure is parked on private property for more than five (5) calendar days, such

building or structure shall be similarly secured, or, in the alternative, a full-time guard shall be maintained at the location. A building or structure shall not be parked or stored on a public right-of-way, or any portion thereof, without the prior approval of the Mayor or the Mayor's authorized representative. A building or structure shall not be parked or stored on private property without the property owner's prior consent and knowledge and without a zoning clearance permit issued by the code official.

**1303.16 Required Right-of-Way Passage Clearance; Obstructions in Right-of-Way - Added.** Authorization obtained under this code for the use of public rights-of-way is conditioned upon observance of the following minimum requirements:

**1.** Movement on Certain Streets Restricted. A building or structure shall not be moved on, over, along or across any street or highway which is designated as either a primary or secondary arterial street on the City of Tulsa Major Street and Highway Plan, unless such building or structure shall be of a width so that there shall be an unobstructed passageway of at least ten (10) feet in width for vehicular traffic at all times during the movement of vehicular traffic in such street or highway.

**2.** Poles and Wires. Whenever it is necessary to raise or cut any overhead wire or cable to facilitate the moving of any structure, it shall be the duty of the house mover to give the overhead wire or cable right-of-way user owning, maintaining, or operating such poles, wires or cables at least twelve (12) hours written notice of when and where the removal of such poles or the raising or cutting of such wires or cables will be necessary. In cases where the wires or cables to be raised or cut contain either fire or police telephone or alarm systems, the Fire or Police Chief, as appropriate, shall be notified. After service of the required notice, it shall be the duty of the overhead wire and cable right-of-way user owning, operating or maintaining such poles, wires or cables to furnish competent workers to remove such poles or to raise or cut such wires or cables. The licensed mover shall be responsible for paying all actual expenses incurred by any overhead wire and cable right-of-way user in removing, raising or cutting any poles, wires or cables.

**3.** Trees and Fixtures. No tree on any street shall be injured or removed nor the branches of any tree cut or trimmed without the prior consent of the affected property owner.

**4.** Obstruction of Railway Tracks. If it is necessary to move any building or structure across any railway tracks, it shall be done in such a manner and at such time as to eliminate any interference with the operation of trains.

**1303.17 Additional Safety Requirements Authorized - Added.** The requirements of this code are to be construed as minimum requirements. In individual cases, the code official shall have the power and authority to require the use of additional precautionary safety measures other than those specifically identified in this code.

**1303.18 Required Inspection and Repairs - Added.** The code official shall be authorized to inspect, or to require approved professionals to inspect at the expense of the owner, the various structural parts of a relocated building to verify that structural components and connections have not sustained structural damage. Any repairs required by the code official, as a result of such inspection, shall be made prior to the

final approval. The code official shall be authorized to inspect the site of origin two (2) weeks after the move date to confirm that the lot has been cleared, cleaned, and safe from debris. In addition, the site must be properly vegetated to prevent soil erosion.

**1303.19 Violations and Penalties - Added.**

**1303.20 Fines and Imprisonment Authorized - Added.** Any person, firm, corporation or limited liability company convicted of a violation of any provision of Sections 1301 et seq. of this code or failing to comply with any requirements or conditions imposed by Sections 1301 et seq. of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not less than Three Hundred Dollars ($300.00) nor more than Five Hundred Dollars ($500.00), excluding costs, fees and assessments, or by imprisonment for a period not exceeding ninety (90) days, or by both such fine and imprisonment. For purposes of this section, such person, firm, corporation or limited liability company shall be deemed guilty of a separate offense for each day a violation is permitted to continue after receipt of a written notice of violation.

**1303.21 Revocation or Suspension of License Authorized - Added.** Notwithstanding the imposition of any fine or imprisonment authorized by this code, the code official shall have the power and authority to deny, suspend, revoke or cancel the license of any person, firm, corporation or limited liability company which violates any provision of this code, or fails to comply with any requirements or conditions imposed by this code.

**1401.2 Applicability - Amendatory.** Existing buildings or existing structures, for which the initial building permit was issued prior to January 1, 1994, in which there is work involving additions, alterations or changes of occupancy shall be made to conform to the requirements of this chapter or the provisions of Chapters 5 through 13. The provisions of Sections 1401.2.1 through 1401.2.5 of this code shall apply to existing occupancies that will continue to be, or are proposed to be, in Groups A, B, E, F, I-2, M, R and S. For the purposes of this Chapter 14, all references to Group S-1 shall apply to Group U. These provisions shall not apply to buildings with occupancies in Group H or Group I-1, I-3, or I-4.

**Chapter 16 Referenced Standards - Amendatory.**

| | | |
|---|---|---|
| ASME | American Society of Mechanical Engineers<br>3 Park Avenue<br>New York, NY 10016 | |
| Standard reference number | Title | Referenced in code section number |
| A17.3-11 | Safety Code for Existing Elevators and Escalators . . . | 902.1.2 |

**(1)** Substitute "International Building Code®" with "IBC®-18 International Building Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**(2)** Substitute "International Energy Conservation Code®" with "IECC®-06 International Energy Conservation Code®".

**(3)** Substitute "International Fire Code®" with "IFC®-18 International Fire Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**(4)** Substitute "International Fuel Gas Code®" with "IFGC®-18 International Fuel Gas Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**(5)** Substitute "International Mechanical Code®" with "IMC®-18 International Mechanical Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**(6)** Substitute "International Plumbing Code®" with "IPC®-18 International Plumbing Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**(7)** Substitute "International Residential Code®" with "IRC®-09-International Residential Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**(8)** Substitute "National Electrical Code®" with "70-17 National Electrical Code® as adopted and modified by the State of Oklahoma through the OUBCC".

**Appendices A, B and C - Deleted.** The following appendices of the ICC International Existing Building Code, 2018 Edition, are intentionally deleted from this code:

| | |
|---|---|
| APPENDIX A | GUIDELINES FOR THE SEISMIC RETROFIT OF EXISTING BUILDINGS |
| APPENDIX B | SUPPLEMENTARY ACCESSIBILITY REQUIREMENTS FOR EXISTING BUILDINGS AND FACILITIES |
| APPENDIX C | GABLE END RETROFIT FOR HIGH WIND AREAS |

*(Ord. No. 20245, 20827, 21781; Ord. No. 22760, § 1, 9-20-2012; Ord. No. 23001, § 1, 12-12-2013; Ord. No. 23396, § 1, 10-29-2015; Ord. No. 24829, § 2, 5-25-2022)*

## CHAPTER 5. RESIDENTIAL SWIMMING POOLS, SPAS AND HOT TUBS*

Section 500. Regulations for residential swimming pools, spas and hot tubs.
Section 501. Swimming pools.
Section 502. Spas and hot tubs.
Section 503. Barrier requirements.
Section 504. Entrapment protection for swimming pool and spa suction outlets.
Section 505. Atmospheric vacuum relief system required.
Section 506. Dual drain separation.
Section 507. Pool cleaner fittings.
Section 508. Flood hazard areas.
Section 509. Referenced standards.
Section 510. Violations and penalty.

### Section 500. Regulations for residential swimming pools, spas and hot tubs.

The provisions of this chapter shall control the design and construction of swimming pools, spas and hot tubs installed in or on the lot of a one- or two-family dwelling.

*(Ord. No. 23601, § 1, 11-30-2016)*

### Section 501. Swimming pools.

**A. In-ground pools.** In-ground pools shall be designed and constructed in conformance with *American National Standards Institute/National Spa and Pool Institute* (ANSI/NSPI) Standard Reference Number 5-99.

**B. Above-ground and on-ground pools.** Above-ground and on-ground pools shall be designed and constructed in conformance with *American National Standards Institute/National Spa and Pool Institute* (ANSI/NSPI) Standard Reference Number 4-99.

*(Ord. No. 23601, § 1, 11-30-2016)*

### Section 502. Spas and hot tubs.

**A. Permanently installed spas and hot tubs.** Permanently installed spas and hot tubs shall be designed and constructed in conformance with *American National Standards Institute/National Spa and Pool Institute* (ANSI/NSPI) Standard Reference Number 3-99.

**B. Portable spas and hot tubs.** Portable spas and hot tubs shall be designed and constructed in conformance with *American National Standards Institute/National Spa and Pool Institute* (ANSI/NSPI) Standard Reference Number 6-99.

*(Ord. No. 23601, § 1, 11-30-2016)*

### Section 503. Barrier requirements.

**A. Application.** These design controls are intended to provide protection against potential drowning and near drowning by restricting access to swimming pools, spas and hot tubs.

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***Editor's note—**Ord. No. 23601, § 1, adopted November 30, 2016, amended chapter 5 in its entirety to read as herein set out. Former chapter 5, §§ 500—508, pertained to similar subject matter. See Code Comparative Table for complete derivation.

**B. Indoor and outdoor swimming pool.** An indoor or outdoor swimming pool, including an in-ground, above-ground or on-ground pool, hot tub or spa shall be provided with a barrier, which shall comply with the following:

**1.** Private swimming pools, hot tubs and spas, containing water more than twenty-four (24) inches in depth shall be completely surrounded by a fence or barrier at least forty-eight (48) inches in height above the finished ground level measured on the side of the barrier away from the pool.

**2.** The barrier shall have no opening in the barrier through which a spherical object four (4) inches in diameter can pass.

**3.** Access shall be restricted as follows:

**a.** Gates and doors in such barriers shall be self-closing and self-latching.

**b.** Where the self-latching device is less than fifty-four (54) inches above the bottom of the gate, the release mechanism shall be located on the poolside of the gate. Self-closing and self-latching gates shall be maintained such that the gate will positively close and latch when released.

**c.** Hinged doors and gates shall open outward from the pool.

**4.** For above-ground swimming pools where the sides of the pool are used as the barrier, any access ladder or steps shall be removable without tools and secured in an inaccessible position with a latching device not less than fifty-four (54) inches above the ground when the pool is not in use.

**5.** Access gates shall comply with the requirements of Section 503.B, Items 1. through 5., and shall be equipped to accommodate a locking device.

**a.** Pedestrian access gates shall open outward away from the pool and shall be self-closing and have a self-latching device.

**b.** Gates other than pedestrian access gates shall have a self-latching device.

**c.** Where gates are not equipped with a locking device, and the release mechanism of the self-latching device is located less than fifty-four (54) inches from the bottom of the gate, the release mechanism and openings shall comply with the following:

i. The release mechanism shall be located on the pool side of the gate at least three (3) inches below the top of the gate; and

ii. The gate and barrier shall have no opening larger than one-half (½) inch within eighteen (18) inches of the release mechanism.

**6.** Where a wall of a dwelling serves as part of the barrier, one (1) of the following conditions shall be met:

**a.** The pool shall be equipped with an approved safety pool cover that meets all requirements of ASTM International, formerly the *American Society for Testing and Materials* (ASTM) Specifications F 1346-91.

**b.** The pool shall incorporate removable mesh pool fencing that meets ASTM International, formerly the *American Society for Testing and Materials* (ASTM) Specifications F 2286 standards in conjunction with a gate that is self-closing and self-latching and can accommodate a key lockable device.

**c.** The residence shall be equipped with exit alarms on those doors providing direct access to the pool.

**d.** All doors providing direct access from the home to the swimming pool shall be equipped with a self-closing, self-latching device with a release mechanism placed no lower than fifty-four (54) inches above the floor.

**e.** Swimming pool alarms shall be placed in pools, which will sound upon detection of accidental or unauthorized entrance into the water. These alarms shall meet and be independently certified to the *American Society for Testing and Materials* (ASTM) Standard F 2208 "Standard Specification for Pool Alarms," which includes surfaced motion, pressure, sonar, laser, and infrared type alarms.

**f.** Other means of protection, may be substituted if the degree of protection afforded is equal to or greater than that afforded by any of the devices set forth above, and have been independently verified by an approved testing laboratory as meeting standards for those devices established by the *ASTM International*, formerly the *American Society for Testing and Materials* (ASTM) or the *American Society of Mechanical Engineers* (ASME), or as approved by the Building, Housing and Fire Prevention Appeals Board.

**Exception:** Swimming pools, spas or hot tubs with a safety cover, which complies with *ASTM International*, formerly the *American Society for Testing and Materials* (ASTM) F 1346-91, as listed in Section 107, shall be exempt from these provisions.

*(Ord. No. 23601, § 1, 11-30-2016)*

**Section 504. Entrapment protection for swimming pool and spa suction outlets.**

**A. General.** Suction outlets shall be designed to produce circulation throughout the pool or spa. Single-outlet systems, such as automatic vacuum cleaner systems, or multiple suction outlets, whether isolated by valves or otherwise, shall be protected against user entrapment.

**B. Entrapment avoidance.** Suction outlets shall be designed and installed in accordance with ANSI/APSP-7.

**C. Suction fittings.** Pool and spa suction outlets shall have a cover that conforms to *American National Standards Institute/National Spa and Pool Institute* (ANSI/NSPI) Standard Reference Number A112.19.8-2007, entitled *Suction Fittings for Use in Swimming Pools, Wading Pools, Spas, and Hot Tubs*, or an eighteen (18) inch by twenty-three (23) inch (eighteen (18) inches x twenty-three (23) inches) drain grate or larger, or an approved channel drain system.

**Exception:** Surface pool skimmers do not have to conform to ANSI/NSPI Standard.

*(Ord. No. 23601, § 1, 11-30-2016)*

**Section 505. Atmospheric vacuum relief system required.**

Pool and spa single- or multiple-outlet circulation systems shall be equipped with atmospheric vacuum relief with a manual release button. The vacuum relief system shall include at least one (1) approved or engineered method of the type specified as follows:

**A.** Safety vacuum release system conforming to *American Society of Mechanical Engineers* (ASME) Standard Reference Number A112.19.17, entitled *Manufacturers Safety Vacuum Release Systems (SVRS) for Residential and Commercial Swimming Pool, Spa, Hot Tub and Wading Pool*; or

**B.** A Gravity Drainage circulation system which is designed by an Engineer licensed in the state of Oklahoma.

*(Ord. No. 23601, § 1, 11-30-2016)*

### Section 506. Dual drain separation.

Single or multiple pump circulation systems shall have a minimum of two (2) suction outlets of the approved type. A minimum horizontal or vertical distance of three (3) feet shall separate the outlets. These suction outlets shall be piped so that water is drawn through them simultaneously through a vacuum-relief-protected line to the pump or pumps.

*(Ord. No. 23601, § 1, 11-30-2016)*

### Section 507. Pool cleaner fittings.

Where provided, vacuum or pressure cleaner fitting(s) shall be located in an accessible position(s) at least six (6) inches and not more than twelve (12) inches below the minimum operational water level or as an attachment to the skimmer(s).

*(Ord. No. 23601, § 1, 11-30-2016)*

### Section 508. Flood hazard areas.

**508.1 General.** The provisions of Section 508 shall control the design, construction and installation of pools and spas in flood hazard areas.

**508.2 Determination of impacts based on location.** Pools and spas located in flood hazard areas indicated in Title 51 TRO Chapters 1 and 2 shall comply with Section 508.2.1 or 508.2.2.

**Exception:** Pools and spas located in riverine flood hazard areas that are outside of designated floodways.

**508.2.1 Pools and spas located in designated floodways.** Where pools and spas are located in designated floodways, documentation shall be submitted to the code official that demonstrates that the construction of the pools and spas will not increase the design flood elevation at any point within the jurisdiction.

**508.2.2 Pools and spas located where floodways have not been designated.** Where pools and spas are located where design flood elevations are specified but floodways have not been designated, the applicant shall provide a floodway analysis that demonstrates that the proposed pool or spa and any associated grading and filling will not increase the design flood elevation more than one (1) foot at any point within the jurisdiction.

**508.3 Protection of equipment.** Equipment shall be elevated at least one (1) foot above the design flood elevation or be anchored to prevent flotation, and protected to prevent water from entering or accumulating within the components during conditions of flooding. An elevation certificate verifying the lowest elevation of mechanical, electrical, or utility equipment servicing the pool or spa shall be provided to the code official for approval pursuant to Title 51 TRO Chapter 2 Section R109.1.3.1.

*(Ord. No. 23601, § 1, 11-30-2016)*

## Section 509. Referenced standards.

Within this chapter, the following standards are specifically referred to, adopted and made a part of this chapter, as if fully set out, with amendments thereto, to read as follows:

| | |
|---|---|
| **ANSI** | American National Standards Institute<br>11 West 42nd Street<br>New York, NY 10036 |
| **NSPI** | National Spa and Pool Institute<br>2111 Eisenhower Avenue<br>Alexandria, VA 22314 |
| ANSI/NSPI Standard reference number | Title |
| 3-99<br>4-99<br>5-99<br>6-99<br>5-2003<br>A112.19.8-2007 | Standard for Permanently Installed Residential Spas<br>Standard for Above-ground/On-ground Residential Swimming Pools<br>Standard for Residential In-ground Swimming Pools AG103.1<br>Standard for Residential Portable Spas<br>Standard for Residential In-ground Swimming Pools<br>Suction Fittings for Use in Swimming Pools, Wading Pools, Spas, and Hot Tubs |
| **ASTM** | ASTM International<br>Formerly the American Society for Testing and Materials<br>100 Barr Harbor Drive<br>West Conshohocken, PA 19428 |
| ASTM Standard reference number | Title |
| F1346-91 (2003) | Performance Specification for Safety Covers and Labeling Requirements for All Covers for Swimming Pools, Spas and Hot Tubs |
| **ASME** | American Society of Mechanical Engineers<br>Three Park Avenue<br>New York, NY 10016-5990 |
| ASME Standard reference number | Title |
| A112.19.17 | Manufacturers Safety Vacuum Release Systems (SVRS) for Residential and Commercial Swimming Pool, Spa, Hot Tub and Wading Pool |

*(Ord. No. 23601, § 1, 11-30-2016)*

## Section 510. Violations and penalty.

It shall be unlawful and a misdemeanor offense for any person, firm, corporation, limited liability company or other entity to violate any of the provisions of this code, fail to comply with any of the requirements thereof, or to erect, construct, alter, repair or change the occupancy of any building or structure in violation of an approved plan or directive of the building official or of a permit or certificate issued under the provisions of this code. Any person, firm, corporation, limited liability company or other entity convicted of a violation of this code shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, or continued, shall be deemed a separate offense.

*(Ord. No. 23601, § 1, 11-30-2016)*

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## CHAPTER 6. SELF-CERTIFICATION PROGRAM FOR PLAN REVIEW

Section 601. Title; overview and purpose.
Section 602. Definitions.
Section 603. Approved professionals.
Section 604. Procedures.
Section 605. Approved professional ethics.
Section 606. Board of Appeals.

### Section 601. Title; overview and purpose.

**A. Title.** This chapter may be cited as the "self-certification program for plan review."

**B. Overview and purpose.** The self-certification program for plan review (the "SC program") is hereby implemented to establish an alternate method for building permit plan review and approval. The SC program offers persons or entities who plan to apply for a building permit for residential, commercial or industrial projects the option to use plan review services of certain private-sector approved professionals (as defined below). The development services department will accept certifications as to Building Code compliance by such approved professionals, in lieu of such services by the development services department staff, except in situations where there is concern as to whether a particular application should be approved or if the development services department determines that a particular application merits staff review before issuing a building permit.

*(Ord. No. 24061, § 1, 12-19-2018)*

### Section 602. Definitions.

For the purposes of this chapter and for the manual, as defined below, the following words and terms have the meanings ascribed to them by this section; words and terms not defined here have the meanings given to them in the applicable building codes, in the laws of the State of Oklahoma, and by common and ordinary usage:

**A. Agent:** A person authorized to act on behalf of another person or entity concerning a construction project.

**B. Applicant:** A person, firm, corporation, or other legal entity, acting personally or as an agent, desiring to construct, alter, replace or repair any building or structure located on real property and making application for a building permit.

**C. Approved professional:** A professional architect, landscape architect or engineer licensed or registered with the respective licensing authority regulating such profession in the State of Oklahoma, in good standing with such licensing authority.

**D. Authorized representative:** An individual, company, firm, or organization that is authorized by an Owner to apply for a building permit.

**E. Board:** The Board of Appeals established by the provisions of Ordinance No. 23394, codified at Title 51 of the Tulsa Revised Ordinances in Chapter 1.

**F. Building Code or Building Codes:** The various building and construction codes adopted by the City from time to time and codified in the Tulsa Revised Ordinances, including, without limitation, the Building Code prescribed by Title 51, the Electrical

Code prescribed by Title 52, the Property Maintenance Code prescribed by Title 55, the Plumbing Code prescribed by Title 56, the Mechanical Code prescribed by Title 59, and any applicable State Building Codes.

**G. Building Official:** The official or his/her designee authorized to administer and enforce the Building Codes.

**H. Building permit:** Formal written permission by the City of Tulsa to perform construction, alteration, repair or related activities within the municipal limits of the City of Tulsa or within its jurisdictional control, as required by ordinance.

**I. Contractor:** The person, firm, corporation, or other legal entity engaged in any aspect of construction of a building or structure, or a part thereof, including associated site improvements.

**J. Developer:** A person, firm, corporation or other legal entity that is either an owner of real property or the owner of an existing building or other improvement which is or which will be the subject of a permitted construction project, or under contract with the owner thereof to commence and complete a particular construction project or improvement to real property.

**K. Development Services Department:** The department of the City of Tulsa having jurisdiction and control over the issuance of building permits, construction and development permits, occupancy permits, and similar permits and approvals for the construction of buildings and improvements.

**L. Fee:** The charge to applicants for permits issued by the City of Tulsa as provided in Title 49 of the Revised Ordinances of the City of Tulsa.

**M. Lessee:** A person, firm, corporation or other legal entity that has the right to the use and occupancy of real property or a building, or a part thereof, pursuant to a written lease, according to the terms of such lease.

**N. Manual:** The Self-Certification Building Permit Program Manual created by the Development Services Department and approved by the Development Services Director detailing the SC program, which shall include the policies and procedures related to the program.

**O. Ordinance:** A legislative act of the City Council of the City of Tulsa which has become effective in accordance with the amended Charter of the City of Tulsa.

**P. Owner:** A property owner, building owner or project owner, as defined herein, and as may be applicable.

**Q. Owner, building:** A person, firm, corporation, or other legal entity possessing an ownership interest in a building or other structure.

**R. Owner, project:** A person, firm, corporation, or other legal entity, possessing, or who/which will acquire an ownership interest in real property or a building or other structure upon completion of a project.

**S. Owner, property:** A person, firm, corporation, or other legal entity possessing an ownership interest in real property.

**T. Program:** The administrative program to issue a building permit based on self-certification by an approved professional, as authorized by Part 2-Administration and Enforcement of the International Building Code, as amended from time to time, and which is referred to in this chapter as the "SC program".

**U. Project:** An organized undertaking at a specific location to complete pre-determined objectives for the planning, design, construction, repair, improvement or expansion of buildings or facilities, as detailed in construction plans, specifications and other related documents.

**V. Self-certification or statement of self-certification:** An official determination and declaration by an approved professional that the plans, specifications and other construction documents for a project for which a building permit is sought are in compliance with the Building Codes; and upon such certification, that the City of Tulsa may, in reliance of such certification, issue a building permit and conduct inspections without the City of Tulsa Development Services Department having reviewed such plans, specifications and other construction documents for code compliance. The approved professional so certifying shall bear the legal responsibility for compliance with the Building Codes.

**W. Self-certified building permit application:** The written application for a Building Permit submitted to the Development Services Department, which shall include a statement of self-certification, other required certifications, forms, checklists, plans, specifications and other documents as required by this chapter and/or the manual, in such format(s) as determined by the Development Services Department.

**X. Special inspections:** Field inspections of certain aspects of a project, both structural and non-structural in nature, in accordance with Chapter 17 of the International Building Code which requires specialized qualified expertise.

**Y. State Building Code:** The current version of any building code(s) adopted pursuant to state law and/or the by the Oklahoma Uniform Building Code Commission, including, but not limited to, the building codes contained in Title 748 at Chapter 20 of the Oklahoma Administrative Code.

**Z. State law:** Statutes of the State of Oklahoma or applicable provisions of the Oklahoma Administrative Code.

**AA. State license:** A license issued pursuant to the law of the State of Oklahoma to practice the following professions: Architecture, Landscape Architecture, or Engineering. Each State License must be current.

**BB. TRO:** The Revised Ordinances of the City of Tulsa.

*(Ord. No. 24061, § 1, 12-19-2018)*

### Section 603. Approved professionals.

**A. General.** An approved professional shall provide evidence of current licensure in the State of Oklahoma with each building permit application submitted to the SC program.

**B. Approved professional requirements.** An approved professional shall submit the following information and documents to the Development Services Department at the time of submission of a self-certified building permit application:

**1.** A copy of the approved professional's State license for which the individual will be providing services or proof of current licensing in the State of Oklahoma as an Architect, Landscape Architect or Engineer.

**2.** A copy of the approved professional's current driver's license or a current state or federally-issued identification that includes a photograph of the approved professional.

**3.** The address, telephone number, cellular telephone number, fax number and e-mail address of the approved professional, which shall be provided on or with the self-certified building permit application.

**C. Authorized practice areas of approved professionals.** An Architect licensed in Oklahoma is authorized to provide plan reviews and certifications for the SC program as an approved professional within the scope of the "practice of architecture" as defined in 59 O.S. § 46.3, and as may be amended from time to time. A Landscape Architect licensed in Oklahoma is authorized to provide plan reviews and certifications for the SC Program as an Approved Professional within the scope of the definition of "landscape architecture", and the practice thereof, as defined in 59 O.S. § 46.3, and as may be amended from time to time. A Professional Engineer licensed in Oklahoma is authorized to provide plan reviews and certifications for the SC program as an approved professional within the scope of the "practice of engineering" as defined in 59 O.S. § 475.2, and as may be amended from time to time.

**D. Standard of care.** Each Architect, Landscape Architect and Engineer shall perform self-certification services as an Approved Professional consistent with the professional skill and care ordinarily provided by Architects, Landscape Architects and Engineers practicing in the Tulsa, Oklahoma, geographic area under the same or similar circumstances.

*(Ord. No. 24061, § 1, 12-19-2018)*

## Section 604. Procedures.

**A. Permit applications.** An applicant shall submit to the Development Services Department, a completed Self-Certified building permit application, statement of self-certification, complete copies of all plans, drawings, specifications and all other supporting documents in a sufficient number thereof as required by the Development Services Department and/or as set forth in the manual. The applicant is responsible for ensuring that all documents submitted under the SC program have been signed, stamped and sealed by the approved professional along with the required statement of self-certification. In addition, the applicant must provide all pre-requisite permits and approvals which may be required by a particular project, including, but not limited to, a zoning clearance permit, a water/sewer/drainage-storm-water permit, infrastructure development process approval, floodplain development approval, and City-County Health Department approval. If all pre-requisite permits and approvals are not provided with the permit application, such applications will not be processed until the pre-requisite permits and approvals are secured and provided to the Development Services Department. Separate mechanical, electrical, plumbing and fire protection trade permits are required for each project as may be applicable. By execution of a statement of self-certification, an approved professional is making the professional determination that the plans, specifications and other construction documents relating to a project for which a building permit is sought are in compliance with the Building Codes. An approved professional cannot certify fire prevention or suppression systems.

**B. Plan reviews.**

**1.** The approved professional shall sign and stamp with the approved self-certification stamp as set forth in the manual, each and every page or sheet of all blueprints, plans and drawings, the first page or sheet of each specification

manual, and all other required supporting documents, if any (the "construction document(s)") to verify that the approved professional has reviewed all construction documents submitted by the applicant.

**2.** The self-certification stamp shall contain the following language:

I, being duly-registered as a Professional _____ (Architect, Landscape Architect or Engineer), in the State of Oklahoma and in good standing, hereby certify FOR THE SOLE PURPOSE OF CERTIFICATION OF CODE COMPLIANCE, under the terms of the City of Tulsa Self-Certification Program for Plan Review, that this Construction Document has been prepared by me, OR under my direct control and personal supervision, OR reviewed by me, and I declare that this Construction Document depicts a proposed construction that by application of the standard of professional due care complies with the currently-applicable Building Codes, laws, ordinances, codes, and standards for the design, construction, and declared occupancy of this Project within the City of Tulsa.

This certification is solely for the benefit of the City of Tulsa without intention to benefit any other person. It is non-transferable and may not be used for another purpose or by another person for any purpose. "Certification" and "certify" as used herein, is an expression of a professional opinion and is neither a warranty nor a guarantee.

Signed: _____

Date: _____

**3.** Building Permits shall be issued by the Development Services Department within a reasonable time upon receiving a complete self-certified building permit application, all required plans, drawings, specifications and other required supporting documents, as well as payment of all permit and application fees as required in Title 49 of TRO. Such permit and application fees shall be assessed at the same rate as projects that have been reviewed by Development Services Department staff. Acceptance of such plans, drawings, specifications and supporting documents on self-certified projects shall not constitute a representation or guarantee by the City of Tulsa of Building Code compliance, and all responsibility for Building Code compliance lies with the approved professional.

**4.** The Development Services Department may review and audit any self-certified building permit applications and all supporting plans, drawings, specifications and other required supporting documents prior to or after issuance of a building permit. If there are any deficiencies with regard to Building Code compliance, the Development Services Department may decline to issue a Building Permit or rescind a previously-issued building permit and stop further work on the project until such compliance issue is resolved. Violations of the Building Code(s), whether discovered at any time prior to construction commencing, during construction, or after final inspection of a project shall be corrected at the applicant's/owner's/developer's sole expense within a reasonable time as determined by the Development Services Department. Failure of the owner to correct any violations of the Building Code(s) may cause the project to be denied a certificate of occupancy. In addition, abatement proceedings may be commenced by the City of Tulsa if any Building Code violations or deficiencies are not corrected.

**5.** Projects for which a building permit has been issued pursuant to the SC program shall be inspected according to the normal construction inspection procedures of the City of Tulsa.

**6.** Fire protection/suppression system plans and specifications shall be reviewed and permitted by the City of Tulsa. Project plans shall be reviewed by the City of Tulsa for compliance with the Fire Protection Code.

*(Ord. No. 24061, § 1, 12-19-2018)*

### Section 605. Approved professional ethics.

**A.** An approved professional shall not suggest, direct or authorize the builder, fabricator, erector, contractor or sub-contractor to deviate from the approved construction documents or the applicable Building Codes without written approval by the responsible architect, structural engineer or geotechnical engineer and the City of Tulsa Development Services Department.

**B.** An approved professional shall contract directly with the applicant, owner or developer of a project, solely at the expense of such applicant, owner or developer for self-certification plan review services.

**C.** An approved professional shall observe and follow the Rules of Professional Conduct regulating the profession practiced by the approved professional as set forth in the Oklahoma Administrative Code in Title 55, Chapter 10, Subchapter 11, concerning Licensed Architects and Landscape Architects, and in Title 245, Chapter 15, Subchapter 9, concerning Professional Engineers, as each may be amended from time to time.

*(Ord. No. 24061, § 1, 12-19-2018)*

### Section 606. Board of Appeals.

To facilitate the implementation of the SC program, the Board of Appeals shall advise the Development Services Department regarding the adoption of policies and procedures required to implement the SC program as provided in this chapter.

*(Ord. No. 24061, § 1, 12-19-2018)*

## CHAPTER 7. THIRD-PARTY PLAN REVIEW AND INSPECTION PROGRAM

Section 701. Title; overview and purpose.
Section 702. Definitions.
Section 703. Third-Party Plan Review and Inspection Program.

### Section 701. Title; overview and purpose.

**A. Title.** This Chapter may be cited as the "Third-Party Plan Review and Inspection Program."

**B. Overview and Purpose.** The Third-Party Plan Review and Inspection Program (the "TPP Program") is hereby implemented to establish an alternate method for residential, commercial and industrial developers and contractors to procure plan review and inspection services from private providers, rather than the Development Services Department of the City of Tulsa. The TPP Program offers persons or entities who desire to obtain a building permit for a residential, commercial or industrial project the option to contract directly with an independent Third-Party Provider (as defined below) recognized by the City of Tulsa for plan review and related services, including all required building and construction inspections.

*(Ord. No. 24280, § 1, 12-18-19)*

### Section 702. Definitions.

For the purposes of this chapter, the following words and terms have the meanings ascribed to them by this section; words and terms not defined here have the meanings given to them in the applicable building codes, in the laws of the State of Oklahoma, and by common and ordinary usage:

**Applicant:** A person, firm, corporation, or other legal entity who is requesting formal approval as a Provider pursuant to the TPP Program.

**Authorized Provider:** An independent third-party building inspector who holds a current and valid Authorized Provider Inspector License, or equivalent licensure as issued by the Oklahoma Construction Industries Board, in accordance with the Oklahoma Inspectors Act. An Authorized Provider is not an employee or agent of the City of Tulsa, but is an independent contractor. An Authorized Provider may be licensed in more than one (1) license category or classification of inspector license issued by the Construction Industries Board.

**Building Code** or **Building Codes:** The various building and construction codes adopted by the City from time to time and codified in the Tulsa Revised Ordinances, including, without limitation, the Building Code prescribed by Title 51, the Electrical Code prescribed by Title 52, the Plumbing Code prescribed by Title 56, the Mechanical Code prescribed by Title 59, and any applicable State Building Codes.

**Building Official:** The official or the official's designee authorized to administer and enforce the Building Codes by the City of Tulsa.

**Building Permit:** Formal written permission by the City of Tulsa to perform construction, alteration, repair or related activities within the municipal limits of the City of Tulsa or within its jurisdictional control, as required by Ordinance.

**CIB:** The Construction Industries Board, a governmental agency of the State of Oklahoma, or its successor agency.

**City Building Inspector:** An employee of the City of Tulsa who inspects any phase of a construction Project for the purpose of enforcing compliance with the applicable Building Codes or standards and includes, but is not limited to, plumbing inspectors, electrical inspectors, mechanical inspectors and structural building inspectors.

**Contractor:** A person, firm, corporation, or other legal entity engaged in any aspect of construction of a building or structure, or a part thereof, including associated site improvements.

**Developer:** A person, firm, corporation or other legal entity that is either an owner of real property or the owner of an existing building or other improvement which is or which will be the subject of a permitted construction Project, or under contract with the owner thereof to commence and complete a particular construction Project or improvement to real property.

**Development Services Department:** The department of the City of Tulsa having jurisdiction and control over the issuance of building permits, construction and development permits, occupancy permits, and similar permits and approvals for the construction of buildings and improvements. Also referenced in this Chapter as the "DS Department".

**Director:** The Director of the Development Services Department of the City of Tulsa, or the successor to such Director.

**Fee:** The charge to applicants for permits or other authorizations issued by the City of Tulsa as provided in Title 49 of the Revised Ordinances of the City of Tulsa.

**Inspection:** The inspection of the various components of construction projects, including, but not limited to, plumbing, electrical, mechanical, structural or other aspects of building and construction, for the purpose of enforcing compliance with the applicable building codes or standards.

**Inspector:** A person who holds a current and valid Authorized Provider Inspector License or its equivalent as issued by the CIB, and who, in addition, meets the requirements to provide inspection services for a Provider, under the supervision of a Qualified Professional, for the specific type(s) of inspections to be performed as set forth in the Manual, for the purposes of providing building and construction inspections pursuant to the Program.

**Manual:** The document approved by the Development Services Director, or the Development Services Director's designee, detailing the processes, duties, responsibilities and compliance requirements related to the Third-Party Plan Review and Inspection Program.

**Ordinance:** A legislative act of the City Council of the City of Tulsa which has become effective in accordance with the Amended Charter of the City of Tulsa.

**Owner:** The owner of the real property upon which a construction project is being undertaken.

**Permitting Services:** Plan review and inspection services for a construction project.

**Plans Examiner:** A person who possesses current International Code Council ("ICC") certification as a Plans Examiner or Reviewer for the type of plan reviews to be performed as set forth in the Manual, for the purpose of providing building and construction plan examination and review services pursuant to the Program.

**Probation:** A period of time in which the Provider is directly monitored while permitted to continue to provide permitting services pursuant to the TPP Program, as a result of an enforcement action and the imposition of sanctions by the DS Department.

**Program:** See "Third-Party Plan Review and Inspection Program".

**Project:** An organized undertaking at a specific location to complete pre-determined objectives for the planning, design, construction, repair, improvement or expansion of buildings or facilities, as detailed in construction plans, specifications and other related documents.

**Provider:** A person or an entity with one or more employees knowledgeable and competent with respect to construction permitting, building construction processes and Building Codes and who is approved to provide third-party Permitting Services for a Project pursuant to a contract with an Owner or Developer. Also referred to in this chapter as a "Third-Party Provider". A Provider is not an employee or agent of the City of Tulsa, but is an independent contractor.

**Qualified Professional:** A professional engineer, architect, or landscape architect licensed in the State of Oklahoma, or someone possessing a Bachelor's Degree and who holds a current International Code Council ("ICC") certification of Master Code Professional, and who, in addition, meets the requirements to provide services as a Qualified Professional for a Provider as set forth in the Manual, pursuant to the Program.

**Removal:** Revocation by the DS Department of a Provider's ability to provide permitting services as authorized by the Program.

**Special Inspections:** Field inspections of certain aspects of a Project, both structural and non-structural in nature, in accordance with Chapter 17 of the International Building Code which requires specialized qualified expertise.

**State Building Code:** The current version of any building code(s) adopted pursuant to state law and/or by the Oklahoma Uniform Building Code Commission, including, but not limited to, the building codes contained in Title 748 at Chapter 20 of the Oklahoma Administrative Code.

**State Law:** Statutes of the State of Oklahoma or applicable provisions of the Oklahoma Administrative Code.

**Suspension:** Temporary rescission of a Provider's ability to provide permitting services authorized by the Program.

**Third-Party Plan Review and Inspection Program:** The independent third-party permitting services providing plan review and inspections established by this Chapter. Also referenced in this Chapter as the "Program" or the "TPP Program".

**TRO:** The Revised Ordinances of the City of Tulsa.

*(Ord. No. 24280, § 1, 12-18-19)*

## Section 703. Third-Party Plan Review and Inspection Program.

**A. General.** An applicant for a building permit who intends to utilize the TPP Program rather than the DS Department for plan review and inspection services shall follow the procedures set forth in the Manual, and as required by the DS Department.

**B. Third-Party Provider Requirements and Application.** A person or entity seeking to provide Third-Party Plan Review and Inspection Services, otherwise referred to as "Permitting Services", and seeking approval as a "Provider" within the City of Tulsa shall agree to and comply with the following:

**1.** An Applicant requesting approval as a Provider shall have an agreement with a Developer to provide Permitting Services for a particular Project.

**2.** An Applicant shall submit a completed "Application for Third-Party Provider Designation" ("application" hereinafter) as approved by the Director and as is set forth in the Manual, to the DS Department.

**3.** An Applicant shall provide a certificate of insurance evidencing current insurance coverages provided by an insurer authorized to transact insurance business in Oklahoma, at the time of submission of a new application or at the time of submission of a renewal application, as follows:

**i.** Professional Liability/Errors and Omissions Insurance with coverage of not less than One Million Dollars ($1,000,000.00) per occurrence, with an endorsement providing coverage for two (2) years after completion of each Project; and

**ii.** Workers Compensation Insurance which complies with Oklahoma statutory requirements and Employer's liability insurance with coverage of not less than One Hundred Thousand Dollars ($100,000.00) per occurrence, or the minimum policy coverage required by Oklahoma law, whichever is greater.

**4.** Providers shall furnish a replacement Certificate of Insurance to the DS Department when any required insurance policy expires or is canceled.

**5.** All Certificates of Insurance submitted must be approved by the Office of the City Attorney. Any deficient Certificates of Insurance must be corrected as required by the Office of the City Attorney.

**6.** Each required insurance policy shall provide by endorsement that thirty (30) days' prior written notice of cancellation shall be delivered by the insurer to the City, except that ten (10) days' written notice of cancellation shall be provided by the insurer due to non-payment of premium.

**7.** A Provider shall not cause or allow any required insurance policy to be canceled or to lapse without securing replacement insurance coverage so that there is no gap in coverage, and a Provider shall notify the DS Department of any change in insurance coverage within fifteen (15) days of such change. Failure by a Provider to maintain the required insurance coverage(s) is a violation of the conditions of approval as a Provider and may result in consequences up to and including removal from the TPP Program.

**8.** Submission of the application and application/registration fee of Two Hundred Fifty Dollars ($250.00) at the time the application is submitted to the DS Department.

**9.** By submission of an application, the Applicant represents that it is familiar with, and knowledgeable of all applicable State of Oklahoma and City of Tulsa construction codes and City of Tulsa ordinances, regulations and policies which are applicable to a construction Project, and that the applicant is in compliance with applicable laws of the State of Oklahoma, the ordinances of the City of Tulsa, the Manual, and all other applicable laws, rules and regulations.

**C. Application Approval and Designation as a Provider.** Upon receipt of a completed application from an Applicant and all required insurance certificates, any other information and supporting documentation required by the DS Department, and the non-refundable application and registration fee of Two Hundred Fifty Dollars ($250.00), the DS Department shall determine if the applicant meets the requirements to provide permitting services as a Provider, and shall either approve or deny the application. Upon approval, a Provider shall be issued an approval notice and Provider registration number by the DS Department, and such approval shall be valid for a twelve (12) month period, unless the Provider is later suspended or removed.

**D. Renewal Applications.** A person or entity that received approval in the preceding year from the DS Department and is in good standing as a Provider shall submit a renewal application in such form as is approved by the Director and the registration renewal fee of Two Hundred Fifty Dollars ($250.00) to the DS Department at least sixty (60) days prior to the expiration of the previous approval as a Provider. The renewal applicant must submit any new documents that may be required by the DS Department to update its records or to make a determination regarding the renewal application. Current certificates of insurance with the coverages required by the TPP Program shall be submitted with the renewal application. The DS Department, in its sole discretion, may provide a conditional six (6) month extension to a Provider to complete plan reviews and inspections for an ongoing Project. During the extension period, the renewal application must be submitted, processed and approved by the DS Department prior to the expiration of the extension period or the Provider shall be removed from the TPP Program. If a renewal application is not approved within the six (6) month extension period, a new application must be submitted and approved for an applicant to provide permitting services pursuant to the TPP Program. Renewal registration is valid for a twelve (12) month period, unless the Provider is later suspended or removed.

**E. Duty to Provide Current Information.** A Provider is required to notify the DS Department in writing if there is a material change in the information that was provided for a pending application, or for an approved Provider, within ten (10) business days after the material change. Failure to provide current material information required by the DS Department shall be grounds for rejection of an application and is a violation warranting administrative action as authorized by this chapter.

**F. Qualifications of Providers.** To be considered for DS Department approval as a Provider, an Applicant shall comply with the following:

**1.** An Applicant must have experience in the construction industry and must demonstrate knowledge of all applicable State of Oklahoma and City of Tulsa construction codes and City of Tulsa ordinances, regulations and policies which are applicable to a construction Project, as well as knowledge of the City of Tulsa's permitting processes and required inspections.

**2.** A Provider must maintain an office within the State of Oklahoma.

**3.** If a Provider is an artificial entity such as a corporation or a limited liability company, such entity must be registered with the Office of the Oklahoma Secretary of State and be in good standing.

**G. Provider Scope of Services.** Permitting Services shall be performed by the Provider as applicable to a specific Project, utilizing such licensed and certified Qualified Professionals, Plans Examiners, and Inspectors as may be necessary through completion of the Project and issuance of a Certificate of Occupancy. Permitting Services for the following-listed Project components shall be performed by the Provider, as necessary, as set forth in the Manual:

**1.** Private site infrastructure and utilities (grading, paving, water, sewer and stormwater drainage systems);

**2.** Zoning, subdivision, and development regulations compliance;

**3.** Architectural/Structural/Fire Safety (building/fire codes; except fire sprinklers/ standpipes, detection and alarm systems);

**4.** Accessibility;

**5.** Mechanical, Electrical; and Plumbing (MEP);

**6.** Energy Conservation;

**7.** Signs; and

**8.** Recommendations for the issuance of building permits, close-out permits and certificates of occupancy.

**H. Prohibited Provider Services and Necessary Approvals.** The following-listed processes and Project components are outside of the scope of Provider Permitting Services, except to the extent necessary to submit requests for approvals or to recommend approvals, as set forth in the Manual:

**1.** Granting approval of alternative materials, design, and methods of construction and equipment, or modification or deviation from any provision of the applicable codes, standards, regulations and policies;

**2.** Approval of work within a dedicated or planned public right-of-way;

**3.** Infrastructure Development Process (IDP) permitting services;

**4.** Approvals by the Board of Adjustment, the Tulsa Metropolitan Area Planning Commission (TMAPC), the Preservation Commission, and the City Council;

**5.** Projects within a Federal Emergency Management Agency (FEMA) and/or City of Tulsa regulatory floodplain;

**6.** Work in rights-of-ways occupied by utility franchisees of the City of Tulsa, including utility easements;

**7.** Fire Protection Systems (fire sprinklers, standpipes, detection and alarm systems);

**8.** Zoning approval;

**9.** Tulsa City-County Health Department approval;

**10.** Issuance of permits and certificates of occupancy; and

**11.** Other work as determined by the Building Official in writing as adopted by administrative rule.

The Developer and Provider are responsible for obtaining all necessary approvals of the type and from the proper authority as set forth in this subsection that may be required for a particular Project. In addition, it is the responsibility of the Developer and Provider to timely schedule and complete submittals, reviews, and inspections throughout the duration of a Project to its completion.

**I. Conflicts of Interest.** A Provider and Qualified Professionals, Plans Examiners and Inspectors shall at all times be in compliance with the Conflicts of Interest provisions as set forth in the Manual.

**J. Use of Qualified Professionals, Plans Examiners and Inspectors.** A Provider shall utilize one (1) or more Qualified Professionals, Plans Examiners, and Inspectors as is necessary for each Project. A Qualified Professional shall provide direct supervision of all plan reviews and inspections for a Project. The required certifications for a Qualified Professional, Plans Examiner and Inspector for each Project component for the purpose of Permitting Services shall be established by the Director and as set forth in the Manual. The Director may amend and modify the required certifications for Qualified Professionals, Plans Examiners and Inspectors.

**K. Areas of Permitting Services-Project Components.** The areas of Permitting Services for Project components are as follows:

**1.** Commercial Building Plan Review and Inspection;

**2.** Residential Only (One- and Two-Family Dwellings) Plan Review and Inspection;

**3.** Mechanical Plan Review and Inspection;

**4.** Electrical Plan Review and Inspection;

**5.** Water, Sewer, Drainage-Stormwater and Building Plumbing Plan Review and Inspection;

**6.** Energy Conservation Plan Review and Inspection;

**7.** Special Inspections; and

**8.** Any other Project component not listed in this subsection deemed necessary by the Director for completion of a particular Project.

**L. Appointment of Provider and Payments to Provider.** Prior to commencement of construction, the Developer or an authorized agent of the Developer shall provide the City with a notice of appointment of a Provider to engage in Permitting Services for a Project. The notice of appointment shall be in such form as approved by the Director. If a Developer is utilizing an agent, authorization of an agent of a Developer, in such form as approved by the Director, shall be submitted to the DS Department. The DS Department shall endeavor to approve or disapprove the use of a Provider for the Project within five (5) business days after receipt of the notice of appointment, and receipt of a completed application to be designated as a Provider. Upon approval of the Provider by the DS Department in accordance with this Chapter, Permitting Services related to the Project will be processed through the Provider, in accordance with this Chapter and the Manual. The Developer shall replace a Provider that has failed or ceased to perform as a Provider during a Project. The DS Department must approve a replacement Provider prior to the performance of Permitting Services. The Owner or Developer is responsible for payment of all services rendered by a Provider, and the

City of Tulsa shall not be liable for any unpaid sums due and owing to a Provider by an Owner or Developer. A Provider shall have no right of action against the City of Tulsa for unpaid fees and expenses due and owing by the Owner or Developer.

**M. Duties and Responsibilities of Provider.** The Provider shall utilize Qualified Professionals who shall provide direction and supervision of all plan reviews and inspections for a Project. In addition, other duties and responsibilities of a Provider are as follows:

1. **Recommendation to issue a required permit.** The recommendation to issue a permit shall be signed (and sealed, if applicable) by the Qualified Professional, and shall be submitted in such format as specified in the Manual. The recommendation to issue a permit shall be in a form provided by the DS Department, and shall include:
   - **a.** The Provider's name, and DS approval identification number;
   - **b.** Name and contact information of the Qualified Professional, and signature (and seal, where appropriate);
   - **c.** Project address;
   - **d.** List of plan reviews and name of plan reviewer;
   - **e.** Statements certifying that the discipline reviewed is completed; is in compliance with the applicable codes; and is recommended for the issuance of the permit;
   - **f.** A report identifying the Project code data;
   - **g.** An index of the approved drawings and specifications, including three (3) sets of the same.
2. **Additional Documentation Required.** Additional drawings and documents evidencing required approvals as set forth in subsection "H" of this section shall be submitted with the recommendation to issue the building permit. These required approvals are a prerequisite to the issuance of a building permit.
3. **Exclusive Inspection Responsibility.** The Provider shall ensure that all required inspections are performed and documented, except for inspections which must be performed by City Building Inspectors, such as Infrastructure Development Process installation or certain fire systems. The DS Department retains the right, but is not obligated, to inspect any Project being constructed pursuant to the Program at any time, without notice, to ensure compliance with the Program.
4. **Inspection Reports and Final Certificates.** With respect to inspections, inspection reports and final certificates, the Provider shall comply with the following:
   - **a.** The Provider shall ensure that all required inspections are performed as listed in the building codes, current as of the date of inspection. The inspection stages shall be rough and final inspections, and such other inspections as required by the DS Department. All site work and public infrastructure installed pursuant to an Infrastructure Development Process permit shall be inspected and accepted by the City of Tulsa as a condition to project close-out.
   - **b.** The Provider shall maintain all records of inspections and re-inspections. Prior to the completion of the Project, which is initiated by close-out of all

permits and the issuance of the final certificate of occupancy (where applicable), the Provider shall deliver a digital record of all inspection activities related to the project to the DS Department, plus an inspections final report signed (and sealed, if applicable) by the Qualified Professional.

**c.** Where a partial, temporary, or final certificate of occupancy is required (and for renewals of expired temporary certificates of occupancy), the Provider shall issue recommendation reports to the Developer to be presented to the DS Department for issuance. The Qualified Professional shall sign and wet-seal the reports. The reports must include the following:

i. Provider's name, address, and DS Department registration number.

ii. Name and contact information of the Qualified Professional.

iii. Project address and building permit number(s).

iv. Location and area (in square feet) of portions of the building requiring partial occupancy.

v. Occupant load of portions of building requiring partial occupancy.

vi. Expiration date of the temporary certificates of occupancy.

vii. Statement of approval for issuance of the partial, temporary, or final certificate of occupancy.

**5. On-Site Inspection Records.** When inspections are conducted, the Provider shall verify all relevant permits and approved drawings are on the site of the Project. Upon completion of an inspection, the Provider shall clearly communicate pass/fail inspection status to the contractor and retain the signed inspection records. The Provider shall verify that construction is in accordance with the approved plans. If a Developer does not correct a failed inspection, the Provider shall notify the DS Department within a reasonable time.

**6. Compliance Reviews and Audits by City.** The Provider shall maintain and keep current the records regarding all Projects under review or inspection. The Provider's Project records shall be available between 8:00 a.m. and 5:00 p.m., Monday through Friday (except legal holidays), in order for the DS Department to conduct compliance reviews and audits. Copies of these records shall be submitted to the DS Department in the event that the Provider ceases to perform during a Project under construction. In the event of an emergency with respect to a Project, such as a structural failure or other event which creates an unsafe condition for which work on a Project must cease, either temporarily or permanently, a Provider shall make Project records available to the DS Department immediately upon request.

**7. Staff Qualifications and Audits by City.** The Provider is responsible for maintaining all records regarding the evaluation, licensing, certifications, and continuing education requirements of its personnel, agents, and persons under contract with the Provider who provide services as a Qualified Professional, Plans Examiner or Inspector. In order to audit the qualifications and licensure of the Provider's staff, agents, or those under contract with the Provider, the DS Department may require submission of all or specific records pertaining to their qualifications and licensure.

8. **Records Retention.** The Provider shall retain all records of Projects for which the Provider has furnished services under this Program for a minimum of ten (10) years or for such period of time required by applicable Oklahoma law, including any applicable statute of limitations or repose, whichever is greater.

**N. Duties and Responsibilities of the DS Department.** The DS Department is responsible for enforcing compliance with the TPP Program and has the following responsibilities with respect to the administration of the TPP Program:

1. Administration of the Program as set forth in the City's ordinances and as specified in the Manual, as may be amended from time to time.
2. Issuance of permits, close-out of permits, and issuance of partial and final certificates of occupancy.
3. Performance of compliance reviews and audits of Providers.
4. Consideration and imposition of sanctions on Providers and anyone performing under a Provider as a Qualified Professional, Plans Examiner and Inspector, either as an employee of a Provider or under contract with a Provider.

**O. Program Compliance and Administration of Sanctions.** The DS Department is authorized to impose sanctions, up to and including removal of a Provider or anyone performing under a Provider as a Qualified Professional, Plans Examiner and Inspector, either as an employee of a Provider or under contract with a Provider, for failure to comply with this chapter, the Manual, the building codes, or the ordinances of the City of Tulsa. Such failure to comply, and violations of this Chapter, the Manual, the building codes or the ordinances of the City of Tulsa by a Provider or anyone performing under a Provider as a Qualified Professional, Plans Examiner and Inspector, either as an employee of a Provider or under contract with a Provider, may result in action by the DS Department, and depending on the severity of such noncompliance or violation, may include, but is not limited to, a written warning, probation, suspension, or removal from the Program as a Provider. For the purposes of subsections "O" and "P" of section 703 of this Chapter, the term "Provider" shall also encompass and include a Provider or anyone performing under a Provider as a Qualified Professional, Plans Examiner and Inspector, either as an employee of a Provider or under contract with a Provider. The various violations and the level of severity and range of possible sanction(s) is as set forth in the Manual.

**P. TPP Program Enforcement and Sanctions Procedures.** The DS Department shall take the following steps in ensuring compliance with the TPP Program if there is a determination that a failure to comply and/or one or more violations of the terms, conditions and requirements imposed by this chapter, the Manual, the building codes, or the ordinances of the City of Tulsa has occurred. Upon receipt of a complaint, or as part of its compliance oversight, the DS Department shall conduct an investigation to determine if the Provider acted improperly. Upon determining that the Provider is not in compliance with this chapter, the Manual, the building codes, the City's ordinances, or accepted industry practices, the DS Department may, in its sole discretion, take action(s) that may include, but are not limited to, the following:

1. The DS Department shall issue a letter via first class registered or certified mail with return receipt requested to the Provider and to the Developer of the Project stating the violation(s) and the sanction proposed to be imposed, providing a

reasonable opportunity to resolve or cure the noncompliance identified by the DS Department. Sanctions may consist of, but are not limited to, written warning, probation, suspension, or removal of a Provider from the TPP Program. Periods of probation or suspension shall be determined by the Director.

**2.** The Provider may submit a written appeal to the Director within fifteen (15) business days of the mailing date of official notification of the violation and sanction. The appeal may include evidence and written material supporting the Provider's position. The Director or the Director's designee shall schedule an administrative hearing regarding a written appeal within thirty (30) days after receipt of the same. After hearing an appeal, the Director or the Director's designee shall render a written decision within fifteen (15) days and shall mail the decision to the appellant by first-class mail, with written proof of mailing issued by the post office, or by registered or certified mail, return receipt requested.

**3.** All appeals from the decision of the Director or the Director's designee shall be heard pursuant to the procedures set forth in Title 51, Chapter 1, TRO.

**Q. Approval of the Manual and Amendments.** The Third-Party Plan Review and Inspection Manual, 2019 Edition, dated October 19, 2019, is hereby approved. The Director is authorized to make such amendments to the Manual that the Director deems is beneficial to the administration of the TPP Program which do not conflict with this chapter, without amending this chapter by ordinance. The Manual shall be re-dated as of the date of any amendments, and a current copy of the Manual shall be maintained by the Director in the offices of the DS Department.

*(Ord. No. 24280, § 1, 12-18-19)*

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# TITLE 52 ELECTRICAL CODE*

**Chapter 1. Administration**
**Chapter 2. Amendments to National Electrical Code, 2020 Edition**

*__Editor's note—__Ord. No. 24936, § 1, adopted October 26, 2022, amended Title 52 in its entirety to read as herein set out. Former Title 52, § 100, pertained to adoption of National Electrical Code, 2017 Edition (NFPA 70-2017), and derived from Ord. No. 24830, § 1, 5-25-2022.

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## CHAPTER 1. ADMINISTRATION

Section 100. Adoption of National Electrical Code, 2020 Edition (NFPA 70-2020).
Section 101. Applicability.
Section 102. Office of electrical inspection.
Section 103. Approval.
Section 104. Permits.
Section 105. Inspections.
Section 106. Violations.
Section 107. Stop work order.
Section 108. Means of appeal - Added.
Section 109. Registration of electrical contractors.
Section 110. Registration fees - Added.

### Section 100. Adoption of National Electrical Code, 2020 Edition (NFPA 70-2020).

A certain document, three (3) copies of which are on file in the Office of the City Clerk of the City of Tulsa, Oklahoma being marked and designated as the National Electrical Code, 2020 Edition (NFPA 70-2020), as published by the National Fire Protection Association (NPFA), is hereby adopted as part of the Tulsa Revised Ordinances, hereinafter the "Electrical Code," for the installation, alteration, repair and regulation of electrical systems and equipment serving buildings and structures except detached one- and two-family dwellings and townhouses not more than three (3) stories above grade plane in height with a separate means of egress and whose accessory structures shall comply with Tulsa Revised Ordinances, Title 51 Chapter 2. Each and all of the terms, conditions, regulations, provisions, and penalties of the National Electrical Code, 2020 Edition (NFPA 70-2020) are hereby referred to, adopted and made a part of the Tulsa Revised Ordinances as if fully set out in this title, with amendments. As used in this title, the National Electrical Code, 2020 Edition (NFPA 70-2020), as amended by this title, may be referred to as the "code."

*(Ord. No. 24936, § 1, 10-26-2022)*

### Section 101. Applicability.

**101.1 Existing Structures - Added.** Except as otherwise provided in this title, this code shall not require the removal, alteration or abandonment of, nor prevent continued use of an existing electrical system.

**101.2 Alteration, Additions, or Repairs - Added.** The alteration, addition or repair of any electrical system shall conform to requirements for a new electrical system, without requiring the entire existing system to comply with all of the requirements of this code. Alterations, additions and repairs shall not cause an existing system to become unsafe or adversely affect the performance of the system. Where additions or alterations subject parts of an existing system to loads exceeding those permitted in this code, such parts shall be made to comply with this code.

**101.3 Referenced Standards - Added.** The standards referenced in this code shall be deemed incorporated by reference into this code, to the extent prescribed by each reference. Where differences occur between provisions of this code and the referenced standards, the provisions of this code shall apply.

**101.4 Maintenance - Added.** Electrical systems, equipment, materials and appurtenances, both existing and new, and parts thereof shall be maintained in a safe, hazard-free condition. Devices or safeguards that are required by this code shall be maintained in compliance with the code edition under which installed. The owner or the owner's designated agent shall be responsible for the maintenance of the electrical systems and equipment. To determine compliance with this provision, the code official shall have the authority to require that the electrical systems and equipment be re-inspected.

## Section 102. Office of electrical inspection.

**102.1 Authority Having Jurisdiction - Added.** Pursuant to Title 11, Tulsa Revised Ordinances, Chapter 2, the Director of Planning and Development, or the Director's designated representative, as provided by Title 51, Chapter 1, Section 103.2, Tulsa Revised Ordinances, shall direct the administration of the Electrical Code of the City of Tulsa.

**102.2 Conflict of Interest Prohibited - Added.** Electrical Inspectors shall ascribe to and be guided in professional conduct as City of Tulsa representatives, as provided in Title 12, Chapter 6, Tulsa Revised Ordinances, the "Ethics Code".

**102.3 Duties of Code Official - Added.** The code official shall enforce all of the provisions of this code and shall act on any question relative to the installation, alteration and operation of electrical systems and equipment.

**102.4 Authority to Disconnect Service Utilities - Added.** The code official shall have the authority to authorize disconnection of utility services or energy sources to the building, structure or system regulated by this code in case of an emergency where it is necessary to eliminate an immediate hazard to life or property or to abate a violation of this code. The code official shall notify the serving utility and, wherever possible, the owner and occupant of the building, structure or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnecting, the owner or occupant of the building, structure or service system shall be notified in writing as soon as practical thereafter. A person shall not make utility service or energy source connections to systems regulated by this code, which have been disconnected or ordered to be discontinued by the code official, or the use of which has been ordered to be discontinued by the code official until the code official authorizes the reconnection and use of such systems.

**102.5 Authority to Condemn Electrical Systems - Added.** Wherever the code official determines that any electrical system, or portion thereof, regulated by this code has become hazardous to life, health or property, the code official shall order in writing that such electrical systems either be removed or restored to a safe condition. A time limit for compliance with such order shall be specified in the written notice. A person shall not use or maintain a defective electrical system or equipment after receiving such notice.

## Section 103. Approval.

**103.1 Approved Materials and Equipment - Added.** All materials, equipment, and devices approved by the code official for use under the administration of this code shall be constructed and installed in accordance with such approval.

**103.2 Alternative Materials and Equipment - Added.** The provisions of this code shall not prevent the installation of any material or prohibit any method of construction not specifically prescribed by this code, provided that the alternative material or method has

been approved by the code official. An alternative material or method of construction shall be approved when the code official finds that the proposed design satisfactorily complies with the intent of this code, and that the material, method, or work offered is for the purpose intended. Any and all alternative materials or methods of construction shall be equal to or greater in quality, strength, effectiveness, fire resistance, durability and safety than that prescribed in this code.

**103.3 Labeling - Added.** Electrical materials and equipment regulated by this code shall be listed and labeled by an Occupational Safety and Health Administration (OSHA) Nationally Recognized Testing Laboratory, indicating that they have been tested and evaluated for the intended application by an approved agency, unless they are otherwise approved as provided in this title.

**Exception: Unlabeled Equipment - Added.** The following procedures shall be employed for acceptance of any unlabeled equipment:

1. The appliance or equipment shall be investigated and tested by an engineer registered in the State of Oklahoma, who is qualified in the field of the specific appliance or equipment to be tested. The engineer shall not be affiliated in any manner with the manufacturing or distribution of the appliance or equipment.
2. A letter bearing the signature and seal of an engineer registered in the State of Oklahoma shall be furnished to the code official and shall include the following information:
   a. A statement requesting exemption from the labeling requirements set forth in the National Electrical Code.
   b. A specific description of the appliance or equipment with the model and serial numbers.
   c. The purpose the appliance or equipment is to serve.
   d. The type of investigation and test performed. Testing and evaluation shall be in accordance with National Fire Protection Association (NFPA) Standard 791, Recommended Practice and Procedures for Unlabeled Electrical Equipment Evaluations.
   e. The date and results of the investigation and test performed.
   f. A statement from the engineer that the equipment is safe for its intended use.
3. The installation of the appliance or equipment shall be approved upon acceptance of the letter by the code official.

**103.5 Construction Documents - Added.** Any construction documents, including plans and specifications that are required by this code or any other adopted code governing construction, shall be provided to the code official upon request.

## Section 104. Permits.

**104.1 Payment of Fees - Added.** No permit shall be issued until the fees prescribed in Title 49 Tulsa Revised Ordinances have been paid.

**104.2 Permit Required - Added.** No person, firm, partnership, corporation, or limited liability company shall do or cause to be done any electrical work without first having obtained an electrical permit. Electrical permits shall not be transferable.

**Exception.** Where equipment replacements and repairs must be performed in an emergency situation, the permit application shall be submitted within the next working business day.

**104.2.1 Qualification of Permit Applicants - Added.** No electrical permit shall be issued to any person, firm, partnership, corporation, or limited liability company until such person, firm, partnership, corporation or limited liability company has produced evidence of having in their possession the required licenses and registrations.

**104.3 Permit Not Required - Added.** A permit is not required for repairs that do not involve alteration or rearrangement of the electrical installation.

**104.4 Work Started Without a Permit - Added.** If work is initiated prior to the issuance of the required permit, a penalty fee shall be charged in accordance with Title 49, Tulsa Revised Ordinances. The assessment or payment of this fee shall not relieve any person from fully complying with all requirements of this code nor shall such payment exempt the persons from further penalty, such as suspension or revocation of their Certificate of Registration.

**104.5 Expiration of Permit - Added.** Unless extended by the code official, any permit shall be invalid if the authorized work is not commenced within six (6) months after issuance of the permit, or if the authorized work is suspended or abandoned for a period of six (6) months after the time work commenced.

**104.6 Revocation of Permit - Added.** The code official shall revoke any permit or approval issued pursuant to this code, in the event it is discovered that the permit or approval was issued based upon a false statement or misrepresentation of fact materially affecting the permit application or construction documents.

**104.7 Annual Permits - Added.** Annual permits shall be issued in accordance with Tulsa Revised Ordinances, Title 50.

**104.7.1 Annual Permit - Amendatory.** An annual permit is a yearly permit which represents a group of individual permits for each alteration to an already existing electrical, gas, mechanical or plumbing installation. The building official is authorized to issue an annual permit upon application therefor to any person, firm or corporation regularly employing one or more qualified tradespersons in the building, structure or on the premises owned or operated by the applicant for the permit.

**104.7.2 Annual permit records - Amendatory.** The person to whom an annual permit is issued shall keep a detailed record of alterations made under such annual permit. The building official shall have access to such detailed records of alterations at all times. At the completion of the entity's annual permit term, the applicant shall file such detailed records of alterations with the building official. Pursuant to the authority of 59 O.S. § 1000.25, the building official shall collect fees for each individual permit which is part of the annual permit once the detailed records are submitted and remit such fees to the OUBCC.

**Section 105. Inspections.**

**105.1 Inspection Required - Added.** Work shall be subject to inspection by the code official and such work shall remain accessible and exposed until approved. Approval as a result of an inspection shall not be construed as an approval of a violation of this code.

**105.2 Request for Inspection - Added.** It shall be the duty of the permit holder to request inspections.

**105.3 Work Open for Approval - Added.** Work that is covered or concealed without approval of the code official shall be subject to penalty as established by Title 49, Tulsa Revised Ordinances.

**105.4 Exception for Emergencies - Added.** For emergency work outside regular business hours, including weekends and holidays, a utility company may connect electrical service to any electrical installation which the utility company deems to be safe. In such cases, the utility company shall notify the Office of Electrical Inspection no later than the first work day after the electrical connection was made so the installation can be inspected.

**105.5 Final Inspection - Added.** Upon completion of the electrical work, the permit holder shall request a final inspection. If the work complies with the code, the code official shall issue a written notice indicating approval of the work. If the work does not comply with the code, the code official shall leave written notice identifying the deficiencies. Appropriate corrections and re-inspections shall be made before a final inspection is approved.

**105.6 Other Inspections - Added.** In addition to the inspections specified in this title, the code official is authorized to make or require other inspections to ensure compliance with the provisions of this code and other laws.

**105.7 Downtime and Reconnect Inspections - Added.** The electric utility is authorized to disconnect and reconnect an electrical service on permitted work before an inspection by the code official with the following conditions:

1. The service that is being altered is currently in use.
2. A permit has been issued for the work to be performed.
3. The request shall be made twenty-four (24) hours in advance and cleared with the electric utility provider.
4. The electrical contractor shall contact the City of Tulsa Permit Center and the application shall be forwarded to the electric utility provider.
5. Immediately upon completion of the installation, the electrical contractor shall call for an inspection.
6. The contractor, in advance of the inspection and in coordination with the electric utility provider shall remove all meter, cabinet, and panel covers.
7. Violation of these conditions may result in the electrical contractor being prohibited from requesting Downtime and Reconnect Inspections in the future.

**105.8 Right of Entry - Added.** Where it is necessary to make an inspection to enforce the provisions of this code, or where the code official has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of this code which makes the structure or premises unsafe, dangerous or hazardous, the code official is authorized to enter the structure or premises at reasonable times to inspect or to perform the duties imposed by this code, provided that if such structure or premises be occupied that credentials be presented to the occupant and entry requested. If such structure or premises is unoccupied, the code official shall first make a reasonable effort to

locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the code official shall have recourse to the remedies provided by law to secure entry.

**Section 106. Violations.**

**106.1 Unlawful Acts - Added.** It shall be unlawful, an offense and a misdemeanor for any person, firm, partnership, corporation, or limited liability company to erect, construct, alter, repair, remove, demolish, or operate electrical equipment regulated by this code, or cause same to be done, in conflict with or in violation of any provision of this code.

**106.2 Notice of Violation - Added.** The code official shall serve a notice of violation or order on the person responsible for the erection, installation, alteration, extension, repair, removal, demolition, or operation of electrical equipment or systems in violation of this code. The order shall direct the person responsible to discontinue the illegal action or condition and to abate the violation. If corrective action is not taken, the code official may file a written complaint in Municipal Court or request the City Attorney to institute the appropriate proceeding in law.

**106.3 Violation Penalties - Added.** Any person violating any of the provisions of this code shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or by imprisonment in the City Jail for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day that a violation continues after an order or notice has been served shall be deemed a separate offense.

**106.4 Abatement of Violation - Added.** Imposition of criminal penalties prescribed in this title shall not preclude the City Attorney from instituting appropriate action to restrain or enjoin unlawful construction, the illegal occupancy of a building, or to stop an illegal act, conduct, business, or operation of electrical equipment or systems, or to abate any such violation.

**Section 107. Stop work order.**

**107.1 Notice - Added.** Upon notice from the code official that work on any structure is being conducted contrary to the provisions of this code or in an unsafe and dangerous manner, such work shall be immediately stopped. A stop work order shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work. The stop work order shall state the conditions under which work will be permitted to resume. Where an emergency exists, the code official shall not be required to give a written notice prior to stopping the work.

**107.2 Unlawful Continuance - Added.** Any person who shall continue any work after having been served with a stop work order, except such work as he is directed to perform to remove a violation or unsafe condition, shall be guilty of a misdemeanor offense as prescribed in Section 106.2 of this title.

**107.3 Unsafe Electrical Systems - Added.** An electrical system that is unsafe, constitutes a fire or health hazard, or is otherwise dangerous to human life, as regulated by this code, is hereby declared an unsafe electrical system. Use of an electrical system regulated by this code constituting a hazard to health, safety or welfare by reason of

inadequate maintenance, dilapidation, fire hazard, disaster, damage or abandonment is hereby declared to be a public nuisance, and shall be abated by repair, rehabilitation, demolition or removal.

**Section 108. Means of appeal - Added.**

Appeals of orders, decisions or determinations made by the code official relative to the application and interpretation of this code, shall be made to the Board of Appeals as established by Title 51, Chapter 1, Tulsa Revised Ordinances.

**Section 109. Registration of electrical contractors.**

**109.1 General - Added.** No person, firm, limited liability company, or corporation shall be issued a permit, engage in or offer to engage in, by advertisement or otherwise, any electrical work in the City of Tulsa as a contractor unless such person, firm, limited liability company, or corporation has properly registered with the City of Tulsa. All contractors, journeymen, and apprentices shall carry their state license on their person at all times while performing electrical work within the City of Tulsa and shall display the same upon request from the code official or a police officer of the City of Tulsa. No person issued a contractor's license shall employ or supervise persons performing electrical work unless those person(s) are licensed or allow any apprentice to perform electrical work unless the apprentice shall have direct supervision by a properly licensed person.

**109.2 Requirements for Registration - Added.** No person, firm, partnership, corporation, or limited liability company shall be issued a Certificate of Registration unless the City shall have been furnished proof of the issuance of a current State of Oklahoma contractor license issued under the provisions of 59 O.S. 2001, § 1680 et seq., as amended, and the fees established in Title 49, Tulsa Revised Ordinances shall have been paid to the City.

**109.3 Transfer of Registration Prohibited - Added.** No person, firm, partnership, corporation, or limited liability company shall allow its name to be used by any other person, firm, partnership, corporation, or limited liability company to obtain any permit or do any electrical work under its registration.

**109.4 Registration after Revocation - Added.** No person, firm, partnership, corporation, or limited liability company shall be permitted to obtain a new registration within one (1) year from the date of revocation of any prior registration.

**109.5 Expiration of Registration - Added.** Registration of state licensed contractors shall expire on the birth date of the licensee each year.

**109.6 Identification of Service Vehicles - Added.** Every contractor shall identify all service vehicles used in the contractor's business with the company name and contractor's license number. Such letters and numbers shall be no less than two (2) inches in height, shall be of a contrasting color, and shall be placed on both sides of all service vehicles.

**109.7 Suspension or Revocation of Certificates of Registration - Added.** Certificates of Registration may be suspended or revoked by the Board of Appeals in accordance with Title 51, Chapter 1, Tulsa Revised Ordinances.

## Section 110. Registration fees - Added.

Fees shall be charged for certificates of registration and renewals in accordance with Title 49, Tulsa Revised Ordinances.

## CHAPTER 2. AMENDMENTS TO NATIONAL ELECTRICAL CODE, 2020 EDITION

Article 100. Definitions - Amendatory.

### ARTICLE 100. DEFINITIONS - Amendatory.

Article 100 of the National Electrical Code, 2020 Edition (NFPA 70-2020) is adopted as published, provided that the following definitions in Article 100 are added to read as follows:

**Bracketing - Added.** The installation of open wires, supported by metal or wood brackets, along or across the exterior of buildings.

**Nationally Recognized Testing Laboratory - Added.** A testing facility given this designation from the United States Occupational Safety and Health Administration (OSHA) that provides product safety testing and certification services to manufacturers.

**110.12 (B) Integrity of Electrical Equipment and Connections - Amendatory.** Internal parts of electrical equipment, including busbars, wiring terminals, insulators, and other surfaces, shall not be damaged or contaminated by foreign materials such as paint, plaster, cleaners, abrasives, or corrosive residues. There shall be no damaged parts that may adversely affect safe operation or mechanical strength of the equipment such as parts that are broken; bent; cut; or deteriorated by corrosion, chemical action or overheating. Damaged materials, equipment, appliances, and devices shall not be reused unless such elements have been reconditioned, tested, and placed in good and proper working condition and approved by a nationally recognized testing laboratory, or by the manufacturer of the equipment. Electrical equipment damaged by natural or man-made events shall be reused only as recommended by the manufacturer of such equipment.

**210.08 (F) Outdoor Outlets.** All outdoor outlets for dwellings, other than those covered in 210.8 (A) (3), Exception to (3), and for mini-split-type heating/ventilating/air-conditioning (HVAC) equipment and other HVAC units employing power conversion equipment as a means to control compressor speed, that are supplied by single-phase branch circuits rated 150 volts ot ground or less, 50 amperes or less, shall have ground-fault circuit-interrupter protection for personnel. Informational Note: Power conversion equipment is the term used to describe the components used in HVAC equipment that is commonly referred to as a variable speed drive. The use of power conversion equipment to control compressor speed differs from multistage compressor speed control. Exception: Ground-fault circuit-interrupter protection shall not be required on lighting outlets other than those covered in 210.8 (C).

**210.12 Arc-Fault Circuit Interrupter Protection - Added.** Arc-Fault Circuit Interrupter Protection shall be required for existing electrical systems that do not have AFCI protection when any new circuit or receptacle is added to the existing system.

**210.19 (A)(4) Other Loads - Amendatory.** Branch-circuit conductors that supply loads other than those specified in 210.2 and other than cooking appliances as covered in 210.19 (A)(3) shall have an ampacity sufficient for the loads served and shall not be smaller than 14 AWG. 20 ampere general-purpose branch circuits for dwellings shall supply a maximum

of 10 outlets, 15 ampere general-purpose branch circuits for dwellings shall supply a maximum of 8 outlets. 20 ampere general-purpose branch circuits for other than dwellings shall supply a maximum of 8 outlets.

**210.22.1 Permanent Labels - Added.** Permanent labels shall be installed to indicate the address or location served by individual meters for multi-occupancy buildings. The permanent labels shall be embossed or engraved plaques, screwed or riveted to the service disconnect.

**215.12.1 Color Coding; Identification of Ungrounded Conductors - Added.** Where more than one nominal voltage system exists in a building, each ungrounded system conductor shall be identified by phase and system as follows:

| 240/120 | 208/120 | 480/277 | Phase |
|---|---|---|---|
| Black | Black | Brown | A |
| Orange | Red | Orange | B |
| Blue | Blue | Yellow | C |
| White | White | Natural Gray | Neutral |

Other colors shall be used for special applications, such as travelers, etc.

**220.0 Load Calculations - Added.** Where an addition or alteration is made to an existing electrical system, an electrical load calculation shall be prepared to determine if the existing electrical service has the capacity to serve the added load, and the calculation shall be made available to the code official upon request.

**230.24.1 Bracketing Prohibited - Added.** There shall be no bracketing of wires to the exterior of buildings. Weather heads shall be so located that bracketing will not be necessary. This provision shall not apply to wires belonging to public utility companies providing service to existing buildings.

**230.26.1 Point of Attachment for Overhead Services - Added.** The point of the overhead service entrance and attachment to the electric utility company's service wires on a building shall be a minimum of ten (10) feet above the ground.

**Exception:** For existing structures with overhead services, the point of attachment shall be not less than nine (9) feet above the ground. Clearances shall be provided as required by the National Electrical Code.

**230.28.1 Service Masts as Supports - Added.** The minimum size of rigid metal conduit (RMC) shall be two (2) inches for services up to and including two hundred (200) amperes and two and one-half (2½) inches for services over two hundred (200) amperes.

**250.24.1 Ungrounded Systems.** Construction of new ungrounded services shall require the written special permission of the code official.

**250.53 (A)(2) Supplemental Electrode Required - Added.**

**250.53.1 Residential Remodels and Repairs.** A supplemental grounding electrode shall be required for complete residential rewires and for complete service changes. Repairs to existing services that are not replaced entirely, shall not require a supplemental grounding electrode where 25 ohms or less of resistance to earth is present.

**358.12.1 Electrical Metallic Tubing (EMT) Uses Not Permitted - Added.** EMT shall not be installed in concrete or underground.

**422.16 (B)(5) Gas-fired central furnaces.** Gas-fired furnaces supplying dwelling units shall be permitted to be connected by a flexible cord-and-plug. The cord and attachment plug shall have sufficient ampacity for the load and shall be routed or otherwise protected to prevent physical damage to the cord or attachment plug.

**505.7 (A) Implementation of Zone Classification System - Amendatory.** Classification of areas, engineering and design, selection of equipment and wiring methods shall be performed by a Registered Professional Engineer with expertise in Hazardous (Classified) Locations and Zone Systems. The installation of equipment and wiring methods, and inspections shall be performed by qualified persons.

**506.7 (A) Implementation of Zone Classification System - Amendatory.** Classification of areas, engineering and design, selection of equipment and wiring methods shall be performed by a Registered Professional Engineer with expertise in Hazardous (Classified) Locations and Zone Systems. The installation of equipment and wiring methods, and inspections shall be performed by qualified persons.

**555.30 (D) Luminaires and other electrical equipment.** Luminaires and electrical connections to luminaires or other electrical equipment shall be located not less than 5 feet horizontally from the nearest normal edge of the water. If a luminaire is within the 5 foot horizontal zone it must be 12 feet vertically.

**682.10 Electrical Equipment and Transformers.** Electrical equipment and transformers, including their enclosures, shall be specifically approved for the intended location. No portion of an enclosure for electrical equipment not identified for operation while submerged shall be located below the electrical datum plane. Luminaires or other electrical connections shall be located at least 5 feet (1524 mm) horizontally from the nearest edge of the water. If the luminaire is within 5 feet horizontally of the water edge it must be 12 foot vertically above the nearest edge of the water.

**680.23 (A)(4) Voltage Limitations.** No luminaries shall operate above the low voltage contact limit as defined in Section 680.2. This requirement shall apply to new installations, repair, replacement and modification of underwater luminaires. This section shall not apply to relamping if the line-voltage luminaire is protected by a Class A ground-fault circuit-interrupter.

**680.23.1 Underwater Luminaire(s) (Lighting) - Added.** All underwater lighting for swimming, wading, therapeutic, and decorative pools, fountains, hot tubs, and spas shall be supplied with not more than fourteen (14) volts. Where a plastic deck box is used, it shall be installed not less than two (2) feet away from the water's edge.

*(Ord. No. 24936, § 1, 10-26-2022)*

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# TITLE 53 GAS PIPING AND FITTERS CODE (REPEALED)*

*__Note—__This title was repealed by the Mechanical Equipment Code, Title 59, effective August 1, 1966.

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# TITLE 54 (RESERVED)

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# TITLE 55 PROPERTY MAINTENANCE CODE*

**Chapter 1. General Rules of Property Maintenance**
**Chapter 2. General Principles and Interpretation**
**Chapter 3. Structure and Premises Standards**
**Chapter 4. Light, Ventilation, and Occupancy Limitations**
**Chapter 5. Plumbing and Drainage Systems**
**Chapter 6. Mechanical, Heating and Electrical Systems**
**Chapter 7. Fire Safety**
**Chapter 8. Chronic Nuisance Property**
**Chapter 9. Boarding of Buildings**
**Chapter 10. Vacant Properties**
**Chapter 11. Residential Rental Occupancy Standards**

*__Editor's note—__Ord. No. 23957, adopted July 11, 2018, amended Title 55 in its entirety to read as herein set out. Former Title 55, Ch. 1, §§ 100, 101, 111, pertained to similar subject matter. See Code Comparative Table for complete derivation.

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## CHAPTER 1. GENERAL RULES OF PROPERTY MAINTENANCE

Section 101. Overview.
Section 102. Applicability.
Section 103. Enforcement.
Section 104. Duties and powers of the code official.
Section 105. Approval.
Section 106. Violations.
Section 107. Notices and orders.
Section 108. Unsafe structures and equipment.
Section 109. Emergency measures.
Section 110. Appeals.
Section 111. Administrative equivalencies.
Section 112. Stop work order.
Section 113. Penalties.

### Section 101. Overview.

**101.1 Title.** These provisions shall be known and may be cited as the "Property Maintenance Code of the City of Tulsa" or as the "Tulsa Property Maintenance Code", hereinafter referred to as "this Code."

**101.2 Scope.** The provisions of this Code shall apply to all existing residential and nonresidential structures and all existing premises within the City of Tulsa, and constitute minimum requirements and standards for premises, structures, equipment and facilities for light, ventilation, space, heating, sanitation, protection from the elements, life safety, safety from fire and other hazards, and for safe and sanitary maintenance. This Code shall identify the responsibility of owners, operators and occupants and shall set forth the requisites for occupancy of existing structures and premises, and provide for administration, enforcement and penalties.

**101.3 Intent.** This Code shall be construed to secure its expressed intent, which is to ensure public health, safety and welfare insofar as they are affected by the continued occupancy and maintenance of structures and premises within the City of Tulsa. Existing structures and premises that do not comply with these provisions shall be altered or repaired to provide a minimum level of health and safety as required herein.

**101.4 Severability.** If a section, subsection, sentence, clause or phrase of this Code is, for any reason, held to be unconstitutional or otherwise unlawful, such decision shall not affect the validity of the remaining portions of this Code.

*(Ord. No. 23957, 7-11-2018)*

### Section 102. Applicability.

**102.1 General.** Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall govern. Where differences occur between provisions of this Code and the referenced standards, the provisions of this Code shall apply. Where, in a specific case, different sections of this Code specify different requirements, the most restrictive shall govern.

**102.2 Maintenance.** Equipment, systems, devices and safeguards required by this Code or a previous regulation or code under which the structure or premises was constructed, altered or repaired shall be maintained in good working order. No owner, owner's authorized agent, operator or occupant shall cause any service, facility, equipment or utility that is required under this section to be removed from, shut off from or discontinued for any occupied dwelling, except for such temporary interruption as necessary while repairs or alterations are in progress. The requirements of this Code are not intended to provide the basis for removal or abrogation of fire protection and safety systems and devices in existing structures. Except as otherwise specified herein, the owner or the owner's authorized agent shall be responsible for the maintenance of buildings, structures and premises.

**102.3 Application of other codes.** Repairs, additions or alterations to a structure, or changes of occupancy, shall be performed in accordance with the procedures and provisions of applicable City of Tulsa codes.

**102.4 Existing remedies.** The provisions in this Code shall not be construed to abolish or impair existing remedies or the jurisdiction of its officers or agencies relating to the removal or demolition of any structure that is dangerous, unsafe and insanitary.

**102.5 Workmanship.** Repairs, maintenance work, alterations or installations that are caused directly or indirectly by the enforcement of this Code shall be executed and installed in a workmanlike manner and installed in accordance with the manufacturer's instructions.

**102.6 Historic buildings.** The provisions of this Code shall not be mandatory for existing buildings or structures designated as historic buildings where such buildings or structures are judged by the Code official to be safe and in the public interest of health, safety and welfare.

**102.7 Referenced codes and standards.** The codes and standards referenced in this Code shall be those that are listed in Chapter 8 and considered part of the requirements of this Code to the prescribed extent of each such reference and as further regulated in Sections 102.7.1 and 102.7.2.

**Exception:** Where enforcement of a Code provision would violate the conditions of the listing of the equipment or appliance, the conditions of the listing shall apply.

**102.7.1 Conflicts.** Where conflicts occur between provisions of this Code and the referenced standards, the provisions of this Code shall apply.

**102.7.2 Provisions in referenced Code and standards.** Where the extent of the reference to a code or standard includes subject matter that is within the scope of this Code, the provisions of this Code, as applicable, shall take precedence over the provisions in the referenced code or standard.

**102.8 Requirements not covered by Code.** Requirements necessary for the strength, stability or proper operation of an existing fixture, structure or equipment, or for the public safety, health and general welfare, not specifically covered by this Code, shall be determined by the code official.

**102.9 Application of references.** References to chapter or section numbers, or to provisions not specifically identified by number, shall be construed to refer to such chapter, section or provision of this Code.

**102.10 Other laws.** The provisions of this Code shall not be deemed to nullify any provisions of local, state or federal law.

*(Ord. No. 23957, 7-11-2018)*

## Section 103. Enforcement.

**103.1 Enforcement Agency.** The Enforcement Agency for this Code shall be the Department of City Experience and any other department, division, or section of the City of Tulsa authorized and directed to enforce the provisions of this Code, and the Tulsa City-County Health Department.

**103.2 Appointment.** The "code official", as used in this chapter, shall be the Director of the Department of City Experience, the Director of any other department, division or section of the City of Tulsa authorized and directed to enforce this Code, the Director of the Tulsa City-County Health Department and such assistants as may be duly qualified, appointed and employed under the supervision of such directors to serve in the capacity of a code official.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 1, 8-30-2023)*

## Section 104. Duties and powers of the code official.

**104.1 General.** The code official is hereby authorized and directed to enforce the provisions of this Code. The code official shall have the authority to render interpretations of this Code and to adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of this Code. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this Code.

**104.2 Inspections.** The code official shall make all of the required inspections or shall accept reports of inspection by approved agencies or individuals. Reports of such inspections shall be in writing and be certified by a responsible officer of such approved agency or by the responsible individual. The code official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority.

> **104.2.1 Engagement of professional expertise.** To determine the acceptability of technologies, processes, products, facilities, materials and uses attending the design, operation, or use of a building or premises subject to inspection by the code official, the code official is authorized to require the owner or owner's authorized agent to provide, without charge to the jurisdiction, a technical opinion and report and that design submittals to be prepared by and bear the stamp of a registered design professional, if needed. The opinion and report shall be prepared by a qualified engineer, specialist, laboratory, or fire safety specialty organization acceptable to the code official and shall analyze the violations designated by the code official for the property's design, operation or use of the building or premises and the facilities and appurtenances situated thereon. The final report shall recommend necessary changes.

**104.3 Right of entry.** Where it is necessary to make an inspection to enforce the provisions of this Code, or whenever the code official has reasonable cause to believe that there exists in a structure or upon a premises a condition in violation of this Code, the code official is authorized to enter the structure or premises at reasonable times to inspect or perform the

duties imposed by this Code, provided that if such structure or premises is occupied the code official shall present credentials to the occupant and request entry. If such structure or premises is unoccupied, the code official shall first make a reasonable effort to locate the owner, owner's authorized agent or other person having charge or control of the structure or premises and request entry. If entry is refused, the code official shall have recourse to the remedies provided by law to secure entry.

**104.4 Identification.** The code official shall carry proper identification when inspecting structures or premises in the performance of duties under this Code.

**104.5 Notices and orders.** The code official shall issue all necessary notices or orders to ensure compliance with this Code.

**104.6 Department records.** The code official shall keep official records of all business and activities of the department specified in the provisions of this Code. Such records shall be retained in the official records for the period required for retention of public records.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 2, 8-30-2023)*

## Section 105. Approval.

**105.1 Modifications.** Whenever there are practical difficulties involved in carrying out the provisions of this Code, the code official shall have the authority to grant modifications for individual cases upon application of the owner or owner's authorized agent, provided the code official shall first find that special individual reason makes the strict letter of this Code impractical, the modification is in compliance with the intent and purpose of this Code and that such modification does not lessen health, life and fire safety requirements. The details of action granting modifications shall be recorded and entered in the department files.

**105.2 Alternative materials, methods and equipment.** The provisions of this Code are not intended to prevent the installation of any material or to prohibit any method of construction not specifically prescribed by this Code, provided that any such alternative has been approved by a code official, upon a finding that the proposed design is satisfactory and complies with the intent of the provisions of this Code, and that the material, method or work offered is, for the purpose intended, at least the equivalent of that prescribed in this Code in quality, strength, effectiveness, fire resistance, durability and safety. Where the alternative material, design or method of construction is not approved, the code official shall respond in writing, stating the reasons the alternative was not approved.

**105.3 Required testing.** Whenever there is insufficient evidence of compliance with the provisions of this Code or evidence that a material or method does not conform to the requirements of this Code, or in order to substantiate claims for alternative materials or methods, the code official shall have the authority to require tests to be made as evidence of compliance at no expense to the City of Tulsa.

**105.3.1 Test methods.** Test methods shall be as specified in this Code or by other recognized test standards. In the absence of recognized and accepted test methods, the code official shall be permitted to approve appropriate testing procedures performed by an approved agency.

**105.3.2 Test reports.** Reports of tests shall be retained by the code official for the period required for retention of public records.

**105.4 Used material and equipment.** The use of used materials that meet the requirements of this Code for new materials is permitted. Materials, equipment and devices shall not be reused unless such elements are in good repair or have been reconditioned and tested where necessary, placed in good and proper working condition and approved by the code official.

**105.5 Approved materials and equipment.** Materials, equipment and devices approved by the code official shall be constructed and installed in accordance with such approval.

**105.6 Research reports.** Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this Code, shall consist of valid research reports from approved sources.

*(Ord. No. 23957, 7-11-2018)*

## Section 106. Violations.

**106.1 Unlawful acts.** It shall be unlawful for a person, firm or corporation to be in conflict with or in violation of any of the provisions of this Code.

**106.2 Notice of violation.** The Code official shall serve a notice of violation or order in accordance with Section 107.

**106.3 Prosecution of violation.** Any person failing to comply with a notice of violation or order served in accordance with Section 107 shall be deemed guilty of a misdemeanor or civil infraction as determined by the local municipality, and the violation shall be deemed a strict liability offense. If the notice of violation is not complied with, the Code official shall institute the appropriate proceeding at law or in equity to restrain, correct or abate such violation, or to require the removal or termination of the unlawful occupancy of the structure in violation of the provisions of this Code or of the order or direction made pursuant thereto. Any action taken by the authority having jurisdiction on such premises shall be charged against the real estate upon which the structure is located and shall be a lien upon such real estate.

**106.4 Violation penalties.** Any person who shall violate a provision of this Code, or fail to comply therewith, or with any of the requirements thereof, shall be prosecuted within the limits provided by state or local laws. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

**106.5 Abatement of violation.** The imposition of the penalties herein prescribed shall not preclude the legal officer of the jurisdiction from instituting appropriate action to restrain, correct or abate a violation, or to prevent illegal occupancy of a building, structure or premises, or to stop an illegal act, conduct, business or utilization of the building, structure or premises.

**106.6 Property Manager.** During any abatement process pursuant to this Code, the City may require the owner of the property subject to the abatement, to provide a local contact person (not a corporation, partnership, or limited liability company) who is a resident of the City or County of Tulsa, or is a resident of a county abutting Tulsa County, to be contacted by the City regarding violations of this Code, or in the case of emergencies, and to respond to communications concerning the property subject to the abatement process. No subsequent action taken by the City shall be rendered ineffective due to the failure of the property owner to provide this information. No additional charge shall be assessed by the City due

to having to request this information. A property owner may designate more than one (1) local contract person so that the City has multiple points of contact during the abatement process.

**106.6.1 Local Contact Person.** The owner's local contact person or persons shall be immediately available to the City at all times, twenty-four (24) hours per day, seven days per week. When a local contact person is contacted with a person-to-person communication, or when a message is delivered to the contact person via telephone, voicemail, email, text message, or a combination of these methods, advising that there is a hazardous condition which is an imminent danger to the health, safety or continued habitability to any persons within any structure or habitable space, the contact person shall communicate with the code official or code enforcement officer initiating the contact within one hour and shall immediately commence action to correct such hazardous condition reported to them. Contact information shall include the name, address, phone numbers and e-mail address of the local contact person or persons, and such contact information shall be provided to the City by the property owner in such form as required by the City. The address must include a street address; a post office box is not acceptable. It shall be unlawful for any owner to fail to keep any local contact person's contact information current with the code official.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 3, 8-30-2023)*

## Section 107. Notices and orders.

**107.1 Notice to person responsible.** Whenever the code official determines that there has been a violation of this Code or has grounds to believe that a violation has occurred, notice shall be given in the manner prescribed in Sections 107.2 and 107.3 to the person responsible for the violation and premise as specified in this Code. Notices for designated unsafe structures procedures shall also comply with Section 108.3.

**107.2 Form.** Such notice prescribed in Section 107.1 shall be in accordance with all of the following:

1. Be in writing.
2. Include a description of the real estate sufficient for identification.
3. Include a statement of the violation or violations and why the notice is being issued.
4. Include a correction order allowing a reasonable time to make the repairs and improvements required to bring the dwelling unit or structure into compliance with the provisions of this Code.
5. Inform the property owner or owner's authorized agent of the right to appeal.
6. Include a statement of the right to file a lien in accordance with Section 106.3.

**107.3 Method of service.** Such notice shall be deemed to be properly served if a copy thereof is:

1. Delivered personally;
2. Sent by certified or first-class mail addressed to the last known address;
3. A copy of the notice shall be posted in a conspicuous place in or about the structure affected by such notice.

**107.4 Unauthorized tampering.** Signs, tags or seals posted or affixed by the Code official shall not be mutilated, destroyed or tampered with, or removed without authorization from the Code official.

**107.5 Penalties.** Penalties for noncompliance with orders and notices shall be as set forth in Section 106.4.

**107.6 Transfer of ownership.** It shall be unlawful for the owner of any dwelling unit or structure who has received a compliance order or upon whom a notice of violation has been served to sell, transfer, mortgage, lease or otherwise dispose of such dwelling unit or structure to another until the provisions of the compliance order or notice of violation have been complied with, or until such owner or the owner's authorized agent shall first furnish the grantee, transferee, mortgagee or lessee a true copy of any compliance order or notice of violation issued by the Code official and shall furnish to the Code official a signed and notarized statement from the grantee, transferee, mortgagee or lessee, acknowledging the receipt of such compliance order or notice of violation and fully accepting the responsibility without condition for making the corrections or repairs required by such compliance order or notice of violation.

*(Ord. No. 23957, 7-11-2018)*

## Section 108. Unsafe structures and equipment.

**108.1 General.** When a structure or equipment is found by the code official to be unsafe, or when a structure is found unfit for human occupancy, or is found unlawful, such structure shall be deemed unsafe pursuant to the provisions of this Code.

**108.1.1 Unsafe structures.** An unsafe structure is one that is found to be dangerous to the life, health, property or safety of the public or the occupants of the structure by not providing minimum safeguards to protect or warn occupants in the event of fire, or because such structure contains unsafe equipment or is so damaged, decayed, dilapidated, structurally unsafe or of such faulty construction or unstable foundation, that partial or complete collapse is possible.

**108.1.2 Unsafe equipment.** Unsafe equipment includes any boiler, heating equipment, elevator, moving stairway, electrical wiring or device, flammable liquid containers or other equipment on the premises or within the structure which is in such disrepair or condition that such equipment is a hazard to life, health, property or safety of the public or occupants of the premises or structure.

**108.1.3 Structure unfit for human occupancy.** A structure is unfit for human occupancy whenever the Code official finds that such structure is unsafe, unlawful or, because of the degree to which the structure is in disrepair or lacks maintenance, is insanitary, vermin or rat infested, contains filth and contamination, or lacks ventilation, illumination, sanitary or heating facilities or other essential equipment required by this Code, or because the location of the structure constitutes a hazard to the occupants of the structure or to the public.

**108.1.4 Unlawful structure.** An unlawful structure is one found in whole or in part to be occupied by more persons than permitted under this Code, or was erected, altered or occupied contrary to law.

**108.1.5 Dangerous structure or premises.** For the purpose of this Code, any structure or premises that has any or all of the conditions or defects described below shall be considered dangerous:

**1.** Any door, aisle, passageway, stairway, exit or other means of egress that does not conform to the approved building or fire Code of the jurisdiction as related to the requirements for existing buildings.

**2.** The walking surface of any aisle, passageway, stairway, exit or other means of egress is so warped, worn loose, torn or otherwise unsafe as to not provide safe and adequate means of egress.

**3.** Any portion of a building, structure or appurtenance that has been damaged by fire, earthquake, wind, flood, deterioration, neglect, abandonment, vandalism or by any other cause to such an extent that it is likely to partially or completely collapse, or to become detached or dislodged.

**4.** Any portion of a building, or any member, appurtenance or ornamentation on the exterior thereof that is not of sufficient strength or stability, or is not so anchored, attached or fastened in place so as to be capable of resisting natural or artificial loads of one and one-half the original designed value.

**5.** The building or structure, or part of the building or structure, because of dilapidation, deterioration, decay, faulty construction, the removal or movement of some portion of the ground necessary for the support, or for any other reason, is likely to partially or completely collapse, or some portion of the foundation or underpinning of the building or structure is likely to fail or give way.

**6.** The building or structure, or any portion thereof, is clearly unsafe for its use and occupancy.

**7.** The building or structure is neglected, damaged, dilapidated, unsecured or abandoned so as to become an attractive nuisance to children who might play in the building or structure to their danger, becomes a harbor for vagrants, criminals or immoral persons, or enables persons to resort to the building or structure for committing a nuisance or an unlawful act.

**8.** Any building or structure has been constructed, exists or is maintained in violation of any specific requirement or prohibition applicable to such building or structure provided by the approved building or fire Code of the jurisdiction, or of any law or ordinance to such an extent as to present either a substantial risk of fire, building collapse or any other threat to life and safety.

**9.** The building or structure which is being operated or lack thereof in a manner which has become an attractive nuisance for crime or enables persons to resort to the building or structure for committing a nuisance or an unlawful act.

**10.** Any building or structure, because of a lack of sufficient or proper fire-resistance-rated construction, fire protection systems, electrical system, fuel connections, mechanical system, plumbing system or other cause, is determined by the Code official to be a threat to life or health.

**11.** Any portion of a building remains on a site after the demolition or destruction of the building or structure or whenever any building or structure is abandoned so as to constitute such building or portion thereof as an attractive nuisance or hazard to the public.

**108.2 Closing of vacant structures.** If the structure is vacant and unfit for human habitation and occupancy, and is not in danger of structural collapse, the Code official is authorized to post a placard of designated on the premises and order the structure closed up so as not to be an attractive nuisance. Upon failure of the owner or owner's authorized agent to close up the premises within the time specified in the notice, the Code official shall cause the premises to be closed and secured through any available public agency or by contract or arrangement by private persons and the cost thereof shall be charged against the real estate upon which the structure is located and shall be a lien upon such real estate and shall be collected by any other legal resource.

**108.2.1 Authority to disconnect service utilities.** The Code official shall have the authority to authorize disconnection of utility service to the building, structure or system regulated by this Code and the referenced Codes and standards set forth in Section 102.7 in case of emergency or placard structure where necessary to eliminate an immediate hazard to life or property or where such utility connection has been made without approval. The Code official shall notify the serving utility and, whenever possible, the owner or owner's authorized agent and occupant of the building, structure or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnection the owner, owner's authorized agent or occupant of the building structure or service system shall be notified in writing as soon as practical thereafter.

**108.3 Notice.** Whenever the Code official has designated a structure or equipment under the provisions of this section, notice shall be posted in a conspicuous place in or about the structure affected by such notice and served on the owner, owner's authorized agent or the person or persons responsible for the structure or equipment in accordance with Section 107.3. If the notice pertains to equipment, it shall be placed on the designated equipment. The notice shall be in the form prescribed in Section 107.2.

**108.4 Placarding.** Upon failure of the owner, owner's authorized agent or person responsible to comply with the notice or order provisions within the time given, the code official shall post on the premises or on defective equipment a placard bearing the word "Notice of Designation" and a statement of the penalties provided for occupying the premises, operating the equipment or removing the placard.

**108.4.1 Placard removal.** The code official shall remove the placard or void the placard whenever the defect or defects upon which the designation and placarding action were based have been eliminated. Any person who defaces or removes a placard without the approval of the code official shall be subject to the penalties provided by this Code.

**108.5 Prohibited occupancy.** Any occupied structure placarded by the code official shall be vacated as ordered by the code official. Any person who shall occupy a placarded premises or shall operate placarded equipment, and any owner, owner's authorized agent or person responsible for the premises who shall let anyone occupy a placarded premises or operate placarded equipment shall be liable for the penalties provided by this Code.

**108.6 Abatement methods.** The owner, owner's authorized agent, operator or occupant of a building, premises or equipment deemed unsafe by the code official shall abate or cause to be abated or corrected such unsafe conditions either by repair, rehabilitation, demolition or other approved corrective action.

**108.7 Record.** The code official shall cause a report to be filed on an unsafe condition. The report shall state the occupancy of the structure and the nature of the unsafe condition.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 4, 8-30-2023)*

## Section 109. Emergency measures.

**109.1 Imminent danger.** When, in the opinion of the Code official, there is imminent danger of failure or collapse of a building or structure that endangers life, or when any structure or part of a structure has fallen and life is endangered by the occupation of the structure, or when there is actual or potential danger to the building occupants or those in the proximity of any structure because of explosives, explosive fumes or vapors or the presence of toxic fumes, gases or materials, or operation of defective or dangerous equipment, the Code official is hereby authorized and empowered to order and require the occupants to vacate the premises forthwith. The Code official shall cause to be posted at each entrance to such structure a notice reading as follows: "This Structure Is Unsafe and Its Occupancy Has Been Prohibited by the Code Official." It shall be unlawful for any person to enter such structure except for the purpose of securing the structure, making the required repairs, removing the hazardous condition or of demolishing the same.

**109.2 Temporary safeguards.** Notwithstanding other provisions of this Code, whenever, in the opinion of the Code official, there is imminent danger due to an unsafe condition, the Code official shall order the necessary work to be done, including the boarding up of openings, to render such structure temporarily safe whether or not the legal procedure herein described has been instituted; and shall cause such other action to be taken as the Code official deems necessary to meet such emergency.

**109.3 Closing streets.** When necessary for public safety, the Code official shall temporarily close structures and close, or order the authority having jurisdiction to close, sidewalks, streets, public ways and places adjacent to unsafe structures, and prohibit the same from being utilized.

**109.4 Emergency repairs.** For the purposes of this section, the Code official shall employ the necessary labor and materials to perform the required work as expeditiously as possible.

**109.5 Costs of emergency repairs.** Costs incurred in the performance of emergency work shall be paid by the jurisdiction. The legal counsel of the jurisdiction shall institute appropriate action against the owner of the premises or owner's authorized agent where the unsafe structure is or was located for the recovery of such costs.

**109.6 Hearing.** Any person ordered to take emergency measures shall comply with such order forthwith. Any affected person shall thereafter, upon petition directed to the appeals board, be afforded a hearing as described in this Code.

*(Ord. No. 23957, 7-11-2018)*

## Section 110. Appeals.

**110.1 Right to Appeal.** An appeal to the Hearing Officer may be taken by any person aggrieved (hereinafter "Appellant") where it is alleged there is error in any order, requirement, decision, or determination made by the code official.

**110.1.1 Notice of Appeal from the Code Official.** An appeal from a notice or order issued pursuant to Section 107 of this Code shall be taken within ten (10) business days

from the date of the issuance of the notice provided for in Section 107, by filing with the City Clerk at 175 E. 2nd St., Room 260, Tulsa, OK 74103 a Notice of Appeal, specifying the name and mailing address of the Appellant and specifying the grounds for the appeal. The code official, upon receipt of notice from the City Clerk, shall forthwith transmit to the Nuisance Hearing Officer a summary of the matter and copies of all the papers constituting the record. Upon receipt of the record, the Nuisance Hearing Officer shall set the matter for hearing not less than seven (7) nor more than thirty (30) days from receipt of said record. Notice of the date, time, and place of said hearing shall be mailed by the code official by first class mail to Appellant at the address shown in the Notice of Appeal.

**110.1.2 Hearing Officer.** There is hereby appointed a Hearing Officer and alternate Hearing Officers who shall conduct the hearings and perform the duties set forth herein. The Municipal Court Administrator (Municipal Court Clerk) is appointed and shall serve as the Hearing Officer. The Hearing Officer shall appoint and designate one alternate to serve in the Hearing Officer's absence from one of the division head positions in the Municipal Court. The Mayor shall appoint and designate a second alternate Hearing Officer from the Mayor's staff to serve in the absence of the Hearing Officer and the first alternate.

**110.1.3 Stay of Proceedings.** An appeal stays all proceedings in furtherance of the action appealed from.

**110.2 Nuisance hearing officer's authority.** At a hearing before a Nuisance Hearing Officer, pursuant to any section of this title, should the Nuisance Hearing Officer find that a violation of this Code, or a nuisance, as defined by City Ordinances, exists, an Order to Abate shall be entered. Such an order shall authorize standard abatement procedures to be executed which, may include, among other reasonable actions, the following:

1. Immediate abatement by the City when the immediate welfare of life or property is at risk.
2. Self-abatement by any responsible party pursuant to a written work schedule prepared by the code official.
3. Should the responsible party not appear at a scheduled hearing, after being notified as provided in this title, or fail to make other curative arrangements acceptable to the Nuisance Hearing Officer, an order may be entered which allows to a date certain for the nuisance to be abated by any responsible party.
4. If a responsible party fails to abate the nuisance as ordered, without just cause, the Nuisance Hearing Officer shall be authorized to impose a remedial civil penalty against the responsible party in an amount not to exceed One Thousand Dollars ($1,000.00) per day for each day beyond the scheduled completion date that the nuisance remains unabated.
5. If just cause, as determined by the code official, prevents the responsible party from abating the nuisance, the order shall authorize the code official to allow up to two (2) fourteen (14) day extensions to abate any nuisance upon pre-payment of the extension fees.
6. The Nuisance Hearing Officer is authorized to summarily order a remedial civil penalty against the responsible party in an amount not to exceed One Thousand Dollars ($1,000.00) per day for each day the code official documents that a

recurring violation of this title by the same responsible party concerning the same property which is referenced in the Order of Abatement exists within the twenty-four (24) months following the issuance of the order.

**110.3 Appeals to the City Council.**

**110.3.1 Right to appeal.** An appeal to the City Council may be taken by any person aggrieved where it is alleged there is error in any order, requirement, decision, or determination made by the Nuisance Hearing Officer.

**110.3.2 Notice of appeal.** Any person aggrieved by a decision of the Nuisance Hearing Officer may file an appeal to the City by filing two copies of a written Notice of Appeal, specifying the name and address of the Appellant and the grounds for appeal, with the City Clerk at 175 E. 2nd Street, Room 260, Tulsa, OK 74103, within ten (10) business days of the date of the Nuisance Hearing Officer's decision. The Appellant shall obtain a form from the City Clerk, entitled 'Notice of Appeal to Council of Nuisance Hearing Officer Decision' and file two copies of the completed Notice of Appeal with the City Clerk. A hearing on the appeal shall be heard by the Council not later than thirty (30) calendar days from the date of filing the Notice of Appeal unless a later date is agreed to by Appellant. Notice of the date, time and place of the appeal hearing shall be mailed by the Council Secretary by first class mail to the Appellant at the address shown in the Notice of Appeal.

**110.3.3 City Council action.** The City Council shall hold a hearing and may reverse or affirm, wholly or partly, or may modify the order, requirement, decision, or determination appealed from and may make such order, requirement, decision, or determination as ought to be made.

**110.3.4 Stay of proceedings.** An appeal stays all proceedings in furtherance of the action appealed from.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 5, 8-30-2023)*

**Section 111. Administrative equivalencies.**

**111.1. Purpose and intent of equivalencies.** In extraordinary circumstances, a code official may grant an equivalency to the owner of a property providing relief from strict compliance with the regulations of this Code, provided they are consistent with requirement of other codes and compliant with the purpose and intent of this Code. The intent of an equivalency is not to simply remove an inconvenience or financial burden that may result from compliance with applicable requirements. Equivalencies are intended to help alleviate an unnecessary hardship or practical difficulty that would be caused by strict enforcement of this Code or other code. They are intended to provide relief when requirements could render compliance impracticable because of some unique or special characteristics of the property, building, or structure.

**111.2 Authority to grant equivalencies.** Whenever there are practical difficulties involved in the enforcement of the provisions of this Code, the code official shall have the authority to grant equivalencies for individual cases upon application of the owner or the owner's authorized agent, provided the code official shall first find that extraordinary circumstances make the strict compliance of this Code impractical, the modification is in

compliance with the intent and purpose of this Code, and modification(s) do not lessen health, life and fire safety requirements of any other code. The details of action granting modifications shall be recorded and entered in department files."

*(Ord. No. 25116, § 6, 8-30-2023)*

**Section 112. Stop work order.**

**112.1 Authority.** Whenever the Code official finds any work regulated by this Code being performed in a manner contrary to the provisions of this Code or in a dangerous or unsafe manner, the Code official is authorized to issue a stop work order.

**112.2 Issuance.** A stop work order shall be in writing and shall be given to the owner of the property, to the owner's authorized agent, or to the person doing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work is authorized to resume.

**112.3 Emergencies.** Where an emergency exists, the Code official shall not be required to give a written notice prior to stopping the work.

*(Ord. No. 23957, 7-11-2018)*

**Section 113. Penalties.**

**113.1 Penalties.** It shall be unlawful and a misdemeanor offense for any owner, operator, occupant, firm or other person to violate any of the provisions of this Code, fail to comply with any of the requirements thereof, or to occupy, maintain, erect, construct, alter, or repair any building or structure in violation of this Code. Any person, firm, corporation, or limited liability company convicted of a violation of this Code shall be guilty of a misdemeanor offense and shall be punished by a fine of not more than One Thousand, Two Hundred Dollars No Cents ($1,200.00), excluding costs, fees, and assessments, or by imprisonment for a period not exceeding one hundred eighty (180) days, or by both such fine and imprisonment. Each day, or portion thereof, during which a violation is committed, continued, or permitted shall be deemed a separate offense.

*(Ord. No. 23957, 7-11-2018)*

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## CHAPTER 2. GENERAL PRINCIPLES AND INTERPRETATION

### Section 201. Definitions—General.

**201.1 Scope.** Unless otherwise expressly stated, the following terms shall, for the purposes of this Code, have the meanings shown in this chapter.

**201.2 Interchangeability.** Words stated in the present tense include the future; words stated in the masculine gender include the feminine and neuter; the singular number includes the plural and the plural, the singular.

**201.3 Terms defined in other Codes.** Where terms are not defined in this Code and are defined in the International Building Code, International Existing Building Code, International Fire Code, International Fuel Gas Code, International Mechanical Code, International Plumbing Code, International Residential Code, International Zoning Code or NFPA 70, such terms shall have the meanings ascribed to them as stated in those Codes.

**201.4 Terms not defined.** Where terms are not defined through the methods authorized by this section, such terms shall have ordinarily accepted meanings such as the context implies.

**201.5 Parts.** Whenever the words "dwelling unit," "dwelling," "premises," "building," "rooming house," "rooming unit," "housekeeping unit" or "story" are stated in this Code, they shall be construed as though they were followed by the words "or any part thereof."

**ANCHORED.** Secured in a manner that provides positive connection.

**APPROVED.** Acceptable to the Code official.

**BASEMENT.** That portion of a building which is partly or completely below grade.

**BATHROOM.** A room containing plumbing fixtures including a bathtub or shower.

**BEDROOM.** Any room or space used or intended to be used for sleeping purposes in either a dwelling or sleeping unit.

**CODE OFFICIAL.** The official who is charged with the administration and enforcement of this Code, or any duly authorized representative, including but not limited to the Director of the Department of City Experience; the Tulsa Fire Marshal; the Chief of the Tulsa Police Department; the director of any other department, division or section of the City of Tulsa authorized and directed to enforce this Code; the Director of the Tulsa City-County Health Department, and such assistants as may be duly qualified, appointed and employed under the supervision of such directors to serve in the capacity of a code official.

**COST OF SUCH DEMOLITION OR EMERGENCY REPAIRS.** The costs shall include the actual costs of the demolition or repair of the structure less revenues obtained if salvage was conducted prior to demolition or repair. Costs shall include, but not be limited to, expenses incurred or necessitated related to demolition or emergency repairs, such as asbestos survey and abatement if necessary; costs of inspectors, testing agencies or experts retained relative to the demolition or emergency repairs; costs of testing; surveys for other materials that are controlled or regulated from being dumped in a landfill; title searches; mailing(s); postings; recording; and attorney fees expended for recovering of the cost of emergency repairs or to obtain or enforce an order of demolition made by a Code official, the governing body or board of appeals.

**DETACHED.** When a structural element is physically disconnected from another and that connection is necessary to provide a positive connection.

**DETERIORATION.** To weaken, disintegrate, corrode, rust or decay and lose effectiveness.

**DWELLING UNIT.** A structure, or that part of a structure, which is lawfully used as a home, residence or sleeping place by one or more persons, with a room or group of rooms arranged, intended, or designed as a habitable space, containing kitchen, bath or shower, and sleeping facilities.

**EASEMENT.** That portion of land or property reserved for present or future use by a person or agency other than the legal fee owner(s) of the property. The easement shall be permitted to be for use under, on or above a said lot or lots.

**EQUIPMENT SUPPORT.** Those structural members or assemblies of members or manufactured elements, including braces, frames, lugs, snuggers, hangers or saddles, that transmit gravity load, lateral load and operating load between the equipment and the structure.

**EXTERIOR PROPERTY.** The open space on the premises and on adjoining property under the control of owners or operators of such premises.

**GARBAGE.** The animal or vegetable waste resulting from the handling, preparation, cooking and consumption of food.

**GUARD.** A building component or a system of building components located at or near the open sides of elevated walking surfaces that minimizes the possibility of a fall from the walking surface to a lower level.

**HABITABLE SPACE.** Space in a structure for living, sleeping, eating or cooking. Bathrooms, toilet rooms, closets, halls, storage or utility spaces, and similar areas are not considered habitable spaces.

**HISTORIC BUILDING.** Any building or structure that is one or more of the following:

1. Listed or certified as eligible for listing, by the State Historic Preservation Officer or the Keeper of the National Register of Historic Places, in the National Register of Historic Places.
2. Designated as historic under an applicable state or local law.
3. Certified as a contributing resource within a National Register or state or locally designated historic district.

**HOUSEKEEPING UNIT.** A room or group of rooms forming a single habitable space equipped and intended to be used for living, sleeping, cooking and eating which does not contain, within such a unit, a toilet, lavatory and bathtub or shower.

**IMMINENT DANGER.** A condition which could cause serious or life-threatening injury or death at any time.

**INFESTATION.** The presence, within or contiguous to, a structure or premises of insects, rats, vermin or other pests.

**INOPERABLE MOTOR VEHICLE.** A vehicle which cannot be driven upon the public streets for reason including but not limited to being unlicensed, wrecked, abandoned, in a state of disrepair, or incapable of being moved under its own power.

**LABELED.** Equipment, materials or products to which have been affixed a label, seal, symbol or other identifying mark of a nationally recognized testing laboratory, inspection agency or other organization concerned with product evaluation that maintains periodic inspection of the production of the above-labeled items and whose labeling indicates either that the equipment, material or product meets identified standards or has been tested and found suitable for a specified purpose.

**LET FOR OCCUPANCY or LET.** To permit, provide or offer possession or occupancy of a dwelling, dwelling unit, rooming unit, building, premise or structure by a person who is or is not the legal owner of record thereof, pursuant to a written or unwritten lease, agreement or license, or pursuant to a recorded or unrecorded agreement of contract for the sale of land.

**NEGLECT.** The lack of proper maintenance for a building or structure.

**OCCUPANCY.** The purpose for which a building or portion thereof is utilized or occupied.

**OCCUPANT.** Any individual living or sleeping in a building, or having possession of a space within a building.

**OPENABLE AREA.** That part of a window, skylight or door which is available for unobstructed ventilation and which opens directly to the outdoors.

**OPERATOR.** Any person who has charge, care or control of a structure or premises which is let or offered for occupancy.

**OWNER.** Any person, agent, operator, firm or corporation having legal or equitable interest in the property; or recorded in the official records of the state, county or municipality as holding title to the property; or otherwise having control of the property, including the guardian of the estate of any such person, and the executor or administrator of the estate of such person if ordered to take possession of real property by a court.

**PERSON.** An individual, corporation, partnership or any other group acting as a unit.

**PEST ELIMINATION.** The control and elimination of insects, rodents or other pests by eliminating their harborage places; by removing or making inaccessible materials that serve as their food or water; by other approved pest elimination methods.

**PREMISES.** A lot, plot or parcel of land, easement or public way, including any structures thereon.

**PUBLIC WAY.** Any street, alley or similar parcel of land essentially unobstructed from the ground to the sky, which is deeded, dedicated or otherwise permanently appropriated to the public for public use.

**ROOMING HOUSE.** A building arranged or occupied for lodging, with or without meals, for compensation and not occupied as a one- or two-family dwelling.

**ROOMING UNIT.** Any room or group of rooms forming a single habitable unit occupied or intended to be occupied for sleeping or living, but not for cooking purposes.

**RUBBISH.** Combustible and noncombustible waste materials, except garbage; the term shall include the residue from the burning of wood, coal, coke and other combustible materials, paper, rags, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard trimmings, tin cans, metals, mineral matter, glass, crockery and dust and other similar materials.

**SLEEPING UNIT.** A room or space in which people sleep, which can also include permanent provisions for living, eating and either sanitation or kitchen facilities, but not both. Such rooms and spaces that are also part of a dwelling unit are not sleeping units.

**STRICT LIABILITY OFFENSE.** An offense in which the prosecution in a legal proceeding is not required to prove criminal intent as a part of its case. It is enough to prove that the defendant either did an act which was prohibited, or failed to do an act which the defendant was legally required to do.

**STRUCTURE.** That which is built or constructed or a portion thereof.

**TENANT.** A person, corporation, partnership or group, whether or not the legal owner of record, occupying a building or portion thereof as a unit.

**TOILET ROOM.** A room containing a water closet or urinal but not a bathtub or shower.

**ULTIMATE DEFORMATION.** The deformation at which failure occurs and which shall be deemed to occur if the sustainable load reduces to 80 percent or less of the maximum strength.

**VENTILATION.** The natural or mechanical process of supplying conditioned or unconditioned air to, or removing such air from, any space.

**WORKMANLIKE.** Executed in a skilled manner; e.g., generally plumb, level, square, in line, undamaged and without marring adjacent work.

**YARD.** An open space on the same lot with a structure.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 7, 8-30-2023)*

## CHAPTER 3. STRUCTURE AND PREMISES STANDARDS

Section 301. General requirements.
Section 302. Exterior property areas.
Section 303. Swimming pools, spas and hot tubs.
Section 304. Exterior structure.
Section 305. Interior structure.
Section 306. Component serviceability.
Section 307. Handrails and guardrails.
Section 308. Rubbish and garbage.
Section 309 Pest elimination.

### Section 301. General requirements.

**GENERAL**

**301.1 Scope.** The provisions of this chapter shall govern the minimum conditions and the responsibilities of persons for maintenance of structures, equipment and exterior property.

**301.2 Responsibility.** The owner of the premises shall maintain the structures and exterior property in compliance with these requirements, except as otherwise provided for in this Code. A person shall not occupy as owner-occupant or permit another person to occupy premises that are not in a sanitary and safe condition and that do not comply with the requirements of this chapter. Occupants of a dwelling unit, rooming unit or housekeeping unit are responsible for keeping in a clean, sanitary and safe condition that part of the dwelling unit, rooming unit, housekeeping unit or premises which they occupy and control.

**301.3 Vacant structures and land.** Vacant structures and premises thereof or vacant land shall be maintained in a clean, safe, secure and sanitary condition as provided herein so as not to cause a blighting problem or adversely affect the public health or safety.

*(Ord. No. 23957, 7-11-2018)*

### Section 302. Exterior property areas.

**302.1 Sanitation.** Exterior property and premises shall be maintained in a clean, safe and sanitary condition. The occupant shall keep that part of the exterior property that such occupant occupies or controls in a clean and sanitary condition.

**302.2 Grading and drainage.** All premises shall be graded and maintained to prevent the erosion of soil and to prevent the accumulation of stagnant water thereon, or within any structure located thereon.

**Exception:** Approved retention areas and reservoirs.

**302.3 Sidewalks and driveways.** Sidewalks, walkways, stairs, driveways, parking spaces and similar areas shall be kept in a proper state of repair, and maintained free from hazardous conditions.

**302.4 Rodent harborage.** Structures and exterior property shall be kept free from rodent harborage and infestation. Where rodents are found, they shall be promptly exterminated by approved processes that will not be injurious to human health. After pest elimination, proper precautions shall be taken to eliminate rodent harborage and prevent re-infestation.

**302.5 Exhaust vents.** Pipes, ducts, conductors, fans or blowers shall not discharge gases, steam, vapor, hot air, grease, smoke, odors or other gaseous or particulate wastes directly upon abutting or adjacent public or private property or that of another tenant.

**302.6 Accessory structures.** Accessory structures, including detached garages, fences and walls, shall be maintained structurally sound and in good repair.

**302.7 Motor vehicles.** Except as provided for in other regulations, no inoperative or unlicensed motor vehicle shall be parked, kept or stored on any premises, and no vehicle shall at any time be in a state of major disassembly, disrepair, or in the process of being stripped or dismantled. Painting of vehicles is prohibited unless conducted inside an approved spray booth.

**Exception:** A vehicle of any type is permitted to undergo major overhaul, including body work, provided that such work is performed inside a structure or similarly enclosed area designed and approved for such purposes.

**302.8 Defacement of property.** No person shall willfully or wantonly damage, mutilate or deface any exterior surface of any structure or building on any private or public property by placing thereon any marking, carving or graffiti.

It shall be the responsibility of the owner to restore said surface to an approved state of maintenance and repair.

**Section 302.9 Properly marked mailboxes.** Mailboxes shall be clearly marked with address numbers and/or letters.

**Section 302.10 Properly maintained mailboxes.** Mailboxes shall be kept in good repair, properly maintained, and capable of performing the intended function.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25613, §§ 1, 2, 6-25-2025)*

**Section 303. Swimming pools, spas and hot tubs.**

**303.1 Swimming pools.** Swimming pools shall be maintained in a clean and sanitary condition, and in good repair.

**303.2 Enclosures.** Private swimming pools, hot tubs and spas, containing water more than twenty-four (24) inches (610 mm) in depth shall be completely surrounded by a fence or barrier not less than 48 inches (1219 mm) in height above the finished ground level measured on the side of the barrier away from the pool. Gates and doors in such barriers shall be self-closing and self-latching. Where the self-latching device is not less than 54 inches (1372 mm) above the bottom of the gate, the release mechanism shall be located on the pool side of the gate. Self-closing and self-latching gates shall be maintained such that the gate will positively close and latch when released from an open position of six (6) inches (152 mm) from the gatepost. No existing pool enclosure shall be removed, replaced or changed in a manner that reduces its effectiveness as a safety barrier.

**Exception:** Spas or hot tubs with a safety cover that complies with ASTM F 1346 shall be exempt from the provisions of this section.

*(Ord. No. 23957, 7-11-2018)*

## Section 304. Exterior structure.

**304.1 General.** The exterior of a structure shall be maintained in good repair, structurally sound and sanitary so as not to pose a threat to the public health, safety or welfare.

**304.1.1 Unsafe conditions.** The following conditions shall be determined as unsafe and shall be repaired or replaced to comply with the International Building Code or the International Existing Building Code as required for existing buildings:

**1.** The nominal strength of any structural member is exceeded by nominal loads, the load effects or the required strength;

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**2.** The anchorage of the floor or roof to walls or columns, and of walls and columns to foundations is not capable of resisting all nominal loads or load effects;

**3.** Structures or components thereof that have reached their limit state;

**4.** Siding and masonry joints including joints between the building envelope and the perimeter of windows, doors and skylights are not maintained, weather resistant or water tight;

**5.** Structural members that have evidence of deterioration or that are not capable of safely supporting all nominal loads and load effects;

**6.** Foundation systems that are not firmly supported by footings, are not plumb and free from open cracks and breaks, are not properly anchored or are not capable of supporting all nominal loads and resisting all load effects;

**7.** Exterior walls that are not anchored to supporting and supported elements or are not plumb and free of holes, cracks or breaks and loose or rotting materials, are not properly anchored or are not capable of supporting all nominal loads and resisting all load effects;

**8.** Roofing or roofing components that have defects that admit rain, roof surfaces with inadequate drainage, or any portion of the roof framing that is not in good repair with signs of deterioration, fatigue or without proper anchorage and incapable of supporting all nominal loads and resisting all load effects;

**9.** Flooring and flooring components with defects that affect serviceability or flooring components that show signs of deterioration or fatigue, are not properly anchored or are incapable of supporting all nominal loads and resisting all load effects;

**10.** Veneer, cornices, belt courses, corbels, trim, wall facings and similar decorative features not properly anchored or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects;

**11.** Overhang extensions or projections including, but not limited to, trash chutes, canopies, marquees, signs, awnings, fire escapes, standpipes and exhaust ducts not properly anchored or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects;

**12.** Exterior stairs, decks, porches, balconies and all similar appurtenances attached thereto, including guards and handrails, are not structurally sound, not properly anchored or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects; or

**13.** Chimneys, cooling towers, smokestacks and similar appurtenances not structurally sound or not properly anchored, or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects.

**Exceptions:**

**1.** Where substantiated otherwise by an approved method.

**2.** Demolition of unsafe conditions shall be permitted where approved by the Code official.

**304.2 Protective treatment.** Exterior surfaces, including but not limited to, doors, door and window frames, cornices, porches, trim, balconies, decks and fences, shall be maintained in good condition. Exterior wood surfaces, other than decay-resistant woods,

shall be protected from the elements and decay by painting or other protective covering or treatment. Peeling, flaking and chipped paint shall be eliminated and surfaces repainted. Siding and masonry joints, as well as those between the building envelope and the perimeter of windows, doors and skylights, shall be maintained weather resistant and water tight. Metal surfaces subject to rust or corrosion shall be coated to inhibit such rust and corrosion, and surfaces with rust or corrosion shall be stabilized and coated to inhibit future rust and corrosion. Oxidation stains shall be removed from exterior surfaces. Surfaces designed for stabilization by oxidation are exempt from this requirement.

**304.3 Premises identification.** Buildings shall have approved address numbers placed in a position to be plainly legible and visible from the street or road fronting the property. These numbers shall contrast with their background. Address numbers shall be Arabic numerals or alphabet letters. Numbers shall be not less than 4 inches (102 mm) in height with a minimum stroke width of 0.5 inch (12.7 mm).

**304.4 Structural members.** Structural members shall be maintained free from deterioration, and shall be capable of safely supporting the imposed dead and live loads.

**304.5 Foundation walls.** Foundation walls shall be maintained plumb and free from open cracks and breaks and shall be kept in such condition so as to prevent the entry of rodents and other pests.

**304.6 Exterior walls.** Exterior walls shall be free from holes, breaks, and loose or rotting materials; and maintained weatherproof and properly surface coated where required to prevent deterioration.

**304.7 Roofs and drainage.** The roof and flashing shall be sound, tight and not have defects that admit rain. Roof drainage shall be adequate to prevent dampness or deterioration in the walls or interior portion of the structure. Roof drains, gutters and downspouts shall be maintained in good repair and free from obstructions. Roof water shall not be discharged in a manner that creates a public nuisance.

**304.8 Decorative features.** Cornices, belt courses, corbels, terra cotta trim, wall facings and similar decorative features shall be maintained in good repair with proper anchorage and in a safe condition.

**304.9 Overhang extensions.** Overhang extensions including, but not limited to, canopies, marquees, signs, metal awnings, fire escapes, standpipes and exhaust ducts shall be maintained in good repair and be properly anchored so as to be kept in a sound condition. Where required, all exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating materials, such as paint or similar surface treatment.

**304.10 Stairways, decks, porches and balconies.** Every exterior stairway, deck, porch and balcony, and all appurtenances attached thereto, shall be maintained structurally sound, in good repair, with proper anchorage and capable of supporting the imposed loads.

**304.11 Chimneys and towers.** Chimneys, cooling towers, smoke stacks, and similar appurtenances shall be maintained structurally safe and sound, and in good repair. Exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating materials, such as paint or similar surface treatment.

**304.12 Handrails and guards.** Every handrail and guard shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.

**304.13 Window, skylight and door frames.** Every window, skylight, door and frame shall be kept in sound condition, good repair and weather tight.

**304.13.1 Glazing.** Glazing materials shall be maintained free from cracks and holes.

**304.13.2 Openable windows.** Every window, other than a fixed window, shall be easily openable and capable of being held in position by window hardware.

**304.14 Insect screens.** Every door, window and other outside opening required for ventilation of habitable rooms, food preparation areas, food service areas or any areas where products to be included or utilized in food for human consumption are processed, manufactured, packaged or stored shall be supplied with approved tightly fitting screens of minimum 16 mesh per inch (16 mesh per 25 mm), and every screen door used for insect control shall have a self-closing device in good working condition.

**Exception:** Screens shall not be required where other approved means, such as air curtains or insect repellent fans, are employed.

**304.15 Doors.** Exterior doors, door assemblies, operator systems if provided, and hardware shall be maintained in good condition. Locks at all entrances to dwelling units and sleeping units shall tightly secure the door. Locks on means of egress doors shall be in accordance with Section 702.3.

**304.16 Basement hatchways.** Every basement hatchway shall be maintained to prevent the entrance of rodents, rain and surface drainage water.

**304.17 Guards for basement windows.** Every basement window that is openable shall be supplied with rodent shields, storm windows or other approved protection against the entry of rodents.

**304.18 Building security.** Doors, windows or hatchways for dwelling units, room units or housekeeping units shall be provided with devices designed to provide security for the occupants and property within.

**304.18.1 Doors.** Doors providing access to a dwelling unit, rooming unit or housekeeping unit that is rented, leased or let shall be equipped with a deadbolt lock designed to be readily openable from the side from which egress is to be made without the need for keys, special knowledge or effort and shall have a minimum lock throw of 1 inch (25 mm). Such deadbolt locks shall be installed according to the manufacturer's specifications and maintained in good working order. For the purpose of this section, a sliding bolt shall not be considered an acceptable deadbolt lock.

**304.18.2 Windows.** Operable windows located in whole or in part within 6 feet (1828 mm) above ground level or a walking surface below that provide access to a dwelling unit, rooming unit or housekeeping unit that is rented, leased or let shall be equipped with a window sash locking device.

**304.18.3 Basement hatchways.** Basement hatchways that provide access to a dwelling unit, rooming unit or housekeeping unit that is rented, leased or let shall be equipped with devices that secure the units from unauthorized entry.

**304.19 Gates.** Exterior gates, gate assemblies, operator systems if provided, and hardware shall be maintained in good condition. Latches at all entrances shall tightly secure the gates.

**304.20 Lead-Based Paint-Added.** Lead-based paint with a lead content of more than one-half percent (0.5%) shall not be applied to any interior or exterior surface of a dwelling, dwelling unit or child care facility, including fences and outbuildings at these locations. Existing interior and exterior painted surfaces of dwelling units and child care facilities that contain an excess of one-half percent (0.5%) lead shall be removed or covered with paneling or other suitable covering approved by the Code official. All paint known to be over one-half percent (0.5%) lead content shall be handled using lead safe work practices by a certified renovation firm in accordance with United States Environmental Protection Agency (EPA) requirements for renovation activities, Title 40 Code of Federal Regulations (CFR) Part 745.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 8, 8-30-2023)*

## Section 305. Interior structure.

**305.1 General.** The interior of a structure and equipment therein shall be maintained in good repair, structurally sound and in a sanitary condition. Occupants shall keep that part of the structure that they occupy or control in a clean and sanitary condition. Every owner of a structure containing a rooming house, housekeeping units, a hotel, a dormitory, two or more dwelling units or two or more nonresidential occupancies, shall maintain, in a clean and sanitary condition, the shared or public areas of the structure and exterior property.

**305.1.1 Unsafe conditions.** The following conditions shall be determined as unsafe and shall be repaired or replaced to comply with all City of Tulsa applicable Codes:

1. The nominal strength of any structural member is exceeded by nominal loads, the load effects or the required strength;
2. The anchorage of the floor or roof to walls or columns, and of walls and columns to foundations is not capable of resisting all nominal loads or load effects;
3. Structures or components thereof that have reached their limit state;
4. Structural members are incapable of supporting nominal loads and load effects;
5. Stairs, landings, balconies and all similar walking surfaces, including guards and handrails, are not structurally sound, not properly anchored or are anchored with connections not capable of supporting all nominal loads and resisting all load effects;
6. Foundation systems that are not firmly supported by footings are not plumb and free from open cracks and breaks, are not properly anchored or are not capable of supporting all nominal loads and resisting all load effects.

**Exceptions:**

1. Where substantiated otherwise by an approved method.
2. Demolition of unsafe conditions shall be permitted when approved by the Code official.

**305.2 Structural members.** Structural members shall be maintained structurally sound, and be capable of supporting the imposed loads.

**305.3 Interior surfaces.** Interior surfaces, including windows and doors, shall be maintained in good, clean and sanitary condition. Peeling, chipping, flaking or abraded paint shall be repaired, removed or covered. Cracked or loose plaster, decayed wood and other defective surface conditions shall be corrected.

**305.4 Stairs and walking surfaces.** Every stair, ramp, landing, balcony, porch, deck or other walking surface shall be maintained in sound condition and good repair.

**305.5 Handrails and guards.** Every handrail and guard shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.

**305.6 Interior doors.** Every interior door shall fit reasonably well within its frame and shall be capable of being opened and closed by being properly and securely attached to jambs, headers or tracks as intended by the manufacturer of the attachment hardware.

**305.7 Lead-Based Paint-Added.** Lead-based paint with a lead content of more than one-half percent (0.5%) shall not be applied to any interior or exterior surface of a dwelling, dwelling unit or child care facility, including fences and outbuildings at these locations. Existing interior and exterior painted surfaces of dwelling units and child care facilities that contain an excess of one-half percent (0.5%) lead shall be removed or covered with paneling or other suitable covering approved by the Code official. All paint known to be over one-half percent (0.5%) lead content shall be handled using lead safe work practices by a certified renovation firm in accordance with United States Environmental Protection Agency (EPA) requirements for renovation activities, Title 40 Code of Federal Regulations (CFR) Part 745.

*(Ord. No. 23957, 7-11-2018)*

## Section 306. Component serviceability.

**306.1 General.** The components of a structure and equipment therein shall be maintained in good repair, structurally sound and in a sanitary condition.

**306.1.1 Unsafe conditions.** Where any of the following conditions cause the component or system to be beyond its limit state, the component or system shall be determined as unsafe and shall be repaired or replaced to comply with the International Building Code or the International Existing Building Code as required for existing buildings:

**1.** Soils that have been subjected to any of the following conditions:

**1.1.** Collapse of footing or foundation system;

**1.2.** Damage to footing, foundation, concrete or other structural element due to soil expansion;

**1.3.** Adverse effects to the design strength of footing, foundation, concrete or other structural element due to a chemical reaction from the soil;

**1.4.** Inadequate soil as determined by a geotechnical investigation;

**1.5.** Where the allowable bearing capacity of the soil is in doubt; or

**1.6.** Adverse effects to the footing, foundation, concrete or other structural element due to the ground water table.

**2.** Concrete that has been subjected to any of the following conditions:

**2.1.** Deterioration;

**2.2.** Ultimate deformation;

**2.3.** Fractures;

**2.4.** Fissures;

**2.5.** Spalling;

**2.6.** Exposed reinforcement; or

**2.7.** Detached, dislodged or failing connections.

**3.** Aluminum that has been subjected to any of the following conditions:

**3.1.** Deterioration;

**3.2.** Corrosion;

**3.3.** Elastic deformation;

**3.4.** Ultimate deformation;

**3.5.** Stress or strain cracks;

**3.6.** Joint fatigue; or

**3.7.** Detached, dislodged or failing connections.

**4.** Masonry that has been subjected to any of the following conditions:

**4.1.** Deterioration;

**4.2.** Ultimate deformation;

**4.3.** Fractures in masonry or mortar joints;

**4.4.** Fissures in masonry or mortar joints;

**4.5.** Spalling;

**4.6.** Exposed reinforcement; or

**4.7.** Detached, dislodged or failing connections.

**5.** Steel that has been subjected to any of the following conditions:

**5.1.** Deterioration;

**5.2.** Elastic deformation;

**5.3.** Ultimate deformation;

**5.4.** Metal fatigue; or

**5.5.** Detached, dislodged or failing connections.

**6.** Wood that has been subjected to any of the following conditions:

**6.1.** Ultimate deformation;

**6.2.** Deterioration;

**6.3.** Damage from insects, rodents and other vermin;

**6.4.** Fire damage beyond charring;

**6.5.** Significant splits and checks;

**6.6.** Horizontal shear cracks;

**6.7.** Vertical shear cracks;

**6.8.** Inadequate support;

**6.9.** Detached, dislodged or failing connections; or

**6.10.** Excessive cutting and notching.

Exceptions:

**1.** Where substantiated otherwise by an approved method.

**2.** Demolition of unsafe conditions shall be permitted where approved by the Code official.

*(Ord. No. 23957, 7-11-2018)*

## Section 307. Handrails and guardrails.

**307.1 General.** Every exterior and interior flight of stairs having more than four risers shall have a handrail on one side of the stair and every open portion of a stair, landing, balcony, porch, deck, ramp or other walking surface that is more than 30 inches (762 mm) above the floor or grade below shall have guards. Handrails shall be not less than 30 inches (762 mm) in height or more than 42 inches (1067 mm) in height measured vertically above the nosing of the tread or above the finished floor of the landing or walking surfaces. Guards shall be not less than 30 inches (762 mm) in height above the floor of the landing, balcony, porch, deck, or ramp or other walking surface.

**Exception:** Guards shall not be required where exempted by the adopted building Code.

*(Ord. No. 23957, 7-11-2018)*

## Section 308. Rubbish and garbage.

**308.1 Accumulation of rubbish or garbage.** Exterior property and premises, and the interior of every structure, shall be free from any accumulation of rubbish or garbage.

**308.2 Disposal of rubbish.** Every occupant of a structure shall dispose of all rubbish in a clean and sanitary manner by placing such rubbish in approved containers.

**308.2.1 Rubbish storage facilities.** The owner of every occupied premises shall supply approved covered containers for rubbish, and the owner of the premises shall be responsible for the removal of rubbish.

**308.2.2 Refrigerators.** Refrigerators and similar equipment not in operation shall not be discarded, abandoned or stored on premises without first removing the doors.

**308.3 Disposal of garbage.** Every occupant of a structure shall dispose of garbage in a clean and sanitary manner by placing such garbage in an approved garbage disposal facility or approved garbage containers.

**308.3.1 Garbage facilities.** The owner of every dwelling shall supply one of the following: an approved mechanical food waste grinder in each dwelling unit; an approved incinerator unit in the structure available to the occupants in each dwelling unit; or an approved leak proof, covered, outside garbage container.

**308.3.2 Containers.** The operator of every establishment producing garbage shall provide, and at all times cause to be utilized, approved leak proof containers provided with close-fitting covers for the storage of such materials until removed from the premises for disposal.

*(Ord. No. 23957, 7-11-2018)*

## Section 309. Pest elimination.

**309.1 Infestation.** Structures shall be kept free from insect and rodent infestation. Structures in which insects or rodents are found shall be promptly exterminated by approved processes that will not be injurious to human health. After pest elimination, proper precautions shall be taken to prevent re-infestation.

**309.2 Owner.** The owner of any structure shall be responsible for pest elimination within the structure prior to renting or leasing the structure. Where the infestations are caused by defects in the structure, the owner shall be responsible for pest elimination.

**309.3 Single occupant.** The occupant of a one-family dwelling or of a single-tenant nonresidential structure shall be responsible for pest elimination on the premises.

**309.4 Multiple occupancy.** The owner of a structure containing two or more dwelling units, a multiple occupancy, a rooming house or a nonresidential structure shall be responsible for pest elimination in the public or shared areas of the structure and exterior property. If infestation is caused by failure of an occupant to prevent such infestation in the area occupied, the occupant shall be responsible for pest elimination.

**309.5 Occupant.** The occupant of any structure shall be responsible for the continued rodent and pest-free condition of the structure.

*(Ord. No. 23957, 7-11-2018)*

## CHAPTER 4. LIGHT, VENTILATION, AND OCCUPANCY LIMITATIONS

Section 401. Light, ventilation and occupancy limitations.
Section 402. Light.
Section 403. Ventilation.
Section 404. Occupancy limitations.

### Section 401. Light, ventilation and occupancy limitations.

**401.1 Scope.** The provisions of this chapter shall govern the minimum conditions and standards for light, ventilation and space for occupying a structure.

**401.2 Responsibility.** The owner of the structure shall provide and maintain light, ventilation and space conditions in compliance with these requirements. A person shall not occupy as owner-occupant, or permit another person to occupy, any premises that do not comply with the requirements of this chapter.

**401.3 Alternative devices.** In lieu of the means for natural light and ventilation herein prescribed, artificial light or mechanical ventilation complying with the International Building Code shall be permitted.

*(Ord. No. 23957, 7-11-2018)*

### Section 402. Light.

**402.1 Habitable spaces.** Every habitable space shall have not less than one window of approved size facing directly to the outdoors or to a court. The minimum total glazed area for every habitable space shall be 8 percent of the floor area of such room. Wherever walls or other portions of a structure face a window of any room and such obstructions are located less than 3 feet (914 mm) from the window and extend to a level above that of the ceiling of the room, such window shall not be deemed to face directly to the outdoors nor to a court and shall not be included as contributing to the required minimum total window area for the room.

**Exception:** Where natural light for rooms or spaces without exterior glazing areas is provided through an adjoining room, the unobstructed opening to the adjoining room shall be not less than 8 percent of the floor area of the interior room or space, but a minimum of 25 square feet (2.33 $m^2$). The exterior glazing area shall be based on the total floor area being served.

**402.2 Common halls and stairways.** Every common hall and stairway in residential occupancies, other than in one and two-family dwellings, shall be lighted at all times with not less than a 60-watt standard incandescent light bulb for each 200 square feet (19 $m^2$) of floor area or equivalent illumination, provided that the spacing between lights shall not be greater than 30 feet (9144 mm). In other than residential occupancies, means of egress, including exterior means of egress, stairways shall be illuminated at all times the building space served by the means of egress is occupied with not less than 1 foot candle (11 lux) at floors, landings and treads.

**402.3 Other spaces.** All other spaces shall be provided with natural or artificial light sufficient to permit the maintenance of sanitary conditions, and the safe occupancy of the space and utilization of the appliances, equipment and fixtures.

*(Ord. No. 23957, 7-11-2018)*

## Section 403. Ventilation.

**403.1 Habitable spaces.** Every habitable space shall have not less than one openable window. The total openable area of the window in every room shall be equal to not less than 45 percent of the minimum glazed area required in Section 402.1.

**Exception:** Where rooms and spaces without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be not less than 8 percent of the floor area of the interior room or space, but not less than 25 square feet (2.33 $m^2$). The ventilation openings to the outdoors shall be based on a total floor area being ventilated.

**403.2 Bathrooms and toilet rooms.** Every bathroom and toilet room shall comply with the ventilation requirements for habitable spaces as required by Section 403.1, except that a window shall not be required in such spaces equipped with a mechanical ventilation system. Air exhausted by a mechanical ventilation system from a bathroom or toilet room shall discharge to the outdoors and shall not be recirculated.

**403.3 Cooking facilities.** Unless approved through the certificate of occupancy, cooking shall not be permitted in any rooming unit or dormitory unit, and a cooking facility or appliance shall not be permitted to be present in the rooming unit or dormitory unit.

**Exceptions:**

1. Where specifically approved in writing by the Code official.
2. Devices such as coffee pots and microwave ovens shall not be considered cooking appliances.

**403.4 Process ventilation.** Where injurious, toxic, irritating or noxious fumes, gases, dusts or mists are generated, a local exhaust ventilation system shall be provided to remove the contaminating agent at the source. Air shall be exhausted to the exterior and not be recirculated to any space.

**403.5 Clothes dryer exhaust.** Clothes dryer exhaust systems shall be independent of all other systems and shall be exhausted outside the structure in accordance with the manufacturer's instructions.

**Exception:** Listed and labeled condensing (ductless) clothes dryers.

*(Ord. No. 23957, 7-11-2018)*

## Section 404. Occupancy limitations.

**404.1 Privacy.** Dwelling units, hotel units, housekeeping units, rooming units and dormitory units shall be arranged to provide privacy and be separate from other adjoining spaces.

**404.2 Minimum room widths.** A habitable room, other than a kitchen, shall be not less than 7 feet (2134 mm) in any plan dimension. Kitchens shall have a minimum clear passageway of 3 feet (914 mm) between counter fronts and appliances or counter fronts and walls.

**404.3 Minimum ceiling heights.** Habitable spaces, hallways, corridors, laundry areas, bathrooms, toilet rooms and habitable basement areas shall have a minimum clear ceiling height of 7 feet (2134 mm).

**Exceptions:**

1. In one and two-family dwellings, beams or girders spaced not less than 4 feet (1219 mm) on center and projecting a maximum of 6 inches (152 mm) below the required ceiling height.
2. Basement rooms in one and two-family dwellings occupied exclusively for laundry, study or recreation purposes, having a minimum ceiling height of 6 feet 8 inches (2033 mm) with a minimum clear height of 6 feet 4 inches (1932 mm) under beams, girders, ducts and similar obstructions.
3. Rooms occupied exclusively for sleeping, study or similar purposes and having a sloped ceiling over all or part of the room, with a minimum clear ceiling height of 7 feet (2134 mm) over not less than one third of the required minimum floor area. In calculating the floor area of such rooms, only those portions of the floor area with a minimum clear ceiling height of 5 feet (1524 mm) shall be included.

**404.4 Bedroom and living room requirements.** Every bedroom and living room shall comply with the requirements of Sections 404.4.1 through 404.4.5.

**404.4.1 Room area.** Every living room shall contain not less than 120 square feet (11.2 $m^2$) and every bedroom shall contain not less than 70 square feet (6.5 $m^2$) and every bedroom occupied by more than one person shall contain not less than 50 square feet (4.6 $m^2$) of floor area for each occupant thereof.

**404.4.2 Access from bedrooms.** Bedrooms shall not constitute the only means of access to other bedrooms or habitable spaces and shall not serve as the only means of egress from other habitable spaces.

**Exception:** Units that contain fewer than two bedrooms.

**404.4.3 Water closet accessibility.** Every bedroom shall have access to not less than one water closet and one lavatory without passing through another bedroom. Every bedroom in a dwelling unit shall have access to not less than one water closet and lavatory located in the same story as the bedroom or an adjacent story.

**404.4.4 Prohibited occupancy.** Kitchens and non-habitable spaces shall not be used for sleeping purposes.

**404.4.5 Other requirements.** Bedrooms shall comply with the applicable provisions of this Code including, but not limited to, the light, ventilation, room area, ceiling height and room width requirements of this chapter; the plumbing facilities and water-heating facilities requirements of Chapter 5; the heating facilities and electrical receptacle requirements of Chapter 6; and the smoke detector and emergency escape requirements of Chapter 7.

**404.5 Overcrowding.** Dwelling units shall not be occupied by more occupants than permitted by the minimum area requirements of Table 404.5.

**TABLE 404.5**

| | *Minimum Area in Square Feet* | | |
|---|---|---|---|
| *Space* | *1—2 occupants* | *3—5 occupants* | *6 or more occupants* |
| Living Room | No Requirements | 120 | 150 |
| Dining Room | No Requirements | 80 | 100 |

| *Space* | *Minimum Area in Square Feet* | | |
|---|---|---|---|
| | *1—2 occupants* | *3—5 occupants* | *6 or more occupants* |
| Bedrooms | Shall comply with Section 404.4.1 | | |

**404.5.1 Sleeping area.** The minimum occupancy area required by Table 404.5 shall not be included as a sleeping area in determining the minimum occupancy area for sleeping purposes. Sleeping areas shall comply with Section 404.4.

**404.5.2 Combined spaces.** Combined living room and dining room spaces shall comply with the requirements of Table 404.5 if the total area is equal to that required for separate rooms and if the space is located so as to function as a combination living room/dining room.

**404.6 Efficiency unit.** Nothing in this section shall prohibit an efficiency living unit from meeting the following requirements:

1. A unit occupied by not more than one occupant shall have a minimum clear floor area of 120 square feet (11.2 $m^2$). A unit occupied by not more than two occupants shall have a minimum clear floor area of 220 square feet (20.4 $m^2$). A unit occupied by three occupants shall have a minimum clear floor area of 320 square feet (29.7 $m^2$). These required areas shall be exclusive of the areas required by Items 2 and 3.
2. The unit shall be provided with a kitchen sink, cooking appliance and refrigeration facilities, each having a minimum clear working space of 30 inches (762 mm) in front. Light and ventilation conforming to this Code shall be provided.
3. The unit shall be provided with a separate bathroom containing a water closet, lavatory and bathtub or shower.
4. The maximum number of occupants shall be three.

**404.7 Food preparation.** All spaces to be occupied for food preparation purposes shall contain suitable space and equipment to store, prepare and serve foods in a sanitary manner. There shall be adequate facilities and services for the sanitary disposal of food wastes and refuse, including facilities for temporary storage.

*(Ord. No. 23957, 7-11-2018)*

## CHAPTER 5. PLUMBING AND DRAINAGE SYSTEMS

Section 501. Plumbing facilities and fixture requirements.
Section 502. Required facilities.
Section 503. Toilet rooms.
Section 504. Plumbing systems and fixtures.
Section 505. Water system.
Section 506. Sanitary drainage system.
Section 507. Storm drainage.

### Section 501. Plumbing facilities and fixture requirements.

**501.1 Scope.** The provisions of this chapter shall govern the minimum plumbing systems, facilities and plumbing fixtures to be provided.

**501.2 Responsibility.** The owner of the structure shall provide and maintain such plumbing facilities and plumbing fixtures in compliance with these requirements. A person shall not occupy as owner-occupant or permit another person to occupy any structure or premises that does not comply with the requirements of this chapter.

*(Ord. No. 23957, 7-11-2018)*

### Section 502. Required facilities.

**502.1 Dwelling units.** Every dwelling unit shall contain its own bathtub or shower, lavatory, water closet and kitchen sink that shall be maintained in a sanitary, safe working condition. The lavatory shall be placed in the same room as the water closet or located in close proximity to the door leading directly into the room in which such water closet is located. A kitchen sink shall not be used as a substitute for the required lavatory.

**502.2 Rooming houses.** Not less than one water closet, lavatory and bathtub or shower shall be supplied for each four rooming units.

**502.3 Hotels.** Where private water closets, lavatories and baths are not provided, one water closet, one lavatory and one bathtub or shower having access from a public hallway shall be provided for each 10 occupants.

**502.4 Employees' facilities.** Not less than one water closet, one lavatory and one drinking facility shall be available to employees.

**502.4.1 Drinking facilities.** Drinking facilities shall be a drinking fountain, water cooler, bottled water cooler or disposable cups next to a sink or water dispenser. Drinking facilities shall not be located in toilet rooms or bathrooms.

**502.5 Public toilet facilities.** Public toilet facilities shall be maintained in a safe, sanitary and working condition in accordance with the International Plumbing Code. Except for periodic maintenance or cleaning, public access and use shall be provided to the toilet facilities at all times during occupancy of the premises.

*(Ord. No. 23957, 7-11-2018)*

### Section 503. Toilet rooms.

**503.1 Privacy.** Toilet rooms and bathrooms shall provide privacy and shall not constitute the only passageway to a hall or other space, or to the exterior. A door and interior locking device shall be provided for all common or shared bathrooms and toilet rooms in a multiple dwelling.

**503.2 Location.** Toilet rooms and bathrooms serving hotel units, rooming units or dormitory units or housekeeping units, shall have access by traversing not more than one flight of stairs and shall have access from a common hall or passageway.

**503.3 Location of employee toilet facilities.** Toilet facilities shall have access from within the employees' working area. The required toilet facilities shall be located not more than one story above or below the employees' working area and the path of travel to such facilities shall not exceed a distance of 500 feet (152 m). Employee facilities shall either be separate facilities or combined employee and public facilities.

**Exception:** Facilities that are required for employees in storage structures or kiosks, which are located in adjacent structures under the same ownership, lease or control, shall not exceed a travel distance of 500 feet (152 m) from the employees' regular working area to the facilities.

**503.4 Floor surface.** In other than dwelling units, every toilet room floor shall be maintained to be a smooth, hard, nonabsorbent surface to permit such floor to be easily kept in a clean and sanitary condition.

*(Ord. No. 23957, 7-11-2018)*

## Section 504. Plumbing systems and fixtures.

**504.1 General.** Plumbing fixtures shall be properly installed and maintained in working order, and shall be kept free from obstructions, leaks and defects and be capable of performing the function for which such plumbing fixtures are designed. Plumbing fixtures shall be maintained in a safe, sanitary and functional condition.

**504.2 Fixture clearances.** Plumbing fixtures shall have adequate clearances for usage and cleaning.

**504.3 Plumbing system hazards.** Where it is found that a plumbing system in a structure constitutes a hazard to the occupants or the structure by reason of inadequate service, inadequate venting, cross connection, back-siphonage, improper installation, deterioration or damage or for similar reasons, the Code official shall require the defects to be corrected to eliminate the hazard.

*(Ord. No. 23957, 7-11-2018)*

## Section 505. Water system.

**505.1 General.** Every sink, lavatory, bathtub or shower, drinking fountain, water closet or other plumbing fixture shall be properly connected to either a public water system or to an approved private water system. Kitchen sinks, lavatories, laundry facilities, bathtubs and showers shall be supplied with hot or tempered and cold running water in accordance with the International Plumbing Code.

**505.2 Contamination.** The water supply shall be maintained free from contamination, and all water inlets for plumbing fixtures shall be located above the flood-level rim of the fixture. Shampoo basin faucets, janitor sink faucets and other hose bibs or faucets to which hoses are attached and left in place, shall be protected by an approved atmospheric-type vacuum breaker or an approved permanently attached hose connection vacuum breaker.

**505.3 Supply.** The water supply system shall be installed and maintained to provide a supply of water to plumbing fixtures, devices and appurtenances in sufficient volume and at pressures adequate to enable the fixtures to function properly, safely, and free from defects and leaks.

**505.4 Water heating facilities.** Water heating facilities shall be properly installed, maintained and capable of providing an adequate amount of water to be drawn at every required sink, lavatory, bathtub, shower and laundry facility at a minimum temperature of 110°F (43°C). A gas-burning water heater shall not be located in any bathroom, toilet room, bedroom or other occupied room normally kept closed, unless adequate combustion air is provided. An approved combination temperature and pressure-relief valve and relief valve discharge pipe shall be properly installed and maintained on water heaters.

*(Ord. No. 23957, 7-11-2018)*

## Section 506. Sanitary drainage system.

**506.1 General.** Plumbing fixtures shall be properly connected to either a public sewer system or to an approved private sewage disposal system.

**506.2 Maintenance.** Every plumbing stack, vent, waste and sewer line shall function properly and be kept free from obstructions, leaks and defects.

**506.3 Grease interceptors.** Grease interceptors and automatic grease removal devices shall be maintained in accordance with this Code and the manufacturer's installation instructions. Grease interceptors and automatic grease removal devices shall be regularly serviced and cleaned to prevent the discharge of oil, grease, and other substances harmful or hazardous to the building drainage system, the public sewer, the private sewage disposal system or the sewage treatment plant or processes. Records of maintenance, cleaning and repairs shall be available for inspection by the Code official.

*(Ord. No. 23957, 7-11-2018)*

## Section 507. Storm drainage.

**507.1 General.** Drainage of roofs and paved areas, yards and courts, and other open areas on the premises shall not be discharged in a manner that creates a public nuisance.

*(Ord. No. 23957, 7-11-2018)*

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## CHAPTER 6. MECHANICAL, HEATING AND ELECTRICAL SYSTEMS

Section 601. Mechanical and electrical requirements.
Section 602. Heating facilities.
Section 603. Mechanical equipment.
Section 604. Electrical facilities.
Section 605. Electrical equipment.
Section 606. Elevators, escalators and dumbwaiters.
Section 607. Duct systems.

### Section 601. Mechanical and electrical requirements.

**601.1 Scope.** The provisions of this chapter shall govern the minimum mechanical and electrical facilities and equipment to be provided.

**601.2 Responsibility.** The owner of the structure shall provide and maintain mechanical and electrical facilities and equipment in compliance with these requirements. A person shall not occupy as owner-occupant or permit another person to occupy any premises that does not comply with the requirements of this chapter.

*(Ord. No. 23957, 7-11-2018)*

### Section 602. Heating facilities.

**602.1 Facilities required.** Heating facilities shall be provided in structures as required by this section.

**602.2 Residential occupancies.** Dwellings shall be provided with heating facilities capable of maintaining a room temperature of 65°F in all habitable rooms, bathrooms and toilet rooms based on the winter outdoor design temperature for the locality indicated in Appendix D of the International Plumbing Code. Cooking appliances shall not be used, nor shall portable unvented fuel-burning space heaters be used, as a means to provide required heating.

**602.3 Heat supply.** Every owner and operator of any building who rents, leases or lets one (1) or more dwelling unit, rooming unit, dormitory or guestroom on terms, either expressed or implied, to furnish heat to the occupants thereof shall supply heat to maintain a temperature of not less than 65°F in all habitable rooms, bathrooms, and toilet rooms.

**602.4 Occupiable work spaces.** Indoor occupiable work spaces shall be supplied with heat to maintain a minimum temperature of 65°F during the period the spaces are occupied.

**Exceptions:**

1. Processing, storage and operation areas that require cooling or special temperature conditions.
2. Areas in which persons are primarily engaged in vigorous physical activities.

**602.5 Room temperature measurement.** The required room temperatures shall be measured 3 feet (914 mm) above the floor near the center of the room and 2 feet (610 mm) inward from the center of each exterior wall.

*(Ord. No. 23957, 7-11-2018)*

## Section 603. Mechanical equipment.

**603.1 Mechanical appliances.** Mechanical appliances, fireplaces, solid fuel-burning appliances, cooking appliances and water heating appliances shall be properly installed and maintained in a safe working condition, and shall be capable of performing the intended function.

**603.2 Removal of combustion products.** Fuel-burning equipment and appliances shall be connected to an approved chimney or vent.

**Exception:** Fuel-burning equipment and appliances that are labeled for unvented operation.

**603.3 Clearances.** Required clearances to combustible materials shall be maintained.

**603.4 Safety controls.** Safety controls for fuel-burning equipment shall be maintained in effective operation.

**603.5 Combustion air.** A supply of air for complete combustion of the fuel and for ventilation of the space containing the fuel-burning equipment shall be provided for the fuel-burning equipment.

**603.6 Energy conservation devices.** Devices intended to reduce fuel consumption by attachment to a fuel-burning appliance, to the fuel supply line thereto, or to the vent outlet or vent piping therefrom, shall not be installed unless labeled for such purpose and the installation is specifically approved.

*(Ord. No. 23957, 7-11-2018)*

## Section 604. Electrical facilities.

**604.1 Facilities required.** Every occupied building shall be provided with an electrical system in compliance with the requirements of this section and Section 605.

**604.2 Service.** The size and usage of appliances and equipment shall serve as a basis for determining the need for additional facilities in accordance with NFPA 70. Dwelling units shall be served by a three-wire, 120/240 volt, single-phase electrical service having a minimum rating of 60 amperes.

**604.3 Electrical system hazards.** Where it is found that the electrical system in a structure constitutes a hazard to the occupants or the structure by reason of inadequate service, improper fusing, insufficient receptacle and lighting outlets, improper wiring or installation, deterioration or damage, or for similar reasons, the Code official shall require the defects to be corrected to eliminate the hazard.

**604.3.1 Abatement of electrical hazards associated with water exposure.** The provisions of this section shall govern the repair and replacement of electrical systems and equipment that have been exposed to water.

**604.3.1.1 Electrical equipment.** Electrical distribution equipment, motor circuits, power equipment, transformers, wire, cable, flexible cords, wiring devices, ground fault circuit interrupters, surge protectors, molded case circuit breakers, low-voltage fuses, luminaires, ballasts, motors and electronic control, signaling and communication equipment that have been exposed to water shall be replaced in accordance with the provisions of all applicable City of Tulsa Codes.

**Exception:** The following equipment shall be allowed to be repaired where an inspection report from the equipment manufacturer or approved manufacturer's representative indicates that the equipment has not sustained damage that requires replacement:

**1.** Enclosed switches, rated a maximum of 600 volts or less;

**2.** Busway, rated a maximum of 600 volts;

**3.** Panelboards, rated a maximum of 600 volts;

**4.** Switchboards, rated a maximum of 600 volts;

**5.** Fire pump controllers, rated a maximum of 600 volts;

**6.** Manual and magnetic motor controllers;

**7.** Motor control centers;

**8.** Alternating current high-voltage circuit breakers;

**9.** Low-voltage power circuit breakers;

**10.** Protective relays, meters and current transformers;

**11.** Low- and medium-voltage switchgear;

**12.** Liquid-filled transformers;

**13.** Cast-resin transformers;

**14.** Wire or cable that is suitable for wet locations and whose ends have not been exposed to water;

**15.** Wire or cable, not containing fillers, that is suitable for wet locations and whose ends have not been exposed to water;

**16.** Luminaires that are listed as submersible;

**17.** Motors;

**18.** Electronic control, signaling and communication equipment.

**604.3.2 Abatement of electrical hazards associated with fire exposure.** The provisions of this section shall govern the repair and replacement of electrical systems and equipment that have been exposed to fire.

**604.3.2.1 Electrical equipment.** Electrical switches, receptacles and fixtures, including furnace, water heating, security system and power distribution circuits, that have been exposed to fire, shall be replaced in accordance with the provisions of all applicable City of Tulsa Codes.

**Exception:** Electrical switches, receptacles and fixtures that shall be allowed to be repaired where an inspection report from the equipment manufacturer or approved manufacturer's representative indicates that the equipment has not sustained damage that requires replacement.

*(Ord. No. 23957, 7-11-2018)*

## Section 605. Electrical equipment.

**605.1 Installation.** Electrical equipment, wiring and appliances shall be properly installed and maintained in a safe and approved manner.

**605.2 Receptacles.** Every habitable space in a dwelling shall contain not less than two separate and remote receptacle outlets. Every laundry area shall contain not less than one grounding-type receptacle or a receptacle with a ground fault circuit interrupter. Every bathroom shall contain not less than one receptacle. Any new bathroom receptacle outlet shall have ground fault circuit interrupter protection. All receptacle outlets shall have the appropriate faceplate cover for the location.

**605.3 Luminaires.** Every public hall, interior stairway, toilet room, kitchen, bathroom, laundry room, boiler room and furnace room shall contain not less than one electric luminaire. Pool and spa luminaires over 15 V shall have ground fault circuit interrupter protection.

**605.4 Wiring.** Flexible cords shall not be used for permanent wiring, or for running through doors, windows, or cabinets, or concealed within walls, floors, or ceilings.

*(Ord. No. 23957, 7-11-2018)*

## Section 606. Elevators, escalators and dumbwaiters.

**606.1 General.** Elevators, dumbwaiters and escalators shall be maintained in compliance with ASME A17.1. The most current certificate of inspection shall be on display at all times within the elevator or attached to the escalator or dumbwaiter, be available for public inspection in the office of the building operator or be posted in a publicly conspicuous location approved by the Code official. The inspection and tests shall be performed at not less than the periodic intervals listed in ASME A17.1, Appendix N, except where otherwise specified by the authority having jurisdiction.

**606.2 Elevators.** In buildings equipped with passenger elevators, not less than one elevator shall be maintained in operation at all times when the building is occupied.

**Exception:** Buildings equipped with only one elevator shall be permitted to have the elevator temporarily out of service for testing or servicing.

*(Ord. No. 23957, 7-11-2018)*

## Section 607. Duct systems.

**607.1 General.** Duct systems shall be maintained free of obstructions and shall be capable of performing the required function.

*(Ord. No. 23957, 7-11-2018)*

## CHAPTER 7. FIRE SAFETY

Section 701. Fire safety requirements.
Section 702. Means of egress.
Section 703. Fire-resistance ratings.
Section 704. Fire protection systems.

### Section 701. Fire safety requirements.

**701.1 Scope.** The provisions of this chapter shall govern the minimum conditions and standards for fire safety relating to structures and exterior premises, including fire safety facilities and equipment to be provided.

**701.2 Responsibility.** The owner of the premises shall provide and maintain such fire safety facilities and equipment in compliance with these requirements. A person shall not occupy as owner-occupant or permit another person to occupy any premises that do not comply with the requirements of this chapter.

*(Ord. No. 23957, 7-11-2018)*

### Section 702. Means of egress.

**702.1 General.** A safe, continuous and unobstructed path of travel shall be provided from any point in a building or structure to the public way. Means of egress shall comply with the Tulsa Fire Code TRO 14 The Fire Prevention Code of the City of Tulsa.

**702.2 Aisles.** The required width of aisles in accordance with the International Fire Code shall be unobstructed.

**702.3 Locked doors.** Means of egress doors shall be readily openable from the side from which egress is to be made without the need for keys, special knowledge or effort, except where the door hardware conforms to that permitted by the International Building Code.

**702.4 Emergency escape openings.** Required emergency escape openings shall be maintained in accordance with the Code in effect at the time of construction, and the following. Required emergency escape and rescue openings shall be operational from the inside of the room without the use of keys or tools. Bars, grilles, grates or similar devices are permitted to be placed over emergency escape and rescue openings provided the minimum net clear opening size complies with the Code that was in effect at the time of construction and such devices shall be releasable or removable from the inside without the use of a key, tool or force greater than that which is required for normal operation of the escape and rescue opening.

*(Ord. No. 23957, 7-11-2018)*

### Section 703. Fire-resistance ratings.

**703.1 Fire-resistance-rated assemblies.** The required fire-resistance rating of fire-resistance-rated walls, fire stops, shaft enclosures, partitions and floors shall be maintained.

**703.2 Opening protectives.** Required opening protectives shall be maintained in an operative condition. Fire and smokestop doors shall be maintained in operable condition. Fire doors and smoke barrier doors shall not be blocked or obstructed or otherwise made inoperable.

*(Ord. No. 23957, 7-11-2018)*

## Section 704. Fire protection systems.

**704.1 General.** Systems, devices and equipment to detect a fire, actuate an alarm, or suppress or control a fire or any combination thereof shall be maintained in an operable condition at all times in accordance with the International Fire Code.

**704.1.1 Automatic sprinkler systems.** Inspection, testing and maintenance of automatic sprinkler systems shall be in accordance with NFPA 25.

**704.1.2 Fire department connection.** Where the fire department connection is not visible to approaching fire apparatus, the fire department connection shall be indicated by an approved sign mounted on the street front or on the side of the building. Such sign shall have the letters "FDC" not less than 6 inches (152 mm) high and words in letters not less than 2 inches (51 mm) high or an arrow to indicate the location. Such signs shall be subject to the approval of the fire Code official.

**704.2 Single and multiple-station smoke alarms.** Single and multiple-station smoke alarms shall be installed in existing Group I-1 and R occupancies in accordance with Sections 704.2.1 through 704.2.3.

**704.2.1 Where required.** Existing Group I-1 and R occupancies shall be provided with single-station smoke alarms in accordance with Sections 704.2.1.1 through 704.2.1.4. Interconnection and power sources shall be in accordance with Sections 704.2.2 and 704.2.3.

**Exceptions:**

1. Where the Code that was in effect at the time of construction required smoke alarms and smoke alarms complying with those requirements are already provided.
2. Where smoke alarms have been installed in occupancies and dwellings that were not required to have them at the time of construction, additional smoke alarms shall not be required provided that the existing smoke alarms comply with requirements that were in effect at the time of installation.
3. Where smoke detectors connected to a fire alarm system have been installed as a substitute for smoke alarms.

**704.2.1.1 Group R-1.** Single or multiple-station smoke alarms shall be installed in all of the following locations in Group R-1:

1. In sleeping areas.
2. In every room in the path of the means of egress from the sleeping area to the door leading from the sleeping unit.
3. In each story within the sleeping unit, including basements. For sleeping units with split levels and without an intervening door between the adjacent levels, a smoke alarm installed on the upper level shall suffice for the adjacent lower level provided that the lower level is less than one full story below the upper level.

**704.2.1.2 Groups R-2, R-3, R-4 and I-1.** Single or multiple-station smoke alarms shall be installed and maintained in Groups R-2, R-3, R-4 and I-1 regardless of occupant load at all of the following locations:

1. On the ceiling or wall outside of each separate sleeping area in the immediate vicinity of bedrooms.

2. In each room used for sleeping purposes.

3. In each story within a dwelling unit, including basements but not including crawl spaces and uninhabitable attics. In dwellings or dwelling units with split levels and without an intervening door between the adjacent levels, a smoke alarm installed on the upper level shall suffice for the adjacent lower level provided that the lower level is less than one full story below the upper level.

**704.2.1.3 Installation near cooking appliances.** Smoke alarms shall not be installed in the following locations unless this would prevent placement of a smoke alarm in a location required by Section 704.2.1.1 or 704.2.1.2.

1. Ionization smoke alarms shall not be installed less than 20 feet (6096 m) horizontally from a permanently installed cooking appliance.

2. Ionization smoke alarms with an alarm-silencing switch shall not be installed less than 10 feet (3048 mm) horizontally from a permanently installed cooking appliance.

3. Photoelectric smoke alarms shall not be installed less than 6 feet (1829 mm) horizontally from a permanently installed cooking appliance.

**704.2.1.4 Installation near bathrooms.** Smoke alarms shall be installed not less than 3 feet (914 mm) horizontally from the door or opening of a bathroom that contains a bathtub or shower unless this would prevent placement of a smoke alarm required by Section 704.2.1.1 or 704.2.1.2.

**704.2.2 Interconnection.** Where more than one smoke alarm is required to be installed within an individual dwelling or sleeping unit, the smoke alarms shall be interconnected in such a manner that the activation of one alarm will activate all of the alarms in the individual unit. Physical interconnection of smoke alarms shall not be required where listed wireless alarms are installed and all alarms sound upon activation of one alarm. The alarm shall be clearly audible in all bedrooms over background noise levels with all intervening doors closed.

**Exceptions:**

1. Interconnection is not required in buildings that are not undergoing alterations, repairs or construction of any kind.

2. Smoke alarms in existing areas are not required to be interconnected where alterations or repairs do not result in the removal of interior wall or ceiling finishes exposing the structure, unless there is an attic, crawl space or basement available that could provide access for interconnection without the removal of interior finishes.

**704.2.3 Power source.** Single-station smoke alarms shall receive their primary power from the building wiring provided that such wiring is served from a commercial source and shall be equipped with a battery backup. Smoke alarms with integral strobes that are not equipped with battery backup shall be connected to an emergency electrical system. Smoke alarms shall emit a signal when the batteries are low. Wiring shall be permanent and without a disconnecting switch other than as required for overcurrent protection.

**Exceptions:**

1. Smoke alarms are permitted to be solely battery operated in existing buildings where no construction is taking place.
2. Smoke alarms are permitted to be solely battery operated in buildings that are not served from a commercial power source.
3. Smoke alarms are permitted to be solely battery operated in existing areas of buildings undergoing alterations or repairs that do not result in the removal of interior walls or ceiling finishes exposing the structure, unless there is an attic, crawl space or basement available that could provide access for building wiring without the removal of interior finishes.

**704.2.4 Smoke detection system.** Smoke detectors listed in accordance with UL 268 and provided as part of the building's fire alarm system shall be an acceptable alternative to single and multiple-station smoke alarms and shall comply with the following:

1. The fire alarm system shall comply with all applicable requirements in Section 907 of the International Fire Code.
2. Activation of a smoke detector in a dwelling or sleeping unit shall initiate alarm notification in the dwelling or sleeping unit in accordance with Section 907.5.2 of the International Fire Code.
3. Activation of a smoke detector in a dwelling or sleeping unit shall not activate alarm notification appliances outside of the dwelling or sleeping unit, provided that a supervisory signal is generated and monitored in accordance with Section 907.6.5 of the International Fire Code.

*(Ord. No. 23957, 7-11-2018)*

## CHAPTER 8. CHRONIC NUISANCE PROPERTY

Section 801. Chronic Nuisance Property Designation.
Section 802. Action.
Section 803. Review.
Section 804. Order.
Section 805. Conference.
Section 806. Placard.
Section 807. Violation.

### Section 801. Chronic Nuisance Property Designation.

A Chronic Nuisance Property is a dwelling or structure within which, or on the premises of which, any of the following has occurred:

1. Three (3) or more separate violations of criminal statutes of the State of Oklahoma and/or the criminal ordinances of the City of Tulsa in the dwelling or structure or on the premises of a dwelling or structure, or on property within one hundred (100) feet of a dwelling or structure or the premises of a dwelling or structure, within a twenty-four (24) month period; and/or
2. Three (3) or more violations of the City Code relating to property maintenance, nuisance, or zoning arising out of separate and distinct facts and circumstances within a twenty-four (24) month period;
3. Separate violations of the City of Tulsa Fire Prevention Code (Title 14 Tulsa Revised Ordinances) relating to Nuisance Fire Alarms, Section 109.3.2.2, more than five (5) times in any thirty (30) day period, or more than thirty-six (36) times in any twelve (12) month period; or
4. A combination of three (3) offenses from any of the above categories arising out of separate and distinct facts and circumstances which have been investigated, found to have substance, and appropriately documented by the Code Enforcement Officer or members of the Tulsa Police Department or Tulsa Fire Department, and regardless of whether the violation resulted in the initiation of formal court action.

*(Ord. No. 23957, 7-11-2018)*

### Section 802. Action.

Such violations need not result in court action or conviction, but must be appropriately documented by a member of the City of Tulsa Department of City Experience (DCE) Code Enforcement staff, Tulsa Police Department (TPD), or Tulsa Fire Department (TFD).

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 9, 8-30-2023)*

### Section 803. Review.

1. Tulsa Police Department and Tulsa Fire Department will refer cases to DCE Code Enforcement staff to confirm the validity of alleged violations of Chapter 8, Sections 801. These departments shall meet as needed and review locations with violations meeting Section 801.
2. If a property is reviewed and considered a Chronic Nuisance Property by the internal departments reviewing the case, DCE Code Enforcement staff will post a Notice of Violation per Section 107 and set the property for an Administrative Hearing using the

procedures found in Title 24, TRO, "Nuisances". The notice will inform the owner of the hearing date and list the necessary steps to abate the violations to include but not limited to:

**a.** Abate the violations; or

**b.** Contact DCE Code Enforcement staff to schedule a conference with City staff to present a plan of action before the hearing date listed;

**c.** Secure, mow, and clean entire property within ten (10) days of the Notice of Violation.

**3.** If the property is declared a Chronic Nuisance Property by the Administrative Hearing officer, DCE Code Enforcement staff will post the signed order on the property and mail a copy to the owner of record.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 9, 8-30-2023)*

### Section 804. Order.

**1.** DCE Code Enforcement staff will post the Order to Abate on the property designated a Chronic Nuisance Property. The order will inform the owner of the necessary steps to be taken, including, but not limited to:

**a.** Abate the violations; or

**b.** Contact DCE Code Enforcement staff to schedule a conference with City staff to present a plan of action before the hearing date listed;

**c.** Secure, mow, and clean entire property within ten (10) days of the order.

**2.** If the owner does not comply with the order, DCE Code Enforcement staff will execute the procedures contained in Section 806 of this Chapter to post a placard on the property.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 9, 8-30-2023)*

### Section 805. Conference.

**1.** The owner will be responsible for contacting DCE Code Enforcement staff to schedule a conference for the purpose of presenting a plan to abate all violations. If City staff accepts the plan, they will remove the placard from the property.

**2.** The scheduled conference will be attended by the owner or his/her representative, City staff from TPD, TFD, DCE and the Legal Department, one (1) councilor for the City Council district in which the property is located, and any other appropriate department or outside agency that is needed.

**3.** The owner or his/her representative will present a plan to City staff for review, comments, and suggestions. The plan will eliminate all current code violations and prevent future violations.

**4.** Once the plan is agreed upon, the owner will implement the plan and the placard will be removed.

**5.** DCE Code Enforcement staff will monitor the plan and, if at any point the plan is not being maintained, will refer the property back to the internal committee.

**6.** If the owner fails to remove the Chronic Nuisance Property violations within the time period prescribed by the plan, the property may be re-placarded and the City of Tulsa may execute additional abatement procedures as outlined in TRO 24.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 9, 8-30-2023)*

### Section 806. Placard.

**1.** If the owner does not comply with the order contained in Section 804 above, DCE Code Enforcement staff will proceed with the placard process pursuant to Section 108.4.

**2.** Occupancy or operation of the Chronic Nuisance Property after the posting of the placard is forbidden. Violators may be cited or arrested and prosecuted pursuant to Section 108 of this Code.

*(Ord. No. 23957, 7-11-2018; Ord. No. 25116, § 9, 8-30-2023)*

### Section 807. Violation.

**1.** No owner or occupant of any dwelling shall cause or allow such dwelling or premises to be, or become, a Chronic Nuisance Property.

**2.** An owner and/or occupant, as the case may be, shall be deemed to have caused or allowed a dwelling to be, or become, a Chronic Nuisance Property if:

**A.** The owner or occupant has personally committed the acts set forth in Chapter 8, 801.1;

**B.** Such acts were committed by invitees of the occupant or owner;

**C.** Such acts were committed by persons attending events or functions sponsored, permitted or allowed by the occupant or owner;

**D.** Such acts were committed by a combination of 801.2.2. A, B or C; or

**E.** The owner or occupant has been provided with the written notice of a Chronic Nuisance Property designation pursuant to Section 107, the facts alleged therein are true and the owner or occupant fails or refuses to abate the Chronic Nuisance Property designation.

*(Ord. No. 23957, 7-11-2018)*

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## CHAPTER 9. BOARDING OF BUILDINGS

Section 901. Boarding standard.
Section 902. General.
Section 903. Materials.
Section 904. Installation.

### Section 901. Boarding standard.

**901.1 Scope.** The provisions of this chapter shall govern the minimum conditions and the responsibilities of persons for boarding and securing a structure by closing, boarding, or locking of any or all exterior opening so as to prevent entry into the building by use of normal or irregular means.

**901.2 Responsibility.** The owner of the premises shall maintain the structures and exterior property in compliance with these requirements. A person shall not occupy as owner-occupant or permit another person to occupy premises that are in whole or partially boarded up by irregular means as defined in this chapter.

*(Ord. No. 23957, 7-11-2018)*

### Section 902. General.

**902.1 General.** Windows and doors shall be boarded in an approved manner to prevent entry by unauthorized persons and shall be painted to correspond to the color of the existing structure.

**902.2 Normal Means.** Securing a structure by normal means will include locking exterior doors, windows and opening by use of the locking mechanism designed for normal use. Securing an exterior door or window by the use or mechanical securing such as screw or nails is not considered normal means. Secured by "Other Than Normal Means" shall mean a condition when a building or residential structure is secured by means other than those used by normal means.

**902.3 Other Than Normal Means.** Securing a structure by other than normal means will include but not limited to securing exterior doors, windows and opening the use of mechanical securing such as boards to cover the opening and fastening boards with screws or nails, which voids the use of the door or window for its original design and use.

*(Ord. No. 23957, 7-11-2018)*

### Section 903. Materials.

**903.1 Boarding sheet material.** Boarding sheet material shall be minimum ½ inch thick (1.27 cm) exterior grade plywood. Any other materials must be approved by the Code official prior to installation.

**903.2 Boarding framing material.** Boarding framing material shall be minimum nominal 2-inch by 4-inch (51 mm by 102 mm) solid sawn lumber complying with the International Building Code.

**903.3** The materials will be designed and of such color so as to blend in with the finish of the building.

**903.4 Boarding fasteners.**

1. Non-window and door opening. Boarding fasteners will be a minimum of 3 inch (7.62 cm) wood screws and counter sunk.

2. Windows. Boarding fasteners will be a minimum of ⅜ inch (.9525 cm) by 12 inch (30.48 cm) rounded head carriage bolts, ½ inch (1.27 cm) flat washers and ⅜ inch (.9525 cm) construction grade nut.

3. Doors. Boarding fasteners will be a minimum of ⅜ inch (.9525 cm) by 12 inch (30.48 cm) rounded head carriage bolts, ½ inch (1.27 cm) flat washers and ⅜ inch (.9525 cm) construction grade nut.

*(Ord. No. 23957, 7-11-2018)*

**Section 904. Installation.**

**904.1 Installation for openings not used for normal access.**

1. **Boarding installation.** The boarding installation shall be in accordance with Figures A103.1(1) and A103.1(2) and Sections 904.1(1) through 904.1(5).

2. **Boarding sheet material.** The boarding sheet material shall be cut to fit the door or window opening neatly or shall be cut to provide an equal overlap at the perimeter of the door or window.

3. **Windows.** The window shall be opened to allow the carriage bolt to pass through or the window sash shall be removed and stored. The 2-inch by 4-inch (51 mm by 102 mm) strong back framing material shall be cut minimum 2 inches (51 mm) wider than the window opening and shall be placed on the inside of the window opening 6 inches (152 mm) minimum above the bottom and below the top of the window opening. The framing and boarding shall be predrilled. The assembly shall be aligned and the bolts, washers and nuts shall be installed and secured.

4. **Door walls.** The door opening shall be framed with minimum 2-inch by 4-inch (51 mm by 102 mm) framing material secured at the entire perimeter and vertical members at a maximum of 24 inches (610 mm) on center. Blocking shall also be secured at a maximum of 48 inches (1219 mm) on center vertically. Boarding sheet material shall be secured with screws and nails alternating every 6 inches (152 mm) on center.

5. **Doors.** Doors shall be secured by the same method as for windows or door openings. One door to the structure shall be available for authorized entry and shall be secured and locked in an approved manner.

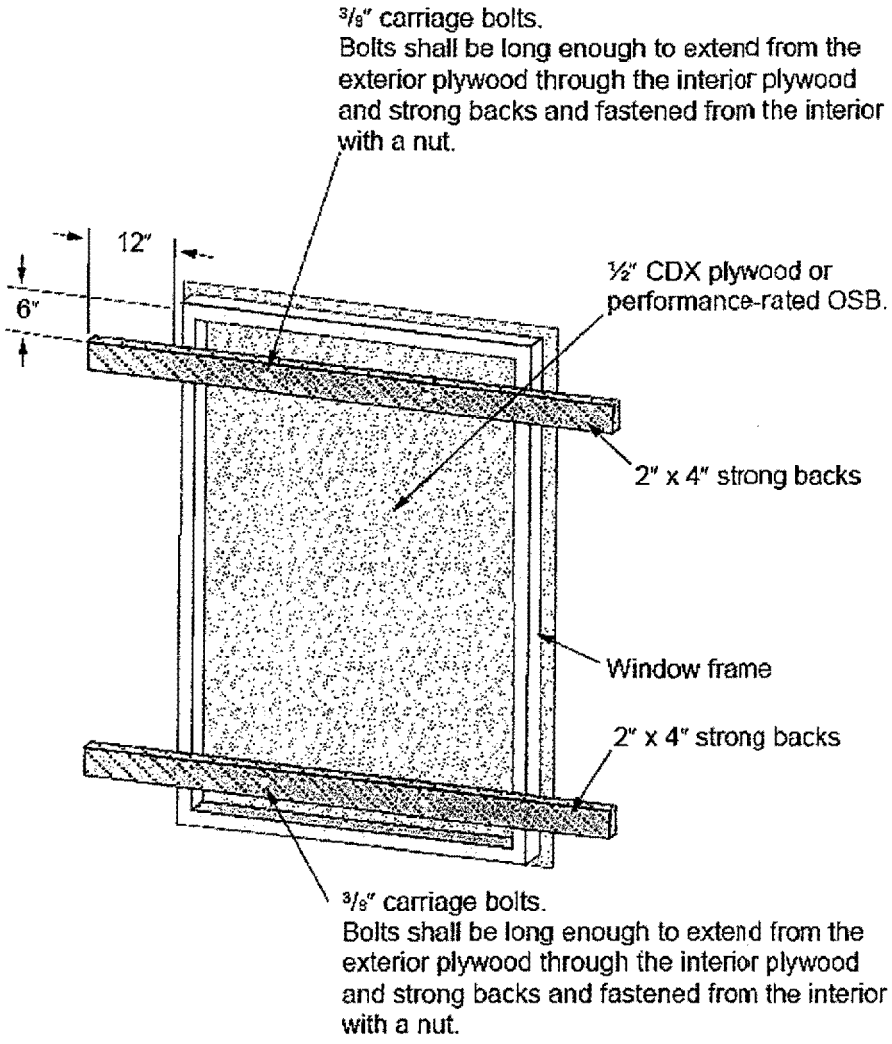


**FIGURE A103.1(1)**
**BOARDING OF DOOR OR WINDOW**

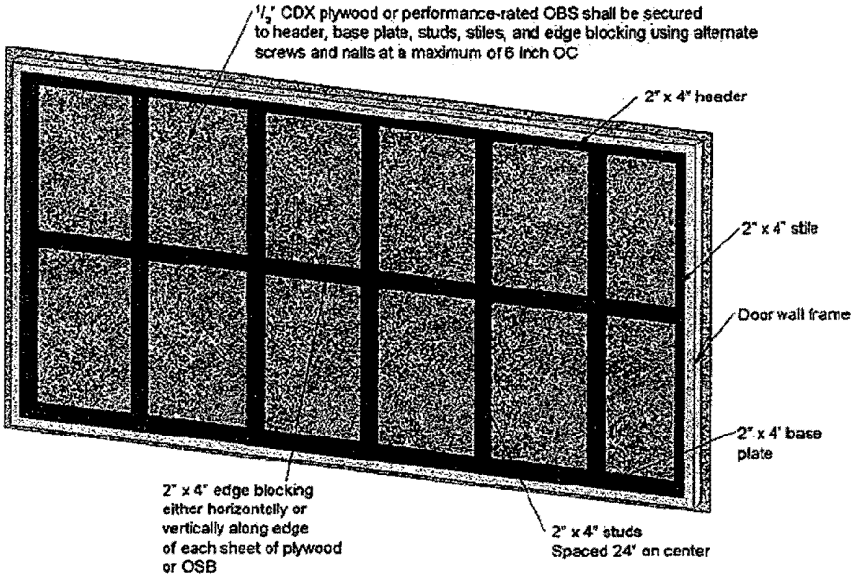


**FIGURE A1-3.1(2)**
**BOARDING OF DOOR WALL**

*(Ord. No. 23957, 7-11-2018)*

## CHAPTER 10. VACANT PROPERTIES

Section 1001. Neglected vacant properties.
Section 1002. General.
Section 1003. Neglected vacant properties.

### Section 1001. Neglected vacant properties.

**1001.1 Scope.** The provisions of this chapter shall govern the definitions and enforcement for vacant properties and minimum conditions by which these properties and structures must be maintained.

**1001.2 Responsibility.** The owner, owner's authorized agent, or operator of the premises shall maintain the structures and exterior property in compliance with these requirements, except as otherwise provided for in this Code. A person shall not occupy as owner-occupant or permit another person to occupy premises that are not in a sanitary and safe condition and that do not comply with the requirements of this chapter.

*(Ord. No. 23957, 7-11-2018)*

### Section 1002. General.

**1002.1 Unoccupied Vacant Properties.** Unoccupied means that condition when a building or residential structure or a portion thereof lacks the habitual presence of human beings who have a legal right to be on the premises, including buildings by which are maintained in a manner that results in no Code violation or structures ordered vacated by an Enforcement Officer, Tulsa Fire Department, Tulsa Police Department, or Tulsa Health Department. In determining whether a building or residential structure is unoccupied, the Enforcement Officer may consider these factors, among others:

1. Whether lawful residential or business activity has ceased;
2. The percentage of the overall square footage of the occupied to unoccupied space or the overall number of occupied and unoccupied units and their proximity to each other;
3. The building or residential structure is substantially devoid of contents or the fixtures or personal property located in the building or residential structure are of a minimal value;
4. The building or residential structure lacks utility services;
5. The building or residential structure is the subject of a foreclosure action;
6. Duration of vacancy; and/or
7. The presence or reoccurrence of Code violations.

**1002.2 Maintenance.** The owner, owner's authorized agent, or operator of the premises shall maintain the property in a manner that the property is immediately suitable for occupation. The basic personal property, utility infrastructure and mechanical equipment is intact and in place. If the property is under renovation the complete renovation is under construction for less than one year. The property's structures remain secured by normal means as listed in Section 901.

*(Ord. No. 23957, 7-11-2018)*

## Section 1003. Neglected vacant properties.

**1003.1 Neglected Vacant Properties** means a building, regardless of the use, the square footage or the presence of more than one living unit, a portion of a building, residential structure, or premises which is any one or more of the following:

**1.** Unoccupied and unsecured;

**2.** Unoccupied and secured by other than normal means in accordance with Section 901;

**3.** Unoccupied and an unsafe building or residential structure with suspected Code violations as determined by an Enforcement Officer;

**4.** Unoccupied and an Enforcement Officer has issued an order to correct Code violations;

**Exemptions:** For the purposes of this title, only the following properties are exempt:

**a.** All properties owned by the federal government, the state of Oklahoma, and all political subdivisions thereof.

**1003.2 Maintenance.** The owner, owner's authorized agent, or operator of the premises shall maintain the property in the following manner:

**1.** The owner will protect and maintain the exterior of the building or residential structure as follows:

**a.** Exterior walls, including foundations, will be maintained so that water does not penetrate into basements, cellars, or other interior areas. All exterior walls and foundations must be free of holes and crevices;

**b.** Exterior doors, windows, skylights, and similar openings will be maintained weather tight;

**c.** Exterior stairs, porches, entrance platforms, fire escapes, and the railings thereon shall be maintained in a safe and sound condition;

**d.** Roofs shall be maintained in weather tight condition;

**e.** Exterior surfaces shall be maintained in good condition. Surfaces not inherently resistant to deterioration shall be treated with a protective coating of paint or other suitable preservative;

**f.** The coverings for windows and doors shall comply with Chapter 9 of this Code. The materials will be designed and of such color so as to blend in with the finish of the building;

**g.** The premises shall be kept free of insects and vermin and will be treated if necessary;

**h.** All exterior signs, awnings, and lighting systems, if not removed, shall be maintained in a non-deteriorated and safe condition;

**i.** Structural members will be maintained to resist and prevent deterioration;

**j.** Ceilings, walls, floors, and stairways will be maintained in a non-deteriorated and safe condition;

**k.** Chimneys, smokestacks, flues, gas vents, smoke pipes, and connectors will be maintained structurally safe and smoke tight;

**l.** Fuel tanks will be maintained so as not to be a hazard or will be disconnected in a manner consistent with the International Fire Code;

**m.** Storm water drainage systems will be maintained so as to function properly and be kept free from obstructions, leaks, and defects. Sewage systems will be similarly maintained or will be sealed so as to prevent accumulation of sewage gases in buildings;

**n.** Electrical fixings, devices, wiring, and systems will be maintained safe in a manner which will avoid a potential source of ignition or shock or service will be discontinued; and

**o.** Elevators, dumbwaiters, and escalators will be maintained or taken out of service in accordance with applicable provisions of the building Code.

**Exceptions:**

**1.** Processing, storage and operation areas that require cooling or special temperature conditions.

**2.** Areas in which persons are primarily engaged in vigorous physical activities.

*(Ord. No. 23957, 7-11-2018)*

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## CHAPTER 11. RESIDENTIAL RENTAL OCCUPANCY STANDARDS

Section 1100. Purpose and scope.
Section 1101. Definitions.
Section 1102. Duties and powers of the code official.
Section 1103. General residential rental property maintenance standards.
Section 1104. Plumbing systems and fixtures standards.
Section 1105. Sanitary facility standards.
Section 1106. Kitchen facility standards.
Section 1107. Electrical and lighting standards.
Section 1108. Heating and cooling standards.
Section 1109. Emergency escapes, egress, and smoke detectors.
Section 1110. Annual verification of fire safety device compliance.
Section 1111. Light and ventilation standards.
Section 1112. Interior sanitation standards.
Section 1113. Residential rental dwelling unit interior building standards.
Section 1114. Exterior residential rental dwelling unit building standards.
Section 1115. Residential rental property premises standards.

### Section 1100. Purpose and scope.

**1101.1 Purpose.** This chapter is enacted to provide for a sustained, habitable, safe, clean, and healthy living environment for residents, tenants, occupants, invitees, and members of the public on or within residential rental properties, in full compliance with the building and housing codes of the City of Tulsa.

**1101.2 Scope.** The provisions of this chapter shall apply to all residential rental properties and dwelling units within the City of Tulsa, and constitute minimum requirements and standards for premises, structures, equipment and facilities for light, ventilation, space, heating, sanitation, protection from the elements, life safety, safety from fire and other hazards, and for safe and sanitary maintenance. Any residential rental property or dwelling unit, by act, omission, or neglect, failing to comply with the minimum requirements and standards of this Code and chapter shall be a public nuisance.

*(Ord. No. 25115, § 1, 8-30-2023)*

### Section 1101. Definitions.

The words and phrases used in this chapter shall have the meanings defined in this section except when the context clearly and unambiguously requires a different meaning. Terms which are not defined in this Code shall have their common and ordinarily accepted meanings or such as the context may imply.

'**Blight**' or '**blighted**' shall mean a condition of a building or premises characterized by neglect or lack of maintenance or damage or graffiti or other similar conditions of disrepair, dilapidation or deterioration which may endanger life or property by fire or other causes or is conducive to ill health, transmission of diseases, rodent or insect infestation or is otherwise detrimental to the public health, safety, and welfare.

'**Building or housing code**' shall mean any law, ordinance or governmental regulation concerning fitness for habitation or the construction, maintenance, operation, occupancy, use or appearance of any residential rental property or residential rental dwelling unit, including but not limited to:

Title 14 Tulsa Revised Ordinances, the current adopted International Code Council (ICC) International Fire Code, as amended from time to time;

Title 24 Tulsa Revised Ordinances, titled 'Nuisances', as amended from time to time;

Title 51 Tulsa Revised Ordinances, Chapter 1, the current adopted ICC International Building Code, as amended from time to time;

Title 51 Tulsa Revised Ordinances, Chapter 2, the current adopted ICC International Residential Code for One- and Two-Family Dwellings, as amended from time to time;

Title 51 Tulsa Revised Ordinances, Chapter 4, the current adopted ICC International Existing Building Code, as amended from time to time;

Title 52 Tulsa Revised Ordinances, the current adopted National Electrical Code, as amended from time to time;

Title 55 Tulsa Revised Ordinances, titled 'Property Maintenance Code', as amended from time to time;

Title 56 Tulsa Revised Ordinances, the current adopted ICC International Plumbing Code, as amended from time to time; and

Title 59 Tulsa Revised Ordinances, the current adopted ICC International Mechanical Code, as amended from time to time.

'**Premises**' shall mean a residential rental dwelling unit and the structure of which it is a part, its facilities and appurtenances, the site, space or lot leased to the owner or resident of a mobile or manufactured home, and the grounds, areas and facilities held out for the use of a resident, tenant, occupant, invitee, or member of the public generally or the use of which is promised to them.

'**Residential rental dwelling unit**' shall mean a structure or building, or that part of a structure or building, with a habitable space used as a dwelling unit and is rented, leased or otherwise let for human occupancy.

'**Residential rental property**' shall mean any property or premises containing one or more residential rental dwelling units.

*(Ord. No. 25115, § 1, 8-30-2023)*

## Section 1102. Duties and powers of the code official.

**1102.1 General.** The code official is authorized and directed to enforce the provisions of this chapter. The code official shall have the authority to render interpretations of this chapter and to adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of this chapter. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this Code.

**1102.2 Inspections.** The code official shall make all required inspections or shall accept reports of inspection by approved agencies or individuals. Reports of such inspections shall be in writing and be certified by a responsible officer of such approved agency or by the

responsible individual. The code official is authorized to engage such expert opinion(s) as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority.

**1102.3 Identification.** A code official shall carry proper identification when inspecting structures or premises of a residential rental property in the performance of duties under this chapter.

**1102.4 Notices and orders.** A code official shall issue all necessary notices or orders to ensure compliance with this chapter.

**1102.5 Department records.** The code official shall keep official records of all business and activities of the department specified in this chapter. Such records shall be retained in the official records for the period required for retention of public records.

*(Ord. No. 25115, § 1, 8-30-2023)*

## Section 1103. General residential rental property maintenance standards.

**1103.1 Most restrictive provisions apply.** No residential rental property maintenance standards prescribed in this chapter shall be deemed to limit the enforcement of requirements of any building or housing code adopted by the City of Tulsa. Should a conflict exist, the more restrictive provisions of any applicable building or housing code shall control.

**1103.2 Safe and operable condition required.** All occupied dwelling units of a residential rental property, regardless of age or condition, and all parts of them shall be maintained in a safe and sanitary condition. All equipment, devices, safeguards and standards which are required by this chapter, or any building or housing code shall be maintained in a safe and operable condition.

**1103.3 Systems, fixture and appliance maintenance.** Every plumbing and electrical system, heating and cooling system, ventilating system, fixture and appliance shall be properly installed, maintained in a safe working condition, and shall be capable of performing the intended function(s).

**1103.4 Clean and safe exterior and premise maintenance.** All exterior property, premises and common areas shall be maintained in a clean, safe, and sanitary condition, free from deterioration and blighted conditions.

**1103.5 Exterior and premises health, safety and welfare.** The exterior and interior of a residential rental property building shall be maintained in good repair, be structurally sound, and in a safe and sanitary condition so as not to pose a threat to the health, safety or welfare of any resident, tenant, occupant, invitee, or member of the public.

*(Ord. No. 25115, § 1, 8-30-2023)*

## Section 1104. Plumbing systems and fixtures standards.

**1104.1 General.** Each residential rental dwelling unit within a residential rental property shall have a plumbing system maintained in good working condition, free from defects, leaks and obstructions. All plumbing fixtures, drains, waste and vent piping shall be maintained in proper working order, connected to an approved waste disposal system and shall be kept free from obstructions, leaks, and defects.

**1104.2 Water system.** A water system shall be installed and maintained to provide a supply of potable water to each fixture in sufficient volume and at pressures adequate such that the fixtures will function safely and properly, free from defects and leaks and will perform their intended function(s).

**1104.3 Water heating facilities.** Water heating facilities shall be properly installed and maintained and capable of providing a supply of water in sufficient volume at every required sink, lavatory, bathtub or shower and laundry facility, if provided, at a temperature of not less than one hundred ten degrees (110°) Fahrenheit.

**1104.4 Gas water heater location.** A gas burning water heater shall not be located in any room used or designed to be used for sleeping purposes, bathrooms, clothes closets or in a closet or other confined space opening into a bath or bedroom.

**1104.5 Temperature and pressure relief valve.** An approved combination temperature and pressure relief valve and relief valve discharge line shall be properly installed and maintained on water heaters.

*(Ord. No. 25115, § 1, 8-30-2023)*

## Section 1105. Sanitary facility standards.

**1105.1 Bathroom facilities required.** Every residential dwelling unit shall be provided with a bathroom equipped with functional plumbing fixtures consisting of a water closet, lavatory basin, and either a bathtub or shower.

**1105.2 Lavatory basins.** A lavatory basin is required in, or immediately adjacent to, any room containing a water closet. A kitchen sink shall not be substituted for the lavatory basin.

**1105.3 Bathroom fixture installation.** Each water closet, lavatory basin, bathtub and shower shall be installed in compliance with applicable building and housing codes and maintained free from defects and leaks. Each lavatory basin, bathtub and shower shall be supplied with hot or tempered and cold running water in sufficient volume necessary for its normal operation.

*(Ord. No. 25115, § 1, 8-30-2023)*

## Section 1106. Kitchen facility standards.

**1106.1 Kitchen required.** Every residential rental dwelling unit shall have a kitchen or kitchen area with space to store, prepare, and serve food in a sanitary manner.

**1106.2 Oven, range or stove, refrigerator required.** Unless otherwise provided by a rental agreement, every residential rental dwelling unit shall be equipped with an oven and range, or stove, and a refrigerator. Connections for each appliance listed in this subsection shall be provided in compliance with the applicable building or housing code. Each appliance shall be properly installed and operating in a manner for which the appliance was designed. The oven and range or stove and refrigerator may be provided by the owner or tenant as part of a rental agreement.

**1106.3 Kitchen sink required.** Every residential rental dwelling unit shall be provided with a kitchen sink properly installed, maintained free from defects and leaks, and supplied with hot and cold running water in sufficient volume necessary for its normal operation.

*(Ord. No. 25115, § 1, 8-30-2023)*

## Section 1107. Electrical and lighting standards.

**1107.1 Electrical service required.** Every residential rental dwelling unit shall have electrical service and lighting that is maintained in a hazard free condition and in a state of good repair. The capacity of all electrical systems shall be able to safely supply power to the existing appliances, fixtures, and facilities in the building.

**1107.2 Hazard free electrical system.** The electrical system for each residential rental dwelling unit shall be free from such hazards as broken wiring, non-insulated wiring, non-code authorized types of wiring, connections or insulation, exposed wiring on or within fixtures, overloaded circuits, missing receptacle, or switch covers, or badly cracked receptacles or switches.

**1107.3 Extension cord prohibitions.** Extension cords shall not be used in place of permanent wiring, allowed to run through doors, windows, or cabinets, or concealed within walls, floors, or ceilings.

*(Ord. No. 25115, § 1, 8-30-2023)*

## Section 1108. Heating and cooling standards.

**1108.1 Heating, cooling, and ventilation systems.**

**1108.1.1.** Heating, cooling and ventilation systems in any residential rental dwelling unit shall be maintained hazard-free, operational and in a state of good repair. Heating and cooling systems shall be free from hazards associated with ventilation, equipment status, mounting, electrical connections and other potential defects.

**1108.1.1.1 Heating requirements.** Every residential rental dwelling unit or building where such systems are installed shall have heating capable of safely maintaining a room temperature of sixty-five degrees (65°) Fahrenheit, heating all habitable rooms, bathrooms, flushing toilet rooms, be maintained in a safe working condition, and shall be capable of performing the intended function. Required heating shall be provided by permanently installed heating facilities. Cooking devices and portable space heaters shall not be used to satisfy this requirement or supplement permanent heating facilities in order to meet this standard.

**1108.1.1.2 Cooling requirements.** Every residential rental dwelling unit or building where such systems are installed shall have cooling capable of safely cooling all habitable rooms, bathrooms, flushing toilet rooms, be maintained in a safe working condition, and shall be capable of performing the intended function. Required cooling shall be provided by permanently installed cooling facilities and, excluding window units, portable cooling devices shall not be used to satisfy this requirement or supplement permanent cooling facilities in order to meet this standard.

**1108.1.1.3. Unvented combustion heaters prohibited.** No owner or tenant shall provide, install or allow to be installed or used any unvented portable space heaters burning solid, liquid or gaseous fuels.

**1108.1.1.4. Cooking appliances as heaters prohibited.** No owner, or tenant shall allow the use of any ovens, stoves or ranges, or other cooking appliances for the purpose of heating any portion of a residential rental dwelling unit.

**1108.1.2 Heating System removal prohibited.** Heating systems for residential rental dwelling units shall not be removed except for immediate repair or replacement.

**1108.1.3 Heating removed - occupancy prohibited.** Where a heating system has previously existed in a residential rental dwelling unit but has been removed, such dwelling unit shall not be occupied unless a heating system is installed.

**1108.1.4 Ducted cooling removal prohibited.** Ducted cooling systems, including refrigerant based systems and evaporative cooling systems, for residential rental dwelling units shall not be removed except for immediate repair or replacement.

**1108.1.5 Ducted cooling removed - occupancy prohibited.** Where a ducted refrigerant-based cooling system has previously existed in a residential rental dwelling unit but has been removed, such dwelling unit shall not be occupied unless a ducted refrigerant-based cooling system is installed or unless, prior to the effective date of the ordinance from which this section is derived, a ducted evaporative cooling system has been installed.

**1108.1.6 Ducted evaporative cooling removed - occupancy prohibited.** Where a ducted evaporative cooling system has previously existed in a residential rental dwelling unit but has been removed, such dwelling unit shall not be occupied unless a ducted evaporative cooling system or a ducted refrigerant-based cooling system is installed.

**1108.1.7. Non-ducted cooling removal prohibited.** Non-ducted cooling units, including refrigerant based cooling units and evaporative cooling units, shall not be removed except for immediate repair or immediate replacement or unless a ducted refrigerant-based cooling system or a ducted evaporative cooling system is available to provide cooling to the residential rental dwelling unit.

**1108.1.8. Non-ducted evaporative cooling removed - occupancy prohibited.** Where a non-ducted cooling unit has previously existed in a residential rental dwelling unit but has been removed, such dwelling unit shall not be occupied unless a non-ducted refrigerant-based cooling unit, a non-ducted evaporative cooling unit, a ducted refrigerant-based cooling system, or ducted evaporative cooling system is installed.

**1108.2 Evaporative cooling maintenance.** Evaporative cooling equipment shall be maintained in a condition free from excessive accumulation of rust, corrosion or mineral deposits that will limit proper operation and all mounting apparatus shall be structurally sound. Condensate from air cooling coils and the overflow from evaporative coolers shall be piped from the roof.

**1108.3 Removal of unused evaporative coolers required.** Unused, inoperable, and deteriorated evaporative coolers shall be removed from any residential rental dwelling unit.

*(Ord. No. 25115, § 1, 8-30-2023)*

**Section 1109. Emergency escapes, egress, and smoke detectors.**

**1109.1 Openable window or door unit required.** Any room used for sleeping within a residential rental dwelling unit must have at least one (1) openable window or door unit for

emergency escape or rescue in accordance with building or housing codes. The units shall be operable from the inside and provide a clear, unobstructed opening without the use of separate tools.

**1109.2 Egress components maintenance.** All egress components, including but not limited to interior and exterior walkways, landings, stairways, balconies, and sidewalks shall be maintained in a structurally-sound condition, free from any tripping hazard.

**1109.3 Fire Safety Systems and Extinguishers.**

**1109.3.1 Fire safety system maintenance.** Fire safety systems in the form of fire suppression and alarm systems shall be installed and maintained in good operating condition in accordance with the building or housing code edition in effect when the residential rental dwelling was constructed or altered. Fire suppression and alarm systems shall be inspected and tested annually in accordance with the provisions of the Fire Extinguisher Licensing Act, 59 O.S., Sections 1800.1 *et seq.*, Alarm and Locksmith Industry Rules, OAC 380:75, and properly display a current inspection tag.

**1109.3.2 Smoke alarms requirements.** If fire suppression and alarm systems are not required for a building, a smoke alarm is required for each residential rental dwelling unit. Smoke alarms may be battery-operated or may receive their power from the building wiring and shall be mounted in accordance with manufacturer's instructions on the ceiling or wall at a point centrally located in the corridor or area giving access to each sleeping area. Smoke alarms shall sound an alarm audible in all sleeping areas of the dwelling unit in which they are located.

**1109.3.3 Fire extinguisher installation and maintenance.** Fire extinguishers shall be installed, maintained, and readily accessible to residents, tenants, occupants, and invitees in accordance with the current building and housing codes. Fire extinguishers must be inspected annually in accordance with Fire Extinguisher Licensing Act, 59 O.S., Sections 1820.1 *et seq.*, Fire Extinguisher Industry Rules, OAC 265:50-5-1, and properly display a current inspection tag.

*(Ord. No. 25115, § 1, 8-30-2023)*

## Section 1110. Annual verification of fire safety device compliance.

**1110.1 Documentation of annual fire safety device verification.** Owners of residential rental dwelling units shall annually document verification of the proper operation of fire extinguishers, fire sprinkler systems (if present), and fire alarm and detection systems (if present) and produce it upon request of the code official. If, due to building and housing codes in place at the time of construction a fire alarm and detection system was not required for a building, the applicant shall provide verification of the presence and proper operation of a smoke alarm in each residential rental dwelling unit.

**1110.2 Acceptable documentation shall include:**

**1110.2.1 Fire Extinguishers:** Documentation from a licensed inspector verifying that all fire extinguishers have been inspected in the past twelve (12) months and are in working condition in accordance with the Fire Extinguisher Licensing Act, 59 O.S., Sections 1820.1 *et seq.*, and Fire Extinguisher Industry Rules, OAC 265:50-5-1.

**1110.2.2 Fire Sprinkler Systems and Fire Alarm and Detection Systems:** Documentation from a licensed inspector verifying that each system present in a

residential rental dwelling unit has been inspected and tested in the last twelve (12) months in accordance with the provisions of the Fire Extinguisher Licensing Act, 59 O.S., Sections 1800.1 *et seq.*, and Alarm and Locksmith Industry Rules, OAC 380:75. Documentation must indicate that each system has successfully passed the criteria for a green tag.

**1110.2.3 Smoke Alarms (Dwelling units without fire alarm and detection systems):**

**1110.2.3.1 Option 1:** Documentation from a qualified inspector indicating the presence and proper operation of each smoke alarm in each residential rental dwelling unit. Qualified inspectors shall be approved by the Tulsa Fire Marshal. Inspectors who possess a fire sprinkler or fire alarm license in accordance with the provisions of the Fire Extinguisher Licensing Act are deemed qualified and do not need specific approval by the Fire Marshal.

**1110.2.3.2 Option 2:** Self inspection and certification. A owner may certify the presence and proper operation of each smoke alarm in each building by conducting their own inspection and testing the operation of each device. This information shall be recorded on log sheets that are available from the Fire Marshal's Office. Each log sheet must be signed by the owner or the owner's designated representative.

*(Ord. No. 25115, § 1, 8-30-2023)*

## Section 1111. Light and ventilation standards.

**1111.1 Provision of natural light and ventilation.** Rooms within a residential rental dwelling unit with an exterior wall shall be provided with natural light by means of an exterior glazed opening facing to the outside and natural ventilation by means of an exterior opening vented directly to the outside. If natural ventilation by means of an exterior opening vented to the outside is not provided a mechanical ventilating system shall be provided.

**1111.2 Additional ventilation requirements.** Bathrooms, water closet compartments, laundry rooms and similar rooms in a dwelling unit shall be provided with natural ventilation by means of operable exterior openings. If natural ventilation by means of an exterior opening is not provided a mechanical ventilating system connected directly to the outside shall be provided.

*(Ord. No. 25115, § 1, 8-30-2023)*

## Section 1112. Interior sanitation standards.

The interior of every residential rental dwelling unit shall be kept free from the presence or apparent evidence of insect, rodent or vermin infestation, and shall be maintained free from any unsafe or unsanitary condition such as, but not limited to, excessive moisture, accumulation of garbage, food waste, trash, rubbish, refuse or litter or any condition which would promote or could harbor infestation by insects, rodents, vermin or other noxious pests.

*(Ord. No. 25115, § 1, 8-30-2023)*

**Section 1113. Residential rental dwelling unit interior building standards.**

**1113.1 Structural members.** All structural members, walls, floors, partitions, or ceilings of a residential rental dwelling unit shall be structurally sound and be capable of supporting the imposed loads.

**1113.2 Interior surfaces.** All interior wall and ceiling surfaces of a residential rental dwelling unit shall be maintained in good repair and free from loose plaster, sagging drywall or other defective surface conditions that may cause injury.

**1113.3 Handrails and guardrails.** Every handrail and guardrail of a residential rental dwelling unit shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in sound condition.

**1113.4 Stairways.** Every interior stairway of a residential rental dwelling unit shall be maintained in a structurally sound condition and free from any broken, rotted, weakened, or missing steps or tripping hazards.

*(Ord. No. 25115, § 1, 8-30-2023)*

**Section 1114. Exterior residential rental dwelling unit building standards.**

**1114.1 Foundations, walls, and roofs.** Every foundation, exterior wall, roof, and all exterior surfaces of a residential rental dwelling unit shall be structurally sound, maintained in a weathertight, watertight condition and vermin proof.

**1114.2 Exterior surfaces.** Exterior surfaces of residential rental dwelling unit and buildings on a residential rental property not naturally resistant to decay shall be treated with a protective coating of paint or other suitable preservative which will provide resistance to weathering and deterioration.

**1114.3 Roof coverings.** Roof coverings and flashings of a residential rental dwelling unit shall be free from any defects that admit rain or cause dampness in the walls or interior portion of the building.

**1114.4 Handrails and guardrails.** Every handrail and guardrail of a residential rental dwelling unit shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in sound condition.

**1114.5 Stairways and balconies.** Every outside stairway and balcony of a residential rental dwelling unit shall be maintained in sound condition and free from any broken, rotted, or missing steps or tripping hazards.

**1114.6 Doors and windows.** Every door, door frame, window, window frame, locking device and related hardware of a residential rental dwelling unit shall be properly installed and maintained in sound condition. Exterior doors and windows that provide access to a residential rental dwelling shall be equipped with locking devices and shall be maintained in a substantially weathertight condition. Window screening, if present, shall be maintained in good condition free from tears or holes or imperfections of the frame that could admit insects or other vermin.

*(Ord. No. 25115, § 1, 8-30-2023)*

**Section 1115. Residential rental property premises standards.**

**1115.1 Sidewalks and parking lots.** All sidewalks, walkways, parking lots and similar areas on the premises of a residential rental property shall be maintained free from potentially dangerous holes, depressions or projections that are likely to cause tripping or injury to a person or otherwise present a hazardous condition.

**1115.2 Parking areas.** Within any residential zoning district, no person shall park or store any vehicle on the premises of a residential rental property including, but not limited to, watercraft, camper shell, truck camper, or utility trailer in any portion of the side yard unless screened from the street and it is on an all-weather surface.

**1115.3 Drainage.** All premises of a residential rental property shall be maintained to prevent the accumulation of stagnant water when such water may cause an unhealthy or hazardous condition, become a breeding area for insects or cause damage to foundation walls.

**1115.4 Grass and weeds.** All premises of a residential rental property shall be maintained so that grass or weeds shall not attain a height of over twelve (12) inches.

**1115.5 Bushes, trees, and other vegetation.** All premises of a residential rental property shall be kept free from dry or dead bushes, trees, tumbleweeds or other vegetation which create a blighted condition, which may harbor insect or rodent infestations, or which is likely to become a fire hazard or result in a condition which may threaten the health and safety or welfare of occupants or adjacent property owners.

**1115.6 Abandoned or inoperable vehicles and graffiti.** All premises of a residential rental property shall be maintained free of abandoned or inoperable vehicles and graffiti visible from any public right-of-way or visible from any common area of a residential rental property.

**1115.7 Rubbish and debris.** All premises of a residential rental property shall be maintained free from an accumulation of garbage, trash, refuse, rubbish, debris, or other wastes except that which is deposited in proper containers for waste collection, which constitute a hazard to the health and safety of occupants or the public.

**1115.8 Items stored in public view.** No person shall place and/or store furniture, except furniture, sports or play equipment designed and placed for outdoor use, household equipment, appliances, construction or landscape material, cardboard material, plastic material, debris or similar materials in a location that is visible to a person standing upon any public street or sidewalk or any common area of a residential rental property.

**1115.9 Exterior insect control.** All premises of a residential rental property shall be kept free of insect and rodent infestation, other noxious pests, nesting places, and any other unsightly or unsanitary accumulation which could harbor insects, rodents or other vermin, in accordance with Section 309 of this Code

**1115.10 Swimming pools.** All swimming pools, architectural pools and spas of a residential rental property shall be maintained so as not to create a health or safety hazard, harbor insect infestation, be polluted, become stagnant or create a blighted condition. All enclosures, gates and doors shall be installed and properly maintained in accordance with building and housing codes.

**1115.11 Fences, screen walls and retaining walls.** All fences, screening walls and retaining walls on the premises of a residential rental property shall be safe and structurally sound.

**1115.12 Exterior lighting.** All exterior lighting of a residential rental property shall be properly maintained and capable of performing the intended function. Exterior lighting shall include parking, common area and security lighting.

*(Ord. No. 25115, § 1, 8-30-2023)*

# TITLE 56 PLUMBING CODE

## Chapter 1. ICC International Plumbing Code, 2018 Edition, Adopted

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# CHAPTER 1. ICC INTERNATIONAL PLUMBING CODE, 2018 EDITION, ADOPTED

Section 100. Adoption of the ICC International Plumbing Code, 2018 Edition.
Section 101. Amendments to the ICC International Plumbing Code, 2018 Edition.

## Section 100. Adoption of the ICC International Plumbing Code, 2018 Edition.

A certain document, three (3) copies of which are on file in the Office of the City Clerk of the City of Tulsa, Oklahoma, being marked and designated as the ICC International Plumbing Code, 2018 Edition as published by the International Code Council, Inc. (ICC) is hereby adopted as a part of the Tulsa Revised Ordinances, hereinafter the "Plumbing Code of the City of Tulsa," for the control of plumbing standards serving buildings and structures except detached one- and two-family dwellings and townhouses not more than three (3) stories above grade plane in height with a separate means of egress and whose accessory structures shall comply with Tulsa Revised Ordinances, Title 51 Chapter 2. Each and all of the regulations, provisions, penalties, terms, and conditions of the ICC International Plumbing Code, 2018 Edition are hereby referred to, adopted, and made a part hereof as if fully set out in this chapter, with the amendments thereto, if any, as prescribed in Section 101 of this chapter and, as used in this chapter, may be referred to as the "code."

*(Ord. Nos. 18096, 19011, 20428; Ord. No. 21990, § 1, 1-16-2009; Ord. No. 22757, § 1, 9-20-2012; Ord. No. 23003, § 1, 12-12-2013; Ord. No. 23398, § 1, 10-29-2015; Ord. No. 24893, § 1, 8-24-2022)*

## Section 101. Amendments to the ICC International Plumbing Code, 2018 Edition.

The following sections of the ICC International Plumbing Code, 2018 Edition, are hereby added or amended to read as follows:

**101.1 Title - Amendatory.** These regulations shall be known as the "Plumbing Code of the City of Tulsa, Oklahoma," hereinafter referred to as the "Plumbing Code," or "this code."

**102.8.3 Highest Standard Governs - Added.** Nothing in this code shall be construed to prevent the enforcement of other ordinances or local regulations which prescribe higher plumbing standards than those which are provided herein.

**102.12 Outside of City - Added.** All the provisions of this code shall apply to persons, firms, or corporations doing plumbing work outside the City of Tulsa if such work is connected or to be connected, directly or indirectly, with the waterworks system of the City of Tulsa or to any sewer emptying, directly or indirectly, into the sewer system of the City of Tulsa.

**103.1 Authority Having Jurisdiction - Amendatory.** Pursuant to Title 11, Tulsa Revised Ordinances, Chapter 2, the Director of Planning and Development Department, or the Director's designated representative, as provided for by Title 51, Section 103.2 Tulsa Revised Ordinances, shall direct the administration of the Plumbing Code of the City of Tulsa.

**106.1 When required - Amendatory.** Any contractor who desires to construct, enlarge, alter, repair, move, demolish or change the occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any

plumbing system, the installation of which is regulated by this code, or to cause any such work to be performed, shall first make application to the code official and obtain the required permit for the work.

**Exception:** Where equipment replacements and repairs must be performed in an emergency situation, the permit application shall be submitted within the next working business day.

**106.1.1 Annual Permit - Amendatory.** An annual permit is a yearly permit which represents a group of individual permits for each alteration to an already existing electrical, gas, mechanical or plumbing installation. The building official is authorized to issue an annual permit upon application therefor to any person, firm or corporation regularly employing one or more qualified tradespersons in the building, structure or on the premises owned or operated by the applicant for the permit.

**106.1.2 Annual Permit records - Amendatory.** The person to whom an annual permit is issued shall keep a detailed record of alterations made under such annual permit. The building official shall have access to such detailed records of alterations at all times. At the completion of the entity's annual permit term, the applicant shall file such detailed records of alterations with the building official. Pursuant to the authority of 59 O.S. § 1000.25, the building official shall collect fees for each individual permit which is part of the annual permit once the detailed records are submitted and remit such fees to the OUBCC.

**106.1.3 Tulsa Revised Ordinances, Title 50 - Added.** Annual permits shall be issued in accordance with Tulsa Revised Ordinances, Title 50.

**106.1.4 Separate Permit Required - Added.** A separate permit shall be required for each building within a complex and for each water meter when there is a multi-meter installation on a single building.

**106.6.1 Work Commencing Before Permit Issuance - Amendatory.** Any person who commences work on a plumbing system before obtaining the necessary permits shall be subject to penalty fees established in Title 49, Tulsa Revised Ordinances.

**106.6.2 Fee Schedule - Amendatory.** Permit and inspection fees for all plumbing work shall be in accordance with the schedule established in Title 49, Tulsa Revised Ordinances.

**106.6.3 Fee Refunds - Amendatory.** Fee refunds for all plumbing work shall be in accordance with the schedule established in Title 49, Tulsa Revised Ordinances.

**108.4 Violation Penalties - Amendatory.** Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter or repair plumbing work in violation of the approved construction documents or directive of the code official, or of a permit or certificate issued under the provisions of this code, shall be guilty of a misdemeanor offense, punishable by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00) or by imprisonment not exceeding six (6) months, or both such fine and imprisonment. Each day, or portion thereof, that a violation continues shall be deemed a separate offense.

**108.5 Stop Work Orders - Amendatory.** Upon notice from the code official, work on any plumbing system that is being done contrary to the provisions of this code or in a dangerous or unsafe manner shall immediately cease. Such notice shall be in writing and shall be given to the owner of the property, or to the owner's agent, or to the person

doing the work. The notice shall state the conditions under which work is authorized to resume. Where an emergency exists, the code official shall not be required to give a written notice prior to stopping the work. Any person who shall continue any work in or about the structure after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be guilty of a misdemeanor offense, and, upon conviction, shall be punished by a fine of no more than One Thousand Two Hundred Dollars ($1,200.00), excluding costs, fees, and assessments, or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day, or portion thereof, that a violation continues after due notice has been served shall be deemed a separate offense.

**108.8 Fine Not Exclusive Penalty - Added.** The penalties herein prescribed shall not be exclusive and shall not prevent independent action by the Board of Appeals as established by Title 51, Chapter 1, Tulsa Revised Ordinances, to suspend or revoke the Certificate of Registration of any person, subject to the provisions of this code, and shall not prevent the City of Tulsa or its authorized officials from taking other action authorized by law to remedy the violation.

**SECTION 109 Means of Appeal - Amendatory.** Appeals of orders, decisions or determinations made by the code official relative to the application and interpretation of this code shall be made to the Board of Appeals as established by Title 51, Chapter 1, Tulsa Revised Ordinances.

**SECTION 111 Registration of Plumbing Contractors - Added.**

**111.1 General - Added.** No person, firm, or corporation shall be issued a permit, engage or offer to engage in, by advertisement or otherwise, any plumbing business, or do any plumbing work in the City of Tulsa, unless such person, firm, or corporation has registered with the City of Tulsa as herein provided. All contractors, journeymen, and apprentices shall carry on their person, at all times while performing plumbing work within the City of Tulsa, their state license and shall display the same upon request from the code official or a police officer of the City of Tulsa.

No person issued a contractor's license shall employ or supervise persons performing plumbing work unless those persons are licensed as provided herein. Nor shall any apprentice perform plumbing work unless the apprentice is directly supervised by a licensed plumbing contractor or journeyman.

**111.2 Requirements for Registration - Added.** No person, firm, or corporation shall be issued a Certificate of Registration until furnishing proof of a current State of Oklahoma Contractor license, issued under the provisions of 59 O.S. 2001," 1001, et seq., as amended, and paying the fees required by Tulsa Revised Ordinances, Title 49.

**111.3 Transfer of Registration Prohibited - Added.** No person, firm, or corporation shall allow his or its name to be used by any other person, firm, or corporation to obtain any permit for or do any work under his or its Certificate of Registration.

**111.4 Registration after Revocation - Added.** No person, firm, or corporation shall be permitted to obtain a new Certificate of Registration within one (1) year from the date of revocation of any prior registration.

**111.5 Registration Fees - Added.** Fees shall be charged for registration of state licensed plumbing contractors, in accordance with Title 49, Tulsa Revised Ordinances.

**111.6 Expiration of Registration - Added.** Registrations of state licensed plumbing contractors shall expire each year on the last day of the birth month of the registered individual.

**111.7 Identification of Service Vehicles - Added.** Every contractor shall identify all service vehicles used in his business with the company name and contractor's license number. Such identification shall be placed on both sides of all vehicles in letters and numbers no less than two (2) inches high and of a contrasting color.

**111.8 Suspension or Revocation of Certificates of Registration - Added.** Certificates of Registration issued pursuant to this Code may be suspended or revoked by the Board of Appeals in accordance with Title 51, Chapter 1, Tulsa Revised Ordinances.

**SECTION 202 General Definitions - Amendatory.**

**Building Drain - Amendatory.** That part of the lowest piping of a drainage system that receives the discharge from soil, waste, and other drainage pipes inside and that extends 5 feet (1524 mm) in developed length of pipe beyond the exterior walls of the building and conveys the drainage to the building sewer.

**305.3 Pipes through foundation walls - Amendatory.** Any pipe that passes through a foundation wall shall be provided with a relieving arch or a pipe sleeve built into the foundation wall. The relieving arch or pipe sleeve shall conform to one of the materials and standards listed in Title 702.2, or as approved. The sleeve shall be two pipe sizes greater than the pipe passing through the wall.

**305.4 Freezing - Amendatory.** Water, soil and waste pipes shall not be installed outside of a building, in attics or crawl spaces, concealed in outside walls, or in any other place subjected to freezing temperatures unless adequate provision is made to protect such pipes from freezing by insulation or heat or both. Exterior water supply system piping shall be installed not less than 6 inches (152 mm) below the frost line and not less than twenty-four (24) inches below grade.

**305.4.1 Sewer depth - Amendatory.** Building sewers that connect to private sewage disposal systems shall be a minimum of 12 inches (305 mm) below finished grade at the point of septic tank connection or as approved by the authority having jurisdiction. Building sewer lines shall be a minimum of 12 inches (305 mm) below grade.

**305.6 Protection against physical damage.** In concealed locations, where piping, other than cast-iron or galvanized steel, is installed through holes or notches in studs, joists, rafters or similar members less than 1 and one-half inches (38 mm) from the nearest edge of the member, the pipe shall be protected by steel shield plates. Such shield plates shall have a thickness of not less than 0.0575 inch (1.463 mm) (No. 16 gage). Such plates shall cover the area of the pipe where the member is notched or bored, and shall extend not less than 2 inches (51 mm) above sole plates and below top plates.

**312.2 Drainage and Vent Water Test - Amendatory.** A water test shall be applied to the drainage system either in its entirety or in sections. If applied to the entire system, all openings in the piping shall be tightly closed, except the highest opening, and the system shall be filled with water to the point of overflow. If the system is tested in sections, each opening shall be tightly plugged except the highest openings of the section under test, and each section shall be filled with water, but no section shall be

tested with less than a 5-foot (1524 mm) head of water. In testing successive sections, at least the upper 5 feet (1524 mm) of the next preceding section shall be tested so that no joint or pipe in the building, except the uppermost 5 feet (1524 mm) of the system, shall have been submitted to a test of less than a 5-foot (1524 mm) head of water. This pressure shall be held for at least 15 minutes. The system shall then be tight at all points.

**312.3 Drainage and vent air test - Amendatory.** Plastic piping shall not be tested using air. An air test shall be made by forcing air into the system until there is a uniform gauge pressure of 2.5 psi (17.25 kPa) or sufficient to balance a 5-inch (127 mm) column of mercury. This test shall be held for a period of not less than 15 minutes. Any adjustments to the test pressure required because of changes in ambient temperatures or the seating of gaskets shall be made prior to the beginning of the test period.

**312.6 Gravity Sewer Test - Amendatory.** Where required, gravity sewer tests shall consist of plugging the end of the building sewer at the point of connection with the public sewer, filling the building sewer with water, testing with not less than a 5-foot (1024 mm) head of water and maintaining such pressure for 15 minutes.

**312.10.1 Inspections - Amendatory.** Annual inspections shall be made of all backflow assemblies and air gaps to determine whether they are operable, in accordance with Chapter 1, Sections 104.3 and 105.3.2.

**314.2.1 Condensate disposal.** Condensate from all cooling coils and evaporators shall be conveyed from the drain pain outlet to an approved place of disposal. Such piping shall maintain a horizontal slope in the direction of discharge of not less than one-eighth unit vertical in 12 units horizontal (1-percent slope). Condensate drains shall be allowed to terminate to an approved pit or French drain consisting of a minimum of 24 inches by 24 inches by 24 inches (610 mm by 610 mm by 610 mm), or equivalent; of 1 inch (25 mm) washed rock. Such pits or French drains shall be located 30 inches (762 mm) minimum from outer edge of foundation to nearest edge of pit or French drain. Condensate shall not discharge into a street, alley or other areas so as to cause a nuisance

**314.2.3.1 Water-level monitoring devices.** On down-flow units and all other coils that do not have a secondary drain or provisions to install a secondary or auxiliary drain pan, a water-level monitoring device shall be installed inside the primary drain pan. This device shall shut off the equipment served in the event that the primary drain becomes restricted. Devices installed in the drain line shall not be permitted. **Exception:** This section shall not apply to appliances installed in areas outside on the ground or elevated structure where condensate overflow will not damage building components or contents.

**403.4.1 Directional signage.** Directional signage indicating the route to the required public toilet facilities in Group A, B, I, M, and R-1 occupancies shall be posted in a lobby, corridor, or aisle, or similar space, such that the sign can be readily seen from the main entrance to the building or tenant space. Only one sign at each main entrance that is intended for public use shall be required.

**Exceptions:** (A) Group A occupancies that are part of an overall Group E occupancy need not have directional signage. (B) Private-use Group B occupancies need not have directional signage.

**405.9 Slip Joint Connections - Amendatory.** Slip joints shall be made with an approved elastomeric gasket and shall only be installed from fixture outlet to within 18 inches (457 mm) downstream of trap outlet seal. Fixtures with concealed slip-joint connections shall be provided with an access panel or utility space at least 12 inches (305 mm) in its smallest dimension or other approved arrangement so as to provide access to the slip joint connections for inspection and repair.

**408.2 Water connection.** The water supply to a bidet shall be protected against backflow by an air gap or backflow preventer in accordance with Section 608.14.1, 608.14.2, 608.14.3, 608.14.5, or 608.14.6.

**410.4 Substitution.** Where restaurants provide drinking water in a container free of charge, drinking fountains shall not be required in those restaurants. In occupancy Group B, F, M, I-4 and S, with an occupant load less than 50, where drinking fountains are required, a water dispenser connected to the potable water distribution system shall be permitted to be substituted for the required drinking fountain. In occupancies other than restaurants where drinking fountains are required, water dispensers shall be permitted to be substituted for not more than 50 percent of the required number of drinking fountains.

**604.5 Size of fixture supply - Amendatory.** The minimum size of a fixture supply pipe shall be as shown in Table 604.5. The fixture supply pipe shall terminate not more than 30 inches (762 mm) from the point of connection to the fixture. A reduced size flexible water connector installed between the supply pipe and the fixture shall be of an approved type. The supply pipe shall extend to the floor or wall adjacent to the fixture. The minimum size of individual distribution lines utilized in gridded or parallel water distribution systems shall be as shown in Table 604.5.

**Exception:** The fixture supply pipe for domestic dishwashers and drinking fountains shall be permitted to be terminated more than 30 inches (762 mm) from the point of connection to the fixture.

**608.16.4 Protection by a vacuum breaker.** Openings and outlets shall be protected by atmospheric-type or pressure-type vacuum breakers. The vacuum breaker has a critical level installation height of not less than 12 inches (305 mm) above the highest elevation of downstream piping and flood level rim of the fixture of device. Fill valves shall be set in accordance with Section 415.3.1. Vacuum breakers shall not be installed under exhaust hoods or similar locations 10 that will contain toxic fumes or vapors. Pipe applied vacuum breakers shall be installed not less than 6 inches (152 mm) above the flood level rim of the fixture, receptor, or device served.

**608.17.5 Connections to Lawn Irrigation Systems - Amendatory.** The potable water supply to lawn irrigation systems shall be protected against backflow by an atmospheric-type vacuum breaker, a pressure-type vacuum breaker assembly, a spill resistant backflow preventer or a reduced pressure principle backflow preventer. A valve shall not be installed downstream from an atmospheric vacuum breaker. Where chemicals are introduced into the system, the potable water supply shall be protected against backflow by a reduced pressure principle backflow preventer assembly.

**701.2.1 Public System Availability - Added.** Availability of the public sewer system to any premise shall be determined by the Development Services Division of the City of Tulsa.

**705.10.2 Solvent cementing.** Joint surfaces shall be clean and free from moisture. A purple primer that conforms to ASTM F 656 shall be applied. Solvent cement not purple in color and conforming to ASTM D 2564, CSA B137.3, CSA B181.2 or CSA B182.1 shall be applied to all joint surfaces. The joint shall be made while the cement is wet and shall be in accordance with ASTM D 2855. Solvent-cement joints shall be permitted above or below ground.

**705.10.2 Solvent Cementing - Amendatory.** Joint surfaces shall be clean and free from moisture. A purple primer that conforms to ASTM F 656 shall be applied. Solvent cement not purple in color and conforming to ASTM D 2564, CSA B137.3, CSA B181.2 or CSA B182.1 shall be applied to all joint surfaces. The joint shall be made while the cement is wet and shall be in accordance with ASTM D 2855. Solvent-cement joints shall be permitted above or below ground.

**708.1.3 Building Drain and Building Sewer Junction - Amendatory.** The junction of the building drain and the building sewer shall be served by a cleanout that is located at the junction or within 12 feet (3658 mm) of the developed length of piping upstream of the junction. For the requirements of this section, the removal of the water closet shall not be required to provide cleanout access.

**801.1 Scope, Exception—Food Handling - Added.** Section 801.1 of the ICC International Plumbing Code, 2018 edition, is amended to provide the following exception: Plumbing in all food handling facilities shall comply with Title 17, Tulsa Revised Ordinances, Tulsa City County Health Department Food Code and meet the Inspection Code.

**802.1 Where required.** Foodhandling equipment, in other than dwelling units, clear-water waste, humidifiers, dishwashing machines and utensils, pots, pans and dishwashing sinks shall discharge through an indirect waste pipe as specified in Sections 802.1.1 through 802.1.7. Fixtures not required to be indirectly connected by this section and the exception to Section 301.6 shall be directly connected to the plumbing system in accordance with Chapter 7.

**903.1 Roof Extension - Amendatory.** Open vent pipes that extend through a roof shall be terminated not less than 10 inches (254 mm) above the roof. Where a roof is to be used for assembly or as a promenade, observation deck, sun bathing deck or similar purposes open vent pipes shall terminate not less than 7 feet (2134 mm) above the finished occupiable surface within 10 feet (3048 mm) horizontal distance.

**919.1 General.** Engineered vent systems shall comply with this section and the design, submittal, approval, inspection and testing requirements of Section 316.

**1003.4 Oil Separators required - Amendatory.** At repair garages where floor or trench drains are provided, car washing facilities, factories where oily and flammable liquid wastes are produced and hydraulic elevator pits, oil separators shall be installed into which oil-bearing, grease-bearing or flammable wastes shall be discharged before emptying into the building drainage system or other point of disposal.

**Exceptions:**

**(1)** An oil separator is not required in hydraulic elevator pits where an approved alarm system is installed. Such alarm systems shall not terminate the operation of pumps utilized to maintain emergency operation of the elevator by fire fighters.

**(2)** Oil separators shall not be required in a non-hydraulic elevator pit.

**1101.7 Roof design - Amendatory.** Roofs shall be designed for the maximum possible depth of water that will pond thereon as determined by the relative levels of roof deck and overflow weirs, scuppers, edges or serviceable drains in combination with the deflected structural elements. In determining the maximum possible depth of water, all primary roof drainage means shall be assumed to be blocked. The maximum possible depth of water on the roof shall include the height of the water required above the inlet of the secondary roof drainage means to achieve the required flow rate of secondary drainage means to accommodate the design rainfall rate as required by Section 1108.

**1101.9 Backwater valves.** Storm drainage systems shall be provided with backwater valves as required for sanitary drainage systems in accordance with Section 714.

**TABLE 1108.1 SIZE OF SECONDARY SCUPPERS FOR A 10.2-INCH PER HOUR RATE OF RAINFALL**

| *HEAD IN INCHES* | *HORIZONTALLY PROJECTED ROOF AREA (SQUARE FEET)* | | | | | | |
|---|---|---|---|---|---|---|---|
| | *LENGTH OF WEIR IN INCHES* | | | | | | |
| | *4* | *6* | *8* | *12* | *16* | *20* | *24* |
| 1 | 112 | 169 | 226 | 339 | 452 | 565 | 678 |
| 2 | 314 | 471 | 628 | 942 | 1256 | 1571 | 1885 |
| 3 | 565 | 848 | 1130 | 1696 | 2262 | 2828 | 3393 |
| 4 | 879 | 1319 | 1759 | 2637 | 3519 | 4399 | 5279 |

For SI: 1 inch = 25.4

**Notes:**

1. To adjust this table for other than a 10.2-inch design rainfall rate multiply the square footage on the table by 10.2 then divide by the design rainfall rate.
2. This table does not apply to scuppers with a vertical opening height that is less than the head height.

**Example:** For 4 inches of design rainfall rate, a 4 - inch longer scupper with a 1 - inch head would accommodate 286 square feet. (112 × 10.2)/4 = 286.

**1108.3 Sizing of Secondary Drains - Amendatory.** Secondary (emergency) roof drain systems and emergency scuppers shall be sized in accordance with Section 1106 except the design shall be based on a rainfall rate of 10.2 inches per hour. Scuppers shall be sized to prevent the depth of ponding water from exceeding that for which the roof was designed as determined by Section 1101.7. Scuppers shall not have an opening dimension of less than 4 inches (102 mm). The flow through the primary system shall not be considered when sizing the secondary roof drain system or secondary scuppers.

**1301.9.5 Overflow - Amendatory.** The storage tank shall be equipped with an overflow pipe having a diameter not less than that shown in Table 606.5.4. The overflow pipe shall be protected from insects or vermin and shall discharge in a manner consistent with storm water runoff requirements of the jurisdiction. The overflow pipe shall discharge at a sufficient distance from the tank to avoid damaging the tank foundation or the adjacent property. Drainage from overflow pipes shall be directed to prevent freezing on walkways. The overflow drain shall not be equipped with a shutoff valve. A cleanout shall be provided on each overflow pipe in accordance with Section 708.

**IPC® 2018 Chapter 15 Referenced Standards - Amendatory.** Chapter 15 of the IPC 2018 is adopted with the following modifications:

IBC® 18 International Building Code® as adopted and modified by the State of Oklahoma through the OUBCC.

IECC®-06 International Energy Conservation Code®.

1FC® 18 International Fire Code® as adopted and modified by the State of Oklahoma through the OUBCC.

IMC® 18 International Mechanical Code® as adopted and modified by the State of Oklahoma through the OUBCC.

IFGC® 18 International Fuel Gas Code® as adopted and modified by the State of Oklahoma through the OUBCC.

IRC® 15 International Residential Code® as adopted and modified by the State of Oklahoma through the OUBCC.

NFPA 70-14 National Electrical Code® as adopted and modified by the State of Oklahoma through OUBCC.

ANSI AI 18.10-99 Specifications for Load Bearing, Bonded, Waterproof Membranes for Thin Set Ceramic Tile and Dimension Stone Installation. Sections 421.5.2.5, 421.5.2.6.

TCNA/ANSI Al 18.10-99 Specifications for Load Bearing, Bonded, Waterproof Membranes for Thin Set Ceramic Tile and Dimension Stone Installation referenced in Sections 421.5.2.5 and 421.5.2.6 has been stricken from the code.

*(Ord. Nos. 17796, 18096, 18171, 18370, 19011, 20066, 20428, 20631, 20895, 21237; Ord. No. 21990, § 1, 1-16-2009; Ord. No. 22757, § 1, 9-20-2012; Ord. No. 23003, § 1, 12-12-2013; Ord. No. 23398, § 1, 10-29-2015; Ord. No. 24893, § 1, 8-24-2022)*

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# TITLE 57 REFRIGERATION CODE (REPEALED)*

*__Note—__This title was repealed by the Mechanical Equipment Code, Title 59, effective August 1, 1966.

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# TITLE 58 ENERGY CONSERVATION CODE (REPEALED)*

*__Note—__This title was repealed by Ordinance No. 16161, enacted on October 12, 1964.

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# TITLE 59 MECHANICAL CODE*

**Chapter 1. ICC International Mechanical Code, 2018 Edition**
**Chapter 2. Stationary Engineers**
**Chapter 3. ICC International Fuel Gas Code, 2018 Edition**

*__Editor's note—__Ord. No. 23436, § 1, adopted February 11, 2016, amended Title 59 in its entirety to read as herein set out. Former Title 59, Chs. 1—3, §§ 100, 101, 200, 201, 300, 301, pertained to International Mechanical Code, 2009 Edition, stationary engineers, ICC International Fuel Gas Code, 2009 edition. See Code Comparative Table for complete derivation.

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## CHAPTER 1. ICC INTERNATIONAL MECHANICAL CODE, 2018 EDITION

Section 100. Adoption of the ICC International Mechanical Code, 2018 Edition.
Section 101. Amendments to the ICC International Mechanical Code, 2018 Edition.

### Section 100. Adoption of the ICC International Mechanical Code, 2018 Edition.

A certain document, three (3) copies of which are on file in the Office of the City Clerk of the City of Tulsa, Oklahoma, being marked and designated as the *ICC International Mechanical Code*, 2018 Edition, as published by the *International Code Council* (ICC), is hereby adopted as a part of the Tulsa Revised Ordinances, hereinafter the "Mechanical Code," for the design, installation, alteration and inspections of mechanical systems serving buildings and structures except detached one- and two-family dwellings and townhouses not more than three (3) stories above grade plane in height with a separate means of egress and whose accessory structures shall comply with Tulsa Revised Ordinances, Title 51 Chapter 2. Each and all of the terms, conditions, regulations, provisions, and penalties of the *ICC International Mechanical Code,* 2018 Edition, are hereby referred to, adopted and made a part of the Tulsa Revised Ordinances as if fully set out in this title, with amendments, if any, as prescribed in Section 101 of this chapter and, as used in this Chapter 1, may be referred to as the "code."

*(Ord. No. 23436, § 1, 2-11-2016; Ord. No. 24894, § 1, 8-24-2022)*

### Section 101. Amendments to the ICC International Mechanical Code, 2018 Edition.

The following provisions of the *ICC International Mechanical Code*, 2018 Edition, are hereby added, deleted, or amended to read as follows:

**Chapter 1 — Administration**

**Section 101.1 Title—Amendatory.** This code shall be known as the "Mechanical Code of the City of Tulsa," and may be cited as the "Mechanical Code," or in this title as "this code."

**SECTION 103. OFFICE OF MECHANICAL INSPECTION—Amendatory**

**103.1 Authority Having Jurisdiction—Amendatory.** Pursuant to Title 11, Tulsa Revised Ordinances, Chapter 2, the Director of Planning and Development, or the Director's designated representative, as provided by Title 51, Chapter 1, Section 103.2, Tulsa Revised Ordinances, shall direct the administration of the Mechanical Code of the City of Tulsa.

**106.1 When Required—Amendatory.** A contractor who desires to erect, install, enlarge, alter, repair, remove, convert, or replace a mechanical system, the installation of which is regulated by this code, or to cause such work to be done, shall first make application and obtain the required permit for the work.

**Exception:** Where equipment replacements and repairs must be performed in an emergency situation, the permit application shall be submitted within the next working business day.

**106.1.1 Annual Permit—Amendatory.** An annual permit is a yearly permit which represents a group of individual permits for each alteration to an already existing electrical, gas, mechanical or plumbing installation. The building official is authorized

to issue an annual permit upon application therefor to any person, firm or corporation regularly employing one or more qualified tradespersons in the building, structure or on the premises owned or operated by the applicant for the permit.

**106.1.2 Annual permit records—Amendatory.** The person to whom an annual permit is issued shall keep a detailed record of alterations made under such annual permit. The building official shall have access to such detailed records of alterations at all times. At the completion of the entity's annual permit term, the applicant shall file such detailed records of alterations with the building official. Pursuant to the authority of 59 O.S. § 1000.25, the building official shall collect fees for each individual permit which is part of the annual permit once the detailed records are submitted and remit such fees to the OUBCC.

**106.1.3 Tulsa Revised Ordinances, Title 50—Added.** Annual permits shall be issued in accordance with Tulsa Revised Ordinances, Title 50.

**106.1.4 Air Compressor and Tank Permits—Added.** Permits for air compressors and tanks only, excluding piping for air distribution, may be issued to the owner or lessee, or the agent of either, of a building or structure in which the air compressors or tanks are to be installed, or to the contractor employed to perform the work.

**106.1.5 Separate Permit Required—Added.** A separate permit shall be required for each building within a complex and for each gas meter, when there is a multi-meter installation on a single building.

**106.1.6 City Owned Property—Added.** Buildings and structures owned by the City of Tulsa which are located inside or outside the corporate limits of the City, shall comply with the requirements of this code and require a permit for mechanical work.

**106.3 By Whom Application is Made—Amendatory.** No mechanical permit shall be issued to any person, firm, limited liability company, or corporation until such person, firm, limited liability company, or corporation has received a Certificate of Registration appropriate for the work contemplated.

**106.5.1 Work Commencing Before Permit Issuance—Amendatory.** Any person who commences work on a mechanical system before obtaining the necessary permits shall be subject to penalty fees established in Title 49, Tulsa Revised Ordinances.

**106.5.2 Fee Schedule—Amendatory.** Permit and inspection fees for all mechanical work shall be in accordance with the schedule established in Title 49, Tulsa Revised Ordinances.

**107.3.4 Carbon Monoxide Testing—Added.** When tests for carbon monoxide are required, tests shall be performed by an approved testing agency. The test results and other data necessary, shall be furnished to the code official and the code official shall determine conformance with this code.

**108.4 Violation Penalties—Amendatory.** Any person violating any of the provisions of this code shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding cost, fees, and assessments or by imprisonment in the City Jail for a period not exceeding six (6) months, or by both such fine and imprisonment. Each day or portion of a day that a violation continues shall be deemed a separate offense.

**108.7.4 Fine Not Exclusive Penalty—Added.** The penalties prescribed in this code shall not be exclusive or prevent independent action by the Board of Appeals as created

and provided in Title 51, Chapter 1, Tulsa Revised Ordinances to suspend or revoke the Certificate of Registration of any person subject to this code, and shall not prevent the City of Tulsa, or its authorized officials, from taking other action authorized by law to remedy the violation.

**SECTION 109. MEANS OF APPEAL—Amendatory.** Appeals of orders, decisions or determinations made by the code official relative to the application and interpretation of this code, shall be made to the Board of Appeals as established by Title 51, Chapter 1, Tulsa Revised Ordinances.

**SECTION 111.0. REGISTRATION OF MECHANICAL CONTRACTORS—Added.**

**111.1 General—Added.** No person, firm, limited liability company, or corporation shall be issued a permit, engage or offer to engage in, by advertisement or otherwise, any mechanical work in the City of Tulsa as a contractor unless such person, firm, limited liability company, or corporation has properly registered with the City of Tulsa. All contractors, journeymen, and apprentices shall carry their state license on their person at all times while performing mechanical work within the City of Tulsa and shall display the same upon request from the code official or a police officer of the City of Tulsa. No person issued a contractor's license shall employ or supervise persons performing mechanical work unless those person(s) are licensed or allow any apprentice to perform mechanical work unless the apprentice shall have direct supervision by a properly licensed person.

**111.2 Requirements for Registration—Added.**

**A. State Licensees.** Any person, firm, limited liability company, or corporation holding a current state of Oklahoma license or registration issued under the provisions of 59 O.S. Supp. 2005, §§ 1850.1, et seq., as amended, shall be issued a Certificate of Registration after paying the fees required by this code.

**B. City of Tulsa Licensees.** Any person, firm, or corporation holding a current City of Tulsa License or registration issued under the provisions of this ordinance shall be issued a Certificate of Registration after paying the fees as set forth in Title 49, Tulsa Revised Ordinances.

**C. Boiler Repair Contractor.** No person, firm, limited liability company, or corporation shall be registered as a Boiler Repair Contractor unless he shall have furnished proof of the issuance of a current State Department of Labor Boiler Repair Contractor's License issued under the provisions of the Oklahoma Boiler and Pressure Vessel Safety Act, 40 O.S. Supp. 2005, §§ 141.1, et seq. as amended, and shall have paid the required fees as set forth in Title 49, Tulsa Revised Ordinances.

**111.3 Expiration of Registration—Added.** Registration of state licensed contractors shall expire on the last day of their birth month of each year. Certificates of Registration, which have not been renewed thirty (30) days after expiration, shall not be renewed until the applicant possesses the state license referenced in Subsection 111.2.A of this code.

**111.4 Transferor Registration Prohibited—Added.** Certificates of Registration shall be nontransferable.

**111.5 Registration after Revocation—Added.** No person, firm, limited liability company, or corporation shall be permitted to obtain a new registration within one (1) year from the date of revocation of any prior registration.

**111.6 Identification of Service Vehicles—Added.** Every contractor shall identify all service vehicles used in the contractor's business with the company name and contractor's license number. Such letters and numbers shall be not less than two (2) inches in height, shall be of a contrasting color, and shall be placed on both sides of all vehicles.

**111.7 Suspension or Revocation of Certificates of Registration—Added.** Certificates of Registration may be suspended or revoked by the Board of Appeals as provided in Title 51, Chapter 1, Tulsa Revised Ordinances.

**112.0 Exemptions—Added.**

**A.** None of the technical provisions of this code shall apply to internal systems of factory-assembled package units as have been examined and rated by an approved testing laboratory or industry standards association, listed in *ICC International Mechanical Code*, 2015 Edition, Chapter 15, "Referenced Standards," as being suitable for their intended use. Alteration of any portion of such units subsequent to the aforementioned approval shall subject the entire unit to inspections by the code official and such further alteration as he may require to secure compliance with the intent of this code. Factory-assembled "plug-in" appliances are hereby exempted from the provisions of this code. Installation of gas lights or gas grills shall require a permit and the payment of the fee specified for gas-fired appliances to enable the inspector to check the location where installed for compliance with setback and other zoning requirements.

**B.** The licensing requirements of this code shall not apply to public utilities, public service corporations, rural electric associations or municipal utilities and their subsidiaries doing work on their own facilities or during the performance of energy audits, operational inspections, minor maintenance, or minor repairs on their own equipment.

**Chapter 2 - Definitions**

**202.0 General Definitions— Amendatory.**

In addition to the definitions contained in Section 202 of the *ICC International Mechanical Code*, 2018 Edition, the following words and terms shall, for the purposes of this title, have the meanings indicated in this Section 202.0:

**Apprentice.** Any person engaged in the work of installing, altering, or repairing equipment or apparatus regulated within the City of Tulsa, who is working under the direct personal supervision of a contractor or journeyman and subject to the limitations provided in this code.

**Combustible Material.** Any material not defined as noncombustible. Materials adjacent to or in contact with heat-producing appliances, vent connectors, gas vents, chimneys, steam and hot water pipes, and warm air ducts made of or surfaced with wood, compressed paper, plant fibers, or other materials that are capable of being ignited and burned. Such material shall be considered combustible even though flame proofed, fire-retardant treated, or plastered.

**Installation.** The initial physical placement of a system at a given location and the readying of same for use or service.

**Maintenance.** Wherever in this code any person is authorized to maintain any mechanical equipment, such authority shall be limited to the performance of repairs designed to avoid shut-downs. In regard to any installations incidental to maintaining such equipment in a running condition, such installations shall be confined to the replacement of parts broken, worn or defective, of a nature contained in or upon major units, and shall not permit the operator to install units, compressors, or any major portion of such equipment, nor shall such persons be permitted to perform any work in or upon such equipment which would by reason of the extent of such repairs, in fact, constitute a reinstallation.

**Mechanical Equipment and Apparatus.** All types of air conditioning, including heating equipment and refrigeration equipment, including but not limited to furnaces, boilers, gas-fired appliances and piping, ventilating apparatus, incinerators, pressure vessels, and all related fittings, vents, duct work, and safety or regulating devices.

**Public Occupancy.** Public occupancy shall mean open to public use by license or invitation. The term shall not mean:

**1.** Occupancy by custodial, building maintenance, or security personnel; or

**2.** Occasional occupancy by employees, tenants, and their invitees after normal working hours.

**Chapter 3 - General Regulations**

**301.15 Wind resistance—Amendatory.** Mechanical equipment, appliances and supports that are exposed to wind shall be designed and installed to resist the wind pressures determined in accordance with the International Building Code, SMACNA HVAC Duct Construction Standards - Metal and Flexible, and other approved methods.

**304.11 Guards—Amendatory.** Guards shall be provided where various components that require service are located on a roof or elevated structure and have a condition as set forth in Sections 304.11.1 through 304.11.3. The top of the guard shall be located not less than 42 inches (1067 mm) above the elevated surface adjacent to the guard. The guard shall be constructed so as to prevent the passage of a 21-inch diameter (533 mm) sphere and shall comply with the loading requirements for guards as specified in the International Building Code. Guards shall be provided at new components when added or replaced on an existing roof or elevated structure and have a condition as set forth in Sections 304.11.1 through 304.11.3.

**Exception:** When approved by the authority having jurisdiction, guards are not required where permanent fall arrest/restraint anchorage connector devices that comply with ANSI/ASSE Z 359.1 are affixed for use during the entire roof covering lifetime. The devices shall be reevaluated for possible replacement when the entire roof covering is replaced. The devices shall be placed no more than 10 feet (3048 mm) on center along hip and ridge lines and placed not less than 10 feet (3048 mm) from roof edges and the open sides of walking surfaces.

**304.11.1 Roof edge—Added.** Guards complying with Section 304.11 shall be provided when components are located within 10 feet (3048 mm) of a roof edge or open side of a

walking surface or elevated structure and such edge or open side is located more than 30 inches (762 mm) above the floor, roof, or grade below. The guard shall extend not less than 30 inches (762 mm) beyond each end of the component that requires service.

**304.11.2 Skylights—Added.** Guards complying with Section 304.11 shall be provided when a skylight is within 10 feet (3048 mm) of the component that requires service. The guard shall extend 30 inches (762 mm) beyond the edge of the skylight.

**Exceptions:**

**(A)** Guards are not required when the skylight is located at least 42 inches (1067 mm) above the highest point of the walking surface adjacent to the skylight or components.

**(B)** Guards are not required if some other provision for skylight fall-through protection is provided and approved by the authority having jurisdiction.

**304.11.1 Roof hatch—Added.** Guards complying with Section 304.11 shall be provided when a roof hatch is within 10 feet (3048 mm) of the component that requires service. The guard shall extend 30 inches (762 mm) beyond the edge of the roof hatch. If the component is within 10 feet (3048 mm) of the ladder access side of the roof hatch, the guard shall incorporate a self-closing, self-latching gate. The gate shall have a top edge of not less than 42 inches (1067 mm) above the elevated surface adjacent to the gate and shall not allow the passage of a 21 inch (533 mm) sphere. If a roof hatch exists within 10 feet of a roof edge that is located more than 30 inches (762 mm) above the floor, roof or grade below and a new component that requires services on that existing roof or elevated structure, then a guard complying with Section 304.11 shall be added between the existing roof hatch and the roof edge.

**305.5.1 Location and protection of refrigerant piping—Added.** Refrigerant piping installed within 1½ inches (38 mm) of the underside of roof decks shall be protected from damage caused by nails and other fasteners.

**306.5 Equipment and appliances on roofs or elevated structures—Amendatory.** Where equipment requiring access or appliances are located on an elevated structure or the roof of a building such that personnel will have to climb higher than 16 feet (4877 mm) above grade to access such equipment or appliances, an interior or exterior means of access shall be provided. Such access shall not require climbing over obstructions greater than 30 inches (762 mm) in height or walking on roofs having a slope greater than 4 units vertical in 12 units horizontal (33-percent slope). Such access shall not require the use of portable ladders. Where access involves climbing over parapet walls, the height shall be measured to the top of the parapet wall.

**(A)** Permanent ladders installed to provide the required access shall comply with the following minimum design criteria:

**(i)** The side railing shall extend above the parapet or roof edge not less than 30 inches (762 mm).

**(ii)** Ladders shall have rung spacing not to exceed 14 inches (356 mm) on center. The uppermost rung shall not be greater than 24 inches (610 mm) below the upper edge of the roof hatch, roof or parapet, as applicable.

**(iii)** Ladders shall have a toe spacing not less than 6 inches (152 mm) deep.

**(iv)** There shall be not less than 18 inches (457 mm) between rails.

**(v)** Rungs shall have a diameter not less than 0.75-inch (19 mm) and be capable of withstanding a 300 pound (136.1 kg) load.

**(vi)** Ladders over 30 feet (9144 mm) in height shall be provided with offset sections and landings capable of withstanding 100 pounds per square foot (488.2 kg divided by meters squared). Landing dimensions shall be not less than the width of the ladder served. A guard rail shall be provided on all open sides of the landing.

**(vii)** Climbing clearance. The distance from the centerline of rungs to the nearest permanent object on the climbing side of the ladder shall be not less than 30 inches (762 mm) measured perpendicular to the rungs. This distance shall be maintained from the point of ladder access to the bottom of the roof hatch. A minimum clear width of 15 inches (381 mm) shall be provided on both sides of the ladder measured from the midpoint of and parallel with the rungs except where cages or wells are installed.

**(viii)** Landing required. The ladder shall be provided with a clear and unobstructed bottom landing area having a minimum dimension of 30 inches (762 mm) by 30 inches (762 mm) centered in front of the ladder.

**(ix)** Ladders shall be protected against corrosion by an approved means.

**(x)** Access to ladders shall be provided at all times.

**(B)** Catwalks installed to provide the required access shall be not less than 24 inches (610 mm) wide and shall have railings as required for service platforms.

**Exceptions:**

**(i)** This section shall not apply to Group R-3 occupancies.

**(ii)** This section shall not apply to appliance replacement.

**307.2.1 Condensate disposal—Amendatory.** Condensate from all cooling coils and evaporators shall be conveyed from the drain pan outlet to an approved place of disposal. Such piping shall maintain a minimum horizontal slope in the direction of discharge of not less than one-eighth unit vertical in 12 units horizontal (1-percent slope). Condensate drains shall be allowed to terminate to an approved pit or French drain consisting of a minimum of 24 inches by 24 inches by 24 inches (610 mm by 610 mm by 610 mm), or equivalent; of 1 inch (25 mm) washed rock. Such pits or French drains shall be located 30 inches (762 mm) minimum from outer edge of foundation to nearest edge of pit or French drain. Condensate shall not discharge into a street, alley or other areas so as to cause a nuisance.

**307.2.3.1 Water-level monitoring devices—Amendatory.** On down-flow units and all other coils that do not have a secondary drain or provisions to install secondary or auxiliary drain pan, a water-level monitoring device shall be installed inside the primary drain pan. This device shall shut off the equipment served in the event that the primary drain becomes restricted. Devices installed in the drain line shall not be permitted.

**Exception:** This section shall not apply to appliances installed in areas outside on the ground or elevated structure where condensate overflow does not damage building components or contents.

**502.15 Repair garages.** Where Class I liquids or LP-gas are stored or used within a building having a basement or pit wherein flammable vapors could accumulate, the basement or pit shall be provided with ventilation designed in accordance with Section 2311.4.3 of the International Fire Code® to prevent the accumulation of flammable vapors therein.

**506.3.1.1 Grease duct materials—Amendatory.** Grease ducts serving Type I hoods shall be constructed of non-galvanized carbon steel having a minimum thickness of 0.0575 inch (1.463 mm) (No. 16 gage) or stainless steel not less than 0.0450 inch (1.14 mm) (No. 18 gage) in thickness.

**Exception:** Factory-built commercial kitchen grease ducts listed and labeled in accordance with UL 1978 and installed in accordance with Section 304.1.

**507.2 Type I hoods—Amendatory.** Type I hoods shall be installed where cooking appliances produce grease or smoke as a result of the cooking process. Type I hoods shall be installed over medium-duty, heavy-duty, and extra-heavy-duty cooking appliances.

**Exceptions:**

**(A)** A Type I hood shall not be required for an electric cooking appliance where an approved testing agency provides documentation that the appliance effluent contains 5 mg per cubic meter when tested at an exhaust flow rate of 500 cfm (0.236 cubic meters per second) in accordance with UL 710B.

**(B)** In non-commercial cooking occupancies a residential or Type II hood can be installed over a medium-duty residential appliance when approved.

**604.1 General—Amendatory.** Duct insulation shall conform to the requirements of Sections 604.2 through 604.13, the International Energy Conservation Code and SMACNA HVAC Duct Construction Standards - Metal and Flexible.

**805.3 Factory-built fireplaces.** Chimneys for use with factory-built fireplaces shall comply with the requirements of UL 127.

**805.4 Factory-built chimney offsets.** Where a factory-built chimney assembly incorporates offsets, no part of the chimney shall be at an angle of more than 30 degrees (.52 rad) form vertical at any point in the assembly and the chimney assembly shall not include more than four elbows.

**805.5 Support.** Where factory-built chimneys are supported by structural members, such as joists and rafters, such members shall be designed to support the additional load.

**805.6 Medium-heat appliances.** Factory-built chimneys for medium-heat appliances producing flue gases having a temperature above 1,000 degrees Fahrenheit (538 degrees Celsius) measured at the entrance to the chimney shall comply with UL 959.

**805.7 Decorative shrouds.** Decorative shrouds shall not be installed at the termination of factory-built chimneys except where such shrouds are listed and labeled for use with the specific factory-built chimney system and are installed in accordance with Section 304.1.

**805.8 Insulation shield.** Where factory-built chimneys pass through insulated assemblies, an insulation shield constructed of steel having a thickness of not less than 0.0187 inch (0.4712 millimeter) (No. 26 gage) shall be installed to provide clearance

between the chimney and the insulation material. The clearance shall be not less than the clearance to combustibles specified by the chimney manufacturer's installation instructions. Where chimneys pass through attic space, the shield shall terminate not less than 2 inches (51 millimeter) above the insulation materials and shall be secured in place to prevent displacement. Insulation shields provided as part of a listed chimney system shall be installed in accordance with the manufacturer's instructions.

**SECTION 1102.3. ACCESS PORT PROTECTION—Amendatory.** This section has been stricken from the code.

**1402.8.3 Piping has been modified to correct errata published by the ICC®.** The modification changes a specified chapter from "10" to "12." This section has been modified to read: 1402.8.3 Piping. Potable piping shall be installed in accordance with the 11 International Plumbing Code®. Hydronic piping shall be installed in accordance with Chapter 12 of this code. Mechanical system piping shall be supported in accordance with Section 305.

**Chapter 15 Referenced Standards—Amendatory.** Chapter 15 of the IMC 2018 is adopted with the following modifications:

IBC® 18 *International Building Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

IECC®-06 *International Energy Conservation Code*®.

IFC® 18 *International Fire Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

IMC® 18 *International Mechanical Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

IPC® 18 *International Plumbing Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

IFGC®-2018 *International Fuel Gas Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

IRC® 15 *International Residential Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

NFPA 70-44 17 *National Electrical Code*® as adopted and modified by the State of Oklahoma through OUBCC."

300A-06 Outline of Investigation for Extinguishing System Units for Residential Range Top Cooking Surfaces: 507.2.

*(Ord. No. 24894, § 1, 8-24-2022)*

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## CHAPTER 2. STATIONARY ENGINEERS

Section 200. Examination and licensing of stationary engineers and process steam boiler operators.
Section 201. Mechanical equipment requiring licensed operators.

### Section 200. Examination and licensing of stationary engineers and process steam boiler operators.

**A. Examination of Stationary Engineers; Qualifications.** The Code Official shall approve all eligible Stationary Engineer and Process Steam Boiler Operator applicants. Examinations shall be appropriate to the license sought and shall reflect the knowledge and experience required to perform the work of the particular class. The examination for Process Steam Boiler Operators shall be limited to questions on the safe operating practices of process steam boilers.

**B. Examination Fees.** Examinations for each class of stationary engineer license shall be prepared by an independent testing agency.

**C. Experience.** Applicants for the following classes of licenses shall have the minimum experience designated for such class of license as follows:

**1. First Class Engineer's License.** All applicants for a First Class Engineer's License shall:

**a.** Have at least three (3) years' experience in the operation or assisting in the operation of boilers exceeding fifteen (15) psig steam or one hundred sixty (160) psig water pressure or 250° Fahrenheit water temperature and refrigeration or air conditioning units exceeding one hundred fifty (150) tons; or

**b.** Be a currently-licensed Mechanical Journeyman/Contractor who has had at least one (1) year of experience operating or assisting in the operation of the equipment described in Subsection 200.C.1.a, above; or worked for a Mechanical Contractor for at least three (3) consecutive years installing the equipment described in Subsection 200.C.1.a, above; or

**c.** Have a First Class Limited License and at least three (3) years' experience operating or assisting in the operation of the equipment described in Subsection 200.C.1.a, above; or have a First Class Limited License, having held such license for at least one (1) year and a certificate from an approved school certifying that the applicant has completed a City of Tulsa, Inspections Department, approved course covering the operation of chillers and boilers, and at least one (1) year of experience in the operation of the equipment described in Subsection 200.C.1.a, above; or

**d.** Be a currently-licensed Unlimited Mechanical Journeyman/Contractor in the state of Oklahoma who has a certificate from an approved school certifying that the applicant has completed a City of Tulsa, Inspections Department, approved course covering the operation of chillers and boilers, and at least one (1) year of experience in the operation of the equipment described in Subsection 200.C.1.a, above.

**2. First Class Limited Engineer's License.** All applicants for a First Class Limited Engineer's License shall:

**a.** Have at least one (1) year of experience in the operation or assisting in the operation of low or high pressure boilers and at least three (3) years' experience in the operation or assisting in the operation of refrigeration or air conditioning units exceeding one hundred fifty (150) tons; or

**b.** Be a currently-licensed Unlimited Mechanical Journeyman/Contractor in the state of Oklahoma who has had at least six (6) months of experience operating or assisting in the operation of low-pressure boilers with an operating temperature of less than 250° Fahrenheit and subject to pressure not exceeding fifteen (15) psig steam or one hundred sixty (160) psig water, and six (6) months of experience in the operation of refrigeration or air conditioning units exceeding one hundred fifty (150) tons, including all related pumps and apparatus, and who has a certificate from an approved school certifying that the applicant has completed a City of Tulsa, Inspections Department, approved course covering the operation of chillers and boilers.

**3. Third Class Engineer's License.** All applicants for a Third Class Engineer's License shall have at least one (1) years' experience in the operation or assisting in the operation of low or high pressure boilers.

**4. Steam Special Engineer's License.** All applicants for a Steam Special Engineer's License shall have a least three (3) years' experience in the operation or assisting in the operation of boilers exceeding fifteen (15) psig steam or one hundred sixty (160) psig water pressure.

**5. Refrigeration Special Engineer's License.** All applicants for a Refrigeration Special Engineer's License shall have at least three (3) years' experience in the operation or assisting in the operation of refrigeration or air conditioning units exceeding one hundred fifty (150) tons.

**6. Process Steam Boiler Operator's License.** All applicants for a Process Steam Boiler Operator's License shall pass a written examination, and:

**a.** Have a minimum of three (3) months' experience in the operation or assisting in the operation of Process Steam Boilers of over ten (10) horsepower (334,750 BTU/Hour) input; or

**b.** Have successfully completed a short course approved by the Code Official on the safe and proper operating practices for high pressure steam process application boilers.

When the operating experience of applicants for the Process Steam Boiler Operator's license is limited to process steam boilers of fifty (50) horsepower (1,673,750 BTU/Hour) input or less and subject to an operating pressure of one hundred fifty (150) psig or less, that experience can only be used toward the experience required for a Third Class license. All experience required for any of the aforementioned classes of license defined in this section and so claimed by an applicant for such class of license shall be proven by a notarized certification from former and present employers concerning the examinee's experience and qualifications. Only experience on the equipment itemized in Section 201 of this Code shall be considered.

**D. Retesting.** An applicant shall be permitted to retest in accordance with the following:

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| Retesting: | The next testing date of the month following the failed test. |

**E. Issuance of Certificates of Competency.** Stationary Engineer applicants and Process Steam Boiler Operator applicants receiving a grade of seventy percent (70%) or higher on a required written examination shall be issued a Certificate of Competency.

All Certificates of Competency shall display the date of passage of the examination or, if issued without examination as provided in this chapter, the basis for the applicant's qualification. Such certificates shall be consecutively numbered and the Office of Mechanical Inspection shall keep a record of all certificates issued. Should a certificate be lost or destroyed, a duplicate may be obtained under a new registration number by submitting a signed, written request and payment of a replacement fee in accordance with the fee schedule in Title 49, Tulsa Revised Ordinances. Once replaced, the certificate which was lost or destroyed and its registration number shall be invalid.

**F. Issuance and Renewal of Stationary Engineer and Process Steam Boiler Operator Licenses.** Every holder of a current Stationary Engineer or Process Steam Boiler Operator Certificate of Competency shall be issued an annual license appropriate to such certificate by the Code Official upon payment of a license fee in accordance with the fee schedule in Title 49, Tulsa Revised Ordinances.

**G. Annual License Registration.** All Stationary Engineer and Process Steam Boiler Operator licenses shall expire on December 31 and shall be renewed annually. Failure to renew within thirty (30) days of expiration shall subject the former licensee to a penalty fee in accordance with the fee schedule in Title 49, Tulsa Revised Ordinances, per month, until renewal. When any operator's license has been expired for one (1) year or more, the license holder shall retest in accordance with section 200.E.

**H. Stationary Engineer License and Process Steam Boiler Operator Classifications Established and Work for Which Qualified Defined.** Stationary Engineer and Process Steam Boiler Operator licenses shall be issued to qualified applicants divided into the following categories:

1. **First Class Engineer's License.** Any person holding a First Class Engineer's License shall be qualified to operate and maintain all steam generating boilers, pressure vessels, super heaters, refrigeration plants, and air conditioning units of unlimited tonnage, horsepower, and pressures, and all of their related pumps and apparatus.
2. **First Class Limited Engineer's License.** Any person holding a First Class Limited License shall be qualified to operate and maintain all boilers with an operating temperature of less than 250° F. and subject to a pressure not exceeding 15 psig steam or 160 psig water and refrigeration and air conditioning units of unlimited tonnage including all related pumps and apparatus.
3. **Third Class Engineer's License.** Any person holding a Third Class Engineer's License shall be qualified to operate and maintain heating boilers with an operating temperature of less than 250° F. and subject to a pressure not to exceed 15 psig steam or 160 psig water and all related pumps and apparatus.
4. **Steam Special License.** Any person holding a Steam Special License may operate and maintain all boilers, engines, pumps, and related apparatus of unlimited size and pressure.
5. **Refrigeration Special License.** Any person holding a Refrigeration Special License may operate and maintain refrigeration plants and units of unlimited tonnage or horsepower.
6. **Process Steam Boiler Operator.** Any person holding a Process Steam Boiler Operator license may operate high pressure process steam boilers of fifty (50)

horsepower (1,673,750 BTU/Hour) input or less and subject to an operating pressure not to exceed 150 psig. Seventy-five percent (75%) of the total boiler capacity must be used for the process system operation.

**I. Display of Certificates and Licenses Required.** Licensees shall keep Certificates of Competency and current licenses displayed at all times in the place where they are employed so that same may be readily seen. In case a copy should be used, it must show the address where the original is displayed.

**J. Revocation and Suspension of Stationary Engineer and Process Steam Boiler Operator Licenses and Certificates of Competency.** Subject to the procedures governing the Board of Appeals as established by Title 51, Chapter 1, Tulsa Revised Ordinances, Stationary Engineer and Process Steam Boiler Operator Certificates of Competency or Stationary Engineer and Process Steam Boiler Operator Licenses may be denied, revoked, suspended, or canceled by the Board for incompetence, gross carelessness in the maintenance or operation of equipment, falsification of a registration document or intoxication while on duty or as otherwise authorized pursuant to Title 51, Chapter 1, Tulsa Revised Ordinances.

**K. Appeals to City Council.** Any person aggrieved by any decision of the Board shall have a right of appeal to the City Council in accordance with the procedures in Title 51, Chapter 1, Tulsa Revised Ordinances.

*(Ord. No. 23436, § 1, 2-11-2016; Ord. No. 24151, § 1, 6-26-2019; Ord. No. 24894, § 1, 8-24-2022; Ord. No. 25374, §§ 1—3, 7-31-2024)*

### Section 201. Mechanical equipment requiring licensed operators.

**A. Responsibility of Owner and Operator.** It shall be unlawful, a misdemeanor offense, and a violation of this code for any person, firm, limited liability company, corporation, or other legal entity owning or otherwise having control of the following mechanical equipment, to operate or to permit such equipment to be operated by any person who is not a properly licensed Stationary Engineer holding a current license and Certificate of Competency appropriate to the type, size, and pressure of such equipment. It shall further be unlawful and a misdemeanor offense for any person to operate the following equipment unless such person is duly licensed to operate such equipment:

**1.** All steam boilers of ten (10) horsepower or more, subject to an operating pressure of more than fifteen (15) pounds per square inch;

**2.** All steam boilers subject to an operating pressure of fifteen (15) pounds per square inch or less and all hot water boilers with an operating temperature exceeding 210° F., or having a capacity of over 3,000,000 BTU input, or aggregate total if manifolded together and located in a single confined space;

**3.** Any refrigeration and air conditioning units having a capacity of 150 tons, or 150 horsepower, or more. The provisions of this paragraph do not apply to units located outside of an occupied structure; or

**4.** All refrigeration and air conditioning plants of twenty (20) horsepower, or twenty (20) tons, whichever is greater, using Group 2 and 3 refrigerants as listed in Section 1104.1 of this code. The horsepower and tonnage of all such refrigeration and air conditioning plants shall be determined by aggregating all units greater than ten (10) horsepower or tons.

**B. Periods of Duty Established for Stationary Engineers and Process Steam Boiler Operator Operating Mechanical Equipment Requiring Licensed Operators.** A licensed operator shall personally remain on the premises, except as noted, where any of the mechanical equipment listed in Subsection 201.A of this chapter is in operation in accordance with the periods of duty specified in this section. Periods of operator duty shall be determined by the use and occupancy classification of the building or structure as defined in the ICC International Building Code 2018 Edition, as amended, within which such equipment is located, as follows:

| | | |
|---|---|---|
| 1. | Use Group A, Assembly Buildings | At all times during public occupancy while regulated equipment is in operation, or shall be monitored with computerized safety equipment with an immediate shutdown function and notification system.* |
| 2. | Use Group B, Business Buildings | At all times during public occupancy while regulated equipment is in operation, or shall be monitored with computerized safety equipment with an immediate shutdown function and notification system.* |
| 3. | Use Group E, Educational Buildings | At all times during public occupancy while regulated equipment is in operation, or shall be monitored with computerized safety equipment with an immediate shutdown function and notification system.* |
| 4. | Use Group F, Industrial Buildings | During each shift of work of the occupying industry, or shall be monitored with computerized safety equipment with an immediate shutdown function and notification system.* EXCEPTION: In facilities when the mechanical equipment is being operated by a Process Steam Boiler Operator, the operator shall be on the premises in accordance with Subsection 201.E. |
| 5. | Use Group H, High Hazard | At all times while regulated equipment is in operation; |
| 6. | Use Group I, Institutional Buildings | At all times while regulated equipment is in operation, or shall be monitored with computerized safety equipment with an immediate shutdown function and notification system.* |

| | | |
|---|---|---|
| 7. | Use Group M, Mercantile Buildings | During public occupancy while regulated equipment is in operation, or shall be monitored with computerized safety equipment with an immediate shutdown function and notification system.* |
| 8. | Use Group R, Residential Buildings: | |
| | a. R-1 Structures less than 4 stories | At start-up and shut-down; |
| | b. R-1 Structures of 4 stories or more | At all times while regulated equipment is in operation, or shall be monitored with computerized safety equipment with an immediate shutdown function and notification system.* |
| | c. R-2 Structures | At start-up and shut-down; |
| | d. R-3 Structures | None; |
| 9. | Use Group S, Storage | At start-up and shut-down; |
| 10. | Use Group U, Utility and Miscellaneous | The Code Official shall determine which of the above rules shall apply. Such determination shall be based upon the Use Group that the building or structure most nearly resembles. |

*A third-party certificate of compliance in a form acceptable to the Code Official, or their designee, signed and sealed by a Mechanical Engineer licensed in the State of Oklahoma shall be required and submitted annually.

"Public occupancy" shall mean open to public use by license or invitation. The term shall not mean occupancy by custodial, building maintenance, or security personnel, or occasional occupancy by employees, tenants, and their invitees after normal working hours."

**C. Daily operator log required.** A daily log shall be kept by all operators, showing the date and time each operator arrives on the job, with signature or initials. The log shall be kept in full view with certificate and license.

**D. Use of apprentice operators.** Operators may use assistants who have registered as apprentice operators. An apprentice operator shall not change any settings, make any adjustment, start, stop, work on, or repair equipment except in the presence of and under the direct supervision of a licensed operator. The licensed operator shall be directly responsible for the safe and lawful operation of any equipment where the operator's certificate and license are posted.

**E. Operating procedures for process steam boilers monitored by on-premises operators.** Start-up and shut-down procedures shall be posted in the boiler room. The certificate holder shall record in a log the operating conditions of the boiler at a minimum frequency at each day's start-up, at the mid-point of the daily operation and at the shut-down of the process steam boiler. The maximum time period between any two log entries by the certificate holder for a boiler in operation shall be six hours. Each log entry shall include as a minimum the date and time of the entry, the certificate

holder's signature, and a checklist of the status of the safety features of the boiler to include as a minimum the boiler operating pressure and the water level in the sight glass. The low water cut-off shall be cycled a minimum of once each operator's shift, and the pressure relief valve shall be lift tested monthly.

**F. Operating procedures for process steam boilers monitored with computerized safety equipment.** In use groups where Section 201(B) allows for computerized safety equipment monitoring, a third-party mechanical engineer shall annually confirm that the certificate holder has distributed operating start-up, shut-down, and remote operating procedures to all remote monitors. The certificate holder must have a system to digitally log the operating conditions of the boiler at minimum of every six (6) hours. Certificate holders must ensure that the low water cut-off is cycled manually or remotely a minimum of once each operator's shift. The pressure relief valve shall be lift tested monthly by an on-premises operator.

*(Ord. No. 24894, § 1, 8-24-2022; Ord. No. 25374, §§ 4—6, 7-31-2024)*

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## CHAPTER 3. ICC INTERNATIONAL FUEL GAS CODE, 2018 EDITION

Section 300. Adoption of the International Fuel Gas Code.
Section 301. Amendments to the ICC International Fuel Gas Code, 2018 Edition.

### Section 300. Adoption of the International Fuel Gas Code.

A certain document, three (3) copies of which are on file in the office of the City Clerk of the City of Tulsa, Oklahoma, being marked and designated as the *ICC International Fuel Gas Code*, 2018 Edition, as published by the International Code Council, Inc. (ICC), is hereby adopted as an amendment to the Tulsa Revised Ordinances, hereinafter the "Mechanical Code," for the installation of fuel gas piping systems, fuel gas appliances, gaseous hydrogen systems and related accessories serving buildings and structures except detached one- and two-family dwellings and townhouses not more than three (3) stories above grade plane in height with a separate means of egress and whose accessory structures shall comply with Tulsa Revised Ordinances, Title 51 Chapter 2. Each and all of the terms, conditions, regulations, provisions, and penalties of the *ICC International Fuel Gas Code*, 2018 Edition, are hereby referred to, adopted and made a part of the Tulsa Revised Ordinances as if fully set out in this chapter, with its amendments, if any, as prescribed in Section 301 of this chapter and, as used in this Chapter 3, may be referred to as the "code."

*(Ord. No. 23436, § 1, 2-11-2016; Ord. No. 24894, § 1, 8-24-2022)*

### Section 301. Amendments to the ICC International Fuel Gas Code, 2018 Edition.

The following provisions of the *ICC International Fuel Gas Code*, 2018 Edition, are hereby added, deleted, or amended to read as follows:

**Chapter 1 - Administration**

**106.1 When Required-Amendatory.** A contractor who desires to erect, install, enlarge, alter, repair, remove, convert, or replace a fuel gas piping system or fuel gas appliance, the installation of which is regulated by this code, or to cause such work to be done, shall first make application and obtain the required permit for the work contemplated.

**Exception:** Where equipment replacements and repairs must be performed in an emergency situation, the permit application shall be submitted within the next working business day.

**106.1.1 Annual Permit—Amendatory.** An annual permit is a yearly permit which represents a group of individual permits for each alteration to an already existing electrical, gas, mechanical or plumbing installation. The building official is authorized to issue an annual permit upon application therefor to any person, firm or corporation regularly employing one or more qualified tradespersons in the building, structure or on the premises owned or operated by the applicant for the permit.

**106.1.2 Annual permit records—Amendatory.** The person to whom an annual permit is issued shall keep a detailed record of alterations made under such annual permit. The building official shall have access to such detailed records of alterations at all times. At the completion of the entity's annual permit term, the applicant shall file such detailed records of alterations with the building official. Pursuant to the authority

of 59 O.S. § 1000.25, the building official shall collect fees for each individual permit which is part of the annual permit once the detailed records are submitted and remit such fees to the OUBCC.

**106.1.3 Tulsa Revised Ordinances, Title 50—Added.** Annual permits shall comply with Tulsa Revised Ordinances, Title 50.

**106.3 Application for permit—Amendatory.** No permit shall be issued to any person, firm, limited liability company, or corporation until such person, firm, limited liability company, or corporation has received a Certificate of Registration appropriate for the work contemplated.

**106.6.1 Work Commencing Before Permit Issuance—Amendatory.** Any person who commences work on a mechanical system before obtaining the necessary permits shall be subject to penalty fees established in Title 49, Tulsa Revised Ordinances.

**106.6.2 Fee Schedule—Amendatory.** Permit and inspection fees for all work shall be the same as set forth in Chapters 1 and 5 of Title 49, Tulsa Revised Ordinances.

**108.4 Violation Penalties—Amendatory.** Any person violating any of the provisions of this code shall be guilty of a misdemeanor offense and, upon conviction thereof, shall be punished by a fine of not more than One Thousand Two Hundred Dollars ($1,200.00), excluding cost, fees, and assessments or by imprisonment in the City Jail for a period not exceeding six (6) months or by both such fine and imprisonment. Each day that a violation continues shall be deemed a separate offense.

**108.7.2 Authority to disconnect service utilities—Amendatory.** The code official shall have the authority to require disconnection of utility service to eliminate an immediate hazard to life or property or to abate a violation of any provision of this code. The code official shall notify the serving utility and, where possible, the owner or the owner's authorized agent and occupant of the building, structure or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnection, the owner or occupant of the building, structure or service system shall be notified in writing, as soon as practicable thereafter.

**Section 109. Means of Appeal—Amendatory.** Appeals of orders, decisions or determinations made by the code official relative to the application and interpretation of this code, shall be made to the Board of Appeals as established by Title 51, Chapter 1, Tulsa Revised Ordinances.

**306.5 Equipment and appliances on roofs or elevated structures.** Where equipment requiring access or appliances are located on an elevated structure or the roof of a building such that personnel will have to climb higher than 16 feet (4877 mm) above grade to access such equipment or appliances, an interior or exterior means of access shall be provided. Such access shall not require climbing over obstructions greater than 30 inches (762 mm) in height or walking on roofs having a slope greater than 4 units vertical in 12 units horizontal (33-percent slope). Such access shall not require the use of portable ladders. Where access involves climbing over parapet walls, the height shall be measured to the top of the parapet wall. (A) Permanent ladders installed to provide the required access shall comply with the following minimum design criteria: (i) The side railing shall extend above the parapet or roof edge not less than 30 inches (762 mm), (ii) Ladders shall have rung spacing not to exceed 14 inches (356 mm) on center. The upper-most rung shall be not more than 24 inches (610 mm)

below the upper edge of the roof hatch, roof or parapet, as applicable, (iii) Ladders shall have a toe spacing not less than 6 inches (152 mm) deep, (iv) There shall be not less than 18 inches (457 mm) between rails, (v) Rungs shall have a diameter not less than 0.75-inch (19 mm) and be capable of withstanding a 300-pound (136.1 kg) load, (vi) Ladders over 30 feet (9144 mm) in height shall be provided with offset sections and landings capable of withstanding 100 pounds per square foot (488.2 kg divided by meters squared). Landing dimensions shall be not less than 18 inches (457 mm) and not less than the width of the ladder served. A guard rail shall be provided on all open sides of the landing, (vii) Climbing clearance. The distance from the centerline of rungs to the nearest permanent object on the climbing side of the ladder shall be not less than 30 inches (762 mm) measured perpendicular to the rungs. This distance shall be maintained from the point of ladder access to the bottom of the roof hatch. A minimum clear width of 15 inches (381 mm) shall be provided on both sides of the ladder measured from the midpoint of and parallel with the rungs, except where cages or wells are installed, (viii) Landing required. The ladder shall be provided with a clear and unobstructed bottom landing area having a minimum dimension of 30 inches (762 mm) by 30 inches (762 mm) centered in front of the ladder, (ix) Ladders shall be protected against corrosion by approved means. (x) Access to ladders shall be provided at all times. (B) Catwalks installed to provide the required access shall be not less than 24 inches (610 mm) wide and shall have railings as required for service platforms.

**Exceptions:** (i) This section shall not apply to Group R-3 occupancies, (ii) This section shall not apply to appliance replacement.

**306.6 Guards—Amendatory.** Guards shall be provided where various components that require service are located on a roof or elevated structure and have a condition as set forth in Sections 306.1 through 306.6.3. The top of the guard shall be located not less than 42 inches (1067 mm) above the elevated surface adjacent to the guard. The guard shall be constructed so as to prevent the passage of a 21-inch diameter (533 mm) sphere and shall comply with the loading requirements for guards as specified in the International Building Code. Guards shall be provided at new components when added or replaced on an existing roof or elevated structure and have a condition as set forth in Sections 306.1 through 306.6.3.

**Exception:** When approved by the authority having jurisdiction, guards are not required where permanent fall arrest/restraint anchorage connector devices that comply with ANSI/ASSE Z 359.1 are affixed for use during the entire roof covering lifetime. The devices shall be reevaluated for possible replacement when the entire roof covering is replaced. The devices shall be placed no more than 10 feet (3048 mm) on center along hip and ridge lines and placed not less than 10 feet (3048 mm) from roof edges and the open sides of walking surfaces.

**306.6.1 Roof edge—Added.** Guards complying with Section 306.1 shall be provided when components are located within 10 feet (3048 mm) of a roof edge or open side of a walking surface or elevated structure and such edge or open side is located more than 30 inches (762 mm) above the floor, roof, or grade below. The guard shall extend not less than 30 inches (762 mm) beyond each end of the component that requires service.

**306.6.2 Skylights—Added.** Guards complying with Section 306.6 shall be provided when a skylight is within 10 feet (3048 mm) of the component that requires service. The guard shall extend 30 inches (762 mm) beyond the edge of the skylight.

**Exceptions:**

**(A)** Guards are not required when the skylight is located at least 42 inches (1067 mm) above the highest point of the walking surface adjacent to the skylight or components.

**(B)** Guards are not required if some other provision for skylight fall-through protection is provided and approved by the authority having jurisdiction.

**306.6.3 Roof hatch—Added.** Guards complying with Section 306.6 shall be provided when a roof hatch is within 10 feet (3048 mm) of the component that requires service. The guard shall extend 30 inches (762 mm) beyond the edge of the roof hatch. If the component is within 10 feet (3048 mm) of the ladder access side of the roof hatch, the guard shall incorporate a self-closing, self-latching gate. The gate shall have a top edge of not less than 42 inches (1067 mm) above the elevated surface adjacent to the gate and shall not allow the passage of a 21 inch (533 mm) sphere. If a roof hatch exists within 10 feet of a roof edge that is located more than 30 inches (762 mm) above the floor, roof or grade below and a new component that requires services on that existing roof or elevated structure, then a guard complying with Section 306.6 shall be added between the existing roof hatch and the roof edge.

**307.2.1 Condensate drains—Added.** Where condensing appliances are in locations subject to freezing conditions, the condensate drain line shall be protected from freezing in an approved manner and in accordance with manufacturer's installation instructions.

**310.1.1 CSST—Amendatory.** Corrugated stainless steel (CSST) gas piping systems and piping systems containing one or more segments of CSST shall be bonded to the electrical service grounding electrode system or, where provided, the lightning protection grounding electrode system.

**Exception:** Corrugated stainless steel gas piping or tubing products or systems that have been designed, manufactured and listed for installation without bonding to the grounding electrode system, shall be permitted to be installed in accordance with the manufacturer's installation instructions.

**307.2.3 Work on Consumer's Gas Piping Containing Unmeasured Gas—Added.** Repair, alterations, relocations, or any other work conducted on any portion of a consumer's gas piping, containing unmeasured gas, shall only be performed by a qualified person or installation agency authorized to do such work. When such work is done, the gas utility company shall be notified. The movement, connection, or disconnection of gas meters shall only be performed by gas utility company employees or others authorized by the gas utility company. For unmeasured gas pressure above three (3) psig, the line shall be tested at ninety (90) psig.

**402.1. General Considerations—Amendatory.** Piping systems shall be of such size and so installed as to provide a supply of gas sufficient to meet the maximum demand and supply gas to each appliance inlet at not less than the minimum supply pressure required by the appliance, but not less than 1" to the first connected appliance or regulator.

**404.7.4 Protection against physical damage—Added.** Gas piping other than steel piping installed less than 1½ inches from roof decking shall be protected against physical damage by an approved method.

**404.10.2 Separation of gas piping from other piping systems—Added.** There shall be a minimum 12 inches of undisturbed or compacted earth separation between buried gas piping and any other electrical service lines, water piping or sewer piping systems.

**404.12. Minimum burial depth—Amendatory.** Underground piping systems shall be installed a minimum depth of 18 inches (457 mm) below grade, except as provided for in Section 404.10.1.

**Exception:** Where a minimum depth of 18 inches (457 mm) of cover cannot be provided, the pipe shall be installed in conduit or bridged (shielded).

**406.4.1 Test pressure—Amendatory.** The test pressure to be used shall be no less than 1½ times the proposed maximum working pressure, but not less than 3 psi on a five (5) psi gauge registered in one-tenth pound increments or ten (10) psi on a fifteen (15) psi gauge registered in one pound increments or ten (10) psi on a thirty (30) psi gauge registered in one (1) pound increments. Where the test pressure exceeds 125 psig (862 kPa gauge), the test pressure shall not exceed a value that produces a hoop stress in the piping greater than 50 percent of the specified minimum yield strength of the pipe.

**406.6.2.1 General—Added.** At least one appliance shall be connected prior to final release of the gas meter.

**411.2.1 Location, Protection and Sizing of Riser—Added.** The gas riser to each manufactured home site shall be placed in the rear one-third (a) section of the site, within eighteen (18) inches of the roadside wall of the manufactured home (i.e., the right side of the manufactured home when viewing the tongue of the manufactured home). It shall be located and protected or supported so as to minimize the likelihood of damage by moving vehicles. The minimum size of the gas piping outlet at such a site shall be three-fourths (¾) inch for other than undiluted, liquefied petroleum gases.

**411.2.2 Location of Shut-off Valves—Added.**

**A.** Outlets for the individual manufactured homes and gas piping to any building supplied by the system shall be provided with a readily accessible, approved valve which cannot be locked in the open position.

**B.** A readily accessible valve shall be provided near the point of gas delivery for shutting off the entire manufactured home park system. The valve provided by the serving gas supplier may be considered acceptable for this purpose, provided it is readily accessible.

**412.5 Attendants.** Motor fuel-dispensing operations shall be conducted by qualified attendants or in accordance with Section 412.9 by persons trained in the proper handling of LP-gas.

**Exception:** When the dispensing equipment meets the guidelines of NFPA® 58 for "Low emission transfer" an attendant is not required.

**412.6.1 Low emission transfer.** When the dispensing equipment is installed in accordance with Section 6.30.5 of NFPA® 58 for "Low emission transfer," the transfer distance requirements in Table 6.7.2.1 and Section 6.27.4.3 of NFPA® 58 shall be reduced by one-half.

**412.9 Public fueling of motor vehicles.** (A) Self-service LP-gas dispensing systems, including key, code and card lock dispensing systems, shall be limited to the filling of permanently mounted containers providing fuel to the LP-gas-powered vehicle. (B) The requirements for self-service LP-gas dispensing systems shall be in accordance with the following: (i) The arrangement and operation of the transfer of product into a vehicle shall be in accordance with this section and Chapter 61 of the International Fire Code®, (ii) The system shall be provided with an emergency shut-off switch located within 100 feet (30 480 mm) of, but not less than 20 feet (6096 mm) from dispensers, (iii) The owner of the LP-gas motor fuel-dispensing facility or the owner's designee shall provide for the safe operation of the system and the training of users. Exception: If the LP-gas motor fuel-dispensing facility meets the requirements of a low emission transfer station per NFPA® 58, then training of the users is not the responsibility of the facility, (iv) The dispenser and hose-end valve shall release not more than 4 cubic centimeters of liquid to the atmosphere upon breaking the connection with the fill valve on the vehicle, (v) Fire extinguishers shall be provided in accordance with Section 2305.5 of the International Fire Code®, (vi) Warning signs shall be provided in accordance with Section 2305.6 of the International Fire Code®, (vii) The area around the dispenser shall be maintained in accordance with Section 2305.7 of the International Fire Code®.

**413.3.2 Warning signs.** Warning signs complying with Section 310 of the International Fire Code® shall be posted as follows: (A) Warning sign(s) shall be conspicuously posted within sight of each dispenser in the fuel dispensing area and shall state the following: (i) No smoking, (ii) Shut off motor, (iii) Flammable Gas, (iv) Natural gas vehicle fuel cylinders shall be inspected at intervals not exceeding 3 years or 36,000 miles to ensure safe operation of the vehicle, (v) Natural gas fuel cylinders past their end-of-life date shall not be refueled and shall be removed from service. (B) A warning sign with the words "NO SMOKING, FLAMMABLE GAS" shall be posted in all compressor and storage areas. (C) The lettering on the sign shall be legible and large enough to be visible from each point of transfer. (D) The service pressure of each dispenser shall be posted in view of the operator.

**413.5 Private fueling of motor vehicles.**

**(A)** Self-service CNG-dispensing systems, including key, code and card lock dispensing systems, shall be limited to the filling of approved, permanently mounted fuel containers.

**(B)** In addition to the requirements in the International Fire Code, the owner of a self-service CNG-dispensing facility shall ensure the safe operation of the system.

**413.8 Emergency shutdown devices.** A remote and local emergency manual shutdown device shall be provided. Upon activation, the emergency shutdown system shall automatically close valves between the main gas supply and the compressor and between the storage containers and dispensers, and automatically shut off the power supply to the compressor and the following associated devices: dispensing enclosures; remote pumps; power, control, and signal circuits; and electrical equipment in the hazardous (classified) locations surrounding the fuel dispensing enclosures. All labeled emergency shutdown devices shall be interconnected, whether required or not. Resetting from an emergency shutoff condition shall require manual intervention and the manner of resetting shall be approved by the Authority Having Jurisdiction.

**Exception:** In time-fill applications, in lieu of a defined remote and local emergency manual shutdown device, an emergency manual shutdown device shall be provided within 50 feet (15 240 mm) of each fixed point of dispensing hose attachment and located inside and outside the compressor area within 10 feet (3048 mm) of the main access to the compressor area.

**413.8.1 Remote emergency shutdown device.** A remote emergency manual shutdown device shall be located within 100 feet (30 480 mm) of, but not less than 20 feet (6096 mm) from all dispensing enclosures and shall be provided inside and outside the compressor area within 10 feet (3048 mm) of the main access to the compressor area. Exception: A remote emergency manual shutdown device may be located greater than 100 feet (30 480 mm) from one or more dispensing enclosures when within line of sight of the dispensing enclosures and approved by the Authority Having Jurisdiction. Section 413.8.2 Local emergency shutdown device. This section has been added to require a local emergency shutdown device be provided within 15 feet (4572 mm) of each dispensing enclosure. This section has been added to read: 413.8.2 Local emergency shutdown device. A local emergency manual shutdown device shall be located within 15 feet (4572 mm) of each dispensing enclosure.

**Chapter 8 Referenced Standards—Amendatory.** Chapter 8 of the IFGC 2018 is adopted with the following modifications:

IBC® 18 *International Building Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

IECC®-06 *International Energy Conservation Code*®.

IFC® 18 *International Fire Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

IMC® 18 *International Mechanical Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

IPC® 18 *International Plumbing Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

IRC® 15 *International Residential Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

NFPA 70-14 *National Electrical Code*® as adopted and modified by the State of Oklahoma through the OUBCC.

*(Ord. No. 23436, § 1, 2-11-2016; Ord. No. 24894, § 1, 8-24-2022)*

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## APPENDIX A AIRPORT

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Aviation Airport A | 3652 | 3750 | 06-15-30 | 1954 | from 4.75 to 5 | $ 400,000 |
| Aviation Airport B | 3652 | 3834 | 01-15-31 | 1956 | from 4.5 to 5 | 150,000 |
| Airport Site 1941 | 4549 | 4557 | 05-01-41 | 1946 | ½ of 1 | 250,000 |
| Airport Sewer 1941 | 4549 | 4558 | 05-01-41 | 1946 | ½ of 1 | 225,000 |
| Airport Waterworks 1941 | 4549 | 4559 | 05-01-41 | 1946 | ½ of 1 | 275,000 |
| Municipal Airport Extension | 4637 | 4658 | 01-01-42 | 1952 | from 1.5 to 2 | 100,000 |
| Auxiliary Airport 1942 | 4637 | 4659 | 01-01-42 | 1952 | from 1.5 to 2 | 50,000 |
| Airport Extension 1955 | 7094 | 7477 | 09-01-55 | 1979 | from 1 to 4 | 2,150,000 |
| Auxiliary Airport 1955 | 7095 | 7479 | 09-01-55 | 1975 | from 2.5 to 2.75 | 350,000 |
| Municipal Airport A 1959 | 8433 | 8758 | 11-01-59 | 1984 | from 3.5 to 4 | 3,000,000 |
| Municipal Airport B 1960 | 8433 | 8981 | 08-01-60 | 1985 | from 3.5 to 4 | 1,200,000 |

## FIRE

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Fire Station 1923 | 2418 | 2504 | 06-15-23 | 1947 | 5 | $ 100,000 |
| Fire Department 1927 | 3270 | 3464 & 3473 | 01-01-29 | 1953 | from 4.25 to 4.5 | 115,000 |
| Fire Station A 1930 | 3652 | 3751 | 06-15-30 | 1955 | from 4.75 to 5 | 150,000 |
| Fire Station B 1930 | 3652 | 3833 | 01-15-31 | 1956 | from 4.5 to 5 | 150,000 |
| Fire Sta. & Equip 1942 | 4637 | 4653 | 01-01-42 | 1952 | from 1.5 to 2 | 318,000 |
| Fire Sta. & Equip. A 1946 | 4992 | 5030 | 01-01-46 | 1956 | from 1 to 1.1 | 187,000 |
| Fire Sta. & Equip. A 1952 | 6304 | 6397 | 07-01-52 | 1975 | from 2 to 2.25 | 300,000 |
| Fire Sta. & Equip. B 1953 | 6304 | 6692 | 10-01-53 | 1974 | from 2.75 to 3 | 400,000 |
| Fire Sta. & Equip. C 1955 | 6304 | 7138 | 01-01-55 | 1972 | from 1.5 to 4 | 150,000 |
| Fire Sta. & Equip. D 1955 | 6304 | 7482 | 09-01-55 | 1973 | from 2.5 to 2.75 | 235,000 |
| Fire Sta. & Equip. 1957 | 7572 | 8046 | 04-01-57 | 1972 | from 3.2 to 4 | 550,000 |
| Fire Sta. & Equip. A 1962 | 9451 | 9497 | 10-01-62 | 1984 | from 2.8 to 3.2 | 1,600,000 |

## GENERAL OBLIGATION BONDS

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| G.O.B. 1963 | 9451 | 9729 | 10-01-63 | 1988 | from 3 to 4 | $ 4,350,000 |
| G.O.B. Series A 1965 | 10213 | 10266 | 11-01-65 | 1990 | from 2 to 4 | 7,610,000 |
| G.O.B. Series B 1965 | 10213 | 10269 | 11-01-65 | 1970 | from 2.75 to 3.00 | 200,000 |
| G.O.B. Series A 1966 | 9451 | 10603 | 11-01-66 | 1991 | 4 | 15,540,000 |
| G.O.B. Series A 1970 | 11666 | 11746 | 06-01-70 | 1985 | from 5.5 to 6 | 11,000,000 |
| G.O.B. Series I 1970 | 11548 | 11927 | 11-01-70 | 1990 | from 4 to 6 | 15,000,000 |
| G.O.B. Series II 1971 | 11548 | 12209 & 12234 | 10-01-71 | 1996 | from 3.75 to 5.75 | 16,000,000 |
| G.O.B. Series B 1972 | 11666 | 12351 & 12372 | 03-01-72 | 1992 | from 3.25 to 5 | 9,070,000 |
| G.O.B. Series III 1972 | 11548 | 12544 | 10-01-72 | 1997 | from 3.55 to 5 | 8,500,000 |
| G.O.B. Series IV 1973 | 11548 | 12991 | 12-01-73 | 1997 | from 3.8 to 5.75 | 5,500,000 |
| G.O.B. P.A.C. Bond 1974 | 12877 | 13067 | 03-01-74 | 1999 | from 4.1 to 5 | 7,000,000 |
| G.O.B. Series 1989 | 16900 | 17223 & 17238 | 11-01-89 | 2009 | from 7 to 7.1 | 49,136,000 |
| G.O.B. Series 1992 | 17700 | 17711 | 06-01-92 | 2017 | from 6.2 to 6.3 | 50,000,000 |
| G.O.B. Series 1995 | 18269 | 18351 | 02-01-95 | 2015 | from 6.25 to 6.50 | 27,000,000 |
| G.O.B. Series 1996 | 18269 | 18674 | 05-01-96 | 2016 | from 5.125 to 5.75 | 45,770,000 |
| G.O.B. Series 1999 | 19570 & 19575 | 19678 | 12-14-99 | 2019 | from 5.00 to 5.63 | 31,990,000 |

## LIMITED ACCESS FACILITIES

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| L.A.F. 1946 | 5001 | 5028 | 01-01-46 | 1966 | from 1.1 to 3 | $ 3,000,000 |
| L.A.F. 1950 | 5945 | 5982 | 09-01-50 | 1974 | from 1.5 to 1.75 | 500,000 |
| L.A.F. A 1952 | 6304 | 6392 | 07-01-52 | 1977 | from 2 to 2.25 | 500,000 |
| L.A.F. B 1953 | 6304 | 6687 | 10-01-53 | 1978 | from 2.75 to 3 | 1,075,000 |
| L.A.F. C 1955 | 6304 | 7139 | 01-01-55 | 1980 | from .25 to 4 | 920,000 |
| L.A.F. D 1955 | 6304 | 7480 | 09-01-55 | 1980 | from 1 to 4 | 900,000 |
| L.A.F. A 1957 | 8003 | 8047 | 04-01-57 | 1982 | from 3.25 to 4 | 750,000 |
| L.A.F. B 1957 | 8003 | 8246 & 8260 | 10-01-57 | 1979 | from 3.75 to 4 | 1,000,000 |
| L.A.F. C 1958 | 8003 | 8475 | 08-01-58 | 1983 | from 2.75 to 3 | 1,100,000 |
| L.A.F. A 1958 | 9294 | 8476 | 08-01-58 | 1983 | from 2.75 to 3 | 500,000 |
| L.A.F. D 1959 | 8003 | 8663 | 07-01-59 | 1984 | from 3.25 to 4 | 1,425,000 |
| L.A.F. B 1960 | 8294 | 8980 | 08-01-60 | 1985 | from 3.25 to 4.5 | 1,000,000 |
| L.A.F. C 1961 | 8294 | 9179 | 07-01-61 | 1986 | from .25 to 4.5 | 1,600,000 |
| L.A.F. Expressway 1961 | 9183 | 9275 | 11-01-61 | 1986 | from 3.25 to 3.6 | 1,000,000 |
| L.A.F. A 1961 | 9183 | 9276 | 11-01-61 | 1986 | from 3.25 to 3.6 | 1,000,000 |
| L.A.F. B 1962 | 9183 | 9363 | 04-01-62 | 1987 | from 2.75 to 4 | 500,000 |
| L.A.F. C 1962 | 9183 | 9442 | 08-01-62 | 1987 | from .10 to 4 | 1,000,000 |
| L.A.F. A 1965 | 10213 | 10267 | 11-01-65 | 1990 | from 2 to 4 | 2,800,000 |
| L.A.F. A 1966 | 9451 | 10602 | 11-01-66 | 1991 | 4 | 2,690,000 |
| L.A.F. 1977 | 13790 | 13872 | 07-01-77 | 1997 | from 3.75 to 5.75 | 14,463,000 |
| L.A.F. 1983 | 15686 | 15850 | 12-01-83 | 2008 | from 7 to 10 | 16,500,000 |
| L.A.F. 1984 | 15686 | 16173 | 12-01-84 | 2009 | from 6.5 to 10 | 17,500,000 |

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| L.A.F. 1985 | 15686 | 16469 | 12-01-85 | 2010 | from 6 to 10 | 17,000,000 |

## MISCELLANEOUS

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Bridge A 1930 | 3652 | 3753 | 06-15-30 | 1954 | from 4.75 to 5 | $ 400,000 |
| Bridge B 1930 | 3652 | 3831 | 01-15-31 | 1956 | from 4.5 to 5 | 325,000 |
| Colored Detention Homes 1946 | 4992 | 5032 | 01-01-46 | 1951 | from 7/8 of 1 to 1 | 20,000 |
| Convention Hall | 3652 | 3727 | 05-15-30 | 1954 | from 4.5 to 4.75 | 60,000 |
| Convention Hall 1952 | 6304 | 6402 | 07-01-52 | 1973 | from 2 to 2.25 | 250,000 |
| Funding 1931 | | 3870 | 05-15-31 | 1955 | 5.5 | 338,483.20 |
| Garbage Plant 1921 | 2139 | 2167 | 07-01-21 | 1946 | 5.5 | 50,000 |
| Garbage Vehicle 1956 | 7572 | 7689 | 04-01-56 | 1962 | 1.625 | 150,000 |
| Gilcrease Museum 1955 | 6960 | 7143 | 01-01-55 | 1980 | from 1 to 4 | 2,250,000 |
| Gilcrease Museum A 1962 | 9300 | 9362 | 04-01-62 | 1987 | from 2.75 to 4 | 600,000 |
| Grade Separation A 1953 | 6304 | 6688 | 10-01-53 | 1974 | from 2.75 to 3 | 300,000 |
| Grade Separation B 1955 | 6304 | 7137 | 01-01-55 | 1979 | from 1 to 4 | 650,000 |
| Hospital - Detention | 3270 | 3345 | 01-01-28 | 1946 | from 4 to 4.5 | 15,000 |
| Hospital A | 3652 | 3728 | 05-15-30 | 1954 | from 4.5 to 4.75 | 160,000 |
| Juvenile Detention Home A | 3652 | 3755 | 06-15-30 | 1947 | from 4.75 to 5 | 25,000 |
| Juvenile Detention Home B | 3652 | 3837 | 01-15-31 | 1940 | 5 | 25,000 |
| Library 1930 | 3652 | 3749 | 06-15-30 | 1953 | from 4.75 to 5 | 75,000 |
| Library 1942 | 4637 | 4657 | 01-01-42 | 1952 | from 1.5 to 2 | 40,000 |
| Library A 1952 | 6304 | 6399 | 07-01-52 | 1963 | from 2 to 2.25 | 200,000 |
| Library B 1955 | 6304 | 7142 | 01-01-55 | 1967 | from 1.5 to 4 | 250,000 |
| Municipal Building A 1959 | 8607 | 8662 | 07-01-59 | 1984 | from 3.25 to 4 | 1,482,000 |
| Municipal Building B 1961 | 8607 | 9178 | 07-01-61 | 1986 | from .25 to 3.5 | 6,000,000 |

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Oaklawn Cemetery 1955 | 6304 | 7476 & 7506 | 09-01-55 | 1962 | from 2 to 2.5 | 50,000 |
| Police Station 1923 | 2418 | 2503 | 06-15-23 | 1947 | 5 | 150,000 |
| Police Station | 3652 | 3754 | 06-15-30 | 1955 | from 4.75 to 5 | 170,000 |
| Police Station 1952 | 6304 | 6401 | 07-01-52 | 1965 | from 2 to 2.25 | 175,000 |
| Red Fork Town Hall 1921 | | Red Fork 60 | 09-13-21 | 1936 | 6 | 6,000 |

## PARK

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Park 1924 | 2516 | 2598 & 2649 | 02-01-24 | 1949 | 5.5 | $ 150,000 |
| Park 1926 | 3037 | 3110 & 3142 | 01-01-27 | 1952 | 4.5 | 100,000 |
| Park 1927 | 3270 | 3346 & 3472 | 02-01-29 | 1953 | 4.5 | 500,000 |
| Park A 1930 | 3652 | 3731 | 05-15-30 | 1954 | from 4.5 to 4.75 | 200,000 |
| Park B 1930 | 3652 | 3835 | 01-15-31 | 1956 | from 4.5 to 5 | 150,000 |
| Park Improvement 1946 | 4992 | 5033 | 01-01-46 | 1961 | from 1 to 1.2 | 300,000 |
| Park Acquisition A 1952 | 6304 | 6396 | 07-01-52 | 1977 | from 2 to 2.25 | 500,000 |
| Park Acquisition B 1953 | 6304 | 6501 | 01-01-53 | 1978 | from 2.25 to 2.75 | 1,000,000 |
| Park A 1952 | 6304 | 6400 | 07-01-52 | 1977 | from 2 to 2.25 | 750,000 |
| Park B 1953 | 6304 | 6694 | 10-01-53 | 1977 | from 2.75 to 3 | 700,000 |
| Park C 1955 | 6304 | 7141 | 01-01-55 | 1978 | from 1 to 4 | 610,000 |
| Park A 1956 | 7572 | 7688 | 04-01-56 | 1973 | from 2.25 to 4 | 400,000 |
| Park B 1957 | 7572 | 8048 | 04-01-57 | 1978 | from 3.25 to 4 | 600,000 |
| Park A 1962 | 9300 | 9364 | 04-01-62 | 1987 | from 2.75 to 4 | 1,000,000 |
| Park B 1962 | 9300 | 9444 | 08-01-62 | 1987 | from .10 to 4 | 2,800,000 |
| Park A 1973 | 12542 | 12730 | 04-01-73 | 1993 | from 3.6 to 5.6 | 4,000,000 |
| Park B 1974 | 12542 | 13144 | 06-01-74 | 1989 | from 4.5 to 6.5 | 4,500,000 |
| Park C 1975 | 12542 | 13416 | 07-01-75 | 1990 | from 5 to 6.875 | 4,500,000 |
| Park 1983 | 15686 | 15850 | 12-01-83 | 1993 | from 6.4 to 10 | 6,000,000 |
| Park 1984 | 15686 | 16173 | 12-01-84 | 1994 | from 6.5 to 10 | 6,000,000 |

## SANITARY SEWER

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Sanitary Sewer A 1930 | 3652 | 3752 | 06-15-30 | 1955 | from 4.75 to 5 | $ 150,000 |
| Sanitary Sewer B 1930 | 3652 | 3836 | 01-15-31 | 1950 | from 4.75 to 5 | 75,000 |
| Sanitary Sewer 1942 | 4637 | 4656 | 01-01-42 | 1952 | from 1.5 to 2 | 264,000 |
| Sanitary Sewer 1946 | 4992 | 5034 | 01-01-46 | 1966 | from 1.1. to 3 | 400,000 |
| Sanitary Sewer A 1948 | 5408 | 5502 | 07-01-48 | 1967 | from 1.5 to 4 | 340,000 |
| Sanitary Sewer B 1949 | 5408 | 5698 | 07-01-49 | 1968 | from 2 to 4 | 340,000 |
| Sanitary Sewer C 1950 | 5408 | 5948 | 07-01-50 | 1966 | 1.75 | 287,000 |
| Sanitary Sewer A 1952 | 6304 | 6394 | 07-01-52 | 1977 | from 2 to 2.25 | 1,750,000 |
| Sanitary Sewer B 1953 | 6304 | 6690 | 10-01-53 | 1976 | from 2.75 to 3 | 2,100,000 |
| Sanitary Sewer C 1954 | 6304 | 7027 | 10-01-54 | 1976 | from 1.5 to 4 | 1,000,000 |
| Sanitary Sewer D 1955 | 6304 | 7478 | 09-01-55 | 1980 | from 1 to 4 | 900,000 |
| Sanitary Sewer A 1956 | 7572 | 7685 | 04-01-56 | 1977 | from 2.25 to 4 | 500,000 |
| Sanitary Sewer B 1956 | 7572 | 7837 | 07-01-56 | 1981 | from 2.6 to 4 | 2,500,000 |
| Sanitary Sewer C 1957 | 7572 | 8049 | 04-01-57 | 1981 | from 3.25 to 4 | 2,250,000 |

## SEWER

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Sanitary Sewer A 1962 | 9451 | 9496 | 10-01-62 | 1987 | from .1 to 4 | $ 1,300,000 |
| Sanitary Sewer B 1962 | 9451 | 9499 | 10-01-62 | 1967 | 2.25 | 120,000 |
| Sanitary Sewer 1983 | 15686 | 15850 | 12-01-83 | 2008 | from 7 to 10 | 8,400,000 |
| Sanitary Sewer 1984 | 15686 | 16173 | 12-01-84 | 2009 | from 6.5 to 10 | 13,400,000 |
| Sanitary Sewer 1985 | 15686 | 16469 | 12-01-85 | 2010 | from 6 to 10 | 9,500,000 |
| Sewer Main & Sub. 1921 | 2139 | 2148 | 07-01-21 | 1946 | 5.5 | 600,000 |
| Sewer Main 1922 | 2256 | 2280 & 2328 | 05-01-22 | 1947 | 5.5 | 900,000 |
| Sewer 1924 | 2516 | 2597 & 2648 | 02-01-24 | 1949 | 5.5 | 800,000 |
| Sewer - Red Fork | | Red Fork 86 | 07-01-26 | 1951 | 6 | 35,000 |
| Sewer 1926 | 3037 | 3075, 3108 & 3140 | 01-01-27 | 1952 | 4.5 | 1,155,000 |
| Sewer 1935 | 4055 | 4067, 4076 & 4078 | 01-01-35 | 1948 | from 4.75 to 5 | 75,000 |
| Sewage Disposal Plant 1942 | 4637 | 4652 | 01-01-42 | 1952 | from 1.75 to 2.25 | 1,037,000 |

## STORM SEWER

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Storm Sewer A 1930 | 3652 | 3729 | 05-15-30 | 1954 | from 4.5 to 4.75 | $ 400,000 |
| Storm Sewer B 1931 | 3652 | 3830 | 01-15-31 | 1955 | from 4.5 to 5 | 300,000 |
| Storm Sewer 1942 | 4637 | 4655 | 01-01-42 | 1952 | from 1.5 to 2 | 709,000 |
| Storm Sewer A 1948 | 5408 | 5501 & 5516 | 07-01-48 | 1968 | 1.5 to 4 | 383,000 |
| Storm Sewer B 1949 | 5408 | 5697 | 07-01-49 | 1968 | from 2 to 4 | 340,000 |
| Storm Sewer C 1950 | 5408 | 5949 | 07-01-50 | 1968 | from 1.75 to 3.5 | 425,000 |
| Storm Sewer A 1952 | 6304 | 6395 | 07-01-52 | 1977 | from 2 to 2.25 | 675,000 |
| Storm Sewer B 1953 | 6304 | 6691 | 10-01-53 | 1975 | from 2.75 to 3 | 1,025,000 |
| Storm Sewer C 1955 | 6304 | 7140 | 01-01-55 | 1980 | from 1 to 4 | 720,000 |
| Storm Sewer D 1955 | 6304 | 7481 | 09-01-55 | 1979 | from 1 to 4 | 852,000 |
| Storm Sewer A 1956 | 7572 | 7686 | 04-01-56 | 1972 | from 2.25 to 4 | 300,000 |
| Storm Sewer B 1957 | 7572 | 8050 | 04-01-57 | 1979 | from 3.25 to 4 | 300,000 |
| Storm Sewer C 1957 | 7572 | 8247 & 8261 | 10-01-57 | 1979 | from 3.75 to 4 | 500,000 |
| Storm Sewer A 1957 | 8003 | 8051 | 04-01-57 | 1981 | from 3.25 to 4 | 450,000 |
| Storm Sewer B 1957 | 8003 | 8248 | 10-01-57 | 1979 | from 3.75 to 4 | 1,300,000 |
| Storm Sewer C 1958 | 8003 | 8477 | 08-01-58 | 1983 | from 2.75 to 3 | 600,000 |
| Storm Sewer D 1959 | 7572 | 8664 | 07-01-59 | 1980 | from 3.25 to 4 | 200,000 |
| Storm Sewer D 1959 | 8003 | 8665 | 07-01-59 | 1984 | from 3.25 to 4 | 1,125,000 |
| Storm Sewer A 1961 | 9183 | 9277 | 11-01-61 | 1986 | from 3.25 to 3.6 | 1,000,000 |
| Storm Sewer B 1962 | 9183 | 9443 | 08-01-62 | 1987 | from .10 to 4 | 2,500,000 |
| Storm Sewer 1977 | 13790 | 13872 | 07-01-77 | 1997 | from 3.75 to 5.75 | 7,480,000 |

## STREET

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Katy Overpass | 3037 | 3465 & 3473 | 01-01-29 | 1954 | 5 | $ 25,000 |
| Heavy Traffic Highway | 3120 | 3263 & 3292 | 01-01-28 | 1953 | 4.50 | 60,000 |
| Midland Valley Underpass | 3120 | 3262 & 3291 | 01-01-28 | 1953 | 4.50 | 75,000 |
| Street Improvement 1927 | 3270 | 3566 | 08-01-29 | 1953 | 4.50 | 1,250,000 |
| General Improvement A 1930 | 3652 | 3730 | 05-15-30 | 1954 | from 4.75 to 4.5 | 450,000 |
| General Improvement B 1930 | 3652 | 3832 | 01-15-31 | 1956 | from 4.5 to 5 | 350,000 |
| Grade Separation A | 3652 | 3756 | 06-15-30 | 1955 | from 4.5 to 5 | 450,000 |
| Grade Separation B | 3652 | 3924 | 11-20-31 | 1956 | from 4.75 to 5 | 225,000 |
| Street Improvement 1942 | 4637 | 4660 | 01-01-42 | 1952 | from 1.5 to 2 | 334,000 |
| Street Dept. Warehouse & Equip. | 4992 | 5035 | 01-01-46 | 1956 | from 1 to 1.10 | 50,000 |

## TRAFFIC SIGNAL

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Traffic Signal 1930 | 3652 | 3732 | 05-15-30 | 1954 | from 4.5 to 4.75 | $ 40,000 |
| Traffic Signal 1942 | 4637 | 4654 | 01-01-42 | 1952 | from 1.5 to 2 | 65,000 |
| Traffic Signal 1946 | 4992 | 5031 | 01-01-46 | 1951 | from 7/8 of 1 to 1 | 43,000 |
| Traffic Signal A 1952 | 6304 | 6398 | 07-01-52 | 1963 | from 2 to 2.25 | 100,000 |
| Traffic Signal B 1953 | 6304 | 6693 | 10-01-53 | 1965 | 2.75 | 116,000 |
| Traffic Signal 1956 | 7572 | 7687 | 04-01-56 | 1962 | 1.625 | 150,000 |
| Traffic Signal A 1957 | 8003 | 8052 | 04-01-57 | 1960 | 2 | 50,000 |
| Traffic Signal B 1958 | 8003 | 8394 | 04-01-58 | 1963 | 1.5 | 50,000 |
| Traffic Signal C 1958 | 8003 | 8479 | 08-01-58 | 1963 | 2 | 100,000 |
| Traffic Signal D 1960 | 8003 | 8982 & 9002 | 08-01-60 | 1963 | 2.5 | 50,000 |
| Traffic Signal A 1961 | 9183 | 9278 & 9288 | 11-01-61 | 1972 | 3 | 200,000 |
| Traffic Signal B 1962 | 9183 | 9445 | 08-01-62 | 1973 | from 2.5 to 3 | 200,000 |
| Traffic Control 1976 | 13527 | 13573 | 05-01-76 | 1979 | from 3.8 to 4.1 | 802,000 |

## WATER

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Water Supply Survey | 2139 | 2146 | 07-01-21 | 1946 | 5.5 | $ 25,000 |
| Waterworks 1921 | 2139 | 2149 | 07-01-21 | 1946 | 5.5 | 200,000 |
| Waterworks 1922 | 2206 | 2227& 2534 | 02-01-22 | 1947 | from 5 to 5.5 | 6,800,000 |
| Waterworks 1924 | 2668 | 2679& 2779 | 08-01-24 | 1949 | 5 | 700,000 |
| Waterworks 1925 | 2808 | 2834 | 05-15-25 | 1950 | from 4.5 to 5 | 500,000 |
| Waterworks 1935 | 4055 | 4066 | 01-01-35 | 1948 | from 4.75 to 5 | 25,000 |
| Waterworks 1942 | 4637 | 4651 | 01-01-42 | 1962 | from 1.75 to 2.25 | 916,000 |
| Carbondale Water 1926 | | | 04-06-26 | 1946 | 6 | 35,000 |
| Red Fork Waterworks 1917 | | Red Fork 37 | 06-01-17 | 1937 | 6 | 20,000 |
| Red Fork Waterworks Ext. 1921 | | Red Fork 61 | 09-13-21 | 1941 | 6 | 19,000 |
| Red Fork Water 1925 | | Red Fork 76 | 04-07-25 | 1950 | 6 | 50,000 |
| Waterworks Imp. 1946 | 4992 | 5029 | 01-01-46 | 1966 | from 1.10 to 3 | 3,000,000 |
| Waterworks Imp. A 1948 | 5408 | 5500 | 07-01-48 | 1973 | from 1.5 to 4 | 5,250,000 |
| Waterworks Imp. B 1949 | 5408 | 5696 | 07-01-49 | 1974 | from 2 to 4 | 5,750,000 |
| Waterworks Imp. C 1950 | 5408 | 5947 | 07-01-50 | 1975 | from 1.75 to 3.5 | 4,750,000 |
| Waterworks A 1952 | 6304 | 6393 | 07-01-52 | 1977 | from 2 to 2.25 | 2,000,000 |
| Waterworks B 1953 | 6304 | 6689 | 10-01-53 | 1978 | from 2.75 to 3 | 1,900,000 |
| Waterworks C 1954 | 6304 | 7026 | 10-01-54 | 1976 | from 1.5 to 4 | 1,400,000 |
| Waterworks D 1955 | 6304 | 7136 | 01-01-55 | 1980 | from .25 to 4 | 2,300,000 |
| Water A 1956 | 7572 | 7684 | 04-01-56 | 1981 | from .10 to 4 | 3,000,000 |
| Water B 1956 | 7572 | 7836 | 07-01-56 | 1981 | from 2.6 to 4 | 2,500,000 |

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| Water C 1957 | 7572 | 8053 | 04-01-57 | 1982 | from 3.25 to 4 | 1,500,000 |
| Water D 1958 | 7572 | 8478 | 08-01-58 | 1983 | from 2.75 to 3 | 500,000 |
| Water E 1959 | 7572 | 8666 | 07-01-59 | 1984 | from 3.25 to 4 | 500,000 |
| Water A 1962 | 9451 | 9495 | 10-01-62 | 1987 | from .10 to 4 | 2,800,000 |
| Water B 1962 | 9451 | 9498 | 10-01-62 | 1967 | 2.5 | 120,000 |

## WATER PORT BONDS

| *Bond Issue* | *Ord. Calling Election* | *Ord. Issuing Bonds* | *Date of Issuance* | *Maturity* | *Interest Rate (Percent)* | *Amount* |
|---|---|---|---|---|---|---|
| W.P.B. 1965 | 10213 | 10268 | 11-01-65 | 1990 | from 3.2 to 4.75 | $ 2,500,000 |
| W.P.B. A 1967 | 10865 | 10937 & 10955 | 05-01-67 | 1997 | from 3 to 5 | 5,200,000 |
| W.P.B. B 1968 | 10865 | 11132 | 07-01-68 | 1997 | from 4.6 to 5 | 7,000,000 |
| W.P.B. C 1970 | 10865 | 11680 | 04-01-70 | 1980 | from 5.3 to 6 | 5,300,000 |

## APPENDIX B CITY OFFICIALS

One (1) year terms to April 1907; two-year terms April 1907 to May 1909; Charter City one-year terms started May 1909, two-year terms started first Tuesday in May 1910; and Amended Charter, starting May 1990, Mayor four-year term; City Auditor and Councilors two-year terms.

(Note: For elected officials, D shows Democrat and R shows Republican.)

### MAYORS

| | |
|---|---|
| E. Calkins | 1898-1899 |
| R.N. Bynum | 1899-1900 |
| L.M. Poe | 1900-1901 |
| G.D. Blakey | 1901-1903 |
| G.W. Mowbray, Sr. | 1903-1904 |
| H.R. Cline | 1904-1905 |
| Dr. C.L. Reeder | 1905-1906 |
| John O. Mitchell | 1906-1907 |
| W.E. Rhode | 1907-1909D |
| John O. Mitchell | 1909-1910D |
| L.J. Martin | 1910-1912D |
| F.M. Wooden | 1912-1916D(1) |
| J.H. Simmons | 1916-1918R |
| C.H. Hubbard | 1918-1920D |
| T.D. Evans | 1920-1922R |
| H.F. Newblock | 1922-1928D |
| Dan W. Patton | 1928-1930R |
| George L. Watkins | 1930-1932D |
| H.F. Newblock | 1932-1934D |
| Dr. T.A. Penney | 1934-1940D |
| C.H. Veale | 1940-1944D |
| Olney F. Flynn | 1944-1946R |
| Lee Price | 1946-1948R |
| Roy M. Lundy | 1948-1950D |
| George H. Stoner | 1950-1952R |
| C.M. Warren | 1952-1954R |
| L.C. Clark | 1954-1956R |
| George E. Norvell | 1956-1958D |
| James L. Maxwell | 1958-1966D |
| James M. Hewgley, Jr. | 1966-1970R |
| Robert J. LaFortune | 1970-1978R |
| James M. Inhofe | 1978-1984R |
| Terry Young | 1984-1986D |
| Dick Crawford | 1986-1988R |
| Rodger A. Randle (Resigned 7/13/92) | 1988-1992D |

| | |
|---|---|
| M. Susan Savage (Served as Mayor Pro Tem; elected 8/25/92 to fill Randle's unexpired term) | 1992-2002D |
| Bill LaFortune | 2002-2006R |
| Kathy Taylor | 2006-2009D |
| Dewey Bartlett, Jr. | 2009-R |

## RECORDERS

| | |
|---|---|
| J.H. McAllester | 1899-1900 |
| H.C. Davis | 1900-2/1901 |
| L.M. Lindsey | 1901-4/1901 |
| J.H. McBirney | 1901-1902 |
| F.F. Bowlin | 1902-1903 |
| E.L. Roop | 1903-1905 |
| N.J. Gubser | 1905-1906 |
| W.D. Abbott | 1906-1907 |
| O.P. Jones | 1907-1908 |

## CLERKS

| | |
|---|---|
| E. B. Cline | 1908-1909 |
| Ronald L. Payne | 1990-1993 |
| Michael P. Kier | 1993- |

## AUDITORS

| | |
|---|---|
| E.B. Cline | 1909-1916D |
| Frank Newkirk | 1916-1918R |
| Charles F. Burke | 1918-1920D |
| Mary Seaman | 1920-1922R |
| Roy Garbett | 1922-1926D |
| R.J. Moore | 1926-1928D |
| F.P. Kitchen, Jr | 1928-1930R |
| Earl E. Logan | 1930-1934D |
| M.W. Davis | 1934-1944D |
| S. Maxwell Smith | 1944-1954R |
| Elizabeth Stowell Anderson | 1954-1956R |
| A. Jackson Lawrence | 1956-1960D |
| William F. Lambert | 1960-1970D |
| F.F. Campbell (Deceased 8/20/87) | 1970-1987D |
| Ron Howell (Appointed 9/18/87) | 1987-1988R |
| Philip W. Wood | 1988-2009D |
| Preston L. Doerflinger | 2009-2011R |
| Clift Richards | 2011-R |

## CITY ATTORNEYS

| | |
|---|---|
| G.C. Beidleman | 1899-1900 |
| H.J. Collins | 1900-1902 |
| E. Calkins | 1902-1903 |
| H.J. Collins | 1903-1904 |
| J.W. Pixley | 1904-1905 |
| B.F. Price | 1905-1906 |
| N. Mitchell | 1906-1907 |
| G.T. Brown | 1907-1909 |
| C.S. Walker (Resigned 3/1/10) | 1909-3/1910 |
| Phil Kates (Resigned 4/19/10) | 1910-4/1910 |
| John R. Ramsey | 1910-1915 |
| John R. Woodard | 1915-1916 |
| John B. Meserve | 1916-1918 |
| Earl Sneed | 1918-1919 |
| E.P. Marshall | 1919-1920 |
| Frank Duncan | 1920-1922 |
| I.J. Underwood | 1922-1925 |
| H.O. Bland | 1925-1928 |
| M.C. Spradling | 1928-1930 |
| Eldon J. Dick | 1930-1931 |
| R. P. Colley | 1931-1932 |
| H.O. Bland | 1932-1940 |
| E. M. Gallaher | 1940-1944 |
| Charles R. Bostick | 1944-1948 |
| R. L. Davidson, Jr. | 1948-1950 |
| A.M. Widdows | 1950-1952 |
| Harry M. Crowe, Jr. | 1952-1954 |
| T.A. Landrith, Jr. | 1954-1956 |
| Darven L. Brown | 1956-1959 |
| Charles E. Norman | 1959-1968 |
| Waldo F. Bales | 1968-1980 |
| Neal E. McNeill | 1980-1992 |
| David L. Pauling | 1992-1999 |
| Martha Rupp Carter | 2000-2004 |
| Alan L. Jackere | 2005-2006 |
| Deirdre O. Dexter | 2006-2010 |
| David E. O'Meilia | 2012- |

## CITY ENGINEERS

| | |
|---|---|
| J. Gus Patton | 1903-1907 |
| A.J. Stone | 1907- |
| T.C. Hughes | 1907-1909 |
| D.C. Fenstermacher | 1909-1910 |
| T.C. Hughes | 1910-1916 |
| H.H. Wyss | 1916-1919 |
| C.E. Griggs | 1919-1922 |
| Charles Schultz | 1922-1928 |
| B.M. Hart | 1928-1929 |
| W.R. Teis | 1929-1930 |
| Howard A. Parker | 1930-1932 |
| M.C. Shibley | 1932-1939 |
| W.R. Wooten | 1939-1944 |
| Dan W. Patton | 1944-1948 |
| Wm. R. Wooten | 1948-1965 |
| Paul W. Gulley | 1965-1972 |
| C. Harold Miller | 1973-1986 |
| Charles Hardt | 1987-1990 |

## ALDERMEN

| | |
|---|---|
| T.E. Smiley, J.M. Morrow, G.B. Perryman, C.A. Owens, W.J. Baker | 1899-1900 |
| A.T. Hodge, C.W. Kern, S.G. Kennedy, W.T. Brady, J.E. Webb. | 1900-1901 |
| C.A. Owens, V.I. Shurtliff, L. Appleby, R.N. Bynum, R.T. Epperson | 1901-1902 |
| L. Appleby, A.T. Hodge, Frank Mathewson, R.H. Patrick, W.W. Winterringer | 1902-1903 |
| R.N. Bynum, Jacob Botthoff, W.A. Cook, W.L. Reneau | 1903-1904 |
| R.E. Lynch, R.S. Waddell, Jacob Moran, L.J. Smith, J.A. Friend, J.L. Smiley, L.M. Poe, A.B. Owens | 1904-1905 |
| J.E. Piersol, Harry Hatch, C.J. Sawyer, Frank Mathewson, George Kilcoyne, V.H. Nicholson, W.H. Hendren, E.N. North | 1905-1906 |
| H.W. Randolph, H.J. Cupp, Harry Hatch, A.H. Belt, P.J. Yeager, S.DeZ. Hawley, W.N. Rumley, Frank Mathewson | 1906-1907 |
| A.H. Belt, Frank White, Joel Williams, G.N. Wright, S.Frank Jones, G.W. Foresman, C.L. Holland (Successors E.B. Howard, W.E. Chastain), J.W. Woodford (Successor A.A. Bumgarner) | 1907-1909 |

## POLICE COMMISSIONERS

| | |
|---|---|
| John A. Oliphant | 1909-1910R |
| T.E. Smiley | 1910-1912D |
| Jay Forsythe | 1912-1914D |
| Thomas J. Quinn | 1914-1916D |
| A.L. Funk | 1916-1918R |

| | |
|---|---|
| F.M. Bohn | 1918-1920D |
| J.M. Adkison | 1920-1922R |
| H.W. Kiskaddon | 1922-1926D |
| J.T. Bailey | 1926-1928D |
| Mack Shrodes | 1928-1930R |
| Thomas I. Munroe | 1930-1932D |
| A.P. Bowles | 1932-1934D |
| O.W. Hoop | 1934-1936D |
| Frank O. Brown | 1936-1938R |
| *Eddie J. Shields | 1938-1940D |
| Floyd Rheam | 1939-4/1939 |
| Russell Cobb (Cobb was reelected in 1942 and resigned in August 1942 to enter U.S. Army) | 1940-12/1942R |
| Thomas I. Munroe (Appointed) | 1942-1944R |
| Lee Price | 1944-1946R |
| Porter Smith | 1946-1948R |
| J. Fred Lawrence | 1948-1950D |
| H.R. Fowler | 1950-1952R |
| Jay L. Jones | 1952-1954D |
| John W. Henderson | 1954-1956R |
| Jay L. Jones (Resigned 6/18/57) | 1956-1957D |
| William R. Peterson (Appointed) | 1957-1958D |
| Robert L. Mawhinney | 1958-1960D |
| Bennie C. Garren | 1960-1966D |
| Larry H. Coulson | 1966-1968D |
| Brad Scheer | 1968-1972R |
| Carroll E. Griffith | 1972-1976D |
| Michael E. Kerpan | 1976-1978D |
| Jack Purdie | 1978-1980R |
| Roy Gardner (Resigned 9/14/87) | 1981-1987R |
| Robert N. Dick (Appointed 10/2/87) | 1987-1990R |

* (Shields removed by District Court and Rheam appointed January 1939 and served until April 1939 when Shields was reinstated by the Supreme Court)

## WATER COMMISSIONERS

| | |
|---|---|
| F.A. Gillespie (Resigned 7/20/09) | 1909-1909D |
| F.A. Hill (Appointed) | 1909-1910D |
| J.H. Wheatley | 1910-1912D |
| Charles W. Conneely (Resigned 12/2/12) | 1912-1912D |
| B.F. Colley (Appointed) | 1912-1914D |
| O.D. Hunt | 1914-1916D |
| C.S. Younkman | 1916-1918R |
| R.E. Curran | 1918-1920D |

| | |
|---|---|
| C.S. Younkman | 1920-1922R |
| A.J. Rudd | 1922-1926D |
| George L. Watkins | 1926-1928D |
| A. Endacott | 1928-1930R |
| R.L. Laws | 1930-1932D |
| D.L. Wheat | 1932-1934D |
| W.F. Graham | 1934-1944R |
| C.E. Braden | 1944-1948R |
| Lloyd Saunders | 1948-1950D |
| Glenver McConnell | 1950-1954R |
| John P. Thomas, Jr. | 1954-1956R |
| Patrick L. McGuire | 1956-1958D |
| Robert Leikam | 1958-1960R |
| Patrick L. McGuire | 1960-1962D |
| Ralph L. Langenheim | 1962-1969R |
| Anthony F. Keating | 1969-1974R |
| John P. Thomas, Jr. | 1974-1980R |
| Patty Eaton | 1980-1986D |
| Houston Adams | 1986-1988I |
| Charlie L. King | 1988-1990D |

## STREET COMMISSIONERS

| | |
|---|---|
| W.H. Hendren | 1909-1910D |
| J.A. Yearger | 1910-1912D |
| C.M. Downing | 1912-1916D |
| A.D. Walker (Resigned 9/28/17) | 1916-1917R |
| C.H. Noble (Appointed) | 1917-1918R |
| M.J. McNulty, Jr. | 1918-1920D |
| O.A. Steiner | 1920-1922R |
| J.M. Crutchfield | 1922-1928D |
| Frank O. Brown | 1928-1930R |
| Ben O. Angel | 1930-1932D |
| W.L. Moody | 1932-1934D |
| Ben O. Angel | 1934-1938D |
| S.R. Smith | 1938-1944D |
| George H. Stoner | 1944-1950R |
| Dean Foster (Deceased 1-10-53) | 1950-1953R |
| Sidney W. Patterson (Appointed) | 1953-1956R |
| Guy Hall, Jr. | 1956-1964D |
| Robert J. LaFortune | 1964-1970R |
| Joseph R. Coleman | 1970-1972R |
| Sidney W. Patterson | 1972-1976R |
| Robert A. Franden | 1976-1978D |

| | |
|---|---|
| J.M. Hewgley III | 1978-1984R |
| J.D. Metcalfe | 1984-1990D |

## FINANCE AND REVENUE COMMISSIONERS

| | |
|---|---|
| C.B. Lynch | 1909-1910D |
| F.M. Wooden | 1910-1912D |
| J.B. Wilson | 1912-1914D |
| Carl Gregg | 1914-1916D |
| A.W. Brink | 1916-1918R |
| H.F. Newblock | 1918-1922D |
| J.C. Whiteside | 1922-1928D |
| Arthur Baker | 1928-1930R |
| D.H. Pratt | 1930-1934D |
| Earl E. Logan | 1934-1938D |
| D.H. Pratt | 1938-1944D |
| John M. Hall | 1944-1948R |
| Fay Young | 1948-1952D |
| W.W. Jenkins | 1952-1954R |
| Chas. B. Clothier | 1954-1956R |
| Fay Young | 1956-1964D |
| Fay Kee | 1964-1968R |
| John L. O'Brien (Resigned 8/20/71) | 1968-8/71R |
| William H. Morris (Appointed 9/3/71) | 1971-1976R |
| Norma Eagleton (Resigned 2/5/79) | 1976-1979D |
| Ronald L. Young (Appointed 2/6/79, Resigned 11/30/83) | 1979-1983R |
| Walter B. Hall (Appointed 12/13/83, Deceased 1/13/86) | 1983-1986R |
| Gary L. Watts (Appointed 1/31/86) | 1986-1990D |

## CITY COUNCIL

The City Council form of government was voted in by a majority vote of the people in a general election on February 14, 1989. The amended Charter was approved by Governor Henry Bellmon on March 7, 1989, filed with the Oklahoma Secretary of State on March 8, 1989, and took effect May 8, 1990, except for Article VI, pertaining to elections, which took effect January 2, 1990.

The following City Councilors were voted in by a majority vote of the people in a general election on April 3, 1990, with an effective date of May 8, 1990:

| NAME | DISTRICT |
|---|---|
| B.S. Roberts | District 1D |
| Darla Hall | District 2D |
| Dorothy M. DeWitty | District 3D |
| Gary Watts | District 4D |
| Robert Nelson | District 5R |

| NAME | DISTRICT |
|---|---|
| James A. Hogue, Sr. | District 6D |
| John D. Benjamin | District 7R |
| Richard Polishuk | District 8D |
| Dewey F. Bartlett, Jr. | District 9R |

The following City Councilors were voted in by a majority vote of the people in a general election on March 3, 1992, with an effective date of April 6, 1992:

| NAME | DISTRICT |
|---|---|
| B.S. Roberts | District 1D |
| Darla D. Hall | District 2D |
| *Mike Patrick (Deceased 4/5/93) | District 3D |
| *Darrell Gilbert | District 3D |
| Gary L. Watts | District 4D |
| Robert Nelson | District 5R |
| James A. Hogue, Sr. | District 6D |
| John D. Benjamin | District 7R |
| Vickie Lee Cleveland | District 8R |
| Dewey F. Bartlett, Jr. | District 9R |

*Darrell Gilbert was appointed by a vote of the Council and sworn in on May 4, 1993, to serve as District 3 Councilor after the death of Councilor Patrick.

The following City Councilors were voted in by a majority vote of the people in a general election on March 1, 1994, with an effective date of April 4, 1994:

| NAME | DISTRICT |
|---|---|
| Joe Williams | District 1D |
| Darla D. Hall | District 2D |
| Darrell Gilbert | District 3D |
| Gary L. Watts | District 4D |
| *Robert G. Nelson (Deceased 10/31/94) | District 5R |
| *Melvin C. Rice | District 5R |
| **James A. Hogue, Sr. (Resigned 1/9/95) | District 6D/R |
| **Art Justis | District 6D |
| John D. Benjamin | District 7R |
| Vickie L. Cleveland | District 8R |
| Robert Gardner | District 9R |

*A special election was held January 10, 1995, at which time Melvin C. Rice was elected, and sworn in on January 17, 1995, to serve as District 5 Councilor after the death of Councilor Nelson.

**A special election was held February 14, 1995, at which time Art Justis was elected, and sworn in on February 21, 1995, to serve as District 6 Councilor after the resignation of James A. Hogue, Sr.

The following City Councilors were voted in by a majority vote of the people in a general election on March 12, 1996, with an effective date of April 1, 1996:

| NAME | DISTRICT |
|---|---|
| Joe Williams | District 1D |
| Darla Hall | District 2D |
| David Patrick | District 3D |
| Gary Watts | District 4D |
| Sam Roop | District 5R |
| Art Justis | District 6D |
| Terry Doverspike | District 7R |
| Vickie L. Cleveland | District 8D |
| Robert Gardner | District 9R |

The following City Councilors were voted in by a majority vote of the people in a general election on March 10, 1998, with an effective date of April 4, 1998:

| NAME | DISTRICT |
|---|---|
| Joe Williams | District 1D |
| Darla Hall | District 2D |
| *David Patrick (Resigned 8/15/98) | District 3D |
| *Roscoe H. Turner | District 3D |
| Anna Falling | District 4R |
| Sam Roop | District 5R |
| Art Justis | District 6D |
| Terry Doverspike | District 7R |
| Vickie Cleveland | District 8D |
| Richard Braden Pringle, Jr. | District 9R |

*A special election was held November 3, 1998, at which time Roscoe H. Turner was elected, and sworn in on November 12, 1998, to serve as District 3 Councilor after the resignation of David Patrick.

The following City Councilors were voted in by a majority vote of the people in a general election on March 14, 2000, with an effective date of April 3, 2000:

| NAME | DISTRICT |
|---|---|
| Joe Williams | District 1D |
| Randi Miller | District 2R |
| Roscoe H. Turner | District 3D |
| Gary Watts | District 4D |
| Sam Roop | District 5R |
| Art Justis | District 6D |
| Clay Bird | District 7R |
| Todd Huston | District 8R |

| NAME | DISTRICT |
|---|---|
| R. Braden Pringle, Jr. | District 9R |

The following City Councilors were voted in by a majority vote of the people in a general election on March 12, 2002, with an effective date of April 1, 2002:

| NAME | DISTRICT |
|---|---|
| Joe Williams | District 1D |
| *Randi Miller (Resigned 11/15/02) | District 2R |
| *Chris Scott Medlock | District 2R |
| David Patrick | District 3D |
| Tom Baker | District 4D |
| Sam Roop | District 5R |
| Art Justis | District 6D |
| Randall Lynn Sullivan | District 7R |
| William L. Christiansen | District 8R |
| Susan Neal | District 9R |

*A special election was held February 11, 2003, at which time Chris Scott Medlock was elected, and sworn in on February 18, 2003, to serve as District 2 Councilor after the resignation of Randi Miller.

The following City Councilors were voted in by a majority vote of the people in a general election on March 9, 2004, with an effective date of April 5, 2004:

| NAME | DISTRICT |
|---|---|
| Jack R. Henderson | District 1D |
| Christopher S. Medlock | District 2R |
| *David Patrick | District 3D |
| *Roscoe H. Turner | District 3D |
| Tom Baker | District 4D |
| **Sam Roop (Resigned 2/18/05) | District 5R |
| **William Edward Martinson, Jr. | District 5R |
| James S. Mautino, Sr. | District 6R |
| Randall Lynn Sullivan | District 7R |
| William Christiansen | District 8R |
| Susan Neal | District 9R |

*Mr. Roscoe Turner, the Democratic opponent of David Patrick in the primary election, lost the primary election by four votes, and following a recount. There were no Republican candidates for District 3 and Republican voters in that district had been given ballots for the Democratic candidates. A Writ of Mandamus was issued to Judge Thomas Gillert and an evidentiary hearing was held March 12, 2004. Mr. Turner was able to sustain his burden of proof for a new election. A special election was held March 18, 2004, at which time Roscoe H. Turner was elected. He was sworn in on April 13, 2004, to serve as District 3 Councilor.

**A special election was held May 10, 2005, at which time William Edward Martinson, Jr., was elected, and sworn in on May 17, 2005, to serve as District 5 Councilor after the resignation of Sam Roop.

The following City Councilors were voted in by a majority vote of the people in a general election on April 4, 2006, with an effective date of April 10, 2006:

| NAME | DISTRICT |
|---|---|
| Jack R. Henderson | District 1D |
| Rick D. Wescott | District 2R |
| Roscoe H. Turner | District 3D |
| Maria Barnes | District 4D |
| *William Edward Martinson, Jr. | District 5R |
| Dennis K. Troyer | District 6D |
| John M. Eagleton | District 7R |
| William L. Christiansen | District 8R |
| Cason Carter | District 9R |

*The Tulsa County Election Board issued the Official Certificate of Votes for Council District 5 on May 26, 2006, following resolution of the protest contesting the election and the election results in District 5 filed by Jon Kirby. William Edward Martinson, Jr., was sworn in on June 13, 2006, to serve as District 5 Councilor.

The following City Councilors were voted in by a majority vote of the people in a general election on April 1, 2008, with an effective date of April 7, 2008:

| NAME | DISTRICT |
|---|---|
| Jack R. Henderson | District 1D |
| Rick D. Westcott | District 2R |
| David Patrick | District 3I |
| Eric Gomez | District 4R |
| William Edward Martinson, Jr. | District 5R |
| Dennis Troyer | District 6D |
| John M. Eagleton | District 7R |
| William Christiansen | District 8R |
| G. T. Bynum | District 9R |

The following City Councilors were voted in by a majority vote of the people in a general election on November 10, 2009, with an effective date of December 7, 2009:

| NAME | DISTRICT |
|---|---|
| Jack R. Henderson | District 1D |
| Rick D. Westcott | District 2R |
| Roscoe Turner | District 3D |
| Maria Barnes | District 4D |
| Chris Trail | District 5R |
| Jim Mautino | District 6R |

| NAME | DISTRICT |
|---|---|
| John M. Eagleton | District 7R |
| William Christiansen | District 8R |
| G. T. Bynum | District 9R |

The following City Councilors were voted in by a majority of the people in a general election on November 8, 2011, with an effective date of December 5, 2011:

| NAME | DISTRICT |
|---|---|
| Jack R. Henderson | District 1D |
| Jeannie Cue | District 2R |
| David E. Patrick | District 3D |
| Blake Ewing | District 4R |
| Karen Gilbert | District 5R |
| Byron W. Steele, III | District 6R |
| Thomas D. Mansur | District 7R |
| Phillip L. Lakin, Jr. | District 8R |
| G. T. Bynum | District 9D |

On November 10, 2009 the Charter of the City of Tulsa was amended to provide that City Councilors will serve for three-year terms, which shall be staggered so that no more than three council districts will have an election in any one year. The following City Councilors were voted in by a majority of the people in a general election on November 6, 2012, with an effective date of December 3, 2012:

| NAME | DISTRICT |
|---|---|
| Jack R. Henderson | District 1D |
| Blake Ewing | District 4R |
| Arianna R. Moore | District 7R |

## APPENDIX C INCORPORATION OF TULSA

January 18, 1898 - Town of Tulsa, Indian Territory, incorporated by decree of the United States Court for the Northern District of Indian Territory, sitting at Vinita.

Original townsite plat, containing 1440 acres, filed December 16, 1897.

Said plat and court proceedings are now on file in the office of the clerk of the United States Court for the Eastern District of Oklahoma, at Muskogee. The government survey of the Original Town of Tulsa made by J. Gus Patton was approved April 11, 1902.

July 28, 1903 - City of Second Class. (See Vol. No. 2 Record of Ordinances) U.S. Court, Western District, Muskogee, No. 4921 based on Resolution 5-11-03.

December 27, 1907 - City of First Class by proclamation of Governor. (See Vol. 5, Pg. 210, Record of Proceedings.)

July 3, 1908 - Charter adopted.

January 5, 1909 - Charter approved by Governor C.N. Haskell.

## POPULATION

| | | |
|---|---|---|
| 1900 | - | 1,390 U.S. Census |
| 1903 | - | 2,884 Local Canvass for City Second Class |
| 1910 | - | 18,182 U.S. Census |
| 1915 | - | 28,240 U.S. Census Special |
| 1917 | - | 68,938 U.S. Census July 1 (based on Draft Army Registration) |
| 1920 | - | 72,075 U.S. Census |
| 1930 | - | 141,258 U.S. Census |
| 1940 | - | 141,750 U.S. Census |
| 1950 | - | 182,740 U.S. Census |
| 1960 | - | 261,685 U.S. Census |
| 1970 | - | 331,638 U.S. Census |
| 1980 | - | 360,919 U.S. Census |
| 1989 | - | 373,644 |
| 1990 | - | 367,302 U.S. Census |
| 2000 | - | 393,049 U.S. Census |
| 2010 | - | 391,906 U.S. Census |

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# CODE COMPARATIVE TABLE

This is a chronological listing of the ordinances of Tulsa, Oklahoma, beginning with the 2010 Republication.

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 21836 | 6-26-2008 | An ordinance amending Title 2, Chapter 1, Section 113, Tulsa Revised Ordinances, entitled "Animals," providing a definition for "outside agency"; banning animal euthanasia services to nonresidents and outside agencies unless authorized by the mayor or mayor pro tem; providing a fee for said services if authorized; repealing all ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 2 | 113 |
| 21842 | 6-26-2008 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, Chapter 7, Sections 702, 703 and 708, to specify certain sewer rates that shall be applicable to users inside and outside of the city, wholesale users and to property owned by the City of Tulsa; specifying sewer rates for users who are not also water customers; specifying rates for dumping or discharging septic waste; establishing October 1, 2008, as to when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 702, 703 |
| | | | 2 | Tit. 11-C | 708 |
| 21843 | 6-26-2008 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, Chapter 3, Sections 302, 303, 306, and 307, to specify certain water rates that shall be applicable to users inside and outside of the city and to property owned by the City of Tulsa; establishing October 1, 2008, as to when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 302, 303 |
| | | | 2 | Tit. 11-C | 306, 307 |
| 21856 | 7-17-2008 | An ordinance amending Title 2, Chapter 1, Subsection 101.A, Tulsa Revised Ordinances, to provide for designation of off-leash park areas in which dogs would be permitted to not be under leash; and declaring an emergency | 1 | Tit. 2 | 101.A. |
| 21857 | 7-17-2008 | An ordinance amending Title 11-A Tulsa Revised Ordinances, Section 202; increasing the monthly stormwater drainage system service charge and establishing October 1, 2008, as to when such increased rates shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-A | 202 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 21878 | 8-28-2008 | An ordinance creating a new Title 43-G, Tulsa Revised Ordinances, establishing the official policy of the City of Tulsa, Oklahoma, with regard to the expenditure of all monies received from extending the temporary sales tax levy of one percent (1%) for the period of time from and including August 1, 2006, to and including June 30, 2014; and the temporary increase of the sales tax levy from three percent (3%) to three and two-twelfths percent (3 2/12%), for the period of time from and including October 1, 2011, to and including June 30, 2014; listing projects and purposes which will be accomplished from said revenues; creating a special sales tax overview committee 2008 temporary tax and appointing members thereof; specifying powers and duties of said committee and officers and employees of the City of Tulsa, Oklahoma; establishing a special revenue fund known as the special temporary sales tax fund 2008, wherein all revenues received from said temporary sales tax levy, together with interest earned thereon, shall be deposited; prohibiting the expenditure of any of said funds for any purpose other than the projects and purposes set forth herein; prescribing certain mandatory duties of the secretary of the council and the council of said city; providing for public notice and hearings upon any proposal to amend or repeal the ordinance; and declaring an emergency | 1 Added | Tit. 43-G | 100—103 |
| 21879 | 8-28-2008 | An ordinance amending the sales tax ordinance of the City of Tulsa, Oklahoma, Title 43 of the Tulsa Revised Ordinances, by amending Title 43, Chapter 1, Section 100, of the Tulsa Revised Ordinances which amendment extends the temporary sales tax levy of one percent (1%) for a period of time from and including August 1, 2006, to and including June 30, 2014; and temporarily increases the sales tax levy from three percent (3%) to three and two-twelfths percent (3 2/12%) from and including October 1, 2011, to and including June 30, 2014; which temporary sales tax levies shall be upon the gross proceeds or gross receipts derived from all sales to any person taxable under the sales tax law of Oklahoma; by amending Title 43, Chapter 1, Section 100, of the Tulsa Revised Ordinances, to become operative on and after July 1, 2014, reducing at that time the levy and assessment of said excise tax from three and twenty-two-twelfths percent (3 2/12%) to two percent (2%) upon said sales; by amending Title 43, Chapter 1, Section 118, of the Tulsa Revised Ordinances, changing the percentages and purposes of expenditures from said revenues collected hereunder; by amending Title 43, Chapter 1, Section 118, of the Tulsa Revised Ordinances, to become operative on and after July 1, 2014, changing at that time the percentages and purposes of expenditures from said revenues collected hereunder; by amending Title 43, Chapter 1, Section 120, of the Tulsa Revised Ordinances, reducing the levy and assessment of said excise tax from three and two-twelfths percent (3 2/12%) to two percent (2%) upon said sales no later than July 1, 2014, unless extended by a majority of the registered voters of the City of Tulsa, Oklahoma, voting on the same; declaring an emergency; and providing for effective and operative dates of this ordinance, all subject to the approval of a majority of registered voters as prescribed by the laws of the State of Oklahoma | 1 | Tit. 43 | 100 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| | | | 2 | Tit. 43 | 100 |
| | | | 3 | Tit. 43 | 100 |
| | | | 4 | Tit. 43 | 118 |
| | | | 5 | Tit. 43 | 118 |
| | | | 6 | Tit. 43 | 120 |
| 21899 | 7-31-2008 | An ordinance creating a new Chapter 9, in Title 5 of the Tulsa Revised Ordinances, establishing the transportation advisory board; establishing Section 900, relating to the duties of the board; establishing Section 901, relating to membership of the board; establishing Section 902, relating to the creation of offices on the board and the conduct of meetings; establishing Section 903, relating to directing personnel to assist the board; repealing conflicting ordinances; and declaring an emergency | 1 Added | Tit. 5 | 900—903 |
| 21900 | 7-31-2008 | An ordinance amending Title 4, Tulsa Revised Ordinances, Section 308, "Charter Review," to change when the city attorney shall provide a schedule to the council for soliciting and considering proposed amendments to the amended Charter of the City of Tulsa from March 15 of odd-numbered years to October 15 of even-numbered years and to change when the council shall file any adopted schedule with the city clerk from April 15 of odd-numbered years to November 15 of even-numbered years; and declaring an emergency | 1 | Tit. 4 | 308 |
| 21913 | 10-9-2008 | An ordinance amending Title 22, Chapter 3, of the City of Tulsa Revised Ordinances by adding a new Section 301 to provide for a temporary rebate system for residents of the City of Tulsa; and providing for effective and operative dates of this ordinance | 1 Added | Tit. 22 | 301 |
| 21932 | 10-23-2008 | An ordinance amending Title 7, entitled "Cemeteries," Tulsa Revised Ordinances, by adding thereto Chapter 2, entitled "Unclaimed Bodies"; providing procedures upon certain deaths; providing for a rotation schedule among participating funeral establishments for bodies with no placement instructions; providing for selection of alternate funeral establishment in event of inability of scheduled funeral establishment to act; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency | 1 Added | Tit. 7 | 200, 201 |
| 21935 | 10-30-2008 | An ordinance amending Title 23, Tulsa Revised Ordinances, Chapter 1, Subsection 108.A, relating to schedule of costs, penalties and assessments, to increase certain costs in the schedule of municipal court costs; amending Subsection 108.C, to increase the automated fingerprinting identification system (AFIS) penalty assessment from three dollars ($3.00) to five dollars ($5.00); amending Section 110, to provide the amount of the monthly probation fee to be as referenced in Section 108 ("schedule of costs, penalties and assessments"); repealing all ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 23 | 108.A. |
| | | | 2 | Tit. 23 | 108.C. |
| | | | 3 | Tit. 23 | 110 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 21954 | 12-4-2008 | An ordinance amending and correcting Ordinance No. 21596, passed and approved by the Council of the City of Tulsa, Oklahoma, on the 2nd day of August, 2007, and approved by the mayor pro-tem, on the 15th day of August, 2007, which contained a scrivener's error in amending Title 24, Section 106, which incorrectly referenced said section number as Section 107; repealing all ordinances or parts of ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 24 | 106 |
| 21971 | 12-11-2008 | An ordinance amending Title 28 entitled "The Municipal Employees' Retirement Plan," Tulsa Revised Ordinances, amending Section 704 to provide for incorporating Internal Revenue Code Section 401(a)(9); amending Subsection 708.d to provide for trustee to trustee transfer of after-tax contributions; adding a new Section 709 to provide for a plan distribution to be made to the individual retirement account of a non-spouse beneficiary; amending Section 900 to provide for incorporating the Internal Revenue Code Section 415; deleting Section 901 and 902; providing for an operative date of January 1, 2008; providing for severability; and repealing all ordinances or parts of ordinances in conflict herewith | 1 | Tit. 28 | 704 |
| | | | 2 | Tit. 28 | 708.D. |
| | | | 3 Added | Tit. 28 | 709 |
| | | | 4 | Tit. 28 | 900 |
| 21975 | 12-18-2008 | An ordinance amending Title 27, Chapter 8, Tulsa Revised Ordinances, renaming Chapter 8 as "Gambling"; amending penalty portions of Section 800 entitled "Betting on or Playing Prohibited Game," and Section 801 entitled "Permitting Gambling Game"; repealing Sections 802, 803, 804, 805, 806, 807, 808, and 810; creating a new Section 802 entitled "Betting on Races" and providing penalties; renumbering existing Section 809 entitled "Paraphernalia—Procedure upon Confiscation" as Section 803; providing for severability; repealing all ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 27 | Ch. 8(tit.) |
| | | | 2 | Tit. 27 | 800 |
| | | | 3 | Tit. 27 | 801 |
| | | | 4 Rpld | Tit. 27 | 802—808, 810 |
| | | | 5 Added | Tit. 27 | 802 |
| | | | 6 Rnbd | Tit. 27 | 809 |
| | | | as | Tit. 27 | 803 |
| 21979 | 12-18-2008 | An ordinance amending Title 2, Tulsa Revised Ordinances, providing definitions for large animal, small animal, the working in neighborhoods department (WIN), animal welfare authority, and animal welfare officer; designating win rather than the chief of police as an entity with certain authority, duties, functions, and responsibilities regarding animals; increasing license fees; increasing fees and deposit associated with reclaiming, adopting, or sterilizing an animal; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency | 1 | Tit. 2 | 100—118, 200—204, 300—305, 400—407, 500—506, 600—607, 700—706, 800 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 21981 | 12-18-2008 | An ordinance amending Title 37, Tulsa Revised Ordinances, related to the regulation of traffic; amending Chapter 2, Subsection 203.E, increasing the amount of preset fines and penalties to be paid by persons convicted of violations of certain traffic ordinances of the City of Tulsa; adding certain new offenses to the list of violations and establishing preset fines for said offenses; repealing ordinances in conflict with this ordinance; providing for severability; and declaring an emergency | 1 | Tit. 37 | 203.E. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 21982 | 12-18-2008 | An ordinance amending Title 37, Tulsa Revised Ordinances, Chapter 1, Section 100 to add definitions of "intoxicating beverages," "low-point beer," and "motorized scooter," and amend the definitions of "bicycle" and "motor vehicle;" amending Title 37, Chapter 3, Subsection 316.B to clarify certain language relating to disposition and records of traffic citations; amending Title 37, Chapter 4, Section 400 to clarify certain language; amending Title 37, Chapter 4, Subsection 402.A to make it unlawful and an offense for any person to add to, delete from, alter or deface the required information on a driver license or identification card; amending Title 37, Chapter 4, Section 406 to provide that any person charged with violating this section who produces a driver license issued to him or her and valid at the time of his or her arrest shall be entitled to a dismissal without costs and fine; amending Title 37, Chapter 4, Subsection 409.D to clarify certain language relating to license plates on vehicles; amending Title 37, Chapter 4, Subsection 409.E to increase the maximum fine for a violation of Section 409; amending Title 37, Chapter 4, Section 411 to increase, unless other wise provided for in Chapter 4, the maximum fine for a violation of Chapter 4; amending Title 37, Chapter 4, Subsection 412.A to add language making it unlawful for a person to possess more than one valid driver's license at any time and to amend certain other language; amending Title 37, Chapter 5, Section 525 relating to disabled persons parking to clarify certain language and increase the penalty provision; amending Title 37, Chapter 6, Subsection 617.c to increase the maximum fine for a violation of aggravated speeding; amending Title 37, Chapter 6, Section 645 to add a subsection "D" providing that no officer shall issue a citation under that section unless the operator is involved in an accident or collision; amending Title 37, Chapter 6, Section 647 to increase the minimum fine for a violation of that section; amending Title 37, Chapter 6, Section 648 to provide for a minimum fine and increase the maximum fine for a violation of eluding a police officer; amending Title 37, Chapter 6, Subsection 649.A to add certain language to clarify the offense; amending Title 37, Chapter 6, Section 655 to provide, unless other wise provided for in Chapter 6, an increase in the maximum fine for a violation thereof; amending Title 37, Chapter 6, Section 657 entitled "transporting an open container of alcohol" to amend the language and increase the maximum fine for a violation thereof; amending Title 37, Chapter 6, Section 658 entitled "transporting an open container of low-point beer" to amend the language and increase the maximum fine for a violation thereof and provide for imprisonment in the city jail for said offense; amending Title 37, Chapter 6, to add a new Section 664 entitled "traffic signal preemption device-possession, use, interference with, or sale;" amending Title 37, Chapter 6, to add a new Section 665 entitled "driver of a motor vehicle approaching a stationary emergency vehicle;" amending Title 37, Chapter 7, | | | |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| | | Section 700 to provide for a minimum fine and increase the maximum fine and add a subsection b to provide for a dismissal of charge under Section 700 upon certain conditions; amending Title 37, Chapter 7, Subsection 703.C relating to head lamps on motor vehicles; amending Title 37, Chapter 7, Subsection 707.B relating to tail lamps on vehicles; amending Title 37, Chapter 7, Subsection 712.B relating to special restrictions on lamps; amending Title 37, Chapter 7, Section 722 relating to mirrors on vehicles; amending Title 37, Chapter 7, Section 739 to provide for a minimum fine for a violation of Chapter 7 and increase the maximum fine for a violation of the provisions of Chapter 7 unless otherwise provided; amending Title 37, Chapter 8, Section 805 to increase the maximum fine for a violation of the provisions of Chapter 8 unless otherwise provided; amending Title 37, Chapter 8, by adding a new Section 806 entitled "removal of vehicle or its cargo from roadway obstructing the regular flow of traffic;" amending Title 37, Chapter 10, Sections 1000, 1001, 1002, 1004, 1005, 1007,1008, 1009, 1012 & 1013 to make the provision applicable to motorized scooters; amending Title 37, Chapter 10, Section 1003 to clarify the language applicable to bicycles or motorized scooters riding on the right side; amending Title 37, Chapter 10, Section 1006 to clarify the language applicable to bicycles or motorized scooters and place restrictions of riding abreast; amending Title 37, Chapter 10, Section 1011 relating to brakes on bicycles; amending Title 37, Chapter 10, to add a new Section 1014 entitled "applicability to emergency services personnel;" amending Title 37, Chapter 11, Section 1108 to provide a minimum fine and increase the maximum fine for a violation of Chapter 11 unless otherwise provided; amending Title 37, Chapter 12, Section 1200 to add a subsection "C" relating to "obstructions;" providing for a severability clause; repealing all ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 37 | 100 |
| | | | 2 | Tit. 37 | 316.B. |
| | | | 3 | Tit. 37 | 400 |
| | | | 4 | Tit. 37 | 402.A. |
| | | | 5 | Tit. 37 | 406 |
| | | | 6 | Tit. 37 | 409.D. |
| | | | 7 | Tit. 37 | 409.E. |
| | | | 8 | Tit. 37 | 411 |
| | | | 9 | Tit. 37 | 412.A. |
| | | | 10 | Tit. 37 | 525 |
| | | | 11 | Tit. 37 | 617.C. |
| | | | 12 | Tit. 37 | 645.D. |
| | | | 13 | Tit. 37 | 647 |
| | | | 14 | Tit. 37 | 648 |
| | | | 15 | Tit. 37 | 649.A. |
| | | | 16 | Tit. 37 | 655 |
| | | | 17 | Tit. 37 | 657 |
| | | | 18 | Tit. 37 | 658 |
| | | | 19 Added | Tit. 37 | 664 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | 20 Added | Tit. 37 | 665 |
| | | | 21 | Tit. 37 | 700 |
| | | | 22 | Tit. 37 | 703.C. |
| | | | 23 | Tit. 37 | 707.B. |
| | | | 24 | Tit. 37 | 712.B. |
| | | | 25 | Tit. 37 | 722 |
| | | | 26 | Tit. 37 | 739 |
| | | | 27 | Tit. 37 | 805 |
| | | | 28 | Tit. 37 | 806 |
| | | | 29 | Tit. 37 | 1000 |
| | | | 30 | Tit. 37 | 1001 |
| | | | 31 | Tit. 37 | 1002 |
| | | | 32 | Tit. 37 | 1003 |
| | | | 33 | Tit. 37 | 1004 |
| | | | 34 | Tit. 37 | 1005 |
| | | | 35 | Tit. 37 | 1006 |
| | | | 36 | Tit. 37 | 1007 |
| | | | 37 | Tit. 37 | 1008 |
| | | | 38 | Tit. 37 | 1009 |
| | | | 39 | Tit. 37 | 1011 |
| | | | 40 | Tit. 37 | 1012 |
| | | | 41 | Tit. 37 | 1013 |
| | | | 42 Added | Tit. 37 | 1014 |
| | | | 43 | Tit. 37 | 1108 |
| | | | 44 | Tit. 37 | 1200.C. |
| 21988 | 1-16-2009 | An ordinance amending the Tulsa Revised Ordinances by repealing Title 35, entitled "Streets and Sidewalks" and adopting a new Title 35, entitled "Infrastructure Development"; providing for permits for construction-related activities in connection with infrastructure projects on easements or rights-of-way or other property owned or controlled by the City of Tulsa; establishing an infrastructure development advisory board; providing for penalties; providing for appeals; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency | 1 Rpld | Tit. 35 | 100, 101, 200—213, 300—307, 400—410, 500—504, 600, 700—704, 800—804, 900—909 |
| | | | 2 Added | Tit. 35 | 100, 101, 200—208, 300, 400, 401, 500—506, 600, 700, 800—803, 900, 1000—1004 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 21989 | 1-16-2009 | An ordinance amending Title 49, Tulsa Revised Ordinances, entitled "Administrative, Permit and License Fees"; enacting, restating, consolidating and superseding permit, license, certificate, registration and service fees codified in titles 11, 11-A, 11-C, 14, 35, 50, 51, 52, 55, 56 and 59; relating to regulatory provisions codified in Title 11, entitled "Public Works Department," Title 11-A, entitled "Stormwater Drainage," Title 11-C, entitled "Waterworks and Sewerage," Title 14, entitled "Fire Prevention Code," Title 35, entitled "Infrastructure Development," Title 50, entitled "Annual Permits," Title 51, entitled "Building Code," Title 52, entitled "Electrical Code," Title 55, entitled "Existing Structures Code," Title 56, entitled "Plumbing Code," and Title 59, entitled "Mechanical Code"; providing for the issuance of permits, licenses, certificates, registrations and the collection of fees related to certain trades, contractors, journeymen, and apprentices; requiring the posting of certain bonds and public liability insurance; providing civil penalties for certain violations; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 49 | 100—117, 200—204, 300—329, 400—406, 500—504, 600—607, 800—806, 900—907, 1100—1102, 1200—1206, 1300—1310. 1400—1455, 1500—1502 |
| 21990 | 1-16-2009 | An ordinance amending the Plumbing Code of the City of Tulsa, Oklahoma, Title 56, Tulsa Revised Ordinances, by adopting the *ICC International Plumbing Code,* 2006 Edition, including Appendices B, C, D, E, F and G, as published by the International Code Council, Inc.; providing for and governing the design, installation, construction, fabrication, alteration, location, repair, venting, material quality standards, conversion of plumbing systems, in new and existing buildings including sanitary facilities, water supplies and distribution, stormwater and sewage disposal in buildings; providing for the administration thereof, issuance of permits, collection of fees, making of inspections; continuation of the plumbing and appeals board; requiring registration of plumbing licenses, payment of registration fees; requiring that registered license holders post insurance; providing penalties for the violation thereof; preserving and protecting existing rights and remedies; providing for severability; and declaring an emergency | 1 | Tit. 56 | 100, 101 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 21991 | 1-16-2009 | An ordinance amending the Mechanical Code of the City of Tulsa, Oklahoma, Title 59, Tulsa Revised Ordinances, entitled "Mechanical Code"; amending Title 59, Tulsa Revised Ordinances, Chapters 1, 2 and 3; adopting *"The International Mechanical Code,* 2006 Edition," as published by the International Code Council, Inc. (ICC), as the Mechanical Code of the City of Tulsa, Oklahoma; providing for and governing the design, construction, fabrication, erection, alteration, location, enlargement, equipment, repair, removal, conversion, use and maintenance of mechanical systems, including heating systems, ventilating systems, cooling systems, steam and hot water heating systems, process piping, boilers and pressure vessels, appliances utilizing gas, liquid or solid fuel, chimneys and vents, mechanical refrigeration systems, fireplaces, barbecues, incinerators, and crematories; providing for the administration, issuance and revocation or suspension of certificates of registration; providing for the issuance of permits, making of inspections, collection of fees; establishing the mechanical examiners and appeals board and establishing duties and responsibilities therefor; establishing qualifications for and requiring the registration of defined classifications of mechanical contractors, journeymen, and apprentices; requiring the posting of the bond and public liability insurance; providing for the examination and licensing of stationary engineers; requiring licensed operators to operate and maintain certain equipment; imposing duties and responsibilities on property owners; providing for the conditions and maintenance of all property, buildings and structures; providing standards for supplied utilities and facilities and other physical things and conditions essential to ensure that structures are safe, sanitary and fit for occupation and use; providing for the condemnation of buildings and structures unfit for human occupancy and use, as well as the demolition of such structures; providing penalties for the violation thereof; adopting "the *International Fuel Gas Code,* 2006 Edition," as published by the International Code Council, Inc. (ICC), as part of the Mechanical Code; providing for and governing the design, construction, fabrication, erection, alteration, location, enlargement, equipment, repair, removal, conversion, use and maintenance of fuel gas piping, fuel gas utilization equipment, and related accessories; providing for the administration hereof, issuance and revocation or suspension of certificates of registration; providing for the issuance of permits, making of inspections, collection of fees; establishing qualifications for and requiring the registration of defined classifications of mechanical contractors, journeymen, and apprentices; requiring the posting of bonds and public liability insurance; providing penalties for the violation thereof; repealing all other ordinances or parts of ordinances in conflict herewith; providing for preservation and protection of existing rights; providing for severability; and declaring an emergency | 1 | Tit. 59 | 100, 101 |
| | | | 2 | Tit. 59 | 200, 201 |
| | | | 3 | Tit. 59 | 300, 301 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22025 | 3- 5-2009 | An ordinance repealing Chapter 9 of Title 29, Tulsa Revised Ordinances; creating a new Title 8-A entitled "Emergency Operations" within the Tulsa Revised Ordinances; creating a new Chapter 1 in Title 8-A entitled "Tulsa Nine-One-One Emergency Number"; repealing all ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 Rpld | Tit. 29 | Ch. 9 |
| | | | 2 Added | Tit. 8-A | Title 8-A, title |
| | | | 3 Added | Tit. 8-A | Ch. 1, §§ 100—108 |
| 22067 | 2-5-2009 | An ordinance amending Title 5, Tulsa Revised Ordinances, Chapter 10, entitled "Tulsa Youth Council"; amending purposes and objectives; amending membership and terms of office; providing powers, duties, and responsibilities of the Council; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency | 1 | Tit. 5 | 1000—1004 |
| 22076 | 6-18-2009 | An ordinance amending Title 36, Chapter 1, Tulsa Revised Ordinances, entitled "Taxicabs"; amending Section 134 entitled "Rates of Fare", providing for a maximum rate schedule and a fuel surcharge upon recommendation of the transportation advisory board and council approval; providing for council approval without a recommendation by the transportation advisory board if it fails to act; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency | 1 | Tit. 36 | 134 |
| 22085 | 6-18-2009 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, Chapter 3, Sections 302, 303, 304, 305, 306, and 307, to specify certain water rates that shall be applicable to users inside and outside of the city and to property owned by the City of Tulsa; establishing October 1, 2009, as to when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 302—305 |
| | | | 2 | Tit. 11-C | 306, 307 |
| 22086 | 6-18-2009 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, Chapter 7, Sections 702, 703 and 708, to specify certain sewer rates that shall be applicable to users inside and outside of the city, wholesale users and to property owned by the City of Tulsa; specifying sewer rates for users who are not also water customers; specifying rates for dumping or discharging septic waste; establishing October 1, 2009, as to when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 702, 703 |
| | | | 2 | Tit. 11-C | 708 |
| 22087 | 6-18-2009 | An ordinance amending Title 11-A, Tulsa Revised Ordinances, Section 202; increasing the monthly stormwater drainage system service charge and establishing October 1, 2009, as to when such increased rates shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-A | 202 |
| 22107 | 8-6-2009 | An ordinance amending and correcting Ordinance No. 21979, passed and approved by the Council of the City of Tulsa, Oklahoma, on the 18th day of December, 2008, and approved by the mayor pro-tem, on the 23rd day of December, 2008, which contained a scrivener's error; repealing all ordinances or parts of ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 2 | 101.A.2 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22109 | 8-20-2009 | An ordinance amending Title 37-A, entitled, "Emergency Medical Services Code," Tulsa Revised Ordinances, Subsection 100.P, amending the definition of "medical control board" to increase the number of physicians comprising the board; and declaring an emergency | 1 | Tit. 37-A | 100.P. |
| 22113 | 8-27-2009 | An ordinance amending Title 27, Tulsa Revised Ordinances, by repealing Section 405 entitled "Assault and Battery Upon Police or Other Law Officer—Penalty"; and declaring an emergency | 1 Rpld | Tit. 27 | 405 |
| 22146 | 10-15-2009 | An ordinance amending Title 11, Tulsa Revised Ordinances, Chapter 12, titled "Rights-of-Way Occupancy Management"; amending Section 1202, titled "Definitions", by modifying the definition for "cable service", deleting the definition for "cable service gross revenue", and adding definitions for the terms "IP video, internet protocol video service, or internet protocol (IP)-enabled video service", "IP video system", "video programming", "video service", and "video service gross revenue"; amending Section 1206, titled "occupancy fees or inspection fee and service charge"; amending Section 1220, titled "cable and open video system provisions"; redesignating Section 1220 and titling it "video service provisions"; providing for a video service fee; replacing the defined term "cable service" with the defined term "video service"; providing for severability; repealing ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 11 | 1202 |
| | | | 2 | Tit. 11 | 1206 |
| | | | 3 | Tit. 11 | 1220 |
| 22149 | 10-8-2009 | An ordinance amending Title 42, Tulsa Revised Ordinances, titled "The Tulsa Zoning Code", related to restrictions on land uses within the City of Tulsa; amending Section 401, titled "principal uses permitted in residential districts", Table 1, titled "Use Units Permitted in Residential Districts", related to permitted use unit 8 uses; amending Section 1202, titled "Use Unit 2. Area-Wide Special Exception Uses", related to spacing requirements; amending Section 1208, titled "Use Unit 8. Multifamily Dwelling and Similar Uses", by adding use conditions related to community group homes; amending Section 1800, titled "Definitions", by amending the definitions of "community group home" and "family" and adding a definition for "disability" or "disabilities"; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; establishing an operative date of November 1, 2009; and declaring an emergency | 1 | Tit. 42 | 401 |
| | | | 2 | Tit. 42 | 1202 |
| | | | 3 | Tit. 42 | 1208 |
| | | | 4 | Tit. 42 | 1800 |
| 22154 | 11-5-2009 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Rights-of-Way Occupancy Management," Section 1206A.3.a; increasing the amount of occupancy fee to be charged to occupancy permit holders in order to recover said permit holder's pro rata share of the burden on the rights-of-way; providing an operative date of October 1, 2009; and declaring an emergency | 1 | Tit. 11 | 1206A.3.a. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22155 | 11-5-2009 | An ordinance amending Title 42, Tulsa Revised Ordinances, titled "The Tulsa Zoning Code", related to restrictions on land uses within the City of Tulsa; amending Chapter 10-A, titled "Historic Preservation"; amending Section 1052, titled "Tulsa Preservation Commission", Subsection 1052.J, titled "Quorum"; deleting the requirement that for certificate of appropriateness reviews and action, there shall be at least four members from the professional group in the quorum; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 42 | 1052.J. |
| 22156 | 10-15-2009 | An ordinance amending Title 4, Chapter 2, Tulsa Revised ordinances, adding Section 203, entitled "Responding to City Auditor Requests," providing for the City of Tulsa policy requiring officials to respond to lawful requests from the city auditor; adding Section 204, entitled "officials to assist," providing for the City of Tulsa policy that city officials shall provide documents or copies thereof, pursuant to lawful request of the city auditor; adding Section 205, entitled "failure to comply," providing an official's failure to comply with this chapter may be considered grounds for discipline, including removal; adding Section 206, entitled "disclosure statement to accompany," requiring a disclosure statement; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1—4 Added | Tit. 4 | 203—206 |
| 22157 | 11-12-2009 | An ordinance amending Title 6, Tulsa Revised Ordinances, entitled "Finance Department," adopting a new Section 605 to provide an additional fee for reimbursement to city of collection fees pursuant to contract with a collection agency; providing for repeal of conflicting ordinances; and declaring an emergency | 1 Added | Tit. 6 | 605 |
| 22160 | 11-12-2009 | An ordinance amending Title 23, Tulsa Revised Ordinances, Chapter 1, by adding a new Section 116 entitled "collection services for court penalties, costs, fines, and fees in cases in municipal court in which the accused/defendant has failed to appear or otherwise failed to satisfy a monetary obligation ordered by the court"; providing for a severability clause; and repealing all ordinances in conflict herewith | 1 Added | Tit. 23 | 116 |
| 22169 | 12-10-2009 | An ordinance amending Title 11, Tulsa Revised Ordinances, Chapter 12, titled "Rights-of-Way Occupancy Management"; amending Section 1220, titled "video service provisions"; amending Paragraph 1220.A.3 regarding the establishment of an educational and governmental access capital contribution fee; amending paragraph 1220.G.3, titled video and audio originations; providing for severability; repealing ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 11 | 1220.A.3 |
| | | | 2 | Tit. 11 | 1220.G.3 |
| 22171 | 12-17-2009 | An ordinance amending Title 36, Tulsa Revised Ordinances, entitled "Taxicabs and Paratransit Vehicles"; amending Section 118 entitled "Requirements for chauffeur license", providing additional qualifications that an applicant shall not have been convicted of certain felonies and shall not be a person required to register as a sex offender under Oklahoma law; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency | 1 | Tit. 36 | 118 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22189 | 1-14-2010 | An ordinance creating a new Title 42-A, Tulsa Revised Ordinances, entitled "Oil and Gas Drilling in the City Limits"; establishing procedures for exploration, drilling, and operating oil and gas wells; creating the administrative office of oil and Gas Inspector and describing the authority and duties of said office; providing for the issuance of permits and collection of fees for activities related to exploration, drilling, and operating oil and gas wells; requiring the posting of certain bonds and public liability insurance; providing for the drilling and operation of enhanced recovery wells of different types; providing for conversion from natural to artificial production of oil and gas; providing for swabbing of oil and gas wells; providing for construction of loading racks and other accessories to oil and gas-related structures and equipment; providing for oil and gas-related pipelines, their excavation, placement, operation, and maintenance; providing for nuisance abatement; providing penalties for certain violations; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 Added | Tit. 42-A | 100—104 |
| | | | | Tit. 42-A | 200—202 |
| | | | | Tit. 42-A | 300—307 |
| | | | | Tit. 42-A | 400—402 |
| | | | | Tit. 42-A | 500 |
| | | | | Tit. 42-A | 600—638 |
| | | | | Tit. 42-A | 700—705 |
| | | | | Tit. 42-A | 800—802 |
| | | | | Tit. 42-A | 900—908 |
| | | | | Tit. 42-A | 1000—1014 |
| | | | | Tit. 42-A | 1100—1104 |
| | | | | Tit. 42-A | 1200 |
| 22205 | 3- 4-2010 | An ordinance amending Title 42, Tulsa Revised Ordinances, titled "The Tulsa Zoning Code", related to restrictions on land uses within the City of Tulsa; amending Chapter 12, titled "Use Units"; amending Section 1221 titled "Use unit 21. Business signs and outdoor advertising"; amending Paragraph 1221.C.10, pertaining to use conditions for business signs, to permit roof signs within the Downtown Entertainment District, subject to certain conditions; amending Section 1800, titled "Definitions", by adding definitions for "Downtown entertainment district" and "Electronic message center or board sign"; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 42 | 1221 C.10. |
| | | | 2 | Tit. 42 | 1800 |
| 22220 | 3-25-2010 | An ordinance amending Title 6, Chapter 4, Tulsa Revised Ordinances, by adding thereto Section 415, entitled "Performance-Based Efficiency Contracts", providing for definitions; providing for performance-based efficiency contracts, providing for severability; providing for repeal of conflicting ordinances and declaring an emergency | 1 Added | Tit. 6 | 415 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22221 | 3-25-2010 | An ordinance amending Chapter 12, Tulsa Revised Ordinances relating to "sewer use" and providing for general provisions; general sewer use requirements; pretreatment of wastewater; wastewater discharge permit application; wastewater discharge permit issuance process; reporting requirements; compliance monitoring; confidential information; publication of users in significant noncompliance; administrative enforcement remedies; judicial enforcement remedies; supplemental enforcement action; affirmative defenses to discharge violations; fees; severability; and declaring an emergency | 1 | Tit. 11-C | 1200—1213 |
| 22235 | 4-22-2010 | An ordinance amending Title 49, Tulsa Revised Ordinances, entitled "Administrative, permit, and license fees," Chapter 1, adopting a new Section 100 to provide for collection of a fee to support the Oklahoma Uniform Building Code Commission and a fee to reimburse the City its expenses related to such collection; and adopting a new Section 101 to provide for a Code Compliance Development meeting fee; renumbering the existing Sections 100 through 117 as Sections 102 through 119, respectively; amending Chapter 12, Section 1206, entitled "Rate used in calculating fee-in-lieu of detention" increasing the rate per square foot effective immediately, with additional increases effective April 2, 2011 and April 1, 2012; repealing all ordinances in conflict herewith; and declaring an emergency | 1 Added | Tit. 49 | 100, 101 |
| | | | 2 Rnbd | Tit. 49 | 100—117 |
| | | | as | Tit. 49 | 102—119 |
| | | | 3 | Tit. 49 | 1206 |
| 22250 | 6-20-2010 | An ordinance amending Title 11-A, Tulsa Revised Ordinances, Section 302; amending exemptions to watershed development permits; removing an exemption for property that does not exceed forty-three thousand five hundred sixty (43,560) square feet (one acre) in size; removing an exemption for development of single-family residential properties; changing references from the "Public Works Department" to the "Development Services Division of the Economic Development Department"; providing for severability; and declaring an emergency | 1 | Tit. 11-A | 302 |
| 22263 | 6-17-2010 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 3, Title "Water Rates"; amending Sections 302, 303, 304, 305, 306 and 307 to provide that certain water rates shall be applicable to property located inside and outside the corporate limits of the City of Tulsa, or on property owned by the City of Tulsa; providing that these water rates shall be effective on October 1, 2010; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 302 |
| | | | 2 | Tit. 11-C | 303 |
| | | | 3 | Tit. 11-C | 304 |
| | | | 4 | Tit. 11-C | 305 |
| | | | 5 | Tit. 11-C | 306 |
| | | | 6 | Tit. 11-C | 307 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22264 | 6-17-2010 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Sections 702, 703 and 708 to provide that certain sewer rates shall be applicable to users inside and outside of the City, wholesale users and to property owned by the City of Tulsa; specifying sewer rates for users who are not also water customers; specifying rates for dumping or discharging septic waste; providing that these sewerage rates shall be effective on October 1, 2010; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 702 |
| | | | 2 | Tit. 11-C | 703 |
| | | | 3 | Tit. 11-C | 708 |
| 22269 | 7-15-2010 | An ordinance creating a new Title 24-A, Tulsa Revised Ordinances, entitled "Neglected Vacant Buildings Registry and Maintenance"; providing definitions; establishing a procedure for registering and inspection of a neglected vacant building; providing for a neglected vacant building/residential structure plan to be submitted by the owner; providing registration fees; requiring the posting of certain bonds and public liability insurance; requiring maintenance of neglected vacant buildings; providing for exemptions and annual reports; providing penalties for certain violations; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency | 1 Added | Tit. 24-A | 100, 101, 200—207 |
| 22270 | 7-15-2010 | An ordinance repealing Title 55 Tulsa Revised Ordinances, titled "Existing Structures Code"; adopting a new Title 55, Tulsa Revised Ordinances, titled "Property Maintenance Code"; adopting the 2003 ICC International Property Maintenance Code, published by the International Code Council, Inc. (ICC), as amended by this ordinance; regulating and governing the conditions and maintenance of all property, buildings and structures, by providing standards for supplied utilities and facilities and other physical things and conditions essential to ensure that structures are safe, sanitary and fit for occupation and use; providing for the condemnation of buildings and structures unfit for human occupancy and use, and the demolition of such existing structures as herein provided; providing for the issuance of permits therefor; providing penalties for the violation thereof; providing for severability; and declaring an emergency | 1 Rpld | Tit. 55 | 100—103 |
| | | | 2 Added | Tit. 55 | 100, 101, 111 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22271 | 7-15-2010 | An ordinance amending Title 24, Tulsa Revised Ordinances, entitled, "Nuisances"; amending Section 205 entitled "Appeals from the Enforcement Official", Subsection B entitled "Notice of appeal", correcting the reference therein from Section 207 to Sections 210 or 403; amending Section 207 entitled "appeals to the Council", Subsection B entitled "notice of appeal", clarifying the procedures to notify the Council Secretary and the Nuisance Hearing Officer of the appellant's appeal and specifying the times applicable to the appeal; amending Section 210 entitled "summary abatement", changing the duration of the abatement order from twelve (12) months to twenty-four (24) months; amending Section 403 entitled "summary abatement", changing the duration of the abatement order from twelve (12) months to twenty-four (24) months; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency | 1 | Tit. 24 | 205 B. |
| | | | 2 | Tit. 24 | 207 B. |
| | | | 3 | Tit. 24 | 210 |
| | | | 3 | Tit. 24 | 403 |
| 22304 | 8-19-2010 | An ordinance amending Title 4, Chapter 3, Tulsa Revised Ordinances, adding Section 313, entitled "donations" providing for the City of Tulsa policy requiring all donations to the City of Tulsa to be accepted by the city council; and declaring an emergency | 1 Added | Tit. 4 | 313 |
| 22305 | 7-29-2010 | An ordinance updating and clarifying the focus, role and processes related to the City of Tulsa's Government Access Channel (TGOV), as originally authorized by and superseding City of Tulsa Joint Resolution #7220; clarifying programming policies and priorities as well as the make-up, role and responsibilities of the TGOV Coordinating Committee; amending Title 12 Tulsa Revised Ordinances; adding a new Chapter 7 titled "Tulsa Government Television"; adding a new Section 700, titled "Objectives"; adding a new Section 701, titled "TGOV Policies"; adding a new Section 702, entitled "Programming Priorities"; adding a new Section 703, titled "Coordination & Management"; adding a new Section 704, titled "Programming Restrictions"; adding a new Section 705, titled "Copyright of Programs"; adding a new Section 706, titled "General Broadcast Approach & Schedule"; adding a new Section 707, titled "TGOV Broadcast Channel"; adding a new Section 708, titled "Operational Framework"; providing for severability; and declaring an emergency | 1 Added | Tit. 12 | 700—708 |
| 22311 | 9-16-2010 | An ordinance amending Title 3, Chapter 2, Tulsa Revised Ordinances, amending Section 200, to amend the font and define specific colors of the City of Tulsa Corporate Seal; providing for severability; and declaring an emergency | 1 | Tit. 3 | 200 |
| 22314 | 10- 7-2010 | An ordinance amending Title 29, Tulsa Revised Ordinances, Chapter 5, Section 508, by adding a new Subsection "F" entitled "Campus Police Officers" which authorizes Campus Police Officers as defined therein to enforce the provisions of the Traffic Code and the Penal Code of the City of Tulsa and to issue citations; providing for a severability clause; repealing all ordinances in conflict herewith; and declaring an emergency | 1 Added | Tit. 29 | 508 F. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22325 | 10-28-2010 | An ordinance amending Title 5, Tulsa Revised Ordinances, entitled "Boards, Commissions and Committees," amending 110(A) to provide a definition of good-faith effort; amending 110(B)(2)(f) to eliminate mandatory goals and amending 110(B)(2)(i) to add utilization of good-faith efforts; repealing all ordinances in conflict herewith; and declaring an emergency | 1 Added | Tit. 5 | 110 A.6. |
| | | | 2 Rnbd | Tit. 5 | 110 A.6.—9. |
| | | | as | Tit. 5 | 110 A.7.—10. |
| | | | 3 | Tit. 5 | 110 B.2.f., i. |
| 22356 | 12- 9-2010 | An ordinance amending Title 42, Tulsa Revised Ordinances, titled "The Tulsa Zoning Code", related to restrictions on land uses within the City of Tulsa; amending Chapter 10-A, titled "Historic Preservation"; amending Section 1052, titled "Tulsa Preservation Commission"; updating references for consistency with the City's current form of government; providing that the composition of the Tulsa Preservation Commission shall be reduced form fifteen (15) members to nine (9) members, effective October 1, 2011, selected from a "professional" group, a "historic property owners" group and an "ex officio" group; providing for the appointment and terms of office of members; establishing requirements for the conduct of meetings of the Preservation Commission; amending Section 1054, titled "Historic Preservation District-zoning map amendments"; amending Section 1055, titled "Certificate of appropriateness (COA)"; clarifying provisions authorizing Preservation Commission Staff to approve certificates of appropriateness for minor exterior alterations to a building or structure; providing that from February 1, 2011 through September 30, 2011 the membership of the Preservation Commission shall total eleven (11) voting members, including six (6) historic property owner members who previously were appointed and served as community group members; providing that the amendments enacted by this ordinance shall become operative February 1, 2011 repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 42 | 1052 |
| | | | 2 | Tit. 42 | 1054, 1055 |
| 22361 | 1-13-2011 | An ordinance amending Title 25, Chapter 4, Tulsa Revised Ordinances, amending Section 401, entitled "Definitions" providing that employees with an artistic and creative (AC), airport safety officer (AO), administrative and technical (AT), information systems (IS), information technical (IT), and office/technical (OT) designation for the City of Tulsa shall be added to the designations defined as an employee for the purposes of Title 25, Chapter 4 of the Tulsa Revised Ordinances | 1 | Tit. 25 | 401 |
| 22380 | 2-17-2011 | An ordinance amending Title 43-E, Tulsa Revised Ordinances, Subsection 100.B., "Specific projects and purposes," by adding projects totaling the amount of $1,110,447.34; further amending section 100.B, "Specific projects and purposes," to revise accordingly the estimated totals; and declaring an emergency | 1—5 | Tit. 43-E | 100 B. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22395 | 3-24-2011 | An ordinance amending Title 37, Tulsa Revised Ordinances, Chapter 1, Section 100 to add definition of "Rickshaw;" amending Title 37, Tulsa Revised Ordinances, Section 601 to add rickshaws to the provisions of the section; and amending Title 37, Chapter 10, to provide for certain traffic regulations for the operation of rickshaws within the City of Tulsa; providing for a severability clause; repealing all ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 37 | 100 |
| | | | 2 | Tit. 37 | 601 |
| | | | 3 | Tit. 37 | 1000 |
| | | | 4 | Tit. 37 | 1001 |
| | | | 5 | Tit. 37 | 1002 |
| | | | 6 | Tit. 37 | 1003 |
| | | | 7 | Tit. 37 | 1004 |
| | | | 8 | Tit. 37 | 1005 |
| | | | 9 | Tit. 37 | 1006 |
| | | | 10 | Tit. 37 | 1007 |
| | | | 11 | Tit. 37 | 1008 |
| | | | 12 | Tit. 37 | 1009 |
| | | | 13 | Tit. 37 | 1010 |
| | | | 14 | Tit. 37 | 1011 |
| | | | 15 | Tit. 37 | 1012 |
| | | | 16 | Tit. 37 | 1013 |
| | | | 17 | Tit. 37 | 1014 |
| 22396 | 3-24-2011 | An ordinance amending Title 36, Tulsa Revised Ordinances, Section 101 entitled "Definitions" to add a definition of "rickshaw;" amending Title 36, Tulsa Revised Ordinances, Section 106 entitled "Certificate application," paragraph "D" to add rickshaw; amending Title 36, Tulsa Revised Ordinances, Section 132 entitled "Direct route" to add rickshaws; amending Title 36, Tulsa Revised Ordinances, Section 146 entitled "Peda-cabs" to amend the Title to "Peda-cabs and rickshaws" and to add rickshaw to the provisions of the section; providing for a severability clause; repealing all ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 36 | 101 |
| | | | 2 | Tit. 36 | 106 D. |
| | | | 3 | Tit. 36 | 132 |
| | | | 4 | Tit. 36 | 146 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22411 | 4- 7-2011 | An ordinance creating and adopting a new Title 42-B, Tulsa Revised Ordinances, titled "Form-Based Code", related to restrictions on land uses within the City of Tulsa; providing for the regulation of land development by setting controls on building forms, height and siting, and defining public spaces; establishing permitted uses within specified street frontages and for nonconforming uses; providing for the administration of this Code; establishing a regulating plan for properties with a " form-based district" regulated by this Code; establishing standards for building forms, city blocks, street connectivity and vehicular access; specifying building form standards for urban general frontages, townhouse/small apartment frontages, residential detached frontages and workshop frontages; regulating signage, lighting and mechanical equipment on properties; regulating urban space, including streetscapes, trees, squares, civic greens, parks, gardens and paths; establishing parking standards; providing definitions; providing an appendix of non-regulatory/ advisory illustrated street types; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 Added | Tit. 42-B | 101, 102 |
| | | | | Tit. 42-B | 201—205 |
| | | | | Tit. 42-B | 301, 302 |
| | | | | Tit. 42-B | 401—410 |
| | | | | Tit. 42-B | 501—505 |
| | | | | Tit. 42-B | 601—605 |
| | | | | Tit. 42-B | 701 |
| | | | | Tit. 42-B | App. A |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22415 | 5-19-2011 | An ordinance adopting a new Title 15, Tulsa Revised Ordinances, Chapter 3, titled "2011 Oklahoma Natural Gas Company Franchise"; providing definitions for words and phrases used in the grant of this franchise; granting to Oklahoma Natural Gas Company (ONG), a Division of Oneok, Inc., a corporation ("Grantee"), its successors and assigns, for a period of fifteen (15) years, a non-exclusive franchise and a right to use the public rights-of-way for the purpose of transporting, distributing and selling natural gas to consumers and the general public within the City; regulating the assignment, sale or lease of this franchise; providing for the use and repair of City rights-of-way; providing for the issuance of rights-of-way construction permits to the grantee and grantee's agents; providing requirements for such permits; providing for appeals from orders or decisions made in the enforcement of this franchise; providing for the regulation of grantee's service within the City limits; establishing engineering standards; imposing certain duties on the grantee to remove or alter facilities; requiring indemnification of the City; allowing grantee to make and enforce reasonable rules and regulations for the conduct of its business; requiring grantee to maintain records and permit the City to inspect them; requiring grantee to pay a franchise fee and establishing the method of calculating that franchise fee; authorizing the right to renegotiate the terms of this franchise in certain circumstances; providing that before this ordinance shall be effective it shall be approved by a majority of the qualified electors of the City of Tulsa at a special election to be held on August 9, 2011; providing for severability of invalid provisions; providing for the acceptance by the grantee and the effective date of this franchise; repealing Ordinance Number 16620, which granted a similar franchise to grantee in 1986, and all ordinances or parts of ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 15 | 300—317 |
| 22419 | 4-21-2011 | An ordinance amending Title 11, Tulsa Revised Ordinances, titled, "Public Works Department"; adding a new Chapter 14, titled "Licensing of Signs Within the Central Business District Rights-of-Way"; granting a revocable license for certain signs located within the Central Business District, consistent with the City's 1989 Amended Charter and amendments, Article VIII, Section 13, titled "Permits"; providing definitions for "Central Business District", "Rights-of-Way", and "Sign"; requiring an application as provided in the City's Building Code; providing restrictions and conditions for the permitting and placement of such signs in the Central Business District; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency | 1 Added | Tit. 11 | 1400—1403 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22420 | 4-21-2011 | An ordinance amending Title 52, Tulsa Revised Ordinances, the Electrical Code of the City of Tulsa, Oklahoma; adopting, by reference, the National Fire Protection Association (NFPA) 2005 Edition of NFPA-70, the "National Electrical Code (NFPA-70 2005)", as published by the National Fire Protection Association; providing standards for and governing electrical wiring design, protection, and installation methods; regulating electrical materials, equipment and appliances; establishing standards for special occupancies and special equipment; providing for the administration, issuance, revocation, and suspension of certificates of registration; providing for the issuance of permits and performing inspections; requiring registration of electrical and electrical sign contractors, journeymen and apprentices; creating the Electrical Examining and Appeals Board, and establishing duties and responsibilities therefor; providing for bonding and insurance and cash deposits; providing for appeals; providing penalties for violation the Electrical Code; repealing all ordinances or parts of ordinances in conflict herewith; providing for preservation and protection of existing rights; providing for severability; providing that the operative date of this ordinance shall be June 1, 2011; and declaring an emergency | 1 | Tit. 52 | 100—116, 200 |
| 22423 | 4-28-2011 | An ordinance amending Title 45, Tulsa Revised Ordinances, titled "City of Tulsa Use Tax Code"; amending Chapter 1, titled "City of Tulsa Use Tax Code", Section 100, titled "Use tax levied", to increase the use tax levied by the City of Tulsa on the storage, use or other consumption of tangible personal property purchased or brought into the City of Tulsa from three percent (3%) to three and two-twelfths percent (3$^{2}/_{12}$%); repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; providing that the operative date of this ordinance shall be on and after October 1, 2011 | 1 | Tit. 45 | 100 |
| 22425 | 4-28-2011 | An ordinance amending Title 28, Tulsa Revised Ordinances, entitled "Municipal Employees" Retirement Plan," amending 301(a) to increase the amount of basic employee contributions; repealing all ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 28 | 301 A. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22427 | 4-14-2011 | An ordinance amending Title 12, of the Tulsa Revised Ordinances, entitled "Internal Policies", creating a new Chapter 7, entitled "Housing and Urban Development Grants", providing for a fair and efficient process for allocating Federal Urban Development Grants, including but not limited to community development block grant funds, home funds, and emergency shelter grant funds, and developing an annual action plan; providing for the scope of the chapter; providing for the creation and duties of the Housing & Urban Development Grant Prioritization Committee; providing for the provision of applicant workshops; establishing a deadline for the submission of proposals; providing for the creation and duties of the Program Review Committee; providing for the creation and duties of the Fund Allocation Committee; providing for public hearing; providing for the final resolution on consolidated plan and use of funds; providing for the submission to HUD of necessary documents; providing for the Consolidated Annual Performance and Evaluation Report (CAPER), to evaluate program performance by each agency funded in the prior fiscal year; providing for the provision of quarterly reports to the City Council and mayor; providing for appeals; and declaring an emergency | 1 Added | Tit. 12 | 800—811 |
| 22431 | 5-12-2011 | An ordinance amending Title 2, Chapter 1, Subsection 101.a, Tulsa Revised Ordinances, to provide for designation of public off-leash areas in which dogs would be permitted to not be under leash; and declaring an emergency | 1 | Tit. 2 | 101 A.2. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22432 | 5-12-2011 | An ordinance amending Title 42, Tulsa Revised Ordinances, titled "The Tulsa Zoning Code", related to restrictions on land uses within the City of Tulsa; amending Section 206, titled "Street frontage required", to include lots within a corridor district development as an additional exception from the requirement; amending Section 601, titled "Principal uses permitted in office districts", Table 1, titled "Use units permitted in office districts", related to mixed-use buildings; amending Section 603, titled "Bulk and area requirements in the office districts", Table 3, titled "Bulk and area requirements in the office districts", related to mixed-use buildings; amending Section 604, titled "Special exception uses in office districts, requirements", Subsection B, to delete certain bulk and area requirements for multi-family uses in office medium intensity (OM) and office medium-high intensity (OMH) districts; amending Section 701, titled "Principal uses permitted in commercial districts", table 1, titled "Use units permitted in commercial districts", related to mixed use buildings; amending Section 703, titled "Bulk and area requirements in the commercial districts", Table 2, titled "Bulk and area requirements in the commercial districts", related to mixed-use buildings; amending Section 704, titled "Special exception uses in commercial districts, requirements", by deleting Subsection A, regarding certain bulk and area requirements for multi-family uses in commercial districts; amending Section 902, titled "Accessory uses permitted in industrial districts", to permit accessory dwellings in industrial districts for security and management purposes; amending Section 1106, titled "Off-street parking and loading", to permit modification of off-street parking and loading requirements within a planned unit development (PUD) by the City Council, if incorporated within a subdivision plat; amending Section 1212, titled "Use Unit 12. Eating establishments other than drive-ins" and Section 1212A, titled "Use unit 12A. Adult entertainment establishments", to provide for outdoor seating on rooftops; adding a new Subsection 1212.E, titled "Other requirements", to regulate off-street parking and loading requirements for a use Unit 12, eating establishments other than drive-ins; amending Section 1800, titled "Definitions", by adding a definition for "Mixed-use building""; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 42 | 206 |
| | | | 2 | Tit. 42 | 601 |
| | | | 3 | Tit. 42 | 603, 604 |
| | | | 4 | Tit. 42 | 701 |
| | | | 5 | Tit. 42 | 703, 704 |
| | | | 6 | Tit. 42 | 902 |
| | | | 7 | Tit. 42 | 1106 |
| | | | 8 | Tit. 42 | 1212, 1212a. |
| | | | 9 | Tit. 42 | 1800 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22434 | 3-31-2011 | An ordinance repealing Title 23, Section 112, of the Tulsa Revised Ordinances entitled creation of Judicial Nominating Committee, purpose, membership, appointment, term; and repealing Title 23, Section 113 of the Tulsa Revised Ordinances, entitled procedure for selection of Judges, and declaring an emergency | 1 Rpld | Tit. 23 | 112 |
| | | | 2 Rpld | Tit. 23 | 113 |
| 22438 | 5- 5-2011 | An ordinance amending Title 42, Tulsa Revised Ordinances, titled "The Tulsa Zoning Code", related to restrictions on land uses within the City of Tulsa; amending Chapter 11, titled "Planned Unit Development"; amending Section 1103 titled "Uses permitted in Planned Unit Development"; amending paragraph 1103.A.3, pertaining to the reallocation of uses within a Planned Unit Development (PUD) regardless of general zoning district boundaries to provide that the reallocation of uses within a Planned Unit Development shall not be permitted within a historic preservation (HP) district effective immediately from and after passage, approval and publication of this ordinance; amending paragraph 1103.A.3, to allow the reallocation of uses within a planned unit development (PUD) regardless of general zoning district boundaries, effective from and after December 1, 2011, repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 42 | 1103 A. |
| | | | 2 | Tit. 42 | 1103 A. |
| 22441 | 6- 9-2011 | An ordinance amending Title 14, Tulsa Revised Ordinances, titled "Fire Prevention"; amending Section 3301.1 of the ICC International Fire Code, 2006 Edition, titled "Explosives and Fireworks", incorporated by reference into Title 14 Tulsa Revised Ordinances, Chapter 1; amending the definition of "fireworks" defined in Section 3302 of the ICC International Fire Code, 2006 Edition, titled "Definitions", incorporated by reference into Title 14 Tulsa Revised Ordinances, Chapter 1; repealing all ordinance or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 14 | 3301.1 |
| | | | 2 | Tit. 14 | 3302 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22453 | 6-23-2011 | An ordinance amending Title 42, Tulsa Revised Ordinances, titled "The Tulsa Zoning Code", related to restrictions on land uses within the City of Tulsa; amending Section 800, titled "Purposes", to clarify the requirement for an approved development plan and a detail site plan within a corridor zoned district; amending Section 801, titled "Principal uses permitted in corridor districts", Table 1, titled "Use units permitted in corridor districts", by adding a Use Unit 25, light manufacturing and industrial use; amending Section 802, titled "Accessory uses permitted in corridor district", to change cross references from Section 805 to Section 804; amending Section 804 by changing the title from "Access requirements" to "Corridor development plan" and establishing requirements for a corridor development plan; amending Section 805, titled "Site plan review" to include review of corridor development plans; adding a new Section 806, titled "Corridor district administration", providing procedures for the approval of a corridor subdivision plat; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 42 | 800—803 |
| | | | 2 | Tit. 42 | 804, 805 |
| | | | 3 Added | Tit. 42 | 806 |
| 22461 | 6-23-2011 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 3, titled "Water Rates"; amending Sections 302, 303, 305, 306 and 307 to provide that certain water rates shall be applicable to property located inside and outside the corporate limits of the City of Tulsa, or on property owned by the City of Tulsa; providing that these water rates shall be effective on October 1, 2011; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 302 |
| | | | 2 | Tit. 11-C | 303 |
| | | | 3 | Tit. 11-C | 305 |
| | | | 4 | Tit. 11-C | 306 |
| | | | 3 | Tit. 11-C | 307 |
| 22462 | 6-23-2011 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Sections 702, 703 and 708 to provide that certain sewer rates shall be applicable to users inside and outside of the City, wholesale users and to property owned by the City of Tulsa; specifying sewer rates for users who are not also water customers; specifying rates for dumping or discharging septic waste; providing that these sewerage rates shall be effective on October 1, 2011; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 702 |
| | | | 2 | Tit. 11-C | 703 |
| | | | 3 | Tit. 11-C | 708 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22473 | 7-14-2011 | An ordinance amending Title 42, Tulsa Revised Ordinances, titled "The Tulsa Zoning Code", related to restrictions on land uses within the City of Tulsa; amending Chapter 2, titled "General Provisions"; amending Section 200 titled "Zoning and supplemental zoning districts established"; adding a new "Form-Based Code District" classification, designated by the abbreviation "FBC"; providing that Form Based Code Districts are regulated by Title 42-B and only by Title 42 Tulsa Revised Ordinance to the extent provided for in Title 42-B; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 42 | 200 |
| 22476 | 7-21-2011 | An ordinance amending Title 42, Tulsa Revised Ordinances, titled "The Tulsa Zoning Code", related to restrictions on land uses within the City of Tulsa; amending Chapter 2, titled "General provisions"; amending Section 200 titled "Zoning and supplemental zoning districts established"; adding a new "Form-Based Code District" classification, designated by the abbreviation "FBC"; providing that Form Based Code Districts are regulated by Title 42-B and only by Title 42 Tulsa Revised Ordinance to the extent provided for in Title 42-B; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 42 | 200 |
| 22477 | 7-21-2011 | An ordinance amending Chapter 2, Title 37-A, of the Tulsa Revised Ordinances, entitled "Emergency Medical Services Code," by providing for election of nonparticipation in said program; providing for severability; providing for the definition of election period; providing for repeal of conflicting ordinances; and declaring an emergency | 1 | Tit. 37-A | 200 |
| | | | 2 | Tit. 37-A | 202 |
| 22529 | 9-29-2011 | An ordinance amending Title 6, Tulsa Revised Ordinances, entitled "Finance Department" by repealing Chapter 4 entitled "Purchasing" and enacting a new Title 6, Chapter 4, entitled "Purchasing"; establishing certain definitions to be used in Chapter 4; setting forth powers and duties of the City purchasing agent; providing for the filing of requisitions and estimates by using departments of the City; providing for the encumbrance of funds for purchases; requiring disclosure of financial interests and prohibiting certain financial interests; providing a process for petty expenditures; setting forth competitive processes for purchases including request for quote, invitation for sealed bid, two-step sealed bid; competitive sealed proposal, and request for proposal; providing for ability to use auction or reverse auction as a step in a competitive process; setting forth requirements for competitive processes; providing for central warehousing, emergency purchases, inspection and testing of purchases; providing for disposition of surplus supplies, cooperative purchasing, performance based efficiency contracts, sole source and sole brand acquisitions, and auction and reverse auction; providing for penalties for noncompliance with this chapter; repealing ordinances in conflict; and declaring an emergency | 1 | Tit. 6 | 400—416 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22530 | 9-29-2011 | An ordinance amending the Building Code of the City of Tulsa, Oklahoma, Title 51 Tulsa Revised Ordinances, Chapter 2; adopting the ICC International Residential Code for One- and Two-Family Dwellings, 2009 Edition published by the International Code Council, Inc. (ICC), as amended and revised in Title 748 Uniform Building Code Commission — Chapter 20 and amended by this ordinance; providing for the regulation of design, construction, quality of materials, erection, installation, location, replacement, repair, alteration, occupancy, addition, relocation, and demolition or use of one- and two-family dwellings and townhouses not more than three stories in height with separate means of egress; providing for the administration thereof, the issuance of permits, collection of fees, and making of inspections; providing for appeals; providing definitions; providing for the classification of work, repairs, levels of alterations, occupancy, and additions thereto; providing penalties for the violation providing for severability; providing that the operative date of this ordinance shall be xxxxx, 2011; and declaring an emergency | 1 | Tit. 51 | 200—202 |
| 22531 | 9-29-2011 | An ordinance amending Title 51, Tulsa Revised Ordinances, entitled "Building Code" by adding thereto Chapter Five, entitled "Residential Swimming Pools, Spas and Hot Tubs," providing for the regulation of design and construction of swimming pools, spas and hot tubs installed in or on the lot of a one or two family dwelling; providing for barriers and restricted access to swimming pools, spas and hot tubs; providing for entrapment protection, atmospheric vacuum relief system installation, dual drain separation and pool cleaner fittings restrictions; and adopting standards applicable to swimming pools, spas and hot tubs installed in or on the lot of a one or two family dwelling; providing for severability, that the operative date of this ordinance shall be xxxxx, 2011; and declaring an emergency | 1 Added | Tit. 51 | 500—508 |
| 22548 | 10-20-2011 | An ordinance amending Title 37, Tulsa Revised Ordinances, Chapter 6, Section 645, by amending Subsection "D"; providing for a severability clause; repealing all ordinances in conflict herewith | 1 | Tit. 37 | 645.D. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22550 | 10-20-2011 | An ordinance amending Title 1, Tulsa Revised Ordinances, entitled "Airports and Aircraft" in its entirety; adopting a new Chapter 1, entitled "Definitions;" adopting a new Chapter 2, entitled "General Regulations" to provide rules and regulations for use of Tulsa's airports and establishing a penalty for violations thereof; adopting a new Chapter 3, entitled "Operational Rules and Regulations" to provide rules and regulations governing operational issues at Tulsa's airports including adoption of Section 42.10, *et seq.*, of the NFPA1, Fire Code, 2009 Edition, and establishing a penalty for violations thereof; adopting a new Chapter 4, entitled "Aviation Fuel Flow Fee" to provide for a fuel flow fee for each gallon of fuel sold, consumed or dispensed at the airports; providing for an exemption from the fuel flow fee for air carriers or cargo carriers with scheduled service and a license to operate at the airport; providing a method of accounting and reporting to the Tulsa Airport Authority and establishing a late fee for past due reports and interest for late payments; and providing for audit of fuel flow records; adopting a new Chapter 5, entitled "Airport Commercial Business Exterior Sign Policy" to provide rules and regulations regarding commercial signage at Tulsa International Airport and R.L. Jones, Jr. Airport; and establishing a penalty for violations thereof; adopting a new Chapter 6, entitled "Fine Schedule" to designate by ordinance the penalties for offenses which may be satisfied by payment at the court; repealing all ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 1 | 100—104, 200—211, 300—304, 400—405, 500—508, 600 |
| 22593 | 12-15-2011 | An ordinance amending Title 43-F, Tulsa Revised Ordinances, Subsection 100.B., "Specific projects and purposes," Paragraph 2, relating to new 2006 Sales Tax Projects, under the category heading of "Gilcrease," by eliminating project "Gilcrease Museum Expansion (Planning & Design) $1,700,000.00"; amending Paragraph 2 of Section 100.B., by increasing the cost estimate for project, "Gilcrease Museum Renovations & Improvements" by the amount of $1,700,000.00 for a total amended cost estimate of $3,280,000.00; and declaring an emergency | 1 | Tit. 43-F | 100.B.2. |
| 22596 | 12- 1-2011 | An ordinance amending Title 37-A, Tulsa Revised Ordinances, titled "Emergency Medical Services Code", Section 203 "Collection of service charges" by the addition of Sub-Section 203.F; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 Added | Tit. 37-A | 203.F. |
| 22597 | 1- 5-2012 | An ordinance amending Title 11, Tulsa Revised Ordinances entitled "Public Works Department" by repealing Chapter 10 entitled "Standard Specifications for Highway Construction" and enacting a new Chapter 10 entitled "Standard Specifications for Highway Construction"; adopting the Standard Specifications for Highway Construction, 2009 Edition; revising terms for all sections of the chapter, providing for severability and declaring an emergency | 1 | Tit. 11 | 1000, 1001 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22617 | 1-12-2012 | An ordinance amending Title 27, Tulsa Revised Ordinances, amending Section 1900, increasing the value of the property taken from less than Fifty Dollars ($50.00) to less than Five Hundred Dollars ($500.00) for obtaining property by trick or deception; amending Section 1910, increasing the amount from Twenty Dollars ($20.00) to Five Hundred Dollars ($500.00) for defrauding restaurants and hotels; by repealing ordinances in conflict; and declaring an emergency | 1 | Tit. 27 | 1900 |
| | | | 2 | Tit. 27 | 1910 |
| 22618 | 1- 5-2012 | An ordinance amending Title 5, Chapter 4, Tulsa Revised Ordinances, entitled "Economic Development Commission of the City of Tulsa", amending Section 401, Subsection "A" by reducing the Economic Development Commission's membership from twenty-one (21) to eleven (11) and Subsection "C" by setting staggered terms for membership; providing for a severability clause; repealing all ordinances in conflict herewith and declaring an emergency | 1 | Tit. 5 | 401.A. |
| | | | 2 | Tit. 5 | 401.B. |
| 22623 | 1-26-2012 | An ordinance amending Title 21, Tulsa Revised Ordinances, titled "Licenses", related to authorization to pursue and exercise a trade, occupation or business in the City of Tulsa; amending Chapter 13, titled "Massage Businesses"; amending Section 1301, definitions by adding terms and deleting terms to come into compliance with this new ordinance; amending Section 1302, by adding requirements to operate a massage establishment as recognized by this new ordinance; amending Section 1304, adjusting fees for the lawful services recognized by this ordinance; amending Section 1305, to provide for massage establishments, and additional qualifications; amending Section 1306, adjusting procedures for denying, suspending or revoking a license; amending Section 1309, as to the requirement to display the license and identification card; amending Section 1310, to prohibit the transfer, misuse and alteration of the license; amending Section 1311, to add massage establishments to the record keeping requirements; amending Section 1312, operating requirements; eliminating Section 1315, and replacing it with a new Section 1315, and renumbering Sections 1316—1319 as Sections 1315—1318; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and providing that the operative date of this ordinance shall be March 1, 2012 | 1 | Tit. 21 | 1300—1318 |
| 22626 | 2- 2-2012 | An ordinance amending Title 28, Tulsa Revised Ordinances, entitled "The Municipal Employees' Retirement Plan," amending Section 402 to reflect the revisions to Section 504; amending 504(c) to provide for enhanced rights for participants returning from military service; adding Section 606 providing for forfeiture of benefits for participants convicted of certain crimes; amending Section 708(a) defining eligible retirement plan, and adding Section 901 to add detail regarding benefit limits and adding a definition of compensation; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency | 1 | Tit. 28 | 402 |
| | | | 2 | Tit. 28 | 504 C. |
| | | | 3 Added | Tit. 28 | 606 |
| | | | 4 | Tit. 28 | 708 A. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| | | | 5 Added | Tit. 28 | 901 |
| 22631 | 2-23-2012 | An ordinance amending Title 37, Tulsa Revised Ordinances, Chapter 3, Section 305, entitled "authority to impound vehicles," by adding a provision to allow for impounding of a vehicle when a police officer has probable cause that a vehicle is not insured as required by the compulsory insurance law of the state of Oklahoma; and providing for a severability clause | 1 | Tit. 37 | 305 |
| 22648 | 4-12-2012 | An ordinance amending Title 43-F, Tulsa Revised Ordinances, Subsection 100.B., "specific projects and purposes," paragraph 2, relating to new 2006 sales tax projects, under the category heading of "Downtown, Economic and Neighborhood Development," by changing the project title for project "Tulsa Development Authority Downtown Property Acquisition" to "Tulsa Development Authority Downtown Property Acquisition, Rehabilitation and Construction"; and declaring an emergency | 1 | Tit. 43-F | 100 B.2. |
| 22649 | 2- 2-2012 | An ordinance amending Title 5, Tulsa Revised Ordinances, entitled "Boards, Commissions and Committees," repealing Chapter 2; providing for repeal of conflicting ordinances; and declaring an emergency | 1 Rpld | Tit. 5 | 200—202 |
| 22650 | 4-12-2012 | An ordinance amending Title 5, Tulsa Revised Ordinances, entitled "Boards, Commissions and Committees," amending Chapter 1, Section 102A by adding a requirement that two (2) members of the former commission on concerns of the disabled be appointed to the Human Rights Commission, and that individuals with disabilities will continue to be so appointed after expiration of the initial terms; repealing Chapter 2; providing for repeal of conflicting ordinances; and declaring an emergency | 1 | Tit. 5 | 102 A. |
| | | | 2 Rpld | Tit. 5 | 200—202 |
| 22671 | 5- 3-2012 | An ordinance amending Title 11-B, Tulsa Revised Ordinances, Section 200, entitled "Residential Solid Waste Collection and Disposal, Residential Recyclables Collection, Processing and Marketing and Disposal of Rejects from Recycling Processing and Marketing Rate Structure," Subsection C. thereof, increasing residential collection service charges (user fees); and adding thereto Section 205, entitled "Green Waste Disposal and Rate"; providing for scope and purpose, definitions, and rate; providing for severability; providing for repeal of conflicting ordinances; and providing that the operative date of this ordinance shall be October 1, 2012 | 1 | Tit. 11-B | 200 C. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 22675 | 4-12-2012 | An ordinance amending Title 17, Tulsa Revised Ordinances, entitled "Health Regulations"; amending Chapter 4, entitled "Food Code" to adopt rules and regulations promulgated by the Oklahoma State Department of Health, Oklahoma Administrative Code (OAC) Title 310, Chapter 257, titled "Food Service Establishments" by reference as the "Food Code" of the City of Tulsa; establishing standards for the management of food personnel, operations, equipment and facilities in the City of Tulsa; enacting a new Section 401 entitled "Addendum to Food Code; City-County-Specific Licensing, Permitting, Compliance and Enforcement Requirements"; repealing Chapters Five and Six and all other ordinances or parts of ordinances in conflict herewith; providing that the operative date of this ordinance shall be May 1, 2012; providing for severability; and declaring an emergency | 1 | Tit. 17 | 400 |
| | | | 2 Added | Tit. 17 | 401 |
| | | | 3 Rpld | Tit. 17 | 500—518 |
| | | | 3 Rpld | Tit. 17 | 600—613 |
| 22698 | 6-14-2012 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Sections 701, 702, 703 and 708 to add a definition; to provide that certain sewer rates shall be applicable to users inside and outside of the City, wholesale users and to property owned by the City of Tulsa; specifying sewer rates for users who are not also water customers; specifying rates for dumping or discharging septic waste; providing that these sewerage rates shall be effective on October 1, 2012; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 701 |
| | | | 2 | Tit. 11-C | 702 |
| | | | 3 | Tit. 11-C | 703 |
| | | | 4 | Tit. 11-C | 708 |
| 22699 | 6-14-2012 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 3, titled "Water Rates"; amending Sections 302, 303, 304, 305, 306 and 307 to provide that certain water rates shall be applicable to property located inside and outside the corporate limits of the City of Tulsa, or on property owned by the City of Tulsa; providing that these water rates shall be effective on October 1, 2012; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 302 |
| | | | 2 | Tit. 11-C | 303 |
| | | | 3 | Tit. 11-C | 304 |
| | | | 4 | Tit. 11-C | 305 |
| | | | 5 | Tit. 11-C | 306 |
| | | | 6 | Tit. 11-C | 307 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22701 | 6-21-2012 | An ordinance amending Title 11-B, Tulsa Revised Ordinances, Section 113 entitled Collection of Recyclables, and Section 200 entitled Residential Solid Waste Disposal and Collection Rate Structure, Subsections B and C thereof, revising residential collection service charges (user fees) and temporarily suspending collection, processing and marketing of residential recyclables; providing for scope and purpose, definitions, and rate; providing for severability; providing for repeal of conflicting ordinances; providing that the operative dates of this ordinance shall be for the period July 2, 2012 through September 30, 2012 and declaring an emergency | 1 | Tit. 11-B | 113 |
| | | | 2 | Tit. 11-B | 200 B. |
| | | | 3 | Tit. 11-B | 200 C. |
| 22702 | 6-21-2012 | An ordinance amending Title 11-B, Tulsa Revised Ordinances, Section 104, entitled "Collection of Solid Waste," adding thereto Subsection E, providing for severability; providing for repeal of conflicting ordinances; providing that the operative date of this ordinance shall be July 2, 2012 and declaring an emergency | 1 | Tit. 11-B | 104 |
| 22711 | 7-19-2012 | An ordinance amending Title 12 Tulsa Revised Ordinances, Chapter 8, "Housing and Urban Development Grants," Section 805, "The Fund Allocation Committee," amending Subsection C of said Section 805, providing for an optional extension of time for the Committee to publish funding recommendations, dependant on a majority vote of the entire membership of the Committee; repealing all ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 12 | 805 C. |
| 22719 | 7-19-2012 | An ordinance amending Title 37, Tulsa Revised Ordinances, Chapter 12 entitled "Miscellaneous Provisions" by adding a new Section 1213 entitled "Forget-Me-Not Vehicle Safety Ordinance;" providing for severability; and declaring an emergency | 1 Added | Tit. 37 | 1213 |
| 26658 | 3-15-2012 | An ordinance amending Title 42-B, Tulsa Revised Ordinances, entitled "Form Based Code," Section 102 thereof, eliminating paragraph C and the table stated therein; relettering paragraph D as paragraph C and adding a new paragraph D providing for application of Title 42 when Title 42B is silent; and amending Section 204 thereof, revising the table in paragraph C and adding descriptive text following the table; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 42-B | 102 |
| | | | 2 | Tit. 42-B | 204.C. |
| 26660 | 3-15-2012 | An ordinance amending Title 27, Tulsa Revised Ordinances, by creating a new chapter thereto to be codified as Chapter 29, entitled "Door to Door Solicitation;" providing for definitions; providing for certain offenses as described herein; providing for penalties; providing for a severability clause; and declaring an emergency | 1 Added | Tit. 27 | 2900—2904 |
| 22724 | 7-26-2012 | An ordinance amending Title 37-A, Tulsa Revised Ordinances, titled "Emergency Medical Services Code", Chapter 2, Section 200, entitled "Definitions," by adding a definition of the phrase "TotalCare Program;" repealing all ordinances or parts of ordinances in conflict herewith; and providing for a severability clause | 1 | Tit. 37-A | 200 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22741 | 8-20-2012 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Rights-of-Way Occupancy Management," Section 1206A.3.a; increasing the amount of occupancy fee to be charged to occupancy permit holders in order to recover said permit holder's pro rata share of the burden on the rights-of-way; providing for repeal of conflicting ordinances; providing an operative date of August 1, 2012; and declaring an emergency | 1 | Tit. 11 | 1206.A.3.a. |
| 22751 | 9-20-2012 | An ordinance amending Title 24, Tulsa Revised Ordinances, titled "Nuisances Classified", Chapter 1, Section 103, entitled "Nuisances Affecting Peace and Safety," by amending subsection "N" thereof prohibiting the repeated use of real property or structure thereon to commit felony violations of the Oklahoma Uniform Controlled Dangerous Substances Act by requiring such felony violations to have resulted in a felony conviction in order to constitute a public nuisance and repealing all ordinances or parts of ordinances in conflict herewith; providing for a severability clause; and declaring an emergency | 1 | Tit. 24 | 103 |
| 22756 | 9-20-2012 | An ordinance amending Title 52, Tulsa Revised Ordinances, the Electrical Code of the City of Tulsa, Oklahoma, by adopting the National Fire Protection Association (NFPA) 2011 Edition of NFPA-70, the "National Electrical Code (NFPA-70 2011)", as published by the National Fire Protection Association; providing standards for and governing electrical wiring design, protection, and installation methods; regulating electrical materials, equipment and appliances; providing standards for special occupancies and special equipment; providing for the administration, issuance, revocation, and suspension of certificates of registration; providing for the issuance of permits and performing inspections; requiring registration of electrical and electrical sign contractors, journeymen and apprentices; continuing the electrical examining and appeals board, and its duties and responsibilities; providing for bonding and insurance and cash deposits; providing penalties for violation of the Electrical Code; repealing all ordinances or parts of ordinances in conflict herewith; providing for preservation and protection of existing rights; providing for severability; providing that the operative date of this ordinance shall be November 1, 2012; and declaring an emergency | 1 | Tit. 52 | 100—116, 200 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22757 | 9-20-2012 | An ordinance amending the Plumbing Code of the City of Tulsa, Oklahoma, Title 56, Tulsa Revised Ordinances, by adopting the ICC International Plumbing Code, 2009 Edition, including Appendices B, C, D, E, F and G, as published by the International Code Council, Inc.; providing for and governing the design, installation, construction, fabrication, alteration, location, repair, venting, material quality standards, conversion of plumbing systems, in new and existing buildings including sanitary facilities, water supplies and distribution, stormwater and sewage disposal in buildings; providing for the administration thereof, issuance of permits, collection of fees, making of inspections; continuation of the plumbing and appeal board; requiring registration of plumbing licenses, payment of registration fees; requiring that registered license holders post insurance; providing penalties for the violation thereof; preserving and protecting existing rights and remedies; providing for severability; repealing all other ordinances or parts of ordinances in conflict herewith; providing that the operative date of this ordinance shall be November 1, 2012; and declaring an emergency | 1 | Tit. 56 | 100, 101 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22758 | 9-20-2012 | An ordinance amending the Mechanical Code of the City of Tulsa, Oklahoma, Title 59, Tulsa Revised Ordinances, entitled "Mechanical Code"; amending Title 59, Tulsa Revised Ordinances, Chapters 1, 2 and 3; adopting "The International Mechanical Code, 2009 Edition," as published by the International Code Council, Inc. (ICC), as the Mechanical Code of the City of Tulsa, Oklahoma; providing for and governing the design, construction, fabrication, erection, alteration, location, enlargement, equipment, repair, removal, conversion, use and maintenance of mechanical systems, including heating systems, ventilating systems, cooling systems, steam and hot water heating systems, process piping, boilers and pressure vessels, appliances utilizing gas, liquid or solid fuel, chimneys and vents, mechanical refrigeration systems, fireplaces, barbecues, incinerators, and crematories; providing for the administration, issuance and revocation or suspension of certificates of registration; providing for the issuance of permits, making of inspections, collection of fees; continuing the mechanical examiners and appeals board and duties and responsibilities therefor; continuing qualifications for and requiring the registration of defined classifications of mechanical contractors; providing for the examination and licensing of stationary engineers; requiring licensed operators to operate and maintain certain equipment; imposing duties and responsibilities on property owners; providing for the conditions and maintenance of all property, buildings and structures; providing standards for supplied utilities and facilities and other physical things and conditions essential to ensure that structures are safe, sanitary and fit for occupation and use; providing penalties for the violation thereof; adopting "The International Fuel Gas Code, 2009 Edition," as published by the International Code Council, Inc. (ICC), as part of the Mechanical Code; providing for and governing the design, construction, fabrication, erection, alteration, location, enlargement, equipment, repair, removal, conversion, use and maintenance of fuel gas piping, fuel gas utilization equipment, and related accessories; providing for the administration thereof, issuance and revocation or suspension of certificates of registration; providing for the issuance of permits, making of inspections, collection of fees; providing qualifications for and requiring the registration of defined classifications of mechanical contractors; requiring the posting of bonds and public liability insurance; providing penalties for the violation thereof; repealing all other ordinances or parts of ordinances in conflict herewith; providing for preservation and protection of existing rights; providing for severability; providing that the operative date of this ordinance shall be November 1, 2012; and declaring an emergency | 1 | Tit. 59 | 100, 101 |
| | | | 2 | Tit. 59 | 200, 201 |
| | | | 3 | Tit. 59 | 300, 301 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22759 | 9-20-2012 | An ordinance amending Title 14, Tulsa Revised Ordinances, The Fire Prevention Code of the City of Tulsa, Oklahoma; adopting the International Code Council (ICC) International Fire Code, 2009 Edition, including appendices "B" through "J," as amended; designating the Fire Marshal in the City of Tulsa as the Fire Code Official as used in the International Fire Code, 2009 Edition, defining fire code official's duties; establishing regulations governing precautions against fires; regulating the installation, operation, maintenance and testing of fire protection systems; providing for the maintenance and use of means of egress, providing regulations for the use and maintenance of equipment, processes and occupancies; providing regulations for materials handling; providing penalties for violations of Title 14; providing for the issuance of permits, collection of fees, and the making of inspections; providing for issuance and revocation or suspension of licenses and permits; repealing all ordinances or parts of ordinances in conflict herewith; providing for existing rights and remedies; providing that the operative date of this ordinance shall be November 1, 2012; providing for severability; and declaring an emergency | 1 | Tit. 14 | 100, 101 |
| 22760 | 9-20-2012 | An ordinance amending Title 51 Tulsa Revised Ordinances, the Building Code of the City of Tulsa, Oklahoma, Chapter 4; adopting the ICC International Existing Building Code, 2009 Edition, as published by the International Code Council, Inc., excluding Appendices "A" and "B", as amended in this ordinance; providing optional requirements and regulations for the repair, alteration, change of occupancy, addition, relocation, and demolition of existing buildings, other than one- and two-family dwellings and townhouses; providing for the issuance of permits, collection of fees, and making of inspections; providing for appeals; providing definitions; providing for the classification of work, repairs, levels of alterations, change in occupancy, and additions to existing buildings; establishing requirements for historic buildings, and relocated or moved buildings; providing for compliance alternatives and construction safeguards; providing penalties for violations; providing that the operative date of this ordinance shall be November 1, 2012; providing for severability; and declaring an emergency | 1 | Tit. 51 | 400, 401 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22761 | 9-20-2012 | An ordinance amending Title 51, Tulsa Revised Ordinances, the Building Code of the City of Tulsa, Oklahoma, Chapter 1; adopting the ICC International Building Code, 2009 Edition, as published by the International Code Council, Inc., including Appendix "G", as amended in this ordinance, pertaining to and governing the design, construction, fabrication, erection, alteration, location, enlargement, equipment, repair, demolition, moving, conversion, and use and maintenance of all buildings and structures other than detached one- and two-family dwellings, and townhouses; providing for the issuance of permits, collection of fees, and making of inspections; providing for issuance and revocation or suspension of certificates of registration; continuing the building, housing, and fire prevention appeals board and providing duties and responsibilities therefor; establishing qualifications for and requiring the registration of defined classifications of certain contractors and journeymen; requiring the posting of the bond and public liability insurance; providing penalties for the violation thereof; repealing all ordinances or parts of ordinances in conflict herewith; preserving and protecting existing rights and remedies; providing that the operative date of this ordinance shall be November 1, 2012; providing for severability; and declaring an emergency | 1 | Tit. 51 | 100, 101 |
| 22773 | 10- 4-2012 | An ordinance amending Title 43, Tulsa Revised Ordinances, entitled "City of Tulsa Sales Tax Code," requiring vendors to collect and remit sales tax, amending Section 105(c) to provide for an increased penalty, to clarify that failure to collect is a misdemeanor offense, and to provide for each day of such failure to be a separate violation; amending 105(d) to provide for an increased penalty, to clarify that failure to remit is a misdemeanor offense, and to provide for each day of such failure to be a separate violation; amending 105(e) to clarify that failure to secure a sales tax permit is a misdemeanor offense, and providing for each day without a permit to be a separate violation; amending Section 110 to provide for an increased penalty, to clarify that failure to file or filing a fraudulent return is a misdemeanor offense, and to provide for each day to be a separate violation; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and providing for an emergency | 1 | Tit. 43 | 105, 110 |
| 22774 | 10- 4-2012 | An ordinance amending Title 45, Tulsa Revised Ordinances, entitled "City of Tulsa Use Tax Code," amending Section 112 to provide for an increased penalty for failure to file a return or filing a false return, clarifying that the offense is a misdemeanor, and providing for each day to be a separate violation; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and providing for an emergency | 1 | Tit. 45 | 112 |
| 22798 | 12-20-2012 | An ordinance amending and correcting Ordinance No. 22618, passed and approved by the Council of the City of Tulsa, Oklahoma on the 5th day of January, 2012, and approved by the Mayor on the 12th day of January, 2012, which erroneously replaced Section 401, Subsection B of the ordinance instead of Section 401, Subsection C of the ordinance; providing for a severability clause; and repealing all ordinances or parts of ordinances in conflict herewith | 1 | Tit. 5 | 401 C. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22813 | 1-31-2013 | An ordinance amending Title 12, of the Tulsa Revised Ordinances, entitled "Internal Policies", by repealing Chapter 8, entitled "Housing and Urban Development Grants", and enacting a new Title 12, Chapter 8 establishing certain definitions to be used in Chapter 8; providing for a fair and efficient process for allocating Federal Housing and Urban Development Grants, including, but not limited to, community development block grant funds, home funds, Hopwa Funds, and emergency solutions grant funds, and developing a consolidated plan and an annual action plan; providing for the scope of the chapter; providing for the creation and duties of the HUD community development committee; providing for grant processes, including but not limited to, applicant workshops, proposal deadlines, public hearings, the final resolution on consolidated plan and use of funds, and submission to HUD of necessary documents; providing for the provision of quarterly reports to the City Council and Mayor; providing for off cycle awards and allocations; providing for appeals; and declaring an emergency | 1 Rpld | Tit. 12 | 800—811 |
| | | | Added | Tit. 12 | 800—808 |
| 22816 | 2- 7-2013 | An ordinance amending Title 6, Chapter 5, Tulsa Revised Ordinances, titled "Finance Department"; with the addition of Section 502 titled "Director to report fee schedule" providing for severability; and providing for repeal of conflicting ordinances. | 1 Added | Tit. 6 | 502 |
| 22817 | 2- 7-2013 | An ordinance amending Title 19, Tulsa Revised Ordinances, titled "Legal Department"; repealing Section 112 "License to Use City Property" thereof | 1 Rpld | Tit. 19 | 112 |
| 22826 | 2-14-2013 | An ordinance amending Title 49, Tulsa Revised Ordinances, entitled "Administrative, Permit and License Fees"; enacting, restating, consolidating and superseding permit, license, certificate, registration and service fees codified in Titles 11, 11-A, 11-C, 14, 35, 50, 51, 52, 55, 56 and 59; relating to regulatory provisions codified in Title 11, entitled "Public Works Department," Title 11-A, entitled "Stormwater Drainage," Title 11-C, entitled "Waterworks and Sewerage," Title 14, entitled "Fire Prevention Code," Title 35, entitled "Infrastructure Development," Title 50, entitled "Annual Permits," Title 51, entitled "Building Code," Title 52, entitled "Electrical Code," Title 55, entitled "Existing Structures Code," Title 56, entitled "Plumbing Code," and Title 59, entitled "Mechanical Code"; providing for the issuance of permits, licenses, certificates, registrations and the collection of fees related to certain trades and contractors; requiring the posting of certain bonds and public liability insurance; providing civil penalties for certain violations; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 49 | 100—120 |
| | | | | Tit. 49 | 200—204 |
| | | | | Tit. 49 | 300—325 |
| | | | | Tit. 49 | 400—405 |
| | | | | Tit. 49 | 500—503 |
| | | | | Tit. 49 | 600—603 |
| | | | | Tit. 49 | 800—806 |
| | | | | Tit. 49 | 900—906 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | | Tit. 49 | 1200—1206 |
| | | | | Tit. 49 | 1300—1302 |
| | | | | Tit. 49 | 1400—1454 |
| 22845 | 3-14-2013 | An ordinance amending Title 35, Tulsa Revised Ordinances, entitled "Infrastructure Development"; revising definitions; revising permit categories; adding a provision that contractors performing in an unsatisfactory manner may be denied an annual contract; revising the rights-of-way temporary use permit for temporary activity, clarifying limits on "temporary use"; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 35 | 100, 101 |
| | | | | Tit. 35 | 200—208 |
| | | | | Tit. 35 | 300 |
| | | | | Tit. 35 | 400 |
| | | | | Tit. 35 | 500 |
| | | | | Tit. 35 | 600—606 |
| | | | | Tit. 35 | 700 |
| | | | | Tit. 35 | 800—803 |
| | | | | Tit. 35 | 900 |
| | | | | Tit. 35 | 1000—1004 |
| 22850 | 3-28-2013 | An ordinance amending Title 11-C, Chapter 4, Tulsa Revised Ordinances, entitled "Spavinaw Water District"; changing references to "the Public Works Department" to "the Water and Sewer Department"; deleting City's rental to the public of boats and outboard motors; revising fees for boat permits on the Spavinaw Reservoir Area; revising boating rules for the Spavinaw Reservoir Area; revising fees for boat storage; revising fees for campground rental; revising seasonal dates of operation for developed campground at Lake Eucha; providing for repeal of conflicting ordinances; providing for severability; declaring an emergency; and providing an operative date of April 1, 2013 | 1 | Tit. 11-C | 400—422 |
| 22851 | 3-28-2013 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, Chapter 12, relating to "sewer use," providing for general provisions; general sewer use requirements; pretreatment of wastewater; wastewater discharge permit application; wastewater discharge permit issuance process; reporting requirements; compliance monitoring; confidential information; publication of users in significant noncompliance; administrative enforcement remedies; judicial enforcement remedies; supplemental enforcement action; affirmative defenses to discharge violations; fees; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 1200—1213 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22852 | 4- 4-2013 | An ordinance amending and correcting Ordinance No. 22415, the 2011 Oklahoma Natural Gas Company Franchise, passed and approved by the Council of the City of Tulsa, Oklahoma on the 19th day of May, 2011, and approved by the Mayor on the 23rd day of May, 2011 and codified as Title 15 Tulsa Revised Ordinances, Chapter 3; correcting a scrivener's error in Title 15, Chapter 3, section 307, Subsection D of the ordinance, entitled "Dimension and Location Criteria"; providing for a severability clause; and repealing all ordinances or parts of ordinances in conflict herewith | 1 | Tit. 15 | 307 D. |
| 22856 | 4-18-2013 | An ordinance amending Title 27, Tulsa Revised Ordinances, Chapter 19 entitled "False Pretenses and Frauds" by amending Section 1900 to increase the penalty for said offense and include the penalty provision therein; by amending Section 1901 to include certain other definitions necessary due to amendments made to subsequent sections; by amending Sections 1902, 1903, 1907 and 1908 to incorporate certain provisions necessitated by modifications to State law; by expressly repealing the current provisions of Sections 1904, 1905 and 1906 to be consistent with modifications made to State law; by amending Section 1910 to include the penalty provision therein; by amending Section 1911 formerly entitled "Penalties" to reflect a relocation of those penalty provisions into the respective sections within Chapter 19 detailing each offense; and renaming Section 1911 as "Embezzlement" and creating a new offense of embezzlement as declared to be a misdemeanor under State law within the "Penal Code" of the City of Tulsa, Oklahoma; and declaring an emergency | 1 | Tit. 27 | 1900 |
| | | | 2 | Tit. 27 | 1901 |
| | | | 3 | Tit. 27 | 1902 |
| | | | 4 | Tit. 27 | 1903 |
| | | | 5 Rpld | Tit. 27 | 1904—1906 |
| | | | 6 | Tit. 27 | 1907 |
| | | | 7 | Tit. 27 | 1908 |
| | | | 8 | Tit. 27 | 1909 |
| | | | 9 | Tit. 27 | 1910 |
| | | | 10 | Tit. 27 | 1911 |
| 22895 | 6-20-2013 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 3, titled "Water Rates"; amending Sections 302, 303, 304, 305, 306 and 307 to provide that certain water rates shall be applicable to property located inside and outside the corporate limits of the City of Tulsa, or on property owned by the City of Tulsa; providing that these water rates shall be effective on October 1, 2013; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 1 | Tit. 11-C | 302 |
| | | Tit. 11-C | 2 | | 303 |
| | | Tit. 11-C | 3 | | 304 |
| | | Tit. 11-C | 4 | | 305 |
| | | Tit. 11-C | 5 | | 306 |
| | | Tit. 11-C | 6 | | 307 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22896 | 6-20-2013 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Sections 702, 703 and 708 to provide that certain sewer rates shall be applicable to users inside and outside of the City, wholesale users and to property owned by the City of Tulsa; specifying sewer rates for users who are not also water customers; specifying rates for dumping or discharging septic waste; providing that these sewerage rates shall be effective on October 1, 2013; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency | 2 | Tit. 11-C | 702 |
| | | | 3 | Tit. 11-C | 703 |
| | | | 4 | Tit. 11-C | 708 |
| 22897 | 6-27-2013 | An ordinance amending Title 52, Tulsa Revised Ordinances, the Electrical Code of the City of Tulsa, Oklahoma, eliminating the requirement for an electrical sign permit to be issued by the City; eliminating the registration of electrical sign contractors, journeymen, and apprentices; and eliminating the examination and certification of electrical sign contractors and journeymen; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 52 | 100—114, 200 |
| 22898 | 6-27-2013 | An ordinance amending Title 51, Tulsa Revised Ordinances, the Building Code of the City of Tulsa, Oklahoma, Chapter 1; amending Sections 105.3.6 and 105.3.6.1 to eliminate unintended reference to the Oklahoma State Board of Health from each section; amending Section 110.3.3.2 to include the definition of "substantial improvement" as applied by FEMA; amending Section 3107.3 titled "definitions" to eliminate "sign contractor types," "sign contractor," "electrical sign contractor," "electrical sign contractor," and "electrical sign journeyman"; repealing Sections 3107.5.6 and 3107.5.6.1 to eliminate licensing fees and permits for sign contractors; renumbering section 3107.5.7 to 3107.5.6; repealing regulations applicable to sign contractors, electrical sign contractors, and electrical sign journeymen; renumbering Section 3107.18 as 3107.17 and Section 3107.19 as 3107.18; providing for City Council to conduct a public hearing to approve or disapprove an application for a house moving permit; providing for notice of the public hearing; renumbering Sections 3410.7.1, 3410.7.1.1, 3410.7.2, 3410.7.3, 3410.7.4, 3410.7.5, 3410.7.6, 3410.7.7, 3410.8, 3410.8.1, 3410.8.2, 3410.9, 3410.10, 3410.11, 3410.12, 3410.12.1, 3410.12.2, 3410.12.2, 3410.12.3, 3410.13, 3410.13.1, 3410.13.2, 3410.13.3, 3410.13.4, 3410.13.5, 3410.13.6, 3410.13.7, 3410.13.8, 3410.14, 3410.15, 3410.16, 3410.8.1, 3410.8.1.1, 3410.8.2, 3410.8.3, 3410.8.4, 3410.8.5, 3410.8.6, 3410.8.7, 3410.9, 3410.9.1, 3410.9.2, 3410.10, 3410.11, 3410.12, 3410.13, 3410.13.1, 3410.13.2, 3410.13.3, 3410.14, 3410.14.1, 3410.14.2, 3410.14.3, 3410.14.4, 3410.14.5, 3410.14.6, 3410.14.7, 3410.14.8, 3410.15, 3410.16, 3410.16.1, and 3410.16.2 respectively; repealing all ordinances or parts of ordinances in conflict herewith; preserving and protecting existing rights and remedies; providing for severability; and declaring an emergency | 1 | Tit. 51 | 100, 101 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22910 | 7-18-2013 | An ordinance amending Title 11 Tulsa Revised Ordinances, titled "Public Works Department," Chapter 11, titled "Prequalification of Contractors", Section 1102 titled "Certificates of Prequalification" to delete the automatic prequalification provision; and providing for severability | 1 | Tit. 11 | 1102 |
| 22917 | 8- 1-2013 | An ordinance amending Title 11-A, Stormwater Drainage, Tulsa Revised Ordinances, Section 200 entitled "Definitions" to revise a definition of impervious surface and to include a definition of gravel; and Section 202 entitled "Rate Schedule" and to revise Section B, entitled "all other real estate" and to include a credit for gravel surfaces; setting forth the time and scope of applicability; providing for severability; repealing all conflicting ordinances and declaring an emergency | 1 | Tit. 11-A | 200 |
| | | | 2 | Tit. 11-A | 202 |
| 22918 | 8- 1-2013 | An ordinance amending Title 43-F, Tulsa Revised Ordinances, Subsection 100.B., "Specific Projects and Purposes," Paragraph 2, relating to new 2006 sales tax projects, under the category heading of "River Parks," by reducing project "River West Festival Park Renovation" to $7,500,000.00 from $7,600,000.00 and reducing project "River Parks Facilities Rehabilitation and Replacement to $350,000.00 from $500,000.00; amending Paragraph 2 of Section 100.B., by adding the project "Zink Lake Dam Repair" with an estimated cost of $250,000.00 for a total amended cost estimate of $16,275,000.00; and declaring an emergency | 1 | Tit. 43-F | 100.B.2. |
| 22921 | 8-22-2013 | An ordinance amending Tulsa Revised Ordinances Title 43, "City of Tulsa Sales Tax Code", the sales tax ordinance of the City of Tulsa, Oklahoma; enacting a new Section 100, "Sales Tax Levied", setting an extended temporary sales tax levy of one and one-tenth percent (1.1%) in addition to the current permanent two percent (2%) sales tax, for the period of time beginning July 1, 2014 and continuing until the full amount of Five Hundred Sixty-Three Million, Seven Hundred Thousand Dollars and no Cents ($563,700,000.00) has been collected, but in no event continuing beyond seven (7) years, that is, June 30, 2021, at which time the said sales tax shall be reduced from three and one-tenth percent (3.1%) to the said permanent two percent (2%); providing notice to the Oklahoma Tax Commission when such amount or date has been reached and said sales tax can be so reduced; enacting a new Section 118, "Purposes of Revenue", declaring the purpose of this sales tax to be providing revenue for the support of the functions of municipal government of the City of Tulsa, and all revenue from the said sales tax in excess of the permanent two percent (2%) shall be expended on capital improvements as listed in detail in Title 43-H of Tulsa Revised Ordinances, "2014 Sales Tax Policy"; repealing Section 120, "Termination Date"; providing that if on November 12, 2013 the voters of the City of Tulsa do not pass and approve said sales tax, the amendments stated herein shall be null and void and of no further effect; repealing all ordinances or parts of ordinances in conflict herewith; providing for a severability clause; and declaring an emergency | 1 | Tit. 43 | 100 |
| | | | 2 | Tit. 43 | 118 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | 3 Rpld | Tit. 43 | 120 |
| 22922 | 8-22-2013 | An ordinance creating a new Title 43-H, Tulsa Revised Ordinances, establishing the official policy of the City of Tulsa, Oklahoma, with regard to the expenditure of all monies received from extending a temporary sales tax levy of one and one-tenth percent (1.1%) for the period of time beginning July 1, 2014, and continuing until the full amount of five hundred sixty-three million, seven hundred thousand dollars and no cents ($563,700,000.00) has been collected, but in no event continuing beyond seven (7) years, namely June 30, 2021, which sales tax question will be voted upon November 12, 2013 (the "2014 extended 1.1% sales tax"); listing projects and purposes which will be accomplished from said revenues; creating the 2014 extended 1.1% sales tax overview committee and appointing members thereof; specifying powers and duties of said committee and officers and employees of the City of Tulsa, Oklahoma; establishing a special revenue fund known as the 2014 extended 1.1% sales tax fund, wherein all revenues received from said temporary sales tax levy, together with interest earned thereon, shall be deposited; prohibiting the expenditure of any of said funds for any purpose other than the projects and purposes set forth herein; prescribing certain mandatory duties of the secretary of the council and the council of said city; providing for public notice and hearings upon any proposal to amend or repeal the ordinance; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 Added | Tit. 43-H | 100—103 |
| 22923 | 8- 8-2013 | An ordinance amending Title 10, Elections, Tulsa Revised Ordinances, Section 300 entitled "Elections on Funding of Riverside Drive and/or Houston Avenue Improvements," adding to the activities described in Subsection B for which the provisions of subsection a shall not apply, all improvements to Riverside Drive between the 2300 and 3400 blocks south, associated with the development referred to as "the Gathering Place" as conceptually presented by the developer in June, 2013; repealing all ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 10 | 300 |
| 22932 | 7-25-2013 | An ordinance amending Title 37, Tulsa Revised Ordinances, Chapter 10 entitled "Bicycles;" by amending the language of Section 1012 entitled "Parking Zones" to clarify when those parking zones have applicability for parking of bicycles, rickshaws or motorized scooters; by creating a new Section 1015 entitled "Overtaking Bicycles" consistent with the language provided by Oklahoma Statutes; and providing for severability | 1 | Tit. 37 | 1012 |
| | | | 2 Added | Tit. 37 | 1015 |
| 22941 | 9-12-2013 | An ordinance amending Title 49, Tulsa Revised Ordinances, entitled "Administrative, Permit and License Fees," Chapter 3, adopting a new Section 304 to provide for collection of a storm shelter fee; renumbering the existing Sections 304 through 325 as Sections 305 through 326, respectively; repealing all ordinances in conflict herewith; and declaring an emergency | 1 Added | Tit. 49 | 304 |
| | | | 2 Rnbd | Tit. 49 | 304—325 |
| | | | as | Tit. 49 | 305—326 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 22973 | 10-24-2013 | An ordinance amending Title 37-A, Tulsa Revised Ordinances, titled "Emergency Medical Services Code", Section 100, subsection B, by revising ambulance response time standards; amending Section 111, subsection C, by adding language defining high demand periods, as they pertain to exceptions to the response time standard; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 37-A | 100 B. |
| | | | 2 | Tit. 37-A | 111 C. |
| 22994 | 12-12-2013 | An ordinance repealing Title 5, Chapter 8, Tulsa Revised Ordinances, related to the sign advisory board; and declaring an emergency | 1 Rpld | Tit. 5 | 800—803 |
| 22995 | 12-12-2013 | An ordinance amending Title 24, Tulsa Revised Ordinances, titled "Nuisances," Chapter 2, Sections 201, 203, 205, 207, 209, 210, 211, Chapter 3, Sections 302 and 305, and Chapter 4, Sections 403 and 404 to include designations for business or calendar day limitations; amending Chapter 2, Section 201 by adding a new subsection C, to provide a definition of "business days," "days" and "calendar days" and renumbering the following subsections; amending Chapter 4, Section 401 by revising the length of time a building must have been boarded and secured to be considered dilapidated; providing for severability; repealing all ordinances or parts of ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 24 | 201 |
| | | | 2 | Tit. 24 | 203 |
| | | | 3 | Tit. 24 | 205 B. |
| | | | 4 | Tit. 24 | 207 B. |
| | | | 5 | Tit. 24 | 209 E. |
| | | | 6 | Tit. 24 | 210 |
| | | | 7 | Tit. 24 | 211 C. |
| | | | 8 | Tit. 24 | 302 |
| | | | 9 | Tit. 24 | 305 |
| | | | 10 | Tit. 24 | 401 A. |
| | | | 11 | Tit. 24 | 403 |
| | | | 12 | Tit. 24 | 404 |
| 22999 | 12-12-2013 | An ordinance amending Title 51, Tulsa Revised Ordinances, the Building Code of the City of Tulsa, Oklahoma, Chapter 1; amending Sections 113.1 through 113.1.11 by replacing the building, housing & fire prevention appeals board and vesting authority in the board of appeals to hear and decide appeals of decisions by code officials pursuant to Tulsa Revised Ordinances, Titles 14, 51, 52, 56 and 59; providing the composition of the board, the organization and operation of the board; the procedures to be followed by the board; the powers and duties of the board; providing decision making authority for the board; repealing all ordinances or parts of ordinances in conflict herewith; preserving and protecting existing rights and remedies; providing for severability; and declaring an emergency | 1 | Tit. 51 | 100, 101 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23000 | 12-12-2013 | An ordinance amending the building code of the City of Tulsa, Oklahoma, Title 51 Tulsa Revised Ordinances, Chapter 2; amending Sections R109.4, R112.1, R112.1.1 and R112.1.2 replacing the building, housing and fire prevention appeals board and vesting authority in the board of appeals as created in Title 51, Tulsa Revised Ordinances, Chapter 1; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 51 | 200—202 |
| 23001 | 12-12-2013 | An ordinance amending Title 51 Tulsa Revised Ordinances, the Building Code of the City of Tulsa, Oklahoma, Chapter 4; amending Sections 109.6 and 112.1 by replacing the building, housing and fire prevention appeals board and vesting authority in the board of appeals as created in Title 51, Tulsa's revised ordinances, Chapter 1; amending Sections 105.3.6 and 105.3.6.1 to eliminate unintended reference to the Oklahoma State Board of Health from each section; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 51 | 400, 401 |
| 23002 | 12-12-2013 | An ordinance amending Title 52, Tulsa Revised Ordinances, the electrical code of the City of Tulsa, Oklahoma, creating a new Section 109 by replacing the electrical examining and appeals board and vesting appeal and other authority in the board of appeals as created in Title 51, Tulsa's Revised Ordinances, Chapter 1; prohibiting unlicensed electrical work in the City of Tulsa and requiring registration with the City by one who would do electrical work; renumbering Sections 110 as 109, 110.1 as 109.1, 113 as 110, 113.1 as 110.1, 113.1.1 as 110.1.1, 113.1.2 as 110.1.2, 113.2 as 110.2, 113.3 as 110.3, 113.4 as 110.4, 113.5 as 110.5, 113.6 as 110.6, repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 Rpld | Tit. 52 | 109, 111, 112 |
| | | | Rnbd | Tit. 52 | 110 |
| | | | as | Tit. 52 | 109 |
| | | | Rnbd | Tit. 52 | 113 |
| | | | as | Tit. 52 | 110 |
| | | | Rnbd | Tit. 52 | 114 |
| | | | as | Tit. 52 | 111 |
| | | | | Tit. 52 | 100—111, 200 |
| 23003 | 12-12-2013 | An ordinance amending the plumbing Code of the City of Tulsa, Oklahoma, Title 56, Tulsa Revised Ordinances, entitled "Plumbing Code;" amending Sections 109 through 109.8.3 by replacing the plumbing and appeals board and vesting appeal and other authority in the board of appeals as created in Title 51, Tulsa's Revised Ordinances, Chapter 1; amending Section 111 requiring registration with the City of Tulsa and prohibiting licensed contractors from employing or supervising unlicensed plumbing work or allowing such work by an apprentice unless such apprentice is supervised by a licensed plumbing contractor or journeyman; amending Section 111.8 to authorize revocation or suspension of certificates of registration by the board of appeals; providing for severability; repealing all other ordinances or parts of ordinances in conflict herewith; and declaring an emergency | 1 | Tit. 56 | 100, 101 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23004 | 12-12-2013 | An ordinance amending the Mechanical Code of the City of Tulsa, Oklahoma, Title 59, Tulsa Revised Ordinances, entitled "Mechanical Code"; amending Part I titled "ICC International Mechanical Code, 2009 Edition," Section 108.7.4 & Section 109.2 by replacing the mechanical examiners and appeals board and vesting appeal and other authority in the board of appeals as created in Title 51, Tulsa's Revised Ordinances, Chapter 1; repealing Sections 109.2.1 through 109.8; amending Section 111.7 to authorize the board of appeals to suspend or revoke certificates of registration; amending Part II titled "Stationary Engineers," Sections 200 and 201, transferring certain authority from the mechanical examiners and appeals board to the code official; and authorizing the board of appeals to deny, revoke, suspend or cancel, for certain causes, licenses issued to stationary engineers and process steam boiler operators; amending Part III titled "International Fuel Gas Code, 2009 Edition," Section 109.0 providing that appeals of orders, decisions or determinations made by code officials shall be heard by the board of appeals as established by Title 51, Chapter 1, Tulsa Revised Ordinances; repealing all other ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 59 | 100, 101 |
| | | | 2 | Tit. 59 | 200, 201 |
| | | | 3 | Tit. 59 | 300, 301 |
| 23005 | 1- 9-2014 | An ordinance amending Title 21, Tulsa Revised Ordinances, titled "licenses", related to authorization to pursue and exercise a trade, occupation or business in the City of Tulsa; amending Chapter 13, titled "Massage Businesses"; amending Section 1301, definitions by adding terms and deleting terms to come into compliance with this new ordinance; amending Section 1302, by adding requirements to operate a massage establishment as recognized by this new ordinance; amending section1303 clarifying language related to exemptions; amending Section 1304, adjusting fees for the lawful services recognized by this ordinance; amending Section 1305, clarifying operating/qualification requirements related to the application process; amending Section 1306, adjusting procedures for denying, suspending or revoking a license; amending section 1307 and section 1308 to specify appeals procedure; amending Section 1308, as to the requirement to display the license and identification card; amending Section 1309, to prohibit the transfer, misuse and alteration of the license; amending Section 1310, to add massage establishments to the record keeping requirements; amending Section 1311, operating requirements; and renumbering Sections 1309—1319 as Sections 1308-1318; repealing all ordinances or parts of ordinances in conflict herewith; and providing for severability | 1 | Tit. 21 | 1300—1318 |
| 23006 | 1- 9-2014 | An ordinance amending Title 21, Chapter 10, Tulsa Revised Ordinances, entitled "Coin Operated Devices," Section 1003; increasing the amount of annual license fee for certain coin operated devices and allowing proration of certain annual fees on a quarterly basis; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency | 1 | Tit. 21 | 1003 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23007 | 1-22-2014 | An ordinance amending Title 37, Tulsa Revised Ordinances, Section 203, Subsection "E" to increase the pre-set fine set forth therein for a violation of Section 525 entitled "No valid disabled parking insignia" from One Hundred Fifty Dollars ($150.00) to Two Hundred Fifty Dollars ($250.00); amending Title 37, Section 525, Subsection "C" to increase the penalty consistent with Oklahoma law to a fine of not more than Five Hundred Dollars ($500.00); providing for a severability clause; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | Tit. 37 | 203 E. |
| | | | 2 | Tit. 37 | 525 C. |
| 23013 | 12-12-2013 | An ordinance amending Title 14, Tulsa Revised Ordinances, the Fire Prevention Code of the City of Tulsa, Oklahoma; amending Section 105.7 to renumber code references made therein; renumbering Sections 105.7.3 as 105.7.5, 106.2.1 as 106.2.3, 308.3.1 as 308.1.4, 508.4 as 507.4, 907.2.10.5 as 907.2.11.5; amending references to a board of appeals by replacing the building, housing and fire prevention appeals board and vesting authority in the board of appeals as created in Title 51, Tulsa's Revised Ordinances, Chapter 1; amending code references in Section 803.5.1 and Section 901.6.3; amending Sections 901.3.1 and 901.3.2 to eliminate unintended reference to the Oklahoma State Board of Health from each Section; amending Section 904.11.6.1 to provide for existing automatic fire-extinguishing systems; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency | 1 | Tit. 14 | 100, 101 |
| 23019 | 1-16-2014 | An ordinance amending Title 37, Tulsa Revised Ordinances, titled "Tulsa Revised Traffic Code"; amending Chapter 1, Section 100 to add definitions for multi-space parking meter and single-space parking meter; providing for severability; and providing for repeal of conflicting ordinances | 1 | Tit. 37 | 100 |
| 23020 | 1-16-2014 | An ordinance amending Title 45, Chapter 1, Tulsa Revised Ordinances, entitled "City of Tulsa Use Tax Code," Section 100; decreasing the amount of the use tax from 3$^{3}/_{12}$% to 3$^{1}/_{10}$%; providing for severability; providing for repeal of conflicting ordinances; and providing that the operative date for this ordinance shall be July 1, 2014 | 1 | Tit. 45 | 100 |
| 23036 | 2- 6-2014 | An ordinance amending Title 37, Chapter 5, Tulsa Revised Ordinances, entitled "Tulsa Revised Traffic Code"; amending Section 500 to add reference to multi-space parking meters and other methods of payment; amending Section 501 to delete reference to director of public works; amending Section 502 to add "or spaces"; amending Section 503 to revise parking districts in subsection A and meter rates in subsection B and to add reference to other unlawful forms of payment in subsection D; amending Section 509 to specify the hours and days of enforcement; amending Section 511 to describe the manner of parking by referencing the curb instead of the parking meter in subsections A and B; amending Section 512 to allow for other methods of designating commercial vehicle parking; amending Section 520 to revise the purpose for which taxi cabs may park in a loading zone; amending Section 522 to add reference to "fire lanes"; amending Section 524 to delete subsections A and B; providing for severability; and providing for repeal of conflicting ordinances | 1 | Tit. 37 | 500—503, 509, 511, 512, 520, 522, 524 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23037 | 2- 6-2014 | An ordinance ammending Title 37, Tulsa Revised Ordinances, titled "Tulsa Revised Traffic Code"; amending Chapter 1, Section 100 to add definitions for multi-space parking meter and single-space parking meter; providing for severability; and providing for repeal of conflicting ordinances | 1 | Tit. 37 | 100 |
| 23054 | 2-20-2014 | An ordinance amending Title 27, Tulsa Revised Ordinances, Section 2102 entitled "Malicious Mischief" to reduce the jurisdictional amount for a misdemeanor offense under Oklahoma law from less than two thousand five hundred dollars ($2,500.00) to less than one thousand dollars ($1,000.00); to provide for a penalty for any violation thereof; providing for a severability clause; providing for repeal of conflicting ordinances; and declaring an emercency | 1 | Tit. 27 | 2102 |
| 23058 | 2-13-2014 | An ordinance amending Title 28, Tulsa Revised Ordinances, entitled "Municipal Employees' Retirement Plan," amending 301(a) to increase the amount of basic employee contributions; providing for severability; and providing for repeal of conflicting ordinances; and providing that the operative date for this ordinance shall be July 1, 2014 | 1 | Tit. 28 | 301 A. |
| 23062 | 3- 6-2014 | An ordinance amending Title 6, Chapter 2, Tulsa Revised Ordinances, entitled "Finance Department"; amending Chapter 2 to add a new Section 203 entitled "Emergency Operations Reserve"; also amending Chapter 2 to add a new Section 204 entitled "Post-Employment Healthcare Benefit Reserve"; providing for severability; and providing for repeal of conflicting ordinances | 1 Added | Tit. 6 | 203, 204 |
| 23063 | 3- 6-2014 | An ordinance amending Title 36, Tulsa Revised Ordinances, entitled "Taxicabs"; amending Section 103 entitled "Administration and Appeals," authorizing an order of restitution upon a finding of an overcharge; providing for severability; and providing for repeal of conflicting ordinances | 1 | Tit. 36 | 103 |
| 23067 | 3-13-2014 | An ordinance correcting Ordinance 22921, adopted by the city council on August 22, 2013 and approved by the mayor on August 27, 2013, which contained a scrivener's error; amending Tulsa Revised Ordinances Title 43, "City of Tulsa Sales Tax Code", the Sales Tax Ordinance of the City of Tulsa, Oklahoma, Section 100, "Sales Tax Levied", setting an extended temporary sales tax levy of one and one-tenth percent (1.1%) in addition to the current permanent two percent (2%) sales tax, for the period of time beginning July 1, 2014 and continuing until the full amount of five hundred sixty-three million, seven hundred thousand dollars and no cents ($563,700,000.00) has been collected, but in no event continuing beyond seven (7) years, that is, June 30, 2021, at which time the said sales tax shall be reduced from three and one-tenth percent (3.1%) to the said permanent two percent (2%); providing notice to the Oklahoma Tax Commission when such amount or date has been reached and said sales tax can be so reduced; repealing all ordinances or parts of ordinances in conflict herewith; providing for a severability clause; and declaring an emergency | 1 | Tit. 43 | 100 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23072 | 3-27-2014 | An ordinance amending Title 21, Tulsa Revised Ordinances, entitled "Licenses," adopting a new Chapter 23 entitled "Licenses," adopting a new Chapter 23 entitled "Mobile Vendors"; providing certain definitions; establishing license and site permit requirements and exemptions; placing limitations and restrictions on vendor activities; providing for the application process and fees; establishing the term of the license and requiring license display; providing health regulations, standards of operation, insurance requirements, revocation rules and appeals associated with the license regulation; providing penalties for violations; providing for severability; repealing all ordinances | 1 Added | Tit. 21 | 2300—2321 |
| 23099 | 5- 1-2014 | An ordinance amending Title 26, Tulsa Revised Ordinances, titled "Parks, Mall and Plaza," amending Chapter 1, Section 103, sub-section Q and Chapter 3, Section 303 sub-section Q; complying with and in deference to state of Oklahoma law, Title 21, Oklahoma Statutes, Section 1289.24, by removing the City's ordinance regulating possession or carrying firearms in parks, recreation areas and other facilities; providing for severability; and providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | Tit. 26 | 103 Q. |
| | | | 2 | Tit. 26 | 303 Q. |
| 23100 | 5- 1-2014 | An ordinance amending Title 27, Tulsa Revised Ordinances, Chapter 15, titled "Weapons," amending the citation of the Oklahoma Statute Cited in sub-sections (1) and (3) of Section 1514, and in Section 1515; providing for severability; and providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | Tit. 27 | 1514 |
| | | | 2 | Tit. 27 | 1515 |
| 23101 | 5- 1-2014 | An ordinance amending Section 202 of Chapter 2, Title 8, Tulsa Revised Ordinances by repealing subsections (g) and (h); re-identifying the remaining subsections of said Section 202; and declaring an emergency. | 2 | Tit. 8 | 202 |
| 23112 | 5- 1-2014 | An ordinance amending Title 44, Chapter I, Tulsa Revised Ordinances, entitled "City of Tulsa Hotel Tax Code," amending Section 118 to create three new funds, titled the 'Convention & Visitors Fund,' the 'Convention & Tourism Facilities Fund,' and the 'Tulsa's Future Fund' and designating percentages of taxes to be deposited into each existing fund; providing for a severability clause; repealing all ordinances in conflict herewith and declaring an emergency. | 1 | Tit. 44 | 118 |
| 23116 | 5- 8-2014 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Right-of-Way Occupancy Management," Section 1206.a.3.a; increasing the amount of occupancy fee to be charged to occupancy permit holders in order to recover said permit holder's pro rata share of the burden on the right-of-way; providing an operative date of June 1, 2014; and declaring an emergency. | 1 | Tit. 11 | 1206.A.3.a. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 23115 | 5-22-2014 | An ordinance amending Title 37-A, Tulsa Revised Ordinances, Chapter 2, titled "Medical Service Program," amending Sections 200 and 201 of said Title 37-A to change the name of the EMSA "Totalcare Program" and the definitions of "Election Period," "Medical Service Program" and "Program Year" in Section 200; to change the reporting date for multifamily residential water customers and landlords in Section 201; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | Tit. 37-A | 200 |
| | | | 2 | Tit. 37-A | 201 |
| 23129 | 6- 9-2014 | An ordinance amending Title 21, Chapter 19, Tulsa Revised Ordinances, entitled "Intrusion Alarm Certification"; recognizing both residential and commercial alarm users and defining each; eliminating false alarm user awareness classes; increasing the residential alarm user fee for a first response certificate from $30.00 to $35.00 and establishing the commercial alarm user fee for a first alarm certificate in the amount of $75.00; providing for renewal of certificate fees; providing for cancellation of first response certificates; providing for renewal application following cancellation of a first response alarm certificate; providing for severability; repealing ordinances in conflict and declaring an emergency. | 1 Rpld | Tit. 21 | 1907, 1908 |
| | | | Rnbd | Tit. 21 | 1909, 1910 |
| | | | as | Tit. 21 | 1907, 1908 |
| | | | | Tit. 21 | 1900—1908 |
| 23124 | 6-12-2014 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 3, titled "Water Rates"; amending Sections 302, 303, 304, 305, 306, 307, and 308 to provide water and sewer rate adjustments; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Sections 702, 703, and 708 to adjust sewer service charge rates and adjust rates for dumping or discharging septic waste; amending sections providing that these rates shall be effective on October 1, 2014; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency. | 1—7 | Tit. 11-C | 302—308 |
| | | | 8, 9 | Tit. 11-C | 702, 703 |
| | | | 10 | Tit. 11-C | 708 |
| 23125 | 6-19-2014 | An ordinance amending Title 23, Tulsa Revised Ordinances, titled "Municipal Court - Procedure"; amending Section 108, titled "Schedule of Costs, Penalties and Assessments"; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | Tit. 23 | 108 |
| 23132 | 6-19-2014 | An ordinance amending Title 11-A, Chapter 2, Section 202, Tulsa Revised Ordinances, to increase the monthly service charge rate by nine percent; providing for severability; repealing all ordinances in conflict herewith; and providing an operative date of October 1, 2014. | 1 | Tit. 11-A | 202 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23133 | 6-19-2014 | An ordinance amending Title 37-A, Tulsa Revised Ordinances, Chapter 2, titled "Medical Service Program," amending Sections 200 and 201 of said Title 37-A, specifically in Section 200 to extend the 2014 Medical Service Program year through July and August 2014 and without change to the program 2014 charge during such extension period; and in Section 201 to raise the charge for single and multi-family residential water customers participating in program year 2015 and in future program years; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | Tit. 37-A | 200 |
| | | | 2 | Tit. 37-A | 201 |
| 23162 | 8-21-2014 | An ordinance assigning new duties to the City Auditor, to-wit: performance audit, governance audit, risk management audit, and internal controls audit; requiring the City Auditor to perform said audits periodically; requiring that the City Auditor report the results of said audits to the Mayor and City Council; providing for severability; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | Tit. 4 | 207 |
| 23163 | 8-21-2014 | An ordinance creating an Audit Committee of the City of Tulsa; stating the purposes of said committee; designating membership and providing method of selection of members; assigning duties to the committee; regulating the election of a Chairman, the keeping of records, and conduct of meetings; requiring City personnel to assist the Committee where necessary; requiring a report to be made annually to the Mayor and City Council; repealing all ordinances in conflict herewith; providing severability; and declaring an emergency. | 1 Added | Tit. 5 | 1100—1104 |
| 23160 | 8-14-2014 | An ordinance amending Title 5, Chapter 1 to conform to the State of Oklahoma Constitution by removing references to affirmative action; amending section 100(D) to revise the policy statement regarding the utilization of certain business enterprises; adding Section 100(E) to confirm the City's commitment to non-discrimination in contracting; and renumbering the existing 100(E) to 100(F); deleting Section 101(H) defining minority/female business enterprises; deleting Section 110(A)(1) defining affirmative action; deleting Section 110(A)(5) defining female/women business enterprise; deleting Section 110(A)(6) defining good faith effort; deleting Section 110(A)(7) defining minority business enterprise; deleting Section 110(B)(2)(b) requiring that City contractors practice affirmative action; amending Section 110(8)(2)(i) to remove affirmative action from the scope of the Compliance Official's inquiry; deleting Section 110(B)(2)(i) requiring City contractors to utilize, or make good faith efforts to utilize, minority and female businesses; adding Section 110(B)(2)(k) to require City contractors to comply with state and federal funding conditions; deleting Section 110(c)(2) to remove review of affirmative action programs from the scope of the compliance official's duties; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | Tit. 5 | 100—112 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 23153 | 8- 7-2014 | An ordinance adding a new chapter, Chapter 30, to Title 27 Tulsa Revised Ordinances, concerning secondhand merchandise dealers; providing definitions; prohibiting certain practices; requiring record keeping and making records available for inspection by law enforcement; requiring reports to law enforcement of transactions in secondhand merchandise; requiring that certain merchandise be held by the dealer for a certain period of time; providing a penalty; providing for severability; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 Added | Tit. 27 | 3000—3005 |
| 23189 | 8-28-2014 | An ordinance amending Title 36, Tulsa Revised Ordinances entitled "Taxicabs and Paratransit Vehicles" providing a new title "Taxicabs, Paratransit Vehicles, and Transportation Network Companies" amending Title 36 Chapter One, Section 102 entitled "Exclusions" adding vehicles providing transportation network services adding a new Chapter Two, titled "Transportation Network Vehicle Services"; providing a statement of policy and purpose; establishing certain definitions; providing for administration and appeals; providing requirements for a TNC certificate; placing requirements upon certificate holders; providing procedures for issuance of certificates, application, fees, renewal and suspension or revocation; providing for severability; and repealing conflicting ordinances. | 1 | Tit. 36(tit.) | |
| | | | 2 | Tit. 36 | 102 |
| | | | 3 Added | Tit. 36 | 200—213 |
| 23148 | 7-17-2014 | An ordinance amending Title 37, Tulsa Revised Ordinances, Chapter 2, Section 203, Subsection E, to increase the pre-set fine set forth therein for a violation of Section 500 entitled "Meter Parking (Overtime)" from Fifteen Dollars ($15.00) to Twenty-Five Dollars ($25.00); providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | Tit. 37 | 203E |
| 23171 | 8-21-2014 | An ordinance amending Title 42, Tulsa Revised Ordinances, titled "Zoning and Property Restrictions", related to restrictions on land uses within the City of Tulsa; amending Chapter 2, titled "General Provisions"; amending Section 200, titled "Zoning and Supplemental Zoning Districts Established"; adding a new zoning district titled "Mixed-Use Institutional District", designated by the abbreviation "MX-F"; adding a new chapter, Chapter 7a, establishing a new zoning district titled "Mixed-Use Institutional District"; providing the purposes and minimum requirements for the MX-I District; establishing definition of terms; providing principal and accessory uses permitted within the MX-I district and establishing requirements and conditions for such uses; providing uses permitted by special exception within the MX-I District and establishing requirements and conditions for such uses; establishing bulk and area requirements for development within the MX-I District; and providing other requirements for development within the MX-I District; providing for severability; repealing all ordinances or parts of ordinances in conflict herewith; and declaring an emergency. | 1 | Tit. 42 | 200 |
| | | | 2 Added | Tit. 42 | 750—755 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 23214 | 11- 6-2014 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, Chapter 12, relating to "Sewer Use," Section 1200, Subsection D, by adding the term "UV transmittance" to the terms to be defined; amending Section 1201, Subsection A.2, by adding to the specific prohibitions the act of introducing into the publicly owned treatment works any materials that inhibit UV transmittance and impact the ability to achieve compliance with disinfection permit requirements; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | Tit. 11C | 1200 D. |
| | | | 2 Added | Tit. 11C | 1201 A.2.r. |
| 23277 | 4-9-2015 | An ordinance amending Title 23, Tulsa Revised Ordinances, Chapter 1, Section 111 subsection A. to provide between eight and thirteen judges shall be appointed for the municipal criminal court and of those up to ten individuals may be designated as an associate judge of the municipal criminal court and three of the judges shall be designated judge of the municipal criminal court; and declaring an emergency. | 1 | 23 | 111 |
| 23279 | 4-16-2015 | An ordinance amending Title 55, Chapter 1, Tulsa Revised Ordinances, entitled "Property Maintenance Code" Section 303.2 adding the option to secure the gate by a padlock or similar device which requires a key, electric opener or integral combination which will allow the latch to be at any height; providing for severability; repealing conflicting provisions; and declaring an emergency. | 1 | 55 | 111 |
| 23280 | 4-16-2015 | An ordinance amending Title 5, Chapter One, Tulsa Revised Ordinances, entitled "Human Rights Commission," amending Section 100 (a) to add gender identity and sexual orientation to the protected classes for housing discrimination purposes; amending Section 104(a) to add a definition of "gender identity" as Section 104(a)(2) and to add a definition of "sexual orientation" as Section 104(a)(7); amending Sections 104(b)(1), 104(b)(2), 104(b)(3), 104(b)(4) and 104(b)(5) to add gender identity and sexual orientation as classes protected from housing discrimination; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | Tit. 5 | 100 A. |
| | | | | Tit. 5 | 104 |
| 23286 | 5-7-2015 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Right-Of-Way Occupancy Management," Section 1206.A.3.a; increasing the amount of occupancy fee to be charged to occupancy permit holders in order to recover said permit holder's pro rata share of the burden on the right-of-way; providing an operative date of June 1, 2015; providing for severability; repealing conflicting ordinances; and declaring an emergency. | 1 | Tit. 11 | 1206 A.3.a. |
| 23287 | 5-7-2015 | An ordinance amending Title 37, Tulsa Revised Ordinances, entitled "Tulsa Revised Traffic Code"; amending Chapter 5, Section 503.A.3 to expand parking district "restaurant and entertainment district"; amending section 503.A.6. to redefine parking district "south district"; amending section 503.B entitled "meter rates" for parking meters in said districts; repealing all conflicting ordinances; providing for severability; and declaring an emergency. | 1 | 37 | 503 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23291 | 5-14-2015 | An ordinance amending Title 11-C, Chapter 1, Section 103, of the Tulsa Revised Ordinances, entitled "Fluoridation of Water Supply Authorized", by reducing the maximum content of fluoride to be not more than seven-tenths (0.7) parts per million (ppm); and declaring an emergency. | 1 | 11-C | 103 |
| 23294 | 5-21-2015 | An ordinance amending Title 44, Tulsa Revised Ordinances, entitled "City of Tulsa Hotel Tax Code," Section 118 thereof, eliminating paragraph D. as currently written; relettering paragraphs E. and F. as D. and E., respectively; increasing the proportion of the subject tax revenue assigned to the economic development commission fund of the City of Tulsa from 1% to 4.5%; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 44 | 118 |
| 23306 | 6-11-2015 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 3, titled "Water Rates"; amending Sections 302, 303, 304, 305, 306, 307, and 308 to provide water and sewer rate adjustments; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Sections 702, 703, and 708 to adjust sewer service charge rates and adjust rates for dumping or discharging septic waste; amending sections providing that these rates shall be effective on October 1, 2015; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency. | 1—7 | 11-C | 302—308 |
| | | | 8 | 11-C | 702 |
| | | | 9 | 11-C | 703 |
| | | | 10 | 11-C | 708 |
| 23314 | 6-18-2015 | An ordinance amending Title 11-A, Chapter 2, Section 202, Tulsa Revised Ordinances, to increase the monthly service charge rate by nine percent; providing for severability; repealing all ordinances in conflict herewith; and providing an operative date of October 1, 2015. | 1 | Tit. 11A | 202 |
| 23315 | 6-11-2015 | An ordinance amending Tulsa Revised Ordinances, Title 12, "Internal Policies", Chapter 3, "City of Tulsa Vehicle Policy"; adding definitions of "emergency" and "weather related emergency"; defining "seasonal use" and "rotational basis"; changing the number of emergency responses per month for eligibility of a take-home vehicle from 5 to 3; distinguishing police use as "sworn employees"; adding and detailing "sworn fire personnel" eligibility requirements under the "sworn employees" section; adding language that defers final say to collective bargaining agreements for sworn personnel; clarifying that all reviews of take-home vehicles be done in accordance with the fiscal year; removing IRS commuting fee; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 12 | 300—304 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23320 | 6-25-2015 | An ordinance amending Title 43-F, Tulsa Revised Ordinances, Subsection 100.B., "Specific Projects and Purposes," amending paragraph 1, relating to uncompleted 2001 Sales Tax Projects, under the category heading of "Public Safety" by deleting project "Hazardous Materials Protection Complex" having a cost estimate of $500,000.00; and amending paragraph 2 of Section 100.B, relating to new 2006 Sales Tax Projects, under the category heading of "Telecommunications" by eliminating projects "800 MHZ East Tulsa Receiver Site $1,195,000.00" and "Wireless Data Communications System $2,350,000.00"; amending paragraph 2 of Section 100.B., by adding project "Radio System Tower Controller Upgrade and Associated Equipment" having a cost estimate of $3,545,000.00 for a total amended "Telecommunications" cost estimate of $9,425,000.00; amending paragraph 2 of Section 100.B, under the category heading of "Streets and Transportation" by adding project "Riverside Drive and other related infrastructure" having a cost estimate of $750,000 for a total amended "Streets and Transportation" cost estimate of $127,924,169.10; revising subtotals and totals accordingly; correcting scrivener errors; and declaring an emergency. | 1 | 43-F | 100 B.1. |
| | | | 2 | 43-F | 100 B.2. |
| 23321 | 6-25-2015 | An ordinance amending Title 43-G, Tulsa Revised Ordinances, Subsection 100.B.2, "Projects and Purposes," under the category heading of "Streets and Transportation" by adding project "Riverside Drive and other related infrastructure" having a cost estimate of $5,500,000 for a total amended "Streets and Transportation" cost estimate of $172,128,000; and declaring an emergency. | 1 | 43-G | 100 B.2. |
| 23322 | 6-25-2015 | An ordinance amending Title 43-H, Tulsa Revised Ordinances, Subsection 100.B., "Specific Projects and Purposes," Project Number 6, under the category heading of "Public Works and Transportation," by changing the project title for project "Widen Riverside Drive, 24th to 33rdplace South" to "Riverside Drive and other related infrastructure"; and declaring an emergency. | 1 | 43-H | 100 B. |
| 23324 | 6-25-2015 | An ordinance amending Title 43-E, Tulsa Revised Ordinances, Subsection 100.B, "Projects and Purposes," under the category heading of "Streets and Transportation" by adding project "Riverside Drive and other related infrastructure" having a cost estimate of $1,200,000.00 for a total amended "Streets and Transportation" cost estimate of $181,872,204.12, revising subtotals and totals accordingly; correcting scrivener errors; and declaring an emergency. | 1—3 | 43-E | 100 B. |
| 23352 | 8-13-2015 | An ordinance amending Title 11-B, Tulsa Revised Ordinances, entitled "Solid Waste Management"; replacing Chapters 1—8 in their entirety with Chapters 1—8; providing for severability; providing for repeal of conflicting ordinances; and providing that the operative date of this ordinance shall be November 1,2015. | 1 | 11-B | 100—108, |
| | | | | 11-B | 200—212, |
| | | | | 11-B | 300—313, |
| | | | | 11-B | 400—403, |
| | | | | 11-B | 500—504, |
| | | | | 11-B | 600—606, |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | | 11-B | 700, 701, |
| | | | | 11-B | 800—803 |
| 23362 | 9-10-2015 | An ordinance amending Title 12, Tulsa Revised Ordinances, entitled "U.S. Department of Housing and Urban Development Grants," amending Section 802 to update and correct the name of the planning and development department and the term limits for members of the HUD committee; amending Section 804 to provide a single one-day extension within a five-year period for applicants missing proposal deadlines, to provide three business days for applicants to submit missing proposal documentation and to clarify and correct proposal requirements and proposal review process; amending Section 805, Subsection 1, to apply to the "shelter" category of emergency solutions grant projects; clarifying and correcting Section 806 to eliminate redundant language; amending Section 807 to provide a new process for off cycle awards and allocations; and amending Section 808, Subsection b, to correct an omission in the last sentence by inserting the words "classified service"; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 12 | 800—808 |
| 23369 | 9-24-2015 | An ordinance amending Title 37, Tulsa Revised Ordinances, Chapter 6 entitled "Moving Regulations and Traffic-Control Devices" by adding a new Section 666 entitled "Texting While Driving" making it unlawful to operate a motor vehicle within the City of Tulsa, Oklahoma, while manually composing, sending or reading an electronic text message; providing for a penalty; providing for exceptions; providing for severability and providing for an effective date of November 1,2015. | 1 Added | 37 | 666 |
| 23382 | 10- 1-2015 | An ordinance amending Title 28, Tulsa Revised Ordinances, entitled "Municipal Employees Retirement Plan," amending Section 101 to add definitions for actuarial accrued liability, actuarially determined employer contribution, closed amortization schedule, funded ratio, normal cost, plan improvement, present value of fully projected benefits and unfunded actuarial accrued liability; amending Section 300 to add 300(b) setting forth employer contribution requirements for plan years beginning January 1,2016 and to add 300(c) setting forth requirements for amendment or repeal; amending Section 1005 to add a due date for the actuarial report; amending Section 1101 to add 1101(c) requiring a closed amortization schedule policy and 1101(d) prohibiting plan improvements after January 1, 2016 and adding 1101(e) limiting the plan's assumed rate of return; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 28 | 101 |
| | | | 2 | 28 | 300 |
| | | | 3 | 28 | 1005 |
| | | | 4 | 28 | 1101 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23393 | 10-29-2015 | An ordinance amending Title 37, Tulsa Revised Ordinances, Chapter 7, Section 741 entitled mandatory child passenger restraint system; modifying requirements for the use of a child passenger restraint system for certain children; providing exceptions; modifying the provision relating to admissibility of a violation of this section in any civil proceeding or action; increasing the penalty provision for a violation of this section; providing for a severability clause; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | 37 | 741 |
| 23394 | 10-29-2015 | An ordinance amending Title 51, Tulsa Revised Ordinances, the Building Code of the City of Tulsa, Oklahoma, Chapter One, entitled the International Code Council (ICC) International Building Code, 2015 Edition; amending, adding or deleting provisions as provided herein; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 51 | 100, 101 |
| 23396 | 10-29-2015 | An ordinance amending Title 51 Tulsa Revised Ordinances, the Building Code of the City of Tulsa, Oklahoma, Chapter Four, entitled the International Code Council (ICC) International Existing Building Code, 2015 Edition; amending, adding or deleting provisions as provided herein; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 51 | 400, 401 |
| 23397 | 10-29-2015 | An ordinance amending Title 52, Tulsa Revised Ordinances, the Electrical Code of the City of Tulsa, Oklahoma, by adopting the National Electrical Code, 2014 Edition (NFPA 70-2014) amending, adding or deleting provisions thereof as provided herein; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 52 | 100—110, |
| | | | | 52 | Ch. 2 |
| 23398 | 10-29-2015 | An ordinance amending Title 56, Tulsa Revised Ordinances, the Plumbing Code of the City of Tulsa, Oklahoma, by adopting the International Code Council (ICC) International Plumbing Code, 2015 Edition, amending, adding or deleting provisions thereof, as provided herein; providing for severability; repealing all other ordinances or parts of ordinances in conflict herewith; and declaring an emergency. | 1 | 56 | 100, 101 |
| 23401 | 11- 6-2015 | An ordinance amending Title 37, Tulsa Revised Ordinances, Chapter 2, Section 203, Subsection E., to provide for a pre-set fine for a violation of Section 666 entitled "Texting While Driving;" establishing the pre-set fine as Seventy-Five Dollars ($75.00); and declaring an emergency. | 1 | 37 | 203 E. |
| 23403 | 11- 9-2015 | An Ordinance relating to Zoning and Property Restrictions, repealing existing Title 42, Tulsa Revised Ordinances (Zoning and Property Restrictions) in its entirety; repealing existing Title 42-B Tulsa Revised Ordinances (Form-Based Code) in its entirety; and adopting a new Title 42, Tulsa Revised Ordinances (Zoning and Property Restrictions), Chapters 1 through 95, to be known and referred to as the "Tulsa Zoning Code" | 1 Rpld | 42 | Title 42, Chs. 1—18 |
| | | | Rpld | 42 | Apps. A—C |
| | | | | 42 | Title 42(note) |
| | | | 2 Rpld | 42B | Title 42B |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23420 | 1-28-2016 | An ordinance amending Tulsa Revised Ordinances Title 43, "City of Tulsa Sales Tax Code", the sales tax ordinances of the City of Tulsa, Oklahoma; enacting a new section, Section 100.1, "limited purpose, public safety permanent sales tax levied", setting a limited-purpose, permanent sales tax levy of sixteen one-hundredths of one percent (.16%) for a period of time beginning January 1, 2017 and continuing until July 1, 2021, on which date the said sixteen one-hundredths of one percent (.16%) permanent sales tax shall increase to a twenty-six one-hundredths of one percent (.26%) permanent sales tax, in addition to any sales tax then existing; declaring that the limited purpose of this sales tax is to providing revenue for the support of the public safety functions of the City of Tulsa; describing the purposes and expenditures for which the limited-purpose tax will be made; stating that all revenue from the said sales tax shall be expended only for public safety as listed in detail in Title 43-I of Tulsa Revised Ordinances, "2017 Limited-Purpose Public Safety Permanent Sales Tax Policy"; providing that if on April 5, 2016 the voters of the City of Tulsa do not pass and approve said sales tax, the amendments stated herein shall be null and void and of no further effect; repealing all ordinances or parts of ordinances in conflict herewith; providing for a severability clause; and declaring an emergency. | 1 Added | 43 | 100.1 |
| 23421 | 1-28-2016 | An ordinance amending Tulsa Revised Ordinances Title 43, "City of Tulsa Sales Tax Code", the sales tax ordinances of the City of Tulsa, Oklahoma; enacting a new section, Section 100.2, "limited-purpose street maintenance and public transportation permanent sales tax levied", setting a limited-purpose permanent sales tax levy of eighty-five thousandths of one percent (.085%), to begin January 1, 2017, in addition to any sales tax then existing; declaring that the limited purpose of this sales tax is to provide revenue for the support of the street maintenance, traffic and public transportation functions of the City of Tulsa; stating that all revenue from the said sales tax shall be deposited into a limited-purpose fund created by the city, and shall be expended only for street maintenance, traffic and public transportation as listed in detail in Title 43-J of Tulsa Revised Ordinances, "2017 limited-purpose street maintenance and public transportation permanent sales tax policy"; providing that if on April 5, 2016 the voters of the City of Tulsa do not pass and approve said sales tax, the amendments stated herein shall be null and void and of no further effect; repealing all ordinances or parts of ordinances in conflict herewith; providing for a severability clause; and declaring an emergency. | 1 Added | 43 | 100.2 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23422 | 1-28-2016 | An ordinance amending Tulsa Revised Ordinances Title 43, "City of Tulsa Sales Tax Code", the sales tax ordinances of the City of Tulsa, Oklahoma; enacting a new section, Section 100.3, "limited-purpose economic development temporary sales tax levied", setting a temporary sales tax levy of three hundred five thousandths of one percent (.305%) beginning January 1, 2017, increasing to eight hundred five thousandths of one percent (.805%) on July 1, 2021, then decreasing to three hundred five thousandths of one percent (.305%) on July 1, 2025 and expiring on December 31, 2031; declaring that the limited purpose of this sales tax is to provide revenue for the support of economic development functions of the City of Tulsa, including Arkansas River Development, and paying debt service on indebtedness issued for such purposes; describing the projects and expenditures for which the limited-purpose tax would be made; stating that all revenue from the said sales tax shall be expended only for economic development as listed in detail in Title 43-K of Tulsa Revised Ordinances, "2017 Economic Development Temporary Sales Tax Policy"; providing that if on April 5, 2016 the voters of the City of Tulsa do not pass and approve said sales tax, the amendments stated herein shall be null and void and of no further effect; repealing all ordinances or parts of ordinances in conflict herewith; providing for a severability clause; and declaring an emergency. | 1 Added | 43 | 100.3 |
| 23427 | 1-14-2016 | An ordinance amending Title 11, Tulsa Revised Ordinances entitled "Public Works Department" by amending Chapter 10 entitled "standard specifications for highway construction," amending Section 1001, to revise standard specifications set forth in parts 411.04.N and 414.04.R; and providing for severability; and providing for repeal of conflicting ordinances. | I | 11 | 1000, 1001 |
| 23435 | 2-11-2016 | An ordinance amending Title 14, Tulsa Revised Ordinances, the Fire Prevention Code of the City of Tulsa, Oklahoma; by adopting the International Code Council (ICC) International Fire Code, 2015 Edition, amending, adding or deleting provisions thereof, as provided herein; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 14 | 100, 101 |
| 23436 | 2-11-2016 | An ordinance amending Title 59, Tulsa Revised Ordinances, the Mechanical Code of the City of Tulsa, Oklahoma, by adopting Chapters One, Two and Three of the International Mechanical Code, 2015 Edition, including stationary engineers and the International Fuel Gas Code, 2015 Edition, amending, adding or deleting provisions thereof, as provided herein; repealing all other ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 59 | 100, 101 |
| | | | 2 | 59 | 200, 201 |
| | | | 3 | 59 | 300, 301 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23458 | 3-10-2016 | An ordinance amending Title 36, Taxicabs, Paratransit Vehicles, and Transportation Network Companies, Tulsa Revised Ordinances, Section 137, entitled "vehicle design, unit numbers, advertising, cruising lights" to provide authority to a holder to paint up to but no more than five fleet vehicles pink and to require the drivers of any pink vehicle to possess and to distribute business cards to passengers to avoid confusing the occupied cab from that of another holder; repealing all ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 36 | 137 |
| 23479 | 5- 5-2016 | An ordinance amending Title 35, Tulsa Revised Ordinances, entitled Infrastructure Development; Chapter Eight, entitled "Infrastructure Development Advisory Board", specifically amending Section 800 to add a "purpose" paragraph; renumbering existing Sections 800 through 803 as Sections 801 through 804, respectively; amending Section 800, entitled "membership" by adding a consulting engineer and eliminating a banker or insurance agent engaged in the financial aspect of development and amending homeowner or neighborhood association member to homeowner association or neighborhood association member; amending Section 801 to add to the duties, upon request, assisting in the review and analysis of other real estate development related processes; to advise the director on policies, standards, ordinances and codes that relate to real estate development; to advise the directors of planning and development and engineering services on any proposed recommendation to adopt, modify or rescind policies, standards, ordinances and codes that relate to real estate development before any action is taken; and provide, upon request, to the mayor a joint recommendation (with the director) regarding any proposal to adopt, modify, or rescind policies, standards, ordinances and codes that relate to real estate development under consideration by the city council; amending Section 803 to provide the initiation of an appeal of a decision of a code official related to infrastructure development by appealing to the director who shall conduct an informal review to determine if a formal appeal is necessary and if so, shall notify the board to proceed with a hearing after notice; and, amending Section 803 (h) entitled "appeals to the city council" by providing that the council hearing shall be no later than thirty days from the date the notice of appeal was filed with the city clerk unless otherwise agreed by the appellant; providing for severability; repealing ordinances in conflict; and declaring an emergency. | 1 | 35 | 800—804 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23482 | 4-28-2016 | An ordinance amending Title 21, Tulsa Revised Ordinances, Licenses, enacting a new Chapter 24, entitled "Utility Vehicles"; providing a statement of intent and purposes; establishing certain definitions to be used in Chapter 24; authorizing operation of utility vehicles on certain streets after meeting certain conditions; requiring a license and registration of utility vehicles; providing procedure for issuance of licenses, application, fees, renewal, suspension or revocation; providing administration and appeals; providing for lawful manner of operating a utility vehicle; providing a disclaimer; providing a penalty for violation; providing for severability; repealing ordinances in conflict and declaring an emergency. | 1 Added | 21 | 2400—2407 |
| 23483 | 4-28-2016 | An ordinance amending Title 36, Tulsa Revised Ordinances, Taxicabs and Paratransit Vehicles, Chapter I, entitled "Taxicab and Paratransit Vehicle Regulations"; amending the title to: "Taxicab, Paratransit Vehicle and Utility Vehicle For Hire Regulations"; amending all applicable provisions to include regulation of utility vehicle for hire service as defined herein; amending regulatory provisions to authorize operation of utility vehicle for hire service upon meeting licensing requirements; requiring a license/certificate and registration of utility vehicles for hire; providing procedure for issuance of licenses, fees, renewal, suspension or revocation of same; establishing insurance requirements, permit requirements and operating requirements for utility vehicle for hire service; requiring a chauffer license for operation of utility vehicle for hire; providing for administration of utility vehicle for hire services; providing certain standards of operation for utility vehicle for hire service; providing for appeal of administrative ruling related to utility vehicle for hire service; providing for lawful operation of utility vehicle for hire service within city I.D.L., only; providing a penalty for violation related to operation of utility vehicle for hire service; providing for severability; repealing ordinances in conflict and declaring an emergency. | 1 | 36 | 100—150 |
| 23487 | 5-19-2016 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Right-of-Way Occupancy Management," Section 1206A.3.a, increasing the amount of occupancy fee to be charged to occupancy permit holders in order to recover said permit holder's pro rata share of the burden on the right-of-way; providing an operative date of June 1, 2016; repealing ordinances in conflict and declaring an emergency. | 1 | 11 | 1206 A.3.a. |
| 23499 | 6- 9-2016 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, entitled "Waterworks and Sewerage," Chapter 3 and Chapter 7 by increasing certain water and sewer rates in order to provide 6% in additional revenue to the water fund and 9% in additional revenue to the sewer fund; providing an operative date of October 1, 2016; repealing ordinances in conflict; providing for severability. | 1 | 11-C | 302—308 |
| | | | 2 | 11-C | 702, 703 |
| | | | | | 708 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23521 | 7-21-2016 | An ordinance amending Title 36, Tulsa Revised Ordinances, entitled "Taxicabs, Paratransit Vehicles, and Transportation Network Companies" providing a new title "Taxicabs, Paratransit Vehicles and Utility Vehicle For Hire Regulations;" amending Title 36, Chapter One, Section 102 entitled "Exclusions" adding vehicles providing transportation network services; repealing Chapter 2 entitled "Transportation Network Vehicle Services" in its entirety; providing for severability; repealing ordinances in conflict and declaring an emergency. | 1 | 36 | Title |
| | | | | 36 | 102 |
| | | | 3 Rpld | 36 | 200—213 |
| 23522 | 7-21-2016 | An ordinance amending Title 21, Tulsa Revised Ordinances, titled "Licenses"; repealing Chapter 13 "Massage Business" in its entirety; providing an operative date of August 25, 2016; providing for severability; repealing ordinances in conflict and declaring an emergency. | 1 Rpld | 21 | 1300—1318 |
| 23524 | 7-21-2016 | An ordinance amending Title 24, Nuisances, Chapter 2, Procedure For Abatement, Tulsa Revised Ordinances, Section 205, entitled "Appeals From the Enforcement Official," paragraph B, entitled "Notice of Appeal"; requiring a written "notice of appeal", to be completed and timely filed with the city clerk's office; requiring notice of the date, time and place of the appeal hearing to be mailed by the enforcement official to the appellant; repealing all ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 24 | 205 |
| 23525 | 7-21-2016 | An ordinance amending Title 24, Nuisances, Chapter 2, Procedure For Abatement, Tulsa Revised Ordinances, Section 207, entitled "Appeals to the Council", paragraph B, entitled "Notice of Appeal"; requiring two copies of a written "notice of appeal to council of nuisance hearing officer decision" obtained from the city clerk or the council secretary, to be completed and timely filed with the city clerk's office; requiring the hearing on the appeal to be conducted by the council within thirty calendar days from the date of filing the notice unless a later date is agreed to by the appellant; requiring notice of the date, time and place of the appeal hearing to be mailed by the council secretary to the appellant; repealing all ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 24 | 207 |
| 23526 | 7-21-2016 | An ordinance amending Title 55, "Property Maintenance Code," Chapter 1, Tulsa Revised Ordinances, Section 111, Subsection 111.2, entitled "Notice of Appeal-Amendatory," requiring a written "notice of appeal" to be completed and timely filed with the city clerk's office; requiring notice of the date, time and place of the appeal hearing to be mailed by the council secretary to the appellant; repealing all ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 55 | 111.2 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23559 | 9-14-2016 | An ordinance amending Title 27, Tulsa Revised Ordinances, by adding a new Chapter 31 entitled "Scrap Metal Dealers"; providing for definitions; requiring a scrap metal dealer to maintain certain records relating to transactions; mandating a scrap metal dealer electronically report to the Tulsa Police Department all purchases of scrap metal; providing for hours of purchase of scrap metal by a scrap metal dealer; providing for a holding period for certain purchases of scrap metal by a scrap metal dealer; providing for certain other requirements imposed upon scrap metal dealers; providing for no holding period requirement for an exempt seller; providing for certain offenses as described herein; providing for penalties for violations of this chapter; providing for severability; and declaring an emergency. | 1—5Added | 27 | 3101—3105 |
| 23574 | 10-26-2016 | An ordinance amending Title 45, Chapter 1, Tulsa Revised Ordinances, entitled "City of Tulsa Use Tax Code," Section 100; adjusting the amount of the use tax from 3.65% and, amending Section 119, devoting 15% of said use tax to the fund created by Title 43-K Tulsa Revised Ordinances to be used toward the debt service to achieve the projects pledged therein; providing for severability; providing for repeal of conflicting ordinances; and providing that the operative date for this ordinance shall be January 1, 2017. | 1 | 45 | 100 |
| | | | 2 | 45 | 119 |
| 23575 | 10-26-2016 | An ordinance amending Title 28, Tulsa Revised Ordinances, entitled "The Municipal Employees' Retirement Plan," amending Section 504.D to provide for credited service to cease following the end of the month in which earnings cease for participants on long term disability, effective January 1, 2017; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 28 | 504 |
| 23584 | 10-26-2016 | An ordinance amending Title 11 Tulsa Revised Ordinances, titled "Public Works Department," Chapter 3, titled "Traffic Engineering", Section 303 titled "Meter Hoods" to establish a method of calculating the fee charged to hood a parking meter or inactivate a parking space; providing for severability; repealing ordinances in conflict; and declaring an emergency. | 1 | 11 | 303 |
| 23589 | 11-30-2016 | An ordinance amending Title 51 Tulsa Revised Ordinances, the Building Code of the City of Tulsa, Oklahoma, Chapter 2; adopting the ICC International Residential Code for One- and Two-Family Dwellings, 2015 Edition and as amended hereafter replacing the 2009 Edition as shown; providing for severability; repealing ordinances in conflict and declaring an emergency. | 1 | 51 | 200—203 |
| 23590 | 11- 2-2016 | An ordinance amending Title 51, Tulsa Revised Ordinances, the building code of the City of Tulsa, Oklahoma, Chapter 3, titled "Manufactured Homes, Mobile Homes, Modular Structures, Recreational Vehicles and Mobile Home Parks"; adding "Manufactured Homes" as defined therein to the regulatory scheme as revised therein; adding a violation penalty section; repealing all ordinances or parts of ordinances in conflict herewith; preserving and protecting existing rights and remedies; providing for severability; and declaring an emergency. | 1 | 51 | 300—311 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23595 | 11-16-2016 | An ordinance amending Title 12, Tulsa Revised Ordinances, entitled "U.S. Department of Housing and Urban Development Grants," amending Section 804, Subsection 6.c. to clarify and correct proposal requirements relating to flood plains for proposed rehabilitation and new construction projects; amending Section 807, Subsection A. by expanding the 1% of program year's annual award in the grant category to 1% of HUD grant funding for the applicable program year and limiting the applicability of this provision; amending Section 807, Subsection B. and Subsection C. by expanding the 10% of program year's annual award in the grant category to 10% of HUD grant funding for the applicable program year; and further amending Section 807 by adding Subsection D., a new category for off cycle awards and allocations; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 12 | 804 |
| | | | | | 807 |
| 23598 | 11-30-2016 | An ordinance amending Title 12, Tulsa Revised Ordinances, entitled "U.S. Department of Housing and Urban Development Grants," amending Section 804, Subsection 6.C. to clarify and correct proposal requirements relating to flood plains for proposed rehabilitation and new construction projects; amending Section 807, Subsection A. by expanding the 1% of program year's annual award in the grant category to 1% of HUD grant funding for the applicable program year and limiting the applicability of this provision; amending Section 807, Subsection B. and Subsection C. by expanding the 10% of program year's annual award in the grant category to 10% of HUD grant funding for the applicable program year; and further amending Section 807 by adding Subsection D., a new category for off cycle awards and allocations; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 12 | 804 |
| | | | | | 807 |
| 23601 | 11-30-2016 | An ordinance amending Title 51, Tulsa Revised Ordinances, entitled "Building Code" by amending Chapter Five, entitled "Residential Swimming Pools, Spas and Hot Tubs," Section 503(5) to include gates not equipped with a locking device; Section 503(6) adding swimming pools to the exceptions; Section 504 by adding a new B. to include entrapment avoidance and relettering paragraph B. to C.; adding a violation penalty section; providing for severability; and declaring an emergency. | 1 | 51 | 500—510 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 23423 | 3- 3-2016 | An ordinance creating a new title, Title 43-I, Tulsa Revised Ordinances, establishing the official policy of the City of Tulsa, Oklahoma, with regard to the expenditure of all monies received from extending a permanent sales tax levy of sixteen one-hundredths of one percent (.16%) beginning January 1, 2017 and increasing to a twenty-six one-hundredths of one percent (.26%) permanent sales tax on July 1, 2021; such tax question to be voted on by the public on April 5, 2016; listing purposes which will be accomplished from said revenues; establishing a limited purpose revenue fund known as the "2017 Limited-Purpose Public Safety Permanent Sales Tax Fund", wherein all revenues received from said permanent tax levy, together with interest earned thereon, shall be deposited; prohibiting the expenditure of any of said funds for any purpose other than the purposes set forth herein, unless amended as provided herein; providing for severability; repealing conflicting ordinances; and declaring an emergency. | 1 Added | 43-I | 100—102 |
| 23424 | 3- 3-2016 | An ordinance creating a new title, Title 43-J, Tulsa Revised Ordinances, establishing the official policy of the City of Tulsa, Oklahoma, with regard to the expenditure of all monies received from the 2017 Limited-Purpose Street Maintenance and Public Transportation Permanent Sales Tax Levy of eighty-five thousandths of one percent (.085%), for street maintenance, traffic and public transportation, beginning January 1, 2017, which sales tax levy will be voted on, April 5, 2016; providing for capital projects and purposes which will be accomplished from said revenues; establishing a special revenue fund known as the "2017 Limited-Purpose .085% Street Maintenance and Public Transportation Permanent Sales Tax Fund", wherein all revenues received from said sales tax levy, together with interest earned thereon, shall be deposited; prohibiting the expenditure of any of said funds for any purpose other than the capital projects and purposes set forth herein unless the ordinance is amended as provided herein; prescribing certain mandatory duties of the secretary of the council and the council of said city; providing for public notice and hearings upon any proposal to amend or repeal the ordinance; providing for severability; repealing conflicting ordinances; and declaring an emergency. | 1 Added | 43-J | 100—102 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 23425 | 3- 3-2016 | An ordinance creating a new title, Title 43-K, Tulsa Revised Ordinances, establishing the official policy of the City of Tulsa, Oklahoma, with regard to the expenditure of all monies received from the Limited-Purpose Economic Development Temporary Sales Tax Levy of three hundred five thousandths of one percent (.305%) beginning January 1, 2017, increasing to eight hundred five thousandths of one percent (.805%) on July 1, 2021, then decreasing to three hundred five thousandths of one percent (.305%) on July 1, 2025 and expiring on December 31, 2031; which sales tax levy will be voted on, April 5, 2016; listing projects and purposes which will be accomplished from said revenues; allowing contingency appropriations; creating the 2017 Sales Tax Overview Committee ("STOC") and appointing members thereof; specifying powers and duties of said committee and officers and employees of the City of Tulsa, Oklahoma; establishing a special revenue fund known as the "2017 Limited-Purpose Economic Development Temporary Sales Tax Fund", wherein all revenues received from said temporary sales tax levy, together with interest earned thereon, shall be deposited; prohibiting the expenditure of any of said funds for any purpose other than the projects and purposes set forth herein, unless amended as provided herein; prescribing certain mandatory duties of the secretary of the council and the council of said city; providing for public notice and hearings upon any proposal to amend or repeal the ordinance; providing for severability; repealing conflicting ordinances; and declaring an emergency. | 1 Added | 43-K | 100—103 |
| 23637 | 2- 8-2017 | An ordinance amending Title 43-K Tulsa Revised Ordinances, regarding the temporary sales tax for economic development; providing for pledges from funding partners by December 31, 2020; allowing for reallocation of funds; providing severability; repealing all ordinances not in compliance herewith; and declaring an emergency. | 1 | 43-K | 100 D. |
| 23639 | 2-22-2017 | An ordinance amending Title 5, Tulsa Revised Ordinances entitled "Boards, Commissions and Committees" by adding a new Chapter 11, creating an Advisory Commission to the City of Tulsa pursuant to the amended Charter, Article XII, Section 4, to be known as "The Greater Tulsa Area African-American Affairs Commission", providing for the appointments and terms of its members, and the powers, duties and responsibilities of the commission; repealing ordinances in conflict and providing for severability. | 1 Added | 5 | 1200, 1201 |
| 23661 | 3- 8-2017 | An ordinance amending Title 23, Tulsa Revised Ordinances, Chapter 1, Section 108 to add a subsection "g" consistent with a recent modification to state law requiring a new state penalty assessment of fifteen dollars ($15.00) be levied by the municipal court upon any defendant ordered by the court to pay fines and/or court costs as a result of driving under the influence of alcohol or other intoxicating substance and declaring an emergency. | 1 | 23 | 108 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 23681 | 4-26-2017 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Right-of-Way Occupancy Management," Section 1206A.3.a, increasing the amount of occupancy fee to be charged to occupancy permit holders in order to recover said permit holder's pro rata share of the burden on the right-of-way; providing an operative date of June 1, 2017; repealing ordinances in conflict and declaring an emergency. | 1 | 11 | 1206 A.3.a. |
| 23691 | 5-24-2017 | An ordinance amending Title 43-H, Tulsa Revised Ordinances, Subsection 100.B., "Specific Projects and Purposes," relating to new 2014 Sales Tax Projects, under the category heading of "Parks and Recreation Department," by eliminating project "Penney - Replace Splash Pad with Water Playground" and adding "Zeiglerwater Playground"; and declaring an emergency. | 1 | 43-H | 100 B. |
| 23692 | 5-24-2017 | An ordinance amending Title 43-F, Tulsa Revised Ordinances, Subsection 100.B., "Specific Projects and Purposes," Paragraph 2, relating to new 2006 Sales Tax Projects, under the category heading of "Fire," by eliminating project "New Fire Station 11 in the Area of East 11th Street South & 177th East Avenue (Land Acquisition) $500,000," by amending the cost estimate for "New Southeast Tulsa Fire Station, East 41st Street South & 122nd East Avenue," from $2,600,000 to $3,100,000; and declaring an emergency. | 1 | 43-F | 100 B.2. |
| 23693 | 5-24-2017 | An ordinance amending Title 43-F, Tulsa Revised Ordinances, Subsection 100.B., "Specific Projects and Purposes," Paragraph 2, relating to new 2006 Sales Tax Projects, under the category heading of "Fire," by changing the project title for project "New Southeast Tulsa Fire Station, East 41st Street South & 122nd East Avenue" to "New Southeast Tulsa Fire Station and Apparatus, East 41st Street South & 122nd East"; and declaring an emergency. | 1 | 43-F | 100 B.2 |
| 23697 | 5-24-2017 | An ordinance amending Title 27, Tulsa Revised Ordinances, Chapter 15 Section 1514 entitled "Weapons-Carrying-Exceptions" and Section 1515 entitled "Weapons-Selling to Minors" to exclude from regulation all knives regulated by Oklahoma Statutes; and declaring an emergency. | 1 | 27 | 1514 |
| | | | 2 | 27 | 1515 |
| 23704 | 6- 7-2017 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 3, Titled "Water Rates"; amending Sections 302, 303, 304, 305, 306, 307, and 308 to provide water and sewer rate adjustments; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Sections 702, 703, and 708 to adjust sewer service charge rates and adjust rates for dumping or discharging septic waste; amending sections providing that these rates shall be effective on October 1, 2017; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency. | 1—7 | 11-C | 302—308 |
| | | | 8, 9 | 11-C | 702, 703 |
| | | | 10 | 11-C | 708 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 23721 | 6-28-2017 | An ordinance amending Title 37, Chapter 11, entitled "Pedestrians - Rights and Duties" by amending Section 1105 entitled "Pedestrians Soliciting Ride, Employment, Business or Donations"; amending Title 37, Chapter 2, Section 203, Subsection E, to increase the pre-set fine to $150.00 for a violation of Section 1105 entitled "Stepping or Standing in a Roadway or on a Median to Solicit a Ride, Employment, Business or Donations," providing for a severability clause; and declaring an emergency. | 1 | 37 | 1105 |
| | | | 2 | 37 | 203 E. |
| 23740 | 7-26-2017 | An ordinance amending Title 11-A, Chapter 2, Section 202, Tulsa Revised Ordinances, to increase the monthly service charge rate by nine percent; providing for severability; repealing all ordinances in conflict herewith; and providing an operative date of October 1, 2017. | 1 | 11-A | 202 |
| 23742 | 7-26-2017 | An ordinance amending Title 6 Tulsa Revised Ordinances, "Finance Department", Chapter 2, "Budget", by adding a new Section, Section 205, "Annual Transfer from Enterprise Utilities to General Fund"; ordering a portion of enterprise income to be paid into the General Fund; setting forth the formula for calculating the amount of said payment; providing for severability; repealing conflicting ordinances; and declaring an emergency. | 1 Added | 6 | 205 |
| 23748 | 8- 2-2017 | An ordinance amending Title 28, Tulsa Revised Ordinances, Chapter 7, Section 701 to provide for the reduced percentage of the life annuity benefit after taking a partial lump sum payment to be calculated according to the mortality table adopted by the Board of Trustees, for participants whose benefit payments begin November 1, 2017 and after; and providing for a severability clause. | 1 | 28 | 701 |
| 23779 | 9-13-2017 | An ordinance amending Title 36, Taxicabs, Paratransit Vehicles, and Utility Vehicles for Hire, Chapter 1, entitled "Taxicab, Paratransit Vehicle and Utility Vehicle for Hire Regulations"; amending Section 101 entitled "Definitions" to include an antique, classic or special interest vehicle for hire as another category considered to be paratransit vehicles and regulated as paratransit vehicles and not as taxicabs; amending Section 136 to exempt antique, classic and special interest vehicles for hire from age limitations imposed on other vehicles regulated by this ordinance; providing for severability; repealing ordinances in conflict; providing an operative date and declaring an emergency. | 1 | 36 | 101 |
| | | | 2 | 36 | 136 |
| 23780 | 9-13-2017 | An ordinance amending Title 27, Chapter 22, Section 2208, Tulsa Revised Ordinances, concerning the use of tobacco and vapor products on city property, indoor and outdoor, including parks and recreation areas, but not including streets and sidewalks; setting out definitions; establishing penalties and enforcement; providing for severability; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | 27 | 2208 |
| 23786 | 9-20-2017 | An ordinance amending Title 37, titled "Tulsa Revised Traffic Code," Chapter 10, titled "Bicycles", to add Section 1016 titled "Bicycle Lanes"; and amending Chapter 1, titled "Words and Phrases", Section 100 titled "Words and Phrases Defined" to add "Bicycle Lane"; providing for severability, and declaring an emergency. | 1 | 37 | 1000—1016 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | 2 | 37 | 100 |
| 23814 | 11- 1-2017 | An ordinance amending Title 49, Tulsa Revised Ordinances, entitled "Administrative, Permit and License Fees"; enacting, restating, consolidating and superseding permit, license, certificate, registration and service fees codified in Titles 11, 11-A, 11-C, 14, 35, 50, 51, 52, 55, 56 and 59; relating to regulatory provisions codified in Title 11, entitled "Public Works Department," Title 11-A, entitled "Stormwater Drainage," Title 11-C, entitled "Waterworks and Sewerage," Title 14, entitled "Fire Prevention Code," Title 35, entitled "Infrastructure Development," Title 50, entitled "Annual Permits," Title 51, entitled "Building Code," Title 52, entitled "Electrical Code," Title 55, entitled "Existing Structures Code," Title 56, entitled "Plumbing Code," and Title 59, entitled "Mechanical Code"; providing for the issuance of permits, licenses, certificates, registrations and the collection of fees related to certain trades and contractors; requiring the posting of certain bonds and public liability insurance; providing civil penalties for certain violations; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; providing an operative date; and declaring an emergency. | 1 | 49 | 100—122 |
| | | | | | 200—204 |
| | | | | | 300—327 |
| | | | | | 400—405 |
| | | | | | 500—502 |
| | | | | | 600—603 |
| | | | | | 700—703 |
| | | | | | 800—803 |
| | | | | | 900—906 |
| | | | | | 1000—1004 |
| | | | | | 1200—1206 |
| | | | | | 1300—1302 |
| | | | | | 1400—1454 |
| 23818 | 1-24-2018 | An ordinance amending Title 27, entitled "Penal Code," Tulsa Revised Ordinances, by adding thereto Chapter 12-A, entitled "Stret Performers"; providing definitions; providing for rules and regulations; providing for exclusion of a certain designated areas; providing a penalty; providing for severability; providing for repeal of conflicting ordinances; providing that the operative date of this ordinance shall be February 1, 2018; and declaring an emergency. | 1 Added | 27 | Ch. 12-A, §§ 100—500 |
| 23831 | 12-13-2017 | An ordinance amending Title 4 Tulsa Revised Ordinances, Chapter 3, Section 308, "Charter Review"; requiring the City Attorney to provide a schedule of Charter amendments by October 15 of odd-numbered years; providing for severability; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | 4 | 308 |
| 23845 | 1-24-2018 | An ordinance amending Title 37 Tulsa Revised Ordinances, titled "Tulsa Revised Traffic Code," Chapter 1, titled "Words and Phrases," Section 100 titled "Words and Phrases Defined" to add definitions for "Digital Payment", "Parking Meter", and "Pay By Tag"; providing for severability; repealing ordinances in conflict; and declaring an emergency. | 1 | 37 | 100 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23846 | 1-24-2018 | An ordinance amending Title 37 Tulsa Revised Ordinances, titled "Tulsa Revised Traffic Code," Chapter 5, titled "Stopping, Standing and Parking Regulations," Section 500 titled "Parking in Parking Districts" to reclassify parking zones as parking districts and include pay by tag as a parking option; Section 502 titled "Parking Lanes" to better clarify parking locations; Section 503.A.1 to expand the boundaries of the financial district; Section 503.A.3 to expand the boundaries of the restaurant and entertainment district, and to create a new downtown parking district entitled "East District"; and Section 511, titled "Manner of Parking", to include "Back in Angled Parking provisions for district metered parking; providing for severability; and repealing ordinances in conflict. | 1 | 37 | 500 |
| | | | 2 | 37 | 502 |
| | | | 3 | 37 | 503 A. |
| | | | 4 | 37 | 511 |
| 23848 | 1-24-2018 | An ordinance amending Title 28, Tulsa Revised Ordinances, entitled "The Municipal Employees' Retirement Plan," amending Sections 601(A) and 801(A) to revise the minimum retirement age to sixty; adding Section 504(E)(3) to provide for participants employed prior to July 1, 2018 to retain existing benefit structure if reemployed within one year after termination of employment; amending Section 600(B) to reduce the multiplier to 2% for participants beginning employment July 1, 2018 or after; amending Section 601(A) to increase the early retirement age to 60 for participants beginning employment July 1, 2018 or after; amending Section 601(B) to increase the early retirement reduction to 6.0% for participants beginning employment July 1, 2018 or after; amending 601(C) and adding Section 601(D) to establish the rule of 90 for participants beginning employment July 1, 2018 or after; amending 603(B) to incorporate the revised early retirement reduction; providing for severability; and providing for repeal of conflicting ordinances. | 1 | 28 | 504 |
| | | | 2 | 28 | 600—604 |
| | | | 3 | 28 | 801 |
| 23867 | 2-28-2018 | An ordinance amending Title 14, Tulsa Revised Ordinances, the Fire Prevention Code of the City of Tulsa, Oklahoma; by the addition of a new section, Section 109.3.2.2, "Nuisance Fire Alarm", declaring that causing or allowing nuisance alarms above a certain number of times is a misdemeanor offense; establishing the number of times a nuisance alarm must occur in order to invoke the criminal provisions of this ordinance; providing a penalty; and identifying the definition; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability. | 1 | 14 | 101 |
| 23869 | 2-28-2018 | An ordinance amending Title 23, Tulsa Revised Ordinances, Chapter 1, Section 108; requiring the technology fee to be assessed upon any defendant in each and every case resulting in a conviction for a parking or standing violation enumerated in Chapter 5 of Title 37 entitled "Stopping, Standing, and Parking Regulations" and on bond forfeitures and declaring an emergency. | 1 | 23 | 108 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23870 | 2-28-2018 | An ordinance amending Title 37, Tulsa Revised Ordinances, Chapter 2, Section 203, to increase the pre-set fines for certain traffic violations (excluding parking or standing violations) by thirty-five dollars ($35.00) to include a one dollar ($1.00) increase in the Law Enforcement Education and Training (CLEET) Penalty Assessment as provided for in Title 23, Tulsa Revised Ordinances, Section 108, Subsection B; a five dollar ($5.00) increase by the State of Oklahoma of the Automated Fingerprinting Identification System (AFIS) penalty assessment as provided for in Title 23, Tulsa Revised Ordinances, Section 108, Subsection C; a five dollar ($5.00) increase by the State of Oklahoma of the Forensic Science Improvement (FSI) Penalty Assessment as provided for in Title 23, Tulsa Revised Ordinances, Section 108, Subsection D; and the Technology Fee Assessment ("TFA") as provided for in Title 23, Tulsa Revised Ordinances, Section 108, Subsection H; and to round off the preset fine amount the city receives as a fine amount on each traffic offense (excluding parking or standing violations) by one dollar ($1.00) in order keep the present fine amount ending in a "0" or a "5"; to increase the pre-set fines for certain parking or standing violations by five dollars ($5.00) to include the technology fee assessment ("TFA") as provided for in Title 23, Tulsa Revised Ordinances, Section 108, Subsection I; and to adjust certain other preset fines as shown in the chart below; and providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 37 | 203 |
| 23872 | 2-28-2018 | An ordinance amending Title 17, Chapter 4, Tulsa Revised Ordinances, entitled "Food Code," Section 401(B)(5) increasing the amount of the full and non-prorated fee for food service establishment licenses including food processing plants, to $155.00 and amending Section 401(D)(2) increasing the food employee permit to $15.00; providing for severability; repealing ordinances in conflict and declaring an emergency. | 1 | 17 | 401 B.5. |
| | | | 2 | 17 | 401 D.2. |
| 23873 | 2-28-2018 | An ordinance amending Title 37, Tulsa Revised Ordinances, titled "Tulsa Revised Traffic Code"; adding a new Chapter 14, titled "Special Events"; providing a permitting process to permit special events; providing definitions; providing standards and criteria for special events; providing regulations for operation of special events; providing cost recovery for special events, providing for insurance; providing penalties and enforcement terms; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 Added | 37 | 1400—1415 |
| 23874 | 3- 7-2018 | An ordinance amending Title 37 Tulsa Revised Ordinances, titled "Tulsa Revised Traffic Code", Chapter 5, titled "Stopping, Standing and Parking Regulations", Section 525 titled "Disabled Persons Parking", amending Subsection B to add Subsections B.1. and B.2. relating to parking a motor vehicle in a disabled parking space access aisle, wheel chair ramp, and/or wheelchair loading/unloading area with an without displaying a disabled placard or plate; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 37 | 525 B. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 23875 | 3- 7-2018 | An ordinance regarding privately-owned signs in city street right-of-way; amending Title 24 Tulsa Revised Ordinances, "Nuisances"; enacting a new subsection namely subsection "O" of Section 103, "Nuisances Affecting Peace and Safety"; declaring to be nuisances any private signs placed in or upon a public street, sidewalk, right-of-way or within twelve (12) feet of a curb or road edge; considering such signs to be abandoned; allowing summary removal of such signs from city right-of-way; providing for severability; repealing conflicting provisions; and declaring an emergency. | 1 Added | 24 | 103 O. |
| 23877 | 3- 7-2018 | An ordinance amending only Section 4 entitled "Operative Clause" of Ordinance No. 23814 published on Nov. 11, 2017; repealing all ordinances or parts of ordinances in conflict herewith; providing an operative date; and declaring an emergency. | 1 | 49 | (note) |
| 23884 | 3-28-2018 | An ordinance amending Title 21, Chapter 7, Tulsa Revised Ordinances, entitled "Beer," Section 702 reducing the license fee levied on each retail dealer dealing in nonintoxicating beverages who sells them for on premises consumption from an annual fee of Thirty Dollars ($30.00) to a fee covering three (3) months in the amount of Seven Dollars and Fifty Cents ($7.50) and reducing the license fee levied on each such retailer dealing in nonintoxicating beverages who sells them for off premises consumption from an annual fee of Fifteen Dollars ($15.00) to a fee covering three (3) months in the amount of Five Dollars ($5.00); amending Section 703 changing the expiration date of the license issued pursuant to this section from June 30 to September 30, 2018; adding a new Section 708 enacting an effective date and a date of automatic repeal of this ordinance; providing for severability; repealing ordinances in conflict and declaring an emergency. | 1 | 21 | 702 |
| | | | | 21 | 703 |
| | | | Added | 21 | 708 |
| 23885 | 3-28-2018 | An ordinance amending Title 21, Chapter 3, Tulsa Revised Ordinances, entitled "Alcohol Beverage Control" adjusting the taxes on existing occupations and adding additional occupations to conform to appropriate amounts allowed by state law; providing for effective date; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability, and declaring an emergency. | 1 | 21 | 302 |
| 23891 | 4- 4-2018 | An ordinance amending Title 1, Airports and Aircraft, Tulsa Revised Ordinances, Chapter 3, Section 301, entitled "Vehicle Operations in Public Areas," to require that each commercial ground transportation vehicle operating at Tulsa International Airport obtain a permit pursuant to the commercial ground transportation services policy adopted by the Tulsa Airports Improvement Trust, and amending Title 1, Chapter 6, Section 600, entitled "Fine Schedule," to provide for the imposition of a fine for operating without a permit under such commercial ground transportation services policy, and declaring an emergency. | 1 | 1 | 301 |
| | | | 2 | 1 | 600 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 23906 | 4-11-2018 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, entitled "Spavinaw Water District," Section 413 entitled "Boat Storage" providing that only privately owned boathouses which are physically located on the Spavinaw Reservoir pursuant to a valid permit held by the original permittee or their assigns as of July 5, 1983, or those constructed or placed thereon by owners or assigns of a valid boathouse permit before June 1, 2020, may be legally located there; providing that if owners or assigns of a valid boathouse permit, without a boathouse, fail to construct or place a boathouse on the Spavinaw Reservoir that meets applicable written construction standards before June 1, 2020 their permit will lapse, be revoked, will not be renewed, and cannot be transferred and no other privately owned boathouses shall be constructed or placed on the Spavinaw Reservoir; provided further that the permit held by one who fails to timely repair a dilapidated boathouse, or fails to maintain it within minimum standards or fails to timely pay the annual rent shall lapse, be revoked, will not be renewed and cannot be transferred; provided further that the City of Tulsa maintains the right to revoke this section in its entirety, by the action of the Tulsa Municipal Utility Authority, thus revoking the permit program and all privately owned boathouse permits, which will require the immediate and permanent removal of all privately owned boathouses at the owner's expense; providing further that only the privately owned boathouse permitted as of July 5, 1983 shall be kept, offered for rent or rented; providing for severability; repealing ordinances in conflict and declaring an emergency. | 1 | 11-C | 413 |
| 23918 | 5-23-2018 | An ordinance of the City of Tulsa, Oklahoma; amending Title 27 Tulsa Revised Ordinances, "Penal Code", Chapter 18, "Public Property", Section 1800, "Public Property—Restrictions"; extending the protections of said Section 1800 to any public property within the city limits of the City of Tulsa; providing severability; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | 27 | 1800 |
| 23919 | 5- 9-2018 | An ordinance amending Title 49, Tulsa Revised Ordinances (TRO), "Administrative, Permit, and License Fees", by adding a new Chapter 15, entitled "Sidewalk Cafe, Table and Chair Permit Fees"; setting forth applicable fees; providing for severability; repealing ordinances in conflict, and declaring an emergency. | 1 Added | 49 | 1500—1502 |
| 23920 | 5-23-2018 | An ordinance amending Title 11, Tulsa Revised Ordinances ("TRO"), by the creation of a new Chapter 15, entitled "Sidewalk Cafe Permits and Table and Chair Permits in the Right-of-Way"; stating the purpose and intent of the chapter; delegating authority to city staff to implement policies and issue permits; setting forth operational requirements; providing for administration; allowing appeals where appropriate; providing for severability; repealing ordinances in conflict, and declaring an emergency. | 1 Added | 11 | 1500—1509 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 23924 | 6- 6-2018 | An ordinance amending Title 11-A, Tulsa Revised Ordinances, Section 304; amending the elevation requirements of electrical, mechanical, and ductwork equipment in floodplains; adding elevation requirements to essential facilities in floodplains; amending the elevation requirements of manufactured homes in floodplains; amending building elevation requirements in floodplains; providing for severability; and declaring an emergency. | 1 | 11-A | 304 |
| 23931 | 6- 6-2018 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Right-of-Way Occupancy Management," Section 1206 A.3.a., reducing the amount of occupancy fee to be charged to occupancy permit holders in order to recover said permit holder's pro rata share of the burden on the right-of-way; providing an operative date of July 1, 2018; repealing ordinances in conflict and declaring an emergency. | 1 | 11 | 1206 A.3.a. |
| 23938 | 6-13-2018 | An ordinance amending Title 11-A, Chapter 2, Section 202, Tulsa Revised Ordinances, to increase the monthly service charge rate by nine percent; providing for severability; repealing all ordinances in conflict herewith; and providing an operative date of October 1, 2018. | 1 | 11-A | 202 |
| 23942 | 6-13-2018 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 3, titled "Water Rates"; amending Sections 302, 303, 304, 305, 306, 307 and 308 to provide water and sewer rate adjustments; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Sections 702, 703 and 708 to adjust sewer service charge rates and adjust rates for dumping or discharging septic waste; providing that these rates shall be effective on October 1, 2018; establishing when the amendments enacted by this ordinance shall become operative; providing for severability; and declaring an emergency. | 1—7 | 11-C | 302—308 |
| | | | 8, 9 | 11-C | 702, 703 |
| | | | 10 | 11-C | 708 |
| 23957 | 7-11-2018 | An ordinance amending Title 55, "Property Maintenance Code"; regulating and governing the conditions and maintenance of all property, buildings and structures, by providing standards for supplied utilities and facilities and other physical features and conditions essential to ensure that structures are safe, sanitary and fit for occupation and use; providing for the notification of buildings and structures unfit for human occupancy and use; establishing the "chronic nuisance property" designation, and creating procedures to manage and abate chronic nuisance properties; providing penalties for the violation hereof; providing for severability; and declaring an emergency. | | 55 | 101—113, |
| | | | | | 201, |
| | | | | | 301—309, |
| | | | | | 401—404, |
| | | | | | 501—507, |
| | | | | | 601—607, |
| | | | | | 701—704, |
| | | | | | 801—807, |
| | | | | | 901—904, |
| | | | | | 1001—1003 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 23985 | 8-29-2018 | An ordinance amending Title 3, Chapter 1, Section 102, establishing the fees for certified copies. | 1 | 3 | 102 |
| 24012 | 10- 3-2018 | An ordinance amending Title 3, "Public Property, Records, Flag, Seal", Chapter 2, "Corporate Seal, Council Seal and City Flag", amending Section 204 thereof, "City Flag", setting forth in detail the design and appearance of the official city flag. | 1 | 3 | 204 |
| 24018 | 10-24-2018 | An ordinance amending Title 37, "Tulsa Revised Traffic Code"; amending Chapter 1, Section 100 to add definitions for electric bicycle and electric scooter. | 1 | 37 | 100 |
| 24019 | 10-24-2018 | An ordinance amending Title 21, "Licenses" by the addition of a new Chapter 24, "Shared Active Transportation". | 1 Added | 21 | 2500—2512 |
| 24023 | 11- 7-2018 | An ordinance related to the regulation of recreational vehicle parks; amending Title 51 "Building Code", Chapter 3, "Manufactured Homes, Mobile Homes, Modular Structures, Recreational Vehicles and Mobile Home Parks", Section 307, "Recreational Vehicle Parks"; amending spacing requirements, the number of required toilet facilities and the number of required laundry facilities. | 1 | 51 | 301 |
| 24024 | 11- 7-2018 | An ordinance related to the regulation of bicycle traffic on public streets; amending Title 37, "Tulsa Revised Traffic Code"; amending Chapter 6, "Moving Regulations and Traffic-Control Devices", Section 622, "Speed Too Slow for Conditions". | 1 | 37 | 622 |
| 24027 | 11- 7-2018 | An ordinance amending Title 43-H, Subsection 100.B., "Specific Projects and Purposes," relating to new 2014 Sales Tax Projects, under the category heading of "Tulsa Zoo," by adding "Zoo Playground". | 1 | 43-H | 100 B. |
| 24035 | 11- 7-2018 | An ordinance amending Title 11-B, "Solid Waste Management"; amending Chapters 1—8 to conform to current residential and commercial solid waste services, program structures and service levels. | 1 | 11-B | 100—108, |
| | | | | | 200—213, |
| | | | | | 300—313, |
| | | | | | 400—403, |
| | | | | | 500—504, |
| | | | | | 600—606, |
| | | | | | 700, 701, |
| | | | | | 800—803 |
| 24045 | 11-28-2018 | An ordinance amending Title 5, "Boards, Commissions and Committees"; creating a new Chapter 13, entitled "Animal Welfare Commission", creating the Animal Welfare Commission which shall consist of five (5) members appointed by the Mayor and confirmed by the City Council; establishing the powers and duties of the Commission; providing that personnel and agencies shall assist the Commission. | 1 Added | 5 | 1300—1302 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 24047 | 11-28-2018 | An ordinance amending certain sections in Chapter 31, of Title 27, Penal Code, regulating sales and purchases of scrap metal, to incorporate changes to Oklahoma Statutes made by HB2950; amending Section 3103(A)(1) for Photo ID; amending Section 3103(E) requiring digital image of items purchased; amending Section 3103(G) governing size of copper wire. | 1 | 27 | 3103 A.1. |
| | | | 2 | 27 | 3103 E. |
| | | | 3 | 27 | 3103 G. |
| 24060 | 12- 5-2018 | An ordinance amending Title 11, "Public Works Department", by the addition of a new Chapter 15, entitled "Small Wireless Communications Facilities". | 1 Added | 11 | 1600—1620 |
| 24061 | 12-19-2018 | An ordinance amending Title 51 by adopting Chapter 6 to establish and implement a self-certification program for construction plan review and the issuance of building permits. | 1 Added | 51 | 601—606 |
| 24066 | 1- 9-2019 | An ordinance amending Section 202 in Chapter 2 of Title 27, Tulsa Revised Ordinances, Penal Code, of the City of Tulsa, Oklahoma, identifying persons liable to punishment for violating the Penal Code in the Tulsa Ordinances, specifically amending Subsections 202(A)(3) and (4); repealing all ordinances or parts of ordinances in conflict herewith; providing for severability. | 1 | 27 | 202 A. |
| 24069 | 1- 9-2019 | An ordinance amending Title 28, Tulsa Revised Ordinances, entitled "the Municipal Employees' Retirement Plan," amending Section 1003 to eliminate the reporting relationship of the Plan Administrator to the Board of Trustees; providing for severability; and providing for repeal of conflicting ordinances. | 1 | 28 | 1003 |
| 24072 | 1-16-2019 | An ordinance of the City of Tulsa, amending Title 37 Tulsa Revised Ordinances (TRO), "Tulsa Revised Traffic Code", by amending Section 520 entitled "Parking in Loading Zones"; permitting downtown residents the ability to apply for a passenger loading zone permit; superseding any ordinances in conflict herewith. | 1 | 37 | 520 |
| 24089 | 3- 6-2019 | An ordinance of the City of Tulsa, amending Title 11 Tulsa Revised Ordinances (TRO), "Public Works Department", by amending Section 303 entitled "Meter Hoods"; rewording to remove references to meter hooding which is no longer an option as the city moves away from single meter spaces; providing for severability; repealing any ordinances in conflict herewith; and declaring an emergency. | 1 | 11 | 303 |
| 24090 | 3- 6-2019 | An ordinance of the City of Tulsa, amending Title 37 Tulsa Revised Ordinances (TRO), Tulsa Revised Traffic Code", Section 910 entitled "Funeral Parking Meter Hoods"; rewording to remove references to meter hooding which is no longer an option as the city moves away from single meter spaces. | 1 | 37 | 910 |
| 24106 | 4- 3-2019 | An ordinance amending Title 6, Tulsa Revised Ordinances, "Finance Department", Chapter 2, "Budget", Section 205 entitled "Annual Transfer From Enterprise Utilities to General Fund"; by the addition of a new paragraph, Paragraph "C" providing for transfer of a portion of water and sewer income to general fund; establishing severability; and requiring repeal of conflicting ordinances; and declaring an emergency. | 1 | 6 | 205 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 24107 | 4- 3-2019 | An ordinance amending Title 44, Chapter 1, Tulsa Revised Ordinances, entitled "City of Tulsa Hotel Tax Code", Section 118 thereof, decreasing the proportion of the subject tax revenue assigned to the convention & visitors fund of the City of Tulsa from 50.5% to 45%; increasing the proportion of the subject tax revenue assigned to the convention & tourism facilities fund of the City of Tulsa from 43% to 48.5%. | 1 | 44 | 118 |
| 24128 | 5- 1-2019 | An ordinance amending Title 36 Tulsa Revised Ordinances (TRO), "Taxicabs, Paratransit Vehicles and Utility Vehicles for Hire Regulations", Chapter 1, Section 134, "Rates of Fare", striking paragraph 5 of Subsection E., to remove the airport gate fee requirement; renumbering the remaining paragraphs of Subsection E. | 1 Rpld | 36 | 134 E.5. |
| 24129 | 5- 8-2019 | An ordinance amending Title 43-K Tulsa Revised Ordinances, regarding the temporary sales tax for economic development; reallocating funds by removing the University Center at Tulsa Authority/OSU Tulsa Funds of $3,600,000.00 and increasing the funds for BMX National Headquarters from $15,000,000.00 to $18,600,000.00. | 1 | 43-K | 100 B. |
| 24149 | 6-19-2019 | An ordinance amending Title 11-A, Chapter 2, Section 202, Tulsa Revised Ordinances, to increase the monthly service charge rate by nine percent; providing for severability; repealing all ordinances in conflict herewith; and providing an operative date of October 1, 2019. | 1 | 11-A | 202 |
| 24150 | 6-19-2019 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 3, titled "Water Rates"; amending Sections 302, 303, 304, 305, 306, 307 and 308 to provide water and sewer rate adjustments; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Section 702 to adjust sewer service charge rates; providing that these rates shall be effective on October 1, 2019. | 1—7 | 11-C | 302—308 |
| | | | 8 | 11-C | 702 |
| 24151 | 6-26-2019 | An ordinance amending Title 59, "Tulsa Revised Ordinances, entitled "Mechanical Code", by amending Section 200, entitled "Examination and Licensing of Stationary Engineers and Process Steam Boiler Operators", of Chapter 2, entitled "Stationary Engineers". | 1 | 59 | 200A.—C. |
| 24169 | 7-10-2019 | An ordinance amending Title 11-C, "Waterworks and Sewerage" of the Revised Ordinances of the City of Tulsa ("TRO") by adopting Chapter 15, entitled "Net-Zero Water Projects" authorizing alternative private water and wastewater disposal systems for the purpose of achieving net-zero water usage for certain approved projects; amending Chapters 3 and 9 of Title 17, TRO, "Health Regulations". | 1 Added | 11-C | 1501—1503 |
| | | | 2 | 11-C | 300—302 |
| | | | 3 | 11-C | 906 A. |
| | | | 4 | 11-C | 908 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 24195 | 7-31-2019 | An ordinance amending Title 26 Tulsa Revised Ordinances (TRO), "Parks, Mall and Plaza", Chapter 1, "Parks", by amending Section 105, "Animals", requiring all animals in parks to be on a leash, except when in dog-parks; allowing service dogs in certain park areas; allowing the parks director to authorize exotic, wild animals in parks under certain circumstances; amending Section 111, "Oxley Nature Center", making Section 111 applicable to Redbud Valley Nature Preserve except service dogs; amending Chapter 3, "Detention Facilities and Recreational Areas Supervised by Public Works", Section 305, "Animals", requiring all animals in such facilities to be on a leash, except when in dog-parks, and allowing service dogs in certain areas; allowing the parks director to authorize exotic, wild animals in parks under certain circumstances. | 1 | 26 | 105 |
| | | | 2 | 26 | 111 |
| | | | 3 | 26 | 305 |
| 24196 | 7-31-2019 | An ordinance amending Title 5, Chapter 1, Tulsa Revised Ordinances, entitled "Human Rights Commission," amending Section 102(A) concerning the membership of the commission; adding Section 102(B) concerning filling vacancies in commission membership; adding Section 102(C) concerning the terms of commission members; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 5 | 102 |
| 24197 | 7-31-2019 | An ordinance amending certain sections of Title 24 Tulsa Revised Ordinances (TRO), "Nuisances," Chapter 1, Section 106, Chapter 2, Sections 201 and 209, Chapter 3, Section 307 and Chapter 4, Section 405; amending Chapter 1, "Nuisances Classified", Section 106, "Criminal Penalty", setting a fine and/or jail sentence; amending Chapter 2, "Procedure for Abatement", Section 201, "Abatement", Subsection "F" to increase the nuisance abatement extension fee to fifty dollars and no cents ($50.00); amending Chapter 2, "Procedure for Abatement", Section 209, "liability for Costs", by adding a new Subsection "H", setting forth administrative fees; amending Chapter 3, "Abandoned or Junked Vehicles as a Nuisance", renaming Section 307, "Penalty", to read as "Criminal Penalty", and setting a fine and/or jail sentence; amending Chapter 4, "Dilapidated and/or Unsecured buildings as a Nuisance", Section 405, "Criminal Penalty, Setting a Fine and/or Jail Sentence". | 1 | 24 | 106 |
| | | | 2 | 24 | 201 F. |
| | | | 3 | 24 | 209 H. |
| | | | 4 | 24 | 307 |
| | | | 5 | 24 | 405 |
| 24198 | 7-31-2019 | An ordinance amending Title 49 Tulsa Revised Ordinances ("TRO"), "Administrative, Permit, and License Fees", Chapter 1, "General Administrative Fees" by the addition of a new section, Section 123, entitled "Nuisance and Nuisance Abatement Administrative Fees"; setting forth the fees chargeable for nuisance administration and nuisance abatement. | 1 Added | 49 | 123 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 24178 | 8- 7-2019 | An ordinance amending Tulsa Revised Ordinances Title 43, "City of Tulsa Sales Tax Code", the sales tax ordinances of the City of Tulsa, Oklahoma; enacting a new section, Section 100.4, "2021 Limited-Purpose Economic Stabilization Reserve ("Rainy Day fund") Permanent Sales Tax Levied", setting a limited-purpose, permanent sales tax levy of five one-hundredths of one percent (.05%) beginning on July 1, 2021 or upon collection of $563,700,000.00 pursuant to the 2014 extended 1.1% sales tax, whichever occurs first; stating that said tax shall be in addition to any other sales tax then existing; declaring the limited purpose of this sales tax is to provide revenue for the support of the economic stabilization reserve of the City of Tulsa, as further described in Article 2 of Tulsa City Charter, Sections 7.4 through 7.9, as amended from time to time; providing for a limited-purpose fund for the deposit of any revenue generated hereby; setting forth allocation of excess revenues. | 1 Added | 43 | 100.4 |
| 24180 | 8- 7-2019 | An ordinance creating a new Title of Tulsa Revised Ordinances, namely Title 43-L, establishing the official policy of the City of Tulsa, Oklahoma, with regard to the expenditure of all monies received from the 2021 Miscellaneous Capital Improvements temporary Sales Tax, which sales tax question will be voted on November 12, 2019 (The "2021 Miscellaneous Capital Improvements Temporary Sales Tax"); listing projects and purposes which will be accomplished from said revenues; creating the 2021 Miscellaneous Capital Improvements Temporary Sales Tax Overview Committee and appointing members thereof; specifying powers and duties of said committee and officers and employees of the City of Tulsa, Oklahoma; establishing a special revenue fund known as the 2021 Miscellaneous Capital Improvements Temporary Sales Tax Fund, wherein all revenues received from said temporary sales tax levy, together with interest earned thereon, shall be deposited; prohibiting the expenditure of any of said funds for any purpose other than the projects and purposes set forth herein; prescribing certain mandatory duties of the secretary of the Council and the Council of said city. | 1 Added | 43-L | 100—103 |
| 24225 | 9-18-2019 | An ordinance amending Title 39, Chapter 17, Tulsa Revised Ordinances to add Sections 1703 and 1704 approving the termination of the University Center at Tulsa Trust; and repealing Sections 1700 through 1702 of Chapter 17. | Rpld | 39 | 1700—1702 |
| | | | Added | 39 | 1703, 1704 |
| 24244 | 10-30-2019 | An ordinance amending Title 21, Tulsa Revised Ordinance, "Licenses," Chapter 25, "Shared Active Transportation"; amending Section 2501, "Definitions", by deleting alphabetical subsections for each definition and correcting a scrivener's error in the definition of "Dockless Small Vehicle Sharing System", erroneously referencing Section 2406; amending Section 2502, "Permit Required; Permit Term and Fees", Subsection E., by stating the educational purpose of the required fees; amending Section 2502, "Permit Required; Permit Term and Fees", Subsection F., by exempting free operators and programs operated by free operators, from the application of certain other provisions. | 1 | 21 | 2501 |
| | | | 2 | 21 | 2502E., F. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 24245 | 10-30-2019 | An ordinance amending Title 37, Tulsa Revised Ordinances, "Tulsa Revised Traffic Code"; amending Chapter 1, "Words and Phrases", Section 100, "Words and Phrases Defined"; repealing the definition of "Business District" and adding the definition "Inner Dispersal Loop", "IDL" or "I.D.L."; amending Chapter 2, "Traffic Administration"; Section 203, "Forms, Warrants, Bonds and Penalties", within the schedule of fines and penalties prescribing preset fines for violations of Section 1009; amending Chapter 10, "Bicycles", Section 1000, "Traffic Code Applicable", to include certain electric bicycles, within the definition of "Bicycle", and "Electric Scooters" within the definition of "motorized Scooter"; amending Section 1001, "manner of Riding", to prohibit the transportation of another person on an electric scooter; amending Section 1009, titled "Restrictions of Certain Vehicular Traffic in a Business District and Civic Center Complex", by retitling section 1009 as "Restrictions of Certain Vehicular Traffic in Certain Areas" and amending the applicable restricted areas; amending Chapter 10, "Bicycles", Section 1013, "Penalty" by deleting vehicle impoundment as an optional penalty. | 1 | 37 | 100 |
| | | | 2 | 37 | 203E. |
| | | | 3 | 37 | 1000 |
| | | | 4 | 37 | 1001 |
| | | | 5 | 37 | 1009 |
| | | | 6 | 37 | 1013 |
| 24254 | 10-30-2019 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, entitled "Waterworks and Sewerage," Chapter 4, "Spavinaw Water District," amending the calculation of "High Water Line," substituting the term "Mayor" for the now-obsolete term "Water Commissioner," vesting the Utility Board, the Mayor and his/her duly appointed subordinates with the duty to operate, manage, supervise and control the Spavinaw Reservoir Area; regulating use of off-road vehicles in the Spavinaw Reservoir Area; adjusting fishing permit fees and setting rules for fishing; adjusting boating fees; allowing waiver of fees in certain instances; prohibiting jet skis; permitting kayaks under certain circumstances; allowing hunting in accordance with state regulations; permitting self-contained underwater breathing apparatus ("SCUBA") diving in certain circumstances; adjusting camping fees and regulations; setting forth regulations for length of stay and the keeping of pets. | 1 | 11-C | 401D. |
| | | | 2 | 11-C | 401H. |
| | | | 3 | 11-C | 401J., K. |
| | | | 4 | 11-C | 405 |
| | | | 5 | 11-C | 408 |
| | | | 6 | 11-C | 409 |
| | | | 7 | 11-C | 410A. |
| | | | 8 | 11-C | 411 |
| | | | 9 | 11-C | 412I., J. |
| | | | 10 | 11-C | 414 |
| | | | 11 | 11-C | 415D. |
| | | | 12 | 11-C | 416 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 24259 | 11- 6-2019 | An ordinance amending Title 43-H, Tulsa Revised Ordinances, Subsection 100.B, "Specific Projects and Purposes," by amending the name of Project 34 from "Corridor and Small Area Planning," to "Corridor and Small Area Planning and Implementation". | 1 | 43-H | 100B. |
| 24266 | 11-20-2019 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Right-of-Way Occupancy Management," Section 1206A.3.a., increasing the amount of occupancy fee to be charged to occupancy permit holders in order to recover said permit holder's pro rata share of the burden on the right-of-way; providing an operative date of December 1, 2019; repealing ordinances in conflict and declaring an emergency. | 1 | 11 | 1206A.3.a. |
| 24267 | 12- 4-2019 | An ordinance amending Title 17, Chapter 4, Tulsa Revised Ordinances, titled "Food Code," adding to Section 401(B)(7)(a) a license requirement for ice vending machines; in Section 401(C)(2) revising the license expiration date; in Section 401(C)(3) increasing to $25 dollars the fee for a certified Food Protection Manager Certificate; in Section 401(D)(2) increasing to $20 the fee for an employee food permit; and in Section 401(E)(1)(a) modifying the requirements for food industry members appointed to the Tulsa Food Advisory Council. | 1 | 17 | 401B.7.a. |
| | | | 2 | 17 | 401C.2. |
| | | | 3 | 17 | 401C.3. |
| | | | 4 | 17 | 401D.2. |
| | | | 5 | 17 | 401E.1.a. |
| 24275 | 12- 4-2019 | An ordinance amending Title 35 of the Revised Ordinances of the City of Tulsa by repealing the current Section 602, titled "Parkway and Arterial Street Sidewalks-Fee-in-Lieu Option", of Chapter 6, titled "Familiar Rights-of-Way Activities" and enacting a new Section 602 titled "Required Sidewalks and Fee-in-Lieu Option"; providing definitions; requiring sidewalks in certain areas and circumstances; providing for a fee-in-lieu of sidewalks in certain circumstances; and providing for appeals in the event an application for a fee-in-lieu of sidewalks is denied. | 1 Rpld | 35 | 602 |
| | | | 2 Added | 35 | 602 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24279 | 12-11-2019 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42) by amending Chapter 35 thereof, building types and use categories, Section 35.080-B, consumer material drop-off station, to revise the description of a consumer material drop-off station and to revise the reference to regulations governing accessory use dumpsters and recyclable material bins/donation bins; amending Chapter 45 thereof, accessory uses and structures, Section 45.050, to change the title thereof from "Dumpsters and Recyclable Material bins" to "Dumpsters", to delete regulations pertaining to recyclable material bins, to revise regulations pertaining to dumpsters, to establish an effective date for revised dumpster regulations, and to require that depiction of proposed location and screening of dumpsters be included in site plans; adding a new Section 45.051 thereto titled "Recyclable Material Bins/ Donation Bins" to establish regulations pertaining to recyclable material bins/donation bins; amending Chapter 65 thereof, landscaping and screening, Section 65.070-B2 to change the title thereof from "Dumpsters and Recyclable material Bins" to "Dumpsters", to delete regulations pertaining to screening of recyclable material bins and to revise regulations pertaining to screening of dumpsters; revising the title of Figure 65-5 thereof, dumpster and recycling bin screening, to delete "and recycling bin"; amending Chapter 95 thereof, definitions, Section 95.070, terms beginning with "D", to add a definition of "Donation Bins", amending Section 95.210, terms beginning with "R" to revise the term "Recyclable Material Bins" to read "Recyclable Material Binds/Donation Bins" and to revise the definition thereof, and amending Section 95.220, terms beginning with "S" to revise the definition of "Site Plan". | 1 | 42 | 35.080B. |
| | | | 2 | 42 | 45.050A. |
| | | | 3 | 42 | 45.051 |
| | | | 4 | 42 | 65.070B.2. |
| | | | 5 | 42 | Fig. 65-5 |
| | | | 6 | 42 | 95.070 |
| | | | 7 | 42 | 95.210 |
| | | | 8 | 42 | 95.220 |
| 24280 | 12-18-2019 | An ordinance amending Title 51 of the revised ordinances of the City of Tulsa by adopting new Chapter 7 establishing the third-party plan review and inspection program; providing definitions and establishing general conditions, procedures and standards for the third-party plan review and inspection program; providing for program compliance and enforcement; approving the third-party plan review and inspection manual. | 1 | 51 | 701—703 |
| 24283 | 1- 8-2020 | An ordinance of the City of Tulsa, Oklahoma repealing Title 5 Tulsa Revised Ordinances, "Boards, Commissions and Committees", Chapter 9, "Transportation Advisory Board", Sections 900 through 903, and repealing all ordinances in conflict. | 1 Rpld | 5 | 900—903 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 24299 | 2- 5-2020 | An ordinance amending Title 5, Chapter 3, Tulsa Revised Ordinances, titled "Arts Commission of the City of Tulsa"; amending Section 301, "Membership"; amending Section 302, "Duties" by adding Subsection "F" concerning duties pertaining to the vision arts funds; setting the terms for additional members; establishing program approval deadlines for fiscal year 2019-2020; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 5 | 301 |
| | | | | | 302 F. |
| 24323 | 3-11-2020 | An ordinance amending Title 21 Tulsa Revised Ordinances, Titled "Licenses," by adding a new chapter, Chapter 26, entitled "Short-Term Rental"; providing definitions; setting forth requirements for a license; setting forth requirements for the license application; setting forth the responsibilities of an operator of a short-term rental; setting forth fees; providing for license revocation; setting forth penalties; providing for severability; repealing ordinances in conflict; and establishing the effective date of Chapter 26. | 1 Added | 21 | 2600—2606 |
| 24324 | 3-11-2020 | An ordinance amending Title 49, Tulsa Revised Ordinances, entitled "Administrative, Permit, and License Fees", enacting, restating, consolidating and superseding permit, license, certificate, registration and service fees codified in Titles 11, 11-A, 11-C, 14, 24, 35, 50, 51, 52, 55, 56 and 59; relating to regulatory provisions codified in Title 11, entitled "Public Works Department," Title 11-A, entitled "Stormwater Drainage," Title 11-C, entitled "Waterworks and Sewerage," Title 14, entitled "Fire Prevention Code," Title 24, entitled "Nuisances," Title 35, entitled "Infrastructure Development," Title 50, entitled "Annual Permits," Title 51, entitled "Building Code," Title 52, entitled "Electrical Code," Title 55, entitled "Existing Structures Code," Title 56, entitled "Plumbing Code," and Title 59, entitled "Mechanical Code"; adding a new chapter hereto, Chapter 15, entitled "Sidewalk Café Table and Chair Permit Fees"; adding a new chapter, hereto, Chapter 16, "Utility Coordination Fees"; providing for the issuance of permits, licenses, certificates, registrations and the collection of fees related to certain trades and contractors; requiring the posting of certain bonds and public liability insurance; providing civil penalties for certain violations; repealing all ordinances in conflict herewith; providing for severability; providing an operative date; and declaring an emergency. | 1 | 49 | Chs. 1—16 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 24328 | 3-11-2020 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") to establish a new use known as "short-term rental", as a principal use and as an accessory use, to identify the zoning districts in which the use may be permitted, to establish regulations related thereto, and to revise the definition of bed and breakfast and hotel/motel, by amending Chapter 5, Residential Districts, Section 5.020, Use Regulations, Table 5-2: R District Use Regulations; amending Chapter 10, Mixed-Use Districts, Section 10.020, Use Regulations, Table 10-2: MX District Use Regulations; amending Chapter 15, Office, Commercial and Industrial Districts, Section 15.020, Use Regulations, Table 15-2: O, C and I District Use Regulations; amending Chapter 25, Special Districts, Section 25.020 AG, Agricultural District, and AG-R, Agricultural-Residential District Use Regulations, Table 25-1: AG and Ag-R District Use Regulations; amending Chapter 35, Building Types and Use Categories, Section 35.050-G, Lodging, revising the definition of bed and breakfast, revising the definition of hotel/motel, and adding a new lodging use type, short-term rental; amending Chapter 40, Supplemental Use and Building Regulations, to add a new Section 40.375, Short-Term Rental; and amending Chapter 45, Accessory Uses and Structures, to add a new Section 45.185, Short-Term Rental - Accessory; providing for severability; repealing all ordinances or parts of ordinances in conflict herewith, and establishing an effective date. | 1 | 42 | 5.020, Table 5-2 |
| | | | 2 | 42 | 10.020, Table 10-2 |
| | | | 3 | 42 | 15.020, Table 15-2 |
| | | | 4 | 42 | 25.020, Table 25-1 |
| | | | 5 | 42 | 35.050G. |
| | | | 6 Added | 42 | 40.375 |
| | | | 7 Added | 42 | 45.185 |
| 24334 | 4- 1-2020 | An ordinance amending Title 12, Chapter 8 Tulsa Revised Ordinances, entitled "U.S. Department of Housing and Urban Development Grants," by adding a new Section 809 entitled "Waiver in a Declared Civil Emergency"; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 Added | 12 | 809 |
| 24351 | 4-29-2020 | An ordinance amending Title 5, Chapter 3, Tulsa Revised Ordinances, titled "Arts Commission of the City of Tulsa"; amending Section 302 "Duties", Subsection "F" to provide for Covid-19 economic resilience and recovery programs; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 5 | 302 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 24353 | 4-29-2020 | An ordinance amending Title 35 Tulsa Revised Ordinances (TRO), "Infrastructure Development", Chapter 6, "Familiar Rights-of-Way Activities", Section 606, "Trees"; amending Subsection B thereof, "Street Trees", Paragraph 1, "Approved Street Trees"; providing for the preparation and maintenance of an official list of recommended and prohibited trees and allowing only trees included in said list as recommended street trees to be planted as street trees; amending Subsection C thereof, "Trees in Public Utility Easements", allowing only trees included in said list as recommended street trees to be planted in public utility easements within certain distances from utility wires and utility lines; providing for severability; repealing ordinances in conflict herewith; and declaring an emergency. | 1 | 35 | 606B.1. |
| | | | 2 | 35 | 606C. |
| 24356 | 5- 6-2020 | An ordinance amending Title 12, Chapter 8 Tulsa Revised Ordinances, entitled "U.S. Department of Housing and Urban Development Grants," by amending Section 809 entitled "Waiver in a Declared Civil Emergency"; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 12 | 809 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24382 | 6-10-2020 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 15 thereof, Office, Commercial and Industrial Districts, Section 15.020 Use Regulations, Table 15-2: O, C and I District Use Regulations, to revise the title of a use subcategory to read "governmental and social service" and to provide for horticultural nursery use by special exception in CG and CH zoning districts; by amending Chapter 35 thereof, Building Types and Use Categories to revise the title of Section 35.040-G to read "Governmental Service or Similar Functions" and to revise the text thereof; by amending Chapter 45 thereof, Accessory Uses and Structures, Section 45.080 Fences and Walls, Section 45.080-C, to identify where barbed-wire or razor-wire fencing is permitted; by amending Chapter 65 thereof, Landscaping and Screening, Sections 65.060 Vehicular Use Area Buffers, Section 65.070 Screening, Section 65.080 Landscape and Screening Material, Figure 65-4: R District Buffer, and Figure 65-6: Screening of Ground-Mounted Equipment, to include regulations for buffers and screening from agricultural-residential districts, to include regulations for buffers from highways, and to delete references to recommended plant species; by amending Chapter 67 thereof, Outdoor Lighting, Section 67.030 General Standards, Section 67.030-C Spillover Light, to establish regulations pertaining to properties abutting agricultural-residential zoning districts, and amending Section 67.040 Lighting Plans, Section 67.040-B Option 1: Fixture Height Standard Lighting Plan, Section 67.040-B.2. Maximum Fixture Heights and Table 67-1: Maximum Light Fixture Heights, to establish regulations for height of light fixtures within a certain distance from agricultural-residential zoning districts; amending Chapter 70, Review and Approval Procedures, Section 70.080, Zoning Clearance and Permits, Section 70.080-B Compliance With Development Regulations, to delete Section 70.080-B4 Sidewalks, therefrom, and amending Section 70.080-C to require that certain information be submitted with zoning clearance permit applications involving spacing or separation requirements, and amending Section 70.110 Spacing and Separation Distance Verification to provide for administrative verification of compliance with spacing or separation requirements; and amending Chapter 95 Definitions, Section 95.220 Terms Beginning with "s" to revise the definition of "Sign, Campaign"; providing for severability; repealing all ordinances or parts of ordinances in conflict herewith, and declaring an emergency. | 1, 2 | 42 | 15.020, Table 15-2 |
| | | | 3 | 42 | 35.040G. |
| | | | 4 | 42 | 45.080C. |
| | | | 5 | 42 | 65.060A. |
| | | | 6 | 42 | 65.060C.1.a. |
| | | | 7 | 42 | 65.060C.2. |
| | | | 8 | 42 | 65.060, Fig. 65-4 |
| | | | 9 | 42 | 65.070B.3.a. |
| | | | 10 | 42 | 65.070, Fig. 65-6 |
| | | | 11 | 42 | 65.070B.3.b. |
| | | | 12 | 42 | 65.070C.5. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | 13 | 42 | 65.080A.2. |
| | | | 14 | 42 | 65.080B.1. |
| | | | 15 | 42 | 67.030C. |
| | | | 16 | 42 | 67.040B.2. |
| | | | 17 Rpld | 42 | 70.080B.4. |
| | | | 18 | 42 | 70.080C. |
| | | | 19 | 42 | 70.110 |
| | | | 20 | 42 | 96.220 |
| 24385 | 6-17-2020 | An ordinance amending Title 43-H of Tulsa Revised Ordinances (TRO), which is the City of Tulsa's Expenditure Policy for the "2014 Extended 1.1% Sales Tax"; deleting Gilcrease Museum Project items number 67 through 85, inclusive, pertaining to improvements at the Gilcrease Museum; amending the title of the project to "Gilcrease Museum Facilities Improvements"; amending the total Gilcrease Museum project budget from nine million, fifty-five thousand dollars ($9,055,000) to eight million, three hundred ninety-five thousand dollars ($8,395,000); adding an item, namely, "Computer Aided Dispatch (CAD), citywide, $660,000" to the police department's project list; amending the police department's stated project budget from thirty million, eight hundred five thousand dollars ($30,805,000) to thirty-one million, four hundred sixty-five thousand dollars ($31,465,000); including in the Metropolitan Tulsa Transit Authority (MTTA) project list a new project, "Tulsa Transit Facility Expansion - Southwest Parking Lot" with an estimated cost of one million, three hundred two thousand dollars ($1,302,000); reducing the cost of MTTA's "Bus Rapid Transit" (BRT) project from fifteen million dollars ($15,000,000) to thirteen million, six hundred ninety-eight thousand dollars ($13,698,000); renumbering the listed project items accordingly; ensuring that the total amount of revenue budgeted for capital program projects pursuant to Title 43-H remain unchanged; directing that the procedures for amending this Title 43-H TRO, as explained in Section 103 of said Title 43-H, be fully complied with; providing for severability; and declaring an emergency. | 1 | 43-H | 100 |
| 24386 | 6-17-2020 | An ordinance amending Title 43-K of Tulsa Revised Ordinances (TRO), which is the City of Tulsa's Expenditure Policy for the "2017 Limited-Purpose Economic Development Temporary Sales Tax"; amending the "Gilcrease Museum Expansion" project to "Gilcrease Museum Facilities Improvements"; directing that all budget amounts in said Title 43-K remain unchanged; directing that the procedures for amending this Title 43-K TRO, as explained in Section 103 of said Title 43-K, be fully complied with; providing for severability; and declaring an emergency. | 1 | 43-K | 100B. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24387 | 6-17-2020 | An ordinance amending Title 43-L of Tulsa Revised Ordinances (TRO), which is the City of Tulsa's Expenditure Policy for the "2021 Miscellaneous Capital Improvements Temporary Sales Tax"; amending the title, "Gilcrease Museum Mechanical, Electrical, Plumbing" project to "Gilcrease Museum Facilities Improvements"; amending the budget amount for said project from six million dollars ($6,000,000) to six million, six hundred sixty thousand dollars ($6,660,000); deleting the "Computer Aided Dispatch (CAD)" project from the Tulsa Police Department project list, and reassigning the budget amount of six hundred sixty thousand dollars ($660,000) to the Gilcrease Museum construction; ensuring that the total amount of revenue budgeted for capital improvement projects pursuant to Title 43-L remain unchanged; directing that the procedures for amending this Title 43-L TRO, as explained in Section 103 of said Title 43-L, be fully complied with; providing for severability; and declaring an emergency. | 1 | 43-L | 100 |
| 24391 | 6-17-2020 | An ordinance amending Title 11-A, Chapter 2, Section 202, Tulsa Revised Ordinances, to increase the monthly service charge rate by five percent; providing for severability; repealing all ordinances in conflict herewith; and providing an operative date of October 1, 2020. | 1 | 11-A | 202 |
| 24392 | 6-17-2020 | An ordinance amending Title 6 Tulsa Revised Ordinances (TRO), entitled "Finance Department"; amending Chapter 2 thereof, entitled "Budget", to delete Section 204 entitled "Post-Employment Healthcare Benefit Reserve"; providing for severability; providing for repeal of conflicting ordinances; declaring an emergency. | 1 Rpld | 6 | 204 |
| 24399 | 6-17-2020 | An ordinance amending Title 11, Tulsa Revised Ordinances ("TRO"), by adopting new Chapter 17 entitled "Parklet Permits in the Right-of-Way"; stating the purpose of the chapter; delegating authority to city staff to implement policies and issue permits; setting forth operational requirements; providing for administration; allowing appeals where appropriate; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability and declaring an emergency. | 1 Added | 11 | 1701—1704 |
| 24402 | 6-17-2020 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Sections 702, 703, and 708 to adjust sewer service charge rates and adjust rates for dumping or discharging septic waste; providing that these rates shall be effective on October 1, 2020; establishing when the amendments enacted by this ordinance shall become operative; and providing for severability. | 1 | 11-C | 702 |
| | | | 2 | 11-C | 703 |
| | | | 3 | 11-C | 708 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24408 | 7-15-2020 | An ordinance of the City of Tulsa, Oklahoma, amending the Penal Code, Title 27, Tulsa Revised Ordinances Chapter 4, "Offenses Against the Person" by adding new Section 409 entitled "Face Covering and Social Distancing During COVID-19 Pandemic Civil Emergency," adding definitions, mandating the use of face coverings with some listed exceptions, setting forth a sunset expiration date, creating penalties for non-compliance; declaring an emergency; repealing conflicting ordinances and providing for the severability thereof. | 1 Added | 27 | 409 |
| 24411 | 7-22-2020 | An ordinance amending Title 21, Tulsa Revised Ordinances (TRO), "Licenses", Chapter 3, "Alcoholic Beverage Control", Section 302, "Annual Occupation Tax"; modifying the titles of two licensed occupations, to conform with relevant state statutes; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability, and declaring an emergency. | 1 | 21 | 302A.7., 8. |
| 24429 | 8-19-2020 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Right-of-Way Occupancy Management," Section 1206A.3.a, increasing the amount of occupancy fee to be charged to occupancy permit holders in order to recover said permit holder's pro rata share of the burden on the right-of-way; providing an operative date of August 1, 2020; repealing ordinances in conflict and declaring an emergency. | 1 | 11 | 1206A.3.a. |
| 24436 | 9- 2-2020 | An ordinance amending Chapter 15 of Title 11, Tulsa Revised Ordinances ("TRO"), entitled "Sidewalk Café Permits and Table and Chair Permits in the Right-of-Way" by permitting temporary sidewalk cafes within the right-of-way and providing for a self-certification process; containing other amendments to Chapter 15; delegating authority to city staff to implement policies and issue permits; setting forth operational requirements; providing for administration; allowing appeals where appropriate; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability and declaring an emergency. | 1 | 11 | 1500—1510 |
| 24437 | 9- 2-2020 | An ordinance amending Chapter 17 of Title 11, Tulsa Revised Ordinances ("TRO"), entitled "Parklet Permits in the Right-of-Way" by permitting temporary parklets within the right-of-way and providing for a self-certification process; containing other amendments to Chapter 17; delegating authority to city staff to implement policies and issue permits; setting forth operational requirements; providing for administration; allowing appeals where appropriate; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability and declaring an emergency. | 1 | 11 | 1701—11704 |
| 24440 | 9-16-2020 | An ordinance amending Title 27, Tulsa Revised Ordinances, titled "Penal Code", Chapter 4, titled "Offenses Against the Person"; adding a new Section 410, titled "Malicious Harassment Based on Race, Color, Religion, Ancestry, Sex, Sexual Orientation, Gender Identity and Expression, National Origin, or Disability"; and providing a penalty for violations of Section 410; providing for severability; and declaring an emergency. | 1 Added | 27 | 410 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24446 | 9-30-2020 | An ordinance amending City of Tulsa Penal Code, Title 27, Tulsa Revised Ordinances; amending Chapter 4, "Offenses Against the Person", Section 409, titled "Face Covering and Social Distancing During COVID-19 Pandemic Civil Emergency"; amending Subsections 409.C and 409.E only, by lowering the age exemption in Subsection 409.C.2; clarifying in Subsection 409.C.5 the exemption in settings where it is not practical or feasible to wear a required face covering; amending the sunset expiration date in Subsection 409.E; declaring an emergency; repealing conflicting ordinances and providing for the severability thereof. | 1 | 27 | 409C. |
| | | | 2 | 27 | 409E. |
| 24476 | 11- 4-2020 | An ordinance amending Title 28, Tulsa Revised Ordinances, entitled "The Municipal Employees' Retirement Plan," by repealing Chapter 3 entitled "Contributions" and enacting a new Title 28, Chapter 3 entitled "Contributions"; establishing contributions by the employer, establishing contributions by participants, and establishing mandatory duties of Secretary of Council; providing for severability; and providing for repeal of conflicting ordinances; and providing that the operative date for this ordinance shall be January 3, 2021. | 1 Rpld | 28 | 300—302 |
| | | | Added | 28 | 300—302 |
| 24477 | 11- 4-2020 | An ordinance of the City of Tulsa, Oklahoma; amending Title 5 Tulsa Revised Ordinances, "Boards, Commissions and Committees", Chapter 6, "Greater Tulsa Area Hispanic Affairs Commission", amending the title thereof to "Greater Tulsa Area Hispanic/Latinx Affairs Commission"; amending the word "hispanic" to "hispanic/latinx", wherever it appears in said Chapter 6; providing for severability; and repealing any other ordinance in conflict herewith. | 1 | 5 | Ch. 6(title) |
| | | | 2 | 5 | 600—602 |
| 24490 | 11-24-2020 | An ordinance amending City of Tulsa Penal Code, Title 27, Tulsa Revised Ordinances; amending Chapter 4 by creating new Section 411, titled "Separation and Operational Requirements Concerning Restaurants, Bars, Certain Other Places of Public Accommodation and Public Settings During the COVID-19 Pandemic Civil Emergency" and creating a new Section 412 requiring approved health department plan for all events and gatherings with one hundred fifty (150) or more attendees; setting forth, in a new Section 413, a sunset expiration date; declaring an emergency; repealing conflicting ordinances and providing for the severability thereof. | 1 Added | 27 | 411 |
| | | | 2 Added | 27 | 412, 413 |
| 24491 | 11-24-2020 | An ordinance amending the Nuisance Code, Title 24 Tulsa Revised Ordinances ("TRO"), Section 101, "Nuisances Affecting Health", Subsection "B", by the addition of new numbered paragraphs, paragraph 19, concerning face coverings, social distancing, separation, and other mandates in Title 27, Ordinances Nos. 24408 and 24490, and concerning enforcement thereof, and paragraph 20, concerning events or gatherings exceeding the number of persons specified in Ordinance 24490, Section 412, and concerning enforcement thereof, and paragraph 21 providing for expiration date; providing for severability; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 Added | 24 | 101 B.19.—21. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24493 | 12- 2-2020 | An ordinance amending Section 602 titled "Required Sidewalks and Fee-In-Lieu Option", of Chapter 6, titled "Familiar Rights-of-Way Activities", of Title 35, titled "Infrastructure Development", of the revised ordinances of the City of Tulsa; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability and declaring an emergency. | 1, 2 | 35 | 602 B., C. |
| | | | 3 | 35 | 602 J. |
| 24495 | 12- 9-2020 | An ordinance amending Title 43-K Tulsa Revised Ordinances, regarding the temporary sales tax for economic development; providing for pledges from funding partners by December 31, 2022; allowing for reallocation of funds; providing severability; repealing all ordinances not in compliance herewith; and declaring an emergency. | 1 | 43-K | 100 D. |
| 24516 | 1-13-2021 | An ordinance amending Title 27, Tulsa Revised Ordinances, "Penal Code", Chapter 4, Titled "Offenses Against the Person", amending Section 409, titled "Face Covering and Social Distancing during COVID-19 Pandemic Civil Emergency", Subsection 409.E., titled "Expiration of Ordinance", to extend the expiration date from January 31, 2021 to midnight, April 30, 2021; amending Section 413, titled "Expiration of Ordinance", to extend the expiration date for Title 27 Tulsa Revised Ordinances, Sections 411 and 412 from January 31, 2021 to midnight, April 30, 2021; providing for severability; and declaring an emergency. | 1 | 27 | 409 E. |
| | | | 2 | 27 | 413 |
| 24517 | 1-13-2021 | An ordinance amending Title 24 Tulsa Revised Ordinances, titled "Nuisances", Section 101, "Nuisances Affecting Health", Subsection "B", title "Health Nuisances, Paragraph 21, to extend the expiration date of Subsection 101.B, Paragraphs 19 and 20 from January 31, 2021 to midnight, April 30, 2021; providing for severability; and declaring an emergency. | 1 | 24 | 101 B.21. |
| 24569 | 2-24-2021 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 40 thereof, supplemental use and building regulations, Section 40.225, Medical Marijuana Uses, Section 40.225-E thereof, to remove the prohibition of drive-through windows and drive-through lanes for medical marijuana dispensaries; providing for severability; repealing all ordinances or parts of ordinances in conflict herewith, and declaring an emergency. | 1 | 42 | 40.225 E. |
| 24589 | 3-24-2021 | An ordinance amending Title 11-B, Tulsa Revised Ordinances (TRO), "Solid Waste Management," Chapter 6, "Licensing Solid Waste Collectors," Section 603, "Impoundment and Confiscation of Vehicles," to include commercial waste containers in provisions for impoundment and confiscation of property; providing for severability; and providing for repeal of conflicting ordinances. | 1 | 11-B | 603 |
| 24590 | 4- 7-2021 | An ordinance re-accepting and approving the terms and conditions of the amended and restated trust indenture creating the Tulsa Authority For Economic Opportunity, formerly known as the Tulsa Industrial Authority, and the beneficial interest in the trust by execution of the trust indenture, and declaring an emergency. | 1, 2 | 39 | 1000, 1001, App. I |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24598 | 4-14-2021 | An ordinance amending Title 49, Tulsa Revised Ordinances (TRO), "Administrative, Permit, and License Fees", Chapter 16, "Utility Coordination Fees", by the Enactment of a New Section, Section 1604, to be Entitled "Right-Of-Way Occupancy Agreements"; Establishing Fees For Said Agreements; Repealing All Ordinances or Parts of Ordinances in Conflict Herewith; Providing For Severability; and Declaring an Emergency. | 1 | 49 | 1604 |
| 24599 | 4-14-2021 | An ordinance amending Title 11 Tulsa Revised Ordinances (TRO), "Public Works Department", Chapter 7, "Closing of Public Ways and Easements", Section 704, "Fees"; amending the amount of the filing fee which accompanies the application to close a public way or easement, to agree with Title 49 TRO, "Administrative, Permit, and License Fees", Section 1600, "Closures"; amending the term "vacate" to "close" to comport with correct legal terminology; providing for severability; repealing ordinances in conflict and declaring an emergency. | 1 | 11 | 704 |
| 24606 | 4-28-2021 | An ordinance amending Title 14, "Fire Prevention Code", of Tulsa Revised Ordinances ("TRO"), by adding new subsection 105.2.6.4 relating to fire protection system design requirements; by amending subsection 105.6.32 relating to open burning; by adding new subsection 105.6.36 relating to places of assembly; by amending subsection 109.3.2.1 relating to failure to comply with a notice of violation; and by amending subsection 1103.5.7 relating to existing high-rise buildings; providing severability; repealing all ordinances or parts of ordinances in conflict herewith; and declaring an emergency. | 1—5 | 14 | 101 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24607 | 4-28-2021 | An ordinance amending Title 2, Tulsa Revised Ordinances, titled "Animals" and regulating matters related to animals within the City of Tulsa; amending Chapter 1, titled "Definitions; Regulations Generally", Sections 100 thru 111, 113, 114, and 116 thru 118; providing definitions, prescribing offenses, providing for registrations, inoculations, veterinarian records and reports, licensing, protections against rabies, the regulation of dangerous and nuisance animals, animal impoundments, commercial animal establishments, procedures for enforcement, euthanasia, entry on properties, exemption permits, and penalties for violation of Chapter 1; amending Chapter 2, titled "Agricultural Animals", Sections 200 thru 204; regulating the keeping of cattle, goats, sheep, hogs, horses, poultry, rabbits, pigeons, doves, and miniature pigs, and providing a penalty for violations of Chapter 2; amending Chapter 3 titled "Animals in Streets", Sections 300, 302, 304 and 305; regulating the training, hitching, racing and turning loose of certain animals, and providing a penalty for violations of Chapter 3; amending Chapter 4 titled "Miscellaneous Provisions", Sections 400, 402 thru 407 and specially repealing section 401, titled "Administration of Poison"; regulating the sale and distribution of diseased animals, the destruction and euthanasian of certain animals, the locking or tying of wings of poultry, the distribution of baby poultry and rabbits as pets, outdoor poultry shelters, and providing a penalty for violations of Chapter 4; amending Chapter 5, titled "Dead Animals", Sections 500 thru 506; regulating the lawful and unlawful disposal of dead animals, the retrieval of identification from dead animals, and providing a penalty for violations of Chapter 5; amending Chapter 6, titled "Dangerous Dogs", Sections 600 thru 607, by specially repealing Section 600, titled "Definitions" and renumbering Sections 601 thru 607 as Sections 600 thru 606, providing for the regulation of dangerous dogs, and a penalty for violations of Chapter 6; amending Chapter 7, titled "Reptiles", Section 700, titled "Habitat", by reducing the penalty for failure to provide a secure habitat for reptiles, repealing Section 703, titled "Reptile Species Not Prohibited" and renumbering Sections 704 thru 706 as Sections 703 thru 705, and providing a penalty for violations of Chapter 7; providing for severability; and declaring an emergency. | 1 Rpld | 2 | 401 |
| | | | Rpld | 2 | 600 |
| | | | Rnbd | 2 | 601—607 |
| | | | as | 2 | 600—606 |
| | | | 2 Rpld | 2 | 703 |
| | | | Rnbd | 2 | 704—706 |
| | | | as | 2 | 703—705 |
| | | | 3 | 2 | Chs. 1—7 |
| 24616 | 6- 2-2021 | An ordinance amending Title 11, Tulsa Revised Ordinances, entitled "Public Works Department" by amending Chapter 10, entitled "Standard Specifications for Highway Construction" by amending Section 1000 and Section 1001; providing for severability; repealing all ordinances or parts of ordinances in conflict herewith and establishing an effective date. | 1 | 11 | 1000, 1001 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24621 | 6- 2-2021 | An ordinance amending Title 28, Tulsa Revised Ordinances, "the Municipal Employees' Retirement Plan," by amending Chapter 1 thereof "Introduction and Definitions", Section 101 "Definitions," subsection M. "Employer" to add Tulsa Authority for Economic Opportunity as an employer; providing for severability; providing for repeal of conflicting ordinances; and providing that the operative date for this ordinance shall be July 1, 2021. | 1 | 28 | 101 M. |
| 24624 | 6- 9-2021 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Section 702 to adjust sewer service charge rates; providing that these rates shall be effective on October 1, 2021; establishing when the amendments enacted by this ordinance shall become operative; and providing for severability. | 1 | 11-C | 702 |
| 24630 | 6-16-2021 | An ordinance amending Title 11-A, Chapter 2, Section 202, Tulsa Revised Ordinances, to increase the monthly service charge rate by three percent; providing for severability; repealing all ordinances in conflict herewith; and providing an operative date of October 1, 2021. | 1 | 11-A | 202 |
| 24631 | 6-16-2021 | An ordinance amending Tulsa Revised Ordinances, Title 12, "Internal Policies"; repealing Chapter 1 thereof, "Energy Policy"; repealing Chapter 2 thereof, "Public Safety Policy: Security at City-Owned or Operated Facilities"; repealing Chapter 3 thereof, "City of Tulsa Vehicle Policy"; allowing the remaining chapters in Title 12 TRO to retain their numerical chapter designation; superseding all ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 Rpld | 12 | Chs. 1—3 |
| 24639 | 7-21-2021 | An ordinance amending Title 5, Chapter 3, Tulsa Revised Ordinances, titled "Arts Commission of the City of Tulsa"; amending Section 302 "Duties", Subsection "F" to update the membership of the vision arts independent review panel by removing one member selected by the economic development commission and adding one member selected by the Tulsa Authority for Economic Opportunity; providing for severability; and providing for repeal of conflicting ordinances. | 1 | 5 | 302 F. |
| 24640 | 7-21-2021 | An ordinance amending Tulsa Revised Ordinances, Title 43-L, "The 2021 Miscellaneous Capital Improvements Temporary Sales Tax"; deleting reference to parking facilities under "city facilities"; inserting "parking facility, veterans hospital . . . $8,000,000"; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 43-L | 100 B. |
| 24642 | 7-21-2021 | An ordinance amending Title 5, Tulsa Revised Ordinances, entitled "Boards, Commissions and Committees," by repealing in its entirety Chapter 4, entitled "Economic Development Commission of the City of Tulsa;" and declaring an emergency. | 1 Rpld | 5 | 400—403 |
| 24643 | 7-21-2021 | An ordinance amending Title 44, Chapter 1, Tulsa Revised Ordinances, entitled "City of Tulsa Hotel Tax Code," by amending Section 118, entitled "Creation of Funds," by amending subsection "D.," in order to establish the economic development fund of the City of Tulsa; providing for a severability clause; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | 44 | 118 D. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24644 | 7-21-2021 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 5 thereof, Residential Districts, Section 5.030, Lot and Building Regulations, Table 5-3: R District Lot and Building Regulations, to reduce the minimum lot area, lot area per unit, and lot width for certain building types and to reduce the minimum building setback from streets in certain districts; by amending Section 5.030-B thereof, table notes, to specify a particular setback applies to non-residential uses requiring special exception approval; and by amending chapter 20 thereof, Overlay Districts, to add a new Section 20.080 establishing the regulations of a new overlay district titled "Neighborhood Infill Overlay" (NIO) ; providing for severability; repealing all ordinances or parts of ordinances in conflict herewith, and declaring an emergency. | 1 | 42 | 5.030, Table 5-3 |
| | | | 2 | 42 | 5.030B.[4] |
| | | | 3 Added | 42 | 20.080 |
| 24664 | 8-25-2021 | An ordinance amending Title 49, Tulsa Revised Ordinances, entitled "Administrative, Permit, and License Fees", enacting, restating, consolidating and superseding permit, license, certificate, registration and service fees codified in Titles 11, 11-A, 11-C, 14, 24, 35, 50, 51, 52, 55, 56 and 59; relating to regulatory provisions codified in Title 11, entitled "Public Works Department," Title 11-A, entitled "Stormwater Drainage," Title 11-C, entitled "Waterworks and Sewerage," Title 14, entitled "Fire Prevention Code," Title 24, entitled "Nuisances," Title 35, entitled "Infrastructure Development," Title 50, entitled "Annual Permits," Title 51, entitled "Building Code," Title 52, entitled "Electrical Code," Title 55, entitled "Existing Structures Code," Title 56, entitled "Plumbing Code," and Title 59, entitled "Mechanical Code"; reserving Chapter 15; providing for the issuance of permits, licenses, certificates, registrations and the collection of fees related to certain trades and contractors; requiring the posting of certain bonds and public liability insurance; providing civil penalties for certain violations; repealing all ordinances in conflict herewith; providing for severability; providing an operative date; and declaring an emergency. | 1 | 49 | Chs. 1—16 |
| 24665 | 8-25-2021 | An ordinance amending Ordinance No. 21254, Title 43-F Tulsa Revised Ordinances (TRO), the "2006 Sales Tax Expenditure Policy"; adding a new project in Section 100.b.2, under the heading "Downtown, Economic and Neighborhood Development", namely, the new OKPOP museum parking and related capital improvements; assigning revenues to the new project; reducing revenues assigned to new downtown parking garage so that total taxes and revenues will remain the same; observing the requirements of publication press conference and public hearing as contained in Title 43-F TRO Section 103; repealing all ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 43-F | 100 B.2. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24678 | 9-22-2021 | An ordinance amending Title 13 Tulsa Revised Ordinances ("TRO"), "Fire Department", Chapter 1, "Fire Department Organization", Section 101, "Qualifications"; relating to qualifications of a firefighter or employee of the fire department of the City of Tulsa; repealing all ordinances in conflict herewith; keeping all other provisions of Title 13 in full force and effect; and declaring an emergency. | 1 | 13 | 101 |
| 24695 | 11-17-2021 | An ordinance adopting a new Chapter 4, entitled "Public Service Company Franchise" within Title 15, Tulsa Revised Ordinances (TRO), "Franchises and Grants"; setting forth definitions; granting to Public Service Company of Oklahoma (PSO) a franchise, to use the public ways of the City of Tulsa for the purpose of supplying electricity to the public; setting a term of years for the franchise; providing for the assignment, sale or lease of the rights and obligations herein; establishing conditions of enforceability, standards of service and indemnification; setting forth responsibilities as to location and relocation of lines, plants and systems; stating conditions for the use and repair of public ways; allowing PSO to charge consumers reasonable rates of compensation; obligating PSO to provide electric power to the City of Tulsa for municipal purposes; establishing fees to be paid for the grant of this franchise; requiring PSO to maintain records, and allow city to inspect and audit same; allowing city at its option to purchase PSO's plants and systems after fifteen (15) years, and setting terms and conditions of said purchase; requiring voter approval of this franchise at a special election on February 8, 2022; repealing the previous franchise agreement; and declaring an emergency. | 1 | 15 | 400—416 |
| 24704 | 10-27-2021 | An ordinance amending Title 43-H of Tulsa Revised Ordinances (TRO), which is the City of Tulsa's Expenditure Policy for the "2014 extended 1.1% sales tax"; amending, under "Park and Recreation Department", Project No. 49, "Pool Renovation", replacing line-item "A", that is, "Berrypool reconstruction" with "Chamberlain-pool reconstruction", ensuring that the total amount of revenue budgeted for capital program projects pursuant to Title 43-H remain unchanged; directing that the procedures for amending this Title 43-H TRO, as explained in Section 103 of said Title 43-H, be fully complied with; providing for severability; and declaring an emergency. | 1 | 43-H | 100 B. |
| 24713 | 11- 3-2021 | An ordinance amending Tulsa Revised Ordinances, Title 37-A titled "Emergency Medical Services Code", Chapter 1, "Emergency Medical Services Code", Section 110, "Clinical Quality of Ambulance Services" to remove the requirement that all code responses be staffed, equipped, and certified at the EMT-paramedic level; permitting ambulances responding in the regulated service area to employ a tiered system of advanced life support and basic life support units; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 37-A | 110 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24716 | 11-17-2021 | An ordinance amending Title 35 Tulsa Revised Ordinances (TRO), "Infrastructure Development", Chapter 6, "Familiar Rights-of-Way Activities", Section 606, "Trees"; amending certain definitions within the definition subsection; adding new definitions to the definition subsection; establishing those situations in which an Infrastructure Development Process (IDP) Permit would be the correct permit for the planting of street trees, and those situations in which a license agreement would be appropriate; setting forth spacing and clearance requirements for trees; providing for trees growing in utility easements, wells and raised planter beds; allowing alternative tree plans under certain circumstances; detailing the requirements for the care, maintenence, pruning and removal of trees; providing an appeals process for aggrieved parties; providing for severability; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | 35 | 606 |
| 24721 | 11-17-2021 | An ordinance amending Title 11 Tulsa Revised Ordinances (TRO), "Public Works Department", Chapter 9, "Street Maintenance", creating a new section, Section 901, entitled "Special Revenue Fund for Maintenance and Repair of Public Ways"; creating said fund; setting forth the purposes of the fund; including this fund in the annual budget process of the City; estimating the amount of revenue that will be generated hereby; proposing the percentages of said moneys to be expended on the several functions; providing that this ordinance shall be void if the PSO franchise is disapproved by the voters; repealing all ordinances in conflict herewith; providing for severability. | 1 Added | 11 | 901 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24725 | 11-17-2021 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 5 thereof, residential districts, Section 5.020, Use Regulations, Table 5-2: R District Use Regulations; Chapter 10 thereof, Mixed-Use Districts, Section 10.020, Use Regulations, Table 10-2: MX District Use Regulations; Section 10.030, Character Designations, Section 10.030-B -P, Pedestrian Character Designation, Table 10-4: Lot and Building Regulations for - P Character Zones; Section 10.030-C Urban Character Designation, Table 10-5: Lot and Building Regulations for -U Character Zones; Section 10.030-D Variable Character Designation, Table 10-6: Lot and Building Regulations for -V Character Zones; Chapter 15 thereof, Office, Commercial and Industrial Districts, Section 15.020 Use Regulations, Table 15-2: O, C and I District Use Regulations; Chapter 20 thereof, Overlay Districts, Section 20.080 NIO, Neighborhood Infill Overlay, Section 20.080-E Parking Regulations and Figure 20-2: Parking Prohibited Between Building and Street Right-of-Way; Chapter 25 thereof, Special Districts, Section 25.020, AG, Agricultural District and AG-R, Agricultural-Residential District, Section 25.020-B Use Regulations, Table 25-1: AG and AG-R District Use Regulations; Section 25.040 CO, Corridor District, Section 25.040-B Use Regulations, Table 25-4: CO District Use Regulations; Section 25.050, SR, Scientific Research District, Section 25.050-B Use Regulations, Table 25-5: SR District Use Regulations; Section 25.060, IMX, Institutional Mixed-Use, Section 25.060B Use Regulations, Table 25-7: IMX District Use Regulations; Chapter 45 thereof, Accessory Uses and Structures, Section 45.130, Parking and Storage of Commercial Trucks; Chapter 55 thereof, Parking, Section 55.020 Minimum Parking Ratios, Table 55-1: Minimum Motor Vehicle Parking Ratios; Section 55.050 Parking Exemptions and Credits, Section 55.050-K Alternative Compliance; Chapter 60 thereof, Signs, Section 60.020 Prohibited Signs and Sign Characteristics, Section 60.100 Dynamic Displays; Chapter 65 thereof, Landscaping and Screening, Section 65.080 Landscape and Screening Material; Chapter 70 thereof, Review and Approval Procedures, Section 70.010 Common Provisions, Section 70,010-A Applicability, Table 70-1: Review and Decision-Making Authority Summary Table; Section 70.020, Zoning Code Text Amendments, adding Section 70.020-G Applicability; Section 70.040, Development Plans, Section 70.040-1 Amendments to Approved Development Plans; Section 70.080 Zoning Clearance and Permits, Section 70.080-B Compliance with Development Regulations; Section 70.140 Appeals of Administrative Decisions, and Figure 70-7: Appeals of Administrative Decisions (Generally); and Chapter 95 thereof, Definitions, Section 95.040 terms beginning with "A"; providing for severability; repealing all ordinances or parts of ordinances in conflict herewith, and declaring an emergency. | 1 | 42 | 5.020, Table 5-2 |
| | | | 2 | 42 | 10.020, Table 10-2 |
| | | | 3 | 42 | 10.030 B. |
| | | | 4 | 42 | 10.030 B., Table 10-4 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | 5 | 42 | 10.030 C., Table 10-5 |
| | | | 6 | 42 | 10.030 D., Table 10-6 |
| | | | 7 | 42 | 15.020, Table 15-2 |
| | | | 8 | 42 | 20.080 E.2. |
| | | | 9 | 42 | 20.080 E., Figure 20-5 |
| | | | 10 | 42 | 25.020, Table 25-1 |
| | | | 11 | 42 | 25.020 B., Table 25-1 |
| | | | 12 | 42 | 25.040 B., Table 25-4 |
| | | | 13 | 42 | 25.050 B., Table 25-5 |
| | | | 14 | 42 | 25.060 B., Table 25-7 |
| | | | 15 | 42 | 45.130 |
| | | | 16, 17 | 42 | 55.020, Table 55-1 |
| | | | 18 | 42 | 55.050 K. |
| | | | 19 | 42 | 60.020 A. |
| | | | 20 | 42 | 60.100 J. |
| | | | 21 | 42 | 60.100 K. |
| | | | 22 | 42 | 65.080 A.3. |
| | | | 23 | 42 | 70.010 A, Table 70-1 |
| | | | 24 | 42 | 70.020 G. |
| | | | 25 | 42 | 70.040 I.1.c. |
| | | | 26 Rpld | 42 | 70.080 B.3. |
| | | | 27 | 42 | 70.140 A. |
| | | | 28 | 42 | 70.140 A, Figure 70-7 |
| | | | 29 | 42 | 70.140 C.1. |
| | | | 30 | 42 | 95.040 |
| 24734 | 12- 1-2021 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Right-of-Way Occupancy Management," Section 1206A.3.a, increasing the amount of occupancy fee to be charged to occupancy permit holders in order to recover said permit holder's pro rata share of the burden on the right-of-way; providing an operative date of December 1, 2021; repealing ordinances in conflict and declaring an emergency. | 1 | 11 | 1206 A.3.a. |
| 24776 | 2- 9-2022 | An ordinance amending Title 4, Tulsa Revised Ordinances, "Mayor, Auditor and Council," Chapter 3, "Council," Section 309, "Salary of Councilors"; removing language inconsistent with Tulsa's Charter. | 1 | 4 | 309 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24805 | 4-20-2022 | An ordinance amending Title 13 Tulsa Revised Ordinances ("TRO"), "Fire Department", Chapter 1, "Fire Department Organization", Section 101, "Qualifications"; relating to qualifications of a firefighter or employee of the fire department of the City of Tulsa; repealing all ordinances in conflict herewith; keeping all other provisions of Title 13 in full force and effect; and declaring an emergency. | 1 | 13 | 101 |
| 24808 | 4-27-2022 | An ordinance amending Title 37, Tulsa Revised Ordinances, titled "Traffic Code"; amending Chapter 1, titled "Words and phrases", by modifying the definition of "Motor Vehicle Escort Guide" in Section 100, "Words and Phrases Defined", to add "Parade Procession" to the list of processions escorted; amending Chapter 9, "Escorts and Processions", Section 900, "Duties and Authority of Motor Vehicle Escort Guides and Agencies", by adding "Parade Processions" to the list of processions regulated and authorized to be escorted; amending Section 901, "Escort Guides - Uniforms and Equipment Requirements and Limitations", by adding parade processions as a procession subject to regulation in this section; amending Chapter 14, titled "Special Events", Section 1403, "Exceptions to Special Event Permit Requirement", by exempting the activities of motor vehicle escort guides, regulated in Chapter 9 of Title 37 who are escorting a permitted parade procession; providing for severability; and declaring an emergency. | 1 | 37 | 100 |
| | | | 2 | 37 | 900, 901 |
| | | | 3 | 37 | 1403 |
| 24809 | 4-27-2022 | An ordinance amending Title 24 Tulsa Revised Ordinances, titled "Nuisances", Section 103, "Nuisances Affecting Peace and Safety"; adding a new, Subsection "P", declaring that certain lighting which is disturbing to the public peace and safety shall be a public nuisance; providing for severability; and declaring an emergency. | 1 | 24 | 103 |
| 24825 | 5-18-2022 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 5, Residential Districts, Section 5.030, Lot and Building Regulations, Section 5.030-B, Table Notes, Table Note [4] for Table 5-3: R District Lot and Building Regulations; amending Chapter 20, Overlay Districts, Section 20.080, NIO, Neighborhood Infill Overlay, Section 20.080-C, Residential Building Types for Household Living, Table 20-4.5: Neighborhood Infill Overlay District Building Type Regulations for Household Living, Table Note [1], and Section 20.080-E, Parking Regulations, Section 20.080-E.2., Location; amending Chapter 40, Supplemental Use and Building Regulations, Section 40.030, Apartments/Condos; amending Chapter 55, Parking, Section 55.080-C, Parking Setbacks; providing for severability; repealing all ordinances or parts of ordinances in conflict herewith, and declaring an emergency. | 1 | 42 | 5.0030, Table 5-3, Note [4] |
| | | | 2 | 42 | 20.080, Table 20-4.5, note [1] |
| | | | 3 | 42 | 20.080E.2. |
| | | | 4 | 42 | 40.030 |
| | | | 5 | 42 | 55.080C. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 24826 | 5-18-2022 | An ordinance amending Tulsa Revised Ordinances, Title 27, the city's "Penal Code"; amending and enacting offenses pertaining to larceny, fraud, stealth, embezzlement, trick, deception, and forgery; amending Sections 2000, 2001, 2003, and 2005 to increase the value of property taken constituting larceny from less than five hundred dollars ($500.00) to less than one thousand dollars ($1,000.00); enacting a new Section 2007, for the offense of receiving or concealing stolen property; amending Section 1900, 1902, 1910, and 1911 to increase the value of property defrauded or embezzled, constituting an offense, from less than five hundred dollars ($500.00) to less than one thousand dollars ($1,000.00); enacting new Sections 1912 and 1913 to create offenses for the sale, delivery, receipt or possession of forged notes or instruments; providing for severability; and declaring an emergency. | 1 | 27 | 2000 |
| | | | 2 | 27 | 2001 |
| | | | 3 | 27 | 2003 |
| | | | 4 | 27 | 2005 |
| | | | 5 Added | 27 | 2007 |
| | | | 6 | 27 | 1900 |
| | | | 7 | 27 | 1902 |
| | | | 8 | 27 | 1910 |
| | | | 9 | 27 | 1911 |
| | | | 10 Added | 27 | 1912 |
| | | | 11 Added | 27 | 1913 |
| 24827 | 5-18-2022 | An ordinance amending Tulsa Revised Ordinances, Title 27, the city's "Penal Code"; repealing Chapter 25, titled "Dangerous Substances" in its entirety; enacting a new Chapter 25, titled "Dangerous Substances"; defining terms used in this chapter; making it an offense to possess marijuana without a valid Oklahoma Medical Marijuana License issued pursuant to 63 O.S. §§ 420 et seq.; and prescribing a range of punishments based on weight and medical conditions in conformity with 63 O.S. §§ 420 et seq.; prohibiting ingestion of marijuana in public by smoking or vaporizing except as permitted in state law; providing that it shall be an offense to possess drug paraphernalia except when used for the ingestion of medical marijuana as permitted pursuant to state law; making it an offense to deliver any simulated drug or simulated controlled dangerous substance; creating the offense of possession of other Schedule I through V controlled dangerous substances and including a range of punishment for such violations; clarifying definitions for purposes of controlled dangerous substances; providing for severability; preserving civil or criminal prosecutions, suits or proceedings pending in any court; and declaring an emergency. | 1 Rpld | 27 | 2500—2503 |
| | | | 2 Added | 27 | 2500—2505 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24828 | 5-18-2022 | An ordinance amending Title 27, titled "Penal Code"; adding joyriding as an offense under Section 2105, "Tampering With Vehicles"; amending Section 306, "Escapes", to include escapes and attempted escapes when a person is arrested or detained by a peace officer; adding a new Section 414, titled "Threatening an Act of Violence"; providing for severability; and declaring an emergency. | 1 | 27 | 414 |
| | | | 2 | 27 | 2105 |
| | | | 3 | 27 | 306 |
| 24829 | 5-25-2022 | An ordinance amending and updating Title 51 Tulsa Revised Ordinances (TRO), "Building Code"; amending Chapter 1, "ICC International Building Code, 2018 Edition, Adopted"; amending Chapter 4, "ICC International Existing Building Code, 2018 Edition, Adopted"; providing for severability; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | 51 | 100, 101 |
| | | | 2 | 51 | 400, 401 |
| 24830 | 5-25-2022 | An ordinance amending Title 52, Tulsa Revised Ordinances, the Electrical Code of the City of Tulsa, Oklahoma, amending Chapter 1, "Administration", Section 100, "Adoption of National Electrical Code, 2017 Edition (NFPA 70-2017)"; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 52 | 100 |
| | | | 2 Rpld | 52 | Ch. 1, 100—110, |
| | | | | 52 | Ch. 2 |
| 24847 | 6-15-2022 | An ordinance amending Title 11-A, Chapter 2, Section 202, Tulsa Revised Ordinances, to increase the monthly service charge rate by eight and one-half percent; providing for severability; repealing all ordinances in conflict herewith; and providing an operative date of October 1, 2022. | 1 | 11-A | 202 |
| 24849 | 6-15-2022 | An ordinance amending Section 628 in Chapter 6 of Title 37, Tulsa Revised Ordinances, Tulsa Revised Traffic Code, of the City of Tulsa, Oklahoma, to more closely conform Tulsa Revised Ordinances with Oklahoma Statutes governing U-turns; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; providing emergency clause. | 1 | 37 | 628 |
| 24853 | 6-15-2022 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Sections 702, and 703, to adjust sewer service charge rates; providing that these rates shall be effective on October 1, 2022; establishing when the amendments enacted by this ordinance shall become operative; and providing for severability. | 1 | 11-C | 702 |
| | | | 2 | 11-C | 703 |
| 24871 | 7-20-2022 | An ordinance amending and updating Title 14 Tulsa Revised Ordinances (TRO), "Fire Prevention Code": Chapter 1; enacting a new section 100, adopting the International Code Council's "(ICC) International Fire Code, 2018 Edition"; enacting a new Section 101, amending, adding or deleting provisions thereof, as provided herein; providing for severability; repealing all ordinances or parts of ordinances in conflict herewith; and declaring an emergency. | 1 | 14 | 100, 101 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24872 | 7-20-2022 | An ordinance amending Title 28, Tulsa Revised Ordinances, "the Municipal Employees' Retirement Plan," by amending Chapter 3 thereof "Contributions," Section 301 "Contributions by Participants," Subsection B "Basic Employee Contributions" to increase employee contributions from 7.5% of earnings to 8% of earnings effective September 25, 2022; directing that the procedures for amending the participants funding requirements as explained in Section 302 of said Title 28 be fully complied with, providing for severability; providing for repeal of conflicting ordinances; declaring an emergency, and providing that the operative date for this ordinance shall be September 25, 2022. | 1 | 28 | 301B. |
| 24875 | 7-20-2022 | An ordinance amending Title 13 Tulsa Revised Ordinances ("TRO"), "Fire Department", by the addition of a new section, Section 202.1, to immediately follow the existing Section 202, "Fire Hydrants Protected"; the new Section 202.1 to be entitled "Decorated Fire Hydrants Within Destination Districts"; allowing the decoration of fire hydrants within the City of Tulsa's destination districts; providing rules, regulations and restrictions for such decoration; identifying funding for the decoration; requiring approval of the decorations from fire, water and sewer departments and the city council; requiring approval from the City of Tulsa Arts Commission; requiring an operational permit; observing the protections for fire hydrants found in other ordinances; permitting the removal of the decoration and restoration of fire hydrants if adjudged necessary in the public interest; setting forth a repealer of conflicting ordinances; providing for severability; and declaring an emergency. | 1 Added | 13 | 202.1 |
| 24877 | 8- 3-2022 | An ordinance of the City of Tulsa, Oklahoma, amending Title 37, Tulsa Revised Ordinances, "Tulsa Revised Traffic Code", Chapter 11, "Pedestrians - Rights and Duties", Section 1105, titled "Pedestrians Soliciting Rides, Employment, Business, or Donations", to permit solicitations in a certain manner; providing for severability; and declaring an emergency. | 1 | 37 | 1105 |
| 24882 | 8-10-2022 | An ordinance amending Tulsa Revised Ordinances Title 5, "Boards, Commissions and Committees"; enacting a new Chapter 9, titled "Disqualification and Removal of Appointees"; stating the purpose for enacting this chapter; prescribing conditions and procedures for the disqualification and removal of appointees; providing exemptions and limitations on conditions and procedures for disqualification and removal of appointees; permitting consideration of absences occurring twelve months before the effective date of this ordinance; providing for severability; and declaring an emergency. | 1 Added | 5 | 900—903 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24889 | 8-10-2022 | An ordinance amending Title 14 Tulsa Revised Ordinances ("TRO"), "Fire Prevention Code"; adding a new section, Section 105.6.49, "Decorative Hydrant Permit", allowing a permit for the painting or decorating of a fire hydrant; amending Section 507.5.1.3, "Fire Hydrant Color" by the addition of an exception to the rule; adding a new section, namely, Section 507.5.1.4, "Decorating or Painting of Fire Hydrants Without a Permit", forbidding the alteration of a fire hydrant without a permit; providing rules and regulations for the painting and decorating of city fire hydrants; setting forth a repealer of conflicting ordinances; providing for severability; and declaring an emergency. | 1—3 | 14 | 101 |
| 24890 | 8-10-2022 | An ordinance amending Subsection J, titled "Determination of Sidewalk Fees" of Section 602, titled "Required Sidewalk and Fee-In-Lieu Option" of Chapter 6, titled "Familiar Rights-of-Way Activities," of Title 35, titled "Infrastructure Development", of the revised ordinances of the City of Tulsa; providing an operative date of September 1, 2022; repealing ordinances in conflict herewith and declaring an emergency. | 1 | 35 | 602J. |
| 24893 | 8-24-2022 | An ordinance amending and updating Title 56 Tulsa Revised Ordinances (TRO), "Plumbing Code"; adoption of "ICC International Plumbing Code", 2018 Edition providing for severability; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | 56 | 100, 101 |
| 24894 | 8-24-2022 | An ordinance amending Title 59, Tulsa Revised Ordinances (TRO), "Mechanical Code"; adoption of "ICC International Mechanical Code," 2018 Edition including Chapters One, Two and Three of the International Mechanical Code, 2018 Edition, Stationary Engineers and the International Fuel Gas Code, amending, adding or deleting provisions thereof, as provided herein; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | 59 | 100, 101 |
| | | | | 59 | 200, 201 |
| | | | | 59 | 300, 301 |
| 24899 | 9-21-2022 | An ordinance amending Title 11-B, Tulsa Revised Ordinances, entitled "Solid Waste Management", Chapter 5, "Solid Waste Rates and Deposits", Section 500B, "Rates for Collection and Disposal"; making necessary amendments to monthly user fees for certain residential collection services, including standard collection services and premium services; amending service charges for physically limited services and other charges; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 11-B | 500B. |
| 24916 | 9-21-2022 | An ordinance of the City of Tulsa, Oklahoma, amending Title 27, Tulsa Revised Ordinances, "Penal Code", Chapter 22, "Public Protections"; repealing Section 2212, titled "Receipt of Tobacco Products by Minors", effective November 1, 2022; amending the remaining sections, Sections 2010 through 2019; adding definitions for "nicotine product" and "vapor product"; regulating access to tobacco, nicotine and vapor products; increasing the age of persons protected by these regulations from those under the age of eighteen (18) to those under the age of twenty-one (21); preserving civil or criminal prosecutions, suits or proceedings pending in any court; providing for severability; and declaring an emergency. | 1 Rpld | 27 | 2212 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | 2 | 27 | 2210, 2211 |
| | | | | 27 | 2213—2219 |
| 24926 | 9-21-2022 | An ordinance amending Title 24, Tulsa Revised Ordinances, by revising Section 201, titled "Abatement", of Chapter 2, titled "Procedure for Abatement"; related to nuisance abatement extension fees as set forth in subsection "F", repealing all ordinances or parts of ordinances in conflict herewith; providing for severability and declaring an emergency. | 1 | 24 | 201 |
| 24935 | 10-26-2022 | An ordinance amending Title 51 Tulsa Revised Ordinances (TRO) "Building Code" to henceforth be titled "Residential Code"; adopting the 2018 International Residential Code; replacing Title 51 TRO's existing Chapter 2 with a new Chapter 2, "ICC International Residential Code for One- and Two-Family Dwellings, 2018 Edition"; adding or deleting certain amended sections, as provided herein; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 51 | 200—203 |
| 24936 | 10-26-2022 | An ordinance amending Title 52 Tulsa Revised Ordinances (TRO), "Electrical Code"; adopting the 2020 National Electrical Code; replacing Title 52 TRO's existing Chapter 1 with a new Chapter 1, "Administration"; replacing Title 52 TRO's existing Chapter 2 with a new Chapter 2, "Amendments to National Electrical Code, 2020 Edition"; adding or deleting certain amended sections, as provided herein; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 52 | 100 |
| | | | | 52 | Ch. 2 |
| 24949 | 11- 2-2022 | An ordinance of the City of Tulsa, Oklahoma, amending Title 11 of Tulsa Revised Ordinances (TRO), titled "Public Works Department", Chapter 16, titled "Small Wireless Communications Facilities"; adding a new Subsection 1612J., to authorize the denial of a right-of-way occupancy permit for failure to comply with the city's underground policy, codified in Title 11, TRO Section 1210; amending Section 1617, titled "Identification on Pole or Other Structure", adopting new Section 1621, titled "Waiver of Underground Requirements", and a new Section 1622, titled "Appeal to the City Council"; providing for severability; repealing all ordinances and parts of ordinances in conflict; establishing an effective date; and declaring an emergency. | 1 | 11 | 1612 |
| | | | 2 | 11 | 1617 |
| | | | 3 Added | 11 | 1621 |
| | | | 4 Added | 11 | 1622 |
| 24950 | 11- 2-2022 | An ordinance of the City of Tulsa, Oklahoma, amending Subsection C, "Location Criteria", Subsection D, "Construction Standards", and Subsection G, "Miscellaneous Standards", of Section 1210, "Engineering Standards" of Chapter 12, "Rights-of-Way Occupancy Management" of Title 11, "Public Works Department", of Tulsa Revised Ordinances (TRO); providing for severability; repealing all ordinances and parts of ordinances in conflict herewith; and declaring an emergency. | 1 | 11 | 1210C. |
| | | | 2 | 11 | 1210D. |
| | | | 3 | 11 | 1201G. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24957 | 11-16-2022 | An ordinance amending Title 37-A Tulsa Revised Ordinances (TRO), entitled "Emergency Medical Services Code," Chapter 1, Emergency Medical Services Code; amending Section 100 - Definitions by adding definitions for contract for special arrangements and supplemental service provider, amending definitions to conform with state law and the uniform ordinance for emergency medical services required by the amended and restated EMS interlocal cooperation agreement; amending Section 101 - Medical Director and Section 102 - Medical Control Board, to conform with the uniform ordinance for emergency medical services required by the amended and restated EMS interlocal cooperation agreement; amending Section 104 - Emergency Medical Services Authority to provide direct emergency medical services and/or contract for the provision of those services and provide compliance measures; amending Chapter 1 by adding Section 104.1 - Supplemental Services by Qualified Supplemental Service Providers to define supplemental services provider, related compliance measures, and to conform to the uniform ordinance for emergency medical services required by the amended and restated EMS interlocal cooperation agreement; amending Chapter 1, Sections 105 through 110 to update defined terms and conform with the uniform ordinance required by the amended and restated EMS interlocal cooperation agreement; amending Chapter 1, Section 111 - Ambulance Response Time Performance Required, by dividing the western division into three sub-areas, lowering the threshold for response time compliance discrimination and limiting allowed exclusions to response time compliance standards; amending Chapter 1, Sections 112 - Prohibition Against Refusal to Transport and 113 - First Responder Agency Certification to update terminology and conform with the uniform ordinance for emergency medical services required by the amended and restated EMS interlocal cooperation agreement; amending Chapter 1, Section 114 to clarify procedures for denial, revocation or suspension of personnel credentialed by the medical director; amending Chapter 1, Section 115 to update terminology and conform to the uniform ordinance for emergency medical services required by the amended and restated EMS interlocal cooperation agreement; amending Section 116 to remove reference to the city jail; to provide for an effective date of December 1, 2022; providing for severability; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | 37-A | 100—116 |
| 24959 | 11-16-2022 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 20 thereof, overlay districts, to add a new Section 20.090 establishing the regulations of a new overlay district titled "Neighborhood Character Overlay" (NCO); providing for severability; and repealing all ordinances or parts of ordinances in conflict herewith. | 1 Added | 42 | 20.090 |
| 24966 | 12- 7-2022 | An ordinance amending Title 27, Tulsa Revised Ordinances, titled "Penal Code", Chapter 3, titled "Offenses Against Public Justice"; adding a new Section 311, titled "Unlawful Bypass of a Security Checkpoint"; providing a penalty for violations of Section 311; providing for severability; and declaring an emergency. | 1 Added | 27 | 311 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 24978 | 1-25-2023 | An ordinance amending Title 27, Tulsa Revised Ordinances, titled "Penal Code", Chapter 3, titled "Offenses Against Public Justice"; adding a new Section 312, titled "Willfully Disturbing or Interfering With City Business, Operations, or Employees"; providing a penalty for violations of Section 312; providing for severability; and declaring an emergency. | 1 Added | 27 | 312 |
| 24980 | 1-25-2023 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Right-of-Way Occupancy Management," by amending Subsection 1206A.3.a, of Section 1206, "Occupancy Fees or Inspection Fee and Service Charge"; increasing the amount of occupancy fee to be charged to occupancy permit holders in order to recover each permit holder's pro rata share of the burden on the right-of-way; providing an effective date of February 1, 2023; repealing ordinances in conflict herewith and declaring an emergency. | 1 | 11 | 1206A.3.a. |
| 24999 | 2-22-2023 | An ordinance amending Title 24 Tulsa Revised Ordinances (TRO), "Nuisances", Chapter 2, "Procedure For Abatement", Section 207, "Appeals to the Council", Subsection C., "Council Action"; deleting the second sentence of Subsection C. to bring it into conformity with City Charter Article II, "the Council", Section 6.2, "Quorum and Voting"; providing severability; repealing any ordinance in conflict with this ordinance; and declaring an emergency. | 1 | 24 | 207C. |
| 25021 | 4-19-2023 | An ordinance amending and updating Title 51 Tulsa Revised Ordinances (TRO), "Residential Code"; amending Chapter 2, "I.C.C. International Residential Code, 2018 Edition, Adopted"; adding Appendix "Q", entitled "Tiny Houses"; setting forth the specifications for tiny houses; providing for severability; repealing all ordinances in conflict herewith; and declaring an emergency. | 1 | 51 | 201 |
| 25041 | 5-24-2023 | An ordinance amending Title 43 Tulsa Revised Ordinances (TRO), "City of Tulsa Sales Tax Code", by the addition of a new section, namely, section 100.5, to be entitled "2023 Temporary Sales Tax Levied"; creating the new sales tax; stating the purpose of the tax; setting a commencement date for the tax; establishing procedures for the deposit of funds generated thereby; directing expenditure of the funds in accordance with Title 43-M TRO; setting a termination date; providing that if, at the August 8, 2023 election, the voters of the City of Tulsa do not approve this 2023 temporary sales tax, then this ordinance shall be null and void and of no further effect; repealing all ordinances in conflict with this ordinance; providing severability; and declaring an emergency. | 1 Added | 43 | 100.5 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25042 | 5-24-2023 | An ordinance enacting a new title within Tulsa Revised Ordinances (TRO) to be called "Title 43-M, 2023 Temporary Sales Tax Policy"; declaring that all revenue generated by this sales tax shall be devoted to certain designated projects; identifying those projects; creating a sales tax overview committee (STOC); setting membership, terms and duties for this committee; establishing a special revenue fund to receive all revenue generated by this sales tax; setting forth the conditions and requirements for any amendment to, or repeal of, this sales tax; providing that if, at the August 8, 2023 election, the voters of the City of Tulsa do not approve the 2023 temporary sales tax, then this ordinance shall be null and void and of no further effect; repealing all ordinances in conflict with this ordinance; providing severability; and declaring an emergency. | 1 Added | 43-M | 100—103 |
| 25049 | 5-24-2023 | An ordinance of the City of Tulsa, Oklahoma, amending Chapter 6, titled "Revenue Collection", of Title 6, titled "Finance Department" of Tulsa Revised Ordinances (TRO), by adopting and enacting new Section 606, titled "Contracts With Persons Having Delinquent Accounts", providing for severability and establishing an effective date. | 1 Added | 6 | 606 |
| 25055 | 5-24-2023 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 1, Introductory Provisions, Section 1.090-1, Public Officials and Agencies, Paragraphs 4 and 10; amending Chapter 5, Residential Districts, Section 5.020, Use regulations, section 5.020-A, Use Classification System; amending Chapter 10, Mixed-Use Districts, Note [1] for Table 10-4: Lot and Building Regulations for -p Character Zones; amending Chapter 15, Office, Commercial & Industrial Districts, Section 15.030-B. Table Notes, Note [6] for Table 15-3: O, C and I District Lot and Building Regulations; amending Chapter 20, Overlay Districts, Section 20.030, SA, Special Area Overlays, Section 20.030-A, General, and 20.030-C Underlying Zoning, amending Chapter 70, Review and Approval Procedures, Table 70-1: Review and Decision-Making Authority Summary Table, and Table 70-1 Notes, and amending Section 70.010-G, Paragraphs 1 and 3; amending Chapter 75, Administration, Section 75.020, Preservation Commission, Section 75.020-L, Staff; amending Chapter 95, Definitions, Section 95.150, Terms Beginning With "L", Land Use Administrator; providing for severability; and repealing all ordinances or parts of ordinances in conflict herewith. | 1 | 42 | 1.090 I.4. |
| | | | 2 | 42 | 1.090 I.10. |
| | | | 3 | 42 | 5.020 A. |
| | | | 4 | 42 | 10.030, Table 10-4 |
| | | | 5 | 42 | 15.030 B., Table 15-3 |
| | | | 6 | 42 | 20.030 A. |
| | | | 7 | 42 | 20.030 C. |
| | | | 8 | 42 | 70.010, Table 70-1 |
| | | | 9 | 42 | 70.010 G.1. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | 10 | 42 | 70.010 G.3. |
| | | | 11 | 42 | 75.020 L. |
| | | | 12 | 42 | 95.150 |
| 25067 | 6-14-2023 | An ordinance amending Title 11-A, Chapter 2, Section 202, Tulsa Revised Ordinances, to increase the monthly service charge rate by eight and one-half percent; providing for severability; repealing all ordinances in conflict herewith; and providing an operative date of October 1, 2023. | 1 | 11-A | 202 |
| 25068 | 6-14-2023 | An ordinance amending Title 11-B, Tulsa Revised Ordinances, entitled "Solid Waste Management", Chapter 5, "Solid Waste Rates and Deposits", Section 500B, "Rates for Collection and Disposal"; making necessary amendments to monthly user fees for certain residential collection services, including standard collection services and premium services; amending service charges for physically limited services and other charges; providing that these rates shall be effective on October 1, 2023; providing for severability; providing for repeal of conflicting ordinances. | 1 | 11-B | 500 B. |
| 25069 | 6-14-2023 | An ordinance amending Title 11, Tulsa Revised Ordinances, entitled "Public Works Department", amending Chapter 12, "Rights-of-Way Occupancy Management", Section 1208, "Rights-of-Way Construction Permits"; amending Schedule A; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 11 | 1208 |
| | | | 2 | 11 | Ch. 12, Sch. A |
| 25074 | 6-14-2023 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 3, titled "Water Rates"; amending Sections 302, 303, 304, 305, 306, 307, and 308 to provide water and sewer rate adjustments; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Sections 702 and 703 to adjust sewer service charge rates; providing that this ordinance shall be effective on October 1, 2023; and providing for severability. | 1 | 11-C | 302 |
| | | | 2 | 11-C | 303 |
| | | | 3 | 11-C | 304 |
| | | | 4 | 11-C | 305 |
| | | | 5 | 11-C | 306 |
| | | | 6 | 11-C | 307 |
| | | | 7 | 11-C | 308 |
| | | | 8 | 11-C | 702 |
| | | | 9 | 11-C | 703 G. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25075 | 6-21-2023 | An ordinance amending Title 35 Tulsa Revised Ordinances (TRO), "Infrastructure Development", Chapter 8, "Infrastructure Development Advisory Board"; changing the title of Chapter 8 to "Infrastructure and Development Advisory Board"; changing the name of the board and everywhere it appears in the ordinance to "Infrastructure and Development Advisory Board" modifying the membership of the board; changing the title of the director to "director of development services"; changing "engineering services" to "public works"; clarifying a quorum to be a majority of current members; providing for severability; repealing ordinances in conflict; and declaring an emergency. | 1 | 35 | 800—804 |
| 25080 | 6-28-2023 | An ordinance amending Title 6, Titled, "Finance Department", Chapter 2, "Budget" by adding Section 206, "Economic Development Incentive Policy" defining the scope of the new section as funds derived by sales tax ordinances and offered to third parties with some exceptions; requiring the city to adopt an economic development incentive policy by resolution; providing for severability; and providing for repeal of conflicting ordinances. | 1 Added | 6 | 206 |
| 25087 | 7-19-2023 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 20 thereof, Overlay Districts, to add a new Section 20.100 establishing the regulations of a new overlay district titled "Neighborhood Infill Overlay-2" (NIO-2); providing for severability; and repealing all ordinances or parts of ordinances in conflict herewith. | 1 Added | | 20.100 |
| 25090 | 7-26-2023 | An ordinance of the City of Tulsa, Oklahoma, amending Section 203, "Collection of Service Charge", of Chapter 2 of Title 11-A, "Stormwater Management and Hazard Mitigation Program"; amending Subsection B. of Section 503, "Allocation of Insufficient Payment" of Chapter 5, of Title 11-B, "Solid Waste Management"; amending Subsection B. of Section 705, "Collection", of Chapter 7, and Section 903, "Deposits for Utility Service", of Chapter 9 of Title 11-C, "Waterworks and Sewerage" of Tulsa Revised Ordinances (TRO); providing for severability; repealing all ordinances and parts of ordinances in conflict herewith and declaring an emergency. | 1 | 11-A | 203 |
| | | | 2 | 11-B | 503 B. |
| | | | 3 | 11-C | 705 B. |
| | | | 4 | 11-C | 903 A., B. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25092 | 7-26-2023 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 5 thereof, Residential Districts, Section 5.030-B, Table notes for Table 5-3: R District Lot and Building Regulations, Note 4; amending Chapter 15 Thereof, Office, Commercial and Industrial Districts, Table 15-2: O, C And I District Use Regulations; amending Chapter 30 Thereof, Legacy Districts, Section 30.010, PUD, Planned Unit Development (Legacy) District, Section 30.010-1 2C, Minor Amendments; amending Chapter 35 Thereof, Building Types and Use Categories, Section 35.040-D, Day Cares; amending Chapter 40 Thereof, Supplemental Use and Building Regulations, Section 40.120, Day Cares; amending Chapter 45 Thereof, Accessory Uses and Structures, Section 45.070, Family Child Care Homes; amending Chapter 70 Thereof, Review and Approval Procedures, Section 70.040-I, Amendments to Approved Development Plans, Section 70.040-I 1, Minor Amendments; providing for severability; and repealing all ordinances or parts of ordinances in conflict herewith. | 1 | 42 | 5.030 B., Table 5-3 |
| | | | 2 | 42 | 15.020, Table 15-2 |
| | | | 3 | 42 | 35.040 D. |
| | | | 4 | 42 | 40.120 |
| | | | 5 | 42 | 45.070 |
| 25100 | 8- 9-2023 | An ordinance amending Title 49, Tulsa Revised Ordinances (TRO), "Administrative, Permit, and License Fees" by the addition of new Chapter 15, titled "Urban Design Permit Fees", repealing all ordinances or parts of ordinances in conflict herewith; providing severability; and declaring an emergency. | 1 Added | 49 | 1501 |
| 25101 | 8- 9-2023 | An ordinance of the City of Tulsa, Oklahoma, amending Section 519, "Parking in Excess of Twenty-Four Hours" of Chapter 5, "Stopping, Standing and Parking Regulations" of Title 37, "Tulsa Revised Traffic Code" of Tulsa Revised Ordinances (TRO); providing for severability; repealing all ordinances and parts of ordinances in conflict herewith and declaring an emergency. | 1 | 37 | 519 |
| 25114 | 8-23-2023 | An ordinance amending Title 5 Tulsa Revised Ordinances (TRO), "Boards, Commissions and Committees", Chapter 7, "Mayor's Commission on the Status of Women"; Changing the Name of this Commission to "Tulsa Women's Commission"; changing the Name Everywhere it appears in Chapter 7; changing the name where it appears in Chapter 1 of Title 5 TRO; repealing all ordinances in conflict herewith; establishing severability; and setting an effective date. | 1 | 5 | Ch. 7(Title) |
| | | | 2 | 5 | 700 |
| | | | 3 | 5 | 705 |
| | | | 4 | 5 | 102 A. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25115 | 8-30-2023 | An ordinance amending Tulsa Revised Ordinances, Title 55, Tulsa Revised Ordinances, "Property Maintenance Code"; enacting a new Chapter 11, titled "Residential Rental Occupancy Standards"; stating the purpose and defining terms used; establishing the duties and authority of the code official; establishing minimum standards for the maintenance of residential rental dwelling units and properties; providing for severability; and declaring an emergency. | 1 Added | 55 | 1100—1115 |
| 25116 | 8-30-2023 | An ordinance amending Tulsa Revised Ordinances; Title 55, Tulsa Revised Ordinances, "Property Maintenance Code"; amending Chapter 1, "General Rules of Property Maintenance"; amending Section 103, "Enforcement", amending Section 104, "Duties and Powers of the Code Official", Subsection 106.2, "Inspections", by adding a new Subsection 104.2.1, titled "Engagement of Professional Expertise"; amending Section 106, "Violations", Subsection 106.6, "Property Manager", Regarding the Requirement of a Local Contact Person and Adding a New Subsubsection 106.6.1 titled "Local Contact Person", detailing a contact person's responsibilities; amending Section 108, "Unsafe Structures and Equipment", Subsection 108.1 "General", by repealing a duplicate Subsection 108.1; amending Section 110, "Appeal" to clarify procedures for appeals, from an action of the Code Official, prescribing the Hearing Officer's authority, and adding procedures for appeals to the City Council; adding a new Section 111, titled "Administrative Equivalencies", to provide for relief from strict compliance with the code in extraordinary circumstances; amending definitions for "Code Official" and "Dwelling Unit" within Chapter 2, "General Principles and Interpretation", Section 201, "Definitions - General"; amending Chapter 3, "Structure and Premises Standards", Section 304, "Exterior Structure", Subsection 304.18, "Building Security", Subsubsection 304.18.1, titled "Doors" by repealing a duplicate Subsubsection 304.18.1; amending Sections 802, 803, 804, 805 and 806 of Chapter 8, "Chronic Nuisance Properties"; providing for severability; and declaring an emergency. | 1 | 55 | 103 |
| | | | 2 | 55 | 104.2 |
| | | | 3 | 55 | 106.6 |
| | | | 4 | 55 | 108.1 |
| | | | 5 | 55 | 110 |
| | | | 6 Added | 55 | 111 |
| | | | 7 | 55 | 201 |
| | | | 8 | 55 | 304.18 |
| | | | 9 | 55 | 802—806 |
| 25145 | 9-27-2023 | An ordinance amending Title 5, Tulsa Revised Ordinances entitled "Boards, Commissions and Committees" by enacting a new Chapter 8, creating an advisory commission to the City of Tulsa pursuant to the amended Charter, Article XII, Section 4, to be known as "the Asian Affairs Commission", providing for the appointments and terms of its members, and the powers, duties and responsibilities of the commission; repealing ordinances in conflict, providing for severability, and declaring an emergency. | 1 Added | 5 | 800—802 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25151 | 10-25-2023 | An ordinance amending Title 2 Tulsa Revised Ordinances (TRO), "Animals", Chapter 5, "Dead Animals", Section 500, "Dead Animals—Unlawful Disposal"; changing the name of Section 500 to "Dead Animals—Unlawful Disposal; Burial in AG-Zoned Land"; allowing the carcasses of large agricultural animals to be buried on land which is zoned "AG" and at least eighty (80) acres in size if in compliance with carcass disposal guidelines published by the Oklahoma Department of Agriculture, Food and Forestry; providing citation to said department's website; amending Sections 501 and 502 to replace "Streets and Stormwater" with "Public Works" wherever those words appear in those sections; repealing all ordinances in conflict herewith; providing severability; and declaring an emergency. | 1 | 2 | 500 |
| | | | 2 | 2 | 501, 502 |
| 25152 | 10-25-2023 | An ordinance amending Title 24 Tulsa Revised Ordinances (TRO), "Nuisances", Chapter 1, "Nuisances Classified", Section 101, "Nuisances Affecting Health", Subsection B, "Health Nuisances", Paragraph 3; declaring that animal carcasses which have not been disposed of in accord with Title 2 TRO, "Animals", Chapter 5, "Dead Animals" shall be considered a nuisance; repealing any ordinance in conflict herewith; providing for severability; and declaring an emergency. | 1 | 24 | 101 B.3. |
| 25178 | 11- 1-2023 | An ordinance amending Title 35 Tulsa Revised Ordinances (TRO), "Infrastructure Development", Section 602, "Required Sidewalks and Fee-In-Lieu Option"; striking from subsection "A", "Definitions", the definition "Engineering Services Director" as no longer applicable; adding to subsection "A", "Definitions", the definition of "Deputy Director", that is: the Deputy Director of the Public Works Department; substituting the term "Public Works" everywhere the inapplicable terms "Engineering Services" or "Streets and Stormwater" appear in the ordinance; adding the word "Deputy" before the word "Director" everywhere it appears in Subsection "E", "Other Locations Eligible for the Fee-in-Lieu Option", with one exception in the last paragraph of Subsection "E"; adding the word "Deputy" before the word "Director" in the first and sixth sentences in Subsection "F", "Appeal of Denial of Application for Approval of Sidewalk Fees-in-Lieu"; Requiring a Majority Vote of the Quorum of the City Council as Necessary for Reversal in Subsection "H", "City Council Action"; adjusting fees in Subsection "J", "Determination of Sidewalk Fees"; repealing all ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 35 | 602 |
| 25185 | 11-29-2023 | An ordinance of the City of Tulsa, Oklahoma, amending Title 27 Tulsa Revised Ordinances (TRO), Chapter 21 "Private Property" Section 2106, "Trespassing", by amending the potential punishment for violation of said section; providing for severability. | 1 | 27 | 2106 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25186 | 11-29-2023 | An ordinance amending Title 2 Tulsa Revised Ordinances (TRO), "Animals", amending Chapter 4, "Miscellaneous Provisions"; deleting the text of Section 406, "Outdoor Shelter Requirements", and reserving Section 406 for future legislation; deleting the title of Section 406, "Outdoor Shelter Requirements", and printing the word "reserved" in its place; enacting a new Section 401, to be entitled "Standards of Humane Care and Treatment"; setting forth the obligations of any person possessing an animal within the corporate limits of the City of Tulsa; establishing standards of cleanliness, health, nutrition and sanitation for animals' shelters and exercise spaces; setting requirements for collars, leashes and tethering; granting authority to city officers to enforce the terms of this ordinance; providing a graduated schedule of penalties for violation of this ordinance; setting forth severability; repealing conflicting ordinances; and declaring an emergency. | 1, 2 Rpld | 2 | 406 |
| | | | 3 Added | 2 | 401 |
| 25189 | 11-29-2023 | An ordinance amending Title 28, Tulsa Revised Ordinances, entitled "the Municipal Employees' Retirement Plan," amending Section 704(a) to increase the required minimum distribution age in accordance with the requirements of the Internal Revenue Code; providing for severability; and providing for repeal of conflicting ordinances. | 1 | 28 | 704 A. |
| 25190 | 11-29-2023 | An ordinance amending Section 200, "Corporate Seal", of Chapter 2, "Corporate Seal, Council Seal and City Flag", of Title 3, "Public Property, Records, Flag, Seal", of Tulsa Revised Ordinances, relating to the design of the corporate seal of the City of Tulsa, Oklahoma; and repealing all ordinances and parts of ordinances in conflict herewith. | 1 | 3 | 200 |
| 25192 | 12- 6-2023 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 5, Residential Districts, Table 5-2: R District Use Regulations and adding Table Note [4]; amending Chapter 10, Mixed-Use Districts, Table 10-2: MX District Use Regulations; amending Chapter 15, Office, Commercial and Industrial Districts, Table 15-2: O, C, and I District Use Regulations; amending Chapter 25, Special Districts, Table 25-1: AG District Use Regulations and adding Table Note [4]; Table 25-4: CO District Use Regulations; Table 25-5: SR District Use Regulations; Table 25-7: IMX District Use Regulations; amending Chapter 35, Building Types and Use Categories, Section 35.040, Public, Civic and Institutional Use Category, Section 35.040-D Day Care, by adding a definition for "child care center" and a definition for "family child care home"; amending Chapter 40, Supplemental Use and Building Regulations, Section 40.120 Day Cares, by delineating regulations for child care centers and family child care homes; and amending Chapter 45, Accessory Uses and Structures, Section 45.070 Family Child Care Homes by deleting Section 45.070-F and deleting Figure 45-2; providing for severability; and repealing all ordinances or parts of ordinances in conflict herewith. | 1 | 42 | 5.020, Table 5-2 |
| | | | Added | 42 | Table 5-2 Note [4] |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | 2 | 42 | 10.020, Table 10-2 |
| | | | 3 | 42 | 15.020, Table 15-2 |
| | | | 4 | 42 | 25.020, Table 25-1 |
| | | | Added | 42 | Table 25-1 Note [4] |
| | | | 5 | 42 | 25.040, Table 25-4 |
| | | | 6 | 42 | 25.050, Table 25-5 |
| | | | 7 | 42 | 25.060, Table 25-7 |
| | | | 8 | 42 | 35.040D. |
| | | | 9 | 42 | 40.120 |
| | | | 10 Rpld | 42 | 45.070F. |
| | | | Rpld | 42 | 45.070, Fig. 45-2 |
| | | | Rnbd | 42 | 45.070, Fig. 45-3 |
| | | | as | 42 | 45.070, Fig. 45-2 |
| 25212 | 12-20-2023 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 20 thereof, Overlay Districts, Section 20.020 HP, Historic Preservation Overlays, Section 20.020D. Design Guidelines; amending Chapter 70 thereof, Review and Approval Procedures, Section 70.070, HP Permits, Section 70.070B., Exemptions, Section 70.070K. Action by Preservation Officer; providing for severability; and repealing all ordinances or parts of ordinances in conflict herewith. | 1 | 42 | 20.020D. |
| | | | 2 | 42 | 70.070B. |
| | | | 3 | 42 | 70.070K. |
| 25219 | 1-24-2024 | An ordinance of the City of Tulsa, Oklahoma, amending Title 2 of Tulsa Revised Ordinances, "Animals", Chapter 1, "Definitions; Regulation Generally", Section 106, "Rabies Suspect", by clarifying the requirement to surrender any rabies-suspected animal; establishing and clarifying requirements for home quarantine of rabies-suspect animals; updating the name of the relevant City department from "win" to "department of city experience"; renumbering for clarity; providing for severability; and repealing any conflicting ordinances. | 1 | 2 | 106 |
| 25220 | 1-24-2024 | An ordinance of the City of Tulsa, Oklahoma, amending Title 24, of Tulsa Revised Ordinances, "Nuisances," Chapter 1, "Nuisances Classified," Section 103, "Nuisances Affecting Peace and Safety," by clarifying and adding types of public nuisances that affect the peace and safety of Tulsa residents; providing for severability; repealing any conflicting ordinances; and declaring an emergency. | 1 | 24 | 103 |
| 25221 | 1-24-2024 | An ordinance of the City of Tulsa, Oklahoma, amending Title 24 of Tulsa Revised Ordinances, "Nuisances," Chapter 1, "Nuisances Classified," by adding a Section 107, "Application to Private Property Abutting a Right-of-Way," which clarifies a property owner's responsibility as to property abutting a public right-of-way; providing for severability; repealing any conflicting ordinances; and declaring an emergency. | 1 Added | 24 | 107 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25232 | 1-24-2024 | An ordinance amending Title 33, Tulsa Revised Ordinances, "General Provisions," Section 101, "Definitions and Rules of Construction"; subsection E. entitled "Delegation of Authority"; repealing all ordinances in conflict herewith; and providing severability. | 1 | 33 | 101E. |
| 25244 | 1-31-2024 | An ordinance of the City Of Tulsa, Oklahoma, Amending Title 11-A, "Stormwater Management and Hazard Mitigation Program", Chapter 3, "Watershed Development Regulations", Section 301, "Scope and Definitions", by the addition of a new definition, "11. Drainage Sensitive Area (DSA)"; renumbering the definitions as necessary; amending Title 11-A, Section 304, "Policies and Standards for Approval of Watershed Development Permits, Subdivision Plats, Lot Splits and Building Permits" by the addition of a new subsection, subsection "F", "Drainage Sensitive Area (DSA) Policies and Standards"; providing for severability; repealing all ordinances and parts of ordinances in conflict herewith; and declaring an emergency. | 1 | 11-A | 301B. |
| | | | 2 Added | 11-A | 304F. |
| 25272 | 3-27-2024 | An ordinance of the City of Tulsa, Oklahoma, amending Title 27 Tulsa Revised Ordinances (TRO), Chapter 21 "Private Property" Section 2106, "Trespassing", by amending a scrivener's error adopted in Ordinance No. 25185 amending the potential punishment for violation of said section; providing for severability; and providing for repeal of conflicting ordinances. | 1 | 27 | 2106B.2 |
| 25276 | 4-17-2024 | An ordinance amending Title 4 Tulsa Revised Ordinances, Chapter 1, Section 100, "Salary of Mayor," amending the Mayor's salary commencing December 2, 2024; amending Section 200, "Salary of Auditor," setting auditor's salary to match Tulsa Charter Article IV, Section 2; amending Section 309, "Salary of Councilors," setting councilors' salary to match Tulsa Charter Article II, Section 2; providing for eligibility of elected officials to participate in deferred compensation plan and establishing the City contribution to said plan; providing for severability; and repealing all ordinances in conflict herewith. | 1 | 4 | 100 |
| | | | 2 | 4 | 200 |
| | | | 3 | 4 | 309 |
| 25306 | 5- 8-2024 | An ordinance of the City of Tulsa, Oklahoma, amending Title 21, Chapter 11 Tulsa Revised Ordinances (TRO), titled "Pawnbrokers" to amend the ordinances to comply with state laws in Sections 1501 et seq. of Title 59 of the Oklahoma Statutes; repealing any conflicting ordinances; providing for severability; and declaring an emergency. | 1 | 21 | 1104 |
| | | | 2 | 21 | 1105 |
| | | | 3 | 21 | 1106 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25307 | 5- 8-2024 | An ordinance amending Title 11 Tulsa Revised Ordinances (TRO), "Public Works Department", Chapter 12, "Rights-of-Way Occupancy Management", Section 1208, "Rights-of-Way Construction Permits", Subsection B, "Application and Permit Fees", Paragraph 4, "Permit and Licensing System Maintenance Fee", Paragraph 5, "Record Retention Fee", and Paragraph 6, "Inspection Fee"; deleting specific dollar amounts from those paragraphs; referring the reader to the appropriate section of Title 49 TRO, "Administrative, Permit, and License Fees"; repealing any ordinance in conflict herewith; providing severability; and declaring an emergency. | 1 | 11 | 1208B. |
| 25317 | 5-15-2024 | An ordinance amending Title 27, Section 1206, prohibiting obstruction of any street, alley, crosswalk, sidewalk, driveway, or trail used for the passage of pedestrians; establishing a penalty and an affirmative defense; and providing for severability. | 1 | 27 | 1206 |
| 25321 | 5-22-2024 | An ordinance amending Title 5, Tulsa Revised Ordinances, entitled "Boards, Commissions, and Committees," by adding Chapter 14 entitled "Tulsa Route 66 Commission"; creating Tulsa Route 66 Commission; setting forth the membership of the commission; setting forth the duties of the commission; requiring the board to cooperate with others; setting out requirements for offices and meetings; providing for severability; providing for repeal of conflicting ordinances; declaring an emergency and providing that the operative date for this ordinance shall be July 1, 2024. | 1 Added | 5 | 1400—1404 |
| 25322 | 5-22-2024 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42, TRO") by amending Chapter 20, Overlay Districts, Subsection "B", Purpose and Intended Use, of Section 20.030, SA, Special Area Overlays, amending the title of Section 20.070, Route 66 Overlay, amending Subsection "A", General, of Section 20.070, Route 66 Overlay, adopting new subsection "C", Roadside Attractions of Section 20.070, amending Chapter 95, Definitions, Section 95.210, Terms Beginning with "R", providing for severability, repealing all ordinances in conflict herewith, and declaring an emergency. | 1 | 42 | 20.070(title) |
| | | | 2 | 42 | 20.030B. |
| | | | 3 | 42 | 20.070A. |
| | | | 4 Added | 42 | 20.070C. |
| | | | 5 | 42 | 95.210 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25330 | 6- 5-2024 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Chapter 20, Overlay Districts, Section 20.030, "SA, Special Area Overlays", Section 20.050, "RDO, River Design Overlays", and Section 20.100, "NIO-2, Neighborhood Infill Overlay-2"; amending Chapter 35, Building Types and Use Categories, Section 35.050, "Commercial Use Category", Section 35.060, "Wholesale, Distribution & Storage Use Category", Section 35.070, "Industrial Use Category", and Section 35.090, "Agricultural Use Category"; amending Chapter 40, Supplemental Use and Building Regulations, Section 40.225 "Medical Marijuana Uses"; amending Chapter 55, Parking, Section 50.090, "Parking Area Design", and Section 55.100, "Stacking Spaces for Drive-Through Facilities"; amending Chapter 70, Review and Approval Procedures, Section 70.140, "Appeals of Administrative Decisions"; amending Chapter 80, Nonconformities, Section 80.060, "Nonconforming Signs"; amending Chapter 85, Violations, Penalties and Enforcement, Section 85.010, "Responsibility for Enforcement"; amending Chapter 90, Measurements, Section 90.060, "Lot Width", and Section 90.170, "Other Height Measurements", and adding a New Section 90.065, "Lot Depth"; amending Chapter 95, Definitions, Section 95.040, Terms Beginning with "A", Section 95.150, "Terms Beginning with "L", and Section 95.210, Terms Beginning with "R"; providing for severability; and repealing all ordinances or parts of ordinances in conflict herewith. | 1 Rpld | 42 | 20.030E. |
| | | | 2 | 42 | 20.030A.5.b.(2) |
| | | | 3 | 42 | 20.100 Table 20-7 notes |
| | | | 4 | 42 | 35.050D.5. |
| | | | 5 | 42 | 35.050L.6. |
| | | | 6 | 42 | 35.050P. |
| | | | 7 | 42 | 35.060D. |
| | | | 8 | 42 | 35.070A. |
| | | | 9 | 42 | 35.070B. |
| | | | 10 | 42 | 35.070C. |
| | | | 11 | 42 | 35.070D. |
| | | | 12 | 42 | 35.090D.1. |
| | | | 13 | 42 | 40.225 |
| | | | 14 | 42 | 55.090F. |
| | | | 15 | 42 | 55.100A. |
| | | | 16 | 42 | 70.140C. |
| | | | 17 | 42 | 80.060B. |
| | | | 18 | 42 | 85.010 |
| | | | 19 | 42 | 90.060 |
| | | | 20 Added | 42 | 90.060 |
| | | | 21 | 42 | 90.170A. |
| | | | 22 | 42 | 95.040 |
| | | | 23 | 42 | 95.150 Fig. 95-4 |
| | | | 24 | 42 | 95.160 Fig. 95-6 |
| | | | 25 | 42 | 95.210 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25341 | 6-12-2024 | An ordinance amending Title 11-A, Chapter 2, Section 202, Tulsa Revised Ordinances, to increase the monthly service charge rate by fifteen percent; providing for severability; repealing all ordinances in conflict herewith; and providing an operative date of October 1, 2024. | 1 | 11-A | 202 |
| 25342 | 6-12-2024 | An ordinance amending Title 11-B, Tulsa Revised Ordinances, entitled "Solid Waste Management", Chapter 5, "Solid Waste Rates and Deposits", Section 500B, "Rates for Collection and Disposal", and Section 502b, "Green Waste Disposal Site Rate"; making necessary amendments to monthly user fees for certain residential collection services, including standard collection services and premium services; amending service charges for physically limited services and other charges; providing that these rates shall be effective on October 1, 2024; providing for severability; providing for repeal of conflicting ordinances. | 1 | 11-B | 500B. |
| | | | 2 | 11-B | 502B. |
| 25348 | 6-12-2024 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, Titled "Waterworks and Sewerage"; amending Chapter 3, Titled "Water Rates"; amending Sections 302, 303, 304, 305, 306, 307, and 308 to provide water and sewer rate adjustments; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Section 702 and 703 to adjust sewer service charge rates; providing that these rates shall be effective on October 1, 2024; establishing when the amendments enacted by this ordinance shall become operative and providing for severability. | 1 | 11-C | 302 |
| | | | 2 | 11-C | 303 |
| | | | 3 | 11-C | 304 |
| | | | 4 | 11-C | 305 |
| | | | 5 | 11-C | 306 |
| | | | 6 | 11-C | 307 |
| | | | 7 | 11-C | 308 |
| | | | 8 | 11-C | 702 |
| | | | 9 | 11-C | 703G. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25351 | 7-17-2024 | An ordinance amending Title 49 Tulsa Revised Ordinances (TRO), "Administrative, Permit, and License Fees", Chapter 1, "General Administrative Fees", Sections 101, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 117, 118, 119, 120, 121, 122 and 123; Chapter 2, "Annual Permit Fees", Sections 201, 202, 203 and 204; Chapter 3, "Building Permit Fees", Sections 301, 302, 303, 304, 305, 306, 307, 308, 310, 311, 312, 314, 315, 316, 317, 319, 320, 321, 323, 325, 326 and 327; Chapter 4, "Electrical Permit Fees", Sections 401, 402, 403, 404 and 405; Chapter 5, "Mechanical Permit Fees", Sections 500, 501 and 502; Chapter 6, "Manufactured Homes Permit", Sections 602 and 603; Chapter 7, "Third Party Plan Review and Inspections", Introductory Paragraph and Sections 700, 701, 702 and 703; Chapter 8, "Plumbing Permit Fees", Section 800, 801, 802 and 803; Chapter 9, "Infrastructure Development Permit Fees", Sections 901, 902, 903, 904, 905 and 906; Chapter 10, "Special Event Permit Fees", Introductory Paragraph and Sections 1000, 1001, 1002, 1003 and 1004; Chapter 12, "Stormwater Drainage Service Fees", Sections 1200, 1201, 1202, 1203, 1204 and 1205; Chapter 13, "Water and Sanitary Sewer Fees", Sections 1300, 1301 and 1302; Chapter 14, "Fire Prevention Code Fees", Sections 1401, 1402, 1403, 1404, 1405, 1406, 1407, 1408, 1409, 1410, 1411, 1412, 1413, 1414, 1415, 1416, 1417, 1418, 1419, 1420, 1421, 1422, 1423, 1424, 1425, 1426, 1427, 1428, 1429, 1430, 1431, 1432, 1433, 1434, 1435, 1436, 1437, 1438, 1439, 1440, 1441, 1442, 1443, 1444, 1445, 1446, 1447, 1448, 1449, 1450, 1451, 1452, 1453 and 1454; Chapter 16, "Utility Coordination Fees", Sections 1600, 1601, 1602 and 1603; adding a new section, namely Section 124; deleting Section 318; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 49 | 100—124, |
| | | | 1 | 49 | 200—204, |
| | | | 1 | 49 | 300—327, |
| | | | 1 | 49 | 400—405, |
| | | | 1 | 49 | 500—502, |
| | | | 1 | 49 | 600—603, |
| | | | 1 | 49 | 700—703, |
| | | | 1 | 49 | 800—803, |
| | | | 1 | 49 | 900—906, |
| | | | 1 | 49 | 1000—1004, |
| | | | 1 | 49 | 1200—1206, |
| | | | 1 | 49 | 1300—1302, |
| | | | 1 | 49 | 1400—1454, |
| | | | 1 | 49 | 1500, |
| | | | 1 | 49 | 1600—1603 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25354 | 7-24-2024 | An ordinance amending Title 37 Tulsa Revised Ordinances (TRO), "Tulsa Revised Traffic Code"; amending Chapter 3, "Parties and Procedures Upon Arrest", amending Section 305, "Authority to Impound Vehicles", Section 318, "Record to be Sent to the Department of Public Safety for the state of Oklahoma", Chapter 4, "Licenses and Registration Requirements", Section 400, "Only Licensed Persons May Operate", Section 402, "Unlawful Use of License or Identification Card", Section 412, "Class and Endorsement Requirements for Driver's Licenses", Chapter 5, "Stopping, Standing and Parking Regulations", Section 525, "Disabled Persons Parking", Changing Mention of "Oklahoma Department of Public Safety" to "Service Oklahoma, or Other State Agency Designated by the state of Oklahoma"; amending Chapter 7, "Equipment Requirements", Section 731, "Headgear", Changing Mention of "Standards Established by the Department of Public Safety of the state of Oklahoma" to "Standards Approved by the Department of Public Safety of the state of Oklahoma, in Conjunction With Service Oklahoma, or Other State Agency Designated by the state of Oklahoma"; amending Chapter 13, "Security Verification Forms", Section 1304, "Forged or False Security Verification", Adding "or Service Oklahoma, or Any Other State Agency Designated by the state of Oklahoma", as an Entity to be Contacted in Addition to the Department; amending Chapter 14, "Special Events", Section 1402, "Special Event Permit Required", Changing Mention of "Oklahoma Department of Public Safety (DPS)" to "Oklahoma Department of Transportation (DOT), or any other state agency designated by the state of Oklahoma; providing for severability; repealing other ordinances in conflict herewith; and declaring an emergency. | 1 | 37 | 305B. |
| | | | 2 | 37 | 318 |
| | | | 3 | 37 | 400 |
| | | | 4 | 37 | 402 |
| | | | 5 | 37 | 412B. |
| | | | 6 | 37 | 525C. |
| | | | 7 | 37 | 731 |
| | | | 8 | 37 | 1304 |
| | | | 9 | 37 | 1402C. |
| 25373 | 7-31-2024 | An ordinance of the City of Tulsa, Oklahoma, amending Title 26, Tulsa Revised Ordinances (TRO), titled "Parks, Mall and Plaza," to add a new Section 112 defining the extent of Zink Lake and South Tulsa Lake and regulating the use of watercraft and other conduct on Arkansas River Lakes; amending Sections 103 and 105 defining acts prohibited in parks; amending Sections 106 and 107 relating to park permits; providing that notice of rules and regulations will be posted at park and lake entrances; repealing any conflicting ordinances; providing for severability; and declaring an emergency. | 1 | 26 | 103 |
| | | | | 26 | 105—107 |
| | | | Added | 26 | 112 |
| | | | Rnbd | 26 | 112 |
| | | | as | 26 | 113 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25374 | 7-31-2024 | An ordinance of the City of Tulsa, Oklahoma, amending Subsection C, "Experience", Subsection D, "Retesting", and Subsection E, "Issuance of Certificates of Competency", of Section 200, "Examination and Licensing of Stationary Engineers and Process Steam Boiler Operators", and Amending Subsection B, "Periods of Duty Established for Stationary Engineers and Process Steam Boiler Operator Operating Mechanical Equipment Requiring Licensed Operators", and Subsection E, "Operating Procedures for Process Steam Boilers", adopting new Subsection "F", "Operating Procedures for Process Steam Boilers Monitored With Computerized Safety Equipment" of Section 201, "Mechanical Equipment Requiring Licensed Operators", of Chapter 2, "Stationary Engineers", of Title 59, "Mechanical Code", of Tulsa Revised Ordinances (TRO); providing for severability; repealing all ordinances and parts of ordinances in conflict herewith, and establishing an effective date. | 1 | 59 | 200C. |
| | | | 2 | 59 | 200D. |
| | | | 3 | 59 | 200E. |
| | | | 4 | 59 | 201B. |
| | | | 5 | 59 | 201E. |
| | | | Added | 59 | 201F. |
| 25381 | 8- 7-2024 | An ordinance amending Section 1400, "Noises", of Chapter 14, "Disturbing The Peace", in Title 27, "Penal Code", Tulsa Revised Ordinances, repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 27 | 1400 |
| 25385 | 8-21-2024 | An ordinance amending Title 5, Chapter 3, Tulsa Revised Ordinances, titled "Arts Commission of the City of Tulsa" amending Section 301 "Membership" to amend the qualifications and membership of the Arts Commission; amending Section 302 "Duties" Subsection "F" to clarify the required Council votes related to the vision arts program, reduce the number of independent review panel members, amend the composition of the independent review panel, add a non-voting chair and remove references to pandemic related programs; providing for severability; and providing for repeal of conflicting ordinances. | 1 | 5 | 301 |
| | | | 2 | 5 | 302F. |
| 25386 | 8-21-2024 | An ordinance amending Chapter 1 of Title 44, Tulsa Revised Ordinances (TRO), "City of Tulsa Hotel Tax Code" by amending Subsection G, "Rent" of Section 100, "Definitions"; amending section 101, "imposition of tax; exemptions"; repealing all ordinances or parts of ordinances in conflict herewith; providing severability; and declaring an emergency. | 1 | 44 | 100G. |
| | | | 2 Added | 44 | 101D. |
| | | | 3 Rnbd | 44 | 101D.—J. |
| | | | as | 44 | 101E.—K. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25399 | 9-18-2024 | An ordinance amending Title 11-A Tulsa Revised Ordinances (TRO), "Stormwater Management and Hazard Mitigation Program", Chapter 3, "Watershed Development Regulations", Section 301, "Scope and Definitions", Subsection B, "Definitions", by adding certain definitions as requested by the Federal Emergency Management Agency (FEMA) and renumbering said definitions appropriately; amending said Title 11-A, Section 304, "Policies and Standards for Approval of Watershed Development Permits, Subdivision Plats, Lot-Splits and Building Permits", Subsection E.3, "Area of Special Flood Hazard, Policies and Standards" by amending Paragraph "B"; amending said Section 304, Subsection F "Drainage Sensitive Area (DSA) Policies and Standards" by updating and adding certain text to clarify that the requirements provided in Section 304.F apply to drainage sensitive areas as defined in Section 301.B.; providing severability; repealing any and all ordinances in conflict herewith; and declaring an emergency. | 1 | 11-A | 301B. |
| | | | 2 | 11-A | 304.E.3. |
| | | | 3 | 11-A | 304F. |
| 25425 | 10-16-2024 | An ordinance amending Title 37 Tulsa Revised Ordinances (TRO), "Tulsa Revised Traffic Code"; correcting errors created by Scrivener's errors in Ordinance 25354 by amending Chapter 3, "Parties and Procedures Upon Arrest", amending Section 305, "Authority to Impound Vehicles", Chapter 4, "Licenses and Registration Requirements", Section 402, "Unlawful Use of License or Identification Card", Section 412, "Class and Endorsement Requirements for Driver's Licenses", Chapter 5, "Stopping, Standing and Parking Regulations", Section 525, "Disabled Persons Parking", amending Chapter 14, "Special Events", Section 1402, "Special Event Permit Required", providing penalties and enforcement terms; providing for severability; repealing other ordinances in conflict herewith; and declaring an emergency. | 1 | 37 | 305 |
| | | | 2 | 37 | 402 |
| | | | 3 | 37 | 412 |
| | | | 4 | 37 | 525 |
| | | | 5 | 37 | 1402 |
| 25426 | 10-16-2024 | An ordinance amending Subsection J, titled "Determination of Sidewalk Fees" of Section 602, titled "Required Sidewalk and Fee-In-Lieu Option" of Chapter 6, titled "Familiar Rights of Way Activities," of Title 35 titled "Infrastructure Development", of the revised ordinances of the City of Tulsa; providing an operative date of November 1, 2024; repealing ordinances in conflict and declaring an emergency. | 1 | 35 | 602J. |
| 25427 | 10-16-2024 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, Titled "Waterworks and Sewerage"; amending Chapter 7, Titled "Sanitary Sewer User Charge System"; amending section 708 to adjust sewer service charge rates; providing that these rates shall be effective on November 1, 2024; establishing when the amendments enacted by this ordinance shall become operative; providing for severability and declaring an emergency. | 1 | 11-C | 708 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25429 | 10-30-2024 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances by amending Chapter 5, "Residential Districts," Section 5.020, "Use Regulations," Table 5-2: R District Use Regulations and Table 5-2 Notes; amending Chapter 15, "Office, Commercial and Industrial Districts," Section 15.020, "Use Regulations," Section 15.020-H, "Residential Building Types," Table 15-2.5: O, C, and I District Building Type Regulations for Household Living, and Section 15.030, "Lot and Building Regulations," Section 15.030-A, "Table of Regulations," Table 15-3: O, C and I District Lot and Building Regulations, and Section 15.030-B, "Table Notes"; amending Chapter 20, "Overlay Districts," Section 20.080, "NIO, Neighborhood Infill Overlay," Section 20.080-B, "Use Regulations - Residential, Household Living," Table 20-4: Neighborhood Infill Overlay District Use Regulations for Household Living, and Section 20.080-B(4), "Table 20-4 Notes," Section 20.090, "NCO, Neighborhood Character Overlay," Section 20.090-C, "Accessory Building Regulations," and Section 20.100, "NIO-2, Neighborhood Infill Overlay - 2," Section 20.100-B, "Use Regulations - Residential, Household Living," Table 20-6: NIO-2 District Use Regulations for Household Living, and section 20.100-B(4), "Table 20-6 Notes"; amending Chapter 25, "Special Districts," Section 25.020, "AG, Agricultural District and AG-R, Agricultural-Residential District," Section 25.020-B, "Use Regulations," Table 25-1: AG District Use Regulations and Section 25.020-B(3), "Table Notes"; amending Chapter 40, "Supplemental Use and Building Regulations," Section 40.110, "Cottage House Developments," and Section 40.210, "Manufactured Housing Units"; amending Chapter 45, "Accessory Uses and Structures," Section 45.030, "Accessory Buildings and Carports in R Districts," Section 45.030-A, "Accessory Building Size," Section 45.031, "ADU, Accessory Dwelling Units in R, AG, and AG-R Districts," Section 45.031-A, "Definition," Section 45.031-B, "Purpose," and Section 45.031-D, "Regulations"; amending Chapter 55, "Parking," Section 55.010, "General," Section 55.010-B, "Applicability," Section 55.010-B(3), "Change of Use," and Section 55.020, "Minimum Parking Ratios," Table 55-1: Minimum Motor Vehicle Parking Ratios; amending Chapter 90, "Measurements," Section 90.090, "Setbacks," Section 90.090-C, "Permitted Setback Obstructions in R Zoning Districts," Section 90.090-C(2)(a)-(b), "Detached Accessory Buildings, Including Accessory Dwelling Units, in RE, RS, RD Districts and RM Zoned Lots Used for Detached Houses or Duplexes.," Figure 90-9: Maximum Height of Accessory Buildings, Including Accessory Dwelling Units in Rear Setbacks (RE, RS and RD Districts or RM Zoned Lots Used for Detached Houses or Duplexes), Table 90-2: Accessory Building, including accessory dwelling units, coverage limits in rear setback, and Figure 90-10: Required Setbacks for Accessory Buildings, including accessory dwelling units, in rear setbacks (RE, RS and RD Districts and RM Zoned Lots Used for Detached Houses and Duplexes); providing for severability; and repealing all ordinances or parts of ordinances in conflict herewith. | 1, 2 | 42 | 5.020 |
| | | | 3 | 42 | 15.020H. |
| | | | 4 | 42 | 15.030A. |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | 5 | 42 | 15.030B. |
| | | | 6, 7 | 42 | 20.080B. |
| | | | 8 | 42 | 20.090C. |
| | | | 9, 10 | 42 | 20.100B. |
| | | | 11, 12 | 42 | 25.020B. |
| | | | 13 | 42 | 40.110 |
| | | | 14 | 42 | 40.210 |
| | | | 15 | 42 | 45.030A. |
| | | | 16 | 42 | 45.031 |
| | | | 17 | 42 | 55.010B.3. |
| | | | 18 | 42 | 55.020 |
| | | | 19 | 42 | 90.090C.2. |
| 25449 | 11- 6-2024 | An ordinance amending Title 12, Tulsa Revised Ordinances, Chapter 6, titled "Ethics Code," defining terms, prohibiting and requiring disclosure of conflicts of interest, establishing a process for complaints and investigations, creating the ethics advisory commission, repealing all ordinances in conflict herewith, providing for severability, and declaring an emergency. | 1 | 12 | 600—607 |
| 25464 | 11- 6-2024 | An ordinance amending Tulsa Revised Ordinances Title 11, "Public Works Department", Chapter 12, "Rights-of-Way Occupancy Management", Section 1202, "Definitions", by amending the definitions of the terms "affiliate", "person", and "video service gross revenue"; providing for severability; setting an effective date; and repealing all ordinances or parts of ordinances in conflict herewith. | 1—3 | 11 | 1202 |
| 25476 | 11-20-2024 | An ordinance amending Title 28, Tulsa Revised Ordinances, Section 1000, titled "Board of Trustees," deleting one of two board positions held by classified city employees; providing that one member of the board will be an active employee participant in the plan employed by an agency other than the City of Tulsa; deleting obsolete provisions relating to staggered terms; repealing all ordinances in conflict herewith; and providing for severability. | 1 | 28 | 1000 |
| 25477 | 12- 4-2024 | An ordinance amending Title 49, Tulsa Revised Ordinances (TRO), "Administrative Permit, and License Fees" by the addition of new Chapter 17, titled "Planning and Zoning Fees"; repealing all ordinances or parts of ordinances in conflict herewith; providing severability; and establishing an effective date. | 1 Added | 49 | 1701, 1702 |
| 25490 | | An ordinance amending Title 24, Chapter 1, Tulsa Revised Ordinances, Section 101, entitled "Nuisances Affecting Health," declaring that dust or dirt in such quantities as to render the occupancy of property uncomfortable to a person of ordinary sensibilities shall be considered a nuisance; affecting public health; providing for severability; repealing ordinances and parts of ordinances in conflict herewith, and declaring an emergency. | 1 | 24 | 101B.13 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25512 | 1-29-2025 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by amending Section 60.040, "Sign Regulations of General Applicability", of Chapter 60, "Signs", by adding and adopting new Subsection 60.040-G, "Electronic Message Center Signs"; amending Chapter 95, "Definitions", by amending the defintion of "sign, dynamic display", and adding and adopting a definition of "sign, electronic message center", within Section 95.220, "Terms Beginning with "S"; providing for severability; and repealing all ordinances or parts of ordinances in conflict herewith. | 1 | 42 | 60.040G. |
| | | | 2, 3 | 42 | 95.220 |
| 25535 | 2-26-2025 | An ordinance amending Title 24, Tulsa Revised Ordinances, "Nuisances," Section 210, "Summary Abatement"; repealing conflicting ordinances; providing for severability; and declaring an emergency. | 1 | 24 | 210 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| 25547 | 3-26-2025 | An ordinance amending Title 28, Tulsa Revised Ordinances, titled "The Municipal Employees' Retirement Plan," amending Chapter 1, "Introduction and Definitions," Section 101, to clarify definition of actuarially determined employer contribution, remove optional employee contributions, clarify interest calculations, define full time employee, adjust final average earning to exclude months with less than ¾ earnings, and clarify the final average earnings calculation process; amending Chapter 2, "Participation," Sections 200—202, to clarify participation commencement and reinstatement of participation; amending Chapter 3, "Contributions," Sections 300—301, to freeze employer contributions at no less than 17 percent until the plan's funded ratio reaches 100 percent, with provisions to increase contributions if funding falls below 100 percent, remove optional employee contribution, clarify timing for participant contributions; amending Chapter 4, "Eligibility for Vesting," Section 402 to add a mandatory cash-out provision for small amounts held by non-vested terminated participants; amending Chapter 5, "Measurement of Years of Credited Service," Sections 500, 503—504 to update in accordance with the updated definition of final average earnings and align with leave of absence personnel policies and to update reemployment after termination provision to take into account mandatory cash outs; amending Chapter 6, "Eligibility for and Calculation of Various Types of Retirement Income," Sections 601—603, to clarify current practice and policy for non-contributing time periods and participants; remove supplemental retirement income from optional employee contributions, clarify application of rule of 80 and rule of 90 for vested deferred participants, and to clarify that optional forms of benefits are not limited to joint and survivor options; amending Chapter 7, "Normal Forms of Retirement Income," Sections 700—710 to remove guaranteed period income, clarify effective date and application of joint and survivor income options, clarify retirement benefit conditions apply to all forms of benefits not just optional forms, update level income option to include all social security normal retirement age elections, update withdrawal of contributions by vested deferred participants to align sick leave accrual with personnel policies, clarify method for redetermine benefits, and change small payment threshold; amending Chapter 8, "Death Benefits," Sections 800—802 to include references to alternate payees, rule of 80, rule of 90, and change default beneficiary to spouse with the estate of the deceased participant as contingent beneficiary; amending Chapter 9, "Maximum Benefits and Contributions," Sections 900—901 to adjust benefit limits to meet IRC requirements; amending Chapter 10, "Administration of Plan," Sections 1001 and 1003 to remove obsolete references to rules and regulations manual; amending Chapter 13, "Miscellaneous," Section 1300 changing title to adjustments and offsets for misstatements, errors, and legal judgments and adding language and addressing process for handling misinformation, errors, judgments and settlements; amending Title 28 to include renaming, renumbering, non-substantive adjustments for alignment, and | | | |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | corrections of scrivener's errors, without altering the intent or meaning; directing that the procedures for amending Chapter 3 as explained in Chapter 3, Section 302 of said Title 28 be fully complied with; providing for severability; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 28 | 101 |
| | | | 2 | 28 | 200 |
| | | | 3 | 28 | 201 |
| | | | 4 | 28 | 202 |
| | | | 5 | 28 | 300 |
| | | | 6 | 28 | 301 |
| | | | 7 | 28 | 400 |
| | | | 8 | 28 | 402 |
| | | | 9 | 28 | 500 |
| | | | 10 | 28 | 503 |
| | | | 11 | 28 | 504 |
| | | | 12 | 28 | 601 |
| | | | 13 | 28 | 602 |
| | | | 14 | 28 | 603 |
| | | | 15 | 28 | 700—710 |
| | | | 16 | 28 | 800—802 |
| | | | 17 | 28 | 900, 901 |
| | | | 18 | 28 | 1001 |
| | | | 19 | 28 | 1003 |
| | | | 20 | 28 | 1101C. |
| | | | 21 | 28 | 1300 |
| 25557 | 4- 2-2025 | An ordinance amending Title 11-B, Tulsa Revised Ordinances, titled "Solid Waste Management", Chapter 5, "Solid Waste Rates and Deposits", Section 502(B), "Green Waste Disposal Site Rate"; making necessary amendments to green waste disposal fee for non-residents and commercial customers, and other governmental agencies or entities; providing for severability; establishing an effective date of May 1, 2025; providing for repeal of conflicting ordinances; and declaring an emergency. | 1 | 11-B | 502.B |
| 25572 | 5-21-2025 | An ordinance amending Title 49, Tulsa Revised Ordinances (TRO), "Administrative, Permit, and License Fees", by amending Chapter 3, "Building Permit Fees", Section 305, "Expediting Fee"; amending Chapter 9, "Infrastructure Development Permit Fees" Sections 903, "Plan Review", and 904, "Escrow"; amending Chapter 12, "Stormwater Drainage Service Fees", Section 1201, "Watershed Permit Application Fee", amending Chapter 13, "Water and Sanitary Sewer Fees", Section 1301, "Water Meter and Detector Check Installation"; amending Chapter 16, "Utility Coordination Fees", Sections 1600, "Closures", 1601, "License Agreements", 1602, "Construction Agreements", and 1603, "public property use/occupancy permit"; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 49 | 305 |
| | | | 2 | 49 | 903 |
| | | | 3 | 49 | 904 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
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| | | | 4 | 49 | 1201 |
| | | | 5 | 49 | 1301 |
| | | | 6 | 49 | 1600 |
| | | | 7 | 49 | 1601 |
| | | | 8 | 49 | 1602 |
| | | | 9 | 49 | 1603 |
| 25590 | 6-11-2025 | An ordinance amending Title 11-A, Chapter 2, Section 202, Tulsa Revised Ordinances, to increase the monthly service charge rate by twelve percent; providing for severability; repealing all ordinances in conflict herewith; and providing an effective date of October 1, 2025. | 1 | 11-A | 202 |
| 25591 | 6-11-2025 | An ordinance amending Title 11-B, Tulsa Revised Ordinances, "Solid Waste Management", Chapter 5, "Solid Waste Rates and Deposits", Section 500(B), "Rates for Collection and Disposal", making necessary amendments to monthly user fees for certain residential collection services, including standard collection services and premium services; amending service charges for physically limited services and other charges; providing that these rates shall be effective on October 1, 2025; providing for severability; and providing for repeal of conflicting ordinances. | 1 | 11-B | 500B. |
| 25598 | 6-11-2025 | An ordinance adopting the first supplement to the eighth revision of the Tulsa Revised Ordinances, codifying ordinances enacted between June 12, 2024, and October 16, 2024; providing certain exceptions for ordinances excluded; providing for the repeal of certain ordinances; protecting preexisting rights; providing for copies to be deposited with the city clerk; providing for distribution of copies to city departments and others; providing for the sale of copies; and declaring an emergency. | 1—8 Added | | Adopting ord., p. ix |
| 25599 | 6-11-2025 | An ordinance amending Title 11, Chapter 12, Tulsa Revised Ordinances, entitled "Right-of-Way Occupancy Management," by amending Subsection 1206a.3.a, of Section 1206, "Occupancy Fees or Inspection Fee and Service Charge"; increasing the amount of occupancy fee to be charged to occupancy permit holders in order to recover each permit holder's pro rata share of the burden on the right-of-way; providing an effective date of July 1, 2025; repealing ordinances in conflict herewith. | 1 | 11 | 1206.A.3.a. |
| 25600 | 6-11-2025 | An ordinance amending Title 11-C, Tulsa Revised Ordinances, titled "Waterworks and Sewerage"; amending Chapter 3, titled "Water Rates"; amending Sections 302, 303, 304, 305, 306, 307 and 308 to provide water rate adjustments; amending Chapter 7, titled "Sanitary Sewer User Charge System"; amending Section 702, 703, and 708 to adjust sewer service charge rates; providing that these rates shall be effective on October 1, 2025; establishing when the amendments enacted by this ordinance shall become operative and providing for severability. | 1 | 11-C | 302 |
| | | | 2 | 11-C | 303 |
| | | | 3 | 11-C | 304 |
| | | | 4 | 11-C | 305 |
| | | | 5 | 11-C | 306 |
| | | | 6 | 11-C | 307 |
| | | | 7 | 11-C | 308 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| | | | 8 | 11-C | 702 |
| | | | 9 | 11-C | 703G. |
| | | | 10 | 11-C | 708 |
| 25603 | 6-18-2025 | An ordinance amending Chapter 1 of Title 44, Tulsa Revised Ordinances (TRO), "City of Tulsa Hotel Tax Code" by amending Subsection G "Rent" of Section 100, "Definitions"; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 44 | 100G. |
| 25604 | 6-18-2025 | An ordinance amending the Tulsa Zoning Code, Title 42, Tulsa Revised Ordinances (hereinafter "Title 42") by making amendments related to farmers' markets and roof signs; amending Chapter 5, "Residential Districts", Section 5.020, "Use Regulations", Table 5-2: "R-District Use Regulations"; amending Chapter 10, "Mixed-Use Districts", Section 10.020, "Use Regulations", Table 10-2: "MX District Use Regulations"; amending Chapter 15, "Office, Commercial and Industrial Districts", Section 15.020, "Use Regulations", Table 15-2: "O, C and I District Use Regulations"; amending Chapter 25, "Special Districts", Section 25.020, "AG, Agricultural District and AG-R, Agricultural-Residential District", Subsection 25.020-B, "Use Regulations", Table 25-1: "AG District Use Regulations"; amending Section 25.040, "CO, Corridor District", Subsection 25.040-B, "Use Regulations", Table 25-4, "CO District Use Regulations"; amending Section 25.050, "SR, Scientific Research District", Subsection 25.050-B, "Use Regulations", Table 25-5: "SR District Use Regulations"; amending Section 25.060, "IMX, Institutional Mixed-Use", Subsection 25.060-B, "Use Regulations", Table 25-7: "IMX District Use Regulations"; amending Chapter 35, "Building Types and Use Categories", Section 35.050, "Commercial Use Category" by adding new Subsection 35.050-R, "Farmers' Market"; amending Chapter 40, "Supplemental Use and Building Regulations", by adding new Section 40.430, "Farmers' Markets"; amending Chapter 45, "Accessory Uses and Structures" by adding new Section 45.210, "Farmers' Markets"; amending Chapter 55, "Parking", Section 55.020, "Minimum Parking Ratios", Table 55-1: "Minimum Motor Vehicle Parking Ratios"; amending Chapter 60, "Signs" Section 60.080, "Signs in Mixed-Use, Commercial and Industrial Zoning Districts", Subsection "60.080-B, "Signs Allowed" by amending numerical 5, "Roof Signs"; amending Subsection "60.080-C, "Sign Budget"; amending Chapter 95, "Definitions", Section 95.070, "Terms Beginning With "D"; providing for severability; and repealing all ordinances or parts of ordinances in conflict herewith. | 1 | 42 | 5.020 |
| | | | 2 | 42 | 10.020 |
| | | | 3 | 42 | 15.020 |
| | | | 4 | 42 | 25.020B. |
| | | | 5 | 42 | 25.040B. |
| | | | 6 | 42 | 25.050B. |
| | | | 7 | 42 | 25.060B. |
| | | | 8 | 42 | 35.050R. |
| | | | 9 | 42 | 40.430 |
| | | | 10 | 42 | 45.210 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| | | | 11 | 42 | 55.020 |
| | | | 12 | 42 | 60.060B.5. |
| | | | 13 | 42 | 60.080C. |
| | | | 14 | 42 | 95.070 |
| 25606 | 6-18-2025 | An ordinance amending Title 35, Tulsa Revised Ordinances (TRO), "Infrastructure Development", by amending Chapter 2, "Infrastructure Development Permits", Section 201, "Permit Categories", Section 202, "Contracts, Bonds and Insurance", and Section 206, "Duration and Revocation of Permits"; amending Chapter 3, "IDP Major Construction Process" by amending the title; amending Section 300, "Definition-Scope and Permit"; repealing all ordinances or parts of ordinances in conflict herewith; providing for severability; and declaring an emergency. | 1 | 35 | 201 |
| | | | 2 | 35 | 202A.8. |
| | | | 3 | 35 | 206 |
| | | | 4 | 35 | Title 3(title) |
| | | | 5 | 35 | 300 |
| 25608 | 6-18-2025 | An ordinance amending Chapter 1 of Title 23, Tulsa Revised Ordinances (TRO), "Municipal Criminal Court" by amending Section 116, "Collection Services for Court Penalties, Costs, Fines and Fees in Cases in Municipal Court in Which the Accused/Defendant Has Failed to Appear or Otherwise Failed to Satisfy a Monetary Obligation Ordered by the Court"; repealing all ordinances or parts of ordinances in conflict herewith; and providing for severability. | 1 | 23 | 116 |
| 25611 | 6-25-2025 | An ordinance amending Title 37, Tulsa Revised Ordinances (TRO), titled "Tulsa Revised Traffic Code"; amending Chapter 14 titled "Special Events"; by amending Section 1407, "Cost Recovery for Special Events"; repealing all ordinances or parts of ordinances in conflict herewith; and providing for severability. | 1 | 37 | 1407 |
| 25612 | 6-25-2025 | An ordinance of the City of Tulsa, Oklahoma, amending Tulsa Revised Ordinances, Title 27, titled "Penal Code", Chapter 28, titled "Curfew Hours for Juveniles", adding downtown curfew hours applicable in the central business district from June 26, 2025, to midnight, October 22, 2025; providing for severability; repealing ordinances and parts of ordinances in conflict herewith; and declaring an emergency. | 1, 2 | 27 | 2800—2806 |
| 25613 | 6-25-2025 | An ordinance of the City of Tulsa, Oklahoma, amending Title 55 of Tulsa Revised Ordinances, "Property Maintenance Code," Chapter 3, "Structure and Premises Standards," Section 302, "Exterior Property Areas," by adding new Sections 302.9 and 302.10 requiring that mailboxes be properly marked and maintained; providing for severability; and repealing any conflicting ordinances. | 1, 2 | 55 | 302 |

| Ordinance Number | Date | Description | Section | Title | Section this Code |
|---|---|---|---|---|---|
| 25614 | 6-25-2025 | An ordinance amending Title 24, Chapter 1, Tulsa Revised Ordinances, Section 103, entitled "Nuisances Affecting Peace and Safety," declaring that commercial driveways, privately maintained streets, service roads, access roads, and similar areas, which are open to the public, and which present a driving hazard, endanger the safety of the public, or are otherwise constructed or maintained in violation of any ordinance shall be considered a nuisance affecting public peace and safety; providing for severability; repealing ordinances and parts of ordinances in conflict herewith, and declaring an emergency. | 1 Added | 24 | 103V. |

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